SUPPLEMENT NO. 53
September 2026

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

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SUPPLEMENT NO. 52
April 2026

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 25-054, adopted May 7, 2025)

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SUPPLEMENT NO. 51
January 2025

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 24-059, adopted July 10, 2024)

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SUPPLEMENT NO. 50
August 2024

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 22-102, adopted December 14, 2022)

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SUPPLEMENT NO. 49
December 2022

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 22-043, adopted May 25, 2022)

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SUPPLEMENT NO. 48
July 2021

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 21-015, adopted March 10, 2021)

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SUPPLEMENT NO. 47
January 2021

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 20-087, adopted October 7, 2020)

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SUPPLEMENT NO. 46
October 2020

CODE

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JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 19-153, adopted November 14, 2019)

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SUPPLEMENT NO. 45
February 2020

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 19-062, adopted June 12, 2019)

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June 2019

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 18-144, adopted December 19, 2018)

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SUPPLEMENT NO. 34
February 2016

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 15-131, adopted September 24, 2015)

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October 2015

CODE

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JERSEY CITY, NEW JERSEY

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(Covering Ordinances through 15-038, adopted March 25, 2015)

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June 2015

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(Covering Ordinances through 14-165, adopted December 17, 2014)

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Looseleaf Supplement

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SUPPLEMENT NO. 30, REVISION
August 2014

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of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

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July 2014

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Looseleaf Supplement

(Covering Ordinances through 14-030, adopted April 17, 2014)

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February 2014

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

(Covering Ordinances through 13-099, adopted September 25, 2013)

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June 2013

CODE

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JERSEY CITY, NEW JERSEY

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SUPPLEMENT NO. 25
October 2012

CODE

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(Covering Ordinances through Ord. No. 12-090 adopted July 18, 2012)

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June 2012

CODE

of

JERSEY CITY, NEW JERSEY

(Covering Ordinances through Ord. No. 12-041 adopted March 28, 2012)

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February 2012

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of

JERSEY CITY, NEW JERSEY

(Covering Ordinances through Ord. No. 11-153 adopted December 14, 2011)

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SUPPLEMENT NO. 22, 10-11
November 2011

CODE

of

JERSEY CITY, NEW JERSEY

(Covering Ordinances through Ord. No. 11-111 adopted September 14, 2011)

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(Covering Ordinances through Ord. No. 11-046 adopted April 27, 2011)

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CODE

of

JERSEY CITY, NEW JERSEY

(Covering Ordinances through Ord. No. 10-166, adopted December 15, 2010)

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SUPPLEMENT NO. 19, 9-10
October 2010

CODE

of

JERSEY CITY, NEW JERSEY

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CODE

of

JERSEY CITY, NEW JERSEY

(Covering Ordinances through Ord. No. 10-008, adopted January 27, 2010)

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SUPPLEMENT NO. 17, REVISION, 10-2009
December 2009

CODE

of

JERSEY CITY, NEW JERSEY

Looseleaf Supplement

This Supplement No. 17, Revision, 10-2009, is issued to corrected pages appearing in Supplement No. 17, 10-2009 and should be inserted as directed below.

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SUPPLEMENT NO. 17, 10-2009
December 2009

CODE

of

JERSEY CITY, NEW JERSEY

(Covering Ordinances through Ord. No. 09-091, adopted August 12, 2009)

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PREFACE

The City of Jersey City has, over the years, passed through a process of legislative change common to many American communities. While only a few simple laws were necessary at the time of the establishment of the city, subsequent growth of the community, together with the complexity of modern life, has created the need for new and more detailed legislation for the proper function and government of the city. The recording of local law is an aspect of municipal history, and as the community develops and changes, review and revision of old laws and consideration of new laws, in the light of current trends, must keep pace. The orderly collection of these records is an important step in this ever-continuing process. Legislation must be more than mere chronological enactments reposing in the pages of old records. It must be available and logically arranged for convenient use and must be kept up-to-date. It was with thoughts such as these in mind that the Council ordered the following codification of the city's legislation, to replace the 1971 Code of the City of Jersey City, adopted 5-4-1971, as readopted 9-19-1978 by Ord. No. S-128 and June 14, 1995 by Ord. No. 95-050. The following paragraphs will further explain the organization and contents of the Code of Jersey City.

Contents of Code

The various chapters of the Code contain all currently effective legislation of a general and permanent nature enacted by the Council of the City of Jersey City, including revisions or amendments to existing legislation deemed necessary by the Council in the course of the codification.

Division of Code

The Code is divided into parts. Part I, Administrative Legislation, contains all city legislation of an administrative nature, namely, that dealing with the administration of government, that establishing or regulating municipal departments and that affecting officers and employees of the municipal government and its departments. Part II, General Legislation, contains all other city legislation of a regulatory nature. Items of legislation in this part generally impose penalties for violation of their provisions, whereas those in Part I do not.

Grouping of Legislation and Arrangement of Chapters

The various items of legislation are organized into chapters, their order being an alphabetical progression from one subject to another. Wherever there are two or more items of legislation dealing with the same subject, they are combined into a single chapter. Thus, for example, all legislation pertaining to the regulation of streets and sidewalks may be found in Part II, in the chapter entitled ""Streets and Sidewalks." In such chapters, use of Article or Part designations has preserved the identity of the individual items of legislation.

Table of Contents

The Table of Contents details the alphabetical arrangement of material by chapter as a means of identifying specific areas of legislation. Wherever two or more items of legislation have been combined by the editor into a single chapter, titles of the several Articles or Parts are listed beneath the chapter title in order to facilitate location of the material.

Reserved Chapters

Space has been provided in the Code for the convenient insertion, alphabetically, of later enactments. In the Table of Contents such space appears as chapters entitled "(Reserved)." In the body of the Code, reserved space is provided by breaks in the page-numbering sequence between chapters.

Pagination

A unique page-numbering system has been used, in which each chapter forms an autonomous unit. One hundred pages have been allotted to each chapter, and the first page of each is the number of that chapter followed by the numerals "01." Thus, Chapter 6 begins on page 601, Chapter 53 on page 5301, etc. By use of this system, it is possible to add or to change pages in any chapter without affecting the sequence of subsequent pages in other chapters, and to insert new chapters without affecting the existing organization.

Numbering of Sections

A chapter-related section-numbering system is employed, in which each section of every item of legislation is assigned a number which indicates both the number of the chapter in which the legislation is located and the location of the section within that chapter. Thus, the first section of Chapter 6 is § 6-1, while the fourth section of Chapter 53 is § 53-4. New sections can then be added between existing sections using a decimal system. Thus, for example, if two sections were to be added between §§ 53-4 and 53-5, they would be numbered as §§ 53-4.1 and 53-4.2.

Scheme

The Scheme is the list of section titles which precedes the text of each chapter. These titles are carefully written so that, taken together, they may be considered as a summary of the content of the chapter. Taken separately, each describes the content of a particular section. For ease and precision of reference, the Scheme titles are repeated as section headings in the text.

Histories

At the end of the Scheme in each chapter is located the legislative history for that chapter. This History indicates the specific legislative source from which the chapter was derived, including the enactment number (e.g., ordinance number, local law number, bylaw number, resolution number, etc.), if pertinent, and the date of adoption. In the case of chapters containing Parts or Articles derived from more than one item of legislation, the source of each Part or Article is indicated in the History. Amendments to individual sections or subsections are indicated by histories where appropriate in the text.

Electronic Submission.

In the interests of accuracy and speed, we encourage you to submit your ordinances electronically if at all possible. We can accept most any file format, including Word, WordPerfect or text files. If you have a choice, we prefer Word, any version. You can send files to us as an e-mail attachment, by FTP, on a diskette or CD-ROM. Electronic files enable us not only to get you your code more quickly but also ensure that it is error-free. Our e-mail address is: **ords@municode.com**.

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CERTIFICATION

CITY OF JERSEY CITY

Office of the City Clerk

1, Robert Byrne, City Clerk of the City of Jersey City, New Jersey, hereby certify that the chapters contained in this volume are based upon the original ordinances and resolutions of the City Council of the City of Jersey City, and that said ordinances and resolutions, as revised and codified, renumbered as to sections and rearranged into chapters, constitute the Code of the City of Jersey City, County of Hudson, State of New Jersey, as adopted by Ordinance 95-050 of the City Council on June 14,1995.

Given under my hand and the Seal of the City of Jersey City, County of Hudson, State of New Jersey, this day of 1995, at Jersey City, New Jersey.

s/Robert Byrne

City Clerk

PREFACE

The Code of the City of Jersey City has been kept current by regular supplementation of LexisNexis Municipal Codes.

Beginning with Supp. No. 16,
Supplemented by Municipal Code Corporation.

In brackets at the beginning of each chapter or within some sections is a legislative history identifying the specific sources for the provisions of that chapter or section. This legislative history is complemented by an ordinance disposition table, following the text of the Code, listing by number all ordinances, their subjects, and where they appear in the codification.

A subject-matter index, with complete cross-referencing, locates specific Code provisions by individual section numbers.

This supplement brings the Code up to date through Ordinance No. 26-016, passed February 11, 2026.

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2022

The Honorable Steven M. Fulop
Mayor of the City of Jersey City

Municipal Council

The Honorable Joyce E. Watterman Councilperson-at-Large	*President of the Municipal Council*
The Honorable Daniel Rivera Councilperson-at-Large	*Municipal Council President Pro Tempore*
The Honorable Amy M. DeGise	*Councilperson-at-Large*
	***
The Honorable Denise Ridley	*Councilperson, Ward A*
The Honorable Mira M. Prinz-Arey	*Councilperson, Ward B*
The Honorable Richard Boggiano	*Councilperson, Ward C*
The Honorable Yousef J. Saleh	*Councilperson, Ward D*
The Honorable James S. Solomon	*Councilperson, Ward E*
The Honorable Frank E. Gilmore	*Councilperson, Ward F*
	***
John J. Metro	*Business Administrator*
Sean J. Gallagher, R.M.C.	*City Clerk*
John J. Hallanan III, R.M.C.	*Deputy City Clerk*
Peter J. Baker, Esq.	*Corporation Counsel*

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[HISTORY: Adopted by the Council of the City of Jersey City 6-14-1995 as Ord. No. 95-050. Amendments noted where applicable.]

Be it ordained and enacted by the Council of the City of Jersey City, County of Hudson, State of New Jersey, as follows:

ARTICLE I
Adoption of Code

§ 1-1. Adoption of 1995 Code.

Pursuant to N.J.S.A. 40:49-4, the ordinances of the City of Jersey City of a general and permanent nature adopted by the Council of the City of Jersey City, as revised, codified and consolidated into chapters and sections by General Code Publishers Corp., and consisting of Chapters 1 through 346, together with an Appendix, are hereby approved, adopted, ordained and enacted as the "Code of the City of Jersey City," hereinafter known and referred to as the "Code."

§ 1-2. Territorial applicability.

The Code shall refer only to the omission or commission of acts within the territorial limits of the city and to that territory outside the city over which the city has jurisdiction or control by virtue of any constitutional or Charter provisions or any law.

§ 1-3. Code supersedes prior ordinances.

This ordinance and the Code shall supersede all general and permanent ordinances enacted prior to the enactment of this Code, except such ordinances as are hereinafter expressly saved from repeal or continued in force.

§ 1-4. When effective.

This ordinance shall take effect immediately upon passage and publication according to law.

§ 1-5. Copy of Code on file.

A copy of the Code in loose-leaf form has been filed in the office of the City Clerk and shall remain there for use and examination by the public until final action is taken on this ordinance; and, if this ordinance shall be adopted, such copy shall be certified to by the Clerk of the City of Jersey City by impressing thereon the Seal of the city, as provided by law, and such certified copy shall remain on file in the office of the Clerk of the city, to be made available to persons desiring to examine the same during all times while said Code is in effect.

§ 1-6. Amendments to Code.

Any and all additions, amendments or supplements to the Code, when passed and adopted in such form as to indicate the intent of the governing body to make them a part thereof, shall be deemed to be incorporated into such Code so that reference to the "Code of the City of Jersey City" shall be understood and intended to include such additions and amendments. Whenever such additions, amendments or supplements to the Code shall be adopted, they shall thereafter be printed and, as provided hereunder, inserted in the loose-leaf book containing said Code, as amendments and supplements thereto.

§ 1-7. Publication; filing.

The Clerk of the City of Jersey City, pursuant to law, shall cause to be published, in the manner required, a copy of this Adopting Ordinance in a newspaper of general circulation in the city. Sufficient copies of the Code shall be maintained in the office of the Clerk for inspection by the public at all times during regular office hours. The enactment and publication of this Adopting Ordinance, coupled with availability of copies of the Code for inspection by the public, shall be deemed, held and considered to be due and legal publication of all provisions of the Code for all purposes.

§ 1-8. Code book to be kept up-to-date.

It shall be the duty of the Clerk or someone authorized and directed by the Clerk to keep up-to-date the certified copy of the book containing the Code required to be filed in his or her office for the use of the public. All changes in said Code and all ordinances adopted subsequent to the effective date of this codification which shall be adopted specifically as part of the Code shall, when finally adopted, be included therein by reference until such changes or new ordinances are printed as supplements to said Code book, at which time such supplements shall be inserted therein.

§ 1-9. Sale of Code book.

Copies of the Code book containing the Code may be purchased from the Clerk upon the payment of a fee to be set by resolution of the Council, which may also arrange, by resolution, for procedures for the periodic supplementation thereof.

§ 1-10. Altering or tampering with Code; penalties for violation.

It shall be unlawful for anyone to improperly change or amend, by additions or deletions, any part or portion of the Code or to alter or tamper with such Code in any manner whatsoever which will cause the law of the City of Jersey City to be misrepresented thereby. Anyone violating this section or any part of this ordinance shall be subject, upon conviction, to one (1) or more of the following: a fine of not more than one thousand dollars ($1,000.), or imprisonment for not more than ninety (90) days or a period of community service not exceeding ninety (90) days, in the discretion of the Judge imposing the same.

§ 1-11. Severability.

A. Severability of Code provisions. Each section of the Code and every part of each section is an independent section or part of a section, and the holding of any section or a part thereof to be unconstitutional, void or ineffective for any cause shall not be deemed to affect the validity or constitutionality of any other sections or parts thereof.

B. Severability of ordinance provisions. Each section of this ordinance is an independent section, and the holding of any section or part thereof to be unconstitutional, void or

ineffective for any cause shall not be deemed to affect the validity or constitutionality of any other sections or parts thereof.

§ 1-12. Repeal of ordinances.

All ordinances or parts of ordinances of a general and permanent nature adopted and in force on the date of the adoption of this ordinance and not contained in the Code are hereby repealed as of the effective date of this Adopting Ordinance, except as hereinafter saved from repeal.

§ 1-13. Effect of repeal of ordinances.

A. The repeal of an ordinance shall not revive any ordinance in force before or at the time the ordinance repealed took effect.

B. The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect nor any suit, prosecution or proceeding pending at the time of the repeal for an offense committed under the ordinance repealed.

§ 1-14. Effect on past acts and obligations.

Neither the adoption of this Code or the repeal hereby of any ordinance of this city shall in any manner affect the prosecution for violation of ordinances, which violations were committed prior to the effective date hereof, nor be construed as a waiver of any license or penalty at said effective date due and unpaid under such ordinance, nor be construed as affecting any of the provisions of such ordinance relating to the collection of any such license or penalty or the penal provisions applicable to the violation thereof, nor to affect the validity of any bond or cash deposit in lieu thereof, required to be posted, filed or deposited pursuant to any ordinance, and all rights and obligations thereof appertaining shall continue in full force and effect.

§ 1-15. Ordinances saved from repeal.

The adoption of this Code and the repeal of ordinances provided for in § 1-12 of this ordinance shall not affect the following ordinances, rights and obligations, which are hereby expressly saved from repeal:

A. Any ordinance adopted subsequent to September 14, 1994.

B. Any right or liability established, accrued or incurred under any legislative provision prior to the effective date of this ordinance or any action or proceeding brought for the enforcement of such right or liability.

C. Any offense or act committed or done before the effective date of this ordinance in violation of any legislative provision or any penalty, punishment or forfeiture which may result therefrom.

D. Any prosecution, indictment, action, suit or other proceeding pending or any judgment rendered, prior to the effective date of this ordinance brought pursuant to any legislative provision.

E. Any franchise, license, right, easement or privilege heretofore granted or conferred.

F. Any ordinance providing for the laying out, opening, altering, widening, relocating, straightening, establishing of grade, changing of name, improvement, acceptance or vacation of any right-of-way, easement, street, road, highway, park or other public place or any portion thereof.

G. Any ordinance appropriating money or transferring funds, promising or guaranteeing the payment of money or authorizing the issuance and delivery of any bond or other instruments or evidence of the city's indebtedness.

H. Ordinances authorizing the purchase, sale, lease or transfer of property or any lawful contract, agreement or obligation.

I. The levy or imposition of taxes, assessments or charges or the approval of the municipal budget.

J. The dedication of property or approval of preliminary or final subdivision plats.

K. All currently effective ordinances pertaining to the rate and manner of payment of salaries and compensation of officers and employees.

L. Any ordinance adopting or amending the Zoning Map.

M. Any ordinance regulating vehicles and traffic.

N. An ordinance adopted 10-6-1931, regulating the use of streets and sidewalks on Pacific Avenue between Communipaw Avenue and Carbon Street.

O. An ordinance adopted 9-1-1959, regulating the use of Roosevelt Stadium recreation and parking area by operators of motor vehicles.

P. Ordinance No. C-404, adopted 3-26-1987, creating the Montgomery Industrial Center Special Improvement District and establishing a district management corporation to provide supplemental services to property within the district at the district member's sole expense.

ARTICLE II
Definitions, Construction and Interpretation

§ 1-16. Definitions; rules of construction of Code.

A. In the course of this Code and of all ordinances, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the Council or the context clearly requires otherwise:

(1) Word usage.

(a) The official time of the city shall be a.m. and p.m.

(b) Bond. When a bond is required, an undertaking in writing shall be sufficient.

(c) Computation of time. The time within which an act is to be done shall be computed by excluding the first and including the last day. If the last day is a Sunday or a Saturday or a legal holiday, that day shall be excluded.

(d) Definitions. Unless expressly otherwise provided, definitions given within a chapter, Article or section apply only to words or phrases used in such chapter, Article or section.

(e) Gender. Words importing the masculine gender shall import the feminine and neuter.

(f) Joint authority. All words giving a joint authority to three (3) or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

(g) Number. Words used in the singular include the plural and the plural includes the singular number.

(h) Or; and. "Or" may be read "and" and "and" may be read "or," if the sense so requires.

(i) Preceding; following. The words "preceding" and "following" shall mean next before and next after, respectively.

(j) Shall; must; may. The words "shall" and "must" are mandatory, and the word "may" is permissive.

(k) Tense. Words used in the past or present tense include the future as well as the past and present.

(2) Terms defined. As used in the Code, the following terms shall have the meanings indicated:

CHARTER — The Charter of the City of Jersey City. (See N.J.S.A. 40:69A-1 et seq.)

CITY — The City of Jersey City, in the County of Hudson and State of New Jersey, except as otherwise provided.

COUNCIL — The Municipal Council of the City of Jersey City.

COUNTY — Hudson County, New Jersey.

DIRECTOR — The chief executive officer of the office or department to which the particular division, bureau, board or agency or subordinate municipal administrative body has been assigned by the Municipal Council.

KEEPER or PROPRIETOR — Persons, firms, associations, corporations, clubs and copartnerships, whether acting by themselves or a servant, agent or employee.

LICENSE ISSUING AUTHORITY — The official or agency designated by the City Council to issue licenses under the provisions of this Code. Unless specifically provided otherwise in any chapter of this Code, "license issuing authority" shall be the Alcohol Beverage Control Board or its designee.

OATH — Includes an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

OWNER — Applied to a building or land, means any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety of the whole or part of such building or land.

PERSON — Includes a corporation, firm, partnership, joint venture, association, organization and any other group of two (2) or more acting as a unit, as well as an individual.

PERSONAL PROPERTY — Includes every species of property, except real property as herein defined.

PROPERTY — Includes real and personal property.

PUBLIC PLACE — Includes any park; stadium; athletic field; playground; street; bus, train or railroad depot, station or terminal; any lake or stream; any cemetery; schoolyard; avenue; plaza; square; open space adjacent thereto or any other public place.

REAL PROPERTY — Includes land, together with all things attached to the land so as to become a part thereof.

SIDEWALK — Any portion of the street between the curbline and the adjacent property line intended for the use of pedestrians.

SIGNATURE; SUBSCRIPTION — Includes a mark when a person cannot write.

STATE — The State of New Jersey.

WRITING; WRITTEN — Includes printing and any other mode of representing words and letters.

B. The provisions of this Code and all ordinances and all proceedings under them are to be construed with a view to effect their purpose and intent and as shall be consistent with the rules of construction as established or may be established in law.

C. All words and phrases shall be construed according to the common and approved usage of the language, but technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in the law shall be construed and understood according to such peculiar and appropriate meaning. Nothing herein shall be construed to alter such rules of construction as established or may be established in law.

D. The rules of construction as set forth in this chapter shall not be applied to any section which shall contain any express provision excluding that construction or when the subject matter or context of that section shall be clearly repugnant to the rules of construction.

§ 1-17. References to chapters, Articles or sections; conflicting sections.

In addition to the rules of construction specified in § 1-16 of this ordinance, the following rules shall be observed in the construction of this Code:

A. All references to chapters, Articles or section are to the chapters, Articles and sections of this Code, unless otherwise specified.

B. If the provisions of different chapters or Article of this Code conflict with or contravene each other, the provisions of such chapter or Article shall prevail as to all matters and questions growing out of subject matter of that chapter or Article.

C. If different sections of the same chapter are clearly in conflict, the provisions of the section which is last in numerical order shall prevail unless the construction is inconsistent with the meaning of that chapter.

§ 1-18. Interpretation of section numbers.

In reading a section number from left to right, the digit or digits to the left of the dash refer to the chapter number of this Code. The digits to the right of the dash refer to the particular section within such chapter. Figures to the right of a decimal point shall indicate new sections inserted between existing sections. The decimal system shall be used in maintaining the numerical order of such sections.

§ 1-19. Headings and catchlines not to affect the meaning of any provision.

All designations and headings of chapters or Articles and all catchlines of section or subsections are intended only for convenience in arrangement and as mere catchwords to indicate the contents of such chapters, Articles, sections or subsections. They shall not be deemed or taken to be any part of or any title of such chapters, Articles, sections or subsections; nor shall they be construed to alter the otherwise intended meaning of any provision of this Code.

§ 1-20. Correction of erroneous section numbers in an ordinance.

A. The chapters, Articles, sections and subsections in an ordinance shall not be considered as part of the subject matter of the ordinance but merely for convenience of arrangement.

B. If a section number is erroneously used in an ordinance and there was no intention by the Council to repeal the subject matter in the same section number of the Code, then the City Clerk shall correct the section number of the ordinance so as not to cause an inadvertent repeal of the preexisting material contained in that section number of the Code.

§ 1-21. Reference includes amendments.

Any reference in this Code to an ordinance or provision of this Code shall mean such ordinance or provision as now existing or hereafter amended.

ARTICLE III
Enforcement; Penalties

§ 1-22. Acts by deputy.

Whenever a power is granted to or a duty is imposed upon a public officer or employee, the power may be exercised or the duty may be performed by a deputy of such officer or employee or by a person duly authorized pursuant to law or ordinance, unless this Code expressly provides otherwise.

§ 1-23. Notices, reports, statements, applications and records to be written in English.

All notices, reports, statements, applications and records required or authorized by this Code shall be made in writing in the English language, unless specifically provided otherwise.

§ 1-24. Service of notice; proof of service.

A. Unless otherwise specifically indicated, whenever a notice is required to be given pursuant to any section of this Code, that notice shall be given either by personal delivery to the person to be notified or by deposit in the United States Mail in a sealed envelope, postage prepaid, addressed to the person to be notified at his last known residence or business address, or by any other method of proof approved by law.

B. Proof of giving notice shall be made either by affidavit of the person over eighteen (18) years of age who actually accomplished personal service or by a return receipt signed by the recipient notified by the United States mail or by any other method approved by law.

§ 1-25. General penalty. [Amended 3-27-2002 by Ord. No. 02-035; 10-23-2013 by Ord. No. 13-113; 1-25-2017 by Ord. No. 17-005; 10-8-2025 by Ord. No. 25-105]

A. Notwithstanding any other section of this Code or any other ordinance, all penalties for violating any provisions of this Code are subject to the maximums authorized by law (including N.J.S.A. 40:49-5) of a fine of up to $2,000.00 and/or imprisonment for a period of up to 90 days and/or a period of community service not exceeding 90 days; provided, however, that for the violation of an ordinance pertaining to solid waste disposal the maximum penalty shall be $10,000.00, and the minimum penalty shall be $2,500.00; provided further, however, that for violations of chapter 287 by owners of multiple-family residential property, the minimum penalty shall be:

   1. $250.00 for properties that are one to four units; and

   2. $500.00 for properties that are five or more units.

B. Continuing violations.

   1. Continuing offense: A period that begins with a first violation and continues until compliance is established. Each day that a violation of this Code or any ordinance continues shall constitute a separate offense.

2. Single summons sufficient: The City may charge a continuing offense in a single summons, and upon conviction by plea or trial, the court may impose a separate penalty for each day the violation continued without the need to issue a separate summons for each day. For purposes of calculating daily penalties, the period of violation shall run from the date of offense alleged on the summons and shall continue until the violation is abated or until conviction by plea or trial, whichever is first.

3. Stacking: Penalties shall be assessed per violation, per day.

4. Mandatory minimums: Nothing in this section alters any mandatory minimum penalty established elsewhere in this Code or ordinance.

C. In addition to the penalties hereinabove provided, any condition caused or permitted to exist in violation of any of the provisions of this Code or any ordinance shall be deemed to be a public nuisance and may be abated by the city as provided by law, and each day that such condition continues shall be regarded as a new and separate offense.

D. Pursuant to N.J.S.A. 40:69A-29, any person who is convicted of violating an ordinance by a plea or trial within one year of the date of conviction by plea or trial of a previous violation of the same ordinance and who was fined for the previous violation, shall be sentenced by a court to an additional fine as a repeat offender. The additional fine imposed by the court upon a person for a repeated offense shall not be less than the minimum or exceed the maximum fine fixed for a violation of the ordinance, but shall be calculated separately from the fine imposed for the violation of the ordinance.

§ 1-26. Prohibited acts; causing, aiding or concealing.

Whenever in this Code any act or omission is made unlawful, it shall include causing, allowing, permitting, aiding, abetting, suffering or concealing such act or omission.

§ 1-27. Same offense punishable by different sections of Code. [Amended 10-07-2020 by Ord. No. 20-088]

In cases where the same offense is made punishable or is created by different clauses or sections of this Code, the Municipal Prosecutor may elect under which to proceed, but not more than one recovery shall be had against the same person for the same offense.

ARTICLE IV
Codification Revisions

§ 1-28. Nonsubstantive changes.

In compiling and preparing the ordinances for adoption and revision as part of the Code pursuant to N.J.S.A. 40:49-4, certain grammatical changes and other minor changes were made in one or more of said ordinances. It is the intention of the Council that all such changes be adopted as part of the Code as if the ordinances so changed had been previously formally amended to read as such.

§ 1-29. Changes in previously adopted ordinances.*

The following changes, amendments or revisions to existing ordinances are made herewith, to become effective upon the effective date of this ordinance. (Chapter and section number references are to the ordinances as they have been renumbered and appear in the Code.)

*Editor's note—In accordance with § 1-29, the chapters, parts and sections which were added, amended, adopted or deleted by this ordinance are indicated throughout the Code by a footnote referring to Chapter 1, General Provisions, Article I. During routine supplementation, footnotes indicating amendments or additions will be replaced with the following wording: "Amended (added) 6-14-1995 by Ord. No. 95-050." A complete description of all changes is on file in the borough offices.

Chapter 3

ADMINISTRATION OF GOVERNMENT*

ARTICLE I

Title; Definitions

§ 3-1. Short title.

§ 3-2. Definitions.

ARTICLE II

Council

§ 3-3. Legislative power.

§ 3-4. Organization; President; President Pro Tem.

§ 3-5. Reports; investigations; liaisons.

§ 3-6. Annual audit; municipal budget; annual financial statement; reports to the council.

§ 3-7. City Clerk.

§ 3-8. Budget Committee.

§ 3-9. Amendment of Rules.

§ 3-9.1. Preamble.

§ 3-9.2. Requirement of written disclosure of lobbyist representative status.

§ 3-9.3. As used in this Chapter.

§ 3-9.4. Violation.

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Mayor

§ 3-10. Executive power.

§ 3-11. Powers and duties.

§ 3-12. Approval or veto of ordinances.

§ 3-13. Attendance at Council meetings; voting.

§ 3-14. Appointment of department heads.

§ 3-15. Removal of department heads.

§ 3-16. Acting Mayor in absence or disability of Mayor; vacancy in office.

§ 3-17. Appointment of personal staff.

§ 3-18. Organization of office.

§ 3-19. Reserved.

§ 3-19.1. Office of Cultural Affairs Created; Head.

§ 3-19.2. Powers and Duties of the Office of Cultural Affairs.

§§ 3-19.3, 3-19.4. Reserved.

ARTICLE IV

Administrative Units

§ 3-20. Offices and departments.

§ 3-21. Subordinate administrative units.

§ 3-22. Allocation of administrative functions.

§ 3-23. Powers and duties of Directors.

§ 3-24. Appointment of subordinate officials and employees.

§ 3-25. Division heads and bureau heads.

§ 3-26. Vacancy in office of Director.

***History**—Adopted by the Council of the City of Jersey City September 8, 1981 as Arts. I through XV, Subarticle 1, of Ord. No. MC-14. Amendments noted where applicable.

Cross references—Board of Assessment Commissioners, Ch. 9; municipal authorities, Ch. 12; sale of City property, Ch. 17; claims, payment of, Ch. 19; contracts and investments, Ch. 21; Municipal Court, Ch. 23; ethics, Ch. 33; personnel, Ch. 53; public access to records, Ch. 62; construction codes, uniform, Ch. 131; Council rules of order, Ch. A350; executive orders, Ch. A351.

§ 3-27. Vacancy in office of division head or bureau head.
§ 3-28. Preservation of civil service rights.
§ 3-29. Departmental administrative regulations.

ARTICLE V
Office of City Clerk

§ 3-30. Appointment of City Clerk.
§ 3-31. General functions of City Clerk.
§ 3-32. City Clerk to be Clerk of Council; records.
§ 3-33. Custodian of City Seal and records.
§ 3-34. Affixing City Seal.
§ 3-35. Disposition of Council actions.
§ 3-36. Organization of the Office of the City Clerk.
§ 3-36.1. Deputy City Clerks.
§ 3-37. Search of marriage license records; fee.
§ 3-38. Petitions for franchise or street vacation ordinances; fee.
§ 3-38.1. Standards for naming streets and municipally-owned property.

ARTICLE VI
Department of Administration

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§ 3-40. Selection of Business Administrator.
§ 3-41. Powers and duties of Business Administrator.
§ 3-42. Organization of Department.
§ 3-43. Office of the Directors.
§ 3-44. Division of Real Estate.
§ 3-45, 3-46. Reserved.
§ 3-47. Office of Municipal Public Defender.
§ 3-48. Division of Communications created; head.
§ 3-49. Powers and duties of Division of Communications.
§ 3-50. Division of Human Resources.
§ 3-50.1. Division of Human Resources; created; head; divisions.
§ 3-50.2. Organization of Division.
§ 3-50.3. Office of Employee Relations and Strategic Workforce Management; duties.
§ 3-50.4. Office of Risk Management; duties.
§ 3-50.5. Office of Human Resource (HR) Technology; duties.
§ 3-50.6. Office of Employee Benefits; duties.
§ 3-50.7. Office of Payroll.
§ 3-50.8. Establishment of an Advisory Census Committee; membership.
§ 3-51. Reserved.
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§ 3-53. Division of Information Technology.
§ 3-54. Office of Diversity and Inclusion; heads.
§ 3-54.1. Powers and duties of Diversity and Inclusion.
§ 3-54.2. Bureaus under the Office of Diversity and Inclusion; heads.

§ 3-54.3. Supervision of procurement; Minority-, Women-, Veteran-, LGBT-, and Disability-Owned Business Enterprises.
§ 3-55. Office of Utility Management.
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§ 3-60. Division of Economic Opportunity created; head.
§ 3-60.1. Duties of Director.
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§ 3-60.3. Office of Risk Management.
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Fiscal Year

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§ 3-64. Inspectors.
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ARTICLE IX
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§ 3-67. Duties of Director; divisions.
§ 3-68. Division of Automotive Maintenance.
§ 3-69. Division of Buildings and Street Maintenance; functions.
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Department of Housing, Economic Development and Commerce

§ 3-72. Department established; head.
§ 3-73. Director of Housing, Economic Development and Commerce; functions.
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ARTICLE XI

Department of Public Safety

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§ 3-84. Director of Public Safety.
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Sub-article I

Division of Police

§ 3-85. Creation of the Division of Police; Police Chief in charge; Table of Organization.
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§ 3-89. Rules and regulations.
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§ 3-105. Division of Environmental Health; functions.
§ 3-106. Division of Injury Prevention.
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ARTICLE XIII
Department of Finance

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Department of Infrastructure

§ 3-134. Department of Infrastructure.
§ 3-134.1. Division of Engineering.
§ 3-134.2. Division of Traffic Engineering.

§ 3-134.3. Division of Transportation Planning.
§ 3-134.4. Division of Architecture.
§ 3-134.5. Division of Sustainability.
§ 3-134.6. Office of Innovation.
§§ 3-135—3-140. Reserved.

ARTICLE XIX

Reserved

ARTICLE I

Title; Definitions

§ 3-1. Short title.

This chapter shall be known and may be cited as the "Administrative Code."

§ 3-2. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

ADMINISTRATIVE UNIT — A department, division, bureau or agency of the City or any subdivision thereof.

ADMINISTRATOR — The Business Administrator appointed pursuant to the Charter and this Administrative Code or any Deputy or Acting Administrator temporarily serving in place of the Business Administrator pursuant to the Charter or this Administrative Code.*

DIRECTOR — The administrative head of a department.

GOVERNING BODY — The Municipal Council as constituted under the Charter.

MAJORITY — A majority of a quorum of the members of the Council present.

ORDINANCE — An act of the Council, as defined in N.J.S.A. 40:48-1 et seq.

PRESIDENT — The President of the Municipal Council.

ARTICLE II

Council

§ 3-3. Legislative power.

The legislative power of the municipality shall be exercised by the Municipal Council, except as otherwise may be provided by general law.

§ 3-4. Organization; President; President Pro Tem. [Amended 2-11-1992 by Ord. No. McC-407; 4-27-1994 by Ord. No. 94-029; 7-29-2009 by Ord. No. 09-087; 8-22-2012 by Ord. No. 12-106]

*__Editor's note__—References to the "Charter" mean N.J.S.A. 40:69A-1 et seq.

A. The Council shall organize pursuant to law on July 1 at which time it shall elect a President from among its members for a term coextensive with the term of the Council. Effective July 1, 2013 and thereafter, the term of a President shall be two years.

B. The Council may also elect a Council President Pro Tem from among its members for a term coextensive with the term of the Council President.

§ 3-5. Reports; investigations; liaisons. [Amended 1-22-1992 by Ord. No. McC-408]

The Council may require any municipal officer, in its discretion, to prepare and submit sworn statements regarding his or her official duties and the performance thereof and otherwise to investigate the conduct of any department, office or agency of the municipal government. The Council may appoint members of the Council or any Council aides to act as liaison between the Municipal Council and the several autonomous boards and agencies.

§ 3-6. Annual audit; municipal budget; annual financial statement; reports to the council. [Amended 1-25-2023 by Ord. No. 23-002]

A. The Council shall cause to be made an annual audit of the city's accounts and financial transactions as required by law. Such audit shall be made by a registered municipal accountant of New Jersey selected by the Council.

B. Whenever the receipt of the Mayor's budget requires a request to the Director of the Division of Local Government Services for an extension of the date for approval and adoption of the municipal budget pursuant to N.J.S.A. 40A:4-5.1 or whenever the Mayor or Business Administrator request that the Council by resolution petition the Director of the Division of Local Government Services for an extension to complete and file the annual audit pursuant to N.J.S.A. 40A:5-4, the Chief Financial Officer shall provide a report to the Council explaining the reasons for the extension. The report shall include a good-faith estimate of the date of receipt of the budget or completion of the annual audit. The Chief Financial Officer shall provide updated reports to the Council each 30 days thereafter.

C. The Council shall receive copies of:

(1) The annual financial statement from the Chief Financial Officer on or before the date the annual financial statement is required to be submitted to the Director of the Division of Local Government Services pursuant to N.J.S.A. 40A:5-12; and

(2) The municipal audit from the registered municipal accountant employed by the city prior to its submission to the Director of the Division of Local Government Services pursuant to N.J.S.A. 40A:5-4.

D. Whenever the Chief Financial Officer fails to file the annual financial statement by the deadline required pursuant to N.J.S.A. 40A:5-12, the Chief Financial Officer shall provide a report to the Council explaining the reasons for the failure to timely file the annual financial statement. The Chief Financial Officer shall provide an updated report to the Council each 30 days thereafter.

§ 3-7. City Clerk.

The Council shall appoint a City Clerk for the term prescribed by law. Such Clerk shall keep the minutes and records of the proceedings of the Council and maintain and compile its ordinances and resolutions as required by the Charter and shall perform such other functions as may be required by law. Prior to this appointment, the Clerk shall have been qualified by training and experience to perform the duties of his or her office.

§ 3-8. Budget Committee. [Added 11-26-1986 by Ord. No. C-329]

A. Establishment of Budget Committee. There is hereby created a City Council Budget Committee to be composed of three members of the City Council appointed by the Council President.

B. Powers of the Committee.

(1) The City Council Budget Committee shall review each departmental budget. The Committee may name a citizens' budgetary advisory panel to assist the Committee in its review.

(2) After receiving the Mayor's budget, the Committee may request from each department information concerning projected expenditures and revenue needs for the coming budget year. The Committee may hold public hearings on budget priorities.

(3) The Chairman of each City Council departmental committee shall serve as an ex officio member of the Budget Committee at any hearing concerning a departmental budget. The Budget Committee shall, in cooperation with the Finance Committee, hold a detailed review of the annual municipal audit.

C. Duties. On or before February 1 or within such time as shall be extended by the Council, the Committee shall report in writing to the full City Council. The report shall include a listing of all the Committee's budget priorities, proposed expenditures, including one-time expenditures, and areas of increased expenditures, revenue projections and potential and proposed one-time revenues. Its report shall contain alternative approaches to budget decisions, with estimates of cost and estimates of income. The City Council Committee is not required to recommend one alternative over others.*

§ 3-9. Amendment of Rules. [Added 6-14-1995 by Ord. No. 95-050]

The Council Rules, as contained in the Appendix of this Code, may be amended from time to time by resolution of the City Council.

§ 3-9.1. Preamble. [Added 6-12-02 by Ord. No. 02-075]

A. The Council affirms that the preservation of responsible government requires that the fullest opportunity be afforded to the people of the City to petition their government for the redress of grievances

*Editor's note—Former Secs. 2-8 through 2-8.28, which contained the Council Rules and immediately followed this section, have been deleted 6-14-1995 by Ord. No. 95-050. Such rules are now contained in the Appendix to this Code.

and to express freely to the Council, the Mayor, and to other members of the Executive Branch, their opinions on legislation, various current issues, and on purchases, bids, and various contracts and agreements to be negotiated and entered into by the City.

B. The Council has determined, however, that the preservation and maintenance of the integrity of the legislative and contracting process, including public bidding, and the negotiation and entry into contracts, including but not limited to contracts for the performance of work, the delivery of goods, professional services agreements, extraordinary unspecifiable service contracts, grant agreements and financial agreements, requires the identification in certain instances of persons and groups who seek to influence the content, introduction, passage or defeat of legislation or the proposal, negotiation, amendment, approval or entry into contracts and agreements, and, where it is not otherwise apparent or readily ascertainable, the nature of the interest which those persons and groups seek to advance or protect through such activity.

C. It is the purpose of the Ordinance codified in this Section to require adequate disclosure in certain instances in order to make available to the Council, and to the public, information relative to the activities of persons who seek to influence the content, introduction, passage or defeat of ordinances or resolutions, or the proposal, negotiation, amendment, approval or entry into contracts, and where it is not otherwise apparent or readily ascertainable, the nature of the interest which those persons and groups seek to advance or protect through such activity.

§ 3-9.2. Requirement of written disclosure of lobbyist representative status. [Added 6-12-02 by Ord. No. 02-075]

A. Any person who, on or after the effective date of the Ordinance codified in this Section is employed, retained or engages himself as a lobbyist representative shall, prior to any communication with a Municipal Council member, the Mayor, the Mayor's or Council's staff, or an officer or staff member of the Executive Branch, and in any event within 30 days of the effective date of such employment, retainer or engagement, whichever occurs later, file a signed notice of lobbyist representative status with the City Clerk, identifying himself and persons by whom he is employed or retained, and the persons in whose interests he is working, and the general nature of his proposed services as a lobbyist representative for such persons, which notice shall contain the following information:

(1) His name, business address and regular occupation;

(2) The name, business address and occupation or principal business of the person from whom he receives compensation for acting as a lobbyist representative;

(3) The name, business address and occupation or principal business of any person in whose interest he acts as a lobbyist representative in consideration of the aforesaid compensation, if such person is other than the person from whom said compensation is received;

(4) Whether the person from whom he receives said compensation employs him solely as a lobbyist representative, or whether he is a regular employee performing services for his employer in some other capacity;

(5) The length of time for which he will be receiving compensation from the person aforesaid for acting as a lobbyist representative, if said length of time can be ascertained at the time of filing; and

(6) The specific legislation or contract or the type of legislation or type of contract, in relation to which he is to act or to promote or oppose as a lobbyist representative in consideration of the aforesaid compensation, and the nature of the interest which those persons and groups seek to advance or protect through such activity, to which he is to act as lobbyist representative in consideration of the aforesaid compensation.

B. A separate signed lobbyist representative form shall be filed with the City Clerk for each specific legislation or contract or for each type of legislation or type of contract over which the lobbyist representative intends to exert influence.

C. The City Clerk shall develop and promulgate a lobbyist representative filing form in accordance with the terms of this chapter.

§ 3-9.3. As used in this chapter: [Added 6-12-02 by Ord. No. 02-075]

A. The term "person" includes an individual, sole proprietorship, partnership, committee, association, corporation, and any other organization or group of persons or form of legal organization.

B. The term "lobbyist representative" means any person who receives or agrees to receive, directly or indirectly, compensation, in money or by anything of value, including reimbursement for expenses, to influence, by direct or indirect communication, any City ordinances or resolutions, or the proposal, negotiation, amendment, approval or entry into any City contracts or agreements.

C. The term "influence" means to make any attempt by communication, whether successful or not, to secure or prevent the initiation of any ordinance or resolution, or to secure or prevent the consideration, amendment, issuance, promulgation, adoption or rejection of any ordinance or resolution by a member of the Municipal Council, or the Mayor, and means any attempt by communication, whether successful or not, to effect the proposal, negotiation, amendment, approval or entry into any contract, whether required to be publicly bid or not, including but not limited to contracts for the performance of work, the delivery of goods and services, professional services agreements, extraordinary unspecifiable service contracts, grant agreements and financial agreements.

D. The term "communication" means any communication, oral or in writing or by any other medium, addressed, delivered, distributed or disseminated, respectively to a Municipal Council member, to the Mayor, the Mayor's or the Council's staff, or to an officer or member of the Executive Branch, as distinguished from communication to the general public.

§ 3-9.4. Violation. [Added 6-12-02 by Ord. No. 02-075]

Any contract or agreement entered into by the City with any person in violation of the provisions of this chapter shall be voidable by the City and the terms and specifications of all contracts and agreements entered into by the City shall provide notice of and shall require compliance with the provisions of this chapter. Any person, as defined in this chapter, whose lobbyist representatives fail to comply with the

provisions of this chapter, shall be disqualified, following notice and an opportunity to be heard before the City Clerk, from entering into contracts and agreements with the City of Jersey City for a period of two (2) years for each violation.

§ 3-9.5. This chapter shall not apply to the following activities: [Added 6-12-02 by Ord. No. 02-705]

A. The publication or dissemination, in the ordinary course of business, of news items, advertising, editorials or other comments by a newspaper, book publisher, regularly published periodical, or radio or television station, including an owner, editor or employee thereof;

B. Acts of an officer or employee of the City of Jersey City or of its autonomous agencies or of the Government of this State or any of its political subdivisions, or of the Government of the United States or of any State or territory thereof or any of their political subdivisions, in carrying out the duties of their public office or employment;

C. Acts of bona fide religious groups acting solely for the purpose of protecting the public right to practice the doctrines of such religious groups;

D. Acts of a duly organized national, State or local committee of a political party;

E. Acts of a person in testifying before a City Municipal Council committee at a public hearing who receives no compensation therefor beyond the reimbursement of necessary and actual expenses, and who makes no other communication with a member of the Municipal Council, Council staff, the Mayor, the Mayor's staff, or another officer or staff member of the Executive Branch in connection with the subject of his testimony; and

F. Acts of a person in communicating to a member of the Municipal Council, Council staff, the Mayor, the Mayor's staff, or another officer or staff member of the Executive Branch, if such communication is undertaken by him as a personal expression and not incident to his employment, even if it is upon a matter relevant to the interests of a person by whom or which he is employed, and if he receives no additional compensation or reward, in money or otherwise, for or as a result of such communication or provision of benefits.

ARTICLE III
Mayor

§ 3-10. Executive power.

A. The executive power of the municipality shall be exercised by the Mayor.

B. The Mayor may assign and reassign, transfer and retransfer, from time to time, either temporarily or permanently, any property or personnel from one function to another, or from one administrative unit to another as the efficient management of the City government may require, subject to the express requirements of the Charter, Title 11A, Civil Service, of the Revised Statutes, as amended, and other general laws. This section shall not, however, apply to the Council or the office of the City Clerk.

C. The Mayor shall have the power of appointment and removal of all officers or employees of the City, except as provided by Charter or general law.

D. The Mayor shall assign or approve the assignment of space in public buildings or other public places for the temporary or permanent use of any department, body, officer, agency

or instrumentality and shall, through the Business Administrator, control the assignment, allocation and use of furniture, equipment or other public property in the city government.

E. The Mayor may establish specific nonsalaried boards or commissions or groups and appoint the members thereof who shall serve at his or her pleasure.[3]

§ 3-11. Powers and duties. [Amended 6-14-1995 by Ord. No. 95-050]

In accordance with the provisions of N.J.S.A. 40:69A-40, the Mayor shall:

A. Enforce the Charter and ordinances of the city and all general laws applicable thereto.

B. Report annually to the Council and to the public on the state of the city and the work of the previous year. He or she shall also recommend to the Council whatever action or programs he or she deems necessary for the improvement of the city and the welfare of its residents. He or she may from time to time recommend any action or programs he or she deems necessary or desirable for the city to undertake.

C. Supervise, direct and control all departments of the municipal government and shall require each department to make an annual and such other reports on its work as he or she may deem desirable.

D. Require such reports and examine such accounts, records and operations of any board, commission or other agency of municipal government, as he or she deems necessary.

E. Prepare and submit to the Council for its consideration and adoption an annual operating budget and a capital budget, establish the schedules and procedures to be followed by all municipal departments, offices and agencies in connection therewith and supervise and administer all phases of the budgetary process.

F. Supervise the care and custody of all municipal property, institutions and agencies and make recommendations concerning the nature and location of municipal improvements and execute improvements determined by the Council.

G. Sign all contracts, bonds or other instruments requiring the consent of the city.[4]

H. Review, analyze and forecast trends of municipal services and finances and programs of all boards, commissions, agencies and other municipal bodies, and report and recommend thereon to the Council.

I. Supervise the development, installation and maintenance of centralized budgeting, personnel and purchasing procedures as may be authorized by ordinance.[5]

J. Negotiate contracts for the city, subject to Council approval.

K. Assure that all terms and conditions imposed in favor of the city or its inhabitants in any statute, franchise or other contract are faithfully kept and performed.

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[3] **Editor's Note: See Ch. 43, Mayor's Commission on Senior Affairs.**

[4] **Editor's Note: See also Ch. 21, Contracts and Investments.**

[5] **Editor's Note: See Ch. 19, Claims, Payment of, and Ch. 53, Personnel.**

L. Serve as an ex officio, nonvoting member of all appointive bodies in municipal government of which he or she is not an official voting member.

§ 3-12. Approval or veto of ordinances.

Ordinances adopted by the Council shall be submitted to the Mayor, and he or she shall, within 10 days after receiving any ordinance, either approve the ordinance by affixing his or her signature thereto or return it to the Council by delivering it to the City Clerk, together with a statement setting forth his or her objections thereto or to any item or part thereof. No ordinance or any item or part thereof shall take effect without the Mayor's approval, unless the Mayor fails to return an ordinance to the Council within 10 days after it has been presented to him or her or unless the Council, upon reconsideration thereof on or after the third day following its return by the Mayor, shall by a vote of ⅔ of the members resolve to override the Mayor's veto.

§ 3-13. Attendance at Council meetings; voting.

The Mayor may attend meetings of the Council and may take part in discussions of the Council but shall have no vote, except in the case of a tie on the question of filing a vacancy in the Council, in which case he or she may cast the deciding vote.

§ 3-14. Appointment of department heads.

A. The Mayor shall appoint heads of each department established pursuant to this Code or pursuant to any other ordinance with the advice and consent of the Council.

B. Each department head shall serve during the term of office of the Mayor appointing him or her and until the qualification of his or her successor.

§ 3-15. Removal of department heads.

The Mayor may, in his or her discretion, remove any department head after notice and an opportunity to be heard. Prior to removing the department head, the Mayor shall first file written notice of his or her intention with the Council, and such removal shall become effective on the 20th day after the filing of such notice, unless the Council shall prior thereto have adopted a resolution by a ⅔ vote of the whole number of the Council disapproving the removal.

§ 3-16. Acting Mayor in absence or disability of Mayor; vacancy in office. [Amended 4-22-1992 by Ord. No. 92-041]

A. The Mayor shall designate the Business Administrator, any other department head or the City Clerk to act as Mayor whenever the Mayor shall be prevented by absence from the city, by disability or other cause from attending to the duties of his or her office. During such time the person so designated by the Mayor shall possess all the rights, powers and duties of the Mayor. Whenever the Mayor shall have been unable to attend to the duties of his or her office for a period of 60 consecutive days for any of the above stated reasons, an

Acting Mayor shall be appointed by the Council, who shall succeed to all the rights, powers and duties of the Mayor or the then Acting Mayor.

B. Any Council President who becomes the Acting Mayor by assuming the powers and duties of the Mayor pursuant to N.J.S.A. 40A:9-131, shall receive a total compensation equal to the salary fixed for the Mayor.

§ 3-17. Appointment of personal staff. [Amended 4-8-1992 by Ord. No. 92-032]

Subject to available appropriations, the Mayor may appoint such personal staff as are authorized by N.J.S.A. 40:69A-60.1, and any amendments thereto. The personal staff of the Mayor shall serve at the pleasure of the Mayor in the unclassified service of the civil service of the city.

§ 3-18. Organization of office.

The office of the Mayor shall consist of the Mayor and his or her personal staff as authorized by Sec. 2-45 of the City Code.*

§ 3-19. Reserved.

Editor's note—Ord. No. 15-138, adopted October 28, 2015, amended the Code by repealing former § 3-19 in its entirety. Former § 3-19 pertained to the Office of Municipal Emergency Management, and carried no history note.

§ 3-19.1. Office of Cultural Affairs Created; Head. [Added 9-24-2015 by Ord. No. 15-126; amended 9-23-2020 by Ord. No. 20-074]

There is hereby created an Office of Cultural Affairs, the head of which shall be the director of the Office of Cultural Affairs.

Editor's note—Ord. No. 20-074, adopted September 23, 2020, amended the Code by repealing § 3-19.1, and renumbering former § 3-19.5 as a new § 3-19.1. Former § 3-19.1 pertained to the creation of the Resident Response Center, and derived from Ord. No. 12-089, adopted July 18, 2012; Ord. No. 13-081, adopted September 11, 2013; Ord. No. 15-126, adopted September 24, 2015; and Ord. No. 16-026, adopted February 24, 2016. Prior to renumbering, Ord. No. 15-126, adopted September 24, 2015, amended the Code by adding a new § 3-19-3, which was redesignated as § 3-19.5 in order to prevent duplication of section numbers.

§ 3-19.2. Powers and Duties of the Office of Cultural Affairs. [Added 9-24-2015 by Ord. No. 15-126; 4-26-2017 by Ord. No. 17-044; 9-25-2019 by Ord. No. 19-125; 9-23-2020 by Ord. No. 20-074]

The Office of Cultural Affairs which, notwithstanding any ordinance to the contrary, shall, including but not limited to, be responsible for:

(1) Serving as the primary point of intake for all applications for public assemblies as defined in Chapter 122, including but not limited to block parties, carnivals, circuses, festival/fairs, flea markets, and parades; and

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***Editor's note**—Original Sec. 2-45, entitled "Office of the Mayor; personal staff," which immediately followed this section, was repealed 4-8-1992 by Ord. No. 92-032. For current provisions dealing with this topic, see § 3-17. Original Sec. 2-45.1, entitled "Office of the Mayor; Studio for the Arts; fees," which immediately followed original Sec. 2-45 and was added 6-23-1983 by Ord. No. MC-421 and amended 3-14-1990 by Ord. No. McC-108, was repealed 9-8-1993 by Ord. No. 93-097. Original Secs. 2-46 and 2-47, dealing with the Division of Public Information, added 11-27-1985 by Ord. No. C-48, were repealed 2-13-1986 by Ord. No. C-166.

(2) For organizing cultural events on behalf of the City, including but not limited to, cultural and heritage events, art shows, street fairs, outdoor concerts, holiday festivals and all other public programs; and

(3) For supervising the Mary McLeod Bethune Life Center.

Editor's note—Ord. No. 20-074, adopted September 23, 2020, amended the Code by repealing §§ 3-19.2 and 3-19.2.1, and renumbering former § 3-19.6 as a new 3-19.2. Former § 3-19.2 pertained to powers and duties of the resident response center, and derived from Ord. No. 12-089, adopted July 18, 2012; Ord. No. 13-081, adopted September 11, 2013; Ord. No. 15-005, adopted February 10, 2015; Ord. No. 15-062, adopted May 27, 20153; Ord. No. 15-126, adopted September 24, 2015; and Ord. No. 16-026, adopted February 24, 2016. Former § 3-19.2.1 pertained to bureaus under the Office of Resident Response Center, and derived from Ord. No. 16-026, adopted February 24, 2016; and Ord. No. 18-025, adopted April 11, 2018. Prior to renumbering, Ord. No. 15-126, adopted September 24, 2015, amended the Code by adding a new § 3-19.4, which was redesignated as § 3-19.6 in order to prevent duplication of section numbers.

§§ 3-19.3, 3-19.4. Reserved.

Editor's note—Ord. No. 17-141, adopted October 25, 2017, amended the Code by repealing former 3-19.3 and 3-19.4. Former §§ 3-19.3 and 3-19.4 pertained to the Bureau of Innovation, and derived from Ord. No. 15-061, adopted May 27, 2015.

ARTICLE IV
Administrative Units

§ 3-20. Offices and departments.

The municipality shall have the following offices and departments:

A. Offices.

(1) Office of the City Clerk.

(2) Office of Assessments. **[Added 6-14-1995 by Ord. No. 95-050]**

B. Departments. **[Amended 6-14-1995 by Ord. No. 95-050]**

(1) Department of Administration.

(2) Department of Public Works.*

(3) Department of Housing, Economic Development and Commerce. **[Amended 8-13-1997 by Ord. No. 97-052]**

(4) Department of Public Safety. **[Amended 9-11-2013 by Ord. No. 13-081]**

(5) Reserved. **[Repealed 9-11-2013 by Ord. No. 13-081]**

(6) Department of Health and Human Services.

(7) Department of Law.†

*__Editor's note__—Former Subsection B(2), which listed the Department of Finance, was repealed 8-13-1997 by Ord. No. 97-052. This ordinance also renumbered former Subsection B(3) through (7) as B(2) through (6).

†__Editor's note__—Former Subsection B(8), which listed the Department of Water and immediately preceded this subsection, was repealed 8-13-1997 by Ord. No. 97-052. This ordinance also renumbered former Subsection B(9) and (10) as B(7) and (8).

(8) Department of Recreation.

(9) Reserved. **[Added 8-13-1997 by Ord. No. 97-052; amended 11-07-01 by Ord. No. 01-121; 12-27-01 by Ord. No. 01-141; repealed 6-25-2008 by Ord. No. 08-092]**

§ 3-21. Subordinate administrative units.

The several offices and departments shall consist of divisions, bureaus, boards and other subordinate units and shall be allocated and assigned as hereinafter provided.

§ 3-22. Allocation of administrative functions. [Amended 6-14-1995 by Ord. No. 95-050]

All the administrative functions, powers and duties of the municipality, other than those vested in the offices of the Municipal Clerk and the Municipal Tax Assessor, shall be allocated and assigned among and within its departments, divisions, bureaus and offices.

§ 3-23. Powers and duties of Directors.

A. The respective Directors shall devote full-time, as and when required, for the proper and efficient discharge of the duties of their office.

B. The Directors shall, under the supervision of the Mayor:

(1) Prescribe the internal organization of their respective departments and the duties of subordinate officers and employees within their departments.

(2) Assign functions, powers and duties to subordinate officers and employees within their departments and modify such assignments as need appears.

(3) Supervise the work of their departments through the divisions established by this chapter and such other organizational units as they may find necessary or desirable, and supervise and direct the work of the employees of their respective departments.

(4) Delegate to division heads such of their respective powers as they may deem necessary for efficient administration.

(5) Report at least annually to the Mayor and Council, in such form as shall be approved by the Business Administrator, on the work of their respective departments during the preceding year.

§ 3-24. Appointment of subordinate officials and employees.

The head of each such office and department shall appoint subordinate officers and employees within the respective offices or departments and may, in his or her discretion and with the approval of the Mayor, remove such subordinate officers and employees in accordance with the provisions of N.J.S.A. 11A:1-1 et seq., Civil Service, and any other law applicable thereto.

§ 3-25. Division heads and bureau heads.

A Director may serve as a division head and a division head may serve as a bureau head without additional compensation.

§ 3-26. Vacancy in office of Director.

Whenever a vacancy exists by resignation, removal or otherwise in the office of Director of any department, the Mayor may temporarily fill such vacancy in cases not specifically provided for in the Charter or Code by appointing an Acting Director, who shall perform all the duties and functions of such department head until the office shall be filled permanently. Any such appointment of an Acting Director shall terminate not later than 90 days after the date of the appointment, unless the Council shall, by resolution, authorize one or more extensions thereof.

§ 3-27. Vacancy in office of division head or bureau head.

Whenever a vacancy exists in the office of head of any departmental division by resignation, removal, disability or otherwise, the Director of the department may fill such vacancy temporarily by appointing an acting head of such division, who shall have and perform all the functions, powers and duties of such division until the office shall be filled permanently.

§ 3-28. Preservation of civil service rights.

If prior to the effective date of this Code, any officer or employee of the City has acquired permanent status within the meaning of Title 11A, Civil Service, and such officer or employee is transferred to an office or employment created pursuant to this Code substantially identical in functions, powers and duties of their office or employment under which he or she acquired such permanent status, such status shall be preserved.

§ 3-29. Departmental administrative regulations.

No rule or regulation made by any department shall, except upon written approval of the Mayor, take effect until at least 10 days after it is filed with the City Clerk as required by the Charter. This limitation of time shall not apply, however, to any order, rule or regulation which relates solely to the organization or internal management of the City government or a part thereof. The City Clerk shall maintain a docket of all orders, rules and regulations filed in his or her office, which docket shall show the name of the issuing department, a brief description of the subject matter and the date of filing. At the close of each year, the Clerk shall, with the advice of the Corporation Counsel, compile, codify and bind all of the orders, rules and regulations which then remain in effect. The Clerk may arrange for the printing and sale of such compilation within the limits of available appropriation.

ARTICLE V

Office of City Clerk*

§ 3-30. Appointment of City Clerk.

The Council shall appoint a City Clerk who shall, prior to his or her appointment, have been qualified by training or experience to perform the duties of the office.

***State law reference**—For statutory provisions relating to the City Clerk, see N.J.S.A. 40:69A-38.

§ 3-31. General functions of City Clerk. [Amended 11-28-2022 by Ord. No. 22-096]

The City Clerk shall perform all of the functions required of Municipal Clerks as set forth in N.J.S.A. 40A:9-133 et seq. and by the general election law (Title 19 of the Revised Statutes) and any other state law or city ordinance and receive the fees prescribed therefor for the use of the city.

The City Clerk or the City Clerk's designee shall also serve as the Registrar of Vital Records subject to the provision of N.J.S.A. 26:8-16. The local Registrar of Vital Statistics shall issue marriage, civil union and domestic partnership licenses and process requests for certified copies of records for births, deaths, marriages, civil unions, and domestic partnerships filed in Jersey City.

§ 3-32. City Clerk to be Clerk of Council; records.

A. The City Clerk shall serve as Clerk of the Council and shall keep the minutes and records of the proceedings of the Council and, upon request of its Chairman, of any Council Committee.

B. He or she shall preserve and compile all ordinances and resolutions. At the close of each year he or she shall, with the advice of the Corporation Counsel, bind, compile or codify all the ordinances and resolutions or true copies thereof of the City which then remain in force and effect.

C. He or she shall properly index the record books, compilation or codification of ordinances and resolutions.

D. The City Clerk shall obtain the minutes of all meetings of autonomous boards and agencies and of any nonprofit corporation established under authority of any resolution or ordinance of the Council and shall furnish those minutes to each member of the Council as they become available. **[Added 1-22-1992 by Ord. No. McC-409]**

§ 3-33. Custodian of City Seal and records.

A. The City Clerk shall have custody of the City Seal and shall keep all records, books and documents of the City, except such of them as are committed by charter or ordinance to another office.

B. He or she shall be the depository and custodian of all official surety bonds furnished by or on account of any City officer or employee, except his or her own bond. The latter shall be placed in the custody of the Business Administrator. **[Amended 8-13-1997 by Ord. No. 97-052]**

C. He or she shall be the depository and custodian of all insurance policies, deeds, leases and contract documents to which the City may be a party. He or she shall report to the Business Administrator at least annually the coverage, expiration date and premium of each surety bond and contract of insurance in his or her custody.

§ 3-34. Affixing City Seal.

The Clerk shall cause the Corporate Seal of the City to be affixed to instruments and writings when authorized by an ordinance or resolution or when necessary to exemplify any document or record of his

or her office or to certify any act or paper, which, from the records in his or her office, shall appear to have been a public act of the City or a public document. He or she shall charge and collect such fees for affixing the Seal as may be prescribed by ordinance.

§ 3-35. Disposition of Council actions.

All matters acted upon by the Council at any duly called meeting, which, in its opinion, require such action, shall be officially communicated by the City Clerk to the office, employee, board, body, commission or other agency of the City for whatever action is to be taken by such officer, employee, board, body, commission or other agency. Whatever action is taken in accordance with the direction of the Council shall then be communicated to the City Clerk, unless otherwise directed, for presentation to and information of the Council. Such action shall become a part of the agenda for subsequent meetings or until removed from the agenda by the Council.*

§ 3-36. Organization of the Office of the City Clerk. [Added 11-28-2022 by Ord. No. 22-096]

The Office of the City Clerk shall consist of the following divisions:

A. The Division of Government Records, which shall consist of the following bureaus:

1. Bureau of Records Management & Municipal Archives;

2. Open Public Records Act (OPRA) Bureau;

3. Bureau of Landlord Registration;

4. Bureau of Legislative Services.

B. The Division of Vital Records, which shall consist of the following bureaus:

1. Marriage Bureau;

2. Bureau of Vital Statistics.

Editor's note—Ord. No. 22-096, adopted November 28, 2022, amended the Code by repealing former § 3-36 in its entirety, and adding a new § 3-36. Former § 3-36 pertained to the Deputy City Clerk, and derived from Ord. No. 01-092, adopted July 18, 2001.

§ 3-36.1. Deputy City Clerks. [Added 11-28-2022 by Ord. No. 22-096]

A. Creation of the position of Deputy City Clerk; appointment, term. There is hereby created within the office of the City Clerk the title of Deputy City Clerk. In accordance with N.J.S.A. 40A:9-135(b), there shall be a maximum of two Deputy City Clerks. Each Deputy City Clerk shall be appointed by the City Clerk and shall serve a term coterminous with that of the City Clerk. Deputy City Clerks may be removed by the City Clerk.

B. Qualifications. Only those who possess the minimum qualification to be eligible to serve as City Clerk as set forth in N.J.S.A. 40A:9-133.2 shall be eligible to serve as Deputy City Clerk.

***Editor's note**—Original Sec. 2-38, entitled "Facilities and staff service," which immediately followed this section, was deleted at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

C. Designation of the First and Second Deputy City Clerk. The City Clerk shall appoint one of the Deputy City Clerks to serve as First Deputy City Clerk who shall be empowered to act as City Clerk during the absence or disability of the City Clerk. While serving as Acting City Clerk, that person shall have all the powers of the City Clerk and shall perform all the functions and duties of the City Clerk.

In the absence of both the City Clerk and the First Deputy City Clerk, the Second City Clerk shall be empowered to act as City Clerk. While serving as Acting City Clerk, that person shall have all the powers of the City Clerk and shall perform all the functions and duties of the City Clerk.

D. Duties of the Deputy City Clerks. Each of the Deputy City Clerks, under the supervision of the City Clerk, shall be assigned to supervise one of the two Divisions within the Office of the City Clerk.

§ 3-37. Search of marriage license records; fee. [Added 11-10-1983 by Ord. No. MC-497; amended 6-14-1995 by Ord. No. 95-050]

For any search of the files and records of marriages when the correct year only is supplied by the applicant, whether or not certification or a certified copy is made, the City Clerk shall be entitled to a minimum fee as provided in Chapter 160, Fees and Charges, plus a fee as provided in Chapter 160, Fees and Charges, for each additional year searched, said fee to be paid by the applicant, except as provided by N.J.S.A. 26:8-63 of the Revised Statutes.

§ 3-38. Petitions for franchise or street vacation ordinances; fee. [Added 1-23-1986 by Ord. No. C-145; amended 6-14-1995 by Ord. No. 95-050]

Petitions for franchise ordinances and street vacation ordinances shall be filed in the office of the City Clerk. The petitioner shall file an original petition and ordinance and 20 clear copies each and shall remit to the City Clerk a nonrefundable fee in the amount as provided in Chapter 160, Fees and Charges. Prior to approval of the ordinance, the petitioner shall reimburse the City Clerk for the cost of advertising the ordinance. The petitioner shall be responsible for filing all notices and documents required by federal, state or county agencies.

§ 3-38.1. Standards for naming streets and municipally-owned property. [Added 2-25-2015 by Ord. No. 15-012; amended 4-8-2015 by Ord. No. 15-046]

A. Definitions.

"Designation" means providing an additional, commemorative name designation, subordinate to the original name designation, of a public thoroughfare over which the City has jurisdiction.

"Municipal Council Street-Name Subcommittee" means the ad hoc subcommittee charged with reviewing applications for commemorative street names and identifying a list of pre-approved names for new streets to be constructed in Jersey City.

"Municipally Owned Property" means:

(a) Buildings and structures, including overpasses, bridges and viaducts and any similar structure;

(b) Real property, including open spaces and parks; and

(c) Interior features of any municipally owned property.

"Naming" means providing an original name designation to a public thoroughfare over which the City has jurisdiction.

"Renaming" means changing an original name designation of a public thoroughfare over which the City has jurisdiction to a different name.

"Streets" as referenced in this section shall mean any public or private thoroughfare that permits public access either for pedestrian travel, vehicular travel or both.

B. Procedure for commemorative designation of streets.

1. Any person or organization seeking a commemorative street name designation shall file a commemorative street designation request form with the City Clerk. The completed form shall include the requested name to be commemorated, the reason for the commemoration, the existing street number or name, the length of the requested commemorative designation, i.e. Montgomery Street from West Side Avenue to Bergen Avenue, and the exact number of commemorative street signs to be added.

   In the case of a commemorative street designation honoring an individual or an organization, all supporting documentation used to support an application to honor that individual or organization must be authenticated and must be attached to the application.

   In the case of a commemorative street designation honoring an individual, the applicant seeking the commemorative designation must conduct an independent background check on the individual, if possible, before submitting a request to dedicate the street. The cost of the background check must be borne by the applicant.

2. The commemorative street designation request form shall be accompanied by a petition signed by at least seventy-five percent (75%) of the recorded property owners on the street proposed for the commemorative designation, and should include written letters of support or recommendation from applicable community groups. If the applicant is looking to designate a corner of a street, then the application must be accompanied by a petition signed by all recorded property owners within a two hundred-foot radius of the corner proposed for the commemorative designation. Such a request should also include written letters of support or recommendation from applicable community groups.

3. The City Clerk shall refer the completed commemorative designation request form, with completed petitions and all additional supplemental materials to the Street-Name Subcommittee which will consist of three (3) Municipal Council representatives or their designees, one (1) of whom will be the ward Councilperson in whose ward the street to be designated is located, the Director of City Planning or his or her designee, the Director of Cultural Affairs or his or her designee, the Director of Public Safety or his or her designee, and the Mayor or his or her designee. The Subcommittee will meet as necessary to review commemorative street name applications. If the request is approved by the Subcommittee, the application will be brought before the Municipal Council for final approval.

4. If approved, signs identifying the commemorative name designation shall be placed underneath the primary street name sign.

C. Standards for commemorative designation.

1. The authority to designate any street or municipally owned property in Jersey City shall remain solely with the Municipal Council.

2. A proposed commemorative name shall meet all applicable standards and requirements established by Subsection C.2.b of this section, provided however, that if for any reason the requesting party cannot meet these standards, a letter requesting a waiver of these standards, showing a good cause justification therefore, shall be provided by the requestors.

a. A proposed commemorative street or municipally owned property designation shall:

(1) Honor a person, organization, corporation, foundation, or similar entity that has a made a significant contribution to the City of Jersey City; or

(2) Reflect the geographic location, community, and the unique characteristics of the area or neighborhood; or

(3) Recognize the historical significance of the area or neighborhood.

b. Requirements. The following standards shall apply to the review and approval of any proposed commemorative name:

(1) Prospective individual honorees should have a minimum of fifteen (15) years of community involvement and should have demonstrated an extraordinary and consistent commitment and dedication to Jersey City. Prospective organizational honorees must have a minimum of thirty (30) years of community involvement in Jersey City.

(2) Prospective organizational honorees must be not-for-profit organizations.

(3) If a proposed commemorative street designation will recognize a prospective individual honoree, with rare exception, the individual must have been deceased for at least three (3) years.

(4) The Subcommittee will not consider an application to designate a street for an individual or organization already honored in a similar fashion, i.e. a person or organization having a park, monument or public building already named after him or her in Jersey City.

(5) A person, organization, foundation, or similar entity that has made significant contributions to the State of New Jersey or to the United States may be considered, but there should be, if possible, some relevant connection to Jersey City.

(6) The Subcommittee may deny approval of an application at its sole discretion. If an application is denied by the Subcommittee, the original applicant may not reapply on behalf of the prospective honoree for five (5) years from the date of the denial.

(7) Commemorative names should be unique, and unlikely to cause confusion or misunderstanding due to duplication of, or similarity with, an existing name, location, or other street name within Jersey City. Near duplications in spelling or street names that are phonetically similar to existing street names shall not be approved.

(8) Street names shall not contain more than three (3) words or exceed seventeen (17) characters in length, including spaces between words and excluding the street type, i.e. "avenue" or "street."

(9) No street can have more than two (2) commemorative street designations.

(10) If a portion of a street is proposed to be commemoratively designated, the designated portion shall begin and end at the intersections of major cross streets.

(11) The cost of producing and installing appropriate signs designating the commemorative name shall be paid by the original requestors.

D. Standards for re-naming existing streets and municipally owned property. The re-naming of streets and municipally owned property is discouraged and will only be allowed in exceptional circumstances such as the City Council finding it necessary for the protection of public health and safety. The new name shall be considered within the context of the historical and or community significance of the existing name. New street names shall follow the requirements and protocol contained in Subsection E, Procedure for naming new streets, and Subsection F, Standards for naming new streets.

E. Procedure for naming new streets.

1. The owner of record, after receipt of site plan or subdivision approval for the streets creation, shall file a street naming request form with the city clerk. The completed form shall include the requested name and documentation supporting the request.

2. The City Clerk shall refer the completed street dedication request form, and all additional supplemental materials to the Street-Name Subcommittee, which will consist of three (3) Municipal Council representatives or their designees, one (1) of whom will be the ward Councilperson in whose ward the street to be designated is located, the Director of City Planning or his or her designee, the Director of Cultural Affairs or his or her designee, the Director of Public Safety or his or her designee and the Mayor or his or her designee. The Subcommittee will meet as necessary to review street name applications, then make a recommendation on the application before the Municipal Council who shall accept, reject or amend making the final naming choice.

3. If approved, signs identifying the name designation shall be placed on the street by the owner.

4. The street signs and their installation shall be consistent with the City's State approved standards.

F. Standards for naming new streets.

1. The authority for the naming new streets or municipally owned buildings or structures constructed in Jersey City shall remain solely with the Municipal Council.

2. The Street-Name Subcommittee will identify fifty (50) potential names for the pre-approved street names list. A list of suitable names will be presented to the Departments of Planning and Public Safety for review within 120 days of the adoption of Ordinance 15-046.

3. A final list of pre-approved street names will be presented to the Municipal Council within thirty (30) days of being reviewed by the Departments of Planning and Public Safety.

4. The pre-approved list of suitable street names will be available in the Division of City Planning. The pre-approved list will contain names that honor people who have made significant contributions to the City of Jersey City, or names which reflect the history, geographic location or unique characteristics of Jersey City. Developers building new streets are to pick from the names on this pre-approved list.

5. Individuals seeking to designate a street may, at their discretion, ask instead that the Subcommittee add the commemorative name to the list of pre-approved street names.

6. If a developer constructing a new street does not wish to pick from the list of pre-approved street names, the developer may ask the Subcommittee for a waiver to submit his or her own suggested street name(s), but the authority to name City streets shall remain with the Municipal Council and the developer's suggested name(s) must conform with the requirements of Subsection C of this section. The Subcommittee and the Municipal Council reserve the right to reject any proposed new street name.

7. Each new street must be named by separate ordinance and as each name is chosen from the list of pre-approved street names, that name shall be removed from the list by the City Clerk. Once a name is chosen from the pre-approved street name list, that name shall not be reused for any other street

8. In the event that the City vacates a street and the vacated street is intended to remain, either in whole or in part, as a vehicular thoroughfare, it shall be a condition of approval that the street name be selected from the pre-approved street name list.

9. Any new street, either public or private, created as part of a site plan or subdivision shall be submitted by the project applicant to the Municipal Council for street naming. The authority for naming all streets, both public and private, shall remain solely with the Municipal Council.

10. In the case of a private street, the owner of record shall file a naming request with the Street Name Subcommittee.

11. All efforts should be made to complete this process before a street is opened for public access and mail begins to be delivered.

12. If the owner does not submit a request before the street is opened for public access, the Street Name Subcommittee shall submit one to the City Council for consideration,

G. Standards for naming new municipally owned property.

1. The authority for the naming new municipally owned property constructed in Jersey City shall remain solely with the Municipal Council.

2. The City Council may choose to make its selection after receiving a written recommendation from any one of the city's advisory boards, including the Street-Name Subcommittee, or such other advisory board established for such purpose.

3. Such recommendation for naming a municipally owned property shall state how the proposed name(s) meet(s) with the criteria set forth in Subsection C of this section.

4. Each new municipally owned property must be named by separate ordinance.

5. Upon approval of a name for a new municipally owned property, a copy of the ordinance shall be forwarded to the Division of City Planning and Architecture for design of the appropriate signage and placement thereof.

H. Standards for commemorative street signs. To avoid confusion, the color scheme for commemorative street name signage shall be the inverse color scheme of the current street signs.

1. Standard street signage shall be green with white lettering and commemorative street signs shall be white with green lettering.

2. Street signs within historic districts shall be brown with white lettering and denote the name of the historic district in which the street runs through along the top edge. Commemorative street signs within a historic district shall be the inverse color scheme of the current street signs within the historic district and shall be white with brown lettering.

3. Commemorative street signs shall be six (6) inches lower than the actual street signs.

Editor's note—Ord. No. 15-012, adopted February 25,2015, amended the Code by adding new provisions to be designated as §3-39. Inorder to prevent duplication of section numbers, the provisions have been included as § 3-38.1 at the discretion of the editor.

ARTICLE VI

Department of Administration

[Amended 11-27-1985 by Ord. No. C-48]

§ 3-39. Creation of Department; Director. [Amended 6-25-2008 by Ord. No. 08-092]

There is hereby established the Department of Administration, the Director of which shall be the Business Administrator. The appointed City Chief Financial Officer shall be a part of the Department of Administration and report to the Business Administrator.

§ 3-40. Selection of Business Administrator. [Amended 6-25-2008 by Ord. No. 08-092]

The Business Administrator shall be chosen solely on the basis of his or her executive and administrative qualifications with special reference to his or her actual experience in, or knowledge of, accepted practices in respect to the duties of his or her office as hereinafter set forth. At the time of his or her appointment, he or she shall be a resident of Jersey City, and during his or her tenure of office he or she shall remain a resident of Jersey City, unless otherwise approved by resolution of the Municipal Council in accordance with N.J.S.A. 40:69A-44.

§ 3-41. Powers and duties of Business Administrator. [Amended 11-7-01 by Ord. No. 01-121]

A. The Business Administrator shall be the chief administrative officer of the city and shall exercise the powers and duties of the Department of Administration.

B. The Business Administrator shall under the direction and supervision of the Mayor:

(1) Assist in the preparation of the budget.

(2) Administer a purchasing and general service system.

(3) Supervise the activities of those divisions and offices within the Department of Administration.

(4) Perform such other duties as the Mayor may prescribe.

C. The Business Administrator shall also, subject to the direction of the Mayor, supervise the administration of each of the departments established by this Administrative Code. For this purpose, he or she shall have the power to investigate the organization and operation of all departments, to prescribe standards and rules of administrative practice and procedure and to consult with the heads of the departments under his or her jurisdiction, provided that, with respect to the Department of Law and the Division of Accounts and Control, the authority of the Business Administrator shall extend only to matters of budgeting, personnel and purchasing.*

D. Certification. Each year the Mayor or Business Administrator shall certify to the Municipal Council and the Tax Assessor that each financial agreement with each urban renewal entity has been entered

*Editor's Note: See Ch. 19, Claims, Payment of, and Ch. 53, Personnel.

into and is in effect pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq. **[Added 4-24-02 by Ord. No. 02-049]**

E. Consistent with N.J.S.A. 40A:11-14, the Business Administrator is empowered to execute license agreements with all private property owners willing to permit the Fire Division of the Public Safety Department exclusive use of their buildings for fire training purposes. The Business Administrator shall execute the form agreement on file in the office of the City Clerk. **[Added 5-9-2018 by Ord. No. 18-034]**

§ 3-42. Organization of Department. [Amended 2-13-1986 by Ord. No. C-166; 4-14-1988 by Ord. No. C-665; 9-13-1989 by Ord. No. McC-18; 8-19-1992 by Ord. No. 92-109; 10-27-1993 by Ord. No. 93-120; 9-28-1994 by Ord. No. 94-88; 6-14-1995 by Ord. No. 95-050; 11-7-01 by Ord. No. 01-121; 12-27-01 by Ord. No. 01-141; 9-22-2004 by Ord. No. 04-107; 6-9-2010 by Ord. No. 10-072; 6-25-2008 by Ord. No. 08-092; 9-11-2013 by Ord. No. 13-081; 1-29-2014 by Ord. No. 14-008; 1-13-2016 by Ord. No. 15-185; 4-13-2016 by Ord. No. 16-059; 10-11-2017 by Ord. No. 17-137; 10-25-2017 by Ord. No. 17-141; 7-17-2019 by Ord. No. 19-088; 9-11-2019 by Ord. No. 19-105]

The Department of Administration shall consist of the following divisions and offices:

A. Reserved.

B. Division of Real Estate.

C. Division of Architecture.

D. Division of Engineering, Traffic and Transportation.

E. Office of Municipal Public Defender.

F. Division of Communications.

G. Reserved.

H. Reserved.

I. Division of Purchasing and Central Services.

J. Office of Sustainability.

K. Division of Information Technology.

L. Office of Diversity and Inclusion; Heads.

M. Office of Utility Management.

N. Bureau of Innovation.

O. Reserved.

P. Reserved.

Q. Reserved.

R. Division of Economic Opportunity.

S. Reserved.

T. Reserved.

U. Reserved.

V. Reserved.

W. Reserved.

X. Division of Internal Audit.

Y. Office of Tax Abatement.

§ 3-43. Reserved.

Editor's note—Ord. No. 19-088, adopted July 17, 2019, amended the Code by repealing former § 3-43 in its entirety. Former § 3-43 pertained to the Division of Management and Budget, and derived from Ord. No. 08-092, adopted June 25, 2008.

§ 3-44. Division of Real Estate. [Amended 6-8-1989 by Ord. No. C-963; 8-13-1997 by Ord. No. 97-052]

Under the Department of Administration there shall be a Division of Real Estate, the head of which shall be the Director of Real Estate. Under the direction of the Department of Administration, the Division of Real Estate shall perform the following functions:

A. Direct the inspection of city-owned and tax title line properties in coordination with other city departments and agencies in accordance with applicable state and city statutes, codes and ordinances.

B. Supervise the activities of all agents appointed for the collection of rents and profits and for the management of properties acquired by the city and which are not within the jurisdiction of the Tax Collector.

C. Supervise the activities of all agents appointed by the Tax Collector or otherwise for the collection of rents and profits on properties coming within the jurisdiction of the Tax Collector for nonpayment of taxes and also supervise the activities of all agents appointed by the Tax Collector for the management of properties coming within the jurisdiction of the Tax Collector under N.J.S.A. 54:5-53.1.

D. Conduct, participate in and coordinate with other city departments and agents hearings, conferences and actions necessary for the maintenance and rehabilitation of city-owned, tax title lien and related properties.

E. Promote and supervise sales and leases of land owned by the city and not needed for public use.

F. Develop programs, seek funding from the state or federal government or private sources and promote projects through public and private sponsors for the development and rehabilitation of properties. This function shall be coordinated with the programs and plans of the Urban Research and Design Division.

G. Assist the Tax Collector with all necessary foreclosure actions, proceedings for the enforcement of liens and proceedings for the collection of delinquent taxes pursuant to law.

H. Coordinate policies with appropriate city officials, government bodies and other persons as to land use and disposition.

I. Promulgate and administer, in coordination with other city departments and agencies, rules and guidelines for the maintenance and rehabilitation of properties.

§ 3-45. Division of Architecture. [Added 7-17-2014 by Ord. No. 14-081; 1-13-2016 by Ord. No. 15-185]

A. Creation of the Division of Architecture; Director of Architecture in charge. There is hereby created within the Department of Administration a Division of Architecture, the head of which shall be the Director of Architecture, which shall:

(1) Provide architectural services for the construction, reconstruction, maintenance, rehabilitation and demolition of public buildings, parks and related facilities. Produce plans and specifications under signature and seal of a licensed architect;

(2) Provide for the structural maintenance, repair and alteration of all public buildings and parks owned or operated by the City;

(3) Establish standards and procedures for the control, use and care of all City-owned equipment, materials and supplies in the custody of the Office;

into and is in effect pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq. **[Added 4-24-02 by Ord. No. 02-049]**

E. Consistent with N.J.S.A. 40A:11-14, the Business Administrator is empowered to execute license agreements with all private property owners willing to permit the Fire Division of the Public Safety Department exclusive use of their buildings for fire training purposes. The Business Administrator shall execute the form agreement on file in the office of the City Clerk. **[Added 5-9-2018 by Ord. No. 18-034]**

F. Consistent with N.J.S.A. 40A:11-14, the Business Administrator is empowered to execute license agreements with private property owners so that the Division of Fire and Emergency Services may perform high-rise crane rescue training and fire suppression system training. **[Added 9-7-2023 by Ord. No. 23-081]**

§ 3-42. Organization of Department. [Amended 2-13-1986 by Ord. No. C-166; 4-14-1988 by Ord. No. C-665; 9-13-1989 by Ord. No. McC-18; 8-19-1992 by Ord. No. 92-109; 10-27-1993 by Ord. No. 93-120; 9-28-1994 by Ord. No. 94-88; 6-14-1995 by Ord. No. 95-050; 11-7-01 by Ord. No. 01-121; 12-27-01 by Ord. No. 01-141; 9-22-2004 by Ord. No. 04-107; 6-9-2010 by Ord. No. 10-072; 6-25-2008 by Ord. No. 08-092; 9-11-2013 by Ord. No. 13-081; 1-29-2014 by Ord. No. 14-008; 1-13-2016 by Ord. No. 15-185; 4-13-2016 by Ord. No. 16-059; 10-11-2017 by Ord. No. 17-137; 10-25-2017 by Ord. No. 17-141; 7-17-2019 by Ord. No. 19-088; 9-11-2019 by Ord. No. 19-105; 6-30-2021 by Ord. No. 21-042; 4-27-2022 by Ord. No. 22-040]

The Department of Administration shall consist of the following divisions and offices:

A. Office of the Directors.

B. Division of Real Estate.

C. Reserved.

D. Division of Human Resources.

E. Reserved.

F. Division of Communications.

G. Reserved.

H. Reserved.

I. Reserved.

J. Reserved.

K. Division of Information Technology.

L. Office of Diversity and Inclusion; Heads.

M. Reserved.

N. Reserved.

O. Reserved.

P. Reserved.

Q. Reserved.

R. Division of Economic Opportunity.

S. Reserved.

T. Reserved.

U. Reserved.

V. Reserved.

W. Reserved.

X. Division of Internal Audit.

Y. Office of Tax Abatement.

§ 3-43. Office of the Directors. [Added 4-27-2022 by Ord. No. 22-040]

The Directors in the Office of the Directors shall, under the supervision of the Mayor, support, supervise, and maintain their respective Division, Department, or Office in executing the duties set forth in the prescribed sections.

§ 3-44. Division of Real Estate. [Amended 6-8-1989 by Ord. No. C-963; 8-13-1997 by Ord. No. 97-052]

Under the Department of Administration there shall be a Division of Real Estate, the head of which shall be the Director of Real Estate. Under the direction of the Department of Administration, the Division of Real Estate shall perform the following functions:

A. Direct the inspection of City-owned and tax title line properties in coordination with other City departments and agencies in accordance with applicable State and City statutes, codes and ordinances.

B. Supervise the activities of all agents appointed for the collection of rents and profits and for the management of properties acquired by the City and which are not within the jurisdiction of the Tax Collector.

C. Supervise the activities of all agents appointed by the Tax Collector or otherwise for the collection of rents and profits on properties coming within the jurisdiction of the Tax Collector for

nonpayment of taxes and also supervise the activities of all agents appointed by the Tax Collector for the management of properties coming within the jurisdiction of the Tax Collector under N.J.S.A. 54:5-53.1.

D. Conduct, participate in and coordinate with other City departments and agents hearings, conferences and actions necessary for the maintenance and rehabilitation of City-owned, tax title lien and related properties.

E. Promote and supervise sales and leases of land owned by the City and not needed for public use.

F. Develop programs, seek funding from the state or federal government or private sources and promote projects through public and private sponsors for the development and rehabilitation of properties. This function shall be coordinated with the programs and plans of the Urban Research and Design Division.

G. Assist the Tax Collector with all necessary foreclosure actions, proceedings for the enforcement of liens and proceedings for the collection of delinquent taxes pursuant to law.

H. Coordinate policies with appropriate City officials, government bodies and other persons as to land use and disposition.

I. Promulgate and administer, in coordination with other City departments and agencies, rules and guidelines for the maintenance and rehabilitation of properties.

§§ 3-45, 3-46. Reserved.

Editor's note—Ord. No. 22-040, adopted April 27, 2022, amended the Code by repealing former §§ 3-45 and 3-46. Former § 3-45 pertained to the Division of Architecture, and derived from Ord. No. 14-081, adopted July 17, 2014; and Ord. No. 15-185, adopted January 13, 2016. Former § 3-46 pertained to the Division of Engineering, Traffic and Transportation, and derived from Ord. No. 14-081, adopted July 17, 2014; Ord. No. 14-017, adopted November 12, 2014; Ord. No. 15-185, adopted January 13, 2016; and Ord. No. 16-059, adopted April 13, 2016.

§ 3-47. Office of Municipal Public Defender.

A. Creation. There is established within the Department of Administration the Office of Municipal Public Defender, the head of which shall be the Chief Public Defender. The Chief Public Defender shall administer the Municipal Public Defender Program and directly supervise the professional, clerical and investigative staff assigned to the program. The Business Administrator's authority over this office shall extend only to matters of budgeting, personnel and purchasing.

B. Functions.

(1) Municipal Public Defenders shall perform the following functions:

(a) Render legal advice, counseling and representation to all eligible defendants in the Jersey City Municipal Court; in addition, Municipal Public Defenders shall represent eligible defendants charged with nonindictable offenses involving gambling in both the Superior Court of Hudson County and the Municipal Court of Jersey City.*

(b) Appeal any conviction or sentence where an appeal is warranted in the opinion of the Municipal Public Defender.

*Cross reference—Court, Municipal, Ch. 23.

(c) Represent all City employees (with the exception of full-time police officers) charged with work-connected, nonindictable offenses.

(2) Neither the Municipal Public Defenders nor their staff shall be obligated to offer any legal advice or representation to any person for any matter other than those specified in Subsection B(1).

(3) The Chief Municipal Public Defender and Municipal Public Defenders shall be permitted to maintain a private law practice, provided that their assignments as Municipal Public Defenders shall be given priority over their private practice at all times without exception, so that there shall be no conflict with their obligations as Municipal Public Defenders.*

C. Application fees for representation by Public Defender. A person applying for representation by a Municipal Public Defender or court-approved counsel shall pay an application fee set forth in Chapter 160, Fees and Charges. Funds collected pursuant this subsection shall be deposited in a dedicated fund administered by the Chief Financial Officer. Such funds shall be used exclusively to meet the costs incurred in providing the services of a Municipal Public Defender, including, when required, expert and lay investigation and testimony. **[Added 11-23-1999 by Ord. No. 99-143]**

§ 3-48. Division of Communications created; head. [Added 4-14-1988 by Ord. No. C-665; amended 8-14-1986 by Ord. No. C-190; 9-24-1987 by Ord. No. C-543; 1-14-1988 by Ord. No. C-643; 10-13-1988 by Ord. No. C-829; 10-14-1992 by Ord. No. 92-142; 10-27-1993 by Ord. No. 93-120; 8-13-1997 by Ord. No. 97-052]†

There is hereby created a Division of Communications, the head of which shall be the Director of the Division of Communications.

§ 3-49. Powers and duties of Division of Communications. [Amended 10-25-1989 by Ord. No. McC-54; 11-23-1993 by Ord. No. 93-137; 8-13-1997 by Ord. No. 97-052; 4-13-2016 by Ord. No. 16-059]

The Division of Communications shall:

A. In coordination with the various departments of City government, develop and implement communications, public information and educational programs to enhance the knowledge of City residents concerning the availability of and access to City services.

B. Coordinate the interrelationship between and dissemination of public information to the public and all aspects of the media, including print media, radio, television and video.

C. Participate in and coordinate the development of local origination programming and other aspects of the interrelationship between the cable television franchisee and the City's public access and City access cable television channels.

***Editor's note**—Original Secs. 2-69 through 2-72.2, which created the Division of Engineering, which immediately followed this section, were repealed 9-14-1994 by Ord. No. 94-87. Original Sec. 2-70.1, entitled "Establishing photocopying fees and fees for documents on file," as added 1-8-1987 by Ord. No. C-356, which immediately followed this section, was deleted 6-14-1995 by Ord. No. 95-050. For provisions relating to fees, see Ch. 160, Fees and Charges. Original Secs. 2-72.3 through 2-72.5, as added 9-13-1989 by Ord. No. McC-9, which created the Bureau of Traffic Engineering, were repealed 8-19-1992 by Ord. No. 92-109.

†**Editor's note**—Original Secs. 2-77.1 and 2-77.2, which created the Division of Public Information and Citizen Services, as added 2-13-1986 by Ord. No. C-166, which preceded this section, were repealed 9-27-1989 by Ord. No. McC-44. Original Sec. 2-77.12, which created the Office of Risk Management, added 9-13-1989 by Ord. No. McC-18, which also preceded this section, was repealed 9-28-1994 by Ord. No. 94-88.

§ 3-50. Division of Human Resources. [Added 4-27-2022 by Ord. No. 22-040]

Editor's note—Ord. No. 12-089, § B, adopted July 18, 2012, amended the Code by repealing former § 3-50, which pertained to the creation of the Mayor's Action Bureau, and derived from Ord. No. C-442, adopted March 26, 1987; Ord. No. C-637, adopted December 10, 1987; Ord. No. McC-9, adopted September 13, 1989; Ord. No. McC-18, adopted September 13, 1989; Ord. No. 95-050, adopted June 14, 1995; Ord. No. 97-052, adopted August 13, 1997; Ord. No. 01-121, adopted November 7, 2001. Subsequently, Ord. No. 22-040 added a new § 3-50.

§ 3-50.1. Division of Human Resources; created; head; divisions. [Added 4-27-2022 by Ord. No. 22-040]

There shall be a Division of Human Resources, the head of which shall be the Director of Human Resources (the "Division Director"). The Division shall be responsible for the creation of a high-performing, competent, engaged and accountable workforce that is committed to the delivery of quality service to the citizens of Jersey City. It will also provide: strategic and administrative oversight of all human resources functions within the City of Jersey City, which includes managing and approving all human resources functions within the City and ensuring that the City complies with all applicable federal, state and local labor and employment laws; advising City departments and Department Heads on human resources matters; ensuring a fair and equitable hiring and employment process; and directing the creation of programs that promote employee development and enhance leadership skills for supervisors and managers throughout City government.

The Division Director shall, prior to his or her appointment, be qualified by training and experience in human resources management or a related field. The Division Director shall appoint each of the Office/Directors identified herein and oversee the Department's functions. The Director may also appoint a Deputy Human Resources Director to assist in Division oversight.

Editor's note—Ord. No. 12-089, § B, adopted July 18, 2012, amended the Code by repealing former § 3-50.1, which pertained to the powers and duties of the Mayor's Action Bureau, and derived from Ord. No. 97-052, adopted August 13, 1997; and Ord. No. 01-121, adopted November 7, 2001. Subsequently, Ord. No. 22-040 added a new § 3-50.1.

§ 3-50.2. Organization of Division. [Added 4-27-2022 by Ord. No. 22-040]

A. Within the Division of Human Resources there shall be the following divisions and offices:

(1) Office of Employee Relations and Strategic Workforce Management.

(a) Office of Risk Management.

(b) Office of Human Resources (HR) Technology.

(2) Office of Employee Benefits.

(3) Office of Payroll.

§ 3-50.3. Office of Employee Relations and Strategic Workforce Management; duties. [Added 4-27-2022 by Ord. No. 22-040]

A. Creation of the Office of Employee Relations and Strategic Workforce Management; Director of the Office of Employee Relations and Strategic Workforce Management in charge; qualifications. Within the Division of Human Resources there shall be an Office of Employee Relations and Strategic Workforce Management, the head of which shall be the Director of the Office of Employee Relations and Strategic Workforce Management. The Director of the Office of Employee Relations and

Strategic Workforce Management shall, prior to his or her appointment, be qualified by training or experience in the administration of governmental or large corporate human resource management, and shall be under the direct supervision of the Director of the Division of Human Resources.

The Office of Employee Relations and Strategic Workforce Management shall have the following duties:

(1) Design programs for the recruitment, selection and development of employees, supervisors and City leaders.

(2) Maintain liaison with state authorities engaged in enforcing personnel laws and regulations (e.g., Public Employee Relations Commission, Civil Service Commission) and ensure compliance with all applicable laws and regulations promulgated by those state authorities.

(3) Establish strategic, value-adding relationships with City officials and Department Directors in relation to the management of their Human Resource needs.

(4) Participate actively in developing employment opportunities and operating policies.

(5) Review of employee classifications and job duties/descriptions.

(6) Oversee the City's talent management practices, including implementation of any process, platform or software to improve management of the City's talent, subject to applicable law or collective bargaining agreements.

(7) Providing training to City employees and City leaders to improve qualifications for entry and promotional opportunities.

(8) Keep abreast of developments and legislation regarding human resource policy and practices and ensure compliance therewith.

(9) Update, as needed, the City Employee Policy and Procedure Manual.

(10) Oversee the offices created hereunder and perform such other duties as may be assigned from time to time.

(11) Maintain employee records and ensure compliance with and administration of all federal, state, county and local public employment programs, unless otherwise provided by law or City ordinance.

(12) Perform such other duties as may be assigned from time to time.

B. Within the Office of Employee Relations and Strategic Workforce Management there shall be an Affirmative Action/EEO function that under the Office Director, shall perform the following duties:

(1) Establish an Affirmative Action/EEO liaison in each department.

(2) Ensure the investigation and resolution of complaints of discrimination/harassment/retaliation from employees and applicants pursuant to the law and/or City policy/protocol.

(3) Ensure the preparation of clear, technically sound, accurate and detailed reports containing findings, conclusions and recommendations.

(4) Maintain liaison with federal and state authorities engaged in the enforcement of equal employment opportunity laws and regulations.

(5) Maintain statistical data on the composition of the work force in compliance with the Civil Rights Act of 1964 and other mandated legislation and applicable federal, state or local laws.

(6) Coordinate activities concerning employment, training and development programs which will tend to equalize employment opportunities for women and minorities.

§ 3-50.4. Office of Risk Management; duties. [Added 4-27-2022 by Ord. No. 22-040]

There is hereby created within the Office of Employee Relations and Strategic Workforce Management, Division of Human Resources, the Office of Risk Management, the head of which shall be the Risk Manager. Under the supervision of the Director of the Division of Human Resources, the Risk Manager shall:

A. In coordination with the Corporation Counsel and the Director of Human Resources, supervise the administration and payment of workers' compensation, and applicable benefits and claims for current and former City employees.

B. Administer the City's self-insurance and general insurance programs.

C. Review all contracts and agreements to recommend risk transfer of liability to other parties, including vendors, contractors, licensees and franchises.

D. Maintain liaison with state authorities engaged in enforcing workplace safety related laws and regulations (e.g., Department of Health and Department of Labor (Public Employee Occupational Safety Act)) and liaise with other City officials in relation to this work (e.g., Department of Health and Human Services and the Department of Law).

E. Administer the Risk Management program for the City of Jersey City to include self-insurance administration, implementation of loss prevention and loss reduction programs, and investigation of property damage liability claims.

F. Establish strategic, value-adding relationships with City officials and Department Directors in managing their risk mitigation concerns.

G. Assist in the preparation of the monthly agenda for the Insurance Fund Commission.

H. Assist in the coordination of Insurance Fund Commission activities and in the investment of insurance funds.

I. Perform such other duties as may be assigned from time to time.

§ 3-50.5. Office of Human Resource (HR) Technology; duties. [Added 4-27-2022 by Ord. No. 22-040]

There is hereby created within the Office of Employee Relations and Strategic Workforce Management, Division of Human Resources, the Office of Human Resources (HR) Technology, the head of which shall be the Director of the Office of HR Technology, who shall be qualified by applicable computer programming/data analytics/Human Resource Information System experience. Under the supervision of the Director of the Office of Employee Relations and Strategic Workforce Management, the Director of the Office of HR Technology shall:

A. Direct, manage, and coordinate the activities and operations of the Human Resources Information System of the City of Jersey City;

B. Assist the Division of Information Technology with implementation of technology projects requiring Human Resources support;

C. Formulate and define system scope, objectives and detailed specifications for implementations of HR technology products;

D. Coordinate assigned HRIS-dependent activities with other divisions, departments and outside agencies: and provides complex administrative support to the Human Resources Director;

E. Establish strategic, value-adding relationships with City officials and Department Directors in relation to providing data to manage their Human Resource needs;

F. Maintain queries/reports in the HRIS and provide reporting services to City personnel and maintain accuracy of employee data for reporting, public information;

G. Ensure HRIS services are in compliance with federal, state, and local regulatory requirements related to recordkeeping and reporting;

H. Participate in and manage the design and development, enhancements and evaluation of systems optimization, efficiency and cost savings opportunities for the City's HRIS system, applications with associated software integration and cloud applications;

I. Ensures all needed reports are provided for varied human resources program areas, including ADA, affirmative action, grievance procedures, employee benefits, FLSA, recruitment guidelines, EEO, self-insured worker's compensation plans, injury and loss prevention programs, and related personnel issues to ensure proper HRIS data entry functions;

J. Manages HRIS project missions, goals, tasks and resource requirements for implementation of projects that impact the entire City;

K. Acts as professional resource for HR and City departments on HRIS program related issues and transforms business/functional needs into technical requirements for coding/designing purposes and ensures that the requirements are implemented within compliance to meet federal laws, state and City Code and any applicable policies including testing for accuracy;

L. Participates and manages and provides oversight to creating comprehensive implementation plans for configuration/customization changes including data migrations, manual steps and/or security roles: and coordinate system and user acceptance testing;

M. Troubleshoots and determines problems before proposing customization/modifications to the Information Technology Division and Director of Human Resources regarding HRIS/HRMS software systems including the current One Solution platform and cloud applications before escalating for coding changes;

N. Serves as a liaison between HR, the Information Technology Division, and City departments to align HRIS technology functionality to operational processes;

O. Oversees HR data management processes; ensures quality, timeliness, security and proper use of HR Information entered and retrieved from systems;

P. Perform such other duties as may be assigned from time to time.

§ 3-50.6. Office of Employee Benefits; duties. [Added 4-27-2022 by Ord. No. 22-040]

A. Creation of the Office of Employee Benefits; Director in charge; qualifications. There shall be created within the Division of Human Resources, an Office of Employee Benefits, the head of which shall be the Director of the Office of Employee Benefits. The Director of the Office of Employee Benefits shall, prior to his or her appointment, be qualified by training or experience in the administration of governmental or large corporate benefits plans and a strong advocate for best practices as it relates to benefits administration, which shall be under the direct supervision of the Director of the Division of Human Resources and which shall have the following duties:

(1) Work with key City partners and Division and City leadership to design overall benefit and compensation programs which engage and motivate employees and applicants to City employment but also are fiscally prudent and strategically impactful to City operations.

(2) Maintain liaison with state authorities in relation to various benefits compliance needs of the Office, including but not limited to the State Division of Pensions and Benefits, Public Employee Retirement System, and ensure compliance with any and all reporting requirements of those authorities.

(3) Maintain records of employee benefit information in a secure, confidential manner in compliance with HIPAA and all other applicable laws and regulations.

(4) Establish strategic, value-adding relationships with City officials and Department Directors in relation to the management of their employee benefit needs.

(5) Coordinate announcements and outreach efforts, using various media types to optimize awareness of benefits by City employees and retirees, resulting in measurable levels of engagement from employees/retirees. Ensure best practices are implemented in relation to all outreach efforts, including but not limited to, Open Enrollment, Health Fair, and Employee Orientations.

(6) Oversee all administrative aspects of the City's compensation practices along with the administration of all active employee benefits plans and offerings and retiree benefits plans and offerings, including all health and retirement benefit offerings.

(7) Keep abreast of developments and legislation regarding employee benefits policy and practices and ensure compliance by employees and City leadership with best practices.

(8) Creation of a comprehensive City Employee and Retiree Benefits Guide.

(9) Maintain exceptional levels of customer service, customer engagement and responsiveness in relation to all employee and retiree service needs.

(10) Supervise the administration, but not the investment, of all pension funds of the City and retirements with respect thereto, including the Police and Fire Divisions in coordination with City partners in those divisions.

(11) Oversee application and execution of pension payments to retired employees, in accordance with the Noncontribution Pension Act, N.J.S.A. 43:8B-1 et seq., and all other pension programs within his or her jurisdiction, in addition to assisting and advising applicants in filing retirement applications.

(12) Compile semimonthly pension payrolls for the municipal employees' pension fund and other statutory pension payments except for the police and fire fighter's pensions which shall be the responsibility of the Police and Fire Departments' fiscal officers.

(13) Establish acceptable and workable records of all pension assessment collections with the approval of the Division of Accounts and Control; accept all moneys deducted from salaries of municipal employees who are members of all pension funds and deposit the same; and prepare monthly financial reports and transmittals to the New Jersey Public Employee Retirement System, together with a quarterly financial report.

(14) Arrange for physical examinations in accordance with the various pension acts; receive medical reports from physicians; and in certain cases establish and maintain a record for the purpose of reducing pension payments in certain cases where social security integration is part of their pension.

(15) Prepare any and all needed reports for the Business Administrator, Director of Human Resources or other personnel, in conjunction with the appropriate benefit vendors.

(16) Prepare annual budgets for the semimonthly pension payments to all pensioners whose names are carried on the rolls of the City.

(17) Serve as the Certifying Officer in relation to compliance with any applicable law related to the administration of the City's retirement benefits, unless another Officer is otherwise provided by or required under law.

(18) Advise and make recommendations for retirements and act as the certifying agent for the Social Security Administration.

(19) Ensure timely payments are made to all City vendors in relation to a City benefit offerings, including but not limited to, quarterly payments to PERS and payments to all medical benefits providers and any other benefit provider as required by the applicable contract.

(20) The Pension Commission of the Employees' Retirement System of the City is continued within the Department of Administration and shall be constituted and have the functions, powers and duties as provided by law (N.J.S.A. 43:13-22.50 et seq.).

(21) Perform such other duties as may be assigned from time to time.

§ 3-50.7. Office of Payroll. [Added 4-27-2022 by Ord. No. 22-040]

A. Creation of the Office of Payroll; Supervisor in charge; qualifications. There is hereby created within the Division of Human Resources, an Office of Payroll, the head of which shall be the Director of the Office of Payroll. The Director of Payroll shall, prior to his or her appointment, be qualified by training or experience in the administration of governmental or large corporate payroll operations, which shall be under the direct supervision of the Director of the Division of Human Resources and which shall have the following duties:

(1) Administer payroll operations for all municipal employees.

(2) Administer a centralized timekeeping system for City employees.

(3) Provide for the use and installation of a central payroll system.

§ 3-50.8. Establishment of an Advisory Census Committee; membership. [Added 4-27-2022 by Ord. No. 22-040]

A. The Jersey City Census Committee is hereby established to develop strategies and techniques, working with City and County staff and census bureau officials, to enhance and increase the response rate to the census; and

B. The Committee shall be responsible for planning and conducting local educational initiatives, and for preparing educational materials, flyers and handouts for use by media and others. The Committee will also prepare materials for public service announcements on radio and social media;

C. The Business Administrator shall assign staff and the Council shall provide the necessary funding for the Committee in the discharge of these functions;

D. The Committee shall consist of the Mayor or his designee, two members of the Council appointed by the Mayor with the advice and consent of the Municipal Council, the Director of the Office of Diversity and Inclusion, and one resident from each ward appointed by the Mayor with the advice and consent of the Municipal Council:

E. In selecting those members of the public who shall serve on the Committee, the Mayor shall, to the extent possible, appoint members who represent the cultural, ethnic and linguistic diversity of the communities within the City of Jersey City, including to the extent feasible, members representing:

(1) Mayor;

(2) Jersey City Council;

(3) Hard to Count Community;

(4) Jersey City Municipal Community;

(5) Business Community;

(6) Immigrant Community;

(7) Census 2020 Partnership Specialist;

(8) Elementary/Secondary/Post-Secondary Community;

(9) Nonprofit Corporate Community.

F. The Committee members shall serve from the time of appointment until such time as 2020 census is completed and published, at which time the terms of the appointed Committee members shall be terminated.

G. The Committee shall meet at least once per month. Prior to a Committee meeting, the City staff assigned by the Mayor to assist the Committee shall provide the Committee with all documents to be reviewed for the upcoming meeting.

H. The meetings of the Committee shall be held in accordance with the Open Public Meeting Act.

§ 3-51. Reserved.

Editor's note—Ord. No. 21-042, adopted May 30, 2021, amended the Code by repealing former § 3-51, which pertained to purchasing and Division of Purchasing and Central Services, and derived from Ord. No. C-347, adopted December 11, 1986; Ord. No. C-840, adopted October 27, 1988; Ord. No. 92-052, adopted May 27, 1992; Ord. No. 92-179, adopted December 9, 1992; Ord. No. 92-193, adopted January 13, 1993; Ord. No. 96-063, adopted June 12, 1996; Ord. No. 97-052, adopted August 13, 1997; Ord. No. 97-096, adopted January 14, 1998; Ord. No. 06-035, adopted March 22, 2006; Ord. No. 08-092, adopted June 25, 2008; Ord. No. 09-003, adopted January 28, 2009; Ord. No. 09-004, adopted January 28, 2009; Ord. No. 12-090, adopted July 18, 2012; Ord. No. 15-104, adopted October 14, 2015; Ord. No. 16-059, adopted April 13, 2016; Ord. No. 16-172, adopted November 9, 2016; Ord. No. 19-065, adopted June 26, 2019; and Ord. No. 21-039, adopted June 16, 2021. Similar provisions can now be found in § 3-113.4.

§ 3-51.1. Reserved.

Editor's note—Ord. No. 23-115, adopted November 29, 2023, amended the Code by repealing former § 3-51.1, which pertained to contractor pay-to-play regulations, and derived from Ord. No. 08-128, adopted September 3, 2008.

§ 3-51.2. Redevelopment pay-to-play reform. [Added 9-9-2009 by Ord. No. 09-096]

A. Prohibition of entering into or amending redevelopment agreements with certain contributors.

(1) Any other provision of law to the contrary notwithstanding, the City of Jersey City or any of its purchasing agents or agencies or those of its independent authorities, as the case may be, shall not enter into an agreement, amend an agreement, or otherwise contract with any redeveloper, as defined in section (3) below, for the planning, re-planning, construction or undertaking of any redevelopment project, including the acquisition or leasing of any public property in conjunction with the redevelopment of any area within the City of Jersey City pursuant to the Local

Redevelopment and Housing Law, if that redeveloper has made any "contribution" (as such term is defined at N.J.A.C. 19:25-1.7, which definition includes loans, pledges and in-kind contributions) (hereinafter "contribution"), to:

(a) A candidate, candidate committee or joint candidates committee of any candidate for elective municipal office in Jersey City or a holder of public office having ultimate responsibility for arranging, entering into, or approving the redevelopment agreement, or for appointing those who enter into the agreement on behalf of the City of Jersey City, or

(b) To any Jersey City or Hudson County political committee or political party committee, or

(c) To any continuing political committee or political action committee that regularly engages in the support of Jersey City municipal or Hudson County elections and/or Jersey City municipal or Hudson County candidates, candidate committees, joint candidate committees, political committees, political parties, political parry committees, (hereinafter "PAC"), during the applicable time period which, for purposes of this section, shall be defined as three (3) months prior to applying to enter into the redevelopment agreement, amended agreement, or contract (hereinafter "agreement").

(2) All redevelopment agreements or amendments thereto entered into by the City of Jersey City shall contain a provision prohibiting redevelopers, as defined in section (3) below, to solicit or make any contribution to:

(a) A candidate, candidate committee or joint candidates committee of any candidate for elective municipal office in Jersey City or a holder of public office having ultimate responsibility for arranging, entering into, or approving the redevelopment agreement, or for appointing those who enter into the agreement on behalf of the City of Jersey City, or

(b) To any Jersey City or Hudson County political committee or political party committee, or

(c) To any "PAC", between application to enter into a redevelopment project and the later of the termination of negotiations or rejection of any proposal, or the completion of all matters or time period specified in the redevelopment agreement.

(3) As defined in N.J.S.A. 40A:12A-3, a "redeveloper" means any person, firm, corporation, partnership, limited liability company, organization, association, or public body that shall enter into or propose to enter into an agreement with a municipality or other redevelopment entity for the redevelopment or rehabilitation of an area in need of redevelopment, or an area in need of rehabilitation, or any part thereof, under the provisions of this act, or for any construction or other work forming part of a redevelopment or rehabilitation project. For the purposes of this ordinance the definition of redeveloper also includes all principals who own ten percent (10%) or more of the equity in the corporation or business trust as well as partners and officers of the redeveloper and any affiliates or subsidiaries directly controlled by the redeveloper. Spouses and any child/children shall also be included.

(4) For the purposes of this section, the office that is considered to have responsibility for arranging and entering into the redevelopment agreement under the Act shall be:

(a) The Jersey City City Council if the redevelopment agreement requires approval or appropriation from the Council or a public officer who is responsible for arranging and entering into the redevelopment agreement if that public officer is appointed by the Council, or

(b) The Mayor of Jersey City if the redevelopment agreement requires the approval of the Mayor or a public officer who is responsible for arranging and entering into the redevelopment agreement if that public officer is appointed by the Mayor, or

(c) A designated redevelopment entity, if the redevelopment agreement requires the approval of the redevelopment entity.

B. Contributions made prior to the effective date. No contribution or solicitation of contributions made prior to the effective date of this section shall be deemed to give rise to a violation of this section.

C. Contribution statement of redeveloper; notice given by municipality.

(1) Prior to arranging and entering into the redevelopment agreement with any redeveloper, the City of Jersey City or any of its purchasing agents or agencies or independent authorities, as the case may be, shall receive a sworn statement from the redeveloper:

(a) That the redeveloper has not made any contribution in violation of subsection A.(1) above and

(b) That all persons or entities representing or in the employ or acting as an agent of the redeveloper have agreed to be bound by the terms of this section.

The City of Jersey City, through any appropriate redevelopment agent, agency, officer, authority, or department, shall be responsible for informing the City Council that the aforementioned sworn statement has been received and that the redeveloper is not in violation of this ordinance, prior to awarding the agreement. Furthermore, the redeveloper shall have a continuing duty to report any violations of this ordinance that may occur while arranging and entering into the redevelopment agreement, and until all specified terms or time period of the agreement have been completed. The certification required under this subsection shall be made prior to entry into the agreement with the municipality and shall be in addition to any other certifications that may be required by any other provision of law.

(2) It shall be the municipality's continuing responsibility to give notice of this section when the municipality gives notice of redevelopment pursuant to 40A:12A-6 and when the municipality adopts a resolution directing the planning board to prepare a redevelopment plan and at the time that the municipality adopts the ordinance to implement the redevelopment plan.

D. Disclosure requirement applicability to consultants.

(1) The contribution and disclosure requirements in this section shall apply to all redevelopers as well as professionals, consultants or lobbyists contracted or employed by the business entity ultimately designated as the redeveloper to provide services related to the:

(a) Lobbying of government officials in connection with the examination of an area and its designation as an area in need of redevelopment or in connection with the preparation, consultation and adoption of the redevelopment plan;

(b) Obtaining the designation or appointment as redeveloper;

(c) Negotiating the terms of a redevelopment agreement or any amendments or modifications thereto; and

(d) Performing the terms of a redevelopment agreement.

(2) It shall be a breach of the consultant's contract, and shall require immediate termination, for a consultant to violate the contribution limits and disclosure requirements in this section.

(3) A redeveloper who participates in, or facilitates, the circumvention of the contribution restrictions through consultants, professionals or agents shall be deemed to be in breach.

E. Return of excess contributions. A redeveloper or municipal candidate or officeholder or municipal or county party committee or "PAC" referenced in this ordinance may cure a violation of subsection A. of this section, if, within thirty (30) days after the date on which the applicable ELEC report is published, the redeveloper notifies the Municipal Council in writing and seeks and receives reimbursement of a contribution from the recipient of such contribution.

F. Penalty.

(1) It shall be a breach of the terms of the Jersey City redevelopment agreement for a redeveloper to:

(a) Make or solicit a contribution in violation of this ordinance;

(b) Knowingly conceal or misrepresent a contribution given or received;

(c) Make or solicit contributions through intermediaries for the purpose of concealing or misrepresenting the source of the contribution;

(d) Make or solicit any contribution on the condition or with the agreement that it will be contributed to a candidate, candidate committee or joint candidates committee of any candidate for elective municipal office in Jersey City, or a holder of public office having

ultimate responsibility for arranging, entering into, or approving the redevelopment agreement, or for appointing those who enter into the agreement on behalf of the City of Jersey City, or any Jersey City or Hudson County political committee or political party committee, or any "PAC;"

(e) Engage or employ a lobbyist or consultant with the intent or understanding that such lobbyist or consultant would make or solicit any contribution, which if made or solicited by the redeveloper itself, would subject that entity to the restrictions of this section;

(f) Fund contributions made by third parties, including consultants, attorneys, family members, and employees;

(g) Engage in any exchange of contributions to circumvent the intent of this ordinance; or

(h) Directly or indirectly, through or by any other person or means, do any act which would subject that entity to the restrictions of this section.

(2) Furthermore, any redeveloper who violates (a) ii-viii shall be disqualified from eligibility for future Jersey City redevelopment agreements for a period of four (4) calendar years from the date of the violation.

G. Severability. If any provision of this section, or the application of any such provision to any person or circumstances, shall be held invalid, the remainder of this section to the extent it can be given effect, or the application of such provision to persons or circumstances other than those to which it is held invalid shall not be affected thereby, and to this extent the provisions of this section are severable. The drafters of this section, the persons signing the petition in support of this section, and the persons who cast votes in favor of the section, declare that they would have supported the section and each section, subsection, sentence, clause, phrase, or provision or application thereof, irrespective of the fact that any one (1) or more other sections, subsections, sentences, clauses, phrases, or provisions or applications thereof may be held invalid.

H. Repealer. All ordinances or parts of ordinances which are inconsistent with any provisions of this section are hereby repealed as to the extent of such inconsistencies.

1. Effective date. This section shall become effective twenty (20) days following the final adoption thereof by the Municipal Council of the City of Jersey City.

§ 3-51.3. Transitional Employment Period. [Added 7-18-2012 by Ord. No. 12-090]

A. The City shall give advance notice to a service contractor and any collective bargaining representative of the service contractor's employees that a service contract will be terminated, and the City shall also provide the name, address, and telephone number of the successor contractor or contractors where known. The terminated contractor shall, within five (5) days after receipt of such notice, provide to the successor contractor, the name, address, date of hire, and employment occupation classification of each employee employed at the site or sites covered by the service contract at the time of receiving said notice. If a successor contractor has not been identified by the City by the end of the five-day period, the terminated contractor shall provide the information to the City. At the same time that the

terminated contractor provides this information to the successor contractor or the City, the terminated contractor shall provide each affected employee with notice of his/her right to obtain employment with the successor contractor.

B. A successor contractor or subcontractor where applicable shall retain for a 90-day transitional employment period all employees who were employed by the terminated contractor and its subcontractors at the building(s) covered by the terminated contract.

C. If at any time the successor contractor determines that fewer employees are required to perform the new service contract than had been performing such services under the terminated contract the successor contractor shall retain the employees by seniority within job classification. Except for such layoffs, during the 90-day transition period, the successor contractor shall not discharge without cause an employee retained pursuant to this section. During the 90-day transition period, the successor contractor shall maintain a preferential hiring list of those employees not retained, from which the successor contractor or its subcontractors shall hire additional employees.

D. At the end of the 90-day transition employment period, the successor contractor shall perform a written performance evaluation for each employee retained pursuant to this section. If employee's performance during such 90-day period is satisfactory, the successor contractor or subcontractor shall offer the employee continued employment under the terms' and conditions established by the successor contractor or subcontractor or as required by law.

§ 3-51.4. Compliance. [Added 7-18-2012 by Ord. No. 12-090]

A. Compliance with this section shall be required in all City contracts to which it applies, and such contracts shall provide that violation of this section shall entitle the City to terminate the contract. In addition, failure to comply with these requirements may ban the contractor from holding contracts with the City for a period of three (3) years. Upon the City's request the contractor or subcontractor shall make all relevant records available to the City or its designee in order for the City to determine whether the contractor or subcontractor is in compliance with said requirements.

B. An employee displaced or terminated in violation of this section may bring an action in any court of competent jurisdiction against the terminated contractor and/or the successor contractor for violations pursuant to this section.

§ 3-52. Office of Sustainability. [Added 10-11-17 by Ord. No. 17-137]

Within the Department of Administration there shall be an Office of Sustainability.

§ 3-52.1. Powers and Duties of the Office of Sustainability. [Added 10-11-17 by Ord. No. 17-137]

The Office of Sustainability shall improve the City's quality of life by developing and implementing initiatives to ensure the social, environmental, and economic sustainability of the City, and improve the efficiency, resiliency, and sustainability of City operations.

§ 3-53. Division of Information Technology. [Amended 8-13-1997 by Ord. No. 97-052]

A. Creation of the Division of Information Technology; Director of Information Technology in charge. There is hereby created within the Department of Administration, the Division of Information Technology, the head of which shall be the Director of Information Technology. The Director of Information Technology shall be a person qualified by training and experience in the installment and operation of governmental or private computer systems.

B. Division of Information Technology; function. The Division of Information Technology shall:

(1) Be responsible for developing, maintaining and operating a centralized computer processing facility to service all city departments and agencies.

(2) Counsel and assist all city departments and agencies in the development and installation of computerized systems programs.

(3) Establish controls and procedures to safeguard computer equipment, files, tapes, disks and all other pertinent materials.

(4) Provide for the design, implementation and maintenance of telecommunications.

(5) Provide for the coordination and cooperation between the City of Jersey City and any agent or company providing communications service to the city.

(6) Advise the city relative to the adoption of new services and/or techniques in the field of communications.

(7) Provide cooperation and coordination among the communication services of the various branches of city government.

§ 3-54. Office of Diversity and Inclusion; Heads. [Added 2-24-2016 by Ord. No. 16-026]

A. There is hereby created within the Office of the Department of Administration an Office of Diversity and Inclusion. The head of the Office shall be the Chief Diversity and Inclusion Officer. There shall also be a Deputy Chief Diversity and Inclusion Officer, who shall assist the Chief in the management of the Office and assume the duties and responsibilities of the Chief in his or her absence.

B. Should the Mayor by executive order establish an advisory board for either lesbian, gay, bisexual and transgender (LGBT) or diversity and inclusion matters, the Office of Diversity and Inclusion shall consider its advice and recommendations.

§ 3-54.1. Powers and Duties of Diversity and Inclusion. [Added 2-24-2016 by Ord. No. 16-026]

The Office of Diversity and Inclusion shall:

A. Be the central office for inter-departmental and community collaboration on issues to promote the protection and inclusion of all persons irrespective of race, color, religion, sex (including pregnancy or gender identity), national origin, age, disability, sexual orientation or other protected characteristic;

B. Be responsible for collecting and analyzing all data and other relevant information pertinent to the City's remedial hiring and purchasing efforts and for reviewing all requests for proposals (RFPs) prior to the publication of the RFP and the award of any contract, and all contacts, whether awarded by Council resolution or not, shall include an attestation that the Office of Diversity and Inclusion had reviewed the RFP prior to the award of the contract: **[Amended 8-14-2019 by Ord. No. 19-093]**

C. Maintain a database of minority and women-owned business enterprises:

D. Be responsible for reviewing the annual report of the Abatement and Compliance Officer and coordinating with the City's Employment and Training Office to ensure that developers hire minority and women-owned businesses from the City's minority and women-owned business database;

E. Organize training seminars for all eligible businesses on how they can become certified as minority and women-owned business enterprises;

F. Maintain a database of all contracts with minority and women-owned business enterprises organized by department as well as serve as the custodian of all research, information and data pertaining to the City's diversity and inclusion efforts;

G. Host a biannual workshop, in conjunction with the Division of Purchasing, on how minority and women business owners can become City vendors or service providers;

H. Create a webpage on the City's website providing access to the minority and women-owned business enterprises database. The page should also provide automatic notice to qualifying businesses of relevant opportunities and should allow other businesses to post opportunities. The website shall also feature career and contracting opportunities jobs with the City;

I. Initiate a public relations campaign to create awareness of the City's minority and women-owned business enterprise database, and the goals underlying it, to encourage all relevant businesses to sign up and use it when sourcing goods and services;

J. Review the monthly reports from the Director of Purchasing detailing how many of the goods and services procured that month by the City were to local, minority or women-owned businesses;

K Coordinate with the Compliance Office to ensure the following City goals:

(1) Work with developers to ensure that they utilize the minority and women-owned business enterprises database for subcontractors and goods;

(2) Monitor the activities of local minority and women contractors and subcontractors to determine if the targets established in Project Employment and Contracting Agreement (PECA) and Project Labor Agreement (PLA) have been achieved;

L. Engage in outreach efforts at local schools and institutions to cultivate relationships with local youth;

M. Undertake periodic demographic and salary audits of all City employees to determine if there are any pay equality issues;

N. Monitor its own outreach initiates to track how often each initiative is utilized in order to evaluate its effectiveness and collaborate with the Diversity and Inclusion Advisory Board to improve its efforts;

O. Issue an annual report to the Mayor detailing the activities of the Office of Diversity and Inclusion during the prior year and the status of ongoing and future initiatives;

P. Oversee, review, implement and update the Diversity and Inclusion strategic plan;

Q. Be the central coordination and oversight entity for the inter-departmental collaboration on issues impacting diversity;

R. Be the central coordination and oversight entity for the inter-departmental collaboration on issues impacting hiring;

S. Obtain data pertinent to the City's remedial hiring and purchasing efforts and updating the ODI website;

T. Oversee the periodic review and update of the disparity study, commonly known as the Croson Study.

§ 3-54.2. Bureaus under the Office of Diversity and Inclusion; heads. [Added 2-24-2016 by Ord. No. 16-026]

A. Bureau of Business Opportunity, Procurement and Training. There is hereby created the Bureau of Business Opportunity, Procurement and Training, the head of which shall be the Field Officer of Bureau of Business Opportunity, Procurement and Training. The Bureau of Business Opportunity, Procurement and Training shall assist the Chief Diversity and Inclusion Officer in the implementation of the Powers and Duties listed under Subsections D, E, G, J, K and M of Section 3-19.6 above, and shall assist in organizing job fairs and training programs.

B. Bureau of Community Resources & Services. There is hereby created the Bureau of Community Resources & Services, the head of which shall be the Field Officer of Bureau of Community Resources & Services. The Bureau of Community Resources & Services shall Assist the Chief of Diversity and Inclusion (ODI) in the implementation of Powers and Duties listed under Subsections C, F, H, I, and L of Section 3-19.6 above, and shall assist the Chief Diversity and Inclusion Officer as community liaison.

§ 3-55. Office of Utility Management. [Amended 2-23-1994 by Ord. No. 94-007; 8-13-1997 by Ord. No. 97-052]

There is hereby established the Office of Utility Management within the Department of Administration, the head of which shall be the Business Administrator to oversee the administration of the city's water utility function.

§ 3-56. Bureau of Innovation. [Added 10-25-17 by Ord. No. 17-141]

Within the Department of Administration there shall be a Bureau of Innovation.

§ 3-56.1. Powers and Duties of the Bureau of Innovation. [Added 10-25-17 by Ord. No. 17-141]

The Bureau of Innovation shall improve the City's quality of life by developing bold, forward-thinking, data-driven solutions for the most challenging and complex issues faced by the City.

Whenever possible the Bureau will cooperate with the various City Departments and autonomous agencies, members of the community and with outside funding sources, as appropriate.

The Bureau will provide such reports as requested by the Mayor and Business Administrator.

§ 3-57. (Reserved)

Editor's note—§ 3-57 was reserved 12-27-01 by Ord. No. 01-141.

§ 3-58. (Reserved)

Editor's note—§ 3-58 was reserved 12-27-01 by Ord. No. 01-141.

§ 3-59. (Reserved)

Editor's note—§ 3-59 was reserved 12-27-01 by Ord. No. 01-141.

§ 3-60. Division of Economic Opportunity created; head. [Amended 11-7-01 by Ord. No. 01-121]

There is hereby created under the Department of Administration a Division of Economic Opportunity, the head of which shall be the Director of Economic Opportunity.

§ 3-60.1. Duties of Director. [Added 11-7-01 by Ord. No. 01-121]

The Director of Economic Opportunity shall be responsible for the proper and efficient operation of the employment, training, job registry, and economic assistance functions of City government, shall act as liaison with

ultimate responsibility for arranging, entering into, or approving the redevelopment agreement, or for appointing those who enter into the agreement on behalf of the City of Jersey City, or any Jersey City or Hudson County political committee or political party committee, or any "PAC;"

(e) Engage or employ a lobbyist or consultant with the intent or understanding that such lobbyist or consultant would make or solicit any contribution, which if made or solicited by the redeveloper itself, would subject that entity to the restrictions of this section;

(f) Fund contributions made by third parties, including consultants, attorneys, family members, and employees;

(g) Engage in any exchange of contributions to circumvent the intent of this ordinance; or

(h) Directly or indirectly, through or by any other person or means, do any act which would subject that entity to the restrictions of this section.

(2) Furthermore, any redeveloper who violates (a) ii-viii shall be disqualified from eligibility for future Jersey City redevelopment agreements for a period of four (4) calendar years from the date of the violation.

G. Severability. If any provision of this section, or the application of any such provision to any person or circumstances, shall be held invalid, the remainder of this section to the extent it can be given effect, or the application of such provision to persons or circumstances other than those to which it is held invalid shall not be affected thereby, and to this extent the provisions of this section are severable. The drafters of this section, the persons signing the petition in support of this section, and the persons who cast votes in favor of the section, declare that they would have supported the section and each section, subsection, sentence, clause, phrase, or provision or application thereof, irrespective of the fact that any one (1) or more other sections, subsections, sentences, clauses, phrases, or provisions or applications thereof may be held invalid.

H. Repealer. All ordinances or parts of ordinances which are inconsistent with any provisions of this section are hereby repealed as to the extent of such inconsistencies.

I. Effective date. This section shall become effective twenty (20) days following the final adoption thereof by the Municipal Council of the City of Jersey City.

§ 3-51.3. Transitional Employment Period. [Added 7-18-2012 by Ord. No. 12-090]

A. The City shall give advance notice to a service contractor and any collective bargaining representative of the service contractor's employees that a service contract will be terminated, and the City shall also provide the name, address, and telephone number of the successor contractor or contractors where known. The terminated contractor shall, within five (5) days after receipt of such notice, provide to the successor contractor, the name, address, date of hire, and employment occupation classification of each employee employed at the site or sites covered by the service contract at the time of receiving said notice. If a successor contractor has not been identified by the City by the end of the five-day period, the terminated contractor shall provide the information to the City. At the same time that the

terminated contractor provides this information to the successor contractor or the City, the terminated contractor shall provide each affected employee with notice of his/her right to obtain employment with the successor contractor.

B. A successor contractor or subcontractor where applicable shall retain for a 90-day transitional employment period all employees who were employed by the terminated contractor and its subcontractors at the building(s) covered by the terminated contract.

C. If at any time the successor contractor determines that fewer employees are required to perform the new service contract than had been performing such services under the terminated contract the successor contractor shall retain the employees by seniority within job classification. Except for such layoffs, during the 90-day transition period, the successor contractor shall not discharge without cause an employee retained pursuant to this section. During the 90-day transition period, the successor contractor shall maintain a preferential hiring list of those employees not retained, from which the successor contractor or its subcontractors shall hire additional employees.

D. At the end of the 90-day transition employment period, the successor contractor shall perform a written performance evaluation for each employee retained pursuant to this section. If employee's performance during such 90-day period is satisfactory, the successor contractor or subcontractor shall offer the employee continued employment under the terms' and conditions established by the successor contractor or subcontractor or as required by law.

§ 3-51.4. Compliance. [Added 7-18-2012 by Ord. No. 12-090]

A. Compliance with this section shall be required in all City contracts to which it applies, and such contracts shall provide that violation of this section shall entitle the City to terminate the contract. In addition, failure to comply with these requirements may ban the contractor from holding contracts with the City for a period of three (3) years. Upon the City's request the contractor or subcontractor shall make all relevant records available to the City or its designee in order for the City to determine whether the contractor or subcontractor is in compliance with said requirements.

B. An employee displaced or terminated in violation of this section may bring an action in any court of competent jurisdiction against the terminated contractor and/or the successor contractor for violations pursuant to this section.

§§ 3-52, 3-52.1. Reserved.

Editor's note—Ord. No. 22-040, adopted April 27, 2022, amended the Code by repealing former §§ 3-52 and 3-52.1. Former § 3-52 pertained to the Office of Sustainability, and former § 3-52.1 pertained to powers and duties of the Office of Sustainability. Both sections were added by Ord. No. 17-137, adopted October 11, 2017.

§ 3-53. Division of Information Technology. [Amended 8-13-1997 by Ord. No. 97-052]

A. Creation of the Division of Information Technology; Director of Information Technology in charge. There is hereby created within the Department of Administration, the Division of Information Technology, the head of which shall be the Director of Information Technology. The Director of Information Technology shall be a person qualified by training and experience in the installment and operation of governmental or private computer systems.

B. Division of Information Technology; function. The Division of Information Technology shall:

(1) Be responsible for developing, maintaining and operating a centralized computer processing facility to service all City departments and agencies.

(2) Counsel and assist all City departments and agencies in the development and installation of computerized systems programs.

(3) Establish controls and procedures to safeguard computer equipment, files, tapes, disks and all other pertinent materials.

(4) Provide for the design, implementation and maintenance of telecommunications.

(5) Provide for the coordination and cooperation between the City of Jersey City and any agent or company providing communications service to the City.

(6) Advise the City relative to the adoption of new services and/or techniques in the field of communications.

(7) Provide cooperation and coordination among the communication services of the various branches of City government.

§ 3-54. Office of Diversity and Inclusion; heads. [Added 2-24-2016 by Ord. No. 16-026]

A. There is hereby created within the Office of the Department of Administration an Office of Diversity and Inclusion. The head of the Office shall be the Chief Diversity and Inclusion Officer. There shall also be a Deputy Chief Diversity and Inclusion Officer, who shall assist the Chief in the management of the Office and assume the duties and responsibilities of the Chief in his or her absence.

B. Should the Mayor by executive order establish an advisory board for either lesbian, gay, bisexual and transgender (LGBT) or diversity and inclusion matters, the Office of Diversity and Inclusion shall consider its advice and recommendations.

§ 3-54.1. Powers and duties of Diversity and Inclusion. [Added 2-24-2016 by Ord. No. 16-026]

The Office of Diversity and Inclusion shall:

A. Be the central office for inter-departmental and community collaboration on issues to promote the protection and inclusion of all persons irrespective of race, color, religion, sex (including pregnancy or gender identity), national origin, age, disability, sexual orientation or other protected characteristic;

B. Be responsible for collecting and analyzing all data and other relevant information pertinent to the City's remedial hiring and purchasing efforts and for reviewing all requests for proposals (RFPs) prior to the publication of the RFP and the award of any contract, and all contacts, whether awarded by Council resolution or not, shall include an attestation that the Office of Diversity and Inclusion had reviewed the RFP prior to the award of the contract: **[Amended 8-14-2019 by Ord. No. 19-093]**

C. Maintain a database of minority and women-owned business enterprises:

D. Be responsible for reviewing the annual report of the Abatement and Compliance Officer and coordinating with the City's Employment and Training Office to ensure that developers hire minority and women-owned businesses from the City's minority and women-owned business database;

E. Organize training seminars for all eligible businesses on how they can become certified as minority and women-owned business enterprises;

F. Maintain a database of all contracts with minority and women-owned business enterprises organized by department as well as serve as the custodian of all research, information and data pertaining to the City's diversity and inclusion efforts;

G. Host a biannual workshop, in conjunction with the Division of Purchasing, on how minority and women business owners can become City vendors or service providers;

H. Create a webpage on the City's website providing access to the minority and women-owned business enterprises database. The page should also provide automatic notice to qualifying businesses of relevant opportunities and should allow other businesses to post opportunities. The website shall also feature career and contracting opportunities jobs with the City;

I. Initiate a public relations campaign to create awareness of the City's minority and women-owned business enterprise database, and the goals underlying it, to encourage all relevant businesses to sign up and use it when sourcing goods and services;

J. Review the monthly reports from the Director of Purchasing detailing how many of the goods and services procured that month by the City were to local, minority or women-owned businesses;

K Coordinate with the Compliance Office to ensure the following City goals:

(1) Work with developers to ensure that they utilize the minority and women-owned business enterprises database for subcontractors and goods;

(2) Monitor the activities of local minority and women contractors and subcontractors to determine if the targets established in Project Employment and Contracting Agreement (PECA) and Project Labor Agreement (PLA) have been achieved;

L. Engage in outreach efforts at local schools and institutions to cultivate relationships with local youth;

M. Undertake periodic demographic and salary audits of all City employees to determine if there are any pay equality issues;

N. Monitor its own outreach initiates to track how often each initiative is utilized in order to evaluate its effectiveness and collaborate with the Diversity and Inclusion Advisory Board to improve its efforts;

O. Issue an annual report to the Mayor detailing the activities of the Office of Diversity and Inclusion during the prior year and the status of ongoing and future initiatives;

P. Oversee, review, implement and update the Diversity and Inclusion strategic plan;

Q. Be the central coordination and oversight entity for the inter-departmental collaboration on issues impacting diversity;

R. Be the central coordination and oversight entity for the inter-departmental collaboration on issues impacting hiring;

S. Obtain data pertinent to the City's remedial hiring and purchasing efforts and updating the ODI website;

T. Oversee the periodic review and update of the disparity study, commonly known as the Croson Study.

§ 3-54.2. Bureaus under the Office of Diversity and Inclusion; heads. [Added 2-24-2016 by Ord. No. 16-026]

A. Bureau of Business Opportunity, Procurement and Training. There is hereby created the Bureau of Business Opportunity, Procurement and Training, the head of which shall be the Field Officer of Bureau of Business Opportunity, Procurement and Training. The Bureau of Business Opportunity, Procurement and Training shall assist the Chief Diversity and Inclusion Officer in the implementation of the Powers and Duties listed under Subsections D, E, G, J, K and M of Section 3-19.6 above, and shall assist in organizing job fairs and training programs.

B. Bureau of Community Resources & Services. There is hereby created the Bureau of Community Resources & Services, the head of which shall be the Field Officer of Bureau of Community Resources & Services. The Bureau of Community Resources & Services shall Assist the Chief of Diversity and Inclusion (ODI) in the implementation of Powers and Duties listed under Subsections C, F, H, I, and L of Section 3-19.6 above, and shall assist the Chief Diversity and Inclusion Officer as community liaison.

§ 3-54.3. Supervision of procurement; Minority-, Women-, Veteran-, LGBT-, and Disability-Owned Business Enterprises. [Added 6-16-2021 by Ord. No. 21-039]

A. With respect to all contracts and procurements, the Director of the Office of Diversity and Inclusion, under the supervision of the Business Administrator shall:

1) Ensure, through the certification and procedure herein provided, that businesses taking advantage of the City's policy on procurement of Minority-, Women-, Veteran-, LGBT-, and Disability-owned business enterprises ("M/W/V/LGBT/D BE") are legitimate Minority -, Women-, Veteran-, LGBT-, and Disability-owned business enterprises.

2) Maintain a listing of all qualified M/W/V/LGBT/D BE, or all credentials or certifications that a purchasing agent may accept in lieu of registration, for referral by the City departments and the purchasing agent.

3) Submit quarterly reports to the Business Administrator to document the percentage of contracts which have been awarded to the M/W/V/LGBT/D BE.

4) Have access to all records and files of all City departments, which relate to construction, service and procurement contracts, in order to monitor and review compliance.

5) Submit by July 31 of each year a written annual report to the Business Administrator containing such findings, recommendations and proposals as are necessary and appropriate to the actions taken by the City administration and its individual departments to meet the requirements set forth in this section.

6) Ascertain, with the assistance of the purchasing agent, the identity of qualified M/W/V/LGBT/D BE business enterprises.

7) Classify each business according to contract types in which the business represents itself to have capabilities, place all businesses on a solicitation list and distribute the list to City departments and the purchasing agent. Such solicitation shall be filed with the City Clerk for public review.

8) Survey all businesses placed on the solicitation list to determine their past and current participation level in the administration's required efforts to meet the standards as established in this section.

B. If the Director of the Office of Diversity and Inclusion determines that the requirements set forth in this section are not being met, he or she may recommend to the Business Administrator such revisions to the City's plan designed to provide additional opportunities for M/W/V/LGBT/D BE participation, including but not limited to any or all of the following actions:

1) Elimination of extended experience or capitalization requirements, when programmatically feasible, to permit more extensive participation of M/W/V BE in obtaining City contracts; and

2) Publication of advertisements for bids in more than one newspaper, or in minority-oriented newspapers.

§ 3-55. Office of Utility Management. [Amended 2-23-1994 by Ord. No. 94-007; 8-13-1997 by Ord. No. 97-052]

There is hereby established the Office of Utility Management within the Department of Administration, the head of which shall be the Business Administrator to oversee the administration of the City's water utility function.

§§ 3-56, 3-56.1. Reserved.

Editor's note—Ord. No. 22-040, adopted April 27, 2022, amended the Code by repealing former §§ 3-56 and 3-56.1. Former § 3-56 pertained to the Bureau of Innovation, and former § 3-56.1 pertained to powers and duties of the Bureau of Innovation. Both sections were added by Ord. No. 17-141, adopted October 25, 2017.

§§ 3-57—3-59. Reserved.

Editor's note—§§ 3-57—3-59 were reserved December 27, 2001 by Ord. No. 01-141.

§ 3-60. Division of Economic Opportunity created; head. [Amended 11-7-01 by Ord. No. 01-121]

There is hereby created under the Department of Administration a Division of Economic Opportunity, the head of which shall be the Director of Economic Opportunity.

§ 3-60.1. Duties of Director. [Added 11-7-01 by Ord. No. 01-121]

The Director of Economic Opportunity shall be responsible for the proper and efficient operation of the employment, training, job registry, and economic assistance functions of City government, shall act as liaison with the Jersey City Office of Employment and Training, and shall develop, implement and coordinate programs and policies to improve the availability of jobs and economic opportunities to City residents. The Division of Economic Opportunity shall consist of the following Offices:

A. Division of Economic Assistance;

B. Division of Equal Opportunity.

§ 3-60.2. Division of Economic Opportunity. [Added 11-7-01 by Ord. No. 01-121]

A. Creation of the Division of Economic Opportunity; Director of the Division of Economic Opportunity in charge. There is hereby created in the Department of Administration the Division of Economic Opportunity, the head of which shall be the Director of the Division of Economic Opportunity.

B. Division of Economic Opportunity; functions. The Division of Economic Opportunity, under the supervision of the Business Administrator, shall administer the proper and efficient operation of the employment, training, job registry, and economic assistance functions of City government, shall act as liaison with the Jersey City Office of Employment and Training, and shall develop, implement and coordinate programs and policies to improve the availability of jobs and economic opportunities to City residents. The Division of Economic Opportunity shall consist of the following Offices:

(1) Office of Economic Assistance;

(a) Creation of the Office of Economic Assistance; Director of Economic Assistance in charge; abolition of the Local Assistance Board; abolition of terms of office of members of the Local Assistance Board.

(b) There is hereby created within the Division of Economic Opportunity, the Office of Economic Assistance, the head of which shall be the Director of Economic Assistance. The Office of Economic Assistance shall have all of the powers and duties formerly assigned to the Local Assistance Board.

(c) The Jersey City Local Assistance Board is abolished and all of its powers and duties under state law and regulations are transferred to the Office of Economic Assistance within the Department of Administration.

(d) The terms of all present members of the Local Assistance Board are abolished and all appointments are rescinded.

(e) Office of Economic Assistance; functions. Under the supervision and direction of the Director of the Division of Economic Opportunity, the Office of Economic Assistance shall:

(A) Provide financial assistance and medical care to all eligible persons resident within the City of Jersey City in accordance with the General Public Assistance Law (N.J.S.A. 44:8-112 et seq.) and the regulations adopted by the New Jersey Department of Human Resources.

(B) Provide related social services, such as domestic relations counseling, investigation of paternity cases, indigent burials and other public economic assistance activities.

(C) Cooperate with other public agencies and with voluntary agencies in the certification of medically indigent patients for care and treatment.

C. Office of Equal Opportunity; **[Amended 6-16-2021 by Ord. No. 21-039]**

(1) Statement of policy.

(a) It is the policy of the City of Jersey City to promote and encourage respect, harmony and cooperation among all of the ethnic, national, racial, cultural and religious groups which make up the population of this City; to provide for equal opportunity and fair treatment for all; and to vigorously enforce all federal, state and local laws, regulations and policies to assure nondiscrimination and equal opportunity for its residents, businesses, workers and others, regardless of gender, race, national origin, age, disability or religion.

(b) The governing body has determined that the consolidation and unification of all City functions related to the overall policy of equal opportunity and nondiscrimination will improve the quality and efficiency of services and facilitate compliance with federal, state and local laws, regulations and public policy with respect to equal opportunity and disability, as well as activities and programs designed to promote respect, understanding, harmony and cooperation among the various cultural, national and ethnic groups comprising the population of Jersey City.

(c) Cooperation of City departments and agencies. All departments and agencies shall cooperate with the work of the Division of Equal Opportunity to the degree possible permitted by law.

(2) Office of Equal Opportunity; Director in charge; functions of the Office.

(a) There is hereby established within the Department of Administration, the Office of Equal Opportunity, the head of which shall be the Director of the Office of Equal Opportunity. The Director prior to appointment shall have at least four (4) years experience in managing equal opportunity, nondiscrimination, affirmative action-type programs.

(b) The Office shall be responsible for all programs of implementation and enforcement of public policy and local, state and federal laws with respect to nondiscrimination, equal opportunity, affirmative action, including specifically but not limited to:

[1] The City's Affirmative Action Plan.

[2] Implementation of Affirmative Action in Public Contracting, pursuant to N.J.S.A. 10:5-31 et seq. and N.J.A.C. 17:27.

[3] Minority and Women Business Enterprise Development Program.

[4] The Human Rights Commission.

[5] Prepare and produce a publication to help further the goals of the Office and its various programs.

[6] Monitor the implementation of affirmative action goals City-wide.

[7] Provide and develop programs for recruitment, selection and training for protected classes.

[8] Maintain liaison with federal and state authorities engaged in the enforcement of equal employment opportunity laws and regulations, concerning non-municipal hiring.

[9] Maintain a working liaison with equal employment opportunity program representatives of federal and state agencies to ensure compliance with the law.

[10] Prepare clear, technically sound, accurate and detailed reports containing findings, conclusions and recommendations.

(c) Additional statement of policy.

[1] Minority- and women-owned businesses have received only a minute share of contracts for goods and services awarded by the City of Jersey City.

[2] A review of past and recent contracts awarded by the City discloses a disparity between the number of minority- and women-owned businesses operating in the community and in the larger geographical area where vendors/contractors who do business with the City are located, and the number of minority- and women-owned businesses receiving public contracts.

[3] In addition to other impediments, difficulties in financing and bonding have kept minority- and women-owned businesses from participating in public contracting in Jersey City.

[4] This lack of participation in public contracting by minority- and women-owned businesses has deprived minorities of employment opportunities.

[5] The City of Jersey City is committed to a policy of equal opportunity for minorities and women and has, therefor, adopted the ordinance codified in this section to address the imbalance between the number of minority- and women-owned businesses in the community and their participation in government contracting and to remedy the history of discrimination against minorities and women in this area.

[6] The minority and women-owned contracting goals established by this section attempt to overcome the effects of discrimination against minority and women-owned business in public contracting opportunities.

(d) Definitions. As used in this section, the following terms shall have the meanings indicated:

CONTROL—Authority over the affairs of a business, including but not limited to capital investment, property acquisition, employee hiring, contract negotiations, legal matters, officer and Director selection, operating responsibility, financial transactions and the rights of other shareholders or joint partners; except that "control" shall not include absentee ownership, nor shall it be deemed to exist where an owner or employee who is not a minority group member in the case of a minority business, or a male owner or employee in the case of a women's business, is disproportionately responsible for the operation of the business or for policy and contractual decisions. "Control" will also not be deemed to exist where minority group members or women are not reasonably judged to be in control of that business.

MINORITY GROUP MEMBERS, QUALIFIED WOMEN BUSINESS ENTERPRISE (WBE), QUALIFIED MINORITY BUSINESS ENTERPRISE (MBE), SET-ASIDE CONTRACTS, and TOTAL PROCUREMENTS—In accordance with P.L. 1985, c. 482 (Chapter 482) and subsequent amendments and supplements thereto.

(e)—(h) Reserved.

(i) Procedures and guidelines; regulations; adjustment of goals; bonding; maintenance of contracts; recommendation of amendments to section. The City of Jersey City shall from time to time:

[1] Establish procedures and guidelines for the implementation of the goals and programs established pursuant to this section.

[2] Recommend regulations to determine whether minority and women business enterprises will be eligible for certification under this section.

[3] Review procurement plans and recommend, if it deems appropriate, which contracts or parts thereof shall be reserved from programs established under this section.

[4] Consider requests for adjustment of goals in particular instances, provided that any such change shall be accompanied by any supporting data required by law.

[5] Subject to law, recommend waiver of bonding.

[6] Recommend subdividing a contract into smaller parts if such subdivisions are necessary to achieve the purposes of this section.

[7] Maintain contacts with the business community (financial institutions and bonding companies) and elicit cooperation for economic development for Jersey City.

[8] Review minority and women contracting problems and make further recommendations that increase minority and women contractors' participation with the Jersey City government. Such recommendations shall include, but not be limited to, improved schedules that ensure prompt payment to contractors, special geographic radii requirements on certain

contracts, innovative contract advertising procedures, the encouragement of joint ventures and advising the Mayor on methods to be utilized to assure minority participation.

[9] Review and determine the continued eligibility of contractors certified as minority or women-owned business enterprises.

(j) Responsibilities of the Director of the Office of Economic Opportunity in the implementation of the MBE/WBE program. In the implementation of Jersey City's MBE/WBE program and pursuant to the provisions of N.J.S.A. 40A:11-41 et seq., the Director of the Office of Economic Opportunity shall have the following duties and responsibilities:

[1] To make a good-faith effort to attain the goals established by the City of Jersey City pursuant to this program.

[2] To make available to the Business Administrator and his/her designees all records and documents necessary for implementation and monitoring of the MWBE program.

[3] To send bid packages to minority- and women-owned businesses as requested by the Business Administrator.

(k) Responsibility of Department Directors in the implementation of the MBE/WBE program. In the implementation of Jersey City's MBE/WBE program, and pursuant to the provisions of N.J.S.A. 40A:11-41 et seq., the City department heads shall have the following duties and responsibilities:

[1] When requested, to furnish information, assistance and reports to, and shall otherwise cooperate with, the program and the Purchasing Agent in the furtherance of this program.

[2] To designate a deputy or other similar official to have primary and continuing responsibility for the participation and cooperation of that department with the MWBED program and the Purchasing Agent as relates to the implementation of this set-aside program and for assuring the appropriate utilization of MBE/WBE's by that department.

(l) Affirmative Action Advisory Council. There is hereby established an Affirmative Action Advisory Council of the City of Jersey City with the powers and duties hereinafter provided.

[1] The Affirmative Action Advisory Council shall consist of nine (9) members. Five (5) members of the nine (9) members first appointed shall serve terms of two (2) years and four (4) members terms of one (1) year. Thereafter, all members appointed shall serve terms of two (2) years.

[2] Members of the Affirmative Action Advisory Council shall be appointed by the Mayor with the advice and consent of City Council. The Mayor shall make every effort to include as part of the Administrative Action Advisory Council representation from organized labor, contractors' associations, government and the minority community. The Mayor and Council shall appoint individuals to the Council who are committed to the purposes which this section seeks to advance.

[3] Members of the Affirmative Action Advisory Council may be removed for nonperformance or neglect of duties or for other good cause by the Mayor with the concurrence of the majority of the Council.

[4] Members of the Affirmative Action Advisory Council shall serve without compensation.

[5] Vacancies in the Affirmative Action Advisory Council, for whatever reason, shall be filled in the manner provided for new appointments.

(m) Powers and duties of Affirmative Action Council. The powers and duties of the Affirmative Action Advisory Council shall include the following:

[1] Review contractors' work force reports and other documents to evaluate compliance with N.J.A.C. 17:27-1.1 et seq. and any approved affirmative action construction program established by the City of Jersey City.

[2] Review corrective action taken with respect to contractors not in compliance with Affirmative Action Regulations.

[3] Advise and assist the Director of the Office of Equal Opportunity in the preparation of a construction affirmative action program for submission to the Mayor and City Council and the Division of Treasury pursuant to N.J.A.C. 17:27-6.5 for designation as a state approved construction affirmative action program.

[4] Promote understanding of the goals, purposes and progress of the affirmative action in public contracting program by disseminating information to the public and to various groups, including minority organizations, women's organizations, labor and community groups.

[5] Promote employment opportunities for minorities, women and local residents in public construction projects and development projects in the City of Jersey City.

[6] Advise the Mayor and Council as to training programs required to prepare minority and female workers and Jersey City residents for jobs in the construction industry.

[7] Prepare an annual report and recommendations to the City Council on the progress of an approved construction affirmative action program.

(n) Human Rights Commission.

[1] Creation of the Jersey City Human Rights Commission. There is hereby created the Jersey City Human Rights Commission to exercise the powers and functions as set forth herein.

[2] Commission; membership; term; officers. The Human Rights Commission shall consist of seventeen members to be appointed by the Mayor commencing with the initial appointments, five members for a term of one year; five members for a term of two years; and five members for a term of three years; and with two members whose initial term shall expire on January 31, 1985; and they shall serve until their successors shall be appointed and qualified. Thereafter, all new members shall be appointed for a term of three years. All appointments to fill vacancies shall be for the unexpired term of such vacancy. Members of the Commission shall annually select from among their membership a Chairman, one or more Vice Chairmen and a Secretary.

[3] Human Rights Commission; functions.

[a] Under the direction and supervision of the Business Administrator and the Director of the Division of Equal Opportunity, the Human Rights Commission shall:

1. Foster mutual understanding and respect among all racial, religious and ethnic groups in the City.

2. Promote programs designed to discourage discriminatory practices.

3. Cooperate with all appropriate governmental and private agencies and organizations designed to foster a spirit of racial, ethnic and religious harmony.

4. Make such studies in any field of human relationships which will aid in effectuating its general purposes.

5. Attempt to foster, through community effort, goodwill, cooperation and conciliation among the groups and elements of the inhabitants of the community.

6. Formulate and carry out educational programs that will aid in eliminating and preventing all types of discrimination based on race, creed, national origin and/or ancestry.

7 Enlist the cooperation of the various racial, religious and ethnic groups in the community, civil organizations, fraternal and benevolent associations, veterans organizations and other groups in educational campaigns and programs devoted to teaching the need for eliminating group tensions, prejudices, intolerance, bigotry and discrimination and breach of the peace and disorder occasioned thereby.

8. Cooperate with federal, state and local agencies in developing programs showing the contributions of the various races, religious and ethnic groups to the culture and traditions of our City and nation, the menace of prejudice, intolerance, bigotry and discrimination and the need for mutual self-respect.

9. Make recommendations to the governing body for the development of policies and procedures in general and for the programs of formal and informal education that will aid in eliminating all types of discrimination based on race, creed, national origin and/or ancestry and disability.

10. Recommend to the governing body legislation to aid in carrying out the purposes of this section.

[b] The Human Rights Commission shall have the following functions, powers and duties in addition to those provided otherwise by law:

1. To adopt, promulgate, amend and rescind suitable regulations to carry out the provisions of this section, provided that such rules and regulations shall be approved by the Municipal Council and, upon approval, filed with the City Clerk.

2. To receive and investigate complaints alleging violations of the provisions of this section.

3. To hold conferences and conduct investigations and for this purpose to call upon City officials and employees and other bodies to assist the Commission in enforcing the provisions of this section.

D. Human Rights Commission; powers, Equal Opportunity Director; duties.

(1) The Division of Equal Opportunity shall serve as staff to the Human Rights Commission.

(2) Under direction of the Business Administrator, the Director of Equal Opportunity shall:

(a) Be responsible for the implementation of the purposes of this section and shall have such further administrative responsibilities as assigned by the Business Administrator.

(b) Plan and organize meetings of the Human Rights Commission and maintain a calendar of the same.

(c) Organize and plan projects, conferences, action programs, institutes and leadership conferences to carry out the provisions of this section and to make recommendations to the Human Rights Commission and the Mayor for program activities.

(d) Prepare, organize and conduct statically sound research studies, surveys and inquiries on intergroup relations, changing neighborhoods and community resources with special emphasis on private housing and the aspects of prejudice and discrimination which are a threat to the peace and welfare of the community.

(e) Maintain a continual liaison with community groups, religious and civic organization, human relations agencies and individuals to render the services of the Human Rights Commission and involve such individuals and groups in the programs of the Commission to the degree possible.

(f) Cooperate and work with City agencies and other organizations which function in the field of housing.

(g) Keep abreast of the most recent surveys, studies, projects and techniques in housing and all other fields of human relations which can be applied in the City to effect the purposes of this section.

(h) Carry a program of education and related activities to promote peace and harmony within the neighborhoods of this City to reduce prejudice and discrimination.

(i) Maintain records, prepare reports and make recommendations to the Human Rights Commission and the Business Administrator and Mayor based upon such surveys and reports.

E. Human Rights Commission; budget. For the purposes of effectuation of the goals of this section, the Human Rights Commission shall have such clerical and technical assistance, materials, supplies and provisions for such other costs and expenses of the Commission as shall annually be budgeted by the Business Administrator.

§§ 3-60.3—30-60.8. Reserved.

Editor's note—Ord. No. 19-105, adopted September 11, 2019, amended the Code by repealing former § 3-60.3, which pertained to the Office of Risk Management, and derived from Ord. Non. 01-121, adopted November 7, 2001. Ord. No. 19-088, adopted July 17, 2019, amended the Code by repealing former §§ 3-60.4—3-60.6. Former § 3-60.4 pertained to the Division of Collections, § 3-60.5 pertained to the Division of Treasury and Debt Management, and § 3-60.6 pertained to the Division of Accounts and Control. All three sections derived from Ord. No. 08-092, adopted June 25, 2008. Ord. No. 13-081, adopted September 11, 2013, amended the Code by repealing former §§ 3-60.7 and 3-60.8. Former § 3-60.7 pertained to the Division of Pension, and § 3-60.8 pertained to the Division of Payroll. Both sections derived from Ord. No. 08-092, adopted June 25, 2008.

§ 3-60.9. Division of Internal Audit. [Added 6-25-2008 by Ord. No. 08-092; amended 9-10-2020 by Ord. 20-065]

A. Creation of the Division of Internal Audit. There is hereby created within the Department of Administration the Division of Internal Audit.

B. Division of Internal Audit functions. **[Amended 11-9-2016 by Ord. No. 16-172]**

(1) The Division of Internal Audit shall review and audit all operations, procedures and functions within the entirety of the municipal government to maximize operational efficiency and revenue collections, to minimize excess spending and resource allocations, and to ensure that the City provides the highest quality services. In furtherance of these functions and purposes the Division is hereby authorized to conduct an independent audit of the books and records of all administrative units of the City, independent agencies and other persons and organizations receiving moneys from the City directly or from grants by the federal or state governments. Independent agencies shall include, but not limited to, the following:

(a) The Bureau of Licenses.

(b) The Board of Adjustment.

(c) The Jersey City Board of Education.

(d) The Jersey City Housing Authority.

(e) The Jersey City Free Public Library.

(f) Public Agency Compliance Office (PACO).

(g) The Planning Board.

(h) The Jersey City Redevelopment Agency.

(i) Jersey City Municipal Utilities Authority.

(j) Jersey City Employment and Training Program.

(k) Jersey City Economic Development Corporation.

(2) Such audits of the aforesaid organizations and administrative units shall be conducted at the discretion of the Business Administrator.

(3) Upon the completion of each audit the Division of Internal Audit shall furnish a copy to the Municipal Council, Business Administrator and to the unit which is the subject of the audit.

s; 3-60.10. Office of Tax Abatement Management. [Added 6-25-2008 by Ord. No. 08-092]

There is hereby established under the Department of Administration the Office of Tax Abatement Management, the head of which shall be the Director of Tax Abatement Management.

§ 3-60.11. Office of Tax Abatement Management functions. [Added 6-25-2008 by Ord. No. 08-092]

A. Maintain in one place and ensure the security of all of the records, papers and submissions that pertain to all tax abatement and exemption financial agreements.

B. Monitor and ensure compliance with the terms of all tax abatement and exemption financial agreements following approval by the Municipal Council.

C. Insure the timely submission and payment of quarterly service charge bills with applicable arrearages and interest and insure full compliance with the terms and conditions contained within the city's tax abatement and exemption financial agreements by conducting periodic audits.

D. Make recommendations, in conjunction with the Corporation Counsel and the Business Administrator, to standardize certain financial agreement terminology and provisions and to propose any needed changes in State legislation.

E. Coordinate and liaison, as needed, with the Mayor, the Municipal Council, the Corporation Counsel and all city departments, in the tax abatement and exemption process.

F. Act as a liaison with the Business Administrator and the City Council to review and analyze the financial ramifications of each tax abatement and exemption financial agreement.

G. Supervise a staff of internal auditors, accountants, and other employees to achieve all of the above functions.

ARTICLE VII
Fiscal Year*

§ 3-61. Fiscal year established. [Added 8-4-2010 by Ord. No. 10-089]

Pursuant to N.J.S.A. 40A:4-3.1 et seq., the City of Jersey City may commence operating on a Calendar Fiscal Year beginning with Calendar Year 2011.

ARTICLE VIII
Office of Assessments

[Amended 11-27-1985 by Ord. No. C-48; 12-10-1987 by Ord. No. C-637; 9-13-1989 by Ord. No. McC-8; 9-13-1989 by Ord. No. McC-9; 6-14-1995 by Ord. No. 95-050]

§ 3-62. Office created; head.

There is hereby created an Office of Assessments, the head of which shall be the City Assessor. The City Assessor shall be a person qualified under Chapter 44, Laws of 1967, as amended and supplemented.*

*** Editor's Note: See N.J.S.A. 54:135.25.**

§ 3-63. Powers and duties.

The Office of Assessments shall:

A. Value all real and personal property in the city for the purposes of assessment and taxation in accordance with general law, the Charter and applicable provisions of the Jersey City Code and exercise all the powers of a municipal assessor pursuant to law.

B. Prepare the tax list and duplicate, as required by law, and maintain adequate assessment records of each and every parcel of real property assessed.

C. Maintain a current city Tax Map and provide for the recording thereon of all changes in ownership or character of real property assessed.

D. Make all special assessments of benefits for local improvements.

***Editor's note**—Former Art. VII, Department of Finance, consisting of §§ 3-61 through 3-61.10, adopted September 8, 1981 by Ord. No. MC-14, was repealed June 25, 2008 by Ord. No. 08-092. Subsequently, a new Art. VII was added at the discretion of the editor.

E. Be responsible for all appraisals of property for any City purpose; provided that the office may, with the approval of the Mayor and within the limits of available appropriations, retain outside experts or appraisers whenever the public interest requires.

F. Designate house numbers as provided in Chapter 108, Buildings, Numbering of. **[Added 4-9-2008 by Ord. No. 08-042]**

§ 3-64. Inspectors.

For the purpose of enforcing its responsibilities under this Article, the Tax Assessor may request the assistance and assistance shall be extended by all appropriate inspection services of the City concerned with the inspection of properties under this Code.

A. For the purpose of this section, all inspectors assigned to inspect the properties owned by the City or coming within the jurisdiction of the Office of the Tax Assessor shall work under the supervision of the Tax Assessor as to these properties.

B. There shall be four inspectors employed in the Office of the Tax Assessor whose duties shall be the inspection of City-owned tax title lien properties and other duties assigned by the Office of the Tax Assessor.

§ 3-65. Fees; requests for information.

The fee for documents maintained by the Office of the Tax Assessor shall be as provided in Chapter 160, Fees and Charges, for documents requested in person at the office of the Tax Assessor during regular business hours. The fee for documents requested in writing shall be as provided in Chapter 160, Fees and Charges, which shall include the fee for postage and handling. No information shall be provided by telephone. All requests for information shall be made either in person during regular business hours or in writing.

ARTICLE IX
Department of Public Works

§ 3-66. Department created; head. [Amended 4-13-2016 by Ord. No. 16-059; 9-25-2019 by Ord. No. 19-125]

There shall be a Department of Public Works, the head of which shall be the Director of Public Works. The Department of Public Works shall be responsible for all public works functions undertaken by the City of Jersey City and shall in addition:

A. Supervise the City mail room;

B. Provide for and supervise the City messenger service;

C. Provide security services for all public biddings owned, operated or occupied by the City of Jersey City;

D. Administer the Jersey City Clean Communities Program.

§ 3-67. Duties of Director; divisions. [Amended 6-28-1982 by Ord. No. MC-195; 11-8-1989 by McC-53; 1-10-1990 by Ord. No. McC-80; 1-24-1990 by Ord. No. McC-98; 12-19-1990 by Ord. No. McC-227; 9-8-1993 by Ord. No. 93-097; 9-14-1994 by Ord. No. 94-87; 6-9-2010 by Ord. No. 10-072; 9-11-2013 by Ord. No. 13-081; 7-17-2014 by Ord. No. 14-081]

A. The Director shall be responsible for the proper and efficient conduct of all public works functions of the City government and shall provide technical advice and service to other departments as needed. The Director shall serve as City liaison with the Jersey City Municipal Utilities Authority. Within the Department shall be the following divisions: **[Amended 4-27-2022 by Ord. No. 22-040]**

A. Division of Automotive Maintenance;

B. Division of Buildings and Street Maintenance;

C. Division of Administrative Services;

D. Division of Neighborhood Improvement;

E. Division of Automobile Impounding;

F. Division of Demolition;

G. Division of Solid Waste Recycling;

H. Division of Graffiti Removal;

I. Division of Sanitation;

J. Division of Forestry.

B. The Director of Public Works may appoint one or more Deputy Directors who shall be responsible for the supervision of one or more divisions as assigned by the Director of Public Works. **[Added 4-13-2016 by Ord. No. 16-059]**

§ 3-68. Division of Automotive Maintenance. [Amended 9-14-1994 by Ord. No. 94-87; 4-13-2016 by Ord. No. 16-059]*

A. Creation of the Division of Automotive Maintenance; Director of Automotive Maintenance in charge. There is hereby created within the Department of Public Works a Division of Automotive Maintenance, the head of which shall be the Deputy Director of Automotive Maintenance.

B. Division of Automotive Maintenance; functions. Under the direction and supervision of the Director of Public Works, the Division of Automotive Maintenance shall:

(1) Supervise the work done in all City garages or by contract for the storage, repair and maintenance of City-owned vehicles.

***Editor's note**—For statutory provisions relating to this topic, see N.J.S.A. 40:69A-13.

(2) Operate a garage or garages for the storage, servicing, repair and maintenance of all City-owned motor vehicles.

(3) Maintain individual vehicle records of mileage, costs of operation and maintenance and replacement schedules and charge all such costs to the using department under appropriate regulations by the Business Administrator.

(4) Operate a motor pool consisting of all motor vehicles, equipment and apparatus of the City and allocate the use of motor vehicles, equipment and apparatus to the departments of the City.

(5) Operate and maintain communication equipment and supervise radio repair work done by contract.

Editor's note—Ord. No. 16-059, adopted April 13, 2016, amended the Code by renumbering former §§ 3-69—3-71.3 as new §§ 3-68—3-70.2. Prior to this renumbering, Ord. No. 14-081, adopted July 17, 2014, amended the Code by repealing former § 3-68 in its entirety. Former § 3-68 pertained to the Division of Architecture, Engineering, Traffic and Transportation, and derived from Ord. No. 10-072, adopted June 9, 2010; Ord. No. 13-081, adopted September 11, 2013; and Ord. No. 14-017, adopted November 12, 2014. Also, Ord. No. 13-081, adopted September 11, 2013, amended the Code by repealing former § 3-68.1 in its entirety. Former § 3-68.1 pertained to the Division of Engineering, Traffic and Transportation, and derived from Ord. No. 10-072, adopted June 9, 2010.

§ 3-69. Division of Buildings and Street Maintenance; functions. [Amended 1-10-1990 by Ord. No. McC-80; 9-14-1994 by Ord. No. 94-87; 6-24-1998 by Ord. No. 98-082; 11-7-2001 by Ord. No. 01-121; 12-27-2001 by Ord. No. 01-141; 4-13-2016 by Ord. No. 16-059]

A. Creation of the Division of Buildings and Street Maintenance; Director of Buildings and Street Maintenance in charge. There is hereby created within the Department of Public Works a Division of Buildings and Street Maintenance, the head of which shall be the Director of Buildings and Street Maintenance.

B. Division of Buildings and Street Maintenance; functions.

(1) Under the supervision and direction of the Director of Public Works, the Division of Buildings and Street Maintenance shall:

(a) Erect barriers, ropes, lines, traffic cones and stanchions when necessary to control or regulate traffic emergencies, parades, crowds and gatherings.

(b) Construct, install, maintain and repair all traffic signs and traffic markings by all departments.

(c) Provide for the repair and maintenance of all public streets.

(2) Establish standards and procedures for the control, use and care of all City-owned equipment, materials and supplies in the custody of the Division.

(3) Supervise the performance of all contracts for public works related capital improvement projects and certify the amounts due and payable thereunder.

(4) Provide for the preparation of plans and specifications for the construction, repair, alteration and demolition of all City buildings and structures.

(5) Set standards for the construction, reconstruction and maintenance of all facilities in and/or on public lands and rights-of-way.

(6) Provide for custodial services for all public buildings owned and operated by the City of Jersey City.

Note—Former § 3-70. See editor's note, § 3-68.

§ 3-70. Division of Administrative Services. [Added 4-27-2022 by Ord. No. 22-040]

A. Creation of the Division of Administrative Services: There is hereby created within the Department of Public Works a Division of Administrative Services, the head of which shall be the Director of the Department of Public Works.

B. Under the direction and supervision of the Director of the Department of Public Works:

1. The Division shall operate as a project management branch, overseeing vendors, construction, maintenance and condition of City owned properties and construction sites.

2. The Division shall appoint managing personnel and/or project managers to oversee City construction sites and/or projects.

3. The Division shall act as a liaison between the State of New Jersey government and the City in regards to City owned construction sites, projects, buildings, and properties, including but not limited to: procurement, management, granting, and budgeting.

4. The Division shall manage the budget and finances for ongoing City construction project and/or City funded construction/maintenance projects.

Editor's note—Ord. No. 22-040, adopted April 27, 2022, amended the Code by repealing former § 3-70, and adding a new § 3-70. Former § 3-70 pertained to the Division of Park Maintenance, and derived from Ord. No. 98-082, adopted June 24, 1998; Ord. No. 02-008, adopted February 13, 2002; Ord. No. 11-001, adopted January 26, 2011; Ord. No. 15-026, adopted March 11, 2015; Ord. No. 16-059, adopted April 13, 2016; Ord. No. 17-044, adopted April 26, 2017.

§ 3-70.1. Division of Neighborhood Improvement. [Added 9-8-2004 by Ord. No. 04-087; amended 4-27-2005 by Ord. 05-045; 4-13-2016 by Ord. No. 16-059; 5-10-2017 by Ord. No. 17-054; 9-23-2020 by Ord. No. 20-074]

A. Creation of the Division of Neighborhood Improvement; Director of Division of Neighborhood Improvement in charge. There is hereby created within the Department of Public Works, the Division of Neighborhood Improvement, the head of which shall be the Director of the Division of Neighborhood Improvement.

B. Under the supervision of the Director of Public Works and of the Division, the Director of the Division of Neighborhood Improvement and employees designated by the Director of Public Works shall:

(1) Direct the daily operations of all aspects of the Neighborhood Improvement Districts program within an assigned Neighborhood Improvement District.

(2) Act as a resident liaison through scheduling and attending neighborhood meetings, soliciting input and program evaluation, soliciting service requests, producing work orders and monitoring City employee performance regarding said requests.

(3) Monitor any public works contracts specifically designed to enhance a particular Neighborhood Improvement District for timely and satisfactory performance on a scheduled and random basis.

(4) Secure abandoned properties.

C. Designated employees shall comply with the following requirements:

(1) All designated employees must be in good standing with respect to their employment with the City.

(2) All designated employees must be full-time employees with the City.

D. Graffiti removal services:

(1) Remove graffiti from municipal, commercial and residential dwellings;

(2) Provide all personnel needed to perform the services and purchase (and maintain in good repair) any capital equipment as is reasonably necessary to carry out its obligations:

(3) Maintain accurate records concerning the cost of labor and materials it expends in order to remove graffiti from each privately-owned residential dwelling and forward a statement of costs to the Tax Collector so as to enable the City to file a lien and seek reimbursement for such costs from the private owners. The owner of record shall be entitled to a written notice of the order to remove graffiti, which notice shall be delivered to the owner by certified and regular mail and provide for 90 days to remove the graffiti from the date the notice is sent. The notice shall contain a form to be utilized by the property owner to inform the City that the graffiti has been removed. The owner may object to the order of removal within 30 days of the date of the order. If the owner does not remove the graffiti, present the owner with an itemization of cost by certified mail and if unpaid, the governing body may assess the cost as a municipal lien, all in accordance with N.J.S.A. 40:48-2.59.

Note—Former § 3-71.2. See editor's note, § 3-68.

§ 3-70.2. Division of Sanitation. [Added 9-11-2013 by Ord. No. 13-081; 4-13-2016 by Ord. No. 16-059; 9-23-2020 by Ord. No. 20-074]

A. Creation of the Division of Sanitation, Director of Sanitation in charge. Functions. There is hereby created within the Department of Public Works a Division of Sanitation, the head of which shall be the Director of the Division of Sanitation. The Division of Sanitation shall perform the following functions:

B. Trash collection functions:

(1) Place and remove of public litter baskets and receptacles at locations to be designated by the Director of Public Works and the Business Administrator or his designee;

(2) Remove and dispose of refuse from public litter baskets and receptacles, and from City-owned lots and from within City-owned vacant buildings;

(3) Maintain accurate records concerning the cost of labor and materials it expends in order to remove refuse from each privately owned lot and forward a statement of costs to the Tax Collector so as to enable the City to file a lien and seek reimbursement for such costs from the private owners.

C. Demolition functions:

(1) Demolish buildings and structures as requested by the City's Construction Code Official and/or Director of Architecture, Engineering, Traffic and Transportation.

(2) Maintain accurate records concerning the cost of labor and materials expended in order to demolish each building and forward a statement of costs to the Tax Collector so as to enable the filing of a lien should reimbursement for such costs from the private owner, not be forthcoming.

(3) Conduct inspections and enforce demolition ordinances;

D. Street sweeping functions:

(1) Sweep and clean designated City streets by use of mechanical street sweeping equipment in accordance with the current City schedule and practice;

(2) Remove and dispose of refuse from streets and City-owned parking areas.

(3) Snow plowing, salt spreading and snow removal.

(4) Inspect and enforce removal and disposal of refuse and snow/ice removal ordinances;

E. Solid waste/recycling functions:

(1) Implement the existing solid waste, recycling program, concerning the collection and disposal of all materials generated within the City from any residential, commercial or residential property.

(2) Ensure compliance with applicable sections of the Jersey City Code and all state and county laws including but not limited to "The Solid Waste Management Act," N.J.S.A. 13:1E-1 et seq.; "The Recycling Enhancement Act," N.J.S.A. 13:1E-96.2 et seq.; and "New Jersey Statewide Mandatory Source Separation and Recycling Act." N.J.S.A. 13:1E-99.32 et seq.

Note—Former § 3-71.3. See editor's note, § 3-68.

§§ 3-71—3-71.3. Reserved.

§ 3-71.4. Division of Automobile Impounding. [Added 10-14-2015 by Ord. No. 15-104]

A. Creation of the Division of Automobile Impounding: Director in charge. There is hereby created within the Department of Public Works a Division of Automobile Impounding, the head of which shall be the Director of the Division of Automobile Impounding.

B. Division of Automobile Impounding: functions. Under the direction and supervision of the Director of the Department of Public Works, the Division of Automobile Impounding shall provide the following services:

(1) Oversee the towing of all vehicles, including abandoned vehicles, upon order of the Police (JCPD) and notify the Division of Motor Vehicles and the National Automobile Theft Bureau that possession was taken of the abandoned vehicle;

(2) Run data checks on vehicles and staff the on-site National Crime Index Communicator (NCIC) terminal for this purpose with civilian personnel. Such information includes the owner's name, address and other pertinent information needed by the Automobile Pound to properly notify the owner of record. JCPD shall also notify the National Insurance Crime Bureau (NICB) of all vehicles impounded by the JCPD;

(3) Release the vehicle upon presentation by the owner of a valid license, registration and insurance card to the JCPD;

(4) Retain copies of the Order of Impoundment for all vehicles impounded;

(5) Obtain motor vehicle background checks, prior to release of impounded vehicles and name, address and other pertinent information relating to all vehicles impounded. Such information is to be provided daily;

(6) Remove all visible personal property from impounded vehicles prior to being towed to the City Car Pound:

(7) Process the documentation necessary to allow a vehicle to be sold at auction;

(8) The Division of Automobile Impounding shall then send a letter by registered mail to the owner as identified by the data check as required by statute;

(9) As appropriate, the Division of Automobile Impounding shall make application for titles upon expiration of the statutory period. Each vehicle shall be classified, according to relevant standards and procedures set forth in N.J.S.A. 39:1 et seq. to be either:

(a) A junk title; or

(b) A renegotiable title.

(10) Prior to making this application, the Division of Automobile Impounding must notify the JCPD Scofflaw/Auto Squad Commander, in writing, that all statutory requirements have been met relating to the list of vehicles to be auctioned;

(11) The Division of Automobile Impounding shall cooperate with forfeiture claims;

(12) Conduct auctions in accordance with State Law;

(13) Collect fees generated by the impoundment, storage or auction or sale of vehicles:

(a) Any fees collected for the impoundment or storage of vehicles may be retained by the DPW to offset the costs of providing towing services and other related operation cost;

(b) Provide the Municipal Council with an annual financial statement prepared in accordance with generally accepted accounting principles, regarding all fees and income collected;

(c) Fees shall follow the uniform schedule of fees for involuntary tows as set forth in the Jersey City Municipal Code.

(14) Allow the JCPD to use four unclaimed vehicles per month as undercover cars.

§ 3-71.5. Division of Demolition. [Added 10-14-2015 by Ord. No. 15-104]

A. Creation of the Division of Demolition: Director in charge. There is hereby created within the Department of Public Works a Division of Demolition, the head of which shall be the Director of the Division of Demolition.

B. Division of Demolition: functions. Under the direction and supervision of the Director of the Department of Public Works, the Division of Demolition shall:

(1) Demolish buildings and structures as requested by the City's Construction Code Official and/or the Municipal Engineer:

(2) Maintain accurate records concerning the cost of labor and materials expended in order to demolish each building and forward a statement of costs to the Tax Collector so as to enable the filing of a lien should reimbursement for such costs from the private owner, not be forthcoming.

§ 3-71.6. Division of Solid Waste/Recycling. [Added 10-14-2015 by Ord. No. 15-104]

A. Creation of the Division of Solid Waste Recycling: Director in charge. There is hereby created within the Department of Public Works a Division of Solid Waste Recycling, the head of which shall be the Director of the Division of Solid Waste/Recycling.

B. Division of Solid Waste Recycling: functions. Under the direction and supervision of the Director of the Department of Public Works, the Division of Solid Waste/Recycling shall:

(1) Implement the existing Solid Waste Recycling Program, a copy of which is on file in the office of the City Clerk, concerning the collection and disposal of all materials generated within the City from any residential, commercial or municipal property.

§ 3-71.8. Division of Forestry. [Added 4-27-2022 by Ord. No. 22-040]

A. Creation of the Division of Forestry: There is hereby created within the Department of Public Works a Division of Forestry, the head of which shall be the Director of the Department of Public Works.

B. Under the direction and supervision of the Director of the Department of Public Works:

a. The Division of Forestry is responsible for the regular maintenance of street trees and trees within City parks as well as ensuring compliance with City forestry standards.

ARTICLE X

Department of Housing, Economic Development and Commerce

[Amended 10-27-1981 by Ord. No. MC-42; 7-22-1982 by Ord. No. MC-202; 9-27-1982 by Ord. No. MC-251; 4-12-1984 by Ord. No. MC-602; 6-13-1985 by Ord. No. MC-858; 9-26-1985 by Ord. No. MC-44; 9-26-1985 by Ord. No. C-421; 12-23-1985 by Ord. No. C-138; 1-9-1986 by Ord. No. C-142; 5-28-1987 by Ord. No. C-464; 12-23-1987 by Ord. No. C-644; 8-16-1989 by Ord. No. McC-3; 4-25-1990 by Ord. No. McC-127; 11-20-1990 by Ord. No. McC-221; 5-8-1991 by Ord. No. McC-307; 5-13-1992 by Ord. No. 92-048; 7-22-1992 by Ord. No. 92-066; 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052]

§ 3-72. Department established; head.

A. There shall be a Department of Housing, Economic Development and Commerce, the head of which shall be the Director of Housing, Economic Development and Commerce. The Director shall be the City liaison with the Jersey City Housing Authority and Jersey City Redevelopment Agency and may serve as Chief Executive Officer of either or both agencies.

B. The Director of Housing, Economic Development and Commerce shall also act as Chief Planning and Zoning Officer of the City as long as the person assigned to this role is in possession of a New Jersey Professional Planning license. **[Amended 11-25-2025 by Ord. No. 25-121]**

§ 3-73. Director of Housing, Economic Development and Commerce; functions. [Amended 11-25-2025 by Ord. No. 25-121]

The Director of Housing, Economic Development and Commerce shall exercise the following functions formerly assigned to the Office of Planning:

A. Advise the Mayor, Municipal Council and City departments and agencies in matters relating to the physical, social and economic development or redevelopment of the City.

B. Assist the Director of the Department of Health and Human Services and the Business Administrator in coordinating the planning program with other City departments and agencies.

C. Assist in the preparation of the capital budget.

D. Serve as consultant to the Planning Board, as long as the person assigned to this role is in possession of a New Jersey Professional Planning license.

E. Coordinate special planning studies to be made by the Division of City Planning or contractors, as authorized by the Municipal Council.

F. Assist in the review requests for variances made to the Zoning Board of Adjustment and Planning Board, as long as the person assigned to this role is in possession of a New Jersey Professional Planning license.

§ 3-74. Organization of Department. [Amended 11-7-01 by Ord. No. 01-121; 9-12-2018 by Ord. No. 18-097]

Within the Department of Housing, Economic Development and Commerce, there shall be the following divisions, offices, bureaus, and boards:

A. Division of Economic Development.

B. Division of Construction Code Official.

(1) Bureau of Plumbing Subcode Official.

(2) Bureau of Electrical Subcode Official.

(3) Bureau of Building Subcode Official.

C. Division of Housing Preservation.

(1) Office of Housing Code Enforcement.

(2) Office of Landlord/Tenant Relations.

(a) Bureau of Rent Leveling.

(b) Rent Leveling Board.

D. Division of Community Development. **[Amended 12-23-1997 by Ord. No. 97-090]**

E. Division of City Planning. **[Amended 9-25-2019 by Ord. No. 19-131; 11-25-2025 by Ord. No. 25-121]**

(1) Urban Design.

(2) Planning Board.

(3) Zoning Board.

F. Division of Zoning. **[Amended 11-25-2025 by Ord. No. 25-121]**

(1) Historic Preservation Commission.

G. Division of Commerce. **[Amended 12-23-1997 by Ord. No. 97-090]**

H. Division of Affordable Housing. **[Added 6-14-2023 by Ord. No. 23-047]**

I. Division of Tenants' Right to Counsel. **[Added 6-14-2023 by Ord. No. 23-047]**

§ 3-75. Division of Construction Code Official.

A. Creation of the Division of Construction Code Official.

(1) There is hereby created within the Department of Housing, Economic Development and Commerce the Division of Construction Code Official, the head of which shall be the Superintendent of Building.

(2) The Superintendent of Building shall be the Construction Code Official pursuant to N.J.S.A. 52:27D-126.

B. Division of Construction Code Official; functions. Under the direction and supervision of the Director of Housing, Economic Development and Commerce, the Division of Construction Code Official shall **[Amended 4-27-2005 by Ord. No. 05-045; 11-9-2016 by Ord. No. 16-172]:**

(1) Administer and enforce the State Uniform Construction Code and conduct the centralized issuance of permits and inspection services in accordance with N.J.S.A. 52:27D-119 et seq.

(2) Administer and supervise the condemnation of properties in accordance with N.J.S.A. 40:48-2.3 et seq.

(3) Supply a list of all condemned properties slated for demolition to the Division of Engineering, Traffic and Transportation.

(4) Coordinate the demolition of condemned properties with the Division of Engineering, Traffic and Transportation, duly licensed according to law.

(5) Administer permits of street openings for the purposes of connecting residential dwellings to municipal sewer and water utilities in accordance with § 296-20 thru 296-51.

Cross reference—Enforcing agency established, § 131-1.

§ 3-76. Division of Economic Development. [Amended 5-21-2025 by Ord. No. 25-056]

A. Creation of the Division of Economic Development; Director of Economic Development in charge. There is hereby created within the Department of Housing, Economic Development and Commerce the Division of Economic Development, the head of which shall be the Director of Economic Development.

B. Division of Economic Development; functions. Under the direction and supervision of the Director of Housing, Economic Development and Commerce, the Division of Economic Development shall:

(1) Design and implement campaigns to attract industrial, commercial and other economic development into the City.

(2) Undertake an inventory and the securing and promotion of sites whose development is to the economic benefit of the City.

(3) Assist prospective developers in securing financing for development projects.

(4) Arrange and coordinate City services necessary for specific economic development projects.

(5) Keep appropriate statistics and data to indicate trends in economic development and make evaluations and recommendations concerning the same.

(6) Review and make recommendations concerning economic development aspects of the Comprehensive Master Plan of the City.

(7) Coordinate the City's economic development efforts with those of other governmental bodies and agencies.

(8) Administer all federal, state, county and local aid programs pertaining to economic development in the City, except as otherwise provided by law.

(9) Promote safety and security at City-assisted residential development projects by fostering a stable workforce.

C. Required wage, benefit and leave standards for building service workers on covered development projects. **[Added 7-18-2012 by Ord. No. 12-090]**

(1) Definitions.

(a) For the purposes of this section, "covered developer" means any person receiving economic development financial assistance or a tax abatement pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq., or the Five-Year Exemption and Abatement Law, N.J.S.A. 40A:21-l et seq., in relation to a covered development project or a tax abated project, and includes any lessee or assignee of a covered developer or successor in interest of real property that qualifies as a covered development project.

(b) For the purpose of this section, "not-for-profit organization" means an entity that is either incorporated as a not-for-profit corporation under the laws of the state of its incorporation or exempt from federal income tax pursuant to subdivision (c)(3) of Section 500 of the United States Internal Revenue Code.

(c) For the purposes of this section, "City" shall include but not be limited to the Mayor, the Business Administrator, any City agency, not-for-profit organization, public benefit corporation, or other entity that provides or administers economic development benefits on behalf of the City.

(d) For the purposes of this section, "covered development project" means a project undertaken by the City for the purpose of improvement or development of real property, economic development job retention or growth, or other similar purposes where the project has received or is expected to receive financial assistance.

(e) For the purposes of this section, "building service worker" shall include any janitor, porter, unarmed security guard, concierge, handy-person, superintendent, parking attendant, valet, pool attendant, gym attendant, spa attendant, lifeguard, groundskeeper, mailroom attendant, door person, building amenity service worker, or any other person performing work in connection with the care, securing, or maintenance of a building and who is employed at Covered Development Projects and Tax Abated Projects, including those employed[GRAPHIC]or otherwise contracted by a tenant or subtenant of the covered developer.

(f) For the purposes of this section, "economic development financial assistance" means assistance with an anticipated total value of at least $1,000,000.00 that is provided in whole or in

part by the City to a business organization for the improvement or development of real property, economic development job retention and growth, or other similar purposes. Financial assistance includes, but is not limited to, cash payments or grants, bond financing, tax exemptions, tax increment financing, filing fee waivers, energy cost reductions, environmental remediation costs, write-downs in the market value of building, land, or leases, or the cost of capital improvements related to real property that under ordinary circumstances, the City would not pay for. Where assistance takes the form of leasing City property at below-market lease rates, the value of the assistance shall be determined based on the total difference between the lease rate and a fair market lease rate over the duration of the lease. Where assistance takes the form of loans or bond financing, the value of the assistance shall be determined based on the difference between the financing cost to a borrower and the cost to a similar borrower that does not receive financial assistance from a City economic development entity. For the purposes of this section, "economic development financial assistance" does not include Community Development Block Grants or Community Services Block Grants funded by the federal government, Urban Enterprise funding or Choice/HOME Program funds. Economic development financial assistance shall also mean the sale of any property by the City at below market value.

(g) For the purposes of this section, "Tax Abated Project" means a project that has a total construction cost that is equal to or exceeds $25,000,000.00 exclusive of any land acquisition costs, for which the City has granted a tax abatement pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq., or the Five-Year Exemption and Abatement Law, N.J.S.A. 40A:21-1 et seq. However, any project that is being undertaken by a not-for-profit organization or which shall contain more than 50 percent affordable housing, shall also be excluded.

(h) For the purposes of this section, "standard compensation" means each of the following: 1) standard wage; 2) standard benefits; and 3) standard paid leave.

(i) For the purposes of this section, "standard wage" means the greater of: 1) 125 percent of the state minimum wage rate, N.J.S.A. § 34:11-56a, et seq., or 2) the hourly rate of pay for work performed within the City under the collective bargaining agreement covering the largest number of hourly non-supervisory building service workers employed within Hudson County, provided the collective bargaining agreement covers no fewer than 200 employees.

(j) For the purposes of this section, "standard benefits" means the greater of: 1) the benefit rate determined by the United States Department of Labor pursuant to the Service Contract Act of 1965, 41 U.S.C. § 351, et seq., or 2) the benefit rate established by the collective bargaining agreement covering the largest number of hourly non-supervisory building service workers employed within Hudson County, provided the collective bargaining agreement covers no fewer than 200 employees.

Standard benefits shall be an hourly supplement furnished by a contractor to an employee in one of the following ways: 1) In the form of health and/or other fringe benefits, not including paid sick days or any other benefits already required by law, that cost the employer the entire required hourly supplement amount; 2) by providing a portion of the required hourly

supplement in the form of health and/or other fringe benefits, not including paid sick days or any other benefits already required by law, and the balance in cash; or 3) by providing the entire supplement in cash.

For the purposes of this section, "fringe benefits" means the total cost to the employer on an hourly basis for providing health, welfare, and retirement benefits, including, but not limited to: (A) medical, surgical, hospital care and/or prescription benefits; (B) death benefits; (C) pension or 401(k) benefits; (D) training and education benefits; and (E) legal service benefits, and may include payments made directly to employees, payments to purchase insurance, and the amount of payment or contributions paid by the employer on behalf of each employee to any employee benefit fund. Fringe benefits do not include any benefits required by federal, state or local law, such as paid sick days, workers' compensation insurance, or unemployment insurance benefits, nor shall it include the value of any benefit for which an employee is eligible but for which no payment is actually made by a contractor to the employee or to any other party on the employee's behalf because the employee either does not actually utilize or does not elect to receive the benefit for any reason.

(k) "Standard paid leave" means the greater of: 1) the paid vacation and holidays determined by the United States Department of Labor pursuant to the Service Contract Act of 1965, 41 U.S.C. § 351, et seq., for all types; or 2) the paid vacation and holidays established by the collective bargaining agreement covering the largest number of hourly non-supervisory building service workers employed within Hudson County, provided the collective bargaining agreement covers no less than 200 employees.

(2) Every covered developer shall be required to ensure that all building service workers employed at covered development projects and tax abated projects, including those employed by any and all tenants or subtenants of the covered developer, are paid not less than the standard compensation.

(3) Every contract signed by the City for covered development projects and tax abated projects with a business organization shall contain a provision stating the standard wage, the standard benefits, and standard paid leave for building service workers employed at the premises for which the economic development financial assistance is provided. Such contracts shall contain a stipulation that those workers shall be and/or have been paid not less than the standard compensation in accordance with the provisions of this chapter. This provision shall be included in any lease of the covered developer or its tenants and subtenants to ensure that the provisions of this ordinance shall apply regardless of whether the building service workers are directly or indirectly employed by the business organization receiving the economic development financial assistance. The contract shall provide for annual adjustments of the standard compensation during the term of the contract.

(4) Retaliation prohibited. No covered developer or their agent shall discharge, threaten, penalize, or in any other manner discriminate or retaliate against any building service worker because such building service worker has: (a) made a complaint to a covered developer or their agent, an employer, a co-worker, or a labor union that the covered developer and/or an employer has engaged in conduct that the worker, reasonably and in good faith, believes violates any provision

of this section; (b) made a complaint, testified, or prepared to testify to a local, state, or federal agency or other body about a violation of this section; or (c) instituted or prepared to institute any proceeding under or related to this section.

As used in this section, to threaten, penalize, or in any other manner discriminate or retaliate against any building service worker includes threatening to contact or contacting United States immigration authorities or otherwise reporting or threatening to report a building service worker's suspected citizenship or immigration status or the suspected citizenship or immigration status of a building service worker's family or household member to a federal, state or local agency.

A building service worker complaint or other communication need not make explicit reference to any section or provision of this chapter to trigger the protection of this section.

The termination or other disciplinary action taken by a covered developer and/or employer against a building service worker within 90 days of the worker's exercise of rights under this section shall raise a rebuttable presumption of having done so in retaliation for the exercise of those rights.

(5) Notice posting. Each covered developer shall, not later than the first day upon which work is required to be performed under the contract, and for the duration of the contract, post in a prominent and accessible place, a poster stating (1) the standard compensation owed to employees under this section, including the standard wage rate, the standard benefit rate, and the standard paid leave rate; (2) employee rights and remedies for a violation of this section; and (3) the contact information for Office of Economic Development and/or any other City office or official designated to receive complaints for violations of this chapter. The Director shall develop a suitable poster containing the information described in this subsection for employers and make such poster available to covered developers. The Director shall post his or her determinations of the standard wage, benefits and vacation and holiday rates on the City's website.

(6) Reporting. All contracts signed by the City for covered development projects or tax abated projects shall require the submission to the business administrator of an annual certification by the covered developer executed under penalty of perjury that all building service workers employed at a City development project or a tax abated project by the covered developer or under contract or lease or sublease with the covered developer to perform building services will be and/or have been paid the standard compensation. Such certification shall include a record of the days and hours worked, the wages and benefits paid to, paid leave provided and job title of each building service worker employed at the City development project or tax abated project, and the business name, contact name, address, phone number and email address for the employer or employers of building service workers at the project. Such certification shall be certified by the chief executive or chief financial officer of the covered developer, or the designee of any such person. A violation of any provision of the certification, or failure to provide such certification, shall constitute a violation of this section.

(7) Record keeping. Each covered developer shall keep, maintain, and preserve original payroll records for each building service worker reflecting the days and hours worked, the wages and benefits provided for such hours worked, and the worker's job title and shall retain such records

for at least six years after the building service work is performed. The covered developer may satisfy this requirement by obtaining copies of records from the employer or employers of such employees. All payroll records should include the name(s) and contact information of the building service worker's employer(s). Failure to maintain such records as required shall create a rebuttable presumption that the building service workers were not paid the wages and benefits required under this section. Each covered developer shall provide, annually, and within ten days upon written request from the City, a certified original payroll record. The certified payroll shall be considered a public record and every person shall have the right to inspect and copy such record in accordance with the provisions of the Open Public Records Act, N.J.S.A. 47:1A-1, et seq.

(8) Site access. Representatives of the City shall be permitted to have appropriate access to all covered development projects and the authority to inspect payroll and other records in order to monitor compliance.

(9) The requirements of this section shall apply for the term of the economic development financial assistance or tax abatement for ten years from the date that the financially assisted project is substantially complete which ordinarily means the date of the issuance of the first certificate of occupancy for the project or for the duration of any written agreement between the City and a covered developer providing for financial assistance, whichever is longer.

(10) The Director of Economic Development shall maintain a list of business organizations that have received economic development assistance. Where a written agreement between the City and a business organization providing for financial assistance is targeted to particular real property, such list shall include the address of each such property. Such list shall be published on the City's internet website and updated as often as is necessary to keep it current. The Director of Economic Development's failure to include a business organization on the list shall not excuse the business organization from its obligations under this section.

(11) Penalties. In the event of a failure to comply with the provisions of this section, the covered developer shall be provided with a written notice of failure to comply allowing the covered developer ten days to 'cure' the failure to comply. If the covered developer fails to timely cure, then in addition to any other remedies available at law or in equity including termination of the contract the City shall be permitted to seek the following remedies for the failure to comply with this ordinance:

(a) A material breach of any term a) an increase in the amount of the annual service charge of one percent of the estimated annual payment until the breach is cured; or b) a payment to the City of an amount equal to the greater of two percent of the annual value of the economic development subsidy or two-tenths of a percent of the total value of the economic development subsidy:

(b) A material breach of this section that continues for a period of six months or more, shall allow the City to terminate the tax abatement or economic development subsidy.

(12) Right of action for building service workers. Violation of this provisions shall constitute a breach of the standard compensation provisions of the contract by the business organization receiving the economic development subsidy and such provisions shall be considered to be a contract for the

benefit of the building service workers upon which such workers shall have the right to maintain action, as a third party beneficiary, for the difference between the standard wage, standard benefits, and standard paid leave promised or required and actually received by them, and including liquidated damages in the amount of 100 percent of the wages, benefits, and/or leave owed, in addition to base amounts owed, and attorney's fees. The standard compensation shall be considered a building service worker's agreed to wages for the purposes of the Wage Payment Law, N.J.S.A. 34:11-4.1, et seq.

(13) Severability. If any section or provision or the application of the section or provision of this chapter to any person or circumstances shall be held invalid, the validity of the remainder of the sections and the applicability of the sections or provisions to other persons or circumstances shall not be affected.

§ 3-77. Revolving Relocation Assistance Fund created. [Added 7-17-2019 by Ord. No. 19-085]

A. Pursuant to N.J.S.A. 20:4-4.1a. there is hereby created a Revolving Relocation Assistance Fund which shall be used to provide relocation assistance to individuals who are displaced from their dwelling as a result of code enforcement activities initiated by the City.

Relocation assistance shall include the costs of temporary lodging, moving expenses and broker fees up to four-thousand dollars ($4,000.00). Relocation assistance shall not include the costs of individual transportation, food, groceries or the replacement of personal items.

In accordance with all applicable State laws, the City shall contract directly with the vendors providing the temporary lodging, moving services and brokerage services. Under no circumstances shall funds be disbursed directly to a displaced tenant.

Any payment of relocation assistance funding under this section shall be subject to the availability of funds within the Revolving Relocation Assistance Fund at the time of the request for relocation assistance.

B. Funding sources. There shall be deposited into the Revolving Relocation Assistance Fund the following sums, less any money required to be repaid to the State:

(1) Any relocation costs, and interest thereon, paid by an owner of real property who has been held liable for a civil or criminal penalty in the case of any displacement of persons by housing or construction code enforcement pursuant to N.J.S.A. 20:4-4.1;

(2) Any sums realized by the City upon enforcement of municipal liens or liquidation of any property acquired by virtue of enforcement pursuant to N.J.S.A. 20:4-4.1; and

(3) Any sums realized by the City relating to any relocation cost and interest thereon upon enforcement or liquidation of any property acquired by virtue of enforcement and collected pursuant to N.J.S.A. 20:4-4.2.

(4) Any additional sum that the Council deems appropriate.

C. The following shall qualify for relocation assistance:

(1) Any tenant who is forced to vacate a premise as a result of code enforcement activity for an illegal occupancy; and

(2) Any tenant displaced by housing or construction code enforcement, including any rehabilitation necessitated by that enforcement.

Every tenant who wishes to avail him or herself of the relocation assistance fund program, prior to accepting any such financial assistance from the City, must first certify that he or she has no rental insurance policy to draw from. No relocation assistance will be provided to any tenant meeting the description above who ran avail him or herself of insurance proceeds and the City will prosecute anyone who falsely claims not to have a rental insurance policy to draw from and accepts City relocation assistance.

D. Landlord's obligation to repay the Revolving Relocation Assistance Fund; penalty for failure to comply. Immediately following the landlord's adjudication of responsibility for causing tenant's displacement by the Municipal Court, the City shall present a statement of relocation costs to the landlord, who shall have ten days from the Court's adjudication to repay the City for the relocation assistance it paid on behalf of the displaced tenant In the event the landlord fails to repay the relocation expenses by the date such repayment becomes due and payable, the same shall accrue interest at a rate of 18% per annum and become a lien against the subject real property as provided for in N.J.S.A. 20:4-4.1. In addition to the remedies available under N.J.S.A. 20:4-4.1. the City may proceed under N.J.S.A. 20:4-4.2 in a civil action to recover unpaid relocation expenses, attorney's fees, interest and costs from the owner-landlord of the real property as set forth in the statute.

§ 3-77.1. Division of Affordable Housing. [Added 9-25-2019 by Ord. No. 19-131]

A. Creation of the Division of Affordable Housing; Director of Affordable Housing, in charge. There is hereby created within the Department of Housing, Economic Development and Commerce, the Division of Affordable Housing, the head of which shall be the Director of Affordable Housing.

B. Division of Affordable Housing; functions. Under the direction and supervision of the Director of Housing, Economic Development and Commerce, the Division of Affordable Housing shall:

(1) Promulgation of the affordable housing manual. The Office Division shall promulgate a manual entitled "The Regulations Governing Municipally-Mandated Affordable Housing," which shall include the forms and documents required for all affordable housing applications. The Office Division shall update the manual on a regular basis. The manual shall be available to the public and shall be on file in the Office of the City Clerk.

(2) Recordkeeping. The Office Division shall maintain a comprehensive recordkeeping system of each development that contains affordable housing units including the size of each unit, improvements, if any, the names of occupants and any other such information as required by the manual. The Office Division has the right to review all records and files kept by any developer related to affordable housing.

(3) Review and approve affordable housing agreements.

(4) Reviewing affirmative marketing plans and annual reports. The Office Division shall review each developer's affirmative marketing plan and any reports or submissions required of developers by the manual.

(5) Conduct determination appeals. The Office Division is empowered to hear appeals of applicants regarding their eligibility in accordance with the procedures set forth in the manual.

(6) Developing City-wide housing policy that will increase the supply of safe, stable and affordable housing for all Jersey City residents while also continuing to preserve and improve the existing housing stock.

(7) Prepare a five-year housing action plan. The Division of Affordable Housing shall provide its own resources and collaborate with other Divisions, including but not limited to, the Division of City Planning, the Division of Community Development and the Division of Housing Preservation. The plan shall include:

(a) Evaluation of existing housing stock.

(b) Evaluation of existing affordable housing and rent control units.

(c) Population trends.

(d) Local and regional housing needs.

(e) Governmental and non-governmental constraints.

(f) Propose policy and program recommendations that will provide for existing and future housing needs of all economic segments of the community.

(g) Create a five-year schedule of proposed implementation actions based on housing needs and issues.

(h) Establish a credible, consistent database to evaluate and monitor conditions through definitive measurable outcomes.

§ 3-78. Division of Housing Preservation. [Added 9-12-2018 by Ord. No. 18-097; amended 12-13-2023 by Ord. No. 23-017]

A. There is hereby created within the Department of Housing, Economic Development and Commerce the Division of Housing Preservation, the head of which shall be the Director of Housing Preservation.

B. Under the supervision of the Director of Housing Preservation, the Division of Housing Preservation shall administer the following sections of the Code: **[Amended 6-25-2019 by Ord. No. 19-077; 7-17-2019 by Ord. No. 19-085; 9-23-2020 by Ord. No. 20-074]**

(1) Through the Office of Landlord/Tenant Relations, the Rent Control Ordinance, Chapter 260; provide education, information and referrals to City residents in connection with Landlord/Tenant related issues;

(2) The Revolving Relocation Assistance Fund;

(3) Provide appropriate personnel to attend all meetings of the Rent Leveling Board; and assist the Rent Leveling Board in its duties;

(4) The Multiple Dwellings Ordinance, Chapter 218;

(5) Vacant Properties, Article IV of Chapter 254;

(6) The Foreclosure Registry, Article XXII of Chapter 254;

(7) The Short Term Rentals Ordinance, Chapter 255;

(8) The Lead Hazard Control Assistance Act, N.J.S.A. 52:27D-437 et seq.;

(9) And other matters related to housing and neighborhoods as may be assigned to it for administration.

Editor's note—Ord. No. 18-097, adopted September 12, 2018, amended the Code by repealing former § 3-78 and adding a new § 3-78. Former § 3-78 pertained to the Division of Tenant/Landlord Relations, and derived from the Ord. No. C-421, adopted September 26, 1985; Ord. No. C-464, adopted May 28, 1987; and Ord. No. McC-307, adopted May 8, 1991.

§ 3-79. Division of Community Development. [Amended 12-23-1997 by Ord. No. 97-090]

A. Creation of the Division of Community Development; Director of Community Development in charge. There is hereby created within the Department of Housing, Economic Development and Commerce, the Division of Community Development, the head of which shall be the Director of Community Development.

B. The functions of the Division of Community Development shall be as follows:

(1) To coordinate and administer local, state and federal funding applications and grant awards for affordable housing, social service and community development programs.

(2) To provide technical assistance and advice to developers and entities involved in the production of affordable housing and/or the creation of commercial, industrial and economic opportunities on a neighborhood basis.

(3) To encourage, provide and assist in the production and rehabilitation of residential housing for the primary benefit of low-, moderate- and middle-income families.

(4) To make recommendations to other municipal departments, divisions, bodies or agencies on implications for the production of affordable housing, the delivery of social services and redevelopment of neighborhoods.

(5) Assist other municipal departments, divisions and autonomous agencies in identifying and applying for new grant sources from the state and federal government.

(6) Review the suitability, conditions and requirements of grant opportunities and coordinate and monitor all stages of the grant process, including the execution, administration and closeout of all grants.

(7) Maintain files and official records pertaining to all City grants.

(8) Monitor compliance and enhance the terms and conditions of any grants upon attached City departments and subrecipients.

(9) Arrange for and participate in audits of all grants and subgrantee agreements.

(10) Maintain and distribute informational materials on the accomplishments and availability of grant programs.

§ 3-80. Division of City Planning. [Amended 11-25-2025 by Ord. No. 25-121]

A. Creation of the Division of City Planning; Director of City Planning in charge. Under the direction and supervision of the Director of Housing, Economic Development and Commerce, the Division of City Planning is established, the head of which shall be the Director of City Planning. The person serving in this role shall be in possession of a New Jersey Professional Planning license.

B. Division of City Planning; functions. The function of the Division of City Planning is to carryout his or her duties as Chief Planning Officer for the City. This will include research, data collection, preparation of policy analysis, grants research, grants applications, urban design, neighborhood planning and such other assignments within the discretion of the Director of Housing, Economic Development and Commerce. This will also include the oversight of the administration of the Planning and Zoning Boards.

C. Fees and charges.

(1) Photocopying fees and fees for documents on file in the Division of City Planning shall be as provided in chapter 160, Fees and Charges.

(2) Copies of all board agendas shall be available for no charge if picked up in person at the Division's offices. Copies requested to be mailed shall be available for a charge as provided in chapter 160, Fees and Charges, payable in advance, for any single agenda. Anyone wishing to be placed upon a yearly mailing list pursuant to N.J.S.A. 10:4-19 shall provide a prepayment as provided in chapter 160, Fees and Charges, for Planning Board agendas, Board of Adjustment agendas and Historic District Commission agendas.

(3) The cost of handling and postage shall be covered by the copying cost for the mailing of items weighing two ounces or less. Any additional postage costs for items over this limit shall be payable on a direct basis by the individual requesting such mailing.

(4) Any documents removed from the office of City Planning for copying elsewhere shall be available at a rate as provided in chapter 160, Fees and Charges, which fee must be deposited in advance. A minimum of two days' fee shall be charged.

§ 3-81. Division of Zoning. [Amended 11-25-2025 by Ord. No. 25-121]

A. Creation of the Division of Zoning; Director of Zoning in charge. Under the direction and supervision of the Director of Housing, Economic Development and Commerce, the Division of Zoning is established, the head of which shall be the Director of Zoning. The person serving in this role will be the Zoning Officer and shall be in possession of a New Jersey Professional Planning license.

B. Division of Zoning; functions. The function of the Division of Zoning is to enforce all local Zoning and State Statutes applicable to the Municipal Land Use Law. This includes the administration of the Historic Preservation Commission and direct supervision of the Historic Preservation Officer. The Historic Preservation Officer shall assist the Division of Zoning Director in their role as the Zoning Officer for applications that are enforced by Historic Preservation laws enabled by the Municipal Land Use Law.

§ 3-82. Reserved.

Editor's note—Former § 3-82, Division of Redevelopment, was repealed December 23, 1997, by Ord. No. 97-090.

§ 3-82.1. Division of Commerce.

A. Creation of the Division of Commerce; Director of the Division of Commerce in charge. There is hereby created within the Department of Housing, Economic Development and Commerce the Division of Commerce, the head of which shall be the Director of the Division of Commerce.

B. Division of Commerce; functions. The Division of Commerce shall: **[Amended 9-23-2020 by Ord. No. 20-074]**

(1) Administer the applicable licensing provisions of the Jersey City Code, except as otherwise provided for by general law, including the receiving of applications and payments for all licenses, provided that the Director of Housing, Economic Development and Commerce may direct specified applications or payments to be made to other departments or administrative units of the City as may best serve the public convenience, and the assigning of applications to the proper department or administrative unit for investigation and report, and upon approval, where necessary, of any application by the authorized department or administration unit, the Division shall issue the license to the applicant, provided that all other qualifications required of the applicant are met.

(2) Issue City licenses and collect such fees as approved by the Board of Alcoholic Beverage Control, under Chapter 84, Alcoholic Beverages, of the Jersey City Code and issue all licenses and collect all fees previously administered by the Treasurer or the Supervisor of Licenses.

(3) The Division of Commerce may, if so directed by the Director of Housing, Economic Development and Commerce or the Director of the Division Commerce, perform the investigation and issue the report referred to in Subsection B(1) of this section and may issue the approval referred to in Subsection B(1) of this section.

(4) Review applications for taxi driver hack licenses and bus driver hack licenses.

(5) Review applications for permits for the operation of taxicabs within the City of Jersey City in accordance with the Jersey City Code.

(6) Supervise the collection of franchise taxes payable to the City of Jersey City and keep daily and monthly reports.

(7) Administer the insurance requirements of the New Jersey Department of Insurance relating to taxicabs and buses.

(8) Conduct hearings on complaints against holders of taxicabs and bus licenses and forward any adverse ruling, including the revocation of taxicab and bus licenses, to the Director of Public Safety and the Director of Housing, Economic Development and Commerce. **[Amended 9-11-2013 by Ord. No. 13-081]**

(9) Perform all the functions authorized in Chapter 319, Towers and Towing and Chapter 332, Vehicles and Traffic.

(10) Review applications for public weighmasters.

(11) Enforce the applicable licensing provisions of the Jersey City Code, except as otherwise provided for by general law. Enforcement shall include the investigation of applications for licenses, when the Director of Housing, Economic Development and Commerce or the Director of the Division of Commerce shall assign such investigation and shall also review the conduct of regular investigations to ensure that the licensing provisions of the Jersey City Code are being complied with throughout the City.

(12) Have those powers and undertake those responsibilities established by N.J.S.A. 51:1-1 et seq., including but not limited to:

(a) The inspection, testing, adjusting and the sealing or condemnation of all commercial scales and measuring devices in use by wholesale and retail establishments dealing with the general public.

(b) The testing and sealing of gasoline pumps.

(c) The calibration of fuel tank trucks.

(d) The testing of liquid measures, oil meters, laundry scales, heavy-duty truck scales and all types of scales and measuring devices in general use.

(e) The investigation and reporting on applications for public weighmasters.

(f) The investigation of complaints of violations and presentation of evidence thereof in municipal courts.

(g) The issuance of solid fuel and live poultry licenses.

(13) Conduct mechanical inspections of taxicabs and buses and enforce all provisions of the New Jersey Statutes, regulations of the Public Utility Commission and ordinances of the City of Jersey City relating to taxicabs, buses and school buses.

(14) Inspections, investigative, and enforcement functions of the Division of Commerce may be assigned to or supplemented by other appropriate departments or administrative unit, including but not limited to the Department of Public Safety's Division of Police and/or Division of Quality of Life.

§ 3-82.2. Reserved.

Editor's note—Ord. No. 18-097, adopted September 12, 2018, amended the Code by repealing former § 3-82.2, which pertained to the Division of Housing Code Enforcement, and derived from Ord. No. 01-121, adopted November 7, 2001.

§ 3-82.3. Community Service Block Grant Board. [Added 3-10-2010 by Ord. No. 10-012]

A. Community Service Block Grant Board established. There is hereby established a Community Service Block Grant Board which shall be reconstituted and continued in the Department of Housing, Economic Development and Commerce.

B. Membership on the Administering Board shall consist of the following three members:

(1) Public Official: An elected or public official, member of the City Council, or their designee.

(2) Representative of low income individuals and families: The Jersey City Tenants Affairs Board shall be entitled to elect one representative.

(3) Private Representation: One member shall be selected who is representative of major groups and interests in the community served.

C. Appointment of Members. All members other than the representative of the Jersey City Tenants Affairs Board shall be appointed by the Mayor and all members shall serve for a term of two years which may be renewed once, but total service not to exceed six years, except public officials who shall serve the term of their elected public offices.

D. Administering Board. The Administering Board shall have the following powers:

(1) To organize itself adopt rules and procedures for its internal organization.

(2) To review and make recommendations to the Department of Housing, Economic Development and Commerce to federal, state and private agencies for social services.

(3) To review and make recommendations to the Department of Housing, Economic Development and Commerce and the Municipal Council upon existing social services programs under the auspices of the Department of Housing, Economic Development and Commerce.

(4) To participate in the development of programs designed to serve low income individuals and families.

(5) To advise the Municipal Council in social service policies and standards and program and administrative and financial policies.

(6) The Director of the Department of Housing, Economic Development and Commerce is authorized to assist the Administering Board in fulfilling its responsibilities.

ARTICLE XI
Department of Public Safety*

§ 3-83. Department created; head; divisions. [Added 9-11-2013 by Ord. No. 13-081; amended 7-17-2019 by Ord. No. 19-068; 9-23-2020 by Ord. No. 20-074]

There is hereby established the Department of Public Safety, the head of which shall be the Director of Public Safety.

§ 3-84. Director of Public Safety. [Added 9-11-2013 by Ord. No. 13-081; amended 7-17-2019 by Ord. No. 19-068]

A. The Director of Public Safety shall be qualified by training and experience for the duties of the position. The Director of Public Safety shall be responsible for the administration, regulation and discipline of the Division of Police, the Division of Fire and Emergency Services, the Division of Communications and Technology, and the Division of Parking Enforcement. The Director of the Department of Public Safety can appoint an Assistant Director and assign the Assistant Director duties as desired. The Director of Public Safety shall report to the Mayor regularly with recommendations related to conditions of the Department and its improvements and needs. **[Amended 11-12-2014 by Ord. No. 14-017]**

B. The Director may employ special law-enforcement officers in accordance with N.J.S.A. 40A:14-146.8 et seq., "Special Law Enforcement Act;"

C. The Director of Public Safety shall also:

(1) Keep abreast of the public safety requirements of the City and formulate policies, plans and procedures to determine needs:

(2) Develop organization, manpower and resource recommendations and, upon approval of same, effect their implementation;

(3) Establish performance criteria for the Department as a whole as well as its individual members and conduct periodic evaluations to assure compliance with those criteria;

***Editor's note**—Ord. No. 13-081, adopted September 11, 2013, amended the Code by repealing Art. XI, §§ 3-83—3-92, with the exception of § 3-85.1, and replacing it with a new Art. XI. Former Art. XI pertained to the Department of Police, and derived from Ord. No. S-345, adopted February 19, 1980; Ord. No. S-389, adopted April 22, 1980; Ord. No. MC-53, adopted October 27, 1981; Ord. No. MC-104, adopted January 14, 1982; Ord. No. MC-101, adopted February 11, 1982; Ord. No. MC-407, adopted May 12, 1983; Ord. No. MC-361, adopted September 22, 1983; Ord. No. MC-566, adopted February 23, 1984; Ord. No. MC-707, adopted September 26, 1984; Ord. No. MC-789, adopted February 14, 1985; Ord. No. C-50, adopted September 25, 1985; Ord. No. C-48, adopted November 27, 1985; Ord. No. C-663, adopted February 11, 1988; Ord. No. C-663A, adopted February 25, 1988; Ord. No. C-894, adopted February 23, 1989; Ord. No. McC-213, adopted October 10, 1990; Ord. No. McC-287, adopted February 27, 1991; Ord. No. 92-009, adopted March 11, 1992; Ord. No. 92-058, adopted June 10, 1992; Ord. No. 95-050, adopted June 14, 1995; Ord. No. 04-141, adopted November 23, 2004; and Ord. No. 04-146, adopted January 12, 2005.

(4) Establish and maintain relations with school, civil and private organizations to assure a full understanding of the public safety effort;

(5) Conduct public relations and public information programs on behalf of the Department in order to maintain the required relationship between the department and the citizens of the City of Jersey City;

(6) Promote a close liaison with the various agencies of the City of Jersey City, and to attend meetings of the City Council to better coordinate the functioning of the Department of Public Safety with the work of all municipal agencies.

(7) Regularly review the ordinances of the City of Jersey City dealing with public safety.

§ 3-84.1. Division of Traffic and Parking. [Added 4-27-2022 by Ord. No. 22-040]

There shall be a Division of Traffic and Parking, the head of which shall be the Director of the Department of Public Safety.

A. The Division of Traffic and Parking shall perform the following functions:

1. Enforce all relevant parking regulations and operate all parking programs and facilities as set forth in Chapter 332 (Vehicles and Traffic) of the Municipal Code, including Article VII (Metered Parking), and Article VIII (Permit Parking), which were previously authorized to be enforced by the Jersey City Parking Authority on behalf of the City.

2. Issue summonses for parking and moving violations, as allowed by law, of any provision of applicable state law, municipal ordinance or regulation that occur within the City.

3. Traffic Safety Officers, under the Division of Traffic and Parking, shall be tasked with inspecting, regulating, and/or enforcing any and all road closure rules and regulations, including but not limited to construction closures, utility maintenance, sidewalk construction, permits for right-of-way, and temporary no parking permits.

4. Serve and execute all process with respect to any such violation issuing out of the Jersey City Municipal Court.

5. Cause any vehicle parked, stored or abandoned in violation of any provision of said law, ordinance or regulation to be towed away from the scene of such violation, or booted at the scene, and collect from the owner of such vehicle the costs of the towing and subsequent storage of said vehicle before surrendering said vehicle to such owner, or removal of said boot.

SUB-ARTICLE I

Division of Police

§ 3-85. Creation of the Division of Police; Police Chief in charge; Table of Organization. [Added 9-11-2013 by Ord. No. 13-081; amended 7-17-2019 by Ord. No. 19-068]

There shall be a Division of Police, the head of which shall be the Chief of Police.

A. Pursuant to N.J.S.A. 40:69A-60.7. the Mayor may appoint a Chief of Police who shall have served as a superior police officer and possess at least five years' administrative and supervisory police experience.

B. Under the direction of the Director of Public Safety, the Chief of Police shall:

(1) Administer and enforce rules and regulations and special emergency directives for the disposition and discipline of the force and its officers and personnel.

(2) Have, exercise, and discharge the functions, powers and duties of the division.

(3) Prescribe the duties and assignments of all subordinates and other personnel.

(4) Delegate such authority as necessary for the efficient operation of the division.

(5) Report at least monthly to the Director of Public Safety in such form as shall be prescribed by the Director on the operation of the division during the preceding month, and make such other reports as may be requested.

C. Within the Division of Police and subordinate to the Chief of Police, there shall be the following ranks in descending order of command: Deputy Chief of Police, Captain, Lieutenant, Sergeant and Police Officer. The maximum number within each rank shall be as follows:

Rank	Maximum Number of Each Rank
Chief of Police	1
Deputy Chief of Police	24
Captain	35
Lieutenant	80
Sergeant	145
Police Officer	915
Total number of sworn officers	1,200

D. The Division of Police may also include such civilian employees as may, from time to time, be appointed and approved by the Director of Public Safety.

§ 3-85.1 Off-duty employment.* [Amended 1-26-2011 by Ord. No. 11-011; 9-11-2013 by Ord. No. 13-081; 12-18-2013 by Ord. No. 13-141; 6-14-2023 by Ord. No. 23-056; 2-11-2026 by Ord. No. 26-001, 2-11-2026]

*Note—Please see Traffic Barricade Manual, page 30, on file in the Office of the City Clerk and the Division of Engineering, Traffic and Transportation.

A. Definitions. As used in this section, the following terms shall have the following meanings unless the context clearly indicates otherwise:

(1) "Alcohol Beverage Control premise" means one which is licensed by the Alcohol Beverage Control Board.

(2) "Director of Public Safety" means the Director of Public Safety or his or her designee.

(3) "City Owned Facility" means any property owned by the City of Jersey City rented by individuals or entities for the purpose of a privately held function.

(4) "Large Commercial Establishment" means a commercial establishment such as a store, bank or financial institution of 4,000 square feet or more or one which is part of a franchise, chain or multi-store complex.

(5) "Construction Sites":

(a) "City Projects" means any construction project performed by a vendor pursuant to a contract with the City of Jersey City for a public project in City-owned or leased buildings or on City-owned or leased properties.

(b) "Private Contractor Projects" means:

(i) Any construction project other than a City Project as defined above; and

(ii) Construction projects for an owner occupied class 2 residential property (one (1) to four (4) units).

(6) "Employer" or "prospective employer" means a prospective employer of off-duty officers.

(7) "Event requiring major or unusual crowd control" means:

(a) An event where 5,000 people or more expected to attend, such as an athletic event; and

(b) Any event where alcohol will be served; and

(c) Any event which in the opinion of the Director Public Safety will produce an unusual amount of vehicular or pedestrian traffic.

(8) "Film Production Sites" include, but are not limited to, movie sets, television productions, and photography.

(9) "Holidays" are defined only as New Years Eve, New Years Day, Good Friday, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, the day following Thanksgiving Day, Christmas Eve and Christmas Day, and only those dates officially observed.

(10) "Person" means any individual, corporation, partnership or organization unless the context clearly indicates otherwise.

(11)"Special Cultural Events" include cultural, and other neighborhood festivities/festival/parades that receive a permit from cultural affairs.

(12)"Superior Officer" means Sergeant, Lieutenant, or Captain.

(13)"Tax Exempt Organization" means a non-profit organization as defined by state or federal law.

(14)"Traffic Enforcer" means City personnel who regulate and direct the movement of vehicles through traffic, and regulate on street parking.

(15)"Crossing Guards" means City personnel who regulate and direct the movement of pedestrians through traffic.

(16)"Off-Duty Personnel" shall mean Police Officers and Guards if applicable, Crossing Guards.

(17)"Office of Off-Duty Employment" means the office responsible for coordinating off-duty assignments and billing of off-duty police work.

(18)"Off-Duty Employment Intake Manager" means the civilian employee of the Public Safety Department who manages off-duty personnel requests and coordinates the number of off-duty personnel assigned to each work site, the Off-Duty Employment Intake Management reports to the Director of Public Safety.

(19)"Off-Duty Billing Coordinator" means the civilian employee of the Public Safety Department who administers the Off-Duty Trust Account. The Off-Duty Billing Coordinator reports to the Off-Duty Intake Manager and submits a report on the Off-Duty Trust Account to the Director of Public Safety and the Fiscal Officer every 90 days.

B. Purpose. For the convenience of those persons who utilize the services of off-duty personnel of the Jersey City Police Department, and to authorize the outside employment of Police Officers, Traffic Enforcers, and Crossing Guards while off-duty, the City of Jersey City hereby establishes this policy. With regard to Police Officers only, this policy complies with Attorney General Formal Opinion 1977-No. 23. In limited situations involving pedestrian safety, Traffic Enforcers or Crossing Guards may be substituted for Police Officers at the discretion of the Off-Duty Employment Intake Manager.

(1) Off-duty personnel, at their option, shall be permitted to accept employment from private employers, who are separate and independent from the City of Jersey City, only during off-duty hours and at such time as will not interfere with the efficient performance of regularly scheduled or emergency duty of the City; provided, however, that no off-duty personnel may work within a premises licensed by the Alcohol Beverage Board, including, but not limited to, bars, taverns, nightclubs that serve alcoholic beverages, liquor stores, or restaurants with liquor licenses. Off-duty personnel are not permitted on the "licensed premise" itself, which is the area licensed for alcohol consumption, retail sale or storage; provided further that no off-duty personnel may accept off-duty employment under this ordinance by any governmental agency of the City of Jersey City other than the Jersey City Housing Authority.

(2) Prospective employers of off-duty personnel shall: 1) obtain the prior written approval of the Off-Duty Employment Intake Manager, which approval shall be granted if, in the opinion of the

Off-Duty Employment Intake Manager, under the authority of the Director of Public Safety, such employment is necessary and would not be inconsistent with the efficient functioning and good reputation of the Police Department and would not unreasonably endanger or threaten the safety of the off-duty personnel who are to perform the work.

(3) Upon approval by the Off-Duty Employment Intake Manager, the amount estimated to pay for the off-duty employment shall be deposited in the trust account established under subsection C.

(4) No off-duty personnel shall be paid directly by any employer for requested services, nor provide services for more hours than specified in the request for services.

(5) The Director of Public Safety is empowered to promulgate regulations and policies to effectuate this section.

C. Trust account established. **[Amended 9-10-2014 by Ord. No. 14-092]**

(1) To assure the timely payment of wages to off-duty personnel who perform off-duty work, and to meet the requirements of the Fair Labor Standards Act, the City of Jersey City has established a trust account known as the "Off-Duty Employment Trust Account." This trust account is dedicated for the receipt of fees collected for the payment for off-duty employment. The "Off-Duty Employment Trust Account" shall be administered by the Off-Duty Billing Coordinator who shall make a written report to the Director of Public Safety and the Fiscal Officer every 90 days regarding said account. Payments to off-duty personnel shall be on a biweekly basis with all appropriate deductions. All payments must be remitted directly to the City of Jersey City for said account. Deposits shall be in the form of certified check, bank check, money order, business check, credit card or electronic payment at the discretion of the Fiscal Officer.

(2) Hour estimate:

(a) Hours known: A prospective employer of off-duty personnel shall estimate the number of hours and days required. The estimate shall be approved in writing by the Off-Duty Employment Intake Manager and an amount sufficient to cover the rates of compensation and administrative fees set forth in subsection D for the total estimated hours of service shall be deposited into the Trust Account.

(b) Hours unknown or in excess of ten days: In any instance where the number of hours cannot be reasonably estimated or is anticipated to be in excess of ten days, a prospective employer shall deposit an amount sufficient to cover the rate of compensation and administrative fees set forth in subsection D for the equivalent of ten days prior to the commencement of any services. Any unused portion of the deposit shall be returned or credited against the final amount owed.

(3) Before posting any request for services of off-duty personnel, the Off-Duty Employment Intake Manager shall verify that the balance in the trust account of the prospective employer is sufficient to cover the compensation and fees for the number of hours specified in the request. The Off-Duty Employment Intake Manager shall not post a request for services unless all fees and compensation required in the manner described above have been deposited in the trust account.

(4) Depletion of funds in a trust account for any individual person or entity: In the event the funds in any individual or entity's trust account should become depleted, services of off-duty personnel shall cease, and requests for further or future services shall not be posted until additional funds have been deposited in the trust account in the manner prescribed above. In the event of an unforeseen emergency situation that would require off-duty personnel to remain beyond the time for which funds have been posted, the Off-Duty Employment Intake Manager may waive the requirement for posting additional funds after the first ten hours for any employer exhibiting a previous satisfactory payment history. However, payment for the additional hours shall be made within 48 hours.

(5) A prospective employer shall be responsible for ensuring that sufficient funds remain in the trust account in order to avoid any interruption of services. In the event of a project which requires services over an extended period the Off-Duty Billing Coordinator may require advance payment equal to 25 percent of the projected extended time period with additional 25 percent advances as a project continues.

(6) Exemption. Public utility companies under the jurisdiction of, and regulated by, the New Jersey Board of Public Utilities and the Jersey City Housing Authority are exempt from the provisions set forth in this section requiring advance payment to the trust account; providing, however, that there are no amounts previously due that are outstanding for a period in excess of 15 days. Any such delinquent balances shall require advance payment of the amount outstanding prior to any off-duty personnel engaging in any further off-duty assignments.

D. Requests for services. **[Amended 11-24-2015 by Ord. No. 15-152]**

(1) Requests for the services of off-duty personnel for a period of one week or longer shall be forwarded to the Off-Duty Employment Intake Manager at least ten days before such services are required. The Off-Duty Employment Intake Manager will compile a list of available Police Officers, Traffic Enforcers, and/or Crossing Guards to perform the requested services.

(2) Requests for the services of off-duty personnel for a period of less than one week shall be forwarded to the Off-Duty Employment Intake Manager as soon as practicable, but in no event less than 24 hours before such services are required, except in emergency situations.

(3) In emergency situations, requests for services shall be made, as necessary, to the Off-Duty Employment Intake Manager who shall make every effort to accommodate such request in a reasonable manner in his or her discretion. If the emergency is imminent, the Director of Public Safety shall also have the ability to deploy off-duty personnel on an emergent basis. Any off-duty personnel, when so employed by private employers shall be compensated at the rates set forth in subsection D, hereafter. All payments in emergency situations shall be made within 48 hours. Completed claim forms are to be provided to the Police Officer, Traffic Enforcer, or Crossing Guard at the time the services are rendered and the Police Officer, Traffic Enforcer, or Crossing Guard shall deliver same to the Off-Duty Employment Intake Manager.

(4) In the event an Off-Duty Police Officer, Traffic Enforcer, or Crossing Guard is unavailable to perform an assignment, the Off-Duty Employment Intake Manager will notify the next available Police Officer(s), Traffic Enforcer(s), or Crossing Guard(s) on the off-duty assignment list of the

availability of the assignment until the assignment is filled. A Police Officer, Traffic Enforcer, or Crossing Guard need not accept an off-duty assignment that does not guarantee a minimum of four hours of off-duty employment. However, a Police Officer, at his or her discretion, may accept an off-duty assignment that provides less than four hours of off-duty employment.

(5) Off-duty supervisors will be assigned to supervise the deployed off-duty officers in accordance with the policy established by the Public Safety Director after ensuring sufficient funds are available. An off-duty superior officer's command is not limited to any one specific project. The supervisor will be responsible for all off-duty police officers designated to his or her command irrespective of where those off-duty personnel are assigned. The cost of the off-duty supervisor shall come from the administrative fees paid by the employers.

(6) In special circumstances the Off-Duty Employment Intake Manager, may, in consultation with the Director of Public Safety, assign a supervisor to oversee a specific off-duty assignment if the Off-Duty Employment Intake Manager believes it is necessary to ensure the health, safety and welfare of the public.

E. Rates of compensation; administrative fees; payment for services.

(1) Rates of compensation for the services of off-duty personnel are established as follows:

COMPENSATION FOR POLICE OFFICERS, TRAFFIC ENFORCERS OR CROSSING GUARDS

Construction Sites	Commercial Establishments	Tax Exempt Org
CITY PROJECTS $35.00/hour SAT TIME & A HALF SUN- HOLIDAYS DOUBLE TIME AFTER 4 PM - Additional $10.00/hour PRIVATE CONTRACTORS As Defined in A5(b)(i) SAT TIME & A HALF SUN- HOLIDAYS DOUBLE TIME AFTER 4 PM - Additional $10.00/hour $85.00/hour PRIVATE CONTRACTORS As Defined in A5(b)(ii) $35.00/hour	Banks or Financial Institutions $50.00/hour Other Commercial Establish- ments: OVER 4,000 SQ FT. $50.00/hour Other Commercial Establish- ments UNDER 4,000 SQ Ft. $50.00	$50.00/hour

Large Events Under 5,000 People	Large Events Over 5,000 People	Film Production Sites
(Except City-Owned Facility Events) $75.00/Hour With alcohol present $80.00/hour	$90.00	$55.00/Hour

Outside an Alcoholic Beverage Control Licensed Premise		**City Owned Facility**
$70.00/Hour		$55.00/hour

* Commencing on January 1, 2024, and on or about each January 1 thereafter, the rates for off-duty police officers, traffic enforcers and crossing guards, shall be increased, but not decreased, by 50 percent of the percent change of the Consumer Price Index between January of the preceding year and January of the current year. For purposes of this section, Consumer Price Index means the Consumer Price Index for All Urban Consumers (CPI-U). U.S. City Average, All Items, 1982-1984=100, not seasonally adjusted: as promulgated by the Federal Bureau of Labor Statistics.

* Employers are not charged directly for Superior Officers assigned pursuant to this ordinance, or any regulations or directives promulgated in furtherance of this ordinance. Superior Officers will receive compensation directly from the City at a rate of $10.00 per hour higher than the highest paid off-duty Police Officer under his or her immediate supervision in a given off-duty assignment.

UNLESS STATED IN THE ABOVE TABLE, NO NIGHT, WEEKEND OR HOLIDAY DIFFERENTIAL

(2) Any off-duty assignments over eight (8) hours shall be paid at a time and a half rate beginning with the ninth hour.

(3) Fee for police vehicle and fuel per hour or part thereof: $20.00. The necessity for a police vehicle at a particular site will be at the determination of the Off-Duty Employment Intake Manager.

(4) Municipal cost sharing: To offset cost for special cultural events, the city will cover a percentage of the total cost for all off-duty police officers, traffic enforcers, and/or crossing guards. This includes the administrative fee cost. Marathons, 5k's and other "runs" are exempt from this cost sharing provision. The City shall cost share as per the below:

A. For special cultural events with total police/traffic enforcer/crossing guard costs less than $10,000.00 the city will cover 25 percent of that cost.

B. For special cultural events with total police/traffic enforcer/crossing guard costs greater than $10,000.00 the city will cover 50 percent of that cost.

F. Administrative costs. An additional fee is hereby established to cover administrative costs, overhead and out-of-pocket expenses of the City. The fee shall be equal to ten percent of the total cost of the police officer/traffic enforcers/crossing guards, but no less than $22.00. For special cultural events, the administrative fee shall not exceed $2,500.00. This additional fee shall not be charged to a nonprofit organization for an event in a City-owned building nor to the Jersey City Housing Authority. The aforesaid rates shall be reviewed every three years commencing January 1, 2014. **[Amended 11-24-2015 by Ord. No. 15-152]**

G. To better facilitate the provisions of subsection E, the Department should provide each event organizer with a single invoice representing all costs from the whole department per event (not including the cost for no-parking signs).

The off-duty employment intake manager or the Director of Public Safety may adjust or waive the administrative fees in cases in which the fee here described would result in undue hardship, be prohibitive or would otherwise undermine the interest of public safety.

H. Cancellation. If a prospective employer fails to notify the off-duty employment intake manager at least 12 hours before the commencement of services that those services are no longer needed, and the off-duty police officer(s), traffic enforcer(s), or crossing guard(s) arrive for the assignment, the prospective employer shall compensate the police officer(s), traffic enforcer(s), or crossing guard(s) for four hours, and those off-duty police officer(s), traffic enforcer(s), or crossing guard(s) will be moved to another off-duty job, if available.

I. Public emergency. The Director of Public Safety, Chief of Police, or ranking Chief of Patrol shall have the authority to order any off-duty personnel engaged in off-duty assignments to respond to an emergency. The Director of Public Safety may terminate an assignment whenever said assignment creates an unacceptable risk to the off-duty police officer, traffic enforcer, or crossing guard or to the citizens of the City. If an off-duty assignment is cancelled or terminated by the Director of Public Safety, the employer shall not be responsible for any compensation or fees until the police officer, traffic enforcer, or crossing guard returns to the assignment.

§ 3-86. Solicitations restricted. [Added 9-11-2013 by Ord. No. 13-081]

No member of the Department of Public Safety, Division of Police shall solicit or accept anything of value as consideration for or in connection with the discharge of his or her official duties. No such member shall solicit the sale of tickets in connection with any fund-raising campaign or request contributions directly or indirectly for the same or solicit anything of value for the benefit of himself or herself or other members of the Department of Public Safety, Division of Police or any other group or organization without written permission of the Director.

§ 3-87. Special law enforcement officers. [Added 9-11-2013 by Ord. No. 13-081]

A. The Director of Public Safety shall have the power to appoint special law-enforcement officers in accordance with the provisions of the Special Law Enforcement Officers Act, N.J.S.A. 40A:14-146.8 et seq. The compensation of such officers shall be determined by Executive Order of the Mayor of the City of Jersey City.

§ 3-87.1. Registry of private outdoor video surveillance cameras. [Added 6-29-2016 by Ord. No. 16-102]

A. Purpose. Pursuant to N.J.S.A. 40:48-1 and 40:48-1.6 et seq., the City has established a voluntary registry of private outdoor video surveillance cameras under the direction of the Jersey City Police. The purpose is to aid local law enforcement in investigating criminal activity that occurred within the vicinity of the camera's location in a timely, efficient and effective manner.

B. Definitions.

Private outdoor video surveillance camera or camera—A device installed outside a residence or business, which, for security purposes, captures footage of an area outside the residence or business.

Registrant—A person who owns a residence or business within the City of Jersey City who registers a private outdoor video surveillance camera with the Jersey City Police pursuant to this Section.

C. Registration.

1. A person who owns a residence or business within the City of Jersey City may register a private outdoor video surveillance camera(s) with the Jersey City Police on a registry form approved by the Chief of Police. Registration of a private outdoor video surveillance camera with the Jersey City Police is not required by this Section and does not constitute a waiver of any rights granted under the Constitutions of the United States or the State of New Jersey.

2. The following information shall be included in the private outdoor video surveillance camera registry and obtained on registry forms approved by the Chief of Police: (1) the name of the person who owns the camera(s); (2) the most recent contact information, including the street address and telephone number of the person who owns the camera(s); (3) the street address of the residence or business where the camera(s) is/are installed; (4) the number of cameras located at the residence or business; (5) the outdoor areas recorded by the camera(s); (6) the means by which the camera's footage is saved or stored, and the duration of time for which the footage is saved or stored; and (7) any additional information deemed necessary by the Chief of Police as set forth on the registry form.

D. Regulations.

1. Information stored in the Jersey City Police private outdoor video surveillance camera registry and obtained on the registry forms pursuant to this Section shall be available for the exclusive use by law enforcement officials to investigate criminal activity within the vicinity of the camera's location(s). Information stored in the registry or contained on the registry forms shall not be considered a public record pursuant to N.J.S.A. 47:1A-1 et seq., N.J.S.A. 47:1A-5 et al., or common law record concerning access to public records. Further, said information shall not be discoverable as a public record by any person, entity, or governmental agency, except upon the issuance of a subpoena by a grand jury or a court order in a criminal matter.

2. The Jersey City Police, as well as any State, county, or municipal law enforcement agency, may contact a person whose information appears in the City's private outdoor video surveillance camera registry established pursuant to this Section in order to request access to any camera's footage which may assist in an investigation of criminal activity that occurred within the vicinity of camera's location(s). A registrant shall not be required to submit the camera's footage to the Jersey City Police or any other law enforcement agency, unless otherwise required by law.

3. No fee shall be charged for the registration, of a private outdoor video surveillance camera(s) with the Jersey City Police. A registrant may remove or change information contained in the registry by contacting the Chief of Police in writing.

4. The Jersey City Police shall verify and update registry information with registrants as deemed necessary by the Chief of Police.

SUB-ARTICLE II

Division of Fire and Emergency Services

§ 3-88. Creation of the Division of Fire and Emergency Services [Added 9-11-2013 by Ord. No. 13-081]

There shall be a Division of Fire and Emergency Services, the head of which shall be the Fire Chief. Within the Division of Fire and Emergency Services, there shall be the Bureaus of Fire Operations and Fire Prevention.

A. The Bureau of Fire Operations shall perform the following functions:

(1) Provide fire-fighting service for the extinguishment of fires and the necessary and incidental protection of life and property throughout the city and upon vessels in any waters within the city or upon any dock, wharf, pier, warehouse or other structure bordering upon or adjacent to such waters and provide for the local enforcement of the Uniform Fire Safety Act. N.J.S.A. 52:27D-192 et seq., as authorized in accordance with N.J.S.A. 52:27D-202.

(2) Subject to the approval of the Director of Public Safety, make, administer and enforce regulations for the control, disposition and discipline of the Division of Fire and Emergency Services, its officers and employees and for the establishment and maintenance of fire stations and the disposition, use and care of its equipment and apparatus.

(3) Direct or cause any vessel moored to or anchored near any dock or pier or in any waters within the city to be removed to and secured at such place as shall be designated by the Director whenever any such vessel shall be a fire or in danger of igniting or may be by reason of its conditions or the nature of its cargo a menace to life or property.

(4) Designate the location of fire alarm, telegraph and signal stations in the city and operate, repair and maintain a fire alarm and signal system.

(5) Investigate the cause, circumstances and origin of fires and report to the police and to the County Prosecutor every case of suspicion of arson.

(6) Have power to inspect and test any automatic or other fire alarm system or fire extinguishing equipment.

(7) Be authorized to enter upon, without fear or hindrance, all premises, grounds, structures, buildings, vessels and passages, whenever necessary, in the performance of his or her duties.

(8) Operate a training program to maintain and improve the fire-fighting efficiency of the members of the Department.

(9) Maintain a Bureau of Fire Prevention and administer the Uniform Fire Code, except as therein otherwise provided.

(10) All regulations previously issued by the Fire Chief shall remain in effect until repealed by the Director.

(11) The Director shall file copies of all regulations with the City Clerk. The failure to file any regulation shall not affect its validity.

B. Bureau of Fire Prevention shall perform the following functions **[Amended 9-23-2014 by Ord. No. 14-117]:**

The Uniform Fire Safety Act, N.J.S.A. 52:27D-192 et seq. The Bureau of Fire Prevention shall conduct periodic inspections of Life Hazard Use Occupancies required by the Uniform Fire Code on behalf of the Commissioner of the New Jersey Department of Community Affairs.

(1) There shall be a Fire Prevention Bureau within the Department of Public Safety, the head of which shall be designated as the Fire Official. The Fire Prevention Bureau shall be the local enforcing agency for the Uniform Fire Safety Act. N.J.S.A. 52:27D-192 et seq., as authorized by the Act.

(2) The Fire Prevention Bureau shall conduct periodic inspections of Life Hazard Use Occupancies required by the Uniform Fire Code on behalf of the Commissioner of the New Jersey Department of Community Affairs.

(3) Local Enforcement: Pursuant to Section 1 of the Uniform Fire Safety Act (P.L. 1983 c. 383), the New Jersey Uniform Fire Code (N.J.A.C. 5:70-1 et seq.) shall be locally enforced in the City.

(4) Agency Designation: The local enforcing agency shall be the Jersey City Division of Fire and Emergency Services through its Fire Prevention Bureau. Fire Prevention Bureau shall hereinafter be known as the local enforcing agency.

(5) Duties: The local enforcing agency shall:

(a) Enforce the Uniform Fire Code in all buildings, structures, and premises within the established boundaries of the City, other than one- and two-unit owner-occupied dwellings used exclusively for dwelling purposes and buildings, structures, and premises owned or operated by Federal Government Interstate Agencies or the State;

(b) Faithfully comply with all the pertinent requirements of the Uniform Fire Safety Act and the Uniform Fire Code.

(6) Organization: The Fire Prevention Bureau shall:

(a) Be under the direct supervision and control of a Fire Official, who shall report to the Director of Public Safety;

(b) Have paid Fire Inspectors.

(7) Appointment, Qualifications, Term of Office, Removal of the Fire Official, Inspectors and/or Legal Counsel:

(a) Fire Official shall be certified by the State, and appointed by this governing body from a list submitted by the Director of Public Safety;

(b) Inspectors and other employees of the enforcing agency shall be appointed by the governing body upon recommendation of the Fire Official. All life hazard use inspectors shall be certified by the State and shall comply with all pertinent Civil Service regulations:

(c) Legal Counsel: The governing body shall specifically appoint legal counsel to assist the agency in enforcing the Uniform Fire Code;

(d) Removal of office: The Fire Official shall be subject to removal by the governing body for just cause. Before removal from office, the Fire Official shall be afforded an opportunity to be heard by the governing body or a hearing officer designated by the same.

(8) Life Hazard Uses: The Fire Prevention Bureau shall carry out the periodic inspections of life hazard uses required by the Uniform Fire Code on behalf of the Commissioner of the New Jersey Department of Community Affairs.

(9) Arson Investigation: There is hereby established within the Department of Public Safety an Arson Investigation Unit. Under the supervision of the Fire Official, the Arson Investigation Unit shall conduct investigations of arson, suspicious fires, undetermined fires, and explosions within the City.

(a) Before any member of the Department of Public Safety may be assigned to the Arson Investigation Unit he/she shall have successfully completed a course of training approved by the Police Training Commission and an arson investigation training course approved by the New Jersey Department of Public Safety;

(b) Members of the Arson Investigation Unit shall have the same powers and authority as police officers within the City while engaged in the actual performance of investigation duties, specifically including the right to carry firearms pursuant to regulations promulgated by the Director of Public Safety of the City.

§ 3-88.1. Fire Prevention Code. [Added 9-23-2014 by Ord. No. 14-117]

Adopt and enforce the State of New Jersey Uniform Fire Code.

§ 3-88.2. Non-life hazard use registration. [Added 9-23-2014 by Ord. No. 14-117]

All premises not classified as "life hazard uses" pursuant to the Uniform Fire Code (with the exception of owner-occupied detached Use Group R-3 structures, used exclusively for dwelling purposes) shall be classified as "non-life hazard uses." Non-life hazard uses shall be registered and have an annual registration fee with the Jersey City Fire Prevention Bureau, which will conduct annual periodic inspections. The registration process will provide accountability for all types of businesses and stored contents as well as

create a safer environment, for the public and will facilitate pre-fire planning by the Jersey City Division of Fire and Emergency Services. Non-life hazard use registration forms are available at the office of the Fire Official located at Memorial Fire Headquarters. All registration applications shall be recorded with the Fire Prevention Bureau and be paid annually. If a business is found operating without a registration or permit, an order to cease operation will be issued and enforced with penalties imposed in accordance with N.J.A.C. 5:70-2.12, N.J.A.C. 5:70-2.12A, and N.J.A.C. 5:70-2.13. Outstanding penalties or fees shall be collected through the Jersey City Municipal Court with issuance of Court Summons appearance.

§ 3-88.3. Commercial/industrial registration fees. [Added 9-23-2014 by Ord. No. 14-117; amended 12-15-2021 by Ord. No. 21-078]

All commercial/industrial locations not registered as life hazard use under the State of New Jersey Uniform Fire Code, shall be registered as a non-life hazard use with the Bureau of Fire Prevention and shall be inspected on an annual basis. The annual fee for this service will be determined by the square footage of the business and shall be paid by the business owner. The fees for non-life hazard use inspections shall be as follows:

Square Footage	Annual Fee
1 sq. ft. to 4,500 sq. ft.	$50.00
4,501 sq. ft. to 8,500 sq. ft.	$75.00
8,501 sq. ft. and above	$100.00

§ 3-88.4. Fee chart. [Added 9-23-2014 by Ord. No. 14-117; amended 12-15-2021 by Ord. No. 21-078]

Residential multiple dwelling: All multiple dwellings not registered as a life hazard use under the State of New Jersey Uniform Code, shall be registered as a non-life hazard use with the Bureau of Fire Prevention and shall be inspected on an annual basis. The annual fee for this service will be as listed in the chart below and shall be paid by property owner:

Number of Residential Units	Annual Fee
1—10 units	$135.00
11—20 units	$225.00
21—30 units	$325.00
31—40 units	$425.00
41—50 units	$525.00
51—75 units	$725.00
76—120 units	$1,000.00
121—175 units	$1,250.00
176—250 units	$1,500.00
251 units or more	$2,000.00

Exceptions: one- or two-family homes - owner occupied.

§ 3-88.5 Non-life hazard use inspections. [Added 9-23-2014 by Ord. No. 14-117]

Non-life hazard use inspections will be conducted by the company officer during the course of their tour of duty.

§ 3-88.6. Fire Prevention Permit types and fees. [Added 9-23-2014 by Ord. No. 14-117; amended 12-15-2021 by Ord. No. 21-078]

A. Permit types. In addition to the registration of life hazard uses, certain activities and uses are required to be regulated by permits. Permits are classified into six types with a permit fee for each type levied on an annual basis. Those seeking to obtain a permit must pay the required fee to the Bureau of Fire Prevention which is empowered to monitor these activities and conduct periodic inspections.

Type 1 Permit:

The following activities require a Type 1 Permit:

Bonfires;

The use of a torch or flame-producing device(s) to remove paint from, or seal membrane roof on, any building or structures;

Individual portable kiosks or displays when erected in a covered mall for a period of less than 90 days, and when not covered by a type 2 permit;

The use of any open flame or flame producing device(s) in connection with any public gathering, for purposes of entertainment, amusement, or recreation in places of public assembly;

The possession or use of explosives or blasting agents;

The use of any open flames or flame-producing device in connection with the training of non-fire service personnel in fire suppression or extinguishment procedures;

The occasional use in any building of a multipurpose room, with a maximum permitted occupancy of 100 or more for amusement, entertainment or mercantile type purposes;

The storage or handling of Class I flammable liquids in closed containers of aggregate amounts of more than ten gallons, but not more than 660 gallons inside a building, or more than 60 gallons, but not more than 660 gallons outside a building;

The storage or handling of Class II or IIIA combustible: liquids in closed containers of aggregate amounts of more than 25 gallons, but not more than 660 gallons inside a building, or more than 60 gallons, but not more than 660 gallons outside a building;

Any permanent cooking operation that requires a suppression system in accordance with N.J.A.C. 5:70-4.7(g) and is not defined as life hazard use in accordance with N.J.A.C. 5:70-2.4;

The use as a place of public assembly, for a total of not more than 15 days in a calendar year, of a building classified as a commercial farm building under the Uniform Construction Code.

Helicopter landings.

Type 1A Permit. The following activities require a type 1A permit:

Mobile food vendors utilizing combustible fuels, i.e. propane.

Type 2 Permit. The following activities require a type 2 permit:

Bowling lane resurfacing and bowling pin refinishing involving the use and application of flammable liquids or materials;

Carnivals and circuses employing mobile structure used for human occupancy;

The use of a covered mall in any of the following manners:

To placing or construct temporary kiosks display booths, concession equipment, or the like in more than 25 percent of the common area of the mall;

As a place of assembly;

Any use which involves open flames or flaming devices;

Any use which involves the use or display of liquid or gas-fueled powered equipment; or

Any use which involves using liquefied petroleum gas, liquefied natural gas, and compressed flammable gas in containers exceeding five lbs. capacity.

Type 3 Permit. The following activities require a type 3 permit:

Industrial processing ovens or furnaces operating at approximately atmospheric pressures and temperatures not exceeding 1,400 degrees Fahrenheit which are heated with oil or gas fuel or which contain flammable vapors from the products being processed;

Any wrecking yard or junkyard; or

The storage or discharging of fireworks.

Type 4 Permit. The following activities require a type 4 permit:

Storage or use at normal temperature and pressure of more than 2,000 cubic feet of flammable compressed gas or 6,000 cubic feet of non-flammable compressed gas;

The production or sale of cryogenic liquids; the storage or use of more than ten gallons of liquid oxygen, flammable cryogenic liquids or cryogenic oxidizers; or the storage of more than 500 gallons of non-flammable, non-toxic cryogenic liquids;

The storage, handling, and processing of flammable, combustible and unstable liquids in containers and portable tanks as in aggregate amounts of more than 660 gallons;

The storage, handling, and processing of the following except medicines, beverages, foodstuff, cosmetics, and other common consumer items when packaged according to commonly accepted practices:

More than 55 gallons of corrosive liquids;

More than 500 pounds of oxidizing materials;

More than 10 pounds of organic peroxides;

More than 500 pounds of nitromethane;

More than 1,000 pounds of ammonium nitrate;

More than one microcurie of radium not contained in a sealed source or sources;

More than one millicurie of radium or other radiation material in a sealed source or sources:

Any amount of radioactive material for, which a specific license from the Nuclear Regulator Commission is required;

More than ten pounds of flammable solids;

Any installation of liquefied petroleum gas or liquefied natural gas utilizing storage containers of over 2,000 gallons individual water capacity or with an aggregate water capacity exceeding 4,000 gallons; The melting, casting, heat treating, machining, or grinding of more than ten pounds of magnesium per working day;

Use of smoke generating device(s);

Heliports.

Type 5 Permit. The following activity requires a type 5 permit:

Storage of hazardous materials in any quantity in any building more than six stories above grade, or more than 75 feet above the lowest level accessible to firefighting apparatus.

B. Type 1A permit - $25.00;

Type 1 - $125.00;

Type 2 - $250.00;

Type 3 - $375.00;

Type 4 - $500.00;

Type 5 - $1,500.00.

C. Certificate of Smoke Detector and Carbon Monoxide Alarm Compliance (CSDCMAC) - (N.J.A.C. 5:70-2.3) - Fee: $75.00.

D. Property search fee: $40.00.

E. Fire incident report: Two pages or less, $5.00; for additional pages over two, $2.00.

F. Fire investigation reports: Two pages or less, $5.00; for additional pages over two, $2.00.

G. Fire code status inspection: $150.00.

H. Apparatus stand-by, per hour per piece of apparatus: $500.00; includes fire apparatus utilized for fireworks, helicopter operations (minimum two apparatus), standpipe flow tests or any other operation deemed necessary by the Fire Official that requires Fire Division monitoring. It shall be the discretion of the Fire Official as to the number of apparatus required.

I. Inspector stand-by: Supervisor, $70.00 per hour: Inspector, $55.00 per hour.

J. Fire boat stand-by: $500.00 per hour.

K. The use of flammable gas cylinders in food vending carts or vehicles in any amount shall require a type 1A permit for a $25.00 fee.

§ 3-88.7. Technical amendments—Reserved. [Added 9-23-2014 by Ord. No. 14-117]

§ 3-88.8. Solicitations restricted. [Added 9-23-2014 by Ord. No. 14-117]

No member of the Department of Public Safety shall solicit or accept anything of value as consideration for or in connection with the discharge of his or her official duties. No such member shall solicit the sale of tickets in connection with any fund-raising campaign or request contributions directly or indirectly for the same, or solicit anything of value for the benefit of himself or herself or other members of the Division of Fire and Emergency Services, or any other group or organization, without the written permission of the Director of the Division of Fire and Emergency Services.

§ 3-88.9. Rules and regulations. [Added 9-23-2014 by Ord. No. 14-117]

A. The 1937 Edition of the Rules, Regulations and Manual of Instructions, consisting of four hundred twelve (412) pages, is hereby adopted, ratified and promulgated as and for rules of the Division of Fire and Emergency Services.

B. All the other rules, regulations and general orders promulgated since 1937 by the Director of Public Safety and the Director of the Division of Fire and Emergency Services, and which have been transmitted to the City Clerk, who is to keep them on file, are hereby ratified, adopted and promulgated as the rules and regulations governing the Department of Public Safety and the Division of Fire and Emergency Services.

§ 3-89. Rules and regulations. [Added 9-11-2013 by Ord. No. 13-081]

A. The 1937 Edition of the Rules, Regulations and Manual of Instructions consisting of four hundred twelve (412) pages is hereby adopted, ratified and promulgated as and for rules of the Department of Public Safety.

B. All the other rules, regulations and general orders promulgated since 1937 by the Chief or the Director of Public Safety which have been transmitted to the City Clerk, are hereby ratified, adopted and promulgated as the rules and regulations governing the Department of Public Safety.

§ 3-90. Division of Communications and Technology. [Added 9-11-2013 by Ord. No. 13-081]

A. There is hereby created within the Department of Public Safety the Division of Communications and Technology, the head of which shall be the Director of Communications.

B. The Division of Communications and Technology shall include the following subdivisions:

(1) Centralized radio repair: and

(2) Centralized radio room.

SUB-ARTICLE III

Division of Parking Enforcement

§ 3-91. Reserved.

Editor's note—Ord. No. 22-040, adopted April 27, 2022, amended the Code by repealing former § 3-91. Former § 3-91 pertained to the Division of Parking Enforcement, and derived from Ord. No. 15-138, adopted October 28, 2015.

SUB-ARTICLE IV

Division of Municipal Emergency Management and Homeland Security

§ 3-92. Division of Municipal Emergency Management and Homeland Security. [Added 10-28-2015 by Ord. No. 15-138]

A. Within the Department of the Public Safety there shall be a Division of Municipal Emergency Management and Homeland Security, the head of which shall be the Municipal Emergency Management Homeland Security Coordinator/Director.

B. The Municipal Emergency Management Homeland Security Coordinator/Director shall serve for a term of three years.

C. The Municipal Emergency Management Homeland Security Coordinator/Director shall be responsible for the planning, coordinating, response and recovery from all facets of natural and manmade disasters and the conduct of Emergency Management/Homeland Security operations within the City of Jersey City and shall be a member and shall serve as chairman of the Local Emergency Planning Council (LEPC).

D. The Municipal Emergency Management Homeland Security Coordinator/Director may appoint one or more Deputy Municipal Emergency Management Homeland Security Coordinators/Directors with the approval of the Mayor.

SUB-ARTICLE V

Division of Quality of Life

§ 3-93. Division of Quality of Life. [Added 9-23-2020 by Ord. No. 20-074]

There shall be a Division of Quality of Life within the Department of Public Safety, the head of which shall be the Municipal Prosecutor.

A. The Municipal Prosecutor shall be the chief prosecuting attorney of the City and shall be appointed by the Mayor, with the advice and consent of the Municipal Council, for a term of one year from the date of his or her appointment, or until the appointment of a successor, as provided for in N.J.S.A. 2B:25-4 and N.J.S.A. 2B:25-9.

B. The authority of the Director of Public Safety over the Municipal Prosecutor shall only extend to budgetary, personnel, and purchasing matters and shall not extend to the prosecutorial functions exercised by the Municipal Prosecutor.

§ 3-93.1. Office of the Municipal Prosecutor. [Added 9-23-2020 by Ord. No. 20-074; amended 8-18-2021 by Ord. No. 21-053]

A. There is hereby created within the Division of Quality of Life the Office of Municipal Prosecutor, the head of which shall be the Municipal Prosecutor designated as Chief Municipal Prosecutor.

B. The Office of the Municipal Prosecutor shall represent the State, the County, or the City in the litigation of all matters within the statutory jurisdiction of the City of Jersey City Municipal Courts as defined by law, including N.J.S.A. 2B:12-17 and N.J.S.A. 2B:25-5. The Chief Municipal Prosecutor shall have authority over all assistant municipal prosecutors and per diem municipal prosecutors that appear before the Jersey City Municipal Court on behalf of the Office of the Municipal Prosecutor.

C. The Office of the Municipal Prosecutor shall litigate appeals from the Jersey City Municipal Court that are not otherwise in the jurisdiction of any County or State prosecuting office or agency.

D. The Office of the Municipal Prosecutor shall serve as the prosecuting party for the City before the Board of Alcoholic Beverage Control and the Cannabis Control Board.

§ 3-93.2. Resident Response Center. [Added 9-23-2020 by Ord. No. 20-074]

A. Within the Division of Quality of Life there is hereby created a Resident Response Center, the head of which shall be the Director of the Resident Response Center.

B. The Resident Response Center shall accept and respond to constituents' complaints and inquiries on all aspects of City services and operations to enhance constituent confidence in government services by expediting the handling of citizens' complaints and inquiries in coordination with the various departments of City government and autonomous agencies. **[Added 9-23-2020 by Ord. No. 20-074]**

§ 3-93.3. Code Compliance. [Added 9-23-2020 by Ord. No. 20-074]

A. Within the Division of Quality of Life there is hereby created an Office of Code Compliance, the head of which shall be the Director of Code Compliance.

B. The Office of Code Compliance shall administer the investigation, inspection, and enforcement functions of the Division of Quality of Life. The code enforcement inspectors of this office shall be known as quality of life inspectors and shall be versed in the subject matter of all sections of this Code assigned to the division and shall be versed in court procedure.

C. The Office of Code Compliance shall administer and enforce sections of this Code relating to:

(1) Chapter 287, Solid Waste.

(2) Chapter 254, Property Maintenance, with the exception of specific references to the New Jersey Uniform Construction Code.

(3) Chapter 296, Streets and Sidewalks.

(4) Other sections of this Code as may be assigned to it for administration and enforcement.

D. The Office of Code Compliance shall conduct affirmative programing that educates the public on compliance with this quality of life matters covered by this Code, including nuisance reduction and neighborhood beautification.

§ 3-93.4. Mayor's Quality of Life Taskforce. [Added 9-23-2020 by Ord. No. 20-074]

A. Within the Division of Quality of Life there is hereby convened the Mayor's Quality of Life Taskforce. The Municipal Prosecutor, in his or her capacity as the chief prosecuting authority for the charging and litigation of all quality of life offenses in the jurisdiction of the Jersey City Municipal Court, shall be the chairperson of the Taskforce.

B. The Taskforce shall be a working group composed of at least one representative from each City division or office with enforcement authority under this Code or New Jersey statute. The Taskforce shall collaborate to solve complex problems relating to quality of life.

(1) Mutual aid and cooperative efforts across City departments and agencies shall be an essential component in assertively addressing residents' quality of life concerns and abating violations of quality of life ordinances and statutes.

(2) The focus of the Taskforce shall be driven by resident engagement via the Resident Response Center, neighborhood associations, and other community outreach.

§§ 3-94—3-98. Reserved.

ARTICLE XII

Department of Health and Human Services*

§ 3-99. Department created; head. [Amended 8-19-1992 by Ord. No. 92-106; 12-14-2016 by Ord. No. 16-188]

There shall be a Department of Health and Human Services, the head of which shall be the Director of Health and Human Services; provided, however, that in accordance with N.J.S.A. 26:3-19, the licensed health officer shall be the general agent of the City of Jersey City for the enforcement of health ordinances and the sanitary laws of the State.

§ 3-100. Organization of Department. [Amended 6-28-1982 by Ord. No. MC-195; 12-11-1986 by Ord. No. C-298; 2-11-1992 by Ord. No. MC-414; 8-19-1992 by Ord. No. 92-106; 7-28-1993 by Ord. No. 93-073; 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052; 11-7-01 by Ord. No. 01-121; 2-13-02 by Ord. No. 02-008; 06-28-2006 by Ord. No. 06-080; 9-11-2013 by Ord. No. 13-081; 12-14-2016 by Ord. No. 16-188; 4-11-2018 by Ord. No. 18-025]

Within the Department of Health and Human Services there shall be the following divisions and offices:

A. Division of Environmental Health.

B. Division of Veterans Affairs.

C. Division of Senior Citizens Affairs **[Added 2-10-2015 by Ord. No. 15-005]**

D. Division of Disease Prevention.

E. Division of Community Health and Wellness.

F. Division of Food and Nutrition.

G. Division of Animal Care and Control.

H. Division of Injury Prevention.

I. Division of Immigrant Affairs.

***Editor's note—**Ord. No. 13-081, adopted September 11, 2013, amended the Code by repealing former Art. XII, §§ 3-93—3-99, and renumbering subsequent Arts. XIII—XVIII as new Arts. XII—XVII. Former Art. XII pertained to the Department of Fire and Emergency Services; and derived from Ord. No. C-50, adopted September 25, 1985; Ord. No. C-963, adopted June 8, 1989; Ord. No. 97-060, adopted September 24, 1997; Ord. No. 01-132, adopted December 12, 2001; Ord. No. 03-093, adopted July 16, 2003; and Ord. No. 09-030, adopted March 25, 2009.

§ 3-101. Adopt a Lot Program. [Added 7-15-2015 by Ord. No. 15-088; amended 3-23-2023 by Ord. No. 23-024]

The City shall establish an Adopt A Lot Program under the direction of the Department of Public Works, Division of Solid Waste/Recycling.

A. Any non-profit corporation and association desiring to participate in the program shall complete and submit an application, in writing or electronically, to the Director of the Division of Solid Waste/Recycling at the Department of Public Works. The application shall be in the form on file with the City Clerk.

B. Upon completion of the required application forms, the Director of the Division of Solid Waste/Recycling shall recommend approval of the application to the Municipal Council, which shall, by ordinance, approve a lease between the City and the approved applicant.

C. Consistent with N.J.S.A. 40A:12-15, in no event shall any lease be entered into for, with, or on behalf, of any commercial, business, trade, manufacturing, wholesaling, retailing, or other profit-making enterprise, and the Lessees shall not use the City- owned property for any sectarian, denominational or religious purpose. City-owned land leased under this provision shall be used for purposes as listed and selected on the lease agreement and for no other purpose whatsoever without the express written approval of the Business Administrator.

D. The lease term shall be for one (1) year and consideration for each lease shall be one dollar ($1.00) a year.

E. The City reserves the right to terminate the lease at its convenience without cause by providing thirty (30) days' prior notice.

§ 3-102. Repealed.

Editor's note—Former § 3-101, Community Action Agency, and § 3-102, Division of Youth Services, were repealed Ord. No. 97-052, adopted August 13, 1997.

§ 3-103. Division of Veterans Affairs; functions. [Added 4-11-2018 by Ord. No. 18-025]

There is hereby created within the Department of Health and Human Services the Division of Veterans Affairs, the head of which shall be the Director of Veterans Affairs. Under the supervision of the Director of Health and Human Services and the Director of Veterans Affairs, the Division of Veterans Affairs shall:

A. Develop forward-thinking opportunities and partnerships to improve the quality of life of veterans, military personnel, and both groups' respective families, by collaborating across both private and public sectors in at least the following areas:

   1. Coordinate and oversee implementation of citywide policy and community relationships to facilitate entrepreneurship, small business ownership, job skills training, and sustainable employment among veterans, military personnel, and both groups' respective families.

   2. Monitor status of veteran homelessness and hunger, engaging with existing City services and community organizations to facilitate home ownership, affordable housing, transitional shelter, and nutrition opportunities for veterans, military personnel, and both groups' respective families.

   3. Organize opportunities for civic engagement, community dialogues, public forums, and local volunteerism which celebrate and strengthen connections between communities and veterans, military personnel, and both groups' respective families.

B. Develop capacities for total health and wellness in veterans, military personnel, and both groups' respective families, by providing assistance and supervision in at least the following areas:

   1. Guide and educate veterans, military personnel, and both groups' respective families on how best to inform themselves about and apply for any benefits, services, preference rights, or tax exempt statuses for which military service provides eligibility under federal, state, and local laws.

   2. Devise and execute programs that anticipate, assess, and address the comprehensive needs of veterans, military personnel, and both groups' respective families.

   3. Propose and evaluate studies of issues reported to impact veterans, military personnel, and both groups' respective families, and act as the City's liaison to agencies and organizations involved in veterans affairs.

C. Develop interdepartmental competencies and relationships to best care for veterans, military personnel, and both groups' respective families, and all departments and agencies of the City of Jersey City shall cooperate with the Division of Veterans Affairs in at least the following areas:

   1. Train City personnel on mental health, career advancement disruption, and other topics relevant to veterans, military personnel, and both groups' respective families due to the nature of military service.

2. Identify and track metrics involving employment by and use of City resources as relates to veterans, military personnel, and both groups' respective families.

3. Cultivate opportunities within City initiatives for engagement and participation of veterans, military personnel, arid both groups' respective families, and devise resources to assist in determining how military educational or technical accreditation, qualifications, or work experience could responsibly serve to meet civilian employment requirements.

Editor's note—Former § 3-103, Division of Senior Citizen Affairs, was repealed by Ord. No. 02-008, adopted February 13, 2002. Subsequently, Ord. No. 18-025, adopted April 11, 2018, added a new § 3-103.

§§ 3-104, 3-104.1. Repealed.

Editor's note—Ord. No. 13-081, adopted September 11, 2013, amended the Code by repealing former §§ 3-104 and 3-104.1 in their entirety. Former § 3-104 pertained to the Division of Cultural Affairs, and derived from Ord. No. 01-121, adopted November 7, 2001; Ord. No. 02-008, adopted February 13, 2002; and Ord. No. 06-080, adopted June 28, 2006. Former § 3-104.1 pertained to the Office of Veteran's Affairs, and derived from Ord. No. 02-008, adopted February 13, 2002; and Ord. No. 06-080, adopted June 28, 2006.

§ 3-104.2. Repealed.

§ 3-105. Division of Environmental Health; functions. [Amended 7-18-2007 by Ord. No. 07-129; 12-14-2016 by Ord. No. 16-188]

(1) Under the supervision and direction of the Director of Health and Human Services and the Director of Inspections, the Division of Environmental Health shall:

(a) Administer the state laws and provisions of this Code which confer functions, powers and duties upon a board or department of health or a local health officer.

(b) Enforce the state laws and the provisions of the Jersey City Code for the prevention and control of disease and perform the related inspections essential thereto, including any provisions herein and in state laws relating to industrial hygiene and to air pollution.

(c) Prepare and supply statistical and educational material for purposes of internal administration and reporting or for public education.

(d) Administer a public health nursing service and a parochial school health program.

(e) Reserved.

(f) Arrange for the following services, to be performed either in-house or by outside contractor:

[1] For bacteriological and chemical analysis of milk, food and water;

[2] For the diagnosis and control of communicable diseases; and

[3] For research requirements of other city departments.

(g) Establish and implement a sterile syringe access program in the form and manner consistent with state law and in accordance with the Blood Borne Disease Harm Reduction Act.

(h) Administer the lead testing notification program for all licensed Day Care Center operators established under Section 182-35 of the Jersey City Code and licensed by the State of New Jersey pursuant to N.J.S.A. 30:5B-3. **[Added 4-23-2008 by Ord. No. 08-047]**

(i) Supervise the administration of various health service programs for senior citizens. **[Added 9-11-2013 by Ord. No. 13-081]**

(2) All departments and agencies of the City of Jersey City shall cooperate with the Division of Environmental Health and provide the Division with any requested information necessary to administer state laws and provisions of this code and to carry out the functions and duties of the Division. **[Added 9-22-1988 by Ord. No. C-823]**

(3) Within the Division of Environmental Health, there shall be a Bureau of Licensing, the head of which shall be the Director of Licensing. The Bureau of Licensing shall issue all licenses administered by the Department of Health and Human Services,

(4) Within the Division of Environmental Health, there shall be a Bureau of Healthy Homes, which shall be responsible for:

(a) Consolidating existing lead prevention and rodent control programs;

(b) Developing and implementing a strategic plan for the City to reduce or eliminate housing-related health hazards and to promote housing that is healthy, safe, affordable, and accessible;

(c) Monitoring for lead exposure and providing case management and environmental investigations of lead poisoned children;

(d) Building a consortium of strategic partners to address unsafe and/or unhealthy housing conditions;

(e) Assuring that follow up care and interventions are provided for vulnerable populations;

(f) Establishing surveillance system to include not only blood lead levels, but also environmental tests results and selected healthy homes;

(g) Training existing registered environmental health specialists in lead inspection techniques as well as Healthy Homes principles.

(5) Within the Division of Environmental Health, there shall be a Bureau of Inspections, which shall be responsible for all inspections required by the Department of Health and Human Services.

Cross references—Animals, Ch. 90; health and sanitation, Ch. 182.

§ 3-106. Division of Injury Prevention. [Added 4-11-2018 by Ord. No. 18-025]

There is hereby created within the Department of Health and Human Services the Division of Injury Prevention, the head of which shall be the Director of Injury Prevention. Under the supervision of the Director of Health and Human Services and the Director of Injury Prevention, the Division of Injury Prevention shall:

A. Investigate and disseminate information concerning the epidemiology, causes and prevention of serious bodily injuries and injury-related deaths, including those with intentional and unintentional causes:

B. Develop, implement, promote, and evaluate strategies, programs and methods which reduce:

1. The prevalence and incidence of serious bodily injuries and injury-related deaths; and

2. The traumatic stress caused by such injuries;

C. Facilitate communication and cooperation among people and organizations with the ability to reduce:

1. The prevalence and incidence of serious bodily injuries and injury-related deaths; and

2. Treat the traumatic stress caused by such incidents.

Editor's note—Ord. No. 16-188, adopted December 14, 2016, amended the Code by repealing former § 3-106 in its entirety. Former § 3-106 pertained to the Division of Clinical Services, and derived from Ord. No. 97-052, adopted August 13, 1997. Subsequently, Ord. No. 18-025, adopted April 11, 2018, added a new § 3-106.

§ 3-107. Division of Senior Citizens Affairs. [Added 2-10-2015 by Ord. No. 15-005]

A. Creation of the Division of Senior Citizens Affairs. There is hereby created within the Department of Health and Human Services the Division of Senior Citizens Affairs.

B. Functions.

(1) Under the supervision and direction of the Director of Health and Human Services, the Division of Senior Citizens Affairs shall:

(a) Supervise the administration of various social, recreational, educational, and transportation for the City's senior citizens.

(b) Organize and operate senior citizen centers and the multipurpose services in relation thereto.

(c) Propose and evaluate studies of senior citizen problems and programs and acting as city liaison with community groups involved in senior citizen affairs.

§ 3-107.1. Division of Disease Prevention. [Added 12-14-2016 by Ord. No. 16-188]

These is hereby created within the Department of Health and Human Services the Division of Disease Prevention, the head of which shall be the Director of Disease Prevention. Under the supervision of the

Director of Health and Human Services, the Division of Disease Prevention shall be responsible for the administration of the all child health programs and the Preventive Medicine Clinic which shall administer programs for the prevention of sexually transmitted diseases (STD).

§ 3-107.2. Division of Community Health and Wellness. [Added 12-14-2016 by Ord. No. 16-188]

There is hereby created within the Department of Health and Human Services the Division of Community Health and Wellness, the head of which shall be the Director of Community Health and Wellness. The Division of Community Health and Wellness shall have responsibility for the administration of the Affordable Care Act and the Right to Know Law and shall develop and administer programs to provide health education and personalized health improvement programs.

§ 3-107.3. Division of Food and Nutrition. [Added 12-14-2016 by Ord. No. 16-188]

There is hereby created within the Department of Health and Human Services the Division of Food and Nutrition, the head of which shall be the Director of Food and Nutrition, The Division of Food and Nutrition shall provide education and training related to food preparation and administer the Women's Infants and Children (WIC) program, the Meals on Wheels program, the Senior Lunch Program and shall supervise all farmer's markets authorized by the City.

§ 3-107.4. Division of Animal Care and Control. [Added 12-14-2016 by Ord. No. 16-188]

There is hereby created within the Department of Health and Human Services the Division of Animal Care and Control. The Division of Animal Care and Control shall provide a variety of services related to the well-being of animals and residents who come in contact with them, including:

(a) State-mandated animal control services, including picking up stray and abandoned animals, rabies prevention, responding to animal bites and attacks, and oversight of dangerous dogs;

(b) Responding to animal nuisance complaints;

(c) Investigating reports of animal cruelty or neglect;

(d) Educating residents on pet care and other animal issues; and ordinance enforcement.

§ 3-107.5. Division of Immigrant Affairs. [Added 4-11-2018 by Ord. No. 18-025]

There is hereby created within the Department of Health and Human Services the Division of Immigrant Affairs, the head of which shall be the Director of Immigrant Affairs. Under the supervision of the Director of Health and Human Services and the Director of Immigrant Affairs, the Division of Immigrant Affairs shall:

A. Develop forward-thinking opportunities and partnerships to improve inclusion and integration of immigrants, refugees, new Americans, and their respective families into Jersey City communities, by collaborating across both private and public sectors in at least the following areas:

1. Coordinate and oversee implementation of citywide policy and community skills training, and sustainable employment among immigrants, refugees, Americans, and their respective families.

2. Monitor status of immigrant housing and refugee resettlement needs, engaging with existing City services, refugee resettlement agencies and partners, and other community organizations to facilitate home ownership, affordable housing, transitional shelter, and nutrition opportunities for immigrants, refugees, new Americans, and their respective families.

3. Organize opportunities for civic engagement, community dialogues, public forums, and local volunteerism which celebrate and strengthen connections between communities and immigrants, refugees, new Americans, and their respective families.

B. Develop capacities for total health and wellness in immigrants, refugees, new Americans, and their respective families, by providing assistance and supervision in at least the following areas:

1. Guide and educate immigrants, refugees, New Americans, and their respective families on how best to inform themselves about and apply for any benefits or services for which their respective citizenship or immigration statuses might make them eligible under federal, state, and local laws.

2. Devise and execute programs that anticipate, assess, and address the comprehensive needs of immigrants, refugees, new Americans, and their respective families, and facilitate provision of language and literacy classes, citizenship preparation classes, U visa certification, and similar services.

3. Propose and evaluate studies of issues reported to impact immigrants, refugees, New Americans, and their respective families, and act as the City's liaison to refugee resettlement agencies and partners, immigrant advocacy organizations, and other agencies and organizations involved in immigrant affairs.

C. Develop interdepartmental competencies and relationships to best care for immigrants, refugees, new Americans, and their respective families, and all departments and agencies of the City of Jersey City shall cooperate with the Division of Immigrant Affairs in at least the following areas:

1. Train City personnel on differences between types of immigration statuses, cultural competencies and cross-cultural communication, trauma informed care, and other topics relevant to immigrants, refugees, new Americans, and their respective families.

2. Identify and track metrics involving employment by and use of City resources as relates to immigrants, refugees, new Americans, and their respective families, maintaining data on the diversity of languages available in City resources and services, interdepartmental training on City policies regarding non-discrimination on the basis of immigration status or national origin, interdepartmental training on City policies regarding assistance and transparency in immigration enforcement operations, and similar services.

3. Cultivate opportunities within City initiatives for engagement and participation of immigrants, refugees, new Americans, and their respective families, and devise resources to assist in determining how foreign educational or technical accreditation, qualifications, or work experience could responsibly serve to meet domestic employment requirements in local private and public sectors.

§ 3-107.6. Community Chaplain. [Added 9-12-2018 by Ord. No. 18-096]

This position is created in accordance with N.J.S.A. 40A:14-141. The position will be a volunteer position and under the supervision of the Director of Health and Human Services. However, all Community Chaplain tasks will be at the direction of the Chief of Police or his designee.

§ 3-107.6.1. Qualifications. [Added 9-12-2018 by Ord. No. 18-096]

Any person appointed as a Community Chaplain shall be a clergyman or clergywoman in good standing in the religious body from which he/she is selected. He or she shall be trained in accordance with the rules and regulations of the Jersey City Police Department and N.J.S.A. 40A:14-141.

§ 3-107.6.2. Rank and salary. [Added 9-12-2018 by Ord. No. 18-096]

Any person appointed as Community Chaplain shall serve in that capacity without rank or salary or any benefits.

§ 3-107.6.3. Term of office. [Added 9-12-2018 by Ord. No. 18-096]

A person appointed as Community Chaplain shall serve for a period of one year from date of appointment. Upon the expiration of one year, he/she shall continue to serve until reappointed or notified that he/she will not be reappointed.

§ 3-107.6.4. Appointment. [Added 9-12-2018 by Ord. No. 18-096]

The Mayor shall appoint Chaplains in accordance with this chapter.

§ 3-107.7. Division of Community Relations & Social Services. [Added 9-8-2022 by Ord. No. 22-073]

There is hereby created within the Department of Health and Human Services the Division of Community Relations & Social Services, the head of which shall be the Director of Community Relations & Social Services. The Director of Community Relations & Social Services' education requirements must include: graduation from an accredited college or university with a Masters degree in social work, sociology, guidance or counseling. Under the supervision of the Director of Health & Human Services and the Director of Community Relations & Social Services, this Division shall:

A. The Director of Community Relations & Social Services serves as Project Director of the Partnership for a HealthierJC, an HHS boundary-spanning program designed to increase engagement across public / private sectors and increase health outcomes in Jersey City.

    1. This Division staff includes clinically trained professionals, with ability to read and interpret clinical data and health analytics, in order to identify and publish Jersey City's urgent health priorities for public health professionals and the broader community. This Division also includes staff members with proficiency in contractual management, public information delivery and graphic design. The team works collaboratively to translate clinical data and info into palatable public health communications for delivery to the broader community.

2. Develop strategies to engage and enroll community organizations into the Partnership for a HealthierJC to increase overall community health outcomes. Manage all (290 current partner orgs.) partner relationships and assist community partners to promote health programs and events to the broader community.

3. Manage, maintain and oversee the HHS Department Partnership Portal, www.healthierjc.com. Management activities include: Content creation, interviewing community partners to author, edit and maintain blogs highlighting partnership work, partner outreach, enrollment and training, maintain city-wide health calendar, and provide technical, editorial and creative support needed to maintain a robust partner portal.

4. Manage, direct and create grant application, review, award and reporting structures for the HealthierJC mini-grant program.

5. Manage Partner Internship Program for the HHS Department in tandem with local universities (currently with SPU/TREX) to provide on-site learning opportunities for local students. The program enhances HHS public health professionals with talented students majoring in Biology, Biochemistry, Biotechnology, Chemistry, Physics, and Mathematics. This division team liaises with all HHS Division leads to develop TREX curriculum supportive projects for intern onboarding and supervision.

B. Develop, plan, organize, direct, and set public health communications policy for all HHS Community Relations and Social Services Programs - educational, vocational, social and cultural - for the residents of the Jersey City community.

1. Coordinate HHS Department-wide branding and public health communications to inform residents about current and urgent health events, trends, alerts and recalls, in alignment with public health information incoming from federal, state and local health agencies including, but not limited to, the CDC, FDA, USDA, WHO, NJDOH and Hudson Regional Health Commission. This Division works in tandem with the City Hall communications team, providing timely and urgent health alerts and guidance, as needed. (This work expanded greatly during the Covid-19 pandemic. Increased public health communications strategies developed during this period have increased engagement exponentially and are being sustained to insure public health information delivery to the public we serve.)

2. Plan and construct monthly public health information calendar of relevant health topics; assign pertinent topics to HHS Division Leads and manage schedule to ensure ongoing and timely delivery of public health communications to the community. The Division of Community Relations & Social Services team takes in data and content, from all HHS Divisions and external partners, and translates/designs/schedules accessible social media ads and messaging on the Official HealthierJC Twitter Page. Division team identifies effective social media tools and maintains a library of all HHS health education and promotional data and materials.

3. Assist all HHS Division Directors with planning and implementation of publicity and public information campaigns to inform residents about available programs and services. Liaise with City Hall Communications, Office of Emergency Management (OEM) and Department of Public Works (DPW) for posting of public messaging for health.

4. Manage Contractual Relationship with the HHS Social Services Search Engine (current provider - Find Help). Management includes: Ongoing customer relations meetings, planning trainings for all HHS Staff, and other front-facing municipal offices needing to connect residents to crucial social services.

5. Field, distribute and address all public inquiries incoming from the "Contact Us" section on HealthierJC.

Editor's note—Ord. No. 22-073, adopted September 8, 2022, amended the Code by adding a new § 3-107.6. In order to avoid duplication of section numbers, the editor has redesignated the provisions as a new § 3-107.7.

§ 3-108. Repealed.

Editor's note—Ord. No. 97-052, adopted August 13, 1997, amended the Code by repealing former § 3-108 in its entirety. Former § 3-108 pertained to the Jersey City Office of Employment and Training, and derived from Ord. No. 93-073, adopted July 28, 1993.

§ 3-109. Repealed.

Editor's note—Ord. No. 13-081, adopted September 11, 2013, amended the Code by repealing former § 3-109 in its entirety. Former § 3-109 pertained to the Division of Senior Citizen Affairs, and derived from Ord. No. 02-008, adopted February 13, 2002; and Ord. No. 06-080, adopted June 28, 2006.

ARTICLE XIII
Department of Finance

§ 3-110. Department created; head. [Added 7-17-2019 by Ord. No. 19-088]

There shall be a Department of Finance, the head of which shall be the Director of the Department of Finance. The Director of the Department of Finance shall, prior to his or her appointment, be qualified by training in the administration of governmental or large corporate budgets, in management policies, in the analysis of budgetary costs, and in the administration and enforcement of grants. The Director of the Department of Finance shall oversee the divisions and offices contained therein. Each division within the Department of Finance shall be supervised by a director and shall comply with all applicable laws. Each Division Director shall be appointed by the Director of the Department of Finance.

§ 3-111. Organization of Department. [Added 7-17-2019 by Ord. No. 19-088; 6-30-2021 by Ord. No. 21-042; 6-30-2021 by Ord. No. 21-043; 4-27-2022 by Ord. No. 22-040]

A. Within the Department of Finance, there shall be the following divisions:

1. Division of Management and Budget;

2. Division of Collections;

3. Division of Treasury and Debt Management;

4. Division of Accounts and Control;

5. Purchasing; Division of Purchasing and Central Services;

6. Division of Grant Administration.

§ 3-112. Division of Management and Budget. [Added 7-17-2019 by Ord. No. 19-088; amended 4-27-2022 by Ord. No. 22-040]

A. Creation of the Division of Management and Budget; Director in charge; qualifications. Within the Department of Finance, there shall be a Division of Management and Budget, the head of which shall be the Director of the Division of Management and Budget. The Director of the Division of Management and Budget shall, prior to his or her appointment, be qualified by training in the administration of governmental or large corporate budgets, in management policies, in the analysis of budgetary costs, and in the administration and enforcement of grants.

B. Division of Management and Budget; functions.

(1) Prepare and prescribe uniform forms and procedures for budget preparation for all departments and other spending agencies.

(2) Assist the Business Administrator in the review and analysis of budget requests.

(3) Develop and install records and procedures to enable each department to evaluate work load and performance reports.

(4) Assist in the preparation of the budget document and related appropriation statements.

(5) Evaluate from a budgetary viewpoint various municipal programs and administer budgetary considerations as to all grants received by the City.

(6) Supervise management services, studies and programs.

(7) Conduct continuing studies for determining quality of work and devising improvements in efficiency and economy.

(8) Preparation of recommended budget.

(i) The City budget shall be prepared by the Mayor with the assistance of the Business Administrator and the Budget Officer. During the month of November, the Mayor shall require all Department Directors to submit requests for appropriations for the ensuing budget year and to appear before the Mayor or the Business Administrator at public hearings, which shall be held during that month, on the various requests. On or before January 15, the Mayor shall submit to the Council his or her recommended budget, together with such explanatory comment or statement as he or she may deem desirable.

(ii) The budget document shall be prepared in such form as is required by law for municipal budgets. There shall be appended to the budget a detailed analysis of all items of expenditure and revenue as far as practicable. Such analysis shall include a comparison of the total number of positions of each class and grade to be authorized by the budget with the actual number thereof employed at the beginning of the preceding budget period. So far as practicable, such analysis shall include appropriate statements of the cost of performance of functional programs and activities stated in terms of quantitative, countable units of work for operating and capital expenditures. The Business Administrator, with the assistance of the Budget Officer, shall prepare an estimate of non-property-tax revenues anticipated for the support of each annual budget.

(9) Supervision of administration of the budget by Business Administrator.

(i) The Business Administrator shall supervise the administration of each annual budget. In consultation with Department Directors, he or she shall establish quarterly or such other periodic allotments or appropriations as he or she may deem necessary. Each department shall plan and administer its expenditure program within the limits of such allotments.

(ii) If at any time during the budget year the Business Administrator shall ascertain that the City government is faced with the probability of incurring a cash deficit for the current year, he or she shall reconsider the work programs and allotments of the several departments. Upon such reconsideration and with the approval of the Mayor, he or she may revise budget allotments so as to forestall, as far as possible, the making of commitments and expenditures in excess of the revenues to be realized during the fiscal year.

§ 3-113. Division of Collections. [Added 7-17-2019 by Ord. No. 19-088]

A. Creation of the Division of Collections; City Tax Collector in charge; qualifications. There shall be a Division of Collections, which shall be headed by the City Tax Collector, who shall be a certified tax collector.

B. City Tax Collector; functions. The City Tax Collector shall perform the duties assigned to him or her by the Director of the Department of Finance and state law and shall supervise the following responsibilities of his /her division relating to the collection of real estate taxes, assessments, and other municipal charges:

(1) Administer all ordinances and state statutes necessary for the billing, collection and enforcement of other municipal charges that he/she is responsible for.

(2) Maintain the necessary records and periodically report upon his/her activities in order to keep municipal governing officials and citizens aware of the state of municipal finances.

(3) Impose interest and other penalties for the nonpayment of real estate taxes, assessments and other municipal charges.

(4) Ensure that all taxpayers are treated fairly and honestly and that there is no discrimination in his/her performance.

(5) Assign by private sale municipally owned tax sale certificates pursuant to N.J.S.A. 54:5-113: except that no municipally owned tax sale certificate shall be assigned to any employee of the City of Jersey City.

(6) Post payments to account records and produce delinquent notices as is required.

(7) Monitor and ensure the payment of land taxes.

(8) Hire and monitor as is necessary external auditing firms to ensure compliance as is required by the Local Fiscal Affairs Law, N.J.S.A. 40A:5-1 et seq.

C. Fees.

(1) The City Tax Collector shall impose the service charges as provided in Chapter 160, Fees and Charges, to be added to any account owing to the City.

(2) If the payment for which a check or other written instrument has been returned for insufficient funds is for a tax or special assessment, the sendee charge as provided in Chapter 160, Fees and Charges, shall be included on any list of delinquent accounts prepared for the enforcement of liens.

(3) Any service charge authorized by Subsection C(1) dealing with checks returned for insufficient funds shall be collected in the same manner prescribed by law for the collection of the account for which the check or other written instrument was tendered in cash or by certified or cashier's check.

(4) Persons aged sixty-five (65) and older shall be exempt from the fees specified under Subsection C(1) dealing with redemption statements, issuance of duplicate tax bills or responses to inquiries regarding tax payments.

§ 3-113.1. Division of Treasury and Debt Management. [Added 7-17-2019 by Ord. No. 19-088]

A. Creation of the Division of Treasury and Debt Management; City Treasurer in charge. There is hereby created within the Department of Finance, the Division of Treasury and Debt Management, the head of which shall be the City Treasurer. He or she shall be assisted in the operation of the Division by such personnel as he or she shall select with the approval of the Director of the Department of Finance.

B. Division of Treasury and Debt Management functions.

(1) Receive funds entrusted to or under the control of any department, administrative unit or statutory agency and deposit all funds received by him or her in depositories authorized by the Council by resolution.

(2) Have custody of all investments and invested funds of the City or in possession of the City in fiduciary capacity, except as otherwise provided by law.

(3) Have the safekeeping of all bonds and notes of the City and the receipt and delivery of City bonds and notes for transfer, registration or exchange.

(4) Receive, account for separately and safely keep and disburse all moneys raised and received for the public schools, provided that no money shall be paid out of the public school funds by the Treasurer except on warrant signed by the President and Clerk of the Board of Education pursuant to an order or resolution passed at a stated meeting of the Board of Education and entered in its minutes.

(5) Make disbursements of the City funds upon warrant of the Business Administrator by an individual warrant check for each bill, claim wage and salary payment, provided that the person entitled to receive the same shall specify the purpose for which it is drawn and the account or appropriation to which it is chargeable, and shall bear such signatures as are required by the Administrative Code.

(6) Keep a full account of all cash receipts and disbursements by the Division according to the system of accounts approved by the Business Administrator and, at least once a month and more often if the Council requires, furnish the Business Administrator with a statement of all money received and expended by him, including school moneys.

Editor's note—Ord. No. Ord. No. 19-088, adopted July 7, 2019, amended the Code by adding a new § 3-114. In order to prevent duplication of section numbers, the editor has renumbered the provisions as § 3-113.1.

§ 3-113.2. Division of Accounts and Control. [Added 7-17-2019 by Ord. No. 19-088]

A. Creation; officer in charge; assistance. There is hereby created in the Department of Finance, the Division of Accounts and Control, the head of which shall be the Comptroller. The Comptroller shall be assisted in the operation of the Division by the Chief Comptroller.

B. Functions. Under the direction of the Comptroller, the Chief Comptroller shall be responsible for the following functions:

(1) Develop, maintain and enforce a uniform system of accounts for all departments and agencies of the City and all federal and state grants and subsidized programs.

(2) Maintain and operate the City's central bookkeeping and accounting records to sound principles, including such records and reports as may be prescribed or approved by the Business Administrator for the determination of the cost of performance of each functional program or activity in such work units as may be appropriate thereto.

(3) Certify searches for tax, water and other liens on real property as may be authorized by law after such information has been received from the respective departments; and charge for the use of the City the fee required pursuant to law for any such search, and the Division may appoint or designate one of its employees as Official Tax Searcher to perform these functions.

(4) Preaudit all bills, claims and demands against the City, including payrolls, and require each department head to certify that the materials, supplies or equipment have been received and accepted as specified and that the services have been duly rendered.

(5) Audit receipts and disbursements of each department and require reports thereon to be made daily or at such intervals as will most efficiently protect the public interest.

(6) Control all expenditures to assure that budget appropriations are not exceeded and maintain such books and records as may be required for the proper exercise of such budgetary control, including an encumbrance system of budget operations.

(7) Review each proposed expenditure and commitment to be made on behalf of any City department for conformity with the Charter and applicable provisions of the Jersey City Code and authorize only such expenditures and commitments as conform with the requirements of the Code.

Editor's note—Ord. No. Ord. No. 19-088, adopted July 7, 2019, amended the Code by adding a new § 3-115. In order to prevent duplication of section numbers, the editor has renumbered the provisions as § 3-113.2.

§ 3-113.3. Reserved.

Editor's note—Ord. No. 21-043, adopted June 30, 2021, amended the Code by repealing former § 3-113.3 in its entirety. Former § 3-113.3 pertained to the Division of Payroll, and derived from Ord. No. 19-088, adopted July 17, 2019.

§ 3-113.4. Purchasing; division of purchasing and central services. [Added 6-30-2021 by Ord. No. 21-042]

There is hereby created a Division of Purchasing and Central Services, the head of which shall be the Director of the Department of Finance, or, if qualified, his designee. The head of the Division of Purchasing and Central Services shall be a Registered Public Purchasing Specialist (RPPS) and shall have a minimum of four years' experience in commercial or governmental purchasing.

A. Purchase controls, orders and requisitions.

(1) All purchases made and contracts awarded for any supplies, materials, equipment or services shall be pursuant to a written requisition from the Director of the department, office or agency whose appropriation will be charged. No purchase shall be made nor obligation incurred unless the Chief Financial Officer certifies that a sufficient unencumbered balance of appropriation is available to pay therefor.

(2) The Director of the department, office or agency making a request for the purchase of one or more motor vehicles shall submit a copy of the request to the City Council Finance Committee. Such request shall include a statement of the reasons for the request and shall identify the vehicles to be replaced, if any.

B. Conformance with statutes required; procedures.

(1) All purchases made and contracts awarded by the Purchasing Agent shall conform with the requirements of the Local Public Contracts Law of the State of New Jersey, and all specifi-

cation shall be drafted in a manner to encourage free, open and competitive bidding. In addition to the requirements of the Local Public Contracts Law*, the Purchasing Agent shall comply with the following procedures:

(a) The Purchasing Agent shall prepare or cause to prepared, under his or her supervision and approval, specifications for the items or services to be purchased.

(b) Prior to and no later than the insertion of the advertisement in the newspapers for solicitation of bids, the Purchasing Agent shall contact as many appropriate vendors which may be interested in and which supply said items or services as he or she can determine and submit to them the specifications for said items or services and request that they submit sealed bids to him or her at the date, time and place set forth in said advertisement. A description of the items or services to be advertised and the vendors contacted shall be filed with the Clerk of the Council and with the Director of Minority and Women Business Enterprise Development Program prior to advertisement. The list shall indicate which of the vendors contacted qualify as minority or women business enterprises.

(c) The Purchasing Agent shall receive the sealed bids from the vendors at the date, time and place as set forth in said advertisement.

(d) The Purchasing Agent shall open the sealed bids and determine the lowest responsible bidder. He or she shall then submit the same to the Council by way of resolution at the next special or regular meeting of the Council pursuant to law.

(2) The Purchasing Agent shall attach to said resolution a fact sheet which will contain the following information:

(a) The names and addresses and the amounts of the bids of other vendors who had submitted bids.

(b) The names and addresses of all vendors who were contracted by the Purchasing Agent who were requested by him or her to submit bids.

(c) Whether or not said vendors have submitted bids.

(d) The names and addresses of the vendors who have received or picked up the proposals.

(e) If any of the above vendors did not submit bids, the Purchasing Agent, after receiving the sealed bids at the time and place for said reception, shall contact said vendors who did not submit bids, either orally or in writing, and attempt to determine why such vendors did not or would not submit bids.

(3) In addition to the above information placed on the fact sheet attached to the resolution, the Purchasing Agent shall set thereon any irregularities that may be found in the bid documents of the lowest bidder, no matter how slight or minor said irregularities may be, for consideration by the Council.

***State law reference**—See N.J.S.A. 40A:11-1 et seq.

(4) Whenever practicable, materials and contractual services shall be procured under the New Jersey Division of Purchases and Property, under the state contract procedure.

C. Public bidding procedures.

(1) The Purchasing Agent is authorized to advertise for and receive bids in connection with all purchases, contracts or agreements in accordance with the provisions of the Local Public Contracts Law. The governing body, however, shall be the contracting agent and shall award such contracts and purchases as may be recommended by the Purchasing Agent.

(2) The Purchasing Agent shall determine the method of presenting bids, except that such method shall be confined to either personal presentation at bid opening or by registered mail. In either case, the method shall be stated in the public advertisement, and if registered mail, proper safeguards shall be provided to ensure the security of bids. Bids received after the time stated in the advertisement shall be considered as nonresponsive and shall be returned unopened to the sender.

(3) Following review and evaluation of bids, the Purchasing Agent shall recommend the lowest responsible bidder to the governing body, which shall award the contract or take such other action as it deems proper. The Purchasing Agent may, however, reject all bids and readvertise if he or she deems it to be in the best interest of the City.

(4) A low bidder whose bid is rejected by the Purchasing Agent may appeal, in writing, to the Director of the Department of Finance within ten days of the mailing date of the Purchasing Agent's decision. A copy of the appeal shall be filed with the City Clerk. Upon appeal, the Director of the Department of Finance shall schedule a hearing of the appeal within ten days following receipt of the appeal. At the appeal hearing the appellant or his or her legal counsel may present evidence in his or her behalf. The hearing shall be held in accordance with reasonable rules of due process. The appointed hearing officer shall file his or her decision and a statement of reasons for his or her decision with the City Clerk within ten business days following the hearing.

D. Emergency contracts; procedure. The City of Jersey City shall follow the procedure set forth in N.J.S.A. 40A:11-6.

E. Awarding of contracts for professional and extraordinary unspecifiable services.

(1) Subject to Subsection E(2), before submitting any proposed contract for professional or extraordinary unspecifiable services to the Council for approval, a Department Director shall solicit quotations, whenever practicable, for any contract of $7,500.00 or more. If a Department Director recommends that the contract be awarded on the basis of other than the lowest quotation received or considers it impracticable to solicit quotations, he or she shall file a statement of explanation of the reason or reasons why competitive quotations are considered impracticable.

(2) There shall be exempted from the procedures established under Subsection E(1) any contract submitted by the Corporation Counsel for the appointment of special counsel to represent any officers or employees of the City in any legal proceeding or to represent the Jersey City Medical Center or its agents, servants and employees.

F. Division of Purchasing and Central Services; Purchasing Agent in charge; qualifications; functions.

(1) The head of the Division of Purchasing and Central Services shall be the Purchasing Agent. Prior to appointment, the Purchasing Agent shall have four years' experience in commercial or governmental purchasing.

(2) Under the direction of the Director of the Department of Finance, the Purchasing Agent shall:

(a) Administer the execution and performance of all contracts awarded by the Municipal Council.

(b) Purchase, store and distribute all supplies, materials and equipment and contract for all services required by any department; except that the Department of Public Works shall administer contracts for public works or improvements.

(c) Establish and enforce specifications for service, supplies, materials and equipment.

(d) Inspect or supervise the inspection of all deliveries of supplies, materials and equipment and the rendition of contractual services and determine their quality, quantity and conformance with specifications.

(e) Have charge of any central storerooms and warehouses that may be established.

(f) Transfer to or between departments, offices and agencies and from or to central stores such supplies, materials and equipment as need appears and arrange for the sale of surplus or obsolete items.

(g) With the approval of the Council, transfer obsolete or unneeded equipment and supplies to any autonomous board, commission or agency created by the City of Jersey City.

(h) Supervise and administer all joint purchasing agreements between the City and other governmental agencies.

(i) Supervise the sale of surplus equipment and materials.

(j) Within 12 months subsequent to the effective date of this subsection, the Purchasing Agent of the City of Jersey City must conduct a review of existing product and service specifications to determine whether existing specifications either require or exclude the use of recycled products, reusable products or products designed to be recycled, for use by all departments, agencies, offices, boards and commissions.

(k) Within the same 12-month period, all City departments and agencies must recommend changes to the Purchasing Agent to ensure that performance standards for particular products can be met and that specifications are not overly stringent and to recommend changes to ensure that specifications will incorporate a requirement for the use of recycled materials, reusable products and products designed to be recycled to the maximum extent

practicable, subject to an alternative showing that either the performance of the product will be jeopardized or that the product will negatively impact health, safety or operational efficiency.

(l) Outside contractors bidding to provide products or services to the City, including printing service, must demonstrate that they will comply with the specifications described in Subsection F(2)(j).

(m) City staff will work to encourage the copier industry to develop copiers that will accept recycled paper. In addition, recycled paper shall be purchased and used in all copy machines that will accept it.

(n) The Purchasing Agent shall purchase only new copiers which are capable of utilizing recycled paper.

(o) When recycled products are used, reasonable efforts shall be undertaken to label the products to indicate that they contain recycled materials. City departments and agencies shall use for their masthead stationery and envelopes recycled paper that includes postconsumer recycled content and may indicate on the paper that they contain recycled material. Other recycled products used by the City may also indicate that they contain recycled material.

(p) Contracts shall be awarded for recycled products, reusable products offered as alternative to disposable products and products designed to be recycled where they are offered as alternatives to nonrecyclable products. The contract award shall be based on the lowest responsible bid or price quoted by the supplier or suppliers offering recycled products.

(q) The City will cooperate to the greatest extent feasible with neighboring City and County governments in an effort to develop a comprehensive, consistent and effective procurement effort intended to stimulate the market for recycled products, reusable products and products designed to be recycled.

(r) All related City departments and agencies shall work cooperatively to further the purposes of this chapter. The City's economic development process shall incorporate the goal of stimulating the market for recycled material.

(s) The Purchasing Agent shall annually specify in an annual report, to be filed with the City Clerk, the quantity of RCRA Guideline products with recycled content in terms of their weight and percentage of acquisition in comparison to products without recycled content.

(t) This section establishes a recycled product procurement policy required pursuant to federal law (42 U.S.C. § 6962 of the Resource Conservation and Recovery Act).

(3) Green Product Procurement Policy. Under the direction of the Director of the Department of Finance, the Purchasing Agent shall purchase green products pursuant to the following policy:

(a) Purpose. This subsection shall be known as the "Green Products Procurement Policy." Its purpose is to promote the purchase of products which minimize damage to human health and the City's natural environment, to reduce carbon emissions in the City and to stimulate the market for recycled, reused, and biodegradable products.

(b) Definitions. For the purposes of Subsection F(3) the following definitions apply:

"Biodegradable" means the ability of a substance, material, or product ingredient to readily decompose by the action of microbes.

"Cleaning Product" means a dishwashing detergent or compound, household cleaner, commercial cleaner, industrial cleaner, metal cleaner; degreasing compound or other substance used or intended to be used for cleaning purposes.

"Conventional products" are hereby defined as those products which the Purchasing Agent has evaluated for their effects on human health and the environment and has determined inappropriate for classification as green products, or those products that the Purchasing Agent has not yet so evaluated.

"Electronic device" means:

[1] any cathode ray tube, any product containing a cathode ray tube, any liquid crystal display (LCD), plasma screen or other flat panel television or computer monitor or similar video display product, any battery containing lead, cadmium, lithium or silver, any computer central processing unit that contains one or more circuit boards and includes any desktop computer or any laptop computer or computer peripherals including but not limited to, any keyboard, mouse and other pointing device, printer, scanner, facsimile machine and card reader, and any copier, but not including any automobile, or large piece of commercial or industrial equipment containing a cathode ray tube, a cathode ray tube product, a flat panel display or similar video display device that is contained within, and not separate from, the larger piece of equipment, or any device used by emergency response personnel; or

[2] any other device powered by electricity designated by the Purchasing Agent.

"ENERGY STAR™ Products" are hereby defined as those products which meet the energy efficiency standards set forth by the United States Environmental Protection Agency (EPA) and the U.S. Department of Energy for compliance with its ENERGY STAR® program.

"ENERGY STAR™ electronic device" is hereby defined as any ENERGY STAR™ product that meets the definition of an electronic device.

"Excessive costs" are hereby defined as costs of purchasing green products where either the immediate cost of purchasing the green product exceeds by 75 percent the immediate cost of the comparable conventional product in the current fiscal year, or where the average yearly cost of the green product exceeds by 75 percent the average yearly cost of comparable conventional product when amortized over the entire lifetime of both products. When evaluating the costs of green products and comparable conventional products, the Purchasing Agent shall compare total costs of each including, but not limited to: the costs of maintenance, insurance, disposal, replacement, safety and health, training, material management and potential liability costs.

"Green products" are hereby defined as those products which the Purchasing Agent has determined would have a lesser or reduced negative effect on human health and the environment when compared with comparable conventional products and services, where such comparison includes consideration of all phases of the product's life cycle, including raw materials acquisition, production, manufacturing, packaging, transportation, distribution, operation, maintenance, and disposal, including potential for reuse or ability to be recycled.

"Green purchasing" is hereby defined as the practice of purchasing green products.

"Green Seal" is the non-profit organization, located at 1001 Connecticut Avenue, NW, Suite 827, Washington, DC 20036-5525 which evaluates and certifies products based on each product's environmental impact throughout its life cycle.

"Green Seal™ certified products" are those products which green seal has evaluated and tested for environmental impact and has awarded the Green Seal™ certification, and which maintain such standards so as to allow such certification.

"Pre-consumer waste material" means materials or by-products generated after manufacturing of a product is completed, but before the product reaches the end-use consumer. Pre-consumer waste material does not include home scrap, which is those scrap metals or by-products generated by a company that can be used by the generating company or parent company.

"Post-consumer waste material" means only those materials generated by a consumer which have served their intended end use and which have been separated or diverted from solid waste. Wastes generated during production or an end product are excluded. All materials collected from residential sources in a municipal recycling program may be considered post-consumer.

"Recycled content" means the total amount of pre-consumer waste material and post-consumer recovered material introduced as a feed stock in a material production process, usually expressed as a percentage.

"Recyclable product" means a product which, after its intended end use, 25 percent of the product has been diverted from the solid waste stream for use as a raw material in the manufacture of another consumer or procurable product. For the purposes of this definition, burning or composting of products may not be considered diversion.

"Recycled material" means material and byproducts that have been recovered or diverted from solid waste and that can be utilized in place of raw or virgin material in manufacturing a product. It is derived from post-consumer recycled material, manufacturing waste, industrial scrap, agricultural waste, and other waste material, but does not include material or byproducts generated from, and commonly reused within, an original manufacturing process.

"Toxic or hazardous substance" means any substance that, because of its quantity or concentration, or physical or chemical characteristics, poses a significant present or potential harm to human health and safety or the environment if released into the workplace or environment."

"Purchasing Agent" is hereby defined as the Purchasing Agent for the City of Jersey City or his or her designees.

(c) Mandatory product evaluation. The Purchasing Agent shall, in consultation with the City department(s) ordering or leasing the product(s), evaluate all products in the categories listed in Subsections (l)—(n) below for their environmental impact. The Purchasing Agent shall then classify as green products those products which, considering the totality of their life cycle, have a reduced effect on human health and the environment, when compared with comparable products that serve a similar function.

(d) Permitted product evaluation. The Purchasing Agent may, in consultation with the City department(s) ordering or leasing the product(s), evaluate for environmental impact such other products as he or she deems appropriate and may classify as green products those products which, considering the totality of their life cycle, have a reduced effect on human health and the environment when compared with comparable products that serve a similar function.

(e) Guidance for green product classification. The Purchasing Agent, when evaluating and classifying products as "green products," shall consult:

[1] the Comprehensive Procurement Guideline for Products Containing Recovered Materials, as set forth in part 247 of Title 40 of the United States Code of Federal Regulations;

[2] the EPA's Affirmative Procurement Plan entitled "EPA's Final Guidance on Environmentally Preferable Purchasing;" and

[3] the U.S. Department of Health and Human Service's booklet entitled "Purchasing Green products and Services at the U.S. Department of Health and Human Services" issued by the office of the Assistant Secretary for Administration and Management, Office of Acquisition Management and Policy in July, 2006 (and as amended and supplemented).

[4] Any similar instructional materials recently or later made available by the EPA, the U.S. Department of Health and Human Services, or the N.J. Department of Environmental Protection which may be reasonably instructive in determining whether a product should qualify as a green product.

(f) Classification of third-party certified, recycled, and biodegradable products. When determining whether to classify a product as a green product, the Purchasing Agent shall give substantial consideration to whether products which have achieved GreenSeal™ certification or equivalent third-party certification, whether products are Biodegradable, whether

products are recyclable products and whether products are composed of ten percent or greater recycled content. GreenSeal™ certified products and products which have achieved equivalent third-party certification shall be classified as green products unless they contain dangerous levels of toxic or hazardous substances, as defined in Subsection (i), or unless there is a compelling reason not to so classify them. Compelling reasons against classification of such products as green products may include, but are not limited to:

[1] excessive distance a product must be shipped throughout its life-cycle

[2] environmentally harmful packaging

[3] product's lack of fuel efficiency or energy efficiency

[4] product's emission of chlorofluorocarbons (CFCs); and

[5] product's significant lack of durability.

(g) Requirement for purchasing green products. Subject to paragraph (h) below, the Purchasing Agent shall purchase green products over comparable conventional products whenever the cost of the green product does not exceed by 25 percent the cost of comparable conventional product, and may purchase green products over comparable conventional products when the cost of green product does not exceed by 75 percent the cost of the comparable conventional product. When evaluating the cost of a green product and a comparable product, the Purchasing Agent shall compare total costs over the life of the item, including, but not limited to: the costs of maintenance, insurance, disposal, replacement, safety and health, training, material management and potential liability costs.

(h) Waiver of green product preference. Wherever there exists one or more significant concerns regarding the purchase or lease of a green product, including excessive costs, health, safety, performance, compatibility, lack of availability within a reasonable period of time, or statutory prohibitions the Purchasing Agent may waive the preference for purchasing a green product and may purchase, lease, or allow the purchase or lease of comparable conventional products to the extent such concerns require, subject to Subsection (i)[3]. Reasons for such a waiver shall be detailed in writing by the Purchasing Agent and maintained in the Office of the Purchasing Agent.

(i) Toxic or hazardous substances. The presence of toxic or hazardous substances is to be considered in product classification and purchasing as follows:

[1] The Purchasing Agent shall not classify as green products any products which he or she determines contain dangerous levels of toxic or hazardous substances including, but not limited to lead, mercury, cadmium, hexavalent chromium, polybrominated biphenyls or polybrominated diphenyl ethers.

[2] The Purchasing Agent shall consider a product's achievement of Green Seal Certification or equivalent third-party certification as compelling evidence that the level of toxic or hazardous substances in the product is not dangerous.

[3] The Purchasing Agent shall not select products with dangerous levels of toxic or hazardous substances for purchase or lease except where:

[a] Purchasing Agent has waived the green product requirement pursuant to material concerns specified in Subsection (h) above; and

[b] There is no comparable conventional product available that addresses the material concerns necessitating the waiver but does not contain dangerous levels of toxic or hazardous substances.

(j) Maintenance of information about green products. The Purchasing Agent shall develop and maintain lists, descriptions and other relevant documentary information about green products and recycled products and make such information available to all City departments whenever possible.

(k) Purchasing or lease contract specifications. The Purchasing Agent shall review and modify current and future procurement requirements so that contract specifications, clauses and solicitation language address the standards of Subsection F(3).

(l) Electronic devices. In accordance with Subsections [1]—[5] below, the Purchasing Agent shall evaluate all electronic devices purchased or leased by the City for environmental impact, and determine whether all such electronic devices shall be to classified as green products.

[1] Except as indicated in paragraph (i) above, electronic devices issued the ENERGY STAR™ title shall be considered green products for the purposes of this ordinance.

[2] The Purchasing Agent may also classify electronic devices which are not ENERGY STAR™ products as green products. In determining such classification, the Purchasing Agent shall consult those guidelines and standards issued, or to be issued, by the New Jersey State agency which is, or will be, charged with establishing energy-efficient guidelines, in addition to the guidelines denoted in paragraph (e) and (f) above.

[3] Subject to Subsections [4] and [5] below, when purchasing or leasing new electronic devices or replacing existing electronic devices the City shall select those which are both ENERGY STAR™ products and green products, where available, over those which are green products but not ENERGY STAR™ Products.

[4] In accordance with Subsection (i) above, wherever an ENERGY STAR™ electronic device contains dangerous levels of toxic or hazardous substances, it shall not be considered a green product and shall not be selected over other electronic devices which are green products.

[5] Whenever valid concerns regarding the purchase or lease of a ENERGY STAR™ electronic device exist, including health, safety, performance, availability, statutory prohibitions and/or excessive costs, the Purchasing Agent may waive the requirement for purchasing the ENERGY STAR™ electronic device, and may purchase, lease, or

allow the purchase or lease of comparable non-ENERGY STAR™ products to the extent such concerns require. Reasons for such a waiver shall be detailed in writing by the Purchasing Agent and maintained in the contract file.

(m) Carpets. In accordance with [1] and [2] below, the Purchasing Agent or his or her designee shall evaluate all carpets, carpet cushions, and carpet adhesives purchased or leased by the City for environmental impact, and determine whether all such products shall be classified as green products:

[1] The Purchasing Agent may consider any widely accepted industry recommendations for reduced volatile organic compounds when classifying carpeting products in addition to the guidelines denoted in paragraphs (e) and (f) above.

[2] No carpet, carpet cushion, or carpet adhesive purchased by any City department shall contain the following volatile organic compounds in any significant concentration:

[a] for carpet 4-phenylcyclohexene, formaldehyde or styrene;

[b] for carpet cushions, butylated hydroxytoluene, formaldehyde or 4 phenylcyclohexene; and

[c] for carpet adhesives, formaldehyde or 2-ethyl-hexanol.

(n) Miscellaneous products. The following are hereby designated for green product evaluation. The Purchasing Agent, in consultation with the City department ordering the product, shall evaluate all products within each category as to each product's environmental impact to determine if each product shall be classified as a green product:

[1] Cleaning products;

[2] antifreeze;

[3] insulation products;

[4] recycled plastic products;

[5] re-manufactured laser printer toner cartridges;

[6] paint;

[7] re-manufactured tires and products made from recycled tire rubber, including rubber mats and play field surfaces;

[8] lights and light bulbs.

(o) Reclassification. The Purchasing Agent shall have the authority to change classification status of any product by either adding or removing such product from the list of green

products provided he or she has good cause to reclassify and does so according to the principles set forth in subsections (e), (f) and (i). Good cause to reclassify shall include but not be limited to:

[1] Changes in the physical makeup or manufacture of the product or packaging which result in a material change in the product's net impact on human health, safety, or the environment.

[2] Changes in the distribution or transportation of the product which result in a material change in the product's net impact on human health, safety, or the environment.

[3] Purchasing Agent's discovery of information previously unknown to him or her regarding the presence or absence of dangerous levels of toxic or hazardous substances in the product, the threat any such substances impose, or newly discovered hazards of substances previously not considered hazardous.

[4] Purchasing Agent's discovery of information previously unknown to him or her regarding product's net impact on human health, safety, or the environment.

[5] Changes in the product's status as a GreenSeal™ product, an ENERGY STAR™ product or other comparable changes in third-party certification status.

(p) The City of Jersey City will not purchase products containing in whole or in part wood from tropical forests or temperate rainforests excepting those woods which are proven to have been harvested in an environmentally sound manner in accordance with the guidelines set forth in Appendix A.

The City will not allow the use or purchase of products containing in whole or in part wood from tropical forests or temperate rainforests by any entity either using monies provided by the City of Jersey City for fulfillment of contracts or purchasing agreements, or on leased properties belonging to the City.

APPENDIX A

Terms of this resolution will be met if it can be proven through an independent certification program approved by the Forest Stewardship Council that the tropical forest or temperate rainforest wood product has come from a forest operation that meets the following conditions*:

Local Involvement

Local communities are involved in all stages of planning and management of a diverse array of forest products for sustainable yields, including non-timber forest products.

Land Rights

Projects must not interfere with aboriginal or traditional land rights of indigenous peoples, or other current land tenants.

Ecology

Timber harvesting cannot adversely affect beneficial physical processes such as climatic regulations, the surface or ground water quality or the overall watershed function.

Timber harvesting must maintain soil productivity and not increase erosion rates.

Timber harvesting must not use synthetic or other harmful pesticides or herbicides.

Timber harvesting must not diminish biological diversity of flora and fauna including tree species.†

The potential for continuous harvest of all timber and non-timber forest products must be maintained.

* At this time there are certain independent programs that certify timber production in the tropics and in temperate regions as meeting these and other conditions. These include but are not limited to the Smart Wood™ Program of the Rainforest Alliance, and Scientific Certification Systems. Wood products labeled as Smart Wood™ or SCS Certified would meet the above conditions and would be considered acceptable as meeting the conditions of this ordinance.

† Forest Stewardship Council (FSC)-accredited certifications in old growth tropical rainforests are not currently meeting this criterion and are therefore excluded from this exemption. The Forest Stewardship Council is an international body accepted as an overseer of independent certifiers. The Forest Stewardship Council guidelines have met with approval by organizations around the world.

(4) Green vehicle procurement policy. Under the direction of the Director of the Department of Finance, the Purchasing Agent in consultation with the Department of Public Works shall purchase green vehicles pursuant to the following policy:

(a) Purpose. This subsection shall be known as the "Green Fleet Vehicle Initiative." Its purpose is to promote the purchase of products which minimize damage to human health and the City's natural environment, to reduce carbon and greenhouse gas emissions in the City, to reduce the City's dependence on fossil fuels, and reduce the City's costs by increasing the fuel efficiency of its fleet of non-emergency vehicles.

(b) Definitions. For the purposes of Subsection F(4) the following definitions apply:

"Alternative fuel vehicles" mean vehicles which utilize any combination of one or more alternative fuels as a means to produce all of the energy necessary for their locomotion.

"Alternative fuels" include 100 percent biodiesel fuel (B100), blends of 20 percent biodiesel blend stock (B20) or higher, Ethanol, blends of 85 percent ethanol (E85) or higher, compressed natural gas, propane, hydrogen, methanol, electricity or any fuel that is substantially non-petroleum in nature, is not gasoline or diesel, and is defined as an alternative fuel by the U.S. Dept of Energy through the authority granted by the Energy Policy Act of 1992.

"Bio-based automotive lubricants" mean motor oil and refined lubricants such as hydraulic and transmission fluid and similar oils that utilize biological products or renewable animal, marine, or forestry materials.

"Biodiesel fuel" or "biodiesel" is hereby defined as a fuel comprised of mono-alkyl esters of long chain fatty acids derived from vegetable oils or animal matter, designated B100 or "neat biodiesel", that meet the requirements for fuels and fuel additives established by the Federal Environmental Protection Agency and standards established by the American Society of Testing and materials (ASTM) according to ATSM D 6751.

"B5" means a blend of five percent biodiesel and 95 percent petroleum that meets the most current applicable ASTM standards.

"B10" means a blend of ten percent biodiesel and 90 percent petroleum that meets the most current applicable ASTM standards.

"B20" means a mixture of 20 percent biodiesel and 80 percent petroleum that meets the most current applicable ASTM standards.

"E10" means a blend of ten percent ethanol and 90 percent gasoline that meets the most current applicable ASTM standards.

"E85" means a blend of 85 percent ethanol and 15 percent gasoline that meets the most current applicable ASTM standards.

"Diesel" means petroleum based liquid that is suitable for use as fuel in diesel powered vehicles.

"Ethanol" means ethyl alcohol, a flammable liquid used or sold for the purpose of blending or mixing with gasoline.

"Excessive costs" are hereby defined as costs of purchasing green vehicles where either the immediate cost of purchasing the green vehicle exceeds by 30 percent the immediate cost of purchasing a non-green vehicle in the current fiscal year, or where the projected average yearly cost of the green vehicle exceeds by 30 percent the average yearly cost of purchasing and operating the non-green vehicle. Average yearly cost is to be amortized over the entire lifetime of both the green vehicle and non-green vehicles and calculations shall compare

purchase price, financing costs, shipping costs, maintenance and repair costs, cost of procuring or producing fuel or parts, purchasing discounts, projected economies of scale, and resale value.

"Fuel efficient vehicles" means non-green vehicles which are rated at both 20 or more miles/gallon in city driving and 29 or more miles/gallon in highway driving according to the U.S. Environmental Protection Agency (EPA) and U.S. Department of Energy's Fuel Economy Guide.

"Green vehicles" mean either alternative fuel vehicles and or hybrid electric vehicles.

"Hybrid electric vehicles" mean vehicles that get a substantial percentage of the power necessary for their locomotion from an electric motor powered by a battery pack which supplements an internal combustion engine that runs on gasoline or diesel, and which are rated by the U.S. Environmental Protection Agency (EPA) and U.S. Department of Energy's Fuel Economy Guide at least 30 miles/gallon in city driving and 25 miles/gallon in highway driving.

"Purchasing Agent" is hereby defined as the Purchasing Agent for the City of Jersey City or his or her designees.

(c) Green vehicles required for new purchases or leases. Subject to Subsections (d)—(f) below, the Purchasing Agent shall:

[1] Purchase or lease only green vehicles where such vehicles are available.

[2] Where such a green vehicle is not available or where purchase of a green vehicle has been waived pursuant to Subsection (e), purchase or lease only fuel efficient vehicles.

(d) Waiver of green vehicle purchasing requirement. Purchasing Agent may waive Subsection (c)[1] requirements for purchasing green vehicles and may purchase, lease, or allow the purchase or lease of non-green vehicles where:

[1] There are significant concerns regarding the green vehicle's safety, performance, effect on human health, or suitability for its intended use.

[2] A suitable green vehicle is not available within a reasonable period of time or available only at an excessive cost.

[3] Purchase of the green vehicle conflicts with federal, state or local law.

(e) Waiver of fuel efficient vehicle requirement. Where green vehicle purchasing requirement has been waived, Purchasing Agent may also waive Subsection (c)[2] requirements for purchasing fuel efficient vehicles and may purchase, lease, or allow the purchase or lease of non-fuel efficient vehicles where:

[1] There are significant concerns regarding the fuel efficient vehicle's safety, performance, affect on human health, or suitability for its intended use.

[2] A suitable fuel efficient vehicle is not available within a reasonable period of time or available only at an excessive cost.

[3] Purchase of the fuel efficient vehicle conflicts with federal, state or local law.

(f) Documentation of waiver. Reasons for any waiver pursuant to Subsections (e) or (f) shall be detailed in writing by the Purchasing Agent and maintained in the contract file.

(g) Vehicle maintenance. For maintenance, all City vehicles shall use recycled-content or bio-based automotive lubricants and recycled oil unless these products are:

[1] not available; or

[2] not available within a reasonable time; or

[3] not able to meet appropriate performance, health or safety standards; or

[4] available only at price that exceeds by 30 percent the price of competing products.

(h) Biodiesel initiative for City-owned vehicles. Department of Public Works in conjunction with the Purchasing Agent shall develop and implement a plan whereby:

[1] City-owned diesel vehicles shall be converted to operate using blends of 20 percent biodiesel (B20) or greater concentration, wherever practicable.

[2] All City-owned diesel vehicles not so converted shall be operated using B5 to the greatest extent practicable.

[3] The City shall make reasonable efforts to procure, produce, or otherwise acquire blends of B20 of greater as necessary for the operation of converted City-owned vehicles and B5 for the operation of non-converted City vehicles.

G. Bid specifications; minimum hourly pay, benefits and paid leave for contractor employees. All purchases, contracts or agreements which require public advertisement for bids under the Local Public Contracts Law, N.J.S.A. 40A:11-1 et seq., shall contain a specification which mandates that certain employees of certain entities entering into qualified contracts with the City shall be paid a standard hourly rate of pay and provided paid leave and standard benefits in accordance with the following minimum standards and conditions:

(1) All employees employed either full time or part time by an entity that has entered into a qualified contract with the City or a contract to furnish janitorial, unarmed security, clerical or food services for any property or premises owned or leased by the City, shall be provided with standard paid leave.

(2) Those employees employed either full time or part time by an entity that has entered into a qualified contract with the City, who qualify under this subsection, shall receive an hourly rate of pay of no less than the standard hourly rate of pay for the relevant classification for each full hour of work performed under that contract, and shall receive no less than the standard

benefits for the relevant classifications. The contract shall provide for annual adjustments of the standard hourly rate of pay, benefits and paid leave during the term of the contract. The provisions of this subsection shall apply to all part-time and full-time entity employees performing work exclusively for the City under the entity's qualified contract with the City and exclusively on property either owned or controlled by the City.

(3) Every contact to furnish janitorial or unarmed security services for any property or premises owned or leased by the City shall contain a provision indicating the number of hours of work required, and stating the standard hourly rate of pay and benefits for the relevant classification that are applicable to the workers employed in the performance of the contract and shall contain a stipulation that those workers shall be paid not less than the standard hourly rate for the relevant classifications and shall receive no less than the standard benefits for the relevant classifications. The contract shall provide for annual adjustments of the standard hourly rate of pay, benefits and paid leave during the term of the contract. The entity contracting to furnish janitorial or security services shall provide proof that its employees have been provided with the standard rate of pay, benefits and paid leave mandated hereunder. A contracting entity performing janitorial or security services shall also make a good faith effort to hire persons, as janitors or security guards, who are residents of Jersey City. A "good faith" effort means that the Qualified Contractor will advertise in a local newspaper and seek and consider referrals from the Employee Register of the Jersey City Employment and Training Program list. A contracting entity's failure to follow the requirements of this subparagraph may result in termination of the contract.

(4) Remedy. Violation of these provisions shall constitute a breach of contract by the contractor or subcontractor, and such provisions shall be considered to be a contract for the benefit of the building service workers upon which such workers shall have the right to maintain action for the difference between the hourly rate of pay, benefits and paid leave and the hourly rate of pay, benefits and paid leave actually received by them.

(5) For purposes of this section, the word "full time" shall mean those employees who work a minimum of 25 hours per week exclusively under a qualified contract with the City, excluding meal periods; the word "part time" shall mean those employees who work less than 25 hours per week.

(6) For purposes of this section, the words "employee" and "employment" shall include only those employees of an entity that have entered into a qualified contract with the City and who work exclusively under that contract in the job categories of clerical workers, food service workers, janitorial workers and unarmed security guards.

(7) For purposes of this section, the words "qualified contract" shall mean only those contracts awarded by the City, requiring advertisement for bids, under the Local Public Contracts Law, N.J.S.A. 40A:1-1 et seq.

(8) For purposes of this section, the word "entity" shall mean any person, partnership, corporation or other form of legally recognized business organization that submits a bid or enters into a qualified contract with the City under the Local Public Contracts Law, N.J.S.A. 40A:11-1 et seq.

(9) For the purposes of this section, "standard paid leave" shall mean paid leave as provided by the collective bargaining agreement covering the largest number of hourly non-supervisory employees, employed within Hudson County in the relevant classification, provided the collective bargaining agreement covers no less than 200 employees in the classification. If there is no such collective bargaining agreement the following provision shall apply. Those employees employed full time by an entity that has entered into a qualified contract with the City or a contract to furnish janitorial or security services for any property or premises owned or leased by the City, who qualify under this subsection, shall accrue at least five days of paid vacation for the first six months of continuous employment and an additional five days for the second six months of continuous employment under the same contract.

(10) For the purposes of this section, "leased by the City" means any agreement whereby a contracting agency contracts for, or leases or rents, commercial office space or commercial office facilities of 10,000 square feet or more from a non-governmental entity provided the City, whether through a single agreement or multiple agreements, leases or rents no less than 51 percent of the total square footage of the building to which the lease applies.

(11) For the purposes of this section, the "standard hourly rate of pay" shall be 150 percent of the federal minimum wage, or the hourly rate of pay for work performed within the City under the collective bargaining agreement covering the largest number of hourly non-supervisory employees employed within Hudson County in the relevant classification, provided the collective bargaining agreement covers no less than 200 employees in the classification, or the hourly rate paid to workers in the relevant classification under a preceding qualified contract, whichever is higher.

(12) For the purposes of this section, "standard benefits" shall be an hourly supplement furnished by a contractor to an employee in one of the following ways: 1) in the form of health benefits that cost the employer the entire required hourly supplemental amount to provide; 2) by providing a portion of the supplement in the form of health benefits and the balance in cash; or 3) by providing the entire supplement in cash. The required hourly supplemental rate shall be equal to the monetary value of the benefits provided by the collective bargaining agreement covering the largest number of hourly non-supervisory employees employed within Hudson County in the relevant classification, provided the collective bargaining agreement covers no less than 200 employees in the classification. If there is no such collective bargaining agreement "standard benefits" shall be an additional hourly rate of $3.10 provided as a supplement to cover health benefits.

(13) For the purposes of this section, "relevant classification" shall mean food service worker for food service workers, clerical workers, janitors and security guards.

(14) For the purpose of this section, "health benefits" shall not include workers compensation insurance, nor shall it include the value of any benefit for which an employee is eligible but for which no payment is actually made by a contractor to the employee or to any other party on the employee's behalf because the employee either does not actually utilize or does not elect to receive the benefit for any reason.

(15) For the purposes of this section, the annual adjustments of the hourly rate of pay and benefits shall be made in the following way: The annually adjusted hourly rate of pay shall be the

previous hourly rate of pay increased by the annual percentage difference between the current New York Metropolitan Area Consumer Price Index (CPI) for all items for All Urban Consumers and the same CPI for same month of the previous year, or the hourly rate of pay for work performed within the City under the current collective bargaining agreement covering the largest number of hourly non-supervisory employees employed within Hudson County in the relevant classification, provided the collective bargaining agreement covers no less than 200 employees in the classification, whichever is higher. The benefit rate shall be annually adjusted accordingly.

(16)The provisions of this shall apply to all contracts awarded, renewed, modified or extended after the date of enactment of this section. However, to provide an orderly transition for implementation of this section, the City may, after the date of enactment of this section, enter into short-term extensions of extant contracts, so that the extended contract extends no more than 90 days beyond the date of enactment of this section. Such short-term extensions may be exempted from the requirements of this section at the discretion of the City.

H. The Division of Purchasing and Central Services shall approve printing requests of all City departments for new and current forms.

I. Affirmative action in public contracting; the Division of Purchasing and Central Services to administer affirmative action in contracting program. The Director of the Division of Purchasing and Central Services is designated as the compliance officer for administrative action in contracting and shall be responsible for monitoring construction contracts and subcontracts for compliance with affirmative action guidelines promulgated by the State of New Jersey. In cooperation with the State Office of Affirmative Action, the Division of Purchasing and Central Services shall:

(1) Act as liaison between the City of Jersey City and the Affirmative Action Office of the Department of Treasury of the State of New Jersey.

(2) Gather all information necessary to make any determination or recommendation required by this section, the affirmative action guidelines of the Department of Treasury or an approved affirmative action program.

(3) Monitor the performance of contractors and subcontractors subject to an approved affirmative action program.

(4) Report to the Business Administrator Director of the Department of Finance contractors' and subcontractors' compliance with applicable affirmative action guidelines and any approved affirmative action program and recommend appropriate action that may be proper to correct noncompliance.

(5) Issue alert notices and violation notices pursuant to N.J.A.C. 17:27-10 et seq. for a contractor's or subcontractor's failure to comply with the work force requirements of an approved affirmative action program.

(6) Under an approved local agency affirmative action construction program, conduct hearings and recommend sanctions and corrective action with respect to contractors not in compliance.

(7) Perform other tasks reasonably necessary to facilitate compliance with affirmative action guidelines of the Division of Treasury and any approved affirmative action program.

(8) Act as staff to the Affirmative Action Advisory Council.

J. Apprenticeship requirements for construction and infrastructure contracts. For contract awards for construction and infrastructure projects that are subject to the New Jersey Prevailing Wage Act, the contractor, and any subcontractors, shall also participate in an apprenticeship training program for each craft they employ which is registered with and approved by the United States Department of Labor and which provides each trainee with combined classroom and on-the-job training in an occupation recognized as an apprenticeable trade and meets the program standards of enrollment and graduation under 29 C.F.R. § 29.6.

§ 3-113.5. Division of Grant Administration. [Added 4-27-2022 by Ord. No. 22-040]

A. Creation of the Division of Grant Administration; Supervisor in charge; qualifications. There is hereby created within the Department of Finance, a Division of Grant Administration, the head of which shall be the Director of the Division of Grant Administration. The Director of the Division of Grant Administration shall, prior to his or her appointment, be qualified by training or experience in the administration and enforcement of governmental or large corporate grants, which shall be under the direct supervision of the Director of the Department of Finance and which shall have the following duties:

(1) Coordinate grant acquisition among City departments and identify potential new grant sources for municipal projects, programs, and services as well as receive all grant applications for inclusion in the City's financial system.

(2) Manage, assist, prepare, coordinate, and monitor all City grant applications to federal and state government as well as to other grant programs.

(3) Implement appropriate audits and other controls on all City grant programs to ensure compliance with all terms and reporting standards.

(4) Provide written guidelines, as the Division deems appropriate, regarding the City's grant programs, acquisition of grants, and management of grants.

(5) The Division is responsible for coordinating, implementing, and ensuring compliance with all State and Federal grant programs and regulations, specifically 2 C.F.R. Part 200.

(6) The Division, as it deems appropriate, shall maintain records, implement procedures, and provide assistance regarding audits and projects including but not limited to, single audit in accordance with 2 C.F.R. Part 200, maintaining records for Capital Improvement projects and CAFR reports, closure of grant status with the City's Comptroller's Office, technical and managerial assistance to ensure compliance with OMB circulars, and assisting all departments planning to apply for grants.

ARTICLE XIV

Department of Law*

[Amended 10-27-1981 by Ord. MC-52; 1-13-1983 by Ord. No. MC-307; 6-28-1984 by Ord. No. MC-654; 2-13-1986 by Ord. No. C-161; 9-11-2013 by Ord. No. 13-081]

§ 3-114. Department established; Corporation Counsel.

There shall be a Department of Law, the head of which shall be the Corporation Counsel. The salary of the Corporation Counsel shall be fixed by ordinance. Legal fees and costs for which the Corporation Counsel shall be liable as the attorney for the City shall be borne by the City.

§ 3-115. Powers and duties of Corporation Counsel. [Amended 11-7-01 by Ord. No. 01-121]

A. The Corporation Counsel shall be the chief law officer of the City and the attorney of record in all proceedings in which the City or any of its officers or employees, by reason of their official duties, is a party. The corporation counsel shall provide legal advice and assistance to all City officials on matters relating to official duties. He or she shall supervise the preparation of contracts, deeds and other legal documents and of ordinances and resolutions referred to the law department for preparation.†

B. No deed shall be conveyed or contract executed in behalf of the City unless the Corporation Counsel shall have endorsed his or her approval in writing upon the document.

C. Upon leaving office the Corporation Counsel shall forthwith deliver to his or her successor all documents in his or her custody pertaining to City business and all documents belonging to the City. He or she shall also consent in writing to the substitution of his or her successor as attorney in all pending legal proceedings.

D. Administer and investigate personal injury, employment and civil rights claims filed against the City or any of its officers or employers arising out of their employment with the City.

§ 3-116. Settlement of proceedings; special counsel; accounting for debts collected. [Amended 9-12-1990 by Ord. No. McC-151; 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052; 1-8-2020 by Ord. No. 19-165]

A. Except as provided in Subsection B herein, the Corporation Counsel may, with the consent of the Council, compromise, settle and adjust any action, proceeding or other legal matter in which the City or any officer or employee is a party, or adjust any claim or causes of action in favor of or against the City or any officer or employee or accept an offer of judgment in favor of the City.

B. The following City officers may compromise, settle and adjust proceedings or other legal matters in which the City or any officer or employee is a party, or adjust any claim or causes of action in favor of or against the City or any officer or employee, or accept an offer of judgment in favor of the City without first obtaining the consent of the City Council.

   i. The Risk Manager, with the approval of the Insurance Fund Commission, may settle a liability claim with a value of up to $5,000.00.

***Editor's note**—Former Art. XV. See editor's note, Art. XII.

†**Editor's note**—See also Ch. 27, Defense and Indemnification, § 27-3, Corporation Counsel's duty to defend City employees.

ii. The Corporation Counsel or First Assistant Corporation Counsel, with the approval of the Insurance Fund Commission, may settle a liability claim with a value of $5,001.00 to $40,000.00.

C. Notwithstanding Subsection B herein, no City officer may settle a dispute arising from a matter that was previously rejected by a vote of the City Council without first obtaining the consent of the City Council.

D. This section shall not limit the discretion of the Corporation Counsel in conducting the trial of any legal proceeding nor deprive him or her of the powers or relieve him or her of the duties exercised by counsel representing private clients.

E. The Corporation Counsel may with the approval of the Council and within available appropriations appoint special counsel to:

i. Represent the City or any officer or employee in any legal proceeding; or

ii. Assist the Corporation Counsel with any matter pertaining to his or her official duties.

F. The Corporation Counsel shall account to the Business Administrator for all debts collected in behalf of the City. He or she shall furnish a duplicate copy of the accounting to the Director of the department in which the claim originated. The accounting shall include the nature of the debt, the name of the debtor and the date of collection.

G. Risk Management and Corporation Counsel will advise the Council of settlements on a monthly basis from their respective departments.

§ 3-117. Appointments and compensation. [Amended 9-13-1989 by Ord. No. McC-7]

A. The Corporation Counsel may appoint a First Assistant Corporation Counsel, three Supervisory Assistants Corporation Counsel, a private secretary and such other Assistants Corporation Counsel and legal assistants as are authorized by ordinance. All appointees shall serve at the pleasure of the Corporation Counsel in accordance with terms and conditions of employment established by the Corporation Counsel.

B. No appointee of the Corporation Counsel may receive any fee or compensation for the performance of official duties other than his or her salary.

§ 3-118. Powers and duties of personnel. [Amended 9-13-1989 by Ord. No. McC-7]

A. Appointees of the Corporation Counsel shall perform such duties as are assigned to them by the Corporation Counsel.

B. The Corporation Counsel shall select a First Assistant Corporation Counsel to act in his or her behalf during his or her absence or disability. The Assistant so selected shall possess all the powers and perform all the duties of the Corporation Counsel. If the office of Corporation Counsel becomes vacant for any reason, the First Assistant shall act as Corporation Counsel until the appointment and qualification of a Corporation Counsel.

C. In addition to regularly assigned duties, the First Assistant, the Supervisory Assistants and Assistants Corporation Counsel shall perform such other duties of the Corporation Counsel as he or she shall empower them to exercise by written authority filed in the Law Department.

D. Upon leaving office appointees of the Corporation Counsel shall forthwith deliver to the Corporation Counsel all documents pertaining to the business of the City.

Editor's note—Former Secs. 2-220.8 and 2-220.9, added November 27, 1985 by Ord. No. C-48, which immediately followed this section and created the Division of Consumer Protection, were deleted September 13, 1989 by Ord. No. McC-7.

§§ 3-119, 3-119.1. Reserved.

Editor's note—Ord. No. 20-074, adopted September 23, 2020, amended the Code by repealing former § 3-119.1, which pertained to the Office of Municipal Prosecutor, and derived from Ord. No. 01-121, adopted November 7, 2001 and Ord. No. 20-088, adopted October 7, 2020.

ARTICLE XV

Department of Recreation and Youth Development* [Amended 1-24-1990 by Ord. No. McC-98; 9-8-1993 by Ord. No. 93-097; 9-14-1994 by Ord. No. 94-087; 9-11-2013 by Ord. No. 13-081; 7-17-2019 by Ord. No. 19-081]

§ 3-120. Department created; organization. [Amended 11-7-01 by Ord. No. 01-121; 7-17-2019 by Ord. No. 19-081; amended 4-27-2022 by Ord. No. 22-040]

A. There shall be a Department of Recreation and Youth Development, the head of which shall be the Director of Recreation and Youth Development. The Department shall be responsible for all City-sponsored youth development programs and services as well as all youth recreational and leisure activities provided by the City of Jersey City.

The Director of the Department of Recreation and Youth Development shall:

(1) Determine the use of all recreational facilities owned and operated by the City of Jersey City;

(2) Be responsible for the concept planning, development and implementation and promotion of all City-sponsored youth development programs, recreational programs, activities and events; and

(3) Regularly interact with neighborhood organizations, churches, schools, non-profit agencies and other interested groups and companies to promote youth development as well as recreational and leisure activities for youth within the City.

B. This Department shall be divided into three Divisions which shall each be divided into two Offices:

(1) Division of Recreation. This Division shall be responsible for providing recreational services and programs for City youth that encourage each and every young resident to stay fit, relieve stress, and become further acclimated with their surrounding community.

i. Office of Facilities Management and Coordination. This Office shall be responsible for management and coordination of all the City's sports and recreational fields and facilities, including aquatics, to promote responsible access to all community members.

*__Editor's note__—Former Art. XVI. See editor's note, Art. XII.

ii. Office of Sports. This Office shall be responsible for organizing and scheduling year-round recreation and competitive level sports for City youth.

(2) Division of Enrichment. This Division shall be responsible for implementing and supervising all City-led efforts to grow the social, ethical, emotional, and cognitive competencies of City youth.

i. Office of Community and Professional Development. This Office shall be responsible for organizing all City-led efforts to provide youth with career exploration and professional development opportunities and to involve youth in the community.

ii. Office of Adaptive Programing. This Office shall be responsible for organizing and scheduling activities specifically designed for participants with special needs.

(3) Division of Park Maintenance. This Division shall:

(a) Be responsible for planning and maintaining all facilities for recreational purposes offered by the City, which include parks, playgrounds, green space, sitting areas and indoor recreational facilities;

(b) Be responsible for trimming of trees on sidewalks;

(c) Be responsible for planting of trees within public easement areas.

(d) Be in charge of approving park usage permits for picnics, reunions, weddings and other private gatherings. All permits shall be issued by the Office of Cultural Affairs.

(e) In conjunction with the Office of Cultural Affairs and the Department of Health and Human Services, be responsible for reviewing and approving applications for flea markets and farmers' markets, respectively, provided that flea markets and farmers' markets permits are subject to the following permitting requirements:

(i) Subject to such rules, regulations, restrictions and requirements of § 239-15 of this Code, flea market permits shall be issued as follows: Each organization seeking a flea market permit may be issued two such permits per calendar year for the passive recreation portion of any City park, space permitting, and subject to any local, State and Federal regulations, including, but not limited to Green Acres regulations. The exact location of any flea market within a City park shall be determined solely by the Director of the Division of Park Maintenance and the permit issued shall include a map indicating where the market is to be situated. No park may have more than six flea markets per year, and there shall be no flea market permitted and no permits issued for Grundy Pier.

(ii) Subject to such rules, regulations, restrictions and requirements of § 239-15 and § 175-16 et seq. of this Code, permits to operate farmers' markets within City parks may be issued to nonprofit organizations which have been licensed by the City Health Officer under § 175-16 et seq. When applying for a permit to operate a farmer's market within a City park, the non-profit organization shall provide proof to the Director of the Division of Park Maintenance, prior to the issuance of the permit, that the non-profit organization

has been licensed to operate a farmer's market by the City Division of Health and has secured general liability insurance for the farmers' market in the amount of $1,000,000.00 from an A.M. Best-rated insurance company which names the City of Jersey City as an additional insured unless waived by the City's Risk Manager. Farmers' markets may be held in the passive recreation portion of any City park, space permitting, except J. Owen Grundy Pier Park. The exact location of any farmers' market within a City park shall be determined solely by the Director of the Division of Park Maintenance and the permit issued shall include a map indicating where the market is to be situated. Applications to establish a farmers' market in a City park and all supporting documents must be submitted to the Division of Health at least 30 days before the planned opening of the market.

(f) Be responsible for codifying costs to the Tax Collector on work performed on private property.

§§ 3-121, 3-122. Reserved.

Editor's note—Former §§ 3-121 and 3-122 were reserved November 7, 2001, by Ord. No. 01-121.

ARTICLE XVI

Agencies and Commissions*

§ 3-123. Administration of unassigned agencies and commissions.

The administrative functions, powers and duties of agencies and commissions of the City government not allocated and assigned by this Code shall be subject to the supervision of the Mayor, except as otherwise specifically required by law, and for this purpose such agencies and commissions are allocated and assigned to the Office of the Mayor.

§ 3-124. Appointment of members; absences.

A. All appointments to the agencies and commissions shall be by the Mayor with the advice and consent of the Council except as otherwise provided by the particular statute or ordinance pertinent to the particular agency or commission.

B. Except where the explicit terms of any enabling legislation provide otherwise, any member of any board, agency, commission, authority or entity who misses three consecutive meetings or five meetings within any twelve-month period shall be removed from office upon notice and hearing before the Council or in accordance with the procedures contained in the legislation establishing such board, agency, commission, authority or entity. **[Added 3-28-1990 by Ord. No. McC-111]**

C. Every board, agency, commission, authority or entity to which members are appointed by the Mayor shall amend its rules, regulations or bylaws to conform to this section. **[Added 3-28-1990 by Ord. No. McC-111]**

***Editor's note—**Former Art. XVII. See editor's note, Art. XII.

§ 3-125. Appointment procedure.

A. Whenever any statute or ordinance requires an appointment to be made to any agency, board or commission by the Mayor, with the advice and consent of the Council, such appointments shall be made as follows: When the appointment is to be made because of the expiration of the term of the officer, or when a vacancy occurs for any reason, then the Mayor shall make such successor appointment within 30 days of the expiration of the term, or the date on which the vacancy occurs, as the case may be. Said appointment shall be made by written communication from the Mayor, addressed to the Council and delivered to the City Clerk. This procedure shall be complied with if the written communication making the appointment is delivered no later than the 30th day following the expiration of the term, or the date of the vacancy, as the case may be. The fact that the Municipal Council does not act upon the appointment within the 30 days shall not invalidate the appointment made by the Mayor.

B. In the event that the Mayor fails to make the appointment within the 30 days as provided in Subsection A, then the Council shall make the appointment.

§ 3-126. Boards, agencies, committees and commissions. [Amended 6-14-1995 by Ord. No. 95-050]

The boards, agencies, committees and commissions of the City shall be as required by law or as the Council shall create.*

ARTICLE XVII
Fire Safety Manager†

§ 3-127. Application. [Added 6-27-2001 by Ord. No. 01-088; amended 9-11-2013 by Ord. No. 13-081]

This article shall apply to all buildings or structures more than six (6) stories above grade or more than 75 feet above the lowest level accessible to Department of Public Safety apparatus. This includes buildings or structures of lesser height which are not accessible to Department of Public Safety apparatus because of setbacks or restricted approaches.

§ 3-128. General. [Added 6-27-2001 by Ord. No. 01-088; amended 9-11-2013 by Ord. No. 13-081; 9-23-2014 by Ord. No. 14-118]

A. It is the objective of this regulation to provide training, proper education and licensing through a continuing program for all high-rise occupants and management, to assure prompt reporting of fire, to assure the immediate response to fire alarms and the immediate initiation of fire safety procedures to safeguard life and property and contain any fire situations or other emergency situations until the arrival of the Division of Fire and Emergency Services.

B. It shall be the responsibility of the owner/manager or other person having charge of a high-rise building to comply with these regulations.

***Editor's Note: See the Table of Contents listing for Part I of this Code for various boards and commissions.**

†Editor's note—Former Art. XVIII. See editor's note, Art. XII.

C. It shall be the responsibility of the building management to provide a Fire Safety Manager to perform these duties. In a large high-rise building, the owners of the building should strive to isolate the individual chosen for the Fire Safety Manager's job from other responsibilities. In buildings where there are multiple companies, it is the responsibility of the Fire Safety Manager of the building to coordinate fire safety between the various companies.

D. In addition to the above duties the Fire Safety Manager shall keep current with pertinent laws and advancements in the fire safety field.

E. Any person discovering fire, heat or smoke shall immediately report such condition to the Department of Public Safety unless he has personal knowledge that such a report has been made. No person shall make, issue, post or maintain any regulation or order, written or verbal, that would require any person to take any unnecessary delaying action prior to reporting such condition to the Department of Public Safety.

F. Everyone associated with high-rise structures must recognize that once the construction of the building is completed and the structure occupied, the Fire Safety Manager is the key to future fire safety. His/her talents should be directed toward the prevention of fire by necessary inspections which will definitely cut down on some of the hazards that breed fire and evacuation procedures which will effectively reduce injuries during an emergency. If an accidental fire starts, he/she will have all the defenses ready to combat it by carrying out his/her duties and provide a safe means of evacuation for all buildings occupants.

G. In order to maintain proficiency and stay abreast of high rise safety, the Bureau of Fire Prevention shall conduct three (3) continuing education instruction seminars annually.

§ 3-129. Definitions. [Added 6-27-2001 by Ord. No. 01-088; amended 9-11-2013 by Ord. No. 13-081]

Fire Command Station: The central control station which shall contain where applicable the public address system panel; the Department of Public Safety communications panel; fire detection and alarm system annunciator panels; status indicators and control for air handling systems; and status indicators and a telephone for Department of Public Safety use with controlled access to the public telephone system.

Fire Drill and Evacuation: The method and practice of a systematic, safe and orderly evacuation of an area or building by and of its occupants in case of fire or other emergency in the least possible time; also the use of such available fire appliances (including sounding of alarms) as may have been provided for the controlling or extinguishing of fire and safeguarding of human life.

Fire Official A person certified by the Commissioner of the Department of Community Affairs and appointed to direct the enforcement of the Uniform Fire Code of the State of New Jersey by the appointing authority in the City of Jersey City.

High-Rise Building: Any building or structure having occupied floors located more than six (6) stories above grade or more than 75 feet above the lowest level accessible to Department of Public Safety apparatus. This includes buildings or structures of lesser height which are not accessible to Department of Public Safety apparatus because of setbacks or restricted approaches.

Owner: A person who owns, purports to own, manages, rents, leases, or exercises control over a building, structure or premises.

Use Group "A": Includes theaters and other buildings used primarily for theatrical or operatic performances and exhibitions, places of public assembly, amusement, entertainment or recreation, churches, grandstands, bleachers, coliseums, stadiums, tents or similar structures.

Use Group "B": Includes buildings used for the transaction of business, for the rendering of professional services, or for other services that involve stocks of goods, wares or merchandise in limited quantities for use incidental to office uses or simple purposes.

Use Group "I": Includes buildings housing individuals who, because of age, mental instability, physical limitations, security or other reasons, must live in a supervised environment.

Use Group "M": Includes buildings used for display and sales purposes involving stocks of goods, wares or merchandise incidental to such purposes and accessible to the public.

Use Group "R-1": Includes all hotels, motels and similar buildings arranged for shelter and sleeping accommodations and in which the occupants are primarily transient in nature, making use of the facility for a period of less than 30 days.

Use Group "R-2": Includes all multiple family dwellings having more than two dwelling units and shall also include all dormitories, rooming houses and group rentals where the occupants are living independently of each other and similar buildings arranged for shelter and sleeping accommodations in which the occupants are not transient in nature.

§ 3-130. Overview. [Added 6-27-2001 by Ord. No. 01-088; amended 9-11-2013 by Ord. No. 13-081]

A. Fire Safety Plan.

(1) A fire safety plan for fire drills and evacuation procedures in accordance with the requirements of the Fire Official shall be submitted to the Department of Public Safety and the approval of Fire Official shall be obtained. The applicable parts of the fire safety plan shall be distributed to the tenants of the building and to the building service employees. Tenant with employees shall distribute to their employees applicable parts of the fire safety plan. All occupants of the building shall participate and cooperate in carrying out the provisions of the fire safety plan. Where the owner of the building is an occupant, he/she shall comply with those provisions of the sections applicable to tenants.

(2) The Fire Safety Plan shall include the location where tenants who evacuate the building must stage for accountability purposes.

B. Fire Safety Manager, Deputy Fire Safety Manager, and Building Evacuation Supervisor.

(1) Fire Safety Manager and Deputy Fire Safety Manager.

(a) In high-rises of Use Group B, R-1 and R-2, one employee shall be designated as "Fire Safety Manager" and one or more employees as "Deputy Fire Safety Managers." Such employees shall have knowledge of a building's fire protection plan and each shall have a Certificate of Fitness, in accordance with the requirements of the Fire Official and listed in this ordinance, qualifying him/her to conduct fire drills, evacuations and related activities such as organizing, training and supervising a fire brigade, and designating and training Fire Wardens and

Deputy Fire Wardens. In the absence of a Fire Safety Manager when a Fire Safety Manager is required to be on-duty in the building, the Deputy Fire Safety Manager shall act as Fire Safety Manager.

(b) During normal working or business hours, there shall be on the premises at least one person on-duty in the building designated as "Fire Safety Manager" with a required Certificate of Fitness. During fire emergencies, the primary responsibility of the Fire Safety Manager shall be the supervision and staffing of a fire command station and the direction and execution of the evacuation as provided in the fire safety plan. Such activities shall be subject to Department of Public Safety control. Normal working or business hours shall be considered from 9:00 a.m. to 4:00 p.m., Monday thru Friday, excluding holidays.

(2) Building Evacuation Supervisor. At all other times when there are occupants in the building and there is no Fire Safety Manager on-duty in the building, there shall be at least one employee on-duty on the premises who shall be designated as "Building Evacuation Supervisor." He/she shall be capable of directing the evacuation of the occupants as provided for in the Fire Safety Plan. During fire emergencies, the primary responsibility of the Building Evacuation Supervisor shall be the staffing of a fire command station and the direction and execution of the evacuation as provided in the Fire Safety Plan. His/her training and related activities shall be under the direction of the Fire Safety Manager in accordance with the requirements of the Fire Official and the Fire Safety Plan. Such activities shall be subject to Department of Public Safety control.

(3) Fire Warden and Deputy Fire Warden.

(a) The tenant or tenants on each floor shall, upon request of the owner or person-in-charge of the building, make responsible and dependable employees available for designation by the Fire Safety Manager as Fire Warden and Deputy Fire Wardens.

[1] In high-rises of Use Group B and R-1, there shall be a minimum of one (1) Fire Warden and one (1) Deputy Fire Warden for each floor. In cases of multiple tenants on a floor, there shall be a Deputy Fire Warden for each tenant. In addition, any tenancy with more than 7,500 square feet of occupiable space shall have a Deputy Warden for each 7,500 square feet or part thereof

[2] In high-rises of Use Group R-2, there shall be a minimum of one (1) Fire Warden and one (1) Deputy Fire Warden for each floor.

C. Fire Brigade.

(1) A fire brigade consisting of qualified building employees shall be selected, organized, trained and supervised by the Fire Safety Manager.

(2) The Brigade shall be trained in the proper use of portable fire extinguishers and other manual fire suppression equipment.

D. Fire Drills. Fire drills shall be conducted, in accordance with the Fire Safety Plan, at least once every three months for existing buildings during the first two years after the effective date of this ordinance,

or for new buildings, at least once every three months during the first two years after the issuance of the certificate of occupancy. Thereafter, fire drills shall be conducted at least once every six months. The occupants of the building, other than building employees, shall not be required to leave the floor or use the exits during the drill. A written record of such drills shall be kept on the premises for a three-year period and shall be readily available for inspection by the Department of Public Safety.

E. The tenant or tenants of each floor, upon request of the owner or the person-in-charge of the building, shall make responsible and dependable employees available for designation and training by the Fire Safety Manager as fire wardens and deputy fire wardens. Designated fire wardens and deputy fire wardens shall carry out their responsibilities as contained in the fire safety plan.

F. In buildings where compliance would cause practical difficulty or undue hardship, the Fire Official may modify the requirements of this ordinance and accept alternatives fulfilling the intent of these requirements consistent with public safety.

§ 3-131. Responsibilities. [Added 6-27-2001 by Ord. No. 01-088; amended 9-11-2013 by Ord. No. 13-081]

A. The owner shall **[Amended 9-23-2014 by Ord. No. 14-118]:**

(1) Be responsible for providing for fire safety and conduct fire drills in accordance with these rules.

(2) Insure for the development and updating of a written Fire Safety Plan providing for fire drills and evacuation procedures in accordance with these rules.

(3) Designate an employee as Fire Safety Manager. This person must hold a Certificate of Fitness qualifying him/her to perform the appropriate duties of Fire Safety Manager during normal working or business hours.

(4) Designate one or more employees as Deputy Fire Safety Manager(s). This/these individual(s) must hold a Certificate of Fitness qualifying him/her to perform the duties of the Fire Safety Manager and may perform in the capacity as Acting Fire Manager in his/her absence.

(5) Insure that during normal working or business hours, there shall be at least one person on-duty in the building as Fire Safety Manager holding a Certificate of Fitness. He/she shall be qualified to conduct fire drills, evacuations and related activities such as organizing, training and supervising a fire brigade, During fire emergencies, the primary responsibility of the Fire Safety Manager shall be the supervision and staffing of a Fire Command Station and the direction and execution of the evacuation as provided in the Fire Safety Plan. Such activities shall be subject to Department of Public Safety control. Normal working or business hours shall be considered from 9:00 a.m. to 4:00 p.m., Monday thru Friday, excluding holidays.

(6) Ensure that at all other times when there is no Fire Safety Manager on-duty in the building, there shall be at least one person on-duty in the building as Building Evacuation Supervisor. He/she shall be capable of directing the evacuation of the occupants as provided for in the Fire Safety Plan. During fire emergencies, the primary responsibility of the Building's Evacuation Supervisor shall be the staffing of a Fire Command Station and the direction and execution of the evacuation

as provided in the Fire Safety Plan. His/her training and related activities shall be under the direction of the Fire Safety Manager in accordance with the requirements of these Rules and the Fire Safety Plan. Such activities be subject to Department of Public Safety control.

B. The Fire Safety Manager shall **[Amended 9-23-2014 by Ord. No. 14-118]:**

(1) Establish, monitor, and update a written Fire Safety Plan providing for fire drill and evacuation procedure in accordance with these rules.

(2) Select qualified building service employees for a Fire Brigade and organize, train and supervise such Fire Brigade (Limited to fire extinguishers).

(3) Be responsible for the availability and state of readiness of the Fire Brigade.

(4) Conduct fire and evacuation drills.

(5) Be responsible for the designation of a Fire Warden for each floor and sufficient Fire Wardens for each tenancy in accordance with these rules.

(6) Be responsible for the training and activities of the building evacuation supervisor.

(7) Be responsible for a daily check for the availability of the Fire Warden and Deputy Fire Wardens and see that up-to-date organizational charts identifying the Wardens are posted.

(8) Notify the owner or other person having charge of the building when any designated individual is neglecting his/her responsibilities contained in the Fire Safety Plan. The owner or other person in charge of the building shall bring the matter to attention of the firm employing the individual. If the firm fails to correct the condition, the Department of Public Safety shall be notified by the owner or person in charge of the building.

(9) In event of a fire, shall report to the Fire Command Station to:

(a) Ensure that the Department of Public Safety has been notified of any fire or fire alarm.

(b) Supervise and coordinate staffing of the Fire Command Station. It is essential that the Fire Safety Manager remain in the lobby at the Fire Command Station.

(c) Direct evacuation procedures as provided in the Fire Safety Plan.

(d) Provide reports of conditions on the fire floor to members of the Department of Public Safety upon their arrival.

(e) Advise the Department of Public Safety personnel (Incident Commander) in the operation of the Fire Command Station.

(10) Identify any condition that will constitute a fire safety violation. Once identified, the Fire Safety Manager will immediately take steps to correct the violation. If the violation or condition cannot be corrected by the Fire Safety Manager he/she is obligated to notify the Fire Prevention Bureau for Enforcement.

The Fire Prevention Bureau
Phone Number (201) 547-4255
fireprevention@njjcps.org

(11) Fire Safety Managers shall attend one (1) continuing education seminar conducted by the Division of Fire and Emergency Services, on an annual basis. The Fee for this service will be one hundred dollars ($100.00).

(12) Failure to carry out the duties as enumerated in this section may result in the revocation of a Fire Safety Manager's certification.

(13) A Fire Safety Manager's certification may be revoked at the discretion of the Fire Official for just cause.

C. The Deputy Fire Safety Manager shall:

(1) Act as Fire Safety Manager, assuming his/her duties and responsibilities in the absence of the Fire Safety Manager during normal working or business hours.

D. The fire wardens and deputy fire wardens shall:

(1) Be familiar with the Fire Safety Plan, the location of exits and the location and operation of any available fire alarm system.

(2) In the event of a fire alarm:

(a) Ascertain location of the fire.

(b) Direct the evacuation of the floor in accordance with directions received and the following guidelines:

[1] If the elevators servicing his floor also service the fire floor, they shall not be used. However, elevators may be used if there is more than one bank of elevators, and he is informed from the Fire Command Station that one bank is unaffected by the fire.

[2] If elevators do not service the fire floor and their shafts have no openings on the fire floor, they may be used, unless otherwise directed.

[3] Elevators staffed by trained building personnel or firemen may also be used.

[4] In the absence of a serviceable elevator the Fire Warden shall select the safest stairway to use for evacuation on the basis of the location of the fire and any information received from the Fire Command Station. The Fire Warden shall check the environment in the stair prior to entry for evacuation. If it is affected by smoke, an alternate stair shall be selected and the Fire Command Station notified.

[5] The Fire Warden shall keep the Fire Command Station informed of the means being employed for evacuation by the occupants of his/her floor.

[6] The most critical areas for immediate evacuation are the fire floor and the floors immediately above. Evacuation from the other floors shall be instituted when instruction from the Fire Command Station or conditions indicates such action. Evacuation should be via

uncontaminated stairs. He/she shall try to avoid stairs being used by the Department of Public Safety. If this is not possible, he/she shall try to attract the attention of the Department of Public Safety personnel before such personnel open the door to the fire floor.

[7] Evacuation to two or more levels below the fire floor is generally adequate. He/she shall keep the Fire Command Station informed regarding his/her location.

[8] Fire Wardens and their Deputies shall see that all occupants are notified of the fire, and that they proceed immediately to execute the Fire Safety Plan.

[9] The Fire Warden on the fire floor shall, as soon as practicable, notify the Fire Command Station of the particulars.

[10] Fire Wardens on the floor above the fire shall, after executing the Fire Safety Plan, notify the Command Station of the means being used for evacuation and any other particulars.

E. The Building Evacuation Supervisor shall:

(1) Be responsible to the Fire Safety Manager for matters relating to fire safety.

(2) Be capable of directing the evacuation of the occupants as provided by in the Fire Safety Plan.

(3) During fire emergencies, staff the Fire Command Station and be responsible for the direction and execution of the evacuation as provided for in the Fire Safety Plan.

(4) Accept the mantle of the Fire Safety Manager's responsibilities when he/she is on-duty and become the key to the building's fire defense. No prudent owner of a high-rise building is going to place in charge an individual who is not capable of handling the evacuation of a scattered maintenance crew and perhaps a tenant's nighttime working force.

(5) The building evacuation supervisor has to know the Fire Safety Plan and the duties of the Fire Safety Manager. He/she must be able to operate under emergency conditions. The person has to be intelligent and quick witted.

F. The Fire Brigade shall:

(1) On the receipt of an alarm for fire:

(a) Report to the fire floor and the floor below the fire to assist in evacuation and provide information to the Fire Command Station.

(b) Attempt to control the fire until arrival of the Department of Public Safety, if the fire is small and conditions do not pose a personal threat.

(c) Leave one member on the floor below the fire to direct the Department of Public Safety to the fire location and to inform them of conditions.

(d) On arrival of the Department of Public Safety the fire brigade shall report to the Fire Command Station for additional instructions.

§ 3-132. Requirements. [Added 6-27-2001 by Ord. No. 01-088; amended 9-11-2013 by Ord. No. 13-081]

A. Fire Safety Plan.

(1) The Fire Safety Plan shall include but not be limited to the requirements of these Rules.

(2) Within ninety days after the adoption and publication of this Ordinance, the owner or other person having charge of an existing high-rise, shall submit their Fire Safety Plan to the Fire Official for approval. If such Fire Safety Plan is disapproved by the Fire Official, an amended or new Fire Safety Plan shall be resubmitted to the Fire Official within thirty (30) days after notice of such disapproval.

(3) The owner or other person having charge of a hereafter erected high-rise building of Use Group B, R-1 and R-2, shall submit a Fire Safety Plan to the Fire Official prior to issuance of a temporary or permanent "Certificate of Occupancy." The words "CERTIFICATE OF OCCUPANCY REQUESTED" shall be printed or typed on the top page of the Fire Safety Plan. No "Certificate of Occupancy" or "Temporary Certificate of Occupancy" shall be issued by the Building Department without approved of a Fire Safety Plan by the Fire Official.

(4) The applicable parts of the approved Fire Safety Plan shall be distributed to all tenants of the building by the building management when the Fire Safety Plan has been approved by the Fire Official.

(a) The applicable parts of the approved Fire Safety Plan shall then be distributed by the tenants to all their employees and by the building management to all their building employees.

(5) All occupants of the building shall participate and cooperate in carrying out the provisions of the Fire Safety Plan.

(6) The plan shall include but not be limited to:

(a) Location of nearest exits and alarms.

(b) Procedures to be followed when a smoke or fire alarm sounds.

(c) Procedures to be followed in the event of smoke or fire.

(7) A copy of the plan shall be readily available at all times within the building. The plan must be located at the Fire Command Center.

(8) An evacuation plan shall be conspicuously posted on every floor for the building occupant's use.

(a) Exception: In Use Group R-1, the evacuation plan shall be posted on the inside of each guest room door, other than a door opening directly to the outside at grade level.

(9) Where the owner of the building is also an occupant of the building he shall be responsible for the observance of this Ordinance and the Fire Safety Plan in the same manner as a tenant.

(10) In the event there are changes from conditions existing at the time the Fire Safety Plan for the building was approved and the changes are such so as to require changes, an amended Fire Safety Plan shall be submitted to the Fire Official within 30 days of the changes for approval.

B. Fire Command Station

(1) The Fire Command Station shall be established in the lobby of the building on the entrance floor. Such command station shall be adequately illuminated.

(2) The Fire Command Station shall be provided with floor plan of the building and other pertinent information relative to the service equipment of the building.

(3) A copy of the Fire Safety Plan shall be at the Fire Command Station.

(4) A listing of all handicapped tenants and/or residents shall be at the Command Fire Station.

(5) The Fire Command Center shall maintain a comprehensive log which shall include:

(a) The name and signature of the Fire Safety Manager or the Building Evacuation Supervisor on-duty along with the date of arrival and departure.

(b) A description of each incident occurring, including the date, time, location and action taken. An incident shall include, but not be limited to, fire, alarm, alarm activation, trouble signal, fire protection equipment malfunction, and any unrecorded communication pertaining to fire or life safety which is made to or from the Fire Command Center.

(c) This log shall be readily available for Department of Public Safety inspection.

(6) Every 10^{th} floor, (i.e., the 10^{th} floor, the 20^{th} floor, the 30^{th}, etc.), a small room shall be designated and marked "Department of Public Safety Equipment" and shall contain four (4) lengths of 212" hose and one smooth bore nozzle, one axe and one pike pool, to be utilized by the Department of Public Safety in emergency situations and be supplied by the building owner.

C. Communications and Fire Alarm.

(1) A means of communication and fire alarm for use during fire emergencies shall be provided and maintained by the owner or person in charge of the building.

(2) All occupants of the building shall participate in fire drills. However, tenants of the building, other than building service employees, are not required to leave through the exits during the drill.

(a) A written record of such drills shall be kept on the premises for a three-year period and shall be readily available for Department of Public Safety inspection.

D. Signs.

(1) Signs at elevator landings. A sign shall be posted and maintained in a conspicuous place on every floor at the elevator landing, indicating that in case of a fire, occupants shall use the stairs unless otherwise instructed. The sign shall contain a diagram showing the location of the stairs, except that such diagram may be omitted provided that signs containing such diagram are posted in conspicuous places on the respective floor.

(2) Floor numbering signs. A sign shall be posted and maintained within each star enclosure on every floor indicating the initial floor, the number of the floor and the terminus of the stairway.

(3) Stair and elevator identification signs. Each stair and each bank of elevators shall be identified by an alphabetical letter. A sign indicating the letter of identification shall be posted and maintained at each elevator landing and on the side of the stair door from which egress is to be made.

(4) Stair reentry signs. A sign shall be posted and maintained on each floor within each stair on the occupancy side of each stair door, where applicable, indicating whether reentry is provided into the building and the floor where such reentry is provided

§ 3-133. Certificate of fitness. [Added 6-27-2001 by Ord. No. 01-088; amended 9-11-2013 by Ord. No. 13-081; 9-23-2014 by Ord. No. 14-118]

A. Capabilities. The Fire Safety Manager shall have the following capabilities:

(1) Ability to conduct fire evacuation drills, evacuations and related duties such as organizing, training and supervising a fire brigade.

(2) Ability to supervise and staff a fire command station for implementation and direction of evacuation procedures in building under his/her control in accordance with the provisions of Department of Public Safety Rules and the Fire Safety Plan.

(3) Ability to develop and implement a fire prevention and protection program to uncover and correct hazards relative to exits and maintenance thereof.

(4) Show knowledge in fire extinguishing systems and appliances; fire doors in partitions, exit passageways and stairs; the posting of door, elevator and other informational signs; the storage and use of combustible or flammable materials.

B. Qualifications. The Fire Safety Manager shall have the following qualifications:

(1) Possess at least five (5) years experience in fire protection and/or fire prevention activity or five (5) years experience in a responsible position pertaining to operation of building service equipment as defined in the Building Code or a satisfactory combination or equivalent.

(2) Shall satisfactorily complete a course for Fire Safety Manager given by a school or other organization acceptable to the Department of Public Safety. The Department of Public Safety will

issue a Certificate of Completion to the applicant after he/she has passed a written examination administered by the Department of Public Safety. The applicant shall possess such a Certificate of Completion when making an application for a Certificate of Fitness.

(3) Shall have the ability to pass an examination by a person or body designated by the Fire Official relative to the characteristics and occupancy of the building which is to be under the applicant's control and the duties connected with the service to be performed including, among others, the following:

(a) Certificate of Occupancy provisions.

(b) Height, area, construction and occupancy.

(c) Number, type and location of exits.

(d) Number type and location of areas of refuge, if any.

(e) Number, type, location and operation of elevators and escalators.

(f) Interior Fire Alarms, Special Alarms and/or Communication Systems.

(g) Standpipe system components and operation.

(h) Sprinkler system components and operation.

(i) Special extinguishing system components and operation.

(j) Number of persons normally employed in building.

(k) Number of persons normally visiting the building.

(l) Plan for fire evacuation drills and evacuation.

(m) Table of organization for drill plan and for fire brigade.

(n) Operation of service equipment such as power, light, heat, cooling, ventilation, air- conditioning, refuse disposal, firefighting. transportation, or similar facility.

(o) Alterations and repair operations and the protective and preventive measures necessary to safeguard such operations, with priority attention to torch operations and the introduction, storage and use of flammable commodities.

(p) Special occupancies in the building and the proper protection and maintenance thereof.

C. Procedures. A Certificate of Fitness requires two (2) levels of approval. The first is the general classroom qualification for Fire Safety Manager along with a Jersey City Fire Department Examination. The second level is the specific qualification for the particular building for which he/she is employed. The qualifications are as follows:

(1) Level One: This level is achieved when an applicant completes a "Fire Safety Manager's course" in an institution approved by the Jersey City Fire Official. The applicant must then pass an

examination by the Jersey City Fire Official and receive his/her Certificate of Completion. Employment as Fire Safety Manager in a particular building is not necessary for a Certificate of Completion.

(2) Level Two: This level is achieved when the applicant successfully passes an examination given by the Fire Official in the field, pertaining to the service equipment and the Fire Safety Plan for the specific building for which he/she is Fire Safety Manager.

(3) The applicant with the first level approval may continue employment as Fire Safety Manager while awaiting the second level approval.

(4) If the holder of a first and second level approval terminates employment with the building in which he/she is employed, the second level approval for that specific building which he/she left is automatically revoked and a new second level approval is required for his/her new building. The holder of the Certificate of Fitness and the building owner/manager shall promptly notify the Fire Official of such change of building.

§ 3-133.1. Variations. [Added 9-23-2014 by Ord. No. 14-118]

In buildings where compliance would cause practical difficulty or undue hardship, the Fire Official, at his discretion, may modify the requirements of these rules and accept alternatives fulfilling the intent of these requirements consistent with public safety.

Editor's note—Ord. No. 14-118, adopted September 23, 2014, amended the Code by adding a new section to be numbered 3-134. In order to prevent duplication of section numbers, the new section has been numbered as § 3-133.1 at the discretion of the editor.

§ 3-133.2. Violations. [Added 9-23-2014 by Ord. No. 14-118]

Any person who shall violate, or refuse, or neglect to comply with any provision of this Code shall, upon conviction thereof, be punished by a fine of not more than five hundred dollars ($500.00), or by imprisonment not exceeding six (6) months, or both; and any such person shall, also, for each offense, be subject to the payment of a penalty in the sum of two hundred fifty dollars ($250.00) to be recovered in a civil action brought in the name of the Fire Official.

Editor's note—Ord. No. 14-118, adopted September 23, 2014, amended the Code by adding a new section to be numbered 3-135. In order to prevent duplication of section numbers, the new section has been numbered as § 3-133.2 at the discretion of the editor.

ARTICLE XVIII

Department of Infrastructure*

§ 3-134. Department of Infrastructure. [Added 4-27-2022 by Ord. No. 22-040]

There shall be a Department of Infrastructure, the head of which shall be the Director of Infrastructure. The appointed City Chief Engineer, Traffic Engineer, and Chief Architect shall be part of the Department of Infrastructure and report to the Director of Infrastructure.

***Editor's note**—Ord. No. 22-040, adopted April 27, 2022, amended the Code by repealing former Art. XVIII, §§ 3-134—3-140, and adding a new Art. XVIII. Former Art. XVIII pertained to the Department of Human Resources, and derived from Ord. No. 14-008, adopted January 29, 2014; Ord. No. 19-088, adopted July 17, 2019; Ord. No. 19-105, adopted September 11, 2019; and Ord. No. 21-043, adopted June 30, 2021.

The Director of Infrastructure shall exercise the following functions:

A. Advise the Mayor, Municipal Council and City departments and agencies in matters relating to the physical and digital infrastructure of public streets, parks, buildings, and other public spaces and facilities owned by the City.

B. Assist the Business Administrator in coordinating infrastructure programs with other City departments and agencies.

C. Assist in the preparation of the capital budget.

D. Supervise the activities of those divisions and offices within the Department of Infrastructure.

The Department of Infrastructure shall include:

A. Division of Engineering;

B. Division of Traffic Engineering;

C. Division of Transportation Planning;

D. Division of Architecture;

E. Division of Sustainability;

F. Office of Innovation.

§ 3-134.1. Division of Engineering. [Added 4-27-2022 by Ord. No. 22-040]

A. Within the Department of Infrastructure, there shall be a Division of Engineering, the head of which shall be the Municipal Engineer. The Division of Engineering, shall comply with N.J.S.A. 45:8-27 et seq., governing the licensing and practice of professional engineers and all other applicable laws. The Municipal Engineer shall perform or oversee the performance of the following:

(1) Grant coordination and control and preparation of all plans and specifications for public works and capital improvements, including those funded under NJDOT administered grants (undertaken by the City);

(2) The performance of all contracts for public works and transportation-related capital improvement projects and certify the amounts due and payable thereunder;

(3) Provide and maintain surveys, maps, specifications and operating records with respect to all property, works and facilities under the jurisdiction of the Division;

(4) Establish standards and procedures for the control, use and care of all City-owned equipment, materials and supplies in the custody of the Division;

(5) Provide, supervise and coordinate engineering and technical activities and services of all departments;

(6) Perform or supervise land surveys of public land and rights-of-way and maintain the official tax assessment maps for the City;

(7) Enforce Sections 3-134.2—3-134.6 of the City Code and issue summonses for violation of these sections:

(8) The Director shall designate an inspector(s) who shall have the authority and duties as provided by the Jersey City Municipal Code but shall report to the Division Director;

(9) The Municipal Engineer shall have plenary authority and control over transportation-related capital improvement projects and the coordination and control over NJDOT-administered grants and aid for capital construction.

(10) Inspect backfilling operations of street openings permitted in accordance with Sections 296-20 through 296-51.

§ 3-134.2. Division of Traffic Engineering. [Added 4-27-2022 by Ord. No. 22-040]

Within the Department of Infrastructure, there shall be a Division of Traffic Engineering, the head of which shall be the Traffic Engineer. The Traffic Engineer shall perform or oversee the performance of the following:

(1) Administer and enforce Chapter 332, Vehicles and Traffic, and such other provisions of the Jersey City Code relating to traffic and traffic engineering, except as otherwise provided by federal, state, county or local laws;

(2) Assure that all signs conform to federal, state, county and local laws, rules and regulations governing traffic signs, marking or pavements and related markings for such purposes. All traffic control devices shall conform, insofar as practicable, with the standards set forth in the Manual of Uniform Traffic Control Devices for Streets and Highways, United States Department of Transportation, Federal Highway Administration;

(3) Designate the location and design of highway lighting devices, poles and fixtures and the type and intensity of illumination for streets and ways;

(4) Collect and compile traffic data and prepare engineering studies and surveys in regard to vehicular and pedestrian traffic;

(5) Establish parking meter zones and determine the design, type, size, location and use of parking meters;

(6) Make and promulgate regulations designating curb loading zones, taxi stands and bus stops pursuant to N.J.S.A. 39:4-197(3)b;

(7) Conduct studies of the causes of accidents and determine remedial measures to prevent their future occurrence;

(8) Maintain a suitable system of filing traffic accident reports and prepare an annual traffic report, which report shall contain the following information: the number of traffic accidents; number of persons killed; number of persons injured; and other similar pertinent traffic accident data;

(9) Plan the operation and movement of traffic on the streets and highways of the City;

(10) Establish rates and regulations governing the use of public highways by vehicles and pedestrians within the limits established by state law and Chapter 332, Vehicles and Traffic, of the Jersey City Code, including, but not to the exclusion of other regulatory powers conferred, the installation of traffic control devices, designations of through streets and stop streets, of curb parking zones and the manner of their use, including areas for the installation of parking meters, designation of public carrier stands and areas for the installation of parking meters, designation of public carrier stands and stops, curb loading zones, crosswalks, safety zones and streets at which drivers shall not make right or left turns, speed of vehicles and time of loading and unloading;

(11) Review all requests for street openings and public utility work plans which in any way would affect traffic within the City, issue street opening permits to municipal and utility excavators, establish rules and regulations governing construction and maintenance work zones on public rights-of-way and assure that such zones conform to established standards for the protection of traffic and pedestrians and review and approve all curb cuts on the municipal right-of-way;

(12) Cooperate with other City officials in the development of ways to improve traffic conditions;

(13) Carry out additional duties imposed by this Code;

(14) Provide by regulation for the closing of any street or portion thereof to motor vehicle traffic on any ways whenever such closing is necessary for the preservation of the public safety, health and welfare; said regulations shall be promulgated in accordance with N.J.S.A. 40:67-16.7 and 40:67-16.9;

(15) Install and maintain traffic signals and other traffic control devices.

(16) The Division of Traffic Engineering shall, concurrently with the Division of Police and the Division of Parking Enforcement within the Department of Public Safety, enforce all laws and regulations regulating the parking of vehicles:

(a) In on-street and off-street parking metered areas in the City;

(b) On the roadway side of any vehicle stopped or parked at the curb;

(c) Within ten feet of a fire hydrant;

(d) Within no stopping and no standing zones where signs indicate the existence for such zones;

(e) In a bus stop or in a taxi stand zone where signs indicate the existence of such zones;

(f) On a roadway within 12 inches of the curb;

(g) In an off-street parking area operated by the City.

(17) Drawings for construction of proposed traffic facilities to be submitted to the Municipal Engineer. All design drawings prepared by other agencies, departments or divisions for the construction of proposed highways, bridges, parking terminals and other traffic handling facilities shall be submitted to the Municipal Engineer for a review and recommendation, but nothing in this section shall be construed to prevent the City Council from acting on such matter without such review or recommendation.

§ 3-134.3. Division of Transportation Planning. [Added 4-27-2022 by Ord. No. 22-040]

Within the Department of Infrastructure, there shall be a Division of Transportation Planning, the head of which shall be the Director of Transportation Planning. The Director of Transportation Planning shall perform or oversee the performance of the following:

(1) Develop and supervise development of transportation plans, studies, and surveys, and manage consultants conducting such tasks;

(2) Supervise public outreach and communications related to transportation planning activities;

(3) Collaborate with advocacy groups and community organizations to solve neighborhood-level traffic and transportation issues;

(4) Prepare and supervise the preparation of clear, sound, accurate and informative transportation and other planning reports and studies containing findings, conclusions and recommendations;

(5) Manage grant programs (including but not limited to writing grant applications, developing and managing budgets, and performing other administrative tasks);

(6) Coordinate transportation planning activities with other City agencies and external transportation planning organizations; and

(7) Prepare, review, and analyze local government contracts, resolutions, and ordinances related to transportation planning.

§ 3-134.4. Division of Architecture. [Added 4-27-2022 by Ord. No. 22-040]

Within the Department of Infrastructure, there shall be a Division of Architecture, the head of which shall be the Director of Architecture. The Director of Architecture shall perform or oversee the performance of the following:

(1) Provide architectural services for the construction, reconstruction, maintenance, rehabilitation and demolition of public buildings, parks and related facilities. Produce plans and specifications under signature and seal of a licensed architect;

(2) Provide for the structural maintenance, repair and alteration of all public buildings and parks owned or operated by the City;

(3) Establish standards and procedures for the control, use and care of all City-owned equipment, materials and supplies in the custody of the Office;

(4) Supervise the performance of all contracts for public works-related capital improvement projects and certify the amounts due and payable thereunder;

(5) Provide for the preparation of plans and specifications for the construction, repair, alteration and demolition of all City buildings and structures;

(6) Set standards for the construction, reconstruction and maintenance of all facilities in and/or on public lands;

(7) Be responsible for grant coordination and control and preparation of all plans and specifications for public works and capital improvements;

(8) Enforce the following section of the City Code and issue summonses for violation of this section:

(a) Chapter 134, Contractors.

§ 3-134.5. Division of Sustainability. [Added 4-27-2022 by Ord. No. 22-040]

Within the Department of Infrastructure there shall be a Division of Sustainability, the head of which shall be the Director of Sustainability. The Director of Sustainability shall perform or oversee the performance of the following:

A. The Division of Sustainability shall improve the City's quality of life by developing and implementing initiatives to ensure the social, environmental, and economic sustainability of the City, and improve the efficiency, resiliency, and sustainability of City infrastructure.

B. The appointed City Forester shall be part of the Division of Sustainability and report to the Director of Sustainability.

C. Whenever possible the Division will cooperate with the various City departments and autonomous agencies, members of the community and with outside funding sources, as appropriate.

D. The Division will provide such reports as requested by the Mayor and Department of Infrastructure.

§ 3-134.6. Office of Innovation. [Added 4-27-2022 by Ord. No. 22-040]

Within the Department of Infrastructure there shall be an Office of Innovation, the head of which shall be the Chief Innovation Officer. The Chief Innovation Officer shall perform or oversee the performance of the following:

A. The Office of Innovation shall deliver better government services to the City's departments and residents through technology and design.

B. The Office of Innovation shall develop bold, forward-thinking, data-driven solutions for the most challenging and complex sustainability issues faced by the City.

C. The Office shall provide such reports as requested by the Mayor and Director of Infrastructure.

§§ 3-135—3-140. Reserved.

ARTICLE XIX
RESERVED*

***Editor's note**—Ord. No. 22-040, adopted April 27, 2022, amended the Code by repealing former Art. XIX, § 3-141, in its entirety. Former Art. XIX pertained to the Census Committee, and derived from Ord. No. 19-159, adopted December 4, 2019.

§ 3-140. Reserved.

Editor's note—Ord. No. 19-088, adopted July 17, 2019, amended the Code by repealing former § 3-140, which pertained to the Division of Payroll, and was added January 29, 2014, by Ord. No. 14-008.

§ 3-141. Establishment of an Advisory Census Committee; membership. [Added 12-4-2019 by Ord. No. 19-159]

A. The Jersey City Census Committee is hereby established to develop strategies and techniques, working with City and county staff and census bureau officials, to enhance and increase the response rate to the census; and

B. The Committee shall be responsible for planning and conducting local educational initiatives, and for preparing educational materials, flyers and handouts for use by media and others. The Committee will also prepare materials for public service announcements on radio and social media;

C. The Business Administrator shall assign staff and the council shall provide the necessary funding for the Committee in the discharge of these functions;

D. The Committee shall consist of the Mayor or his designee, two members of the council appointed by the mayor with the advice and consent of the Municipal Council, the Director of the Office of Diversity and Inclusion, and one resident from each ward appointed by the Mayor with the advice and consent of the Municipal Council:

E. In selecting those members of the public who shall serve on the Committee, the Mayor shall, to the extent possible, appoint members who represent the cultural, ethnic and linguistic diversity of the communities within the City of jersey City, including to the extent feasible, members representing:

(1) Mayor;

(2) Jersey City Council;

(3) Hard to Count Community;

(4) Jersey City Municipal Community;

(5) Business Community;

(6) Immigrant Community;

(7) Census 2020 Partnership Specialist;

(8) Elementary/Secondary/Post-Secondary Community;

(9) Nonprofit Corporate Community.

F. The Committee members shall serve from the time of appointment until such time as 2020 census is completed and published, at which time the terms of the appointed Committee members shall be terminated.

G. The Committee shall meet at least once per month. Prior to a Committee meeting, the City staff assigned by the Mayor to assist the Committee shall provide the Committee with all documents to be reviewed for the upcoming meeting.

H. The meetings of the Committee shall be held in accordance with the Open Public Meeting Act.

Chapter 4

PAID SICK TIME

§ 4-1.	**Definitions.**	**§ 4-8.**	**Confidentiality and non-disclosure.**
§ 4-2.	**Purpose.**	**§ 4-9.**	**Encouragement of more generous paid sick time policies; no effect on more generous policies.**
§ 4-3.	**Application.**	**§ 4-10.**	**Severability.**
§ 4-4.	**Exercise of rights protected; retaliation prohibited.**		
§ 4-5.	**Notice and posting.**		
§ 4-6.	**Employer records.**		
§ 4-7.	**Enforcement and regulations.**		

§ 4-1. Definitions. [Added 9-25-2013 by Ord. No. 13-097; amended 10-28-2015 by Ord. No. 15-145]

For the purposes of this chapter, the following terms shall have the meanings indicated:

CALENDAR YEAR — A regular and consecutive twelve-month period, as determined by an employer.

CONSTRUCTION UNION — means an organization that represents, for purposes of collective bargaining, employees involved in the performance of construction, reconstruction, demolition, alteration, custom fabrication, or repair work and who are enrolled or have graduated from a registered apprenticeship program.

DEPARTMENT — The Department of Health and Human Services.

EMPLOYEE(S) — Employee(s) as defined in N.J. S.A. 34:11-56a1(h) including part-time and temporary employees, who works in Jersey City for at least eighty (80) hours in a calendar year. Employee(s) for purposes of this chapter includes any individual engaged in work activity that would be considered "employment" under the federal Fair Labor Standards Act, 29 U.S.C. § 201 et seq., and any applicable U.S. Department of Labor Guidelines, but does not include any person employed by any governmental entity or instrumentality of the State of New Jersey or any political subdivision thereof, including any New Jersey school district or Board of Education, Rutgers, The State University of New Jersey, or any subdivisions of Rutgers University, or any person who is a member of a construction union and is covered by a collective bargaining agreement negotiated by that union.

EMPLOYER — Any entity as defined by N.J.S.A. 34:ll-56al(g) except that Employer does not include the United States government or any federal agency, entity or instrumentality of the federal government, the State of New Jersey, including the legislature, the judiciary or any agency, entity or instrumentality of the State of New Jersey, any political subdivision of the State of New Jersey, including any school district or Board of Education, or Rutgers, The State University of New Jersey, or any subdivisions of Rutgers University.

FAMILY MEMBER:

(1) A biological, adopted or foster child, stepchild or legal ward, a child of a domestic partner, a child of a civil union partner, or a child to whom the employee stands in loco parentis;

(2) A biological, foster, stepparent or adoptive parent or legal guardian of an employee or an employee's spouse, domestic partner or civil union partner or a person who stood in loco parentis when the employee was a minor child;

(3) A person to whom the employee is legally married under the laws of New Jersey or any other state or with whom the employee has entered into a civil union;

(4) A grandparent or spouse, civil union partner or domestic partner of a grandparent;

(5) A grandchild;

(6) A sibling; or

(7) A domestic partner of an employee as defined in N.J.S.A. 26:8A-3 et seq.

HEALTH CARE PROFESSIONAL — Any person licensed under Federal or New Jersey law to provide medical or emergency services, including but not limited to doctors, nurses and emergency room personnel.

PAID SICK TIME — Time that is compensated at the same hourly rate and with the same benefits, including health care benefits, as the employee normally earns during hours worked and is provided by an employer to an employee for the purposes described in Subsections 4-3. A(l)—(11) of this chapter, but in no case shall the hourly wage be less than that provided under N.J.S.A. 34:11-56a.

REGISTERED APPRENTICESHIP PROGRAM — means an apprenticeship program that is registered with and approved by the United States Department of Labor and which meets not less than two (2) of the following requirements: (A) has active, employed, registered apprentices; (B) has graduated apprentices to journey worker status during a majority of the years that the program has been in operation; or (C) has graduated apprentices to journey worker status during three (3) of the immediately preceding five (5) years, provides each trainee with combined classroom and on-the-job training under the direct and close supervision of a highly skilled worker in an occupation recognized as an apprenticeable trade and meets the program performance standards of enrollment and graduation under 29 C.F.R. Part 29, section 29.63.1.

RETALIATION — The denial of any right guaranteed under this chapter and any threat, discipline, discharge, suspension, demotion, reduction of hours, or any other adverse action against an employee for the exercise of any right guaranteed herein.

§ 4-2. Purpose. [Added 9-25-2013 by Ord. No. 13-097]

Purposes of this chapter are:

(1) To diminish public and private health care costs and promote preventive health services in Jersey City by enabling workers to seek early and routine medical care for themselves and their family members;

(2) To protect the public's health in Jersey City by reducing the spread of contagious diseases;

(3) To promote the economic security and stability of workers and their families;

(4) To protect employees in Jersey City from losing their jobs or facing workplace discipline while they use paid sick time to care for themselves or their families;

(5) To safeguard the public welfare, health, safety and prosperity of the people of Jersey City; and

(6) To accomplish the purposes described in paragraphs (1)—(5) in a manner that is feasible for employers.

§ 4-3. Application. [Added 9-25-2013 by Ord. No. 13-097; amended 10-28-2015 by Ord. No. 15-145]

This chapter requires all those employed within the City of Jersey City to accrue either paid or unpaid sick time from their employer as mandated by this chapter utilizing the formula applied herein.

Individuals who work for employers who employ ten (10) or more employees shall accrue compensated sick time up to a maximum of forty (40) hours per year.

Individuals who work for employers who employ less than ten (10) employees shall accrue compensated sick time up to a maximum of twenty-four (24) hours per year. In addition, once such individuals have accrued twenty-four (24) hours of compensated sick time, they shall accrue unpaid sick time up to a maximum of sixteen (16) hours per year.

Taking of sick time, whether compensated or not shall not be the basis of an adverse employment action.

A. Accrual of Paid Sick Time.

(1) Employees shall accrue a minimum of one (1) hour of paid or unpaid sick time for every thirty (30) hours worked subject to the limits set forth below in A(2) and A(3).

(2) Employers who employ ten (10) or more employees for compensation are not required to provide more than forty (40) hours of paid sick time in a calendar year. In determining the number of employees performing work for an employer, all employees performing work for compensation on a full-time, part-time, or temporary basis shall be counted, provided that where the number of employees who work for an employer for compensation fluctuates, the number of employees may be determined for the current calendar year based upon the average number of employees who worked for compensation during the preceding calendar year.

Employers who employ less than ten (10) employees for compensation are not required to provide more than twenty-four (24) hours of paid sick time in a calendar year except for employees who are child care workers, home health care workers and food service workers. For child care workers, health care workers and food service workers, employers are required to provide up to forty (40) hours of paid sick time, so long as the hours are accrued in a calendar year as set forth elsewhere in this Section.

In determining the number of employees performing work for an employer, all employees performing work for compensation, whether on a full-time, part-time, or temporary basis shall be counted, provided that where the number of employees who work for an employer for compensation fluctuates, the number of employees may be determined for the current calendar year based upon the average number of employees who worked for compensation during the preceding calendar year.

(3) Employees who are exempt from overtime requirements under 29 U.S.C. § 201 et seq. of the Federal Fair Labor Standards Act are assumed to work forty (40) hours in each work week for purposes of paid sick time accrual unless their normal work week is less than forty (40) hours, in which case paid sick time accrues based upon that normal work week.

(4) Paid sick time as provided in this section begins to accrue at the commencement of employment.

(5) Employees begin to accrue paid sick time on the first day of employment. Employees are entitled to use accrued paid sick time beginning on the ninetieth calendar day of their employment. After the ninetieth calendar day of employment, employees may use paid sick time as it is accrued.

(6) Paid sick time is carried over to the following calendar year except that no employer is required to carry over more than forty (40) hours of paid sick time from one (1) calendar year to the next and nothing in this section entitles an employee to use more than forty (40) hours of paid sick time in a calendar year.

(7) Any employer with a paid leave policy, such as a paid time off policy, that provides an amount of paid leave sufficient to meet the total annual accrual requirements of this section that may be used for the same purposes and under the same conditions as paid sick time under this chapter is not required to provide additional paid sick time.

(8) Nothing in this section shall be construed as requiring financial or other reimbursement to an employee from an employer upon the employee's termination, resignation, retirement, or other separation from employment for accrued paid sick time that has not been used.

(9) If an employee is transferred to a separate division, entity, or location, but remains employed by the same employer, the employee is entitled to all paid sick time accrued at the prior division, entity, or location and is entitled to use all paid sick time as provided in this section. If there is a separation from employment and the employee is rehired within six (6) months of separation, previously accrued paid sick time that had not been used shall be reinstated. Further, the employee is entitled to use accrued paid sick time and accrue additional paid sick time at the re-commencement of employment.

(10) When a different employer succeeds or takes the place of an existing employer, all employees of the original employer who remain employed by the successor employer are entitled to all paid sick time accrued when employed by the original employer and are entitled to use all paid sick leave previously accrued.

(11) At its discretion, an employer may loan sick time to an employee in advance of accrual by such employee.

(12) The requirements of this Chapter shall not apply to employees covered by a collective bargaining agreement (CBA) to the extent that such requirements are expressly waived in the collective bargaining agreement in clear and unambiguous terms. With respect to employees covered by a collective bargaining agreement in effect at the time of the effective date of this Chapter, no provision of this Chapter shall apply until the expiration of the collective bargaining agreement; however, if the terms of an expired collective bargaining agreement provide paid sick leave that is more generous than provided by this Chapter, those terms of the expired collective bargaining agreement shall govern.

B. Use of Sick Time.

(1) Sick time shall be provided to an employee by an employer for:

a. An employee's mental or physical illness, injury, or health condition; an employee's need for medical diagnosis, care, or treatment of a mental or physical illness, injury, or health condition; an employee's need for preventive medical care;

b. Care of a family member with a mental or physical illness, injury, or health condition; care of a family member who needs medical diagnosis, care, or treatment of a mental or physical illness, injury, or health condition; care of a family member who needs preventive medical care; and

c. Closure of the employee's place of business by order of a public official due to a public health emergency or an employee's need to care for a child whose school or place of care has been closed by order of a public official due to a public health emergency, or care for a family member when it has been determined by the health authorities having jurisdiction or by a health care provider that the family member's presence in the community would jeopardize the health of others because of the family member's exposure to a communicable disease, whether or not the family member has actually contracted the communicable disease.

(2) Sick time shall be provided upon the oral request of an employee.

(3) An employee shall give an employer notice of the need to use sick time as soon as practicable.

(4) An employer may not require, as a condition of an employee's taking sick time, that the employee search for or find a replacement worker to cover the hours during which the employee is absent.

(5) Accrued sick time may be used in the smaller of hourly increments or the smallest increment that the employer's payroll system uses to account for absences or use of other time.

(6) For sick time of more than three (3) consecutive days, an employer may require reasonable documentation that the paid sick time has been used for a purpose covered by Section 4-2 of

this chapter. Reasonable documentation includes: documentation signed by a heath care professional indicating that paid sick time is necessary. An employer may not require that the documentation explain the nature of the illness.

(7) Individuals who work for employers who employ less than ten (10) employees and who have accrued both compensated and unpaid sick time shall not be required by his or her employer to exhaust unpaid sick time before using compensated sick time.

§ 4-4. Exercise of rights protected; retaliation prohibited. [Added 9-25-2013 by Ord. No. 13-097]

A. No person shall interfere with, restrain, or deny the exercise of, or the attempt to exercise, any right protected under this chapter.

B. No person shall retaliate against an employee because the employee has exercised rights protected under this chapter.

C. The rights protected under this chapter include but are not limited to the right to request and use paid sick time pursuant to this chapter; the right to file a complaint or inform any person about any employer's alleged violation of this chapter; the right to cooperate with the Agency in its investigations of alleged violations of this chapter; the right to participate in any administrative or judicial action regarding an alleged violation of this chapter; and the right to inform any person of his or her potential rights under this chapter.

D. It is unlawful for an employer's absence control policy to count paid sick time taken under this chapter as an absence that may lead to or result in discipline, discharge, demotion, suspension, or any other adverse action.

E. Protections of this section apply to any person who mistakenly but in good faith alleges violations of this chapter.

F. There is a rebuttable presumption of unlawful retaliation under this section whenever an employer takes adverse action against a person within ninety (90) days of when that person:

(1) Files a complaint with the Agency or a court alleging a violation of any provision of this chapter;

(2) Informs any person about an employer's alleged violation of this chapter;

(3) Cooperates with the Agency or other persons in the investigation or prosecution of any alleged violation of this chapter;

(4) Opposes any policy, practice, or ordinance that is unlawful under this chapter; or

(5) Informs any person of his or her potential rights under this chapter.

§ 4-5. Notice and posting. [Added 9-25-2013 by Ord. No. 13-097]

A. All employers shall give individual written notice to each of their employees at the commencement of the employee's employment (or as soon as practicable if the employee is already employed on the

effective date of this law) regarding employee's rights under this chapter. Such notice shall describe the right to paid sick time, the accrual rate and the amount of paid sick time, and the terms of its use guaranteed under this chapter; the right to be free from retaliation for requesting use of paid sick time; and the right to file a complaint or bring a civil action if paid sick time is denied by the employer or the employee is retaliated against for requesting or taking paid sick time. Such notice shall be in English and the primary language spoken by that employee provided that the Department has made available a translation of such notice into such language.

B. Employers shall also display a poster in a conspicuous and accessible place in each establishment where employees are employed containing notice of this chapter. The poster shall be in English and in any language that is the first language of at least ten percent (10%) of the employer's workforce provided that the Department has made available a translation of such notice into such language.

C. The Department shall create and make available to employers individual notices and posters. Notices and posters shall be provided in English, Spanish, Italian, Chinese, Polish, Portuguese, Tagalog, and any other languages selected by the Agency.

D. An employer who violates the notice and posting requirements of this section is subject to a civil fine in an amount not to exceed one hundred dollars ($100.00) for each employee who was not given appropriate notice pursuant to this section and five hundred dollars ($500.00) for each establishment in which a poster was not displayed.

§ 4-6. Employer records. [Added 9-25-2013 by Ord. No. 13-097]

Employers shall retain for three (3) years records documenting hours worked by employees and paid sick time taken by employees and shall allow the Department reasonable access to such records, to monitor compliance with the requirements of this chapter. An employer's failure to maintain or retain adequate records documenting hours worked by an employee and paid sick time taken by an employee create a rebuttable presumption that the employer has violated this chapter, absent clear and convincing evidence otherwise.

§ 4-7. Enforcement and regulations. [Added 9-25-2013 by Ord. No. 13-097]

A. The Department shall coordinate implementation and enforcement of this chapter and shall promulgate appropriate guidelines or regulations for such purposes.

B. The Department shall coordinate implementation and enforcement of this chapter, including, but not limited to:

1. establishing a system to receive complaints, in writing and by telephone, in English, Spanish, and any other language deemed appropriate by the Department regarding the employers non-compliance with this chapter;

2. investigate and resolve complaints received by the Department in a timely manner and keep complainants notified regarding the status of the investigation;

3. engage in pro-active enforcement of this chapter through the use of audits, on-site investigations, or other measures to ensure employer's compliance. Investigators from the Department shall be empowered to interview employees and former employees in private outside the presence of the employer, and the power to determine whether or not employers have complied with this chapter. The Department shall also have the power to inform residents of the City of their rights under this chapter.

C. The Department shall maintain confidential the identity of any complaining person unless disclosure of the identity is necessary for resolution of the investigation. The Department shall, to the extent practicable, notify a complaining person that the Department will be disclosing his or her identity prior to such a disclosure.

D. The Department shall establish a system for reviewing and adjudicating complaints by employees. Employers deemed by the Department to be in violation of this chapter shall be subject to the penalty prescribed in § 1-25 of the Municipal Code: the maximum penalty for violating this chapter shall be, in the discretion of the Court, a fine of up to two thousand dollars ($2,000.00) and/or a period of community service not exceeding ninety (90) days. This penalty shall apply to each individual infraction of this chapter. This section shall not affect any mandatory minimum penalty established by any section of the Code or ordinance. **[Amended 10-28-2015 by Ord. No. 15-145]**

E. Any person claiming to be aggrieved by the violation of this chapter may bring a cause of action in any court of competent jurisdiction. Submitting a complaint to the Department is neither a prerequisite nor a bar to bringing private action.

§ 4-8. Confidentiality and non-disclosure. [Added 9-25-2013 by Ord. No. 13-097]

An employer may not require disclosure of details relating to an employee's or an employee's family member's medical condition as a condition of providing paid sick time under this chapter. If an employer possesses health information about an employee or employee's family member, such information shall be treated as confidential and not disclosed except to the affected employee or with the permission of the affected employee.

§ 4-9. Encouragement of more generous paid sick time policies; no effect on more generous policies. [Added 9-25-2013 by Ord. No. 13-097]

A. Nothing in this chapter shall be construed to discourage or prohibit an employer from the adoption or retention of a paid sick time policy more generous than the one required herein.

B. Nothing in this chapter shall be construed as diminishing the obligation of an employer to comply with any contract, collective bargaining agreement, employment benefit plan, or other agreement providing more generous paid sick time to an employee than required herein.

C. Nothing in this chapter shall be construed as diminishing the rights of public employees regarding paid sick time or use of paid sick time as provided in the laws of the State of New Jersey pertaining to public employees.

§ 4-10. Severability. [Added 9-25-2013 by Ord. No. 13-097; amended 10-28-2015 by Ord. No. 15-145]

If any provision of this chapter or application thereof to any person or circumstance is judged invalid, the invalidity shall not affect other provisions or applications of this chapter that can be given effect without the invalid provision or application, and to this end the provisions of this chapter are declared severable.

Editor's note—Ord. No. 15-145, adopted October 28,2015, amended the Code by repealing former §§ 4-10 and 4-12 and renumbering former § 4-11 as a new § 4-10. Former § 4-10 pertained to research, and former § 4-12 pertained to an effective date. Both sections derived from Ord. No. 13-097, adopted September 25,2013.

Chapter 5

FILMING AND PHOTOGRAPHY PERMITS

§ 5-1.	Purpose and intent.	§ 5-5.	Exceptions to permit requirements.
§ 5-2.	Definitions.	§ 5-6.	Requirements for applicants.
§ 5-3.	Filming/still photography permit.	§ 5-7.	Granting of a permit; rules and regulations.
§ 5-4.	Permit fees.		

§ 5-1. Purpose and intent. [Added 10-23-2013 by Ord. No. 13-116]

A. It is the purpose of this chapter to:

(1) Regulate the issuance of permits for commercial and educational filming activities within the City;

(2) Provide for fire, police and other appropriate departmental assistance from the City; and

(3) Establish insurance, time, location and other related protocols.

B. This chapter also intends to ensure that motion picture, television commercial and non-theatrical filming companies, as well as still photographers, are encouraged to use locations for filming activities with the City consistent with the City's duty to ensure the health and safety of persons and property.

C. This chapter is not intended to apply to purely private filming events, including, but not limited to, the filming or photographing of a wedding or private social function, or the filming by any public entity, such as the non-commercial ventures of local universities and City economic development authorities; neither is it intended to include the filming of news stories.

§ 5-2. Definitions. [Amended 9-12-2018 by Ord. No. 18-101]

APPLICANT or APPLICANT OF PERMIT — Any person, organization, corporation, association or other entity applying for a film permit from the City of Jersey City.

CITY — The City of Jersey City.

FILM — As used in this Chapter, any film, including a movie, television program, commercial, still photography, video documentary, music video, internet video or other visual recording medium, used in whole or in part for sale, lease, or other commercial exchange, including the advertisement or promotion of any product, service or organization. A recurrent television or internet series is a film. A film which is not sold or leased in whole or part, or is not otherwise part of a commercial exchange, is a "non-profit film."

FILM CREW MEMBERS — Shall include, but not be limited to: directors, actors, set or costume designers, camera crew members, lighting crew members, sound crew members, boom operators, pyrotechnics experts, stunt performers, extras, stage hands, security personnel, production or personal assistants, contractors and subcontractors, interns (whether or not paid) and agents.

INTERMEDIATE FILM — Commercial still photo shoots, web series, independent films, short films that consist of either a filming crew size that is between ten and 19 people, a casting size that is between ten and 14 people, or the presence of nine or fewer production vehicles on city streets.

MAJOR FILM — Major motion pictures, commercials, TV series, network, cable, streaming services (e.g. Netflix, Hulu, Amazon, etc.) that consist of either a filming crew size of 20 or more people, a casting size of 15 or more people, or the presence of greater than ten production vehicles on city streets.

MINOR FILM — Commercial still photo shoots, web series, independent films, short films that consist of either a filming crew size that is between four and nine people, a casting size that is between four and nine people, or the presence of three or fewer production vehicles on city streets.

NEWS MEDIA — As used in this chapter, filming for the purpose of spontaneous, unplanned television news reporting by journalists, reporters, photographers or camera operators.

PRIVATE PROPERTY — As used in this chapter, any property not owned by the City of Jersey City, but rather is owned by or assessed to a private person or entity in which filming would not interfere with public right of way, access or safety.

PUBLIC PROPERTY — Any public street, road, sidewalk, public park or playground, City-owned building or property or any other public place which is maintained and within the control of the City of Jersey City.

STILL PHOTOGRAPH — Photographs or other visual impressions which are not films which are sold or leased or otherwise commercially exchanged and all activity related to the staging or shooting of such photographs or other visual impressions.

STUDENT FILM — A not-for-profit film, filmed in eight (8) hours or less, made by currently-enrolled students under the sponsorship of an accredited school or institution of higher learning, who have evidenced such sponsorship with a letter written on school letterhead, signed by a school administrator, and who present a certificate of insurance.

§ 5-3. Filming/still photography permit.

A. Permit Requirement. No person or organization shall commence the making of a film, or permit filming or take still photographs (as defined in this Chapter) on public property without first having completed an application and obtained a film/photography permit from the Mayor's office.

B. No person shall commence the making of a film, commercial film or permit filming or take still photographs on private property without first having completed an application and obtained a film/photography permit from the City's Mayor's office if filming will interfere with the public's use of public property or rights of way on public property.

Upon approval as provided for in this Chapter, a permit shall issue, and be at all times during filming available for display.

C. Time to Apply. Applicants shall, if practicable, apply for a permit at least 14 days before commencing filming. No application shall be accepted within seventy-two (72) hours before filming.

§ 5-4. Permit fees.

A. Permit Fees. Applicant shall pay a non-refundable fee, and other applicable fees in Chapter 160 (Fees and Charges). The imposition of fees pursuant to Chapter 160 shall not preclude the City from seeking payment or reimbursement for additional expenses incurred by the City. **[Amended 9-12-2018 by Ord. No. 18-101]**

B. Form of payment. Permit fees shall be paid in cashier's checks, postal money orders made out to the City of Jersey City or using the payment system on the City's website.

§ 5-5. Exceptions to permit requirements.

A. No permit shall be required for: **[Amended 9-12-2018 by Ord. No. 18-101]**

(1) Filming by news media as defined in this chapter.

(2) Filming for private social activities, including weddings, unless the filming or photographing of such events is sold, leased, rented or used for any commercial purposes, including reality television, in which case, a permit shall be obtained and all fees paid.

(3) Filming activities or still photography conducted for use in a criminal investigation or civil or criminal court proceeding, but not including films or photographs which are sold, leased or used for any commercial purpose.

(4) Filming or still photography conducted solely for private non-profit, personal or family use, including real estate sales purposes of selling an individual residence.

(5) Filming activities or still photography conducted by or for the City of Jersey City.

(6) Filming which requires no more than three crew members and no other equipment except two (2) cameras and two (2) tripods.

(7) A student film, provided that the makers and the school shall agree in writing that if the student film is ever released for commercial purposes, all permit costs and fees shall be due and payable as provided for in this Chapter. All fees other than the permit fee, set forth in Section 5-4, shall apply.

(8) Permit fees may be waived for non-profit organizations with a valid 501c3 status.

B. In the event that any of the above activities require the use of commercial vehicles, a permit shall be obtained notwithstanding the fact that no fee is imposed.

§ 5-6. Requirements for applicants.

A. Insurance. Insurance may be required in an amount and type to be determined by the City Office of Risk Management, which shall make such determination as befits the type of Film or Still Photog-

raphy to be permitted and whether or not vehicles are proposed to be used. The applicant shall submit the Certificate of Insurance required by the City Office of Risk Management along with the permit application. The Certificate of Insurance shall include the City of Jersey City as an additional insured.

B. Indemnity. By making application for a permit under this chapter, the applicant, applicant, its officers, agents, contractors, servants, consultants, employees and affiliates agree to indemnify and hold harmless the City of Jersey City, its authorized agents, officers, representatives and employees from any and all losses, liability, expense, claim officers, representatives and employees from any and all losses, liability, expense, claim or damages including, without limitation, defense costs and reasonable legal fees resulting from any and all activities including any accident, loss, injury to or death of persons or damage to property which the City may incur arising out of or related to the filming and/or photography permitted under the permit, including but not limited to the City's issuance of a permit to film pursuant to this chapter. The applicant's liability under the permit shall continue after the expiration of the permit with respect to any loss, damage or acts occurring prior to the expiration of the permit.

C. Off-Duty Police. Off-duty police officers shall be required during filming if:

(1) Firearms, pyrotechnics or other hazardous materials are to be used;

(2) Any actors or crew-members are to be wearing costumes that resemble the uniforms of any type of public personnel;

(3) Any streets or lanes are to be closed; or

(4) The filming involves activities in which a police presence is necessary to protect the health, safety or welfare of the residents of Jersey City.

D. The City reserves the right, on a case-by-case basis, to require the approval of any City department or division, not listed above, for activities which such department or division oversees or regulates, or which in any way impinges upon its duties and obligations to the public.

§ 5-7. Granting of a permit; rules and regulations.

A. Permits shall not be transferrable.

B. A permit may be denied if:

(1) The Director of Public Works determines that closing a street will cause a substantial risk to public safety or interfere with street maintenance work, or a previously authorized excavation permit.

(2) The filming activity will substantially interfere with municipal functions or the scheduled maintenance of city buildings or grounds.

(3) The activity creates a substantial risk of injury to persons or damage to property.

(4) The applicant failed to complete the application after being requested to do so, or the information contained in the application is found to be false in any material detail.

(5) The activity violates federal, state, or local law including licensing or permit requirements.

(6) The applicant has failed to obtain or provide proof of insurance, as required in Subsection 5-6.A above.

(7) The applicant has failed to submit the appropriate application fee in the manner required in Subsections 5-4.A and 5-4.B above.

(8) Filming may violate any regulation in Subsection 5-7.B below.

When the grounds for permit denial can be corrected by imposing reasonable conditions, the City may impose such conditions rather than denying the permit.

C. Regulations upon Receipt of Permit. **[Amended 11-12-2014 by Ord. No. 14-017; 9-12-2018 by Ord. No. 18-101]**

(1) The permit holder shall take all reasonable steps to minimize interference with the free passage of pedestrians and traffic over public lands and shall comply with all lawful directives issued by the Department of Public Safety with respect thereto.

(2) The permit holder shall conduct its activities in such a manner so as to minimize the inconvenience or discomfort to adjoining property owners attributable to such filming and shall, to the extent practicable, abate noise and park vehicles associated with such filming off the public streets. The permit holder shall avoid any interference with previously scheduled activities upon City property and, limit, to the extent possible, any interference with normal activities.

(3) Where a permit holder's activities, by reason of location or otherwise, affect any business(es), merchants or residents, the permit holder will give these parties at least three (3) days' notice prior to the film/photography shooting date(s).

(4) The permit holder shall make every effort to minimize the inconvenience caused by filming and shall provide a designee who will respond to residents' concerns and for ensuring the obtaining of off-duty Police assistance, the placing of "no parking" signs and other traffic control devices (under the direction of the Division of Parking Enforcement, but at the applicant's expense), providing advance notice to affected property owners/businesses and cleanup and restoration of all property, including streets, affected by the filming.

(5) All filming and/or photography must be completed by the time specified in the permit. Any extension to this time must be approved by the film liaison.

(6) The permit holder shall pay all fees, and obtain all permits and licenses required for its activity under local, state and federal law and pay any fees associated therewith.

(7) The permit holder shall abide by all governmental fire regulations.

(8) The permit holder shall disclose to the City and obtain permission for any: use of stunts, pyrotechnics, open flames, vehicle crashes or hazardous materials.

(9) The permit holder shall conceal police, fire and other official uniforms worn by actors, when the actors are not on camera.

(10) The applicant shall abide by City restrictions on the use of City logos, insignias, badges or decals as set forth in the information packet provided by the film liaison.

(11) The City shall receive credit on the project that shall read: "Thanks to the City of Jersey City." The credit shall have a blank space above and below the credit so that it stands apart from and not on a list of like credits.

(12) The permit holder shall provide the City with five (5) different publicity stills for each scene shot. The stills will be used by the City solely for promotional purposes, including, but not limited to encouraging tourism and film-making. The applicant shall give the City proper acknowledgment for any assistance provided in making feature, television, or commercial productions.

(13) The permit holder shall immediately report all accidents, injuries, health incidents or damage to property to the appropriate public authority.

Chapter 6

BUSINESS LICENSES OR PERMITS

Article I
Wage Theft Prevention

§ 6-1. Definitions.
§ 6-2. Grounds for denial of license renewal.
§ 6-3. Grounds for denial of license transfer.
§ 6-4. Application for license and renewal; investigation of applicants and licensees.
§ 6-5. False statements.
§ 6-6. Annual review.
§ 6-7. Repealer.
§ 6-8. Severability.
§ 6-9. Effective date.

ARTICLE I

Wage Theft Prevention

§ 6-1. Definitions. [Added 7-15-2015 by Ord. No. 15-095]

In this article, the following words and phrases shall have the meanings stated in this section unless the context otherwise requires:

A. "License" shall mean any business license or permit issued by the municipality as authorized by N.J.S.A. 40:52-1.

B. "Wage Theft" shall mean having been found guilty, liable or responsible in any judicial or administrative proceeding for unpaid wages in violation of the New Jersey State Wage and Hour Law (N.J.S.A. 34:11-56a et seq.), the New Jersey State Wage Payment Law (N.J.S.A. 34:11-4.1 et seq.), the Hudson County Living Wage Ordinance (No. 363-6-2014, 364-6-2014, 365-6-2014 and P.L. 1977, C. 33.), N.J.S.A. 2C:40A-2, the Fair Labor Standards Act, 29 U.S.C. § 201 et seq., Section 3-76c of the Jersey City Municipal Code, or any other federal or state law related to the payment of wages or the collection of debt owed due to unpaid wages.

§ 6-2. Grounds for denial of license renewal. [Added 7-15-2015 by Ord. No. 15-095]

Notwithstanding any provision to the contrary, wage theft is understood to have such an effect on the public morals and welfare that no license shall be issued or renewed to an applicant, licensee, or business entity that has been found liable of a wage theft violation which has not been cured by compliance with the order or decision of the judicial, governmental, or administrative entity determining the same, within ninety (90) days of any final judgment, inclusive of any appeal.

§ 6-3. Grounds for denial of license transfer. [Added 7-15-2015 by Ord. No. 15-095]

No license shall be transferred to or from an applicant, licensee, or business entity that has been found liable of violation which has not been cured by compliance with the order or decision of the judicial, governmental, or administrative entity determining the same.

§ 6-4. Application for license and renewal; investigation of applicants and licensees. [Added 7-15-2015 by Ord. No. 15-095]

A. At the time of its initial application and application for renewal of its license, each applicant shall certify under penalty of perjury whether applicant has been found guilty or liable of wage theft during the prior twenty-four (24) months; the dates, location, and nature of such wage theft; efforts by the applicant to cure such wage theft violation; and the ultimate disposition of any wage theft violations. The City shall maintain copies of the applications and certifications for the purpose of complying with this article.

B. If the City is made aware of adjudications of wage theft against applicants or existing licensees, whether at the time of an initial application for a license, an application for renewal of its license, or after the issuance of the license, the City Department or Division responsible for issuing the subject license shall (1) obtain a copy of any order or decision of the judicial, governmental, or administrative entity finding that a wage theft violation has occurred; (2) determine whether ninety (90) days of any final judgment, inclusive of any appeal, have elapsed; and (3) request that the licensee or applicant provide documentation of its having cured the wage theft violation or appealed from any final judgment. If the City Department or Division determines that the licensee or applicant has not cured the wage theft violation within thirty (30) days of the Department or Division's request for documentation, then its license shall be suspended or application denied until the licensee or applicant cures the wage theft violation and provides documentation of its having cured same.

C. Any information or reports of wage theft violation occurring in the City of Jersey City shall be routed by the Resident Response Center to the appropriate City Department or Division responsible for issuing the subject license.

§ 6-5. False statements. [Added 7-15-2015 by Ord. No. 15-095]

If an applicant makes false statements, fails to report information as required in 8:32-4, or falsely certifies whether it has been found guilty or liable of wage theft in accordance with Section 6-4, the City may seek revocation of any previously issued license or deny the application for a license or renewal.

§ 6-6. Annual review. [Added 7-15-2015 by Ord. No. 15-095]

Each year as a matter of due diligence, the Resident Response Center shall submit an Open Public Records Request to the New Jersey Department of Labor and Workforce Development Wage and Hour Division requesting for each licensee any wage claim forms filed against the licensee during the prior twenty-four (24) months, as well as any accompanying case files, judgments, or determinations.

The Resident Response Center shall (1) obtain a copy of any Order or decision of the judicial governmental, or administrative entity finding that a wage theft violation has occurred; (2) determine

whether ninety (90) days of any final judgment, inclusive of any appeal, have elapsed. If so, the name of each such licensee shall be forwarded to the appropriate City Department or Division responsible for issuing its license for disposition in accordance with Section 6-4.

§ 6-7. Repealer. [Added 7-15-2015 by Ord. No. 15-095]

All ordinances and provisions thereof inconsistent or conflicting with the provisions of this article shall be repealed to the extent of such conflict or inconsistency.

§ 6-8. Severability. [Added 7-15-2015 by Ord. No. 15-095]

If any paragraph or provision of this article shall be adjudicated invalid or unenforceable, such determination shall not, to the extent severable, affect any other paragraph or provision of this article, which shall otherwise remain in full force and effect.

§ 6-9. Effective date. [Added 7-15-2015 by Ord. No. 15-095]

This article shall take effect on October 1, 2015.

Chapter 7

ALCOHOLIC BEVERAGE CONTROL, BOARD OF

§ 7-1. Board continued.

[HISTORY: Adopted by the Council of the City of Jersey City 9-8-1981 as Sec. 2-227 of Ord. No. MC-14. Amendments noted where applicable.]

GENERAL REFERENCES

Alcoholic beverages — See Ch. 84.

§ 7-1. Board continued.

The Board of Alcoholic Beverage Control, as heretofore established pursuant to law (N.J.S.A. 33:1-5), is reconstituted and continued.

Chapter 9

ASSESSMENT COMMISSIONERS, BOARD OF

§ 9-1.	**Jurisdiction; membership.**	**§ 9-7.**	**Records to be kept.**
§ 9-2.	**Terms; conflicts of interest; removal; qualifications.**	**§ 9-8.**	**Decisions.**
		§ 9-9.	**Statement of improvement completion.**
§ 9-3.	**Reserved.**		
§ 9-4.	**Organization.**	**§ 9-10.**	**Viewing of improvement; notice.**
§ 9-5.	**Rules and regulations.**		
§ 9-6.	**Hearings.**	**§ 9-11.**	**Criteria for decisions.**

[HISTORY: Adopted by the Council of the City of Jersey City 6-26-1991 as Sec. 2-317.3 of Ord. McC-329. Amendments noted where applicable.]

GENERAL REFERENCES

Administration of government — See Ch. 3.
Special improvement district — See Ch. 69.
Streets and sidewalks — See Ch. 296.
Water — See Ch. 337.

§ 9-1. Jurisdiction; membership.

A Board of Assessment Commissioners shall be responsible for all assessments of local improvements in accordance with N.J.S.A. 40:56-1 et seq. The Board shall consist of three (3) regular members and one (1) alternate member appointed by the Mayor. No member may be an officer or employee of the city.

§ 9-2. Terms; conflicts of interest; removal; qualifications. [Amended 1-12-2011 by Ord. No. 10-172]

Members shall serve without compensation for a term of three (3) years from the date of appointment, except that of the first regular members appointed, one (1) member shall serve a term of one (1) year, one (1) a term of two (2) years and the third a term of three (3) years. Each member appointed thereafter shall serve three (3) years. The alternate member shall serve a term of three (3) years. A vacancy, occurring otherwise than by expiration of the term of a member or an alternate member, shall be filled by appointing a replacement member for the unexpired term only. No member shall participate in any matter in which he or she has, directly or indirectly, any personal or financial interest. Any member may, after a public hearing if requested, be removed by the Mayor for cause. Insofar as possible, members and alternate members shall be employed in real estate, accounting, law, engineering, finance or any other field pertinent to their responsibilities.

§ 9-3. Reserved.

Editor's note—Ord. No. 10-172, adopted January 12,2011, amended the Code by repealing former § 9-3 in its entirety. Former § 9-3 pertained to compensation and funding.

§ 9-4. Organization.

The Board shall elect a chairperson who shall preside at meetings of the Board. The Chief Engineer shall designate a staff member to serve as secretary to the Board, and the Corporation Counsel an Assistant Corporation Counsel to serve as attorney to the Board.

§ 9-5. Rules and regulations.

The Board shall establish rules and fix the time and place for holding its meetings. It shall take no action without the presence of a quorum. All action shall be taken by a majority vote of the members present. All meetings shall be held in accordance with the Open Public Meetings Act, N.J.S.A. 10:4-1 et seq.

§ 9-6. Hearings.

A. The Chairperson shall have the power to administer oaths of any witness called to testify at a hearing. The testimony of all witnesses relating to any matter before the Board shall be taken under oath or affirmation by the Chairperson. Interested parties may cross-examine witnesses, either through their attorney or directly, subject to the discretion of the Chairperson and to reasonable limitations as to the time and number of witnesses.

B. Technical rules of evidence shall not apply to a hearing, but the Board may exclude irrelevant, immaterial or unnecessarily repetitious evidence.

§ 9-7. Records to be kept.

The Board shall provide for verbatim recording or, in its discretion, minutes of all proceedings. Minutes shall be available for public inspection and copying during normal business hours. Verbatim transcripts shall be available at the expense of the person requesting the transcript. In furnishing a transcript, the Board shall not charge a fee in excess of the maximum permitted under N.J.S.A. 2A:11-15.

§ 9-8. Decisions.

All decisions of the Board shall be in writing and shall include findings of fact and conclusions based solely upon relevant evidence submitted to the Board at any of its public meetings.

§ 9-9. Statement of improvement completion.

Upon the completion of any local improvement, the Chief Engineer shall immediately notify the Board and certify a statement showing in detail the cost of the improvement, including the cost of advertising, financing and inspection and the engineering expense and the cost of any real estate or interest in real estate acquired for the improvement. This statement shall also show the proportion of the total cost of the improvement, if any, contributed by the municipality or the county or by any person. The total amount of the assessment levied upon the real estate benefited by the improvement shall not exceed the cost of the improvement less any payment or contribution. If the benefits assessed do not equal the cost less such contribution, the balance shall be paid by the city.

§ 9-10. Viewing of improvement; notice.

After receiving notice of the completion of a local improvement, members of the Board shall examine the improvement and all lands and real estate in the vicinity of the improvement. After the viewing, the Board shall fix a time and place for hearing all persons interested. Notice of the time and place of the hearing shall be mailed to the owners of all real estate affected, directed to their last known post office address, and shall be published at least once in a newspaper circulating in the municipality at least ten (10) days before the hearing. Failure to mail any notice shall not invalidate any proceeding or assessment.

§ 9-11. Criteria for decisions.

The Board shall give all interested parties or parties affected by an improvement ample opportunity to be heard upon the subject of the assessment. The Board's decision shall be based upon an equitable assessment of the burdens conferred upon any real estate as a result of an improvement, giving due regard to the rights and interest of all parties concerned, as well as to the value of the real estate.

Chapter 10

SHADE TREE COMMITTEE*

§ 10-1. Establishment of an advisory Shade Tree Committee; membership.

§ 10-2. Committee-member appointments; terms; compensation.

§ 10-3. Organization of the Shade Tree Committee.

§ 10-4. Shade Tree Committee meetings; attorney; documents.

§ 10-5. Functions of Shade Tree Committee.

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§ 10-1. Establishment of an advisory Shade Tree Committee; membership. [Amended 7-17-2019 by Ord. No. 19-082]

The Jersey City Shade Tree Committee is hereby established to further the proliferation and preservation of shade trees in the City and to ensure the many benefits trees provide to current and future inhabitants of the City.

The Committee shall consist of seven voting members appointed by the Mayor with the advice and consent of Council. Additionally, at least two City staff-members shall serve as non-voting members of the Shade Tree Committee. At least one non-voting member of the Committee shall be present at every Committee meeting. The membership of the Shade Tree Committee shall consist of the following:

1. One voting member shall be a member of the community.

2. One voting member shall be a member of the Jersey City Environmental Commission.

3. One voting member shall be a member of Sustainable Jersey City.

4. Two voting members shall be tree professionals (botanist, forester, horticulturist, landscape architect, arborist, etc.) or shall complete CORE training through Rutgers University and maintain three CEUs every two years.

5. One voting member shall be a member of the Jersey City Parks Coalition.

6. One voting member shall be a Councilperson or his/her designee.

7. One non-voting member shall be the Jersey City Forester. In the event that the position of Forester is vacant, this non-voting member shall be the Director of Parks and Forestry or his/her designee.

***History**—Adopted by the Council of the City of Jersey City June 22, 2005, by Ord. No. 05-075. Amendments noted where applicable. Subsequently, Ord. No. 19-082, adopted June 17, 2019, amended the title of this chapter.

Cross reference—Trees, Ch. 321.

8. One non-voting member shall be the Director of City Planning or his/her designee.

§ 10-2. Committee-member appointments; terms; compensation. [Amended 7-17-2019 by Ord. No. 19-082]

1. The voting committee members shall be divided into three groups as follows:

   a. Group 1:

      i. Member of Sustainable Jersey City;

      ii. Councilmember or his/her designee;

      iii. Tree Professional or CORE-certified individual.

   b. Group 2:

      i. Member of the Jersey City Environmental Commission;

      ii. Member of the community.

   c. Group 3:

      i. Member of the Jersey City Parks Coalition;

      ii. Tree Professional or CORE-certified individual.

2. The first group of voting committee-members shall be appointed within sixty (60) days after the effective date of the ordinance establishing the committee, and their terms of office shall commence upon the day of the appointment and be for the respective periods of two, three, and four years beginning on January 1 of the year following appointment. The term of each appointee shall be designated in the appointment. All subsequent appointments, except to fill vacancies, shall be for the full term of four years, to take effect on January 1.

3. All voting members of the Shade Tree Committee shall be residents of the City of Jersey City and shall serve without compensation.

§ 10-3. Organization of the Shade Tree Committee. [Amended 7-17-2019 by Ord. No. 19-082]

The Committee shall organize within thirty (30) days after the appointment of its total membership for the remainder of the calendar year, and thereafter annually by the election of one of its members as Chairman and another as Vice-Chairman. The Committee may annually elect one of its members as secretary, or, at the request of the Committee, the Mayor may designate a member of his staff to serve as secretary to the Committee.

§ 10-4. Shade Tree Committee meetings; attorney; documents. [Added 7-17-2019 by Ord. No. 19-082]

The Committee shall meet once per month. The committee shall obtain its legal counsel from the City Attorneys at the rate of compensation determined by City Council unless City Council, by appropriation, provides for separate legal counsel for the committee. Ten days prior to a Committee meeting, the relevant City departments shall provide the Committee with all documents to be reviewed for the upcoming meeting.

§ 10-5. Functions of Shade Tree Committee. [Added 7-17-2019 by Ord. No. 19-082]

A. The Committee shall assist in the annual review of the Jersey City Forestry Standards. As part of the review, the Committee shall develop and maintain a recommended tree species list, which shall be incorporated therein.

B. In conjunction with the Department of Parks and Forestry, the committee shall annually determine the payment in lieu of tree replacement pursuant to Section 321-6.B of this Code.

C. The Committee shall review and assist with the quadrennial update of the Community Forestry Management Plan in accordance with the New Jersey Shade Tree and Community Forestry Assistance Act, N.J.S.A. 13:1L-17.1 et seq.

D. The Committee shall work with the Division of Planning and the Division of Parks and Forestry, as well as any other relevant departments or organizations, in requiring tree planting and tree protection as part of development and redevelopment projects.

   1. If a development or redevelopment applicant appearing before a City entity is requesting a deviation from the Forestry Standards as required by this Code, the application shall be submitted to the committee for review. Two weeks before the application is to be heard by a City entity, the committee shall provide the relevant City entity with a report identifying any provisions of the proposed deviation that are contrary to Chapter 321 of this Code and the forestry standards adopted therein. If the committee concludes that the application does not deviate from forestry standards, it shall submit a report stating same to the relevant City agency as outlined above.

E. The committee shall issue an annual report to the Jersey City Municipal Council, the Mayor, and the public which will include a summary of tree-related activities within the City of Jersey City including:

   1. Tree canopy coverage throughout the City;

   2. Location of large, significant, and/or historic trees;

   3. Priority sites or neighborhoods within Jersey City that require the addition of new trees.

F. If, within the same block or, in the case of a park or other City-owned land or tax parcel, the City or any City entity plans to plant six or more trees or remove and replace four or more trees pursuant to 321-6.C of this Code, the Division of Parks and Forestry shall present the planting or removal/replacement plan to the committee at a regularly scheduled meeting and the public will have an opportunity to comment. The committee shall issue a recommendation to the Department of Parks

and Forestry regarding the plan no more than seven days thereafter. If the committee does not submit a recommendation within seven days, it shall be deemed an approval of the Division's plan. If the City is removing four or more trees pursuant to 321-6.C because it has deemed the trees to be a threat to public safety, no public hearing is required before removal. The City's annual tree planting shall not be subject to the public hearing requirements of this subsection.

G. The Committee shall review informational copies of any work orders and any requests by residents in the previous month for the planting, care, removal, etc. of any shade trees located in any public right-of-way, plaza, or park. The Departments of Public Works and Parks and Forestry shall provide the Committee with same in accordance with Section 10-4.

H. The committee shall undertake any other activities, not inconsistent with existing laws, to further tree proliferation and preservation in the City of Jersey City.

Chapter 12

AUTHORITIES, MUNICIPAL

ARTICLE I
Housing Authority

§ 12-1. Authority continued.

ARTICLE II
Reserved

§ 12-2. Reserved.

ARTICLE III
Reserved

§§ 12-3,12-4. Reserved.

ARTICLE IV
Jersey City Municipal Utilities Authority

§ 12-5. Authority established.
§ 12-6. Members; no compensation.
§ 12-7. Alternate members.
§ 12-7.1. Franchise and service agreement; copy to be filed.

ARTICLE V
(Reserved)

[HISTORY: Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Advertising materials — See Ch. 81.
Housing accommodations — See Ch. 188.
Sewers — See Ch. 281.
Solid waste — See Ch. 287.
Vehicles and traffic — See Ch. 332.
Waterfront — See Ch. 340.

ARTICLE I

Housing Authority [Adopted 9-8-1981 as Sec. 2-257 of Ord. No. MC-14]

§ 12-1. Authority continued.

The Housing Authority, as heretofore established pursuant to law (N.J.S.A. 55:14A-4 et seq.), is continued.

ARTICLE II

Reserved*

§ 12-2. Reserved.

ARTICLE III

Parking Authorityt

§§ 12-3,12-4. Reserved.

***Editor'snote—**Ord. No. 15-104, adopted October 14,2015, amended the Code by, in effect, repealing Art. II, § 12-2. Former Art. II pertained to the Incinerator Authority, and derived from Ord. No. MC-14, adopted September 8,1981; Ord. No. 94-085, adopted September 14,1994; Ord. No. 10-030, adopted March 10,2010; Ord. No. 11-103, adopted August 31, 2011; and Ord. No. 13-084, adopted August 22,2013.

+Editor's **note—**Ord. No. 14-017, adopted November 12, 2014, amended the Code by repealing former Art. III, §§ 12-3, 12-3.1, and 12-4. Former Art. Ill pertained to the Parking Authority, and derived from Ord. No. MC-14, adopted September 8,1981; Ord. No. McC-19, adopted September 13, 1989; Ord. No. McC-57, adopted October 25, 1989; Ord. No. 95-050, adopted June 14, 1995; and Ord. No. 99-179, adopted December 15,1999.

ARTICLE IV

Jersey City Municipal Utilities Authority [Adopted 9-8-1981 as Sec. 2-297 of Ord. No. MC-14; amended in its entirety 12-10-1997 by Ord. No. 97-086*]

§ 12-5. Authority established.

The Jersey City Sewerage Authority is hereby reorganized as a public body corporate and politic to be known as the "Jersey City Municipal Utilities Authority" pursuant to law (N.J.S.A. 40:14B-6).

§ 12-6. Members; no compensation. [Amended 3-10-2010 by Ord. No. 10-029; 8-31-2011 by Ord. No. 11-104; 8-28-2013 by Ord. No. 13-083]

The Jersey City Municipal Utilities Authority shall consist of members of the Sewerage Authority holding office at the time of this reorganization, together with any successors in such membership appointed as if said Sewerage Authority had originally been created pursuant to the Municipal and County Utilities Authorities Law (N.J.S.A. 40:14B-4).

The Municipal Utilities Authority is established pursuant to Law N.J.S.A. 40B-1 et seq.

Without exception, no board members, whether new, existing or reappointed, shall receive compensation of any kind for their services. Compensation includes, but is not limited to, salary, the use of a motor vehicle, or any medical, health, life, prescription, optical or dental insurance coverage.

The Board is barred from providing any of its members with compensation of any kind for their services.

§ 12-7. Alternate members.

There shall be two alternate members, designated as Alternate No. 1 and Alternate No. 2, who shall serve during the absence or disqualification of any regular member or members. In the absence or disqualification of one or more regular members, the alternate members shall serve in the following order: Alternate No. 1 shall serve before Alternate No. 2; Alternate No. 2 shall serve if Alternate No. 1 is unable to serve; Alternate Nos. 1 and 2 shall serve if two or more members are absent or disqualified from serving. The

'Editor's note—Subsections C, D, E, and F of this ordinance provided as follows:

C. The Mayor or Business Administrator is hereby authorized to implement the terms and conditions of this ordinance by licensing any real or personal property necessary for the implementation of this ordinance.

D. All contracts and agreements which are presently in effect between the city and JCSA shall be assigned to the JCMUA.

E. All contracts and agreements which are presently in effect between the city and United Water Resources, Inc., or its assigns shall be hereby assigned to the JCMUA.

F. The following water purchase agreements shall be assigned to the JCMUA:

(i) The City of Jersey City and the Borough of West Caldwell dated January 1,1976.

(ii) The City of Jersey City and the Morris County Municipal Utilities Authority dated December 3,1996.

(ii) The City of Jersey City and the Hoboken Water Services, Inc., (an affiliate of the United Water Resources, Inc.) dated August 1,1997.

(iv) The City of Jersey City and United Water New Jersey Inc., dated April 1,1996.

(v) The City of Jersey City and the Montville Township Municipal Utilities Authority dated April 11,1997.

terms of alternate members shall be five years commencing on February 1 of the year of appointment; provided, however, that the initial term of Alternate No. 1 shall be four years and the initial term of Alternate No. 2 shall be five years. The terms of the first alternate members appointed shall commence on the day of their appointment and shall expire on the fourth or fifth January 31 next ensuing after the date of their appointments, as the case may be. Alternate members may participate in discussions of the proceedings but may not vote, except in the absence or disqualification of a regular member. A vote shall not be delayed in order that a regular member may vote instead of an alternate member.

§ 12-7.1. Franchise and service agreement; copy to be filed.

A. The franchise and service agreement hereinbefore referenced is hereby approved substantially in the form on file in the office of the Clerk of the city and incorporated by reference as if set forth at length herein. The appropriate officials of the city are hereby authorized and directed to execute such agreement upon compliance with all of the conditions set forth therein with such changes as deemed necessary, desirable or convenient to effect the transaction contemplated thereby with consent to such changes being evidenced by the execution of such agreement by the Mayor or his designee.

B. In accordance with N.J.S.A. 40:14B-7, a copy of this article duly certified by the Municipal Clerk shall be filed in the Office of the Secretary of State of New Jersey.

ARTICLE V

(Reserved)*

'Editor's note—Ord. No. 10-094, adopted August 4, 2010, amended the Code by repealing former Art. V, §§ 12-8—12-11. Former Art. V pertained to the Jersey City Municipal Port Authority, and derived from Ord. No. MC-25, adopted September 22,1981.

[The next page is 1401]

Chapter 14

BOND ORDINANCES, PROVISIONS OF

§ 14-1. Provision to be contained in all bond ordinances and school bond ordinances.

[HISTORY: Adopted by the Council of the City of Jersey City 7-19-2000 by Ord. No. 00-087. Amendments noted where applicable.]

GENERAL REFERENCES

Bond ordinances — See Ch. A352.

§ 14-1. Provision to be contained in all bond ordinances and school bond ordinances.

A. Upon this chapter becoming effective, all subsequently enacted and effective bond ordinances of the city adopted pursuant to the provisions of the Local Bond Law of New Jersey[1] and school bond ordinances adopted pursuant to the provisions of Title 18A, Education, the New Jersey Statutes shall contain the following provision:

"As of June 30 of the fifth fiscal year following the effective date of such bond ordinance [school bond ordinance], that portion of the appropriation made in such ordinance which is unfunded through the issuance of bond anticipation notes, school promissory notes, and serial bonds and for which no recognized encumbrances are properly recorded upon the financial records of the City shall cease to be effective and such portion of that appropriation shall be repealed, rescinded, and cancelled, provided, however, that in the event the Municipal Council shall adopt a resolution directing the continuation of all or a portion of such unfunded and/or unencumbered appropriation prior to the close of such fifth fiscal year that portion of the appropriation shall remain effective and in force. Such resolution must be delivered to the Municipal Council not less than thirty (30) days prior to consideration by the Municipal Council."

B. The Corporation Counsel of the city and all Special Counsel, including Bond Counsel, are hereby authorized and directed to include this provision in all subsequent bond ordinances and school bond ordinances presented to the Municipal Council for consideration.

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[1] **Editor's Note: See N.J.S.A. 40A:2-1 et seq.**

Chapter 17

CITY PROPERTY, SALE OF

§ 17-1. Definitions.
§ 17-2. Conditions of sale for city-owned property.
§ 17-3. Additional conditions of sale.

[HISTORY: Adopted by the Council of the City of Jersey City 10-3-1978 as Ord. No. S-133. Amendments noted where applicable.]

GENERAL REFERENCES

Administrative Code — See Ch. 3.

Uniform construction codes — See Ch. 131.

§ 17-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

SALE TO A PERSON — A sale to a person directly or indirectly through a corporation or partnership in which the person has a direct or indirect interest.

§ 17-2. Conditions of sale for city-owned property.[1] [Amended 12-5-1978 by Ord. No. S-166]

The general conditions of every sale of city-owned property not needed for public use shall, in addition to other conditions, contain the following:

A. No sale shall be made to any prospective purchaser nor shall said prospective purchaser be permitted to bid who, prior to such sale, has purchased the property being sold or any other property from the city and has breached any of the conditions and terms of that purchase of property from the city.

B. No prospective purchaser who was the previous owner of the property to be sold shall be permitted to bid for said property if the property was acquired by the city by reason of the nonpayment of taxes or other municipal charges by such prospective purchaser.

C. No prospective purchaser shall be permitted to bid for any property to be sold by the city if that prospective purchaser is delinquent in the payment of taxes or other municipal charges on any other property which such person shall own in the city.

D. No sale shall be made to any person who owns any other property in the city, which property has been declared unfit for human habitation and/or which property is in violation

[1] Editor's Note: See also Ch. 3, Administrative Code, § 3-61E.

of the Uniform Construction Code[2] and which violation has not been corrected at the time of the sale.

E. Affidavit required.

(1) The conditions of sale shall contain a requirement that all bidders, whether they be the actual prospective purchasers or agents of or representatives of the actual prospective purchasers, shall submit an affidavit, under oath, setting forth the following:

(a) That the actual prospective purchaser is not a person who has previously breached a contract for the purchase of property from the city.

(b) That the actual prospective purchaser is not the former owner from whom the city acquired the property to be sold by reason of the nonpayment of taxes or other municipal charges.

(c) That the actual prospective purchaser is not an owner of any other property in the city who is delinquent in the payment of taxes or other municipal charges on said other property.

(d) That the actual prospective purchaser is not the owner of any other property in the city which has been declared unfit for human habitation and/or which property is in violation of the Uniform Construction Code and which violation has not been corrected at the time of the sale.

(e) The address and block and lot numbers of all the properties that the prospective purchaser owns in the city.

(f) If the prospective purchaser is a corporation or partnership, that no person who falls within the categories in § 17-1 has a direct or indirect interest in such corporation or partnership.

(2) Such affidavits shall be submitted to the officer conducting the sale prior to the commencement of the public auction of the particular parcel in which the prospective bidder is interested. Failure to submit said affidavit shall disqualify a bidder from participating in the public auction.

§ 17-3. Additional conditions of sale. [Amended 4-8-1992 by Ord. No. 92-033]

A. All conditions of sale of city-owned property not needed for public use shall contain a provision that no sale to the highest bidder shall be confirmed by the Municipal Council in the event that an investigation and/or inspection reveals that the purchaser is a person who falls within the categories listed in § 17-2 of this chapter. The conditions of sale shall also state that in the event that the sale is confirmed by the Municipal Council and after the sale has been confirmed by the Municipal Council it is discovered that the purchaser is a person who falls within the category set forth in § 17-2 of this chapter, then the purchaser is placed on notice that said confirmation of sale shall be rescinded by the Municipal Council.

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[2] **Editor's Note: See Ch. 131, Construction Codes, Uniform.**

B. When authorized by the City Council, the Office of Real Estate of the City of Jersey City shall include the following subordination clause in deeds transferring title to lands not needed for public use sold by the city pursuant to N.J.S.A. 40A:12-13:

> The City of Jersey City's right of reversion is hereby subordinated to the mortgage of the buyer's lender specifically as follows: A transfer of title to such mortgagee pursuant to the mortgage will not be considered a condition activating the City of Jersey City's right of reversion. The express intent being that prior to reversion of title to the City of Jersey City, the mortgagee shall have the right to assume the obligations and duties of buyer set forth in this deed including the buyer's duty to make the required repairs within the number of days as set forth in the Council resolution authorizing the sale of property at public auction. The assumption of the duties and obligations of the buyer by the mortgagee shall not extend the time period for completion of repairs. The mortgagee's right to assume the duties and obligations of the buyer shall arise upon a default under the mortgage and/or upon a default under the terms and conditions of the City Council resolution authorizing the sale of the property at public auction.

Chapter 19

CLAIMS, PAYMENT OF*

§ 19-1. Method of payment; procedure.

§ 19-2. Authorized signatures; city checks.

§ 19-1. Method of payment; procedure. [Amended 6-14-1995 by Ord. No. 95-050; 4-24-2019 by Ord. No. 19-030]

A. Claims shall be paid in accordance with N.J.S.A. 40A:5-16.

B. Payments of claims may be made by use of Procurement Cards, by authorized individuals and subject to guidelines and procedures established in accordance with N.J.S.A. 40A:5-17 and N.J.A.C. 5:30-9A, as may be amended.

Note—N.J.A.C. 50:30-9A sets forth standards the City must follow when using procurement cards for the payment of claims. N.J.A.C. 50:30-9A establishes minimum fiscal and operational controls that must be implemented prior to the use of procurement cards.

§ 19-2. Authorized signatures; city checks.

A. Checks issued by the city in payment of any claims, including claims for salaries, wages or other compensation for services, shall bear the signature of the Mayor or the Business Administrator and the Chief Financial Officer or of some officer or officers designated by them to act in their behalf for this purpose, signed mechanically or by hand. Such designation shall be in writing and filed in the office of the City Clerk. **[Amended 3-25-1993 by Ord. No. 92-020; 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052]**

B. All checks drawn against the bond account of the City of Jersey City or the interest account of the City of Jersey City for the transfer of city funds between designated banks or depositories shall bear the signatures of both the Mayor and the City Treasurer. In the absence or incapacity of either the Mayor or City Treasurer, or both, such checks may be signed by persons designated by either official and may be signed either mechanically or by hand. Such designation shall be in writing and filed in the office of the City Clerk.

Cross reference—Division of Accounts and Control, § 3-57.

***History—**Adopted by the Council of the City of Jersey City November 27, 1985 as Sections 2-59, 2-60 and 2-61 of Ord. No. C-48. Amendments noted where applicable.

Cross reference—Administration of government, Ch. 3.

Chapter 21

CONTRACTS AND INVESTMENTS*

ARTICLE I
Contracting Authority

§ 21-1. Required signatures.

§ 21-2. Material changes to program or entity receiving a grant award from the City without prior notification to the City prohibited.

§ 21-3. Hiring of freelance workers for services of $500 or more by persons regularly engaged in commercial or business activity requires written contract for services specifying date of payment; prohibition against coercive acts during course of services.

ARTICLE I

Contracting Authority

[Adopted 5-4-1971 as Sec. 1-23 of the 1971 Jersey City Code and as readopted 9-19-1978 by Ord. No. S-128]

§ 21-1. Required signatures.

Unless as otherwise provided by law, all contracts and agreements on behalf of the City of Jersey City, as authorized by the Municipal Council, shall bear the signature of either the Mayor or Business Administrator as the contracting authority for the city.†

§ 21-2. Material changes to program or entity receiving a grant award from the City without prior notification to the City prohibited. [Added 9-9-2015 by Ord. No. 15-116]

A. Any entity or its affiliate that is awarded a grant by the City and is contemplating any change(s) which may materially alter the scope of the grant, including, but not limited to, a change in mission, size or location of the program or entity or affiliate of the entity receiving the grant, must notify the Business Administrator and City Clerk at least 180 days prior to any such change(s) taking place.

B. Failure to notify the Business Administrator of such change(s) may result in the suspension or cancellation of the subject grant.

C. All future grant agreements shall incorporate this section by reference.

***History**—Adopted by the Council of the City of Jersey City: Art. I, May 4, 1971 as Sec. 1-23 of the 1971 Jersey City Code and as readopted September 19, 1978 by Ord. No. S-128. Amendments noted where applicable.

†**Editor's note**—See also Ch. 3, Administrative Code, § 3-11G.

§ 21-3. Hiring of freelance workers for services of $500 or more by persons regularly engaged in commercial or business activity requires written contract for services specifying date of payment; prohibition against coercive acts during course of services. [Added 6-13-2018 by Ord. No. 18-051]

A. It shall be unlawful for any person engaged in any regular commercial or business activity in the City of Jersey City or for any person acting in behalf of such person to retain the services of a freelance worker, if the promised payment for such services is $500.00 or more, either at the time of retention or within the prior 120 days, without a written contract in compliance with subsection B of this section; nor shall any such person:

1. Fail or refuse to pay the agreed payment within 30 days after completion of the agreed services;

2. Demand as a condition of timely payment after work has begun that the freelance worker accept less payment than the amount of the agreed compensation; or

3. Deny or threaten to deny a work opportunity to, or discriminate against, a freelance worker, or take any other action that penalizes a freelance worker for, or is reasonably likely to deter a freelancer worker from, exercising or attempting to exercise any right guaranteed under this chapter, or from obtaining future work opportunity because the freelance worker has done so.

It shall be a defense to any violation charged under this section that the freelance worker has not completed the agreed services unless the failure to complete the agreed services was caused by the hiring party's failure to cooperate in good faith with the freelance worker, provided, however, that timely payment for the value of completed services may not be withheld because of a disagreement over any additional payments claimed by the freelance worker.

B. The written contract shall include, at a minimum, the following information:

1. The name and mailing address of both the hiring party and the freelance worker;

2. An itemization of all services to be provided by the freelance worker, the value of the services to be provided pursuant to the contract and the rate and method of compensation; and

3. The date on which the hiring party must pay the contracted compensation or the mechanism by which such date will be determined.

C. For purpose of this law, a person regularly engages in commercial or business activity if he or she owns or operates any business or trade or commercial property within the city or holds himself or herself out as regularly engaging in any business or trade. The resident owner of residential real property with four or fewer units and no commercial unit is not considered to be engaged in commercial or business activity under this section.

D. As used herein "freelance worker" means any natural person or any organization composed of no more than one natural person, whether or not incorporated or employing a trade name, that is hired or retained as an independent contractor by a hiring party to provide services in exchange for compensation. This term does not include:

1. Any person who, pursuant to the contract at issue, is a sales representative as defined in N.J.S.A. Title 2A;

2. Any licensed attorney; and

3. Any person who is a licensed medical professional.

Chapter 23

COURT, MUNICIPAL*

§ 23-1. Court established.
§ 23-2. Number of Judges; terms.
§ 23-3. Sessions.
§ 23-4. Employment of full-time Judges restricted.
§ 23-5. Duties of full-time Judges.
§ 23-6. Duties of part-time Judges.
§ 23-7. Judges' salaries; vacation leaves and other benefits.
§ 23-8. Chief Judge.
§ 23-9. Appointment of Judges.
§ 23-10. Qualification of Judges; residency.
§ 23-11. Municipal Court Justice Clinic.
§ 23-12. Alternative dispute resolution.

§ 23-1. Court established. [Amended 7-19-2000 by Ord. No. 00-080]

There is hereby created and established in the City of Jersey City a Municipal Court which shall be known and designated as the "Municipal Court of Jersey City" pursuant to N.J.S.A. 2B:12-1 et seq. As a part of that Court, there shall be a Municipal Housing Court pursuant to N.J.S.A. 2B:12-20.

§ 23-2. Number of Judges; terms. [Amended 10-27-1981 by Ord. No. MC-63; 1-12-1984 by Ord. No. MC-554; 2-9-1984 by Ord. No. MC-567; 9-12-1985 by Ord. No. C-10; 5-8-1986 by Ord. No. C-214; 9-8-1988 by Ord. No. C-801; 6-27-2018 by Ord. No. 18-067]

A. The Municipal Court of Jersey City shall consist of twelve Judges. Seven of the Judges shall be full-time Judges, and five of the Judges shall be part-time Judges. One of the full-time Judges shall be designated the Chief Judge in accordance with § 23-8. **[Amended 5-13-1998 by Ord. No. 98-051; 7-22-1998 by Ord. No. 98-083; 11-23-2010 by Ord. No. 10-142; 5-28-2014 by Ord. No. 14-051; 8-17-2022 by Ord. No. 22-067]**

B. Each of the full-time Judges, the Chief Judge and the part-time Judges shall serve for a term of three years from the date of appointment and until a successor is appointed and qualified.

§ 23-3. Sessions.

The Municipal Court shall be divided into two sessions. One session shall be known and designated as the "daytime session" and the other session shall be known and designated as the "evening session."

§ 23-4. Employment of full-time Judges restricted. [Amended 7-19-2000 by Ord. No. 00-080]

The full-time Judges appointed pursuant to this chapter may engage in the practice of law except as prohibited by Court Rule 1:15-1(b) and any other gainful employment except as prohibited by the Code of Judicial Conduct during their respective terms of office as full-time Judges.

***History**—Adopted by the Council of the City of Jersey City September 8, 1981 as Ch. 2, Art. XVII, Subarticle 10, of Ord. No. MC-14. Amendments noted where applicable.

Cross references—Office of the Public Defender, § 3-47; personnel policies, Ch. 53.

§ 23-5. Duties of full-time Judges. [Amended 10-27-1981 by Ord. No. MC-63]

During their respective terms of offices all full-time Municipal Court Judges shall devote full-time to their judicial duties. Full-time judges shall be assigned to the daytime Municipal Court session. In addition thereto, full-time Judges shall also be assigned to the evening court session whenever a part-time Municipal Court Judge is absent or whenever it becomes otherwise necessary. In addition, at such time as the Assignment Judge for Hudson County Superior Court shall designate a full-time Judge to serve as a Judge of the Hudson County Central Judicial Processing Court, such Judge shall devote full-time to such Court.

§ 23-6. Duties of part-time Judges. [Amended 10-27-1981 by Ord. No. MC-63; 1-12-1984 by Ord. No. MC-554; 2-9-1984 by Ord. No. MC-567; 9-12-1985 by Ord. No. C-10]

The part-time Judges may be assigned as needed to either day or evening court sessions by the Presiding Judge.

§ 23-7. Judges' salaries; vacation leaves and other benefits. [Amended 10-27-1981 by Ord. No. MC-63; 9-13-1989 by Ord. No. McC-12; 11-26-1996 by Ord. No. 96-118; 10-12-2005 by Ord. 05-142]

A. Pursuant to N.J.S.A. 2B:12-7b, the annual salaries of the Judges of the Municipal Court shall be set as follows **[Amended 1-23-2008 by Ord. No. 08-003; 9-10-2008 by Ord. No. 08-105]**:

Salary	Title
$45,000	Judge of Municipal Court (part-time)*
$100,000	Judge of Municipal Court (full-time)**
$110,000	Judge of Municipal Court (designated Chief Judge)

*** Part-time means a minimum of twenty (20) hours or five sessions per week.**

**** Full-time means a minimum of forty (40) hours or ten (10) sessions per week.**

B. The vacation leave and other benefits for Judges of the Municipal Court shall be the same as those for other nonunion unclassified personnel and nonunion managerial personnel as provided for in Jersey City Code Chapter 53, §§ 53-38 through 53-49.

§ 23-8. Chief Judge. [Amended 10-27-1981 by Ord. No. MC-63; 7-19-2000 by Ord. No. 00-080]

The Mayor, with the advice and consent of the Municipal Council, shall designate one of the Judges of the Municipal Court as the Chief Judge of said Court. Said designation may be changed from time to time by the same coordinated actions of the Mayor and Municipal Council. The Chief Judge may designate a Judge to act in his or her behalf during his or her absence or disability.

§ 23-9. Appointment of Judges.

All appointments of Judges of the Municipal Court shall be made by the Mayor with the advice and consent of the Municipal Council.

State law reference—Additional municipal judges, N.J.S.A. 2B:12-5.

§ 23-10. Qualification of Judges; residency. [Amended 7-19-2000 by Ord. No. 00-080]

All Municipal Court Judges shall be domiciled in the City of Jersey City at the time of their appointment and during their terms of office. In the event that a Municipal Court Judge shall move his or her domicile out of the city, his or her office shall be deemed to be vacant. All Municipal Court Judges shall be admitted to practice law in the State of New Jersey for at least five years at the time of their appointment.

§ 23-11. Municipal Court Justice Clinic. [Added 7-19-2000 by Ord. No. 00-080]

The Municipal Court pursuant to Court Rule 1:21-3(b) may coordinate the establishment of a program authorizing the appearance by law students and graduates of law schools before the Court subject to the approval of the Supreme Court.

§ 23-12. Alternative dispute resolution. [Added 7-19-2000 by Ord. No. 00-080]

The Municipal Court pursuant to Court Rule 7:8-1 and Court Rule 1:40-7 may establish a mediation program to resolve minor disputes and provide an alternative to prosecution for persons who might be harmed by the imposition of quasi-criminal sanctions as presently administered when an alternative can be expected to serve as a sufficient sanction to deter such conduct.

Chapter 25

CULTURAL ARTS COMMISSION

§ 25-1.	Commission established; appointment; compensation; terms; vacancies.	§ 25-4.	Powers of Commission.
		§ 25-5.	Use of funds.
		§ 25-6.	Meetings.
§ 25-2.	Chairman; officers.	§ 25-7.	Records; annual report.
§ 25-3.	Purpose.		

[HISTORY: Adopted by the Council of the City of Jersey City 9-8-1981 as Ch. 2, Art. XVII, Subarticle 19, of Ord. No. MC-14. Amendments noted where applicable.]

GENERAL REFERENCES

Administration of government — See Ch. 3.

§ 25-1. Commission established; appointment; compensation; terms; vacancies.

A Cultural Arts Commission, to consist of seven (7) members, is hereby established for the City of Jersey City. The members of the Cultural Arts Commission shall be appointed by the Mayor, with the advice and consent of the Municipal Council, and shall be citizens and residents of Jersey City. All members shall serve without compensation. The members who are first appointed shall serve the following terms: two (2) for a term of one (1) year; two (2) for a term of two (2) years; one (1) for a term of three (3) years; one (1) for a term of four (4) years and one (1) for a term of five (5) years. Thereafter, members shall be appointed as aforesaid, for a term of five (5) years, except all vacancies shall be filled for the unexpired term.[1]

§ 25-2. Chairman; officers.

One (1) of said members shall be elected by the members of the Cultural Arts Commission as Chairman. The Commission may have such other officers as it deems necessary.

§ 25-3. Purpose. [Amended 12-8-1993 by Ord. No. 93-139; 3-13-02 by Ord. No. 02-022]

The purpose of the Cultural Arts Commission shall be to support and make recommendations to the Director of Health and Human Services and/or his/her designee in conducting cultural programs such as, but not limited to, art exhibits, plays, concerts, dance recitals and other similar activities for the benefit of the residents of Jersey City.

1 Editor's Note: See also Art. XVII, Agencies and Commissions, of Ch. 3, Administration of Government.

§ 25-4. Powers of Commission.

In pursuance of such purposes, the Cultural Arts Commission shall have all powers reasonable and necessary to carry out its purposes. Such powers shall include, but are not limited to, the power to solicit and receive gifts, bequests or grants of real or personal property.

§ 25-5. Use of funds.

Funds received by the Cultural Arts Commission as gifts or bequests shall be deposited in a Jersey City trust account until their use is approved by the Municipal Council. Dedicated funds shall be spent for the purpose for which the funds were received, in accordance with the Local Budget Law (N.J.S.A. 40A:4-1 et seq.).

§ 25-6. Meetings.

The Cultural Arts Commission shall meet on or immediately after January 1 of each year for purposes of reorganization. The agenda at this meeting should include election of officers, appointment of committees, adoption of bylaws or rules of procedure, fixing date and place of meetings and such other business as shall properly come before the Commission at the annual reorganization meeting.

§ 25-7. Records; annual report.

The Cultural Arts Commission shall keep records of its meetings, activities and finances and shall make an annual report to the Municipal Council.

Chapter 27

DEFENSE AND INDEMNIFICATION*

§ 27-1. Purpose; prior practices superseded.
§ 27-2. Definitions.
§ 27-3. Corporation Counsel's duty to defend city employees.
§ 27-4. Grounds for refusal to provide defense.
§ 27-5. Methods of providing defense.
§ 27-6. Corporation Counsel to assume control of defense.
§ 27-7. Indemnification of employee; punitive damages.

§ 27-1. Purpose; prior practices superseded.

It has been the practice of the City of Jersey City to defend lawsuits against employees which arise out of the good faith performance of official duties and to pay any judgment against an employee which he or she incurs in the good faith performance of official duties. The purpose of this chapter is to define clearly the circumstances under which the Corporation Counsel will defend lawsuits against employees and the terms on which the city will indemnify employees against any judgments arising out of official duties. The duty to defend and indemnify employees, as defined in this chapter, supersedes all prior customs and practices regarding the defense and indemnification of employees.

§ 27-2. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

EMPLOYEE - Any officer or employee of the City of Jersey City, whether elected or appointed, except employees of the Department of Public Safety entitled to a legal defense under N.J.S.A. 40A:14-28 and 40A:14-155.

LEGAL ACTION or ACTION - Includes any civil action against an employee before any court or administrative body of competent jurisdiction, either state or federal, whether brought by way of complaint, cross-claim or counterclaim. The term "legal action" does not include criminal or quasi-criminal actions, whether brought by complaint or indictment.

§ 27-3. Corporation Counsel's duty to defend city employees.

Except as provided in § 27-4, the Corporation Counsel shall provide for the defense of any legal action against an employee arising out of an act or omission within the scope of employment, provided that the employee:

A. Requests a legal defense in writing.

*__History__—Adopted by the Council of the City of Jersey City at time of adoption of Code; see Ch. 1, General Provisions, Art. I. Amendments noted where applicable.

__Cross references__—Administration of government, Ch. 3; ethics, Ch. 33; personnel policies, Ch. 53.

B. Cooperates with the Corporation Counsel in his or her defense.

Cross reference—Powers and duties of Corporation Counsel, § 3-115.

§ 27-4. Grounds for refusal to provide defense. [Amended 6-26-2019 by Ord. No. 19-066]

A. The Corporation Counsel may refuse to provide for the defense of a legal action against an employee if he or she determines that:

(1) The act or omission was not within the scope of employment;

(2) The act or omission was one of fraud, actual malice, willful misconduct or one that would constitute a crime or offense under N.J.S.A. 2C, federal criminal law or an act committed in another state that would constitute a crime or offense under N.J.S.A. 2C.

(3) Legal defense by the Corporation Counsel would create a conflict of interest between the city and the employee;

(4) The employee has failed to cooperate fully with the Corporation Counsel in his or her defense;

(5) The employee failed to request a legal defense; or

(6) The action was brought by the city against the employee.

B. Under circumstances where the factual predicate for a legal action against an employee cannot be ascertained with certainty, the Corporation Counsel may, in the exercise of his or her discretion, provide for the defense of a legal action against an employee under a reservation of rights. If the Corporation Counsel later determines that the employee is not entitled to a legal defense at the city's expense, he or she shall so notify the employee in writing and the city's obligation to provide a defense for the employee shall cease.

§ 27-5. Methods of providing defense.

A. The Corporation Counsel may at his or her option provide for legal defense of an employee by:

(1) Assigning the defense to an attorney on his or her staff;

(2) Engaging an independent attorney selected by the Corporation Counsel; or

(3) Asserting the city's right to a defense under any appropriate insurance policy which requires the insurer to provide the defense.

B. No employee shall be reimbursed for the expenses of a legal defense unless the Corporation Counsel has agreed in writing to the amount of reimbursement before the employee incurs any expenses in his or her defense.

§ 27-6. Corporation Counsel to assume control of defense.

Whenever the Corporation Counsel provides for the defense of an employee, he or she may assume exclusive control over the employee's defense, and the employee shall cooperate fully with the Corporation Counsel's defense.

§ 27-7. Indemnification of employee; punitive damages. [Amended 6-26-2019 by Ord. No. 19-066]

A. Whenever the Corporation Counsel is required to provide for the defense of any action against an employee, the city shall pay or reimburse the employee for:

(1) Any bona fide settlement of the action approved by the Corporation Counsel and the City Council.

(2) Any judgment against the employee.

B. Subject to Subsections C and D, in any legal action in which the defense of an employee is provided under a policy of liability insurance, the city shall indemnify the employee against any judgment or settlement to the extent not provided by such insurance.

C. Notwithstanding any other provision of this Chapter, the city will not indemnify, pay or reimburse an employee for any judgment entered against them in a legal action if it is determined that the basis for such judgment was an unlawful exercise of the employee's official duties, including, but not limited to conduct that constitutes discrimination, harassment, retaliation or any intentional tort. This prohibition on indemnification also includes conspiracy to and/or aiding and abetting of an unlawful exercise of another employee's official duties as described above. The city may, however, indemnify, pay or reimburse an employee for a judgment entered against them in such a legal action if, in the opinion of the Corporation Counsel, the act or omission upon which the judgment was entered was not an unlawful exercise of the employee's official duties as described above.

D. Nothing in this section shall authorize the city to pay punitive or exemplary damages assessed against an employee or any damages resulting from the commission of a crime, actual malice, actual fraud or willful misconduct.

Editor's note—Former Section 2-223.4, which followed this section in the original legislation upon which this chapter is based (Ord. No. MC-303), and which authorized reimbursement of Council fees for civilian employees, was declared invalid by a ruling of the Superior Court of New Jersey.

Chapter 31

ENVIRONMENTAL COMMISSION

§ 31-1.	**Commission created.**	**§ 31-6.**	**Cooperation with city departments and agencies.**
§ 31-2.	**Membership; terms; alternates.**	**§ 31-7.**	**Reserved for miscellaneous ordinances.**
§ 31-3.	**Removal.**		
§ 31-4.	**Purpose; powers.**		
§ 31-5.	**Clerical and technical assistance.**		

[HISTORY: Adopted by the Council of the City of Jersey City 9-8-1981 as Ch. 2, Art. XVII, Subarticle 7.1, of Ord. No. MC-14. Amendments noted where applicable.)

GENERAL REFERENCES

Planning Board — See Ch. 56.
Zoning Board of Adjustment — See Ch. 74.
Subdivision of land — See Ch. 299.
Water —See Ch. 337.
Zoning — See Ch. 345.

§ 31-1. Commission created.

There is hereby created, pursuant to N.J.S.A. 40:56A-l et seq., the Municipal Environmental Commission, to act and exercise the powers and functions as set forth herein.

§ 31-2. Membership; terms; alternates. [Amended 4-28-1988 by Ord. No. C-710; 1-26-2011 by Ord. No. 11-002]

A. The Municipal Environmental Commission shall consist of seven (7) members and two (2) alternates to be appointed by the Mayor, who shall designate one (1) of the members to serve as Chairperson and presiding officer. All members and alternates must be residents of the City of Jersey City. Best efforts shall be utilized to have each ward of the city represented by at least one (1) member. One (1) of the members shall also be a member of the Municipal Planning Board. Best efforts shall be utilized to appoint at least three (3) members who are professional environmental scientists, geologists, toxicologists, botanists or other environmental specialists. All members and alternates shall serve without compensation.

B. Each member of the Municipal Environmental Commission shall be appointed for a term of three (3) years. All appointments to fill vacancies that may occur shall be for the unexpired term of the vacating member.

§ 31-3. Removal.*

The Mayor may remove any member of the Commission for cause, on written charges. Such written charges must be served upon the member, and after a hearing on the allegations the member shall be entitled to be heard in person or by counsel.

***Editor's Note: See also Ch. 3, Administrative Code, Art, XVII, Agencies and Commissions.**

§ 31-4. Purpose; powers. [Amended 4-28-1988 by Ord. No. C-710; 1-26-2011 by Ord. No. 11-002]

A. The purposes of the Environmental Commission are to:

(1) Promote the protection and conservation of land, air, water and other natural resources within the territorial limits of the municipality. Such promotion shall consist of educating the public and advising city government about the best methods for protecting and conserving these resources.

(2) Assist the city in the proper development and use of these resources by coordinating the planning efforts of the various departments, agencies and agents who provide environmental services.

(3) Promote the protection of the public health by educating the public and advising city government about environmental health hazards.

B. The Environmental Commission shall:

(1) Conduct research into the use and possible use of open land areas of the municipality and:

(a) Have the power to coordinate the activities of unofficial bodies organized for similar purposes.

(b) Keep a Natural Resources Index of all open areas whether publicly or privately owned, including open marshlands, swamps and other wetlands, in order to obtain information on the proper use of such areas.

(c) Have the authority to recommend to the Planning Board plans and programs for the development and use of such areas for inclusion in the Municipal Master Plan.

(2) Have the power to advertise, prepare, print and distribute books, maps, charts, plans and pamphlets which it deems necessary for its purposes.

(3) Have the power to study and make recommendations concerning open space preservation, water resources management, air pollution control, solid waste management, noise control, environmental appearance, marine resources, protection of flora and fauna and any other environmental concerns which affect the enjoyment and health of the public.

(4) Refer matters to the proper city authorities whenever violations of environmental law come to its attention.

(5) Keep records of its meetings and activities and shall make an annual report to the governing body of the municipality.

(6) Coordinate and/or respond to volunteer neighborhood efforts to solve environmental problems. This includes convening at least every two (2) years a conference at which municipal officials and citizens shall discuss the status of environmental services and the means to improve them.

(7) Assist in the formulation of funding plans submitted to the Green Acres/Green Trust program of the New Jersey Department of Environmental Protection.

(8) Delegate an Environmental Commissioner to be a permanent member of the Local Emergency Planning Council (per federal P.L. 99-499) and delegate other Commissioners to be members of other municipal environmental bodies as government creates from time to time.

§ 31-5. Clerical and technical assistance.

A. For the purposes of effectuating the goals of this chapter, the Environmental Commission shall have such clerical and technical assistance, materials, supplies and provisions for such other costs and expenses of the Commission as shall annually be budgeted by the Office of the Mayor and approved by the City Council.

B. The Commission may appoint such clerks and other employees as it may from time to time require and as shall be within the limits of funds appropriated to it.

§ 31-6. Cooperation with city departments and agencies.

All city departments and agencies shall cooperate with the work of the Environmental Commission to the degree possible and permitted by law.*

§ 31-7. Reserved for miscellaneous ordinances.

***Editor's Note: Former Sec. 2-256.6, entitled "Reorganization of Commission," which immediately followed this section, was repealed 4-28-1988 by Ord. No. C-710.**

Chapter 33

ETHICS

ARTICLE I
Conflicts of Interest

§ 33-1. Action not to be compensated.
§ 33-2. Restricted activities.
§ 33-3. Exceptions.

ARTICLE II
Code of Ethics

§ 33-4. Title.
§ 33-5. Purpose.
§ 33-6. Definitions.
§ 33-7. Ethical standards.
§ 33-8. Financial disclosure statements.
§ 33-9. Ethical Standards Board.
§ 33-10. Facilities and staff.
§ 33-11. Code of Ethics.
§ 33-12. Powers of Ethical Standards Board.
§ 33-13. Advisory opinions.
§ 33-14. Complaints.
§ 33-15. Enforcement; penalties for offenses.
§ 33-16. Records of Ethical Standards Board.

[HISTORY: Adopted by the Council of the City of Jersey City: Art. I, 10-9-1986 as Ord. No. C-259-A; Art. II, 6-12-1991 as Ord. No. McC-330. Amendments noted where applicable.]

GENERAL REFERENCES

Administration of government - See Ch. 3.
Defense and indemnification - See Ch. 27.
Personnel policies - See Ch. 53.

ARTICLE I
Conflicts of Interest

[Adopted 10-9-1986 as Ord. No. C-259-A]

§ 33-1. Action not to be compensated.

No employee of the city, whether paid or unpaid, shall for a period of one (1) year after leaving employment receive compensation from any person, firm or entity in relation to any case, application, project or matter with which the employee was directly concerned or in which the employee directly participated or with respect to which the employee had access to special knowledge or information during the employee's employment with the City of Jersey City.

§ 33-2. Restricted activities.

A former employee shall be barred for one (1) year from any activities in relation to any case, proceeding, application or other matter in behalf of any person, firm or entity which would be adverse to the interests of the city or of any city agency.

§ 33-3. Exceptions.

A former employee may engage in private employment or activities which § 33-1 would otherwise prohibit if:

A. The head of the affected agency or department certifies in writing that the former employee's activities or employment will serve the interests of the city.

B. The Corporation Counsel finds that the employment or activities satisfy the requirements of this Article and gives written approval.

ARTICLE II
Code of Ethics

[Adopted 6-12-1991 as Ord. No. McC-330]

§ 33-4. Title.

This Article shall be known and may be cited as the "City of Jersey City Code of Ethics."

§ 33-5. Purpose.

It is the purpose of this Article to provide a method of assuring that standards of ethical conduct and financial disclosure requirements for officers and employees shall be clear, consistent, uniform in their application and enforceable and to provide those officers or employees with advice and information concerning possible conflicts of interests which might arise in the conduct of their public duties.*

* **Editor's Note: This Article is enacted under the authority of the Local Government Ethics Law, L. 1991, c. 29 (N.J.S.A. 40A:9-22.1), and under the further authority granted to the City of Jersey City under the provisions of Title 40 and 40A of the New Jersey Statutes.**

§ 33-6. Definitions. [Amended 2-11-2003 by Ord. No. 03-011; 5-18-2005 by Ord. 05-049]

As used in this Article, the following terms shall have the meanings indicated:

AGENCY — Any agency, board, governing body including the chief executive officer, office, commission or other instrumentality within the City of Jersey City and any independent local authority created by or appointed under the authority of the City of Jersey City which performs functions other than of a purely advisory nature.

BOARD — The City of Jersey City Ethical Standards Board.

BUSINESS ORGANIZATION - Any corporation, partnership, firm, enterprise, franchise, association, trust, sole proprietorship, union or other legal entity.

CANDIDATE - Any candidate for elective office in the City of Jersey City.

EMPLOYEE - Any person, whether compensated or not, whether part-time or full-time, employed by or serving on an agency who is not a local government officer, but shall not mean any employee of a school district.

INTEREST - The ownership or control of more than ten percent (10%) of the profits, assets or stock of a business organization, but shall not include the control of assets in a nonunion profit entity or labor union.

MEMBER OF IMMEDIATE FAMILY - The spouse or dependent child of an officer or employee residing in the same household.

OFFICER - Any person, whether compensated or not, whether part-time or full-time:

A. Elected to any office of a government agency.

B. Serving on a local government agency which has the authority to enact ordinances, approve development applications or grant zoning variances.

C. Who is a member of an independent municipal, county or regional authority.

D. Who is a managerial executive or confidential employee of a local government agency, as defined in Section 3 of the New Jersey Employer-Employee Relations Act, P.L. 1941, c. 100 (N.J.S.A. 34:13A-3), but shall not mean any employee of a school district or member of a school board.

E. Any other person who is a managerial executive or confidential employee, as defined in Section 3 of the New Jersey Employer-Employee Relations Act (N.J.S.A. 34:13A-3) of the City of Jersey City or of an agency created under the authority of or appointed by the City of Jersey City.

OFFICER OR EMPLOYEE - An officer or employee of the City of Jersey City under the authority of or appointed by the City of Jersey City.

§ 33-7. Ethical standards.

Officers or employees under the jurisdiction of the Local Finance Board shall comply with the following provisions:

A. No officer or employee or member of his or her immediate family shall have an interest in a business organization or engage in any business, transaction or professional activity which is in substantial conflict with the proper discharge of his or her duties in the public interest.

B. No independent local authority shall for a period of one (1) year next subsequent to the termination of office of a member of that authority:

(1) Award any contract which is not publicly bid to a former member of that authority;

(2) Allow a former member of that authority to represent, appear for or negotiate on behalf of any other party before that authority; or

(3) Employ for compensation, except pursuant to open competitive examination in accordance with Title 11A of the New Jersey Statutes and the rules and regulations promulgated pursuant thereto, any former member of that authority. The restrictions contained in this subsection shall also apply to any business organization in which the former authority member holds an interest.

C. No officer or employee shall use or attempt to use his or her official position to secure unwarranted privileges or advantages for himself/herself or others.

D. No officer or employee shall act in his or her official capacity in any matter where he, a member of his or her immediate family or a business organization in which he or she has an interest has a direct or indirect financial or personal involvement that might reasonably be expected to impair his or her objectivity or independence of judgment.

E. No officer or employee shall undertake any employment or service, whether compensated or not, which might reasonably be expected to prejudice his or her independence of judgment in the exercise of his or her official duties.

F. No officer or employee, member of his or her immediate family or business organization in which he or she has an interest shall solicit or accept any gift, favor, loan, political contribution, service, promise of future employment or other thing of value based upon an understanding that the gift, favor, loan, contribution, service, promise or other thing of value was given or offered for the purpose of influencing him or her, directly or indirectly, in the discharge of his or her official duties. This provision shall not apply to the solicitation or acceptance of contributions to the campaign of an announced candidate for elective public office, if the officer has no knowledge or reason to believe that the campaign contribution, if accepted, was given with the intent to influence the officer in the discharge of his or her official duties.

G. No officer or employee shall use or allow to be used his or her public office or employment or any information, not generally available to the members of the public, which he or she receives or acquires in the course of and by reason of his or her office or employment for the purpose of securing financial gain for himself or herself, any member of his or her immediate family or any business organization with which he or she is associated.

H. No officer or employee or business organization in which he or she has an interest shall represent any person or party other than the city in connection with any cause, proceeding, application or other matter pending before any agency in the city. This provision shall not be deemed to prohibit one employee from representing another employee where the agency is the employer and the representation is within the context of official labor union or similar representational responsibilities.

I. No officer shall be deemed in conflict with these provisions if, by reason of his or her participation in the enactment of any ordinance, resolution or other matter required to be voted upon or which is subject to executive approval or veto, no material or monetary gain accrues to him or her as a member of any business,

§33-11. Code of ethics. [Amended 2-11-2003 by Ord. 03-011; 5-18-2005 by Ord. 05-049]

The resolution promulgated by the former City of Jersey City Ethical Standards Board and approved by the Local Finance Board, that established a Code of Ethics for all officers and employees serving the city, shall remain in full force and effect and shall be enforced by the Board at its discretion. Officers and employees serving a city independent authority shall be deemed to be serving the city for purposes of this Article.

§ 33-12. Powers of Ethical Standards Board.

The Board shall have the following powers:

A. To initiate, receive, hear and review complaints and hold hearings on violations of the Municipal Code of Ethics or financial disclosure requirements.

B. To issue subpoenas for the production of documents and the attendance of witnesses with respect to its investigation of any complaint or to the holding of a hearing.

C. To forward to the County Prosecutor or the Attorney General or other governmental body any information concerning violations of the Code of Ethics or financial disclosure requirements by officers or employees serving the city which may warrant the institution of other legal proceedings by the Attorney General.

D. To render advisory opinions to local officers or employees serving the city as to whether a given set of facts and circumstances would constitute a violation of any provision of the Code of Ethics or financial disclosure requirements.

E. To enforce the provisions of the Code of Ethics and financial disclosure requirements with regard to officers or employees serving the city and to impose penalties for the violation thereof as are authorized by this Article.

F. To adopt rules and regulations and to do other things as are necessary to implement the purposes of this Article.

§ 33-13. Advisory opinions.

A. An officer, candidate or employee may request and obtain from the Board an advisory opinion as to whether any proposed activity or conduct would in its opinion constitute a violation of the Code of Ethics or any financial disclosure requirements.

B. Advisory opinions shall not be made public, except when the Board by the vote of two-thirds (2/3) of all of its members directs that the opinion be made public.

C. Public advisory opinions shall not disclose the name of the officer, candidate or employee unless the Board, in directing that the opinion be made public, so determines.

§ 33-14. Complaints.

A. The Board, upon receipt of a signed written complaint by any person alleging that the conduct of any officer, candidate or employee serving the city is in conflict with the Code of Ethics or financial disclosure requirements or that a candidate has failed to file or has filed a false financial disclosure statement, shall acknowledge receipt of the complaint within thirty (30) days of receipt and initiate an investigation concerning the facts and circumstances set forth in the complaint.

B. The Board shall make a determination as to whether the complaint is within its jurisdiction or frivolous or without any reasonable factual basis.

C. If the Board shall conclude that the complaint is outside its jurisdiction or frivolous or without factual basis, it shall reduce that conclusion to writing and shall transmit a copy thereof to the complainant and to the officer, candidate or employee against whom the complaint was filed.

D. If the Board shall conclude that the complaint is within its jurisdiction and has at least a minimal factual basis, the Board shall notify the officer, candidate or employee against whom the complaint was filed of the nature of the complaint and the facts and circumstances set forth therein.

E. The officer, candidate or employee shall have the opportunity to present the Board with any statement or information concerning the complaint which he or she wishes.

F. If the Board determines that a reasonable doubt exists as to whether the officer or employee is in conflict with the Municipal Code of Ethics or any financial disclosure requirements or that a candidate has failed to file or has filed a false financial disclosure statement, the Board shall conduct hearing concerning the possible violation and any other facts which have come to the attention of the Board as to the conduct of the officer or employee or candidate.

G. The Board shall render a decision as to whether the conduct of the officer, candidate or employee is in conflict with the Code of Ethics or any financial disclosure requirements. This decision shall be by no less than two-thirds (2/3) of all members of the Board.

H. If the Board determines that the officer, candidate or employee is in conflict with the code as to any financial disclosure requirements, it may impose any penalties which it believes appropriate within the limits of § 33-15.

§ 33-15. Enforcement; penalties for offenses.

A. An appointed officer or employee found guilty of a violation of any provision of this Article, or of any Code of Ethics pursuant to this Article, shall be fined not less than fifty dollars ($50.) nor more than one thousand dollars ($1,000.), which penalty may be collected in a summary proceeding pursuant to the penalty enforcement law (N.J.S.A. 2A:58-1). The Board shall report its findings to the office or agency having the power of removal or discipline of the appointed officer or employee and may recommend that further disciplinary action be taken.

B. An elected officer or employee found guilty by the Board of the violation of any provision of this Article, or of any Code of Ethics in effect pursuant to this Article, shall be fined not less than one hundred dollars ($100.) nor more than one thousand dollars ($1,000.), which penalty may be collected in a summary proceeding pursuant to the penalty enforcement law (N.J.S.A. 2A:58-5).

C. The finding by the Board that an appointed officer or employee is guilty of the violation of the provisions of this Article, or of any Code of Ethics in effect pursuant to this Article, shall be sufficient cause for his or her removal, suspension, demotion or other disciplinary action by the officer or agency having the power of removal or discipline. When a person who is in the career service is found to have violated the provisions of this Article or any Code of Ethics in effect pursuant to this Article, the procedure leading to removal, suspension, demotion or other disciplinary action shall be governed by any applicable procedures of Title 11A of the New Jersey Statutes and the rules promulgated pursuant thereto.

D. A candidate who fails to file a financial disclosure statement or who knowingly files a false financial disclosure statement shall be fined not less than one hundred dollars ($100.) nor more than one thousand dollars ($1,000.), which penalty may be collected in a summary proceeding pursuant to the penalty enforcement law (N.J.S.A. 2A:58-5).

§ 33-16. Records of Ethical Standards Board.

All statements, complaints, requests or other written materials filed pursuant to this Article and any rulings, opinions, judgments, transcripts or other official papers prepared pursuant to this Article shall be preserved for a period of five (5) years from the date of filing or preparation, as the case may be.

Chapter 37

IMMIGRANT AFFAIRS COMMITTEE*

§ 37-1. Establishment.
§ 37-2. Composition.
§ 37-3. Appointment.
§ 37-4. Removal.
§ 37-5. By-laws and officers.
§ 37-6. Meetings and official action.
§ 37-7. Department assignment.
§ 37-8. Purposes.
§ 37-9. Public comments at regular meetings.
§ 37-10. Records and annual report.
§ 37-11. Website and official documents.

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§ 37-1. Establishment. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. An Immigrant Affairs Committee ("Committee"), to consist of nine members, is hereby established for the City of Jersey City. The Mayor, with the advice and consent of the Council, shall appoint all members.

§ 37-2. Composition. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. All members of the Committee shall be residents of Jersey City. Best efforts shall be utilized to compose the Committee to represent the diversity of the immigrant population in Jersey City. All members shall serve without compensation. Members shall have:

(1) Experience with established public, non-profit, and/or voluntary community organizations and agencies concerned with the immigrant community in Jersey City and/or the State of New Jersey, and

(2) Demonstrated a dedication to, and knowledge of. the needs of the immigrant community in Jersey City and/or the State of New Jersey.

(3) At least two members shall be professional specialists, such as attorneys, with substantial records in the area(s) of civil rights and/or human rights of immigrants to the United States.

§ 37-3. Appointment. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. Of the members first appointed, three shall serve for a term of two years; three shall serve for three years; and three shall serve for four years. Thereafter, each member shall serve for a four-year term. The Mayor, with the advice and consent of the Council, shall appoint members of the Committee to complete the unexpired term cause by an unexpected vacancy, such as the resignation of a Member, in accordance with § 3-125.

***Editor's note**—The title of Ch. 37 was amended May 24, 2023, by Ord. No. 23-045.

B. The initial members of the Committee shall be appointed within 60 days of the effective date of the ordinance.

§ 37-4. Removal. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. The Municipal Council may remove any member of the Committee for cause, on written charges. Cause includes, but is not limited to, when a member misses three consecutive meetings or five meetings within any 12-month period. The Municipal Council must serve the written charges upon the member, and afford the member the opportunity to be heard on the allegations in person or by counsel.

§ 37-5. By-laws and officers. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. The Committee shall have power to promulgate rules and regulations governing the conduct of its meetings and the performance of its duties and shall elect a chairperson and vice-chairperson from among its members. The term of the chairperson and vice-chairperson shall be one (1) year. The Committee may have such other officers as it deems necessary.

§ 37-6. Meetings and official action. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. The Committee shall hold at least ten (10) meetings per year. A majority of members of the Committee shall constitute a quorum for the transaction of business. A majority vote of the quorum shall be required for official action by the Committee.

§ 37-7. Department assignment. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. Pursuant to Jersey City Code § 3-123, the Committee is allocated and assigned to the Department of Health and Human Services.

§ 37-8. Purposes. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

The Committee shall:

A. Advise the Municipal Council and/or Mayor on issues of common concern to immigrants, particularly in the areas of health and human services, civil and human rights, education, business development, and the demographic makeup of the Jersey City immigrant community;

B. Monitor requirements of federal, state, and local immigration, welfare and other laws that affect immigrants, and recommend to the Municipal Council and/or Mayor actions to maximize the positive impacts to local immigrants under existing laws and to minimize the adverse impacts to local immigrants under the laws;

C. Review and comment on proposed federal, state, and local legislation, regulations, policies, and programs and make policy recommendations on issues affecting the health, safety, and welfare of the immigrant community;

D. Promote recognition and preservation of the contributions of immigrants to the economic and cultural vitality of Jersey City;

E. Promote the availability of, and promote accessibility to, local educational, economic, legal, and social resources for immigrants; and

F. The Committee shall have all powers reasonable and necessary to carry out its purpose. Such powers shall include, but are not limited to, the power to conduct public meetings, studies, and surveys. The Committee shall have the power to issue public statements and resolutions to the extent those are advisory only and would have no binding affect on the governing body.

§ 37-9. Public comments at regular meetings. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. Any person may address the Committee at its regular meetings on any subject of interest to the Committee. Public participation shall be limited to five minutes per person unless otherwise stated by the Chairperson.

§ 37-10. Records and Annual Report. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. The Committee shall keep minutes of its meetings, records of its activities, and shall make an annual report to the Municipal Council.

§ 37-11. Website and official documents. [Added 4-24-2013 by 13-047; amended 5-24-2023 by Ord. No. 23-045]

A. The City of Jersey City shall maintain a dedicated page for the Committee on the City's official website. The page shall contain the following:

(1) A list of all members of the Committee, including biographical information;

(2) Current vacancies on the Committee;

(3) A schedule of meetings for the calendar year;

(4) Agendas for upcoming meetings, to be posted no later than one week prior to the meeting;

(5) Minutes for past meetings, to be posted no later than two weeks subsequent to the meeting;

(6) Official documents, such as bylaws, resolutions, reports, and studies.

Chapter 38

INSURANCE FUND COMMISSION

§ 38-1. Commission established; appointment; terms; compensation.
§ 38-2. Secretary.
§ 38-3. Powers and authority.
§ 38-4. Vacancies.

[HISTORY: Adopted by the Council of the City of Jersey City 6-9-1983 as Ord. No. MC-304. Amendments noted where applicable.]

GENERAL REFERENCES

Division of Risk Management — See Ch. 3, § 3-119.

§ 38-1. Commission established; appointment; terms; compensation.[1]

There is hereby established pursuant to N.J.S.A. 40A:10-8 et seq. in the City of Jersey City an Insurance Fund Commission of three (3) Commissioners, appointed by the Mayor with the advice and consent of the City Council, who shall be officials of the city and shall serve for two (2) years or for the remainder of their term of office, whichever shall be less, and until their successors shall have been duly appointed and qualified. The Commission shall serve without compensation.

§ 38-2. Secretary.

Pursuant to N.J.S.A. 40A:10-8 et seq., the Secretary to the Insurance Fund Commission shall be appointed by the Mayor with the advice and consent of the City Council. The Secretary shall serve at the pleasure of the Commission at a salary set by ordinance of the City Council.

§ 38-3. Powers and authority.

A. Pursuant to N.J.S.A. 40A:10-10, the Commissioners shall have the following powers and authority:

(1) To employ necessary clerical assistants, whose compensation shall be fixed and paid by the City Council in the same manner as is that of other employees of the city.

(2) To invest the fund and all additions and accretions thereto in such securities as they shall deem best suited for the purposes of this article.

(3) To adopt rules and regulations for the control and investment of the fund.

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1 **Editor's Note: See also Ch. 3, Administrative Code, Art. XVII, Agencies and Commissions.**

(4) To keep on hand at all times sufficient money, or have the same invested in such securities as can be immediately sold for cash, for the payment of losses to any buildings or property of the local unit or liability resulting from the operation of publicly owned motor vehicles, equipment or apparatus or liability for the city's negligence and that of its officers, employees and servants, whether or not compensated or part-time, who are authorized to perform any act or services, but not including an "independent contractor" as the term is defined within the limitations of New Jersey Tort Claims Act (N.J.S.A. 59:1-1 et seq.)

(5) To fix reasonable rates of premium for all insurance carried by the Insurance Fund, and shall effect all insurance in the Insurance Fund or with any insurance company or companies authorized to do business in this state.

B. Premiums for insurance, whether carried in the Insurance Fund or placed with insurance companies, shall be paid to the Commissioners by the board, commission, department, committee or officer having charge or control of the property insured.

C. All insurance upon property owned or controlled by the city or any of its departments, boards, agencies or commissions shall be placed and effected by the Commissioners.

D. The Secretary to the Insurance Fund Commission shall be entrusted with the daily operation of the Insurance Fund and shall submit a report to the Commissioners at least once a month.

§ 38-4. Vacancies.

Vacancies in the office of Insurance Fund Commissioners caused by any reason other than expiration of term as an official shall be filled for the unexpired term. Vacancies in the position of Secretary shall be filled in the manner of the original appointment.

Chapter 43

MAYOR'S COMMISSION ON SENIOR AFFAIRS

§ 43-1. Commission established; membership; organization; meetings.

§ 43-2. Purpose of Commission; duties.

§ 43-3. Cooperation of city departments and agencies.

[HISTORY: Adopted by the Council of the City of Jersey City 4-25-1990 as Secs. 2-317.3 through 2-317.5 of Ord. No. McC-122. Amendments noted where applicable.]

§ 43-1. Commission established; membership; organization; meetings.

A. There is hereby established a Mayor's Commission on Senior Affairs, consisting of 13 members appointed as follows:

(1) Six members appointed by the Mayor with the advice and consent of the Council.

(2) One Council member appointed by the Council.

(3) Two members appointed by the Mayor.

(4) Four ex officio members consisting of the Mayor, Council President, Director of the Department of Public Works and the Director of Health and Human Services. Any ex officio member may designate a member of his or her staff to attend a meeting of the Commission as a representative of the ex officio member. **[Amended 8-13-1997 by Ord. No. 97-052; 3-27-02 by Ord. No. 02-038]**

B. The Commission shall consist of representatives from various segments of the community, preferably from the business and public sector but not limited thereto, and should be affiliated with senior citizen organizations concerned with the health, recreation, social, legal, housing and financial needs of senior citizens.

C. Of the members first appointed, three shall serve for a term of two years; three shall serve for three years and three shall serve for four years. Thereafter, each member shall be appointed for a four-year term and shall serve until a successor is appointed. Vacancies caused by resignation or otherwise shall be filled for the unexpired term by the Mayor.[1]

D. The Mayor shall designate a member to preside over the Commission as a Chairperson, who shall serve at the pleasure of the Mayor. The Commission shall elect a Vice Chairperson, who shall serve at the pleasure of the Commission. The Director of Human Resources or a designee shall, without additional compensation, serve as Executive Secretary to the Commission.

1 **Editor's Note: See also Ch. 3, Administrative Code, Art. XVII, Agencies and Commissions.**

E. The Commission shall meet at least once every month at a time fixed by the members of the Commission. The Chairperson, or in the absence of the Chairperson the Vice Chairperson, may call special meetings.

§ 43-2. Purpose of Commission; duties.

A. The purpose of the Commission shall be to:

(1) Establish and implement a comprehensive system of coordinated health and social services for senior citizens and residents of the community.

(2) Advise and assist the Department of Health and Human Services in the preparation of an annual plan for the enhancement of services available to senior citizens and residents of the community or private foundations in obtaining grants to provide for the programs and activities of said Commission and said applications for grants to be made with the approval of the Council.

B. The duties of the Commission shall include:

(1) Recommending policy and guidelines for the operations of the Jersey City Office on Senior Activities; provided, however, that the Commission's recommendations shall be limited to planning and programmatic review and shall not affect the decisions concerning operation, budget or personnel.

(2) Reviewing proposals submitted for funding for services to senior citizens.

(3) Assisting departments in the planning and implementation of citywide comprehensive service programs for senior citizens of the City of Jersey City.

(4) Establishing policies and procedures for its own governance, in compliance with applicable law.

(5) Identifying the needs and service gaps which affect senior citizens.

(6) Making recommendations for legislative programs and actions on behalf of senior citizens.

§ 43-3. Cooperation of city departments and agencies.

A. The Mayor shall through the Director of Health and Human Services, subject to available appropriation, provide for the adequate functioning of the Commission.

B. All city departments and agencies shall cooperate with the Commission.

Chapter 46

MERCHANTS' ADVISORY PANEL

§ 46-1.	**Panel created; membership.**	**§ 46-3.**	**Purpose.**
§ 46-2.	**Appointment.**	**§ 46-4.**	**Eligibility guidelines.**

[HISTORY: Adopted by the Council of the City of Jersey City 9-8-1981 as Sec. 2-192 of Ord. No. MC-22. Amendments noted where applicable.)

GENERAL REFERENCES

Administration of government — See Ch. 3.

§ 46-1. Panel created; membership.

There is hereby created a Merchants' Advisory Panel consisting of the following members.

A. Class 1: two (2) representatives of each ward, both of whom shall be merchants.

B. Class 2: one (1) representative of the Mayor.

C. Class 3: one (1) representative of the Department of Public Safety. **[Amended 9-11-2013 by Ord. No. 13-081]**

D. Class 4: one (1) representative of the Department of Community Development.

§ 46-2. Appointment.

The Class 1 representatives from each ward shall be appointed by the Ward Councilmen. The Class 2 representative shall be appointed by the Mayor for a term of one (1) year. The representatives of Classes 3 and 4 shall be appointed by the Mayor with the advice and consent of the Municipal Council for a term of one (1) year.

§ 46-3. Purpose.

The purpose of the Merchants' Advisory Panel shall be to develop strategies to assist small businessmen and small business districts within the City of Jersey City. The Merchants' Advisory Panel shall seek volunteers from the business community and urban experts to assist small businessmen to develop programs to assist them in the operation of their businesses and to address problems in small business areas.

§ 46-4. Eligibility guidelines.

The Merchants' Advisory Panel shall have the authority to adopt guidelines to determine which businesses shall be eligible for its assistance.

Chapter 48

NATIVE PLANTS

§ 48-1.	Purpose and intent.	§ 48-8.	Prioritizing straight species.
§ 48-2.	Definitions.	§ 48-9.	Managed natural landscape.
§ 48-3.	Limits on weed control laws.	§ 48-10.	No mow zones.
§ 48-4.	Applicability.	§ 48-11.	Reporting requirement (to be determined).
§ 48-5.	Native planting requirements.		
§ 48-6.	Limitations on neonicotinoids.	§ 48-12.	Penalty.
§ 48-7.	Community education.		

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§ 48-1. Purpose and intent. [Added 4-10-2024 by Ord. No. 24-015]

The purpose of these regulations is to establish minimum standards for the design, installation, and maintenance use of native vegetation by the City, to promote the preservation of native plant communities.

It is the intent of this chapter to maximize the use of appropriate native plants on municipal properties to help mitigate the effects of habitat loss and fragmentation from development, and in order to combat the climate crisis, stormwater overflow, species extinction, global warming to promote the public health, safety, and welfare by:

A. Acknowledging that pollination is an essential ecological survival function that depends on native plants and the pollinators that rely on them;

B. Promoting microhabitats for the conservation of wildlife by establishing new wildlife habitat while maintaining and connecting existing habitat;

C. Doing our part to reverse the massive decline in native pollinator populations from loss of habitat due to development, widespread use of pesticides, and from our insistence on using non-native plants in landscaping;

D. Creating larger and, more connected plant populations to help ensure the future of native plant species by increasing their ability to migrate in response to changes in climate;

E. Promoting public health through the long term, widespread adoption of diverse native plantings; and,

F. Educating residents on the importance of native plant species and native pollinators to the ecosystem. **[Added 4-10-2024 by Ord. No. 24-015]**

§ 48-2. Definitions. [Added 4-10-2024 by Ord. No. 24-015]

A. COMMUNITY GARDEN — a public or community use area intended for the purposes of gardening.

B. ENDANGERED PLANT — any plant species which is in danger of extinction throughout all or a significant part of its native range.

C. ESTABLISHED PLANT — any introduced plant that can survive and produce self-sustaining populations without human assistance.

D. GARDEN — a cultivated area dedicated to growing vegetables, fruits, annual and perennial plants, ornamental grasses, and ground cover in a well-defined location.

E. HABITAT GARDEN — an intentionally cultivated space designed to benefit wildfire containing native plants, shrubs, and grasses intended to provide food and shelter for native insects, birds, and small mammals through the seasons wile conserving biodiversity.

F. INTRODUCED PLANT — a plant species that humans either intentionally or unintentionally moved to a new location.

G. INVASIVE PLANT (DOMINATING/ PROBLEMATIC) — a plant species reproducing outside its native range and outside cultivation that causes harm or disrupts naturally occurring native plant communities by altering structure, composition, natural processes, or habitat quality.

H. LANDSCAPED AREA — parks, public space, streetscapes, open spaces.

I. LANDSCAPING — any combination of living plants and non-living landscape material such as rocks, pebbles, sand, mulch, walls, fences, or decorative paving materials.

J. MANAGED NATURAL LANDSCAPE — a planned, intentional, and maintained planting of native or non-native grasses, wildflowers, forbs, ferns, shrubs, or trees, including but not limited to rain gardens, meadow vegetation, and ornamental plantings. Meadow vegetation means grasses and flowering broad-leaf plants that are native to, or adapted to, and that are commonly found in meadow and prairie plant communities, not including noxious weeds.

K. MONOCULTURE — the practice of planting one (1) species in a field or garden.

L. NATIVE PLANT — those species of plants naturally occurring within the northeast and mid-Atlantic regions of the United States before Euro-American settlement, according to best scientific and historical documentation.

M. NEONICOTINOIDS — a class of synthetic, neurotoxic insecticides that are used on agricultural crops, lawns, gardens, golf courses, and in flea and tick pet treatments. Developed in the mid-1990s, neonics affect both targeted and non-targeted insects and are toxic to many pollinating insects.

N. NON-NATIVE PLANT — a plant introduced with human help (intentionally or accidentally) to a new, different eco-region habitat where it was not previously found.

O. CULTIVAR — a subspecies classification describing plants varieties which are produced through artificial selection and are not straight species.

P. POLLINATORS — animals (primarily insect, but sometimes avian or mammalian) that fertilize plants, resulting in the formation of seeds and the fruit surrounding seeds, that humans and other animals rely on to produce nuts and fruits that are essential components of a healthy diet, and that the majority of flowering plant species found world-wide rely on to make the seeds that will become the next generation of plants.

Q. POLLINATOR GARDEN — a garden designed with the intent of growing specific nectar and pollen-producing plants, in a way that attracts pollinating insects known as pollinators.

R. POLLINATOR PATHWAY — public and private pesticide-free corridors of native plants that provide nutrition and habitat for pollinating insects and birds. Even the smallest green spaces, like flower boxes and curb strips, can be part of a pathway.

S. RAIN GARDEN — a native plant garden that is designed not only to aesthetically improve properties, but also to reduce the amount of storm water and accompanying pollutants from entering streams, rivers, and lakes. Including bioswales.

T. REMOVE — to transport a native plant from the premises on which it has been growing.

U. STRAIGHT SPECIES — a native plant that is not a cultivar or has not been bred to emphasize or minimize certain traits of the parent plant. Naturally occurring hybrids of native plants shall be considered as Straight Species for the purpose of this chapter.

§ 48-3. Limits on weed control laws. [Added 4-10-2024 by Ord. No. 24-015]

No regulation shall be enacted by the City or any person or entity which prohibits or discourages the planting, maintenance, or protection of native plants or requires or incentivizes the removal or reduction of native vegetation, except when deemed necessary for public safety.

§ 48-4. Applicability. [Added 4-10-2024 by Ord. No. 24-015]

This chapter shall be a minimum standard and shall apply to all public buildings, public land and parks within the incorporated and unincorporated areas of the City.

§ 48-5. Native planting requirements. [Added 4-10-2024 by Ord. No. 24-015]

A. In the first year, a minimum of fifty (50) percent of new plantings (with a subsequent increase to seventy (70) percent in the third year) of (shrubs, groundcovers, and flowers) installed by the City in parks, public lands, and other municipal properties shall be native, in order to:

1. Protect and promote appropriate native vegetation; and

2. Promote microhabitats in urban areas for the conservation of pollinators and birds; and

3. Create larger, more connected plant populations, to help ensure the future of native plant species by increasing their ability to migrate in response to change in climate.

4. Take leadership in addressing the bio-diversity crisis by creating pollinator pathways.

B. To avoid creating a monoculture, different types of plants species shall be planted as follows:

1. When planting five (5) to ten (10) plantings, two (2) or more species will be required.

2. When planting eleven (11) to twenty (20) plantings, four (4) or more species will be required.

3. When planting twenty-one (21) or more plantings, five (5) or more species will be required.

C. The City may plant non-native, non-invasive plants in the following areas or for the following purposes; provided, however, that the City shall still make an effort to include native plants where appropriate:

1. Flower bulbs planted as part of volunteer initiatives including, but not limited to, the Big Dig initiative;

2. Lawns and athletic fields;

3. Holiday, seasonal and annual decorative plantings; and

4. Planters, provided that the City shall incorporate native plants into their planters to the extent that doing so is feasible based on the survivability of native plants in such conditions

D. The City agrees not to plant pesticide treated plants near or close to native plants.

E. The City agrees to prioritize planting native tree species throughout the City's right-of-way wherever applicable and where the tree species will have the highest chances of success for the vitality.

§ 48-6. Limitations on neonicotinoids. [Added 4-10-2024 by Ord. No. 24-015]

For the purposes of this chapter, the City shall, to the extent possible and to the extent such plants are reasonably available, prioritize sourcing native plants that have not been treated with neonicotinoids.

§ 48-7. Community education. [Added 4-10-2024 by Ord. No. 24-015]

The public shall, though various means, be educated about the importance of native plants to the Jersey City landscape. The City will promote the use of native plants by creating educational information on its website about the importance of native plants, including a list of the keystone plants native to the City ecoregion and the nurseries that sell them. City may also make referrals to local nonprofits for further information and design suggestions.

§ 48-8. Prioritizing straight species. [Added 4-10-2024 by Ord. No. 24-015]

The City shall, to the extent possible and to the extent such plants are reasonably available, prioritize using and installing native plants that are straight species on any Municipal property.

§ 48-9. Managed natural landscape. [Added 4-10-2024 by Ord. No. 24-015]

An owner, authorized agent, or authorized occupant of any privately owned lands or premises may, consistent with this subsection and all other applicable laws, statutes, rules, and ordinances, install and maintain a managed natural landscape, such as a rain garden or pollinator garden.

Managed natural landscapes shall not include any plant identified by any applicable government agency as a noxious weed. Managed natural landscapes may include plants and grasses of any height and which have gone to seed. Managed natural landscapes shall not include plants that, due to location and/or manner of growth, constitute a hazard to the public.

§ 48-10. No mow zones. [Added 4-10-2024 by Ord. No. 24-015]

To protect all existing and new community gardens, managed natural landscapes, pollinator gardens, pollinator pathways, rain gardens, on public property, the City shall establish No Mow Zones around these areas to prevent accidental mowing. Official signage shall be used in English and Spanish to declare the area a No Mow Zone. The City will also create a registry of the locations of these gardens to assist in educating park maintenance staff and contractors.

§ 48-11. Reporting requirement (to be determined). [Added 4-10-2024 by Ord. No. 24-015]

§ 48-12. Penalty. [Added 4-10-2024 by Ord. No. 24-015]

Any individual or entity found responsible for damaging, destroying, or mowing down any established and City recognized native plant gardens, managed natural landscapes, pollinator gardens, pollinator pathways, or rain gardens on public property will be subject to penalties as outlined in Chapter 1, General Provisions, Article I, Section 1-25; provided, however, that the penalty for a violation of this chapter shall be one hundred dollars ($100.00) to two thousand dollars ($2,000.00) as determined by the Jersey City Municipal Court. Additionally, the City may pursue all legal remedies in the Hudson County Superior Court for any of the forementioned improvements that are removed, destroyed or damaged in violation of this chapter.

Chapter 50

PARKING FOR THE DISABLED, MUNICIPAL COUNCIL COMMITTEE ON

§ 50-1. Committee established; membership.

§ 50-2. Powers and duties.

§ 50-3. Assignment of municipal personnel.

[HISTORY: Adopted by the Council of the City of Jersey City 8-14-1986 as Sec. 2-317.6 of Ord. No. C-268; amended in its entirety 9-12-1990 by Ord. No. McC-173. Subsequent amendments noted where applicable.]

GENERAL REFERENCES

Administration of government — See Ch. 3.

Vehicles and traffic — See Ch. 332.

§ 50-1. Committee established; membership.

There is established a Municipal Council Committee on Parking for the Disabled, which shall consist of three (3) Council members and four (4) non-Council members appointed by the President of the City Council who shall serve without salary for terms of two (2) years.[1]

§ 50-2. Powers and duties.

The Committee shall review all new and existing applications for restricted parking spaces for disabled persons and shall review all previous approvals authorized by the Council. The Committee shall also establish guidelines to be used in its reviewing process. An express purpose of such guidelines should be the balancing of the needs of disabled persons with the needs of the local communities. The Committee shall make recommendations to the Council regarding restricted parking spaces for disabled drivers and any ordinances related thereto.

§ 50-3. Assignment of municipal personnel.

The Business Administrator shall assign such municipal personnel as are required by the Committee to perform its duties.

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1 Editor's Note: See also Ch. 3, Administration of Government, Art. XVII, Agencies and Commissions.

Chapter 53

PERSONNEL*

§ 53-1.	Application of Chapter 53; definitions.	§ 53-7.	Workplace regulations.
§ 53-2.	Domicile as condition of employment.	§ 53-8.	Hours of employment for regular employees; report to the council regarding overtime.
§ 53-2.1.	Domicile as condition of applying to serve as uniformed personnel.	§ 53-9.	Time clock procedures.
§ 53-3.	Exceptions.	§ 53-10.	Administration; amendments.
§ 53-4.	Investigations; hearings; termination of employment.	§ 53-11.	Fixed salaries.
§ 53-5.	Affidavit required.	§ 53-12.	Provision of retiree medical and health benefits.
§ 53-6.	Vacation and other compensation.	§ 53-13.	Eligibility for retiree medical and health benefits.
		§ 53-14.	Retiree medical and health benefits plans.

§ 53-1. Application of Chapter 53; definitions. [Added 6-9-2010 by Ord. No. 10-078; amended 12-19-2018 by Ord. No. 18-141]

Under this Chapter "employee" shall mean anyone who works for the City and whose salary and other compensation are required by law to be fixed by ordinance. Such employees include, but are not limited to, the Mayor, Council Members, Council Aides, Department Directors, Municipal Clerk and all Deputy Municipal Clerks, the Tax Assessor and all Deputy Tax Assessors, the Tax Collector, the Chief Financial Officer, and all Municipal Court Judges.

State law references—Mayor, N.J.S.A. 40A:9-165.1; Members of the Governing Body/City Council, N.J.S.A. 40A:9-165.1; Council Aides, N.J.S.A. 40A:69A-60.5; Department Directors, N.J.S.A. 40:69A; Municipal Clerk, N.J.S.A. 40A:9-133; Deputy Municipal Clerk, N.J.S.A. 40A:9-135; Tax Assessor, N.J.S.A. 40A:9-146; Deputy Tax Assessor, N.J.S.A. 40A:9-146; Tax Collector, N.J.S.A. 40A:9-141; Chief Financial Officer/Municipal Finance Officer, N.J.S.A. 40A:9-140.10; Municipal Court Judges, N.J.S.A. 2B:12-7.

"Regular employee" shall mean anyone who works for the City and whose salary and other compensation are required by law to be fixed by ordinance.

***Editor's note—**Ord. No. 10-078, adopted June 9, 2010, amended the Code by, in effect, repealing former Ch. 53, §§ 53-1, 53-2, 53-6—53-71.1, 53-72—53-80, 53-82, and 53-83, renumbering former §§ 53-3—53-5 as 53-6—53-8, and adding new §§ 53-1—53-5, 53-9 and 53-10. Former Ch. 53 pertained to similar subject matter. Ch. 53 was originally adopted by the Council of the City of Jersey City May 4, 1971, as Ch. 17 of the 1971 Jersey City Code and readopted September 19, 1978 by Ord. No. S-128. Subsequently, it was amended by Ord. Nos. S-169 and S-170, adopted December 19, 1978; Ord. No. S-382, adopted May 27, 1980; Ord. No. S-571, adopted January 27, 1981; Ord. No. MC-35, adopted September 22, 1981; Ord. No. MC-458, adopted October 27, 1983; Ord. No. C-104, adopted December 12, 1985; Ord. No. C-571, adopted October 22, 1987; Ord. No. C-675, adopted March 10, 1988; Ord. No. McC-74, adopted December 27, 1989; Ord. No. 92-090, adopted July 22, 1992; Ord. No. 92-115, adopted September 16, 1992; Ord. No. 95-042, adopted May 24, 1995; Ord. No. 95-050, adopted June 14, 1995; Ord. No. 96-023, adopted March 27, 1996; Ord. No. 97-052, adopted August 13, 1997; Ord. No. 08-126, adopted September 10, 2008; Ord. No. 09-094, adopted September 9, 2009; and Ord. No. 10-043, adopted April 14, 2010.

Cross references—Administration of government, Ch. 3; defense and indemnification, Ch. 27; ethics, Ch. 33.

"Uniformed Personnel" shall mean all sworn officers of the Divisions of Police and Fire.

§ 53-2. Domicile as condition of employment. [Added 6-9-2010 by Ord. No. 10-078; amended 12-19-2018 by Ord. No. 18-141]

A. All employees, as defined herein, as a condition of their employment, shall maintain a bona fide domicile in the City of Jersey City during the period of their employment. "Domicile" means the permanent place of abode within the meaning, intent and scope of the New Jersey Statutes and court decisions governing and defining "domicile." It shall also mean the permanent abode which the employee occupies with his or her spouse and minor children.

B. All Employees shall file with the Department of Human Resources, within 30 days of the effective date of their appointment, an affidavit setting forth the following:

(1) The address and telephone number of the employees' bona fide domicile; and

(2) The address and telephone number of the employees' spouse and minor children, if applicable,

§ 53-2.1. Domicile as condition of applying to serve as uniformed personnel. [Added 12-19-2018 by Ord. No. 18-141]

Applicants for employment as uniformed personnel seeking appointment on or after January 1, 2020 must have maintained a bona fide domicile in the City of Jersey City for at least two years prior to the date of their qualifying exam.

All those seeking employment as uniformed personnel must file an affidavit with the official conducting their background investigation, setting forth the following information:

(1) The address and telephone number of their bona fide domicile for the two years prior to the date of their civil service exam and all supporting documentation in support of their affidavit which may include, but shall not be limited to, utility or credit card bills; bank statements; and /or original lease or rental agreements.

(2) The address and telephone number of their spouse and minor children, if applicable.

§ 53-3. Exceptions. [Added 6-9-2010 by Ord. No. 10-078; amended 12-19-2018 by Ord. No. 18-141]

A majority of the full membership of the Municipal Council, at its discretion, for good cause shown, may authorize and permit an employee as defined herein to be domiciled outside the City of Jersey City.

§ 53-4. Investigations; hearings; termination of employment. [Added 6-9-2010 by Ord. No. 10-078]

A. The appointing authority or its duly authorized representatives are hereby authorized to investigate the bona fides of an employees' domicile or failure to comply with the provisions of this Article and to conduct hearings thereon. Such hearings shall be conducted upon no less than ten days' notice to the employee. The notice shall be served upon the employee by mail or personal service and shall set forth the following: **[Amended 12-19-2018 by Ord. No. 18-141]**

(1) The date, time and place of the hearing.

(2) A detailed specification of the charges against the employee.

(3) A statement warning the employee that the hearing may result in the termination of the employment of the employee.

B. The following shall be sufficient cause to terminate the employment of an employee:

(1) Failure to file the affidavit within thirty (30) days.

(2) Filing a false or incomplete affidavit.

§ 53-5. Affidavit required. [Added 6-9-2010 by Ord. No. 10-078]

No person shall hereafter be appointed to any office or position unless such person shall have first filed an affidavit setting forth the address and telephone number of his or her bona fide domicile.

§ 53-6. Vacation and other compensation. [Added 6-9-2010 by Ord. No. 10-078]

A. All compensation and benefits of employees, as applicable, shall be in accordance with the compensation and benefits established by Executive Order 2008-09 and any amendments thereto, except as herein provided.

B. All employees, except the Mayor and Council Members, shall be granted paid vacation days which shall be the greater of:

(a) The vacation days earned through years of service as provided by the Mayor's Executive Order: or

(b) Twenty working days.

C. Compensation shall include the incidental personal use of motor vehicles assigned by the Mayor to employees which shall bear the City Seal and the following identification on each side, in letters at least three inches high: **[Amended 10-12-2011 by Ord. No. 11-117]**

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D. All employees whose salary and other compensation are required by law to be fixed by ordinance shall receive an annual increase in base salary equal to the annual percentage increase in the Implicit Price Deflator for State and Local Government Purchases of Goods and Services promulgated annually by the Director of Local Government Services pursuant to N.J.S.A. 40A:4-45.1a, provided that: **[Amended 12-17-2014 by Ord. No. 14-159; 9-11-2019 by Ord. No. 19-106]**

(1) No such annual increase shall exceed 3.5 percent; and

(2) However, the first such increase shall take effect on November 1, 2014 in the amount of 2.5 percent of the base salary. Subsequent increases shall take effect on January 1, 2016 and annually thereafter for those employees covered by this section then on the payroll based upon the rate promulgated in the prior year.

§ 53-7. Workplace regulations. [Added 6-9-2010 by Ord. No. 10-078]

A. The workplace regulations established in the Mayor's Policies and Procedures Manual as applicable, and any amendments thereto, are hereby adopted for employees, except as herein provided.

B. The service day of an employee, (except the Mayor, Council Members and Council Aides) shall consist of a minimum of eight hours of service, inclusive of the lunch period. The hours of employment shall be continuous, except for such lunch period.

C. The service day of Council Aides shall be determined by the respective Municipal Council Member. A person who is employed as a part-time aide shall not be eligible to receive health benefits coverage under a health benefits plan provided by the City of Jersey City pursuant to N.J.S.A. § 40:69A-60.5. Full-time Council Aides shall work more than 25 hours per week, or as full-time employees as defined in the City of Jersey City Policies and Procedures. Part-time Council Aides shall work 15—20 hours per week. **[Amended 2-9-2022 by Ord. No. 22-007]**

§ 53-8. Hours of employment for regular employees; report to the council regarding overtime. [Amended 6-9-2010 by Ord. No. 10-078; amended 12-19-2018 by Ord. No. 18-141; 1-25-2023 by Ord. No. 23-002]

A. The normal service day of each regular employee of the city under the terms of this Chapter shall consist of eight hours of service, inclusive of the lunch period.

B. The hours of employment shall be continuous, except for such lunch period.

C. The hours of employment shall be designated by the department head according to that schedule which best meets the efficiency of the public service, provided that these limitations regarding lunch periods shall not apply to shift employees, and provided also that in departments where the nature of the work is such that it is impossible to operate in accordance with the normal service day, regular employees may be required to work in excess thereof.

D. Where a regular employee is called back to work within 24 hours of the starting time of his or her normal service day, or where the regular employee continues to work beyond the normal service day, all work in excess thereof and within such 24-hour period shall be considered overtime to be compensated as provided by the Council.

E. No regular employee shall be required to work in excess of 16 hours within such 24-hour period, except under unusual circumstances where it would be impractical or impossible to provide relief employees. No regular change, however, in shifts or daily schedule shall be construed to provide overtime for the regular employee affected.

F. Each department director shall provide a monthly report to the Council identifying all overtime spending by the department year to date, broken down by division, and comparing that spending to its allocated overtime budget. The Department Director shall submit that report to the City Clerk to be included in the upcoming council meeting's "Report of Directors."

Editor's note—Former 53-3. Renumbered as 53-8 after reorganization of Chapter by Ord. No. 10-078.

§ 53-9. Time clock procedures. [Amended 6-9-2010 by Ord. No. 10-078]

Rules and regulations governing time clock procedures shall be those issued by the designee of the Mayor.

Editor's note—Former 53-4. Renumbered as 53-9 after reorganization of Chapter by Ord. No. 10-078.

§ 53-10. Administration; amendments. [Amended 6-9-2010 by Ord. No. 10-078]

The administration of this Article shall be reposed in the Mayor pursuant to law, and the Mayor may designate the Business Administrator or other appropriate official to enforce this Article. Amendments to the aforesaid rules and regulations shall be made by the Mayor pursuant to law.

Editor's note—Former 53-5. Renumbered as 53-10 after reorganization of Chapter by Ord. No. 10-078.

§ 53-11. Fixed salaries. [Added 1-12-2011 by Ord. No. 10-171; amended 9-11-2013 by Ord. No. 13-081; 12-17-2014 by Ord. No. 14-157; 12-17-2014 by Ord. No. 14-159; 9-11-2019 by Ord. No. 19-106; 10-23-2019 by Ord. No. 19-148; 1-27-2021 by Ord. No. 21-002; 2-9-2022 by Ord. No. 22-007; 3-9-2022 by Ord. No. 22-018]

Fixed Salary Ranges	Title
Maximum salary shall be consistent with the maximum salary range established for the position of Business Administrator by any other City of the First Class in the State of New Jersey.	Business Administrator
Maximum salary shall be consistent with the maximum salary range established for the position of Chief Financial Officer by any other City of the First Class in the State of New Jersey.	Chief Financial Officer
Maximum salary shall be consistent with the maximum salary range established for the position of City Clerk by any other City of the First Class in the State of New Jersey.	City Clerk
Maximum salary shall be consistent with the maximum salary range established for the position of Corporation Counsel by any other City of the First Class in the State of New Jersey.	Corporation Counsel
Maximum salary shall be consistent with the maximum salary range established for the position of Deputy City Clerk by any other City of the First Class in the State of New Jersey.	Deputy City Clerk
Maximum salary shall be consistent with the maximum salary range established for the position of Director, Department of Finance by any other City of the First Class in the State of New Jersey.	Director, Department of Finance
Maximum salary shall be consistent with the maximum salary range established for the position of Director, Department of Human Resources by any other city of the First Class in the State of New Jersey.	Director, Department of Human Resources

Fixed Salary Ranges	Title
Maximum salary shall be consistent with the maximum salary range established for the position of Director, Department of Health and Human Services by any other city of the First Class in the State of New Jersey.	Director, Department of Health and Human Services
Maximum salary shall be consistent with the maximum salary range established for the position of Director, Department of Housing, Economic Development, and Commerce by any other city of the First Class in the State of New Jersey.	Director, Department of Housing, Economic Development, and Commerce
Maximum salary shall be consistent with the maximum salary range established for the position of Director, Department of Public Safety by any other city of the First Class in the State of New Jersey.	Director, Department of Public Safety
Maximum salary shall be consistent with the maximum salary range established for the position of Director, Department of Public Works by any other city of the First Class in the State of New Jersey.	Director, Department of Public Works
Maximum salary shall be consistent with the maximum salary range established for the position of Director, Department of Recreation & Youth Development by any other city of the First Class in the State of New Jersey.	Director, Department of Recreation & Youth Development
TBD*	Mayor*
Maximum salary shall be consistent with the maximum salary range established for the position of Tax Assessor by any other city of the First Class in the State of New Jersey.	Tax Assessor
$85,000	Council Members (excluding Council President)
$90,000	City Council President
Maximum salary shall be consistent with the maximum salary range established for the position of Full-Time Judge of the Municipal Court by any other city of the First Class in the State of New Jersey.	Municipal Court Judges
Maximum salary shall be consistent with the maximum salary range established for the position of Chief Judge of the Municipal Court by any other city of the First Class in the State of New Jersey.	Chief Judge, Municipal Court
Maximum salary shall be consistent with the maximum salary range established for the position of Part-Time Judge of the Municipal Court by any other city of the First Class in the State of New Jersey.	Part-Time Municipal Court Judges

Fixed Salary Ranges	Title
$$40,000 to $75,000	Full-Time Council Aide***** (Up to 4 per Councilperson)
$15,000 to $35,000	Part-Time Council Aide***** (Up to 8 per Councilperson)

*Effective January 1, 2022, the Mayor's salary shall be increased to the then existing base salary for the Hudson County Executive, as established by the Hudson County Board of Chosen Freeholders. The Mayor's salary shall be thereafter set and adjusted based on the base salary of the Hudson County Executive.

Any Councilperson may elect to waive the increase provided herein by providing written notice to the Director of Human Resources and the Business Administrator within 30 days of the effective date of Ord. No. 21-053.

****Where a position with a salary fixed in this section does not have a fixed salary in any other city of the First Class in the State of New Jersey, said salary shall be set based upon the salary for the position with substantially the same duties and responsibilities in any other city of the First Class.

A. All Department Directors, which shall include the City Clerk and the Tax Assessor for purposes of Section, shall be eligible to receive salary increases based on a percentage of the Director's then-existing salary. Such increases shall occur no more than once a year, but may also not occur at all.

B. Prior to any increase taking effect, the Business Administrator and the Director of Human Resources shall conduct a performance review of any affected Director, which review shall include, but not be limited to, the following matters: effective accomplishment of departmental goals, effective development of leadership skills and effective demonstration of organizational, administrative and strategic competencies. The Mayor, or his/her designee, shall conduct the review of the Business Administrator and the Business Administrator and the Mayor, or his/her designee, shall conduct a review of the Director of the Department of Human Resources. The performance reviews in this paragraph shall occur at least annually thereafter, or as frequently as requested by the Business Administrator or the Mayor, or his/her designee. In addition, other performance check-ins may be scheduled to ensure that Department Directors continue to operate effectively in carrying forward the City's vision.

C. In no instance shall a Department Director or Business Administrator receive any COLA increases otherwise permitted by City ordinance, except as provided herein.

D. The Mayor, the City Council President, all City Councilmembers and all Judges of the Municipal Court (including the Chief Judge) shall continue to receive COLA increases as permitted by City ordinance. Any COLA increases shall be applied to the base salary after accounting for the increases provided herein.

*****Each fulltime aide position may be divided into two part-time aide positions, which shall be considered the equivalent of one fulltime aide, allowing not more than eight total part-time aides or four total fulltime aides. Each council member may appoint both fulltime and part-time aides and shall

appoint not more than four fulltime equivalent aides. Each council member shall set the salaries for their own prospective council aide(s), within the prescribed salary range set forth herein. Council Aides may have their salaries increased on a periodic basis in accordance with the recommendation in an annual merit evaluation for each aide, to be filed with the municipal clerk by the council members, but not in excess of the average percentage increase granted to other municipal employees in the same period pursuant to City of Jersey City Municipal Code Section 53-6(D). N.J.S.A. § 40:69A-60.5.

§ 53-12. Provision of retiree medical and health benefits. [Added 1-26-2011 by Ord. No. 11-007; amended 1-26-2011 by Ord. No. 11-008; 8-31-2011 by Ord. No. 11-106]

The City will pay the entire cost of medical and health benefits, including the premium charges for Part B of the Federal Medicare Program, for certain Eligible Employees, as defined hereinafter, who retire or have already retired from the City, pursuant to N.J.S.A. 40A:10-23.

§ 53-13. Eligibility for retiree medical and health benefits. [Added 1-26-2011 by Ord. No. 11-007; amended 1-26-2011 by Ord. No. 11-008]

"Eligible Employees" are defined as employees, including their spouses and dependents, who retire with:

1. At least twenty-five (25) years of credited service in a State or locally administered pension system at the time of retirement; and

2. At least twenty-five (25) years of actual service with the City of Jersey City, which may include prior actual service with a public body, corporate and politic, that it has been established by the City of Jersey City.

The additional requirement of retirement with at least twenty-five (25) years of actual service credit with the City of Jersey City, will only apply: 1) to new Eligible Employees, that is, those hired after the effective date of this ordinance, and 2) upon successful negotiation with each collective bargaining unit of the City of Jersey City.

§ 53-14. Retiree medical and health benefits plans. [Added 8-31-2011 by Ord. No. 11-106]

Effective October 1, 2011, the City will not pay the premium for a Traditional Indemnity Health Insurance Plan. All retirees will be automatically enrolled in a Point of Service or Preferred Provider Health Plan or its substantial equivalent. Those employees who have already retired, may elect to retain or enroll in a Traditional Plan but only if they pay any difference in cost between the premiums for the Traditional Plan and Point of Service or Preferred Provider Health Insurance Plan.

Chapter 56

PLANNING BOARD

§ 56-1. Board created; membership.
§ 56-2. Powers and duties.
§ 56-3. Appeals to Council.

[HISTORY: Adopted by the Council of the City of Jersey City 9-8-1981 as Ch. 2, Art. XVII, Subarticle 12, of Ord. No. MC-14; amended in its entirety at time of adoption of Code; see Ch. 1, General Provisions, Art. I. Subsequent amendments noted where applicable.]

GENERAL REFERENCES

Director of Housing and Economic Development as consultant — See Ch. 3, § 3-73.
Zoning Board of Adjustment — See Ch. 74.
Subdivision of land — See Ch. 299.
Zoning — See Ch. 345.

§ 56-1. Board created; membership.

There is hereby established, pursuant to N.J.S.A. 40:55D-23, in the City of Jersey City, a Planning Board of nine (9) members and two (2) alternates appointed pursuant to N.J.S.A. 40:55D-23.1.

§ 56-2. Powers and duties.

The Planning Board shall have the powers and duties provided by the Municipal Land Use Law.

§ 56-3. Appeals to Council.

Pursuant to Section 8 of the Municipal Land Use Law (N.J.S.A. 40:55D-17), any interested party may appeal to the Municipal Council any final decision of the Planning Board on any class of application for development.

Chapter 59

PUBLIC LIBRARY BOARD OF TRUSTEES

§ 59-1. Board established; legislative authority.

[HISTORY: Adopted by the Council of the City of Jersey City 9-8-1981 as Sec. 2-292 of Ord. No. MC-14. Amendments noted where applicable.]

GENERAL REFERENCES

Administration of government — See Ch. 3.

§ 59-1. Board established; legislative authority.

The Board of Trustees of the Public Library is hereby established pursuant to law (N.J.S.A. 40:54-1 et seq.).

Chapter 62

RECORDS, PUBLIC ACCESS TO

§ 62-1. Inspection permitted.
§ 62-2. Copying by person requesting records.
§ 62-3. Denial of examination of records.

[HISTORY: Adopted by the Council of the City of Jersey City 6-23-1993 as Ord. No. 93-064. Amendments noted where applicable.]

GENERAL REFERENCES

Administration of government — See Ch. 3.

§ 62-1. Inspection permitted.

Under N.J.S.A. 47:1A-2, all records required by law to be made, maintained or kept on file by any board, body, agency, department, commission, authority or official of the city are considered public records. Every citizen of the state, during regular business hours maintained by the custodian of such records, has the right, during regular business hours and under the supervision of a representative of the custodian, to copy the records by hand and purchase copies of the records. Copies of records must be made available upon payment of the fee established by law.[1]

§ 62-2. Copying by person requesting records.[2]

If the documents to be copied are more than one hundred (100) pages, the custodian may permit the person requesting copies to use his or her own copying machine, provided that there is no risk of damage or mutilation of the documents and it would not be incompatible with the transaction of public business. The decision is completely within the discretion of the custodian of records. The fee in such case is as provided in Chapter 160, Fees and Charges.[3]

§ 62-3. Denial of examination of records.

Notwithstanding the provisions of § 62-1, if it appears that the records sought to be examined pertain to an investigation in progress by any body, agency and/or commission, board, authority or official, the right of examination may be denied if the inspection, copying or publication of the records is inimical to the public interest; provided that this restriction shall not be construed

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1 **Editor's Note: See Ch. 160, Fees and Charges.**

2 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

3 **Editor's Note: For documents maintained by the Office of the Tax Assessor, see Ch. 3, Administration of Government, § 3-65.**

to prohibit any body, agency, commission, board, authority or official from opening such records for public examination if not otherwise prohibited by law.

Chapter 66

REDEVELOPMENT AGENCY

§ 66-1. Agency established.

§ 66-2. Commissioners.

[HISTORY: Adopted by the Council of the City of Jersey City 9-8-1981 as Sec. 2-293 of Ord. No. MC-14. Amendments noted where applicable.]

GENERAL REFERENCES

Administration of government — See Ch. 3.

§ 66-1. Agency established.

The Redevelopment Agency is hereby established pursuant to law (N.J.S.A. 40:55C-1 et seq.[1]).

§ 66-2. Commissioners. [Added 12-22-1992 by Ord. No. 92-187]

Two (2) Commissioners of the Jersey City Redevelopment Agency shall be members of the Municipal Council, each of whom shall serve a term of one (1) year.

[1] **Editor's Note: N.J.S.A. 40:55C-1 was repealed by L. 1992, c. 79. Section 59b of that Act provided for the continuation of a Redevelopment Agency established prior to such repeal. For current provisions, see N.J.S.A. 40A:12-11.**

Chapter 67

PEDESTRIAN MALLS

Article I.
Newark Avenue Pedestrian Mall

§ 67-1. Definitions.
§ 67-2. Findings.
§ 67-3. Limitations.
§ 67-4. Uses of pedestrian mall; control and regulation.
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Article III.
Provost Street Between Bay Street and Morgan Street Pedestrian Mall

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§ 67-22. Findings.
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§ 67-24. Uses of Provost Street as a pedestrian mall; control and regulation.
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§ 67-28. Municipal powers retained.
§ 67-29. Abandonment of operation.
§ 67-30. Procedures incident to development and maintenance.

ARTICLE I.
Newark Avenue Pedestrian Mall

§ 67-1. Definitions. [Added 7-15-2015 by Ord. No. 15-096]

The following terms shall have the meanings indicated:

A. "Pedestrian Mall" or "Pedestrian Mall Improvement" or "Pedestrian Plaza" or "Mall": Pursuant to N.J.S.A. 40:56-65 et seq., any local improvement designed to be used primarily for the

movement, safety, convenience and enjoyment of pedestrians, whether or not a part of a street is set apart for roadway or emergency vehicles, transit vehicles and private vehicles, or any of them. A pedestrian mall improvement shall include but not be limited to pedestrian thoroughfares, perimeter parking, public seating, park areas, outdoor cafes, shelters, trees, flower plantings, sculpture, newsstands, telephone booths, traffic signs, kiosks, fire hydrants, street lighting, ornamental signs, ornamental lights, trash receptacles, display cases, marquees, awnings, canopies, overhead radiant heating fixtures, underground radiant heating pipes and devices, walls, bollards and chains and all such other fixtures, equipment, facilities and appurtenances which in the judgment of the governing body of a municipality will enhance the movement, safety, convenience and enjoyment of pedestrians and benefit the municipality and adjoining properties.

§ 67-2. Findings. [Added 7-15-2015 by Ord. No. 15-096; 6-27-2018 by Ord. No. 18-064]

A. The Mayor and Council find and declare:

(1) The City of Jersey City may undertake development and maintenance of a Pedestrian Mall as a local improvement pursuant to this act and provisions of N.J.S.A. 40:56-69 et seq.

(2) That a Newark Avenue Pedestrian Mall will enhance the movement, safety, convenience and enjoyment of pedestrians.

(3) That the portion of Newark Avenue between Grove Street and Erie Street and the portion of Newark Avenue between Barrow Street and Jersey Avenue and Bay Street from Erie Street to Newark Avenue are not a part of any state highway, are located primarily in a business district and are improved to their maximum feasible width with regard to adjoining buildings and improvements.

(4) That a reasonably convenient alternate route to other parts of the City and State exist for private vehicles.

(5) That continued unlimited use of the street or part thereof by private vehicles may constitute a hazard to the health and safety of pedestrians.

(6) That abutting properties can reasonably and adequately be provided with emergency vehicular services and receive and deliver merchandise and materials from other streets and alleys or by provisions for limited use of the streets by emergency vehicles and carriers of such merchandise and materials.

(7) That it is in the best interests of the City and the public and of benefit to adjacent properties to use such street primarily for pedestrian purposes, and that pedestrian use is determined to be the highest and best use of such street or part thereof.

§ 67-3. Limitations. [Added 7-15-2015 by Ord. No. 15-096; 6-27-2018 by Ord. No. 18-064]

A. A pedestrian mall shall be created on the following street(s) or portion thereof:

(1) Newark Avenue, between Grove Street and Erie Street as indicated on the street map on file in the office of the City Clerk;

(2) Newark Avenue, between Barrow Street and Jersey Avenue as indicated on the street map on file in the office of the City Clerk; and

(3) Bay Street from Erie Street to Newark Avenue as indicated on the street map on file in the office of the City Clerk.

B. The use of the surface of the above described portion of Newark Avenue and Bay Street shall be limited at all times to pedestrians and also emergency, public works, and other maintenance and service vehicles as required, as well as other vehicles explicitly permitted by the City under § 67-4 below.

C. The Business Administrator shall maintain a Newark Avenue Pedestrian Mall operating plan that shall contain rules and regulations regarding the specific permitted uses of the Mall, including but not limited to special events, food and beverage service, and improvements and maintenance of the mall. See § 67-4 below.

D. There shall be no limit of vehicular use on either Grove Street, Christopher Columbus Drive, or Erie Street.

E. The City acknowledges that there is access to other streets for delivery of or receiving merchandise or materials.

§ 67-4. Uses of pedestrian mall; control and regulation. [Added 7-15-2015 by Ord. No. 15-096]

A. Under the direction of the Mayor and governing body, a pedestrian mall may be used for any purpose or activity which will enhance the movement, safety, convenience or enjoyment of pedestrians, subject to the limitations set forth, in this section.

B. The Business Administrator shall maintain a pedestrian mall operating plan, to be enforced by the Department of Public Safety and the Division of Commerce, that will provide for the control and regulation of:

(1) The distribution and location of movable furniture, sculpture or pedestrian traffic control devices, landscaping and other facilities belonging to the mall and not otherwise located or fixed by plans and specifications.

(2) The uses to be permitted on the mall by occupants of abutting property, including but not limited to transit or telephone utilities and other concessionaires.

(3) The issuance of permits to conduct any special activity(ies) or operation(s) consistent with the broad purposes of the mall, subject to the limitations set forth in this section.

(4) The operation of any heating or other facilities and replacing landscaping and maintaining furniture and facilities in the mall.

(5) The designation of parking spaces and/or other specifically reserved uses of the mall or portions thereof.

(6) Pursuant to N.J.S.A. 40:56-69 et seq., the regulation of a limited amount of local vehicle traffic in order to allow for deliveries, pickups and/or drop-offs of business patrons or employees, and/or other loading and unloading of personnel, materials, or other goods to be used directly or indirectly by a business and/or residence along the pedestrian mall.

C. The following minimum restrictions and regulations shall be in effect at all times within the mall and shall be noted in the pedestrian mall operating plan: **[Amended 5-23-2018 by Ord. No. 18-050; 6-27-2018 by Ord. No. 18-064]**

(1) Any person(s) creating undue amounts of noise, waste, and/or a potentially dangerous or threatening environment for any mall patrons will be subject to removal from the pedestrian mall and subject to additional penalties allowed by law, if applicable.

(2) No person may loiter in the pedestrian mall between the hours of 11:00 p.m. and 6:00 a.m., whether or not that person is making use of any pedestrian mall public seating, fixtures, or any other pedestrian mall features. Any person in violation of this section will be subject to removal from the pedestrian mall in addition to any other penalties allowed by law.

(3) Amplified music or other amplified sounds shall not be allowed within fifty (50) feet of the portion of Newark Avenue between Jersey Avenue and Grove Street and Bay Street from Erie Street to Newark Avenue (not including the portion of Newark Avenue between Grove Street and Christopher Columbus Drive). Any other limits on music or noise (including, without limitation, maximum permitted decibel levels) that would otherwise be applicable to these portions of Newark Avenue and Bay Street with or without the establishment of the mall shall remain in full force and in effect within this area.

(4) No open-air rooftop bar or restaurant shall be permitted to operate after 12:00 midnight. Food and beverage operations may continue in any fully-enclosed portion of the business until the regularly established closing time in accordance with all existing laws regarding the service of food and alcoholic beverages.

D. The following minimum restrictions and regulations with regard to vehicle access shall be in effect at all times within the Mall and shall be noted in the Pedestrian Mall Operating Plan: **[Added 5-9-2018 by Ord. No. 18-035; amended 6-27-2018 by Ord. No. 18-064]**

1. There shall be no limit of vehicular use on either Grove Street, Christopher Columbus Drive, Barrow Street or Erie Street.

2. Vehicles are not permitted to enter the Pedestrian Mall at any time, except for vehicles that are performing deliveries, pickups and/or drop-offs of business patrons or employees, and/or other loading and unloading of personnel, materials, or other goods to be used directly or indirectly by a business and/or residence along the Pedestrian Mall ("Permitted Vehicles") and only under the following conditions:

   a. Permitted vehicles may only enter the Pedestrian Mall between the hours of 10:00 a.m. and 3:00 p.m., Monday through Friday, and between the hours 10:00 a.m. and 1:00 p.m., Saturday and Sunday.

   b. Permitted vehicles specific to waste removal operations may only enter the Pedestrian Mall between the hours of 2:00 a.m. and 7:00 a.m., Monday through Sunday.

   c. Permitted vehicles may only enter the Pedestrian Mall for a period of up to 15 minutes.

   d. Permitted vehicles must not remain stationary in any portion of the Pedestrian Mall except along curbs (not in the middle travel lane).

   e. Permitted vehicle size is limited to any vehicle with two axles or less.

   f. Permitted vehicles shall enter the eastern half of the Pedestrian Mall only from Grove Street and must travel one-way westbound from Grove Street to Erie Street, and permitted vehicles shall enter the western half of the Pedestrian Mall only from Barrow Street and must travel one-way westbound from Barrow Street to Jersey Avenue.

g. Permitted vehicles may travel at speeds up to five miles per hour.

3. Vehicles that require access for periods longer than 15 minutes and/or after the approved access hours must receive approval from the Division of Engineering, Traffic and Transportation.

§ 67-5. Notice to owners and public meeting. [Added 7-15-2015 by Ord. No. 15-096]

A. At least ten (10) days prior to the date fixed for a public hearing, a copy of the proposed ordinance and notice of the date, time and place of the hearing shall be mailed to the owners of the lots and parcels of land abutting or directly affected by the pedestrian mall.

B. The City shall hold a public feedback review meeting between six (6) and eight (8) months after approval of the ordinance from which this article derives and full implementation and construction of the mall. The purpose of this meeting will be to discuss issues and any possible changes and/or improvements to the mall. This public feedback review session shall occur at City Hall. Adequate notice shall be provided to all property owners within six hundred (600) feet of any mall boundary, the Historic Downtown Special Improvement District, the Harsimus Cove Association, and other adjacent communities and community groups.

§ 67-6. Operating plan. [Added 7-15-2015 by Ord. No. 15-096]

A. The Mall shall be operated and maintained pursuant to the regulations and restrictions set forth in this article and also the pedestrian mall operating plan maintained by the Business Administrator and also pursuant to provisions of N.J.S.A. 40:56-65 et seq.

§ 67-7. Specifications for construction. [Added 7-15-2015 by Ord. No. 15-096]

A. The Jersey City Division of Architecture and Engineering and the Jersey City Department of Public Works shall approve the materials or combinations thereof of which the pedestrian mall shall be constructed if applicable. The City may in its discretion narrow any roadway to be kept and maintained in connection with any pedestrian mall, may cause any street vaults to be reconstructed or removed, may construct crosswalks at any point within a block and may cause the roadway to curve and meander within the limits of the street to enhance the usefulness and appearance of the pedestrian mall.

§ 67-8. Municipal powers retained. [Added 7-15-2015 by Ord. No. 15-096]

A. Notwithstanding the improvement of any street as a pedestrian mall, the City of Jersey City shall retain all its powers relating to the street or part thereof constituting the mall.

B. No such action shall be construed as a vacation in whole or in part; the establishment of a pedestrian mall is a matter of regulation only.

§ 67-9. Abandonment of operation. [Added 7-15-2015 by Ord. No. 15-096]

A. Nothing shall prevent the City, from subsequently abandoning the operation of the pedestrian mall, changing special assessments or taxes for annual costs or changing or repealing any limitation on the use of the mall for a particular purpose by ordinance.

§ 67-10. Procedures incident to development and maintenance. [Added 7-15-2015 by Ord. No. 15-096]

A. Condemnation proceedings and all other procedures incident to the development and maintenance of a pedestrian mall shall be authorized under N.J.S.A. 40:56-69 et seq., if required.

ARTICLE II.
Exchange Place Pedestrian Mall

§ 67-11. Definitions. [Added 9-10-2020 by Ord. No. 20-062]

The following terms shall have the meanings indicated:

"Pedestrian Mall" or "Pedestrian Mall Improvement" or "Pedestrian Plaza" or "Mall": Pursuant to N.J.S.A. 40:56-65 et seq., any local improvement designed to be used primarily for the movement, safety, convenience and enjoyment of pedestrians, whether or not a part of a street, that is set apart for roadway or emergency vehicles, transit vehicles and private vehicles, or any of them. A Pedestrian Mall Improvement shall include but not be limited to pedestrian thoroughfares, perimeter parking, public seating, park areas, outdoor cafes, shelters, trees, flower plantings, sculpture, newsstands, telephone booths, traffic signs, kiosks, fire hydrants, street lighting, ornamental signs, ornamental lights, trash receptacles, display cases, marquees, awnings, canopies, overhead radiant heating fixtures, underground radiant heating pipes and devices, walls, bollards and chains and all such other fixtures, equipment, facilities and appurtenances which in the judgment of the governing body of a municipality will enhance the movement, safety, convenience and enjoyment of pedestrians and benefit the municipality and adjoining properties.

§ 67-12. Findings. [Added 9-10-2020 by Ord. No. 20-062]

A. The Mayor and Council find and declare:

(1) The City of Jersey City may undertake development and maintenance of a Pedestrian Mall as a local improvement pursuant to this act and provisions of N.J.S.A. 40:56-67 et seq.

(2) That an Exchange Place Pedestrian Mall will enhance the movement, safety, convenience and enjoyment of pedestrians.

(3) That Exchange Place, between Hudson Street and the Hudson River Waterfront Walkway, is not a part of any state highway, is located primarily in a business district and is improved to its maximum feasible width with regard to adjoining buildings and improvements.

(4) That a reasonably convenient alternative route to other parts of the City and state exists for private vehicles.

(5) That continued unlimited use of the street or part thereof by private vehicles may constitute a hazard to the health and safety of pedestrians.

(6) That abutting properties can reasonably and adequately be provided with emergency vehicular services and receive and deliver merchandise and materials from other streets and alleys or by provisions for limited use of the streets by emergency vehicles and carriers of such merchandise and materials.

(7) That it is in the best interest of the City and the public and of benefit to adjacent properties to use such street primarily for pedestrian purposes, and that pedestrian use is determined to be the highest and best use of such street or part thereof.

§ 67-13. Limitations. [Added 9-10-2020 by Ord. No. 20-062]

A. A Pedestrian Mall shall be created on the following street(s) or portion thereof:

(1) Exchange Place, between Hudson Street and the Hudson River Waterfront Walkway, as indicated on the street map on file in the Office of the City Clerk. This excludes private access road.

B. The use of the surface of the above described Exchange Place shall be limited at all times to pedestrians and also emergency, public works, waste removal, other maintenance and service vehicles ("Permitted Vehicles"), as well as other vehicles explicitly permitted by the City under Section 67-14 below.

C. The Exchange Place Alliance Special Improvement District shall maintain the Exchange Place Pedestrian Mall operating plan that shall contain rules and regulations regarding the specific permitted uses of the Mall, including but not limited to special events, food and beverage service, and improvements and maintenance of the Mall.

D. The City acknowledges that there is access to other streets for delivery of or receiving merchandise or materials.

§ 67-14. Use of Pedestrian Mall; control and regulation. [Added 9-10-2020 by Ord. No. 20-062]

A. Under the direction of the Mayor and governing body, a Pedestrian Mall may be used for any purpose or activity which will enhance the movement, safety convenience or enjoyment of pedestrians, subject to the limitations set forth in this section.

B. The Exchange Place Alliance Special Improvement District shall maintain a Pedestrian Mall operating plan, to be enforced by the Department of Public Safety and the Division of Commerce that will provide for the control and regulation of:

(1) The distribution and location of movable furniture, sculpture or pedestrian traffic control devices, landscaping and other facilities belonging to the Mall and not otherwise located or fixed by plans and specifications.

(2) The uses to be permitted on the Mall by occupants of abutting properties, including but not limited to transit or telephone utilities and other concessionaries.

(3) The issuance of permits to conduct any special activity(ies) or operations) consistent with the broad purpose of the Mall, subject to the limitations set forth in this section.

(4) The operation of any heating or other facilities and replacing landscaping and maintain furniture and facilities in the Mall.

(5) The designation of parking space and/or other specifically reserved uses of them, all or portions thereof.

(6) Pursuant to N.J.S.A. 40:56-69 et seq., the regulation of a limited amount of local vehicle traffic in order to allow for deliveries, pickups and/or drop-offs of business patrons or employees, and/or other loading and unloading of personnel, materials or other goods to be used directly or indirectly by a business and/or residence along the Pedestrian Mall.

C. The following minimum restrictions and regulations shall be in effect at all times within the Mall and shall be noted in the Pedestrian Mall operating plan:

(1) Any person (s) creating undue amounts of noise, waste and/or a potentially dangerous or threatening environment for any Mall patrons will be subject to removal from the Pedestrian Mall and subject to additional penalties allowed bylaw, if applicable.

(2) No person may loiter in the Pedestrian Mall between the hours of 11:00 p.m. and 6:00 a.m., whether or not that person is making use of any Pedestrian Mall public seating, fixtures or any other Pedestrian Mall features. Any person in violation of this section will be subject to removal from the Pedestrian Mall in addition to any other penalties allowed by law, if applicable.

(3) Amplified music or other amplified sounds shall be allowed within the Pedestrian Mall so long as applicable permits have been issued either by the Office of Cultural Affairs or other applicable authority or in accordance with the requirements set forth herein. Any other limits on music or noise (including, without limitation, maximum permitted decibel levels) that would otherwise be applicable to Exchange Place with or without the establishment of the Mall shall remain in full force and in effect within this area.

(4) All rooftop areas of bars and/or restaurants must operate in accordance with applicable city rules and regulations regarding closing time and food and beverage service.

D. The following minimum restrictions and regulations with regard to vehicle access shall be in effect at all times within the Mall and shall be noted in the Pedestrian Mall operating plan:

(1) Vehicles are not permitted to enter the Pedestrian Mall at any time, except for the following permitted vehicles; emergency, public works, waste removal, other maintenance and service vehicles ("Permitted Vehicles") and only under the following conditions:

a. Permitted Vehicles specific to waste removal operations may only enter the Pedestrian Mall between the hours of 2:00 AM and 7:00 AM, daily.

b. Permitted Vehicles must not remain stationary in any portion of the Pedestrian Mall except along the interior perimeter, explicitly not in the middle area.

c. Permitted Vehicle size is limited to any vehicle with two axles or less.

d. Permitted Vehicles shall enter the Pedestrian Mall only from demarcated access points.

e. Permitted Vehicles may travel at speeds up to five miles per hour.

f. Vehicles that requires access for periods longer than 15 minutes and/or outside of the approved access hours must receive approval from the Division of Engineering, Traffic & Transportation.

§ 67-15. Notice to owners and public meeting. [Added 9-10-2020 by Ord. No. 20-062]

A. At least ten days prior to the date fixed for a public hearing, a copy of the proposed ordinance and notice of the date, time and place of the hearing shall be mailed to the owners of the lots and parcels of land abutting or directly affected by the Pedestrian Mall.

B. The City shall hold a public feedback review meeting between six and eight months after approval of the ordinance from which this article derives and full implementation and construction of the Mall. The purpose of this meeting will be to discuss issues and any possible changes and/or improvements to the Mall. Adequate notice shall be provided to all property owners within 600 feet of any Mall boundary, the Exchange Place Alliance Special Improvement District, and other adjacent communities and community groups.

§ 67-16. Operating plan. [Added 9-10-2020 by Ord. No. 20-062]

The Mall shall be operated and maintained pursuant to the regulations and restrictions set forth in this article and also the Exchange Place Pedestrian Mall Operating Plan maintained by the Exchange Place Alliance Special Improvement District and also pursuant to provisions of N.J.S.A. 40:56-65, et seq.

§ 67-17. Specifications for construction. [Added 9-10-2020 by Ord. No. 20-062]

The Jersey City Division of Architecture and Engineering and the Jersey City Department of Public Works shall approve the materials or combinations thereof of which the Pedestrian Mall shall be constructed if applicable. The City may in its discretion narrow any roadway to be kept and maintained in connection with any Pedestrian Mall, may cause any street vaults to be reconstructed or removed, may construct crosswalks at any point within a block and may cause the roadway to curve and meander within the limits of the street to enhance the usefulness and appearance of the Pedestrian Mall.

§ 67-18. Municipal power retained. [Added 9-10-2020 by Ord. No. 20-062]

A. Notwithstanding the improvement of any street as a Pedestrian Mall, the City of Jersey City shall retain all its powers relating to the street or part thereof constituting the Mall.

B. No such action shall be construed as a vacation in whole or in part, the establishment of a Pedestrian Mall is a matter of regulation only.

§ 67-19. Abandonment of operation. [Added 9-10-2020 by Ord. No. 20-062]

Nothing shall prevent the City, from subsequently abandoning the operation of the Pedestrian Mall, changing special assessments or taxes for annual costs or changing or repealing any limitation on the use of the Mall for a particular purpose by ordinance.

§ 67-20. Procedures incident to development and maintenance. [Added 9-10-2020 by Ord. No. 20-062]

Condemnation proceedings and all other procedures incident to be development and maintenance of a Pedestrian Mall shall be authorized under N.J.S.A. 40:56-69 et seq., if required.

(1) All ordinances and parts of ordinances inconsistent herewith are hereby repealed with the exception of Ordinance 18-144.

(2) The City Clerk shall have the ordinance from which this article derives codified and incorporated in the official copies of the Jersey City Code.

(3) This article shall take effect at the time and in the manner as provided by law.

(4) The City Clerk and the Corporation Counsel may change any chapter numbers, article numbers and section numbers if codification of this article reveals a conflict of those numbers and the existing code, in order to avoid confusion and possible accidental repealers of existing provisions.

(5) The Jersey City Division of Planning is hereby directed to give notice at least ten days prior to the hearing on the adoption of the ordinance from which this article derives to the Hudson County Planning Board and to all other persons entitled thereto pursuant to N.J.S.A. 40:55D-15 and 40:55D-63 (if required). Upon the adoption of the ordinance from which this article derives after public hearing thereon, the City Clerk is directed to publish notice of the passage thereof and to file a copy of the ordinance as finally adopted with the Hudson County Planning Board as required by N.J.S.A. 40:55D-16. The Clerk shall also forthwith transmit a copy of the ordinance from which this article derives after final passage to the Municipal Tax Assessor as required by N.J.S.A. 40:49-2.1.

ARTICLE III.

Provost Street between Bay Street and Morgan Street Pedestrian Mall

§ 67-21. Definitions. [Added 5-21-2025 by Ord. No. 25-005]

The following terms shall have the meanings indicated:

A. "Pedestrian mall" or "pedestrian mall improvement" or "pedestrian plaza" or "mall": Pursuant to N.J.S.A. 40:56-65 et seq., any local improvement designed to be used primarily for the movement, safety, convenience and enjoyment of pedestrians, whether or not a part of a street is set apart for roadway or emergency vehicles, transit vehicles and private vehicles, or any of them. A pedestrian mall improvement shall include but not be limited to pedestrian thoroughfares, perimeter parking, public seating, park areas, outdoor cafes, shelters, trees, flower plantings, sculpture, newsstands, telephone booths, traffic signs, kiosks, fire hydrants, street lighting, ornamental signs, ornamental lights, trash receptacles, display cases, marquees, awnings, canopies, overhead radiant heating fixtures, underground radiant heating pipes and devices, walls, bollards and chains and all such other fixtures, equipment, facilities and appurtenances which in the judgment of the governing body of a municipality will enhance the movement, safety, convenience and enjoyment of pedestrians and benefit the municipality and adjoining properties.

§ 67-22. Findings. [Added 5-21-2025 by Ord. No. 25-005]

A. The Mayor and Council find and declare that:

(1) The City of Jersey City may undertake development and maintenance of a pedestrian mall as a local improvement pursuant to the provisions of N.J.S.A. 40:56-65 et seq. (the "Act").

(2) Provost Street between Bay Street and Morgan Street (hereinafter "Provost Street") constitutes a pedestrian mall within the meaning of the Act.

(3) Provost Street as a pedestrian mall will enhance the movement, safety, convenience and enjoyment of pedestrians including those who use the theater and multi-purpose art-related space and Provost Square Plaza.

(4) Provost Street is not a part of any state highway, it is located primarily in an arts centric business district as declared in the Powerhouse Arts District Redevelopment Plan and is improved to its maximum feasible width with regard to adjoining buildings and improvements.

(5) A reasonably convenient alternate route to other parts of the City and State exists for private vehicles.

(6) In light of the proximity of the theater and art centric support center to Provost Street the continued unlimited use of Provost Street by private vehicles may constitute a hazard to the health and safety of pedestrians.

(7) The abutting properties can reasonably and adequately be provided with emergency vehicular services and receive and deliver merchandise and materials from other streets and alleys or by provisions for limited use of the streets by emergency vehicles and carriers of such merchandise and materials.

(8) It is in the best interests of the City and the public and of benefit to adjacent properties to use Provost Street primarily for pedestrian purposes, and that pedestrian use is determined to be the highest and best use of such street or part thereof.

§ 67-23. Limitations. [Added 5-21-2025 by Ord. No. 25-005]

A. A pedestrian mall shall be created on the following street or portion thereof:

(1) Provost Street between Bay Street and Morgan Street (hereinafter "Provost Street"), as indicated on the street map on file in the office of the City Clerk.

B. The use of the surface of the above Provost Street shall be limited at all times to pedestrians and also emergency, public works, and other maintenance and service vehicles as required, as well as other vehicles explicitly permitted by the City under § 67-24 below.

C. The Business Administrator shall maintain the Provost Street Pedestrian Mall Operating Plan that shall contain rules and regulations regarding the specific permitted uses of Provost Street.

D. There shall be no limit of vehicular use on either Bay Street or Morgan Street.

E. The City acknowledges that there is access to other streets for delivery of or receiving merchandise or materials.

§ 67-24. Uses of Provost Street as a pedestrian mall; control and regulation. [Added 5-21-2025 by Ord. No. 25-005]

A. Under the direction of the Mayor and Municipal Council, Provost Street may be used for any purpose or activity which will enhance the movement, safety, convenience or enjoyment of pedestrians, subject to the limitations set forth in this section.

B. The Business Administrator shall maintain a Provost Street Pedestrian Mall Operating Plan to be enforced by the Department of Public Safety and the Division of Commerce, that will provide for control and regulation of:

(1) The distribution and location of movable furniture, artwork, sculptures or pedestrian traffic control devices, landscaping and other facilities belonging to the City and not otherwise located or fixed by plans and specification set forth in the amended dedication agreement.

(2) The regular maintenance of Provost Street to be performed by BAY, or its successors in title and interest, and assigns as prescribed by and set forth in the amended dedication agreement including Section 2 thereof.

(3) The repair, removal, re-surfacing, and replacement of the improvements in Provost Street including the cobblestone by the City as prescribed by and set forth in the amended dedication agreement.

(4) The provision of fire protection and police protection as required by the amended dedication agreement.

(5) The provision of electricity and the operation of lighting for public use on Provost Street as required by the amended dedication agreement.

(6) The enforcement of all municipal ordinances applicable to parks and recreation areas including Chapter 239, Section 239-1 et seq. for the benefit of the public as required by the amended dedication agreement.

(7) The uses to be permitted on Provost Street by occupants of abutting property, including concessionaires provided that such occupants of abutting property shall have an easement to use and enjoy the Provost Street in the same manner as the general public as set forth in the amended dedication agreement.

(8) The issuance of permits to conduct any special activity(ies) or operation(s) consistent with the broad purposes of the Powerhouse Arts District Redevelopment Plan, subject to the limitations set forth in this section.

(9) The designation of parking spaces and/or other specifically reserved uses of Provost Street or portions thereof.

(10) Pursuant to the Act, the regulation of a limited amount of local vehicle traffic in order to allow for deliveries, pickups and/or drop-offs of business patrons or employees, and/or other loading and unloading of-personnel, materials, or other goods to be used directly or indirectly by a business and/or residence along Provost Street.

C. The following minimum restrictions and regulations shall be in effect at all times within Provost Street and shall be noted in the Provost Street Pedestrian Mall Operating Plan:

(1) Any person(s) creating undue amounts of noise, waste, and/or a potentially dangerous or threatening environment for any pedestrian mall patrons will be subject to removal from the pedestrian mall and subject to additional penalties allowed by law, if applicable.

(2) No person may loiter in the pedestrian mall between the hours of 11:00 p.m. and 6:00 a.m., whether or not that person is making use of any pedestrian mall public seating, fixtures, or any other pedestrian mall features. Any person in violation of this section will be subject to removal from the pedestrian mall in addition to any other penalties allowed by law.

(3) Amplified music or other amplified sounds shall not be allowed within 50 feet of the pedestrian mall. Any other limits on music or noise (including, without limitation, maximum permitted decibel levels) that would otherwise be applicable to this section of Provost Street with or without the establishment of the pedestrian mall shall remain in full force and in effect within this area.

§ 67-25. Notice to owners and public meeting. [Added 5-21-2025 by Ord. No. 25-005]

A. At least ten days prior to the date fixed for a public hearing, a copy of the proposed ordinance and notice of the date, time and place of the hearing shall be mailed to the owners of the lots and parcels of land abutting or directly affected by the pedestrian mall.

§ 67-26. Operating plan. [Added 5-21-2025 by Ord. No. 25-005]

A. Provost Street shall be operated and maintained pursuant to the regulations and restrictions set forth in this ordinance, the amended dedication agreement, the Provost Street Pedestrian Mall Operating Plan, and the provisions of the Act.

B. This article is intended to facilitate the City's obligations under the amended dedication agreement with regard to Provost Street. Nothing in this article is intended to amend, void, nullify, or terminate the amended dedication agreement. The amended dedication shall remain in full force and effect and continue to be binding on the BAY, MSUR, their successors in title and interest, and assigns, and the City in accordance with its terms.

§ 67-27. Specifications for construction. [Added 5-21-2025 by Ord. No. 25-005]

A. The improvements to Provost Street have been made in accordance with the Amended West Property Final Site Plan Approval. The Municipal Engineer has inspected the improvements made to Provost

Street by BAY and confirmed that they have been made in accordance with the requirements of the Amended West Property Final Site Plan Approval. BAY has delivered to the City a two-year maintenance bond in a form prescribed by the amended dedication agreement. Upon the expiration of the maintenance bond, the City shall be responsible for the repair, removal, re-surfacing, and replacement of the improvements in Provost Street including the cobblestone as required by the amended dedication agreement.

§ 67-28. Municipal powers retained. [Added 5-21-2025 by Ord. No. 25-005]

A. Notwithstanding the improvement of the street as a pedestrian mall, the City of Jersey City shall retain all its powers relating to the street or part thereof constituting the pedestrian mall.

B. No such action shall be construed as a vacation in whole or in part of Provost Street; the establishment of a pedestrian mall is a matter of regulation only.

§ 67-29. Abandonment of operation. [Added 5-21-2025 by Ord. No. 25-005]

A. Nothing shall prevent the City, from subsequently abandoning the operation of the pedestrian mall, charging special assessments or taxes for annual costs or changing or repealing any limitation on the use of the pedestrian mall for a particular purpose by ordinance.

§ 67-30. Procedures incident to development and maintenance. [Added 5-21-2025 by Ord. No. 25-005]

A. Condemnation proceedings and all other procedures incident to the development and maintenance of a pedestrian mall shall be authorized under N.J.S.A. 40:56-65 et seq.

Chapter 69

SPECIAL IMPROVEMENT DISTRICTS*

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***History**—Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable.

Cross references—Administration of government, Ch. 3; Board of Assessment Commissioners, Ch. 9; taxation, Ch. 304; Urban Enterprise Zone, Ch. 323; zoning, Ch. 345.

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ARTICLE I

Central Avenue Special Improvement District*

§ 69-1. Purpose. [Added 1-15-2025 by Ord. No. 25-009]

The purposes of this article are to:

A. Promote economic growth and employment within an expanded Central Avenue business district;

B. Foster and encourage self-help programs to enhance the local business climate;

C. Create a self-financing Special Improvement District to assist in meeting local needs, goals and objectives;

D. Designate a District Management Corporation to implement and manage the programs and carry out local needs, goals and objectives;

E. Impose and collect a special assessment on property and parking lots located within the expanded Central Avenue District.

§ 69-2. Definitions. [Added 1-15-2025 by Ord. No. 25-009]

DISTRICT MANAGEMENT CORPORATION — the Central Avenue Special Improvement District Management Corporation, (also referred to as "Management Corporation") an entity incorporated pursuant to Title 15A of the New Jersey Statutes and designated by this article to receive funds collected by a special assessment within the Special Improvement District, as authorized by this Chapter and any amendments thereto.

SPECIAL IMPROVEMENT DISTRICT (also referred to as "District") — that area of Central Avenue described by Block and Lot numbers and street addresses as set forth in Schedule A and designated by this article, in which a special assessment on property shall be imposed for the purposes of promoting the economic and general welfare of the District and the City.

***Editor's note—**Ord. No. 25-009, adopted January 15, 2025, amended the Code by repealing former Art. II, §§ 69-15—59-19.3; renumbering former Art. I, §§ 69-1—69-14.2, as a new Art. II, §§ 69-17—69-32; and adding Art. I. Former Art. II pertained to similar subject matter, as the new Art. I, and derived from Ord. No. 92-087, adopted July 22, 1992; and Ord. No. 94-106, adopted November 22, 1994; Ord. No. 96-048, adopted May 22, 1996; Ord. No. 97-099, adopted January 14, 1998; Ord. No. 16-092, adopted June 15, 2016; and Ord. No. 24-010, adopted March 6, 2024.

§ 69-3. Findings. [Added 1-15-2025 by Ord. No. 25-009]

The Council finds and declares that:

A. The Central Avenue Special Improvement District area of the City has special needs and requires special services separate and apart from the municipal services already provided to the District by the City.

B. These specific services can best be provided through a private-public partnership implemented by the creation of a Special Improvement District to be managed by a District Management Corporation.

C. The creation of a Special Improvement District and the designation of a District Management Corporation will promote economic growth and employment; foster and encourage business vitality, expansion and self- help; enhance the local business climate and otherwise be in the best interest of the property owners in the District and the City.

D. A District Management Corporation will provide administrative and other services to benefit the businesses, employees, residents and consumers within the Special Improvement District and assist the city in promoting economic growth and employment.

E. A special assessment shall be imposed and collected by the City with the regular property tax payment or payment in lieu of taxes or otherwise, and that all or a portion of these payments shall be transferred to the District Management Corporation to effectuate the purposes of this article and to exercise the powers given to it by this article.

§ 69-4. Creation of district. [Added 1-15-2025 by Ord. No. 25-009]

A. There is hereby created and designated within the City of Jersey City a Special Improvement District to be known as the Central Avenue Special Improvement District consisting of those properties designated by tax Block and Lot and street addresses on Schedule A attached hereto and on file in the Office of the City Clerk. The Special Improvement District shall be subject to special assessments on all affected property within the District which assessment shall be imposed by the City for the purposes of promoting the economic and general welfare of the District and the City.

B. All commercial, industrial and vacant properties within the Special Improvement District, including all private properties; and tax exempt land which contain improvements subject to property tax, are deemed included in the assessing and taxing provisions of this article and are expressly subject to any fee, tax or assessment made for Special Improvement District purposes.

C. Only those properties within the Special Improvement District that are fully tax-exempt or used exclusively for residential purposes or in the case of mixed-use properties, the portion of those properties used exclusively for residential purposes are deemed excluded from the assessing provisions of this article and are expressly exempt from any fee, tax or assessment made for Special Improvement District purposes.

§ 69-5. Appeal of property owner from inclusion in the district. [Added 1-15-2025 by Ord. No. 25-009]

Any owner of property included within the Special Improvement District and subject to the assessing and taxing provisions of this article may appeal to the Tax Assessor of the City of Jersey City requesting to be excluded from the District and from any assessment and taxing provisions of this article. This appeal is only as to whether or not a property should be included within the District under the standards set forth in Section 69-3 of this article. It is not an appeal with regard to any taxes. Appeals with regard to taxes should be taken in the usual manner to the Hudson County Board of Taxation or to the Tax Court. This appeal seeking exclusion from the District and any assessment and taxing provisions of this article shall be in writing and specifically detail the factual basis for the appeal. The Assessor shall investigate the matter and conduct an informal hearing or conference within 30 days of receipt of the appeal. Within ten days after the conclusion of the informal hearing or conference, the Assessor shall file a report and recommendation with the Municipal Council. The Municipal Council shall review the matter and act within 30 days upon receipt of the report and recommendation from the Assessor.

§ 69-6. Assessments. [Added 1-15-2025 by Ord. No. 25-009]

A. It is hereby determined that the operation and maintenance of the District may involve annual costs relating to services peculiar to the District, as distinguished from operation and maintenance services normally provided by the City outside of the District. Those annual costs shall be assessed or taxed to the benefited properties or businesses pursuant to this article and N.J.S.A. 40:56-65 et seq.

B. Each year after the Council shall have acted on the estimated costs and/or on the budget of the District, the Assessor shall prepare an assessment roll setting forth separately the amounts to be specially assessed against the benefited and assessable properties in the District. Descriptions of such properties and the names of the then current owners of such properties, so far as names are available, shall be included in each annual assessment roll. The assessment roll, when so prepared, shall be filed in the Office of the City Clerk and be there available for inspection. The Council shall annually meet to consider objections to the amounts of such special assessments at least ten days after a notice of hearing has been published once in the official newspaper and mailed to the named owners of all tracts, parcels and lots of property proposed to be assessed. The notice shall set forth the time and place of meeting, and set forth the purpose of such meeting, but may refer to the assessment roll for further particulars. When the Council shall have approved the amounts of the special assessments set forth therein or as may be changed by it, the City Clerk shall forthwith certify a copy of the assessment roll with such changes, if any, to the Hudson County Tax Board.

§ 69-7. Designation of District Management Corporation. [Added 1-15-2025 by Ord. No. 25-009]

The nonprofit corporation, the Central Avenue Special Improvement District Management Corporation, is hereby designated as the District Management Corporation for the District. This corporation shall conduct its business in accordance with the Open Public Meetings Law. It shall file copies of its minutes of its meetings with the City Clerk, so as to be available for public inspection. This Management Corporation, in addition to acting as an Advisory Board to the Mayor and Council, shall have all powers necessary and requisite to effectuate the purposes of this article and the District. In order to receive any funds or exercise any of the powers granted herein, the Board of Trustees of the Central Avenue Special Improvement District Management Corporation must include as members, the Mayor or his designee and a Member of the City Council as appointed by the Council. The Mayoral and Council members shall serve at the pleasure of, respectively, the Mayor and the Council.

§ 69-8. Powers of District Management Corporation. [Added 1-15-2025 by Ord. No. 25-009]

The Central Avenue Special Improvement District Management Corporation may:

A. Adopt by-laws for the regulation of its affairs and the conduct of its business and to prescribe rules, regulations and policies in connection with the performance of its functions and duties.

B. Employ such persons as may be required and fix and pay their compensation from funds available to the Corporation.

C. Apply for, accept, administer and comply with the requirements respecting an appropriation of funds or a gift, grant or donation of property or money.

D. Make and execute agreements which may be necessary or convenient to the exercise of the powers and functions of the Corporation, including contracts with a person, firm, corporation, governmental agency or other entity.

E. Administer and manage its own funds and accounts and pay its own obligations.

F. Borrow money from private lenders for periods not to exceed 180 days and from governmental entities for that or longer periods.

G. Fund the improvement for the exterior appearance of properties in the District through grants or loans.

H. Fund the rehabilitation of properties in the District.

I. Accept, lease or manage property in the District.

J. Enforce the conditions of any loan, grant, sale or lease made by the Corporation.

K. Provide security, sanitation and other services to the District, supplemental to those provided normally by the municipality.

L. Undertake improvements designated to increase the safety or attractiveness of the district to businesses which may wish to locate there or to visitors to the District including, but not limited to, litter cleanup and control, landscaping, parking areas and facilities, recreational and rest areas and facilities, pursuant to pertinent regulations of the City of Jersey City.

M. Publicize the District and the businesses included within the District boundaries.

N. Recruit new businesses to fill vacancies in and to balance the business mix of the District.

O. Organize special business related events in the District.

P. Provide special parking arrangements for the District for customers of businesses within the District.

Q. Provide temporary decorative lighting in the District to attract customers to businesses in the District.

R. Advise the Municipal Council in connection with the acquisition and construction of improvements in the Special Improvement District, the making of a plan therefore and the operation and maintenance thereof, and to meet and furnish recommendations or comments and requests of members of the public and of owners and occupants of property included within the Special Improvement District.

§ 69-9. By-laws. [Added 1-15-2025 by Ord. No. 25-009]

The Central Avenue Special Improvement District Management Corporation shall file with the City Clerk a certified copy of the adopted by-laws of the Corporation, which by-laws shall be in substantial conformity with the draft by-laws filed with the Clerk prior to the adoption of this article. The Central Avenue Special Improvement District Management Corporation shall have the right to amend these by-laws from time to time as its members so decide, provided that a certified copy of the adopted amendments shall be filed with the City Clerk no later than 14 days prior to the date they are to become effective.

§ 69-10. Municipal powers retained. [Added 1-15-2025 by Ord. No. 25-009]

A. Notwithstanding the creation of a Special Improvement District, the City of Jersey City expressly retains all its powers and authority over the area designated as within the Special Improvement District.

B. Nothing contained herein shall be interpreted or construed to be a vacation, in whole or in part, of any municipal street or part thereof.

C. The District Management Corporation shall not make or enter into any contracts for the improvement of any publicly owned or operated facility or property within the Special Improvement District nor adopt any regulations relating to public property in such District.

D. The District Management Corporation shall comply with all applicable ordinances or regulations of the City.

§ 69-11. Annual budget. [Added 1-15-2025 by Ord. No. 25-009]

A. The fiscal year of the District shall be July 1—June 30.

B. The District Management Corporation shall submit a detailed annual budget for the upcoming calendar year no later than April 1, to the Mayor and Municipal Council.

C. The budget shall be submitted with a report which explains how the budget contributes to goals and objectives for the Special Improvement District. The budget shall be reasonably itemized and shall include a summary of the categories of cost properly chargeable as follows:

1. The amount of such costs to be charged against the general funds of the municipality, if any.

2. The amount of costs to be charged and assessed against properties benefited in the District in proportion to benefits which shall be the aggregate of costs of annual improvements to be made in the District during the ensuing year.

3. The amount of costs, if any, to be specially taxed against properties in the District.

D. The budget shall be introduced, approved, amended and adopted by resolution passed by not less than a majority of the full membership of the Municipal Council.

The procedure shall be as follows:

1. Introduction and approval;

2. Public advertising;

3. Public hearing;

4. Amendments and public hearings, if required;

5. Adoption.

E. The budget shall be introduced, in writing, at a meeting of the Municipal Council. Approval thereof shall constitute a first reading, which may be by title.

Upon the approval of the budget by the Municipal Council, it shall fix the time and place for the holding of a hearing upon the budget.

F. The budget shall be advertised after approval. The advertisement shall contain a copy of the budget and shall set forth the date, the time and place of the hearing. It shall be published at least ten days prior to the date fixed therefore in the official newspaper of the City.

G. No budget shall be adopted until a public hearing has been held thereon and all persons having an interest therein shall have been given an opportunity to present objections.

The hearing shall be held not less than 28 days after the approval of the budget.

H. The public hearing shall be held at the time and place specified in the advertisement thereof, but may be adjourned from time to time until the hearing is closed.

I. The budget, as advertised, shall be read at the public hearing in full or it may be read by its title, if:

1. At least one week prior to the date of the hearing, a complete copy of the approved budget as advertised:

a. Shall be posted in City of Jersey City, City Clerk's Office.

b. Is made available to each person requesting the same during that week and during the public hearing.

2. The Municipal Council shall, by Resolution passed by not less than a majority of the full membership, determine that the budget shall be read by its title and declare that the conditions set forth in subsection I.1 have been met.

J. The Municipal Council may amend the budget during or after the public hearing.

No amendment by the Municipal Council shall be effective until taxpayers and all persons having an interest therein shall have been granted a public hearing thereon, if the amendment shall:

1. Add a new item in an amount in excess of 1% of the total amount as stated in the approved budget;

2. Increase or decrease any item by more than 10%; or

3. Increase the amount to be raised pursuant to Section 16 of P.O. 1972, c. 134 (C.40:56-80) or Section 19 of this amendatory and supplementary act by more than 5%, unless the same is made pursuant to an emergency temporary appropriation only.

Notice of hearing on an amendment shall be advertised at least three days before the date set therefore. The amendment shall be published in full in the same manner as an original publication and shall be read in full at the hearing and before adoption.

K. Final adoption shall be by resolution, adopted by a majority of the full membership of the Municipal Council, and may be by title.

§ 69-12. Fiscal requirements; annual report; audit. [Added 1-15-2025 by Ord. No. 25-009]

A. 1. Funds appropriated and collected for the annual costs of operating and maintaining a Special Improvement District, shall be credited to a special account. The Mayor and Municipal Council may incur the annual costs of improving, operating and maintaining a Special Improvement District, during any fiscal year, though not specifically provided for by line item or other category in an approved estimate for such fiscal year, if in their sole discretion it shall be deemed necessary to provide for such annual improvements or operation or maintenance prior to the succeeding fiscal year and so long as the total amount of the account as approved for that year is not exceeded by that expenditure. Any balances to the credit of the account and remaining unexpended at the end of the fiscal year shall be conserved and applied towards the financial requirements of the succeeding year.

2. The Mayor and Municipal Council may retain a portion of the collected special assessment proceeds to offset the direct costs incurred in the required assessment and budget processes.

3. The Mayor and Municipal Council shall pay over funds to the Management Corporation quarterly on the first day of March, June, September and December of each year. The City shall not be obligated to pay over any funds not actually received by the City.

B. The District Management Corporation shall cause an annual audit of its books, accounts and financial transactions to be made and filed with the Mayor and Municipal Council and for that purpose the Corporation shall employ a certified public accountant of New Jersey. The annual audit

shall be completed and filed with the Municipal Council within four months after the close of the fiscal year of the Corporation, and a certified duplicate copy of the audit shall be filed with the Director of the Division of Local Government Services in the Department of Community Affairs within five days of the filing of the audit with the Mayor and Council.

C. The District Management Corporation shall, within 30 days after the close of each fiscal year, make an annual report of its activities for the preceding fiscal year to the Mayor and Municipal Council.

§ 69-13. No limitations of powers; amendments. [Added 1-15-2025 by Ord. No. 25-009]

Nothing contained herein shall prevent the Council at any time subsequent to the adoption of this article by ordinance, from abandoning the operation of the Special Improvement District, changing the extent of the Special Improvement District, supplementing or amending the description of the District to be specially assessed or taxed for annual costs of the Special Improvement District, changing or repealing any plan, rules, requisitions or limitations adopted for the operation of the Special Improvement District or rescinding the designation of or re-designating a District Management Corporation.

§ 69-14. Implementation. [Added 1-15-2025 by Ord. No. 25-009]

This Special Improvement District shall become operable when the by-laws of the Central Avenue Special Improvement District Management Corporation are adopted by a vote of the eligible participants in the manner provided for in the draft by-laws on file with the City Clerk.

§ 69-15. Severability. [Added 1-15-2025 by Ord. No. 25-009]

If any provision of this article or the application thereof to any person or circumstance is held invalid, such holding shall not affect other provisions or applications of the act and to this end the provisions of this act are severable.

§ 69-16. Effective date. [Added 1-15-2025 by Ord. No. 25-009]

This article shall take effect upon passage and publication as required by law, and adoption of the by-laws of the Central Avenue Special Improvement District Management Corporation.

ARTICLE II

Journal Square Special Improvement District*

§ 69-17. Purpose. [Amended 1-15-2025 by Ord. No. 25-009]

The purposes of this article are to:

A. Promote economic growth and employment within an expanded Journal Square business district;

B. Foster and encourage self-help programs to enhance the local business climate;

***Editor's note**—Adopted April 13, 1994 by Ord. No. 94-024; amended in its entirety December 14, 1994 by Ord. No. 94-105; amended in its entirety September 25, 2002 by Ord. No. 02-109; and renumbered January 15, 2025 by 25-009. Former Art. I—see editor's note, Art. I.

C. Create a self-financing Special Improvement District to assist in meeting local needs, goals and objectives;

D. Designate a District Management Corporation to implement and manage the programs and carry out local needs, goals and objectives;

E. Impose and collect a special assessment on property and parking lots located within the expanded Journal Square District.

§ 69-18. Definitions. [Amended 1-15-2025 by Ord. No. 25-009]

A. "Special improvement district" (also referred to as "district") means that area of Journal Square described by Block and Lot numbers and street addresses as set forth in Schedule A and designated by this article, in which a special assessment on property shall be imposed for the purposes of promoting the economic and general welfare of the district and the City.

B. "District management corporation" means the Journal Square Special Improvement District Management Corporation, (also referred to as "management corporation") an entity incorporated pursuant to Title 15A of the New Jersey Statutes and designated by this Ordinance to receive funds collected by a special assessment within the special improvement district, as authorized by this article and any amendments thereto.

§ 69-19. Findings. [Amended 1-15-2025 by Ord. No. 25-009]

The Council finds and declares that:

A. The Journal Square Special Improvement District area of the City has special needs and requires special services separate and apart from the municipal services already provided to the District by the City.

B. These specific services can best be provided through a private-public partnership implemented by the creation of a Special Improvement District to be managed by a District Management Corporation.

C. The creation of a Special Improvement District and the designation of a District Management Corporation will promote economic growth and employment; foster and encourage business vitality, expansion and self-help; enhance the local business climate and otherwise be in the best interest of the property owners in the District and the City.

D. A District Management Corporation will provide administrative and other services to benefit the businesses, employees, residents and consumers within the Special Improvement District and assist the city in promoting economic growth and employment.

E. A special assessment shall be imposed and collected by the City with the regular property tax payment or payment in lieu of taxes or otherwise, and that all or a portion of these payments shall be transferred to the District Management Corporation to effectuate the purposes of this article and to exercise the powers given to it by this article.

§ 69-20. Creation of district. [Amended 1-15-2025 by Ord. No. 25-009]

A. There is hereby created and designated within the City of Jersey City a Special Improvement District to be known as the Journal Square Special Improvement District consisting of those properties designated by tax Block and Lot and street addresses on Schedule A attached hereto and on file in the Office of the City Clerk. The Special Improvement District shall be subject to special assessments on all affected property within the District which assessment shall be imposed by the City for the purposes of promoting the economic and general welfare of the District and the City.

B. All commercial properties within the Special Improvement District, including all private properties; and tax exempt land which contain improvements subject to property tax, are deemed included in the assessing and taxing provisions of this article and are expressly subject to any fee, tax or assessment made for Special Improvement District purposes.

C. Only those properties within the Special Improvement District that are fully tax-exempt are deemed excluded from the assessing provisions of this article and are expressly exempt from any fee, tax or assessment made for Special Improvement District purposes.

§ 69-21. Appeal of property owner from inclusion in the district. [Amended 1-15-2025 by Ord. No. 25-009]

Any owner of property included within the Special Improvement District and subject to the assessing and taxing provisions of this article may appeal to the Tax Assessor of the City of Jersey City requesting to be excluded from the District and from any assessment and taxing provisions of this article. This appeal is only as to whether or not a property should be included within the District under the standards set forth in Section 69-3 of this article. It is not an appeal with regard to any taxes. Appeals with regard to taxes should be taken in the usual manner to the Hudson County Board of Taxation or to the Tax Court. This appeal seeking exclusion from the District and any assessment and taxing provisions of this article shall be in writing and specifically detail the factual basis for the appeal. The Assessor shall investigate the matter and conduct an informal hearing or conference within 30 days of receipt of the appeal. Within ten days after the conclusion of the informal hearing or conference, the Assessor shall file a report and recommendation with the Municipal Council. The Municipal Council shall review the matter and act within 30 days upon receipt of the report and recommendation from the Assessor.

§ 69-22. Assessments. [Amended 1-15-2025 by Ord. No. 25-009]

A. It is hereby determined that the operation and maintenance of the District may involve annual costs relating to services peculiar to the District, as distinguished from operation and maintenance services normally provided by the City outside of the District. Those annual costs shall be assessed or taxed to the benefited properties or businesses pursuant to this article and N.J.S.A. 40:56-65 et seq.

B. Each year after the Council shall have acted on the estimated costs and/or on the budget of the District, the Assessor shall prepare an assessment roll setting forth separately the amounts to be specially assessed against the benefited and assessable properties in the District. Descriptions of such properties and the names of the then current owners of such properties, so far as names are available, shall be included in each annual assessment roll. The assessment roll, when so prepared, shall be filed

in the Office of the City Clerk and be there available for inspection. The Council shall annually meet to consider objections to the amounts of such special assessments at least ten days after a notice of hearing has been published once in the official newspaper and mailed to the named owners of all tracts, parcels and lots of property proposed to be assessed. The notice shall set forth the time and place of meeting, and set forth the purpose of such meeting, but may refer to the assessment roll for further particulars. When the Council shall have approved the amounts of the special assessments set forth therein or as may be changed by it, the City Clerk shall forthwith certify a copy of the assessment roll with such changes, if any, to the Hudson County Tax Board.

§ 69-23. Designation of District Management Corporation. [Amended 1-15-2025 by Ord. No. 25-009]

The nonprofit corporation, the Journal Square Special Improvement District Management Corporation, is hereby designated as the District Management Corporation for the District. This corporation shall conduct its business in accordance with the Open Public Meetings Law. It shall file copies of its minutes of its meetings with the City Clerk, so as to be available for public inspection. This Management Corporation, in addition to acting as an Advisory Board to the Mayor and Council, shall have all powers necessary and requisite to effectuate the purposes of this article and the District. In order to receive any funds or exercise any of the powers granted herein, the Board of Trustees of the Journal Square Management Corporation must include as members, the Mayor or his designee and a Member of the City Council as appointed by the Council. The Mayoral and Council members shall serve at the pleasure of, respectively, the Mayor and the Council.

§ 69-24. Powers of District Management Corporation. [Amended 1-15-2025 by Ord. No. 25-009]

The Journal Square Management Corporation may:

A. Adopt by-laws for the regulation of its affairs and the conduct of its business and to prescribe rules, regulations and policies in connection with the performance of its functions and duties.

B. Employ such persons as may be required and fix and pay their compensation from funds available to the Corporation.

C. Apply for, accept, administer and comply with the requirements respecting an appropriation of funds or a gift, grant or donation of property or money.

D. Make and execute agreements which may be necessary or convenient to the exercise of the powers and functions of the Corporation, including contracts with a person, firm, corporation, governmental agency or other entity.

E. Administer and manage its own funds and accounts and pay its own obligations.

F. Borrow money from private lenders for periods not to exceed 180 days and from governmental entities for that or longer periods.

G. Fund the improvement for the exterior appearance of properties in the District through grants or loans.

H. Fund the rehabilitation of properties in the District.

I. Accept, lease or manage property in the District.

J. Enforce the conditions of any loan, grant, sale or lease made by the Corporation.

K. Provide security, sanitation and other services to the District, supplemental to those provided normally by the municipality.

L. Undertake improvements designated to increase the safety or attractiveness of the district to businesses which may wish to locate there or to visitors to the District including, but not limited to, litter cleanup and control, landscaping, parking areas and facilities, recreational and rest areas and facilities, pursuant to pertinent regulations of the City of Jersey City.

M. Publicize the District and the businesses included within the District boundaries.

N. Recruit new businesses to fill vacancies in and to balance the business mix of the District.

O. Organize special business related events in the District.

P. Provide special parking arrangements for the District for customers of businesses within the District.

Q. Provide temporary decorative lighting in the District to attract customers to businesses in the District.

R. Advise the Municipal Council in connection with the acquisition and construction of improvements in the Special Improvement District, the making of a plan therefore and the operation and maintenance thereof, and to meet and furnish recommendations or comments and requests of members of the public and of owners and occupants of property included within the Special Improvement District.

§ 69-25. By-laws. [Amended 1-15-2025 by Ord. No. 25-009]

The Journal Square Management Corporation shall file with the City Clerk a certified copy of the adopted by-laws of the Corporation, which by-laws shall be in substantial conformity with the draft by-laws filed with the Clerk prior to the adoption of this article. The Journal Square Management Corporation shall have the right to amend these by-laws from time to time as its members so decide, provided that a certified copy of the adopted amendments shall be filed with the City Clerk no later than 14 days prior to the date they are to become effective.

§ 69-26. Municipal powers retained. [Amended 1-15-2025 by Ord. No. 25-009]

A. Notwithstanding the creation of a Special Improvement District, the City of Jersey City expressly retains all its powers and authority over the area designated as within the Special Improvement District.

B. Nothing contained herein shall be interpreted or construed to be a vacation, in whole or in part, of any municipal street or part thereof.

C. The District Management Corporation shall not make or enter into any contracts for the improvement of any publicly owned or operated facility or property within the Special Improvement District nor adopt any regulations relating to public property in such District.

D. The District Management Corporation shall comply with all applicable ordinances or regulations of the City.

§ 69-27. Annual budget. [Amended 1-15-2025 by Ord. No. 25-009]

A. The fiscal year of the District shall be July 1-June 30.

B. The District Management Corporation shall submit a detailed annual budget for the upcoming calendar year no later than April 1st, to the Mayor and Municipal Council.

C. The budget shall be submitted with a report which explains how the budget contributes to goals and objectives for the Special Improvement District. The budget shall be reasonably itemized and shall include a summary of the categories of cost properly chargeable as follows:

1. The amount of such costs to be charged against the general funds of the municipality, if any.

2. The amount of costs to be charged and assessed against properties benefited in the District in proportion to benefits which shall be the aggregate of costs of annual improvements to be made in the District during the ensuing year.

3. The amount of costs, if any, to be specially taxed against properties in the District.

D. The budget shall be introduced, approved, amended and adopted by resolution passed by not less than a majority of the full membership of the Municipal Council.

The procedure shall be as follows:

1. Introduction and approval;

2. Public advertising;

3. Public hearing;

4. Amendments and public hearings, if required;

5. Adoption.

E. The budget shall be introduced, in writing, at a meeting of the Municipal Council. Approval thereof shall constitute a first reading, which may be by title.

Upon the approval of the budget by the Municipal Council, it shall fix the time and place for the holding of a hearing upon the budget.

F. The budget shall be advertised after approval. The advertisement shall contain a copy of the budget and shall set forth the date, the time and place of the hearing. It shall be published at least ten days prior to the date fixed therefore in the official newspaper of the City.

G. No budget shall be adopted until a public hearing has been held thereon and all persons having an interest therein shall have been given an opportunity to present objections.

The hearing shall be held not less than 28 days after the approval of the budget.

H. The public hearing shall be held at the time and place specified in the advertisement thereof, but may be adjourned from time to time until the hearing is closed.

I. The budget, as advertised, shall be read at the public hearing in full or it may be read by its title, if:

1. At least one week prior to the date of the hearing, a complete copy of the approved budget as advertised:

a. Shall be posted in City of Jersey City, City Clerk's Office.

b. Is made available to each person requesting the same during that week and during the public hearing.

(2) The Municipal Council shall, by Resolution passed by not less than a majority of the full membership, determine that the budget shall be read by its title and declare that the conditions set forth in subsection (I)(1) have been met.

J. The Municipal Council may amend the budget during or after the public hearing.

No amendment by the Municipal Council shall be effective until taxpayers and all persons having an interest therein shall have been granted a public hearing thereon, if the amendment shall:

1. Add a new item in an amount in excess of 1% of the total amount as stated in the approved budget;

2. Increase or decrease any item by more than 10%; or

3. Increase the amount to be raised pursuant to Section 16 of P.O. 1972, c. 134 (C.40:56-80) or Section 19 of this amendatory and supplementary act by more than 5%, unless the same is made pursuant to an emergency temporary appropriation only.

Notice of hearing on an amendment shall be advertised at least three days before the date set therefore. The amendment shall be published in full in the same manner as an original publication and shall be read in full at the hearing and before adoption.

K. Final adoption shall be by resolution, adopted by a majority of the full membership of the Municipal Council, and may be by title.

§ 69-28. Fiscal requirements; annual report; audit. [Amended 1-15-2025 by Ord. No. 25-009]

A. 1. Funds appropriated and collected for the annual costs of operating and maintaining a Special Improvement District, shall be credited to a special account. The Mayor and Municipal Council may incur the annual costs of improving, operating and maintaining a Special Improvement District, during any fiscal year, though not specifically provided for by line item or other category in an approved estimate for such fiscal year, if in their sole discretion it shall be deemed necessary to provide for such annual improvements or operation or maintenance prior to the succeeding fiscal year and so long as the total amount of the account as approved for that year is not exceeded by that expenditure. Any balances to the credit of the account and remaining unexpended at the end of the fiscal year shall be conserved and applied towards the financial requirements of the succeeding year.

2. The Mayor and Municipal Council may retain a portion of the collected special assessment proceeds to offset the direct costs incurred in the required assessment and budget processes.

3. The Mayor and Municipal Council shall pay over funds to the Management Corporation quarterly on the first day of March, June, September and December of each year. The City shall not be obligated to pay over any funds not actually received by the City.

B. The District Management Corporation shall cause an annual audit of its books, accounts and financial transactions to be made and filed with the Mayor and Municipal Council and for that purpose the Corporation shall employ a Certified Public Accountant of New Jersey. The annual audit shall be completed and filed with the Municipal Council within four months after the close of the fiscal year of the Corporation, and a certified duplicate copy of the audit shall be filed with the Director of the Division of Local Government Services in the Department of Community Affairs within five days of the filing of the audit with the Mayor and Council.

C. The District Management Corporation shall, within 30 days after the close of each fiscal year, make an annual report of its activities for the preceding fiscal year to the Mayor and Municipal Council.

§ 69-29. No limitations of powers. [Amended 1-15-2025 by Ord. No. 25-009]

Nothing contained herein shall prevent the Council at any time subsequent to the adoption of this article by ordinance, from abandoning the operation of the Special Improvement District, changing the extent of the Special Improvement District, supplementing or amending the description of the District to be specially assessed or taxed for annual costs of the Special Improvement District, changing or repealing any plan, rules, requisitions or limitations adopted for the operation of the Special Improvement District or rescinding the designation of or re-designating a District Management Corporation.

§ 69-30. Implementation. [Amended 1-15-2025 by Ord. No. 25-009]

This Special Improvement District shall become operable when the by-laws of the Journal Square Management Corporation are adopted by a vote of the eligible participants in the manner provided for in the draft by-laws on file with the City Clerk.

§ 69-31. Severability. [Amended 1-15-2025 by Ord. No. 25-009]

If any provision of this article or the application thereof to any person or circumstance is held invalid, such holding shall not affect other provisions or applications of the act and to this end the provisions of this act are severable.

§ 69-32. Effective date. [Amended 1-15-2025 by Ord. No. 25-009]

This article shall take effect upon passage and publication as required by law, and adoption of the by-laws of the Journal Square Management Corporation but no sooner than July 1, 2003.

ARTICLE III
Historic Downtown Special Improvement District*

§ 69-33. Purpose. [Amended 12-16-2015 by Ord. No. 15-172; 1-15-2025 by Ord. No. 25-009]

The purposes of this article are to:

A. Promote economic growth and employment within the expanded Historic Downtown Business District.

B. Foster and encourage self-help programs to enhance the local business climate.

C. Create a self-financing Special Improvement District to assist in meeting local needs, goals and objectives.

D. Designate a District Management Corporation to implement and manage the programs and carry out local needs, goals and objectives.

E. Impose and collect a special assessment on commercial, industrial and vacant property located within the Historic Downtown District, as expanded.

§ 69-34. Definitions. [Amended 12-16-2015 by Ord. No. 15-172; 1-15-2025 by Ord. No. 25-009]

As used in this article, the following terms shall have the meanings indicated:

DISTRICT MANAGEMENT CORPORATION — The Historic Downtown Special Improvement District Management Corporation, (also referred to as "Management Corporation"), an entity incorporated pursuant to Title 15A of the New Jersey Statutes and designated by this article to receive funds collected by a special assessment within the Special Improvement District, as authorized by this article and any amendments thereto.

SPECIAL IMPROVEMENT DISTRICT (also referred to as "DISTRICT") — That area of Historic Downtown described by block and lot numbers and street addresses as set forth in Schedule A† and designated by this article in which a special assessment on property shall be imposed for the purposes of promoting the economic and general welfare of the district and city.

§ 69-35. Legislative findings. [Amended 1-15-2025 by Ord. No. 25-009]

***Editor's note—**Adopted April 9, 1997 by Ord. No. 97-021; amended July 16, 2003 by Ord. No. 03-096; §§ 69-20—69-35 renumbered as 69-33—69-48 January 15, 2025 by Ord. No. 25-009.

†Editor's note—Schedule A is on file and available for examination in the office of the City Clerk. Schedule A has been amended to include Block 11108, Lot 39, a/k/a 322 Second Street on March 28, 2018 by Ord. No. 18-024, and to include sections of Marin Boulevard, Monmouth Street, Brunswick Street, 4th Street, and Newark Avenue on May 8, 2024 by Ord. No. 24-025.

The Council finds and declares that:

A. The Historic Downtown Special Improvement District area of the City has special needs and requires special services separate and apart from the municipal services already provided to the district by the city.

B. These specific services can best be provided through a private-public partnership implemented by the creation of a Special Improvement District to be managed by a District Management Corporation.

C. The creation of a Special Improvement District and the designation of a District Management Corporation will promote economic growth and employment; foster and encourage economic vitality, expansion and self-help; enhance the local business climate; and otherwise be in the best interest of the property owners and business owners in the district and the city.

D. A District Management Corporation will provide administrative and other services to benefit the businesses, employees, residents and consumers within the Special Improvement District and assist the city in promoting economic growth and employment.

E. A special assessment shall be imposed and collected by the city with the regular property tax payment or payment in lieu of taxes or otherwise, and that all or a portion of these payments shall be transferred to the District Management Corporation to effectuate the purposes of this article and to exercise the powers given to it by this article.

§ 69-36. District created; applicability. [Amended 1-15-2025 by Ord. No. 25-009]

A. There is hereby created and designated within the City of Jersey City a Special Improvement District to be known as the "Historic Downtown Special Improvement District," consisting of those properties designated by tax block and lot and street address on Schedule A on file in the office of the City Clerk and as depicted on the map attached hereto dated April 27, 2015, that is available for inspection in the Office of the City Clerk. The Special Improvement District shall be subject to special assessments on all affected property within the district, which assessment shall be imposed by the city for the purposes of promoting the economic and general welfare of the district and the city. **[Amended 12-16-2015 by Ord. No. 15-172]**

B. All commercial, industrial and vacant properties within the Special Improvement District, including all private, nonresidential properties and properties subject to payment in lieu of taxes; the nonresidential portions of properties containing more than one use and tax-exempt land; and tax-exempt land which contains improvements subject to property tax are deemed included in the assessing and taxing provisions of this article and are expressly subject to any fee, tax or assessment made for Special Improvement District purposes.

C. Only those properties within the Special Improvement District that are fully tax-exempt or used exclusively for residential purposes and those portions of mixed-used properties that are residential are deemed excluded from the assessing provisions of this article and are expressly exempt from any fee, tax or assessment made for Special Improvement District purposes.

§ 69-37. Appeals from inclusion. [Amended 1-15-2025 by Ord. No. 25-009]

Any owner of property included within the Special Improvement District and subject to the assessing and taxing provisions of this article, may appeal to the Tax Assessor of the City of Jersey City requesting to be excluded from the district and from any assessment and taxing provisions of this article. This appeal is only as to whether or not a property should be included within the district under the standards set forth in § 69-22 of this article. It is not an appeal with regard to any taxes. Appeals with regard to taxes should be taken in the usual manner to the Hudson County Board of Taxation or to the Tax Court. This appeal seeking exclusion from the district and any assessment and taxing provisions of this article shall be in writing and specifically detail the factual basis for the appeal. The Assessor shall investigate the matter and conduct an informal hearing or conference within 30 days of receipt of the appeal. With 10 days after the conclusion of the informal hearing or conference, the Assessor shall file a report and recommendation with the Municipal Council. The Municipal Council shall review the matter and act within 30 days upon receipt of the report and recommendation from the Assessor.

§ 69-38. Assessments. [Amended 1-15-2025 by Ord. No. 25-009]

A. It is hereby determined that the operation and maintenance of the district may involve costs relating to services peculiar to the districts, as distinguished from operation and maintenance services normally provided by the city outside of the district. Those annual costs shall be assessed or taxed to the benefited properties or businesses pursuant to this article and N.J.S.A. 40:56-65 et seq. The properties to be assessed or taxed to provide for the payment of such annual costs are described in assessment lists on file in the office of the City Clerk.

B. Each year after the Council shall have acted on the estimated costs and/or on the budget of the district, the Assessor shall prepare an assessment roll setting forth separately the amounts to be specifically assessed against benefited and assessable properties in the district. Descriptions of such properties and the names of the then-current owners of such properties, so far as names are available, shall be included in each annual assessment roll. The assessment roll, when so prepared, shall be filed in the office of the City Clerk and be there available for inspection. The Council shall annually meet to consider objections to the amounts of such special assessments at least 10 days after a notice of hearing has been published once in the official newspaper and mailed to the named owners of all tracts, parcels and lots of property proposed to be assessed. The notice shall set forth the time and place of meeting and set forth the purpose of such meeting, but may refer to the assessment roll for further particulars. When the Council shall have approved the amounts of the special assessments set forth therein, or as may be changed by it, the City Clerk shall forthwith certify a copy of the assessment roll with such changes, if any, to the Hudson County Tax Board.

§ 69-39. District Management Corporation designated. [Amended 1-15-2025 by Ord. No. 25-009]

The nonprofit corporation, the Historic Downtown Management Corporation, is hereby designated as a District Management Corporation for the district. This corporation shall conduct its business in accordance with the Open Public Meetings Law.* It shall file copies of its minutes of its meetings with the City Clerk, so as to be available for public inspection. This Management Corporation, in addition to acting as

***Editor's Note: See N.J.S.A. 10:4-6 et seq.**

an Advisory Board to the Mayor and the Council, shall have all powers necessary and requisite to effectuate the purposes of this article and the district. In order to receive any funds or exercise any of the powers granted herein, the Board of Trustees of the Historic Downtown Management Corporation must include as members the Mayor or his designee and a member of the City Council as appointed by the Council. The Mayoral and Council members shall serve at the pleasure of the Mayor and Council.

§ 69-40. Powers of District Management Corporation. [Amended 1-15-2025 by Ord. No. 25-009]

The Historic Downtown Management Corporation may:

A. Adopt bylaws for the regulation of its affairs and the conduct of its business and to prescribe rules, regulations and policies in connection with the performance of its functions and duties.

B. Employ such persons as may be required and fix and pay their compensation from funds available to the corporation.

C. Apply for, accept, administer and comply with the requirements respecting an appropriation of funds or a gift, grant or donation of property or money.

D. Make and execute agreements which may be necessary or convenient to the exercise of the powers and functions of the corporation, including conflicts with a person, firm, corporation, government agency or other entity.

E. Administer and manage its own funds and accounts and pay its own obligations.

F. Borrow money from private lenders for periods not to exceed 180 days and from government entities for that or longer periods.

G. Fund the improvement for the exterior appearance of properties in the district through grants or loans.

H. Fund the rehabilitation of properties in the district.

I. Accept, lease or manage property in the district.

J. Enforce the conditions of any loan, grant, sale or lease made by the corporation.

K. Provide security, sanitation and other services to the district, supplemental to those provided normally by the municipality.

L. Undertake improvements designated to increase the safety or attractiveness of the district to businesses which may wish to locate there or to visitors to the district, including, but not limited to, litter cleanup and control, landscaping, parking areas and facilities, recreational and rest areas and facilities, pursuant to pertinent regulations of the City of Jersey City.

M. Publicize the district and the businesses included within the district boundaries.

N. Recruit new businesses to fill vacancies in and to balance the business mix of the district.

O. Organize special events in the district.

P. Provide special parking arrangements for the district.

Q. Provide temporary decorative lighting in the district.

R. Advise the Municipal Council in connection with the acquisition and construction of improvements in the Special Improvement District, the making of a plan therefore and the operation and maintenance thereof and to meet and furnish recommendations or comments and requests of members of the public and owners and occupants of property included in the Special Improvement District.

§ 69-41. Bylaws. [Amended 1-15-2025 by Ord. No. 25-009]

The Historic Downtown Management Corporation shall file with the City Clerk a certified copy of the adopted bylaws of the corporation, which bylaws shall be in substantial conformity with the draft bylaws filed with the Clerk prior to the adoption of this article. The Historic Downtown Management Corporation shall have the right to amend these bylaws from time to time as its members so decide, provided that a certified copy of the adopted amendments shall be filed with the City Clerk no later than 14 days prior to the date they are to become effective.

§ 69-42. Municipal powers retained. [Amended 1-15-2025 by Ord. No. 25-009]

A. Notwithstanding the creation of a Special Improvement District, the City of Jersey City expressly retains all its powers and authority over the area designated as within the Special Improvement District.

B. Nothing contained herein shall be interpreted or construed to be a vacation, in whole or in part, of any municipal street or part thereof.

C. The District Management Corporation shall not make or enter into any contracts for the improvement of any publicly owned or operated facility or property within the Special Improvement District nor adopt any regulations relating to public property in such district.

D. The District Management Corporation shall comply with all applicable ordinances or regulations of the city.

§ 69-43. Fiscal year; annual budget. [Amended 1-15-2025 by Ord. No. 25-009]

A. The fiscal year of the district shall be July 1 through June 30.

B. The District Management Corporation shall submit a detailed annual budget for the upcoming calendar year no later than April 1 to the Mayor and Municipal Council. **[Amended 12-16-2015 by Ord. No. 15-172]**

C. The budget shall be submitted with a report which explains how the budget contributes to the goals and objectives for the Special Improvement District. The budget shall be reasonably itemized and shall include a summary of the categories of costs properly chargeable as follows:

(1) The amount of such costs to be charged against general funds of the municipality, if any.

(2) The amount of costs to be charged and assessed against properties benefited in the district in proportion to benefits which shall be the aggregate costs of annual improvements to be made in the district during the ensuing year.

(3) The amount of costs, if any, to be specially taxed against properties in the district.

D. The budget shall be introduced, approved, amended and adopted by resolution passed by not less than a majority of the full membership of the Municipal Council. The procedure shall be as follows:

(1) Introduction and approval.

(2) Public advertising.

(3) Public hearing.

(4) Amendments and public hearings, if required.

(5) Adoption.

E. The budget shall be introduced, in writing, at a meeting of the Municipal Council. Approval thereof shall constitute a first reading, which may be by title.

§ 69-44. Fiscal requirements; annual report; audit. [Amended 1-15-2025 by Ord. No. 25-009]

A. Funds appropriated and collected for the annual costs of operating and maintaining a Special Improvement District shall be credited to a special account. The Mayor and City Council may incur the annual costs of improving, operating and maintaining a Special Improvement District during any fiscal year, though not specifically provided for by line item or other category in an approved estimate for such fiscal year, if in their sole discretion it shall be deemed necessary to provide for such annual improvements or operation or maintenance prior to the succeeding fiscal year, so long as the total amount of the account as approved for that year is not exceeded by the expenditure. Any balances to the credit of the account and remaining unexpended at the end of the fiscal year shall be conserved and applied towards the financial requirements of the succeeding year.

B. The Mayor and Municipal Council may retain a portion of the collected special assessment proceeds to offset the direct costs incurred in the required assessment and budget processes.

C. The Mayor and Municipal Council shall pay over funds to the Management Corporation quarterly on the first day of March, June, September and December of each year. The city shall not be obligated to pay over any funds not actually received by the city.

D. The District Management Corporation shall, within 30 days after the close of each fiscal year, make an annual report of its activities for the preceding fiscal year to the Mayor and Municipal Council.

§ 69-45. Amendments. [Amended 1-15-2025 by Ord. No. 25-009]

Nothing contained herein shall prevent the Council at any time subsequent to the adoption of this article, by ordinance, from abandoning the operation of the Special Improvement District, changing the extent of the Special Improvement District, supplementing or amending the description of the district to be specifically assessed or taxed for annual costs of the Special Improvement District or rescinding the designation of or redesignating a District Management Corporation.

§ 69-46. Implementation. [Amended 12-16-2015 by Ord. No. 15-172; 1-15-2025 by Ord. No. 25-009]

This Special Improvement District shall become operable when the bylaws of the Expanded Historic Downtown Management Corporation are adopted by a vote of the eligible participants in the manner provided for in the draft bylaws on file with the City Clerk.

§ 69-47. Severability. [Amended 1-15-2025 by Ord. No. 25-009]

If any provision of this article or the application thereof to any person or circumstance is held invalid, such holding shall not affect other provisions or applications of the act and to this end the provisions of this act are severable.

§ 69-48. When effective. [Amended 7-16-2003 by Ord. No. 03-096; 12-16-2015 by Ord. No. 15-172; 1-15-2025 by Ord. No. 25-009]

This article shall take effect upon passage and publication as required by law nunc pro tunc July 1, 2003 and adoption of the bylaws of the Expanded Historic Downtown Management Corporation.

ARTICLE IV
McGinley Square Special Improvement District*

§ 69-49. Purpose. [Amended 1-15-2025 by Ord. No. 25-009]

The purposes of this article are to:

A. Promote economic growth and employment within the McGinley Square Business District.

B. Foster and encourage self-help programs to enhance the local business climate.

C. Create a self-financing Special Improvement District to assist in meeting local needs, goals and objectives.

D. Designate a District Management Corporation to implement and manage the programs and carry out local needs, goals and objectives.

***Editor's note**—Adopted April 9, 1997 by Ord. No. 97-022; §§ 69-36—69-51.1 renumbered as 69-49—69-64.1 January 15, 2025 by Ord. No. 25-009.

E. Impose and collect a special assessment on commercial, industrial and vacant property located within the McGinley Square District.

§ 69-50. Definitions. [Amended 1-15-2025 by Ord. No. 25-009]

As used in this article, the following terms shall have the meanings indicated:

DISTRICT MANAGEMENT CORPORATION — The McGinley Square Special Improvement District Management Corporation, (also referred to as "Management Corporation"), an entity incorporated pursuant to Title 15A of the New Jersey Statutes and designated by this article to receive funds collected by a special assessment within the Special Improvement District, as authorized by this article and any amendments thereto.

SPECIAL IMPROVEMENT DISTRICT (also referred to as "DISTRICT") — That area of McGinley Square described by block and lot numbers and street addresses as set forth in Schedule A* and designated by this article, in which a special assessment on property shall be imposed for the purposes of promoting the economic and general welfare of the district and city.

§ 69-51. Legislative findings. [Amended 1-15-2025 by Ord. No. 25-009]

The Council finds and declares that:

A. The McGinley Square Special Improvement District area of the city has special needs and requires special services separate and apart from the municipal services already provided to the district by the city.

B. These specific services can best be provided through a private-public partnership implemented by the creation of a Special Improvement District to be managed by a District Management Corporation.

C. The creation of a Special Improvement District and the designation of a District Management Corporation will promote economic growth and employment; foster and encourage economic vitality, expansion and self-help; enhance the local business climate, and otherwise be in the best interest of the property owners and business owners in the district and the city.

D. A District Management Corporation will provide administrative and other services to benefit the businesses, employees, residents and consumers within the Special Improvement District and assist the city in promoting economic growth and employment.

E. A special assessment shall be imposed and collected by the city with the regular property tax payment or payment in lieu of taxes or otherwise, and that all or a portion of these payments shall be transferred to the District Management Corporation to effectuate the purposes of this article and to exercise the powers given to it by this article.

§ 69-52. District created; applicability. [Amended 1-15-2025 by Ord. No. 25-009]

***Editor's Note: Schedule A is on file and available for examination in the office of the City Clerk.**

A. There is hereby created and designated within the City of Jersey City a Special Improvement District to be known as the "McGinley Square Special Improvement District," consisting of those properties designated by tax block and lot and street address on Schedule A on file in the office of the City Clerk. The Special Improvement District shall be subject to special assessments on all affected property within the district, which assessment shall be imposed by the city for the purposes of promoting the economic and general welfare of the district and the city.

B. All commercial, industrial and vacant properties within the Special Improvement District, including all private, nonresidential properties; the nonresidential portions of properties containing more than one use and tax-exempt land; and tax-exempt land which contain improvements subject to property tax are deemed included in the assessing and taxing provisions of this article and are expressly subject to any fee, tax or assessment made for Special Improvement District purposes.

C. Only those properties within the Special Improvement District that are fully tax-exempt or used exclusively for residential purposes and those portions of mixed-used properties that are residential are deemed excluded from the assessing provisions of this article and are expressly exempt from any fee, tax or assessment made for Special Improvement District purposes.

§ 69-53. Appeals from inclusion. [Amended 1-15-2025 by Ord. No. 25-009]

Any owner of property included within the Special Improvement District and subject to the assessing and taxing provisions of this article, may appeal to the Tax Assessor of the City of Jersey City requesting to be excluded from the district and from any assessment and taxing provisions of this article. This appeal is only as to whether or not a property should be included within the district under the standards set forth in § 69-38 of this article. It is not an appeal with regard to any taxes. Appeals with regard to taxes should be taken in the usual manner to the Hudson County Board of Taxation or to the Tax Court. This appeal seeking exclusion from the district and any assessment and taxing provisions of this article shall be in writing and specifically detail the factual basis for the appeal. The Assessor shall investigate the matter and conduct an informal hearing or conference within 30 days of receipt of the appeal. With 10 days after the conclusion of the informal hearing or conference, the Assessor shall file a report and recommendation with the Municipal Council. The Municipal Council shall review the matter and act within 30 days upon receipt of the report and recommendation from the Assessor.

§ 69-54. Assessments. [Amended 1-15-2025 by Ord. No. 25-009]

A. It is hereby determined that the operation and maintenance of the district may involve costs relating to services peculiar to the districts, as distinguished from operation and maintenance services normally provided by the city outside of the district. Those annual costs shall be assessed or taxed to the benefited properties or businesses pursuant to this article and N.J.S.A. 40:56-65 et seq. The properties to be assessed or taxed to provide for the payment of such annual costs are described in assessment lists on file in the office of the City Clerk.

B. Each year after the Council shall have acted on the estimated costs and/or on the budget of the district, the Assessor shall prepare an assessment roll setting forth separately the amounts to be specifically assessed against benefited and assessable properties in the district. Descriptions of such properties and the names of the then-current owners of such properties, so far as names are available, shall be

included in each annual assessment roll. The assessment roll, when so prepared, shall be filed in the office of the City Clerk and be there available for inspection. The Council shall annually meet to consider objections to the amounts of such special assessments at least 10 days after a notice of hearing has been published once in the official newspaper and mailed to the named owners of all tracts, parcels and lots of property proposed to be assessed. The notice shall set forth the time and place of meeting and set forth the purpose of such meeting, but may refer to the assessment roll for further particulars. When the Council shall have approved the amounts of the special assessments set forth therein, or as may be changed by it, the City Clerk shall forthwith certify a copy of the assessment roll with such changes, if any, to the Hudson County Tax Board.

§ 69-55. District Management Corporation designated. [Amended 1-15-2025 by Ord. No. 25-009]

The nonprofit corporation, the McGinley Square Management Corporation, is hereby designated as a District Management Corporation for the district. This corporation shall conduct its business in accordance with the Open Public Meetings Law.* It shall file copies of its minutes of its meetings with the City Clerk, so as to be available for public inspection. This Management Corporation, in addition to acting as an Advisory Board to the Mayor and the Council, shall have all powers necessary and requisite to effectuate the purposes of this article and the district. In order to receive any funds or exercise any of the powers granted herein, the Board of Trustees of the McGinley Square Management Corporation must include as members the Mayor or his designee and a Member of the City Council as appointed by the Council. The Mayoral and Council members shall serve at the pleasure of the Mayor and Council.

§ 69-56. Powers of District Management Corporation. [Amended 1-15-2025 by Ord. No. 25-009]

The McGinley Square Management Corporation may:

A. Adopt bylaws for the regulation of its affairs and the conduct of its business and to prescribe rules, regulations and policies in connection with the performance of its functions and duties.

B. Employ such persons as may be required and fix and pay their compensation from funds available to the corporation.

C. Apply for, accept, administer and comply with the requirements respecting an appropriation of funds or a gift, grant or donation of property or money.

D. Make and execute agreements which may be necessary or convenient to the exercise of the powers and functions of the corporation, including contracts with a person, firm, corporation, government agency or other entity.

E. Administer and manage its own funds and accounts and pay its own obligations.

F. Borrow money from private lenders for periods not to exceed 180 days and from government entities for that or longer periods.

G. Fund the improvement for the exterior appearance of properties in the district through grants or loans.

***Editor's note**—See N.J.S.A. 10:4-6 et seq.

H. Fund the rehabilitation of properties in the district.

I. Accept, lease or manage property in the district.

J. Enforce the conditions of any loan, grant, sale or lease made by the corporation.

K. Provide security, sanitation and other services to the district, supplemental to those provided normally by the municipality.

L. Undertake improvements designated to increase the safety or attractiveness of the district to businesses which may wish to locate there or to visitors to the district, including but not limited to litter cleanup and control, landscaping, parking areas and facilities, recreational and rest areas and facilities, pursuant to pertinent regulations of the City of Jersey City.

M. Publicize the district and the businesses included within the district boundaries.

N. Recruit new businesses to fill vacancies in and to balance the business mix of the district.

O. Organize special events in the district.

P. Provide special parking arrangements for the district.

Q. Provide temporary decorative lighting in the district.

R. Advise the Municipal Council in connection with the acquisition and construction of improvements in the Special Improvement District, the making of a plan therefore and the operation and maintenance thereof and to meet and furnish recommendations or comments and requests of members of the public and owners and occupants of property included in the Special Improvement District.

§ 69-57. Bylaws. [Amended 1-15-2025 by Ord. No. 25-009]

The McGinley Square Management Corporation shall file with the City Clerk a certified copy of the adopted bylaws of the corporation, which bylaws shall be in substantial conformity with the draft bylaws filed with the Clerk prior to the adoption of this article. The McGinley Square Management Corporation shall have the right to amend these bylaws from time to time as its members so decide, provided that a certified copy of the adopted amendments shall be filed with the City Clerk no later than 14 days prior to the date they are to become effective.

§ 69-58. Municipal powers retained. [Amended 1-15-2025 by Ord. No. 25-009]

A. Notwithstanding the creation of a Special Improvement District, the City of Jersey City expressly retains all its powers and authority over the area designated as within the Special Improvement District.

B. Nothing contained herein shall be interpreted or construed to be a vacation, in whole or in part, of any municipal street or part thereof.

C. The District Management Corporation shall not make or enter into any contract for the improvement of any publicly owned or operated facility or property within the Special Improvement District nor adopt any regulations relating to public property in such district.

D. The District Management Corporation shall comply with all applicable ordinances or regulations of the city.

§ 69-59. Fiscal year; annual budget. [Amended 1-15-2025 by Ord. No. 25-009]

A. The fiscal year of the district shall be July 1 through June 30.

B. The District Management Corporation shall submit a detailed annual budget for the upcoming calendar year by April 1 to the Mayor and Municipal Council.

C. The budget shall be submitted with a report which explains how the budget contributes to the goals and objectives for the Special Improvement District. The budget shall be reasonably itemized and shall include a summary of the categories of costs properly chargeable as follows:

(1) The amount of such costs to be charged against general funds of the municipality, if any.

(2) The amount of costs to be charged and assessed against properties benefited in the district in proportion to benefits which shall be the aggregate costs of annual improvements to be made in the district during the ensuing year.

(3) The amount of costs, if any, to be specially taxed against properties in the district.

D. The budget shall be introduced, approved, amended and adopted by resolution passed by not less than a majority of the full membership of the Municipal Council. The procedure shall be as follows:

(1) Introduction and approval.

(2) Public advertising.

(3) Public hearing.

(4) Amendments and public hearings, if required.

(5) Adoption.

E. The budget shall be introduced, in writing, at a meeting of the Municipal Council. Approval thereof shall constitute a first reading, which may be by title.

§ 69-60. Fiscal requirements; annual report. [Amended 1-15-2025 by Ord. No. 25-009]

A. Funds appropriated and collected for the annual costs of operating and maintaining a Special Improvement District shall be credited to a special account. The Mayor and City Council may incur the annual costs of improving, operating and maintaining a Special Improvement District during any fiscal year, though not specifically provided for by line item or other category in an approved estimate

for such fiscal year, if in their sole discretion it shall be deemed necessary to provide for such annual improvements or operation or maintenance prior to the succeeding fiscal year, so long as the total amount of the account as approved for that year is not exceeded by the expenditure. Any balances to the credit of the account and remaining unexpended at the end of the fiscal year shall be conserved and applied towards the financial requirements of the succeeding year.

B. The Mayor and Municipal Council may retain a portion of the collected special assessment proceeds to offset the direct costs incurred in the required assessment and budget processes.

C. The Mayor and Municipal Council shall pay over funds to the Management Corporation quarterly on the first day of March, June, September and December of each year. The city shall not be obligated to pay over any funds not actually received by the city.

D. The District Management Corporation shall, within 30 days after the close of each fiscal year, make an annual report of its activities for the preceding fiscal year to the Mayor and Municipal Council.

§ 69-61. Amendments. [Amended 1-15-2025 by Ord. No. 25-009]

Nothing contained herein shall prevent the Council at any time subsequent to the adoption of this article, by ordinance, from abandoning the operation of the Special Improvement District, changing the extent of the Special Improvement District, supplementing or amending the description of the district to be specifically assessed or taxed for annual costs of the Special Improvement District or rescinding the designation of or redesignating a District Management Corporation.

§ 69-62. Implementation. [Amended 1-15-2025 by Ord. No. 25-009]

This Special Improvement District shall become operable when the bylaws of the McGinley Square Management Corporation are adopted by a vote of the eligible participants in the manner provided for in the draft bylaws on file with the City Clerk.

§ 69-63. Severability. [Amended 1-15-2025 by Ord. No. 25-009]

If any provision of this article or the application thereof to any person or circumstance is held invalid, such holding shall not affect other provisions or applications of the act and to this end the provisions of this act are severable.

§ 69-64. When effective. [Amended 1-15-2025 by Ord. No. 25-009]

This article shall take effect upon passage and publication as required by law, and adoption of the bylaws of the McGinley Square Management Corporation.

§ 69-64.1. Expansion area. [Amended 1-15-2025 by Ord. No. 25-009]

A. Summit Avenue between Baldwin Avenue/Clifton Place (Miralla Triangle) and Vroom Street (16 4A properties).

B. Montgomery Street between Baldwin Avenue and Florence Street (three properties: two 4A, one 4B).

C. South Side of Bergen Avenue/Fairview Avenue Intersection (two 4A properties).

Total expansion SID tax assessment: 20 4A commercial properties, one 4B industrial properties.

Expansion properties approved by McGinley Square Board of Trustees & Membership, April 7, 2022:

Lot	Block	Class	Street Address	Property Owner's Name	FF
15201	67	4A	197 Summit Ave.	Jarsh Realty, LLC & Hasmukh Amin	29
15201	66	4A	199-201 Summit Ave.	199 Summit Ave, LLC	51.1
15103	23	4A	200 Summit Ave.	Epomonie Investments, Inc.	41.8
13601	5	4A	8 Baldwin Ave.	Cheung, F & Ho, Kit & Green Kaifling, LLC	48
15201	65	4A	203 Summit Ave.	199 Summit Ave, LLC	51.1
15104	8	4A	217 Summit Ave.	Herrera, Alexander Contreras	22.76
15102	9	4A	249 Summit Ave.	DeCresce, Ellis N.	21.9
13502	27	4A	256 Summit Ave.	256 Summit Ave, LLC	20
13503	7	4A	289 Summit Ave.	Salamanca, G & R & J & Maria	28.33
13502	46	4A	292 Summit Ave.	Rubano, Frank	34.04
13501	17	4A	294—296 Summit Ave.	Su, Jae & Hak	41.4
12201	32	4A	299 Summit Ave.	Regal Jaan Corp.	25.14
13501	18	4A	300 Summit Ave.	300 Summit, LLC	25.12
12201	30	4A	305 Summit Ave.	Singh, Devika	23.87
12201	21	4A	323 Summit Ave.	323 Summit Ave, LLC	25.12
12201	20	4A	55 Vroom Ave./325 Summit Ave.	DCR Investments, Inc.	108
12406	25	4B	56 Baldwin Ave.	Baldwin Gardens, Inc.	100
12405	1	4A	580 Montgomery St.	Muslim Federation of NJ	293.55
12406	24	4A	620 Montgomery St.	Baldwin Gardens, Inc.	175
16703	6	4A	662 Bergen Ave.	E & C Assets, Inc.	19.6
16703	7	4A	664 Bergen Ave.	664 Bergen, LLC	30.4

[Added 6-15-2022 by Ord. No. 22-044]

ARTICLE V

Jackson Hill Main Street Special Improvement District*

§ 69-65. Purpose. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

The purposes of this article are to:

A. Promote economic growth and employment within the Monticello/Martin Luther King business district.

B. Foster and encourage self-help programs to enhance the local business climate.

C. Create a self-financing Special Improvement District to assist in meeting local needs, goals and objectives.

***Editor's note—**Ord. No. 11-152, adopted December 14, 2011, amended the Code by including a new Art. III to Ch. 69. In order to avoid duplication of article numbers, and at the direction of the city, the editor has redesignated the provisions of Ord. No. 11-152 as a new Art. V. Subsequently, §§ 69-52—69-67 were renumbered as 69-65—69-80 January 15, 2025 by Ord. No. 25-009.

D. Designate a District Management Corporation to implement and manage the programs and carry out local needs, goals and objectives.

E. Impose and collect a special assessment on commercial, industrial and vacant property located within the Monticello/Martin Luther King business district.

§ 69-66. Definitions. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

A. SPECIAL IMPROVEMENT DISTRICT (also referred to as "District") — that area of Monticello/Martin Luther King Main Street area described by Block and Lot numbers and street addresses as set forth in Schedule A and designated by the ordinance, in which a special assessment on property shall be imposed for the purposes of promoting the economic and general welfare of the District and City.

B. DISTRICT MANAGEMENT CORPORATION — the Jackson Hill Main Street Special Improvement District Management Corporation, (also referred to as "Management Corporation") an entity incorporated pursuant to Title 15A of the New Jersey Statutes and designated by this article to receive funds collected by a special assessment within the Special Improvement District, as authorized by this article and any amendments thereto.

§ 69-67. Legislative findings. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

The Council finds and declares that:

A. The Jackson Hill Main Street Special Improvement District are of the City has special needs and requires special services separate and apart from the municipal services already provided to the District by the City.

B. These specific services can best be provided through a private-public partnership implemented by the creation of a Special Improvement District.

C. The creation of a Special Improvement District and the will promote economic growth and employment; foster and encourage economic vitality, expansion and self-help; enhance the local business climate and otherwise be in the best interest of the property owners and business owners of the District and the City.

D. A District Management Corporation will provide administrative and other services to benefit the businesses, employees, residents and consumers within the Special Improvement District and assist the City in promoting economic growth and employment.

E. A special assessment shall be imposed and collected by the City with the regular property tax payment or payment in lieu of taxes or otherwise, and that all or a portion of these payments shall be transferred to the District Management Corporation to effectuate the purposes of the article and to exercise the powers given to it by this article.

§ 69-68. District created; applicability. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

A. There is hereby created and designated within the City of Jersey City a Special Improvement District to be known as the Jackson Hill Main Street Special Improvement District consisting of those properties designated by tax Block and Lot and street address on Schedule A on file in the office of the City Clerk. The Special Improvement District shall be subject to special assessments on all affected property within the District which assessment shall be imposed by the City for the purposes of promoting the economic and general welfare of the District and the City.

B. All commercial, industrial and vacant properties within the Special Improvement District, including all private, non-residential properties and properties subject to payment in lieu of taxes; the non-residential portions of properties containing more than one use and tax exempt land; and tax exempt land which contain improvements-subject to property tax are deemed included in the assessing and taxing provisions, of this article and are expressly subject to any fee, tax or assessment made for Special Improvement District purposes.

C. Only those properties within the Special Improvement District that are fully tax-exempt or used exclusively for residential purposes and those portions of mixed-use properties that are residential, are deemed excluded from the assessing provisions of this article and are expressly exempt from any fee, tax or assessment made for Special Improvement District purposes.

§ 69-69. Appeals from inclusion. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

Any owner of property included within the Special Improvement District and subject to the assessing and taxing provisions of the article, may appeal to the Tax Assessor of the City of Jersey City requesting to be excluded from the District and from any assessment and taxing provisions of this article. This appeal is only as to whether or not a property should be included within the District under the standards set forth in § 69-54 of the article. It is not an appeal with regard to any taxes. Appeals with regard to taxes should be taken in the usual manner to the Hudson County Board of Taxation or to the Tax Court. This appeal seeking exclusion from the District and any assessment and taxing provisions of this article shall be in writing and specifically detail the factual basis for the appeal. The Assessor shall investigate the matter and conduct and informal hearing or conference within 30 days of receipt of the appeal, with ten days after the conclusion of the informal hearing or conference, the Assessor shall file a report and recommendation with the Municipal Council. The Municipal Council shall review the matter and act within 30 days upon receipt of the report and recommendation from the Assessor.

§ 69-70. Assessments. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

A. It is hereby determined that the operation and maintenance of the District may involve costs relating to services peculiar to the Districts, as distinguished from operation and maintenance services normally provided by the City outside of the District. These annual costs shall be assessed or taxed to the benefitted properties or business pursuant to this article and N.J.S.A. 40:56-65 et seq. The properties to be assessed or taxed to provide for the payment of such annual costs are described in assessment lists on file in the Office of the City Clerk.

B. Each year after the Council shall have acted on the estimated costs and/or on the budget of the District, the Assessor shall prepare an assessment roll setting forth separately the amounts to be

specifically assessed against benefitted and assessable properties in the District. Descriptions of such properties and the names of the then current owners of such properties, so far as names are available, shall be included in each annual assessment role. The assessment rolls, when so prepared, shall be filed in the Office of the City Clerk and be there available for inspection. The Council shall annually meet to consider objections to the amounts of such special assessments at least ten days after a notice of hearing has been published once in the official newspaper and mailed to the named owners of all tracts, parcels and lots of property proposed to be assessed. The notice shall set forth the time and place of meeting, and set forth the purpose of such meeting, but may refer to the assessment roll for further particulars. When the Council shall have approved the amounts of the special assessments set forth therein, or as may be changed by it, the City Clerk shall forthwith certify a copy of the assessment roll with such changes, if any, to the Hudson County Tax Board.

§ 69-71. District Management Corporation designation. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

The non-profit corporation, the Jackson Hill Main Street Management Corporation, is hereby designated as a District Management Corporation for the District. The corporation shall conduct its business in accordance with the Open Public Meetings Law. It shall file copies of its minutes of its meetings with the City Clerk, so as to be available for the public inspection. This Management Corporation, in addition to acting as an Advisory Board to the Mayor and the Council, shall have all powers necessary and requisite to effectuate the purposes of this article and the District. In order to receive any funds or exercise any of the powers granted herein, the Board of Trustees of the Jackson Hill Main Street Management Corporation must include as members, the Mayor or his designee and a Member of the City Council as appointed by the Council. The Mayoral and Council members shall serve at the pleasure of the Mayor and Council.

§ 69-72. Power of District Management Corporation. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

The Jackson Hill Main Street Management Corporation may:

A. Adopt by-laws for the regulation of its affairs and the conduct of its business and to prescribe rules, regulations and policies in connection with the performance of its functions and duties.

B. Employ such persons as may be required, and fix and pay their compensation from funds available to the Corporation.

C. Apply for, accept, administer and comply with the requirements respecting an appropriation of funds or a gift, grant or donation of property or money.

D. Make and execute agreements which may be necessary or convenient to the exercise of the powers and functions of the Corporation, including contracts with a person, firm, corporation, government agency or other entity.

E. Administer and manage its own funds and accounts and pay its own obligations.

F. Borrow money from private lenders for periods not to exceed 180 days and from government entities for that or longer periods.

G. Fund the improvement for the exterior appearance of properties in the District through grants or loans.

H. Fund the rehabilitation of properties in the District.

I. Accept, lease or manage property in the District.

J. Enforce the conditions of any loan, grant, sale or lease made by the Corporation.

K. Provide security, sanitation and other services to the District, supplemental to those provided normally by the municipality.,

L. Undertake improvements designated to increase the safety or attractiveness of the District to businesses which may wish to locate there or to visitors to the District including, but not limited to, litter clean-up, and control, landscaping, parking areas and facilities, recreational and rest areas and facilities, pursuant to pertinent regulations of the City of Jersey City.

M. Publicize the District and the businesses included within the District boundaries.

N. Recruit new businesses to fill vacancies in, and to balance the business mix of, the District.

O. Organize special events in the District.

P. Provide special parking arrangements for the District.

Q. Provide temporary decorative lighting in the District.

R. Advise the Municipal Council in connection with the acquisition and construction of improvement is the Special Improvement District, the making of a plan therefore and the operation and maintenance thereof, and to meet and furnish recommendations or comments and requests of members of the public and owners and occupants of property included in the Special Improvement District.

§ 69-73. Bylaws. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

The Jackson Hill Main Street Management Corporation shall file with the City Clerk a certified copy of the adopted bylaws of the Corporation, which bylaws shall be in substantial conformity with the draft By-Laws filed with the Clerk prior to the adoption of this article. The Corporation shall have the right to amend these bylaws from time to time as its members so decide, provided that a certified copy of the adopted amendments shall be filed with the City Clerk no later than 14 days prior to the date they are to become effective.

§ 69-74. Municipal powers retained. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

A. Notwithstanding the creation of a Special Improvement District, the City of Jersey City expressly retains all its powers and authority over the area designated as within the Special Improvement District.

B. Nothing contained herein shall be interpreted or construed to be a vacation, in whole or in part, of any municipal street or part thereof.

C. The District Management Corporation shall not make or enter into any contracts for the improvement of any publicly owned or operated facility or property within the Special Improvement District nor adopt any regulations relating to public property in such District.

D. The District Management Corporation shall comply with all applicable ordinance or regulations of the City.

§ 69-75. Annual budget. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

A. The fiscal year of the District shall be January 1—December 30.

B. The District Management Corporation shall submit a detailed annual budget for the upcoming calendar year by October 1, to the Mayor and the Municipal Council.

C. The budget shall be submitted with a report which explains how the budget contributes to . the goals and objectives for the Special Improvement District. The budget shall be reasonably itemized and shall include a summary of the categories of cost properly chargeable as follows:

1. The amount of such costs to be charged against general funds of the municipality, if any.

2. The amount of costs to be charged and assessed against properties benefitted in the District in proportion to benefits which shall be the aggregate costs of annual improvements to be made in the District during the ensuing year.

3. The amount of costs, if any, to be specially taxed against properties in the District.

D. The budget shall be introduced, approved, amended and adopted by Resolution passed by not less than a majority of the full membership of the Municipal Council. The procedure shall be as follows:

1. Introduction and approval;

2. Public advertising;

3. Public hearing;

4. Amendments and public hearings, if required;

5. Adoption.

E. The budget shall be introduced in writing at a meeting of the Municipal Council. Approval thereof shall constitute a first reading, which may be by title.

§ 69-76. Fiscal requirements, annual report, audit. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

A. (1) Funds appropriated and collected for the annual costs of operating and maintaining a Special Improvement District, shall be credited to a special account. The Mayor and City Council may incur the annual cost of improving, operating and maintaining a Special Improvement District, during any fiscal year through not specifically provided for by line item or other category in an approved estimate for such fiscal year, if in their sole discretion it shall be deemed necessary to provide for such annual improvements or operation or maintenance prior to the succeeding fiscal year so long as the total amount of the account as approved for that year is not exceeded by the expenditure. Any balances to the credit of the account and remaining unexpended at the end of the fiscal year shall be conserved and applied towards the financial requirements of the succeeding year.

(2) The Mayor and Municipal Council may retain a portion of the collected special assessment proceeds to offset the direct costs incurred in the required assessment and budget processes.

(3) The Mayor and Municipal Council shall pay over funds to the Management Corporation quarterly on the first day of March, June, September and December of each year. The City shall not be obligated to pay over any funds not actually received by the City.

B. The District Management Corporation shall, within 30 days after the close of each fiscal year, make an annual report of its activities for the preceding fiscal year or the Mayor and Municipal Council.

§ 69-77. No limitations of powers. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

Nothing contained herein shall prevent the Council at any time subsequent to the adoption of this article by ordinance, from abandoning the operation of the Special Improvement District, changing the extent of the Special Improvement District, supplementing or amending the description of the District to be specifically assessed or taxed for annual costs of the Special Improvement District or rescinding the designation of or re-designating a District Management Corporation.

§ 69-78. Implementation. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

This Special Improvement District shall become operable when the bylaws of the Jackson Hill Main Street Management Corporation are adopted by a vote of the eligible participants in the manner provided for in the draft bylaws on file with the City Clerk.

§ 69-79. Severability. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

If any provision of this article or the application thereof to any person or circumstance is held invalid, such holding shall not affect other provisions or applications of the act and to this end the provisions of this act are severable.

§ 69-80. Effective date. [Adopted 12-14-2011 by Ord. No. 11-152; amended 1-15-2025 by Ord. No. 25-009]

This article shall take effect upon the passage and publication as required by law, and adoption of the bylaws of the Jackson Hill Main Street Management Corporation.

ARTICLE VI
Exchange Place Special Improvement District*

§ 69-81. Purpose. [Added 12-14-2016 by Ord. No. 16-176; amended 3-27-2019 by Ord. No. 19-017; 1-15-2025 by Ord. No. 25-009]

The purposes of this article are to:

A. Promote economic growth and employment within the expanded Exchange Place business district;

B. Foster and encourage self-help programs to enhance the local business climate;

C. Create a self-financing special improvement district to assist in meeting local needs, goals and objectives;

D. Designate a district management corporation to implement and manage the programs and carry out local needs, goals and objectives;

E. Impose and collect a special assessment on property and parking lots located within the expanded Exchange Place Business District.

§ 69-82. Definitions. [Added 12-14-2016 by Ord. No. 16-176; amended 3-27-2019 by Ord. No. 19-017; 6-24-2020 by Ord. No. 20-047; 1-15-2025 by Ord. No. 25-009]

A. SPECIAL IMPROVEMENT DISTRICT (also referred to as "District") — that area of Exchange Place described by block and lot numbers and street addresses as set forth in Schedule A, as amended by Ordinance 20-047, and a copy of the assessment role which is on file in the Office of the City Clerk, and designated by this article, in which a special assessment on the commercial property within the district (including multi-tenant residential rental buildings), including without limitation those properties set forth on Schedule B, shall be imposed for the purpose of promoting the economic and general welfare of the district and the City. The amount of the special assessment for each property subject to the special assessment shall be equal to the percentage derived by dividing the assessed value of such property as of January 1 of any given calendar year, notwithstanding that the assessment may thereafter change, by the assessed value of all properties subject to the special assessment on January 1 of a given year, notwithstanding that the assessment may thereafter change, multiplied by the total amount of the budget proposed by the district management corporation and approved by the Municipal Council.

***Editor's note—**§§ 69-68—69-81 of Art. VI were renumbered as 69-81—69-95 January 15, 2025 by Ord. No. 25-009.

B. DISTRICT MANAGEMENT CORPORATION — the Exchange Place Alliance, (also referred to as "Management Corporation") an entity incorporated pursuant to Title 15A of the New Jersey Statutes and designated by this article to receive funds collected by special assessment within the special improvement district, as authorized by this article and any amendments thereto.

§ 69-83. Findings. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

The Council finds and declares that:

A. The Exchange Place Special Improvement District area of the City has special needs and requires special services separate and apart from the municipal services already provided to the district by the City,

B. These specific services can best be provided through a private-public partnership implemented by the creation of a special improvement district to be managed by a district management corporation.

C. The creation of a special improvement district and the designation of a district management corporation will promote economic growth and employment; foster and encourage business vitality, expansion and self-help; enhance the local business climate and otherwise be in the best interest of the property owners in the district and the City.

D. A district management corporation will provide administrative and other services to benefit the businesses, employees, residents and consumers within the special improvement district and assist the city in promoting economic growth and employment.

E. A special assessment shall be imposed and collected by the City with the regular property tax payment or payment in lieu of taxes or otherwise, and that all or a portion of these payments shall be transferred to the district management corporation to effectuate the purposes of this article and to exercise the powers given to it by this article.

§ 69-84. Creation of district. [Added 12-14-2016 by Ord. No. 16-176; amended 3-27-2019 by Ord. No. 19-017; 6-24-2020 by Ord. No. 20-047; 1-15-2025 by Ord. No. 25-009; 3-12-2025 by Ord. No. 25-020]

A. There is hereby created and designated within the City of Jersey City a special improvement district to be known as the Exchange Place Special Improvement District consisting of those properties designated by tax block and lot and street addresses on Schedule A, as amended by Ordinance 20-047 and Ordinance 25-020, attached hereto and on file in the Office of the City Clerk. The properties within the special improvement district that shall be subject to special assessment for the purposes of promoting the economic and general welfare of the district and the City include all commercial properties (including multi-tenant residential rental buildings), including without limitation those properties set forth on Schedule B, shall be imposed for the purposes of promoting the economic and general welfare of the district and the City. The amount of the special assessment for each property subject to the special assessment shall be equal to the percentage derived by dividing the assessed value of such property as of January 1 of any given calendar year, notwithstanding that the assessment may thereafter change, multiplied by the total amount of the budget proposed by the district management corporation and approved by the Municipal Council.

B. All commercial properties within the special improvement district (including multi-tenant residential buildings), including without limitation those properties set forth on Schedule B, all private properties, and tax exempt land which contain improvements subject to property tax, are deemed included in the assessing and taxing provisions of this article and are expressly subject to any fee, tax, or assessment made for special improvement district purposes.

C. Only those properties within the special improvement district that are fully tax-exempt or are deemed excluded from the assessing provisions of this article are expressly exempt from any fee, tax, or assessment made for special improvement district purposes.

§ 69-85. Appeal of property owner from inclusion in the district. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

Any owner of property included within the special improvement district and subject to the assessing and taxing provisions of this article may appeal to the Tax Assessor of the City of Jersey City requesting to be excluded from the district and from any assessment and taxing provisions of this article. This appeal is only as to whether or not a property should be included within the district under the standards set forth in § 69.70 of this article. It is not an appeal with regard to any taxes. Appeals with regard to taxes should be taken in the usual manner to the Hudson County Board of Taxation or to the Tax Court. This appeal seeking exclusion from the district and any assessment and taxing provisions of this article shall be in writing and specifically detail the factual basis for the appeal. The Assessor shall investigate the matter and conduct an informal hearing or conference within 30 days of receipt of the appeal. Within ten days after the conclusion of the informal hearing or conference, the assessor shall file a report and recommendation with the Municipal Council. The Municipal Council shall review the matter and act within 30 days upon receipt of the report and recommendation from the Assessor.

§ 69-86. Assessments. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

A. It is hereby determined that the operation and maintenance of the district may involve annual costs relating to services peculiar to the district, as distinguished from operation and maintenance services normally provided by the City outside of the district Those annual costs shall be assessed or taxed to the benefited properties or businesses pursuant to this article and N.J.S.A. 40:56-65 et seq.

B. Each year after the Council shall have acted on the estimated costs and/or on the budget of the district, the Assessor shall prepare an assessment roll setting forth separately the amounts to be specially assessed against the benefited and assessable properties in the district. Descriptions of such properties and the names of the then current owners of such properties, so far as names are available, shall be included in each annual assessment roll. The assessment roll, when so prepared, shall be filed in the Office of the City Clerk and be there available for inspection. The Council shall annually meet to consider objections to the amounts of such special assessments at least ten days after a notice of hearing has been published once in the official newspaper and mailed to the named owners of all tracts, parcels and lots of property proposed to be assessed. The notice shall set forth the time and place of meeting, and set forth the purpose of such meeting, but may refer to the assessment roll for further particulars. When the Council shall have approved the amounts of the special assessments set forth therein or as may be changed by it, the City Clerk shall forthwith certify a copy of the assessment roll with such changes, if any, to the Hudson County Tax Board.

§ 69-87. Designation of district management corporation. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

The nonprofit corporation, Exchange Place Alliance, is hereby designated as the district management corporation for the district. This corporation shall conduct its business in accordance with the Open Public Meetings Law. It shall file copies of its minutes of its meetings with the City Clerk, so as to be available for public inspection. This management corporation, in addition to acting as an advisory board to the Mayor and Council, shall have all powers necessary and requisite to effectuate the purposes of this article and the district. In order to receive any funds or exercise any of the powers granted herein, the Board of Trustees of the Exchange Place Alliance must include as members, the Mayor or his designee and a member of the Municipal Council as appointed by the Council. The Mayoral and Council members shall serve at the pleasure of, respectively, the Mayor and the Council.

§ 69-88. Powers of district management corporation. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

The Exchange Place Alliance may:

A. Adopt by-laws for the regulation of its affairs and the conduct of its business and to prescribe rules, regulations and policies in connection with the performance of its functions and duties.

B. Employ such persons as may be required and fix and pay their compensation from funds available to the corporation.

C. Apply for, accept, administer and comply with the requirements respecting an appropriation of funds or a gift, grant or donation of property or money.

D. Make and execute agreements which may be necessary or convenient to the exercise of the powers and functions of the corporation, including contracts with a person, firm, corporation, governmental agency or other entity.

E. Administer and manage its own funds and accounts and pay its own obligations.

F. Borrow money from private lenders for periods not to exceed 180 days and from governmental entities for that or longer periods.

G. Fund the improvement for the exterior appearance of properties in the district through grants or loans.

H. Fund the rehabilitation of properties in the district.

I. Accept, lease or manage property in the district.

J. Enforce the conditions of any loan, grant, sale or lease made by the corporation.

K. Provide security, sanitation and other services to the district, supplemental to those provided normally by the municipality.

L. Undertake improvements designated to increase the safety or attractiveness of the district to businesses which may wish to locate there or to visitors to the district including, but not limited to, litter cleanup and control, landscaping, parking areas and facilities, recreational and rest areas and facilities, pursuant to pertinent regulations of the City of Jersey City.

M. Publicize the district and the businesses included within the district boundaries.

N. Recruit new businesses to fill vacancies in and to balance the business mix of the district.

O. Organize special business related events in the district.

P. Provide special parking arrangements for the district for customers of businesses within the district.

Q. Provide temporary decorative lighting in the district to attract customers to businesses in the district.

R. Advise the Municipal Council in connection with the acquisition and construction of improvements in the special improvement district, the making of a plan therefore and the operation and maintenance thereof, and to meet and furnish recommendations or comments and requests of members of the public and of owners and occupants of property included within the special improvement district.

§ 69-89. By-laws. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

The Exchange Place Alliance shall file with the City Clerk a certified copy of the adopted by-laws of the corporation, which by-laws shall be in substantial conformity with the draft by-laws filed with the Clerk prior to the adoption of this article. The Exchange Place Alliance shall have the right to amend these by-laws from time to time as its members so decide, provided that a certified copy of the adopted amendments shall be filed with the City Clerk no later than 14 days prior to the date they are to become effective.

§ 69-90. Municipal powers retained. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

A. Notwithstanding the creation of a special improvement district, the City of Jersey City expressly retains all its powers and authority over the area designated as within the special improvement district.

B. Nothing contained herein shall be interpreted or construed to be a vacation, in whole or in part, of any municipal street or part thereof.

C. The district management corporation shall not make or enter into any contracts for the improvement of any publicly owned or operated facility or property within the special improvement district nor adopt any regulations relating to public property in such district without the consent of the City.

D. The district management corporation shall comply with all applicable ordinances or regulations of the City.

§ 69-91. Annual budget. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

A. The fiscal year of the district shall be July 1—June 30.

B. Except with respect to the initial budget which may be presented for approval by the City Council at any time, the district management corporation shall submit a detailed annual budget for the upcoming calendar year no later than April 1, to the Mayor and Municipal Council.

C. The budget shall be submitted with a report which explains how the budget contributes to goals and objectives for the special improvement district. The budget shall be reasonably itemized and shall include a summary of the categories of cost properly chargeable as follows:

1. The amount of such costs to be charged against the general funds of the municipality, if any.

2. The amount of costs to be charged and assessed against properties benefited in the district in proportion to benefits which shall be the aggregate of costs of annual improvements to be made in the district during the ensuing year.

3. The amount of costs, if any, to be specially taxed against properties in the district.

D. The budget shall be introduced, approved, amended and adopted by resolution passed by not less than a majority of the full membership of the Municipal Council.

The procedure shall be as follows:

1. Introduction and approval;

2. Public advertising;

3. Public hearing;

4. Amendments and public hearings, if required; and

5. Adoption.

E. The budget shall be introduced, in writing, at a meeting of the Municipal Council. Approval thereof shall constitute a first reading, which may be by title. Upon the approval of the budget by the Municipal Council, it shall fix the time and place for the holding of a hearing upon the budget.

F. The budget shall be advertised after approval. The advertisement shall contain a copy of the budget and shall set forth the date, the time and place of the hearing. It shall be published at least ten days prior to the date fixed therefore in the official newspaper of the City.

G. No budget shall be adopted until a public hearing has been held thereon and all persons having an interest therein shall have been given an opportunity to present objections. The hearing shall be held not less than 28 days after the approval of the budget.

H. The public hearing shall be held at the time and place specified in the advertisement thereof, but may be adjourned from time to time until the hearing is closed.

I. The budget, as advertised, shall be read at the public hearing in full or it may be read by its title, if:

1. At least one week prior to the date of the hearing, a complete copy of the approved budget as advertised:

a. Shall be posted in City of Jersey City, City Clerk's Office;

b. Is made available to each person requesting the same during that week and during the public hearing;

2. The Municipal Council shall, by resolution passed by not less than a majority of the full membership, determine that the budget shall be read by its title and declare that the conditions set forth in subsection (I)(1) have been met.

J. The Municipal Council may amend the budget during or after the public hearing. No amendment by the Municipal Council shall be effective until taxpayers and all persons having an interest therein shall have been granted a public hearing thereon, if the amendment shall:

1. Add a new item in an amount in excess of 1% of the total amount as stated in the approved budget;

2. Increase or decrease any item by more than 10%; or

3. Increase the amount to be raised pursuant to Section 16 of P.O. 1972, c.134 (C.40:56-80) or Section 19 of this amendatory and supplementary act by more than 5%, unless the same is made pursuant to an emergency temporary appropriation only. Notice of hearing on an amendment shall be advertised at least three days before the date set therefore. The amendment shall be published in full in the same manner as an original publication and shall be read in full at the hearing and before adoption,

K. Final adoption shall be by resolution, adopted by a majority of the full membership of the Municipal Council, and may be by title.

§ 69-92. Fiscal requirements; annual report; audit. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

A. 1. Funds appropriated and collected for the annual costs of operating and maintaining a special improvement district shall be credited to a special account. The Mayor and Municipal Council may incur the annual costs of improving, operating and maintaining a special improvement district, during any fiscal year, though not specifically provided for by line item or other category in an approved estimate for such fiscal year, if in their sole discretion it shall be deemed necessary to provide for such annual improvements or operation or maintenance prior to the succeeding fiscal year and so long as the total amount of the account as approved for that year is not exceeded

by that expenditure. Any balances to the credit of the account and remaining unexpended at the end of the fiscal year shall be conserved and applied towards the financial requirements of the succeeding year.

2. The Mayor and Municipal Council may retain a portion of the collected special assessment proceeds to offset the direct costs incurred in the required assessment and budget processes.

3. The Mayor and Municipal Council shall pay over funds to the management corporation quarterly on the first day of March, June, September and December of each year. The City shall not be obligated to pay over any funds not actually received by the City.

B. The district management corporation shall cause an annual audit of its books, accounts and financial transactions to be made and filed with the Mayor and Municipal Council and for that purpose the Corporation shall employ a certified public accountant of New Jersey. The annual audit shall be completed and filed with the Municipal Council within four months after the close of the fiscal year of the Corporation, and a certified duplicate copy of the audit shall be filed with the Director of the Division of Local Government Services in the Department of Community Affairs within five days of the filing of the audit with the Mayor and Council.

C. The district management corporation shall, within 30 days after the close of each fiscal year, make an annual report of its activities for the preceding fiscal year to the Mayor and Municipal Council.

§ 69-93. No limitations of powers. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

Nothing contained herein shall prevent the Council at any time subsequent to the adoption of this article by ordinance, from abandoning the operation of the special improvement district, changing the extent of the special improvement district, supplementing or amending the description of the district to be specially assessed or taxed for annual costs of the special improvement district, changing or repealing any plan, rules, requisitions or limitations adopted for the operation of the special improvement district or rescinding the designation of or re-designating a district management corporation.

§ 69-94. Implementation. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

This special improvement district shall become operable when the by-laws of the Exchange Place Alliance are adopted by a vote of the eligible participants in the manner provided for in the draft by-laws on file with the City Clerk.

§ 69-95. Severability. [Added 12-14-2016 by Ord. No. 16-176; amended 1-15-2025 by Ord. No. 25-009]

If any provision of this article or the application thereof to any person or circumstance is held invalid, such holding shall not affect other provisions or applications of the act and to this end the provisions of this act are severable.

§ 69-96. Effective date. [Added 1-15-2025 by Ord. No. 25-009]

This article shall take effect upon passage and publication as required by law, and adoption of the by-laws of the Exchange Place Alliance Management Corporation.

ARTICLE VII
West Side Ave Special Improvement District*

§ 69-97. Purpose. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

The purposes of this article are to:

A. Promote economic growth and employment within the West Side Avenue business district;

B. Foster and encourage self-help programs to enhance the local business climate;

C. Create a self-financing Special Improvement District to assist in meeting local needs, goals and objectives;

D. Designate a District Management Corporation to implement and manage the programs and carry out local needs, goals and objectives;

E. Impose and collect a special assessment on property and parking lots located within the West Side Ave Business District.

§ 69-98. Definitions. [Added 12-19-2018 by Ord. No. 18-131; amended 7-17-2019 by Ord. No. 19-089; 1-15-2025 by Ord. No. 25-009]

A. SPECIAL IMPROVEMENT DISTRICT (also referred to as "district") — that area of West Side Ave and Communipaw Avenue as described by block and lot numbers and street addresses as set forth in Schedule A, copy of the assessment role dated October 25, 2018 which is on file in the office of the City Clerk, and designated by this article, in which a special assessment on the commercial property within the district, including without limitation those properties set forth on Schedule B, shall be imposed for the purposes of promoting the economic and general welfare of the District and the City. The amount of the special assessment for each property subject to the special assessment shall be equal to the budget proposed by the District Management Corporation and approved by the Municipal Council divided by the total combined lineal feet of all properties abutting or bordering upon a street or streets within the special improvement district that are subject to the special assessment multiplied by the lineal feet of the individual property abutting or bordering upon a street or streets within the special improvement district.

B. DISTRICT MANAGEMENT CORPORATION — the West Side Partnership, (also referred to as "Management Corporation") an entity incorporated pursuant to N.J.S.A. Title 15A and designated by this article to receive funds collected by a special assessment within the special improvement district, as authorized by this article and any amendments thereto.

***Editor's note**—§§ 69-82—69-97 of Art. VII were renumbered as 69-97—69-112 January 15, 2025 by Ord. No. 25-009.

§ 69-99. Findings. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

The Council finds and declares that:

A. The West Side Avenue Special Improvement District area of the City has special needs and requires special services separate and apart from the municipal services already provided to the District by the City.

B. These specific services can best be provided through a private-public partnership implemented by the creation of a Special Improvement District to be managed by a District Management Corporation.

C. The creation of a Special Improvement District and the designation of a District Management Corporation will promote economic growth and employment; foster and encourage business vitality, expansion and self-help; enhance the local business climate and otherwise be in the best interest of the property owners in the District and the City.

D. A District Management Corporation will provide administrative and other services to benefit the businesses, employees, residents and consumers within the Special Improvement District and assist the city in promoting economic growth and employment.

E. A special assessment shall be imposed and collected by the City with the regular property tax payment or payment in lieu of taxes or otherwise, and that all or a portion of these payments shall be transferred to the District Management Corporation to effectuate the purposes of this article and to exercise the powers given to it by this article.

§ 69-100. Creation of District. [Added 12-19-2018 by Ord. No. 18-131; amended 7-17-2019 by Ord. No. 19-089; 1-15-2025 by Ord. No. 25-009]

A. There is hereby created and designated within the City of Jersey City a Special Improvement District to be known as the West Side Avenue Special Improvement District consisting of those properties designated by tax block and lot and street addresses on Schedule A attached hereto and on file in the Office of the City Clerk. The properties within the special improvement district that shall be subject to special assessment for the purposes of promoting the economic and general welfare of the district and the City includes all commercial properties, including without limitation those properties set forth on Schedule B, shall be imposed for the purposes of promoting the economic and general welfare of the district and the City. The amount of the special assessment for each property subject to the special assessment shall be equal to the budget proposed by the District Management Corporation and approved by the Municipal Council divided by the total combined lineal feet of all properties abutting or bordering upon a street or streets within the special improvement district that are subject to the special assessment multiplied by the lineal feet of the individual property abutting or bordering upon a street or streets within the special improvement district.

B. All commercial properties within the special improvement district, including without limitation those properties set forth on Schedule B, all private properties; and tax exempt land which contain improvements subject to property tax, are deemed included in the assessing and taxing provisions of this article and are expressly subject to any fee, tax or assessment made for special improvement district purposes.

C. Only those properties within the special improvement district that are fully tax exempt or are deemed excluded from the assessing provisions of this article and are expressly exempt from any fee, tax or assessment made for special improvement district purposes.

§ 69-101. Appeal of property owner from inclusion in the district. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

Any owner of property included within the special improvement district and subject to the assessing and taxing provisions of this article may appeal to the Tax Assessor of the City of Jersey City requesting to be excluded from the district and from any assessment and taxing provisions of this article. This appeal is only as to whether or not a property should be included within the district under the standards set forth in § 69-84 of this article. It is not an appeal with regard to any taxes. Appeals with regard to taxes should be taken in the usual manner to the Hudson County Board of Taxation or to the Tax Court. This appeal seeking exclusion from the District and any assessment and taxing provisions of this article shall be in writing and specifically detail the factual basis for the appeal. The Assessor shall investigate the matter and conduct an informal hearing or conference within 30 days of receipt of the appeal. Within ten days after the conclusion of the informal hearing or conference, the Assessor shall file a report and recommendation with the Municipal Council. The Municipal Council shall review the matter and act within 30 days upon receipt of the report and recommendation from the Assessor.

§ 69-102. Assessments. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

A. It is hereby determined that the operation and maintenance of the district may involve annual costs relating to services peculiar to the district, as distinguished from operation and maintenance services normally provided by the City outside of the district. Those annual costs shall be assessed or taxed to the benefited properties or businesses pursuant to this article and N.J.S.A. 40:56-65 et seq.

B. Each year after the Council shall have acted on the estimated costs and/or on the budget of the district, the Assessor shall prepare an assessment roll setting forth separately the amounts to be specially assessed against the benefited and assessable properties in the district. Descriptions of such properties and the names of the then current owners of such properties, so far as names are available, shall be included in each annual assessment roll. The assessment roll, when so prepared, shall be filed in the Office of the City Clerk and be there available for inspection. The Council shall annually meet to consider objections to the amounts of such special assessments at least ten days after a notice of hearing has been published once in the official newspaper and mailed to the named owners of all tracts, parcels and lots of property proposed to be assessed. The notice shall set forth the time and place of meeting, and set forth the purpose of such meeting, but may refer to the assessment roll for further particulars. When the Council shall have approved the amounts of the special assessments set forth therein or as may be changed by it, the City Clerk shall forthwith certify a copy of the assessment roll with such changes, if any, to the Hudson County Tax Board.

§ 69-103. Designation of District Management Corporation. [Added 12-19-2018 by Ord. No. 18-131; amended 7-17-2019 by Ord. No. 19-089; amended 1-15-2025 by Ord. No. 25-009]

The nonprofit corporation, The West Side Partnership, is hereby designated as the District Management Corporation for the district. This corporation shall conduct its business in accordance with the Open

Public Meetings Law. It shall file copies of its minutes of its meetings with the City Clerk, so as to be available for public inspection. This Management Corporation, in addition to acting as an advisory board to the Mayor and Council, shall have all powers necessary and requisite to effectuate the purposes of this article and the District. In order to receive any funds or exercise any of the powers granted herein, the Board of Trustees of the West Side Partnership must include as members the Mayor or his designee and a Member of the Municipal Council as appointed by the Council. The Mayoral and Council Members shall serve at the pleasure of, respectively, the Mayor and the Council.

§ 69-104. Powers of District Management Corporation. [Added 12-19-2018 by Ord. No. 18-131; amended 7-17-2019 by Ord. No. 19-089; 1-15-2025 by Ord. No. 25-009]

The West Side Partnership may:

A. Adopt by-laws for the regulation of its affairs and the conduct of its business and to prescribe rules, regulations and policies in connection with the performance of its functions and duties.

B. Employ such persons as may be required and fix and pay their compensation from funds available to the Corporation.

C. Apply for, accept, administer and comply with the requirements respecting an appropriation of funds or a gift, grantor donation of property or money.

D. Make and execute agreements which may be necessary or convenient to the exercise of the powers and functions of the Corporation, including contracts with a person, firm, corporation, governmental agency or other entity.

E. Administer and manage its own funds and accounts and pay its own obligations.

F. Borrow money from private lenders for periods not to exceed 180 days and from governmental entities for that or longer periods.

G. Fund the improvement for the exterior appearance of properties in the district through grants or loans.

H. Fund the rehabilitation of properties in the district.

I. Accept, lease or manage property in the district.

J. Enforce the conditions of any loan, grant, sale or lease made by the Corporation.

K. Provide security, sanitation and other services to the district, supplemental to those provided normally by the municipality.

L. Undertake improvements designated to increase the safety or attractiveness of the district to businesses which may wish to locate there or to visitors to the district including, but not limited to, litter cleanup and control, landscaping, parking areas and facilities, recreational and rest areas and facilities, pursuant to pertinent regulations of the City of Jersey City.

M. Publicize the district and the businesses included within the district boundaries.

N. Recruit new businesses to fill vacancies in and to balance the business mix of the district.

O. Organize special business related events in the district.

P. Provide special parking arrangements for the district for customers of businesses within the district.

Q. Provide temporary decorative lighting in the district to attract customers to businesses in the district.

R. Advise the Municipal Council in connection with the acquisition and construction of improvements in the special improvement district, the making of a plan therefore and the operation and maintenance thereof, and to meet and furnish recommendations or comments and requests of members of the public and of owners and occupants of property included within the special improvement district.

§ 69-105. By-laws. [Added 12-19-2018 by Ord. No. 18-131; amended 7-17-2019 by Ord. No. 19-089; 1-15-2025 by Ord. No. 25-009]

The West Side Partnership shall file with the City Clerk a certified copy of the adopted by-laws of the Corporation, which by-laws shall be in substantial conformity with the draft by-laws filed with the Clerk prior to the adoption of this article. The West Side Partnership shall have the right to amend these by-laws from time to time as its members so decide, provided that a certified copy of the adopted amendments shall be filed with the City Clerk no later than 14 days prior to the date they are to become effective.

§ 69-106. Municipal powers retained. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

A. Notwithstanding the creation of a special improvement district, the City of Jersey City expressly retains all its powers and authority over the area designated as within the special improvement district.

B. Nothing contained herein shall be interpreted or construed to be a vacation, in whole or in part, of any municipal street or part thereof.

C. The District Management Corporation shall not make or enter into any contracts for the improvement of any publicly owned or operated facility or property within the special improvement district nor adopt any regulations relating to public property in such district without the consent of the City.

D. The District Management Corporation shall comply with all applicable ordinances or regulations of the City.

§ 69-107. Annual budget. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

A. The fiscal year of the district shall be July 1—June 30.

B. Except with respect to the initial budget, which may be presented for approval by the City Council at any time, the District Management Corporation shall submit a detailed annual budget for the upcoming calendar year no later than April 1, to the Mayor and Municipal Council.

C. The budget shall be submitted with a report which explains how the budget contributes to goals and objectives for the special improvement district. The budget shall be reasonably itemized and shall include a summary of the categories of cost properly chargeable as follows:

1. The amount of such costs to be charged against the general funds of the municipality, if any.

2. The amount of costs to be charged and assessed against properties benefited in the district in proportion to benefits which shall be the aggregate of costs of annual improvements to be made in the district during the ensuing year.

3. The amount of costs, if any, to be specially taxed against properties in the district.

D. The budget shall be introduced, approved, amended and adopted by resolution passed by not less than a majority of the full membership of the Municipal Council. The procedure shall be as follows:

1. Introduction and approval;

2. Public advertising;

3. Public hearing;

4. Amendments and public hearings if required; and

5. Adoption.

E. The budget shall be introduced, in writing, at a meeting of the Municipal Council. Approval thereof shall constitute a first reading, which may be by title. Upon the approval of the budget by the Municipal Council, it shall fix the time and place for the holding of a hearing upon the budget.

F. The budget shall be advertised after approval. The advertisement shall contain a copy of the budget and shall set forth the date, the time and place of the hearing. It shall be published at least ten days prior to the date fixed therefore in the official newspaper of the City.

G. No budget shall be adopted until a public hearing has been held thereon and all persons having an interest therein shall have been given an opportunity to present objections. The hearing shall be held not less than 28 days after the approval of the budget.

H. The public hearing shall be held at the time and place specified in the advertisement thereof, but may be adjourned from time to time until the hearing is closed.

I. The budget, as advertised, shall be read at the public hearing in full or it may be read by its title, if:

1. At least one week prior to the date of the hearing, a complete copy of the approved budget as advertised: a. shall be posted in City of Jersey City/City Clerk's Office; b. is made available to each person requesting the same during that week and during the public hearing;

2. The Municipal Council shall, by resolution passed by not less than a majority of the full membership, determine that the budget shall be read by its title and declare that the conditions set forth in subsection (I)(l) have been met.

J. The Municipal Council may amend the budget during or after the public hearing. No amendment by the Municipal Council shall be effective until taxpayers and all persons having an interest therein shall have been granted a public hearing thereon, if the amendment shall:

1. Add a new item in an amount in excess of 1% of the total amount as stated in the approved budget;

2. Increase or decrease any item by more than 10%; or

3. Increase the amount to be raised pursuant to Section 16 of P.O. 1972, c.134 [C.40:56-80] or Section 19 of this amendatory and supplementary act by more than 5%, unless the same is made pursuant to an emergency temporary appropriation only.

Notice of hearing on an amendment shall be advertised at least three days before the date set therefore. The amendment shall be published in full in the same manner as an original publication and shall be read in full at the-hearing and before adoption.

K. Final adoption shall be by resolution, adopted by a majority of the full membership of the Municipal Council, and may be by title.

§ 69-108. Fiscal requirements; annual report; audit. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

A. 1. Funds appropriated and collected for the annual costs of operating and maintaining a special improvement district, shall be credited to a special account. The Mayor and Municipal Council may incur the annual costs of improving, operating and maintaining a special improvement district, during any fiscal year, though not specifically provided for by line item or other category in an approved estimate for such fiscal year, if in their sole discretion it shall be deemed necessary to provide for such annual improvements or operation or maintenance prior to the succeeding fiscal year and so long as the total amount of the account as approved for that year is not exceeded by that expenditure. Any balances to the credit of the account and remaining unexpended at the end of the fiscal year shall be conserved and applied towards the financial requirements of the succeeding year.

2. The Mayor and Municipal Council may retain a portion of the collected special assessment proceeds to offset the direct costs incurred in the required assessment and budget processes.

3. The Mayor and Municipal Council shall pay over funds to the Management Corporation quarterly on the first day of March, June, September and December of each year. The City shall not be obligated to pay over any funds not actually received by the City.

B. The District Management Corporation shall cause an annual audit of its books, accounts and financial transactions to be made and filed with the Mayor and Municipal Council and for that purpose the Corporation shall employ a Certified Public Accountant of New Jersey. The annual audit

shall be completed and filed with the Municipal Council within four months after the close of the fiscal year of the Corporation, and a certified duplicate copy of the audit shall be filed with the Director of the Division of Local Government Services in the Department of Community Affairs within five days of the filing of the audit with the Mayor and Council.

C. The District Management Corporation shall, within 30 days after the close of each fiscal year, make an annual report of its activities for the preceding fiscal year to the Mayor and Municipal Council.

§ 69-109. No limitations of powers. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

Nothing contained herein shall prevent the Council at any time subsequent to the adoption of this article by ordinance, from abandoning the operation of the special improvement district, changing the extent of the special improvement district, supplementing or amending the description of the district to be specially assessed or taxed for annual costs of the special improvement district, changing or repealing any plan, rules, requisitions or limitations adopted for the operation of the special improvement district or rescinding the designation of or re-designating a District Management Corporation.

§ 69-110. Implementation. [Added 12-19-2018 by Ord. No. 18-131; amended 7-17-2019 by Ord. No. 19-089; 1-15-2025 by Ord. No. 25-009]

This special improvement district shall become operable when the by-laws of the West Side Partnership are adopted by a vote of the eligible participants in the manner provided for in the draft by-laws on file with the City Clerk.

§ 69-111. Severability. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

If any provision of this article or the application thereof to any person or circumstance is held invalid, such holding shall not affect other provisions or applications of the article and to this end the provisions of this article are severable.

§ 69-112. Effective date. [Added 12-19-2018 by Ord. No. 18-131; amended 1-15-2025 by Ord. No. 25-009]

This article shall take effect upon the passage and publication as required by law, and adoption of the bylaws of the District Management Corporation.

Chapter 71

TOURIST DEVELOPMENT COMMISSION

§ 71-1. Commission established; members; terms; vacancies.

§ 71-2. Organization; powers and duties; joint action.

[HISTORY: Adopted by the Council of the City of Jersey City 6-9-1993 by Ord. No. 93-059. Amendments noted where applicable.]

§ 71-1. Commission established; members; terms; vacancies.

There is hereby established the Jersey City Tourist Development Commission as an agency of the City of Jersey City. The Commission shall consist of five members who shall be appointed by the Mayor with the approval of the Council. One member shall be a representative of the City of Jersey City and shall advise the Council of the work of the Commission. The remaining four members shall be municipal licensees upon whom an additional license fee has been imposed pursuant to N,J.S.A. 40:52-7. (NOTE: N.J.S.A. 40:54C-1 provides as follows: The commissioner representing the municipality shall serve at the pleasure of the Council. The terms of office of the remaining commissioners shall be two years, except that of the members first appointed, two shall be appointed for a term of one year and two shall be appointed for terms of two years. A vacancy occurring otherwise than by expiration of term shall be filled for the unexpired term in the same manner as the original appointment. Members shall serve without compensation in performance of their duties.)

§ 71-2. Organization; powers and duties; joint action.

The Jersey City Tourist Development Commission shall be organized and possess all of the powers and discharge all of the duties in accordance with N.J.S.A. 40:54C-1 to 40:54C-5. The Commission may act jointly with any commission in any other municipality in furtherance of purposes stated in N.J.S.A. 40:54C-3.

Chapter 72

ACCESSIBILITY ADVISORY BOARD

§ 72-1.	Establishment.	§ 72-4.	Removal.
§ 72-2.	Membership; terms; appointment; compensation; terms; vacancies.	§ 72-5.	Purpose; powers of board.
§ 72-3.	Chairperson; officers; meetings.		

§ 72-1. Establishment. [Added 12-10-2025 by Ord. No. 25-131]

The Accessibility Advisory Board (hereinafter called the "Board") is hereby established, this is an advisory body to make the city more accessible for citizens with disabilities, raise awareness regarding challenges facing residents with disabilities in Jersey City, and promote stronger ties between persons with disabilities, advocacy groups, community organizations, and the public.

§ 72-2. Membership; terms; appointment; compensation; terms; vacancies. [Added 12-10-2025 by Ord. No. 25-131]

A. The Board shall consist of 11 members to be appointed by the Mayor with the advice and consent of the Municipal Council. All members shall be citizens and residents of Jersey City. The Mayor and Council President shall serve as ex officio members of the Board.

B. All members shall serve without compensation. Members shall be appointed as aforesaid, for a term of two years, except all vacancies may be filled for the unexpired term.

§ 72-3. Chairperson; officers; meetings. [Added 12-10-2025 by Ord. No. 25-131]

A. One of said members shall be elected by the members of the Board as Chair. The Chair shall serve for a term not to exceed one year. The remaining officers may have such other officers as it deems necessary and shall be selected by the members of the board.

B. The Board may adopt such rules as it may find necessary to achieve the purposes set forth herein.

C. The Board shall meet at least ten times per year on dates and times to be set by the Board. Each member of the Board shall attend a minimum of six meetings per year in order to maintain their status as a member of the Board.

§ 72-4. Removal. [Added 12-10-2025 by Ord. No. 25-131]

Cause for removal may be found where a member is absent without prior notification to the chairperson from four consecutive meetings or from 50 percent of the Board's regularly scheduled meetings for the

year. The mayor may remove any member of the Board for cause as set forth herein upon written charges. Such written charges must be served upon the member, and after notice and a hearing on the allegations raised, the member shall be entitled to be heard in person or by counsel.

§ 72-5. Purpose; powers of board. [Added 12-10-2025 by Ord. No. 25-131]

A. The purposes of the Accessibility Advisory Board are as follows:

(1) Advance the safety, acceptance, and full participation of people with disabilities and other special needs in the community.

(2) Identify community-wide accessibility issues/challenges and solutions.

(3) Promote stronger communication between persons with disabilities, advocacy groups, community organizations, individual citizens, and governmental representatives.

(4) Address barriers preventing equal access by citizens with disabilities to public parking, education, recreation, transportation, employment, housing, pedestrian travel, municipal programs, facilities, etc.

(5) Inform citizens with disabilities of events, programs, services, and opportunities available to them within the public and private sectors.

(6) Promote continued compliance with the Americans with Disabilities Act for all public buildings and properties and make recommendations on any various political issues, needs, and design of buildings, properties, and projects in the future.

(7) Create a special needs registry that allows citizens to notify first responders of their needs so they can be accommodated during an emergency.

B. The Board shall:

(1) Advise the Municipal Council and/or Mayor on issues of common concern within Jersey City.

(2) Recommend policy and guidelines as it pertains to the status of people with disabilities and issues relating to accessibility; provided, however, that the Board's recommendation shall be limited to planning and programmatic review and shall not affect the decisions concerning operation, budget, or personnel. Recommendations and requests on budget and operations can be made by the Accessibility Advisory Committee but shall not be binding.

(3) Have all powers reasonable and necessary to carry out its purpose, including but not limited to the power to conduct public meetings, events, and programs.

(4) Have the power to issue public statements and resolutions to the extent that those are advisory only and shall not have binding effect on the governing body.

Chapter 73

WOMEN'S ADVISORY BOARD

§ 73-1.	Establishment.	§ 73-4.	Removal.
§ 73-2.	Membership; terms; appointment; compensation; terms; vacancies.	§ 73-5.	Board meetings.
		§ 73-6.	Purpose; powers of Board.
§ 73-3.	Chairman; officers.		

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§ 73-1. Establishment. [Added 1-26-2022 by Ord. No. 22-002]

The Women's Advisory Board (hereinafter called the "Board") is hereby established, this is an advisory body to help women improve the status of women in Jersey City and create awareness of women's issues within the City.

§ 73-2. Membership; terms; appointment; compensation; terms; vacancies. [Added 1-26-2022 by Ord. No. 22-002]

A. The Board shall consist of 11 members to be appointed by the Mayor with the advice and consent of the Municipal Council. The majority of the Board shall be women. Best efforts shall be utilized to appoint at least two members who are social workers, or attorneys. All members shall be citizens and residents of Jersey City. The Mayor and Council President shall serve as ex officio members of the Board.

B. All members shall serve without compensation. Members shall be appointed as aforesaid, for a term of two years, except all vacancies shall be filled for the unexpired term.

§ 73-3. Chairman; officers. [Added 1-26-2022 by Ord. No. 22-002]

One of said members shall be elected by the members of the Board as Chairman. The remaining officers may have such other officers as it deems necessary and shall be selected by the members of the Board.

§ 73-4. Removal. [Added 1-26-2022 by Ord. No. 22-002]

A. The mayor may remove any member of the Board for cause, on written charges. Such written charges must be served upon the member, and after notice and a hearing on the allegations raised, the member shall be entitled to be heard in person by counsel.

B. Cause for removal may be found where a member is absent without prior notification to the Chairperson from four consecutive meetings or from 50 percent of the Board's regularly scheduled meetings for the year.

§ 73-5. Board meetings. [Added 1-26-2022 by Ord. No. 22-002]

The Board shall meet at least ten times per year on dates and times to be set by the Board. Each member of the Board shall attend a minimum of eight meetings per year in order to maintain their status as a member of the Board.

§ 73-6. Purpose; powers of Board. [Added 1-26-2022 by Ord. No. 22-002]

A. The purposes of the Women's Advisory Board are to:

(1) Improve the status of women in Jersey City through creating an environment to recognize, cultivate and utilize the talents of women in the City.

(2) Assist women in Jersey City achieve success in the workplace and society through networking and advocacy.

(3) Advance the causes of women in Jersey City and promote women's rights.

B. The Board shall:

(1) Advise the Municipal Council and/or Mayor on issues of common concern to women within Jersey City.

(2) Recommend policy and guidelines as it pertains to the status of women and women's rights; provided, however, that the Board's recommendation shall be limited to planning and programmatic review and shall not affect the decisions concerning operation, budget or personnel.

(3) Have all powers reasonable and necessary to carry out its purpose. Including but not limited to the power to conduct public meetings, events and programs.

(4) Have the power to issue public statements and resolutions to the extent that those are advisory only and shall not have binding effect on the governing body.

Chapter 74

ZONING BOARD OF ADJUSTMENT

§ 74-1. Board continued.

[HISTORY: Adopted by the Council of the City of Jersey City 9-8-1981 as Sec. 2-226 of Ord. No. MC-14. Amendments noted where applicable.]

GENERAL REFERENCES

Administration of government — See Ch. 3. **Zoning — See Ch. 345.**

§ 74-1. Board continued.

The Board of Adjustment, as heretofore established pursuant to law (N.J.S.A. 40:55D-69 et seq.) is reconstituted and continued.

PART II

GENERAL LEGISLATION

Chapter 81

ADVERTISING MATERIALS

ARTICLE I

Handbills and Signs

§ **81-1.** **Title.**
§ **81-2.** **Intent and purpose.**
§ **81-3.** **Definitions.**
§ **81-4.** **Throwing down handbills in public place prohibited.**
§ **81-5.** **Posting handbills or signs on public property.**
§ **81-6.** **Distribution of handbills on private property where prohibition properly posted.**
§ **81-7.** **Liability for conduct of another; complicity.**
§ **81-8.** **Affixing handbills or signs to vacant private property.**
§ **81-9.** **Distributing handbills at private premises; exceptions.**
§ **81-10.** **Placing handbills in or upon vehicles prohibited.**
§ **81-11.** **Removal of signs and handbills, responsibility.**
§ **81-12.** **Removal of signs and handbills; costs of removal.**
§ **81-13.** **Presumptions applicable in action seeking costs of removal.**
§ **81-14.** **Existing ordinances not affected.**
§ **81-15.** **Severability.**
§ **81-16.** **Violations and penalties.**

ARTICLE II

(Reserved)

[HISTORY: Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Peddling, soliciting and canvassing — See Ch. 245. **Sales — See Ch. 269.**
Solid waste — See Ch. 287.

ARTICLE I

Handbills and Signs

[Adopted 5-4-1971 as Ch. 3, Art. 11, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; amended in its entirety 10-9-1996 by Ord. No. 96-095]

§ 81-1. Title.

This article shall be known and may be cited as the "Jersey City Anti-Litter Ordinance."

§ 81-2. Intent and purpose.

The Council finds that the promiscuous distribution of handbills and circulars contributes to the litter covering streets and sidewalks and to the degradation of the quality of life within the city. In order to control the proliferation of handbills, the purposes of this article are specifically declared to be as follows:

A. To protect local residents against trespassing by canvassers or handbill distributors upon the private property of residents if they have given reasonable notice that they do not wish to be solicited by such persons or do not desire to receive handbills or advertising matter.

B. To protect the people against the health and safety menace and the expense incident to the littering of the streets and public places by the promiscuous and uncontrolled distribution of advertising matter and commercial and noncommercial information.

C. To improve traffic safety by reducing visual distractions from public facilities.

§ 81-3. Definitions.

The following terms, when used in this article, have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

HANDBILL - Any printed or written matter, any sample or device, circular, business card, calling card, leaflet, pamphlet, paper, booklet or any other printed or otherwise reproduced original or copies of any matter or literature. **[Amended 2-24-1999 by Ord. No. 99-023; 9-24-2015 by Ord. No. 15-127]**

NEWSPAPER - Any newspaper of general circulation as defined by general law, any newspaper duly entered with the United States Postal Service, in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law; and, in addition, any periodical or current magazine regularly published and sold to the public.*

PERSON - Any person, firm, partnership, association, corporation, company or organization of any kind.

PRIVATE PREMISES - Any dwelling, house, building, including any condominium or cooperative, or other structure, designed or used either wholly or in part for private residential purposes, whether inhabited, uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling, house, building or other structure. **[Amended 1-12-2005 by Ord. No. 04-150]**

PUBLIC PLACE - Any and all streets, boulevards, avenues, lanes, alleys or other public ways and any and all public parks, squares, spaces, plazas, grounds and buildings.

§ 81-4. Throwing down handbills in public place prohibited. [Amended 2-24-1999 by Ord. No. 99-023]

It shall be unlawful for any person to deposit, place or throw any handbill in or upon any public place within the city; provided, however, that it shall not be unlawful for any person to hand out or distribute without charge to the receiver any handbill in any public place to any person willing to accept the handbill.

§ 81-5. Posting handbills or signs on public property.

A. No person may paint, mark, write on, post or otherwise affix any handbill or sign to or upon any public property or structure without the authorization of the Traffic Engineer. Authorization shall be given only for the purpose of regulating, warning, identifying and guiding traffic.

'Editor's note—The former definition of "noncommercial handbill," which immediately followed this definition, was repealed 2-24-1999 by Ord. No. 99-023.

B. Property protected by this article includes but is not limited to traffic signal poles, traffic signal facilities, traffic signs, parking meters, utility poles, telephone pole trees, United States mail receptacles, letter receptacles, benches, bus shelters, vacant buildings, fences, bordering vacant lots, public buildings or any object affixed to or places thereon for public purposes or for the use of the public.

C. Upon approval from the Traffic Engineer, construction contractors and utility companies may erect temporary signs at work sites to protect the public, equipment and workers.

D. The City of Jersey City may post signs without notice to protect the public and/or employees from harm.

§ 81-6. Distribution of handbills on private property where prohibition properly posted. [Amended 2-24-1999 by Ord. No. 99-023]

It shall be unlawful for any person to deposit, place or throw any handbill upon any premises, if requested by any resident thereof not to do so or if there is placed on the premises in a conspicuous position near the entrance a sign which can be seen from the street bearing the words: "No Trespassing," "No Advertisements" or any similar notice, indicating in any manner that the occupants of the premises do not wish to have their right of privacy disturbed or to have any handbills left upon their premises. With regard to premises which are multifamily dwellings, the posting of such a sign shall also conspicuously identify the unit in which the resident who has posted the sign resides.

§ 81-7. Liability for conduct of another; complicity. [Added 2-24-1999 by Ord. No. 99-023]*

A. A person shall be liable for a violation under this article if:

(1) Such person's own conduct or the conduct of another person for whom he or she is legally accountable causes the violation.

(2) He or she is an accomplice of another person whose acts cause a violation of this article.

(3) He or she engages in a conspiracy to commit a violation of this article.

B. For the purpose of this section, the terms "legally accountable," "accomplice" and "conspiracy" shall be defined in accordance with N.J.S. A. 2C:2-6. To the extent relevant, all of the conditions of liability for the conduct of another in N.J.S.A. 2C:2-6 shall apply to any prosecution under this article. +

§ 81-8. Affixing handbills or signs to vacant private property.

Without the written consent of the owner or authorized agent for such property, no person may paint, write on, post or otherwise affix any handbill or sign to or upon any vacant private property. This shall include but is not limited to utility poles, telephone poles, private fences and private trees.

***Editor's Note: This ordinance also repealed former § 81-7, Depositing handbills on vacant premises.**

tEditor's **Note: N. J.S.A. 2C:2-6 defines criminal liability for the conduct of another person.**

§ 81-9. Distributing handbills at private premises; exceptions.

A. No person shall deposit, place or throw any handbill in or upon any inhabited private premises except by handing or transmitting any such handbill directly to the owner, occupant or other person then present on the premises; provided that, except where the premises are posted as provided in this article or where any resident of the premises requests otherwise, a person may place or deposit a handbill in or upon private premises if **[Amended 2-24-1999 by Ord. No. 99-023]:**

(1) The handbill is contained in a plastic bag ventilated with airholes throughout the surface of the bag or unventilated plastic bag no greater than six inches in width; or

(2) The handbill is so placed or deposited as to secure or prevent it from being blown or scattered about the premises or sidewalks, streets or other public places. Mailboxes may not be so used when so prohibited by federal postal law or regulations.

B. The provisions of this section shall not apply to the distribution of mail by the United States or to newspapers; except that newspapers shall be placed on private or public property in such a manner as to prevent their being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.

§ 81-10. Placing handbills in or upon vehicles prohibited. [Amended 2-24-1999 by Ord. No. 99-023]

It shall be unlawful for any person to distribute, deposit, place, throw, scatter or cast any handbill in or upon any automobile or other vehicle. The provisions of this section shall not be deemed to prohibit the handing, transmitting or distributing of any handbill to the owner or other occupant of any automobile or other vehicle who is willing to accept the same.

§ 81-11. Removal of signs and handbills, responsibility.

Any handbill or sign found posted or otherwise affixed upon any public, or utility property contrary to the provisions of this section may be removed by any company, utility, organization or individual owning or responsible for maintaining that property or the Department of Public Works. When the property is not owned by the City of Jersey City, the City shall obtain written permission before removal of any sign or handbill.

§ 81-12. Removal of signs and handbills; costs of removal. [Amended 2-24-1999 by Ord. No. 99-023]

A. The Director of Public Works or an authorized agent may notify the individual or organization of the location of all unauthorized sign(s) and handbill(s) and require their removal. If the individual or organization, after notification, fails to remove the unauthorized signs and handbill within 10 days after receipt of such notice, the Director may authorize the removal and charge the cost of removal to the individual or organization.

B. The individual or organization responsible for the unauthorized sign(s) and handbill(s) shall not be responsible for the cost of removal if notice is not given within the specified time.

C. The Director of Public Works shall determine the reasonable costs to the City of Jersey City incurred in removing handbills and signs pursuant to this section. Such costs shall include but are not limited to direct labor, material and equipment costs, as well as departmental and general city overhead costs attributable to removal of signs.

D. Notice under this section may be by registered or ordinary mail if an address is indicated on the sign or by phone if a telephone number is indicated or by any means reasonably intended to give notice to the unauthorized sign.

§ 81-13. Presumptions applicable in action seeking costs of removal. [Amended 2-24-1999 by Ord. No. 99-023]

A. For purposes of any civil action by the Director of Public Works under §§81-11 and 81-12 seeking to recover the costs of removal, there shall be a presumption that:

(1) The real estate agent, broker, brokerage firm or other person whose name or telephone number appears on the handbill or sign is the person responsible for posting a handbill or sign advertising property for sale, lease or rent;

(2) The organization whose name appears on a sign as the sponsor of a candidate seeking office is the organization responsible for posting a handbill or sign promoting the candidate for public office;

(3) The owner, or lessee if the property is leased, of property used for a yard or garage sale is the person responsible for posting a handbill or sign advertising a yard or garage sale;

(4) The owner, or lessee if the property is leased, of property used for a commercial activity or event is the person responsible for posting a handbill or sign advertising the subject commercial activity or event;

(5) The person whose name, telephone number or address appears as the sponsor for a sporting event, concert, theatrical performance or similar activity or event is the person responsible for posting a handbill or sign advertising the subject activity or event;

(6) The person whose name, telephone number or address appears as the person to contact on any handbill or sign posted is the person responsible for having posted the same; and

(7) The company's name appearing on a circular, flyer or advertisement promoting products or services is the responsible party for distribution of such material.

B. For purposes of this section, the person presumed to be responsible for posting a handbill or sign on public or utility property may rebut such presumption by declaring under penalty of perjury or swearing under oath that the person did not cause, authorize, allow or permit the posting of the handbill or sign on public or utility property.

§ 81-14. Existing ordinances not affected.

This article shall not be deemed to repeal, amend or modify any ordinance ever ordained, either prohibiting, regulating or licensing canvassers, hawkers, peddlers, transient merchants or any person using the public streets or places for any private business or enterprise, or for commercial sales, not covered herein.

§ 81-15. Severability. [Amended 2-24-1999 by Ord. No. 99-023]

If any provision, or portion of a provision, of this article or its application to any person or circumstances shall be held invalid by a court of competent jurisdiction, the remainder of the article or the application of the provision to other persons or circumstances shall not be affected. Specifically, if a court finds that any or all of the presumptions in § 81-11 are invalid, it is the intent of this article that the presumptions be severed from the article.

§ 81-16. Violations and penalties. [Amended 2-24-1999 by Ord. No. 99-023; 9-24-2015 by Ord. No. 15-127]

The person responsible for the unauthorized sign(s) or handbill(s) may be punished as provided in Chapter 1, General provisions, § 1-25. and the minimum fine for violating this Chapter shall be not less than one hundred dollars ($100.00) except that in a civil claim by Public Works for restitution, no penal sanctions may be applied.

Any person who is convicted of violating this ordinance within one (1) year of the date of a previous violation and who was fined for the previous violation, shall be sentenced by a court to an additional fine as a repeat offender. The additional fine imposed by the court upon a person for a repeated offense shall not be less than the minimum or exceed the maximum fine fixed for a violation of the ordinance, but shall be calculated separately from the fine imposed for the violation of the ordinance.

ARTICLE II

(Reserved)*

***Editor's Note: Former Art. n, Election Campaign Material, consisting of §§ 81-9 through 81-15, adopted 12-19-1978 as Ord. No. S-168, was repealed 8-16-1995 by Ord. No. 95-067.**

Chapter 83

ALARM SYSTEMS

§ 83-1. Purpose.
§ 83-2. Definitions.
§ 83-3. Permit required; fee; application; false statements; nontransferability; exemptions.
§ 83-4. Apartment complexes.
§ 83-5. Permit duration and renewal.
§ 83-6. Proper operation and maintenance.
§ 83-7. Indirect alarm reporting.
§ 83-8. Direct alarm reporting; automatic alarm notifications.
§ 83-9. Operating instructions.
§ 83-10. Dispatch records.
§ 83-11. False alarm notification.
§ 83-12. Suspension of permit.

[HISTORY: Adopted by the Council of the City of Jersey City 3-22-1995 as Ord. No. 95-020. Amendments noted where applicable.]

GENERAL REFERENCES

Noise — See Ch. 222, § 222-4

Security gates — See Ch. 278.

§ 83-1. Purpose.

A. The purpose of this chapter is to encourage security alarm users and alarm businesses (sales, installation, customer service and/or monitoring) to maintain the operational reliability and the proper use of alarm systems in limiting unnecessary police emergency responses to false alarms.

B. This chapter governs burglary systems, requires permits, establishes fees for use, provides for penalties for violations, establishes a system of administration and sets conditions for suspension or loss of permit.

§ 83-2. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

ALARM ADMINISTRATOR - A person or persons designated by the Director to monitor and review alarm permit holder applications, who is responsible for utilizing computerized police data to evaluate false alarms and make necessary notifications and issue bills for use under this chapter.

ALARM NOTIFICATION - A notification intended to summon the police by an alarm system that responds to a stimulus characteristic of unauthorized intrusion.

ALARM SITE - A single premise or location served by an alarm system or systems.

ALARM SYSTEM - A device or system that emits, transmits or relays a signal intended to summon, or that would reasonably be expected to summon, police services of the city, including but not limited to local alarms. "Alarm system" does not include:

A. An alarm installed on a vehicle unless the vehicle is permanently located at a site;

B. An alarm designed to alert only the inhabitants of premises that do not have a local alarm;

C. An alarm designed to be activated by an individual to alert about a robbery or holdup or personal attack in progress.

DIRECTOR - The Director of Public Safety or his designee. **[Amended 9-11-2013 by Ord. No. 13-081]**

FALSE ALARM NOTIFICATION (F.A.N.) - An alarm notification to the Department of Public Safety when the responding officers find no evidence of a criminal offense or attempted criminal offense. Excluded from this definition are alarms occurring during electrical storms, hurricanes, tornadoes, blizzards and acts of God. **[Amended 9-11-2013 by Ord. No. 13-081]**

LOCAL ALARM - An alarm system that emits a signal at an alarm site that is audible or visible from the exterior of a structure.

PERMIT HOLDER - The person designated in the application who is responsible for responding to alarms and giving access to the site and who is responsible for proper maintenance and operation of the alarm system and payment of fees.

§ 83-3. Permit required; fee; application; false statements; nontransferability; exemptions.
[Amended 9-11-2013 by Ord. No. 13-081]

A. A person is in violation of this chapter if he or she operates or causes to be operated an alarm system without a valid permit issued by the Department of Public Safety. A separate permit is required for each alarm system.

B. Upon receipt of a completed application form and payment of the fees set forth in Chapter 160, Fees and Charges, the Department of Public Safety shall issue an alarm permit to an applicant unless the applicant has: **[Amended 4-24-1996 by Ord. No. 96-033]**

(1) Failed to pay a fee assessed under this chapter; or

(2) Had an alarm permit for the alarm site revoked and the violation causing the revocation has not been corrected.

C. Each permit applicant must include the following information:

(1) The name, address and telephone number of the person who will be the permit holder and will be responsible for the proper maintenance and operation of the alarm system and payment of fees assessed under this chapter.

§ 83-9. Operating instructions.

A person in control of an alarm system, as a condition of being issued a permit, shall maintain at each alarm site a complete set of written operating instructions for each alarm system. Special codes, combinations or passwords should not be included in these instructions.

§ 83-10. Dispatch records.

A. The police dispatcher who dispatches a responding police unit to an alarm call shall record such information on designated Department of Public Safety forms as necessary to permit the Director to maintain records and ensure compliance with this chapter. **[Amended 9-11-2013 by Ord. No. 13-081]**

B. The responding police officer shall indicate on the dispatch record whether the notification was caused by a criminal offense, false alarm or an assumed false alarm ("apparently secure") disposition.

§ 83-11. False alarm notification.

A. The holder of an alarm permit or the person in control of the alarm system shall be subject to warnings, bills for service and suspension or revocation of his or her permit depending on the number of false alarm notifications (F.A.N.s) emitted from an alarm system within a twelve-month period, based on the following schedule: **[Amended 9-11-2013 by Ord. No. 13-081]**

Number of False Alarm Notifications	Action Taken
First	Telephone call and warning letter
Second	Telephone call and warning letter number 2
Third	Telephone call and warning letter number 3
Fourth and fifth	Bill for $100, each occurrence
Sixth and after	Bill for $100 and notice of proposed suspension and suspension of service pending a hearing with the Director of Public Safety to determine status of permit

NOTE: Beginning January 1 of each calendar year.

B. Any person who operates a newly installed system will not be penalized for any F.A.N.s during the first thirty-days following the system completion, provided that a permit application is received by the Department.

C. Any person operating a nonpermitted alarm system will be subject to a summons and will be assessed a one-hundred-dollar fee for each F.A.N., without benefit of the notifications provided for in this chapter.

D. Alarm activation caused by actual criminal offense or with evidence of a criminal attempt shall not be counted as an F.A.N.

E. At the discretion of the Director, his designee or the alarm administrator, multiple false alarm notifications within a twenty-four-hour period of time may be counted as only one (1) F.A.N. for the purpose of billing for violations under this chapter.

§ 83-12. Suspension of permit. [Amended 9-11-2013 by Ord. No. 13-081]

A. The sixth false alarm notification shall result in a notice of proposed suspension/revocation/loss of permit. The permit holder must:

(1) Respond to the notice of proposed suspension by acknowledging receipt of the same, in writing, to the Department of Public Safety; and

(2) Take immediate action to remedy the cause(s) of the faulty or false alarm problem and report such remedial action, in writing, to the Department of Public Safety in order to avoid revocation/ suspension/loss of alarm permit.

B. If the permit holder fails to respond to the notice or fails to remediate the false alarm problems, then the Department of Public Safety will revoke permit privileges, and the permit holder will be subject to penalties as provided for by law, as well as those specified in this chapter.

[The next page is 8401]

Chapter 84

ALCOHOLIC BEVERAGES AND CANNABIS*

ARTICLE I

Plenary Retail Consumption and Distribution Licenses

§ 84-1. Number of licenses limited.

§ 84-2. Creation of new licenses.

§ 84-3. Exceptions to license limitations.

§ 84-4. Plenary retail consumption licenses; restrictions.

§ 84-5. Geographical limitation on issuance of new licenses; license transfers.

§ 84-6. Plenary retail distribution licenses; proximity of licensed premises.

§ 84-6.1. Redevelopment areas.

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§ 84-7. Surrender, transfer or lapse of license; conditions for new license issuance.

§ 84-8. License fee.

§§ 84-9—84-13. Reserved.

§ 84-14. Municipal authority not affected.

§ 84-15. Death of licensee; continuance or renewal of license.

§ 84-16. "Lapse" defined.

§ 84-17. Amendments.

§ 84-18. License fees.

§ 84-19. Corporate structure changes of license; fee.

§ 84-20. Term of plenary retail consumption license.

§ 84-21. Application for plenary retail consumption license; deposit.

§ 84-22. Plenary retail consumption license; additional restrictions.

§ 84-23. Plenary retail distribution licenses; permitted hours of sale.

§ 84-23.1. Minimum age of bartenders.

§ 84-24. Sale of alcoholic beverages.

§ 84-25. Inspection of licensed premises; alteration of premises.

§ 84-26. Unlawfully stamped alcoholic beverage containers.

§ 84-27. Gambling devices.

§ 84-28. Sales to minors or intoxicated persons.

§ 84-29. Plenary retail consumption license; answer to questionnaire.

§ 84-30. Fingerprinting and photographing of plenary retail consumption licensee.

§ 84-31. Identification card required.

§ 84-32. New employees of plenary retail consumption licensees.

§ 84-33. Change of employment; notification of Board.

§ 84-34. Suspension or revocation of licenses; hearing before Board.

§ 84-35. Rights reserved by Council.

***Editor's note**—The title of Chapter 84 was amended August 18, 2021, by Ord. No. 21-053.

History—Adopted by the Council of the City of Jersey City May 4, 1971, as Ch. 4 of the 1971 Jersey City Code, as readopted September 19, 1978, by Ord. No. S-128. Amendments noted where applicable.

Cross references—Board of Alcoholic Beverage Control, Ch. 7; theft of cable services, Ch. 116; fees and charges, Ch. 160; dine-dance establishments, Ch. 175, Art. I; itinerant eating and drinking establishments, Ch. 175, Art. II; peace and good order, Ch. 242; solid waste, Ch. 287.

ARTICLE II
Special Permits to Sell Alcoholic Beverages

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Consumption in Public Places

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ARTICLE IV
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§ 84-50. Security.
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§ 84-52. Municipal support of cannabis establishments and distributors (classes 1—5).
§ 84-53. Cannabis consumption area.
§ 84-54. Sale of adult use cannabinoid items to minors prohibited.
§ 84-55. Violations; penalties.

ARTICLE I
Plenary Retail Consumption and Distribution Licenses

§ 84-1. Number of licenses limited.

A. No plenary retail consumption license to sell alcoholic beverages at retail shall be granted hereafter unless the number of such licenses issued and outstanding is fewer than 500, except as hereinafter set forth.

B. No plenary retail distribution license to sell alcoholic beverages at retail shall be granted hereafter unless the number of such licenses issued and outstanding is fewer than 70, except as hereinafter set forth.

C. No seasonal retail consumption licenses, no limited retail distribution licenses and no club licenses to sell alcoholic beverages at retail shall be granted.

§ 84-2. Creation of new licenses.

When the number of plenary retail consumption licenses or plenary retail distribution licenses issued and outstanding is fewer than the number specified above, additional licenses may be granted, but only in sufficient numbers so that the number of licenses outstanding will equal, but not exceed, the number specified in this article.

§ 84-3. Exceptions to license limitations. [Amended 10-30-2024 by Ord. No. 24-090]

Section 84-1 shall not apply to the renewal of licenses which are issued and outstanding, nor shall it apply to the transfer of such licenses from person to person nor to the renewal of licenses so transferred; provided, however, that the Municipal Council reserves the right of issuing plenary retail consumption licenses to any banquet hall with adequate kitchen facilities, new and bona fide restaurants, hotel premises, or any non-profit corporation operating an art-house theater, as defined by the laws of the State of New Jersey governing alcoholic beverages, notwithstanding any limitation in this article.

§ 84-4. Plenary retail consumption licenses; restrictions. [Amended 12-27-1984 by Ord. No. MC-758]

A. No plenary retail consumption license shall be granted for or transferred to any premises the entrance of which is within the area of a circle having a radius of 750 feet and having as its central point the entrance of an existing licensed premises covered by a plenary retail consumption license, shall be compelled to vacate the licensed premises for any reason that in the opinion of the Board of Alcoholic Beverage Control was not caused by any action on the part of the licensee, or, if the landlord of the licensed premises shall consent to a vacation thereof, the licensee may, in the discretion of the Board of Alcoholic Beverage Control, be permitted to have such license transferred to another premises within a radius of 1,000 feet measured from the entrance. The provisions of this subsection relating to distances between licensed premises shall not apply to the issuance or transfer of any license to premises which will be operated by the licensee as a bowling academy. The premises shall be deemed to be operated as a bowling academy if it contains four or more pairs of bowling alleys.

B. Whenever any municipal, county, state or federal government or agency acquires any property in accordance with law which results in or causes holders of plenary retail consumption or distribution licenses to vacate their premises thereby, the licensees may make application to the Board of Alcoholic Beverage Control for a transfer of their respective licenses, and the Board shall, in its discretion, grant the transfer of such license hereunder, provided that the licensee shall locate elsewhere and within a radius of 6,000 feet of the premises which the licensee has been or may be compelled to vacate.

§ 84-5. Geographical limitation on issuance of new licenses; license transfers. [Added 12-5-1990 by Ord. No. McC-240]

A. No plenary retail consumption license and no plenary retail distribution license shall be granted for or transferred to any premises located within the area bounded by Summit Avenue on the east, Bergen Avenue on the west and lying between Fairmont Avenue on the north and Communipaw Avenue and Grand Street on the south.

B. This section shall not apply to the transfer of a plenary retail consumption license or to the transfer of a plenary retail distribution license when the premises from which the license is being transferred is located within the area bounded by Summit Avenue on the east, Bergen Avenue on the west and lying between Fairmont Avenue on the north and Communipaw Avenue and Grand Street on the south.

§ 84-6. Plenary retail distribution licenses; proximity of licensed premises.

No plenary retail distribution license, excepting renewals or transfers from person to person, shall be granted for or transferred to the premises the entrance of which is within the area of a circle having a

radius of 750 feet and having as its central point the entrance of an existing licensed premises covered by a plenary retail distribution license. In the event that a licensee desires to transfer to the other premises, the licensee shall be permitted to do so within 750 feet of the premises wherein the licensee is located at the time of transfer but shall comply with the provision aforementioned when transferring to premises in excess of 750 feet from the premises from which a transfer is sought.

§ 84-6.1. Redevelopment areas. [Added 1-11-1995 by Ord. No. 94-141; amended 7-13-01 by Ord. No. 01-064; 6-29-2016 by Ord. No. 16-103]

A. Anything herein contained to the contrary notwithstanding, any existing plenary retail consumption license may be transferred from a premises within a redevelopment area or from a premises outside of a redevelopment area to:

(1) A restaurant located in a new building or renovated building within a redevelopment area.

(2) A restaurant located in a new retail shopping area within a redevelopment area.

(3) A restaurant located in a new mixed-use apartment building or renovated mixed-use apartment building within a redevelopment area.

(4) A hotel or motel containing one hundred (100) guest sleeping rooms or more.

B. Without limiting the generality of the foregoing, any transfer of a plenary retail consumption license that complies with the provisions of this subsection shall be permitted, notwithstanding that:

(1) The new building, renovated building, new mixed-use apartment building, renovated mixed-use apartment building or new retail shopping area is within 750 feet of an existing plenary retail consumption license; or

(2) The new building, renovated building, new mixed-use apartment building, renovated mixed-use apartment building or new retail shopping area is more than 1,000 feet from the premises from which the license is transferred.

C. Definitions. As used in this section, the following terms shall have the meanings indicated:

HOTEL - As defined in the Hotel and Multiple Dwelling Law (N.J.S.A. 55:13A).

MOTEL - As defined in the Hotel and Multiple Dwelling Law (N.J.S.A. 55:13A-3).

NEW BUILDING — A commercial building or a free standing garage with space reserved for either restaurant or neighborhood retail use, which has been constructed subsequent to January 1, 1985, or the construction of which is commenced subsequent to January 1, 1985.

NEW MIXED-USE APARTMENT BUILDING — A multi-family building which has been constructed subsequent to January 1, 1985, or the construction of which is commenced subsequent to

January 1, 1985 having at least 3 dwelling units each containing one or more rooms serving as the home or residence of any individual, family, or household with space reserved for either restaurant or neighborhood retail use.

NEW RETAIL SHOPPING AREA:

(1) A retail shopping mall; or

(2) A combination of a new retail space within the same redevelopment area, having at least fifty thousand (50,000) square feet of retail space which has been constructed subsequent to January 1, 1985, or the construction of which is commenced subsequent to January 1, 1985.

REDEVELOPMENT AREA — An area defined in N.J.S.A. 40A:20-3(f).

RENOVATED BUILDING — An existing building, seventy-five percent (75%) of the structure of which is rehabilitated subsequent to January 1, 1985.

RENOVATED MIXED-USE APARTMENT BUILDING — An existing building where seventy-five percent (75%) of the building was renovated subsequent to January 1, 1985 or the renovation of which is commenced subsequent to January, 1985 having at least three dwelling units each containing one or more rooms serving as a home or residence of any individual, family, or household with space reserved for either a restaurant or neighborhood retail use.

RESTAURANT:

(1) A place of business where food and drink are prepared and consumed on the premises; and

(2) The number of dining seats to bar seats are maintained at a four-to-one ratio, or a minimum of fifty-five percent (55%) of the restaurant facility's space is allocated to restaurant functions (i.e., kitchen, food-preparation area, storage, offices and nonbar seating).

D. Anything herein contained to the contrary notwithstanding, any existing plenary retail distribution license may be transferred from a premises within a redevelopment area or from a premises outside of a redevelopment area to a premises within the redevelopment area subject to the following conditions **[Added 3-10-2010 by Ord. No. 10-033]**:

(1) No plenary retail distribution license, excepting renewals or transfers from person to person, shall be granted for or transferred to the premises the entrance of which is within the area of a circle having a radius of five hundred twenty (520) feet and having as its central point the entrance of an existing licensed premises covered by a plenary retail distribution license.

(2) Transfer must be to a new building or renovated building within a redevelopment area; or

(3) Building or renovated building must be located in a new retail shopping area within a redevelopment area; or

(4) Premises must be located in a new mixed-use apartment building or renovated mixed use apartment building within a redevelopment area.

§ 84-6.2. Retail mall areas. [Added 6-25-1997 by Ord. No. 97-045: amended 9-8-2004 by Ord. No. 04-095]

A. Anything herein contained to the contrary notwithstanding, any existing plenary retail consumption license may be transferred from a premises within a redevelopment area or from a premises outside of a redevelopment area to:

(1) A restaurant located in a retail mall area located along Route 440, Jersey City, New Jersey, between Communipaw Avenue, Jersey City, New Jersey, and Danforth Avenue, Jersey City, New Jersey. Without limiting the generality of the foregoing, any transfer of a plenary retail consumption license that complies with the provisions of this subsection shall be permitted notwithstanding that:

(a) The retail mall area is within seven hundred fifty (750) feet of an existing plenary retail consumption license; or

(b) The retail mall area is more than one thousand (1,000) feet from the premises from which the license is transferred.

B. Definitions. As used in this section, the following terms shall have the meanings indicated:

RESTAURANT:

(1) A place of business where food and drink are prepared and consumed on the premises.

(2) A number of dining seats to bar seats are maintained at a four-to-one ratio or a minimum of fifty-five percent (55%) of the restaurant facility's space is allocated to restaurant functions (i.e., kitchen, food preparation area storage, offices and nonbar seating.)

RETAIL MALL AREA — A retail mall having at least one hundred thousand (100,000) square feet of retail space located along Route 440, Jersey City, New Jersey, between Communipaw Avenue, Jersey City, New Jersey, and Danforth Avenue, Jersey City, New Jersey.

§ 84-6.3. Restaurant Overlay Zones. [Added 9-8-1999 by Ord. No. 99-121]

Anything herein contained to the contrary notwithstanding, any plenary retail consumption license may be transferred to any premises located within a duly designated Restaurant Overlay Zone, as defined and designated in Section 345-56 and depicted on the Zoning Map of the City of Jersey City, without regard to the distance restrictions between licensed premises contained in this chapter.

§ 84-7. Surrender, transfer or lapse of license; conditions for new license issuance.

If any license is surrendered, transferred to another premises or is permitted to lapse, the Board of Alcoholic Beverage Control may grant a license for said premises, notwithstanding any limitation in this Article, provided that:

A. The owner of the premises filed a petition with the City Clerk accompanied by an application for a license in proper form requesting the Board of Alcoholic Beverage Control to grant a license for the premises.

B. The petition and application are filed within six months of the date that the license for the premises was surrendered, transferred or permitted to lapse.

C. The license applied for is of the same class as the one that was surrendered, transferred or lapsed.

D. The owners of the premises making application have held the fee simple Title to the premises for which application is made for a period of at least one year prior to the surrendering, transferring or lapsing.

E. The surrendering or lapsing is not the result of any action on the part of the owner who knowingly permitted a violation of the ordinances of the city, of the statutes of the State of New Jersey or of the rules and regulations of the Division of Alcoholic Beverage Control.

F. The owner of the premises making application, whether an individual, partnership or corporation, or any member of the family of said individual or partnership or stockholder in the corporation, had no interest whatsoever in the license surrendered, transferred or permitted to lapse for said premises. This provision shall not apply in the case of the lapsing of a license caused by a death in the family of an individual owner.

G. The petition and application is not filed for the purpose of circumventing the policy of the Council established herein to reduce the number of such licenses.

§ 84-8. License fee. [Amended 2-10-1983 by Ord. No. MC-296; 6-14-1995 by Ord. No. 95-050; 5-23-2012 by Ord. No. 12-072]

A. Each holder of a plenary retail consumption license shall pay the sum as provided in Chapter 160, Fees and Charges.

§§ 84-9—84-13. Reserved. [Repealed 5-23-2012 by Ord. No. 12-072]

§ 84-14. Municipal authority not affected.

Nothing in this Article shall affect the authority of the City of Jersey City to acquire and retire licenses pursuant to N.J.S.A. 40:48-2.39.

§ 84-15. Death of licensee; continuance or renewal of license.

In the case of the death of any individual licensee holding either a plenary retail consumption license or a plenary retail distribution license, the Board of Alcoholic Beverage Control may, after petition and application, grant the continuance or renewal to a member of the immediate family of the deceased licensee.

§ 84-16. "Lapse" defined.

As used herein, "lapse" means the failure to renew a plenary retail consumption license or a plenary retail distribution license.

§ 84-17. Amendments.

The Municipal Council hereby reserves the right to alter, amend or repeal this Article.

§ 84-18. License fees. [Amended 6-14-1995 by Ord. No. 95-050]

A. The annual license fee for the plenary retail consumption license shall be as provided in Chapter 160, Fees and Charges.

B. The annual license fee for the plenary retail distribution license shall be as provided in Chapter 160, Fees and Charges.

§ 84-19. Corporate structure changes of license; fee. [Amended 6-9-1981 by Ord. No. S-625; 6-14-1995 by Ord. No. 95-050]

A. There shall be a fee as provided in Chapter 160, Fees and Charges, charged to any licensee desiring a change in the corporate structure of the corporate license.

B. Any application for a change in the corporate structure of a retail consumption license or retail distribution license shall be accompanied by the payment of a fee as provided in Chapter 160, Fees and Charges, for processing and granting approval for said corporate structure changes.

§ 84-20. Term of plenary retail consumption license.

A plenary retail consumption license shall be for the term of one year beginning on July 1 of each year.

§ 84-21. Application for plenary retail consumption license; deposit.

Every application for a plenary retail consumption license shall be accompanied by the deposit of the prorated annual fee for such license.

§ 84-22. Plenary retail consumption license; additional restrictions. [Amended 6-9-1981 by Ord. No. S-623; 2-10-1983 by Ord. No. MC-296; 1-28-1992 by Ord. No. McC-405; 10-12-2005 by Ord. 05-144]

A. The holder of a plenary retail consumption license shall be entitled, subject to rules and regulations, to:

(1) Sell for consumption on the licensed premises any alcoholic beverage by the glass or open receptacle.

(2) Sell all alcoholic beverages in original containers for consumption off the premises between the hours of 9:00 a.m. and 10:00 p.m. only.

(3) Sell wine and malt alcoholic beverages in original containers for consumption off the premises during permitted business hours.

B. No holder of a plenary retail consumption license shall conduct the licensed business or suffer or permit any person whatsoever, except the licensee and the licensee's actual employees and agents, in or upon the licensed premises during other than the hours indicated. Hotels, restaurants and other operating businesses on the same licensed premises, other than for the sale of alcoholic beverages, may keep said premises open after the hours herein specified for the conduct of such other business only. There may be no glasses containing alcoholic beverages or open receptacles containing alcoholic beverages in or upon the licensed premises after the hours herein specified. **[Amended 8-16-17 by Ord. No. 17-103; 7-8-2018 by Ord. No. 18-078]**

(1) Outside the Downtown Restaurant Overlay Zone:

(a) Monday through Thursday, inclusive: 6:00 a.m. to 2:00 a.m. the following day;

(b) Fridays and Saturdays: 6:00 a.m. to 3:00 a.m. the following day;

(c) Sundays: 10:00 a.m. to 2:00 a.m., and

(d) New Year's Eve: the opening hours herein specified to 4:00 a.m. of the following day.

(e) As to golf facilities defined by N.J.A.C. 13:2-5.3 the hours of operation during any golf tournament or special event directly related to playing golf on Sunday shall be from 10:00 a.m. to 2:00 a.m.

(2) As to Restaurants within the Downtown Restaurant Overlay Zone;

(a) As used in this section, the term Restaurant shall mean a place of business where food and drink are prepared and consumed on the premises and which contains:

(i) A minimum of sixty percent (60%) of the total area of the licensed premises allocated to restaurant functions (i.e. kitchen, food preparation area, storage, offices and nonbar seating); and

(ii) A commercial kitchen as defined in N.J.A.C. 5:70-4.7(g).

(b) For a Restaurant as defined above, the permitted hours of operation shall be the same as for a restaurant located outside the Downtown Restaurant Overlay Zone, provided the kitchen of such Restaurant is open until 11:59 p.m. on Sundays through Thursdays and until 1:00 a.m. of the day following Fridays and Saturdays;

(c) For a Restaurant as defined above, Sundays through Thursdays, no entry of new patrons to the premises or the re-entry of patrons to the premises shall be permitted after 1:00 a.m. of the following day;

(d) For a Restaurant as defined above, Fridays and Saturdays, no entry of new patrons to the premises or the re-entry of patrons to the premises shall be permitted after 2:00 a.m. of the following day;

(e) All Restaurants located within the Downtown Restaurant Overlay Zone shall post in a conspicuous location on the front of the licensed premises a sign provided by the Division of Commerce listing the hours of operation and rules regarding entry and re-entry to the premises:

C. During hours of sales of alcoholic beverages hereinabove, all shades, screens and other obstructions whatsoever are prohibited and shall be removed so as to permit a clear view of the bar and the inside of the licensed premises.

§ 84-23. Plenary retail distribution licenses; permitted hours of sale. [Added 9-9-1999 by Ord. No. 99-121]*

A. The holder of a plenary retail distribution license shall be permitted to sell all alcoholic beverages during the following times only: **[Amended 12-13-2017 by Ord. No. 17-165]**

(1) Monday through Saturday, 9:00 a.m. to 10:00 p.m.; and

(2) Sunday, 12:00 noon to 10:00 p.m.; provided, however, that whenever Christmas Eve (December 24) and New Year's Eve (December 31) fall on Sunday, the holders of plenary retail distribution licenses shall be permitted to sell all alcoholic beverages beginning at 9:00 a.m.

B. No holder of such a license may sell or offer to sell any alcoholic beverage during any other time.

§ 84-23.1. Minimum age of bartenders.†

No licensee shall employ as bartender anyone under the age of 18 years.

§ 84-24. Sale of alcoholic beverages.

No sale shall be made of any distilled, fortified, rectified or blended alcoholic beverages for consumption on or off the licensed premises except beverages in bottles or other containers which are properly sealed, have affixed thereto all necessary federal stamps and comply with the standards of fill required by the state rules and regulations.

§ 84-25. Inspection of licensed premises; alteration of premises. [Amended 9-11-2013 by Ord. No. 13-081]

No license shall be granted unless the premises sought to be licensed has been inspected and approved by the Department of Public Safety. If the applicant fails to abide by any directions for a change in the premises sought to be licensed, the application shall be denied. If, after the granting of any application and the issuance of a license, the premises shall be altered or changed in any way contrary to the directions of the Department of Public Safety, the license may, after hearing, be revoked.

§ 84-26. Unlawfully stamped alcoholic beverage containers.

If any alcoholic containers, either filled, partly filled or empty, are found upon the licensed premises of any licensee without all lawful and proper stamps attached thereto or with forged, counterfeit or any unlawful stamps or if such stamps, whether attached to any container or not, shall be found upon licensed premises, then and in any of such events the license of the licensee may be revoked.

***Editor's note**—The hours of operation for holders of plenary retail distribution licenses are not affected by Ord. No. 99-121.

†**Editor's note**—This ordinance also provided for the renumbering of former § 84-23, Minimum age of bartenders, as § 84-23.1.

§ 84-27. Gambling devices.

If any gambling device, lottery or number slip is found in or about any licensed premises or on or about the person of any licensee, agent, bartender, waiter or any other employee of the licensee, the license of the licensee may be revoked after hearing as hereinafter provided for.

§ 84-28. Sales to minors or intoxicated persons.

No licensee shall sell any alcoholic beverage to any person under the age of 21 years or to any person actually or apparently intoxicated.

§ 84-29. Plenary retail consumption license; answer to questionnaire.

Every licensee and the licensee's agent, bartender, waiter or other employees shall make full and complete answers in writing on forms furnished by the ABC Board, herein occasionally referred to as the "Alcoholic Beverage Control Board," to all questions printed thereon as to the identity, character, antecedents and general experience of the licensee, agent, bartender and other employee.

§ 84-30. Fingerprinting and photographing of plenary retail consumption licensee. [Amended 9-11-2013 by Ord. No. 13-081]

Upon notification by the Alcoholic Beverage Control Board to a person that his or her application for a license has been approved, the licensee and every agent, bartender, waiter and other employee connected with or employed by or to be connected with or employed by the licensee shall, before the license is issued, permit the Department of Public Safety to take an impression of the thumb and fingertips of both hands. At the time of the taking of fingerprints, the licensee and every agent, bartender, waiter and other employee of the licensee or to be connected with or employed by the licensee shall furnish to the Alcoholic Beverage Control Board a photograph in triplicate of himself or herself. The photograph shall be of a size two inches by two inches, shall be satisfactory to the Board and shall have been taken within one year from the date when the photograph is submitted.

§ 84-31. Identification card required. [Amended 2-10-1983 by Ord. No. MC-296; 6-14-1995 by Ord. No. 95-050]

The Alcoholic Beverage Control Board shall furnish to the licensee and to every agent, bartender, waiter and other employee connected with or employed by the licensee an identification card showing compliance with the provisions of this Article which shall be on file on the premises of the licensee so that it can be exhibited upon demand at any time. Such identification shall expire on June 30 of each year, at which time new photographs shall be submitted, if requested by the Alcoholic Beverage Control Board, and the identification card holder shall pay a fee as provided in Chapter 160, Fees and Charges, for each original issue and renewal.

§ 84-32. New employees of plenary retail consumption licensees.

No licensee shall engage any agent, bartender, waiter or other employee in connection with the business of the licensee until or unless such person has conformed to the requirements of this Article.

§ 84-33. Change of employment; notification of Board. [Amended 9-11-2013 by Ord. No. 13-081]

Every agent, bartender, waiter or other employee of a licensee shall forthwith notify the Alcoholic Beverage Control Board of any change in employment, and any licensee employing any agent, bartender, waiter or other person who is the holder of an identification card from the Alcoholic Beverage Control Board shall forthwith report to the Department of Public Safety the employment of such persons.

§ 84-34. Suspension or revocation of licenses; hearing before Board.

Any license issued hereunder may be suspended or revoked by the Alcoholic Beverage Control Board for any violation of this Article. No suspension or revocation of any license shall be made until a five-day notice of the charges preferred against the licensee has been given to the licensee personally or by mailing the same by registered mail addressed to the licensee at the licensed premises and until a reasonable opportunity to be heard thereon has been afforded the licensee. The hearing shall be held before and conducted by the Alcoholic Beverage Control Board, which shall determine what action, if any, is to be taken. All suspensions or revocations of licenses shall be effected by notice in writing of such suspension or revocation, designating the effective date thereon and, in case of suspension, the term of such suspension, which notice may be served upon the licensee personally or by mailing it by registered mail addressed to the licensee at the licensed premises. Any revocation shall render the licensee ineligible to receive any other license hereunder for a period of two years from the effective date thereof and may, in the discretion of the Alcoholic Beverage Control Board, render the licensed premises ineligible to become a subject for any future license hereunder during the period of two years.

§ 84-35. Rights reserved by Council.

All licenses issued under this Article shall be subject to the rights hereby reserved by the Municipal Council to change, alter, amend or repeal this Article at any time.

ARTICLE II
Special Permits to Sell Alcoholic Beverages

§ 84-36. Application; fee. [Amended 6-14-1995 by Ord. No. 95-050]

Applications for special permits to sell alcoholic beverages shall be accompanied by payment to the City Clerk of a fee as provided in Chapter 160, Fees and Charges.

§ 84-37. Records to be kept.

The City Clerk shall keep a record of all applications for special permits to sell alcoholic beverages and the fees received by the Clerk, by virtue of services rendered in connection therewith, and such fees shall be paid monthly into the City Treasury.

ARTICLE III
Consumption in Public Places

[Added 11-9-1979 by Ord. No. S-306]

§ 84-38. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

ALCOHOLIC BEVERAGE - Any liquid intended for human consumption containing more than one-half of one percent (1/2 of 1%) of alcohol by volume.

PUBLIC PLACE - A place to which the public or a substantial group of persons has access, including but not limited to any highway, street, road, sidewalk, parking area, shopping area, place of amusement, playground, park or beach located within the city, except that the definition of a "public place" shall not include those premises duly licensed for the sale and consumption of alcoholic beverages on the premises or within their own private property.

§ 84-39. Public consumption restricted.

No person shall drink or consume an alcoholic beverage or possess, with intent to drink or consume, an open container containing an alcoholic beverage in any public place except at a block party, feast or similar function for which a permit has been issued.

§ 84-40. Possession; presumption of intent.

Possession of an open container containing an alcoholic beverage by any person shall create a rebuttable presumption that such person did intend to consume the contents thereof in violation of this Article.

§ 84-41. Exception.

Nothing in this Article shall be deemed to prohibit the consumption of an alcoholic beverage in any duly licensed establishment whose certificate of occupancy extends upon a street.

§ 84-42. Violations and penalties.

Any person who violates the provisions of this Article shall be punished as provided in Chapter 1, General Provisions, § 1-25.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 84-43. Possession and consumption on private property. [Added 5-9-2007 by Ord. No. 07-076]

I. Possession and Consumption on Private Property.

1. Restrictions and Penalties. Any person under the legal age to purchase alcoholic beverages who, without legal authority, knowingly possesses or who knowingly consumes any alcoholic beverage on private property shall be punished by a fine of Two Hundred Fifty Dollars ($250.00) for a first offense and Three Hundred Fifty Dollars ($350.00), for any subsequent offenses.

2. The court may, in addition to the fine authorized for this offense, suspend or postpone for six months the driving privilege of the defendant. Upon conviction of any person and the suspension or postponement of that person's driver's license, the Court shall forward a report to the State

Motor Vehicle Commission stating the first and last day of the suspension or postponement period imposed by the Court pursuant to this section. If a person at the time of the imposition of a sentence is less than seventeen (17) years of age, the period of license postponement, including a suspension or postponement of the privilege of operating a motorized bicycle, shall commence on the day the sentence is imposed and shall run for a period of six months after the person reaches the age of seventeen (17) years.

3. If a person at the time of the imposition of a sentence has a valid driver's license issued by this State, the Court shall immediately collect the license and forward it to the Motor Vehicle Commission along with the report. If for any reason the license cannot be collected, the Court shall include in the report the complete name, address, date of birth, eye color, and sex of the person, as well as the first and last date of the license suspension period imposed by the Court.

4. The Court shall inform the person orally and in writing that if the person is convicted of operating a motor vehicle during the period of license suspension or postponement, the person shall be subject to the penalties set forth in N.J.S.A. 39:3-40. A person shall be required to acknowledge receipt of the written notice in writing. Failure to receive a written notice or failure to acknowledge in writing the receipt of a written notice shall not be a defense to a subsequent charge of a violation of N.J.S.A. 39:3-40.

5. The Court shall, of any person convicted under this section who is not a New Jersey resident, suspend or postpone, as appropriate, the non-resident driving privileges in the State of New Jersey of the person based on the age of the person and submit to the Motor Vehicle Commission the required report. The Court shall not collect the license of a non-resident convicted under this section. Upon receipt of a report by the Court, the Motor Vehicle Commission shall notify the appropriate officials in the licensing jurisdiction of the suspension or postponement.

II. Exceptions.

1. This provision shall not apply to or prohibit an under aged person from consuming or possessing an alcoholic beverage in connection with a religious observance ceremony or rite, or consuming or possessing an alcoholic beverage in the presence of and with the permission of their parent, guardian or relative who has attained the legal age to purchase and consume alcoholic beverages. As used herein:

   "Guardian" means a person who has qualified as a guardian of the under aged person pursuant to testimony or court appointment.

   "Relative" means the under aged person's grandparent, aunt or uncle, sibling or any other person related by blood or affinity.

2. This provision shall not apply to or prohibit possession of alcoholic beverages by any such under aged person while actually engaged in performance of employment by a person or facility licensed under Title 33 of the Revised Statutes, or while actively engaged in the preparation of food while enrolled in a culinary arts or hotel management program at the county vocational school or post secondary educational institution; however, no ordinance enacted pursuant to this section shall be

construed to preclude the imposition of a penalty under this section, N.J.S.A. 33;1-81, or any other section of law against a person who is convicted of unlawful alcoholic beverage activity on or at premises licensed for the sale of alcoholic beverages.

3. If any section, paragraph, subparagraph, clause or provision of the Ordinance shall be adjudged invalid such adjudication shall apply only to the section, paragraph, subparagraph, clause or provision so adjudged and the remainder of this Ordinance shall be deemed valid and effective.

ARTICLE IV
Cannabis

§ 84-44. Definitions. [Added 8-18-2021 by Ord. No. 21-053; amended 4-27-2022 by Ord. No. 22-041]

As used in this article, the following terms shall have the meanings indicated:

"ADULT USE CANNABINOIDS" means:

1. Any tetrahydrocannabinols, artificially-derived cannabinoid, or hemp product or that is not subject to regulation pursuant to the Jake Honig Compassionate Use Medical Cannabis Act, New Jersey Compassionate Use Medical Marijuana Act, and/or Cannabis Regulatory, Enforcement Assistance, and Marketplace Modernization Act, or otherwise regulated by State law, and that is reasonably determined to have an intoxicating effect when ingested, smoked, or otherwise consumed;

2. Tetrahydrocannabinolic acids that are artificially or naturally derived;

3. Delta-8 THC;

4. optical isomers of delta-8-tetrahydrocannabinol or delta-9-tetrahydrocannabinol

"ADULT USE CANNABINOID ITEMS" means any products containing 0.5 milligrams or more of any combination of THC or adult use cannabinoids as defined herein, including delta-8 THC or delta-8-tetrahydrocannabinol, delta-10 THC, Tetrahydrocannabivarin ("THC-V"), THC-O-Acetate ("THC-O"), hexahydrocannabinol ("HHC"), or any other cannabinoids advertised by the manufacturer or seller as having an intoxicating effect;

"BOARD" means the Jersey City Cannabis Control Board.

"CANNABIS" means all parts of the plant Cannabis sativa L., whether growing or not, the seeds thereof, and every compound, manufacture, salt, derivative, mixture, or preparation of the plant or its seeds, except those containing resin extracted from the plant, which are cultivated and, when applicable, manufactured in accordance with P.L.2021, c.16 (C.24:6I-31 et al.) for use in cannabis products as set forth in this act, but shall not include the weight of any other ingredient combined with cannabis to prepare topical or oral administrations, food, drink, or other product. "Cannabis" does not include: medical cannabis dispensed to registered qualifying patients pursuant to the "Jake Honig Compassionate Use Medical Cannabis Act," P.L.2009, c.307 (C.24:6I-1 et al.) and P.L.2015, c.158 (C.18A:40-12.22 et al.); marijuana as defined in N.J.S.A. 2C:35-2 and applied to any offense set forth in chapters 35, 35A, and 36

of Title 2C of the New Jersey Statutes, or P.L.2001, c.114 (C.2C:35B-1 et seq.), or marijuana as defined in section 2 of P.L.1970, c.226 (C.24:21-2) and applied to any offense set forth in the "New Jersey Controlled Dangerous Substances Act," P.L.1970, c.226 (C.24:21-1 et al.); or hemp or a hemp product cultivated, handled, processed, transported, or sold pursuant to the "New Jersey Hemp Farming Act," P.L.2019, c.238 (C.4:28-6 et al.).

"CANNABIS CONSUMPTION AREA" means, as further described in section 28 of P.L.2019, c.153 (C.24:6I-21), a designated location operated by a licensed cannabis retailer or permit holder for dispensing medical cannabis, for which both a State and local endorsement has been obtained, that is either: (1) an indoor, structurally enclosed area of the cannabis retailer or permit holder that is separate from the area in which retail sales of cannabis items or the dispensing of medical cannabis occurs; or (2) an exterior structure on the same premises as the cannabis retailer or permit holder, either separate from or connected to the cannabis retailer or permit holder, at which cannabis items or medical cannabis either obtained from the retailer or permit holder, or brought by a person to the consumption area, may be consumed.

"CANNABIS CULTIVATOR" means any licensed person or entity that grows, cultivates, or produces cannabis in this State, and sells, and may transport, this cannabis to other cannabis cultivators, or usable cannabis to cannabis manufacturers, cannabis wholesalers, or cannabis retailers, but not to consumers. This person or entity shall hold a Class 1 Cannabis Cultivator license.

"CANNABIS DELIVERY SERVICE" means any licensed person or entity that provides courier services for consumer purchases of cannabis items and related supplies fulfilled by a cannabis retailer in order to make deliveries of the cannabis items and related supplies to that consumer, and which services include the ability of a consumer to purchase the cannabis items directly through the cannabis delivery service, which after presenting the purchase order to the cannabis retailer for fulfillment, is delivered to that consumer. This person or entity shall hold a Class 6 Cannabis Delivery license.

"CANNABIS DISTRIBUTOR" means any licensed person or entity that transports cannabis in bulk intrastate from one licensed cannabis cultivator to another licensed cannabis cultivator, or transports cannabis items in bulk intrastate from any one class of licensed cannabis establishment to another class of licensed cannabis establishment, and may engage in the temporary storage of cannabis or cannabis items as necessary to carry out transportation activities. This person or entity shall hold a Class 4 Cannabis Distributor license.

"CANNABIS ESTABLISHMENT" means a cannabis cultivator, a cannabis manufacturer, a cannabis wholesaler, or a cannabis retailer.

"CANNABIS ITEM" means any usable cannabis, cannabis product, cannabis extract, and any other cannabis resin. "Cannabis item" does not include: any form of medical cannabis dispensed to registered qualifying patients pursuant to the "Jake Honig Compassionate Use Medical Cannabis Act," P.L.2009, c.307 (C.24:6I-1 et al.) and P.L.2015, c.158 (C.18A:40-12.22 et al.); or hemp or a hemp product cultivated, handled, processed, transported, or sold pursuant to the "New Jersey Hemp Farming Act," P.L.2019, c.238 (C.4:28-6 et al.).

"CANNABIS MANUFACTURER" means any licensed person or entity that processes cannabis items in this State by purchasing or otherwise obtaining usable cannabis, manufacturing, preparing, and

packaging cannabis items, and selling, and optionally transporting, these items to other cannabis manufacturers, cannabis wholesalers, or cannabis retailers, but not to consumers. This person or entity shall hold a Class 2 Cannabis Manufacturer license.

"CANNABIS RETAILER" means any licensed person or entity that purchases or otherwise obtains usable cannabis from cannabis cultivators and cannabis items from cannabis manufacturers or cannabis wholesalers, and sells these to consumers from a retail store, and may use a cannabis delivery service or a certified cannabis handler for the off- premises delivery of cannabis items and related supplies to consumers. A cannabis retailer shall also accept consumer purchases to be fulfilled from its retail store that are presented by a cannabis delivery service which will be delivered by the cannabis delivery service to that consumer. This person or entity shall hold a Class 5 Cannabis Retailer license. **[Added 4-23-2025 by Ord. No. 25-045]**

"CANNABIS WHOLESALER" means any licensed person or entity that purchases or otherwise obtains, stores, sells or otherwise transfers, and may transport, cannabis items for the purpose of resale or other transfer to either another cannabis wholesaler or to a cannabis retailer, but not to consumers. This person or entity shall hold a Class 3 Cannabis Wholesaler license.

"COMMISSION" means the Cannabis Regulatory Commission established pursuant to section 31 of P.L.2019, c.153 (C.24:6I-24).

"CONSUMPTION" means the act of ingesting, inhaling, or otherwise introducing cannabis items into the human body.

"DELIVERY" means the transportation of cannabis items and related supplies to a consumer. "Delivery" also includes the use by a licensed cannabis retailer of any third party technology platform to receive, process, and fulfill orders by consumers, which third party shall not be required to be a licensed cannabis establishment, distributor, or delivery service, provided that any physical acts in connection with fulfilling the order and delivery shall be accomplished by a certified cannabis handler performing work for or on behalf of the licensed cannabis retailer, which includes a certified cannabis handler employed or otherwise working on behalf of a cannabis delivery service making off-premises deliveries of consumer purchases fulfilled by that cannabis retailer.

"DISTRIBUTE," "DISTRIBUTING," or "DISTRIBUTION" means to furnish, give away, exchange, transfer, deliver or supply, whether or not for monetary gain.

"HEMP" means the plant 9 Cannabis sativa L. and any part of that plant, including the seeds thereof and all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers, whether growing or not, with a delta-9 13 tetrahydrocannabinol concentration of not more than 0.3 percent on a dry weight basis.

"INDOOR PUBLIC PLACE" means a structurally enclosed place of business, commerce or other service-related activity, whether publicly or privately owned or operated on a for-profit or nonprofit basis, which is generally accessible to the public, including, but not limited to: a commercial or other office building; office or building owned, leased or rented by the State or by a county or municipal government; public and nonpublic elementary or secondary school building; board of education building; theater or concert hall; public library; museum or art gallery; bar; restaurant or other establishment where the

principal business is the sale of food for consumption on the premises, including the bar area of the establishment; garage or parking facility; any public conveyance operated on land or water, or in the air, and passenger waiting rooms and platform areas in any stations or terminals thereof; health care facility licensed pursuant to P.L.1971, c.136 (C.26:2H-1 et seq.); patient waiting room of the office of a health care provider licensed pursuant to Title 45 of the Revised Statutes; child care center licensed pursuant to P.L.1983, c.492 (C.30:5B-1 et seq.); race track facility; facility used for the holding of sporting events; ambulatory recreational facility; shopping mall or retail store; hotel, motel or other lodging establishment; apartment building lobby or other public area in an otherwise private building; or a passenger elevator in a building other than a single-family dwelling.

"MEDICAL CANNABIS" means cannabis dispensed to registered qualifying patients pursuant to the "Jake Honig Compassionate Use Medical Cannabis Act," P.L.2009, c.307 (C.24:6I-1 et al.) and P.L.2015, c.158 (C.18A:40-12.22 et al.). "Medical cannabis" does not include any cannabis or cannabis item which is cultivated, produced, processed, and consumed in accordance with P.L.2021, c.16 (C.24:6I-31 et al.).

"PUBLIC PLACE" means any place to which the public has access that is not privately owned; or any place to which the public has access where alcohol consumption is not allowed, including, but not limited to, a public street, road, thoroughfare, sidewalk, bridge, alley, plaza, park, playground, swimming pool, shopping area, public transportation facility, vehicle used for public transportation, parking lot, public library, or any other public building, structure, or area.

§ 84-45. Permitted classes. [Added 8-18-2021 by Ord. No. 21-053; amended 4-23-2025 by Ord. No. 25-045]

A. The following cannabis licenses shall be permitted to operation within Jersey City, subject to all applicable state and local regulations:

   a. Class 1 Cannabis Cultivator License, as set forth in N.J.S.A. 24:6I-37;

   b. Class 2 Cannabis Manufacturer license, as set forth in N.J.S.A. 24:6I-39;

   c. Class 3 Cannabis Wholesaler license, as set forth in N.J.S.A. 24:6I-40;

   d. Class 4 Cannabis Distributor license, as set forth in N.J.S.A. 24:6I-41;

   e. Class 5 Cannabis Retailer license, as set forth in N.J.S.A. 24:6I-42;

   f. Class 6 Cannabis Delivery license, as set forth in N.J.S.A. 24:6I-43

B. The following number of licenses are permitted for each class, subject to all applicable state and local regulations:

   a. Class 1 Cannabis Cultivator license: a total of three licenses.

   b. Class 2 Cannabis Manufacturer license: a total of three licenses.

   c. Class 3 Cannabis Wholesaler license: a total of three licenses.

d. Class 4 Cannabis Distributor license: a total of three licenses.

e. Class 5 Cannabis Retailer license: a total of 48 licenses, with no more than eight issued in each ward of the City.

i. A Class 5 Cannabis Retailer license may be issued in connection with an application made before the effective date of the limit on Class 5 Retail licenses which may exceed the ward limits or total limits.

ii. No Class 5 Cannabis Retailer license may be issued in connection with an application made after the effective date of the limit on Class 5 Retail licenses which would exceed the ward limits or total limits.

iii. Should a Class 5 licensee's location be redistricted into a different ward than when it was issued, the license shall not count against the new ward's eight license per ward limit.

f. Class 6 Cannabis Delivery license: no limit imposed a total of six licenses.

§ 84-46. Class 5 Cannabis Retail license permitted hours of operation. [Added 8-18-2021 by Ord. No. 21-053]

The holder of a Class 5 Cannabis Retail license shall be permitted to sell cannabis items and related supplies daily between the hours of 7:00 a.m.—11:00 p.m.

§ 84-47. Public consumption of cannabis. [Added 8-18-2021 by Ord. No. 21-053; amended 4-23-2025 by Ord. No. 25-045]

A. Consumption, smoking, vaping or aerosolizing any cannabis item in a public place is prohibited, including but not limited to, any public street, sidewalk, pedestrian plaza, parks, any public place pursuant to law that prohibits the smoking of tobacco, including N.J.S.2C:33-13 and the "New Jersey Smoke -Free Air Act," P.L.2005, c.383 (C.26:3D-55 et seq.) and any indoor public place, or portion thereof, with the exception of cannabis consumption areas.

B. It shall be unlawful for any person under 21 years old who, without legal authority, knowingly possesses or knowingly consumes a cannabis item, including by smoking, vaping or aerosolizing, on private property.

§ 84-48. Odor. [Added 8-18-2021 by Ord. No. 21-053]

A cannabis establishment and cannabis distributor shall have the equipment to mitigate cannabis-related odor. The building shall be equipped with a ventilation system with carbon filters sufficient in type and capacity to eliminate cannabis odors emanating from the interior of the premises. The carbon filters are required to be replaced regularly for the best effectiveness to mitigate odor. The ventilation system must be approved by the City of Jersey City Department of Health and Human Services.

§ 84-49. Product display and storage; signage for Class 5 Retail. [Added 8-18-2021 by Ord. No. 21-053; amended 4-23-2025 by Ord. No. 25-045]

A. No cannabis items shall be visible from a public sidewalk, street, or right-of-way, or any other public view. All cannabis items shall be stored indoors and on-site.

B. No cannabis establishment shall be housed in a vehicle or any movable or mobile structure. This prohibition shall not include vehicles used for delivery services conducted pursuant to a valid Class 6 license or Cannabis Regulatory Commission certification issued under N.J.S.A. 24:6I-44.

C. Class 5 Cannabis Retailers must post visible signage within the retail establishment about age requirements and the prohibition of using cannabis on City streets, sidewalks, and parks. Class 5 retailers that are not consumption areas must also post signage that using cannabis within retail facility is prohibited.

§ 84-50. Security. [Added 8-18-2021 by Ord. No. 21-053]

All cannabis establishments and cannabis distributors shall be secured and have full-time security protocols in place. Security protocols shall be submitted to the Jersey City Police Department for compliance review with all safety and security standards established by the State of New Jersey for cannabis establishments and distributors. The Jersey City Police Department may, at its discretion and upon review of the proposed location, recommend or require additional safety and security measures. At minimum, the following shall apply:

A. A video recording system shall be employed covering all areas of the cannabis establishment and cannabis distributor and adjacent exterior of building with a 24/7 recording system that records for a minimum of 30-day archive.

B. The premises and right-of-way adjacent to the cannabis establishment and cannabis distributor shall be monitored by staff of the establishment or distributor and kept free of loitering, litter and other debris and the sidewalks shall be swept and cleaned on a regular basis.

§ 84-51. Cannabis Control Board. [Added 8-18-2021 by Ord. No. 21-053; amended 1-26-2022 by Ord. No. 22-003; amended 4-23-2025 by Ord. No. 25-045]

1. Creation of Board, membership.

a. The Jersey City Cannabis Control Board is hereby established, and shall consist of seven members, to be appointed by the Mayor with the advice and consent of Council. All members shall be appointed to a term of three years.

b. In the case of any vacancy occurring before the expiration of any term, the appointment to fill such vacancy shall be only for the unexpired term. Such appointment shall occur as expeditiously as practicable.

c. The members of the Cannabis Control Board may be removed by the governing body for cause. Any board member missing three meetings in a calendar year shall be automatically removed from the board.

d. The Cannabis Control Board and the actions thereof are subject to the enabling authority of the State of New Jersey "Cannabis Regulatory, Enforcement Assistance, and Marketplace Modern-

ization Act" (the "Personal Use Act"), N.J.S.A. 24:6I-31 to 24:6I-56, and the "Jake Honig Compassionate Use Medical Cannabis Act," N.J.S.A. 24:6I-1 to 24:6I-30. Where a provision of this section is found to be inconsistent with the statutes and/or regulations of the State of New Jersey, the state statutes and/or regulations shall govern.

e. Only Jersey City residents may be appointed to the Board.

2. Responsibilities. The Cannabis Control Board shall be responsible for reviewing applications for the operation of Cannabis Establishments and Cannabis Distributors and applications for the operation of cannabis consumption areas.

a. The Cannabis Control Board shall establish a regular schedule of meetings, at least once a month or as often as required to meet the needs of its business, to handle emergencies, or to meet time constraints imposed by law.

b. The Division of Commerce may, at its discretion, create a schedule designating enrollment periods for submission, acceptance, and review of applications to the Cannabis Control Board for Class 1 through 6 licenses, including renewal applications and cannabis consumption area licenses, subject to state and local notice requirements. The Board may also adopt and revise as necessary rules of procedure and decorum to facilitate efficient and civil administration of its duties.

c. The Cannabis Control Board shall review applications for Cannabis Licenses or license renewals and shall make a written recommendation to the Municipal Council stating whether the Board recommends providing local support for the Cannabis License.

d. The Board's recommendation concerning Local Support to the Municipal Council resolution shall state:

1. Whether the application is for an authorized class of cannabis business;

2. Whether the approval of the license would exceed any local licensing limits;

3. Whether the Board recommends any preference in regards to the license; and

4. Whether the applicant has met the City's Local Licensing Requirements as set forth in this Chapter.

e. In addition to all the requirements of this chapter, for renewal applications, the Board shall consider:

i. Whether the business has received notices of violation from any enforcing authority or is the subject of litigation concerning violations of this chapter or any pertinent state or federal regulations;

ii. The business's community impact; and

iii. Anything else the Board deems necessary or appropriate in issuing its recommendation for local support.

f. Upon the issuance of a recommendation, the Board resolution shall be forwarded to the Municipal Council for consideration of its adoption. No application shall be deemed to have received local support prior to the adoption of a resolution by the Municipal Council.

g. The CCB shall provide a written report to the City Council on a quarterly basis, or at any rate no fewer than four times per year, on the status of their work, including but not limited to:

a. The number of applicants and the location(s) of any approved facilities;

b. The number of employees / qualifying microbusiness identifiers;

c. The percentage of ownership for each identified owner;

d. Proof of New Jersey residency;

e. The owner(s)' gender; and

f. The owner(s)' race, nationality, or ethnic group.

g. The Division of Commerce shall include in the Quarterly Report a list of Cannabis Retailers that have not opened within six months of obtaining a Resolution of Local Support.

3. Members of the CCB shall not have contact with applicants outside of a CCB meeting, unless the member is a City employee and such contact with an applicant is required for his/her official duties.

4. For any application for a license which contains a licensing limit or "cap" pursuant to § 84-45(B), the Cannabis Control Board may make a recommendation regarding prioritization of applicants for local support in connection with a new or renewed license. The Board shall consider its recommendation, in no particular order,

a. Whether applicants are:

i. A microbusiness as defined herein;

ii. A "social equity business" as defined in N.J.A.C. § 17:30-6.6;

iii. A Minority-Owned Businesses and/or a Woman-Owned Businesses;

iv. A Service-Disabled Veterans-Owned Business v. Individuals convicted of a cannabis-related offense prior to the effective date of the legalization of cannabis, or had a parent, guardian, child, spouse, or dependent, or was a dependent of an individual who, prior to the effective date of legalization of cannabis in New Jersey, was convicted of a cannabis-related offense.

b. Where there are multiple applicants competing for a license, the comparative strengths and weaknesses of each application as determined pursuant to § 84-52(B).

§ 84-52. Municipal support of cannabis establishments and distributors (classes 1—5). [Added 8-18-2021 by Ord. No. 21-053; amended 4-23-2025 by Ord. No. 25-045]

A. All applications received by the Commission for the operation of a Cannabis Establishment and Cannabis Distributors in Jersey City shall be sent to the Division of Commerce, within the time period set forth by the State, for municipal review. With the exception of applications for amended licenses pursuant to N.J.A.C. 17:30-90.2 which shall be reviewed by the Division of Commerce, the Division shall submit all completed applications to the Cannabis Control Board for the Board's review and recommendation. The Board's review shall be in addition to any other applicable local regulations.

B. The Cannabis Control Board shall review all applications to ensure compliance with Local Licensing Requirements and regulations governing the operation of cannabis establishments and cannabis distributors and, when the Board deems appropriate, to provide a recommendation of local support of the application in the form of a Board resolution.

   1. Local Licensing Requirements. In addition to any review and recommendation required by the New Jersey Cannabis Regulatory Commission or other state law or regulation, the City of Jersey City hereby implements the following Local Licensing Requirements, which shall be considered by the Cannabis Board in its review and recommendation to the Municipal Council:

      a. The applicant's community impact and outreach plan, and community feedback regarding the applicant;

      b. Whether the applicant's proposed location serves an area of need in the City;

      c. The current or proposed hiring practices employed by the applicant;

      d. The applicant and/or business owners' connection to Jersey City and the proposed area of the City the facility does or will serve;

      e. The applicant's commitment to Diversity and Inclusion best practices;

      f. The applicant's safety and security plans;

      g. The distance between the main entry door of the applicant's proposed location and any public or nonpublic elementary or secondary school building and/or parcel, which shall be no less than 200 feet; and

      h. Any other documents or information the Board deems necessary.

   2. No adult use cannabis establishment or distributor shall commence public operations in the City prior to receiving a determination of local support that is adopted by the City Council, and no facility may operate without payment of all necessary application fees or license fees established in this or any other Section, and issuance of all necessary state and local permits and licenses.

C. Each resolution of local support must be renewed annually. The annual fee for this review shall be as provided in Chapter 160, Fees and Charges.

D. An applicant must submit the following documents or information for the Board's evaluation:

   1. Names and residences of all persons financially interested in the business, and the nature and extent of this interest; and, if a corporation, the names, residences and citizenship of the officers,

directors and stockholders, and shall disclose whether the applicant has been convicted of any criminal or quasi-criminal offense, and if so, the date and place of such conviction and the nature of the offense;

2. Proof the cannabis establishment or cannabis distributor will be operated pursuant to all local and state regulations;

3. A Zoning Determination Letter confirming the use or class of establishment or distributor is a permitted in the proposed location and any necessary applications and/or approvals by the Jersey City Zoning Board, or other related boards;

4. Odor mitigating practices;

5. Safety and security plans and procedures;

6. A description of the proposed location, including the surrounding area and the suitability or advantages of the proposed location, along with a floor plan and optional renderings or architectural or engineering plans;

7. Plans to operate a cannabis consumption area, if applicable;

8. A community impact, social responsibility, and research statement, which shall include, but shall not be limited to the following:

    a. A community impact plan summarizing how the applicant intends to have a positive impact on Jersey City, which shall include an economic impact plan, and a description of outreach activities;

    b. A written description of the applicant's record of social responsibility, philanthropy, and ties to Jersey City;

    c. A written description of any research the applicant has conducted on the adverse effects of the use of cannabis items, substance abuse or addiction, and the applicant's participation in or support of cannabis- related research and educational activities; and

    d. A written plan describing any research and development regarding the adverse effects of cannabis, and any cannabis-related educational and outreach activities, which the applicant intends to conduct if issued a permit by the Commission, including the applicant's plan to implement or contribute to educational or training programs for individuals formally sentenced for marijuana-related charges to teach those individuals the legal marijuana industry within Jersey City.

9. A workforce development and job creation plan, which may include information on the applicant's history of job creation and planned job creation at the proposed cannabis establishment or cannabis distributor; education, training and resources to be made available for employees; any relevant certifications, and an optional diversity plan;

10. An attestation signed by a bona fide labor organization stating that the applicant has entered into a labor peace agreement with a bona fide labor organization. This requirement does not apply to a microbusiness applying for an annual license.

11. A business and financial plan;

12. A list of child care providers and substance abuse treatment facilities that are within 200 feet of a proposed Class 5 cannabis retail location. Distance shall be measured from the main entry door of the proposed Class 5 cannabis retail facility to the parcel boundary on which the child care provider or substance abuse treatment facility is located. The applicant shall request list of child care providers and substance abuse treatment facilities that are within 200 feet of the proposed Class 5 cannabis retail location from the Jersey City Department of Health and Human Services (HHS). The request shall be sent via certified and regular mail to HHS. HHS shall provide the list within 30 days. If HHS fails to provide the information within 30 days, the CCB may hear the application as long as proof of mailing to HHS is provided;

13. A list of any other Class 5 Cannabis Retailers operating within 600 feet of the main entry door of the applicant's proposed location. The applicant may request a list of Class 5 Retail cannabis locations operating within 600 feet of the main entry door of the proposed location from the Jersey City Division of City Planning, which shall provide the list within 30 days. If the Division of City Planning fails to provide the information within 30 days, the CCB may hear the application as long as proof of the request is provided.

14. A list of all schools within 1,000 feet of the proposed Class 5 Retail cannabis location pursuant to the Drug-Free School Zone map currently in effect pursuant to § 151-1 of the Jersey City Municipal Code.

15. Any other documents or information the City, the Cannabis Control Board, or applicant deem necessary; and

16. The CCB may require a Class 5 retail applicant to address concerns about the proximity of a proposed location to a substance abuse treatment facility, day care provider, public or nonpublic elementary or secondary school building, or other Class 5 Cannabis Retailers, and the Board may consider the applicant's response to those concerns in its evaluation of the City's Local Licensing Requirements.

E. Applicants shall give public notice for all applications made to the Cannabis Control Board at least ten days prior to the application's hearing date in the manner prescribed by § 345-19(C).

F. Jersey City encourages and promotes the participation of minority, women, and disabled veteran owned- businesses in the personal use cannabis industry in Jersey City.

G. The Office of the City Clerk shall promptly notify the New Jersey Cannabis Regulatory Commission of the adoption or denial of a governing body resolution providing local support and/or municipal preference.

§ 84-53. Cannabis consumption area. [Added 8-18-2021 by Ord. No. 21-053; amended 4-23-2025 by Ord. No. 25-045]

A. General. Jersey City may authorize the operation of locally endorsed cannabis consumption areas that are:

a. Operated by medical cannabis dispensaries, including any alternative treatment centers deemed to hold a medical cannabis dispensary permit pursuant to section 7 of P.L.2009, c.307 (C.24:6I-7), and clinical registrants within its jurisdiction, at which areas the on-premises consumption of medical cannabis may occur; or

b. Operated by Cannabis Retailers within its jurisdiction, at which areas the on-premises consumption of personal use cannabis may occur; or

c. Operated by medical cannabis dispensaries, including any alternative treatment centers deemed to hold a medical cannabis dispensary permit pursuant to section 7 of P.L.2009, c.307 (C.24:6I-7), within its jurisdiction that are also deemed to have, pursuant to that section, one or more Class 5 Cannabis Retailer licenses and for which the commission has correspondingly issued one or more licenses following receipt of the Jersey City's and Commission's approval to operate as a cannabis retailer pursuant to subparagraph (a) of paragraph (3) of subsection a. of section 33 of P.L.2021, c.16 (C.24:6I-46), or medical cannabis dispensaries and alternative treatment centers otherwise issued a license by the commission pursuant to P.L.2021, c.16 (C.24:6I-31 et al.), to simultaneously operate as a cannabis retailer, at which areas the on-premises consumption of both medical cannabis and personal use cannabis items may occur.

B. Local Endorsement.

a. No cannabis consumption area may be operated within Jersey City without the following:

1. A Class 5 Cannabis Retailer license issued by the State of New Jersey; and

2. Local endorsement of an application for a cannabis consumption area, in the form of a resolution recommending support approved by the Jersey City Cannabis Control Board and adopted by the Jersey City Municipal Council.

b. The City shall notify the State of its endorsement following the Municipal Council's adoption of a recommendation by the Cannabis Control Board.

c. Local endorsements shall be valid for one year and must be renewed annually. An application holding a valid consumption area license may elect to renew the consumption area license at the same time as its Class 5 Retailer license.

d. No recommendation of a local endorsement shall be issued by the Cannabis Control Board for a cannabis consumption area that would result in either a total of more than six such consumption areas Citywide or for more than one consumption area in a single ward of the City. Should a consumption area licensee's location be redistricted into a different ward than when it was issued, the license shall not count against the one license per ward limit.

e. No Cannabis Consumption Area shall be locally endorsed where the main entry door is located within 200 feet of any public or nonpublic elementary or secondary school building, playground, or place of worship.

C. Cannabis Consumption Area License

a. Applications for a Cannabis Consumption Area License shall be reviewed by the Cannabis Control Board, which shall make a written recommendation to the Municipal Council stating whether or not the Board recommends providing local support for the Cannabis Consumption Area License application.

b. The annual fee for this license shall be as provided in Chapter 160, Fees and Charges.

c. The Cannabis Control Board may recommend approval of a Cannabis Consumption Area Licenses, but the Cannabis Consumption License will not be issued or become effective until the applicant can show proof of State endorsement and compliance with all other local requirements.

d. Applications shall be filed with the Division of Commerce on forms approved by the Director of the Division of Commerce. The application shall contain the following:

1. Names and residences of all persons financially interested in the business, and the nature and extent of this interest; and, if a corporation, the names, residences and citizenship of the officers, directors and stockholders, and shall disclose whether the applicant has been convicted of any criminal or quasi-criminal offense, and if so, the date and place of such conviction and the nature of the offense;

2. Odor mitigating practices;

a. A description of the proposed location, including the surrounding area and the suitability or advantages of the proposed location, along with a floor plan and optional renderings or architectural or engineering plans;

3. All relevant land use approvals, including approved site plans;

a. A copy of the Class 5 Cannabis Retailer license associated with the proposed consumption area;

b. Safety and security plans and procedures; and

c. Any other documents and information the Division of Commerce deems necessary.

e. The proposed premise may be inspected by the Department of Housing, Economic Development, and Commerce, Department of Public Safety, and the Department of Health and Human Services for compliance with relevant laws and regulations.

D. Denial or Revocation of Endorsement or Cannabis Consumption Area License

a. The Cannabis Control Board may deny or revoke the endorsement and/or the Cannabis Consumption Area License at any time for good cause. Good cause shall mean:

1. The endorsed license holder or applicant has violated, does not meet, or has failed to comply with, any of the terms, conditions or provisions of this Chapter or related rules and regulations, any supplemental local laws, rules or regulations;

2. The endorsed license holder or applicant has failed to comply with any special terms or conditions that were placed on its endorsement by the State or Jersey City or the City of Jersey City; and

3. The premises have been operated in a manner that adversely affects the public health or the safety of the immediate neighborhood in which the consumption area is located.

b. A cannabis consumption area is prohibited from operating if either its endorsement or Cannabis Consumption Area License is revoked.

E. Location; time of operation; odor; and signage

1. Indoor cannabis consumption areas shall be permitted to operate daily between the hours of 12:00 p.m.—11:00 p.m.

2. Outdoor cannabis consumption areas shall be permitted to operate daily between the hours of 12:00 p.m.—11:00 p.m.

3. Cannabis consumption areas must comply with the odor and security requirements set forth in § 84-48 and § 84-50.

4. All cannabis consumption areas must be designated by conspicuous signage, which shall indicate whether the consumption area may be used for the on-premises consumption of medical cannabis, personal use cannabis items, or both.

§ 84-54. Sale of adult use cannabinoid items to minors prohibited. [Added 4-27-2022 by Ord. No. 22-041]

A. It shall be unlawful and a violation of this article to sell, or offer for sale, or distribute any adult use cannabinoid item to an individual under the age of 21 years.

B. Any person who sells any adult use cannabinoid items and who has reasonable cause to believe that a person who attempts to purchase the product is under 30 years of age shall require that the purchaser present identification that indicates his or her age.

C. A person may only sell adult use cannabinoid items products in a direct, face-to-face exchange between the retailer and the consumer. Self-service displays, vending machines, and delivery of adult use cannabinoid items are prohibited.

D. In addition to the authority and powers conferred herein, the health officer is authorized to suspend or revoke any license issued to a license holder in violation any of the provisions of this section. No suspension or revocation shall take place prior to the license holder having an opportunity to be heard upon at least ten days' notice.

§ 84-55. Violations; penalties. [Added 8-18-2021 by Ord. No. 21-053; amended 4-27-2022 by Ord. No. 22-041]

Any person or corporation convicted of violating any of the provisions of this chapter shall be subject to the penalties set forth in § 1-25.

Editor's note—Ord. No. 22-041, adopted April 27, 2022, renumbered former § 84-54 as a new § 84-55.

Chapter 87

AMUSEMENT DEVICES*

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***History**—Adopted by the Council of the City of Jersey City: Art. I, 5-4-1971 as Ch. 5, Art. III, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; Art. II, 5-4-1971 as Ch. 5, Art. IV, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; Art. III, 5-4-1971 as Ch. 5, Art. V, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.

Cross references—Alcoholic beverages, Ch. 84; fees and charges, Ch. 160; poolrooms, Ch. 248; vending machines, Ch. 329; zoning, Ch. 345.

ARTICLE I

Automatic Amusement Devices

[Adopted 5-4-1971 as Ch. 5, Art. III, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 87-1. Definitions. [Amended 12-13-1984 by Ord. No. MC-725; 10-23-1986 by Ord. No. C-306; 11-10-2010 by Ord. No. 10-139]

As used herein, the following terms shall have the meanings indicated:

AUTOMATIC AMUSEMENT DEVICE — any device which, upon the insertion of a coin or any other object, may be operated as a game or amusement, whether or not registering a score. The term includes but is not limited to amusement devices commonly known as "electronic video games," "pinball," "skill ball," "mechanical grab machines," "marble machines," "baseball," "bagatelle" and all similar devices under whatever name they may be designated. The term "device," as used in this Article, refers to "automatic amusement devices." Jukeboxes and pool tables are specifically excluded from this term.

BUSINESS PREMISES — any building, business, store, restaurant, tavern or other place to which the public is invited or may enter. The term "premises," as used in this Article, refers to "business premises" unless the context clearly indicates otherwise.

DIRECTOR — the Business Administrator.

DISTRIBUTOR — any person who supplies or offers to supply by sale, lease or any other manner automatic amusement devices to any other person.

HEARING OFFICER — the Business Administrator or his or her designee. **[Added 6-9-1988 by Ord. No. C-731; amended 12-30-1992 by Ord. No. 92-190]**

LICENSE SUPERVISOR — the Supervisor in charge of processing applications for licenses, as provided for in this Article, and the collection of the license fee.

OPERATOR — any person who owns, leases, rents or operates any premises on which any automatic amusement device is kept for use by the public.

PERSON — any individual, firm, corporation, partnership, association or entity.

§ 87-2. Operator's license required; application. [Amended 12-13-1984 by Ord. No. MC-725]

A. No person may keep any automatic amusement device in any business premises unless that person has first secured an operator's license issued by the License Supervisor for each device. No operator's license shall be issued unless the licensed premises complies with the requirements of the construction, fire safety, property maintenance and health codes of the City of Jersey City.*

*Editor's Note: See Ch. 131, Uniform Construction Codes, Ch. 254, Property Maintenance, and Ch. 182, Health and Sanitation.

B. No person may distribute any automatic amusement device unless that person has first secured a distributor's license issued by the License Supervisor.

C. Applications for licenses shall be made to the License Supervisor on a form provided by the License Supervisor for that purpose.

D. The License Supervisor shall furnish each holder of an operator's license with a sticker bearing the license number and expiration date of each automatic amusement device license which shall be affixed to each licensed device on a location visible to the public.

E. No distributor may keep or display unlicensed automatic amusement devices in the same premises with licensed devices, nor may any unlicensed devices be kept for storage in any area accessible to the public.

§ 87-3. Contents of application. [Amended 12-13-1984 by Ord. No. MC-725]

Applications for automatic amusement device licenses shall contain the following information:

A. The name and address of the applicant. Applications for an operator's license shall show the location of the premises where the devices are to be kept. If the applicant is a partnership or corporation, the names and addresses of all partners or stockholders and their respective interests shall also be shown. Applications shall also list all the persons, partners, officers and stockholders who owned an interest in the business for a period of six months prior to the date of the application and the extent of their interest.

B. Applications for a distributor's license shall show the name and address of the applicant and the location of the applicant's principal place of business. If the applicant is a partnership or corporation, the names and addresses of all partners or stockholders and their respective interest shall be shown. Applications shall also list all the persons, partners, officers and stockholders who owned an interest in the business for a period of six months prior to the date of the application and the extent of their interest.

C. Applications for an operator's license for a premises for which a retail liquor consumption or distribution license has been issued shall indicate the current number of such consumption or distribution license.*

D. A detailed description of the devices for which an operator's license is sought.

E. The name and address of the person from whom such devices are to be purchased, leased or otherwise obtained.

F. The name and address of the manufacturer of such devices.

G. A copy of the agreement governing the acquisition and installation of such device.

***Editor's Note: See Ch. 84, Art. I, Plenary Retail Consumption and Distribution Licenses.**

H. Photographs of the area in which the devices are or are to be located. **[Added 10-23-1986 by Ord. No. C-306]**

I. Any other information which the License Supervisor shall consider relevant and necessary for the full protection of the interests of the public. **[Amended 10-23-1986 by Ord. No. C-306]**

§ 87-4. Investigation of applicant; approval or disapproval; hearing. [Added 12-13-1984 by Ord. No. MC-725; 10-23-1986 by Ord. No. C-306; 6-9-1988 by Ord. No. C-731; 12-30-1992 by Ord. No. 92-190; 9-11-2013 by Ord. No. 13-081]

A. The License Supervisor shall refer all applications for new licenses and thereafter, upon each fifth year of renewal, all renewal applications to the Director of the Department of Public Safety, the Superintendent of Buildings and the Health Officer, as provided in this section, for their review and recommendation.

B. The Director of the Department of Public Safety shall conduct an investigation of the applicant and shall submit a written recommendation to the License Supervisor based upon the applicant's business reputation and character, past business operations, convictions of any crime which may relate adversely to the conduct of the licensed premises and any other information the Director considers relevant to the operation of the licensed premises.

C. The Director of the Department of Public Safety shall review each application for compliance with the Fire Prevention Code of the City of Jersey City, shall inspect and test any automatic or other fire alarm system or fire extinguishing equipment and shall submit a written recommendation to the License Supervisor based upon his or her findings.

D. The Superintendent of Buildings shall review each applicant for compliance with construction, zoning and property management codes* and shall submit a written recommendation to the License Supervisor based upon his or her findings.

E. Where the application is for the licensure of an establishment which requires the issuance of a health license in accordance with Chapter 182, Health and Sanitation, of this Code, the Health Officer shall review each application for compliance with construction, zoning and property management codes and shall submit a written recommendation to the License Supervisor based upon his or her findings.

F. The recommendation of the Director of the Public Safety, Superintendent of Buildings and the Health Officer shall be submitted to the License Supervisor within 15 working days of the date said recommendations were requested. Failure to submit recommendations in a timely manner shall be a violation of the provisions of this Article and shall subject the violator to disciplinary action.

G. After receiving the recommendations of the Director of the Department of Public Safety, the Superintendent of Buildings and the Health Officer, the License Supervisor shall review each

***Editor's Note: See Ch. 131, Uniform Construction Codes, Ch. 345, Zoning, and Ch. 254, Property Maintenance.**

application, together with the recommendations furnished to the License Supervisor. The License Supervisor shall deny a license if the License Supervisor finds that **[Amended 11-10-2010 by Ord. No. 10-139]**:

(1) The applicant's business premises does not comply with the construction code and zoning ordinances of the city, the Fire Prevention Code of the city or the health and sanitary code;*

(2) The applicant's past business operations, business integrity or conviction of crimes warrants denial of a license;

(3) Issuance of the license would unreasonably increase pedestrian or vehicle traffic in the area approximate to the applicant's premises; or

(4) Issuance of a license would increase the incidence of disruptive conduct or unreasonably increase the level of noise in the area where the premises are located.

H. If the License Supervisor denies a license, the License Supervisor shall provide the applicant with a written notice which shall explain the reasons for denial.

I. Premises shall be available for inspection during the city's normal business hours.

J. If an application is denied, the applicant shall have the right to appeal to the Director within 10 days of the notice of denial of his or her application. An appeal from the denial of a license is taken by serving a written notice of appeal upon the Director and a copy thereof upon the License Supervisor. The notice of appeal shall set forth the name of the party taking the appeal and his or her address or the address of his or her attorney, if he or she is represented, and shall designate the decision appealed from and the basis of the appeal. Failure to comply with the requirements of the notice of appeal or the failure to submit complete information shall be grounds for such action as the Director deems appropriate, including rejection or dismissal of the appeal. The Director or the Hearing Officer shall set a time and place for a hearing not later than 20 days from the date of receipt of the notice of appeal. At such hearing, the applicant shall be afforded the opportunity to be represented by counsel and produce witnesses to sustain his or her appeal for the right to receive a license. The decision of the Director or the Hearing Officer shall constitute the final decision of the City of Jersey City on the application.

§ 87-5. License fees; expiration. [Amended 2-25-1982 by Ord. No. MC-123; 12-13-1984 by Ord. No. MC-725; 10-23-1986 by Ord. No. C-306; 6-9-1988 by Ord. No. C-731; 12-30-1992 by Ord. No. 92-190]

A. The fee for a operator's license shall be as provided in Chapter 160, Fees and Charges. **[Amended 6-14-1995 by Ord. No. 95-050]**

B. The fee for a distributor's license shall be as provided in Chapter 160, Fees and Charges. **[Amended 6-14-1995 by Ord. No. 95-050]**

***Editor's Note: See Ch. 131, Uniform Construction Codes, Ch. 182, Health and Sanitation, and Ch. 345, Zoning.**

C. No operator's license or distributor's license shall be transferable from person to person or from place to place. Licenses shall be valid only for the person and place designated in the license.

D. All licenses shall expire on December 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Licenses and Fees. **[Added 2-11-1998 by Ord. No. 98-004]**

§ 87-6. Gambling; duties of distributors; other licenses required; permitted hours; age limitations. [Amended 12-13-1984 by Ord. No. MC-725; 4-10-2024 by Ord. No. 24-014]

A. No distributor may distribute automatic amusement devices for the purpose of gambling with the exception of redemption amusement games.

B. All automatic amusement devices shall contain on a permanent place in view of the player and in a form approved by the License Supervisor a notice that the device may not be used for gambling purposes other than those redemption amusement games licensed and enumerated by the Legalized Games of Chance Control Commission in N.J.A.C. 13:3-7.9.

C. A distributor shall report to the License Supervisor, in a form and manner approved by the Supervisor, the name and address of the person and the premises to whom and to which an automatic amusement device has been delivered within seven days after delivery.

D. No person shall be granted any operator's license for a tavern unless such applicant is the holder of the plenary retail consumption license issued for such tavern or has a financial interest therein.

E. No person may permit the operation of an automatic amusement device in a tavern during hours when the tavern is prohibited from operating by regulations of the Board of Alcoholic Beverage Control.

F. No person under the age of 19 may operate an automatic amusement device in a tavern or any other premises used primarily for the consumption or serving of alcohol at any time.

G. Redemption amusement games shall not be operated or otherwise made available to the public for use outside the following hours:

1. Monday through Thursday, inclusive: 6:00 a.m. to 2:00 a.m. the following day;

2. Fridays and Saturdays: 6:00 a.m. to 3:00 a.m. the following day;

3. Sundays: 10:00 a.m. to 2:00 a.m., and

4. New Year's Eve: the opening hours herein specified to 4:00 a.m. of the following day.

§ 87-6.1. Redemption amusement games; definitions. [Added 4-10-2024 by Ord. No. 24-014]

AMUSEMENT GAMES LICENSING LAW — N.J.S.A. 5:8-78 through N.J.S.A. 5:8-130 and N.J.A.C. 13:3-1 through N.J.A.C. 13:3-7.10, including any amendments duly enacted subsequent to the effective date of this section.

COMMISSION — the Legalized Games of Chance Commission as that office is created and empowered under N.J.S.A. 5:8-78 et seq. and Reorganization Plan No. 004-1992, 24 N.J.R. 4462, November 30, 1992.

RECOGNIZED AMUSEMENT PARK — a commercially operated permanent business, open to the public at least thirty-one (31) consecutive days annually, the location of which is designed and themed for the primary purpose of providing participatory amusements incorporating skill-based attractions, rides or water slides licensed in accordance with N.J.S.A. 5:3-31 et seq., and food and merchandise concessions in permanent structures. Nothing in this definition shall prevent a license from being issued in any location which has had a license issued prior to the effective date of N.J.S.A. 5:8-78.1 et seq.

REDEMPTION AMUSEMENT GAME — a game certified as permissible by the Commission, pursuant to the Amusement Games Licensing Law, which is played for amusement or entertainment, which is a game in which the person or player actively participates, in which the outcome is not in the control of the operator or owner of the game and which is so conducted that when and where all of the players are present there occurs in continuous sequence, the sale of a right to participate, the event which determines whether a player wins or loses, and the awarded of a merchandise prize or nontransferable tokens or tickets which may be accumulated and which are immediately redeemable for a merchandise prize, provided, however, that the following are not redemption amusement games and are not eligible for license under this section: (1) bingo games; (2) draw raffles; and (3) games excluded from the scope of this section pursuant to Section 86-6.8.

§ 87-6.2. License required to operate redemption amusement games. [Added 4-10-2024 by Ord. No. 24-014]

No person shall own or operate within the City of Jersey City, any redemption amusement game without first having obtained a proper license from the Municipal Council issued pursuant to this section and the provisions of the Amusement Games Licensing Law.

§ 87-6.3. Application for license. [Added 4-10-2024 by Ord. No. 24-014]

Applications for a redemption amusement game license shall be filed with the Director of the Division of Commerce in the form prescribed by the Commission, and shall comply with all application requirements contained in the Amusement Games Licensing Law and this section.

§ 87-6.4. License issuance; term; certificate; display. [Added 4-10-2024 by Ord. No. 24-014]

A. Issuance. If the Municipal Council finds the applicant is in compliance with all applicable requirements of this section, the Municipal Council shall by resolution, in accordance with N.J.A.C. 13:3-1.13, authorize the issuance of a license. The resolution shall specifically recite the finding that the premises to be licensed are in a recognized amusement park or other resort in that part customarily constituting an amusement or entertainment area. Then, the Director of the Division of Commerce

shall issue the license certificate or certificates authorized and within three business days shall forward to the Commission a certified copy of the resolution along with a copy of the application endorsed to show the granting of a municipal license.

B. Amendments. Any license issued under this section may be amended, upon application made to the Director, if the subject matter of the proposed amendment could have been lawfully and properly included in the original license and upon payment of such additional license fee, if any, as would have been payable, if the amendment had been so included.

C. License term. Each license issued pursuant to this section shall be for a term of the calendar year which next follows the date of the resolution or if the applicant shall so request, for a term which commences on the date of the resolution and which expires on December 31 next following such date. Municipal licenses shall be inoperative until the licensee shall also, within ninety (90) days from the issuance and prior to the conduct or operation of redemption amusement games, receive from the Commission a State license authorizing the licensee to operate and conduct certain redemption amusement games according to the terms of the municipal license. Any license issued pursuant to this section shall also be inoperative during any period of suspension or revocation of such State license.

D. License certificate. The license certificate shall be in the form and manner prescribed by the Commission, in accordance with N.J.A.C. 13:3-1.14.

E. Display. Each license certificate and all other information required under the Amusement Games Licensing Law to be posted upon licensed premises, shall be conspicuously displayed at the place or places where the redemption amusement games are to be conducted at all times.

§ 87-6.5. Appeals. [Added 4-10-2024 by Ord. No. 24-014]

Appeals from the City's revocation or denial of a license are to be filed in accordance with the procedures in N.J.S.A. 5:8-109.

§ 87-6.6. Control and supervision. [Added 4-10-2024 by Ord. No. 24-014]

A. Licensed amusement games must be operated in a manner consistent with the Amusement Games Licensing Law.

B. Pursuant to N.J.S.A. 5:8-106, the Municipal Council shall have and exercise control and supervision over all amusement games held, operated, or conducted under such license with all the powers authorized or granted to it under the Amusement Games Licensing Law.

C. The Municipal Council, or its designee, may inspect or cause to be inspected all records that the licensee is required to prepare and maintain under the Amusement Games Licensing Law.

D. Prizes awarded as the result of play or use of redemption amusement games shall be in accordance with Amusement Games Licensing Law and N.J.A.C. 13:3-3.5.

§ 87-6.7. Penalty for violations; forfeiture of license for certain acts. [Added 4-10-2024 by Ord. No. 24-014]

Pursuant to N.J.S.A. 5:8-111, any licensee or principal thereof who shall make any false statement in any application for such license, or shall fail to keep such books and records as required to be kept under the Amusement Games Licensing Law, or shall falsify such books or records, or shall violate any of the provisions of the Amusement Games Licensing Law or of any of the terms of such license, shall be a disorderly person, and if convicted as such, shall in addition to any other penalties which may be lawfully imposed, forfeit any license issued to it under this section.

§ 87-6.8. Separate licenses required. [Added 4-10-2024 by Ord. No. 24-014]

A. There shall be issued to an applicant who shall qualify a separate license for each place at which the licensee is authorized to hold, operate, and conduct such redemption amusement games.

B. A separate license shall be issued for each specific kind of redemption amusement game, as listed in N.J.A.C. 13:3-7.9 authorized to be held, operated, and conducted on the licensed premises by the licensee.

§ 87-6.9. Scope of this section. [Added 4-10-2024 by Ord. No. 24-014]

Nothing in this section shall be deemed to require a license for the award of prizes as the result of successful play at any game which pursuant to common understanding, is a sport such as baseball, soccer, tennis or golf; or for the distribution without charge of rights to participate in amusements, as promotional inducement to persons to visit a premises licensed hereby; or for the award of the same prize value in respect to the play of any game or device, before or following each use of such device or play of such game and without regard to any particular score or outcome resulting therefrom. Games and game devices, the use or play of which does not result in any person receiving any merchandise, prize, additional right to play or participate without charge or other thing of value, are beyond the scope of this section. Also beyond the scope of this section is any carnival, fair or other activity held on an annual or other periodic or scheduled basis by a non-for-profit group or organization wherein amusement devices, structures or amusement rides are installed or used on a temporary basis.

§ 87-6.10. Recognized amusement parks. [Added 4-10-2024 by Ord. No. 24-014]

The following location is designated as an amusement park as defined in the Amusement Games Licensing Law of the State of New Jersey for the purposes of licensing pursuant to this chapter:

A. 99 Caven Point Rd., Jersey City, N.J. 07305

§ 87-7. Narcotics and illegal activities. [Added 12-13-1984 by Ord. No. MC-725]

A. No licensee may permit upon the licensed premises any unlawful possession of or any unlawful activity pertaining to narcotic or other drugs or other controlled dangerous substances as defined by the New Jersey Controlled Dangerous Substances Act (N.J.S.A. 24:21-1 et seq.) or any prescription legend drug, in any form, which is not a narcotic, depressant or stimulant drug or controlled dangerous substance as so defined.

B. No licensee may permit the licensed premises to be accessible to any premises upon which any illegal activity or enterprise is carried on or the licensed premises to be used in aid of or accessible to any illegal activity or enterprise.

§ 87-8. Unlawful acts. [Added 12-13-1984 by Ord. No. MC-725]

A. No licensee may engage in or permit upon the licensed premises:

(1) Any lewdness or immoral activity.

(2) Any brawl, act of violence, disturbance or unnecessary noise.

B. Nor may any licensee permit the licensed premises to be conducted in such a manner as to become a nuisance.

§ 87-9. Suspension or revocation of license. [Amended 12-13-1984 by Ord. No. MC-725]

The License Supervisor may suspend or revoke any license on three (3) days' notice if the licensee has violated any provision of this Article or any other ordinance or statute related to the operation of the licensed premises. A licensee whose license is suspended or revoked shall have the same right of appeal to the Director as upon disapproval of any original application.

§ 87-10. Attendant on premises required. [Added 12-13-1984 by Ord. No. MC-725]

A. The operator shall provide one (1) attendant over eighteen (18) years of age for every increment of one (1) to ten (10) automatic amusement devices kept on the premises. The requisite number of attendants shall be present at all times during which the public is invited to use the automatic amusement devices.

B. If more than three (3) devices are kept on the premises for use by the public, the attendant shall have no duties other than those exclusively related to supervision of the use and operation of the devices.

C. Each attendant shall be identified by an appropriate badge or other means of identification. The names of each attendant shall be furnished to the License Supervisor at the time of application.

§ 87-11. Minors. [Added 12-13-1984 by Ord. No. MC-725]

A. No operator may permit the use of any automatic amusement device by persons under the age of eighteen (18) years unaccompanied by a parent or legal guardian during the following hours:

(1) Between 8:00 a.m. and 4:00 p.m. on days when elementary, middle and secondary schools in the City of Jersey City are in regular session; and

(2) Between 10:00 p.m. and 8:00 a.m. every day.

B. The operator or the attendant in charge shall direct any minors present and unaccompanied by a parent or legal guardian to leave the premises at 10:00 p.m.; no such unaccompanied minor shall be admitted to the premises after 10:00 p.m. or before 8:00 a.m.

§ 87-12. Violations and penalties. [Added 12-13-1984 by Ord. No. MC-725[8]]

Any person convicted by the Municipal Court of the City of Jersey City for a violation of the provisions of this Article shall be punishable as provided in Chapter 1, General Provisions, § 1-25.

ARTICLE II
Mobile Amusement Devices
[Adopted 5-4-1971 as Ch. 5, Art. IV, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 87-13. Definitions.

As used herein, the following terms shall have the meanings indicated:

CAROUSELS, WHIPS and M. BILE AMUSEMENT DEVICES — Any and all forms of amusement devices, whether or not accompanied by music, mechanical or otherwise, or by entertainment of any kind, and whether or not providing rides or other amusement for patrons, where the amusement device may be moved from place to place with the purpose of soliciting patrons or attracting audiences.

LICENSE ISSUING AUTHORITY — As defined in Chapter 1, General Provisions.[9]

§ 87-14. License required; application.

No person shall operate or conduct a mobile carousel, whip or any other mobile amusement device unless such person shall first obtain a mobile amusement license. Application for such license shall be made to the license issuing authority upon a form to be supplied by him or her for that purpose.

§ 87-15. Contents of application.

A. The application for a mobile amusement license shall contain the following information:

(1) Name and address of the applicant.

(a) If a natural person, the age.

(b) If a corporation, the state under which incorporated and the date of incorporation, the address of the principal office and the names and addresses of officers.

(c) If any other type of organization, the name of the same and, if recorded, in what office and when and the names and addresses of the principal officers and directors.

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[8] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

[9] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

(2) Prior convictions of the applicant, if any, giving the crime for which convicted, the date of conviction and name of the court where convicted.

(3) Place or places where the device or devices will be operated.

(4) Description of the device to be covered by the license.

B. No license shall be issued to any applicant unless the applicant is 18 years or over and a citizen of the United States.

§ 87-16. Form of application; investigation. [Amended 8-13-1997 by Ord. No. 97-052]

A. Application for license shall be made in duplicate, one copy being referred to the Business Administrator and the other copy being retained by the license issuing authority.

B. The license issuing authority shall cause an investigation to be made to ascertain if the applicant is a person of good moral character and to determine whether the amusement device is in such a condition as to permit it to be operated in a safe manner. A report of such investigation shall be made to the Business Administrator.

C. No license shall be issued by the license issuing authority unless it is approved by the Business Administrator.

§ 87-17. License fee; expiration. [Amended 6-14-1995 by Ord. No. 95-050]

The fee for the issuance of a license under this article shall be as provided in Chapter 160, Fees and Charges, and the license shall be valid for one year from the date of its issuance.

§ 87-18. License to be posted; license nontransferable.

A. The license herein provided for shall be posted permanently and conspicuously on the amusement device so licensed.

B. Such license shall not be transferred from one person to another or from one amusement device to another amusement device.

§ 87-19. Restrictions; violations and penalties.

A. No person holding a license under this article shall permit any person under 18 years of age to play or operate the licensed device.

B. No person holding a license under this article shall permit the operation of the licensed amusement device before 11:00 a.m. or after 6:00 p.m. Such device shall not be operated within 600 feet of any church during religious services or within 600 feet of any school during school hours or within 600 feet of any hospital at any time. Such mobile equipment may be operated on Sunday, pursuant to these regulations.

C. No person shall be granted a license under this article unless the person first furnished evidence to the license issuing authority that he or she has secured a public liability

insurance policy in amounts of not less than $50,000 for one person and $100,000 for any one accident.

D. At the time of making application for a license under this article, the applicant shall deposit with the license issuing authority a bond in the sum of $1,000 conditioned upon saving harmless the city from any and all liabilities or causes of action which might arise by virtue of the granting of a license to the applicant and conditioned further that no damage shall be done to the streets, sewers, trees or adjoining property and that no dirt, paper, litter or other debris shall be permitted to remain upon the streets or upon any private property by such applicant. Such bond shall be canceled upon certification by the license issuing authority that all conditions of this article have been complied with.

E. Every applicant shall, before a license is issued, file with the license issuing authority a power of attorney constituting and appointing the City Treasurer his or her agent for the acceptance of service of process of any court of competent jurisdiction.

F. Any person violating any of the provisions of this article shall, upon conviction thereof, be punishable as provided in Chapter 1, General Provisions, § 1-25. **[Amended 6-14-1995 by Ord. No. 95-050]**

ARTICLE III
Jukeboxes
[Adopted 5-4-1971 as Ch. 5, Art. V, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 87-20. Definitions.

As used herein, the following terms shall have the meanings indicated:

DIRECTOR — The Director of the Department of Administration. **[Amended 8-13-1997 by Ord. No. 97-052]**

LICENSE ISSUING AUTHORITY — As defined in Chapter 1, General Provisions. **[Amended 6-14-1995 by Ord. No. 95-050]**

MUSIC DEVICE — Any playing machine, contrivance or device which, upon the insertion of a coin, slug, token, plate, disc or key into any slot, crevice or any other opening, or upon the payment of any price, operates or may be operated for the playing of records, or otherwise, of songs or music and shall include devices commonly known as "jukeboxes."

OPERATOR — Any individual, firm, member of a partnership, corporation or any officer, director or stockholder of any corporation or any agent or employee of any such firm,

(Cont'd on page 8711)

partnership or corporation who or which operates one (1) or more of the devices defined herein.

PUBLIC PLACE or QUASI-PUBLIC PLACE — Any building, store, marketplace, club, tavern, inn, cocktail lounge, restaurant, hotel, confectionary store or other place wherein the public is invited or wherein the public may enter.

§ 87-21. License required; application.

A. No person shall place, install, keep or operate any of the devices described herein in any public or quasi-public place owned or controlled by him or her within the confines of the city unless that person has first secured an operator's license issued by the Director. An operator's license shall be issued for each device in use within the confines of the city.

B. Application for such an operator's license shall be made to the license issuing authority on a form to be supplied for that purpose.

C. No such license shall be issued until the applicant produces a receipt from the City Treasurer showing the payment of the fees required therefor.

§ 87-22. Contents of application.

The application for the licenses required in this Article shall contain the following information:

A. All applications shall be made on forms furnished by the Director and shall show the name and address of the applicant and the location of the premises where the device is to be installed. If the applicant is a partnership, it shall show the names and addresses of all partners and their partnership interest. In case of a corporation, it shall show the names and addresses of the officers and stockholders for a period of six (6) months prior to the date of the application and their stock interest. All applications shall show whether any of the persons, partners, officers or stockholders have ever been convicted of a crime or a violation of any city ordinance and, if so, the nature of the crime or violation.

B. When an application is made for a license for a premises for which a retail liquor consumption or distribution license has been issued, the applicant shall indicate the current number of such license.[13]

C. A detailed description of the device for which an operator's license is sought.

D. The name and address from whom such device is to be leased, rented or otherwise obtained.

E. The name and address of the manufacturer of such device.

F. Terms of agreement governing the acquisition and installation of the device.

G. Any other information which the Director shall deem necessary and proper for the full protection of the interests of the public.

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[13] **Editor's Note: See Ch. 84, Art. I, Plenary Retail Consumption and Distribution Licenses.**

H. The application shall have annexed thereto an affidavit to be sworn to by the applicant.

I. The application shall be in triplicate and delivered to the Director, who shall promptly transmit one (1) copy thereof to the City Treasurer for filing.

§ 87-23. Investigation; hearing.

A. The Director shall, upon receipt of an application for an operator's license, cause an investigation to be made of the applicant. The Director shall request the various agencies of the city government having jurisdiction and control over the premises where the device is to be located to conduct an investigation and, upon receipt of the various reports, shall approve or disapprove the issuance of the license as the facts warrant.

B. The Director shall give immediate notice or certification of such approval or disapproval to the applicant and the City Treasurer.

C. The Director may request of any applicant for license hereunder to supply information supplementing the information given on the application.

D. On a request of the applicant or upon the Director's own motion, the Director may conduct a hearing to determine whether the license shall be issued. Ten (10) days' notice of the hearing shall be afforded the interested parties who may appear and submit evidence and witnesses in their behalf.

§ 87-24. License fee; expiration.

A. Fee for the issuance of an operator's license shall be as provided in Chapter 160, Fees and Charges.[14]

B. All licenses shall expire on December 31 of each year.

§ 87-25. Restrictions.

A. No person shall be granted a license to install, maintain or operate any device defined herein in a tavern unless such applicant is the holder of the retail plenary consumption license issued for such tavern or has an interest therein.

B. No person shall suffer, permit or allow the operation of such music device in a tavern during hours when the tavern is prohibited from operating by the rules and regulations of the Board of Alcoholic Beverage Control, the State Department of Alcoholic Beverage Control or the laws of the State of New Jersey.

C. It shall be solely within the discretion of the Director as to the number of licenses which may be issued for the operation of any music device at any one (1) premises.

D. The Director, for good cause shown and in the manner hereinafter set forth, may revoke the license of any operator of a music device if the Director finds that its continued

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14 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

operation is not in the best interests of the public health, safety or morals. The licensee shall forthwith, upon the order of the Director, remove from any premises any device upon a determination of the Director that it is to be withdrawn from operation.

E. Upon application to the Director, the Director may, in his or her discretion, permit a licensee to transfer an operator's license from one premises to another when the operator is moving his or her business to a new location.

F. If an operator sells his or her business, the operator's license may be transferred to a new owner upon the payment of a transfer fee as provided in Chapter 160, Fees and Charges, provided the application of the new owner is approved by the Director.[15]

§ 87-26. Suspension or revocation; hearing.

A. The Director shall have the power to suspend the license of any operator if the licensee directly or indirectly permits the operation of any device contrary to the provisions of this Article, the ordinances of the city and the laws of the State of New Jersey.

B. After hearing, the Director may revoke the license if the Director believes there is sufficient grounds for such action.

C. Before a hearing, every operator holding a license issued under this Article and who is the subject of disciplinary proceedings shall be served with a written specification of the charges preferred against the operator and shall have at least ten (10) days' notice of the hearing on the charges. At the hearing the licensee may be represented by counsel and present and submit evidence and witnesses in his or her defense.

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15 ***Editor's Note:*** **Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 90

ANIMALS*

ARTICLE I

Animals and Animal Facilities Generally

§ 90-1. Dangerous animals in public places.

§ 90-2. Animals and animal facilities constituting nuisances.

§ 90-3. Reserved.

§ 90-4. Animals running at large; impoundment.

Article II

Birds and Poultry

§ 90-5. Keeping of pigeons; consent of nearby occupants.

§ 90-6. Location; number restricted.

§ 90-7. License required; fee; expiration.

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§ 90-9. Revocation of license.

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Article III

Dogs and Other Animals

§ 90-12. Definitions.

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§ 90-15. Exceptions from fee provisions.

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§ 90-17—90-22. Reserved.

§ 90-22.5. Retail sale of dogs, cats, and rabbits by pet shops prohibited.

§ 90-23—90-28. Reserved.

ARTICLE I

Animals and Animal Facilities Generally

[Adopted 5-4-1971 as Ch. 6, Art. I, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 90-1. Dangerous animals in public places. [Amended 6-25-2025 by Ord. No. 25-066]

No person shall permit any bear or other noxious or potentially dangerous animal to run at large nor lead such animal, muzzled or unmuzzled, with a chain or rope or other appliance through any street, public place or public way of the city. This provision shall not apply to lawfully conducted circus or carnival parades or theatrical performances.

***History**—Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable.

Cross references—Division of Environmental Health, § 3-105; public assemblies, Ch. 122; fees and charges, Ch. 160; health and sanitation, Ch. 182; noise, Ch. 222; parks and recreation areas, Ch. 239; zoning, Ch. 345.

§ 90-2. Animals and animal facilities constituting nuisances. [Added 9-8-1988 by Ord. No. C-789; amended 9-13-2000 by Ord. No. 00-115; amended 6-25-2025 by Ord. No. 25-066]

A. No person may keep an animal, whether licensed or exempted from licensing, in any dwelling unit, structure or outdoor area if the Division of Animal Care and Control finds that such animals or the conditions in such facilities constitute a public health nuisance.

B. Whenever the Division of Animal Care and Control finds that any animals kept on private property constitute a nuisance to public health, it may direct the owner or persons responsible for the property or animals to abate the nuisance within a specified time. The Division of Animal Care and Control may direct the owner to remove one or more animals from the property, or to take any other action reasonably calculated to abate the nuisance.

C. If, after notification as provided for in Subsection B, the owner of the animals or the property harboring such animals shall not comply with such notice or order within the time specified, the Division of Animal Care and Control shall proceed to abate the nuisance and remove such animals or take other action in accordance with N.J.S.A. 26:3-50. The Division of Animal Care and Control, pursuant to N.J.S.A. 26:3-54, may bring a civil action to recover any and all costs incurred as a result of the abatement.

D. In the event that the Division of Animal Care and Control determines that the nuisance is an imminent danger to animals or public health, it may direct that the owner or persons responsible for the property or animals take immediate action to abate the conditions constituting the imminent danger. If the owner or persons responsible fail to take such immediate action, the Division of Animal Care and Control shall abate the imminent danger. If the owner or persons responsible for the property or animals are not available, the Division of Animal Care and Control may abate the imminent danger and provide notice immediately thereafter. The Division of Animal Care and Control, pursuant to N.J.S.A. 26:3-54, may bring a civil action to recover any and all costs incurred as a result of the abatement.

§ 90-3. Reserved.

Editor's note—Ord. No. 19-034, adopted April 24, 2019, amended the Code by repealing former § 90-3 in its entirety. Former § 90-3 pertained to cruelty to animals, and derived from Ord. No. C-789, adopted September 8, 1988.

§ 90-4. Animals running at large; impoundment.

Any animal led or permitted to run at large in violation of this article shall be impounded at the owner's expense until the penalty for the violation is paid.

ARTICLE II

Birds and Poultry

[Adopted 5-4-1971 as Ch. 5, Art. II, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 90-5. Keeping of pigeons; consent of nearby occupants. [Amended 6-25-2025 by Ord. No. 25-066]

No person shall keep any pigeons unless there is filed with the Health Officer and/or their designee the written consent of a majority of the occupants of the premises in the block and square in which pigeons are to be kept.

§ 90-6. Location; number restricted.

No pigeons, chickens or other poultry shall be kept within 25 feet of any structure owned by another and used for human habitation, occupation or assembly, provided that in no case shall any person or persons be permitted to keep more than 50 chickens, ducks or other poultry, including pigeons. No pigeons, chickens or other poultry shall be permitted to run, fly or stray within 25 feet of such structure, provided that this shall not apply to homing pigeons.

§ 90-7. License required; fee; expiration. [Amended 4-12-1988 by Ord. No. C-730]

No person shall keep pigeons, chickens or other poultry without having first obtained a license from the license issuing authority. The annual fee shall be as set forth in Ch. 160, Fees and Charges, and licenses shall expire on April 30 of each year.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 90-8. Requirements for housing or coops.

The following regulations and conditions for the keeping and housing of pigeons, chickens and other poultry shall be complied with.

A. The house or coop shall be dry and well ventilated, with windows so placed, if possible, as to admit sunlight.

B. The house or coop shall be well whitewashed or painted therein.

C. The house or coop shall be cleaned at least once a week between November 1 and May 1, twice a week between May 1 and November 1 and, if necessary, to be cleaned more often and to be disinfected.

D. Perches shall be removable and kept clean.

E. Chicken nests shall be removable, cleaned, aired and sunned at frequent intervals.

F. Drinking fountains in the area where the house or coop is located shall be cleaned and supplied at all times with clean water.

G. The yard in the area where the house or coop is located shall be clean and free from odors.

§ 90-9. Revocation of license.

If the above conditions and regulations are not complied with the license shall be revoked, provided that nothing herein shall apply to the pigeons, chickens or other poultry confined in coops in regular licensed markets or stores for the sale, slaughter and plucking of poultry.

§ 90-10. Revocation due to environmental changes. [Amended 6-25-2025 by Ord. No. 25-066]

Whenever, in the opinion of the Division of Animal Care and Control, the environment in an area has changed since granting the license to keep and maintain pigeons, chickens or other poultry therein to such an extent that the maintenance thereof may constitute a nuisance, such license may be revoked by the Health Officer and/or their designee.

§ 90-11. Procedure for revocation or suspension; hearing. [Amended 6-25-2025 by Ord. No. 25-066]

The Health Officer and/or their designee is hereby empowered to suspend or revoke the license held by any person who violates any of the provisions of this Article. No license shall be suspended or revoked until after a hearing. A notice of five days, in writing, stating the time and place of such hearing, shall be served upon the licensee.

ARTICLE III

Dogs and Other Animals

[Adopted 5-4-1971 as Ch. 6, Art. III, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 90-12. Definitions. [Amended 12-23-1987 by Ord. No. C-651; 6-25-2025 by Ord. No. 25-066]

As used herein, the following terms shall have the meanings indicated:

AT LARGE - Off the premises of the owner and not under the control of the owner, or the owner's agent or servant, by leash.

DOG — Any dog, bitch or spayed bitch.

DOG OF LICENSING AGE — Any dog which has attained the age of seven months or which possesses a set of permanent teeth.

KENNEL/DOG DAYCARE — Any establishment wherein or whereon the business of boarding, selling dogs or breeding dogs for sale is carried on, except a pet shop. **[Added 1-26-2011 by Ord. No. 11-003]**

KITTEN — A domestic cat less than one year of age. **[Added 12-13-2023 by Ord. No. 23-118]**

NEUTERED — An animal which has had a medical procedure lo remove its ability to procreate. **[Added 12-13-2023 by Ord. No. 23-118]**

OWNER — Every person having a right of property in a dog and every person who has such in his or her keeping.

PARK — Any property dedicated for recreational use by the public that also appears on the City's Recreation and Open Space Inventory under Chapter 239-18C. **[Added 11-9-2016 by Ord. No. 16-167]**

PET SHOP — Any room or group of rooms, cage or exhibition pen, not part of a kennel, wherein dogs for sale are kept or displayed. **[Added 1-26-2011 by Ord. No. 11-003]**

POTENTIALLY DANGEROUS DOG — As defined in N.J.S.A.. 4:19-23.

POUND — An establishment for the confinement of dogs impounded either under the provisions of this chapter or otherwise. **[Added 1-26-2011 by Ord. No. 11-003]**

PUBLIC PLACE — Includes every sidewalk, gutter, street, park or any other place within the city which is accessible to the general public.

PUPPY — A domestic dog less than six months of age. **[Added 12-13-2023 by Ord. No. 23-118]**

RABIES VECTOR SPECIES — An animal species designated by the State of New Jersey as a vector species for rabies transmission. **[Added 12-13-2023 by Ord. No. 23-118]**

SERVICE AREA — The City of Jersey City and any municipality to which the Division of Animal care and Control is contracted to provide animal control services. **[Added 12-13-2023 by Ord. No. 23-118]**

SERVICE DOG — Any guide dog, signal dog, or other dog individually trained to do work or perform tasks for the benefit of a person with a disability, including but not limited to guiding people with impaired vision, alerting people with impaired hearing to intruders or sounds, providing minimal protection or rescue work, pulling a wheelchair or retrieving dropped items, that qualifies for access to public accommodations under State or Federal law. **[Added 11-9-2016 by Ord. No. 16-167]**

SERVICE DOG TRAINER — Any person who is employed by an organization generally recognized as reputable and competent to provide service dog training, and who is actually involved in the training process. **[Added 11-9-2016 by Ord. No. 16-167]**

VICIOUS DOG — as defined in N.J.S.A. 4:19-22.

§ 90-12.1. Prohibition against dogs in certain parks. [Added 11-9-2016 by Ord. No. 16-167]

All dogs, whether leashed or unleashed, shall be strictly prohibited from the following parks:

A. First Street Park; and

B. Paulus Hook Park.

Only a service dog accompanied by its owner or a service dog trainer shall be permitted in First Street Park or Paulus Hook Park and be exempt from the within prohibition. The restriction does not apply to dogs on leashes on public sidewalks.

§ 90-13. License and registration tag required; removal of registration tags. [Amended 1-26-2011 by Ord. No. 11-003]

A. Every owner of a dog of licensing age shall obtain a license and official registration tag for such dog and shall place upon such dog a collar or harness with the registration tag securely fastened thereto; provided, however, that any dog licensed in another state may be kept in the City of Jersey City for a period of 90 days: thereafter, the owner or custodian of such dog shall obtain a license and registration tag in accordance with this section.

B. Every owner of any newly acquired dog of licensing age or of a dog which attains licensing age shall obtain a license and registration tag for such dog within ten days after such acquisition or age attainment.

C. Applications for licenses shall state the following information:

(1) Breed.

(2) Sex.

(3) Age.

(4) Color and markings.

(5) Whether the dog to be licensed is of a long- or short-haired variety.

(6) Name and address of the person who shall keep such dog if different from the owner.

(7) Any other pertinent information required by the Division of Animal Care and Control, including certificate of rabies vaccine inoculation from a licensed veterinarian, or a certificate of exemption to the rabies inoculation from a licensed veterinarian as provided by the State Department of Health regulations.

D. No person, except an officer in the performance of his duties, shall remove a registration tag from the collar of any dog without the consent of the owner, nor shall any person attach a registration tag to a dog for which it was not issued.

§ 90-14. License and registration fees; expiration; license required for animal facilities; compliance with State Department of Health; exemption from individual dog license requirement. [Amended 12-4-1979 by Ord. No. S-315; 1-26-2011 by Ord. No. 11-003; amended 6-25-2025 by Ord. No. 25-066]

A. Dogs may be registered annually or for a three-year period as authorized by N.J.S.A.. 4:19-15.12. The annual license and three-year license and registration tag fees shall be as provided in Chapter 160, Fees and Charges, for each license and each registration tag. For each annual or three-year renewal, the fee for the license and registration tag shall be the same as for the original. The license and registration tag, and renewals thereof, shall expire on April 30 in each year or every third year. Such additional fee as established by the state and forwarded to the Department of Health shall also apply.

B. Any person who fails to apply for and procure a dog license or registration or renewal on or before May 31 of each year or every third year shall be subject to a late fee, which late fee shall be separate and apart from any penalties which may otherwise be imposed by this section or according to law.

C. Any person who keeps or operates or proposes to keep or operate a kennel, dog day care facility, pet shop, shelter or a pound shall apply to the Health Officer and/or their designee for a license to keep or operate such establishment.

D. The application shall describe the premises where the establishment is located or is proposed to be located, the purpose or purpose for which it is to be maintained, showing compliance with the local and state regulations governing location of and sanitation at such establishments.

E. All licenses issued for a kennel, dog day care facility, pet shop, shelter or pound shall state the purpose for which the establishment is maintained and all such licenses shall expire on June 30 of each year and be subject to revocation by the City on recommendations of the State Department of Health or the Division of Animal Care and Control of the municipality for failure to comply with the regulations of the State Department or the Jersey City Division of Animal Care and Control after the owner has been afforded a hearing by either the State Department or the Division of Animal Care and Control.

F. Any person holding a kennel, dog day care facility, pet shop, shelter or pound license shall not be required to secure individual licenses for dogs owned by such licensee and kept at such establishments; and such license shall not be transferable to another owner or different premises.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 90-15. Exceptions from fee provisions.

Dogs used as guides for blind persons and commonly known as "seeing eye" dogs, dogs used to assist handicapped persons and commonly known as "service dogs" and dogs used to assist deaf persons and commonly known as "hearing ear" dogs shall be licensed and registered as other dogs, but no fee shall be required therefor.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 90-16. Use of leash in public places; leash required off premises. [Amended 10-24-2007 by Ord. No. 07-168; 1-26-2011 by Ord. No. 11-003]

A. Except in an area designated as a dog run by the City of Jersey City Division of Parks and Forestry with official signage erected clearly indicating such dog run, no person who owns, keeps or harbors any dog shall suffer or permit it to be upon the public streets or in any of the public places of the city unless such dog is accompanied by a responsible person and is securely confined and controlled by one adequate leash not more than six feet long.

B. No dog kept in a kennel, dog day care facility, pet shop, shelter or pound shall be permitted off such premises, except on leash or in a crate or other safe control.

§ 90-17—90-22. Reserved.

Editor's note—Ord. No. 25-066, adopted June 25, 2025, repealed former §§ 90-17—90-22 in their entirety. Former §§ 90-17—90-22 originally derived from Ch. 6, Art. III, of the 1971 Jersey City Code, and were readopted by Ord. No. S-128, adopted September 19, 1978. Former § 90-17 pertained to duties of vicious or dangerous dog owners, and was amended by Ord. No. C-651, adopted December 23, 1987. Former § 90-18 pertained to rabies testing, and former § 90-19 pertained to noisy dogs. Former § 90-20 pertained to removal and disposal of animal feces; animals not permitted access nor permitted to urinate or defecate within designated pet-free zone(s) within public parks; and derived from Ord. No. 5-123,

adopted January 2, 1980; and Ord. No. 00-150, adopted October 25, 2000. Former § 90-21 pertained to enforcement, and derived from Ord. No. 95-050, adopted June 14, 1995. Former § 90-22 pertained to violations and penalties, and derived from Ord. No. MC-733, adopted November 21, 1984; Ord. No. C-184, adopted February 27, 1986; and Ord. No. 95-050, adopted June 14, 1995.

§ 90-22.5. Retail sale of dogs, cats, and rabbits by pet shops prohibited. [Added 11-12-2025 by Ord. No. 25-113]

(1) A pet shop as defined in paragraph (4) of this subsection, shall not sell or offer for sale a dog, cat, or rabbit.

(2) Nothing in paragraph (1) of this subsection shall be construed to prohibit a pet shop from offering space to either an animal shelter or to an animal rescue organization, as those terms are defined in paragraph (4), to showcase adoptable animals to the public; provided, however, that no such pet shop shall receive a fee for offering such space, nor shall such pet shops hold any ownership interest in any animal showcased for adoption.

(3) A pet shop that sells or offers for sale an animal in violation of paragraph (1), or that makes a provision of space in violation of subsection (2) shall be punished by a fine up to $2,000.00. Each sale or offer for sale of an animal in violation of subsection (1), and each provision of space in violation of subsection (2) shall constitute separate violations.

(4) As used in this subsection:

(i) "Animal rescue organization" shall have the meaning as defined in N.J.S.A. 4:19-15.1.

(ii) "Cat" means any member of the species Felis catus.

(iii) "Dog" means any member of the species Canis familiaris.

(iv) "Pet shop" means a commercial establishment that sells or offers for sale animals on its premises at retail, regardless of whether the establishment is licensed as a pet shop, kennel, or any other establishment type. The term "pet shop" does not include a person who sells or offers for sale only those animals that the person has bred and raised.

(v) "Rabbit" means any member of the species Oryctalogus cuniculus domesticus.

(vi) "Sell or offer for sale" means to display for sale or to exchange for consideration, adopt out, barter, auction, trade, lease, or otherwise transfer.

(vii) "Shelter" shall have the meaning as defined in N.J.S.A. 4:19-15.1.

(5) Nothing in this section shall be construed to prohibit animal rescue organizations or animal shelters from selling or offering for sale dogs, cats, or rabbits.

§ 90-23—90-28. Reserved.

Editor's note—Ord. No. 25-066, adopted June 25, 2025, repealed former §§ 90-23—90-28 in their entirety. Former § 90-23 pertained to fee for registration, and derived from Ch. 6, Art. III, of the 1971 Jersey City Code, readopted by Ord. No. S-128, adopted September 19, 1978; Ord. No. C-730, adopted April 28, 1988; and Ord. No. 95-050, adopted June 14, 1995. Former § 90-24 pertained to exotic animal acts, rides, performances,

and traveling exhibitions prohibited; former § 90-25 pertained to definitions; former § 90-26 pertained to exemptions; former § 90-27 pertained to implementation and enforcement; and former § 90-28 pertained to violations and penalties. Former §§ 90-24—90-28 were added by Ord. No. 16-138, adopted September 14, 2016.

Chapter 91

ANIMAL WELFARE COMMITTEE

§ 91-1.	Purpose and powers of the Committee.	§ 91-5.	Conflicts.
§ 91-2.	Membership.	§ 91-6.	Cooperation with City departments and agencies.
§ 91-3.	Committee meetings.	§ 91-7.	Suspension and cessation of the Committee.
§ 91-4.	Terms and removal.		

§ 91-1. Purpose and powers of the Committee. [Added 11-8-2023 by Ord. No. 23-110]

The Animal Welfare Advisory Committee's purpose is to advise the Mayor on animal care issues generally, and animal control and sheltering issues specifically. The AWAC is to:

A. Convene when called by the Committee's Chair to consider animal care, animal control, and animal sheltering issues.

B. Make recommendations to the Mayor on animal issues affecting Jersey City.

C. Recommend policy and guidelines as they pertain to animal welfare or animal care issues; provided, however, that the Committee's recommendation shall be limited to planning and programmatic review and shall not affect the decisions concerning operation, budget or personnel.

§ 91-2. Membership. [Added 11-8-2023 by Ord. No. 23-110]

The Animal Welfare Advisory Committee shall consist of up to 11 members appointed by the Mayor:

A. Two Municipal Council representatives or their designees;

B. One member with experience in animal rescue;

C. One member with experience in care of community cats including Trap, Neuter & Return;

D. One member with experience working in a licensed animal shelter, kennel, or veterinary office, which may include a facility contracted for these services by the City;

E. One member who is a New Jersey certified Animal Control Officer in good standing;

F. The Director of the City of Jersey City Department which administers or performs animal control services or their designee;

G. The Health Officer or their designee;

H. The Chief Municipal Prosecutor or their designee; and

I. Members of the public with relevant interest or experience.

The Chair of the Committee shall be appointed by the Mayor. The Mayor, at their discretion, may assign a staff member to serve as Committee Secretary. Those members who serve ex-officio (the Department Director, Health Officer and Chief Municipal Prosecutor) may designate a representative on a continuing or ad-hoc basis by notice to the Committee Chair.

§ 91-3. Committee meetings. [Added 11-8-2023 by Ord. No. 23-110]

A. Meetings may be held in-person, by online video conference, or by telephone as scheduled by the Committee Chair.

B. Each member has the responsibility to discuss, deliberate, and decide by agreement of a majority of currently appointed members on any recommendation of the Committee.

C. The Chair may invite presentations and participation from subject matter experts or others with relevant experience.

§ 91-4. Terms and removal. [Added 11-8-2023 by Ord. No. 23-110]

A. Other than the three committee members serving ex officio, the committee members shall serve two-year terms, and may be reappointed for not more than two additional terms, for not more than six consecutive years of service.

B. All members serve at the pleasure of the Mayor and can be removed at any time by the Mayor.

C. Vacancies may be filled by the Mayor for the remainder of the unexpired term.

§ 91-5. Conflicts. [Added 11-8-2023 by Ord. No. 23-110]

A. It is expected that Committee members have interests which could be or give the appearance of a conflict of interest. Committee members are required to identify any organizational affiliations and to avoid any action which could reasonably be interpreted as a use of their Committee membership to further their personal interest or that of any organization(s) or individual(s) with which they are affiliated.

B. A Committee member must withdraw from participation, discussion, or voting on any matter for which any family member, domestic partner, business associate or any other relationship of economic dependence has any financial interest or personal gain.

§ 91-6. Cooperation with City departments and agencies. [Added 11-8-2023 by Ord. No. 23-110]

All City departments and agencies, now existing or hereafter established, shall reasonably cooperate with and provide assistance to the committee as permitted by law.

§ 91-7. Suspension and cessation of the Committee. [Added 11-8-2023 by Ord. No. 23-110]

The Mayor has full discretionary authority over the duration of this Committee and hence the setting of its expiration date.

Chapter 93

AUCTIONEERS

§ 93-1. License required.
§ 93-2. Definitions.
§ 93-3. License fee; bond; expiration.
§ 93-4. Application; verification; sureties.
§ 93-5. Use of fees; license issuance.
§ 93-6. Complaints; hearings; revocation or suspension.
§ 93-7. Revoked licenses not reissued.
§ 93-8. Auctioneer record book.
§ 93-9. Inspection of record book.
§ 93-10. Advertising by licensed persons only.
§ 93-11. List of sale goods to be filed.
§ 93-12. Newspaper notice of auction sale; copies to be filed.
§ 93-13. Hours of sale.
§ 93-14. Information to be displayed.
§ 93-15. Use of signs or flags unlawful.
§ 93-16. Sales on streets or public places prohibited.
§ 93-17. Sale of certain items restricted.
§ 93-18. Seller or agent not to bid; exceptions.
§ 93-19. Exempt sales.
§ 93-20. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 5-4-1971 as Ch. 8, Art. I, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

GENERAL REFERENCES

Fees and charges — See Ch. 160.

§ 93-1. License required.

No person other than an auctioneer, licensed as hereafter provided, shall sell or offer for sale by auction any real estate, goods or other thing whatsoever.

§ 93-2. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

GOODS - Any goods, wares, works of art, commodities, compound or thing, chattels, merchandise or other personal property which may be carefully kept or offered for sale.

§ 93-3. License fee; bond; expiration.

A. The Municipal Council shall have the authority to grant an auctioneer license to any person being a citizen of the United States to engage in and carry on the business and occupation of auctioneer, or desiring to be so engaged, upon the payment of the sum as provided in Chapter 160, Fees and Charges, per year or for a fraction of a year, and such person filing a bond with two good sureties in the penal sum of $5,000, or a surety company bond in like sum to be approved by the Council conditioned upon

the faithful performance of the terms of this chapter. **[Amended 6-14-1995 by Ord. No. 95-050]**

B. All licenses shall expire on May 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Licenses and Fees. **[Amended 2-11-1998 by Ord. No. 98-004]**

§ 93-4. Application; verification; sureties.

No auctioneer license shall be granted to any person unless he or she shall present to the Council an application in writing, verified by the oath of such applicant, made before any person resident of Jersey City authorized to administer oaths or affirmations, setting forth that such applicant is a citizen of the United States and the name and addresses of his or her sureties or the name and address of the surety company who will execute his or her surety bond.

§ 93-5. Use of fees; license issuance.

A. The auctioneer license fees paid under and by virtue of this chapter shall be paid into the treasury of the city for the use of the city.

B. The license issuing authority of the city shall issue auctioneer licenses and affix the seal of the city thereto and shall keep a record of the licenses so issued in a book to be provided for that purpose.

§ 93-6. Complaints; hearings; revocation or suspension. [Amended 9-11-2013 by Ord. No. 13-081]

The Municipal Council, or upon its designation the Director of the Department of Public Safety, on complaint of any person having been defrauded by an auctioneer or by the clerk, agent or assignee of such auctioneer, doing business in the city, is authorized to hold a hearing upon the complaint, and if the charge shall, in their opinion, be sustained the Municipal Council shall revoke the license granted to such auctioneer and direct his or her bond to be forfeited; or upon the complaint of any person that any auctioneer has been guilty of misconduct relating to the business transacted under such auctioneer's license, is authorized to hold a hearing thereon and if the charge shall, in its opinion, be sustained the Council may suspend for a term not to exceed six months the license granted to such auctioneer.

§ 93-7. Revoked licenses not reissued.

No person whose auctioneer license has been revoked for cause shall again be licensed to carry on the business of an auctioneer in the city.

§ 93-8. Auctioneer record book.*

A. Every auctioneer or person engaged in the business of selling goods at auction, whether acting in his or her own behalf or as the officer, agent or representative of another, shall upon the receipt or

*Editor's Note: For statutory provisions relating to this topic, see N.J.S.A. 45:17-1.

acceptance by him or her of any goods for the purpose of sale at auction, and before offering the same or any part thereof for sale at auction, write or cause to be written in an auctioneer record book to be kept by him or her for the purpose:

(1) The name and address of the person who employed him or her to sell such goods at auction.

(2) The name and address of the person for whose benefit, behalf or account such goods are to be sold at auction.

(3) The name and address of the person from whom such auctioneer received or accepted such goods.

(4) The name and address of the person who was the owner, the authorized agent of the owner or the consignor of such goods immediately prior to the receipt of acceptance for the purpose of sale at auction of the same by such auctioneer.

(5) The location, with street and number, if any, of such goods immediately prior to the receipt or acceptance of the same by such auctioneer for the purpose of sale at auction.

(6) The date of the receipt or acceptance by such auctioneer of such goods for the purpose of sale at auction.

(7) The place, with street and number, if any, in which such goods are to be held, kept or stored until sold or offered for sale at auction.

(8) The place, with street and number, if any, in which such goods are to be sold or offered for sale at auction.

(9) A description of such goods, the quantity thereof and the distinctive marks thereof, if any.

(10) The terms and conditions upon which such auctioneer receives or accepts such goods for sale at auction.

B. Nothing herein stated shall apply to the sale of real property at auction.

§ 93-9. Inspection of record book.* [Amended 9-11-2013 by Ord. No. 13-081]

The auctioneer record book and the entries therein shall at all reasonable times be open to the inspection of the Director of the Department of Public Safety and any person who shall be duly authorized for that purpose by him or her.

§ 93-10. Advertising by licensed persons only.

No person shall represent or circulate or place before the public any announcement, nor insert or cause to be inserted in any city business or telephone directory any notice that such person conducts the business of an auctioneer, without having first obtained a license as herein provided.

‘Editor's Note: For statutory provisions relating to this topic, see N.J.S.A. 45:17-2.

§ 93-11. List of sale goods to be filed.

Every auctioneer or person engaged in the business of selling goods at auction, whether acting in his or her own behalf or as an official agent or representative of another, shall, prior to the holding of an auction sale, file with the licensing issuing authority a description of the goods to be sold, the quantity thereof and the distinctive marks thereon, if any, and no goods shall be added to the stock of goods described in the list filed with the license issuing authority, nor shall any goods be offered for sale by the auctioneer, unless the goods are described in the list as filed.

§ 93-12. Newspaper notice of auction sale; copies to be filed.

A. Every auctioneer shall, under his or her own proper name, give previous notice in one or more of the public newspapers printed in this city of every auction sale that he or she is about to conduct, and, in the event that he or she shall be connected with any person or firm, his or her name shall in all cases precede separately and individually the name of such person or the Title of the firm under which he or she transacts business.

B. Copies of said newspaper notice shall be filed with the license issuing authority with, and at the time of filing, the description of the goods provided in the preceding section of this chapter.

§ 93-13. Hours of sale.

All sales of goods by public auction by an auctioneer shall be made between 8:00 a.m. and 8:00 p.m.

§ 93-14. Information to be displayed.

Every auctioneer shall cause his or her name and license number to be conspicuously displayed at the time and place where an auction sale is held.

§ 93-15. Use of signs or flags unlawful.

No means of attracting the attention of purchasers, other than a sign or flag, shall be exposed or suffered to be permitted to be used at or near any place of sale, auction room, residence of an auctioneer or at or near any auction sale whatsoever.

§ 93-16. Sales on streets or public places prohibited.

No auctioneer shall sell or expose for sale at public auction or venue any goods upon any street or public place or sell or expose for sale such goods to any person or persons who, at the time of bidding, shall be upon the sidewalk of any street.

§ 93-17. Sale of certain items restricted.

On the sale of diamonds, precious stones or other jewelry, silver, silver-plated ware or optical goods at public auction the auctioneer shall cause to be delivered to any purchaser a signed document containing a description of the article sold and the representations made in regard thereto at the time of the sale. There shall be a tag on each article on which shall be printed or written a correct description of the article, and the purchaser shall have the right to return any of the goods mentioned in this section to the auctioneer at any time within five (5) days from the date of sale of such goods which shall not be of the quality represented to such purchaser, and the auctioneer shall forthwith return to the purchaser the price paid for the goods.

§ 93-18. Seller or agent not to bid; exceptions.

At public auctions, it shall not be lawful for the seller himself or herself to bid or to employ or induce any person to bid at such sale on his or her behalf or for the auctioneer to employ or induce any person to bid at such sale on behalf of the seller or knowingly to take any bid from the seller or any person employed by him or her; provided that this section shall not apply to any sale by or on behalf of any bank or trust company incorporated under the laws of the United States or any state or territory of stocks, bonds or other securities or obligations held by or for it as collateral security either for its own account or in any fiduciary or representative capacity, where the published notice includes a statement that the sale is subject to a right to bid on behalf of such bank or trust company.

§ 93-19. Exempt sales.

Nothing contained in this chapter shall be construed to affect sales by auction by any public official or officer who conducts sales by virtue of any legal proceeding or under a statute.

§ 93-20. Violations and penalties.[4]

A violation of any of the provisions contained in this Article shall, upon conviction by a court of competent jurisdiction, subject the violator to a fine or imprisonment, or both, as provided in Chapter 1, General Provisions, § 1-25, and shall be cause for the revocation of his or her license.

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[4] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 99

COSMETOLOGY*

ARTICLE I

Cosmetology Services

§ 99-1. Definitions.

§ 99-2. Licensing requirements

§ 99-3. License application.

§ 99-4. Expiration of license; renewal; posting.

§ 99-5. Eligibility for renewal.

§ 99-6. License fee.

§ 99-7. Compliance with additional regulations.

§ 99-8. License nontransferable.

§ 99-9. Suspension or revocation of license; hearing.

§ 99-10. Window and interior view to remain unobstructed.

§ 99-11. Certificate of registration required.

§ 99-12. Sanitary regulations to be posted.

§ 99-13. Enforcement; right of entry.

§ 99-14. Enforcement.

§ 99-15. Inspection fee.

ARTICLE II

Massage, Bodywork and Somatic Therapy Establishments

§ 99-16. Purpose.

§ 99-17. Definitions.

§ 99-18. Employment of unlicensed message, bodywork and somatic therapists prohibited; display of license.

§ 99-19. Massage and somatic therapy establishments to comply with health codes of the City of Jersey City; prices and standards for establishments to be posted; sanitary requirements for establishments.

Sec. 99-20. Conduct of massage, bodywork and somatic therapy.

§ 99-21. Minor patrons.

§ 99-22. Alcoholic beverages or controlled dangerous substances prohibited.

§ 99-23. Sleeping quarters.

§ 99-24. Exceptions.

§ 99-25. Violations and penalties.

***Editor's note**—Ord. No. 25-067, adopted June 25, 2025, amended the title of Ch. 99.

History—Adopted by the Council of the City of Jersey City: Art. I, 5-4-1971 as Ch. 8, Art. II, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; Art. II, 5-4-1971 as Ch. 8, Art. III, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; 8-10-2005 by Ord. 05-102. Amendments noted where applicable.

Cross references—Fees and charges, Ch. 160; health and sanitation, Ch. 182.

ARTICLE I

Cosmetology Services*

§ 99-1. Definitions. [Amended 6-25-2025 by Ord. No. 25-067]

As used in this Article, the following terms shall have the meanings indicated:

BARBERSHOP — As defined in the Cosmetology and Hairstyling Act of 1984 (N.J.S.A. 45:5B-1 et seq.)

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

BEAUTY CULTURE - Any or all work performed by any person usually called hairdressers, cosmetologists, cosmeticians, beauticians or beauty culturists in so-called hairdressing or beauty shops. Such work is for the cleanliness and beautification of the hair, such as arranging, modeling, dressing, brushing, beautifying, curling, waving, straightening, dyeing, tinting, permanent waving, cleansing, cutting, styling, singeing, bleaching or coloring. Such work also includes massaging, cleansing, stimulating, exercising or similar work upon the scalp, face, arms, hands or neck with the hands or by the use of mechanical or electrical appliances, with or without cosmetic preparations, external application of creams, tonics and soothing lotions and antiseptics for use with instruments or with the hands, and of the manicuring or pedicuring of fingernails or toenails and beautifying the hands or feet of males or females. Beauty culture also includes adding, removing, or otherwise utilizing hair extensions.

BEAUTY SHOP, BEAUTY SALON or HAIRDRESSING ESTABLISHMENT - Any place where the practice of beauty culture is engaged in or carried on.

COSMETOLOGY CLASS A - BEAUTY SALON with NAILS, NAIL SALON, DAY SPA

COSMETOLOGY CLASS B - BEAUTY SALON without nails, BARBERSHOP, TANNING BOOTH

DAY SPA — A personal service commercial establishment, which offers patrons multiple services including personal hygiene, grooming, skin care, relaxation therapy, hydrotherapy, sauna, and massage therapy which may offer incidental light nourishment or refreshments for patrons

MECHANICAL OR ELECTRICAL APPLIANCES — The use of vibrators, electric clippers, permanent wave machines, hair driers and electrical manicuring machines.

NAIL SALON — Any place where the primary business is the manicure or pedicure of finger or toe nails and beautification of the hands or feet of males or females.

***Editor's note**—Ord. No. 25-067, adopted June 25, 2025, amended the title of Art. 1.

History—Adopted 5-4-1971 as Ch. 8, Art. II, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; amended 8-16-1995 by Ord. No. 95-068; 8-10-2005 by Ord. 05-102]

TANNING SALON — Any establishment which has on its premises mechanical or electrical devices used for the tanning of the skin of males or females by artificial light. [6]

§ 99-2. Licensing requirements [Amended 6-25-2025 by Ord. No. 25-067]

No person shall use or maintain any premises as a beauty salon/barbershop/nail salon, or day spa unless he or she shall first obtain a barbershop license from the license issuing authority.

§ 99-3. License application. [Amended 6-25-2025 by Ord. No. 25-067]

A. No person shall be eligible to operate a beauty salon/barbershop/ and secure a license therefor who is not a registered barber under the laws of the State of New Jersey; or who suffers from a contagious, infectious or skin disease; or who has been twice convicted of violating the Sanitary Code within a period of two years.

B. Before any certificate of license shall be issued to open a beauty salon/barbershop, the shop shall be completely equipped and furnished pursuant to specifications to be compiled and furnished by the Health Officer, for which the applicant shall pay a fee as provided in Fees and Charges, to the Health Officer to pay for the costs of preparing the specifications.*

C. No specifications for the installation of equipment shall be furnished by the Health Officer until the Health Officer has passed upon the eligibility of the applicant for a license hereunder.

D. The applicant, upon receiving a license from the Health Officer that the beauty salon/ barbershop/nail salon, or day spa has been equipped pursuant to the aforesaid specifications, shall pay the current year's license in full.

§ 99-4. Expiration of license; renewal; posting. [Amended 6-25-2025 by Ord. No. 25-067]

A beauty salon/barbershop/nail salon, or day spa license shall be issued for the period of one year from the time of issuance and shall be renewed annually. It shall be posted in a conspicuous place in the barbershop at all times.

§ 99-5. Eligibility for renewal.

No renewal of a barbershop license shall be granted to a person who would not be eligible under the provisions of this Article for the issuance of an original license.

§ 99-6. License fee. [Amended 4-28-1988 by Ord. No. C-730; 6-25-2025 by Ord. No. 25-067]

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

The license fee for a beauty salon/barbershop/nail salon, or day spa shall be as provided in Chapter 160, Fees and Charges, per annum or any fraction thereof.

***Editor's note**—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 99-7. Compliance with additional regulations. [Amended 4-28-1988 by Ord. No. C-730; 6-25-2025 by Ord. No. 25-067]

Before a beauty salon/barbershop/nail salon, or day spa license shall be issued, the licensing issuing authority shall be satisfied that the applicant and the premises to be licensed meet the requirements of the license issuing authority regarding barbershops and barbershop operators.

§ 99-8. License nontransferable. [Amended 4-28-1988 by Ord. No. C-730; 6-25-2025 by Ord. No. 25-067]

A beauty salon/barbershop/nail salon, or day spa license shall not be transferable.

§ 99-9. Suspension or revocation of license; hearing. [Amended 6-25-2025 by Ord. No. 25-067]

The license issuing authority or the Health Officer and his or her designee reserves the right to suspend or revoke a license to conduct a beauty salon/barbershop/nail salon, or day spa after a hearing and may suspend the operation of a beauty salon/barbershop/nail salon, or day spa pending a hearing when in the judgment of the Health Officer such suspension is necessary for the protection of the public health.

Editor's note—Ord. No. 25-067, adopted June 25, 2025, amended the Code by repealing former § 99-9 and renumbering former § 99-10 as a new § 99-9. Former § 99-9 pertained to movement of equipment, and derived from the original codification of Art. I.

§ 99-10. Window and interior view to remain unobstructed. [Amended 6-25-2025 by Ord. No. 25-067]

Neither the window space nor clear interior view of any beauty salon/barbershop/nail salon, or day spa shall be obstructed at any time, by a sign, screen, nontransparent glass, shade, blind, door, shutter, merchandise or other article.

Editor's note—Ord. No. 25-067, adopted June 25, 2025, amended the Code by repealing former § 99-11 and renumbering former § 99-12 as a new § 99-10. See also editor's note, § 99-9. Former § 99-11 pertained to days and hours of operation, and derived from the original codification of Art. I, and Ord. 05-102, adopted August 10, 2005.

§ 99-11. Certificate of registration required. [Amended 6-25-2025 by Ord. No. 25-067]

No person shall practice or attempt to practice cosmetology services without a certificate of registration from the New Jersey State Department of Health.

Editor's note—Former § 99-13. See editor's notes, §§ 99-9 and 99-10.

§ 99-12. Sanitary regulations to be posted. [Amended 6-25-2025 by Ord. No. 25-067]

A copy of the sanitary regulations shall be kept posted conspicuously in every place licensed under this Article.

Editor's note—Former § 99-14. See editor's notes, §§ 99-9 and 99-10.

§ 99-13. Enforcement; right of entry. [Amended 6-25-2025 by Ord. No. 25-067]

All authorized representatives of the Department of Health and Human Services are vested with the authority to enforce this Article and shall have the right to enter upon and inspect any shop at any time

during business hours. All persons are hereby forbidden to interfere with or obstruct in any way such representatives of the Department of Health and Human Services while making an inspection, examination or survey of a barbershop.

Editor's note—Former § 99-15. See editor's notes, §§ 99-9 and 99-10.

§ 99-14. Enforcement. [Amended 6-25-2025 by Ord. No. 25-067]

The Health Officer or his or her designated agents are hereby authorized and directed to enforce this Article.

Editor's note—Former § 99-17. See editor's notes, §§ 99-9 and 99-10.

§ 99-15. Inspection fee. [Added 4-28-1988 by Ord. No. C-730; amended 6-14-1995 by Ord. No. 95-050; 6-25-2025 by Ord. No. 25-067]

The fee for inspection of a beauty salon/barbershop/nail salon, or day spa or other establishment offering the practice of beauty culture as defined in § 99-1 shall be as provided in Chapter 160-1(Q)(2), Fees and Charges, for each inspection as well as any applicable reinspection or late fees.

Editor's note—Former § 99-18. See editor's notes, §§ 99-9 and 99-10.

ARTICLE II

Massage, Bodywork and Somatic Therapy Establishments*

§ 99-16. Purpose. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

The City of Jersey City acknowledges that massage, bodywork and somatic therapy is a legitimate professional field that provides health benefits and that the Massage and Bodywork Therapist Licensing Act, N.J.S.A. 45:11-53 et seq. requires licenses for all those who engage in the practice of massage, bodywork and somatic therapy. The City nevertheless finds that the practice of such therapy by untrained and unlicensed practitioners can both cause injury and illness to clients and can encourage and foster prostitution. The purpose of this article is to provide standards to help assure that the practice of massage, bodywork and somatic therapy does not cause injury or disease to clients and does not degenerate into prostitution.

Editor's note—Former § 99-20. See editor's note, Art. II.

§ 99-17. Definitions. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

As used in this article, the terms "massage, bodywork and somatic therapies," "massage, bodywork and somatic therapist" and "massage, bodywork and somatic therapy establishment" shall be defined in accordance with their definitions in the Massage and Bodywork Therapist Licensing Act, N.J.S.A. 45:11-53 et seq.

Editor's note—Former § 99-21. See editor's note, Art. II.

§ 99-18. Employment of unlicensed message, bodywork and somatic therapists prohibited; display of license. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

***Editor's note**—Ord. No. 25-067, adopted June 25, 2025, amended the Code by repealing former § 99-19 in its entirety and renumbering former §§ 99-20—99-29. Former § 99-19 pertained to days and hours of operation, and derived from the original codification of this article.

A. No person shall practice massage or related therapies as a massage, bodywork, or somatic therapist employee or otherwise in the City of Jersey City unless he or she has a valid and subsisting massage, bodywork and somatic therapist's license pursuant to the Massage and Bodywork Therapist Licensing Act, N.J.S.A. 45:11-53 et seq.

B. No person shall employ anyone as a massage, bodywork, or somatic therapist in the City of Jersey City unless he or she has a valid and subsisting massage, bodywork and somatic therapist's license pursuant to the Massage and Bodywork Therapist Licensing Act, N.J.S.A. 45:11-53 et seq.

C. The massage, bodywork or somatic therapy establishment shall display the licenses of each and every massage, bodywork and somatic therapist employed in the establishment in an open and conspicuous place on the premises of the establishment.

Editor's note—Former § 99-22. See editor's note, Art. II.

§ 99-19. Massage and somatic therapy establishments to comply with health codes of the City of Jersey City; prices and standards for establishments to be posted; sanitary requirements for establishments. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

A. Every massage, bodywork and somatic therapy establishment shall comply with the following:

1. Every portion of the massage, bodywork and somatic therapy establishment, including appliances and apparatus, shall be kept clean and operated in a sanitary condition.

2. Price rates for all services shall be prominently posted in the reception area in a location available to all prospective customers.

3. All employees, including massage, bodywork and somatic therapists, shall be clean and wear clean, non-transparent outer garments. Dressing rooms must be available on the premises. Doors to such dressing rooms shall open inward and shall be self-closing.

4. All massage, bodywork and somatic therapy establishments shall be provided with clean laundered sheets and towels in sufficient quantity which shall be laundered after each use thereof and stored in a sanitary manner.

5. All massage tables shall be disinfected after each use.

6. All walls, ceilings, floors, pools, showers, bathtubs, steam rooms and all other physical facilities and surfaces shall be in good repair and maintained in a clean and sanitary condition. Wet and dry heat rooms, steam or vapor rooms or steam or vapor cabinets and shower compartments and toilet rooms shall be thoroughly cleaned each day the business is in operation. Bathtubs and showers shall be thoroughly cleaned after each use. When carpeting is used on the floors, it shall be kept dry, clean and sanitary.

7. All tables, tubs, shower stalls and floors, except reception and administrative areas shall be made of nonporous materials, which may be readily disinfected. Closed containers shall be provided for used towels and waste materials.

8. Oils, creams, lotions and other preparations used in administering massage, bodywork and somatic therapies shall be kept in clean closed containers or cabinets.

9. Animals, except for seeing eye dogs, shall not be permitted in the massage work area.

10. Each massage, bodywork and somatic therapist shall wash his or her hands in hot running water, using property soap or disinfectant before administering a massage, bodywork or somatic therapy to a patron.

11. A copy of this section shall be posted in every massage or somatic therapy establishment in a conspicuous location visible to clients of fire establishment.

Editor's note—Former § 99-23. See editor's note, Art. II.

Sec. 99-20. Conduct of massage, bodywork and somatic therapy. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

A. It shall be unlawful for any person knowingly, in a massage, bodywork and somatic therapy establishment to place his or her hand upon or touch with any part of his or her body, to fondle in any manner or to massage the buttocks, genital area or female breasts of any other person, unless such massage has been ordered by a prescription signed by a licensed medical doctor, chiropractor or doctor of osteopathic medicine. No massage, bodywork and somatic therapist, employee or operator shall perform or offer to perform any act which would require the touching of the patron's buttocks, genital area or female breasts.

B. The buttocks, genital area and female breasts of patrons must be covered by towels, cloths or undergarment when in the presence of an employee or massage, bodywork or somatic therapist.

C. No massage, bodywork or somatic therapist shall engage in any activity which would lead a reasonable person to conclude that the activity serves the prurient interests of the client or therapist or which is for the sexual arousal or sexual gratification of the therapist or client.

Editor's note—Former § 99-24. See editor's note, Art. II.

§ 99-21. Minor patrons. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

Any patron under the age of 18 years of age must be accompanied by a parent or guardian or adult with written permission of the parent or guardian.

Editor's note—Former § 99-25. See editor's note, Art. II.

§ 99-22. Alcoholic beverages or controlled dangerous substances prohibited. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

A. Alcoholic beverages shall not be distributed or consumed on the premises of any massage, bodywork and somatic therapy establishment certified under this chapter.

B. Controlled dangerous substances, as defined by tire laws of the State of New Jersey shall not be distributed or consumed on the premises of any massage, bodywork and somatic therapy establishment certified pursuant to this Chapter.

Editor's note—Former § 99-26. See editor's note, Art. II.

§ 99-23. Sleeping quarters. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

No part of the quarters of any massage, bodywork and somatic therapy establishment shall be used for or connected with any bedroom or sleeping quarters nor shall any person sleep in such massage, bodywork and somatic therapy establishment except for limited periods incidental to and directly related to a massage, bodywork or somatic therapy treatment or bath. This provision shall not preclude the location of massage, bodywork and somatic therapy establishments in separately demised quarters of a building housing a hotel or other separate businesses or clubs.

Editor's note—Former § 99-27. See editor's note, Art. II.

§ 99-24. Exceptions. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

The provisions of this chapter shall not apply to massage, bodywork or somatic therapies given:

A. In the office of a licensed physician, chiropractor or physical therapist; or

B. By a regularly established medical center, hospital or sanatorium having a staff which includes licensed physicians, chiropractors and/or physical therapists;

C. By any licensed physician, chiropractor or physical therapist in the residence of his or her patient; or

D. By a licensed barber or cosmetologist/hairstylist limited to the areas of the face, neck, scalp or upper part of the body as set forth in the Cosmetology and Hairstyling Act of 1984, N.J.S.A. 45:5B-1 et seq.

Editor's note—Former § 99-28. See editor's note, Art. II.

§ 99-25. Violations and penalties. [Added 3-9-2016 by Ord. No. 16-041; amended 6-25-2025 by Ord. No. 25-067]

In addition to the revocation or suspension of the certificate granted under this chapter, any person who violates any provision of this chapter shall, upon conviction, be punished by a fine of not less than $100.00 no more than $2,000.00 or by imprisonment in the county jail for a term not exceeding 90 days, or by a period of community service not exceeding 90 days, or any combination thereof, at the discretion of the court. Each day a particular violation occurs shall constitute a separate offense.

Editor's note—Former § 99-29. See editor's note, Art. II.

Chapter 102

BINGO AND RAFFLES

§ 102-1. License issuance; enforcement.
§ 102-2. Duties of license issuing authority.
§ 102-3. Conduct on Sundays.

[HISTORY: Adopted by the Council of the City of Jersey City 5-4-1971 as Ch. 5, Art. I, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

§ 102-1. *License issuance; enforcement.*

The license issuing authority shall issue all licenses and enforce all rules and regulations, ordinances and statutes involving bingo and raffles, including the provisions of Chapter 5 and 6 of the Laws of 1954, N.J.S.A. 5:8-1 et seq., which were adopted by referendum on April 20, 1954.

§ 102-2. Duties of license issuing authority.

The license issuing authority shall perform all the duties imposed by all rules and regulations, ordinances and statutes involving bingo and raffles, including the Bingo Licensing Law and Raffles Licensing Law adopted April 20, 1954.[1]

§ 102-3. Conduct on Sundays.

Pursuant to N.J.S.A. 5:8-31 and 5:8-58, the license issuing authority may issue licenses for the holding, operating and conducting on Sunday of such games of chance as are authorized by the Bingo Licensing Law and the Raffles Licensing Law pursuant to N.J.S.A. 5:8-24 and 5:8-50.

[1] **Editor's Note: See N.J.S.A. 5:8-1 et seq.**

Chapter 105

BUILDING DEMOLITION*

§ 105-1. Findings and purpose.
§ 105-2. Scope.
§ 105-3. Permit procedures.
§ 105-4. Powers of Construction Code Official.
§ 105-5. Unsafe structures and imminent hazard.
§ 105-6. Service of complaints and orders.
§ 105-7. Order to repair or demolish unsafe buildings or structures.
§ 105-8. City empowered to repair or demolish unfit buildings or structures in lieu of owner.
§ 105-9. Emergency Demolition Fund created.
§ 105-10. Expenses related to the repair or demolition of unsafe buildings or structures; liens.
§ 105-11. Use of City water for demolition.

§ 105-1. Findings and purpose. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

The purpose of this chapter is to:

1. Ensure the safety and preservation of buildings and/or structures immediately adjacent to a building or structure proposed for demolition in accordance with N.J.A.C. 5:23-2.34; and

2. Safeguard the cultural and historical heritage of the City of Jersey City by preserving buildings and structures that reflect elements of its cultural, architectural and/or historical heritage; and

3. Encourage the continued use, and/or rehabilitation of culturally, historically, and architecturally significant historic buildings and structures and to prevent the unnecessary demolition of culturally, historically, and architecturally significant buildings and structures.

§ 105-2. Scope. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

1. This Chapter shall apply to applications to demolish all buildings and/or structures under the Uniform Construction Code (N.J.A.C. 5:23-1.1 et seq.) and all applications for partial demolition of a building or structure under the Rehabilitation Subcode of the Uniform Construction Code, (N.J.A.C. 5:23-6) including any application to remove or substantially deconstruct the front facade of a building and/or structure. "Substantial deconstruction of the front facade" is defined as any alteration to the fenestration, entranceway, porch or stoop, cornice, roofline or the material, historic or architectural components of facades which are visible from any public right-of-way.

***Editor's note**—Ord. No. 18-032, adopted April 25, 2018, amended the Code by repealing former Ch. 105, §§ 105-1—105-14, and adding a new Ch. 105. Former Ch. 105 pertained to similar subject matter, and derived from Ord. No. S-200, adopted September 3, 1979; Ord. No. S-452, adopted September 9, 1980; Ord. No. McC-335, adopted June 26, 1991; Ord. No. 93-030, adopted March 24, 1993; Ord. No. 95-050, adopted June 14, 1995; Ord. No. 97-052, adopted August 13, 1997; and Ord. No. 16-069, adopted May 11, 2016. Subsequently, Ord. No. 18-036, adopted May 9, 2018, repealed the Ch. 105 added by Ord. No. 18-032, and added a new Ch. 105.

Cross reference—Construction Codes, Uniform, Ch. 131.

2. It shall be unlawful for the applicant to intentionally remove, destroy or deface historic components of the building and/or structure, or to make such changes to the building so as to render it unfit prior to applying for a demolition permit, or while an application is pending, in order to render it historically insignificant and/or structurally unsound and therefore more suitable for demolition. Doing so shall constitute a violation of this chapter and subject the applicant and/or owner of the property to the penalties, as enforced by the Zoning Officer, set forth in § 1-25 and/or § 345 of the Municipal Code.

§ 105-3. Permit procedures. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

1. Applications for permits to demolish (in whole or in part) a building or structure or to reconstruct the façade of any building or structure shall require the prior approval of the Zoning Officer for compliance with the provisions of Chapter 345 regarding historic preservation and other applicable sections of Chapter 345, as well as the criteria for evaluation set forth in 36 C.F.R. 60.4, as applicable, which are adopted and incorporated by reference herein.* In cases in which the Construction Official determines the building or structure is an imminent hazard pursuant to N.J.A.C. 5:23-2.32, the applicant need only file permits with the Office of the Construction Official.

2. Applications for prior approval shall be filed with the Division of City Planning to the Historic Preservation Officer and shall be reviewed in accordance with the criteria set forth in 345-30. A complete application shall include payment of the applicable fee required by Chapter 160 and all information and materials the Director may require.

3. The Historic Preservation Officer shall make a finding or recommendation on applications within 45 days of the application being deemed complete. Applications approved by the Zoning Officer, on recommendation by the Historic Preservation Officer, may thereafter be submitted to the Construction Official as a "prior approval" together with the application for a demolition permit in accordance with N.J.A.C. 5:23-2.14. Applications denied based on any of the criteria in Chapter 345 regarding historic preservation shall be referred to the Historic Preservation Commission together with a report from the Historic Preservation Officer within the Division of Planning explaining the reasons for the denial regarding relevant sections of Chapter 345. The Commission shall review the application, the recommendation of the Historic Preservation Officer, and any documents submitted by the applicant in support of the application for prior approval. The Historic Preservation Commission shall report to the Zoning Officer within 45 days of referral of the application to the Commission. If within 45 days the Historic Preservation Commission recommends denying prior approval or recommends conditions to prior approval, the Zoning Officer shall deny prior approval or include conditions with prior approval, as the case may be. Failure to report within 45 days shall constitute a prior approval permit without conditions, and the Zoning Officer may release the application to the Construction Official.

4. Prior approval shall be valid for one year from the date of issuance.

5. As provided by N.J.S.A. 40:55D-70(a), the Zoning Board of Adjustment shall have the power to hear and decide appeals from a decision of the Zoning Officer denying prior approval of an application for a demolition permit.

***Note**—See N.J.A.C. 5:23-2.15(a)(5) requiring applications for construction and demolition permits to include all prior municipal approvals.

§ 105-4. Powers of Construction Code Official. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

Consistent with N.J.S.A. 40:48-2.9, in order to effectuate the purposes of this chapter, the Construction Code Official is authorized to:

1. Investigate the condition of a building or structure in order to determine if it is fit for human habitation or occupancy or use, or an imminent hazard in accordance with N.J.C.A. 5:23-2.32;

2. Enter upon premises for the purpose of making examinations, provided that such entries shall be made in such manner as to cause the least possible inconvenience to the persons in possession;

3. Appoint and fix the duties of such officers, agents and employees as the Construction Code Official deems necessary to carry out the purposes of this Chapter;

4. Delegate any functions and powers under this Chapter to such officers and agents as the Construction Code Official may designate.

Editor's note—Ord. No. 25-006, adopted February 13, 2025, amended the Code by repealing former § 105-4, and renumbering former § 105-5 as a new § 105-4. Former § 105-4 pertained to formal opinion on a building or structure's eligibility for demolition available upon request, and derived from Ord. No. 18-036, adopted May 9, 2018.

§ 105-5. Unsafe structures and imminent hazard. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

Unsafe structures and buildings posing an imminent hazard are subject to the provisions of N.J.A.C. 5:23-2.32.

Editor's note—Ord. No. 25-006, adopted February 13, 2025, amended the Code by repealing former §§ 105-6 and 105-7, and renumbering §§ 105-8—105-14 as new §§ 105-5—105-11. Former § 105-6 pertained to contents of demolition permit application, as submitted to the Historic Preservation Officer, and former § 105-7 pertained to all permit applications being reviewed by the City's Historic Preservation Officer and Zoning Officer. Both sections derived from Ord. No. 18-032, adopted April 25, 2018.

§ 105-6. Service of complaints and orders. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

Service of complaints and orders issued under this chapter shall be in accordance with N.J.A.C. 5:23-2.33.

Note—Former 105-9. See editor's note, § 105-5.

§ 105-7. Order to repair or demolish unsafe buildings or structures. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

If an owner fails to comply with orders to take temporary safeguards or demolish unsafe buildings or structures issued in accordance with N.J.A.C. 5:23-2.32 and if the structure requires demolition the Construction Official shall refer the matter to Public Works. The costs incurred by the City in undertaking any such action may be recovered from the property owner by undertaking the appropriate legal action in Superior Court or via the assessment of a municipal lien in accordance with N.J.S.A. 40:48-1.1.

Note—Former 105-10. See editor's note, § 105-5.

§ 105-8. City empowered to repair or demolish unfit buildings or structures in lieu of owner. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

Pursuant to N.J.S.A. 40:48-2.5a, the Construction Code Official may order temporary safeguards or demolition any building(s) or structure(s) or parts thereof, which have fallen into a state of disrepair.

Note—Former 105-11. See editor's note § 105-5.

§ 105-9. Emergency Demolition Fund created. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

Pursuant to N.J.S.A. 40:48-2.5b, the City may create an Emergency Demolition Fund to be used by the City solely to fund the demolition of unsafe buildings or structures. Should the Construction Code Official order an unsafe building or structure to be demolished but the owner fails to comply, the City is empowered to draw from the Emergency Demolition Fund and demolish the building or structure itself. The Construction Code Official has sole discretion in determining the time and manner of all expenditures necessary to carry out the purposes of this provision. If no fund is created the owner shall bear all costs incurred.

Note—Former 105-12. See editor's note, § 105-5.

§ 105-10. Expenses related to the repair or demolition of unsafe buildings or structures; liens. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

Pursuant to N.J.S.A. 40:48-2.5, if the Construction Code Official elects to repair or demolish a privately owned building or structure, the City is entitled to recoup the following expenses:

1. The cost of the filing of legal papers, expert witnesses' fees, search fees and advertising charges, incurred in the course of any proceeding taken under this act determined in favor of the City, and

2. The cost of such repairs, alterations or improvements, or vacating and closing, or removal or demolition, if any, or the amount of the balance thereof remaining after deduction of the sum, if any, realized from the sale of materials derived from such building or from any contract for removal or demolition thereof, shall be a municipal lien against the real property upon which such cost was incurred.

Note—Former § 105-13. See editor's note, § 105-5.

§ 105-11. Use of City water for demolition. [Added 5-9-2018 by Ord. No. 18-036; amended 2-13-2025 by Ord. No. 25-006]

Applicants granted a demolition permit shall use water from a fire hydrant during the demolition, the applicant must make a separate application to do so and must pay the fee for the use of City water, as provided in Chapter 160. After the demolition work is complete and the use of City water is no longer needed, the applicant shall close, recap and secure the fire hydrant in the same condition it was prior to said use. Failure to do so shall constitute a violation of this Chapter and subject the applicant to the penalties set forth in § 1-25 of the Municipal Code.

Note—Former § 105-14. See editor's note, § 105-5.

Chapter 108

BUILDINGS, NUMBERING OF

§ 108-1.	Record to be kept.	§ 108-6.	Order to exhibit number.
§ 108-2.	Map and record to be filed.	§ 108-7.	Record of number changes.
§ 108-3.	Assignment of numbers.	§ 108-8.	Size of numbers; visibility; placement.
§ 108-4.	Existing numbers to continue.		
§ 108-5.	Display of numbers.		

[HISTORY: Adopted by the Council of the City of Jersey City 5-4-1971 as Ch. 13, Art. XIX, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

§ 108-1. Record to be kept.

The Municipal Council or an agency designated by the Council shall provide by map or otherwise a correct record of the location of every building in the city. A building number shall be assigned to all buildings which are now, or may be hereafter erected, upon any public street or way.

§ 108-2. Map and record to be filed.

The map and the record of street numbers shall be filed in the City Clerk's Office and shall at all times be open to public inspection.

§ 108-3. Assignment of numbers.

[Amended 4-9-2008 by Ord. No. 08-042]

The Tax Assessor is empowered and authorized to designate, for any building or other premises where a building number is missing or where the building owner applies for a new building number, a building number, which will conform with the sequence of numbers heretofore existing upon the street where such building is located.

§ 108-4. Existing numbers to continue.

[Amended 4-9-2008 by Ord. No. 08-042]

All existing numbers upon buildings and properties shall be continued, unless a change is ordered by the Tax Assessor.

§ 108-5. Display of numbers.

Every owner of a house, private dwelling, apartment, office building, store or any building whatsoever or any lot used for business purposes shall display thereon a building number as herein provided.

§ 108-6. Order to exhibit number.
[Amended 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052; 4-9-2008 by Ord. No. 08-042]

The Tax Assessor may order and direct any property owner to exhibit a building number or change an existing building number by a written notice mailed to the last known address of the owner, as appears upon the record of addresses of water consumers in the Office of Utility Management, and unless the owner within five days from the date of said notice exhibits a building number as directed, then the owner shall be chargeable with a violation of this chapter.

§ 108-7. Record of number changes.
[Amended 4-9-2008 by Ord. No. 08-042]

The Tax Assessor shall keep a record of all building number changes and of all owners directed by him or her to display building numbers.

§ 108-8. Size of numbers; visibility; placement.
[Amended 11-10-1982 by Ord. No. MC-278]

Each numeral comprising an assigned or ordered building number shall measure not less than three inches in length and be of such width as to conform with the accepted standards of lettering so that the number is plainly visible to the public. Such building number shall be erected over the main entrance and over any rear entrances to the building or upon either side of the main and rear entrances, within two feet of the door frame; provided, however, that private dwellings may exhibit such building numbers on any steps leading to the main and rear entrances or porches connected therewith.

Chapter 116

CABLE TELEVISION

§ 116-1. Use in multiple-unit dwellings.
§ 116-2. Agreement required prior to building permit issuance.
§ 116-3. Theft of services on premises licensed for the sale of alcoholic beverages.
§ 116-4. Introduction.
§ 116-5. Purpose.
§ 116-6. Channel policies.
§ 116-7. Coverage of city council meetings and caucus meetings.
§ 116-8. Programming restrictions.
§ 116-9. Copyright of programs.

[HISTORY: Adopted by the Council of the City of Jersey City 6-23-1993 as Ord. No. 93-067. Amendments noted where applicable.)

GENERAL REFERENCES

Uniform construction codes — See Ch. 131.
Housing accommodations — See Ch. 188.
Multiple dwellings — See Ch. 218.

§ 116-1. Use in multiple-unit dwellings.

No person owning, managing or operating a multiple-unit dwelling in the City of Jersey City shall deny the residents of the multiple dwelling cable television services from the franchise cable television operator. Such person shall not deny the franchise cable television operator permission to place cable television wiring and equipment in the multiple dwelling and, except as provided under N.J.S.A. 48:5A-49a or other applicable law, shall not demand or accept payment in any form either from the cable television company or from any resident as a condition of permitting the installation of cable television services in the dwelling or portion thereof occupied by such tenant.

§ 116-2. Agreement required prior to building permit issuance.

No building permit for the erection of a multiple-unit dwelling shall be issued until the applicant has provided a written agreement with the franchise cable television company granting such company access into the multiple-unit dwelling for the purpose of delivering cable television services to any resident of the multiple-unit dwelling. Such written agreement shall be required prior to approval of the building permit.

§ 116-3. Theft of services on premises licensed for the sale of alcoholic beverages.

No licensee holding a license to sell or distribute alcoholic beverages in the City of Jersey City shall permit the theft of cable television services on the licensed premises.*

§ 116-4. Introduction. [Added 4-28-2010 by Ord. No. 10-052]

JCITV is a cable channel granted to the City for the purpose of cable casting government television programming, including but not limited to coverage of the City Council meetings and relevant public board meetings.

***Note—**See also Ch. 84, Alcoholic Beverages.

§ 116-5. Purpose. [Added 4-28-2010 by Ord. No. 10-052]

JCITV exists to provide citizens of Jersey City with local government information and community information and to assist the City departments with video production services. Specific objectives include:

(a) provide information about programs and services offered by City departments, agencies, boards, commissions and government supported agencies.

(b) expand citizens' awareness of government and its decision-making processes by exposing them to government meetings and civic events.

(c) enhance existing public information materials by using cable television as a public information tool.

(d) provide and distribute programming of interest to the residents that will inform, educate and enlighten, as well as encourage participation in government services, activities and decision making.

§ 116-6. Channel policies. [Added 4-28-2010 by Ord. No. 10-052]

JCITV shall be guided by the following policies:

A. Non-editorial: the channel shall provide direct, non-editorial information concerning the operations, services and deliberations of government to the citizens of Jersey City;

B. Non-political: the channel is not intended as a mechanism for building support for a particular ballot issue or candidate for public office. This provision does not preclude the cable casting of non-partisan programs sponsored by a neutral third party designed to inform the citizens of election issues and candidates. Declared candidates for any elective office and persons advocating any cause, viewpoint or proposed policy of a partisan nature will not be eligible to appear on the channel ninety (90) days prior to an election, unless they appear in a forum in which all candidates or sides of an issue are given equal time. For purposes of policy, a person is considered to be a candidate from the time of announcing publicly for any public office until the election has been held. This policy does not apply to persons who receive incidental air time as part of a public meeting being televised, nor to officials acting as part of the regular duties when such actions do not involve partisan policies;

C. Neutrality: in any program concerning subjects that may be interpreted to be materially controversial, JCITV will maintain a position of neutrality, providing unbiased information. Requests for presentation of an opposing viewpoint during a legislative meeting will be directed to the appropriate agency for action on their agenda;

D. Non-commercial: JCITV will not televise any paid advertising or any program that depicts a product, business and/or service that has the purpose of benefitting a profit-making enterprise;

E. Non-discriminatory: JC1 TV shall not discriminate in the delivery of its services on the basis of race, color, creed, national origination, sex, sexual orientation or mental or physical ability or any other protected category;

E Non-sectarian Programming: JC1 TV will not televise any program that exposes or promotes any particular religious group or belief.

§ 116-7. Coverage of city council meetings and caucus meetings. [Added 4-28-2010 by Ord. No. 10-052]

A. Coverage of City Council Meetings: City Council meetings shall be recorded using the digital recording system currently present in the City Council Chambers. The entire meeting shall be recorded and re-aired in its entirety at least four times before the next City Council meeting and with two showings beginning between the times of 6 *p.m.* and 9 p.m. Council meetings will take priority over other regular scheduled programming;

B. Coverage of City Council Caucus Meetings: In consultation with Comcast, which televises City Council meetings, City Council caucus coverage will be televised at least twice between the time of the caucus and time of the regularly scheduled subsequent Council meeting. One caucus showing will be aired during the times of 9 a.m. to 5 p.m. and subsequent showing beginning between the times of 6 p.m. to 9 p.m.

§ 116-8. Programming restrictions. [Added 4-28-2010 by Ord. No. 10-052]

The following programming is restricted:

A. any obscene or salacious material;

B. any material which violates Federal, State or Local laws

§ 116-9. Copyright of programs. [Added 4-28-2010 by Ord. No. 10-052]

Programs containing copyrighted materials will be used only if copyright clearance has been obtained. The ownership and copyright for any program produced by the City of Jersey City shall be held by the City.

Chapter 119

CERTIFICATES OF OCCUPANCY

ARTICLE I
Requirements for Issuance

§ 119-1. Requirements established.
§ 119-2. Report of water meter installation.

ARTICLE II
Certificates and Searches

§ 119-3. Certificates and searches issued by Construction Code Official.
§ 119-4. Fees.

[HISTORY: Adopted by the Council of the City of Jersey City: Art. I, 10-2-1979 as Ord. No. S-293; Art. II, 4-26-1984 as Ord. No. MC-573. Amendments noted where applicable.]

GENERAL REFERENCES

Condominium conversions — See Ch. 128.
Uniform construction codes — See Ch. 131.
Fees and charges — See Ch. 160.
Housing accommodations — See Ch. 188.
Multiple dwellings — See Ch. 218.
Water — See Ch. 337.

ARTICLE I
Requirements for Issuance
[Adopted 10-2-1979 as Ord. No. S-293]

§ 119-1. Requirements established.

A. No certificate of occupancy shall be issued by the city unless an approved water meter in proper working order is installed upon the premises. When more than one (1) such water meter is required, then no certificate of occupancy shall be issued unless all the water meters required for said premises shall be installed and be in proper working order.

B. No certificate of occupancy shall be issued for any commercial or nonresidential unit in any building or structure containing residential housing space unless the Construction Official finds that all residential units within the same building or structure are in compliance with applicable provisions of the Municipal Construction Code, Zoning Code, Housing Code, Plumbing Code, Electrical Code and all other municipal ordinances relating to building construction and maintenance. The Director of Housing Code Enforcement shall conduct an inspection of all such buildings or structures before any certificate of occupancy is issued for any commercial or nonresidential use of such structures and certify that all residential units are fit for human habitation in accordance with Chapter 254, Property Maintenance, of the Jersey City Code. If an inspection by the Director discloses any noncompliance to any applicable code, he or she shall issue a noncompliance notice setting forth the areas of noncompliance and stating that the premises shall be brought into compliance within a reasonable time thereafter but no later than sixty (60) days of the date of issuing the notice. The Construction Official may issue a temporary certificate of occupancy for use of the commercial space. Such temporary certificate shall remain in effect for a period not to exceed sixty (60) days or until such time as all residential units

are brought into compliance with applicable codes. If there is continuing noncompliance after the time period established, no occupancy of any commercial unit in the building or structure will be permitted. **[Added 4-28-1993 by Ord. No. 93-043; amended 6-14-1995 by Ord. No. 95-050]**

§ 119-2. Report of water meter installation. [Amended 11-9-1979 by Ord. No. S-301; 6-14-1995 by Ord. No. 95-050]

It shall be the duty of all plumbing inspectors and all personnel of the Division of Water Supply and Division of Water Accounting to report to the Construction Official when the proper approved water meter is installed on any property. It shall also be the duty of all the aforesaid officials to notify the Division of Water Supply, Construction Official and Division of Water Accounting when any approved water meter is not installed in any building or not in proper working order wherever water is to be consumed.

ARTICLE II
Certificates and Searches
[Adopted 4-26-1984 as Ord. No. MC-573]

§ 119-3. Certificates and searches issued by Construction Code Official.

The Construction Official shall upon request:

A. Furnish a letter stating whether a certificate of occupancy is required for any structure.

B. Search the records of the Division of Construction Code Official to ascertain whether Construction Code violations exist in any structure. **[Amended 6-14-1995 by Ord. No. 95-050]**

§ 119-4. Fees. [Amended 6-14-1995 by Ord. No. 95-050]

The Construction Official shall receive for each certificate and search a total fee as provided in Chapter 160, Fees and Charges.

Chapter 122

PUBLIC ASSEMBLIES*

§ 122-1. Definitions.
§ 122-2. Permission required; hours and conditions of operation.
§ 122-3. Special restrictions.
§ 122-4. Application for permits; insurance requirements; fees; temporary structures; bond requirements.
§ 122-5. Health inspection certification.
§ 122-6. Sunday operations.

§ 122-1. Definitions. [Added 4-26-2017 by Ord. No. 17-044]

As used in this Chapter, the following terms shall have the meanings indicated:

BLOCK PARTY means an event sponsored by a non-profit block association registered with the Resident Response Center, organized for the purpose of stimulating civic pride and involving the closure of a single block of a street, or a portion thereof, for a single day.

CARNIVAL means a temporary outdoor event, open to the general public, featuring mechanical amusement rides, games of skill, vendors selling food and amplified and/or live music.

COMMUNITY CLEAN-UP means an event held by a non-profit organization, community group or an individual with a pre-existing relationship with the proposed event location, held for the purpose of improving the neighborhood/event location.

FARMERS' MARKET means a temporary market as defined in § 175-18, established in a public space where farmers/growers sell a variety of farm products directly to consumers.

FESTIVAL means a public event requiring the use of public space, such as a City park or street featuring entertainment and in which the general public can purchase food and goods provided by vendors who may pay a fee to participate. Such events may be for one day or may last several days and may include amplified or live music.

FLEA MARKET means a temporary outdoor market featuring vendors who sell or trade used nonfood products. Food products may be available for sale at flea markets on a limited basis at the discretion of the Department of Health and Human Services.

***Editor's note—**Ord. No. 17-044, adopted April 26, 2017, amended the Code by repealing former Ch. 122, §§ 122-1—122-8, and adding a new Ch. 122. Former Ch. 122 pertained to circuses, carnivals and public assemblages, and was adopted by the Council of the City of Jersey City May 4, 1971 as Ch. 5, Art. II, of the 1971 Jersey City Code, and readopted by Ord. No. S-128 on September 19, 1978; and subsequently amended by Ord. No. 95-050, adopted June 14, 1995; Ord. No. 98-122, adopted September 9, 1998; Ord. No. 99-049, adopted April 14, 1999; Ord. No. 08-066, adopted May 28, 2008; and Ord. No. 13-081, adopted September 11, 2013.

Cross references—Animals, Ch. 90; fees and charges, Ch. 160; itinerant eating and drinking establishments, § 175-8 et seq.

NOT-FOR-PROFIT CORPORATION means a Federal tax exempt, non-profit corporation incorporated in New Jersey. A New Jersey corporation which can demonstrate proof of pending Federal tax exempt status shall also be deemed a non-profit corporation for the purposes of this Chapter.

OFFICE OF CULTURAL AFFAIRS means the Office, under the Office of the Mayor, which serves as the primary point of intake for all applications for public assemblies.

OUTDOOR MARKET means a temporary commercial event hosted by either a community group or a non-profit organization requiring a street closure of one block or more or the use of public space in which the general public can purchase newly-made goods or services provided by vendors who pay a fee to participate. Outdoor markets may feature amplified and/or live music.

PARADE means a procession of people, organized along a street, typically spanning more than one block.

PERSON means an individual or an organization defined as a person under New Jersey law.

PROMOTIONAL EVENT means an event, open to the public, which is intended to promote, advertise or introduce a product, corporation or company or the goods or services of a corporation, company. Such an event may require a concession agreement approved the Municipal Council.

PUBLIC ASSEMBLY means a group of people gathered together in one place for a common purpose making temporary, exclusive use of a public space, street or sidewalk. Public assemblies include, but are not limited to, block parties, carnivals, community clean-up events, festivals/fairs, farmers' markets, flea markets, outdoor markets, parades and promotional events. Impromptu gatherings such as protests and vigils which involve the closing of streets must be arranged through the Department of Public Safety.

SPECIAL IMPROVEMENT DISTRICT shall mean the Management Corporation for a Special Improvement District designated by Chapter 69 of this Title. **[Added 1-24-2019 by Ord. No. 19-001]**

§ 122-2. Permission required; hours and conditions of operation. [Added 4-26-2017 by Ord. No. 17-044]

A. It shall be unlawful to host a public assembly without first obtaining a permit from the Office of Cultural Affairs. Once an application has been submitted, officials from the Office of Cultural Affairs will circulate the application to the various other City departments necessary for the application's final approval.

B. It shall be unlawful for any person to erect or cause to be erected any temporary structure larger than 900 square feet to be used for any public assembly whatsoever within the City without first obtaining a permit from the Office of Cultural Affairs.

C. Any permit approved under § 122-2.A shall be subject to the following conditions:

(1) Hours of operation, 10:00 a.m. to 10:00 p.m. on Sunday through Thursday and from 10:00 a.m. to 11:00 p.m. on Friday and Saturday, and all musical activity shall cease one hour before closing time.

(2) Sale of Alcohol. If any special permit has been issued for the sale of alcoholic beverages, all sales, offers for sale and serving of alcoholic beverages shall cease 1/2 hour before closing time unless the Chief of Police or a representative of the Chief directs an earlier cessation.

§ 122-3. Special restrictions. [Added 4-26-2017 by Ord. No. 17-044]

The following restrictions shall apply to the following public assemblies:

(1) Block Parties. Block parties are organized for the purpose of stimulating civic pride and must not be for private affairs, e.g., family reunions, birthday parties, and weddings. The sale of food, goods or beverages (alcoholic or otherwise) is expressly forbidden at a block party. Block associations may apply for up to two block parties per year and the hours, days, and months of operation for block parties shall be limited to 12:00 noon to 6:00 p.m. on Saturdays and Sundays during the months of May through October. **[Amended by 9-13-2017 by Ord. No. 17-120]**

(2) Community Clean Ups. No sales of goods or services are permitted at community clean-up events.

(3) Farmers' Markets. These markets may only operate during farmers' market season, April through December and permits will only be issued to not-for-profit corporations as defined by Section 175-18.

(4) Flea Markets. These markets are barred from Pershing Field and J. Owen Grundy Pier.

§ 122-4. Application for permits; insurance requirements; fees; temporary structures; bond requirements. [Added 4-26-2017 by Ord. No. 17-044]

A. Permits. The applicant for such permission shall file an application in writing with the Office of Cultural Affairs on the forms prescribed by the Office in the manner set forth below:

EVENT TYPE	APPLICATION DEADLINE
Block party	30 days
Carnival	90 days
Community clean-up	30 days
Farmers' market	60 days
Festival/fair	60 days
Flea market	60 days
Outdoor market	60 days
Parade	90 days
Public assembly	30 days
Public assembly with a temporary structure	90 days
Promotional event	30 days

B. Insurance. All applicants seeking permission for a public assembly shall provide proof of general liability insurance from an A.M. Best-rated insurance company in the amount of $1,000,000.00 and must name the City of Jersey City as an additional insured unless waived by the City's Risk Manager. If the public assembly includes the sale of liquor, the applicant must obtain a permit from Alcoholic Beverage Control and must provide proof of general liability insurance from an A.M. Best-rated insurance company in the amount of $2,000,000.00.

C. Fees. The applicant shall pay a fee or fees according to the schedule contained in Chapter 160, Fees and Charges.

D. Temporary Structures. Any application which includes the erection of a temporary structure larger than 900 square feet shall include a set of building plans in accordance with the forms prescribed by the Office of Cultural Affairs. All temporary structures are subject to inspection by the Director of Public Safety or his or her designee prior to use.

E. Bonds. Applicants shall provide a cash bond in the sum of $1,000.00 conditioned upon holding the City harmless from any and all liabilities or causes of action which might arise by virtue of the granting of a permit to the applicant and conditioned further that no damage shall be done to the streets, sewers, trees or adjoining property and that no dirt, paper, litter or other debris shall be permitted to remain upon the streets or upon any private property by such applicant. Such cash bond shall be returned to the applicant upon certification by the license issuing authority that all conditions of this Chapter have been complied with. This subsection shall not apply to Special Improvement District applicants. **[Amended 1-24-2019 by Ord. No. 19-001]**

F. Special Improvement Districts. Special Improvement Districts shall agree to hold the City harmless from any and all liabilities or causes of action which might arise by virtue of the granting of a permit to the applicant and conditioned further that no damage shall be done to the streets, sewers, trees or adjoining property and that no dirt, paper, litter or other debris shall be permitted to remain upon the streets or upon any private property by the Special Improvement District. **[Added 1-24-2019 by Ord. No. 19-001]**

§ 122-5. Health inspection certification. [Added 4-26-2017 by Ord. No. 17-044]

Any application for a public assembly which includes the sale of food and beverages, if permitted, shall also be referred to the Health Officer for approval and issuance of a certificate of health inspection in addition to the public assembly permit. The applicant's equipment and practices shall be subject to inspection at the time of application and at periodic intervals thereafter. No public assembly involving the sale of prepared food will be permitted without obtaining permission from the Health Officer.

§ 122-6. Sunday operations. [Added 4-26-2017 by Ord. No. 17-044]

All public assemblies permitted by and pursuant to this Chapter may conduct such activities on Sundays.

Chapter 125

[Reserved]*

* **Editor's Note: Chapter 125 was repealed 6-13-01 by Ord. No. 01-059 § 1.**

Chapter 128

CONDOMINIUM CONVERSIONS

ARTICLE I
Applications for Conversion

§ 128-1. Administration and enforcement.
§ 128-2. Notices of intent to file applications.
§ 128-3. Application fee.
§ 128-4. Appeals.
§ 128-5. Appeal application fee.

[HISTORY: Adopted by the Council of the City of Jersey City: Art. I, 11-24-1982 as Ord. No. MC-262. Amendments noted where applicable.]

GENERAL REFERENCES

Uniform construction codes — See Ch. 131.
Contractors — See Ch. 134.
Housing accommodations — See Ch. 188.
Multiple dwellings — See Ch. 218.
Rent control — See Ch. 260.

ARTICLE I
Applications for Conversion
[Adopted 11-24-1982 as Ord. No. MC-262]

§ 128-1. Administration and enforcement.

The Rent Leveling Administrator shall administer and enforce the regulations of the Senior Citizens and Disabled Protected Tenancy Act, as delineated in N.J.S.A. 2A:18-61.22 et seq.

§ 128-2. Notices of intent to file applications.

The Rent Leveling Administrator shall, in accordance with N.J.S.A. 2A:18-61.27, accept from owners of apartment buildings within the city notices of intent to file an application for registration of conversion with the Department of Community Affairs in accordance with the Planned Real Estate Development Full Disclosure Act, N.J.S.A. 45:22A-21 et seq. The Rent Leveling Administrator shall determine the eligibility for protected status of each tenant within a building.

§ 128-3. Application fee.[1]

A fee as provided in Chapter 160, Fees and Charges, per tenant shall accompany each application.

[1] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

§ 128-4. Appeals.

Any tenant or owner aggrieved by a decision of the Rent Leveling Administrator as to the eligibility of a tenant for protected status may appeal the administrator's decision within twenty (20) days of receipt to a formal review officer appointed by the Director of Housing and Economic Development.

§ 128-5. Appeal application fee.[2]

A fee as provided in Chapter 160, Fees and Charges, shall accompany each appeal application.

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[2] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 131

CONSTRUCTION CODES, UNIFORM*

ARTICLE I
In General

§ 131-1. Enforcing agency established.
§ 131-2. Construction permits.
§§ 131-3—131-8. Reserved.
§ 131-9. Fees.
§ 131-10. Exemption from fees.
§ 131-11. Report by Construction Official regarding fees.
§ 131-12. Surcharge fee for training, certification and technical support programs.
§ 131-13. Historic sites.

ARTICLE II
Gender-Neutral Signage for Single-User Restrooms

§ 131-14. Definitions.
§ 131-15. Signage required.

ARTICLE I
In General

§ 131-1. Enforcing agency established. [Amended 9-26-2018 by Ord. No. 18-106; 3-13-2019 by Ord. No. 19-014]

A. There is hereby established in the City of Jersey City a State Uniform Construction Code Enforcing Agency, consisting of a Construction Official, Building Subcode Official, Plumbing Subcode Official, Electrical Subcode Official, Fire Protection Subcode Official and such other subcode officials for such additional subcodes as the Commissioner of the Department of Community Affairs, State of New Jersey, shall hereafter adopt as part of the State Uniform Construction Code. The Construction Official shall be the chief administrator of the Enforcing Agency.

Cross reference—Division of Construction Code Official, § 3-75.A.

B. The Construction Official and Subcode Officials of the Enforcing Agency shall be appointed by the Director of the Department of Housing, Economic Development and Commerce and such positions shall be filled by a person qualified for such position pursuant to P.L. 1975, c. 217, as amended† and N.J.A.C. 5:23; provided that, in lieu of any particular Subcode Official, an on-site inspection agency may be retained by contract pursuant to N.J.A.C. 5:23. More than one such official position may be held by the same person, provided that such person is qualified pursuant to P.L. 1975, c. 217 and N.J.A.C. 5:23 to hold each such position. **[Amended 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052]**

C. The public shall have the right to do business with the Enforcing Agency at one office location except for emergencies and unforeseen or unavoidable circumstances.

***History**—Adopted by the Council of the City of Jersey City May 4, 1971 as Ch. 7, Art. I, of the 1971 Jersey City Code, as readopted September 19, 1978 by Ord. No. S-128. Amendments noted where applicable.

Cross references—Department of Housing, Economic Development and Commerce, Ch. 3; Demolition of buildings, Ch. 105; Numbering of buildings, Ch. 108; Certificates of occupancy, Ch. 119; condominium conversions, Ch. 128; contractors, Ch. 134; elevators, Ch. 155; fees and charges, Ch. 160; flood damage prevention, See Ch. 172; housing accommodations, Ch. 188; multiple dwellings, Ch. 218; sewers, Ch. 281; zoning, Ch. 345.

†**State law reference**—See N.J.S.A. 52:27D-119 et seq.

D. The City hereby adopts the 2024 Edition of the Construction Site Safety Manual, as amended, and Installation Requirements and Maintenance for Air Pressurized Standpipes for Buildings under Construction or Demolition, which is on file in the Office of the City Clerk. The 2024 Edition of the Construction Site Safety Manual replaces and supersedes the all previous versions of the Construction Site Safety Manual. **[Added 8-6-2008 by Ord. No. 08-100; amended Ord. No. 25-010, 2-26-2025; Ord. No. 25-052, 5-7-2025]**

E. The Construction Official may enforce and amend the 2024 Edition of the Construction Site Safety Manual. The Construction Official, fire official and any official authorized by New Jersey Court Rule 7:2-2(a) (4) may enforce the provisions of this section as necessary. **[Added 8-6-2008 by Ord. No. 08-100; amended Ord. No. 25-010, 2-26-2025]**

F. The regulations contained in the 2024 Edition of the Construction Site Safety Manual and Installation Requirements and Maintenance for Air Pressurized Standpipes for Buildings under Construction or Demolition are made a part of Chapter 131 of the Municipal Code and are hereby incorporated by reference. **[Amended Ord. No. 25-010, 2-26-2025]**

G. In addition to any power conferred upon the Construction Official pursuant to the New Jersey Administrative Code, the Construction Official and any subcode official may enforce compliance with the Construction Site Safety Manual by issuing complaint/summons under authority of the Jersey City Code and the Penalty Enforcement Law, N.J.S.A. 2A:58-10, et seq. **[Added 8-6-2008 by Ord. No. 08-100; amended Ord. No. 25-010, 2-26-2025]**

H. A certified copy of the 2024 Edition of the Construction Site Safety Manual and Installation Requirements and Maintenance for Air Pressurized Standpipes for Buildings under Construction or Demolition shall be on file and available for review online and at the offices of the Construction Official and the City Clerk. Photocopies may be obtained for a fee, pursuant to the City Code provision for fees. **[Added 8-6-2008 by Ord. No. 08-100; amended Ord. No. 25-010, 2-26-2025]**

§ 131-2. Construction permits. [Added 4-23-2025 by Ord. No. 25-026]

SECTION 1: REQUIREMENT FOR CONSTRUCTION PERMITS

Before any construction permit may be issued by the Construction Official of the City of Jersey City, the applicant must demonstrate that the following prior approvals have been obtained and are in good standing:

A. Demolition Permit: Permits for new construction will not be issued for a site with an existing structure unless a demolition permit has been issued for the property.

B. Subdivision/Consolidation: Applications for permits will not be accepted for properties unless the lots have been either subdivided or consolidated.

C. State-Mandated Prior Approvals:

i. Waterfront Development Permit: For projects within 500 feet of the Hudson River.

ii. DEP Flood Hazard Permit: For sites located within the Special Flood Hazard Zone.

iii. DEP Soil Erosion and Sediment Control: For land disturbance of 5,000 square feet or more.

iv. Passaic Valley Sewage: For new construction, additions, and changes of use.

v. NJ Sports and Exposition Authority: For areas within their jurisdiction (NJSEA Website).

vi. NJ Department of Community Affairs: For health facilities, as per Bulletin 98-3 (NJ DCA Bulletin 98-3).

D. Local Prior Approvals:

i. Jersey City Zoning: Approval from the Jersey City Zoning Office.

ii. Jersey City MUA: For water and sewer requirements.

iii. Jersey City Tax Collector's Office: To confirm compliance with any Payroll Tax Requirements.

iv. Jersey City Health Department: For rodent control.

v. Jersey City Traffic and Engineering: For a traffic safety plan and any street and sidewalk closures.

vi. Jersey City Fire Safety: For combustible permits.

vii. Plan Review Fee: Payment of the plan review fee.

viii. Jersey City Forestry Division: To obtain forestry permits.

ix. Jersey City Tax Assessor's Office: For payment of any pre and post development fees.

SECTION 2: GRACE PERIOD FOR CODE REVISIONS

In accordance with N.J.A.C. 5:23-1.6 (Grace Period), applicants may submit a complete permit application, including all prior approvals, for review under the code in force immediately preceding any subcode revision within six months following the operative date of the subcode revision. Provided the application is complete, the Construction Official and applicable subcode officials shall perform the plan review and issue construction permits based on the code in force immediately prior to the operative date of the subcode revision.

This grace period shall apply only to revisions of subcodes.

In the case of a project under review where a permit has not been issued as of the operative date of a subcode revision, the review shall continue, and permits shall be issued based on the code in force immediately prior to the operative date of the subcode revision.

SECTION 3: LOCAL ENFORCING AGENCY PLAN REVIEW

As per N.J.A.C. 5:23-2.15 (Local Enforcing Agency Plan Review), if state, county, or local prior approvals have not been granted, the plan review shall proceed, provided that the permit application is otherwise complete and the plan review fee has been paid. However, no permit shall be issued until all required state, county, and local approvals are in place.

Based on these regulations, should a code change occur, applications for permits will be accepted, the plan review fee will be paid, and review will be conducted. If the prior approvals, as stipulated above, have not been met and the deadline passes, the application will be deemed incomplete. The applicant will be required to refile based on the new code and pay a new plan review fee.

SECTION 4: SUBMISSION OF DOCUMENTATION

All documentation demonstrating compliance with the above-listed requirements must be submitted to the Construction Official at the time of application for a construction permit. The Construction Official shall not issue a construction permit until all required prior approvals have been received and confirmed to be in good standing.

SECTION 5: PENALTIES AND ENFORCEMENT

Failure to comply with the requirements of this ordinance may result in:

A. Denial or revocation of a construction permit;

B. Penalties as outlined in the City's Construction Code Enforcement provisions; or

C. Suspension of any ongoing construction activities until compliance is demonstrated.

§§ 131-3—131-8. Reserved.

Editor's note—Ord. No. 24-076, adopted September 25, 2024, amended the Code by repealing former §§ 131-2—131-8, which pertained to the Construction Board of Appeals, and were adopted May 4, 1971 as Ch. 7, Art. I, of the 1971 Jersey City Code, as readopted September 19, 1978 by Ord. No. S-128. Subsequently, the provisions were amended October 14, 1980 by Ord. No. S-477; February 25, 1988 by Ord. No. C-655; and June 14, 1995 by Ord. No. 95-050. Subsequent to the repeal of § 131-5, Ord. No. 25-006 made amendments to 131-5, which have not been codified at the discretion of the editor.

§ 131-9. Fees.

[Amended 1-28-1982 by Ord. No. MC-103; 4-23-1986 by Ord. No. C-29; 2-27-1991 by Ord. No. McC-243; 6-14-1995 by Ord. No. 95-050]

Fees for permits shall be as provided in Chapter 160, Fees and Charges.

§ 131-10. Exemption from fees.

[Added 5-1-1979 by Ord. No. S-210; amended 4-22-1982 by Ord. No. MC-171; 9-22-1983 by Ord. No. MC-471; 3-10-1988 by Ord. No. C-694]

A. All nonprofit hospitals, nursing homes and building contractors hired by the City of Jersey City and the State of New Jersey are exempted from the payment of any fees for any type of construction permit.

B. The Jersey City Housing Authority shall be exempt from payment of elevator inspection fees provided in Chapter 160, Fees and Charges.

C. All nonprofit entities having as one of their purposes the development of housing certified in writing by the Director of the Department of Housing, Economic Development and Commerce as affordable to low- and moderate-income individuals and families according to the definitions and affordability controls contained in the Fair Housing Act of 1985, N.J.S.A. 52:27D-301 et seq., and in the regulations of the Council on Affordable Housing, N.J.A.C. 5:91 and 5:92, specifically Subchapter 12 of N.J.A.C. 5:92, shall pay the sum as provided in Chapter 160, Fees and Charges, for any type of construction permit for each certified affordable residential dwelling unit. **[Amended 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052]**

D. All developers of housing certified in writing by the Director of the Department of Housing, Economic Development and Commerce as affordable to low- and moderate-income individuals and families according to the definitions and affordability controls contained in the Fair Housing Act of 1985, N.J.S.A. 52:27D-301 et seq., and in the regulations of the Council on Affordable Housing, N.J.A.C. 5:91 and 5:92, specifically N.J.A.C. 5:92, shall pay the sum as provided in Chapter 160, Fees and Charges, for any type of construction permit for each certified affordable residential dwelling unit. **[Amended 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052]**

E. Developers of affordable housing which has been certified as affordable to low- and moderate-income persons or families by the Director of the Department of Housing, Economic Development and Commerce pursuant to Subsections C and D of this section, and was initiated after July 2, 1985, when the Fair Housing Act of 1985, N.J.S.A. 52:27D-301 et seq., became operative, shall be reimbursed for all construction permit fees paid after July 2, 1985, for the construction of affordable housing in Jersey City except for the sum as provided in Chapter 160, Fees and Charges, for any type of construction permit for each certified affordable residential dwelling unit. **[Amended 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052]**

F. Pursuant to N.J.S.A. 52:27D-126e, there shall be no fee for construction permits for any construction, reconstruction, alteration or improvement designed and undertaken solely to promote accessibility by the disabled to public or private structures or any facilities contained therein. **[Added 2-26-1992 by Ord. No. McC-415]**

§ 131-11. Report by Construction Official regarding fees.
[Added 2-27-1991 by Ord. No. McC-243]

The Construction Official shall, with the advice of the Subcode Officials, prepare and submit to the City of Jersey City annually a report recommending a fee schedule based on the operating expenses of the agency and any other expenses of the municipality fairly attributable to the enforcement of the State Uniform Construction Code Act.*

§ 131-12. Surcharge fee for training, certification and technical support programs.
[Added 2-27-1991 by Ord. No. McC-243; 6-14-1995 by Ord. No. 95-050]

***Editor's Note: See N.J.S.A. 52:27D-119 et seq.**

In order to provide for the training, certification and technical support programs required by the Uniform Construction Code Act and the regulations, the Enforcing Agency shall collect, in addition to the fees specified above, a surcharge fee per cubic foot of volume of new construction in the amount set by the state. Said surcharge fee shall be remitted to the Bureau of Housing Inspection, Department of Community Affairs, on a quarterly basis for the fiscal quarter ending September 30, December 31, March 31 and June 30 and not later than one month next succeeding the end of the quarter for which it is due. In the fiscal year in which the regulations first become effective, said fee shall be collected and remitted for the third and fourth quarters only.

§ 131-13. Historic sites.
[Added 10-14-1980 by Ord. No. S-477; 6-14-1995 by Ord. No. 95-050]

A. No permits shall be issued for the alteration, renovation, repair or demolition of a building or structure officially designated and approved as a historic site until such plans are approved by the Historic Preservation Commission.

B. The Building Superintendent and/or Construction Official or Enforcing Agency shall maintain a file of all historic sites certified and filed by the Historic Preservation Commission. Said file shall be checked whenever an application for a permit is received. If the application pertains to a historic site, the application and plans accompanying the same shall be submitted to the Historic Preservation Commission for review and determination. No permit pursuant to such application shall be issued until the Historic Preservation Commission approves the plans.

ARTICLE II
Gender-Neutral Signage for Single-User Restrooms

§ 131-14. Definitions. [Added 6-30-2021 by Ord. No. 21-041]

A. GENDER NEUTRAL SIGNAGE mean a sign that indicates a restroom without preference to a specific gender.

B. SINGLE-USER RESTROOM means a lockable restroom available for an individual for use with or without assistance.

§ 131-15. Signage required. [Added 6-30-2021 by Ord. No. 21-041]

A. Where single-use restroom facilities are permitted by the law, such facilities shall have gender-neutral signage no later than the sixtieth day following the effective date of the ordinance from which this article derives. New facilities shall comply upon opening for public use.

B. Gender-neutral signage may include any one of the following:

(1) In accordance with the National Standard Plumbing Code, in occupancies serving 15 or fewer people, one toilet facility, designed for use by no more than one person at a time, shall be permitted for use by both sexes.

(2) In business occupancies with a total floor area of 1,500 square feet or less, one toilet facility, designed for use by no more than one person at a time, shall satisfy the requirements for serving customers and employees of both sexes.

(3) In mercantile occupancies with a net occupiable floor area of 1,500 square feet or less that is accessible to customers, one toilet facility designed for use by no more than one person at a time shall satisfy the requirements for serving customers and employees of both sexes.

Chapter 134

CONTRACTORS AND PERMIT PROCESSORS*

§ 134-1. Findings; purpose.
§ 134-2. Definitions and word usage.
§ 134-3. Registration required.
§ 134-4. Registration application.
§ 134-5. Registration fee; expiration.
§ 134-6. Permit processor disclosure and authorization form.
§ 134-7. Changes of address.
§ 134-8. Violations and penalties.
§ 134-9. Compliance with other provisions.
§ 134-10. Reserved.
§ 134-11. Pre-application conference.

§ 134-1. Findings; purpose. [Amended 7-18-2018 by Ord. No. 18-075]

The Municipal Council finds that there are persons and companies engaged in the building contracting business in the City of Jersey City who lack the resources, skill, equipment and integrity to competently perform the work for which they are engaged. The purpose of this chapter is to collect the necessary information for those engaging the services of a contractor or permit processor and to require those processing building and construction permits to register with the City to assure that only registered persons are allowed to perform building contracting services and permit processing services in the City of Jersey City. The consumer utilizing these services should be made aware that the people that they are hiring are properly registered with the City.

§ 134-2. Definitions and word usage. [Amended 7-18-2018 by Ord. No. 18-075]

A. For the purpose of this chapter, the following terms, phrases, words and their derivations shall have the definitions given in this section. When not inconsistent with the context, words used in the present tense include the future tense, words in the plural include the singular number and words in the singular include the plural. The word "shall" is always mandatory and not merely directory.

B. As used in this chapter, the following terms shall have the meanings indicated:

AGENT—a person authorized to act in a legal capacity on behalf of an owner.

BUILDING CONTRACTOR or CONTRACTOR - Any person engaged in the constructing, erecting, reconstructing, altering, converting, demolishing, removing or repairing a building or structure of any kind or installing any improvement of any kind upon such a building or structure. The term "building contractor" or "contractor" also includes any person engaged in the business of excavating, paving, altering, grading, landscaping the land or installing any facility or appurtenance in, on or above the ground.

***Editor's note—**The title of Ch. 134 was amended July 18, 2018 by Ord. No. 18-075

History—Adopted by the Council of the City of Jersey City 1-26-1994 as Ord. No. 94-001. Amendments noted where applicable.

Cross references—Uniform construction codes, Ch. 131; fees and charges, Ch. 160.

BUSINESS - Every occupation, profession, establishment and every other activity together with all the devices, machines, vehicles and appurtenances used therein, any of which are conducted for private profit or benefit, either directly or indirectly on any premises in this city.

CITY - The City of Jersey City.

CONSTRUCTION OFFICIAL - The official of the City of Jersey City authorized to enforce the New Jersey Uniform Construction Code.

LICENCED PROFESSIONAL—Persons licensed and regulated by the State of New Jersey.

OWNER—the owner in fee of the lot, piece or parcel of land, and any building thereon, located within the City of Jersey City, which is the subject of business before the City.

PERMIT PROCESSOR—Any person not listed on the construction permit application (CP-1) as an owner, contractor, licensed professional or agent who is engaged in the business of submitting, completing, processing, and/or filing of any construction, renovation or demolition permit application on behalf of an owner or contractor. A permit processor may not own, lease, sublease or otherwise hold an interest in any property or contracting company that the permit processor has been retained to work on or with, nor may a permit processor represent any owner or contractor in a legal capacity as an agent, unless the permit processor has submitted a power of attorney giving his/her such authority and placed such power of attorney on file with the City.

PERSON—Any individual person, partnership, joint venture, association or corporation.

§ 134-3. Registration required. [Amended 7-18-2018 by Ord. No. 18-075]

A. No person shall engage in the business of a contractor or work as a permit processor in the City of Jersey City without first having registered with the Construction Official as provided in this chapter. Registration shall not constitute an endorsement of the competence, financial ability or business practices of the contractor or permit processor.

B. A registered contractor or permit processor may not delegate or assign to any other person or entity the right to conduct business in the City of Jersey City.

C. A single act or transaction shall constitute engaging in the business of building contracting within the meaning of this chapter.

D. Licensed professionals are exempted from the requirements of this chapter; provided, however, that such state licensees shall provide the construction official with their applicable license number and proof of a valid New Jersey license.

§ 134-4. Registration application. [Amended 7-18-2018 by Ord. No. 18-075]

A. Every contractor and permit processor required to register under this chapter shall provide the following information in writing, under oath, to the Construction Official:

(1) Name and address.

(2) If the contractor or permit processor is a partnership or business association, the name and address of every member.

(3) If a corporation, the names and addresses of each officer and director.

(4) The address from which business is to be conducted.

B. If the contractor or permit processor is a natural person, the registration form shall be signed and sworn to by the contractor or permit processor; if a partnership or other business association, it shall be signed and sworn to by all natural persons comprising such partnership or business association; if the contractor or permit processor is a corporation, the registration form shall be signed and sworn to by the president and secretary.

§ 134-5. Registration fee; expiration. [Amended 7-18-2018 by Ord. No. 18-075]

A. Each contractor and permit processor shall pay to the Construction Official a registration fee as provided in Chapter 160, Fees and Charges, at the time of registration and annually thereafter upon renewal of registration.*

B. All registrations shall expire one year from the date of issuance.

§ 134-6. Permit processor disclosure and authorization form. [Added 7-18-2018 by Ord. No. 18-075]

In addition to registration under this Chapter, permit processors shall be required to submit a disclosure and authorization form, promulgated by the Office of the Construction Code Official, and executed by the owner or contractor who has retained the permit processor, to all departments, offices and or agencies of the City with whom the permit processor conducts business. The form shall include the name, address, telephone number, and pertinent professional licensure information (if any), and shall be completed for each project for which the permit processor has been retained.

Editor's note—Ord. No. 18-075, adopted July 18, 2018, amended the Code by repealing former §§ 134-6—134-11, adding a new § 134-6, and renumbering former §§ 134-12—134-14 as new §;§ 134-7—134-9. Former §§ 134-6—134-11 pertained to bonds; charges and hearings; grounds for debarment; right to hearing; power of attorney; and amended bond, respectively; and all sections derived from Ord. No. 94-001, adopted January 26, 1994.

§ 134-7. Changes of address. [Amended 7-18-2018 by Ord. No. 18-075]

All registered contractors and permit processors shall promptly notify the Construction Official of any change of address by completing a new registration form.

Note—Former § 134-12. See editor's note, § 134-6.

***Editor's note—**Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 134-8. Violations and penalties. [Amended 6-14-1995 by Ord. No. 95-050; 7-18-2018 by Ord. No. 18-075]

A person or corporation, including an officer, director or employee of a corporation who engages in the business of a contractor or a permit processor, or solicits or attempts to solicit business as a contractor or a permit processor without first having registered shall be liable to a penalty as provided in Chapter 1, General Provisions, § 1-25, and shall be guilty of a separate offense for each day that he or she engages in any act in violation of this section.

Note—Former § 134-13. See editor's note, § 134-6.

§ 134-9. Compliance with other provisions. [Amended 7-18-2018 by Ord. No. 18-075]

The possession of a registration under this chapter shall not exempt a contractor or a permit processor from any state or local law regulating, or pertaining to, building construction.

Note—Former § 134-14. See editor's note, § 134-6.

§ 134-10. Reserved.

§ 134-11. Pre-application conference. [Added 7-18-2018 by Ord. No. 18-075]

Contractors and permit processors may request to meet with the Construction Code Official or his or her representative(s) prior to any permit application. Attendees at the pre-application conferences shall complete attendance forms as required bv the City and attendance shall be limited to City staff and the contractor(s) and/or permit processor(s) who requested the conference. Representatives from the Office of the Construction Code Official reserve the right to require a subsequent conference to discuss matters related to a permit at anytime.

Chapter 135

CRANE REGULATIONS

§ 135-1.	Definitions.	§ 135-6.	Safety equipment.
§ 135-2.	General requirements.	§ 135-7.	Administration; enforcement.
§ 135-3.	Crane operator licensing.	§ 135-8.	Unsafe cranes.
§ 135-4.	Fee schedule.	§ 135-9.	Violations; penalties.
§ 135-5.	Notification of accident or safety issue.		

§ 135-1. Definitions. [Added 3-23-2022 by Ord. No. 22-028]

As used in this chapter, the following terms shall have the meanings indicated:

"Board" means the Crane Operators License Advisory Board established pursuant to N.J.S.A. 45:26-3.

"Certification" means certification from the National Commission for the Certification of Crane Operators or any other organization found by the Board to offer an equivalent testing and certification program meeting the requirements of the American Society of Mechanical Engineers ASME B30.5 and the accreditation requirements of the National Commission for Certifying Agencies.

"Commissioner" means the Commissioner of Labor.

"Crane" As used in this chapter, the term "Crane" shall be defined in accordance with N.J.S.A. 45:26-1 through 45:26-17 (Licensure of Crane Operators Act), hereafter referred to as the Crane Operator Licensure Act and the 1926 OSHA Crane and Derricks in Construction, also known as OSHA Subpart CC.

"Crane operator" means an individual engaged in the operation of a crane.

"Crane related experience" means operating, inspecting, training and maintenance experience acceptable to the Board.

"Practical examination" means an examination demonstrating the applicant's ability to safely operate a particular category or type of crane. Practical examinations shall be conducted for the following crane categories: the lattice boom crawler cranes (LBC) lattice boom truck cranes (LBT), telescopic boom cranes (TLL, Swing Cab) & (TSS, Fixed Cab), tower cranes and overhead cranes.

§ 135-2. General requirements. [Added 3-23-2022 by Ord. No. 22-028]

A. Five days before any crane operator, contractor or other person or company initiates the use of a crane within the municipality, a permit shall be obtained. In emergent situations, the building inspector may waive this requirement in his or her own discretion if the operator meets the balance of the requirements of this chapter.

B. The permit will be maintained with the Municipality as well as with the crane operator all times; a copy of the permit shall be produced on the work site when requested.

C. The following documents must be provided in order to be granted a permit:

1. Copy of crane operator certificate from one of the following organizations:

a. National Commission for the Certification of Crane Operators (NCCCO);

b. Operating Engineers Certification Program (OECP); or

c. Crane Institute of America Certification.

2. New Jersey crane license;

3. Current medical examiner's card;

4. A copy of the most recent and current proof of inspection for the crane being operated.

5. Insurance required as follows:

a. Bodily injury.

i. For any one person in the amount of $500,000.00;

ii. For any occurrence in the amount of $1,000,000.00;

b. Property damage:

i. For any one accident in the amount of $500,000.00;

ii. For any aggregate of occurrences in the amount of $2,000,000.00.

6. Proof that the crane operator submits to a random drug testing program.

7. Proof of completion of signal person qualification or certification course.

D. Upon receipt of a properly completed application and compliance with the requirements of this section, the Engineering Department shall issue or deny the requested permit within five business days. If the application is denied the reasons for the denial are furnished to the applicant in writing.

§ 135-3. Crane operator licensing. [Added 3-23-2022 by Ord. No. 22-028]

A. Licensure of crane operators, pursuant to N.J.S.A. 45:26-7. No person shall engage in the operation of a crane, offer himself or herself for employment as a crane operator or otherwise act, attempt to act, present or represent himself as a crane operator unless licensed as such under the provisions of this act.

B. A crane operator's license shall be valid only in conjunction with a current certification and only in the specialty or specialties for which the crane operator is certified. The specialties are lattice boom crawler crane (LBC), lattice boom truck crane (LBT), telescopic boom cranes (TLL, swing cab, and TSS, fixed cab), tower cranes and overhead cranes.

C. To be eligible for a license as a crane operator in the Municipality, an applicant shall fulfill each of the following requirements:

1. Be at least 18 years of age;

2. Receive certification from the National Commission for the Certification of Crane Operators or any other organization found by the Board to offer an equivalent testing and certification program meeting the requirements of the American Society of Mechanical Engineers ASME B30.5 and the accreditation requirements of the National Commission for Certifying Agencies;

3. Have at least 1,000 hours of crane-related experience;

4. Maintain a current medical examiner's certification card.

D. The crane operator shall reside in New Jersey.

§ 135-4. Fee schedule. [Added 3-23-2022 by Ord. No. 22-028]

The permit fee for each crane shall be $100.00. Each permit is valid for 60 days and may be extended and/or renewed provided that compliance with the requirements of this chapter continues to be met. Fee for an extended or renewal permit is $50.00.

§ 135-5. Notification of accident or safety issue. [Added 3-23-2022 by Ord. No. 22-028]

The owner of the property shall immediately notify the Municipality of every accident causing personal injury or damage to property involving a construction crane covered by this chapter and shall afford the municipal official every facility for investigating such accident. When an accident involves the failure, breakage, damage or destruction of any part of the apparatus, it shall be unlawful to use such device until after an examination by the Municipality is made and approval of the equipment for continued use is granted. It shall be the duty of the Municipality to make a prompt examination into the cause of the accident and to enter a full and complete report thereof in the records of the Municipality. Such records shall be open for public inspection during regular business hours.

§ 135-6. Safety equipment. [Added 3-23-2022 by Ord. No. 22-028]

A. All crane equipment shall be kept in safe working condition at all times by the owner and licensee.

B. If any safety or operational aid used or required to be used in connection with the operation of a crane is not working properly, the person operating such crane shall immediately shut down the crane until such time that the required safety or operational aid is repaired or replaced and the crane is restored to proper working order.

C. Any and all safety requirements promulgated by the Board, Commissioner, or Municipality must be adhered to at all times.

D. Every crane shall be thoroughly inspected by a competent designated employee or authorized agent of the owner or lessee of such mobile crane, tower crane or derrick at intervals not exceeding one month. Such inspection shall include, but not be limited to, all blocks, shackles, sheaves, wire rope, connectors, and various devices on the master boom, controls and braking mechanisms.

E. A written, dated, and signed record of each such inspection shall be completed by the competent designated employee or authorized agent who made the inspection. The most recent record of such inspection shall be posted inside the cab of such crane and shall be filed with the municipality. Attached to such record of inspection shall be a written designation naming the competent employee or authorized agent. Such attached designation shall be signed by the owner or lessee of said crane.

F. Every crane shall be inspected before being erected or operated for the first time on any job.

G. Adjustments and repairs to cranes shall be made only by competent designated persons.

§ 135-7. Administration; enforcement. [Added 3-23-2022 by Ord. No. 22-028]

A. The Municipal Council may promulgate rules and regulations for the administration of the provisions of this article.

B. The Administration shall have discretion regarding the timing, execution, and implementation of the crane-operator permitting requirements referenced herein.

C. The provisions of this article shall be enforced by the Municipal Engineer or their designee.

§ 135-8. Unsafe cranes. [Added 3-23-2022 by Ord. No. 22-028]

A. Any crane which is or hereafter becomes unsafe or otherwise dangerous to human life or public safety, or which demonstrates inadequate maintenance shall be deemed to be in an unsafe condition by the Municipal Engineer. All unsafe cranes shall be taken down or removed or made safe, as the Municipal Engineer deems necessary and as provided for in this section.

B. The Municipal Engineer shall cause a report to be filed on an unsafe crane. The report shall state the nature of the unsafe condition.

C. If an unsafe condition is found, the Municipal Engineer or municipal agent shall serve on the owner, agent or person in control of the crane, a written notice that describes the condition being unsafe and specifies the required repairs or improvements to be made to abate the unsafe condition. Such notice shall require the person thus notified to declare immediately to the Municipal Engineer or municipal agent exceptions or rejection of the terms of the written notice.

D. Such written notice shall be deemed properly served if a copy is delivered to the owner personally, or sent by certified or registered mail addressed to the owner at the last known address with the return receipt requested. If a certified or registered letter is returned showing that the written order has not

been delivered, a copy shall be posed in a conspicuous place in or on the structure affected by such notice. Service of such notice in the foregoing manner upon the owner's agent or upon the person responsible for the crane shall constitute service of notice upon the owner.

E. The equipment determined to be unsafe by the Municipal Engineer or municipal agent may be restored to a safe condition. To the extent that repairs, alterations or additions are made during restoration of such equipment, such repairs, alterations or additions shall comply with all applicable codes.

F. Any person who refuses or neglects to comply with the requirements of notice to abate an unsafe condition shall be subject to a fine in accordance with Section 135-9.

§ 135-9. Violations; penalties. [Added 3-23-2022 by Ord. No. 22-028]

A. Any person who operates a crane without meeting the requirements of this chapter or any rule or regulation promulgated thereunder shall be subject to a fine of not less than $1,000.00 and no more than $10,000.00 for each violation. Each day of illegal operation shall constitute a separate and distinct offense.

B. Any person or company who employs an unlicensed person as a crane operator or who permits or directs an unlicensed person to operate a crane shall be subject to a fine of not less than $2,000.00 nor more than $20,000.00 for each violation. Each day of illegal operation shall constitute a separate and distinct offense.

Chapter 137

CURFEW

§ 137-1.	Definitions.	§ 137-4.	Enforcement.
§ 137-2.	Duties of children.	§ 137-5.	Violations and penalties.
§ 137-3.	Duties of parents, guardians and operators of business establishments.	§ 137-6.	Exceptions.
		§ 137-7.	Severability.

[PRIOR HISTORY: 7-18-1978 by Ord. No. S-103.]

[HISTORY: Adopted by the Council of the City of Jersey City 1-22-1987 as Ord. No. C-361 (this ordinance was vetoed by the Mayor and overridden by Council 2-26-1987); amended in its entirety 9-11-1996 by Ord. No. 96-084. Subsequent amendments noted where applicable.)

GENERAL REFERENCES

Peace and good order — See Ch. 242.

§ 137-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

CHILD - Any person under the age of 17 years.

GUARDIAN - A person, other than a parent, to whom legal custody of a child has been given by court order or who is acting in the place of a parent or is responsible for the care and welfare of a child.

OPERATOR OF A BUSINESS ESTABLISHMENT - Any person who operates, manages or controls any place of amusement or entertainment, any store or shop, any tavern, saloon, cafe or restaurant or any other commercial or business establishment or place.

PUBLIC PLACES - Any place to which the public has access, including but not limited to a public street, road, thoroughfare, sidewalk, bridge, alley, plaza, park, recreation or shopping area, public transportation facility, vehicle used for public transportation, parking lot or any other public building, structure or area. This definition includes restaurants, taverns, cafes, stores and any other place that has business invitees.

§ 137-2. Duties of children.

A. It shall be unlawful for any child to be in any public place between the hours of 10:30 p.m. and 6:00 a.m. of the following day unless such child is accompanied by a parent or guardian or unless such child is engaged in, or traveling to or from, a business or occupation which the laws of this state authorize children to perform.

B. It shall be unlawful for any child under the age of 17 years to be in any public place on any school day during the hours in which such child's school is in session, unless such child is accompanied by a parent or guardian or unless he or she has been excused from school by school authorities.

§ 137-3. Duties of parents, guardians and operators of business establishments.

A. Duties of parents and guardians.

(1) It shall be unlawful for any parent or guardian of a child to permit the minor to be in any public place between 10:30 p.m. and 6:00 a.m. the following day unless the minor is accompanied by a parent or guardian.

(2) It shall be unlawful for any parent or guardian to allow or permit any child under the age of 17 years to be in or upon any public place at any time during the hours in which said child's school is in session, unless such child is accompanied by a parent or guardian or unless said child has been officially excused from attendance at such school by the school authorities.

B. Duties of operators of business establishments.

(1) It shall be unlawful for any operator of a business establishment or the agent or employees of the operator to knowingly permit any child to remain upon the premises of the establishment between 10:30 p.m. and 6:00 a.m. the following day unless such child is accompanied by a parent or guardian.

(2) It shall be unlawful for any operator of a business establishment to allow or permit any child under the age of 17 years to be in or upon such business establishment at any time during the hours in which such child's school is in session, unless such child is accompanied by a parent or guardian or unless such child has been officially excused from attendance at such school by the school authorities.

§ 137-4. Enforcement. [Amended 9-11-2013 by Ord. No. 13-081]

A. Any police officer upon finding a child in violation of § 137-2 shall take the child into protective custody and transport the child to the Curfew Center. Once at the Center, the child's parent or guardian will be contacted to allow the child to be taken home. Both the child and the parent will be counseled at the Curfew Center by community leaders and police officers concerning the provisions of the Jersey City curfew as it relates to the protection of children. The child and the parent will also be advised that a second violation of the Curfew Ordinance will make the parent and child also liable for a minimum fine of $100, a maximum fine as provided in Chapter 1, General Provisions, § 1-25. Before releasing the child, the Department of Public Safety may request the parent or guardian to submit an appropriate form of identification and sign an appropriate authorization.

B. If the Curfew Center is full or otherwise unavailable, any police officer upon finding a child in violation of § 137-2 may ascertain the name and address of such child and warn the child that he or she is in violation of the curfew and shall direct the child to proceed at once to his or her home or usual place of abode. The police officer shall report such action to the Juvenile Division of the Department of Public Safety which shall in the case of the first violation by a child send by certified mail to the

parents or guardians of the child written notice of the violation with a warning that a second violation will result in the parent and child being liable for community service and that, for a subsequent violation, the parent and child will also be liable for a minimum fine of $100, a maximum fine as provided in Chapter 1, General Provisions, § 1-25, as well as community service.

C. The provisions of this section shall not limit the power of the Department of Public Safety to charge parents, guardians or the operators of business establishments with violations of this chapter pursuant to § 137-3.

§ 137-5. Violations and penalties.

A. Any parent or guardian found guilty of violating this chapter after receiving a warning in accordance with § 137-4 shall be liable for community service. Any subsequent violation of the provisions of this chapter shall also make the parent and child liable for a minimum fine of $100 and a maximum fine as provided in Chapter 1, General Provisions, § 1-25. If both a child and a child's parent or guardian violate this chapter, they shall be required to perform community service together.

B. Any operator of a business found guilty of violating the provisions of this chapter shall be liable to:

(1) A minimum fine of $ 100 and a maximum fine as provided in Chapter 1, General Provisions, §1-25;

(2) Community service; or

(3) Both a fine and community service.

C. Names of parents, guardians or business operators who defiantly violate the provisions of this chapter may be published in a newspaper of general circulation within the City of Jersey City. A parent, guardian or business operator shall be considered a defiant violator if he or she is found guilty of three or more violations of this chapter.

§ 137-6. Exceptions.

The provisions of this chapter shall not apply in the following situations:

A. If a child is engaged in errands involving medical emergencies or attending extracurricular school activities or other cultural, educational and social events sponsored by religious or community-based organizations after 10:30 p.m. and before 6:00 a.m.

B. If the child is accompanied by an adult authorized by a parent to accompany the minor for a designated period of time and specific purpose within a specific area.

C. If the child is on the sidewalk of his or her residence or on the sidewalk of a next-door neighbor, so long as the neighbor does not object to the minor's presence on the sidewalk.

D. (Reserved)

E. (Reserved)

F. (Reserved)

G. The minor carries a certified card of employment or is on the way to or from a place of employment.

H. The minor is in a motor vehicle with parental consent from normal travel, either intra- or interstate, through the City of Jersey City.

1. The minor carries on his or her person a special permit from the Chief of Police authorized as follows: when necessary nighttime activities of a minor may be inadequately provided for by other provisions of this chapter recourse may be had to the Chief of Police, either for a regulation as provided in Subsection J or for a special permit as the circumstances warrant: upon the findings of necessity for the use of the streets to the extent warranted by a written application signed by a minor and by a parent of the minor, if feasible, stating the name, age and address of the minor; the name, address and telephone number of a parent thereof; the height, weight, sex, color of eyes and hair and other physical characteristics of the minor; the necessity which requires the minor to be present on the public streets; and the beginning and ending of the period of time involved by date and hour. The Chief of Police may grant a permit in writing for the use by the minor of streets at such hours as in the opinion of the Chief of Police may reasonably be necessary. In an emergency this may be accomplished by telephone or other effective communication, with a corresponding record being made contemporaneously by the Chief of Police or to the person designated by the Chief of Police to act on his or her behalf in an emergency, at the police station.

J. There exists a regulation issued by the Chief of Police in other similar cases of reasonable necessity, similarly handled but adapted to necessary nighttime activities of more minors than can readily be dealt with on an individual special permit basis. Such regulation by the Chief of Police permitting use of the streets should be issued sufficiently in advance to permit appropriate publicity through news media and through other agencies such as the schools. It shall define the activity, the scope of the use of the streets permitted, the period of time involved, not to extend more than thirty (30) minutes beyond the time for termination of the activity, and the reason for finding that the regulation is reasonably necessary and is consistent with the purposes of this chapter.

§ 137-7. Severability. [Amended 9-11-2013 by Ord. No. 13-081]

Severability is intended throughout and within the provisions of the Curfew Ordinance. If any provision, including any exemption, part, phrase or term or the application thereof to any person or circumstance, is held invalid, the application to other persons or circumstances shall not be affected thereby and the validity of the Curfew Ordinance in any and all other respects shall not be affected thereby. Additional exemptions to be included under § 137-6 will be considered by City Council as warranted by future experience illuminated by the views of student government associations, school personnel, citizens, associations, parents, officers and persons in authority concerned positively with minors as well as with juvenile delinquency. The Department of Public Safety shall be responsible to make periodic reviews of the practical aspects of enforcement and interpretation of this chapter, including the need for clarification or relaxation of any term or provision contained herein as well as the need for continued or discontinued curfew regulations. Whenever, in the opinion of the City Attorney or of any court, the application of this chapter to a particular act or activity of a minor is unclear or ambiguous, the less restrictive interpretation shall be deemed to be the intent of the chapter.

[The next page is 14201]

Chapter 142[1]

(RESERVED)

[1] Editor's Note: Former Ch. 142, Dance Halls, adopted 5-4-1971 as Ch. 5, Art. VII, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128, as amended, was repealed 6-24-1998 by Ord. No. 98-081.

Chapter 148

DISCRIMINATION*

§ 148-1. Title.
§ 148-2. Findings.
§ 148-3. Definitions.
§ 148-4. Unlawful practices.
§ 148-4.1. Pay transparency.
§ 148-5. Enforcement.
§ 148-6. Complaints; investigations; hearings.
§ 148-7. Failure to comply.
§ 148-8. Violations and penalties.

§ 148-1. Title.

This chapter shall be known as the "Fair Housing and Public Accommodation Ordinance."

§ 148-2. Findings.

The Mayor and City Council of the City of Jersey City find that:

A. The population of the City of Jersey City consists of people of every race, color, religion and national origin, many of whom are discriminated against in public accommodations and in obtaining adequate housing facilities.

B. Discrimination in housing results in overcrowding, segregated areas and substandard, unsafe, unsanitary living conditions.

C. Discrimination in places of public accommodation causes embarrassment and inconvenience to citizens and visitors to the city, creates breaches of the peace and is otherwise detrimental to the welfare and economic growth of the City of Jersey City.

D. In order to assure that all persons, regardless of race, color or creed enjoy the full benefits of citizenship and are afforded equal opportunities for housing and the use of public accommodations, it is necessary that appropriate legislation be enacted.

§ 148-3. Definitions.

As used in this chapter, unless a different meaning clearly appears from the context, the following terms shall have the meanings indicated:

COMMISSION - The Human Rights Commission.

DIRECTOR - The Executive Director of the Human Rights Commission. **[Amended 12-11-1986 by Ord. No. C-298]**

***History:** Adopted by the Council of the City of Jersey City May 26, 1981, as Ord. No. S-619; amended in its entirety September 8, 1981 by Ord. No. MC-14. Subsequent amendments noted where applicable.

Cross references—Human Rights Commission, § 3-60.2.C(2)(n); housing accommodations, Ch. 188; multiple dwellings, Ch. 218; rent control, Ch. 260.

LIABILITY FOR SERVICE IN THE ARMED FORCES OF THE UNITED STATES - Subject to being ordered as an individual or member in the National Guard or subject to being inducted into such armed forces through a system of national selective service.

PERSON - Includes one (1) or more individuals, partnerships, associations, organizations, corporations, legal representatives, trustees, trustee in bankruptcy, receivers and fiduciaries.

PLACE OF PUBLIC ACCOMMODATION - Includes but is not limited to: any tavern, roadhouse, hotel, motel, trailer camp, summer camp, day camp or resort camp, whether for entertainment of transient guests or accommodation of those seeking health, recreation or rest; any producer, manufacturer, wholesaler, distributor, retail shop, store, establishment or concession dealing with goods or services of any kind; any restaurant, eating house or place maintained for the sale of ice cream, ice and fruit preparations or their derivatives, soda water or confections or where any beverages of any kind are retailed for consumption on the premises; any garage, any public conveyance operating on land or water or in the air, any stations and terminals thereof; any bathhouse, boardwalk or seashore accommodation; any auditorium, meeting place or hall; any theater, motion-picture house, music hall, roof garden, skating rink, swimming pool, amusement and recreation park, fair, bowling alley, gymnasium, shooting gallery, billiard and pool parlor or other place of amusement; any comfort station; any dispensary, clinic or hospital; any public library; and kindergarten, primary and secondary school, trade or business school, high school, academy, college and university. Nothing herein contained shall be construed to include or to apply to any institution, bona fide club or place of accommodation, which is in its nature distinctly private; nor shall anything herein contained apply to any educational facility operated or maintained by a bona fide religious or sectarian institution; and the right of a natural parent or one in loco parentis to direct the education and upbringing of a child under his control is hereby affirmed; nor shall anything herein contained be construed to bar any private, secondary or post-secondary school from using in good faith criteria other than race, creed, color, national origin or ancestry, age, liability of service in the Armed Forces of the United States, sex and marital status in the admission of students.

REAL ESTATE BROKER - Includes a person, firm or corporation who, for a fee, commission or other valuable consideration or by reason of promise or reasonable expectation thereof, lists for sale, sells, exchanges, buys or rents, or offers or attempts to offer a sale, exchange, purchase or rental of real estate, or solicits for prospective purchasers or assists or directs in the procuring of prospects or the negotiation or closing of any transaction which does or is contemplated to result in the sale, exchange, leasing, renting or auctioning of any real estate, or negotiates or offers or attempts or agrees to negotiate a loan secured or to be secured by mortgage or other encumbrance upon or transfer of any real estate for others or any person who, for pecuniary gain or expectation of pecuniary gain, conducts a public or private competitive sale of lands or any interest in lands. In the sale of lots, the term "real estate broker" shall also include any person, partnership, association or corporation employed by or on behalf of the owner or owners of lots or other parcels and who shall sell or exchange or offer or attempt or agree to negotiate the sale or exchange of any such lot or parcel of real estate.

REAL ESTATE SALESMAN - Includes any person who, for compensation, valuable consideration or commission or other thing of value or by reason of a promise or reasonable expectation thereof, is

employed by and operates under the supervision of a licensed real estate broker to sell or offer to sell, buy or offer to buy or negotiate the purchase, sale or exchange of real estate, or offers or attempts to negotiate a loan secured or to be secured by a mortgage or other encumbrance upon or transfer of real estate or to lease or rent, or offer to lease or rent, any real estate for others, to collect rents for the use or other encumbrance upon or transfer of real estate, or to lease or rent, or who is employed by a licensed real estate broker to sell or offer to sell lots or other parcels of real estate, at a stated salary or upon a commission, or upon a salary and commission, or otherwise to sell real estate, or any parts thereof, in lots or other parcels.

REAL PROPERTY - Includes real estate, lands, tenements and hereditaments, corporeal and incorporeal, and leaseholds; provided, however, that the provisions of this Article shall not apply to the rental of a single apartment or flat in a two-family dwelling, the other occupancy unit of which is occupied by the owner as his residence or the household of his or her family at the time of such rental, or of a room or rooms to another person or persons by the owner or occupant of a one-family dwelling occupied by him or her as his or her residence or the household of his or her family at the time of such rental. Nothing herein contained shall be construed to bar any religious or denominational institution or organization, or any organization operated for charitable or education purposes, which is operated, supervised or controlled by or in connection with a religious organization, in the sale, lease or rental of real property, from limiting admission to or giving preference to persons of the same religion or denomination or from making such selection as is calculated by such organization to promote the religious principles for which it is established or maintained.

§ 148-4. Unlawful practices.

It shall be an unlawful practice:

A. For any owner, lessee, proprietor, manager, superintendent, agent or employee of any place of public accommodation directly or indirectly to refuse, withhold from or deny to any person any of the accommodations, advantages, facilities or privileges thereof, or to discriminate against any person in the furnishing thereof, or directly or indirectly to publicize, circulate, issue, display, post or mail any written or printed communications, notice or advertisement to the effect that any of the accommodations, advantages, facilities or privileges of any such place will be refused, withheld from or denied to any person on account of the race, creed, color, national origin, ancestry, age, liability for service in the Armed Forces of the United States, sex or marital status or that such person is unwelcome, objectionable or not acceptable, desired or solicited; and the production of any such written or printed communication, notice or advertisement, purporting to relate to any such place and to be made by any owner, lessee, proprietor, superintendent or manager thereof, shall be presumptive evidence in any action that the same was authorized by such person.

B. For the owner, lessee, sublessee, assignee or managing agent of or other person having the right of ownership or possession of or the right to sell, rent, lease, assign or sublease any real property or part or portion thereof, or any agent or employee of any of these:

(1) To refuse to sell, rent, lease, assign or sublease or otherwise deny to or withhold from any person or group of persons any real property or part or portion thereof because of the race, creed, color, national origin, ancestry, age, liability to the Armed Forces of the United States, sex or marital status of such person or group of persons;

(2) To discriminate against any person or group of persons because of the race, creed, color, national origin, ancestry, age, liability for service in the Armed Forces of the United States, sex or marital status of such person or group of persons in the terms, conditions or privileges of the sale, rental or lease of any real property or part or portion thereof or in the furnishing of facilities or services in connection therewith; or

(3) To print, publish, circulate, issue, display, post or mail, or cause to be printed, published, circulated, issued, displayed, posted or mailed, any statement, advertisement, publication or sign or to use any form or application for the purchase, rental, lease, assignment or sublease of any real property, or part or portion thereof, which expresses, directly or indirectly, any limitation, specification or discrimination as to race, creed, color, national origin, ancestry, age, liability to service in the Armed Forces of the United States, sex, marital status or any intent to make such limitation, specification or discrimination, and the production of any such statement, advertisement, publicity, sign, form of application, record or inquiry purporting to be made by any such person shall be presumptive evidence in any action that the same was authorized by such person.

C. For any real estate broker, real estate salesman or employee or agent thereof:

(1) To refuse to sell, assign, lease or sublease or offer for sale, rental, lease, assignment or sublease any real property or part or portion thereof to any person or group of persons or to refuse to negotiate for the sale, rental, lease, assignment or sublease of any real property or part or portion thereof to any person or group of persons because of the race, creed, color, national origin, ancestry, age, liability to the Armed Services of the United States, sex or marital status of such person or group of persons, or to represent that any real property or portion thereof is not available for inspection, sale, rental, lease, assignment or sublease when in fact it is so available, or otherwise to deny or withhold any real property or any part or portion of facilities thereof to or from any person or group of persons because of the race, creed, color, national origin, ancestry, age, liability or service in the Armed Forces of the United States, sex, marital status of such person or group of persons;

(2) To discriminate against any person because of his race, creed, color, national origin, ancestry, age, liability to service in the Armed Forces of the United States, sex or marital status in the terms, conditions or privileges of the sale, rental, lease, assignment or sublease of any real property or part or portion thereof or in the furnishing of facilities or services in connection therewith; or

(3) To print, publish, circulate, issue, display, post or mail, or cause to be printed, published, circulated, issued, displayed, posted or mailed, any statement, advertisement, publication or sign or to use any form of application for the purchase, rental, lease, assignment or sublease of any real property or part or portion thereof or to make any record or inquiry in connection with the prospective purchase, rental, lease, assignment or sublease of any real property or portion thereof which expresses, directly or indirectly, any limitation, specification or discrimination as to race, creed, color, national origin, ancestry, age, liability to service in the Armed Forces of the United States, sex or marital status, or any intent to make such limitation, specification or discrimination, and the production of any such statement, advertisement,

publicity, sign, form of application, record or inquiry purporting to be made by any such person shall be presumptive evidence in any action that the same was authorized by such person.

D. For any real estate broker, real estate salesman or employee or agent thereof:

(1) To refuse to sell, assign, lease or sublease or offer for sale, rental, lease, assignment or sublease any real property or part or portion thereof to any person or group of persons because of their race, creed, color, national origin, ancestry, age, liability to the Armed Services of the United States, sex or marital status of such persons or group of persons or to represent that any real property or portion thereof is not available for inspection, sale, rental, lease assignment or sublease when in fact it is so available or otherwise to deny or withhold any real property or any part or portion or facilities thereof to or from any person or group of persons because of the race, creed, color, national origin, ancestry, age, liability to service in the Armed Forces of the United States, sex or marital status of such person or group of persons;

(2) To discriminate against any person because of his race, creed, color, national origin, ancestry, age, liability to service in the Armed Forces of the United States, sex or marital status in the terms, conditions or privileges of the sale, rental, lease, assignment or sublease of any real property or part or portion thereof or in the furnishing of facilities or services in connection therewith; or

(3) To print, publish, circulate, issue, display, post or mail, or cause to be printed, published, circulated, issued, displayed, posted or mailed, any statement, advertisement, publication or sign or to use any form of application for the purchase, rental, lease, assignment or sublease of any real property or part or portion thereof or to make any record or inquiry in connection with the prospective purchase, rental, lease, assignment or sublease of any real property or portion thereof which expresses, directly or indirectly, any limitation, specification or discrimination as to race, creed, color, national origin, ancestry, age, liability to service in the Armed Forces of the United States, sex or marital status or any intent to make such statement, advertisement, publicity, sign, form or application, record or inquiry purporting to be made by any such person shall be presumptive evidence in any action that the same was authorized by such person.

E. For any person, bank, banking organization, mortgage company, insurance company or other financial institution or lender to whom application is made for financial assistance for the purchase, acquisition, construction, rehabilitation, repair or maintenance of any real property or part or portion thereof or any agent or employee thereof:

(1) To discriminate against any person or group of persons because of the race, creed, color, national origin, ancestry, age, liability to service in the Armed Forces of the United States, sex or marital status of such person or group of persons or of the prospective occupants or tenants of such real property or part or portion thereof, in the granting, withholding, extending, modifying or renewing or in the fixing of the rates, terms, conditions or provisions of any such financial assistance or in the extension of services in connection therewith; or

(2) To use any form of application for such financial assistance or to make any record or inquiry in connection with applications for such financial assistance which expresses, directly or indirectly, any limitation, specification or discrimination as to race, creed, color, national origin, ancestry, age, liability to service in the Armed Forces of the United States, sex or marital status or any intent to make such limitation, specification or discrimination.

§ 148-4.1. Pay transparency. [Added 3-23-2022 by Ord. No. 22-026; amended 6-15-2022 by Ord. No. 22-045]

A. An employer, employment agency, or agent of an employer, within the City of Jersey City and which advertises by any means to provide notice of employment opportunities, transfers, or promotions for the Jersey City employer, whether such employment, promotion or transfer is temporary or permanent, shall be required to include a minimum and maximum annual salary or hourly wage, to said posting or advertisement. In stating the minimum and maximum annual salary or hourly wage for a position, the range may extend from the lowest to the highest salary the employer in good faith believes at the time of the posting it would pay for the advertised job, promotion or transfer opportunity.

1. For purposes of paragraph A, an employer means an employer that has five or more persons in their employ within Jersey City on the date of the notice or advertisement. For purposes of this definition, persons working as independent contractors in furtherance of the employer's business shall be counted as employees.

B. As per N.J.S.A. § 34:6B-20, it shall be unlawful and punishable through State law for a New Jersey employer to screen a job applicant based on the applicant's salary history or to require that the applicant's salary history satisfy any minimum or maximum criteria.

C. Any violations regarding this section, with the exception of subsection C, may be reported to the City's Office of Code Compliance (OCC) or to the Women's Advisory Board for referral to the OCC for possible prosecution under Chapter 1 of this Code, General Provisions § 1-25.

§ 148-5. Enforcement.

The Jersey City Human Rights Commission is hereby vested with the authority to administer and enforce this chapter and in conjunction therewith may promulgate and issue regulations.

§ 148-6. Complaints; investigations; hearings. [Amended 12-11-1986 by Ord. No. C-298]

A. Any person claiming to be aggrieved by an alleged unlawful housing practice or an alleged unlawful public accommodation practice forbidden by this chapter may by himself or herself or by his attorney at law make, sign and file with the Office of the Human Rights Commission a verified complaint in writing which shall state the name and address of the person or persons alleged to have committed the unlawful practice complained of and which shall set forth the particulars thereof and contain such other information as may be reasonably required by the Office of the Human Rights Commission. The Commission, upon its own initiative, may in like manner sign and file a complaint. The

Commission, however, shall not accept a complaint from any person who has filed a complaint with the New Jersey State Division of Civil Rights with respect to the same grievance. The complainant shall have the power to reasonably and fairly amend any complaint, and the respondents shall have the power to amend their answer.

B. After the filing of a complaint, the office and staff of the Human Rights Commission shall cause a prompt investigation to be made of the alleged unlawful practice; filing a complaint with the Commission shall not preclude the complainant from filing a complaint with the New Jersey Division of Civil Rights or with any other agency or commission.

C. If, after such an investigation, the Executive Director of the Human Rights Commission determines that no probable cause exists for crediting the allegations of the complaint, he or she shall within ten (10) days from such determination cause to be issued and served upon the complainant written notice of such determination. The notice shall also state that the complaint will be dismissed unless within ten (10) days after such service the complainant or his attorney file, with the office of the Human Rights Commission, a request for a review hearing. The Office of the Human Rights Commission shall upon request for such a hearing provide the complainant or his attorney, if any, an opportunity to appear before the Executive Director of the Human Rights Commission or a member of the Human Rights Commission or a staff representative of the Commission, at the election of the Commission, to present such additional information as may be available to support the allegations of the complaint. If after such a hearing the hearing agent determines that there is no basis for the allegation, the complaint shall be dismissed. There shall be no appeal from a decision of dismissal. A dismissal shall not be a bar to the filing of a complaint with the New Jersey Division of Civil Rights.

D. If, after such investigation, the Executive Director of the Human Rights Commission shall determine that probable cause exists for the allegations of the complaint, he or she may elect to: **[Amended 10-07-2020 by Ord. No. 20-088]**

(1) Eliminate the unlawful practice complained of by conference and conciliation. Such conference shall be opened to the public unless otherwise requested by one or both of the parties to the conference;

(2) Sign a complaint against the alleged offending person for trial before the Municipal Court; or

(3) Refer the entire file to the Municipal Prosecutor for such action as he or she may deem proper or necessary in the circumstances.

E. A person claiming to be aggrieved as set forth in this chapter may elect to file a complaint directly to the Municipal Court and prosecute the same on his or her own behalf or to pursue any other proper procedure that he or she may elect.

F. No complaint shall be considered unless it is filed with the Office of the Human Rights Commission within 180 days after the alleged act of the discrimination.

§ 148-7. Failure to comply.

In the event that the respondent refuses or fails to comply with any order of the Commission or violates any provisions of this chapter, the Commission shall cause to have a complaint filed in the Municipal Court for violation of the provisions of this chapter against the respondent.

§ 148-8. Violations and penalties. [Amended 12-11-1986 by Ord. No. C-298]

Any person who violates any provision of this chapter shall, after conviction, be punishable as provided in Chapter 1, General Provisions, Art. I, § 1-25.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

Chapter 151

DRUG-FREE SCHOOL ZONES*

ARTICLE I

Drug-Free Zones

§ 151-1. Map adopted; official record; changes; copies.

§ 151-2. Legislative findings; failure to depict property; additional requirements.

ARTICLE II

Public School Properties

§ 151-3. Public school properties; alcoholic beverages; intoxicating substances; loitering; soliciting alms; gambling.

§ 151-4. Enforcement.

ARTICLE III

Municipal Alliance Committee to Combat Drug and Alcohol Abuse

§ 151-5. Establishment of the Committee.

§ 151-6. Purpose.

§ 151-7. Powers of the Committee.

§ 151-8. Membership.

ARTICLE I

Drug-Free School Zones

[Adopted 10-23-2002 by Ord. No. 02-114; amended 4-13-2011 by Ord. No. 11-036]

§ 151-1. Map adopted; official record; changes; copies. [Amended 3-11-2020 by Ord. No. 20-024]

A. In accordance with and pursuant to the authority of N.J.S.A. 2C:35-7 and N.J.S.A. 2C:35-7.1, the map consisting of one overall key map at one inch equivalent to 1,000 feet, and eight enlarged scale maps at one inch equivalent to 400 feet as produced by the Municipal Engineer of the City of Jersey City on October 31, 2019 and revised on December 23, 2019 is hereby approved and adopted as an official finding and record of the location and areas on or within 1,000 feet of school property as defined in N.J.S.A. 2C:35-7, and also is hereby approved and adopted as an official finding and record of the location and areas in, on or within 500 feet of the real property comprising a public park defined in N.J.S.A. 2C:35-7.1, hereinafter "drug-free zone map."

B. The drug-free zone map adopted by Ordinance 20-024, pursuant to § 151-1 of the Jersey City Municipal Code, shall continue to constitute an official finding and record of the location and boundaries of the area or areas on or within 1,000 feet of school property pursuant to § 151-1.

The drug-free zone map shall also continue to constitute an official finding and record of the location and boundaries of the area or areas in, on or within 500 feet of the real property comprising a public park pursuant to § 151-1 of the Jersey City Municipal Code.

C. The School Board, or the Chief Administrative Officer in the case of any private or parochial school, shall promptly notify the Municipal Engineer and the Corporation Counsel of the City of Jersey City

*__History__—Adopted by the Council of the City of Jersey City 9-22-1988 as Ord. No. C-804. Amendments noted where applicable.
__Cross reference__—Peace and good order, Ch. 242.

of any changes or contemplated changes in the location and boundaries of any property owned by or leased to any elementary or secondary school or school board and used for school purposes pursuant to N.J.S.A. 2C:35-7. The appropriate parks department in the case of a "public park" shall notify the Municipal Engineer and the Corporation Counsel of the City of Jersey City of any changes or contemplated changes in the location and boundaries of any "public park" pursuant to N.J.S.A. 2C:35-7.1.

D. The City Clerk shall provide certified copies of the drug-free zone map:

(1) At a reasonable cost to any person, agency or court which may from time to time request such a copy, along with a certification that such copy is a true copy of the map approved and adopted herein and kept on file; and

(2) Without cost to the Hudson County Clerk and to the Office of the Hudson County Prosecutor.

E. Nothing in the within section shall be construed to preclude the prosecution from introducing or relying upon any other evidence or testimony to establish any element of this offense, nor shall the within section be construed to preclude the use or admissibility of any map or any diagram other than one which has been approved by the Governing Body of the City of Jersey City provided that the map or diagram is otherwise admissible pursuant to rules of evidence.

§ 151-2. Legislative findings; failure to depict property; additional requirements.

A. It is understood that the map approved and adopted pursuant to § 151-1 of this chapter was prepared and is intended to be used as evidence in prosecutions arising under the criminal laws of this state and that pursuant to state law, such map shall constitute prima facie evidence of the following:

(1) The location of elementary and secondary schools within the City of Jersey City.

(2) The boundaries of the real property which is owned by or leased to such schools or a school board.

(3) That such school property is and continues to be used for school purposes.

(4) The location and boundaries of areas which are on or within one thousand (1,000) feet of such school property.

(5) Except as is otherwise expressly noted on the face of the adopted map, all of the property depicted as school property was owned by a school or school board and was being used for school purposes as of July 9, 1987, that being the effective date of L. 1987, c. 101 (N.J.S.A. 2C:35-7).

B. Pursuant to the provisions of L. 1988, c. 44, a prosecutor is not precluded from introducing or relying upon any other evidence or testimony to establish a violation of the offense defined in that statute, including use of a map or diagram other than the one approved and adopted pursuant to § 151-1 of this chapter. The failure of the map approved herein to depict the location and boundaries of any property which is, in fact, used for school purposes and which is owned by or leased to any elementary

or secondary school or school board, whether the absence of such depiction is the result of inadvertent omission or the result of any changes in the location and boundaries of such property which have not yet been incorporated into a revised approved map, shall not be deemed to be an official finding and record that such property is not owned by or leased to a school or school board or that such property is not used for school purposes.

C. All of the requirements set forth in L. 1988, c. 44, concerning the preparation, approval and adoption of a Drug-Free School Zone Map have been complied with.

ARTICLE II

Public School Properties

[Adopted 10-23-2002 by Ord. No. 02-114]

§ 151-3. Public school properties; alcoholic beverages; intoxicating substances; loitering; soliciting alms; gambling.

No person on, within, or upon the sidewalks or public rights-of-way abutting any elementary or secondary public school properties shall:

A. Possess or drink alcoholic beverages, except where approved by appropriate school authorities and in accordance with applicable laws.

B. Enter on, within, or upon such properties when under the influence of an alcoholic beverage or other intoxicating substance.

C. Loiter or in any manger stay on, within, or upon such properties without an appropriate purpose.

D. Solicit alms or contributions for any purpose, whether public or private, except where approved by appropriate school authorities and in accordance with applicable laws.

E. Enter an area posted as closed to the public, nor shall any person use or abet the use of any area in violation of posted notices.

F. Gamble or participate or abet any game of chance.

G. Engage in loud, boisterous, threatening, abusive, insulting or indecent language or engage in any disorderly conduct or behavior tending to breach the public peace.

H. Destroy, damage, or otherwise interfere with real or personal property.

I. Litter, write upon, post flyers, or otherwise disturb or diminish the appearance of any such properties.

§ 151-4. Enforcement.

A. The police, school security personnel, and any other persons authorized by law shall have the authority to eject from on, within, and upon school properties any person acting in violation of §151-3.

B. The police, school security personnel, and any other persons authorizing by law shall have the authority to seize and confiscate any property, item or device used in violation of § 151-3.

ARTICLE III

Municipal Alliance Committee to Combat Drug and Alcohol Abuse

§ 151-5. Establishment of the Committee. [Added 10-11-2017 by Ord. No. 17-138]

The Municipal Council authorizes the creation of the Jersey City Municipal Alliance Committee to Combat Drug and Alcohol Abuse pursuant to N.J.S.A. 26:2BB-9.

§ 151-6. Purpose. [Added 10-11-2017 by Ord. No. 17-138]

The purpose of the Committee is to coordinate with the State to ameliorate and combat the problems that arise from untreated substance abuse and its detrimental impact upon society as well as a detrimental fiscal impact on local government.

§ 151-7. Powers of the Committee. [Added 10-11-2017 by Ord. No. 17-138]

A. The Committee may:

(1) Develop community-based education and prevention designed to curtail substance abuse;

(2) Conduct a yearly needs assessment of the City's existing drug and alcohol prevention measures and produce a report for the Mayor and Municipal Council;

(3) Coordinate education and prevention projects to avoid program fragmentation and duplication;

(4) Develop education and prevention programs to be implanted at the municipal level or participate in regionally developed prevention programs;

(5) Assist the municipality in acquiring funds for substance abuse prevention, education and recovery programs;

(6) Assist with the implementation of any state-wide or regional alliance programs formulated pursuant to N.J.S.A. 26:2BB-8.

§ 151-8. Membership. [Added 10-11-2017 by Ord. No. 17-138]

A. Pursuant to N.J.S.A. 26:2BB-9, the Committee shall include four ex officio members and seven members of the community to be appointed by the Mayor with the advice and consent of the Municipal Council.

Ex officio members:

(1) The Chief of Police or his or her designee;

(2) The President of the Board of Education or his or her designee;

(3) The Superintendent of Schools or his or her designee;

(4) The School Substance Abuse Coordinator.

Community members:

(1) A representative from the Parent-Teacher Association;

(2) A representative from the Teacher's Union;

(3) A representative from the Chamber of Commerce;

(4) A municipal court judge;

(5) A representative from a civic or neighborhood association;

(6) A religious leader; and

(7) A private citizen or youth representative.

At least six of the Committee members shall reside in Jersey City. The community members shall serve for one year, but shall serve at the pleasure of the Mayor.

Chapter 157

ENTERTAINMENT LICENSES

§ 157-1. Purpose and official comments.
§ 157-2. Definitions.
§ 157-3. License required; types of licenses; restrictions.
§ 157-4. Fees; inactive license; surrender; expiration; hours of operations.
§ 157-5. Applications; qualifications; procedure for review.
§ 157-6. Publication of application notice.
§ 157-7. License renewal or transfer; change of ownership.
§ 157-8. Operating requirements.
§ 157-9. Suspension or revocation; Director of Public Safety or the Director of the Division of Commerce authorized.
§ 157-10. Interpretative guide.
§ 157-10.1. Variance.
§ 157-11. Mary McLeod Bethune Life Center.

[HISTORY: Adopted by the Council of the City of Jersey City 6-24-1998 by Ord. No. 98-081; amended 6-23-2004 by Ord. No. 04-062; 6-27-2007 by Ord. No. 07-122; 1-25-2012 by Ord. No. 12-001]

§ 157-1. Purpose and official comments.

A. Purpose; official comments.

(1) The City of Jersey City has repeatedly experienced serious civil disturbances and other occurrences detrimental to the public's safety, health and welfare associated with entertainment and dance venues (these problems include but are not limited to riots, disorderly groups, public consumption of alcohol, and public urination). Consequently, this chapter is enacted to license and regulate these activities except those directly sponsored and self-regulated by the city itself.

(2) Social clubs are expressly regulated by this chapter because recent experience has shown that attempts have been made to circumvent the general regulatory process. (For example, for-profit nightclubs have reorganized as private membership clubs to circumvent the Alcoholic Beverage Law.)*

*** Editor's Note: See N.J.S.A. 33:1-1 et seq.**

(3) This chapter also prohibits obscene entertainment and obscene dancing and contains a definition of obscenity and pornography that reflects contemporary community standards as enforceable by relevant judicial decisions. It also explicitly incorporates by reference the prohibitions on pornography and obscenity found in Chapter 251 of the Municipal Code. In enacting this prohibition, the City Council relied on extensive evidence of long-standing community's standards. Testimony was taken from ordinary citizens as well as members of the clergy, teachers, business people and professionals. The Council issued legislative findings that the people of Jersey City are offended by obscenity and pornography:

(a) Jersey City seeks to maintain an atmosphere as conducive as possible to families in a densely populated urban setting.

(b) Obscenity and pornography have had no place in the public life of Jersey City. Historically, no so-called adult bookstores or adult theaters have operated here. In addition, no erotic dancing venues have ever been allowed to operate here in the city, notwithstanding their presence in adjacent communities. Therefore, these legislative findings support the existence of community standards that allow for the constitutional circumscription of such activity, and the city will continue to enforce these social norms through legal sanctions.

(4) The Director of the Division of Commerce is given primary jurisdiction over this chapter. However, given the public safety concerns, the Director of Public Safety also shares in its administration: § 157-9 authorizes the Director of Public Safety, upon a notice and hearing, to suspend licenses on an emergent basis. **[Amended 1-25-2012 by Ord. No. 12-001; 9-11-2013 by Ord. No. 13-081]**

B. This chapter is to be liberally construed in order to effectuate its purpose.

§ 157-2. Definitions. [Amended 1-25-2012 by Ord. No. 12-001]

The following terms shall have the meanings indicated when used in this chapter:

AGGRIEVED PARTY — Any person, persons, or entity, whether corporate or private, aggrieved by the sound of entertainment emanating from a Licensed Establishment.

DECIBEL LEVEL — A unit for measuring the volume of a sound, equal to twenty times the logarithm to the base ten of the ratio of the pressure of the sound measured to the reference pressure, which is twenty micropascals (twenty micronewtons per square meter).

DECIBEL MEASUREMENT — A measurement taken as follows:

Indoors - from any point of the room, in the premises of an aggrieved party, most affected by the sound, but not from areas which receive only casual use, e.g., hallways, bathroom and closets. All exterior doors and windows in the premises shall be closed and all sound sources within the premises, e.g., television, radio and stereo, shall be shut off at the time of measurement.

Outdoors - from any point within the property boundaries of an aggrieved party (excluding City rights-of way; e.g., streets and sidewalks), or the measurement may be taken from any point outside of the Licensed Establishment at the discretion of the City.

DIRECTOR — The Director of Commerce in the Department of Housing, Economic Development and Commerce.

ENTERTAINMENT — Any live act, including vocalists, actors, dancers, floor shows, instrumentalists and recorded music played by a D. J.

ENTERTAINMENT LICENSE — A license issued pursuant to this chapter regulating entertainment.

ESTABLISHMENT — A premises for which an entertainment license has been issued.

OBSCENITY AND PORNOGRAPHY — Obscenity and pornography exist when under contemporary standards in the community the entertainment taken as a whole, appeals to prurient interests; and the entertainment describes in a patently offensive way sexual conduct; and when the entertainment taken as a whole, lacks serious literary, artistic, political or scientific value. [NOTE: Miller v. California, 413 U.S. 15. 93 S. Ct. 2607, 37 L. Ed. 2d 419 (1973), rehearing denied, 414 U.S. 881, 94 S. Ct. 26, 38 L. Ed. 2d 128 (1973).] This definition incorporates by reference definitions contained in Chapter 251 of the Municipal Code.

OUTDOOR ENTERTAINMENT — Any entertainment taking place beyond the outside perimeter walls of the licensed premises or any entertainment which is intended to be audible or which is actually audible beyond such perimeter walls.

PERSON — Any natural person(s), or a partnership, corporation or legal entity.

VENUE — Any nightclub or restaurant as defined in Chapter 345 of this Code, including but not limited to a social or private club.

§ 157-3. License required; types of licenses; restrictions. [Amended 1-25-2012 by Ord. No. 12-001; 9-11-2013 by Ord. No. 13-081]

A. A license as described in this chapter is required for any live entertainment taking place in any venue, as defined in § 157-2, in the City of Jersey City except that no such license will be required for events taking place in or on any City-Owned building or property or for any event which is sponsored or co-sponsored by the city. All existing Entertainment License holders must renew in accordance with the regulations herein within 60 days of the enactment of this ordinance. All existing Entertainment License holders, unless qualified for a Nightclub Entertainment License as regulated herein, will be permitted to renew pursuant to the Restaurant Entertainment License. An entertainment license is granted to a specific person to offer entertainment in a specified place. There shall be two Entertainment License categories: Nightclub and Restaurant.

(1) Nightclub Entertainment License. This license is available only in zoning districts where a nightclub is permitted pursuant to Jersey City Code Chapter 345 or a duly adopted Redevelopment Plan. A Nightclub Entertainment License shall further be categorized as follows:

Class 1 - For establishments with a capacity greater than one hundred (100) people;

Class 2 - For establishments with a capacity of one hundred (100) people or fewer;

All Nightclub Entertainment Licenses shall be subject to the following:

(a) Notwithstanding noise regulation in Chapter 222 of the Jersey City Code to the contrary, any entertainment under this Nightclub Entertainment License shall be restricted to a decibel level of 65 dB from Noon to 10 P.M., and shall be restricted to 50 dB from 10 P.M. to close of entertainment in accordance with § 157-4C(1), seven days per week:

(b) Outdoor entertainment shall be prohibited in all establishments, except where specifically requested in the license application for a certain part of the establishment and approved by the

Director and specifically indicated on the actual license. Outdoor entertainment shall not be the norm and shall only be granted where the Director is convinced that it would not unreasonably interfere with the quality of life of the surrounding community. In determining whether or not to grant outdoor entertainment, the Director shall consider, but not be limited to, the following criteria: the nature of the establishment; the location of the establishment including its proximity to residential properties; the input of residents of the surrounding area; and the history (if any) of the establishment. Furthermore, the Director shall not permit outdoor entertainment beyond the hours described in § 157-4C(4).

(c) The Director may, in consultation with the Department of Public Safety, establish any reasonable conditions deemed necessary for the health, safety, and welfare of the public prior to granting any license. Any such conditions established shall be listed on the license.

(2) Restaurant Entertainment License. This license is available only in zoning districts where a Category 1 Restaurant is permitted pursuant to Jersey City Code Chapter 345 or a duly adopted Redevelopment Plan, except that in the Restaurant Row Overlay Zone (ROZ), a category 2 Restaurant shall also be eligible for this license and except that no entertainment license shall be permitted within the lower J.F.K. Boulevard NC Zoning District.

Class 1 - For Establishments with a capacity greater than one hundred (100) people;

Class 2 - For establishments with a capacity of one hundred (100) people or fewer:

All Restaurant Entertainment Licenses shall be subject to the following:

(a) Notwithstanding noise regulation in Chapter 222 of the Jersey City Code to the contrary, any entertainment under this Restaurant Entertainment License shall be restricted to a decibel level of 55 dB from Noon to 10 P.M., and shall be restricted to 45 dB from 10 P.M. to close of entertainment in accordance with § 157-4C(1), seven days per week.

(b) Outdoor entertainment shall be prohibited in all establishments, except where specifically requested in the license application for a certain part of the establishment and approved by the Director and specifically indicated on the actual license. Outdoor entertainment shall not be the norm and shall only be granted where the Director is convinced that it would not unreasonably interfere with the quality of life of the surrounding community. In determining whether or not to grant outdoor entertainment, the Director shall consider, but not be limited to, the following criteria: the nature of the establishment; the location of the establishment including its proximity to residential properties; the input of residents of the surrounding area; and the history (if any) of the establishment. Furthermore, the Director shall not permit outdoor entertainment beyond the hours described in § 157-4C(4).

(c) The Director may, in consultation with the Department of Public Safety, establish any reasonable conditions deemed necessary for the health, safety, and welfare of the public prior to granting any license. Any such conditions established shall be listed on the license.

(d) A Restaurant Entertainment Licensee shall not locate or place entertainment within 10 feet of any entrance door or open window existing within the establishment.

§ 157-4. Fees; inactive license; surrender; expiration; hours of operations. [Amended 1-25-2012 by Ord. No. 12-001]

A. Except as provided in § 157-3, no person shall keep, maintain, or operate any entertainment or dance venue without obtaining a license from the Director. A license shall be issued only if both the venue and the applicant comply with relevant standards. The fee schedule shall be as follows:

Nightclub Entertainment License Class 1: $1,200 per year or part thereof;

Nightclub Entertainment License Class 2: $1,000 per year or part thereof;

Restaurant Entertainment License Class 1: $800 per year or part thereof;

Restaurant Entertainment License Class 2: $600 per year or part thereof.

B. If a licensee fails to conduct entertainment at the licensed premises in a period of three months, the Director may revoke the license after a hearing has been held on ten (10) days' notice.

C. The hours of operation for a licensee under this chapter shall be as follows:

(1) Permitted hours for entertainment:

Nightclubs:	Noon to 2:00 a.m., Sunday—Thursday
	Noon to 3:00 a.m., Friday—Saturday
	Noon to 4:00 a.m., New Year's Eve
Restaurants:	Noon to 1:00 a.m., Sunday—Thursday
	Noon to 2:00 a.m., Friday—Saturday
	Noon to 3:00 a.m., New Year's Eve

(2) With reference to establishments holding Nightclub Entertainment Licenses, no person whatsoever, except the licensee and the licensee's employees and agents, may be on the licensed premises after closing time until 12:00 p.m. of that day, Monday through Sunday.

(3) With reference to establishments holding Nightclub Entertainment Licenses, entertainment must be terminated not later than fifteen (15) minutes prior to the establishment's closing time to assure that patrons are out by the actual closing time.

(4) Notwithstanding any later hour permitted in accordance with Section 157-4(c)(l), in venues where Outdoor Entertainment is permitted, it shall cease promptly at 10:00 p.m. on Sunday through Wednesday and 10:30 p.m. on Thursday through Saturday, or such earlier "close of entertainment" hour as mandated by § 157-3A(l)(b); § 157-3A(l)(c); § 157-3A(2)(b); and § 157-3A(2)(c).

§ 157-5. Applications; qualifications; procedure for review.

A. Applicants shall be of good moral character and shall file an application under oath with Director on forms approved by the Director. All applications shall be reviewed by the Division of Commerce and

the Department of Public Safety. The premises shall be inspected by the Department of Public Safety, the Division of Health and the Division of Buildings for compliance with relevant laws and regulations. **[Amended 9-11-2013 by Ord. No. 13-081]**

B. The application shall be made under oath and shall contain the class of license sought, names, residences and citizenship status of all persons financially interested in the business, and the nature and extent of this interest; and, if a corporation, the names, residences and citizenship of the officers, directors and stockholders, and shall disclose whether the applicant has been convicted of any criminal or quasi-criminal offense, and if so, the date and place of such conviction and the nature of the offense.

C. The application shall also include a sworn statement signed by the applicants agreeing to comply with the relevant laws, rules and regulations of the United States, the State of New Jersey and the City of Jersey City.

D. The application shall have attached a copy of the plans and specifications of the premises sought to be licensed.

E. All relevant land use approvals, including approved site plans, together with a valid certificate of occupancy, are conditions precedent for the approval of any application.

§ 157-6. Publication of application notice. [Amended 1-25-2012 by Ord. No. 12-001]

A. The applicant shall publish once each week for a period of two weeks in a newspaper of general circulation notice of any new application or application for renewal or transfer of a license. Such notice shall be at the applicant's expense and shall be in a form approved by the Director.

B. Any objections to the issuance of the proposed license or transfer may be filed with the Director within 20 days from the last date of publication of this notice, and all objections must include the name and address of the person who files the objection and the grounds for the objection.

C. If one or more objections are filed, the Director shall hold a hearing no later than 30 days after the last date of publication before approving the license or transfer. All objectors shall receive notice of the time, date and place of the hearing, and it shall be published in the local newspaper and placed upon the City web site. The nonreceipt of such notice shall not void the Director's action.

§ 157-7. License renewal or transfer; change of ownership. [Amended 1-25-2012 by Ord. No. 12-001]

A. No license shall be renewed without the approval of the Director and payment of the appropriate fee. Applications for annual renewal shall comply with all of the relevant provisions of this chapter, including the filing of all forms in § 157-5 and any additional forms required by the Director.

B. The Entertainment License is non-transferable. Upon transfer of a licensed establishment, any existing Entertainment License is automatically voided, and any new Owner/Operator desiring to have entertainment at the venue shall apply for an Entertainment License as required by this Chapter.

C. If the owner of a sole proprietorship, the partners of a partnership or the officers, directors or stockholders of a corporation are changed, their successors shall file an affidavit stating their names, residences, citizenship and the nature and extent of their financial interest in the business. Failure to inform the Director of changes of ownership shall be grounds for suspension or revocation of the license. The Director shall review the validity of an existing license upon change in ownership.

D. The Director may deny an application for a renewal of a license where the licensed premises has been operating in a manner detrimental to the health, safety, and welfare of the people of the City of Jersey City.

§ 157-8. Operating requirements. [Amended 9-11-2013 by Ord. No. 13-081]

A. The licensed premises shall be fully accessible to authorized members of the Department of Public Safety and the various departments of the city having regulatory jurisdiction over the premises.

B. No licensee may offer obscene or pornographic entertainment (as defined in this chapter and in Chapter 251 of the Jersey City Municipal Code).

C. All licenses under this chapter shall be posted securely in a conspicuous place at the main entrance to the licensed premises.

D. Any licensee under this chapter must also comply with any other relevant permit requirement such as those required by the Department of Public Safety and Division of Health.

E. If a licensee charges patrons for parking, the fifteen-percent parking tax required under §§ 304-1 through 304-3 must be paid to the City.

F. The licensee shall designate a person(s) as supervisor(s) of events and shall register his or her name with the Director. A supervisor shall be present during the dance or entertainment to assure that it is conducted in an orderly manner.

§ 157-9. Suspension or revocation; Director of Public Safety or the Director of the Division of Commerce authorized. [Amended 9-11-2013 by Ord. No. 13-081]

A. Pursuant to a ten-day notice in writing to the licensee and after a hearing, the Director may suspend or revoke any license if:

(1) The owner, partner, or agent has been convicted of a crime under federal or state law;

(2) Has violated any of the provisions of this chapter;

(3) Has been found responsible for any acts constituting a breach of the peace or a public nuisance;

(4) Where the Director finds the operation of the licensed premises detrimental to the health, safety and welfare of the people of the city.

B. The Director of Commerce or the Director of Public Safety may suspend any license on an emergent basis for a period not exceeding thirty (30) days after a hearing pursuant to two days' notice to the licensee for any of the grounds listed in Subsection A if the Director finds in addition that protection of the public health, safety or welfare requires an immediate suspension.

§ 157-10. Interpretative guide.

A. Severability. If any provision, or portion of a provision, of this chapter, or its application to any person or circumstances, shall be held invalid by a court of competent jurisdiction, the remainder of this chapter, or the application of the provision to other persons or circumstances, shall not be affected.

B. Preemption. Notwithstanding any other provisions of the Code, the conditions and restrictions placed on entertainment and dance in this Chapter supersede any other provisions found in other chapters of the Jersey City Municipal Code.

§ 157-10.1. Variance. [Amended 1-25-2012 by Ord. No. 12-001]

With the exception of variances from the requirements of Chapter 345 (Zoning) and hours of operation and decibel levels, an applicant or licensee may request a variance from the strict compliance with a specific requirement of this article by requesting same in writing to the Business Administrator. The application should contain all pertinent details, together with documentation, which the applicant or licensee wishes considered. The approval or denial of the application for variance shall be at the discretion of the Business Administrator and shall not be approved absent a showing that strict compliance with the specific requirement would create a practical hardship for the applicant and that the proposed alternative will in no way jeopardize the health, safety, and welfare of the public. The City Council shall be notified of any variance granted by the Business Administrator hereunder.

§ 157-11. Mary McLeod Bethune Life Center. [Added 9-22-2004 by Ord. No. 03-163]

Cross reference—Violations and penalties, § 160-6.

A. Permit required. No person or non-profit organization shall be permitted to use any part of the second floor of the Mary McLeod Bethune Life Center also known as, Martin Luther King Drive Community Center [Center], unless it first submits an application, obtains a permit and pays all required fees.

B. Organizations and uses permitted.

1. Use of the Center is strictly limited to community related social, educational, cultural, and recreational uses. Any political, partisan, sectarian, denominational, religious, commercial, business, trade, manufacturing, retailing or any profit making use of the Center is strictly prohibited.

2. Only persons and non-profit organizations may use the Center, on a first come first serve basis.

3. No person or non-profit organizations may use the Center for more than six (6) Sessions [each Session being no more than five (5) hours] per calendar year.

4. Any transfer or assignment of the permit, in whole or in part, with or without consideration, is strictly prohibited.

C. Procedure.

1. An application must be completed and filed in the Office of the Business Administrator at the City's office located at the Center, at least fifteen (15) but not more than one hundred eighty (180) days prior to the requested date of the event. Every application shall be date and time stamped at the Center as it is received.

2. Within ten (10) business days, the applicant should be called and/or sent a fax of the decision of the Business Administrator which would indicate the City's denial, approval or approval with amendment(s).

3. (a) If denied, the process ends.

(b) If approved or approved with conditions, the procedure continues with the applicant planning its event and co-coordinating any logistical needs with the Business Administrator.

(c) The Business Administrator will forward all approved and approved with conditions to the City Clerk

4. Should the City determine that the proposed use poses a potential threat to the health, safety or welfare of persons or property, the City may deny, cancel or terminate the permit.

D. Application. The application shall contain at a minimum, the following information:

1. The names, address and telephone numbers of the applicant seeking to use the Center.

2. The name, address and telephone number of the person responsible for the event.

3. In the case of a nonprofit organization, the responsible officers of the organization. The non-profit organization must also submit proof that is recognized as tax exempt under 501(c)(3) of the Internal Revenue Code.

4. A detailed description of activities planned.

5. The approximate number of persons who will be present (number cannot exceed the maximum permitted under State and local law).

6. The requested date of use.

7. The hours the event will start and terminate.

8. A description of any equipment, sound amplification equipment, banners, signs, or other attention-getting devices to be used in connection with the event.

9. If the event is designed to be held by, or on behalf of, any person other than the applicant, the applicant for such permit shall file a letter from that person with the application, authorizing the applicant to apply for the permit on his behalf.

10. Proof of insurance as to type and amount as required by this ordinance or the City's Risk Manager.

11. Any additional information that the City finds reasonably necessary or appropriate.

E. Fees.

1. A non-refundable application fee of twenty-five dollars ($25.00) to cover administrative costs of reviewing the application and issuing the permit, must be paid at the time the application is filed with the City.

2. For each five-hour period [Session] or part thereof for the use of a single room (consisting of approximately one thousand one hundred (1,100) square feet) or any part thereof, the fees shall be calculated on a per room per Session basis in accordance with the following schedule:

Room Fees*		
Six Rooms	$600.00	$300.00 Deposit
Five Rooms	$500.00	$250.00 Deposit
Four Rooms	$400.00	$200.00 Deposit
Three Rooms	$300.00	$150.00 Deposit
Two Rooms	$200.00	$100.00 Deposit
One Room	$100.00	$50.00 Deposit
Cleaning Fees*		
	$100.00	[Returned only if room(s) are cleaned]
Additional Kitchen Fees*		
To Warm Food	$100.00	($50.00 returned only if kitchen is cleaned)
To Cook Food	$150.00	($50.00 returned only if kitchen is cleaned)

*These fees may be waived for City Events or for events conducted by nonprofit organizations that provide certain community services, upon the recommendation of the Mayor and approval of the Municipal Council, in accordance with criteria to be approved by the City.

3. A non-refundable deposit equal to twenty-five percent (25%) of the full amount of the fees shall be due at the time the permit is approved. The balance of the fee and cleaning deposit and, if applicable, the kitchen cleaning deposit, shall be paid in full no later than seven (7) days before the Event.

4. The applicant shall be responsible for providing security for its activities. There shall also be a requirement to engage police officers if police services are determined to be required by Martin Luther King Center Director, after consultation with the Department of Public Safety. An applicant determined to need police services shall be required to pay for such costs and submit proof to the City that it has arranged for such police services no later than seven (7) days before the Event. **[Amended 9-11-2013 by Ord. No. 13-081]**

F. Regulations governing the use of the center.

1. Event times and duration are to be determined by the Martin Luther King Center Director, in consultation with the Business Administrator.

2. No fee may be charged to individuals for admission to the Event. However, if disclosed in the application, fees may be charged by a bona fide fund raiser.

3. The applicant must provide general liability insurance naming the City, its agents, servants and employees as an additional insureds in the minimal amount of one million dollars ($1,000,000.00). The applicant shall provide such additional insurance as to type and amount, as may be determined by the City's Risk Manager. A copy of the Certificate of Insurance must be submitted

at least seven (7) days prior to the Event. However, if the applicant can demonstrate that they are unable to obtain insurance the Business Administrator and Risk Management may waive the requirement.

4. The sale of alcoholic beverages at the Center is strictly prohibited.

   However, there is a limited exception to the prohibition against the sale of alcoholic beverages if the Event is for a bona fide fund raiser and the applicant or its caterer has a liquor license. In that event, then no later than seven (7) days before the Event, the applicant will be required to submit a copy of the liquor license and proof of liquor liability insurance. The liquor liability insurance must specifically insure the City and its agents, servants and employees in an amount to be determined by the City's Risk Manager.

5. No sound equipment may be used at decibel levels that exceed the levels imposed by City Ordinance or other law.

6. At the conclusion of the event, all tables, chairs, podiums, and any other equipment should be arranged in the way they were prior to the event.

7. Any garbage generated should be disposed of in the receptacles provided.

8. The property must be left in broom clean condition.

9. Failure to abide by any of these regulations will result in the immediate termination of a permit and the denial of any future permit from the applicant for one (1) year.

Chapter 160

FEES AND CHARGES*

§ 160-1. Fee schedule established.

§ 160-2. Development fees to fund affordable housing.

§ 160-3. Public safety.

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§ 160-1. Fee schedule established.

Fees shall be as follows:

A. Chapter 3, Administration of Government, Office of the City Clerk. **[Amended 4-26-1995 by Ord. No. 95-027; 8-13-1997 by Ord. No. 97-052; 4-14-1999 by Ord. No. 99-047; 1-28-2004 by Ord. No. 04-007; 10-12-2005 by Ord. No. 05-143; 8-16-2006 by Ord. No. 06-098; 9-27-2006 by Ord. No. 06-108; 4-25-2007 by Ord. No. 07-073; 6-13-2007 by Ord. No. 07-095; 6-24-2015 by Ord. No. 15-082; 9-28-2016 by Ord. No. 16-140; 1-25-2017 by Ord. No. 17-004; 3-9-2022 by Ord. No. 22-022]**

(1) (a) Searches of marriage and civil union license records.

[1] Certified copy: $20.

[2] Certified copy of marriage and civil union license application: $20.

[3] Additional copies: $10.

[4] Additional fee for each additional year searched: $1.

(b) Performance of marriage or civil union ceremony by Mayor, Deputy Mayor, or Municipal Judge, or any City of Jersey City employee authorized by the laws of the State of New Jersey to perform marriages or civil unions.

[1] Where one or both parties are City of Jersey City residents: $75.

[2] Where neither party is a City of Jersey City resident: $100.

(c) Searches of death certificate records.

[1] Certified copy of death certificate: $15.

[2] Additional copies: $5.

***History**—Adopted by the Council of the City of Jersey City at time of adoption of Code; June 14, 1995 by Ord. No. 95-050; see Ch. 1, General Provisions, Art. I. Amendments noted where applicable.

Cross references—Public assemblies, Ch. 90; Construction Codes, Uniform, Ch. 131; taxicabs, limousines and transportation network company vehicles, Ch. 307.

(d) Searches of birth certificate records.

[1] Certified copy of birth certificate: $20.

[2] Additional copies: $10.

(e) Corrections fee for marriage, death and birth records: $20 per record.

(2) Petitions for franchise ordinances or street vacation ordinances: nonrefundable fee of $3,500.

(3) Fees for special service charges and special charges under the New Jersey Open Public Records Act:

(a) Ordinary requests for information.

The statutory fee schedule shall apply to routine requests under OPRA. The fees of N.J.S.A. 47:1A-5 are hereby incorporated herein as such fee schedule presently exists or as such fees might appear in future modifications or amendments of the statute.

(b) No research or interpretation may be compelled.

Nothing in this subsection shall require the custodian of documents or any other municipal official to examine, analyze, tabulate, or interpret documents which are subject to production under OPRA.

(c) Special service charge/special charges authorized.

A. Charges authorized:

The City Clerk or deputy custodian of documents qualifying for mandatory production as "governmental records" under OPRA shall be entitled to special service charges and/or special charges as set forth in this subsection.

B. Requests to be in writing:

Any requests for documents shall be made to the City Clerk in writing and preferably on the form established by the City Clerk for such purposes.

C. Advance notice of fees, special service charges and special charges; deposit:

Any requestor of government records which may be eligible for the imposition of a fee, special charge or special service charge under this subsection shall receive advance notice of the amount of fees and charges before any work is started. The City Clerk shall require prepayment of such charges before causing the work to begin.

(d) Fees, special service charges and special charges when charged; amounts authorized.

A. Duplication or other work beyond capability of municipal-in-house work force:

Whenever the in-house municipal work force or available municipal equipment is insufficient to duplicate or produce government records in a timely fashion, the City Clerk may cause such duplication or production to be accomplished by outside vendors such as copy centers or producers of digital images. If the costs of such

duplication or production charged by such vendors exceeds the routine charges set forth in N.J.S.A. 47:1A-5, the actual direct cost of same without any additional surcharge for labor costs shall be paid.

B. Special service charge authorized:

Whenever government records cannot be reproduced by regular copying equipment or fulfillment of the request would involve extraordinary time and effort (for example, where a large number of records must be recovered from storage or substantive staff time is required to review, redact, sort and/or assemble records), charges may be imposed as follows:

1. The actual cost (materials and supplies but not staff labor) of duplication or reproduction; plus

2. A special service charge of $32.00 per hour or the actual direct cost of labor (if less) shall be imposed for each hour of extraordinary time predicted to be utilized to respond to the request.

C. Rates for in-house production of prints or blueprints:

Any prints or blueprints produced in-house in response to a governmental records request shall be produced for $28.00 per page.

D. Digital records:

If a request for governmental records involves production or conversion of digital or computerized records or film which is:

1. In a medium not routinely used by the agency (i.e., electronic or film);

2. Not routinely developed or maintained by an agency; or

3. Requiring a substantial amount of manipulation or programming of information technology.

E. The requestor shall pay fees and special charges incurred by the City if the conversion is done directly by the City as follows:

1. Direct costs (no overhead) to comply with the request; plus

2. Special charges; the lesser of the cost of technology and labor actually incurred or $45.00 per hour.

(e) Notice of requestor of copyright laws.

A. The City may be compelled by New Jersey Law to produce or duplicate governmental records but no compliance with these legal obligations shall be deemed to constitute a license, sublicense or waiver of copyright laws.

B. The City Clerk shall give the following notice to any requestor of governmental records.

NOTICE-COPYRIGHT LAWS

You must comply with U.S. copyright laws. These laws may restrict your right to use, duplicate or modify the records provided to you by the City of Jersey City. You should consult your own legal counsel on this since severe civil and criminal penalties for violation of copyright laws are provided.

(f) Waivers for governmental educational requestor.

The Mayor, Clerk or City Council (by Resolution may waive the fees or other charges otherwise chargeable if the requestor, of governmental records is a governmental or educational entity.

(4) Photocopies, microfilm copies and blueprint obtained from the Division of Engineering, Traffic and Transportation shall be subject to the following fees:

(a) Photocopying and microfilm.

[1] Up to 99 pages: $0.50 per page.

[2] Over 100 pages: $0.25 per page.

[3] Bound copies: $5 per copy.

[4] Mailed copies (up to 99 pages): $5.

[5] Mailed copies (per 500 pages): $10.

(b) Blueprints.

[1] Blueprints (up to two feet by three feet]: $5 per sheet.

[2] Blueprints (larger): $1 per square foot.

[3] Standard details: $5 per set.

[4] Sewer maps (sets): $50 per set.

[5] Mailed prints (per 10 sheets): $10.

[6] Mailed prints (per 50 sheets): $25.

[7] Bound copies: $5 per set.

(c) Documents and records search: $20.

(d) The following conditions apply to the above charges:

[1] Costs are not to apply to contractors working directly for Jersey City or copies for other Jersey City departments.

[2] Reference documents are not to leave City Hall.

(5) Service charges and Tax Collector fees.

(a) Service charge for returned checks. Pursuant to the authority granted by N.J.S.A. 40:5-18, the City shall impose a service charge in the amount of twenty dollars ($20.00) for each check or other written instrument which is tendered to the City for payment on account of taxes or any other fee, charge, or indebtedness owed to the City, which check or written instrument was returned for insufficient funds. Further, any future payment to be tendered to the City by the payer of any such check or written instrument which was returned for insufficient funds shall only be made in cash, United States Postal Service money order, bank certified check or bank cashier's check.

(i) Tax Collector. The service charge for each item returned shall be applied to the outstanding account balance of any account owed the City for any tax, fee, water and sewer charge, or special assessment, and the service charge authorized by this section shall be included by the Tax Collector on whatever list of delinquent accounts is prepared for the enforcement of the lien.

(ii) Treasurer. For fees/charges due to all other Departments and Divisions of the City, the check or written instrument returned for insufficient funds shall be forwarded promptly to the office of the Treasurer. Upon receipt of the replacement funds and service charge, the Treasurer shall forward the fees/charges to the respective Department/ Division and the service charge assessed for the returned check or written instrument shall be credited to the appropriate revenue account.

(iii) The Business Administrator, at his or her discretion, is authorized to waive the provision above requiring future payments to be tendered in cash, United States Postal Service money order, bank certified check or bank cashier's check on a case by case basis after consideration of all pertinent facts and circumstances. Such waiver shall be communicated in writing.

(b) Fees to be imposed by the Tax Collector.

(i) For a redemption statement: $20.

(ii) For issuance of duplicate tax bills: $5.

(iii) For written responses to inquiries regarding tax payments: $5.

(iv) For a duplicate certificate of redemption: $10.

(v) For issuance of a duplicate tax sale certificate: $100.

(6) Fees for documents maintained by the Office of Assessments.

(a) Documents requested in person at the office of the Tax Assessor: $0.25 per page.

(b) Documents requested in writing: $10 per line item.

(7) Fees for the Department of Public Works.

(a) Rental of containers in three sizes: 10 cubic yard (cy), 20 cubic yards, and 30 cubic yards.

[l] 10cy: $450 includes two tons maximum of solid waste/rubbish.

[2] 20cy: $550 includes three tons maximum of solid waste/rubbish.

[3] 30cy: $650 includes four tons maximum of solid waste/rubbish.

[4] Containers are rented for a period of three days and include one pick-up and disposal fee. If the container is filled in less time and needs to be returned, a payment is required for a second container and related disposal fee.

[5] Additional fees:

a. An additional coverage fee of $115 per ton will be assessed for containers exceeding the maximum tonnage;

b. An additional fee of approximately one-third of the cost of the container will be assessed for each day a container is kept over the allotted three days: $145 for a 10cy container; $180 for a 20cy container; and $220 for a 30cy container.

[6] Reserved.

[7] A fee of $32 will be assessed if a check bounces or a credit card is declined when processing payment of overage fees. This fee will also be assessed on all charge-backs.

[8] Non-profit organizations are eligible to receive roll-off container service at no charge (contingent upon adequate funding being available in the City budget). The non-profit organizations are block associations and civic associations. The container will be used only for community participation and not personal use. The container will be used only for general clean-up of the event. The container is not to be used for improvements or rehabilitation, or properties and buildings. Any construction and demolition waste found in the container will result in the organization being charged for the disposal rate of $115 per ton and a haulage fee of $225. Qualified organizations are eligible to receive one container per year.

(b) Rental of equipment. All organizations are prohibited from using equipment rented from the Department of Public Works to promote and/or advertise political campaigns or candidates being endorsed or elected by voters. The sole purpose of the usage of such equipment is to promote and/or advertise ethnic, cultural and other neighborhood

festivities/parades by all organizations on a "first come first serve" basis throughout Jersey City. A minimum rental time of four hours is required and will only be issued pending availability. The equipment rental fees are:

[1] Dumpster: $300.00;

[2] Litter patrol - 4 hours: $68.00;

[3] Litter patrol - 8 hours: $136.00;

[4] Mechanical street sweeper - Monday through Friday: $110.00;

[5] Mechanical street sweeper - Saturday: $165.00;

[6] Mechanical street sweeper - Sunday: $220.00;

[7] 25cy garbage packer truck - Monday through Friday: $115.00;

[8] 25cy garbage packer truck - Saturday: $170.00;

[9] 25cy garbage packer truck - Sunday: $225.00.

(c) Rental of floats and bleachers. The floats and bleachers are to be driven only by a City employee with a commercial driver's license (CDL) endorsement. A minimum rental time of four hours is required and will only be issued pending availability. The hourly rate shall commence one hour prior to the event and conclude one hour after the event to allow for set-up and break-down. The rental fees are:

[1] Driver: $57.00 per hour;

[2] Small float - Monday through Friday: $200.00;

[3] Small float - Saturday: $250.00;

[4] Small float - Sunday: $325.00;

[5]—[7] Reserved.

[8] Bleachers - Monday through Friday: $200.00;

[9] Bleachers - Saturday: $250.00;

[10] Bleachers - Sunday: $325.00.

(d) Rental supplies. The rental of supplies requires a deposit covering the total amount of the supplies. The failure to return all of the supplies within ten days will result in the forfeiture of the deposit or a portion thereof. Prices are subject to change as a result of State contract pricing. The rental fees are:

[1] Shovels: $25.00 each;

[2] Barrels: $40.00 each;

[3] Fan rakes: $25.00 each;

[4] Metal rakes: $20.00 each;

[5] Push brooms: $15.00 each;

[6] Garbage bags: $80.00 per case of 200 or $0.40 each.

[7] Litter grabber: $20.00 each

[8] Collapsible trash cans: $65.00 each

(e) Municipal Cost Sharing: To offset cost for special cultural events (the aforementioned ethnic, cultural and other neighborhood festivities/festivals/parades), the city will cover a percentage of the total cost for all DPW costs for such events, including rentals of equipment, rentals of float and bleachers or other items in subsection 7 as well as cost from buildings and streets. Marathons, 5k's and other "runs" are exempt from this cost sharing provision. The City shall cost share as per the below:

A. For special cultural events with total DPW cost under this subsection less than $10,000.00 the city will cover 25 percent of that cost.

B. For special cultural events with total DPW costs under this subsection greater than $10,000.00 the city will cover 50 percent of that cost.

(f) To better facilitate the provisions of subsection 7(e) the Department of Public Works should provide each event organizer with a single invoice representing all costs from the whole department per event.

(8) Photocopying fees and fees for documents on file in the Division of City Planning. **[Amended 9-13-2000 by Ord. No. 00-113; 4-23-2008 by Ord. No. 08-045; 9-28-2016 by Ord. No. 16-140; 10-23-2019 by Ord. No. 19-143]**

(a) Photocopying documents on file.

[1] One to 10 pages: $0.75 per page.

[2] Eleven to 20 pages: $0.50 per page.

[3] All pages over 20: $0.25 per page.

(b) In lieu of the photocopying fees specified above, the Division of City Planning shall charge the fees listed below for the following documents:

[1] Blight reports and/or redevelopment plans

a. $10.00 per report or plan;

b. $20.00 cd/DVD of plan or report;

c. 11″ × 17″ print of plan or report.

$20.00 for a plan of less than 100 pages

$40.00 for a plan of 100—199 pages

$60 for a plan of 200 or more pages

[2] Land Development Ordinance: $40.00

[3] Zoning Map: $20.00.

[4] Master Plan: $60.00.

[5] Downtown Development Plan: $10.00.

[6] Flood Letter: $20.00.

(c) Computer-generated maps and pictures in color or black and white

Cost	Paper Size
$20.00	C, D, E
$10.00	Tabloid
$ 5.00	Legal
$ 5.00	Letter

(9) Fees for services extended or materials distributed by the Department of Public Safety. **[Amended 8-13-2003 by Ord. No. 03-104; 9-11-2013 by Ord. No. 13-081; 9-28-2016 by Ord. No. 16-140]**

(a) Photographs.

[1] Up to five: $20 each.

[2] Each additional: $10.

(b) Application processing for and permits to purchase firearms: $10 each.

(c) Clearance visas and letters of good conduct, except that no fee shall be charged where application is made by bona fide religious or charitable organizations: $25.

(d) Fingerprints for bartender permits or other permits where fingerprints are required: $20.

(e) Fingerprinting fee for individuals for any purpose except municipal employment.

[1] Up to three cards: $20.

[2] Each additional card: $3.

(f) Records searching fee: $5.

(g) Copies of all records unless otherwise indicated.

[1] One to 10 pages, per page: $0.75.

[2] Eleven to 20 pages, per page: $0.50.

[3] All pages over 20, per page: $0.25.

(h) Computer research and production of statistical or historical reports of crimes, offenses, accidents or incidents occurring at a specified place or area over a specified period of time, which reports are not otherwise produced for Departmental purposes or by requirement of law: $75 per hour (plus cost of reports at above rates).

(i) Discovery pursuant to New Jersey Court Rules 7:4-2(h) and 3:13-3: $10.

Accident Reports:

[1] Initial Report: $5

[2] Each additional page: $1

(j) Investigation Reports, Supplemental Investigation Reports, Arrest Reports, Statements:

[1] Initial Report: $5

[2] Each additional page: $1

(k) Mail-in Request:

[1] Initial request: $10 (plus stamped self-addressed envelope)

[2] Each additional page: $1

(Applies to both Accident and Investigative Reports)

(l) Searches (when no file number is available): $10

[1] Each additional page: $1

(Request form will be filled out).

The $10 search fee is non-refundable, even if no report is located.

(m) Cost of Media:

See CCTV rates below

Research fee for all requests: $25 per hour

(Research fee non-refundable, even if incident is not captured on tape. Research fee does not include Cost of Media.)

	Cost of Media
T-120 VHS Video Tapes:	$3 each
Zip Disks (100 mb):.	$10 each
Zip Disks (250 mb):.	$13 each
CD-R Disks (750 mb)	$1 each
DVD-R Disks (4.7 gb):.	$5 each

(10) Fees for traffic engineering services or materials. **[Added 5-24-1995 by Ord. No. 95-049; amended 12-9-1998 by Ord. No. 98-163; 9-28-2016 by Ord. No. 16-140; 1-10-2024 by Ord. No. 23-126]**

(a) The following fees are hereby established for certain services extended and materials distributed by the Department of Infrastructure:

Application Type	Application Fees	
Dumpster Permit Fees (Non-Refundable) Per Day		
Daily fee	$25.00	
Traffic Permit Fees (Non-Refundable) Per Application		
Administrative Fees		
All traffic permit	$15.00	
Renewals	$15.00	
Per Day	**Partial Closure**	**Full Closure**
1 - 2 family house/businesses	$10.00	$20.00
Multi dwelling house	$25.00	$50.00
High rise/filming	$150.00	$300.00
Plan Review Fees (Non-Refundable) Per Application		
Per site plan review	$500.00	
Per subdivision review	$250.00	
Roadway Opening Permit Fees (Non-Refundable) Per Application		
Administrative Fees		
All road opening permits	$135.00	
Excavation Fees		
Up to 25 square feet	$65.00	
Each additional square foot over 25 square feet	$2.00	
Boring/Test Pits Fees		
Per boring	$135.00	
Per test pit	$135.00	

[1] A minimum research fee of $25 for compiling, reproducing or preparing documents, memoranda and reports relating to traffic accidents, traffic control devices and other traffic related matters. In addition, the following schedule of fees shall also apply to the preparing of said documents:

Item	Photocopying Fee
99 pages	$0.50 per page
Over 100 pages	$0.25 per page
Bound copies	$5. per copy
Mailed copies, up to 99 pages	$5.
Mailed copies, per 500 pages	$10.

[2] Painting of standard size driveways up to 12 feet: $20.00, $1.00 for each additional foot.

[3] Temporary EMERGENCY NO PARKING signs sold over the counter: $2.00 each. Said signs installed by city forces: $25.00 each.

[4] Promulgation fee for installing and maintaining loading zone signs and curb markings: $150.00 for each sign/post installation; $75.00 for sign installation.

[5] The application for a permit for any containers, dumpsters and receptacles to be placed on the street shall be accompanied by a fee in the amount of $25.00 per day.

(b) The above fees shall not apply to services or material rendered to any other government agencies (federal, state, county or municipal departments) or any nonprofit organization, nursing home or hospital.

(c) The above fees shall not apply to contractors working directly for Jersey City on behalf of the city.

(d) The Municipal Engineer is authorized to waive the fee for driveway markings if it is determined that the original driveway markings were eliminated by repaving contracts undertaken by the municipality or utility companies.

(e) The Municipal Engineer may recommend to the Municipal Council that the promulgation fee be waived for the installation of loading zone signs if it is determined that the loading zone was established for the sole purpose of improving traffic safety or capacity at said locations.

(11) The following fees are as provided by Jersey City amendments to the New Jersey Uniform Fire Code **[Amended 3-25-2009 by Ord. No. 09-030; 9-11-2013 by Ord. No. 13-081; 9-28-2016 by Ord. No. 16-140; 2-27-2019 by Ord. No. 19-011]:**

a. Life Hazard Use Fee assessments. The following schedules of fees shall be charged for life hazard use inspections and for permits authorized by the New Jersey Uniform Fire Code on an annual basis.

	Type	Fee		Type	Fee		Type	Fee
1.	Aa	$70	14.	Bd	$414	27.	Ca	$787
2.	Ab	$103	15.	Be	$484	28.	Cb	$944
3.	Ac	$110	16.	Bf	$591	29.	Cc	$1,022
4.	Ad	$123	17.	Bg	$629	30.	Cd	$1,101
5.	Ae	$138	18.	Bh	$787	31.	Ce	$1,259
6.	Af	$166	19.	Bi	$947	32.	Cf	$450
7.	Ag	$208	20.	Bj	$984	33.	Cg	$1,573
8.	Ah	$248	21.	Bk	$1,184	34.	Ch	$1,976
9.	Ai	$331	22.	Bl	$1,378	35.	Ci	$2,375
10.	Bj	$414	23.	Bm	$1,537	36.	Da	$1,568
11.	Ba	$110	24.	Bn	$1,967	37.	Db	$2,375
12.	Bb	$208	25.	Bo	$2,360	38.	Dc	$3,088
13.	Bc	$331	26.	Bp	$828			

1. Where more than one life hazard use exists under one ownership at a given location, the highest life hazard use shall be registered at full fee and subsequent life hazard uses at one-half the scheduled fee.

2. No public or private K-12 educational facility shall pay more than one $138.00 life hazard use registration fee, regardless of the number or type of life hazard uses contained within the building.

3. No camp facility accommodating six or more children of school age shall pay more than one $123.00 life hazard use registration fee, regardless of the number or type of life hazard uses contained within the premises.

4. Each life hazard use that is separately owned shall be registered at full fee.

b. Commercial/Industrial Registration fees:

Includes all buildings of non-residential type not classified as life hazard use by the Uniform Fire Code.

a.	Type NBa	$75.00	Buildings not exceeding 1,000 square feet, with or without attached dwelling units.
b.	Type NBb	$150.00	Buildings in excess of 1,000 square feet not exceeding 3,000 square feet, with or without attached dwelling units.
c.	Type NBc	$225.00	Buildings in excess of 3,000 square feet not exceeding 9,000 square feet.
d.	Type NBd	$300.00	Buildings in excess of 9,000 square feet not exceeding 15,000 square feet.
e.	Type NBe	$375.00	Buildings in excess of 15,000 square feet not exceeding 50,000 square feet.
f.	Type NBf	$450.00	Buildings in excess of 50,000 square feet not exceeding 100,000 square feet.
g.	Type NBg	$525.00	Buildings in excess of 100,000 square feet not exceeding 200.000 square feet.
h.	Type NBh	$600.00	Buildings in excess of 200,000 square feet not exceeding 300,000 square feet.
i.	Type NBi	$625.00	For each additional 100,000 square feet or part thereof beyond 300,000 square feet.

NOTE: For building size, each floor, story or level shall be calculated as separate areas for total square feet of gross building area.

c. Permit Fees.

Type 1 Permit	$125.00
Type 2 Permit	$250.00
Type 3 Permit	$375.00
Type 4 Permit	$500.00
Type 5 Permit	$1,500.00

d. Other fees as follows:

1. The delivery of flammable and combustible liquids:

All tank vehicles delivering flammable or combustible liquids to premises within the City of Jersey City are required to be registered with the Jersey City Fire Prevention Division and shall be subject to inspection at any time; providing that no registration shall be required for deliveries made to bulk plants having suitable fire control equipment.

Registration fee	$100.00
Fee per tank vehicle	$40.00

2. Welding and cutting operations:

   All welding and cutting operations shall be required to be registered and obtain a Type 1 Permit per vehicle with the Fire Prevention Division for use throughout the City of Jersey City.

   Registration fee $50.00

3. Smoke detector and carbon monoxide alarm compliance:

   a. If more than ten (10) business days prior to change of occupancy..... $60.00

   b. Within four (4) to ten (10) business days prior to change of occupancy..... $90.00

   c. Fewer than four (4) business days prior to change of occupancy..... $125.00

4. Property search fee..... $40.00

5. Fire incident report:

   Two (2) pages or less..... $5.00

   For additional pages over two (2) $2.00

6. Fire investigation reports:

   Two (2) pages or less..... $5.00

   For additional pages over two (2) $2.00

7. Fire Code status inspection is as follows:

   a. One (1) to nine (9) family residential..... $150.00

   b. Ten (10) family or more residential $250.00

   c. Commercial..... $250.00

   d. High rise building..... $350.00

   e. Hotel, motel, rooming house $350.00

   f. Factory or industrial complex..... $350.00

   g. Condominium (common area)..... $150.00

8. Apparatus stand-by, per hour per piece of apparatus. . . $300.00

Includes fire apparatus utilized for fireworks, helicopter operations (minimum two apparatus), standpipe flow tests or any other operation deemed necessary by the Fire Official that requires Department of Public Safety monitoring. It shall be the discretion of the Fire Official as to the number of apparatus required.

9. Fire suppression costs:

An owner who has been given notice of a violation shall be responsible for a penalty not exceeding one hundred fifty thousand dollars ($150,000.00) or the costs of suppressing any fire which directly or indirectly results from the violation, whichever is greater. To create an obligation, the violation need not have been the initial cause of the fire; it is sufficient if the violation's existence has increased the intensity of the fire or the difficulty of its extinguishment. This penalty is independent of any penalty issued in accordance with N.J.A.C. 5:70-2.12 for failure to abate the violation. Suppression costs may be imposed for a fire which occurs during the period allowed for abatement.

The suppression costs shall include, but not be limited to, costs of labors, equipment and material incurred by the Department of Public Safety involved in suppressing the fire, as well as any other actual expenses, including attorney fees, incurred for the collection of the penalty. If a compensatory penalty in excess of one hundred fifty thousand dollars ($150,000.00) is sought, the cost of suppression shall be certified to the Fire Official of the area in which the fire occurred by the chiefs of the suppression units involved.

The fire official shall serve notice on the owner and order payment. The notice shall state the violations justifying imposition of the penalty. If payment is not received within thirty (30) days, the Fire Official shall pursue collection in the manner specified herein for penalties. The monies collected shall be paid to the City of Jersey City and appropriated in accordance with N.J.A.C. 5:70-2.12A(b).

(12) Commercial/industrial registration fees. **[Added 9-23-2014 by Ord. No. 14-117; 9-28-2016 by Ord. No. 16-140; 2-27-2019 by Ord. No. 19-011]**

All commercial/industrial locations not registered as life hazard use under the State of New Jersey Uniform Fire Code, shall be registered as a non-life hazard use with the Fire Prevention Bureau, and shall be inspected on an annual basis. The annual fee for this service will be fifty dollars ($50.00) and shall be paid by the business owner.

Description	Annual Fee
Commercial/Industrial	$50.00

(13) Fee chart. **[Added 9-23-2014 by Ord. No. 14-117; 9-28-2016 by Ord. No. 16-140; 2-27-2019 by Ord. No. 19-011]**

Residential Multiple Dwelling: All Multiple Dwellings not registered as a life hazard use under the State of New Jersey Uniform Code, shall be registered as a non-life hazard use with the Fire Prevention Division and shall be inspected on an annual basis. The annual fee for this service will be as listed in the chart below and shall be paid by property owner:

Number of Residential Units	Annual Fee
1—10 units	$135.00
11—20 units	$225.00
21—30 units	$325.00
31—40 units	$425.00
41 units and above	$525.00

Exceptions: one- or two-family homes - owner occupied.

(14) Permits and fees. **[Added 9-23-2014 by Ord. No. 14-117; 9-28-2016 by Ord. No. 16-140; 2-27-2019 by Ord. No. 19-011]**

A. Type 1A permit - $25.00;

Type 1 - $125.00;

Type 2 - $250.00;

Type 3 - $375.00;

Type 4 - $500.00;

Type 5 - $1,500.00.

B. Certificate of Smoke Detector and Carbon Monoxide Alarm Compliance (CSDCMAC) - (N.J.A.C. 5:70-2.3) - Fee: $75.00.

C. Property search fee: $40.00.

D. Fire incident report: Two (2) pages or less, $5.00; for additional pages over two (2), $2.00.

E. Fire investigation reports: Two (2) pages or less, $5.00; for additional pages over two (2), $2.00.

F. Fire code status inspection: $150.00.

G. Apparatus stand-by, per hour per piece of apparatus: $500.00; includes fire apparatus utilized for fireworks, helicopter operations (minimum two (2) apparatus), standpipe flow

tests or any other operation deemed necessary by the Fire Official that requires Fire Division monitoring. It shall be the discretion of the Fire Official as to the number of apparatus required.

H. Inspector stand-by: Supervisor, $60.00 per hour: Inspector, $50.00 per hour.

I. Fire boat stand-by: $500.00 per hour.

J. The use of flammable gas cylinders in food vending carts or vehicles in any amount shall require a type 1A permit for a $25.00 fee.

A.1. Chapter 5, Filming and Photography Permits. **[Added 10-23-2013 by Ord. No. 13-116; amended 9-12-2018 by Ord. No. 18-101]**

(1) Major film permit: $300.00 non-refundable application fee that shall be payable one time per calendar year; $1,500.00 a day, $1,000.00 expedited permit (fewer than four business days prior to shoot date).

(2) Intermediate film permit: $200.00 non-refundable application fee that shall be payable one time per calendar year; $1,000.00 a day, $1,000.00 expedited permit (fewer than four business days prior to shoot date).

(3) Minor film permit: $100.00 non-refundable application fee that shall be payable one time per calendar year; $250.00 a day; $1,000.00 expedited permit (fewer than four business days prior to shoot date).

B. Chapter 62, Records, Public Access to. The fee for records copied by the person requesting such records, as set forth in § 62-2, shall be $25 per day.

B.1. Chapter 83, Alarm Systems. **[Added 3-22-1995 by Ord. No. 95-020; amended 4-24-1996 by Ord. No. 96-033; 12-15-1999 by Ord. No. 99-181]**

(1) The annual fee for an alarm system: $20.

C. Chapter 84, Alcoholic Beverages and Cannabis. **[Amended 12-15-1999 by Ord. No. 99-181; 5-9-2012 by Ord. No. 12-057; 5-23-2012 by Ord. No. 12-072; 4-27-2016 by Ord. No. 16-068; 6-29-2016 by Ord. No. 16-103; 8-18-2021 by Ord. No. 21-053; 4-15-2026 by Ord. No. 25-068]**

(1) Annual license fee for plenary retail consumption license: $2,073.00 effective as of June 1, 2016 for the license year that begins on July 1, 2016. Additionally, this annual license fee for the license year that begins on July 1, 2017 shall be $2,488.00 as of June 1, 2017 and for the license year that begins on July 1, 2018 shall be $2,500.00 as of June 1, 2018.

(2) Annual license fee for plenary retail distribution license: $2.073.00 effective as of June 1, 2016 for the license year that begins on July 1, 2016. Additionally, this annual license fee for the license year that begins on July 1, 2017 shall be $2,488.00 as of June 1, 2017 and for the license year that begins on July 1, 2018 shall be $2,500.00 as of June 1, 2018.

(3) Processing fee for licensees desiring a change in the corporate structure of the corporate licensee (plenary retail consumption or distribution license): $60.00.

(4) Identification card, for each original issue and renewal: $10.00.

(5) Application fee for special permit to sell alcoholic beverages: $50.00.

(6) Hotels and motels: A new license may be issued to any person or corporation that operates a hotel or motel containing 100 guest sleeping rooms or who may hereafter construct and establish a new hotel or motel containing at least 100 guest sleeping rooms. The initial fee shall be $25,000.00 plus $50.00 per guest room. The annual renewal fee thereafter shall be the same as the annual license fee for plenary retail consumption licenses.

(7) The application fee for municipal support of cannabis establishments and distributors, as outlined in § 84-52 shall be $2,500.00.

(8) The annual fee for successful applicants operating cannabis establishments or distributors in Jersey City shall be as follows:

Class 1 Cannabis Cultivator license: $5,000.00

Class 2 Cannabis Manufacturer license: $5,000.00

Class 3 Cannabis Wholesaler license: $5,000.00

Class 4 Cannabis Distributor license: $5,000.00

Class 5 Cannabis Retailer license: $15,000.00

Class 6 Cannabis Delivery license: $2,500.00

The annual fee for microbusinesses shall be half of the class annual fee.

(9) Annual license fee for cannabis consumption area license shall be $25,000.00. The annual fee for microbusinesses shall be half of the cannabis consumption license ($12,500.00).

(10) All applications for a cannabis consumption area license and endorsement shall be accompanied by an escrow fee of $5,000.00 to be used by the Cannabis Control Board to pay professionals for services rendered during the application process such as review and preparation of documents, transcripts, and inspections. If review costs exceed the escrow deposited, the applicant shall pay the additional amount within 15 days of the request for additional funds. Where the review costs are less than the amount of the escrow deposit, the difference shall be returned to the applicant within 120 days of final disposition of the application.

D. Chapter 87, Amusement Devices. **[Amended 12-15-1999 by Ord. No. 99-181]**

(1) Fee for operator's license: $375 for the first device and $25 for each additional device per year or any part of a year upon new application and $75 for the first device and $25 for each additional device per year or any part of a year upon renewal.

(2) Distributor's license: $500 per year or any part of a year.

(3) Issuance of a mobile amusement device license: $100.

(4) Music device operator's license: $50 per machine per year.

(5) Transfer fee for music device operator's license: $1.

E. Chapter 90, Animals. **[Amended 1-26-2011 by Ord. No. 11-003; 4-23-2014 by Ord. No. 14-042; 4-8-2015 by Ord. No. 15-045; 12-13-2023 by Ord. No. 23-118; 4-15-2026 by Ord. No. 25-068]**

(1) License to keep pigeons, chickens or other poultry: $70.00.

(2) Dog license fees shall be as follows:

a. Annual licenses:

Neutered dogs, $10.00 per dog.

Unneutered dogs, $20.00 per dog.

b. Three-year licenses:

Neutered dogs $25.00 per dog.

Unneutered dogs $50.00 per dog.

c. Late Fee - 30 days over May 1, $5.00.

d. Annual license fees - Kennel/dog day care:

Fewer than 7 dogs, $100.00

7 or more dogs, $200.00

e. Annual license fee - Pet shop, $200.00 plus any state fees.

f. Animal grooming fee, $100.00.

(3) Registration fee: $1.00.

(4) Animal Population Control Fund fee: $3.00 per license.

(5) Pilot Clinic Fund fee: $0.20 per license.

(6) Registration fee for exotic, nongame or potentially dangerous species of wildlife: $50.00.

(7) Dog declared by the municipal court to be a "potentially dangerous dog" as defined in N.J.S.A. 4:19-23: $700.00.

(8) Shelter or pound fees.

a. Adoption fees.

1. Cat, $50.00.

2. Kitten, $75.00.

3. Dog over 25 lbs., $125.00.

4. Dog under 25 lbs., $175.00.

5. Puppies under six months, $175.00.

6. Other animals, $20.00 (rabbit, ferret, bird, snake, lizard, etc.).

b. Surrender fees.

1. Neutered cat, $25.00.

2. Un-neutered cat, $50.00.

3. Kitten, $15.00.

4. Kitten litter, $30.00.

5. Dog over 25 lbs., neutered, $25.00.

6. Dog over 25 lbs., un-neutered, $75.00.

7. Puppy under six months and small dogs, $25.00.

8. Other animals, $20.00.

c. Redemption fees.

1. Neutered dog, $50.00.

2. Un-neutered dog, $75.00.

3. Neutered cat, $15.00.

4. Un-neutered cat, $25.00.

5. Other animals, $10.00.

6. Animals microchipped and registered can be returned home within the shelter's service area for a $30.00 fee. Owner must be at home to receive the animal.

d. Euthanasia fees (based on weight).

1. 50—100+ lbs., $75.00.

2. 25—49 lbs., $50.00.

3. Under 25 lbs., $30.00.

e. Disposal of deceased pet fees.

1. Animal brought to shelter, $20.00.

2. Pick up from owner for appropriate disposal, $50.00.

f. Shelter animal holding fees—Daily.

1. $50.00 the first day, $4.00 every day after if not picked up by midnight of day seven, then the animal will be made available for adoption, transfer, or euthanasia).

2. Potentially dangerous dog - daily holding fee, $10.00.

g. Special service fees.

l. Pick up deceased animals on private property, $25.00. No charge for New Jersey wildlife rabies vector species, including raccoon, groundhog, skunk, bat, and fox.

2. Animals released from traps legally or illegally set, $25.00

3. Trap loan out $50.00 deposit for up to seven days. Deposit returned if trap returned clean and in good condition.

4. Microchip implant, $15.00.

5. Ten-day bite quarantine via Police, Prosecutor, or owner request, $100.00.

h. Educational class fees.

1. The Department of Health and Human Services may from time to time offer classes and trainings related to animal care and animal welfare. The Department will set and publish a fee for each class not to exceed $100.00 per day of instruction.

(9) Veterinarian fees.

a. Core vaccinations including rabies for dog or cat, $50.00.

b. Rabies vaccination only, $5.00.

c. Neuter cat, $75.00.

d. Neuter dog under 25 lbs., $100.00.

e. Neuter dog over 25 lbs., $150.00.

f. Wellness check by vet tech, $25.00.

g. Wellness check by veterinarian, $50.00.

(10) Fee waivers, discounts, special events.

a. Adoption fees for all adult animals are set at half the standard fee for U.S. military veterans, persons aged 65 years or older, persons receiving Social Security disability income, and persons receiving SNAP, Medicaid, or similar public benefits based on low income.

b. The Director of the Department of Health and Human Services or their designee may offer fee waivers or discounts for a designated period of time to make a particular service more accessible to promote public health goals or operational considerations. Such waivers or discounts shall apply to all persons seeking that service during the designated time.

*160-1.E.8.a Adoption fees are greater for puppies and kittens because they receive additional vaccinations and veterinary care than older animals.

**160-1.E.8.d Euthanasia fees are greater for large animals because they require higher doses of medication.

***160-1.E.8.f Fees and disposition are set by state law.

****160-1.E.9 Spay/neuter fees are greater for larger animals due to cost of anesthesia and time required

*****Fees in aggregate cover only a small portion of the cost of care.

F. Chapter 93, Auctioneers.

(1) Fee for auctioneer license: $100 per year or a fraction of a year.

G. Chapter 99, Cosmetology Services. **[Amended 4-15-2026 by Ord. No. 25-068]**

1. Article I, Cosmetology Services.

a. Pre-operational inspection, $75.00.

b. Cosmetology Class A license - Beauty salon with nails, nails salon, day spa, $350.00.

c. Cosmetology Class B license - Beauty salon without nails, barbershop, tanning booth, $210.00.

d. Reinspection and late fees - see below Ch.182.Q(2).

(2) Article II, Massage and somatic therapy establishments class A cosmetology, $350.00.

H. Chapter 105, Building Demolition.

(1) Permit for use of city water in demolition work: $10.

I. Chapter 119, Certificates of Occupancy.

(1) Construction Code Official certificate and search fee: $10.

J. Chapter 122. Circuses, Carnivals and Public Assemblages. **[Amended 5-28-2008 by Ord. No. 08-066; Amended 12-15-1999 by Ord. No. 99-181; 9-12-01 by Ord. No. 01-103]**

(1) License fees for circuses, carnivals, festivals, and public assemblages, including but not limited to, rodeo and wild west shows, menageries, tent shows, parades, shooting galleries, and all other street entertainment, performances, and exhibitions; two hundred ($200) dollars per day, except for not for profit corporations which can provide evidence of a federal tax exemption pursuant to 26 USC 501 (c)(3); or provide a current registration as a non-profit New Jersey Corporation; twenty-five ($25) dollars per day.

(2) License fee for all concessions located within any circus, carnival or assemblage listed (1) above: twenty dollars ($20) per day unless it is part of a non-profit corporation paying a twenty-five dollar ($25) per day fee and is smaller than 15' x 15', then there shall be no fee.

(3) Block associations may apply for up to two block parties per year. Applications will be available from the Division of Cultural Affairs. In addition to approval by the Division of Cultural Affairs, an application must be approved by the J.C.P.D. District Commander for the district in which the block party is requested. Applications must be made at least three weeks in advance of the anticipated block party date and shall be accompanied by a fifty dollar ($50.00) application fee.

(4) Other than the above application fee, the block association shall be exempt from all other municipal fees required for the operation of a block party, e.g., street closing permit fee, but shall not be exempt from obtaining any such required licenses, permits, and approvals.

K. **[Repealed 6-13-01 by Ord. No. 01-059]**

L. Chapter 128, Condominium Conversions.

(1) Application fee: $30 per tenant.

(2) Appeal application fee: $150.

M. Chapter 131, Uniform Construction Code fees established pursuant to N.J.S.A. 52:27D-126a. The fee for a construction permit shall be the sum of the fees for each subcode permit listed in the schedule of fees for building, plumbing, electrical and fire subcodes, plus the fees for miscellaneous permits listed in the schedule of miscellaneous fees.

(1) Building subcode schedule of fees.

(a) Fees for new construction shall be based upon the volume of the structure. Volume shall be computed in accordance with N.J.A.C. 5:23-2.28. The new construction fee shall be in the amount of $.027 per cubic foot of volume for buildings and structures of all use groups except that the fee shall be $0.15 per cubic foot of volume for use groups A-1, A-2, A-2, A-4, A-5, F-1, F-2, S-1 and S-2.

(b) For renovations, alterations and repairs, for each one thousand dollars ($1,000.00) of estimated cost of work: $15.

(c) Minimum fee for short permit for renovations, alterations or repairs: $50.

(d) Minimum fee for plan permit for renovations, alterations and repairs: $100.

(e) Total fee for combination of new construction, additions to existing structures and repairs, renovations and alterations shall be the sum of the fees computed separately in accordance with Subsections M(1) through (5).

(f) Permits update fee and/or amendment to already issued permits to comply to fees M(l)(a) through (d) above, whatever is the case. **[Added 4-26-1995 by Ord. No. 95-031]***

*** This ordinance also provided for the relettering of former Subsection M(1)(f) as (g).**

(g) State of New Jersey training fee: $0.00265 per cubic foot volume of new construction. $0.00135 of cost of construction for alterations, renovations, and repairs.

(h) [repealed]

(i) Permit asbestos for removal: $50.00.

(j) Permit for lead paint abatement: $140.00.

(k) Exterior hoist ways: $260.00.

(l) Above ground swimming pool less than 550 square feet: $50.00, greater than 550 square feet: $100.00. In ground swimming pool less than 550 square feet: $75.00, greater than 550 square feet: $150.00.

(m) The fee for tents, in excess of 900 square feet or more than 30 feet in any dimension, shall be $92.00.

(n) Signs: $1.50 per square foot.

(o) Plan Review Fee shall be 25% of the estimated cost of permits which is nonrefundable.

(p) Prototype filing: Master plan pays full permit fees, each additional prototype is 80% of permit value.

(q) Emergency/Exit Lights:

1-10	$25.00
Each additional 25	$25.00

(2) Plumbing subcode schedule of fees. Plumbing fees for replacement permits, extension permits, new building permits, heating apparatus, cooling apparatus, ventilating and specialty apparatus shall be as follows:

(a) Plumbing fixtures: $10.00. Included but not limited to: water closet, urinal, bidet, bathtub, lavatory, shower, floor drain, sink, dishwasher, drinking fountain, washing machine hose bib, closet bend, coffee maker, gas appliance, gas service connection, ice maker, rain leader, roof drain, sprinkler head, sump pump, trap prime, washing machine tray, yard drain.

(b)

Water Heater	$30.00
Fuel Oil Piping	$10.00
Gas Piping	$10.00
Steam boiler	$30.00
Hot Water Boiler	$30.00
Sewer Pump	$40.00
Interceptor	$40.00
Separator	$40.00
Back flow Preventer	$10.00 (domestic)
Back flow Preventer	$75.00 (fire service)
Grease trap	$40.00
Sewer connection	$40.00
Water Service	$30.00 (up to 2″)
Water Service	$60.00 (above 2″)
Stacks	$40.00

(c) Other plumbing fixtures which are included but not limited to:

Closet Bend	$10.00	Coffee Maker	$10.00
Gas Appliance	$10.00	Gas Serv. Connection	$10.00
Ice Maker	$10.00	Rain Lea	$10.00
Roof Drain	$10.00	Sprinkler Head	$10.00
Sump Pump	$ 10.00	Trap Primer	$10.00
Wash Machine Tray	$10.00	Yard Drain	$10.00
A.C. Unit	$30.00	Active Solar System	$35.00
Catch Basin	$40.00	Dental Chair	$40.00

Cooling Equipment	$40.00	Garbage Disposal	$15.00
Fire Hydrant	$40.00	Grease Interceptor	$30.00
House Drain <10"	$20.00	House Drain >10"	$30.00
House Sewer	$40.00	Sewerage Ejector	$40.00
Soil Line Connection	$40.00	Fire Sprinkler Main	$60.00
Storm Sewer	$40.00	Storm Sewer Connec.	$40.00
Tankless Heater	$25.00	Ventilating Equjp.	$30.00
Vent Line	$40.00	Water Riser Lines	$40.00

(d) Back flow cross connection

[1] Three hundred dollars ($300.00), which includes 3 external and 1 internal inspection.

(3) Electrical fixtures and devices: The fee shall be as follows:

(a) For the first block consisting of one to ten (10) receptacles, fixtures, or devices, the fee shall be twenty-five dollars ($25.00); for each additional block consisting of up to twenty-five (25) receptacles, fixtures, or devices, the fee shall be twenty-five dollars ($25.00). For the purpose of computing this fee, receptacles, fixtures or devices shall include lighting fixtures, wall switches, convenience receptacles, sensors, dimmers, alarm devices, smoke and heat detectors, communications outlets, light-standards eight feet or less in height including luminaries, emergency lights, electric signs, exit lights or similar electric fixtures and devices rated twenty (20) amperes or less including motors or equipment rated less than one horsepower (hp) or one kilowatt (kw).

(b) For each motor or electrical device rated from one hp or one kw to ten (10) hp or for each transformer or generator rated from one kw or one kva to ten (10) kw or ten (10) kva; for each replacement of wiring involving one branch circuit or part thereof; for each storable pool or hydro massage bath tub; for each under-water lighting fixture; for the household electric cooking equipment rated up to ten (10) kw; for each fire, security or burglar alarm control unit; for each receptacle rated from thirty (30) amperes to fifty (50) amperes; for each light standard greater than eight fee in height including luminaries; and for each communications closet, the fee shall be ten dollars ($10.00).

(c) For each motor or electrical device rated from greater than ten (10) hp or ten (10) kw to fifty (50) hp or fifty (50) kw for each service equipment, panel board, switch board, switch gear, motor-control-center, or disconnecting means rated two hundred twenty-five (225) amperes or less; for each transformer or generator rated from greater than ten (10) kw or ten (10) kva to forty-five (45) kw or forty-five (45) kva; for each electric sign rated from greater than twenty (20) amperes to two hundred (200) amperes including associated disconnecting means; for each receptacle rated more than fifty (50) amperes; and for each utility load management device, the fee shall be forty-five dollars ($45.00).

(d) For each motor or electrical device rated from greater than fifty (50) hp or fifty (50) kw to one hundred (100) hp or one hundred (100) kw; for each service equipment; panel board, switch board, switch gear, motor-control or disconnecting means rated from greater than two hundred twenty-five (225) amperes to one thousand (1,000) amperes; and for each transformer or generator rated from greater than forty-five (45) kw or forty-five (45) kva to one hundred twelve and one-half (112.5) kw or one hundred twelve and one-half (112.5) kva, the fee shall be $85.00.

(e) For each motor electrical device rated greater than one hundred (100) hp or one hundred (100) kw; for each service equipment, panel board, switch board, switch gear, motor control center or disconnecting means rated greater than one thousand (1,000) amperes; and for each transformer or generator rated greater than one hundred twelve and one-half (112.5) kw or one hundred twelve and one-half (112.5) kva, the fee shall be four hundred twelve dollars ($412.00).

(f) The fee charged for electrical work for each permanently installed private swimming pool as defined in the building subcode, spa, hot tub or fountain shall be a flat fee of forty-six dollars ($46.00) which shall include any required bonding, and associated equipment such as filter pumps, motors, disconnecting means, switches, required receptacles, and heaters, etc., except panel boards and under-water lighting fixtures. For public swimming pools, the fee shall be charged on the basis of number of electrical fixtures and rating of electrical devices involved in accordance with (c)2iii(l) through (5) above.

(g) The fee charged for the installation of single and multiple station smoke or heat detectors and fire, burglar or security alarm systems in any one or two-family dwelling shall be a flat fee of twenty-three dollars ($23.00) per dwelling unit. For fire, burglar and security alarm systems and detectors in buildings other than one or two-family dwellings, the fee shall be charged in accordance with (c)2iii (1) and (2) above.

(h) For installations consisting of multi-meter stack, the fee shall be based on the ampere rating of the main bus and not upon the number of meters or rating of the main bus and not upon the number of meters or rating of disconnects on the meter stack. Individual load side panel boards shall be charged in accordance with (c)2iii(3), (4), (5) above. There shall be no additional fee charged for the concurrent installation or individual feeder conductors.

(i) For motors or similar devices requiring concurrent installation of individual controls, relays and switches, the fee shall be based only upon the rating of the motor or device. There shall be no additional fee charged for the concurrent installation of individual circuit components, for example, controllers, starters, and disconnecting means.

(j) For electrical work requiring replacement of service entrance conductors or feeder conductors only, the fee shall be in accordance with (c)2iii(2) through (5) above based on the designated ampere rating of the over current device of the service or feeder.

(k) The fee charged for process equipment shall be based on the ampere rating of the over current device protecting the conductor feeding the process equipment or the cutoff device.

(l) For the purpose of computing these fees, all electrical and communications devices, utilization equipment and motors which are part of premises wiring, except those which are portable plug-in type, shall be counted.

(m) Leak detection system shall be charged one hundred dollars ($100.00) per system.

(n) Certificate of compliance for pools, storage pools, spas and hot tubs shall be per twenty-five dollars ($25.00) per year.

(4) Fire Subcode of fees.

(a) Fees for sprinklers (Dry & Wet)

1-20	heads	$75.00
20-100	heads	125.00
Over 100	heads	$125.00 plus $1.00 for each additional head over 100

(b) Suppression systems

Fire pump/Gpm Type	$150.00
Dry Pipe/Alarm Valves	$150.00
Pre Action Valves	$150.00
Standpipe	$230.00 per riser

(c) Alarm devices (i.e., smoke, head pulls, water/flow), supervisory devices (i.e. tampers. low/high air), signaling devices (i.e., horn/strobes, bells), duct detectors, other alarm devices.

1 to 10 devices	$25.00
11 to 20 devices	$60.00
For each additional device	$1.00
In addition to fees above, an additional charge of $100.00 per 10,000 square feet will be charged.	

(d) Pre-Engineered Systems

Wet chemical	$100.00
Dry chemical	$100.00
CO2 Suppression	$100.00
Foam Suppression	$150.00
Halon Suppression	$100.00
Other	$100.00

(e) Kitchen Exhaust system: $100.00

(1) Gas or oil fired devices: $50.00

(g) Tank installation or removal (above or below ground):

200-600 gallons	$100.00
601-1100 gallons	$150.00
1101-2000 gallons	$200.00
Over 2000 gallons	$300.00

(h) Leak Detection System: $100.00

(i) Minimum Permit Fee: $75.00

(j) Department of Public Safety Connection: $125.00 **[Amended 9-11-2013 by Ord. No. 13-081]**

(k) Incinerators & Crematoriums $365.00

(5) Elevator Subcode of Fees (New or Altered)

(a)

Traction or winding drum	
1 to 10 floors	$243.00
Over 10 floors	$405.00
Hydraulic	$216.00
Roped Hydraulic	$243.00
Escalator/Moving Walks	$216.00
Dumbwaiter	$ 54.00
V Stairway chairlift. Inclined & Vertical Wheelchair lifts & Man lifts	$ 54.00
Oil buffers	43.00
Counterweight governor & safety	$100.00
Aux. Power Safety	$ 81.00
Plan review fee	$260.00
Alteration	$ 60.00
Dismantle of elevator	$100.00
Material Lift with transfer devices	$270.00
Sidewalk elevator	$130.00

(b) Elevator/device fee schedule. The annual fee for inspection and witnessing of tests for devices, which shall include a six month routine inspection and which is based on an average of the fees that shall be collected over a five year period and in accordance with N.J.A.C. 5:23-12.6(c)li through iv and 2i through iii are as follows:

Transaction or Winding Drum

1 to 10 floors	$400.00
Over 10 floors	$486.00
Hydraulic	$292.00
Roped Hydraulic	$324.00
Escalator/Moving Walks	$497.00
Dumbwaiter	$ 86.00
Stairway chairlift, Inclined & Vertical Wheelchair lifts & Man Lifts	$130.00
Oil buffers	$ 43.00
Counter weight governor & safety	$ 86.00
Aux. Power Safety	$ 54.00
Sidewalk elevator	$200.00

(6) Miscellaneous Fees (Uniform Construction Code Fees)

(a) Demolition Permit Fees:

Use groups R-3& R-5	$200.00
All other use groups	$250.00

(b) Variations: $200.00 per application

(c) Certificates:

Certificate of Occupancy	$100.00 each
Certificate of Continued Occupancy	$200.00
Temporary Certificates	no fee for initial application
Each subsequent one thereafter for areas not inspected	$100.00
Renewal of Temporary Certificate	$ 50.00
Final Certificate after Multiple Temporaries	No charge

(d) Annual Construction Permit: As per N.J.A.C. 5:23-4.20(c)(5):

The fee to be charged for an annual construction permit shall be charged annually. This fee shall be a flat fee based upon the number of maintenance workers who are employed by the facility and who are primarily engaged in work that is governed by a subcode. Managers, engineers, and clericals shall not be considered maintenance workers for the purpose of establishing the annual construction permit fee. Annual permits may be issued for building/fire protection, electrical and plumbing. Fees for annual permits shall be as follows:

1—25 Workers	$667.00 per worker
Each additional worker over 25	$232.00 per worker

(7) Non Uniform Construction Code Fees:

(a) No Certificate of Occupancy letters for real estate transfers provided no Certificate has been issued. $50.00

(b) Discharge of Lis Pendens $100.00

(c) Returned check fee: $25.00 plus amount either by certified check or money order.

Please Note: Certain fees described above as charged by the Office of the Construction Official are set by the State of New Jersey. Any changes in those fees by the State of New Jersey will be incorporated herein by reference. **[Amended 4-13-2005 by Ord. 04-154]**

N. Chapter 134, Contractors. Registration fee: $100.

O. Chapter 157, Entertainment Licenses.* **[Amended 9-11-2013 by Ord. No. 13-081]**

1. *Fees - 157-4.* Except as provided in § 157-3, no person shall keep, maintain, or operate any entertainment or dance venue without obtaining a license from the Director. A license shall be issued only if both the venue and the applicant comply with relevant standards. The fee schedule shall be as follows:

Nightclub Entertainment License Class 1: $1,200.00 per year or part thereof;

Nightclub Entertainment License Class 2: $1,000.00 per year or part thereof;

Restaurant Entertainment License Class 1: $800.00 per year or part thereof;

Restaurant Entertainment License Class 2: $600.00 per year or part thereof.

2. *Mary McLeod Bethune Life Center - 157-11.*

a. A non-refundable application fee of $25.00 to cover administrative costs of reviewing the application and issuing the permit, must be paid at the time the application is filed with the City.

b. For each five-hour period [Session] or part thereof for the use of a single room (consisting of approximately 1,100 square feet) or any part thereof, the fees shall be calculated on a per room per Session basis in accordance with the following schedule:

Room Fees*		
Six Rooms	$600.00	$300.00 Deposit
Five Rooms	$500.00	$250.00 Deposit
Four Rooms	$400.00	$200.00 Deposit
Three Rooms	$300.00	$150.00 Deposit
Two Rooms	$200.00	$100.00 Deposit
One Room	$100.00	$50.00 Deposit
Cleaning Fees*		
	$100.00	[Returned only if room(s) are cleaned]
Additional Kitchen Fees*		

*__Editor's note__—Formerly, similar provisions were contained in Chapter 142, Dance Halls, which was repealed 6-24-1998 by Ord. No. 98-081.

To Warm Food	$100.00	($50.00 returned only if kitchen is cleaned)
To Cook Food	$150.00	($50.00 returned only if kitchen is cleaned)

*These fees may be waived for City events or for events conducted by nonprofit organizations that provide certain community services, upon the recommendation of the Mayor and approval of the Municipal Council, in accordance with criteria to be approved by the City.

c. A non-refundable deposit equal to 25% of the full amount of the fees shall be due at the time the permit is approved. The balance of the fee and cleaning deposit and, if applicable, the kitchen cleaning deposit, shall be paid in full no later than seven days before the Event.

d. The applicant shall be responsible for providing security for its activities. There shall also be a requirement to engage police officers if police services are determined to be required by Martin Luther King Center Director, after consultation with the Department of Public Safety. An applicant determined to need police services shall be required to pay for such costs and submit proof to the City that it has arranged for such police services no later than seven days before the Event.

O.2. Chapter 173. Retail Florists. The license fee shall be one hundred dollars ($100.00) a year or any part thereof. **[Adopted 9-12-2002 by Ord. No. 02-096]**

P. Chapter 175, Food-Handling Establishments. **[Amended 8-16-1995 by Ord. No. 95-068; 3-11-2015 by Ord. No. 15-026; 2-26-2014 by Ord. No. 14-018; 4-23-2014 by Ord. No. 14-042; 9-28-2016 by Ord. No. 16-139; 8-12-2020 by Ord. No. 20-060; 12-16-2020 by Ord. No. 20-105; 4-15-2026 by Ord. No. 25-068]**

*Also see, Q. Chapter 182(2) for all inspection and late fees.

(1) Article I, Dine-Dance Establishments.

Editor's note—Article I, Dine-Dance Establishments, of Ch. 175, Food-Handling Establishments, was repealed 6-24-1998 by Ord. No. 98-081. See now Ch. 157, Entertainment and Dance Licenses.

(2) Article II, Mobile Food Vendors.

a. Mobile Food Class A, $840.00.

b. Mobile Food Class B, $600.00.

c. Mobile Food Class C, $250.00.

(3) Article III, Food Establishments.

a. License fees shall be as follows. Such license fee shall not be refundable in whole or in part. Such license is not transferable. Such license shall be displayed in a conspicuous place in the establishment. See Ch. 175 for definitions.

[1] Food market Class A, $1,600.00.

[2] Food market Class B, $1,200.00.

[3] Food market Class C, 800.00.

[4] Food market Class D, $600.00.

[5] Food market Class E, $400.00.

[6] Food market Class F, $350.00.

[7] Food market Class G, $160.00.

[8] Live market, $800.00.

[9] Kitchen/commissary, $1,000.00.

[10] Restaurant/kitchen Class A, $1,000.00.

[11] Restaurant/kitchen Class B, $800.00.

[12] Restaurant/kitchen Class C, $400.00.

[13] Alcohol bar, $50.00 ***per bar***.

[14] Miscellaneous.

[a] Temporary retail food establishments.

(i) Organizer/sponsor fee.

Number of Days of Operation (consecutively)	**Fee**
1 to 4	$140.00
5 to 14 days	$210.00
15 to 40 days	$600.00

(ii) In addition to the above organizer/sponsor fee, the following fee shall be charged to each food vendor:

[1] For foods that are readily perishable or require heating or refrigeration:

Number of Days of Operation (consecutively)	**Fee**
1 to 3	$35.00
4 to 5	$70.00
6 to 7	$105.00
8 to 14	$250.00
14 to 40	$600.00

[2] There shall be no food vendor fee charged to any person already possessing a food establishment license from the City of Jersey City.

[b] Flea markets.

(i) Seasonal license.

i. May 1 through September 30: $175.00 per location.

ii. October 1 through April 30: $100.00 per location.

(ii) In addition to the seasonal license fee, the following fee shall be charged to each food vendor:

Number of Days of Operation	Fee
1 to 3	$35.00
4 to 5	$70.00
6 to 7	$105.00
8 to 14	$250.00
14 to 40	$600.00

(iii) Charitable institutions sponsoring temporary retail food establishments and/or flea markets shall be exempted from paying the organizer/sponsor fee, provided that no more than three food vendors are present at such event; however, individual food vendor fees shall not be so waived.

(iv) There shall be no food vendor fee charged to any person already possessing a food establishment license from the City of Jersey City.

[c] Farmers' markets. The following fees shall apply annually for the operation of a farmers' market:

(i) Sponsors for Farmer's Markets shall be required to pay a fee of $400.00. Any not-for-profit corporation, operating a farmers' market, and whose application satisfies all requirements set forth in Chapter 175, shall be issued a market license at no cost to the not-for-profit corporation.

(ii) Vendor License. Each vendor participating in one to two a farmers' markets shall be issued a vendor license for a fee of $200.00 per farmers' market location where such vendor participates, except that any such vendor participating in three or more farmers' markets shall only pay a flat fee of $500.00.

(b) Food handler's course, $50.00.*

(c) Food manager's course, $100.00.*

*Employees of the City of Jersey City whose duties allow or require food handling or food management training are exempt from fees for the food handler's or food manager's course.

Q. Chapter 182, Health and Sanitation. **[Amended 8-16-1995 by Ord. No. 95-068; 8-13-2003 by Ord. No. 03-103; 4-23-2014 by Ord. No. 14-042; 4-15-2026 by Ord. No. 25-068]**

(1) a. Body art Class A, $1,100.00.

b. Body art Class B, $800.00.

c. Body art Class C, $210.00.

d. Child-care center license fee: $280.00.

(2) License fees.

a. Inspections fees:

i. Pre-operative inspection fee: $75.00.

ii. Conditional 1st reinspection - Food & Nonfood: $125.00.

iii. Conditional 2nd reinspection - Food & Nonfood: $250.00.

iv. Conditional 3rd reinspection - Food & Nonfood: $400.00.

v. Unsatisfactory reinspection - Food & Nonfood Class A: $400.00.

vi. Unsatisfactory reinspection - Food & Nonfood Class B: $300.00.

vii. Unsatisfactory reinspection - Food & Nonfood Class C: $200.00.

viii. Unsatisfactory reinspection - Food & Nonfood Class D/E: $100.00.

b. Late fees:

i. $100 for license fees greater than $400.00.

ii. $50 for license fees less than $400.00.

R. Chapter 188, Housing Accommodations and Affordable Housing Compliance. **[Amended 6-26-2024 by Ord. No. 24-049; 11-12-2025 by Ord. No. 25-114]**

(1) Effective August 1, 2024, each development subject to this Chapter shall pay a $2,000.00 fee to the City of Jersey City to cover the administrative costs associated with formalizing the Affordable Housing Agreement with the Division of Affordable Housing.

(2) Affordable Housing Portal Fees: for any project with income-restricted units subject to Chapter 188, the Division of Affordable Housing shall annually assess to the applicable developer or owner an amount equal to the sum of the applicable fees for all income-restricted units in the applicable project. The fees for each income-restricted unit shall be calculated by multiplying the maximum allowable monthly rent applicable to the unit at the time of its initial marketing by the percentages set forth below:

(a) For very low-income units, 3% of the maximum affordable rent for each unit;

(b) For low-income units, 5% of the maximum affordable rent for each unit;

(c) For moderate income units, 7% of the maximum affordable rent for each unit; and

(d) For workforce units, 9% of the maximum allowable rent for each unit.

S. [Reserved.]

T. Chapter 202, Junkyards. **[Amended 12-15-1999 by Ord. No. 99-181]**

(1) License fee for junkyards, scrap yards, junk dealers, scrap yard dealers and waste yard dealers:

(a) Beginning January 1, 2000: $450 per year.

(b) Beginning January 1, 2001: $700 per year.

(c) Beginning January 1, 2002: $1,000 per year.

U. Chapter 207, Laundries and Dry Cleaners. **[Amended 4-15-2026 by Ord. No. 25-068]**

*Also see, Q. Chapter 182(2) for all inspection and late fees.

a. Laundries Class A nonfood licenses: $350.00.

b. Laundries Class B nonfood licenses: $210.00.

V. Chapter 215, Motor Vehicle Repair Shops.

(1) Annual fee for all licenses and renewal licenses: $200. **[Amended 12-15-1999 by Ord. No. 99-181]**

W. Chapter 222, Noise.

(1) Audible burglar alarm registration fee (one-time): $5.

(2) Commercial sound truck license fee: $100 per year.

X. Chapter 254, Property Maintenance. **[Amended 5-24-1995 by Ord. No. 95-045; 6-13-2018 by Ord. No. 18-060; 6-27-2018 by Ord. No. 18-068; 1-23-2020 by Ord. No. 20-004; 3-11-2020 by Ord. No. 20-028; 8-18-2021 by Ord. No. 21-054; 9-8-2022 by Ord. No. 22-072; 1-01-2024 by Ord. No. 23-018; 9-11-2024 by Ord. No. 24-066]**

(1) License fees, in addition to the fees provided in N.J.S.A. 55:13A-1 et seq.

(a) Furnished apartments: $125.00, plus $20.00 for each apartment.

(b) Motels, hotels, etc.: $200.00, plus $20.00 per room.

(2) Reinspection fee: $10.00.

(3) Inspections made under § 254-107.

(a) For an inspection and two additional reinspections, if necessary, for dwellings of two units or less: $40.00.

(b) For an inspection and two additional reinspections, if necessary, for each dwelling unit in excess of two: $10.00.

(c) For the third reinspection and any additional reinspections, per rooming unit: $20.00.

(4) Inspections made for Lead-Based Hazards.

(a) Inspection Fee non-refundable and payable by property owner in the amount of $200.00 per unit in dwelling, inspected for lead-based paint hazards pursuant to the Lead Hazard Control Assistance Act (P.L.2021, Chapter 182); provided, however, a property owner may directly hire a contractor certified by the New Jersey Department of Community Affairs to satisfy the inspection requirements of the law.

(b) Additional $20.00 fee per unit inspected by a certified lead evaluation contractor or by the city payable to the State for the purposes of the Lead Hazard Control Assistance Act.

(5) Status report fee.

(a) Pages one through 10: $0.25 per page.

(b) Pages 11 through 20: $0.15 per page.

(c) All pages over 21: $0.10 per page.

(6) Vacant property annual registration fee.

(a) Vacant Buildings:

(1) The initial registration fee for each vacant building shall be $500.00; provided, however, if a summons and complaint in an action to foreclose are filed, the initial fee and all subsequent fees shall be in accordance with subsection (6).

(2) The fee for the first renewal shall be $1,000.00.

(3) The fee for the second renewal shall be $2,000.00.

(4) The fee for any subsequent renewals shall be $3,000.00.

(b) Vacant lots - annual registration fee of $250.00; provided, however, that there shall be no registration fee for lots under 500 square feet.

(7) The registration fee shall be: (1) $500.00 per property annually for any property that is required to be registered because a summons and complaint in an action to foreclose was filed by the creditor; and (2) an additional $2,000.00 per property annually if the property is vacant or abandoned pursuant to the definition in Section 254-127 when the summons and complaint in an action to foreclose is filed, or becomes vacant and abandoned pursuant to the definition in Section 254-127 at any time thereafter while the property is in foreclosure. All fees shall be paid no later than the thirtieth day after the filing of the summons/complaint. Late payments shall incur interest and penalties in accordance with the interest and penalties fixed for late payment of property taxes.

(8) No registration fee shall be prorated or refunded.

(9) Inspections made under § 254-45:

Structural inspections: $100.00 per structural inspection report;

Façade inspections: $100.00 per façade inspection report.

Y. Chapter 233, Paint Stripping.

(1) Fee for paint cleaning/stripping permit: 1.5% of cost of project.

Y.1. Chapter 236, Parking Lots and Public Garages. **[Added 12-23-1997 by Ord. No. 97-087]**

(1) The annual license fee for a parking lot or parking garage shall be determined by multiplying the total area in square feet allocated to the parking or storage of vehicles by $0.015 through December 31, 1997, $0.025 through December 31, 1998 and $0.04 thereafter.

(2) The seasonal license fee for a parking lot or parking garage shall be determined by multiplying the number of months for which said seasonal license is issued by 1/10 of the annual license fee for operating said parking lot or garage [as determined in Subsection Y.2(1) above].

Z. Chapter 239, Parks and Recreation Areas. **[Amended 9-13-1995 by Ord. No. 95-076; 4-10-1996 by Ord. No. 96-030; 5-8-1996 by Ord. No. 96-039; 11-29-2001 by Ord. No. 01-125; 12-17-2014 by Ord. No. 14-163; 5-10-2023 by Ord. No. 23-036; 2-26-2025 by Ord. No. 25-011]**

(1) (a) Six-month Membership Pass Fee for the use of Pershing Field Pool shall be available for the periods of (1) January 1—June 30, and/or (2) July 1—December 31 as follows:

Jersey City Residents

Adult (Ages 18—61) $200.00

Senior (Ages 62+) $75.00

Non-Residents

Adult (Ages 18—61) $400.00

Senior (Ages 62+) $150.00

(i) There shall be a fee of $2.00 to replace any membership identification pass.

(b) Daily Pass Fees shall be available on all dates and times the Pershing Field Pool, is open to the public between Labor Day and Memorial Day of the following year as follows:

Jersey City Residents	Weekdays	Weekends & Holidays
Adult (Ages 18—61)	$3.00	$4.00
Senior (Ages 62+)	$1.00	$1.00
Non-Residents		
Adult (Ages 18—61)	$6.00	$8.00
Senior (Ages 62+)	$2.00	$2.00

(c) There shall be no Daily Pass Fees for the Pershing Field Municipal during the summer season, defined as between Memorial Day and Labor Day.

(d) Daily Pass Fees shall be available on all dates and times the Lafayette Aquatic Center is open to the public as follows:

Jersey City Residents		
No fees		
Non-Residents	Weekdays	Weekends & Holidays
Adult (Ages 18—61)	$6.00	$8.00
Senior (Ages 62+)	$2.00	$2.00

(e) There shall be no Daily Pass Fees for Pavonia Municipal Pool.

(2) Fees for individual and group rentals of the ice-skating rink.

(a) Fees for daily use of the ice-skating rink by individuals are as follows:

[1] Residents.

[a] Adults 19 years of age and older: $3.

[b] Children under 18 years of age: $1.50.

[c] Seniors 65 years of age or older: $1.

[2] Nonresidents.

[a] Adults 19 years of age and older: $5.

[b] Children under 18 years of age: $3.

[c] Seniors 65 years of age and older: $2.

(b) Rentals for hockey teams:

[1] Hockey teams submitting proof of a roster comprised of at least 51 percent of residents or the dependents of active full-time employees of the City: $75.00 an hour.

[a] All other hockey teams: $200.00 an hour.

[2] Other groups or organizations:

[a] Residents (51 percent or more): $150.00 per hour.

[b] Non-residents: $200.00 per hour.

(c) Fees for daily use of the in-line skating rink at Pershing Field by individuals are as follows:

[1] Residents.

[a] Adults 19 years of age and older: $3.00.

[b] Children under 18 years of age: $1.50.

[c] Senior citizens 65 years of age or older: $1.00.

[2] Nonresidents.

[a] Adults 19 years of age and older: $3.00.

[b] Children under 18 years of age: $3.00.

[c] Senior citizens 65 years of age or older: $2.00.

(d) The in-line skating rink at Pershing Field may be rented by teams, groups or organizations for group activities at the following rates:

[1] Residents (51 percent or more): $75.00.

[2] Nonresidents: $100.00 per hour.

(3) Maintenance fee for fishing in Jersey City reservoir waters.

(a) Seasonal fees for Jersey City residents shall be as follows:

[1] Adult (18 to 61): $10.00.

[2] Senior (62 and over): $5.00.

[3] Junior (eight to 17): $5.00.

[4] Children (seven or under): no charge.

[5] Handicapped persons: no charge.

Note: Persons 17 or under must be accompanied by an adult.

(b) Seasonal fees for non-Jersey City residents shall be as follows:

[1] Adult (18 to 61): $20.00.

[2] Senior (62 and over): $10.00.

[3] Junior (eight to 17): $10.00.

[4] Children (seven or under): no charge.

[5] Handicapped persons: no charge.

Note: Persons 17 or under must be accompanied by an adult.

(c) Daily fees for Jersey City residents and non-Jersey City residents: $5.

[1] Children (seven or under): no charge.

[2] Handicapped persons: no charge.

(d) There shall be no charge for nonprofit groups, Jersey City Department of Recreation and Cultural Affairs programs and Jersey City public schools programs.

(4) Maintenance fee for hiking on Jersey City reservoir properties. **[Added 4-10-1996 by Ord. No. 96-030]**

(a) Seasonal fees for Jersey City residents:

[1] Adult (18 to 61): $5.00.

[2] Senior (62 and over): $3.00.

[3] Junior (eight to 17): $3.00.

[4] Children (seven or under): no charge.

[5] Handicapped persons: no charge.

Note: Persons 17 or under must be accompanied by an adult.

(b) Seasonal fees for non-Jersey City residents:

[1] Adult (18 to 61): $10.00.

[2] Senior (62 and over): $5.00.

[3] Junior (eight to 17): $5.00.

[4] Children (seven or under): no charge.

[5] Handicapped persons: no charge.

Note: Persons 17 or under must be accompanied by an adult.

(c) Daily fees for Jersey City residents and non-Jersey City residents: $5.

[1] Children (seven or under): no charge.

[2] Handicapped persons: no charge.

(d) There shall be no charge for nonprofit groups, Jersey City Department of Recreation and Cultural Affairs programs and Jersey City public schools programs.

(5) **[Added 5-8-1996 by Ord. No. 96-044]** Fee for parking in the north and south parking lots on the Boonton Reservoir watershed property:

(a) Nonresidents: $3.00 per car per day.

(b) Jersey City residents: no charge.

AA. Chapter 245, Peddling, Soliciting and Canvassing.

(1) Peddler's license fee: $250.00 per year, not prorated, or a daily charge of $25.00.

(2) Peddler's identification tag: $5.00 per year.

(3) Transient business license fee: $100.00 per month or fraction thereof.

(4) Investigation of applicant for canvasser license: $2.00.

BB. Chapter 248, Pool Rooms.

(1) Annual pool room license fee: $100.

(2) License transfer fee: $5.

CC. Chapter 251, Pornography and Obscenity.

(1) Obscene material registration fee: $50.

CC.1 Chapter 254, Property Maintenance. **[Added 7-14-2004 by Ord. No. 04-071]**

(1) License fees, in addition to the fees provided in N.J.S.A. 55:13A-1, et seq.

(a) Furnished apartments: seventy-five dollars ($75.00), plus ten dollars ($10.00) for each apartment.

(b) Motels, hotels, etc.: six hundred dollars ($600.00), plus forty dollars ($40.00) per room.

(2) Re-inspection fee: twenty-five dollars ($25.00).

(3) Inspections made under § 254-107.

(a) For an inspection and two additional re-inspections, if necessary, for dwellings of two units or less: eight dollars ($80.00)

(b) For an inspection and two additional re-inspections, if necessary for each dwelling unit in excess of two: twenty-five dollars ($25.00)

(c) For the third re-inspection and any additional re-inspections, per rooming unit: forty dollars ($40.00)

(4) The initial registration fee for each vacant property shall be two hundred fifty dollars ($250.00). The fee for subsequent renewals shall be five hundred dollars ($500.00). The renewal fee for the annual registration shall be due by October 1st of each year. The registration fee will not be prorated or refunded. **[Added 9-14-2011 by Ord. No. 11-108]**

CC.2 Chapter 255, Short-Term Rentals. **[Added 1-23-2020 by Ord. No. 20-005]**

(1) Short-term rental permit: $250.00.

(2) Short-term rental permit renewal: $200.00.

The cost of any inspection required by § 255-4 as well as the cost of the zoning certificate of compliance as required by § 255-4.C shall be included with the both the initial permit fee and the renewal fee.

DD. Chapter 260, Rent Control. **[Amended 10-24-12 by Ord. No. 12-137]**

(1) $125 per housing space for the filing of capital improvement to vacant housing spaces.

(2) $20 per housing space for major or minor capital improvement applications.

(3) $30 per housing space for hardship application.

(4) $10 per housing space for the filing of landlord registration statement for all dwellings with five (5) or more housing spaces, including dwellings that are exempt from the restrictions of rent increases mandated under Chapter 260-1, during each registration event.

(5) $30 per housing space for condominium and cooperative conversions.

(6) $150 per housing space for appeal of a protected tenancy determination.

EE. Chapter 269, Sales.

(1) Application fee for liquidation sale license: $25.

(2) Renewal license fee: $25.

FF. Chapter 275, Secondhand Dealers. **[Amended 12-15-1999 by Ord. No. 99-181; 4-23-2003 by Ord. No. 03-055]**

(1) Fee for general license:

Class A: $200 per year

Class B: $1,000 per year

(2) Fee for temporary license:

Class A: $100

Class B: $500

FF.1. Chapter 276, Lithium-Ion Batteries. **[Added 4-24-2024 by Ord. No. 24-023]**

(1) Inspection fee of sellers of lithium-ion batteries and powered mobility devices: $200.00.

(2) Any required re-inspection: $50.00.

GG. Chapter 284, Shopping Carts.

(1) Redemption fee: $5.00 per day for each cart to cover municipal retrieval costs, plus $1.00 per day for storage of each such cart.

HH. Chapter 287, Solid Waste.

(1) Recycling license fee: $100.00 per year.

II. Chapter 290, Spray Paint, Sale of.

(1) License to sell spray paint: $25.00.

JJ. Chapter 296, Streets and Sidewalks. **[Amended 9-23-1998 by Ord. No. 98-125; 2-28-01 by Ord. No. 01-120; 6-13-01 by Ord. No. 01-159; 2-27-02 by Ord. No. 02-012; 1-28-2015 by Ord. No. 15-003; 11-12-2020 by Ord. No. 20-095; 2-24-2021 by Ord. No. 21-010; 3-23-2022 by Ord. No. 22-020; 1-10-2024 by Ord. No. 23-126]**

(1) Fee for sidewalk sale: $10.00 per day.

(2) Fee for sidewalk sale conducted within a special improvement district: $100.00 per Zoning Determination Letter.

(3) Fees and deposits for excavations in public rights-of-way:

(a) Fees for water service line to each house connection $150.00

Fee for sewer service line to each house connection $200.00

Fee for both water and sewer lines to each house connections..... $300.00

(b) Administrative fee of $50.00 for each application in which an excavation is proposed.

(c) Fee of $65.00 for excavations up to 25 square feet and $2.00 per square foot for each additional square foot thereafter.

(d) Such additional fees as may be required by § 296-36.

(e) Administration fee for a roadway opening permit is $135.00.

(f) Any and all permit fees for autonomous agencies seeking to excavate a city street shall be waived.

(4) Initial fee for permit for use of pay telephone franchise: $50.00 per year or any part of a year.

(5) Renewal permit for pay telephone franchise: $25.00 per year.

(6) For the 2022 year, sidewalk café and parklet permit fees shall be reduced by 50 percent as reflected in the charts labeled "Seasonal Fees for Sidewalk Cafés and Parklets" and "Full-Year Fees for Sidewalk Cafés and Parklets. The annual fee for sidewalk café licenses and parklets shall not be prorated for less than a full year.

(7) Seasonal fees for sidewalk cafés and parklet.

OUTDOOR DINING FEE SCHEDULE Seasonal (March 15 - November 30)		
Application Type	**Application Fees**	**Description**
PARKLET FEE *(required ONLY for outdoor dining strucutres located in an on-street parking space or pedestrian plaza)*		
Parklet Fee	$1,917	Annual Fee. Calculated using existing meter rate per hour, including 12 hours per day for 213 days (removing 37 Sundays and 10 City Holidays from a total of 260 days from March 15 to November 30)
Administrative fee	$383	20% of parklet fee
SIDEWALK CAFE LICENSE Division of Commerce, Department of Housing, Economic Development, and Commerce *(required for ALL outdoor dining structures, including sidewalk cafes and parklets)*		
Seating for 1-16 patrons	$225	Annual Fee
Seating for over 16 patrons	$275	
Sidewalk Café Inspection	$100	Fee per inspection. A minimum of two (2) inspections are required annually for all renewal applications, one at the time of the application submission, and one within six (6) months of issuance of permit. A minimum of one (1) inspection is required annually for new applications, within six (6) months of issuance of permit.
TRAFFIC PERMIT Division of Engineering, Traffic, and Transportation *(required ONLY for outdoor dining structures located in a parking space or pedestrian plaza)*		
Engineering & Traffic Review	$100	Annual Fee
Engineering & Traffic Inspection	$100	Fee per inspection. A minimum of two (2) inspections are required annually for all renewal applications, one at the time of the application submission, and one within six (6) months of issuance of permit. A minimum of one (1) inspection is required annually for new applications, within six (6) months of issuance of permit.
ZONING AND PLANNING PERMITS Divisions of Zoning and Planning, Department of Housing, Economic Development, and Commerce *(required ONLY for outdoor dining structures with enclosures or signage, including sidewalk cafes and parklets)*		
Zoning Review	$100	One-time fee*
Historic Preservation Review	$100	One-time fee*
Signage Review		One-time fees*
Exterior installed signage	$100	
Unlit or temporary signage	$40	Signage is considered temporary if it is unlit and on a seasonal parklet that fits the zoning guidelines for signage
CONSTRUCTION PERMIT Divisions of Zoning and Planning, Department of Housing, Economic Development, and Commerce *(required ONLY for outdoor dining structures with enclosures, including sidewalk cafes and parklets)*		
Construction Code Review	$15 per thousand of construction costs	One-time fee*
Construction Code Inspection	$100	Fee per inspection. A minimum of two (2) inspections are required annually for all renewal applications, one at the time of the application submission, and one within six (6) months of issuance of permit. A minimum of one (1) inspection is required annually for new applications, within six (6) months of issuance of permit.
FIRE CODE PERMIT Fire Prevention Bureau, Department of Public Safety *(required ONLY for outdoor dining structures with electricty or heating, including sidewalk cafes and parklets)*		
Fire Code Inspection	$100	Fee per inspection. A minimum of two (2) inspections are required annually for all renewal applications, one at the time of the application submission, and one within six (6) months of issuance of permit. A minimum of one (1) inspection is required annually for new applications, within six (6) months of issuance of permit.
*Any proposed changes not included in or not compliant with original approval will be subject to additional review and applicable fees.		

(8) Full-year fees for sidewalk cafés and parklets.

OUTDOOR DINING FEE SCHEDULE Full-Year (March 15 - March 14 of following year)		
Application Type	**Application Fees**	**Description**
PARKLET FEE *(required ONLY for outdoor dining strucutres located in an on-street parking space or pedestrian plaza)*		
Parklet Fee	$2,632	Annual Fee. Calculated using existing meter rate per hour, including 12 hours per day for 298 days (removing 52 Sundays and 15 City Holidays from a total of 365 days from March 15 to March 14 of following year)
Administrative fee	$536	20% of parklet fee
SIDEWALK CAFE LICENSE Division of Commerce, Department of Housing, Economic Development, and Commerce *(required for ALL outdoor dining structures, including sidewalk cafes and parklets)*		
Seating for 1-16 patrons	$300	Annual Fee
Seating for over 16 patrons	$350	
Sidewalk Café Inspection	$100	Fee per inspection. A minimum of two (2) inspections are required annually for all renewal applications, one at the time of the application submission, and one within six (6) months of issuance of permit. A minimum of one (1) inspection is required annually for new applications, within six (6) months of issuance of permit.
TRAFFIC PERMIT Division of Engineering, Traffic, and Transportation *(required ONLY for outdoor dining structures located in a parking space or pedestrian plaza)*		
Engineering & Traffic Review	$100	Annual Fee
Engineering & Traffic Inspection	$100	Fee per inspection. A minimum of two (2) inspections are required annually for all renewal applications, one at the time of the application submission, and one within six (6) months of issuance of permit. A minimum of one (1) inspection is required annually for new applications, within six (6) months of issuance of permit.
ZONING AND PLANNING PERMITS Divisions of Zoning and Planning, Department of Housing, Economic Development, and Commerce *(required ONLY for outdoor dining structures with enclosures or signage, including sidewalk cafes and parklets)*		
Zoning Review	$100	One-time fee*
Historic Preservation Review	$100	One-time fee*
Signage Review		One-time fee*
Exterior installed signage	$100	
Unit or temporary signage	$40	Signage is considered temporary if it is unlit and on a seasonal parklet that fits the zoning guidelines for signage
CONSTRUCTION PERMIT Divisions of Zoning and Planning, Department of Housing, Economic Development, and Commerce *(required ONLY for outdoor dining structures with enclosures, including sidewalk cafes and parklets)*		
Construction Code Review	$15 per thousand of construction costs	One-time fee*
Construction Code Inspection	$100	Fee per inspection. A minimum of two (2) inspections are required annually for all renewal applications, one at the time of the application submission, and one within six (6) months of issuance of permit. A minimum of one (1) inspection is required annually for new applications, within six (6) months of issuance of permit.
FIRE CODE PERMIT Fire Prevention Bureau, Department of Public Safety *(required ONLY for outdoor dining structures with electricty or heating, including sidewalk cafes and parklets)*		
Fire Code Inspection	$100	Fee per inspection. A minimum of two (2) inspections are required annually for all renewal applications, one at the time of the application submission, and one within six (6) months of issuance of permit. A minimum of one (1) inspection is required annually for new applications, within six (6) months of issuance of permit.
*Any proposed changes not included in or not compliant with original approval will be subject to additional review and applicable fees.		

KK. Chapter 304, Taxation.* **[Amended 4-24-2002 by Ord. No. 02-046; 1-24-2007 by Ord. No. 07-002]**

(1) Five-year tax exemption application fees.

(a) No application for the approval of a five (5) year tax exemption shall be accepted unless it is accompanied by full payment of the following fees:

(1) Improvement to dwellings (1-4 units): $100 per unit;

*__Editor's note__—Former subsection (3) was repealed April 24, 2002, by Ord. No. 02-049.

(2) New construction of dwellings (1-4 units): $100 per unit;

(3) Improvements to and conversions of multiple dwellings (5 units and above): $100 per unit;

(4) Improvements to commercial or industrial structures:

A. 10,000 square feet or less: $1,500 and

B. More than 10,000 square feet: $3,000;

(5) New construction of multiple dwellings by tax agreements: $200 per unit with a maximum of $10,000 per building; and

(6) New construction of commercial or industrial structures by tax agreements: $3,500.

(2) Long term tax exemption application fees.

(a) No application for approval or amendment of a tax exemption shall be accepted unless it is accompanied by full payment of the following fees:

[1] $5,500 for projects whose total project cost is estimated to be less than $1,000,000.

[2] $9,500 for all other projects plus an additional sum of up to $3,500 for any professional fees that may be incurred by the City to verify the estimated construction costs of the applicant.

[3] Zero ($0) dollars for projects which provide housing for families of low or moderate income within the meaning of the Fair Housing Act, N.J.S.A 52:27D-301 et seq.

(b) No application for the assignment of a tax exemption, whether approved under N.J.S.A. 40A:20-1 et seq. or prior laws, shall be accepted unless it is accompanied by a $1,500 fee.

(c) No application for approval or amendment or assignment of a tax exemption, which is unconditionally rejected, shall be accepted for resubmission unless it is accompanied by payment of a full additional fee.

(d) No application for approval or assignment of, or amendment to, a tax exemption, which is deemed incomplete or deficient, shall be accepted for resubmission unless it is accompanied by full payment of a fee of $500.

(e) These fees shall be received as compensation for the legal review and related administrative work of the City's departments and agencies. All fees shall be paid in full by a certified check made payable to the City. The fees shall be nonrefundable.

LL. Chapter 307, Taxicabs and Limousines. **[Added 1-11-2012 by Ord. No. 11-156]**

(1) *Limousine license required; fees - § 307-38.*

a. No limousine license for limousine services with principal places of business within the City of Jersey City, shall be issued or renewed unless the applicant has paid the annual

license fee of fifty dollars ($50.00) for each limousine service business and ten dollars ($10.00) for each limousine. Limousine license fees shall be in addition to any other fees or charges established by the proper authorities and applicable to the holder of the license(s) for the vehicle or vehicles under his operation and control.

b. Limousine services with a place of business within, and licensed by, the City of Jersey City shall be required to pay an annual administrative fee of five hundred dollars ($500.00) to cover administrative costs including, but not limited to, vehicle inspections, preparation of reports and documents by Division personnel and the enforcement by the Division of the provisions of this chapter.

c. The holder shall make annual application for renewal of his/her limousine license and limousine operator's licenses not later than thirty (30) days prior to the expiration date, and pay the annual fee of $50.00 for the limousine license and ten ($10.00) for each limousine. Late filing of applications shall be subject to an additional fifty dollar ($50.00) late filing fee.

(2) *Limousine operator's license fees - § 307-39.* No operator's license shall be issued or renewed unless the applicant has paid an initial license fee of seventy-five dollars ($75.00) and, on or before March 31 of each year, and fifty dollars ($50.0.0) as the annual renewal fee.

(3) *Failure to transfer ownership when no claim on vehicle is made - § 319-19.* Vehicle owners who wish not to claim and or remove their vehicle from an impound storage area must sign a certificate of ownership, which transfers ownership to the City of Jersey City. Failure to do so may result in the owner being cited with a summons for abandonment of motor vehicle pursuant to N.J.S.A. 39:4-56.5 which will subject the owner, for the first offense, to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), and his license or driving privilege may be suspended of revoked for not more than two (2) years. For any subsequent violation, the owner will be subject to a fine of not less than five hundred dollars ($500.00) nor more than one thousand dollars ($1,000.00), and his license or driving privilege may be suspended or revoked for not more than five (5) years.

MM. Chapter 310, Theaters. **[Amended 12-15-1999 by Ord. No. 99-181]**

(1) Annual license fee for theaters: $350.

NN. Chapter 313, Tires, Sale of. **[Amended 12-15-1999 by Ord. No. 99-181]**

(1) Annual permit fee: $25.

NN. Chapter 316, Tobacco Products and Smoking Devices. **[Added 6-14-2023 by Ord. No. 23-049]**

The annual license fee for Tobacco Stores and Smokes Shops are as follows:

1. Tobacco Store: $600.00

2. Smoke Shop: $1,000.00

OO. Chapter 319, Towers and Towing. **[Amended 12-15-1999 by Ord. No. 99-181; 9-13-2000 by Ord. No. 00-116; amended 3-14-2012 by Ord. No. 12-017; amended 4-25-2012 by Ord. No. 12-052; 6-13-2022 by Ord. No. 22-060]**

(1) *License fees - § 319-7.1.*

a. Annual combined license fee for principal license and any and all supplemental licenses for a class A tower: $1,500.

b. Annual combined license fee for principal license and any and all supplemental licenses for a class B tower: $1,500.

c. Annual license fee for an impound operator for 300 vehicles: $2,000.00.

d. Annual license fee for an impound operator for 200 vehicles: $1,500.00.

e. Annual license fee for an impound operator for 150 vehicles: $1,000.00.

f. Tower and impound operator fees shall increase every four years computed by applying the aggregate C.P.I. for the four years and rounded up to the next $50.00.

(2) *Maximum fees to tow, transport, convey or move vehicles - § 319-11.*

a. Maximum fees to tow, transport, convey or move vehicles (class A licensee).

(1) No licensee shall charge more than the following maximum fees to tow, transport, convey or otherwise move a vehicle from one location within the City of Jersey City to another location within the City of Jersey City:

(a) Class I vehicle: $150.00, inclusive of a $40.00 administrative fee.

(b) Class II vehicles: $200.00, inclusive of a $40.00 administrative fee.

(c) Class III vehicles: $250.00 per hour (minimum two hours).

(2) In addition to the above charges, under certain circumstances official towers shall be allowed to charge for extra services that may be required above the basic towing charge. Any such services and charges shall be in accordance with the fee schedule below:

Service or Charge	**Fee**
Decoupling	$25.00 (up to 10,000 pounds) $100.00 (over 10,000 pounds)
Jump start	$25.00
Flat tire	$25.00
Lock out	$25.00
Road service	$25.00

Service or Charge	Fee
Gasoline/fuel service	$25.00, in addition to gasoline/fuel cost
Crash or window wrap	$75.00 flat fee
Site clean up	$25.00 per bag of absorbent and $25.00 per bag of debris removal
Winching (not applicable to the towing of parked automobiles or minor maneuvering of automobiles prior to tow)	$75.00 per hour for light tow vehicles (up to 10,000 pounds) $150.00 per hour for heavy tow vehicles (over 10,000 pounds)
Snow locked vehicles	$50.00 per tow additional charge
Rotator/crane recovery unit service	$1,200.00 per hour
Tarp	$125.00

Any fees charged for services or equipment not specified in this Ordinance shall be in accordance with and not in excess of rates approved and utilized by the New Jersey State Police. Said fees shall conform with New Jersey State Police rates, which may be updated periodically. If an issue arises as to these charges, it shall be the burden of the tower to provide documentation in the form of photographs as to the particular circumstances requiring the additional charges, i.e., position of the vehicle.

(3) No charge shall be imposed on a rotation list tow for waiting time, clean-up, yard fee or any other service not specifically authorized under this chapter.

(4) The above fees are chargeable once a vehicle is hooked up by the tower.

b. Maximum fees for vehicle storage (impound storage licensee).

(1) No licensee shall charge more than the following maximum fees per day, or portion thereof, for storage of a disabled vehicle towed away pursuant to this chapter:

(a) Class I vehicles: $30.00 per day.

(b) Class II vehicles: $60.00 per day.

(c) Class III vehicles: $100.00 per day.

(2) No vehicle shall be released from storage by a licensee unless proper owner and vehicle identification are shown.

c. Each driver of a Class A licensee shall have a schedule of the maximum prices when responding to the scene of a disabled, abandoned or other vehicle.

d. Before performing any service pursuant to this chapter, the licensee shall furnish the owner or driver of the vehicle with a copy of the schedule of prices. In the event that the owner or driver is incapacitated, the licensee shall furnish such schedule to the owner's authorized agent as defined herein before such person pays for the services rendered.

(3) *Fees for storage - 319-18.* Upon receipt of an impounded vehicle, the impound operator licensee shall pay the tower $90.00 for a class I Vehicle and $140.00 for a class II vehicle, and for a class III vehicle, a minimum of $390.00 no later than 30 days of receipt of the vehicle. The tower shall not receive any additional payment. Upon payment of the fee, as set forth in section 319-11, by the owner or person entitled to claim the vehicle, the City shall receive an administrative fee of $40.00 and the licensed storage facility a fee of $20.00.

(4) *Violation for failure to remove vehicle - 319-19.* Vehicle owners who wish not to claim and or remove their vehicle from an impound storage area must sign a certificate of ownership, which transfers ownership to the City of Jersey City. Failure to do so may result in the owner being cited with a summons for abandonment of motor vehicle pursuant to N.J.S.A. 39:4-56.5 which will subject the owner, for the first offense, to a fine of not less than $100.00 nor more than $500.00, and his license or driving privilege may be suspended of revoked for not more than two years. For any subsequent violation, the owner will be subject to a fine of not less than $500.00 nor more than $1,000.00, and his license or driving privilege may be suspended or revoked for not more than five years.

PP. Chapter 321, Trees. **[Amended 8-14-2002 by Ord. No. 02-084]**

(1) Tree permit: $2 for each tree involved.

(2) Tree planting fee: fifty dollars ($50.00) for each tree (includes cost of tree and labor).

QQ. Chapter 324, Used Car Dealers. **[Amended 12-15-1999 by Ord. No. 99-181]**

(1) Motor vehicle sales license fee:

(a) Beginning January 1, 2000: $300 per year.

(b) Beginning January 1, 2001: $500 per year.

(c) Beginning January 1, 2002: $800 per year.

RR. Chapter 329, Vending Machines. **[Amended 8-16-1995 by Ord. No. 95-068; 4-23-2014 by Ord. No. 14-042; 4-15-2026 by Ord. No. 25-068]**

*Also see, Q. Chapter 182(2) for all inspection and late fees.

(1) Operator's license fee, each vending machine.

a. Class A machine: $140.00 per year or part thereof.

b. Class B machine: $105.00 per year or part thereof.

c. Class C machine: $70.00 per year or part thereof.

d. Class D machine: $42.00 per year or part thereof.

SS. Chapter 332, Vehicles and Traffic. **[Amended 3-14-1985 by Ord. No. MC-807; 4-19-1997 by Ord. No. 97-011; amended 10-13-1999 by Ord. No. 99-151; 2-23-2000 by Ord. No. 00-011; 9-14-2005 by Ord. No. 05-108; 5-9-2012 by Ord. No. 12-062; 11-12-2014 by Ord. No. 14-017; 9-9-2015 by Ord. No. 15-109; 11-24-2015 by Ord. No. 15-156; 4-12-2017 by Ord. No. 17-033; 7-17-2019 by Ord. No. 19-076; 12-18-2019 by Ord. No. 19-162; 1-8-2020 by Ord. No. 19-170; 9-23-2020 by Ord. No. 20-063; 9-10-2020 by Ord. No. 20-066; 3-9-2022 by Ord. No. 22-022; 3-9-2022 by Ord. No. 22-023; 6-29-2022 by Ord. No. 22-059; 11-8-2023 by Ord. No. 23-109; 3-26-2025 by Ord. No. 25-028; 7-16-2025 by Ord. No. 25-075]**

(1) *Violations and penalties—Emergency No Parking Areas—§ 332-34; Signs—§ 332-35.* Unless another penalty is expressly provided by this chapter or the New Jersey statutes, every person convicted of a violation of a provision of this chapter or any supplement thereto shall be liable to a penalty of not more than $50.00 or imprisonment for a term not exceeding five days, or both.

(2) *Parking prohibited for sale or repair of vehicles or parking in front of handicap access ramp prohibited—§ 332-25.B.* For a violation of this provision, the offender shall be liable to a penalty of not less than $60.00.

(3) *Penalties for violation of bus regulations.* Any operator found guilty of violating any provisions of this article shall be liable to a fine not to exceed $500.00.

(4) *Violations and penalties of regulations regarding parking facilities operated by the Division of Parking Enforcement—§ 332-40.* Unless another penalty is expressly provided by New Jersey State statute, any person who violates or fails to comply with any provision of this article shall, upon conviction therefor, be liable to a fine of not more than $50.00, together with court costs, or imprisonment for a period not to exceed 15 days, or both, for each and every offense.

(5) City-owned electric vehicle charging stations: $1.60 per hour of charging.

(6) Park mobile parking meter transaction fee: $0.20 per parking transaction.

(7) *Abandonment of motor vehicles prohibited; violations and penalties—§ 332-72.* The Municipal Court may impose the following penalties for any violation of this section:

a. A fine of not less than $100.00 nor more than $500.00 and a suspension of driving privileges for up to two years for the first violation.

b. A fine of not less than $500.00 nor more than $1,000.00 and suspension of driving privileges for up to five years for additional violations.

(8) *Penalties—Impounding and booting vehicles—§ 332-73.* Any person found guilty of violating any of the provisions of this article shall be subject to a fine not exceeding $1,000.00 or imprisonment not exceeding 90 days or both for each offense.

(9) *Fines—§ 332-3.* Any person liable for a traffic control signal violation, pursuant to the Ordinance and the Act, utilizing the system shall be subject to the following fines:

Violation: $100.00

Late fee: $25.00

(10) On street parking permit fees. The fee for a residential parking permit or temporary residential parking permit shall be as follows:

a. Residential parking permit or new resident temporary parking permit:

(i) $20 per year for the first vehicle per household within the appropriate zone, then, for each vehicle after the first, the price for an annual permit shall increase incrementally by $10;

(ii) For any individual 65 years of age or older who submits proper proof of age and residency in accordance with this chapter, there shall be no charge for the first two permits, then fees pursuant to Subsection (i) and (iv) shall apply for each vehicle after the first two.

b. Non-residential parking permit: $500.00 per year;

Non-resident City government employees: $40.00 per year; and

Non-resident teacher, faculty and staff: $40.00 per year with proof of employment at a Jersey City PreK-12 school;

c. Temporary resident parking permit (90-day): $125.00;

Temporary work permit (90-day): $125.00 and not more than 90 days;

Temporary residential permit (14-day): $20.00;

d. Home healthcare permit (90-day): $50.00;

e. Contractor parking permit (one- and two-family residences):

(i) Six-month permit: $175.00; and

(ii) Daily permit: $15.00 a day;

f. Visitors parking permit: Daily: $10.00 for each permit for up to five permits; provided, however, that residents of the Jersey City Housing Authority may obtain up to five permits without fee;

g. Transfer permit: $15.00;

h. Deed restricted low/moderate income residents or R-2 residents: $0.00.

i. Zone 16-2: $50.00 per six-month period for each vehicle registered to a person currently working for an employer located within Parking Permit Zone 16.

(11) On-street permit to park in the zone designated by ordinance as Douglas and Arthur Skinner Memorial Drive (FKA: Jersey Avenue): $200.00 per year.

(12) Parking or standing a vehicle in designated space in the parking meter zone within the area of the west side of Douglas and Arthur Skinner Memorial Drive (FKA: Jersey Avenue) from Grand Street south to the light rail tracks shall be lawful for two (2) hours upon the deposit of twenty-five cents ($0.25) per one-half (1/2) hour in the multi-space machine for those hours specified in this section.

(13) Parking permit fees for municipal lots:

PARKING PERMIT FEES FOR MUNICIPAL LOTS			
(F/K/A) LOT#	**LOCATION**	**PERMITS**	**FEE MONTHLY**
1 (a/k/a 33)	Sherman Place & Central Avenue	24/7	$70.00
2 (a/k/a 39)	522 West Side Avenue (Between Clendenny Avenue & Union Street)	NP	
3 (a/k/a 44)	693 Newark Avenue & Cottage Street	24/7	$105.00
4 (a/k/a 49)	340 Central Avenue (Burger King Lot)	24/7 NP	$70.00
5 (a/k/a 50)	Fairview & Bergen Avenue	24/7	$85.00
6 (a/k/a 51)	404 2nd Street	24/7	$85.00
7 (a/k/a 52)	174 Newark Avenue	24/7	$90.00
8 (a/k/a 53)	477-79 Central Avenue & Congress	24/7	$70.00
9 (a/k/a 54)	Boland Street Fairmount Avenue	24/7	$65.00
10 (a/k/a 15)	754 West Side Avenue (between Fairview and Fairmount Avenue)	24/7	$55.00
11 (a/k/a 4)	388 Central Avenue	NP	$70.00
ALL	ALL COMMERCIAL VEHICLES	24/7	$130.00
ALL	NIGHT TIME PARKING (NP) as available, first come, first served. City residents shall be accorded a preference.	NP	$55.00

(14) Parking fee for itinerant food vendor parking: Parking or standing a vehicle in a designated space within the Itinerant Food Vendor Truck Parking Zone as set forth in § 332-57 shall be lawful upon receipt of a City-issued itinerant food truck parking permit and payment of the following:

Itinerant food truck parking—Zone 1: $10,000.00 per year, to be paid in 12 monthly installments due on the first of each month;

Itinerant food truck parking—Zone 2: $4.00 per hour;

Itinerant food truck parking—Zone 3: $4,250.00 per year to be paid in 5 monthly installments due on the first of each month;

(15) § 332-57.1. Parking meter covers and parking spaces. The following rates shall apply for the rental of a parking space and the issuance of a parking meter sign, parking meter cover or parking meter bag:

(a) For residents of one- and two-family homes, rental of a parking space sign for a non-metered space shall cost $20 per sign and may be used for a maximum of seven days. Rental of a parking space cover or bag for a metered space shall cost $20 per bag or cover and may be used for a maximum of seven days;

(b) For residents and for businesses or contractors with valid construction permits relating to building sites of six stories or less, excepting one- and two-family homes, rental of a parking space sign for a non-metered space shall cost $20 per sign per day. Rental of a parking space cover or bag for a metered space shall cost $20 per bag or cover per day;

(c) For businesses or contractors with valid construction permits relating to commercial and mixed-use building sites of seven stories or taller, rental of a parking space sign, cover, or bag for metered and non-metered spaces shall cost $100 per sign per day;

(d) For not-for-profit companies and festivals, and other approved events requiring more than 25 signs, rental of a parking space sign, cover, or bag shall cost $1 per parking space per day.

TT. Chapter 337, Water.

(1) Meter testing charge: $2.00 for meters up to and including one-inch capacity.

(2) Special meter reading and report: $10.00.

(3) Permit for installation of water-cooled air-conditioning equipment, refrigeration machinery or compression installations, discharging water into the city sewerage system: $3.00.

(4) Metered water rates.

(a) Each 100 cubic feet of water consumed: $1.31.

(b) A charge for each connection to the municipal water system, based on the size of the meter, or in the absence of a meter, the size of the service line, as follows (these charges shall be in addition to any charge for metered water):

Size of Meter (inches)	Monthly Charge
5/8	$ 1.00
34	1.50
1	2.50
1 1/2	5.00
2	14.00
3	30.00
4	52.50
6	109.35
8	157.50
10	253.75
12	376.25

(c) A charge for each connection to the municipal water system for the purpose of providing fire protection, based on the size of the service line, shall be as follows (these charges shall be in addition to any charge for metered water):

Size of Meter (inches)	Monthly Charge
1 1/2	$ 10.00
2	28.00
3	61.25
4	105.00
6	218.75
8	315.00
10	507.50
12	752.50

(d) Municipal and private water systems for water, other than water belonging to the City of Jersey City, transported through the Jersey City Aqueduct shall be at the rate of $6 per 1,000,000 gallons per pipe mile.

(e) Rate for private, nonprofit educational organizations as accredited elementary and secondary schools: $1,000 per 1,000,000 gallons.

(5) Bulk water rates. The rate charged to municipal and private water systems and other customers which enter into contracts having a term of five years or more shall be:

Year 1, January 1,1993	$1,000.00 per 1,000,000 gallons
Year 2	$1,050.00
Year 3	$1,125.00
Year 4	$1,250.00
Year 5	$1,400.00
Year 6 and thereafter	$1,500.00

(6) Fire hydrant charge: $200 for each fire hydrant.

(7) Charges for services rendered collected by the Office of Utility Management. **[Amended 8-13-1997 by Ord. No. 97-052]**

(a) Duplicate bill upon request: $4 for photocopies and $5 for typewritten duplicates.

(b) Return check charge: $15; returned checks of $200 or more must be redeemed with certified check, cash or money order.

(c) Water meter test.

[1] One-half (1/2) inch to one inch: $25.

[2] One inch to two inches: $40.

[3] Three inches and above: $60.

(d) Copies of blueprints: $10.

(e) Copies of intersection maps: $5.

(f) Copies of financial records: $4 per sheet.

(8) Water permit fees.

(a) Water meter permits.

Size of Meter (inches)	**Fee**
$/8	$ 90.00
5/8 X 3/4	90.00
3/4	115.00
1	150.00
11/2	325.00

Size of Meter (inches)	Fee
2	450.00
3	1,350.00
4	2,200.00
6	3,500.00
6-inch strainers	4,500.00
8	5,000.00

(b) Water tap permits. 160-1

Main (inches)	Tap (inches)	Cost
	3/4	$ 100.00
	1	130.00
	1 1/4	140.00
	1 1/2	150.00
	2	200.00
6	4	525.00
6	6	525.00
8	4	700.00
8	6	700.00
8	8	700.00
10	4	1,050.00
10	6	1,050.00
10	8	1,050.00
10	10	1,050.00
12	4	1,400.00
12	6	1,400.00
12	8	1,400.00
12	10	1,400.00
12	12	1,400.00
16	4	1,750.00
16	6	1,750.00
16	8	1,750.00
16	10	1,750.00
16	12	1,750.00
20	4	2,187.50
20	6	2,187.50
20	8	2,187.50
20	10	2,187.50
20	12	2,187.50
24	4	2,625.00
24	6	2,625.00
24	8	2,625.00
24	10	2,625.00
24	12	2,625.00

[1] For water connections of 3/4 inch through 24 inches in diameter, a fee based on the cost of materials and labor shall be charged. Such fees shall be revised by the Department of Administration periodically, as material and labor costs increases shall necessitate. **[Amended 8-13-1997 by Ord. No. 97-052]**

[2] For all taps larger than 12 inches, a tap permit fee of $1,500 shall be paid by the applicant before any tapping is performed, and the actual tap shall be performed by the applicant.

[3] Applicants for tap permits of two inches or larger must supply their own tapping gates and tapping sleeves. These gates and sleeves must conform to specifications, available at the Office of Utility Management. **[Amended 8-13-1997 by Ord. No. 97-052]**

(c) Fire hydrant use permits. The fee for a fire hydrant use permit shall be fifty dollars ($50.00) per day, per hydrant for a minimum of five days and a maximum of thirty (30) days. If the Municipal Utilities Authority determines that usage at a site so warrants, then at the option of the Municipal Utilities Authority, the fee shall be based upon actual water usage as measured by a meter to be provided by the Administration Department. The Municipal Utilities Authority may require reasonable security for each meter it provides. The Municipal Utilities Authority's option to base the fee on actual usage may be exercised at any time, including while the permit is in effect, or upon any renewal or extension of the permit. **[Amended 8-13-1997 by Ord. No. 97-052; 9-14-2005 by Ord. No. 05-113]**

(d) The fee for a flow test to determine pressure in a main shall be $100 Requests for flow test shall be made in writing to the Office of Utility Management. **[Amended 8-13-1997 by Ord. No. 97-052]**

(e) The fee for shutting a service line at the request of the customer or because of a leak or service problem shall be:

[1] Where excavation is required: $875.

[2] Where no excavation is required: $50.

(f) The fee for relocating a fire hydrant, at the customer's request, shall be $2,000.

(9) Jersey City Water Laboratory Schedule.

(a) Physical examination.

Test	Fee
Color, apparent, Pt-Co Unit	$ 8
Conductance, specific, microohms/CM	8
Odor (cold and hot)	8
Solids, total	10
Solids, suspended	10
Solids, dissolved	10
Solids, dissolved volatile	15
Solids, suspended volatile	15
Solids, total volatile	15
Fixed residue	10
Turbidity, nephelometric units	10
Specific gravity	10

(b) Microbiological examination.

Test	Fee
Algal counts, Sedgwick-Rafter Cell	$ 15.00
Standard plate count	15.00
Heterotrophic plate count	15.00
Presence-absence (5-day test)	40.00
Total coliform	25.00
Fecal coliform	25.00
Fecal streptococcus	25.00
Staphylococcus	25.00
Stressed organisms	30.00
Inhibitory residue test	130.00
Water suitability test	130.00

(c) Inorganic – nonmetallic examination.

Test	Fee
Alkalinity, pH 4.5 as CaCO3	$10.00
Alkalinity, carbonate	10.00
Alkalinity, bicarbonate	10.00
Chlorine, residual (free and total)	15.00
Chlorine demand	15.00
Chlorides	10.00
Calcium hardness, as CaCO3	10.00
Hardness, total, as CaCO3	10.00
Nitrates, NO3-N	20.00
Nitrites, NO3-N	20.00
Ammonia, NH3-N	20.00
Chemical oxygen demand	35.00
Oxygen, dissolve, Winkler method	25.00
Oxygen, dissolve, electrode method	20.00
pH	15.00
Phosphorus, total	25.00
Phosphorus, ortho	25.00
Sulfates, turbidimetric as SO4	20.00
Oils and greases, gravimetric	30.00
Hydrocarbons, gravimetric	30.00
Corrosivity, Langlier Index	30.00
Corrosivity, aggressiveness index	30.00

(d) Sample pretreatment.

Test	Fee
Soil	$35.00

Test	Fee
Water	$15.00
Wastewater	15.00
Sludge (water)	25.00
Sludge (wastewater)	30.00

(e) Metals, total.

Test	Fee
Aluminum	$20.00
Antimony	20.00
Arsenic	35.00
Barium	25.00
Cadmium	25.00
Calcium	20.00
Cobalt	25.00
Copper	20.00
Chromium	25.00
Chromium (hexavalent)	25.00
Chromium (trivalent)	25.00
Fluoride	25.00
Iron	20.00
Lead	25.00
Magnesium	20.00
Manganese	25.00
Nickel	25.00
Potassium	30.00
Selenium	35.00
Silver	35.00
Sodium	30.00
Tin	25.00
Zinc	25.00

(f) Organic examination.

Test	Fee
Trihalomethanes, total EPA 501.1	$ 75.00
Chloroform	20.00
Dichlorobromomethane	20.00
Dibromochloromethane	20.00
Bromoform	20.00
EPA 601 and 502.1 — volatile halocarbons	100.00
EPA 602 volatile aromatics	100.00
EPA 503.1 — 601/602 scan	150.00

Test	Fee
EPA 608 and 508 organochlorine pesticides	100.00
EPA 608 and 508 PCB (scan)	125.00
EPA 608 and 508 PCB (ID)	160.00
EPA 505 - organochlorine pesticides	100.00
Total petroleum hydrocarbon scan	100.00
EPA 502.2 - synthetic organic contaminants (scan)	150.00

UU. Chapter 345, Zoning. Refer to Chapter 345, Section 33.B. **[Amended 5-28-2008 by Ord. No. 08-072; 11-10-2010 by Ord. No. 10-133; 2-23-2011 by Ord. No. 11-021; 9-27-2011 by Ord. No. 11-112; 11-10-2015 by Ord. No. 15-147; 10-23-2019 by Ord. No. 19-143; 1-23-2020 by Ord. No. 20-005; 2-13-2025 by Ord. No. 25-006]**

Fee Table I

Application Type	Application Fees
Zoning Officer and Division of Zoning Enforcement Applications	**Non-Refundable**
Plan review and determination	$100.00
Certificate of occupancy review and determination	$100.00
Zoning determination/zoning compliance certificate*	$100.00
Pre-existing curbcut determination	$ 25.00

*See § 160-CC.2.

Application Type	Application Fees
Planning Board and Board of Adjustment Applications	**Non-Refundable**
Minor site plan—Cell antenna application Minor site plan—Signage and storefronts Minor site plan—Other	$2,500.00 $ 200.00 $ 350.00
Preliminary major site plan—Residential	$50.00 per dwelling unit or a minimum of $500.00
Preliminary major site plan—Non-residential	With principal buildings over 1,000 sq. ft. GFA: $50.00 per 1,000 sq. ft. GFA or part thereof or a minimum of $500.00 Without principal building over 1,000 sq. ft. GFA: $50.00 per 1,000 sq. ft. lot area or part thereof or a minimum of $500.00
Final major site plan	50% of current preliminary major site plan fee

Application Type	Application Fees
Planning Board and Board of Adjustment Applications	**Non-Refundable**
Site plan amendment	50% of the current application fee or a minimum of $1,000.00
Administrative amendment	$100.00
Conceptual site plan	$500.00 (to be deducted from fees for formal application for development)
Extension of site plan approval	$300.00
Minor subdivision	$500.00
Preliminary major subdivision	$1,000.00 plus $100.00 per lot
Final major subdivision	50% of current preliminary major subdivision fee
SPECIAL MEETING REQUESTED BY APPLICANT	$1,000.00
REZONING OR REDEVELOPMENT PLAN AMENDMENT REQUESTED BY DEVELOPER	Fee as specified in applicable redevelopment plan, or $1,000.00, if no fee specified in plan.
APPEALS, INTERPRETATIONS AND VARIANCES	$150.00
"a" and "b" appeals and interpretations as per N.J.S.A. 40:55D-70 a and b	$150.00
"c" variance as per N.J.S.A. 40:55D-70(c) and deviation from redevelopment plan	$500.00 for the first variance or deviation when not accompanied by a major or minor site plan or subdivision $300.00 for the first variance or deviation when accompanied by a major or minor site plan or subdivision $150.00 for each additional
"d" variance as per N.J.S.A. 40:55D-70(d)	$1,000.00 for the first variance $250.00 for each additional
Extension of variance approval	$300.00 (when not filed concurrently with extension of Site Plan)

Application Type	Application Fees
Historic Preservation Commission Applications	**Non-Refundable**
CERTIFICATE OF NO EFFECT	
Non-Residential	
With principal building	$40.00 per 1,000 square feet GFA or part thereof
Without principal building	$40.00 per 1,000 square feet of lot area or part thereof
Unlit Interior window sign only	$40.00

Application Type	Application Fees
Historic Preservation Commission Applications	**Non-Refundable**
Sidewalk repair/replacement when not filed concurrently with other work	$40.00 for first 25 linear feet of frontage, additional $20.00 for each 25 feet of frontage over 25 or part thereof
Residential	
Interior work only	$10 per affected dwelling unit to a Maximum of $60
Exterior work only or Interior & exterior work filed concurrently	$20.00 per dwelling unit to a maximum of $750.00
Sidewalk repair/replacement when not filed concurrently with other work	$20.00 per dwelling unit to a maximum of $60.00
CERTIFICATE OF APPROPRIATENESS (COA)	
Residential	
New construction on vacant land	$500.00
All others:	
1—4 dwelling units	$100.00
5 dwelling units or over	$20.00 per dwelling unit to a maximum of $1,000.00
Non-residential	
With principal building	$100.00 per 1,000 square feet of GFA or part thereof
Without principal building	$100.00 per 1,000 square feet lot area or part thereof
Exterior sign application only	$100.00
Outdoor café only	$100.00
Extension of COA approval	$200.00
Demolition prior approval report	$100.00
SPECIAL MEETING REQUESTED BY APPLICANT	$700.00

§ 160-2. Development fees to fund affordable housing. [Added 6-14-2023 by Ord. No. 23-048; amended 8-16-2023 by Ord. No. 23-073]

1. Purpose.

   a. In Holmdel Builder's Association V. Holmdel Township, 121 N.J. 550 (1990), the New Jersey Supreme Court determined that mandatory development fees are authorized by the Fair Housing Act of 1985 (the Act), N.J.S.A. 52:27d-301 et seq., and the State Constitution, subject to the Council on Affordable Housing's (COAH's) adoption of rules.

   b. Pursuant to P.L. 2008, c. 46 section 8 (C. 52:27D-329.2) and the Statewide Non-Residential Development Fee Act (C. 40:55D-8.1 through 8.7), COAH is authorized to adopt and promulgate regulations necessary for the establishment, implementation, review, monitoring and enforcement of municipal affordable housing trust funds and corresponding spending plans. Municipalities that are under the jurisdiction of COAH or court of competent jurisdiction and have a COAH-approved or court-approved spending plan may retain fees collected from non-residential development.

   c. This chapter establishes standards for the collection, maintenance, and expenditure of development fees pursuant to COAH's regulations and in accordance with P.L. 2008, c. 46, Sections 8 and 32-38. Fees collected pursuant to this chapter shall be used for the sole purpose of providing low- and moderate-income housing. This chapter shall be interpreted within the framework of COAH's rules on development fees, codified at N.J.A.C. 5:97-8.

2. Basic requirements.

   a. This chapter shall not be effective until approved by the Superior Court of New Jersey pursuant to N.J.A.C. 5:93- 8.

   b. Jersey City shall not spend development fees until COAH or a court of competent jurisdiction has approved a plan for spending such fees in conformance with N.J.A.C. 5:97-8.10 and N.J.A.C. 5:96-5.3.

3. Definitions.

   a. The following terms, as used in this chapter, shall have the following meanings:

      i. ACCESSORY DWELLING UNIT — a single-unit dwelling in an accessory structure that is detached from the principal building or structure and is in addition to the principal permitted use which is located on the same lot therewith.

      ii. AFFORDABLE HOUSING DEVELOPMENT — means, but is not limited to, an Inclusionary Development created pursuant to a local inclusionary zoning ordinance, affordable housing overlay, or redevelopment area plan, a municipally sponsored construction project or a 100 percent affordable development.

      iii. APPROVING AUTHORITY — the Zoning Board of Adjustment or the Planning Board, whichever land use board has jurisdiction over the subject application.

iv. COAH or THE COUNCIL — the New Jersey Council on Affordable Housing, established under the Act, or such other Agency as is created by the Legislature which has primary jurisdiction for the administration of housing obligations in accordance with sound regional planning consideration in the state.

v. DEVELOPER — the legal or beneficial owner or owners of a lot or of any land proposed to be included in a proposed development, including the holder of an option or contract to purchase, or other person having an enforceable proprietary interest in such land.

vi. DEVELOPMENT FEE PERIOD — the period of time for which COAH and/or the Court specifies that the City's Development Fee Ordinance will be in effect pursuant to N.J.A.C. 5:94-6.3.

vii. EQUALIZED ASSESSED VALUE — the assessed value of a property divided by the current average ratio of assessed to true value for the municipality in which the property is situated, as determined in accordance with sections 1, 5, and 6 of P.L. 1973, c. 123 (C. 54:1-35a through C. 54:1-35c).

viii. GREEN BUILDING STRATEGIES — those strategies that minimize the impact of development on the environment, and enhance the health, safety and well-being of residents by producing durable, low-maintenance, resource-efficient housing while making optimum use of existing infrastructure and community services.

ix. INCLUSIONARY DEVELOPMENT — a development containing a number of low and moderate income units, as required pursuant to local inclusionary zoning ordinance, affordable housing overlay, or redevelopment area plan. This term includes, but is not limited to, new construction, the conversion of a non- residential structure to a residential structure and the creation of new low and moderate income units through the gut rehabilitation of a vacant residential structure.

x. LOW INCOME HOUSING — housing affordable according to federal Department of Housing and Urban Development or other recognized standards for home ownership and rental costs and occupied or reserved for occupancy by households with a gross household income equal to 50% or less of the median gross household income for households of the same size within the housing region in which the housing is located.

xi. MIXED-USE DEVELOPMENT — any development which includes both a non-residential development component and a residential development component, and shall include developments for which (1) there is a common developer for both the residential development component and the non-residential development component, provided that for purposes of this definition, multiple persons and entities may be considered a common developer if there is a contractual relationship among them obligating each entity to develop at least a portion of the residential or non- residential development, or both, or otherwise to contribute resources to the development; and (2) the residential and non- residential developments are located on the same lot or adjoining lots, including but not limited to lots separated by a street, a river, or another geographical feature.

xii. MODERATE INCOME HOUSING — housing affordable according to federal Department of Housing and Urban Development or other recognized standards for home ownership and rental costs and occupied or reserved for occupancy by households with a gross household income equal to more than 50% but less than 80% of the median gross household income for households of the same size within the housing region in which the housing is located.

xiii. NON-RESIDENTIAL DEVELOPMENT FEE — the fee authorized to be imposed pursuant to sections 32 through 38 of P.L. 2008, c. 46 (C. 40:55D-8.1 through C. 40:55D-8.7).

xiv. OWNER-OCCUPIED — a property in which the owner resides and identifies same as his or her principal residence. If the owner of the property is an entity other than an individual or individuals, then at least one principal or member of the owner entity must reside in one of the units within the dwelling and identify same as his or her principal residence.

xv. RESIDENTIAL DEVELOPMENT FEE — money paid by a developer for the improvement of property as permitted in N.J.A.C. 5:97-8.3.

xvi. VERY LOW INCOME HOUSING — housing affordable according to federal Department of Housing and Urban Development or other recognized standards for home ownership and rental costs and occupied or reserved for occupancy by households with a gross household income equal to 30% or less of the median gross household income for households of the same size within the housing region in which the housing is located.

4. Residential Development fees.

a. Imposed fees

i. Developers, except for developers of the types of development specifically exempted below, who obtain preliminary or final major site plan approval or minor site plan approval between July 31, 2023, and June 30, 2024, shall pay a fee of one-half percent (0.5%) of the equalized assessed value of the land and/or improvements for all applicable residential development.

ii. Developers, except for developers of the types of development specifically exempted below, who obtain final and unappealable site plan approval between July 1, 2024, and June 30, 2025, shall pay a fee of one percent (1.0%) of the equalized assessed value of the land and/or improvements for all applicable residential development.

iii. Beginning July 1, 2025, Developers, except for Developers of the types of development specifically exempted below, shall pay a fee of one and one-half percent (1.5%) of the equalized assessed value of the land and/or improvements for all applicable residential development.

iv. Residential development fees shall be imposed and collected when:

1. New construction takes place in an area zoned for residential or Mixed-use development.

2. An existing structure is demolished and replaced. The development fee shall be calculated on the increase in the equalized assessed value of the improved structure.

3. An existing structure undergoes a change to a more intense use, which requires the issuance of a Certificate of Occupancy (for example, when a single-family home is converted to a two-family home or a single-family home is converted to an apartment building). The development fee shall be calculated on the increase in the equalized assessed value of the improved structure.

4. A Certificate of Occupancy is issued for one or more new residential units on a newly created lot that is the result of a subdivision. The development fee shall be calculated on the equalized assessed value of the land and improvements.

b. Eligible exactions, ineligible exactions and exemptions for residential development:

i. Developments that have received preliminary or final major site plan approval or minor site plan approval prior to the adoption of a municipal development fee ordinance shall be exempt from development fees, unless the developer seeks a substantial change in the approval, exclusive of minor application changes not requiring a new Application for Development pursuant to § 345-25 of the Jersey City municipal code. Where a site plan approval does not apply, a zoning and/or building permit shall be synonymous with preliminary or final site plan approval for this purpose. The fee percentage shall be vested on the date that the building permit is issued.

ii. Owner-occupied residential structures demolished and replaced as a result of a fire other than arson caused by the owner, flood, or natural disaster shall be exempt from residential development fees.

iii. Affordable housing developments where the developer is providing for the construction of affordable housing units either on site or elsewhere in the municipality, and developments where the developer has made a payment in lieu of on-site construction of affordable housing units shall be exempt from residential development fees.

iv. Developments undertaken by the Jersey City Housing Authority or a non-profit corporation for the purpose of developing, through new construction or substantial rehabilitation, residential property in which the percentage of the total residential units in the development that are for very -low-, low-, and/or moderate-income households meets the requirements of an applicable local inclusionary zoning ordinance, affordable housing overlay, or redevelopment area plan shall be exempt from residential development fees.

v. Additions to existing homes with a gross floor area of 5,000 square feet or less and improvements such as decks, patios, and like shall be exempt from the payment of a residential development fee.

vi. Accessory dwelling units shall be exempt from the payment of a residential development fee.

vii. Owner-occupied residential structures containing four or fewer units shall be exempt from residential development fees, provided that the owner uses the residential structure as a primary residence for a period of at least five years from the start of the exemption. A document recording the exemption shall be filed with the Hudson County Register's Office. If

an Owner claiming this exemption sells or voluntarily vacates the property before the expiry of the five-year residency requirement, the Owner shall be required to repay all development fees that would have been applicable under this Chapter.

5. Non-residential Development fees.

a. Imposed fees.

i. Within all zoning districts, non-residential developers, except for developers of the types of development specifically exempted, shall pay a fee equal to 2.5% of the equalized assessed value of the land and improvements, for all new non- residential construction on an unimproved lot or lots.

ii. Non-residential developers, except for developers of the types of development specifically exempted, shall also pay a fee equal to 2.5% of the increase in equalized assessed value resulting from any additions to existing structures to be used for non-residential purposes.

iii. Development fees shall be imposed and collected when an existing structure is demolished and replaced. The development fee of 2.5% shall be calculated on the difference between the equalized assessed value of the pre-existing land and improvement and the equalized assessed value of the newly improved structure, i.e. land and improvement, at the time the final certificate of occupancy is issued. If the calculation required under this section results in a negative number, the non-residential development fee shall be zero.

b. Eligible exactions, ineligible exactions and exemptions for non-residential development.

i. The non-residential portion of a mixed-use inclusionary or market rate development shall be subject to the 2.5% development fee, unless otherwise exempted below.

ii. The 2.5% fee shall not apply to an increase in equalized assessed value resulting from alterations, change in use within existing footprint, reconstruction, renovations and repairs.

iii. Non-residential developments shall be exempt from the payment of non-residential development fees in accordance with the exemptions required pursuant to P.L. 2008, c. 46, as specified in the Form N-RDF "State of New Jersey Non-Residential Development Certification/ Exemption" Form. Any exemption claimed by a developer shall be substantiated by that developer.

iv. A developer of a non-residential development exempted from the non-residential development fee pursuant to P.L. 2008, c. 46 shall be subject to it at such time the basis for the exemption no longer applies, and shall make the payment of the non-residential development fee, in that event, within three years after that event or after the issuance of the final certificate of occupancy of the non-residential development, whichever is later.

v. If a property which was exempted from the collection of a non-residential development fee thereafter ceases to be exempt from property taxation, the owner of the property shall remit

the fees required pursuant to this section within 45 days of the termination of the property tax exemption. Unpaid non-residential development fees under these circumstances may be enforceable by Jersey City as a lien against the real property of the owner.

6. Collection procedures.

a. For non-residential developments only, the developer shall also be provided with a copy of Form N-RDF "State of New Jersey Non-Residential Development Certification/Exemption" to be completed as per the instructions provided. The developer of a non-residential development shall complete Form N-RDF as per the instructions provided. The construction official shall verify the information submitted by the non-residential developer as per the instructions provided in the Form N-RDF. The Tax assessor shall verify exemptions and prepare estimated and final assessments as per the instructions provided in Form N-RDF.

b. The construction code official responsible for the issuance of a building permit shall notify the municipal tax assessor of the issuance of the first building permit for a development which is subject to a development fee.

c. Within 90 days of receipt of that notice, the municipal tax assessor, based on the plans filed, shall provide an estimate of the equalized assessed value of the development.

d. The construction code official responsible for the issuance of a final certificate of occupancy notifies the municipal tax assessor of any and all requests for the scheduling of a final inspection on property which is subject to a development fee.

e. Within ten business days of a request for the scheduling of a final inspection, the municipal tax assessor shall confirm or modify the previously estimated equalized assessed value of the improvements of the development; calculate the development fee; and thereafter notify the developer of the amount of the fee.

f. Should Jersey City fail to determine or notify the developer of the amount of the development fee within ten business days of the request for final inspection, the developer may estimate the amount due and pay that estimated amount consistent with the dispute process set forth in subsection b. of section 37 of P.L. 2008, c. 46 (C. 40:55D-8.6).

g. Fifty percent of the development fee shall be collected at the time of issuance of the building permit. The remaining portion shall be collected at the issuance of the certificate of occupancy. The developer shall be responsible for paying the difference between the fee calculated at building permit and that determined at issuance of certificate of occupancy.

h. Appeal of development fees.

i. A developer may challenge residential development fees imposed by filing a challenge with the County Board of Taxation. Pending a review and determination by the Board, collected fees shall be placed in an interest bearing escrow account by Jersey City. Appeals from a determination of the Board may be made to the tax court in accordance with the provisions of the

State Tax Uniform Procedure Law, R.S.54:48-1 et seq., within 90 days after the date of such determination. Interest earned on amounts escrowed shall be credited to the prevailing party

ii. A developer may challenge non-residential development fees imposed by filing a challenge with the Director of the Division of Taxation. Pending a review and determination by the Director, which shall be made within 45 days of receipt of the challenge, collected fees shall be placed in an interest bearing escrow account by Jersey City. Appeals from a determination of the Director may be made to the tax court in accordance with the provisions of the State Tax Uniform Procedure Law, R.S.54:48-1 et seq., within 90 days after the date of such determination. Interest earned on amounts escrowed shall be credited to the prevailing party.

7. Affordable Housing Trust Fund.

a. There is hereby created a separate, interest-bearing housing trust fund to be maintained by the Chief Financial Officer for the purposes of depositing development fees collected from residential and non-residential developers pursuant to this chapter.

b. Note that this chapter does not apply to funds collected pursuant to the NJ Local Housing and Redevelopment Law (LHRL) or pursuant to Chapter 304, Article VI of the Jersey City Municipal Code.

c. All interest accrued in the Affordable Housing Trust Fund shall only be used on eligible affordable housing activities approved by the COAH and/or the Court.

8. Use of Funds.

a. The expenditure of all funds shall conform to a spending plan approved by the COAH and/or the Court. Funds deposited in the housing trust fund may be used for any activity approved by the COAH and/or the Court to address the need for Affordable Housing in Jersey City and may be set up as a grant or revolving loan program. Such activities include, but are not limited to: preservation or purchase of housing for the purpose of maintaining or implementing affordability controls, rehabilitation, new construction of affordable housing units and related costs, accessory apartment, market to affordable, or regional housing partnership programs, conversion of existing non- residential buildings to create new affordable units, green building strategies designed to be cost saving and in accordance with accepted national or state standards, purchase of land for affordable housing, improvement of land to be used for affordable housing, extensions or improvements of roads and infrastructure to affordable housing sites, financial assistance designed to increase affordability, administration of which shall include a tenant right to counsel program, or any other activity as permitted pursuant to N.J.A.C. 5:97-8.7 through 8.9 and specified in the approved spending plan.

b. Funds shall not be expended to reimburse Jersey City for past housing activities.

c. At least 30 percent of all development fees collected and interest earned shall be used to provide affordability assistance to low- and moderate-income households. One-third of the affordability assistance portion of development fees collected shall be used to provide affordability assistance to those households earning 30 percent or less of median income by region.

i. Affordability assistance programs may include down payment assistance, security deposit assistance, low interest loans, rental assistance, assistance with homeowners association or condominium fees and special assessments, and assistance with emergency repairs.

ii. Affordability assistance to households earning 30 percent or less of area median income may include buying down the cost of low or moderate income units to make them affordable to households earning 30 percent or less of median income.

iii. Payments in lieu of constructing affordable units on site and funds from the sale of units with extinguished controls shall be exempt from the affordability assistance requirement.

d. Jersey City may contract with a private or public entity to administer this ordinance and satisfy the need to create and/or preserve affordable housing in Jersey City.

e. No more than 20 percent of all revenues collected from development fees, may be expended on administration, including, but not limited to, salaries and benefits for municipal employees or consultant fees. Administrative funds may be used for income qualification of households, monitoring the turnover of sale and rental units, and compliance with COAH's or the Court's monitoring requirements. In addition to the aforementioned allowable administrative expenses, a tenant right to counsel program shall be a necessary administrative expenditure as part of the implementation of this chapter. No funds generated from this Chapter shall be used to provide legal services as part of a tenant right to counsel program for tenants whose income, after taxes, is greater than 80 percent of the current area median income established annually by the United States Department of Housing and Urban Development. Legal or other fees related to litigation opposing affordable housing sites or objecting to the Council's regulations and/or action are not eligible uses of the affordable housing trust fund.

9. Monitoring.

a. Jersey City shall complete and return to COAH and/or the Court all monitoring forms included in monitoring requirements related to the collection of development fees from residential and non- residential developers, payments in lieu of constructing affordable units on site, funds from the sale of units with extinguished controls, barrier free escrow funds, rental income, repayments from affordable housing program loans, and any other funds collected in connection with Jersey City's housing program, as well as to the expenditure of revenues and implementation of the plan certified by COAH or approved by the Court. All monitoring reports shall be completed on forms designed by COAH and/or the Court.

b. In the event of a failure by the City of Jersey City to comply with trust fund monitoring requirements or to submit accurate monitoring reports, or a failure to implement the approved spending plan, or a failure to expend funds within the applicable time period as set forth in N.J.S.A. 52:27D-329.2(d), or for other good cause demonstrating unapproved use(s) of funds, a motion may be brought before the Superior Court. The Court may, after considering the evidence and providing the City a reasonable opportunity to respond and/or remedy the non-compliant conditions, impose such remedies as may be reasonable and appropriate to the circumstances, including but not limited to authorizing the State of New Jersey, Department of Community Affairs, Division of Local Government Services, to direct the manner in which the funds shall be expended.

10. Ongoing Collection of Fees.

a. The ability for Jersey City to impose, collect and expend development fees shall expire at the end of the Development Fee Period. If Jersey City fails to renew its ability to impose and collect

development fees prior to the expiration of the Development Fee Period, it may be subject to forfeiture of any or all funds remaining within its municipal trust fund. Any funds so forfeited shall be deposited into the "New Jersey Affordable Housing Trust Fund" established pursuant to section 20 of P.L. 1985, c. 222 (C. 52:27D-320). Jersey City shall not impose a residential development fee on a development that receives preliminary or final site plan approval after the expiration of its substantive certification or judgment of compliance, nor shall Jersey City retroactively impose a development fee on such a development. Unless extended, Jersey City shall not expend development fees after the expiration of its Development Fee Period.

§ 160-3. Public safety. [Added 6-12-2024 by Ord. No. 24-039; amended 3-26-2025 by Ord. No. 25-027]

1. Use of de-escalation center located at 15 East Linden Ave.

   a. Use of the firearms training range & classroom (full day): $500.00 per session.

   b. Use of the firearms training range & classroom (half day): $250.00 per session.

   c. Use of the firearms training range & classroom (hourly): $50.00.

   d. Use of classroom space only (full day): $200.00.

   e. Use of classroom space only (half day): $125.00.

   f. Use of training simulator with operator (full day): $250.00.

   g. Use of training simulator with operator (half day): $150.00.

   h. Use of tactical training room (full day): $250.00.

   i. Use of tactical training room (half day): $150.00.

   j. Training costs.

      1. Half day instruction (4 hours): $90.00 per student.

      2. Full day instruction (8 hours): $150.00 per student.

      3. Instructor: $34.00 per group of up to five students.

Chapter 163

FIREARMS AND WEAPONS

ARTICLE I

Discharge of Firearms

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Toy Guns and Box Cutters

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§ 163-4. Council findings.

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Reporting of Lost or Stolen Firearms

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Prohibiting the Sale or Purchase of More Than One Handgun Within a Thirty (30)-Day Period

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§ 163-17. Prohibition of sale or purchase.

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Article VI.

Firearm Storage

§ 163-19. Storage of firearms.

§ 163-20. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City: Art. I, 1-7-1975 by Ord. No. J-496 as Secs. 16-43 and 16-44 of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; Art. II, 6-11-1987 as Ord. No. C-468; amended in its entirety 4-24-1996 by Ord. No. 96-034. Subsequent amendments noted where applicable.]

Cross reference—Peace and good order, Ch. 242.

ARTICLE I

Discharge of Firearms

[Adopted 1-7-1975 by Ord. No. J-496 as Secs. 16-43 and 16-44 of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 163-1. Discharge restricted.

The discharge of a firearm of any description, carelessly or without due caution and circumspection in a manner so as to endanger or be likely to endanger a person or property, is prohibited; provided that this section shall not be construed to apply to any officer of the law discharging a firearm in the performance of his duty.

§ 163-2. Violations and penalties. [Amended 6-14-1995 by Ord. No. 95-050]

Any person violating any of the provisions of this Article shall, upon conviction, be punished as provided in Chapter 1, General Provisions, § 1-25.

ARTICLE II

Toy Guns and Box Cutters

[Adopted 6-11-1987 as Ord. No. C-468; amended in its entirety 4-24-1996 by Ord. No. 96-034]

§ 163-3. Sale, distribution and use restricted.

A. It shall be unlawful for any person to sell, expose for sale, distribute, possess or use toy guns in the City of Jersey City.

B. "Toy gun" means any toy facsimile of an actual firearm that can reasonably be perceived to be an actual firearm. **[Amended 4-14-2010 by Ord. No. 10-049]**

§ 163-4. Council findings. [Amended 9-11-2013 by Ord. No. 13-081]

It has come to the attention of the Council that persons under the age of eighteen (18) have been purchasing devices sold as "box cutters" to carry on their person for purposes unrelated to their intended use. According to reports from the Department of Public Safety, Board of Education and the media, the purchase of box cutters by juveniles is increasing, and box cutters have been found in the possession of both students and others within Jersey City schools. Since these devices have blades which can be withdrawn into a handle or sheath, they can be concealed on one's person and used as weapons in fights and while committing crimes. It has been reported to the Council by school officials and through the media that persons under the age of eighteen (18) have used these devices to inflict serious injuries upon other youths and adults. From available reports, the sale and distribution of box cutters appears to have contributed to, and even aggravated, violent crimes by juveniles. The Council is of the opinion that it should use its municipal police powers to limit the sale and distribution of a device, the misuse of which aggravates criminal acts and causes severe injury to the victims of juvenile violence. Although the Council recognizes that these devices can be acquired outside the City of Jersey City, it believes nevertheless that it should not be made easy to acquire them within the city and that persons selling these devices should be required to assume the responsibility for their distribution to persons under the age of eighteen (18) who may use them for illegal acts.

§ 163-5. Sale of box cutters to minors prohibited; definitions of terms.

"Box cutter" means any knife or similar device designed to cut cardboard, fiberboard and similar materials, having a razor-like blade which can be released from a handle or sheath by the application of hand pressure upon a button, slide or other device attached to the handle, sheath or blade.

§ 163-6. Sale and distribution to minors.

It shall be unlawful for any person to sell any box cutter or similar device to a person under eighteen (18) years of age; except that the establishment by a preponderance of the evidence of all of the following facts by a person making the sale shall constitute an affirmative defense to any prosecution for violating this Article:

A. The purchaser falsely represented his or her age by producing a driver's license bearing a photograph of the licensee, or by producing a photographic identification card issued pursuant to § 1 of L. 1968, c. 313* or by producing a similar card purporting to be a valid identification card indicating that he or she was eighteen (18) years of age or older;

*** Editor's Note: See N.J.S.A. 33:1-81.2.**

(1) Every person engaged in the business of selling box cutters shall maintain the box cutters in a secure area, either behind a counter or in a locked display case or other location where such box cutters are not accessible to the public. No box cutters shall be displayed on any open counter or any aisle or other area which is accessible to the general public entering a place of business.

B. The appearance of the purchaser was such that an ordinary prudent person would believe him or her to be eighteen (18) years of age or older; and

C. The sale was made in good faith relying upon the indicators of age listed in Subsections A and B above.

§ 163-7. Violations and penalties.

Any person, firm or corporation who shall violate any of the provisions of this Article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25; except that the minimum penalty for any violation shall be a fine of one hundred dollars ($100.).

ARTICLE III

Reporting of Lost or Stolen Firearms

[Adopted 6-14-2006 as Ord. No. 06-073]

§ 163-8. Definitions.

For the purposes of this Article the following terms shall have the following meanings:

A. Pursuant to N.J. Stat. § 2C:39-l(f), "Firearm" shall mean any handgun, rifle, shotgun, machine gun, automatic or semi-automatic rifle, or any gun, device or instrument in the nature of a weapon from which may be fired or ejected any solid projectable ball, slug, pellet, missile or bullet, or any gas, vapor or other noxious thing, by means of a cartridge or shell or by the action of an explosive or the igniting of flammable or explosive substances. It shall also include, without limitation, any firearm which is in the nature of an air gun, spring gun or pistol or other weapon of a similar

nature in which the propelling force is a spring, elastic band, carbon dioxide, compressed or other gas or vapor, air or compressed air, or is ignited by compressed air, and ejecting a bullet or missile smaller than three-eighths of an inch in diameter, with sufficient force to injure a person.

§ 163-9. Reporting lost firearms. [Amended 9-11-2013 by Ord. No. 13-081]

A. Any person who loses a firearm must report to the Department of Public Safety within forty-eight (48) hours, after recognizing that the gun is missing.

B. Failure to report a lost firearm shall result in a penalty of up to ten thousand dollars ($10,000).

C. A person reporting a lost firearm must provide all of the following information to the Department of Public Safety:

(1) Name and address of the lawful owner, (2) kind of firearm, (3) serial number, (4) model, (5) caliber, (6) manufacturer of the firearm, (7) date and place of theft or loss, and (8) complete statement of facts and circumstances surrounding such theft or loss.

D. Failure to correctly report any information of § 163-9(B) shall result in a penalty of up to one thousand dollars ($1,000).

§ 163-10. Reporting stolen firearms. [Amended 9-11-2013 by Ord. No. 13-081]

A. Any person whose firearm is stolen must report to the Department of Public Safety within forty-eight (48) hours, after recognizing that the gun is missing.

B. Failure to report a stolen firearm shall result in a penalty of up to ten thousand dollars ($10,000).

C. A person reporting stolen firearm must provide all of the following information to the Department of Public Safety:

(1) Name and address of the lawful owner, (2) kind of firearm, (3) serial number, (4) model, (5) caliber, (6) manufacturer of the firearm, (7) date and place of theft or loss, and (8) complete statement of facts and circumstances surrounding such theft or loss.

D. Failure to correctly report any information of § 163-10(B) shall result in a penalty of up to one thousand dollars ($1,000).

§ 163-11. City's obligation.

In undertaking enforcement of this Chapter, the City is assuming an undertaking only to promote the general welfare and safety. It is not assuming, nor it is imposing on its officers and employees, an obligation for breach of which it is liable in money damages to any person who claims that such breach proximately caused injury.

§ 163-12. Severability.

If any part of this Chapter, or the application thereof to any person or circumstances, is held invalid, the remainder of this Chapter, including the application of such part of provision to other persons or circumstances, shall not be affected thereby and shall continue in full force and effect. To this end,, provisions of this Chapter are severable.

ARTICLE V

Prohibiting the Sale or Purchase of More Than One Handgun Within a Thirty (30)-Day Period
[Adopted 6-28-2006 as Ord. No. 06-082; amended in its entirety 10-11-2006 by Ord. No. 06-116]

§ 163-16. Definitions.

For the purposes of this Article the following terms shall have the following meanings:

A. Pursuant to N.J.S.A. § 2C:39-1(k), "Handgun" shall mean any pistol, revolver or other firearm originally designed or manufactured to be fired by the use of a single hand.

§ 163-17. Prohibition of sale or purchase.

A. The term "dealer" shall mean a retail firearms dealer licensed by the State of New Jersey or by the United States Government.

B. No dealer located within the City of Jersey City shall sell any handgun to any person who has purchased or made application to purchase any other handgun within the City of Jersey City within a thirty (30) day period prior thereto.

C. The dealer shall require the purchaser, at the time of application to certify on a form prescribed by the Chief of Police, that he or she has not purchased or made an application to purchase a handgun within the last thirty (30) days, and which, if any, of the exemptions set forth in Subsection (D) of this section is applicable to the purchaser.

D. Purchases and applications under this section shall be exempt if made solely by and for:

1. Any agent or employee of a law enforcement agency duly authorized to purchase a handgun by that law enforcement agency.

2. Any agent or employee of any agency, authorized to perform law enforcement duties, duly authorized by that agency to purchase a handgun.

3. Any agent or employee of a federal, state or local correctional facility duly authorized to purchase a handgun by that federal, state or local correctional facility.

E. No resident of the City of Jersey City, except for those residents specifically exempted by this ordinance, may purchase or make application to purchase more than one handgun in any thirty (30) day period.

F. Any person, firm or corporation who shall violate any of the provisions of this Article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25; except that the minimum penalty for any violation shall be a fine of five hundred dollars ($500.).

§ 163-18. Severability.

If any part of this Chapter, or the application thereof to any person or circumstances, is held invalid, the remainder of this Chapter, including the application of such part of provision to other persons or circumstances, shall not be affected thereby and shall continue in full force and effect. To this end, provisions of this Chapter are severable.

Article VI.

FIREARM STORAGE

§ 163-19. Storage of firearms. [Added 8-20-2025 by Ord. No. 25-082]

A. The owner and authorized user of a firearm shall, at all times that the firearm is not carried by or under the control of the owner or authorized user, secure the firearms as follows:

1. In a securely locked box, container, safe, cabinet or other suitable place in order to render such firearm inaccessible by any person other than the owner or other lawfully authorized user; or

2. Secured with a trigger lock, tamper resistant mechanical lock or other safety device, properly engaged in order to render such firearm inoperable by any person other than the owner or other lawfully authorized user.

B. Nothing in this article shall be construed to prevent a legal owner from being authorized, pursuant to subsection e. of N.J.S.A. § 2C:39-6, to lawfully keep or carry about the owner's place of business, residence, premises, or other land owned or possessed by the owner, any firearm, or from carrying the firearm, in the manner specified in subsection g. of N.J.S.A. § 2C:39-6.

C. Nothing in this article shall be construed to conflict, alter or impact the requirements and provisions of N.J.S.A. § 2C:58-15.

§ 163-20. Violations and penalties. [Added 8-20-2025 by Ord. No. 25-082]

Any person violating the requirements set forth in this article shall, upon conviction, be punishable as provided in chapter 1, General Provisions § 1-25.

Chapter 166

FIRE LANES

§ 166-1. Definitions.
§ 166-2. General regulations.
§ 166-3. Delineation of fire zones.
§ 166-4. Enforcement.
§ 166-5. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 12-22-1993 as Ord. No. 93-144; amended in its entirety 2-9-1994 by Ord. No. 94-005. Subsequent amendments noted where applicable.]

GENERAL REFERENCES

Parking lots and public garages — See Ch. 236.
Towers and towing — See Ch. 319.
Vehicles and traffic — See Ch. 332.

§ 166-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

FIRE LANE/ZONE - The areas designated by the Fire Official and properly posted and marked in accordance with this chapter. The terms "fire zone" and "fire lane" shall be interchangeable.

FIRE OFFICIAL - The City of Jersey City Fire Official or the designated representative, as defined in N.J.A.C. 5:18,1.1 et seq., the New Jersey State Uniform Fire Code.

§ 166-2. General regulations.

A. Designation. The Fire Official, with the approval of the Director of Public Safety and the Chief of Police, may designate fire lanes on private property to which the public is invited or which is devoted to public use, if such designation is necessary to provide safety for the public or to provide proper access for Department of Public Safety operations in an emergency; **[Amended 9-11-2013 by Ord. No. 13-081]**

B. Notification. Whenever a proposed fire lane has been designated, the Fire Official shall notify the owner of the property in writing by registered or certified mail, or by hand delivering notice, describing the area to be designated and the reason for the designation;

C. Marking of fire lanes. Marking of fire lanes shall be done by the owner at the owner's expense and shall be accomplished within thirty (30) days after receiving the notification. Upon completion of the marking, the Fire Official shall file a description of the fire lane with the City Clerk in accordance with § 3-29 of Chapter 3, Administration of Government.

D. Obstructions. It shall be unlawful for any person to park or leave standing any vehicle or place any obstruction on lands, whether publicly or privately owned, after notice has been posted as hereinafter provided prohibiting such parking.

§ 166-3. Delineation of fire zones.

All fire lanes and zones located shall be striped and signs posted in the following manner:

A. Signs.

(1) Signs shall be twelve (12) inches wide by eighteen (18) inches long with a minimum of two-inch-high lettering.

(2) Light reflective material shall be used for the sign background, which shall be white.

(3) Lettering shall be red on the white background.

(4) Signs, whether wall- or post-mounted, shall be placed at the beginning and end of the lane and at such intervals as required by the Fire Official, but not more than one hundred (100) feet center to center.

(5) Whenever a fire lane changes angle or direction more than sixty degrees (60°), a sign shall be visible from another side; additional signs may be required at the discretion of the Fire Official, the Municipal Fire Subcode Official or the Department of Public Safety. **[Amended 9-11-2013 by Ord. No. 13-081]**

(6) Signs shall be placed at a height of seven (7) feet as measured from the ground surface to the bottom of the sign at a forty-five-degree angle (right angle) facing the direction of the traffic flow. If traffic flows in two (2) directions, signs shall be placed parallel to the traffic flow. Signs may be placed upon existing supports.

(7) The fire lane and zone sign shall state: "No Parking Fire Lane/Zone."

(8) A single-headed arrow shall point in the direction in which the regulation is in effect if the sign is at the end of a lane; or a double-headed arrow pointing both ways if the sign is at an intermediate point in a lane.

B. Striping.

(1) Paint for striping and lettering shall be yellow.

(2) Fire lanes shall be identified by painting the curb yellow and be striped a minimum of eighteen (18) feet wide, if feasible; the lane shall be striped to a minimum of twelve (12) feet or as designated by the Fire Official.

(3) Each yellow diagonal stripe shall be four (4) inches wide, five (5) feet apart throughout the area and around the perimeter of the lane.

(4) The legend "No Parking Fire Lane/Zone" shall be placed within the striped outer boundary lines of the lane/zone at a minimum of one-hundred-foot intervals, if so designated by the Fire Official, to further identify the area designated.

(5) The lettering of the legend, if required, shall be eighteen (18) inches high and placed within the center of the fire lane/zone.

§ 166-4. Enforcement. [Amended 9-11-2013 by Ord. No. 13-081]

The Fire Official and the Department of Public Safety, in addition to other officers authorized by law to issue parking/traffic summonses, shall have concurrent jurisdiction to enforce the provisions of this code.

§ 166-5. Violations and penalties.

Any person who violates this chapter shall, upon conviction in Municipal Court, be punished by a fine of not less than one hundred dollars ($100). Each violation shall constitute a separate offense.

Chapter 172

FLOOD DAMAGE PREVENTION

§ 172-1.0.	Statutory authorization, findings of fact, purpose and objectives.
§ 172-1.1.	Statutory authorization.
§ 172-1.2.	Findings of fact.
§ 172-1.3.	Statement of purpose.
§ 172-1.4.	Methods of reducing flood losses.
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§ 172-3.0.	General provisions.
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§ 172-3.2.	Basis for establishing areas of special flood hazard.
§ 172-3.3.	Violations and penalties.
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§ 172-3.6.	Warning; disclaimer of liability.
§ 172-4.	Administration.
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§ 172-4.2.	Local administrator designated.
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§ 172-4.4.	Establishment of fees.
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§ 172-4.4-2.	Construction Board of Appeals; variances.
§ 172-4.4-3.	Conditions for variances.
§ 172-5.	Provisions for flood hazard reduction.
§ 172-5.1.	General standards.
§ 172-5.2.	Specific standards.

[HISTORY: Adopted by the Council of the City of Jersey City 2-23-1984 as Ord. No. MC-575; Amended 7-19-2006 by Ord. No. 06-083; Amendments noted where applicable.]

GENERAL REFERENCES

Certificates of occupancy — See Ch. 119.
Uniform construction codes — See Ch. 131.
Multiple dwellings — See Ch. 218.
Subdivision of land — See Ch. 299.
Waterfront — See Ch. 340.
Zoning — See Ch. 345.

§ 172-1.0. Statutory authorization, findings of fact, purpose and objectives. [Amended 7-19-06 by Ord. No. 06-083]

§ 172-1.1. Statutory authorization. [Amended 7-19-06 by Ord. No. 06-083]

The Legislature of the State of New Jersey has in N.J.S.A. 40:48-1, et seq., delegated the responsibility to local governmental units to adopt regulations designed to promote public health, safety, and general welfare of its citizenry. Therefore, the Municipal Council of the City of Jersey City, of New Jersey does ordain as follows:

§ 172-1.2. Findings of fact. [Amended 7-19-06 by Ord. No. 06-083]

(1) The flood hazard areas of [municipality] are subject to periodic inundation which results in loss of life and property, health and safety hazards, disruption or commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety, and general welfare.

(2) These flood losses are caused by the cumulative effect of obstructions in areas of special flood hazard which increase flood heights and velocities, and when inadequately anchored, causes damage in other areas. Uses that are inadequately flood proofed, elevated otherwise protected from flood damage also contribute to the flood loss.

§ 172-1.3. Statement of purpose. [Amended 7-19-06 by Ord. No. 06-083]

It is the purpose of this ordinance to promote the public health, safety, and general welfare, and to minimize public and private losses due to flood conditions in specific areas by provisions designed:

(1) To protect human life and health;

(2) To minimize expenditure of public money for costly flood control projects;

(3) To minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;

(4) To minimize prolonged business interruptions;

(5) To minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer line, streets, bridges located in areas of special flood hazard;

(6) To help maintain a stable tax base by providing for the second use and development of areas of special flood hazard so as to minimize future flood blight areas;

(7) To insure that potential buyers are notified that property is in an area of special flood hazard; and

(8) To ensure that those who occupy the areas of special flood hazard assume responsibility for their action.

§ 172-1.4. Methods of reducing flood losses. [Amended 7-19-06 by Ord. No. 06-083]

In order to accomplish its purposes, this ordinance includes methods and provisions for:

(1) Restricting or prohibiting uses which are dangerous to health, safety, and property due to water or erosion hazards, or which result in damaging increases in erosion or in flood heights or velocities;

(2) Requiring that uses vulnerable to floods including facilities which serve such uses be protected against flood damage at the time of initial construction;

(3) Controlling the alteration of natural flood plains, stream channels, and natural protective barriers, which help accommodate or channel flood waters;

(4) Controlling filling, grading, dredging, and other development which may increase flood damage; and

(5) Preventing or regulating the construction of flood barriers which will unnaturally divert flood waters or which may increase flood hazards in other areas.

§ 172-2.0. Definitions and word usage. [Amended 3-12-1987 by Ord. No. C-427; 7-19-06 by Ord. No. 06-083]

A. Unless specifically defined below, words or phrases used in this chapter shall be interpreted so as to give them the meanings they have in common usage and to give this chapter its most reasonable application.

B. As used in this chapter, the following terms shall have the meanings indicated:

APPEAL — A request for a review of the Construction Official's interpretation of any provision of this chapter or a request for a variance.

SHALLOW FLOODING — A designated AO or AH Zone on the Flood Insurance Rate Map (FIRM) with a one percent or greater chance of flooding to an avenge depth of one to three feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and where velocity flow may be evident Such flooding is characterized by ponding or sheet flow.

AREA OF SPECIAL FLOOD HAZARD — The land in the floodplain within a community subject to a one-percent or greater chance of flooding in any given year.

BASE FLOOD — The flood having a one-percent chance of being equaled or exceeded in any given year.

BASEMENT — Any area of the building having its floor sub-grade (below ground level) on all sides.

BREAKAWAY WALL — A wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces without causing damage to the elevated portion of the building or supporting foundation system.

CHIEF ENGINEER — Licensed professional engineer who is the City's Director of Engineering.

DEVELOPMENT— Any man-made change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations, or storage of equipment or materials located within an area of special flood hazard.

ELEVATED BUILDING— A non-basement building built, in the case of a building in an Area of Special Flood Hazard, to have the top of the elevated floor elevated above the ground level by means of piling, columns (posts and piers) or shear walls parallel to the flow of the water and adequately anchored so as not to impair the structural integrity of the building during a flood of up to the magnitude of the base flood. In an area of special flood hazard, "elevated building" also includes a building elevated by means of fill or solid foundation perimeter walls with openings sufficient to facilitate the unimpeded movement of floodwaters.

FLOOD or FLOODING — A general and temporary condition of partial or complete inundation of normally dry land areas from:

(1) The overflow of inland or tidal waters; and/or

(2) The unusual and rapid accumulation of runoff of surface waters from any source;

FLOOD INSURANCE RATE MAP (FIRM) — The official map on which the Federal Insurance Administration has delineated both the areas of special flood hazards and the risk premium zones applicable to the community.

FLOOD INSURANCE STUDY (FIS) — The official report provided in which the Federal Insurance Administration has provided flood profiles, as well as the Flood Insurance Rate Maps and the wafer surface elevation of the base flood.

FLOOD PLAIN MANAGEMENT REGULATIONS — Zoning ordinances, subdivison regulations, building codes, health regulations, special purpose ordinances (such as a flood plain ordinance, grading ordinance, erosion control ordinance) and other applications of police power. The term describes such State or local regulations, in any combination thereof, which provide standards for the purpose of flood damage prevention and reduction.

HIGHEST ADJACENT GRADE — The highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

HISTORIC STRUCTURE — Any structure that is:

(1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior), or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district, or one preliminarily determined by the Secretary to qualify as a registered historic district;

(3) Individually listed on a State inventory of historic places in States with historic preservation programs which have been approved by the Secretary of the Interior; or

(4) Individually listed on the local inventory of historic places in communities with historic preservation programs that have been certified either:

(a) By an approved State program as determined by the Secretary of the Interior; or

(b) Directly by the Secretary of the Interior in States without approved programs.

LOWEST FLOOR — The lowest floor of the lowest enclosed area (including basement). An unfinished or flood-resistant enclosure usable solely for the parking of vehicles, building access or storage in an area other than a basement is not considered a building's "lowest floor," provided that such enclosure is not built so as to render the structure in violation of other applicable non-elevation design requirements.

MANUFACTURED HOME — A structure, transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. The term "manufactured home" does not include a "recreation vehicle."

MANUFACTURED HOME PARK or MANUFACTURED HOME SUBDIVISION — A parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

NEW CONSTRUCTION — Structures for which the start of construction commenced on or after the effective date of this chapter adopted by the community and includes any subsequent improvements to such structures.

NEW MANUFACTURED HOME PARK OR SUBDIVISION — A manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of the flood plain management regulations adopted by the municipality.

RECREATIONAL VEHICLE — A vehicle which is:

(i) Built on a single chassis;

(ii) Four hundred (400) square feet or less when measured at the longest horizontal projections;

(iii) Designed to be self-propelled or permanently towable by a light duty truck; and

(iv) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

START OF CONSTRUCTION — For other than new construction or substantial improvement under the Coastal Barrier Resources Act (P.L. 97-348), includes substantial improvement and means the date the building permit was issued, provided that the actual start of construction, repair, reconstruction, placement or other improvement was within one hundred eighty (180) days of the permit date. The "actual start" means either the first placement of permanent construction of a structure on a site such as the pouring of a slab or footings, the installation of piles, the construction of columns or any work beyond the stage of excavation, or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

STRUCTURE — A walled and roofed building, a manufactured home or a gas or liquid storage tank that is principally above ground.

SUBSTANTIAL DAMAGE — Damage of any origin sustained by a structure whereby the cost of restoring the structure to its before damaged condition would equal or exceed fifty (50) percent of the market value of the structure before the damage occurred.

SUBSTANTIAL IMPROVEMENT:

(1) Any reconstruction, rehabilitation, addition or other improvement of a structure, as per the definitions set forth in NJAC5:23-6 Rehabilitation Sub-Code. This term includes structures which have incurred "substantial damage," regardless of the actual repair work performed.

(2) For the purposes of this definition, "substantial improvement" is considered to occur when the first alteration of any wall, ceiling, floor or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure.

(3) The term does not, however, include either:

   (a) Any project for improvement of a structure to comply with existing State or local health, sanitary or safety code specifications which are the minimum necessary to assure safe living conditions; or

   (b) Any attention of a "historic structure," provided that the alteration will not preclude the structure's continued designation as a "historic structure."

VARIANCE — A grant of relief from the requirements of this chapter which permits construction in a manner that would otherwise be prohibited by this chapter.

§ 172-3.0. General provisions. [Amended 7-19-06 by Ord. No. 06-083]

§ 172-3.1. Lands to which this ordinance applies. [Amended 7-19-06 by Ord. No. 06-083]

This ordinance shall apply to all areas of special flood hazards within the jurisdiction of Jersey City, Hudson County, New Jersey.

§ 172-3.2. Basis for establishing areas of special flood hazard. [Amended 7-19-06 by Ord. No. 06-083]

The areas of special flood hazard for the City of Jersey City, community No. 340223, are identified and defined on the following documents prepared by the Federal Emergency Management Agency:

A. A scientific and engineering report "Flood Insurance Study, Hudson County, New Jersey (All Jurisdictions)" dated August 16, 2006.

B. Flood Insurance Rate Map for Hudson County. New Jersey (All Jurisdictions) as shown on Index and panel numbers 0039, 0043, 0101, 0102, 0103, 0104, 0106, 0107, 0108, 0109, 0111, 0112, 0116; whose effective date is August 16, 2006.

The above documents are hereby adopted and declared to be a part of this ordinance. The Flood Insurance Study and maps are on file at City Hall, 280 Grove Street, Jersey City, NJ 07302.

§ 172-3.3. Violations and penalties.* [Amended 7-19-06 by Ord. No. 06-083]

No structure or land shall hereafter be constructed, located, extended, converted or altered without full compliance with the terms of this chapter and other applicable regulations. Any person who violates this chapter or fails to comply with any of its requirements (including violations of conditions and safeguards established in connection with conditions) shall, upon conviction thereof, be punishable as provided in Chapter 1, General Provisions, § 1-25. Nothing herein contained shall prevent Jersey City from taking such other lawful action as is necessary to prevent or remedy any violation.

* **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. 1.**

§ 172-3.4. Abrogation; greater restrictions to apply. [Amended 7-19-06 by Ord. No. 06-083]

This chapter is not intended to repeal, abrogate or impair any existing easements, covenants or deed restrictions. However, where this chapter and another ordinance, easement, covenant or deed restriction conflict or overlap, whichever imposes the more stringent restrictions shall prevail.

§ 172-3.5. Construal of provisions. [Amended 7-19-06 by Ord. No. 06-083]

In the interpretation and application of this chapter, all provisions shall be:

A. Considered as minimum requirements;

B. Liberally construed in favor of the governing body, and

C. Deemed neither to limit nor repeal any other powers granted under State Statutes.

§ 172-3.6. Warning; disclaimer of liability. [Amended 7-19-06 by Ord. No. 06-083]

The degree of flood protection required by this chapter is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur on rare occasions. Flood heights may be increased by man-made or natural causes. This chapter does not imply that land outside the areas of special flood hazards or uses permitted within such areas will be free from flooding or flood damages. This chapter shall not create liability on the part of Jersey City, any officer or employee or any of the City's agencies or agents thereof, or the Federal Insurance Administration for any flood damages that result from reliance on this chapter or any administrative decision lawfully made thereunder.

§ 172-4. Administration. [Amended 7-19-06 by Ord. No. 06-083]

§ 172-4.1. Establishment of development permit. [Amended 7-19-06 by Ord. No. 06-083]

A. A development permit shall be obtained before construction or development begins within any area of special flood hazard. Application for a development permit shall be made on forms furnished by the City's Chief Engineer and provided to the applicant by the Construction Official and may include, but not be limited to: plans in triplicate drawn to scale showing the nature, location, dimensions and elevations of the area in question; existing or proposed structures, fill, storage of materials; drainage facilities; and the location of the foregoing.

B. Specifically, the following information is required:

(1) The elevation in relation to mean sea level of the lowest floor (including basement) of all structures.

(2) The elevation in relation to mean sea level to which any structure has been flood proofed.

(3) Certification by a registered professional engineer or architect that the flood proofing methods for any nonresidential structure meet the flood proofing criteria in Section 172-5.2B.

(4) A description of the extent to which any watercourse will be altered or relocated as a result of proposed development.

§ 172-4.2. Local administrator designated. [Amended 7-19-06 by Ord. No. 06-083]

The Construction Official is hereby appointed to administer and implement this chapter by granting or denying development permit applications in accordance with its provisions.

§ 172-4.3. Duties of Construction Official. [Amended 7-19-06 by Ord. No. 06-083]

Duties of the Construction Official shall include, but not be limited to:

A. Permit review. The Construction Official shall:

(1) Review all development permits to determine that the permit requirements of this chapter have been satisfied.

(2) Review all development permits to determine that all necessary permits have been obtained from those federal, state or local governmental agencies from which prior approval is required.

(3) Review all development permits to determine if the proposed development is located in the floodway.

(4) Refer any application for development of property determined to be within the floodway to the City's Chief Engineer for further compliance review, if deemed necessary, prior to issuance of a development permit.

B. Use of other base flood and floodway data. When base flood elevation and floodway data has not been provided in accordance with § 172-3.2, Basis for establishing areas of special flood hazard, the Construction Official shall obtain, review and reasonably utilize any base flood elevation and floodway data available from a federal, state or other source in order to administer § 172-5.2A, Specific standards, residential construction, and § 172-5.2B, Specific standards, nonresidential construction.

C. Record maintenance. The Construction Official shall:

(1) Obtain and record the actual elevation (in relation to mean sea level) of the lowest floor (including basement) of all new or substantially improved structures and whether or not the structure contains a basement.

(2) For all new substantially improved flood proofed structures:

(a) Verify and record the actual elevation (in relation to mean sea level); and

(b) Maintain the flood proofing certifications required in Section 172-4.1.

(3) Maintain for public inspection all records pertaining to the provisions of this chapter.

D. Alteration of watercourses. The Construction Official shall:

(1) Upon consultation with the Chief Engineer, shall ensure that the applicant shall notify adjacent communities and the New Jersey Department of Environmental Protection - Land Use Regulation Program and Dam Safety and Flood Control, prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Insurance Administration.

(2) Require that maintenance is provided within the altered or relocated portion of said watercourse so that the flood-carrying capacity is not diminished.

E. Interpretation of FIRM boundaries. The Construction Official shall, in consultation with the Chief Engineer, make interpretations where needed, as to the exact location of the boundaries of the areas of special flood hazards (for example, where there appears to be a conflict between a mapped boundary and actual field conditions). The person contesting the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided below.

§ 172-4.4. Establishment of fees. [Amended 7-19-06 by Ord. No. 06-083]

Reasonable fees may be established under Chapter 160 of the Municipal Code to cover the cost of administering this chapter; to cover the cost of review of applications for development pursuant to this Chapter by the Construction Official or by the City's Chief Engineer and his staff; and to cover the administrative cost of appeals and variance applications.

§ 172-4.4-1. Appeal and variance procedure. [Amended 7-19-06 by Ord. No. 06-083]

§ 172-4.4-2. Construction Board of Appeals; variances. [Amended 7-19-06 by Ord. No. 06-083]

A. The Construction Board of Appeals as established by Jersey City shall hear and decide appeals and requests for variances from the requirements of this chapter.

B. The Construction Board of Appeals shall hear and decide appeals when it is alleged there is an error in any requirement, decision or determination made by the Construction Official in the enforcement or administration of this chapter.

C. Those aggrieved by the decision of the Construction Board of Appeals, or any taxpayer, may appeal such decision to a court of competent jurisdiction.

D. In passing upon such applications, the Construction Board of Appeals shall consider all technical evaluations, all relevant factors, standards specified in other sections of this chapter; and

(1) The danger that materials may be swept onto other lands to the inquiry of others.

(2) The danger to life and property due to flooding or erosion damage.

(3) The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner.

(4) The importance of the services provided by the proposed facility to the community.

(5) The necessity to the facility of a waterfront location, where applicable.

(6) The availability of alternative locations for the proposed use which are not subject to flooding or erosion damage.

(7) The compatibility of the proposed use with existing and anticipated development.

(8) The relationship of the proposed use to the comprehensive plan and floodplain management program of that area.

(9) The safety of access to the property in times of flood for ordinary and emergency vehicles.

(10) The expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site.

(11) The costs of providing governmental services during and after flood conditions, including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, and water systems and streets and bridges.

E. Upon consideration of the above-listed factors, the Construction Board of Appeals may attach such conditions to the granting of variances as it deems necessary to further the purposes of this chapter.

F. The Construction Official shall maintain the records of all appeal actions, including technical information, and report any variances to the Federal Insurance Administration upon request

§ 172-4.4-3. Conditions for variances. [Amended 7-19-06 by Ord. No. 06-083]

A. Generally, variances may be issued for new construction and substantial improvements to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, providing items 1—11 in Section 172-4.4-2 have been fully considered. As the lot size increases beyond the one-half acre, the technical justification required for issuing the variance increases.

B. Variances may be issued for the reconstruction, rehabilitation or restoration of historic structures (as defined by the chapter) without regard to the procedures set forth in the remainder of this section upon a determination that the proposed reconstruction, rehabilitation or restoration will not preclude the structure's continued designation as a historic structure and variance is the minimum necessary to preserve the historic character and design of the structure.

C. Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

D. Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

E. Variances shall only be issued upon:

(1) A showing of good and sufficient cause;

(2) A determination that failure to grant the variance would result in exceptional hardship to the applicant; and

(3) A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety or extraordinary public expense, create nuisances, cause fraud on or victimization of the public identified in Section 172-4.4-1 D, or conflict with existing local laws or ordinances.

F. Any applicant to whom a variance is granted shall be given written notice that the structure will be permitted to be built with a lowest floor elevation below the base flood elevation and that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation.

§ 172-5. Provisions for flood hazard reduction. [Amended 7-19-06 by Ord. No. 06-083]

§ 172-5.1. General standards. [Amended 7-19-06 by Ord. No. 06-083]

In all areas of special flood hazards the following standards are required:

A. Anchoring.

(1) All new construction and substantial improvements shall be anchored to prevent flotation, collapse or lateral movement of the structure.

(2) All manufactured homes shall be anchored to resist flotation, collapse or lateral movement. Methods of anchoring may include, but are not to be limited to, use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable state and local anchoring requirements for resisting wind forces.

B. Construction materials and methods.

(1) All new construction and substantial improvements shall be constructed with materials and utility equipment resistant to flood damage.

(2) All new construction and substantial improvements shall be constructed using methods and practices that minimize flood damage.

C. Utilities.

(1) All new and replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the system

(2) New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of floodwaters into the systems and discharge from the systems into floodwater.

(3) On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding.

(4) Electrical, heating, ventilation, plumbing and air-conditioning equipment and other service facilities shall be designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.

D. Subdivision proposal.

(1) All subdivision proposals shall be consistent with the need to minimize flood damage.

(2) All subdivision proposals shall have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize flood damage.

(3) All subdivision proposals shall have adequate drainage provided to reduce exposure to flood damage.

(4) Base flood elevation data shall be provided for subdivision proposals and other proposed development which contain at least fifty (50) lots or five acres (whichever is less) which is to be developed at one time or over a period of time as part of an overall project.

E Enclosure openings. All new construction and substantial improvements having fully enclosed areas below the lowest floor that are usable solely for the parking of vehicles, building access, or storage in an area other than a basement and which are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or architect or must meet or exceed the following minimum criteria:

(1) A minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding shall be provided.

(2) The bottom of all openings shall be no higher than one foot above grade.

(3) Openings may be equipped with screens, louvers or other coverings or devices, provided that they permit the automatic entry and exit of floodwaters.

§ 172-5.2. Specific standards. [Amended 3-12-1987 by Ord. No. C-427; 7-19-06 by Ord. No. 06-083]

In all areas of special flood hazards where base flood elevation data have been provided as set forth in § 172-3.2 Basis for establishing areas of special flood hazard or in § 172-4.3B Use of other base flood and floodway data, the following standards are required:

A. Residential construction.

(1) New construction and substantial improvement of any residential structure shall have the lowest floor, including basement, elevated to or above base flood elevation.

(2) Within any AO zone on the municipality's FIRM, it is required that all new construction and substantial improvement of any residential structure shall have the lowest floor, including basement, elevated above the highest adjacent grade at least as high as the depth number specified in feet (at least two feet if no depth number is specified). In addition, adequate drainage paths around structures on slopes to guide floodwaters around and away from proposed structures are also required.

B. Nonresidential construction. New construction and substantial improvement of any commercial, industrial or other nonresidential structure shall either have the lowest floor, including basement, elevated to the level of the base flood elevation, or together with attendant utility and sanitary facilities, shall:

(1) If located within any AO zone on the municipality's FIRM, shall have the lowest floor, including basement, elevated above the highest adjacent grade at least as high as the depth number specified in feet (at least two feet if no depth number is specified). In addition, adequate drainage paths around structures on slopes to guide floodwaters around and away from proposed structures are also required.

(2) Be flood proofed so that below the base flood level the structure is watertight with walls substantially impermeable to the passage of water;

(3) Have structural components capable of resisting hydrostatic and hydrodynamic loads and effects of buoyancy; and

(4) Be certified by a registered professional engineer or architect that the design and methods of construction are in accordance with accepted standards of practice for meeting the applicable provisions of this subsection. Such certification shall be provided to the official as set forth herein, Section 172-4.3C.

C. Manufactured homes.

(1) Manufactured homes shall be anchored in accordance with § 172-5.1A.

(2) All manufactured homes to be placed or substantially improved within an area of special flood hazard shall be elevated on a permanent foundation such that the top of the lowest floor is at or above the base flood elevation.

Chapter 173

RETAIL FLORISTS

§ 173-1.	Definition.	§ 173-4.	Violation; penalties.
§ 173-2.	License required.	§ 173-5.	Exceptions.
§ 173-3.	Facilities.		

[HISTORY: Adopted by the Council of the City of Jersey City 9-12-2002 by Ord. No. 02-096.]

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§ 173-1. Definition.

RETAIL FLORIST — means a person, firm or corporation engaged in the business of selling at retail or wholesale, to the public, in any quantity, cut or rooted flowers, funeral sprays, wreaths, designs, corsages, potted plants or cuttings or bedding plants of natural growth, and selling the aforementioned products during the entire calendar year. This section shall not apply to the sale of Christmas trees.

§ 173-2. License required.

A. No person shall engage either directly or indirectly in business as a retail florist within the City without having first obtained a license from the Director of Commerce.

B. The Director of Commerce shall issue a license upon payment of all fees required under § 160-1 (O.1).

§ 173-3 Facilities.

No retail florist shall do business except from a store, shop or greenhouse. If cut flowers are sold, the premises shall be equipped with proper refrigeration, which shall consist of a regular florist display mechanical refrigerator of a minimum size of eight feet by ten (10) feet by five feet to house cut flowers and plants.

§ 173-4. Violation; penalties.

Any person, corporation or firm convicted of violating any of the provisions of this Chapter shall be subject to the penalties set forth in § 1-25.

§ 173-5. Exceptions.

This section shall not apply to any non-profit organizations, selling products under this section for purposes of fundraising for its own use.

Chapter 175

FOOD-HANDLING ESTABLISHMENTS*

ARTICLE I
In General

§ 175-1. Definitions.
§ 175-2. License required.
§ 175-3. Written agreement required; limitations on fees and service charges.
§ 175-4. Gratuities and tips; bathroom access for delivery workers, payment requirements.
§ 175-5. Violations and enforcement.
§§ 175-6, 175-7. Reserved.

ARTICLE II
Mobile Food Vendors

§ 175-8. Definitions.
§ 175-9. License required; renewal; number of licenses limited; restrictions.
§ 175-9.1 Application process.
§ 175-9.2. Education/training requirement/pre-operation inspection.
§ 175-9.3. Operation requirements for mobile food vendors.
§ 175-10. Use of streets by mobile food vendors; physically handicapped persons.
§ 175-11. Violations and penalties.
§ 175-12. License revocation or suspension.
§ 175-13. General parking requirements.
§ 175-14. Itinerant food truck parking—Zone I permit required.
§ 175-15. Reserved.

ARTICLE III
Food Establishments

§ 175-16. Applicability.
§ 175-17. Restaurant home delivery service; notice.
§ 175-18. Definitions.
§ 175-19. Classification of establishments.
§ 175-20. License required; application.
§ 175-21. License fees.
§ 175-22. License term.
§ 175-23. Operation without license; failure to renew.
§ 175-24. Food handler's course; fee.
§ 175-25. Closure by Health Officer.
§ 175-26. Inspection of retail food establishments.
§ 175-27. Interference with Division of Health or police.
§ 175-28. Farmers' markets.

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*History—Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable.
Cross references—Alcoholic beverages, Ch. 84; health and sanitation, Ch. 182; retail and commercial premises, Ch. 263.

ARTICLE I

In General*

§ 175-1. Definitions. [Added 5-22-2024 by Ord. No. 24-037]

As used in this section, the following terms have the following meanings:

BATHROOM FACILITY — a bathroom on the premises of a Food Service Establishment that is provided for its customers or dedicated for its employees.

DELIVERY FEE — a fee charged by a Third-Party Food Delivery Service as defined herein for providing a Food Service Establishment with a service that delivers food from a Food Service Establishment to customers. Delivery Fee does include fees for listing or advertising the Food Service Establishment on the Third-Party Food Delivery Service platform or app, processing fees or any fee for any other service a Third- Party Food Delivery Service may provide.

DIRECTOR — the Director of Commerce within the Department of Housing, Economic Development and Commerce.

FOOD SERVICE ESTABLISHMENT — any establishment which serves made-to-order food or beverages for dine-in, take-out or delivery, but not including food trucks and mobile food carts.

GRATUITY or TIP — a sum of money paid voluntarily by a customer when placing an online order or after delivery of such online order that is in addition to the purchase price and other mandatory charges such as taxes and fees, and which is referred to on a Third-Party Food Delivery Platform as a Gratuity, Tip or other similar term that would indicate to a customer that the sum, or a substantial portion thereof, would be received by person delivering the order.

THIRD-PARTY FOOD DELIVERY PLATFORM — the website, mobile application, or other internet service of a Third-Party Food Delivery Service on which a customer can view made-to- order food or beverages available for sale and place an online order for more than one Food Service Establishment operating within Jersey City's products.

THIRD-PARTY FOOD DELIVERY SERVICE — any website, mobile application, or other internet service that offers or arranges for the sale of food and beverages prepared by, or the delivery or pick-up of food and beverages from, more than one Food Service Establishment operating within Jersey City, that is owned and operated by a person other than the person who owns the offered Food Service Establishments.

Editor's note—Ord. No. 24-037, amended the Code by repealing former § 175-1, and adding new §§ 175-1—175-5. Former § 175-1 pertained to third-party delivery services and internet applications, and limitations on fees, and derived from Ord. No. 20-113, adopted January 4, 2021; and Ord. No. 21-007, adopted February 10, 2021.

***Editor's note—**Former Art. I, Dine-Dance Establishments, adopted May 4, 1971, as Ch. 11, Art. I, of the 1971 Jersey City Code, as readopted September 19, 1978, by Ord. No. S-128, as amended, was repealed September 24, 1998, by Ord. No. 98-081. Subsequently, Ord. No. 20-113 added a new § 175-1, and the designation "In General" was added to Article I at the editor's discretion.

§ 175-2. License required. [Added 5-22-2024 by Ord. No. 24-037]

1. License required. It shall be unlawful for any person to operate a Third-Party Food Delivery Service without first having obtained a license therefore issued pursuant to this subchapter. All licenses issued pursuant to this Article shall be valid for no more than one year from the date of issuance.

2. An application for any license required under this Article or for any renewal thereof shall be made to the Division of Commerce in such form or manner as the Director of the Division of Commerce shall prescribe, provided that the application shall include, but need not be limited to:

   a. the address of the applicant and, if the applicant is located outside Jersey City, an address of a registered agent within the State of New Jersey upon which process or other correspondence may be served; and

   b. A list of all Third-Party Food Delivery Platforms that the applicant uses or plans to use to conduct the business of a third-party food delivery service for the duration of the license.

3. There shall be an annual fee of $1,000.00 for a license to operate a third-party food delivery service for such Third-Party Food Delivery Service's initial three years of operation, and an annual fee of $500.00 thereafter.

§ 175-3. Written agreement required; limitations on fees and service charges. [Added 5-22-2024 by Ord. No. 24-037]

1. A Third-Party Food Delivery Service shall not take and arrange for the delivery of an online order from a Food Service Establishment without first entering into a written agreement that expressly authorizes such delivery service to take and arrange for the delivery of online orders prepared by such an establishment. An agreement executed in accordance with this section shall not include a provision, clause, or covenant that requires a Food Service Establishment or its employees to indemnify a Third-Party Food Delivery Service, any independent contractor acting on behalf of the Third-Party Food Delivery Service, or any registered agent of the Third-Party Food Delivery Service, for any damages or harm caused by an act or omission by the third party delivery service or its agents occurring after the Food Service Establishment's product leaves the place of business of the Food Service Establishment. To the extent an agreement executed in accordance with this section contains such a provision, such provision shall be deemed void and unenforceable.

2. A third-party food delivery service shall provide Food Service Establishments with a service option that allows the Establishment to be listed on its platform, receive orders for delivery, and fulfill deliveries directly without use of the delivery capabilities of the Third-Party Food Delivery Service. Such option shall be clearly presented to the Food Service Establishment on the application or website of the third-party food delivery service. An agreement between a Third-Party Food Delivery Service and Food Service Establishment that selects this option shall state: (a) the fee or commission charged to a Food Service Establishment for this option; (b) the allocation of any delivery fees charged to the customer between the Third-Party Food Delivery Service and the Food Service Establishment; and (c) how delivery responsibilities shall be allocated between the Third-Party Food Delivery Service and Food Service Establishment. It shall be unlawful for this service option to charge a Food Service Establishment more than 5% of the purchase price of each online order. The 5% limit shall not apply

to any other service that may be provided by a Third-Party Food Delivery Service to a Food Service Establishment, including but not limited to advertising services, search engine optimization, business consulting, or credit card processing. The 5% limit shall not apply to any order where the Third-Party Food Delivery Service facilitates or performs the delivery.

3. Where a Third-Party Food Delivery Service offers subscription "tiers" or options for delivery service by the Third-Party Food Delivery Service or its agents, the following limitations shall apply:

   a. The Third-Party Food Delivery Service shall provide at least one "tier" of service that provides core delivery service at or below 15% of the purchase price of each online order.

   b. "Core delivery service" shall include:

      (1) listing a Food Service Establishment, and making the Food Service Establishment discoverable, on all modalities or platforms offered by a Third-Party Food Delivery Service, including but not limited to any website, mobile application, or other internet service where a Third-Party Food Delivery Service lists Food Service Establishments, and

      (2) facilitating and/or performing the delivery (through employees or independent contractors of the Third-Party Food Delivery Service and/or such establishments) of food and/or beverages from Food Service Establishments to customers.

   c. Core delivery service does not include any other service that may be provided by a Third-Party Food Delivery Service to a covered establishment, including but not limited to advertising services, search engine optimization, business consulting, or credit card processing.

   d. A Third-Party Food Delivery Platform may not omit, or otherwise hide a Food Service Establishment from relevant search results based solely on their selection of core delivery service.

   e. No "tier" of service may offer differing dispatch times or priority dispatching based on the "tier" of subscription.

   f. All "tiers" of service must provide a delivery radius from the Food Service Establishment of not less than one mile from the Food Service Establishment so long as that is within the city limits.

   g. The requirements for core delivery service or service tiers provided by this subsection 3 shall not prohibit a Third-Party Food Delivery Service from adjusting service: at the request of a Food Service Establishment; to protect the health or safety of food, customers, or people performing deliveries; to accommodate geographical or physical obstacles to delivery; to address technical issues; or to comply with other laws or regulations.

4. It shall be unlawful for a Third-Party Food Delivery Service to charge a customer any purchase price for an item that is higher than the price set by the Food Service Establishment on the Third-Party Food Delivery Service absent express consent from the Food Service Establishment. Absent express consent of the food service establishment, no price may be charged to the customer that is higher than the price listed on the Food Service Establishment's own menu.

§ 175-4. Gratuities and tips; bathroom access for delivery workers, payment requirements. [Added 5-22-2024 by Ord. No. 24-037]

1. It shall be unlawful for a Third-Party Food Delivery Service to solicit a Gratuity or Tip for a food delivery worker, whether the food delivery worker is hired, retained or engaged by such Third-Party Food Delivery Service, from a customer in connection with an online order unless that Gratuity or Tip is provided entirely to the food delivery worker.

2. For each transaction, a food delivery worker hired, retained or engaged by a Third-Party Food Delivery Service shall be notified of how much the customer paid as gratuity and if such customer paid additional gratuity, and if such customer decided to remove the gratuity. Upon any change or payment of gratuity, a third-party delivery service shall notify such food delivery worker and credit such gratuity to such worker's account.

3. A Third-Party Food Delivery Service shall disclose to a food delivery worker hired, retained or engaged by a Third-Party Food Delivery Service, the aggregate amount of compensation and aggregate amount of gratuities earned by such food delivery worker on the day after such compensation and gratuities were earned.

4. Food Service Establishments must make a public Bathroom Facility available for the use of food delivery workers lawfully on a Food Service Establishment's premises for the purposes of picking up that establishment's food or beverage for consumer delivery.

5. A food delivery worker, other than one directly employed or contracted by a Food Service Establishment, shall be presented with the proposed estimated time required, distance traveled, and proposed route followed to provide delivery services to a consumer through a Third-Party Food Delivery Service, including travel to the Food Service Establishment from the delivery worker's current location, as well as the option to decline the delivery after the proposed time and route are presented but before acceptance by the delivery worker. No worker shall lose access to his or her account due to declining deliveries pursuant to this section.

6. A Third-Party Food Delivery Service shall provide food delivery workers, other than those employed or contracted by a Food Service Establishment directly, with a payment option that is at least weekly and without charging any fee to the worker for such a payment option.

7. It shall be unlawful to reduce the compensation rates or gratuities paid to a delivery service driver because of the limits on fees imposed by this ordinance.

8. Violators of this ordinance shall be subject to the punishment provided in Section 1-25 of the Code of the City of Jersey City. Each order for which a fee charged exceeds the fee permitted by this ordinance shall be considered a separate offense. The issuance of violations, or any other enforcement action of any nature, shall be in accordance with Section 175-5. No Third-Party Food Delivery Service shall be subject to punishment for any food delivery worker's non-compliance with this Chapter.

§ 175-5. Violations and enforcement. [Added 5-22-2024 by Ord. No. 24-037]

1. It shall be the duty of the Director of the Division of Commerce and his or her staff to administer and enforce this Article. The Jersey City Office of Code Compliance is also authorized to enforce this article

2. Any member of the public may notify the Division of Commerce or Office of Code Compliance in writing of conditions in violation of this chapter. The Director of the Division of Commerce shall establish a system for collecting, reviewing, and adjudicating public complaints of non-compliance with this Article. The Division of Commerce is also empowered to investigate non-compliance of its own accord.

3. Upon determining that a Third-Party Food Delivery Service or Third-Party Food Delivery Platform is in violation of this Article, at any time after a license is issued, the Director shall require correction of said violation within 30 days' by notice in writing to the address of the Third-Party Food Delivery Service or Third-Party Food Delivery Platform or, if the applicant is located outside Jersey City, the address of the registered agent within the State of New Jersey provided pursuant to § 175-2(2)(a).

4. Any Third-Party Food Delivery Service or Third-Party Food Delivery Platform who violates or refuses to comply with or who resists the enforcement of any of the provisions of this chapter or any order, decision or determination by the Director of the Office of Code Compliance and who refuses to abate said violation within 30 days after written notice has been served upon them by registered mail or by personal service shall be subject to the penalty prescribed in § 1-25 of the Municipal Code.

    a. This penalty shall apply to each individual infraction of this chapter.

    b. A Third-Party Food Delivery Service or Third-Party Food Delivery Platform may appeal the suspension or revocation of its license upon written notice to the Director within 30 days of the issuance of the violation or penalty. The Director shall hold a public hearing on ten days' notice following receipt of the appeal.

5. Every Third-Party Food Delivery Service or Third-Party Food Delivery Platform holding a license issued under this Article and who is the subject of disciplinary proceedings shall be served with a written specification of the charges against the operator and shall have at least ten days' notice of a public hearing on the charges. At the hearing, the licensee may be represented by counsel and present and submit evidence and witnesses in his or her defense.

6. The Director of the Division of Commerce may suspend or revoke any license following the public hearing if a Third-Party Food Delivery Platform or Third-Party Food Delivery Service:

    a. Knowingly violates or knowingly permits the violation of any provision of this chapter; or

    b. Has failed to abate a violation of the provisions of this chapter within 30 days.

7. The Director shall notify the licensee in writing of the Director's determination within 21 days of the hearing. The written determination shall inform the licensee of its right to appeal any violation or revocation of a license to a court of competent jurisdiction.

8. No Third-Party Food Delivery Service or Third-Party Food Delivery Platform shall be issued violations, subjected to any enforcement action of any kind, or otherwise penalized, for the non-compliance of, or violations of this chapter attributable solely to, any food delivery worker.

§§ 175-6, 175-7. Reserved.

ARTICLE II
Mobile Food Vendors*

§ 175-8. Definitions. [Amended 5-10-2006 by Ord. No. 06-064; 3-28-2013 by Ord. No. 13-037; 2-26-2014 by Ord. No. 14-018; 4-15-2026 by Ord. No. 25-069]

MOBILE FOOD VENDOR — Anyone who sells food or beverages from a vehicle such as a truck, van, trailer, or pushcart, and frozen dairy trucks, whether such food or beverages are prepared on site or prepared elsewhere and transported to the site of the sale.

MOBILE FOOD VENDOR (CLASS A) — Any mobile food truck, or trailer, that prepares onsite or in a commercial kitchen, food for sale to the public, that includes vendors with a menu that requires handling of temperature control foods (TCS) and complex preparation of at least three or more potentially hazardous foods including cooking, cooling, hot holding and reheating. Specialized processes require a Hazard Analysis and Critical Control Points (HACCP Plan), risk type 3 and 4.

MOBILE FOOD VENDOR (CLASS B) — Any mobile food vendor such as pushcarts, frozen dairy trucks, and mobile agricultural vendor, providing limited preparation of food for sale to the public, that includes cooking and serving products immediately while also exercising hot and cold holding of potentially hazardous foods after preparation or cooking primarily risk type 2.

MOBILE FOOD VENDOR (CLASS C) — Any mobile food vendor primarily engaged in the sale or preparation of flavored ice products, risk type 1.

§ 175-9. License required; renewal; number of licenses limited; restrictions. [Amended 3-28-2013 by Ord. No. 13-037; 2-26-2014 by Ord. No. 14-018; 4-15-2026 by Ord. No. 25-069]

A. No person shall conduct, operate or maintain a mobile food vendor establishment without first obtaining a license to do so issued by the Department of Health and Human Services upon payment of the sum as provided in Chapter 160, Fees and charges for mobile food vendors, per year or fraction of a year. Such license shall expire on the next April 30 after issuance, unless sooner suspended or revoked. Renewals of any license shall not be issued after July 31 of the renewal year. Any licensee who fails to renew a license by April 30 shall not be permitted to operate until said license is renewed within the grace period as set forth herein.

B. The Health Officer and/or their designee is authorized to renew the license of a deceased licensee in the name of the deceased licensee's surviving spouse, with appropriate documentation.

***Editor's note—**This article was originally adopted May 4, 1971 as Ch. 11, Art. III, of the 1971 Jersey City Code, and readopted September 19, 1978 by Ord. No. S-128, amended in its entirety at time of adoption of Code. See Ch. 1, General Provisions, Art. I. Subsequently, it was retitled and substantially amended March 28, 2013 by Ord. No. 13-037, and February 26, 2014 by Ord. No. 14-018.

C. The number of licenses which may be issued to mobile food vendors shall not exceed 237 licenses. In the event that a license is revoked or if it is not renewed after July 31 of the renewal year then any such license may be issued to an applicant for such license on a first-come-first-served basis. Department of Health and Human Services shall maintain a waiting list for such revoked or unrenewed licenses and shall notify the person at the top of the list that such a license is available.

D. Mobile food vendors shall affix to the vehicle or pushcart a copy of the license issued by the Department of Health and Human Services, the certificate of registration issued by the New Jersey Division of Taxation, and shall have displayed prominently on or adjacent to the doors of the vehicle, a placard or lettering with the name and address of the owner, lessee and/or lessor of the vehicle. Said information shall be in letters and numbers no less than three inches in height in accordance with N.J.S.A. 39:4-46.

E. Mobile food vendor licenses are not transferable.

§ 175-9.1 Application process. [Added 2-26-2014 by Ord. No. 14-018; amended 4-15-2026 by Ord. No. 25-069]

A. All applicants or licensees attempting to apply for or renew a license must complete an application/reapplication form prescribed by the Department of Health and Human Services, pay the license fee prescribed in § 160-1, as well as any applicable reinspection or late fees set forth in § 160-1(Q)(2), and provide proof of the following:

1. Certificate of registration issued by the N.J. Division of Taxation;

2. Proof of ownership or rental of an approved vehicle or pushcart;

3. Proof of general liability insurance providing a minimum of $1,000,000.00 coverage for non-motorized mobile food vendor vehicles;

4. Proof of motor vehicle insurance as per N.J.S.A. § 39:6B-1 if the mobile food vendor operates from a motor vehicle in addition to proof of general liability insurance providing a minimum of $1,000,000.00 coverage;

5. A type 2 propane permit from the Jersey City Fire Department, if the vehicle or pushcart is carrying more than five pounds of propane;

6. A satisfactory inspection report issued no more than 30 days prior to a license being issued or renewed.

§ 175-9.2. Education/training requirement/pre-operation inspection. [Added 2-26-2014 by Ord. No. 14-018; amended 4-15-2026 by Ord. No. 25-069]

All approved applicants shall attend a food handlers' course directed by the Jersey City Department of Health and Human Services or provide proof of having attended a similarly approved course and arrange for an inspection of their vehicle prior to commencing business. All mobile food vendors must maintain a valid food manager's certificate for risk type 3 and 4, and/or food handler's certificate for risk type 1 and 2.

§ 175-9.3. Operation requirements for mobile food vendors. [Added 2-26-2014 by Ord. No. 14-018; amended 4-15-2026 by Ord. No. 25-069]

A. Mobile food vendors shall provide trash and recycling receptacles within ten feet of their site and shall collect all trash and debris within 25 feet before leaving their site. Collected trash must not be deposited in public trash receptacles.

B. No mobile food vendors shall occupy the street and the sidewalk at the same time, i.e. park a motorized vehicle in the street and dispense food from the sidewalk or set up a pushcart on the sidewalk and dispense food in the street.

C. New or replacement mobile food vendor trucks, vans or other vehicles trucks shall be inspected before operating. No changes shall be made to approved mobile food vendor trucks, vans, pushcarts or vehicles without re-inspection by the Department of Health and Human Services.

D. No mobile food vendor shall serve food or drink to a motorist or occupants of a vehicle blocking the passage of traffic.

E. No mobile food vendors shall occupy street space blocking the passage of traffic.

F. Mobile food vendors vehicle and pushcarts shall be self-contained; no coolers to be placed on streets or sidewalks.

G. No mobile food vendor shall provide in-truck dining services or sidewalk tables and chairs.

H. Grills, generators, or other items related to the mobile food vending operation shall be physically attached to the vehicle or pushcart.

I. Mobile food vendors must have a portable water tank/sink for hand washing attached to their vehicle as per N.J.A.C. 8:24-5.3.

J. All motorized vehicles must abide by all existing traffic and parking regulations.

§ 175-10. Use of streets by mobile food vendors; physically handicapped persons. [Amended 5-10-2006 by Ord. No. 06-064; 3-28-2013 by Ord. No. 13-037; 9-11-2013 by Ord. No. 13-081; 2-26-2014 by Ord. No. 14-018; 4-15-2026 by Ord. No. 25-069]

A. No person conducting, operating as a mobile food vendor shall be permitted to sell food or drink within the area designated as The Journal Square Special Improvement District, which area is more particularly described by block and lot numbers and street addresses as set forth in Schedule A to Chapter 69 of this Code on file in the Office of the Jersey City Clerk. No person conducting, operating or maintaining a mobile food vendor establishment, shall be permitted to sell food or drink within 300 feet of any licensed eating and drinking establishment, nor shall he or she be permitted to remain in any location for a period exceeding 120 minutes during a four-hour period. The provisions of this section shall be enforced by the Police Department and the Department of Health and Human Services.

B. Physically handicapped persons.

(1) An exemption to the 120-minute regulation shall apply to physically handicapped persons who have been issued a specific vehicle identification card by the Department of Health and Human Services. The exemption to the 120-minute regulation shall not apply to any person operating an establishment on behalf of the handicapped person. Said exemption to the 120-minute regulation shall only apply to one vehicle or establishment operated by the handicapped person personally. The handicapped person shall not have an exemption for any more than one vehicle or establishment. In the event that the handicapped person is not personally operating that vehicle or establishment then the exemption to the 120-minute regulation shall not apply to that vehicle or establishment.

(2) Certification is required by a physically handicapped person in order to qualify for the exemption to the 120-minute regulation which shall contain the precise nature of the disability and shall not be in general terms. It shall also contain a prognosis by the doctor as to the length of time that such disability will exist. A new doctor's certification obtained pursuant to a current or recent examination shall be presented annually with the application for any renewal of a license to a physically handicapped person.

(3) "Physical handicap" means a physical impairment which confines a person to a wheelchair; causes a person to walk with difficulty or insecurity; affects the sight or hearing to the extent that a person functioning in public areas is insecure or exposed to danger; causes faulty coordination; or reduces mobility, flexibility, coordination and perceptiveness. "Physical handicap" shall include coronary conditions. Any such physically handicapped person shall submit a certificate from a physician certifying that said handicap does exist.

C. The provisions of the 120-minute regulation in this section shall be enforced by the Police Division of the Public Safety Department and the Department of Health and Human Services.

D. No mobile food vendors shall operate upon private property, with the exception of private streets. No owner or person in control of or in possession of private property, except a private street, shall permit any mobile food vendors to be operated upon said property. **[Amended 3-26-2025 by Ord. No. 25-028]**

E. No mobile food vendors shall operate in any area where parking of motor vehicles is prohibited, restricted or regulated. Such areas shall include, but not be limited to, sidewalks, bus stops, taxi stands, fire hydrants, parking metered areas, loading zones, areas where parking is prohibited, such as from the corner of an intersection as indicated by curb markings, areas reserved for physically handicapped motor vehicle operators, crosswalks, driveways and any other areas so restricted, prohibited or regulated for the parking of motor vehicles.

F. No mobile food vendor vehicles shall exceed 37 feet long by eight feet wide.

Editor's note—Ord. No. 14-018, adopted February 26, 2014, amended the Code by repealing former § 175-10, and renumbering former § 175-11 as a new § 175-10. Former § 175-10 pertained to license transfer procedure, and carried no history note.

§ 175-11. Violations and penalties. [Amended 2-26-2014 by Ord. No. 14-018; 4-15-2026 by Ord. No. 25-069]

A. Anyone violating any of the provisions of this Article shall be punishable as provided in Chapter 1, General Provisions, § 1-25. In the event that an offense is a continuing one, then each day such offense continues shall be deemed a separate and distinct offense and shall be punishable as such as provided herein. Where the offense is a continual one, only one summons and complaint need be issued, provided that there is stated on such documents the charge that each day the violation continues shall be a separate and distinct offense.

B. In addition to the penalties set forth herein, any person operating a mobile food vendor who violates any provisions of this Article, or the applicable provisions of Chapter 24 of the New Jersey State Sanitary Code, the vehicle, cart or establishment which is being operated as such shall be impounded by either the Police or the Department of Health and Human Services as the case may be. In the event that any such vehicle is impounded, the vehicle, cart or truck may be redeemed by the person upon payment of the cost of impounding and the storage charges established by the Department of Public Safety. Said storage charge and cost of impounding shall be the same as are established for the impounding of motor vehicles. **[Amended 3-28-2013 by Ord. No. 13-037; 9-11-2013 by Ord. No. 13-081]**

Editor's note—Ord. No. 13-037, adopted March 28, 2013, amended the Code by repealing former §§ 175-12 and 175-13. Former § 175-12 pertained to licensing of itinerant catering establishments, and former § 175-13 pertained to use of streets by itinerant catering establishments, and derived from Ord. No. 06-064, adopted May 10, 2006. Subsequently, Ord. No. 14-018, adopted February 26, 2014, amended the Code by renumbering former §§ 175-14 and 175-15 as new §§; 175-11 and 175-12.

§ 175-12. License revocation or suspension. [Amended 2-26-2014 by Ord. No. 14-018; 4-15-2026 by Ord. No. 25-069]

A. The license of a person who violates any provision of this article or has been found to be violation of this article or the applicable provisions of Chapter 24 of the State Sanitary Code, may be revoked or suspended after hearing upon ten days' notice served upon the licensee. Said notice shall contain the specific provision of this article or of the State Sanitary Code which has been violated and the specifications which shall constitute the violation. The Health Officer and/or their designee shall conduct the hearings upon any offenses. Licenses may be revoked or suspended for any violation of the article, or of the State Sanitary Code, or for any repeated violations thereof. Any licensee of a mobile food vendor whose license has been revoked shall not be qualified to receive a new license or have said license restored to said person. **[Amended 3-28-2013 by Ord. No. 13-037]**

B. Any licensee who is charged with a violation shall have the right to be represented by an attorney and said facts shall be stated on the notice served upon him.

C. Any licensee whose license has been revoked or suspended shall have a right to appeal such revocation or suspension to a court of competent jurisdiction in accordance with the rules of the Courts of the State of New Jersey.

Note—See editor's note, § 175-11.

§ 175-13. General parking requirements. [Added 9-23-2020 by Ord. No. 20-063; amended 6-29-2022 by Ord. No. 22-059; 4-15-2026 by Ord. No. 25-069]

A. Designated mobile food vendor parking spots. Mobile food vendors are prohibited from parking in any spot within the City of Jersey City that has not been previously designated a mobile food vendor

parking spot. The following locations have been designated as mobile food vendor parking spots: **[Amended 6-11-2025 by Ord. No. 25-058**

Name of Street	Side	Space	Number Limits
ITINERANT FOOD TRUCK PARKING—ZONE 1			
Columbus Drive	North	00001	30 feet west of Hudson Street extending 30 feet west
Columbus Drive	North	00002	70 feet west of Hudson Street extending 30 feet west
Columbus Drive	North	00003	140 feet west of Hudson Street extending 30 feet west
Columbus Drive	South	00004	90 feet west of Warren Street extending 30 feet west
Columbus Drive	South	00005	125 feet west of Warren Street extending 30 feet west
Columbus Drive	South	00006	160 feet west of Warren Street extending 30 feet west
Columbus Drive	South	00007	195 feet west of Warren Street extending 30 feet west
Columbus Drive	South	00008	230 feet west of Warren Street, extending 30 feet west
Columbus Drive	South	00009	265 feet west of Warren Street, extending 30 feet west
Columbus Drive	South	00010	300 feet west of Warren Street, extending 30 feet east
Columbus Drive	South	00011	75 feet east of Marin Boulevard, extending 30 feet east
Columbus Drive	South	00012	110 feet east of Marin Boulevard, extending 30 feet east
Columbus Drive	South	00013	145 feet east of Marin Boulevard, extending 30 feet east
Columbus Drive	South	00014	180 feet east of Marin Boulevard, extending 30 feet east

Name of Street	Side	Space	Number Limits
Columbus Drive	South	00015	215 feet east of Marin Boulevard, extending 30 feet east
Montgomery Street	South	00016	103 feet east of Greene Street extending 25 feet east
Montgomery Street	South	00017	139 feet east of Greene Street extending 25 feet east
Montgomery Street	South	00018	123 feet west of Hudson Street extending 25 feet west
Montgomery Street	South	00019	159 feet west of Hudson Street extending 25 feet west
Sussex Street	South	00020	189 feet east of Hudson Street extending 30 feet east
Sussex Street	South	00021	229 feet east of Hudson Street extending 30 feet east
ITINERANT FOOD TRUCK PARKING - ZONE 2			
Audubon Avenue	North	00022	270 feet east of College Street extending 40 feet east
John F. Kennedy Boulevard	West	00023	245 feet south of Culver Avenue extending 40 feet south
West Side Avenue	West	00024	25 feet south of Gifford Avenue extending 40 feet south
West Side Avenue	West	00025	75 feet south of Gifford Avenue extending 40 feet south
Garfield Avenue	East	00026	50 feet south of Bramhall Avenue extending 40 feet south
Berry Lane	West	00027	Southerly terminus extending 40 feet north
Chapel Avenue	South	00028	500 feet east of Caven Point Road extending 40 feet east
Chapel Avenue	South	00029	540 feet east of Caven Point Road extending 40 feet east
Colony Road	East	00030	At Foot of Colony Road extending 40 feet south

Name of Street	Side	Space	Number Limits
Colony Road	East	00031	40 feet south of Foot of Colony Road extending 40 feet south
14th Street	North	00032	40 feet west of North Boulevard extending 40 feet west
14th Street	North	00033	80 feet west of North Boulevard extending 40 feet west
Duncan Avenue	South	00034	45 feet west of Plainfield Avenue extending 40 feet west
Carbon Place	North	00035	275 feet west of West Side Avenue west extending 40 feet
Carbon Place	North	00036	315 feet west of West Side Avenue west extending 40 feet
Summit Avenue	East	00037	35 feet north of Reservoir Avenue extending 40 feet north
Summit Avenue	East	00038	110 feet south of Manhattan Avenue south extending 40 feet
Mallory Avenue	West	00039	25 feet north of Gautier Avenue extending 40 feet north
Sip Avenue and Bergen Avenue - Northeast corner (Public Parking and Taxi Stand Lot)		00040	
Berry Lane Park (south of Bramhall Avenue)		00041	
9 Linden Avenue East Parking Lot		00042	
9 Linden Avenue East Parking Lot		00043	
351 Martin Luther King Drive (Container Village)		00044	
351 Martin Luther King Drive (Container Village)		00045	
914 Pavonia Avenue (Pavonia/Marion Municipal Pool)		00046	
ITINERANT FOOD TRUCK PARKING - ZONE 3			

Name of Street	Side	Space	Number Limits
West Hamilton Place	East	00047	25 feet South of 9th Street extending 30 feet South
West Hamilton Place	East	00048	10 feet South of Pavonia Ave extending 30 feet South
Eighth Street	North	00049	50 feet east of Jersey Ave

B. Permitted parking hours. Mobile food vendor parking spots may only be utilized between the hours of 10:00 a.m. to 8:00 p.m., unless otherwise stated

1. Columbus Drive. Mobile food vendor parking spots located on Columbus Drive may be utilized between the hours of 10:00 a.m. to 11:00 p.m.

2. Mobile food vendor parking spots in the vicinity of NJCU may be utilized between the hours of 6:00 a.m. to 8:00 p.m. (spots 0018 and 0019)

C. City use of mobile food vendor parking spot. The city reserves the right to prohibit parking in mobile food vendor parking spots, no more than five days per year in any spot, with advanced notice, if necessary (i.e. for special events, construction, etc.) with a refund equal to 1/365th of the annual fee amount per day the City prohibits the use of that spot.

§ 175-14. Itinerant food truck parking—Zone 1 permit required. [Added 9-23-2020 by Ord. No. 20-063; amended 6-29-2022 by Ord. No. 22-059; 4-15-2026 by Ord. No. 25-069]

A. Parking permit required. No person or business shall operate and/or park a mobile food vehicle within itinerant food truck parking—Zone 1 without a valid mobile food vendor parking permit from the City of Jersey City.

1. Permits shall not be required for itinerant food truck parking—Zone 2.

B. Time of permit. Permits shall be effective from April 1 to March 30 of each year.

C. Application process and contents. Applicants seeking a mobile food vendor parking permit shall submit, on an annual basis, an application for such approval to the business administrator, or his/her designee. The application shall be furnished under oath on a form specified by the business administrator, or his/her designee and shall contain the following information:

1. The name, address, telephone and e-mail address of the applicant, including an emergency phone number and contact whereby the applicant can be reached 24 hours per day, seven days per week. If the applicant is a corporation, then the registered agent of the corporation must be listed with all of the above.

2. A description of the applicant's menu and cuisine.

3. Pictures of the vehicle that will be used on site along with the vehicle's length and width.

4. Written acknowledgment that the applicant and owner are not currently and have not been subject to any outstanding assessments, fees or penalties within the past 12 months that have been determined by the City or court of competent jurisdiction.

5. Proof of City-approved insurance that will be maintained in full force and effect throughout the term of the permit.

6. All necessary and current approvals from relevant sources that will remain in full force and effect throughout the term of the permit. This includes the Jersey City Fire Department/Fire Prevention and applicant sanitary inspection reports along with Department of Health and Human Services permits.

7. Any other information or documents deemed necessary by the City.

D. Grant or denial of applications.

1. Grant. Applications meeting the criteria set forth in this chapter and by law shall be granted by the City. Mobile food vendor parking permits shall be issued annually, but such permit does not guarantee use of a mobile food vendor parking spot for the entire year. The business administrator, or his/her designee, shall designate, at the time the permit is issued, the approved location(s) and months that the mobile food vendor is entitled to exclusive use of an assigned spot. Exclusive use of an individual mobile food vendor parking spot may rotate between different mobile food vendors on a quarterly basis, to be determined by the business administrator or his/her designee, taking into consideration input from any relevant special improvement districts.

2. Denial. Applications may be denied where an applicant fails to demonstrate he/she meets the conditions and requirements of this article, or where an applicant fails to comply with applicable local, state or federal law. Any false statements, material omissions or substantially misleading information provided in an application or furnished by an applicant in connection with an application constitute grounds for any one or combination of the following sanctions: denial; refusal to renew; revocation; suspension; and imposition of penalties.

E. Assignment of mobile food vendor parking spot. The City of Jersey City shall determine the specific parking spot within the Zone 1 for each approved applicant. When deciding where to place each mobile food vendor, the City will consider preferences and feedback from the surrounding neighborhoods and special improvement districts, including but not limited to their preferences and feedback regarding the placement of a mobile food vendor within the district as it relates to public health, public safety, and nuisance concerns.

F. Reassignment of mobile food vendor parking spot. The City reserves the right to reassign a mobile food vendor to a different mobile food vendor parking spot after the mobile food vendor parking permit has been issued, upon 30 days' notice of the reassignment to the mobile food vendor. If a mobile food vendor does not wish to continue operating in the reassigned location and therefore is no longer utilizing a mobile food vendor parking spot after the reassignment, the mobile food vendor shall be reimbursed for any payment made for time in which it is no longer occupying a mobile food vendor parking spot. When deciding where to relocate each mobile food vendor, the City will consider preferences and feedback from the surrounding neighborhoods and special improvement districts,

including but not limited to their preferences and feedback regarding the placement of a mobile food vendor within the district as it relates to public health, public safety, and nuisance concerns. The City will reassign the mobile food vendor to a parking spot located within the same zone.

G. Transfer of permit prohibited. No person holding a mobile food vendor parking permit shall sell, lend, lease or in any manner transfer any interest in the mobile food vendor parking permit. Any unauthorized transfer or attempt to transfer a license and/or permit shall automatically void such item.

H. Renewal of permit. Any mobile food vendor holding a mobile food vendor parking permit must reapply for that permit annually. Renewal of a permit does not guarantee the mobile food vendor shall be granted use of the same mobile food parking spot from the prior year, nor does it guarantee the permit shall be granted for exclusive use of the same months/quarter from the prior year.

I. Continuous use of parking spot. If a mobile food vendor is absent from its' assigned mobile food vendor parking spot for more than 20 days per one of its assigned months, Jersey City reserves the right to revoke the mobile food vendor parking permit.

J. Other requirements. All mobile food vendors must comply with the following additional requirements:

1. Mobile Food Vendors shall make every effort to minimize noise and odors while in operation and shall ensure that customers have trash receptacles readily available on-site, or some other adequate means to ensure the proper disposal of any food or other waste generated. Receptacles must be emptied as often as necessary to prevent spillage of refuse and shall be removed upon changing locations.

2. Vendors shall not provide or allow any dining area, including but not limited to tables, chairs, and booths, bar stools, benches or standup counters, in connection with its operation.

3. Vendors are not permitted to distribute any menus, flyers, handbills or other advertising. Vendors are encouraged to use digital menus available online and/or social media to display menus. Vendors are encouraged only to provide physical menus upon request and are responsible for removing any physical menus that are not properly thrown away and/or disrupt the cleanliness of the area.

4. All goods being sold must be located within the mobile food vehicle at all times and may not be placed, stored or displayed on the ground, under the vehicle or on top of the vehicle.

K. Violations and penalties. Any mobile food vendor who violates the Jersey City Municipal Code, or any relevant local, state or federal regulation, will be subject to penalties, including but not limited to fines, revocation of the permit, or towing of the mobile food vehicle.

1. Mobile food vendors shall not be towed unless authorized by the City of Jersey City. Special improvement districts may contract for towing services within its special improvement district, but may not utilize such services until the City has approved the towing or impounding of such vehicle.

L. Fee. The fee for a mobile food vendor parking permit shall be in accordance with Chapter 160 of the Code.

1. The mobile food vendor is prohibited from parking in its assigned spot for any period of time in which it is delinquent in payments.

2. If the mobile food vendor is delinquent in payments for a period of 45 days or more, the mobile food vendor parking permit will be revoked and reassigned. The City reserves the right to remove any mobile food vehicle from its parking spot if the mobile food vendor is delinquent in payments for a period of 45 days or more.

3. All fees shall be suspended until 90 days after the Governor's State of Emergency related to COVID-19 is rescinded.

§ 175-15. Zone 3 permit required. [Amended 6-11-2025 by Ord. No. 25-058

A. Zone 3 permit - Hamilton Park seasonal vendor.

1. Purpose: The Zone 3 Seasonal Vendor permit authorizes a single mobile Seasonal vendor to operate seasonally in the Hamilton Park area during the summer months.

2. Permit zone: No mobile food vendors except the designated zone 3 permit holder may park within the area bounded by Coles St, 9th St, Erie St and 8th St.

a. No mobile food vendor, including the permit holder, (except one operating as part of a farmers market or similar event) may sell within the zone while not parked in one of the designated parking spots.

i. This includes prohibiting selling while double parked.

3. Permit limits:

a. Only one zone 3 permit shall be issued per calendar year.

b. The permit shall be valid from May 1 through September 30 of the permit year.

c. Any mobile food vendor operating within the permit zone without a permit (except one operating as part of a farmers market or similar event) will be subject to receive an ordinance violation from HHS and/or a ticket from parking enforcement.

4. Vendor selection and rotation:

a. The vendor shall be selected through a lottery administered by the Department of Health & Human Services or other designated City department.

b. The seasonal vendor will be an ice-cream vendor, or a vendor that sells similar dessert items including but not limited to, Italian ice, frozen yogurts, smoothies, etc.

c. A vendor may not receive the zone 3 permit in consecutive years to ensure equitable rotation.

5. Operating hours and locations:

   a. The designated mobile seasonal vendor will be able to park in the three designated parking spaces during the available weekday hours for at most 120 minutes at a time. They will be able to use the two bus stops as designated parking spaces during the weekend hours.

   b. Weekends (Saturday and Sunday): Operating hours: 12:00 p.m. to 8:00 p.m.

      The vendor may park at the existing bus stops, alternating between:

      - 9th Street and Jersey Avenue;
      - 8th Street and W. Hamilton Place.

      The truck must alternate between these two stops every two hours, and may not return to the same location within a four-hour period.

   c. Weekdays (Monday through Friday):

      Operating hours: 3:00 p.m. to 8:00 p.m.

      Reserved weekday parking spaces: The City shall designate the following legal parking spaces for mobile truck operation:

      i. W. Hamilton Place near the intersection of 9th Street (space 00047)

      ii. W. Hamilton Place near the intersection of Pavonia Avenue (space 00048)

      iii. 8th Street near the intersection of McWilliams Place (space 0049).

6. Rotation schedules:

   a. Weekend: On weekends, the designated mobile vendor will follow the schedule in the chart below:

      i. Location A is the bus stop at 9th Street near Jersey Avenue;

      ii. Location B is the bus stop at 8th Street & W. Hamilton Place.

Time Slot	Saturday	Sunday
12—2 p.m.	A	B
2—4 p.m.	B	A
4—6 p.m.	A	B
6—8 p.m.	B	A

   b. On weekdays, the designated mobile vendor will follow the schedule in the chart below:

      i. Location C is space 00047 (W. Hamilton & 9th St);

      ii. Location D is space 00048 (W. Hamilton & Pavonia Ave);

iii. Location E is space 00049 (8th St & Jersey Ave).

Time Slot	Monday	Tuesday	Wednesday	Thursday	Friday
3—5 p.m.	C	D	E	C	D
5—7 p.m.	D	E	C	E	C
7—8 p.m.	E	C	D	D	E

7. Outside designated hours: Outside of the designated hours, the zone 3 mobile seasonal vendor spots will return to being zoned residential parking spaces.

8. Compliance with existing ordinances: The zone 3 permit holder must comply with all provisions of § 175-8 and § 175-9.3, including but not limited to:

   a. Mobile seasonal vendors may not remain in a single location for more than 120 minutes within a four-hour period.

   b. Vehicles must occupy legal street spaces and may not block traffic lanes, crosswalks, fire hydrants, or violate any traffic or parking regulations.

9. Enforcement and revocation:

   a. Violations of the zone 3 permit conditions may result in revocation of the permit and disqualification from future lottery participation.

   b. The Department of Health & Human Services, Code Compliance, and the Parking Authority will coordinate enforcement and monitoring.

10. Community notification:

    a. Upon selection of the permit holder, the City shall notify the any local community and/or park groups within 500 feet of Hamilton Park and provide public notice, including the vendor's name and approved schedule.

ARTICLE III

Food Establishments

[Adopted 5-4-1971 as Ch. 11, Art. IV, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128, amended in its entirety 6-14-1995 by Ord. No. 95-050 at time of adoption of Code]

§ 175-16. Applicability.

This Article shall be applicable to eating and drinking establishments and to itinerant eating and drinking establishments.

§ 175-17. Restaurant home delivery service; notice.

A. Every restaurant which operates or advertises a home delivery service and does not deliver to every location in the City of Jersey City shall post a notice containing the following language:

(RESTAURANT NAME)
DOES NOT DELIVER TO EVERY LOCATION IN JERSEY CITY

B. The sign shall be in letters of one inch and shall be conspicuously displayed at the cash register at the point of sale and at the restaurant entrance and exit.

C. Any restaurant which does not display this sign will be deemed to deliver to any location in Jersey City.

D. A restaurant which does not deliver to every location in Jersey City and which does not display the above sign shall be punishable as provided in Chapter 1, General Provisions, § 1-25, or to revocation of its license, or both.

E. "Restaurant" includes any restaurant, pizzeria, tavern, diner, luncheonette or place of business where food and drink are sold for consumption on and off the premises.

§ 175-18. Definitions. [Amended 8-16-1995 by Ord. No. 95-068; 5-10-2006 by Ord. No. 06-064; 3-11-2015 by Ord. No. 15-021; 3-11-2015 by Ord. No. 15-026; 4-15-2026 by Ord. No. 25-069]

As used in this article, the following terms shall have the meanings indicated:

AGRICULTURAL MARKET — Any retail food establishment which is primarily engaged in the sale of raw agricultural products, may cut the raw agricultural products for sale on the premises and may include as a minor portion of its operation, the sale of factory-sealed or prepackaged food products that do not normally require refrigeration and the sale of other grocery products.

ALCOHOL BAR — Any area within a food establishment which is used for the preparation and serving of alcoholic beverages.

BAKERY — Any retail food establishment engaged in the sale or preparation of bakery products such as bread, cakes and pies; may include as a minor portion of the operation the sale of other grocery products.

BAR/LIQUOR STORE — Any retail establishment engaged in the sale of alcoholic beverages; may include as a minor portion of the operation the sale of factory-sealed or prepackaged food products.

BUTCHER — Any retail food establishment primarily engaged in the sale or preparation of meat products; may include as a minor portion of the operation the sale of other grocery products.

CATERER/COMMISSARY/KITCHEN — Any food establishment engaged in the preparation of food which is then transported to be served or offered for sale elsewhere and with no food consumed on-site.

CONFECTIONERY — Any retail establishment primarily engaged in the sale of non-factory-sealed or prepackaged candy products by weight or piece.

DELIVERY VEHICLE — Any mobile vehicle primarily used in the sale or delivery to individuals or food establishments of raw agricultural, frozen dairy or flavored ice, milk/dairy, raw meat/fish/poultry or bakery products.

DISTRICT MANAGEMENT CORPORATION — An entity created by municipal ordinance or incorporated pursuant to Title 15A of the New Jersey Statutes and designated by municipal ordinance to receive funds collected by a special assessment within a special improvement district.

FARM PRODUCT — Shall mean any agricultural, horticultural, forest product, or other product of the soil or water including but not limited to, fruits, vegetables, eggs, dairy products, meat and meat products, poultry and poultry products, fish and fish products, grain and grain products, honey, nuts, preserves, maple sap products, apple cider, fruit juice, ornamental or vegetable plants, nursery products, flowers, firewood and Christmas trees.

FARMERS' MARKET — Shall mean a temporary market established in a public space where farmers/growers sell a variety of farm products, as defined in this article, directly to the consumer.

FISH MARKET — Any retail food establishment primarily engaged in the sale or preparation of fish or fish products; may include as a minor portion of the operation the sale of other grocery products.

FLEA MARKET — An open or closed air market primarily arranged for individual vendors to sell or trade new or used nonfood products and at which food products may be available for sale at the discretion of the Jersey City Health Officer. Flea markets may operate from May 1 through September 30 and October 1 through April 30. Permits are subject to fees set forth in chapter 160.

FOOD DESERT — A census tract, as determined by standards established by the U.S. Departments of Agriculture, Treasury and Health and Human Services, with a substantial share of residents who live in low income areas that have low levels of access to a grocery store or healthy, affordable food retail outlets.

FOOD ESTABLISHMENT — Any business engaged in the sale of food and beverages of any kind, whether prepared on- or off-site, including but not limited to the sale of raw agricultural products, bakery products such as bread, cakes and pies, meat products, candy or candy products, farm products as defined in this article, fish or fish products, frozen dairy or flavored ice products, groceries, products sold from a mobile food vendor; businesses such as delicatessens, restaurants/cafeterias (class A), restaurants/luncheonettes/cafes (class B), institution kitchens, supermarkets, taverns and temporary retail food establishments.

FOOD MARKET CLASS A — Any retail food establishment whose place of business is 20,000 square feet or greater, and which offers for sale a variety of packaged and/or fresh items, which can include foods requiring temperature control for safety like fresh meats, seafood, eggs, and/or dairy. They may engage in food preparation such as butchering, preparing seafood, cooking foods served ready to eat including baked goods.

FOOD MARKET CLASS B — Any retail food establishment whose place of business is less than 20,000 square feet and greater than 9,000 square feet, and which offers for sale a variety of packaged and/or fresh items, can include foods requiring temperature control for safety like fresh meats, seafood, eggs, and/or dairy. They may engage in food preparation such as butchering, preparing seafood, cooking foods served ready to eat including baked goods.

FOOD MARKET CLASS C — Any retail food establishment whose place of business is less than 9,000 square feet, and which offers for sale a variety of packaged and/or fresh items, including foods requiring temperature control for safety like fresh meats, seafood, eggs, and/or dairy. They may engage in food preparation such as butchering, preparing seafood, cooking foods served ready to eat including baked goods.

FOOD MARKET CLASS D — Any retail food establishment whose place of business is less than 9,000 square feet, and which offers for only shelf-stable or frozen food or produce, or are agricultural markets. There is no food preparation except that agricultural products may be processed and packaged for retail sale, including cutting fresh fruits and vegetables.

FOOD MARKET CLASS E — Any retail food establishment whose place of business is less than 9,000 square feet, and which sells only shelf-stable, packaged food requiring no or minimal temperature control for safety, specifically including newsstands, pharmacies/drugstores, and confectionaries.

FOOD MARKET CLASS F — Any retail food establishment engaged in the sale or preparation of bakery products such as bread, cakes and pies; may include as a minor portion of the operation the sale of other grocery products, and/or engaged in the sale of raw agricultural products, may cut the raw agricultural products for sale on the premises and may include as a minor portion of its operation, the sale of factory-sealed or prepackaged food products that do not normally require refrigeration and the sale of other grocery products.

FOOD MARKET CLASS G — Any retail establishment engaged in the sale of alcoholic beverages; and/or, newspapers, magazines and notions; and/or the sale of drugs, cosmetics and devices pursuant to N.J.S.A. title 24; may include as a minor portion of the operation the sale of commercially produced pre-packaged food products.

FROZEN DAIRY SERVICE — Any retail food establishment primarily engaged in the sale or preparation of frozen dairy products.

FLAVORED ICE SERVICE PRODUCTS — Any retail food establishment primarily engaged in the sale or preparation of flavored ice products.

HEALTH OFFICER — Any reference to the City's Health Officer shall refer to the Health Officer or their designee.

INSTITUTIONAL KITCHEN — Any food establishment engaged in the preparation of food which is to be served therein or minimally transported for service within the confines of the structure that houses the kitchen.

KITCHEN — Any food establishment engaged in the preparation of food which is then transported to be served or offered for sale elsewhere, and which does not maintain regular hours of service to the public at the location where food is prepared, including any commissary, institution kitchen, or caterer.

MISCELLANEOUS LICENSE — This shall consist of any activity delegated to the Department of Health and Human Services for licensing or regulation. The license fee shall be determined by the Department of Health and Human Services.

MOBILE FOOD VENDORS — A mobile food vendor is anyone who sells food or beverages from a vehicle such as a truck, van, trailer, or pushcart, and frozen dairy trucks, whether such food or beverages are prepared on-site or prepared elsewhere and transported to the site of the sale.

NEWSSTAND — Any retail establishment primarily engaged in the sale of newspapers, magazines and notions; may include as a minor portion of the operation the sale of factory-sealed or prepackaged food products or prepared foods such as coffee, tea and rolls.

NOT-FOR-PROFIT CORPORATION — Shall mean a federal tax exempt, nonprofit corporation incorporated in New Jersey. A New Jersey corporation which can demonstrate proof of pending federal tax exempt status shall also be deemed a non-profit corporation for the purposes of this article.

PHARMACY/DRUGSTORE — Any retail establishment primarily engaged in the sale of drugs, cosmetics and devices pursuant to N.J.S.A. title 24; may include as a minor portion of the operation the sale of commercially produced and pre-packaged food products.

RESTAURANT CLASS A — Any food establishment with on-site service to the public and which is permitted to be occupied by more than 80 persons at a time.

RESTAURANT CLASS B — Any food establishment with on-site service to the public and which is permitted to be occupied by 21-80 persons at a time, or any retail food establishment which includes drive-up service.

RESTAURANT/KITCHEN CLASS C — Any food establishment permitted to be occupied by not more than 20 persons at a time.

RISK TYPE 1, RISK TYPE 2, RISK TYPE 3, and RISK TYPE 4 — The characteristics of food establishments as defined in the New Jersey Administrative Code (8:24-1.5).

SEAFOOD — As defined in the New Jersey Administrative Code (2:71-9.2).

SPECIAL IMPROVEMENT DISTRICT — A special improvement district means an area within a municipality designated by municipal ordinance as an area in which a special assessment on property shall be imposed for purposes of promoting the economic and general welfare of the district and the municipality.

TEMPERATURE-CONTROLLED FOR SAFETY (TCS) — A food that requires time and/or temperature for safety to limit pathogenic microorganism growth or toxin formation.

TEMPORARY RETAIL FOOD ESTABLISHMENT — Any retail food establishment which operates at a fixed location for a temporary period of time in connection with a fair, carnival, circus, public exhibition or similar transitory function, including church suppers, picnics or other organizational meetings; includes mobile retail food establishments and mobile agricultural markets, which includes farmers markets and seasonal flea markets.

§ 175-19. Classification of establishments. [Amended 4-15-2026 by Ord. No. 25-069]

A. The classification of each establishment will be determined by the Jersey City Department of Health and Human Services pursuant to § 175-18.

B. Establishments meeting the criteria for more than one classification shall be charged the greater fee. **[Added 8-16-1995 by Ord. No. 95-068]**

C. If an establishment includes more than one classification, the Health Officer or designee may inspect, rate and issue violations and orders on any separate classification, e.g., fish market, butcher or restaurant. **[Added 8-18-1999 by Ord. No. 99-104]**

§ 175-20. License required; application. [Amended 4-15-2026 by Ord. No. 25-069]

A. No person shall operate any food establishment as defined in this article without a license issued by the City. **[Amended 3-11-2015 by Ord. No. 15-026]**

B. Applications for such license shall be submitted to the Department of Health and Human Services. The application shall be upon appropriate forms as the Health Officer shall require.

§ 175-21. License fees. [Amended 4-15-2026 by Ord. No. 25-069]

A. The fee for said license shall be as set forth in chapter 160, Fees and Charges.

B. There shall be no prorating of license fees. Such license fees shall not be refundable. Such license is not transferable. It shall not be displayed in a conspicuous place in the establishment. In the case of farmers' markets, the seasonal market license, defined in chapter 160, subsection 160-1.P(3)(a)[5][c](i), shall be displayed at the manager's table or some other publicly viewable location within the market, and all vendors participating in such farmers' market shall display its seasonal vendor license, defined in chapter 160, subsection 160-1.P(3)(a)[5][c](ii), at its point of sale or other publicly viewable location. **[Amended 3-11-2015 by Ord. No. 15-026]**

C. A license fee or permit fee shall not be required for a business that is operate only occasionally and solely by an individual or individuals, all of whom are under 18 years of age. **[Added 9-10-2020 by Ord. No. 20-064]**

§ 175-22. License term. [Amended 8-16-1995 by Ord. No. 95-068; 3-11-2015 by Ord. No. 15-026; 12-16-2020 by Ord. No. 20-105; 4-15-2026 by Ord. No. 25-069]

All licenses provided for in this article shall be for a term of one year beginning on the date of issuance. Establishments shall renew licenses annually. Failure to comply will result in late fees as set forth in chapter 160.

§ 175-23. Operation without license; failure to renew. [Amended 4-15-2026 by Ord. No. 25-069]

A. Food establishments engaged in operation without a license or which have failed to renew a license after notification from the Department of Health and Human Services shall be subject to punishment as provided in chapter 1, General Provisions, section 1-25.

B. Establishments operating without a license shall be closed pending application and approval of license.

C. Establishments failing to renew their license after the issuance of a summons from the Department of Health and Human Services are subject to forfeiture of license.

§ 175-24. Food handler's course; fee. [Amended 4-15-2026 by Ord. No. 25-069]

A. Pursuant to N.J.A.C. 8:42-3.4(a)5, the Department of Health and Human Services shall maintain surveillance of retail food establishments, food and beverage vending machines and shall provide for, or conduct, training courses for food services supervisors using curricula approved by the Department of Health.

B. A minimum of one manager or supervisor of retail food establishments of any classification must maintain a valid food safety manager certificate (risk 3 & 4), and food handler's certificate (risk 1 & 2) and shall be on the premises during hours of operation. No retail food establishment which has failed to meet this requirement shall receive a license. **[Amended 8-18-1999 by Ord. No. 99-105]**

C. A fee as provided in chapter 160, Fees and Charges, will be charged to cover the costs of each food safety manager and/or handler's course.

§ 175-25. Closure by Health Officer. [Added 8-18-1999 by Ord. No. 99-105; amended 4-15-2026 by Ord. No. 25-069]

A. If an extremely unsanitary condition exists or if the Health Officer has reasonable cause to suspect that any food establishment or any employee thereof is or may be a source of food-borne infection, the Health Officer is authorized to require the immediate closure of the food establishment until the extremely unsanitary condition has been eliminated and/or cause the immediate exclusion of the employee from the food establishment until the employee no longer poses a threat of food-borne infection. **[Amended 3-11-2015 by Ord. No. 15-026]**

B. The Health Officer or delegee, when practical, shall give the owner, manager or employee an opportunity to be heard prior to closure or exclusion. However, when the Health Officer or delegee determines that in order to protect the public health a hearing cannot be afforded prior to closure or exclusion, a hearing shall be held within ten days thereafter.

C. In addition to the authority and powers conferred herein, the Health Officer is authorized to suspend or revoke the license permitting the operation of a food establishment if the holder thereof shall violate any of the provisions of this Code. No suspension or revocation shall take place prior to the license holder having an opportunity to be heard upon at least ten days' notice.

§ 175-26. Inspection of retail food establishments. [Added 8-18-1999 by Ord. No. 99-105; amended 4-15-2026 by Ord. No. 25-069]

A. The Health Officer shall inspect every retail food establishment as necessary. **[Amended 3-11-2015 by Ord. No. 15-026]**

B. The person operating a retail food establishment shall permit access to all parts of the establishment.

§ 175-27. Interference with Division of Health or police. [Added 8-18-1999 by Ord. No. 99-105; amended 3-11-2015 by Ord. No. 15-026; amended 4-15-2026 by Ord. No. 25-069]

No person shall obstruct or any way interfere with the Health Officer and/or their designee or with any police officer in the performance of any duty under this chapter or under any other chapter of this Municipal Code.

§ 175-28. Farmers' markets. [Added 3-11-2015 by Ord. No. 15-026; amended 12-16-2020 by Ord. No. 20-105; 4-15-2026 by Ord. No. 25-069]

A. A market license, as defined in chapter 160, subsection 160-1.P(3)(a)[5][c](i) (hereinafter "seasonal market license") to operate a farmers' markets will only be issued to not-for-profit corporations as defined by section 175-18.

B. Farmers' markets may operate year-round.

C. At least 55 percent of the total volume of all products available for sale must be a farm product harvested or produced within 300 miles of Jersey City. Any vendor whose farm products are not grown within 300 miles of Jersey City shall so indicate with signage displayed by the farm product being sold.

D. No market license shall be issued to operate a farmers' market unless at least 25 percent of the vendors accept supplemental food vouchers (SNAP/EBT, WIC Cash Value Vouchers, and/or FMNP vouchers). Those vendors that accept such vouchers shall so indicate by posting a sign at the point of sale.

E. The Health Officer shall waive the vendor license fee, as set forth in chapter 160, subsection 160-1.P(3)(a)[5][c](ii), for any vendor participating in a farmers' market, which operates in a location deemed by the Health Officer to be a food desert.

F. Non-profit organizations which seek to operate a farmers' markets in a City park must receive additional permission from the Division of Park Maintenance pursuant to subsection 3-71.l(e).

G. A market license to operate a farmers' market within one of the City's designated special improvement districts shall only be issued to the District Management Corporation (DMC).

H. An application to operate a farmers' market shall require proof of general liability insurance from an A.M. Best-rated insurance company in the amount of $1,000,000.00 and must name the City of Jersey City as an additional insured unless waived by the City's Risk Manager.

I. Applications to establish a farmers' market and all supporting documents must be submitted to the Office of Cultural Affairs at least 60 days before the planned opening of the market. **[Amended 4-26-2017 by Ord. No. 17-044]**

J. In addition to having satisfactorily completed the Jersey City Health Division Food Handler's Course, a minimum of one manager or supervisor of the farmers' market may be asked by the Health Officer to demonstrate knowledge of the Minimum Food Safety Requirements for Product Sales at Farmer's Markets as promulgated by the New Jersey Department of Agriculture. A copy of these requirements is available from the Department of Agriculture and shall be available upon request from the City's Health Officer.

K. Starting April 1, 2016, farmers' markets vendors shall not use plastic bags to dispense their products.

Chapter 178

FUEL OIL DELIVERIES

§ 178-1. Emergency deliveries to residential property.

§ 178-2. Engaging fuel oil dealers; administration.

§ 178-3. Billing to landlord or municipality.

§ 178-4. Landlord's negligence or failure to act; civil penalty.

§ 178-5. Nonapplicability.

[HISTORY: Adopted by the Council of the City of Jersey City 5-27-1982 by Ord. No. MC-167. Amendments noted where applicable.]

GENERAL REFERENCES

Housing accommodations — See Ch. 188.

§ 178-1. Emergency deliveries to residential property.

This chapter authorizing the City of Jersey City to arrange for emergency fuel oil deliveries to residential properties in emergencies is enacted under the authority of the Emergency Fuel Oil Delivery Act, L. 1980, c. 170, N.J.S.A. 26:3-31.4 et seq.

§ 178-2. Engaging fuel oil dealers; administration. [Amended 9-25-1986 by Ord. No. C-297]

A. **[Amended 8-13-1997 by Ord. No. 97-052]** Whenever necessary to protect the health and safety of residential tenants, the Director of the Division of Construction Code Official may act as an agent for a landlord in engaging a fuel oil dealer to deliver fuel oil at a reasonable price per gallon to refire the burner to restore proper heating in a residential property containing six or more dwelling units under the following conditions:

(1) The tenant has lodged a complaint with the Division of Construction Code Official charging the landlord with failure to provide adequate heat and the Director of the Division of Construction Code Official has issued a summons for violation of Chapter 188, Housing Accommodations; and

(2) The following periods have elapsed since the tenant lodged his or her complaint: either 12 hours have elapsed if the outside air temperature is between 33° and 55° F., or at least four hours if the outside air temperature is 32° F. or lower.

(3) The tenant provides the Director of the Division of Construction Code Official with satisfactory evidence that he or she has made a bona fide effort to notify the landlord of the lack of heat and the landlord has failed to take appropriate action.

B. Records of all emergency fuel deliveries shall be supplied to the Director of the Division of Construction Code Official, Judge of the Municipal Court of Housing, City Clerk and Business Administrator. **[Amended 8-13-1997 by Ord. No. 97-052]**

C. For the purpose of this chapter, "lack of heat" means less heat than required by N.J.S.A. 26:3-31.

§ 178-3. Billing to landlord or municipality.

Any fuel oil dealer who delivers fuel oil or refires the burner in accordance with § 178-1 may bill the landlord directly, or the city may issue a voucher to the fuel oil dealer who delivered the fuel oil for the amount due on the fuel oil delivered and the service charge for refiring the burner, if any. The voucher shall be paid in the manner provided for the approval and payment of claims pursuant to N.J.S.A. 40A:5-17.

§ 178-4. Landlord's negligence or failure to act; civil penalty.

A. Any landlord or his or her agent whose negligence or failure to act results in municipal action pursuant to § 178-2 shall be liable to a civil penalty of not more than $300 for each affected dwelling unit in residential property. This penalty shall be recoverable by the City of Jersey City in a civil action by a summary proceeding under the Penalty Enforcement Law (N.J.S.A. 2A:58-1 et seq.). Any action to collect such penalty shall be brought in the Superior Court, County District Court or Municipal Court.

B. Any landlord or agent who has failed to provide heating fuel oil in violation of this chapter shall also be liable to reimburse the city for the actual costs incurred for fuel oil and a service charge for refiring the burner and for reasonable attorney's fees and costs.

§ 178-5. Nonapplicability.

A. The provisions of this chapter shall not apply to owner-occupant residential rental properties containing five units or less.

B. The provision of emergency fuel oil authorized by this chapter shall be subject to the availability of funds appropriated for this purpose by the City Council. The amount so appropriated shall not exceed $15,000 in any budget year.

Chapter 180

GREEN BUILDING STANDARDS

ARTICLE I
Green Building Initiative for Municipal Projects

§ 180-1. Definitions
§ 180-2. Application of LEED®-NC Green Building Rating System to Municipal Projects
§ 180-3. Application of LEED®-EB Green Building Rating System to Existing Municipal Buildings

ARTICLE II
Green Building Incentives

§ 180-4. Green Building Incentives.

[HISTORY: Adopted by the Council of the City of Jersey City 1-28-2009 by Ord. Nos. 09-001 and 09-002. Amendments noted where applicable.]

ARTICLE I
Green Building Initiative for Municipal Projects*

§ 180-1. Definitions
[Added 1-28-2009 by Ord. No. 09-001]

"USGBC" is hereby defined as the U.S. Green Building Council, a non-profit organization located at 1015 18th Street, N.W., Suite 508, Washington, DC 20036.

"LEED® Standards" are hereby defined as the "Leadership in Energy & Environmental Design" standards and guidelines, as amended and supplemented by USGBC, which are on file with the Office of the City Clerk of the City of Jersey City.

"LEED® Accredited Professional" means a person who has been designated a LEED® accredited professional by the Green Building Certification Institute.

"Construction" is defined as the erection of a new principal or accessory building or structure on a lot or property; alterations and the act of creating an addition to an existing building.

"Building" is defined as a structure built, erected and framed of component structural parts, designed for the housing, shelter, enclosure and support of individuals, animals, or property of any kind.

"Structure" is defined as that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built or composed of parts joined together in some definite manner and permanently attached to the ground.

*__Editor's note__—Ord. No. 09-001, §§ 1—3, adopted January 28, 2009, did not specifically amend the Code; hence, inclusion herein as Art. I, §§ 180-1—180-3, was at the discretion of the editor.

"Municipal Project" or "Project" means construction of New Buildings owned by the City of Jersey City, renovations to buildings owned by the City of Jersey City, or construction or renovation of other buildings funded more than fifty percent (50%) by the City of Jersey City, where cost of such construction or renovation meets or exceeds one million dollars ($1,000,000.00), as calculated on the date of enactment of this ordinance and as indexed for inflation using the Construction Consumer Price Index, as reported by Engineering News Record.

"New Building" means any building not previously erected prior to construction.

"Green building" means the design, construction, and operation of buildings that mitigates the environmental, economic, and social impact of buildings.

"Historic building" means a building that is listed in or formally determined eligible for the National Register of Historic Places, the New Jersey Register of Historic Places, Buildings in Historic Districts, or Buildings identified in an adopted historic resources survey as eligible for designation.

"Renovation" means any rehabilitation, repair, remodeling, change, addition or modification to an existing building.

"LEED®-NC Certified Rating" means that a building or other project that has earned twenty-six (26) to thirty-two (32) points as such points as defined in the LEED® Standard entitled "LEED® for New Construction and Major Renovations" as amended and supplemented, and has satisfied all prerequisites as specified therein, thus meeting a "certified level."

"LEED®-NC Silver Rating" means that a building or other project that has earned thirty-three (33) to thirty-eight (38) points as such points as defined in the LEED® Standard entitled "LEED® for New Construction & Major Renovations" as amended and supplemented, and has satisfied all prerequisites as specified therein, thus meeting a "Silver Level."

"LEED®-EB Gold Rating" means that a building or other project that has earned thirty-nine (39) to fifty-one (51) points as such points as defined in the LEED® Standard entitled "LEED® for Existing Buildings" as amended and supplemented, and has satisfied all prerequisites as specified therein, thus meeting a "Gold Level."

"LEED®-NC Platinum Rating" means that a building or other project that has earned fifty-two (52) to sixty-nine (69) points as such points as defined in the LEED® Standard entitled "LEED® for New Construction and Major Renovations" as amended and supplemented, and has satisfied all prerequisites as specified therein, thus meeting a "Platinum Level."

ENERGY STARTM is hereby defined as those products which meet the energy efficiency standards set forth by the United States Environmental Protection Agency (EPA) and the U.S. Department of Energy for compliance with its ENERGY STAR® program.

§ 180-2. Application of LEED@-NC Green Building Rating System to Municipal Projects
[Added 1-28-2009 by Ord. No. 09-001]

(a) The "Leadership in Energy & Environmental Design (LEED®) Green Building Rating System and guidelines are herein incorporated by reference, as amended and supplemented, and as may be found by contacting the U.S. Green Building Council, 1015 18th Street, N.W., Suite 508, Washington, DC 20036, and as are on file with the Office of the City Clerk for the City of Jersey City.

(b) Subject to sections (e) and (f) below, there is hereby adopted as the minimum standard for each Municipal Project the LEED®-NC Silver Rating. For all such Municipal Projects, A LEED® Accredited Professional must certify each Municipal Project as having achieved, at a minimum, the LEED®-NC Silver Rating.

(c) Subject to sections (e) and (f) below, all municipal projects must, in their design and construction, earn the U.S. EPA's ENERGY STARTM Building Label.

(d) Except where waived pursuant to sections (e) and (f) below, specifications and terms for all bids, contracts, or agreements for those municipal projects which require public advertisement for bids under the Local Public Contracts Law, N.J.S.A. 40A:ll-l et seq., shall be modified to require adherence at a minimum to the LEED®-NC Silver Rating, and ENERGY STARTM Building Label requirements above.

(e) The Chief Architect of the City of Jersey City shall review each municipal project and determine whether or not the total cost of adhering to the LEED®-NC Silver Rating and achieving the ENERGY STARTM building label on that project shall exceed by twenty percent (20%) of the cost anticipated in the absence of the LEED® and ENERGY STARTM requirements, in which case he or she shall recommend to the Business Administrator of the City of Jersey City such modifications for amendments to the project necessary to assure that the costs remain within the amount appropriated for such project, up to and including waiver of the LEED®-NC Silver Rating requirement, the ENERGY STARTM Building Label Requirement or both.

(f) Where cost of the project's adherence to the LEED®-NC Silver Rating and the ENERGY STARTM Building Label Requirement exceeds by twenty percent (20%) of the cost otherwise anticipated in the absence of its application, the Business Administrator is hereby empowered to waive application of either or both requirements for the entire project or for any specifications or portions thereof as he or she deems necessary and appropriate.

(g) Where the Business Administrator has waived application of LEED® Silver Rating or the ENERGY STARTM Building Label requirement pursuant to section (f) above, A LEED® Accredited Professional must certify each Municipal Project as having achieved, at a minimum, the LEED®-NC Certified Rating.

(h) The Business Administrator of the City of Jersey City shall select, from among the next three (3) municipal projects, one (1) project which will adhere to the LEED®-NC Platinum Rating and achieve the ENERGY STARTM Building Requirement. That project will be viewed as a pilot project and will

be evaluated by the City Chief Architect who will make further recommendations to the Municipal Council of the City of Jersey City, concerning the feasibility of application of the LEED® Platinum Rating to future municipal projects.

§ 180-3. Application of LEED@-EB Green Building Rating System to Existing Municipal Buildings [Added 1-28-2009 by Ord. No. 09-001]

(a) Subject to sections (c) and (d) below, there is hereby adopted as the minimum standard the LEED®-EB Silver Rating. All existing municipal buildings must be evaluated by a LEED® Accredited Professional to determine if LEED Standards may be applied to achieve, at a minimum, the LEED®-EB Silver Rating.

(b) The Chief Architect of the City of Jersey City, in consultation with Business Administrator, shall determine the estimated cost of modifying the existing municipal building and implementing the operational procedures necessary to achieve the LEED®-EB Silver Rating.

(c) The Business Administrator may waive application of the LEED®-EB Silver Rating requirement for the Existing Municipal Buildings where:

(i) The total estimated cost of modifying the existing municipal building and devising and implementing the operational procedures necessary to achieve the LEED®-EB Silver Rating exceeds either one percent (1%) of the building's current market value or twenty thousand dollars ($20,000.00).

(ii) Modification of the existing municipal building or implementation of operational procedures necessary to achieve the LEED®-EB Silver Rating would be impracticable, or would materially compromise the health, safety, or general welfare of the public.

(d) Where the Business Administrator has waived application of LEED®-EB Silver Rating requirement pursuant to section (c) above, A LEED® Accredited Professional must evaluate each existing municipal building to determine if LEED Standards may be applied to achieve, at a minimum, the LEED®-EB Certified Rating.

(e) The Business Administrator may waive application of the LEED®-EB Certified Rating requirement for the existing municipal buildings where:

i. The total estimated cost of modifying the existing municipal building and devising and implementing the operational procedures necessary to achieve the LEED®-EB Certified Rating exceeds either one percent (1%) of the building's current market value or twenty thousand dollars ($20,000.00).

ii. Modification of the existing municipal building or implementation of operational procedures necessary to achieve the LEED®-EB Certified Rating would be impracticable, or would materially compromise the health, safety, or general welfare of the public.

(f) Exemption for historic buildings. The provisions of this section shall not apply to any historic building; however, green building strategies should be employed where possible.

ARTICLE II
Green Building Incentives*

§ 180-4. Green Building Incentives.
[Added 1-28-2009 by Ord. No. 09-002]

1. The City of Jersey City shall promote sustainable green building practices in accordance with U.S. Green Building Council (USGBC) Leadership in Energy and Environmental Design (LEED®) guidelines in the municipality through the methods provided in this section. The LEED® standards are incorporated herein by reference, as amended and supplemented, and may be found at http://www.usgbc.org, or by contacting the U.S. Green Building Council, 1015 18th Street, NW, Suite 508, Washington, DC 20036.

2. Applications for development are encouraged, but are not required, to comply with LEED® criteria.

3. Only projects involving an application for LEED® accreditation meeting a minimum of twenty-six (26) points for LEED® - New Construction, and thirty-two (32) points for LEED® - Existing Buildings on the LEED® rating system, or the minimum rating to be designated an LEED® Certified development, whichever is greater, shall be eligible for the incentives in this section.

4. Review of applications proposing to meet a minimum accreditation level of LEED® Certified shall be expedited by City of Jersey City staff by receiving priority review before other applications, except where the other applications are for affordable or workforce housing.

5. A refund of building permit and land development application fees required and shall be provided upon the applicant's written request, accompanied by submission of proof of LEED® certification by the USGBC, within one (1) year of such certification, as follows:

    1. LEED® Platinum = Twenty-five percent (25%) refund of fees;

    2. LEED® Gold = Twenty percent (20%) refund of fees;

    3. LEED® Silver = Fifteen percent (15%) refund of fees; and

    4. LEED® Certified = Ten percent (10%) refund of fees.

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*__Editor's note__—Ord. No. 09-002, § 1, adopted January 28, 2009, did not specifically amend the Code; hence, inclusion herein as Art. II, § 180-4, was at the discretion of the editor.

Chapter 181

ENERGY AUDITS

§ 181-1. Energy audits.

§ 181-1. Energy audits. [Added 07-15-2015 by Ord. No. 15-089]

In the interest of reducing the City's overall energy consumption and reduce its greenhouse gas emissions, the City shall undertake an audit of all City-owned facilities and all City-owned vehicles and equipment every three (3) years to identify what energy conservation measures can be implemented to realize and maximize energy savings and energy efficiency.

A. The City may engage the services of a competent consultant to conduct the audit pursuant to the Local Public Contracts Law, N.J.S.A. 40A: 11-4.1 et seq.

B. The first energy audit shall be completed within one (1) year of the passage of Ordinance No. 15-089 and next audit shall be completed three (3) years after the date of the first audit's completion. All subsequent audits shall be completed on the third anniversary of the previous audit.

C. The City need not conduct an audit if the total cost of the audit exceeds fifty thousand dollars ($50,000.00).

Chapter 182

HEALTH AND SANITATION*

ARTICLE I
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§ 182-3. Construal of provisions.
§ 182-4. Definitions.

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Article IV
Rodent and Vermin Infestation; Ragweed, Poison Ivy, High Weeds and Overgrown Brush and Grass

§ 182-10. Declared nuisances; bait stations required around demolition and construction sites.
§ 182-11. Failure to comply; abatement by city.
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§ 182-14. Violations and penalties.

ARTICLE V
Childcare/Lead Testing

§ 182-15. Lead testing notification program for day care centers.

ARTICLE VI
Portable Lavatories

§ 182-16. Maintenance and cleaning of portable lavatories.

***History**—Adopted by the Council of the City of Jersey City May 4, 1971, as Ch. 12 of the 1971 Jersey City Code, as readopted September 19, 1978, by Ord. No. S-128; amended in its entirety June 14, 1995, by Ord. No. 95-050. Subsequent amendments noted where applicable.

Cross references—Division of Environmental Health; functions, § 3-105; animals, ch. 90; food-handling establishments, Ch. 175; property maintenance, Ch. 254; sewers, Ch. 281; solid waste, Ch. 287.

ARTICLE I

General Provisions

§ 182-1. Title.

This chapter shall be known and may be cited as the "Public Health and Sanitation Code," hereinafter referred to as the "Health Code."

State law reference—For statutory provisions dealing with health-related topics, see Title 26 of the Revised Statutes and the New Jersey State Sanitary Code.

§ 182-2. Administration and enforcement. [Amended 11-23-1999 by Ord. No. 99-170; amended 9-10-2003 by Ord. No. 03-091]

A. The administration and enforcement of this Health Code shall be vested under the authority of the Department of Health and Human Services and the jurisdiction of said Department shall embrace all sanitation upon any premises. **[Amended 6-25-2025 by Ord. No. 25-070]**

B. The certified animal control officer, appointed by the governing body pursuant to N.J.S.A. 4:19-15.16b, shall, in addition to enforcing and abiding by the provisions of N.J.S.A. 4:19-15.16, have the power and authority, within the jurisdiction of the City of Jersey City, to do the following:

1. Enforce all laws or ordinances enacted for the protection of animals, including, but not limited to, animal control, animal welfare and animal cruelty laws of the State and ordinances of the City;

2. Investigate and sign complaints concerning any violation of an animal control, animal welfare or animal cruelty law of the State or ordinance of the City;

3. Act, by virtue of the officer's appointment or employment and in addition to any other power and authority, as an officer for the detection, and summonsing of offenders against the animal control, animal welfare or animal cruelty law of the State or ordinance of the City;

Upon request for assistance by a municipality or other entity that does not employ, or contract for, the certified animal control officer, the certified animal control officer described above may, within the jurisdiction of that municipality or other entity making the request, exercise the powers and authority granted in this section.

The certified animal control officer described above who signs a complaint, issues a summons, makes an arrest, or otherwise acts pursuant the authority granted in this section shall forward within five business days a copy of that complaint, summons, arrest warrant or report to the New Jersey Society for the Prevention of Cruelty to Animals and shall forward a report of any related court action within 30 calendar days of final disposition.

§ 182-3. Construal of provisions.

This Health Code is hereby declared to be remedial and shall be construed to secure the beneficial interest and purposes thereof, which are public safety, health and welfare, for improved health and sanitation.

§ 182-4. Definitions. [Amended 6-25-2025 by Ord. No. 25-070]

As used herein, the following terms shall have the meanings indicated:

DIVISION OF ENVIRONMENTAL HEALTH — The Division of Environmental Health, Department of Health and Human Services, or the Board of Health wherever that term may appear.

HEALTH OFFICER — A Health Officer is generally the administrative officer of a municipal, regional, county, or contractual health agency. This individual is responsible for evaluating health problems, planning appropriate activities to address these health problems, developing necessary budget procedures to finance these activities, and directing staff to carry out these activities efficiently and economically.

PERMIT or LICENSE — A permit or license shall be construed to mean the permission in writing of the Health Officer or his or her authorized agent, issued in accordance with the provisions of law or ordinance, to carry on a certain activity, except that the licenses required by Chapter 122, Circuses, Carnivals and Public Assemblages, and Chapter 287, Solid Waste, Article I, shall be issued in accordance with the provisions of said chapters.

ARTICLE II

Body Art [Amended 8-13-2003 by Ord. No. 03-101]*

§ 182-5. Purpose. [Amended 6-25-2025 by Ord. No. 25-070]

The purpose of this article is to protect the citizens of the City of Jersey City from the possible spread of infectious diseases, particularly hepatitis, and to prevent allergic reactions from body art procedures. All body art procedures administered in Jersey City shall be conducted in accordance and subject to the relevant portions of the New Jersey State Sanitary Code as set forth in N.J.A.C. 8:27-1 through 8:27-11.5.

§ 182-6. Definitions. [Amended 6-25-2025 by Ord. No. 25-070]

As used in this article, the following terms shall have the meanings indicated:

BLOODBORNE PATHOGENS STANDARD — means 29 CFR 1910.1030, and includes interpretations thereof, established in applicable "Standard Interpretations" that the United States Department of Labor, Occupational Safety and Health Administration issues.

BODY ART — means the practice of physical body adornment using the following techniques but does not include ear piercing: 1. Body piercing; 2. Tattooing; and 3. Permanent cosmetics.

BODY ART CLASS A — license includes tattoo with body piercing. See Ch. 160 for fee.

***Editor's note—**Ord. No. 25-070, adopted June 25, 2025, amended the Code by repealing former Art. II, §§ 182-5—182-24, and renumbering former Arts. III—VII as Arts. II—VI, and former §§ 182-25—182-36. Former Art. II pertained to milk licenses, and carried no legislative history. Additionally, Ord. No. 25-070 changed the title of Art. II.

BODY ART CLASS B — license includes tattoo without body piercing, see Ch. 160 for fee. Body piercing means puncturing or penetration of the skin of a person using pre-sterilized single use needles and the insertion of pre-sterilized or disinfected jewelry or other adornment thereto in the opening.

BODY ART CLASS C — license includes permanent cosmetics, see Ch. 160 for fee. Microblading means a permanent cosmetics procedure performed by a qualified permanent cosmetics practitioner or apprentice at a permanent cosmetics establishment, using a configuration of needles attached to a handle, often described as a blend between a scalpel and a fine-toothed comb, to manually create small cuts that resemble eyebrow hairs, which are then filled in with pigment to achieve the appearance of fuller brows, and as further described in the National Environmental Health Association, Policy Statement on Microblading

BODY ART ESTABLISHMENT — means any place or premises, whether public or private, temporary or permanent in nature or location, where the practices of body art, whether or not for profit, are performed.

PERMANENT COSMETICS OR MICROPIGMENTATION — means the intradermal implanting of inert pigments, colors, and/or dyes, which results in permanent alteration of tissue to gain a cosmetic effect and includes the form of micropigmentation known as microblading.

TATTOO — Any method placing ink or other inert pigment into or under the skin or mucosa by the aid of needles or other instrument used to puncture the skin, resulting in permanent coloration of the skin or mucosa. This includes all form of permanent cosmetics.

§ 182-7. Body art license required; annual fee. [Amended 6-25-2025 by Ord. No. 25-070]

No person shall perform body art procedures within the City without a license issued by the Jersey City Department of Health and Human Services. Such license shall be applied for and approved or denied pursuant to N.J.A.C. 8:27-2.1 et seq.

The annual fee for a body art license shall be as set forth in Chapter 160 of the Jersey City Code. Applicants may also be subject to any reinspection or late fees as applicable, set forth in § 160-1(Q)(2).

§ 182-8. Body art regulations. [Amended 6-25-2025 by Ord. No. 25-070]

A person possessing a body art license shall conduct such operation pursuant to the regulations as set forth in Title 8, Chapter 27, Body Art Procedures, of the New Jersey Administrative Code which is hereby adopted in full.

§ 182-8.1. Violations and penalties. [Amended 6-25-2025 by Ord. No. 25-070]

Any person found guilty of violating this article shall be punishable as provided in Chapter 1, General Provisions, § 1-25.

ARTICLE III

Smoking*

§ 182-9. Definitions. [Added 10-9-2013 by Ord. No. 13-110; amended 6-25-2025 by Ord. No. 25-070]

A. For the purposes of this chapter, the following terms shall have the following meanings:

CITY PARK — any City-owned or leased property designated for public use, including, but not limited to, public playgrounds, baseball diamonds, soccer fields, bleachers and spectator areas, trails, picnic areas, gazebos and other areas set up for active or passive recreation, as well as the streets, parking lots and sidewalks therein.

INTERNATIONAL NO-SMOKING SYMBOL — a pictorial representation of a burning cigarette enclosed in a red circle with a diagonal red line through its cross section.

SMOKING — the burning of, inhaling from, exhaling the smoke from, or the possession of a lighted cigar, cigarette, pipe or any other matter or substance which contains tobacco or any other matter that can be smoked.

§ 182-9.1. Smoking prohibited in city parks. [Added 10-9-2013 by Ord. No. 13-110; amended 6-25-2025 by Ord. No. 25-070]

A. Smoking shall be prohibited in all City parks and within a 35-foot radius of all entrances to City parks. Signs with the words "No Smoking" or the international no-smoking symbol, shall be clearly and conspicuously posted at the entrances to all City parks.

§ 182-9.2. No-smoking signs. [Added 10-9-2013 by Ord. No. 13-110; amended 6-25-2025 by Ord. No. 25-070]

All signs shall be located so as to be clearly visible to the public and shall contain letters at least one inch in height stating "No Smoking" or the international no-smoking symbol. The letters or symbol should contrast by color with the sign indicating that smoking is prohibited in City parks and within a 35-foot radius of all entrances to City parks. The sign shall also indicate that violators are subject to a fine.

§ 182-9.3. Enforcement. [Added 10-9-2013 by Ord. No. 13-110; amended 6-25-2025 by Ord. No. 25-070]

This article shall be enforced by the Public Safety Director or his designee or any other person authorized by this Code or under State law.

§ 182-9.4. Violations and penalties. [Added 10-9-2013 by Ord. No. 13-110; amended 6-25-2025 by Ord. No. 25-070]

***Editor's note**—Ord. No. 13-110, adopted October 9, 2013, amended the Code by, in effect, repealing former Art. IV, § 182-29, and adding a new Art. IV. Former Art. IV pertained to similar subject matter, and carried no history note.

Note—Former Art. IV. See editor's note, Art. II.

State law reference—Smoking, N.J.S.A. 2C:33-13.

A. A warning may be issued for the first offense.

B. Any person who is convicted of a violation of any section of this chapter shall be punishable as provided in Chapter 1, General provisions, § 1-25.

§ 182-9.5. Regulation of smoking in multiple dwellings. [Added 8-18-2021 by Ord. No. 21-052; amended 6-25-2025 by Ord. No. 25-070]

A. The owner of a multiple dwelling as defined in § 254-4 shall adopt a policy addressing the following:

1. Smoking in all indoor locations of the multiple dwelling as not otherwise prohibited with N.J.S.A. § 26:3D-55 et seq., including common areas and dwelling units; and

2. Outdoor areas of the premises, including common courtyards, rooftops, balconies, and patios, and any outdoor areas connected to dwelling units.

B. The smoking policy shall not be binding on a tenant renting or leasing a dwelling unit during the term of the lease, sublease, or other rental agreement in effect at the time of the adoption of such smoking policy, unless otherwise provided in such lease, sublease, or other rental agreement.

C. The smoking policy shall apply to all tenants of a multiple dwelling, including invitees of tenants, and any other person on the premises.

§ 182-9.6. Notice of smoking policy. [Added 8-18-2021 by Ord. No. 21-052; amended 6-25-2025 by Ord. No. 25-070]

A. Upon adoption of a smoking policy, the owner of a multiple dwelling shall provide a copy of the building's smoking policy to all tenants on an annual basis, and post the smoking the policy in the locations and in the manner specified under N.J.S.A. 26:3D-61.

B. The policy shall be incorporated into any agreement to rent or lease a dwelling unit in such a building.

§ 182-9.7. Regulation of smoking within a condominium, homeowners, or cooperative association. [Added 8-18-2021 by Ord. No. 21-052; amended 6-25-2025 by Ord. No. 25-070]

A. The building's smoking policy shall be incorporated into the bylaws, master deed, or other relevant governing document.

B. An owner or tenant who is renting or leasing a dwelling unit shall incorporate the building's smoking policy into any agreement to rent or lease the dwelling unit to a subtenant or sublessee.

§ 182-9.8. Material changes of smoking policy. [Added 8-18-2021 by Ord. No. 21-052; amended 6-25-2025 by Ord. No. 25-070]

The owner of a multiple dwelling shall provide notification in writing to all tenants of any material change to the smoking policy, and post, in a prominent location within such dwelling, any material change to the smoking policy.

§ 182-9.9. Document retention. [Added 8-18-2021 by Ord. No. 21-052; amended 6-25-2025 by Ord. No. 25-070]

A. The owner of a multiple dwelling shall make available for inspection copies of the following:

1. The disclosure of the smoking policy disclosed to all tenants required by § 182-29.5(A) of this section; and

2. Each notification of a material change made within the past year pursuant to § 182.29.9 of this section.

ARTICLE IV

Rodent and Vermin Infestation; Ragweed, Poison Ivy, High Weeds and Overgrown Brush and Grass [Amended 11-23-1999 by Ord. No. 99-170]*

§ 182-10. Declared nuisances; bait stations required around demolition and construction sites. [Amended 7-18-2018 by Ord. No. 18-079; amended 6-25-2025 by Ord. No. 25-070]

A. The infestation of rodents and vermin and the growth or existence of ragweed, poison ivy, high weeds and overgrown brush and grass in or on any building, structure, plot of land, lot, street, highway, right-of-way or any other public or private place is declared to be a nuisance and detrimental to public health.

B. No owner, tenant or occupant of any building, structure, plot of land, lot, street, highway, right-of-way or any other public or private place shall cause, allow or permit rodent or vermin infestation, ragweed, poison ivy, high weeds and overgrown brush and grass to grow or exist thereon.

C. Prior to the issuance of a construction or demolition permit, the applicant shall have provided at the construction or demolition site sufficient tamper-proof, all-weather bait stations with a tier 1 rating from the Federal Environmental Protection Agency installed around the perimeter during construction or demolition. During the course of construction or demolition, bait stations shall be checked and restocked with rodent bait blocks by a licensed exterminator on a regular basis throughout the course of construction until a certificate of occupancy is issued or all debris from demolition is removed from the site. A licensed exterminator shall submit quarterly compliance reports to the Division of Health on behalf of the owner throughout the duration of construction or demolition. The report shall attest to the dates and times that the bait stations were checked and restocked.

As used in this subsection, the terms "owner," "permit" and "certificate of occupancy" shall have the meanings defined in the Uniform Construction Code Act, N.J.S.A. 52:27D-119 et seq.

D. Compliance with subsection C shall be considered a "prior approval" as defined at N.J.A.C. 5:23-1.4.

Note—N.J.A.C. 5:23-15(a)(5) provides that an application for a construction or demolition permit shall include a statement of compliance with all "prior approvals."

***Note**—Former Art. V. See editor's note, Art. II.

Cross references—Property maintenance, Ch. 254; solid waste, Ch. 287, Art. I.

E. The construction official shall assure that a copy of Section 182-30 is available to the public with the forms required by the Uniform Construction Code Act*.

F. The requirement of section 182-30 shall not apply to ordinary maintenance to structures as defined under N.J.A.C. 5:23-2.7, which may be made without filing a permit application with or giving notice to the construction official.

§ 182-11. Failure to comply; abatement by city. [Amended 6-25-2025 by Ord. No. 25-070]

A. Whenever a nuisance, as declared by this article, is found in or on any building, structure, plot of land, lot, right-of-way or any other private premises or place, notice in writing shall be given to the owner thereof to remove or abate the same within such time as specified in the notice, but not less than five days from the date of service of such notice unless, in the case of rodent or insect infestation, the Health Officer or designee determines in writing that such infestation is an imminent danger to health. A duplicate of the notice shall be left with one or more of the tenants or occupants of the premises or place. If the owner resides out of the state or cannot be so notified speedily, such notice shall be left at that place or premises with the tenant or occupant thereof or posted on the premises, and such action shall be considered proper notification to the owner, tenant or occupant thereof.

B. If the owner, tenant or occupant upon being so notified does not comply with such notice within the time specified therein and fails to remove or abate such nuisance, the Division of Health shall proceed to abate the nuisance or may cause it to be removed or abated in a summary manner by such means as the Division of Health shall deem proper.

§ 182-12. Recovery of costs. [Amended 6-25-2025 by Ord. No. 25-070]

The Division of Health may institute an action at law to recover costs incurred by it in the removal or abatement of any nuisance as defined above. Action may be brought against any person who has caused or allowed such nuisance to exist or from any owner, tenant or occupant of premises who, after notice and notification, fails to remove and abate the nuisance within the time specified in the notice.

§ 182-13. Enforcement. [Amended 6-25-2025 by Ord. No. 25-070]

The provisions of this article shall be enforced by the Department of Health and Human Services, its agents or employees, unless otherwise provided herein.

§ 182-14. Violations and penalties. [Amended 6-25-2025 by Ord. No. 25-070]

In addition to recovery of costs incurred in the removal or abatement of a nuisance as described above, any person who violates, refuses or neglects to comply with the provisions of this article, unless otherwise herein specified, shall be punished as provided in Chapter 1, General Provisions, § 1-25.

ARTICLE V

Childcare/Lead Testing†

Childcare centers provide care for six or more children below 13 years of age who attend less than 24 hours a day. Childcare centers are required by State law to be licensed. See Chapter 160, Fees. **[Added 6-25-2025 by Ord. No. 25-070]**

*See N.J.A.C. 5-23:4.

†**Note**—Former Art. VI. See editor's note, Art. II. In addition to renumbering, Ord. No. 25-070 amended the title of Art. V.

§ 182-15. Lead testing notification program for day care centers. [Added 4-23-2008 by Ord. No. 08-048; amended 6-25-2025 by Ord. No. 25-070]

A. Day care centers.

1. A lead testing notification program for all day care centers licensed by the State of New Jersey pursuant to N.J.S.A. 30:5B-3 is hereby established.

2. The owner or operator of a day care center shall be required to notify the parents or guardians of all children enrolled at the child care center that the State of New Jersey will provide free lead testing to children who are uninsured or underinsured.

3. The owner or operator of a day care center shall be required to notify the parents or guardians of children enrolled at the child care center with health insurance that all primary care physicians are required to screen children for lead.

4. The owner or operator of a day care center shall have the notice filed in the child's record on or before October 1 of each year and made readily available to the Jersey City Department of Health auditors during their annual audit.

ARTICLE VI

Portable Lavatories*

§ 182-16. Maintenance and cleaning of portable lavatories. [Added 10-21-2020 by Ord. No. 20-090; amended 6-25-2025 by Ord. No. 25-070]

A. Any portable lavatory maintained in or in connection with any mobile or construction worksite or within any park, playground or outdoor entertainment venue shall be kept clean at all times and shall be cleaned at least once each week.

B. Such cleansing at a minimum shall include:

1. Removing the waste inside the tank of the portable toilet;

2. Cleaning the inside of the portable toilet to prevent mold accumulating, and stop bacteria and virus developing;

3. Application of deodorizing agent to prevent odor and the spread of bacteria and viral matter;

4. Restocking all essential consumables such as hand towels, soap and sanitizer.

C. The name, address and telephone number of the person responsible for the maintenance of a public lavatory shall be affixed to the entrance of the lavatory together with the date on which the lavatory was last maintained in accordance with subsection B.

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*Note—Former Art. VI. See editor's note, Art. II. In addition to renumbering, Ord. No. 25-070 amended the title of Art. V.

Chapter 187

INCLUSIONARY ZONING*

§ 187-1. Purpose.
§ 187-2. Definitions.
§ 187-3. Applicability and exemptions.
§ 187-4. Affordable housing set-aside.
§ 187-5. Additional standards for affordable housing.
§ 187-6. Tier map.
§ 187-7. Compliance.
§ 187-8. Administrative fee.
§ 187-9. Violations.
§ 187-10. Severability.
§ 187-11. Inconsistencies.
§ 187-12. Effective date and scope.

§ 187-1. Purpose. [Added 12-15-2021 by Ord. No. 21-077]

The purpose of this chapter is to create mixed income housing through new construction to assist the City in promoting the creation of Inclusionary Developments and Affordable Housing as the City grows and attracts new market-rate residential development.

§ 187-2. Definitions. [Added 12-15-2021 by Ord. No. 21-077]

AFFORDABLE HOUSING — residential housing that is restricted for occupancy by households whose combined annual income for all members does not exceed 80 percent of the median income. This term shall refer to the broad classification, and not be confused with more specific terms that define different income divisions, such as very-low-income, low-income, and moderate-income.

APPROVING AUTHORITY — the Zoning Board of Adjustment or the Planning Board, whichever land use board has jurisdiction over the subject application.

CONVERTED HOTEL UNITS — that portion of a proposed or existing Development which seeks to convert or change hotel units to residential units in accordance with the provisions herein, the Jersey City Land Development Ordinance, or any applicable redevelopment plan. **[Added 11-12-2025 by Ord. No. 25-108]**

DEVELOPER — any person, partnership, association, entity, company or corporation that is the legal or beneficial owner or owners of a lot or any land proposed to be included in a proposed development including the holder of an option to contract or purchase, or other person having an enforceable proprietary interest in such land.

DEVELOPMENT — the division of a parcel of land into two or more parcels, the construction, redevelopment, reconstruction, conversion, structural alteration, relocation, or enlargement of any use or change in the use of any building or other structure, or of any mining, excavation or landfill, and any use or change in the use of any building or other structure, or land or extension of use of land.

***Editor's note**—Ord. No. 21-077, adopted December 15, 2021, amended the Code by repealing former Ch. 187, §§ 187-1—187-10, and added a new Ch. 187. Former Ch. 187 pertained to similar subject matter, and derived from Ord. No. 20-089, adopted October 21, 2020.

FHA — the Fair Housing Act of 1985, P.L. 1985, c. 222 (N.J.S.A. 52:27D-301 et seq.) as has been subsequently amended.

INCLUSIONARY DEVELOPMENT — a development that contains both affordable housing units and market-rate housing units. This term includes, but is not necessarily limited to: new construction, the conversion of a non-residential structure to residential and the creation of new affordable units through the reconstruction of a vacant residential structure.

LOW-INCOME HOUSEHOLD — a household with a total gross annual household income equal to 50 percent or less of the median household income.

LOW-INCOME UNIT — a restricted unit that is affordable to a low-income household.

MARKET-RATE UNITS — housing not restricted to very-low-, low-, and moderate-income households that may sell or rent at any price.

MEDIAN-INCOME — the median income by household size for Region 1 (Hudson County's region), as further defined in Chapter 188.

MODERATE-INCOME HOUSEHOLD — a household with a total gross annual household income in excess of 50 percent but less than 80 percent of the median household income.

MODERATE-INCOME UNITS — a restricted unit that is affordable to a moderate-income household.

RESIDENTIAL — any real property and the improvements, buildings, structures or house thereon, whether single, two-family or multi-family, whether or not owner occupied, used for residential purposes.

UHAC — the Uniform Housing Affordability Controls set forth in N.J.A.C. 5:80-26.1 et seq., as may be supplemented or amended.

VERY-LOW-INCOME HOUSEHOLD — a household with a total gross annual household income equal to 30 percent or less of the median household income.

VERY-LOW-INCOME UNIT — a restricted unit that is affordable to a very-low-income household.

§ 187-3. Applicability and exemptions. [Added 12-15-2021 by Ord. No. 21-077]

A. The following developments shall comply with the affordable housing set-aside and other requirements of this chapter:

1. All developments with a residential component, including mixed-use developments for which a developer requests and/or obtains five or more residential units or 5,000 or more square feet of residential floor area (inclusive of residential hallways and egress areas) (i) as a result of variance(s) pursuant to N.J.S.A. 40:55D-70(c) and (d); (ii) as a result of rezoning; or iii) as the result of the adoption of a new or amended redevelopment/rehabilitation plan pursuant to the Local Redevelopment and Housing Law.

(i) No subdivision shall be permitted or approved for the purpose of avoiding compliance with this chapter. A developer may not, for example, subdivide a project into two lots and then plan each of them to produce a number of units below the threshold. The approving authority may impose any reasonable conditions to ensure such compliance.

2. All developments with a residential component, including mixed-use developments that obtain low income housing tax credits and/or tax-exempt bond financing from the New Jersey Housing Mortgage Finance Agency, funding from the Economic Development Authority Aspire program or similar program, and/or any other State support pursuant to N.J.S.A. 52:27d-329.9(b).

B. The following developments shall be exempt from the requirements of this chapter:

1. Developments less than 15 total residential units.

2. Developments undertaken by the Jersey City Housing Authority or a non-profit corporation for the purpose of developing, through new construction or substantial rehabilitation, residential property in which at least 50 percent of the total residential units in the development are for very-low-, low-, and/or moderate-income households.

C. Nothing herein precludes the City of Jersey City or Approving Authority from requiring an affordable housing set-aside in a development not required to have a set-aside pursuant to this chapter or requiring a higher affordable housing set-aside in any development so long as it is consistent with N.J.S.A. 52:27D-311(h) and other applicable law. This provision does not grant the City or Approving Authority any additional authority beyond what they already possess, and is intended to reserve the right to exercise existing authority in accordance with applicable law. For example, the City reserves the right when it conveys municipally-owned land or permits development to occur on municipally-owned land to require a higher set-aside of affordable housing in exchange.

D. The following developments, which include or permit a hotel component (aka a Converted Hotel Unit component), shall comply with the affordable housing set-aside and other requirements of this chapter: **[Added 11-12-2025 by Ord. No. 25-108]**

1. All developments in a Redevelopment Plan with a residential component, existing or proposed, for which a developer requests and/or obtains residential units in excess of the maximum dwelling units per acre (or in excess of a maximum dwelling unit provision) in that district may convert permitted hotel units to residential units at a ratio of one to one.

2. All developments in a Redevelopment Plan utilizing a Commercial Use Bonus (aka Office Space Bonus or similar), for which a developer requests and/or obtains residential units on said bonus floors may convert permitted hotel units to residential units at a ratio of one to one. In addition, any need for a separate lobby or elevator pursuant to said bonus is no longer a necessary component for compliance.

3. All developments proposed and/or completed pursuant to this section shall not require a (d)(1) or (d)(5) variance for said hotel component and shall have jurisdiction before the Planning Board unless a different variance is requested and/or required pursuant to N.J.S.A. 40:55D-70(d).

§ 187-4. Affordable housing set-aside. [Added 12-15-2021 by Ord. No. 21-077]

A. Each development subject to this chapter shall contain an affordable housing set-aside subject to the following: **[Amended 11-12-2025 by Ord. No. 25-108]**

1. Tier 1 - Developments in low, moderate, or middle income census tracts. The minimum on-site affordable housing set-aside for developments in this tier shall be 10% of the total number of dwelling units in the development or, in the case of a converted hotel unit, 10% of the total number of converted hotel units. Low income census tracts are defined as tracts below 50 percent of area median income. Moderate income census tracts are defined as tracts between 50% and below 80% of area median income. Middle income census tracts are defined as tracts between 80% and below 120% of area median income. Developments that obtain a tax abatement/payment in lieu of taxes from the City shall provide a 15% minimum on-site affordable housing set-aside of the total number of dwelling units.

2. Tier 2 - Developments in upper income census tracts. The minimum on-site affordable housing set-aside for developments in this tier shall be 15% of the total number of dwelling units in the development or, in the case of a converted hotel unit, 15% of the total number of converted hotel units. Upper income census tracts are defined as tracts at or above 120% of area median income.

3. Irrespective of census tract or tier, all developments that obtain low income housing tax credits and/or tax-exempt bond financing from the New Jersey Housing Mortgage Finance Agency, funding from the Economic Development Authority Aspire program or similar program, and/or any other state support pursuant to N.J.S.A. 52:27D-329.9(b) shall contain a minimum on-site affordable housing set-aside of at least 20% of the total number of dwelling units in the development. Any development that uses any of these funding sources shall disclose this information as a part of their affordable housing agreement (AHA) as required in Chapter 188 of the Jersey City Municipal Code.

B. When the calculation of the affordable housing set-aside results in a fractional affordable unit, the fraction shall be rounded up if the fraction is one-half or higher. This shall mean that the affordable housing unit shall be provided. When the faction is less than one-half, the developer shall provide a payment in lieu of the fractional unit. The payment shall be calculated based on a pro rata basis of $180,000.00 per unit.

C. Any payment in lieu of a fractional affordable unit shall be fulfilled by the developer in two installments. The first installment shall be at least 50% of the full payment and is payable upon a non-appealable board approval and the second installment or remainder is payable prior to the first certificate of occupancy in the development. All payments shall be deposited into the City of Jersey City Affordable Housing Trust Fund.

§ 187-5. Additional standards for affordable housing. [Added 12-15-2021 by Ord. No. 21-077]

A. A developer subject to the affordable housing set-aside may request, and the approving authority may, at its discretion, grant additional incentives for affordable housing, including but not limited to an increase in density, height, bulk, and/or floor area ratio.

B. A developer subject to the affordable housing set-aside shall be afforded an exemption from any applicable minimum parking requirement for the purpose of aiding in the construction of affordable housing units.

§ 187-6. Tier map. [Added 12-15-2021 by Ord. No. 21-077]

A. The boundaries of the tiers referenced in this chapter are as specified in the map entitled "INCLUSIONARY ZONING — Tier Map," which is attached hereto.

B. The Division of City Planning is directed to examine the tier map at least every five years and, if changes are proposed based on current housing characteristics, such as changes in median income and availability of affordable housing in different areas of the City, to submit a proposed revised map to the Municipal Council by January 1 of each fifth year. The Municipal Council may then choose whether to approve the revised map by resolution.

C. The tier map shall remain in effect until a new map is approved by the City Council. The map shall be on file and available for public inspection with the Division of Affordable Housing. The tier map shall be binding while effective and no exception to the map will be granted.

§ 187-7. Compliance. [Added 12-15-2021 by Ord. No. 21-077]

A. Prior to the approval of any site plan applications, each developer subject to the chapter must prove compliance with this chapter to the approving authority. Prior to the issuance of any building permit, each developer must have an approved affordable housing plan in the form of a Division of Affordable Housing Checklist and enter into an affordable housing agreement prior to the issuance of any CO with the City in accordance with Chapter 188.

B. The bedroom distribution and income distribution of the affordable housing units shall comply with all applicable requirements of Chapter 188 and UHAC, but for the following exceptions:

   1. Thirteen percent of the affordable housing units within each bedroom distribution must be restricted as very-low-income units.

   2. In developments that produce ten or fewer on-site affordable units, the bedroom distribution of the affordable units may mirror the bedroom distribution of the market-rate units so long as at least 50 percent of the units are low-income units and at least one affordable unit is a three-bedroom unit.

C. Affordable units shall be integrated with the market-rate units, and the affordable units shall not be concentrated in separate building(s) or in separate area(s) or floor(s) from the market-rate units. In buildings with multiple dwelling units, this shall mean that the affordable units shall be generally distributed within each building with market-rate units. The affordable units shall also be of the same type as the market-rate units (e.g., if the market-rate units are non-age-restricted family units, the affordable units shall be non-age-restricted family units as well). The residents of the affordable units shall have full and equal access to all of the amenities, common areas, and recreation areas and facilities as the residents of the market-rate units.

D. Construction of the affordable units and market-rate units shall be phased in compliance with N.J.A.C. 5:93-5.6(d).

E. Developers shall comply with eligibility determination procedures by providing adequate documentation as set forth within Chapter 188 to the satisfaction of the Division of Affordable Housing.

F. The Division of Affordable Housing shall be responsible for monitoring compliance and recordkeeping for all Affordable Housing Agreements produced as a result of this article.

§ 187-8. Administrative fee. [Added 12-15-2021 by Ord. No. 21-077]

Each development subject to this chapter shall pay a $2,000.00 fee to the City of Jersey City to cover the administrative costs associated with formalizing the Affordable Housing Agreement with the Division of Affordable Housing.

§ 187-9. Violations. [Added 12-15-2021 by Ord. No. 21-077]

Upon a violation of any of the provisions of this chapter or the Affordable Housing Agreement, the Director of Affordable Housing or other designated City official shall give written notice to the developer specifying the nature of the violation and require corrective action within 60 days of the notice.

If the developer does not correct the violation within the time specified, the developer shall, for each and every violation, be fined up to a maximum of $2,000.00 a day that such violation continues after such notice until the violation is corrected.

§ 187-10. Severability. [Added 12-15-2021 by Ord. No. 21-077]

If any article, section, subsection, sentence, clause or phrase of this chapter is, for any reason, held by a court of competent jurisdiction to be unconstitutional or invalid, such decision shall not affect the remaining portions of this chapter and they shall remain in full force and effect and shall be deemed valid and effective.

§ 187-11. Inconsistencies. [Added 12-15-2021 by Ord. No. 21-077]

In the event of any inconsistencies between the provisions of this chapter and any prior ordinance of the municipality, the provisions hereof shall be determined to govern and those inconsistent provisions shall be repealed to the extent of such inconsistency.

§ 187-12. Effective date and scope. [Added 12-15-2021 by Ord. No. 21-077]

This chapter shall take effect upon its adoption by the Municipal Council. The provisions of this chapter shall be applicable within the entire municipality upon final adoption and shall become a part of the Jersey City Code once adopted and incorporated in the official copies of the City Code. All references to the prior version of Chapter 187 in existing redevelopment/rehabilitation plans and in the City Code shall be replaced with this amended version after it takes effect.

Chapter 188

HOUSING ACCOMMODATIONS AND AFFORDABLE HOUSING COMPLIANCE*

ARTICLE I
Housing Accommodations

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ARTICLE I
Housing Accommodations†

§ 188-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

CUSTOMER—Any person contracting with any other person for the performance of services regulated by this chapter.

HOUSING or HOUSING ACCOMMODATION—Any dwelling or dwelling unit, rooming house, apartment or any real property which is offered for rent as a residence.

***History**—Adopted by the Council of the City of Jersey City June 12, 1986 as Ord. No. C-228. Amendments noted where applicable.

Editor's note—Chapter 188 was retitled May 10, 2017 by Ord. No. 17-055.

Cross references—Construction Codes, Uniform, Ch. 131; discrimination, Ch. 148; Fees and charges, Ch. 160; Multiple dwellings, Ch. 218; rent control, Ch. 260; sewers, Ch. 281.

†**Editor's note**—The designation "Article I" was added May 10, 2017 by Ord. No. 17-055.

PERSON—Any individual, partnership, corporation or any other organization or individuals.

§ 188-2. License required; fee.

A. No person may sell or offer to sell a list of available housing accommodations without first obtaining a license from the City of Jersey City. This requirement shall not apply to real estate brokers holding license pursuant to N.J.S.A. 45:15-1 et seq.

B. An applicant for a license shall submit to the license issuing authority a completed application in a form prescribed by the license issuing authority together with a license fee as provided in Chapter 160, Fees and Charges.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 188-3. Records and reports.

Any person licensed under this chapter shall make available to customers an accurate listing of all housing accommodations to which customers may be referred. This listing shall include the following information for each housing accommodation:

A. The type of unit, whether duplex, triplex, four-plex or multiplex.

B. Whether the unit is furnished or unfurnished.

C. The date when the unit will be available.

D. The date when the housing accommodation was most recently entered on the listing records.

E. The date when the housing accommodation was last verified to be available for rent.

F. The address of the housing accommodation.

G. The name, address and telephone number of the owner or the owner's agent.

H. The monthly rent.

I. The amount and purpose of any deposit or prepayment required by the landlord.

J. The number and types of rooms.

K. Whether a written lease is required and, if so, the minimum term required by the landlord.

L. Any restrictions as to pets, children, furnishings, occupants or activities imposed by the landlord.

§ 188-4. Unlawful acts.

No person may:

A. List or advertise any housing accommodation or otherwise offer or provide information about any housing accommodation without the prior written consent of the owner.

B. Refer a customer to any housing accommodation or list any housing after receiving notice that it is unavailable for rent.

C. Use any contract or furnish any receipt to any customer or prospective customer which does not disclose all material information about the services to be provided to the customer.

D. Publish or cause to be published any advertisement for a particular housing accommodation without including in the advertisement a page, line or other code number through which the particular housing accommodation can be easily located in the rental agency's listing records.

§ 188-5. Inspections.

Each applicant for a license shall sign the following agreement, which shall be submitted with each application for a license or a renewal of a license:

> The undersigned agrees that any inspector working for the City Director of Consumer Affairs may enter the premises where the books and records of the undersigned are kept, at any time during business hours, for the purpose of inspection.

§ 188-6. Violations and penalties.

A. Any person who violates any provision of this chapter shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.
Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

B. In addition to the penalty provided in Subsection A, a licensee who violates any provision of this chapter may have his or her license suspended or revoked.

ARTICLE II
Affordable Housing*

§ 188-7. Definitions. [Added 3-24-2021 by Ord. No. 21-017; amended 6-26-2024 by Ord. No. 24-049; 11-12-2025 by Ord. No. 25-114]

ACT — the Fair Housing Act, N.J.S.A. 52-27D-301 et seq.

ADAPTABLE — constructed in compliance with the technical design standards of the Barrier Free Subcode, N.J.A.C. 5:23-7.

ADMINISTRATIVE AGENT — the entity responsible for the administration of affordable units in accordance with this article, N.J.A.C. 5:91, N.J.A.C. 5:93 and N.J.A.C. 5:80-26.1 et seq.

AFFIRMATIVE MARKETING — a regional marketing strategy designed to attract buyers and/or renters of affordable units pursuant to N.J.A.C. 5:80-26.16 and this article and other income-controlled units under this article.

***Editor's note—**Ord. No. 21-017, adopted March 24, 2021, amended the Code by repealing former Art. II, §§ 188-7—188-14, and adding a new Art. II. Former Art. II pertained to similar subject matter, and derived from Ord. No. 17-055, adopted May 10, 2017; and Ord. No. 19-131, adopted September 25, 2019.

AFFIRMATIVE MARKETING PLAN — a regional or local marketing strategy designed to attract buyers and/or renters of all majority and minority groups, regardless of race, creed, color, national origin, ancestry, marital or familial status, gender, affectional or sexual orientation, disability, age or number of children to housing units which are being marketed by a developer, sponsor or owner of affordable housing or other income-controlled units. The affirmative marketing plan is also intended to target those potentially eligible persons who are least likely to apply for affordable units or other income restricted units in that region. The affirmative marketing plan shall cover the period of deed restriction but may be updated as necessary with current information.

AFFORDABLE — a sales price or rent within the means of a low- or moderate-income household as defined in N.J.A.C. 5:93-7.4, in the case of an ownership unit, the sales price for the unit conforms to the standards set forth at N.J.A.C. 5:80-26.7, as may be amended and supplemented, and, in the case of a rental unit, that the rent for the unit conforms to the standards set forth in N.J.A.C. 5:80-26.13, as may be amended and supplemented.

AFFORDABLE HOUSING AGREEMENT (AHA) — the written agreement with the City that, as a condition of receiving a project's certificate of occupancy, must be executed by the developer(s)/owner(s) of any property or project that contains any number of Affordable Housing Units or other Income-Restricted Units. The AHA informs developers/owners of such units of, and binds them to, certain City-defined terms, conditions, restrictions, policies and procedures applicable to such units to ensure that they remain accessible and affordable to income Qualifying households, for a specified period of time and which the developer/owner is responsible to ensure is recorded with the deed to the unit in the office of the County Register such that all future owners of the applicable units are notified of and bound by the AHA throughout its term of years.

AFFORDABLE DEVELOPMENT — a housing development all or a portion of which consists of affordable units and includes, but is not limited to, an inclusionary development, a municipal construction project or a 100% affordable development.

AFFORDABLE HOUSING PROGRAM — any City program intended to create one or more income restricted or affordable units; however, the term is not understood to encompass rent-controls under Chapter 260 of the Jersey City Municipal Code.

AFFORDABLE UNIT — a housing unit proposed or created pursuant to the Act, this article, any redevelopment plan, credited pursuant to N.J.A.C. 5:93, and/or funded through an affordable housing trust fund meeting the definition of "Affordable" as set forth in this Chapter.

AGENCY — the New Jersey Housing and Mortgage Finance Agency established by P.L. 1983, c. 530 (N.J.S.A. 55:14K-1, et seq.) ("NJHMFA") in, but not of, the Department of Community Affairs, inclusive, where applicable, of its since-abolished predecessor agency (Council on Affordable Housing) and any successor agency or organization that may assume NJHMFA's role in overseeing Affordable Housing by delegation or State authority or order of a court of competent jurisdiction.

AGE-RESTRICTED UNIT — a housing unit designed to meet the needs of, and exclusively for, the residents of an age-restricted segment of the population such that: 1) all the residents of the development where the unit is situated are 62 years or older; or 2) at least 80% of the units are occupied by one person

that is 55 years or older; or 3) the development has been designated by the Secretary of the U.S. Department of Housing and Urban Development as "housing for older persons" as defined in Section 807(b)(2) of the Fair Housing Act, 42 U.S.C. § 3607.

ALTERNATIVE LIVING ARRANGEMENT — a structure in which households live in distinct bedrooms, yet share kitchen and plumbing facilities, central heat and common areas. Alternative living arrangement includes, but is not limited to: transitional facilities for the homeless, Class A, B, C, D, and E boarding homes as regulated by the New Jersey Department of Community Affairs; residential health care facilities as regulated by the New Jersey Department of Health; group homes for the developmentally disabled and mentally ill as licensed and/or regulated by the New Jersey Department of Human Services; and congregate living arrangements.

ANNUAL INCOME — income as defined in 24 CFR Part 5 of the U.S. Department of Housing and Urban Development's (HUD) General HUD Program Requirements.

APPLICATION FOR AFFORDABLE HOUSING — the application forms to occupy an affordable housing unit in the format approved by the Corporation Counsel and Director of the Division of Affordable Housing and made available by a developer to potential occupants.

DEVELOPER — any person, partnership, association, company or corporation that is the legal or beneficial owner or owners of a lot or any land proposed to be included in a proposed development including the holder of an option to contract or purchase, or other person having an enforceable proprietary interest in such land.

DEVELOPMENT — the division of a parcel of land into two or more parcels, the construction, reconstruction, conversion, structural alteration, relocation, or enlargement of any use or change in the use of any building or other structure, or of any mining, excavation or landfill, and any use or change in the use of any building or other structure, or land or extension of use of land, for which permission may be required pursuant to N.J.S.A. 40:55D- 1 et seq.

DIRECTOR — the Director of the Division of Affordable Housing or their designee.

DIVISION — the City of Jersey City's Division of Affordable Housing or such other Division or Department as the City may appoint as its successor with respect to the powers and responsibilities set forth herein.

HOUSEHOLD — the natural person(s) who occupy the housing unit.

INCLUSIONARY DEVELOPMENT — a development containing both affordable units and market rate units. This term includes, but is not necessarily limited to new construction, the conversion of a non-residential structure to residential and the creation of new affordable units through the reconstruction of a vacant residential structure.

INCOME RESTRICTED UNIT — a housing unit with a sales price or rent required to be within the means of people making a specified income. The term "income restricted" shall be understood to include all affordable units, as well as all workforce units, and any other unit which requires that occupants or owners to fall within a specified income range.

LOW INCOME HOUSEHOLD — a household with a total gross annual household income equal to 50% or less of the median household income. Except where otherwise specified, this shall include very-low income households.

LOW INCOME UNIT — a restricted unit that is affordable to a low-income household.

MARKET RATE UNITS — housing not subject to income restrictions that may sell or rent at any price.

MEDIAN INCOME or MEDIAN HOUSEHOLD INCOME — the median income by household size for the applicable county, as adopted annually by NJHMFA or with the understanding that if NJHMFA is no longer the adopting entity, then as adopted by any successor agency or organization that may inherit the responsibility of determining median income by delegation of the State authority or as approved by the New Jersey Superior Court. To the extent that NJHMFA did not adopt or publish such median income for applicable prior years, then median income shall be determined according to such income limits as previously published by the Affordable Housing Professionals of New Jersey.

MODERATE INCOME HOUSEHOLD — a household with a total gross annual household income in excess of 50% but less than 80% of the median household income.

MODERATE INCOME UNIT — a restricted unit that is affordable to a moderate-income household.

PORTAL — an online electronic interface maintained by the Division through which the Division, Developers, applicants, tenants, and other users exchange information necessary for the administration of the affordable housing program.

RANDOM SELECTION PROCESS — a process by which currently income-eligible households are selected for placement in affordable housing units such that no preference is given to one applicant over another except for purposes of matching household income and size with an appropriately priced and sized affordable unit (e.g., by lottery).

REGIONAL ASSET LIMIT — the maximum housing value in each housing region affordable to a four-person household with an income at 80% of the regional median as defined by adopted/approved Regional Income Limits.

REHABILITATION — the repair, renovation, alteration or reconstruction of any building or structure, pursuant to the Rehabilitation Subcode, N.J.A.C. 5:23-6.

RENT — the gross monthly cost of a rental unit to the tenant, including the rent paid to the landlord, as well as an allowance for tenant-paid utilities computed in accordance with allowances published by DCA for its Section 8 program. In assisted living residences, rent does not include charges for food and services.

RESTRICTED UNIT or RESTRICTED HOUSING UNIT — a dwelling unit, whether a very-low income, low income, moderate income, workforce income, or otherwise income-qualified or occupancy-restricted, and whether a rental unit or ownership unit, that is subject to any affordability or occupancy controls governed by this Chapter.

UHAC — the Uniform Housing Affordability Controls set forth in N.J.A.C. 5:80-26.1 et seq.

VERY LOW-INCOME HOUSEHOLD — a household with a total gross annual household income equal to 30% or less of the median household income.

VERY LOW-INCOME UNIT — a restricted unit that is affordable to a very low-income household.

WORKFORCE HOUSEHOLD — a household whose total gross income is greater than 80% but does not exceed 120% of the Median Household Income.

WORKFORCE HOUSING UNIT — a restricted unit that is affordable to a workforce income household.

§ 188-8. Purpose and applicability. [Added 3-24-2021 by Ord. No. 21-017; amended 6-26-2024 by Ord. No. 24-049; 11-12-2025 by Ord. No. 25-114]

A. This section of the City Code sets forth regulations regarding all income-restricted housing units in the City, including but not limited to those that meet the definitions of affordable housing units except as set forth herein. It is intended to be read consistent with the Uniform Housing Affordability Controls ("UHAC"), N.J.A.C. 5:80-26.1 et seq. except where the UHAC requirements for the creation of very-low income units are superseded by the requirements of the Fair Housing Act as established in P.L. 2008, c.46 (the "Roberts Bill", codified at N.J.S.A. 52:27D-329.1), and/or any constitutional obligation to provide a fair share of affordable housing for low and moderate income households that the City may at any point be or become subject to under applicable law.

B. This article is intended to assure that very-low, low- and moderate-income units ("affordable units") and other income-controlled units are created with controls on affordability over time and that very-low, low- and moderate-income, and workforce households shall, as applicable, occupy these units.

C. This article shall apply to all income restricted units, excluding those subject to the funding requirements of Federal Low-Income Housing Tax Credit under Section 42 of the Internal Revenue Code, Balanced Housing funds under the Agency's Home Express program or units receiving assistance under the Federal HOME program, 24C.F.R. §92.252(e), §92.254(a)(4); HUD 202 program, 24 C.F.R. Part 891; HUD 811 program, 24 C.F.R. Part 890; HUD HOPE VI program; or Federal Home Loan Bank, Affordable Housing Program, 12 C.F.R. Part 60.

D. The provisions of this section shall apply in addition to, and not in place of, any rent control restrictions to which the applicable unit or property may otherwise be subject pursuant to Chapter 260 of the Jersey City Municipal Code.

§ 188-9. Duties of the Division of Affordable Housing. [Added 3-24-2021 by Ord. No. 21-017; amended 6-26-2024 by Ord. No. 24-049; 11-12-2025 by Ord. No. 25-114]

The Division of Affordable Housing is hereby empowered to enforce the provisions of this article, and to carry out all responsibilities assigned to it under this article. Except as otherwise explicitly set forth herein, the Division shall be responsible for the administration of this article and for monitoring compliance with

all municipally mandated affordable housing and income restriction obligations, including those set forth herein and those set forth in any applicable AHAs. The Division shall also be responsible for the following:

A. Promulgation of the Affordable Housing Manual. The Division shall promulgate a manual entitled "The Regulations Governing Municipally Mandated Affordable Housing," which shall include the forms and documents required for all affordable housing applications. The Division shall update the manual on a regular basis. The manual shall be available to the public and shall be on file in the Office of the City Clerk.

B. Recordkeeping. The Division shall maintain a comprehensive recordkeeping system of each development that contains affordable housing units including the size of and bedrooms in each affordable unit, the number of market, income-restricted and affordable units; improvements, if any; the names of occupants; the level of affordability or other income controls applicable to each unit; starting date of affordability control or income-restrictions; length of affordability controls or income restrictions; copy of the affordability controls and income restrictions; and any other such information as required by the manual. The Division shall have the right to review all records and files kept by any developer related to affordable housing. The Division may require that specific units be designated as the affordable units for the project and may require a list of any units specifically designated.

C. Review and approve affordable housing agreements.

D. Reviewing affirmative marketing plans and annual reports. The Division shall review each developer's affirmative marketing plan, and any reports or submissions required of developers by the manual.

E. Enforce the requirements of this chapter and of any agreement or article establishing affordable or income-restricted housing obligations, for which purpose designees of the division shall be empowered as Jersey City Code Enforcement Officers to issue and serve summonses on complaints in accordance with New Jersey Court Rule 7:2-2.

F. The Division shall be empowered to assess fees upon developers or owners of buildings, projects, and/or units subject to this Chapter sufficient to cover the actual administrative costs of carrying out the Division's responsibilities described in this Chapter or elsewhere in the Jersey City Municipal Code. Such fees shall be set forth in Chapter 160 of the Jersey City Municipal Code.

§ 188-10. Affordable housing agreement. [Added 3-24-2021 by Ord. No. 21-017; amended 6-26-2024 by Ord. No. 24-049; 11-12-2025 by Ord. No. 25-114]

A. General Provisions. The following provisions shall be part of all affordable housing agreements:

1. Every affordable housing or other income-restricted unit shall be restricted by an affordable housing agreement (AHA), signed by the developer/owner which shall be binding upon that developer/owner and any heir, assign, or successor in interest thereto, as well as to any successor in title to the applicable unit(s). If a developer or owner refuses or otherwise fails to execute or record an AHA for any affordable housing or income-restricted unit, it shall be a violation of this section, in addition to a zoning violation (where applicable), and subject the developer or owner to

all actions and penalties for breach or violations set forth herein or otherwise applicable. Additionally, the City shall withhold issuance of a certificate of occupancy for failure to execute the AHA.

2. Each AHA shall provide specific information about each income restricted unit. The information shall be a minimum of the following: size and number of bedrooms in each unit; number of market and affordable units; improvements, if any; level of affordability of each unit, location of unit; starting date of affordability controls and other applicable restrictions and length of affordability controls.

3. The AHA shall address occupancy requirements and require that all income-controlled units, including but not limited to affordable housing units, remain the primary residence of the household of record listed on the lease or, in the case of ownership units, the primary of the qualified owner.

4. The AHA shall address resale of units (if applicable), pricing of resale units (if applicable), recertification of tenants, and removal or reclassification of tenants for non-eligibility.

5. Each AHA shall ensure that the Developer/owner(s) select an administrative agent for the affordable or income-restricted units from among those approved by the City.

6. All AHAs, shall minimally require the following of the developer/owner of the affordable units and other income-restricted units:

    a. Maintain a waitlist for affordable units and other income-restricted units consistent with this Chapter, N.J.A.C. 5:80-26.1 et seq., as well as the NJ Fair Housing Act (N.J.S.A. 52:27D-301.), and any other restrictions or requirements set forth by the Division.

    b. Develop an Affirmative Marketing Plan consistent with this Chapter, N.J.A.C. 5:80-26.16, as well as the NJ Fair Housing Act (N.J.S.A. 52:27D-301., including P.L. 2020, c.51 and any related rules that may be published). The developer shall submit an affirmative marketing plan for any income- restricted or affordable housing units in any of the developer's properties that are unoccupied and available for rent or purchase. The affirmative marketing plan shall be subject to review and approval by the Director of Affordable Housing.

    c. Provide Biannual Reports. The developer shall submit biannual reports to the Division via the Portal in accordance with the operating manual and the instructions of the Division, unless an alternative means or format has been approved in writing by the Director of Affordable Housing. The report shall include a list of all income restricted and affordable housing units in each of the developer's developments that are unoccupied and available for rent or purchase; a list of income restricted and affordable housing units in each of the developer's developments that are occupied; a list of total units in each of the developer's developments which include income restricted or affordable housing; and the date of and the household income of the most recent tenant occupancy.

    d. Maintain Affordability Controls. The developer shall comply with the affordability controls prescribed in the AHA, which may include but are not limited to, maximum sale and rental

prices, maximum resale prices, dispute resolution and use of deed restrictions and disposition covenants. The affordability controls shall be subject to review and approval by the Director of Affordable Housing.

e. Non-discrimination. Marketing to and placement of tenants in affordable housing units shall be in compliance with all applicable federal, state and local laws related to fair housing rules. Marketing to and placement of tenants into income restricted units not meeting the definition of affordable housing shall follow parallel procedures promulgated by the Division. Income review, applicant eligibility review, and placement procedures shall not discriminate against any person on the basis of race, religion, national origin, sex, sexual orientation, health status, source of income such as disability insurance, social security, TANF, or any other basis prohibited by federal, state or local law.

B. Deeds. Any deed or master deed that includes affordable housing units or other units subject to this article shall reference such unit(s) and the AHA(s). A copy of the recorded deed and the AHA(s) for each unit shall be filed with the Division of Affordable Housing.

C. Certificate of Occupancy. No Certificate of Occupancy or Temporary Certificate of Occupancy shall be issued for an affordable housing or otherwise income-restricted unit or project, as applicable, unless the Director shall certify that the sale or rental complies with the terms of this agreement and these regulations and has executed and recorded the AHA for all applicable units.

D. Form of AHA. The Division may require that all AHA be in a form specified by the Division of Affordable Housing, as such form may be amended, updated or supplemented by the Division from time to time.

E. Amendment of AHA and Leases. The Division may require that those Owners and Developers that are subject to the requirements of this Chapter shall:

1. Amend any existing AHAs to conform to the terms and/or form required under this section.

2. Execute leases or riders thereto to incorporate terms required by the Division and/or to convert existing leases to such form as may be required by the Division, including as such form may be amended, updated or supplemented by the Division from time to time.

F. All AHAs, affordability controls, deeds, and, to the extent necessary, any mortgages related to the same, must be approved by the Corporation Counsel prior to execution and recording.

§ 188-11. Duties of the developers and owners in AHA, Deed and Mortgage. [Added 3-24-2021 by Ord. No. 21-017; amended 6-26-2024 by Ord. No. 24-049; 11-12-2025 by Ord. No. 25-114]

A. Developers shall execute an Affordable Housing Agreement and ensure that the same is recorded.

B. Developers and Owners shall and ensure that any deeds and mortgages related to a property subject to this Section contains all applicable deed restrictions and that the same are properly recorded.

C. Developers and Owners comply with the provisions of "Affordable Housing Agreement (AHA)" in § 188-10 as well as all other applicable provisions therein, as well as all deed restrictions of record.

D. Developers and Owners shall, upon request by the Division, promptly provide records evidencing compliance with any applicable provision of the AHA, deed restrictions or the Affordable Housing Manual, the requirements of this Section, or any other related applicable law.

E. Developers and Owners shall refrain from taking any actions against an applicant or qualified tenant or setting any requirements (including lease terms) for the same, that would negate or interfere the rights available to tenants and applicants under this Section or penalize them from exercising the same.

F. Developers and Owners shall strictly adhere to all limitations on amount of rent or rent increases charged on income restricted units. Any increase in rent must be based upon calculations made by an approved Administrative Agent and approved by the Division of Affordable Housing unless such increase is paid by a State or Federal entity under a subsidy program.

G. Developers and Owners shall ensure that all obligations are met related to marketing, reporting, and tenant list/waiting list tracking for all units monitored by the Division, including those of such duties as are undertaken by an Administrative Agent. Such marketing, tracking and reporting shall be submitted through the Portal in accordance with the Manual and instructions from the Division, unless the Director explicitly instructs otherwise in writing.

§ 188-12. Applicant eligibility determination procedures. [Added 3-24-2021 by Ord. No. 21-017; amended 6-26-2024 by Ord. No. 24-049; 11-12-2025 by Ord. No. 25-114]

Prospective applicants for affordable housing must provide to the administrative agent adequate documentation including workforce, low- or moderate- income status sufficient to demonstrate their income and occupancy qualifications, in the manner required by the operating manual.

§ 188-13. Appeals by applicants and tenants. [Added 3-24-2021 by Ord. No. 21-017; 11-12-2025 by Ord. No. 25-114]

A. If an applicant contests a decision by the owner, developer, or an administrative agent acting their behalf, regarding income classification or denial or revocation of certification, then the applicant shall have the right to challenge such decision by making a written communication to the Director of Affordable Housing. The Director may, at their discretion, seek evidence from the applicant or otherwise further investigate and/or make a determination about the dispute following the procedures and criteria set forth in the manual, which determination shall be binding upon the owner or developer.

Maximum Percentage of Market-Rate Units Completed	Minimum Percentage of Income Restricted Units Completed
25	0
25 + 1	10
50	50
75	75

Maximum Percentage of Market-Rate Units Completed	Minimum Percentage of Income Restricted Units Completed
90	100
100	

B. If a tenant in an income-restricted unit contests any rent or other charge by an Owner or Developer (or an administrative agent acting on their behalf) the tenant shall have the right to challenge such charges or the calculation of thereof by making a written communication to the Director of the Division of Affordable Housing. The Director may, at their discretion, request evidence from the tenant or otherwise further investigate and/or make a determination about the dispute following the procedures and criteria set forth in the manual, which determination shall be binding upon the owner or developer.

§ 188-14. Violation, default and remedies. [Added 3-24-2021 by Ord. No. 21-017; amended 6-26-2024 by Ord. No. 24-049; 11-12-2025 by Ord. No. 25-114]

Upon a violation of any of the provisions of the affordable housing agreement, the deed, the mortgage or this article, the Division of Affordable Housing shall give written notice to the developer specifying the nature of the violation and, where such action is capable of correction, a reasonable time within which the City requires corrective action. Corrective actions must be made in accordance with the timeframes set forth by the City, including those that may be referred to in the manual. If the developer does not, within the timeframe specified, either reply with sufficient evidence of compliance as to all points raised, or timely correct all violations identified, the Director may declare the developer in default and seek any remedy available to the City at law or equity in a court of competent jurisdiction or otherwise available to the City, including those pursuant to § 188-18.

§ 188-15. Designation and design of affordable and income controlled units. [Added 11-12-2025 by Ord. No. 25-114]

The following requirements shall apply to all new or planned developments that contain low and moderate-and/or workforce income housing units.

A. Phasing. Final site plan or subdivision approval shall be contingent upon the affordable housing development meeting the following phasing schedule for low- and moderate-income units whether developed in a single-phase development, or in a multi-phase development:

B. Design. In inclusionary developments, low income, moderate income, and workforce income units shall be integrated with the market units.

C. Utilities and Amenities.

1. Qualified tenants in affordable and other income-restricted units shall enjoy the full benefit of all privileges afforded to tenants in unrestricted units and shall have full access and use of any of property/building amenities as tenants in unrestricted units, including but not limited to use of access points, parking, shuttles or similar transportation, any fitness center, business center,

laundry room, swimming pool, childcare center, playgrounds, and community centers. Tenants in Restricted Units shall not be subjected to any restrictions on their use or enjoyment of such benefits or amenities except those that apply equally to tenants in unrestricted units.

2. Owners and developers shall ensure that tenants in affordable housing or other income-restricted units are not charged any additional fee, assessment, or surcharge, nor shall they collect any other payment whatsoever beyond the actual rents approved by the Division, plus such utility fees and parking fees as expressly permitted under this Chapter. Fees in exchange for any of the following are prohibited: occupancy or use of the unit itself, access or use any other part of the building or property, for access to or use of any amenity thereof, or for the enjoyment of any services, privileges or perks afforded to other tenants of the same building, property or development project by virtue of their tenancies. This provision shall be read, without limitation, to prohibit assessment or collection of any amenity fees, common area use fees, fees for use of fitness centers, business centers, laundry rooms, pools, child care centers, playgrounds, or lounges located on the property or in the building, fees for access to shuttles or other transportation provided to residents of the building or property, fees for receipt of package deliveries, and/or any other fees or charges for services that the developer or owner provides to or arranges for other tenants or units of the building or property. All of the foregoing prohibitions on fees and charges shall apply whether they are charged by the owner/developer or any third-party, and whether or not other tenants who occupy non-income restricted units are charged for the same. This section shall not be interpreted to prohibit developers or owners from assessing reasonable charges for cleanup of debris or repair of damages to the unit, building, or property to the extent the debris or damage is caused by a tenant or that tenant's licensees or invitees, or from charging reasonable late fees for a tenant's failure to timely pay Division-approved rents.

3. If parking is made available to tenants of the building by the owner/developer or its agents or contractors and the tenant in an affordable or otherwise income restricted unit elects to procure a parking space, that tenant may be charged a reasonable rate for parking in line with the prices offered to market rate tenants in the building, except that tenants in affordable or otherwise income restricted units shall not be charged for parking where: (a) the parking space is included in the deed for the applicable unit, or (b) parking spaces are otherwise made available to other tenants in the building at no additional charge beyond rents paid.

4. Affordable units and other income-restricted units shall utilize the same type of heating and cooling sources, and temperature controls as market units within the affordable development.

D. Affordability Average; bedroom distribution:

1. For the purposes of determining affordability average and bedroom distributions, unless stated otherwise, non-integer values calculated pursuant to this subsection are to be rounded up to the nearest whole number. However, non-integer values calculated to pursuant to § 188-16(B) may be rounded down or up to the nearest whole number in either direction. For example, 33.901 will typically be rounded up to 34, but may be rounded down to 33 or up to 34 if calculated pursuant to § 188-16(B).

2. In each affordable development, affordable units that are not age-restricted or supportive housing must be structured in conjunction with realistic market demands such that:

   a. At a minimum, the number of bedrooms within the affordable units equals twice the number of affordable units;

   b. Two-bedroom and/or three-bedroom units compose at least 50% of all affordable units.

   c. No more than 20% of all affordable units, rounded up or down to the nearest whole number in either direction, are efficiency or one-bedroom units;

   d. At least 30% of all affordable units, rounded up or down to the nearest whole number in either direction, are two-bedroom units;

   e. At least 20% of all affordable units, rounded up or down to the nearest whole number in either direction, are three-bedroom units and;

   f. The remainder of the affordable units, if any, shall be allocated at the discretion of the developer subject to the approval of the Director, provided that such allocations shall be in accordance with the municipality's housing element and fair share plan to the extent applicable.

3. In each affordable development, affordable units that are age-restricted or supportive housing must be structured such that, at a minimum, the number of bedrooms within the affordable units equals the number of affordable units. For example, the standard may be met by creating a two-bedroom unit for each efficiency unit. In affordable developments with 20 or more affordable units that are age-restricted or supportive housing, two-bedroom and three-bedroom units must compose at least five percent of those affordable units.

   a. It is understood that age-restricted or supportive housing obligations set forth herein are monitored and enforced by the Agency. Accordingly, to the extent that the State retains this responsibility, the Division's role with respect to such obligations shall be limited to facilitating contact between the developer, owner and/or administrative agent and the Agency.

   b. The foregoing provision shall not be read to abrogate any enforcement or monitoring powers that the Division may have with respect to any unit, activity, or obligation not otherwise monitored or enforced by the Agency as an age-restricted or supportive housing.

4. In each affordable development, the following income distribution requirements must be satisfied by all of the affordable units in the development as well as by, considered in isolation, the affordable units that are age- restricted, the affordable units that are supportive housing, and the affordable units that are neither age-restricted nor supportive housing:

   a. At least 50% of all affordable efficiency or one-bedroom units, rounded up or down to the nearest whole number in either direction, are low-income units or very-low-income units;

b. At least 50% of all affordable two-bedroom units, rounded up or down to the nearest whole number in either direction, are low-income units or very-low-income units;

c. At least 50% of all affordable three-bedroom units are low-income units or very-low-income units;

d. At least 50% of all affordable units with four or more bedrooms, rounded up or down to the nearest whole number in either direction, are low-income units or very- low-income units; and

e. Any very low-income units are distributed between each bedroom count as proportionally as possible, to the nearest whole unit, to the total number of affordable units within each bedroom count. For example, if half of the affordable units are two- bedroom units, then half of the very-low-income units should be two-bedroom units.

5. In developments that produce ten or fewer on-site affordable units, the bedroom distribution of the affordable units may mirror the bedroom distribution of the market-rate units so long as at least 50% of the units are low-income units and at least one affordable unit is a three-bedroom unit.

6. The foregoing provisions of § 188-15(D) shall be calculated solely using the number of affordable units and the formulas and distributions shall apply among affordable units only. The existence of any workforce units or other income-restricted units that do not otherwise qualify as "affordable" shall have no impact on the calculations set forth therein.

7. With respect to workforce housing, bedroom distributions and unit type distributions shall be governed according to the Manual or such guidance as the Director shall provide in writing.

E. Accessibility Requirements:

1. All units shall be constructed in accordance with N.J.A.C. 5:23 (Uniform Construction Code), N.J.S.A. 52:27D-119 et seq. (State Uniform Construction Code Act,), N.J.S.A. 52:27D-301 et seq. (Fair Housing Act), including all adaptability requirements as codified in N.J.S.A. 52:27D-311a, 52:27D-311b and 52:27D-123.15, and all other Federal, State and local laws.

Editor's note—Ord. No. 25-114, adopted 11-12-2025, amended the Code by, in effect, repealing former § 188-15, and adding a new § 188-15. Former § 188-15 pertained to administration of affordable units, and derived from Ord. No. 21-017, adopted March 24, 2021; and Ord. No. 24-049, adopted June 26, 2024.

§ 188-16. Rents and sales prices controls for income restricted units.

A. Application of Income Restricted Unit Controls. The requirements of § 188-16, and § 188-17 shall apply to all developments that contain affordable housing units and other income restricted units, including any currently unanticipated future developments that will provide low- and moderate-income housing and other income-restricted units.

B. Establishing Maximum Rents and Sales Prices.

1. In establishing rents and sales prices of affordable housing units, the administrative agent shall follow the procedures set forth in UHAC and by the Agency, or such other state agencies or

instrumentalities as may later jurisdiction to govern procedures for such affordable housing calculations, including those set forth in the New Jersey Administrative Code 5:80-26.13. In the case of workforce units or other income restricted units not addressed by the foregoing, the administrative agent shall follow parallel procedures, utilizing the regional income limits established by the same, in consultation with the Division.

2. The average rent for all affordable units within each affordable development shall be affordable to households earning no more than 52% of median income;

3. The maximum rent for all affordable rental units within each affordable development shall be affordable to households earning no more than 60% of the regional median income, and the average rent for restricted low- and moderate- income units shall be affordable to households earning no more than 52% of median income. However;

4. Maximum rent affordable to households earning no more than 70% of the regional median income for moderate-income units within affordable developments where very low-income units compose at least 13% of the restricted units may be permitted. In such developments, the number of units with rent affordable to households earning 70% of regional median income may not exceed one plus the number of very low-income units in excess of 13% of the affordable units; and

5. The developers and/or municipal sponsors of affordable rental units shall establish at least one rent for each bedroom count for both very low-income, low-income and moderate-income units, provided that:

    a. At least 13% of all affordable rental units shall be affordable to very low-income households.

6. The maximum sale price of affordable ownership units within each affordable development shall be affordable to households earning no more than 70% of the regional median income. and Each affordable development must achieve an affordability average of no more than 55% for restricted ownership units. In achieving this affordability average, moderate-income ownership units must be available for at least three different prices for each bedroom count, and low-income ownership units must be available for at least two different prices for each bedroom count.

7. In determining the initial rents and initial sale prices for compliance with the affordability average requirements for income restricted units other than age-restricted units and assisted living facilities, the following standards shall apply:

    a. An efficiency unit shall be affordable to a one-person household;

    b. A one-bedroom unit shall be affordable to a one and one-half-person household;

    c. A two-bedroom unit shall be affordable to a three-person household;

    d. A three-bedroom unit shall be affordable to a four and one-half-person household; and;

    e. A four-bedroom unit shall be affordable to a six-person household.

8. For age-restricted units and assisted living facilities, the following standards apply:

   a. An efficiency unit shall be affordable to a one-person household;

   b. A one-bedroom unit shall be affordable to a one and one-half-person household; and;

   c. A two-bedroom unit shall be affordable to a two-person household or to two one-person households;

   d. A three-bedroom unit is affordable to a two and one-half-person household.

9. The initial purchase price for all income restricted ownership units shall be calculated so that the monthly carrying cost of the unit, including principal and interest (based on a mortgage loan equal to 95% of the purchase price and the Federal Reserve H.15 rate of interest), taxes, homeowner and private mortgage insurance and condominium or homeowner association fees do not exceed 28% of the eligible monthly income of the appropriate size household as determined pursuant to N.J.A.C. 5:80-26.5, as may be amended and supplemented; provided, however, that the price shall be subject to the affordability average requirement of N.J.A.C. 5:80- 26.4, as may be amended and supplemented.

10. The initial rent for an income-restricted rental unit shall be calculated so as not to exceed 30% of the eligible monthly income of the appropriate household size as determined under N.J.A.C. 5:80-26.5, as may be amended and supplemented; provided, however, that the rent for affordable units shall be subject to the affordability average requirement of N.J.A.C. 5:80-26.4, as may be amended and supplemented. Approved initial rents shall be fixed as of the start of the property's initial lease-up.

11. The price of owner-occupied low-income units, moderate-income units and workforce units may increase annually based on the percentage increase in the regional median income limit for each housing region. In no event shall the maximum resale price established by the administrative agent be lower than the last recorded purchase price.

12. Income limits for all units for which income limits are not already established through a federal program exempted from the Uniform Housing Affordability Controls pursuant to N.J.A.C. 5:80-26.1 shall be calculated in accordance with the then-applicable version thereof, as follows:

    a. Regional income limits shall be established and updated annually based upon the published Region 1 limits as calculated in the formulas set forth in N.J.A.C. 5:80-26.3 or any successor provision(s) of UHAC that may replace such sections.

    b. Household eligibility for affordable housing, including the Regional Asset Limits affecting eligibility, shall be calculated and determined pursuant to N.J.A.C. 5:80-26.17(b)3, or such successor provision(s) of UHAC that may replace this provision.

13. The rent levels of very low-, low- and moderate income and any other income-restricted units may be increased no more than once annually or by more than one municipal housing liaison approved increment at one time. The increase shall be based on the percentage increase in the Housing

Consumer Price Index for the Northeast Urban Area (Northeast CPI), upon its publication for the prior calendar year. Such annual increase shall coincide with the expiration of a lease or at the termination of a lease of a periodic tenant. Notice of the rent increase must be filed with the Administrative Agent. Any such annual rent increase shall be equal to or less than the amount commensurate with the annual percentage increase in the Northeast CPI, and, in any event, no rent increase shall exceed 5% in any one year for any income restricted unit(s). Rents for units constructed pursuant to low-income housing tax credit regulations shall be indexed pursuant to the regulations governing low-income housing tax credits. No owner or developer may request or receive a percentage increase in rent which is greater than the percentage permitted under this paragraph. For a periodic tenant or for a tenant whose lease term shall be less than one year, such tenant shall not suffer or be caused to pay more than one rent increase in any 12-month period. Any rental increase that does not coincide with the expiration of a 12-month lease or termination of a periodic lease shall be void. Any rental increase in excess of that authorized under this paragraph shall be void. A tenant in an income-controlled unit subject to this Chapter who has paid or been charged a rental increase or fee that they reasonably believe to be unauthorized may challenge the same to the Division of Affordable Housing in accordance with § 188-13.B of Chapter 188 of the Jersey City Municipal Code.

14. Tenant-paid utilities that are included in the utility allowance shall be so stated in the lease and shall be consistent with the utility allowance approved by DCA for its Section 8 program.

15. It is understood that subsections 188-16.B.1—8 and 188-16.B.10 shall apply to affordable housing units as defined herein. In establishing rents and sales prices for workforce housing or other alternative types of income- restricted units not covered by the foregoing, the administrative agent shall follow the guidance set forth in the manual as well as instructions communicated to it by the Director. In the absence of definitive guidance or instruction with respect to workforce or other alternative income-restricted units, the administrative agent shall apply the principles and procedures set forth by UHAC and by the Superior Court, or by such other state agencies or instrumentalities as may later jurisdiction to govern procedures for such affordable housing calculations, utilizing the regional income limits established and the definitions of workforce units set forth herein.

C. Condominium and Homeowners Association Fees.

1. For any affordable housing ownership unit or other income-restricted ownership unit that is part of a condominium association, homeowner's association, or similar common interest community, the Master Deed shall reflect that the association fee assessed for each such affordable housing unit or other income restricted unit shall not be established at any amount greater than 100% of the market rate fee.

2. To the extent that any affordable or income controlled rental units subject to this chapter may be established or exist in any project or building governed by a condominium association, homeowners association, or any other common interest community, no association fees may be charged or passed on to any qualified tenant occupying the rental units and any such fees shall be considered unlawful additional rent, subject to penalties and remedies set forth in this Chapter.

Editor's note—Ord. No. 25-114, adopted 11-12-2025, amended the Code by, in effect, repealing former § 188-16, and adding a new § 188-16. Former § 188-16 pertained to the municipal housing liaison, and derived from Ord. No. 21-017, adopted March 24, 2021.

§ 188-17. Administrative obligations for income-controlled units.

A. Affirmative Marketing.

1. The resolution approving the operating manual shall include an Affirmative Marketing Plan that is compliant with N.J.A.C. 5:80-26.16, as may be amended and supplemented.

2. The affirmative marketing plan shall contain a residency preference for all vacant units which are created solely to satisfy Jersey City affordability requirements and are not tied to any state or federal funds or requirements. This residency preference, however, must not result in an affirmative marketing plan which violates any federal or state statute by resulting in a discriminatory or disparate impact to minority groups. The City is required to re-evaluate this section at least every ten years simultaneous with the re-examination of the municipal Master Plan by the City Planning Board pursuant to N.J.S.A. 40:55D-89. This residency preference shall not be implemented or available for any units created in furtherance of the City's "present need" (also known as a rehabilitation obligation) as required by the New Jersey Fair Housing Act. This residency preference shall not be implemented or available during any time that the City is not designated as a Qualified Urban Aid Municipality by the New Jersey Department of Community Affairs or other designated State agency. All property owners shall inquire with their Administrative Agent employed pursuant to Chapter 188 of the Municipal Code of the City of Jersey City to determine if a local preference can be implemented before finalizing an affirmative marketing plan.

3. For units that do not fall solely under § 188-17.A.2, the Affirmative Marketing Plan shall provide a regional preference for all households that live and/or work in Housing Region 1 as defined by the Agency presently comprised of Hudson, Bergen, Passaic and Sussex Counties.

4. The Administrative Agent designated by the City shall assure the affirmative marketing of all affordable and income-restricted units is consistent with the Affirmative Marketing Plan for the municipality.

5. The following community and regional organizations shall be included in the affirmative marketing plan: Fair Share Housing Center, the New Jersey State Conference of the NAACP, the Latino Action Network, Hudson County NAACP, Hudson County Urban League, and Hudson County Housing Resource Center, New Jersey Housing Resource Center, and the Administrative Agent shall, as part of its regional affirmative marketing strategies during its implementation of this plan, provide notice to those organizations of all available affordable housing units. The City shall require any other entities, including developers or persons or companies retained to do affirmative marketing, to comply with this paragraph.

6. The affirmative marketing plan shall require advertising for available units to be translated into the top five languages spoken in Jersey City public schools.

7. In implementing the affirmative marketing plan, the Administrative Agent shall provide a list of counseling services to low- and moderate-income applicants on subjects such as budgeting, credit issues, mortgage qualification, rental lease requirements, and landlord/tenant law.

8. The affirmative marketing process for available affordable units and other income restricted units shall begin at least four months prior to the expected date of occupancy.

9. The costs of advertising and affirmative marketing of the affordable or income-restricted units shall be the responsibility of the developer, sponsor or owner, unless otherwise determined or agreed to by the City of Jersey City.

10. The Department shall include streamlined standards and procedures in its Operating Manual for marketing on buildings or projects with three or less total units, and of which only a single unit is income controlled. These standards shall allow for an abbreviated marketing process in which qualified tenants may be identified through the Jersey City Housing Authority, at no cost to the owner, sponsor or developer, to the greatest extent permissible under state and federal law. The responsibilities of the owner, developer, and administrative agent, and the qualifications of the tenants, as set forth in this Chapter, shall nevertheless remain in full force and effect, and all marketing shall otherwise adhere to the requirements set forth in this Chapter.

    a. Occupancy Standards.

        i. In referring certified households to specific income restricted units, the administrative agent shall strive, to the extent feasible and without causing an undue delay in occupying the unit to:

            (a) Ensure each bedroom is occupied by at least one person, except for age-restricted units:

            (b) Provide a bedroom for every two adult occupants;

            (c) Provide a bedroom for every occupant under the age of 18, unless the household requests a different arrangement, which arrangement may not result in more than two occupants under the age of 18 occupying any bedroom; and

            (d) Avoid placing a one-person household into a unit with more than one bedroom.

                (1) Additional provisions related to occupancy standards (if any) shall be provided in the municipal Operating Manual, which shall be interpreted consistently with N.J.A.C 5:80-26.1 et seq. to the greatest extent possible.

    (b) Selection of Occupants of Affordable Housing Units.

        i. The administrative agent shall use a random selection process to select occupants of low- and moderate- income housing.

        ii. Income-restricted units meeting the definition of income-restricted housing but not meeting the definition of affordable housing shall follow the same selection process, unless explicitly otherwise set forth in a Redevelopment plan or zoning, deed or AHA.

        iii. A waiting list of all eligible candidates will be maintained in accordance with the provisions of N.J.A.C. 5:80-26 et seq.

B. Control Periods for Restricted Ownership Units and Enforcement Mechanisms.

1. Control periods for income restricted ownership units shall be in accordance with N.J.A.C. 5:80-26.6, and each restricted ownership unit shall remain subject to the controls on affordability for a period of at least 30 years, until the municipality takes action to release the controls on affordability.

2. Rehabilitated owner-occupied housing units that are improved to code standards shall be subject to affordability controls for a period of ten years.

3. The affordability control period for a restricted ownership unit shall commence on the date the initial certified household takes title to the unit.

4. The affordability controls and income-restrictions set forth in this article shall remain in effect despite the entry and enforcement of any judgment of foreclosure with respect to restricted ownership units and the Owner or Developer shall ensure that the deed to the property containing these restrictions and language indicating that the restriction survive foreclosure is recorded with the County Register.

5. A restricted ownership unit shall be required to obtain a Continuing Certificate of Occupancy or a certified statement from the Construction Official stating that the unit meets all code standards upon the first transfer of title that follows the expiration of the applicable minimum control period provided under N.J.A.C. 5:80-26.6(a), as may be amended and supplemented.

C. Price Restrictions for Restricted Ownership Units, Homeowner Association Fees and Resale Prices.

1. Price restrictions for restricted ownership units shall be in accordance with N.J.A.C. 5:80-26.7, as may be amended and supplemented, including:

a. The initial purchase price for a restricted ownership unit shall be approved by the Administrative Agent.

b. The Administrative Agent shall approve all resale prices, in writing and in advance of the resale, to assure compliance with the foregoing standards.

c. The method used to determine the condominium association fee amounts and special assessments shall be indistinguishable between the low- and moderate-income and other income-controlled unit owners and the market unit owners.

d. The owners of restricted ownership units may apply to the Administrative Agent to increase the maximum sales price or for the unit on the basis of capital improvements. Eligible capital. improvements shall be those that render the unit suitable for a larger household or the addition of a bathroom in accordance with N.J.A.C. 5:80-26.10 or any successor provisions of UHAC that may replace that provision; provided, however, that the maximum sales price shall also be limited in accordance with the same.

D. Buyer Income Eligibility.

1. Buyer income eligibility for affordable housing restricted ownership units shall be in accordance with N.J.A.C. 5:80-26.8, as may be amended and supplemented, such that low-income ownership units shall be reserved for households with a gross household income less than or equal to 50% of median income and moderate-income ownership units shall be reserved for households with a gross household income less than 80% of median income.

2. Buyer income eligibility for workforce housing restricted ownership units shall be such that workforce ownership units shall be reserved for households with a gross household income greater than or equal to 80% of median income and less than 120% of median income.

3. The Administrative Agent shall certify a household as eligible for a restricted ownership unit when the household is a low-income household, a moderate-income household, or a workforce household as applicable to the unit, and the estimated monthly housing cost for the particular unit (including principal, interest, taxes, homeowner and private mortgage insurance and condominium or homeowner association fees, as applicable) does not exceed 35% of the household's certified monthly income.

E. Limitations on Indebtedness Secured by Ownership Unit; Subordination.

1. Prior to incurring any indebtedness to be secured by a restricted ownership unit, the administrative agent shall determine in writing that the proposed indebtedness complies with the provisions of this section.

2. With the exception of original purchase money mortgages, during a control period neither an owner nor a lender shall at any time cause or permit the total indebtedness secured by a restricted ownership unit to exceed 95% of the maximum allowable resale price of that unit, as such price is determined by the administrative agent in accordance with N.J.A.C. 5:80-26.7(c).

F. Control Periods for Restricted Rental Units.

1. Control periods for income restricted rental units shall be set in accordance with N.J.A.C. 5:80-26.12, or such successor provisions of the New Jersey Administrative Code as may deal with the same subject matter. Accordingly, each income restricted rental unit created on or after January 1, 2025 shall remain subject to the controls on affordability for a period set forth of at least 40 years, until the municipality takes action to release the controls on affordability. Income restricted rental units created prior to January 1, 2025 shall remain subject to the affordability periods set forth in the terms of the applicable affordable housing agreement, or in the absence of such an explicit contractual term then for the period of affordability set forth in this article at the time that the unit was created.

2. Rehabilitated renter-occupied housing units that are improved to code standards shall be subject to affordability controls for a period of ten years.

3. The affordability control period applicable to income restricted rental units shall be deemed to commence upon the date that the unit is issued a certificate of occupancy and shall terminate only at the end of the control period, unless the City releases the unit from the in accordance with the processes set forth in N.J.A.C. 5:80-26.12(e) and the applicable provisions of this Chapter.

4. Deeds of all real property that include income or occupancy restricted rental units shall contain deed restriction language. The deed restriction shall have priority over all mortgages on the property, and the deed restriction shall be promptly filed by the developer or seller with the records office of the County of Hudson. A copy of the filed document shall be provided to the Administrative Agent within 30 days of the receipt of a Certificate of Occupancy.

5. Each income restricted rental unit shall remain subject to the requirements set forth in this Chapter until the end of the control period specified in the applicable affordable housing agreement and declaration of deed restriction, unless the unit's restriction is extended or extinguished in the manner set forth in N.J.A.C. 5:80-26.12 (e) and N.J.A.C. 5:80-26.12(f), or their successor provisions, in accordance with the provisions of this Chapter.

6. An income restricted rental unit shall remain subject to the affordability controls of this article, despite the occurrence of any of the following events:

   a. Sublease or assignment of the lease of the unit;

   b. Sale or other voluntary transfer of ownership of the unit; or

   c. The entry and enforcement of any judgment of foreclosure or grant of a deed in lieu of foreclosure; or

   d. The release from affordability restrictions of the affordability control period, until the occupancy by the first new tenant subject to release of controls.

7. 18 months prior to the expiration of any income restricted unit(s), the Division shall notify the Municipal Council in writing of the pending expiration of the income-restrictions to permit the Council to consider exercising its right of first refusal on the applicable unit(s).

8. Unless the Jersey City Municipal Council, by ordinance, timely exercises its right of first refusal pursuant to the processes and requirements set forth in N.J.A.C. 5:80-26.12(f), the income restricted rental units shall be deemed to have expired pursuant to the provisions of the ordinance codified in this Chapter at the end of the term set forth in the applicable AHA and deed restriction.

9. The Division is hereby authorized and directed to memorialize the unit's release from this Chapter's requirements in a written communication to the owner and tenants of all applicable units. Such communication shall include, at minimum, a reference to this provision of the Code and enabling ordinance, notice that the Division is no longer monitoring the applicable unit(s), and notice as to the continued existence of affordability controls for those tenants presently occupying the unit until they either vacated the unit or no longer income-qualified for the applicable unit. Upon its provision of such notice, the Division's obligation to monitor the unit for compliance shall cease.

10. Consistent with N.J.A.C. 5:80-26.12, when an income qualified occupant household remains in any income restricted unit after its release of the unit from monitoring and other requirements under this chapter, the affordability controls shall remain in full force and effect until the date on which the occupant household vacates the unit, unless the rental household's income exceeds 80 percent of the regional median income.

11. Consistent with N.J.A.C. 5:80-26.12, where the rental household's income exceeds 80 percent of the regional median income after the unit's release from monitoring and other requirements under this Chapter, then the affordability controls shall terminate at the later of the next scheduled lease renewal or 60 days from the date of release.

12. Price Restrictions for Rental Units; Leases.

    a. A written lease shall be required for all restricted rental units, except for units in an assisted living residence, and tenants shall be responsible for security deposits and the full amount of the rent as stated on the lease, provided that the same are permissible under this chapter and other applicable laws. A copy of the current lease for each restricted rental unit shall be provided to the Administrative Agent promptly upon execution and shall be made available to the Department on or before the next upcoming reporting period, or if earlier requested by the Department then promptly upon such request.

    b. Aside from approved rent, no additional fees or surcharges may be charged, passed-through, deducted or otherwise assessed to any qualified tenant in any income restricted unit subject to this article (except, in the case of units in an assisted living residence, to cover the customary charges for food and services) without the express written approval of the Director.

    c. The payment of the approved rent shall entitle all tenants leasing income-restricted units to fully access, use and enjoy all of their building or common interest community's common areas, services, conveniences, amenities, access points, and entitle them to all other perks and privileges available to any tenant in the same building or common interest community, without further charge or qualification, regardless of whether or not other tenants in non-income-restricted units would be required to pay a fee for the same. All leases shall contain a provision clearly and conspicuously informing tenants of this requirement, and of the tenant's ability to challenge fees by writing to the Director.

    d. Application fees (including the charge for any credit check) shall not exceed 5% of the monthly rent of the applicable restricted unit and shall be payable to the Administrative Agent to be applied to the costs of administering the controls applicable to the unit as set forth in this article.

G. Tenant Income Eligibility.

1. Tenant income eligibility for affordable units shall be in accordance with N.J.A.C. 5:80-26.14, as may be amended and supplemented, and shall be determined as follows:

    a. Very low-income rental units shall be reserved for households with a gross household income less than or equal to 30% of median income.

    b. Low-income rental units shall be reserved for households with a gross household income less than or equal to 50% of median income.

    c. Moderate-income rental units shall be reserved for households with a gross household income less than 80% of median income.

    d. Workforce units shall be reserved for households with a gross household income that is greater than 80% but does not exceed 120% of the median income.

2. The Administrative Agent shall certify a household as eligible for a restricted rental unit when the household is a very low-income, low-income household or a moderate-income household, as

applicable to the unit, and the rent proposed for the unit does not exceed 35% (40% for age-restricted units) of the household's eligible monthly income as determined pursuant to N.J.A.C. 5:80-26.17, as may be amended and supplemented; provided, however, that this limit may be exceeded if one or more of the following circumstances exists:

a. The household currently pays more than 35% (40% for households eligible for age-restricted units) of its gross household income for rent, and the proposed rent will reduce its housing costs;

b. The household has consistently paid more than 35% (40% for households eligible for age-restricted units) of eligible monthly income for rent in the past and has proven its ability to pay;

c. The household is currently in substandard or overcrowded living conditions;

d. The household documents the existence of assets with which the household proposes to supplement the rent payments; or

e. The household documents proposed third-party assistance from an outside source such as a family member in a form acceptable to the Administrative Agent and the owner of the unit.

3. The applicant shall file documentation sufficient to establish the existence of the circumstances in 2.a through e above with the Administrative Agent, who shall counsel the household on budgeting.

4. The Administrative Agent shall use parallel procedures and calculations for its certification workforce housing, and shall follow the guidance of the Division, which shall be derived from the formulas used with respect to affordable housing but adjusted for income levels commensurate with the definition of workforce housing.

H. Conversions. Each affordable housing unit created through the conversion of a non-residential structure shall be considered a new housing unit and shall be subject to the affordability controls for a new housing unit.

I. Alternative Living Arrangements.

1. The administration of an alternative living arrangement shall be in compliance with N.J.A.C. 5:93-5.8 and UHAC, with the following exceptions:

a. Affirmative marketing (N.J.A.C. 5:80-26.16), provided, however, that the units or bedrooms may be affirmatively marketed by the provider in accordance with an alternative plan approved by the Court;

b. Affordability average and bedroom distribution (N.J.A.C. 5:80- 26.4).

2. With the exception of units established with capital funding through a 20-year operating contract with the Department of Human Services, Division of Developmental Disabilities, alternative living arrangements shall have at least 30-year controls on affordability in accordance with UHAC, unless an alternative commitment is approved by the Court.

3. The service provider for the alternative living arrangement shall act as the Administrative Agent for the purposes of administering the affirmative marketing and affordability requirements for the alternative living arrangement.

4. It is understood that alternative living arrangements obligations set forth herein are monitored and enforced by the Agency. Accordingly, to the extent that the State retains this responsibility, the Division's role with respect to such obligations shall be limited to facilitating contact between the developer, owner and/or administrative agent and the Agency. This provision shall not be read to abrogate any enforcement or monitoring powers that the Division may have with respect to any unit, activity, or obligation not otherwise monitored or enforced by the Agency as an alternative living arrangement.

Editor's note—Ord. No. 25-114, adopted 11-12-2025, amended the Code by, in effect, repealing former § 188-17, and adding a new § 188-17. Former § 188-17 pertained to administrative agent, and derived from Ord. No. 21-017, adopted March 24, 2021.

§ 188-18. Municipal housing liaison.

A. The position of Municipal Housing Liaison for the City of Jersey City is hereby established. The Municipal Housing Liaison shall be appointed by the Director of the Division of Affordable Housing with advice and consent of the Jersey City Municipal Council in accordance with applicable law.

B. The Municipal Housing Liaison must be either a full-time or part-time employee of the City of Jersey City.

C. The Municipal Housing Liaison must meet the requirements for qualifications, including initial and periodic training found in N.J.A.C. 5:93.

D. The Municipal Housing Liaison shall be responsible for oversight and administration of the affordable housing program for the City of Jersey City, including the following responsibilities which may not be contracted out to the Administrative Agent:

1. Serving as the municipality's primary point of contact for all inquiries from the State, affordable housing providers, Administrative Agents and interested households;

2. The implementation of the Affirmative Marketing Plan and affordability controls.

3. When applicable, supervising any contracting Administrative Agent.

4. Monitoring the status of all restricted units in the City of Jersey City.

5. Compiling, verifying and submitting annual reports as required by the City of Jersey City;

6. Coordinating meetings with affordable housing providers and Administrative Agents, as applicable; and

7. Attending continuing education opportunities on affordability controls, compliance monitoring and affirmative marketing as offered or approved by the Superior Court.

Editor's note—Ord. No. 25-114, adopted 11-12-2025, amended the Code by, in effect, repealing former § 188-18, and adding a new § 188-18. Former § 188-1 pertained to enforcement of affordable housing regulations, and derived from Ord. No. 21-017, adopted March 24, 2021.

§ 188-19. Administrative agent. [Added 11-12-2025 by Ord. No. 25-114]

A. The City shall designate by resolution of the City Mayor and Council one or more Administrative Agents to administer newly constructed affordable or otherwise income-restricted units in accordance with N.J.A.C. 5:93 and UHAC and this Article of the Jersey City Municipal Code. A list of such designated Administrative Agents shall be kept on file with the Division.

B. The Division shall assign an Administrative Agent for each project from among the designated Administrative Agents on file in making such assignments the Division shall ensure that the Administrative Agent has maintained the necessary qualifications pursuant to criteria set forth in N.J.A.C. 5:93 and UHAC and take into account the Administrative Agent's ability to effectively complete its functions when its present workload and past performance are considered. The Developer shall execute and maintain current a written contract with the Administrative Agent, using such form of agreement as required by the City or otherwise approved by the Division, including as the City may require the form be amended from time to time. The Developer shall provide a copy of the executed contract to the Division upon request.

C. Developers of affordable units may serve as the administrative agent for their development where adequate experience, education and expertise in affordable housing administration is demonstrated to the satisfaction of the Director of the Division of Affordable Housing and where the developer is thereafter designated as an administrative agent. Designation of the developer to serve as the administrative agent shall be at the sole discretion of the City. The ability of a Developer to act as its own Administrative Agent shall be subject to immediate revocation by the Director if the Developer fails to comply with a directive by the Division of Affordable Housing with respect to any income-restricted unit, or otherwise fails to properly carry out the duties or an Administrative Agent under this section, and alternatively, may also be revoked at the discretion of the Council by a resolution.

D. The Operating Manual provided by the Division of Affordable Housing, which has been adopted by resolution of the governing body shall be updated from time to time by the Division of Affordable Housing. The Operating Manual shall after each update be promptly published on the Division's city webpage for access by Administrative Agent. The Operating Manuals shall be available for public inspection in the Office of the Municipal Clerk and in the office(s) of the Administrative Agent(s).

E. The Administrative Agent shall perform the duties and responsibilities of an administrative agent as are set forth in UHAC and which are described in full detail in the Operating Manual, including those set forth in N.J.A.C. 5:80-26.15, 17 and 19 thereof, and which include:

   i. Attending continuing education opportunities on affordability controls, compliance monitoring, and affirmative marketing as offered or approved by the Superior Court;

   ii. Affirmative Marketing;

   iii. Household Certification;

   iv. Affordability Controls;

   v. Records retention;

vi. Resale and re-rental;

vii. Processing requests from unit owners; and

viii. Reporting known violations of this Chapter or any provision of an AHA, deed restriction or directive promulgated hereunder, although the ultimate responsibility for enforcing controls on units and other such requirements rests with the municipality.

ix. Promptly providing the City with any documentation it requests that may be necessary to evaluate or respond to any public records request.

x. The Administrative Agent shall, as delegated by the City Mayor and Council, have the authority to take all actions necessary and appropriate to carry out its responsibilities, hereunder.

F. Developers and Owners are prohibited from interfering with the proper conduct of the administrative agent's duties hereunder. Accordingly, they shall not take nor threaten to take any actions against an administrative agent, make any demands of an administrative agent, or set any requirements (including contract provisions) for an administrative agent that would forbid, curtail, limit, restrict, delay, or otherwise interfere with an administrative agent's ability to do the following:

i. Diligently and impartially carry out its duties as set forth in this article, in any applicable AHA, in the manual, or in any other directive or guidance promulgated by the Division.

ii. Promptly report its activities to the City either as otherwise required or upon request by the Division.

iii. Promptly report to the City non-compliance with any provisions of this article by the Developer or Owner.

iv. Promptly provide the City with agreements, rent roles, marketing plans, communications, and any other records or materials that evidence the conduct of the administrative agent's duties, or the conduct of the Owner or Developer with respect to units covered hereby.

v. Seek guidance from the Division on questions pertaining to the duties of the Administrative Agent, developer, owner, association, or renter of any building or unit subject to this article or to the appropriate calculation of rents, or application of any formulas or calculations set forth herein.

§ 188-20. Enforcement of affordable housing regulations and income restrictions. [Added 11-12-2025 by Ord. No. 25-114]

A. Upon the occurrence of a breach of any of the regulations governing the affordable or income-restricted unit by an Owner, Developer or Tenant, the municipality shall have all remedies provided at law or equity, including but not limited to foreclosure, tenant eviction, municipal fines, a requirement for household recertification, acceleration of all sums due under a mortgage, recoupment of any funds from a sale in the violation of the regulations, injunctive relief to prevent further violation of the regulations, entry on the premises, and specific performance.

B. After providing written notice of a violation to an Owner, Developer or Tenant of a low, moderate or workforce income unit and advising the Owner, Developer or Tenant of the penalties for such violations, the municipality may take the actions set forth in the following § 188-18.C against the Owner, Developer or Tenant for any violation that is either incapable of being cured, or remains uncured for: (1) a period established by the Division based on the nature and time-sensitivity of the violation or, if applicable, (2) such notice and cure period as may be required by any applicable state or federal law.

C. The municipality may file a court action pursuant to N.J.S.A. 2A:58-11 alleging a violation, or violations, of the regulations governing the affordable housing unit or other income restricted unit. If the Owner, Developer or Tenant is found by the court to have violated any provision of the regulations governing affordable housing or other income restricted units the Owner, Developer or Tenant shall be subject to one or more of the following penalties, at the discretion of the court:

(1) A fine of not more than $1,200.00 or imprisonment for a period not to exceed 90 days, or both. Each and every day that the violation continues or exists shall be considered a separate and specific violation of these provisions and not as a continuing offense;

(2) In the case of an Owner who has rented his or her low- or moderate- income unit in violation of the regulations governing affordable housing units, payment into the City of Jersey City Affordable Housing Trust Fund of the gross amount of rent and/or any other fees or remuneration illegally charged, collected and/or received;

(3) In the case of an Owner who has rented his or her low- or moderate- income unit in violation of the regulations governing affordable housing units, payment of reasonable relocation costs, as determined by the court, to any innocent tenants that must relocate as a result of the Owner's violation.

(4) The municipality may file a court action in the Superior Court seeking a judgment, which would result in the termination of the Owner's equity or other interest in the unit, in the nature of a mortgage foreclosure. Any judgment shall be enforceable as if the same were a judgment of default of the First Purchase Money Mortgage and shall constitute a lien against the low- and moderate-income unit.

(5) Such judgment shall also be enforceable, at the option of the municipality, by means of an execution sale by the Sheriff, at which time the low- and moderate-income unit of the violating Owner shall be sold at a sale price which is not less than the amount necessary to fully satisfy and pay off any First Purchase Money Mortgage and prior liens and the costs of the enforcement proceedings incurred by the municipality, including attorney's fees. The violating Owner shall have the right to possession terminated as well as the title conveyed pursuant to the Sheriff's sale.

(6) The proceeds of any such Sheriff's sale shall first be applied to satisfy the First Purchase Money Mortgage lien and any prior liens upon the low- and moderate-income unit. The excess, if any, shall be applied to reimburse the municipality for any and all costs and expenses incurred in connection with either the court action resulting in the judgment of violation or the Sheriff's sale. In the event that the proceeds from the Sheriff's sale are insufficient to reimburse the municipality in full as aforesaid, the violating Owner shall be personally responsible for and to the extent of

such deficiency, in addition to any and all costs incurred by the municipality in connection with collecting such deficiency. In the event that a surplus remains after satisfying all of the above, such surplus, if any, shall be placed in escrow by the municipality for the Owner and shall be held in such escrow for a maximum period of two years or until such earlier time as the Owner shall make a claim with the municipality for such. Failure of the Owner to claim such balance within the two-year period shall automatically result in a forfeiture of such balance to the municipality. Any interest accrued or earned on such balance while being held in escrow shall belong to and shall be paid to the municipality, whether such balance shall be paid to the Owner or forfeited to the municipality.

(7) Foreclosure by the municipality due to violation of the regulations governing affordable housing units shall not extinguish the restrictions of the regulations governing affordable housing units as the same apply to the low- and moderate-income unit. Title shall be conveyed to the purchaser at the Sheriff's sale, subject to the restrictions and provisions of the regulations governing the affordable housing unit. The Owner determined to be in violation of the provisions of this plan and from whom title and possession were taken by means of the Sheriff's sale shall not be entitled to any right of redemption.

(8) If there are no bidders at the Sheriff's sale, or if insufficient amounts are bid to satisfy the First Purchase Money Mortgage and any prior liens, the municipality may acquire title to the low- and moderate-income unit by satisfying the First Purchase Money Mortgage and any prior liens and crediting the violating owner with an amount equal to the difference between the First Purchase Money Mortgage and any prior liens and costs of the enforcement proceedings, including legal fees and the maximum resale price for which the low- and moderate- income unit could have been sold under the terms of the regulations governing affordable housing units. This excess shall be treated in the same manner as the excess which would have been realized from an actual sale as previously described.

(9) Failure of the low- and moderate-income unit to be either sold at the Sheriff's sale or acquired by the municipality shall obligate the Owner to accept an offer to purchase from any qualified purchaser which may be referred to the Owner by the municipality, with such offer to purchase being equal to the maximum resale price of the low- and moderate-income unit as permitted by the regulations governing affordable housing units.

(10) The Owner shall remain fully obligated, responsible and liable for complying with the terms and restrictions of governing affordable housing units until such time as title is conveyed from the Owner.

Chapter 193

RESERVED*

*__Editor's note__—Ord. No. 25-071, adopted June 25, 2025, amended the Code by repealing former Ch. 193, §§ 193-1—193-12, in its entirety. Former Ch. 193 pertained to ice, and was adopted by the Council of the City of Jersey City May 4, 1971 as Ch. 8, Art. VII, of the 1971 Jersey City Code, and readopted September 19, 1978 by Ord. No. S-128.

Chapter 196

INSURANCE

ARTICLE I
Fire Insurance Proceeds

§ 196-1. Payment of proceeds to insured; restriction.
§ 196-2. Payment of proceeds to city.
§ 196-3. Claim on proceeds; priority.
§ 196-4. Limitation of liability.
§ 196-5. Applicability.
§ 196-6. Required reports; duties of Tax Collector.

[HISTORY: Adopted by the Council of the City of Jersey City: Art. I, 2-20-1979 as Ord. No. S-189. Amendments noted where applicable.)

GENERAL REFERENCES

Department of Public Safety — See Ch. 3, Art. XI.

ARTICLE I

Fire Insurance Proceeds

[Adopted 2-20-1979 as Ord. No. S-189]

§ 196-1. Payment of proceeds to insured; restriction. [Amended 1-26-1984 by Ord. No. MC-557; 11-24-1992 by Ord. No. 92-168]

A. No insurance company authorized to issue fire insurance policies in the State of New Jersey shall pay any claims in excess of two thousand five hundred dollars ($2,500.) on any real property located in this city unless:

(1) The city issues to the insured:

(a) An official certificate of search for municipal liens pursuant to N.J. S.A. 54:5-12, certifying that all taxes, assessments and other municipal liens and charges levied and assessed and due and payable against the property covered by such insurance policy have been paid; and

(b) An official certification on a form prescribed and certified by the city that demolition is not required or that the cost of demolition has been paid.

(2) The city submits to the insurance company the certification required under Subsection A(l)(b) and a certified copy of a resolution duly adopted by the city approving an agreement between the city and the owner of the insured property, in which said owner agrees to pay in full all delinquent taxes, assessments and other municipal liens by installments pursuant to N.J.S.A. 54:5-19 or pursuant to N.J.S.A. 54:5-65. No such resolution approving such agreement shall be adopted unless said owner shall agree, in writing, to use the proceeds from the policy to restore or improve the fire-damaged property.

B. Upon receiving copies of the certifications required under Subsection A(l)(a) and (b) or a certified copy of the aforesaid resolution, the insurance company is authorized to make full payment of the claim to the insured person.

C. The official certificates of search required by Subsection A(1) above may, from time to time, be altered by the authorized official of the city in order to correct any errors or omissions or to add any municipal liens or related charges due and payable subsequent to the preparation of the original official certificate.

D. Any request pursuant to this section for an official certificate of search for municipal liens shall specify that the search concerns fire-damaged property.

§ 196-2. Payment of proceeds to city. [Amended 11-24-1992 by Ord. No. 92-168]

A. If the insurance company does not receive an official certificate of search showing that all taxes, assessments, demolition charges and other municipal liens and charges have been fully paid; and an official certification on a form prescribed and certified by the city that demolition is not required; or a certified copy of the resolution described in § 196-1 of this chapter and the certification that demolition is not required; then the insurance company is hereby authorized and required, prior to the payment of any claims for fire damages which are in excess of two thousand five hundred dollars ($2,500.) to the owner of property in this city, to pay to the city the anticipated demolition costs and the amount of the liens appearing on said official certificate and such other recorded liens and related charges as may be certified to the insurance company.

B. In the event that an appeal is taken on the amount of any lien or charge, other than an appeal on the assessed valuation of the realty involved pursuant to N.J.S.A. 54:3-21, the insurance company shall withhold seventy-five percent (75%) of the full amount of the lien or charge being contested pending termination of all proceedings, at which time such moneys and all interest accruing thereon at the rate paid on interest-bearing accounts in banking institutions or savings and loan associations in this state shall be disbursed in accordance with the final order or judgment of the court.

§ 196-3. Claim on proceeds; priority. [Amended 1-26-1984 by Ord. No. MC-557]

A. A claim of the city upon the proceeds of a fire insurance policy made by the city pursuant to N.J.S.A. 17:36-8 et seq. and this chapter shall be paramount to any other claims on the proceeds except the claims:

(1) The holder of a purchase money mortgage held as a first mortgage; and

(2) An institutional lender which is a holder of a mortgage on the fire-damaged property, where the policy lists the mortgagee as the holder of an insurable interest as provided for by N.J.S.A. 17:36-12 and any amendments thereto.

B. Claims enTitled to priority under Subsection A(1) and (2) shall be paramount to the city's lien only to the extent of the amount due and owing on the mortgage.

§ 196-4. Limitation of liability.

A. Nothing in this chapter shall be construed to obligate the insurance company for any amount in excess of the value of the policy; nor shall said company be liable for payment of any liens not appearing on the official certificate of search or on any changes made thereon which had been submitted to the company.

B. Nothing in this chapter shall be construed so as to affect the authority of the city to enforce the payment of a municipal lien under any other law of this state but shall be in addition to such other remedies.

§ 196-5. Applicability.

All fire insurance policies covering real property in this city shall be subject to the provisions of this chapter as though fully set forth in each such policy of fire insurance.

§ 196-6. Required reports; duties of Tax Collector. [Amended 9-11-2013 by Ord. No. 13-081]

A. The Director of the Department of Public Safety shall cause a written report to be issued and filed with the Tax Collector as to each fire occurring in this city containing the following information:

(1) The address of the property whereon the fire occurred.

(2) The name of the fire insurance company insuring the property if it can be ascertained.

(3) The approximate estimate of the cost of the damage to the realty, if it can be ascertained.

B. Said report shall be filed with the Tax Collector immediately after each fire no matter how much the amount of the damaged caused by the fire.

C. Upon receipt of the report of the Department of Public Safety, the Tax Collector shall cause to be made an official search of all taxes, assessments and other municipal liens and charges and shall issue an official certificate of all such liens or charges which are due and payable. Said Collector shall then submit said certificate to the insurance company involved. In the event that the Department of Public Safety shall not be able to ascertain the name and address of the fire insurance company, it shall be the duty of the Tax Collector to ascertain such information.

D. The Tax Collector shall install a clerical system for the issuance of supplemental certificates and the submission of the same to the insurance company setting forth on such supplemental certificates any additional taxes or other municipal charges which have become due and payable subsequent to the issuance of the original certificate. Supplemental certificates shall be issued immediately as each new charge becomes due and payable.

E. Upon receipt of the notice of a fire, the Tax Collector shall notify each department and division of the city charged with the duty of certifying municipal charges which are unpaid to the Tax Collector who shall include the same on the official certificate of search. Such other departments and divisions are charged with the duty of installing clerical systems so that any charges which become due and payable on a fire-damaged property subsequent to the original certification shall be submitted to the Tax Collector forthwith as such new charges become due.*

***Editor's Note: Former Sec. 19-7, entitled "Commissioner of Insurance; date of filing of Ordinance," which immediately followed this section, was deleted 1-26-1984 by Ord. No. MC-557.**

Chapter 202

JUNKYARDS

§ 202-1. Definitions.
§ 202-2. License required.
§ 202-3. License application.
§ 202-4. Investigation; license issuance.
§ 202-5. License fee.
§ 202-6. Expiration of license.
§ 202-7. Suspension or revocation of license.
§ 202-8. License transfers.
§ 202-9. Records to be kept.
§ 202-10. Compliance with other regulations.
§ 202-11. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 5-4-1971 as Ch. 8, Art. VIII, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

GENERAL REFERENCES

Fees and charges — See Ch. 160.
Health and sanitation — See Ch. 182.
Property maintenance — See Ch. 254.
Secondhand metals dealers — See Ch. 275.
Sale of tires — See Ch. 313.
Used car dealers — See Ch. 324.
Zoning — See Ch. 345.

§ 202-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

JUNKYARD, SCRAP YARD or WASTE YARD — Any lot, plot, premises or building used for the scrapping, storing, dismantling or baling of scrap, waste or reclaimable material, motor vehicles, automotive equipment, construction or industrial equipment, combustible or noncombustible, whether the same is to be scrapped and baled for removal from the premises or sold on the premises at retail or wholesale, now existing and which was so being operated and conducted on or before January 1, 1962.

§ 202-2. License required.

No person shall conduct an existing junkyard, scrap yard or waste yard without first having obtained a license, hereafter called a "junkyard license," to do so.

§ 202-3. *License application.*

A. Any person desiring to obtain a junkyard license, as herein required, shall make application in writing to the license issuing authority of the city setting forth the name, address and the premises at which it is proposed to establish a junk shop or junkyard, or setting forth the premises where a junkyard, scrap yard or waste yard business is presently being conducted,

including a full description of such premises and whether the applicant owns the premises or leases them, together with the deed or lease thereon and a description of the building and the classes of materials which it is proposed to store thereon.

B. Such application shall be accompanied by the sum equaling the annual license fee which shall be returned by the license issuing authority in the event that the license is refused.

C. Such application shall state the number of years a junkyard, scrap yard or waste yard business has been conducted on the premises and whether the applicant has been convicted of the crime of larceny or removing stolen goods or any other crime involving moral turpitude.

D. Such application shall state whether all city taxes, both real and personal, on said premises have been fully paid.

§ 202-4. Investigation; license issuance.

If, after investigation, the license issuing authority is reasonably satisfied that the statements contained in the application are true, and the applicant has fully complied with the terms and conditions of this chapter and any other applicable ordinance of the city and if the proper fee has been paid the license issuing authority shall issue to the applicant a license for the premises specified in the application effective from the date of issuance.

§ 202-5. License fee. [Amended 6-14-1995 by Ord. No. 95-050]

The license fee hereunder for junkyards, scrap yards, junk dealers, scrap yard dealers and waste yard dealers is as provided in Chapter 160, Fees and Charges, payable in advance.

§ 202-6. Expiration of license. [Amended 2-11-1998 by Ord. No. 98-004]

All licenses shall expire on May 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Licenses and Fees.

§ 202-7. Suspension or revocation of license.

A. Any license issued hereunder may be suspended or revoked by the license issuing authority for any of the following reasons:

(1) The licensee has knowingly made any false or materially incorrect statement in the application.

(2) The licensee knowingly violates or knowingly permits or countenances the violation of any provision of this chapter.

(3) The licensee knowingly violates or knowingly permits or countenances the violation of any provision of any penal law or ordinance regarding theft, larceny or conversion of junk, scrap or waste or the receiving of stolen goods.

B. No suspension or revocation of any license shall be made until a ten-day written notice of the charges preferred against the licensee shall have been given to him or her personally, or by mailing the same by registered mail addressed to him or her at the licensed premises, and a reasonable opportunity to be heard thereon afforded to him or her. The hearing shall be held before and conducted by the Director of Public Safety or by the license issuing authority when so designated by the Director of Public Safety. If the hearing is held before the license issuing authority he or she shall report his or her findings and recommendations to the Director of Department of Public Safety. All suspensions or revocations of licenses shall be effected by notice in writing of such suspension or revocation, designating the effective date thereon, and, in case of suspension, the term of such suspension, which notice may be served upon the licensee personally or by mailing the same by registered mail addressed to him or her at the licensed premises. Such suspension or revocation shall apply to the licensee and to the licensed premises. Any revocation shall render the licensee ineligible to receive any other license under this chapter for a period of one year from the effective date thereof and may, in the discretion of the Director, render the licensed premises ineligible to become a subject for any future license under this chapter. **[Amended 9-11-2013 by Ord. No. 13-081]**

§ 202-8. License transfers.

The transfer of any license provided for in this chapter to any other person shall be subject to the approval of the license issuing authority and shall be approved, provided that the applicant complies with all the terms and conditions of this chapter.

§ 202-9. Records to be kept. [Amended 5-12-1988 by Ord. No. C-758]

A. All junkyard, scrap yard or waste yard dealers and junkyard, scrap yard or waste yard operators shall keep books in which records of all purchases are made, which books shall be open to public inspection so that stolen goods may be traced and other probable violations of law may be investigated.

B. No junkyard, waste yard or scrap yard dealer and no operator of a junkyard, waste yard or scrap yard shall knowingly purchase or receive, or attempt to purchase or receive, or have in its possession or on its premises any goods, materials or equipment, whether intended for scrapping or resale, which are sold by any person from any shopping cart or wheeled conveyance normally used by customers of retail food establishments.*

§ 202-10. Compliance with other regulations.

All junkyards, scrap yards or waste yards, junkyard dealers, scrap yard dealers and waste yard dealers operating in the city shall be governed and controlled by this chapter and by the ordinances and codes of any and all departments in the city as though the same were fully set forth herein.

***Editor's Note: See also Ch. 284, Shopping Carts.**

§ 202-11. Violations and penalties.*

Any person violating any of the provisions of this chapter, upon conviction thereof, shall be punishable as provided in Chapter 1, General Provisions, § 1-25. Each day such violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder.

*Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

[The next page is 20301]

Chapter 203

KEY LOCK BOX SYSTEM

§ 203-1. Definitions.

§ 203-2. Requirements; structures subject to the use of a key lock box system.

§ 203-3. Exceptions.

§ 203-4. Specifications.

§ 203-5. Administration; recordkeeping; notification; registration.

§ 203-6. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 3-11-1998 by Ord. No. 98-018. Amendments noted where applicable.]

GENERAL REFERENCES

Multiple dwellings — See Ch. 218.

Retail and commercial premises — See Ch. 263.

§ 203-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

CABINET STYLE VAULTS — In addition to the contents of the basic key lock box, the cabinet style vault contains building floor plans, site plans, hazardous material information and material safety data sheets.

HAZARDOUS MATERIALS — Flammable solids, flammable and combustibles liquids, corrosive liquids, radioactive materials, oxidizing materials, explosive materials, highly toxic materials, fumigants, unstable (reactive) chemicals and poisonous gases as defined in N.J.A.C. 5:18-3.2.

KEY LOCK BOX SYSTEM — A box designed to contain building entrance keys and keys to other areas of a building, such as locked rooms and storage areas.

MSDS — Material Safety Data Sheet.

UL — Underwriters Laboratories.

§ 203-2. Requirements; structures subject to the use of a key lock box system.

A. The following structures shall be equipped with a key lock box at or near the main entrance or such other location specified by the Fire Official:

(1) Structures protected by automatic alarm system or automatic suppression system; or

(2) Structures secured in a manner that restricts access during an emergency.

B. All newly constructed structures subject to this section shall have the key lock box installed and operational before issuance of a certificate of occupancy.

C. The owners of structures in existence shall have one year from the effective date of this chapter to have a key lock box system installed and operational.

D. The owner or operator of the structure required to have a key lock box shall, at all times, keep a key in the lock box that will allow access to the structure.

E. The Fire Official shall designate the type of key lock box to be implemented within the city and shall have the authority to require all structures to use the designated system.

F. Owners or operators of controlled vehicle parking areas which use mechanical parking gates to control motor vehicle ingress and egress shall install and maintain an emergency override control device on each gate. Said device shall be a master key-operated-type switch approved by the Fire Official of the City of Jersey City.

G. Cabinet style vaults shall be required when deemed necessary by the Fire Official at premises containing hazardous material. These cabinets shall contain hazardous material information and material safety data sheets, site plans, floor plans and other information required by the Fire Official.

H. Cabinet style vaults for document storage shall be available with two separate locks. The key to either lock shall open the vault.

I. Upon examination of the physical condition and characteristics of any property and upon notice, in writing, to the assessed owner and principal occupant, the Fire Official may further require a key lock box in a specific location whenever access to or within a structure is unduly difficult because of secured openings or where immediate access is necessary for lifesaving or fire fighter purposes.

J. All costs associated with the purchase and installation of the key lock box system shall be the responsibility of the owner of the premises.

§ 203-3. Exceptions.

A. Any property protected by on-site, twenty-four-hour, seven-day-a-week security guard service or maintenance personnel shall be exempt.

B. All residential properties of six stories or less shall be exempt.

§ 203-4. Specifications.

A. Key box contents shall be as follows:

(1) Keys to locked points of egress, whether on interior or exterior of such buildings.

(2) Keys to the locked mechanical rooms.

(3) Keys to the locked elevator rooms.

(4) Keys to the elevator controls.

(5) Keys to any fence or secured areas.

(6) Keys to any other areas as directed by the Fire Official.

(7) A floor plan of the rooms within the building.

(8) When applicable, MSDS.

B. Key box type(s)/specifications.

(1) The key box shall be of a UL-type and shall be installed in a location approved by the Jersey City Fire Official.

(2) Locks shall be Medeco Biaxial Level 7 or equivalent.

(3) Key vaults shall have the ability to be master keyed.

(4) Locks shall be designed for high resistance to drilling, picking, pushing and pulling.

(5) Lock code and key section shall be unconditionally restricted by the key vault manufacturer for use by the Department of Public Safety only. **[Amended 9-11-2013 by Ord. No. 13-081]**

(6) Locks shall be listed under UL 437, the standard for safety key locks.

(7) Key lock boxes shall offer key vaults which are listed under UL 1610, the standard for Central Station Alarm Units for use with UL-listed alarm systems.

(8) Key lock boxes shall offer key vaults which are listed under UL 1037, the standard for antitheft alarms and devices.

(9) A fully inserted key shall withstand a minimum of pounds per square inch of torque.

(10) Key vaults shall have weatherproof gasket seals of neoprene material or better around openings.

(11) Key vaults shall have covered locked openings constructed of heavy gauge steel designed to resist vandalism.

(12) Key vaults shall have minimum wall thickness of 1/4 inch and door thickness of one-half-inch plate steel.

(13) Cabinet-style vaults for document storage shall have a minimum wall and door thickness of one-eighth-inch plate steel with an additional drill resistance hard plate to protect the lock mechanism.

§ 203-5. Administration; recordkeeping; notification; registration. [Amended 9-11-2013 by Ord. No. 13-081]

A. Recordkeeping. The Fire Official shall record all pertinent data regarding each property protected by a key lock box. The Fire Official shall include whatever information is necessary for recordkeeping purposes.

B. Registration fee. There shall be a twenty-five-dollar registration fee when a lock box is initially installed.

C. The Department of Public Safety shall be in complete control of the key lock box system authorization and operation.

D. Each key lock box system shall utilize approved signature(s) from the Department of Public Safety for release of keys and all lock products from the manufacturer.

E. Notification. If locks are changed at any location with a key lock box system, the Fire Official shall be notified immediately.

F. Enforceability. This chapter may be enforced by the Department of Public Safety and the Building Division.

§ 203-6. Violations and penalties.

Any person found guilty of violating this chapter shall be punished as provided in Chapter 1, General Provisions, § 1-25.

Chapter 207

LAUNDRIES AND DRY CLEANERS*

ARTICLE I
Coin-Operated Dry Cleaners

§ 207-1. Definitions.
§ 207-2. Permit required; application.
§ 207-3. Contents of application.
§ 207-4. Inspection of equipment; fee; renewal.
§ 207-5. Maintenance area.
§ 207-6. Entry to maintenance area.
§ 207-7. Interconnection of maintenance area and heating devices.
§ 207-8. Installation of heating devices.
§ 207-9. Ventilation; exhaust fans required.
§ 207-10. Ventilation; temperature of replenishing air.
§ 207-11. Machine exhaust system.
§ 207-12. Metal pan to collect machine spillage.
§ 207-13. Floor covering in customer area.
§ 207-14. Reserved.
§ 207-15. Maintenance employee on duty.
§ 207-16. Compliance with other regulations.
§ 207-17. Location in dwelling prohibited.
§ 207-18. Respirator to be provided.
§ 207-19. Fire extinguisher in customer area.
§ 207-20. Posting of instructions.
§ 207-21. Posting of emergency telephone number.
§ 207-22. Interlock system on machine door.
§ 207-23. Elimination of solvent vapors from cleaned items.
§ 207-24. Elimination of solvent odor.
§ 207-25. Flammable spotting equipment prohibited.
§ 207-26. Daily inspections and maintenance record.
§ 207-27. Storage of solvents.
§ 207-28. Disposal of filter residue containing solvents.
§ 207-29. Drainage of solvent to sewer prohibited.
§ 207-30. Inspections; right of entry.
§ 207-31. Nuisances.

ARTICLE II
Laundries

§ 207-32. Definitions.
§ 207-33. Changes in location.
§ 207-34. Registration required.
§ 207-35. Sanitary conditions; inspections.
§ 207-36. Display of license.
§ 207-37. License required; exception.
§ 207-38. License fee.
§ 207-39. License application.
§ 207-40. Revocation of license.
§ 207-41. General sanitary requirements.

***History**—Adopted by the Council of the City of Jersey City: Art. I, May 4, 1971 as Ch. 8, Art. VI, of the 1971 Jersey City Code, as readopted September 19, 1978 by Ord. No. S-128; Art. II, May 4, 1971 as Ch. 8, Art. IX, of the 1971 Jersey City Code, as readopted September 19, 1978 by Ord. No. S-120. Amendments noted where applicable.

Cross references—Fees and charges, Ch. 160; noise, Ch. 222; zoning, Ch. 345.

§ 207-42. Cleanliness of machines.
§ 207-43. Temperature of water.
§ 207-44. Ventilation and light.
§ 207-45. Reserved.
§ 207-46. Noise.
§ 207-47. Use of residential buildings.
§ 207-48. Additional rules and regulations.

ARTICLE I

Coin-Operated Dry Cleaners

[Adopted 5-4-1971 as Ch. 8, Art. VI, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 207-1. Definitions. [Amended 6-25-2025 by Ord. No. 25-072]

As used herein; the following terms shall have the meanings indicated:

CUSTOMER AREA — that portion of the establishment to which the general public is permitted access.

DRY CLEANING ESTABLISHMENTS — hereafter called a "dry-cleaning establishment" or a "dry cleaner," premises wherein devices for the cleaning of textiles, fabrics, garments or other articles by the use of any solvent, other than water, are installed for use by the general public.

HEALTH AUTHORITY — the Division of Environmental Health, Department of Health and Human Services, or an authorized representative thereof.

MAINTENANCE AREA — that portion of the establishment to which the customer is not permitted access and used for general maintenance and storage purposes.

SOLVENT — any cleaning fluid which is free of additives to mask the odor, classified by the American Insurance Association as nonflammable at ordinary temperatures, and not more toxic than the generally accepted threshold limit value for perchlorethylene as promulgated by the American Conference of Governmental Industrial Hygienists.

§ 207-2. Permit required; application. [Amended 6-25-2025 by Ord. No. 25-072]

Any person desiring a dry cleaner permit to operate a dry-cleaning establishment shall make application therefor in writing to the Division of Health.

§ 207-3. Contents of application. [Amended 6-25-2025 by Ord. No. 25-072]

Applications for dry cleaner permits shall contain the following information:

A. The applicant's full name, residence, telephone number and post office address and whether such applicant is an individual, firm or corporation. If a partnership, the names and addresses of the partners shall be included. If a corporation, the names and addresses of the officers and the registered agent of the corporation shall be included.

B. The proposed location of the establishment, a floor plan showing the building outline, location of the equipment, drainage, toilet and washing facilities.

C. The manufacturer of the machine, the trade name and manufacturer's agent.

D. The name, address and authorized officer of the person engaged to install the equipment.

E. Name or names of maintenance personnel and their telephone numbers.

F. The signature of the applicant or its authorized officer.

§ 207-4. Inspection of equipment; fee; renewal. [Amended 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052; 9-11-2013 by Ord. No. 13-081; 6-25-2025 by Ord. No. 25-072]

Following receipt of such application, dry cleaning equipment locations shall be inspected by the Division of Construction Code Official, the Department of Public Safety and the Division of Environmental Health prior to the installation of dry-cleaning equipment. If approved by all three agencies and the Director of the Department of Health and Human Services, the health authority shall make such investigation as may be necessary of maintenance and storage facilities, as well as machines and their locations in and about the premises, to determine compliance with the provisions of this article. Upon approval of the application, a dry cleaner permit shall be issued after payment of a fee as provided in Chapter 160, Fees and Charges, along with any reinspection or late fees as applicable, set forth in § 160-1(Q)(2), to the Division of Environmental Health, which permit shall expire each year and shall be renewed annually.

§ 207-5. Maintenance area. [Amended 6-25-2025 by Ord. No. 25-072]

The public shall only be permitted access to that portion of dry-cleaning machines necessary for the use of those machines. The remaining portion of each machine shall be separated from the customer area by a partition in which there are grills or similar ventilation devices. This partitioned-off area shall be called the "maintenance area." The access door to the maintenance area shall be self-closing and locked to prevent access by the public.

§ 207-6. Entry to maintenance area. [Amended 6-25-2025 by Ord. No. 25-072]

No person other than the permit holder or his or her representative shall enter the maintenance area of a dry cleaner.

§ 207-7. Interconnection of maintenance area and heating devices. [Amended 6-25-2025 by Ord. No. 25-072]

The maintenance area of a dry cleaner shall not be interconnected with the area containing heating devices requiring air for combustion, such as gas dryers, water heaters and comfort heating devices.

§ 207-8. Installation of heating devices. [Amended 6-25-2025 by Ord. No. 25-072]

Heating devices in dry cleaners requiring air for combustion shall be installed in such fashion as to obtain air for combustion from the outside atmosphere.

§ 207-9. Ventilation; exhaust fans required.

A. Ventilation of dry-cleaning establishments shall be accomplished by the drawing of air from the customer area through grills or other openings in the partition by means of an exhaust fan or fans operating in the maintenance area. **[Amended 6-25-2025 by Ord. No. 25-072]**

B. Exhaust fans shall have a rated capacity of 400 cubic feet per minute (cfm) per machine for normal use and 1,000 cubic feet per minute (cfm) per machine for use in emergencies. The rated capacities of exhaust fans shall appear on this equipment or its nameplate.

C. If air is being constantly exhausted as a built-in feature of the equipment, the rated capacity of the fan can be reduced by this amount.

§ 207-10. Ventilation; temperature of replenishing air. [Amended 6-25-2025 by Ord. No. 25-072]

In the ventilation of dry-cleaning establishments, air shall be replenished at a temperature not less than 60° Fahrenheit as quickly as it is exhausted from the customer area.

§ 207-11. Machine exhaust system. [Amended 6-25-2025 by Ord. No. 25-072]

Each dry-cleaning machine shall be equipped with an exhaust system that maintains a minimum of 100 feet per minute velocity through the loading door whenever the door is open. The duct work connections to this system shall be sealed (soldered or taped) and the discharge outlet extended to a minimum height of five feet above the roof line and shall be located so that the effluent may not re-enter the premises or become a nuisance to occupants of adjoining buildings.

§ 207-12. Metal pan to collect machine spillage.

A concrete dike or metal pan or similar facility shall be installed at the location of each machine to collect and contain spillage.

§ 207-13. Floor covering in customer area.

The floor covering in the customer area shall be made of concrete or a material similarly resistant to the solvents used in such machines.

§ 207-14. Reserved.

Editor's note—Ord. No. 25-072, adopted June 25, 2025, amended the Code by repealing former § 207-14, which pertained to hours of operation, and derived from the original codification.

§ 207-15. Maintenance employee on duty. [Amended 6-25-2025 by Ord. No. 25-072]

There shall be on duty at all times during the hours of operation at every dry-cleaning establishment at least one adult maintenance employee who has been instructed as to solvent hazards and who is familiar with all necessary emergency repairs.

§ 207-16. Compliance with other regulations. [Amended 6-25-2025 by Ord. No. 25-072]

All dry-cleaning establishments shall meet the requirements of all established state and local laws, codes and regulations, including but not limited to air pollution, electrical wiring, plumbing, fire prevention, waste disposal, sanitation, solvent storage, food or beverage vending, hours of operation and presence of an attendant.

§ 207-17. Location in dwelling prohibited. [Amended 6-25-2025 by Ord. No. 25-072]

No dry-cleaning establishment shall be located in a building occupied in whole or in part as a dwelling.

§ 207-18. Respirator to be provided. [Amended 6-25-2025 by Ord. No. 25-072]

A respirator, approved by the National Institute for Occupational Safety and Health and meeting Occupational Safety and Health Administration standards for protection against organic solvent vapors and any other dangerous inhalable compounds present, shall be provided for and used by maintenance personnel during correction of leakages, cleaning of the system, removal of lint and muck bags and at all times when the odor of solvent is noticeable.

§ 207-19. Fire extinguisher in customer area.

The customer area shall be equipped with a fire extinguisher approved for use against electrical or oil fires by the American Insurance Association.

§ 207-20. Posting of instructions. [Amended 6-25-2025 by Ord. No. 25-072]

A step-by-step, readily legible, instruction list for operation of the machines shall be posted in a conspicuous location near the machine in the customer area. These instructions shall include a list of items not to be dry cleaned in dry-cleaning machines, such as those made in part or completely of plastic, rubber, leather, paper, fur, angora and urethane.

§ 207-21. Posting of emergency telephone number. [Amended 6-25-2025 by Ord. No. 25-072]

Each dry-cleaning establishment shall post in a conspicuous location, readily visible from the outside of these premises, the telephone number or numbers to be called in the event of an emergency.

§ 207-22. Interlock system on machine door. [Amended 6-25-2025 by Ord. No. 25-072]

Each dry-cleaning machine shall be provided with an interlock system to prevent the loading door from being opened during the normal cycle or in the event of a power failure. This system may be either electrical or mechanical, or a combination of the two.

§ 207-23. Elimination of solvent vapors from cleaned items. [Amended 6-25-2025 by Ord. No. 25-072]

No dry-cleaning machine shall be permitted to be operated in a dry-cleaning establishment which in normal operation fails to eliminate all vapors from the cleaned items upon completion of the dry-cleaning cycle.

§ 207-24. Elimination of solvent odor. [Amended 6-25-2025 by Ord. No. 25-072]

Immediate action shall be taken to eliminate solvent odor in the customer area of a dry-cleaning establishment. Failure to take such action shall be just cause for closing the establishment. Vapors or odors from such establishments shall be exhausted in such manner as not to constitute air pollution.

§ 207-25. Flammable spotting equipment prohibited. [Amended 6-25-2025 by Ord. No. 25-072]

No person shall use spotting equipment containing flammable material in a dry-cleaning establishment.

§ 207-26. Daily inspections and maintenance record. [Amended 6-25-2025 by Ord. No. 25-072]

Each dry-cleaning machine shall be inspected each day it is in operation and kept in good repair by maintenance personnel. A record shall be kept in the maintenance area of all inspections and repairs made.

§ 207-27. Storage of solvents.

Solvents shall be kept in closed air-tight containers and handled in such manner as to prevent the escape of odors.

§ 207-28. Disposal of filter residue containing solvents.

Filter residue and other residues containing solvents shall be disposed of so as not to create a health hazard or nuisance.

§ 207-29. Drainage of solvent to sewer prohibited. [Amended 6-25-2025 by Ord. No. 25-072]

Dry-cleaning solvent shall not be permitted to drain into the sewer.

§ 207-30. Inspections; right of entry. [Amended 6-25-2025 by Ord. No. 25-072]

The health authority shall inspect dry-cleaning establishments as often as deemed necessary. The permit holder or his or her representative shall allow access to any portion of the establishment for the purpose of making such an inspection.

§ 207-31. Nuisances. [Amended 6-25-2025 by Ord. No. 25-072]

Any dry-cleaning establishment constructed, operated or maintained in violation of this article is hereby declared to be a nuisance and detrimental to public health.

ARTICLE II

Laundries

[Adopted 5-4-1971 as Ch. 8, Art. IX, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 207-32. Definitions. [Amended 6-25-2025 by Ord. No. 25-072]

As used in this article, the following terms shall have the meanings indicated:

DROP OFF— the service being on premises.

DRY CLEANERS — any place, building, structure, room, establishment or portion thereof which is used for the cleaning of textiles, fabrics, garments or other articles by the use of any solvent, other than water, and where such work is done for the general public for profit or where operated in connection with any hotel, restaurant or public institution where no charge is made for dry-cleaning services. **[Added 8-16-1995 by Ord. No. 95-068]**

LAUNDRIES CLASS A — any business operating a dry cleaner and/or a laundromat.

LAUNDRIES CLASS B — any business collecting items to be dry cleaned at a separate location that does not already have a class A license.

LAUNDRY BUSINESS:

A. Any place, building, structure, room, establishment or portion thereof which is used for washing, drying, starching or ironing shirts, dresses, underwear, collars, cuffs or other wearing apparel, table, bed or other household linens, towels, curtains, draperies or other washable fabrics and where such work is done for the general public for profit.

B. Any laundry maintained or operated in connection with any hotel, restaurant or public institution where no charge is made for laundry services.

§ 207-33. Changes in location.

In the event that a laundry business moves the location of its business, a new registration with the Health officer shall be made within ten days after completion of the move, and a new laundry license shall not be issued unless the new place of business complies with all sanitary requirements contained in this article.

§ 207-34. Registration required.

Every person conducting a laundry business shall register with the Health Officer the name or Title by which the business is known, together with the address where the business is carried on. If the laundry does business under a trade name, there shall be registered, as well, the names and addresses of the individuals comprising the firm and, if the laundry is a corporation, there shall be registered the names

and addresses of the directors and the agent upon whom process may be served. If the owners or operators of a laundry doing business in the city are nonresidents of the city, all such persons shall name a person resident of Jersey City upon whom process may be served.

§ 207-35. Sanitary conditions; inspections.

The Health Officer shall regularly inspect all licensed laundries as to the sanitary conditions prevailing therein, and such officer may recommend and order changes in any laundry establishment where sanitary conditions do not satisfy the sanitary regulations of the Health Officer. In the event of failure to comply with the order of the Health Officer within a reasonable time, the Health Officer may revoke the license of the offending licensee.

§ 207-36. Display of license.

All laundry licenses shall be prominently displayed in the establishment where laundry work is done.

§ 207-37. License required; exception.

No person shall conduct or carry on any laundry, launderette, cleaning or dyeing business, or operate or conduct any laundry, launderette, cleaning or dyeing establishment or installation where articles are processed in or on any premises in the city except installations in buildings erected solely and exclusively for residential purposes and for the sole use of tenants thereof, until he has first obtained a license therefor from the Health Officer.

§ 207-38. License fee. [Amended 4-28-1988 by Ord. No. C-730; 6-14-1995 by Ord. No. 95-050; 6-25-2025 by Ord. No. 25-072]

Every person operating or conducting any laundry, launderette, cleaning or dyeing business or establishment or installation, including establishments as defined in § 207-1 of this Code, shall pay an annual license fee as provided in Chapter 160, Fees and Charges, as well as any reinspection or late fees as applicable, set forth in § 160-1(Q)(2). All licenses or renewals shall expire each year and be renewed annually.

§ 207-39. License application. [Amended 8-13-1997 by Ord. No. 97-052; 9-11-2013 by Ord. No. 13-081; 6-25-2025 by Ord. No. 25-072]

Applications for laundry and dry cleaning licenses, and annual renewals thereof, shall be made on forms to be provided by the Division of Environmental Health, and filed by the applicant with the Division of Environmental Health. The license fee shall accompany each application for a license or renewal thereof. The approval of the Department of Public Safety and Division of Construction Code Official, in accordance with ordinances and regulations governing the same, shall be condition precedent to the issuance of each license and each annual renewal.

§ 207-40. Revocation of license.

The Health Officer may suspend or revoke any license issued hereunder for a violation of any of the provisions hereof or of any regulation or order of the Health Officer made in accordance with and to

carry out the provisions of this article, after the licensee has been given notice of the violation and an opportunity to show cause before the Health Officer why the license should not be suspended or revoked.

§ 207-41. General sanitary requirements.

All places and spaces used for laundries, launderettes, cleaning or dyeing establishments or installations shall be sufficiently or properly covered with nonabsorbent paint or cement or other impervious material. There shall be an adequate supply of water for flushing and cleaning available and such flooring shall be properly graded to a trapped inlet having direct connection with the house drain. Sufficient toilet facilities for male and female employees of such establishments shall be provided.*

§ 207-42. Cleanliness of machines.

Machines used for washing, laundering, cleaning or dyeing, shall be kept thoroughly washed and cleaned and shall be kept clean at all times.

§ 207-43. Temperature of water. [Amended 6-25-2025 by Ord. No. 25-072]

Water shall be heated to a temperature of not less than 180° Fahrenheit and shall be maintained at that temperature during the cleansing process, unless some other method which will produce equal results and acceptable to the Division of Environmental Health is employed.

§ 207-44. Ventilation and light.

The rooms in which any washing or laundering facilities are located shall be adequately ventilated and shall have a sufficient amount of light.

§ 207-45. Reserved.

Editor's note—Ord. No. 25-072, adopted June 25, 2025, amended the Code by repealing former § 207-45, which pertained to hours of operation, and derived from the original codification.

§ 207-46. Noise.

No machinery used in any laundry, launderette, cleaning or dyeing establishment shall be operated so as to create any noises or vibrations to the detriment of the families on premises in the surrounding neighborhood.

§ 207-47. Use of residential buildings.

A. No laundry, launderette, cleaning or dyeing establishment shall be conducted in any building devoted exclusively to residential occupation or in any residential portion of a building, except there may be established in any such building one or more washing or laundry facilities which shall be used solely

*__Editor's note__—Original Sec. 8-127, entitled "Laundry and dry cleaning; articles from quarantined houses," and Sec. 8-128, entitled " Laundry and dry cleaning from quarantined houses; compliance with provision," which immediately followed this section, were deleted June 14, 1995 by Ord. No. 95-050.

by and for the convenience and service of the residents of the residential building. Such washing and laundering facilities for use by residents of a building shall be constructed and operated in accordance with the regulations and conditions set forth in this article.

B. No license shall be required for the operation of washing and laundering facilities in any such residential building or portion thereof, but this exception shall not apply to store units in buildings occupied in part for residential purposes.

§ 207-48. Additional rules and regulations.

The Health Officer may promulgate such rules and regulations as may be necessary to effectuate the sanitary, health and plumbing provisions of this chapter.

Chapter 215

MOTOR VEHICLE REPAIR SHOPS

§ 215-1. Definitions.
§ 215-2. License required.
§ 215-3. License application.
§ 215-4. Investigation; license issuance.
§ 215-5. Expiration; renewal.
§ 215-6. License fees.
§ 215-7. Establishments to be separately licensed.
§ 215-8. License nontransferable.
§ 215-9. General operating requirements.
§ 215-10. Suspension or revocation of license.
§ 215-11. Hearings.
§ 215-12. Grace period.
§ 215-13. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 7-22-1982 as Ord. No. MC-192. Amendments noted where applicable.]

GENERAL REFERENCES

Fees and charges — See Ch. 160.
Junkyards — See Ch. 202.
Property maintenance — See Ch. 254.
Sale of tires — See Ch. 313.
Used car dealers — See Ch. 324.
Zoning — See Ch. 345.

§ 215-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

MOTOR VEHICLE — An automobile, truck, motorcycle or any other trackless self-propelled vehicle designed primarily to transport persons or property over public streets and highways.

MOTOR VEHICLE REPAIR SHOP:

A. Any place, indoors or outdoors, where motor vehicles are repaired for a fee; or where the work of repairing motor vehicles is carried on as an incident to:

(1) The business of selling new or used motor vehicles;

(2) New or used motor vehicle parts; or

(3) Any other traffic in motor vehicles or their parts or equipment.

B. "Motor vehicle repair shop" does not include places where only the following work is done:

(1) Tire changing or repairing.

(2) Lamp globe changing.

(3) Charging of batteries.

(4) Installing minor parts or making trivial repairs customarily done in connection with the business of selling motor fuel, oil or motor vehicle accessories.

PERSON — Any person, firm, partnership, association, corporation or organization of any kind.

REPAIR WORK ON MOTOR VEHICLES — Any work done on the premises of a motor vehicle repair shop which requires direct or indirect physical contact with a motor vehicle or any part of a motor vehicle.

§ 215-2. License required.

No person may operate a motor vehicle repair shop within the City of Jersey City without first obtaining a license from the license issuing authority in accordance with the provisions of this chapter. A person who operates more than one (1) motor vehicle repair shop within the city shall obtain a separate license for each shop.

§ 215-3. License application.

A. An applicant for a motor vehicle repair license shall file an application with the license issuing authority upon forms provided by the license issuing authority. The application form shall be signed by the applicant, by all partners if the applicant is a partnership or by the president or chief officer if the applicant is a corporation. Each person signing the application shall swear before a notary public to the truth of all information contained in the application.

B. Applications shall contain the following information:

(1) Name, resident address and telephone number of each individual owner, partner or, if a corporation or other organization, each officer and director.

(2) Trade names and exact locations and descriptions of any businesses operated by the applicant and each person signing the application within the past five (5) years.

(3) Names and addresses of employers of each person signing the application within the past five (5) years.

(4) A statement as to whether the applicant and each person whose name appears on the application has been convicted of any crime, the nature of the offense and the date of the conviction.

(5) The trade name and telephone number of the business of the applicant.

(6) The name, resident address and telephone number of each person employed or intended to be employed in the business as of the time of the application.

(7) The address of the place where the business is to be conducted.

(8) Any other information which the supervisor of licenses finds reasonably necessary to enforce this chapter.

§ 215-4. Investigation; license issuance.

A. Upon receipt of a completed application the license issuing authority shall investigate the business responsibility and moral character of the applicant and shall inspect the premises and equipment with which the motor vehicle repair shop is to be conducted.

B. The license issuing authority shall approve the application only if he or she finds that:

(1) The applicant's business responsibility and moral character are satisfactory and that all partners, directors and officers of the applicant who will participate in the applicant's business are of good character and reputation and are capable of operating the business in a manner consistent with the public welfare.

(2) The proposed or existing premises and equipment with which the business is to be conducted conform to the requirements of the Building Code, applicable health and fire prevention codes and this chapter.

C. If either of the findings in Subsection B of this section are unfavorable to the applicant, the license issuing authority shall notify the applicant within 30 days after the filing of his or her application that no license will be issued. This notification shall be accompanied by a written statement of the grounds upon which the application was disapproved.

D. All licenses shall contain the following language:

> IMPORTANT. This license is valid only for the address listed on the license. It authorizes the holder of this license to operate a motor vehicle repair shop in a lawful place and manner. It is not a substitute for a certificate of occupancy or any other license or permit required by applicable laws; nor does it relieve the holder of this license of the responsibility to have all permits and certificates required by law at all times or to comply with all laws affecting the operation of its business.

§ 215-5. Expiration; renewal.

A. All licenses shall expire on October 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Licenses and Fees. **[Amended 2-11-1998 by Ord. No. 98-004]**

B. An applicant for a renewal license shall file with the license issuing authority a written application which conforms in all respects to the original application.

§ 215-6. License fees.

A. The annual fee for all licenses and renewal licenses shall be as provided in Chapter 160, Fees and Charges. **[Amended 6-14-1995 by Ord. No. 95-050]**

B. All license fees shall be paid when the applicant files his or her application and are to be computed as of the date of filing of the application.

§ 215-7. Establishments to be separately licensed.

A separate license shall be obtained in the manner prescribed by this chapter for each branch or separate location of the applicant's business as if each branch or separate location were a separate business.

§ 215-8. License nontransferable.

No license issued under this chapter shall be transferred, assigned or used by any person other than the one to whom it is issued; nor shall any license be used for any location other than the one for which it is issued.

§ 215-9. General operating requirements.

A. No partially dismantled, nonoperable or wrecked motor vehicle shall be stored or dismantled on the repair shop premises except as a direct, immediate and necessary incident to its repair unless the storage or dismantling is necessary to some business in which the licensee is lawfully engaged in conjunction with the motor vehicle repair business.

B. The following general operating requirements shall apply to all motor vehicle repair shops:

(1) The license issued under this chapter shall be plainly displayed on the business premises.

(2) No noxious weeds or appreciable amounts of refuse shall be allowed to accumulate on the premises.

(3) A record must be kept showing the address and signature of every person from whom any secondhand parts are bought or obtained. This record shall be available for inspection by any law enforcement officer for a period of at least one year.

(4) An itemized statement of parts and labor used in repairing a motor vehicle shall be furnished to the owner of the motor vehicle or upon the request of the insurance company which has insured the vehicle, its owner or operator.

(5) If secondhand parts are used for any repair or alteration of a motor vehicle, the customer must be informed that the parts are not new and that fact noted on any written estimate or bill.

(6) A written report shall be made to the Chief of Police within 24 hours when any motor vehicle with gun shot damage is brought to the repair shop. This report shall include, if available, the license number, serial number, engine number, make, model, year and color of the vehicle and the name and address, sex, race and approximate age of the person who brought the vehicle.

§ 215-10. Suspension or revocation of license.

The license issuing authority may suspend or revoke any motor vehicle repair shop license if he or she finds, after investigation, that:

A. The licensee or any agent, officer or employee of the licensee who takes part in the operation of the licensed business has failed to comply with this chapter or any law applicable to the premises, equipment or operation of the licensed business.

B. The licensee or any agent, officer or employee of the licensee has in the course of the licensed business:

(1) Mutilated or altered the engine or serial number of any motor vehicle;

(2) Made wrongful use of any motor vehicle entrusted to the licensee; or

(3) Willfully or through gross negligence endangered the life or safety of any person.

C. The licensee or any agent, officer or employee of the licensee has defrauded or attempted to defraud any person by means of charging or attempting to charge for any unnecessary or unauthorized repairs by intentionally misstating the nature or probable cost of any repair or by any other means.

D. The licensee has obtained his or her license through any fraud or misstatements.

E. The licensed business is being conducted in a manner detrimental to the health, safety or general welfare of the public or is no longer being operated.

§ 215-11. Hearings.

Any person aggrieved by any decision of the license issuing authority granting, denying, renewing, suspending or revoking a license for a proposed or existing motor vehicle repair shop may file a request for a hearing before the Business Administrator within ten (10) days after the issuance of the supervisor's decision. The Business Administrator shall schedule a hearing no later than ten (10) days after he or she receives notice of the request. The Business Administrator shall also give notice of the hearing to other persons directly interested in the decision subject to the hearing. At the hearing, the Business Administrator shall decide whether the decision of the license issuing authority was in accordance with the provisions of this chapter. He or she shall issue written findings of fact, conclusions of law and an order to carry out his or her findings and conclusions. A copy of this order shall be sent to all parties appearing before the Business Administrator.

§ 215-12. Grace period.

Each person operating a motor vehicle repair shop on the effective date of this chapter shall have a period of ninety (90) days after the effective date to apply for the license required by this chapter.

§ 215-13. Violations and penalties.[2]

In addition to the suspension or revocation of his or her license, any person found guilty of violating this chapter shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

2 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 218

MULTIPLE DWELLINGS*

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§ 218-2. Violations and penalties.

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ARTICLE I

Security Service and Security Cameras [Adopted 9-9-1982 by Ord. No. MC-220; amended in entirety 4-26-2006 by Ord. No. 06-056]

§ 218-1. Uniformed security service. [Amended 11-27-1985 by Ord. No. C-75; 9-11-1986 by Ord. No. C-282; 4-26-2006 by Ord. No. 06-056; 06-14-2006 by Ord. No. 06-071]

***History**—Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable.

Cross references—Uniform construction codes, Ch. 131; discrimination, Ch. 148; elevators, Ch. 155; housing accommodations, ch. 188; property maintenance, Ch. 254; property transfers, Ch. 257; rent control, Ch. 260; taxation, Ch. 304.

A. Every owner or agent of an owner of a multiple dwelling of 100 or more dwelling units shall furnish a minimum of one uniformed security guard for each residential building in the property or community upon its premises twenty-four (24) hours a day, seven days a week. The owner or agent of the multiple dwelling shall post conspicuous signage inside the common areas and entrance points of the building that shall provide the direct onsite contact information of the uniformed security guards present. For the purposes of this chapter, a "uniformed security guard" shall consist of a Licensed New Jersey Security Guard, as specified in N.J.S.A. § 13:55A, hired for the purpose of protection of persons or property, real or personal, from injury or harm that wears a particular set of clothes that clearly identifies them as a security guard. **[Amended 6-26-2024 by Ord. No. 24-055]**

B. Each uniformed guard shall make a periodic patrol inspection of the premises and shall undertake all actions necessary to assure the personal safety and privacy of the residents of each dwelling unit and their guests.

C. The cost of furnishing uniformed security guards shall be a deductible expense for the purpose of computing net income and fair return on equity under Chapter 260, Rent Control.

D. An owner or agent of a multiple dwelling subject to this article may apply to the Department of Public Safety, Office of Code Compliance, or the office otherwise designated by the Business Administrator, for an exemption. The Department of Public Safety, Office of Code Compliance, or the office otherwise designated by the Business Administrator, shall conduct an inspection of the multiple dwelling and shall grant an exemption if it is determined that existing security arrangements are adequate to protect the safety and property of the residents. The inspection shall include the evaluation of residents' security concerns and complaints when issuing or continuing an exemption. These security concerns and complaints may be in the form of SeeClickFix tickets, calls to the RRC, or direct submissions to the Department of Public Safety from tenants and/or tenants associations. If such application for an exemption is rejected, the inspector may recommend to an applicant what additional security measures would be necessary to meet the minimum requirements for an exemption. An exemption granted pursuant to this section shall expire on April 1 in the successive calendar year. In order to continue a previously granted exemption under this section, the owner or agent of a multiple dwelling must schedule a re-inspection of the multiple dwelling with the Department of Public Safety, Office of Code Compliance, or the office otherwise designated by the Business Administrator, to occur between the months of January through March in every successive calendar year. **[Amended 9-11-2013 by Ord. No. 13-081; 6-26-2024 by Ord. No. 24-055]**

§ 218-1.1. Security service for senior citizen housing/housing for the disabled mandatory. [Added 3-11-2020 by Ord. No. 20-010]

A. Every owner or agent of an owner of a senior housing facility as defined by § 345-6, which contains sixty (60) or more dwelling units, and every owner or agent of an owner of a housing facility dedicated to housing disabled persons and which contains sixty (60) or more dwelling units, shall furnish a minimum of one security guard or security attendant, whether uniformed or not, upon its premises twenty-four (24) hours a day, seven days a week. A security attendant shall be a member of the facility staff and shall not be a resident of the facility. **[Amended 6-26-2024 by Ord. No. 24-055]**

B. Each security guard or security attendant shall make a periodic patrol inspection of the premises and shall undertake all actions necessary to assure the personal safety and privacy of the residents of each dwelling unit and their guests.

C. The cost of furnishing security guards or security attendants shall be a deductible expense for the purpose of computing net income and fair return on equity under Chapter 260, Rent Control.

D. No owner or agent of an owner of a multiple dwelling dedicated to senior citizen housing or dedicated to housing for the disabled as described in § 218-1.1.A may apply to the Director of Public Safety for an exemption. The owners of all such facilities must provide security, whether uniformed or not, at all times, no exceptions.

§ 218-2. Security cameras. [Added 4-26-2006 by Ord. No. 06-056; Amended 06-14-2006 by Ord. No. 06-071]

A. All newly constructed residential dwelling units, including condominium complexes of more than twenty-five (25) dwelling units and all newly constructed commercial and industrial structures of more than ten thousand (10,000) square feet shall provide for the installation and maintenance of security cameras in accordance with a plan to be approved by the Construction Official.

B. Any such security cameras shall be installed so as to maintain continuous surveillance of the public streets adjacent to such dwelling units and shall conform to standards adopted by the City for CCTV cameras.

C. Recordings from the surveillance cameras required by this Article shall be maintained for not less than one week and shall be made available to members of the Department of Public Safety in the event the recordings are needed for an investigation. **[Amended 9-11-2013 by Ord. No. 13-081]**

D. It shall be the responsibility of the owner to install, maintain and operate the security camera. However, it shall be within the sole discretion of the owner to determine whether personnel shall be assigned to monitor the cameras in real time.

§ 218-2.1. Violations and penalties. [Amended 6-14-1995 by Ord. No. 95-050; 4-26-06 by Ord. No. 06-056; 06-14-2006 by Ord. No. 06-071; 10-8-2025 by Ord. No. 25-105]

An owner or managing agent who fails to comply with the provisions of this article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25, except that there shall be a mandatory minimum fine of $100.00 per unit per day of the continuing offense.

ARTICLE II

Registration of Vacant Dwelling Units [Adopted 3-13-1986 by Ord. No. C-35]

§ 218-3. Reporting requirements. [Amended 8-13-1997 by Ord. No. 97-052]

A. Owners of multifamily dwellings of five units or more shall report any vacancy or unrented apartment to the Division of Construction Code Official if the vacancy or nonrental continues for ten (10) continuous days.

B. Owners will report the rental of the unit to the Division of Construction Code Official. The rental report shall include the address of the building, designation of the unit, date of rental, rent charged, name of new tenant and date of move in by the new tenant.

§ 218-4. Inspection of vacant units. [Amended 6-14-1995 by Ord. No. 95-050]

A. If a unit is not rented within ninety (90) days the recording agency will notify the Division of Construction Code Official, Division of Health and Division of Fire and Emergency Services. The above divisions shall send inspectors to the building to inspect the entire building and the unrented unit in particular to assure compliance with all applicable codes. If violations are found or if a dangerous or unsafe condition exists proper measures are to be taken. **[Amended 8-13-1997 by Ord. No. 97-052]**

B. The above divisions will continue to inspect both the building and the individual unrented unit on a regular basis.

§ 218-5. Processing of code violations.

A. The Housing Court shall process all code violations on these buildings and units on an expedited basis. Fines are to be levied as permitted by law on any and/or all code violations as permitted by law.

B. The Housing Court shall be empowered to seek remedies or aid through any appropriate city agency including the Rent Receivership Program to maintain the health, well being and safety of the citizens of Jersey City.

§ 218-6. Violations and penalties. [Amended 10-8-2025 by Ord. No. 25-105]

A violation of Article II shall, upon conviction, be punishable by a fine of up to $2000 per unit, as provided in Chapter 1, General Provisions, § 1-25, but not less than $100.00 per unit per day of the continuing offense.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

ARTICLE III

Harassment and Eviction [Adopted 12-11-1986 as Ord. No. C-291]

§ 218-7. Findings. [Amended 6-14-2023 by Ord. No. 23-047]

A. The City Council finds that some owners and developers of residential buildings have engaged in the practice of harassing tenants in an effort to vacate the buildings so as to obtain substantially higher rentals for the dwelling units. Such practices often include the using or threatening to use force, disrupting or discontinuing essential services, failing to abate serious and often life-threatening code violations and removing a tenant's possessions.

B. Although state law protects tenants from unlawful evictions, a tenant's remedy for a landlord's unlawful acts is not always quick and efficient; and most tenants are unfamiliar with state judicial procedures.

C. The City Council believes that through appropriate regulations and restrictions, such unlawful practices can be curbed or prevented and the safety and welfare of tenants protected.

D. The City Council finds that an emergency exists, within Jersey City, where many of its residents are homeless or are at risk of homelessness and/or reside in uninhabitable living conditions due to a shortage of affordable housing and a lack of knowledge and awareness of tenants' rights; and

E. This emergency was created, in part, by the filing of frivolous and/or retaliatory eviction actions by landlords renting residential property in Jersey City; and

F. A landlord will be less likely to file a frivolous lawsuit if they are aware that their tenant will be assisted by legal counsel in preparing and asserting available legal defenses to the tenant's eviction action; this will mitigate the aforementioned emergency and reduce the serious threats to the public health, safety and general welfare of the citizens of the Jersey City created by said emergency; and

G. A lack of knowledge and awareness of their legal rights, the fear of being evicted without good cause, and being forced to seek housing in a limited housing market, discourages many Jersey City tenants from fighting eviction actions or complaining about substandard housing conditions; it is this fear that contributes to homelessness as well as to the harmful, uninhabitable conditions in which many Jersey City tenants live; this warrants legislative action by the Governing Body; and

H. The Municipal Council of the City of Jersey City does hereby declare that these conditions pose a serious threat to the public health, safety and general welfare of the residents of Jersey City, particularly the approximately 70.4% of Jersey City residents who, according to 2020 U.S. Census Bureau data, are renters. N.J.S.A. 40:48-2, allows any municipality to make ordinances, rules, regulations, and by-laws, as the municipality deems necessary and proper for the good government, order and protection of its residents and for the protection of the health, welfare and safety of the municipality and its residents; and

I. Pursuant to these aforementioned police powers, in order to protect the health, safety and welfare of the residents of Jersey City, it is necessary to provide access to legal services to tenants who are subject to eviction proceedings.

§ 218-8. Definitions. [Amended 6-14-2023 by Ord. No. 23-047]

For the purpose of this article, the following terms shall have the following meanings:

COVERED INDIVIDUAL — a resident of a rental dwelling unit located in Jersey City which is the subject premises of a Covered Proceeding.

COVERED PROCEEDING — shall mean any of the following: (1) Any proceeding in Landlord-Tenant Court seeking to evict or eject a Covered Individual, including counterclaims and, in the discretion of the Division of Tenants Right to Counsel, appeals, and including a summary proceeding to seek possession for the non-payment of rent, or a holdover; (2) an administrative proceeding of the Jersey City Housing Authority for termination of tenancy or termination of subsidy; (3) any proceeding deemed by a Designated Organization as the functional equivalent of such a proceeding, including any judicial or administrative proceeding to remedy a violation of the New Jersey Law Against Discrimination with regards to housing, N.J.S.A. 10:5-2.1 et seq., a violation of Jersey City housing code, Code of Ordinances § 254-1 et seq., and to enforce a term of a temporary restraining

order that pertains to housing; (4) an ejectment proceeding filed in the Special Civil Part of the Superior Court of the State of New Jersey or (5) any proceeding before the Jersey City Rent Leveling Board or any other administrative or judicial proceeding that relates to a violation of Jersey City rent control laws, Code of Ordinances § 260-1 et seq.

DESIGNATED ORGANIZATION — a nonprofit organization, legal services clinic, or other organization, including but not limited to those that work in collaboration with the private bar or law students or paralegal professionals to offer pro bono services, or a for-profit legal services provider/association/partnership that provides legal representation, which has the capacity to provide Legal Services to Covered Individuals in Covered Proceedings.

DWELLING UNIT — a dwelling unit within a multiple dwelling as such terms are defined in Chapter 254, Property Maintenance.

LANDLORD-TENANT COURT — the Superior Court of New Jersey Law Division Special Civil Part Landlord/Tenant Section.

LEGAL REPRESENTATION — ongoing legal representation provided by an employee of the Division of Tenants' Right to Counsel or a Designated Organization to an individual and all legal advice, advocacy, and assistance associated with such representation.

LEGAL SERVICES — brief legal assistance or full legal representation to a Covered Individual.

MAYOR — The Mayor of Jersey City, New Jersey.

MUNICIPAL COUNCIL or CITY COUNCIL — the Governing Body of Jersey City, New Jersey that comprises the legislative branch of Jersey City, New Jersey's government.

OWNER — an owner as defined in Chapter 254, Property Maintenance.

PERSON — any natural person or legal entity such as a corporation or partnership. For the purposes of this article, a "person" shall not include a government employee acting within the scope of employment.

§ 218-9. Unlawful eviction.

A. No person may evict or attempt to evict a lawful occupant of a multiple dwelling except to the extent permitted by law pursuant to a warrant of eviction or other order of a court of competent jurisdiction or a governmental vacate order.

B. The following acts are illegal if done with the intention of evicting a lawful occupant from a dwelling unit:

(1) Using or threatening to use force;

(2) Disturbing or threatening to disturb the quiet enjoyment of an occupant;

(3) Interrupting or discontinuing essential services;

(4) Removing an occupant's possessions;

(5) Removing the entrance door or the lock to the entrance door; and

(6) Changing the lock or rendering it inoperable.

C. If an occupant vacates a dwelling unit on account of any of the acts listed in Subsection B, an owner shall take all reasonable and necessary steps to provide the occupant with a dwelling unit at a comparable rent within the dwelling suitable for occupancy, if the occupant makes such a request, and:

(1) The owner or an agent of the owner committed the unlawful acts;

(2) The owner knew or had reason to know about the unlawful acts; or

(3) The acts occurred within seven days prior to the occupant's request.

§ 218-10. Nonapplicability.

The provisions of this article shall not apply to owner-occupied residential rental properties containing two rental units or less or a hotel, motel or other guesthouse or part thereof rented to transient guests or seasonal tenants.

§ 218-11. Violations and penalties. [Amended 10-8-2025 by Ord. No. 25-105]

A. A violation of this article shall be punishable by a fine or imprisonment as set forth in Chapter 1, General Provisions, § 1-25, but there shall be a mandatory minimum of $100.00, per lawful occupant per day of the continuing offense.

B. Each violation of this article shall constitute a separate violation independent of any other section or any order issued pursuant to this chapter. Each day's failure to comply with this article or subsection shall constitute a separate violation.

§ 218-11.1. Division of Tenants' Right to Counsel established; provision of legal services. [Added 6-14-2023 by Ord. No. 23-047]

A. There is established in the Department of Housing, Economic Development & Commerce the Division of Tenants' Right to Counsel to establish a program to access free Legal Services for Jersey City residents in Landlord-Tenant Court and other Covered Proceedings. Jersey City shall provide funding to be used exclusively by the Division of Tenants' Right to Counsel as provided herein and shall ensure that:

1. The Division of Tenants' Right to Counsel shall be coordinated by a Director who shall, no later than January 1, 2026, have fully implemented a program to provide free access to Legal Services for Jersey City residents in Landlord-Tenant Court in the Superior Court of New Jersey - Hudson County.

2. The Director shall be an attorney licensed to practice law in the State of New Jersey and sufficiently experienced in the relevant areas of law.

3. The Director may establish a program that utilizes the Request for Proposal process to select one or more Designated Organizations that have the capacity to provide Legal Representation to Jersey City residents in Covered Proceedings.

4. All Covered Individuals may apply for and receive access to Legal Representation as early as immediately after service of an eviction or ejectment notice or service of unlawful detainer complaint, and shall receive access to Legal Representation beginning no later than one week prior to the first appearance in Landlord- Tenant Court by the Superior Court of New Jersey - Hudson County.

5. All Covered Individuals may apply for and receive access to Legal Representation in connection with any Covered Proceeding upon approval by the Director or his or her designee.

6. The Director shall conduct annual reviews pursuant to § 218-13 and establish performance indicators for Designated Organizations and any other providers of Legal Services.

7. Any Legal Services performed by a Designated Organization pursuant to this chapter shall not replace or satisfy any obligations or responsibilities of such Designated Organization pursuant to any other program, agreement, or contract.

8. Translators of any Legal Services performed pursuant to this chapter are made available to tenants in the language primarily spoken in the tenants' home.

9. Subject to available appropriations, the Director is authorized at any time to provide Legal Representation for all other Covered Proceedings.

10. The Director may engage designated community groups to inform and educate members of the public about their rights and responsibilities including through activities such as:

    a. Hosting "know-your-rights" trainings and other workshops;

    b. Distributing written information;

    c. Assisting tenants with the formation and maintenance of tenant associations;

    d. Referring tenants to advocacy groups; and

    e. Engaging in any other activity designed to engage, educate or inform tenants and members of the public about their rights.

11. Subject to available appropriations, the Director is authorized to expand Legal Services to any tenant residing in Jersey City, including those who earn an income, after taxes, that is greater than 80 percent or less of the current area median income established annually by the United States Department of Housing and Urban Development, provided that no funding derived from Residential and Non-residential Development Fees pursuant to § 160-2 may be used for such purposes.

12. Subject to available appropriations, the Director is further authorized at any time to expand the Legal Services provided to include conducting and/or funding mediation and dispute resolution, including by contracting third-party mediators.

B. Written Notice of Tenants' Rights

1. No later than January 1, 2025, the Director shall produce a written notice of tenants' rights and resources, including the Right to Counsel and how to access it, and present it to the Advisory Board for a thirty-day period in which the Advisory Board may provide recommendations.

2. Beginning July 1, 2025, or upon earlier adoption of the City-approved notice in accordance with 218- 12(B)(1), Owners or their agents shall provide the City's approved written notice of tenants' rights and resources. The Owner or its agent must provide such notice to tenants at each of the following times:

a. At the time of executing a lease;

b. At any time the owner or operator makes any rent demand; and

c. At the time of service of any notice of ejectment or notice of eviction.

3. Beginning July 1, 2025, or upon earlier adoption of the City-approved notice in accordance with 218-11.1.B.1, the city's approved written notice of tenants' rights and resources must also be provided at the time that the Jersey City Housing Authority or any other affordable housing provider sends a notice to terminate a tenant's tenancy or subsidy.

§ 218-11.2. Annual report and budget; adoption by Council resolution. [Added 6-14-2023 by Ord. No. 23-047]

A. The Director shall submit a proposed annual budget based on a five-year projection of revenue to be considered by the Mayor, Business Administrator, and Governing Body. The budget shall be submitted with the following:

1. The sources of all funding, including Residential Fees, Non-Residential Fees, and allocation of funding for the prior year;

2. The proposed allocation of funding for the current year;

3. The number of attorneys and staff proposed to be employed or contracted directly by the Division;

4. A report which explains how the budget contributes to ameliorating the housing emergency described in § 218-7, including but not limited to the Division's proposed parameters for determining:

a. How Legal Services are rendered;

b. Whether Legal Representation will be provided to each tenant; and

c. How the Division will allocate available funding to maximize the efficacy and equity of Legal Services offered; and

5. A summary report of the Legal Services provided in the prior year which shall include all reports pursuant to § 218-14 provided in the previous calendar year by Designated Organizations.

6. All reports pursuant to § 218-14 provided in the previous calendar year by Designated Organizations.

B. The Director shall submit the detailed annual budget for approval by resolution of the municipal governing body no later than March 1 of the current budget year.

C. If the projected demand for Legal Services exceeds the projected available funds, the Director shall set forth reasonable standards to prioritize the provision of Legal Representation, including but not limited to the merits of each case.

D. The City Council may amend the budget and proposed strategies for allocating funding prior to approval.

§ 218-11.3. Reporting. [Added 6-14-2023 by Ord. No. 23-047]

A. No later than May 1, 2026, and bi-annually by each December 1 and May 1 thereafter, each Designated Organization that provides Legal Services pursuant to this Chapter shall submit to the Director, who shall post online in a place available for public review, a summary of the Legal Services program and information regarding its implementation, including, but not limited to:

1. The number of individuals:

a. Who contacted the office for assistance;

b. Who were screened for intake;

c. Who were Covered Individuals;

d. Who were provided with Legal Services.

2. The number of individuals currently receiving legal services and the actual number of individuals who received legal services for that year, disaggregated by the following characteristics of such individuals:

a. Ward and postal code of residence;

b. Age, race, and ethnicity of head of household;

c. Household size;

d. Primary language spoken in home;

e. Approximate household income;

f. Current rent, reported by amount and payment schedule (e.g., "weekly" or "monthly";

g. Estimated length of tenancy;

h. Any receipt of ongoing public assistance at the time such Legal Services were initiated;

i. Current tenancy in rent-controlled housing; and

j. Tenancy in housing operated by the Jersey City Housing Authority;

3. Outcomes immediately following the provision of Legal Representation, as applicable, including, but not limited to, the number of:

a. The type of case, including identifying docket information and the relief or remedy sought;

b. Case dispositions, including whether individuals were able to remain in their residence or were displaced from their residence, or whether rent was adjusted; and

c. Instances where the attorney was discharged or withdrew.

4. Non-payment and holdover actions filed in landlord-tenant court against tenants who received services from the Designated Organization, and warrants of removal served on tenants who received services from the Designated Organization.

5. For all eviction matters in Landlord-Tenant Court or ejectment matters in the Special Civil Part of the Superior Court of New Jersey, the Owner(s) of each building or Unit and the total number of eviction or ejectment matter involving each Owner.

§ 218-11.4. Advisory Board. [Added 6-14-2023 by Ord. No. 23-047]

A. There is hereby established a Tenants' Advisory Board composed of seven residents of Jersey City, at least half of whom must at all times be Jersey City tenants.

B. The Board shall be appointed by the Mayor with the advice and consent of the Municipal Council. The Mayor and Council President shall serve as ex officio members of the Board. Members shall not be compensated for their service on the Board.

C. Members shall be appointed for a term of two years, except all vacancies may be filled for the unexpired term. One of said members shall be elected by the members of the Board as Chairperson. The remaining officers may have such other offices as the Board deems necessary as selected by the members of the Board.

D. Purpose; Power of the Advisory Board.

1. The purposes of the Tenants' Advisory Board are to:

a. Improve the protection of tenants' rights in Jersey City;

b. To assist the Division of Tenants' Right to Counsel in designing educational and enforcement programs for the implementation of the policies embodied in this Chapter; and

c. To act as a liaison between the city government and community organizations.

2. The Tenants' Advisory Board shall:

a. Advise the Municipal Council and/or Mayor on issues of common concern to tenants within Jersey City;

b. Review the performance of the Designated Organization(s) as reported in § 218-13; and

c. Present and ask questions to the Director at public hearings as established in this Chapter. **[Added 6-14-2023 by Ord. No. 23-047]**

§ 218-11.5. Public hearing.

A. The Director of the Division of Tenants' Right to Counsel shall conduct a hearing twice each year, within sixty (60) days of each bi-annual report period as required by this Article.

B. The Director shall present the findings of the corresponding report based on the most recent review of the legal services program at the public hearing.

C. The Director shall provide notice of the public hearing within 30 days of the hearing which shall be open to the public and shall be:

1. Posted in a public area of the Hudson County Landlord-Tenant Court;

2. Posted in all Jersey City social service offices, schools, and libraries, the Jersey City Office of Landlord/Tenant Relations, at organizations providing legal services through the existing RFP, posted on social media, and sent to community organizations.

3. Translated into Spanish, Urdu, Hindi, Arabic, Tagalog, American Sign Language, and other languages deemed necessary to reach all residents of Jersey City.

D. Written and oral testimony may be submitted at the hearing.

E. The Director shall cause a transcript of the hearing to be produced and translated. The Director shall make the transcript available to the public in the Division of Tenants' Right to Counsel, and posted online in a place available for public review, and in any other place or format deemed appropriate by the Director.

§ 218-11.6. Severability. [Added 6-14-2023 by Ord. No. 23-047]

If any provision of §§ 218-11.1—218-11.6 or application thereof to any person(s) or circumstances is judged invalid by a court of competent jurisdiction, the invalidity shall not affect other provisions or applications of §§ 218-11.1—218-11.6 that can be given effect without the invalidated provision or application and to this end the provisions of §§ 218-11.1—218-11.6 are declared severable.

ARTICLE IV

Withholding Units from Rental Market [Adopted 2-11-1987 as Ord. No. C-388]

§ 218-12. Preventing algorithmic rent fixing in the rental housing market. [Added 5-21-2025 by Ord. No. 25-057; amended 9-24-2025 by Ord. No. 25-098]

1. Definitions

    a. The following terms, as used in this ordinance, shall have the following meanings:

        i. "Coordinate" or "coordinating" mean, with respect to a service provider, collecting nonpublic competitor information from real estate lessors; and,

            1. Analyzing or processing of the information described in subparagraph (1)(a)(i) using a system, software, or process that uses computation; and

            2. Recommending to any other party rental prices, lease terms, or occupancy levels to a real estate lessor using the information described in subparagraph (1)(a)(i).

                a. This definition exempts owners of multiple properties for actions related exclusively to multiple properties controlled by the same rental property owner; and

            3. Licensed Real Estate Agents are not included in this definition so long as they are operating in accordance with all applicable state regulations.

        ii. "Person" means any natural person, corporation, partnership, limited liability company, firm, or association.

        iii. "Residential dwelling unit" means any house, apartment, accessory unit, or other unit intended to be used as a person's primary residence; and does not include inpatient medical care, licensed long-term care, and detention or correctional facilities.

        iv. "Real estate lessor" means any individual, corporation, partnership, association, joint-stock company, trust, or unincorporated organization that owns real property and leases such property or any portion thereof in the form of a residential dwelling unit.

        v. "Service provider" means any person that performs a coordination function, as defined in Section 1(a)(i)(1) of this Act, for any real estate lessor or rentor.

            1. Licensed Real Estate Agents are not included in this definition so long as they are operating in accordance with all applicable state regulations.

        vi. "Nonpublic Competitor Information" means information, including but not limited to prices, supply levels, security deposits, ideal occupancy levels, lease contract termination, renewal dates of residential dwelling units or any other material lease terms that is less than 365 days old and is not widely and readily available to the public at no cost.

2. Unlawful Conduct **[Amended 7-16-2025 by Ord. No. 25-076]**

a. It is unlawful for any real estate lessor, agent, or subcontractor thereof, to subscribe to, contract with, exchange anything of value in return for or otherwise utilize the services of a service provider.

b. No service provider shall facilitate an agreement not to compete among real estate lessors with respect to any aspect of residential dwelling units, including rental pricing, fees, or any other rental terms.

3. Mandatory Disclosure for Rent Increases:

a. Any landlord must include, with any lease or written notice of rent increase for a residential dwelling unit, a sworn disclosure statement, executed under penalty of perjury, in substantially the following form:

MANDATORY ALGORITHMIC RENT-SETTING DISCLOSURE

Pursuant to Jersey City Code § 218-12

I, the undersigned, being the landlord or an authorized agent of the landlord for the property located at _____, for dwelling unit _____, hereby certify under the penalty of perjury that:

1. No entity subscribed to, contracted with, or otherwise exchanged anything of value in return for the services of a Service Provider, in accordance with Chapter 218-12.2, in connection with the rent amount of $_____ to $_____ proposed on _____.

2. The methodology used to determine this rent increase did not make use of any shared non-public competitor data.

3. I understand that, as elaborated in the Truth in Renting Guide and N.J.S.A. 56:8-2, any deception, fraud, misrepresentation, or knowing failure or refusal to provide important information in connection with the advertisement of real estate, including this lease, is illegal in New Jersey under the Consumer Fraud Act, N.J.S.A. 56:8-1 et seq.

4. Enforcement

a. Public Enforcement. The Attorney General or any municipal or county attorney may bring a civil action, as parens patriae, in any court of competent jurisdiction, to secure relief as provided in this section for injury sustained by natural persons to their property by reason of a violation of this chapter.

i. City administration: The Office of Landlord-Tenant Affairs and Office of Code Compliance will be empowered to enforce this section.

1. Persons (including residents) who have evidence that a landlord is using a service provider or is in any way violating the terms of this section report this to the Office of Landlord/Tenant Relations, which will compile said complaints.

2. The Office of Landlord/Tenant Relations is empowered to cooperate with the Office of Code Compliance to investigate such complaints or refer them for prosecution to the municipal prosecutor, Attorney General, or other appropriate law enforcement offices.

b. Private Right of Action. Any person who is injured by a violation of this chapter may sue in any court of competent jurisdiction in the county where the defendant resides or is found, or any agent of the defendant resides or is found, or where service may be obtained, without respect to the amount in controversy.

c. Violations and Penalties:

i. A first violation of § 218-12 shall be punishable as provided in Chapter 1, General Provisions, Art. I, § 1-25. Subsequent violations shall be punished by a fine of not less than $100 and up to $2000, as provided in Chapter 1, General Provisions, Art. I, § 1-25. Each day during which an owner is in violation of § 218-12 shall constitute a separate violation hereunder.

d. Attorneys Fees and Costs. In the case of any successful action to enforce liability pursuant to this Act, the court shall award plaintiff the costs of the action together with reasonable attorney fees as determined by the court. Costs and attorney fees shall be awarded to the attorney general or a city, county, or district attorney in all actions where the attorney general or the city, county, or district attorney successfully enforces this article.

5. Severability. If any provision of this ordinance or application thereof to any person(s) or circumstances is judged invalid by a court of competent jurisdiction, the invalidity shall not affect other provisions or applications of the ordinance that can be given effect without the invalidated provision or application and to this end the provisions of this article are declared severable.

Editor's note—Ord. No. 25-057, adopted May 21, 2025, amended the Code by adding a new § 218-12, and renumbering former §§ 218-12—218-16 as new §§ 218-13—218-17. In order to prevent duplication of section numbers, former § 218-16 was renumbered as § 218-16.1.

§ 218-13. Exempt dwellings. [Amended 5-21-2025 by Ord. No. 25-057]

A. The owner of any dwelling unit, other than those exempted below, shall be subject to the provisions of this article.

B. The following are exempt from the provisions of this article:

(1) Units in owner-occupied dwellings where there are three units or less and one of the units is owner-occupied.

(2) Units in newly constructed buildings which are being rented for the first time. After the first rental, such units will be subject to the provisions of this article.

(3) Units in a dwelling where the owner has transmitted his or her first 60-day notice of his or her intention to convert the building into a condominium or cooperative and his or her full plan of conversion to the City Clerk pursuant to N.J.S.A. 2A:18-61.8, so long as the conversation plan is not abandoned.

(4) Units in dwellings, the owners of which have transmitted notice under N.J.S.A. 2A:18-61.1g or 2A:18-61.1h. This exemption shall remain in effect so long as the owner is in compliance with the provisions of the section under which notice was given.

(5) Units in hotels or motels.

Note—Former § 218-12. See editor's note, § 218-12.

§ 218-14. Occupancy required. [Amended 5-21-2025 by Ord. No. 25-057]

All such units shall be rented and occupied by a tenant within 60 days after the end of the preceding tenancy, which shall be defined as the last day of residence by the preceding tenant(s), except where an extension has been granted by the Housing Clinic under the provisions of § 218-14E below, in which event the unit shall be rented and occupied within the time period specified in the extension. Failure to comply with the requirements of § 218-14E shall be considered a violation of this article and subject the owner to the penalties set forth in § 218-15 below.

Note—Former § 218-13. See editor's note, § 218-12.

§ 218-15. Extension of time period. [Amended 5-21-2025 by Ord. No. 25-057]

A. An owner may apply for an extension of the time period set forth in § 218-13 where the condition of the unit or other special circumstances make rental within such time period impossible. In order to obtain an extension, the owner must submit an application in writing to the Housing Clinic, within 30 days or less from the date the preceding tenancy ended, setting forth with specificity:

(1) The reasons that the unit cannot be rented within such time period;

(2) The steps the owner shall take to remedy the conditions that make it impossible to rent the dwelling unit; and

(3) The date by which the dwelling unit shall be rented and occupied.

B. The owner shall provide the Housing Clinic with all documentation necessary to support the application, including but not limited to code violation reports, engineering or inspection reports, copies of advertisements, etc.

C. Any extension granted by the Housing Clinic shall specify the date by which the dwelling unit must be rented and occupied. Additional extensions may be sought by the owner, but the total extension permitted in the aggregate shall not extend beyond six months from the date the previous tenancy ended, except as provided in Subsection E below.

D. The following circumstances shall constitute grounds for the granting of an extension pursuant to Subsection A above by the Housing Clinic:

(1) An owner wishes to reserve a vacant dwelling unit for a family member. The owner shall provide in the extension application full documentation, including the name of the future tenant, the family relationship and the date of occupancy.

(2) An owner desires to maintain a dwelling unit vacant in order to improve the conditions of said dwelling unit. The owner shall provide full documentation in the application, including up-to-date building and housing inspection reports, improvement plans, all related required permits and the date by which the unit shall be rented and occupied.

(3) An owner maintains a vacant dwelling unit in order to correct code violations in said unit. The owner shall provide in the application full documentation such as code violation reports, correction plans, permits and the date by which the dwelling unit shall be rented and occupied.

E. Extension of the time period provided in § 218-13 of this article beyond the maximum time prescribed by Subsection D above shall only be granted upon a clear and convincing showing by the owner that a good faith effort has been made to rent the dwelling unit at the legal rent and that no tenant can be found. In this circumstance, the maximum extension granted beyond the maximum time provided in Subsection D above shall be 60 days, renewable upon a new showing by the owner.

Note—Former § 218-14. See editor's note, § 218-12.

§ 218-16. Violations and penalties. [Amended 5-21-2025 by Ord. No. 25-057]

A. Any individual affected by the action or inaction of an owner of a dwelling unit subject to the provisions of this article, any civic organization and any appropriate municipal agency may file a complaint of violation of this article with the Housing Clinic. If the Housing Clinic finds probable cause that a violation has occurred, the Housing Clinic shall file a complaint in the Municipal Court.

B. A first violation of § 218-13 of this article or the conditions upon which an extension has been granted by the Housing Clinic pursuant to § 218-14 of this article shall be punishable as provided in Chapter 1, General Provisions, Art. I, § 1-25. Subsequent violations shall be punished by a fine of not less than $100 or more as provided in Chapter 1, General Provisions, Art. I,§ 1-25. Each day during which an owner is in violation of § 218-13 or the conditions upon which a waiver has been granted by the Housing Clinic pursuant to § 218-14 of this article shall constitute a separate violation hereunder.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

Note—Former § 218-15. See editor's note, § 218-12.

§ 218-16.1. Conflicts with state law. [Amended 5-21-2025 by Ord. No. 25-057]

This Article is intended and shall be construed to avoid any conflict with state law, in particular but not limited to state statutes regulating the possession of apartments and regulating the conversion of rental units into other forms of ownership.

Note—Former § 218-16. See editor's note, § 218-12.

ARTICLE V

Seating for Senior Citizens [Adopted 8-20-1987 as Ord. No. C-542]

§ 218-17. Findings.

A. The City Council finds that the general welfare of our residents in senior citizens' buildings is advanced by the availability of facilities which provide comfort and opportunities for social interaction and that the lack of such facilities can lead to feelings of isolation and anomie.

B. The City Council finds that the cost to owners of providing such seating is minimal in comparison to the benefits senior citizens will derive from the availability of seating in the lobby of senior citizens' buildings.

§ 218-18. Seating requirements.

Owners of multiple dwellings in which there are 30 or more dwelling units and at least 90% of the units are reserved exclusively for residents 55 years of age or older by any law, regulation or agreement and the building contains an interior lobby of at least 625 square feet or of at least 500 square feet of floor space discharging directly into a street level exit shall provide seating in the lobby sufficient to accommodate at least 15 residents or 10 residents, respectively. Such seating shall consist of chairs, lounge chairs, sofas or benches with backs.

§ 218-19. Violations and penalties. [Added 10-8-2025 by Ord. No. 25-105]

A violation of this article shall be punishable by a fine or imprisonment as set forth in Chapter 1, General Provisions, § 1-25. If the violation remains unabated 30 days after the issuance of a notice of violation, there shall be a mandatory minimum fine of $100.00 per property per day of the continuing offense.

Chapter 222

NOISE

ARTICLE I

Noise Restrictions

§ 222-1. Declaration of findings and policy.
§ 222-2. Definitions.
§ 222-3. Applicability.
§ 222-4. Exemptions.
§ 222-5. Enforcement officers.
§ 222-5.1. Measurement protocols.
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§ 222-5.4. Restricted uses and activities.
§ 222-5.5. Motor vehicles.
§ 222-5.6. Enforcement.
§ 222-5.7. Consistency, severability and repealer.

ARTICLE II

Sound Trucks

§ 222-6. Definitions.
§ 222-7. Noncommercial use of sound trucks.
§ 222-8. Commercial advertising by sound truck.

ARTICLE III

Reserved

[HISTORY: Adopted by the Council of the City of Jersey City: Art. 1,5-4-1971 as Ch. 16, Art. I, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; Art. II, 5-4-1971 as Ch. 26, Art. VI, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

GENERAL REFERENCES

Noise from animals — See Ch. 90
Circuses, carnivals and public assemblages — See Ch. 122.
Fees and charges — See Ch. 160.
Noise in parks and recreation areas — See Ch. 239.
Peddling, soliciting and canvassing — See Ch. 245.

ARTICLE I

Noise Restrictions*

§ 222-1. Declaration of findings and policy. [Added 1-25-2017 by Ord. No. 17-007]

A. Excessive sound is a serious hazard to the public health, welfare, safety, and the quality of life; and,

B. A substantial body of science and technology exists by which excessive sound may be substantially abated; and,

C. The people have a right to, and should be ensured of, an environment free from excessive sound;

'Editor's note—Ord. No. 17-007, § 1, adopted January 25,2017, amended the Code by repealing former Art. I, §§ 222-1—222-5, and adding a new Art. I. Former Art. I pertained to similar subject matter, and derived from Ch. 16, Art. I of the 1971 Jersey City Code, and readopted by Ord. No. S-128, adopted September 19,1978, and amended by Ord. No. MC-29, adopted September 22,1981; Ord. No. C-750, adopted June 9, 1988; Ord. No. C-792, adopted August 18,1988; Ord. No. 92-051, adopted June 10,1992; Ord. No. 92-161, adopted November 10,1992; Ord. No. 92-192, adopted December 22,1992; Ord. No. 95-020, adopted March 22,1995; and Ord. No. 13-081, adopted September 11,2013.

D. It is the policy of the City of Jersey City to prevent excessive sound that may jeopardize the health, welfare, or safety of the citizens or degrade the quality of life.

E. This article shall apply to the control of sound originating from sources within the City of Jersey City.

§ 222-2. Definitions. [Added 1-25-2017 by Ord. No. 17-007]

The following words and terms, used in this ordinance, shall have the following meanings unless the context clearly indicates otherwise. Terms not defined in this ordinance have the same meaning as those defined in N.J.A.C. 7:29.

CONSTRUCTION means any site preparation, assembly, erection, repair, alteration or similar action of buildings or structures.

dBC means the sound level as measured using the "C" weighting network with a sound level meter meeting the standards of ANSI S1.4-1983 or its successors. The unit of reporting is dB(C). The "C" weighting network is more sensitive to low frequencies than the "A" weighting network.

DEMOLITION means any dismantling, destruction or removal of buildings, structures, or roadways.

DEPARTMENT means the New Jersey Department of Environmental Protection.

EMERGENCY WORK means any work or action necessary at the site of an emergency to restore or deliver essential services including, but not limited to, repairing water, gas, electricity, telephone, sewer facilities, or public transportation facilities, removing fallen trees on public rights-of-way, dredging navigational waterways, or abating life threatening conditions or a state of emergency declared by a governing agency.

IMPULSIVE SOUND means either a single pressure peak or a single burst (multiple pressure peaks) that has a duration of less than one (1) second.

MINOR VIOLATION means (1) a violation that is not the result of the purposeful, reckless or criminally negligent conduct of the violator; and (2) the activity or condition constituting the violation has not been the subject of an enforcement action by the City, the County, or the State against the violator within the immediately preceding three hundred sixty-five (365) days for the same or substantially similar violation.

MOTOR VEHICLE means any vehicle propelled other than by human or animal power on land.

MUFFLER means a properly functioning sound dissipative device or system for abating the sound on engines or equipment where such device is part of the normal configuration of the equipment.

MULTI-DWELLING UNIT BUILDING means any building comprising two (2) or more dwelling units, including, but not limited to, apartments, condominiums, co-ops, multiple family houses, town-houses, and attached residences.

MULTI-USE PROPERTY means any distinct parcel of land that is used for more than one (1) category of activity. Examples include, but are not limited to:

(1) A commercial, residential, industrial or public service property having boilers, incinerators, elevators, automatic garage doors, air conditioners, laundry rooms, utility provisions, or health

and recreational facilities, or other similar devices or areas, either in the interior or on the exterior of the building, which may be a source of elevated sound levels at another category on the same distinct parcel of land; or

(2) A building, which is both commercial (usually on the ground floor) and residential property, located above, below or otherwise adjacent to.

NOISE CONTROL OFFICER (NCO) means an employee of a local, county or regional health agency which is certified pursuant to the County Environmental Health Act (N.J.S.A. 26:3A2-21 et seq.) to perform noise enforcement activities or an employee of a municipality with a Department-approved model noise control ordinance. All NCOs must receive noise enforcement training as specified by the Department in N. J. A.C. 7:29 and be currently certified in noise enforcement. The employee must be acting within his or her designated jurisdiction and must be authorized to issue a summons.

NOISE CONTROL INVESTIGATOR (NCI) means an employee of a municipality, county or regional health commission that has a Department-approved model noise control ordinance and the employee has not received noise enforcement training as specified by the Department in N.J.A.C. 7:29. However, they are knowledgeable about the model noise ordinance and enforcement procedures. A noise control investigator may only enforce sections of the ordinance that do not require the use of a sound level meter. The employee must be acting within his or her designated jurisdiction and must be authorized to issue a summons.

PLAINLY AUDIBLE means any sound that can be detected by an NCO or an NCI using his or her unaided hearing faculties of normal acuity. As an example, if the sound source under investigation is a portable or vehicular sound amplification or reproduction device, the detection of the rhythmic bass component of the music is sufficient to verify plainly audible sound. The NCO or NCI need not determine the title, specific words, or the artist performing the song.

PRIVATE RIGHT-OF-WAY means any street, avenue, boulevard, road, highway, sidewalk, alley or easement that is owned, leased, or controlled by a non-governmental entity.

PUBLIC RIGHT-OF-WAY means any street, avenue, boulevard, road, highway, sidewalk, alley or easement that is owned, leased, or controlled by a governmental entity.

PUBLIC SPACE means any real property or structures thereon owned, leased, or controlled by a governmental entity.

REAL PROPERTY LIKE means either:

(a) The vertical boundary that separates one parcel of property (i.e., lot and block) from another residential or commercial property;

(b) The vertical and horizontal boundaries of a dwelling unit that is part of a multiple dwelling unit building; or

(c) On a multi-use property as defined herein, the vertical or horizontal boundaries between the two portions of the property on which different categories of activity are being performed (e.g., if the

multi-use property is a building which is residential upstairs and commercial downstairs, then the real property line would be the interface between the residential area and the commercial area, or if there is an outdoor sound source such as an HVAC unit on the same parcel of property, the boundary line is the exterior wall of the receiving unit).

Note - This definition shall not apply to a commercial source and a commercial receptor which are both located on the same parcel of property (e.g., a strip mall).

SOUND PRODUCTION DEVICE means any device whose primary function is the production of sound, including, but not limited to, any musical instrument, loudspeaker, radio, television, digital or analog music player, public address system or sound amplifying equipment.

SOUND REDUCTION DEVICE means any device, such as a muffler, baffle, shroud, jacket, enclosure, isolator, or dampener provided by the manufacturer with the equipment, or that is otherwise required that mitigates the sound emissions of the equipment.

WEEKDAY means any day that is not a federal holiday, and beginning on Monday at 7:00 a.m. and ending on the following Friday at 6:00 p.m.

WEEKENDS means beginning on Friday at 6:00 p.m. and ending on the following Monday at 7:00 a.m.

§ 222-3. Applicability. [Added 1-25-2017 by Ord. No. 17-007]

A. This noise ordinance applies to sound from the following property categories:

1. Industrial facilities;
2. Commercial facilities;
3. Public service facilities;
4. Community service facilities;
5. Residential properties;
6. Multi-use properties;
7. Public and private rights-of-ways;
8. Public spaces; and
9. Multi-dwelling unit buildings.

B. This noise ordinance applies to sound received at the following property categories:

1. Commercial facilities;
2. Public service facilities;

3. Community service facilities (i.e. non-profits and/or religious facilities);

4. Residential properties;

5. Multi-use properties; and

6. Multi-dwelling unit buildings.

C. Sound from stationary emergency signaling devices shall be regulated in accordance with N.J.A.C. 7:29-1.4, except that the testing of the electromechanical functioning of a stationary emergency signaling device shall not meet or exceed 10 seconds.

§ 222-4. Exemptions. [Added 1-25-2017 by Ord. No. 17-007]

A. Except as provided in 222-9 and 222-10 below, the provisions of this ordinance shall not apply to the exceptions listed at N.J.A.C. 7:29-1.5.

B. Sound production devices required or sanctioned under the Americans with Disabilities Act (ADA), FEMA or other government agencies to the extent that they comply with the noise requirement of the enabling legislation or regulation. Devices which are exempted under N.J.A.C. 7:29-1.5 shall continue to be exempted.

C. Construction and demolition activities are exempt from the sound level limits set forth in Tables I and II and III except as provided for in 222-5.4 below.

§ 222-5. Enforcement officers. [Added 1-25-2017 by Ord. No. 17-007]

A. Noise control officers shall have the authority within their designated jurisdiction to investigate suspected violations of any section of this ordinance and pursue enforcement activities.

B. Noise control investigators shall have the authority within their designated jurisdiction to investigate suspected violations of any section of this ordinance that do not require the use of a sound level meter (i.e., plainly audible, times of day and/or distance determinations) and pursue enforcement activities.

C. Noise control officers and investigators may cooperate with NCOs and NCIs of an adjacent municipality in enforcing one another's municipal noise ordinances.

D. For purposes of enforcement, code enforcement inspectors and police officers who have completed the noise enforcement certification training from the Rutgers Noise Technical Assistance Center shall have the power and authority to enforce this chapter. **[Amended 9-23-2020 by Ord. No. 20-074]**

E. No person shall refuse to allow an authorized employee of the City or other authorized City employee who presents appropriate credentials to perform reasonable sound testing on any device or devices, including but not limited to requiring the temporary shutting down of said device or devices for the purposes of such testing except that upon a showing that the inspection would produce a noticeable interruption of services that would cause discomfort to employees or customers or require a building engineer or other professional to work with the equipment, such authorized employee shall reschedule the inspection for a more convenient time.

§ 222-5.1. Measurement protocols. [Added 1-25-2017 by Ord. No. 17-007]

A. Sound measurements made by a Noise Control Officer shall conform to the procedures set forth at N.J.A.C. 7:29-2, except that interior sound level measurements shall also conform with the procedures set forth in 222-6.B of this ordinance and with the definition of "real property line" as contained herein.

B. When conducting indoor sound level measurements across a real property line, the measurements shall be taken at least three (3) feet from any wall, floor or celling and all exterior doors and windows may, at the discretion of the investigator, be closed. The neighborhood residual sound level shall be measured in accordance with N.J.A.C, 7:29-2.9(b)2. When measuring total sound level, the configuration of the windows and doors shall be the same, and all sound sources within the dwelling unit must be shut off (e.g., television, stereo). Measurements shall not be taken in areas which receive only casual use such as hallways, closets and bathrooms.

Editor's note—Ord. No. 17-007, added January 25, 2017, amended the Code by adding new §§ 222-6—222-12. In order to prevent duplication of section numbers, the sections have been redesignated §§ 222-5.1—222-5.7 at the discretion of the editor.

§ 222-5.2. Maximum permissible sound levels. [Added 1-25-2017 by Ord. No. 17-007]

A. No person shall cause or permit the operation of any source of sound on any source property listed in 223-A above in such a manner as to create a sound level that equals or exceeds the sound level limits in Tables I, II or III when measured at or within the real property line of any of the receiving properties listed in Tables I, II or III except as specified in 222-6B.

B. Impulsive sound. Between 7:00 a.m. and 10:00 p.m., impulsive sound shall not equal or exceed 80 decibels. Between 10:00 p.m. and 7:00 a.m., impulsive sound which occurs less than four times in any hour shall not equal or exceed 80 decibels. Impulsive sound which repeats four or more times in any hour shall be measured as continuous sound and shall meet the requirements as shown in Tables I and II.

Table I
Maximum Permissible A-Weighted Sound Levels When Measured Outdoors

Receiving Property Category	**Residential Property, or Residential Portion of a Multi-Use Property**		**Commercial Facility, Public Service Facility, Nonresidential Portion of a Multi-Use Property, or Community Service Facility**
Time	7:00 a.m.—10:00 p.m.	10:00 p.m.—7:00 a.m.	24 hours
Maximum A-weighted sound level standard, dB	65	50	65

Table II
Maximum Permissible A-Weighted Sound Levels When Measured Indoors

Receiving Property Category	**Residential Property, or Residential Portion of a Multi-Use Property**		**Commercial Facility, or Nonresidential Portion of a Multi Use Property, or Community Service Facility**
Time	7:00 a.m.—10:00 p.m.	10:00 p.m.—7:00 a.m.	24 hours
Maximum A-weighted sound level standard, dB	55	40	55

Note: The time period in Tables I and II is subject to any different times specified in Section 222-9.

Note: Table II shall only apply when the source and the receptor are separated by a real property line and they also share a common or abutting wall, floor or ceiling, or are on the same parcel of property.

Table HI
Maximum Permissible Octave Band Sound Pressure Levels in Decibels

Receiving Property Category	**Residential Property, or Residential Portion of a Multi-Use Property (Outdoors)**		**Residential Property, or Residential Portion of a Multi-use Property (Indoors)**		**Commercial Facility, Public Service Facility, Nonresidential Portion of a Multi-Use Property, or Community Service Facility (Outdoors)**	**Commercial Facility of Nonresidential Portion of a Multi-Use Property (Indoors)**
Octave Band Center Frequency, Hz,	**Octave Band Sound Pressure Level, dB**		**Octave Band Sound Pressure Level, dB**		**Octave Band Sound Pressure Level, dB**	**Octave Band Sound Pressure Level, dB**
Time	**7:00-a.m.—10:00 p.m.**	**10 p.m.—7:00 a.m.**	**7:00 a.m.—10:00 p.m.**	**10 p.m.—7:00 a.m.**	**24 hours**	**24 hours**
31.5	96	26	86	76	**96**	86
63	82	71	72	61	82	72
125	74	61	64	51	74	64
250	67	53	57	43	67	57
500	63	48	53	38	63	53
1,000	**60**	45	50	35	60	50
2,000	57	42	47	32	57	47
4,000	55	40	45	30	55	45
8,000	53	38	42	28	53	43

Note: When octave measurements are made, the sound from the source must be constant in level and character. If octave band sound pressure level variations exceed plus or minus 2 dB in the bands containing the principal source frequencies, discontinue the measurement.

Note—See editor's note, § 222-5.1.

§ 222-5.3. Sound production devices. [Added 1-25-2017 by Ord. No. 17-007]

No person shall cause or permit the operation of any sound production device in such a manner that the sound crosses a property line and raises the total sound levels above the neighborhood residual sound level by more than the permissible sound level limits set forth in Table IV when measured within the residence of a complainant according to the measurement protocol in 222-5.l.B of this article. These sound level measurements shall be conducted with the sound level meter set for "C" weighting, "fast" response.

TABLE IV
MAXIMUM PERMISSIBLE INCREASE IN TOTAL SOUND LEVELS WITHIN A RESIDENTIAL PROPERTY

Week nights 10:00 p.m.—7:00 a.m. Weekend nights 11:00 p.m. and 9:00 a.m.	**All other times**
3 dB(C)	6 dB(C)

Note—See editor's note, § 222-5.1.

§ 222-5.4. Restricted uses and activities. [Added 1-25-2017 by Ord. No. 17-007]

The following standards shall apply to the activities or sources of sound set forth below:

A. Excluding emergency work, power tools, home maintenance tools, landscaping and yard maintenance equipment used by a residential property owner or tenant shall not be operated between the hours of 8:00 p.m. and 8:00 a.m., unless such activities can meet the applicable limits in Tables 1, II or III. At all other times the limits set forth in Tables I, II or III do not apply. All motorized equipment used in these activities shall be operated with a muffler and or sound reduction device.

B. Excluding emergency work, power tools, landscaping and yard maintenance equipment used by nonresidential operators (e.g. commercial operators, public employees) shall not be operated on a residential, commercial, industrial or public (e.g. golf course, parks, athletic fields) property between the hours of 6:00 p.m. and 8:00 a.m. on weekdays, or between the hours of 6:00 p.m. and 9:00 a.m. on weekends or federal holidays unless such activities can meet the limits set forth in Tables I, II or III. At all other times the limits set forth in Tables I, II or III do not apply. All motorized equipment used in these activities shall be operated with a muffler and/or sound reduction device. Emergency work, as defined in this section, is excluded from the above restrictions.

C. Excluding emergency work, construction and demolition activity shall not be performed between the hours of 6:00 p.m. and 7:00 a.m. on weekdays, or between the hours 6:00 p.m. and 9:00 a.m. on weekends and federal holidays, unless such activities can meet the limits in Tables I, II or III. At all other times the limits in Tables I, II and III do not apply. All motorized equipment used in construction and demolition activity shall be operated with a muffler and/or sound reduction device.

D. Alterations or repairs to existing owner-occupied or rental dwellings, community service facilities, or schools may be performed on Saturdays and Sundays between the hours of 10:00 a.m. and 4:00 p.m. subject to compliance with Tables I, II and III as applicable.

E. Motorized snow removal shall be operated with a muffler or a sound reduction device when being used for snow removal. At all times the limits set forth in Tables 1, II or III do not apply. However, in the event of an emergency, equipment operated by the City or contractors employed by the City are exempt from noise regulations.

F. All interior and exterior burglar alarms of a building or motor vehicle must be activated in such a manner that the burglar alarm terminates its operation within five (5) minutes for continuous airborne sound, and fifteen (15) minutes for intermittent sound after it has been activated. At all times the limits set forth in Tables I, II or III do not apply.

G. Self-contained, portable, non-vehicular music or sound production devices shall not be operated on a public space or public right-of-way in such a manner as to be plainly audible at a distance of 50 feet in any direction from the operator between the hours of 8:00 a.m. and 10:00 p.m. Between the hours of 10:00 p.m. and 8:00 a.m., sound, operated on a public space or public right-of-way, from such equipment shall not be plainly audible at a distance of 25 feet in any direction from the operator.

H. Reserved.

1. It shall be unlawful for any property owner or tenant to allow any domesticated or caged animal to create a sound across a real property line which unreasonably disturbs or interferes with the peace, comfort, and repose of any resident, or to refuse or intentionally fail to cease the unreasonable noise when ordered to do so by a noise control officer or noise control investigator. Prima facie evidence of a violation of this section shall include but not be limited to:

(1) Vocalizing (howling, yelping, barking, squawking etc.) for five (5) minutes without interruption, defined as an average of four (4) or more vocalizations per minute in that period; or,

(2) Vocalizing for twenty (20) minutes intermittently, defined as an average of two (2) vocalizations or more per minute in that period.

It is an affirmative defense under this subsection that the dog or other animal was intentionally provoked to bark or make any other noise.

Note—See editor's note, § 222-5.1.

§ 222-5.5. Motor vehicles. [Added 1-25-2017 by Ord. No. 17-007]

Violations of paragraphs A through D of this section shall be considered purposeful and therefore not a minor violation.

A. No person shall remove or render inoperative, or cause to be removed or rendered inoperative or less effective than originally equipped, other than for the purposes of maintenance, repair, or replacement, of any device or element of design incorporated in any motor vehicle for the purpose of noise control. No person shall operate a motor vehicle or motorcycle which has been so modified. A vehicle not meeting these requirements shall be deemed in violation of this provision if it is operated stationary or in motion in any public space or public right-of-way.

B. No motorcycle shall be operated stationary or in motion unless it has a muffler that complies with and is labeled in accordance with the Federal Noise Regulations under 40 CFR Part 205.

C. Personal or commercial vehicular music amplification or reproduction equipment shall not be operated in such a manner that it is plainly audible at distance of 25 feet in any direction from the operator between the hours of 10:00 p.m. and 8:00 a.m.

D. Personal or commercial vehicular music amplification or reproduction equipment shall not be operated in such a manner that is plainly audible at a distance of 50 feet in any direction from the operator between the hours of 8:00 a.m. and 10:00 p.m. Ice cream and other food vending trucks, while in residential neighborhoods, are prohibited from the playing of jingles while stationary. Jingles may only be played when the vehicle is in motion.

Note—See editor's note, § 222-5.1.

§ 222-5.6. Enforcement. [Added 1-25-2017 by Ord. No. 17-007]

A. Violation of any provision of this ordinance shall be cause for a notice of violation (NOV) or a notice of penalty assessment (NOPA) document to be issued to the violator by the noise control officer or noise control investigator.

B. Any person who violates any provision of this ordinance shall be subject to a civil penalty for each offense of not more than the maximum penalty pursuant to N.J.S.A. 40:49-5, which is $2,000.00. If the violation is of a continuing nature, each day during which it occurs shall constitute an additional, separate, and distinct offense.

C. Upon identification of a violation of this article the noise control officer or noise control investigator shall issue an enforcement document to the violator. The enforcement document shall identify the condition or activity that constitutes the violation and the specific provision of this article that has been violated. It shall also indicate whether the violator has a period of time to correct the violation before a penalty is sought.

D. If the violation is deemed by the noise control officer or noise control investigator to be a minor violation (as defined in section 222-2 of this article), an NOV shall be issued to the violator.

(1) The document shall indicate that the purpose of the NOV is intended to serve as a notice to warn the responsible party/violator of the violation conditions in order to provide them with an opportunity to voluntarily investigate the matter and voluntarily take corrective action to address the identified violation.

(2) The NOV shall identify the time period (up to ninety (90) days), pursuant to the Grace Period Law, N.J.S.A. 13:1D-125 et seq. where the responsible party's/violator's voluntary action can prevent a formal enforcement action with penalties issued by the City, or the Hudson Regional Health Commission. It shall be noted that the NOV does not constitute a formal enforcement action, a final agency action or a final legal determination that a violation has occurred. Therefore, the NOV may not be appealed or contested.

E. If the violation is deemed by the noise control officer or noise control investigator to be a non-minor violation the violator shall he notified that if the violation is not immediately corrected a NOPA with

a civil penalty of no more than the maximum penalty allowed pursuant to N.J.S.A. 40:49-5, which is two thousand dollars ($2,000.00) will be issued. If a non-minor violation is immediately corrected a NOV without a civil penalty shall still be issued to document the violation. If the violation occurs again (within three hundred sixty-five (365) days of the initial violation) a NOPA shall be issued regardless of whether the violation is immediately corrected or not.

F. The violator may request from the noise control officer or noise control investigator, an extension of the compliance deadline in the enforcement action. The noise control officer or noise control investigator shall have the option to approve any reasonable request for an extension (not to exceed 180 days) if the violator can demonstrate that a good faith effort has been made to achieve compliance. If an extension is not granted and the violation continues to exist after the grace period ends, a NOPA shall be issued.

G. The recipient of a NOPA shall be entitled to a hearing in a municipal court having jurisdiction to contest such action.

H. The noise control officer or noise control investigator may seek injunctive relief if the responsible party does not remediate the violation within the period of time specified in the NOPA issued.

1. Any claim for a civil penalty may he compromised and settled based on the following factors:

(1) Mitigating or any other extenuating circumstances;

(2) The timely implementation by the violator of measures which lead to compliance;

(3) The conduct of the violator; and

(4) The compliance history of the violator.

J. No provision of this ordinance shall be construed to impair any common law or statutory cause of action, or legal remedy there from, of any person for injury or damage arising from any violation of this ordinance or from other law.

Note—See editor's note, § 222-5.1.

§ 222-5.7. Consistency, severability and repealer. [Added 1-25-2017 by Ord. No. 17-007]

If any provision or portion of a provision of this ordinance is held to unconstitutional, preempted by Federal or State law, or otherwise invalid by any court of competent jurisdiction, the remaining provisions of the ordinance shall not be invalidated.

Note—See editor's note, § 222-5.1.

ARTICLE II

Sound Trucks

[Adopted 5-4-1971 as Ch. 26, Art. VI, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 222-6. Definitions.

As used herein, the following terms shall have the meanings indicated:

MOBILE AMUSEMENT DEVICE - A carousel, whip, merry-go-round or any other movable vehicle capable and used in transporting the same from point to point throughout the city.

SOUND-AMPLIFYING EQUIPMENT - Any machine or device for the amplification of the human voice, music or any other sound. "Sound-amplifying equipment" shall not be construed as including standard automobile radios, when used and heard only by occupants of the vehicle in which installed, or warning devices on authorized emergency vehicles or horns or other warning devices on other vehicles used only for traffic safety purposes.

SOUND TRUCK - Any motor vehicle or horse-drawn vehicle having mounted thereon or attached thereto any sound-amplifying equipment.

§ 222-7. Noncommercial use of sound trucks.

A. Registration required. No person shall use or cause to be used a sound truck with its sound-amplifying equipment in operation, excepting mobile amusement devices, for noncommercial purposes in the city before filing a registration statement with the City Clerk in writing. This registration statement shall be filed in duplicate and shall state the following:

(1) The name and home address of the applicant.

(2) The address of the place of business of the applicant.

(3) The license number and motor number of the sound truck to be used by the applicant.

(4) The name and address of the person who owns the sound truck.

(5) The name and address of the person having direct charge of the sound truck.

(6) The names and addresses of all persons who will use or operate the sound truck.

(7) The purpose for which the sound truck will be used.

(8) A general statement as to the section or sections of the city in which the sound truck will be used.

(9) The proposed hours of operation of the sound truck.

(10) The number of days of proposed operation of the sound truck.

(11) A general description of the sound-amplifying equipment which is to be used.

(12) The maximum sound producing power of the sound-amplifying equipment to be used in or on the sound trucks. State the following:

(a) The wattage to be used.

(b) The volume in decibels of the sound which will be produced.

(c) The approximate maximum distance for which sound will be thrown from the sound truck.

B. Registration statement and amendment. All persons using or causing to be used sound trucks for noncommercial purposes shall amend any registration statement filed pursuant to this section within forty-eight (48) hours after any change in the information therein furnished.

C. Registration and identification. The City Clerk shall return to each applicant under this section of this Article one (1) copy of said registration statement duly certified by the Clerk as a correct copy of said application. Said certified copy of the application shall be in the possession of any person operating the sound truck at all times while the sound truck's sound-amplifying equipment is in operation, and said copy shall be promptly displayed and shown to any police officer of the city upon request.

D. Regulations for use. Noncommercial use of sound trucks with sound-amplifying equipment in operation shall be subject to the following regulations:

(1) The only sounds permitted shall be music or human speech.

(2) Operations shall be permitted for four (4) hours each day, except on Sundays and legal holidays when no operations shall be authorized. The permitted four (4) hours of operation shall be between the hours of 11:30 a.m. and 1:30 p.m. and between the hours of 4:30 p.m. and 6:30 p.m.

(3) Sound-amplifying equipment shall not be operated unless the sound truck upon which such equipment is mounted is operated at a speed of at least ten (10) miles per hour, except when said truck is stopped or impeded by traffic. Where stopped by traffic, the sound-amplifying equipment shall not be operated for longer than one (1) minute at each such stop.

(4) Sound shall not be issued within one hundred (100) yards of hospitals, schools, churches or courthouses during the hours when such buildings are in actual use.

(5) No sound truck with its amplifying device in operation shall be operated on the following streets between the points designated: Journal Square, Bergen Avenue, between Journal Square and Montgomery Street; Kennedy Boulevard between Cottage Street and Tonnele Avenue; Newark Avenue between Coles Street and Henderson Street; Grove Street between Newark Avenue and Montgomery Street; Henderson Street between Newark Avenue and Montgomery Street; Brunswick Street between Newark Avenue and Grand Street; West Side Avenue between Montgomery Street and Culver Avenue; Martin Luther King Drive between Communipaw Avenue and McAdoo Avenue; Ocean Avenue between Bramhall Avenue and Merritt Street; Monticello

Avenue between Storms Avenue and Communipaw Avenue; Pacific Avenue between Communipaw Avenue and Grand Street; Central Avenue between Hoboken Avenue and the Union City boundary lines.

(6) The human speech and music amplified shall not be profane, lewd, indecent or slanderous.

(7) The volume of sound shall be controlled so that it will not be audible for a distance in excess of one hundred (100) feet from the sound truck and so that volume is not unreasonably loud, raucous, jarring, disturbing or a nuisance to persons within the area of audibility.

§ 222-8. Commercial advertising by sound truck.

A. License required. No person shall operate or cause to be operated any sound truck in the city for commercial advertising purposes with sound-amplifying equipment in operation, excepting mobile amusement devices, unless a license has been obtained from the City Clerk. The fee for said license shall be as provided in Chapter 160, Fees and Charges.*

B. Application for license. Persons applying for the license required under this section shall file with the City Clerk an application in writing giving in the application the information required in the registration statement under § 222-7 of this Article.

C. Issuance of license. The City Clerk shall issue a license under this section upon payment of the required license fee unless the application required in this section reveals that the applicant would violate the regulations prescribed in this section or the provisions of some other ordinance of this city.

D. Possession and display of license. A licensee shall keep such license in his or her possession in the sound truck during the time the sound truck's sound-amplifying equipment is in operation. The license shall be promptly displayed and shown to any police officer of the City of Jersey City upon request.

E. Regulations for use. No person shall operate, or cause to be operated, any sounds truck for commercial sound advertising purposes in violation of the regulation set forth in this Article.

ARTICLE III

Reserved!

'Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

fEditor's note—Ord. No. 17-007, § 1, adopted January 25,2017, amended the Code by repealing former Art. III, § 222-10. Former Art. Ill pertained to the quiet zone, and derived from Ord. No. 02-073, adopted June 12,2002; Ord. No. 02-116, adopted October 23,2002; and Ord. No. 04-151, adopted January 12,2005.

Chapter 225

NUCLEAR-FREE ZONE

§ 225-1. Definitions.

§ 225-2. Zone established.

[HISTORY: Adopted by the Council of the City of Jersey City 9-12-1985 as Ord. No. C-30. Amendments noted where applicable.]

§ 225-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

NUCLEAR-FREE ZONE — Defined by the following requirements:

A. No nuclear weapons, delivery systems for such weapons or components expressly intended to contribute to the operation, guidance or delivery of a nuclear weapon shall be produced or stored within the city or its port.

B. No waste from the production of nuclear weapons, their components or commercial nuclear power shall be stored within the city or its port.

C. No research furthering nuclear weapons development shall be conducted within the city, subject to rights guaranteed under the First Amendment to the United States Constitution.

D. The Mayor and Council of the City of Jersey City shall request the United States Department of Transportation and the New Jersey Department of Transportation to provide the city with advance notification of any radioactive waste shipment through the city limits. Upon such notification, the Mayor and Council shall act to prevent transportation of radioactive waste through the city by seeking an exemption from preemption by Department of Transportation regulations or using other legal means at their disposal.

E. The Mayor and Council of the City of Jersey City shall not do business with or award any municipal contract to any person, firm or organization engaged in the production of nuclear weapons.

F. Nothing in this chapter shall be construed to prohibit or regulate in any manner the research, development and application of nuclear medicine or the use of fissionable materials for smoke detectors, light-emitting timepieces and other applications, the principal purposes of which are unrelated to the development or fabrication of nuclear weapons.

§ 225-2. Zone established.

The City of Jersey City shall be established as a Nuclear-Free Zone.

Chapter 230

PAGING DEVICES

§ 230-1. Definitions.
§ 230-2. Sale to minors; records to be kept.
§ 230-3. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 3-9-1989 as Ord. No. C-912. Amendments noted where applicable.]

GENERAL REFERENCES

Communication systems — See Ch. 125.
Use of pay phones — See Ch. 296, Art. IX.

§ 230-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

ELECTRONIC PAGING DEVICE — Includes devices described generally as electronic pagers, display pagers, numerical display pagers, electronic beepers and beepers, as well as any device used for paging which is activated by a telephone signal or any other electrical signal.

MINOR — Any person under eighteen (18) years of age.

§ 230-2. Sale to minors; records to be kept.

A. No person may sell or offer for sale or otherwise transfer any electronic paging device to a minor unless the minor is accompanied by a parent or legal guardian and provides written verification that the device is required by his employer. The required verification shall be in the form of a letter or memorandum on the letterhead of the employer and shall be kept on file by the seller.

B. Any person maintaining or operating a business engaged in the sale of electronic paging devices and any person who engages in the sale of such devices shall keep at his or her place of business records of the day and time of each sale of an electronic paging device to a minor, the name, residence and age of any minor purchasing the device, the name and address of the minor's parent or guardian and a copy of the written verification of employment furnished by the minor. This information shall be kept on file for a period of two (2) years after the sale.

C. All records required by this section shall be at all times available for inspection to all police officers and to all other officers of the city having police power.

D. Absent express permission by the Principal or other person having control of a school, no minor may possess an electronic paging device in any public school, playground or on any other school property.

§ 230-3. Violations and penalties.[1]

Any person violating any provision of this chapter shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

1 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 233

PAINT STRIPPING

§ 233-1. Definitions.
§ 233-2. Permit required.
§ 233-3. Permit application.
§ 233-4. Permit fee; nontransferability.
§ 233-5. Hours of operation.
§ 233-6. Environmental hazard monitoring instructions.
§ 233-7. Enclosure of work area.
§ 233-8. Disposal of washings.
§ 233-9. Inspections; violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 10-27-1988 as Ord. No. C-771. Amendments noted where applicable.]

GENERAL REFERENCES

Fees and charges — See Ch. 160.
Property maintenance (use of lead paint) — See Ch. 254.
Disclosure of presence of lead-based paint — See Ch. 257.

§ 233-1. Definitions.

As used herein, the following terms shall have the meanings indicated:

PERSON — Any individual, firm, corporation, partnership, association or entity.

§ 233-2. Permit required.

No person may remove paint from the facade, back or sides of any building by any method unless he has first secured a permit for each building from the Construction Official.

§ 233-3. Permit application.

A. Application for a cleaning/stripping permit shall contain the following:

(1) The name and address of the applicant. If the applicant is a partnership or cooperation, the names and addresses of all partners or stockholders and their respective interests. If the paint cleaning/stripping is to be performed by any person other than the applicant, the information required by this subsection shall be given as to that person as well.

(2) The nature of the cleaning/stripping method to be employed.

(3) The method to be used to contain wash solutions and solvents and the manner in which the acidity or alkalinity of the wash solutions is to be neutralized, as in accordance with the N.J.A.C.

(4) The means to be used to dispose of filtered paint chips.

(5) Any other information which the Construction Official shall consider relevant and necessary for the full protection and interests of the public.

B. The Construction Official may deny the permit if information requested is not in conformance with this chapter.

§ 233-4. Permit fee; nontransferability.

A. The fee for a paint cleaning/stripping permit shall be as provided in Chapter 160, Fees and Charges.[1]

B. No paint cleaning/stripping permit shall be transferable from person to person or from place to place. Permits shall be valid only for the person and place designated in the permit.

§ 233-5. Hours of operation.

Permits for paint cleaning/stripping shall specify that the work shall be done only during the weekdays of Monday through Friday between the hours of 8:00 a.m. and 6:00 p.m.

§ 233-6. Environmental hazard monitoring instructions.

The Construction Official, in conjunction with the Health Official, shall issue printed instructions to each applicant, detailing the environmental hazards to be monitored by the applicant.

§ 233-7. Enclosure of work area.[2]

The building area from which paint is to be cleaned or stripped shall be enclosed with a membrane material. The membrane material shall be either noncombustible or flame-resistant as defined in the BOCA Code. The membrane material shall shroud the building area to be cleaned or stripped in such a way as to prevent the release of dust, sand and acid or alkaline mists and vapors into the air.

§ 233-8. Disposal of washings.

All washings must be captured and contained and disposed of as follows:

A. All paint and solid particles must be allowed to settle and/or be filtered out of the washings. Along with old paint particles, those filtered solid particles and the material used to capture the wash should be disposed of according to the Solid Waste Management Act, N.J.S.A. 13:1E-1 et seq.

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1 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

2 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

B. All washings shall be neutralized to a pH of six (6) to eight (8) before being discharged into the Jersey City Sewer System.

§ 233-9. Inspections; violations and penalties.[3]

Any project for which a permit is issued under this chapter shall be subject to inspection by the Construction Official throughout the duration of the project. Any violation of these regulations shall be cause for immediate suspension of the project and shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

[3] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 236

PARKING LOTS AND GARAGES*

ARTICLE I

Licensing of Parking Lots and Garages

§ 236-1. Definitions.
§ 236-2. Parking license required.
§ 236-3. License application.
§ 236-4. License fees; expiration.
§ 236-5. License issuance; revocation.
§ 236-6. Transferability of licenses.
§ 236-7. Suspension or revocation of license; hearing.
§ 236-8. Parking rates to be filed.
§ 236-9. Changes in rates.
§ 236-10. Parking signs; resolution of customer and service issues.
§ 236-11. Refusal to park vehicles unlawful.
§ 236-12. Parking claim checks; return of vehicle.
§ 236-13. Insurance requirements.
§ 236-14. Entrances and exits.
§ 236-15. Barriers.
§ 236-16. Maintenance of premises.
§ 236-17. Notification of claims for damage or loss.
§ 236-18. Notification at unclaimed parked vehicles.
§ 236-19. Unauthorized use or removal of parked vehicles.
§ 236-20. Care of vehicles after closing time.
§ 236-21. Fire protection and closed circuit TV systems in robotic/automated parking garages.
§ 236-21.1. Enforcement and penalties.

ARTICLE II

Shopping Center Parking Lots

§ 236-22. Definitions.
§ 236-23. Uniformed security guards to be provided.
§ 236-24. Violations and penalties.

ARTICLE I

Licensing of Parking Lots and Public Garagest

§ 236-1. Definitions.

As used herein, the following terms shall have the meanings indicated:

GARAGE - Any covered and enclosed space, or any portion thereof, where more than five motor vehicles are exhibited for sale, stored, parked, housed or located.

MOTOR VEHICLE - Any automobile, truck, motor scooter or other self-propelled vehicle not operated on tracks or from trolleys.

'History—Adopted by the Council of the City of Jersey City: Art. I, adopted May 4,1971 as Ch. 8, Art. XI, of the 1971 Jersey City Code, as readopted September 19,1978 by Ord. No. S-128; Art. II, May 23,1984 as Ord. No. MC-330; amended June 8,2005 by Ord. 05-063. Amendments noted where applicable.

Cross references—Fees and charges, Ch. 160; fire lanes, Ch. 166; towers and towing, Ch. 319; vehicles and traffic, Ch. 332.

tHistory—Adopted May 4,1971 as Ch. 8, Art. XI, of the 1971 Jersey City Code, as readopted September 19,1978 by Ord. No. S-128.

PARKING LOT - Any outdoor space or uncovered plot of ground, place, lot, parcel, yard or enclosure, or any portion thereof, where more than five motor vehicles are exhibited for sale, stored, parked, housed or located.

§ 236-2. Parking license required.

A. No person shall operate a parking lot or garage without having obtained a parking license.

B. No licensee may park a customer's vehicle or permit a customer's vehicle to be parked on a public street or at any location other than the licensed premises. A violation of this section shall be presumed if a vehicle is permitted to remain off the licensed premises for a period in excess of five minutes.

§ 236-3. License application. [Amended 1-24-2018 by Ord. No. 18-002]

Applications for parking licenses shall be made upon forms provided by the license issuing authority, shall be signed and verified under oath by the individual or the partner where the applicant is an individual or a partnership, or by a duly authorized agent if the applicant is a corporation, and shall furnish the following:

A. If an individual, the name and address of the applicant.

B. If a partnership, the name, residence and business address of each partner.

C. If a corporation, the name, date and state under whose laws such corporation was organized and, if a foreign corporation, whether authorized to do business in the State of New Jersey, the names of the principal officers, directors and local representatives and their residence and business addresses.

D. A true and complete copy of the applicant's deed to the parking lot or garage or, in the case of lessees, a true and complete copy of the lease or other instrument showing a right to possession of the parking lot or garage.

E. A plot or drawing of the parking lot or garage showing the location, size, capacity and walls or harriers surrounding said premises, the number and location of all security cameras, if any, and the location, size and construction of the attendant's station, if any.

F. The hours for parking of vehicles and whether night parking is to be maintained upon the licensed premises.

G. The hours during which parking attendants, if any, will be on duty.

H. A complete schedule of the rates to be charged for the parking of vehicles.

1. Whether the parking lot or garage is to be used for parking by the public or is to be restricted to private use.

J. If the parking garage is operated as a self-park/robotic facility, the name, address and telephone number of the person responsible for resolving any service or customer issues on a 24-hour basis and a description of the procedure utilized to assure that parked vehicles are safely returned to customers upon payment of the required fee.

§ 236-4. License fees; expiration.

A. The annual license fee for a parking lot or garage shall be as provided by Chapter 160, Fees and Charges. Such license shall run for a period of one year, commencing January 1 and ending December 31 of any year. If at any time of application for a license less than six months of the current year have expired, the applicant shall be required to pay the full fee for the year. If six months or more shall have expired, the applicant shall be required to pay 1/2 of the full fee for the year.

B. Where a parking lot or garage is used exclusively by the patrons of a business that is seasonal in its nature, such as amusement or athletic parks, the license issuing authority may issue a seasonal license in lieu of the annual license. Such seasonal license shall run for the number of months for which it is contemplated to use such parking lot or garage, but in no event shall it run for less than two months. The fee for such seasonal license shall be determined by multiplying the number of months from which said seasonal license is issued by 1/10 of the annual license fee for operating said parking lot or garage.

C. All licenses are revocable by the license issuing authority for the violation of any of the terms of this article upon due notice and hearing.

§ 236-5. License issuance; revocation.

If after an investigation the license issuing authority is reasonably satisfied that the applicant has a good reputation and the statements set forth in the application are correct and if the proper fee shall have been paid, the license issuing authority shall issue to the applicant a license for a parking lot or a garage, which license shall continue in full force and effect until December 31 following the issuance of the license or until revoked by order of the Business Administrator. The Business Administrator shall keep a record of all applications and licenses issued, indexed alphabetically and by location. License fees shall be fixed according to the provisions of this article.

§ 236-6. Transferability of licenses.

No parking license issued under this article shall be transferred or assigned or used by any person other than the one to whom it is issued or at any location other than the one for which it is issued without the consent and approval of the license issuing authority.

§ 236-7. Suspension or revocation of license; hearing.

A. Any parking license issued hereunder may be suspended or revoked by the license issuing authority for any of the following reasons:

(1) The licensee has knowingly made any false and materially incorrect statement in the application.

(2) The licensee knowingly violates or knowingly permits or countenances the violation of any provision of this Article.

(3) The licensee has made a charge for parking a vehicle less than the minimum set forth in the license application or has made a charge in excess of the maximum set forth in the license application without permission in writing from the license issuing authority or someone designated to give such permission.

(4) The licensee knowingly violates or knowingly permits or countenances the violation of any provision of any penal law or ordinance regarding theft, larceny or conversion of a motor vehicle or the operation of a motor vehicle without the owner's consent, whether such licensee or other person has been convicted of such offense or not.

(5) The licensee fails to keep an attendant on duty during the time specified in the application.

(6) The licensee fails to remit timely payment of parking taxes to the City of Jersey City.

B. No suspension or revocation of any license shall be made until a ten-day written notice of the charges preferred against the licensee has been given to the licensee personally or by mailing the same by certified mail, return receipt requested, addressed to the licensee at the licensed premises and a reasonable opportunity to be heard thereon afforded. The hearing shall be held before and conducted by the Director or by an official of said Division of Commerce, when so designated by the Director. All suspensions or revocations of licenses shall be effected by notice in writing, designating the effective date thereon and, in case of suspension, the term of such suspension, which notice may be served upon the licensee personally or by mailing the same by registered mail addressed to the licensee at the licensed premises. Such suspension or revocation shall apply to the licensee and to the licensed premises. Any revocation shall render the licensee ineligible to receive any other license under this article or under any article supplemental hereto for a period of one year from the effective date thereof and may, in the discretion of the Director, render the licensed premises ineligible for any future license under said article.

§ 236-8. Parking rates to be filed.

Every applicant for a parking license shall file with the license issuing authority at the time of application a complete schedule of rates and charges.

§ 236-9. Changes in rates.

No licensee shall make any charge for parking any vehicle in a parking lot or garage in excess of that set forth in the application for a license, unless the licensee has:

A. Notified the license issuing authority in writing of the new schedule of rates.

B. Posted signs showing such increase in the same manner as required herein.

§ 236-10. Parking signs; resolution of customer and service issues. [Amended 1-24-2018 by Ord. No. 18-002]

A. Each licensee shall maintain at each entrance to such parking lot or garage a permanently affixed sign suitable to apprise persons using the same of the name of the licensee, the hours of the day or night when such places are open for parking motor vehicles, the rates charged and the closing hours of such parking lot or garage, and the name and telephone number of the person responsible for resolving any service or customer issues during all hours of operation. Where more than one rate is charged for parking, the figures for each rate shall be of the same size and dimensions, and such figures shall measure not less than six inches in height, and the letters and figures indicating the closing hours shall be not less than six inches in height. All such signs shall be subject to the approval of the Director of Zoning or his or her authorized representative.

B. Where separate rates or charges are made for day parking and night parking, the night rate shall become effective at 6:30 p.m. and notice thereof shall be posted on signs described in the preceding subsection.

C. All signs shall be erected two feet by three feet in size and shall be at least near all entrances, exits and payment locations, so that they are clearly legible to customers at the sidewalk level on parking lots, and the same shall apply above the floors of garages and shall not be erected in such manner as to interfere with, mislead or confuse traffic.

§ 236-11. Refusal to park vehicles unlawful.

If public parking is permitted under the license, then no parking licensee shall refuse to park any vehicle for which there shall be accommodation in such parking lot or garage on tender of the stated fee.

§ 236-12. Parking claim checks; return of vehicle.

A. When a vehicle is left for parking in a garage or parking lot which has an attendant on duty, the licensee of the parking lot or garage or the licensee's agent, servant or employee shall furnish the owner or operator of the vehicle with a distinctive claim check which shall have printed thereon the full name and address of the parking lot or garage and a number corresponding to a coupon placed upon the vehicle and shall have written or stamped thereon the date and license number of the motor vehicle. The licensee shall not deliver any vehicle without the proper claim check being presented or without satisfactory proof of ownership of the vehicle. This provision shall not apply where vehicles are parked on a weekly or monthly fee basis. In a self-park, automated/robotic garage which has no attendant on duty, the licensee shall furnish the customer with a receipt or other device to identify the parked vehicle and assure that the vehicle is safely returned to the customer upon payment of the required parking fee. **[Amended 1-24-2018 by Ord. No. 18-002]**

B. No parking coupon shall be affixed upon any vehicle so as to obliterate, in whole or in part, any portion of the license plates on such vehicle.

§ 236-13. Insurance requirements.

Each parking licensee shall file with the license issuing authority a certificate showing that the licensee has insurance against fire, theft and liability for the protection of the owners of the cars parked in his or her parking lot or garage.

§ 236-14. Entrances and exits.

Each parking lot or garage shall have at least one entrance and one exit, which may or may not be combined, and the operator of a parking lot or garage shall keep such entrance and exit properly secured at all times during the period the parking lot or garage is in operation. **[Amended 1-24-2018 by Ord. No. 18-002]**

§ 236-15. Barriers.

Except for places of entrance and exit, every parking lot or garage shall be completely enclosed by barriers constructed and maintained so as to withstand the shocks and stresses to which they will normally be subjected by vehicles using the premises and shall be of such height as to engage the bumper of any motor vehicle parked on the lot or garage so that no portion of the vehicles extends over the property lines. When a parking lot abuts upon a building, barriers shall be erected, as provided herein, to prevent motor vehicles from striking such building.

§ 236-16. Maintenance of premises.

A. Every operator of a parking lot or garage shall keep the sidewalk surrounding the premises free from dirt, ice, sleet and snow and shall keep the sidewalks and driveways in a safe condition for the travel of pedestrians.

B. The ground space of each parking lot or garage, if made of dirt, sand, cinders or other loose mixture, shall at all times be kept thoroughly sprinkled or treated with water, calcium chloride or other means so that the dust, sand, cinders or other substance of which the ground space is made will not be raised, carried or blown by the wind, movement of vehicles or other causes into or upon public property or the adjacent property of others. The surface of a parking lot shall be constructed so as to prevent retention of water thereon.

C. No person shall distribute literature or place handbills in or upon any vehicle while parked in a parking lot or a garage.

D. The loading or unloading of passengers or drivers of vehicles across or upon a public sidewalk is prohibited, and no operator or employee shall receive or deliver any vehicle at or to a location outside the property line of the parking lot or garage in such a way as to block any sidewalk or street.

E. No licensee shall sublet, sublease or otherwise permit any parking lot or garage or portion thereof to be used by any vendor of goods, wares or merchandise or services for the conduct of such vendor's business unless the same is conducted in a permanent building or structure licensed by the city for that purpose. This section shall not be construed to prohibit the maintenance and use of cigarette, candy and soft drink vending machines on any licensed parking lot or garage.

§ 236-17. Notification of claims for damage or loss. [Amended 1-24-2018 by Ord. No. 18-002]

A. Every parking licensee shall immediately notify the license issuing authority of every claim made by reason of loss, theft or conversion or any damage or injury to person or property from the operation

of a parking lot or garage which occurs during the hours the premises are regularly opened for business as posted upon the premises and printed upon the regular receipt furnished the owner or operator of the parked vehicle.

B. All automated, self-park and unattended garages shall post signage of the same dimensions as that required by Section 236-10 at all kiosks and pay stations informing customers of the procedures for filing a claim for damages arising from any damage to the vehicle or loss or injury to the customer. The sign shall include:

(1) An email address where a customer may make a claim before leaving the facility as well the name, address and 24-hour telephone number where a claim may be filed thereafter;

(2) A concise explanation of the information required to validate a claim such as a photo or other appropriate proof of the damage, loss or injury and a copy of the customer's parking receipt.

C. The owner or operator of an automated, self-park and unattended garage shall respond to any claim within two business days after receipt of the information required to validate the claim. Such response may be by email if the claimant has provided an email address.

§ 236-18. Notification at unclaimed parked vehicles. [Amended 9-11-2013 by Ord. No. 13-081]

Every parking licensee shall immediately notify the license issuing authority and the Department of Public Safety, in writing, of the license number, make and, if available, the name of the owner of every vehicle left in a parking lot or garage for a period of more than forty-eight (48) consecutive hours, unless the name and address of the owner of such vehicle are personally known to the licensee.

§ 236-19. Unauthorized use or removal of parked vehicles.

It shall be unlawful for any licensee of a parking lot or garage to use or permit any use for any purpose of any parked vehicle unless the use shall have first been authorized by the owner or operator thereof. No licensee shall transfer or cause to be moved or transferred any parked vehicle through or upon the streets or alleys without the consent of the owner or operator thereof.

§ 236-20. Care of vehicles after closing time. [Amended 1-24-2018 by Ord. No. 18-002]

When vehicles are not called for at closing time, if the customer's keys have been left with an attendant, the attendant shall leave the keys and parking coupon for safekeeping at a place within a reasonable distance of the parking lot or garage with a responsible person whose name and address shall be posted in a conspicuous place at the lot or garage. Such person shall release the vehicle only upon proper identification by the person claiming it.

§ 236-21. Fire protection and closed circuit TV systems in robotic/automated parking garages. [Amended 9-11-2013 by Ord. No. 13-081; 1-24-2018 by Ord. No. 18-002]

A. Every parking lot or garage shall be equipped with proper fire extinguishing apparatus subject to the approval of the Department of Public Safety, and all vehicles shall be so parked that they may be reached readily in case of fire or other emergency.

B. All automated, self-park and unattended parking garages shall be equipped with a closed circuit television system capable of monitoring during hours of operation, all areas available to customers as well as all locations where vehicles are stored and transferred to customers. Recordings from such systems shall be maintained for a period of at least 30 days from the date of recording.

§ 236-21.1. Enforcement and penalties. [Added 1-24-2018 by Ord. No. 18-002; 9-23-2020 by Ord. No. 20-074]

The licensing provisions of this article shall be administrated by the Division of Commerce and enforcement of violations shall be the responsibility of the Department of Public Safety's Division of Quality of Life. All penalties shall be punishable as provided in Chapter 1, General Provisions, § 1-25.

ARTICLE II
Shopping Center Parking Lots*

§ 236-22. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

SHOPPING CENTER PARKING LOT - A parking lot used in conjunction with a store or stores catering principally to retail sales customers, commonly known as a "shopping center," with parking spaces for 100 or more vehicles.

§ 236-23. Uniformed security guards to be provided.

A. The owner or operator of a shopping center parking lot, as defined in § 236-22, shall provide one or more uniformed security guards who shall be on duty whenever the shopping center is open for business.

B. The uniformed security guard or guards shall patrol the parking lot periodically and shall report all incidents of crime to the Jersey City Department of Police. Uniformed security guards provided by the owners of shopping center parking lots shall not be required to undertake the duties of the Jersey City Department of Police in investigating crimes and apprehending and prosecuting criminal offenders. [**Amended 9-11-2013 by Ord. No. 13-081**]

C. An owner or agent of a shopping center parking lot subject to this Article may apply to the Director of Public Safety for an exemption from the requirements of subsection A, above. By application for an exemption on a form to be devised by the Director, the applicant must demonstrate to the Director's satisfaction that the level of security in operation is equivalent to the use of the uniform security guards in accordance with subsection B, above and is adequate for the protection and safety of the customers of the shopping center. [**Added 11-26-2013 by Ord. No. 13-128**.]

D. The Director of Public Safety shall conduct an inspection of the shopping center parking lot and shall grant an exemption if he or she finds that the proposed security arrangements are adequate in his or her reasonable discretion to protect the safety and property of the customers of the shopping center.

*__Note__—Adopted 5-23-1984 as Ord. No. MC-330.

If the Director of Public Safety denies such application for an exemption, the Director may also recommend to applicant other safety measures deemed adequate to meet the minimum requirements for an exemption in his or her reasonable discretion. **[Added 11-26-2013 by Ord. No. 13-128.]**

E. The exemption may be withdrawn by the Director at any time upon notice to the owner or agent of the shopping center parking lot and an opportunity to be heard. Notice is effective upon leaving at or posting upon the premises a written notice so stating the withdrawal. An exemption shall be withdrawn upon a finding by the Director that the shopping center parking lot no longer meets the criteria for an exemption outlined above. **[Added 11-26-2013 by Ord. No. 13-128.]**

§ 236-24. Violations and penalties.

Any person, firm or corporation who shall violate any provision of this Article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

Editor's note—Added at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

Chapter 239

PARKS

§ 239-1. Definitions.
§ 239-2. Injuring buildings or park property.
§ 239-3. Damage to trees, shrubbery or lawns.
§ 239-4. Molestation of animals or birds.
§ 239-5. Pollution; depositing materials.
§ 239-6. Traffic regulations.
§ 239-7. Use of bicycles.
§ 239-8. Bathing and swimming.
§ 239-9. Boating.
§ 239-10. Fishing and hiking.
§ 239-11. Hunting and firearms.
§ 239-12. Picnic areas; camping; horseback riding.
§ 239-13. Alcoholic beverages; firecrackers; loitering; soliciting alms; fires; gambling.
§ 239-14. Merchandising, advertising and signs.
§ 239-15. Hours of operation; permits; farmers' markets.
§ 239-16. Enforcement.
§ 239-17. Skateboarding facilities.
§ 239-18. Inventory of Recreation and Open Space (ROSI).

[HISTORY: Adopted by the Council of the City of Jersey City 5-4-1971 as Ch. 18 of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; amended in its entirety 8-13-1997 by Ord. No. 97-052. Subsequent amendments noted where applicable.)

GENERAL REFERENCES

Advertising materials; littering — See Ch. 81.
Alcoholic beverages — See Ch. 84.
Fees and charges — See Ch. 160.
Firearms and weapons — See Ch. 163.
Peace and good order — See Ch. 242.
Peddling, soliciting and canvassing — See Ch. 245.
Trees — See Ch. 321.
Vehicles and traffic — See Ch. 332.
Waterfront — See Ch. 340.

§ 239-1. Definitions.

As used herein, the following terms shall have the meanings indicated:

ATHLETIC ACTIVITY - Any activity in which a ball and other athletic equipment is used, including baseball, basketball, football, handball, soccer, tennis and ice skating.

DIRECTOR - The head of the Department of Public Works.

PARK - A park, reservation, playground, ballfield, beach, recreation center or any other area in the city, owned or used by the city, and devoted to active or passive recreation and/or athletic activities.

VEHICLE - Any wheeled conveyance, whether motor-powered, animal-drawn or self-propelled. The term shall include any trailer in tow of any size, kind or description. Exception is made for baby carriages and vehicles in the service of the city parks.

§ 239-2. Injuring buildings or park property.

No person in a park shall:

A. Willfully mark, deface, disfigure, injure, tamper with or displace or remove any buildings, bridges, tables, benches, fireplaces, railings, paving or paving material, water lines or other public utilities or parts or appurtenances thereof, signs, notices or placards, whether temporary or permanent, monuments, stakes, posts or other boundary markers, or other structures or equipment, facilities or park property or appurtenances whatsoever, either real or personal.

B. Fail to cooperate in maintaining rest rooms and wash rooms in a neat and sanitary condition. No person over the age of five years shall use the rest rooms and wash rooms designated for the opposite sex.

C. Dig or remove any beach sand, whether submerged or not, or any soil, rocks, stones, trees, shrubs or plants, down-timber or other wood or materials or make any excavation by tool, equipment, blasting or other means or agency.

D. Construct or erect any building or structure of whatever kind, whether permanent or temporary in character, or run or string any public service utility into, upon or across such lands, except on special written permit issued hereunder.

§ 239-3. Damage to trees, shrubbery or lawns.

No person in a park shall:

A. Damage, cut, carve, transplant or remove any tree or plant or injure the bark or pick the flowers or seeds of any tree or plant, nor shall any person attach any rope, wire or other contrivance to any tree or plant. A person shall not dig or otherwise disturb grass areas or in any other way injure or impair the natural beauty or usefulness of any area.

B. Climb any tree or walk, stand or sit upon any monuments, vases, fountains, railings, fences or gun-carriages or upon any other property not designated or customarily used for such purposes.

C. Tie or hitch a horse or other animal to any tree or plant.

§ 239-4. Molestation of animals or birds.

No person in a park shall:

A. Hunt, molest, harm, frighten, kill, trap, chase, tease, shoot or throw missiles at any animal, reptile or bird; nor shall any person remove or have in his or her possession the young of any wild animal or the eggs, nest or young of any reptile or bird; nor shall any person collect, remove, have in his or her possession, give away, sell or offer to sell or buy or offer to buy or accept as a gift any specimen alive or dead of any of the of the group of tree snails. Exception to the foregoing is made in that snakes known to be deadly poisonous, such as rattlesnakes, moccasins, coral snakes or other deadly reptiles, may be killed on sight.

B. Give or offer or attempt to give to any animal or bird any tobacco, alcohol or other known noxious substances.

§ 239-5. Pollution; depositing materials.

No person in a park shall:

A. Throw, discharge or otherwise place or cause to be placed in the waters of any fountain, pond, lake, stream, bay or other body of water in or adjacent to any park, or any tributary, stream, storm sewer or drain flowing into such waters, any substance, matter or thing, liquid or solid, which will or may result in the pollution of said waters.

B. Have brought in or shall dump, deposit or leave any bottles, broken glass, ashes, paper, boxes, cans, dirt, rubbish, waste, garbage, refuse or other trash. No such refuse or trash shall be placed in any waters in or contiguous to any park or left anywhere on the grounds thereof, but shall be placed in the proper receptacles where these are provided. Where receptacles are not so provided, all such rubbish or waste shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere.

§ 239-6. Traffic regulations.

No person in a park shall:

A. Fail to comply with all applicable provisions of the state motor vehicles traffic laws in regard to equipment and operation of vehicles together with such regulations as are contained in this chapter and other ordinances.*

B. Fail to obey all traffic officers and park employees, such persons being hereby authorized and instructed to direct traffic whenever and wherever needed in the parks and on the highways, streets or roads immediately adjacent thereto in accordance with the provisions of these regulations and such supplementary regulations as may be adopted.

C. Fail to observe carefully all traffic signs indicating speed, direction, caution, stopping or parking, and all others posted for proper control and to safeguard life and property.

D. Ride or drive a vehicle at a rate of speed exceeding 15 miles an hour, except upon such roads as the Director may designate, by posted signs, for speedier travel.

E. Drive any vehicle on any area except the paved park roads or parking areas or such other areas as any on occasion are specifically designated as temporary parking areas.

F. Park a vehicle in other than an established or designated parking area, and such use shall be in accordance with the directions posted there and with the instructions of any attendant who may be present. The Director of Recreation may designate areas within parks to allow the parking of

*Editor's Note: See N.J.S.A. 39:1-1 et seq. and Ch. 332, Vehicles and Traffic, of this Code.

vehicles used by holders of permits for farmers' markets issued pursuant to Section 239-15. **[Amended 8-16-2023 by Ord. No. 23-074]**

§ 239-7. Use of bicycles. [Amended 5-8-2013 by Ord. No. 13-056]

No person in a park shall:

A. Ride a bicycle on other than a paved vehicular road or path designated for that purpose. A bicyclist shall be permitted to wheel or push a bicycle by hand over any grassy area or wooded trail or on any paved area reserved for pedestrian use.

B. Leave a bicycle in a place other than a bicycle rack when such is provided and there is a space available.

C. Leave a bicycle lying on the ground or paving, set against trees or in any place or position where other persons may trip over or be injured by it.

§ 239-8. Bathing and swimming.

No person in a park shall:

A. Swim, bathe or wade in any waters or waterways in or adjacent to any park, except in such waters and at such places as are provided therefor and in compliance with such regulations as are herein set forth or may be hereafter adopted; nor shall any person frequent any waters or places customarily designated for the purpose of swimming or bathing or congregate there when such activity is prohibited upon a finding that such use of the water would be dangerous or otherwise inadvisable.

B. Frequent any waters or places designated for the purpose of swimming or bathing, or congregate there, except between such hours of the day as shall be designated for such purposes for each individual area.

C. Erect, maintain, use or occupy on or in any beach or bathing area any tent, shelter or structure of any kind unless there shall be an unobstructed view into said tent, shelter or structure from at least two sides; nor shall any guy wire, rope or extension or exterior brace or support be connected or fastened from any such structure to any other structure, stake, rock or other object outside thereof.

D. Dress or undress on any beach or in any vehicle, toilet or other place, except in such bathing houses or structures as may be provided for that purpose.

§ 239-9. Boating.

No person in a park shall:

A. Bring into or operate any boat, raft or other watercraft, whether motor-powered or not, upon any waters, except at places designated for boating. Such activity shall be in accordance with applicable regulations as are now or may hereafter be adopted.

B. Use the public docks for dockage or other purposes without first making arrangements for such accommodations with the Department of Recreation and Cultural Affairs, who shall assign space and collect reasonable rental charges in conformity with established regulations and rates.

C. Navigate, direct or handle any boat in such a manner as to unjustifiably or unnecessarily annoy or frighten or endanger the occupants of any other boat.

D. Launch, dock or operate any boat of any kind on any waters between the closing hour of the park at night and opening hour the following morning, nor shall any person be on or remain on or in any boat during the said closed hours of the park.

§ 239-10. Fishing and hiking.

A. No person shall:

(1) Engage in commercial fishing or the buying or selling of fish caught in any waters in a park.

(2) Fish in any waters (except for Jersey City reservoir property waters), whether fresh or salt and whether by the use of hook-and-line, net, trap or other device, except in waters designated by the Director for that use and under such regulations and restrictions as may have been or may be prescribed by the Director.

(3) Fish in any Jersey City reservoir property waters, whether by the use of hook-and-line, net, trap or other device, except upon permit obtained from the Jersey City Watershed Office, 739 Greenbank Road, Lake Parsippany, New Jersey, or the City Clerk's Office of Jersey City, 280 Grove Street, Jersey City, New Jersey, upon payment of maintenance fee as provided in Chapter 160, Fees and Charges, and under such other regulations and restrictions as may have been or may be prescribed by that office and other applicable state and local laws and regulations. Persons 17 and under shall be accompanied by an adult.

(4) Hike on any Jersey City reservoir property except upon permit obtained from the Jersey City Watershed Office, 739 Greenbank Road, Lake Parsippany, New Jersey, or the City Clerk's Office of Jersey City, 280 Grove Street, Jersey City, New Jersey, upon payment of maintenance fee as provided in Chapter 160, Fees and Charges, and under such other regulations and restrictions as may have been or may be prescribed by that office and other applicable state and local laws and regulations. Persons 17 and under shall be accompanied by an adult.

§ 239-11. Hunting and firearms.

No person in a park shall hunt, trap or pursue wildlife at any time. No person shall use, carry or possess firearms of any description or air rifles, spring-guns, bows and arrows, slings or any other forms of weapons potentially inimical to wildlife and dangerous to human safety, or any

instrument that can be loaded with and fire blank cartridges or any kind of trapping device. Shooting into park areas from beyond park boundaries is forbidden.

§ 239-12. Picnic areas; camping; horseback riding.

No person in a park shall:

A. Picnic or lunch in a place other than those designated for that purpose. Attendants shall have the authority to regulate the activities in such areas when necessary to prevent congestion and to secure the maximum use for the comfort and convenience of all. Visitors shall comply with any directions given to achieve this end.

B. Violate the regulations that use of the individual fireplaces, together with tables and benches, follows generally the rule of "first come, first served."

C. Use any portion of the picnic areas or of any of the buildings or structures therein for the purpose of holding picnics to the exclusion of other persons, nor shall any person use such area and facilities for an unreasonable time if the facilities are crowded.

D. Leave a picnic area before the fire is completely extinguished and before all trash in the nature of boxes, paper, cans, bottles, garbage and other refuse is placed in the disposal receptacles where provided. If no such trash receptacles are available, then refuse and trash shall be carried away from the park area by the picnicker to be properly disposed of elsewhere.

E. Camp in other than permanent cabins for organized camping and used by groups of persons under adequate supervision. No person shall set up tents, shacks or any other temporary shelter for the purpose of overnight camping, nor shall any person leave in a park after closing hours any movable structure or special vehicle to be used or that could be used for such purpose, such as house-trailer, camp-trailer, camp-wagon or the like.

F. Take part in or abet the playing of any games involving thrown or otherwise propelled objects such as balls, stones, arrows, javelins or model airplanes except in areas set apart for such forms of recreation. The playing of rough or comparatively dangerous games such as football, baseball and quoits is prohibited except on the fields and courts or areas provided therefor. Roller-skating shall be confined to those areas specifically designated for such pastime.

G. Ride a horse except on designated bridle trails. Where permitted, horses shall be thoroughly broken and properly restrained, ridden with due care and shall not be allowed to graze or go unattended, nor shall they be hitched to any rock, tree or shrub.

§ 239-13. Alcoholic beverages; firecrackers; loitering; soliciting alms; fires; gambling.

No person in a park shall:

A. Have brought alcoholic beverages or drink alcoholic beverages at any time in the park. At certain specifically designated recreation centers where meals or lunches are served under concession privileges, the sale of alcoholic beverages by such concessionaire will be permitted under the strict regulation and control of the Director. Sales of alcoholic

beverages shall be made only in individual drinks (not in original packages or otherwise in bulk) and shall be served for consumption on the immediate premises of the concession.

B. Have entered or be under the influence of intoxicating liquor.

C. Brought or have in his or her possession or set off or otherwise cause to explode or discharge or burn any firecrackers, torpedo, rocket or other fireworks or explosives of flammable material or discharge them or throw them into any such area from land or highway adjacent thereto. This prohibition includes any substance, compound, mixture or article that in conjunction with any other substance or compound would be dangerous from any of the foregoing standpoints.

D. Occupy any seat or bench or enter into or loiter or remain in any pavilion or other park structure or section thereof which may be reserved and designated for the use of the opposite sex. Exception is made for children under 10 years of age.

E. Solicit alms or contributions for any purpose, whether public or private.

F. Build or attempt to build a fire except in such areas and under such regulations as may be designated by the Director. No person shall drop, throw or otherwise scatter lighted matches, burning cigarettes or cigars, tobacco paper or other flammable material within any park area or on any highway, road or street abutting or contiguous thereto.

G. Enter an area posted as closed to the public, nor shall any person use or abet the use of any area in violation of posted notices.

H. Gamble or participate in or abet any game of chance.

1. Go onto the ice on any of the waters, except such areas as are designated as skating fields and provided that a safety signal is displayed.

J. Sleep or protractedly lounge on the seats or benches or other areas or engage in loud, boisterous, threatening, abusive, insulting or indecent language or engage in any disorderly conduct or behavior tending to a breach of the public peace.

K. Fail to produce and exhibit any permit from the Director he claims to have upon request of any authorized person who shall desire to inspect the same for the purpose of enforcing compliance with any ordinance or rule.

L. Disturb or interfere unreasonably with any person or party occupying any area or participating in any activity under the authority of a permit.

§ 239-14. Merchandising, advertising and signs.

No person in a park shall:

A. Expose or offer for sale any article or thing nor shall he station or place any stand, cart or vehicle for the transportation, sale or display of any such article or thing. Exception is here made as to any regularly licensed concessionaire acting by and under the authority and regulation of the Division of Recreation.

B. Announce, advertise or call the public attention in any way to any article or service for sale or hire.

C. Paste, glue, tack or otherwise post any sign, placard, advertisement or inscription whatever, nor shall any person erect or cause to be erected any sign whatever on any public lands or highways or roads adjacent to a park.

§ 239-15. Hours of operation; permits; farmers' markets. [Amended 4-28-1999 by Ord. No. 99-056]

A. Except for unusual and unforeseen emergencies, parks shall be open to the public every day of the year between the hours of 6:00 a.m. and 10:00 p.m. daily. (J. Owen Grundy Park, however, is exempt from the 10:00 p.m. closing time.) The opening and closing hours for each individual park shall be posted therein for public information.

B. Any section or part of any park may be declared closed to the public by the Director at any time and for any interval of time, either temporarily or at regular and stated intervals (daily or otherwise) and either entirely or merely to certain uses as the Director shall find reasonably necessary.

C. All activity is prohibited in the parks between the hours of 10:00 p.m. and 6:00 a.m., except in the case of an exemption or special activity sponsored or approved by the City Council.

D. The finding of lost articles by park employees shall be reported to the person in charge of the park, who shall make every reasonable effort to locate the owners. The employees shall make every reasonable effort to find articles reported as lost.

E. A permit shall be obtained from the Director before participating in any park activity.

F. A person seeking issuance of a permit hereunder shall file an application with the Director or his or her designee. The application shall state:

(1) The name and address of the applicant.

(2) The name and address of the person, persons, corporation or association sponsoring the activity, if any.

(3) The day and hours for which the permit is desired.

(4) The park or portion thereof for which such permit is desired.

(5) An estimate of the anticipated attendance.

(6) Any other information which the Director shall find reasonably necessary to a fair determination as to whether a permit should issue hereunder.

G. The Director or his or her designee shall issue a permit hereunder where he finds: **[Amended 3-11-2015 by Ord. No. 15-026]**

(1) That the proposed activity or use of the park will not unreasonably interfere with or detract from the general public enjoyment of the park.

(2) That the proposed activity and use will not unreasonably interfere with or detract from the promotion of public health, welfare, safety and recreation.

(3) That the proposed activity or use is not reasonably anticipated to incite violence, crime or disorderly conduct.

(4) That the proposed activity will not entail unusual, extraordinary or burdensome expense or police operation by the city.

(5) That the facilities desired have not been reserved for other use at the day and hour required in the application.

(6) In the case of farmers' markets, a non-profit corporation seeking a permit for same shall, in addition to all other applicable requirements and restrictions in this chapter and Code, obtain any and all applicable prior approvals from state or local government, including but not limited to any food establishment licenses required pursuant to Section 175-16 et seq. of this Code.

H. Within five days after receipt of an application, the Director shall apprise an applicant in writing of his or her reasons for refusing a permit, and any aggrieved person shall have the right to appeal in writing within 10 days to the Director, who shall consider the application under the standards set forth in Subsection B hereof and sustain or overrule the decision with 10 days, but no later than two days before the date sought for the permit. The decision of the Director shall be final.

I. A permittee shall be bound by all park rules and regulations and all applicable ordinances fully as though the same were inserted in the permit.

J. The person or persons to whom a permit is issued shall be liable for any loss, damage or injury sustained by any person whatever by reason of the negligence of the person or persons to whom such permit shall have been issued.

K. A permit may be revoked upon a finding of violation of any rule or ordinance or upon good cause shown.

§ 239-16. Enforcement. [Amended 9-23-2020 by Ord. No. 20-074]

A. The Department of Public Works and the Department of Public Safety shall, in connection with their duties imposed by law, diligently enforce the provisions of this chapter.

B. The Department of Public Works and the Department of Public Safety shall, in connection with their duties imposed by law, have the authority to eject from the park any person acting in violation of this chapter.

§ 239-17. Skateboarding facilities. [Added 3-25-2015 by Ord. No. 15-028]

A. Hours of Operation. The hours of operation for a skate park are from 6:00 a.m. until 10:00 p.m. The skate park will be closed during wet, snow or icy conditions or during park maintenance periods. The City reserves the right to close the skate park if it determines that any other condition renders the skate park unsafe for use.

B. Signage. Signs that display the rules and regulations for usage of the skate park shall be conspicuously posted throughout the skate park. At a minimum, all signs shall inform the public that safety equipment, including helmets, elbow and knee pads, appropriate footwear and wrist guards must be used in the skate park.

C. Rules.

1. Participants twelve (12) and under must have an adult present. Know your ability and skate accordingly.

2. All persons entering the skate park are deemed to have knowledge that the skate park is a non-supervised activity site designed for skateboarding only, and that all use of the skate park is at the risk of the user.

3. All persons entering the skate park are deemed to have agreed to indemnify, defend and save harmless the City, its officers, employees, agents and volunteers for, from and against any accident, injury, including death, and/or loss of property or damage thereto sustained as a result of using the skate park.

4. Helmets, kneepads, elbow pads, appropriate footwear and wrist guards are required for skaters within the park. Helmets must have an annual registration sticker issued by the Recreation Department. Each user of the skate park shall have personal identification that includes name, address, and telephone number in his/her possession at all times during use of the skate park.

5. All bicycles, scooters, roller skates, inline skates, motorized vehicles of any kind, and skateboards with wheelbases longer than twenty (20) inches are prohibited.

6. Personal ramps, rails, boxes, other apparatus or modifications to the skate surface are prohibited.

7. No food or beverages are allowed inside the skate park. Spectators and pets are prohibited in the skate park area.

8. All users of the skate park are to act in an orderly, safe and considerate manner while on the premises and in the skating area. Everyone is to wait his or her turn. Reckless or dangerous skaters will be requested to leave the skating area and the premises immediately. Smoking, use of drugs, alcohol or vandalism is strictly prohibited and shall result in automatic and/or permanent expulsion from this facility.

9. Use of radios, stereos or any type of amplified sound must be in accordance with the City noise ordinance and must remain outside of the skate park. Head phones are prohibited.

10. Violation of these rules may result in expulsion from this facility and revocation of any privileges for its use.

11. The Department of Public Safety, Division of Police, shall have the authority and responsibility for enforcing the rules and regulations governing the use of the skate park.

§ 239-18. Inventory of Recreation and Open Space (ROSI). [Added 3-26-2008 by Ord. No. 08-030; amended 6-17-2009 by Ord. No. 09-046; 3-25-2015 by Ord. No. 15-028]

A. Purpose. The purpose of the section is to codify the Inventory of Recreation and Open Space which should also insure that there is formal public notice of all additions to the State Mandated Recreation and Open Space Inventory.

B. Pursuant to N.J.S.A. 13:8A-35 et seq., the State of New Jersey requires the City to maintain an inventory, including a map, of all land held by it for recreation and conservation purposes. The City's Recreation and Open Space Inventory cannot be amended or modified in any way except by the adoption of an ordinance.

C. The Inventory is as follows: **[Amended 10-09-2013 by Ord. No. 13-108]**

	Municipal Location	**Name**	**Former Block**	**New Block**	**Former Lot**	**New Lot**	**Acres**
#1	York St. & Exchange Pl.	York St. Park	8	11605	Portion	2	0.5
#2	Hudson River	J. Owen Grundy Park (aka Exchange Pl. Park)	8	11605	6 portion	2	0.39
#3	226 Washington St.	Paulus Hook Park	68	14304	1	1	0.92
#4	236 Washington St.		69	14303	50	4	
#5	93-99 Grand St.		100	14305	D	8	
#6	92-98 Grand St.		101	14306	M	12	
#7	280 Grove St.	City Hall Park	201	12904	CH portion	1	0.48
#8	Ill Newark Ave.	Fitzgerald Holola Park (aka Grove St. Park)	204	13004	1	1	0.14
#9	17 Laurel Ct.		208	11501	65	9	0.05
#10	450 Manila Ave.	(aka Philippine Plaza)	213	11601	A	1	1.84
#11	268 Erie St.	Sixteenth St. Park	258	7102	19	1	0.46
#12	270 Erie St.		258	7102	20	1	
#13	272 Erie St.		258	7102	21	1	
#14	274 Erie St.		258	7102	22	1	
#15	276 Erie St.		258	7102	23	1	
#16	278 Erie St.		258	7102	24	1	
#17	215 16th St.		258	7102	25	1	
#18	213 16th St.		258	7102	26	1	
#19	257-287 Montgomery St.	Van Vorst Park	270.5	12805	5	1	1.84
#20	84 Wayne St.	Angel Ramos Park (formerly Wayne St. Park)	273	12705	22	17	0.23
#21	86 Wayne St.		273	12705	23	18	
#22	88 Wayne St.		273	12705	24	19	
#23	90 Wayne St.		273	12705	25	20	
#24	25 W. Hamilton Pl.	Hamilton Park	283.1	10003	PK	1	5.57
#25	366 Grand St.	Alexander F. Santora Path (formerly Meluso Park)	303	13905	A.1	1	0.15
#26	364 Grand St.		303	13905	A.2	1	
#27	362 Grand St.		303	13905	A.3	1	
#28	360 Grand St.		303	13905	A.4	1	
#29	174 Brunswick Street		389	9905	19	8	0.0565
#30	176 Brunswick Street		389	9905	20	9	0.0459
#31	388 1st St.	First St. Park	410	11006	25	26	0.12
#32	386 1st St.		410	11006	26	25	
#33	384 1st St.		410	11006	27	24	
#34	237 Brunswick St.	Roberto Clemente Sports Complex	418	8504	A.PL	11	6.43
#35	8th St.	(aka Enos Jones Park)	418	8504	PL.F	11	
#36	376 8th St.	(includes Oakley Oval)	418	8504	9	11	
#37	378-380 8th St.	(includes Ed Franco Field)	418	8504	10	11	

	Municipal Location	Name	Former Block	New Block	Former Lot	New Lot	Acres
#38	381 8th St.	(includes John DeSalvo Plgnd.)	418	8504	12.A	11	
#39	Newark & Merseles	Mary Benson Park Complex	439	10901	A	119	2.95
#40	Merseles & 3rd St.		439	10901	PT3	132	
#41	96 Palisade Ave.	Sgt. Anthony Park	551	6901	17	11	0.58
#42	90 Palisade Ave.		551	6901	18	10	
#43	109-115 Ogden Ave.	Janet Moore Park (formerly Cuneo Pl. Park)	722.B	5202	3.99	29	0.3
#44	105-107 Ogden Ave.		722.B	5202	7.A	28	
#45	285 Ogden Ave.	Riverview-Fisk Park	768	3002	54	2	0.0342
#46	Riverview Park		768	3002	VAR	1	5.53
#47	Riverview Park		769	3003	VAR	1	
#48	201 Central Ave.	Pershing Field	835	4802	N	2	13.45
#49	Hillside Rd.	Edward Crincoli, R.A., Park (formerly Terrace Ave. Park)	922	2002	19	13	0.45
#50	Terrace Ave.		922	2002	19	13	
#51	Hillside Rd.		922	2002	19	13	
#52	Terrace Ave.		922	2002	19	13	
#53	Terrace Ave.		922	2002	19	13	
#54	Hillside Rd.		922	2002	19	13	
#55	Terrace Ave.		922	2002	19	13	
#56	Terrace Ave.		922	2002	19	13	
#57	Terrace Ave.		922	2002	19	13	
#58	Terrace Ave.		922	2002	19	13	
#59	Hillside Rd.		922	2002	19	13	
#60	Terrace Ave.		922	2002	19	13	
#61	3305-65 Kennedy Blvd.	Leonard Gordon Park	935	3501	30	14	5.81
#62	30 Sycamore Rd.	Thomas McGovern Park (formerly County Village Park, includes College LL Field)	1253.7	29003	A.1	1	2.5
#63	259-265 Linden Ave.	Woodland Ave. Park	1267	28003	105	1	0.17
#64	179 West Side Ave.	Metro Field (includes C. Fricchione playground)	1275.1	21902	1	11	2.33
#65	103-129 Bergen Avenue	Audubon Park (aka Maj. John Desmond Park)	1283.5	2390	4	1	3.43
#66	Broadman Pkwy.	Lt. R.B. Grover Memorial Park	1300. A	22201	84.B	16	0.39
#67	Broadman Pkwy.		1300.B	22302	10.D	29	
#68	146 Wilkinson Ave.	Dr. Edith Bland Phillips Park (formerly Wilkinson Ave. Park)	1304	23501	A.6	76	0.3
#69	152 Wilkinson Ave.		1305	23501	D.7	78	
#70	150 Wilkinson Ave.		1305	23501	D.8	77	
#71	125 ML King Dr.	Fulton Ave. Park	1337	24903	6.B	16	0.29
#72	90 Van Nostrand Ave.	Muhammad Ali Path	1342	25801	15.DUP	38	0.5
#73	92 Van Nostrand Ave.		1342	25801	16. A	39	
#74	102 Van Nostrand Ave.		1342	25801	21.DUP	44	
#75	104-106 Van Nostrand Ave.		1342	25801	22.A	1	
#76	108 Van Nostrand Ave.		1342	25701	24.A	22	
#77	110 Van Nostrand Ave.		1342	25701	25	23	
#78	93 Armstrong Ave.		1342	25801	43	8	
#79	91 Armstrong Ave.		1342	25801	44	9	
#80	66 ML King Dr.	Vernater Watson Park (formerly Stevens Ave. Park) '	1346	26402	29.B	36	0.24
#81	64 ML King Dr.		1346	26402	3LB	35	
#82	62 ML King Dr.		1346	26402	32.B	34	
#83	13 Ludlow St.	Ralph Taylor Memorial Park	1360.75	28201	A.1	10	0.26
#84	9 Ludlow St.		1360.75	28201	A.3	12	
#85	7 Ludlow St.		1360.75	28201	A.4	13	
#86	5 Ludlow St.		1360.75	28201	A.5	14	
#87	3 Ludlow St.		1360.75	28201	A.6	15	
#88	1 Ludlow St.		1360.75	28201	A.7	16	

	Municipal Location	Name	Former Block	New Block	Former Lot	New Lot	Acres
#89	250 Old Bergen Rd.	Ferris Triangle Park	1366.1	28205	62.B	1	0.23
#90	1628-38 Kennedy Blvd.	Columbia Park (aka Greenville Memorial Park)	1374	29202	WB	1	4.72
#91	31 Old Bergen Rd.	Martiniak-Enright Park (aka Pamrapo Ave. Park)	1379	29801	2E3.99	47	
#92	480 Garfield Ave.	Bay side Park	1466	26001	8	1	9.23
#93	Ft. of Richard St.		1466	26001	8	1	
#94	16 Wilkinson Ave.	Skinner Memorial Park	1485	23703	3.99	1	0.14
#95	Chapel Ave. & Caven Pl. Rd.	Caven Point Complex	1500	27401	16	27	17.81
	Property of the Jersey City Board of Education. Leased, managed and maintained by the City of Jersey City.						
#96	2565 Kennedy Blvd.	Boyd McGuiness Park	1825.1	16302	C.l	40	0.22
#97	88a DeKalb Ave.	La Pointe Park	1839	13201	37.C	17	0.28
#98	53-55 Stuyvesant Ave.		1839	13201	38	6	
#99	90-92 DeKalb Ave.		1839	13201	39	17	
#100	57 Stuyvesant Ave.		1839	13201	40.A	5	
#101	94 DeKalb Ave.		1839	13201	4LA	17	
#102	1020 West Side Ave.	Pavonia Marion Park (includes Pavonia Pool) (includes Martucci LL Field) (includes Marion Plygrd.) (includes Gus DiSanto Ct.)	1852	10501	59	1	3.4
#103	901 Pavonia Ave.		1852	10501	59	1	
#104	903 Pavonia Ave.		1852	10501	59	1	
#105	901 Pavonia Ave.		1852	10501	59	1	
#106	899 Pavonia Ave.		1852	10501	59	1	
#107	Corbin Ave.		1852	10501	59	1	
#108	Corbin Ave.		1852	10501	59	1	
#109	Corbin Ave.		1852	10501	59	1	
#110	Corbin Ave.		1852	10501	59	1	
#111	Corbin Ave.		1852	10501	59	1	
#112	West Side Ave.		1852	10501	59	1	
#113	West Side Ave.		1852	10501	59	1	
#114	West Side Ave.		1852	10501	59	1	
#115	West Side Ave.		1852	10501	59	1	
#116	West Side Ave.		1852	10501	59	1	
#117	1040 West Side Ave.		1853	9306	41	3	
#118	West Side & Corbin Ave.		1853	9306	41	3	
#119	848 Pavonia Ave.	Brett Triangle	1856.1	9302	1	1	0.02
#120	298 Academy St.	Apple Tree House	1871	12106	34	11	0.48
#121	8-9 Foye Pl.	McGinley Square Park	1896	14902	29	3	0.3
#122	722 Montgomery St.		1896.5	14903	A	1	
#123	531 Conununipaw Ave.	Harmon St. Pool	1941	18702	17	9	0.52
#124	1025-1031 Garfield Ave.	Terry DeHere Park (aka Garfield Ave, Park)	1947	19703	G27	41	0.4
#125	785 Grand Street	Arlington Park	1949	18802	P	1	3,52
#126	38 Madison Ave.	38 Madison Ave. (formerly Madison Ave. Park)	1950	18801	R	52	0.91
#127	36 Monticello Ave.	Monticello Ave. Park	1951	18604	39	15	0.16
#128	566 Bramhall Ave.	Izetta Hill-McDuffy Park (formerly Bramball Park)	1952	18601	40.A	1	0.07
#129	568 Bramhall Ave.		1952	18601	4LA	1	
#130	514 Jackson Ave.		1952	18601	4LB	1	
#131	285 Arlington Ave.	Arthur Ashe Park (formerly Arlington/Minerva Park)	1969	21303	97.A	19	0.12
#132	Minerva St.		1969	21303	98.A	19	
#133	80 Virginia Ave.	Virginia Ave. Park	1978	21101	48	50	0.23
#134	78 Virginia Ave.		1978	21101	49	49	
#135	76 Virginia Ave.		1978	21101	50	48	
#136	74 Virginia Ave.		1978	21101	51	47	

	Municipal Location	Name	Former Block	New Block	Former Lot	New Lot	Acres
#137	124 Lafayette St.	Rey. Ercel F. Webb Park (aka Lafayette Park)	2066.1	17405	PK	1	4.43
#138	335 Johnston Ave.	Dr. Lena Edwards Park	2074	19002	34	3	0.77
#139	333 Johnston Ave.		2074	19002	34	3	
#140	331 Johnston Ave.		2074	19002	34	3	
#141	329 Johnston Ave.		2074	19002	34	3	
#142	327 Johnston Ave.		2074	19002	34	3	
#143	325 Johnston Ave.		2074	19002	34	3	
#144	285 Pine St.		2074	19002	35	8	
#145	283 Pine St.		2074	19002	35	8	
#146	368 Whiton St.		2074	19002	36	23	
#147	370 Whiton St.		2074	19002	36	23	
#148	372 Whiton St.		2074	19002	36	23	
#149	382 Whiton St.		2074	19002	36	23	
#150	384 Whiton St.		2074	19002	36	23	
#151	386 Whiton St.		2074	19002	36	23	
#152	388 Whiton St.		2074	19002	36	23	
#153	390 Whiton St.		2074	19002	36	23	
#154	Inside Lot Gateway Park Complex		2134	13701	F	4	6.3
#155	Bright St. & Merseles St.	(aka Bright St. Gateway Park)	2134	13701	5-15,17-24, Pl-25	4	
#156	Bright St.	(includes Dick Seay Field)	2134	13701	25.PT, 26-32	4	
#157	40 Merseles Ave.		2134.5	13702	PL.2	1	
#158	24 Merseles Ave.		2137	13702	PL.2	4	
#159	17-31 Merseles Ave.		2138	13701	8	4	
#160	490-504 Grand St.		2139	13703	A3.PL	2	
#161	Lincoln Park	Lincoln Park West	1702.1	16002	1 portion	1	8
Subtotal of Acres Developed							120.76
Wholly Undeveloped Lands Held for Recreation and Conservation Purposes							
#162	24-32 Hudson St.	Veteran Park	2	14502	A	11	0.34
#163	New York Ave.	Tumulty Park	723	5202	21.B	26	0.49
#164	New York Ave.		723	5202	21.C	27	
#165	Hillside Rd.	Terrace Ave.	923	2001	5.B	8	0.09
#166	Hillside Rd.		923	2001	12.B	1	
#167	Hackensack R. & Clendenny	Hackensack River Greenway	1746.5	16001	H2	2	33.88
#168	Hackensack River		1751	16001	12	1	
#169	52 Summit Ave.	Summit Cornelison Park	1916	17102	1	1	0.5
#170	113-116 Central Ave.	Reservoir 3	835	4802	S portion	1	13.13
#171	770-776 Ocean Avenue	Oak Street Park	1970	21302	K.2	43	
#172				21302	L.1	43	
#173				21302	47.5	43	
#174				21302	M.l	42	Survey to be provided
#175	Berry Lane	Berry Lane	2040	18901	A	18	
#176				18901	B.1	18	
#177				18901	C.16	18	
#178				18901	H	18	
#179				18901	G.1	18	
#180				18901	E	18	
#181				18901	J.1	18	
#182				18901	K	18	6.59
Subtotal of Acres Undeveloped							50.89
Total Acres of developed and open space from all pages							175.78

D. Open Space Recreation and Historic Preservation Trust Fund Tax Levy. **[Added 3-22-2017 by Ord. No. 17-026]**

See Ch. 304, Article VIII.

Chapter 242

PEACE AND GOOD ORDER*

ARTICLE I
Trespass on Roofs

§ 242-1. Trespass prohibited.

ARTICLE II
Graffiti

§ 242-2. Placement prohibited; violations and penalties.

§ 242-3. Fee for removal.

§ 242-4. Reward for information leading to apprehension and conviction.

ARTICLE III
Urination in Public

§ 242-5. Prohibition.

ARTICLE IV
Obstruction of Entry

§ 242-6. Unlawful acts.

ARTICLE V
Motor Vehicles

§ 242-7. Violations—Breach of the peace; obstructing pedestrian way; stopping vehicles at an intersection.

§ 242-7.1. Motor vehicles in bicycle lanes.

ARTICLE VI
Roller Skates, In-Line Skates, Skateboards, Bicycles, Electric Scooters, Dirt Bikes and All-Terrain Vehicles

§ 242-8. Helmet use and safety.

§ 242-9. Violations and penalties.

§ 242-9.1. Definitions; bicycle riders subject to traffic regulations; riding bicycles on business district public sidewalks prohibited; riding bicycles on public sidewalks in areas outside of business districts prohibited, except for minors age nine and under; use of bicycle lanes and public bicycle parking racks regulated; and safety of cyclist.

§ 242-9.2. Definitions.

§ 242-9.3. Use restricted.

§ 242-9.4. Electric scooter regulations.

§ 242-9.5. Dispensing fuel requirements and reporting.

§ 242-9.6. Storage facility access and reporting.

§ 242.9.7. Commercial bicycles.

§ 242-9.8. Violations and penalties.

ARTICLE VII
Controlled Dangerous Substances

§ 242-10. Prohibited acts; violations and penalties.

***History**—Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable.

Cross references—Alcoholic beverages, Ch. 84; curfew, Ch. 137; drug-free school zones, Ch. 151; firearms and weapons, Ch. 163; noise, Ch. 222; paging devices, Ch. 230; conduct in parks, Ch. 239; pornography and obscenity, Ch. 251.

ARTICLE VIII
Prohibiting Specified Actions Constituting a Breach of the Peace

§ 242-11. Disturbing the peace.
§ 242-11.1. Outdoor work near residential zones prohibited during certain hours.

ARTICLE IX
Enforcement

§ 242-12. Enforcement.

ARTICLE I
Trespass on Roofs
[Adopted 4-22-1982 by Ord. No. MC-168]

§ 242-1. Trespass prohibited.

No person shall enter or go onto the roof of any building under the jurisdiction and control of the Jersey City Housing Authority, as heretofore established pursuant to law (N.J.S.A. 55:14A-4 et seq.*), for any purpose other than as the direct result of an emergency or when authorized by the Executive Director of the Jersey City Housing Authority or someone acting pursuant to his or her authorization.

ARTICLE II
Graffiti†
[Adopted 11-23-1983 by Ord. No. MC-503; amended in its entirety 9-30-1992 by Ord. No. 92-132]

§ 242-2. Placement prohibited; violations and penalties. [Amended 6-14-1995 by Ord. No. 95-050]

Any person who defaces or places graffiti on any public property or private property of another by any means whatever shall be subject to a minimum fine of $100 and a maximum fine or imprisonment as provided in Chapter 1, General Provisions, § 1-25, and/or up to 90 days of community service.

§ 242-3. Fee for removal.

There shall be a fee of up to $125 for the removal of graffiti from any private property. The Director of Public Works shall determine the amount of such fee in accordance with a fee schedule, which shall be filed in the office of the City Clerk.

§ 242-4. Reward for information leading to apprehension and conviction.‡

Upon the written recommendation of the Public Safety Director, the Mayor may authorize payment of a reward of $500 to any person who provides information or assistance leading to the apprehension and

*__Editor's note__—N.J.S.A. 55:14A-4 through 55:14A-58 were repealed by L. 1992, c. 79, § 59.

†__Cross reference__—Sale of spray paint, Ch. 290.

‡__Cross reference__—Rewards, Ch. 266.

conviction of any person violating § 242-2 above. No reward may be paid to any public employee whose duty it is to investigate or enforce this article. This reward of $500 shall be subject to appropriation of funds.

ARTICLE III

Urination in Public*
[Adopted 9-12-1985 by Ord. No. C-6]

§ 242-5. Prohibition.

Urinating on any street, sidewalk or any other public place in the City of Jersey City is prohibited.

ARTICLE IV

Obstruction of Entry
[Adopted 2-27-1991 by Ord. No. McC-288]

§ 242-6. Unlawful acts.

A. No person may, without any legal privilege to do so, purposely or recklessly obstruct any public passage to any place of business or house of worship or residence. "Obstruct" means render impassable without unreasonable inconvenience or hazard. No person shall be deemed guilty of recklessly obstructing in violation of this article because of a gathering of persons to hear him or her speak or otherwise communicate or solely because of being a member of such a gathering.

B. No person in a gathering may refuse to obey a reasonable official request or order to move to prevent obstruction of public passage to a place of business or house of worship or residence.

C. An order to move, addressed to a person whose speech or other lawful behavior attracts an obstructing audience, shall not be deemed reasonable if the obstruction can be readily remedied by police control of the size or location of the gathering.

ARTICLE V

Motor Vehicles†
[Adopted 9-28-1994 as part of Ord. No. 94-089]

§ 242-7. Violations—Breach of the peace; obstructing pedestrian way; stopping vehicles at an intersection. [Amended 3-12-2014 by Ord. No. 14-206]

No person shall drive, maintain or use a motor vehicle in any manner so as to:

A. Create or cause to be created a breach of peace.

B. Create or cause to be created any disturbance or annoyance to the comfort and repose of any person.

***Cross reference**—Pornography and obscenity, Ch. 251.

†**Editor's note**—For penalty provisions see Chapter 1, General Provisions, § 1-25.

C. Obstruct the free passage of pedestrians or other motor vehicles.

D. Interfere with the safety of pedestrians or other vehicles.

E. Engage in any course of conduct alarming to any reasonable person.

F. Stop a motor vehicle within an intersection or marked crosswalk, if preceding traffic or any traffic light or signal prevents the immediate clearance of the intersection or marked crosswalk.

§ 242-7.1. Motor vehicles in bicycle lanes. [Added 1-10-2024 by Ord. No. 23-126]

A. Whenever a bicycle lane has been established on a roadway any person operating a motor vehicle on such a roadway shall not drive or park in the bicycle lane except for the purposes of performing a parking maneuver where parking is permitted, to enter or leave the roadway, or to maneuver around a parked vehicle impeding traffic flow.

B. In the event that any individual violates the terms of this article, he/she shall be subject to a fine in the Municipal Court of the City of Jersey City in an amount of $175.00.

ARTICLE VI

Roller Skates, In-Line Skates, Skateboards, Bicycles, Electric Scooters, Dirt Bikes and All-Terrain Vehicles

[Adopted 9-27-1995 by Ord. No. 95-081; amended 9-9-1998 by Ord. No. 98-105; 9-11-2019 by Ord. No. 19-108; 9-8-2022 by Ord. No. 22-070]

§ 242-8. Helmet use and safety. [Amended 5-8-2013 by Ord. No. 13-056]

A. No one under eighteen (18) years of age may ride upon in-line skates, bicycles, roller blades, roller skates, skateboards or similar devices without wearing a properly fitted and fastened helmet which meets the standards of the American National Standards Institute (ANSI Z 90.4 bicycle helmet standard), the United States Consumer Product Safety, or the Snell Memorial Foundation's 1984 standard for protective head gear for use in bicycling or a helmet designed for use with the particular device being used.

B. No person operating a bicycle shall allow another person to ride as a passenger on a bicycle unless:

(1) Such passenger is carried in a proper bike seat, trailer or other bicycle accessory that complies with the Snell Memorial Foundation, the Safety Equipment Institute, or the United States Consumer Produce Safety Commission, and contains adequate provision for retaining the passenger in place and for protecting the passenger from moving parts of the bicycle; and such bike seat, trailer or other bicycle accessory is used in accordance with manufacturer's age and weight requirements and limitations; and

(2) Such passenger is wearing a properly fitted and fastened helmet meeting the standards in § 242-8(A).

C. No passenger on a bicycle shall be carried in a pack fastened to the operator.

§ 242-9. Violations and penalties. [Amended 5-8-2013 by Ord. No. 13-056]

A. Anyone who violates a requirement of § 242-8 shall be warned of the violation by the enforcing official. His or her parent or legal guardian may be fined a maximum of fifty dollars ($50.00). There shall be a presumption that the parent or guardian failed to exercise reasonable supervision or control over the person's conduct. A fine may be waived if an offender or his or her parent or legal guardian presents suitable proof that an approved helmet or bike seat has been purchased since the violation occurred.

§ 242-9.1. Definitions; bicycle riders subject to traffic regulations; riding bicycles on business district public sidewalks prohibited; riding bicycles on public sidewalks in areas outside of business districts prohibited, except for minors age nine and under; use of bicycle lanes and public bicycle parking racks regulated; and safety of cyclist. [Adopted 9-9-1998 by Ord. No. 98-105; amended 5-8-2013 by Ord. No. 13-056; 4-13-2016 by Ord. No. 16-057; 9-8-2022 by Ord. No. 22-071]

A. "Bicycle" means a vehicle propelled by human power upon which a person may ride, having two (2) tandem wheels, either of which is twelve (12) inches or more in diameter, and may be any vehicle generally recognized as a bicycle though equipped with two (2) front or rear wheels.

A "commercial bicycle" is a bicycle owned or operated by (1) a business to deliver food or goods or (2) used as part of "bike share service or program."

B. "Business district" means an area that is a designated Special Improvement District or is zoned for retail use.

C. As used herein, "bicycle parking rack" means a stationary fixture to which a bicycle can be securely attached to prevent theft. It does not include a bicycle docking station.

A "bicycle docking station" means a stationary fixture to which bicycles used as part of a bike share program are attached and made available for use and where these bicycles must be returned at the end of their use.

D. All persons operating bicycles shall have all of the rights and shall obey all applicable laws of the State of New Jersey and ordinances of this city, particularly those regulating traffic. Bicycle riders shall obey the same rules as the drivers of motor vehicles unless inapplicable.

(1) Any person operating a bicycle within a roadway shall obey the instructions of the official traffic control signs, and other control devices applicable to vehicles unless otherwise directed by a police officer.

(2) No person shall ride or operate a bicycle within a roadway in any direction except that permitted of vehicular traffic traveling on the same side of the roadway, or that permitted in a bike lane.

(3) Any person operating a bicycle within a roadway or bike lane shall stop for pedestrians in crosswalks.

E. Every person riding a bicycle within a roadway shall ride as near to the right roadside as practicable exercising due care when passing a standing vehicle or one proceeding in the same direction. A bicyclist may move left under any of the following conditions:

(1) To make a left turn from a left turn lane or pocket;

(2) To avoid debris, drains, or other hazardous conditions on the right;

(3) To pass a slower moving vehicle;

(4) To occupy any available lane when traveling at the same speed as other traffic;

(5) To travel no more than two abreast when traffic is not impeded, but otherwise ride in single file.

F. It shall be unlawful for any person to operate or ride a bicycle in any of the following places:

(1) On any public property where signs are posted by the Traffic Engineer prohibiting such use;

(2) On private property where a sign prohibiting bicycle riding has been posted by the owner, lessee or person in charge of such property;

(3) On sidewalks in business districts;

(4) On sidewalks outside of business district areas, except for minors age nine and under;

(5) On pedestrian malls or pedestrian plazas as defined in § 67-1.

G. Use of bicycle lanes. Whenever a bicycle lane has been established on a roadway, any person operating a bicycle upon the roadway at a speed less than the normal speed of traffic moving in the same direction shall ride within the bicycle lane, except that such person may move out of the lane under any of the following situations:

(1) Whenever overtaking or passing another bicycle, vehicle or pedestrian, within, the lane or about to enter the lane if such overtaking and passing cannot be done safely within the lane.

(2) When preparing for a turn at an intersection or into a private road or driveway.

(3) When reasonably necessary to leave the bicycle lane to avoid debris or other hazardous conditions.

H. No person operating a bicycle shall leave a bicycle lane until the movement can be made with reasonable safety and then only after giving an appropriate signal.

I. In addition to bicyclists, the following are permitted to use bicycle lanes:

(1) Individuals using roller blades, scooters, and skateboards; and

(2) Individuals using motorized wheelchairs with an orange safety flag at least five (5) feet above the street level; and

(3) Bicyclists with attached trailers for children with an orange safety flag attached to the rear of the portage vehicle at least five (5) feet above the street level.

J. Equipment. It shall be unlawful for the driver of the bicycle to wear more than one earphone attached to an audio device while operating a bicycle.

K. Carry Articles. No person operating a bicycle shall carry any package device, or article which prevents the rider from keeping both hands upon the handles bars.

L. Clinging to moving motor vehicles is prohibited.

M. Lamps and equipment on bicycles.

(1) Bicycles in use when dark shall be equipped with a lamp on the front which shall omit a white light visible from a distance of at least 500 feet to the front and with a red reflector on the rear of a type which shall be visible from 50 feet to 300 feet to the rear. A lamp omitting a red light visible from distance of 500 feet to the rear may be used in addition to the red reflector.

(2) Bicycles shall be equipped with a brake which will enable the operator to make the braked wheel skid on dry, level, clean pavement.

(3) Bicycles shall be equipped with a bell to serve as audible signal to vehicles, pedestrians, and other bicyclists.

N. No commercial bicycle shall be permitted to use any publicly-owned bicycle parking rack for a period of more than two consecutive hours. Any owner of a commercial bicycle found to be in violation of this section shall be subject to a minimum fine of $100.00 with a recommended fine of $1,000.00.

§ 242-9.2. Definitions. [Added 9-11-2019 by Ord. No. 19-108; amended 9-8-2022 by Ord. No. 22-070; 9-8-2022 by Ord. No. 22-071]

As used in this Article, the following terms shall have the meanings indicated:

ALL-TERRAIN VEHICLE or ATV means a motor vehicle, designed and manufactured for off-road use only, of a type possessing between three and six non-highway tires, which vehicles, by their nature and design, are not intended to be used and operated along paved roads and highways but are intended, rather, to be operated off-road, in or upon dirt, sand, mud or similar conditions and to traverse hills, trails and similar type areas, but shall not include golf carts or an all-terrain vehicle operated by an employee or agent of the State, a county, a municipality, or a fire district, or a member of an emergency service organization or an emergency medical technician which is used while in the performance of the employee's, agent's, member's or technician's official duties. **[Amended 4-26-2023 by Ord. No. 23-031]**

CITY: the City of Jersey City.

DIRT BIKE: any two-wheeled motorcycle that is designed and manufactured for off-road use only and that does not comply with Federal Motor Vehicle Safety Standards or United States Environmental Protection Agency on-road emissions standards.

ELECTRIC SCOOTER (E-SCOOTER): a scooter with a floorboard that can be stood upon by the operator, with handlebars, and an electric motor that is capable of propelling the device with or without human propulsion.

ELECTRIC SCOOTER DOCKING STATION: a stationary fixture to which electric scooters used as part of an electric scooter share program or service are attached and made available for use and where these electric scooters can be returned at the end of their use.

ELECTRIC SCOOTER SHARED RENTAL SYSTEM: a network of scooters and docking stations (physical or digitally defined) whereby users may rent publicly available scooters from automation stations around the City, ride them, and return them to any other automated station within the service area.

FURNITURE ZONE: the section of the sidewalk between the curb and a pedestrian through zone in which street furniture and amenities, such as lighting, benches, newspaper kiosks, utility poles, tree pits, and bicycle parking are provided, according to the Urban Design Guide of the National Association of City Transportations Officials.

PRIVATE ELECTRIC SCOOTER: Any electric scooter owned and operated by a private individual.

ROLLER SKATES: a pair of devices worn on the feet with sets of wheels attached, regardless of the number or placement of those wheels, and used to slide or propel the user over ground.

SCOOTER: a platform low to the ground and mounted on wheels, regardless of the number or placement of those wheels, with a steering column attached to the front axle, and used to slide or propel the user across the ground. The scooter may or may not have a seat.

SHARED ELECTRIC SCOOTER: Any electric scooter owned by a company permitted to offer publicly accessible electric scooters through a pay-per-ride or subscription program.

SHARED USE PATH: any paved pathway in the public right-of-way that supports multiple recreation and transportation opportunities, such as walking, bicycling, and inline skating, excluding trails and walkways located in City parks.

SKATEBOARD: a platform low to the ground and mounted on wheels, regardless of the number or placement of those wheels, and used to slide or propel the user over the ground.

SNOWMOBILE: any motor vehicle, designed primarily to travel over ice or snow, of a type which uses sled type runners, skis, an endless belt tread, cleats, or any combination of these or other similar means of contact with the surface upon which it is operated, but does not include any farm tractor, highway or other construction equipment, or any military vehicle. **[Added 4-26-2023 by Ord. No. 23-031]**

STORAGE FACILITY: real property designed and used for the purpose of renting or leasing individual storage space to individuals or entities who are to have access to the space for the purpose of storing personal property. **[Added 4-26-2023 by Ord. No. 23-031]**

§ 242-9.3. Use restricted. [Amended 8-13-2003 by Ord. No. 03-102; 9-24-2003 by Ord. No. 03-131; 9-11-2019 by Ord. No. 19-108; 9-8-2022 by Ord. No. 22-070; 9-8-2022 by Ord. No. 22-071]

A. No person may ride or use a skateboard or scooter, except as provided herein, on the streets and sidewalks of all commercially zoned districts within the City.

B. No person less than 18 years of age may ride or use a motorized scooter, motorized skateboard, or motorized roller skates on any roadway, sidewalk or public property within the City of Jersey City. The motor need not be engaged in order for a person to be in violation thereof.

C. No person shall operate a dirt bike, all-terrain vehicle, or snowmobile as defined in N.J.S.A. 39:3C-1, on public streets, highways, or rights-of-way in violation of N.J.S.A. 39:3C-17. Any all-terrain vehicle, dirt bike, or snowmobile operated on a public street, highway, or right-of-way in such a manner is declared contraband subject to forfeiture in accordance with the provisions of N.J.S.A. 2C:64-1 et seq. **[Amended 4-26-2023 by Ord. No. 23-031]**

D. In addition, any unregistered or uninsured dirt bike, all-terrain vehicle, or snowmobile as defined in N.J.S.A. 39:3C-1 abandoned, stored, parked on a public street, sidewalk or in an alley shall be subject to impoundment in accordance with the provisions of N.J.S.A. 2C:64-6 or may be destroyed. **[Amended 4-26-2023 by Ord. No. 23-031]**

E. No person over the age of ten may ride or use a skateboard, scooter, or roller skates on a pedestrian plaza or pedestrian mall as defined in § 67-1.

§ 242-9.4. Electric scooters; regulations.

A. Use on Roadways, Bike Lanes, Sidewalk Prohibited.

(1) Electric scooters may be operated in roadways, bike lanes, and shared use paths (excluding trails and walkways within City parks) through the City, unless otherwise prohibited.

(2) Electric scooters may not be operated, including the starting and stopping of an electric scooter trip, on the sidewalk, in City parks, or any space exclusively for pedestrian use (including, but not limited to, pedestrian malls);

(3) Any individual traveling on the sidewalk with an electric scooter must dismount the electric scooter before entering the sidewalk and must walk the electric scooter along the sidewalk.

B. Age Restriction.

(1) No persons under the age of 18 may use or operate an electric scooter.

C. Manner of Riding Electric Scooter.

(1) Any person operating an electric scooter must have hands on the electric scooter handlebars at all times when operating the electric scooter. No rider shall physically hold any object that occupies the user's hands while operating the electric scooter.

(2) Any person operating an electric scooter must have feet placed firmly on the platform of the electric scooter at all times while operating the electric scooter.

(3) There shall be no more than one individual on an electric scooter at a time.

(4) No individual may operate or use an electric scooter while intoxicated.

D. Speed Restriction.

(1) The speed of all electric scooters shall be limited to 15 miles per hour; however, the speed of any electric scooter shall be limited to eight miles per hour in high pedestrian areas, as defined by the City.

E. Time.

(1) Electric scooters shall not be operated between the hours of 11:00 p.m. to 6:00 a.m.

F. Application of Traffic Laws and Controls.

(1) Any person operating an electric scooter must yield to pedestrians in all cases including along shared use paths and crosswalks.

(2) Any person operating an electric scooter must yield to bicycles in bicycle lanes and other shared use paths.

(3) Any person operating an electric scooter shall operate all electric scooters in a manner consistent with all applicate state and local laws, including but not limited to traffic laws.

(4) Any person operating an electric scooter must obey official traffic control signs and other control devices applicable to vehicles, unless otherwise.

(5) Any person operating an electric scooter must ride or operate the electric scooter in the direction permitted of vehicular traffic traveling on the same side of the roadway.

(6) Any person operating an electric scooter upon a roadway shall ride as near to the right-hand side of the roadway as practicable.

G. Parking.

(1) Electric scooters must be parked, in an upright position, in the following locations:

(a) Docketing stations;

(b) Specially marked corrals;

(c) Furniture zones of sidewalks (on-street when furniture zone is less than three feet);

(d) Adjacent to bicycle racks;

(e) Any other designated electric scooter parking areas if available and advertised as such by either signage, pavement markings, or racks.

(2) All electric scooters shall be parked in such a manner as to afford the least obstruction of pedestrian traffic.

(3) Electric scooters shall not be parked in the following location or manner:

(a) Commercial loading areas;

(b) Handicap parking areas;

(c) Transit zones;

(d) Curb ramps;

(e) Driveways and other entryways;

(f) Within ten feet of fire hydrants;

(g) On vegetation;

(h) Anywhere where the electric scooter obstructs:

1. Bus stops;

2. Pedestrian or wheelchair access to private or public buildings and establishments, and street features that require pedestrian access including but not limited to benches, parking pay stations, and crosswalk buttons;

3. Accessibility and safety features including wheelchair ramps, ramp landings, handrails, areas of refuge and detectable warning strips.

H. Electric Scooter Shared Rental System.

(1) It shall be unlawful to operate or deploy an Electric Scooter Shared Rental System on any property belonging to the City or any public right-of way without first obtaining approval from the City.

I. Shared Electric Scooter Rental Restriction.

(1) The individual riding or operating the shard electric scooter shall be the same individual who made the rental reservation. No person shall rent a shared electric scooter for another user.

Editor's note—Ord. No. 19-108, adopted September 11, 2019, amended the Code by repealing former § 242-9.4, and adding a new § 242-9.4. Former § 242-9.4 pertained to definitions (which can now be found in section 242-9.2), and derived from Ord. No. 03-102, adopted August 13, 2003.

§ 242-9.5. Dispensing fuel requirements and reporting.

A. No gas station owner/employee operating in the City, dispensing gas from gas pumps located on said property to the general public, shall dispense gasoline directly into an all-terrain vehicle, dirt bike, or snowmobile unless said vehicle was transported to the gas station on a properly registered vehicle, trailer, truck, or other lawful means of conveyance.

B. It is not a violation of this section if the gas station employee/owner reasonably believes that he or she would suffer physical harm by refusing to dispense or allow to be dispensed gasoline to the all-terrain vehicle, dirt bike, or snowmobile operated in a manner inconsistent with this chapter, so long as the employee/owner immediately reports the activity to the Jersey City Police Department once safe to do so, but in no instance longer than one hour after the illegally operated all-terrain vehicle(s), dirt bike(s), or snowmobile(s) have departed the property. **[Added 4-26-2023 by Ord. No. 23-031]**

§ 242-9.6. Storage facility access and reporting.

A. It shall be unlawful for the owner of a storage facility, or its employee, in the City to knowingly allow a person to deliver or remove an all-terrain vehicle, dirt bike, or snowmobile to or from the storage facility that is not transported on a properly registered vehicle, trailer, truck, or other lawful means of conveyance.

B. It is not a violation of this section if the owner/employee reasonably believes that he or she would suffer physical harm if they did not allow access to the storage facility of the all-terrain vehicle, dirt bike, or snowmobile being operated in a manner inconsistent with this chapter, so long as the owner/employee reports the activity to the Jersey City Police Department within 24 hours of learning about the activity. **[Added 4-26-2023 by Ord. No. 23-031]**

§ 242.9.7. Commercial bicycles. [Added 5-22-2024 by Ord. No. 24-037]

A. The Department of Infrastructure shall develop a safety course directed at people that use bicycles, electric bicycles, or stand-up electric scooters for commercial purposes from businesses located in the City ("commercial bicycle operators"). The course shall be made available in multiple languages spoken in the city.

B. A business, including but not limited to a Food Service Establishment or Third-Party Food Delivery Service as defined in Chapter 175, that employs or contracts with a person who uses a commercial bicycle or scooter, electric bicycle, or electric scooter for commercial purposes must:

1. Make available at its own expense a retro-reflective jacket, vest, or other upper-body apparel to a commercial bicycle operator who has completed at least ten deliveries facilitated by such Food Service Establishment or Third-Party Food Delivery Service within Jersey City, or at least ten trips for any other business,

2. Provide the safety course to each commercial bicycle operator in accordance with the following requirements.

   i. For a business that is not a Third-Party Food Delivery Service, the business shall provide the course to each commercial bicycle operator that makes at least five trips to or from destinations in the City of Jersey in a calendar quarter.

   ii. For a Third-Party Food Delivery Service, the Service shall provide the course to each commercial bicycle operator who designates a bicycle, electric bicycle, or stand-up electric

scooter as their mode of transportation, and completes at least five deliveries for pick-up or drop-off in the City of Jersey with that mode of transportation designated in a calendar quarter.

iii. The safety course must be provided within ten days of a business, including a Food Service Establishment or a Third-Party Food Delivery Service, being required to provide it to a commercial bicycle operator.

iv. No business, including but not limited to a Food Service Establishment or Third-Party Food Delivery Service, shall be required to provide the safety course based on the activities of a commercial bicycle operator prior to the effective date of this ordinance, or the date the safety course is made available by the Department of Public Safety, whichever is later.

3. Once the commercial bicycle operator completes the safety course they shall receive a certificate of completion, which shall include a unique confirmation number.

4. Once the commercial bicycle operator completes the safety course, the certificate of completion shall be able to be displayed either digitally or physically, and shall include the following information:

i. The commercial bicycle operator's name; and

ii. The unique confirmation number demonstrating completion of the safety course, and

iii. The name and address of the issuing business;

5. Companies shall maintain an up-to-date roster of commercial bicycle operators that have completed the safety course, including the operator's name, date of hire or sign-up, date of discharge if applicable, and unique confirmation number illustrating completion of the safety course. A business may remove a commercial bicycle operator from its roster consistent with its privacy or data retention policies, or to comply with other laws or regulations.

6. Companies shall require commercial bike operators who are certified to annually verify that they have necessary safety equipment, including:

i. A bicycle helmet in good condition;

ii. A lamp or other similarly suitable light;

iii. A bell or other device capable of giving an audible signal from a distance of at least 100 feet, provided however that a siren or whistle shall not be used;

iv. Working brakes;

v. Reflective tires or, alternately, a reflex reflector mounted on the spokes of each wheel.

C. A commercial bicycle operator shall:

1. Complete the safety course within 30 days of being provided the training by a business;

2. Carry or have digital access to the certificate of completion while making deliveries or otherwise operating a bicycle in connection with services provided to the issuing business; and

3. Wear a retro-reflective or high-visibility jacket, vest, or other upper-body apparel as the outermost garment when operating a bicycle commercially including prior to the completion of the course.

D. A commercial bicycle operator shall be required to produce the certificate of completion required by this Chapter upon the demand of an authorized employee of the Jersey City Police Department, or other person authorized by law.

E. Each violation of subsection C of this section shall be a separate offense which may be issued to the operator of the commercial bicycle or scooter, electric bicycle, or electric scooter.

F. Any business, including but not limited to a Food Service Establishment or Third-Party Food Delivery Service, violating Subsection B of this shall be subject to a minimum fine of $50.00 and a maximum fine as provided in Chapter 1, General Provisions, § 1-25, and shall be subject to the disciplinary proceedings provided pursuant to Chapter § 175-5.

§ 242-9.8. Violations and penalties. [Amended 8-13-2003 by Ord. No. 03-102; 5-8-2013 by Ord. No. 13-056; 9-8-2022 by Ord. No. 22-070; 4-26-2023 by Ord. No. 23-031; 5-22-2024 by Ord. No. 24-037]

A. Any person, except a minor, who violates this article shall be subject to a minimum fine of $50.00 and a maximum fine as provided in Chapter 1, General Provisions, § 1-25. A violation of section 242-9.7. Subsection B.2, through B.6 or section 242-9.7 subsection C.1 or C.2 shall be dismissed, and there shall be no fine, if an individual subsequently provides proof of certification.

B. Any minor who violates any provision of § 242-9.1 and § 242-9.3 shall, upon a first offense, receive a written warning addressed to the minor's parents or guardian. The minor and the parent may also be advised that a second violation will make them liable for a $50.00 fine or community service as provided in Chapter 1, General Provisions, § 1-25, and that a third or subsequent offense will make them liable to a minimum fine of $100.00 and a maximum fine as provided in Chapter 1, General Provisions, § 1-25.

C. In addition to subsection A of this section, any member of the Department of Public Safety who witnesses a violation of this subsection, except for section § 242.9.7, shall confiscate the motorized scooter, motorized skateboard, or motorized roller skates which shall remain in police custody until such time as the matter is adjudicated in the Municipal Court and the violator pays any fine that is ordered. Should the defendant be found guilty of the alleged violation, the vehicle will be forfeited as provided in N.J.S.A. 39:4-14.13.

D. A police officer shall only issue a fine for a violation of any provision of § 242-9.1 and § 242-9.3 by a person less than 14 years of age to the parent or guardian of such person if the violation by such person occurs in the presence of such person's parent or guardian. Such citations for violations shall only be issued to such parent or guardian.

E. In the case of an all-terrain vehicle, dirt bike, or snowmobile, operated on public streets in violation of N.J.S.A. 39:3C-17, the all-terrain vehicle, dirt bike, or snowmobile, may be impounded and subject to fees pursuant to N.J.S.A. 39:3C-35, or shall be disposed of or destroyed in accordance with the provisions of N.J.S.A. 2C:64-6.

F. No dirt bike, all-terrain vehicle, or snowmobile impounded shall be released by the Department of Public Safety to the possession of the owner thereof until such owner has submitted satisfactory proof of identity and ownership including, but not limited to, the appropriate registration and insurance for the dirt bike, all-terrain vehicle, or snowmobile and paying all outstanding fees and costs associated with the impoundment, and reasonable towing and storage costs as provided in N.J.S.A. 39:3C-35.

Editor's note—Ord. No. 23-031, adopted April 26, 2023, amended the Code by renumbering former § 242-9.5 as a new § 242-9.7. Subsequently, Ord. No. 24-037, adopted May 22, 2024, amended the Code by renumbering said section as § 242-9.8.

ARTICLE VII

Controlled Dangerous Substances
[Adopted 2-25-1998 by Ord. No. 98-011]

§ 242-10. Prohibited acts; violations and penalties.

A. It is unlawful for any person, knowingly or purposely, to purchase or obtain, or attempt to purchase or obtain, a controlled dangerous substance or controlled substance analog, as defined in N.J.S.A. 2C:35-2, unless the substance was obtained directly or pursuant to a valid prescription or order form from a practitioner, while acting in the course of his professional practice, or except as otherwise authorized by P.L. 1970, c. 226, N.J.S.A. 24:21-1 et seq.

B. It shall be unlawful for any person to knowingly loiter about or at any place or area open to the public where a controlled dangerous substance or a controlled substance analog, as defined in N.J.S.A. 2C:35-2, is being illegally sold, dispensed, furnished, given away or stored.

C. Subsection B shall not apply to persons inside licensed pharmacies or drug stores or to persons licensed by the State of New Jersey to sell or dispense controlled dangerous substances nor to any person lawfully possessing a controlled dangerous substance pursuant to a prescription written by a person authorized to write prescriptions under law.

D. The penalty for violating any provision of this article shall be a minimum fine of $100 and a maximum fine of $1,000 and/or imprisonment for a period of up to 90 days and/or a period of community service not exceeding 90 days.

ARTICLE VIII

Prohibiting Specified Actions Constituting a Breach of the Peace

§ 242-11. Disturbing the peace. [Added 5-22-2019 by Ord. No. 19-047]

The following acts shall be unlawful:

A. No person shall engage in loud, boisterous, threatening, abusive, insulting, indecent language or behavior tending to breach the public peace and good order at a time or place where a reasonable person has a reasonable expectation to quiet enjoyment.

B. Appropriate factors for determining reasonableness with respect to quiet enjoyment include, but are not limited to, the following:

1. The proximity of the conduct to noise sensitive areas, which is any real property normally used for sleeping (either residentially or commercially) or normally used as a school, church, hospital or public library;

2. The time of day or night the conduct occurs;

3. Whether the conduct is recurrent, intermittent, or constant.

§ 242-11.1. Outdoor work near residential zones prohibited during certain hours. [Added 6-30-2021 by Ord. No. 21-046]

A. Subject to Subsection B, industrial use businesses that are located within 1,500 feet of a residential zone, measured from the edges of the respective lots, shall not conduct any business between the hours of 7:00 p.m. and 6:00 a.m. of the next day.

B. The restriction upon business hours imposed by Subsection A shall not apply to operations conducted in an indoor, structurally enclosed area.

ARTICLE IX
Enforcement

§ 242-12. Enforcement. [Added 9-23-2020 by Ord. No. 20-074]

The provisions of this article shall be enforced by the Department of Public Safety.

Chapter 245

PEDDLING, SOLICITING AND CANVASSING

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Fund-Raising

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§ 245-23. Use of city name in fund-raising activities.
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[HISTORY: Adopted by the Council of the City of Jersey City: Art. I, 5-4-1971 as Ch. 8, Art. XII, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; Art. H, 5-4-1971 as Ch. 8, Art. XVI, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; Art. HI, 5-4-1971 as Ch. 8, Art. V, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; Art. IV, 9-20-1979 as Ord. No. S-266. Amendments noted where applicable.)

GENERAL REFERENCES

Advertising materials — See Ch. 81.
Auctioneers — See Ch. 93.
Fees and charges — See Ch. 160.
Food-handling establishments — See Ch. 175.
Sale of ice — See Ch. 193.
Noise — See Ch. 222.
Sale of spray paint — See Ch. 290.
Sale of tires — See Ch. 313.
Sale of tobacco products — See Ch. 316.
Vending machines — See Ch. 329.

ARTICLE I

Licensing of Peddlers

[Adopted 5-4-1971 as Ch. 8, Art. XII, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 245-1. Definitions. [Amended 4-28-1988 by Ord. No. C-730; 2-14-1996 by Ord. No. 96-009]

As used in this Article, the following terms shall have the meanings indicated:

PEDDLER - Any person, traveling by foot, wagon, automotive vehicle or any other type of conveyance from place to place, from house to house or from street to street, carrying, conveying or transporting goods, wares or merchandise, offering and exposing the same for sale, or making sales and delivering articles to purchasers, or who, without traveling from place to place, shall sell or offer the same for sale from a wagon, automotive vehicle, railroad car or other vehicle or conveyance. Any person who solicits orders and, as a separate transaction, makes deliveries to purchasers as part of a scheme or design to evade the provisions of this Article shall be deemed a "peddler." "Peddler" shall include the words "hawker" and "huckster." Peddler shall also include any person who is issued a veteran peddlers' license pursuant to N.J.S.A. 45:24-9 et seq., except that the actual issuance of a veteran's license and cancellation of a veteran's license for sale or use to anyone other than the veteran; or if the veteran is convicted of a crime or is guilty of violation of municipal ordinance shall be governed exclusively by N.J.S.A. 45:24-10 and 45:24-13.

§ 245-2. License required; fees.

A. Every peddler shall obtain a peddler's license from the license issuing authority prior to engaging in business as a peddler. The peddler's license fee shall be as provided in Chapter 160, Fees and Charges, not prorated, accounting from April 1, or a daily charge as provided in Chapter 160, Fees and Charges. **[Amended 11-8-1989 by Ord. No. McC-68; 6-14-1995 by Ord. No. 95-050]**

B. The requirement of a peddler's license shall be subject to the following exemptions:

(1) Persons residing in the city who have a state trader's license.

(2) The sale of farm, dairy or garden produce raised by the vendor in the state.

(3) Seafood caught by the vendor in the state.

(4) Articles of the vendor's own manufacture manufactured in the state.

§ 245-3. Identification tag; fee; exemption.

A. Each peddler shall procure a peddler's identification tag from the City Treasurer prior to engaging in business as a peddler, and such tag shall be conspicuously displayed on the peddler's vehicle, wagon, cart or person while engaged in such business. The application for a peddler's identification tag shall

contain an appropriate certification by the applicant that he or she is a bona fide grower, producer or manufacturer of the products to be sold by him or her, and the application shall be signed by the peddler.

B. The fee for a peddler's identification tag shall be as provided in Chapter 160, Fees and Charges. **[Amended 11-8-1989 by Ord. No. McC-68; 6-14-1995 by Ord. No. 95-050]**

C. The requirement of a peddler's identification tag shall be subject to the exemption of and shall not apply to any person who has complied with the licensing provisions of § 245-14.

§ 245-4. License and tag nontransferable.

A peddler's license and a peddler's identification tag shall be nontransferable and shall not be used or worn at any time by any person other than the one to whom it was issued.

§ 245-5. Revocation of license. [Amended 4-23-1986 by Ord. No. C-159]

A peddler's license shall be subject to revocation by the license issuing authority, after notice and hearing, for any one (1) of the following grounds:

A. Fraud, misrepresentation or false statement contained in the application for a peddler's license.

B. Fraud, misrepresentation or false statement made in the course of carrying on his or her business as a peddler.

C. Violations of law as set forth in this Article.

D. Conducting the business of peddling in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the public health, safety or general welfare.

§ 245-6. Prohibited peddling locations; use of streets; exemption for handicapped persons. [Amended 5-18-2005 by Ord. No. 05-056; 2-8-2006 by Ord. No. 06-010]

A. No peddler may sell or offer to sell any goods, wares or merchandise within the areas designated as a special improvement district (SID), which areas are more particularly described by block and lot numbers and street addresses as set forth in Schedule A to Chapter 69 of this Code on file in the Office of the Jersey City Clerk. **[Amended 3-8-2017 by Ord. No. 17-022]**

B. No peddler who shall make use of the streets to vend goods, either from a wagon, vehicle or other conveyance, shall remain in one place longer than twenty (20) minutes or return thereto within a period of less than five hours; provided, however, that this time limitation shall not apply to physically handicapped persons who have been issued a specific vehicle identification card by the Division of Commerce. **[Amended 8-13-1997 by Ord. No. 97-052]**

(1) No peddler shall be deemed to have complied with the foregoing requirement unless such peddler shall have moved at least one hundred (100) feet from the point at which he or she last stopped.

(2) "Physical handicap" means a physical impairment which confines a person to a wheelchair; causes a person to walk with difficulty or insecurity; affects the sight or hearing to the extent that a person functioning in public areas is insecure or exposed to danger; causes faulty coordination; or reduces mobility, flexibility, coordination and perceptiveness. "Physical handicap" shall include coronary conditions. Any such physically handicapped person shall submit a certificate from a physician certifying that such handicap does exist.

C. No peddler's location upon the streets for the purpose of sale shall be at a distance of less than one hundred (100) feet from the entrance of the store or place of business of a permanent retailer who sells like merchandise, foodstuffs or produce as the peddler.

D. The Department of Public Safety shall enforce the twenty (20) minute regulation as set forth in this section. **[Amended 9-11-2013 by Ord. No. 13-081]**

§ 245-7. Entry on private property.

No peddler shall make entry upon private property for the purpose of offering for sale or selling any merchandise, foodstuffs or produce unless the property owner shall have given prior consent to such entry.

§ 245-8. Articles not to be sold.

No peddler shall offer for sale or sell the following prohibited articles on any street or public way: medicines, patented remedies, nostrums, soaps, perfumes, extracts, toy balloons, toilet articles or other like merchandise.

§ 245-8.1. Exempt persons. [Added 3-8-2017 by Ord. No. 17-022]

The following activities shall be exempt from this article:

(1) Delivery of goods, wares or merchandise in the regular course of business to the premises of persons ordering or entitled to receive same.

(2) Solicitations on behalf of members of any charitable organizations, religious purpose or on behalf of a political candidate or activity.

ARTICLE II

Transient Businesses [Adopted 5-4-1971 as Ch. 8, Art. XVI, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128J

§ 245-9. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

TRANSIENT BUSINESS - A sale by a person who was not permanently engaged in business in the city prior to the sale in which the person represents himself as a bankrupt, an assignee or about to quit business, or that the sale is one of damaged goods as a result of fire, water or other cause.

§ 245-10. License required; fee.*

Every person, not already engaged in a permanent business in the city, who intends to begin a transient business shall first apply for and obtain a transient business license from the license issuing authority. The fee for a transient business license shall be as provided in Chapter 160, Fees and Charges.

ARTICLE III

Canvassers and Solicitors [Adopted 5-4-1971 as Ch. 8, Art. Y, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 245-11. Definitions. [Amended 3-8-2017 by Ord. No. 17-022]

As used in this Article, the following terms shall have the meanings indicated:

CANVASSER or SOLICITOR - Hereinafter referred to only as a "canvasser," any individual, whether resident of the City of Jersey City or not, traveling either by foot, wagon, automobile, motortruck or any other type of conveyance from place to place, from house to house or from street to street, offering to purchase any real property or any interest in real property either on his own behalf or as an agent or broker on behalf of any third party, taking or attempting to take orders for sale of goods, wares and merchandise, personal property of any nature whatsoever for future delivery or for services to be furnished or performed in the future, whether or not such individual has, carries or exposes for sale a sample of the subject of such sale, or whether he or she is collecting advance payments on such sales or not, provided that such definition shall include any person who, for himself, herself or for another person, hires, leases, uses or occupies any building, structure, tent, railroad, boxcar, boat, hotel room, lodging house, apartment, shop or any other place within the city for the sole purpose of exhibiting samples and taking orders for future delivery; and provided, further, that the foregoing definition shall not be deemed to include any person who, acting for a manufacturer or wholesaler, shall sell or take orders for the sale of goods, wares and merchandise to any other manufacturer or wholesaler or to a retailer for resale in the usual course of business; nor shall the provisions of this Article apply to sales made under authority and by order of law nor to sales made by the vendors of farm or dairy products.

§ 245-12. License required.

No solicitor or canvasser, as defined herein, shall engage in such business within the city without first obtaining a canvasser license therefor in compliance with the provisions of this Article.

§ 245-13. Exempt persons. [Amended 3-8-2017 by Ord. No. 17-022]

The following activities shall be exempt from this Article:

(1) Delivery of goods, wares or merchandise in the regular course of business to the premises of persons ordering or entitled to receive same.

'Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

(2) Solicitations on behalf of members of any charitable organizations, religious purpose or on behalf of a political candidate or activity.

§ 245-14. License application; fee.

A. An applicant for a canvasser license under this Article shall file with the City Treasurer a sworn application in writing, in duplicate, on a form to be furnished by the City Treasurer, which form shall give the following information:

(1) Name and description of the applicant.

(2) Permanent home address and full local address of the applicant.

(3) A brief description of the nature of the business and the goods to be sold.

(4) If employed, the name and address of the employer, together with credentials establishing the exact relationship.

(5) The length of time for which the right to do business is desired.

(6) The place where the goods or property proposed to be sold, or orders taken for the sale thereof, are manufactured or produced, where such goods or products are located at the time said application is filed and the proposed method of delivery.

(7) A photograph of the applicant, taken within sixty (60) days immediately prior to the date of the filing of the application, which picture shall be two by two (2 x 2) inches, showing the head and shoulders of the applicant in a clear and distinguishing manner.

(8) The fingerprints of the applicant and the names of at least two (2) reliable property owners of the County of Hudson, State of New Jersey, who will certify as to the applicant's good character and business responsibility or, in lieu of the names of references, such other available evidence as to the good character and business responsibility of the applicant as will enable an investigator to properly evaluate such character and business responsibility.

(9) A statement as to whether or not the applicant has been convicted of any crime, misdemeanor or violation of any municipal ordinance, the nature of the offense and the punishment or penalty assessed therefor.

(10) A list of the municipalities in which the applicant and his or her employer has conducted the business for the six (6) months prior to the date of the application.

(11) A statement setting forth whether any complaints have been made against the applicant or his or her employer by customers solicited in this city or elsewhere and the nature of said complaints.

B. At the time of filing the application, a fee as provided in Chapter 160, Fees and Charges, shall be paid to the license issuing authority to cover the cost of investigation of facts stated therein.*

***Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

§ 245-15. Investigation; disapproval of applicant.

A. Upon receipt of such application, the original shall be referred to the Chief of Police or, in the absence of the Chief, the officer in charge of police headquarters, who shall cause such investigation of the applicant's business and moral character to be made as is deemed necessary for the protection of the public good.

B. If, as a result of such investigation, the applicant's character or business responsibility is found to be unsatisfactory for any of the reasons set forth herein, the Chief of Police shall endorse on such application his or her disapproval and the reasons for the same, and return said application to the City Treasurer, who shall notify the applicant that the application is disapproved and that no permit and license will be issued.

C. If, as a result of such investigation, the character and business responsibility of the applicant are found to be satisfactory, the Chief of Police shall endorse on the application his or her approval, execute a permit addressed to the applicant for the carrying on of the business applied for and return said permit, along with the application to the license issuing authority, who shall, upon payment of the prescribed investigation fee, deliver to the applicant the permit and issue a license. Such license shall contain the signature and seal of the issuing officer and shall show the name, address and photograph of said licensee and the kind of goods to be sold thereunder, the amount of fee paid, the date of issuance and the length of time the same shall be operative, as well as the license number and other identifying description of any vehicle used in such soliciting or canvassing. The license issuing authority shall keep a permanent record of all licenses issued.

D. It shall be sufficient for the Police Chief to disapprove an application for the license for any of the following reasons:

(1) If the applicant or his or her employer has been convicted of any crime, misdemeanor, criminal offense or the violation of any municipal ordinance.

(2) If there is any fraud, misrepresentation or false statement contained in the application.

(3) If the applicant or his or her employer or the employer's representatives have committed any fraud, misrepresentation or false statement in conducting said business in this city or elsewhere.

(4) If the applicant or his or her employer or the employer's representatives have conducted said business in an unlawful manner in this city or elsewhere.

§ 245-16. Denial of license; appeals; hearing. [Amended 9-11-2013 by Ord. No. 13-081]

Any person aggrieved by the action of the Chief of Police or, in the absence of the Chief, the officer in charge of police headquarters, or the license issuing authority, upon the denial of the license as provided in this Article shall have the right of appeal to the Director of Public Safety. Such appeal shall be taken by filing with said Director, within fourteen (14) days after notice of the action complained of has been mailed to such person's last known address, a written statement setting forth fully the grounds for the appeal. The Director shall set a time and place for a hearing on such appeal, and notice of such hearing shall be given to the appellant in the same manner as provided in this Article for notice of hearing on revocation. The decision and order of the Director on such appeal shall be final and conclusive.

§ 245-17. Revocation of license; notice; hearing.

A. Licenses issued under the provisions of this Article may be revoked by the Director of Public Safety after notice and hearing, for any of the following causes: **[Amended 9-11-2013 by Ord. No. 13-081]**

(1) Fraud, misrepresentation or false statement contained in the application for license.

(2) Fraud, misrepresentation or false statement made in the course of carrying on business as solicitor or as canvasser.

(3) Any violation of this Article.

(4) Conviction of any crime or misdemeanor involving moral turpitude.

(5) Conducting the business of soliciting or canvassing in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the health, safety or general welfare of the public.

B. Notice of the hearing for revocation of a license shall be given in writing, setting forth specifically the grounds of complaint and the time and place of hearing. Such notice shall be mailed, postage prepaid, to the licensee at his or her last known address at least five (5) days prior to the date set for hearing.

§ 245-18. Expiration of license.

All annual licenses issued under the provisions of this Article shall expire on December 31 in the year issued. Other licenses shall expire on the date specified in the license.

§ 245-19. Permitted hours; photograph.

No person shall canvass within the city except between the hours of 9:00 a.m. and 6:00 p.m. A copy of the licensee's photograph shall be carried on the license, which photograph shall be furnished by the applicant. The licensee shall exhibit his or her license to any police officer or other person upon request. The licensee shall be courteous to all persons in canvassing and shall not importune nor annoy any of the inhabitants of the city and shall conduct himself or herself in a lawful manner. On expiration of the license, the licensee shall surrender the same to the officer in charge of police headquarters.

§ 245-20. Production of license.

All police officers shall require any person seen soliciting or canvassing and who is not known by such officer to be duly licensed to produce his or her canvasser's license at the request of the officer.

§ 245-20.1. Establishment of a no-knock registry. [Added 3-8-2017 by Ord. No. 17-022]

A. For the purpose of protecting residents from criminal activities and safeguarding their privacy, there is hereby established a no-knock registry of properties where canvassing and soliciting are prohibited. The no-knock registry shall be maintained by the City Clerk.

B. The City Clerk shall prepare a list of addresses of those premises whose owners or occupants have notified the Clerk that canvassing or soliciting are not permitted on their premises. Notification shall be by the completion of a form, available online and at the City Clerk's office during normal business hours. The premises shall remain on the Registry unless the owners or occupants notify the City Clerk in writing that they wish the property to be removed from the registry. The City Clerk shall update the list monthly. The inclusion of a premises on the registry shall be deemed a revocation of any privilege or license to enter or attempt to enter the property.

C. Owners or occupants who have requested to be listed on the no-knock registry pursuant to Subsection A herein, may procure from the Clerk's office a notice for display on the premises indicating the enlistment on the no-knock registry. The notice shall indicate which solicitors may contact residents and shall read substantially as follows:

> "These premises are listed on the City of Jersey City's 'No-Knock Registry' (Jersey City Code Sec. 245-20.1). You may not enter or attempt to enter these premises for the purpose of canvassing or soliciting, which includes offering to purchase real estate on behalf of any person or organization. Charitable, political, religious organizations are exempt from this law. Violation of Jersey City Code Sec. 245-20.1 may result in a fine of up to $2,000 and/or up to 90 days of community service."

D. The first notice shall be provided free of charge and may be picked up in person during regular business hours. If a replacement notice is required, the individual may pick up the replacement notice at the Clerk's office for a fee of $5.00, which shall be payable to the City Clerk. A fee of an additional $1.00 per notice will be applied for any individual who desires to have a notice mailed to him or her, payable to the City Clerk. Pursuant to N.J.S.A. 2C:18-3, "any owner or occupant who has listed his or her premises on this registry shall be deemed to have revoked any express or implied legal privilege or license to enter or attempt to enter the premises."

E. The City Clerk shall distribute the current City no-knock registry to a licensed canvasser or solicitor at the time of issuance of a license.

F. Although the most current list of registrants on the City no-knock registry shall be provided by the City Clerk, it is the responsibility of the canvasser or solicitor to have the most up-to-date list prior to engaging in any canvassing or soliciting.

G. Any person convicted of violating this section upon competent evidence by an owner, occupant or other person with personal knowledge of such violation shall be subject to the following:

(1) First offense: a minimum fine of one hundred dollars ($100.00) with a maximum of up to one thousand two hundred fifty dollars ($1,250.00);

(2) Subsequent offense: a minimum fine of one hundred dollars ($100.00) with a maximum of up to two thousand dollars ($2,000.00) for each offense, together with community service for a period of up to 90 days; and

(3) Any offense: in addition to the above, a permanent revocation of any license issued under the within chapter.

H. The City shall post a no-knock registry application on the City webpage and distribute to other media outlets as designated by the City. The City shall provide copies of the application to the public and undertake reasonable efforts in education and distribution, in order to further public awareness of the no-knock registry.

I. This section does not preclude an owner or occupant from filing any other appropriate complaint with the Municipal Prosecutor, including a complaint for trespass. **[Amended 10-07-2020 by Ord. No. 20-088]**

§ 245-21. Violations.

The Chief of Police shall report to the license issuing authority all convictions for violation of this Article, and the license issuing authority shall maintain a record for each license issued showing all violations of this Article by the licensee.

ARTICLE IV
Fund-Raising

[Adopted 9-20-1979 as Ord. No. S-266]

§ 245-22. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

CITY - The city administration or any department, division, bureau or administrative unit thereof, including any agency of the city or any administrative unit of such agency.

IN THE NAME OF THE CITY - Any reference, directly or indirectly, to the city administration or any of its departments, divisions, bureaus or administrative units thereof, including any agency of the city or any administrative unit of such agency which will give anyone the impression, directly or indirectly, by implication or inference that the city, as defined in the definition of "city" above, is involved in any way or is sponsoring or has given consent to such activity.

PERSON - "Person" as defined in Chapter 1, General Provisions, of this Code.

§ 245-23. Use of city name in fund-raising activities.

A. No person, as defined in this Code, shall use the name of the city, as defined in § 245-22, in any fund-raising activities until such person shall obtain the consent of the City Council to conduct such fund-raising activity. Said consent shall be in the form of an appropriate resolution adopted by the City Council.

B. Any person seeking consent of the Council to conduct any fund-raising activity shall submit to the City Clerk an application therefor, which application shall contain the following information:

(1) The name and address of the person or organization which will conduct or be responsible for the fund-raising activity.

(2) Names and addresses of all persons who shall be involved in the fund-raising activities.

(3) A detailed statement of the purpose of the fund-raising program, setting forth for whose benefit the program is to be conducted.

(4) The names and addresses of the persons who shall be responsible for the collection and accounting of said funds.

(5) Names and addresses of the persons who shall be responsible for any expenditures made of said funds.

(6) The name and address of the bank in which the funds will be deposited, setting forth the number of the account and the names and addresses of the authorized signatures pertaining to said account.

(7) Whether or not there is any intention to utilize public buildings or property and the location of same.

(8) Whether or not the city or any agency will furnish any personal property, specifying what kind of personal property and the quantity thereof.

(9) Whether or not the city or any agency will be requested to provide any funds and, if so, the amount of such funds.

(10) Whether or not the city will be requested to furnish the services of any of its employees during their duty hours and, if so, the names of the employees and the purpose for which the services of these employees will be utilized.

(11) A statement notarized under oath setting forth the following:

(a) That the applicant will deposit all funds raised in a separate and distinct bank account and will not co-mingle said funds with any other funds.

(b) That the applicant will furnish to the Council an accounting of all funds received and expended.

(c) That the applicant hereby authorizes the Council, at its option, to make an audit of the account.

(d) That the applicant will have all persons handling the money for the fund-raising activity bonded so as to insure the funds against any loss.

(12) The applicant agrees to furnish all necessary liability insurance in appropriate amounts naming the city, its officers and employees as additional insureds, so as to hold the city and its officers and employees harmless for any claims for personal injuries or damages which may occur as a result of the fund-raising activities.

(13) The applicant agrees to abide by all appropriate federal, state and local laws pertaining to such activity.

§ 245-24. Violations and penalties.

A. Any person violating any provisions of this Article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.*

B. In addition to the above penalties, if the applicant fails to comply with the conditions set forth herein, the Council may rescind its consent to conduct such fund-raising program in the name of the city.

*Editor's note—**Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 248

POOL ROOMS

§ 248-1. Definitions.
§ 248-2. License required.
§ 248-3. License application.
§ 248-4. License fee; expiration.
§ 248-5. Exceptions.
§ 248-6. Licenses to be posted.
§ 248-7. Transfer of license.
§ 248-8. Compliance with zoning regulations.
§ 248-9. Hours of operation.
§ 248-10. View into pool halls to be unobstructed.
§ 248-11. Presence of minors.
§ 248-12. Wagering on games.
§ 248-13. Suspension or revocation; Director of Public Safety or the Director of the Division of Commerce authorized.

[HISTORY: Adopted by the Council of the City of Jersey City 5-4-1971 as Ch. 5, Art. VI, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

GENERAL REFERENCES

Amusement devices — See Ch. 87.
Fees and charges — See Ch. 160.
Zoning — See Ch. 345.

§ 248-1. Definitions. [Amended 3-11-2009 by Ord. No. 09-024]

As used herein, the following terms shall have the meanings indicated:

DIRECTOR — The Director of Commerce in the Department of Housing, Economic Development and Commerce. **[Added 1-9-2008 by Ord. No. 07-192]**

POOL — Synonymous with the word "billiard." It includes any of the various games played on a pool table having six (6) pockets with usually fifteen (15) object balls and it also includes a game in which one scores by causing a cue ball to hit in succession two (2) object balls.

POOL ROOM — Synonymous with the words "pool hall." A "pool room" also means any place wherein a pool or billiard table or tables are available for hire to the public for the purpose of playing pool.

POOL ROOM LICENSEE — Any person to whom a license has been issued for the operation of a pool room.

POOL TABLE — Any table surrounded by a ledge or cushion with or without pockets in which billiard balls are propelled by a stick or cue.

§ 248-2. License required. [Amended 1-9-2008 by Ord. No. 07-192; 3-11-2009 by Ord. No. 09-024]

No person shall operate any pool room for the use of the general public for private profit without obtaining a license from the Director of the Division of Commerce.

§ 248-3. License application. [Amended 1-9-2008 by Ord. No. 07-192; 3-11-2009 by Ord. No. 09-024]

A. An applicant for a license to operate a pool room shall be of good moral character and shall file an application with the Director giving the name of the owner if a sole proprietorship, the partners if a partnership or the officials, directors and stockholders if a corporation, with the residence address of each person so named and the business in which he is engaged.

B. The Director shall refer the application to the Director of Public Safety, who shall conduct an investigation to determine whether the applicant, in his judgment, qualifies for the desired license, and the Director of Public Safety shall notify the Director of the result of the investigation with his recommendation, and the Director shall or shall not, after due consideration thereof, issue the desired license. **[Amended 9-11-2013 by Ord. No. 13-081]**

§ 248-4. License fee; expiration. [Amended 6-14-1995 by Ord. No. 95-050; 12-23-1997 by Ord. No. 97-088; 2-11-1998 by Ord. No. 98-004; 1-9-2008 by Ord. No. 07-192; 3-11-2009 by Ord. No. 09-024]

The annual pool room license fee in the amount as provided in Chapter 160, Fees and Charges, shall be filed with the application for the desired license; provided, however, that if the license is not granted, the fee shall be returned to the applicant. All licenses shall expire on December 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Commerce.

§ 248-5. Exceptions. [Amended 3-11-2009 by Ord. No. 09-024]

The license provisions and other requirements hereof shall not apply to the operation of pool tables kept on the premises of religious, charitable and educational organizations not operated for private profit, nor to those kept in private residences or on the premises of bona fide clubs or social organizations not operated for private profit.

§ 248-6. Licenses to be posted. [Amended 3-11-2009 by Ord. No. 09-024]

The pool room license shall be posted in a conspicuous place inside the entrance of the pool room.

§ 248-7. Transfer of license. [Amended 3-11-2009 by Ord. No. 09-024]

A. A license may be transferred to a different lawful location upon application approved by the Director and payment of a transfer fee as provided in Chapter 160, Fees and Charges. **[Amended 6-14-1995 by Ord. No, 95-050; 1-9-2008 by Ord. No. 07-192]**

B. A license shall not be transferred to a different licensee.

§ 248-8. Compliance with zoning regulations. [Amended 3-11-2009 by Ord. No. 09-024]

No pool room license shall be issued for any pool room where the proposed operation or location thereof would be in violation of the zoning provisions of this Code.

*** Editor's Note: See Ch. 345, Zoning.**

§ 248-9. Hours of operation. [Amended 1-9-2008 by Ord. No. 07-192; 3-11-2009 by Ord. No. 09-024]

No licensed pool hall shall operate said business except during the following hours: Sunday through Thursday from 12:00 noon to 2:00 a.m. the following day; Friday and Saturday from 12:00 noon to 3:00 a.m. the following day; and on New Year's Eve, from the opening hours herein specified until 4:00 a.m. the following day.

§ 248-10. View into pool halls to be unobstructed. [Amended 3-11-2009 by Ord. No. 09-024]

Every pool hall shall have unobstructed windows or open space on at least one (1) side so that the area is open to view by the general public passing by on a public street or using a corridor, lobby or other rooms to which the public resorts and is admitted without charge. The licensee shall not permit any obstruction of such public view by the use of drawn shades, blinds, partitions or other structures or obstructions.

§ 248-11. Presence of minors. [Amended 3-11-2009 by Ord. No. 09-024]

No persons under the age of seventeen (17) shall frequent, loiter, go or remain in any pool hall licensed hereunder at any time unless accompanied thereto by an adult. This prohibition shall apply to persons under eighteen (18) with reference to pool halls wherein intoxicating liquors are dispensed.

§ 248-12. Wagering on games. [Amended 3-11-2009 by Ord. No. 09-024]

No person shall wager or bet upon the outcome of any game, contest or exhibition played in a licensed pool hall.

§ 248-13. Suspension or revocation; Director of Public Safety or the Director of the Division of Commerce authorized. [Added 1-9-2008 by Ord. No. 07-192; 3-11-2009 by Ord. No. 09-024; amended 9-11-2013 by Ord. No. 13-081]

A. Pursuant to a ten-day notice in writing to the licensee and after a hearing, the Director may suspend or revoke any license if

(1) the owner, partner, or agent has been convicted of a crime under federal or state law; or

(2) has violated any of the provision of this Chapter; or

(3) has been found responsible for any acts constituting a breach of the peace or a public nuisance; or

(4) where the Director finds the operation of the licensed premises detrimental to the health, safety and welfare of the people of the city.

B. The Director of Commerce or the Director of Public Safety may suspend any license on an emergent basis for a period not exceeding thirty (30) days after a hearing pursuant to two-days' notice to the licensee for any of the grounds listed in subsection A if the Director finds in addition that protection of the public health, safety or welfare requires an immediate suspension.

(The next page is 25101]

Chapter 251

PORNOGRAPHY AND OBSCENITY*

§ 251-1.	Definitions.	§ 251-5.	Licensed establishments maybe subject to more stringent restrictions.
§ 251-2.	Display of obscene materials for sale, restrictions; fee.	§ 251-6.	Violations and penalties.
§ 251-3.	Unlawful acts.		
§ 251-4.	Exceptions.		

§ 251-1. Definitions. [Added 11-7-2018 by Ord. No. 18-123]

As used in this Chapter, the following terms shall have the meanings indicated:

DISPLAY — To promote, issue, sell, give, provide, lend, deliver, transfer, transmit, publish, distribute, circulate, disseminate, present, exhibit or advertise, or to offer or agree to do the same.

FILM — Any motion picture, film, preview or trailer to a motion picture or film, not including any motion picture or film which portrays actual events or pictorial news.

LICENSED ESTABLISHMENT — Any business licensed to sell alcoholic beverages for purchase or consumption.

MATERIAL — Anything tangible that is capable of being used, displayed or adapted for use.

OBSCENE — In accordance with the standards set forth in Miller v. California, 413 U.S. 15 (1973), any material, film or any performance which violates the accepted community standard for decency. The public display of material, film or a performance shall be deemed obscene if an average resident of Jersey City, after having evaluated the display or performance as a whole, and after having applied contemporary community standards to the display or performance, would conclude that the display or performance (1) lacks any serious literary, artistic, political or scientific value and (2) appeals only to the prurient interest in sex.

Examples of obscenity include, but are not limited to, the public display of any material, any film or live performance which depicts:

(1) Reproductions or descriptions of intimate sexual acts, actual or simulated, including sexual intercourse and bestiality;

***Editor's note**—Ord. No. 18-123, adopted November 7, 2018, amended the Code by repealing former Ch. 251, §§ 251-1—251-8, and adding a new Ch. 251. Former Ch. 251 pertained to similar subject matter, and derived from derived from Ord. No. MC-187, adopted May 27, 1982; Ord. No. McC-131, adopted April 25, 1990; Ord. No. McC-197, adopted September 26, 1990; Ord. No. 95-050, adopted June 14, 1995; and Ord. No. 97-052, adopted August 13, 1997.

Cross references—Fees and charges, Ch. 160; urination in public, Ch. 242, Art. III.

(2) Representations or descriptions of masturbation, excretory functions, lewd exhibition of the genitals, the male or female genitals in a state of sexual stimulation or arousal or covered male genitals in a discernibly turgid state.

PERFORMANCE — A play, dance or other exhibition performed before an audience.

STATE OF NUDITY — The complete exposure of the anus or genitals or pubic area or of the female breast below the point immediately above the top of the areola down to the bottom of the areola.

§ 251-2. Display of obscene materials for sale, restrictions; fee. [Added 11-7-2018 by Ord. No. 18-123]

A. No person who operates a store, newsstand, booth, concession, movie and video sale or rental or similar business with unimpeded access for persons under 18 years of age or who is in business of making sales or rentals of movies, pictures, drawings, photographs or other visual depictions shall display or permit to be displayed at his or her business premises any obscene material at a height of less than five feet and without a blinder or other covering placed or printed on the material displayed. The public display of the obscene material shall constitute presumptive evidence that the retailer knowingly made or permitted this display.

B. Every person who displays obscene materials as defined herein shall register with the Division of Commerce, identify the location of each site where such materials are displayed and thereafter notify the Division of Commerce of any change of location or change of address of the material displayed. There shall be a one-time registration fee as provided in Chapter 160, Fees and Charges, to offset the cost of registration and enforcement.

§ 251-3. Unlawful acts. [Added 11-7-2018 by Ord. No. 18-123]

A person commits an offense under this Chapter if that person:

(1) Displays any obscene material, or displays any obscene material for sale in a manner inconsistent with the provisions set forth in § 251-2;

(2) Publicly presents an obscene film or performance or participates in a part participates in a part of a performance that is obscene or that contributes to its obscenity;

(3) Appears or travels on any street; avenue, highway, road or waterway located in the City or to appears in any public place, store or business in a state of nudity.

§ 251-4. Exceptions. [Added 11-7-2018 by Ord. No. 18-123]

A female is not considered to be in a state of nudity if she exposes her breast while in the process of breastfeeding.

§ 251-5. Licensed establishments maybe subject to more stringent restrictions. [Added 11-7-2018 by Ord. No. 18-123]

Licensed establishments are subject to the standards set forth in N.J.S.A. 33 et seq. governing the sale of intoxicating liquors and N.J.A.C. 13:2 et seq. Nothing in this Chapter shall be construed as supplementing or superseding any of the regulations contained therein with respect to obscene or lewd behavior in or about a licensed establishment.

§ 251-6. Violations and penalties. [Added 11-7-2018 by Ord. No. 18-123]

The penalty for a violation of this article shall be as provided in Chapter 1, General Provisions, § 1-25.

Chapter 254

PROPERTY MAINTENANCE*

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*History—Adopted by the Council of the City of Jersey City May 4, 1971 as Ch. 13 of the 1971 Jersey City Code, as readopted September 19, 1978 by Ord. No. S-128. Amendments noted where applicable.

Cross references—Handbills and littering, Ch. 81; numbering of buildings, Ch. 108; certificates of occupancy, Ch. 119; uniform construction codes, Ch. 131; fees and charges, Ch. 160; health and sanitation, Ch. 182; housing accommodations, Ch. 188; multiple dwellings, Ch. 218; noise, Ch. 222; paint stripping, Ch. 233; graffiti, Ch. 242, Art. II; disclosure of presence of lead-based paint, Ch. 257; retail and commercial premises, Ch. 263; security gates, Ch. 278; solid waste collection and removal; recycling, Ch. 287; snow and ice removal; use of streets and sidewalks, Ch. 296; trees, Ch. 321.

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ARTICLE I
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This chapter may be cited as the "Property Maintenance Code" and may be referred to herein as "this chapter."

§ 254-2. Findings.

A. It is hereby found and declared that there are located within the city buildings used for residential and nonresidential purposes which have become or are becoming substandard with respect to structure, equipment, maintenance, occupancy, sanitation or use; and it is further declared that such conditions, which include but are not limited to lack of maintenance of exterior or interior of premises, faulty design, construction or installations, lack of proper sanitary facilities, fire or accident hazards, unsanitary conditions, infestation or overcrowding, have made these buildings either unfit for human habitation, occupancy or use or so deteriorated, dilapidated, dangerous, unsanitary, neglected or over-occupied as to jeopardize or be detrimental to the health, morals, safety or welfare of the people of the city. It also is recognized that to make housing more livable we must have homemaking and other social services as well as enforcement of the Property Maintenance Code's physical standards.

B. It is further found and declared that, among other reasons, because of lack of maintenance and progressive deterioration, certain properties have become blighted and have had the further effect of causing blighting conditions within the city that have necessitated an excessive and disproportionate expenditure of public funds for health, fire protection, public safety, welfare and other public services. However, it is further found and declared

that through appropriate regulations and restrictions, as herein contained, the growth of blight and blighting conditions can be curbed or prevented and neighborhood and property values thereby maintained, the appearance and amenities of properties and neighborhoods can be enhanced and the public health, safety and welfare protected and fostered.[1]

§ 254-3. Purpose; other standards.

A. The purpose of this Property Maintenance Code is to protect the public health, safety, morals and welfare and to eliminate and to prevent the spread of property and neighborhood deterioration and blight by establishing minimum standards governing the maintenance, appearance, condition and occupancy of residential and nonresidential premises; to establish minimum standards governing utilities and facilities of dwellings and other physical components and conditions in dwellings and nonresidential buildings essential to make the same fit for human habitation, occupancy or use; to fix certain responsibilities and duties upon owners and managers and distinct and separate responsibilities and duties upon occupants; to require the licensing and regulation of all boardinghouses and lodging houses; to authorize and establish procedures for the inspection of residential and nonresidential premises and for the general administration and enforcement of this chapter; to provide for the vacation and repair or demolition of premises unfit for human habitation or occupancy or use; to provide for the right of access across adjoining premises to permit repairs; and to fix penalties for violations of this chapter. This Property Maintenance Code is hereby declared to be remedial and essential for the public interest and it is intended that it be liberally construed to effectuate the purposes as stated herein.

B. The New Jersey State Housing Code, as amended from time to time, N.J.A.C. 5:28-1 et seq., is hereby adopted by reference as a supplement to the Jersey City Property Maintenance Code subject to the condition that the Jersey City Property Maintenance Code shall apply whenever it contains a standard more stringent than that contained in the New Jersey Housing Code. **[Added 4-28-1993 by Ord. No. 93-038]**

§ 254-4. Definitions.

As used herein, the following terms shall have the meanings indicated:

ACCESSORY BUILDING — A structure, the use of which is incidental to that of the main building and which is attached to the main building or located on the same premises.

ALTERATION — A change or rearrangement in the structural parts or exit facilities of a structure; or an enlargement thereof, whether done by extending on a side or by increasing the height; or the moving thereof from one location or position to another; or a change in use or occupancy thereof from one use group to another of different legal requirements.

AREA INSPECTION — Systematic property-to-property, block-to-block inspection of 10 or more premises within an area designated by the city through its Division of

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[1] **Editor's Note: Original Subsection (c), which followed this subsection and dealt with boardinghouses and lodging houses, was deleted 6-14-1995 by Ord. No. 95-050.**

Construction Code Official and its Division of Planning for concentrated area code enforcement in order to implement neighborhood maintenance, rehabilitation or urban renewal programs of the city. **[Amended 8-13-1997 by Ord. No. 97-052]**

BASEMENT — That portion of a building which is partly below and partly above grade, but has more than ½ of its height, measured vertically from clear floor to ceiling, above the average level of the adjacent finished grade.

BATHROOM — An enclosed space containing at least one lavatory, one toilet and one bathtub or one shower.

BUILDING — Any structure designed or used for the housing, shelter, enclosure and/or support of individuals, animals or property of any kind and any appurtenances or outhouses belonging thereto or used therewith or for mixed use as defined herein.

BUILDING CODE — The Building Code of the City of Jersey City.[2]

CELLAR — That portion of a building which is partly or wholly below grade and has one-half (½) or more of its height, measured vertically from clear floor to ceiling, below the average level of the adjacent finished grade.

CENTRAL HEATING SYSTEM — The main heat appliance and accessory components serving all residential and nonresidential units in a building wherein the main appliance is located in a fire-resistant enclosed space or spaces rated adequate under the provisions of the Building Code in Chapter 131 and separate and apart from the area to be heated, is affixed permanently on a fireproof base and is connected to a listed venting system as required by the Building Code.

CHIEF — The executive official in charge of the Division of Construction Code Official or his or her authorized representative. **[Amended 8-13-1997 by Ord. No. 97-052]**

CODE — The Code of the City of Jersey City (1995) or the Jersey City Code (1995). **[Amended 6-14-1995 by Ord. No. 95-050]**

COMMUNITY KITCHEN — A room or part of a room in which food and drink are cooked or prepared, whose use is shared by occupants of one or more rooming units, two or more dwelling units or any combined number of rooming units and dwelling units. A "community kitchen" may be used in conjunction with one or more furnished apartments, provided that the cooking unit shall not consist of more than four burners and one oven in each such installation.

DETERIORATING — A condition which necessitates more repair than would be provided in the course of regular maintenance because of the existence of one or more intermediate defects which will lead to more serious damage or danger if not corrected.

DILAPIDATED — An unsafe or inadequate condition because of one or more critical defects or a combination of intermediate defects in sufficient number to require extensive repair or rebuilding or because of inadequate original construction.

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[2] **Editor's Note: See Ch. 131, Construction Codes, Uniform.**

DIRECTOR - The chief administrative officer of the Division of Construction Code Official. **[Amended 8-13-1997 by Ord. No. 97-052]**

DISABLED PERSON - Any person who by reason of a physical or mental condition is not sufficiently ambulatory or otherwise is unable to reach or use the two means of egress most accessible to his or her living quarters without assistance and with reasonable facility or who is unable to attend to daily personal and bodily needs.

DORMITORY - A building or portion thereof maintained and operated by a college, monastery, trucking company, railroad company or other person wherein there is one room which contains more than one bed, or there is a series of independent sleeping rooms which are rented or which are intended for rent, or for which a fee is charged, or the beds or rooms are used by and for employees. A railroad bunk room is included in this definition.

DWELLING - Any occupied or vacant house, building or portion thereof designed or intended for use as a permanent or transient residence for humans.

DWELLING UNIT - Any room or group of rooms located within a dwelling arranged for the use of one or more individuals as a single housekeeping unit, and includes cooking, living, sanitary and sleeping facilities.

EMANCIPATED MINOR - Any person under the age of 18 who is gainfully employed and self-supporting or who is married to a spouse who is gainfully employed and who supports said minor or who is a student living away from home and in regular attendance at an institution of higher learning. **[Amended 6-14-1995 by Ord. No. 95-050]**

ESTABLISHMENT SUBJECT TO LICENSING - Any boardinghouse or lodging house, including nursing homes, hotels, motels, tourist homes, furnished apartments, dormitories, fraternity and sorority houses, which is required to be licensed to operate as such pursuant to § 254-82 under the provisions of this chapter.

EXPOSED TO PUBLIC VIEW - Any premises or building or any part of either which may be lawfully viewed by the public from a sidewalk, street or alleyway or from any adjoining or neighboring premises.

EXTERMINATION - The control and elimination of insects, rodents or other pests by removing their harborage places; by removing or making inaccessible food, dirt, waste or other materials that may serve as their food; by trapping or fumigating or by poisoning or spraying with effective insecticides, pesticides or rodenticides; or by other approved legal means of pest elimination.

FAMILY - The head of the family, the spouse, if any, and the parents and children (including foster or adopted children, if any) of either the head of the family or spouse or of both of them.

FIELD REPRESENTATIVE - An authorized representative of the City who is assigned to inspect residential and nonresidential buildings and premises. **[Amended 8-13-1997 by Ord. No. 97-052; 9-23-2020 by Ord. No. 20-074]**

FIRE HAZARD: **[Amended 9-11-2013 by Ord. No. 13-081]**

A. Any device or condition likely to cause fire and which is so situated as to endanger either persons or property.

B. Any use of combustible or explosive material or any accumulation or storage thereof that is sufficient in amount or so located as to put either persons or property in jeopardy if ignited.

C. Any obstruction to or of fire escapes, ladders usable as means of egress, stairways, aisles, passageways, halls, windows or doors likely, in the event of a fire, to interfere with the egress of occupants or the operations of the Department of Public Safety.

D. The violation of any rule now or hereafter promulgated by the Department of Public Safety.

FLOOR AREA, NET - The total floor area within the enclosing walls of a room minus the space occupied by built-in cabinets, closets or wardrobes, kitchen units or fixtures which are not readily movable and minus any floor space where the floor-to-ceiling height is less than seven feet.

FURNISHED APARTMENT - More than one room furnished, with or without a cook stove, and rented to transients or permanent guests.

GARBAGE - The animal and vegetable waste resulting from the handling, preparation, cooking and consumption of food.

GUEST ROOM - A room which is occupied, or is intended, arranged or designed to be occupied, for sleeping purposes by one or more guests. This definition includes rooms hired out, furnished or unfurnished, and also includes any room arranged for or used for sleeping purposes by an employee as a condition of employment or for an accommodation on a contractual basis. This definition does not include sleeping rooms used by the owner or his or her immediate family.

HABITABLE ROOM - A room or enclosed floor space in a basement, first or upper story used or designed for use for living, eating or sleeping purposes; but does not include bathrooms, toilet rooms, laundries, closets, pantries, foyers, corridors, cellars, heater rooms, boiler rooms, utility rooms or any room whose net floor area is less than 50 square feet.

HOTEL - As defined in the Hotel and Multiple Dwelling Law (N.J.S.A. 55:13A). **[Amended 6-14-1995 by Ord. No. 95-050]**

HOUSE - As used in all articles of this chapter, a private dwelling, apartment house or other places of human habitation, and, as used in Article XIX, it also means office building, store or any building whatsoever or any lot used for business purposes.

HOUSING INSPECTOR — See definition of "field representative."

IMMEDIATE FAMILY - A family unit which consists of the family head, spouse, child or children and father and mother of either or both spouses. These terms are synonymous with the terms "single family," "family" and "family unit."

INCIDENTAL COOKING - The use of cooking facilities which contain no more than two approved plates or two vented gas burners not exceeding six inches in diameter.

INFESTATION — The presence of insects, rodents, vermin or other pests within or around any building.

INSECTS — Means, but is not limited to bedbugs, houseflies, lice, bees, cockroaches, moths, silverfish, beetles, ants, termites, hornets, mosquitoes and wasps, and such members of the phylum arthropoda as spiders, mites, ticks, centipedes and wood lice. **[Added 9-24-2008 by Ord. No. 08-140]**

KITCHEN — Any room or part of a room used for the preparation or cooking of food.

Editor's note—The definition of "lodging house," which immediately followed this definition, was deleted June 14, 1995, by Ord. No. 95-050.

MANAGER — Any person who has charge, care or control of any building or premises or a part thereof in which any part is rented or for rent with or without the knowledge and consent of the owner.

MIXED USE — Any building containing one or more dwelling units or rooming units and also having a portion thereof used for nonresidential purposes.

MOTEL — As defined in the Hotel and Multiple Dwelling Law (N.J.S.A. 55:13A-3). **[Amended 6-14-1995 by Ord. No. 95-050]**

MULTIPLE DWELLING — Any dwelling containing more than two dwelling units.

NONRESIDENTIAL — Any property and premises or portions thereof, as, for example, business, industrial or storage buildings, which are used for purposes other than dwellings for the habitation of humans.

NUISANCE:

A. Any public nuisance shown as public law or in equity jurisprudence or as provided by the statutes of the State of New Jersey or the ordinances of the City of Jersey City, including this chapter.

B. Any attractive nuisance which may prove detrimental to the health or safety of children located in a building, on the premises of a building or upon an unoccupied lot, including but not limited to: abandoned wells, shafts, basements, excavations, abandoned iceboxes, refrigerators, motor vehicles, any structurally unsound fences or structures, lumber, trash, debris or vegetation, such as poison ivy, oak or sumac, which may prove a hazard for inquisitive minors or others.

C. Physical conditions dangerous to human life or detrimental to the health of persons who are on or near the premises where the conditions exist.

D. Overcrowding of a room or dwelling unit with occupants in violation of this chapter.

E. Insufficient ventilation or illumination in violation of this chapter.

F. Inadequate or insanitary sewage or plumbing facilities in violation of this chapter.

G. Insanitary conditions or anything offensive to the senses or dangerous to health in violation of this chapter.

H. Whatever renders air, food or drink unwholesome or detrimental to the health of human beings.

I. Fire hazards.

OCCUPANT — Any person over one year of age living, sleeping, cooking or eating in or having actual possession of a dwelling unit or rooming unit, or any person who works on the premises for any business located thereon.

OCCUPIABLE ROOM — A room or enclosed space designed for human occupancy in which large numbers of individuals congregate for amusement, educational, religious or similar purposes or in which occupants are engaged at labor; and which is equipped with exit, light and ventilation facilities specified in the applicable requirements of this chapter.

ONE-FAMILY DWELLING — Any dwelling containing only one dwelling unit or one dwelling unit and two rooming units with sufficient space and sleeping accommodations for only one person in each rooming unit and with or without incidental cooking facilities.

OWNER — Any person alone or jointly or severally with others:

A. Who has legal or equitable title to any premises, with or without accompanying actual possession thereof;

B. Who has equitable title and is either in actual possession or collects rents therefrom;

C. Who, as executor, executrix, trustee, guardian or receiver of an estate or as mortgagee or as vendee in possession, either by virtue of a court order or by agreement or voluntary surrender of the premises by the person holding the legal title, or as collector of rents, shall have charge, care or control of any dwelling, boardinghouse or lodging house; or any such person thus representing the person holding the equitable or legal title, all of whom under this chapter shall be bound to comply with the provisions hereof and any rules and regulations adopted pursuant thereto to the same extent as if they were the persons holding the legal or equitable title; or

D. Who is a lessee or assignee subletting or assigning any part or all of any dwelling, all of whom under this chapter shall have joint responsibility over the portion of the premises sublet or assigned.

PARTIES IN INTEREST — All individuals, associations and corporations who have interests of record in a building or lands and any who are in actual possession thereof.

PERSON REQUIRING SPECIAL CARE — Any person who does not suffer from such physical or mental incapacity as to be classified as a disabled person, but by reason of physical or mental limitations or advanced years does require a limited degree of care and attention to assure personal safety at all times.

PLUMBING — Includes all of the following supplied facilities and equipment: bathtubs, catch basins, drains, garbage disposal units, gas pipes, installed clothes-washing machines, installed dishwashers, installed gas clothes dryers, lavatories, showers, toilets, vents, waste pipes, water pipes and any other supplied plumbing fixtures, together with all connections to gas, sewer or water lines and water pipes, the lines or pipes themselves and lines utilized in conjunction with air-conditioning equipment.

PREMISES — A lot, plot or parcel of land, including any and all buildings and structures thereon.

PROVIDED or SUPPLIED — Furnished, supplied, paid or under the control of the owner or manager or his or her designee.

PUBLIC AUTHORITY - The Division of Construction Code Official or any officer who is in charge of any department, branch or agency of the city or of the County of Hudson or of the State of New Jersey responsible for the administration of building, fire, health or other regulations applicable to buildings in the city. **[Amended 8-13-1997 by Ord. No. 97-052]**

PUBLIC HALLWAY - A public corridor or space separately enclosed that provides common access to one or more exitways in any story of a building or to two or more residential units therein and is not within the exclusive control of one person or family.

PUBLIC OFFICER - The Director of the Division of Housing Preservation or his or her designee. **[Amended 8-13-1997 by Ord. No. 97-052; 9-23-2020 by Ord. No. 20-074]**

REGISTERED MAIL - Mail registered with or certified by the public postal authority for transmission to the addressee.

REPAIR - To restore to a safe, sound and acceptable state of operation, serviceability or appearance, all of which under this chapter shall be made with such materials and in such a workmanlike manner that it can be expected that they will last approximately as long as would new products originally installed.

REPLACE - To remove an existing item or portion of a building or structure, including but not limited to the electrical, heating and plumbing systems thereof and the components of which it is constructed; and to build or install a new item of the same, equivalent or better quality than the existing item when new; and should ordinarily be made where the item is incapable of repair or where repair would be more costly.

ROOMING HOUSES - Every building kept, used, maintained, advertised as or held out to be a place where sleeping accommodations are supplied for pay to transients or permanent guests in which from two to 14 rooms, inclusive, are rented, furnished or unfurnished, with or without meals for the accommodations of such guests.

ROOMING UNIT - Any room or group of rooms forming a single habitable unit other than a dwelling unit and which is rented or available for rent for sleeping purposes, with or without cooking facilities.

RUBBISH - Combustible or noncombustible waste materials, except garbage, and the term shall include, but not be limited to, the residue from the burning of wood, coal, coke and other combustible material, bedding, boxes, cartons, crockery, dust, excelsior, glass, leather, tin cans, metals, mineral matter, paper rags, rubber, tree branches, wood trimming and yard clippings. (See also Chapter 287, Solid Waste.)

STORY - That portion of a building included between the upper surface of any floor and the upper surface of the floor next above except that the topmost story of a building shall extend from the upper surface of its topmost floor to the ceiling or roof above.

SUPPLIED - Paid for, furnished or provided by or under the control of the owner or manager.

TENEMENT HOUSE - As defined by state statute, means any house or building or portion thereof which is rented, leased, let or hired out to be occupied or is occupied as the home or residence of three or more families, living independently of each other and doing their cooking upon the premises. This definition shall not apply to a detached dwelling house of not more than three stories that has central heating, is equipped for occupancy by three families living independently where the space is provided for at least one of such families and is not equipped with full cooking facilities; provided, however, that this exception shall not apply to any such dwelling house constructed or converted on or after September 1, 1959.

State law reference—Tenement defined, N.J.S.A. 34:6-121.

VENTILATION - The supply and removal of air to and from any space by natural or mechanical means.

VENTILATION, MECHANICAL - Ventilation by power-driven devices whose air-changing capacity is specified thereon.

VENTILATION, NATURAL - Ventilation by opening to outer air through windows, skylights, doors, louvers or stacks with or without power-driven devices.

WATER CLOSET - A toilet and its accessories.

WATER CLOSET COMPARTMENT - An enclosed space containing one or more toilets which also may contain one or more urinals and either one or more lavatories or one or more bathtubs, showers or combinations thereof.

WEATHERING - Deterioration, decay or damage caused by exposure to the elements.

ARTICLE II
Applicability

§ 254-5. Scope.

Every residential and nonresidential building and the premises on which it is situated in the city that is used or intended to be used for dwelling purposes or for business, commercial or industrial occupancy shall comply with the provisions of this chapter, whether or not such building shall have been constructed, altered or repaired before or after the adoption of this chapter, and irrespective of any permits or licenses which shall have been issued for the use or occupancy of the building or premises, for the construction or repair of the building or for the installation or repair of equipment or facilities prior to the effective date of this chapter. This chapter establishes minimum standards for the initial and continued occupancy and use of all such buildings and does not replace or modify standards otherwise established for the construction, repair, alteration or use of the building, equipment or facilities contained herein, except as provided in the next section of this article. Where there is mixed occupancy, the residential and nonresidential uses therein also shall be regulated by and subject to the provisions of this chapter.

§ 254-6. Conflicts with other laws; higher standard to prevail.

In any case where the provisions of this Property Maintenance Code impose a higher standard than set forth in any other applicable provisions of the Jersey City Code or ordinances to be incorporated into the Jersey City Code or under the laws of the State of New Jersey, then the standards set forth herein shall prevail; but if the provisions of this Property Maintenance Code impose a lower standard than any other provisions of the Jersey City Code or ordinances to be incorporated into the Jersey City Code or of the laws of the State of New Jersey then the higher standard contained in any other provision or ordinance or law shall prevail.

§ 254-7. Issuance and renewal of other permits and licenses.

After the date of enactment hereof, all licenses and permits shall be issued upon compliance with this Property Maintenance Code as well as with the provisions of the Jersey City Code or ordinance to be incorporated into the Jersey City Code under which licenses and permits are granted.

§ 254-8. Compliance required.

No license or permit or other certification of compliance with this chapter shall constitute a defense against any violation of any ordinance of the city which is applicable to any structure or premises, nor shall any provision herein relieve any owner, manager or occupant from complying with any other provision, nor any official of the city from enforcing any other provision.

§ 254-9. Duty to comply; permits.

A. General responsibility. The provisions of this chapter establish minimum standards for the continued occupancy and use of residential and nonresidential buildings, dwelling units and rooming units and shall not abrogate the responsibility of any person to comply with the provisions of any other chapter of the Jersey City Code with respect to any items for administration or decision concerning building, electrical, fire, health, plumbing or zoning matters or any New Jersey licensing statute or other pertinent state laws applicable to the premises he or she owns, manages or occupies.

B. Responsibility for securing permits before work commences. All repairs, alterations, additions or replacements of buildings, facilities or premises or any parts thereof that are required to bring such buildings, facilities or premises into compliance with this chapter shall not be started until appropriate municipal permits or state authorization for this work have been secured.

ARTICLE III
Administration

§ 254-10. Division of Construction Code Official. [Amended 8-13-1997 by Ord. No. 97-052]

To provide for the administration and enforcement of the provisions of this chapter, there is established in the Department of Housing, Economic Development and Commerce a Division of Construction Code Official, hereinafter referred to as the "Division." The Chief of the Division, hereinafter referred to as the "Chief," shall be the executive official in charge, and he or she shall carry out his or her duties under the direction of the chief administrative officer of the Department of Housing, Economic Development and Commerce. All inspections, regulations, enforcement and hearings on violations of the provisions of this chapter, unless expressly stated to the contrary as in the powers assigned to the Director of the Division of Construction Code Official, shall be under the direction and supervision of the Chief. He or she may appoint or designate other public officials or employees of the city to perform such duties as may be necessary for the enforcement of this chapter. This includes the functions of inspection and the holding of hearings.

Cross reference—See also Ch. 3, Administration of Government, § 3-75.

§ 254-11. Duties of Director of the Division of Construction Code Official. [Amended 8-13-1997 by Ord. No. 97-052]

A. The Director of the Division of Construction Code Official shall administer and enforce the provisions of this chapter pertaining to buildings alleged or determined to be unfit for human habitation, occupancy or use and Article IV and § 254-43.

B. The chief administrative officer of the Division of Construction Code Official shall be the Director thereof. The Director shall perform the specific duties assigned to him or her in Articles XII and XIV of this chapter in addition to the general duties assigned to him or her in § 254-10 of this article.

§ 254-12. Uniform Construction Code Act enforcing agency.

A. Whenever in this Property Maintenance Code the powers and duties of the Director of the Division of Construction Code Official are the same or similar to the powers and duties granted to the Uniform

Construction Code enforcing agency (N.J.S.A. 52:27D-119 et seq.), then said enforcing agency shall exercise and perform those powers and duties. **[Amended 8-13-1997 by Ord. No. 97-052]**

Cross reference—Uniform construction codes, Ch. 131.

B. Whenever the powers and duties of said Director are in conflict with the powers and duties of said enforcing agency, the powers and duties of said enforcing agency shall be paramount and supersede those of the Director.

C. The provisions of the State Uniform Construction Code Act (N.J.S.A. 52:27D-119 et seq.) and the rules and regulations of the State Commissioner of Community Affairs shall supersede any provisions in this Property Maintenance Code which are in conflict or which pertain to the same subject matter contained in the State Act and/or state rules and regulations.

§ 254-13. General standards. [Amended 8-13-1997 by Ord. No. 97-052]

The provisions of this chapter shall constitute the standards to guide the Chief and the Director of the Division of Construction Code Official in determining which buildings, dwellings, dwelling units, rooming units or premises in the city are in dangerous or blighted condition or are unfit for human habitation, occupancy or use.

§ 254-14. Rules and regulations. [Amended 8-13-1997 by Ord. No. 97-052]

The Chief hereby is authorized and empowered to promulgate such written rules and regulations as he or she may deem necessary for the proper administration and enforcement of this chapter; provided, however, that such rules and regulations shall not be in conflict with any of the provisions of this chapter or applicable statutes, nor in any way alter, amend or supersede any of the provisions thereof. The Chief shall file a certified copy of rules and regulations which he or she may promulgate in his or her office, in the office of the City Clerk and in the office of the chief administrative officer of the Division of Construction Code Official.

§ 254-15. Effect of rules and regulations.

Such rules and regulations promulgated by the Chief pursuant to this article shall have the same force and effect as the provisions of this chapter and the penalty for violations of the provisions of this chapter, as hereinafter provided.

§ 254-16. Inspections. [Amended 9-23-2020 by Ord. No. 20-074]

A. When inspections are to be made.

(1) All buildings and premises subject to this chapter shall be inspected from time to time by the enforcing officer of the city. Such inspections shall be made of residential premises between 8:00 a.m. and 8:00 p.m. and of nonresidential premises during the regular open hours of the business occupying the premises, unless one of the following conditions exists:

(a) The premises are not available during the foregoing hours for inspection.

(b) There is reason to believe that violations are occurring on the premises which can be apprehended and proven only by inspections during other than the prescribed hours or which require immediate inspection after being reported, such as failure to supply heat.

(c) There is reason to believe a violation exists of a character which is an immediate threat to health or safety.

(2) At the time of such inspections and upon proper identification, all rooms in the building and all parts of the premises are to be made available and accessible for such inspections and the owner, manager or occupant shall be requested to provide all arrangements necessary to facilitate the same. If any owner, manager or occupant refuses entry to the enforcing officer, the Chief, or the head of other departments or administrative units authorized to enforce sections of this Code or his or her designee, is hereby authorized to apply to a Judge of the Municipal Court for a search warrant as provided in Subsection B of this section.

B. Where entry by inspectors is refused.

(1) Search warrant or access warrant.

(a) In addition to the provisions of Subsection A of this section, the Chief shall, upon affidavit, apply to the Judge of the Municipal Court of the city for an administrative search warrant setting forth factually the actual conditions and circumstances that provide a reasonable basis for believing that a nuisance or violation of this chapter exists on the premises, and if the Judge is satisfied as to the matter set forth in the affidavit, he or she shall authorize the issuance of an administrative search warrant permitting access to and inspection of the premises on which the nuisance or violation may exist.

(b) In addition to the provisions of Subsections A(2) and B(1)(a) of this section, the Chief may, upon affidavit, apply to the Judge of the Municipal Court of the city for an administrative search warrant to conduct an area inspection, as that term is defined in § 254-4 of Article I, and the warrant shall be served by the Chief or his or her representative who shall be deemed to be law enforcement officers for this purpose.

(c) A warrant for access may be issued by the Judge upon affidavit of the Chief establishing grounds therefor pursuant to § 254-79 of Article XIII.

(d) The search warrant provisions of this chapter in no way shall abrogate the right of the enforcing officer to enter and inspect without a search warrant the exterior of all accessory structures and of all residential and nonresidential buildings and the surrounding grounds and all common interior areas of residential buildings and all public interior areas of nonresidential buildings.

(e) In applications for warrants in this section, the affidavit shall be prepared by the Chief or the enforcing officer with direct knowledge and the proposed form or warrant shall be prepared by and upon consultation with the Office of Municipal Prosecutor.

(2) Penalties.

(a) Where the Chief or his or her representative is refused entry or access or otherwise is impeded or prevented by the owner, occupant or manager from conducting an inspection of the

premises when there is reason to believe a violation exists of an emergency character which is an immediate threat to health or safety, and therefor, immediate entry and action is required to protect the public health and welfare, such person shall be in violation of this chapter and subject to the penalties provided for in the general provisions of the Jersey City Code [see § 1-25].

(b) Failure to permit entry under an administrative search warrant shall be a violation of this chapter which shall subject any person who refuses entry to the premises to the general penalty provisions of the Jersey City Code.

(c) In addition to the provision in Subsection B(2)(b) of this section, the Director of Housing Preservation may deem any refusal to permit entry under an administrative search warrant to be prima facie evidence that the premises in question are unfit for human habitation, occupancy or use and subject to the condemnation proceedings specified in Article IV of this chapter.

C. Petition for inspection. Whenever a petition is filed with the Chief by at least five residents of the city charging that any dwelling or dwelling unit is in violation of this chapter, the Chief forthwith shall cause the premises so charged to be inspected in the manner provided in this section of this article.

Cross reference—Obstruction of entry, Ch. 242, Art. IV.

§ 254-17. Notices of violation. [Amended 8-13-1997 by Ord. No. 97-052; 4-25-2018 by Ord. No. 18-020; 11-9-2022 by Ord. No. 22-091]

A. Procedure where violation discovered. Where a violation of this chapter hereunder is found to exist, a written notice from the Director of Code Compliance shall be served on the person or persons responsible for the correction thereof.

B. Contents of notice. The notice shall specify the violation or violations committed, what must be done to correct the same, a reasonable period of time not to exceed 30 days to correct or abate the violation.

C. Service of notice. Notice may be served personally or by mail addressed to the last known address of the person to be served. In the case of an occupant, notice may be posted upon the door of his or her dwelling unit or rooming unit. Where it is ascertained that the owner does not reside on the premises, the last known address shall be the address of the owner as shown in the office of the Tax Collector. If the last known address cannot be ascertained, the notice may be posted on the outside front entrance of the building. The Director of Code Compliance shall file and provide notice to any owner, manager or occupant of any violation at any address other than the last known address provided hereunder, if such other address is filed with the Director of Code Compliance personally or by certified mail addressed to the Director of Code Compliance. Service upon an owner, manager or occupant may also be attained by service of any notice upon a member of the family of the owner, manager or occupant. Date of service of the notice shall be determined, where service is by mail, as of the day following the day of mailing for notices to addresses within the city, and as of the third day after the day of mailing for notices to addresses outside the city. Where the day of service would fall upon a Sunday or other day when mail is not ordinarily delivered, then the day of service shall be the next regular delivery day.

D. Extensions of time. The Director of Code Compliance may extend the time for correction or abatement of the violation for one or more additional periods of time each not to exceed 30 days, except where major capital improvements or renovations are involved, in which instance the time for completion may be extended for additional periods each not to exceed 90 days beyond the expiration date of the original notice. Subject to the limitation in this paragraph, if an extension of time is requested, the owner or manager of the subject property shall provide a report to the Director of Code Compliance indicating the time necessary to correct or abate the violation and shall report on the status of any relocated tenants, if applicable.

E. Summary abatement in emergency matters. Where in the opinion of the Director of Code Compliance, the violation or condition existing on the premises is of such a nature as to constitute an immediate threat to the health or safety of the occupants unless abated without delay, and with the approval of the Municipal Prosecutor; either may abate the violation or condition immediately or order the owner, manager or occupant to abate the violation or condition within a period of time not to exceed three days. Upon failure to do so, the Director of Code Compliance may abate the condition or violation immediately thereafter. For purposes of this subsection, the Director of Code Compliance shall employ the necessary labor and materials to perform the required work as expeditiously as possible. Costs incurred in the performance of emergency work shall be paid by the City upon approval by the Director of the Department of Housing and Economic Development and Finance.

F. Any person ordered to perform emergency work shall comply with such order forthwith. Any affected person shall thereafter, upon appeal directed to the Construction Board of Appeals, be afforded a hearing provided the written application for appeal is filed no later than 20 days after the order to abate the condition was served. An application for appeal shall be based upon a claim that the condition existing on the premises did not constitute an imminent threat to the health and safety of the occupants warranting abatement within the time specified in the Director of Code Compliance's order. Appeals to the Construction Board of Appeals shall not stay an order of the Director of Code Compliance.

G. Cost of abatement to be a lien against premises.

(1) Where abatement of any condition or violation under Subsection E, requires expending City moneys, the Director of Code Compliance shall certify the costs thereof to the Municipal Council.

(2) The Municipal Council shall examine the certificate and, if found correct, by resolution cause the cost shown thereon to be charged against said properties.

(3) The amount so charged shall forthwith become a lien upon such properties and shall be added to and become part of the taxes next to be assessed and levied upon such properties, the same to bear interest at the same rate as taxes, and shall be collected and enforced by the same City officers and in the same manner as City taxes.

H. Referral of violations. Any violation or suspected violations of any relevant provisions of the Code discovered by a field representative shall be reported to the Director of Code Compliance who shall refer the violation or suspected violations to the official or agency responsible for the enforcement of such other provisions of the Code.

I. Where notice is not required prior to court proceedings.

(1) Notwithstanding the requirements of Subsections A, B and C of this section, violations which in the opinion of the Director of Code Compliance constitutes a nuisance, may be prosecuted without notice.

(2) Where the Director of Code Compliance has on two different occasions found violations by the same owner, manager or occupant on the same premises and has issued notices on each, upon discovering a third or subsequent violation by the same owner, manager or occupant on the same premises within the space of one year, whether of the same sections or of any other sections of this chapter, he or she may thereupon prosecute the offender by filing a complaint in the Municipal Court for said third or subsequent violation occurring within said period of one year without first providing notice and opportunity for a hearing by the Director of Code Compliance.

J. Effect of notice on owner. For the purpose of enforcement of this chapter, the service of a notice on an owner, whether or not the owner is also the manager, shall constitute notice of violations set forth therein until the violations are abated in conformity with this chapter and the other applicable provisions of the Jersey City Code.

K. Municipal Court prosecution. Upon the expiration of any period of abatement, or extension therefore, any violation of this chapter shall be prosecuted by summons pursuant to N.J. Ct. R. 7:2-2(a)(4). Nothing in this section shall be construed to limit the City's ability and right to file an action in any court of competent jurisdiction.

§ 254-18. Appeals.

Appeals from any decision of any officials regarding the manner of construction or materials to be used in the erection, alteration, rehabilitation or repair pertaining to this chapter shall be made to the Board of Appeals of the basic codes of the city in accordance with Chapter 1, General Provisions, of the Jersey City Code.

§ 254-19. Landlord to furnish list of violations to tenant. [Added 2-5-1980 by Ord. No. S-342]

A. Whenever a landlord receives a notice from the state agency of the city listing the violations which must be corrected, said landlord shall, within 10 days of the receipt of said notice, serve upon each tenant a copy of said notice. In such case, the landlord shall file with the Division of Construction Code Official proof of service of a copy of each said notice upon each tenant within 15 days of the receipt of said notice. Failure to serve a copy of said notice upon each tenant or failure to file a proof of service of said notice upon each tenant with the Division of Construction Code Official shall constitute a violation of this chapter and shall be punishable as such. [Amended 8-13-1997 by Ord. No. 97-052]

B. As soon as the landlord shall have abated any of the violations listed on any such notice, then the landlord shall obtain a statement of such abatement from the office which issued the notice of violations and shall furnish to each tenant a copy of said statement of abatement.

ARTICLE IV

Vacant Properties*

§ 254-20. Vacant structures; vacant lots; inspection; notice; hearings. [Amended 5-14-2014 by Ord. No. 14-045; 9-23-2020 by Ord. No. 20-074]

A. The Director of the Division of Housing Preservation on his or her own, or upon the filing of a petition by a public authority or by at least five residents of the City, shall make an inspection of any building believed to be unfit for human habitation, occupancy or use; and if a preliminary investigation discloses a basis for such charges, the Director of the Division of Housing Preservation or his or her designee thereupon shall serve upon the owner of the building and parties in interest in such a building, a notice stating the charges in that respect and setting a date for a hearing before the Director of Director of the Division of Housing Preservation not less than seven nor more than 30 days from the date of service of said notice. The owner and parties in interest shall be given the right to file an answer to the notice and to appear in person or otherwise and give testimony at the time and place fixed in the notice. The rules of evidence prevailing in the courts shall not be controlling in hearings before the Director of Housing Preservation. **[Amended 8-13-1997 by Ord. No. 97-052]**

B. The Director of the Division of Housing Preservation shall determine within 90 days after notice to the owner whether a building should be condemned and the owner directed to either repair or demolish the building. **[Added 4-22-1992 by Ord. No. 92-044]**

C. The Director of the Division of Housing Preservation on his or her own, or upon the filing of a petition by a public authority or by at least five residents of the City, shall make an inspection of any vacant lot and if a preliminary investigation indicates that lot is unkempt and should be added to the City's Vacant Lot Registry, then the Director of the Division of Housing Preservation or his or her designee shall serve upon the owner of the lot and parties in interest in the lot a notice stating the charges in that respect and setting a date for a hearing before the Director of the Division of Housing Preservation not less than seven nor more than 30 days from the date of service of said notice. The owner and parties in interest shall be given the right to file an answer to the notice and to appear in

***Editor's note**—Ord. No. 14-045, adopted May 14, 2014, amended the title of Art. IV.

person or otherwise and give testimony at the time and place fixed in the notice. The rules of evidence prevailing in the courts shall not be controlling in hearings before the Director of the Division of Housing Preservation.

D. The Director of the Division of Housing Preservation shall provide the Mayor and Council with quarterly reports on the status of all buildings and lots reported to his or her division as abandoned or unfit for human occupancy. Such report shall indicate the Housing Preservation Director's decision as to each such building. **[Added 4-22-1992 by Ord. No. 92-044]**

§ 254-21. Vacant or boarded structures. [Added 9-8-1988 by Ord. No. C-807; amended 5-14-2014 by Ord. No. 14-045]

A. Any residential or commercial building or structure in the City of Jersey City remaining vacant or boarded for a period exceeding six months shall be deemed a fire hazard and unsafe.

B. If any residential or commercial building or structure remains vacant or boarded for more than six months, the Director of Housing Preservation or his or her designee shall serve upon the owner, agent or person in control of the building or structure a written notice describing the building or structure and requiring the owner, agent or person in control of the building or the structure to abate this condition by taking one (1) of the following corrective measures within six (6) months of the date of written notification. **[Amended 9-23-2020 by Ord. No. 20-074]**

(1) Actual and legal occupancy of the building or structure, which occupancy shall be made only after obtaining a certificate of occupancy.

(2) Submission of a fully executed and binding contract of sale for the building, which contract shall contain a clause advising the prospective purchaser that occupancy must be achieved within six (6) months of the service of the written notice specified above.

(3) Demolition of the building or structure, upon obtaining the necessary demolition permit(s).

(4) Any other action required or necessary to render the building or structure safe and in a habitable condition.

C. Where a building or structure has been abandoned for a period exceeding six (6) months and ownership cannot be determined, the City shall institute appropriate legal action to acquire title to the building or structure pursuant to the police powers vested in the City of Jersey City and upon acquisition, the building or structure shall be maintained by the City in a condition compatible with the surrounding neighborhood until such time as said property is disposed of at public auction or as otherwise permitted by law.

§ 254-21.1. Purpose. [Added 9-14-2011 by Ord. No. 11-108; amended 5-14-2014 by Ord. No. 14-045]

The purpose of this Article IV is to require accountability from the owners of vacant buildings and lots within the City of Jersey City by establishing a system of registration and the maintenance plan

approval, and impose the fees to fund these efforts, which will protect public health, safety and general welfare of the citizens and improve unsightly neighborhoods, require secure structures, prevent structural deterioration, and protect neighborhood property values and safety.

§ 254-21.2. Definitions. [Added 9-14-2011 by Ord. No. 11-108; amended 5-14-2014 by Ord. No. 14-045; 1-23-2020 by Ord. No. 20-004]

The following words, terms and phrases, when used in this article, shall have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning.

ABANDONED PROPERTY defined in accordance with N.J.S.A. 55:19-78 means improved real property that has not been legally occupied for six months and which meets any one of the criteria set forth in N.J.S.A. 55:19-78.

DIVISION OF HOUSING PRESERVATION is the City division charged with enforcing the provisions of this Ordinance. **[Amended 9-23-2020 by Ord. No. 20-074]**

ENFORCEMENT OFFICIAL means any duly authorized City employee or designated representative.

EVIDENCE OF VACANCY means any condition that on its own, or combined with other conditions present would lead a reasonable person to believe that the property is or has been vacant for six or more months. Such conditions include, but are not limited to, overgrown or dead vegetation, accumulation of newspapers, circulars, flyers or mail, past due utility notices or disconnected utilities, accumulation of trash, junk or debris, the absence of window coverings such as curtains, blinds or shutters, the absence of furnishings or personal items consistent with residential habitation, statements by neighbors, delivery agents, or government employees that the property is vacant or abandoned.

OWNER means any person, co-partnership, agent, operator, firm, association, corporation, or fiduciary having a legal or equitable interest in the property; or appears oh the official records of the State, country, or municipality as holding title to the property; or otherwise exercises control of the property, including the trustee or guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.

PROPERTY means any unimproved or improved real property, or portion thereof, located in the City of Jersey City, including the buildings or structures located on the property regardless of condition.

VACANT BUILDING means any building used or to be used as a residence which is (i) not legally occupied or (ii) at which substantially all lawful construction operations or residential occupancy has ceased, and which is in such condition that it cannot legally be re-occupied without repair or rehabilitation; provided, however, that any property with all "building systems" in working order that is also being actively marketed by its owner for sale or rental, shall not be deemed vacant.

VACANT LOT means a platted or unplatted parcel of land, classified by the municipal assessor as class 1 and described as vacant land on the most recent tax assessor's list.

§ 254-21.3. General requirements for vacant buildings and lots. [Added 9-14-2011 by Ord. No. 11-108; amended 5-14-2014 by Ord. No. 14-045; 9-23-2020 by Ord. No. 20-074]

A. Sixty days after the effective date of the ordinance from which this article derives or 30 days after a building or lot becomes vacant, the owner shall file a registration statement for each such vacant building or lot with the Division of Housing Preservation on forms provided for such purposes. The registration shall remain valid for one year. The owner shall be required to renew the registration annually as long as the building or lot remains vacant or abandoned and shall pay a registration or renewal fee in the amount prescribed in § 254-21.9.

B. The owner shall notify Housing Preservation within 30 days of any change in the registration information by filing an amended registration statement on a form for such purpose.

C. The registration statement shall be deemed prima facie proof of the statements therein contained in any administrative enforcement proceeding or court proceeding instituted by the City of Jersey City against the owner or owners of the property.

§ 254-21.4. Registration requirements for vacant buildings and lots. [Added 9-14-2011 by Ord. No. 11-108; amended 5-14-2014 by Ord. No. 14-045; 1-23-2020 by Ord. No. 20-004]

A. The owner of a vacant building(s) or lot(s) shall provide the following information to the Division of Housing Preservation on the registration form or form(s) prescribed by the Housing Preservation: **[Amended 9-23-2020 by Ord. No. 20-074]**

(1) Name, address, email address and contact telephone number of the owner; the owner's address must include a street address; a post office box is not acceptable;

(2) Name, address, email address and contact telephone number of any local agent(s) or representative for the building or lot;

(3) Name, address, email address and contact telephone number of the person assigned to the property for the security and maintenance of the building or lot;

(4) Common address and tax assessor's block and lot designation of the building or lot;

(5) If a vacant building, the date on which the building became vacant;

(6) If a vacant building, proof of utility (gas, electric, water) connections or disconnections; and

(7) Any other information reasonably required by the City to ensure the safety of all persons and to prevent neglect.

(8) Any government entity that owns a vacant building or lot will be required to register with Jersey City, but the registration fee shall be waived.

(9) By designating an authorized agent under the provisions of this section, the owner consents to receive any and all notices of code violations concerning the registered vacant building or lot and all process in any court proceeding or administrative enforcement proceeding brought to enforce

code provisions concerning the registered building or lot by service of the notice of process on the authorized agent. Any owner who has designated an authorized agent under the provisions of this section shall be deemed to consent to the continuation of the agent's designation for the purposes of this section until the owner notifies the City of a change of an authorized agent or until the owner files a new annual registration statement.

(10) The owner is required to update the form within 30 days of a change of any information contained within the form.

(11) The registration statement shall be deemed prima facie proof of the statements therein contained in any administrative enforcement proceeding or court proceeding instituted by the City of Jersey City against the owner or owners of the vacant building or lot.

(12) An enforcement official may identify vacant lots through his/her routine inspection process as well as through notification by residents, or other community groups that a lot may be eligible for inclusion on the registry. Notice will be served upon, or sent by mail, to the owner and will be deemed received by the owner, upon personal delivery, or five days after service by first class mail.

(13) The Director of the Division of Housing Preservation shall provide the Mayor and Council with quarterly reports on the status of all vacant lots.

B. The following vacant lots shall be exempt from the registration requirement:

(1) Contiguous with a dwelling or multiple dwelling owned by the same person or entity and used by the occupants of the dwelling or multiple dwelling for residential purposes;

(2) Contiguous with a mixed use or nonresidential property and used by the occupants of the property or business in connection with their occupancy of the property;

(3) Owned by a Board of Public Utility regulated utility company and utilized by such utility to provide service;

(4) Owned by a tax-exempt educational or religious organization and used exclusively for tax-exempt activity.

§ 254-21.5. Vacant building inspection. [Added 9-14-2011 by Ord. No. 11-108; amended 5-14-2014 by Ord. No. 14-045]

After filing a registration statement or a renewal of a registration statement and upon reasonable notice, the owner of any vacant building shall provide access to the city to conduct an exterior and interior inspection of the building to determine compliance with the municipal code, during the period covered by the initial registration or any subsequent renewal.

§ 254-21.6. Requirements for owners of vacant buildings. [Added 9-14-2011 by Ord. No. 11-108; amended 5-14-2014 by Ord. No. 14-045; 8-20-2014 by Ord. No. 14-086]

The owner of any building that has become vacant, and any person maintaining, operating or collecting rent for any such, building shall, within 30 days:

(1) Enclose and secure the building against unauthorized entry in accordance with the applicable provisions of the Code of the City of Jersey City and as per the specifications established by the Department of Housing and Urban Development (HUD) for securing vacant buildings.

a. The securing of the building shall include the boarding up of all windows/doors/garages (except the front door through which access to the interior of the building is made) with unsanded exterior-grade CDX plywood painted white on the outside. All board-ups must meet the approval of the Director of HCE or his or her designee.

b. Plywood thickness should be one-half of an inch for window openings, five-eighths of an inch for door openings and three-quarters of an inch for sliding door and French door openings.

c. Plywood is to be cut to size to fit snugly against the blind stop of the window. Where no blind stops exist plywood shall be cut to fit snugly in the opening.

d. All plywood shall be cut and installed so that the grain of the plywood runs in the same direction as the long run of the opening. All plywood shall be installed in one piece whenever possible.

e. 2 × 4-inch lumber planks shall be attached with 10d common nails or screws as appropriate.

f. 2 × 4-inch lumber planks should be graded and should be a minimum of 16 inches longer than the width of the plywood cover and 2 × 4-inch lumber planks are to be drilled with one-half-inch diameter holes that line up with the holes in the plywood covers.

g. Hardware shall be cadmium plated or galvanized steel, three-eighths-inch or one-half-inch diameter and of sufficient length to extend from the outside through the 2 × 4 brace laid flat from wall to wall across the opening plus metal washer and nut with a minimum three-thread exposure after tightening. Each bolt shall have one flat washer on the outside of the boarding. Bolts shall be tightened to the maximum extent without damaging the wood. Bolts shall be inserted with tire head on the exterior side of the boarding and nuts on the inside of the brace.

(2) Post a sign affixed to the building indicating the name, address and telephone number of the owner, the owner's authorized agent for the purpose of service of process (if designated pursuant to this Chapter) and the person responsible for day-to-day supervision and management of the property, if such person is different from the owner or authorized agent. The sign shall be of a size and placed in such a location so as to be legible from the nearest public street or sidewalk, whichever is nearer, but shall be no smaller than 18" × 24" and shall state "WARNING: THIS BUILDING IS SECURED PURSUANT TO CHAPTER 254 OF THE JERSEY CITY MUNICIPAL CODE. ANYONE ENTERING THIS BUILDING WITHOUT AUTHORIZATION WILL BE SUBJECT TO ARREST"; and

(3) Secure the building from unauthorized entry and maintain the sign until the building is again legally occupied or demolished or until repair or rehabilitation of the property is complete.

§ 254-21.7. Vacant building deemed abandoned building; list of abandoned buildings to be maintained by the Director of Housing and Economic Development; remedies for abandoned building. [Added 9-14-2011 by Ord. No. 11-108; amended 5-14-2014 by Ord. No. 14-045; 9-23-2020 by Ord. No. 20-074]

If the Director of Housing Preservation determines that a vacant building as defined herein has been abandoned as defined in N.J.S.A. 55:19-81, the Director shall place the building on a list of abandoned buildings to be maintained by the Director in accordance with N.J.S.A. 55:19-55. The abandoned building list shall become effective either upon the expiration date of the period for appeal with respect to any building placed on the list or upon the denial of an appeal brought by the owner. Thereafter, the municipality may pursue any statutory remedy with respect to buildings on the abandoned building list, including the sale of tax sale certificate subject to the condition that the purchase or assignee shall be obliged to complete any rehabilitation or repairs required to render the building eligible for removal from the abandoned building list.

§ 254-21.8. Requirements for owners of vacant lots. [Added 5-14-2014 by Ord. No. 14-045; 1-23-2020 by Ord. No. 20-004]

The owner of any vacant lot and any person maintaining such a lot shall within 60 days:

(1) Register the vacant lot of which they are in possession.

(2) With the exception of owners defined in § 254-21.4.B, enclose and secure the property against unauthorized entry with a six-foot tall fence in accordance with § 345-67, and with any other applicable provisions of the Code of the City of Jersey City.

(3) Ensure that all bushes and trees are trimmed and that they do not interfere with neighboring properties.

(4) Ensure that grass does not exceed 12 inches in height and that all grass clippings are removed from the lot when the grass is cut.

(5) Lots must be clear of all garbage, litter and debris.

(6) With the exception of owners defined in § 254-21.4.B, vacant lots must be clear of all vehicles: cars, boats, campers, etc.

(7) All sidewalks bordering vacant lots must be maintained and be cleared of snow, ice, tripping hazards, obstructions, garbage, litter and debris.

(8) Repair broken or open fences.

(9) With the exception of owners defined in § 254-21.4.B, a sign shall be posted on the fence erected pursuant to § 254-21.8(2) herein in a conspicuous place so as to be clearly visible to the public. The sign shall be maintained by the owner in good repair and lettering. The sign shall be three feet by five feet on weatherproof white board with black lettering (letters being one inch in height) and shall contain the following information:

(a) Lot street address;

(b) Maintenance company;

(c) Maintenance company email address; and

(d) Maintenance company telephone number.

(10) The owner or owner's agent shall perform regular weekly inspections of the vacant lot to ensure compliance with the requirements of this section.

Editor's note—Ord. No. 14-045, adopted May 14, 2014, amended the Code by repealing former § 254-21.8, and adding a new section. Former § 254-21.8 pertained to fees, and derived from Ord. No. 11-108, adopted September 14, 2011.

§ 254-21.9. Reserved.

Editor's note—Ord. No. 20-004, passed January 23, 2020, amended the Code by repealing former § 254-21.9 in its entirety. Former § 254-21.9 pertained to fees, and derived from Ord. No. 14-045, passed May 14, 2014; and Ord. No. 18-060, passed June 13, 2018.

§ 254-21.10. Violations and penalties. [Added 5-14-2014 by Ord. No. 14-045; 1-25-2017 by Ord. No. 17-005]

Any person violating any of the provisions of this chapter shall, upon conviction, be punished as provided for in Chapter 1, General Provisions, Section 1-25; provided, however, that the minimum penalty for a violation of this chapter shall be a fine of one hundred dollars ($100.00).

ARTICLE V
Electrical, Light and Ventilation Standards

§ 254-22. Compliance required.

No person shall occupy or let to another for occupancy any dwelling or dwelling unit for the purpose of living therein or any nonresidential building or any part thereof for any business, commercial, governmental, industrial, institutional or other human use which does not comply with the following requirements.

§ 254-23. Electrical facilities.

A. Residential.

(1) Electrical service generally. Every dwelling, dwelling unit and rooming unit shall be properly connected to and be provided with electric power through safely insulated conduits conforming to Chapter 131, Uniform Construction Codes.*

(2) Circuits. Overloading of circuits is prohibited. Where such violation exists, the owner shall be required either to install a line or lines of sufficient capacity to absorb the peak seasonal load to which such line or lines are subjected or to install a fusestat or fusestats that will limit the use of such existing line or lines to the properly rated capacity.

*Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

(3) Fuses and protective devices. Maximum fuse sizes consistent with safety shall be posted conspicuously on the inside cover of all fuse boxes and no fuse shall be installed there in excess of the stated maximum. Fusestats shall be installed in any fuse box located within a dwelling unit or rooming unit in the exclusive possession of occupants other than the owner.

(4) Outlets and fixtures. Every electrical outlet and fixture shall be properly installed and maintained in good safe condition so as not to cause a fire or electrical shock hazard and shall be properly connected to the source of power. No ceiling or wall fixtures shall be used to supply power to equipment other than that for which these are designed.

(5) Wiring. Insulation shall be provided for all wiring and cables and shall be kept in good repair. No loose or temporary wiring shall be used except extension cords six (6) feet in length or less that are in good and safe condition, run directly from portable fixtures or appliances to convenience outlets, and do not lie under rugs or other floor coverings nor extend through doorways, transoms, holes or other openings through structural elements.

(6) Electrical outlets in habitable rooms. There shall be at least two (2) permanently installed remote wall-type double-electric convenience outlets in every habitable room. In lieu of this, each room must contain at least one (1) permanently installed wall-type double-electric convenience outlet and one (1) overhead light fixture.

(7) Light fixtures for bathrooms and water closet compartments. Every bathroom and water closet compartment shall be provided with at least one (1) permanently installed ceiling or wall-type electric light fixture and a switch and wall plate so located that there is no danger of short-circuiting from water from other bathroom or water closet facilities or from splashing of water.

B. Nonresidential.

(1) Electrical service generally. Electrical power through safely insulated conduits conforming to Chapter 131, Uniform Construction Codes, shall be supplied to nonresidential buildings regularly utilized for business, commercial, governmental, industrial or institutional work and activities and to garages designed for use by four (4) or more vehicles.*

(2) Lighting of bathrooms and water closet compartments. Every bathroom and water closet compartment shall be provided with permanently installed, artificial ceiling or wall-type electric lighting fixtures with a switch and wall plate so located and maintained that there is no danger of short-circuiting from water from other bathroom facilities or from splashing of water.

(3) Lighting of common spaces other than habitable rooms, bathrooms and water closet compartments.

(a) All nonresidential buildings, including the garages required to have electric service under Subsection B(1) of this section, also shall be provided with

*__Editor's note__—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

permanently installed, artificial lighting fixtures. All such fixtures shall be operable from a switch located near the point of ingress to the interior of the space lighted. All portions of the premises which are utilized regularly for work and activities shall be illuminated by at least five (5) footcandles, that is five (5) lumens or one (1) watt per square foot of floor area measured in the darkest portions thereof. All portions of the premises other than common means of passage that are used occasionally and incidentally by occupants of the premises shall be illuminated by at least three (3) footcandles; that is, three (3) lumens or one-half (½) watt per square foot of floor area measured in the darkest portions thereof.

(b) Lighting of hallways, stairways, landings and other spaces used by occupants in common as a normal means of passage shall be sufficient to provide at least five (5) footcandles; that is, five (5) lumens or one (1) watt per square foot of floor area measured in the darkest portion. Light switches for stairs and hallways shall be readily accessible to occupants using the same except where janitorial service is provided and the artificial lighting for hallways and common areaways is supplied from a master control switch.

(4) Overloading of circuits is prohibited. Where such a violation exists, the owner shall be required either to install a line or lines of sufficient capacity to absorb the peak seasonal load to which such line or lines are subjected or to install a fusestat or fusestats that will limit the use of such existing line or lines to their proper, rated capacity.

(5) Fuses and protective devices. Maximum fuse sizes consistent with safety shall be posted conspicuously on the inside cover of all fuse boxes and no fuse shall be installed therein in excess of the stated maximum. Fusestats shall be installed in any fuse box located in any part of the premises which is in the exclusive possession of occupants other than the owner.

(6) Outlets and fixtures. Every electrical outlet and fixture shall be properly installed and maintained in good and safe condition so as not to cause a fire or electrical shock hazard and shall be properly connected to the source of power. No ceiling or wall fixture shall be used to supply power to equipment other than that for which these are designed.

(7) Wiring. Insulation shall be provided for all wiring and cables and shall be kept in good repair. No loose or temporary wiring shall be used except extension cords six (6) feet in length or less that are in good and safe condition, run directly from portable fixtures or appliances to convenience outlets, and do not lie under rugs or other floor coverings, nor extend through doorways, transoms, holes or other openings through structural elements.

§ 254-24. Lighting and ventilation.

A. Residential.

(1) Habitable rooms.

(a) Every habitable room shall have at least one (1) window or skylight facing directly to the outdoors except as provided hereinafter. The minimum total window area, measured between stops, for every habitable room shall be ten percent (10%) of the floor area or twelve (12) square feet, if the latter area is greater. Whenever the only window in a room is the skylight-type window in the top of such room, the total window area of such skylight shall equal at least fifteen percent (15%) of the total floor area of such room.

(b) Whenever walls or other portions of structures face a window of any such room and such light obstructing structures are located less than three (3) feet from the window and extend to a level above that of the ceiling of the room such a window shall not be deemed to face directly outdoors and shall be included in calculating the required minimum window area.

(c) Every habitable room shall have at least one (1) window or skylight which can be opened easily or such other device as will adequately ventilate the room. The total of openable window area in every habitable room shall be equal to at least fifty percent (50%) of the minimum window area size, as hereinabove provided, except where there is supplied some other approved device affording adequate ventilation.

(d) In any row house constructed prior to 1951 and not used for boardinghouse or lodging house purposes, any interior room not having its own source of natural light and ventilation may be used for living purposes if it contains equivalent artificial means of light [six (6) footcandles per square foot over the area of the room measured thirty (30) inches above floor level at the center of the room] and a mechanical means of ventilation, whose capacity is marked clearly thereon, that provides two (2) air changes per hour or one-half (½) of a cubic foot per minute per square foot for each habitable room other than a kitchen and three (3) air changes per hour, or one and one-half (1½) cubic feet per minute per square foot for a kitchen.

(2) Bathrooms and water closet compartments. Every bathroom and water closet compartment shall comply with lighting and ventilation requirements for habitable rooms contained in Subsection A(1) of this section, except that the total window area or skylight area shall be four (4) square feet, not twelve (12) square feet, if this figure is greater than the specified percentage of the total floor area, and with the further exception that no window or skylight shall be required in adequately ventilated bathrooms and water closet compartments equipped with a ventilation system providing at least six (6) air changes per hour or one and one-half (1½) cubic feet per minute per square foot, whose capacity is marked clearly thereon, and which is operated either continuously or automatically when the room is in use.

(3) Common spaces other than habitable rooms, bathrooms and water closet compartments.

(a) Every portion of each cellar, furnace room, utility room, hall, landing, staircase and all similar nonhabitable space in a dwelling shall have artificial light available at all times that shall be sufficient to provide an illumination of at least

five (5) footcandles; that is, five (5) lumens or one (1) watt per square foot of floor area measured in the darkest portion thereof.

(b) Every portion of any interior or exterior passageway or staircase common to three (3) or more families in a dwelling shall be illuminated at all times with light of at least five (5) footcandles; that is five (5) lumens or one (1) watt per square foot of floor area measured in the darkest portion of the normally traveled stairs and passageways. In dwellings comprising two (2) dwelling units, such illumination shall not be required at all times if separate switches for the control of such light are provided at points convenient and readily accessible to each dwelling unit.

(4) Public passageways.

(a) Every public hall, stairway and passageway in every multiple dwelling, boardinghouse and lodging house shall be ventilated adequately by the natural means specified below or by a ventilating system providing at least one (1) air change per hour [one-fourth (¼) cubic foot per minute per square foot] and whose capacity is marked clearly thereon.

(b) Any of the specified building types meeting the pertinent standard or standards listed below shall be considered ventilated adequately by natural means:

[1] A building three (3) stories or thirty (30) feet in height or less with front entrance door not less than thirty (30) inches in width and six (6) feet eight (8) inches in height.

[2] A building over three (3) stories or thirty (30) feet in height with hall, stairway and/or passageway window or windows whose total area is equal at least to ten percent (10%) of the total floor area of said hall, stairway and/or passageway.

[3] A building six (6) stories in height or less served by a skylight with a minimum openable area of forty (40) square inches.

(5) Utility spaces. Utility spaces which contain heat producing, air-conditioning and other operating mechanical equipment shall be ventilated to the outer air and air from such spaces shall not be recirculated to other parts of the building.

(6) Special spaces. Natural ventilation of spaces such as attics, basements, cellars and enclosed basementless spaces shall be provided by opening of sufficient space to overcome dampness and minimize the effect of conditions conducive to decay and deterioration of the structure and to prevent excessive heat in attics.

B. Nonresidential.

(1) Occupiable rooms.

(a) Every occupiable room shall contain light transmitting media opening to the sky or on a public street, yard or court that are adequate to provide an average illumination of six (6) footcandles over the area of the room measured at a height of thirty (30) inches above floor level in the center of the room, or an alternate

artificial method or device that will provide the equivalent minimum amount of light.

(b) Every occupiable room shall contain ventilating skylights, monitors, louvers, windows, transoms, doors or other natural means of ventilation capable of providing a volume of four (4) air changes per hour [one and one-half (1½) cubic feet per minute per square foot] if the room contains less than one thousand (1,000) cubic feet per individual, (2) air changes per hour [one-half (1½) cubic feet per minute per square foot] if the room contains one thousand (1,000) cubic feet or more per individual or an alternate mechanical ventilating device, whose capacity is marked clearly thereon, that will provide the equivalent minimum amount of air.

(2) Public passageways. Hallways shall have at least one (1) window opening directly on a street or on a required court or yard in each story, located so that light penetrates the full length of the hallway, with additional windows for each change of direction of the hallway; or the equivalent artificial lighting shall be provided.

(3) Utility spaces. Utility spaces which contain heat producing, air-conditioning and other operating mechanical equipment shall be ventilated to the outer air and air from such spaces shall not be recirculated to other parts of the building.

(4) Special spaces. Natural ventilation of spaces such as basements, cellars, loft areas and enclosed basementless spaces shall be provided by openings of sufficient size to overcome dampness and minimize the effect of conditions conducive to decay and deterioration of the structure and to prevent excessive heat in lofts.

ARTICLE VI
Minimum Standards for Basic Equipment and Facilities

§ 254-25. Compliance required.

No person shall occupy or let to another for occupancy any dwelling or dwelling unit for the purpose of living therein or any nonresidential building or any part thereof for any business, commercial, governmental, industrial, institutional or other human use which does not comply with the following requirements.

§ 254-26. Residential bathroom, kitchen and cooking facilities.

A. Dwelling units.

(1) Every dwelling unit shall have a bathroom within it which affords privacy to a person inside said room; contains a bathtub or shower, wash basin and flush water closet and complies with such other requirements as are set forth elsewhere in this Code unless the dwelling unit existed prior to February 24, 1960. Any dwelling unit in existence before that date may have the bathtub or shower in one (1) room and the flush water closet and wash basin in another; so long as both rooms are located within the dwelling unit, afford privacy to any person within either room and comply with all

other requirements set forth elsewhere in this chapter. Where there are more than eight (8) occupants in a dwelling unit, said unit shall have two (2) bathrooms.

(2) Every dwelling unit shall be equipped with private kitchen fixtures located in one (1) room which shall include a supplied kitchen sink and a gas or electric kitchen stove that shall be supplied by the owner or the tenant dependent upon the rental agreement, and the room or part of a room in which said fixtures are located shall comply with such other requirements as are set forth elsewhere in this chapter.

(3) In the event that the tenant provides the gas stove or the electric stove, he or she shall be responsible for having it installed properly and maintained in a safe, sanitary and operable condition.

(4) Every kitchen stove in every dwelling unit shall include at least two (2) top burners and an oven, shall be in good order and repair and shall be properly connected to the appropriate utility system.

(5) Every bathtub, shower, flush water closet, kitchen sink and wash basin in every dwelling unit shall be in good working condition and repair and properly connected to a water and sewer system.

(6) Every bathtub, shower, kitchen sink and washbasin in every dwelling unit shall be properly connected with both hot and cold water lines.

B. Minimum sanitary facilities for all cooking. No cooking, including incidental cooking, shall be permitted in any dwelling unit or rooming unit, except as provided in Subsection A(3) of this section, unless it contains the following minimum sanitary equipment and facilities:

(1) A kitchen sink of nonabsorbent impervious material and a drainboard of appropriate materials.

(2) A tenant-supplied waterproof, washable container, including a tight-fitting cover of metal or other approved material, for the temporary storage and disposal of garbage.

(3) A refrigerator for the storage of food containing at least five (5) cubic feet of storage space shall be supplied by the owner or tenant depending upon the rental agreement, and shall be maintained in good working condition and repair and in a clean state. If the tenant supplies the refrigerator, he or she shall be responsible for maintaining it in good working condition and repair. The tenant shall be responsible for maintaining the refrigerator in a clean state whether it is supplied by him or her or by the owner.

C. Community cooking facilities. Cooking facilities serving more than one (1) dwelling unit or one (1) rooming unit, in which incidental cooking is permitted, or any combination thereof shall not be permitted, except nothing herein shall be construed to prohibit the operation of establishments subject to licensing.

§ 254-27. Heating facilities; duty to supply heat.

A. Residential. **[Amended 9-22-1983 by Ord. No. MC-459; 9-25-1986 by Ord. No. C-303; 10-23-1986 by Ord. No. C-322; 8-18-1988 by Ord. No. C-788; 12-16-2020 by Ord. No. 20-102]**

(1) Supplied heating facilities.

(a) Every dwelling unit shall contain supplied heating facilities which are installed properly, are maintained in safe and good working condition and are capable of maintaining a minimum inside temperature of at least 68 degrees Fahrenheit between the hours of 6:00 a.m. to 11:00 p.m. and at least 65 degrees Fahrenheit between the hours of 11:00 p.m. to 6:00 a.m. whenever the outside temperature falls below 55 degrees Fahrenheit from October 1 of each year to the next succeeding May 1. At times other than those specified interior units of dwelling space shall be maintained at least at 55 degrees Fahrenheit whenever the outside temperature falls below 40 degrees Fahrenheit. The temperature shall be read at a height of 30 inches above floor level at the center of the room.

(b) These facilities may be supplied by the owner or the tenant based on the rental agreement.

(c) Heating facilities in properties containing four units or more shall be inspected biennially, once every two years. Such inspection shall be by a licensed plumber, licensed heating contractor or an employee of a gas utility company certified as qualified to make such inspections. Each inspection shall include such tests and visual inspections as are necessary to determine whether there is any gas leak at the premises, whether there is any defective equipment and whether there are unsafe conditions or unsafe equipment present. Such inspection shall be in addition to any inspection or maintenance requirements set forth by the State of New Jersey.

(d) The person, firm or corporation making the inspection and the owner or a person in charge of the premises shall each keep a copy of the inspection record until the next biennial inspection. The owner or person in charge of the premises shall exhibit a copy of the inspection report to any city inspector on demand.

(e) If any unsafe conditions or unsafe equipment are found, the inspector shall apply a red tag in a clearly visible location at or near the heater, furnace or thermostat, stating substantially as follows:

WARNING: This equipment is unsafe to use. Do not attempt to light or turn on this equipment until complete repairs have been made and this warning tag has been removed by an authorized inspector. For information telephone (telephone number to be supplied.)

(2) Where central heating required. Decentralized heating systems now in use may be continued in use in accordance with Subsection A(1)(a) and (b) above, provided that the above mentioned decentralized heating systems conform with all other applicable codes and standards.*

*__Editor's note__—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

(3) Facilities required in lieu of central heating. All dwelling units and rooming units not having central heating shall be permitted to be heated (in the interim) by supplied space heaters.

(4) Every space heater shall comply with all of the following requirements:

(a) Every space heater burning gaseous, liquid or solid fuels shall be permanently installed.

(b) Every space heater burning gaseous, liquid or solid fuels shall be properly vented to a chimney, duct or flue leading to outdoor space.

(c) Every space heater shall have a permanently affixed, fire resistant panel beneath it.

(d) Every space heater located within two (2) feet of a wall shall be equipped with insulation sufficient to prevent overheating of the wall.

(e) Every space heater smoke pipe shall be equipped with guards, properly constructed of nonflammable material, at any point where the pipe goes through a ceiling, partition or wall.

(f) Every space heater shall comply with all the requirements of Chapter 131, Uniform Construction Codes, and electrical space heaters must meet the standards set by the Middle Department Association of Fire Underwriters.*

(g) The use of any unvented space heater burning gaseous, liquid or solid fuels is prohibited.

(h) Any merchant selling unvented space heaters burning gaseous, liquid or solid fuels must display a sign, within three feet of the space heater display and in full view of customers, bearing the words "Warning: the City of Jersey City Fire Prevention Bureau warns that the use of unvented space heaters burning gaseous, liquid or solid fuels is hazardous, and the use of these heaters is banned according to § 254-27A(4) of the Jersey City Code." The letters used on this sign must be no smaller than two inches in height and one inch in width.

(5) The use of portable heating equipment employing flame and solid, liquid or gaseous fuels is prohibited.

(6) The use of portable electric space heaters in bathrooms or water closet compartments is prohibited.

(7) When the owner or manager is required to supply heat.

(a) From October 1 to May 1, every dwelling unit, room unit, bathroom and water closet compartment shall be supplied with sufficient heat to maintain therein a minimum temperature of 68 degrees Fahrenheit between the hours of 6:00 a.m. and 11:00 p.m. and 65 degrees Fahrenheit between the hours of 11:00 p.m. and 6:00 a.m. whenever the temperature falls below 55 degrees Fahrenheit.

(b) From May 1 to October 1, every dwelling unit, rooming unit, bathroom and water closet compartment shall be supplied with sufficient heat to maintain therein a minimum temperature of see 55 degrees Fahrenheit whenever the outside temperature falls below 40 degrees Fahrenheit.

***Editor's note**—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

(c) Whenever a dwelling is heated by means of a furnace, boiler or other apparatus under the control of the owner or manager of the dwelling, such owner or manager, in the absence of a written contract to the contrary, shall be deemed to have contracted, undertaken or bound himself to furnish heat in accordance with the provisions of Subsection A(1) through (7) of this section to every dwelling unit and rooming unit which contains radiators, furnace heat duct outlets or other heating apparatus outlets.

B. Nonresidential.

(1) Supplied heating facilities. Every business, commercial, governmental, industrial and institutional building shall contain supplied heating facilities which are properly installed, are maintained in safe and good working condition and are capable of maintaining a minimum inside temperature of 70 degrees Fahrenheit in all occupiable rooms, bathrooms and water closet compartments when the outside temperature is at or above zero degrees Fahrenheit. The temperature shall be read at a height of 30 inches above the floor level at the center of the room. Occupiable rooms located in buildings where it is not feasible to heat them to a temperature of 70 degrees Fahrenheit, because of the nature of the business, are exempted from this requirement.

(2) Portable heating equipment prohibition. The use of portable heating equipment employing flame and solid, liquid or gaseous fuel is prohibited.

(3) When the owner or manager is required to supply heat.

(a) From October 1 to May 1, every occupiable room, bathroom and water closet compartment shall be supplied with sufficient heat to maintain therein a minimum temperature of 70 degrees Fahrenheit during whatever hours of each day the building is open for use.

(b) From May 1 to October 1, every occupiable room, bathroom and water closet compartment shall be supplied with sufficient heat to maintain therein a minimum temperature of 70 degrees Fahrenheit whenever the outside temperature falls below 55 degrees Fahrenheit between the hours of 6:00 a.m. and 11:00 p.m.

(c) Whenever a nonresidential building is heated by means of a furnace, boiler or other apparatus under the control of the owner or operator of the building, such owner or operator, in the absence of a written contract to the contrary, shall be deemed to have contracted, undertaken or bound himself to furnish heat in accordance with the provisions of Subsection B(1) through (3) of this section to every occupiable room, bathroom and water closet compartment which contains radiators, furnace heat duct outlets or other heating apparatus outlets.

C. In enforcing this section the Municipal Judges shall utilize the form of summons issued by the administrative office of the court. The summons may be served upon any persons,

corporations, business firms and/or partnerships violating this section by inspectors or properly authorized employees of the Division of Construction Code Official. The Judges are further authorized by rule to provide that violators may sign or execute on the back of the summons a written plea of "guilty" and the submission of a fine for offenses of this section. The fine for any offense of this section shall be as provided in Chapter 1, General Provisions, § 1 -25. **[Amended 10-28-1980 by Ord. No. S-510; 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052]**

§ 254-28. Residential plumbing facilities and water supply.

A. Bathroom facilities. Every bathroom required hereunder shall be provided with a flush water closet connected to the cold water line, and a shower or tub and a wash basin connected to running water, as set forth in Subsections C and E of this section.

B. Connection to sanitary sewer. All plumbing fixtures shall be connected to the sanitary sewer through lines which are free of corrosion, deterioration or leaks and provide unobstructed passage from the plumbing facilities within the dwelling to the sanitary sewer.

C. Hot and cold water. Every kitchen sink, bathroom sink and basin, tub or shower required under this chapter shall be connected to both hot and cold water lines.

D. Maintenance of plumbing facilities. Every facility required under Subsection A of this section shall be maintained in a sanitary condition, free of defect and in operating condition at all times. Where said facility or plumbing fixtures shall be clogged, overflow or otherwise necessitate repairs, such repairs shall be performed forthwith.

E. Supply of city water. Every facility using running water for domestic purposes within any building shall be connected to the public water supply system of the city. The water system shall be maintained in a good and operable condition at all times so that an adequate amount of water (not less than one gallon per minute) can be drawn from every installed hot and cold water faucet.

F. Water heating facility. **[Amended 9-9-1980 by Ord. No. S-461; 10-28-1980 by Ord. No. S-502; 1-29-2014 by Ord. No. 14-001]**

(1) Installation; maintenance and capacity; hot water must be furnished.

(a) There shall be supplied water heating facilities which are properly installed, are maintained in safe and good working condition, are properly connected with the hot water lines required under Subsection C of this section and are capable of supplying water at a minimum temperature of not less than 120 degrees Fahrenheit (120° F) and at a maximum temperature of not more than 140 degrees Fahrenheit (140° F) at all times to each hot water outlet.

(b) Every person, firm or corporation who shall have contracted, undertaken or shall be bound to furnish hot water to occupants of rooming houses or residences occupied by two or more families shall furnish to such occupants or tenants, at all times, 24 hours a day, seven days a week, an adequate supply of running hot water to a minimum temperature of not less than 120 degrees Fahrenheit (120° F) and at a maximum temperature of not more than 140 degrees Fahrenheit (140° F) at all times in accordance with anticipated need.

(c) Wherever a rooming house or residence is supplied with hot water from a plant or system operated under the control of the owner, lessor or agent of such rooming house or residence, in the absence of a written contract or agreement to the contrary, such owner, lessor or agent shall be deemed to have contracted, undertaken or bound himself to furnish hot water in accordance with the provisions of this article; and the presence of such a hot water plant or system, in any such rooming house or residence shall be prima facie evidence of such contract or agreement.

(2) Side arm gas water heaters. On or before January 1, 1968, no new or used side arm gas water heaters shall be installed. No side arm gas heaters shall be permitted after January 1,1975.

G. In enforcing this section the Municipal Judges shall utilize the form of summons issued by the administrative office of the court. The summons may be served upon any persons, corporations, business firms and/or partnerships violating this section by inspectors of the Division of Housing Code Enforcement. The Judges are further authorized by rule to provide that violators may sign or execute on the back of the summons a written plea of "guilty" and the submission of a fine for offenses of this section. The fine for any offense of this section shall be as provided in Chapter 1, General Provisions, § 1-25. **[Amended 10-28-1980 by Ord. No. S-510; 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052; 1-29-2014 by Ord. No. 14-001]**

§ 254-29. Screens.

A. Residential.

(1) Properly fitting screens in good repair shall be supplied for each exterior door and window of each dwelling unit or rooming unit. Such screens shall have a mesh of not less than size number sixteen (16). Window screens shall not be required in rooms on the seventh or higher floors in a building or in those rooms or buildings where room or central air conditioning is installed and operating. In establishments subject to licensing and in all buildings where janitor service is required, pursuant to this section, screens shall be installed and maintained by the owner or manager on all doors and windows from May 1 to October 1 of each year.

(2) Every basement or cellar window used or intended to be used for ventilation, and every other opening to a basement or cellar which might provide for entry of rodents, shall be supplied with a screen or such other device as will effectively prevent their entrance.

B. Nonresidential. Properly fitting screens in good repair shall be supplied for each exterior door, opening and window of every eating and drinking establishment and of all other nonresidential retail and wholesale establishments where uncooked or cooked food is sold. Such screens shall have a mesh of not less than size number sixteen (16).

§ 254-30. Interior rubbish containers.

Every rooming unit shall be provided with a container of metal or other approved material for the temporary storage and disposal of rubbish.

§ 254-31. Exterior garbage containers.

A. Approved receptacles. Only the receptacles shall be used for the exterior temporary storage of garbage, refuse and liquid waste substances as required by Chapter 287, Solid Waste.*

B. Every dwelling unit and every rooming unit containing cooking facilities shall be provided with the aforesaid approved receptacles for the exterior temporary storage or garbage.

C. In enforcing this section, the Municipal Judges shall utilize the form of summons issued by the administrative office of the courts. Said summonses may be served upon any persons, corporations, business firms and/or partnerships violating the section by members of the Department of Public Safety, by any inspectors of the Health Division and any inspectors or properly authorized employees of the Department of Public Works. The Judges are further authorized by rule to provide that violators may sign or execute on the back of the summons a written plea of "guilty" and the submission of a fine for the first offense; provided, however, that said amount shall be less than the maximum amount fixed by Chapter 1, General Provisions, § 1-25.f **[Amended 9-11-2013 by Ord. No. 13-081]**

ARTICLE VII

Minimum Space, Use and Egress Requirements

§ 254-32. Occupancy standards; net floor area.

No person shall occupy or let to another for occupancy any dwelling or dwelling unit for the purpose of living therein or any nonresidential building or any part thereof for any business, commercial, governmental, industrial, institutional or other human use which does not comply with the following requirements:

A. Dwelling units. Every dwelling unit shall contain a minimum net floor area of one hundred fifty (150) square feet for the initial occupant thereof, two hundred fifty (250) square feet for two (2) occupants and one hundred (100) additional square feet for each occupant thereafter, except that, for the purpose of this section, children under one (1) year of age shall not be counted as occupants. The minimum overall height of the area to be included in this calculation shall be seven and one-half (7 V2) feet from the floor to the ceiling, except in structures or dwelling units legally erected or converted for residential use prior to 1951 to which the height requirement shall be six and one-half (6 1/2) feet.

B. Required space in sleeping rooms. Except as required under Subsection C, each room utilized for sleeping purposes shall have a minimum dimension of seven (7) feet and a minimum net floor area

***Editor‘s Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

tEditor’s **Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

of seventy (70) square feet for the initial occupant, fifty (50) square feet for each additional occupant, except that children under one (1) year of age shall not be counted as occupants for the purpose of this section. In existing structures built prior to 1951, if any dwelling has no room at least ten (10) feet by twelve (12) feet in size, two (2) persons will be allowed to sleep in the largest room therein so long as it is nine (9) feet in size at least.

C. Where additional area required in sleeping rooms. Rooms utilized for sleeping purposes shall have a minimum net floor area of ninety (90) square feet for the initial occupant and seventy (70) square feet for each additional occupant in:

(1) Room utilized for sleeping purposes in which there are cooking facilities.

(2) Rooms rented or available for rent in boardinghouses and lodging houses.

§ 254-33. Ceiling height requirements.

A. Habitable rooms. At least sixty (60) square feet of floor area of every habitable room shall have a ceiling height of at least seven and one-half (7 1/2) feet and the floor area of that part of any room where the ceiling height is less than five (5) feet shall not be considered as part of the floor area in computing the total floor area of the room for the purpose of determining the maximum permissible occupancy thereof. Habitable rooms in dwellings legally erected or converted prior to 1951 shall have a ceiling height of at least six and one-half (6 1/2) feet.

B. Common spaces other than habitable rooms. Every bathroom, water closet compartment, utility room, hall and passageway shall have a clear ceiling height of at least six (6) feet eight (8) inches. Bathrooms, water closet compartments, utility rooms, halls and passageways in dwellings legally erected or converted prior to 1951 are exempt from the six (6) feet eight (8) inches ceiling height requirements, but shall meet the ceiling height requirement prevailing at the time each of such dwellings was erected or converted.

§ 254-34. Cellars and basements.

A. No cellar space shall be used as a habitable room or dwelling unit or for the required bathroom facilities of a dwelling unit, boardinghouse or lodging house.

B. No basement space shall be used as a habitable room or dwelling unit unless:

(1) The floor and walls are impervious to leakage of underground and surface runoff water and are insulated against dampness.

(2) The total of openable window area in each room is equal at least to the minimum as required by§ 254-24A(l)(a) and (b) and is located entirely above the grade of the ground adjoining such window area.

(3) The total of openable window area in each room is equal at least to the minimum as required by § 254-24A(l)(c) of Article V of this chapter.

(4) There are no ducts, pipes or other obstructions less than six (6) feet six (6) inches above floor level.

(5) All furnace or other heating facilities are so located, insulated and separated from living areas by fireproof partitions or walls necessary pursuant to regulations of the Fire Chief to prevent the same from constituting an undue hazard to the safety and health of the occupants.

(6) There is a second means of egress conforming to § 254-38C of this Article.

§ 254-35. Use of sleeping rooms as passageways.

Except in buildings legally erected for or converted to residential use prior to 1951, no dwelling or dwelling unit containing two (2) or more sleeping rooms shall have such rooms so located that access to a bathroom or water closet compartment intended for use by occupants of more than one (1) sleeping room can be had only by going through another sleeping room; nor shall room arrangements be such that access to a sleeping room can be had only by going through another sleeping room or a bathroom or water closet compartment.

§ 254-36. Nature of occupancy of certain dwelling and rooming units limited.[23]

A. Occupancy of single-family dwelling. A single-family dwelling shall be occupied by persons composing a family and no more than two (2) other persons.

B. Occupancy of dwelling unit. A dwelling unit in any building other than a single-family dwelling shall be occupied by persons composing an immediate family and no more than one (1) other person except as provided in Subsection C of this section.

C. Notwithstanding the provisions of Subsection B of this section, the Director of Housing Code Enforcement is authorized to permit, on an annual basis, a dwelling unit, in a building containing six (6) or more dwelling units, to be occupied by not more than five (5) college or university students of the same sex pursuant to written leasing arrangements between the college or university where said students are enrolled as full-time students and the owner or manager of the building containing said dwelling unit, provided that:

(1) A copy of the written leasing arrangements is filed with the Director of Housing Code Enforcement.

(2) An appropriate official of said college or university submits a written agreement that he or she will cause adequate safeguards to be provided to ensure that said dwelling is properly maintained.

(3) In all other respects the occupancy of said dwelling unit is in full compliance with this chapter.

D. Occupancy of rooming units. Rooming units shall be rented for occupancy or be occupied by adults and emancipated minors only.

E. Occupancy of one-room dwelling units or rooming units. Occupancy of dwelling units or rooming units having only one (1) habitable room, except for those in approved hotel, motel or dormitory facilities, shall be limited to two (2) persons.

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[23] **Editor's Note: See also Ch. 188, Housing Accommodation.**

§ 254-37. Occupancy standards to be cumulative.

Nothing contained herein shall be construed as permitting occupancy in violation of any other occupancy standard, all occupancy standards being cumulative and not alternative.

§ 254-38. Means of egress.

A. Primary. Every dwelling unit shall have safe and unobstructed means of egress from every floor at ground level and above leading to safe and open space at ground level and accessible to a street.

B. Secondary. In addition, there shall be a suitable and separate secondary exit from each dwelling unit by means of a doorway, stairway, protected passageway or openable window.

C. Secondary from basement. The second means of egress from any basement dwelling unit may be by a second door located independently from the first means of egress and leading directly to the outside of the premises, or, in the alternative, by an openable window located no more than three (3) feet above floor level.

D. From building three (3) or more stories above grade. In buildings three (3) or more stories above grade that are used as boardinghouses or lodging houses, or contain three (3) or more dwelling units or contain one (1) or more nonresidential uses and two (2) dwelling units, the secondary exit from the third story and from every additional story, if any, shall be by a metal fire escape or an enclosed stairway.

E. From rooming units. Except in single-family dwellings, rooming units shall have a door opening directly into a common hallway or areaway. Any rooming unit located in the basement or at ground level shall be provided with a second means of egress that meets the same requirements as provided in Subsection C of this section. Where there is a rooming unit located above the first story, the common hallways or areaway into which it opens shall have two (2) means of egress remote from each other and one (1) of these shall open to a street of fireproof passage leading to a street and one (1) shall open to a yard or other safe space of sufficient area to accommodate all persons in the building.

F. Access to exit. Access to any exit required by Subsections A through D of this section shall not necessitate passage through any other dwelling unit or part thereof nor shall any exit be subject to locking by any device which impedes or prevents ready egress.

G. Door in path of egress. Any door in the path of egress shall be at least thirty (30) inches in width with a minimum height of six (6) feet six (6) inches, shall be free from obstruction and accessible from common hallways or areaways and shall open in the direction of travel if it leads to a fire escape or if it is located in a tenement house erected after 1904 or in any building erected as, or converted into, a dwelling after 1951.

H. Openable window in path of egress. Where a window forms a part of egress from a dwelling unit or rooming unit or from a common areaway or hallway to a fire escape, the window opening shall be at least thirty-six (36) inches in width and thirty-four (34) inches in height, whether the window is double hung or single hung. The bottom of the opening or the sill height shall not be more than three (3) feet six (6) inches above the floor. Said

window shall be easy to open and shall lead directly to the fire escape or to the immediately adjacent outside ground area with maximum drop of three (3) feet six (6) inches thereto. Screens, storm windows and other barriers to the outside shall be readily opened or removed so as not to form any obstruction to occupants seeking egress in cases of emergency.

I. Location and number of exits. Where two (2) or more exits are required, each exit shall be as remote as practicable from the other exit or exits. All the exits shall be of such number and so located that the distance of travel from the door of each rooming unit or dwelling unit on each floor shall not exceed fifty (50) feet except in buildings of fireproof construction or in buildings equipped with automatic sprinkler systems throughout where the maximum distance of travel from the door of any unit to the nearest exit shall not exceed one hundred (100) feet, provided that two (2) of the exits shall be at least fifty (50) feet apart.

ARTICLE VIII
Duties of Owners, Managers and Occupants

§ 254-39. Owners and managers.

Owners and managers shall have all the duties and responsibilities prescribed in this chapter and in regulations promulgated pursuant thereto, and no owner or manager shall be relieved from any such duty or responsibility nor be entitled to defend against any charge of violation thereof by reason of the fact that the occupant also is responsible therefor and in violation thereof.

§ 254-40. Occupants.

Occupants shall have all the duties and responsibilities prescribed in this chapter and in regulations promulgated pursuant thereto, and the occupant shall not be relieved from any such duty and responsibility nor be entitled to defend against any charge of violation thereof.

§ 254-41. Contract not to alter responsibility.

Unless expressly provided to the contrary in this chapter, the respective obligations and responsibilities of the owner and manager on one (1) hand and the occupant on the other shall not be altered or affected by any agreement or contract by and between any of the aforesaid or between them and other parties.

ARTICLE IX
Maintenance Responsibilities of Owners and Managers

§ 254-42. Compliance required.

No person shall occupy or let to another for occupancy any dwelling, dwelling unit or rooming unit for the purpose of living therein or any nonresidential building or part thereof for any business, commercial, governmental, industrial, institutional or other human use which does not comply with the requirements set forth in § 254-43.

§ 254-43. Maintenance of exterior of premises and yards. [Amended 7-13-2022 by Ord. No. 22-065]

A. The exterior of the premises and all structures thereon shall be kept free of all nuisances, unsanitary conditions and fire or safety hazards in the public areas and any of the foregoing shall be removed and abated promptly by the owner or manager.

B. Without limiting the generality of Subsection A, the maintenance includes: **[Amended 9-23-2020 by Ord. No. 20-074]**

(1) Keeping alleys, driveways, fire escapes, porches, sidewalks, exterior stairways reasonably clean and free from filth, garbage, obnoxious weeds, refuse or other debris and free from hazardous objects or conditions, such as excavations or holes, dead and dying trees, so as to afford safe passage and use.

(2) Providing and maintaining runoff drains adequate to prevent recurrent accumulations of stormwater or the entrance of water into a basement or cellar.

(3) Keeping the premises free of conditions conducive to infestation by vermin or insects, such as rodent harborages or stagnant water, and other known sources of infestation.

(4) Keeping any accessory building and any fence in good repair and free from fire, health and safety hazards.

(5) Providing a fence or wall of sufficient height to prevent persons from falling down the sharp drop in grade wherever there exists on any land a sharp drop in the grade of such land from the level of the street or sidewalk to said land or wherever there is a sharp drop in grade from said land to the level of the street or sidewalk and maintaining said fence or wall in safe and sound condition.

(a) If the Chief finds that any such fence or wall is in such condition as to create an unsafe condition or where he or she finds that no fence or wall exists where one is needed to prevent falls, he or she shall immediately notify the owner of the property and order said owner to forthwith repair, replace or install the fence or wall called for in Subsection B(5) of this section so as to eliminate such hazard.

(b) If the owner fails to comply with said order, the Chief shall notify the Director of Housing Preservation who then shall cause such fence or wall to be repaired, replaced or installed so as to provide the required protection, and the cost thereof shall be charged to the owner of said property and collected in the manner provided in this chapter.

(c) In such emergency cases, the provisions of § 254-17G of Article III of this chapter regarding notice and hearing shall apply.

(6) Ensure that all bushes and trees in yards are trimmed and that they do not interfere with neighboring properties; grass does not exceed eight inches in height and that all grass clippings are removed from the lot when the grass is cut; yards are clear of all garbage, litter and debris; and fences surrounding yards are maintained and any broken sections or holes are repaired.

§ 254-44. Appearance of exterior of premises.

A. Residential. The exterior of the premises, the exterior of all dwelling and the exterior of all accessory structures shall be maintained so that the appearance of the premises and all

building thereon shall reflect a level of maintenance in keeping with the residential standards of the neighborhood or such higher standards as may be adopted as part of a plan of urban renewal by the City of Jersey City. The maintenance also shall be at sufficiently high level that the appearance of the premises and structures shall not constitute a blighting factor for adjoining property owners nor an element leading to the progressive deterioration and downgrading of the neighborhood with the accompanying diminution of property values.

B. Prescribed methods of maintaining appearance. Without restricting the generality of Subsection A, the methods of maintaining the appearance of the exterior of premises and structures shall include the prescribed actions on the following matters:

(1) Front yard parking. No person shall park, stop or stand any motor vehicle, or permit or suffer the same to be done, in any front yard area of premises occupied by a dwelling, lodging house or hotel, except on driveways and parking areas constructed and installed in compliance with applicable provisions of the Jersey City Code. Effective on and after January 1, 1968, no such driveways or parking areas shall be constructed less than three (3) feet from the interior front sidewalk line adjacent to said premises.

(2) General maintenance. The exterior of every structure or accessory structure, including fences, shall be maintained in good repair and all surfaces thereof shall be kept painted or whitewashed where necessary for purposes of preservation and appearance. The same shall be maintained free of broken glass, loose or broken shingles or siding, crumbling stone or brick, peeling paint or other condition reflective of deterioration or inadequate maintenance to the end that the property itself may be preserved, fire and safety hazards eliminated and adjoining properties and the neighborhood protected from blighting influences.

(3) Landscaping. Premises shall be kept landscaped and lawns, hedges and bushes shall be kept trimmed and from becoming overgrown and unsightly so that the same may not depreciate adjoining property or impair the residential character of the neighborhood.

(4) Reconstruction of walls and siding. All reconstruction of walls and siding shall be of standard quality and appearance commensurate at least with the residential character of the properties in the same block and on both sides of the street on which the premises front, so that the materials used will not be of a kind that by their appearance under prevailing appraisal practices and standards will depreciate the values of neighboring and adjoining premises.

(5) Signs. All signs permitted by reason of other regulations or as a lawful nonconforming use shall be maintained by their owner in good repair and lettering, illustrations or pictures contained on either side thereof shall be kept legible and intact while in use. Such signs shall be removed by their owner when no longer in use.

(6) Storage of commercial and industrial material. No equipment or materials relating to business, commercial or industrial uses shall be stored or used at a location visible

from the sidewalk, street or other public areas unless permitted under Chapter 345, Zoning, of this Code applicable to the premises.[24]

C. Nonresidential. The exterior of the premises and the condition of every structure and accessory structure, including fences, shall be maintained so that their appearance shall reflect a level of maintenance in keeping with the standards of the neighborhood or such higher standards as may be adopted as part of a plan of urban renewal by the city and such that the appearance of the premises and structures shall not constitute a blighting factor for adjoining property owners nor an element leading to the progressive deterioration and downgrading of the neighborhood with the accompanying diminution of property values.

D. Without limiting the generality of Subsection C, the methods of maintaining the appearance of the exterior of premises and structures shall include the prescribed actions on the following matters:

(1) Awnings and marquees. Any awning or marquee and its accompanying structural members which extend over any sidewalk, street or other portion of the premises shall be maintained in good repair so as not to constitute a nuisance or safety hazard. In the event that such awnings or marquees are not properly maintained in accordance with the foregoing, they and their supporting members shall be removed forthwith. Where such awnings or marquees are made of cloth, plastic or similar materials any and all parts of said materials exposed to public view shall be maintained in good condition free of discoloration, excessive weathering, holes or tears. Nothing herein shall be construed to authorize any encroachment on sidewalks, streets or other parts of the public domain.

(2) Landscaping. Premises shall be kept landscaped and bushes, hedges and lawns shall be kept trimmed and from becoming overgrown and unsightly so that the same may not depreciate adjoining property.

(3) Signs and billboards. All permanent signs and billboards exposed to public view and permitted by other regulations or as a lawful nonconforming use shall be maintained in good repair. Signs which have become faded or excessively weathered or those upon which the paint has become cracked or peeled shall, with their supporting members, be removed forthwith or put into a state of good repair. All nonoperative or broken electrical signs shall be repaired or shall, with their supporting members, be removed forthwith.

(4) Signs or advertising; removal.

(a) Except for "for rent" or "for sale" signs, any temporary sign or other paper advertising material attached to a window or windows or otherwise exposed to public view shall be removed at the expiration of the event or sale for which it is erected or within sixty (60) days after erection if this occurs sooner.

(b) Except during the course of alterations or repairs, no more than fifty percent (50%) of the square footage of any single window or window display area shall be devoted to signs or other temporary advertising material attached to said

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24 **Editor's Note: See also Ch. 263, Retail and Commercial Premises, and Ch. 296, Streets and Sidewalks.**

window or windows or otherwise exposed to public view unless the establishment involved is located in a nonresidential zone and is lighted and ventilated adequately by artificial means. In the latter case, up to one hundred percent (100%) of any single window or window display area may be devoted to signs or other temporary advertising material.

(5) Storefronts.

Cross reference—See also Ch. 278, Security Gates.

(a) All storefronts shall be kept in good repair, painted where required and free of any condition constituting a nuisance or safety hazard.

(b) In the event that repairs to a storefront become necessary, such repairs shall be made with materials the same as or similar to those used in the construction of the storefront and in such a manner as to permanently repair the damaged area or areas.

(c) Any cornice visible above a storefront shall be kept painted, where required, and in good repair.

(6) Windows. All windows exposed to public view shall be kept clean and free of marks or foreign substances except when necessary in the course of changing displays. No storage of materials, stock or inventory shall be permitted in window display areas or other areas ordinarily exposed to public view unless said areas first are screened from the public view by drapes, blinds or some permanent method of rendering said windows opaque, but in no case shall such storage and screening be permitted in the event that such screening would violate the natural light and ventilation regulations applicable to the premises. All permitted screening of interiors shall be maintained in clean and attractive condition and in a state of good repair.

§ 254-45. General safety and sanitation. [4-25-2018 by Ord. No. 18-020]

A. Residential. Every dwelling and accessory structure and every part thereof, whether occupied or not shall be maintained in a structurally sound condition and in a state of good repair. All parts of a dwelling whether occupied or not also shall be kept in a clean and sanitary condition, free of nuisances, insects, rodents, vermin or other pests, and free from fire, health and safety hazards. **[Amended 9-24-2008 by Ord. No. 08-140]**

B. Without restricting the generality of Subsection **A,** the following requirements shall be met: **[Amended 9-24-2008 by Ord. No. 08-140; 10-27-2010 by Ord. No. 10-127; 11-24-2015 by Ord. No. 15-153]**

(1) Load-bearing capacity. Every part of a dwelling shall be maintained so as to be capable of sustaining safely its own weight and any additional weight that may be put on it through normal use.

(2) Painting and other protective coating. All exposed surfaces susceptible to decay, at all times shall be kept painted or covered by another protective coating sufficient to prevent deterioration.

Cross reference—See also Ch. 233, Paint Stripping.

(3) Weathertightness and watertightness. Every dwelling, whether occupied or not, shall be maintained so as to be weathertight and watertight.

(4) Foundation.

(a) A foundation wall of a dwelling shall be maintained so as to prevent the entrance of moisture, insects and rodents.

(b) Without restricting the generality of Subsection B(4)(a), the maintenance includes shoring of the wall where necessary, installing subsoil drains at the footing, grouting masonry cracks, waterproofing the wall and joists and using other suitable means.

(5) Exterior wall and its components.

(a) An exterior wall of a dwelling and its components shall be maintained so as to prevent its deterioration due to weather and insects and to preserve its appearance.

(b) Without restricting the generality of Subsection B(5)(a), the maintenance includes the painting, or whitewashing, repairing or restoring of the wall, coping or flashing; waterproofing of the joists; waterproofing of the wall itself; installing of termite shields in buildings erected after the adoption of this chapter, if required by Chapter 131, Uniform Construction Codes; repairing of termite shields, if any; extermination of termites in infested buildings; and treating of the soil with poison and using other suitable means.

(6) Exterior wall of accessory building. An exterior wall of an accessory building shall be maintained so as to prevent its deterioration and to preserve its appearance.

(7) Roof.

(a) A roof of a dwelling shall be maintained in a watertight condition so as to prevent leakage into the dwelling.

(b) Without restricting the generality of Subsection B(7)(a), the maintenance includes repairing of the roof and flashing, applying waterproof coatings, installing or repairing gutters and leaders and using other suitable means.

(c) Dangerous accumulations of snow or ice or both shall be removed from the roof of a dwelling or accessory building.

Cross reference—See also Ch. 296, Streets and Sidewalks, Art. I.

(8) Windows, exterior doors and hatchways.

(a) Every window, exterior door and hatchway shall be maintained so as to be weathertight, watertight and rodentproof and shall be kept in good repair.

(b) Without restricting the generality of Subsection B(8)(a), the maintenance includes painting and renewing rotted or damaged doors, door frames, window frames, sills, sashes and casing, refitting doors and windows, weatherstripping, replacing broken or worn window cords and defective door and window hardware, reglazing and using other suitable means.

(9) Exterior balconies, fire escapes, landings, porches, exterior bridges and stairs.

(a) Exterior balconies, fire escapes, landings, porches, exterior bridges and stairs shall be provided with banisters or railings properly designed and maintained to minimize the hazard of falling and also shall be maintained free of holes and cracks, clear of obstructions and in structurally sound condition.

(b) Without limiting the generality of Subsection B(9)(a), the banisters or railings shall be required on the open side of a stairway, fire escape, balcony, exterior bridges, porch, landing and stairwell. In addition, the banister or railing shall be coated with a durable fire-retardant and heat-resistant coating that shall meet Class A flamespread rating of the American Society for Testing and Materials and shall be overcoated with a semigloss, fire-inert, enamel coating capable of meeting the durability standard set by Federal (DOD) Specification No. TT-P-0026B.

(c) All fire escapes, exterior bridges and egress balconies shall be examined and/or tested, and certified for structural adequacy and safety every five (5) years, by a professional engineer, architect or other qualified professional acceptable to the Fire Prevention Bureau; said engineer or professional shall then submit an affidavit to the Fire Prevention Bureau attesting to the structural adequacy of the fire escape/exterior bridge/egress balcony. Once the affidavit is received and approved, a green tag provided by the Bureau of Fire Prevention bearing the signature of the Fire Prevention Officer and the year of inspection shall be affixed to the ladder of the fire escape or railing of the exterior bridge or egress balcony by the property owner.

(d) Any fire escape, exterior bridge or egress balcony found to be in a state of deterioration or determined to be unsafe by the Fire Prevention Bureau shall be repaired immediately. Depending upon the structural condition, a load test of any fire escape shall be conducted before the escape is returned to service in accordance with the N.J.A.C. 5:23, the Uniform Construction Code.

(e) The affidavit of structural adequacy required by Section 254-45(B)(9)(c) shall be submitted by the owner to the City's Fire Prevention Bureau no later than December 31, 2016 and then submitted every five (5) years thereafter.

(10) Chimneys, smoke pipes and flues.

(a) Every chimney, smoke pipe and flue on a dwelling shall be maintained so as to prevent gases from leaking into the dwelling.

(b) Without restricting the generality of Subsection B(10)(a), the maintenance includes clearing the flue of obstructions, sealing open joints, keeping the chimneys, smoke pipes, flues and any other vent attachments thereto in structurally sound and safe condition, repairing masonry and using other suitable means.

(11) Fireplaces.

(a) Every fireplace used or intended to be used in a dwelling for burning fuel in open fires shall be maintained so that adjacent combustible materials and structural members shall not be heated to unsafe temperatures.

(b) Without restricting the generality of Subsection B(ll)(a), the maintenance includes securing connection to a chimney that complies with the provisions of Subsection B(10) of this section and, if necessary, lining or repairing and relining the fireplace with fire-resistant material and installing, repairing or replacing the hearth.

(12) Light and air shafts.

(a) All light and air shafts shall be enclosed with guardrails to help protect those who use the roofs onto which these open from falling into such shafts.

(b) Guardrails for light and air shafts shall be of iron or steel of good quality, covered by at least one (1) coat of approved paint before leaving the shop and with at least one (1) additional coat of paint placed thereon immediately after installation of said guardrails.

(c) All such guardrails shall be constructed according to the following specifications:

[1] The four (4) corners forming the main supports shall be made of angle iron not less than two and one-half by two and one-half (2 1/2 x 2 1/2) inches by three-sixteenths (3/16) of an inch thick. Another such angle iron of the same dimensions shall be used to form the anchor around the base to bear on the roof through which the lag screws will be placed to penetrate into the trimmer and header beams forming the well opening. The corner posts are to be not less than three (3) feet in height. The top rail shall extend around all sides and shall be securely fastened to the upright angle irons forming the corner posts. All top rails shall be made of angle iron one and one-half by one and one-half (1 1/2 x 1 V2) inches by three-sixteenths (3/16) of an inch thick. All corners are to be mitered. The intermediate rail shall be of wrought iron or steel slat material not less than one and one-half (1 V2) inches by three-sixteenths (3/16) of an inch thick. All members are to be secured to each other by means of rivets or properly welded joints.

[2] The angle iron forming the base bearing upon the roof shall be secured to the roof by means of lag screws not less than five-eighths (5/8) of an inch in diameter and five (5) inches long, properly screwed into bored holes in the trimmer and header beams, said holes to be not more than seven-sixteenths (7/16) of an inch in diameter, and the center of such holes shall be in the center of the outside trimmer or header beam, for all openings such as these have double beams framing the opening.

(d) All such guardrails also shall be made to conform with such other requirements as may be necessary to secure the utmost protection to all concerned.

(13) Stairs, handrails and banisters.

(a) Interior stairs and stairways in every structure used for human habitation shall be maintained in structurally sound condition, capable of sustaining any weight that may be put on these through normal use and free of defects and obstructions.

(b) Without restricting the generality of Subsection B(13)(a), the maintenance includes repairing or replacing treads or risers that show excessive wear or are broken, warped or loose and supporting structural members that are rotted or deteriorated.

(c) Handrails or banisters shall be provided for all interior stairs, stairways and balconies, shall be securely attached, shall be of sufficient height and shall be so maintained as to guard against accidents.

(d) Without restricting the generality of Subsection B(13)(c), the maintenance includes repairing or replacing broken, loose or missing handrails or balusters.

(14) Basements and cellars. The ceilings, floors and walls of every basement and cellar are to be kept dry and free from dampness at all times regardless of exterior weather conditions, and all basements and cellars are to be kept ventilated at all times.

(15) Floors.

(a) Every floor in a dwelling shall be kept in a clean condition and shall be maintained so as to be free of broken, loose, protruding, rotted or warped boards

or broken or cracked tile that might cause an accident or what might serve as an entry point for rodents.

(b) Without restricting the generality of Subsection B(15)(a), the maintenance includes the repairing or replacing of floorboards or tiles; and, where the floorboards have been covered by the owner or the tenant, dependent upon the rental agreement, with linoleum or some other covering that has become torn or so worn that it retains dirt, the repairing or replacing of the linoleum or other covering by the owner or the tenant as provided in the rental agreement.

(16) Bathroom, kitchen and water closet compartment floors.

(a) Residential. Bathroom, kitchen and water closet compartment floors shall be surfaced with water-resistant material by the owner or the tenant, according to the rental agreement, and at all times shall be kept in a clean, dry and sanitary condition by the tenant; and shower room floors also shall be kept clean and sanitary by the tenant.

(b) Nonresidential. Bathroom, kitchen and water closet compartment floors shall be surfaced with water-resistant material and shall be kept in a clean, dry and sanitary condition at all times.

(17) Basement and cellar floors. In structures erected after 1951, floors of basements and cellars shall be paved with stone or concrete not less than four (4) inches thick, but in structures erected prior to 1951, brick or concrete floors not less than two (2) inches thick shall be acceptable. All basement and cellar floors shall be maintained at all times in a clean and smooth condition and free from breaks, cracks and other hazards.

(18) Supporting structural members. Supporting structural members are to be kept structurally sound, free of deterioration and capable of bearing imposed loads safely.

(19) Walls and ceilings.

(a) Every wall and ceiling in a dwelling shall be maintained in clean condition and free of breaks or holes and loose plaster or other material which might cause injury if it collapsed.

(b) The surface of every ceiling and wall shall be kept smooth, clean and free of flaking loose or peeling paint, plaster or paper. The finish of these surfaces shall be capable of being maintained in a sanitary condition free of visible foreign matter and of vermin. When it becomes necessary to accomplish the foregoing or any part thereof, such interior surfaces shall be spackled, painted, papered or otherwise provided with a protective coating appropriate for the surface material. This shall be done at least once every three (3) years unless it is clearly unnecessary. **[Amended 9-27-1989 by Ord. No. McC-23]**

(20) Interior painting.

(a) To protect occupants and the general public against the danger of lead poisoning, no lead paint may be used to cover interior ceilings, floors, trim, walls or other interior surfaces of any dwelling, dwelling unit or rooming unit.

(b) To reduce the danger of the spread of fire, effective January 1, 1970, every staircase and/or stairwell leading from the basement or cellar to the first floor and every common passageway, staircase and stairwell within every establishment subject to licensing and every tenement house three (3) or more stories in height shall be coated with a fire-retardant coating that meets the American Society for Testing and Materials standard for Class A flamespread rating.

(21) Freedom from infestation. All parts of the premises shall be maintained so as to prevent infestation.

(22) Freedom from accumulations and obstructions. Freedom from accumulations and obstructions and other putrefactive or combustible material shall be permitted in common or private areaways, balconies, hallways, porches or stairways or in common or private basements or cellars, except that garbage stored in proper containers may be set outside for removal, pursuant to Subsection B(26) of this section, the night before the time set for its collection by the garbage removal agency of the city.

(23) Garbage containers for exterior of building. Where there are one (1) or more occupants in any dwelling unit other than the one occupied by the owner, the owner shall supply for each dwelling unit a watertight container, with tight-fitting cover and made of metal or other approved material, at the exterior of the premises for the removal of garbage and rubbish.

(24) Responsibility for removal of garbage. The owner or manager shall have the duty and responsibility of removing garbage whenever a janitor is required for the premises in accordance with Subsection B(26) of this section.

(25) Accumulating rubbish and nonfireproof storage prohibited. Storage bins, rooms and areas shall not be used for accumulated garbage or rubbish; provided, however, that enclosed spaces or rooms in the interior of dwellings which are used exclusively as garbage collection points, are equipped with garbage containers complying with § 254-26B(2) and from which room or space the containers are removed by the janitor at least once daily shall not be prohibited. Inflammable or combustible liquids or other materials may not be stored on the premises unless these are of a type approved for storage by the regulations of the Department of Public Safety, and then only in such quantities and in such fireproof containers as may be prescribed by the regulations. **[Amended 9-11-2013 by Ord. No. 13-081]**

(26) Janitorial service. In every dwelling containing three (3) or more dwelling units or rooming units or combination thereof, in which the owner does not reside, said owner shall provide or designate a superintendent, janitor, caretaker or housekeeper who shall maintain the premises in compliance with this chapter at all times and keep the interior and exterior of the premises free from filth, garbage and rubbish. All garbage and waste materials in each dwelling unit shall be deposited daily by the occupants in the exterior garbage containers supplied by the owner or shall be placed in the incinerator or on the dumbwaiter if incinerator or dumbwaiter service is provided. Where garbage containers are supplied, the janitor shall place the same outside for collection according to the schedule of the garbage removal agency of the city.

(27) Address of superintendent. In the event that said superintendent, janitor, caretaker or house-

keeper shall not reside on the premises under his or her care, the owner or manager shall make said person's name, address and telephone number known to all tenants, and shall register the same with the Director of Housing Code Enforcement, and also shall make available and known to all tenants and the Director of Housing Code Enforcement the name, address and telephone number of an alternate individual who shall be responsible during the absence of said superintendent, janitor, caretaker or housekeeper.

(28) Residence on premises.

(a) In any premises containing six or more dwelling units, rooming units or combination thereof, the superintendent, janitor, caretaker or housekeeper shall reside on the premises.

(b) Where more than one building on adjoining premises or on premises in near proximity to each other are in common ownership or under common management or maintenance supervision, the requirements contained in Subsection B(28)(a) shall apply separately to each building unless the buildings contain forty-two (42) units or less and the owner can demonstrate to the satisfaction of the Director of Housing Code Enforcement that proper operation of the premises and provision of all essential services and facilities as required under city codes and ordinances can be provided by a resident superintendent, janitor, caretaker or housekeeper of one building who shall assume responsibility for the other building or buildings adjoining or in near proximity to his or her place of residence.

(29) Authority and competence of superintendent.

(a) Every building superintendent, janitor, caretaker or housekeeper shall have sufficient knowledge, competence and responsibility to perform his or her duties in accordance with the minimum standards set by this chapter for janitorial service.

(b) The owner or manager of each and every residential building shall provide its superintendent, janitor, caretaker or housekeeper with a list of contractors whom he or she shall contact if an emergency occurs at any time when the owner or manager cannot be reached by telephone, to arrange for immediate correction of the condition or conditions causing the emergency, so as to assure continual operation of all essential services and facilities required under this chapter.

(30) Owner responsibility for janitorial services. The failure of any superintendent, janitor, caretaker or housekeeper to comply with the provisions of this chapter, even in disobedience of instructions, shall not relieve the owner or manager from the duties and responsibilities imposed by this chapter.

(31) Extermination of pests. Every owner of a dwelling containing two or more dwelling units, whether occupied or unoccupied, shall be responsible for the extermination of insects, rodents, vermin or other pests on the premises. Whenever, infestation exists in two or more of the dwelling units in any dwelling, or in the shared or public parts of any dwelling containing, two or more dwelling units, extermination thereof shall be the responsibility of the owner. As appropriate, but especially where the presence of bedbugs has been established, the owner shall treat (1) the two units, on either side of the affected unit, (2) the units directly above and below the affected unit and

(3) the two units on either side of the units above and below the affected unit, for a total of nine units. A building owner is responsible to provide extermination service by a certified exterminator for bedbugs as many times as necessary to totally eliminate the reported bedbug problem. As used in this ordinance, the term "certified exterminator" means an exterminator who has had specialized training in bedbug eradication. Once the problem is eradicated, the building owner is not responsible to provide treatments if a new bedbug problem arises with the same tenant during the remainder of the current calendar year. The owner's responsibility to exterminate will be triggered upon receipt of a letter from the tenant stating the presence and description of the infestation and requesting extermination. A copy of the letter must be filed with the Division of Health and the Division of Housing Code Enforcement. The Health Officer may direct the owner to utilize the type of treatment he or she deems appropriate depending upon the type of infestation.

(32) Maintenance of public areas. Every owner of a dwelling containing two or more dwelling units, whether occupied or unoccupied, shall be responsible for maintaining in a clean and sanitary condition all communal, shared; public areas of the dwelling and premises, including the yard and accessory buildings thereof which are used or shared by the occupants of two or more dwelling units.

(33) Notification to tenant of maximum occupancy. No owner shall occupy or rent to any other person or persons for occupancy or allow any other person to occupy any dwelling or dwelling unit unless he or she has informed such persons in writing of the maximum number of individuals that may live in said dwelling or dwelling unit.

(34) Responsibility to supply equipment and facilities. It shall be the owner's responsibility to supply, unless stipulated otherwise in this Code or otherwise provided for under lease agreement, all of the equipment and facilities required by this chapter to each and every dwelling unit, whether occupied or unoccupied.

(35) Installation and maintenance of supplied facilities. Every supplied facility, piece of equipment or utility which is required under this chapter shall be so constructed or installed that it will function properly and shall be maintained by the owner free of defect and in working condition at all times.

(36) Repairs and maintenance of supplied facilities. The owner is responsible for all repairs and maintenance to supplied facilities and equipment required by this chapter, except where provided otherwise in the chapter, regardless of any agreement or lease entered into between owner and occupant.

(37) Ban or interruption of supplied services and facilities. No owner or manager shall cause any service, facility, equipment or utility which is required to be supplied under the provisions of this chapter to be removed from, or shut off from, or discontinued for any dwelling or dwelling unit, whether occupied or unoccupied, except for such temporary interruption as may be necessary while repairs, replacements or alterations are in the process of being made.

(38) Owners or managers shall maintain minimum heat in every dwelling unit and in all common areas in accordance with Ordinance 254-27A(7)(a).

(39) If an owner or manager is deemed to be the violation of this chapter and the violation persists beyond its compliance date, the owner or manager shall provide a report to the Construction Code Official stipulating the duration of time necessary to complete the required repairs and which shall include the status of any relocated tenants, as applicable.

C. Nonresidential. The exterior and interior of every structure or accessory structure (including fences, signs or storefronts) shall be maintained in clean and sanitary condition and in good repair and all surfaces thereof shall be kept painted or whitewashed where necessary for purposes of preservation and appearance.

D. Without restricting the generality of Subsection C, the following requirements shall be met: **[Amended 9-11-2013 by Ord. No. 13-081]**

(1) Responsibility for removal of garbage. The owner or manager shall have the duty and responsibility of removing garbage.

(2) Accumulating rubbish and nonfireproof storage prohibited. Storage bins, rooms and areas shall not be used for accumulated garbage or rubbish. Inflammable or combustible liquids or other materials may not be stored on the premises unless these are of a type approved for storage by the Department of Public Safety and then only in such fireproof storage containers as may be prescribed by the regulations.

(3) Maintenance of exterior surfaces. All exterior surfaces shall be maintained free of broken glass, loose shingles, crumbling stone or brick, excessive peeling paint or other condition reflective of deterioration or inadequate maintenance to the end that the property itself may be preserved, safety, health and fire hazards eliminated and adjoining properties and the neighborhood protected from blighting influences.

(4) Maintenance of interior surfaces. All interior surfaces shall be kept clean and free of cracks, holes, excessive peeling paint or other conditions reflective of deterioration or inadequate maintenances.

E. Vacant buildings shall be properly secured as required by § 254-21 hereof.*

F. Structural inspection requirement. In order to maintain a building's structural integrity, the following requirements shall apply to all existing buildings or buildings constructed hereafter, which are concrete buildings more than six stories in height: **[Added 8-18-2021 by Ord. No. 21-054]**

1. A visual structural inspection shall be conducted every ten years by a licensed architect or engineer. This inspection must include, but is not limited to, inspection of foundations, balconies, all structural members, and waterproofing. This inspection shall be in addition to any other building inspections required by law.

a. The initial inspections shall be completed by December 31, 2022. Thereafter, a structural inspection must be conducted every ten years.

b. The structural inspection shall include, in addition to an inspection, a complete review of the most recently prepared report.

***Editor's note**—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

c. The structural inspection shall be conducted in accordance with applicable rules promulgated by the Construction Code Official or the Construction Code Official's designee.

d. The property owner shall be responsible for the cost of such inspection, and for any necessary repairs or additional inspections.

2. Reporting requirements. Structural inspections must be December 31 of each year in which an inspection is mandated. Within 30 days of the inspection, property owners must submit a written structural inspection report, prepared by a licensed architect or engineer, to the Division of the Construction Code Official. The structural inspection report shall be on a form prescribed by the Division of the Construction Code Official and shall:

a. Certify the results of such inspection;

b. Clearly document the condition of the building's structure, noting the conditions as safe or unsafe; and

c. Provide repair and maintenance recommendations if applicable, including information on which repairs are emergent and a timeline for which all repairs must be made.

3. Repairs. If the inspection indicates structural repairs are needed, the property owner shall be responsible for such repairs and shall immediately undertake such measures as may be required to secure public safety. All repairs must be made pursuant to the recommendations and timeline set forth in the structural inspection report and in conjunction with the recommendations of the Construction Code Official.

a. Following completion of the repairs, the licensed architect or engineer shall inspect the building and the property owner shall file an amended structural inspection report, prepared by the licensed architect or engineer, setting forth the conditions of the building with the Division of the Construction Code Official within 30 days of repairs being completed.

b. If repairs are not made in accordance with the recommendations and timeline set forth in the structural inspection report and with the recommendations of the Construction Code Official, the Construction Code Official shall have the power to shut down any buildings that pose an imminent threat to the safety and welfare of the occupants or residents of Jersey City.

c. The structural inspection shall be conducted in accordance with applicable rules promulgated by the Director of the Construction Code Official or the Construction Code Official's designee.

4. Fees. The fee for the filing and review of the structural inspection report shall be as provided in Chapter 160, Fees and Charges.

5. Penalties. Any person or corporation convicted of violating any of the provisions of this Chapter shall be subject to the penalties set forth in § 1-25.

G. Façade inspection requirement. In order to maintain a building's façade in a safe condition, the following requirements shall apply to all existing buildings or buildings constructed hereafter, which:

(1) are more than six stories in height, or (2) consist of a masonry façade and are four stories or more in height: **[Added 8-18-2021 by Ord. No. 21-054; amended 11-25-2025 by Ord. No. 25-122, 11-25-2025]**

1. A façade inspection shall be conducted every ten years by a licensed architect or engineer. However, a new building shall be exempt from an initial examination until the eighth year following the erection or installation of any exterior wall or appurtenances as evidenced by the issuance date of a temporary or final certificate of occupancy. This inspection must include, but is not limited to, inspection of all exterior walls and appurtenances. This inspection shall be in addition to any other building inspections required by law.

    a. The initial inspection shall be completed by December 31, 2023. Thereafter, a façade inspection must be conducted every ten years.

    b. The façade inspection shall include, in addition to an inspection, a complete review of the most recently prepared report.

    c. The façade inspection shall be conducted in accordance with applicable rules promulgated by the Director of the Construction Code Official or the Construction Code Official's designee.

    d. The property owner shall be responsible for the cost of such inspection, and for any necessary repairs or additional inspections.

2. Reporting requirements. Façade inspections must be completed by December 31 of each year in which an inspection is mandated. Within 30 days of the inspection, property owners must submit a written façade inspection report, prepared by a licensed architect or engineer, to the Division of the Construction Code Official. The façade inspection report shall be on a form prescribed by the Division of the Construction Code Official and shall:

    a. Certify the results of such inspection;

    b. Clearly document the condition of the building's façade, noting the conditions as safe or unsafe; and

    c. Provide repair and maintenance recommendations if applicable, including information on which repairs are emergent and a timeline for which all repairs must be made.

3. Repairs. If the inspection indicates repairs are needed to the building's façade, the property owner be responsible for such repairs and shall immediately undertake such measures as may be required to secure public safety. All repairs must be made pursuant to the recommendations and timeline set forth in the façade inspection report and in conjunction with the recommendations of the Construction Code Official.

    a. Following completion of the repairs, the licensed architect or engineer shall inspect the building and the property owner shall file an amended façade inspection report, prepared by the licensed architect or engineer, setting forth the conditions of the building with the Division of the Construction Code Official within 30 days of repairs being completed.

b. If repairs are not made in accordance with the recommendations and timeline set forth in the façade inspection report and with the recommendations of the Construction Code Official, the Construction Code Official shall have the power to shut down any buildings that pose an imminent threat to the safety and welfare of the occupants or residents of Jersey City.

4. Fees. The fee for the filing and review of the façade inspection report shall be as provided in Chapter 160, Fees and Charges.

5. Penalties. Any person or corporation convicted of violating any of the provisions of this chapter shall be subject to the penalties set forth in § 1-25.

§ 254-46. Security measures for residential buildings.

A. Every building containing four (4) or more dwelling units shall be provided with:

(1) Self-locking doors at every entranceway providing access to each dwelling unit from all hallways or other common area.

(2) Self-locking and self-closing doors at every entranceway providing access to each building from the exterior thereof, except as hereinafter provided.

B. Except in wood frame detached buildings, every building containing four (4) or more dwelling units shall be provided with either:

(1) A self-closing and self-locking main entranceway door to the exterior thereof which shall be opened only by a key from the outside and by an electrical control system operable from each dwelling unit;

(2) A peephole in the front door of each dwelling unit; or

(3) A doorperson at the main entranceway door to the exterior thereof.

C. All locks, self-locking and self-closing doors and electrical control systems, such as buzzers, bells or intercom systems, shall be maintained in good and operable condition at all times.

D. Where a building remains vacant for thirty (30) days or more it shall be the duty of the owner to board up or otherwise properly secure all windows, doors and other openings to prevent unauthorized entry.

ARTICLE X

Property Used for Illegal Activities [Added 6-24-1992 by Ord. No. 92-075]

§ 254-47. Definitions. [Amended 9-11-2013 by Ord. No. 13-081]

As used in this Article, the following terms shall have the meanings set forth herein:

CHIEF OF POLICE - The Chief of the Division of Police or his or her designees in the enforcement of this Article.

COSTS - Those cost actually incurred by the city for the physical securing of the structure, as well as tenant relocation costs, if required to be paid to any person.

OWNER - Any person, agent, form, corporation, association or partnership, including a mortgagee in possession in whom is vested:

A. All or part of the legal title to the property;

B. All or part of the beneficial ownership and a right to present use and enjoyment of the premises; or

C. An occupant of the property.

PERSON - Any natural person, association, partnership or corporation capable of owning or using property in the State of New Jersey.

SPECIFIED CRIME PROPERTY - Any structure or place where activity involving the unlawful possession, use, sale, delivery or manufacture of a controlled substance, as defined in N.J.S.A. 24:21-35 or 2C:31-2, as amended from time to time, has occurred or is occurring.

STRUCTURE - Any kind of structure, edifice or building, or unit(s) thereof, regardless of its commercial, residential or institutional use, including apartment units, rental units or garages of common areas, exterior or interior.

§ 254-48. Use as specified crime property prohibited.

A. Use of property. It is unlawful for structures to be employed or used as specified crime property within the City of Jersey City. If, pursuant to the procedures contained in this Article, property is found to be used or employed as such, it is subject to closure for a period of up to one (1) year.

B. Personal responsibility. It is unlawful for any person to employ, use, maintain or allow the employment, use or maintenance of specified crime property under their ownership and/or control by renting

it or otherwise allowing or suffering others to so use it. A person who is found in violation of this subsection shall be subject to civil penalties of up to five hundred dollars ($500.) per day for each day the property has been used as specified crime property, as set forth herein.

§ 254-49. Violations and penalties; waiver.

Unless vacation of a premises is waived or set aside by the Superior Court, it shall be unlawful for any person to use or occupy any structure determined to be specified crime property after the period prescribed in a notice, after service of notice has been made pursuant to §§ 254-50 and 254-51.

A. The provisions of this Article may be waived by the city in the event that the Director of Public Works determines that exigent circumstances are such that the use or occupancy of the structure prior to a plenary judicial review is mandated and not contrary to the public safety. **[Amended 9-11-2013 by Ord. No. 13-081]**

B. Any occupant who fails to cease the use or occupancy of a structure, as required by this Article, shall be subject to the fines and penalties, civil or otherwise, provided for violation of this Article pursuant to a court order, after notice and an opportunity to be heard by the court having jurisdiction of an action brought pursuant to this Article.

§ 254-50. Determination and notice of violation.

When the Chief of Police has determined that a structure has been or is being used or maintained in violation of § 254-48, he or she shall request the Corporation Counsel to commence proceedings to cause the closure of the structure unit or area, as well as the imposition of civil penalties against any or all of its owner.

§ 254-51. Contents of notice.

The Chief of Police shall notify the owner of record, in writing, that the structure has been determined to be specified crime property.

A. The notice shall contain the following information:

(1) The street address and a legal description sufficient for identification of the premises on which the structure is located.

(2) A statement that the Chief of Police has found the structure to be in violation of this Article, with a concise description of the conditions leading to his or her findings.

B. A copy of the notice shall be served on the owner, resident, manager and/or agent at least ten (10) days prior to the commencement of any judicial action by the city. Service shall be made either personally or by mailing a copy of the notice by registered or certified mail, postage prepaid, return receipt requested, to each person at their address, as registered with the city clerk, or in the case of properties not subject to such registration, to the address of the owner of record as it appears on the last equalized assessment of the tax roll, as well as on the last instrument of conveyance as recorded in the County Clerk's office, and as may be otherwise known to the Chief

of Police. If no address appears or is known to the Chief of Police, then a copy shall be mailed first class, postage prepaid, addressed to such person at the address of the structure believed to be specified crime property.

C. A copy of the notice shall also be served on the occupants of the structure. Service of this notice shall occur not less than five (5) days prior to the commencement of any judicial proceedings and shall be made either personally or by mailing a copy of the notice by first class mail, postage prepaid, to them at the structure.

D. Furthermore, a copy of the notice shall be posted at the property if ten (10) days has elapsed from the service or mailing of the notice to the owner(s) without return proof of receipt.

§ 254-52. Failure to receive notice.

The failure of any person or owner to receive actual notice of the determination by the Chief of Police shall not invalidate or otherwise affect the proceedings under this Article unless, and to the extent it shall be determined, that deprivation of notice substantially interfered with the owner's ability to abate any nuisance within the time period prescribed.

§ 254-53. Commencement of action. [Amended 9-11-2013 by Ord. No. 13-081]

A. Civil proceeding. Concurrent with the notification procedures set forth above, the Chief of Police shall send a copy of the notice to the Director of Public Safety together with any other documentation which he or she believes supports the closure of the structure and the imposition of civil penalties. The Director of Public Safety shall then request the Corporation Counsel to commence civil proceedings in a court of competent jurisdiction seeking the closure of the structure as well as the imposition of civil penalties against any and all of the owners thereof, and any such other relief as may be deemed appropriate.

B. Exception: agreement to abate conditions. Nothing contained in Subsection A shall be construed to limit the ability of the Director of Public Safety, prior to the institution of judicial proceedings, to enter into agreements with an owner willing to voluntarily abate the condition(s) giving rise to the violation.

§ 254-54. Stay of proceedings.

Except in a proceeding under § 254-57, if, after commencement but prior to the trial of an action brought by the city pursuant to this Article, an owner specifically commits, in an enforceable manner, to pursue a course of action which is calculated to abate the conditions giving rise to the violation(s), the city shall agree to stay proceedings for a period of not less than ten (10) nor more than sixty (60) days. The owner or the Corporation Counsel may thereafter petition the court for such additional periods of time as may be necessary to complete the action(s) contemplated by the stipulation. However, in the event that the Corporation Counsel reasonably believes the owner is not diligently pursuing the action(s) contemplated by the stipulation, he or she shall then apply to the court for a release from the stay seeking relief, as is deemed appropriate.

§ 254-55. Burden of proof.

In all actions seeking the closure of a structure as a specified crime property, the Corporation Counsel shall first determine that sufficient evidence exists to meet the burden of proof that the structure is a specified crime property. In all actions seeking civil penalties from an owner, the Corporation Counsel shall first determine that sufficient evidence exists to meet the burden of proof to show that the owner had actual or constructive knowledge of activities or conditions at the structure constituting a violation of this Article, on the basis of the notice provided hereunder or otherwise, and of the fact that the owner did not, thereupon, act to abate the activity or the conditions or circumstances giving rise to the activity, including but not limited to the commencement of eviction proceedings in the case of an offense by a tenant.

§ 254-56. Defense.

It is a defense to an action seeking the closure of a structure or penalties that the owner of the subject property acted reasonably and diligently but could not, by the exercise of reasonable care or diligence, determine that the structure had been or was being used or maintained as a specified crime property and that, upon receipt of notice of such activity pursuant to this Article, all reasonable measures were taken to abate such activity, including but not limited to the institution of summary eviction proceedings or other forms of action calculated to prevent such activity from recurring on the property.

§ 254-57. Closure during pendency of action.

In the event that it is determined that the structure is an immediate threat to the public health, safety and welfare, the Corporation Counsel shall apply to the court for such interim relief that is deemed to be appropriate. In such an event, the notification procedures set forth at § 254-50 and the limitation of § 254-54 need not be complied with.

§ 254-58. Enforcement of closure order; costs; penalty.

A. In the event that a structure constitutes a specified crime property, as defined in this Article, the Corporation Counsel shall pursue, on notice to all tenants affected and all lien holders of record, in addition to all other remedies, an order of the Superior Court that it, or any unit or area of it, be closed for any period of up to one (1) year and that the owner(s) pay to the city a civil penalty of up to five hundred dollars ($500.) for each day the owner had knowledge of activities or conditions at the structure constituting a violation of this Article and failed to undertake or maintain efforts of abatement. In the event that the enforcement of this Article requires an owner to institute tenancy eviction of partition proceedings, it shall be the duty of all appropriate officials of the City of Jersey City to provide testimony or evidence in such cause.

B. In establishing the amount of any civil penalty to pursue, the Corporation Counsel shall consider the following factors, if appropriate, and shall cite those found applicable.

   (1) The actions taken by the owner(s) to mitigate or correct the problem at the structure.

   (2) The financial condition of the owner(s).

   (3) Whether the problem at the structure was repeated or continuous.

   (4) The magnitude or gravity of the problem.

   (5) The economic or financial benefit accruing or likely to accrue to the owner(s) as a result of the conditions at the structure.

   (6) The cooperativeness of the owner(s) with the city.

   (7) The cost to the city of investigating and correcting or attempting to correct the condition.

   (8) Any other factor deemed by the Corporation Counsel to be relevant and worthy of consideration by the court.

C. The Corporation Counsel may seek orders authorizing the city or ordering the owner to physically secure the structure against use or occupancy in the event that the owner(s) fail to comply with other remedies agreed to or ordered by the court within the time specified. In the event that the city is authorized to secure the property, all costs reasonably incurred by the city to effect a closure shall be made an assessment lien upon the property.

D. The city bureau(s) effecting the closure shall be responsible for maintaining records and providing statements of costs for submission by the Corporation Counsel to the court.

§ 254-59. Relief from closure order.

A. The Corporation Counsel may enter into consent orders, with the approval of the court, with an owner of a structure determined to be specified crime property to provide relief from the court's judgment if the owner:

(1) Appears and pays all costs associated with the proceedings under this Article.

(2) Files a bond in such a place and form as the court may by order direct, in an amount not less than the tax assessed value of the structure and keeps such bond in force for a period of not less than one (1) year, or for such period as the court directs.

(3) Enters into a stipulation with the city that the owner shall immediately abate the conditions giving rise to the determination that the property is a specified crime property and prevent the same from being established or maintained thereafter. The stipulation will then made part of the court's record.

B. In the event that the owner violates the terms of the stipulation, the city may thereafter apply to the court for an order awarding up to the entire amount of the aforementioned bond to the city as a penalty, as well as such other relief, including closure for any additional period of up to one (1) year, that is deemed by the court to be appropriate.

ARTICLE XI
Maintenance Responsibilities of Occupants

§ 254-60. General responsibilities.

A. Every occupant of a dwelling or dwelling unit shall keep in a clean and sanitary condition that part of the dwelling, dwelling unit and premises, including the yard and accessory buildings thereof, which he or she occupies and controls.

B. No occupant shall create fire or safety hazards by storing goods or property or by dumping garbage or refuse on the means of egress or in the public areas of the building he or she occupies.

§ 254-61. Rubbish disposal.

Every occupant of a dwelling or dwelling unit shall dispose of all his or her rubbish in a clean and sanitary manner by placing it in the rubbish containers required by § 254-30 of Article VI.

§ 254-62. Garbage removal.

A. Every occupant of a dwelling unit in a dwelling containing no more than two (2) dwelling units shall be responsible, unless provided for otherwise under a lease agreement, for the periodic removal of all garbage and rubbish from the premises in accordance with the regulations of the city for the collection of garbage and rubbish.*

* **Editor's Note: See Ch. 287, Solid Waste.**

B. In every dwelling containing three (3) or more dwelling units, all garbage and waste materials in each of said dwelling units shall be deposited daily by the occupants in the exterior garbage containers supplied by the owner or shall be placed by them in the incinerator or on the dumbwaiter if incinerator or dumbwaiter service is provided.

§ 254-63. Extermination.

A. Every occupant of a dwelling containing a single dwelling unit shall be responsible for the extermination of any insects, rodents or other pests therein or on the premises; and every occupant of a dwelling unit in a dwelling containing more than one dwelling unit shall be responsible for such extermination whenever his or her dwelling unit is the only one infested.

B. Notwithstanding the foregoing provision of this Article, whenever infestation is caused by failure of the owner to maintain a dwelling in a ratproof or reasonably insectproof condition, extermination shall be the responsibility of the owner.

C. All costs of extermination shall be the sole and exclusive obligation of the owner. Such costs may not be charged to any tenant or occupant. However, the owner will not be responsible to undertake the treatment and re-treatment more than one time per year. If repeated treatments are necessary or the extermination is due to the tenant's failure to properly maintain the dwelling, notwithstanding the initial treatment and re-treatment, the costs can be charged to the tenant. **[Added 9-24-2008 by Ord. No. 08-140]**

§ 254-64. Screens.

Every occupant of a dwelling or dwelling unit containing two (2) dwelling units or less shall be responsible for hanging all screens and double or storm doors and windows whenever the same are required under the provisions of this chapter or of any rule or regulation adopted pursuant thereto, except where the owner has agreed to supply such service.

§ 254-65. Kitchen facilities and plumbing fixtures.

Every occupant of a dwelling unit shall keep all food storage receptacles, cooking facilities and plumbing fixtures therein in a clean and sanitary condition and shall be responsible for the exercise of reasonable care in the proper use and operation thereof.

§ 254-66. Heating facilities.

Every occupant of a dwelling unit shall be responsible for the exercise of reasonable care, proper care and proper operation of supplied heating facilities.

§ 254-67. Care in use of premises and facilities.

Every occupant of a dwelling unit which is let or rented from another shall be responsible for the exercise of reasonable care and the proper use of the dwelling unit, and its component parts, and supplied facilities, equipment, fixtures and furnishings.

§ 254-68. Overoccupancy unlawful.

No occupant shall occupy or permit the occupancy of any dwelling or dwelling unit in violation of the occupancy standards established in this chapter.

§ 254-69. Owner's right of entry.

Every occupant of a dwelling or dwelling unit shall give the owner thereof, or his or her agent or employee, access to any part of such dwelling or dwelling unit or its premises at all reasonable times for the purpose of making such repairs or alterations as are necessary to effect compliance with the provisions of this chapter or with any lawful rule or regulation adopted or any lawful order issued pursuant to the provisions of this chapter.

§ 254-70. Maintenance of plumbing.

Every occupant or operator shall maintain all plumbing fixtures used by him or her in a clean and sanitary condition, and he or she shall not deposit any material in any fixture or sewer system which would result in stoppage of or damage to the fixture or sewer system.

§ 254-71. Providing notice of defect to owner.

Where the owner or manager would not otherwise know of a defect in any facility, utility or equipment required to be furnished hereunder and the same is defective or inoperable, each occupant or manager affected thereby shall, upon learning of said defect, provide notice to the owner, manager or other person in charge of the premises. However, nothing herein shall be construed to provide a defense to any owner or manager violating this chapter.

§ 254-72. No occupancy without required facilities.

No person shall occupy or continue to occupy a dwelling unit or rooming unit that does not have provision for bathroom facilities as required under § 254-26A(1) of Article VI and § 254-100A of Article XVI.

§ 254-73. Violations by minors.

Any adult member of the family or any adult foster parent shall be responsible and liable for any violation of this Article caused by minors under their care or custody and occupying the same dwelling unit if the violations were created or permitted to continue with the knowledge or acquiescence or consent of said adult member or adult foster parent.

ARTICLE XII
Illegal Transportation of Landfill; Dumping

§ 254-74. Unlawful acts.

It shall be unlawful for any person to transport landfill without a permit or to dump or otherwise deposit garbage, rubbish or other refuse on any vacant or occupied land within the city; or to permit the growth of ragweed or other noxious weeds or to permit the accumulation of stagnant water or the breeding of mosquitoes or the harboring of rodents.

§ 254-75. Dumping. [Amended 6-14-1995 by Ord. No. 95-050]

Without restricting the generality of § 254-74 of this article, no person shall dump or otherwise deposit bottles, broken glass, carpets, crockery, cut grass, leaves, tree branches, lumber, bedding or furniture, iceboxes or refrigerators, leather, metal, old clothes, old shoes, rubber or tires on any vacant or occupied land within the city.

ARTICLE XIII
Certificate of Necessity

§ 254-76. Applicability.

Where any owner, manager or occupant is required to make repairs or otherwise improve his or her property and is unable to comply with this chapter without having right of access to the building or premises through or across adjoining premises not owned by him or her or under his or her control, and where right of access has been refused the owner, manager or occupant, or where the owner or person responsible for granting permission cannot be found or located, then, upon filing of affidavit setting forth the facts with the Director, the Director shall serve a five-day written notice of a hearing in accordance with the provisions for service contained in § 254-17 of Article III upon the owner, manager or occupant of any adjoining premises affected by the application.

§ 254-77. Hearing.

On the day fixed for hearing the Director shall provide an opportunity for the owner, manager or occupant of the adjoining property or properties to state why access should not be granted to or across the adjoining properties.

§ 254-78. Issuance of certificate; conditions; bond.

If the Director determines that access is necessary to accomplish or complete repairs or improvements necessary for compliance with this chapter, then the Director shall issue a certificate of necessity setting

forth therein the person or persons to whom the certificate shall apply, such conditions as shall be necessary to protect the adjoining property, reasonable time limits during which such certificate shall operate, precautions to be taken to avoid damage and, where the Director deems proper, that a bond be procured against damage to persons or property arising out of such rights of access. The bond shall not exceed in amount $10,000, and the amount set shall take into consideration the extent, nature and duration of the repairs, the proximity of the improvement on the premises affected and potential risk of damage thereto. The bond shall be filed with the Director.

§ 254-79. Procedure where access refused.

Any refusal to comply with this article or any interference with access to premises pursuant to a certificate issued hereunder shall be a violation of this chapter, and in addition to penalties provided hereunder, the Director may, upon affidavit, apply to the Judge for a warrant under the procedure set forth in § 254-14B of Article III authorizing access to the premises under appropriate conditions and circumstances as provided under § 254-78 of this article.*

ARTICLE XIV
Registration and Notification

§ 254-80. Changes in ownership.

A. Any change in address of the persons cited in N.J.S.A. 40:48-2.12C shall be reported to the Division of Construction Code Official within 30 days after such change. **[Amended 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052]**

B. Upon any change in the ownership or control of any dwelling containing three or more dwelling units which is let or rented to others for the purpose of living therein, the new owner or manager shall register such transfer by making application for a new Limitation of Occupancy Notification within 30 days of the time of acquisition.

Editor's note—Original Sec. 13-73, entitled "Reporting increases in dwelling units or occupancy," which immediately followed this section, was deleted 6-14-1995 by Ord. No. 95-050.

Cross reference—See also Ch. 257, Property Transfers.

§ 254-81. Application form for notification.

A. Where to apply. The application for a Limitation of Occupancy Notification shall be made by the owner or manager to the Chief on forms provided by the Division of Construction Code Official. **[Amended 8-13-1997 by Ord. No. 97-052]**

B. The application shall contain:

(1) The name and address of the manager and the name and address of the owner if the manager is not the owner.

(2) The location of the dwelling or dwelling units, including the street and number of each entrance.

*__Editor's note__—Original Sec. 13-70, entitled "Obligation to register," and Sec. 13-71, entitled "Contents of Limitation of Occupancy Notification," which immediately followed this section, were deleted 6-14-1995 by Ord. No. 95-050.

(3) The number of dwelling units available for rent in accordance with the provisions of this chapter and with the rules and regulations issued thereunder and in accordance with any other applicable provisions of the Jersey City Code or regulations thereof.

(4) If the owner or manager is a corporation, the name and address of such corporation and the name and address of its president, secretary and registered agent shall be given.

(5) If the owner or manager does not actually reside within the city or is not customarily present at an office in the city for the purpose of transacting business, then such owner or manager shall register the name and address of a person, or persons, who resides within or is customarily present at an office in the city who will be responsible for the maintenance and operation of the dwelling or dwelling units in accordance with the provisions of this chapter and who will be authorized to receive notices and process on behalf of the owner or manager in connection with the enforcement of this chapter. In the event that the owner or manager is a corporation, or in the event that a corporate managing agent is designated by an owner or manager, the corporation shall designate an officer or agent as the person so responsible. Said officer or agent designated as a managing agent shall meet the requirements of this subsection as to location and residence.

(6) Any person who signs the application herein provided for shall certify that all statements therein contained are, to the best of his or her knowledge and belief, true and correct.

(7) Such other information as the Chief may require.

§ 254-81.1. Registration of properties for compliance with the Lead Hazard Control Assistance Act. [Added 1-01-2024 by Ord. No. 23-018]

A. On or before June 30, 2023, every property subject to inspection under the Lead Hazard Control Assistance Act shall register with the Division of Housing Preservation upon forms prescribed and furnished by the Division of Housing Preservation or upon creation of a web-based registration portal, such registration shall be online through the portal.

The registration shall provide:

1. The name and address of the owner, the name and address of the lessor, if the lessor is not the owner and the address of the agent in charge of the premises residing in the municipality;

2. The location of the dwelling or dwelling units, including the street and number of each entrance;

3. The name of each tenant for the purpose of compliance with the Lead-Hazard Control Assistance Act (P. L. 2021, C. 182); and

4. Such other information as the Division of Housing Preservation may require.

B. The registration shall be revised within 20 days of tenant turnover.

C. Any person who signs the registration provided shall certify that all statements therein are, to the best of his or her knowledge and belief, true and correct.

D. As used in this section "tenant turnover" means the time at which all existing occupants vacate a dwelling unit and new occupants move into the dwelling unit.

E.1.The Act defines properties subject to inspection as "[1]every single-family, two-family, and multiple rental dwelling located within the municipality at tenant turnover for lead-based paint hazards or within two years of the effective date of P.L. 2021, c. 182 (C. 52:27D-437.16 et al.), whichever is earlier. Thereafter, all such units shall be inspected for lead-based paint hazards the earlier of every three years or upon tenant turnover, except that an inspection upon tenant turnover shall not be required if the owner has a valid lead-safe certification pursuant to this section.

2. A unit is exempt from inspection under the Act if:

(a) Has been certified to be free of lead-based paint;

(b) Was constructed during or after 1978;

(c) Is in a multiple dwelling that has been registered with the Department of Community Affairs as a multiple dwelling for at least ten years, either under the current or a previous owner, and has no outstanding lead violations from the most recent cyclical inspection performed on the multiple dwelling under the "Hotel and Multiple Dwelling Law," P.L. 1967, c. 76 (C. 55:13A-1 et seq.);

(d) Is a single-family or two-family seasonal rental dwelling which is rented for less than six months duration each year by tenants that do not have consecutive lease renewals; or

(e) Has a valid lead-safe certification issued in accordance with N.J.S.A. § 52:27D-437.16(c).

ARTICLE XV
Licensing*

§ 254-82. License required. [Amended 4-14-1983 by Ord. No. MC-340]

A. No person, firm or corporation shall manage, conduct or operate the business of keeping a furnished apartment, hotel or motel, referred to hereunder as "establishments," subject to licensing, without first securing a license therefor within the time and manner provided, nor shall any owner permit on premises owned by him or her the operation of such an establishment without a license.

B. No building or parts of a building shall be used as a furnished apartment, hotel or motel prior to the person, firm or corporation desiring such use making an application and receiving a license to be issued by the Director in accordance with the provisions of §§ 254-83 through 254-87 of this article.

C. A license shall be issued only for buildings meeting the requirements of this chapter and to the person desiring actually to use the building as a hotel, furnished apartment, motel (or dormitory), and said license shall terminate at any time after its issuance in the event that the use of the building for such purpose shall cease, or the building shall be officially declared not to be in compliance with this chapter or other applicable ordinances or rules and regulations thereto.

***State law reference**—See also N.J.S.A. 55:13B-1 et seq.

§ 254-83. License application. [Amended 4-14-1983 by Ord. No. MC-340]

A. The application for a license, as required herein, shall be submitted in triplicate to the Director on forms supplied by the Division of Construction Code Official. The application shall include: **[Amended 8-13-1997 by Ord. No. 97-052]**

(1) The name and address of the manager and the name and address of the owner if the manager is not the owner.

(2) The location of the establishment subject to licensing, including the street and number of each entrance.

(3) The number of units occupied or available for occupancy and the number of persons who may be accommodated in accordance with the occupancy provisions of this chapter and with the provisions of other applicable municipal ordinances and regulations thereof.

(4) Such other information as the Director may require.

B. All applications shall be accompanied by the required fees.

C. Where the applicant seeks a license for an establishment based on a claim that the same constitutes a lawful nonconforming use, the applicant shall state in the application the names and addresses of the owner and manager of the premises on the date when the use, by reason of the zone change or variance, first became nonconforming, and the number of rooms as of that date.

D. The application shall be signed by the owner as well as the manager and shall contain a certification of the truth of the information contained therein by both the owner and manager.

E. Any false information shall constitute a violation of this chapter and, in addition, grounds for revocation of any license approved pursuant thereto.

F. Any false information rendered knowingly and intentionally may, upon complaint of the Director, subject the party rendering it to criminal prosecution.

§ 254-84. Term of license; renewal. [Amended 4-14-1983 by Ord. No. MC-340]

Except as otherwise provided herein, the term of the license shall be for one year, from March 1 to the last day of February of the next succeeding year, and is renewable annually.

§ 254-85. License fees. [Amended 4-14-1983 by Ord. No. MC-340]

A. The license fee shall be due and payable on or before March 1 of each year. The license fee for any part of a year shall be the same as the license fee for the entire year.

B. The license fees shall be as provided in Chapter 160, Fees and Charges. **[Amended 5-24-1995 by Ord. No. 95-045]**

C. A license shall issue to a hotel upon payment of the fee provided in N.J.S.A. 55:13A-1 et seq.

D. When a request for a special inspection is made, a fee, the same as the registration fee, shall be charged to the person making the request.

§ 254-86. Procedure upon filing of application. [Amended 9-11-2013 by Ord. No. 13-081]

A. Before any license is issued for any building for any purposes aforesaid, the Director of Public Safety shall receive a statement of the inspection required herein, certifying that the building complies in all respects with the provisions of this chapter.

B. Upon filing the application, the Director shall immediately transmit the original to the City Clerk and one copy to the Director of Public Safety.

(1) The original shall be kept on file at all times in the office of the license issuing authority.

(2) The Director of Public Safety shall have inspections made of all establishments subject to licensing between January 1 and March 1 of each year and then shall take all following actions required to make sure all of these establishments are free from fire hazards and comply with applicable ordinances, rules and regulations for fire prevention and control. Within two weeks after the applications are filed, the Director of Public Safety shall indicate officially on each of his or her copies whether or not these buildings and premises for which licenses are sought have been found in compliance with this chapter and all applicable ordinances and rules and regulations and shall return the copies to the Director.

C. Inspection of the premises for compliance with this chapter and all related chapters administered by the Division of Construction Code Official shall be conducted in accordance with the regulations of the Director. **[Amended 8-13-1997 by Ord. No. 97-052]**

D. Upon completion of inspections, if the Director shall determine that the premises are in compliance, then the license shall be issued forthwith; provided, however, that if action of the Board of Adjustment is required under the Zoning Ordinance, no license shall be issued except in accordance with Chapter 345, Zoning, of this Code.

§ 254-87. Refusal of license or renewal; revocation or suspension. [Amended 3-24-1988 by Ord. No. C-708]

A. Notwithstanding the provisions of § 254-86 of this article, the Director may refuse to certify said application for a license where the manager or any person or persons who shall be in active management of the premises shall be found to be unfit to perform the duties thereof by reason of a record of convictions of a crime or offense involving moral turpitude, gambling or prostitution, alcoholism, illegal possession or use of drugs or narcotics, be a known carrier of a communicable disease or otherwise found to be physically or mentally unfit or unsuited by similar or equivalent circumstances for active management of the premises.

B. The Director may suspend or revoke a license or refuse said application for a license or renewal thereof where the conduct of the tenants is such as to constitute a general nuisance to the area where the premises are located or where the owner or operator:

(1) By conduct either unlawful in itself or unreasonable under all the circumstances creates or maintains a condition which endangers the safety or health of the neighborhood or disturbs the peace and tranquillity of the neighborhood.

(2) Conducts or maintains a premises where persons gather for purposes of engaging in unlawful conduct.

(3) Conducts or maintains any premises as a house of prostitution.

C. No owner, manager or operator of a hotel or motel shall let any room or rooms more than once between the hours of 6:00 p.m. and 6:00 a.m. the next day except to bona fide travelers with baggage.

§ 254-88. Applicant's right to hearing.

A. If the Director shall determine that the applicant has failed to meet the requirements of this chapter, the requirements of the Department of Public Safety or of any other ordinance of the city or laws of the State of New Jersey or that the applicant is unqualified pursuant to § 254-87 of this article or upon any suspension, revocation or failure to renew a license, the Director shall send a written notice to the applicant setting forth his or her reasons therefor. **[Amended 9-11-2013 by Ord. No. 13-081]**

B. The applicant may thereupon correct any violation and apply for reinspection upon the payment of a reinspection fee as provided in Chapter 160, Fees and Charges, or submit a written report for a hearing to the Director in which request the applicant shall state the facts on which he or she will base his or her contention that the Director's determination was in error. **[Amended 6-14-1995 by Ord. No. 95-050]**

C. The Director shall, within 30 days from the receipt thereof, provide upon a minimum of five days' notice to the applicant a hearing and render a decision thereon within 10 days thereafter. The Director may in such decision affirm or reverse a previous determination or modify his or her determination and agree to approve said application or terminate the suspension or revocation upon compliance with specified conditions.

§ 254-89. Operation without a license prohibited.

On or after January 1,1969, no person shall as a manager conduct or operate, or cause to be conducted or operated, or as an owner who is not also a manager knowingly allow others to conduct or operate without a license on premises owned by him any establishment subject to licensing.

§ 254-90. Violations and penalties.

A. Upon determining that the premises are in violation of this chapter, other applicable chapters or any other applicable ordinances of the city or the laws of the State of New Jersey, at any time after a license is issued, the Director shall require correction of said violation within ten (10) days' by notice in writing to the owner and manager.

B. Upon failure to correct the violation within the time prescribed, the owner and operator shall be liable for the penalties for violations of applicable provisions of the Jersey City Code or ordinances which are prescribed in the general provisions of the Jersey City Code. In addition thereto, the Director may suspend temporarily or conditionally refuse to renew the license issued for the premises for failure to correct the violation as aforesaid; provided, however, that if the owner or manager requests a hearing, no such suspension shall be effective until after a hearing and determination pursuant to § 254-88, which determination shall state reasonable terms and conditions upon which the suspension shall terminate or renewal shall be granted.

C. Where there has been a violation or conviction within one (1) year from the date of service of notice of violation and the violation shall be repeated or remain unabated resulting in a second notice of violation or conviction thereon in the Municipal Court, the Director may thereafter permanently revoke the license or refuse renewal thereof without conditions or terms.

§ 254-91. Changes in application.

Any license issued hereunder shall cover only the number of occupants and that part of the premises described in the application therefor. Any increase in rooming units or in the number of roomers to be accommodated or of the part of the premises utilized as a lodging house or other structural changes affecting the data contained in the application or change in the person or persons actually in charge of operating or maintaining the premises shall require the submission and filing of an amended application containing the additional information as required by the Director.

§ 254-92. Licenses nontransferable.

The license issued hereunder shall be nontransferable and no person other than the licensee shall operate or be permitted by the owner to operate the licensed premises. Where there is to be a change of ownership or operation, application shall be made for a new license.

§ 254-93. License fees nonrefundable.

The applicant shall not be entitled to any refunds of any fees paid hereunder by reason of the rejection of any application, the suspension or revocation of any license or transfer of ownership or operation of premises prior to the termination of the license period.

§ 254-94. Posting of license.

The licensee shall display the license in a vestibule, front hallway or other prominent and public place at or near the front entrance of the building during the entire period for which the license was issued.

§ 254-95. Effect of licensing on other provisions.

The issuance of a license shall constitute a certification that the premises as of the date of issuance comply with this chapter, but shall not be construed to constitute a certification that the premises comply with any other such applicable provisions of the Jersey City Code or ordinances or any state law nor shall it relieve any other official or public agency from enforcing any such applicable chapter, provisions or laws.

ARTICLE XVI

Apartments, Hotels, Motels and Dormitories

§ 254-96. Register book required.

A. All such establishments subject to licensing shall keep a register in which there shall be set forth the name and last permanent address and signature of each occupant, the number of the room to be occupied by each occupant and the name and address of any person or persons to be notified in case of emergency.

B. Registration under a false name is prohibited.

C. Said register shall be available at all times to the authorized representative of the Director and the Director of Public Safety. **[Amended 9-11-2013 by Ord. No. 13-081]**

§ 254-97. Right of Director or Health Officer to ascertain physical or mental limitations of occupants.*

A. When physician's certificate shall be required. Where the Director or Health Officer has reason to believe that an occupant of an establishment subject to licensing other than a state-licensed nursing home or housing for the elderly either requires special care or is disabled, the Director may require that the person produce within forty-eight (48) hours a physician's certificate attesting to the mental or physical condition of said person as it relates to the category in which the occupant is classified.

B. Grounds for having occupant relocate. If the Director or Health Officer shall determine that said occupant of an establishment subject to licensing requires special care or is disabled and is prohibited, therefore, from residing in any lodging house or in any boardinghouse other than state-licensed nursing homes or housing for the elderly, then said person shall vacate the premises and relocate in a suitable and appropriate establishment no later than five (5) days after the issuance of an order directed to the owner or manager and to the occupant thereof, and if the condition of the person or circumstances under which he or she resides requires immediate attention, the order shall so specify and a period of less than five (5) days may be prescribed therefor.

§ 254-98. Occupancy by unemancipated minors prohibited.

The occupancy of any rooming unit in an establishment subject to licensing by an unemancipated minor is hereby prohibited and the manager and occupant of the premises in which such occupancy occurs shall be liable hereunder.

§ 254-99. Overcrowding.

Occupancy in excess of the maximum occupancy permitted under § 254-36 of Article VII or the occupancy data set forth in the application under § 254-83 of this Article is prohibited.

*Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 254-100. Sanitary conditions; general maintenance.

A. Bathroom and water closet facilities required.

(1) Bathroom or bathrooms, which affords privacy to a person inside said room; contains a bathtub or shower, wash basin and flush water closet; and complies with such other requirements as are set forth elsewhere in this Code shall be supplied for each six (6) persons or fraction thereof residing within a lodging house or boardinghouse; except that in an establishment subject to licensing where rooms are let only to males, flush urinals may be substituted for not more than one-half (1/2) the required number of water closets.

(2) All such facilities shall be so located within the dwelling as to be directly accessible from a common hall or passageway which is either on the same floor as, or is one (1) floor above or below, all rooming units it is designed to serve and which hallway is directly accessible to the occupants of all such rooming units without passing through any part of any other rooming unit or dwelling unit.

(3) All bathrooms and water closet compartments shall be provided with inside locks.

B. Bedding, bed linen, towels and soap required. Every manager shall provide for all occupants' bedding, mattresses, mattress covers, bed linens, blankets, pillows, towels and soap. All such items shall be kept in clean and sanitary condition at all times. Fresh, clean bed linens and towels shall be supplied for each new occupant at the commencement of the term of occupancy and fresh, clean bed linens and towels shall be supplied at least once a week. Unless laundry service is provided for all occupants, a laundry tub or washing machine shall be accessible to and available for use by all occupants.

C. Furniture and furnishings. All furniture and furnishings shall be maintained in safe and sound condition, in good repair, and upholstery and coverings shall be kept clean and free of rips and tears. Windows shall be provided, where necessary, with blinds, draw drapes, curtains or shades to provide occupants with privacy.

D. Person in charge of the premises. There shall be present and in charge of every establishment subject to licensing a person who is mentally and physically competent to maintain the same in safe and sanitary condition, who shall keep the exterior of the premises and all common interior areas, including but not limited to the landings, stairways, hallways and bathrooms, clean, free from garbage and other refuse and free of infestation and who shall attend to the daily removal of garbage as required under § 254-45B(24) of Article IX.

§ 254-101. Safety and fire prevention. [Amended 9-11-2013 by Ord. No. 13-081]

A. Hotels; fire protection.

(1) Requirements. No license shall issue for the use of any building as a hotel unless the building complies with the requirements of N.J.S.A. 29:1-8 et seq.* and with this chapter in the following respects:

‘Editor's Note: N.J.S.A. 29:1-8 was repealed by L. 1967, c.76, § 28. See now N.J.S.A. 55:13A-1 et seq. for similar provisions.

(a) Fire escapes shall conform to the Tenement House Laws of the State of New Jersey in buildings subject to such laws, and a red light on the passageway or doorway leading to the fire escape shall be lighted at all times and doors leading to such fire escapes shall be unlocked from the inside at all times.

(b) Every community kitchen shall have one (1) unit Class B extinguisher as classified by the American Insurance Association.

(c) There shall be installed and maintained by the owner in every bedroom above the first floor in any building not subject to the Tenement House Laws a portable fire escape approved by a nationally recognized organization of the Director of Public Safety, securely fastened to the inside of said bedroom, with painted instructions as to its proper use on the metal cover of the box or container. When webbed or rope portable fire escapes are used, the date of installation shall be stamped on each portable fire escape and the fire escape shall not be continued in service for a period of more than ten (10) years from the date of installation. However, the use of all portable fire escapes shall be subject to the findings revealed by periodic examination conducted by the Department of Public Safety, and should such examination reveal any condition hazardous to the safety of the occupants, said portable fire escapes shall immediately be replaced by the owner with portable fire escapes as described above.

(d) Portable fire escapes shall not be used when the window sill is more than thirty (30) feet above the ground or grade level. The Director of Public Safety may grant a variance of this section with the approval of the Director, but in no case to exceed more than thirty-five (35) feet. Each request for variance shall be in writing.

(e) There shall be placed on each floor one (1) unit of Class A extinguisher for every four (4) sleeping rooms or part thereof. If on two (2) successive floors there are four (4) sleeping rooms, one (1) unit Class A extinguisher shall be placed on the lower of said two (2) floors, but, however, it shall be unlawful to install, service or use a vaporizing liquid extinguisher in any building operated as a hotel, rooming house, lodging house, boardinghouse, furnished apartment, motel or dormitory.

(f) The Director of Public Safety, with the consent and approval of the Director, may, in addition to the foregoing minimum requirements, require such other fire protection to such buildings as he or she may deem reasonably necessary for the safety of the occupants thereof

(2) Enforcement. The authority and duty to carry out the provisions of this section shall be vested in the Director of Public Safety and the Director, but the Director of Public Safety shall act only subject to the consent and approval of the Director, who shall appoint inspectors of hotel fire safety who shall be uniform members of the Department of Public Safety, and who shall legally constitute a Division of the Department of Public Safety to be known and designated as the Hotel and Rooming House Bureau, and to which Hotel and Rooming House Bureau and the Director of Public Safety and the Director may delegate the authority necessary to carry out the provisions of this section.

B. Fire alarm system. Every establishment subject to licensing shall be provided with a fire alarm system or device approved by the Underwriter's Laboratories, Inc., or by such other laboratories qualified

and equipped for the testing of fire protection equipment of materials as approved by the Director of Public Safety. The system or device required hereunder shall be maintained in good working order at all times. The alarm shall be provided with a heat-operated device which will automatically set off the fire alarm system and shall be operated by electrical or by self-contained automatic means. Alarm-sounding devices provided shall be distinctive in pitch and of such quality and so distributed on every floor that they shall be effectively heard in case of fire in every room above the usual sound level. Periodic testing shall be required in accordance with regulations of the Director approved by the Director of Public Safety and/or any authorized and approved inspection agency.

C. Directional signs. Every licensed establishment shall have exit signs posted in common hallways, visible from the door of every rooming unit, and these signs shall indicate the direction of the location of the nearest means of egress. All such signs shall be of a size and color and be illuminated in accordance with the regulations of the Director of Public Safety.

D. Stairway doors to be self-closing. Whenever there are doors or framework for doors which would close off sections of the stairway from common hallways, areaways or other parts of the stairway, such doors shall be equipped with self-closing devices or such framework shall be equipped with doors having self-closing devices.

E. Storage of combustible materials. Storage of combustible materials and temporarily used or unused household furnishings, bedding, mattresses and similar articles only shall be permitted in enclosed fireproof compartments. Storage area shall, as of the effective date of this chapter, comply with § 254-45B(25) of Article IX, notwithstanding the date set forth herein for licensing.

F. Disposal of combustible materials. All combustible materials shall be disposed of in self-closing metal cans which shall be provided where needed on the premises for that purpose.

§ 254-102. Community cooking prohibited.

Community cooking is prohibited, except for cooking performed by the owner or manager or his or her employees for occupants in nursing homes.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 254-103. Nightlights.

Nightlights shall be provided in all common areaways leading to bathrooms, as well as in hallways, in compliance with § 254-23B(3).

§ 254-104. Central heating.

There shall be central heating in all establishments subject to licensing, which shall supply adequate heat as required under § 254-27A(1) of Article VI to all occupied rooming units and to all bathrooms.

§ 254-105. Service of food.

Where food is served in any establishment subject to licensing, the license therefor and the maintenance of the establishment, pursuant to the license, shall be subject to the regulations and requirements of Chapter 182, Health and Sanitation, as well as to this chapter.

§ 254-106. Nursing homes.

A. Fireproof construction. All nursing homes shall be of fireproof construction.

B. Violations. All nursing homes shall comply with state laws, and any violation of such laws or regulations thereunder shall constitute a violation of this chapter.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

ARTICLE XVII
Inspection and Status Reports

§ 254-107. Application for inspection. [Amended 9-23-2020 by Ord. No. 20-074]

Whenever an owner, manager, occupant, prospective purchaser, mortgagee or prospective occupant shall apply to the Chief for an inspection in order to ascertain if any section of this chapter has been violated, the Chief shall, upon payment of the fee hereunder stated, cause an inspection to be made of the premises and issue an informational certificate of the inspection to the applicant, indicating therein any violations of this chapter on the premises. The applicant for such inspection shall state in writing his or her full name, residence and the reasons and basis for which the inspection is requested. The Chief may deny the application for failure to comply with this requirement.

§ 254-108. Application for status report.

Where, in lieu of inspection, an owner, manager, occupant, lessee, prospective purchaser, mortgagee or prospective occupant request a status report as to whether or not there are any known violations presently pending on said premises, upon payment of the fee prescribed herein, a copy of any notice or order on any violation then pending shall be sent to the applicant.

§ 254-109. Scope of reports.

A. No inspection report issued under § 254-107 of this Article or status report under § 254-108 of this Article shall be construed as providing a defense against any violation of this chapter or any other ordinance of the city which may be discovered thereafter, whether or not the condition or violation existed at the time of any such inspection or status report.

B. The inspection or status report is provided as a convenience to the public and shall not constitute a limitation on the full enforcement of this chapter.

§ 254-110. Inspection and status report fees.
[Amended 4-14-1983 by Ord. No. MC-340; 10-11-1985 by Ord. No. C-59]

A. The fee for any inspection made under § 254-107 of this Article shall be as provided in Chapter 160, Fees and Charges.

B. The fee for any status report issued under § 254-108 shall be as provided in Chapter 160, Fees and Charges.

C. Informational certificates issued under § 254-107 shall be valid for a period of thirty (30) days.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

ARTICLE XVIII
Nuisances

§ 254-111. Declaration of nuisances; abatement.

Nothing in this chapter shall be construed or interpreted to in any way impair or limit the authority of the Chief to define and declare nuisances and to cause the removal or abatement of nuisances by appropriate proceedings provided by law.

ARTICLE XIX
Violations and Penalties

§ 254-112. Violations and penalties. [Amended 1-23-1986 by Ord. No. C-150; 10-8-2025 by Ord. No. 25-105]

Anyone found guilty of violating any section of this chapter shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25, with a minimum fine of $100.00 and a maximum fine of $2,000.00. A violation affecting more than one dwelling unit shall be considered a separate violation as to each unit per day of the continuing offense.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 254-113. Meaning of each violation.

Each violation of a section or subsection of this chapter shall constitute a separate and distinct violation independent of any other section or subsection or any order issued pursuant to this chapter. Each day's failure to comply with any such section or subsection shall constitute a separate violation.

Editor's note—Original Sec. 13-109, entitled "Additional penalty for second violation," which followed this section, was deleted at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 254-114. Application for officers or agents.

Where the defendant is other than a natural person or persons, § 254-113 of this article shall also apply to any agent, superintendent, officer, member or partner who shall alone or with others have charge, care or control of the premises.

§ 254-115. Removal of posted orders.

No person, firm or corporation, without written consent of the Chief, shall remove or permit the removal of any complaint, notice or order posted in accordance with the provisions of this chapter.

§ 254-116. Occupancy of unfit buildings. [Amended 6-14-1995 by Ord. No. 95-050]

When the Director of The Division of Construction Code Official finds that a dwelling is unfit for human habitation within the meaning of this chapter and has notified the owner to such effect and the time limit

set by the Director of The Division of Construction Code Official for the correction of defects or vacating the same has expired, no person shall receive rentals, offer for rent or occupy said dwelling unit as a human habitation, and each day such offense continues shall be deemed a separate offense and the violator shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

§ 254-117. Drainage or removal facilities. [Amended 6-14-1995 by Ord. No. 95-050]

No person shall damage, mutilate or remove, nor shall any person suffer, permit or cause to be mutilated, damaged or removed from or in a dwelling unit any of the facilities referred to in this chapter. Any person violating this section of this article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

§ 254-118. Unpaid fine to become lien.

In the event of the imposition of a fine or penalty by the Municipal Court or any other court of competent jurisdiction against the owner, manager or lessor of any building or structure in the city required to be registered, pursuant to Article XIV herein, for violation of any provision of this chapter or applicable provisions of other chapters of the New Jersey Code, or any state law applicable to the city, the fine or penalty shall be collectible pursuant to the procedures for the appointment of a Receiver, in addition to any other remedies now provided by law.

ARTICLE XX

Portable Oil-Fired Heating Devices

[Added 10-16-1979 by Ord. No. S-299]

§ 254-119. Unlawful acts.

A. It shall be unlawful to use in any residence or building in this city any portable oil stove, range or appliance or any other portable oil-fired heating device.

B. It shall be unlawful to sell or offer to sell any such portable oil stove, range or appliance or other portable oil-fired heating device for use in any residence or building in this city.

§ 254-120. Violations and penalties. [Amended 6-14-1995 by Ord. No. 95-050]

Any person violating the provisions of this Article XX shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25. For each day of use of such portable oil heating device, it shall be considered as a separate offense. Each sale of such portable oil heating device shall be considered as a separate offense.

ARTICLE XXI

Registration of Nonresident Property Owners* [Added 1-14-1998 by Ord. No. 97-097]

§ 254-121. Registration required.

An owner of real property situated within the City of Jersey City shall register with the City Clerk the street address of his or her residence whenever that owner does not reside at the property, in the case of residential premises, or does not operate a business at the property, in the case of commercial property.

§ 254-122. Definitions.

The following terms shall have the meanings indicated when used in this article:

REAL PROPERTY - Any type of real estate, including commercial or residential, improved or unimproved lots, single-family homes, multiple dwellings and property held in any manner, including fee simple, condominium or cooperative forms of ownership.

STREET ADDRESS - The address at which the person actually resides and shall include a street name or rural delivery route in addition to any postal office box number which may be included.

§ 254-123. Time for compliance.

A. Owners of property subject to this article shall have 60 days from the effective date of this article to register in accordance with § 254-121.

B. Nonowners who acquire property in the City of Jersey City after the effective date of this article shall have 30 days from the date of acquisition to register in accordance with § 254-121.

§ 254-124. Violations and penalties.

Any nonresident property owner who fails to comply with this article shall be subject to the penalties proscribed in § 1-25.

ARTICLE XXII

Foreclosure Property Registration

§ 254-125. Purpose and intent. [Added 6-27-2018 by Ord. No. 18-068]

It is the purpose and intent of the City to establish a process to address the blight of City neighborhoods caused by an increasing amount of foreclosure property within the City. It is the City's further intent to create a City-wide registration program as a means to protect neighborhoods from becoming blighted due to the lack of adequate maintenance and security of foreclosure property.

§ 254-126. Establishment of a registry. [Added 6-27-2018 by Ord. No. 18-068]

***Editor's note**—See P.L. 1997, c. 85, an act authorizing municipalities to require address registration by certain property owners (codified in N.J.S.A. 40:48-2.53).

The City shall create a registration program and database cataloging each foreclosure property, and which will contain the information required by this Article.

§ 254-127. Registration of foreclosure property. [Added 6-27-2018 by Ord. No. 18-068; amended 9-8-2022 by Ord. No. 22-072]

A. A creditor filing a summons and complaint in an action to foreclose shall, in addition to the notice provided to the municipality pursuant to N.J.S.A. 46:10B-51 or N.J.S.A. 40:48-2.12s2, register the residential or commercial property with the City's Division of Housing Preservation as a property in foreclosure and, as part of that registration: (a) provide the Division with the information regarding the creditor required by (1) N.J.S.A. 46:10B-51 or (2) N.J.S.A. 40:48-2.12s2; (b) identify the date the summons and complaint in an action to foreclose on a mortgage was filed against the subject property, the court in which it was filed, and the docket number of the filing; and (c) identify whether the property is vacant and abandoned in accordance with the definition in the ordinance required by paragraph (7).

   1. If there is any change in the name, address, or telephone number for a representative, agent, or individual authorized to accept service on behalf of a creditor required to register pursuant to the property registration program following the filing of the summons and complaint, the creditor shall update the property registration program within ten days of the change in that information.

B. The creditor filing a summons and complaint in an action to foreclose shall, if the registered property becomes vacant and abandoned in accordance with the definition in the ordinance required by paragraph F after the property is initially registered with the municipality, update the property registration with the municipality to reflect the change in the property's status.

C. The creditor filing a summons and complaint in an action to foreclose shall be responsible for the care, maintenance, security, and upkeep of the exterior of the property if the property is vacant and abandoned at any time while the property is registered with the property registration program.

D. A creditor located out-of-State shall be responsible for appointing an in-State representative or agent to act for the foreclosing creditor.

E. A creditor filing a summons and complaint in an action to foreclose on a property, that is or becomes vacant and abandoned, shall secure the property against unauthorized entry, post a sign affixed to the inside of the property and visible to the public indicating the name, address, and telephone number of the creditor or an out-of-State creditor's in-State representative or agent for the purpose of receiving service of process, or acquire and otherwise maintain liability insurance by procuring a vacancy policy, covering any damage to any person or any property caused by any physical condition of the property while registered with the City.

F. A property shall be considered vacant and abandoned if it is not legally occupied by a mortgagor or tenant, which is in such condition that it cannot be legally reoccupied, because of the presence or finding of at least two of the following:

   1. Overgrown or neglected vegetation;

2. The accumulation of newspapers, circulars, flyers, or mail on the property;

3. Disconnected gas, electric, or water utility services to the property;

4. The accumulation of hazardous, noxious, or unhealthy substances or materials on the property;

5. The accumulation of junk, litter, trash, or debris on the property;

6. The absence of window treatments such as blinds, curtains, or shutters;

7. The absence of furnishings and personal items;

8. Statements of neighbors, delivery persons, or government employees indicating that the property is vacant and abandoned;

9. Windows or entrances to the property that are boarded up or closed off, or multiple window panes that are damaged, broken, and unrepaired;

10. Doors to the property that are smashed through, broken off, unhinged, or continuously unlocked;

11. A risk to the health, safety, or welfare of the public or any adjoining or adjacent property owners due to acts of vandalism, loitering, criminal conduct, or the physical destruction or deterioration of the property;

12. An uncorrected violation of a municipal building, housing, or similar code during the preceding year, or an order by municipal authorities declaring the property to be unfit for occupancy and to remain vacant and unoccupied;

13. The mortgagee or other authorized party has secured or winterized the property due to the property being deemed vacant and unprotected or in danger of freezing;

14. A written statement issued by a mortgagor expressing the clear intent of all mortgagors to abandon the property; or

15. Any other reasonable indicia of abandonment.

G. For the purposes of this section, a residential property shall not be considered vacant and abandoned if, on the property:

1. There is an unoccupied building which is undergoing construction, renovation, or rehabilitation that is proceeding diligently to completion, and the building is in compliance with all applicable ordinances, codes, regulations, and statutes;

2. There is a building occupied on a seasonal basis, but otherwise secure; or

3. There is a building that is secure, but is the subject of a probate action, action to quiet title, or other ownership dispute.

H. The Director of the Division of Housing Preservation shall issue a notice to the creditor filing the summons and complaint in an action to foreclose, if the public officer or other authorized municipal official determines that the creditor has violated the ordinance. In the case of a violation for failure to provide care, maintenance, security, and upkeep of the exterior of vacant and abandoned property, such notice shall require the person or entity to correct the violation within 30 days of receipt of the notice, or within ten days of receipt of the notice if the violation presents an imminent threat to public health and safety.

I. As used in this chapter, "Creditor" means a mortgagee or an agent or assignee of a mortgagee, such as the servicer, who has filed a complaint in the Superior Court seeking to foreclose upon a residential or commercial mortgage. If the entity seeking to foreclose upon the residential or commercial mortgage changes as a result of an assignment, transfer, or otherwise after the filing of the foreclosure complaint in the Superior Court, the new entity shall be deemed the creditor for purposes of this section. For purposes of this section, a creditor shall not include the State, a political subdivision of the State, a State, county, or local government entity, or their agent or assignee, such as the servicer.

J. Registration under this section is separate and apart from vacant property registration under Section 254-21.4, and mortgagee may be required to register under both sections if both are applicable.

§ 254-128. Fees. [Added 6-27-2018 by Ord. No. 18-068]

A. The registration fee shall be as provided in Chapter 160, Fees and Charges.

B. All registration fees shall be paid directly from the lender, servicer, trustee, or owner. Third party registration fees are not allowed without the consent of the City and/or its authorized designee.

§ 254-129. Maintenance requirements. [Added 6-27-2018 by Ord. No. 18-068; amended 9-8-2022 by Ord. No. 22-072]

In addition to the maintenance requirements of Section 254-127, the creditor, mortgagee and/or owner of any foreclosure property must secure the property in accordance with Section 254-21.6 and maintain the exterior of the premises in compliance with Sections 254-43 and 254-44 if the property is not legally occupied.

§ 254-130. Applicability. [Added 6-27-2018 by Ord. No. 18-068]

These sections shall be considered cumulative and not superseding or subject to any other law or provision for same, but rather be an additional remedy available to the above and beyond any other state, county or local provisions for same.

§ 254-131. Inspections for violations. [Amended 9-23-2020 by Ord. No. 20-074]

Adherence to this Article does not relieve any person, legal entity or agent from any other obligations set forth in any applicable code(s), which may apply to the property. Upon sale or transfer of title to the property, the owner shall be responsible for all violations of the applicable code(s) and the owner shall be responsible for meeting with the Division of the Construction Code Official within 30 days for a final courtesy inspection report.

§ 254-132. Severability. [Added 6-27-2018 by Ord. No. 18-068]

If any section, sentence, clause, or phrase of this Article is held to be invalid or unconstitutional by any court of competent jurisdiction, then said holding shall in no way affect the validity of the remaining portions of this Article.

ARTICLE XXIII

Donation Drop-Off Boxes

§ 254-133. Donation drop-off boxes. [Added 1-8-2020 by Ord. No. 19-171]

A. Definitions.

(1) DONATION DROP-OFF BOX (DDB) means unattended drop-off boxes, containers, receptacles, or similar facility that accents textiles, shoes, books, or other salvageable personal property items to be used by the owner/operator for distribution, resale or recycling.

(2) PROPERTY OWNER means the owner of real property on which a donation drop-off box is or is proposed to be placed.

(3) DONATION DROP-OFF BOX OWNER OR OPERATOR means a person or entity who utilizes or maintains a donation drop-off box to solicit donations/collections of personal property.

B. Property Owner Permission Required.

(1) The owner or operator of the DDB shall obtain written permission from the property owner, lessee, or their authorized agent to place the donation drop-off box on the property. When requested by the City of Jersey City, the property owner, lessee, donation drop-off box owner or operator, or their authorized agent shall make such written consent available for review.

C. Size and placement regulations.

(1) No individual DDB may exceed the dimensions of seven feet in height, six feet in width or six feet in length.

(2) A maximum of two DDB shall be permitted on any one lot and shall be located within a contiguous area of not more than 120 square feet.

(3) DDB shall not be placed in the right-of-way and shall adhere to the set-back standards for the site where they are placed.

(4) No DDB shall be placed in a residential zoning district, unless such placement has been approved, in writing, by the City,

(5) Where permitted, DDB shall be located in accordance with all applicable zoning, building and fire code regulations.

D. Management and maintenance; requirements.

(1) The property owner and the DDB owner/operator shall be responsible for the maintenance of the DDB and the area surrounding the DDB.

(2) Items and materials including but not limited to trash, shall not be located outside or in close proximity to a DDB and must be removed by the property owner and/or the DDB owner/operator. The property owner and DDB owner/operator shall have 24 hours from the time they receive notice from the City to remove any items and/or materials located outside or in close proximity to a DDB. If the items and/or materials are not removed within 24 hours, the City reserves the right to mitigate or otherwise caused to be removed the items or materials at the expense of the property owner and the DDB owner/operator.

(3) The property owner and/or DDB owner/operator must maintain the aesthetic presentation of the box including fresh paint, readable signage and general upkeep.

(4) The property owner and/or DDB owner/operator must respond to DDB maintenance complaints within 24 hours of receiving notification during regular business hours.

(5) The property owner and/or DDB owner/operator must remove graffiti on the DDB within 72 hours following notices of its existence.

(6) If a DDB becomes damaged or vandalized, it shall be repaired, replaced or removed within five days of receipt of notice of such condition, unless damage is such as to constitute a danger to persons or property, in which case it shall be made safe within 24 hours of notice of such condition.

(7) The DDB shall be serviced and emptied as needed, but no less than once every seven days.

E. Information and label requirements for all donation drop-off boxes.

(1) All donation drop-off boxes shall display the following information in a permanent and legible format that is clearly visible from the front of the container:

(a) The name of the operator or owner of the container;

(b) The entity responsible for the maintenance of the container and the removal of donated items, including any abandoned materials and trash located outside the donation drop-off box;

(c) A telephone number where the owner, operator or agent of the donation drop-off box can be reached at any time;

(d) The specific items and materials requested; and

(e) A notice stating that no items or materials shall be left outside of the donation drop-off box and the statement. "Not for refuse disposal. Liquids are prohibited."

F. Violations.

(1) The property owner remains liable for any violation of duties imposed by § 254-133. even if the property owner has, by agreement, imposed on the DDB owner/operator the duty of complying with the provisions of this section.

(2) Any property owner and/or DDB owner/operator who violates any provision of § 254-133 shall be subject to the following fines:

(a) For the first offense: $100.00.

(b) For the second offense: $250.00.

(c) For the third and subsequent offenses: $500.00.

Chapter 255

SHORT-TERM RENTALS

§ 255-1.	Definitions.	§ 255-5.	Issuance of short-term rental permit and appeal procedure.
§ 255-2.	Short-term rental regulations.		
§ 255-3.	Short-term rental requirements.	§ 255-6.	Short-term rental operational requirements.
§ 255-4.	Short-term rental application process and inspections.	§ 255-7.	Violations, penalties, and enforcement.

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§ 255-1. Definitions. [Added 6-25-2019 by Ord. No. 19-077; amended 6-11-2025 by Ord. No. 25-059]

The following terms shall have the meanings indicated below:

DIRECTOR — the Director of the Division of Housing Preservation or their designee.

DWELLING — a building that is designed or used exclusively as the living quarters for one or more housekeeping units.

DWELLING UNIT — a room or series of connected rooms containing living, cooking, sleeping and sanitary facilities for one housekeeping unit. The "dwelling unit" shall be self-contained and shall not require passing through another dwelling unit or other indirect route to get to any portion of the dwelling unit, nor shall one dwelling unit require shared facilities with another dwelling unit. Hotel facilities or other facilities providing temporary accommodations shall not be considered dwelling units.

INTERMEDIARY — anyone besides an owner who helps to arrange a property rental for an owner and collects rent and/or taxes and other charges on behalf of the owner. An intermediary includes but is not limited to a broker, hosting platform, or short-term rental property agent.

OWNER-OCCUPIED — the owner of the property who resides in the short-term rental property, or in the principal residential unit with which the short-term rental property is associated on the same lot, and identifies same as his or her principal residence.as that term is defined in this section. For purposes of this section, if the owner of the property is an entity other than an individual or individuals a natural person, then at least one principal or member of the owner entity must reside in the short-term rental property, or in the principal residential unit with which the short-term rental property is associated on the same lot, and identify same as his or her principal residence as that term is defined in this section.

PRINCIPAL RESIDENCE — a person's permanent residence or usual place of return for housing as documented by at least two of the following: motor vehicle registration state-issued identification; tax

documents showing the residential unit as the person's residence; or a utility bill. A person may have only one principal residence and must reside there for a minimum of 275 days during the calendar year. For properties with two or more existing legally permitted dwelling units (e.g., a duplex), the term "principal residence" shall refer to the parcel of land and all units on that parcel or within a building in a residential development project.

PROPERTY — a parcel of real property located within the boundaries of the City of Jersey City, Hudson County, New Jersey.

RESPONSIBLE PARTY — the short-term rental property owner or a person (property manager) designated by the owner to be called upon and be responsible at all times during the period of a short-term rental and to answer for the maintenance of the property, or the conduct and acts of occupants of the short-term rental property, and, in the case of the property manager, to accept service of legal process on behalf of the owner of the short-term rental property.

SHORT-TERM RENTAL (STR) — the accessory use of a dwelling unit for occupancy by someone other than the unit's owner or permanent resident for a period of 28 or fewer consecutive days, which dwelling unit is regularly used and kept open as such for the lodging of guests, and which is advertised or held out to the public as a place regularly rented to transient occupants.

SHORT-TERM RENTAL PROPERTY (STRP) — a residential dwelling unit that is used, in whole or part, and/or advertised for rent as a short-term rental for transient occupants as guests

SHORT-TERM RENTAL PROPERTY AGENT — any New Jersey-licensed real estate agent or other person designated and charged by the owner of a short-term rental property, with the responsibility for making the short-term rental application to the City on behalf of the owner, and fulfilling all of the obligations in connection with completion of the short-term rental property permit application process on behalf of the owner and/or may manage the STRP and book reservations. A short-term rental property agent includes a property manager, property management company, or real estate agent. Short-term rental property agents shall be available at all time to make necessary decisions and actions on behalf of the owner.

SUBSTANTIATED COMPLAINT — a complaint charging a violation of state or municipal law where the Director has found after an investigation, probable cause for the violation charged in the complaint.

TRANSIENT OCCUPANT — any person or a guest or invitee of such person, who, in exchange for compensation, occupies or is in actual or apparent control or possession of residential property, which is either: (1) registered as a short-term rental property, or (2) satisfies the definition of a short-term rental property. It shall be a rebuttable presumption that any person who holds themselves out as being an occupant or guest of an occupant of the short-term rental is a transient occupant.

§ 255-2. Short-term rental regulations. [Added 6-25-2019 by Ord. No. 19-077; amended 6-11-2025 by Ord. No. 25-059]

A. No person shall operate a short-term rental without a valid permit, and no permit shall be issued except to applicants who are the owner and principal resident of the STRP.

B. Short-term rentals shall only be permitted to be conducted in the following classifications of property in the City of Jersey City, subject to § 255-2(E):

(1) Dwelling units located in a condominium association, homeowners association, or cooperative association, where the association's bylaws, master deed, or other relevant governing document permits short-term rentals and where the owner of the unit legally identifies an address within the association as his or her principal residence; and

(2) Single-family residences; but no more than two rooms in a single-family residence provided the residence contains four or more bedrooms, and no room rented as a STR shall be occupied by any more than two adults and two minors; and

(3) Dwelling units in a two-, three- or four-unit dwelling, and one room in the dwelling unit of the principal resident subject to the following restrictions and requirements:

i. A permit may only be issued for the whole unit that the owner does not actually occupy;

ii. Permits for the dwelling occupied by the owner are subject to the 60-day limitation in § 255-2(E);

iii. A dwelling unit must have at least three bedrooms for a single room short-term rental permit to be issued.

iv. Only owner-occupied dwelling units with at least four bedrooms may have two single room short-term rental permits.

C. Short-term rentals shall not be permitted in a multiple dwelling in which rent is: set by HUD, set by a State agency, set by an agreement with the owner/developer, or governed by Chapter 260 of this Code.

D. The following shall not be permitted to operate as short-term rentals pursuant to this section: hotel, motel, studio hotel, rooming house, dormitory, public or private club, convalescent home, rest home, home for aged people, adult family care homes, assisted living facilities, community residences for developmentally disabled persons, community shelters for victims of domestic violence, senior housing, nursing homes, foster home, halfway house, transitional housing facility, or other similar facility operated for the care, treatment, or reintegration into society of human beings; any housing owned or controlled by an educational institution and used exclusively to house students, faculty or other employees with or without their families; any housing operated or used exclusively for religious, charitable or educational purposes; or any housing owned by a governmental agency and used to house its employees or for governmental purposes.

E. Rentals of the entire unit of any owner occupied dwelling unit shall be conducted no more than 60 total nights per calendar year. Each night in excess of this limit shall be considered a separate violation.

F. The person offering a dwelling unit for short-term rental use must be the owner of the dwelling or the condominium unit. A tenant of a property may not apply for a short-term rental permit, nor shall the property or any portion thereof be sub-leased by the tenant on a short-term basis, or operated as a STRP by the tenant except as provided below. This STRP regulation shall supersede any conflicting provision in a private lease agreement permitting sub-leasing of the property for 28 days or fewer, or any portion of the property. Violation of this section will result in enforcement action against the tenant, the STRP owner, the short-term rental agent, and the responsible party, and will subject all such parties to the issuance of a summons and levying of fines and/or penalties.

G. No person or entity shall own or have an interest in more than two short-term rental permits, and no person or entity holding short-term rental permits may serve on a board of, or direct or control or have an interest in any entity also holding short-term rental permits such that the combined number of permits held exceeds two.

§ 255-3. Short-term rental requirements. [Added 6-25-2019 by Ord. No. 19-077; amended 6-11-2025 by Ord. No. 25-059]

A. An initial application for a short-term rental permit must include the following information to be considered complete:

(1) The name, address, telephone number and email address of the owner(s) and, if applicable, designated person of record of the dwelling unit, pursuant to Subsection 255-2(G). If such owner is not a natural person, the application must include the names of all partners, officers and/or directors of any such entity, and their street address, email address and telephone numbers;

(2) The address of the proposed STR;

(3) A copy of the driver's license or State identification card of the owner and, if applicable, designated person pursuant to Subsection 255-2(G) of the proposed STRP confirming that identifying the proposed STRP is as the applicant's principal residence;

(4) The "Owner's Affidavit" acknowledging that he/she has received a copy of the Jersey City Short-term rental Ordinance, Jersey City Municipal Code Chapter 255 (the Ordinance) and that they have reviewed the Ordinance and understand its requirements;

(5) The "Short-term Rental Property Agent Certification" which includes the name, address, telephone number and email address of the short-term rental property agent, which shall constitute his /her seven-day a week, 24-hour a day contact information;

(6) The "Responsible Party Certification" which includes the name, address, telephone number and email address of the short-term rental property's responsible party, which shall constitute his/her seven-day a week, 24-hour a day contact information;

(7) Copies of the most recent, gas/electric and water bills for the owner's principal residential unit STRP;

(8) Proof of the owner's current ownership of the short-term rental dwelling;

(9) The number of all on-site parking spaces available. The owner shall certify that every effort will be made to avoid and/or mitigate issues with on-street parking in the neighborhood in which the STR is located, resulting from excessive vehicles generated by the STR; all renters of the STRP shall be limited to one vehicle per two occupants in the STRP;

(10) A "Municipal Court Compliance Certificate" which confirms proof of no outstanding fines or penalties with Jersey City Municipal Court; no violations of Jersey City's Code § 242-11A: Disturbing the Peace or N.J.S.A. 2C:33-12(a) and (b): Maintaining a Nuisance. All fines or penalties issued by the Municipal Court for the City of Jersey City for any past code violations relating to the STRP, the owner, and/or the responsible party, including penalties for failure to appear in Court, must be satisfied in full prior to the issuance of a short-term rental permit;

(11) Proof of no outstanding taxes, water and sewer charges;

(12) Proof of general liability insurance in a minimum amount of $500,000.00;

(13) Where the proposed STR is in a condominium association, homeowners association, or cooperative association, a copy of the Master Deed and Bylaws allowing for short-term rentals in that dwelling and/ or dwelling unit;

(14) Where the owner of the proposed STR is a corporate entity, a copy of the certificate of formation and operating agreement;

(15) Documentation indicating that the property has been inspected for compliance with the City's Fire Safety Regulations and Property Maintenance Code. Such inspections shall be valid for a period of three years; and

(16) A "Zoning Determination Letter" which verifies that the premises are not being occupied or used in violation of the City's Land Use Regulations and Zoning Ordinances in accordance with § 345-76(G).

(17) The STRP owner must also close any open construction permits for the STR unit prior to the issuance of a short-term rental permit. The Director may waive this requirement upon a determination that the ongoing permitted work or required work will not adversely impact transient occupants or detrimentally impact occupants' health and safety.

(18) The Director, shall have the authority to obtain additional information, as necessary, to achieve the objectives of this chapter.

B. Provided that the information contained within has not changed, a short-term rental permit renewal application shall include everything required by § 255-3(A) except:

(1) The "Owner's Affidavit;"

(2) The "Short-term Rental Property Agent Certification;"

(3) The "Responsible Party Certification;"

(4) A "Zoning Determination Letter."

§ 255-4. Short-term rental application process and inspections. [Added 6-25-2019 by Ord. No. 19-077; amended 6-11-2025 by Ord. No. 25-059]

A. An owner of property, intended to serve as a STRP shall submit to the City of Jersey City's Division of Housing Preservation via the Division's online portal, a STR permit application, along with an initial application fee of $250.00. Said fee shall be non-refundable, including in the event that the application is withdrawn or denied.

B. Each application is subject to review to verify the STRP's eligibility for use as a STR and compliance with the regulations in this Chapter.

C. The City reserves the right to inspect a STRP for compliance with fire safety regulations and this Code, regardless of the status of the STRP's permit application, in the event that the City receives a substantiated complaint of a violation on the premises.

§ 255-5. Issuance of short-term rental permit and appeal procedure. [Added 6-25-2019 by Ord. No. 19-077; amended 6-11-2025 by Ord. No. 25-059]

A. Once an application is submitted, complete with all required information and documentation and fees, the Division of Housing Preservation, following any necessary investigation for compliance with this chapter, shall either issue the short-term rental permit or issue a written denial of the permit application, with the reasons for such denial being stated therein within 30 days, so long as access to the STRP is provided by the owner or owner's STR agent.

B. If denied, the applicant shall have ten business days to appeal the denial, in writing, to the Office of the Business Administrator and the Division of Housing Preservation. The applicant shall attach to the appeal all documentation required to establish its entitlement to a permit.

C. The STR permit shall be valid for a period of one year from the date of issuance.

§ 255-6. Short-term rental operational requirements. [Added 6-25-2019 by Ord. No. 19-077; amended 6-11-2025 by Ord. No. 25-059]

A. The STRP owner shall ensure that the STR is used in a manner that complies with all applicable laws, rules and regulations pertaining to the use and occupancy of a STR.

(1) The Director may suspend, revoke or deny a STR permit if:

(a) The property has unabated violations of the property maintenance code; or

(b) The owner has been convicted of violating state or municipal law prohibiting disturbing the peace or maintaining a nuisance; or

(c) The owner is the subject of a substantiated complaint related to the property or another property owned in Jersey City charging a violation of state or municipal law.

(2) In making a determination under this section, the Director shall consider:

(a) The threat to public safety;

(b) The impact on the community;

(c) The manner in which the owner rectified the violation;

(d) The threat to the health and safety of the occupants.

B. The owner of a STRP shall not install on the STRP any advertising or identifying mechanisms, such as signage, including lawn signage, identifying the property for rent as a STRP.

C. Transient occupants of the STRP shall comply with all ordinances of the City of Jersey City including, but not limited to those ordinances regulating noise and nuisance conduct. Failure of transient occupants to comply shall subject the transient occupants, the owner of the STRP, the responsible party, and the short-term rental agent listed in the short-term rental permit application, to the issuance of fines and/or penalties, which may include but not be limited to the revocation of the STRP permit.

D. The owner of a STRP shall post the following information in a prominent location within the STRP unit:

(1) Owner name; if owner is an entity, the name of a principal in the entity, email address and phone number for the principal;

(2) The names, email addresses, and phone numbers for the responsible party and the short-term rental agent;

(3) The phone numbers for the Department of Public Safety, the City of Jersey City's Resident Response Center, and the Division of Housing Preservation;

(4) The maximum number of parking spaces available for STR use onsite;

(5) Trash and recycling pick-up day, and all applicable rules and regulations regarding trash disposal and recycling;

(6) Notification that a guest, transient occupant, the short-term rental property agent, the responsible party or STRP owner may be cited or fined by the City of Jersey City Department of Public Safety or the City of Jersey City Division of Housing Preservation for violations of, any applicable ordinance(s) of the City of Jersey City.

E. If any of the information required by Subsection D above is inaccurate while displayed in the STRP, it shall constitute a violation of this chapter.

F. In the event that any complaints are received by the Jersey City Department of Public Safety, the Division of Housing Preservation or any City Department regarding the STR and/or the transient occupants and the owner of the STRP is unreachable or unresponsive, both the responsible party and

the short-term rental agent listed in the short-term rental permit application shall have the responsibility to take any action required to properly resolve such complaints, and shall be authorized by the STRP owner to do so.

G. While a STRP is rented, the owner, the short-term rental agent, or the responsible party shall be available 24 hours per day, seven days per week for the purpose of responding within two hours to complaints regarding the condition of the STRP premises, maintenance of the STRP premises, operation of the STRP, or conduct of the guests at the STRP, or nuisance complaints from the Department of Public Safety, or neighbors, arising by virtue of the short-term rental of the property.

H. When the Office of the Business Administrator and/or the Division of Housing Preservation receives notice of a civil and/or criminal complaint and/or code violation at a STRP as outlined in Subsections 255-6(F) above, the Director or the Business Administrator or his/her designee shall conduct an investigation and may issue a written notice of revocation or suspension, as applicable, of the short-term rental permit with the reasons for such revocation or suspension being stated therein within 30 days.

(1) The applicant shall have ten business days to appeal the revocation or suspension, in writing, i.e. email, to the Office of the Business Administrator and the Division of Housing Preservation.

(2) Within 30 days thereafter, the Business Administrator or his/her designee shall decide the appeal.

I. An owner must apply to renew the short-term rental permit annually via the Division's online portal by submitting to the Division of Housing Preservation, a short-term rental permit renewal application, and a renewal registration fee of $200.00. No STR may be operated, listed, or advertised without a valid unexpired permit. The renewal application must be received with all of the required documentation no later than 30 days prior to the permit expiration date.

J. The short-term rental permit shall expire automatically when the STRP changes ownership, and a new initial application and registration fee will be required to operate the property as a STRP. A new application shall also be required for any STR that had its short-term rental permit revoked.

K. All listings, advertisements, whether in any print, digital, web-based platform, multiple listing service or any realtor's property listing shall include the permit number.

L. The STRP owner or agent shall maintain an up-to-date log of all transient occupants who will be occupying the STRP, which shall contain the occupant or occupants' names, ages, dates of commencement and expiration of each short-term rental period. This log shall be available for inspection by the City's Division of Housing Preservation and the Department of Public Safety in case of emergency.

§ 255-7. Violations, penalties, and enforcement. [Added 6-25-2019 by Ord. No. 19-077; amended 6-11-2025 by Ord. No. 25-059]

A. A violation of any provision of this chapter may subject the STRP owner, transient occupant(s), the short-term rental agent, the responsible party and the intermediator their agents to fines assessed by the Court up to $2,000.00 per violation, but not less than $100.00 per violation per day that the violation exists.

B. The STRP owner shall publish the short-term rental permit number issued by the City in every print, digital, or internet advertisement, and/or in the multiple listing service or other real estate listing of a real estate agent licensed by the New Jersey Real Estate Commission, in which the STRP is listed and/or advertised for rent on a short-term basis. Advertisements and/or listings of the STRP for rent on a short-term basis that do not contain the permit number are a violation of this Ordinance and shall subject the owner of the STRP, the responsible party, the short-term rental agent, and the intermediary to fines and/or penalties. Every day such advertisement or listing appears shall be a separate violation of this Ordinance.

C. In no event shall a STRP be rented to anyone younger than 21 years of age. The primary occupant of all short-term rentals executing the agreement between the owner and the occupant must be over the age of 21, and must be the party who will actually occupy the property during the term of the short-term rental. The primary occupant may have guests under the age of 21 who will share and occupy the property with them. Both the primary occupant executing the short-term rental agreement and the STRP owner shall be responsible for compliance with this provision, and shall both be liable for a violation, where the STRP is not occupied by at least one adult over the age of 21 during the term of the STR.

D. No person may advertise any property for a short-term rental prior to the issuance of a permit for such property.

E. No STR permit issued under this section may be transferred or assigned or used by any person or entity, other than the owner to whom it is issued, or at any property location or dwelling unit other than the property for which it is issued.

Chapter 257

PROPERTY TRANSFERS

257-1.	Definitions.	§ 257-5.	Violations and penalties.
257-2.	Notice of violations required at time of transfer.	§ 257-6.	Disclosure of availability of zoned parking permits for residential buildings.
257-3.	Presumed warranty.		
257-4.	Disclosure of possible presence of lead-based paints.		

[HISTORY: Adopted by the Council of the City of Jersey City 5-4-1971 as Ch. 13, Art. XV, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

GENERAL REFERENCES

Certificates of occupancy — See Ch. 119.
Paint stripping — See Ch. 233.
Property maintenance — See Ch. 254.

§ 257-1. Definitions. [Amended 8-23-1984 by Ord. No. MC-650]

As used in this chapter, the following terms shall have the meanings indicated:

DWELLING - Any structure occupied wholly or partially as a residence or sleeping quarters by one (1) or more persons. The term "dwelling" includes structures which are sold as private residences by agencies of federal, state or local government. The term "dwelling" includes structures which are sold as private residences by agencies of federal, state or local government.

§ 257-2. Notice of violations required at time of transfer.

Any person who sells or conveys any dwelling, dwelling unit, boardinghouse, dormitory lodging house, lodging house, hotel, motel, apartment house or nursing home located in the city shall include, in or as a part of the agreement or instrument of sale, a copy of any outstanding notice or order issued by the Chief citing violations of the provisions of this chapter or of any rule or regulation promulgated pursuant to Chapter 254, Property Maintenance, thereof which has not been complied with, by or before the date of sale.

§ 257-3. Presumed warranty.

A seller or conveyer who violates or fails to conform to the requirements of § 257-2 of this chapter, even if with the consent of the purchaser or transferee, thereby shall be conclusively presumed to have given his or her warranty that the property being sold or conveyed is in compliance with the provisions of this chapter and the rules or regulations adopted by the Chief for the enforcement and implementation of this chapter at the time and immediately prior to the sale or conveyance.

§ 257-4. Disclosure of possible presence of lead-based paints.*|Amended 8-23-1984 by Ord. No. MC-650]

A. Prior to any of the following events: the signing of a binder or commitment for the sale of a dwelling, the signing of a contract for the sale of a dwelling or the acceptance of a deposit for the sale of a dwelling, whichever is earliest, the seller or broker shall furnish the buyer with a copy of the following notice which shall be printed or typed in type of at least ten (10) point:

NOTICE

Many houses and apartment buildings in Jersey City have been painted with lead-based paints. It has also been found that a high concentration of lead may exist in the soil in inner cities. The presence of lead paint upon the interior and exterior surfaces of a house or apartment in areas accessible to children constitutes a danger to their health. The presence of lead in the body of a child can cause learning disabilities.

Regulations of the New Jersey Department of Health require the removal of cracked, chipped and peeling lead paint from all interior and exterior surfaces of a dwelling.

For further information call the Jersey City Lead Poisoning Center at 547-4567.

B. The seller or broker shall also:

(1) Require the buyer to acknowledge in writing that he or she has received a copy of the above notice; and

(2) Retain a copy of the buyer's written acknowledgment on file for inspection by the Health Officer or his or her designee.

§ 257-5. Violations and penalties. [Amended 8-23-1984 by Ord. No. MC-650i]

Anyone who fails to comply with this chapter shall be punishable as provided in Chapter 1, General Provisions, § 1-25.

§ 257-6. Disclosure of availability of zoned parking permits for residential buildings. [Added 1-27-2010 by Ord. No. 10-006]

A. As used in this sub-chapter, "Residential Building" is defined as any structure containing five (5) or more units, including any unit therein, that is offered for sale or lease, for occupancy in whole or in part, as a residence or sleeping quarter by one (1) CU or more person.

*Editor's **Note: See also Ch. 254, Property Maintenance, § 254-45.**

tEditor's **Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

B. The seller or landlord, as appropriate, of any residential building located within a zone designated for restricted parking pursuant to Section 332-60 and Schedule 24 of the City Code, shall furnish the prospective buyer or prospective tenant with a copy of the notice appearing in Section C. below, prior to the following events:

(1) Sales: the signing of a contract of sale or the acceptance of a deposit for sale of a unit in any residential building, whichever occurs first: or

(2) Leases: the signing of a lease or the acceptance of a deposit for a lease of a unit in any residential building, whichever occurs first.

C. The notice shall be in the following form and printed or typed in a font of at least ten point: **[Amended 11-12-2014 by Ord. No. 14-017; 9-9-2015 by Ord. No. 15-117; 1-24-2019 by Ord. No. 19-006]**

NOTICE REGARDING ON STREET RESIDENTIAL PARKING PERMIT ZONES

RE: _____ (address)

Generally, as a matter of law, the City will not issue an on-street residential parking permit to a resident of this building because the building was required to provide off-street parking for its residents when it was constructed. The City requires that a landlord or seller make you aware of this fact before you agree to rent or buy a residence in the building. There are limited exceptions to the prohibition on the issuance of on-street permits. To determine whether or not you qualify for one of the exceptions, you need to read Section 332-58 of the Jersey City Municipal Code, which is available at

https://www.municode.com/library/nj/jersey_city/codes/code_of_ordinances

or contact the Division of Parking Enforcement at 201-653-6969.

[initials] Because an on-street residential parking permit is not available to residents of this building, I understand that if I rent or purchase a residence here, I will be required to pay for parking and I will NOT be eligible for an on-street residential parking permit unless I qualify for one of the exceptions.

[initials] The landlord or seller informed me that off-street parking for a resident of this building is available at the rate of $_____ per month.

[initials] I was shown this form and read it, prior to signing my lease or contract to purchase.

[initials] I understand that if I am eligible for an exception, I am limited to one residential permit per unit. I am ineligible for any other residential permits.

_____ _____

Signature of Prospective Tenant or Purchaser Date

D. The seller or landlord, as appropriate, shall **[Amended 9-9-2015 by Ord. No. 15-117]**:

(1) Obtain the signature of the prospective tenant or buyer acknowledging that he or she has timely received a copy of the above notice; and [1]

(2) Retain a copy of the prospective buyer's or tenant's signed written acknowledgment of receipt of the above notice for at least three (3) years. The seller or landlord shall submit a copy of the signed notice to the City upon ten (10) days' notice.

E. The seller or landlord, as appropriate, of any residential building located within the Journal Square 2060 Redevelopment Plan Area which has received a certificate of occupancy after December 31, 2019, shall furnish the prospective buyer or prospective tenant with a copy of the notice appearing in Subsection F, below, prior to the following events: **[Added 11-14-2019 by Ord. No. 19-150]**

(1) Sales: the signing of a contract of sale or the acceptance of a deposit for sale of a unit in any residential building, whichever occurs first; or

(2) Leases: the signing of a lease or the acceptance of a deposit for a lease of a unit in any residential building, whichever occurs first.

F. The notice shall be in the following form and printed or typed in a font of at least ten point: **[Added 11-14-2019 by Ord. No. 19-150]**

NOTICE REGARDING ON STREET RESIDENTIAL PARKING PERMIT ZONES

RE: _____ (address)

Generally, as a matter of law, the City will not issue an on-street residential parking permit to a resident of this building because the building is situated within the Journal Square 2060 Redevelopment Plan Area. The stated goal of the Journal Square 2060 Plan is to provide for transit oriented development within walking distance to the Journal Square Transportation Hub. The City requires that the landlord or seller make you aware of this fact before you agree to rent or buy a residence in this building. There are limited exceptions to this prohibition. To determine whether or not you qualify for one of the exceptions, you need to contact the Division of Parking Enforcement at 201-653-6969 or read Section 332-58 of the Jersey City Municipal Code, which is available at:

https://www.municode.com/library/nj/jersey_city/codes/code_of_ordinances

[initials] Because an on-street residential parking permit is not available to residents of this building, I understand that if I rent or purchase a residence here, I will NOT be eligible for an on-street residential parking permit unless I qualify for one of the exceptions set forth in Section 332-58 of the Jersey City Municipal Code.

[initials] I was shown this form and read it prior to signing my lease or contract to purchase.

_____ _____

Signature of Prospective Tenant or Purchaser Date

Chapter 260

RENT CONTROL*

§ 260-1. Definitions.
§ 260-2. Rent leveling; landlord registration statement; answering devices.
§ 260-3. Allowable increases.
§ 260-4. Procedure for cost-of-living increases.
§ 260-5. Capital improvement and service charge.
§ 260-6. Exemptions for new dwellings and new housing space.
§ 260-7. Anti-harassment and tenant complaints.
§ 260-8. Bureau of Rent Leveling.
§ 260-9. Powers and duties of the Bureau of Rent Leveling.
§ 260-10. Hardship rental increases.
§ 260-11. Rent Leveling Board established.
§ 260-12. Powers of Rent Leveling Board.
§ 260-13. Appeal of Board's decision.
§ 260-14. Required services; heating systems.
§ 260-15. Provisions retroactive.
§ 260-16. Computations to be rounded off.
§ 260-17. Violations and penalties.
§ 260-18. Construal of provisions.
§ 260-19. When effective; other provisions supplemented.
§ 260-20. Nonoccupant owner registration of dwelling units.
§ 260-21. Scope of exemptions from rent increase limitations.

§ 260-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

AVAILABLE FOR RENT TO TENANTS—Fit for habitation as defined by the statutes, codes and ordinances in full force and effect in the State of New Jersey, County of Hudson and City of Jersey City, and occupied or unoccupied and offered for rent.

BASE RENT—The legal rent charged or actually received by the landlord for the rental of a housing space as of January 11, 1983; or if not occupied at that date the "base rent" shall be that actually charged to and received from the previous tenant, plus any increases under § 260-3 of this chapter or the ordinance to which this is an amendment, or if insufficient evidence is available from which the Rent Leveling Administrator or Board can determine the legal rent charged or actually received as provided above, then the Rent Leveling Administrator and Board have the power to determine the legal "base rent" by considering the legal base rent of other units, subject to the provisions of this chapter, which are comparable in size, location and facilities to the subject unit. **[Amended 4-27-1989 by Ord. No. C-944]**

***History**—Adopted by the Council of the City of Jersey City February 7, 1986 by Ord. No. C-14A. Amendments noted where applicable.

Cross references—Condominium conversion, Ch. 128; discrimination, Ch. 148; fees and charges, Ch. 160; housing accommodations, Ch. 188; multiple dwellings, Ch. 218; property maintenance, Ch. 254.

CAPITAL IMPROVEMENT—A permanent improvement that adds to value or substantially extends the useful life of the landlord's property and can be claimed by the landlord for depreciation on his or her federal tax returns. Specifically excluded are ordinary repairs, maintenance and conversion to heat/hot water units for individual apartments where the cost of providing the heat/hot water service is transferred from the landlord to the tenant.

CONSUMER PRICE INDEX—The consumer price index (all items, base year 1967 = 100) for the region of the United States of which Jersey City is a part, published periodically by the United States Department of Labor, Bureau of Labor Statistics.

DWELLING—Any building or other structures containing housing spaces rented or offered for rent to one or more tenants consisting of a household or family as defined in this chapter. A dwelling includes buildings or structures that are exempt from the restrictions of rent increases mandated under this chapter. **[Amended 10-24-12 by Ord. No. 12-137; 6-28-2017 by Ord. No. 17-080; 5-6-2020 by Ord. No. 20-036; 9-10-2020 by Ord. No. 20-067; 12-2-2020 by Ord. No. 20-100; 3-10-2021 by Ord. No. 21-013]**

A. Exempt from this definition are:

1. Dwellings with four or less housing spaces; provided, however, that this exemption shall be suspended for non-owner occupied dwellings with four or less housing spaces until the end of the state of emergency or six months from adoption of these amendments whichever comes first. This paragraph shall be effective March 15, 2021.

2. Licensed hotels or motels and commercial and industrial space.

3. Newly constructed dwellings with 25 or more dwelling units located within a redevelopment area as defined in Section 5 of the Redevelopment Agencies Law, N.J.S.A. 40:55C-5(o), for which the City Council has approved a redevelopment plan, in accordance with Section 17 of the Redevelopment Agencies Law, N.J.S.A. 40:55C-17.

Editor's note—N.J.S.A. 40:55C-5(o) and 40:55C-17 were repealed by L. 1992, c. 79, § 59. For current provisions, see N.J.S.A. 40A:12A-1 et seq.

4. Low rent public housing developments.

5. All buildings or structures, hotels, motels or guesthouses which are converted from any previous use as a nonpermanent dwelling to use as a dwelling on or after October 1, 1983. For the purpose of this exemption, a building shall be deemed converted for use as a dwelling on the date on which the certificate of occupancy for dwelling use is issued.

B. Any new dwelling or housing spaces being rented for the first time for the initial rental only.

EQUITY IN REAL PROPERTY INVESTMENT—The actual cash contribution of the purchaser at the time of closing of Title and any principal payments to outstanding mortgages subsequent to acquisition of title by the purchaser.

FAIR RETURN—The percentage of return on equity of real property investment. The amount of return shall be measured by the net income before depreciation. A "fair return" on the equity investment in real property shall be considered to be 2.5% above the maximum passbook demand deposit savings account interest rate available in the municipality. **[Amended 5-8-2019 by Ord. No. 19-044]**

HOUSING SPACE—Includes that portion of a dwelling rented or offered for rent for living and dwelling purposes with all privileges, services, furnishings, furniture, equipment, facilities and improvements connected with the use or occupancy of such portion of the real property.

JUST CAUSE FOR EVICTION—That the landlord recovered possession of a housing space or dwelling for one of the reasons outlined in State law (N.J.S.A. 2A:18-53 as amended or N.J.S.A. 2A:18-61.1 et seq.).

LANDLORD REGISTRATION STATEMENT—A statement to be completed and filed with the Bureau of Rent Leveling pursuant to § 260-2 E, F and G by all owner(s) and landlord(s) of housing spaces and/or dwellings in the City of Jersey City. **[Added 10-24-12 by Ord. No. 12-137]**

LIVING AREA—The amount of total rentable space applicable to any given housing space, measured either in terms of rooms or square footage.

RENT—Any price for the use of a housing space. It includes any charge, no matter how set forth, paid by the tenant for the use of any service in connection with the housing space. Security deposits and charges for accessories, such as boats, mobile homes and automobiles, not used in connection with the housing space shall not be construed as "rent." No charges shall be permitted for late rent, whether termed a late rental fee or interest on rent paid late, in excess of $35.00, returned check fees in excess of $35.00, or any other similar charges; provided, however, that no landlord may collect any penalty or interest, however defined, for late payment of rent until the end of the state of emergency or six months from adoption of these amendments whichever comes first. This paragraph shall be effective March 15, 2021. **[Amended 2-27-02 by Ord. No. 02-017; 5-6-2020 by Ord. No. 20-036; 9-10-2020 by Ord. No. 20-067; 12-2-2020 by Ord. No. 20-100; 3-10-2021 by Ord. No. 21-013]**

RENTAL STATEMENT—The statement a landlord shall be required to sign and deliver to each tenant at the inception of the tenancy, identifying the name and address of the landlord and his or her agent, if any, identifying the name, address and telephone number of the superintendent, if any, providing a twenty-four-hour emergency telephone number for the landlord or his or her agent, describing the housing space rented, the related services and equipment involved (whether or not including use of basement, garage, clothesline, washing equipment, utilities, heat, hot water, garbage removal, repairs, maintenance and the like) as of January 11, 1973; and the base rental as of the date of the inception of the tenancy; and the rent of the prior tenant and notification of the existence of the rent registration law.

SERVICE—The provision of light, heat, hot water, maintenance, painting, elevator service, air conditioning, storm windows, screens, superintendent service and any other benefit, privilege or facility connected with the use or occupancy of any dwelling or housing space.

SERVICE SURCHARGE—An additional charge over and above the rental due for new or additional services.

SUBSTANTIAL COMPLIANCE WITH APPLICABLE HEALTH AND MAINTENANCE CODES—The housing space and dwelling are free from the major health, safety and fire hazards as well as in compliance with heat and hot water and sanitary requirements. Compliance is to be determined with the aid of appropriate City and State regulatory agencies based upon current code inspection reports which shall be not less than six months old at the time of the initial hearing on a rent increase application under § 260-10, Hardship rental increases, and § 260-5, Capital improvements. **[Amended 3-13-1986 by Ord. No. C-183]**

§ 260-2. Rent leveling; landlord registration statement; answering devices. [Amended 10-24-12 by Ord. No. 12-137]

A. Establishment of rents between a landlord and tenant in housing space in dwellings to which this chapter is applicable shall hereafter be determined by the provisions of this amended section.

B. Any rental increase at a time other than at the expiration of a lease or termination of a periodic lease shall be void. Any rental increase in excess of that authorized by the provisions of this chapter shall be void.

C. All rents for rental of housing space and services in dwellings to which this chapter is applicable are hereby controlled at the base rent level received by the landlord as of January 11, 1973, and no rental increases shall be hereinafter demanded, paid or accepted, except as provided in this chapter.

D. Any rent increase imposed after January 11, 1973, the date of expiration of federal rent controls, to the extent that such increase is in excess of that which is permitted by this chapter, is hereby declared to be null and void and such excess rent shall be refunded or credited by the landlord forthwith.

E. Existing leases and options to renew shall not be affected by this chapter but no new leases shall be executed or performed except as provided in this chapter, and the base rent level in leased housing space shall be the rental in effect at the expiration of the lease.

F. Landlord Registration Statement Requirement. **[Added 6-14-1995 by Ord. No. 95-050; 10-24-2012 by Ord. No. 12-137]**

(1) Every owner and/or landlord shall within 90 days following the effective date of this subsection or the creation of the first tenancy in any dwelling containing five (5) or more housing spaces, whether or not subject to the restrictions of rent increases under this Chapter, file a landlord registration statement with the Bureau of Rent Leveling containing the following information:

(a) The name and address of the record owner or owners of the dwelling and the record owner or owners of the rental business if not the same person.

(b) If the record owner is a corporation, the name and address of the registered agent and corporate officers of the corporation.

(c) If the address of any record owner or owners is not located in the County of Hudson, the name and address of a person who resides in the County of Hudson or has an office in the County of Hudson and is authorized to accept notices from tenants and to issue receipts for notices from tenants and to accept service of process on behalf of the record owner or owners.

(d) The name and address of the managing agent of the dwelling, if any.

(e) The name and address, including the dwelling unit, apartment or room number of the superintendent, janitor, custodian or any other individual employed by the record owner or managing agent to provide regular maintenance service, if any.

(f) The name, address and telephone number of any individual representative of the record owner or managing agent who may be called at any time in case of an emergency affecting the dwelling or any housing space within the dwelling, including such emergencies as the failure of any essential service or system, and who has the authority to make emergency decisions concerning the building and any repair to the building or expenditure in connection with the building.

(g) A list of the base monthly rents of each housing space, by apartment or room number, within the dwelling as of January 1, 1983.

(2) Between January 1 and March 3 of each calendar year, all owners and/or landlords of dwellings shall file with the Bureau of Rent Leveling a new landlord registration statement for each dwelling owned. An owner and/or landlord who purchases a dwelling on or after April 1 of any year shall also file a landlord registration statement within seven (7) days of purchase. Owner(s) and/or landlord(s) entitled to an increase in the base rent as a result of improving vacant housing space shall immediately file an amended landlord registration statement.

G. Within 30 days following the effective date of this subsection and at the time of the creation of a new tenancy, every landlord subject to this chapter shall provide each occupant or tenant in his or her dwelling a written statement containing all of the information required to be filed with the Bureau of Rent Leveling in accordance with Subsection F. Commencing 30 days following the effective date of this subsection, this information shall be posted at all times in the lobby, hallway or other conspicuous place within the dwelling. If any information contained in the statement changes, the landlord shall inform each occupant or tenant of the change in writing within 30 days and correct the information posted within seven days after the change. **[Added 6-14-1995 by Ord. No. 95-050]**

H. From November 1 through March 31 of each year, the telephone numbers of the record owner, any individual representative of the record owner, the managing agent and the corporate officers, if the owner is a corporation, shall be equipped with an answering device capable of receiving and recording messages from any tenant calling with regard to maintenance. Owners have 30 days from the effective date of this act to comply with this requirement. **[Added 2-11-1988 by Ord. No. C-674]**

§ 260-3. Allowable increases. [Amended 3-13-1986 by Ord. No. C-183]

A. At the expiration of a lease or at the termination of a lease of a periodic tenant, no landlord of any dwelling as defined in § 260-1 may request or receive a percentage increase in rent which is greater than

four percent or the percentage difference between the consumer price index three months prior to the expiration or termination of the lease and three months prior to the commencement of the lease term, whichever is less. For a periodic tenant or for a tenant whose lease term shall be less than one year, said tenant shall not suffer or be caused to pay more than one rent increase in any 12-month period, commencing 15 months prior to and ending three months prior to, the effective date of the proposed increase, whichever is less. However, as a result of the COVID-19 pandemic, no landlord may request or receive any rental increase at the expiration of a lease or the expiration of any periodic tenancy until the end of the state of emergency or six months from adoption of these amendments, whichever comes first. This paragraph shall be effective March 15, 2021. **[Amended 5-6-2020 by Ord. No. 20-036; 9-10-2020 by Ord. No. 20-067; 12-2-2020 by Ord. No. 20-100; 3-10-2021 by Ord. No. 21-013]**

B. No more than one such cost-of-living rental increase in any one twelve-month period shall be permitted irrespective of the number of different tenants occupying said housing space during said 12-month period.

C. Vacant space. **[Amended 8-12-1998 by Ord. No. 98-116]**

(1) In the event of a vacant housing space, the landlord may raise the rental above the cost-of-living increase without prior application being made to the Bureau of Rent Leveling, and only if he or she has made capital improvements to the housing space. Such capital improvements will entitle the landlord to increase the base rent of the vacant unit by the following amount:

(a) For capital improvements up to $5,000.00 in value, the vacant unit's monthly base rent shall be increased by $1.35 per $100.00 of improvement; and

(b) For capital improvements in excess of $5,000.00, the vacant unit's monthly base rent shall increase by $1.55 per $100.00 of improvement.

(2) It shall be the sole responsibility of the landlord to register the new rent of any improved unit with the Division of Tenant/Landlord Relations pursuant to § 260-2 of this chapter. No capital improvements shall be recognized under this provision unless they are made in accordance with applicable city codes and the appropriate permits are obtained. It shall be the responsibility of the landlord to document to the Bureau of Rent Leveling and prove the cost of any capital improvements in vacant housing space for which he or she desires to increase the rental.

(3) The landlord seeking a rent increase under this subsection shall pay an application fee of $75.00 per unit.

D. The landlord shall supply the following information in writing to any new tenant within the first 10 days of a new tenant's tenancy: the name of and rent paid by all tenants who occupied the apartment rented by the new tenant during the prior 12 months. The landlord shall keep a written record of the information described herein. The landlord shall make this record available to the Rent Leveling Administrator or Board upon request.

E. It shall be unlawful for any landlord to charge a tenant for the use of a washing machine, refrigerator, cooking stove, air conditioner or any other appliances wherever such appliances were permitted and allowed by the landlord without extra charge. The use of such appliances shall be considered as

included in the former rents. Any such extra charge in such situation shall be considered as an unauthorized increase in rents and shall be unlawful unless approved by the Rent Leveling Board. Any landlord who has heretofore charged for such appliances shall be in violation of this chapter and shall be liable for punishment as such.

F. Any landlord seeking a major capital improvement rent increase based upon a substantial improvement of the dwelling and/or housing space must include in the notice to the tenant a landlord certification that said dwelling and housing space is in substantial compliance as defined by this chapter. All work done on the structure and premises must have been with approval of the appropriate agency or department as evidenced by requisite permits. The completed construction must be in accord with building, fire and other code regulations. A certificate of occupancy, where required by law, and a certificate of code compliance,

including a housing inspection report based upon an actual inspection made within six months of the date of the landlord's application, must be produced as evidence. For the purpose of this section only, "substantial improvement" shall mean that the cost of the capital improvements exceeds 50% of the current assessed value, as adjusted to 100% by the county tax equalization ratio prior to the improvements being made.

(1) If a landlord is determined to be in substantial compliance the increase shall be payable from the date set forth in the original notice of rent increase.

(2) If a landlord is determined not to be in substantial compliance at the time of the hearing, then the Board may grant provisional approval for the capital improvement and rent increase with such approval to be reviewed within six months. In the event that the subject property is brought into substantial compliance within the six-month period, then the provisional approval shall become final.

(3) In the event that the subject property is not brought into substantial compliance within the six-month period, but the owner has within this period made significant progress toward substantial compliance, the provisional approval shall continue with a further review being scheduled within the following three months. If the property is brought into substantial compliance within the additional three months, the provisional approval shall become final.

(4) In the event that the owner has not brought the property into substantial compliance or made significant progress toward substantial compliance within the six-month initial period or fails to bring the property into substantial compliance after being accorded the additional three-month extension, the owner provisional approval shall terminate and any capital improvement rent increase collected shall be immediately refunded to the tenant who paid the increase.

(5) Any capital improvement rent increase approved pursuant to this section shall take effect from the date of determination by the Board upon proper notice as required by the laws of the State of New Jersey.

G. Any landlord seeking a hardship increase shall include with the application an actual inspection report from the local building or property maintenance department based upon an inspection made within six months prior to the application. An application without said inspection report shall be void. The hearing officer may request an inspection if no inspection report is included in such application. The determination of substantial compliance shall be made by the Rent Leveling Board upon reviewing the list of violations, if any, set forth in the inspection report. If there are any objections thereto, then either party may file a complaint with the Board and a hearing shall be scheduled. The Chairperson of the Board shall intervene whenever necessary, upon request of any party to an application, to assure a prompt inspection by the appropriate department.

(1) If a landlord is determined to be in substantial compliance, then the hardship request shall be processed subject to the requirements set forth in § 260-10 of this chapter.

(2) If a landlord is determined not to be in substantial compliance at the time of the hearing on the hardship application, and the Board determines, after hearing, that the application would otherwise be granted, then the Board may grant provisional approval for the hardship application with such approval to be reviewed within six

months. In the event that the subject property is brought into substantial compliance within the six-month period, then the provisional approval shall become final.

(3) In the event that the subject property is not brought into substantial compliance within the six-month period but the owner has, within this period, made significant progress toward substantial compliance, the provisional approval shall continue with a further review being scheduled within the following three months. If the property is brought into substantial compliance within the additional three months, the provisional approval shall become final.

(4) In the event that the owner has not brought the property into substantial compliance or made significant progress toward substantial compliance within the six-month initial period or fails to bring the property into substantial compliance after being accorded the additional three-month extension, the owner's provisional approval shall terminate and any rent increase collected shall be immediately refunded to the tenant who paid the increase. In the event that a provisional approval is so terminated, the Board shall dismiss the hardship application. An owner whose application has been so dismissed may reapply for a hardship rental increase. Any reapplication shall be considered an original application under § 260-10. **[Amended 4-23-1987 by Ord. No. C-451]**

H. The landlord shall register the rent roll with the Rent Leveling Bureau in order to qualify for any rental increase.

I. If the landlord does not inform or misinforms the tenant concerning the rent paid by the prior tenants or in any manner illegally increases the tenant's rent, the Rent Leveling Bureau shall then accept, hear and adjudicate a compliance of an illegal increase.

J. The landlord shall provide to each tenant a copy of the Truth-In-Renting Statement and subsequent amendments to said statement and be in full compliance with the landlord identity disclosure provision contained within the statement in order to qualify for any rental increase.

§ 260-4. Procedure for cost-of-living increases.

Any landlord seeking a cost-of-living rental increase shall notify the tenant in writing at least 30 days prior to the effective date of the increase as required by law of the calculations involved in computing the increase, including the consumer price index three months prior to the expiration or termination of the lease and the commencement of the lease term, or for a periodic tenant whose lease term is less than one year, the consumer price index 15 months prior to the effective date of the proposed increase, the allowable percentage increase as per § 260-3 and the allowable rental increase. The notice shall state the tenant's right to contest the increase within six months to the Jersey City Rent Leveling Bureau.

§ 260-5. Capital improvement and service charge.

A. **[Amended 3-11-1992 by Ord. No. 92-013]** A landlord may apply to the Bureau of Rent Leveling for a service charge for increased or improved services. The landlord shall submit a written proposal with cost estimates to the Rent Leveling Board prior to performing any major or capital improvement work, showing how the work will affect all dwelling units.

The landlord shall include the substance of said proposal in the notice of application to each tenant sent pursuant to Subsection C of this section. The aforesaid notice shall advise the tenants that they have a right to request a hearing before the Rent Leveling Board with respect to the proposed capital improvement work. Final approval by the Board shall not be considered until the capital improvement work has been completed and after the Board has received necessary documentation, at which time a final hearing will be scheduled. The landlord shall compute the average cost of the computed capital improvement or service by the number of years of useful life of the improvement as claimed by the landlord for federal income tax depreciation purposes. The landlord shall propose to apportion the average cost of completed improvement or service per year of useful life among the tenants in the dwelling in accordance with one of the following methods:

(1) If the capital improvement benefits certain housing spaces only, then the cost of those improvements shall be surcharged to only these units.

(2) If the capital improvement benefits all housing spaces but in varying degrees according to the amount of living area of each housing space, then the cost for the improvements shall be charged according to either the number of rooms or the space in proportion to the total rentable area in the dwelling.

(3) If the capital improvement is equally beneficial to all housing spaces regardless of the living area within any housing space, then the cost of the improvements shall be charged according to the number of housing spaces within the dwelling.

B. All work done on the property must be performed with the appropriate proper local approval as evidenced by permits and the completed capital improvements must be in accord with building, fire, plumbing, electrical and any other code regulations. Before any capital increase is approved, an inspection shall be required to be made by a qualified inspector of the Department of Housing, Economic Development and Commerce together with an inspection by the Office of the Construction Official in order to document the nature of the work performed and that the structure is in substantial compliance. A certificate of occupancy must be secured if required by law. The landlord shall furnish with the application a certification of the true cost of each improvement signed by a qualified inspector and an affidavit by the landlord that the amount claimed in the application is attributable only to the specific building which is the subject of the application. **[Amended 3-11-1992 by Ord. No. 92-013; 8-13-1997 by Ord. No. 97-052]**

C. Notice procedure. Prior to any application under this section, the landlord shall serve upon each tenant, by registered or certified mail or personal service of a notice of application filing setting forth the basis for said application, the amount of rental increase or surcharge applied for with respect to that tenant and the calculations involved. A sample copy of such notice shall be filed with the application of the landlord together with an affidavit or certification of service of notice of application upon each tenant. Tenants who request a copy of the complete application shall have one provided by the landlord.

D. Determination. The Rent Leveling Board may grant the landlord a rental surcharge or increase under the provisions of this section. No landlord shall impose upon any tenant a rent surcharge or increase under this section without first obtaining approval from the Rent Leveling Board. It shall be within the discretion of the Board to fix the effective date of

any approval of a rental surcharge or increase to be at any reasonable time after determination. A surcharge granted under the provisions of this section shall not be considered rent for purposes of computing cost-of-living rental increases pursuant to §§ 260-2, 260-3 and 260-4. After the landlord has filed his or her application for an increase with all supporting documents and materials, no new material will be considered by the Hearing Officer or Board unless such new material is filed with the Board and notice identifying such new material and setting forth a description of such material is served upon each tenant no later than 10 days prior to the date of the hearing. Tenants who request a copy of the capital improvement file and any new materials submitted to the Board or hearing officer shall have one provided by the landlord at least five days prior to any hearing date. **[Amended 3-13-1986 by Ord. No. C-183]**

E. Computations.

(1) A landlord must provide as part of his or her application a completed Rent Leveling Board form indicating the method and term of depreciation of the capital improvements claimed by the landlord.

(2) In the case of all capital improvements, the depreciation period shall be calculated according to its useful life, which in no case shall exceed 10 years for major capital improvements and five years for minor capital improvements. **[Amended 8-12-1998 by Ord. No. 98-116]**

(3) In the case of such major capital improvements, the capital improvement charge shall be a part of the permanent base rent. **[Amended 8-12-1998 by Ord. No. 98-116]**

(4) Major capital improvements shall consist of a substantial change in the housing accommodations such as would materially increase the rental value in a normal market and which consists of capital improvements to building-wide operating systems, including but not limited to items such as complete plumbing or electrical replacement for the entire building or a complete new roof. Major capital improvements shall also include complete kitchen and bathroom replacements for an individual apartment unit.

(5) In the case of minor capital improvements, the capital improvement charge shall not be a part of the permanent base rent, nor shall any financing costs be included as part of said surcharge.

(6) Minor capital improvements shall consist of all capital improvements not classified as major capital improvements.

(7) A capital improvement increase resulting hereunder shall not exceed 15% of the legal rent for the first year of such increase. Any further amount of increase which would have resulted based upon the landlord's application hereunder shall be apportioned equally over the remaining period of the capital improvement charge.

(8) Except in the case of emergency capital improvements, as defined in Subsection G, a landlord shall be entitled to only one major capital improvement increase in any twelve-month period.

F. The Board, in computing the amount spent for capital improvements, may consider the reasonable value of construction services performed by the owner in the actual capital

improvement work. Where allowed, this shall include professional consultation or other similar services of the owner and is limited to actual labor and materials invested by the owner.

G. In the case of emergency major capital improvements a landlord shall not be required to obtain Board approval prior to performing said capital improvement work. The landlord shall be required to obtain Board approval for any capital improvement charge after the capital improvement work has been completed as otherwise provided for capital improvement charges herein. For purposes of this section, "emergency capital improvement" shall mean a capital improvement made to correct a condition causing immediate and/or imminent danger to the health or safety of occupants of the subject premises, as defined by the Division of Construction Code Official, Department of Public Safety and/or Building Department. The landlord shall notify the Division of Construction Code Official of this condition as soon as possible. **[Amended 8-13-1997 by Ord. No. 97-052; [9-11-2013 by Ord. No. 13-081]**

§ 260-6. Exemptions for new dwellings and new housing space. [Amended 4-27-1989 by Ord. No. C-944; 3-13-1996 by Ord. No. 95-111; 8-13-1997 by Ord. No. 97-052; 5-27-1998 by Ord. No. 98-060; 8-12-1998 by Ord. No. 98-116; 9-24-2025 by Ord. No. 25-099]

A. The owner of a newly constructed dwelling and the owner of newly constructed housing space which is rented for the first time shall not be restricted in the initial rent charged, provided that the owner has registered the rent with the Bureau of Rent Leveling. Except as provided in Subsection C of this section, any subsequent rental increases shall be subject to the provisions of this chapter.

B. Permits as required by law are to be secured from all agencies having control and jurisdiction. All work must adhere to appropriate code standards and must be inspected by all agencies having control and jurisdiction and their approval obtained. A certificate of occupancy must be secured as required by law.

C. In accordance with N.J.S.A. 2A:42-84.1 et seq., L. 1987, c. 153, the provisions of this chapter which limit the periodic or regular increases in base rentals of dwelling units shall not apply to a newly constructed dwelling which is not "constructed for senior citizens" as defined by N.J.S.A. 2A:42-84.1, for a period of time not to exceed the period of amortization of any initial mortgage loan obtained for the dwelling, or for 30 years following completion of construction, whichever is less. In the event that there is no initial mortgage financing, the period of exemption from a rent control or rent leveling ordinance shall be 30 years from the completion of construction. This exemption applies only where an owner complied with all requirements contained in N.J.S.A. 2A:42-84.1 et seq., including the filing with the municipal construction official required by N.J.S.A. 2A:42-84.4 and the service of a written statement upon the tenant required by N.J.S.A. 2A:42-84.3.

D. Buyers of multifamily dwellings covered by this chapter which are certified by the Division of Tenant/Landlord Relations to be vacant as of July 1, 1998 shall be granted a permanent exemption from the mandates of this chapter for rental units within that dwelling. Officers designated by the Director of the Division of Tenant/Landlord Relations shall be responsible for certifying, in writing, that a dwelling is vacant as of July 1, 1998.

§ 260-7. Anti-harassment and tenant complaints. [Amended 9-10-1987 by Ord. No. C-553; 8-12-1998 by Ord. No. 98-116]

A. Any tenants desiring to remain in their units may do so without provocation or retaliation from landlords. For the purpose of this section, harassment of tenants shall mean conduct, whether direct or indirect, committed intentionally or negligently, by a landlord or anyone acting on his behalf. These actions include, but are not limited.

(1) A reduction in the quality of basic service to the health, safety and welfare of the tenants;

(2) Withholding heat or hot water;

(3) Inadequate security;

(4) Intermittent failures;

(5) Bothersome telephone calls or letters;

(6) Frivolous eviction threats or legal proceeding; or

(7) Actions which would cause a reasonable person of like age and physical condition of a tenant to, fear for his or her life, limb, property or home.

B. Investigation/prosecution of harassment complaints. The Housing Municipal Court shall have jurisdiction over such complaints. The city shall assign one of its municipal prosecutors to investigate and/or prosecute complaints involving harassment filed by either tenants or landlords. Any landlord found guilty of violating this section shall be liable for a fine of up to $1,000 and/or imprisonment for a period of up to 90 days and/or a period of community service not exceeding 90 days.

C. Any complaint of an illegal increase or claim to lower rentals must be filed with the Bureau of Rent Leveling no later than two years after the effective date of the disputed increase. This limitations period shall apply to all claims accruing on or after January 1, 1987.

D. Payment of rental increase for two consecutive years shall be construed to be an agreed increase and not subject to the provisions of this chapter except that in the event that the Board determines that the landlord has not served upon the tenant the rental statement set forth in § 260-1, the Board shall waive the two-year limitations period.

E. If at any time after 30 days of a determination by the Rent Leveling Board or Administrator resulting in a refund of moneys to the tenant the landlord has not paid the refund to the tenant, the tenant may deduct the refund from the next rental payment.

F. Rent charges by the landlord shall be reduced or rolled back for any one of the following reasons if so determined by the Rent Leveling Board or Administrator:

(1) For the reasons set forth in § 260-14 of this chapter.

(2) For an unapproved rent increase beyond the annual cost-of-living increase.

G. An individual tenant or group of tenants on behalf of a tenant in the subject premises may file a complaint for a rent rollback based upon the foregoing reasons or any other reason where the value of the housing space is reduced.

H. At the time of any complaint made pursuant to Subsection G, the tenant or group of tenants on behalf of a tenant in the subject premises may request an inspection from the local housing or property maintenance department, which department shall undertake the inspection, submit a report and be available to the Rent Leveling Board at the hearing.

1. Any rent reduction, if granted by the Board, shall remain in effect until the landlord proves to the Board that the deficiency has been corrected.

J. The Board shall adopt guidelines for rent reductions under this section and shall consider the type of deficiency, the cause of deficiency, steps taken to alleviate the deficiency and the severity of the deficiency.

§ 260-8. Bureau of Rent Leveling. [Amended 8-13-1997 by Ord. No. 97-052]

A. There is established within the Department of Housing, Economic Development and Commerce a Bureau of Rent Leveling, the head of which shall be the Rent Leveling Administrator, The Rent Leveling Administrator shall possess all the qualifications necessary to administer this chapter and the Bureau of Rent Leveling but shall not function as a hearing officer.

B. The Rent Leveling Administrator shall be appointed by and under the direction of the Director of the Department of Housing, Economic Development and Commerce.

§ 260-9. Powers and duties of the Bureau of Rent Leveling. [Amended 10-24-2012 by Ord. No. 12-137]

A. The Bureau of Rent Leveling under the direction of the Rent Leveling Administrator shall have the following powers and functions:

(1) To remedy violations of this chapter by adjusting rentals, ordering rebates and bringing appropriate legal charges as provided in this chapter.

(2) To accept complaints from tenants of illegal increases, provided that all claims are sworn to and acknowledged by a person authorized by law to administer oaths.

(3) To accept any applications from landlords for rental increases under the capital improvement and service surcharge provisions of this chapter, provided that all applications are sworn to and acknowledged by a person authorized by law to administer oaths.

(4) To review applications and investigate complaints prior to a final decision being made in any case.

(5) To correct rentals which violate the consumer price index.

(6) To accept and forward to the Rent Leveling Board any applications for hardship rental increases.

B. Any rebate ordered by the Rent Leveling Administrator or Rent Leveling Board shall be considered a penalty against the landlord if said rebate is not made to the tenant within 30 days of the service of a

final determination by the Administrator or Board. The tenant may bring an action in Municipal Court for the collection of this penalty after the time allowed as provided in New Jersey Court Rules, 4:70-1.

C. Either party to a case shall have the right to appeal the determination of the Rent Leveling Administrator or Board's hearing officer to the Rent Leveling Board.

D. There is hereby established the schedule of fees for complaints, applications and landlord registration statement to the Rent Leveling Board, which fees shall be payable to the City of Jersey City as provided in Chapter 160, Fees and Charges. [Amended 10-23-1986 by Ord. No. C-321; Amended 10-24-2012 by Ord. No. 12-137]

(1) $125 per housing space for capital improvement to vacant housing spaces.

(2) $20 per housing space for major or minor capital improvements.

(3) $30 per housing space for hardship application.

(4) $ 10 per housing space for the filing of landlord registration statement for all dwellings with five (5) or more housing spaces, including dwellings that are exempt from the restrictions of rent increases mandated under this Chapter, during each registration event.

(5) $30 per housing space for condominium and cooperative conversions.

(6) $150 per housing space for appeal of a protected tenancy determination.

E. No complaint application or rent roll registration will be deemed filed with the Board unless and until submitted on the Board's official forms and accompanied by all appropriate supporting documents and information and the required filing fees.

§ 260-10. Hardship rental increases. [Amended 3-13-1986 by Ord. No. C-183]

A. In the event that a landlord cannot meet his or her mortgage payments or operating expenses or does not make a fair return on his or her investment, he or she may apply to the Rent Leveling Board for increased rentals, provided that he or she has owned the building for at least nine months prior to the time he or she applies for an increase.

B. Notice procedure prior to any application under this section to the Board. The landlord shall serve upon each tenant by registered or certified mail or personal service a notice of said application setting forth the basis for said application, the amount of rental increases applied for with respect to that tenant and the calculations involved. A sample copy of such notice shall be filed with the application of the landlord to the Board, together with an affidavit or certification of service of notice of application upon each tenant. No hearing shall commence earlier than 6:00 p.m. and no hearing shall continue beyond 12:00 midnight. **[Amended 6-26-1991 by Ord. No. MC-334]**

C. Determination by Rent Leveling Board. The Board may grant the landlord a rental increase under the provisions of this section. No landlord shall impose upon any tenant an increase in rent under this section without first obtaining approval from the Board. It shall be within the discretion of the Board

to fix the effective date of any approved rental increase to commence at a reasonable time as determined by the Board. The Board must decide any hardship case within 60 days from the date of completion of application by the landlord, provided that all necessary and required documentation for said application has been submitted by the landlord to the hearing officer or the Board.

D. After the landlord has filed his or her application for an increase with all supporting documents and materials, no new material will be considered by the hearing officer or Board unless such new material is filed with the Board and notice identifying such new material and setting forth a description of such material is served upon each tenant no later than 10 days prior to the date of the hearing. Tenants who request a copy of the hardship file, and any new materials submitted to the Board or hearing officer, shall have one provided by the landlord at least five days prior to any hearing date.

E. The Board shall deny all or a part of the relief requested where specific findings of fact support the conclusion that the landlord purchase or operations are not reasonable, prudent and/or efficient.

F. The Board shall only include expenses that are reasonable, necessary and usual operating expenses. If an expense is not a usual yearly expense, the Board shall prorate the expense over a reasonable period of time based upon the history of the building and the actual useful life of the expense item. Any expenses connected with repairs and miscellaneous items shall be substantiated with bills and other documents for a twelve-month period prior to the application. No capital improvement or capital expenses shall be considered under this category.

G. Documentation presented by the landlord in the hardship application must include the following:

(1) The title closing statement or other proofs of purchase.

(2) Canceled checks or other proof of payment for all expenses claimed in the hardship application.

(3) All canceled checks or other proof of payment for all expenses claimed in the hardship application.

(4) All invoices, bills or other proof of work performed, supplies purchased and/or equipment purchased as claimed in the hardship application.

(5) A compilation statement of income and expenses relating to the subject property only for the preceding two years or from the date of acquisition of title if the property is owned for less than two years.

(6) Copies of those portions of tax returns relating to the property for the preceding two years or the period of the landlord's ownership if less than two years if filed.

(7) All mortgages and notes.

(8) The deed.

(9) Any other documents sought by the Rent Leveling Board and being relevant to the subject application and necessary to the Board's decisionmaking process.

H. Claimed expenses that are not supported by bills or invoices and canceled checks, money orders or appropriate proof of payment shall not be allowed.

1. If the Board determines that the landlord has withdrawn a part or all of his or her investment through refinancing or through any other means, then said withdrawal shall be

deducted from the landlord's equity in real property investment unless used for the subject property.

J. If the Board determines that the landlord has unreasonably or excessively financed the property, then the Board may reasonably adjust the financing expense based upon market rates.

§ 260-11. Rent Leveling Board established. [Amended 1-9-1986 by Ord. No. C-141; 3-12-1987 by Ord. No. C-429; 1-11-1995 by Ord. No. 94-137]

A. There is created a Rent Leveling Board to assist the administration of this chapter. The Board shall consist of (7) members, all of whom shall be residents of the City of Jersey City. Board members shall be appointed by the Mayor with the consent of the Municipal Council. Two (2) members shall be appointed for one (1) year, three (3) for two (2) years, two (2) for three (3) years; and thereafter, each new member shall serve a term of three (3) years and until his successor has been appointed and qualified.

B. The Mayor may also appoint two (2) alternate members of the Board with the consent of the Municipal Council for a term of one (1) year and until their successors are appointed and qualified. If any vacancy shall occur, other than the expiration of term, it shall be filled by appointments as above-provided for the unexpired term.

C. The members and alternate members of the Board shall, insofar as practicable, as a group, be representative of the affected interests in the city.

D. An alternate member shall be entitled to sit with and participate as a member in any meeting of or hearing before the Board. An alternate member who has attended the full hearing or hearings and all pertinent meetings may participate in the Board's determination during the absence or disqualification of any regular member.

E. No member or alternate member of the Rent Leveling Board shall be permitted to act on any matter in which he or she has, either directly or indirectly, any personal or financial interests. Members and alternate members may be removed for inefficiency, neglect of duty or malfeasance in office by the Mayor at his discretion after proper hearing. Any Board member or alternate member who is absent for three (3) consecutive Board meetings shall automatically be removed from the Board.

F. All members of the Board must disclose any/all real estate holdings in Jersey City.

§ 260-12. Powers of Rent Leveling Board.

A. The Rent Leveling Board is granted and shall have and exercise, in addition to other powers herein granted, all powers necessary and appropriate to see that the purposes of this chapter are carried out and executed, including but not limited to the following:

(1) To issue and promulgate such procedural rules and regulations as it deems necessary to implement the purposes of this chapter, which rules and regulations shall have the force of law until revised, repealed or amended from time to time by the Board in the exercise of its discretion, provided that such rules are filed with the City Clerk. The

Municipal Council may reject any rules of the Board within sixty (60) days of the issuance of such rule and such rejected rule shall be deemed null and void and be of no force.

(2) To supply information and assistance to landlords and tenants to help them comply with the provisions of this chapter.

(3) To hold appeals hearings and adjudicate appeals from tenants for reduced rental in accordance with provisions of this chapter.

(4) To hold hearings for hardship, capital improvement and rent reduction applications in accordance with the provisions of this chapter.

B. The Board shall give both landlord and tenant reasonable opportunity to be heard before making any determination. All determinations of the Board must be approved as to law and form by the Corporation Counsel prior to release. All Board determinations must be in writing.

C. The Board may designate any one (1) of the following persons as hearing officers to conduct hearings pursuant to this chapter: any one (1) of its members or any person who was employed by the city to the position of hearing officer. Such hearing officer shall, within five (5) days after the conclusion of the hearing, file a written report with the Board. Said report shall contain the names and addresses of the parties to the hearing, names and addresses of all witnesses other than parties who testified at the hearing, the detailed findings of fact and conclusions of law, a recommended decision and the detailed basis for the recommendation. Attached to the report shall be all documents and papers received in evidence and the tape recording or transcript of the hearing. A copy of the report alone shall be mailed or served upon each party to the hearing. The parties may file written exceptions to the report with the Board. However, no exceptions shall be considered by the Board unless the same has been filed with the Board within ten (10) days from the date the copy of the report is received by the party submitting the exceptions. The Board shall consider the report and any exceptions to said report and shall render a decision promptly to either adopt, reject or modify the hearing officer's recommended decision. **[Amended 4-23-1987 by Ord. No. C-451]**

D. The final decision or order of the Board shall be in writing or stated in the record of the Board's proceedings. Findings of fact, if set forth by reference to the language of this chapter, shall be accompanied by a concise and explicit statement of the underlying facts supporting the findings. The parties shall be notified either personally or by certified mail of the final decision.

§ 260-13. Appeal of Board's decision. [Amended 7-19-1991 by Ord. No. McC-340[1]]

Both landlord and tenant may appeal the findings of any determination of the Board to a court of competent jurisdiction according to law. The landlord shall provide written notice to each

[1] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

tenant of any such appeal or complaint and shall certify to the Administrator that notice has been given. Failure to so certify in any case shall be a violation of this chapter punishable by a minimum fine of $100 and maximum penalties as provided in Chapter 1, General Provisions, § 1-25.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 260-14. Required services; heating systems. [Amended 4-8-1992 by Ord. No. 92-022]

A. During the term of this chapter, the landlord shall maintain the same standards of service, heating, maintenance, furniture, furnishings and equipment in the housing space and dwelling as he or she provided or was required to do by law or lease at the date the lease was entered into.

B. When services, care or maintenance or when the standards of service, heating, maintenance, furniture, furnishings and equipment in the housing space or dwelling are not substantially maintained as specified above, any tenant may apply to the Rent Leveling Board for a decrease in rent. A copy of said application shall be served upon the landlord and all other tenants setting forth, in detail, the reasons for such applications. At least 20 days shall elapse before a hearing thereon can be set.

C. Conversion of a central heating system paid for by the landlord to an individual dwelling heating system unit paid for by the tenant shall be considered a reduction of services. Any landlord who makes such heating conversion shall notify his or her tenants of their entitlement to a rental decrease commensurate with the additional cost to the tenant.

D. The two-year period provided under § 260-7 within which a tenant may apply to the Rent Leveling Board for a decrease in rent based on reduction of service shall not commence until the landlord provides each tenant with written notice of a tenant's entitlement to a rent reduction based on the conversion.

§ 260-15. Provisions retroactive.

No landlord shall after the effective date of this chapter charge any rents in excess of what he or she was receiving from the effective date of this chapter except for increases as authorized by this chapter; nor shall such landlord charge any rents in excess of what he or she was receiving on January 11, 1973, if such excess is in excess of the rental which is authorized by this chapter.

§ 260-16. Computations to be rounded off.

In computing rental increases and surcharges as provided under this chapter, all amounts so computed may be rounded off to the nearest dollar in accordance with generally accepted accounting principles.

§ 260-17. Violations and penalties. [Amended 10-8-2025 by Ord. No. 25-105]

A violation of any provisions of this chapter, including but not limited to the filing with the Rent Leveling Board or the Administrator of any material misstatement of fact, shall be punishable as provided in

Chapter 1, General Provisions, § 1-25. A violation affecting more than one tenant shall be considered a separate violation as to each tenant per day of the continuing offense. Violations of multiple provisions of this Code shall be considered a separate violation as to each provision.

1. For each violation of this chapter, the violator shall be subject to a mandatory fine of not less than $100.00 and not more than $2,000.00.

Editor's note—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 260-18. Construal of provisions.

This chapter being necessary for the welfare of the city and its inhabitants shall be liberally construed to effectuate the purposes thereof.

§ 260-19. When effective; other provisions supplemented.

A. This chapter shall remain in effect until the Council determines, by ordinance, that rent control is no longer necessary in the City of Jersey City and that it is in the public interest to permit the unrestrained operation of the competitive rental market.

B. All provisions of Chapter 218, Multiple Dwellings, of the Jersey City Code as amended and supplemented by this chapter be and they are hereby readopted.

§ 260-20. Nonoccupant owner registration of dwelling units. [Added 2-11-1988 by Ord. No. C-674]

A. The nonoccupant owner of any dwelling of one to four units which is let or rented for residential use shall file a statement with the Rent Leveling Board registering such unit.

B. The statement shall contain:

(1) The total number of units in each dwelling rented, the address of each dwelling, the number of persons living in each dwelling unit, the number of rooms in each dwelling unit and the square footage of each dwelling unit.

(2) The home address and telephone number where the owner or an agent authorized to act on the owner's behalf with respect to the maintenance of the property can be reached during regular business hours.

(3) The address and telephone number of an agent capable of responding to or relaying emergency notices and messages concerning the dwelling at any time.

C. If the owner is a corporation or entity other than an individual, in addition to the information requested in Subsection B above, the statement shall also contain:

(1) The home address and telephone number of each principal owner as requested above.

(2) The address of the corporation and registered agent.

D. From November 1 through March 31 of each year, each telephone number listed in the registration statement shall be equipped with an answering device capable of receiving and recording messages from any tenant calling with regard to maintenance.

E. Owners shall file an amended statement within seven days of any change in the information required to be filed with the Rent Leveling Board.

F. Owners have 30 days after the effective date of this chapter to comply with its requirements.

§ 260-21. Scope of exemptions from rent increase limitations. (Added 9-24-2025 by Ord. No. 25-099)

A. In accordance with the Newly Constructed Multiple Dwellings Act, N.J.S.A. 2A:42-84.2, Jersey City affirms that exemptions granted thereunder apply only to those provisions of Chapter 260 which directly limit the periodic or regular increases in base rentals, and do not extend to any other administrative, disclosure, or registration requirement of Chapter 260. Likewise, except for the sole provisions of Chapter 260 which directly limit the periodic or regular increases in base rentals, no dwelling, landlord, or owner, regardless of rent control status, is exempt from any other provision of Chapter 260.

   1. For purposes of subsection (A), the provisions of Chapter 260 that limit the periodic or regular increases in base rentals are § 260-3(A) and § 260-3(B).

B. Subsequent compliance is effective only prospectively and does not legalize or validate any rent increase taken during noncompliance.

C. This section describes existing law. The administrative requirements in subsection (A) have been continuously in effect and enforceable since their respective dates of enactment. Consistent with N.J.S.A. 2A:42-84.6, this section operates within the limitations imposed by the State act.

Chapter 263

RETAIL AND COMMERCIAL PREMISES*

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Article IV

Distribution of Plastic Straws and Single-Use Food and Beverage Accessories

§ 263-12. Definitions.

§ 263-13. Distribution of plastic straws/stirrers, single-use food and beverage accessories, sale and/or use prohibited; permitted use.

§ 263-14. Exemptions.

§ 263-15. Alternatives.

§ 263-16. Enforcement; violations and penalties.

ARTICLE I

Attendants on Duty

[Adopted 2-13-1986 as Ord. No. C-163]

§ 263-1. Premises open 24 hours per day.

Any business or commercial premises which is open to the public 24 hours a day shall have a minimum of two attendants or employees on duty at all times between the hours of 11:00 p.m. and 7:00 a.m. This requirement shall not apply in the use of those businesses and commercial premises which have alarms connected to the central police console at police headquarters, provided that such alarm is in working order.

***History**—Adopted by the Council of the City of Jersey City: Art. I, February 13, 1986 as Ord. No. C-163; Art. II, July 14, 1987 as Ord. No. C-514, amended in its entirety October 8, 1987 by Ord. No. C-608. Subsequent amendments noted where applicable.

Cross references—Alcoholic beverages, Ch. 84; curfew, Ch. 137; dance halls, Ch. 142; fire lanes, Ch. 166; food-handling establishments; Ch. 175; sale of ice, Ch. 193; laundries and dry cleaners, Ch. 207; motor vehicle repair shops, Ch. 215; noise, Ch. 222; peddling and soliciting, Ch. 245; security gates, Ch. 278; shopping carts, Ch. 284; responsibility for solid waste disposal, Ch. 287; uniform packaging practices, Ch. 287, Art. II; sale of spray paint, Ch. 290; removal of snow and cleaning of sidewalks, Ch. 296; commercial usage of sidewalks, Ch. 296; used car dealers, Ch. 324; vending machines, Ch. 329; zoning, Ch. 345.

ARTICLE II

Hours of Retail Businesses

[Adopted 7-14-1987 as Ord. No. C-514; amended in its entirety 10-8-1987 as Ord. No. C-608; amended 9-24-2003 by Ord. No. 03-126; amended 7-14-2004 by Ord. No. 04-067]

§ 263-2. Purpose; findings. [Amended 8-4-2010 by Ord. No. 10-101]

A. The purpose of this Article regulating business hours of restaurants and retail sales and services businesses on described portions of Communipaw Avenue, Franklin Street, Kennedy Boulevard, Martin Luther King Drive, Monticello Avenue, Ocean Avenue, Pacific Avenue, Palisade Avenue, Sip Avenue, Summit Avenue, and Paterson Plank Road and Secaucus Road is to:

(1) Decrease noise and disturbance associated with the large crowds of juveniles and young adults which congregate around retail businesses, especially fast-food businesses on these streets.

(2) Discourage the criminal activities, especially drug-related criminal activities, on these streets.

B. From evidence provided by residents of the neighborhoods of the vicinity of Communipaw Avenue, Franklin Street, Kennedy Boulevard, Martin Luther King Drive, Monticello Avenue, Ocean Avenue, Pacific Avenue, Palisade Avenue, Sip Avenue, Summit Avenue, and Paterson Plank Road and Secaucus Road, and by the Department of Public Safety, the City Council finds that: [**Amended 9-11-2013 by Ord. No. 13-081**]

(1) Retail fast food establishments and retail sales and services businesses on the described portions of these twelve (12) streets provide a haven for criminal activities and that these activities are difficult to control while these establishments remain open.

(2) Crowds of juveniles and young adults are attracted to the neighborhoods of the described portions of Communipaw Avenue, Franklin Street, Kennedy Boulevard, Martin Luther King Drive, Monticello Avenue, Ocean Avenue, Pacific Avenue, Palisade Avenue, Sip Avenue, Summit Avenue, and Paterson Plank Road and Secaucus Road, by fast food establishments and retail sales and services businesses, which remain open during late-night hours when such establishments in other parts of the city have closed.

(3) Encouraged by the presence of fast-food restaurants and retail sales and services businesses, these crowds of juveniles and young adults congregate not only on the main streets but on the adjoining residential streets and parking lots; residents of these neighborhoods who attempt to use the streets are harassed by panhandlers and by rowdy and even malicious juveniles.

(4) These youths and young adults create a disturbance in the neighborhood which prevents residents from sleeping and walking the streets and from enjoying the peace and quiet of their homes.

(5) These youths and young adults harass neighborhood residents and pedestrians and cause them to fear for their personal safety and causing an increase in the need for police presence and calls for police service.

(6) The presence of all-night food establishments and retail sales and services businesses has increased the volume of noise in these neighborhoods as a result in the increase of automobile and pedestrian traffic. The increase in automobile traffic is accompanied by loud radios, car horns and running automobile engines; the increase in pedestrian traffic by loud belligerent behavior, fights and general commotion on the streets.

(7) The all-night operation of restaurants and retail sales and services businesses has left the streets in these areas covered with debris from food wrappings, bottles, cans and decomposing food products.

§ 263-3. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

RETAIL SALES AND RETAIL SERVICES BUSINESSES and RESTAURANTS — In accordance with the Zoning Ordinance of the City of Jersey City, Chapter 345.

§ 263-4. Businesses to be closed during certain hours; exceptions. [Amended 8-4-2010 by Ord. No. 10-101]

A. Subject to Subsection B, no restaurant or retail sales establishment shall conduct any business between the hours of 11:00 p.m. and 5:00 a.m. of the next day in any of the following districts of Jersey City: **[Amended 1-13-2016 by Ord. No. 15-176**

Name of Street	From	To
Communipaw Avenue	Martin Luther King Drive	Grand Street
Communipaw Avenue	Monticello Avenue	Westside Avenue
Communipaw Avenue	Pine Street	Manning Avenue
Franklin Street	Central Avenue	Palisade Avenue
Kennedy Boulevard	North Street	Secaucus Road
Martin Luther King Drive	McAdoo Avenue	Communipaw Avenue
Monticello Avenue	Communipaw Avenue	Orchard Street
Ocean Avenue	Bayonne Line	Bramhall Avenue
Pacific Avenue	Communipaw Avenue	Grand Street
Palisade Avenue	Beacon Avenue	North Street
Rose Avenue	Cator Avenue	Danforth Avenue
Sip Avenue	Summit Avenue	Bergen Avenue
Summit Avenue	North Street	Secaucus Road
Paterson Plank Road and Secaucus Road	Central Avenue	Summit Avenue

B. The restriction upon business hours imposed by Subsection A shall not apply to pharmacies or other holders of plenary retail distribution licenses under the Alcoholic Beverage Law, N.J.S.A. 33:1-1 et seq.; except that the holders of such licenses may not conduct any business between the hours of 11:00 p.m. and 5:00 a.m. other than that permitted by N.J.S.A. 33:1-40.3 and Chapter 84, Alcoholic Beverages.

C. Subject to Subsection B, no restaurant or retail sales establishment shall conduct any business between the hours of 12:00 a.m. and 5:00 a.m. of the next day in any of the following districts of Jersey City: **[Added 8-10-2011 by Ord. No. 11-088; amended 5-23-2012 by Ord. No. 12-069]**

Name of Street	From	To
Central Avenue	Manhattan Avenue	North Street
Bowers Street	Cambridge Avenue	Central Avenue
Bergen Avenue	Jewett Avenue	Highland Avenue
Montgomery Street	Jordan Avenue	Boland Street

§ 263-5. Exemptions from closing regulations to be approved; procedure. [Amended 9-11-2013 by Ord. No. 13-081]

A. Existing Establishments. Owners or operators of existing restaurants or retail sales and retail services businesses may apply to the Director of Public Safety for an exemption from the provisions of this Article. By application on a form to be devised by the Director, the applicant must demonstrate:

(1) A history of remaining open past 11:00 p.m. on a regularly scheduled basis for a period of one year or more prior to the date of application; and

(2) That the owners or operators have never been found guilty under the provisions of N.J.S.A. 2C:33-12 or N.J.S.A. 2C:33-12.1 relative to the restaurant or retail sales or retail services businesses that is the subject of the application.

The Director shall review the application and shall have Department of Public Safety records reviewed relative to the address for which the application is submitted. The Director shall consider the amount of Department of Public Safety activity related to the particular restaurant or business, including but not limited to the number of arrests effected on the particular premises and the number of police responses dispatched to the premises over the course of one year prior to the date of the application.

B. Other Establishments. Owners or operators of restaurants and retail sales and retail services businesses that were not in existence at the time of this ordinance's enactment or for those restaurants and retail sales and retail services businesses that do not meet the requirements of 263-5A (1) and (2) above, may apply to the Director of Public Safety for an exemption from the provisions of this Article. By application on a form to be devised by the Director, the applicant must demonstrate to the Director's satisfaction that the operation of the establishment between the prohibited hours would not likely cause the activities and occurrences which were meant to be eliminated by this Chapter.

The Director shall review the application and shall have Department of Public Safety records reviewed relative to the particular address or area for which the application is submitted. The Director shall consider the amount of Department of Public Safety activity related to the particular business if such business existed prior to the application (at the requested location or any other location), including but not limited to the number of arrests effected on the particular premises and the number of police responses dispatched to the premises. The Director shall further consider the history of similar businesses in the area, the owner or operators history of operating other restaurants or businesses in and out of the area, and the specific prophylactic measures proposed by the owner/operator to eliminate all detrimental activities and occurrences.

C. If, in the discretion of the Director, the restaurant or retail sales or retail services business can conduct activity past the hour of 11:00 p.m. without adversely affecting the safety and welfare of the residential area surrounding the area subject to this regulation, the Director shall issue a written exemption on a form to be prescribed by the Director, which so states. The form shall be posted conspicuously in the restaurant business establishment by the owners or operators and shall be effective only when posted.

D. The exemption may be withdrawn by the Director at any time on twenty-four (24) hours notice to the owners or operators and an opportunity to be heard. Notice is effective upon leaving at or posting upon the premises a written notice so stating the withdrawal. An exemption shall be withdrawn upon a finding by the Director that the particular establishment no longer meets the criteria for exemption outlined above.

ARTICLE III
Use of Disposable Plastic Carryout Bags Prohibited

§ 263-6. Definitions.
[Added 6-27-2018 by Ord. No. 18-065]

CARRYOUT BAG shall mean a bag provided by a retail establishment to a customer at the point of sale for customers but shall not include:

(1) Bags, whether plastic or not, in which loose produce or products are placed by a consumer to deliver such items to the point of sale or check-out area of a retail establishment;

(2) Laundry or dry-cleaning bags;

(3) Newspaper bags:

(4) Bags used to contain or wrap frozen foods, meat, fish, or other items, whether prepackaged or not, to prevent or contain moisture;

(5) Bags provided by pharmacists to contain prescription drugs; or

(6) Bags sold in packages containing multiple bags intended for use as garbage, pet waste, or yard waste bags.

DISPOSABLE PLASTIC CARRYOUT BAG shall mean a bag, made of plastic, which is not a reusable bag.

FOOD SERVICE ESTABLISHMENT shall mean any establishment which serves made- to-order food or beverages for dine-in, take-out or delivery, but not including food trucks and mobile food carts.

RECYCLABLE shall mean material that can be sorted, cleansed, and reconstituted using Jersey City's available recycling collection programs for the purpose of using the altered form in the manufacture of a new product. "Recycling" does not include burning, incinerating, converting, or otherwise thermally destroying solid waste.

RECYCLABLE PAPER BAG shall mean a paper bag that is 100% recyclable and contains at least 40% post-consnmer recycled content and displays the words "Recyclable" and "made from 40% post-consumer recycled content" in a visible manner on the outside of the bag.

RETAIL ESTABLISHMENT shall mean any commercial enterprise, whether or not operated for profit, including, but not limited to, mercantile establishments, department stores, food service establishments, restaurants, pharmacies, convenience and grocery stores, liquor stores, supermarkets, clothing stores, seasonal and temporary businesses, jewelry stores, and stores which sell household goods, or any other commercial establishment not specifically identified herein, which utilizes disposable plastic carryout bags for the conveyance of merchandise, but excluding bazaars or special events operated by a nonprofit organization or religious institution.

REUSABLE BAG shall mean a bag with handles that is specifically designed and manufactured for multiple reuse and is either made from polyester, polypropylene, cotton or other durable material or plastic which is at least 2.25 mils in thickness and meets the following criteria:

(1) Has a minimum lifetime capability of 125 or more uses carrying 22 or more pounds over a distance of at least 175 feet: and

(2) Is capable of being washed so as to be cleaned and disinfected multiple times.

§ 263-7. Use of reusable and recyclable carryout bags mandatory.
[Added 6-27-2018 by Ord. No. 18-065]

All retail establishments shall provide customers only reusable bags and/or recyclable paper bags. No retail establishment shall provide any single-use, plastic carryout bags to a customer at the checkout stand, cash register, point of sale, or other point of departure for the purpose of transporting products or goods out of the business or store, except as otherwise provided in this Chapter.

Nothing in this section shall be read to preclude retail establishments from making reusable bags available for sale to customers or from customers using their own reusable bags.

§ 263-8. Violations and penalties.
[Added 6-27-2018 by Ord. No. 18-065]

The penalty for a violation of this Chapter shall be as provided in Chapter 1, General Provisions, § 1-25, except that retail establishments found to be in violation of this Chapter shall be subject to a minimum fine of $100.00 per infraction.

§ 263-9. Severability.
[Added 6-27-2018 by Ord. No. 18-065]

If any sentence, section, clause or other portion of this Article, or the application thereof to any person or circumstance, shall for any reason be adjudged by a court of competent jurisdiction to be invalid, such judgment shall not affect, impair or repeal the remainder of this Article.

§ 263-10. Exemptions.
[Added 6-27-2018 by Ord. No. 18-065]

Items required to be sold or delivered in plastic bags in compliance with state and federal food safety and disposal laws are exempt from the provisions of this Article.

§ 263-11. Enforcement.

The provisions of this article shall be enforced by the Department of Public Safety's Division of Quality of Life. **[Added 9-23-2020 by Ord. No. 20-074]**

ARTICLE IV
Distribution of Plastic Straws and Single-use Food and Beverage Accessories

§ 263-12. Definitions. [Added 9-11-2024 by Ord. No. 24-068]

As used in this section, the following terms have the following meanings:

EATING UTENSIL — A tool for eating and drinking, such as knives, forks, spoons or chopsticks.

EXTRA EATING CONTAINER — An empty eating container that is not used to hold a customer's food or beverage.

FOOD SERVICE ESTABLISHMENT — A premises where food is provided directly to a consumer whether such food is provided free of charge or sold, and whether consumption occurs on or off the premises or is provided from a pushcart, stand or vehicle. Food service establishment shall include, but not be limited to, full-service restaurants, fast food restaurants, cafes, delicatessens, coffee shops, bars, nightclubs, grocery stores, vending trucks or carts and cafeterias.

SELF-SERVE STATION — A designated area or mechanical dispenser in a food service establishment where consumers access eating or drinking utensils and accessories.

SINGLE-USE FOOD AND BEVERAGE ACCESSORIES — Any item used with food and beverages, such as cups, lids, beverage sleeves, containers, closures, trays, plates, forks, knives, spoons, chopsticks, stirrers, other utensils, wrapping materials, condiment packets, portion cups and all similar articles that are intended for one-time use. Straws are intentionally omitted from inclusion within this definition.

§ 263-13. Distribution of plastic straws/stirrers, single-use food and beverage accessories, sale and/or use prohibited; permitted use. [Added 9-11-2024 by Ord. No. 24-068]

Single-use food and beverage accessories and extra eating containers shall not be provided unless requested by the customer.

A food service establishment shall be permitted to establish a utensil and condiment self-service area for customers to self-select utensils and condiment packets, except that no self-service area may contain disposable plastic straws or disposable plastic stirrers.

If a food service establishment fulfills an order placed via a third-party food delivery service, it may rely on the information provided by said service regarding whether the customer has requested eating utensils, condiment packets, napkins, or extra eating containers in accordance with this section.

§ 263-14. Exemptions. [Added 9-11-2024 by Ord. No. 24-068]

The following are exempt from the prohibitions of Section 263-13:

- Prepackaged drinks.
- Use by individuals requiring plastic straws due to disabilities.
- Non-plastic alternatives to single-use accessories.

§ 263-15. Alternatives. [Added 9-11-2024 by Ord. No. 24-068]

Nothing in this section precludes a food service establishment from using, providing, distributing or selling non-plastic alternatives.

§ 263-16. Enforcement; violations and penalties. [Added 9-11-2024 by Ord. No. 24-068]

Any food service establishment found in violation of this chapter shall be issued an initial written warning and shall have 30 days to correct the violation. After an initial written warning notice has been issued, the violator shall be subject to the following penalties:

(1) A minimum fine of $25.00 for the first violation;

(2) A minimum fine of $50.00 for the second violation; or

(3) A minimum fine of $100.00 for the third and any subsequent violations.

Chapter 266

REWARDS

§ 266-1. Reward for information leading to apprehension of persons accused of crime.
§ 266-2. Payment of reward.
§ 266-3. Eligible persons.

[HISTORY: Adopted by the Council of the City of Jersey City 9-30-1992 as Ord. No. 92-131. Amendments noted where applicable.]

§ 266-1. Reward for information leading to apprehension of persons accused of crime.[1]

The City of Jersey City offers a reward not exceeding one thousand dollars ($1,000.) for information leading to the detection and apprehension of any person guilty of murder, kidnapping, burglary, robbery, arson or other heinous crime in Jersey City.

§ 266-2. Payment of reward.

Such reward is to be payable after conviction out of a fund established for this purpose.

§ 266-3. Eligible persons.

The reward may be paid to any person or persons whom the governing body may in its discretion consider entitled thereto, but no reward shall be paid to any public employee whose duty is to investigate or to enforce the law.

[1] Editor's Note: See also Ch. 242, Art. II, Graffiti.

Chapter 269

SALES

ARTICLE I
Liquidation Sales

§ 269-1. Definitions.
§ 269-2. License required.
§ 269-3. License application.
§ 269-4. Contents of application; fee.
§ 269-5. License issuance; renewal.
§ 269-6. Supervision of sales.
§ 269-7. Records to be kept.
§ 269-8. Contents of advertising.
§ 269-9. Display of license.
§ 269-10. Persons exempt.
§ 269-11. Application fee.

[HISTORY: Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Advertising materials — See Ch. 81.
Auctioneers — See Ch. 93.
Fees and charges — See Ch. 160.
Sale of ice — See Ch. 193.
Peddling and soliciting — See Ch. 245.
Retail and commercial premises — See Ch. 263.
Secondhand precious metals dealers — See Ch. 275.
Sale of spray paint — See Ch. 290.
Sale of tires — See Ch. 313.
Sale restrictions — See Ch. 316, Art. I.
Used car dealers — See Ch. 324.
Vending machines — See Ch. 329.

ARTICLE I
Liquidation Sales
[Adopted 5-4-1971 as Ch. 8, Art. X, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 269-1. Definitions.

As used in this article:

DIRECTOR — The Director of the Division of Commerce. **[Amended 8-13-1997 by Ord. No. 97-052]**

PUBLISH, PUBLISHING, ADVERTISEMENT and ADVERTISING — Any and all means of conveying to the public notice of sale or notice of intention to conduct a sale, whether by word of mouth, by newspaper advertisement, by magazine advertisement, by handbill, by written notice, by printed notice, by printed display, by billboard display, by poster, by radio announcement and any and all means, including oral, written or printed.

SALES — The sale or an offer to sell to the public goods, wares and merchandise of any and all kinds and descriptions on hand and in stock in connection with a declared purpose, as set forth by advertising on the part of the seller that such sale is anticipatory to the termination, closing, liquidation, revision, wind up, discontinuance, conclusion or abandonment of the business in connection with such sale. It shall also include any sale

advertised to be a fire sale, adjustment sale, creditor's sale, trustee's sale, liquidation sale, reorganization sale, alteration sale, executor's sale, administrator's sale, insolvent sale, insurance sale, insurance salvage sale, mortgage sale, assignee's sale, adjuster's sale, receiver's sale, loss-of-lease sale, wholesaler's closeout sale, creditor's committee sale, forced-out-of-business sale, removal sale and any and all sales advertised in such manner as to reasonably convey to the public that upon the disposal of the stock of goods on hand, the business will cease and be discontinued. It shall also include a water damage sale regardless of intent to discontinue business.

§ 269-2. License required.

No person shall publish or conduct any sale of the type herein defined without a license therefor.

§ 269-3. License application.

Any person intending to conduct a sale of goods, appliances, chattels or merchandise of any nature and character whatsoever in connection with the liquidation of the business of such person or to conduct a sale incident to going out of business shall apply to the Director for a license to conduct the sale. Application shall be made upon a form to be provided by the Director.

§ 269-4. Contents of application; fee.

A. Application for such a sale license shall be in writing, verified under oath, and shall include the following:

(1) The name of the operator of the sale.

(2) A description of the place where such sale is to be held.

(3) The nature of the occupancy, whether by lease or sublease, and the effective date of termination of such occupancy.

(4) The means to be employed in publishing such sale, together with the proposed content of any advertisement.

(5) An itemized list of the goods, wares and merchandise to be offered for sale, including the true name of the goods to be offered for sale.

(6) The place where such stock was purchased or acquired and, if not purchased, the manner of such acquisition.

(7) A statement by the applicant that all personal property taxes assessed on the stock by the city have been paid. Failure to have personal property taxes current shall result in the refusal of a license.

(8) Any additional information the Director may require.

B. A fee as provided in Chapter 160, Fees and Charges, shall accompany the application. **[Amended 6-14-1995 by Ord. No.**

(Cont'd on page 26903)

§ 269-5. License issuance; renewal.

A. Upon receipt of the application the Director shall check the accuracy of such inventory so submitted and all other matters pertaining to the application.

B. If within five (5) days after receipt of the application he or she shall certify to its accuracy, the Director shall issue a license for the conduct of such sale. The license shall be effective for a period of thirty (30) days, exclusive of Sundays and legal holidays in New Jersey, to be computed from the date of the issuance of the license. If the licensee shall desire a renewal of the license, he or she shall file an application for such renewal at least five (5) days prior to the expiration of the original license, which application shall contain a true and correct inventory in like manner as in the first instance. If the inventory is verified by the Director as to accuracy, a renewal license may be issued for a sum as provided in Chapter 160, Fees and Charges, for the extension. A second or subsequent renewal license may be had in like manner upon filing a similar application and shall be effective for a period of thirty (30) days, exclusive of Sundays and legal holidays in New Jersey, and shall be accompanied by the payment of the sum as provided in Chapter 160, Fees and Charges, for the renewal.[2]

§ 269-6. Supervision of sales.

The Director is authorized to supervise and regulate sales as defined herein. He or she may make such rules and regulations for the conduct and advertisement of such sales as in his or her opinion will serve to prevent deception and to protect the public. If he or she finds, at any time, any addition to or replenishment of stock-in-trade or inventory other than that originally contained in the applicant's premises, he or she may forthwith declare any license forfeited and of no effect.

§ 269-7. Records to be kept.

A. A duplicate original of the application and stock list shall be available at all times to the Director or to his inspectors, and the licensee shall permit such inspectors to examine all merchandise on the premises for comparison with such stock list.

B. At the close of business each day the stock list attached to the application shall be revised and items of such list disposed of during such day shall be noted thereon.

C. Suitable books and records as prescribed by the Director shall be kept by the licensee and shall be available at all times to the inspectors of the Division.

§ 269-8. Contents of advertising.

A. All advertising shall be descriptive of the nature of such sale as stated in the application. The language in such advertising shall be identical with the advertising content as indicated in the application.

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[2] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

B. It shall be unlawful to indicate in such advertising, either directly or indirectly, that such sale is held with the approval of the Director.

C. Such advertising shall contain a statement in the following words and no other: "Sale held pursuant to License No. _____ of the City of Jersey City granted the _____ day of _____" and in such blank spaces the license number and the requisite dates shall be indicated.

§ 269-9. Display of license.

Upon a commencement of any such sale, the license therefor shall be conspicuously displayed near the entrance to the premises.

§ 269-10. Persons exempt.

The following persons shall be exempt from the provisions of this Article:

A. Persons acting pursuant to an order of the process of a court of competent jurisdiction.

B. Sheriffs and marshals acting in accordance with their powers and duties as public officers.

C. Duly licensed auctioneers, selling at auction.

§ 269-11. Application fee.[3]

Upon filing an application for an original or renewal license to advertise and conduct such sale, the applicant shall pay to the Director a fee as provided in Chapter 160, Fees and Charges. If any such application shall be disapproved, such payment shall be forfeited to the Director to defray the cost of investigating the statements contained in such application.

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[3] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 275

SECONDHAND DEALERS

§ 275-1.	Definitions.	§ 275-9.	Rendering of public service.
§ 275-2.	Nonapplicability.	§ 275-10.	Record book; contents.
§ 275-3.	License required; expiration; fee.	§ 275-11.	Availability of record transaction and items for inspection.
§ 275-4.	License application; forms.	§ 275-12.	Furnishing record information to Department of Public Safety.
§ 275-5.	Temporary licenses; reports and records.	§ 275-13.	Unlawful purchases.
§ 275-6.	License fees; bond; term of license; exemption for nonprofit organizations.	§ 275-14.	Lost or stolen goods; report.
§ 275-7.	Display of license.	§ 275-15.	Complaint procedure; appeals.
§ 275-8.	Changes in address.	§ 275-16.	Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 5-4-1971 as Ch. 8, Art. XIII, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

GENERAL REFERENCES

Auctioneers — See Ch. 93.
Fees and charges — See Ch. 160.
Junkyards — See Ch. 202.

§ 275-1. Definitions. [Amended 4-23-2003 by Ord. No. 03-054]

As used in this chapter, the following terms shall have the meanings indicated:

SECONDHAND DEALER - CLASS A — Any person who deals in the purchase or sale of secondhand items, as follows:

Items of every kind, e.g. furniture, clothes, toys, but not those items specifically listed under Secondhand Dealer - Class **B. [Amended 2-10-1999 by Ord. No. 99-009]**

SECONDHAND DEALER - CLASS B — Any person who deals in the purchase or sale of secondhand items which include the following:

A. Manufactured items composed wholly or in part of gold, silver, platinum or other metals.

B. Old gold, silver or platinum or items containing such precious metals. **[Amended 11-12-1980 by Ord. No. S-516]**

C. Items comprised of gold, silver or platinum for the purpose of melting or refining.

D. Precious metals for the purpose of melting.

E. Purchase or sale of pawn tickets or other evidence of pledged articles or in the redemption or sale of pledged articles.

F. Paintings, coins, stamps, baseball cards, cameras, business machines or electronic equipment. **[Added 2-10-1999 by Ord. No. 99-009]**

§ 275-2. Nonapplicability. [Amended 11-12-1980 by Ord. No. S-516; 2-10-1999 by Ord. No. 99-009]

This chapter shall not apply to transactions involving the following secondhand items:

A. Pianos, books, magazines, rugs, tapestries, artists' burlaps, paintings, sculpture, drawings, etchings and engravings.

B. The first purchase or sale in the country of any imported secondhand articles.

C. The acceptance of merchandise in a new condition as an exchange or return for credit or refund, if such merchandise was originally purchased as new from the person accepting or receiving the same; nor to any resale of such merchandise as new merchandise or the first subsequent nonretail or exchange of such merchandise as used merchandise.

D. The acceptance or receipt of merchandise in a used condition as an exchange or return for credit or refund, if such merchandise was originally purchased as new merchandise from the person accepting or receiving the same; nor to the first subsequent nonretail sale or exchange of such merchandise.

E. The first sale, at retail, of merchandise which has been rebuilt by the manufacturer or vendor originally manufacturing it, or the licensed agents thereof, and sold as factory rebuilt merchandise.

F. A thrift shop, as defined under the United States Internal Revenue Code, enTitled to an exemption as an eleemosynary corporation or institution.

§ 275-3. License required; expiration; fee. [Amended 11-12-1980 by Ord. No. S-516; 4-23-2002 by Ord. No. 03-054]

A. It shall be unlawful for any person to act as a dealer in secondhand articles without either a Class A or B license therefor.

B. There shall be two types of licenses: a general license and a temporary license. **[Amended 2-11-1998 by Ord. No. 98-004; 2-10-1999 by Ord. No. 99-009]**

(1) A general license shall authorize the licensee to do business as a dealer in secondhand articles within the city during the license period for a period of one year, provided that said licensee has a permanent place of business in this city. A general license shall expire on December 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Commerce.

(2) A temporary license shall authorize the licensee who has no permanent place of business in the city to buy or sell secondhand items in the city during a period of 30 days commencing on the date of the issuance of the temporary license.

§ 275-4. License application; forms. [Amended 11-12-1980 by Ord. No. S-516; 2-10-1999 by Ord. No. 99-009]

A. Secondhand dealer licenses shall be issued by the Director of Commerce on forms printed in book form with corresponding stubs for each license. These forms shall be consecutively numbered, with suitable blank spaces for the name and business address of the licensee, the type of license issued, the location and the amount of the fee paid.

B. Applicants for a temporary license shall set forth the address where he or she is staying during the period of the temporary license and the licensee's permanent residential address where he or she can be contacted after the license period.

C. Applicants for a license under this chapter must file with the Director an application containing the following information:

(1) Name and description of the applicant. Individuals operating under a trade name must present a certified copy of the trade name certificate filed in the Hudson County Clerk's office. A partnership conducting business, whether or not under a trade name, must submit a certified copy of the partnership certificate filed in the Hudson County Clerk's office when the partnership was formed. A corporation must furnish a copy of the filing receipt for the certificate of incorporation from the New Jersey Secretary of State. A corporation from outside the State of New Jersey must furnish proof of its authority from the Secretary of State to do business in the state.

(2) Address of applicant (local and permanent).

(3) A statement that the applicant is of legal age to obtain such a license.

(4) A statement that the applicant is a citizen or legal resident of the United States and whether citizenship was obtained by birth or naturalization; if by naturalization, the date and place where obtained. The naturalization certificate or the permanent Board of Elections personal registration card may be used as proof of citizenship.

(5) A statement as to whether or not the applicant has ever been convicted of or is now under any charge of any crime, misdemeanor or violation of any municipal ordinance, the nature of the offense and the punishment or penalty assessed therefor and such other facts or evidence as is deemed necessary to establish that the applicant is a person fit and capable of properly conducting the business for which the license is sought.

(6) A description of the exact type of business the applicant intends to conduct.

(7) The name and address of the owner or owners of the land and the nature of the right of occupancy of the applicant to the use of such land.

(8) Two photographs of the applicant, taken not more than 60 days prior to the filing of the application, which photographs shall be two inches by two inches, showing the head and shoulders of the applicant in a clear and distinguishing manner. Two photographs and fingerprints are required of each individual applicant; two photographs and fingerprints are required of each partner; no photographs are required of corporate applicants, but all officers must be fingerprinted, as well as any stockholder of 10% or more of the stock.

(9) If the applicant is a corporation, the name, address and title of the officer of the corporation upon whom process or other legal notice may be served.

D. Each applicant must submit to a criminal history search, including fingerprinting, by the Department of Public Safety. The applicant must have two bona fide forms of identification and must be fingerprinted by the Bureau of Criminal Investigation, Jersey City, New Jersey. The Division of Commerce* shall secure from the applicant the required fees in the form of a money order or certified **check. [Amended 9-11-2013 by Ord. No. 13-081]**

E. The Division of Commerce shall keep a record of all licenses issued, as well as any other matters herein described.

F. No license shall be granted under this chapter to any dealer in secondhand articles:

(1) Who has been convicted of any crime or offense under the laws of the State of New Jersey or any state in the union or under the laws of the United States government which constitutes a crime of moral turpitude, dishonesty or which reflects adversely upon the applicant's ability to operate his business honestly:

(2) Who has been found by any court of the state to have practiced any fraud, deceit or misrepresentation in the conduct of the secondhand dealer business unless the Division of Commerce shall decide upon the facts presented that it is proper to issue the license:

(3) Whose license under this chapter has been revoked at any time during the year prior to the time of the application for the license; or

(4) Whose license has been suspended under this chapter and the period of such suspension has not expired at the time of this application for the license.

§ 275-5. Temporary licenses; reports and records. [Added 11-12-1980 by Ord. No. S-516; Amended 9-11-2013 by Ord. No. 13-081]

All temporary licensees shall file certified copies of the records of all their transactions conducted during the license period. In addition thereto, said licensees shall also file certified reports required by this chapter. Said records and reports shall be in duplicate and shall be filed with the Department of Public Safety and the license issuing authority. Said records of transactions and reports shall be filed forthwith upon the expiration of the term of the license. Forthwith shall mean no later than 4:00 of the day following the expiration of the license period.

***Editor's Note: There shall be a $10 fee for the processing of a local background check by the Bureau of Criminal Investigation, Department of Public Safety, and a $49 feet payable to the New Jersey State Police for a state and federal background check.**

§ 275-6. License fees; bond; term of license; exemption for nonprofit organizations. [Amended 11-12-1980 by Ord. No. 5-516; 6-14-1995 by Ord. No. 95-0505; 2-10-1999 by Ord. No. 99-009]

A. General licenses for secondhand dealers shall be for a term of one year and shall be issued as of January 1 of each year and shall expire on December 31 of each year. The license fee for such general license shall be as provided in Chapter 160, Fees and Charges.

B. Temporary licenses for secondhand dealers shall be for a period of 30 days. The fee for such license shall be as provided in Chapter 160, Fees and Charges.

C. Each secondhand dealer shall file an approved bond in favor of the city. Said bond shall be conditioned and guaranteed for the due observance and compliance with the provisions of this chapter by the licensee. In the event that the licensee shall fail to observe or comply with the provisions of this chapter, said bond shall be forfeited in favor of the city. The bond shall be in the general sum of $1,500; provided, however, the Director shall have the authority and responsibility of adjusting the amount of the bond to meet the necessity of changed conditions. The license issuing authority shall have the authority and responsibility of approving or disapproving the bond submitted with each application. For this purpose, the license issuing authority shall take into consideration all factors of relevant prevailing conditions for the due observance of the provisions of this chapter.

D. The fee requirements set forth under this section shall not apply to nonprofit organizations established under 26 U.S.C. § 501. Verification that the entity is a duly established nonprofit organization must be enclosed with the license application when submitted to the Director.

§ 275-7. Display of license. [Amended 11-12-1980 by Ord. No. S-516; 2-10-1999 by Ord. No. 99-009]

A. Licenses shall be displayed in a conspicuous place at the licensee's place of business for which it is issued.

B. Licenses are personal to the licensees. A licensee does not go with title to land, nor may it be sold, assigned transferred or disposed of.

§ 275-8. Changes in address.

A secondhand dealer shall report any change of residence or place of business within three days after such change.

§ 275-9. Rendering of public service.

When called upon, a secondhand dealer shall render any public service within the scope of the license unless he or she is actually unable to do so.

§ 275-10. Record book; contents. [Amended 11-12-1980 by Ord. No. S-516; 9-23-2014 by Ord. No. 14-104]

A. Every secondhand dealer shall complete a transaction receipt and shall electronically submit said receipt in a method as prescribed by the Director of Public Safety, in which every purchase and sale shall be legibly written in English at the time of the transaction, as follows:

(1) A description of each item involved.

(2) The number or numbers of identification which may appear on each item.

(3) A complete and accurate description of each, item or piece comprising old gold, silver, platinum or other metals and of any monograms, inscriptions, marks or other identification thereof,

(4) The name, residence and general description of the person from whom such purchase was made and to whom sold, as follows:

(a) DOB;

(b) Height;

(c) Weight;

(d) Hair color;

(e) Eye color;

(f) Facial hair;

(g) Employer; and

(h) Thumbprint of customer.

(5) The day and the hour of the purchase or sale.

(6) A photograph of the item.

B. In the case of a purchase or sale of a pawnbroker ticket or other evidence of a pledged article or a redemption or sale of a pledged article, there shall be recorded in a way as prescribed by the Director of Public Safety at the time of such purchase, sale or redemption:

(1) The name and address of the person who issued such ticket or other evidence.

(2) The pledge number of such pawn ticket or other evidence.

(3) The name and address of the pledgor as it appears upon such pawn ticket or other evidence.

(4) The amount loaned or advanced as it appears on such pawn ticket or other evidence.

(5) The day and hour of such purchase, sale or redemption, as the case may be.

(6) The name, residence and general description of the person from whom or to whom the redeemed article is purchased or sold, as the case may be.

(7) The sum paid or received for such pawn ticket or other evidence or the sum paid or received for the redeemed article or pledge.

(8) Such description of a pledged article as appears on such pawn ticket or other evidenced and an accurate description of every redeemed pledged article.

C. Every dealer in secondhand articles who receives secondhand articles on consignment shall keep a record, in the above-prescribed book, describing the articles and the name and description of the person or dealer such items are received from. **[Added 2-10-1999 by Ord. No. 99-009]**

D. As between dealers, all transactions shall be recorded in the above-prescribed book and legible records kept describing the articles, including a detailed description of all jewelry and costume jewelry. **[Added 2-10-1999 by Ord. No. 99-009]**

E. Duly licensed dealers in secondhand articles shall keep a record of purchases in a bound book, noting the article number on each purchase. All identifiable secondhand articles shall be entered individually in the ledger book and reported individually to the Director of Public Safety for the City of Jersey City at the close of each business day. The daily reporting requirement set forth in this section shall not apply to nonprofit organizations established under 26 U.S.C. § 501. **[Added 2-10-1999 by Ord. No. 99-009; Amended 9-11-2013 by Ord. No. 13-081]**

F. [Added 2-10-1999 by Ord. No. 99-009] Every secondhand dealer shall verify the identity of every person from whom he or she purchases an article and keep a written record of the nature of the evidence submitted such person to prove his or her identity. Each seller must provide two forms of identification, one of which must be a photograph along with one of the following:

(1) Any official document, except a social security account number card, issued by the United States government, any state, county, municipality or subdivision thereof, any public agency or department thereof or any public or private employer which requires and bears the signature of the person to whom it was issued; or

(2) Other identification documentation which, under the circumstances of any particular purchase, would lead a reasonable person to believe to be accurate and reliable when identification under Subsection F(1) is not available.

§ 275-11. Availability of record transaction and items for inspection. [Amended 11-12-1980 by Ord. No. S-516; 2-10-1999 by Ord. No. 99-009; 9-11-2013 by Ord. No. 13-081; 9-23-2014 by Ord. No. 14-104]

The transaction records and items of each secondhand dealer shall, at all reasonable times, be open to the inspection of the personnel of the Department of Public Safety and the Division of Commerce.

§ 275-12. Furnishing record information to Department of Public Safety. [Amended 9-11-2013 by Ord. No. 13-081]

When the Department of Public Safety serves a written notice upon a secondhand dealer to furnish any of the information required to be kept in the dealer's record book, official blank forms for that purpose

shall be furnished by the Department to the dealer. Thereafter, the dealer shall furnish the requested information on these forms to the Director of Public Safety for appropriate consideration and handling.

§ 275-13. Unlawful purchases. [Amended 2-10-1999 by Ord. No. 99-009]

A. It shall be unlawful for any dealer in secondhand articles to engage in selling activities at any place of business designated in such license.

B. It shall be unlawful for any dealer in secondhand articles to purchase any secondhand goods or things from any person whom a dealer knows to be or has reason to believe is a minor.

C. It shall be unlawful for any dealer in secondhand articles to purchase any secondhand goods or articles from any person between the hours of 10:00 in the evening and 7:00 in the morning.

D. It shall be unlawful for any dealer in secondhand articles to sell or dispose of any secondhand articles, except articles purchased from another licensed secondhand dealer, until the expiration of 30 business days after the acquisition by such dealer of such articles. Duly licensed dealers in antiques may sell or dispose of secondhand articles for a period of time less than the expiration of the said thirty-day period, provided that the required records of purchases and sales are kept in accordance with § 275-10.

E. It shall be unlawful for any person licensed as a secondhand dealer to deal in the purchase or sale of any junk, old rope, old iron, brass, copper, tin, lead, rubber, paper, rags, bagging, slush or empty bottles or employ or use a boat, cart or other vehicles for the purpose of collecting any such things or materials unless he or she also holds a junkyard license under Chapter 202.

F. It shall be unlawful for any person licensed as a secondhand dealer to deal in the purchase or sale of secondhand motor vehicles or parts therefrom, the processing of used metals for resale and the dumping, storage, burning and disposal of waste, secondhand or used materials of whatever composition unless he or she also holds a junked license under Chapter 202.

§ 275-14. Lost or stolen goods; report. [Amended 11-12-1980 by Ord. No. S-516; 2-10-1999 by Ord. No. 99-009*; 9-11-2013 by Ord. No. 13-081]

A. Any secondhand dealer who has received any goods, items or things which are the same or which answer the description of being the same as ones advertised in a newspaper printed or circulated in the city as lost or stolen, or suspected of being lost or stolen, shall prepare a report of relevant available information, in writing, including the name and address of the person from whom the item was purchased. This information shall be given to the Department of Public Safety.

B. A secondhand dealer who has in his or her possession or who receives any items which have been lost or stolen or which are alleged to be or are supposed to have been lost or stolen shall remand the lost or stolen property to the Department of Public Safety property room for safekeeping until a disposition is reached as to the identity of the true owner.

***Editor's Note: This ordinance also repealed former §§ 275-14, Waiting period for resale of certain items, as amended 12-11-1980 by Ord. No. S-516, 275-15, Acting as junk dealer unlawful, and 275-17, Exhibition of lost or stolen goods, and renumbered former §§ 275-16, 275-18 and 275-19 as §§ 275-14,275-15 and 275-16, respectively.**

§ 275-15. Complaint procedure; appeals. [Amended 8-13-1997 by Ord. No. 97-052; 2-10-1999 by Ord. No. 99-009]

A. Complaints received by the city against licensed secondhand dealers shall be handled as follows:

(1) Complaints shall be referred to the Director of Commerce.

(2) The Director shall have the power and authority to hear and determine the complaints and to suspend or revoke any secondhand dealer's license. For this purpose the Director may:

(a) Investigate any matter pertaining to the granting, issuing, transferring, revoking, suspending or canceling of a license.

(b) Take any testimony which may be necessary.

(c) Require the appearance of witnesses.

(d) Require the production before the Director of necessary books and papers.

B. The secondhand dealer involved may appeal any final decision of the Director of the Division of Commerce to the Director of the Department of Housing, Economic Development and Commerce within 10 days after service of the decision of the Director of Commerce.

§ 275-16. Violations and penalties. [Amended 11-12-1980 by Ord. No. S-516; 6-14-1995 by Ord. No. 95-050; 2-10-1999 by Ord. No. 99-009]

A. Any person violating any of the provisions of this chapter shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25, provided that a minimum fine may be imposed for no less than $100.

B. Conviction for any offense against the provisions of this chapter shall constitute and effect an immediate forfeiture of the license.

C. In addition to the above-provided penalties and punishment, the Director may maintain an action or proceeding in the name of the City of Jersey City in a court of competent jurisdiction to compel compliance with the provisions of this chapter or to restrain by injunction an offense against this chapter.

Chapter 276

LITHIUM-ION BATTERIES

ARTICLE I

Definitions and Prohibition on Second-Use Lithium-Ion Batteries

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§ 276-2. Sale of second use lithium-ion batteries prohibited.

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Lithium-Ion Battery Business Registry

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§ 276-4. Registration of lithium-ion battery businesses.

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ARTICLE IV

Violation and Penalties

§ 276-9. Violations and penalties.

ARTICLE I

Definitions and Prohibition on Second-Use Lithium-Ion Batteries

§ 276-1. Definitions. [Added 4-24-2024 by Ord. No. 24-023]

LITHIUM-ION BATTERY — a storage battery in which an electrical current is generated by lithium ions embedded in a carbon graphite or nickel metal-oxide substrate placed in a high-viscosity carbonate mixture or gelled polymer electrolyte.

POWERED MOBILITY DEVICES — motorized bicycles, motorized scooters and other personal mobility devices powered by a lithium-ion or other storage battery. The term does not include motor vehicles or motorcycles or other mobility devices that must be registered with the New Jersey Motor Vehicle Commission.

SECOND-USE LITHIUM-ION BATTERY — a lithium-ion battery that has been assembled or reconditioned using cells removed from used batteries.

STORAGE BATTERY — a secondary battery in which an ion (H+ from H2O in the nickel-metal hydride system, Li+ in the lithium-ion system) shuttles back and forth between anode and cathode during charge and discharge cycling, without requirement from other reactants.

§ 276-2. Sale of second use lithium-ion batteries prohibited. [Added 4-24-2024 by Ord. No. 24-023]

A. No person shall distribute, sell or offer for sale:

1. A second-use lithium-ion battery;

2. A lithium-ion battery for a powered mobility device unless it has been listed and labeled by the Underwriters' Laboratory or other organizations as may be approved by the Jersey City Division of Fire, and such labeling is disclosed on the battery or on packaging for such battery.

B. No person shall assemble or recondition a lithium-ion battery using cells removed from used storage batteries.

C. Each noncompliant battery shall constitute a separate violation.

ARTICLE II
Lithium-Ion Battery Business Registry

§ 276-3. Lithium-ion battery registry purpose. [Added 4-24-2024 by Ord. No. 24-023]

The purpose of this Section is to require accountability from the sellers of lithium batteries and owners of powered mobility businesses within the City of Jersey City under the direction of the Jersey City Police or Division of Fire by establishing a system of registration and imposition of fees for the prohibited sale of second-use lithium batteries in order to protect public health, safety and general welfare of the citizens. The Division of Fire shall create a registration program and database cataloging each owner of a business which sells or rents lithium-ion batteries for powered mobility devices, sellers of powered mobility devices, and any business which provides charging services for powered mobility devices, or stores lithium batteries in quantities deemed hazardous by the Division of Fire.

§ 276-4. Registration of lithium-ion battery businesses. [Added 4-24-2024 by Ord. No. 24-023]

A. Within thirty (30) days after the effective date of the ordinance, any business which sells, stores or rents lithium-ion batteries and powered mobility devices, including scooters and bicycles, or a business which provides charging services for powered mobility devices, shall file a registration statement for such business with the Division of Fire. The registration shall remain valid for one year. The owner shall be required to renew the registration annually.

B. The owner of the business that sells, stores or rents lithium-ion batteries or powered mobility devices, or provides charging services for powered mobility devices shall notify the Division of Fire within thirty (30) days of any change in the registration information by filing an amended registration statement on a form for such purpose.

C. The registration statement shall be deemed prima facie proof of the statements therein contained in any administrative enforcement proceeding or court proceeding instituted by the City of Jersey City against the owner or owners of the property and business.

D. Registration pursuant to this section shall contain the following information:

1. The name of the business owner, property owner and, if applicable authorized agent or representative;

2. The direct mailing address of the business owner, property owner and, if applicable authorized agent or representative;

3. A direct telephone number for the business owner, property owner and authorized agent or representative;

4. E-mail address for the business owner, property owner and authorized agent or representative;

5. The name and 24-hour contact telephone number of a representative of the local property management company responsible for the security and maintenance of the property; and

6. A certificate of insurance in compliance with N.J.S.A. 40A:10A-1.

E. Each registration shall be submitted either upon forms prescribed and furnished by the Division of Fire or through a web-based or online registration portal in accordance with the Division's specifications and be accompanied by the fee for initial inspection specified in Chapter 160.

F. Upon receipt of a complete registration application, the Division of Fire shall issue the seller a certificate of registration which shall be valid for one year. The seller shall prominently display the certificate of registration in their place of business and may be required to provide any proof of registration to any department official seeking to confirm compliance with this article.

G. Any seller holding a certificate of registration shall be subject to inspections by the Division of Fire.

ARTICLE III

Regulations for Charging Devices that use or contain Lithium-Ion Batteries

§ 276-5. Regulation of charging areas for lithium-ion batteries. [Added 4-24-2024 by Ord. No. 24-023]

A. Powered mobility devices shall be charged in a suitable indoor room or area or outdoor location that:

1. Has sufficient natural or mechanical ventilation in accordance with applicable codes to prevent the accumulation of any flammable or other gases that may be discharged during normal charging operations;

2. Has an adequate electrical supply and a sufficient number of electrical receptacles, approved by the Construction Official, to allow the charging equipment for each device to be directly connected to a receptacle. Extension cords and power strips shall not be used. A minimum of three feet (914 mm) shall be maintained between each device during charging operations;

3. Is not used for the storage of combustible materials, combustible waste or hazardous materials;

4. In premises used by sellers of batteries or powered mobility device businesses;

   a. Is separated by a fire barrier with a minimum one-hour fire-resistance rating from other areas;

   b. Is protected by a fire sprinkler system and one or more smoke detectors or smoke alarms which shall be operational. If the building or occupancy is equipped with a fire alarm system, the smoke detector shall be connected to such system; and

c. Includes a Cell Block HazMat drum or the equivalent for transporting spent, used or damaged batteries. Any such drum containing a battery shall be stored outdoors at least fifteen (15) feet from any combustibles.

5. If the ambient temperature of the room during battery charging operations exceeds the limitations set forth in the manufacturer's instructions or the equipment listing, the room or area shall be temperature controlled to prevent over-heating or other unsafe battery condition; and

6. Is provided with a portable 20-pound ABC fire extinguisher complying with the requirements of the Division of Fire.

B. Battery packs and other removable batteries shall not be stacked or charged in an enclosed cabinet (unless the cabinet is specially designed and approved by the Division for such purpose). Except as otherwise approved by the Division, a minimum distance of two feet (610 mm) shall be maintained between each battery pack or other removable storage battery during charging.

C. Sellers of lithium batteries and powered mobility device business owners shall maintain records of lithium-ion batteries and powered mobility devices in their possession showing the date, place and manner of disposal.

D. The owner of a damaged or overheated lithium-ion battery or powered mobility device shall notify the Division of Fire and shall follow the instructions of the Division pending its response. The owner shall be responsible for the cost of the safe disposal of any battery or powered mobility device and shall reimburse the City for the cost of disposing of any battery or device requiring disposal by the Division of Fire.

E. It shall be unlawful to charge or store a battery for a powered mobility device or to store a powered mobility device within the common areas or basement of any multi-family residential property, containing three or more dwelling units.

§ 276-6. Storage of batteries for use or sale in commercial and multi-dwelling structures. [Added 4-24-2024 by Ord. No. 24-023]

A. Indoor storage rooms or areas used for the storage of batteries for use or sale, but not for charging, shall comply with the requirements of Subsections 276-5(3), (4), and (6).

§ 276-7. Disposal of lithium batteries. [Added 4-24-2024 by Ord. No. 24-023]

A. Lithium-ion batteries shall not be disposed of:

1. By depositing as solid waste in ordinary non-designated trash or recycling receptacles;

2. Redistributing or selling in used devices or as new or used lithium-ion batteries.

B. Sellers of lithium batteries shall have a vendor or person on record qualified to handle clean-up or battery disposal or removal.

§ 276-8. Effective date. [Added 4-24-2024 by Ord. No. 24-023]

Sections 276-5.A.4.a and b shall take effect one year after the effective date of its adoption and approval by the Mayor.

ARTICLE IV
Violation and Penalties

§ 276-9. Violations and penalties. [Added 4-24-2024 by Ord. No. 24-023]

A. A violation of this chapter shall be punishable by a fine or imprisonment as set forth in Chapter 1, General provisions, § 1-25.

B. Each violation of this chapter shall constitute a separate violation independent of any other section or any order issued pursuant to this chapter. Each day's failure to comply with this article or subsection shall constitute a separate violation.

Chapter 278

SECURITY GATES

§ 278-1. Permit required.
§ 278-2. Metal construction; finish.
§ 278-3. Open grill requirements.
§ 278-4. *Violations and penalties.*

[HISTORY: Adopted by the Council of the City of Jersey City 4-10-1991 as Ord. No. McC-292. Amendments noted where applicable.]

§ 278-1. Permit required.

A. No security gates shall be installed without prior approval as to design by the Construction Official.

B. A permit shall be issued by the Construction Official prior to installation of any security gate.

C. The term "security gate" means any sliding or rolling horizontal or vertical gate on the front of any structure to prevent unauthorized entrance.

§ 278-2. Metal construction; finish.

Security gates shall be constructed of metal and so finished as not to rust or stain either buildings or sidewalks.

§ 278-3. Open grill requirements.

Security gates shall be of an open grill design, except that solid panels shall be allowed from the bottom of the security gate up to a maximum of forty-eight (48) inches from the sidewalk.

§ 278-4. Violations and penalties.[1]

Any person who violates any provision of this chapter shall, upon conviction thereof, be punishable as provided in Chapter 1, General Provisions, § 1-25. A separate offense shall be deemed committed on each day during or on which a violation occurs or continues.

[1] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 281

SEWERS*

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§ 281-21. Effective date.

ARTICLE I

Pretreatment and Sewer Protection Program

[Adopted 3-10-1988 as Ord. No. C-695]

§ 281-1. Program established; policy.

There is hereby established in the City of Jersey City a wastewater pretreatment and sewer protection program. The program will enable the city to comply with federal effluent limitations and any other discharge criteria required or authorized by state or federal law and to derive the maximum public benefit by regulating the quality and quantity of wastewater discharged into sewers and wastewater treatment. The policy of this program will be to provide citizens with the best possible protection of their environment and their health, safety and welfare.

***Editor's note**—Adopted by the Council of the City of Jersey City: Art. I, March 10, 1988 as Ord. No. C-695; Art. II, September 23, 1985 Ord. No. C-26. Amendments noted where applicable.

Cross references—Uniform construction codes, Ch. 131; health and sanitation, Ch. 182; housing accommodations, Ch. 188; property maintenance, Ch. 254; subdivision of land, Ch. 299; water, Ch. 337.

§ 281-2. Standards adopted; administration.

A. The City of Jersey City hereby adopts the National Pretreatment Standards, 40 CFR et seq.

B. The Division of Engineering shall be responsible for the administration of the program.

C. The Hazmat Coordinator shall issue, through the Municipal Engineer, a quarterly report to the Mayor and Council on the implementation of the Jersey City pretreatment and sewer protection program.

D. The Hazmat Coordinator shall, within six (6) months of the effective date of this Article, develop regulations establishing standards and procedures for the implementation of the Jersey City pretreatment and sewer protection program.*

* **Editor's Note**—Such regulations are on file in the office of the Hazmat Coordinator.

ARTICLE II

Sewage Discharge Regulations

[Adopted 9-23-1985 as Ord. No. C-26]

§ 281-3. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

FLOATABLE OIL - Oil, fat or grease in a physical state such that it will separate by gravity from wastewater by treatment in an approved pretreatment facility. Wastewater shall be considered free of "floatable oil" if it is properly pretreated and the wastewater does not interfere with the collection system.

NATURAL OUTLET - An outlet, including storm sewers and combined sewer overflows, into a watercourse, pond, ditch, lake or other body of surface- or groundwater, including the Passaic River or any of its tributaries.

SANITARY SEWER - A sewer that carries liquid and water-carried wastes from residences, commercial buildings, industrial plants and institutions, together with minor quantities of ground-, storm- and surface waters that are not admitted intentionally.

SANITARY WASTE - Waste derived principally from dwellings, office buildings and sanitary conveniences. When segregated from industrial wastes, sanitary waste may come from industrial plants or commercial enterprises.

SEWAGE - The spent water of a community. The preferred term is "wastewater."

SEWER - A pipe or conduit that carries wastewater or drainage water.

STORM DRAIN (sometimes called "storm sewer") - A drain or sewer for conveying water, groundwater, subsurface water or unpolluted water from any source.

STRENGTH OF WASTE - A measurement of suspended solids and/or biochemical oxygen demand and/or chemical oxygen demand, and/or any other parameter determined by the Passaic Valley Sewerage Commission as a fair indicator of the relative use, other than volumetric, of Passaic Valley Sewerage Commission facilities by industrial wastes.

§ 281-4. Unlawful acts.

A. It shall be unlawful to discharge into any natural outlet within the municipality any wastewater or other polluted waters, except where suitable treatment has been provided and where a National Pollution Discharge Elimination System permit has been obtained from the appropriate governmental authority, where required.

B. No person shall make connection of roof downspouts, foundation drains, areaway drains or other sources of surface runoff or groundwater to a building sewer or drain, which in turn is connected directly or indirectly to a public sanitary sewer, unless approved by the municipality for purpose of disposal of polluted surface drainage.

C. All users of the wastewater facilities shall comply with the requirements of the written rules and regulations of the Passaic Valley Sewerage Commission which have been adopted and which, from time to time, shall have been adopted, which regulations shall become effective upon filing of certified copies in the office of the Municipal Clerk after the effective date of this Article.

§ 281-5. Violations and penalties.

A. The governing body shall appoint or designate some suitable person or agency to administer this Article on or before its effective date.

B. Any person violating any of the provisions of this Article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25. Each and every day in which a violation of any provision of this Article exists shall constitute a separate violation.*

* **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

C. Violations of any of the provisions of this Article or any permit issued under the authority of this Articles may result in the termination of the permit and/or the termination of the authority to discharge into the system.

D. This Article shall take effect at such time as the municipality begins pumping its sewerage to the Passaic Valley Sewerage Commission wastewater treatment facility.

§ 281-6. Conflicts with other laws.

No ordinance heretofore adopted by the municipality shall be affected by this Article, except that if any provision of the prior ordinance is in conflict with the provisions of this Article, the provisions of this Article shall control.

ARTICLE III
Additional Sewage Discharge Regulations
[Added 8-8-2007 by Ord. No. 07-132]

§ 281-7. Additional sewage discharge regulations.

A. Improper Disposal of Waste.

(1) Purpose. An ordinance to prohibit the spilling, dumping, or disposal of materials other than stormwater to the municipal separate storm sewer system (MS4) operated by the Jersey City Municipal Utilities Authority, so as to protect the public health, safety and welfare, and to prescribe penalties for the failure to comply.

(2) Definitions. For the purpose of this ordinance, the following terms, phrases, words, and their derivations shall have the meanings stated herein unless their use in the text of this Chapter clearly demonstrates a different meaning. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

(a) Municipal separate storm sewer system (MS4) — a conveyance or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, manmade channels or storm drains) that is owned or operated by the City of Jersey City or the Jersey City Municipal Utilities Authority and is designed and used for collecting and conveying stormwater. MS4s do not include combined sewer systems, which are sewer systems that are designed to carry sanitary sewage at all times and to collect and transport stormwater from streets and other sources.

(b) Person — any individual, corporation, company, partnership, firm, association, or political subdivision of this State subject to municipal jurisdiction.

(c) Stormwater — water resulting from precipitation (including rain and snow) that runs off the land's surface, is transmitted to the subsurface, is captured by separate storm sewers or other sewerage or drainage facilities, or is conveyed by snow removal equipment.

(3) Prohibited Conduct. The spilling, dumping or disposal of materials other than stormwater to the municipal separate storm sewer system operated by the Jersey City Municipal Utilities Authority is prohibited. The spilling, dumping or disposal of materials other than stormwater in such a manner as to cause the discharge of pollutants to the municipal separate storm sewer system is also prohibited.

(4) Exceptions to Prohibition.

(a) Water line flushing and discharges from potable water sources;

(b) Uncontaminated ground water (e.g. infiltration, crawl space or basement sump pumps, foundation or footing drains, rising ground waters);

(c) Air conditioning condensate (excluding contact and non-contact cooling water);

(d) Irrigation water (including landscape and lawn watering runoff);

(e) Flows from springs, riparian habitats and wetlands, water reservoir discharges and diverted stream flows;

(f) Residential car washing water and residential swimming pool discharges;

(g) Sidewalk, driveway and street wash water; flows from fire fighting activities;

(h) Flows from rinsing of the following equipment with clean water:

(1) Beach maintenance equipment immediately following their use for their intended purpose; and

(2) Equipment used in the application of salt and de-icing materials immediately following salt and de-icing material applications. Prior to rinsing with clean water, all residual salt and de-icing materials must be removed from equipment and vehicles to the maximum extent practicable using dry cleaning methods. Recovered materials are to be returned to storage for reuse or properly discarded. Rinsing of equipment, as noted in the above situation is limited to exterior, undercarriage and exposed parts and does not apply to engines or other enclosed machinery.

(5) Enforcement. This ordinance shall be enforced by employees of the JCMUA and the employees of the City of Jersey City, including its police officers.

(6) Penalties. Any person(s) who continues to be in violation of the provisions of this Ordinance, after being duly notified, shall be subject to a fine not to exceed One Thousand Two Hundred and Fifty Dollars ($1,250.00) per day.

(7) Severability. Each section, subsection, sentence, clause and phrase of this Ordinance is declared to be an independent section, subsection, sentence, clause and phrase, and the finding or holding of any such portion of this Ordinance to be unconstitutional, void or ineffective for any cause, or reason, shall not affect any other portion of this Ordinance.

B. Wildlife Feeding.

(1) Purpose. An ordinance to prohibit the feeding of unconfined wildlife in any public park or on any other property owned or operated by the City of Jersey City, so as to protect public health, safety and welfare, and to prescribe penalties for failure to comply.

(2) Definitions. For the purpose of this ordinance, the following terms, phrases, words, and their derivations shall have the meanings stated herein unless their use in the text of this Chapter clearly demonstrates a different meaning. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

(a) Feed— to give, place, expose, deposit, distribute or scatter any edible material with the intention of feeding, attracting or enticing wildlife. Feeding does not include baiting in the legal taking of fish and/or game.

(b) Person — any individual, corporation, company, partnership, firm, association or political subdivision of this State subject to municipal jurisdiction.

(c) Wildlife — all animals that are neither human nor domesticated.

(3) Prohibited Conduct. No person shall feed in any public park or on any other property owned or operated by the City of Jersey City, any wildlife, excluding confined wildlife (for example, wildlife confined in zoos, parks or rehabilitation centers or unconfined wildlife at environmental education centers).

(4) Enforcement.

(a) This Ordinance shall be enforced by employees of the JCMUA and the employees of the City of Jersey City, including its police officers.

(b) Any person found to be in violation of this Ordinance shall be ordered to cease the feeding immediately.

(5) Penalties. Any person(s) who is found to be in violation of the provisions of this Ordinance shall be subject to a fine not to exceed One Thousand Two Hundred and Fifty Dollars ($1,250.00) per day.

(6) Severability. Each section, subsection, sentence, clause and phrase of this Ordinance is declared to be an independent section, subsection, sentence, clause and phrase, and the finding or holding of any such portion of this Ordinance to be unconstitutional, void or ineffective for any cause, or reason, shall not affect any other portion of this Ordinance.

C. Illicit Connection.

(1) Purpose. An ordinance to prohibit illicit connections to the municipal separate storm sewer system(s) operated by the Jersey City Municipal Utilities Authority, so as to protect the public health, safety and welfare, and to prescribe penalties for failure to comply.

(2) Definitions. For the purpose of this ordinance, the following terms, phrases, words, and their derivations shall have the meanings stated herein unless their use in the text of this Chapter clearly demon-

(3) Yard Waste Collection. Sweeping, raking, blowing or otherwise placing yard waste that is not containerized at the curb or along the street is only allowed during the seven days prior to a scheduled and announced collection, and shall not be placed closer than ten (10) feet from any storm drain inlet. Placement of such yard waste at the curb or along the street at any other time or in any other manner is a violation of this Ordinance. If such placement of yard waste occurs, the party responsible for placement of the yard waste must remove the yard waste from the street or said party shall be deemed in violation of this Ordinance.

(4) Enforcement. This ordinance shall be enforced by employees of the JCMUA and the employees of the City of Jersey City, including its police officers.

(5) Violations and Penalties. Any person(s) who is found to be in violation of the provisions of this Ordinance shall be subject to a fine not to exceed One Thousand Two Hundred and Fifty Dollars ($1,250.00) per day.

(6) Severability. Each section, subsection, sentence, clause and phrase of this Ordinance is declared to be an independent section, subsection, sentence, clause and phrase, and the finding or holding of any such portion of this Ordinance to be unconstitutional, void or ineffective for any cause, or reason, shall not affect any other portion of this Ordinance.

ARTICLE IV.

Private Storm Drain Inlets

[Added 8-25-2010 by Ord. No. 10-108]

§ 281-8. Purpose.

This ordinance shall require the retrofitting of existing storm drain inlets which are in direct contact with repaying, repairing, reconstruction, or resurfacing or alterations of facilities on private property, to prevent flies discharge of solids and floatables (such as plastic bottles, cans, food wrappers and other litter) to the municipal separate storm sewer system(s) operated by the Municipal Utilities Authority of the City of Jersey City so as to protect public health, safety and welfare, and to prescribe penalties for the failure to comply.

§ 281-9. Definitions.

For the purpose of this ordinance, the following terms, phrases, words, and their derivations shall have the meanings stated herein unless their use in the text of this Chapter clearly demonstrates a different meaning. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

a. Municipal separate storm sewer system (MS4)—a conveyance or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, manmade channels, or storm drains) that is owned or operated by Municipal Utilities Authority of the City of Jersey City or other public body, and is designed and used for collecting and conveying

stormwater. MS4s do not include combined sewer systems, which are sewer systems that are designed to carry sanitary sewage at all times and to collect and transport stormwater from streets and other sources.

b. Person—any individual, corporation, company, partnership, firm, association, or political sub-division of this State subject to municipal jurisdiction.

c. Storm drain inlet—an opening in a storm drain used to collect stormwater runoff and includes, but is not limited to, a grate inlet, curb-opening inlet, slotted inlet, and combination inlet

d. Waters of the State—means the ocean and its estuaries, all springs, streams and bodies of surface or ground water, whether natural or artificial, within the boundaries of the State of New Jersey or subject to its jurisdiction.

§ 281-10. Prohibited conduct.

No person in control of private property (except a residential lot with one single family house) shall authorize the repaying, repairing (excluding the repair of individual potholes), resurfacing (including top coating or chip sealing with asphalt emulsion or a thin base of hot bitumen), reconstructing or altering any surface that is in direct contact with an existing storm drain inlet on that property unless the storm drain inlet either:

1. Already meets the design standard below to control passage of solid and floatable materials; or

2. Is retrofitted or replaced to meet the standard in Section 281-11 below prior to the completion of the project

§ 281-11. Design standard.

Storm drain inlets identified in Section 281-10 above shall comply with the following standard to control passage of solid and floatable materials through storm drain inlets. For purposes of this paragraph, "solid and floatable materials" means sediment debris, trash, and other floating, suspended, or settleable solids. For exemptions to this standard see Subsection 3. below.

1. Design engineers shall use either of the following grates whenever they use a grate in pavement or another ground surface to collect stormwater from that surface into a storm drain or surface water body under that grate:

   a. The New Jersey Department of Transportation (NJ DOT) bicycle safe grate, which is described in Chapter 2.4 of the NJDOT Bicycle Compatible Roadways and Bikeways Planning and Design Guidelines (April 1996); or

   b. A different grate, if each individual clear space in that grate has an area of no more than seven square inches, or is no greater than one-half inch across the smallest dimension.

   Examples of grates subject to this standard include grates in grate inlets, the grate portion (non-curb-opening portion) of combination inlets, grates on storm sewer manholes, ditch

grates, trench grates, and grates of spacer bars in slotted drains. Examples of ground surfaces include surfaces of roads (including bridges), driveways, parking areas, bikeways, plazas, sidewalks, lawns, fields, open channels, and stormwater basin floors.

2. Whenever design engineers use a curb-opening inlet the clear space in that curb opening (or each individual clear space, if the curb opening has two or more clear spaces) shall have an area of no more than seven square inches, or be no greater than two inches across the smallest dimension.

3. This standard does not apply:

   a. Where the municipal engineer agrees that this standard would cause inadequate hydraulic performance that could not practicably be overcome by using additional or larger storm drain inlets that meet these standards;

   b. Where flows are conveyed through any device (e.g., end of pipe netting facility, manufactured treatment device, or a catch basin hood) that is designed, at a minimum, to prevent delivery of all solid and floatable materials that could not pass through one of the following:

      i. A rectangular space four and five-eighths inches long and one and one-half inches wide (this option does not apply for outfall netting facilities); or

      ii. A bar screen having a bar spacing of one-half inch.

   c. Where flows are conveyed through a trash rack that has parallel bars with one-inch spacing between the bars; or

   d. Where the New Jersey Department of Environmental Protection determines, pursuant to the New Jersey Register of Historic Places Rules at N.J.A.C. 7:4-7.2(c), that action to meet this standard is an undertaking that constitutes an encroachment or will damage or destroy the New Jersey Register listed historic property.

§ 281-12. Enforcement.

This Article shall be enforced by the Jersey City Municipal Utilities Authority and employees of the City of Jersey City, including its police officers.

§ 281-13. Penalties.

Any person(s) who is found to be in violation of the provisions of this ordinance shall be subject to a fine not to exceed one thousand two hundred fifty dollars ($1,250.00) for each storm drain inlet that is not retrofitted to meet the design standard.

ARTICLE V.
Privately-Owned Salt Storage

§ 281-14. Purpose. [Added 9-11-2024 by Ord. No. 24-074]

The purpose of this article is to prevent stored salt and other solid de-icing materials from being exposed to stormwater.

This article establishes requirements for the storage of salt and other solid de-icing materials on properties not owned or operated by the municipality (privately-owned), including residences, in the City of Jersey City to protect the environment, public health, safety and welfare, and to prescribe penalties for failure to comply.

§ 281-15. Definitions.

For the purpose of this article, the following terms, phrases, words and their derivations shall have the meanings stated herein unless their use in the text of this Chapter clearly demonstrates a different meaning. When consistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

A. DE-ICING MATERIALS — any granular or solid material such as melting salt or any other granular solid that assists in the melting of snow.

B. IMPERVIOUS SURFACE — a surface that has been covered with a layer of material so that it is highly resistant to infiltration by water.

C. STORM DRAIN INLET — the point of entry into the storm sewer system.

D. PERMANENT STRUCTURE — a permanent building or permanent structure that is anchored to a permanent foundation with an impermeable floor, and that is completely roofed and walled (new structures require a door or other means of sealing the access way from wind driven rainfall).

   A fabric frame structure is a permanent structure if it meets the following specifications:

   1. Concrete blocks, jersey barriers or other similar material shall be placed around the interior of the structure to protect the side walls during loading and unloading of de-icing materials;

   2. The design shall prevent stormwater run-on and run through, and the fabric cannot leak;

   3. The structure shall be erected on an impermeable slab;

   4. The structure cannot be open sided; and

   5. The structure shall have a roll up door or other means of sealing the access way from wind driven rainfall.

E. PERSON — any individual, corporation, company, partnership, firm, association, or political subdivision of this State subject to municipal jurisdiction.

F. RESIDENT — a person who resides on a residential property where de-icing material is stored.

§ 281-16. De-icing material storage requirements. [Added 9-11-2024 by Ord. No. 24-074]

A. Temporary outdoor storage of de-icing materials in accordance with the requirements below is allowed between October 15 and April 15:

1. Loose materials shall be placed on a flat, impervious surface in a manner that prevents stormwater run-through;

2. Loose materials shall be placed at least 50 feet from surface water bodies, storm drain inlets, ditches and/or other stormwater conveyance channels;

3. Loose materials shall be maintained in a cone-shaped storage pile. If loading or unloading activities alter the cone-shape during daily activities, tracked materials shall be swept back into the storage pile, and the storage pile shall be reshaped into a cone after use;

4. Loose materials shall be covered as follows:

   a. The cover shall be waterproof, impermeable, and flexible;

   b. The cover shall extend to the base of the pile(s);

   c. The cover shall be free from holes or tears;

   d. The cover shall be secured and weighed down around the perimeter to prevent removal by wind; and

   e. Weight shall be placed on the cover(s) in such a way that minimizes the potential of exposure as materials shift and runoff flows down to the base of the pile.

      (1) Sandbags lashed together with rope or cable and placed uniformly over the flexible cover, or poly-cord nets provide a suitable method. Items that can potentially hold water (e.g., old tires) shall not be used;

5. Containers must be sealed when not in use; and

6. The site shall be free of all de-icing materials between April 16 and October 14.

B. De-icing materials should be stored in a permanent structure if a suitable storage structure is available. For storage of loose de-icing materials in a permanent structure, such storage may be permanent, and thus not restricted to October 15—April 15.

C. Reserved.

D. The property owner, or owner of the de-icing materials if different, shall designate a person(s) responsible for operations at the site where these materials are stored outdoors, and who shall document that weekly inspections are conducted to ensure that the conditions of this article are met. Inspection records shall be kept on site and made available to the municipality upon request.

1. Residents who operate businesses from their homes that utilize de-icing materials are required to perform weekly inspections.

§ 281-17. Exemptions. [Added 9-11-2024 by Ord. No. 24-074]

Residents may store de-icing materials outside in a solid-walled, closed container that prevents precipitation from entering and exiting the container, and which prevents the de-icing materials from leaking or spilling out. Under these circumstances, weekly inspections are not necessary, but repair or replacement of damaged or inadequate containers shall occur within two weeks.

If containerized (in bags or buckets) de-icing materials are stored within a permanent structure, they are not subject to the storage and inspection requirements in Section III above. Piles of de-icing materials are not exempt, even if stored in a permanent structure.

This article does not apply to facilities where the stormwater discharges from de-icing material storage activities are regulated under another NJPDES permit.

§ 281-18. Enforcement. [Added 9-11-2024 by Ord. No. 24-074]

This article shall be enforced by the Jersey City Municipal Utilities Authority and employees of the City of Jersey City, including its police officers, during the course of ordinary enforcement duties.

§ 281-19. Violations and penalties. [Added 9-11-2024 by Ord. No. 24-074]

Any person(s) who is found to be in violation of the provisions of this article shall have 72 hours to complete corrective action. Repeat violations and/or failure to complete corrective action shall result in fines to be determined by the Municipal Court of the City of Jersey City not to exceed $2,000.00 per violation.

§ 281-20. Severability. [Added 9-11-2024 by Ord. No. 24-074]

Each section, subsection, sentence, clause, and phrase of this article is declared to be an independent section, subsection, sentence, clause, and phrase, and finding or holding of any such portion of this article to be unconstitutional, void, or ineffective for any cause or reason shall not affect any other portion of this article.

§ 281-21. Effective Date. [Added 9-11-2024 by Ord. No. 24-074]

This article shall be in full force and effect on September 25, 2024.

Chapter 282

SEX OFFENDER RESIDENCY RESTRICTION

§ 282-1. Sex offender residency prohibition.
§ 282-2. Relocation requirement.
§ 282-3. Prior residency established.
§ 282-4. Brown Zones.
§ 282-5. Penalty for violation.

[HISTORY: Adopted by the Council of the City of Jersey City 11-21-2006 by Ord. No. 06-145.]

§ 282-1. Sex offender residency prohibition.

No person over the age of eighteen (18) who has been convicted of a violation of any crime against a minor as identified in N.J.S.A. 2C:7-2, and who as a result of said conviction is required to register with the proper authorities pursuant to N.J.S.A. 2C:7-1, et seq., *Registration and Notification of Release of Certain Offenders*, commonly identified as "Megan's Law," shall be permitted to reside or live within two thousand five hundred (2,500) feet of:

A. Any public or private school where the dominant school population is eighteen (18) years of age or younger;

B. Any daycare center;

C. Any day camp;

D. Any City, County or State Park, including the so-called "pocket parks" within individual neighborhoods;

E. Any public or commercial recreation facility clearly designed to attract children as a "playground;"

F. Any commercial recreation facilities frequented by young people, including theaters, bowling alleys, sports fields, exercise or sporting facilities; or

G. Any convenience store.

H. Any public library.

§ 282-2. Relocation requirement.

Any person meeting the definition set forth herein above who resides or lives within two thousand five hundred (2,500) feet of any of the facilities listed within the City shall have sixty (60) days from receipt of written notice of the prohibition set forth in Section 1 of this Ordinance to move to a location that is not within two thousand

five hundred (2,500) feet of one of those facilities within the municipality. Failure to so relocate as stated herein shall constitute a violation of this section.

§ 282-3. Prior residency established.

This prohibition shall not be deemed applicable to a person who had established a residence prior to the effective date of this statute throughout the period of time the person remains a resident at that precise location.

§ 282-4. Brown Zones.

In addition to the foregoing, an area encompassing one hundred fifty (150) feet in all directions from any facilities identified in Section 1 of this Ordinance shall be established and defined as a "Brown Zone." No person identified in Section 1 of this Ordinance shall be permitted to stop, sit, stand or loiter within a Brown Zone for any period of time exceeding the amount of time reasonably necessary to engage in a legitimate activity within the Brown Zone, and only for the period of time actually engaging in that legitimate activity.

§ 282-5. Penalty for violation.

A. Each and every individual in violation of this Ordinance shall be subject to a fine not exceeding one thousand two hundred fifty dollars ($1,250.00), which fine shall be at least five hundred dollars ($500.00), or shall be required to perform community service not to exceed ninety (90) days for each offense, or shall be imprisoned for a term not exceeding ninety (90) days. In the event of a second offense, even concurrent, occurring within one year of the prior offense, for which the individual was sentenced to pay a fine, the court shall sentence the individual to an additional fine as a repeat offender. The additional fine imposed by the court upon a repeat offender shall not be less than five hundred dollars ($500.00) nor more than one thousand two hundred fifty dollars ($1,250.00), but shall be calculated separately from the fine imposed for the violation of this Ordinance.

B. Each and every individual in violation of this Ordinance shall be subject to a fine not exceeding five hundred dollars ($500.00), which fine shall be at least two hundred dollars ($200.00) or shall be required to perform community service not to exceed thirty (30) days for each offense, or shall be imprisoned for a term not exceeding thirty (30) days. In the event of a second offense, even concurrent, occurring within one year of the prior offense, for which the individual was sentenced to pay a fine, the court shall sentence the individual to an additional fine as a repeat offender. The additional fine imposed by the court upon a repeat offender shall not be less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00), but shall be calculated separately from the fine imposed for the violation of this Ordinance.

Chapter 284

SHOPPING CARTS

§ 284-1. Abandonment unlawful.

§ 284-2. Identification tags required.

§ 284-3. Seizure; redemption or sale of abandoned carts; fees.

§ 284-4. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 11-20-1990 as Ord. No. McC-233. Amendments noted where applicable.)

§ 284-1. Abandonment unlawful.

No person shall leave or abandon any shopping cart upon the sidewalks, streets or roadways of the City of Jersey City.

§ 284-2. Identification tags required.

No merchant, corporate or otherwise, shall provide shopping carts for the use of his customers without first affixing thereto a permanent tag of identification setting forth the name and address of the merchant.

§ 284-3. Seizure; redemption or sale of abandoned carts; fees. [Amended 6-14-1995 by Ord. No. 95-050; 2-26-1997 by Ord. No. 97-007; 9-11-2013 by Ord. No. 13-081]

All such carts abandoned or otherwise left on public streets, public property or on private property without the express consent of the owner or tenant thereof or the City of Jersey City shall be seized and impounded by the Department of Public Safety or the Department of Public Works, to be sold in accordance with the provisions of N.J.S.A. 40A:14-157 at public auction as unclaimed property after a period of six months, unless the owner thereof shall claim them from the Department of Public Safety or the Deprtment of Public Works within said period and pay the sums as provided in Chapter 160, Fees and Charges, to cover municipal retrieval and storage costs. Such fees shall be paid to the Treasurer of the City of Jersey City for the purposes of the City of Jersey City.

§ 284-4. Violations and penalties.

Any person violating or failing to comply with any of the provisions of this chapter shall, upon conviction thereof, be punishable by a fine of up to fifty dollars ($50).

Chapter 285

SIMULATED DRUG PARAPHERNALIA

§ 285-1. Findings.
§ 285-2. Definitions.
§ 285-3. Distributing material simulating drug paraphernalia to minors.
§ 285-4. Presumption and defense.

[HISTORY: Adopted by the Council of the City of Jersey City 9-27-1995 as Ord. No. 95-088. Amendments noted where applicable.]

GENERAL REFERENCES

Drug-free school zones — See Ch. 151.

§ 285-1. Findings.

The Municipal Council finds that in light of the limited experience, education and emotional development of children under the age of seventeen (17), they are impressionable and susceptible to the influence of criminal conduct, particularly related to the sale and use of illegal drugs in our society. The display, distribution and sale of materials simulating drug paraphernalia is a contributing factor to juvenile crime and drug use, a basic factor in impairing the ethical and moral development of our youth and a clear and present danger to the people of the city. The city has a responsibility and an exigent interest to protect the welfare of its children and to see that they are safeguarded from influences which might prevent their growth into free and independent well-developed citizens by preventing the distribution to children of material deemed harmful to children. Therefore, the revisions hereinafter prescribed are enacted and their necessity in the public interest is hereby declared as a matter of legislative determination.

§ 285-2. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

MATERIAL or MATERIALS SIMULATING DRUG PARAPHERNALIA — Any object which appears on cursory inspection to be an object commonly used by persons engaged in the possession, sale or use of illegal drugs, but which object is in fact not used for illegal purposes. Such materials include but are not restricted to objects which have the appearance of hypodermic needles or syringes.

MINOR — Any person less than seventeen (17) years of old.

§ 285-3. Distributing material simulating drug paraphernalia to minors.

A person is guilty of distributing material simulating drug paraphernalia to minors when, with knowledge of its character and content, he or she sells or conveys to a minor for monetary consideration any material simulating drug paraphernalia and which is harmful to minors.

§ 285-4. Presumption and defense.

A. A person who engages in the conduct proscribed by § 285-3 of this chapter is presumed to do so with knowledge of the character and content of the material sold or distributed.

B. In any prosecution for distributing material simulating drug paraphernalia to minors, it is an affirmative defense that:

(1) The defendant had reasonable cause to believe that the minor involved was seventeen (17) years old or more; and

(2) The minor exhibited to the defendant a draft card, driver's license, birth certificate or other official or apparently official document purporting to establish that such minor was seventeen (17) years old or more.

Chapter 287

SOLID WASTE*

ARTICLE I

Storage, Collection and Disposal

§ 287-1. Purpose.

§ 287-2. Definitions.

§ 287-3. Storage of refuse.

§ 287-4. Accumulations of solid waste, refuse and noxious plants on vacant lots; notice to owners; lien for removal by city.

§ 287-5. Collection, hauling and disposal of refuse.

§ 287-6. Private disposal of refuse.

§ 287-7. Precollection procedures.

§ 287-8. Refuse receptacles, approved containers and plastic bags.

§ 287-9. Accumulations of refuse and swill.

§ 287-10. Duties of owners and tenants.

§ 287-11. Disposal of hazardous refuse.

§ 287-12. Demolition containers and dumpsters.

§ 287-13. Dumping prohibited.

§ 287-14. Reward; payment upon collection of fine.

§ 287-15. Removal of material dumped illegally.

§ 287-16. Persons permitting illegal dumping.

§ 287-17. Burning of refuse, rubbish and other materials prohibited.

§ 287-18. Licensed solid waste disposal facilities.

§ 287-19. Depositing litter in public places.

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***History**—Adopted by the Council of the City of Jersey City: Art. I, May 16, 1978 by Ord. No. S-93 as Ch. 22, Art. I, of the 1971 Jersey City Code, as readopted September 19, 1978 by Ord. No. S-128; Art. II, July 18, 1990 as Ord. No. McC-154; Art. III, October 16, 1979 as Ord. No. S-302; Art. IV, January 14, 1988 as Ord. No. C-652. Amendments noted where applicable.

Cross references—Littering, Ch. 81; demolition of buildings, Ch. 105; fees and charges, Ch. 160; food-handling establishments, Ch. 175; health and sanitation, Ch. 182; junkyards, Ch. 202; property maintenance, Ch. 254; rewards, Ch. 266; sale of tires, Ch. 313.

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ARTICLE I

Storage, Collection and Disposal [Adopted 5-16-1978 by Ord. No. S-93 as Ch. 22, Art. I, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 287-1. Purpose.

The purpose of this Article is to improve the environment of Jersey City by establishing a sanitary and satisfactory method for the storage, collection and disposal of solid waste.

§ 287-2. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

ASHES—The residue from the burning of wood, coal or other combustible material.

CITY—The City of Jersey City, New Jersey.

DEMOLITION CONTAINER—A steel, watertight, roll-off container having a capacity of fifteen (15) to forty (40) cubic yards.

DIRECTOR—The Director of the Department of Public Works.

DIVISION—Jersey City Department of Public Works. **[Amended 6-14-1995 by Ord. No. 95-050; 11-9-2016 by Ord. No. 16-172]**

DUMPSTER—A steel, watertight refuse container equipped with a tight-fitting lid, having a capacity of 3/4 to eight cubic yards.

FOOD PEDDLER—Any mobile purveyor of prepared food and drink as licensed by the Division of Health under the provisions of the Jersey City Code governing itinerant eating and drinking establishments.

Editor's note—See Ch. 157, Entertainment and Dance Licenses.

GARBAGE—Putrescible animal and vegetable wastes resulting from the handling, preparation, cooking and consumption of food.

HAZARDOUS WASTE—Includes but is not limited to **[Amended 10-27-1988 by Ord. No. C-839; 9-25-2024 by 24-079]:**

A. Waste which has been shown in scientific studies to have toxic, carcinogenic, mutagenic or teratogenic effects on humans or other life forms.

B. Waste classified as hazardous under one or more of the following hazard codes: volatile waste, corrosive waste, reactive waste, extoxic waste, acute hazardous waste and toxic waste.

LITTER—Any item of a solid or liquid nature which, when it is deposited, placed or falls upon the ground **[Added 10-17-1978 by Ord. No. S-139]:**

A. Would, of itself, cause an unsightly, dirty, unsanitary or dangerous condition.

B. Would add to or cause an accumulation of an unsightly, dirty, unsanitary or dangerous nature.

C. Could, if other items are added to it, form an accumulation of an unsightly, dirty, unsanitary or dangerous nature.

MATTRESS—(a) A fabric case filled with resilient material (such as cotton, hair, feathers, foam rubber, or an arrangement of coiled springs) used either alone as a bed or on a bedstead; or (b) an inflatable airtight sack for use as a mattress. **[Added 5-24-2017 by Ord. No. 17-057]**

MEDICAL WASTE—As defined in the Comprehensive Regulated Medical Waste Management Act (N.J.S.A. 13:1E-48.1 et seq.). **[Added 10-27-1988 by Ord. No. C-839; 6-14-1995 by Ord. No. 95-050]**

PERSON—Any person, firm, partnership, association, company or organization of any kind.

RECEPTACLE—Any container with a securely fitting lid compliant with the specifications of this chapter in which the primary purpose is for the storage of refuse, rubbish, and swill. For the purposes of this chapter, receptacle does not include garbage bags. **[Amended 9-25-2024 by 24-079]**

REFUSE—Putrescible and nonputrescible solid wastes (except body wastes), including garbage, rubbish, street cleanings, dead animals, abandoned automobiles and solid market and industrial wastes.

RUBBISH—Nonputrescible solid wastes (excluding ashes), consisting of both combustible and noncombustible wastes such as paper, cardboard, tin cans, yard clippings, wood, glass, bedding, crockery and other materials.

SWILL—A semiliquid waste consisting of food scrap and liquids.

§ 287-3. Storage of refuse.

A. No person may place refuse on any street, sidewalk, park or other public place except in city litter receptacles or in plastic bags or refuse containers for collection in accordance with the provisions of this article.

B. No person may place, deposit or accumulate refuse upon or within any private property except in plastic bags or refuse containers in accordance with that provision of this article.

C. No person may deposit refuse in a stream, brook or any other body of water.

D. It shall be the duty of owners of real property to prevent the accumulation of refuse upon the sidewalks adjacent to their property.

E. No person may place household refuse, construction or demolition refuse or street dirt into city litter receptacles.

F. It shall be the duty of owners of vacant real property to maintain such property free of refuse, brush, weeds, tree stumps and other noxious plants.

G. No owner of real property may permit the growth of brush, weeds or other noxious plants to a height of six inches or more upon or within his or her property or upon the sidewalk adjacent to his or her property.

H. No owner of real property may permit the storage in areas zoned residential of any bulky household items such as appliances, furniture or mattresses, except in a fully enclosed structure. **[Added 10-27-1988 by Ord. No. C-839]**

I. No owner of real property may permit the storage of tires in areas zoned residential, except in a fully enclosed structure. **[Added 10-27-1988 by Ord. No. C-839]**

§ 287-4. Accumulations of solid waste, refuse and noxious plants on vacant lots; notice to owners; lien for removal by city. [Amended 1-26-1984 by Ord. No. MC-548; 6-25-1997 by Ord. No. 97-041; 9-13-2017 by Ord. No. 17-117; 10-10-2019 by Ord. No. 19-135; amended 9-25-2024 by 24-079]

A. In addition to any other penalty authorized by this article, an enforcement agency as designated in § 287-31 of this Article may notify the owner of any real property to remove from the property brush, weeds, dead and dying trees, stumps, roots, noxious growths, filth, garbage, litter and debris. If the owner fails to comply within ten days after notice from the Director, the Director may authorize the removal by or under the direction of a municipal officer, who shall present the costs of removal together with a copy of the notice to the property owner to the Municipal Council, which shall examine the certification and notice, and if found correct, shall cause the costs to become a lien against the property. As authorized by N.J.S.A. 40:48-2.14, such lien shall become part of the taxes next assessed against the property and bear interest at the same rate. This lien may be enforced by the same officers and in the same manner as taxes.

B. In addition to any other penalty authorized by this article, an enforcement agency as designated in § 287-31 of this Article may provide written notice to the owner of any real property to remove from the property solid waste stored in such a way that it is accessible to and likely to be strewn about by animals such as, but not limited to dogs, cats, raccoons, birds, or rodents. The notice shall specify the time for removal of the solid waste, which shall be not less than 72 hours or more than ten days after the owner has received notice. If the owner fails to comply with the notice within the specified time, the enforcement agency may authorize the removal and shall present the costs of removal together with a copy of the notice to the property owner to the Municipal Council. The Council shall examine the certification and notice, and if found correct, shall cause the costs to become a lien against the property. As authorized by N.J.S.A. 40:48-2.14, such lien shall become part of the taxes assessed against the property and bear interest at the same rate. This lien may be enforced in the same manner as taxes.

C. All property owners of vacant lots are required to erect a fence to prevent the accumulation of refuse. If a fence is not erected by the property owner, an enforcement agency as designated in § 287-31 of this article may authorize the erection of a fence around the property to abate accumulation of refuse. **[Amended 9-9-1998 by Ord. No. 98-118]**

§ 287-5. Collection, hauling and disposal of refuse.

Except as otherwise provided in this article, the city shall collect, haul and dispose of all refuse accumulating within the city.

§ 287-6. Private disposal of refuse.

The following shall provide for the collection, haulage and disposal of their own refuse in accordance with the provisions of this article and all other applicable laws and regulations:

A. Industrial and institutional buildings.

B. Buildings owned, operated or occupied by the county, state or United States Government.

C. Restaurants and other places of business selling food for consumption on the premises.

D. Private hospitals.

E. Persons engaged in construction, repair or demolition work.

F. Stores and commercial buildings generating in excess of six thirty-gallon containers, or its equivalent, of refuse per collection period.

G. Buildings located within off-street shopping centers, regardless of the amount of refuse generated.

H. Generators of hazardous waste. Each and every generator of hazardous waste is jointly and severally liable for ensuring that such hazardous waste is handled and disposed of in accordance with all applicable local and state statutes and regulations. **[Added 10-27-1988 by Ord. No. C-839; 6-14-1995 by Ord. No. 95-050]**

I. Generators of regulated medical waste regulated by the Comprehensive Regulated Medical Waste Management Act, L. 1989, c. 34 (N.J.S.A. 13:1E-48.1 et seq.) and the regulations promulgated under its authority.* **[Added 11-8-1989 by Ord. No. McC-27]**

§ 287-7. Precollection procedures.

A. Ashes shall be soaked in water and placed in receptacles separate from those used for garbage and rubbish.

B. Wet rubbish and garbage shall be drained of all liquids and wrapped in paper before being placed in receptacles for collection.

C. Tree trimmings, hedge clippings, lumber and similar material shall be cut to lengths not to exceed four feet each and securely tied in bundles not more than two feet thick.

D. Objects which because of their size or shape do not fit into refuse containers or whose weight exceeds 60 pounds shall be placed out for collection only at such places and at times designated by appointment made with the Jersey City Department of Public Works. Doors shall be removed from stoves, ovens, refrigerators and other items which have locking doors. **[Amended 11-9-2016 by Ord. No. 16-172]**

E. Newspapers, boxes, cartons and crates shall be collapsed and securely tied in bundles not to exceed two feet in length, height and width and kept separate from other refuse.

F. Fluorescent and mercury lamps shall be securely and completely wrapped in cardboard or heavy wrapping paper. The words "fluorescent lamp" shall be written on the outer wrapping in large, clear letters.

G. Hazardous waste. All generators of hazardous waste must ensure that all storage handling and disposal criteria are met and in accordance with all applicable local and state statutes and regulations. **[Added 10-27-1988 by Ord. No. C-839]**

H. Medical waste. All generators of medical waste must ensure that all storage handling and disposal

*__Editor's note__—The regulations are presently codified as N.J.A.C. 7:26-3A et seq.

criteria are met and in accordance with all applicable local and state statutes and regulations. **[Added 10-27-1988 by Ord. No. C-839]**

I. Mattresses, box springs and bedding shall be properly wrapped in plastic bags sufficient to cover all exposed areas. **[Added 5-24-2017 by Ord. No. 17-057]**

J. Personal property that a pest management professional has determined cannot be treated shall be placed in a properly sealed plastic bag marked "CAUTION UNTREATABLE." **[Added 5-24-2017 by Ord. No. 17-057]**

§ 287-8. Refuse receptacles, approved containers and plastic bags. [Amended 2-24-1981 by Ord. No. S-583; 10-27-1988 by Ord. No. C-839; 11-8-1989 by Ord. No. McC-27]

A. There shall be provided for each premises disposable plastic bags or refuse containers sufficient in size and number to hold the refuse accumulating between collections.

B. If plastic bags are used they shall be waterproof and capable of holding their contents without leakage, spillage or tearing. Plastic bags containing refuse shall be kept securely sealed or tied so as to prevent leakage or spillage. No plastic bag may be used for the disposal of refuse which contains the words "Asbestos" or "Bio-Hazardous" or any similar markings or logo. The city or its designated contractor may refuse to collect any refuse contained in bags so labeled or marked.

C. Refuse containers shall not be smaller than 10 gallons nor larger than 32 gallons and shall be constructed of material capable of holding refuse without leakage or spillage. Refuse containers shall be provided with handles so as to be suitable for collection by one person.

D. Refuse containers which do not conform to this article or which have ragged or sharp edges or any defect likely to injure or hamper the person collecting their contents shall be immediately replaced upon notice to the owner, tenant or occupant of the premises by any member of the Jersey City Department of Public Works. The Jersey City Department of Public Works may refuse collection of any container or plastic bag which weighs more than 60 pounds or which has not been replaced upon notice. **[Amended 11-9-2016 by Ord. No. 16-172]**

E. Refuse containers containing refuse shall be kept tightly closed between collections.

F. No person may use a refuse receptacle, dumpster or demolition container for refuse storage or collection without the consent of the owner thereof.

G. Refuse containers shall not be filled higher than four inches from the top edge.

H. With the exception of Subsection I below, they shall be placed adjacent to the curb in front of the premises or other area designated for collection no earlier than 5:00 p.m. on the evening of collection and shall be promptly returned to the storage area upon collection. Refuse receptacles shall not be stored in front of buildings or houses between collections. No one shall place refuse on the sidewalk or in front of any premises for private collection between the hours of 12:00 midnight and 5:00 a.m. Between the hours of 5:00 a.m. and 8:00 p.m. no one shall place refuse on the sidewalk or in front of

any premises for private collection more than one hour before the scheduled time of collection. **[Amended 11-14-2019 by Ord. No. 19-151; amended 9-25-2024 by 24-079]**

I. Itinerant food peddlers shall provide refuse receptacles in readily accessible locations for the use of customers. Receptacles shall be emptied as often as necessary to prevent spillage of refuse and shall be removed upon changing locations.

J. Owners, agents of owners, managing agents and superintendents may apply to the Department of Public Works, on forms provided by the Department of Public Works, for a permit to place refuse receptacles adjacent to the curb in front of the premises for collection earlier than 5:00 p.m. on the day before collection. The permit will allow for refuse receptacles or bags to be placed on the curb as early as 4:00 p.m. on the day before collection. **[Added 11-14-2019 by Ord. No. 19-151; amended 9-25-2024 by 24-079]**

§ 287-9. Accumulations of refuse and swill.

A. No person may permit the accumulation of more than 96 hours of refuse and, including but not limited to apartment buildings, commercial premises, industrial buildings and government buildings using dumpsters, may accumulate a maximum of 96 hours of refuse. **[Amended 10-27-1988 by Ord. No. C-839]**

B. No restaurant or place of business selling food for consumption on the premises may accumulate more than 24 hours of swill.

§ 287-10. Duties of owners and tenants.

A. Owners, agents of owners, managing agents and superintendents shall each have the duties imposed by this article. No person shall be relieved from any duty herein by reason of the fact that an occupant or other person shall have the same or similar duties or shall have failed to report a violation; nor shall any person be relieved of liability by the terms of any lease or agreement.

B. Owners, agents, tenants and occupants shall place refuse only in receptacles provided for disposal. Refuse shall not be thrown out of windows or down dumbwaiters; nor shall refuse be placed on stairways or fire escapes or in common hallways.

C. An occupant shall be liable for violations of this article to the extent that he or she has the power to prevent a violation or assist in abating a violation. Occupants shall be deemed to have the power to abate a violation if the violation is caused by their own act or the act of a member of their family or household or their guests.

§ 287-11. Disposal of hazardous refuse.

A. Hazardous refuse shall not be placed in receptacles for regular collection but shall be disposed of in accordance with laws and regulations of the United States of America and of the State of New Jersey at the expense of the owner or possessor thereof. Whenever federal or state law does not apply, the Jersey City Department of Public Works shall specify the manner of storage and disposal, except as

otherwise directed by this article. **[Amended 12-10-1981 by Ord. No. MC-77; 11-9-2016 by Ord. No. 16-172]**

B. Dead animals and clothing, bedding and other refuse from homes or other places where infectious or contagious disease have prevailed shall be removed under the supervision and direction of the City Health Officer. Such refuse shall not be placed in containers for regular collection.

C. Ammunition, military ordinance, firearms and dangerous weaponry shall not be placed out for collection with any garbage or rubbish. Such items shall be referred to the Director of Public Safety for direction as to disposal. **[Amended 9-11-2013 by Ord. No. 13-081]**

D. Lithium-ion batteries shall not be placed out for collection with any garbage or rubbish. Such items shall be disposed of in accordance with § 276-7. **[Added 9-25-2024 by 24-079]**

§ 287-12. Demolition containers and dumpsters.

A. No person shall place or use a demolition container or dumpster on the sidewalks or streets of the city without first obtaining a permit therefor from the Division of Traffic and Street Maintenance.
Cross reference—See also Ch. 296, Streets and Sidewalks, § 296-15.

B. Areas beneath and surrounding a demolition container or dumpster shall be kept clean at all times and shall be cleaned immediately after the removal of such container or dumpster.

C. Demolition containers and dumpsters shall not be filled higher than four inches from the top edge. Demolition containers and dumpsters shall bear an identification number assigned by the state and the name, address and telephone number of the person responsible for the container and shall be marked at each end with at least one reflector and with at least one iridescent stripe measuring four feet by four inches. **[Amended 10-11-1985 by Ord. No. C-33]**
Cross reference—See also Ch. 108, Buildings, Demolition of.

D. All demolition containers and dumpsters containing refuse shall be kept covered when transported so that none of the material therein shall fall or be blown onto the streets.

Editor's note—Former Sec. 22-13, entitled "Penalties," which immediately followed this section, as amended 6-28-1984 by Ord. No. MC-648, was deleted 9-13-1984 by Ord. No. MC-690.

§ 287-13. Dumping prohibited. [Amended 9-13-1984 by Ord. No. MC-690; 10-27-1988 by Ord. No. C-839]

No person shall discard or dump any refuse, rubbish, household or commercial solid waste in any place or on any land in the city not specifically designated for the purpose of solid waste disposal.

§ 287-14. Reward; payment upon collection of fine. [Added 10-13-1981 by Ord. No. MC-21]

Whenever any individual shall furnish evidence to the city of unlawful dumping activity and such evidence, in the opinion of the Director of Public Works, results in the conviction and fine of the offender, 25% of the fine, when collected, shall be paid to said individual furnishing such evidence; provided, however, that no such reward shall be paid to any person who is charged with the duty to or has the power to enforce any of the provisions of this article.

§ 287-15. Removal of material dumped illegally.

A. Any person who shall violate § 287-13 shall forthwith remove all of the material which said person has illegally dumped. Any such person found guilty of failing to remove said material illegally dumped shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.* **[Amended 9-25-2024 by 24-079]**

B. Each day said person shall fail to remove all of said illegally dumped material shall constitute a separate and distinct violation of this section and shall be punishable as such.

§ 287-16. Persons permitting illegal dumping.

A. No person who owns any property in the city or who is in possession of said property or who is in control of said property shall allow or permit any person to dump any refuse, rubbish or other material mentioned in this article upon said property.

B. Any person found guilty of this section shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25. Each load of such prohibited material so permitted to be illegally dumped by such person shall constitute a separate and distinct offense and be punishable as such.†

C. Any such person who owns land in the city or who is in possession or in control thereof, who himself dumps said prohibited material on said land, shall be liable as separate and distinct offenses as follows:

(1) For illegally dumping in violation of § 287-13, as one separate and distinct offense.

(2) For any failure to remove said prohibited material which was dumped in violation of § 287-15, as a second separate and distinct offense.

(3) For allowing and permitting the dumping in violation of this section, as a third separate and distinct offense.

§ 287-17. Burning of refuse, rubbish and other materials prohibited.

It shall be unlawful to set fire to or burn any refuse, rubbish or other material mentioned in this article on any land in this city.

§ 287-18. Licensed solid waste disposal facilities. [Amended 10-27-1988 by Ord. No. C-839]

No licensee shall dump or otherwise deposit any waste matter, as defined in this article, on any licensed solid waste disposal facility unless such waste matter shall have been gathered or collected within the territorial limits of the city.

***Editor's note**—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

†**Editor's note**—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

§ 287-19. Depositing litter in public places.

No person shall sweep into or deposit in any gutter, street or other public place the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying property shall keep the sidewalk in front of their premises free of litter.

Cross reference—See also Ch. 81, Advertising Materials, and Ch. 296, Streets and Sidewalks.

§ 287-20. Owners of business premises; food refuse. [Amended 3-24-1988 by Ord. No. C-697; 7-13-1988 by Ord. No. C-780; 6-22-1989 by Ord. No. C-1000]

A. No person owning or occupying a place of business shall sweep into or deposit in any gutter, street or other public place the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying places of business shall keep the sidewalk in front of their business free of litter.

B. Each place of business which sells food for both on- and off-premises consumption shall provide for its customers sufficient and suitable receptacles for the disposal of food refuse, food-related litter and any other wastes associated with the consumption of the specific items of food sold by the business premises. Such receptacles shall be constructed of size and material capable of holding any deposited matter without leakage or spillage and shall be placed in locations convenient for use by customers.

C. When setting garbage out for collection in accordance with this chapter, owners of businesses shall ensure that garbage is placed in compliant receptacles, or orange garbage bags. If garbage bags are used, they shall be waterproof and capable of holding their contents without leakage, spillage, or tearing. Garbage bags shall be kept securely sealed or tied so as to prevent leakage or spillage. **[Added 9-25-2024 by 24-079]**

§ 287-21. Litter from vehicles.

No person, while a driver or passenger in a vehicle, shall throw or deposit litter upon any street or other public place.

§ 287-22. Litter prohibited; litter receptacles. [Amended 10-27-1988 by Ord. No. C-839]

A. No person shall throw or deposit litter in or upon any street, sidewalk or other public place, except in public litter receptacles or in authorized private litter receptacles or in authorized private litter receptacles for collection or in an official city licensed solid waste disposal facility.

B. Litter receptacles are to be maintained and serviced at the following public places, which exist in the city:

(1) Sidewalks used by pedestrians in active retail, commercially zoned areas and that at a minimum, there shall be no single linear quarter-mile without a receptacle.

(2) Buildings held out for use by the public, including schools, government buildings, railroads and bus stations, parks, all street vendor locations, self-service refreshment areas, construction sites, fast-food establishments, gasoline service stations, shopping centers, parking lots, campgrounds

and trailer parks, marinas, boat moorings, fueling stations, boat launching areas, public and private piers operated for public use and at special events to which the public is invited, including sporting events, parades, carnivals, circuses and festivals.

C. The owner of the places listed in Subsection B(2) or the sponsors of the events listed in Subsection B(2) shall be responsible for providing and servicing the receptacles such that adequate containerization is available.

§ 287-23. Use of litter receptacles.

Persons placing litter in public litter receptacles or in authorized private litter receptacles shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any street, sidewalk or other public place.

§ 287-24. Vehicles to be loaded to prevent littering.

No person shall drive or move any truck or other vehicle within the city unless such vehicle is so constructed or loaded as to prevent any load or contents of litter from being blown or deposited upon any street, alley or other public place. No person shall drive or move any vehicle or truck, the wheels or tires of which carry onto or deposit in any street, alley or other public place mud, dirt, sticky substances or foreign matter of any kind.

§ 287-25. Littering in parks.

No person shall throw or deposit litter in any park, except in public litter receptacles and in such a manner that the litter shall be prevented from being carried or deposited by the elements upon any part of the park or upon any street or other public place. Where public litter receptacles are not provided, all such litter shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere.

Cross reference—See also Ch. 239, Parks and Recreation Areas.

§ 287-26. Materials not permitted in litter receptacles.

No person shall dump or otherwise deposit garbage, rubbish material, trade wastes, ashes, earth or street dirt in a litter receptacle placed upon a sidewalk.

§ 287-27. Handbills.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any sidewalk, street or other public place.

Cross reference—See also Ch. 81, Advertising Materials.

§ 287-28. Duties of building owners and lessees.

A. Every owner, tenant, lessee, occupant or person in charge of any building shall provide within and for the exclusive use of such building or part thereof sufficient and suitable receptacles for holding, without leakage, all ashes, garbage, refuse and liquid waste substances that may accumulate between garbage collection in and through the use of buildings or part thereof.

(1) For the purpose of this section, "sufficient receptacles" means the number of receptacles required to store all of the waste material that shall accumulate upon the premises until the next regular garbage collection.

(2) For the purpose of this section, "suitable receptacles" means a reusable watertight metal, rubber or plastic receptacle with a tight-fitting cover and equipped with pull handles, so constructed as to prevent spilling or leakage of its contents, or a disposable plastic-bag-type container so manufactured as to be waterproof and of sufficient strength to hold its contents without leakage, spilling or tearing. Metal receptacles only are deemed to be sufficient for the storage of ashes, nonflammables, explosives or other dangerous combustible materials.

B. Every owner, tenant, lessee, occupant or person in charge of any building shall cause to be put into their respective receptacle all waste materials and substances. No reusable metal, plastic or rubber receptacles shall be filled to a greater height than a line within the receptacle four (4) inches from the top thereof. Receptacles shall be as required in § 287-8.*

C. The receptacles shall be kept within the building or in the rear of the premises until the time for the removal of the substances, when the receptacles shall be placed on the sidewalk close to the curb. For any building with ten (10) or fewer units, using trash services provided by the city, no receptacles shall be placed on the sidewalk close to the curb before the hour of 7:00 p.m. of the day prior to the scheduled for removal by the designated agency. For any building with more than ten (10) units using trash services provided by the city, no receptacles shall be placed on the sidewalk close to the curb before the hour of 10:00 p.m. of the day prior to the scheduled for removal by the designated agency. For any building or business using a trash pick-up service other than service provided by the City of Jersey City receptacles shall be placed on the sidewalk close to the curb more than two (2) hours before pick-up time and on the day scheduled for removal. All receptacles shall remain so placed until the contents thereof shall have been removed by the designated agency, immediately after which the reusable receptacles shall be returned to the building or to the rear of the premises where the reusable receptacles shall be kept, at all times, covered with, a tight-fitting cover. **[Amended 1-25-2017 by Ord. No. 17-012]**

D. Newspapers, wrapping paper or other light refuse and rubbish likely to be blown or scattered about the streets shall be securely bundled, tied or packed before being placed for removal, and such newspapers, wrapping paper and other light refuse and rubbish, as well as all other refuse and rubbish, shall be kept within the building or in the rear of the premises until the time for the removal thereof, when they shall be placed as the receptacles hereinbefore mentioned are required to be placed.

E. No receptacle or refuse or rubbish shall be placed as to constitute or contribute to the creation of a nuisance.

***Editor's note**—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

F. Every tenant in one- and two-family houses shall provide himself with the approved receptacles as set forth herein.

G. The owner, superintendent, property manager, lessee, tenant, other occupant or any other person responsible for dwellings with 16 or more units shall place garbage, or arrange for garbage to be placed on the curb in compliant receptacles at the designated time as set forth in this chapter. **[Added 9-25-2024 by 24-079]**

§ 287-29. Violations and penalties. [Amended 6-28-1984 by Ord. No. MC-648; 9-13-1984 by Ord. No. MC-690; 6-11-1987 by Ord. No. C-474; 6-14-1995 by Ord. No. 95-050]

Any person found guilty of violating any of the provisions of this article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

§ 287-30. Enforcement.

In enforcing this article the Municipal Court shall utilize the form of summons issued by the administrative office of the courts.

§ 287-31. Persons authorized to enforce provisions. [Amended 1-24-1981 by Ord. No. MC-71; 10-27-1981 by Ord. No. MC-54; 10-27-1988 by Ord. No. C-839; 4-8-1992 by Ord. No. 92-025; 1-24-1996 by Ord. No. 96-006; 12-9-1998 by Ord. No. 98-162; 11-12-2014 by Ord. No. 14-017; 11-9-2016 by Ord. No. 16-172; 5-24-2017 by Ord. No. 17-057; 9-23-2020 by Ord. No. 20-074]

This article may be enforced by the Department of Public Safety, Division of Quality of Life and Division of Police and the Department of Health and Human Services, Division of Environmental Health. Anyone authorized to enforce this section may sign and issue a complaint and summons upon a defendant in accordance with New Jersey Court Rule 7:2-2a(4).

§ 287-31.1. Refuse containers and dumpsters. [Added 8-25-2010 by Ord. No. 10-107]

A. Purpose. This Section will require that all dumpsters and other refuse containers that are outdoors or exposed to stormwater are to be covered at all times. It shall prohibit the spilling, dumping, leaking, or otherwise discharge of liquids, semi-liquids or solids from the containers to the municipal separate storm sewer system operated by the Municipal Utilities Authority of the City of Jersey City and/or the waters of the State so as to protect public health, safety and welfare, and to prescribe penalties for the failure to comply.

B. Definitions. For the purpose of this ordinance, the following terms, phrases, words, and their derivations shall have the meanings stated herein unless their use in the text of this Chapter clearly demonstrates a different meaning. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

MUNICIPAL SEPARATE STORM SEWER SYSTEM (MS4)—a conveyance or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs,

gutters, ditches, manmade channels, or storm drains) that is owned or operated by Municipal Utilities Authority of the City of Jersey City, and is designed and used for collecting and conveying stormwater. MS4s do not include combined sewer systems, which are sewer systems that are designed to carry sanitary sewage at all times and to collect and transport stormwater from streets and other sources.

PERSON—any individual, corporation, company, partnership, firm, association, or political subdivision of this State subject to municipal jurisdiction.

REFUSE CONTAINER—any waste container that a person controls whether owned, leased, or operated, including dumpsters, trash cans, garbage pails, and plastic trash bags.

STORMWATER—means water resulting from precipitation (including rain and snow) that runs off the land's surface, is transmitted to .the subsurface, is captured by separate storm sewers or other sewerage or drainage facilities, or is conveyed by snow removal equipment

WATERS OF THE STATE—means the ocean and its estuaries, all springs, streams and bodies of surface or ground water, whether natural or artificial, within the boundaries of the State of New Jersey or subject to its jurisdiction.

C. Prohibited Conduct. Any person who controls, whether owned, leased, or operated, a refuse container or dumpster must ensure that such container or dumpster is covered at all times and shall prevent refuse from spilling out or overflowing.

Any person who owns, leases or otherwise uses a refuse container or dumpster must ensure that such container or dumpster does not leak or otherwise discharge liquids, semi-liquids or solids to the municipal separate storm sewer system operated by the Municipal Utilities Authority of the City of Jersey City.

D. Exceptions to Prohibition.

1. Permitted temporary demolition containers.
2. Litter receptacles (other than dumpsters or other bulk containers).
3. Individual homeowner trash and recycling containers.
4. Refuse containers at facilities authorized to discharge stormwater under a valid NJPDES permit.

5. Large bulky items (e.g., furniture, bound carpet and padding, white goods placed curbside for pickup).

E. Enforcement. This Section shall be enforced by the Jersey City Municipal Utilities Authority and employees of the City of Jersey City, including its police officers.

F. Penalties. Any person(s) who is found to be in violation of the provisions of this Article shall be subject to a fine not to exceed one thousand two hundred fifty dollars ($1,250.00) per violation per day.

ARTICLE II

Uniform Packaging Practices

[Adopted 7-18-1990 by Ord. No. McC-154]

§ 287-32. Findings; purpose.

A. Discarded packaging constitutes the largest single category of waste in the City of Jersey City and is, therefore, a necessary focus of any effort to reduce the amount of waste and the economic and environmental costs of waste management.

B. Discarded nondegradable packaging and plastic contained within the waste stream of the City of Jersey City is considered a fundamental cause of problems associated with municipal waste disposal and litter.

C. Disposal space is diminishing rapidly; solid waste receiving areas outside of the Hudson County area are becoming increasingly uncertain and expensive; for both economic and environmental reasons, measures to simplify the chemical complexity of solid waste and, thereby, streamline solid waste management must be vigorously pursued.

D. The chemical composition and ability of a substance to degrade are meaningful and useful criteria to focus upon when establishing public policy that is intended to improve the management and disposal of solid waste, reduce the cumulative impact of litter, encourage composting and other forms of recycling, minimize the potential for toxic substances to form if solid waste is burned, reduce the volume of ash by-products that may be created by any burning of waste plastic packaging and otherwise anticipate environmental problems that may be caused by the municipal solid waste disposal program.

E. The use of plastic nondegradable packaging has become widespread throughout the City of Jersey City and the resulting mixed substance waste stream is a serious impediment to many solid waste management programs being considered for the city.

F. The widespread use of plastics, especially polystyrene and polyvinyl chloride, pose a threat to the environment by causing unnecessary taking of landfill space or, when incinerated, by the possible introduction of toxic by-products into the atmosphere.

G. The economic and environmental problems associated with a mixed substance waste stream are so severe that a program to modify the composition of solid waste, thereby reducing environmental

hazards and toxicity associated with solid waste incineration and encouraging the composting of putrescible biodegradable wastes and encouraging other forms of recycling of solid waste substances, is hereby determined to be a policy goal of the City of Jersey City.

H. The waste stream within Jersey City is so large and diverse that any program to establish policies and laws conducive to any waste management program in lieu of landfilling must identify and set new policy for those specific sources of waste packaging which originate with this city.

1. Certain retail establishments within Jersey City are points of origin for a significant volume of packaging waste and, therefore, are particularly susceptible to actions which have significant potential for simplifying the composition of this portion of Jersey City's solid waste stream, thereby improving solid waste management within this city.

J. The use of polystyrene and polyvinyl chloride for food packaging is problematic because neither of these plastics are readily recyclable; their abundant commercial use in lieu of other plastics, such as polyethylene or polypropylene, unnecessarily complicates the overall chemical composition of municipal waste and subtracts from the possible emergence of a viable plastic recycling market; if burned together, polystyrene and polyvinyl chloride leave a relatively heavier and more expensive ash residue to dispose of which may also create dioxin, hydrochloric acid or other toxic chemicals that could be emitted into the general environment once burned in a resource recovery facility.

K. There are readily available plastic and/or paper product substitutes for most of the polystyrene and polyvinyl chloride retail food packaging now being used in the City of Jersey City, the use of which alternatives would be environmentally and economically advantageous to the public of the City of Jersey City.

L. Plastic bags in the waste stream constitute an impediment to the development of efficient waste separation, recycling or other waste management programs and are less desirable than paper bags because plastic bags are neither recyclable nor compostable.

M. Plastic bags used by retail establishments selling food constitutes the largest single retail source of plastic bags in the waste stream.

N. The purpose of this article is to eliminate the use of nondegradable packaging originating at retail establishments within the City of Jersey City in order to protect the air, land and waters of the City of Jersey City against environmental contamination and degradation.

§ 287-33. Definitions.

As used in this article, the following terms shall have the meanings indicated:

DEGRADABLE PACKAGING - Packaging made of cellulose-based or other substances that are capable of being readily attacked, decomposed, assimilated and otherwise completely oxidized or broken down by bacteria or other natural biological organisms into carbonaceous soil material or water and carbon dioxide; or in the alternative capable of otherwise degrading within 12 months of manufacture into fragments that are small relative to the original size or into particles of a molecular weight that is low when compared to that of the original material.

PACKAGING - All food-related wrappings, adhesives, cords, binding, bags, boxes, containers and disposable or nonreusable plates, cups or drinking utensils intended for use with the City of Jersey City.

RETAIL FOOD ESTABLISHMENT - All sales outlets, stores, shops or other places of business located within the City of Jersey City which operate primarily to sell or convey foods directly to the ultimate consumer, which foods are predominantly contained, wrapped or held in or on packaging. "Retail food establishment" shall include, but not be limited to, any place where food is prepared, mixed, cooked, baked, smoked, preserved, bottled, packaged, handled, stored, manufactured and sold or offered for sale, including but not limited to any short order cafe, fast-food outlet, delicatessen, luncheonette, grill, sandwich shop, soda fountain, tavern, bar, cocktail lounge, nightclub, roadside stand, takeout prepared food place, industrial feeding establishment, catering kitchen, grocery store, public food market, food stand or similar place in which food or drink is prepared for sale or for service on the premises or elsewhere and any other establishment or operation, including homes, where food is processed, prepared, stored, served or provided for the public for charge.

§ 287-34. Unlawful acts.
[Amended 10-24-1990 by Ord. No. McC-203]

A. No retail food establishment located and doing business within the City of Jersey City shall sell or convey food directly to ultimate consumers within the City of Jersey City unless such food is placed, wrapped or packed in degradable packaging at the conclusion of a sales transaction for the purchase of such food, which takes place on the premises of such a retail food establishment at or near a sales counter or equivalent customer purchasing station but prior to removal of such food from the premises of such retail food establishment.

B. No retail food establishment located and doing business within the City of Jersey City shall sell, give or provide eating utensils or food containers to any consumers within the City of Jersey City if such eating utensil or food container is composed of polystyrene or polyvinyl chloride.

§ 287-35. Unlawful purchases by city.

A. The City of Jersey City shall not purchase any food packaging which contains polystyrene or polyvinyl chloride nor shall it sponsor any event which utilizes such packaging. All food packaging shall be biodegradable.

B. The purchasing agent shall exclusively advertise for the receipt of bids for degradable plastic bags for use by the city.

§ 287-36. Regulations.

The Director of the Division of Engineering, Traffic and Transportation shall issue and promulgate such rules and regulations as may be necessary to implement and carry out the provisions of this article.

§ 287-37. Exemptions.

A. Section 287-34 of this article shall not apply to the following items:

(1) Any flexible transparent covering for uncooked or raw meat, poultry, raw fish, hard cheese, cold cuts, fruit and vegetable produce, baked goods or bread; any polystyrene packaging for meat, meat products, fish, poultry, dairy and produce packaged and sold in the City of Jersey City; provided that such packaging does not contain chlorofluorocarbons (CFC's). **[Amended 10-24-1990 by Ord. No. McC-203]**

(2) Any food packaging used at hospitals or nursing homes.

(3) Any paper or other cellulose-based packaging that is coated with polyethylene plastic on only one side.

(4) Any plastic covers, covering material, food containers, lids, eating utensils or straws that are not made of polystyrene or polyvinyl chloride.

B. The Director of the Division of Engineering, Traffic and Transportation or its authorized representative may exempt an item or type of packaging from the requirements of this article upon a showing that the item or type has no acceptable equivalent and that imposing the requirements on that item or type would cause undue hardship. Applicants seeking an exemption shall furnish a list of suppliers contacted to determine if substitutes are available.

C. The Director of the Division of Engineering, Traffic and Transportation may exempt any packaging not containing chlorofluorocarbons (CFC's) upon documented proof provided by the retail food establishment in a form as prescribed by and satisfactory to the Director of Engineering that recycling of this food packaging is occurring. The retail food establishment shall source-separate and remove the food packaging from the solid waste and shall cause the recycling of the packaging, in an organized manner, into another usable product thus preventing the packaging from being disposed. At minimum, the retail food establishment shall demonstrate monthly that at least sixty percent (60%) of said total packaging utilized is being recycled. This would include in the total that packaging being used within the premises as well as that taken from the premises.

§ 287-38. Enforcement. [Amended 11-9-2016 by Ord. No. 16-172]

The provisions of this Article shall be enforced by the Jersey City Department of Public Works and the Health Officer, which shall designate inspectors empowered to issue complaints for violations of this Article in accordance with the rules governing the courts of the State of New Jersey.

§ 287-39. Provisions voided by superseding regulations; violations and penalties.

A. This Article shall be void upon the enactment or adoption of any federal and/or state law or regulation restricting the use of polystyrene, polyvinyl chloride or degradable packaging.

B. Any person found guilty of violating any provision of this Article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.;*

* **Editor's note**—Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.

ARTICLE III

Private Collectors [Adopted 10-16-1979 as Ord. No. S-302]

§ 287-40. Unlawful hours of operation. [Amended 3-13-1986 by Ord. No. C-24; amended 1-25-2017 by Ord. No. 17-012]

A. It shall be unlawful for any private garbage or refuse collector to collect any such material in any residential area or street in the city before the hour of 8:00 a.m. on weekdays and 9:00 a.m. on weekends or after the hour of 10:00 p.m. all days.

B. Garbage, refuse, swill, and anything else set out to be collected by a private collector shall be contained within a receptacle or in orange garbage bags. If garbage bags are used, they shall be waterproof and capable of holding their contents without leakage, spillage, or tearing. Garbage bags shall be kept securely sealed or tied so as to prevent leakage or spillage. **[Amended 9-25-2024 by 24-079]**

ARTICLE IV

Recycling [Adopted 1-14-1988 as Ord. No. C-652; amended 7-16-2008 by Ord. No. 08-098]

§ 287-41. Definitions.

Commingled — means a combining of non-putrescible source-separated recyclable materials for the purpose of recycling;

Designated recyclable materials — means those materials designated within the Hudson County District Solid Waste Management Plan to be source separated for the purpose of recycling. These materials include aluminum, tin and steel; corrugated cardboard; glass containers; grass and brush; household batteries; leaves; masonry (asphalt, brick, block and concrete); mixed paper; motor oil; motor oil filters; newspaper; office paper; plastic containers (#1 and #2); tires; vehicle batteries; white goods; and wood;

Electronic waste — means a computer central processing unit and associated hardware including keyboards, modems, printers, scanners and fax machines; a cathode ray tube, a cathode ray tube device, a flat panel display or similar video display device with a screen that is greater than four inches measured diagonally and that contains one or more circuit boards, including televisions and cell phones;

Multi-family dwelling — means any building or structure of complex of buildings in which three or more dwelling units are rented or leased or offered for rental or leave for residential purposes (see N.J.S.A. 13:1E-99.13a) except hotels, motels or other guest houses serving transient or seasonal guests as those terms are defined under subsection (j) of section 3 of the "Hotel and Multiple Dwelling Law," P.L. 1967, c.76 (C.55:13A-1 et seq.);

Municipal solid waste (MSW) stream — means all solid waste generated at residential, commercial, and institutional establishments within the boundaries of the municipality of the City of Jersey City;

Recyclable material — means those materials which would otherwise become solid waste, and which may be collected, separated, or processed and returned to the economic mainstream in the form of raw materials or products;

Source-separated recyclable materials — means recyclable materials which are separated at the point of generation by the generator thereof from solid waste for the purposes of recycling;

Source separation — means the process by which recyclable materials are separated at the point of generation by the generator thereof from solid waste for the purposes of recycling.

§ 287-42. Source separation; exemption from source separation requirements.

A. Mandatory source separation: It shall be mandatory of all persons who are owners, tenants, or occupants of residential and non-residential premises located within the municipality of the City of Jersey City to separate designated recyclable materials from all solid waste. Designated recyclable materials shall be deposited separated and apart from other solid waste generated by the owners, tenants, or occupants of such premises and shall be placed separately at the curb in a manner and on such days and times as may be hereinafter established by regulations promulgated by the City of Jersey City or the Jersey City Department of Public Works. **[Amended 11-9-2016 by Ord. No. 16-172]**

B. Exemptions: Pursuant to N.J.S.A. 13:1E99.16(d), the governing body of a municipality may exempt persons occupying commercial or institutional premises within its municipal boundaries from the source separation requirements of the ordinance which requires persons generating municipal solid waste within its municipal boundaries to source separate from the municipal solid waste stream, the specified recyclable materials if those persons have otherwise provided for the recycling of all designated recyclable materials. To be eligible for an exemption pursuant to this Chapter, a commercial or institutional generator of solid waste shall file an application for exemption with the municipal recycling coordinator on forms to be provided for this purpose. The form shall include, at a minimum, the following information: the name of the commercial or institutional entity; the street address location and lot and block designation; the name, official title and phone number of the person making application on behalf of the commercial or institutional entity; the name, address, official contact person and telephone number of the facility which provides the service of recycling those designated recyclable materials, and a certification that the designated recyclable materials will be recycled, and that, at least on an annual basis, said recycling service provider shall provide written documentation to the municipal recycling coordinator of the total number of tons collected and recycled for each designated material.

§ 287-43. Collection of recyclable materials.

The collection of recyclable materials shall be in the manner prescribed as follows:

A. All receptacles containing recyclable materials shall be placed, prior to collection, between the curb and the sidewalk, or in the absence of curb and sidewalk, as near to the street as not to constitute a danger, where such receptacles shall be readily accessible to the collector without providing obstruction to pedestrians. The owner or occupant of the premises shall keep all receptacles clean and in safe handling condition. Receptacles or other items to be disposed of shall be placed as noted above anytime after 7:00 p.m. of the day immediately preceding the day of collection, but no later than 10:00 p.m. of the day immediately preceding the day of collection. After collection, any containers shall be removed from the curbside by no later than 10:00 a.m. next.

B. All receptacles or dumpsters shall be maintained in accordance with the Health Code of the municipality of the City of Jersey City.

§ 287-44. Residential dwelling compliance requirements.

The owner of any property shall be responsible for compliance with this Ordinance. For multi-family/high-rise housing developments, the management or owner is responsible for setting up and maintaining the recycling system, including collection of recyclable materials. Violations and penalty notices will be directed to the owner or management. The management shall issue notification and collection rules to new tenants when they arrive and every six months during their occupancy.

§ 287-45. Commercial establishment compliance requirements.

A. All commercial, business or industrial facilities shall be required to comply with the provisions of this Ordinance.

B. The arrangement for collection of designated recyclables hereunder shall be the responsibility of the commercial, institutional or industrial property owner or their designee. All commercial, institutional or industrial properties which provide outdoor litter receptacles and disposal service for their contents shall also provide receptacles for designated recyclable materials, for those materials commonly deposited, in the location of the litter receptacle, and shall provide for separate recycling service for their contents.

C. Every business, institution or industrial facility shall report on an annual basis to the municipal recycling coordinator, on such forms as may be prescribed, on recycling activities at their premises, including the amount of recycled material, by material type, collected and recycled and the vendor or vendors providing recycling service.

D. All food service establishments shall, in addition to compliance with all other recycling requirements, be required to recycle grease created in the processing of food or food products, and maintain such records as may be proscribed, for inspection by any code enforcement officer.

§ 287-46. New developments of multi-family residential units or commercial, institutional or industrial properties.

A. Any application to the planning board of the municipality of the City of Jersey City, for subdivision or site plan approval for the construction of multi-family dwellings of three or more units, or any commercial, institutional or industrial development for the utilization of one thousand (1,000) square feet or more of land, must include a recycling plan. This plan must contain, at a minimum, the following:

1. A detailed analysis of the expected composition and amounts of solid waste and recyclables generated at the proposed development and

2. Locations documented on the application's site plan that provide for convenient recycling opportunities for all owners, tenants and occupants.

B. Prior to the issuance of a Certificate of Occupancy by the municipality of the City of Jersey City, the owner of any new multi-family housing or commercial, institutional or industrial development must supply the planning board of the municipality of the City of Jersey City with a copy of a duly executed contract with a hauling company for the purposes of solid waste collection and the collection of recycling of source-separated recyclable materials.

§ 287-47. Prohibition of the collection of waste mixed with recyclable materials.

A. It shall be unlawful for solid waste collectors to collect solid waste that is mixed with, or contains visible signs of, designated recyclable materials. It is also unlawful for solid waste collectors to remove for disposal those bags or containers of solid waste which visibly display a warning notice sticker or some other device indicating that the load of solid waste contains designated recyclable materials.

B. It shall be the responsibility of the resident or occupant to properly segregate the uncollected waste for proper disposal or recycling. Allowing such unseparated solid waste and recyclables to accumulate will be considered a violation of this article and the local sanitary code.

§ 287-48. Enforcement. [Amended 10-14-2016 by Ord. No. 15-104; 9-23-2020 by Ord. No. 20-074]

The Department of Public Safety's Division of Quality of Life and Division of Police and the Department of Health and Human Services' Division of Environmental Health, Hudson Regional Health Commission, and the Hudson County Improvement Authority are hereby individually and severally empowered to enforce the provisions of this article. The respective enforcing official may, in his or her discretion, post warning notice stickers for a first time offense. An inspection may consist of sorting through containers and opening of solid waste bags to detect, by sound or sight, the presence of any recyclable material.

§ 287-49. Violations and penalties.

Any person, corporation, occupant or other entity that violated or fails to comply with any provision of this Ordinance or any of the rules and regulations promulgated hereunder shall, upon conviction thereof, be punishable as provided for in Chapter 1, General Provisions, Section 1-25. **[Amended 1-25-2017 by Ord. No. 17-005]**

ARTICLE V

Construction, Renovation, and Demolition Debris Recovery [Added 7-16-2008 by Ord. No. 08-098]

§ 287-50. Definitions.

Covered project — means a construction, renovation or demolition project for which a building permit or a demolition permit is required, and for which a dumpster, roll-off container or any other vehicle in which such material is transported shall be placed on premises for the purpose of the placement of waste materials.

§ 287-51. Construction, renovation and demolition debris recovery plan.

A debris recovery plan shall be filed with the municipal building department, with a copy of the plan forwarded to the municipal recycling coordinator, prior to the commencement of any activity for

municipal approval as further identified above. The debris recovery plan shall identify the types and estimated quantities of construction and demolition debris to be generated from the project, how each material will be managed, and the name of each facility or service provider that the entity will use to manage each material. The plan shall further detail how the applicant shall ensure that a minimum of fifty percent (50%) of the materials to be generated will be separated and recycled.

§ 287-52. Review of debris recovery plan.

A. Approval: A debris recovery plan shall be reviewed by the municipal building department and/or the municipal recycling coordinator, and approved if it provides for all of the information required by this Ordinance. An approved debris recovery plan shall be marked "Approved" and returned to the owner of the entity which submitted the plan.

B. Denial: A debris recovery plan shall not be approved if it does not provide all of the information required by this Ordinance. If a debris recovery plan is not approved, the owner of the entity which submitted the plan shall be notified in writing that the plan has been rejected, including the reasons for the rejection. In order to obtain the building or demolition permit sought, the owner of the entity which will carry out the construction, renovation or demolition project shall make the required changes and resubmit the debris recovery plan to the municipal building department and/or the municipal recycling coordinator.

§ 287-53. Diversion requirement adjustment.

A. Application: If the owner of an entity carrying out a covered project experiences circumstances that make it infeasible to comply with the diversion requirement cited in this Ordinance, the owner of the entity may apply to the municipal building department and/or the municipal recycling coordinator for an adjustment. The owner shall indicate in writing why it is infeasible to divert fifty percent (50%) of the materials being generated from the covered project and specify what percentage of diversion could be achieved. Increased costs to the owner of the entity carrying out the covered project will not be an acceptable justification for an adjustment.

B. Review: The municipal building department and/or the municipal recycling coordinator shall review the information supplied by the owner. If warranted, the municipal recycling coordinator shall attempt to contact the owner to discuss possible ways of meeting the diversion requirement.

C. Granting of an adjustment: If the municipal building department and/or the municipal recycling coordinator determines that it is infeasible for the entity carrying out a covered project to divert fifty percent (50%) of the generated C&D debris from the covered project, the percent of diversion required shall be adjusted. The owner shall be notified in writing of the adjusted diversion requirement. The owner of the entity carrying out the covered project shall be required to divert the percent of C&D debris required by the adjustment.

D. Denial of adjustment: If the municipal building department and/or the municipal recycling coordinator determine that it is feasible for the owner of an entity carrying out a covered project to meet the diversion requirement cited in this Ordinance, the owner shall be notified in writing of the denial of the diversion requirement adjustment.

E. Adjustment from the fifty percent (50%) diversion requirement shall be granted by the Jersey City Department of Public Works as well as any private entity performing a demolition which needs to be performed on an emergency basis with notification and approval of the Construction Official, Fire Official or Health Officer. **[Amended 11-9-2016 by Ord. No. 16-172]**

§ 287-54. Debris recovery plan reporting requirements.

Documentation: Upon completion of the covered project, but before the final inspection, the owner of the entity carrying out a covered project shall submit in person or by certified mail to the municipal building department and/or the municipal recycling coordinator, the documentation required to demonstrate that the applicant has met the diversion requirement. The required documentation shall include the following:

(1) A completed debris recovery report, signed by the owner of the entity carrying out a covered project, indicating the quantity of each material generated during the covered project diverted to disposed;

(2) Receipts from all facilities or service providers utilized to divert and dispose materials generated during the covered project; and

(3) Any additional information that the owner of the entity carrying out the covered project believes is relevant to determining compliance with the diversion requirement.

§ 287-55. Compliance with diversion requirement.

The municipal building department and/or the municipal recycling coordinator shall review the information submitted pursuant to this Ordinance and determine whether the owner of the entity carrying out the covered project has complied, or failed to comply, with the diversion requirement. The determination regarding compliance will be provided to the owner of the entity carrying out the covered project in writing.

§ 287-56. Appeal.

An owner of the entity carrying out the covered project may appeal a determination of failure to comply under this Ordinance to the municipality within thirty (30) days of the decision or determination. The appeal shall be in writing and shall state the fact and basis for the appeal. A decision by the Jersey City Business Administrator shall be final.

§ 287-57. Enforcement. [Amended 11-9-2016 by Ord. No. 16-172; 9-23-2020 by Ord. No. 20-074]

The Construction Code Official, the Department of Public Safety, the Department of Health and Human Services, Hudson Regional Health Commission and the Hudson County Improvement Authority are hereby individually and severally empowered to enforce the provision of this article. The respective enforcing official may, in his or her discretion, post warning notice stickers for a first offense. An inspection may consist of dumping and opening of solid waste bags and containers to detect, by sound or sight, the presence of any recyclable material.

§ 287-58. Violations and penalties.

Any person, corporation, occupant or other entity that violated or fails to comply with any provision of this Ordinance or any of the rules and regulations promulgated hereunder shall, upon conviction thereof, be punishable by a fine no less than five hundred dollars ($500.00), nor more than the maximum penalty set in accordance with Section 1-25 of this Code. Each day for which a violation of this Ordinance occurs shall be considered a separate offense.

Chapter 290

SPRAY PAINT, SALE OF

§ 290-1. Definitions.
§ 290-2. Unlawful acts.
§ 290-3. Possession of certain paints or markers restricted.
§ 290-4. Possession within public buildings.
§ 290-5. License required for sale of spray paint.
§ 290-6. Signs; display requirements.
§ 290-7. Aiding or abetting persons under eighteen years of age.
§ 290-8. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 7-22-1992 by Ord. No. 92-084. Amendments noted where applicable.]

GENERAL REFERENCES

Graffiti — See Ch. 242, Art. II.

§ 290-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

SPRAY PAINT — Any paint or pigmented substance in an aerosol or similar spray container or intended for use in an aerosol or similar spray container.

§ 290-2. Unlawful acts.

A. It shall be unlawful for any person to sell or offer for sale to any person under 18 years of age any spray paint or hobby kit or any similar kind of kit containing spray paint and any ink marker which is not water soluble, having a marking tip of one-half (½) inch or more in length or width.

B. No person may sell or offer to sell spray paint to any other person unless the buyer presents evidence of his or her identity and age.

C. Containers of spray paint and any ink marker which is not water soluble, having a marking tip of one-half (½) inch or more in length or width, may not be displayed in any retail business premises in a manner in which they can be picked up by a customer when standing in an area allocated for customer use.

§ 290-3. Possession of certain paints or markers restricted.

No person under the age of 18 shall possess any paint in a spray can or any marker containing a fluid which is not water soluble and has a point, brush, applicator or other writing surface of one-half (½) inch or greater in length or width. This prohibition shall not apply to:

A. A child using paint or marker while under the immediate supervision of his or her parent or legal guardian;

B. A student using paint or a marker while under the immediate supervision of his or her teacher; or

C. An employee using paint or marker under the supervision of his or her employer.

§ 290-4. Possession within public buildings.

A. It shall be unlawful for any person to possess a spray paint container or any marker containing a fluid which is not water soluble and has a point, brush, applicator or other writing surface of one-half (½) inch in length or width or greater, on the property of another or in any public building or upon any public facility. It shall be a defense to an action for violation of this section that the owner, manager or other person having control of the property, building or facility consented to the presence and use of the paint or marker.

B. It shall be unlawful for any person to possess a spray paint or any marker containing fluid which is not water soluble and has a point, brush, applicator or other writing surface of one-half (½) inch in length or width or greater on the public way with intent to use the same to deface any building, structure or property. This prohibition shall not apply to any employee of a public utility or of the municipal, state or federal government using spray paint or any marker within the scope of his or her prescribed duties.

§ 290-5. License required for sale of spray paint.

A. No person, except a wholesale dealer, may sell, offer to sell or possess with intent to sell any spray paint or hobby kit or any similar kind of kit containing spray paint without first obtaining a license from the Superintendent of Licenses. The words "wholesale dealer" mean any manufacturer and any person who sells spray paint to persons who are reasonably understood not to be the ultimate consumers. Applications for licenses to sell spray paint shall be made in the form prescribed by the Superintendent of Licenses and accompanied by a fee as provided in Chapter 160, Fees and Charges, payable to the City of Jersey City. **[Amended 6-14-1995 by Ord. No. 95-050]**

B. Licenses shall be valid for a period of one year and shall expire on May 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Licenses and Fees. **[Amended 2-11-1998 by Ord. No. 98-004]**

C. The license or a certified copy of the license shall be displayed at all times in a conspicuous place within the business premises where it can be easily read.

D. Effective November 1, 1992, every person engaged in the business of selling spray paint shall keep a record of each sale. The record shall include the name, address and the age of the buyer and the number of units or containers of spray paint purchased. Such record shall be made available at all reasonable hours for inspection by any law enforcement officer.

E. A license may be suspended or revoked, after notice and an opportunity to be heard, if the licensee is convicted of a violation of this Article or if the Superintendent of Licenses finds that the licensee has violated any provision of this Article.

§ 290-6. Signs; display requirements.

A. Every person who engages in the business of selling spray paint or markers regulated by this Article shall post in clear public view at or near the display of such products, using bold lettering at least one (1) inch in height, a placard stating the following:

> ANY PERSON DEFACING REAL PROPERTY NOT HIS OR HER OWN WITH PAINT OR ANY OTHER LIQUID IS SUBJECT TO A FINE OF ONE THOUSAND DOLLARS ($1,000.) OR IMPRISONMENT FOR UP TO NINETY (90) DAYS.

B. Every person who engages in the business of selling spray paint or markers regulated by this Article shall also post in the direct view of such person or persons responsible for accepting customer payment for such spray paint containers or marker pens, using bold lettering at least one (1) inch in height, a placard stating the following:

> IT IS UNLAWFUL TO SELL OR OTHERWISE CONVEY SPRAY PAINT OR WIDE-TIPPED MARKERS TO PERSONS UNDER EIGHTEEN (18) YEARS OF AGE IN THE CITY OF JERSEY CITY. VIOLATORS SHALL BE SUBJECT TO A FINE OF UP TO ONE THOUSAND DOLLARS ($1,000.) OR IMPRISONMENT FOR UP TO NINETY (90) DAYS.

§ 290-7. Aiding or abetting persons under eighteen years of age.

No person shall aide, assist or abet a person under the age of eighteen (18) in obtaining possession of paint in a spray can or any marker containing a fluid which is not water soluble and has a point, brush, applicator or other writing surface of one-half (½) inch or greater. This prohibition shall not apply to:

A. A parent or legal guardian assisting and supervising his or her own child or ward in use of paint or a marker;

B. A teacher assisting and supervising his or her student in the use of paint or a marker; or

C. An employer assisting and supervising his or her employee in the use of paint or a marker.

§ 290-8. Violations and penalties.[2]

Any person who is convicted of a violation of any section of this chapter shall be punishable as provided in Chapter 1, General Provisions, § 1-25.

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[2] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 296

STREETS, SIDEWALKS AND PUBLIC RIGHTS-OF-WAY*

ARTICLE I
General Provisions; Duties of Property Owners and Occupants

§ 296-1.1. Definitions.

§ 296-1.2. Duties of Owners or occupants of residential and commercial properties.

§ 296-1.3. Snow and ice removal, duties of Owners or occupants of residential properties; time for removal.

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§ 296-1.6. Ice removal, monitoring.

§ 296-1.7. Use of rock salt prohibited; approved de-icing chemicals.

§ 296-1.8. Removal by City within 12 hours of daylight after snowfall; costs to become lien.

§ 296-1.9. Duty of Owners, occupants and workers; Littered Conditions prohibited; Depositing materials in Streets or Gutters.

§§ 296-1.10, 296-1.11. Reserved.

§ 296-1.12. Maintenance of water/sewer service pipe/sewer main connection—Responsibility of property Owner.

§ 296-1.13. Uneven Sidewalks and replacement of Sidewalks—Responsibility of property Owner.

§ 296-1.14. Notices to property Owner.

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§ 296-1.16. Severability.

ARTICLE II
Closure of the Public Right-of-Way

§ 296-2.1. Closure of the Public Right-of-Way; Permit required.

***Editor's note—**Ord. No. 20-054, adopted July 15, 2020, amended the Code by repealing former Ch. 296, §§ 296-1.1, 296-1.2, 296-2—296-6, 296-8—296-18, 296-20—296-33, 296-36, 296-38—296-67, and 296-71—296-85; and adding a new Ch. 296. Former Ch. 296 pertained to Streets and Sidewalks, and was originally adopted May 4, 1971; and amended by Ord. No. S-128, adopted September 19, 1978; Ord. No. S-139, adopted October 17, 1978; Ord. No. S-415, adopted July 8, 1980; Ord. No. MC-425, adopted August 11, 1983; Ord. No. MC-706, adopted October 11, 1984; Ord. No. C-273, adopted September 11, 1986; Ord. No. C-285, adopted February 1, 1987; Ord. No. McC-185, adopted August 21, 1990; Ord. No. McC-272, adopted March 27, 1991; Ord. No. 93-111, adopted October 13, 1993; Ord. No. 95-030, adopted April 26, 1995; Ord. No. 95-050, adopted June 14, 1995; Ord. No. 95-082, adopted September 27, 1995; Ord. No. 97-052, adopted August 13, 1997; Ord. No. 98-004, adopted February 11, 1998; Ord. No. 98-074, adopted June 10, 1998; Ord. No. 98-080, adopted June 24, 1998; Ord. No. 98-122, adopted September 9, 1998; Ord. No. 98-125, adopted July 23, 1998; Ord. No. 99-110, adopted September 8, 1999; Ord. No. 00-008, adopted February 23, 2000; Ord. No. 01-059, adopted June 13, 2001; Ord. No. 02-012, adopted February 27, 2002; Ord. No. 05-045, adopted April 27, 2005; Ord. No. 05-073, adopted June 22, 2005; Ord. No. 06-001, adopted January 25, 2006; Ord. No. 11-076, adopted July 20, 2011; Ord. No. 13-081, adopted September 11, 2013; Ord. No. 15-003, adopted January 28, 2015; Ord. No. 15-012, adopted February 25, 2015; Ord. No. 17-044, adopted April 26, 2017; and Ord. No. 17-173, adopted December 13, 2017. Subsequent to the repeal and replacement of Chapter 296, Ord. No. 20-095, adopted November 12, 2020, amended the provisions former §§ 296-79—296-85.

Cross references—Advertising materials; littering, Ch. 81; numbering of buildings, Ch. 108; fire lanes, Ch. 166; security gates, Ch. 278; shopping carts abandoned on Streets, Ch. 284; trees, Ch. 321; Vehicle and traffic regulations, Ch. 332; use of Streets for peddling, Ch. 245. Additionally, Ord. No. 20-045, adopted June 24, 2020, adopted the Traffic Control Manual, 2020 Edition, which is included in this Chapter by reference. See section 296-2.12.

§ 296-2.2. Applications for Permits to close the Public Right-of-Way, contents.
§ 296-2.3. Applications for Permits to close the Public Right-of-Way, procedures.
§ 296-2.4. Standards for issuance of Permits; waiver of standards in appropriate cases.
§ 296-2.5. Notice of issuance or denial of Permit; appeal procedure.
§ 296-2.6. Permits to close the Public Right-of-Way, scope, terms and limitations.
§ 296-2.7. Liability and indemnification.
§ 296-2.8. Expiration of Permit for non-commencement of work.
§ 296-2.9. Permit to be posted at site of closure.
§ 296-2.10. Emergency closure of the public right of-way; police required.

§ 296-2.11. Closure of the public right-of-way.

§ 296-2.12. Traffic Control Manual.
§ 296-2.13. Posting of warning signs.
§ 296-2.14. Revocation of Permit.
§ 296-2.15. Enforcement.

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§ 296-3.2. Applications for Permits to perform an Excavation, contents.
§ 296-3.3. Applications for Permits to perform an Excavation, procedures.
§ 296-3.4. Excavation Permits, scope, terms and limitations.
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§ 296-3.7. Additional fees for Excavation.
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§ 296-3.10. Permit to be posted at Excavation site.
§ 296-3.11. Joint Excavation.
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§ 296-3.17. Standard Plans and Specifications.
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§ 296-3.20. Coordination of future Excavations with public utilities and autonomous agencies.
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ARTICLE I
General Provisions; Duties of Property Owners and Occupants

§ 296-1.1. Definitions. [Added July 15, 2020 by Ord. No. 20-054]

For purposes of this Chapter, the following terms shall have the following meanings:

APPLICANT — any Owner or duly authorized agent of such Owner who has submitted an application for a Permit to close the Public Right-of-Way or excavate the Public Right-of-Way.

BLOCK — that part of the Public Right-of-Way that includes the Street area from the property line to the parallel property line in width and extending from the property line of an intersecting Street to the nearest property line of the next intersecting Street in length. For purposes of this definition, an intersection also shall be considered a "Block."

BUSINESS DAY — any day except any Saturday, any Sunday, any day which is a federal legal holiday in the United States or any day on which banking institutions in the State are authorized or required by law or other governmental action to close.

CHAPTER — this Chapter of the Municipal Code of the City of Jersey City.

CITY — the City of Jersey City.

CORNER — the full width of Sidewalk area beginning at the point at which the extended Curblines form an intersection and running therefrom a distance of 25 feet along such Curb in either direction.

CURB — the stone or concrete edging delineating the boundary between the Sidewalk and the Street.

CURBLINE — the line at the face of the Curb nearest to the Street.

DEPOSIT — any cash Deposit, or other security provided by the Applicant in accordance with this Chapter.

DIRECTOR — the Municipal Engineer who serves as the Director of the Division of Engineering, or his or her designee. **[Amended 1-10-2024 by Ord. No. 23-126]**

DIVISION — the Division of Engineering, Traffic and Transportation.

DUMPSTER — a large, immobile trash receptacle designed to be hoisted and emptied into a truck.

EMERGENCY — a situation likely to endanger life or property or interrupts or is likely to interrupt utility service such as the delivery of gas, electric, water or sewer service.

EXCAVATION — any work involving breaking the surface of the Public Right-of-Way for the purpose of installing, servicing, repairing or modifying any Facility(ies) in or under the surface of the Public Right-of-Way. Bore holes, monitoring wells or other probes into the surface of the Public Right-of-Way shall also be considered "Excavations." Sidewalk and Curb Excavations shall be considered "Excavations."

FACILITY or FACILITIES shall include, but not be limited to, any and all cables, fiber optic lines, cabinets, ducts, conduits, converters, equipment, drains, handholes, manholes, pipes, pipelines, poles, splice boxes, surface location markers, tracks, tunnels, utilities, vaults, Street lights, and other appurtenances or tangible things owned, leased, operated, or licensed by an Owner or Person, that are located or are proposed to be located in the Public Right-of-Way.

FOOD SERVICE ESTABLISHMENT — a Facility established primarily for the service of food and drink and which includes restaurants of all classes, including but not limited to, bakeries, ice cream parlors, taverns and delicatessens.

GUTTER — the trough which runs along the edge of the Curb in the Street and which channels rainwater into the storm sewers.

LITTERED CONDITION — when the Sidewalk or any part of the front of any premises facing upon and adjacent to any Public Right-of-Way where there exists thereon, littered, dispersed or scattered about, any accumulation of dirt, dust, ashes, straw, shavings, sweepings, garbage, refuse, tree or shrubbery leaves, bark, branches or twigs, animal or vegetable matter, fruit peels, skins or parts thereof, wood, metal, old rags, waste, bottles or broken glass, newspapers, magazines or books or pages or parts thereof, other printed material, torn pieces of paper, cardboard and the like, wrappings, bags, containers, string, cigar or cigarette butts or parts thereof, matches or any other discarded matter, all of which shall be regarded as refuse, and any combination or accumulation thereof.

MAJOR WORK — any reasonably foreseeable Excavation that will affect the public right-of-way for more than five (5) consecutive calendar days.

MUNICIPAL ENGINEER — the Director of the Division of Engineering or his or her designee. **[Amended 1-10-2024 by Ord. No. 23-126]**

MUNICIPAL EXCAVATOR — any agency, authority, board, commission, department, or subDivision of the City, or agent thereof, that owns, installs, or maintains a Facility or Facilities in the Public Right-of-Way.

OWNER — any Person, including the City, who owns any Facility or Facilities that are or are proposed to be installed or maintained in the Public Right-of-Way.

PAPER STREET — a Street that appears on maps but has not yet been built or dedicated to the City.

PARKLET — a temporary, movable structure installed by the City in a Street occupying a parking space or parking spaces within the parking lane and abutting the Curbline, intended to serve as an extension of the Sidewalk for the purpose of public enjoyment. **[Added 2-24-2021 by Ord. No. 21-010]**

PEDESTRIAN — any person travelling on foot, roller skates, roller blades, or skateboard. **[Amended 2-24-2021 by Ord. No. 21-010]**

PEDESTRIAN MALL or PEDESTRIAN MALL IMPROVEMENT or PEDESTRIAN PLAZA or MALL — any local improvement authorized by N.J.S.A. 40:56-65 et seq. and designed to be used primarily for the movement, safety, convenience and enjoyment of Pedestrians, whether or not a part of a Street is set apart for roadway or emergency vehicles, transit vehicles and private vehicles, or any of them. A Pedestrian Mall Improvement shall include but not be limited to Pedestrian thoroughfares, perimeter parking, public seating, park areas, outdoor cafés, shelters, trees, flower plantings, sculpture, newsstands, telephone booths, traffic signs, kiosks, fire hydrants, street lighting, ornamental signs, ornamental lights, trash receptacles, display cases, marquees, awnings, canopies, overhead radiant heating fixtures, underground radiant heating pipes and devices, walls, bollards and chains and all such other fixtures, equipment, facilities and appurtenances which, in the judgment of the governing body of a municipality, will enhance the movement, safety, convenience and enjoyment of Pedestrians and benefit the municipality and adjoining properties. **[Added 2-24-2021 by Ord. No. 21-010]**

PERMIT — the written permission to partially or fully close or block the flow of traffic or parking in the Public Right-of-Way or perform an Excavation within the Public Right-of-Way as it has been approved, amended, or renewed by the Division, which are subject to the fees established in Chapter 160-1.A.10. **[Amended 1-10-2024 by Ord. No. 23-126]**

PERMITTEE — the Applicant to whom a Permit to close, Block or excavate the Public Right-of-Way has been granted by the Division in accordance with this Chapter.

PERSON — any natural Person, corporation, partnership or entity, any municipal excavator, or any governmental agency, including the State of New Jersey or the United States of America.

PLOW LINE — the furthest extent of any furrow plowed into the snow during snow plowing operations.

PORTABLE MOVING STORAGE CONTAINER — any large, immobile container typically delivered by a moving company and which is used to temporarily store movable Personal property while in the process of moving.

PUBLIC RIGHT-OF-WAY — the area across, along, beneath, in, on, over, under, upon, and within the dedicated public alleys, boulevards, courts, lanes, roads, Sidewalks, spaces, Streets, either paved or constructed or not, including Paper Streets, and ways within the City, as they now exist or hereafter will exist and which are or will be dedicated or expressly reserved for the use of vehicular, Pedestrian, or bicycle traffic and other allowable modes of transportation, and/or utilities and which shall be under the Permitting jurisdiction of the Division.

SIDEWALK — the entire ground or space from the established or actual building line up to and including the Curb of the public Street in front of any building or vacant lot or on the sides thereof, if same is a corner property, facing on and or adjacent to two (2) or more public Streets, and shall include any thoroughfare, public or private, used by the public.

SIDEWALK CAFÉ — a partitioned space, abutting a Food Service Establishment extending beyond the building line into the Sidewalk and intended to accommodate tables, chairs, and the service of food and drink to patrons of the Food Service Establishment which fronts on that Sidewalk.

STANDARD PLANS AND SPECIFICATIONS — and include those standards and specifications prepared by the Division that govern excavations pursuant to this Chapter and shall include but not be limited to standards and requirements imposed by the Division relating to the method, location and time of excavation, the restoration of the same and such other requirements as may now or hereafter be imposed or otherwise required by the Division. **[Added 2-24-2021 by Ord. No. 21-010]**

STREET — the area dedicated to the public for vehicular, bicycle, scooter or other allowed traffic and governed by Title 39 of the State statutes, and shall include, but not be limited to, roadways, parkways, alleys and the air space above such surfaces.

UTILITY EXCAVATOR shall include but not be limited to any owner whose Facility or Facilities in the Public Right-of-Way are used to provide electricity, fuel or crude oil, gas, information services, sewer service, steam, telecommunications, traffic controls, transit service, video, water, or other services to customers regardless of whether or not such owner is deemed a public utility by the New Jersey Board of Public Utilities (BPU). **[Added 2-24-2021 by Ord. No. 21-010]**

§ 296-1.2. Duties of Owners or occupants of residential and commercial properties. [Added July 15, 2020 by Ord. No. 20-054]

Every Owner, occupant or Person having charge of a residential or commercial building or vacant lot is deemed to have a duty to maintain the Sidewalks, Curbs and Gutters abutting their building or lot free from snow, ice and litter in accord with the standards set forth in this article. Every Owner, occupant or Person having charge of a residential or commercial building or vacant lot is deemed to have a duty to maintain the surface of any Sidewalk(s) Curbs and Gutters abutting their property in an even and stable condition so as to be free of any trip hazards.

§ 296-1.3. Snow and ice removal, duties of Owners or occupants of residential properties; time for removal. [Added July 15, 2020 by Ord. No. 20-054]

Every Owner, occupant or Person having charge of a residential building or vacant lot shall, in case of a snowfall, clear any snow and ice from the Sidewalks, Curb and Gutters thereof and create a path of travel along the Sidewalk which is at least 48 inches wide in front of the building or lot, space permitting, as well as on the side thereof, space permitting, if the building or lot faces on more than one (1) Street, within eight hours after the snow has stopped falling. If the snowfall ceased during the night, removal shall be completed no later than eight hours after sunrise. For corner properties where the property faces

more than one (1) Street, every Owner, occupant or Person having charge of said property must also clear all corner ramps and adjacent Gutters and cross walks of snow and ice up to the Plow Line, in the same manner as set forth in this article and within the same timeframes as set forth in this article.

§ 296-1.4. Snow removal, duties of Owners or occupants of commercial properties and nonresidential structures; time for removal. [Added July 15, 2020 by Ord. No. 20-054]

Every Owner, occupant or Person having charge of a commercial building or non-residential structure shall, in case of a snowfall, clear any snow and ice from the Sidewalks and Gutters thereof and create a path of travel along the Sidewalk which is at least forty-eight (48) inches wide in front of the building or structure, space permitting, as well as on the side thereof, space permitting, if the building or structure faces on more than one (1) Street, within four (4) hours after the snow has stopped falling. If the snowfall ceased during the night, removal shall be completed no later than four (4) hours after sunrise. For corner properties where the property faces more than one (1) Street, every Owner, occupant or Person having charge of said property must also clear all corner ramps and adjacent Gutters and cross walks of snow and ice up to the Plow Line in the same manner as set forth in this article and within the same timeframes set forth in this article.

§ 296-1.5. Depositing of snow or ice into the Street, Gutter or sewer strictly prohibited. [Added July 15, 2020 by Ord. No. 20-054]

No Person shall shovel, throw or Deposit any snow or ice from any Sidewalk or Gutter into the Street after it has been plowed by the City. No Person shall shovel, throw or Deposit any snow or ice from any Sidewalk or Gutter into the sewer. Any Person finding it necessary to clear a Sidewalk or Gutter, after said Street has been cleared of snow and opened to vehicular traffic, shall bank and pile the snow from the Sidewalk within three (3) feet from the Curb, space permitting.

§ 296-1.6. Ice removal, monitoring. [Added July 15, 2020 by Ord. No. 20-054]

No Owner, occupant or Person having charge of any building or vacant lot shall permit any ice to remain upon any Sidewalk so as to impede Pedestrian traffic. Owners, occupants or people having charge of any building or vacant lot shall continuously monitor the condition of the Sidewalks abutting their property to assure that the Sidewalks remains free of ice even after it is initially cleared.

§ 296-1.7. Use of rock salt prohibited; approved de-icing chemicals. [Added July 15, 2020 by Ord. No. 20-054]

The use of rock salt to melt snow and ice upon Streets and Sidewalks is strictly prohibited as is the use of any other substance known to be harmful to animals and/or corrosive to pavement and concrete. In case any snow or ice shall be so hardened or in such condition that it cannot be removed without damaging the pavement, the Owner, occupant or Person having charge of the building or lot shall spread the following approved de-icing chemicals over same: calcium chloride, calcium magnesium acetate, magnesium chloride, potassium acetate, potassium chloride or urea.

§ 296-1.8. Removal by City within 12 hours of daylight after snowfall; costs to become lien. [Added July 15, 2020 by Ord. No. 20-054]

In addition to the penalties provided in Chapter 1, General Provisions, § 1-25 for failure to comply with this article within the time specified in § 296-1.3 and § 296-1.4, if the snow or ice is not removed within 12 hours of daylight after snowfall, then the snow and ice may be removed by and under the direction of the Director of the Department of Public Works. The expense of removal shall be charged against the Owner of the abutting property. After the removal, the Director of the Department of Public Works shall file a certification of costs with the governing body. If the governing body approves the certification and, the cost of the removal shall be charged to the property Owner and the charge shall become a lien and tax upon the property and be added to and become a part of the taxes next levied and assessed thereon. The lien and tax shall be enforced and collected by the Tax Collector in the same manner as any other taxes, all in accordance with N.J.S.A. 40:65-12.

§ 296-1.9. Duty of Owners, occupants and workers; Littered Conditions prohibited; Depositing materials in Streets or Gutters. [Added July 15, 2020 by Ord. No. 20-054]

No Owner, occupant or Person acting as an agent, janitor or superintendent in charge of any house, apartment, office building, store, stand, factory, garage or other type of building or vacant lot or lots shall maintain and allow the Sidewalk or any part of the front or sides of such premises, facing upon any Street, to be in a Littered Condition, as defined herein, at any time.

Any Owner, occupant or any Person acting as agent, janitor or superintendent in charge of any property shall regularly sweep, brush and otherwise clean the Sidewalk and any part of the front or sides thereof facing upon a Street; provided, however, that the Owner, occupant or Person in charge of any store, factory, office, building, garage, stand or other commercial property shall sweep, brush or otherwise clean the Sidewalk, Curbs and Gutters and any part of the front or sides thereof facing upon a Street daily, except Sundays, preferably at the closing hours.

No Owner, occupant or Person in charge of such property, or any Person undertaking for hire or otherwise to sweep, brush and otherwise clean said refuse, shall sweep any refuse, sweepings or residue thereof into or upon the Gutter or any part of a Street and Deposit or leave same therein or thereupon.

No Person or firm who, for hire or otherwise, who performs any work in front of any premises shall leave same in a dirty and Littered Condition, but shall remove said refuse pursuant to the provisions of this article.

No Owner, occupant or Person in charge of any property shall fail or refuse to sweep, brush and otherwise clean and remove refuse from any and all vestibules, entrances, passageways, stoops, cellar steps, courtyards, frontal or otherwise, or porches of any building, store, office or factory; entrances on the Sidewalk in front of any show or store window or exterior show or display cases; driveway or delivery, receiving, shipping or loading platform; or theater, hall or auditorium entrance or fire exit of any nature. No such Person shall maintain or allow to exist in connection therewith a dirty and Littered Condition, as defined in this article, and under no circumstances shall the Owner, occupant or Person in charge of any property or any Person who undertakes, for hire or otherwise, the sweeping and cleaning of the interior of any building or store sweep any refuse therefrom into the Sidewalk.

In the event that the Person owning the property cannot be located within the limits of the City, or any such Owner fails or refuses to comply with this article, the Department of Public Works, at the direction

of the Director of Public Works, upon two (2) days' notice, may undertake to sweep, brush and clean said Sidewalk and charge the actual labor expense thereof to the Owner by including same in the Owner's next annual tax bill.

§§ 296-1.10, 296-1.11. Reserved.

§ 296-1.12. Maintenance of water/sewer service pipe/sewer main connection—Responsibility of property Owner. [Added July 15, 2020 by Ord. No. 20-054]

The Owner of each property into which running water is introduced via the City's water main and into which said property discharges its sanitary and/or stormwater (wastewater) into the City's storm or sanitary or combined sewer main, shall be responsible for the maintenance of the service pipes which run under the Street and Sidewalk and which connects his or her premises to the water and sewer mains. Accordingly, each property Owner is responsible for replacement of that portion of the Street and/or Sidewalk which is disturbed by the replacement of said service pipes. Service connection failures at the point of the service connection to any water sanitary/storm/combined sewer main, shall be the sole responsibility of the connected property Owner to repair the connection(s) and restore the Street, Sidewalk and Curbs that are disturbed.

§ 296-1.13. Uneven Sidewalks and replacement of Sidewalks—Responsibility of property Owner. [Added July 15, 2020 by Ord. No. 20-054]

The responsibility for maintaining Sidewalks and Curbs in a safe condition and free from all trip hazards caused by tree roots, broken or cracked concrete or subsurface shifting shall rest with the property Owner whose property abuts said Sidewalk and/or Curb.

The responsibility for replacing Sidewalks and Curbs shall rest with the property Owner whose property abuts said Sidewalk and/or Curb. Any property Owner seeking to replace a Sidewalk and/or Curb shall first apply for a Permit to do so in a format and manner specified by the Division of Engineering, Traffic and Transportation and must pay the fees set forth in Chapter 160. Should the repair/replacement of a Sidewalk or Curb affect a Street tree as defined by Chapter 321, the Applicant must also obtain approval from the Division of Parks and Forestry.

§ 296-1.14. Notices to property Owner. [Added July 15, 2020 by Ord. No. 20-054]

All notices to Owners herein provided for may be signed by a Person designated by the appropriate City official, and such notices may be posted upon the property or mailed to the Owner's address as it appears on the tax records of the City, and for all purposes of this Chapter, the Owner shall be considered as the Person under the primary obligation to comply herewith.

§ 296-1.15. City's obligation. [Added July 15, 2020 by Ord. No. 20-054]

In undertaking enforcement of this Chapter, the City is assuming an undertaking only to promote the general welfare. It is not assuming, nor is it imposing on its officers and employees, an obligation for breach of which it is liable in money damages to any Person who claims that such breach proximately caused injury.

§ 296-1.16. Severability. [Added July 15, 2020 by Ord. No. 20-054]

If any part of this Chapter, or the application thereof to any Person or circumstances, is held invalid, the remainder of this Chapter, including the application of such part of provision to other Persons or circumstances, shall not be affected thereby and shall continue in full force and effect. To this end, provisions of this Chapter are severable.

ARTICLE II
Closure of the Public Right-of-Way

§ 296-2.1. Closure of the Public Right-of-Way; Permit required. [Added July 15, 2020 by Ord. No. 20-054; amended 1-10-2024 by Ord. No. 23-126]

Aside from the limited situations listed in this section, it is unlawful for any Person or entity to close or partially close any portion of the Public Right-of-Way to vehicular, Pedestrian, and cyclist traffic without first obtaining a Permit from the Division authorizing such closure. Any entity seeking to close or partially close the Public Right-of-Way, including autonomous agencies of the City, must apply for a Permit to do so.

Permit requirements pertaining to Emergency closures are addressed in § 296-2.10.

§ 296-2.2. Applications for Permits to close the Public Right-of-Way, contents. [Added July 15, 2020 by Ord. No. 20-054]

Applications shall be submitted at least 14 Business Days before the proposed closing in a format and manner specified by the Division and shall contain:

(1) The name, address, telephone, and facsimile number of the Applicant, including an Emergency phone number and contact whereby the Applicant can be reached twenty-four (24) hours per day, seven (7) days per week, and, if applicable, the name, address, telephone, and facsimile number of the Owner of the subject property requesting the closure. If the Owner is a corporation, then the registered agent of the corporation.

(2) A description of the location, scope, purpose, start date and duration of the closure.

(3) Written acknowledgement that the Applicant and Owner are in/will be in compliance with all terms and conditions of this article, the orders and regulations of the Division and the City's Traffic Control Manual and that the Applicant is not subject to any outstanding assessment, fees, penalties, that have been finally determined by the City or a court of competent jurisdiction.

(4) Proof of insurance as required by § 296-2.7.C.

(5) Any other information that may reasonably be required by the Division.

§ 296-2.3. Applications for Permits to close the Public Right-of-Way, procedures. [Added July 15, 2020 by Ord. No. 20-054]

After the receipt of an application for a Permit to close the Public Right-of-Way, the Municipal Engineer, within three Business Days, shall determine whether an application is complete. If the application is deemed to be incomplete, the Municipal Engineer shall promptly advise the Applicant in a written, electronic, or facsimile communication of the reasons for rejecting the application as incomplete. Within ten Business Days of receipt of a complete application, the Municipal Engineer shall deny, approve, or conditionally approve the application. The Municipal Engineer may waive the time limitations for filing an application and may extend the time to review an application.

If the application is approved or conditionally approved, the Municipal Engineer shall issue a Permit to the Applicant upon payment of all fees required under § 160-1.JJ. Any and all Permit fees for autonomous agencies of the City seeking to close the Public Right-of-Way shall be waived. The Municipal Engineer may impose conditions on the Permit with specified requirements that preserve and maintain the public's health, safety, welfare, and convenience.

If the application is denied, the Municipal Engineer shall advise the Applicant in a written, electronic, or facsimile communication of the denial and the basis for the denial.

§ 296-2.4. Standards for issuance of Permits; waiver of standards in appropriate cases. [Added July 15, 2020 by Ord. No. 20-054]

A. The Municipal Engineer may issue a Permit authorizing the closing of the Public Right-of-Way when, based upon the information contained in the Permit and any other relevant information if all of the following circumstances exist:

(1) The Applicant has not made any false or misleading statement of material fact in the application for a Permit, or any other document required by the Municipal Engineer.

(2) The application complies with the provisions set forth in this article and the Applicant has paid in advance any fee required and agrees to the conditions imposed in the Permit.

(3) The time, duration and extent of the temporary closing will not substantially disrupt the orderly and safe movement of other traffic, Pedestrian or vehicular.

(4) The closing will not unduly affect fire, police and ambulance response time to areas contiguous to the Public Right-of-Way to be closed.

(5) The closing will not unduly interfere with the orderly operation of parks, hospitals, churches, schools or other public and quasi-public institutions within the City, with the exception of bona fide Emergency situations. In such cases the affiliated City Department, Division or Agency will coordinate directly with the management entity of the affected aforementioned institutions.

(6) The Applicant has provided reasonable means for informing all Persons within the Public Right-of-Way to be closed and all Persons participating in the closing of the terms of the Permit and all applicable laws and ordinances.

(7) The closing will not conflict with any other temporary closings for which a Permit has be granted.

B. The Municipal Engineer may waive one or more of the requirements of § 296-2.4.A if he or she finds that such waiver is warranted.

C. Once approved, the Municipal Engineer shall forward a copy of the Permit to the City Clerk who shall keep same on file for inspection.

§ 296-2.5. Notice of issuance or denial of Permit; appeal procedure. [Added July 15, 2020 by Ord. No. 20-054]

A. The Municipal Engineer shall furnish the Applicant with written notice of the issuance or denial of a Permit within ten Business Days after confirmation of the completed application.

B. An Applicant may appeal the denial of a Permit to the Business Administrator within two Business Days of the date of denial by the Municipal Engineer. The Business Administrator or his designated representative shall set a hearing on the appeal within 48 hours. After holding a hearing, the Business Administrator may reverse, affirm or modify the decision of the Municipal Engineer.

C. The Business Administrator may waive the time limitations in this section for filing an appeal if either of them finds that unusual circumstances for good cause exist and no unreasonable burden upon the City or its citizens will be created by any waiver.

§ 296-2.6. Permits to close the Public Right-of-Way, scope, terms and limitations. [Added July 15, 2020 by Ord. No. 20-054]

A. Every Permit shall specify the scope of the closure, the location, start date and duration of the closure, the hours of the day in which the closure will be allowed, the Permittee to whom the Permit is issued, and any conditions placed on the Permit. It is unlawful for any Permittee to make, to cause, or permit to be made, any closure of the Public Right-of-Way outside the boundaries, times, and description set forth in the Permit.

B. Prior to the issuance of a Permit authorizing the closure of a Street, the Municipal Engineer or his or her designee may require to meet with the Applicant at which time the Applicant may be required to submit plans for ensuring the safe and orderly flow of vehicular traffic during the closure in accord with the City's Traffic Control Manual. Such plans, and any amendments the Municipal Engineer

shall require, will be submitted as part of the Applicant's request for a Permit. Nothing in this section shall excuse the Permittee from complying with any other regulations the Division may have with respect to the closure of Streets.

C. Permits are not transferable. Each separate Owner and/or their designated Applicant shall apply for their own respective Permit.

D. Permittees shall be required to reimburse the City for the cost of Personnel who are required to work overtime hours, work hours other than regular shift hours, or perform special duties as a consequence of the closure of the Public Right-of-Way.

§ 296-2.7. Liability and indemnification. [Added July 15, 2020 by Ord. No. 20-054]

Every Permittee shall comply with the indemnity and insurance provisions set forth below:

A. Liability upon Permittee. Each Permittee is wholly responsible for the foreseeable consequences of a complete or partial closure of the Public Right-of-Way. The issuance of any Permit, inspection, repair, or suggestion, approval, or acquiescence of any Person affiliated with the City shall not excuse any Permittee from such liability.

B. Indemnification, defense, and hold harmless clause.

(1) Each Permittee shall agree on its behalf and that of any successor or assign, to indemnify, defend, protect, and hold harmless the City, including, without limitation, each of its commissions, departments, officers, agents, and employees (hereinafter in this article collectively referred to as "the City" or "City") from and against any and all actions, claims, costs, damages, demands, expenses, fines, injuries, judgements, liabilities, losses, penalties, or suits, including, without limitation, attorney's fees and costs (collectively, "claims") of any kind allegedly arising directly indirectly from:

(a) Any act by, omission by, or negligence of, the Permittee or its subcontractors, or the officers, agents, or employees of either, while engaged in the activities authorized by the Permit, or while in or about the property subject to the Permit for any reason connected in any way whatsoever with the performance of the activities authorized by the Permit, or allegedly resulting directly or indirectly from the maintenance or installation of any equipment, Facility(ies), or structures authorized under the Permit;

(b) Any accident, damage, death, or injury to any contractor or subcontractor, or any officer, agent, or employee of either of them, while engaged in the performance of the activities authorized by the Permit, or arising from liens or claims for services rendered in relation to the activities authorized by the Permit;

(c) Any accident, damage, death, or injury to any Person(s) or accident, damage, or injury to any real or Personal property in, upon, or any way allegedly connected the activities authorized by the Permit from any cause or claims arising at any time; and,

(2) The Permittee, at no cost or expense to the City, must indemnify, define, and hold harmless the City against any claims, regardless of the alleged negligence of the City or any other party, except only for claims resulting directly from the sole negligence or willful misconduct of the City. Each Permittee specifically acknowledges and agrees that it has an immediate and independent obligation to defend the City from any claims which actually or potentially fall within the indemnity provision, even if the allegations are or may be groundless, false, or fraudulent, which obligation arises at the time of such claim is tendered to the Permittee by the City and continues at all times thereafter. In addition, the City shall have a cause of action for indemnity against each Permittee for any costs the City may be required to pay as a result of defending or satisfying any claims that arise from or in connection with the Permit, except only for claims resulting directly from the sole negligence or willful misconduct of the City, Permittee agree that the indemnification obligations assumed under the Permit shall survive expiration of the Permit.

C. Insurance.

(1) Each Permittee shall maintain in full force and effect, throughout the term of the Permit, an insurance policy or policies issued by an insurance company or companies satisfactory to the City's Business Administrator and Risk Manager. Policy or policies shall afford insurance covering all operations, vehicles, and employees, as follows:

(a) Workers' compensation with employers' liability limits not less than statutory requests of $100,000.00.

(b) Commercial general liability insurance with limits not less than $2,000,000.00 each occurrence combined single limit for bodily injury and property damage, including contractual liability; Personal injury; explosion, collapse, and underground products; and completed operations.

(c) Business automobile liability insurance with limits not less than $1,000,000.00 each occurrence combined single limit bodily injury and property damage, including owned, non-owned and hired auto coverage, as applicable.

(2) Said policy or policies shall include the City as additional insured. Said policy or policies shall afford full coverage for any claims based on acts, omissions, injury, or damage which occurred or arose, or the onset of which occurrence occurred or arose, in whole or in part, during the policy period. Said policy or policies shall be endorsed to provide 30 calendar days' advance written notice of cancellation or any material change to the Division.

(3) Should any of the required insurance be provided under a claims-made form, the insured Permittee shall maintain in such coverage continuously throughout the term of the Permit, and, without lapse, for a period of one year beyond the expiration or termination of the Permit, to that effect that, should occurrences during the term of the Permit, or up to one year thereafter, give rise to claims made after expiration or termination of the Permit, such claims shall be covered by such claims-made policies.

(4) Such insurance shall in no way relieve or decrease Permittee's obligation to indemnify the City as set forth herein or any other provision of this article or Chapter.

(5) Certificates of insurance, in the form satisfactory to the Division and the Risk Manager, evidencing all coverages, above, shall be furnished to and maintained on file with the Division before issuance of a Permit, with complete copies of policies furnished promptly upon the Division's request.

§ 296-2.8. Expiration of Permit for non-commencement of work. [Added July 15, 2020 by Ord. No. 20-054]

Permits shall be void if the closure has not begun within five (5) calendar days of the start date specified in the Permit, provided, however, that the Municipal Engineer, in his or her discretion, may issue extensions to the start date, the duration of the closure, or both, upon written request of the Permittee.

§ 296-2.9. Permit to be posted at site of closure. [Added July 15, 2020 by Ord. No. 20-054]

The Permit or a photo duplicate shall be posted and be available for review at the site of the closure for the duration of the closure as prescribed in the City's Traffic Control Manual and shall be shown, upon request, to any police officer or any employee of a City agency, board, commission, or department with jurisdictional responsibility over activities in the Public Right-of-Way.

§ 296-2.10. Emergency closure of the public right of-way; police required. [Added July 15, 2020 by Ord. No. 20-054]

Only the Department of Public Safety, the Office of Emergency Management and the Division can declare an Emergency for purpose of closing or allowing others to close the Public Right-of-Way. Nothing contained in this article shall be construed to prevent any Person or entity from closing the Public Right-of-Way if doing so is necessary for the preservation of life or property or for the restoration of interrupted utility service provided by a utility provider or Municipal Agency and when such necessity arises during days or times when the Division is closed. In such an event, if the Public Right-of-Way must be completely or partially closed pursuant to this section, such Person or entity shall notify the City's Office of Emergency Management for permission to close the Public Right-of-Way and, if approved, the Person or entity shall apply for an Emergency Permit within eight hours after the Division's offices are first opened. The Applicant for an Emergency Permit shall submit a written statement of the basis of the Emergency action and describe and any work which must be performed to correct the Emergency.

Once an Emergency is declared, police will be dispatched to the site of the Emergency until a police presence is deemed to no longer be necessary by the Department of Public Safety and the Office of Emergency Management in coordination with the Division.

§ 296-2.11. Closure of the public right-of-way. [Added July 15, 2020 by Ord. No. 20-054; amended 6-25-2025 by Ord. No. 25-073]

A. Applications to permit the temporary closing of the Public Right-of-Way for a public assembly as defined in Chapter 122 are included with the application for public assemblies available through the Office of Cultural Affairs. The following closures shall require approval of the council prior to the issuance of a permit: **[Amended 4-9-2025 by Ord. No. 25-032]**

(1) All full and half marathons of any length.

At minimum, an application for a street closure shall contain:

(1) The name, address, telephone, and email address or facsimile number of the Applicant.

(2) The Street(s) to be closed.

(3) The date or dates of the temporary Street closing with daily hours of operation from 10:00 a.m. to 11:00 p.m. on Sunday through Thursday and from 10:00 a.m. to 12:00 midnight on Friday and Saturday. Any closure beyond these hours shall require the approval of the Municipal Council.

(4) The estimated number of Persons who will participate in the public assembly for which the closing is sought.

(5) Whether parking is requested to be restricted or prohibited during the closing.

(6) Whether or not charity, gratuity or offerings will be solicited or accepted or food, beverages or any merchandise will be sold.

(7) Whether the temporary closing will occupy all or any part of the Street.

(8) Whether any open flame source or combustibles will be used.

(9) Whether any alcohol will beverages will be sold or served.

(10) Any other information which the Municipal Engineer considers reasonably necessary in order to carry out the provisions of this article.

B. A Street may be temporarily closed for a Block party as defined in Chapter 122 to be conducted within an area not exceeding one City Block under the following conditions:

(1) At least two-thirds of the area is residentially zoned.

(2) The majority of the Owners, residents or tenants of properties fronting upon the Block to be closed and within 100 feet of all properties fronting on the Block to be closed consent to the closing via original signature from each on a formal petition, to be submitted with the original application.

(3) The event is sponsored solely by the Owners, residents or tenants and is not for commercial or advertising purposes or profit.

(4) The application for a Permit is filed by a bona fide resident of the Street to be closed. Such a bona fide resident may file individually or through any civil or cultural organization of which the resident is a member in the later case, the resident must be listed on the application. Proof of residency will also be required to be submitted with the original application.

C. An application to close the Public Right-of-Way for a public assembly shall be filed not less than 60 days before the scheduled date of the closing. Failure to file within this period is sufficient ground for denial of the Permit.

D. Prior to the issuance of a Permit, Applicants must comply with all applicable State laws and City ordinances, including but not limited to laws and ordinances governing charitable solicitations, sale of food, beverages and merchandise and the use of candles, torches or other combustibles.

E. Permittees shall be required to reimburse the City for the cost of City Personnel who are required to work overtime hours, work hours other than regular shift hours, or perform special duties as a consequence of the Public Right-of-Way being closed for a public assembly.

§ 296-2.12. Traffic Control Manual. [Added July 15, 2020 by Ord. No. 20-054]

In addition to any of the requirements set forth in this article, all complete and partial closures of the Public Right-of-Way shall be performed in accordance with the Traffic Control Manual, as adopted by Ord. No. 20-045 on June 24, 2020 (formerly known as the Traffic Barricade Manual) as promulgated by the Division and adopted by ordinance of the Municipal Council. The Traffic Control Manual shall be on file in the Office of the City Clerk and is incorporated by reference herein. A violation of the Traffic Control Manual shall be deemed a violation of § 296-2.12.

§ 296-2.13. Posting of warning signs. [Added July 15, 2020 by Ord. No. 20-054]

In accordance with the Traffic Control Manual, warning signs notifying the public to the closure of a Street(s) and no parking signs, if applicable, must be posted in advance of any anticipated Street closing in any Street or portion of a Street prior to and during the time of said closing.

§ 296-2.14. Revocation of Permit. [Added July 15, 2020 by Ord. No. 20-054]

Any Permit issued under this article shall contain conditions reasonably necessary to minimize the hazards to vehicular and Pedestrian traffic and the public health, safety and welfare of the City's residents. Accordingly, any Permit for the temporary closure of the Public Right-of-Way may be revoked by the Municipal Engineer or the Public Safety Director or their assigns at any time when by reason of Emergency, disaster, disorder, traffic conditions, violation of the conditions of the Permit or undue burden on public services, they determine that the health, safety and welfare of the City requires revocation. Notice of revocation of a Permit shall be delivered in writing to at least one (1) Person named upon the Permit by e-mail, Personal service or by certified mail; or if the closing has commenced, notice may be given orally and in writing by email, by Personal contact or service or by telephone.

§ 296-2.15. Enforcement. [Added July 15, 2020 by Ord. No. 20-054]

The Department of Public Safety and the Division of Engineering, Traffic and Transportation shall have the authority to enforce this article.

ARTICLE III

Excavations Within the Public Right-of-Way

§ 296-3.1. Permit required to excavate. [Added July 15, 2020 by Ord. No. 20-054]

Aside from the limited situations listed in this section, it is unlawful for any Person or entity to excavate in the Public Right-of-Way without first obtaining a Permit from the Division authorizing such Excavation. Any entity seeking to excavate within the Public Right-of-Way, including autonomous agencies of the City, must apply for a Permit to do so. The Municipal Engineer reserves the right to terminate any Excavation if it should become too disruptive. No Permit to excavate shall be required under the following circumstances:

When an Excavation shall be completed within a period of 24 hours or less, by the City or any of its related agencies or contractors acting on either of their behalf, to install a parking meter, Street light, Street tree, traffic sign, traffic signal and/or related appurtenances. Permits to excavate for the purpose of connecting residential dwellings to municipal sewer and water utilities shall be issued by the Construction Code Official in coordination with the Division. All other Permits shall be issued directly by the Division. Sewer and water connection fees shall be coordinated by and paid to the Jersey City Municipal Utilities Authority and are separate from any Permit fees collected.

Any exemption from the requirement to obtain a Permit to excavate does not relieve the Applicant from the requirement to obtain a Permit to close the Public Right-of-Way as set forth in Article II even if the Applicant is an agency, authority, board, commission, department, or subDivision of the City or a contractor acting on their behalf.

Permit requirements pertaining to Emergency Excavation are addressed in § 296-3.12.

§ 296-3.2. Applications for Permits to perform an Excavation, contents. [Added July 15, 2020 by Ord. No. 20-054]

Applications shall be submitted at least 14 Business Days before the proposed closing in a format and manner specified by the Division and shall contain:

(1) The name, address, telephone, and facsimile number of the Applicant, including an Emergency phone number and contact whereby the Applicant can be reached 24 hours per day, seven (7) days per week. Where an Applicant is not the Owner of the Facility to be installed, maintained, or repaired in the Public Right-of-Way, the application also shall include the name, address, telephone, and facsimile number of the Owner.

(2) A description of the location, purpose, method of Excavation, and surface and subsurface area of the proposed Excavation.

(3) A plan showing the proposed location and dimensions of the Excavation and the Facilities to be installed, maintained, or repaired in connection with the Excavation, and such other details as the Division may require.

(4) A copy or other documentation of the franchise, easement, encroachment Permit, license, or other legal instrument that authorizes the Applicant or Owner to use or occupy the Public Right-of-Way for the purpose described in the application. Where the Applicant is not the Owner of the Facility or Facilities to be installed, maintained, or repaired, the Applicant must demonstrate in a form and manner specified by the Division that the Applicant is authorized to act on behalf of the Owner.

(5) The proposed start date of Excavation.

(6) The proposed duration of the Excavation, which shall include the duration of the restoration of the Public Right-of-Way physically disturbed by the Excavation.

(7) Written acknowledgment that all material to be used in the Excavation, installation maintenance, or repair of Facilities, and restoration of the Public Right-of-Way, comply with all applicable State and Federal environmental laws and regulations.

(8) Written acknowledgement that the Applicant and Owner are in compliance with all terms and conditions of this Chapter, the orders, regulations, and standard plans and specifications of the Division, and that the Applicant/Owner are not subject to any outstanding assessment, fees, penalties, that have been finally determined by the City or a court of competent jurisdiction.

(9) Proof of insurance as required by § 296-3.5.C.

(10) A Deposit as required by § 296-3.6.

(11) Any other information that may reasonably be required by the Municipal Engineer.

An Applicant is permitted to maintain documents complying with this section on file with the Division rather than requiring submission of such documents with each separate application.

Coordination. The Municipal Engineer shall review the plans and identify conflicts and opportunities for coordination of Excavations. The Municipal Engineer shall notify affected Owners and Permittees of such conflicts and opportunities to the extent necessary to maximize coordination of Excavation. Each Applicant shall coordinate, to the extent practicable, with each potentially affected Owner and Permittee to minimize disruption in the Public Right-of-Way.

§ 296-3.3. Applications for Permit to perform an Excavation, procedures. [Added July 15, 2020 by Ord. No. 20-054]

After the receipt of an application for a Permit to excavate, the Municipal Engineer, within three Business Days, shall determine whether an application is complete. If the application is deemed to be incomplete, the Municipal Engineer shall promptly advise the Applicant in a written, electronic, or facsimile communication of the reasons for rejecting the application as incomplete. Within ten Business Days of receipt of a complete application, the Municipal Engineer shall deny, approve, or conditionally approve the application.

(1) If the application is approved or conditionally approved, the Municipal Engineer shall issue a Permit to the Applicant upon payment of all fees required under § 160-1.JJ. Any and all Permit fees for autonomous agencies of the City seeking to excavate a City Street shall be waived. The Municipal Engineer may impose conditions on the Permit with specified requirements that preserve and maintain the public's health, safety, welfare, and convenience.

(2) If the application is denied, the Municipal Engineer shall advise the Applicant in a written, electronic, or facsimile communication of the denial and the basis for the denial.

(3) The non-payment of fines for a prior Excavation, or the continued existence of a condition in violation of this Chapter at other Excavation sites, shall be grounds for the Municipal Engineer to deny a Permit to the responsible Person until such fines or citations have been paid and the condition corrected.

(4) The Municipal Engineer reserves the right to waive the time limitations for filing an application, and may, in his or her discretion, extend the time to review an application.

§ 296-3.4. Excavation Permit, scope, terms and limitations. [Added July 15, 2020 by Ord. No. 20-054]

A. Every Permit shall specify the location, extent, and method of the Excavation, the start date and duration of the Excavation, the hours of the day in which work will be allowed, the Permittee to whom the Permit is issued, and any conditions placed on the Permit. It is unlawful for any Permittee to make, to cause, or Permit to be made, any Excavation in the Public Right-of-Way outside the boundaries, times, and description set forth in the Permit.

B. No Excavation shall interfere with the free flow of vehicular or Pedestrian traffic without the approval of the Municipal Engineer. Prior to the issuance of a Permit authorizing an Excavation with the potential to disrupt the free flow of vehicle traffic, the Applicant shall meet with the Municipal Engineer, or his designee, at which time the Applicant shall submit plans for ensuring the safe and orderly flow of vehicular traffic during Excavation work. Such plans, and any amendments the Municipal Engineer or his designee shall require, will be submitted as part of the Applicant's request for a Permit. Nothing in this section shall excuse the Permittee from complying with any other regulations the Division may have with respect to the closure of Streets.

C. Any contractor hired to perform a Street Excavation in the City shall provide proof that it is licensed and bonded with the State of New Jersey, and the Municipal Engineer is authorized to require a bond in an amount not less than $25,000.00 to assure that any road opening on roadways is restored satisfactorily. The restoration shall include milling and repaving of the area so as to blend uniformly with the adjacent roadway as per the conditions stated in the Permit, including restoration of pavement markings, signage and all other appurtenances.

D. All Permittees must abide by the liability, indemnification and insurance requirements set forth in § 296-3.5, pay the Deposit set forth in § 296-3.6 and pay all required fees as set forth in § 160-1.JJ.

E. Permits are not transferable without the express written approval of the Municipal Engineer.

F. Once approved, the Municipal Engineer shall forward a copy of the Excavation Permit to the City Clerk who shall keep same on file for inspection.

§ 296-3.5. Liability and indemnification. [Added July 15, 2020 by Ord. No. 20-054]

Every Permittee shall comply with the Facility, indemnity and insurance provisions set forth below:

A. Liability upon Owner and Permittee. Each Owner and Permittee is wholly responsible for the quality of the Excavation performed in the Public Right-of-Way and both the Owner and Permittee are jointly and severally liable for all consequences of any condition of such Excavation and any Facilities installed in the Public Right-of-Way. The issuance of any Permit, inspection, repair, or suggestion, approval, or acquiescence of any Person affiliated with the City shall not excuse any Owner or Permittee from such responsibility.

B. Indemnification, defense, and hold harmless.

(1) Each Owner and Permittee shall agree on its behalf and that of any successor or assign to indemnify, defend, protect, and hold harmless the City, including, without limitation, each of its commissions, departments, officers, agents, and employees (hereinafter in this subsection collectively referred to as "the City" or "City" from and against any and all actions, claims, costs, damages, demands, expenses, fines, injuries, judgements, liabilities, losses, penalties, or suits, including, without limitation, attorney's fees and costs (collectively, "claims") of any kind allegedly arising directly indirectly from:

(a) Any act by, omission by, or negligence of, Owner or Permittee or its subcontractors, or the officers, agents, or employees of either, while engaged in the performance of the Excavation authorized by the Permit, or while in or about the property subject to the Permit for any reason connected in any way whatsoever with the performance of the Excavation authorized by the Permit, or allegedly resulting directly or indirectly from the maintenance or installation of any equipment, Facility(ies), or structures authorized under the Permit;

(b) Any accident, damage, death, or injury to any contractor or subcontractor, or any officer, agent, or employee of either of them, while engaged in the performance of the Excavation authorized by the Permit, or arising from liens or claims for services rendered or labor or materials furnished in or for the performance of the Excavation authorized by the Permit;

(c) Any accident, damage, death, or injury to any Person(s) or accident, damage, or injury to any real or Personal property in, upon, or any way allegedly connected with the Excavation authorized by the Permit from any cause or claims arising at any time; and,

(d) Any release or discharge, or threatened release or discharge, of any hazardous material caused or allowed by Permittee about, in, on, or under, the Excavation site subject to the Permit or the environment. As used herein, "hazardous material" means any gas, material, substance, or waste which, because of its quantity, concentration, or physical or chemical characteristics, is deemed by any federal, state, or local government authority to pose a present or potential hazard to human health or safety or to the environment. "Release" when used with respect to hazardous materials shall include any actual or imminent disposing, dumping, emitting, emptying, escaping, injecting, leaching, leaking, pumping, pouring, or spilling of such material.

(2) The Permittee, at no cost or expense to the City, must indemnify, defined, and hold harmless the City against any claims, regardless of the alleged negligence of the City or any other party, except only for claims resulting directly from the sole negligence or willful misconduct of the City. Each Owner or Permittee specifically acknowledges and agrees that it has an immediate and independent obligation to defend the City from any claims which actually or potentially fall within the indemnity provision, even if the allegations are or may be groundless, false, or fraudulent, which obligation arises at the time of such claim is tendered to Owner or Permittee by the City and continues at all times thereafter. In addition, the City shall have a cause of action for indemnity against each Owner and Permittee for any costs the City may be required to pay as a result of defending or satisfying any claims that arise from or in connection with the Permit, except only for

claims resulting directly from the sole negligence or willful misconduct of the City, Owner and Permittee agree that the indemnification obligations assumed under the Permit shall survive expiration of the Permit or completion of Excavation.

C. Insurance.

(1) Each Owner or Permittee shall maintain in full force and effect, throughout the term of the Permit, an insurance policy or policies issued by an insurance company or companies satisfactory to the City's Business Administrator and Risk Manager. Policy or policies shall afford insurance covering all operations, vehicles, and employees, as follows:

(a) Workers' compensation with employers' liability limits not less than statutory requests of $100,000.00.

(b) Commercial general liability insurance with limits not less than $2,000,000.00 each occurrence combined single limit for bodily injury and property damage, including contractual liability; Personal injury; explosion, collapse, and underground products; and completed operations.

(c) Business automobile liability insurance with limits not less than $1,000,000.00 each occurrence combined single limit bodily injury and property damage, including owned, non-owned and hired auto coverage, as applicable.

(2) Said policy or policies shall include the City as additional insured. Said policy or policies shall afford full coverage for any claims based on acts, omissions, injury, or damage which occurred or arose, or the onset of which occurrence occurred or arose, in whole or in part, during the policy period. Said policy or policies shall be endorsed to provide 30 calendar days advance written notice of cancellation or any material change to the Department.

(3) Should any of the required insurance be provided under a claims-made form, the insured Owner or Permittee shall maintain in such coverage continuously throughout the term of the Permit, and, without lapse, for a period of one year beyond the expiration or termination of the Permit, to that effect that, should occurrences during the term of the Permit, or up to one year thereafter, give rise to claims made after expiration or termination of the Permit, such claims shall be covered by such claims- made policies.

(4) Such insurance shall in no way relieve or decrease Permittee's and Owner's obligation to indemnify the City as set forth herein or any other provision of this article or Chapter.

(5) Certificates of insurance, in the form satisfactory to the Division, evidencing all coverages, above, shall be furnished to and maintained on file with the Division before issuance of a Permit, with complete copies of policies furnished promptly upon the Division's request.

§ 296-3.6. Deposit. [Added July 15, 2020 by Ord. No. 20-054]

Each Applicant shall submit and maintain with the Division a cash Deposit in accordance with § 160-1.JJ or other security acceptable to the Division, securing the faithful performance of the obligations of the

Owner and/or Permittee under any Permit(s) to excavate and the compliance with all terms and conditions of this Chapter. Municipal excavators and other frequent Applicants may submit a single Deposit for multiple Excavations so long as a constant balance of $25,000.00 is maintained on file with the Division. If the Municipal Engineer has deducted from such a Deposit, the Utility or municipal excavator or other frequent Applicant must restore the full amount of the Deposit prior to the Department's issuance of a subsequent Permit.

§ 296-3.7. Additional fees for Excavation. [Added July 15, 2020 by Ord. No. 20-054]

In the instance where administration of this article or inspection of an Excavation is complex and therefore unusually costly to the Division, the Municipal Engineer, in his or her discretion, may require an Applicant or Permittee to pay any additional sum in excess of the amounts charged pursuant to § 296-4.1.D and E. This additional sum shall be sufficient to recover actual costs incurred by the Division and shall be charged solely on a time and materials basis. The Municipal Engineer also may charge for any time and material costs incurred by other agencies, authorities, boards, commissions, or departments of the City in connection with the administration or inspection of the Excavation. Whenever additional fees are charged, the Municipal Engineer shall provide in writing the basis for their imposition. The Municipal Engineer shall, whenever practicable, provide the Permittee with a cost estimate of additional fees to be levied by the Division prior to the issuance of a Permit.

§ 296-3.8. Collection, return, and refund of Deposit and fees; notice of Emergency Excavation. [Added July 15, 2020 by Ord. No. 20-054]

The Municipal Engineer shall establish procedures for billing, collection and refund of Deposits, fees, and other charges provided for in this article.

Notice of Emergency Excavation. For Emergency Excavation, the Permittee, or the Applicant if a Permit has not been issued, shall post and maintain notice at the site of the Excavation during the construction period. The notice shall include the name, 24-hour telephone number, and address of the Owner and Permittee, a description of the Excavation to be performed, and the duration of the Excavation. The notice shall be posted at least every 100 feet along any Block where the Excavation is to take place.

§ 296-3.9. Expiration of Permit for non-commencement of work. [Added July 15, 2020 by Ord. No. 20-054]

Permits shall be void if the Excavation has not begun within five calendar days of the start date specified in the Permit, if the Excavation is not pursued diligently to its conclusion, or if the Excavation, including restoration, has not been completed within the specified duration; provided, however, that the Municipal Engineer, in his or her discretion, may issue extensions to the start date, the duration of Excavation, or both upon written request from the Permittee.

§ 296-3.10. Permit to be posted at Excavation site. [Added July 15, 2020 by Ord. No. 20-054]

The Permit or a photo duplicate shall be posted and be available for review at the site of the Excavation for the duration of the Excavation and shall be shown, upon request, to any police officer or any employee of a City agency or department with jurisdictional responsibility over activities in the Public Right-of-Way.

§ 296-3.11. Joint Excavation. [Added July 15, 2020 by Ord. No. 20-054]

Municipal excavator and utility excavator. Whenever a municipal excavator(s) and utility excavator(s) propose Major Work in the same Block within a two-year period, the Division may condition Permits for such work in a manner that maximizes coordination and minimizes the total period of construction.

§ 296-3.12. Emergency Excavation. [Added July 15, 2020 by Ord. No. 20-054]

Only the Department of Public Safety, the Office of Emergency Management and the Municipal Engineer can declare an Emergency for purpose of closing or allowing others to excavate in the Public Right-of-Way.

Nothing contained in this article shall be construed to prevent any Person or entity from taking any action necessary for the preservation of life or property or for the restoration of interrupted service provided by a municipal or utility excavator when such necessity arises during days or times when the Division is closed. In the event that any Person takes any action to excavate or caused to be excavated the Public Right-of-Way pursuant to this section, such Person shall apply for an Emergency Permit within eight hours after the Division's offices are first opened. The Applicant for an Emergency Excavation Permit shall submit a written statement of the basis of the Emergency action and describe the Excavation performed and any work remaining to be performed.

Once an Emergency is declared, police will be dispatched to the site of the Emergency until a police presence is deemed to no longer be necessary by the Department of Public Safety and the Office of Emergency Management in coordination with the Municipal Engineer.

§ 296-3.13. Notice to Historic Preservation Officer (HPO); HPO empowered to stop Excavations; appeal of stop Excavation order to Historic Preservation Commission. [Added July 15, 2020 by Ord. No. 20-054]

The Municipal Engineer shall notify the Historic Preservation Office before any Excavation commences within the legal borders of Jersey City. The Historic Preservation Officer or an assigned agent(s) is empowered to be present during any Excavations. If the Excavation uncovers or discloses any structure, grave or artifact, which in the opinion of the Historic Preservation Officer may be of cultural, architectural or archaeological significance, he or she may order that Excavation to cease immediately, direct that the means or manner of Excavation be changed so as to avoid destruction or damage to any such items excavated, or direct that the Excavation cease temporarily until arrangements are made to protect, preserve or remove such items. Any Permittee shall have the right to appeal any such order of the Historic Preservation Officer to the Historic Preservation Commission, but no Excavation work may continue pending the decision of appeal.

§ 296-3.14. Notice to the public; notice of Major Work and Emergency Excavations. [Added July 15, 2020 by Ord. No. 20-054]

Any Permittee who excavates or causes to be made an Excavation in the Public Right-of-Way shall provide notice as follows:

A. Two- to 14-day Excavations. For Excavations that will be completed and restored within a period exceeding 24 hours but within 14 calendar days of commencement, the Permittee shall post and

maintain notice at the site of the Excavation. Such notice must clearly identify the Permittee, Permit number, the time, location and duration of Excavation, and a name and telephone number of a Person who can be contacted to respond to complaints and/or Emergencies related to the Excavation to be performed. The notice shall be posted at least every 100 feet along any Block where the Excavation is to take place at least 72 hours prior to commencement of the Excavation, Excavation project signs shall be in a format, quantity, and size specified by the Division.

B. Notice of Major Work. The Permittee shall post and maintain notice at the site of the Excavation at least five (5) calendar days prior to commencement of the Excavation in the same manner as above. The Permittee also shall deliver a written notice to each dwelling unit on the Block(s) affected by the Excavation. This written notice shall identify the name and address of the Owner and excavator, its Permit number, the name and phone number of a Person who can be contacted to respond to complaints and/or Emergencies and describe the location, time, manner, duration and purpose for the Excavation.

Before commencement of construction, a Permittee for Major Work shall post and maintain Excavation project signs at the site of the Excavation that describe the Excavation being done and bear the name, address, and 24-hour telephone number of a contact Person for the Owner and Permittee. Said Excavation projects signs shall be posted at least every 100 feet along any Block where the Excavation is to take place. Excavation project signs shall be in a format, quantity, and size specified by the Division.

C. Notice of Emergency Excavation. For Emergency Excavation, the Permittee, or the Applicant if a Permit has not been issued, shall post and maintain notice at the site of the Excavation during the construction period. The notice shall include the name, 24-hour telephone number, and address of the Owner and Permittee, a description of the Excavation to be performed, and the duration of the Excavation. The notice shall be posted at least every 100 feet along any Block where the Excavation is to take place.

In accordance with State law, specifically N.J.S.A. 48:2-73 through 80, and N.J.A.C. 14:2-1.1 through 6.5, any Person excavating in the Public Right-of-Way shall comply with the requirements regarding the making of subsurface Facilities. Prior to the issuance of any Permit, such Person shall provide the Division with its subsurface designation, Permit number or other information as may be necessary to properly identify the proposed Excavation pursuant to this statute.

§ 296-3.15. Reserved.

§ 296-3.16. Regulations concerning Excavation sites. [Added July 15, 2020 by Ord. No. 20-054]

Each Permittee shall be subject to requirements for Excavation sites that are set forth in Division orders or regulations. Such orders or regulations shall include, but not be limited to, the following measures:

(1) Protection of the Excavation. Each Permittee shall cover an open Excavation with steel plates ramped to the elevation of the contiguous Street, pavement, or other portion of the Public Right-of-Way, or otherwise protected in accordance with guidelines prescribed by the Division.

(2) Removal of excavated material. Each Permittee shall keep the area surrounding the Excavation clean and free of loose dirt or other debris in a manner deemed satisfactory to the Division. Excavation sites shall be cleaned at the completion of each work day. In addition, the Permittee shall remove all excess excavated material from the site of the Excavation no later than the end of each work day or by 6:00 p.m.

(3) Storage of materials and equipment. Materials and equipment that are to be used for the Excavation within five (5) calendar days may be stored at the site of the Excavation.

(4) Hazardous material. Each Permittee shall be subject to hazardous material guidelines for data collection; disposal, handling, release, and treatment of hazardous material; site remediation; and worker safety and training. The Permittee shall be required to comply with all federal, State, and local laws regarding hazardous material. For purposes of this Subsection, hazardous material shall mean any gas, material, substance, or waste which, because of its quantity, concentration, or physical or chemical characteristics, is deemed by any federal, State, or local government authority to pose a present or potential hazard to human health or safety or to the environment.

(5) Street restoration requirements for all Excavation work involving Streets within in the City shall be done in compliance with the most recent standards promulgated by the Municipal Engineer.

(6) Any Street in the City for which a new Excavation Permit is issued shall include the requirement that the party performing the work must resurface the road from Curb to Curb and from Street corner to Street corner. Furthermore, all driveways and/or Sidewalks at any intersection impacted by work done under a road opening Permit must be restored as per the Municipal Engineer's standards. All regular Sidewalks, when being restored or replaced as part of an Excavation Permit, must also be restored as per the Municipal Engineer's standards. The acceptance of all work done under the aforesaid specifications shall be under the supervision of the Municipal Engineer. **[Amended 1-10-2024 by Ord. No. 23-126]**

(7) Whenever and wherever any Street is excavated the Curbs and Sidewalks abutting on such Street shall be considered an integral part of such Street and shall be reconstructed and improved so as to conform with such Street in accordance with the current specifications of the Department of Transportation of the State of New Jersey.

(8) Any crosswalks on the impacted Street must be re-striped and brick-inlaid crosswalks must be restored, if applicable.

(9) If an individual property Owner of a building with less than ten (10) units is seeking permission to excavate a Street to make Emergency repairs or necessary service upgrades to his/her property, the property Owner need only restore the trench in accordance with the Municipal Engineer's standards.

(10) If an individual property Owner is seeking to construct a new building, and its construction will require the Excavation of a Street, then the property Owner must arrange for the restoration of the Street as per the Municipal Engineer's standards and as specified in the site plan approval.

(11) All Street patch repairs/trench restoration must use the infrared paving method as per the most recent standards promulgated by the Municipal Engineer. The backfilling and patching operations of any such excavating project must be supervised by a City inspector to ensure compliance with the Municipal Engineer's standards.

(12) Trenchless technology. Use of trenchless technology to excavate in the Public Right-of-Way is unlawful without prior written approval of the Municipal Engineer.

(13) Single Excavation maximum of 800 feet. No single Excavation site shall be longer than 800 feet in length at any time, except with the prior written approval of the Municipal Engineer.

§ 296-3.17. Standard plans and specifications. [Added July 15, 2020 by Ord. No. 20-054]

In addition to any of the requirements set forth in this Chapter, this article and the Traffic Control Manual, all Excavations within the Public Right-of-Way shall be performed in accordance with the standard plans and specifications governing Excavations as promulgated by the Division and adopted by Ordinance of the Municipal Council. The standard plans and specifications governing Excavations shall be on file on the Office of the City Clerk and are incorporated by reference herein. A violation of the standard plans and specifications governing Excavations shall be deemed a violation of § 296-3.17.

§ 296-3.18. Stop work order, Permit modification, and Permit revocation. [Added July 15, 2020 by Ord. No. 20-054]

When the Municipal Engineer, or his or her authorized representative, has determined that a Person or entity has violated this article or that an Excavation poses a hazardous situation or constitutes a public nuisance, public Emergency, or other threat to the public health, safety, or welfare, or when the Municipal Engineer determines that there is a paramount public purpose, the Municipal Engineer is authorized to issue a stop work order to impose new conditions upon a Permit, or to suspend or revoke a Permit by notifying the Permittee of such action in a written, electronic, or facsimile communication.

§ 296-3.19. Suspension of action on new applications. [Added July 15, 2020 by Ord. No. 20-054]

A Permittee who is in willful noncompliance with this Chapter shall not be issued a subsequent Permit to excavate in the Public Right-of-Way unless the Municipal Engineer, by written authorization, grants a waiver to this prohibition.

§ 296-3.20. Coordination of future Excavations with public utilities and autonomous agencies. [Added July 15, 2020 by Ord. No. 20-054]

The City shall have the right to schedule Excavations of the Public Right-of-Way in a manner which will create the least disturbance to the public. Consequently, the Division shall provide to the utility companies and autonomous agencies of the City a schedule of expected Street and Sidewalk construction and resurfacing projects in advance so that these entities can coordinate their plans with the City accordingly.

(1) By March 1 of every year, the Municipal Engineer shall notify public utility providers and autonomous agencies of the City of any and all proposed work on or within the public rights-of-way throughout the City, for the coming year. A list of these proposed projects, including all Street construction and resurfacing projects, shall also be published on the City's website.

(2) By March 1 of every year, all public utility entities engaged in the installation of gas, water and electric lines and all autonomous agencies of the City, are expected to provide to the Division, any

and all plans for prospective work requiring Excavation of the Public Right-of-Way, throughout the City, for the coming year, for the purpose of coordinating such activity with resurfacing and pavement projects planned by the City.

Once a Street has been repaved, except in the case of an Emergency as defined in § 296-1.1, no Excavation Permit shall be issued for Excavations on that Street for a period of five years after the date of its repaving.

§ 296-3.21. Enforcement. [Added July 15, 2020 by Ord. No. 20-054]

The Division of Engineering, Traffic and Transportation shall have the authority to enforce this article.

ARTICLE IV
Restoration of the Public Right-of-Way

§ 296-4.1. Restoration of the Public Right-of-Way. [Added July 15, 2020 by Ord. No. 20-054]

A. Restoration. In any case in which the Public Right-of-Way has been excavated, the Owner/Permittee shall restore or cause to be restored such Excavation in the manner prescribed by the orders, regulations, and standard plans and specifications of the Division. At a minimum, trench restoration shall include resurfacing to a constant width equal to the widest part of the Excavation on each Block, plus one additional foot in width on each side of the Excavation, in accordance with the Division's standards and guidelines.

B. Backfill, replacement of pavement base, and finished pavement. Activities concerning backfilling, replacement of pavement base, and finished pavement shall be performed in a manner specified by the orders, regulations and standard plans and specifications of the Division. In addition, these activities shall be subject to the following requirements:

(1) Backfill. Each Excavation shall be backfilled and compacted within 72 hours from the time the construction related to the Excavation is completed. The backfilling operations must be supervised by a City inspector to ensure compliance with the Division's standards.

(2) Replacement of pavement base. Replacement of the pavement base shall be completed within 72 hours from the time Excavation is backfilled. Replacement of the pavement base must be supervised by a City inspector to ensure compliance with the Division's standards.

(3) Finished pavement. Finished pavement restoration shall be completed within 72 hours of replacement of the pavement base. Finishing operations must be supervised by a City inspector to ensure compliance with the Division's standards.

(4) Streets paved with cobblestones or brick pavers must be returned to their condition as it was prior to Excavation. The original cobblestones or bricks must be set aside to be re-used post-Excavation. The following is a list of Streets paved in cobblestones and yellow bricks:

COBBLESTONE PAVED STREETS:

Holland Street
Manning Avenue

High Street
17th Street/Lackawanna Terminal Viaduct
Provost Street
Audrey Zapp Drive

YELLOW-BRICK PAVED STREETS:

Fairmont Terrace
Apollo Court
Duncan Court
Virginia Terrace

C. Modification to requirements. Upon written request from the Permittee, the Municipal Engineer may grant written approval for modifications to the requirements of Subsection (2).

D. Incomplete Excavation; completion by the Division. In any case where an Excavation is not completed or restored in the time and manner specified in the Permit, this Chapter, or the orders, regulations, and standard plans and specifications of the Division, the Municipal Engineer shall order the Owner or Permittee to complete the Excavation as directed within 24 hours. If the Owner or the Permittee should fail, neglect, or refuse to comply with the order, the Municipal Engineer may complete or cause to be completed such Excavation in such manner as the Municipal Engineer deems expedient and appropriate. The Owner or Permittee shall compensate the Division for any costs associated with the administration and construction required to restore the Excavation, including but not limited to any costs related to consultants, equipment, inspection, notification, remediation, repair, restoration, or any other actual costs incurred by the Division or other agencies, authorities, boards, commissions, or departments of the City that were made necessary by said Excavation. The cost of such work also may be deducted from the Permittee's Deposit pursuant to § 296- 3.6. The Municipal Engineer's determination as to the cost of any work done or repairs made shall be final. In addition, the Owner, his agent or Permittee may be subject to those enforcement actions set forth in in this article.

E. Subject to the limitation set forth in § 296-4.2, completion of an Excavation or restoration by the Division in accordance with this article shall not relieve the Owner or Permittee from liability for future pavement at the excavating site.

§ 296-4.2. Repair and maintenance obligation of Permittee. [Added July 15, 2020 by Ord. No. 20-054]

Each Owner and Permittee that excavates or causes to be made an Excavation in the public right- of-way shall be responsible to maintain, repair, or reconstruct the site of the Excavation so as to maintain a condition acceptable to the Municipal Engineer for a period of one year after its restoration.

§ 296-4.3. Subsurface or pavement failures; notice to responsible party. [Added July 15, 2020 by Ord. No. 20-054]

In the event that subsurface material or pavement over or immediately adjacent to any Excavation should become depressed, broken, or fail in anyway at any time after the Excavation has been completed, the Municipal Engineer shall exercise his or her best judgment to determine the Person(s) responsible, if any,

for the failure in the subsurface or surface of the Public Right-of-Way and shall designate such Person as the responsible party. The Municipal Engineer shall notify said Person(s) of the condition, its location, and the required remedy. Such Person(s) shall repair or restore, or cause to be repaired or restored, such condition to the satisfaction of the Municipal Engineer within 72 hours of the notification. The Municipal Engineer, in his or her discretion, extend the time for the responsible party to repair or restore the affected Public Right-of-Way.

§ 296-4.4. Repair by the Division. [Added July 15, 2020 by Ord. No. 20-054]

In the event that any Person (s) fails, neglects, or refuses to repair any condition pursuant to the Municipal Engineer's notice as set forth in § 296-4.3, the Division may repair or restore, or cause to be repaired or restored, such condition in such manner as the Municipal Engineer deems expedient and appropriate. The Person(s) identified by the Municipal Engineer as the responsible party shall compensate the Division for any costs associated with the administration, construction, consultants, equipment, inspection, notification, remediation, repair, restoration, or any other actual costs incurred by the City that were made necessary by reason of the repair or restoration undertaken by the Division. The cost of such work also may be deducted from the Permittee's Deposit pursuant to § 296-3.6. The Municipal Engineer's determination as to the cost of the repair or restoration performed shall be final. In addition, the responsible party may be subject to those enforcement actions set forth in this article.

Repair or restoration by the Division in accordance with this section shall not relieve the Person(s) from liability for future pavement failures at the site of the repair or restoration.

§ 296-4.5. Emergency remediation by the Division. [Added July 15, 2020 by Ord. No. 20-054]

A. If, in the judgment of the Municipal Engineer, the site of an Excavation is considered hazardous or if it constitutes a public nuisance, public Emergency, or other imminent threat to the public health, safety, or welfare that requires immediate action, the Municipal Engineer may order the condition remedied by a written, electronic, or facsimile communication to the Person(s) responsible, if any, for remedying the condition and shall designate such Person as the responsible party.

B. If the responsible party is inaccessible or fails, neglects, or refuses to take immediate action to remedy the condition as specified in said communication, the Municipal Engineer may remedy the condition or cause the condition to be remedied in such manner as the Municipal Engineer deems expedient and appropriate. The Person(s) identified by the Municipal Engineer as the responsible party shall compensate the Division for any reasonable costs associated with the administration, construction, consultants, equipment, inspection, notification, remediation, repair, restoration, or any other actual costs incurred by the Division or other agencies, boards, commissions, or departments of the City that were made necessary by reason of the Emergency remediation undertaken by the Division. The cost of such work also may be deducted from the Permittee's Deposit. The Municipal Engineer's determination as to the cost of any remediation performed shall be final. In addition, the responsible party may be subject to those enforcement actions set forth herein.

C. Remediation by the Division in accordance with this section shall not relieve the Person(s) from liability for future pavement failures at the site of the remediation. **[Added July 15, 2020 by Ord. No. 20-054]**

§ 296-4.6. Establishment of an infrastructure restoration fund. [Added July 15, 2020 by Ord. No. 20-054]

A. Establishment of fund. There is hereby established an infrastructure restoration fund for the purpose of receiving all amounts paid pursuant to Chapter 296, inclusive of all Permitting, Street restoration and enforcement fees. The fund shall be administered by the Department of Administration. All donation of money, gifts, grant, and bequests which may be offered to the Excavation fund are hereby accepted.

B. Use of monies. Monies in the infrastructure restoration fund shall be used exclusively to defray City costs in connection with right-of-way infrastructure restoration and the administration of Chapter 296 of the City of Jersey City Code; including, but not limited to, administration, construction, consultants, equipment, inspection, legal services, remediation, repair, restoration, training, travel, and other costs incurred by the City.

C. Interest; accrual of monies in the fund. Interest earned on monies in the fund shall become part of the principal thereof and shall not be expended for any purpose other than those set forth in § 296-4.6.B. The balance remaining in the fund at the close of any fiscal year shall be deemed to have been provided for a specific purpose and shall be carried forward and accumulated in the fund for the purposes set forth in § 296-4.6.B.

§ 296-4.7. Violation of this article; civil penalties. [Added July 15, 2020 by Ord. No. 20-054]

In addition to the standard penalties as set forth in § 1-25 of the Municipal Code, the Corporation Counsel may, in his or her discretion, institute an action for injunctive relief to restrain any non-compliance with this Chapter and/or to cause the correction on abatement of any violation of this Chapter and seek civil penalties and reasonable attorney's fees for the prosecution of each violation.

§ 296-4.8. Enforcement. [Added July 15, 2020 by Ord. No. 20-054]

The Division of Engineering, Traffic and Transportation shall have the authority to enforce this article.

ARTICLE V

Dumpsters, Utility Facilities and Temporary Obstructions on Public Rights-of-Way

§ 296-5.1. Placement of unauthorized objects on public rights-of-way prohibited. [Added July 15, 2020 by Ord. No. 20-054]

No Person shall park or place any Dumpster, Portable Moving Storage Container or any other object or device capable of Blocking or impeding vehicular and or Pedestrian traffic upon the Public Right-of-Way, and especially within the parking lane, without first obtaining a Permit to do so from the Division. Exempt from this prohibition are any movable garbage/recycling receptacles which are placed by the Curb pursuant to the City's regular municipal garbage/recycling hauling program.

§ 296-5.2. Permit requirements, procedure. [Added July 15, 2020 by Ord. No. 20-054]

A Person seeking such permission to park or place a Dumpster, Portable Moving Storage Container or other large object or device upon the Public Right-of-Way shall file a written application with the Division of Engineering, Traffic and Transportation, which shall contain the following information:

(1) A description of the object or device, including the dimensions thereof.

(2) The location where the object is to be placed.

(3) The expected duration for the placement of the object.

(4) Any other additional information which the Division may deem necessary.

The application shall be accompanied by a fee in the amount as provided in Chapter 160, Fees and Charges.

In addition to the Permit fee, the Division may, in its discretion, require any Applicant for a Permit to Deposit a sum not to exceed $500.00 for any damage or cleanup costs which the City may sustain incidental to the placement of the Dumpster, Portable Moving Storage Container or object on the Public Right-of-Way.

§ 296-5.3. Permit duration. [Added July 15, 2020 by Ord. No. 20-054; amended 5-8-2024 by Ord. No. 24-027]

The maximum consecutive duration for a Permit to place a Dumpster in the Public Right-of-Way shall be seven (7) calendar days and such Permits may be extended up to two (2) times for a maximum consecutive duration of twenty-one (21) calendar days. Dumpster permits shall not be issued for any project location more than a total of twenty-one (21) calendar days over any period of one hundred eighty (180) consecutive calendar days.

The maximum duration for a Permit to place a Portable Moving Storage Container in the Public Right-of-Way shall be three (3) calendar days and such Permits may not be extended.

§ 296-5.4. Identification sticker and reflectors required; placement. [Added July 15, 2020 by Ord. No. 20-054]

Any Dumpster, Portable Moving Storage Container or other object permitted to be placed on the Public Right-of-Way pursuant to this section shall bear an identification sticker indicating the identification number assigned by the Division and stating and the name, address and telephone number of the Person responsible for it.

Whenever any Dumpster, Portable Moving Storage Container or other object is permitted on the Public Right-of-Way during the hours between sunset of one day and sunrise of the next day, it shall be equipped with suitable reflectors on the front, sides and rear capable of reflecting motor vehicle headlamps at a distance of five hundred (500) feet.

No Dumpster or other object, if placed upon a Street, shall be placed less than twenty-five (25) feet from an intersection or closer than six (6) inches from the Curb.

§ 296-5.5. Removal of unauthorized objects. [Added July 15, 2020 by Ord. No. 20-054]

Any unauthorized Dumpster, Portable Moving Storage Container or other object placed on the Public Right-of-Way may be removed, without notice, at the Owner's expense, including the cost of removal, parking fines, if applicable, and any and all storage fees. It shall be no defense that the Dumpster, Portable Moving Storage Container or object was parked or placed by another unless it can be proven that at such time it was parked or placed on the Public Right-of-Way without the Owner's consent.

§ 296-5.6. Identification of visible and underground Facilities. [Added July 15, 2020 by Ord. No. 20-054]

Each visible Facility installed in the Public Right-of-Way shall be clearly identified with the name of the Owner of the Facility in accordance with the regulations promulgated by the Division for the identification of utility Facilities.

The existence of any existing utility Facility or Facilities which are buried within the Public Right-of-Way must be filed with the Division, along with any and all plans, drawings, maps or other materials necessary to identify the dimensions, location, depth, alignment, and orientation of the utility Facility or Facilities.

Prior to the installation, extension, modification, replacement, or improvement of a Facility in the Public Right-of-Way, the Owner shall submit to the Division, any and all plans, drawings, maps or other materials necessary to identify the dimensions, location, depth, alignment, and orientation of the utility Facility or Facilities.

§ 296-5.7. Abandonment of underground Facilities; reports and maps. [Added July 15, 2020 by Ord. No. 20-054]

Whenever any Facility(ies) in or under the Public Right-of-Way is abandoned, the Person or entity owning, using, controlling or having an interest therein, shall, within 30 calendar days after such abandonment, file with the Division a written statement formally abandoning the Facility(ies) and providing a detailed map of the location of the abandoned Facility(ies).

§ 296-5.8. Enforcement. [Added July 15, 2020 by Ord. No. 20-054]

The Division of Engineering, Traffic and Transportation shall have the authority to enforce this article.

ARTICLE VI
Vacation of Streets

§ 296-6.1. Petition to vacate Street—Contents. [Added July 15, 2020 by Ord. No. 20-054]

Anyone seeking to vacate a Street must first file a petition with the City Clerk. The petition must include:

A. Seven copies of the proposed ordinance complete with the narrative explaining the reason (s) for vacating the Street;

B. Seven copies of the survey or blueprint delineating the area to be vacated; and

C. The nonrefundable fee application as set forth in Chapter 160, Fees and Charges.

The City Clerk shall circulate the proposed ordinance, petition and survey to the Tax Assessor, Corporation Counsel, Director of Public Safety, Director of Public Works, Director of Housing Economic Development & Commerce and the Director of Engineering, Traffic & Transportation for their review. Any objections and suggested revisions will be forwarded to the petitioner. Petitions must be approved by the aforementioned officials before they may be presented to the Municipal Council.

§ 296-6.2. Presentation to Council; publication of ordinance; proof of notice to property Owners abutting Street to be vacated required. [Added July 15, 2020 by Ord. No. 20-054]

A. In accordance with N.J.S.A. 40:49-6, the notice of the ordinance approving the proposed vacation shall be published in the manner required by N.J.S.A. 40:49-2 except that the vacation ordinance, after being introduced and having passed a first reading, shall be published at least ten days prior to the time fixed for further consideration for final passage.

B. Notice of the public hearing, stating the date, time and place of the hearing, shall be sent by the petitioner to the Owners of all real property as shown on the City's most current tax records within 200 feet in all directions of the boundaries of the Street to be vacated. Such notice must be delivered at least ten days prior to the public hearing. Notice shall be given to a property Owner by mailing a copy of the proposed ordinance by certified mail and regular mail to the property Owner at the property Owner's address last known postal address. Notice to a partnership Owner may be made by service upon any partner. Notice to a corporate Owner may be made by service upon its president, a vice president, secretary or other Person authorized by appointment or by law to accept service on behalf of the corporation. Notice to a condominium association, horizontal property regime, community trust or homeOwners' association, because of its Ownership of common elements or areas located within 200 feet of the boundaries of the Street which is the subject of the hearing, may be made in the same manner as to a corporation, in addition to notice to unit Owners, co-Owners, or homeOwners on account of such common elements or areas. The costs of providing notice shall be the responsibility of the petitioner.

C. Prior to the public hearing, the petitioner must provide the City Clerk with affidavits proving proof of service/proof of mailing. The City Clerk shall keep the affidavits on file along with the proof of publication of the notice of the required public hearing on the proposed vacation.

D. In the event that such notices have not been served or proof of such service has not been presented to the City Clerk prior to the public hearing, the Municipal Council shall adjourn the public hearing to the next regular meeting of the Council and direct the City Clerk to re-advertise the ordinance with a notice of the date, place and time of the public hearing for said ordinance. The cost of the re-advertisement of the public hearing shall be assessed to the petitioner and shall be paid to the City Clerk prior to the date of the adjourned public hearing.

E. In the event that the public hearing is adjourned a second time by reason of failure of the petitioner to serve the Owners of property within a 200-foot radius as aforesaid or the petitioner fails to file proofs of service with the City Clerk or fails to pay the costs of the additional advertisement or any

other fee as provided in Chapter 160, Fees and Charges before the date and time of the adjourned public hearing, no further adjournments shall be granted and after the public hearing is held, the Council may defeat the ordinance for failure to comply with the aforesaid conditions.

§ 296-6.3. Petitioner responsible for all legal filings. [Added July 15, 2020 by Ord. No. 20-054]

Upon adoption, the petitioner shall send a certified copy of the vacation ordinance to the County Register and to the New Jersey Department of Transportation (NJDOT). The petitioner is responsible for filing any and all notices and documents required by federal, State or County agencies.

ARTICLE VII
Sidewalk Cafés and Sidewalk Sales

§ 296-7.1. Sidewalk Cafés and Parklets—Permit required. [Added July 15, 2020 by Ord. No. 20-054; amended 2-24-2021 by Ord. No. 21-010; 3-23-2022 by Ord. No. 22-020]

No person may operate a Sidewalk Café without obtaining a license from the Division of Commerce pursuant to the procedures provided for herein. There shall be two types of Sidewalk Café licenses:

1. Full-year Sidewalk Café licenses: These licenses permit the licensee to operate during all 12 months of the year from March 15 to March 14 of the following year so long as the licensee has installed the required semi-permanent sheltering structures and heating/ventilation devices as required by § 296-7.2.C.

2. Seasonal Sidewalk Café licenses: These licenses permit the licensee to operate only during warm weather months as set forth in § 296-7.3 from March 15 to November 30 of the same year.

§ 296-7.2. Permitted location; regulations; projection into Sidewalks. [Added July 15, 2020 by Ord. No. 20-054; amended 2-24-2021 by Ord. No. 21-010; 3-23-2022 by Ord. No. 22-020]

A. Sidewalk Cafés shall only be permitted in front of a Food Service Establishments that are permitted to operate under the City's current zoning regulations. Food Service Establishments seeking to expand a prior nonconforming use shall be required to obtain the appropriate variance from the Jersey City Zoning Board of Adjustment. In those situations where a Food Service Establishment is located on a Corner, both the front and side Sidewalk areas fronting the Food Service Establishment may be used for the Sidewalk Café. A survey, schematic, or other evidence of the location of the boundary line must be provided to the Division of Commerce with the Sidewalk Café license application. All Sidewalk Cafés, whether seasonal or full-year, which are licensed to operate within any Pedestrian Mall shall be subject to any additional regulations required by the Pedestrian Mall operating plan in accordance with Section 67-4 of the Municipal Code.

B. All seasonal Sidewalk Cafés shall comply with the following regulations:

(1) The Sidewalk Café area shall be partitioned by a three-sided, movable structure separating the Sidewalk Café from the public portion of the Sidewalk, and which is no less than 30 inches in height and no more than 36 inches in height. The movable partition shall provide one opening for

entrance and exit which is no less than 42 inches in width and no more than 60 inches in width, and whose boundaries allow patrons and Pedestrians to clearly ascertain the entrance and exit to the Sidewalk Café area.

(2) No Sidewalk Café shall be permitted to project into a Sidewalk more than half the width of said Sidewalk, but only to a maximum often feet. In no case shall it extend so far as to leave less than six feet for Pedestrian traffic.

(3) All fence partitions shall be secured in place by means of drilling holes in the Sidewalk for the insertion offence partition posts. This is to prevent encroachment into that portion of the Public Right-of-Way designated for Pedestrians.

(4) All fence partitions shall be removed and all Sidewalk holes shall be capped whenever the Sidewalk Café is not in use. All chairs, tables, etc. must be removed from the Sidewalk and stored whenever the Sidewalk Café is not in use.

(5) Any Sidewalk Café proposed within a Historic District shall be in keeping with the style of the building and the surrounding historic resources including the movable structures as described herein. The use of traditional fencing materials such as iron, steel, or other metals, in traditional forms, is encouraged. All partitions must be topped with a horizontal rail with no projections above it. All Sidewalk Cafés within a Historic District shall obtain a certificate of no effect or a certificate of appropriateness before installation of any fencing or movable structure.

(6) The Sidewalk Café may have an overhead covering consisting of either an individual umbrella over each table or a retractable awning covering all tables and chairs, but no part of the covering shall project over the railing into the Sidewalk; and umbrellas must be of sufficient height to allow free passage under them. In the Historic District, all awnings and/or umbrellas shall conform to the awning and umbrella standards contained in § 345-71.

(7) Alcoholic beverages, when permitted under this article, shall not be served or consumed on any Sidewalk or any other public area which is outside the partitioned area of the Sidewalk Café.

(8) All areas comprising the Sidewalk Café, including tables and chairs, shall remain clean and orderly at all times.

(9) The number of patrons served in the Sidewalk Café shall be limited to the maximum number indicated on the Sidewalk Café license. No Persons other than those being served and restaurant Personnel shall be within the Sidewalk Café area except for those Persons passing through the Sidewalk Café area to enter or exit the restaurant proper.

(10) No planters, flower boxes, menu stands and/or other decorative items are allowed to protrude outside the fence partition area in order to keep the Sidewalk clear for Pedestrian traffic.

(11) No audio speakers may be placed outside of the Food Service Establishment.

(12) No advertising signs, banners, or menus shall be placed (on), draped, or attached to the fence partition.

C. All full-year Sidewalk Cafés shall comply with the following regulations:

(1) In order for a Sidewalk Café to operate year-round, it must be housed in some form of semi-permeant structure built in accordance with the Americans with Disabilities Act (ADA) and in accordance with the minimum standards set forth in this section.

(2) Roofs. Full-year Sidewalk Cafés must install some form of semi-permanent structure with a semi-permanent roof, which must not be permanently affixed to the Street. Sidewalk, or adjacent buildings and which can be removed or repositioned as necessary, such as a tent or gazebo. Such roofs may not extend beyond the boundaries of the Sidewalk Café area and shall have a maximum material thickness of two inches. Roof supporting elements may be no closer than 24 inches on center. Roofs may be no higher than 12 feet and no lower than eight feet from the Sidewalk Cafés floor. All such semi-permanent roofs must comply with all applicable State regulations.

(3) Partitions. Full-year Sidewalk Cafés must install semi-permanent partitions along the perimeter edges of the Café area. These partitions must not be permanently affixed to the Street, Sidewalk, or adjacent buildings and they must be able to be removed or repositioned as necessary. Semi-permanent partitions may be installed on no more than three sides of the Sidewalk Café area and shall be no less than 30 inches in height and no more than 36 inches in height. The partition shall provide one opening for entrance and exit which is no less than 42 inches in width and no more than 60 inches in width, and whose boundaries allow patrons and pedestrians to clearly ascertain the entrance and exit to the Sidewalk Café area. Openings between the partition and the roof (if applicable) may be covered with see-through materials such as plastic sheeting or Plexiglass, but standard glass is prohibited and coverings may not be placed on more than two sides at any one time. Partitions may be no thicker than six inches, except for supporting elements of the roof. All such aforementioned partitions must comply with all applicable State regulations.

(4) Lighting, heating and air circulation devices. All semi-permanent structures built for full-year Sidewalk Cafés must employ lighting, heating and air circulation devices. Such devices shall be placed within the confines of the semi-permeant structure of the Sidewalk Café and shall be placed and used in such a way that minimizes the impact/effect on adjacent businesses, buildings, and pedestrians. Any heating device shall be subject to fire code inspection and must be installed, maintained and used in accordance with all applicable New Jersey Fire Code regulations. At minimum, heating devices must not be positioned closer than five feet (1524 mm) to any combustible decorations and combustible overhangs, awnings, sunshades or to any exits. Heating devices must not be utilized inside tents or canopies or membrane structures and the roofs of all Sidewalk Cafés must have an open area within five feet of where the heating devices are located.

(5) The semi-permanent structures built for full-year Sidewalk Cafés shall not be permitted to protect into a Sidewalk more than half the width of said Sidewalk, but only to a maximum of ten feet. In no case shall it extend so far as to leave less than six feet for Pedestrian traffic.

(6) Any chairs, tables, etc., must be stored and secured whenever the Sidewalk Café is not in use.

(7) Alcoholic beverages, when permitted under this article, shall not be served or consumed on any Sidewalk or any other public area which is outside the partitioned area of the Sidewalk Café.

(8) All areas comprising the Sidewalk Café, including any structures, tables and chairs, shall remain clean and orderly at all times.

(9) The number of patrons served in the Sidewalk Café shall be limited to the maximum number indicated on the Sidewalk Café license. No persons other than those being served and restaurant personnel shall be within the Sidewalk Café area except for those persons passing through the Sidewalk Café area to enter or exit the restaurant proper.

(10) No planters, flower boxes, menu stands and/or other decorative items are allowed to protrude outside the envelope of the Sidewalk Café area in order to keep clear the Sidewalk clear for Pedestrian traffic.

(11) No audio speakers may be placed outside of the Food Service Establishment or any semi-permeant structure built as part of a Sidewalk Café adjacent to the Food Service Establishment.

(12) No advertising signs, banners, or menus shall be placed (on), draped, or attached to semi-permeant structure built as part of a Sidewalk Café adjacent to the Food Service Establishment.

D. Use of parklets as Sidewalk Cafés. The use of Parklets as Sidewalk Cafés is strictly prohibited but the use of space(s) within the parking lane of a Street may be permitted with the approval of both the Division of Engineering, Traffic & Transportation and the Division of Commerce. If approved, the conversion of parking spaces for Sidewalk Café use shall be subject to the same standards and regulations as set forth in this article regarding furniture, fixtures, sound, heating, hours of operation and entertainment.

Food Service Establishments may not utilize more than two standard-sized parking spaces directly in front of their premises for use as Sidewalk Cafés. The use of any parking spaces that extend beyond the property lines of the Food Service Establishment utilizing them as Sidewalk Cafés shall require written approval from adjacent property owners, however no alcoholic beverages may be consumed or sold on any premises not permitted to host the sale and/or consumption of alcoholic beverages by the Alcoholic Beverage Control Board.

E. Applicants with underground conduits beneath their parklet must grant temporary access to any City staff or other public utility company when necessary. Applicants understand and agree that necessary road/resurfacing work done by either the City or a utility company may require temporary removal of all or a portion of the constructed parklet to provide access. The applicant further understands the removal and replacement of the parklet, as well as associated costs, will be the responsibility of the applicant.

F. All outdoor dining structures, including Sidewalk Cafés and Parklets must comply with the rules, regulations, and standards provided in the Jersey City Outdoor Dining Guide and any applicable regulations provided by the State of New Jersey.

G. All applicants must possess a valid "Class A" Jersey City health food establishment license in order to be eligible for a Sidewalk Café license and Parklet permit.

H. Seasonal outdoor dining structures, inclusive of Sidewalk Cafés and Parklets, are permitted from March 15 to November 30 of the same year.

I. Full-year outdoor dining structures, inclusive of Sidewalk Cafés and Parklets, are permitted from March 15 to March 14 of the following year.

§ 296-7.3. Permitted months and hours of operation, entertainment. [Added July 15, 2020 by Ord. No. 20-054; amended 2-24-2021 by Ord. No. 21-010; 3-23-2022 by Ord. No. 22-020]

Operation of seasonal Sidewalk Cafés shall be permitted from March 15 through November 30. The hours of operation of all Sidewalk Cafés, whether full-year or seasonal, shall be between 8:00 a.m. and 10:00 p.m., Sunday through Wednesday; 8:00 a.m. and 11:00 p.m., Thursday; and between 8:00 a.m. and 12:00 midnight, Friday and Saturday, except that no alcoholic beverages, when permitted under this article, shall be served in a Sidewalk Café before noon on any day. Unless otherwise regulated by a Pedestrian Mall operating plan, entertainment is permitted within the boundaries of Sidewalk Cafés no more than two events per week and shall be limited to four performers. All entertainment is required to conclude by 8:00 p.m.

§ 296-7.4. Insurance required. [Added July 15, 2020 by Ord. No. 20-054; amended 2-24-2021 by Ord. No. 21-010]

An Applicant for either type of Sidewalk Café license shall file with the City Clerk and the Division of Commerce, a certificate of liability insurance in the minimum amount of $1,000,000.00, naming the City of Jersey City and its agents, servants, and employees as additional insureds, which policy shall be kept in full force during the operation of the Sidewalk Café. The policy of insurance must be occurrence based coverage.

§ 296-7.5. License fee, term, maximum number of patrons, and application; approvals required; revocation; closure; hearing. [Added July 15, 2020 by Ord. No. 20-054; amended 2-24-2021 by Ord. No. 21-010]

A. The annual license fees for Sidewalk Café licenses shall be as provided in Chapter 160, Fees and Charges, with no proration for part of the year, payable to the Division of Commerce. All licenses shall be renewable no later than March 31 of each year. The license shall indicate the maximum number of patrons to be served in the Sidewalk Café. The Division of Commerce shall issue such license upon duly presented application, together with plans and specifications detailing the Sidewalk Café area to be licensed, including number of patrons to be served, and adherence to all conditions set forth in this article as well as all applicable City and State laws and regulations.

B. Prior to the granting of any license, the Division of Commerce shall notify the Departments of Public Safety, Divisions of Police and Fire, the Directors of Zoning and Health & Human Services, the Construction Code Official and, in the case of restaurants possessing a liquor license, the Alcoholic Beverage Control (ABC) Board. If no objection is received within 30 days, the approval will be granted; provided, however, if a restaurant with a liquor license seeks a Sidewalk Café that would constitute an expansion of the licensed premises, a Sidewalk Café license will not be issued until the ABC Board approves the expansion. Any objection shall be in writing and shall set forth the reasons therefor. Sidewalk Cafés located within the Historic District meeting all of the requirements contained in § 345-71 shall obtain a certificate of no effect for the partition, tables, chairs and overhead coverings and any other appurtenances. Any Sidewalk Cafés within a Historic District that are deemed by the Historic Preservation Officer not to meet those standards shall require a certificate of appropriateness. Upon receiving an application for a certificate of appropriateness, the Historic Commission shall decide whether to grant the certificate within 60 days of the receipt of the application.

C. The City shall revoke the license of any Sidewalk Café licensee who, upon the expiration of five days after receipt of notice from the City of a violation of City or State law or any of the requirements set forth in this article, fails to cure the violation.

D. The City may require the immediate closure and removal of all Sidewalk Cafés or other projections or encumbrances upon any Street, Sidewalk or public easement which are improperly constructed or maintained, or which otherwise create a hazard to the public.

E. A licensee aggrieved by any decision to revoke a license, or to close or remove a Sidewalk Café, shall be afforded a hearing before the Business Administrator or his or her designee. Such request for

hearing shall be in writing and delivered to the Director of the Division of Commerce. Thereafter, a hearing shall be scheduled and a written decision explaining the reasons for affirming or reversing the decision aggrieved shall be issued. Any revocation shall render the licensee ineligible to receive another Sidewalk Café license under this article for a period of at least one year from the effective date of the revocation.

§ 296-7.6. Sidewalk sales; Permit required. [Added July 15, 2020 by Ord. No. 20-054]

No Person may place, leave, or display, any merchandise or advertising upon the Sidewalk between the building line and the Curb without obtaining a Permit from the Zoning Officer pursuant to the restrictions set forth in this section.

Merchants may be permitted to hold one Sidewalk sale per month for a period not to exceed three consecutive days by Permit to be issued by the Zoning Officer upon payment of the fee established in Chapter 160; provided, however, that within any Special Improvement District, a Permit may be issued only to an authorized representative of the District upon payment of the fee specified in Chapter 160. Such Permit shall allow any merchant within the District to hold one Sidewalk sale for a period of three consecutive days within any calendar month. The dates on which such sale is permitted shall be specified in the Permit. No merchant within a Special Improvement District may hold a Sidewalk sale during any other dates.

This section shall not apply to a peddler holding a valid peddler's license in accordance with Chapter 245.

§ 296-7.7. Enforcement. [Added July 15, 2020 by Ord. No. 20-054]

The Department of Public Safety and the Division of Commerce shall have the authority to enforce any provision of this article pertaining to Sidewalk Cafés and the Zoning Officer shall have the authority to enforce any provision of this article pertaining to Sidewalk sales.

ARTICLE VIII
Placement of Pay Telephones in the Public Right-of-Way

§ 296-8.1. Definitions. [Added July 15, 2020 by Ord. No. 20-054]

As used in this article, the following terms shall have the meanings indicated:

DIAL TONE SERVICE PROVIDER shall mean the entity providing dial tone service to distributors in the City.

DISTRIBUTOR shall mean any Person responsible for placing or maintaining a pay telephone in the Public Right-of-Way.

FACILITATE CRIMINAL ACTIVITY shall mean that on at least four occasions within any 30-day period the police have responded to the location of a pay telephone due to allegations of criminal activity in connection with that pay telephone and the activity alleged constitutes a crime of the fourth degree or higher.

PAY TELEPHONE shall mean any self-service or coin-operated telephone.

§ 296-8.2. Permit required; fee. [Added July 15, 2020 by Ord. No. 20-054]

No Person may install a pay telephone on or above any Street or Sidewalk without having first obtained a Permit to do so issued by the Division of Commerce and without having paid the fee for such a Permit as provided in Chapter 160, Fees and Charges; provided, however, that no fee shall be charged for pay telephones furnished by or under contract to the City as an accommodation to the public or for Permits issued to any Person or entity which pays a franchise fee or tax for the use of public Facilities. Such Person or entity shall not, however, be exempt from the remaining provisions of this article.

Permits shall expire on March 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Commerce.

§ 296-8.3. Application for Permit to install a pay telephone—Contents; procedure. [Added July 15, 2020 by Ord. No. 20-054]

A. Each application for a Permit to install a pay telephone shall be on the forms supplied by the Division of Commerce and must include a plan or sketch of the pay telephone in sufficient detail to describe the size, location, equipment and means of installation and cabling. In addition, each Applicant shall:

(1) Execute an indemnification agreement substantially as follows: The Applicant and any other Persons on whose behalf the application is made agree to defend, indemnify and hold harmless the City against liability for all claims for damage to property or injury to or death of Persons arising out of or resulting from the issuance of the Permit or the control, maintenance or Ownership or use of each pay telephone.

(2) File with the Risk Manager evidence of a general liability insurance policy from an insurer licensed to do business in the State of New Jersey in the amount of $1,000,000.00 for bodily injury and $50,000.00 for property damage, naming the City as additionally insured against any injury, loss or damage that may result from placing or maintaining the pay telephone or pay telephone equipment on or above the Sidewalk. In lieu of this insurance requirement, the Distributor shall provide evidence that it is authorized by New Jersey or federal law to operate as a self-insurer.

(3) Submit a certification attesting to the fact that notice of the proposal in a form approved by the Division of Commerce has been published in the local newspaper having the largest circulation. The notice shall advise that any Person may submit comments, in writing, to the Division of Commerce within ten days of the date of publication. The certification shall include a copy of the notice. A copy of the notice shall also be served upon the City Clerk.

(4) Submit to the Division of Commerce an opinion from the Department of Public Safety confirming that the proposed location is an acceptable site for pay telephone.

B. Dial tone service connection. A distributor may apply to a dial tone service provider for dial tone service immediately upon filing an application for a Permit to install a pay telephone with the Division of Commerce, however no dial tone service may be provided or accepted by the distributor until the dial tone service provider has been provided with a copy of the approved Permit. A copy of the Permit shall be forwarded to the dial tone service provider by the Division of Commerce by mail or facsimile.

For any pay telephone which is not located on or above any Street or Sidewalk, the Distributor shall provide a certification to the dial tone service provider stating that the particular application is for a pay telephone located on private property.

C. Permit approval or denial. The Division of Commerce shall issue a written approval or denial of the Permit within 20 days of its receipt of a completed application. If denied, the Division of Commerce shall state the reasons for the denial and the Distributor shall have 30 days within which to cure deficiencies or defects in their applications without the necessity for reapplication. If approved, the

Permit number shall be affixed to the underside of the pay telephone in a manner and form approved by the Division of Commerce. The Permit required by this article shall be in addition to any Permit which may be required pursuant to the Uniform Construction Code, N.J.S.A. 52:27D-119 et seq.

D. Removal or relocation. The Division of Commerce shall be informed of the intent of any Person to remove or relocate a pay telephone. Relocation of a pay telephone shall necessitate obtaining a new Permit; provided, however, that relocation of a telephone within the extended side lot lines of the same property will require only an amendment to the original application detailing the change. In either case, no change of location shall be undertaken until approval is obtained from the Division of Commerce.

§ 296-8.4. Rates to be posted; Emergency calls. [Added July 15, 2020 by Ord. No. 20-054]

A. Pay telephones shall permit the following calls to be placed without charge:

(1) Calls to the 911 Emergency number.

(2) Emergency calls placed through operator assistance to the Department of Public Safety.

(3) Calls placed through operator assistance to the Department of Public Safety by anyone identified as a member of the Department.

B. A notice shall be posted on the pay telephone or the pay telephone booth advising that the caller may ascertain the cost of a call by dialing "operator" before placing the call.

§ 296-8.5. Maintenance and installation. [Added July 15, 2020 by Ord. No. 20-054]

A pay telephone shall comply with the following standards:

A. No booth surrounding a pay telephone shall exceed eight feet in height, four feet in width or four feet in thickness.

B. Each coin-operated pay telephone shall be equipped with a coin return mechanism to permit a Person using the machine to secure an immediate refund if a call cannot be placed. The coin mechanism shall be maintained in good working order.

C. Each pay telephone shall have affixed to it, in a place visible to everyone using the pay telephone, the name and address of the distributor and the telephone number of a working telephone service to report a malfunction, secure a refund, ascertain name, address and telephone number of the long distance carrier or give the notices provided for in this article.

D. Pay telephones shall be maintained in a neat and clean condition and in good repair at all times. Without limiting the generality of the foregoing, a pay telephone shall be serviced and maintained so that:

(1) It is reasonably free of chipped, faded, peeling and cracked paint in the visible painted areas thereof.

(2) It is reasonably free of rust and corrosion in the visible unpainted metal areas thereon.

(3) Any clear plastic or glass parts are unbroken and reasonably free of cracks, dents, graffiti, blemishes and discolorations.

(4) Any paper or cardboard parts or inserts are reasonably free of tears, peeling or fading.

(5) The structural parts thereof are not broken or unduly misshapen.

(6) The pay telephone receiver is attached to the telephone.

E. Any Person who fails to maintain a pay telephone as described in this article shall be given a ten-day notice to repair the pay telephone by the Division of Commerce. If the pay telephone is not in working condition at the end of the ten-day period, the Division of Commerce shall issue a written notice of violation describing the reasons for violation unless the Permittee provides adequate assurance that the telephone shall be repaired or removed.

F. Each pay telephone shall, upon written request from the Division of Commerce, be capable of being restricted to outgoing calls only within ten days of the request.

§ 296-8.6. Location and placement of phones; number. [Added July 15, 2020 by Ord. No. 20-054]

A. No pay telephone shall be permitted to rest upon, in or over any Street or Sidewalk when such installation, use or maintenance:

(1) Endangers the safety of Persons or property.

(2) Unreasonably interferes with or impedes the flow of Pedestrians or vehicular traffic, including any legally parked or stopped vehicles.

(3) Unreasonably interferes with the ingress or egress from any residence or place of business.

(4) Interferes with the use of traffic signs or signals, hydrants or mailboxes permitted at or near said location.

(5) Will, in the opinion of the Department of Public Safety, and based upon reasonable grounds, Facilitate criminal activity or unreasonably interfere with the quiet enjoyment of the area.

B. Pay telephones shall be placed or otherwise secured so as to prevent their being blown down or around the public Street or Sidewalk, but shall not be chained or otherwise secured to any traffic or Street signs, signals, hydrants, utility poles or mailboxes.

C. No pay telephones shall be placed, installed, used or maintained:

(1) Within any marked crosswalk.

(2) Within three feet of a Curb return of any unmarked crosswalks.

(3) Within five feet of any fire hydrant, fire call box, police call box or other Emergency Facility.

(4) Within five feet of any driveway.

(5) Within three feet of any public area improved with a lawn, flowers, shrubs, trees or other landscaping.

(6) At any location whereby the clear space for the passageway of Pedestrians is reduced to less than four feet.

(7) On any Sidewalk unless the abutting property Owner or authorized agent has given consent, in writing.

(8) Except on a Corner as defined in § 296-1.1.

(9) Within a 600-foot radius of any other pay telephone in an R-1 or R-2 Zone as described in the Zoning and Redevelopment Map of the City.

(10) Within a 400-foot radius of any other pay telephone in an R-3 or R-4 Zone as described in the Zoning and Redevelopment Map of the City, except that one pay telephone may be installed on one additional corner of an intersection comprising four or more corners.

(11) Within a 200-foot radius of any other pay telephone in any zone other than R-1 through R-4, except that a distributor may apply for up to one additional pay telephone abutting an existing pay telephone placed and maintained by that distributor and except that one pay telephone or two abutting pay telephones may be installed on one additional corner of an intersection comprising four or more corners.

§ 296-8.7. Variance. [Added July 15, 2020 by Ord. No. 20-054]

In the event that an Applicant seeking to install a pay telephone cannot meet the requirements of § 296-8.6, an Applicant may request the Business Administrator to grant a variance. The request shall be in writing together with all relevant documentation and a copy of the variance request, together with relevant documentation, shall also be served upon the Division of Commerce. A variance shall only be granted if the Business Administrator finds that good cause exists for relieving the Applicant from strict compliance with this article and that the proposed alternative(s) are consistent with public safety. The Applicant seeking the variance shall submit a certification attesting to the fact that notice of the variance proposal in a form approved by the Division of Commerce has been published in the local newspaper having the largest circulation. The notice shall advise that any Person may submit comments, in writing, to the Business Administrator within ten days of the date of publication. The certification shall include a copy of the notice. A copy of the notice shall also be served upon the City Clerk. A written decision either granting or denying the variance shall be issued within 20 days of the Business Administrator's receipt of the variance request and shall state the reasons for the decision.

§ 296-8.8. Appeals. [Added July 15, 2020 by Ord. No. 20-054]

A. An aggrieved party, within 20 days of notice of any decision made by the Division of Commerce, other than a written notice of violation, or by the Business Administrator pursuant to this article, may

appeal the decision by submitting a request for appeal, in writing, together with relevant documentation, to the Business Administrator. The aggrieved party shall also serve a copy of this request with documentation to the Division of Commerce.

B. The Division of Commerce shall then provide the Business Administrator with its response, in writing, together with relevant documentation, within ten days. The Division of Commerce shall serve a copy of its response with documentation to the aggrieved party.

C. If the Business Administrator cannot make a decision on the basis of documentation submitted by the parties or if the distributor requests a hearing, such hearing shall be held upon at least ten days' notice to the parties. A decision shall be issued within 20 days of completion of this process and shall be in writing, giving reasons for the decision.

D. It will be the burden of the aggrieved party to show that the decision appealed was clearly erroneous, except that on an appeal from a decision made by the Business Administrator, the burden shall be by a preponderance of the evidence.

E. During the pendency of the appeal, the effect of the decision being appealed shall be stayed unless the Division of Commerce provides a certification to the Business Administrator stating that a stay would cause an immediate threat to public safety or an immediate hazard to life or property.

§ 296-8.9. Applicability to existing pay telephones. [Added July 15, 2020 by Ord. No. 20-054]

All existing pay telephones installed on or before February 15, 1994 (the effective date of the prior pay telephone ordinance), shall be exempt from the following sections of this article: §§ 296-8.3.B, and 296-8.6.C(8)—(11); provided, however, that any Distributor desiring this status must certify to the Division of Commerce within 45 days of the effective date of this article all locations of said Distributor's pay telephones for which the exempt status is being requested. Distributors shall be required to apply for and obtain a Permit for the pay telephones exempted as well as all other pay telephones existing on the effective date of this article.

§ 296-8.10. Violations and penalties. [Added July 15, 2020 by Ord. No. 20-054]

A. Violation of this article shall subject the violator to a fine of not less than $100.00 nor more than the amount provided in Chapter 1, General Provisions, § 1-25. The distributor shall be given written notice of a violation which shall be heard and decided in the Municipal Court. The notice shall state the article section violated and reasons for the violation. Each noncomplying pay telephone violation will constitute a separate violation. Each week of said violation shall constitute a separate violation.

B. In addition to other remedies and penalties described herein, if a violation upheld in the Municipal Court is not abated within 30 days of the Municipal Court decision or if the fine assessed by the Municipal Court is not paid within 30 days, the City may order that dial tone service be disconnected and/or may have the pay telephone and all structures pertaining thereto removed, and the cost of such disconnect and/or removal shall be charged to the distributor. The City shall not be required to wait the 30 days where the Division of Commerce certifies that the violation is an immediate threat to public safety or an immediate hazard to life or property. If equipment that is removed by the City

pursuant to this article is not claimed within six months of its removal, it will be considered abandoned, and the City may dispose of the same pursuant to N.J.S.A. 40A.-14-157. The City shall not be responsible for any damages occurring to equipment during disconnect and/or removal or for disposing of abandoned equipment. Before the City releases claimed equipment, the distributor shall pay in full all fines and costs associated therewith.

C. If a distributor places or maintains a pay telephone upon the Public Right-of-Way without first securing a Permit as described hereunder, the Division of Commerce shall issue notice to the distributor at the last known address on file with the Division of Commerce or that address listed on the subject pay telephone, by certified and regular mail, giving the distributor ten days from the date of the notice to apply to the Division of Commerce for a Permit or remove the subject pay telephone from the Public Right-of-Way. In the event that an application for a Permit is not submitted to the Division of Commerce or the subject pay telephone is not removed from the Public Right-of-Way within the ten-day period, or if the name and address of the distributor cannot be reasonably ascertained by the Division of Commerce, the City may remove the subject pay telephone and the cost of removal shall be charged to the distributor. The City shall not be required to wait the ten days where the Division of Commerce certifies that the placement or maintenance of the subject pay telephone is an immediate threat to public safety or an immediate hazard to life or property. If equipment that is removed by the City pursuant to this article is not claimed within six months of its removal, it will be considered abandoned, and the City may dispose of same pursuant to N.J.S.A. 40A:14-157. The City shall not be responsible for any damages occurring to equipment during removal or for disposing of abandoned equipment. Before the City releases claimed equipment, the distributor shall pay in full all fines and costs associated therewith. Placement or maintenance of a pay telephone without a Permit may constitute just cause to deny new or renewal applications submitted by the distributor.

§ 296-8.11. Enforcement. [Added July 15, 2020 by Ord. No. 20-054]

The Division of Commerce shall have the authority to enforce this article.

ARTICLE IX
Rights-of-Ways For Wireless Telecommunications

§ 296-9.1. Definitions. [Added 10-14-2021 by Ord. No. 21-066]

A. Purpose. It is the intent of this subsection to regulate the placement of telecommunications equipment, including poles, towers, antennas, and other infrastructure located on municipal rights-of-ways:

B. Definitions. The following terms used in this subsection shall have the following meanings:

5G — Cellular technologies and its successors that deliver faster speeds, low latency broadband services and which require more infrastructure than its predecessors.

ADMINISTRATIVE REVIEW TEAM — The Division of Engineering, Traffic, and Transportation, the Division of City Planning, and the Historic Preservation Office (Historic).

CABINET — Small box-like or rectangular structures used to facilitate utility or wireless service from within the municipal right-of-way.

COLOCATION — Use of a common wireless telecommunication tower or a common site by two or more wireless license holders or by one wireless license holder for more than one type of communications technology and/or placement or a wireless telecommunication tower on a structure owned or operated by a utility or other public entity.

FACILITIES — Underground conduit, utility poles, wiring, cabinets, footings and street light fixtures.

POLE or WIRELESS POLE — Column or post located within the municipality's right-of-way upon which telecommunications equipment may be mounted for the purpose of providing personal wireless services as defined by federal law.

POLE MOUNTED ANTENNA — A device that is attached to a pole and used to transmit radio or microwave signals and shall include, but not be limited to, small cell equipment and transmission media such as femtocells, picocells, microcells and outside distributed antennas.

PUBLIC RIGHT-OF-WAY — The area across, along, beneath, in, on, over, under, upon, and within the dedicated public alleys, boulevards, courts, lanes, roads, sidewalks, spaces, streets, either paved or constructed or not, including paper streets, and ways within the City, as they now exist or hereafter will exist and which are or will be dedicated or expressly reserved for the use of vehicular, pedestrian, or bicycle traffic and other allowable modes of transportation, and/or utilities and which shall be under the permitting jurisdiction of the Division.

RIGHT-OF-WAY AGREEMENT — An agreement that sets forth the terms and conditions for use of the municipal right-of-way and includes, but is not limited to, municipal franchise agreements.

RIGHT-OF-WAY PERMIT — An approval from the municipality setting forth the applicant's compliance with the requirements of this article.

SMALL CELL EQUIPMENT — Wireless facilities and transmission media including, but not limited to, femtocells, picocells and microcells.

SMALL CELL FACILITY — Any structure or device used for the purpose of providing, supporting, enabling or otherwise facilitating wireless telecommunications, including but not limited to cabinets, pole mounted antenna, small cell equipment, and wireless poles, as defined herein.

C. Agreements.

1. No person or entity shall operate or place a wireless pole, pole mounted antenna, small cell equipment, or small cell facility within the municipal right-of-way without first entering into a right-of-way agreement pursuant to the provisions of this section.

2. The term of said right-of-way agreement shall include, at a minimum:

   a. A term not to exceed 15 years;

   b. Insurance requirements consistent with current standards;

   c. Designation of an individual as a point-of-contact available during business hours;

d. Imposed fines for unauthorized installations consistent with current standards;

e. Requirements regarding the repair, maintenance, relocation, and removal of the equipment;

f. A reference to the siting standards set forth in this section;

g. Requirements regarding 72 hours' notification prior to the start of construction to property owners within 200 feet of each installation regarding the exact location of the installation, the equipment to be installed, and safety information for the equipment to be installed;

h. Any other items which may reasonably be required.

D. Right-of-way permits, siting standards for poles, pole mounted antennas and cabinets in the right-of-way.

1. No pole, antenna or cabinet shall be installed within the municipal right-of-way without the issuance of a right-of-way permit.

2. Pole siting standards. Any new wireless pole, pole mounted antenna, small cell equipment, or small cell facility shall:

a. Be designed to minimize its visibility from off-site locations and shall be of a "camouflaged" or "stealth" design, including concealment, screening, and other techniques to hide or blend the infrastructure into the surrounding area; and

b. Utilize the smallest footprint possible, as measured by volume, technically feasible to achieve a network objective; and

c. Be designed to minimize the overall height, mass, and size of the cabinet and enclosure structure; and

d. Shall be screened from public view to the extent feasible; and

e. When attached to an existing utility pole, be shrouded or screened using materials or colors found on existing structure; and

f. Be architecturally compatible with the existing site; and

g. Be placed at a location that would not require the removal of any required landscaping or would reduce the quantity of landscaping to a level of noncompliance with the Zoning Code; and

h. Be no taller than 110 percent of the height of the poles in the surrounding streetscape, whichever is taller; and

i. Be no closer than 18 inches from the curb line and allow for six feet of open passage; and

j. For sites in any residential zone, be at least 200 linear feet from any other existing pole or proposed pole along the same side of the street or for sites in any other zone, be at least 100 linear feet from any other existing pole or proposed pole along the same side of the street; and

k. If in a historic district of the municipality, be reviewed and approved by the Historic Preservation Office. The Administrative Review Team shall ensure that the pole siting standards are enforced and may formulate guidelines for applicants based on these standards.

3. Ground level cabinet siting standards. Ground level cabinets are permitted only if placement on a pole is not possible or feasible, as determined by the Administrative Review Team. No ground level cabinet shall be installed unless it:

   a. Is less than sixteen cubic feet in volume; and

   b. Is finished and/or painted so as to blend in compatibly with its background and so as to minimize its visual impact on surrounding properties; and

   c. Allows adequate room with a minimum of six feet of open passage so as not to impede the public's or municipality's use of the right-of-way.

4. Pole mounted antenna siting standards. No pole mounted antenna shall be installed unless it:

   a. Does not exceed three cubic feet in volume; and

   b. Is finished and/or painted and otherwise camouflaged, in conformance with best available technology methods, so as to blend in compatibly with its background and so as to minimize its visual impact on surrounding properties, as determined by the Administrative Review Team; and

   c. Allows adequate room so as not to impede the public's or municipality's use of the right-of-way, as determined by the Administrative Review Team.

5. Pole mounted cabinets siting standards. No pole mounted cabinet shall be installed unless it:

   a. Does not exceed 12 cubic feet; and

   b. Is finished and/or painted and otherwise camouflaged, in conformance with best available technology methods, so as to blend in compatibly with its background and so as to minimize its visual impact on surrounding properties, as determined by the Administrative Review Team; and

   c. Allows adequate room so as not to impede the public's or municipality's use of the right-of-way, as determined by the Administrative Review Team.

6. Order of preference. In general, wireless equipment shall be installed as follows (most preferred to least preferred):

   a. On existing telephone or electrical lines between existing utility poles.

   b. On existing utility poles (electric poles or telephones poles).

   c. On municipal service poles.

d. New wireless poles shall be the least preferred type of allowed facility.

e. Ground equipment should be minimal and the least intrusive.

7. Noise. Applicants are required to incorporate ambient noise suppression measures and/or required to place the equipment in locations less likely to impact adjacent residences or businesses to ensure compliance with all applicable noise regulations. The maximum allowable noise emitted by the small wireless facility shall not exceed 30 dB measured at a distance of three feet from any portion of the facility.

E. Miscellaneous provisions.

1. Any approval received pursuant to this article shall not relieve the applicant from receiving consent from the owner of the land above or on which the applicant's facility may be located as may be required under New Jersey law.

2. The applicant must, in addition to receiving a right-of-way permit, also receive all necessary road opening permits, construction permits, and other requirements set forth in City of Jersey City's Municipal Code or applicable state statutes.

3. The applicant shall include in their permit application a certified list of all property owners within 200 feet of each installation.

4. The Administrative Review Team shall ensure that colocation is not a feasible option before approving any new wireless pole, and the applicant shall attest and demonstrate through clear and convincing evidence in its permit application that it has pursued all reasonable attempts to colocate on existing poles and other facilities.

5. The Administrative Review Team may, in its discretion, require certification from a licensed engineer attesting to the structural integrity of any pole mounted antenna or pole mounted cabinet.

6. The Administrative Review Team may, in its discretion, require testing of the radio frequency emittance to ensure compliance with Federal Communications Commission safety standards specified in 47 CFR Rule 1.1307(b).

7. The applicant shall report to the Administrative Review Team any facilities that have been unused for the previous six months and shall detail a timeline for their removal within the following six months.

8. The applicant shall be responsible for removal of any identified facilities no longer in active use nor required for future use under their ownership and control.

9. All ordinances and parts of ordinances inconsistent herewith are hereby repealed.

10. The City Clerk shall have this section codified and incorporated in the official copies of the Jersey City Code.

11. This section shall take effect 90 days after its passage.

12. The City Clerk and the Corporation Counsel may change any chapter numbers, article numbers and section numbers if codification of this section reveals a conflict between those numbers and the existing code, in order to avoid confusion and possible accidental repealers of existing provisions.

Chapter 299

SUBDIVISION OF LAND

§ 299-1. Title.
§ 299-2. Purpose.
§ 299-3. Administration; appeals.
§ 299-4. Definitions.
§ 299-5. Design standards.
§ 299-6. Violations and penalties.
§ 299-7. Vacancies.

[HISTORY: Adopted by the Council of the City of Jersey City 9-5-1978 as Ord. No. S-114 as Ch. 25 of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

GENERAL REFERENCES

Certificates of occupancy — See Ch. 119.
Condominium conversion — See Ch. 128.
Uniform construction codes — See Ch. 131.
Flood damage prevention — See Ch. 172.
Sewers — See Ch. 281.
Streets and sidewalks — See Ch. 296.
Zoning — See Ch. 345.

§ 299-1. Title.

This chapter shall be known and may be cited as the "Land Subdivision Ordinance of Jersey City."

§ 299-2. Purpose.

The purpose of this chapter shall be to provide rules, regulations and standards to guide land subdivision in the City of Jersey City in order to promote the public health, safety, convenience and general welfare of the municipality. It shall be administered to ensure orderly growth and development, the conservation, protection and proper use of land and adequate provision for circulation, utilities and services.

§ 299-3. Administration; appeals.

The approval provisions of this chapter shall be administered by the Jersey City Planning Board whose decision may be appealed to the Municipal Council of the City of Jersey City.

§ 299-4. Definitions.

As used in this chapter, the following terms shall have the meaning indicated:

BUFFER STRIP — An area containing plants, trees, shrubs or other such items deemed appropriate by the Planning Board serving as a division line between two (2) subdivisions

or a street and a subdivision. Where live plant material may be impractical or undesirable, a decorative brick wall may be substituted at the discretion of the Planning Board.

COMPLETE APPLICATION — Any and all material required by this chapter to review the subdivision (application form, affidavit of ownership, boundary descriptions, plat maps in accordance with ordinance specifications, etc.)

CITY COUNCIL — The chief legislative body of the municipality.

DESIGNATED REPRESENTATIVE — That person or office so named by the Planning Board to dispense, receive, classify and review subdivision applications.

DRAINAGE — The removal of surface water or groundwater from land by drains, grading or other means and includes control of runoff to minimize erosion and sedimentation during and after construction or development, as well as prevention and alleviation of flooding. All water shall be contained within the lot and drain from the lot using catch basins, trench drains or their comparable systems.

DRAINAGE RIGHT-OF-WAY — The lands required for the installation of stormwater sewers or drainage ditches or required along a natural stream or watercourse for preserving the channel and providing for the flow of water therein to safeguard the public against flood damage.

FINAL APPROVAL — The official action of the Planning Board taken on a preliminary approved major subdivision after all conditions, engineering plans and other requirements have been completed or fulfilled and the required improvements have been installed or guarantees properly posted for their completion.

FINAL PLANT — The final map of all or a portion of the subdivision which is presented to the Planning Board for final approval in accordance with these regulations and which, if approved, shall be filed with the county recording officer.

LOT — A designated parcel, tract or area of land established by a plat or otherwise permitted by law and to be used, developed or built upon as a unit.

LOT CONSOLIDATION — An action by the Planning Board eliminating lot lines from contiguous lots for tax billing purposes.

LOT GROUPING — An action by the Planning Board to group lots for tax billing purposes within the elimination of lot lines.

LOT SIZE — In conformance with those lot areas and dimensions as determined by Chapter 345, Zoning, of the Code of the City of Jersey City.

MAINTENANCE GUARANTY — Any security, other than cash, which may be accepted by a municipality for the maintenance of any improvements.

MAJOR SUBDIVISION — Any subdivision not classified as a minor subdivision.

MASTER PLAN — A composite of one (1) or more written or graphic proposals for the development of the municipality as set forth and adopted by the Planning Board (N.J.S.A. 40:55D-28).

MINOR SUBDIVISION [**Amended 5-10-1995 by Ord. No. 95-028**[1]] — A subdivision of land for the creation of four (4) or fewer lots, provided that such subdivision does not involve:

A. A planned development;

B. Any new street; or

C. The extension of any off-tract improvement, the cost of which is to be prorated pursuant to Section 30 of P.L. 1975, c. 291 (N.J.S.A. 40:55D-42).

PLANNED DEVELOPMENT — Planned unit development, planned unit residential development, residential cluster, planned commercial development or planned industrial development (N.J.S.A. 40:55D-6).

OFFICIAL MAP — A map adopted by ordinance which shall be deemed to be conclusive with respect to the location and width of streets, public parks and playgrounds, and drainage rights-of-way shown thereon (N.J.S.A. 40:50D-32).

OWNER — An individual, firm, association, syndicate, copartnership or corporation having sufficient proprietary interest in the land sought to be subdivided to commence and maintain proceedings to subdivide the same under this chapter.

PERFORMANCE GUARANTY — Any security which may be accepted in lieu of a requirement that certain improvements be made before the Planning Board approves a plat, including cash, performance bonds, escrow agreements and other similar collateral agreements, provided that a municipality shall not require more than ten percent (10%) of the total performance guaranty in cash.

PLAT — A map or maps of a subdivision.

PRELIMINARY APPROVAL — Confer on the applicant the following rights for a three-year period from the date of preliminary approval (N.J.S.A. 40:55D-46):

A. That the general terms and conditions on which the preliminary approval was granted shall not be changed.

B. That the applicant may submit for final approval on or before the expiration of this three-year period.

PRELIMINARY PLAT — The preliminary map indicating the proposed layout of the subdivision which is submitted to the Division of City Planning for Planning Board consideration and approval.[2]

SKETCH PLAT — The sketch map of a subdivision of sufficient accuracy to be used for the purpose of discussion and classification and meeting the requirements of N.J.S.A. 40:55D-1 et seq.[3]

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1 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

2 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

3 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

STREET — Any street, avenue, boulevard, road, lane, parkway, viaduct, alley or other way which is an existing state, county or municipal roadway or a street or way shown upon a plat heretofore approved pursuant to law or approved by official action pursuant to the Municipal Land Use Law (N.J.S.A. 40:55D-1 et seq., as amended) or a street or way on a plat duly filed and recorded in the office of the county recording officer prior to the appointment of a Planning Board and the grant to such Board of the power to review plats, and any way shown on a plat approved by the city, and includes the land between the street lines, whether improved or unimproved, and may comprise pavement, shoulders, gutters, sidewalks, parking areas and other areas within the street line.

SUBDIVIDER — Any individual, firm, association, syndicate, company, partnership, corporation, trust or other legal entity commencing proceedings under this chapter to effect a subdivision of land for himself or herself or for another.

SUBDIVISION — The division of a lot, tract or parcel of land into two (2) or more lots, tracts, parcels or other divisions of land for sale or development. The following shall not be considered subdivisions within the meaning of this chapter, if no new streets are created: divisions of land found by the Planning Board or Subdivision Committee thereof appointed by the Chairman to be for agricultural purposes where all resulting parcels are five (5) acres or larger in size; divisions of property by testamentary or intestate provisions; divisions of property upon court order, including but not limited to judgments of foreclosure; consolidation of existing lots by deed or other recorded instrument; and the conveyance of one (1) or more adjoining lots, tracts or parcels of land owned by the same person or persons and all of which are found and certified by the administrative officer to conform to the requirements of the municipal development regulations and are shown and designated as separate lots, tracts or parcels on the Tax Map or atlas of the municipality. The term "subdivision" shall also include the term "resubdivision."[4]

VARIANCE — Permission to depart from the literal requirements of a zoning ordinance.[5]

§ 299-5. Design standards.

The subdivider shall observe the following requirements and principles of land subdivision in the design of each subdivision or portion thereof:

A. General standards. The subdivision plat shall conform to design standards set for encouraging good development patterns within the city. Where an Official Map or Master Plan have been adopted, the subdivision shall conform to the proposals and conditions set therein. The streets, drainage rights-of-way, school sites, public parks and playgrounds as shown on an officially adopted Master Plan or Official Map shall be considered in approval of subdivision plats. Where no official map exists, streets and drainage rights-of-way shall be shown on the final plat in accordance with N.J.S.A. 40:55D-39 and shall be such as to lend themselves to the harmonious development of the municipality and enhance the public welfare in accordance with the following design standards:

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[4] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

[5] **Editor's Note: Original Articles V through VII, which immediately followed this section and dealt with plat submission requirements and details, were deleted 11-25-1987 by Ord. No. C-544.**

B. Street standards.

(1) The arrangement of streets not shown on the Master Plan or Official Map shall be such as to provide for the appropriate extension of existing streets.

(2) Minor streets shall be so designed as to discourage through traffic.

(Cont'd on page 29905)

(3) Subdivisions abutting arterial streets shall be provided with a buffer strip for planting or some other means of separation of through and local traffic as the Planning Board may determine appropriate.

(4) The width of streets shall be measured from lot line to lot line and shall not be less than the following:

(a) Principal arterial street: eighty (80) feet.

(b) Minor arterial street: seventy (70) feet.

(c) Collector street: sixty (60) feet.

(d) Local street: forty (40) feet.

(e) The right-of-way width for internal roads and alleys in multifamily, commercial and industrial developments shall be determined on an individual basis and shall in all cases be of sufficient width and design to safely accommodate the maximum traffic, parking and loading needs and maximum access for firefighting equipment.

(5) No subdivision showing reserve strips controlling access to streets shall be approved except where the control and disposal of land comprising such strips has been placed in the governing body under conditions approved by the Planning Board.

(6) Subdivisions that adjoin or include existing streets that do not conform to width as shown on the Master Plan or Official Map or the street width requirements of this chapter shall dedicate additional width along either one or both sides of the said road. If the subdivision is along one (1) side only, one-half (½) of the required extra width shall be dedicated.

(7) Grades of arterial streets shall not exceed four percent (4%). Grades of other streets shall not exceed ten percent (10%).

(8) Street intersections shall be as nearly at right angles as is possible and in no case shall be less than sixty degrees (60°). The block corners at intersections shall be rounded at the curbline with a curve radius of not less than twenty-five (25) feet for residential development and fifty (50) feet for industrial development.

(9) Street jogs with center-line offsets of less than one hundred twenty-five (125) feet shall be prohibited.

(10) Dead-end streets (culs-de-sac) shall not be longer than six hundred (600) feet and shall provide a turnaround at the end with a radius of not less than thirty (30) feet and tangent wherever possible to the right side of the street.

(11) If a dead-end street is of temporary nature, a similar turnaround shall be provided and provisions made for future extension of the street and reversion of the excess right-of-way to the adjoining property.

(12) No street shall have a name which will duplicate, or nearly duplicate, the names of existing streets. The continuation of an existing street shall have the same name. All streets shall be approved by the Planning Board.

C. Block standards.

(1) Block length and width shall be of sufficient acreage so as to accommodate the size of lots required by Chapter 345, Zoning, and shall provide convenient access, circulation, control and safety of street traffic.

(2) In blocks over one thousand (1,000) feet long, pedestrian crosswalks may be required in locations deemed necessary by the Planning Board. Such walkway shall be ten (10) feet wide, landscaped and be straight from sidewalk to sidewalk.

D. Lot standards.

(1) Lot dimensions and area shall not be less than the requirements of Chapter 345, Zoning.

(2) So far as is practical, side lot lines shall be at right angles to straight streets and radial to curved streets.

(3) Each lot shall front upon an improved street, except in those instances conforming with N.J.S.A. 40:55D-35 and 40:55D-36.

(4) Where land has been dedicated for a widening of existing streets, lots shall begin at such new street line and all setbacks shall be measured from such lines.

E. Public use and service area standards.

(1) In a large-scale development, easements along rear property lines or elsewhere for utility installations may be required. Such easements shall be at least fifteen (15) feet wide and located after consultation with whose companies and municipal departments concerned.

(2) Where a subdivision is traversed by a watercourse, drainageway channel or stream, there shall be provided a stormwater easement or drainage right-of-way conforming substantially with the lines of such watercourse and such further width and construction, or both, as would be adequate for the purpose.

(3) Natural features such as trees, brooks, hilltops and views shall be preserved wherever possible in designing any subdivision containing such features.

§ 299-6. Violations and penalties.

A. If, before favorable approval by the Planning Board has been obtained, any person transfers or sells or agrees to sell as owner or agent any land which forms a part of a subdivision on which the Planning Board is required to act, such person shall be subject to a fine not to exceed one thousand dollars ($1,000.), and each parcel, plat or lot so disposed shall be deemed a separate violation (N.J.S.A. 40:55D-55).

B. In addition to the foregoing, if the streets in the subdivision are not such that a structure on said land in the subdivision would meet requirements for a building permit, the city may institute and maintain a civil action:

(1) For injunctive relief;

(2) To set aside and invalidate any conveyance made pursuant to such a contract or sale if a certificate of compliance has not been issued in accordance with Section 44 of the Municipal Land Use Law (N.J.S.A. 40:55D-56) but only if the municipality has a Planning Board.

C. In any such action, the transferee, purchaser or grantee shall be entitled to a lien upon the portion of land from which the subdivision was made that remains in the possession of the subdivider or his assigns or successors, to secure the return of any deposit made or purchase price paid, and also a reasonable search fee, survey expense and title-closing expense, if any. Any such action must be brought within two (2) years after the date of the recording of the instrument of transfer, sale or conveyance of such land, or within six (6) years, if unrecorded (N.J.S.A. 40:55D-55).

§ 299-7. Vacancies.

These rules, regulations and standards shall be considered the minimum requirements for the protection of the public health, safety and welfare of the citizens of Jersey City. Any action taken by the Planning Board under the terms of this chapter shall give primary consideration to the above-mentioned matters and to the welfare of the entire community. However, if the subdivider or his agent can clearly demonstrate that, because of peculiar conditions pertaining to his land, a literal enforcement of one (1) or more of these regulations is impracticable or will exact undue hardship, the Planning Board may permit such variance or variances as may be reasonable and within the general purpose and intent of the rules, regulations and standards established by this chapter (N.J.S.A. 40:55D-51).

Chapter 304

TAXATION*

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***History**—Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable.
Cross references—Condominium conversions, Ch. 128; fees and charges, Ch. 160; multiple dwellings, Ch. 218.

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ARTICLE I

Parking Tax

[Adopted 2-25-1982 by Ord. No. MC-114; amended in its entirety 6-14-2000 by Ord. No. 00-065]

§ 304-1. Title. [Amended 2-26-2020 by Ord. No. 20-020]

This article shall be known and may be cited as the "Jersey City Parking Tax."

§ 304-2. Tax imposed. [Amended 9-22-2004 by Ord. No. 04-100; 11-10-2004 by Ord. No. 04-137; 2-26-2020 by Ord. No. 20-020]

A. There is hereby imposed a 15 percent tax on any fees whether paid directly, or paid as part of the rent charged in a lease for parking, garaging or storing of motor vehicles, in any commercial, industrial or

residential property other than parking in a garage which is part of premises occupied solely as a private one- or two-family dwelling. The tax is imposed on all fees, including but not limited to, valet parking fees and any fees charged by any hospital, whether such hospital is organized as a for-profit or nonprofit organization, and fees charged by any body corporate and politic or instrumentality of the State of New Jersey, including, but not limited to, New Jersey Transit Corporation, which is a body corporate and politic of the State of New Jersey pursuant to N.J.S.A. 27:25-4.

There is also hereby imposed an additional Mass Transit Access Parking Tax of three and one-half percent on fees for the parking, garaging, or storing of motor vehicles, other than parking in a garage which is part of premises occupied solely as a private one- or two-family dwelling. The Mass Transit Access Parking Tax is imposed on all fees, including but not limited to, valet parking fees and any fees charged by any hospital, whether such hospital is organized as a for-profit or nonprofit organization, and fees charged by any body corporate and politic or instrumentality of the State of New Jersey, including, but not limited to, New Jersey Transit Corporation, which is a body corporate and politic of the State of New Jersey pursuant to N.J.S.A. 27:25-4.

Jersey City residents are exempt from the full amount of the Mass Transit Access Parking Tax and the exemption shall be implemented as follows:

(1) For short term parking, a resident may apply to the City for a rebate of the Mass Transit Parking Tax; and

(2) For long term parking, a parking facility operator shall not charge a resident the Mass Transit Parking Tax upon a display of proof of residence.

In accordance with N.J.S.A. 40:48C(6), the revenues collected from the Mass Transit Access Parking Tax shall be dedicated for the exclusive purpose of funding or financing capital improvements for pedestrian access to mass transit stations, including, but not limited to, the construction of bridges, tunnels, platforms, walkways, elevators, escalators, and stairways directly related to mass transit pedestrian accessibility, provided, however, that any revenues remaining after all budgeted mass transit pedestrian access capital improvement expenditures have been used in a fiscal year may be used to fund quality of life projects.

B. All taxes imposed by this section shall be collected on behalf of the City of Jersey City by the person providing parking services to the customer.

C. The Division of Licenses and Fees is hereby designated as collector of parking taxes. The methods for reporting taxes due shall be on forms and in accordance with procedures prescribed by the Business Administrator from time to time.

D. Every person required to collect any taxes imposed by this article shall be personally liable for the tax imposed, collected or required to be collected. Any such person shall have the same right in respect to collecting the tax from his or her customer or in respect to nonpayment of the tax by the customer as if the tax were a part of the parking or storage fee and payable at the same time; provided, however, that the Business Administrator of the City of Jersey City shall be joined as a party in any action brought to collect the tax.

E. No person required to collect any tax hereunder shall advertise or hold out to any person or to the public in general in any manner, directly or indirectly, that the tax is not considered as an element in the fee payable by the customer, that he will pay the tax, that the tax will not be separately charged and stated to the customer or that the tax will be refunded to the customer, except for those residents seeking a rebate of the Mass Transit Access Parking Tax as provided for in § 304-2.A(1).

F. If for any reason the tax is not paid when due, interest at a rate of 12 percent per annum, on the amount of the tax due and an additional penalty of one-half of one percent of the amount of the unpaid tax for each month or fraction thereof during which the tax remains unpaid shall be added and collected. Where action is brought for the recovery of any tax hereunder, the person liable shall, in addition, be liable for the cost of collection and the interest and penalties imposed.

G. No tax shall be imposed with respect to any parking, garaging or motor vehicle storage fees charged by: **[Amended 11-12-2014 by Ord. No. 14-017]**

(1) Any religious, charitable, educational institution.

(2) Any nonprofit organization except a hospital.

(3) Garages or parking areas which are part of premises (a) occupied solely as a private one- or two-family dwelling or (b) leased to residential tenants of multiple dwellings.

(4) The Division of Parking Enforcement; provided, however, that this exemption shall not apply to fees for the parking, garaging or storing of motor vehicles on property owned by an exempt organization and leased to any nonexempt organization.

(5) Under the express language of N.J.S.A. 40:48C-42, bodies corporate and politic or instrumentalities of the State of New Jersey, including, but not limited to New Jersey Transit Corporation, which is a body corporate and politic of the State of New Jersey pursuant to N.J.S.A. 27:25-4, are not exempt from this tax.

§ 304-3. Payment of tax; records to be kept. [Amended 2-26-2020 by Ord. No. 20-020]

A. Taxes due under this article shall be paid quarterly. Returns for each quarter are due on or before the fifteenth of the month following the end of the quarter, that is, April 15, July 15, October 15 and January 15.

B. A quarterly parking tax return is required to be filed by every person responsible for the collection of parking taxes whether or not any tax is due for that quarter. Payment of the tax due shall be made with the filed return.

C. Every person responsible for the collection of parking taxes shall maintain books and/or records to substantiate the quarterly tax returns, even if no tax is due.

D. Pursuant to state law, any person who fails or refuses to file any return required under this article, any person who refuses to permit an officer or agent designated by the City of Jersey City to examine his

or her books, records and papers and any person who knowingly files an incomplete, false or fraudulent return or attempts to do anything whatsoever to avoid the full disclosure of the tax due under this article to avoid the payment of the whole or any part thereof is a disorderly person.

E. The failure of any person to receive or procure the forms required for filing returns required under this article shall not excuse him from filing a return.

§ 304-4. Use of revenues. [Amended 2-26-2020 by Ord. No. 20-020]

A maximum of 12 percent of the revenues collected from the tax imposed under this this article in any prior calendar year shall be used for administrative costs.

ARTICLE II

Delinquent Taxes

[Adopted 5-28-1987 by Ord. No. C-478; amended in its entirety 4-28-1993 by Ord. No. 93-040]

§ 304-5. Installment payments; applications.

A. The City Council may from time to time enter into agreements for the redemption of tax sale liens and water and sewerage liens held by the city with financially qualified owners of the real property listed in Subsection I.

B. Such agreements shall provide for a reasonable down payment in an amount to be recommended by the Tax Collector based upon the financial condition of the taxpayer and to be approved by Council and for the redemption of the balance of the lien in substantially equal monthly installments over a period of not to exceed three years.

C. Owners of buildings subject to tax-sale liens and water and sewerage liens may apply to the Tax Collector for redemption of the lien by installment payments. All applications for redemption by installment payments shall include such information as the Tax Collector considers relevant, including evidence that the applicant has been unable to secure a bank loan, and such financial information as will enable the Tax Collector to determine the ability of the applicant to discharge his or her obligation by installment payments. In appropriate cases, the Tax Collector may waive the requirement that an applicant has unsuccessfully applied for a bank loan if the director determines that the applicant is otherwise qualified for an installment agreement. The Tax Collector shall then forward the application to an ad hoc committee of the Council with a recommendation to either approve or reject the application, or to modify the terms of the installment payment agreement. The committee shall review all applications and provide its recommendation to the Council as a whole. The recommendation of the committee may include the amount of downpayment to be required by the owner as a condition to approving the installment payment agreement.

D. The Tax Collector shall review each application and shall forward approved applications to the City Council, together with a proposed resolution and redemption agreement which shall specify:

(1) The total taxes owed.

(2) The down payment to be made by the applicant.

(3) The balance due on the tax sale certificate.

(4) The amount of each monthly payment.

(5) The term of redemption.

F. If for any reason the tax is not paid when due, interest at a rate of twelve percent (12%) per annum, on the amount of the tax due and an additional penalty of % of 1% of the amount of the unpaid tax for each month or fraction thereof during which the tax remains unpaid shall be added and collected. Where action is brought for the recovery of any tax hereunder, the person liable shall, in addition, be liable for the cost of collection and the interest and penalties imposed.

G. No tax shall be imposed with respect to any parking, garaging or motor vehicle storage fees charged by: **[Amended 11-12-2014 by Ord. No. 14-017]**

(1) Any religious, charitable, educational institution.

(2) Any nonprofit organization except a hospital.

(3) Garages or parking areas which are part of premises (a) occupied solely as a private one or two family dwelling or (b) leased to residential tenants of multiple dwellings.

(4) The Division of Parking Enforcement; provided, however, that this exemption shall not apply to fees for the parking, garaging or storing of motor vehicles on property owned by an exempt organization and leased to any nonexempt organization.

(5) Under the express language of N.J.S.A. 40:48C-42, bodies corporate and politic or instrumentalities of the State of New Jersey, including, but not limited to New Jersey Transit Corporation, which is a body corporate and politic of the State of New Jersey pursuant to N.J.S.A. 27:25-4, are not exempt from this tax.

§ 304-3. Payment of tax; records to be kept.

A. Taxes due under this article shall be paid quarterly. Returns for each quarter are due on or before the 15th of the month following the end of the quarter, that is, April 15, July 15, October 15 and January 15.

B. A quarterly parking tax return is required to be filed by every person responsible for the collection of parking taxes whether or not any tax is due for that quarter. Payment of the tax due shall be made with the filed return.

C. Every person responsible for the collection of parking taxes shall maintain books and/or records to substantiate the quarterly tax returns, even if no tax is due.

D. Pursuant to state law, any person who fails or refuses to file any return required under this article, any person who refuses to permit an officer or agent designated by the City of Jersey City to examine his or her books, records and papers and any person who knowingly files an incomplete, false or fraudulent return or attempts to do anything whatsoever to avoid the full disclosure of the tax due under this article to avoid the payment of the whole or any part thereof is a disorderly person.

E. The failure of any person to receive or procure the forms required for filing returns required under this article shall not excuse him from filing a return.

§ 304-4. Use of revenues.

A maximum of twelve percent (12%) of the revenues collected from the tax imposed under this article in any prior calendar year shall be used for administrative costs.

ARTICLE II

Delinquent Taxes

[Adopted 5-28-1987 by Ord. No. C-478; amended in its entirety 4-28-1993 by Ord. No. 93-040]

§ 304-5. Installment payments; applications.

A. The City Council may from time to time enter into agreements for the redemption of tax sale liens and water and sewerage liens held by the city with financially qualified owners of the real property listed in Subsection I.

B. Such agreements shall provide for a reasonable down payment in an amount to be recommended by the Tax Collector based upon the financial condition of the taxpayer and to be approved by Council and for the redemption of the balance of the lien in substantially equal monthly installments over a period of not to exceed three years.

C. Owners of buildings subject to tax-sale liens and water and sewerage liens may apply to the Tax Collector for redemption of the lien by installment payments. All applications for redemption by installment payments shall include such information as the Tax Collector considers relevant, including evidence that the applicant has been unable to secure a bank loan, and such financial information as will enable the Tax Collector to determine the ability of the applicant to discharge his or her obligation by installment payments. In appropriate cases, the Tax Collector may waive the requirement that an applicant has unsuccessfully applied for a bank loan if the director determines that the applicant is otherwise qualified for an installment agreement. The Tax Collector shall then forward the application to an ad hoc committee of the Council with a recommendation to either approve or reject the application, or to modify the terms of the installment payment agreement. The committee shall review all applications and provide its recommendation to the Council as a whole. The recommendation of the committee may include the amount of downpayment to be required by the owner as a condition to approving the installment payment agreement.

D. The Tax Collector shall review each application and shall forward approved applications to the City Council, together with a proposed resolution and redemption agreement which shall specify:

(1) The total taxes owed.

(2) The down payment to be made by the applicant.

(3) The balance due on the tax sale certificate.

(4) The amount of each monthly payment.

(5) The term of redemption.

E. The resolution shall provide for the suspension pending redemption of any action by the municipality to foreclose the right of the redemption if the installment payments are regularly and properly made in accordance with the schedule of payments provided in the resolution.

F. If an installment is not paid when due or redemption is not completed in the time fixed in the resolution, the Tax Collector may, in his or her discretion, cancel the agreement and begin an action in the Superior Court to foreclose the right of redemption of the tax sale lien.

G. The Tax Collector shall establish such records and procedures as are necessary to administer and enforce agreements approved by the Municipal Council under this article. The Tax Collector shall furnish quarterly reports to the Municipal Council as to the number of installment agreements in effect, the payments made under each agreement and number and amount of delinquent payments, if any.

H. When the city agrees to grant a delinquent taxpayer the opportunity to pay delinquent taxes on an installment basis where there is a tax sale lien held by the city, pursuant to N.S.J.A. 54:5-65, and said taxpayer fails to comply with said agreement, no further agreement on any and all property of said taxpayer, whether said taxpayer held such property prior to or acquired after said taxpayer's reneging, shall be entered into by the city with said taxpayer, unless the taxpayer shall make application to the Municipal Council and obtain its approval for any such further agreement.

I. Tax-sale liens against the following real property shall be eligible for redemption pursuant to this section:

(1) Real property residential or commercial units or a combination of each.

(2) Real property owned by a nonprofit organization which is not otherwise exempt from taxation.

(3) Real property without any capital improvements thereon.

(4) Real property which qualifies as an industrial use under Chapter 345, Zoning, of the Code of the City of Jersey City.

ARTICLE III

Five-Year Tax Exemption*

[Adopted 9-8-1999 by Ord. No. 99-138; 6-8-2005 by Ord. 05-060]t

§ 304-6. Exemptions authorized. [Amended 4-24-02 by Ord. No. 02-048; 6-8-2005 by Ord. 05-060]

The city hereby authorizes the utilization of tax exemption in accordance with Article VIII, Section 1, paragraph 6, of the New Jersey Constitution and establishes the eligibility of residential and multiple dwellings, commercial and industrial structures for five-year tax exemptions to the maximum degree permitted by N.J.S.A. 40A:21-l et seq. throughout the city.

'Editor's note—For statutory provisions relating to this topic, see N.J.SA. 40A:21-l et seq.

tEditor's **note—**This ordinance also repealed former Art. III, Five-Year Tax Exemption, adopted 3-9-1994 by Ord. No. 94-011, as amended 6-14-1995 by Ord. No. 95-050.

COST — When used with respect to exemptions for dwellings or multiple dwellings, only the cost or fair market value of direct labor and materials used in improving a multiple dwelling, or of converting another building or structure to a multiple dwelling or of constructing a dwelling, or of converting another building or structure to a dwelling, including any architectural, engineering and contractor's fees associated therewith, as the owner of the property, following completion of the project, shall cause to be certified to the Municipal Council by an independent and qualified architect, licensed in the State of New Jersey or a certified construction cost audit by an independent certified accountant licensed in the State of New Jersey.

DWELLING or DWELLING USE — A building or part of a building used, to be used or held for use as a home or residence, including accessory buildings located on the same premises, together with the land upon which such building or buildings are erected and which may be necessary for the fair enjoyment thereof, but shall not mean any building or part of a building defined as a multiple dwelling pursuant to the Hotel and Multiple Dwelling Law, N.J.S.A. 55:13A-1 et seq. A dwelling shall include, as they are separately conveyed to individual owners, individual residences within a cooperative, if purchased separately by the occupants thereof, and individual residences within a horizontal property regime or a condominium, but shall not include general common elements or common elements of such horizontal property regime or condominium as defined pursuant to the Horizontal Property Act, N.J.S.A. 46:8A-1 et seq., or the Condominium Act, N.J.S.A. 46:8B-1 et seq., or of a cooperative, if the residential units are owned separately.

EXEMPTION — That portion of the Assessor's full and true value of any improvement, conversion alteration or construction not regarded as increasing the taxable value of a property pursuant to the law.

HORIZONTAL PROPERTY REGIME — A property submitted to a horizontal property regime pursuant to the Horizontal Property Act, N.J.S.A. 46:8A-1 et seq.

IMPROVEMENT — A modernization, rehabilitation, renovation, alteration or repair which produces a physical change in an existing building or structure that improves the safety, sanitation, decency or attractiveness of the building or structure as a place for human habitation or work, and which does not change its permitted use. In the case of a multiple dwelling, it includes only improvements which affect common areas or elements, or three or more dwelling units within the multiple dwelling. In the case of a multiple dwelling or commercial or industrial structure, it shall not include ordinary painting, repairs and replacements of maintenance items or an enlargement of the volume of an existing structure by more than thirty percent (30%). In no case shall it include the repair of fire or other damage to a property for which payment of a claim was received by any person from an insurance company at any time during the three-year period immediately preceding the filing of an application pursuant to this Act.

MULTIPLE DWELLING or MULTIPLE DWELLING USE — A building or structure meeting the definition of "multiple dwelling" set forth in the Hotel and Multiple Dwelling Law, N.J.S.A. 55:13A-1 et seq., and means for the purpose of improvement or construction the general common elements and common elements of a condominium, a cooperative or a horizontal property regime.

MUNICIPAL CHARGES — Property taxes, assessments, water or sewer charges and any other charge for which a lien may be created, together with interest and penalties thereon, including all advertising fees and costs of sale.

C. Tax exemptions for projects whose estimated conventional taxes on the improvement would be more than two hundred thousand dollars ($200,000.00) per annum, may only be approved by resolution of the Municipal. Upon approval, the city in determining value, shall regard up to the Assessor's full and true value of the improvements or conversion alterations as not increasing the value of the property for a period of five years.

D. This exemption is to be granted notwithstanding that the value of the property to which the improvements or conversion alterations are made is increased thereby. During the exemption period, the assessment on the property shall not be less than the assessment existing thereon immediately prior to the improvement or conversion alteration, unless there is damage to the multiple dwelling through action of the elements sufficient to warrant a reduction.

§ 304-11. improvements to commercial and industrial structures.

A. Improvements to commercial and industrial structures are eligible for tax exemption for a period of five years. This exemption is subject to the approval of the assessor or by resolution of the Municipal Council.

B. Tax exemptions for projects whose estimated conventional taxes on the improvement would be less than two hundred thousand dollars ($200,000.00) per annum, are subject to the approval of the assessor. Upon approval, the city, in determining value, shall regard thirty percent (30%) of the assessor's full and true value of the improvements as not increasing the value of the property for a period of five years.

C. Tax exemptions for projects whose estimated conventional taxes on the improvement would be more than two hundred thousand dollars ($200,000.00) per annum, may only be approved by resolution of the Municipal. Upon approval, the city in determining value, shall regard up to the assessor's full and true value of the improvements as not increasing the value of the property for a period of five years.

D. This exemption is to be granted notwithstanding that the value of the property to which the improvement is made is increased thereby. During the exemption period, the assessment on the property shall not be less than the assessment thereon existing immediately prior to the improvements, unless there is damage to the structure through action of the elements sufficient to warrant a reduction.

§ 304-12. New construction of commercial or industrial structures or multiple dwellings by tax agreement. [Amended 4-24-02 by Ord. No. 02-048; 8-22-2007 by Ord. No. 07-148]

A. New construction of commercial and industrial structures and multiple dwellings are eligible for tax exemption for a period of five years. This exemption may only be approved by Ordinance of the Municipal Council.

B. Applicants for tax exemption shall provide the Director of the Department of Housing, Economic Development and Commerce and the Municipal Council with an application setting forth the following information:

(1) A general description of a project for which exemption is sought.

(2) A legal description of all real estate necessary for the project.

(3) Plans, drawings and other documents as may be required by the Municipal Council to demonstrate the structure and design of the project.

(4) A description of the number, classes and type of employees to be employed at the project site within two years of completion of the project.

(5) A statement of the reasons for seeking tax exemption on the project and a description of the benefits to be realized by the applicant if a tax agreement is granted.

(6) A Good Faith estimate of the cost of completing such project, together with the expected method or plan of financing the Improvements.

(7) A construction time schedule and projected time schedule.

(8) A statement showing the real property taxes currently being assessed at the project site; estimated tax payments that would be made annually by the applicant on the project during the period of the agreement; and estimated tax payments that would be made by the applicant on the project during the first full year following the termination or expiration of the tax agreement.

(9) If the project is a Commercial or Industrial Structure, a description of any lease agreement between the applicant and proposed users of the project and a history and description of the users' businesses.

(10) If the project is a Multiple Dwelling, a description of the number and type of Dwellings units to be provided, a description of the common elements or general common elements and a statement of the proposed initial rentals or sales prices of the Dwellings units according to type and of any rental lease or resale restrictions to apply to the Dwellings units respecting low or moderate income housing.

(11) A disclosure statement of the interests of all parties, including subsidiary companies, in the property project.

(12) The owners certification that the improvement as proposed meets the requirements of the redevelopment plan or Chapter 345, Zoning.

(13) The owner shall sign the application and certify as to the truth and accuracy of the contents thereof

(14) Such other pertinent information as the Director of the Department of Housing, Economic Development and Commerce and Municipal Council may require on a case-by-case basis.

C. The owner of a project shall enter into a written agreement with the City to pay a tax on the improvements in an amount equal to a percentage of taxes otherwise due according to the following schedule: **[Amended 11-26-2013 by Ord. No. 13-129]**

(1) In the first full tax year after completion, no payment in lieu of taxes otherwise due.

(2) In the second tax year, an amount not less than twenty percent (20%) of taxes otherwise due.

(3) In the third tax year, an amount not less than forty percent (40%) of taxes otherwise due.

(4) In the fourth tax year, an amount not less than sixty percent (60%) of taxes otherwise due.

(5) In the fifth tax year, an amount not less than eighty percent (80%) of taxes otherwise due.

The agreement shall provide that the tax shall be billed and collected in the same manner as any conventional taxes, and any arrearages shall accrue that rate of interest charged for delinquent real estate taxes.

D. The Tax Collector shall be responsible for the administration and enforcement of the tax agreement. In the event that a property owner subject to a tax agreement ceases to operate or disposes of the property or fails to meet the conditions for qualifying for the exemption, the local property taxes due for all the prior years subject to exemption and for the current year shall be payable as if no exemption had been granted. The Tax Collector shall notify the property owner and the Municipal Council within fifteen (15) days of the date of disqualification of the amount of taxes due. In the event that the subject property has been transferred to a new owner and it is determined that the new owner will continue to use the property pursuant to the qualifying conditions, no additional tax shall be due, the exemption shall continue and the agreement shall remain in effect.

E. The City Clerk shall forward a copy of all tax exemption agreements to the Director of the Division of Local Government Services in the Department of Community Affairs within thirty (30) days of the date of execution.

§ 304-13. General requirements. [Amended 4-24-02 by Ord. No. 02-048; 8-22-2007 by Ord. No. 07-148; 3-12-2014 by Ord. No. 14-027]

A. Every applicant for tax exemption shall file that form of application prescribed by the Director of the New Jersey Division of Taxation in the Department of Treasury with the Assessor. In addition, a tax exemption subject to a tax agreement requiring approval of the Municipal Council shall also file the application described in Section 304-12B.

(1) every application for a tax exemption subject to a tax agreement under Section 304-12B, must be filed and approved before proceeding with the project, that is, prior to construction commencing;

(2) all other applications for tax exemption must be filed up to thirty (30) days, including Saturdays and Sundays, following the Completion of the Improvement, Conversion or Construction.

B. Every application for tax exemption, including projects which must also be approved by the Municipal Council, shall be approved and allowed by the Assessor to the degree that the application is consistent with the provisions of this article; that is, the Improvement, Conversion Alteration or Construction for which the application is made must qualify pursuant to the provisions of the law and this article. The applicant shall submit data in support of the application as the Assessor or City shall require.

C. The granting of an exemption and, if appropriate, tax agreement, shall be recorded and made a permanent part of the official tax records of the taxing district, which record shall contain a notice of the termination date thereof.

D. As to applications which require approval by the Municipal Council, the Assessor shall forward the application to the Director of Housing, Economic Development and Commerce and the Municipal Council for action.

E. No application shall be filed unless it is accompanied by the fees as provided in Chapter 160, Fees and Charges, to be paid as compensation for legal and related administrative review by the City.

F. No exemptions shall be granted for any property for which property taxes or any other Municipal Charges, including interest, are delinquent or remain unpaid or for which penalties for nonpayment are due.

G. All taxes and other Municipal Charges must be paid timely and in full during the term of the exemption. The failure to timely pay any tax or other Municipal Charge, including land tax, shall permit the Tax Collector to terminate the tax exemption and subject the property to fall taxation.

H. Any tax appeal filed for the exempt property during the term of the exemption shall immediately void the tax exemption.

§ 304-14. Additional improvements eligible for tax exemptions. [Amended 8-22-2007 by Ord. No. 07-148]

An additional Improvement, Conversion or Construction completed to a property already granted an exemption during the period in which the exemption is in effect shall be eligible for an additional exemption, just as if such property had not received a previous exemption. The additional Improvement, Conversion or Construction shall be considered as separate for purposes of calculating the exemption, except that the assessed value of any previous Improvement, Conversion or Construction shall be added to the assessed valuation as it was prior to that Improvement, Conversion or Construction for the purpose of determining the assessed value of the property from which any additional exemption is to be subtracted.

§ 304-15. Notice to be mailed. [Amended 8-22-2007 by Ord. No. 07-148]

The Tax Collector shall include an appropriate notice in the mailing of the annual property tax bills to property owners advising them of the availability of tax exemptions under this ordinance.

§ 304-16. Report of real property taxes. [Amended 8-22-2007 by Ord. No. 07-148]

A. The Assessor, on behalf of the Municipal Council, shall report, on or before October 1 of each year, to the Director of the Division of Local Government Services in the Department of Community Affairs and to the Director of the Division of Taxation in the Department of the Treasury the total amount of real property taxes exempted within the city in the current tax year for each of the following:

(1) Improvements of Dwellings.

(2) Construction of Dwellings.

(3) Improvements and Conversions of Multiple Dwellings.

(4) Improvements of Commercial or Industrial Structures.

(5) Construction of Multiple Dwellings under tax agreements.

(6) Construction of Commercial or Industrial Structures under tax agreements.

B. In the case of Subsections A(5) and A(6) above, the report shall state instead the total amount of payments made in lieu of taxes according to each formula utilized by the municipality, and the difference between that total amount and the total amount of real property taxes which would have been paid on the project had the tax agreement not been in effect, for the current tax year.

§ 304-17. Expiration (Sunset Provision). [Amended 8-22-2007 by Ord. No. 07-146; 11-10-2015 by Ord. No. 15-146]

No application for tax exemption shall be filed for an exemption to take initial effect for tax year 2026 or any tax year thereafter, unless this ordinance is readopted by the Municipal Council in accordance with N.J.S.A. 40A:21-4.

ARTICLE IV
2018 Payroll Tax*

§ 304-18. Definitions. [Added 11-20-2018 by Ord. No. 18-133]

As used in this Article, the following terms shall have the meanings indicated:

AUDIT NOTICE — A letter issued by the Director to an employer or supposed employer requesting information regarding its potential payroll tax liability.

CERTIFICATE OF INDEBTEDNESS — A certificate issued by the Director reflecting an unpaid assessment of payroll taxes by an employer. A certificate of indebtedness shall reflect the name and address of the taxpayer, the amount of the debt so certified as being owed and the periods for which such amounts are owed.

CHARITABLE ORGANIZATION — A corporation or association organized not for profit and operated exclusively for religious, educational, charitable or hospital purposes, subject to section 304-19.B of this Chapter.

CITY — The City of Jersey City, in the County of Hudson, State of New Jersey.

DIRECTOR — The Chief Financial Officer of the City, including his or her designee and/or agent.

***Editor's note—**Ord. No. 18-133, adopted November 20, 2018, amended the Code by repealing former Art. IV, §§ 304-18—304-24, and adding a new Art. IV. Former Art. IV pertained to the 1995 payroll tax, and derived from Ord. No. 95-117, adopted December 6, 1995; and Ord. No. 97-052, adopted August 13, 1997.

EMPLOYEE — Any individual in the service of an employer, under an appointment or contract of hire or apprenticeship, express or implied, oral or written, pursuant to which such employer controls or has the right to control the manner and performance of the employee's work. In addition, for purposes of this tax, and irrespective of the common law tests for determining the existence of an independent contractor relationship, an individual performing work or service for compensation shall be deemed to be an employee of the person for whom the work or service is performed unless:

(1) Such individual has been and will continue to be free from control or direction over the performance of such work or service under his/her appointment of contract of hire or apprenticeship;

(2) Such work or service is outside the usual course of the business of the person for which such service is performed; or,

(3) Such individual is customarily engaged in an independently established trade, occupation, business or profession.

A licensed real estate salesperson is deemed an employee of the broker under whom he or she is licensed.

EMPLOYER — Any individual, entity, corporation, company, association, society, firm, partnership, limited liability company or partnership, joint stock company, trust, estate, or foundation, whether or not such entity is for profit or nonprofit entity, and regardless of where such entity is formed or operated, standing in the position of employer in an employer-employee relationship, having one or more employees, and having a payroll in excess of $2,500.00 in any calendar quarter; other than:

(1) The government of the United States;

(2) The State of New Jersey, or a County, municipality, school district or special district of the State;

(3) An interstate agency;

(4) An agency or instrumentality of any entity enumerated in subsection (1), (2), or (3) above;

(5) Any insurance company formed by authority of another state or foreign country, subject to the provisions of N.J.S.A. 17:32-15;

(6) Charitable organization, as defined above.

An entity which contracts with any of the entities identified in subsections (1)—(6) shall not be exempt from the definition of "employer."

FINAL NOTICE — A notice of deficiency, which shall be issued by the Director prior to the commencement of legal proceedings to seek collection.

INTERIM NOTICE — A notice of proposed assessment, which offers the taxpayer a hearing with the Director. The Director may combine an audit notice with an interim notice.

INTERNAL REVENUE CODE — The Internal Revenue Code of 1986, as amended.

LEASED EMPLOYEE — Any person who is not an employee of the recipient employer and who provides services to the recipient employer in the City if (1) such services are provided pursuant to an agreement between the recipient employer and any other person, and (2) services are performed under primary direction or control of the recipient.

A leased employee shall be considered an employee of the recipient employer for purposes of this chapter unless the recipient employer demonstrates to the Director that the leasing organization is including the payroll relating to such leased employee within its payroll tax return. The entire amount paid to the leasing company shall be treated as part of such employer's payroll, unless the recipient employer demonstrates to the Director that a lesser amount should be used.

PAYROLL — An amount equal to the total renumeration paid by an employer to employers which is subject to federal income tax withholding by the employer for federal income tax purposes for services rendered, other than domestic services in a private residence, if:

(1) The services are performed within the City of Jersey City; or

(2) The services are performed outside of the City of Jersey City, but the place from which the services are supervised is in the City of Jersey City.

Such amount shall generally be based on the amount reportable by the employer on its Federal Form 941 and shall include, but not be limited to, all wages, bonuses, commissions, tips, property, the right to receive property, taxable benefits and all other forms of compensation.

SCHOOLS — All Jersey City public schools.

SERVICES — For the purposes of this chapter, an individual shall be considered in the service of an employer if (1) he is subject to the authority of the employer to supervise and direct the manner of rendition of his service, or he is rendering professional or technical services and is integrated into the staff of the employer, or he is rendering, on the property used in the employer's operations, other personal services the rendition of which is integrated into the employer's operations, and (2) he renders such services for compensation.

SUPERVISION — Services shall be considered to be supervised from the City if an individual who either works in or is based in the City has the right to control and direct the manner of rendition of the employee's service, has hiring and firing responsibility, and oversees the work of such employee.

TAXPAYER — A person, partnership, association, corporation, or other entity required hereunder to file a payroll tax return, and to pay the payroll tax imposed by this Article.

TRUST FUND — The trust fund established pursuant to paragraph A of Section 304-19.1 of this Article.

§ 304-19. Tax imposed. [Added 11-20-2018 by Ord. No. 18-133]

Except as provided in subsection a below, there is hereby imposed on every employer a tax equal to one percent of the employers' payroll, on all payrolls related to services performed on or after the first day of the first month of the calendar quarter in which this article takes effect; provided, however, that no tax shall be imposed with respect to services performed in any calendar quarter prior to that in which this article was adopted.

A. An employer shall incur no payroll tax relative to its Jersey City-resident employees. In order for an employer to claim and pay a reduced payroll tax obligation, the employer must provide the Director, with written evidence and documentation, to the Director's satisfaction, of the relevant employees' Jersey City residency statuses.

B. A charitable organization, as defined above, shall calculate the tax that would otherwise be attributable to the City and file a return, but shall only pay the tax on that portion of its payroll expense attributable to business activity for which a tax may be imposed pursuant to Section 511 of the Internal Revenue Code. If the charitable organization has purchased or is operating branches, affiliates, subsidiaries or other business entities that do not independently meet the standards of a charity, the tax shall be paid on the payroll attributable to such for profit branches, affiliates or subsidiaries, whether or not the employees are leased or placed under the auspices of the charity's umbrella or parent organization.

C. If an out-of-State municipality or other out-of-State state or out-of-State local entity imposes an employer payroll tax on any employee with respect to remuneration paid to an employee for service performed out-of-State, an employer payroll tax imposed pursuant to section 15 of P.L. 1970, c.326 (C.40:48C-15) and Chapter 304, Article IV of the Municipal Code shall not apply to that employee. In such case, the employer shall submit documentation in a manner prescribed by the City regarding the employee's residency status, the location and description of services performed out-of-State, and the applicable out-of-State employer payroll tax, to the City before any employer payroll tax obligation, imposed pursuant to section 15 of P.L.1970, c.326 (C.40:48C-15) and Chapter 304, Article IV of the Municipal Code, shall be waived. **[Added 2-25-2026 by Ord. No. 26-006]**

§ 304-19.1. Trust fund and distribution of payroll tax proceeds. [Added 11-20-2018 by Ord. No. 18-133]

A. The Director shall create a trust fund to be used exclusively for school purposes.

B. All revenue collected by the City pursuant to Section 304-19 of this Article shall be deposited into the Trust Fund.

C. The City Business Administrator, including his or her designee and/or agent, shall monthly pay employer payroll tax revenues deposited in the trust fund over to the treasurer of school moneys of the school district coextensive with the municipality or of which the municipality comprises a part in an

amount equal to 1/12 of the difference in State school aid provided to that school district, pursuant to N.J.S.A. 18A:7F-43 et al, and N.J.S.A. 18A:7F-67 et al, between the current State fiscal year and State fiscal year 2018.

D. All tax revenue distributed under this section shall be used in lieu of State adjustment aid and all other categories of State school aid.

E. Any monthly balance remaining in the trust fund shall be reserved for use toward making future payments pursuant to paragraph C of this section.

F. In the event that, when a monthly trust fund payment becomes due, the balance of the trust fund is insufficient to make a payment pursuant to paragraph (c) of this section, the City Business Administrator shall pay the remaining balance of the trust fund over to the treasurer of school moneys of the school district coextensive with the municipality, or of which the municipality comprises a part for that month only.

G. Pursuant to N.J.S.A. 40:48C-15, the City may retain up to three percent of employer payroll tax collected annually to pay for costs related to the administration of Chapter 304, Article IV of the Municipal Code. **[Added 2-25-2026 by Ord. No. 26-006]**

§ 304-19.2. Administration and enforcement. [Added 11-20-2018 by Ord. No. 18-133]

A. *Powers and duties of Director.*

1. The Director is charged with the administration and enforcement of the provisions of this chapter, and is empowered to prescribe, adopt, promulgate and enforce rules and regulations relating to any matter pertaining to the administration and enforcement of this chapter, including provisions for the reexamination and corrections of declarations and returns, and of payment alleged or found to be incorrect, or as to which an overpayment is claimed or found to have occurred, and to prescribe forms necessary for the administration of this chapter. Should an employer fail or refuse to provide adequate information to the Director to determine the amount of payroll tax due, the Director may use prior year information of the employer and/or information provided to the Director from other sources (i.e., the New Jersey Departments of Labor and/or Revenue) to determine the amount of payroll tax liability.

2. It shall be the duty of the Director to collect and receive the taxes, fines, and penalties imposed by this chapter. It shall also be the duly of the Director to keep a record showing the date of such receipt.

3. The Director is authorized to enter into agreements with the State of New Jersey Department of Labor and/or Department of Revenue to obtain information regarding employers, their employees and their payroll to facilitate administration of the payroll tax.

4. The director is authorized to issue a ruling upon written request of a taxpayer or upon its own volition.

B. *Examination of books and records of taxpayers and employers.*

1. The Director is hereby authorized to examine the books, papers and records of any employer or supposed employer, or of any taxpayer or supposed taxpayer, in order to verify the accuracy of any declaration or return, or if no declaration or return was filed, to ascertain the tax due. Every employer or supposed employer, and every taxpayer or supposed taxpayer, is hereby directed and required to give to the Director, or to any agent designated by him/her, the means, facilities and opportunity for such examinations and investigations, as are hereby authorized,

2. If records are not available in the City to support the returns which were filed or which should have been filed, the taxpayer will be required to make them available to the Director either by producing them in a City location or by paying for the expenses incurred by the Director or his agent in traveling to the place where the records are regularly kept.

C. *Records to be kept for the employer.* Taxpayers and employers liable for the payroll tax are required to keep such records as will enable the filing of true and accurate returns or the tax and such records shall be preserved for a period of not less than seven years from the filing date or due date, whichever is later, in order to enable the Director or any agent designated by him to verify the correctness of the declarations or returns filed.

D. *Audits.*

1. The Director shall initiate an audit by means of an audit notice. If, as a result of an examination conducted by the Director, a return has not been filed by an employer or a return is found to be incorrect and payroll taxes are owed, the Director is authorized to assess and collect any payroll tax due. If no return has been filed and tax is found to be due, the tax-actually due may be assessed and collected with or without the formality of obtaining a return from the taxpayer. Deficiency assessments (i.e., where a taxpayer has filed a return but is found to owe additional tax) shall include taxes for up to three years to the date when the deficiency is assessed. Where no return was filed, there shall be no limit to the period of assessment.

2. Upon proposing an assessment,-the Director shall send the Employer an interim notice by certified mail, return receipt requested, which advises the taxpayer of additional payroll taxes that are due, along with penalties and interests. Should the taxpayer wish to dispute the assessment administratively by requesting a hearing with the Director, it must do so within 30 days of the date of such interim notice.

3. If, after the Director sends an interim notice, a taxpayer fails to timely request a hearing with the Director or requests a hearing and after conducting a hearing, the Director determines that payroll taxes are due, the Director shall send the employer by certified mail, return receipt requested, a final notice. Should the Taxpayer wish to dispute the assessment, he or she must do so in the manner described in Section 304-19.5 of this Chapter.

§ 304-19.3. Return requirement; registration. [Added 11-20-2018 by Ord. No. 18-133]

A. Filing a return; payment of tax. All employers are required to file a payroll tax return with the Director to report their payroll during each calendar quarter and the amount of payroll tax in accordance with

the provisions of this chapter. Returns shall be filed and payments of payroll tax imposed for the preceding calendar quarter shall be made on or before the last day of April, July, October, and January, respectively. An employer who conducts business in the City on a temporary, seasonal or itinerant basis shall file a return and pay the tax within ten days of the completion of the temporary, seasonal, or itinerant business, but not less frequently than quarterly. Should the amount reflected on an employer's Federal Form 941 be revised or amended at anytime after the payroll tax return for such period has been filed (by the employer or by the Internal Revenue Service), the employer is required to amend its payroll tax return to be consistent therewith within three months of the date of such revision or amendment.

B. Registration. Every employer must be registered with the City in accordance with any Jersey City Business Registration Ordinance and any existing business registration law. Should an employer cease doing business in the City or having payroll subject to the payroll tax, it shall notify the Director within three months of such date.

§ 304-19.4. Suits for tax collections, violations, fines, interest and penalties. [Added 11-20-2018 by Ord. No. 18-133]

A. Remedies not mutually exclusive. The remedies provided in this section are not mutually exclusive. The utilization by the Director of one remedy does not preclude utilization of the other. Moreover, any use of the remedies provided in these sections does not preclude the use by the City of any other legal or administrative procedure which can bring about compliance by the taxpayer with the provisions of this chapter,

B. Suits for recovery of unpaid taxes. The Director may sue in the name of the City in law or in equity, for the recovery of those payroll taxes due and unpaid under the provisions of the payroll tax, to compel the production of records or to enforce any other provisions of the law.

C. Limitations.

1. The following periods of limitations shall apply to suits for collection of payroll taxes:

i. When a return has been filed but no tax paid, any suit brought to recover the tax due and unpaid shall be filed within three years after the return was due or filed, whichever is later. Where no return was filed or a fraudulent return was filed, there shall be no limits to file suit for the collection of taxes.

ii. A return filed before the due date is deemed to be filed on the due date.

iii. Extension by agreement. Where, before the expiration of the time prescribed in this section for the filing a lawsuit against the taxpayer, both the Director and the taxpayer have consented in writing to its extension after such time, the suit may be filed at any time prior to the expiration of the period agreed upon. The period so agreed upon maybe extended by subsequent agreements in writing made before the expiration of the period previously agreed upon.

D. Penalty and interest.

1. If for any reason the payroll tax is not paid when due, interest at the rate of eight percent per annum on the first $1,500.00 of the delinquency and 18 percent per annum on any amount in excess of $1,500.00 shall be added to the tax.

2. On any additional tax determined to be due as a result of a deficiency assessment, penalty and interest will be assessed from the date the tax should have been paid to the date of payment. Penalty and interest is calculated as described above in the applicable portion of subsection 1.

3. Where suit is brought for the recovery of such tax, the person liable therefore shall, in addition, be liable for the costs of collection and the interest and penalties herein imposed. Once due and owing, penalty and interest become part of the tax and shall be collected as such. A person's belief that no tax is due and owing, or the failure of any person to receive or obtain the forms required for making the returns required under this chapter is not a valid defense to the imposition of penalties herein for violation. Good faith shall not be a defense to the imposition of penalty.

E. *Fines and penalties for violations.*

1. Violations. No person shall:

i. Fail, neglect or refuse to make any return or provide any reports required by this chapter.

ii. Refuse to permit an officer or agent designated by the Director to examine the books, records, papers or accounts of any business taxable or otherwise to determine liability.

iii. Knowingly make any incomplete, false or fraudulent report or attempt to do anything whatever to avoid full disclosure of the amount of payroll tax due to avoid the payment in whole or in part of the payroll tax.

2. In addition to any other penalties or enforcement proceedings provided for the collection and enforcement of payroll taxes by applicable law, any person who commits a violation of this chapter shall, upon conviction, be subject to a fine of not less than $100.00 and not exceeding $2,000.00, imprisonment for a term not exceeding 90 days and/or a period of community service not exceeding 90 days. Any person who is convicted of violating this chapter within one year of the date of a previous violation of this chapter and who was fined for such previous violation, shall be sentenced to an additional fine as a repeat offender, which fine shall not be less than the minimum and not more than the maximum fine fixed for a violation of this chapter.

3. The fines and terms of imprisonment imposed under this section shall be in addition to any other relief granted to the City of a monetary nature under the provisions of this chapter.

F. Certificate of indebtedness. Upon making an assessment of payroll tax or additional payroll tax, the Director may issue a certificate of indebtedness, which shall be filed with the Clerk of the Superior Court to record as a judgment against the Employer.

§ 304-19.5. Taxpayer remedies. [Added 11-20-2018 by Ord. No. 18-133]

A. Director hearings.

1. Any person who receives an interim notice from the Director may within 30 days after the date of an interim notice, request a hearing with the Director.

2. Any person who fails to request a Director's hearing within a timely manner waives the right to administratively contest any element of the assessment.

B. Payment Under Protest. The Director will accept payments of disputed tax amounts under protest pending appeals; however, any request for refund of such monies must be filed, in accordance with subsection D of this section,

C. Refunds.

1. A taxpayer who has overpaid the payroll tax, or who believes he is not liable for the payroll tax may file a written request on an amended tax return with the Director for a refund or a credit of the tax, A request for refund or a credit shall be made within three years of the due date for filing the report

or one year after actual, payment of the tax, whichever is later. If no report is required, the request shall be made within three years after due date for payment of the tax or within one year after actual payment of the tax, whichever is later.

2. For amounts paid as a result of a notice asserting or informing a taxpayer of an underpayment, a written request for a refund shall be filed with the Director within one year of the date of the payment.

3. Erroneous refund recovery. The Director may sue for recovery of an erroneous refund provided such suit is begun two years after making such refund, except that the suit may be brought at any time if any part of the refund was induced by fraud or misrepresentation of material fact. Notwithstanding the foregoing, the Director may file a law suit within the limitations period under Section 304-19.4.C of this chapter, if such period ends after the two-year period specified in the preceding sentence.

D. Appeals. Any aggrieved employer may, within 90 days after the mailing of any final notice regarding a decision, order, finding assessment or action of the Director, appeal to the tax court in accordance with the provisions of the State Tax Uniform Procedure Law, N.J.S.A. 54:48-1 et seq. by filing a petition of appeal and upon payment of the amount stated by the Director to be due. The appeal provided by this section shall be the exclusive remedy available to any employer for review of a final decision of the Director in respect to a determination of liability for the tax imposed by this chapter. If no such appeal is filed on a timely basis, the aggrieved party waives his right to contest any element of the Director's adjudication, and that party's failure to challenge the same will be construed as an admission by that party as to the propriety of the Director's decision. No hearing or appeal will operate to suspend the accrual of penalty and interest from the date the tax was due to the date it is actually paid.

§ 304-20. Information confidential. [Added 11-20-2018 by Ord. No. 18-133]

Any information contained in an employer's report or received by the City of Jersey City or any of its officers or employees as a result of any investigation, hearing or verification of a report shall not be disclosed except for official purposes, and shall not be disclosed except in accordance with an order of a court or as otherwise provided by law.

§ 304-21. Prohibition against deduction or withholding. [Added 11-20-2018 by Ord. No. 18-133]

No employer shall deduct or withhold any amount from the remuneration payable to an Employee because of the tax imposed by this article.

§ 304-22. Liability of employer to only one municipality. [Added 11-20-2018 by Ord. No. 18-133]

No employer shall be obligated to report and pay Sn employer payroll tax, or any interest, penalty or costs with respect thereto, to more than one municipality with respect to remuneration paid to an employee for services performed. Where any dispute as to the liability for an employer payroll tax to more than one

municipality for services performed by an employee is not resolved by agreement between the employer and the municipalities, all of said municipalities shall be joined in a proceeding in the tax court to collect the tax alleged to be due.

§ 304-23. Effective date.

This Article shall take effect on January 1, 2019. **[Added 11-20-2018 by Ord. No. 18-133]**

§ 304-24. Division of local finance. [Added 11-20-2018 by Ord. No. 18-133]

The City Clerk shall file a copy of this article with the Director of the Division of Local Finance in the New Jersey Department of Community Affairs. He shall likewise file any amendments to this article, including any regulations promulgated in accordance with Section 304-19.2 of this Article.

ARTICLE V
Hotel and Transient Accommodation Occupancy Tax and Hotel Labor Peace*

§ 304-25. Title. [Amended by 1-24-2018 by Ord. No. 18-003; by 3-12-2020 by Ord. No. 20-027]

This article shall be known and may be cited as the "Hotel and Transient Accommodation Occupancy Tax and Hotel Labor Peace."

§ 304-26. Tax imposed. [Amended 4-8-2015 by Ord. No. 15-039; by 3-12-2020 by Ord. No. 20-027]

There is hereby imposed a six percent tax on charges for the use or occupancy of transient accommodations and rooms in hotels as authorized by the "Hotel and Motel Occupancy Tax Act," N.J.S.A. 40:48E-1, et seq., as amended. This tax shall be in addition to any and all real estate (ad valorem) taxes or services charges; the tax imposed by the "Sales and Use Tax Act," N.J.S.A. 54:32B-1 et seq.; or any other fee, charge or tax imposed by law.

§ 304-27. Tax exempted. [Amended by 3-12-2020 by Ord. No. 20-027]

No rooming or boarding house that is licensed and regulated pursuant to the Rooming and Boarding House Act of 1979, N.J.S.A. 55:13B-1 et seq., shall be subject to the tax imposed pursuant to the Hotel and Motel Occupancy Tax Act, N.J.S.A. 40:48E-1 et seq., and this article.

§ 304-27.1. Payment of tax. [Amended by 3-12-2020 by Ord. No. 20-027]

A. All revenue collected under the Hotel and Transient Accommodation Occupancy Tax Act shall be paid to the Chief Fiscal Officer of the City who shall be responsible for the collection of the tax, in quarterly installments, on or before those dates when real property tax payments are due to the municipality under State law.

***Editor's note**—Adopted November 10, 1999 by Ord. No. 99-166, and amended in its entirety September 13, 2006 by Ord. No. 06-099; and March 14, 2007 by Ord. No. 07-032. The title of Article V was amended January 24, 2018, by Ord. No. 18-003 and March 12, 2020 by Ord. No. 20-027.

B. The hotels and transient accommodations subject to this tax will not receive any credit or refund permitted against any other taxes due. It is the express intention of the City to collect in foil both real estate taxes or services charges and the hotel and transient accommodation tax.

C. The tax shall be collected on behalf of the City by the person collecting the use or occupancy charge from the hotel or transient accommodation customer.

D. Every person required to collect any tax imposed by the ordinance shall be personally liable for the tax imposed, collected or required to be collected hereunder. Any such person shall have the same right in respect to collecting the tax from their customer as if the tax were a part of the use or occupancy charge and payable at the same time: provided, however, that the Chief Fiscal Officer of the City shall be joined as a party in any action or proceeding brought to collect the tax.

E. No person required to collect any tax hereunder shall advertise or hold out to any person or to the public in general, in any manner, directly or indirectly, that the tax will not be separately charged and stated to the customer or that the tax will be refunded to the customer.

F. Payment of delinquent hotel occupancy taxes shall be enforced in the same manner as delinquent real property taxes.

§ 304-27.2. Definitions. [Added 4-8-2015 by Ord. No. 15-039; amended by 1-24-2018 by Ord. No. 18-003; 3-12-2020 by Ord. No. 20-027]

To effectuate the purposes of this article, these terms shall have the following meanings:

CITY means the City of Jersey City and shall include the Mayor, the Municipal Council, the Corporation Counsel, and/or the Business Administrator of the City of Jersey City, or any of their designees.

COLLECTIVE BARGAINING AGREEMENT (CBA) means an agreement entered into between the entity contracting or subcontracting to provide services and a Labor Organization lawfully serving as the exclusive collective bargaining representative for the employees who provide or will provide services pursuant to such a contract.

CONTRACT as used herein means any contract to which 29 U.S.A. § 185(a) applies, as that provision has been interpreted by the United States Supreme Court.

ENTITY means any natural person, sole proprietorship, partnership, limited liability company, corporation, joint venture or business organization of any kind.

HOSPITALITY COMPANY means any entity seeking to develop and/or operate a Hotel as defined herein, including any developer who intends to lease or sublease property to another entity to operate a hotel.

HOSPITALITY OPERATIONS means any operations at a hotel staffed by hospitality workers.

HOSPITALITY WORKERS means all employees employed on the hotel premises, except supervisors, managers, confidential employees and guards.

HOTEL shall mean a building or portion of it which is regularly used and kept open as such for the lodging of guests, whether or not meals are served, and also includes, but is not limited to an apartment hotel, bed and breakfast, motel, inn, boarding house, rooming house, condotel, a home, apartment, house, condo or dwelling irrespective of whether there is a permanent resident residing in the building, and any other sleeping accommodations that are available to the public on a transient basis, and any dining and food or beverage operations which are included in the hotel. Hotels shall not include a transient accommodation as defined herein.

LABOR ORGANIZATION means an organization of any kind, or an agency or employer representation committee or plan, in which employees participate and which exists for the purpose, in whole or in part, of dealing with employers concerning grievances, labor disputes, wages, rates of pay, hours of employment or conditions of work.

NO-STRIKE PLEDGE AGREEMENT means an agreement prohibiting the labor organization and its members, and in the case of a collective bargaining agreement, all employees covered by the agreement, from engaging in picketing, work stoppages, boycotts or any other economic interference with the hospitality operations for the duration of the City's hospitality contract.

OBTAINED THROUGH A TRANSIENT SPACE MARKETPLACE means that payment for the accommodation is made through a means provided by the marketplace or travel agency, either directly or indirectly, regardless of which person or entity receives the payment, and where the contracting for the accommodation is made through the marketplace or travel agency.

PROFESSIONALLY MANAGED UNIT means a room, group of rooms, or other living or sleeping space for the lodging of occupants in the State, that is offered for rent as a rental unit that does not share any living or sleeping space with any other rental unit, and that is directly or indirectly owned or controlled by a person offering for rent two or more other units during the calendar year.

RESIDENCE means a house, condominium, or other residential dwelling unit in a building or structure or part of a building or structure that is designed, constructed, leased, rented, let or hired out, or otherwise made available for use as a residence.

REDEVELOPMENT AREA BOND means the bonds sold by the City pursuant to N.J.S.A. 40A:12A-64 et seq. (the "RAB Law") in order to fund infrastructure improvements and other construction costs undertaken by a developer who has received a tax exemption pursuant to N.J.S.A. 40A:20-1 et seq., or N.J.S.A. 40A:21-1 et seq.

TRANSIENT ACCOMMODATION means a room, group of rooms, or other living or sleeping space for the lodging of occupants, including but not limited to residences or buildings used as residences, that is obtained through a transient space marketplace or is a professionally managed unit. "Transient accommodation" does not include: a hotel or hotel room; a room, group of rooms, or other living or sleeping space used as a place of assembly: a dormitory or other similar residential facility of an elementary or secondary school or a college or university: a hospital, nursing home, or other similar residential facility of a provider of services for the care, support and treatment of individuals that is licensed by the State: a campsite, cabin, lean-to, or other similar residential facility of a campground or an adult or youth camp: a famished or unfurnished private residential property, including but not limited to condominiums, bungalows, single-family homes and similar living units, where no maid service, room

service, linen changing service or other common hotel services are made available by the lessor and where the keys to the famished or unfurnished private residential property, whether a physical key, access to a keyless locking mechanism, or other means of physical ingress to the famished or unfurnished private residential property, are provided to the lessee at the location of an offsite real estate broker licensed by the New Jersey Real Estate Commission pursuant to N.J.S.A. 45:15-1 et seq.; or leases of real property with a term of at least 90 consecutive days.

TRANSIENT SPACE MARKETPLACE means a marketplace or travel agency through which a person may offer transient accommodations to customers and through which customers may arrange for occupancies of transient accommodations. "Transient space marketplace" does not include a marketplace or travel agency that exclusively offers transient accommodations in the State owned by the owner of the marketplace or travel agency.

§ 304-27.3. Compliance with other laws. [Added 4-8-2015 by Ord. No. 15-039]

A. This article shall be administered in the same manner as the state occupancy fee including but not limited to the entitlement to any exemptions, all in accordance with N.J.S.A. 54:32D-1 et seq., N.J.S.A. 54:32B-1 et seq., and N.J.A.C. 18:24-3.1 et seq., as applicable.

B. The payment or collection of this occupancy fee does not in any way condone, exempt or supersede the property in use from compliance with all other building, zoning, insurance or any other governmental agency law or regulation.

§ 304-27.4. No-strike pledge requirement. [Added 1-24-2018 by Ord. No. 18-003]

Any developer who seeks to obtain financial assistance from the City for a prospective hotel project in the form of a redevelopment area bond or any other form of assistance which renders the City a market participant pursuant to such proprietary interest, must execute a collective bargaining agreement or other contract enforceable under 29 U.S.C. § 185(a) containing a no-strike pledge with any labor organization seeking to represent the hospitality workers to be employed at the hotel premises.

§ 304-27.5. Term. [Added 1-24-2018 by Ord. No. 18-003]

The obligations imposed by this article shall remain in effect so long as the redevelopment area bond is outstanding and expire no sooner than the date the redevelopment area bond or the City's financial assistance has been repaid in full.

§ 304-27.6. Limitations. [Added 1-24-2018 by Ord. No. 18-003]

Nothing in this article requires any hospitality company to recognize a particular labor organization nor does this article require employees to be union members. This article is not intended to, and shall not be interpreted to enact or express any generally applicable policy regarding labor-management relations or to regulate those relations in any way. This article is not intended to favor any particular outcome in the determination of employee preference regarding union representation. Nothing in this article permits or requires the City or any hospitality company to enter into any agreement in violation of federal labor laws.

§ 304-27.7. Severability. [Added 1-24-2018 by Ord. No. 18-003]

If any section or any portion of a section of this article is declared illegal, invalid or inoperative, in whole or in part by any court of competent jurisdiction, the remaining sections and all portions not declared illegal, invalid or inoperative shall remain in full force or effect, and no such determination shall invalidate the remaining sections or portions of the sections of this article.

ARTICLE VI

Long Term and Five Year Tax Exemptions; Affordable Housing Trust Fund [Amended in its entirety 9-28-2005 by Ord. No. 05-130; 9-11-2013 by Ord. No. 13-088]

§ 304-28. Affordable Housing Trust Fund Contribution: execution of a Project Labor & Contracting Agreement (PECA) required. [Amended 9-11-2013 by Ord. No. 13-088; 11-26-2013 by Ord. No. 13-129; 3-12-2014 by Ord. No. 14-027; 9-24-2015 by Ord. No. 15-130; 1-9-2019 by Ord. No. 18-151]

A. No long term tax exemption permitted under N.J.S.A. 40A:20-1 et seq., or five year tax exemption permitted under N.J.S.A. 40A:21-8 and Section 304-12 of the Jersey City Municipal Code, for any market rate housing project or any commercial or industrial project, shall be approved unless the recipient makes a contribution to the Jersey City's Affordable Housing Trust Fund, in accordance with N.J.S.A. 40A:12A-4.1 et seq., and this Chapter.

B. No contribution shall be required of a recipient that by a recorded deed or agreement, restricts (thereby setting aside) a minimum of fifteen percent (15%) of the gross number of residential units within the project for low and moderate income affordable housing in accordance with the Fair Housing Act, N.J.S.A. 52:27D-301 et seq.

C. Contributions to Jersey City's Affordable Housing Trust Fund shall be paid in accordance with N.J.S.A. 40A:12A-4.1 et seq., for a term equal to the length of the tax abatement.

D. The standard PECA forms shall be in substantially the same format as those approved by the Corporation Counsel and on file in the Office of the City Clerk.

§ 304-29. Amount of prepayments.

The amount of contributions shall be calculated based upon the classification of the improvements to be tax exempt in accordance with the following formulas:

Market Rate Housing	$1,500.00 per unit
Commercial Space	$ 1.50 per sq. ft.
Industrial Space	$ 0.10 per sq. ft.

§ 304-30. Time of contribution.

A. All contributions shall be due and payable as follows: [**Amended 9-11-2013 by Ord. No. 13-088**]

1. One third on or before the effective adoption date of the ordinance approving the tax exemption, that is the effective date of the executed Financial or Tax Agreement;

2. One third on or before the issuance of the first of any construction permit for the Project, but no later than six months after the date of the Financial or Tax Agreement;

3. One third on or before the date the first of any Certificate of Occupancy is issued for the Project, but no later than twenty-four (24) months after the date of the Financial or Tax Agreement.

B. Any payment that is late or unpaid in whole or in part, whether billed or not, shall bear the highest rate of interest allowed by law for unpaid conventional taxes until paid in full.

§ 304-31. Notices. [Amended 9-11-2013 by Ord. No. 13-088]

The recipient shall send a written Notice to the Business Administrator and the Director of the Office of Tax Exemption, immediately advising the City of the occurrence of each of the following events:

A. The submission of the executed financial or tax agreement to the City;

B. The filing of the application for the first construction permit for the Project; and

C. The issuance of the first Certificate of Occupancy by the Construction Code Official for any part of the Project.

§ 304-32. Guidelines for the expenditure of funds. [Amended 11-21-2006 by Ord. No. 06-144; amended 11-26-2013 by Ord. No. 13-129; 9-20-2023 by Ord. No. 23-092]

A. Use of Funds: Contributions made to the Affordable Housing Trust Fund shall be expended for the rehabilitation or construction or preservation of existing low or moderate income affordable housing or the construction of new low or moderate income affordable housing, as those terms are defined in the Fair Housing Act, N.J.S.A. 52:27-301 et seq., and any regulations promulgated thereunder. Additionally, contributions to the Affordable Housing Trust Fund may be used to provide rental assistance to low income or moderate income tenants as defined by the United States Department of Housing and Urban Development or the New Jersey Housing and Mortgage Finance Agency that are subject to the possibility of an eviction proceeding due to an inability to pay rent for their home.

B. Awards: All funds to be used for the rehabilitation, construction or preservation of low or moderate income affordable housing shall be awarded by the City from the Affordable Housing Trust Fund as loans, on a reimbursement basis only, to supplement other private or public funds needed to complete the project. Awards shall be based upon responses to a Request for Qualifications, to be solicited biannually in January and August, subject to availability of trust funds. All funds awarded pursuant to a rental assistance program may be issued as grants without a requirement for reimbursement.

C. Qualifications: No award to be used for the rehabilitation, construction or preservation of low or moderate income affordable housing will be approved unless the applicant at a minimum satisfies the following conditions:

1. Application. Every applicant must file a complete application form, which shall include an administrative questionnaire, financial disclosure statement and any other forms or supporting

documents the City deems appropriate or necessary. The application will be in substantially the same form on file in the City Clerk's office. The application may be amended from time to time as the Business Administrator deems appropriate or necessary;

2. Entity. An applicant must provide proof that it is a for profit or a non profit entity, organized under State and Federal law for the purpose of constructing affordable housing or a public entity;

3. Experience. Every applicant must demonstrate that it has successfully completed the construction of at least one other significant housing project;

4. Funding. An applicant must provide proof that it is the recipient of funds from another public or private source that, together with the Trust Fund award, will constitute sufficient funds to complete the proposed project. However, for acquisition funds, the applicant must document that the proposed project is eligible for other public or private funds, and that an application for these funds will be filed within sixty (60) days of commitment of affordable housing trust fund funds; and

5. Commencement of Construction. The applicant must commence construction no later than one year from the date of the award of the Trust Fund money. Failure to commence construction within one year will result in cancellation of the award.

D. Evaluation: Applications shall be evaluated by an executive committee using the scoring matrix contained in the Application. The matrix may be amended from time to time as the Business Administrator deems necessary or appropriate.

E. Dedication ratios: Trust Funds calculated as of July 1st of each year, shall be dedicated as follows:

Income Breakdown

1. A minimum of thirty (30) percent of the Trust Funds shall be dedicated for very low (fifty (50) percent or below area median income) or special needs housing including housing for senior citizens, the disabled or homeless or other special needs populations, with at least ten (10) percent reserved for housing designed to accommodate large families (three or more bedrooms);

Activity Breakdown

1. Up to ten (10) percent of the Trust Funds will be dedicated to reasonable pre-development activities;

2. Ten (10) percent of the funds shall be retained by the City for its own administrative fees, and/or capacity building activities for local community development corporations;

3. Up to thirty (30) percent of the funds may be used to acquire property for the development/redevelopment of affordable housing; and

4. Balance of funds will be dedicated to hard construction costs or may be used to provide a rental assistance program for low income or moderate income tenants as defined by the

United States Department of Housing and Urban Development or the New Jersey Housing and Mortgage Finance Agency that are subject to the possibility of an eviction proceeding due to an inability to pay rent for their home.

F. Pre-Development Costs: Only non profit or public entities will be eligible to use funds for Pre-Development Costs. Pre-Development Costs may not exceed the lesser of ten (10) percent of the total project budget or one hundred thousand dollars ($100,000.00) for any one project. All Pre-Development Costs must be pre-approved and in the City's sole discretion, reasonable, and based upon the total project budget. Pre-Development Costs are limited to the following:

1. Financing fees;
2. Application fees;
3. Legal fees;
4. Environmental testing;
5. Engineering fees;
6. Costs related to securing local site plan approval;
7. Architectural fees;
8. Title report;
9. Survey costs; and
10. Project management fees.

G. Collateral: All loans shall be collateralized by a note and the recordation of a mortgage. The mortgage may only be subordinated to another permanent governmental loan or a private institutional lender used to finance initial project acquisition or construction. All loans, including self-amortizing loans, shall bear interest determined on a project-by-project basis at a rate not to exceed the interest rate imposed on the first mortgage as of the 1st day of the month immediately preceding the closing.

ARTICLE VII

Construction Project Labor Agreements*

§ 304-33. Definitions. [Added 8-16-2017 by Ord. No. 17-104]

To effectuate the purposes of this article, these terms shall have the following meanings:

1. APPRENTICE means a worker who participates in a program registered by the Bureau of Apprenticeship and Training of the U.S. Department of Labor, ("DOL") or an apprenticeship equivalent program either approved and funded by the New Jersey Department of Labor as of January 1,2003, who takes a construction apprenticeship test, and receives benefits and pay not less than those received by an apprentice.

2. AFFORDABLE HOUSING GRANT means a form of redevelopment area financing involving a disbursement of monies from the City's Affordable Housing Trust Fund to a developer, given in order to ensure the inclusion of on-site affordable housing at the developer's project, for the duration of the tax exemption.

3. APPRENTICESHIP PROGRAM means an apprenticeship program and registered by the Bureau of Apprenticeship and Training of the U.S. Department of Labor or an apprenticeship equivalent program as that term is used by the State of New Jersey in the Abbot Project Labor Agreement either approved and funded by the New Jersey Department of Labor as of January 1, 2003.

4. CITY OF JERSEY CITY means the Mayor, the Municipal Council, the Corporation Counsel, and/or the Business Administrator of the City of Jersey City, or any of their designees.

5. COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) means a form of redevelopment area financing which provides monies that can be used to revitalize neighborhoods, expand affordable housing and economic opportunities, and/or improve community facilities.

6. CRAFT EMPLOYEE means a person employed in a trade as defined herein at either the apprentice or journeyman level.

7. DEVELOPER means an entity that is developing a project that has a total construction cost that is equal to, or in excess of, $25,000,000.00, exclusive of any land acquisition costs, and has received (1) a tax exemption pursuant to N.J. S.A. 40A:20-1 et seq. (the Long-Term Tax Exemption Statute) or a tax exemption pursuant to N.J.S.A. 4OA:21-1, et seq., (the Five-Year Tax Exemption Statute) and (2) is a recipient of some form of redevelopment area financing (RAF) such as, but not limited to, a redevelopment area bond ("RAB") pursuant to N.J.S.A. 40A:12A-64, et seq. or any other form of municipal financing/funding such as an affordable housing trust fund grant, a community development block grant (CDBG), a direct payment to the developer by the City in the form of rent, or (3) if the entity is the recipient of a construction contract awarded by the City for a public construction project.

'Editor's note—Ord. No. 17-104, adopted August 16,2017, amended the Code by repealing former Art. VII, §§ 304-33—304-38, and adding a new Art. VII. Former Art. VII pertained to similar subject matter, and derived from Ord. No. 07-123, adopted June 27,2007; Ord. No. 12-051, adopted April 25, 2012; and Ord. No. 14-052, adopted May 28,2014.

8. FINAL CERTIFICATE OF OCCUPANCY means the certificate that is issued by the Office of the Construction Official from the Department of Housing, Economic Development & Commerce upon completion of the project indicting that the structure is ready for occupancy.

9. JOURNEYMAN means a skilled worker who is a member of a labor organization and who has successfully completed an official apprenticeship qualification in a building trade or craft.

10. LABOR ORGANIZATION means an organization which represents, for purposes of collective bargaining, employees trained in a particular trade, involved in the performance of public construction project or RAF project that has the present ability to refer, provide or represent sufficient numbers of qualified employees to perform the contracted work and has an apprenticeship program.

11. LABOR PERSON HOURS means the number of hours worked multiplied by the number of employees performing such work.

12. MINORITY means any person who is identified as Black, Asian, Hispanic, or American Indian as codified in N.J.A.C. 17:27-2.1.

13. MINORITY/WOMEN-OWNED BUSINESS ENTERPRISE (MWBE) means (1) a business in which the principal is a minority as defined herein, or a woman (2) a business in which at least 51 percent of the ownership interest is held by a minority as defined herein, or by a woman, and the management and daily business operations are controlled by one or more of the minorities or women who own it; or (3) a corporation or other business entity authorized under the laws of New Jersey whose management and daily business operations are controlled by one or more of the minorities or women who own it, and which at least 51 percent of the corporation is owned by one or more minorities or women, and if stock is issued, at least 51 percent of the stock is owned by one or more minorities or women.

14. PRINCIPAL means any officer, director, or individual who directly or indirectly holds any beneficial interest in or ownership of the securities of the business and/or any employee of the business who is empowered by title or by explicit assignment to authorize the procurement, purchase, or contracting of equipment, goods, services, or supplies whatsoever involving an expenditure of $1,000.00 or greater.

15. PROJECT COMPLETION means the determination by the City that the project, in whole or in part, is ready for the use intended, which ordinarily shall mean the date on which the project receives its final certificate of occupancy.

16. PROJECT LABOR AGREEMENT (PLA) means a contract between a labor organization and a developer for construction jobs that contains at a minimum the requirements set forth in this article.

17. PUBLIC CONSTRUCTION PROJECT means any construction contract entered into by the City using public funds, the total cost of which is equal to or exceeds $5,000,000.00, exclusive of any land acquisition costs.

18. REDEVELOPMENT AREA BOND means a form of redevelopment area financing whereby the City sells bonds pursuant to N.J.S.A. 40A:12A-64, et seq. (the "RAB Law") in order to fund infrastructure improvements and other project costs.

19. REDEVELOPMENT AREA FINANCING ("RAF") PROJECT means a project that has a total construction cost that is equal to or exceeds $25,000,000.00, exclusive of any land acquisition costs, which receives (1) a tax exemption pursuant to N.J.S.A. 40A:20-l et seq. or N.J.S.A. 4OA:21-1, et seq., and (2) receives some form of redevelopment area financing such as an affordable housing trust fund grant, a community block development grant, or a redevelopment area bond.

20. RESIDENT means any person who currently lives in Jersey City and who has lived in Jersey City for the previous 12 months.

21. SUBSTANTIAL COMPLETION means any construction project that is not completed but is near completion by virtue of the project receiving a temporary certificate of occupancy from the office of the construction official of the Department of Housing, Economic Development & Commerce.

22. TEMPORARY CERTIFICATE OF OCCUPANCY means a certificate that is issued by the Office of the Construction Official when a project has been substantially completed provided that such portion or portions may be occupied safely prior to full completion of the building or structure without endangering health or safety.

23. TOTAL CONSTRUCTION COST means all costs, including infrastructure, excluding only land acquisition costs, incurred to construct a project through the date of completion, that is, the date the final certificate of occupancy is issued. Total construction cost shall generally be determined in accordance with the industry standard of Marshall and Swift Valuation, but including the cost of piling and soil compaction. Total construction cost must include any construction cost constituting as an element of total project cost under N.J.S.A. 40A:20-3(h)(4).

24. TRADE means a skilled job, typically one requiring manual skills and special training, such as carpentry, masonry, and plastering, that are primarily concerned with the construction and finishing of buildings.

25. WOMAN or WOMEN means a female or females, regardless of race.

§ 304-34. Project labor agreements required; general terms. [Added 8-16-2017 by Ord. No. 17-104]

All redevelopment area financing (RAF) projects as defined herein and all requests for proposals, specifications and final contracts for public construction projects, which exceed $5,000,000.00, exclusive of any land acquisition costs, shall require the execution of a project labor agreement that complies with the requirements of this article. The Business Administrator may, having taking into consideration the nature, size and complexity of the project, determine that a project labor agreement is not required. In all cases where a project labor agreement is utilized, it must advance the interests of the City, including cost, efficiency, quality, time lines, and need for a skilled labor force and safety.

All project labor agreements shall contain the following terms:

1. A guarantee that there will be no strikes, lock-outs, or other similar actions;
2. Procedures to ensure the effective, immediate, and mutually binding resolutions of jurisdictional and labor disputes arising before the completion of the work;
3. A provision to bind all contractors and subcontractors on the project in all relevant documents;
4. Evidence that each contractor and subcontractor working on the project has a local federally-registered apprenticeship program;
5. Conformity with all statutes, regulations and City ordinances regarding the implementation of the City's goals for women and minority-owned businesses;
6. Conformity with all statutes, regulations and City ordinances regarding the implementation of the City's goals for women-owned and minority-owned businesses including a provision consistent with the holding of City of Richmond v. J.A. Croson Co., 488 U.S. 469 (1989) that there be appropriate goals for the hiring of minorities and women. Specifically, that 20 percent of the total labor-person hours performed by the labor organizations are performed by minorities or women who are also residents of Jersey City. Included in this 20 percent shall be craft employees of all skill levels including apprentices and journeymen.

   i. A developer that contracts with a MWBE owned by a Jersey City resident(s) on a Jersey City PLA project is eligible to receive a credit of 50 percent of the total labor-person hours performed by that MWBE on the PLA project. This credit can be applied toward the total number of minority or woman labor person hours required on the project.

   A Developer that contracts with a MWBE not owned by a Jersey City resident(s) on a Jersey City PLA project is eligible to receive a credit of 25 percent of the total labor-person hours performed by that MWBE on the PLA project. This credit can be applied toward the total number of minority or woman labor person hours required on the project.

   ii. The minority and/or women hour requirement can be satisfied if the developer partners with, shares profits with, or forms a corporation for the purposes of development with, a recognized MWBE, owned by a Jersey City resident(s) and that MWBE receives 20 percent or more of the ownership of the project.

   A developer is eligible to receive a credit of 75 percent if the developer partners with, shares profits with, or forms a corporation for the purposes of development with, a recognized MWBE not owned by a Jersey City resident(s) and that MWBE receives 20 percent or more of the ownership of the project.

   iii. The minority and/or women hour requirement can be satisfied if the general contractor hired by the developer partners with, forms a joint venture with, shares profits with or subcontracts with a MWBE owned by a Jersey City resident(s) and that MWBE receives 20 percent of the total profits from the project.

   A developer is eligible to receive a credit of 75 percent if the general contractor hired by the developer partners with, forms a joint venture with, shares profits with or subcontracts with a MWBE not owned by a Jersey City resident(s) and that MWBE receives 20 percent of the total profits from the project.

7. A requirement that developers and labor organizations complete the following pre-construction actions: **[Amended 4-27-2022 by Ord. No. 22-040]**

   A. INITIAL MEETING. Prior to a financial agreement being executed between the City and the developer, and prior to a project labor agreement being executed between the developer and the labor organizations, the developer, the general contractor, and a representative from the labor organizations must all meet with the Department of Administration to (1) assess the general contractor's respective workforce needs, (2) discuss the general contractor's construction and procurement schedule, and (3) for the Department of Administration to specify any and all procedures necessary and proper in carrying out the enlisted requirements within this article.

   B. PRE-CONSTRUCTION MEETING. Prior to the commencement of construction, the developer, the general contractor, and a representative from the labor organizations must all meet with the Department of Administration to present workforce needs, which will include the job description of the positions to be filled and the duration of the project. In addition, the developer and/or the general contractor must provide the Department of Administration their construction and procurement schedules. The labor organizations must present the developer and the City with the names, addresses, and trades of all eligible apprentices who are available to work on the project. Additionally, the Department of Administration shall specify any and all procedures necessary and proper in carrying out the enlisted requirements within this article.

   C. ADVERTISEMENT. Not more than 60 days after the initial meeting, each labor organization must advertise for prospective apprentices within their respective trade. These advertisements from each labor organization must do the following: (1) solicit apprenticeship applications for their respective apprenticeship program, (2) describe the basic requirements for admission into their respective apprenticeship program, (3) describe the job training associated with their apprenticeship program, (4) state the date or dates for their respective apprenticeship tests, and (5) set forth the range of salaries. All apprenticeship applications and advertisements must meet the following requirements:

      Application requirements:

      1. All apprenticeship applications shall include a provision that the names and contact information of all applicants shall be listed in a job-seekers database maintained by the Office of Diversity and Inclusion;

      2. Applications must be made available online and must be able to be filled out and submitted digitally via a mobile browser and via a personal computer/laptop browser;

      3. Applications must be able to be downloaded and printed and applications must be made available to be picked up and submitted in person at a physical location during reasonable business hours (9:00 a.m. to 5:00 p.m., Mondays through Fridays).

      Advertising requirements:

      1. Advertisements must be posted both online and in all newspapers regularly distributed and/or circulated within Jersey City;

2. Online advertisements, when clicked, must either direct the user to a web address to learn more or link directly to the online application form;

3. Advertisements must provide both a physical location and a web address to learn more;

4. All online advertisements must include relevant keywords (e.g. electrician, plumbing, etc.) to ensure that the targeted audience sees the advertisement;

5. Advertisements must be posted directly on LinkedIn, Indeed and GlassDoor, via sites such as ZipRecruiter or WorkConnect;

6. Advertisements posted through Google search ads and Google display ads or on any advertising network with similar reach, and any advertisements posted on Facebook, Twitter and Pandora, must be targeted to Jersey City zip codes;

7. All advertisements must run at least fourteen (14) days prior to the apprenticeship application deadline;

8. All proposed advertisements, regardless of whether they are in digital or in print format, must be approved by the Department of Administration 14 days in advance of publication.

At the conclusion of the application period, the results of the labor organization's advertising campaign (including, but not limited to, the total number of page views, clicks, number of application submissions, etc.) must be submitted to the Business Administrator on forms issued by the Department of Administration.

D. JOB FAIRS. The Labor Organizations must conduct job fairs once every three months, thus four times annually. The job fairs are to be held at a location to be provided by the City in order for the labor organizations to explain the apprenticeship programs and solicit applications from attendees.

§ 304-35. Exemptions. [Added 8-16-2017 by Ord. No. 17-104]

Any residential project which shall maintain more than 50 percent of the entire project's gross square footage as affordable housing shall be exempt from the requirement of a project labor agreement.

In the event an application for a RAF financing project contains an estimate of total project cost that is less than $25,000,000.00, but upon project completion is determined to have a total construction cost equal to or exceeding $25,000,000.00, then the project service charge shall be increased as follows:

A. LONG TERM TAX EXEMPTION. By an additional two percent of total project cost, or five percent of annual gross revenue, as applicable; or

B. FIVE YEAR TAX EXEMPTION. The phase-in for each year shall be increased by an additional ten percent or, if applicable, the improvement assessment increased by five percent.

The above increases shall be retroactive to the date of substantial completion and shall apply for each and every year of the entire term of the RAF financing project.

§ 304-36. Reports and records. [Added 8-16-2017 by Ord. No. 17-104]

A. All developers of RAF projects, whether subject to a project labor agreement or not, shall submit a detailed certification of the estimated total construction cost with its application for any tax exemption, which shall be made available to the public.

B. In the event construction permits are issued more than 12 months have expired from the date of the adoption of the ordinance approving the RAF construction costs to ensure that the total construction costs do not exceed $25,000,000.00 or a project labor agreement shall be required.

C. No later than 90 days following project completion, the developer shall submit a certification of actual total construction cost certified to the City by the project's architect and engineer. Total construction cost is subject to review by the City at the time of application and audit by the City, upon project completion.

D. The project labor agreement shall require the submission of the following reports to the Department of Administration on the fifteenth day of each month for the previous month in a format provided by the Department of Administration, for each year of construction until project completion: **[Amended 4-27-2022 by Ord. No. 22-040]**

1. MANNING REPORT. This report which is provided by the developer's general contractor must accurately reflect the total work hours in each construction trade or craft and the number of hours worked by minorities and or women, in each trade or craft, and will list separately the work hours performed by such employees of the general contractor whom are actually performing work on the site and each of its subcontractors during the previous quarter.

2. CERTIFIED PAYROLL REPORT. This certified report which is provided by the developer's general contractor must specify the residence, gender and ethnic/racial origin of each worker, broken down by trade, along with their respective work hours, and the rate of pay and benefits provided.

3. EQUAL EMPLOYMENT OPPORTUNITY REPORTS. The labor organizations must provide to the Department of Administration copies of each of their local union reports (EEO-3) and each of their apprenticeship information reports (EEO-2), which are required to be filed with the United States Commission of Equal Employment Opportunity Commission.

4. APPRENTICESHIP REPORT. This report from all of the labor organizations, which must be provided to the Department of Administration each month, shall list all of the names, addresses, and contact information of all persons who were accepted into each labor organization's apprenticeship program. The report shall also list the names, addresses, and contact information of all City residents who were rejected for admission into each labor organization's apprenticeship program with the reasons for their rejection. For those City residents who failed to finish the program, the report must provide the reasons why they failed to complete the program.

5. MEMBERSHIP REPORT. Every month, each labor organization shall provide to the Department of Administration an accurate up-to-date number of its current membership throughout the State and a list of all of their current members, journeymen and apprentices who live in Jersey City, along with each member/journeymen/apprentice's name, address, and contact information.

6. OTHER REPORTS. The developer and/or labor organizations shall furnish to the City and/or the Department of Administration any and all reports or other documents to the City as the City may reasonably request from time to time in order to carry out the purposes of this article.

7. RECORDS. Records to support the work hours stated in the above reports must be maintained for a period of three years after project completion. All records shall be made available to the City upon ten days' prior written notice.

8. SITE ACCESS. Representatives of the City shall be permitted to have appropriate access to all work sites in order to monitor compliance.

§ 304-37. Pre-apprenticeship training program. [Added 8-16-2017 by Ord. No. 17-104]

1. INTERAGENCY COOPERATION. The City will solicit the support of the Jersey City Board of Education, the Hudson County Community College, the Hudson County Vo-Tech School, the Jersey City Employment and Training Program, Inc., the Jersey City Housing Authority, and other community-based organizations, including, but not limited to, Puertorriqueños Asociados for Community Organization, Inc., (P.A.C.O.), the Jersey City Chapter of the N.A.A.C.P, and the Urban League of Hudson County, in order to maximize participation in the apprenticeship program among eligible City residents.

2. PREPARATORY SERVICES. The City shall be responsible for the development of a program to provide all necessary preparatory services for enrolled pre-apprentices, including assistance with GED preparation, obtaining drivers license, mentoring and other supportive services for pre-apprentices. The pre-apprenticeship program shall be operated in such a manner that its successful graduates will be equipped and eligible for entry into the apprenticeship programs of a labor organization.

3. MONITORING. The City shall be responsible for the selection, operation and supervision of pre-apprenticeship programs that may be operated by private entities, such as the Jersey City Employment and Training Program, Inc., and shall retain authority to review and approve the curriculum and procedures used to recruit and select participants.

§ 304-38. Enforcement. [Added 8-16-2017 by Ord. No. 17-104; amended 4-27-2022 by Ord. No. 22-040]

1. The Department of Administration shall be the primary department authorized to implement and enforce this article, including (1) documentation and recordkeeping requirements, (2) monitoring and compliance activities, (3) project and/or contract coverage determinations, (4) designated referral sources, (5) bid and contract documents implementing the article, and (6) other matters related to implementation of this article.

2. The Department of Administration assesses compliance monthly during construction and for all ongoing obligations post-construction.

3. If the Department of Administration determines that a project is not compliant, then the Department will issue a recommendation for appropriate corrective action.

4. The developer and all labor organizations affiliated with the project shall demonstrate to the City compliance with this article. It shall not be a defense to any enforcement action taken by the City that the developer or the labor organization could not obtain any item or information from any other party to the PLA. This article does not limit the developer or the labor organization's ability to assess qualifications of prospective workers, to make final hiring and retention decisions. No provision of this article shall be interpreted so as to require a developer, a labor organization, a general contractor or a subcontractor to hire or retain a worker who lacks the necessary qualifications for the position in question, or to employ any particular worker regardless of qualifications.

§ 304-38.1. Remedies. [Added 8-16-2017 by Ord. No. 17-104]

In the event that either the developer and/or the labor organization should violate this article, the City may seek any and all remedies available to it at law or equity. Such remedies include, but are not limited to, compelling the developer and/or the labor organization to complete a remedial employment action plan, pay liquidated damages or the City may elect to terminate the RAF and/or the tax exemption.

§ 304-38.2. Severability. [Added 8-16-2017 by Ord. No. 17-104]

If any provision of this article or application thereof to any person or circumstance is judged unconstitutional or otherwise invalid, the invalidity shall not affect other provisions or applications of this article that can be given effect without the invalid provision or application, and to this end the provisions of this Chapter are declared severable.

ARTICLE VIII
Open Space Recreation and Historic Preservation Trust Fund Tax Levy

§ 304-39. Imposition of tax for recreation, conservation and historic preservation.

The City hereby imposes an annual levy not to exceed two cents ($0.02) per one hundred dollars ($100.00) of total municipal assessed real property. **[Added 3-22-2017 by Ord. No. 17-026]**

§ 304-40. Purpose of levy; allocation of funds among each purpose.

A. Pursuant to N.J.S.A. 40:12-15.7, the annual levy shall be used for the following purposes:

(1) Acquisition of lands for recreation and conservation;

(2) Development of lands acquired for recreation and conservation;

(3) Maintenance of lands acquired for recreation and conservation;

(4) Preservation of historic properties, structures, facilities, sites, areas, or objects, and the acquisition of such properties, structures, facilities, sites, areas, or objects;

(5) Blue Acres Projects; and/or

(6) Providing funding for the payment of debt service incurred or issued for any of the purposes set forth in subsections (1) through (5) above.

B. The Council shall determine the appropriate amount to be allocated to each purpose after holding one or more hearings thereon. **[Added 3-22-2017 by Ord. No. 17-026]**

§ 304-41. Municipal Open Space, Recreation and Historic Preservation Trust Fund.

The City hereby establishes an Open Space Recreation and Historic Preservation Trust Fund (the "Trust Fund") to administer all proceeds derived from imposition of the annual open space lew pursuant to N.J.S.A. 40:12-15.7(c). The Trust Fund shall be permitted to accept donations, testamentary bequests and other funds where appropriate and permitted by law. **[Added 3-22-2017 by Ord. No. 17-026]**

ARTICLE IX
Arts and Culture Trust Fund

§ 304-42. Imposition of a tax for Jersey City's Arts and Culture Trust Fund (the "Arts Fund"). [Added 1-13-2021 by Ord. No. 20-109; adopted 3-24-2021 by Ord. No. 21-016; 2-9-2022 by Ord. No. 22-011]

A. The Arts and Culture Trust Fund annual levy shall not exceed $0.02 per $100.00 of total municipal assessed real property.

§ 304-43. Purpose of levy; allocation of funds. [Added 1-13-2021 by Ord. No. 20-109]

A. In accordance with N.J.S.A. § 40:12-15.12(b). amounts raised by the Arts Fund levy shall be deposited into an "arts and culture trust fund" to be created by the municipality. and shall be used exclusively for arts and culture, except that the municipality may deposit such amounts into the current fund of that municipality for uses not related to arts and culture if the Director of the Division of Local Government Services in the Department of Community Affairs finds that the municipality is in fiscal distress.

B. Any interest or other income earned on monies deposited into the arts and culture trust fund shall be credited to the fund to be used for the same purposes as the principal.

C. The City may deposit other funds into the arts and culture trust fund, as it may, from time to time, deem appropriate.

§ 304-44. Jersey City Arts and Culture Trust Fund. [Added 1-13-2021 by Ord. No. 20-109]

The City hereby establishes the Arts and Culture Trust Fund to administer all proceeds derived from imposition of an annual levy, pursuant to N.J.S.A. § 40:12-15.12(a) and approved by the City voters. The Arts and Culture Trust Fund shall be permitted to accept donations, testamentary bequests and other funds where appropriate and permitted by law.

§ 304-45. Severability. [Added 1-13-2021 by Ord. No. 20-109]

If any provision of this article or application thereof to any person or circumstance is judged invalid, the invalidity shall not affect other provisions or applications of this article that can be given effect without the invalid provision of application, and to this end the provisions of this article are declared severable.

§ 304-45.1. Arts and Culture Trust Fund Committee. (Added 5-13-2021 by Ord. No. 21-030]

A. Membership.

1. The Committee shall consist of seven voting members. Committee members shall be nominated through an open public nomination form and appointed by the Mayor with the advice and consent of Council. Additionally, at least one City staff-member shall serve as non-voting members of the Committee. At least one non-voting member of the Committee shall be present at every Committee meeting. The membership of the Arts and Culture Trust Fund Committee shall consist of the following:

    a. The Mayor or his/her designee;

    b. Six residents of Jersey City representing each ward (A—F), nominated through an open public nomination form and appointed by the Mayor with the advice and consent of Council;

    c. One non-voting designee of the Jersey City Arts Council;

    d. One non-voting designee of the Jersey City Director of Cultural Affairs;

    e. One non-voting City Council member or their designee;

2. The Jersey City Arts Council may collaborate on nominations and recommendations. Committee members representing each ward (A—F) may be nominated by the public. Members should reflect the diversity of Jersey City. Nominees must be Jersey City residents and have two or more of the following:

    a. Appreciation of the arts;

    b. Professional expertise in an arts field;

    c. Service to the public;

    d. Understanding of the Jersey City population and landscape;

3. All members shall serve for a term of two years in staggered terms. In order to establish staggered terms, the Mayor with the advice and consent of Council, shall appoint three members initially selected to a term of three years, representing wards A, B, and F, and three members initially selected to a term of two years, representing wards C, D, and E. No Committee member shall serve more than two consecutive terms, totaling a maximum of five years, including their initial

staggered term or a mid-term appointment. A former member may be nominated two years after their last consecutive term. All subsequent appointments, except to fill vacancies, shall be for the full term of two years.

4. A voting Committee member may not sit on the board or be on staff of an organization who is applying for a grant during that cycle. Members agree not to engage or enter into any contracts that pose a conflict of interest, or they shall end their tenure with the Committee.

5. All members of the Committee may be removed by a majority vote of the Arts and Culture Trust Fund Committee and a majority vote of the Municipal Council based on the criteria stipulated in the Committee's best practices and bylaws and/or for failure to comply with subparagraph (5) or failure to comply with Chapter 33 (Ethics) of the Jersey City Municipal Code.

6. Vacancies shall be filled for the duration of the term in the same manner as the original appointment.

7. The Chairperson and a Recording Secretary shall be designated by a majority vote of the Committee. Both shall be voting members of the Committee.

B. Meetings.

1. The Committee shall meet at least four times a year at a time to be determined by the Chairperson. In addition, the Chairperson may call special meetings. The Committee shall obtain its legal counsel from the Jersey City Law Department. Ten days prior to a committee meeting the relevant City Departments shall provide the Committee with all documents to be reviewed for the upcoming meeting.

2. All meetings shall be subject to the Open Public Meetings Act (N.J.S.A. §§ 10:4-1—10:4-21) and all meeting minutes shall be made available to the public.

C. Responsibilities.

1. The Arts and Culture Trust Fund Committee shall be responsible for distribution of the Jersey City Arts and Culture Trust Fund monies to support creative and cultural activities, including but not limited to, performing, visual, and fine arts, music, dance, graphic design, film, digital media and video, architecture and urban design, humanities, literature, arts and culture education, historic preservation, museum curation, crafts and folk arts.

2. The Arts and Culture Trust Fund Committee has the duty to review, prioritize, and evaluate projects and applications for funding from the Arts and Culture Trust Fund. The Grant Review Panel shall review and evaluate grant applications and submit its recommendations to the Arts and Culture Trust Fund Committee. The Arts and Culture Trust Fund Committee shall make the final decision and evaluations regarding approval or denial of grant applications.

3. The Committee shall decide approval or denial of applications and distribution of funding from the Arts and Culture Trust Fund.

4. The Jersey City Arts Council, with the consent of the Office of Cultural Affairs, shall select Grant Review Panelists from open public nominations. Criteria for Grant Review Panelists shall be posted on the public nomination form.

5. The Committee shall draft a final report at the close of the granting cycle regarding all approved or denied applications, evaluation applications, and distribution of funds to applicants, and any other information the Committee may deem appropriate.

6. The Committee is empowered to solicit input from residents regarding the future of the Arts and Culture Trust Fund and it shall provide the Council and all other City entities with its findings and recommendations as it deems appropriate.

7. Grantees must meet the goals and objectives determined by the Arts and Culture Trust Fund Committee for funding through the Jersey City Arts and Culture Trust Fund.

8. The Committee is obligated to perform an annual review and report of grant recipients to ensure that the demographics of recipients are reflective of the demographics of Jersey City and the results of said review shows an increase of arts access in marginalized communities. The Committee is further obligated to make necessary changes if these apportionments are not being met.

D. Compensation of members. Members of the Arts and Culture Trust Fund Committee shall serve without compensation.

E. Committee policy and procedures.

1. Within 60 days of assembling the Committee, the Arts and Culture Trust Fund Committee shall propose written policies, procedures, and best practices governing its operations under this section, including but not limited to, code of ethics, conflicts of interest, grant application procedures, and evaluation standards.

2. The aforementioned policies and procedures shall be voted upon during the first meeting of the Arts and Culture Trust Fund Committee. Proposed policies and procedures shall pass with a majority of the Committee votes and a quorum present. Upon approval of the Committee, the proposed policies and procedures shall be forwarded to the Municipal Council for approval via resolution.

§ 304-45.2. Distribution of the Arts and Culture Trust Fund monies. (Added 5-13-2021 by Ord. No. 21-030]

A. Ninety-five percent of monies collected through the Arts and Culture annual levy shall be deposited into the Arts and Culture Trust Fund for distribution by the Arts and Culture Trust Fund Committee. Five percent of the monies collected through the annual levy shall be given to the Jersey City Arts Council, which will provide a public resource for artists and art organizations and will serve as an administrative partner of the trust by supporting and counseling applicants, as well as promoting the Arts and Culture Trust Fund to the Jersey City community.

B. Upon review of an application, the Committee shall award and distribute monies based on criteria and evaluation standards stipulated in the Committee's bylaws and best practices. Criteria for evaluation shall include, but is not limited to, an evaluation and recommendation from the Grant Review Panel, quality of work, likeliness to succeed, and fulfillment of the fund's stated goals.

C. The Arts and Culture Trust Fund monies shall be used to support creative and cultural activities, including but not limited to, performing, visual, and fine arts, music, dance, graphic design, film, digital media and video, architecture and urban design, humanities, literature, arts and culture education, historic preservation, museum curation, crafts and folk arts.

ARTICLE X
Medical Cannabis Transfer Tax*

§ 304-46. Title. [Added 1-27-2021 by Ord. No. 21-001]

This article shall be known and may be cited as the "Medical Cannabis Transfer Tax."

§ 304-47. Definitions.

To effectuate the purposes of this article, these terms shall have the following meanings:

CANNABIS means all parts of the plant genus Cannabis. whether growing or not: the seeds thereof: and every compound, manufacture. salt, derivative, mixture, or preparation of the plant or its seeds, except those containing resin extracted from the plant: but shall not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative. mixture. or preparation of such mature stalks, fiber, oil, or cake, or the sterilized seed of the plant which is incapable of germination. "Cannabis" shall not mean hemp or a hemp product cultivated, handled. processed, transported, or sold pursuant to the "New Jersey Hemp Farming Act," N.J.S.A. 4:28-6 et al.

DESIGNATED CAREGIVER means a resident of the State who:

(1) Is at least 18 years old:

(2) Has agreed to assist with a registered qualifying patient's medical use of cannabis, is not currently serving as designated caregiver for more than one other qualifying patient, and is not the qualifying patient's health care practitioner:

(3) Subject to the provisions of paragraph (2) of subsection c. of section 4 of N.J.S.A. 24:61-4, has never been convicted of possession or sale of a controlled dangerous substance, unless such conviction occurred after the effective date of N.J.S.A. 24:61-1 et al., and was for a violation of federal law related to possession or sale of cannabis that is authorized under N.J.S.A. 24:61-1 et al., or N.J.S.A. 18A:40-12.22 et al.:

(4) Has registered with the commission pursuant to section 4 of N.J.S.A. 24:61-4. and, except in the case of a designated caregiver who is an immediate family member of the patient has satisfied the criminal history record background check requirement of section N.J.S.A. 24:61-4: and

(5) Has been designated as designated caregiver by the patient when registering or renewing a registration with the commission or in other written notification to the commission.

***Editor's note**—Ord. No. 21-001, adopted January 27, 2021, amended the Code by adding new provisions to be numbered Art. IX, §§ 304-42—304-46. In order to prevent duplication of article and section numbers, the new provisions have been renumbered as set out herein.

DISPENSE means the furnishing of medical cannabis to a registered qualifying patient, designated caregiver, or institutional caregiver by a medical cannabis dispensary or clinical registrant pursuant to written instructions issued by a health care practitioner pursuant to the requirements of N.J.S.A. 24:61-1 et al. The term shall include the act of furnishing medical cannabis to a medical cannabis handler for delivery to a registered qualifying patient, designated caregiver, or institutional caregiver, consistent with the requirements of subsection i. of section 27 of N.J.S.A. 24:61-20.

INSTITUTIONAL CAREGIVER means a resident of the State who:

(1) Is at least 18 years old:

(2) Is an employee of a health care facility:

(3) Is authorized, within the scope of the individual's professional duties, to possess and administer controlled dangerous substances in connection with the care and treatment of patients and residents pursuant to applicable State and federal laws:

(4) Is authorized by the health care facility employing the person to assist registered qualifying patients who are patients or residents of the facility with the medical use of cannabis. including, but not limited to, obtaining medical cannabis for registered qualifying patients and assisting registered qualifying patients with the administration of medical cannabis:

(5) Subject to the provisions of paragraph (2) of subsection c. of section 4 of N.J.S.A. 24:61-4, has never been convicted of possession or sale of a controlled dangerous substance, unless such conviction occurred after the effective date of N.J.S.A. 24:61-1 et al. and was for a violation of federal law related to possession or sale of cannabis that is authorized under N.J.S.A. 24:61-1 et al. or N.J.S.A. 18A:40-12.22 et al.; and

(6) has registered with the commission pursuant to section 4 of N.J.S A. 24:61-4.

MEDICAL USE OF CANNABIS means the acquisition, possession, transport, or use of cannabis or paraphernalia by a registered qualifying patient as authorized by N.J.S.A. 24:61-1 et al. and N.J.S.A. 18A:40-12.22 et al.

QUALIFYING PATIENT or PATIENT means a resident of the State who has been authorized for the medical use of cannabis by a health care practitioner.

REGISTRATION WITH THE COMMISSION means a person has met the qualification requirements for, and has been registered by the commission as, a registered qualifying patient, designated caregiver, or institutional caregiver. The commission shall establish appropriate means for health care practitioners, health care facilities, medical cannabis dispensaries, law enforcement, schools, facilities providing behavioral health services or services for persons with developmental disabilities, and other appropriate entities to verify an individual's status as a registrant with the commission.

§ 304-48. Tax imposed. [Added 1-27-2021 by Ord. No. 21-001]

A. As authorized by N.J.S.A. 24:61-10(i), there is hereby imposed a two percent transfer tax on any medical cannabis dispensed by the dispensary located within Jersey City, including medical cannabis that is furnished by the dispensary to a medical cannabis handler for delivery to a purchaser or to a registered qualifying patient or the patient's caregiver.

B. All taxes imposed by this section shall be collected on behalf of the City by the person dispensing cannabis to the patient, the patient's designated caregiver, or cannabis handler.

C. The Division of Commerce is hereby designated as collector of the Medical Cannabis Transfer Tax. The methods for reporting taxes due shall be on forms and in accordance with procedures prescribed by the Business Administrator from time to time.

D. Every person required to collect any taxes imposed by this article shall be personally liable for the tax imposed, collected or required to be collected. Any such person shall have the same right in respect to collecting the tax from his or her customer: provided, however, that the Business Administrator of the City shall be joined as a party in any action brought to collect the tax.

E. No person required to collect any tax hereunder shall advertise or hold out to any person or to the public in general in any manner, directly or indirectly, that the tax is not considered as an element in the fee payable by the customer, that he will pay the tax, that the tax will not be separately charged and stated to the customer or that the tax will be refunded to the customer.

F. If for any reason the tax impose by this article is not paid when due, interest at a rate of 12 percent per annum on the amount of the tax due and an additional penalty of one-half of one percent of the amount of the unpaid tax for each month or fraction thereof during which the tax remains unpaid shall be added and collected or a minimum of $50.00, whichever is greater. Where action is brought for the recovery of any tax hereunder, the person liable shall, in addition, be liable for the cost of collection and the interest and penalties imposed.

G. The Medical Cannabis Transfer Tax shall be in addition to any other fee imposed pursuant to statute or local ordinance or resolution by any governmental entity upon the medical cannabis dispensary.

§ 304-49. Payment of tax; records to be kept.

A. Taxes due under this article shall be paid quarterly. Returns for each quarter are due on or before the fifteenth of the month following the end of the quarter, that is, April 15, July 15, October 15, and January 15.

B. A quarterly cannabis tax return is required to be filed by every person responsible for the collection of the Medical Cannabis Transfer Tax whether or not any tax is due for that quarter. Payment of the tax due shall be made with the filed return.

C. Every person responsible for the collection of the Medical Cannabis Transfer Tax shall maintain books and/or records to substantiate the quarterly tax returns, even if no tax is due.

D. Pursuant to state law, any person who fails or refuses to file any return required under this article, any person who refuses to permit an officer or agent designated by the City to examine his or her books, records and papers and any person who knowingly files an incomplete, false or fraudulent return or attempts to do anything whatsoever to avoid the full disclosure of the tax due under this article to avoid the payment of the whole or any part thereof is a disorderly person.

E. The failure of any person to receive or procure the forms required for filing returns required under this article shall not excuse him from filing a return.

§ 304-50. Use of revenues. [Added 1-27-2021 by Ord. No. 21-001]

A. One hundred percent of the revenues collected from the tax imposed under this article shall be deposited into the Affordable Housing Trust Fund.

B. The City's Business Administrator, including his or her designee and/or agent, shall deposit the percentage of revenues from the Medical Cannabis Transfer Tax into the Affordable Housing Trust Fund on a quarterly basis.

C. After quarterly deposits are made to the Affordable Housing Trust Fund, the remainder of the revenues collected from the tax imposed under this Article shall be deposited into the City's general fund.

ARTICLE XI
Recreational Cannabis Transfer and User Tax

§ 304-51. Title. [Added 8-18-2021 by Ord. No. 21-053]

This article shall be known and may be cited as the "Recreational Cannabis Transfer and User Tax."

§ 304-52. Definitions. [Added 8-18-2021 by Ord. No. 21-053]

To effectuate the purposes of this article, these terms shall have the following meanings:

CANNABIS means all parts of the plant Cannabis sativa L., whether growing or not, the seeds thereof, and every compound, manufacture, salt, derivative, mixture or preparation of the plant or its seeds, except those containing resin extracted from the plant, which are cultivated and, when applicable, manufactured in accordance with the New Jersey Cannabis Regulatory, Enforcement Assistance, and Marketplace Modernization Act for use in cannabis products as set forth in the Act, but shall not include the weight of any other ingredient combined with cannabis to prepare topical or oral administrations, food, drink or other product. "Cannabis" does not include: medical cannabis dispensed to registered qualifying patients pursuant to the "Jake Honig Compassionate Use Medical Cannabis Act," P.L.2009, c.307 (C.24:6I-1 et al.) and P.L.2015, c.158 (C.18A:40-12.22 et al.); marijuana as defined in N.J.S.2C:35- 2 and applied to any offense set forth in chapters 35, 35A, and 36 of Title 2C of the New Jersey Statutes, or P.L.2001, c.114 (C.2C:35B-1 et seq.), or marijuana as defined in section 2 of P.L.1970, c.226 (C.24:21-2) and applied to any offense set forth in the "New Jersey Controlled Dangerous Substances Act," P.L.1970, c.226 (C.24:21-1 et al.); or hemp or a hemp product cultivated, handled, processed, transported, or sold pursuant to the "New Jersey Hemp Farming Act," P.L.2019, c.238 (C.4:28-6 et al.).

CANNABIS CULTIVATOR means any licensed person or entity that grows, cultivates, or produces cannabis in this State, and sells, and may transport, this cannabis to other cannabis cultivators, or usable cannabis to cannabis manufacturers, cannabis wholesalers, or cannabis retailers, but not to consumers. This person or entity shall hold a Class 1 Cannabis Cultivator license.

CANNABIS ESTABLISHMENT means a cannabis cultivator, a cannabis manufacturer, a cannabis wholesaler, or a cannabis retailer.

CANNABIS ITEM means any usable cannabis, cannabis product, cannabis extract, and any other cannabis resin. "Cannabis item" does not include: any form of medical cannabis dispensed to registered qualifying patients pursuant to the "Jake Honig Compassionate Use Medical Cannabis Act," P.L.2009, c.307 (C.24:6I-1 et al.) and P.L.2015, c.158 (C.18A:40-12.22 et al.); or hemp or a hemp product cultivated, handled, processed, trans ported, or sold pursuant to the "New Jersey Hemp Farming Act," P.L.2019, c.238 (C.4:28-6 et al.).

CANNABIS MANUFACTURER means any licensed person or entity that processes cannabis items in this State by purchasing or otherwise obtaining usable cannabis, manufacturing, preparing, and packaging cannabis items, and selling, and optionally transporting, these items to other cannabis manufacturers, cannabis wholesalers, or cannabis retailers, but not to consumers. This person or entity shall hold a Class 2 Cannabis Manufacturer license.

CANNABIS RETAILER means any licensed person or entity that purchases or otherwise obtains usable cannabis from cannabis cultivators and cannabis items from cannabis manufacturers or cannabis wholesalers, and sells these to consumers from a retail store, and may use a cannabis delivery service or a certified cannabis handler for the off-premises delivery of cannabis items and related supplies to consumers. A cannabis retailer shall also accept consumer purchases to be fulfilled from its retail store that are presented by a cannabis delivery service which will be delivered by the cannabis delivery service to that consumer. This person or entity shall hold a Class 5 Cannabis Retailer license.

CANNABIS WHOLESALER means any licensed person or entity that purchases or otherwise obtains, stores, sells or otherwise transfers, and may transport, cannabis items for the purpose of resale or other transfer to either another cannabis wholesaler or to a cannabis retailer, but not to consumers. This person or entity shall hold a Class 3 Cannabis Wholesaler license.

CONSUMER means a person 21 years of age or older who purchases, directly or through a cannabis delivery service, acquires, owns, holds, or uses cannabis items for personal use by a person 21 years of age or older, but not for resale to others.

PREMISES means the following areas of a location licensed under the New Jersey Cannabis Regulatory, Enforcement Assistance, and Marketplace Modernization Act: All public and private enclosed areas at the location that are used in the business operated at the location, including offices, kitchens, rest rooms, and storerooms; all areas outside a building that the Cannabis Regulatory Commission has specifically licensed for the production, wholesaling, distributing, retail sale, or delivery of cannabis items; and, for a location that the commission has specifically licensed for the production of cannabis outside a building, the entire lot or parcel that the licensee owns, leases, or has a right to occupy.

§ 304-53. Tax imposed; transfer tax and user tax. [Added 8-18-2021 by Ord. No. 21-053]

(1) Two percent of the receipts from each sale by a cannabis manufacturer;

(2) One percent of the receipts from each sale by a cannabis wholesaler;

(3) Two percent of the receipts from each sale by a cannabis retailer.

There shall also be imposed a user tax, at the equivalent transfer tax rates, on any concurrent license holder operating more than one cannabis establishment, as permitted by Section 33 of P.L.2021, c.16 (C.24:6I-46). The user tax shall be imposed on the value of each transfer or use of cannabis or cannabis items not otherwise subject to the transfer tax imposed pursuant to paragraphs A and B of this section, from the license holder's establishment that is located in Jersey City to any of the other license holder's establishments, whether located in Jersey City or another municipality.

All taxes imposed by this section shall be in addition to any other tax imposed by law. Any transaction for which the transfer tax or user tax is imposed, or could be imposed, pursuant to this section, other than those which generate receipts from the retail sales by cannabis retailers, shall be exempt from the tax imposed under the "Sales and Use Tax Act", P.L. 1966, c. 30 (C.54:32B-1 et seq.).

§ 304-54. Collection and payment of transfer tax and user tax. [Added 8-18-2021 by Ord. No. 21-053]

A. The transfer tax or user tax shall be collected or paid, and remitted to Jersey City by the cannabis establishment from the cannabis establishment purchasing or receiving the cannabis or cannabis items, or from the consumer at the point of sale, on behalf of Jersey City by the cannabis retailer selling the cannabis item to that consumer.

B. The transfer tax or user tax shall be stated, charged, and shown separately on any sales slip, invoice, receipt or other statement or memorandum of the price paid or payable, or equivalent value of the transfer, for the cannabis or cannabis item.

C. Every cannabis establishment required to collect a transfer or user tax imposed by this section shall be personally liable for the transfer tax or user tax imposed, collected or required to be collected under this section.

D. Any cannabis establishment shall have the same right with respect to collecting the transfer tax or user tax from another cannabis establishment or the cannabis consumer as if the transfer tax or user tax was a part of the sale and payable at the same time, or with respect to non-payment of the transfer or user tax by the cannabis establishment or consumer, as if the transfer tax or user tax was part of the purchase price of the cannabis or cannabis item, or equivalent value of the transfer of the cannabis or cannabis item, and payable at the same time; provided however, that the Business Administrator shall be joined as a party in any action or proceeding brought to collect the transfer tax or user tax.

E. No cannabis establishment required to collect a transfer tax or user tax imposed by this section shall advertised or hold out to any person or to the public in general, in any manner, directly or indirectly, that the transfer tax or user tax will not be separately charged and stated to another cannabis establishment or the consumer, or that the transfer tax or user tax will be refunded to the cannabis establishment or the consumer.

F. All revenues collected from a transfer tax or user tax imposed by this section shall be remitted to the Division of Commerce in a manner prescribed by the Business Administrator. The Division of Commerce shall collect and administer any transfer tax or user tax imposed by this section.

G. The City shall enforce the payment of delinquent taxes or transfer fees imposed by this section in the same manner as provided for municipal real property taxes.

§ 304-55. Penalties for nonpayment. [Added 8-18-2021 by Ord. No. 21-053]

A. In the event that the transfer tax or user tax imposed by this section is not paid as and when due by a cannabis establishment, the unpaid balance, and any interest accruing thereon, shall be a lien on the parcel of real property comprising the cannabis establishment's premises in the s a me manner as all other unpaid municipal taxes, fees or other charges. The lien shall be superior and paramount to the interest in the parcel of any owner, lessee, tenant, mortgagee, or other person, except the lien of municipal taxes, and shall be on a parity with and deemed equal to the municipal lien on the parcel for unpaid property taxes due and owing in the same year.

B. The City shall file in the Office of the Tax Collector, a statement showing the amount and due date of the unpaid balance and identifying the lot and block number of the parcel of real property that comprises the delinquent cannabis establishment's premises.

C. The lien shall be enforced as a municipal lien in the same manner as all other municipal liens are enforced.

§ 304-56. Use of revenues. [Added 8-18-2021 by Ord. No. 21-053]

A. The revenues collected from the tax imposed under this article shall be dedicated to the Jersey City Public Schools and social equity programs. A Cannabis Fund Committee shall be established and will determine the allocation of the funding from the cannabis fund based on the needs of the community on an annual basis and pursuant to this article and any regulations set forth by the City and State. The Cannabis Fund Committee makeup shall be determined in future legislation.

B. The City's Business Administrator, including his or her designee and/or agent, shall deposit the revenues from the recreational cannabis transfer and user tax into a cannabis fund on a quarterly basis.

Chapter 307

TAXICABS, LIMOUSINES AND TRANSPORTATION NETWORK COMPANY VEHICLES*

ARTICLE I
Taxicabs

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§ 307-36. Variance.
§ 307-36.1. Violations and penalties.

***History**—Adopted by the Council of the City of Jersey City as indicated in article histories. Amendments noted where applicable. Subsequently, 19-036, adopted April 24, 2019, amended the title of Ch. 307.

Cross references—Fees and charges, Ch. 160; vehicles and traffic, Ch. 332.

Article II
Limousines and Transportation Network Company Vehicles

§ 307-37. Definitions.
§ 307-38. Limousine service license(s).
§ 307-39. Limousine operator's license.
§ 307-40. Limousine vehicles' condition and appearance; checklist; reports; operation of limousine while in City of Jersey City.
§ 307-41. Transportation Network Company vehicles: display of Trade Dress Beacon mandatory.
§ 307-42. Enforceability.
§ 307-43. Violation and penalties.
§ 307-44. Severability.

ARTICLE III
Reserved

ARTICLE I

Taxicabs [Adopted 7-17-1979 by Ord. No. S-223]

§ 307-1. Definitions.

As used in this article, the following terms shall have the meanings indicated:

CALL BOX — A telephone or call box for the taking of calls and the dispatching of taxicabs by the authorized holder or holders of a certificate of public convenience and necessity. **[Amended 4-10-1996 by Ord. No. 96-003]**

CERTIFICATE — A certificate of public convenience and necessity issued by the Division of Commerce, authorizing the holder thereof to conduct a taxicab business in the City of Jersey City. **[Amended 8-13-1997 by Ord. No. 97-052]**

CRUISING — [Repealed 4-10-1996 by Ord. No. 96-003]

DESIGNATED TAXI STAND — A stand for the exclusive use of those taxicabs specifically assigned such stand and issued an emblem stating the name of such stand by the Division of Commerce. **[Added 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]**

DISABLED PERSON — Disabled person means a physical impairment which confines a person to a wheelchair, cause a person to work with difficulty or insecurity, affects sight or hearing to the extent that a person functioning in public areas is insecure or exposed to danger, causes faulty coordination or reduces mobility, flexibility, coordination and perceptiveness. **[Added 4-10-1996 by Ord. No. 96-003]**

DRIVER'S LICENSE — The permission granted by the Division of Commerce to a person to drive a taxicab upon the streets of the city. **[Amended 8-13-1997 by Ord. No. 97-052]**

HOLDER — A person to whom a certificate of public convenience and necessity has been issued.

MANIFEST — A daily record prepared by a taxi driver of all trips made by the driver showing time and place of origin, destination, number of passengers and the amount of fare of each trip. The manifest shall also contain the driver's name, time reporting on and off duty, the starting and finishing mileage and the number of the vehicle.

OPEN TAXI STAND — A stand which is not reserved for the exclusive use of specific taxicabs but authorized for use by any taxicab licensed pursuant to this article. **[Added 4-10-1996 by Ord. No. 96-003]**

RATE CARD — A card issued by the Division of Commerce for display in each taxicab which contains the rate of fare in force. **[Amended 8-13-1997 by Ord. No. 97-052]**

Editor's note—The definition of "transportation supervisor," which followed this definition, was deleted 6-14-1995 by Ord. No. 95-050.

STARTER — A person in charge of queuing taxicabs and waiting patrons and otherwise maintaining order at a taxi stand. **[Added 4-10-1996 by Ord. No. 96-003]**

TAXICAB or TAXI — A motor vehicle equipped with a taximeter, regularly engaged in the business of carrying passengers for hire, and not operated over a fixed route, and so designed as to comfortably seat not fewer than four passengers, exclusive of the driver.

TAXIMETER — A meter, instrument or device attached to a taxicab which measures mechanically the distance driven and the waiting time upon which the fare is based.

TAXI STAND and TEMPORARY TAXI STAND — A place alongside the curb of a street or elsewhere in the city reserved exclusively for the use of taxicabs and distinctly marked by a metal sign or stanchion, or by painted markings on the surface of the street or curb. **[Amended 4-10-1996 by Ord. No. 96-003]**

WAITING TIME — The time when a taxicab is not in motion from the time of acceptance of a passenger or passengers to the time of discharge and payment of fare by the passenger.

§ 307-2. Certificate of public convenience and necessity required. [Amended 9-20-1979 by Ord. No. S-290; 9-23-1984 by Ord. No. S-484; 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052; 11-28-01 by Ord. No. 01-126; 10-9-2013 by Ord. No. 13-101]

A. No private vehicle or limousine shall be used as a taxicab. No person shall operate or permit a taxicab owned or controlled by him or her to be operated as a vehicle for hire without having first obtained a certificate of public convenience and necessity from the Division of Commerce. The number of outstanding certificates shall be limited to a total of one hundred twenty-four (124) taxis. Any additional licenses authorized by this section shall be issued to the highest qualified bidder at auction in accordance with N.J.S.A. 48:16-2.1, et seq., as amended and no more, unless adequate service to the public shall require more and such additions are approved by the Municipal Council.

B. The Municipal Clerk is authorized to advertise for sale the additional twenty (20) licenses in accordance with N.J.S.A. 48:16-2.1, et seq. Such licenses shall be offered for sale at public auction, after advertising thereof in the Jersey Journal and the Hudson Reporter.

C. Such licenses shall be offered for sale at public auction, after advertising thereof in the Jersey Journal and the Hudson Reporter.

D. The minimum bid price shall be as follows for the following designated taxi stand locations:

1. Journal Square taxi stand an additional three (3) license minimum bid price, one hundred thousand dollars ($100,000.00).

2. Grove Street taxi stand an additional two (2) licenses minimum bid price, eighty thousand dollars ($80,000.00).

3. Town Square Place (FKA Pavonia Avenue) an additional four (4) licenses minimum bid price, eighty thousand dollars ($80,000.00).

4. Exchange Place taxi stand an additional two (2) licenses minimum bid price, fifty thousand dollars ($50,000.00).

E. The minimum bid price for the additional nine (9) licenses that are not designated to a closed taxi stand location shall be fifty thousand dollars ($50,000.00) each.

F. Ten (10) percent of the minimum bid price shall be paid to the Municipal Clerk by teller's or certified check at the conclusion of the bidding. The balance shall be paid within seventy-two (72) hours of the later of (1) council resolution accepting a bid and (2) issuance of an owner's license pursuant to this chapter. The Municipal Council reserves the right to reject all bids where the highest bid is not accepted.

G. Any new license issued pursuant to subsection (B) of this section may not be transferred within two (2) years after issuance unless such transfer is approved on the basis of death, disability, serious illness or severe financial hardship by resolution of the Municipal Council.

§ 307-3. Application for certificate. [Amended 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]

An application for a certificate of public convenience and necessity shall be filed with the Division of Commerce upon forms provided by the Division, and the application shall be verified under oath and shall furnish the following information:

A. Name, address, date of birth, telephone, social security and motor vehicle operator license numbers of the applicant.

B. Experience of the applicant in the transportation of passengers.

C. Any facts which the applicant believes tend to prove that public convenience and necessity require the granting of a certificate.

D. Number of vehicles to be operated or controlled by the applicant and the location of proposed depots and terminals.

E. Four photographs (minimum size of 3 1/2 inches by 3 1/2 inches) of each taxi (full frontal, full rear and bumper-to-bumper left and night side views). (This requirement shall not apply to renewal applications, but to initial applications under this amended ordinance and replacement vehicles only.)

F. Complete a Scofflaw Violations Check Form supplied by the Division of Commerce.

G. Such other information as the Division may require.

§ 307-4. Issuance or denial of certificate.

A. Subject to the limit fixed by this article, if the Division of Commerce finds that further taxicab service in the city is required by the public convenience and necessity and that the applicant is fit, willing and able to perform such public transportation and to conform to the provisions of this article and the rules thereto promulgated by the Division, then the Division shall issue a certificate stating the name and address of the applicant, the number of vehicles authorized under said certificate and the date of issuance; otherwise the application shall be denied. **[Amended 8-13-1997 by Ord. No. 97-052]**

B. In making the above findings, the Division shall take into consideration the number of taxicabs already in operation, whether existing transportation is adequate to meet the public need, the probable effect of increased service on local traffic conditions, and the character, experience and responsibility of the applicant.

C. If the application is denied, written reasons for such denial shall be given the applicant. The applicant may appeal such denial to the Business Administrator in writing and within 20 days of his or her receipt of the written reasons for denial. A hearing shall be scheduled upon at least 10 days' notice to the applicant. **[Added 4-10-1996 by Ord. No. 96-003; amended 8-13-1997 by Ord. No. 97-052]**

D. Every holder of a certificate of public convenience and necessity shall be responsible for the operation of any taxi for which the certificate has been granted. **[Added 4-10-1996 by Ord. No. 96-003]**

§ 307-5. Operation of noncertified taxicabs within city limits. [Amended 4-26-1984 by Ord. No. MC-489; 6-14-1995 by Ord. No. 95-050]

A. It shall be unlawful for a noncertified taxicab to pick up or accept a passenger within the city for a destination to a place within the city.

B. Noncertified taxicabs may discharge a passenger at a destination within the city, provided that said passenger has been picked up by said taxicab outside the city.

C. Noncertified taxicabs may only pick up a passenger within the city to be taken to a place of destination outside the city, provided that the passenger had personally or through an agent previously arranged by telephone or other means of communication with the owner or driver of the noncertified taxicab for such a trip to the destination outside the city.

D. Noncertified taxicabs may not pick up passengers unless the pickup is prearranged as described above. **[Added 4-10-1996 by Ord. No. 96-003]**

§ 307-6. Emergent removal of taxi from service; out-of-service sticker. [Amended 4-26-1984 by Ord. No. MC-489; 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]

A. A taxi may be removed from service on an emergent basis by the Director of the Division of Commerce when:

(1) The taxi is being operated without insurance in violation of § 307-7;

(2) The taxi is found to be unsafe or otherwise in violation of the provisions of § 307-21; or

(3) The taximeter is not working or inaccurate or otherwise in violation of § 307-23.

B. The holder may appeal the removal from service in writing to the Business Administrator within 20 days of the removal. A hearing shall be scheduled upon at least 10 days' notice to the holder.

C. When the Division of Commerce removes a taxi from service, the Division shall place an out-of-service sticker on the left side of the taxi's front windshield. The taxi shall remain out-of-service until the deficiencies are corrected and the sticker is removed by the Division.

D. It shall be a violation of this article for anyone other than the Director of the Division of Commerce or an inspector of the Division to remove an out-of-service sticker placed on a taxi by the Division.

E. If a taxi is in operation after an out-of-service sticker is removed by anyone other than the Director of the Division of Commerce or an inspector of the Division and prior to the correction of the deficiencies which caused the sticker to be placed on the taxi, the Director of the Division may cause that taxi to be impounded until the deficiencies which caused the sticker to be placed on the taxi are corrected. In such a case, the impoundment shall be at the taxi owner's expense.

F. If within 40 days of the removal from service, the taxi is not returned to service in full compliance with this article, the Director of the Division of Commerce shall revoke such certificate of public convenience and necessity in accordance with the procedures set forth in § 307-11.

§ 307-7. Insurance required. [Amended 9-13-1984 by Ord. No. MC-674; 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]

A. In order to insure the safety of the public, it shall be unlawful for any person to operate or cause or permit a taxicab to be operated, nor shall be certificate of public convenience and necessity be issued, until an insurance policy in compliance with N.J.S.A. 48:16-3 to 48:16-12 is obtained and copies filed with the Clerk of the City of Jersey City and with the Division of Commerce.

B. Any certificate issued hereunder shall only be effective for as long as the insurance policy remains in force and in accordance with the statutory amounts. In the event that the insurance is canceled, the certificate shall terminate on the effective date of the cancellation, unless the insurance has been reinstated and a withdrawal of the cancellation or a new policy of insurance has been submitted to the Clerk of the City of Jersey City and to the Division of Commerce prior thereto for the remainder of the license term.

C. Said insurance policy must provide therein that it shall not be canceled except upon 20 days' prior written notice to the Director of the Division of Commerce.

§ 307-8. Annual license fee; expiration date. [Amended 5-27-1980 by Ord. No. S-401; 6-14-1995 by Ord. No. 95-050; 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052; 2-11-1998 by Ord. No. 98-004; 2-14-01 by Ord. No. 01-013]

No certificate shall be issued or continued in operation unless the holder thereof has paid an annual license fee as provided in Chapter 160, Fees and Charges, for each vehicle operated under a certificate of public convenience and necessity and, upon renewal, has completed a renewal application, together with applicable documentation, as required by the Division of Commerce. The certificate shall expire on March 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Commerce. The fee shall be in addition to any other license fees or charges established by proper authority and applicable to said holder of the vehicle or vehicles under his or her operation and control.

§ 307-9. Transfer of certificate. [Amended 3-11-1980 by Ord. No. S-356; 5-27-1980 by Ord. No. S-401; 4-26-1984 by Ord. No. MC-489; 6-14-1995 by Ord. No. 95-050; 4-10-1996 by Ord. No. 96-003; 1-9-02 by Ord. No. 01-139]

A. No certificate of public convenience and necessity may be sold, leased or otherwise transferred to a taxicab driver or any other person for the use of transporting passengers without the approval of the Director of the Division of Licenses and Fees. The purchaser, lessee or transferee shall qualify for a certificate in accordance with § 307-3 et seq. Any denial of sale, lease, or transfer shall be in writing and based upon the failure of the transferee to qualify for a certificate pursuant to § 307-3 et seq. An applicant wishing to appeal a denial of transfer shall follow the procedure as set forth in § 307-4C.

B. The holder of a certificate may sell, lease or transfer the certificate as described in § 307-9A above, or may lease, rent or hire out a taxicab or taxicab driver to any other person for the use of transporting passengers, subject to the approval of the Director of the Division of Licenses and Fees. Whenever a holder of a certificate leases, rents or hires out a taxicab as described above, the details of the transaction shall be recorded promptly by the holder in the Division of Licenses and Fees.

C. The transfer fee shall be as provided in Chapter 160, Fees and Charges.

§ 307-10. Revocation or suspension of certificate. [Amended 4-26-1984 by Ord. No. MC-489; 8-13-1997 by Ord. No. 97-052]

A certificate issued under the provisions of this article may be revoked or suspended by the Division of Commerce if the holder thereof has:

A. Violated any of the provisions of this article.

B. Discontinued operations for more than 30 days.

C. Violated any provision of this Code or the laws of the United States or the State of New Jersey, the violations of which reflect unfavorably on the fitness of the holder to offer public transportation.

§ 307-11. Notice prior to suspension or revocation; hearing. [Amended 4-10-1996 by Ord. No. 96-003]

A. Prior to suspension or revocation, the holder shall be given notice and a copy of the charges and shall have an opportunity to present evidence in his or her behalf to the Division Director.

B. An adverse ruling by the Division Director may be appealed to the Business Administrator. The request for appeal shall be in writing and submitted within 20 days of the adverse ruling. A hearing shall be scheduled upon at least 10 days' notice to the holder. **[Amended 8-13-1997 by Ord. No. 97-052]**

§ 307-12. Taxicab driver's license.

No person shall operate a taxicab for hire upon the streets and no person who owns or controls a taxicab shall permit it to be so driven and no taxicab licensed by the City shall be so driven at any time for hire unless the driver of the taxicab shall have first obtained and shall have then in force a taxicab driver's license issued under the provisions of this article.

§ 307-13. Application for taxicab driver's license; contents; expiration date. [Amended 6-14-1995 by Ord. No. 95-050; 4-10-1996 by Ord. No. 96-003]

A. An application for a taxicab driver's license and yearly renewal thereof shall be filed with the Division of Commerce on forms provided by the Division, and such application shall be verified under oath and shall contain the following materials or information:

(1) Name, address, date of birth, telephone, social security and motor vehicle operator license numbers.

(2) The experience of the applicant in the transportation of passengers.

(3) A three-year history of his or her employment.

(4) Proof of residence in the State of New Jersey for a period of at least 90 days.

(5) The applicant shall be 21 years of age or older and have at least three years of driving experience.

(6) The applicant is able to speak, read and write the English language and has a basic knowledge of Hudson County roadways and landmarks.

(7) The applicant is a citizen of the United States. If the applicant is not a citizen, he or she must present valid documentation of authorization to work from the federal government.

(8) The applicant has in his or her possession a valid New Jersey State driver's license.

(9) Two photographs of the applicant one and one-half by one and one-half (1 1/2 × 1 1/2) inches front view of the applicant's face and shoulders without head covering. **[Amended 8-13-1997 by Ord. No. 97-052]**

(10) Fingerprint impressions taken by the Department of Public Safety. The applicant shall bear any and all costs for fingerprinting. [**Amended 9-11-2013 by Ord. No. 13-081**]

(11)Each application must be accompanied by a certificate from a licensed and practicing physician of the State of New Jersey, certifying that the applicant was examined on a certain date, within 60 days before the filing of the application; and that, in the physician's opinion, the applicant is of sound physique, with good eyesight, not subject to epilepsy, vertigo, heart trouble or any other infirmity of body or mind which might make the applicant unfit to safely operate a taxi. Upon renewal application, a certificate shall only be required every other year.

B. At the time the application is filed, the applicant shall pay to the Division the sum as provided in Chapter 160, Fees and Charges. The license shall expire on December 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Licenses and Fees. **[Amended 2-11-1998 by Ord. No. 98-004]**

§ 307-14. Investigation of taxicab driver's license applicants. [Amended 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052; 9-11-2013 by Ord. No. 13-081]

A. Upon the filing of an application for a taxi driver's license, the Department of Public Safety shall conduct an investigation of each applicant. The applicant's photo and fingerprints shall be forwarded to the Department of Public Safety's Bureau of Records and Identification. A report of the investigation and a copy of the traffic and police record of the applicant, if any, shall be attached to the application and returned for the consideration of the Division of Commerce.

B. The Director of the Division of Commerce shall consider the application, the police investigation report, the physician's certificate and any other documentation required to be attached thereto, the character, driving experience and responsibility of the applicant and any other relevant facts whatsoever and shall approve or reject the application. However, no taxi driver's license shall be issued until a written police investigation report is received from the Department of Public Safety's Bureau of Records and Identification, showing the result of the investigation of the applicant's prior history, if any, through an examination of the fingerprints. If a delay of more than 30 days is encountered between the date of fingerprinting and the receipt of the results of a Federal Bureau of Investigation (FBI) or a New Jersey State Police fingerprint check (the applicant shall bear the cost of any such investigation and check), the Director of the Division of Commerce may issue the applicant a temporary license for a period not to exceed six months based on a check through the fingerprints on file with the Department of Public Safety. If, when received by the Division of Commerce, all results of the fingerprint checks by the FBI and the New Jersey State Police show that the applicant is unfit to obtain a license, the Division may immediately revoke the applicant's license.

§ 307-15. Approval or rejection of application for taxicab driver's license. [Amended 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]

The Division of Commerce shall, upon consideration of the application and the reports and certificates required to be attached thereto, approve or reject the application. If the application is rejected, written reasons for such rejection shall be given to the applicant. The applicant may appeal such rejection to the Business Administrator, in writing, and within 20 days of his or her receipt of written reasons for rejection. A hearing shall be scheduled upon at least 10 days' notice to the applicant.

§ 307-16. Issuance of taxicab driver's license; fee. [Amended 5-27-1980 by Ord. No. S-401; 6-14-1995 by Ord. No. 95-050]

A license for each calendar year shall be issued upon payment of a fee as provided in Chapter 160, Fees and Charges, unless the license for the previous year has been revoked or suspended.

§ 307-17. Display of taxicab driver's license.

Every driver licensed under this article shall post his or her driver's license and a rate card in a bracket folder above the rear front seat at the eye level of the passenger. Said license and rate card shall be enclosed in plastic or glass.

§ 307-18. Suspension or revocation of taxicab driver's license. [Amended 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]

The Division of Commerce is hereby given the authority to suspend any taxicab driver's license issued under this article, such suspension to last for a period of not more than 30 days. The Division is also given authority to revoke any driver's license. A license may be suspended or revoked for failure to comply with the provisions of this article. However, a license may not be suspended or revoked unless the driver has received notice and a copy of the charges and has had an opportunity to present evidence in his or her behalf to the Division Director. An adverse ruling by the Division Director may be appealed to the Business Administrator. The request for appeal shall be in writing and submitted within 20 days of the adverse ruling. A hearing shall be scheduled upon at least 10 days' notice to the driver.

§ 307-19. Licensed drivers to comply with other laws. [Amended 8-13-1997 by Ord. No. 97-052]

Every taxicab driver licensed under this article shall comply with all city, state and federal laws relating to the use and occupancy of motor vehicles and taxicabs. Failure to do so will justify the Director of the Division of Commerce in suspending or revoking a license.

§ 307-20. Taxicab equipment and maintenance; inspections. [Amended 4-26-1984 by Ord. No. MC-489; 7-10-1986 by Ord. No. C-249; 12-22-1986 by Ord. No. C-357; 2-11-1987 by Ord. No. C-395; 2-26-1987 by Ord. No. C-381; 5-28-1987 by Ord. No. C-462; 9-25-1991 by Ord. No. McC-361; 3-9-2005 by Ord. 05-017]

A. Prior to the use and operation of any vehicle as a taxicab under this article, the vehicle shall be thoroughly examined and inspected by the Division of Commerce and shall be found to comply with such reasonable rules and regulations as may be prescribed by the Division. These rules and regulations shall be promulgated to provide safe transportation and shall specify such safety equipment and regulatory devices as the Division deems necessary therefor.

B. When the Division of Commerce finds that a vehicle has met the standards established by the Division of Commerce, it shall issue a license to that effect. The license shall be conspicuously displayed in each taxicab, so as to be readily seen by the passenger.

C. Every vehicle operating under this article shall be kept in a clean and sanitary condition according to rules and regulations promulgated by the Division.

D. All seat belts and shoulder harnesses shall be maintained and/or replaced as required to keep them in safe working order. The number of such seat belts and harnesses maintained and/or replaced shall be the same number originally installed by the manufacturor of the vehicle. All upholstery covering on seats and cushions in a licensed taxicab shall be made of leather or similar nonabsorbent material of a washable nature and shall be easily removable.

E. Every taxicab shall be equipped with an interior white light of sufficient candlepower to illuminate its interior after sundown and in no case shall the bulb be less than six candlepower.

F. Taxicabs shall be equipped with roof lights and said lights shall be in operation whenever the taxicabs are in operation. The roof lights shall be lighted when the taxicabs are vacant and extinguished during the daytime hours. There shall be no switches to allow the operator to control the roof lights.

G. Vehicles used as taxicabs shall pass inspection by the New Jersey State Motor Vehicle Department and also shall pass inspection by the Division of Commerce of the city.

H. Taxicabs, whether initial or replacement vehicles, shall not be more than sixty (60) months of age when first put into taxicab service and shall be removed from taxicab service when such vehicle attains the age of eighty-four (84) months; provided, however, that those taxicabs in service prior to the effective date of this amended article and which are 60 or more months of age prior to the effective date of this amended article shall not be required to be removed from taxicab service earlier than twenty-four (24) months after the effective date of this amended article, except that when a taxicab attains the age of eighty-four (84) months, the holder may, on a yearly basis, seek the written approval of the Director of the Division of Commerce to keep the taxicab in service. The holder shall have the burden of proving to the Director of Commerce that the taxicab is in superior condition.

I. Replacement vehicles used as taxicabs shall have a minimum of four doors and shall not be station wagons.

J. Bulletproof shields shall be installed on all vehicles, whether new or used. Such shields shall be installed full length behind the driver's seat from the floor to the roof of the taxicab. The partition shall be made of lexan, margard, or other polycarbonate material not less than 0.375 inches thick extending upward from the back of the front seat to the ceiling of the vehicle. There shall be a provision for communication with passengers and for a money slot while the partition is closed. Such partition may be able to be partially opened by the driver, so long as the driver can fully close the partition at any time. A vehicle owner shall also equip the vehicle with a 0.085-inch thick plate of ballistic steel or its equivalent, installed inside the back rest of the front seat. The plate shall cover the complete back rest area which is exposed to the rear seat compartment.

K. Security locks, which permit operation of both rear door locks by the operator of the taxicab, may be installed in any vehicle; however, the passenger shall never be prevented from manually unlocking his or her door.

L. Taxicabs shall be equipped with trouble lights that can be engaged by the driver, which will reveal a light on the outside of the vehicle, on the back of the taxi and just to the left of the trunk lock, and which is used to send out a silent distress call to notify other vehicles and pedestrians that the driver is in a dangerous situation.

M. Cameras and radios shall be required in all taxicabs. The required cameras shall be designed to enhance driver safety by acting as a deterrent to crime and as an effective tool in identifying those who commit crime, and shall be in-vehicle security camera systems capable of taking digital photo images of the entire passenger area of the vehicle. The system shall consist of a small camera with integrated infrared lighting that is installed above the vehicle's rear-view mirror. The infrared lighting shall enable the capture of digital images during the day or night, which shall be time and date-stamped along with the vehicle identification number, and are stored in a small controller unit securely installed elsewhere in the vehicle. The data shall be encrypted to prevent tampering and may only be accessed by authorized individuals. The required radios shall be FCC-licensed commercial two-way radios with an emergency button capable of notifying the Department of Public Safety or the Division of Commerce that a driver is in trouble. [**Amended 9-11-2013 by Ord. No. 13-081**]

§ 307-21. Taxicab identification; color regulation. [Amended 4-10-1996 by Ord. No. 96-003]

A. For identification purposes, the color scheme, insignia or monogram of a taxicab shall be assigned by the Division of Commerce. Each taxicab shall bear, either upon each rear door or upon each side of the vehicle next to the rear door, the rates of fare, as set forth on the rate card, in black letters not less than one inch or more than two inches in height. Trade names shall appear in black letters no less than six inches in height on both sides and rear of each vehicle. The assigned number of each taxicab shall appear on each side and rear in black numerals not less than two inches in height. No vehicle covered by this article shall be licensed whose color scheme, identifying design, monogram or insignia shall, in the opinion of the Division, conflict with or imitate any color scheme, identifying design, monogram or insignia used on a vehicle or vehicles already operating under the article, in such a manner as to be misleading or tend to deceive or defraud the public. If, after a license has been issued for a taxicab hereunder, the color scheme, identifying design, monogram or insignia thereof is changed without authorization from the Director of the Division of Commerce, the certificate covering such taxicab or taxicabs shall be suspended or revoked in accordance with the procedures set forth in § 307-11. **[Amended 8-13-1997 by Ord. No. 97-052]**

B. All taxicabs licensed to operate within the City of Jersey City shall be painted one uniform color substantially consistent with the following examples:

(1) Ford Chrome Yellow Paint - Code No. 6S.

(2) Dupont Centari Acrylic Paint - Code No. 4357.

(3) Dupont Deluxe Enamel Paint - Code No. 95923.

C. All taxicabs in service prior to the effective date of this amended article shall be exempt from this requirement; provided, however, that all new and replacement taxicabs which come into service after the effective date of this amended article shall be in compliance with the above color requirement immediately upon their operation within the City of Jersey City. Also exempt from this requirement, upon review and approval of the Director of the Division of Commerce, shall be radio-dispatched taxis which can demonstrate that their color scheme had been established and recognized by the public for a significant length of time prior to the effective date of this amended article. **[Amended 8-13-1997 by Ord. No. 97-052]**

D. Any taxicab being painted in compliance with this amended article shall be inspected by the Division of Commerce within 30 days of said painting. **[Amended 8-13-1997 by Ord. No. 97-052]**

§ 307-22. Taximeters. [Amended 8-13-1997 by Ord. No. 97-052]

A. All taxicabs operated under the authority of this article shall be equipped with a taximeter of a size and design approved by the Division of Commerce, and be so affixed that the face of the meter is visible to passengers. After sundown, each taximeter shall be illuminated by a suitable light not less than three candlepower and shielded or so arranged as to throw a continuous light thereon. No driver, while carrying passengers, shall display the signal affixed to any taximeter in such a position as to denote that the vehicle is not employed.

B. The Division of Commerce shall examine any taximeter attached to any taxicab, at any time, to see that it is accurate according to the rate schedule and to affix to the meter a seal of the Division. The seal shall be of a type and design set forth by the Division and attached in such manner that will ensure its remaining intact and prevent the tampering with the inner portion of the meter. In the event that a taximeter requires repairs, it shall not be returned to service until such time as it has been inspected again as required above and the proper seal again affixed. No person shall use or permit to be used, or drive for hire, a taxicab with a taximeter the case of which is unsealed or the covers and gears of which are not intact. **[Amended 4-10-1996 by Ord. No. 96-003]**

§ 307-23. Fare rates; discounts. [Amended 3-11-1980 by Ord. No. S-356; 4-28-1981 by Ord. No. S-608; 2-26-1987 by Ord. No. C-381; 4-10-1996 by Ord. No. 96-003]

No owner or driver of a taxicab shall charge a greater sum for the use of a taxicab than in accordance with the following rates:

A. Mileage rates shall be two dollars and fifty cents ($2.50)for the first one-ninth (1/9) mile or each fraction thereof and twenty-five cents ($0.25)for each additional one-ninth (1/9) mile. [9-28-2005 by Ord. No. 05-118]

B. Waiting time shall be charged at the rate of twenty cents ($0.20) for each minute per waiting time or fraction thereof at a rate of twelve dollars ($12.00) per hour.

C. Every taxicab operated under this article shall have a rate card setting forth the authorized rates of fare displayed as described in § 307-17. Rates of fare shall apply on one to five passengers to a single destination.

D. Taximeters shall be maintained so as to remain accurate and, except in the case of flat-fare rates authorized under this article, shall be in use whenever the taxicabs are in operation. When a taximeter is required to be in use, and it is not in use, whatever the reason, the passenger shall not be charged a fare for that particular ride. A notice approved by the Division containing this provision shall be conspicuously posted in each taxicab.

E. Taxicabs shall carry passengers to other municipalities within the state at a flat rate. If a trip or call extends beyond the boundary of the city, the driver and passenger or passengers shall agree on a flat rate of fare, prior to the start of the trip. A proper notation shall be made on the driver's manifest showing such charge.

F. The Division of Commerce shall have prepared the notices in large print to be displayed in the passenger compartment of each taxicab advising the passenger that if the meter is not in operation (except in the case of flat-fare rates authorized under this article) or if there is any question regarding the fare, that the passenger shall notify the Division of Commerce of such matter. In addition to the above, said notice shall contain the following information:

(1) The name of the taxicab owner and the name of the driver.

(2) The number of the taxicab.

G. Senior citizens and disabled persons.

(1) No person of the age of sixty-two (62) years and over, upon presentation of proper identification showing proof of such person's age to the driver of such taxicab, and no disabled person, as defined in § 307-1, shall pay more than the following discount rate; provided, however, that no discount rate shall be in effect between the hours of 7:00 a.m. to 9:00 a.m., and between the hours of 4:00 p.m. to 7:00 p.m., Monday through Friday:

Fare Appearing on Meter	Discount Rate to be Paid
If $4.00 or less	$2.00
If over $4.00	One-half fare

(2) The discount rate shall not apply where two or more adult passengers engage a taxi and all such passengers are not senior citizens and/or disabled persons.

(3) No owner or operator of a taxicab shall refuse to provide transportation for any such senior citizen or disabled person.

H. The Director of the Division of Commerce shall issue adequate signs to be placed in each taxicab operating in the city indicating the availability of reduced fares for senior citizens and disabled persons.

§ 307-24. Receipt to be supplied upon demand.

The driver of a taxicab shall, upon demand by the passenger, render to the passenger a receipt for the amount charged, either by a mechanically printed receipt or by a specially prepared receipt on which shall be the name of the owner, driver's name, license number of taxicab, date and amount of the fare.

§ 307-25. Refusal of passenger to pay legal fare. [Amended 4-10-1996 by Ord. No. 96-003]

No person shall refuse to pay the legal fare of any taxicab or vehicle mentioned in this article after having hired the same, and no person shall hire any such taxicab or vehicle with intent to defraud the person from whom it was hired of the value of such service. Any dispute as to rate of fare shall, upon request of the driver or passenger, be determined by the police officer in charge of the nearest police station.

§ 307-26. Solicitation of passengers; acceptance and discharge of passengers; cruising.

A. No driver shall, whether at a taxi stand or otherwise, solicit passengers for a taxicab, except when sitting in the driver's compartment of such taxicab or while standing immediately adjacent to the curb

side thereof. No driver shall use words other than "taxi," "cab" or "taxicab" when so soliciting. This subsection shall not be construed to allow any solicitation or conduct otherwise prohibited by this Chapter. The driver of any taxicab shall remain in the driver's compartment or immediately adjacent to the vehicle at all times when such vehicle is upon the public street. No driver shall, whether at a taxi stand or otherwise, seek to ascertain the destination of a passenger before the passenger is seated in the taxicab. **[Amended 8-20-2008 by Ord. No. 08-110]**

B. No driver shall threaten, harass or abuse any passenger, governmental officer, representative of the Division of Commerce, public servant or any other person while performing his duties as a driver. No driver shall use or attempt to use any physical force against a passenger, governmental officer, representative of the Division of Commerce, public servant or any other person while performing his duties as a driver. No driver shall solicit patronage in a loud or annoying tone of voice or by sign or in any manner annoy any person or obstruct the movement of any person or follow any person for the purpose of soliciting patronage. No driver or starter shall induce any prospective passenger as to the location of any hotel, public place or private residence within the city or as to the distance between any two points, nor shall any driver or starter deceive any prospective passenger or make any false or misleading representations to him or her or convey any passenger to any place or over any other route than that to which such passenger may have instructed the driver to go. No driver shall deceive a passenger by taking a route known to be less direct for the purpose of increasing a fare. **[Amended 4-10-1996 by Ord. No. 96-003; 8-20-2008 by Ord. No. 08-110]**

C. Drivers of taxicabs shall not receive or discharge passengers in the roadways, but shall pull up to the right-hand sidewalk as nearly as possible or, in the absence of a sidewalk, to the extreme right-hand side of the road and there receive or discharge passengers, except upon one-way streets, where passengers may be discharged at either the right- or left-hand sidewalk or side of the roadway in the absence of a sidewalk.

D. Drivers may, upon being hailed, pick up passengers except in such areas and at such times prohibited by directive issued by the Director of the Division of Commerce with the approval of the Business Administrator. Such directive and any amendments thereto shall be mailed to the last known business address of each holder of a certificate. A driver shall not, however, pick up a passenger within four hundred (400) feet of a taxi stand. **[Amended 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]**

E. No person, other than the licensed driver or a person with a disability, shall ride or sit in the front seat unless the rear seat is fully occupied by passengers. **[Amended 4-10-1996 by Ord. No. 96-003; 8-20-2008 by Ord. No. 08-110]**

F. No driver shall permit more persons to be carried in a taxicab as passengers than the number of manufacturer installed seat belts originally existing in the taxicab. **[Amended 4-10-1996 by Ord. No. 96-003]**

G. No driver shall refuse or neglect to convey any orderly person or persons upon request, unless previously engaged or unable or forbidden by the provisions of this article to do so.

H. It shall be a violation of this article for any driver of a taxicab to solicit business for any hotel or to divert patronage from one hotel to another. Drivers shall not partake of any alcoholic beverage while

on duty. Drivers shall not engage in selling intoxicating liquors or solicit business for any illicit purpose or use vehicles for any purpose other than the transportation of passengers. **[Amended 4-10-1996 by Ord. No. 96-003]**

I. No taxicab shall remain parked at any place within the city except at a taxi stand assigned to it or unless it is waiting for a scheduled passenger. No taxicab shall be parked at any place other than its taxi stand awaiting a call from its dispatcher or other person for a new assignment. A driver may, however, park a taxicab for short periods of time solely to do errands or business of a personal nature, i.e., food breaks. **[Amended 4-10-1996 by Ord. No. 96-003]**

§ 307-27. Taxi stands; establishment; designated stand; open stand; use. [Amended 4-10-1996 by Ord. No. 96-003]

A. The Division of Traffic and Street Maintenance, with the approval of the Division of Commerce, shall recommend to the governing body the establishment of designated and open taxi stands and temporary taxi stands in such place or places upon the streets of the city as it deems necessary. The governing body shall establish taxi stands by resolution. A taxi stand or temporary taxi stand may also be located on private property with approval of the property owner. The Division of Traffic and Street Maintenance, with the Division of Commerce, shall make such recommendation to the governing body. Any taxi stand established shall further be in compliance with all applicable state laws. The Division of Commerce, with the approval of the Business Administrator, shall prescribe the number of cabs that shall occupy such taxi stands and temporary taxi stands, and such number shall be indicated on the curbside taxi stand sign. No stand shall be established without taking into consideration the need for such stands by the companies and the convenience to the general public. Nor shall a stand be established in front of any place of business where the abutting property owners object to same or where such stand would create a traffic hazard. For stands located on private property, the owners of such property may impose additional requirements upon occupants with regard to their use of such private property stands. **[Amended 8-13-1997 by Ord. No. 97-052]**

B. In the event that relocation of public highways or other development or improvement makes it necessary to close and discontinue a taxi stand or temporary taxi stand, the Division of Traffic and Street Maintenance, with the approval of the Division of Commerce, shall have the right to close and discontinue the stand or to change its location. In the event a designated stand is closed, the occupant(s) of the closed stand shall be reassigned to the new designated stand established to replace the closed stand. If no replacement designated stand is established, then occupant(s) may request assignment to an existing designated stand; provided, however, that the occupant(s) show evidence of the need for additional occupant(s) at the existing stand. Occupants of a designated stand closed without replacement shall have preference when requesting assignment to an existing stand. **[Amended 8-13-1997 by Ord. No. 97-052]**

C. Any newly created designated taxi stand or any assigned space at an existing designated taxi stand which becomes available through retirement, revocation or other means shall be offered for sale at public auction, after advertising thereof in the Jersey Journal and the Hudson Reporter. The procedures, rules and regulations for such an auction shall be announced by directive issued by the Director of the Division of Commerce with the approval of the Business. Administrator and may be amended as deemed necessary to ensure the fair and equitable disposition of designated taxi stand

assignments. The auction shall be conducted by the City Clerk. A holder aggrieved by any decision made pursuant to § 307-27(b) or § 307-27(c) herein may appeal in writing to the Business Administrator within twenty (20) days of such decision. A hearing shall be scheduled upon at least ten (10) days' notice to such holder. **[Amended 8-13-1997 by Ord. No. 97-052; 10-9-2013 by Ord. No. 13-101]**

D. All taxicabs assigned to a designated taxi stand shall be issued an emblem stating the name of the designated stand, and such emblem shall be adhered at the lower left side of the stand, and such emblem shall be adhered at the lower left side of the taxicab's rear windshield so as to be clearly visible by a person standing outside the taxicab. No taxicab shall use a designated taxi stand unless specifically assigned such designated stand and issued the appropriate emblem by the Director of the Division of Commerce. **[Amended 8-13-1997 by Ord. No. 97-052]**

E. Any taxicab may use an open taxi stand as authorized under this article.

F. Stands shall be used by drivers on a first-come, first-served basis, this means that the first taxi in line shall accept the first passenger in line. A driver shall not pick or accept a passenger that is not first in line, nor shall he pick or accept more than one fare. A driver entering the stand with his or her taxicab shall join any waiting taxicabs from the rear and advance forward as the preceding taxicabs depart. A driver may not use another person, other than a dispatcher as authorized in this chapter, to solicit a passenger. No driver shall overcrowd, back into a front position, or otherwise cut in line at a taxi stand. The driver of each of the first two taxicabs at a taxi stand shall remain in the driver's seat ready to accept passengers. Any other driver shall be no more than fifteen (15) feet from his taxicab. No driver shall threaten, harass or abuse any passenger, governmental officer, representative of the Division of Commerce, public servant or any other person while performing his duties as a driver. No driver shall use or attempt to use any physical force against a passenger, governmental officer, representative of the Division of Commerce, public servant or any other person while performing his duties as a driver. Drivers shall not engage in loud or boisterous talk while waiting at a stand, nor shall any driver perform or cause to be performed any maintenance or repairs on his or her taxicab while waiting at a stand. Subject to rules and regulations of the director, no person shall park or stand a taxicab in any prohibited area, or in any area controlled by curb parking meters, or at the curb within fifteen (15) feet of the entrance to any railroad station, theater, hotel, restaurant or similar place of public accommodation or public resort. **[Amended 8-20-2008 by Ord. No. 08-110]**

G. The rules regarding taxi stands shall also apply to feed lines at air, rail, bus and ship terminals. **lexis [Added 8-20-2008 by Ord. No. 08-110]**

§ 307-28. Call boxes; establishment; use. [Amended 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]

The Director of the Division of Commerce, with the approval of the City Traffic Engineer, shall establish call boxes upon the streets of the city in such places as in its discretion it deems proper. Any holder or holders desiring to establish a call box shall make a written application to the Division. The applicant(s) shall attach to the application the written approval of the abutting property owner. The Division either shall grant or refuse the application. If and when a call box has been established, as herein provided, it shall be used solely by the holder or holders to whom it was granted and his or her or their agents and servants, and no other holder or holders shall be permitted to use it. Any holder or holders of existing call boxes shall be given six months from the effective date of this article to comply with this section.

§ 307-29. Taxi stands not to be used by other vehicles. [Amended 4-10-1996 by Ord. No. 96-003]

Private vehicles or other vehicles for hire shall not at any time occupy the space upon the streets which has been established as either a taxi stand, temporary taxi stand or call box stand.

§ 307-30. Standard of service; safety requirements; personal appearance. [Amended 4-10-1996 by Ord. No. 96-003]

A. All persons engaged in the taxicab business in the city operating under the provisions of this article, whether holder or driver, shall at all times cooperate with all law enforcement officers and authorized representatives of the Division of Commerce and shall comply with all reasonable requests, including but not limited to, providing his name, certificate or license number, trip record, or any other documentation required to be in his possession. A holder or driver shall promptly answer and comply with all questions, communications, directives, and summonses from law enforcement officers or authorized representatives of the Division of Commerce. A law enforcement officer or authorized representative of the Division of Commerce shall always have the authority to monitor circumstances at a taxi stand or other place of fare and take whatever action is deemed necessary and proper to effectuate the clear and express purposes of this chapter. All persons engaged in the taxicab business in the city operating under the provisions of this article, whether holder or driver, shall at all times render an overall acceptable service to the public desiring to use taxicabs. Holders of certificates of public convenience and necessity shall maintain a central place of business in Jersey City. They shall answer all calls received by them for service inside the city as soon as they can do so and, if the service cannot be rendered within a reasonable time, they shall notify the prospective passengers how long it will be before the call can be answered and give the reason therefor. Any holder who shall refuse to accept a call anywhere in the city at any time when such holder has available taxicabs or who shall fail or refuse to give overall acceptable service shall be deemed a violator of this article, and the certificate granted to such holder shall be suspended or revoked at the discretion of the Director of the Division of Commerce in accordance with the procedures set forth in § 307-11. **[Amended 8-13-1997 by Ord. No. 97-052; 8-20-2008 by Ord. No. 08-110]**

B. Notwithstanding any provision of this article to the contrary, no person may operate an autocab in contravention of federal and state laws and regulations.

C. All taxicab drivers, when operating their taxicabs, must obey the following rules regarding their appearance and behavior:

(1) Drivers must be neat and clean in their personal appearance and must have their hair, beards, mustaches, etc., well trimmed and kept;

(2) Drivers shall wear the following items of dress:

(a) A long- or short-sleeved shirt or blouse with a collar.

(b) A pair of zippered trousers or skirt.

(c) Other items of clothing, e.g., headgear, jackets, sweaters or shoes, as well as jewelry, shall be appropriate and tasteful. Drivers shall not wear excessive cologne, perfume or aftershave.

(3) No smoking shall be permitted while carrying passengers.

§ 307-31. Drivers to maintain daily manifest; contents. [Amended 8-13-1997 by Ord. No. 97-052]

A. Every taxicab driver shall maintain a daily manifest upon which are recorded all trips made each day, showing time and place of origin and destination of each trip and amount of fare, and all such completed manifests shall be returned to the owner of the taxicab by the driver at the conclusion of the tour of duty. The form for each manifest shall be furnished to the driver by the owner and shall be of a character approved by the Division of Commerce.

B. Every holder of a certificate of public convenience and necessity shall retain and preserve all driver's manifests in a safe place for at least one year, and the manifests shall be made available to the Division of Commerce immediately upon request. **[Amended 4-10-1996 by Ord. No. 96-003]**

§ 307-32. Required records and reports. [Amended 8-13-1997 by Ord. No. 97-052]

A. Every certificate holder shall keep accurate records of receipts from operations, operating and other expenses, capital expenditures and such other operating information as may be required by the Division of Commerce. Every holder shall maintain the records containing such information accessible for examination by the Division.

B. All accidents arising from or in connection with the operation of taxicabs which result in death or injury to any person or in damage to any vehicle, or to any property in an amount exceeding the sum of $100 shall be reported within 24 hours from the time of occurrence to the Division of Commerce in a form of report to be furnished by the Division. The reports shall be for the use of the Division in developing useful information in the prevention of accidents.

C. All certificate holders shall file with the Division of Commerce copies of all contracts, agreements, arrangements, memorandum or other writings relating to the furnishing of taxicab service to any hotel, theater, hall, public resort, railway station or other place of public gathering, whether such arrangement is made with the holder of any corporation, firm or association with which the holder may be interested or connected. Failure to file such copies within seven days shall be sufficient cause for the suspension or revocation of a certificate of any offending holder in accordance with the procedures set forth in § 307-11. **[Amended 4-10-1996 by Ord. No. 96-003]**

§ 307-33. Advertising.

A. Subject to the provisions of this article and the rules and regulations of the Division, taxicabs may display advertising on or above the rear bumper of the cab only when such advertising is properly framed and does not obstruct rear vision.

B. Out-of-town taxicab companies shall not display any type of advertising in public telephone booths, taverns, restaurants or other public places in the city.

§ 307-34. Enforcement. [Amended 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]

The Division of Commerce is hereby given the authority and is instructed to watch and observe the conduct of holders and drivers operating under this article. Upon discovering a violation of this article, the Division shall order or take appropriate action.

§ 307-35. Use of radios. [Amended 9-25-1991 by Ord. No. McC-361; 4-10-1996 by Ord. No. 96-003]

A. Subject to required licensing and approval by the appropriate authorities, including the Division of Commerce of the city, owners may use radios to dispatch taxicabs; provided, however, that no holder of a certificate of public convenience under this article may use or maintain any radio, scanner or any other device set to the frequency of any other radio-dispatched cab or any other autobus, livery or limousine service licensed by the City of Jersey City; nor may any taxicab be equipped with any radio, scanner or device capable of receiving the dispatch calls of any other taxi or any other autobus, livery or limousine service licensed to operate in Jersey City. Any certificate holder or driver found guilty of a violation of this subsection shall have his or her certificate or license suspended for a period of up to 30 days according to the procedures set forth in § 307-11. Any owner or driver found guilty of a second violation shall have his or her certificate or license revoked in accordance with the procedures set forth in § 307-11. **[Amended 8-13-1997 by Ord. No. 97-052]**

B. Taxicabs may be equipped with citizens band radios, provided that the installation is approved by the Director. Citizens band radios in taxicabs or at dispatch offices shall be limited to use in an emergency or to report crimes in progress to other cabs equipped with similar radios so that the police can be summoned. No owner or driver may use a citizens band radio for any commercial purpose. The use of a citizens band radio for any commercial purpose such as soliciting fares may result in a fine or suspension of the certificate or license and referral to the Federal Communications Commission (FCC). All citizens band radios installed in taxicabs shall comply with regulations of the FCC.

§ 307-36. Variance. [Added 4-10-1996 by Ord. No. 96-003; 8-13-1997 by Ord. No. 97-052]

An applicant may request a variance from the strict compliance with a specific requirement of this article by requesting same in writing to the Business Administrator. The application should contain all pertinent details, together with documentation, which the applicant wishes considered. The approval or denial of the application for variance shall be at the discretion of the Business Administrator and shall not be approved absent a showing that strict compliance with the specific requirement would create a practical hardship for the applicant and that the proposed alternative will in no way jeopardize the health, welfare and safety of passengers or the public in general.

§ 307-36.1. Violations and penalties. [Added 6-14-1995 by Ord. No. 95-050; amended 4-10-1996 by Ord. No. 96-003]

In addition to any and all penalties described above, any person, firm or corporation who shall violate any of the provisions of this article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

ARTICLE II

Limousines and Transportation Network Company Vehicles*

§ 307-37. Definitions. [Added 1-11-2012 by Ord. No. 11-156; 4-24-2019 by Ord. No. 19-036]

The following words and phrases when used in this chapter have the meanings as set forth herein:

CITY - The City of Jersey City.

CRUISING - The driving of limousine vehicles on the streets, alleyways or other public places of the. City in search or solicitation of prospective passengers.

DIRECTOR - The Director of the Division of Commerce in the City of Jersey City's Department of Housing, Economic Development and Commerce.

DIVISION - The Division of Commerce of the City of Jersey City's Department of Housing, Economic Development and Commerce.

HEARING - A public hearing at which the licensee shall be given an opportunity to appear personally and be represented by his/her chosen counsel and be heard and to present evidence on his/her behalf or otherwise answer the charges against him/her.

HEARING OFFICER - Shall be the Business Administrator or his/her designee.

HOLDER - A person or entity to whom a limousine license has been issued.

LICENSE INSPECTOR - An inspector acting on behalf of the Division.

LICENSING YEAR - April 1 of any given year through March 31 of the following year.

LIMOUSINE OPERATOR - Any person holding a valid current New Jersey or New York driver's license with a passenger endorsement or possessing any other such license or class of license as required by the State of New Jersey Motor Vehicle Commission for a limousine driver/operator.

LIMOUSINE VEHICLE (or LIMOUSINE) - Any automobile or motor car, issued special registration plates bearing the word "limousine" pursuant to Section 12 of P.L. 1979, c.224 (C.39:3-19.5), which is engaged in the business of carrying passengers on a pre-arranged charter basis, which is not conducted on a regular route or at a regular time, with a seating capacity of no more than fourteen (14) passengers, not including the driver, provided that such a vehicle is certified by the manufacturer of the original vehicle (and the second-stage manufacturer, if applicable) to conform to Federal Motor

***Editor's note—**Ord. No. 11-156, adopted January 11, 2012, amended the Code by repealing former Arts. II and III, §§ 307-37—307-42, and adding a new Art. II. Former Art. II pertained to autobuses, livery and limousine services, and derived from Ord. No. J-682, adopted February 3, 1976; Ord. No. S-128, adopted September 19, 1978; and Ord. No. 97-052, adopted August 13, 1997. Subsequently, 19-036, adopted April 24, 2019, amended the title of Art. II.

State law references—Motor vehicles - registration and licensing, N.J.S.A. 39:3-3 et seq.; power to license; license fees, N.J.S.A. 40:52-1 and -2; limousines, N.J.S.A. 48:6-13 et seq.

Vehicle Safety Standards promulgated by the United States Department of Transportation pursuant to 49 CFR 567.1 et seq. and 49 CFR 567.1 et seq. In addition, a "Vehicle Emission Control Information" label, which contains the name and trademark of the manufacturer and an unconditional statement of compliance with the emission requirements of the Environmental Protection Agency, shall be present on the vehicle. Nothing herein shall be construed to include taxicabs, hotel buses, buses employed solely in transporting school children or teachers, or vehicles operated by businesses engaged in the practice of mortuary science when those vehicles are used exclusively for providing transportation related to the provision of funeral services.

MVC - The New Jersey Motor Vehicle Commission.

TRADE DRESS BEACON or BEACON - The illuminated signage featuring the proprietary trademark or logo that identifies the Transportation Network Company and which can be installed on a vehicle's dashboard or attached to its windshield.

TRANSFER - To sell, transfer or in any other manner dispose of, a limousine license. Where the license is in the name of a corporation or other legal entity, any change in ownership or control of the corporate entity holding the license shall constitute a "transfer" of the license held in the name of said corporation or other legal entity. The Division shall determine what constitutes a change in control.

TRANSPORTATION NETWORK COMPANY or RIDESHARE COMPANY or COMPANY - A corporation, partnership, sole proprietorship. or other entity that is registered as a business in the State or operates in this State, and uses a digital network to connect a transportation network company rider to a transportation network company driver to provide a prearranged ride. A transportation network company shall not include an individual, corporation, partnership, sole proprietorship, or other entity arranging non-emergency medical transportation for individuals qualifying for Medicaid under P.L. 1968, c.413 (C.30:4D-1 et seq.) or Medicare under 42 U.S.C. § 1395 et seq., pursuant to a contract with the State or a managed care organization, whereby Medicaid or Medicare funding is used to pay for the non-emergency medical transportation services.

§ 307-38. Limousine service license(s). [Added 1-11-2012 by Ord. No. 11-156]

A. *Limousine license required; fees.*

(1) All limousine owners whose principal place of business is within the City of Jersey City shall, prior to operating any limousine service, first obtain a limousine license from the Division in accordance with N.J.S.A. 48:16-13—22.7. Licenses shall be for the year beginning on April 1 and ending March 31 of the following year and be renewable every year.

(2) No limousine license for limousine services with principal places of business within the City of Jersey City, shall be issued or renewed unless the applicant has paid the annual license fee of $50.00 for each limousine service business and $10.00 for each limousine. Limousine license fees shall be in addition to any other fees or charges established by the proper authorities and applicable to the holder of the license(s) for the vehicle or vehicles under his operation and control.

(3) Limousine services with a place of business within, and licensed by, the City of Jersey City shall be required to pay an annual administrative fee of $500.00 to cover administrative costs including, but not limited to, vehicle inspections, preparation of reports and documents by Division personnel and the enforcement by the Division of the provisions of this chapter.

(4) Notwithstanding any other provision herein to the contrary, the Director may require a limousine corporate license in accordance with N.J.S.A. 48:16-18.1.

B. *Obtaining a limousine license; procedure; renewal of license.*

(1) All applications for a license shall be filed with the Division, and a duplicate with the MVC, on forms provided by the Division, and shall be notarized, furnishing the following information:

(a) The name and address of the applicant and a description of all transportation businesses that the applicant and/or its operators have had an ownership interest in, or employment at, within the past five years.

(b) Proof that the applicant is registered to do business in New Jersey.

(c) The applicant's Corpcode, which is the 15-digit corporation code, issued by the State of New Jersey Motor Vehicle Commission.

(d) The year, type, model, color, insurance carried for, and VIN number of, each vehicle for which the license is desired and the number of persons the limousine is capable of carrying.

(e) Copies of all of the licenses and passenger endorsements of the operators who drive for the applicant.

(f) Such further information as the director shall require to determine the eligibility of the applicant.

(2) The original limousine license, or a copy thereof, shall be retained within each limousine.

(3) The holder shall make annual application for renewal of his/her limousine license and limousine operator's licenses not later than 30 days prior to the expiration date, and pay the annual fee of $50.00 for the limousine license and $10.00 for each limousine. Late filing of applications shall be subject to an additional $50.00 late filing fee.

C. *Power of attorney; insurance requirement.*

(1) The applicant shall execute and deliver to the MVC a power of attorney whereby the holder shall appoint the MVC as his true and lawful attorney for the purpose of acknowledging service of process of any complaint(s) against the holder in compliance with N.J.S.A. 48:61-16.

(2) The applicant prior to becoming a holder or renewing his license must purchase, for each limousine in his/her service, an insurance policy from a company duly licensed to transact business

under the insurance laws of this State in the sum of $1,500,000.00 as required by N.J.S.A. 48:16-14. The City of Jersey City must be named as an additional insured and an insurance card for the applicant must be placed in each limousine.

(3) In the event that the holder's insurance is canceled, the holder's license shall terminate on the date of the cancellation, unless the insurance is reinstated and proof of the withdrawal of the cancellation or a new insurance policy is submitted to the Division within 24 hours. As a condition of obtaining a City of Jersey City limousine license, the limousine license holder agrees to provide the Director of the Division, or his/her designee, with the authority to communicate directly with the limousine license holder's insurance companies.

D. *Issuance of limousine license.* The Director is responsible for issuing limousine licenses. The license will state the name and address of the applicant, the date of issuance and the year, type and model of the vehicle; otherwise, the application shall be denied. Upon issuance, the license for each limousine shall be retained within the limousine and available for inspection by Division personnel and any law enforcement officer.

E. *Requirements for maintaining limousine license.* Once a year, each holder of a limousine license shall, as condition for the continuation of the license(s) submit his limousine vehicle(s) for full mechanical and vehicle inspections during the period of validity of the license according to a schedule established by the Division. Such inspection shall be preceded by an inspection at an MVC Commercial Inspection Station and then by the Division. The City of Jersey City requires all limousines licensed by the Division to, at all times, be in a safe and operable condition, including, but not limited to, the following:

(1) The air-conditioning, heating and defrost systems must work.

(2) A two-way communications system and a removable first aid kit must be in the limousine.

(3) An operable fire extinguisher must be in an accessible place within the limousine. The trunk of the vehicle shall not be considered an accessible place.

(4) When the height of the vehicle floor is ten inches or more above ground level, there must be sideboards attached to the permanent body of the limousine.

(5) The horn must function properly so as to produce a sound audible for 200 feet.

(6) All doors and door lock poles must be fully operational.

(7) Each seat must have sufficient leg room to meet any applicable ADA (the "Americans With Disabilities Act") requirement.

(8) The limousine vehicle must be a painted with glossy paint, a fully integrated body and meet such further structural requirements as the Director determines will render the limousine at all times safe, functional and the premium vehicle which the public expects when paying for a limousine.

F. *Transfer of limousine license.*

(1) No limousine license may be sold, assigned or otherwise transferred without the prior consent of the Division. No limousine license shall be mortgaged, pledged or otherwise rendered to secure a debt, loan, advance or other financial transaction.

(2) If the holder voluntarily permits any other person other than an operator, licensed under this chapter, to drive or operate a limousine, it shall be considered a transfer and a violation of this chapter.

G. *Suspension and revocation of limousine license; notice and hearing.*

(1) The Director may suspend a limousine service license for 30 days or less, or after a notice and hearing, revoke the license, if the holder has:

(a) Violated any of the provisions of this chapter;

(b) Violated any ordinance of the City of Jersey City or the laws of New Jersey, the violation of which reflects unfavorably on the fitness of the holder to offer public transportation.

(c) Discontinued operation of a limousine service for more than 60 days.

(2) Suspension and revocation of a limousine license must be preceded with notice to the holder by means of providing him or her with a written copy of the charges followed by an opportunity to present evidence on his or her behalf to the Director at a hearing, with counsel representation if he or she so elects.

(3) A ruling adverse to the holder may be appealed to the Business Administrator. The request for an appeal shall be in writing and submitted within 20 days of the adverse ruling. A hearing shall thereupon be shall be scheduled with at least ten days' notice to the holder.

§ 307-39. Limousine operator's license. [Added 1-11-2012 by Ord. No. 11-156]

A. Limousine operator's license requited; fees for issuance and renewal.

(1) Every person who operates a limousine for hire upon the streets of the City of Jersey City and every person who owns or controls a limousine permitting it to be so driven, shall first obtain and have in force, at all times, a limousine operator's license. Every operator shall be a holder or an employee of a holder.

(2) Each applicant for a limousine operator's license must:

(a) Be of the age of 21 years or over and be a resident of the State of New Jersey, or the State of New York for one year or more.

(b) Present evidence satisfactory to the Division that he/she meets all governmental statutory and regulatory requirements for a limousine operator's license.

(c) Be able to read, write and speak the English language, and have a basic knowledge of Hudson County roadways and landmarks.

(3) No operator's license shall be issued or renewed unless the applicant has paid an initial license fee of $75.00 and, on or before March 31 of each year, and $50.00 as the annual renewal fee.

B. *Obtaining a limousine operator's license; procedure.*

(1) An applicant for a limousine operator's license shall file an application for such license with the Division on forms provided by the Division and pay the prescribed fee. All documentation submitted in support of an application shall be original documents or legible certified copies of same. The application shall contain the following information:

(a) The full name and address of the applicant.

(b) Places of residence for the preceding three years.

(c) Age, place of birth, height, color of eyes and hair.

(d) The experience of the applicant in the transportation of passengers.

(e) A valid driver's license with passenger endorsement

(f) The successful completion of a drug and alcohol test for controlled dangerous substances as defined in N.J.S.A. 2C:35-2. The cost of this test shall be at the applicant's, expense.

(g) Permission for release of the applicant's criminal background check to the Division.

(h) MVC-issued record abstract indicating the applicant's driving history from at least the preceding five (5) years, from all States in which the applicant has lived, which shall be no more that thirty (30) days old.

(i) The applicant's citizenship status with evidence of same, such as passport, naturalization papers, alien registration and work authorization from the United States Department of Homeland Security, if not a United States citizen. A United States passport shall satisfy United States' citizenship.

(2) The applicant shall furnish four passport-type photographs of himself taken within 30 days of the application, front view, two inches by two inches in size.

(3) Each application must be accompanied by a certificate from a licensed and practicing physician of the State of New Jersey, certifying that the applicant has been examined on a certain date and that, in his opinion, the applicant is of sound physique, with good eyesight, not subject to epilepsy, vertigo, heart trouble or any other infirmity or body or mind which might make him unfit for the safe operation of a limousine vehicle. The examination shall be within 30 days prior to the filing of the application.

(4) Convictions of those crimes set forth in N.J.S.A. 48:16-22.3a(d) shall disqualify an applicant, which includes, but shall not be limited to assault, arson, burglary, escape, extortion, homicide, kidnapping, robbery or endangering the welfare of a child, as shall any conviction for driving under the influence of drugs or alcohol or unlawful use, possession or sale of a controlled dangerous substance (as defined in N.J.S.A. 2C:35-2), within the preceding five years, absent a certificate of rehabilitation as described in N.J.S.A. 48:16-22.3a(g).

(5) Prior to issuing a limousine operator's license, the Director shall consider the application, the police investigative report^ criminal background check, driving history, any other documentation the Director requires to be attached thereto, and any relevant facts whatsoever and shall approve or reject the application. If the application is rejected, the applicant may request a hearing, in accordance with this chapter, in order to offer evidence as to why his application should be reconsidered.

C. *Issuance of limousine operator's license; form of license.* Upon the Director's approval of an application for a limousine operator's license, the Division shall issue a license to the applicant which shall bear the name, signature and photograph of the applicant. The license shall also contain the City license number and a notice that, in case of any complaint, the Division shall be notified of the license number of the operator. The license shall bear the signature of the Director. It must be carried by the operator in the limousine and be available for inspection by any law enforcement officer and Division inspector at any time. The license shall be in effect for the remainder of the licensing year ending the following March 31.

D. *Suspension and revocation of limousine operator's license.*

(1) The Director may suspend a limousine operator's license for 30 days or less, or after a notice and hearing, revoke the license, if the operator has:

(a) Violated any of the provisions of this chapter;

(b) Violated any ordinance of the City of Jersey City or the laws of New Jersey, the violation of which reflects unfavorably on the fitness of the operator to offer public transportation.

(2) Suspension and revocation of an operator's license must be preceded with notice to the operator by means of providing him or her with a written copy of the charges followed by an opportunity to present evidence on his or her behalf to the Director at a hearing, with counsel representation if he or she so elects.

(3) A ruling adverse to the operator may be appealed to the Business Administrator. The request for an appeal shall be in writing and submitted within 20 days of the adverse ruling. A hearing shall thereupon be shall be scheduled with at least ten days' notice to the operator.

E. *Compliance with other laws.* Every limousine operator shall comply with all city, state and federal laws. Violation of any laws which reflects unfavorably on the fitness of such operator to engage in public transportation; failure to do so will justify the Division in suspending and/or, after a hearing, revoking the violator's license. If, at any time within the license year, an operator has been found guilty of a crime or misdemeanor or has permitted his vehicle to be used for any illegal purpose, the Division may immediately suspend or, after a hearing, revoke the operator's license.

§ 307-40. Limousine vehicles' condition and appearance; checklist; reports; operation of limousine while in City of Jersey City. [Added 1-11-2012 by Ord. No. 11-156]

A. *Limousine condition and appearance; checklist.*

(1) No limousine license shall be issued until the limousine vehicle has been thoroughly inspected and found to be in a safe, clean and sanitary condition for the transportation of passengers.

(2) Every vehicle operating under this chapter shall be inspected in accordance with N.J.S.A. 48:16-22.2, which requires the operator to conduct a general examination of the condition of the vehicle prior to any operation of the limousine on the streets of Jersey City or the highways of this State for the purpose of picking up passengers. The inspection shall be conducted according to a check list maintained in the limousine for the day in which the limousine is driven and then filed with the holder employing the operator. The checklist shall contain, at a minimum, an examination of the tires, windshield wipers, horn, condition of front and rear windshield and side windows, front and rear lights, fluid levels and brakes, as well as the condition of the two-way communications system, as required by N.J.S.A. 48:16-22.2.

(3) Any limousine vehicle on the streets of the City of Jersey City in violation of this section may be removed from the street by the Department of Public Safety. If the limousine vehicle is not returned to service in compliance with this section within 30 days, the Division may suspend or, after a hearing, revoke the limousine license. **[Amended 9-11-2013 by Ord. No. 13-081]**

B. *Reporting of accidents; other reports required.*

(1) All accidents arising from or in connection with the operation of a limousine which result in death or injury to any person or in damage to any vehicle or to any property in an amount exceeding $100.00 shall be reported to the Division within 48 hours of the occurrence. Copies of the police report prepared as a result of the accident must also be provided to the Division within five business days. Failure to report said accidents shall be grounds for suspension and/or revocation of the limousine operator's and/or holder's license.

(2) Whenever the registration and/or license plates for a limousine licensed by the City of Jersey City shall change, the limousine license holder shall provide the Division with written verification from the MVC, indicating the change of the license plate and/or change of registration prior to use.

(3) Whenever a holder decommissions a limousine and surrenders the license in accordance with state law, he/she shall report this fact to the Division and provide the Division with a MVC-issued letter of surrender.

C. *Passengers - no solicitation; receipt and discharge.*

(1) No operator shall solicit passengers on any City street, parking lot, taxi stand or other location where vehicles may enter or stand, nor shall any driver engage in "cruising" as defined in this chapter. Furthermore, no driver shall pick up any passenger in response to a signal, hail or gesture.

(2) Receipt and discharge of passengers on a sidewalk. Drivers shall not receive or discharge passengers in the roadway but shall pull up to the right-hand side of the roadway as nearly as possible or, in the absence of a sidewalk, to the extreme right-hand side of the road and there receive or discharge passengers, except upon one way streets, where passengers may be discharged at either the right- or left-hand sidewalk or side of the roadway, in the absence of a sidewalk.

D. *Standing in certain locations prohibited.* It shall be unlawful for any limousine to stand in any restricted area, including a taxi stand.

E. *Return to base of operation.* All limousines must be returned to their regular bases of operation after the discharging of passengers.

§ 307-41. Transportation Network Company vehicles: display of Trade Dress Beacon mandatory. [Added 4-24-2019 by Ord. No. 19-036]

A. Every transportation network company with drivers operating out of the City must provide those drivers with a consistent and distinctive trade dress beacon for use in the vehicles operated by those drivers when they are active on the Company's digital platform or when providing transportation network company service within the borders of the City. The trade dress beacon used by the transportation network company must be approved by the Division of Commerce before its use.

All trade dress beacons must be:

(1) Readable during daylight hours at a distance of 50 feet;

(2) No larger than eight inches wide by eight inches tall; and

(3) Illuminated in such a way that it is patently visible so as to be seen in darkness; and

Additionally, every transportation network company shall forward to the Division of Commerce, the name, contact information, license plate number(s) and physical address of each driver operating out of the City who has been issued a trade dress beacon.

B. Every transportation network company vehicle driver, both those operating out of the City, and those operating within the City, must affix an approved trade dress beacon to the vehicle's dashboard or windshield at all times when the transportation network company driver is active on the transportation network company digital platform or providing transportation network company service within the borders of the City. The beacon shall at all times be illuminated.

C. Every transportation network company shall immediately notify the Division of Commerce when a driver, operating out of the City, ceases to be employed by or work for the Company. All trade dress beacons must be surrendered to the transportation network company immediately after separation from company. Should the company not receive back the beacon furnished to a particular driver, it shall report in writing to the Division of Commerce, the driver's name, license plate number(s) and last known physical address. If a driver cannot return the beacon at the end of his or her employment with a transportation network company, the driver must provide to the Division of Commerce a signed and witnessed affidavit explaining why the beacon could not be returned.

§ 307-42. Enforceability. [Added 1-11-2012 by Ord. No. 11-156; amended 4-24-2019 by Ord. No. 19-036]

The provisions of this article may be enforced by State and local Police and by officers and agents of the Division of Commerce.

Editor's note—Former § 307-41. Renumbered by Ord. No. 19-036.

§ 307-43. Violation and penalties. [Added 1-11-2012 by Ord. No. 11-156; amended 4-24-2019 by Ord. No. 19-036]

Except as set forth in N.J.S.A. 48:16-22.a, providing a penalty of five hundred dollars ($500.00) against an owner of a limousine service who hires an unqualified driver, and any other penalty which may be adopted by N.J.S.A. 48:16-13—22.7 or by N.J.S.A. 39:5H-1 et seq., any person violating any of the provisions of this chapter shall, upon conviction, be punished as provided for in Chapter 1, General Provisions, § 1-25.

Editor's note—Former § 307-42. Renumbered by Ord. No. 19-036.

§ 307-44. Severability. [Added 1-11-2012 by Ord. No. 11-156; amended 4-24-2019 by Ord. No. 19-036]

The provisions of this article are declared to be severable and if any section, subsection, sentence, clause or phrase thereof, is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this article, but shall remain in effect; it being the legislative intent that this article shall stand notwithstanding the invalidity of any part.

Editor's note—Former § 307-43. Renumbered by Ord. No. 19-036.

ARTICLE III

Reserved*

***Editor's note—**See editor's note, Art. II. Former Art. III pertained to limousines, and derived from Ord. No. S-109, adopted August, 22, 1978; Ord. No. S-128, adopted September 19, 1978; and Ord. No. 00-154, adopted November 8, 2000.

Chapter 310

THEATERS

§ 310-1. License required.
§ 310-2. License fee; expiration.
§ 310-3. Violation and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 11-12-1980 by Ord. No. S-523. Amendments noted where applicable.]

GENERAL REFERENCES

Public assemblages — See Ch. 122.
Dance halls — See Ch. 142.
Fees and charges — See Ch. 160.
Zoning — See Ch. 345.

§ 310-1. License required.

A. Every owner or operator of a theater in the city shall obtain a license from the city to operate said theater. Each such license shall be for a term of one (1) month.

B. In the event that a building contains more than one (1) theater, a separate license shall be required for each separate theater in said building and a separate license fee shall be paid for each such theater.

§ 310-2. License fee; expiration. [Amended 6-14-1995 by Ord. No. 95-050; 2-11-1998 by Ord. No. 98-004]

The annual license fee for each license shall be as provided in Chapter 160, Fees and Charges. The license shall expire on December 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Licenses and Fees.

§ 310-3. Violation and penalties. [Amended 6-14-1995 by Ord. No. 95-050]

Any person operating a theater without a license shall upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

Chapter 313

TIRES, SALE OF

§ 313-1. Definitions.
§ 313-2. Permit required.
§ 313-3. Fee; plan of disposal; records.
§ 313-4. Time limit for compliance.
§ 313-5. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 5-27-1982 by Ord. No. MC-189. Amendments noted where applicable.]

GENERAL REFERENCES

Solid waste — See Ch. 287.

§ 313-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

PERSON — Any person, partnership, corporation, association or organization of any kind.

USED MOTOR VEHICLE TIRE — Any used tire previously used or designed for use on an automobile, truck, motorcycle, bicycle or any other trackless vehicle used to transport persons or property.

§ 313-2. Permit required.

A. No person may conduct within the City of Jersey City a business of selling or otherwise disposing of used motor vehicle tires without first obtaining a permit from the license issuing authority; nor may any person dispose of used motor vehicle tires incidental to any business conducted within the City of Jersey City without first obtaining a permit.

B. Persons subject to this Article include but are not limited to persons conducting the following businesses:

(1) Dealers in new and used motor vehicle tires, whether at wholesale or retail.

(2) Service stations and motor vehicle repair shops which buy, sell or repair new and used tires.[1]

(3) Junkyards and junk dealers.[2]

(4) Persons engaged in the business of repairing motor vehicles incidental to any other business.

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1 Editor's Note: See also Ch. 215, Motor Vehicle Repair Shops.

2 Editor's Note: See also Ch. 202, Junkyards.

(5) Persons engaged in the business of buying and selling used motor vehicles.[3]

§ 313-3. Fee; plan of disposal; records.

A. The annual fee for the permit required by this article shall be as provided in Chapter 160, Fees and Charges. All permits shall expire on October 31 of each year. The initial license fee following the change in expiration date will be subject to proration by the Division of Licenses and Fees. **[Amended 6-14-1995 by Ord. No. 95-050; 2-11-1998 by Ord. No. 98-004]**

B. Applications for a permit for the disposal of motor vehicle tires shall be filed with the license issuing authority. Applications shall be accompanied by a plan of disposal on a form furnished by the license issuing authority. The plan of disposal shall furnish the following information reasonably necessary to the enforcement of this Article;

(1) The name, address and owner of each location to be used for the disposal of used motor vehicle tires.

(2) A sworn and notarized statement that the applicant is engaged in the business of selling used motor vehicle tires and does not intend to dispose of used tires other than by sale.

C. No person may dispose of any used motor vehicle tires, other than in accordance with the plan of disposal filed with the license issuing authority, without first having filed an amendment to his or her application specifying the name, address and owner of each new or additional place of disposal. To the extent applicable, any such disposal shall be in accordance with the provisions of Chapter 287, Solid Waste. Each tire shall be marked with an identification number or other means of identifying the person disposing of the tire. The means of identification shall be furnished by the license issuing authority. The records of the license issuing authority shall be available for public inspection during regular business hours.

§ 313-4. Time limit for compliance.

Persons conducting any business subject to this article shall have 90 days from the effective date of this article to obtain the required permit.

§ 313-5. Violations and penalties. [Added 6-14-1995 by Ord. No. 95-050]

Any person, firm or corporation who shall violate any of the provisions of this chapter shall, upon conviction, be punishable as provided in Chapter 1, General Provisions, § 1-25.

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[3] **Editor's Note: See also Ch. 324, Used Car Dealers.**

Chapter 316

TOBACCO PRODUCTS AND ELECTRONIC SMOKING DEVICES*

§ 316-1. Definitions.
§ 316-2. Unlawful acts.
§ 316-3. Severability.
§ 316-4. Registration of smoke shops and tobacco stores.
§ 316-5. Violations and penalties.

Legislative findings

Smoking harms health. Tobacco use has significant and proven ill effects on health. There is a lack of scientific support for the idea of any kind of safe smoking. Smoking of all kinds, including by vaping, e-cigarettes, pipes, cigars, cigarettes, and smoking devices increases health risks. Furthermore, businesses offering such products for sale have a responsibility to follow laws regulating the sale and consumption of such products. Businesses advertising these products are throughout Jersey City. Some of these businesses have been associated with complaints, including the sale of illegal products, noise, and exposing workers and members of the public to smoke in violation of the New Jersey Smoke-Free Air Act.

§ 316-1. Definitions. [Added 12-4-2019 by Ord. No. 19-158; amended 4-27-2022 by Ord. No. 22-041; 6-14-2023 by Ord. No. 23-049]

As used in this chapter:

CHARACTERIZING FLAVOR — A distinguishable flavor, taste, or aroma, including, but not limited to, any fruit, candy, chocolate, vanilla, honey, cocoa, wintergreen, dessert, alcoholic beverage, herb or spice flavoring, that is imparted prior to or during consumption by an electronic smoking device, tobacco product, or other related product, including electronic liquid, or any smoke, aerosol, or vapor emanating from that device or product. An electronic smoking device, any cartridge, or other component of the device or other related product, including liquid nicotine, shall be deemed to have a characterizing flavor if the device, cartridge, component, or related product is advertised or marketed as having or producing any such distinguishable flavor, taste or aroma, or is distinguishable by an ordinary consumer either prior to, or during, its consumption. No tobacco product shall be determined to have a characterizing flavor solely because of the use of additives or flavorings or the provision of ingredient information.

ELECTRONIC SMOKING DEVICE — any electronic product that delivers nicotine or other substances to the person inhaling from the device, including, but not limited to, electronic cigarettes (e-cigarettes), electronic cigars, (e-cigars), electronic pipes (e-pipes), vape pens, or electronic hookahs (e-hookahs). "Electronic smoking devices" shall include any component or accessory of such a device, whether sold separately or not, including any filters and liquids used in such devices, but does not include any similar devices approved for sale by the U.S. Food and Drug Administration for medicinal purposes as those items are defined in the Federal Food, Drug and Cosmetic Act.

***Editor's note**—Ord. No. 19-158, adopted December 4, 2019, amended the Code by repealing former Ch. 316, §§ 316-1 and 316-2, and adding a new Ch. 316. Former Ch. 316 pertained to tobacco, and derived from Ord. No. McC-339, adopted June 17, 1991.

Cross reference—Cigarette vending machines, Ch. 329, Art. II.

FLAVORED SMOKING PRODUCT — any product marketed or otherwise intended for inhalation consumption by a person which has a Characterizing Flavor.

NEW JERSEY SMOKE-FREE AIR ACT — New Jersey Public Law 2005, Chapter 383, N.J.S.A. 26:3D-55 et seq.

PERSON — any natural person, partnership, firm, joint-stock company, corporation, or other legal entity, including an employee of a legal entity.

SMOKING — mean the heating, ignition, combustion, or vaporization of any tobacco product or smoking product.

SMOKING DEVICE — any device or product that ignites, combusts, or vaporizes a tobacco product or other substance for inhalation by direct contact with or close proximity to the smoking device, including, but not limited to, electronic cigarettes (e-cigarettes), electronic cigars, (e-cigars), electronic pipes (e-pipes), vape pens, or electronic hookahs (e- hookahs). "Smoking devices" shall include any component or accessory of such a device, whether sold separately or not, including any filters and liquids used in such devices, but does not include any similar devices approved for sale by the U.S. Food and Drug Administration for medicinal purposes as those items are defined in the Federal Food, Drug and Cosmetic Act, nor does it include any device whose principal use is to impart a scent to the atmosphere, without direct contact or close proximity to the device.

SMOKING PARAPHERNALIA — any paraphernalia, equipment, device, or instrument other than a lighter or matches that is primarily designed or manufactured for the smoking, chewing, absorbing, dissolving, inhaling, snorting, sniffing, or ingesting by any other means into the body of a tobacco product or smoking product as defined herein.

SMOKING PRODUCT — any product intended or marketed for inhalation consumption by means of smoking paraphernalia, except tobacco products as herein defined. The term "smoking product" does not include drugs, devices or combination products approved for sale by the U.S. Food and Drug Administration, as those terms are defined in the Federal Food. Drug and Cosmetic Act.

SMOKE SHOP — any premises that displays, sells, distributes, delivers, offers, furnishes, or markets smoking products or smoking paraphernalia and meets one or more of the following conditions: 1) has visible exterior signage that references smoking, or any tobacco product, smoking product, or smoking paraphernalia, 2) has visible interior signage that references smoking, or any tobacco product, smoking product, or smoking paraphernalia, or has displays of smoking products or smoking paraphernalia measuring a total of ten or more linear feet, or 3) has retail sales of smoking products or smoking paraphernalia of more than $1,000.00 in any calendar month of the year.

TOBACCO PARAPHERNALIA — any paraphernalia, equipment, device, or instrument other than a lighter or matches that is primarily designed or manufactured for the smoking, chewing, absorbing, dissolving, inhaling, snorting, sniffing, or ingesting by any other means into the body of tobacco, tobacco products, or other controlled substances as defined herein. Tobacco Paraphernalia shall include but is not limited to pipes, punctured metal bowls, bongs, water bongs, electric pipes, e-cigarettes, electronic smoking devices, vaporizers, and hookahs.

TOBACCO PRODUCT — any product containing, made of, or derived from tobacco or containing nicotine, that is intended for human consumption. The term "tobacco product" does not include drugs, devices or combination products approved for sale by the U.S. Food and Drug Administration, as those terms are defined in the Federal Food, Drug and Cosmetic Act.

TOBACCO STORE — any premises that displays, sells, distributes, delivers, offers, furnishes, or markets tobacco, tobacco products, other smoking products, or smoking paraphernalia; provided, however, that any grocery store, supermarket, convenience store or similar retail use that only sells conventional cigars, cigarettes, or tobacco as an ancillary sale shall not be defined as a smoke shop or tobacco store and shall not be subject to the requirements of this chapter.

§ 316-2. Unlawful acts. [Amended 6-14-2023 by Ord. No. 23-049]

It shall be unlawful for any person to:

A. Sell, or offer for sale, or distribute, any electronic smoking device which delivers a Flavored Smoking Product or sell, offer for sale, or distribute, any Flavored Smoking Product.

   There shall be a rebuttable presumption that a tobacco product is a Flavored Smoking Product if the manufacturer of said product, or any person, agent or employee acting in the course of their agency or employment with the manufacturer, has made any statement or claim or disseminated any advertisement or notice directed at consumers or to the general public regarding said product, which indicates that said tobacco product has or produces a taste or smell other than tobacco. Examples of such statement, claim, advertisement or notice shall include, but shall not be limited to images on the product's labeling or packaging which are used to convey that the product has or produces a taste or smell other than tobacco.

B. Sell or offer to sell any cigarette or Tobacco Product other than in the sealed, original packaging provided by the manufacturer nor distribute cigarettes or products containing tobacco or non-tobacco cigarette products for any commercial purpose other than at full retail price.

C. Permit or allow any smoking in violation of the New Jersey Smoke-Free Air Act.

§ 316-3. Severability. [Added 12-4-2019 by Ord. No. 19-158]

If any portion of this Chapter, or its application to any circumstances, is held invalid, the remaining portions shall be considered severable, and shall be given effect to the maximum extent possible.

§ 316-4. Registration of smoke shops and tobacco stores. [Added 4-27-2022 by Ord. No. 22-041; amended 6-14-2023 by Ord. No. 23-049]

A. Licensing Requirements; issuance; enforcement.

1. All Tobacco Stores and Smoke Shops shall obtain a license prior to engaging in retail distribution of Tobacco Products, Smoking Products, or Smoking Paraphernalia. Upon the issuance of a license, such use may thereafter be continued for a period not to exceed one year, at which time the Smoke Shop or Tobacco Store shall renew its license.

2. The Director of the Division of Commerce is empowered to issue a maximum of 45 total Smoke Shop and Tobacco Store licenses, and may suspend or revoke Smoke Shop and Tobacco Store licenses pursuant to this Chapter.

3. All Smoke Shops and Tobacco Stores currently in operation at the time this ordinance takes effect shall be required to submit an application for the appropriate Smoke Shop or Tobacco Store license within 60 days of the effective date of this chapter, and to obtain such license within 180 days of the effective date of this chapter.

4. Smoke Shops and Tobacco stores currently in operation at the time this ordinance takes effect whose application for a Smoke Shop or Tobacco Store license is received within 60 days of the effective date of this ordinance may receive a license in excess of the maximum license limit.

B. License application.

1. An applicant for Smoke Shop or Tobacco Store license shall file an application with the issuing authority upon forms provided by the license issuing authority.

2. The application shall be made under oath and shall contain the following:

a. The applicant's trade name and telephone number;

b. The address of the applicant's place of business and its mailing address, if different;

c. The names, residences and contact information of all persons financially interested in the business, and the nature and extent of this interest;

d. If the applicant is incorporated, the names, residences and citizenship of the officers, directors and/or stockholders;

e. A statement as to whether any person with a financial interest in the business has been convicted of any criminal or quasi-criminal offense, and if so, the date and place of such conviction and the nature of the offense; and

f. Any other information which the issuing authority finds reasonably necessary to enforce this Chapter.

C. Licenses shall not be issued prior to the issuance of all required approvals from the Division of Zoning and Construction Code Official to operate on the applicant's premises.

D. The Division of Commerce may consider the applicant's prior history of violations of this Chapter in its decision to grant or deny a license.

E. License fees; expiration

1. The annual license fee for a Smoke Shop or Tobacco Store shall be as provided by Chapter 160, Fees and Charges. Such license shall run for a period of one year, commencing August 1 and ending July 31 of the following year.

2. If at any time of application for a license less than six months of the current year have expired, the applicant shall be required to pay the full fee for the year. If six months or more shall have expired, the applicant shall be required to pay half of the annual fee.

F. The Department of Housing, Economic Development, and Commerce's Division of Commerce, the Department of Public Safety's Division of Quality of Life and Division of Police are individually and severally empowered to enforce the provisions of this article. The respective enforcing official may, in his or her discretion, provide a warning for a first-time offense.

§ 316-5. Violations and penalties. [Added 12-4-2019 by Ord. No. 19-158; amended 4-27-2022 by Ord. No. 22-041; 6-14-2023 by Ord. No. 23-049]

A. The penalty for violating this article shall be as provided in Chapter 1, General Provisions, § 1-25.

B. In addition to the penalties provided in Chapter 1, General Provisions, § 1-25, any license issued by the Division of Commerce may be revoked or suspended after hearing upon at least 10 days' notice served upon the licensee where:

1. The licensee violates any provision of this Chapter; or

2. Any Person issued a license has been convicted of a crime relating to the illegal sale of tobacco, cannabis, or adult use cannabinoids in connection with the licensed premises; or

3. Any licensee has violated any of the provisions in Chapter 84 of the City Code; or

4. Any licensee has been found responsible for any acts constituting a breach of the peace or a public nuisance in connection with the operation of the licensed premises; or

5. Where the Director finds the operation of the licensed premises detrimental to the health, safety and welfare of the people of the city.

C. Notice of a violation shall contain the specific provisions of State or Local law which have been violated and the specific acts which shall constitute the violation. A hearing shall be conducted following procedures established by the Division of Commerce.

D. Any applicable license to sell Tobacco Products, Smoking Products, or Smoking Paraphernalia may be suspended for a period of time not more than one year for violation of § 316-2 or § 316-4. A license may be revoked, and no future license issued, for a subsequent violation of § 316-2 or § 316-4.

E. Any license issued by the Department of Health and Human Services to a Person who violates any provision of this Chapter or has been found to be in violation of this Chapter may be revoked or suspended after hearing upon at least ten days' notice served upon the licensee. Said notice shall contain the specific provision of this Chapter which has been violated and the specifications which shall constitute the violation. A hearing shall be conducted following procedures established by the Department of Health and Human Services.

F. Any Person whose Tobacco Store or Smoke Shop license has been revoked shall not be qualified to receive a new license or have said license restored.

G. Any licensee whose license has been revoked or suspended shall have a right to appeal such revocation or suspension to a court of competent jurisdiction in accordance with the rules of the Courts of the State of New Jersey.

Editor's note—Ord. No. 22-041, adopted April 27, 2022, renumbered former § 316-4 as a new § 316-5.

Chapter 319

TOWERS AND TOWING*

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§ 319-17. Removal of vehicles parked or abandoned on private property; fees.
§ 319-18. Seized vehicles; impound operator requirements; disposition of unclaimed vehicles; fees for storage; release of vehicles.
§ 319-19. Surrender of unclaimed vehicles; violation for failure to remove vehicle.

§ 319-1. Definitions. [Amended 3-14-2012 by Ord. No. 12-017; 4-25-2018 by Ord. No. 18-030; 6-13-2018 by Ord. No. 18-059; 8-15-2018 by Ord. No. 18-082]

As used in this chapter, the following terms shall have the meanings indicated:

AUTHORIZED AGENT OF THE OWNER - The driver of a vehicle if such driver is not the owner or the agent of the owner or the next-of-kin of the owner.

CLASS A TOWER'S LICENSE (HEAVY DUTY) - Required to be on police rotation list for Class I, Class II, and Class III vehicles and/or to pick up vehicles abandoned on private property within the City of Jersey City and/or to operate a vehicle towing business within the City of Jersey City.

CLASS A TOWER'S LICENSE (LIGHT DUTY) - Required to be on police rotation list for Class I and Class II vehicles and/or to pick up vehicles abandoned on private property within the City of Jersey City and/or to operate a vehicle towing business within the City of Jersey City.

***History**—Adopted by the Council of the City of Jersey City May 13, 1981 by Ord. No. S-610; amended in its entirety September 13, 2000 by Ord. No. 00-117. Subsequent amendments noted where applicable.

Cross references—Fees and charges, Ch. 160; motor vehicle repair shops, Ch. 215; parking lots and public garages, Ch. 236; vehicles and traffic, Ch. 332.

CLASS B TOWER'S LICENSE (INCIDENTAL) - Required to operate a vehicle towing business within the City of Jersey City for towing operations that are incidental to another business which is located within the City of Jersey City, e.g., junkyard, car dealership and auto repair shop. This license does not permit a tower to be on the rotation list.

CLASS I VEHICLE - Any motor vehicle not exceeding 6,000 pounds' gross weight. Examples in this weight class include passenger cars, pickup trucks, vans, motorcycles and some sport utility vehicles.

CLASS II VEHICLE - Any motor vehicle having a gross weight exceeding 6,000 pounds up to a maximum of 14,000 pounds.

CLASS III VEHICLE - Any motor vehicle having a gross weight over 14,000 pounds.

CRUISING - Operating a tower to and from a public highway at a slow rate of speed or in any other fashion calculated for the obvious purpose of soliciting business along the highway.

DIRECTOR - The Director of the Department of Housing, Economic Development and Commerce.

DISABLED VEHICLE - Any vehicle disabled as a result of an accident or mechanical failure which must be towed away for safety or traffic reason; or a vehicle parked illegally or abandoned; or a vehicle parked or left unattended on private property without the consent of the owner or other person in control or possession of the property or parked or left unattended for a period in excess of that for which consent was given, except in the case of emergency or disablement of the vehicle where the owner or operator has arranged for the expeditious removal of the vehicle.

DISTRICT - A section of the City designated by geographic area and shown on the Vehicle Impound District Map on file in the Office of City Clerk.

DIVISION DIRECTOR - The Director of the Division of Commerce.

IMPOUND FACILITY - A facility operated by an impound operator to receive any vehicle towed to the facility by a tower at the request of the Division of Police or the Division of Parking Enforcement.

IMPOUND OPERATOR - A person, corporation, or other legal entity that operates an impound facility.

IMPOUND OPERATOR LICENSE - Required to operate an impound facility to receive any impound vehicle towed to it by any Class A licensees.

IMPOUND VEHICLE - A vehicle that the Division of Police or the Division of Parking Enforcement has directed a tower to remove from the public right-of-way and towed to the impound facility.

LICENSEE - A person who has been issued a tower license by this City and its employees or agents.

OPERATING A VEHICLE TOWING BUSINESS WITHIN THE CITY OF JERSEY CITY - Towing, transporting, conveying or moving a motor vehicle from one location within the City of Jersey City to another location within the City of Jersey City.

OWNER - The owner of a motor vehicle.

PRINCIPAL LICENSE - The initial tower license issued to any person.

SEIZED VEHICLES - Any vehicle impounded by the Department of Public Safety or Hudson County Prosecutor's office as contraband or evidence in a criminal proceeding. **[Amended 9-11-2013 by Ord. No. 13-081]**

SHORTWAVE RECEIVER - A radio receiver which is capable of operating on a frequency assigned by the Federal Communications Commission for fire, police, municipal or other governmental uses.

SOLICITING - Requesting or attempting to persuade an owner or someone on his or her behalf to give permission to a tower to remove, repair or store a motor vehicle, for a consideration, without a previous request from the owner or someone on his or her behalf.

SUPPLEMENTAL LICENSE - All additional licenses for additional towers issued to a person to whom a principal license was issued.

TOWER - A mechanically propelled light- and heavy-duty vehicle used to tow, transport, convey or move a motor vehicle from one place to another place.

§ 319-2. License required; issuance; application. [Amended 3-14-2012 by Ord. No. 12-017]

A. *Towing Licensees.* No person shall operate a vehicle towing business within the city unless such person has obtained a Class A or Class B Tower's license issued by the Division of Commerce except with permission of the Office of Emergency Management in the event of an emergency. **[Amended 2-23-11 by Ord. No. 11-025]**

B. Impound Operator License. No person shall operate a pound or storage area for use by any Class A Licensee unless such person has obtained an Impound Operator License issued by the Division of Commerce.

C. No such license shall be issued except on the approval of the Division Director or designee.

D. Each license issued shall be assigned a license number, and the same number shall be assigned to every subsequent renewal of that particular license.

E. Application for all licenses shall be made to the Division Director on a form to be supplied by the Division Director for that purpose.

§ 319-3. Storage requirements for Class A licensees. [Amended 3-14-2012 by Ord. No. 12-017]

A. Off-street storage spaces. No Class A towing license or renewal thereof shall be issued unless the licensee or prospective licensee shall have the following indoor or outdoor off-street vehicle storage spaces within the City of Jersey City:

(1) If Class I vehicles are to be stored therein, there shall be a minimum of 10 storage spaces for such Class I vehicles.

(2) If Class II or Class III vehicles are to be stored therein, there shall be a minimum of 15 spaces, 10 for Class I vehicles and five for Class II and III vehicles.

B. The storage area, if outdoors, shall consist of a lot with an eight-foot fence securing the storage area.

C. Upon the fence or building, as the case may be, there shall be displayed a sign containing the name, address and telephone number or numbers of the licensee. The telephone number or numbers of the licensee shall be a telephone number which the licensee can be contacted at all times.

D. Storage facilities shall conform to any and all provisions of this Code and all zoning and municipal land use regulations.

E. The licensee shall provide a person in attendance at such storage facility Monday through Saturday between the hours of 8:00 a.m. and 6:00 p.m. Such person must be authorized by the licensee to complete whatever transactions are necessary to release a vehicle to the owner or owner's representative in accordance with this chapter.

F. The provisions of this section shall apply to existing licensees as well as new licensees.

G. No licensee who stores vehicles on or in his or her own storage facilities shall store or park a vehicle on any street or location other than the storage facility set forth in the application of the licensee. The provisions of this subsection shall not apply to a licensee who does not store vehicles on or in his or her own storage facilities. However, in the case of a licensee who does not store vehicles on or in his or her own storage facility, it shall be a violation of this chapter for such a licensee to store a vehicle on any street or location other than the intended destination of the vehicle unless it is demonstrably impossible for the licensee to do otherwise. In such a situation, however, the licensee shall bring the vehicle to its intended destination as soon as possible thereafter.

H. No impounded vehicle shall be released unless authorized by the Director of Public Safety. **[Amended 9-11-2013 by Ord. No. 13-081]**

§ 319-4. Contents of all license application. [Amended 3-14-2012 by Ord. No. 12-017]

The application for any license hereunder shall be made out in triplicate and shall be verified under oath and shall be filed with the Division of Commerce and shall contain the following:

A. Name and address of the applicant and, if a natural person, the date of birth.

B. If a corporation, the state under which incorporated and date of incorporation; the address of the principal office; the names and addresses of its officers and registered agent.

C. If any other type of organization, the name of same and, if the organization or its name is recorded, in what office and when; the names and addresses of the principal officers and directors.

D. The place from which the tower will operate and the address and telephone number of such place. There shall also be set forth the telephone number by which the licensee can be contacted at all times.

E. A description of the tower's equipment, giving the serial and motor number of all such equipment.

F. Prior convictions of crime, if any, by the owner or by an officer or director of the applicant, giving the date and place of such conviction and the nature of the crime.

G. Any other information which the Division Director, with the approval of the Department Director, shall deem necessary and proper for the full protection of the public's interest.

H. Acknowledgment by Class A Towers that they will only tow a Disabled Vehicle to a licensed facility and seized vehicles to a City lot.

1. All information and data pertaining to the particular towing vehicles to be licensed as a commercial vehicle as is required by the New Jersey Division of Motor Vehicles in an application for the registration of that particular towing vehicle.

J. Names of all persons who will be driving the tow vehicles and copies of their driver's licenses, including commercial driver's license (CDL), if applicable.

§ 319-5. Investigation of applicant; prohibition against owners who are members of Department of Public Safety. [Amended 3-14-2012 by Ord. No. 12-017; 9-11-2013 by Ord. No. 13-081]

A. The Division Director shall cause an investigation to be made to ascertain if the applicant is a person of good moral character. As to Class A applicants, the Division will determine whether the applicants' vehicles are in such condition that they can be operated in a safe manner. As to Class B or Impound Operator applicants, the Division will determine whether the off-street storage complies with this chapter.

B. No sworn member of the Department of Public Safety shall be permitted to own or be a principal in any Jersey City business or operation licensed under this chapter.

§ 319-6. Class A principal licenses; supplemental licenses. [Amended 3-14-2012 by Ord. No. 12-017]

A. Principal Class A license.

(1) Only one principal license shall be issued to a person as defined herein.

(2) The principal license shall pertain to the initial towing vehicle of the licensee.

(3) The principal license shall bear a serial number which will be assigned to that licensee. Said serial number shall be issued on all subsequent renewals of that principal license by that particular licensee and shall not be assigned to any other licensee.

(4) The principal license shall contain on the face thereof all the information and data required by the New Jersey Division of Motor Vehicles on an application for a registration certificate issued by said state agency.

B. Supplemental Class A license.

(1) If the holder of a principal license intends to operate more than one tower, said licensee shall apply for a supplemental license for each additional tower which the licensee intends to operate.

(2) The fee for a supplemental license shall be the same as the fee for the principal license.

(3) The supplemental license shall bear on the face thereof the same serial number as the principal license followed by a dash and the number 1 for the first additional tower and the number 2 for the second additional tower, etc.

(4) The information to be placed on the supplemental license shall be the same information required on the principal license, except that the information shall pertain to the particular additional towing vehicle for which the supplemental license is issued.

C. The business of a Class A licensee shall have no connection, directly or indirectly, in any way, with the business of any other Class A licensee.

D. No Class A licensee shall share storage facilities, office space, telephone or any other business facility or equipment with any other Class A licensee.

E. No Class A licensee shall rent or lease any of the above facilities or equipment to any Class A licensee.

F. No Class A licensee shall utilize the storage, office space or telephone or other business facilities and equipment of any other licensee, nor shall a licensee permit or allow any other Class A licensee to utilize such facilities and equipment of the licensee.

G. For the purposes of the rotation system hereinafter provided, a licensee shall be entitled to only one place on the rotation list, no matter how many licensed towing vehicles the licensee shall operate.

H. Any violation of the requirements of this section shall be grounds for the suspension or revocation of the principal license and all supplemental licenses issued to the license.

§ 319-7. Payment accepted. [Added 3-14-2012 by Ord. No. 12-017]

As a condition of receiving any and all licenses under this chapter, a licensee shall at minimum arrange to accept payment by Visa, MasterCard, American Express, cash and money order from the owner or driver of a vehicle for any towing, impoundment and storage fees. Personal check or other methods of payment will be at the option of the licensee. If payment is made by personal check, the licensee may require identification in the form of a valid major credit card in the name of the owner or driver of the vehicle. In appropriate cases and for good cause shown, the Division Director may waive the requirement of payment acceptance by credit card as to any tower who provides evidence of an unsuccessful but good faith attempt to make such arrangement. The licensee must provide an itemized receipt, including the licensee's name, address and telephone number, listing all fees charged. The payment options available shall be posted in a conspicuous place near the place of payment and shall be on the rate schedule required to be given to the owner or driver of vehicles. The wording and placement of the payment options shall be approved by the Director.

§ 319-7.1. License fees; renewals. [Amended 3-14-2012 by Ord. No. 12-017]

A. The fee for a Class A, Class B and Impound Operator Licenses shall be as provided in Chapter 160, Fees and Charges, for each license and all renewals of such license. This fee shall apply regardless of when during the year the license is applied for and/or approved.

B. All licenses shall expire on February 28 of each year and may be renewed upon submission of applications therefor and payment of the fees for each license.

Editor's note—Former § 319-7. Renumbered by Ord. No. 12-017, adopted March 14, 2012.

§ 319-8. License transferability. [Amended 3-14-2012 by Ord. No. 12-017]

No license shall be transferred from one licensee to another licensee, except that in the case of a death of any individual licensee the Division Director, upon proper application therefor, shall transfer the license to the authorized beneficiary of the deceased licensee; provided, further, that a licensee may transfer the license of one towing vehicle to another towing vehicle owned by the licensee upon written request to the Division Director on forms provided for such purpose.

§ 319-9. Suspension or revocation of license.

A. In addition to any penalties set forth in this Chapter and this Code for the violation of any of the provisions of this Chapter, the Division Director, with the approval of the Department Director, may, after conducting a hearing on 10 days' notice to the licensee, suspend a license for a period of not more than one year or revoke same for the violation of any of the provisions of this Chapter or of a violation of any other provisions of this Code. **[Amended 3-14-2012 by Ord. No. 12-017]**

B. It shall be sufficient reason to suspend or revoke a license pursuant to Subsection A above for the following reasons (Note: These reasons are offered as examples only and are not to be considered as all-inclusive): **[Amended 9-11-2013 by Ord. No. 13-081]**

(1) Refusal to render towing and storage services when summoned by the police pursuant to this Chapter.

(2) Charging more than the prices established in this Chapter.

(3) Arriving at the scene of a disabled vehicle or a vehicle to be impounded without first having been summoned by the police in accordance with the authorized procedure of the Director of Public Safety.

(4) Using a shortwave radio receiver adjusted to receive police calls. It shall be prima facie proof of the use of such equipment if the licensee arrives at the scene of a disabled vehicle or a vehicle to be impounded without having been summoned by the police.

(5) For the violation of any other provision of this Chapter or of any other provision of this Code.

(6) For any violation of rotation list guidelines as promulgated by the Director of Public Safety.

§ 319-10. Information to be shown on equipment.

On each side of the tower, the following shall be legibly printed in letters not less than three inches in height:

A. Name, address and telephone number of the licensee.

B. The phrase "licensed tower of Jersey City."

C. The phrase "request schedule of maximum prices which can be charged for towing and storage."

§ 319-11. Schedule of maximum prices; disclosure. [Amended 3-14-2012 by Ord. No. 12-017; 4-25-2018 by Ord. No. 18-030; 6-13-2018 by Ord. No. 18-059; 8-15-2018 by Ord. No. 18-082]

A. Maximum fees to tow, transport, convey or move vehicles (Class A licensee). **[Amended 6-13-2022 by Ord. No. 22-060]**

(1) No licensee shall charge more than the following maximum fees to tow, transport, convey or otherwise move a vehicle from one location within the City to another location within the City:

(a) Class I vehicle: $150.00, inclusive of a $40.00 administrative fee.

(b) Class II vehicles: $200.00, inclusive of a $40.00 administrative fee.

(c) Class III vehicles: $250.00 per hour (minimum two hours), inclusive of a $40.00 administrative fee.

(2) In addition to the above charges, under certain circumstances official towers shall be allowed to charge for extra services that may be required above the basic towing charge. Any such services and charges shall be in accordance with the fee schedule below:

Service or Charge	Fee
Decoupling	$25.00 (up to 10,000 pounds) $100.00 (over 10,000 pounds)
Jump start	$25.00
Flat tire	$25.00
Lock out	$25.00
Road service	$25.00
Gasoline/fuel service	$25.00, in addition to gasoline/ fuel cost
Crash or window wrap	$75.00 flat fee
Site clean up	$25.00 per bag of absorbent and $25.00 per bag of debris removal
Winching (not applicable to the towing of parked automobiles or minor maneuvering of automobiles prior to tow)	$75.00 per hour for light tow vehicles (up to 10,000 pounds) $150.00 per hour for heavy tow vehicles (over 10,000 pounds)
Snow locked vehicles	$50.00 per tow additional charge
Rotator/crane recovery unit service	$1,200.00 per hour
Tarp	$125.00

Any fees charged for services or equipment not specified in this Section shall be in accordance with and not in excess of rates approved and utilized by the New Jersey State Police. Said fees shall conform with New Jersey State Police rates, which may be updated periodically. If an issue arises as to these charges, it shall be the burden of the tower to provide documentation in the form of photographs as to the particular circumstances requiring the additional charges, i.e., position of the vehicle.

(3) No charge shall be imposed on a rotation list tow for waiting time, clean-up, yard fee or any other service not specifically authorized under this Chapter.

(4) The above fees are chargeable once a vehicle is hooked up by the tower.

B. Maximum fees for vehicle storage (impound storage licensee).

(1) No licensee shall charge more than the following maximum fees per day, or portion thereof, for storage of a disabled vehicle towed away pursuant to this Chapter:

(a) Class I vehicles: $30.00 per day.

(b) Class II vehicles: $60.00 per day.

(c) Class III vehicles: $100.00 per day.

(2) No vehicle shall be released from storage by a licensee unless proper owner and vehicle identification are shown.

C. Maximum fees for vehicle storage of vehicles impounded at the City's request.

(1) At such time as the City awards and executes a contract for impound services pursuant to a request for proposals (RFP), no impound operator shall charge more than the following maximum fees per day, or portion thereof, for storage of a vehicle towed from the public right-of-way pursuant to the request of the City's Division of Police or the City's Division of Parking Enforcement:

(a) Class I, II, and III vehicles: $3.00 per day for the first 30 days of storage per vehicle.

(b) Class I, II, and III vehicles: $2.00 per day for the thirty-first day of storage and any day thereafter.

(c) Class I, II, and III vehicles: A limit of $400.00 per vehicle stored regardless of the duration of the storage, except that a waiver may be granted for good cause upon the request of the City by the Division of Local Government Services in the Department of Community Affairs.

(2) No vehicle shall be released from storage by an impound operator unless proper owner and vehicle identification are shown.

D. Each driver of a Class A licensee shall have a schedule of the maximum prices when responding to the scene of a disabled, abandoned or other vehicle.

E. Before performing any service pursuant to this chapter, the licensee shall furnish the owner or driver of the vehicle with a copy of the schedule of prices. In the event that the owner or driver is incapacitated, the licensee shall furnish such schedule to the owner's authorized agent as defined herein before such person pays for the services rendered.

F. Neither a towing nor a storage fee shall he charged to an owner of an impounded vehicle under the following conditions provided the owner reclaims the vehicle within seven days after receiving notice of the impoundment:

(1) The vehicle is impounded as the result of a civil emergency such as fire, a utility malfunction or emergency construction work:

(2) The vehicle is impounded as evidence in a criminal proceeding by a law enforcement agency and subsequently released from impoundment by the agency; or

(3) The vehicle is impounded by order of a law enforcement officer in support of an investigation by a law enforcement agency.

(4) The vehicle is impounded in error.

G. A motor vehicle, impounded for any of the offenses listed in paragraph a. of N.J.S.A. 39:3-40.3 and reclaimed by a lessor or the holder of a lien, shall be released without payment pursuant to paragraph b. of N.J.S.A. 39:3-40.3. The violator shall be liable for all outstanding costs, fines and penalties. The City shall have a lien against the property and income of the violator for the total amount of the outstanding costs, fines and penalties.

H. In accordance with N.J.S.A. 40:48-2.54, the Business Administrator shall establish a procedure for the receipt, investigation and disposition of complaints by motorists whose vehicle have been subject to non-consensual towing and/or impoundment. Such procedure shall provide for a written decision within 30 days after receiving the complaint and shall inform the complainant of the action, if any, to be taken by the City in response to the complaint.

§ 319-12. Pad of bills; receipts; required information.

A. All licensees when operating a tower, shall keep in their possession a pad of bills containing the owner's name and the address of his or her place of business and, before towing a vehicle, shall prepare a bill on their billhead form, in duplicate, the original of which shall be furnished to the owner of the disabled vehicle or such owner's authorized representative.

B. The bill shall contain the following information:

(1) The full name, address and business telephone number of the licensee.

(2) Full name and address of the person engaging the towing car.

(3) State registration number of the vehicle.

(4) The maximum rates which may be charged for towing and storage.

(5) Full name and address of the operator of tower.

(6) State registration number of tower.

(7) Tower's license number.

(8) Address of the place to where the vehicle will be towed and stored.

C. In the event the licensee is requested by the owner to furnish an estimate of the cost of repairs of damages sustained by the vehicle, said estimate shall be in writing, a copy of which is to be given to the owner of the vehicle, and such written estimate shall contain the following:

(1) An itemization of all the repairs in detail, with the cost of each item set forth therein.

(2) A statement that the items of repair are necessary and that the prices for said items are reasonable.

(3) The estimate shall be signed by the licensee and by the owner of the vehicle.

(4) No oral estimate shall be given.

(5) A statement as to who will make the repairs.

D. No licensee shall make any repairs or cause any other repairer to make such repairs to the vehicle without a written contract for same executed by the licensee and the owner of the vehicle or such

owner's authorized agent, who shall be given a copy thereof. The contract shall contain the same certificate signed by the licensee as is required for estimates furnished pursuant to Subsection C above. The date and time when the contract is executed shall be set forth on the contract.

E. Rescinding contract for repairs.

(1) The owner of a vehicle or such owner's authorized agent may rescind the contract for repairs within 48 hours after signing it by giving written notice of the rescission to the person authorized to make the repairs. The notice may be made by telegram or other written communication. Each contract shall clearly state on the face of the contract the right and procedure to rescind the contract in accordance with this subsection. However, this option to rescind shall apply only in the case of a vehicle towed from the rotation list.

(2) The option to rescind may be waived by the owner of the vehicle. However, the waiver shall be in writing on a separate form provided therefor and shall be executed by the owner. The waiver, when executed, shall thereafter be attached to the aforesaid contract for repairs.

F. All bills for services, estimates and contracts shall be in writing and shall conform to the provisions of this chapter. No bills, estimates or contracts shall be oral.

G. The licensee shall keep an accurate record of all rotation and private property towing. The record shall contain, at minimum, an itemized list of charges, as well as pickup and drop-off locations. The record shall be kept and maintained for at least 12 months and available for review by the Division of Commerce and the Department of Public Safety. **[Amended 9-11-2013 by Ord. No. 13-081]**

§ 319-13. Liability insurance requirements. [Amended 3-14-2012 by Ord. No. 12-017]

A. All applicants for a Class A Tower's license must first obtain a policy of insurance from a B plus rated company approved by the Department of Banking and Insurance and authorized to do business in the State of New Jersey, or a bond of indemnity, acceptable to the Division Director, with limits for bodily injury and property damage liability of at least $1,000,000 for each person and for each accident.

B. In addition to the liability insurance set forth in Subsection A above, the Impound Operator Licensee shall provide garagekeepers' liability insurance to insure against the loss or damage to any stored vehicle in the sum of at least $50,000.

C. All the insurance required in Subsections A and B above shall contain the following provisions in these exact words: "The City of Jersey City and its officers, agents and employees are additional insureds and are fully covered by the provisions of this policy of insurance." The provisions of this subsection shall not apply to any licensee who is not in the rotation system.

D. All insurance policies shall be approved by the Risk Manager for the City of Jersey City before any license shall be issued. Any change in the wording of the additional insureds' clause in Subsection C above may be approved by the Risk Manager, provided that any such changes shall not result in any less protection of the city than is afforded to the licensee.

§ 319-14. Inspections; unlawful acts. [Amended 9-11-2013 by Ord. No. 13-081]

A. Vehicles shall be kept in a safe condition and conform to requirements which may be promulgated by the Division Director with the approval of the Department Director.

B. The Division Director shall have the power to cause an examination and inspection to be made of the vehicle for which the license is sought, and no license shall be issued unless the vehicle is in a thoroughly safe condition.

C. No licensee shall turn or reverse the vehicle, except at intersections where such turns are permissible.

D. No licensee shall engage in cruising.

E. No licensee shall invite or permit loitering within or near his or her tower.

F. No licensee shall seek employment by repeatedly and persistently driving the tower to and fro in a short space on any highway or otherwise interfering with the proper and orderly progress of traffic along the highways.

G. No licensee shall solicit or attempt to divert prospective patrons of another tower.

H. No licensee shall solicit or divert prospective patrons of a given garage in the city to any other garage.

1. No licensee shall tow away a Disabled Vehicle to a place other than one designated by the owner or driver of the vehicle or to a licensed Impound Operator facility. In the event that such owner or driver of the vehicle is incapacitated by reason of injuries or otherwise, and the owner's authorized agent is not immediately available, the licensee shall tow the vehicle to a licensed facility designated on the licensee's application for a tower's license.

J. No operator of a tower shall solicit, demand or receive from any person any pay, commission or emolument whatever, except the proper fee for towing and storage of the vehicle in accordance with the schedule of maximum charges provided herein.

K. Licensees shall promptly report all changes of address to the Division Director.

L. No licensee shall respond to the scene of a disabled vehicle unless duly summoned by the police in accordance with the procedure established by the Director of Public Safety.

M. No licensee shall remove a motor vehicle involved in an accident in which a person has been killed or seriously injured unless such vehicle has been released by a duly authorized member of the Department of Public Safety.

N. No licensee shall refuse to render towing and storage services to a vehicle when duly summoned by the police, pursuant to the procedure established by the Director of Public Safety, and no licensee shall refuse to remove residual debris from the scene of an accident pursuant to a police directive made in the interest of public safety.

O. No licensee on the rotation system shall not refuse to render towing services if the owner of a disabled motor vehicle is able to pay the fee prescribed in the schedule of prices filed by the tower.

P. No person holding a license issued pursuant to this chapter shall use a shortwave radio receiver capable of operating on a frequency assigned by the Federal Communications Commission for fire, police, municipal or other government use.

Q. Upon payment to the licensee of the towing charges and the storage charges, if any, the licensee shall forthwith release the vehicle to the owner or the owner's authorized agent or next of kin as the case may be.

R. No licensee may open, remove, damage or tamper with any locking device placed on any unlawfully parked motor vehicle.

S. Any violation of this section shall be grounds for suspension or revocation after hearing pursuant to the procedures set forth in this chapter.

§ 319-15. Rotating system of summoning towers. [Amended 3-14-2012 by Ord. No. 12-017; 9-11-2013 by Ord. No. 13-081]

A. The Director of Public Safety is hereby authorized and directed to establish a just and equitable rotating system of licensees to be summoned: 1) to tow away and store a disabled vehicle, and 2) if there is more than one Impound Operator license issued, Impound Operator licensees. The rotating

system shall be established so as to give as nearly as is practicable an equal share of the towing business to each licensee and to furnish protection to the owners of disabled vehicles. There shall be a separate list for Class I and II Vehicles and Class III vehicles with specific equipment requirements for each list to be promulgated by the Director of Public Safety; however, at minimum, a tower on the light-duty list shall have two tow trucks and a flatbed, and a tower on the heavy-duty list shall have two heavy-duty tow trucks. The Director of Public Safety shall be guided by the following minimum requirements for the rotating system:

(1) Only a Class A licensee may be in the rotation system and shall not have more than one position on the rotating list regardless of how many supplemental licenses the licensee shall hold.

(2) A licensee tower on the rotating list shall not be removed therefrom before he or she is accorded an opportunity to be heard after receiving written charges preferred against the licensee. No licensee shall lose his or her turn in the rotating system until the licensee is accorded this opportunity to be heard; provided, however, that the Director of Public Safety may immediately suspend any licensee if it is determined to be in the best interests of the citizens or the rotation system. A licensee may request in writing to be removed from the rotating list. When so removed, the licensee shall not be eligible to be placed on the rotating list for a period of one year from the date removed.

(3) Each licensee in the rotating system shall be given equal time and opportunity as all other licensees in the rotating system, and there shall be no discrimination for any reason whatsoever.

(4) No police officer or other official of the city shall have any authority to remove or skip over any licensee in the rotating system. If any licensee commits any violation of the motor vehicle laws of the State of New Jersey, the proper action taken against such licensee shall be by way of summons for the motor vehicle violation. If the infraction involves a violation of this chapter or any provision of the Jersey City Code, charges specifying the offense shall be presented to the Director of Public Safety, who shall thereupon cause a hearing to be held in accordance with the provisions of this chapter.

(5) Licensees shall respond to the scene within twenty (20) minutes of a request for service by the Department of Public Safety. If a tower does not respond within the allowed time and another tower is called to respond, the first tower may be suspended for up to three (3) days or for repeat offenders removed from the list for up to a year at the discretion of the Director of Public Safety, upon notice and an opportunity to be heard.

B. Whenever it is necessary to have a disabled vehicle towed away, the police who arrive at the scene shall forthwith notify police headquarters to summon a licensed tower from the rotating list in accordance with the procedure established by the Director of the Department of Public Safety, except when an emergency has been declared by the Office of Emergency Management. **[Amended 2-23-2011 by Ord. No. 11-025]**

C. The owner or driver of a disabled vehicle shall use the services of the licensed tower summoned by the police unless the owner is a member of an organization which supplies towing services for its members and the owner or driver requests the use of such organization's tower. If the request is made to the

police at the scene, the police shall forthwith notify police headquarters to call the organization and relay the request and all necessary information supplied by the owner's membership card to the organization.

D. In the event that the tower summoned by the police is delayed and it is necessary to remove the disabled vehicle out of the line of traffic or for other safety reasons, then the police emergency tower may remove the vehicle to the nearest point out of the way of the free flow of traffic allowing the vehicle to remain there until towed away by the tower summoned by the police.

E. In the event that a disabled vehicle is towed away and stored by a licensee pursuant to this chapter and the owner of the vehicle or such owner's agent or next of kin does not authorize a further disposition of the vehicle within three days after it is towed to the storage place, the licensee may, upon giving written notice by certified mail to the owner or the owner's authorized agent, pursue any and all remedies he or she may have in law for the disposition of the vehicle and the collection of the fees.

F. In the event that the owner or driver of the disabled vehicle is incapacitated by reason of injuries or otherwise and is unable to authorize the further disposition of the vehicle after it is towed away by the licensee, then the licensee shall forthwith ascertain from the police the name and address of the owner's agent or next of kin and contact him or her to ascertain the further disposition of the vehicle. The licensee shall also send to said agent or next of kin the bill for services and a copy of the schedule of prices as is required by this chapter.

§ 319-16. Violations and penalties. [Amended 3-14-2012 by Ord. No. 12-017]

In addition to any license suspensions or terminations, any person violating any provision of this chapter shall, upon conviction, also be punishable as provided in Chapter 1, General Provisions, § 1-25, of this Code.

§ 319-17. Removal of vehicles parked or abandoned on private property; fees. [Amended 3-14-2012 by Ord. No. 12-017]

A. Pursuant to N.J.S.A. 39:4-56.6, the owner or other person in control or possession of the private property on which a vehicle is parked or left unattended as described in the definition of "Disabled Vehicle" may remove and store or hire another person to remove and store the vehicle. It shall be the obligation of the owner of the vehicle to pay the costs for the removal and storage before he shall be entitled to recover the possession of the vehicle. If the owner of the vehicle refuses to pay such costs or fails to make a claim for the return of the vehicle within 90 days after such removal, the vehicle may be sold at public auction in accordance with the provisions of N.J.S.A. 2A:44-20 et seq.

B. Whenever a licensee, pursuant to N.J.S.A. 39:4-56.6, removes a vehicle parked or left unattended on private property as described within the definition of "Disabled Vehicle", he shall, within one hour, report to the police district from within which the vehicle was removed the following information:

(1) License plate number and description of vehicle removed.

(2) Location where the vehicle is stored.

(3) Location from which the vehicle was removed.

(4) Identity of the person claiming to own, control or be in possession of the private property from which the vehicle was removed.

C. The maximum charges for towing and storage of vehicles so removed from private property shall be the same as set forth herein for vehicles towed or stored from within the City under § 319-11.

§ 319-18. Seized vehicles; impound operator requirements; disposition of unclaimed vehicles; fees for storage; release of vehicles. [Added 3-14-2012 by Ord. No. 12-017; Amended 9-11-2013 by Ord. No. 13-081; 4-25-2018 by Ord. No. 18-030; 6-13-2018 by Ord. No. 18-059; 8-15-2018 by Ord. No. 18-082]

A. Licensed impound operators must maintain, either within a District or no farther than three miles from the boundary lines of a District, a single site or location with a minimum of 75 storage spaces for Class I vehicles, five spaces for Class II vehicles, and five spaces for Class III vehicles. Impound operators shall use the auto impound tracking computer software program prescribed by the City and be governed by the City's usage policies and procedures for such software.

B. Pursuant to N.J.S.A. 39:10A-1, vehicles left unclaimed may be sold at public auction after 30 business days but shall be sold by the City no later than 90 business days, provided that the Director of Public Safety may withhold from public auction up to three vehicles a month for police purposes.

C. All impound operator licensees shall maintain (and provide access or copies to the City) adequate records relating to the processing of tows, impounds, releases (including storage fees and other receipts). Impound operators shall also provide quarterly financial statements prepared in accordance with generally accepted accounting principles summarizing fees and income collected. When possible, all viable personal property from the impounded vehicles must be removed from the vehicle by the owner prior to being towed to the tow pound. Operators will provide access for release of vehicles to the public between the hours of 8:00 a.m. to 6:00 p.m., Monday through Saturday.

D. Upon receipt of an impounded vehicle, the impound operator shall pay the tower $90.00 for a Class I vehicle and $140.00 for a Class II vehicle, and for a Class III vehicle, a minimum of $390.00 no later than 30 days of receipt of the vehicle. The tower shall not receive any additional payment. Upon payment of the fees, as set forth herein and in Section 319-11.B of this Chapter by the owner or person entitled to claim the vehicle, the City shall receive an administrative fee of $40.00 and the impound operator a fee of $20.00; provided, however, that no administrative fee shall be payable to the City or to the Impound Operator unless the impoundment is the result of a motor vehicle accident and the Impound Operator was required to make more than three trips to the vehicle. For a vehicle that is not claimed by the owner or person entitled to claim the vehicle, the City shall sell the vehicle at public auction pursuant to N.J.S.A. 39:10A-1 et seq. The sale proceeds shall be used to reimburse the impound operator for the paving the tower and to pay the impound operator's storage fee. The storage fee shall be calculated using the rates set forth in Section 319-11.C of this Chapter. If the auction proceeds are not sufficient to pay these fees, the City shall transfer the vehicle to the Impound Operator.

E. Seized Vehicles shall be towed to a City-owned facility or as determined by the Director of Public Safety. Upon release of such vehicles by the appropriate authority, the City shall sell any unclaimed vehicles at public auction pursuant to N.J.S.A 39:10A-1.

§ 319-19. Surrender of unclaimed vehicles; violation for failure to remove vehicle. [Added 3-14-2012 by Ord. No. 12-017]

Vehicle owners who wish not to claim and or remove their vehicle from an impound storage area must sign a certificate of ownership, which transfers ownership to the City of Jersey City. Failure to do so may result in the owner being cited with a summons for abandonment of motor vehicle pursuant to N.J.S.A. 39:4-56.5 which will subject the owner, for the first offense, to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), and his license or driving privilege may be suspended of revoked for not more than two (2) years. For any subsequent violation, the owner will be subject to a fine of not less than five hundred dollars ($500.00) nor more than one thousand dollars ($1,000.00), and his license or driving privilege may be suspended or revoked for not more than five (5) years.

Chapter 321

TREES*

§ 321-1. Definitions.
§ 321-2. Purpose.
§ 321-3. Prohibited activities.
§ 321-4. Acts requiring a permit.
§ 321-5. Planting trees.
§ 321-6. Removal of City trees.
§ 321-6.01 Removal of Private trees.
§ 321-6.1. Notice of removal of City trees.
§ 321-7. Permit application fee.
§ 321-8. Protection from wires, cables and electrical current.
§ 321-8.1. Protection of trees near excavation or construction sites.
§ 321-9. Violations and penalties.
§ 321-10. Forestry standards adopted.

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§ 321-1. Definitions. [Added 12-13-2017 by Ord. No. 17-169; amended 4-9-2025 by Ord. No. 25-033]

For the purpose of this Chapter, the following terms shall have the meaning given herein:

CANOPY — the extent of the outer layer of leaves of an individual tree formed by the leader together with the scaffold and lateral branches (Figure 1).

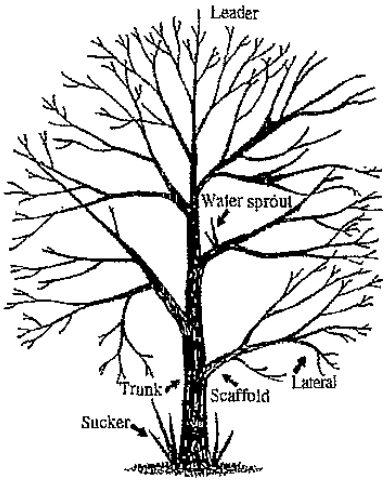

Figure 1

CITY TREE — (a) any living, self-supporting woody perennial plant that has a trunk diameter of at least two inches or more when measured at a point six inches above ground level and which normally attains an

***Editor's note—**Ord. No. 17-169, amended the Code by repealing former ch. 321, §§ 321-1—321-8, and adding a new ch. 321. Former ch. 321 pertained to similar subject matter, and derived from Ord. No. Mc-14, adopted September 8, 1981; Ord. No. McC-98, adopted January 24, 1990; Ord. No. 01-036, adopted April 14, 2001, and Ord. No. 01-082, adopted June 27, 2001.

Cross references—Shade Tree Committee, Ch. 10; Posting of Advertising Materials, Ch. 81; Trees in Parks and Recreation Areas, Ch. 239; Property Maintenance, Ch. 254; Streets and Sidewalks, Ch. 296.

overall height of at least ten feet at maturity, usually with one main stem or trunk and several branches; and (b) planted in a public right-of-way, in a City park or on property owned by the City. The term "City tree" does not include trees on private property.

CRITICAL ROOT RADIUS — a line measured in feet from the trunk of a tree to 1 times the DBH for younger, healthy or tolerant species and 1.5 times the DBH for older, unhealthy, or sensitive species.

CROWN — the top part of the canopy (Figure 1).

DBH — "Diameter at breast height", which is a standard method of expressing the diameter of the trunk or bole of a standing tree, measured approximately 4.5 ft above the ground.

DIVISION — the Division of Parks and Forestry.

DRIP LINE means the area defined by the outermost circumference of a tree canopy.

JERSEY CITY FORESTRY STANDARDS means the document promulgated by the Division of Parks and Forestry detailing the City's standards for the planting, maintenance and removal of City trees as defined herein. The Jersey City Forestry Standards shall be written and updated in consultation with the Shade Tree Committee and shall be subject to adoption by resolution from the Municipal Council. **[Amended 1-13-2021 by Ord. No. 20-111]**

LATERAL BRANCHES means the secondary branches that emerge from scaffold branches (Figure 1).

LEADER means the vertical stem at the top of the trunk (Figure 1).

MUNICIPAL FORESTER means the employee of the Department of Public Works responsible for overseeing the planting, maintenance and removal of all City trees and who is responsible for promulgating the Jersey City Forestry Standards as well as the list of City tree valuations published annually. **[Amended 7-12-2023 by Ord. No. 23-066]**

PRIVATE TREE — (a) any living, self-supporting woody perennial plant that has a trunk diameter of at least two inches or more when measured at a point six inches above ground level and which normally attains an overall height of at least ten feet at maturity, usually with one main stem or trunk and several branches; and (b) located on private property not owned or controlled by the City.

PROTECTED ROOT ZONE — the area around a tree equal to the circle of the critical root radius.

PRUNE — cutting or removing the branching structure of a tree in the crown, trunk or root areas in accordance with the ANSI-A300 Tree Care Standards 2023.

PUBLIC RIGHTS-OF-WAY means all land in the City of Jersey City dedicated or expressly reserved for the use of vehicular or pedestrian traffic and/or utilities.

SCAFFOLD BRANCHES means the primary limbs that form a tree's canopy (Figure 1).

SHADE TREE COMMITTEE means the committee established pursuant to Chapter 10 of this Code. **[Added 7-17-2019 by Ord. No. 19-082]**

TOPPING means cutting or removing the leader in such a way as to disfigure the canopy resulting in stunted or abnormal growth.

TREE PIT means the hole in the ground in which a tree is planted.
[Added 7-12-2023 by Ord. No. 23-066]

TRUNK means the stem and main wooden axis of a tree (Figure 1).

§ 321-2. Purpose. [Added 12-13-2017 by Ord. No. 17-169; amended 4-9-2025 by Ord. No. 25-033]

The Municipal Council finds that the preservation of existing City trees and Private trees, and the planting of new City trees and Private trees, promotes the health and welfare of the public in the following ways:

1. Conserving energy by providing shade, lowering urban air temperatures, and acting as a wind-break in winter;
2. Protecting pedestrians from rain, wind, sun and heat;
3. Improving air quality by producing oxygen, absorbing carbon dioxide and particulate matter;
4. Reducing noise pollution;
5. Providing habitat for birds and other wildlife;
6. Reducing storm runoff and the potential for soil erosion;
7. Increasing real estate property values; and
8. Enhancing the City's aesthetic qualities and thus making it more attractive to residents, visitors and businesses.

§ 321-3. Prohibited activities. [Added 12-13-2017 by Ord. No. 17-169; amended 1-13-2021 by Ord. No. 20-111; 7-12-2023 by Ord. No. 23-066; 4-9-2025 by Ord. No. 25-033]

No person shall do or cause to be done any of the following to a City tree as defined herein:

1. Hitch or fasten any animal, bicycle or vehicle to any guard or support attached to the City tree;
2. Permit any injurious substance, whether gaseous, liquid or solid, to come into contact with the trunk or roots of any City tree;
3. Cover or obstruct any open space provided around the base of a City tree;
4. Pile any building material or make any mortar or cement within six feet of a City tree;
5. Affix a sign to a City tree through use of glue, nails, staples, ropes, cables, wires, or other material that may cause punctures or girdling; All temporary "no parking" signs affixed to a tree, must be removed upon expiration of the no parking time period by the entity requesting that restriction.

6. No person shall place within a tree pit any type of free-standing sign of any kind including feather signs, sandwich boards (a-frame signs, chalkboard signs) or any other similar device or structure.

7. Pile garbage bags, recycling and paper bins within tree pit is also prohibited.

8. Cut or remove any of a City tree's canopy.

9. Fill or close a tree pit.

10. Damage a City or Private tree, knowingly or unknowingly, by improperly pruning, cutting, ripping or breaking any part of the roots, trunk or branches.

11. Drive into a City tree with a vehicle.

§ 321-4. Acts requiring a permit. [Added 12-13-2017 by Ord. No. 17-169]

A. No person shall do or cause to be done any of the following without a permit from the Division of Forestry: **[Amended 1-13-2021 by Ord. No. 20-111; 7-12-2023 by Ord. No. 23-066; 4-9-2025 by Ord. No. 25-033]**

1. Plant a tree in the public rights-of-way;

2. Remove any City tree or Private tree;

3. Spray or coat a City tree with chemicals;

4. Climb a City tree;

5. Cut, trim, prune, break, saw, or disturb any portion of any City tree;

6. Change the size or depth of a City tree bed or place any guard or structure around a City tree bed;

7. Fasten any rope, guy wire, electric attachments, sign or any other device to a City tree or to any guard about the City tree;

8. Remove any structure or device installed by the City to support or protect a City tree;

9. Change the grade of the soil or composition of the soil within the limits of the tree bed of any City tree;

10. Install an electrified wire or decorative lighting above, around or through any City tree;

11. Conduct any activity within the Protected Root Zone of a City tree such as construction, demolition, replacement of a sidewalk or driveway, erecting scaffolding, repairing underground utilities or services, and installation of infrastructure such as a street light.

12. Fill or close a tree pit.

13. Prune, cut or saw a City tree;

B. A separate permit shall be required for each tree affected by any of the foregoing acts. **[Added 12-13-2017 by Ord. No. 17-169]**

§ 321-5. Planting trees. [Added 12-13-2017 by Ord. No. 17-169; amended 1-13-2021 by Ord. No. 20-111; 4-9-2025 by Ord. No. 25-033]

A property owner may plant a tree in the public rights-of-way abutting his or her property by obtaining a permit from the Division of Forestry subject to the following conditions:

1. The species shall be selected from the list of recommended trees in the Jersey City Forestry Standards and approved by the Division of Forestry and be planted and maintained according to the Jersey City Forestry Standards;

    a. Should the Municipal Forester find a species planted that was not approved by a Municipal Forester and is such that it is inappropriate for the location, such as a large maturing species under powerlines, or a species not on the approved planting list, etc. then the tree shall be removed and replaced, to the satisfaction of the Municipal Forester, by the party that planted the improper tree initially.

2. The owner shall carry liability insurance for any damage to property or injury to person by the planting of such City trees;

3. The owner shall maintain the sidewalk in accordance with Chapter 254 (Property Maintenance) and the tree-bed surrounding the tree in accordance with the Jersey City Forestry Standards;

4. A property owner to whom a permit is issued under this section may engage a private landscaper to plant a City tree or request that the City plant the tree on behalf of, and as an agent for, the owner, after making the required contribution to the City tree fund.

§ 321-6. Removal of City trees. [Added 12-13-2017 by Ord. No. 17-169; amended 1-13-2021 by Ord. No. 20-111; 4-9-2025 by Ord. No. 25-033]

A. An adjoining property owner may be granted a permit for the removal of a City tree abutting his or her property in accordance with the Jersey City Forestry Standards under the following conditions:

1. The City tree poses a danger to persons or property which cannot be remedied except by removal; or

2. The removal of the City tree is required for the development of the property or the improvement of the sidewalk.

    a. All other means prior to removal, including possible redesign of development, the elimination of unnecessary design elements such as a driveway, must be attempted before removal is permitted.

B. An owner granted a permit to remove a City tree under subsection A.2 shall make a payment to the City equivalent to the value of the tree, as determined by the Division of Forestry in conjunction with

the Shade Tree Committee in accordance with the Jersey City Forestry Standards. **[Amended 7-17-2019 by Ord. No. 19-082; 7-12-2023 by Ord. No. 23-066]**

C. If the Municipal Forrester determines that a tree requires removal, the City shall replace it with a tree from the list of recommended trees in the Jersey City Forestry Standards at the site of the removal or nearest plantable location per the Jersey City Forestry Standards and with the approval of a City arborist.

D. Nothing in this section shall be construed to limit the power of the Division to move or require the removal of any City tree or part thereof for any purpose consistent with Section 321-2 and the Jersey City Forestry Standards.

§ 321-6.01 Removal of Private trees. [Added 4-9-2025 by Ord. No. 25-033]

A. A property owner may be granted a permit for the removal of a Private tree on his or her property in accordance with the Jersey City Forestry Standards under the following conditions:

1. The tree poses a danger to persons or property which cannot be remedied except by removal; or

2. The removal of the tree is required for the development of the property.

B. An owner granted a permit to remove a Private tree under subsection A.2 shall:

1. plant a similar tree, if possible, on the property from which it was removed in consultation with the Municipal Forester; or

2. make a payment to the City equivalent to the value of the tree, as determined by the Municipal Forester in conjunction with the Shade Tree Committee in accordance with the Jersey City Forestry Standards.

§ 321-6.1. Notice of removal of City trees. [Amended 4-9-2025 by Ord. No. 25-033]

A. Pursuant to the requirements as written and defined in the Jersey City Forestry Standards, at least ten days before the removal of any two or more City trees, or the removal of any Private tree, by a property owner or permitted party, notice shall be given to the owners of all adjoining real property as shown on the current tax duplicates in all directions of the tree to be removed. Notice shall be given by (1) serving a copy thereof on the property owner as shown on the said current tax duplicate, or his agent in charge of the property, or (2) mailing a copy thereof by certified mail to the property owner at his address as shown on the current tax duplicate.

B. A copy of the notice provided to the property owners pursuant to § 321-6.1.A shall be filed with the Division of Forestry.

C. Notice shall not be required for the emergency removal of any tree dangerous to public safety or if the condition of the tree warrants removal after inspection by the Division of Forestry. **[Added 1-13-2021 by Ord. No. 20-111]**

§ 321-7. Permit application fee. [Added 12-13-2017 by Ord. No. 17-169]

Application for the permit required under Section 321-4 shall be made in writing to the Division of Parks and Forestry, on forms to be supplied by the Division, accompanied by the fee provided in Chapter 160 (Fees and Charges).

§ 321-8. Protection from wires, cables and electrical current. [Added 12-13-2017 by Ord. No. 17-169; amended 4-9-2025 by Ord. No. 25-033]

Every person or entity having control over any wire for the transmission of an electric current along a public rights-of-way shall at all times guard all City trees through which or near which such wire passes against any injury from the wire or cable or from the electric current carried by it. The device or means used shall in every case by subject to approval by the Division of Forestry.

§ 321-8.1. Protection of trees near excavation or construction sites. [Added 7-12-2023 by Ord. No. 23-066; amended 4-9-2025 by Ord. No. 25-033]

All trees on any street or other publicly owned property within the Protected Root Zone of any excavation or construction of any building, structure, or street work shall be guarded with a temporary wooden tree guard not less than four feet high. At no time shall the tree guard extend beyond the sidewalk into the street, nor shall the tree guard cause a hardship for those using the sidewalk.

When construction, excavation, and/or material deposits result in the destruction and/or removal of a street tree, the person or utility company responsible for that damage shall replace the street tree with either a tree or trees of equivalent dollar value in the vicinity of the removed street tree subject to the approval of the Municipal Forester.

§ 321-9. Violations and penalties. [Added 12-13-2017 by Ord. No. 17-169; amended 9-23-2020 by Ord. No. 20-074; 1-13-2021 by Ord. No. 20-111; 4-9-2025 by Ord. No. 25-033]

The penalties provided under Section 1-25 shall apply to violations of this chapter; provided, however, that the penalty for a violation of this Chapter shall be $100.00 to $2,000.00 as determined by the Jersey City Municipal Court. Additionally, the City may pursue all legal remedies in the Hudson County Superior Court for any trees that are removed, destroyed or damaged in violation of this Chapter. All payments for violations and restitution per Chapter 321 shall be deposited in a City tree replacement reserve fund.

§ 321-10. Forestry standards adopted. [Added 3-28-2018 by Ord. No. 18-019; amended 1-13-2021 by Ord. No. 20-111; 7-12-2023 by Ord. No. 23-066]

The document entitled Jersey City Forestry Standards is hereby adopted and all the provisions contained therein are hereby incorporated into the Municipal Code by reference and also are on file in the Office of the City Clerk. All sections of this chapter shall be interpreted and executed in accordance with the Jersey City Forestry Standards as amended and adopted by the Municipal Council. The Jersey City Forestry standards shall be written and amended in consultation with the Jersey City Shade Tree Committee and shall be subject to approval by a resolution passed by the Municipal Council.

Chapter 323

URBAN ENTERPRISE ZONE

§ 323-1. Zone established.

§ 323-2. Additions to zone area.

[HISTORY: Adopted by the Council of the City of Jersey City 12-23-1985 as Ord. No. C-133. Amendments noted where applicable.]

GENERAL REFERENCES

Municipal authorities — See Ch. 12.
Redevelopment agency — See Ch. 66.
Special improvement districts — See Ch. 69.
Zoning — See Ch. 345.

§ 323-1. Zone established.

The governing body of the City of Jersey City does hereby accept the designation of the Urban Enterprise Zone Authority of the area described in its zone application and the designation of the zone development plan formulated and approved in the aforesaid resolution.

§ 323-2. Additions to zone area. [Added 7-14-1987 by Ord. No. C-525]

The governing body of the City of Jersey City does hereby accept the revised plans of October 1, 1986, and June 15, 1987, of the New Jersey Zone Authority designating the area described in the application and Appendix A, a copy of which is on file in the office of the City Clerk, as part of the Jersey City Urban Enterprise Zone.

Chapter 324

USED CAR DEALERS

§ 324-1. Definitions.
§ 324-2. License required.
§ 324-3. License application.
§ 324-4. License fee.
§ 324-5. License issuance.
§ 324-6. Transferability of license.
§ 324-7. Parking on sidewalks.
§ 324-8. Proximity of vehicles to residences.
§ 324-9. Compliance with other regulations.
§ 324-10. Suspension or revocation of license.
§ 324-11. Maintenance of premises.
§ 324-12. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City 5-4-1971 as Ch. 8, Art. XVII, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

GENERAL REFERENCES

Fees and charges — See Ch. 160.
Sale of tires — See Ch. 313.
Zoning — See Ch. 345.

§ 324-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

USED MOTOR VEHICLE - Every motor vehicle, Title to or possession of which has been transferred from the person who first acquired it from the manufacturer or dealer and so used as to become what is commonly known as "secondhand" within the ordinary meaning thereof.

USED MOTOR VEHICLE DEALER - A person engaged in the business of selling, buying or dealing in used motor vehicles and who has an established place of business.

USED CAR LOT - Any indoor or outdoor space used or occupied for the business of selling, buying or dealing in used motor vehicles.

§ 324-2. License required.

No person shall deal in or conduct or engage in the business, sale, purchase or exchange of secondhand or used motor vehicles without first having obtained a used motor vehicle sales license.

§ 324-3. License application.

Applications for used motor vehicle sales licenses shall be made upon forms provided by the license issuing authority, shall be signed and verified under oath by the applicant, if an individual, and by a duly authorized agent if a partnership or corporation, and shall set forth the following:

A. If a person, the name and address of the applicant.

B. If a partnership, the name, residence and business address of each partner.

C. If a corporation, the name, date and state under whose laws such corporation was organized, the name and address of the registered agent and, if a foreign corporation, whether authorized to do business in the State of New Jersey, the names of the principal officers, directors and local representatives, their residences and business addresses.

D. The location and description of the premises for which the license is requested, stating also the block and lot number as shown on the Official Tax Assessment Map of the city.

§ 324-4. License fee.*

Each licensee shall pay an annual used motor vehicle sales license fee as provided in Chapter 160, Fees and Charges, whether he or she engages in business for a full year or part thereof. The license year shall be from April 1 to March 31, inclusive, of the following year.

§ 324-5. License issuance. [Amended 9-11-2013 by Ord. No. 13-081]

If, after an investigation by the Department of Public Safety, the license issuing authority is reasonably satisfied that the applicant has a good reputation and that the statements set forth in the application are correct, and if the proper fee has been paid, the license issuing authority shall then issue to the applicant a license which shall be effective from the date of the issue to March 31 thereafter following.

§ 324-6. Transferability of license.

All used motor vehicle sales licenses may be transferred for their unexpired term with the consent of the license issuing authority.

§ 324-7. Parking on sidewalks.

No licensee hereunder shall park, store or display motor vehicles or other articles or permit motor vehicles or other articles to be parked, stored or displayed upon sidewalks or walks adjoining, abutting or surrounding the licensed premises.!

*** Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

tEditor's **Note: See also Ch. 296, Streets and Sidewalks, Art. IV, Obstructions and Encumbrances.**

§ 324-8. Proximity of vehicles to residences.

No used motor vehicle shall be exhibited, stored or located for sale or exchange in any outdoor area with five (5) feet of any building occupied as a residence.

§ 324-9. Compliance with other regulations.

All licensees shall at all times conform fully and completely with all New Jersey statutes, the rules and regulations of the Director of the Division of Motor Vehicles of the State of New Jersey and all other governmental laws, rules and regulations, including the obtaining of proper licenses and permits.

§ 324-10. Suspension or revocation of license.

A. Any license issued hereunder may be suspended or revoked by the license issuing authority for any of the following reasons:

(1) The licensee has knowingly made any false or materially incorrect statement in the application.

(2) The licensee knowingly violates or knowingly permits or countenances the violation of any provision of this chapter.

(3) The licensee knowingly violates or knowingly permits or countenances the violation of any provision of penal law or ordinance regarding theft, larceny or conversion of a motor vehicle.

B. No suspension or revocation of any used motor vehicle license shall be made until a ten-day written notice of the charges preferred against the licensee have been given to him or her personally or by mailing them by certified mail addressed to him or her at the licensed premises, and until a reasonable opportunity to be heard thereon has been afforded. The hearing shall be held before and conducted by the license issuing authority. All suspensions or revocations of licenses shall be effected by notice in writing of such suspension or revocation, designating the effective date thereon and, in case of suspension, the term of such suspension, which notice may be served upon the licensee personally or by mailing it by registered mail addressed to him or her at the licensed premises. Such suspension or revocation shall apply to the licensee and to the licensed premises. Any revocation shall render the licensee ineligible to receive any other license under this chapter for a period of one (1) year from the effective date of the revocation, and may, in the discretion of the license issuing authority render the licensed premises ineligible for any future license under this chapter.[3]

[3] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

§ 324-11. Maintenance of premises.

Every used motor vehicle licensee shall keep the sidewalk surrounding the business premises free from dirt, ice, sleet and snow and shall keep the sidewalk and driveways in a safe condition for the travel of pedestrians.[4]

§ 324-12. Violations and penalties.[5]

Any person violating any of the provisions of this chapter, upon conviction thereof, shall be punishable as provided in Chapter 1, General Provisions § 1-25.

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4 **Editor's Note: See also Ch. 296, Streets and Sidewalks, Art. I, Snow and Ice Removal, and Art. II, Sidewalk Cleaning.**

5 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 329

VENDING MACHINES

ARTICLE I
General Provisions

§ 329-1. Definitions.
§ 329-2. License required.
§ 329-3. License application.
§ 329-4. Compliance with other standards; license issuance; transferability.
§ 329-5. License fees.
§ 329-6. Inspections; right of entry.
§ 329-7. Revocation of license.
§ 329-8. Purpose.
§ 329-9. Violations and penalties.

ARTICLE II
Cigarette Vending Machines

§ 329-10. Machines to be attended.
§ 329-11. Responsibilities of attendants.
§ 329-12. Qualifications of attendants.
§ 329-13. Violations and penalties.

[HISTORY: Adopted by the Council of the City of Jersey City: Art. I, 5-4-1971 as Ch. 8, Art. XVIII, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128; Art. II, 2-24-1993 as Ord. No. 93-019. Amendments noted where applicable.]

GENERAL REFERENCES

Alcoholic beverages — See Ch. 84.
Fees and charges — See Ch. 160.
Food-handling establishments — See Ch. 175.
Zoning — See Ch. 345.

ARTICLE I
General Provisions
[Adopted 5-4-1971 as Ch. 8, Art. XVIII, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128]

§ 329-1. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

CLASS A MACHINE — A vending machine dispensing readily perishable foods or heated or refrigerated foods. **[Amended 4-28-1988 by Ord. No. C-730]**

CLASS B MACHINE — A vending machine dispensing nonperishable foods which do not require heating or refrigeration. **[Amended 4-28-1988 by Ord. No. C-730]**

CLASS C MACHINE — A vending machine dispensing drugs, cosmetics and items other than food products. **[Amended 4-28-1988 by Ord. No. C-730]**

CLASS D MACHINE — A vending machine dispensing gumballs, toys, jewelry and novelties. **[Added 3-23-1989 by Ord. No. C-910; 8-16-1995 by Ord. No. 95-068]**

COMMISSARY — Restaurant, commissary, caterer or any other place in or from which food, beverages or the ingredients thereof are kept, handled, prepared, stored or sold for subsequent dispensing through vending machines.

EMPLOYEE — Any operator or his or her representative who handles any food, beverage or ingredient to be dispensed through vending machines or who comes into contact with food contact surfaces of containers, equipment, utensils or packaging materials used in connection with vending machine operations or who otherwise services or maintains a vending machine.

FOOD — Any raw, cooked or processed edible substance, beverage or ingredient used or intended for use, in whole or in part, for human consumption.

HEALTH OFFICER — The Health Officer of the city or his or her authorized representatives.

MACHINE LOCATION — The room, enclosure, space or area where one (1) or more vending machines are installed and operated.

OPERATOR — Any person who sells food, nonalcoholic beverages, drugs, cosmetics, goods, wares or merchandise through a vending machine. For the purpose of this Article, the person having custody and control of the coin receptacle, box or container in a vending machine shall be conclusively presumed to be the "operator" thereof and shall have the responsibility of obtaining the license therefor.

READILY PERISHABLE FOODS — Any food, consisting in whole or in part of milk, milk products, eggs, meats, fish or poultry, or other foods or beverages requiring refrigeration to prevent decomposition or spoilage. However, powdered products, and those which are commercially sterile and in hermetically sealed containers, are excluded from the term.

VENDING MACHINE — Any device which, upon insertion of a coin or coins, token, disc or like object, dispenses food, nonalcoholic beverages, drugs, cosmetics, goods, wares or merchandise.

§ 329-2. License required.

No person shall engage in the business of operating one (1) or more vending machines without first having obtained an operator's license for each such machine.

§ 329-3. License application.

Applications for a vending machine operator's license shall be made to the Health Officer upon forms provided by the Health Officer. Such application shall set forth the following information:

A. Applicant's full name, residence and post office address and whether such applicant is an individual, firm or corporation.

B. Type and kind of vending machines to be operated and the proposed location of all such vending machines.

C. Name and address of the person from whom such vending machine is to be purchased, rented or otherwise obtained.

D. Terms of agreement governing the acquisition and installation of such vending machine.

§ 329-4. Compliance with other standards; license issuance; transferability.

A. Before an applicant for a vending machine license shall receive a license:

(1) The Division of Construction Code Official shall, upon the request of the Health Officer, certify whether the location of the vending machine complies with Chapter 131, Construction Codes, Uniform, and Chapter 345, Zoning. **[Amended 8-13-1997 by Ord. No. 97-052]**

(2) The Health Officer shall make or have made an inspection of the commissary, servicing facilities and Class A, Class B and Class C machine locations to determine compliance with the provisions of the public health and sanitation requirements of this Code.

B. If, after the aforesaid certification has been made, the Health Officer shall be reasonably satisfied that the statements set forth in the application are correct and that the applicant is in compliance with this article, an operator's license shall be issued by the Health Officer to the applicant for each such vending machine. No such license issued under the terms of this article shall be transferable.

C. The operator's numbered license shall be of size and style approved by the Health Officer.

§ 329-5. License fees. [Amended 4-28-1988 by Ord. No. C-730; 9-22-1988 by Ord. No. C-824]

A. The license fee to be paid for an operator's license for each such vending machine shall be as provided in Chapter 160, Fees and Charges. **[Amended 6-14-1995 by Ord. No. 95-050]**

B. Class D machines used for charitable purposes shall be exempt from the licensing fee. The Health Officer may require proof of the charitable use of the machines. Exemption from licensing fees shall not exempt such vending machines from compliance with all applicable sanitary requirements. **[Added 3-23-1989 by Ord. No. C-910]**

C. Any machine licensed under this article shall not be removed from the location for which it was licensed to another location or replaced by another machine without the approval of the Health Officer.

§ 329-6. Inspections; right of entry.

The Health Officer may inspect all vending machines as often as deemed necessary. The Health Officer, after proper identification, shall be permitted to enter at any reasonable time upon any

private or public property where vending machines are stored or operated, or commissaries are operated, or from which such machines are otherwise serviced, for the purpose or determining compliance with this article. The operator or custodian of such machines at the point of storage shall make provisions for the Health Officer to have such access, in the company of any employee or otherwise, to all vending machines operated or stored.[1]

§ 329-7. Revocation of license.

Any license may be revoked for cause, after a summary hearing before the Health Officer. A printed or written notice, setting forth the charges and the time and place of hearing, shall be served upon the licensee by leaving such notice at the place where the licensee conducts his or her business, at least five days prior to the date of the hearing. The Health Officer, pending the hearing, may suspend such license before such hearing if in his or her judgment the protection of the public health demands. In such event, it shall be unlawful for the operator to engage in the business for which he or she was licensed.

§ 329-8. Purpose.

This Article is for the purpose of regulation and shall in no way affect any of the fees as now provided for or to be hereafter provided for in any other ordinance, but shall be in addition thereto.

§ 329-9. Violations and penalties. [Added 6-14-1995 by Ord. No. 95-050]

Any person, firm or corporation who shall violate any of the provisions of this Article shall, upon conviction, be punishable as provided in Chapter 1, General Provisions. § 1-25.

ARTICLE II
Cigarette Vending Machines[2]
[Adopted 2-24-1993 by Ord. No. 93-019]

§ 329-10. Machines to be attended.

A. Subject to Subsection B, no cigarette vending machine shall be placed on any premises, public or private, unless the owner or lessee of each machine provides in writing to the city the names and business addresses of a person or persons who shall serve as attendant and

(Cont'd on page 32905)

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1 **Editor's Note: Original Secs. 8-217 through 8-220, which immediately followed this section and established sanitation standards, were deleted 6-14-1995 by Ord. No. 95-050. For current provisions dealing with this topic, see Chapter XII of the State Sanitary Code.**

2 **Editor's Note: See also Ch. 316, Tobacco.**

deputy attendant for that machine. More than one (1) attendant or deputy attendant may serve a machine, provided that the owner or lessee specifies the time periods when each of two (2) or more attendants or deputy attendants shall be on duty and thus responsible for compliance with this Article.

B. The requirements of Subsection A shall not apply to any bar or tavern or any premises which is holder of a plenary retail consumption license pursuant to Chapter 84, Alcoholic Beverages; provided, however, that this exemption shall not apply to any restaurant holding such a license which permits minors on the premises.

§ 329-11. Responsibilities of attendants.

The attendant and, in the attendant's stead, the deputy attendant shall be responsible for the penalties and fees which may, upon conviction, be imposed for violations of this Article. Nothing in this Article shall prohibit the employer of an attendant from paying penalties imposed under this Article but payment by the employer shall not be required.

§ 329-12. Qualifications of attendants.

A. An attendant or deputy attendant shall be at least eighteen (18) years of age or more, as certified by the City Health Officer by birth certificate or driver's license only, and an employee or agent of the firm, corporation, partnership or entity having possessory interest, including but not limited to leaseholds, in the premises where the cigarette vending machine is located.

B. An attendant or deputy attendant shall be responsible for placing and maintaining the cigarette vending machine at a site not more than fifty (50) feet from his or her normal place of transacting business, which shall include but not be limited to a cash register, checkout counter, bar or place for the consumption or sale of liquor, desk, office, bathroom or lounge area. The attendant shall assure that he or she has a clear unobstructed line of sight between the normal place of transacting business and the location of the cigarette vending machine.

C. The attendant shall make a machine inoperable during any time when the public has access to the machine but for any reason the attendant or deputy attendant is not available to attend the machines.

D. No attendant may permit a person who is under eighteen (18) years of age to purchase a product from a cigarette vending machine.

§ 329-13. Violations and penalties.[5]

For violation of this Article, the penalty shall be as provided in Chapter 1, General Provisions, § 1-25.

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5 **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Chapter 332

VEHICLES AND TRAFFIC*

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General Provisions

§ 332-1. Definitions.

ARTICLE II
Traffic Regulations

§ 332-2. Traffic control signals.
§ 332-3. Traffic control signal monitoring system (red light cameras).
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§ 332-5. One-way streets.
§ 332-6. U-turns.
§ 332-7. Prohibited turns at intersections.
§ 332-7A. Prohibited turns at intersections during the northbound Pulaski Skyway lane closure.
§ 332-8. Prohibited right turns on red signal.
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§ 332-10. Yield intersections.
§ 332-11. Lane use reservations.
§ 332-12. No-passing zones.
§ 332-13. Truck routes.
§ 332-14. Trucks prohibited or restricted on certain streets and highways.
§ 332-15. Driveways.
§ 332-16. Closing of streets at certain times for school use.
§ 332-17. Traffic regulations applicable to drivers of public vehicles.
§ 332-18. Traffic control devices; Municipal Engineer.
§ 332-19. Reserved.
§ 332-20. Speed limit construction zones.
§ 332-20.1. Closing of Newark Avenue from Barrow Street to Grove Street and Erie Street from Newark Avenue to Bay Street.

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Parking, Standing And Stopping

§ 332-21. Regulations not exclusive.
§ 332-22. Parking prohibited at all times.
§ 332-23. No stopping or standing.
§ 332-24. Parking prohibited certain hours.
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§ 332-25. Parking prohibited for sale or repair of vehicles or parking in front of disabled access ramp prohibited.
§ 332-26. No stopping or standing certain hours.
§ 332-26A. No stopping or standing certain hours during the northbound Pulaski Skyway lane closure.
§ 332-27. Angle parking.
§ 332-28. Bus stops, taxi stands and loading zones.
§ 332-28.1. Parking for electric or plug-in hybrid vehicles.
§ 332-29. Disabled Parking Manual.

***Editor's note**—Ord. No. 10-114, adopted September 15, 2010, adopted Ch. 332, §§ 332-1—332-83 in its entirety. Subsequent amendments are notated by a history note following the title of amended sections.

Cross reference—Parking lots and garages, Ch. 236, taxicabs, limousines and transportation network company vehicles, Ch. 307.

§ 332-30. Parking of trucks, omnibus, road tractor, semi-tractor, truck tractor, recreational vehicles or any commercial motor vehicles.
§ 332-31. Parking restrictions for street-cleaning purposes.
§ 332-31.1. Reserved.
§ 332-32. Solicitation of business on streets.
§ 332-33. Reservation of powers.

ARTICLE IV
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§ 332-34. Designation of snow emergency no-parking areas.
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ARTICLE V
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§ 332-38. Discharging and picking up passengers.
§ 332-39. Enforcement.

ARTICLE VI
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§ 332-40. Failure to pay prescribed parking fee.
§ 332-41. Monthly rental for parking space; expired sticker on vehicle.
§ 332-42. Form of summons for violation of Article; uniform traffic ticket.
§ 332-43. Towing away and booting of vehicles with outstanding summonses.
§ 332-44. Towing away and booting of vehicles whose owners have failed to appear in response to traffic tickets.
§ 332-45. Signs on off-street parking facilities operated by Jersey City Parking Authority.
§ 332-46. Enforcement.

ARTICLE VII
Metered Parking

§ 332-47. Definitions.
§ 332-48. Designation of parking spaces.
§ 332-49. Installation and regulation of parking meters.
§ 332-50. Operation of parking meters.
§ 332-51. Manner of parking.
§ 332-52. Violations.
§ 332-53. Reports of violations; citations.
§ 332-54. Impounding of overtime vehicles.
§ 332-55. Purpose of meter deposits.
§ 332-56. Collection of coins from meters; disposition thereof.
§ 332-57. On-street permit parking zones.
§ 332-57.1. Parking meter covers and parking spaces.

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Permit Parking

§ 332-58. Parking restrictions in residential zones.
§ 332-58.1. Parking restrictions in municipal lots.
§ 332-59. Display of permits.
§ 332-60. Permit parking exemptions.
§ 332-61. Temporary residential parking permits for fire stations.
§ 332-62. Application for and duration of permit.
§ 332-63. Permit fees.
§ 332-64. Criteria for determination of residential permit parking areas.

§ 332-65. Revocation of residential parking permits.
§ 332-66. On-street resident only permit parking zones.
§ 332-67. Violations and penalties.

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§ 332-68. Parking for the disabled.
§ 332-69. Restricted parking zones in front of or near residences of disabled drivers.
§ 332-70. Existing restricted parking zones.
§ 332-71. Municipal Engineer to issue regulations establishing restricted parking spaces.
§ 332-71.1. Restricted parking; spaces for the disabled.

ARTICLE X
Impounding and Booting Vehicles

§ 332-72. Abandonment of motor vehicles prohibited; violations and penalties.
§ 332-73. Impounding and booting motor vehicles.
§ 332-74. Notification of owners; procedure where owners not known.
§ 332-75. Charges for taking, removing, towing and storing.
§ 332-76. Towing of illegally parked vehicles.
§ 332-77. Violations.

ARTICLE XI
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§ 332-78. Parking restrictions in shopping areas.
§ 332-79. Title 39 made applicable to Newport.
§ 332-80. Title 39 made applicable to Port Liberte.
§ 332-81. Title 39 made applicable to Society Hill II.
§ 332-81.1. Title 39 made applicable to Society Hill at Droyers Point.
§ 332-82. Parking in front of private driveways.
§ 332-83. Parking within designated properties of the Jersey City Housing Authority.

ARTICLE XII
Permissible Parking Distances

§ 332-84. Definitions.
§ 332-85. General provisions.

ARTICLE I
General Provisions

§ 332-1. Definitions.

A. Whenever any words and phrases are used in this chapter, the meanings respectively ascribed to them in Subtitle 1 of Title 39 of the New Jersey Statutes Annotated shall be deemed to apply to such words and phrases used herein.

B. In addition, the following terms, when used in this chapter, shall have the meanings indicated **[Amended 9-11-2024 by Ord. No. 24-069]:**

COMMUTER VEHICLE — A motor vehicle, other than the ones described herein, parking in a residential zone.

EMPLOYEE VEHICLE — A motor vehicle parked in a residential zone wherein the owner of said vehicle is an employee of a business located within said zone.

HOLIDAY — Any of the following days or the day on which any of the following are celebrated:

(1) New Year's Day, January 1.

(2) Martin Luther King's Birthday, the third Monday in January.

(3) Abraham Lincoln's Birthday, February 12.

(4) George Washington's Birthday, the third Monday in February.

(5) Good Friday, falling between March 21 and April 23.

(6) Memorial Day, the last Monday in May.

(7) Juneteenth, June 19.

(8) Independence Day, July 4.

(9) Labor Day, the first Monday in September.

(10) Columbus Day, the second Monday in October.

(11) General Election Day, the Tuesday after the first Monday in November.

(12) Veterans' Day, November 11.

(13) Thanksgiving Day, the fourth Thursday in November.

(14) The Friday immediately after Thanksgiving.

(15) Christmas Day, December 25.

Date specific holidays falling on Saturday are observed on Friday; date specific holidays falling on Sunday are observed on Monday.

PERSON — A natural person, joint-stock company, partnership, association, club, company, corporation, business, trust, organization or the manager, lessee, agent, servant, officer or employee of any of them.

RECREATIONAL VEHICLE — A self-propelled or towed vehicle equipped to serve as temporary living quarters for recreational camping or travel purposes and used solely as a family or personal conveyance. **[Added 11-9-2016 by Ord. No. 16-171]**

RESIDENTIAL ZONE — A contiguous or nearly contiguous area containing public streets and highways or parts thereof.

RESIDENTIAL VEHICLE — A motor vehicle parking in a residential zone in which it is registered.

RESIDENTIAL PERMIT PARKING ZONE — A residential area designated as herein provided wherein a resident motor vehicle displaying a valid permit as described herein shall be exempt from parking restrictions established pursuant to this chapter.

TRANSIENT VEHICLE — A motor vehicle, other than a resident vehicle, which has been issued a temporary residential parking permit pursuant to this chapter.

ARTICLE II
Traffic Regulations

§ 332-2. Traffic control signals.

A. Traffic control signals shall be installed and operated at the intersection of those streets described below.

BALDWIN AV and
Clifton Pl
Montgomery St

Mercer St
Wayne St
Academy St
Newkirk St
Magnolia Av
Pavonia Av
Newark Av
Saint Paul's Av
Beacon Av
Jefferson Av

BALDWIN AV/WEBSTER AV and Prospect St

BERGEN AV and
Stegman St
Wegman Pkwy/Audubon Av
Claremont Av
Virginia Av
Union St
Bramhall Av
Communipaw Av
Gifford Av
Belmont Av
Jewett Av
Fairview Av
Fairmount Av
Montgomery St
Mercer St/Glenwood Av
Highland Av
Vroom St
Academy St
Newkirk St
Sip Av

BROADWAY and
Wales Av

BRUNSWICK ST and
Seventh St
Newark Av/Fourth St
Columbus Dr
Montgomery St

CAVEN POINT RD and
Linden Av E
Chapel Av
Bayview Av

CENTRAL AV and
- Beacon Av
- Laidlaw Av
- Jefferson Av
- Prospect St
- Manhattan Av
- Franklin St
- Hutton St
- Bowers St
- Thome St
- Congress St
- North St

CHESTNUT AV and
- Pavonia Av

COLUMBUS DR and
- Barrow St
- Coles St/Varick St

COMMUNIPAW AV and
- Woodward St
- Garfield Av/Summit Av
- Park St
- Crescent Av
- Martin Luther King (MLK) Dr/Monticello Av

CORNELISON AV and
- Fairmount Av

DANFORTH AV and
- Old Bergen Rd/Rose Av
- Sullvan Dr/West Side Av

ERIE ST and
- Sixth St
- Ninth St
- Tenth St beacon

FOWLER AV and
- Danforth Av
- Mc Adoo Av beacon

GARFIELD AV and
- W 55th St
- Gates Av
- Neptune Av
- Lembeck Av
- Danforth Av
- Chapel Av
- Armstrong Av
- Woodlawn Av
- Bayview Av
- Caven Point Av

GRAND STREET and
- Center St
- Merseles St
- Prior St
- Fairmount Av
- Johnston Av
- Garfield Av/Ivy Pl
- Communipaw Av

GRAND ST/OCEAN AV and Bramhall Av

GREENE ST and
- Morris St
- Sussex St
- Grand St
- York St
- Montgomery St
- Columbus Dr

GROVE ST and
- Eighteenth St
- Sixteenth St
- Newark Av
- Columbus Dr
- Wayne St
- Montgomery St
- York St
- Grand St

JERSEY AV and
- Grand St
- Montgomery St

Columbus Dr
Newark Av
Sixth St
Sixteenth St
Eighteenth St

MALLORY AV and
Culver Av
Claremont Av
Clarke Av
Virginia Av
Boyd Av
Clendenny Av
Communipaw Av
Duncan Av

MANHATTAN AV and
Montrose Av/Sanford Pl
Liberty Av

MANILA AV and
Sixth St

MARIN BLVD and
Grand St
York St
Montgomery St
Columbus Dr
Morgan St
First St
Sixth St
Eighth St
Ninth St
Eighteenth St

MARTIN LUTHER KING (MLK) DR
McAdoo Av
Wade St
Armstrong Av
Stegman St
Wegman Pkwy
Bidwell Av
Bayview Av

Claremont Av
Kearney Av
Forrest St
Union St
Bramhall Av

MONMOUTH ST and
Grand St
Montgomery St
Columbus Dr
Newark Av/Second St

MONTGOMERY ST and
Barrow St
Varick St
Center St/Merseles St
Florence St
Mill Rd
Jordan Av

MONTICELLO AV and
Belmont Av
Jewett Av
Fairview Av
Orchard St/Jordan Av

NELSON AV and
North St

NEWARK AV and
Coles St

OAKLAND AV and
Beacon Av

OCEAN AV/OLD BERGEN RD and Merritt St
OCEAN AV and
Gates Av
Neptune Av
Lembeck Av
Linden Av
Danforth Av
Van Nostrand Av
Fulton Av

Dwight St
Wegman Pkwy
Bidwell Av
Bayview Av
Wilkinson Av
Claremont Av
Carteret Av/Keamey Av
Forrest St
Union St

GRAND ST/OCEAN AV and Bramhall Av

OLD BERGEN RD and
Bartholdi Av
Greenville Av

PACIFIC AV and
Grand St
Communipaw Av
Lafayette St
Johnston Av
Ash St

PALISADE AV and
Newark Av
Christ Hospital garage driveway
Beacon Av
Ravine Av/Wood Pl
Franklin St
Griffith St
Bowers St/Holland St
South St
Congress St

PHILLIP ST and
Jersey City Blvd

PRINCETON AV and
Linden Av

SIP AV and
Port Authority driveway
Enos Pl

Newkirk St/Van Reypen St
Tonnele Av
Bryant Av

SUMMIT AV and
Grand St
Astor Pl
Jewett Av/Fairmount Av
Montgomery St
Mercer St
Academy St
Newkirk St
Sip Av
Magnolia Av
Pavonia Av/Central Av
Newark Av/Hoboken Av
Hopkins Av
Beacon Av
Jefferson Av
Carlton Av
Manhattan Av
Hutton St
Griffith St
Lincoln St
Bowers St
Charles St
Thome St
South St
Bleecker St
Congress St
Graham St

TONNELE AV and
Broadway
Newark Av
Saint Paul's Av

WARREN ST and
Grand St
Montgomery St
Columbus Dr

WASHINGTON BLVD and
Fourth St

Sixth St/Gangemi Dr
Pavonia Av
Newport Pkwy
Fourteenth St

WASHINGTON ST and
Grand St
Montgomery St
Columbus Dr
Morgan St
Bay St

WEBSTER AV and
Booraem Av
Ravine Av
Ferry St
Franklin St
Hutton St
Griffith St
Bowers St
South St
Congress St

WEST SIDE AV and
Stevens Av
Armstrong Av
Stegman Pkwy
Audubon Av
Culver Av
Grant Av
Ege Av
Virginia Av
Boyd Av
Union St
Clendenny Av
Communipaw Av
Bentley Av
Belmont Av
Kensington Av
Duncan Av
Montgomery St
Sip Av
Broadway

B. The traffic signal installations shall be in accordance with the provisions of An Act Concerning Motor Vehicles and Traffic Regulations, Subtitle 1 of Title 39 of the New Jersey Statutes Annotated, and shall conform to the design and shall be maintained in operation in accordance with the Act.

§ 332-3. Traffic control signal monitoring system (red light cameras). [Added 5-28-2008 by Ord. No. 08-065; amended 9-11-2013 by Ord. No. 13-081]

A. Installation.

(1) The City of Jersey City hereby determines to install and utilize a traffic control signal monitoring system [System] at various intersections within the City of Jersey City as approved by the Commissioner of Transportation pursuant to the Act

(2) The System to be installed shall be approved by the Governing Body by resolution.

(3) The City of Jersey City shall have the authority to enter into a contract, following a lawful procurement process, for the installation of the System. Any contract that shall contain provisions contrary to the Act shall not be deemed invalid but rather reformed to conform to the Act

(4) The signs notifying drivers that a System is being utilized shall be approved by the Municipal Engineer, and shall be placed on each street converging into the affected intersection as required by the Act.

(5) The Municipal Engineer shall inspect and certify the System at least once every six (6) months from the date of its installation

B. Issuance of a Summons. The Department of Public Safety of the City of Jersey City shall review the recorded images produced by the System, to determine whether sufficient evidence exists demonstrating that a traffic control signal violation has occurred and shall issue a Summons when appropriate in accordance with the rules of the Court.

C. Use of Recorded Images.

(1) Except as otherwise provided in this section, the recorded images produced by the System shall be available for the exclusive use of the Department of Public Safety for the purpose of discharging his or her duties under P.L. 2007, Ch. 348.

(2) Any recorded image or information produced in connection with the System shall not be deemed a public record under N.J.S.A. 47:1A-1 et seq., or common law. The recorded images shall not be: (i) discoverable as a public record by any person, entity, or governmental agency, except upon a subpoena issued by a grand jury or a court order in a criminal matter, or (ii) offered as evidence in any civil or administrative proceeding not directly related to a traffic control signal violation.

(3) Any recorded image or information collected in connection with a traffic control signal violation shall not be retained after sixty (60) following the collection of any fine or penalty.

(4) If a summons is not issued within forty (40) business days following the traffic control signal violation, all recorded images and any information collected with respect to the traffic control signal violation shall be removed by the Department of Public Safety within two (2) business days.

(5) The City of Jersey City shall certify compliance of this Section by filing a report to with the Commissioner of Transportation in accordance with the Act.

D. Owner's Liability. The liability of the Owner and Operator of a motor vehicle for a traffic control signal violation summons pursuant to the System shall be joint subject to provisions of the Act.

E. Fines. Any person liable for a traffic control signal violation, pursuant to the Ordinance and the Act, utilizing the System shall be subject to the fines listed in Chapter 160.

§ 332-4. Speed limits. [Amended 9-14-2016 by Ord. No. 16-120; 11-16-2017 by Ord. No. 17-149]

The speed limit for traffic along the streets, or parts thereof, listed below are hereby established at the rate of speed indicated in New Jersey State Statute and Amendments 39:4-98.

Speed Limits		
Name of Street	Speed Limit (mph)	Limits
Eighteenth St	25	Entire length
Eleventh St	25	Entire length
Garfield Av	25	Entire length
Hoboken Av	25	From City line to Highway 139
No. 40 School Zone 1	25	During recess or while children are going to and from school, during opening and closing hours

§ 332-5. One-way streets. [Amended by 4-28-2010 by Ord. No. 10-059; 12-18-2013 by Ord. No. 13-134; 7-16-2014 by Ord. No. 14-043; 9-23-2014 by Ord. No. 14-115; 9-23-2014 by Ord. No. 14-119; 10-8-2014 by Ord. No. 14-127; 10-22-2014 by Ord. No. 14-133; 11-12-2014 by Ord. No. 14-140; 9-24-2015 by Ord. No. 15-123; 10-28-2015 by Ord. No. 15-140; 4-27-16 by Ord. No. 16-063; 6-14-2017 by Ord. No. 17-018; 11-16-2017 by Ord. No. 17-149; 6-27-2018 by Ord. No 18-061; 6-27-2018 by Ord. No. 18-062; 8-15-2018 by Ord. No. 18-087; 10-24-2018 by Ord. No. 18-121; 1-9-2019 by Ord. No. 18-148; 5-22-2019 by Ord. No. 19-049; 9-23-2020 by Ord. No. 20-076; 4-28-2021 by Ord. No. 21-025; 6-15-2022 by Ord. No. 22-046; 6-15-2022 by Ord. No. 22-049; 9-20-2023 by Ord. No. 23-088; 11-29-2023 by Ord. No. 23-112; 10-30-2024 by Ord. No. 24-092; 3-11-2026 by Ord. No. 26-010]

The streets or parts of streets listed below are hereby designated as one-way streets in the direction indicated.

One-Way Streets		
Name of Street	Direction of Travel	Limits
Abbett St	North	Entire length
Academy Street	West	Tuers Av to Van Reypen St
Alan Ter	East	Entire length
Armstrong Av	West	Entire length
Ash St	East	Whiton St to Pine St

One-Way Streets		
Name of Street	Direction of Travel	Limits
Astor Pl	East	Monticello Av to Park St
Atlantic St	East	Entire length
Barbara Pl	East	Entire length
Barrow St	North	Grand St to Newark Av
Bartholdi Av	West	Ocean Av to Romar Av
Bates St	South	Bright St to Grand St
Bay St	West	Greene St to Newark Av
Bayview Av	East	Entire length
Beach St	East	Entire length
Beacon Av	West	Baldwin Av to Kennedy Blvd
Belmont Av	West	Entire length
Bentley Av	West	Entire length
Berkeley Pl	West	Entire length
Bevan St	South	Hopkins Av to Route 139
Bidwell Av	West	Garfield Av to Bergen Av
Bishop St	West	Entire length
Bleecker St	East	Kennedy Blvd to Central Av
	West	Kennedy Blvd to Columbia Av
Boland St	South	Entire length
Bond St	East	Entire length
Booraem Av	West	Entire length
Bostwick Av	East	Entire length
Bowers St	West	Ogden Av to Central Av
Boyd Av	East	Entire length
Boyle Plaza	West	Entire length
Briarwood Rd	East	Sycamore Rd to Country Village Rd
Brinkerhoff St	West	Monticello Av to Bergen Av
Britton St	North	Entire length
Brooks Pl	West	Entire length
Brown Pl	East	Entire length
Brunswick St	South	Tenth St to York St
Bryant Av	North	Sip Av to Logan Av
Cambridge Av	North	Entire length
Cator Av	West	Princeton Av to Garfield Av
	West	Ocean Av to West Side Av
Center St	North	Entire length
Chapel Av	East	Rutgers Av to Ocean Av
Charles St	West	Entire length
Claremont Av	East	Halstead St to Bergen Av
Clarke Av	West	West Side Av to Bennett Av
Clendenny Av	East	Entire length
Clerk St	South	Entire length
Cliff St	East	Entire length
Clifton Pl	Counterclock-wise	Entire length
Clinton Av	West	Entire length

One-Way Streets		
Name of Street	Direction of Travel	Limits
Colden St	East	Merseles St to Center St
	North to west counterclockwise	Grand St to Prior St
Coles St	South	Tenth St to Columbus Dr
Colgate St	South	Brunswick Estates Driveway to York St
Collard St	South	Spruce St to Hopkins Av
Columbia Av	North	Leonard St to Secaucus Rd
Concord St	North	Entire length
Condict St	East	Entire length
Congress St	East	Nelson Av to Central Av
	East	Nelson Av to Summit Av
Cook St	South	Entire length
Corbin Av	North	Stuyvesant Av to Broadway
Cottage St	West	Summit Av to Kennedy Blvd
	West	a point 210 feet west of Kennedy Blvd to Herbert Pl
Country Village Rd	South	Mina Dr to Briarwood Rd
Court House Pl	East	Baldwin Av to McPherson Pl
	West	Baldwin Av to Oakland Av
Crawford St	East	Orchard St to Summit Av
Crescent Av	North	Clinton Av to Communipaw Av
	South	Belmont Av to Communipaw Av
Crossgate Rd	West	Entire length
Cuneo Pl	West	Entire length
Custer Av	East	Kennedy Blvd to Old Bergen Rd
Dales Av	North	Entire length
DeKalb Av	East	Kennedy Blvd to Van Reypen St
	West	Kennedy Blvd to West Side Av
Delaware Av	North	Kensington Av to Duncan Av
Delmar Rd	East	Entire length
Dudley St	West	Warren St to Van Vorst St
Duncan Av	West	Bergen Av to West Side Av
Dwight St	East	Entire length
Ege Av	East	Entire length
Eighth St	West	Marin Blvd to Division St
Eleventh St Viaduct	East	Entire length
Emory St	East	Entire length
Enos Pl	South	Entire length
Eric St	North	Entire length
Essex St (for vehicular traffic only)	West	Hudson St to Washington St
	West	Warren St to Van Vorst St
Exeter Rd	East	Entire length
Fairmount Av	East	Monticello Av to Storms Av
	East	West Side Av to Bergen Av
Fairmount Ter	South	Entire length
Fairview Av	East	Entire length

One-Way Streets		
Name of Street	Direction of Travel	Limits
Fayette Pl	East	Giles Av to West Side Av
Ferncliff Rd	Clockwise	Exeter Rd to Sycamore Rd
Ferry St	East	Entire length
	East	Central Av to Webster Av
	East	New York Av to Palisade Av
Fifteenth St	West	Marin Blvd to Jersey Av
Fifth St	East	Entire length
First St	East	Entire length
Fisk St	East	Route 440 to Martorano Way
	East	Mallory Av to West Side Av
Fleet St	East	Entire length
Forrest St	East	Bergen Av to Ocean Av
Fourteenth St	West	Light rail trestle to Marin Blvd
	West	Jersey Av to Coles St
Fourth St	West	Entire length
Fox Pl	East	Entire length
Franklin St	West	Mountain Rd to Ogden Av
Franklin Street	West	Palisade Av to Central Av
Fulton Av	West	Entire length
Gardner Av	East	Entire length
Garfield Av	North	Communipaw Av to Grand St
Garrison Av	South	Entire length
Gates Av	West	Princeton Av to Ocean Av
	West	Old Bergen Rd to Kennedy Blvd
Gautier Av	West	Entire length
Gifford Av	East	Entire length
Giles Av	North	Pavonia Av to Broadway
Glenn Ln	West	Entire length
Glenwood Av	West	Entire length
Grace St	West	Entire length
Graham St	West	Entire length
Grant Av	East	Bergen Av to Ocean Av
	West	Bergen Av to West Side Av
Gray St	North	Entire length
Greene St	North	Columbus Dr to Second St
Greenville Av	West	Old Bergen Rd to Kennedy Blvd
Griffith St	East	Kennedy Blvd to Ogden Av
Grove St	South	Sixteenth St to Boyle Plz &
	South	First St to Columbus Dr
	South	Sussex St to Morris Blvd
Hague St	West	Entire length
Halladay St	South	Entire length
Hancock Av	South	Entire length
Harmon St	West	Entire length
Harrison		Entire length
Henry St	West	Waldo Av to Chestnut Av
Herbert Pl	North	Entire length

One-Way Streets		
Name of Street	**Direction of Travel**	**Limits**
High St	West	Baldwin Av to Summit Av
Highland Av	East	Entire length
Highview Rd	Counter-clockwise	Stevens Av to last two legs before Fowler Av
Hoboken Av	East	Oakland Av to Baldwin Av
	West	Coles St to Route 139
Hobson St	West	Entire length
Homestead Pl	South	Entire length
Hopkins Av	East	Entire length
Howard Pl	West	Entire length
Howie Fink Way (formerly Pershing Plaza)	West	Entire length
Hudson St	South	Montgomery St to Essex St
Huron Av	South	Entire length
Hutton St	East	Kennedy Blvd to Sanford Pl
	West	Sherman Av to Palisade Av
Irving St	West	Entire length
Ivy Pl	West	Entire length
Jackson Av	South	Beginning at a point approximately 240 feet south of Communipaw Av (north building line of the West District Police Precinct) to Clinton Av
Jefferson Av	West	Entire length
Jersey Av	South	Twelfth St to Tenth St
Jewett Av	West	Entire length
Johnston Av	West	Grand St to Cornelison Av
Jones St	North	Entire length
Jordan Av	North	Orchard St to Montgomery St
	South	Vroom St to Montgomery St
Kearney Av	West	Ocean Av to Bergen Av
Kensington Av	East	West Side Av to Bergen Av
Lafayette St	East	Pacific Av to Monitor St
Laidlaw Av	East	Summit Av to Palisade Av
	West	Summit Av to Collard St
Lake St	West	Entire length
Lembeck Av	West	Entire length
Leonard St	East	Nelson Av to Central Av
Lexington Av	West	Entire length
Liberty Av	North	Newark Av to Saint Paul's Av
	South	Lake St to Spruce St
	North	Lake St to Manhattan Av
	South	Hutton St to Manhattan Av
	North	Leonard St to Secaucus Rd
	South	Lake St to Spruce St
Lienau Pl	North	Entire length
Lincoln St	West	Central Av to Kennedy Blvd

One-Way Streets		
Name of Street	**Direction of Travel**	**Limits**
Linden Av	East	Fowler Av to Princeton Av

One-Way Streets		
Name of Street	Direction of Travel	Limits
Logan Av	West	West Side Av to Dales Av
Ludlow St	South	Chapel Av to New St
Madison Av	North	Entire length
Magnolia Av	East	Summit Av to Waldo Av
Maiden Ln	West	Entire length
Mallory Av service road	North	Clendenny Av to Roosevelt Av
Manhattan Av	East	County Rd to Tonnele Av
	West	Central Av to Sherman Av
Manila Av	South	Entire length
Manning Av	North	Communipaw Av to Maple St
Maple St	West	Monitor St to Van Horne St
Marion Pl	East	Entire length
Maxwell St	West	Entire length
McAdoo Av	East	West Side Av to Sterling Av
	East	Martin Luther King Dr to Rutgers Av
McDougal St	East	Entire length
McPherson Pl	South	Entire length
McWilliams Pl	South	Entire length
Mercer St	West	Entire length
Merseles St	South	Columbus Dr to Grand St
	South	Fourth St to Third St
Monitor St	North	Communipaw Av to Johnston Av
Monmouth St	North	Grand St to Tenth St
Monticello Av	South	Clinton Av to Bramhall Av
Morgan St	East	Grove St to Marin Blvd
Morris Blvd	West	Marin Blvd to St. Peter's St
	East	Grove St to St. Peter's St
Morris St	East	Hudson St to Van Vorst St
	West	Washington St to Van Vorst St
Morton Pl	West	Bergen Av to Kennedy Blvd
Mountain Rd	West	Franklin St to Franklin St
Msgr. Wojtycha Dr	East	Entire length
Myrtle Av	East	Ocean Av to Garfield Av
	West	Ocean Av to Bergen Av
Neptune Av	East	Sayles St to Kennedy Blvd
	West	Old Bergen Rd to Kennedy Blvd
	West	Princeton Av to Garfield Av
Nesbitt St	South	Entire length
New St	East	Entire length
New York Av	South	Paterson Plank Rd to Ravine Av
Newark Av	West	Columbus Dr to Grove St
Ninth St	East	Brunswick St. to Manila Av
Ninth St (South side of median)	East	Manila Av to Marin Blvd
Ninth St (North side of median)	West	Marin Blvd to west end of median
Norcroft Rd	East	Entire length
North St	East	Nelson Av to Palisade Av
Oak St	West	Entire length

One-Way Streets		
Name of Street	Direction of Travel	Limits
Oakland Av	North	Newark Av to Hoboken Av
Ogden Av	South	Griffith St to Cuneo Pl
	North	Griffith St to Congress St
Old Bergen Rd	South	Pamrapo Av to Merritt St
Orchard St	East	Montgomery St to Monticello Av
Orient Av	East	Kennedy Blvd to Ocean Av
Oxford Av	East	Entire length
Pacific Av	North	Caven Point Av to Carteret Av
Paterson St	West	Entire length
Pavonia Av	East	Erie St to Manila Av
	West	West Side Av to Giles Av
Pearsall Av	East	Entire length
Perry St	North	Saint Paul's Av to Hopkins Av
Pierce Av	South	Entire length
Pine St	South	Ash St to Communipaw Av
Pinecrest Rd	Counterclock-wise	Entire length
Pollack Av	West	West Side Av to Mallory Av
Poplar St	East	Entire length
Prescott St	North	Communipaw Av to Park St
Prospect St	West	Entire length
Randolph Av	North	Entire length
Reed St	West	Entire length
Reservoir Av	East	Entire length
Robinson Dr	Counterclock-wise	Robinson Dr to Lee Ct
Rock St	West	Entire length
Romaine Av	North	Entire length
Roosevelt Av	East	Entire length
Rutgers Av	North	Entire length
Sackett St	North	Entire length
St. Paul's Av	West	Palisade Av to Summit Av
St. Peter's St	North	Morris Blvd to Sussex St
Sanford Pl	South	Entire length
Sayles St	South	Entire length
Seaview Av	East	Old Bergen Rd to Princeton Av
Second St	West	Marin Blvd to Newark Av
	West	Monmouth St to Merseles St
Seidler St	South	Entire length
Service Rd	East	Entire length
Seventh St	East	Newark Av to Manila Av
Sheffield St	West	Entire length
Sherman Av	North	Entire length
	West	Entire length
Sixth St	West	Jersey Av to Newark Av
Skillman Av	South	Saint Paul's Av to Van Winkle Av

One-Way Streets		
Name of Street	Direction of Travel	Limits
South St	East	Central Av to Ogden Av
	West	Central Av to Kennedy Blvd
Spring St	North	Cator Av to McAdoo Av
Spruce St	East	Liberty Av to Collard St
Stagg St	West	Entire length
Stegman St	East	Ocean Av to Garfield Av
	West	Ocean Av to Martin Luther King Dr
Stevens Av	West	Entire length
Storms Av	East	Entire length
Stuyvesant Av	West	Entire length
Suburbia Ct	Counterclock-wise	Entire length
Suburbia Dr	North	Suburbia Ter to 102 Suburbia Dr
Suburbia Ter	Counterclock-wise	
Summit Av	South	Ivy Pl to Communipaw Av
Sussex St	West	Greene St to Van Vorst St
	East	St. Peter's St clockwise to St. Peter's St
	West	St. Peter's St to Grove St
Sycamore Rd	North	The city line to Mina Dr
Tenth St	West	Marin Blvd to Manila Av
Terhune Av	East	Entire length
Third St	East	Merseles St to Manila Av
Thorne St	East	Terrace Av to Central Av
Tonnele Av	North	Sip Av to Kennedy Blvd
	South	Sip Av to Van Reypen St
Towers St	Clockwise	Entire length
Town Square Ring Rd	Counterclock-wise	Entire length
Troy St	West	Entire length
Tuers Av	North	Entire length
Twelfth St	East	Jersey Av to Holland Tunnel
	East	Marginal St from Coles St to Jersey Av (south side of viaduct)
	East	Monmouth St to Coles St
	West	Marginal St from Jersey Av to Coles St (north side of viaduct)
Tyson Ln	Clockwise: Southbound to Westbound	Communipaw Av to Kennedy Blvd
Union St	West	Garfield Av to West Side Av
	East	Mallory Av to West Side Av
Van Horne St	North	Bramhall Av to Johnson Av
Van Nostrand Av	East	Entire length

One-Way Streets		
Name of Street	Direction of Travel	Limits
Van Reypen Av	East	Kennedy Blvd to Summit Av
	North	Tonnele Av to Sip St
	South	Academy St to Sip Av
Van Vorst St	South	York St to Grand St
	North	Essex St to Morris St
Van Wagenen Av	South	Broadway to Pavonia Av
	South	Sip Av to Stuyvesant Av
Van Winkle Av	East	Tonnele Av to Kennedy Blvd
	West	Tonnele Av to Senate Pl
Varick St	South	Colden St to Bright St
Virginia Av	West	Entire length
Vroom St	East	Bergen Av to Gray St
	West	Bergen Av to Van Reypen St
Wade St	East	Entire length
Waldo Av	North	Magnolia Av to Newark Av
Wales Av	South	Entire length
Wallis Av	South	Broadway to Logan Av
Warner Av	West	Entire length
Warren St	South	Montgomery St to Morris St
Washburn St	East	Oakland Av to Palisade Av
Washington Blvd	South	Second St to First St
Washington St	South	First St to Columbus Dr
Water St	South	Culver Av to Fisk St
Waverly St	East	Entire length
Wayne St	East	Chopin Ct to Merseles St
	East	Summit Av to Mill Rd
	East	Monmouth St to Grove St
	West	Marin Blvd to Grove St
Webster Av	North	Ferry St to South St
Wegman Pkwy	East	Van Cleef St to Ocean Av
	West	Garfield Av to Ocean Av
	West	Martin Luther King Dr to Bergen Av
Weldon St	North	Entire length
West Hamilton Pl	North	Entire length
Westervelt Pl	East	Entire length
Whiton St	North	Communipaw Av to Ash St
Wilkinson Av	West	Ocean Av to Bergen Av
Williams Av	West	Entire length
Winfield Av	East	Kennedy Blvd to Princeton Av
	West	Kennedy Blvd to Sayles St
Wood Pl	West	Entire length
Woodland Av	North	Lembeck Av to Linden Av
Woodlawn Av	East	Entire length
Woodward St	South	Grand St to Johnston Av
	South	Lafayette St to Communipaw Av
Wright Av	North	Entire length
Yale Av	East	Mallory Av to West Side Av

One-Way Streets		
Name of Street	Direction of Travel	Limits
York St	East	Center St to Greene St
Zabriskie St	East	Summit Av to Central Av
	West	Summit Av to Sanford Pl
	West	Kennedy Blvd to Liberty Av

§ 332-6. U-turns. [Amended 6-19-2013 by Ord. No. 13-077; 11-12-2014 by Ord. No. 14-140]

No person shall make a U-turn on any of the streets or parts of streets listed below.

U-Turns	
Name of Street	Limits
Baldwin Av	Entire length
Bergen Av	Entire length
Broadway	Wallis Av to Tonnele Av
Carlton Av	Tonnele Av to Liberty Av
Central Av	Manhattan Av to North St
Communipaw Av	Pacific Av to Route 1
Grand St	Marin Blvd to Bramhall Av
Huron Av	Entire length
Jackson Av	Communipaw Avenue to a point approximately 240 feet south (north building line of the West District Police Precinct)
Jersey Av	Grand St to Newark Av
Jersey Av	Twelfth St north to the city line
Journal Square	Entire length
Kennedy Blvd	Newark Av to Sip Av
Montgomery St	Entire length
Monticello Av	Entire length
Newark Av	Entire length
Newport Pkwy	Entire length
Ocean Av	Entire length
Pacific Av	Entire length
Palisade Av	Entire length
Pavonia Av	Kennedy Blvd to Summit Av
Sip Av	Entire length
Summit Av	Newark Av to Sip Av
Tonnele Av	Sip Av to Tonnele Circle
Washington St	Grand St to Montgomery St
West Side Av	Entire length

§ 332-7. Prohibited turns at intersections. [Amended 4-7-1982 by Ord. No. MC-153; 8-31-2011 by Ord. 11-098; 12-18-2013 by Ord. No. 13-133; 1-27-2016 by Ord. No. 16-003; 1-27-2016 by Ord. No. 16-005; 8-15-2018 by Ord. No. 18-087; 9-23-2020 by Ord. No. 20-076; 11-8-2023 by Ord. No. 23-106]

No person shall make a turn of the kind designated (left or right) at any of the locations listed below.

Prohibited Turns at Intersections				
Name of Street	Direction of Travel	Prohibited Turn	Hours Days of the Week	At Intersection of
Bay St	West	Left	All	Newark Av
Beacon Av	West	Left	All	Kennedy Blvd
Bergen Av	North	Left	All	Sip Av
Bergen Av	South	Left	7:00 am to 7:00 pm M—Sat	Storms Av
Central Av	North	Left	All	Newark Av
Communipaw Av	East	Left	All	Prescott St
Communipaw Av	East	Right	All	Grand St
Culver Av	West	Left	All	Jersey City State College Student Union parking garage entrance
Dales Av	North	Left	All	Routes 1 and 9
Dunkin Donuts exit	East	Left	Daily	M.L. King Dr
Exchange Place Center driveway exit	West	Left	All	Hudson St
Fifteenth St	East	Left	All	Jersey Av
Hoboken Av	East	Left	Daily	Baldwin Av
Holland Tunnel Motel driveway exit	West	Left	All	Marin Blvd
Hudson St	South	Left	All	Exchange Pl
Jones St	North	Left	All	Sip Av
Journal Square Plaza II	North	Left	All	Cottage St
Kennedy Blvd	North	Left	All	Tonnele Av
Madison Av	North	Left	All	Communipaw Av
Manhattan Av	East	Left	4:00 pm to 6:00 pm M—F	Western Av
Manhattan Av	East	Left	4:00 pm to 6:00 pm M—F	Terrace Av
Montgomery St	East	Left	7:00 am to 9:00 am M—F	Barrow St
Ninth St	East	Left	All times	Marin Blvd
Randolph Av	North	Left	All	Communipaw Av
Romaine Av	North	Left	School Days 7:30 a.m. to 9:00 a.m. 2:00 p.m. to 4:00 p.m.	Broadway
Sackett St	North	Left	All	Communipaw Av
Sip Av	East	Left	All	Journal Square Plaza
Sip Av	West	Left	All	Enos Pl
Spruce St	East	Left	7:00 am to 9:00 am and 4:00 pm to 6:00 pm M—F	Liberty Av
Saint Paul's Av	West	Left	All	Summit Av
Summit Av	North	Left	7:00 am to 9:00 am and 4:00 pm to 6:00 pm M—F	Newkirk St

Prohibited Turns at Intersections				
Name of Street	Direction of Travel	Prohibited Turn	Hours Days of the Week	At Intersection of
Tyson Lane (east portion)	North	Left	All	Communipaw Av
Waldo Av	North	Left	All	Newark Av
Washburn St	East	Left	All	Palisade Av
York St	West	Left	7:00 am to 9:00 am and 4:00 pm to 6:00 pm M—F	Greene St

§ 332-7A. Prohibited turns at intersections during the northbound Pulaski Skyway lane closure. [Added 2-26-2014 by Ord. No. 14-021]

No person shall make a turn of the kind designated (left or right) at any of the locations listed below during the time the northbound lane of the Pulaski Skyway is closed for construction.

Prohibited Turns at Intersections				
Name of Street	Direction of Travel	Prohibited Turn	Hours Days of the Week	At Intersection of
Center St	North	Right	M—F except holidays 6:00 am to 10:00 am	Brook St
	North	Right	M—F except holidays 6:00 am to 10:00 am	Bright St
	North	Right	M—F except holidays 6:00 am to 10:00 am	York St
Columbus Dr	East	Left	M—F except holidays 6:00 am to 10:00 am	Barrow St
Communipaw Av	East	All	M—F except holidays 6:00 am to 10:00 am	West Side Av
	East	All	M—F except holidays 6:00 am to 10:00 am	Bergen Av
	East	Left	M—F except holidays 6:00 am to 10:00 am	Park St
Grand St	East	Left	M—F except holidays 6:00 am to 10:00 am	Ivy Pl
	East	Left	M—F except holidays 6:00 am to 10:00 am	Barrow St
	East	Left	M—F except holidays 6:00 am to 10:00 am	Marin Blvd

§ 332-8. Prohibited right turns on red signal. [Amended 5-11-2011 by Ord. No. 11-053; 12-18-2013 by Ord. No. 13-136; 1-15-2014 by Ord. No. 13-146; 10-8-2014 by Ord. No. 14-126; 3-25-2015 by Ord. No. 15-030; 6-24-2015 by Ord. No. 15-086; 8-16-17 by Ord. No. 17-099; 9-27-2017 by Ord. No. 17-124; 12-13-2017 by Ord. No. 17-160; 11-7-2018 by Ord. No. 18-124; 6-12-2019 by Ord. No. 19-055; 9-25-2019 by Ord. No. 19-120; 9-25-2019 by Ord. No. 19-122; 1-8-2020 by Ord. No. 19-166; 2-13-2020 by Ord. No. 20-006; 1-11-2023 by Ord. No. 22-104; 5-24-2023 by Ord. No. 23-044; 9-7-2023 by Ord. No. 23-084; 9-20-2023 by Ord. No. 23-088; 9-20-2023 by Ord. No. 23-089; 11-8-2023 by Ord. No. 23-107; 3-20-2024 by Ord. No. 24-013; 5-8-2024 by Ord. No. 24-029; 6-26-2024 by Ord. No. 24-050; 9-11-2024 by Ord. No. 24-070; 2-26-2025 by Ord. No. 25-014; 8-20-2025 by Ord. No. 25-084]

No person shall make a right turn when facing a steady red signal (stop indication) at any of the locations listed below.

Prohibited Right Turns on Red Signal			
Name of Street	**Direction of Travel**	**Prohibited Right Turn on Red Signal Onto**	**Hours and Days**
Academy St	West	Bergen Av	All times
	East	Summit St	All times
	West	Baldwin Av	All times
	West	Summit Av	All times
Armstrong Av	West	West Side Av	All times
Ash St	Both	Pacific Av	All times
Audubon Av	East	Bergen Av	All times
	West	West Side Av	8:00 am to 4:00 pm school days
Baldwin Av	North	Academy St	All times
	North	Magnolia Av	8:00 am to 4:00 pm school days
	Both	Montgomery St	All times
Bartholdi Av	West	Old Bergen Av	All times
Bayview Av	East	Caven Point Rd	All times
	East	Ocean Av	8:00 am to 4:00 pm school days
Beacon Av	West	Summit Av	All times
	West	Central Av	All times
	West	Oakland Av	All times
Beacon Way	North	Montgomery St	All times
Belmont Av	West	Bergen Av	7:00 am to 7:00 pm M—Sat
	West	Kennedy Blvd	All times
	All	Monticello Av	8:00 am to 4:00 pm school days
Bentley Av	West	West Side Av	All times

Prohibited Right Turns on Red Signal			
Name of Street	Direction of Travel	Prohibited Right Turn on Red Signal Onto	Hours and Days
Bergen Av	South	Academy St	All times
	South	Audubon Av	All times
	South	Belmont Av	8:00 am to 4:00 pm school days
	Both	Communipaw Av	All times
	All	Jewett Av	8:00 am to 4:00 pm school days
	Both	Montgomery St	All times
	South	Newkirk St	7:00 am to 7:00 pm M—Sat
	Both	Sip Av	All times
	All	Union St	All times
	South	Vroom St	All times
Bleecker St	East	Summit Av	7:00 am to 7:00 pm
Bowers St	Both	Central Av	7:00 am to 7:00 pm M—F
	West	Palisade Av	All times
Boyd Av	East	Mallory Av	All times
Broadway	East	Tonnele Av	All times
	East	Wales Av	All times
Brunswick St	Both	Newark Av	All times
	South	Columbus Dr	All times
Bryant Av	North	Sip Av	All times
Canal St	North	Grand St	8:00 am to 4:00 pm school days
Carlton Av	East	Summit Av	All times
Caven Point Rd	North	Bayview Av	All times
	South	Linden Av E	All times
Center St	North	Montgomery St	8:00 am to 4:00 pm school days
Central Av	North	Franklin Av	All times
	North	Montgomery St	All times
	South	Beacon Av	All times
	South	Manhattan Av	All times
	South	Bowers St	7:00 am to 7:00 pm M—F
	South	Pavonia Av	All times
	South	Summit Av	All times
Chestnut Av	South	Pavonia Av	All times
Claremont Av	All	ML King Dr	8:00 a.m. to 4:00 a.m. school days
	Both	Mallory Av	All times
	East	West Side Av	All times
Clarke Av	West	Mallory Av	All times
Clendenny Av	East	Mallory Av	All times
	East	West Side Av	All times

Prohibited Right Turns on Red Signal			
Name of Street	**Direction of Travel**	**Prohibited Right Turn on Red Signal Onto**	**Hours and Days**
Columbus Dr	All	Grove St	All times
	All	Jersey Av	All times
	All	Marin Blvd	All times
	East	Brunswick St	8:00 am to 4:00 pm school days
Communipaw Av	Both	Bergen Av	All times
	West	Garfield Av	All times
	East	Grand St	All times
	Both	Mallory Av	All times
	West	Park St	All times
	Both	West Side Av	6:00 am to 10:00 pm daily
	East	Woodward St	All times
Congress St	Both	Central Av	All times
	Both	Webster Av	All times
	East	Paterson Plank Rd	All times
Crescent Av	Both	Communipaw Av	All times
Culver Av	Both	Mallory Av	All times
	Both	West Side Av	All times
Danforth Av	All	Old Bergen Rd and Rose Av	All times
	Both	Ocean Av	8:00 am to 4:00 pm school days
	West	Westside Av	
Douglas and Arthur Skinner Dr (f/k/a Jersey Av)	All	Grand St	All times
Duncan Av	Both	Mallory Av/Lakeview Dr	All times
	Both	West Side Av	All times
Ege Av	East	West Side Av	All times
Eighteenth St	East/West	Marin Blvd	All times
Erie St	North	Sixth St	7:00 am to 7:00 pm M—F
Fairmount Av	Both	Bergen Av	All times
	East	Kennedy Blvd	All times
	Both	Summit Av	All times
Florence St	Both	Montgomery St	All times
Fowler Av	All	Kennedy Blvd and Van Nostrand Av	All times
Franklin Av	Both	Palisade Av	All times
Franklin St	West	Central Av	All times
	West	Webster Av	All times
Fulton St	West	Martin Luther King Dr	All times
Garfield Av	North	Communipaw Av	All times
Gates Av	Both	Ocean Av	8:00 am to 4:00 pm school days

Prohibited Right Turns on Red Signal			
Name of Street	**Direction of Travel**	**Prohibited Right Turn on Red Signal Onto**	**Hours and Days**
Grand St	All	Grove St	All times
	All	Monmouth St	8:00 am to 4:00 pm school days
	All	Douglas and Arthur Skinner Memorial Dr (f/k/a Jersey Av)	All times
	All	Barrow St	8:00 am to 4:00 pm school days
	All	Marin Blvd	All times
	All	Washington St	8:00 am to 4:00 pm school days
	East	Summit Av	All times
Greene St	Both	Montgomery St	All times
Griffith St	East	Palisade Av	All times
	East	Summit Av	7:00 am to 7:00 pm
Grove St	All	Columbus Dr	All times
	All	Grand St	All times
	North	Montgomery St	All times
Highland Av	East	Bergen Av	8:00 am to 4:00 pm school days
Hoboken Av	West	Summit Av	All times
Hopkins Av	East	Summit Av	All times
Hudson St	North	Exchange Pl	All times
Jefferson Av	West	Summit Av	8:00 a.m. to 4:00 p.m. school days
Jersey Av	South	Fourteenth St	All times
	All	Columbus Dr	All times
	All	Newark Av	All times
	All	Sixth St	7:00 am to 7:00 pm M—F
	Both	Montgomery St	All times
Jewett Av	All	Bergen Av	8:00 am to 4:00 pm school days
	All	Monticello Av	8:00 am to 4:00 pm school days
Johnston Av	Both	Grand St	All times
	Both	Pacific Av	All times
Jordan Ave	Both	Montgomery St	All times
Journal Square	South	Kennedy Blvd	All times

Prohibited Right Turns on Red Signal			
Name of Street	**Direction of Travel**	**Prohibited Right Turn on Red Signal Onto**	**Hours and Days**
Kennedy Blvd	All	Van Nostrand Av and Fowler Av	All times
	Both	Pavonia Av	All times
	Both	Sip Av	7:00 am to 7:00 pm M—Sat
	Both	Saint Paul's Av	8:00 am to 4:00 pm school days
	East	Journal Square	All times
	South	Bleecker St	All times
	South	Newark Av	7:00 am to 7:00 pm M—Sat
Kensington Av	East	West Side Av	All times
Lafayette St East	Pacific Av	All times	
Laidlaw Av	East	Central Av	8:00 am to 4:00 pm school days
Lakeview Dr	North	Mallory Av/Duncan Av	All times
Liberty Av	Both	Manhattan Av	All times
Lincoln St	Both	Kennedy Blvd	7:00 am to 7:00 pm M—Sat
Linden Av	East	Ocean Av	All times
Linden Av E	West	Caven Point Rd	All times
Magnolia Av	East	Baldwin Av	8:00 am to 4:00 pm school days
Mallory Av	North	Boyd Av	All times
	Both	Claremont Av	All times
	South	Clarke Av	All times
	Both	Clendenny Av	All times
	Both	Communipaw Av	All times
	Both	Culver Av	All times
	Both	Duncan Av	All times
	South	Virginia Av	All times
Manhattan Av	East	Central Av	All times
	East	Montrose Av	All times
	East	Sanford Pl	All times
	All	Summit Av	All times
Marin Blvd	All	Metro Plaza	7:00 am to 7:00 pm daily
	All	Grand St	All times
	All	Columbus Dr	All times
	All	Morgan St	All times
	Both	Montgomery St	All times
	South	Eighteenth St	All times
Martin Luther King Dr	North	Bayview Av	8:00 am to 4:00 pm school days
	South	Fulton St	All times
	North	Wade St	All times

Prohibited Right Turns on Red Signal			
Name of Street	Direction of Travel	Prohibited Right Turn on Red Signal Onto	Hours and Days
Mercer St	West	Bergen Av	8:00 am to 4:00 pm school days
Merseles St	Both	Grand St	All times
	South	Montgomery St	All times
	South	Montgomery St	8:00 am to 4:00 pm school days
Metro Plaza	All	Marin Blvd	7:00 am to 7:00 pm daily
Mill Rd	South	Montgomery St	All times
ML King Dr	All	Claremont Av	8:00 a.m. to 4:00 a.m. school days
Monmouth St	North	Grand St	8:00 am to 4:00 pm school days
Montgomery St	Both	Baldwin Av	All times
	Both	Bergen Av	All times
	Both	Florence St	All times
	Both	Greene St	All times
	Both	Grove St	All times
	Both	Jersey Av	All times
	Both	Marin Blvd	All times
	Both	Summit Av	All times
	East	Beacon Way	All times
	East	Merseles St	All times
	East/West	Washington St	7:00 am to 7:00 pm M—F
	West	Center St	All times
	West	Mill Rd	All times
	West	West Side Av	7:00 am to 7:00 pm M—Sat
Monticello Av	All	Belmont Av	8:00 am to 4:00 pm school days
	All	Jewett Av	8:00 am to 4:00 pm school days
Montrose Av	North	Manhattan Av	All times
Morgan St	All	Marin Blvd	All times
Nelson Av	South	North St	8:00 am to 4:00 pm school days
Newark Av	Both	Brunswick St	All times
	Both	Kennedy Blvd	7:00 am to 7:00 pm M—Sat
	Both	Tonnele Av	7:00 am to 7:00 pm M—Sat
	East	Summit Av	All times
	North	Hoboken Av	All times
	North	Summit Av	All times
	West	Palisade Av	All times
	All	Jersey Av	All times

Prohibited Right Turns on Red Signal			
Name of Street	**Direction of Travel**	**Prohibited Right Turn on Red Signal Onto**	**Hours and Days**
Newkirk St	All	Sip Av and Van Reypen St	7:00 am to 7:00 pm M—Sat
	West	Bergen Av	All times
North St	East	Central Av	All times
	East	Nelson Av	8:00 am to 4:00 pm school days
Oakland Av	South	Beacon Av	All times
Ocean Av	Both	Danforth Av	8:00 am to 4:00 pm school days
	North	Linden Av	All times
	Both	Wilkinson Av	8:00 am to 4:00 pm school days
Old Bergen Av	South	Bartholdi Av	All times
	All	Danforth Av and Rose Av	All times
Pacific Av	Both	Ash St	All times
	North	Grand St	All times
	North	Lafayette St	All times
	Both	Johnston Av	All times
Palisade Av	Both	Franklin Av	All times
	Both	Christ Hospital Garage/St. Paul's Av	All times
	South	Bowers St	All times
	South	Ravine Av/Wood Pl	All times
	South	Newark Av	All times
Park St	South	Communipaw Av	All times
Pavonia Av	Both	Kennedy Blvd	All times
	Both	Summit Av	All times
	West	Central Av	All times
	West	Washington Blvd	7:00 am to 7:00 pm M—F
Port Authority drive-way	South	Sip Av	All times
Prospect St	West	Central Av	All times
	West	Webster Av	All times
Ravine Av	All	Webster Av	All times
	East	Palisade Av	All times
Rose Av	All	Old Bergen Rd and Danforth Av	All times
Saint Paul's Av	Both	Kennedy Blvd	8:00 am to 4:00 pm school days
	Both	Tonnele Av	7:00 am to 7:00 pm M—Sat
Sanford Pl	South	Manhattan Av	All times
	South	Manhattan Av	All times

Prohibited Right Turns on Red Signal			
Name of Street	Direction of Travel	Prohibited Right Turn on Red Signal Onto	Hours and Days
Sip Av	Both	Bergen Av	All times
	Both	Bryant Av	All times
	Both	Kennedy Blvd	7:00 am to 7:00 pm M—Sat
	All	Van Reypen St and Newkirk St	7:00 am to 7:00 pm M—Sat
	Both	West Side Av	All times
	East	Summit Av	All times
Sixth St	West	Erie St	7:00 am to 7:00 pm M—F
	All	Jersey Av	7:00 am to 7:00 pm M—F
South St	West	Summit Av	All times
Stegman Pkwy	All	West Side Av	8:00 am to 4:00 pm school days
Stegman St	West	Bergen Av	All times
Summit Av	North	Academy St	All times
	North	Fairmount Av	All times
	South	Grand St	All times
	North	Hoboken Av	All times
	Both	Newark Av	All times
	Both	Pavonia Av	All times
	Both	Magnolia Av	All times
	All	Manhattan Av	All times
	Both	Montgomery St	All times
	South	Carlton Av	All times
	South	Sip Av	All times
Tonnele Av	South	Broadway	All times
	Both	Newark Av	7:00 am to 7:00 pm M—Sat
	Both	Saint Paul's Av	7:00 am to 7:00 pm M—F
Thorne St	East	Central Av	All times
Union St	All	Bergen Av	All times
	Both	West Side Av	8:00 am to 4:00 pm school days
Van Nostrand Av	All	Kennedy Blvd and Fowler Av	All times
Van Reypen St	All	Sip Av and Newkirk St	7:00 am to 7:00 pm M—Sat
Virginia Av	West	Mallory Av	All times
	West	West Side Av	8:00 am to 4:00 pm school days
Wade St	East	Martin Luther King Dr	All times
Warren St	South	Grand St	8:00 am to 4:00 pm school days
Washington Blvd	North	Pavonia Av	7:00 am to 7:00 pm M—F

Prohibited Right Turns on Red Signal			
Name of Street	Direction of Travel	Prohibited Right Turn on Red Signal Onto	Hours and Days
Washington St	North/ south	Montgomery St	7:00 am to 7:00 pm M—F
	North/ south	Grand St	8:00 am to 4:00 pm school days
Wayne St	West	Grove St	All times
Webster Av	Both	Congress St	All times
	All	Ravine Av	All times
	North	Franklin St	All times
	North	South St	8:00 am to 4:00 pm school days
Wegman Pkwy	West	Bergen Av	All times
West Side Av	North	Broadway	All times
	Both	Claremont Av	All times
	North	Clendenny Av	All times
	North	Ege Av	All times
	Both	Kensington Av	All times
	Both	Sip Av	All times
Wilkinson Av	West	Ocean Av	8:00 am to 4:00 pm school days
Wood Pl	West	Palisade Av	All times
Woodlawn Av	East	Garfield Av	All times

§ 332-9. Stop intersections. [Amended 5-11-2011 by Ord. No. 11-052; 11-9-2011 by Ord. No. 11-138; 09-23-2014 by Ord. No. 14-116; 11-12-2014 by Ord. No. 14-140; 7-15-2015 by Ord. No. 15-091; 9-9-2015 by Ord. No. 15-113; 11-24-2015 by Ord. No. 15-154; 2-24-2016 by Ord. No. 16-030; 4-27-2016 by Ord. No. 16-063; 5-25-2016 by Ord. No. 16-084; 9-28-2016 by Ord. No. 16-141; 9-28-2016 by Ord. No. 16-143; 3-8-2017 by Ord. No. 17-019; 3-22-2017 by Ord. No. 17-029; 8-16-2017 by Ord. No. 17-100; 8-16-2017 by Ord. No. 17-101; 9-13-2017 by Ord. No. 17-115; 9-27-2017 by Ord. No. 17-122; 9-27-2017 by Ord. No. 17-127; 10-11-2017 by Ord. No. 17-134; 11-16-2017 by Ord. No. 17-149; 11-29-2017 by Ord. No. 17-154; 5-9-2018 by Ord. No. 18-037; 6-27-2018 by Ord. No 18-061; 8-15-2018 by Ord. No. 18-083; 8-15-2018 by Ord. No. 18-084; 9-12-2018 by Ord. No. 18-100; 9-26-2018 by Ord. No. 18-109; 10-10-2018 by Ord. No. 18-117; 10-24-2018 by Ord. No. 18-121; 11-7-2018 by Ord. No. 18-125; 12-19-2018 by Ord. No. 18-138; 3-27-2019 by Ord. No. 19-018; 4-10-2019 by Ord. No. 19-021; 4-24-2019 by Ord. No. 19-032; 4-24-2019 by Ord. No. 19-033; 5-8-2019 by Ord. No. 19-042; 5-22-2019 by Ord. No. 19-050; 6-26-2019 by Ord. No. 19-064; 9-25-2019 by Ord. No. 19-118; 9-25-2019 by Ord. No. 19-121; 10-10-2019 by Ord. No. 19-132; 10-23-2019 by Ord. No. 19-139; 11-14-2019 by Ord. No. 19-152; 2-13-2020 by Ord. No. 20-007; 6-24-20 by Ord. No. 20-041; 10-7-2020 by Ord. No. 20-085; 1-27-2021 by Ord. No. 21-003; 4-28-2021 by Ord. No. 21-025; 4-28-2021 by Ord. No. 21-027; 5-13-2021 by Ord. No. 21-029; 6-30-2021 by Ord. No. 21-044; 9-9-2021 by Ord. No. 21-058; 10-27-2021 by Ord. No. 21-069; 2-24-2022 by Ord. No. 22-013; 6-15-2022 by Ord. No. 22-047; 6-29-2022 by Ord. No. 22-057; 9-8-2022 by Ord. No. 22-078; 2-8-2023 by Ord. No. 23-006; 3-8-2023 by Ord. No. 23-016; 5-24-2023 by Ord. No. 23-043; 6-28-2023 by Ord. No. 23-058; 7-12-2023 by Ord. No. 23-068; 11-8-2023 by Ord.

No. 23-108; 12-13-2023 by Ord. No. 23-120; 2-7-2024 by Ord. No. 24-003; 6-26-2024 by Ord. No. 24-051; 6-26-2024 by Ord. No. 24-052; 8-14-2024 by Ord. No. 24-060; 9-25-2024 by Ord. No. Ord. No. 24-082; 9-25-2024 by Ord. No. 24-083; 10-30-2024 by Ord. No. 24-093; 10-30-2024 by Ord. No. 24-094; 6-11-2025 by Ord. No. 25-061; 9-10-2025 by Ord. No. 25-092; 10-22-2025 by Ord. No. 25-109]

The intersections listed below are hereby designated as stop intersections or multi-way stop intersections. Stop signs shall be installed as provided therein.

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Abbett St	North	Ferry St
Academy St	East and west	Tuers Av - (multi-way)
Academy St	West	Van Reypen St
Aetna St	East	Skinner Dr (formerly Jersey Av)
Alan Ter	East	Waldo Av
Alexander Ct	North	Lyon Ct (E/W)
Alexander Ct	South	Robinson Dr
Amity St	South	Fairmount Av
Apollo Ct	North	Duncan Av
Arlington Av	South	Bayview Av
Arlington Av - (multi-way)	North and south	Bramhall Av
Arlington Av - (multi-way)	North and south	Carteret Av
Arlington Av - (multi-way)	North and south	Claremont Av
Arlington Av - (multi-way)	North and south	Union St
Arlington Av	Both	Wilkinson Av - (multi-way)
Arlington Av	North	Communipaw Av
Arlington Av	South	Harmon St
Arlington Av	North and south	Grand St
Armstrong Av	West	Ocean Av
Armstrong Av	West	Bergen Av
Armstrong Av	West	Sterling Av
Astor Pl	East	Crescent Av - (multi-way)
Astor Pl	East	Park St - (multi-way)
Atlantic St	East	Martin Luther King Dr
Atlas Ct	North	Robinson Dr
Audrey Zapp Dr	West	Phillip St - (multi-way)
Avenue C	North	Mulcahy St/Merritt St - (multi-way)
Barbara Pl	East	Pacific Av
Barrow St	North	Mercer St - (multi-way)
Barrow St - (multi-way)	North	Wayne St
Barrow St	North	York St - (multi-way)
Bartholdi Av	East and west	Romar Av
Bates St	South	Brook St
Bates St	South	Grand St
Bay St	East and west	Provost St
Bay St	West	Grove St - (multiway)
Bay St	West	Marin Blvd
Bay St	East and west	Warren St - (multi-way)

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Bay St	West	Grove St
Bay St	West	Erie St
Bay St	West	Newark Av
Beach St - (multi-way)	East	Liberty Av
Beach St	East	Montrose Av
Beach St	East	Sanford Pl
Beacon Av - (multi-way)	West	Collard St
Belvidere Av	North	Condict St
Belvidere Av	South	Communipaw Av
Belvidere Av	South	Duncan Av
Bennett St	North	Clendenny Av
Bergen Av	Both	Woodlawn Av - (multi-way)
Bergen Av	North and south	Kensington Av - (multi-way)
Bergen Av	North and south	Oak St - (multi-way)
Berry La	North	Communipaw Av
Berkeley Pl	West	Tonnele Av
Bevan St	South	St. Paul's Av
Bidwell Av	West	Bergen Av
Bishop St	West	Cornelison Av
Bleecker St	West	Terrace Av
Bleecker St	East	Central Av
Bleecker St	East and west	Liberty Av
Booraem Av	West	Central Av
Bostwick Av	East	Martin Luther King Dr
Bostwick Av	East	Ocean Av
Bowers St	West	Cambridge Av - (multi-way)
Bowers St	West	Hancock Av - (multi-way)
Bowers St	West	New York Av - (multi-way)
Bowers St	West	Sherman Av - (multi-way)
Boyd Av	East	Bergen Av
Bramhall Av - (multi-way)	East and west	Arlington Av
Bramhall Av	East and west	Halladay St
Bramhall Av	East and west	Sackett Av - (multi-way)
Bramhall Av	East	Garfield Av
Bramhall Av	East	Pacific Av
Briarwood Rd	East	Sycamore Rd
Briarwood Rd	East	Country Village Rd
Bright St - (multi-way)	West	Center St
Bright St	East	Grand St
Bright St	East	Merseles St
Bright St	East and west	Jersey Av - (multi-way)
Bright St	East and west	Varick St - (multi-way)
Bright St	West	Cornelison Av
Bright St	West	Monmouth St
Brinkerhoff St	West	Monticello Av
Brinkerhoff St	West	Bergen Av
Britton St	North	Montgomery St

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Broadway	East and west	Van Wagenen Av - (multi-way)
Brook St	West	Center St
Brown Pl	East	Princeton Av
Brunswick St	South	York St
Brunswick St	South	Second St - (multi-way)
Brunswick St	South	Eighth St - (multi-way)
Brunswick St	South	Pavonia Av - (multi-way)
Brunswick St	South	Ninth St - (multi-way)
Brunswick St	South	Sixth St - (multi-way)
Brunswick St	South	Fifth St - (multi-way)
Cambridge Av	North	Griffith St - (multi-way)
Cambridge Av	North	Hutton St - (multi-way)
Cambridge Av	North	Bowers St - (multi-way)
Cambridge Av	North	South St - (multi-way)
Cambridge Av	North	Congress St
Cambridge Av	North	North St
Carbon Pl	East	West Side Av
Carlton Av - (multi-way)	East and west	Liberty Av
Carlton Av	East and west	Montrose Av - (multi-way)
Carpenter Ct	North	Smit Ct
Carteret Av - (multi-way)	East and west	Arlington Av
Carteret Av	East	Pacific Av
Carteret Av	East and west	Garfield Av
Carteret Av	West	Ocean Av
Catherine Ct	West	Garfield Av
Cator Av	West	Rose Av
Cator Av	East and west	Garfield Av
Cator Av	West	Ocean Av
Cator Av	West	Old Bergen Rd
Cator Av	West	Fowler Av
Cator Av	West	Spring St
Center St - (multi-way)	North	Bright St
Central Av	North	Newark Av
Central Av	South	Hoboken Av
Central Av	North and south	Hopkins Av - (multi-way)
Chapel Av	East	Ocean Av
Chestnut Av - (multi-way)	North and south	Magnolia Av
Chestnut Av	North	Newark Av
Chopin Ct	South	Montgomery St
Claremont Av - (multi-way)	East and west	Arlington Av
Claremont Av	East	Garfield Av
Claremont Av	East and west	West Side Av
Clerk St	South	Carteret Av
Clerk St	South	Claremont Av
Clerk St	South	Union St
Clerk St	South	Wilkinson Av
Clifton Pl	North	Fairmount Av

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Clifton Pl	West	Summit Av
Clinton Av	West	Bergen Av
Clinton Av	Both	Sackett St - (multi-way)
Clinton Av	West	West Side Av
Colden St	East and west	Center St
Colden St	South	Grand St
Coles St	North and south	Eighteenth St - (multi-way)
Coles St	South	Eighth St
Coles St	North and south	Fifteenth St - (multi-way)
Coles St	South	Fifth St - (multi-way)
Coles St	South	Fourth St - (multi-way)
Coles St	North and south	Fourteenth St - (multi-way)
Coles St	South	Ninth St - (multi-way)
Coles St - (multi-way)	South	Pavonia Av
Coles St	North and south	Seventeenth St - (multi-way)
Coles St	South	Seventh St - (multi-way)
Coles St	South	Second St - (multi-way)
Coles St	North and south	Sixteenth St - (multi-way)
Coles St - (multi-way)	South	Sixth St
Coles St	South	Tenth St - (multi-way)
Coles St	South	Third St - (multi-way)
Colgate St	South	Bright St
Colgate St	South	First St
Colgate St	North and south	Second St
Colgate St	South	Third St - (multi-way)
Colgate St	South	York St
Collard St - (multi-way)	South	Beacon Av
Collard St	South	Hopkins Av
College Dr	North	Culver Av
College Dr	South	Audubon Av
College St	North	Culver Av
College St	South	Audubon Av
Colony Rd	South	Pt Jersey Blvd
Columbia Av	North and south	Bleecker St
Columbia Av	North and south	Thorne St
Columbia Av	South	Zabriskie St - (multi-way)
Columbia Av	North and south	North St - (multi-way)
Columbia Av	North and south	Lincoln St - (multi-way)
Concord St - (multi-way)	North and south	Fleet St
Concord St	North and south	Hopkins Av
Concord St	North	St. Paul's Av - (multi-way)
Condict St	East	Delaware Av
Congress St	Both	Hancock Av - (multi-way)
Congress St	East and west	New York Ave - (multi-way)
Congress St	East and west	Sherman Av - (multi-way)
Cook St	South	Newark Av
Corbin Av	North	Sip Av

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Corbin Av	North	Pavonia Av
Corbin Av	North and south	Broadway
Cornelison Av	South	Summit Av
Country Village Rd	North and south	Briarwood Rd
Court House Pl	West	Oakland Av
Crawford St	East	Summit Av
Crescent Av	South	Astor Pl - (multi-way)
Crescent Av	South	Harrison Av
Cuneo Pl	West	Palisade Av
Custer Av	East	Old Bergen Rd
Dales Av	North	Broadway
Danforth Av	East	Princeton Av
DeKalb Av	East and west	Van Reypen St
DeKalb Av	West	West Side Av
Delaware Av	North	Gautier Av
Delaware Av	North and south	Duncan Av
Delaware Av	South	Communipaw Av
Delmar Rd	East	Sycamore Rd
Dempsey Ct	North	Smit Ct
Dey St	East	Tonnele Av
Division St	North and south	Seventh St - (multi-way)
Division St	North and south	Sixth St - (multi-way)
Division St	South	Newark Av
Division St	North and south	Eighth St - (multi-way)
Dudley St	West	Warren St- (multi-way)
Dudley St	East	Washington - (multi-way)
Duffield Av	North and south	Saint Paul's Av
Duncan Ct	North	Duncan Av
Dwight St	East	Bergen Av
Dwight St	East	Martin Luther King Dr
Dwight St	East	Garfield Av
Dwight St	East	Van Cleef St
E Bidwell Av	West	Garfield Av
Eastern Pkwy	East	Garfield Av
Eastern Pkwy	West	Ocean Av
Edward Hart Dr	North and south	Theodore Conrad Dr
Ege Av	East	Mallory Av
Ege Av	East	Bergen Av
Ege Av	East	Martin Luther King Dr
Eighteenth St Channelization lane	East	Jersey Av
Eighteenth St	West	Coles St - (multi-way)
Eighth St	West	Coles St
Eighth St - (multi-way)	West	Erie St
Eighth St	West	Manila Av - (multi-way)
Eighth St	West	Division St - (multi-way)
Eighth St	West	Brunswick St - (multi-way)
Eighth St	West	Monmouth St - (multi-way)

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Eighth St	West	Jersey Av - (multi-way)
Eighth St	West	McWilliams - (multi-way)
Elizabeth St	East	Waldo Av
Elizabeth St	West	Chestnut Av
Emerson Av	North	Logan Av
Emerson Av	North and south	Sip Av
Emory St	East	Monticello Av
Enos Pl	South	Newkirk St
Erie St - (multi-way)	North	Eighth St
Erie St	North	Fifth St - (multi-way)
Erie St	North	First St - (multi-way)
Erie St	North	Fourth St - (multi-way)
Erie St	North	Pavonia Av
Erie St	North	Second St - (multiway)
Erie St	North	Seventh St - (multi-way)
Erie St	North	Sixteenth St
Erie St	North	Third St - (multi-way)
Everett St	North	Clendenny Av
Everett St	South	Williams Av
Exeter Dr	East	Sycamore Rd
Fairmount Av	East	Storms Av
Fairmount Av	East	Monticello Av - (multi-way)
Fairview Av	East	Fairmount Av
Ferncliff Rd	East	Sycamore Rd
Ferry St	East	New York Av - (multi-way)
Ferry St	East	Palisade Av
Field Av	North	Sip Av
Fifteenth St	West	Grove St
Fifteenth St	West	Erie St
Fifteenth St	West	Coles St - (multi-way)
Fifth St	East	Brunswick St - (multi-way)
Fifth St	East	Coles St - (multi-way)
Fifth St	East	Erie St - (multi-way)
Fifth St	East	Jersey Av - (multi-way)
Fifth St	East	Manila Av - (multi-way)
Fifth St	East	Monmouth St - (multi-way)
First St	East	Brunswick St
First St	East	Coles St
First St	East	Erie St - (multi-way)
First St	East	Grove St - (multiway)
First St	East	Jersey Av - (multi-way)
First St	East	Monmouth St
First St	East	Newark Av
First St	East	Provost St
First St	East	Warren St - (multi-way)
Fisk St	East	West Side Av
Fisk St	East	Mallory Av - (multi-way)

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Fleet St	East	Oakland Av
Fleet St	East	Baldwin Av
Fleet St	East	Palisade Av
Fleet St - (multi-way)	East	Concord St
Florence St	South	Bright St
Florence St	West	Cornelison Av
Forrest St	East	Clerk St
Forrest St	East and west	Halladay St
Forrest St	East	Pacific Av
Fourteenth St	East and west	Coles St - (multi-way)
Fourth St	West	Coles St - (multi-way)
Fourth St	West	Erie St - (multi-way)
Fourth St	West	Jersey Av - (multi-way)
Fourth St	West	Merseles St - (multi-way)
Fourth St	West	Monmouth St - (multi-way)
Fowler Av	North and south	McAdoo Av - (multi-way)
Fowler Av	North and south	Terhune Av - (multi-way)
Fox Pl	East	West Side Av
Foxhound Ct	North	Hudson Ct
Frances Ct	West	Foxhound Ct
Franklin St	East and west	Hancock Av (multi-way)
Franklin St	South	New York Av
Franklin St	East and west	New York Av - (multi-way)
Franklin St	East	Ogden Av - (multi-way)
Franklin St	East and west	Sherman Av (multi-way)
Freedom Pl	West	Garfield Av
Freeman Av	North and south	Sip Av
Freeman Av	South	Duncan Av
Fremont St	North	Bright St
Fremont St	South	Colden St
Fulton Av - (multi-way)	West	Sterling Av
Fulton Av	West	Martin Luther King Dr
Fulton Av	West	Bergen Av
Fulton Av	West	West Side Av
Garabrant St	South	Johnston Av
Gardner Av	East	Summit Av
Garrison Av	South	DeKalb Av
Garrison Av	South	Stuyvesant Av
Garrison Av	South	Pavonia Av
Garrison Av	South	Sip Av
Gates Av	West	Old Bergen Rd
Giles Av	North and south	Broadway
Glenwood Av	West	West Side Av
Glenn La	West	West Side Av
Grace St	West	Nelson Av
Grace St	West	Summit Av - (multi-way)
Graham St	West	Nelson Av

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Grant Av	East	Martin Luther King Dr
Grant Av	East	Ocean Av
Grant Av	East	Washington St
Grant Av	East	West Side Av
Gray St	North	Academy St
Gray St	North	Wayne St
Grieco Dr	South	Lembeck Av
Grieco Dr	West	Sullivan Dr
Griffith St - (multi-way)	East	New York Av
Griffith St	East and west	Ogden Av
Griffith St	East	Central Av
Griffith St	East	Cambridge Av - (multi-way)
Griffith St	East	Hancock Av - (multi-way)
Griffith St	East	Sherman Av - (multi-way)
Grove St	South	Bay St - (multiway)
Grove St	South	First St - (multiway)
Grove St	North and south	Mercer St - (multi-way)
Hague St	West	Nelson Av
Hague St	West	Summit Av - (multi-way)
Halladay St	South	Carteret Av
Halladay St	South	Caven Point Av
Halladay St	South	Johnston Av
Halladay St	South	Communipaw Av
Halladay St	South	Lafayette St - (multi-way)
Halladay St	South	Maple St - (multi-way)
Halstead St	South	Claremont Ave
Hancock Av	South	Bowers St - (multi-way)
Hancock Av	South	Congress St - (multi-way)
Hancock Av	South	Franklin St (multi-way)
Hancock Av	South	Griffith St - (multi-way)
Hancock Av	South	Hutton St
Hancock Av	South	South St - (multi-way)
Harbor Dr	East	Industrial Dr
Harmon St	West	Crescent Av
Harmon St	West	Randolph Av - (multi-way)
Harmon St	West	Grand St
Harrison Av	East	Bergen Av
Harrison Av	East	Monticello Av
Hawthorne Av	North	Sip Av
Henry St	East and west	Chestnut Av
Henry St	East	Waldo Av
Herbert Pl	North	Newark Av
High St	West	Baldwin Av
High St	West	Summit Av
Highview Rd	East	Fowler Av
Hill St	West	Palisade Av
Hoboken Av	East and west	Monmouth St

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Hobson St	West	Palisade Av
Holland Gardens South Driveway	West	Jersey Av
Holmes Av	North	Sip Av
Homestead Pl	South	Pavonia Av
Hopkins Av	East	Central Av - (multi-way)
Hopkins Av	East	Oakland Av
Hopkins Av	East	Baldwin Av
Hopkins Av	East	Palisade Av
Howard Pl	West	Storms Av
Howie Fink Way (formerly Pershing Plz)	West	Summit Av - (multi-way)
Hudson Ct	South	Robinson Dr
Hudson Ct	East	Society Hill Dr
Huron Av	North	Saint Paul's Av
Hutton St	East and west	Cambridge Av - (multi-way)
Hutton St	West	Liberty Av
Hutton St	West	New York Av - (multi-way)
Hutton St	East and west	Sherman Av
Hutton St	East and west	Sanford Pl
Industrial Dr	South	Pt Jersey Blvd
Irving St	West	Nelson Av
Irving St	West	Summit Av - (multi-way)
Jackson Av	North	Communipaw Av
James Av	South	Newark Av
James Av	North	Van Keuren Av
James Av	North and south	St. Paul's Av - (multi-way)
Jefferson Av	West	Oakland Av - (multi-way)
Jersey Av	North	Eighth St - (multi-way)
Jersey Av	North and south	Bright St - (multi-way)
Jersey Av	North and south	Fifth St - (multi-way)
Jersey Av	North and south	First St - (multi-way)
Jersey Av	North and south	Fourth St - (multi-way)
Jersey Av	North and south	Mercer St - (multi-way)
Jersey Av	North and south	Second St - (multi-way)
Jersey Av	North and south	Seventh St - (multi-way)
Jersey Av	North and south	Tenth St - (multi-way)
Jersey Av	North and south	Third St - (multi-way)
Jersey Av	North and south	Wayne St - (multi-way)
Jersey Av	North and south	York St - (multi-way)
Jersey Av	South	Ninth St - (multi-way)
Jersey City Blvd	West	Wilson St - (multi-way)
Jewett Av	West	West Side Av
Johnston Av	East	Phillip St - (multi-way)
Johnston Av	West	Cornelison Av
Jones St	North	Sip Av
Jordan Av	South	Mercer St
Kearney Av	East	Ocean Av

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Kearney Av	West	Bergen Av
Kearney Av	West	West Side Av
Kensington Av	East	Bergen Av - (multi-way)
Kissam Ct	North	Lyon Ct (E/W)
Lafayette St	East and west	Halladay St - (multi-way)
Lafayette St	East and west	Van Horne St
Laidlaw Av	West	Collard St
Laidlaw Av	East	Oakland Av
Laidlaw Av	East	Baldwin Av
Laidlaw Av	East	Palisade Av
Lake St	West	Liberty Av
Laurel Ct	South	First St
Lee Ct	North	Robinson Dr
Lee Ct	South	Tottenham Ct
Lembeck Av	West	Sullivan Dr
Lembeck Av	West	Old Bergen Rd
Lembeck Av	West	Romar Av
Leonard St	East and west	Columbia Av
Leonard St	East	Central Av
Leonard St	East	Summit Av - (multi-way)
Leonard St	West	Terrace Av
Lexington Av	West	West Side Av
Lexington Av	West	Mallory Av - (multi-way)
Lexington Av	West	Marcy Av
Liberty Av - (multi-way)	North	Beach St
Liberty Av	North	Leonard St
Liberty Av	North and south	Lincoln St - (multi-way)
Liberty Av	South	Spruce St
Liberty Av - (multi-way)	North	Van Winkle Av
Liberty Av	North and south	St. Paul's Av - (multi-way)
Liberty Av - (multi-way)	North	Carlton Av
Liberty Av	North and south	North St - (multi-way)
Liberty Av	North and south	Zabriskie St - (multi-way)
Lienau Pl	North	Booraem Av
Lienau Pl - (multi-way)	North	Prospect St
Lienau Pl	North	Reservoir Av
Lincoln St	East and west	Columbia Av - (multi-way)
Lincoln St	East and west	Liberty Av - (multi-way)
Lincoln St - (multi-way)	West	Milton Av
Lincoln St	East and west	Terrace Av - (multi-way)
Linden Av	East	Fowler Av
Linden Av	East	Old Bergen Rd
Linden Av	East	Garfield Av
Logan Av	West	Freeman Av
Long St	South	Rose Av
Ludlow St	South	New St
Lyon Ct (N/S)	North	Lyon Ct (E/W)

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Lyon Ct (N/S)	South	Robinson Dr
Madison Av	North	Clinton Av
Madison Av	North	Communipaw Av
Magnolia Av - (multi-way)	East	Chestnut Av
Magnolia Av	East	Waldo Av
Magnolia Av	West	Tonnele Av
Maiden Ln	West	Orchard St
Mallory Av	South	Fisk St - (multi-way)
Mallory Av service road	North	Roosevelt Av
Mallory Av	Both	Roosevelt Av - (multi-way)
Mallory Av	Both	Lexington Av - (multi-way)
Manhattan Av	West	Central Av
Manila Av	South	Eighth St - (multi-way)
Manila Av	South	Fifth St - (multi-way)
Manila Av - (multi-way)	South	Ninth St
Manila Av	South	Pavonia Av - (multi-way)
Manila Av	South	Second St - (multi-way)
Manila Av	South	Seventh St - (multi-way)
Manila Av	South	Tenth St - (multi-way)
Manning Av	South	Communipaw Av
Maple St	West	Halladay St - (multi-way)
Maple St	East and west	Van Horne St - (multi-way)
Maple St	West	Pacific Av
Marcy Av	North	Communipaw Av
Marcus St	East	Garfield Av
Marin Blvd	Both	Sixteenth St - (multi-way)
Marion Pl	East	West Side Av
Martin Luther King Dr	North and south	Myrtle Av - (multi-way)
Martorano Way	South	Carbon Pl
Martorano Way	North	Fisk St
Maxwell St	West	Coles St
McAdoo Av	East and west	Fowler Av - (multi-way)
McAdoo Av	East	Rose Av
McAdoo Av	East	Rutgers Av
McAdoo Av	West	Sterling Av - (multi-way)
McMartin Ct	North	Lyon Ct (E/W)
McPherson Pl	South	Newark Av
McWilliams Av	South	Eighth St - (multi-way)
Mead Av	North	Broadway
Mercer Loop	West and east	Ristaino Dr
Mercer St	West	Barrow St - (multi-way)
Mercer St	West	Grove St - (multi-way)
Mercer St	West	Jersey Av - (multi-way)
Mercer St	West	Monmouth St
Mercer St	West	Varick St - (multi-way)
Merritt St	East	Garfield Av
Merritt St	West	Avenue C - (multi-way)

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Merseles St	North	Newark Av
Merseles St	South	Fourth St - (multi-way)
Miller St	North	Clendenny Av
Miller St	South	Williams Av
Milton Av	North	Charles St
Milton Av	South	Griffith St
Milton Av - (multi-way)	North and south	Lincoln St
Milton Av	North and south	Bowers St
Mina Dr	East	Sayles St
Monitor St	North and south	Johnston Av
Monmouth St	North	Eighth St - (multi-way)
Monmouth St	North	Fifth St - (multi-way)
Monmouth St	North	Fourth St - (multi-way)
Monmouth St	North	Seventh St - (multi-way)
Monmouth St	North	Sixth St - (multi-way)
Monmouth St	North	Tenth St - (multi-way)
Monmouth St	North	Third St - (multi-way)
Monmouth St	North	Thirteenth St - (multi-way)
Monmouth St - (multi-way)	North	York St
Monmouth St	North	Ninth St - (multi-way)
Monmouth St	North	Pavonia Av - (multi-way)
Monmouth St	North and south	Hoboken Av
Montague Pl	West	Palisade Av
Monticello Av	Both	Fairmount Av - (multi-way)
Monticello Av	Both	Storms Av - (multi-way)
Montrose Av	North and south	Carlton Av - (multi-way)
Morgan St	East and west	Warren St - (multi-way)
Morris St	East	Washington St - (multi-way)
Morris St	East	Warren St - (multi-way)
Morton St	North	Clendenny Av
Morton St	South	Williams Av
Mountain Rd	West	Ogden Av - (multi-way)
Msgr. McWilliams Pl	South	Eighth St
Msgr. Wojtycha Dr	East	Grieco Dr
Mulcahy St	East	Avenue C - (multi-way)
Mury Lu Dr	East	Garfield Av
Myrtle Av	East	Arlington Av
Myrtle Av	East	Clerk St
Myrtle Av	East	Garfield Av
Myrtle Av	West	Martin Luther King Dr - (multi-way)
Myrtle Av	West	Bergen Av
Neptune Av	East	Romar Av
Neptune Av	West	Old Bergen Rd
Neptune Av	West	Sayles St
Nesbitt St	South	Reservoir Av
New St	East	Ocean Av
New York Av	North and south	Ravine Av - (multi-way)

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
New York Av	South	North St - (multi-way)
New York Av	South	Congress St - (multi-way)
New York Av	South	South St - (multi-way)
New York Av	South	Bowers St - (multi-way)
New York Av - (multi-way)	South	Griffith St
New York Av	South	Hutton St - (multi-way)
New York Av	South	Franklin St - (multi-way)
New York Av	South	Ferry St - (multi-way)
Ninth St	East	Brunswick St - (multi-way)
Ninth St	East	Coles St - (multi-way)
Ninth St	East	Jersey Av - (multi-way)
Ninth St - (multi-way)	East	Manila Av
Ninth St	East	Marin Blvd
Ninth St	East	Monmouth St
Ninth St	East	West Hamilton Pl - (multi-way)
Ninth St	East	Monmouth St - (multi-way)
Norcroft Rd	East	Sycamore Rd
North St	East	New York Av - (multi-way)
North St	East	Palisade Av
North St	East	Summit Av - (multi-way)
North St	East	Webster Av - (multi-way)
North St	East and west	Columbia Av - (multi-way)
North St	East and west	Liberty Av - (multi-way)
North St	East and west	Terrace Av - (multi-way)
Nunda Av	South	Communipaw Av
Nunda Av	South	Duncan Av
Oak St	West	Martin Luther King Dr
Oak St	West	Bergen Av - (multi-way)
Oakdale Rd	West	Riverview Rd
Oakdale Rd	East	Sycamore Rd
Oakland Av	North and south	Hoboken Av
Oakland Av	North and south	Jefferson Av - (multi-way)
Oakland Av	North and south	St. Paul's Av - (multi-way)
Oakland Av	North	Prospect St
Ogden Av	South	Cuneo Pl
Ogden Av	South	Franklin St - (multi-way)
Ogden Av	South	Mountain Rd - (multi-way)
Ogden Av	North and south	Congress St
Old Bergen Rd	North	McAdoo Av
Olean Av	South	Communipaw Av
Olean Av	South	Duncan Av
Orient Av	East	Bergen Av
Orient Av	East	Martin Luther King Dr
Orient Av	East	Ocean Av
Oxford Av	East	Bergen Av
Oxford Av	East	Sackett St
Pamrapo Av	East	Old Bergen Rd

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Park St	North	Astor Pl - (multi-way)
Park St	North/south	Prescott St - (multi-way)
Parnell Pl	South	McAdoo Av
Passaic Av	North and south	Bleecker St
Passaic Av	North and south	Paterson St
Passaic Av	North	Congress St
Passaic Av	South	South St
Paterson St	West	Summit Av
Pauleson Ct	West	Foxhound Ct
Pavonia Av - (multi-way)	East and west	Coles St
Pavonia Av	East	Manila Av - (multi-way)
Pavonia Av	East and west	Monmouth St
Pavonia Av	East	Newark Av
Pavonia Av	East and west	Tonnele Av
Pavonia Av	East	W Hamilton Pl - (multi-way)
Pavonia Av	West	West Side Av - (multi-way)
Pavonia Av	West	Giles Av
Pavonia Av	West	Brunswick St - (multi-way)
Pavonia Av	East and West	Monmouth St - (multi-way)
Pearl St	East	Greene St
Pearl St	West	Washington St
Pearsall Av	East	Romar Av
Pearsall Av	East	Old Bergen Rd
Pearsall Av	East	Ocean Av
Pearsall Av	East	Garfield Av
Pearsall Av	East	Princeton Av
Perry St	North	Hopkins Av
Perry St	South	Saint Paul's Av
Phillip St	North and south	Audrey Zapp Dr/Johnston Av - (multi-way)
Pierce Av	South	Bleecker St
Pierce Av	South	Paterson St
Pierce Av	South	South St
Pine St	South	Lafayette St
Pine St	South and north	Johnston Av
Pine St	North and south	Communipaw Av
Pine St	South	Maple St
Plainfield Av	South	Duncan Av
Pollock Av	West	Mallory Av
Poplar St	East	Summit Av
Poplar St	East	Central Av
Prescott St	West	Park St - (multi-way)
Prospect St - (multi-way)	West	Lienau Pl
Provost St	North	Second St
Randolph Av	North	Bramhall Av
Randolph Av	North	Carteret Av
Randolph Av	North	Claremont Av

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Randolph Av	North	Harmon St - (multi-way)
Randolph Av	North	Myrtle Av
Randolph Av	North	Union St
Randolph Av	North	Communipaw Av
Ravine Av	East and west	New York Av - (multi-way)
Ravine Av	West	Abbett St
Reserve Av	East	Terrace Av
Reserve Av	East and west	Western Av
Reservoir Av	East	Baldwin Av
Reservoir Av	East	Palisade Av
Richard St	West	Garfield Av
Ring Rd E	North	Ring Rd N
Ring Rd W - (multi-way)	South	Town Sq Pl
Ristaino Dr	South	Montgomery St
River Dr S	North	Newport Pkwy - (multi-way)
River Dr S	South	Ring Rd N
Riverview Rd	North	Pinecrest Rd
Riverview Rd	South	Mina Dr
Robinson Dr	East	Society Hill Dr
Rock St	West	Summit Av
Romaine Av	North	Sip Av
Romaine Av	North	Pavonia Av
Romaine Av	North	Broadway
Romar Av	North	Greenville Av
Roosevelt Av	East	Mallory Av - (multi-way)
Roosevelt Av	East	West Side Av
Roosevelt Stadium Ct	West	Foxhound Ct
Rose Av	North and south	Claremont Av
Rose Av	North and south	Orient Av
Rose Av	South	Grant Av
Rose Av	North	Warner Av
Rose Av	North and south	Woodlawn Av
Ruby Ct	North	Lyon Ct (E/W)
Rutgers Av	North	Stevens Av
Rutgers Av	North	Van Nostrand Av
Rutgers Av	North	Wade St
Rutgers Av	North	Warner Av
Sackett St	North	Atlantic St
Sackett St	North	Bramhall Av - (multi-way)
Sackett St	North	Clinton Av - (multi-way)
Sackett St	North	Communipaw Av
Sackett St	North	Union St
Saddlewood Ct	North	Second St
St. Paul's Av	East and west	Liberty Av - (multi-way)
St. Paul's Av	West	Concord St - (multi-way)
St. Paul's Av	West	Oakland Av - (multi-way)
St. Paul's Av	West	Central Av

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
St. Paul's Av	West	Summit Av
St. Paul's Av	East and west	James Av - (multi-way)
Sanford Pl	East	Summit Av
Scott St	South	Greenville Av
Scott St	North	Linden Av
Seaview Av	East	Old Bergen Rd
Seaview Av	East	Ocean Av
Seaview Av	East	Garfield Av
Seaview Av	West	Romar Av
Second St	West	Brunswick St - (multi-way)
Second St	West	Coles St
Second St	West	Erie St - (multiway)
Second St	West	Jersey Av - (multi-way)
Second St	West	Manila Av - (multi-way)
Second St	West	Marin Blvd
Second St	West	Merseles St
Second St	West	Warren St - (multi-way)
Second St	West	Coles St - (multi-way)
Seidler St	South	Bramhall Av
Seidler St	South	Clinton Av
Senate Pl	South	Newark Av
Service Rd	South	Stevens Av
Seventeenth St	East and west	Coles St - (multi-way)
Seventeenth St	East	Jersey Av
Seventh St	East	Coles St - (multi-way)
Seventh St	East	Division St - (multi-way)
Seventh St	East	Erie St - (multi-way)
Seventh St	East	Jersey Av - (multi-way)
Seventh St	East	Monmouth St - (multi-way)
Seventh St	East and west	Manila Av - (multi-way)
Sherman Av	North	Bowers St - (multi-way)
Sherman Av	North	Congress St - (multi-way)
Sherman Av	North	Franklin St (multi-way)
Sherman Av	North	Griffith St - (multi-way)
Sherman Av	North	North St
Sherman Pl	West	Sanford Pl
Sherman Av	North	South St
Sherman Pl	West	Summit Av
Sixteenth St	East and west	Coles St - (multi-way)
Sixteenth St	East	Marin Blvd - (multi-way)
Sixth St	West	Brunswick - (multi-way)
Sixth St - (multi-way)	West	Coles St
Sixth St	West	Division St - (multi-way)
Sixth St	West	Monmouth St - (multi-way)
Sixth St	West	Newark Av
Skillman Av	South	Saint Paul's Av
Skillman Av	South	Van Winkle Av

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Skyline Dr	West	Garfield Av
Smit Ct	West	Atlas Ct
Smit Ct	West	Tellicherry Ct
Smith St	West	Bergen Av
South St	East	Cambridge Av - (multi-way)
South St	East	Hancock Av - (multi-way)
South St	East	New York Av - (multi-way)
South St	East	Ogden Av
Spring St	North	McAdoo Av
Spruce St	East	Collard St
Stagg St	West	Liberty Av
Stanfield Ln	North	Gates Av
Stanfield Ln	South	Custer Av
State St	East	Grand St
State St	West	Cornelison Av
Stegman St	East	Garfield Av
Stegman St	West	Van Cleef St
Sterling Av - (multi-way)	North and south	Fulton Av
Sterling Av	South	McAdoo Av - (multi-way)
Steuben St	East and west	Warren St - (multiway)
Steuben St	East	Washington St
Steuben St	West	Marin Blvd
Stevens Av	West	Martin Luther King Dr
Stevens Av	West	Fowler Av
Stevens Av	West	Sterling Av
Storms Av	East	Monticello Av - (multi-way)
Storms Av	South	Fairmount Av
Stuyvesant Av	West	West Side Av
Suburbia Dr	South	Bartholdi Av
Suburbia Ct	East	Suburbia Dr
Sullivan Dr	South	Bartholdi Av
Summit Av	North and South	Grace St - (multi-way)
Summit Av	North and south	Howie Fink Way (formerly Pershing Plz) - (multi-way)
Summit Av	North and South	Hague St - (multi-way)
Summit Av	North and South	Irving St - (multi-way)
Summit Av	North and South	Leonard St - (multi-way)
Summit Av	North and South	North St - (multi-way)
Summit Av	South	Baldwin Av
Surry Ct	South	Smit Ct
Sussex St	East and west	Van Vorst St
Sussex St	East	Marin Blvd
Sussex St - (multi-way)	West	Warren St
Sussex St	West	Washington St - (multi-way)
Suydam Av	North	Communipaw Av
Swan Ct	North	Robinson Dr
Swan Ct	South	Tottenham Ct

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Sycamore Rd	North	Bartholdi Av
Sycamore Rd	North and south	Mina Dr
Tellicherry Ct	North	Robinson Dr
Tellicherry Ct	North	Smit Ct
Tenth St	East and west	Brunswick St - (multi-way)
Tenth St	East and west	Coles St
Tenth St	East and west	Jersey Av - (multi-way)
Tenth St	East and west	Manila Av - (multi-way)
Tenth St	East and west	Monmouth St - (multi-way)
Terhune Av	East	Fowler Av - (multi-way)
Terrace Av	South	Manhattan Av
Terrace Av	North and south	North St - (multi-way)
Terrace Av	North and south	Lincoln St - (multi-way)
Theo. Conrad Dr	West	Burma Rd
Third St	East	Brunswick St
Third St	East	Coles St - (multi-way)
Third St	East	Colgate St - (multi-way)
Third St	East	Erie St - (multi-way)
Third St	East	Jersey Av - (multi-way)
Third St	East	Manila Av
Third St	East	Monmouth St - (multi-way)
Third St	East	Newark Av
Thirteenth St	East and west	Provost St
Thirteenth St	East	Coles St
Thirteenth St	West	Marin Blvd
Thirteenth St	West	Monmouth St - (multi-way)
Thorne St	East	Liberty Av
Thorne St	East	Terrace Av
Tonnele Av	South	Van Reypen St
Tottenham Ct	North	Robinson Dr
Towers St	North	Culver Av
Town Sq Pl - (multi-way)	East	Ring Rd W
Trenton St	West	Chestnut Av
Tuers Av	North	Academy Av - (multi-way)
Tuers Av	North	Mercer St
Tuers Av	North	Newkirk St
Tuers Av	North	Vroom St
Twelfth Marginal St	West	Coles St
Tyson Ln	West	Kennedy Blvd
Union St - (multi-way)	West	Arlington Av
Van Cleef St	South	Armstrong Av
Van Cleef St	North	Dwight St
Van Cleef St	North and south	Fulton Av
Van Cleef St	South	Stegman St
Van Cleef St	North and south	Wegman Pkwy
Van Cleef St	North and south	Woodlawn Av
Van Horne St	North	Lafayette St

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Van Horne St	North	Ash St
Van Horne St	North	Communipaw Av
Van Horne St	North	Maple St - (multi-way)
Van Horne St	North and south	Johnston Av
Van Nostrand Av	East	Sterling Av
Van Nostrand Av	East	Martin Luther King Dr
Van Nostrand Av	East	Garfield Av
Van Reipen Av	East	Summit Av
Van Reipen Av	West	Tonnele Av
Van Vorst St	North and south	Grand St
Van Vorst St	North and south	Morris St
Van Wagenen Av	South	Saint Paul's Av
Van Wagenen Av	South	Stuyvesant Av
Van Wagenen Av	South and north	Broadway - (multi-way)
Van Wagenen Av	South	Pavonia Av
Van Wagenen Av	South	Sip Av
Van Winkle Av - (multi-way)	East	Liberty Av
Van Winkle Av	West	Senate Pl
Varick St	South	Bright St - (multi-way)
Varick St	South	Mercer St - (multi-way)
Varick St - (multi-way)	South	York St
Vreeland Ter	West	Garfield Av
Vroom St	East	Gray St
Vroom St	East	Summit Av
Vroom St	East	Baldwin Av
Vroom St	West	Van Reypen St
W Hamilton Pl	North	Pavonia Av - (multi-way)
Wade St	East	Ocean Av
Waldo Av	North	Newark Av
Wales Av	South	Logan Av
Wallis Av	South	Logan Av
Wallis Av	South	Broadway
Warner Av	West	Martin Luther King Dr
Warren St	North	Second St - (multi-way)
Warren St	North and south	Bay St - (multi-way)
Warren St	North and south	Dudley St - (multi-way)
Warren St	North and south	First St - (multi-way)
Warren St	North and south	Morgan St - (multi-way)
Warren St	North and south	Morris St - (multi-way)
Warren St	North and south	Steuben St - (multiway)
Warren St	South	York St - (multi-way)
Warren St - (multi-way)	South	Sussex St
Washburn St	East and west	Baldwin Av
Washington St	North and south	Dudley St - (multi-way)
Washington St	North and south	Morris St - (multi-way)
Washington St	North and south	Sussex St - (multi-way)
Washington St - (multi-way)	North and south	York St

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
Water St	South	Fisk St
Waverly St	East	Oakland Av
Waverly St	East	Baldwin Av
Waverly St	East	Palisade Av
Wayne St - (multi-way)	East	Barrow St
Wayne St	East	Jersey Av - (multi-way)
Wayne St	East	Merseles St
Webster Av	North/south	North St - (multi-way)
Wegman Ct	West	Garfield Av
Weldon St	North	DeKalb Av
Weldon St	North	Stuyvesant Av
West Hamilton Pl	North	Ninth St - (multi-way)
West Side Av	North and south	Pavonia Av - (multi-way)
West View Ct	North	Broadman Pkwy
West View Ct	South	Culver Av
Western Av	South	Manhattan Av
Westervelt Pl	East	Grand St
Whitman Av	North	Sip Av
Whiton St	North	Lafayette St
Whiton St	North	Maple St
Whiton St	North and south	Ash St
Whiton St	North	Communipaw Av
Whiton St	North	Johnston Av
Wilkinson Av	Both	Arlington Av - (multi-way)
Wilkinson Av	East	Garfield Av
Wilkinson Av	West	Martin Luther King Dr
Wilkinson Av	West	Bergen Av
Williams Av	West	Bennett St
Williams Av	West	Mallory Av
Wilson St	South	Jersey City Blvd- Multi
Winfield Av	West	Romar Av
Winfield Av	East	Old Bergen Rd
Winfield Av	East	Ocean Av
Winfield Av	East	Garfield Av
Winfield Av	East	Princeton Av
Woodland Av	North	Greenville Av
Woodlawn Av	East	Bergen Av - (multi-way)
Woodlawn Av	East	Sterling Av
Woodlawn Av	East	Martin Luther King Dr
Woodlawn Av	East	Ocean Av
Woodward St	South	Johnston Av
Woodward St	North and south	Communipaw Av
Wright Av	North	Broadway
Xavier Ct	North	Smit Ct
Yale Av	East	Mallory Av
Yale Av	East	West Side Av
York St	East	Barrow St - (multi-way)

Stop Intersections		
Street 1 (Stop Sign On)	**Direction of Travel**	**Street 2 (At Intersection)**
York St	East	Jersey Av - (multi-way)
York St	East	Warren St - (multi-way)
York St	East	Washington St - (multi-way)
York St - (multi-way)	East	Monmouth St
York St - (multi-way)	East	Varick St
Zabriskie St	East	Central Av
Zabriskie St	East and west	Liberty Av - (multi-way)
Zabriskie St	East and west	Terrace Av
Zabriskie St	East	Western Av
Zabriskie St	West	Columbia Av - (multi-way)

§ 332-10. Yield intersections. [Amended 9-28-2016 by Ord. No. 16-143]

The intersections listed below are hereby designated as yield intersections. Yield signs shall be installed as provided therein.

Yield Intersectionsqc		
Street 1 (Yield Sign On)	**Direction of Travel**	**Street 2 (At Intersection of)**
Eighteenth St	West to north	Coles St
Fairmount Av channelization lane	South	Jewett Av
Ivy Pl	West	Summit Av

§ 332-11. Lane use reservations. [Amended 5-22-2019 by Ord. No. 19-049]

The lane locations listed below are hereby designated as lane use reservations, and traffic shall move only as indicated.

Lane Use Reservations				
Street 1	**Approach**	**Street 2**	**Lane Reserved**	**Purpose**
Baldwin Av	North	Academy St	Left	Left turn
	South	Newark Av	Left	Left turn
Bergen Av	North	Montgomery St	Center	Straight
	North	Montgomery St	Right	Right turn
	North	Montgomery St	Left	Left turn
	South	Montgomery St	Right	Right turn
	South	Sip Av	2 Center	Straight
	South	Sip Av	Left	Left turn
	South	Sip Av	Right	Right turn
Broadway	West	Tonnele Av	Right	Right turn
Center St	North	Columbus Dr	Left	Left turn
	North	Columbus Dr	Center and right	Right turn
	North	Montgomery St	Left	Left turn and straight
	North	Montgomery St	Center	Straight
	North	Montgomery St	Right	Straight and right turn
Communipaw Av	East	Grand St	Left	Left turn
	West	Grand St	Left	Left turn
	East	Route 440	2 Left	Left turn
Danforth Av	West	West Side Av	Left	Left turn
	West	Sullivan Dr	Right	Right turn
Eighteenth St	East	Marin Blvd	Right	Right turn
Eleventh St viaduct	West	Mall Dr West	Right	Right turn
Erie St	South	Fourteenth St	Left	Left turn
Garfield Av	North	Bayview Av	Left	Left turn
	South	Bayview Av	Right	Right turn
Grand St	West	Jersey Av	Left	Left turn
	East	Communipaw Av	Right	Right turn
	East	Skinner Dr	Left	Left turn
	East	Summit Av	Left	Left turn
	West	Woodward St	Left	Left turn
	West	Barbara Pl	Left	Left turn
	East	Colden St	Left	Left turn
Jersey Av	South	Fourteenth St	Left	Left turn
Magnolia Av	West	Summit Av	Left	Left turn
Manhattan Av	West	Kennedy Blvd	Right	Right turn
Marin Blvd	North	Columbus Dr	Left	Left turn
	South	Eighteenth St	Right	Right turn
	South	Eighteenth St	Center	Straight
	South	Eighteenth St	Left	Left turn
	South	Sixth St	Right	Right turn
Merritt St	West	Ocean Av	Left	Left turn
Monmouth St	North	Columbus Dr	Right	Right turn
	South	Newark Av	Left	Left turn

Lane Use Reservations				
Street 1	**Approach**	**Street 2**	**Lane Reserved**	**Purpose**
Montgomery St	East	Orchard St	Left	Left turn
	West	Bergen Av	Left	Left turn
	East	Bergen Av	Center	Straight
	East	Bergen Av	Left	Left turn
	East	Bergen Av	Right	Right turn
	West	Jersey Av	Right	Right turn
	West	Jersey Av	Center	Straight
	West	Jersey Av	Left	Left turn
Morris St	West	Greene St	Right	Right turn
	East	Hudson St	Right	Right turn
Newark Av	East	Palisade Av	Right	Right turn
	West	Palisade Av	Left	Left turn
	East	Pavonia Av	Left	Left turn
	West	Seventh St	Left	Left turn
Newport Pkwy	West	Washington Blvd	Left	Left turn
	East	Washington Blvd	Left	Left turn
Pavonia Av	West	Summit Av	Left	Left turn
Phillip St	North	Jersey City Blvd	Left	Left turn
	North	Main entrance of Liberty Science Center	Left	Left turn
Secaucus Rd	South	Kennedy Blvd	Right	Right turn
Second St	West	Marin Blvd	Right	Right turn
Sip Av	East	Bergen Av	Left	Left turn
	East starting at Bergen Av	Transportation Center driveway	Inside/center	Buses only
	West	Bergen Av	Left	Left turn
	West starting at Bergen Av	Transportation Center driveway	Inside/center	Buses only
	East	West Side Av	Left	Left turn
Sip Av	West	West Side Av	Left	Left turn
Sixth St	East	Marin Blvd	Left	Left turn
	East	Marin Blvd	Right	Right turn
Stadium Way	West	Route 440	Left	Left turn
Stegman St	East	Martin Luther King Dr	Left	Left turn
	East	Martin Luther King Dr	Right	Right and straight
Summit Av	North	Sip Av	Right	Right turn
	North	Grand St	Left	Left turn
	North	Grand St	Right	Right turn
	South	State Highway 139	Left	Left turn
Tonnele Av	North	Broadway	Right	Right turn
Washington Blvd	North	Fourteenth St	Right	Right turn
	South	Fourteenth St	2 Left	Left turn

Lane Use Reservations				
Street 1	Approach	Street 2	Lane Reserved	Purpose
West Side Av	North	Montgomery St	Left	Left turn
	South	Montgomery St	Right	Right turn

§ 332-12. No-passing zones. [Amended 11-12-2014 by Ord. No. 14-140]

No-passing zones are hereby established and shall be maintained along those streets or parts of streets listed below.

No-Passing Zones

Academy St

Audrey Zapp Dr

Bergen Av

Broadway

Central Av

Communipaw Av

Danforth Av

Duncan Av

Garfield Av

Grand St

Jackson Av, from Communipaw Avenue to 240 feet south (north building line of the West District Police Precinct)

Jersey Av

Jersey City Blvd

Johnston Av

Mallory Av

Manhattan Av

Martin Luther King Dr

Montgomery St, Marin Blvd to West Side Av

Monticello Av

Newark Av

Ocean Av

Old Bergen Rd

Pacific Av

Palisade Av

Sip Av

Summit Av

Tonnele Av

Washington St

No-Passing Zones

West Side Av

§ 332-13. Truck routes.

Reserved; pending approval from the New Jersey Department of Transportation.

§ 332-14. Trucks prohibited or restricted on certain streets and highways.

Reserved; pending approval from the New Jersey Department of Transportation.

§ 332-15. Driveways.

The driveway locations listed below are designated as entrances and exits only. No person shall drive a vehicle upon such driveway, except as designated.

Driveways	
Limits	**Restriction**
352 to 354 Central Av (Municipal Parking Lot)	Entrance only
388 Central Av (Municipal parking lot)	Entrance only
12 Journal Square (south driveway)	Entrance only
20 Journal Square (Sip Av driveway)	Entrance only

§ 332-16. Closing of streets at certain times for school use.

A. If the Municipal Engineer shall find that a safety problem exists for ingress and egress to any public or private school for the provision of recreational facilities for children attending such school, or both, due to lack of a suitable area surrounding the school, he may close, by regulation, any portion of any street within the block upon which such school is located to the use of through traffic during such time as he shall determine, not to exceed one (1) hour between 7:30 a.m. and 10:00 a.m., two (2) hours between 11:00 a.m. and 2:00 p.m. and one (1) hour between 2:30 p.m. and 4:30 p.m., on any days upon which such school is in session.

B. Such street or portion thereof may be used during said hours for ingress and egress to such school, and for use by the pupils for recreational purposes under proper supervision, and the Director shall provide adequate police facilities for such supervision and for the control of traffic upon such street.

C. Proper warning signs shall be posted in said street indicating that it is so closed and the purpose thereof during the time when it is so closed.

D. In accordance with the provisions of N.J.S.A. 40:67-16.7 and 40:67-16.9 and 3-54(C)(14) of the Code of the City of Jersey City, a Manual of Regulations authorizing the closing of streets or portions thereof within school areas to through traffic is hereby adopted.

E. The list of School Streets shall be incorporated in the Chapter 332 Manual—Traffic and Transportation. The current list of School Streets authorized by Ordinance and/or Regulation within the Chapter 332 Manual—Traffic and Transportation is available for inspection in the Division of Engineering, Traffic and Transportation and/or the Office of the City Clerk.

§ 332-17. Traffic regulations applicable to drivers of public vehicles.

The provision of this Chapter and other applicable provisions of the Code shall apply to the driver of any vehicle owned by or used in the service of the United States Government, this State, any other State, any Territorial or Federal District, any County, municipality or other political subdivision of the United States. No driver shall violate any provision of this Chapter or other applicable provision of the Code, except as otherwise permitted therein or by New Jersey State statute.

§ 332-18. Traffic control devices; Municipal Engineer.

The Municipal Engineer shall place and maintain, in accordance with State statutes, traffic control signs, signals, and devices, when and as under the provisions of this Code, and may place and maintain such additional traffic-control devices and barriers as he may deem necessary to regulate, to guide or warn traffic.

§ 332-19. Reserved.

Editor's note—Ord. No. 20-045, adopted June 24, 2020, adopted the 2020 Edition of the Traffic Control Manual, which replaces the 1995 Edition of the Official Traffic Barricade Manual, effectively repealing § 332-19, which pertained to the Traffic Barricade Manual, and was originally codified by Ord. No. 10-114, adopted September 15, 2010.

§ 332-20. Speed limit construction zones.

The Municipal Engineer may order a reduction of the regular speed limit for periods not to exceed seventy-two (72) hours on segments of roadways during maintenance and repair operations. The Municipal Engineer may order said reduction of speed when he finds the regular speed limit exceeds a safe limit for a maintenance or construction zone. The Municipal Engineer shall place one or more signs indicating the reduced speed limit along the affected roadway and shall conform to all other requirements of N.J.S.A. 39:4-98.2.

§ 332-20.1. Closing of Newark Avenue from Barrow Street to Grove Street and Erie Street from Newark Avenue to Bay Street. [Added 7-16-2014 by Ord. No. 14-075]

A. The Director of Architecture, Engineering, Traffic and Transportation for the City of Jersey City is hereby authorized to provide by regulation (No. 14-006) for the closing of Newark Avenue from Barrow Street to Grove Street and Erie Street from Newark Avenue to Bay Street [Plaza], daily, for a period up to one (1) year for the preservation of the public safety, health or welfare, subject to the conditions set forth in this section.

B. Conditions.

(1) No source of sound from any amplifier shall be permitted on the Plaza or from any surrounding building, business, or establishment which is audible on the Plaza.

(2) Restaurant outdoor table service shall be permitted within the Plaza, but only directly in front of the restaurant and if they provide their own tables and chairs.

(3) Delivery by motor vehicle may occur within the Plaza but only during the hours of 12:00 a.m. and 3:00 p.m., daily.

(4) Garbage, recycling pick-up and street cleaning within the Plaza should be scheduled prior to 3:00 p.m., Monday through Friday.

(5) Hours: Motor vehicles shall be prohibited within the Plaza between 3 p.m. to midnight, Monday through Friday and between 12:00 a.m. to midnight, Saturday and Sunday.

(6) Traffic and pedestrian walk signals shall be adjusted at the Grove/Newark and the Grove/Christopher Columbus intersections within the Plaza.

(7) Reasonable accommodation shall be made within the Plaza for medical offices or other facilities with any special ADA compliance needs.

C. This section shall be enforced by the Division of Cultural Affairs and the Division of Traffic and Transportation.

D. The Division of Cultural Affairs shall prepare a report containing the following information: 1) a business survey demonstrating the increased revenue for the businesses within the plaza; 2) a police accident report demonstrating either stable or increased safety at Barrow/Newark, Bay/Newark, Bay/Grove (Manila), Morgan/Grove intersections; and 3) community feedback from two (2) community meetings to be scheduled at the second and fourth month. This section may be renewed upon the review of the reports and approval by Ordinance of the Municipal Council.

E. The City shall provide for the posting of proper warning signs of such closing in any street or portion thereof during the time the same is closed in pursuance thereof.

ARTICLE III
Parking, Standing and Stopping

§ 332-21. Regulations not exclusive.

The provisions of this Article imposing a time limit on parking shall not relieve any person of the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing or parking of vehicles as set forth in N.J.S.A. 39:4-138, any other New Jersey statute or as hereinafter provided.

§ 332-22. Parking prohibited at all times. [Amended 11-10-2009 by Ord. No. 09-115; 4-28-2010 by Ord. Nos. 10-058, 10-059; 6-23-2010 by Ord. No. 10-079; 6-15-2011 by Ord. No. 11-060, Ord. No. 11-061, Ord. No. 11-063; 11-9-2011 by Ord. No. 11-140; 12-14-2011 by Ord. No. 11-145; 5-9-2012 by Ord. No. 12-062; 10-24-2012 by Ord. No. 12-136; 04-24-2013 by Ord. No. 13-044; 2-11-2014 by Ord. No. 14-013; 5-28-2014 by Ord. No. 14-053; 6-11-2014 by Ord. No. 14-061; 7-16-2014 by Ord. No. 14-078; 9-10-2014 by Ord. No. 14-094; 11-12-2014 by Ord. No. 14-140; 5-27-2015 by Ord. No. 15-074; 1-27-2016 by Ord. No. 16-001; 1-27-2016 by Ord. No. 16-002; 4-27-16 by Ord. No. 16-063; 8-17-2016 by Ord. No. 16-109; 12-14-2016 by Ord. No. 16-181; 2-22-2017 by Ord. No. 17-016; 4-12-2017 by Ord. No. 17-035; 5-24-2017 by Ord. No. 17-060; 6-28-2017 by Ord. No. 17-078; 7-19-2017 by Ord. No. 17-093; 8-16-2017 by Ord.

No. 17-102; 9-27-2017 by Ord. No. 17-126; 11-16-2017 by Ord. No. 17-149; 6-27-2018 by Ord. No 18-061; 6-27-2018 by Ord. No. 18-062; 8-15-2018 by Ord. No. 18-086; 10-10-2018 by Ord. No. 18-116; 10-24-2018 by Ord. No. 18-120; 1-9-2019 by Ord. No. 18-147; 1-24-2019 by Ord. No. 19-003; 4-10-2019 by Ord. No. 19-022; 4-24-2019 by Ord. No. 19-031; 5-22-2019 by Ord. No. 19-049; 7-17-2019 by Ord. No. 19-084; 9-25-2019 by Ord. No. 19-119; 1-8-2020 by Ord. No. 19-167; 1-23-2020 by Ord. No. 20-002; 2-13-2020 by Ord. No. 20-008; 6-24-2020 by Ord. No. 20-046; 8-12-2020 by Ord. No. 20-056; 9-10-2020 by Ord. No. 20-068; 9-10-2020 by Ord. No. 20-069; 12-2-2020 by Ord. No. 20-098; 2-10-2021 by Ord. No. 21-006; 2-24-2021 by Ord. No. 21-011; 3-24-2021 by Ord. No. 21-019; 4-28-2021 by Ord. No. 21-025; 9-22-2021 by Ord. No. 21-065; 3-9-2022 by Ord. No. 22-019; 10-26-2022 by Ord. No. 22-087; 10-26-2022 by Ord. No. 22-088; 1-11-2023 by Ord. No. 22-108; 3-23-2023 by ord. No. 23-023; 6-28-2023 by Ord. No. 23-058; 7-12-2023 by Ord. No. 23-067; 9-20-2023 by Ord. No. 23-087; 9-20-2023 by Ord. No. 23-088; 9-20-2023 by Ord. No. 23-089; 10-25-2023 by Ord. No. 23-099; 10-25-2023 by Ord. No. 23-102; 11-29-2023 by Ord. No. 23-112; 11-29-2023 by Ord. No. 23-113; 12-13-2023 by Ord. No. 23-121; 2-22-2024 by Ord. No. 24-006; 5-8-2024 by Ord. No. 24-029; 4-9-2025 by Ord. No. 25-035; 12-10-2025 by Ord. No. 25-128]

No person shall park a vehicle at any time upon any of the streets, or parts thereof, listed below.

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Abbett St	West	Entire length
Academy Street	North	Mill Rd to Tuers Av
	South	Baldwin Av to Mill Rd
Aetna St	South	400 feet west of Jersey Av 60 feet west
Amity St	Both	Entire length
Ann St	West	172 feet west of Tonnele Av 100 feet counterclockwise
Arlington Av	West	Grand St to Communipaw Av
Ash St	North	Pacific Av to Whiton St
Astor Pl	North	Summit Av to Park St
Audrey Zapp Dr	Both	The light rail crossing east of Garabrant St to the Hudson River
Audubon Av	North	520 feet west of Kennedy Blvd 20 feet west
Baldwin Av	East	Summit Av to Rock St
		South end PATH cut bridge to Route 139
		Hopkins Av to Beacon Av
		Waverly St to Prospect St
	West	Prospect St to Route 139
		Newark Av to south end PATH cut bridge
		Rock St to Academy St
		Montgomery St to Summit Av
Barbara Pl	Embank-ment	Grand St to Pacific Av
Bartholdi Av	South	Sullivan Dr to Romar Av
Bay St	North	130 feet west of Warren St 25 feet west
	South	35 feet west of Greene St 100 feet west
Bayside Ter	East	Richard St to the southern terminus
Bennett St	Both	Clendenny Av to Ege Av

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Bergen Av	East	Duncan Av to Fairmount Av
		Vroom St 50 feet north
	West	200 feet south of Newkirk St 60 feet south
		190 feet south of Academy St 50 feet south
		140 feet south of Vroom St 50 feet south
		Montgomery St 150 feet south
		Van Nostrand Av to Bayview Av
Berry Lane	West	175 feet south of Communipaw Av 51 feet south
Bevan St	West	Route 139 to Saint Paul's Av
Bishop St	South	583 feet west of Grand St to 606 feet west
		626 feet west of Grand St to 805 feet west
Bleecker St	North	Beginning at a point approximately 190 feet west of the westerly curb line of Summit Av and extending to a point 25 feet westerly therefrom
Boland St	East	Entire length
	West	75 feet south of Montgomery St to Fairmount Av
Boltwood St	North	Entire length
Bowers St	Both	Palisade Av to Ogden Av
Bramhall Av	North	Grand St 70 feet west
Bright St	South	Center St to Bates St
	North	142 feet west of Florence St 266 feet west
Broadway	Both	Route 1 & 9 west 345 feet
	South	Tonnele Av to Romaine Av
Carbon Pl	North	West Side Av and extending 170 feet west
	South	Entire length
Carroll Av	Both	Entire length
Cator Av	North	Garfield Av 75 feet west
		75 feet east of Ocean Av to Rutgers Av
	South	Garfield Av to Ocean Av
		547 feet west of Ocean Av to 26 feet westerly therefrom
Caven Point Av	Both	Entire length
Center St	Both	Entire length
Central Av	West	Pavonia Av to a point 120 feet north thereof
		Hoboken Av to Route 139
Chapel Av	Both	Route 185 right of way to Caven Point Rd
Charlotte Av	West	Howell St to Saint Paul's Av
Claremont Av	North	Halstead St to West Side Av
		305 feet west of West Side Av 160 feet west
		Greenwich Dr to Water St
	South	Water St to Mallory Av
		West Side Av to a point 325 feet east thereof
Clendenny Av	Both	Marcy Av to Route 440
Clifton Pl	South	Summit Av 281 feet east
Clinton Av	South	Jackson Av to a point 50 feet west
	North	Jackson Av to Seidler St
		Bergen Av to West Side Av
Colden St	South	Prior St to Freemont St

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Coles St	Both	Newark Av to First St
	East	Fourteenth St to Sixteenth St
	Both	Sixteenth St to Seventeenth St
Colgate St	Both	Montgomery Street to York Street
Collard St	East	Laidlaw Av north to the dead end
Colony Rd	Both	Port Jersey to northern terminus
Columbus Dr	Both	Merseles St to Brunswick St
	South	Grove St 160 feet west
	South	95 feet east of Barrow St 60 feet east
	North	Grove St 300 feet west
	North	55 feet east of Marin Blvd 70 feet east
	North	267 feet east of Marin Blvd 40 feet east
Communipaw Av	Both	Garfield Av to Park St
	North	Crescent Av to Monticello Av
		Kennedy Blvd 150 feet east
		West Side Av to Marcy Av
	South	Suydam Av east 350 feet
		Kennedy Blvd 150 feet east
		Madison Av to Martin Luther King Dr
		West Side Av to Mallory Av
Congress St	South	Ogden Av to Paterson Plank Rd
Cook St	West	Entire length
Cornelison Av	East	Fairmont Av to Summit Av
		Montgomery St to Wayne St
	West	Wayne St to Fairmont Av
Cottage St	North	Summit Av to Kennedy Blvd
	South	Kennedy Blvd east 100 feet
Crawford St	North	Summit Av to the dead end
Cubberly Pl	Both	Entire length
Culver Av	Both	Beginning at the easterly curbline of Route 440 and extending 110 feet easterly
	South	136 feet east of College Av 212 feet east
		232 feet east of College St 49 feet east
		245 feet west of Kennedy Blvd 125 feet west
Dales Av	West	opposite the south building of 38 Dales Av 85 feet north
Danforth Av	North	388 feet east of Ocean Av 25 feet east
		170 feet east of Ocean Av and extending 25 feet east
DeKalb Av	Both	Kennedy Blvd to the eastern terminus
	North	West Side Av to Kennedy Blvd
Dick St	Both	Entire length
Douglas and Arthur Skinner Memorial Dr (F/K/A: Jersey Av)	East	130 feet south of Grand Street to 532 feet south
Duncan Av	South	Route 1-9 to the western terminus
		Route 1-9 to Lookout Dr
Dwight St	South	411 feet east of Martin Luther King Dr 20 feet east
East St	East	Entire length

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
East View Ct	East	Entire length
Eighteenth St	North	Jersey Av to Coles St
	South	Jersey Av 119 feet west
Elm St	South	110 feet west of Kennedy Blvd west to dead end
Enos Pl	East	125 feet south of Sip Av 22 south
Erie St	West	Boyle Plaza 75 feet south
		134 feet south of Ninth St 53 feet south
Essex St	North	Between Hudson St and the eastern terminus
	South	Hudson St to Washington St
		Warren St to Van Vorst St
Exchange Pl	Both	Entire length
Fairmount Av	North	Cornelison Av to the western leg of Amity St
		Eastern leg of Amity St to Grand St
		171 feet east of Bergen Av 25 feet east
	South	Bergen Av to Monticello Av
		Westerly curbline of Fairview Av and extending 48 feet westerly
Ferry St	North	Webster Av to New York Av
First St	South	347 feet east of Marin Boulevard 20 feet east
Fisk St	Both	Martorano Way to Route 440
Florence St Ext	North	Montgomery St to a point 290 feet west
	South	Montgomery St to a point 225 feet west
Forrest St	North	Ocean Av to Clerk St
		Pacific Av to Halladay St
Fourteenth St	North	West of Coles St
Foxhound Ct	East	Frances Ct to Roosevelt Stadium Ct
Franklin St	Both	Paterson Plank Rd to Ogden Av
	North	Palisade Av to Sherman Av
Freemont St	West	Colden St to Bright St
Front St	East	Entire length

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Garfield Av	East	Cator Av to 150 ft south of the projected south east curb line of Union St
		1,000 ft north of the projected north east curb line of Union St to Communipaw Av
		120 feet north of the projected north east curb line of Fifty-Fifth St 75 ft north
	West	Bidwell Av to Myrtle Av
		Carteret Av to Union St
		Communipaw Av to Grand St
Gates Av	North	Ocean Av to Old Bergen Rd
	South	35 feet west of Kennedy Blvd 25 feet west
Glenn Ln	North	Entire length
Glenwood Av	North	346 feet east of Kennedy Blvd 25 feet east
Graham St	North	Central Av to Kennedy Blvd
Grand St	North	Grove St to Barrow St
		Westervelt St to Arlington Av
		Fairmount Av to Prior St
	South	Barbara Pl to Merseles St
		Ivy Pl to Arlington Av
		Pacific Av to Jersey Av
Greene St	East	Essex St to Columbus Dr
	West	Montgomery St to southern terminus
		60 feet north of Pearl St 90 feet north
		35 feet south of Morgan St 90 feet south
		30 feet north of Morgan St 30 feet north
		43 feet south of Bay St 45 feet south
Grieco Dr	East	145 feet north of Msgr. Wojtycha Dr to a point 51 feet counterclockwise
	West	145 feet north of Msgr. Wojtycha Dr to a point 112 feet counterclockwise
Grove St	West	Hoboken City Line to 133 feet south
		238 feet south of the Hoboken City Line to 498 feet south of Hoboken City Line
		620 feet south of Hoboken City Line south to Eighteenth St
		Sussex St to Morris Blvd
	East	Sixteenth St 150 feet north of Eighteenth St
		238 feet north of Eighteenth St to 429 feet north of Eighteenth St
		554 feet north of Eighteenth St to Hoboken City Line
Halleck Av	Both	Broadway north to dead end
Halstead St	Both	Entire length
Harbor Dr	Both	Route 440 to Industrial Dr
Herbert Pl	Both	Entire length
High St	North	Summit Av east to the dead end
	South	Baldwin Av east to the dead end
Highview Rd	North	Fowler Av 200 feet west

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Hill St	Both	Entire length
Hoboken Av	North	250 feet west of Monmouth St to Route 139
	South	800 feet east of Route 139 to Route 139
		150 feet east of Summit Av to Summit Av
		49 feet east of Oakland Av 83 feet east
Holland St	Both	Entire length
Homestead Pl	Both	Entire length
Howell St	North	Entire length
Howie Fink Way	Both	Entire length
Hudson Ct	East	Robinson Dr to Y intersection
	South	90 degree bend to Society Hill Dr
	North	Society Hill Dr to 90 degree bend
	West	Designated Parking Spaces to Y intersection Designated Parking Spaces to 90 degree bend
Hudson St	Both	Columbus Dr to Essex St
	West	Essex St to Morris Canal
Hutton St	South	Central Av to Cambridge Av
Industrial Dr	Both	Port Jersey Blvd to north terminus
Ingwerson Pl	Both	Entire length
Jackson Av	East	Clinton Av to Communipaw Av
	West	Beginning approximately 240 feet south of Communipaw Av (north building line of the West District Police Precinct) to Clinton Av
Jefferson Av	South	35 feet west of the westerly curb line of Palisade Av 27 feet west
Jersey Av	West	First St to Newark Av
	Both	100 feet south of Eighteenth St to Hoboken Av
Johnston Av	South	Cornelison Av to Grand St
	West	Orchard St to Montgomery St
Jones Pl	West	Vroom St north terminus
Journal Square	East	From Sip Avenue to the Boulevard Line
	West	From Sip Avenue to the Boulevard Line
Kearney Av	South	Rose Av, 75 feet west
Kellogg St	Both	Route 440 to west terminus
Kennedy Blvd	South	Tonnele Av 93 feet east
	West	35 feet south of Cottage St 62 feet south
Laidlaw Av	North	Collard St 222 feet east
		Summit Av 95 feet west
		35 feet west of Summit Av 240 feet west
	South	35 feet west of Summit Av 315 feet west
Lyon Ct (E/W)	South	North side; Lyon Ct to easterly, dead end
Lembeck Av	South	Old Bergen Rd to Grieco Dr
Lewis Av	West	Entire length
Liberty Av	West	Newark Av to Van Winkle Av
Lincoln St	South	Columbia Av to Kennedy Blvd
Linden Av	South	Grieco Dr and extending 114 feet east
Long St	East	Entire length
Lott St	South	Central Av to dead end

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Ludlow St	East	Entire length
Magnolia Av	North	Tonnele Av to dead end
Mallory Av	East	Claremont Av 120 feet north
	West	Claremont Av to a point approximately 80 feet south
		Fisk St to Culver Av
Manhattan Av	South	Central Av to Sanford Pl
		Tonnele Av to a point 100 feet east thereof
Manila Av	West	Boyle Plaza to Twelfth St
		Ninth St to Second St
	Both	Twelfth St to Tenth St
Manning Av	Both	Lafayette St to Maple St
	West	Communipaw Av to Lafayette St
Maple St	North	Van Horne St west to the dead end
Marcy Av	Both	Clendenny Av to Communipaw Av
Marin Blvd	East	Grand St to York St
		Mercer St to Morgan St
		Second St to Hoboken city line
	Both	Grand St, south to the Light Rail Crossing
	West	Columbus Dr to First St
		Grand St and Sussex St
		Montgomery St to Wayne St
		Park View and Sussex St
		Second St to a point approximately 625 feet north of Eighteenth St
		Approximately 805 feet north of Eighteenth St and extending to the Hoboken City Line
Maxwell St	Both	Entire length
McPherson Pl	West	Entire length
Merseles St	East	Columbus Dr to Montgomery St
		85 feet south of Montgomery St to Grand St
	West	Columbus Dr to Montgomery St
		Bright St to Grand St
		Newark Av to Fourth St
Mill Rd	East	Academy St to Montgomery St
	West	Academy St to Wayne St
Minerva St	East	Entire length
Monmouth St	East	Wayne St to Columbus Dr
		270 feet north of Grand St 40 feet north
	West	Canal St to Grand St
		Mercer St to First St
	Both	Twelfth St to Thirteenth St
		Hoboken Av 130 feet south
Montague Pl	Both	Entire length

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Montgomery St	North	Colgate St to Merseles St
		300 feet east of Kennedy Blvd 20 feet east
		209 feet west of Jersey Av 94 feet west
		68 feet west of Monmouth St 72 feet west
	South	Fairmount Ter to Kennedy Blvd
		112 feet east of Mill Rd 37 feet east
		Jersey St to Grove St
		105 feet east of Bergen Av to Orchard St
		186 feet south of Monmouth St 101 feet east
Monticello Av	Both	Harrison Av to Communipaw Av
Morgan St	North	Marin Blvd to Warren St
	North	75 feet east of Washington St 55 feet east
	South	Warren St to Washington St
Morris Blvd	W/B median curb	Marin Blvd to St. Peter's St
Morris Pesin Dr	Both	Burma Rd to Liberty State Park entrance
Myrtle Av	North	Ocean Av to Garfield Av
Neptune Av	South	Old Bergen Rd to Garfield Av
Nevin St	East	Entire length
New York Av	Both	Ravine Av to Hoboken City Line
Newark Ave	Both	Chestnut Ave to Brunswick St
	South	Kennedy Blvd east 150 feet
		Kennedy Blvd west 150 feet
	North	Kennedy Blvd east 280 feet
		Summit Av west 180 feet
Newkirk St	Both	Tuers Av to Sip Av
	South	Tuers Av to Summit Av
	North	Baldwin Av to Summit Av
Ninth St	Both	Manila Av to Marin Blvd
	North	184 feet east of Brunswick St to a point 200 feet east
	North	West of Brunswick St
	South	Brunswick St to a point 80 feet west thereof
Oakland Av	East	Newark Av to Hoboken Av
Ocean Av	West	Bramhall Av 70 feet southerly
		95 feet south of Linden Av 25 feet southerly
Ogden Av	East	Congress St to dead end
Old Bergen Rd	West	McAdoo Av to Pamrapo Av
	East	Custer Av to Gates Av
		Lembeck Av to Greenville Av

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Oxford Av	North	West Side Av to Bergen Av
	South	West Side Av to 86 feet east
		107 feet east of West Side Av to 326 feet east
		345 feet east of West Side Av 523 feet east
		543 feet east of West Side Av 657 feet east
		678 feet east of West Side Av 700 feet east
		721 feet east of West Side Av 744 east
		764 feet east of West Side Av 832 feet east
		852 feet east of West Side Av east to Kennedy Blvd
		Kennedy Blvd to Bergen Av
Palisade Av	Both	Route 139 to Washburn St
	East	Saint Paul's Av 77 feet north
	West	Newark Av to Washburn St
		Route 139 north 150 feet
Park St	West	Entire length
Pavonia Av	South	52 feet east of Kennedy Blvd to 92 feet east
Pearl St	North	103 feet west of Greene St 135 feet westerly
Perrine Av	West	Entire length
Phillip St	Both	Entire length
Port Jersey Blvd	Both	Route 440 to the east terminus
Provost St	West	Bay St to Morgan St
Robinson Dr	Both	North side; Lyon Ct to Society Hill Dr
Rock St	South	Entire length
Roosevelt Stadium Ct	North	Foxhound Ct to 90 degree bend
St. Paul's Av	North	114 feet west of St. James Av 80 feet west
	Both	Kennedy Blvd to Skillman Av
St. Peter's St	North	Grand Street to Morris St
	West	Morris St to Sussex St
Sayles St	West	Pearsall Av to Lembeck Av
Seaman Av	Both	Entire length
Senate Pl	West	Dey St to Newark Av
Seventh St	Both	Manila Av to Marin Blvd
Seventh St	South	114 feet east of Division St 88 feet east
		170 feet west of Manila Av 50 feet west
Sip Av	Both	Route 1 & 9 Truck to Freeman Av
Sixteenth St	South	Erie Street to Marin Blvd
		115 feet west of Jersey Av 50 feet west
Sixth St	North	32 feet east of Brunswick St 25 feet east
	South	Manila Av to Marin Blvd
Smit Ct	South	Entire length
	North	Adjacent to designated parking spaces
	East	Terminus to 90 degree bend
Smith St	South	84 feet east of Bergen Av to east terminus
Spring St	West	Entire length
Spruce St	North	Tonnele Av to Liberty Av
Stanfield Ln	West	Gates Av to Custer Av
State St	North	478 feet west of Grand St to 627 feet west
Steuben St	North	Warren St to Washington St

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Storms Av	East	Fairmount Av to a point 75 feet north thereof
	West	Fairmount Av to Jewett Av
Sullivan Dr	West	50 feet south of the projected south east curb line of Grieco Dr to Lembeck Av
	East	121 feet north of Msgr. Wojtycha Dr to Grieco Dr
Summit Av	East	Academy St to Rock St
		Baldwin Av to Montgomery St
		Communipaw Av to Fairmount Av
		200 feet south of Sip Av 118 feet south
		Route 139 to Howie Fink Way
		135 feet south of Magnolia Av 94 feet south
		368 feet south of Sip Av 76 feet south
	West	Fairmount Av to Baldwin Av
		Montgomery St to Sip Av
		118 feet south of Magnolia Av 105 feet south
		Pavonia Av to Van Reipen Av
		Route 139 to Beacon Av
		35 feet north of Laidlaw Av 60 feet north
		Projected northerly curb line of Jefferson Av 90 feet north
		145 feet north of projected northerly curb line of Jefferson Av 35 feet north
		101 feet south of Paterson St 25 feet south
Sussex St	North	St. Peter's to Grove St
	South	Van Vorst St to the western terminus
Tenth St	North	Marin Blvd to Brunswick St
Theodore Conrad Drive	North	325 feet east of Edward Hart Drive clockwise to south side to 325 feet east of Edward Hart Drive
Third St	North	Brunswick Av to Newark Av
Thirteenth St	North	Marin Blvd to Provost St
Tonnele Av	East	Newark Av to Tonnele Av Circle
	West	Saint Paul's Av to Tonnele Av Circle
		Van Winkle Av to Newark Av
Tottenham Ct	North	Opposite designated parking spaces to Lee Ct
Town Square Ring Rd	Outer Curb	Pavonia Av clockwise to River Dr South
Tuers Av	West	Newkirk St to 113 feet south of Vroom St
Twelfth St	Both	Jersey Av to Coles St
Tyson Ln E	Both	Entire length
	West	Entire length
Utica St	Both	Entire length
Van Nostrand Av	South	650 feet east of Sterling Av 25 feet easterly
Van Reipen Av	South	Kennedy Blvd to Summit Av
Van Reypen St	East	Academy St to Highland Av
	West	Academy St to Sip Av
Van Vorst St	West	Grand St to Essex St

Parking Prohibited At All Times		
Name of Street	**Side**	**Limits**
Van Wagenen Av	Both	Entire length within cul-de-sac
	East	Tonnele Circle ramp to Saint Paul's Av
	West	Sip Av to cul-de-sac
Van Winkle Av	Both	James Av to the dead end
	North	James Av to Charlotte Circle
		Kennedy Blvd to Skillman Av
	South	Tonnele Av to Senate Pl
Vroom St	North	Bergen Av to Summit Av
	South	Bergen Av to Van Reypen St
Waldo Av	Both	PATH Cut Bridge to Elizabeth St
Warren St	Both	Entrance to garage at 100 Warren St clockwise to 35 feet north of the fire hydrant opposite 100 Warren St
	East	190 feet north of Montgomery St 60 feet north
Washington Blvd	Both	Second St to Gangemi Dr
	West	255 feet south of the projected northwest curb line of Town Sq Pl 100 feet southerly
Washington St	East	Columbus Dr to Pearl St
	Both	Steuben St to Bay St
	East	Bay St to Second St
Wayne St	Both	Cornelison Av to Mill Rd
Webster Av	West	Ferry St to Prospect St
	East	Ravine Av to Ferry St
	South	Ocean Av to Garfield Av
Welsh Ln	Both	Entire length
West Side Av	East	Cator Av 75 feet south
		Duncan Av 110 feet north
		Fairmount Av 110 feet north
		Oxford Av to Clinton Av
		100 feet north of Saint Paul's Av 412 feet north
	West	Montgomery St 150 feet south
		Yale Av to Claremont Av
West View Ct	East	Broadman Pkwy to Ocean Av
Willard St	South	Entire length
Wilkinson Av	South	Ocean Av to Garfield Av
Wilson St	Both	Jersey City Blvd to Gateway Dr
Winfield Av	North	Romar Av to Sayles St
	South	Kennedy Blvd to Romar Av
Wood Pl	North	Entire length
Woodland Av	West	Greenville Av to Linden Av
York St	North	Greene St to the Hudson River
Zabriskie St	North	Kennedy Blvd to a point 100 feet east thereof

§ 332-23. No stopping or standing. [Amended 5-26-2010 by Ord. No. 10-070; 6-15-2011 by Ord. No. 11-065; 1-9-2013 by Ord. No. 12-166; 5-28-2014 by Ord. No. 14-053; 6-11-2014 by Ord. No. 14-061; 11-12-2014 by Ord. No. 14-140; 1-27-2016 by Ord. No. 16-004; 10-25-2017 by Ord. No. 17-142; 10-10-2018 by Ord. No. 18-116; 5-22-2019 by Ord. No. 19-049; 9-11-2019 by Ord. No. 19-109; 8-12-2020 by Ord. No. 20-056; 9-10-2020 by Ord. No. 20-068; 6-15-2022 by Ord. No. 22-049]

No person shall stop or stand a vehicle upon any of the streets, or parts thereof, listed below.

No Stopping or Standing		
Name of Street	**Side**	**Limits**
Arlington Av	East	Harmon St to Communipaw Av
Avenue "C"	East	Route 440 south 90 feet
	West	Route 440 north 100 feet
Bergen Av	East	Storms Av to Montgomery St
		Newkirk St to Sip Av
	West	170 feet north of Montgomery St to 180 feet south of Montgomery St
Boyle Plaza	Both	Entire length
Bramhall Av	North	Grand St 130 feet east
	South	Ocean Av 240 feet west
Chapel Av	Both	Garfield Av to Caven Point Rd
Claremont Av	North	West Side Av 305 feet west
		465 feet west of West Side Av to Mallory Av
	South	Mallory Av to West Side Av
Columbus Dr	Both	Hudson St to east terminus
Communipaw Av	North	West Side Av to Route 1 & 9
		Park St to Harrison Av
		West Side Av 155 feet east
		139 feet west of Summit Av to Grand St
	South	Arlington Av to Grand St
		Route 440 West Side Av
		Tyson Ln (west portion) to Bergen Av
		108 feet east of Randolph Av to Garfield Av
		127 feet east of Jackson Av to Martin Luther King Dr
	Both	Garfield Av to Berry Ln
Culver Av	North	College Dr 200 feet west of West Side Av
	South	200 feet west of West Side Av to College Dr
Danforth Av	North	West Side Av 370 feet east
	South	Sullivan Dr to Route 440
Duncan Av	North	West Side Av 100 feet east
	South	West Side Av 140 feet west
Eighteenth St	Both	Marin Blvd to Jersey Av
	South	Marin Blvd 750 feet east
Eleventh St viaduct	Both	Entire length
Fairmount Av	North	Boland St to Bergen Av
Fourteenth St	Both	Entire length
Gangemi Dr	Both	Marin Blvd to Washington Blvd
Garfield Av	Both	Communipaw Av to Harmon St
		Wilkinson Av to Bidwell Av
		Communipaw Av to Grand St

No Stopping or Standing		
Name of Street	**Side**	**Limits**
Grand St	North	Ivy Pl to Fairmount Av
		Jersey Av to Merseles St
		Jersey Av 200 feet east
	South	Bramhall Av 155 feet east
		Merseles St to River St (private roadway)
		Summit Av to Garfield Av
		Tidewater St (private street) to Marin Blvd
		Garfield Av to Fairmount Av
Greene St	East	Columbus Dr to Second St
Grove St	Both	Newark Av to Columbus Dr
	East	Sixteenth St 150 feet south
Jersey Av	Both	Tenth St to Fourteenth St
Kennedy Blvd	East	Pavonia Av to Cottage St
		Pavonia Av to Journal Square
	South	Journal Square 200 feet west
		Sip Av to Tonnele Av
	West	Journal Square 138 feet north
		Pavonia Av to Van Reipen Av
Linden Av East	Both	Entire length
Magnolia Av	East	Communipaw Av to Roosevelt Av
	North	Summit Av 370 feet west
	South	Summit Av 183 feet west
Mallory Av	Both	Communipaw Av to Roosevelt Av
Manhattan Av	South	County Rd to Tonnele Av
		Kennedy Blvd 125 feet west
Marin Blvd	East	Beginning 30 feet north at the projection of the northwest corner of Wayne St to Columbus Dr
ML King Dr	West	Northern limit of the West District Police Plaza to a point 130 feet south
Monmouth St	East	Columbus Dr to Second St
Montgomery St	North	Jordan Av to Tuers Av
		Tuers Av to 110 feet west
		Bergen Av 120 feet west
		Kennedy Blvd 340 feet east
		West Side Av 160 feet east
		220 feet west of Tuers Av to Bergen Av
	South	Boland St to Bergen Av
		Jordan Av to Orchard St
		West Side Av 150 feet east
Morris St	Both	Hudson St 150 feet west

No Stopping or Standing		
Name of Street	**Side**	**Limits**
Newark Av	North	Kennedy Blvd 150 feet west
		Monmouth St to Third St
		Palisade Av 200 feet east
		150 feet east to Waldo Av to a point 50 feet east thereof
		240 feet west of Liberty Av to Senate Pl
	South	Chestnut Av to Pavonia Av
		Jersey Av to Columbus Dr
		Kennedy Blvd 103 feet east
		Summit Av 250 feet west
		240 feet west of Liberty Av 50 feet west of railroad crossing
	Both sides	From Grove St to Columbus Dr*
Newport Pkwy	Both	Washington Blvd to Marlin Blvd
	South	35 feet east of Washington Blvd to 255 feet easterly
Palisade Av	East	Newark Av 100 feet north
Pavonia Av	North	Kennedy Blvd to 150 east of Summit Av
	South	Kennedy Boulevard to 52 feet east
		144 feet east of Kennedy Blvd to 150 feet east of Summit Av
Provost St	West	Thirteenth St to Fourteenth St
Sip Av	North	Corbin Av to West Side Av
		Jones St to Bergen Av
		Van Reypen St to Garrison Av
	South	Garrison Av to Jones St
		Whitman Av to West Side Av
Summit Av	East	Communipaw Av 160 feet north
		Hoboken Av 80 feet north
		Newark Av 180 feet south
		Route 139 south 200 feet
	West	Communipaw Av 120 feet north
		Jewett Av 110 feet south
		Newark Av to Cottage St
		Newark Av 180 feet north
Sussex St	North	Greene St to Hudson St
Tonnele Av	West	Berkeley Pl to Route 1 & 9 Circle
		Van Winkle Av to Kennedy Blvd
	East	Sip Av to Route 1 & 9 Circle
Town Square Ring Rd	Inner Curb	Entire length
	Outer Curb	Town Square Pl counterclockwise to River Dr South
Van Vorst St	East	Essex St to Morris St
Washington Blvd	Both	Second St to Newport Parkway
	West	Target entrance south to Fourteenth St

***Note**—The section of Newark from Grove Street to Columbus Drive shall be a tow-away zone and have signs designating the same.

No Stopping or Standing		
Name of Street	**Side**	**Limits**
Washington St	Both	100 feet north of the southern terminus to Dudley St
	East	First St to Montgomery St
	West	First St to Steuben St
West Side Av	East	Belmont Av 125 feet south
		Communipaw Av 105 feet south
		Culver Av to Fisk St
		Danforth Av 110 feet north
		Montgomery St 170 feet north
		Montgomery St 220 feet south
	West	Communipaw Av 125 feet north
		Duncan Av 150 feet north
		Montgomery St 170 feet north
		Montgomery St 80 feet south
		Pollack Av to Culver Av

§ 332-24. Parking prohibited certain hours. [Amended 1-13-2010 by Ord. No. 09-133; 5-26-2010 by Ord. No. 10-070; 6-23-2010 by Ord. No. 10-079; 6-15-2011 by Ord. No. 11-062; 8-10-2011 by Ord. No. 11-078; 8-31-2011 by Ord. No. 11-097; 2-8-2012 by Ord. No. 12-012; 2-22-2012 by Ord. No. 12-019; 3-28-2012 by Ord. No. 12-031; 10-10-2012 by Ord. No. 12-125; 5-29-2013 by Ord. No. 13-062; 10-9-2013 by Ord. No. 13-104; 5-28-2014 by Ord. No. 14-053; 9-23-2014 by Ord. No. 14-114; 10-22-2014 by Ord. No. 14-134; 1-14-2015 by Ord. No. 14-168; 1-28-2015 by Ord. No. 15-004; 2-10-2016 by Ord. No. 16-019; 4-27-16 by Ord. No. 16-063; 9-14-2016 by Ord. No. 16-121; 9-28-2016 by Ord. No. 16-142; 10-12-2016 by Ord. No. 16-150; 10-12-2016 by Ord. No. 16-151; 10-26-2016 by Ord. No. 16-157; 11-22-2016 by Ord. No. 16-179; 12-14-2016 by Ord. No. 16-182; 1-25-2017 by Ord. No. 17-011; 2-22-2017 by Ord. No. 17-016; 4-26-2017 by Ord. No. 17-040; 9-27-2017 by Ord. No. 17-125; 11-16-2017 by Ord. No. 17-148; 11-29-2017 by Ord. No. 17-155; 6-13-2018 by Ord. No. 18-056; 1-24-2019 by Ord. No. 19-002; 4-10-2019 by Ord. No. 19-022; 7-17-2019 by Ord. No. 19-084; 10-23-2019 by Ord. No. 19-140; 2-13-2020 by Ord. No. 20-009; 2-24-2021 by Ord. No. 21-011; 9-22-2021 by Ord. No. 21-062; 4-13-2022 by Ord. No. 22-032; 1-11-2023 by Ord. No. 22-105; 1-11-2023 by Ord. No. 22-108; 1-11-2023 by Ord. No. 22-110; 7-12-2023 by Ord. No. 23-067; 7-12-2023 by Ord. No. 23-069; 9-20-2023 by Ord. No. 23-088; 2-13-2025 by Ord. No. 25-007; 2-26-2025 by Ord. No. 25-012; 2-26-2025 by Ord. No. 25-015; 2-26-2025 by Ord. No. 25-016; 8-20-2025 by Ord. No. 25-083; 9-10-2025 by Ord. No. 25-093]

No person shall park a vehicle between the times specified upon any of the streets, or parts thereof, listed below.

Parking Prohibited Certain Hours				
Name of Street	**Side**	**Days of Week**	**Hours**	**Limits**
Academy Street	North	School days	8:00 am to 4:00 pm	120 feet east of Bergen Avenue to 50 feet east
Arlington Av	East	M—F	8:00 am to 5:00 pm	184 feet south of Wilkinson Av 22 feet south

Parking Prohibited Certain Hours				
Name of Street	Side	Days of Week	Hours	Limits
Astor Pl	South	School days	8:00 am to 9:00 am and 2:00 pm to 3:00 pm	25 feet west of crosswalk on Astor Pl @ Crescent Av 75 feet west
Baldwin Av	East	M—F	7:00 am to 6:00 pm	107 feet north of High St 86 feet north
Beach St	North	M—F	7:45 am to 5:30 pm	170 feet east of Kennedy Blvd 22 feet east
Bergen Av	East	School days	8:00 am to 4:00 pm	Belmont Av to Kensington Av
Bramhall Av	South	School days	7:30 am to 8:30 am 3:30 pm to 5:00 pm	156 feet west of Clerk St 46 feet westerly
Bright St	South	School days	8:00 am 4:00 pm	230 feet east of Monmouth St 150 feet east
	South	School days	8:00 am 4:00 pm	35 feet east of Varick St 90 feet east
Brother Stan Dr	East	School days	8:00 am to 4:00 pm	Entire length
Brunswick St	South	M—F except public holidays	7:00 am to 9:00 am and 4:00 pm to 6:00 pm	139 feet south of Third St 25 feet south
Cambridge Av	East	M—F	7:00 am to 5:00 pm	South St 400 feet south
Central Av	East	M—F	7:00 am to 4:00 pm	Pavonia Av 120 feet south of Newark Av
Claremont Av	South	M—F	7:00 am to 7:00 pm	Garfield Av to Arlington Av
Clifton Pl	North	M—F	9:00 am to 4:00 pm	140 feet east of Baldwin Av to a point 149 feet east thereof
Columbus Dr	North	M—F	4:00 pm to 6:00 pm	Brunswick St to Monmouth St
	South	M—F	7:00 am to 9:00 am	Brunswick St to Monmouth St
		School days	7:00 am to 9:00 am 2:00 pm to 4:00 pm	Washington St, 140 feet west
Communipaw Av	North	All days	7:00 am to 9:00 am and 4:00 pm to 6:00 pm	Crescent Av 148 feet east of Monticello Av
	North	M—F	8:00 am to 5:00 pm	119 feet west of Manning Av 22 feet west
	North	All days	7:00 am to 9:00 am and 4:00 pm to 6:00 pm	270 feet west of Kennedy Blvd 155 feet east of West Side Av
	South	M—F	6:00 am to 5:00 pm	Berry Lane 107 feet east
	South	M—F	8:00 am to 5:00 pm	102 feet east of Manning Av 40 feet west
	South	All days	7:00 am to 9:00 am and 4:00 pm to 6:00 pm	100 feet east of West Side Av to Tyson Ln

Parking Prohibited Certain Hours				
Name of Street	**Side**	**Days of Week**	**Hours**	**Limits**
Cottage St	South	All days	8:00 am to 5:00 pm	Summit Av 90 feet west
	South	M—Sat	5:00 am to 11:00 pm	325 west of Summit Av 25 feet west
Crescent Av	West	School days	8:00 am to 9:00 am and 2:00 pm to 3:00 pm	25 feet south of crosswalk on Crescent Av @ Astor Pl 25 feet south
Danforth Av	North	School days	7:30 am to 5:00 pm	290 feet east of Old Bergen Rd 85 feet easterly
Duffield Av	West	M—F	6:00 am to 6:00 pm	143 feet south of Van Keuren Av 157 feet south
Duncan Av	North	School days	8:00 am to 4:00 pm	500 feet west of Kennedy Blvd 240 feet west
Dwight St	North	School days	8:00 am to 4:00 pm	38 feet west of Van Cleef St 202 feet west
Ege Av	North	M—Th School days	8:00 am to 9:00 am and 3:30 pm to 6:30 pm	148 feet east of West Side Av 86 feet east
		F School days	8:00 am to 9:00 am, 1:15 pm to 2:15 pm, and 3:30 pm to 6:30 pm	
Eighteenth St	South	M—F	7:00 am to 9:00 am 3:00 pm to 7:00 pm	119 feet west of Jersey Av 40 feet west
Eighth St	South	M—F	6:00 am to 6:00 pm	75 feet west of Marin Blvd 20 feet west
Erie St	East	All days	7:00 am to 7:00 pm	Bay St 114 feet north
Essex St	South		Sun 10:00 pm to F 10:00 pm	Entire length; between Hudson St and the eastern terminus
First St	N	M—F	7:30 am to 6:00 pm	120 feet east of Warren St 40 feet east
	South	M—F except holidays	8:00 am to 9:30 am 2:00 pm to 3:00 pm	50 feet west of Monmouth St 50 feet west
Fleet St	North	M—F	7:00 am to 5:00 pm	165 feet west of Baldwin Av 64 feet west
Franklin St	North	School days	8:00 am to 4:00 pm	35 feet west of Sherman Av 141 feet west
Garfield Av	West	M-F except holidays	8:00 am to 4:00 pm	25 feet north of Union St 35 feet north
Gates Av	North	School days	8:00 am to 9:00 am and 2:00 pm to 3:00 pm	800 feet west of Old Bergen Rd 87 feet west
	South	M—F	9:00 am to 5:00 pm	Old Bergen Rd to Ocean Av
Gifford Av	North	Sun to Sat	9:00 am to 9:00 pm	465 feet east of Kennedy Blvd 30 feet east

Parking Prohibited Certain Hours				
Name of Street	**Side**	**Days of Week**	**Hours**	**Limits**
Grand St	North	All days	7:00 am to 9:00 am and 4:00 pm to 6:00 pm	Westervelt St to Arlington Av
	South	All days	7:00 am to 9:00 am and 4:00 pm to 6:00 pm	Arlington Av to Ivy Pl
	North	School days	7:00 am to 9:00 am 3:00 pm to 5:00 pm	25 feet west of Colden St to the projection of the northwest corner of Woodward St Projection of the southwest Corner of Woodward St to 105 feet east of Prior St
	South	M—F	7:00 am to 9:00 am	Between River St (private roadway) and Tidewater St (private roadway)
Greenville Av	South	School days	7:00 am to 9:00 am/2:00 pm to 3:30 pm	35 feet west of Old Bergen Rd 203 feet west
Grove St	Both	M—F	7:00 am to 9:00 am	Sixteenth St to Fourteenth St
	East	M—F	7:00 am to 6:00 pm	150 feet north of Eighteenth St to 233 feet north
	East	M—F	7:00 am to 6:00 pm	429 feet north of Eighteenth St to 554 feet north
	West	M—F	7:00 am to 6:00 pm	133 feet south of the Hoboken City Line to 238 feet south
	West	M—F	7:00 am to 6:00 pm	498 feet south of the Hoboken City Line to 620 feet south
Halladay St	West	School days	8:00 am to 9:00 am/2:00 pm to 3:00 pm	Between Maple St and Lafayette St
Harrison Avenue	South	M—F	7:00 am to 3:00 pm	35 feet west of Monticello Av west 25 feet
		Sat and Sun	7:00 am to noon	
Hopkins Av	N	Sun	9:00 am to 3:30 pm	133 feet east of Summit Av 30 feet east
		Tu and F	7:00 pm to 11:00 pm	
Hudson St	East	All days	9:00 pm to 6:00 am	Essex St to Morris Canal
Huron Av	West	School days	7:00 am to 4:00 pm	71 feet south of St. Paul's Av 100 feet south and 120 feet south of St. Paul's Av 160 feet south
James Av	West	M—F	6:00 am to 5:00 pm	390 feet north of St. Pauls Av 125 feet north
Kearney Av	South	M—F	7:00 am to 6:00 pm	185 feet west of Rose Av 40 feet west
Lembeck Av	North	Daily	8:00 am to 3:00 pm	93 feet east of Old Bergen Rd 25 feet east

Parking Prohibited Certain Hours				
Name of Street	Side	Days of Week	Hours	Limits
Linden Av	North	Th	8:00 am to noon	143 feet west of Ocean Av 60 feet west
Magnolia Av	North		7:00 am to 7:00 pm	Tonnele Av to dead end
McWilliams Pl	East	M—F except public holidays	8:30 am to 9:30 am	35 feet north of Eighth St to 55 feet north
Mercer St	South	M—Sat	7:00 am to 9:00 pm	35 feet west of Tuers Av to a point 122 ft west
Monmouth St	East	School days	8:00 am 6:00 pm	75 feet north of Grand St 150 feet north
	West	M—F	7:30 am to 6:30 pm	130 feet south of Hoboken Av 60 feet south
Montgomery St	North	M—Sat	8:00 am to 4:00 pm	210 feet west of Washington St 40 feet west
	South	M—F	7:30 am to 9:00 am/2:30 pm to 5:30 pm	170 feet east of Brunswick St 25 feet east
Morgan St	North	M—F	9:00 am to 5:00 pm	35 feet west of Marin Blvd 64 feet west
Morris Blvd	North	M—F	7:00 a.m. to 9:00 a.m. 4:00 p.m. to 6:00 p.m.	Beginning 35 feet west of Marin Blvd to 88 feet west
	North	M—F	7:00 a.m. to 6:00 p.m.	Beginning 88 feet west of Marin Blvd to 25 feet west
Nelson Av	East	School days except holidays	7:30 am to 8:30 am and 2:30 pm to 3:30 pm	225 feet north of Kennedy Blvd 165 feet north
New St	South	School days	8:00 am to 6:00 pm	73 feet west of Ocean Av 196 feet west
		School days	8:00 am to 6:00 pm	339 feet west of Ocean Av 69 feet west
Newark Av	Both	M—F	4:00 pm to 6:00 pm	Kennedy Blvd to Summit Av
	North	All days	7:00 am to 9:00 am and 4:00 pm to 6:00 pm	105 feet east of Summit Av 400 feet east
	South	Tu—Sun	6:00 pm to 10:00 pm	63 feet east of Merseles Street 48 feet east
	Both	M—Th	3:00 pm to midnight	Erie St to Grove St
		F and Sun	3:00 pm to midnight	
Ninth St	North	School days	7:00 am to 9:00 am	Erie St to 135 feet east
	South	School days	7:00 am to 3:00 pm	35 feet east of Erie St 119 feet east
Ocean Av	West	M, W, Th, F and Sat	9:30 am to 1:30 pm	316 feet south of Bramhall Av 45 feet south
Pacific Av	West	M—Sat	5:00 am to 8:00 pm	160 feet north of Carteret Av 22 feet north

Parking Prohibited Certain Hours				
Name of Street	Side	Days of Week	Hours	Limits
Palisade Av	East	School days	8:00 am to 4:00 pm	205 feet north of Newark Av to Washburn St
	West	M—F	7:00 am to 7:00 pm	State Highway 139 100 feet north
	West	M—F	8:00 am to 8:00 pm	25 feet north of Laidlaw Av 25 feet north
	West	M—F	7:00 am to 10:00 am and 3:00 pm to 6:00 pm	334 feet south of Hutton St 25 feet south
	West	M—F except holidays	7:00 am to 9:00 am 4:00 pm to 6:00 pm	227 feet north of Hutton Street 22 feet north
Paterson St	North	M—F	9:00 am to 4:00 pm	305 feet west of Central Av 25 feet west
Pavonia Av	South	School days	7:00 am to 3:00 pm	220 feet east of Baldwin Av 75 feet easterly
Seaview Av	North	M—F	9:00 am to 4:00 pm	35 feet west of Kennedy Blvd 35 feet west
Second St	North	Tu to Sun	11:00 am to 10:00 pm	116 feet west of Coles St 20 feet west
Second St	North	Tu to Sun	11:00 am to 10:00 pm	116 feet west of Coles St 20 feet west
	South	M—Tu	5:00 pm to 9:00 am	368 feet east of Greene St 54 feet east
		Th—F	5:00 pm to 9:00 am	
Seventh St	South	M—F	7:30 am to 9:30 am, 3:30 pm to 5:30 pm	205 feet east of Division St 70 feet east
	North	M—F	8:00 am to 5:00 pm	94 feet west of Coles St 80 feet west
Sherman Pl	South	M—F except holidays	7:00 am to 10:00 am 3:00 pm to 7:00 pm	35 feet east of Summit Av to 60 feet east
Skillman Av	East	M—F	7:00 am to 4:00 pm	Saint Paul's Av to dead end
Summit Av	W	M—S	8:00 am to 6:00 pm	30 feet south of Secaucus Rd 25 feet south
Third St	South	School days	7:30 am to 9:00 am and 3:00 pm to 5:00 pm	160 feet east of Erie St 60 feet east
Thorne St	South	M—F	7:00 am to 7:00 pm	Kennedy Blvd to Columbia Av
Tuers Av	West	School days	7:30 am to 9:00 am and 2:30 pm to 3:30 pm	115 north of Mercer St 80 feet north
Union St	North	M, W, Th, F and Sun	9:30 am to 1:30 pm	30 feet west of Ocean Av 46 feet west
Van Horne St	West	Daily June through August	7:00 am to 10:00 pm	61 feet south of Johnston Av 188 feet south

Parking Prohibited Certain Hours				
Name of Street	Side	Days of Week	Hours	Limits
Van Reypen St	North	M—F except holidays	8:00 am to 9:00 am 11:00 am to noon and 2:00 pm to 3:00 pm	130 feet north of Academy St to 25 feet north
Van Vorst St	West	M—F	7:00 am to 7:00 pm	Grand St to Essex St
Van Wagenen Av	East	M—Sat	7:00 am to 6:00 pm	168 feet north of Sip Av 17 feet north
	West	M—F	7:00 am to 9:00 am	Tonnele Circle ramp to Saint Paul's Av
Washington St	West	School days	7:00 am to 9:00 am	Grand St to Morris St
			2:00 pm to 4:00 pm	Grand St to Sussex St
			7:00 am to 9:00 am	Columbus Dr to Montgomery St
			2:00 pm to 4:00 pm	
West Side Av	West	School days	8:00 am to 4:00 pm	25 feet north of Carbon Pl 100 feet north
	West	All days	8:00 am to 5:00 pm	103 feet north of Broadway to north terminus
Wilkinson Av	North	School days	8:00 am to 4:00 pm	Ocean Av to Arlington Av
	North	All days	9:00 am to 3:00 pm	35 feet west of Martin Luther King Dr 73 feet west
Yale Av	South	M—F	8:00 am to 5:00 pm	390 feet west of West Side Av 20 feet west
York St	South	School days	7:00 am to 9:00 am 2:00 pm to 4:00 pm	35 feet east of Marin Blvd and extend 50 feet east

§ 332-24.1. Limited duration parking. [Added 10-10-2019 by Ord. No. 19-136; 4-12-2023 by Ord. No. 23-025; 5-8-2024 by Ord. No. 24-029; 8-14-2024 by Ord. No. 24-061; 10-30-2024 by Ord. No. 24-095]

No person shall park a vehicle longer than the duration specified between the hours specified upon any of the streets or parts thereof listed below.

Limited Duration Parking					
Name of Street	Side	Days of Week	Hours	Limits	Duration
Bergen Ave	East	All	All	Newkirk St to Sip Ave	15 minutes
Mallory Avenue	West	All	9:00 am—5:00 pm	Roosevelt Ave to Lexington Ave	15 minutes
Mallory Avenue	West	All	9:00 am—5:00 pm	Northerly curbline of Grant Ave 100 feet northerly	15 minutes
Marcus Street	Both	M—F	8:00 am to 5:00 pm	Entire length	4 hours

§ 332-25. Parking prohibited for sale or repair of vehicles or parking in front of disabled access ramp prohibited.

A. No person shall park a vehicle upon any street or other public way for the principal purpose of displaying such vehicle for sale or repairing such vehicle, except when necessitated by an emergency. For the purposes of this section, "repairing" shall mean:

(1) Changing oil, transmission fluid or any other auto fluid.

(2) Changing a battery, spark plugs or other auto parts.

(3) Removing and replacing brakes, brake linings and shocks.

B. Except when necessary to avoid conflict with other traffic or in compliance with the directions of a traffic officer or a traffic sign or signal, no operator of a vehicle shall stand or park a vehicle in front of any disabled access ramp in any street or sidewalk.

§ 332-26. No stopping or standing certain hours. [Amended 6-23-2010 by Ord. No. 10-079; 5-27-2015 by Ord. No. 15-074; 6-29-2017 by Ord. No. 17-077; 10-24-2018 by Ord. No. 18-120; 4-10-2019 by Ord. No. 19-022; 2-26-2020 by Ord. No. 20-016; 6-24-2020 by Ord. No. 20-046]

No person shall stop or stand a vehicle between the times specified upon any of the streets, or parts thereof, listed below.

No Stopping or Standing Certain Hours				
Name of Street	Side	Days of Week	Hours	Limits
Bartholdi Av	North	School days	8:00 am to 4:00 pm	Sullivan Dr 300 feet east
Bergen Av	East	All days	4:00 pm to 6:00 pm	Academy St to Sip Av
Bergen Av	East	All days	6:00 am to 9:00 am	Sip Av to Montgomery St
Bergen Av	West	All days	4:00 pm to 6:00 pm	Montgomery St to Fairmount Av
Bergen Av	West	All days	6:00 am to 9:00 am	Sip Av to Duncan Av
Communipaw Av	North	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	Summit Av 111 feet east of Grand St
Communipaw Av	North	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	100 feet west of Grand St to Park St
Communipaw Av	North	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	125 feet west of Bergen Av to 155 feet east of Kennedy Blvd
Communipaw Av	South	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	Jackson Av to 100 feet west of Martin Luther King Dr
Communipaw Av	South	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	Randolph Av to 100 feet west of Garfield Av
Communipaw Av	South	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	100 feet east of Martin Luther King Dr to Arlington Av

No Stopping or Standing Certain Hours				
Name of Street	**Side**	**Days of Week**	**Hours**	**Limits**
Communipaw Av	South	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	130 feet east of Kennedy Blvd to Tyson Ln (east portion)

No Stopping or Standing Certain Hours				
Name of Street	**Side**	**Days of Week**	**Hours**	**Limits**
Duncan Av	South	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	West Side Av 200 feet west
Grand St	East	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	Harmon St to Communipaw Av
Grove Street	Both	Daily, except Sat, Sun and holidays	7:00 a.m. to 9:00 a.m.	From Sixteenth Street to Fourteenth Street
	East		7:00 a.m. to 6:00 p.m.	150 feet north of Eighteenth Street to 233 feet north 429 feet north of Eighteenth Street to 554 feet north
	West		7:00 a.m. to 6:00 p.m.	133 feet south of the Hoboken City Line to 238 feet south 498 feet south of the Hoboken City Line to 620 feet south
Journal Square Plaza	East	All days	6:00 am to 9:00 am 3:30 pm to 6:00 pm	Sip Av to Kennedy Blvd (all metered area)
Kennedy Blvd	West	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	35 feet south of Cottage St 118 feet south
Monmouth St	East	All days	7:00 am to 9:00 am	York St to Columbus Dr
Sip Av	North	All days	6:00 am to 9:00 am 4:00 pm to 6:00 pm	Journal Square Plaza to Tonnele Av
Sip Av	North	All days	6:00 am to 9:00 am 4:00 pm to 6:00 pm	Summit St to Port Authority driveway
Sip Av	South	All days	6:00 am to 9:00 am 4:00 pm to 6:00 pm	Jones St to Summit St
Sip Av	South	All days	6:00 am to 9:00 am 4:00 pm to 6:00 pm	Bergen Av to Enos Pl
Summit Av	Both	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	Pavonia Av to Newark Av
Summit Av	Both	All days	7:00 am to 9:00 am 4:00 pm to 6:00 pm	PATH cut Bridge to Pavonia Av
Summit Av	East	All days	7:00 am to 9:00 pm 4:00 pm to 6:00 pm	85 feet south of Newark Av 85 feet south
Washington Blvd	Both	M—F	7:00 am to 6:00 pm	Sixth St to Eighteenth St
	East	M—F	7:00 am to 6:00 pm	Gangemi Dr to Eighteenth St
Washington St	Both	Daily	10:00 pm to 8:00 am	25 feet north of southern terminus 75 feet north
	West	M—F except holidays	6:00 am to 9:00 am & 4:00 pm to 7:00 pm	Second St to Bay St

§ 332-26A. No stopping or standing certain hours during the northbound Pulaski Skyway lane closure. [Added 2-26-2014 by Ord. No. 14-021]

No person shall stop or stand a vehicle between the times specified upon any of the streets, or parts thereof, listed below during the time the northbound lane of the Pulaski Skyway is closed for construction.

No Stopping or Standing Certain Hours				
Name of Street	Side	Days of Week	Hours	Limits
Communipaw Av	South	M—F except holidays	6:00 am to 10:00 am	West Side Av to Grand St
	North	M—F except holidays	4:00 pm to 7:00 pm	Grand St to West Side Av
Grand St	South	M—F except holidays	6:00 am to 10:00 am	Communipaw Av to Fairmount Av
	North	M—F except holidays	4:00 pm to 7:00 pm	Fairmount Av to Communipaw Av
Greene St	West	M—F except holidays	6:00 am to 10:00 am	Columbus Dr to Montgomery St

§ 332-27. Angle parking. [Amended 4-28-2010 by Ord. No. 10-058; 11-9-2011 by Ord. No. 11-140; 5-9-2012 by Ord. No. 12-062; 6-29-2017 by Ord. No. 17-076; 4-24-2019 by Ord. No. 19-029; 5-8-2019 by Ord. No. 19-041; 9-11-2019 by Ord. No. 19-102; 11-14-2019 by Ord. No. 19-153; 1-8-2020 by Ord. No. 19-168; 9-10-2020 by Ord. No. 20-070; 10-21-2020 by Ord. No. 20-092; 2-22-2024 by Ord. No. 24-006; 9-25-2024 by Ord. No. 24-085]

No person shall park a vehicle upon any of the streets or parts thereof listed below except at the angle designated.

Angle Parking			
Name of Street	Side	Angle (degrees)	Limits
Bergen Square	West	90 and 45	100 feet north to 100 feet south of Academy St
Bright St	North	90	Florence St to Cornelison Av
Douglas and Arthur Skinner Memorial Dr (FKA: Jersey Av)	East	60	532 feet south of Grand Street to 906 feet south
Elm St	South	Reverse 45	Kennedy Blvd west 110 feet
First St	North	45 head-in parking only	70 feet east of Marin Blvd (total of 8 parking spaces)
		45 head-in parking only	215 feet east of Marin Blvd (total of 12 parking spaces)

Angle Parking			
Name of Street	Side	Angle (degrees)	Limits
Hoboken Av	North	90	Oakland Av to State Highway 139
Laidlaw Av	South	45	Baldwin Av to Palisade Av
Lembeck Av	North	60-degree head-in parking only	Princeton Av to Garfield Av
Mallory Av	East	Reverse	Clendenny Av to Roosevelt Av
Mallory Av	West	60	Gautier Av to Condict St
Mallory Av service road	Both	45	Clendenny Av to Roosevelt Av
Mercer Street	South	45-degree reverse-in parking only	Grove St to Marin Blvd
Pavonia Av	North	45	Erie St to Manila Av
Pearsall Av	South	45	Garfield Av to Princeton Av
	North	60-degree head-in parking only	Ocean Av to Garfield Av
Rose Av	North	45	Claremont Av to Grant Av
Saint Paul's Av	North	Reverse 45	Entire length
Second St	North	Reverse 45	Provost St to Warren St
Stegman St	South	45	Ocean Av to Garfield Av
Washington St	West	45	25 feet north of the southern terminus and extending to a point 72 feet northerly therefrom
Whitman Av	West	45	Sip Av to dead end
Winfield Av	North	60-degree head-in parking only	Garfield Av to Princeton Av
		60-degree head-in parking only	Ocean Av to Garfield Av

§ 332-28. Bus stops, taxi stands and loading zones.

A. In accordance with the provisions of N.J.S.A. 39:4-197(3)a, b and § 3-54C(6) of the Code of the City of Jersey City, a listing of Regulations Designating Bus Stops, Taxi Stands and Loading Zones shall be incorporated in the Chapter 332 Manual—Traffic and Transportation.

B. The listing of all Bus Stops, Taxi Stands and Loading Zones of the City of Jersey City shall be incorporated in the Chapter 332 Manual—Traffic and Transportation. The current list of Bus Stops, Taxi Stands and Loading Zones authorized by Ordinance and/or Regulation within Chapter 332 Manual—Traffic and Transportation is available for inspection in the Division of Engineering, Traffic and Transportation and/or the Office of the City Clerk.

C. All regulations designating bus stops, taxi stands and loading zones promulgated by the Municipal Engineer and approved by resolution of the Municipal Council shall be transmitted to the City Clerk, who shall keep them on file for public inspection.

§ 332-28.1. Parking for electric or plug-in hybrid vehicles. [Added 6-28-2017 by Ord. No. 17-075]

A. Definitions.

AC—Alternating current (electricity)

BATTERY—A cell or cells onboard an electric vehicle which is used for storing and furnishing electrical energy for the purpose of propelling the vehicle.

BATTERY ELECTRIC VEHICLE (BEV)—An electric vehicle with an onboard battery that operates exclusively on electrical energy from the battery, which battery is charged from an electrical power source (charging station) not onboard the vehicle.

CHARGING LEVEL—The standardized indicators of electrical force or voltage at which an electric vehicle's battery is recharged. Typical electric vehicle charging levels and specifications are:

(1) Level 1—AC slow battery charging. Voltage is 120 volts.

(2) Level 2—AC medium battery charging. Voltage is between 120 volts and 240 volts.

(3) Level 3—DC fast or quick battery charging. Voltage is greater than 204 volts. Sometimes referred to as "DC Fast."

CHARGING STATION—Equipment that has as its primary purpose the transfer of electric energy by conducive or inductive means to a battery or other energy storage device located onboard an electric vehicle. Various type of charging stations include:

(1) Accessible charging station: A charging station incorporated into or immediately adjacent to a handicapped parking space as "handicapped parking space" is defined by the New Jersey State Statutes.

(2) Level 3 charging station (sometimes "DC fast charging station"): A charging station that provides any single-phase voltage or current rating higher than that of level 2 or any three-phase supply voltage configuration.

(3) Private charging station: A charging station that is (a) privately owned and restricted access (e.g., single-family home, executive parking, designated employee parking, etc.) or (b) publicly owned and restricted (e.g. fleet parking with no access to the general public).

(4) Public charging station: A charging station that is (a) publicly owned and publicly available (e.g., park & ride, public parking lots, on-street parking, etc.) or (b) privately owned and publicly available (e.g., shopping center parking, non-reserved parking in multi-family parking lots, etc.).

CHARGING STATION EQUIPMENT—The conductors, including ungrounded and grounded, and the electric vehicle connectors, attachment plugs, and all other fittings, devices, power outlets, charging stations or apparatus installed specifically for the purpose of delivering electrical energy from the charging station to the electric vehicles.

CHARGING STATION PLACE—A dedicated, marked space that identifies the use thereof as exclusively for the charging of electric vehicles.

ELECTRIC SCOOTERS AND/OR MOTORCYCLES—A two-wheel or three-wheel electric vehicle that operates exclusively on electrical energy stored in the vehicle's batteries.

ELECTRIC VEHICLE—A vehicle that operates, either partially or exclusively, on electrical energy from a charging station or other electrical energy source that is stored in the vehicle's battery for propulsion purposes. "Electric vehicle" includes: (1) a battery electric vehicle; (2) a plug-in hybrid electric vehicle; (3) a neighborhood electric vehicle; and (4) electric scooters or motorcycles.

NEIGHBORHOOD ELECTRIC VEHICLE—An electric vehicle with four wheels that conforms to federal regulations under Title 49 C.F.R. Part 571.5000 which can from a stand still attain a speed of 20 miles per hour (mph) within one mile but cannot exceed a speed of more than 25 mph.

NON-ELECTRIC VEHICLE—A vehicle that does not meet the definition of "electric vehicle" as provided herein.

PLUG-IN HYBRID ELECTRIC VEHICLE (PHEV)—An electric vehicle that (1) contains an internal combustion engine and also allows power to be delivered to drive wheels by an electric motor; and (2) charges its battery primarily by connecting to a charging station or other electrical source not on board the vehicle; (3) may additionally be able to sustain a battery charge using an on-board internal-combustion-driven generator; and (4) has the ability to be propelled through the use of electricity.

VEHICLE—Has the same meaning as provided in the New Jersey State Statute, Title 39, Motor vehicles and traffic regulations, Chapter 1, Definitions, 39.1.1. Words and phrases defined.

B. Guidelines Related to Parking for Electric Vehicles Only.

(1) Notification and Signage.

(a) At the direction of the Municipal Engineer shall cause appropriate signs and markings to be placed in an around electric vehicle charging stations, indicating prominently thereon the parking regulations. The signs shall identify the voltage and amperage levels; define time limits, fees, and hours of operation, as applicable; and state that the charging station space is reserved for charging purposes only, which is to be defined as occurring when a vehicle is connected to the EVSE for electric charging purposes.

(b) Parking signage related to electric vehicle parking and charging stations in public parking facilities or on public roads shall accurately reflect the City's Code of Ordinances provisions

as applied to days and times of parking enforcement under City Code Sections 332-31 (street cleaning) and 332-58 (Parking restrictions in residential zones). If there is a conflict between on-street parking signage and associated electric vehicle parking spaces and charging stations with respect to days, hours of enforcement, and/or maximum parking times, the information contained in the parking signage shall apply.

(2) Prohibitions.

(a) When a sign authorized under Subsection (1) above provides notice that a space is designated as electric vehicle parking or an electric vehicle charging station, no person shall stop, stand, or park any non-electric vehicle, or otherwise block access to parking, in any such designated parking space or charging station.

(b) When a sign authorized under Subsection (1) above provides notice that a space is designated as electric vehicle charging station, it is unlawful to park or permit to be parked any vehicle, including an electric vehicle, if such electric vehicle is not in the process of charging. Only one electric vehicle should occupy any space marked as an electric vehicle parking space or charging station, and no person should park except within the boundaries of the space defined.

(3) Enforcement.

(a) Electric vehicle parking spaces and charging stations shall be enforced by any police officer or parking enforcement officer as defined in Code Section 3-91(2).

(b) Violations of this Chapter shall be punishable in accordance with Code Section 3-91(2). Each day such violation is committed shall constitute a separate offense and shall be punishable as such.

(c) In addition to a fine, a person who has parked or left a vehicle standing upon a street, alley, or city parking lot or garage in violation of this paragraph is subject to having the vehicle removed from the street, alley or City parking lot or garage in accordance to Code Section 3-91(4).

C. Electric Vehicle Charging Area. No person shall park a vehicle upon any of the streets or parts thereof listed below except an electric or hybrid plug-in vehicle. **[Amended 8-14-2019 by Ord. No. 19-097; 6-24-20 by Ord. No. 20-041; 10-21-2020 by Ord. No. 20-093]**

Name of Street	Side	Limits
Central Av	East	415 feet south of South St 40 feet south (total of 2 parking spaces)
Eighth St	North	200 feet west of Brunswick Av 40 feet west (total of 2 parking spaces)
First St	North	Beginning 70 feet east of Marin Blvd (total of 8 parking spaces)
		Beginning 215 feet east of Marin Blvd (total of 12 parking spaces)

Name of Street	Side	Limits
Garfield Av	East	710 feet south of Communipaw Av 40 feet south (total of 2 parking spaces)
Kearney Av	North	310 feet west of Martin Luther King Dr 40 feet east (total of 2 parking spaces)
Manhattan Av	North	280 feet west of JFK Blvd 40 feet west (total of 2 parking spaces)
Marin Blvd	West	25 feet south of Montgomery St 80 feet south (Total of 4 parking spaces)
Ogden Av	East	265 feet north of Griffith St 40 feet north (total of 2 parking spaces)

§ 332-29. Disabled Parking Manual. [Amended 5-11-2011 by Ord. No. 11-051; 8-31-2011 by Ord. No. 11-099; 11-9-2011 by Ord. No. 11-139; amended 5-23-2012 by Ord. No. 12-070; 9-27-2012 by Ord. No. 12-114; 1-9-2013 by Ord. No. 12-165; 1-23-2013 by Ord. No. 13-003; 4-24-13 by Ord. No. 13-038; 5-29-2013 by Ord. No. 13-063; 6-19-2013 by Ord. No. 13-076; 11-26-2013 by Ord. No. 13-130; 3-26-2014 by Ord. No. 14-031; 4-9-2014 by Ord. No. 14-035; 6-25-2014 by Ord. No. 14-066; 9-10-2014 by Ord. No. 14-095; 9-23-2014 by Ord. No. 14-113; 11-25-2014 by Ord. No. 14-147; 1-14-2015 by Ord. No. 14-169; 3-25-2015 by Ord. No. 15-029; 9-9-2015 by Ord. No. 15-112; 1-27-2016 by Ord. No. 16-006; 9-14-2016 by Ord. No. 16-119; 2-8-2017 by Ord. No. 17-014; 4-12-2017 by Ord. No. 17-034; 5-24-2017 by Ord. No. 17-062; 7-19-2017 by Ord. No. 17-090; 8-16-2017 by Ord. No. 17-106; 9-27-2017 by Ord. No. 17-123; 12-13-2017 by Ord. No. 17-163; 5-23-2018 by Ord. No. 18-047; 6-27-2018 by Ord. No. 18-063; 9-12-2018 by Ord. No. 18-098; 9-26-2018 by Ord. No. 18-108; 5-22-2019 by Ord. No. 19-051; 8-14-2019 by Ord. No. 19-096; 10-23-2019 by Ord. No. 19-149; 1-8-2020 by Ord. No. 19-169; 4-15-2020 by Ord. No. 20-031; 5-6-2020 by Ord. No. 20-035; 12-2-2020 by Ord. No. 20-099; 12-16-2020 by Ord. No. 20-106; 4-15-2021 by Ord. No. 21-021; 9-9-2021 by Ord. No. 21-057; 9-22-2021 by Ord. No. 21-063; 10-14-2021 by Ord. No. 21-068; 10-27-2021 by Ord. No. 21-070; 11-29-2021 by Ord. No. 21-075; 2-9-2022 by Ord. No. 22-009; 3-23-2022 by Ord. No. 22-027; 6-15-2022 by Ord. No. 22-048; 9-21-2022 by Ord. No. 22-082; 1-11-2023 by Ord. No. 22-109; 2-23-2023 by Ord. No. 23-011; 5-20-2023 by Ord. No. 23-038; 6-28-2023 by Ord. No. 23-061; 9-20-2023 by Ord. No. 23-090; 10-25-2023 by Ord. No. 23-101; 11-29-2023 by Ord. No. 23-111; 1-10-2024 by Ord. No. 23-127; 4-10-2024 by Ord. No. 24-016; 5-8-2024 by Ord. No. 24-028; 7-10-2024 by Ord. No. 24-059; 8-14-2024 by Ord. No. 24-062; 9-25-2024 by Ord. No. 24-081; 11-26-2024 by Ord. No. 24-101; 2-26-2025 by Ord. No. 25-013; 4-9-2025 by Ord. No. 25-034; 6-11-2025 by Ord. No. 25-060; 9-10-2025 by Ord. No. 25-091; 10-8-2025 by Ord. No. 25-104; 2-11-2026 by Ord. No. 26-002]

A. In accordance with the provisions of N.J.S.A. 39:4 197(2)(c) and § 3-54(C)(10) of the Code of the City of Jersey City, a listing of Regulations Designating Reserved Parking Spaces for the Disabled shall be incorporated in the Chapter 332 Manual—Traffic and Transportation.

B. The listing of all Reserved Parking Spaces for the Disabled of the City of Jersey City shall be incorporated in the Chapter 332 Manual—Traffic and Transportation. The current list of Disabled

Parking Spaces authorized by Ordinance and/or Regulation within Chapter 332 Manual—Traffic and Transportation is available for inspection in the Division of Engineering, Traffic and Transportation and/or the Office of the City Clerk.

C. All regulations designating reserved parking spaces for the disabled promulgated by the Municipal Engineer shall be transmitted to the City Clerk, who shall keep them on file for public inspection.

§ 332-30. Parking of Trucks, Omnibus, Road Tractor, Semi-Tractor, Truck Tractor, Recreational Vehicles or any Commercial Motor Vehicles. [Amended 11-9-2016 by Ord. No. 16-171]

A. No person shall park any truck, omnibus, road tractor, semi-tractor, truck tractor or any commercial motor vehicle upon the streets of the City on any day of the week between the hours of 9:00 p.m. and 5:00 a.m. except for taxicabs and limousines licensed by the City of Jersey City pursuant to Chapter 307 of this Code.

B. No person shall park any trailer, semitrailer or tractor upon any public street or public way while it is detached from its component unit, except when such trailer or semitrailer is in a continual process of loading or unloading goods, wares or merchandise.

C. No person shall park any recreational vehicle upon any street or public right-of-way.

§ 332-31. Parking restrictions for street-cleaning purposes. [Amended 11-10-2009 by Ord. No. 09-115; 1-13-2010 by Ord. No. 09-132; 4-28-2010 by Ord. No. 10-058; 6-15-2011 by Ord. No. 11-064 and Ord. No. 11-068; 5-9-2012 by Ord. No. 12-062; 2-26-2014 by Ord. No. 14-016; 2-24-2016 by Ord. No. 16-038; 4-27-2016 by Ord. No. 16-063; 9-14-2016 by Ord. No. 16-123; 10-12-2016 by Ord. No. 16-149; 11-22-2016 by Ord. No. 16-178; 1-11-2017 by Ord. No. 16-192; 1-25-2017 by Ord. No. 17-010; 2-8-2017 by Ord. No. 17-009; 7-19-2017 by Ord. No. 17-093; 8-16-2017 by Ord. No. 17-102; 12-13-2017 by Ord. No. 17-161; 7-18-2018 by Ord. No. 18-070; 11-20-2018 by Ord. No. 18-129; 4-10-2019 by Ord. No. 19-022; 8-14-2019 by Ord. No. 19-100; 9-25-2019 by Ord. No. 19-119; 6-24-2020 by Ord. No. 20-046; 8-12-2020 by Ord. No. 20-056; 8-12-2020 by Ord. No. 20-058; 2-24-2021 by Ord. No. 21-008; 3-24-2021 by Ord. No. 21-019; 4-28-2021 by Ord. No. 21-025; 12-15-2021 by Ord. No. 21-079; 1-11-2023 by Ord. No. 22-106; 1-11-2023 by Ord. No. 22-107; 2-8-2023 by Ord. 23-007; 2-23-2023 by Ord. No. 23-012; 6-28-2023 by Ord. No. 23-058; 6-28-2023 by Ord. No. 23-059; 8-16-2023 by Ord. No. 23-075; 10-25-2023 by Ord. No. 23-100; 12-13-2023 by Ord. No. 23-121; 12-13-2023 by Ord. No. 23-122; 6-11-2025 by Ord. No. 25-062; 10-8-2025 by Ord. No. 25-103]

A. The below table, entitled "Parking Restrictions for Street-Cleaning Purposes," shall serve as the street-cleaning schedule for the City of Jersey City.

B. The Administration shall have discretion regarding the timing, execution, and implementation of the modified street-cleaning schedule referenced herein. **[Amended 9-11-2024 by Ord. No. 24-069]**

No person shall park a vehicle upon any of the streets or sides of streets either in whole or in part, during the hours of the days listed below, excepting on the Holidays defined in 332-1(B) and those holidays listed in 332-31(C).

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Abbett St	West	Thursdays	1:00 pm to 3:00 pm	Ferry St to Booraem Av
	East	Tuesdays		
Academy St	North	Thursdays	3:00 pm to 5:00 pm	Fremont St to Van Reypen St
	South	Tuesdays		
Alan Ter	South	Thursdays	8:00 am to 10:00 am	Chestnut Av to Waldo Av
	North	Tuesdays		
Albert Pl	West	Thursdays	3:00 pm to 5:00 pm	Linden Av to dead end
	East	Tuesdays		
Apollo St	West	Thursdays	3:00 pm to 5:00 pm	Duncan Av to dead end
	East	Tuesdays		
Arlington Av	West	Thursdays	8:00 am to 10:00 am	Communipaw Av to Bayview Av
	East	Tuesdays		
Armstrong Av	North	Thursdays	10:00 am to noon	Garfield Av to Bergen Av
	South	Tuesdays		
	South	Thursdays	3:00 pm to 5:00 pm	Kennedy Blvd to West Side Av
	North	Tuesdays		
Ash St	South	Thursdays	10:00 am to noon	Johnson Av to Pine St
	North	Tuesdays		
Astor Pl	South	Thursdays	8:00 am to noon	Monticello Av to Summit St
	North	Tuesdays		
Atlantic St	South	Thursdays	1:00 pm to 3:00 pm	Bergen Av to Martin Luther King Dr
	North	Tuesdays		
Audubon Av	North	Thursdays	8:00 am to 10:00 am	Bergen Av to West Side Av
	South	Tuesdays		
Baldwin Av	East	Thursdays	8:00 am to 10:00 am	Clifton Pl to Hoboken Av
	West	Tuesdays		
	West	Thursdays	8:00 am to 10:00 am	Prospect Av to Hoboken Av
	East	Tuesdays		
Barbara Pl	South	Thursdays	10:00 am to noon	Grand St to Pacific Av
	North	Tuesdays		
Barrow St	East	Thursdays	10:00 am to noon	Canal St to Newark Av
	West	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Bartholdi Av	North	Thursdays	10:00 am to noon	Kennedy Blvd to Sullivan Dr
	South	Tuesdays		
	South	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to Ocean Av
	North	Tuesdays		
Bates St	East	Thursdays	1:00 pm to 3:00 pm	Entire length
	West	Tuesdays		
Bay St	North	Thursdays	1:00 pm to 3:00 pm	Grove St to Marin Blvd
	South	Tuesdays		
	North	Thursdays		Marin Blvd to Greene St
	South	Tuesdays		
	South	Thursdays	7:00 am to 8:00 am	Newark Av to Erie St
	North	Tuesdays		
Bayside Park Dr	North	Thursdays	10:00 am to noon	Entire length
	South	Tuesdays		
Bayside Pl	Both	Thursdays	10:00 am to noon	Fulton Av to dead end
Bayside Ter	East	Thursdays	10:00 am to noon	Entire length
	West	Tuesdays		
Bayview Av	South	Thursdays	3:00 pm to 5:00 pm	Bergen Av to Garfield Av
	North	Tuesdays		
Beach St	North	Thursdays	8:00 am to 10:00 am	Summit Av to Tonnele Av
	South	Tuesdays		
Beacon Av	North	Thursdays	1:00 pm to 3:00 pm	Palisade Av to Kennedy Blvd
	South	Tuesdays		
Belmont Av	North	Thursdays	8:00 am to 10:00 am	Summit Av to Monticello Av
	South	Tuesdays		
	South	Thursdays	1:00 pm to 3:00 pm	Monticello Av to Kennedy Blvd
	North	Tuesdays		
Belvidere Av	East	Thursdays	8:00 am to 10:00 am	Communipaw Av to dead end
	West	Tuesdays		
	East	Thursdays	1:00 pm to 3:00 pm	Condict St to Lincoln Park
	West	Tuesdays		
	East	Thursdays	1:00 pm to 3:00 pm	Duncan Av to Lincoln Park
	West	Tuesdays		
Bennett St	East	Thursday	1:00 pm to 3:00 pm	Ege Av to Clarke Av
	West	Tuesday	1:00 pm to 3:00 pm	Ege Av to Clarke Av

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Bentley Av	South	Thursdays	1:00 pm to 3:00 pm	Bergen Av to West Side Av
	North	Tuesdays		
Bergen Av	East	M, Th, and Sat	7:00 am to 8:00 am	Fairview Av to Sip Av
	West	Tu, F, and Sat	7:00 am to 8:00 am	Sip Av to Fairview Av
	East	M and Th	10:00 am to Noon	Van Nostrand Av to Fairview Av
	West	Tu and F	10:00 am to Noon	Fairview Av to Van Nostrand Av
Berkeley Pl	North	Thursdays	1:00 pm to 3:00 pm	Liberty Av to Tonnele Av
	South	Tuesdays		
Bernius Ct	West	Thursdays	1:00 pm to 3:00 pm	Entire length
	East	Tuesdays		
Berry Ln	West	Mon & Thurs	10:00 am—Noon	Entire Length
	East	Tues & Fri		
Bevan St	East	Thursdays	1:00 pm to 3:00 pm	Depressed Highway to Hopkins Av
	West	Tuesdays		
Bidwell Av	North	Thursdays	10:00 am to noon	Garfield Av to Bergen Av
	South	Tuesdays		
Bishop Av	South	Thursdays	8:00 am to 10:00 am	Cornelison Av to Grand St
	North	Tuesdays		
Bleecker St	South	Thursdays	10:00 am to noon	Terrace Av to Central Av
	North	Tuesdays		
Boland St	West	Thursdays	3:00 pm to 5:00 pm	Montgomery St to Fairmount Av
	East	Tuesdays		
Bond St	South	Thursdays	10:00 am to noon	Garrison Av to Kennedy Blvd
	North	Tuesdays		
Booraem Av	North	Thursdays	1:00 pm to 3:00 pm	Palisade Av to Central Av
	South	Tuesdays		
Bostwick Av	South	Thursdays	3:00 pm to 5:00 pm	Bergen Av to Ocean Av
	North	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Bowers St	North	Thursdays	10:00 am to noon	Ogden Av to Central Av
	South	Tuesdays		
	South	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to Central Av
	North	Tuesdays		
Boyd Av	South	Thursdays	10:00 am to noon	Bennett St to Bergen Av
	North	Tuesdays		
Boyd Ct	East	Thursdays	10:00 am to noon	Entire length
	West	Tuesdays		
Bramhall Av	North	Thursdays	1:00 pm to 3:00 pm	Bergen Av to Garfield Av
	South	Tuesdays		
	South	Thursdays	10:00 am to noon	Pacific Av to Woodward St
	North	Tuesdays		
Briarwood Rd	North	Thursdays	3:00 pm to 5:00 pm	Entire length
	South	Tuesdays		
Bright St	North	Thursdays	8:00 am to 10:00 am	Bates St to Center St
	South	Tuesdays		
	South	Thursdays	8:00 am to 10:00 am	Cornelison Av to Merseles St
	North	Tuesdays		
Brinkerhoff St	South	Thursdays	1:00 pm to 3:00 pm	Crescent Av to Bergen Av
	North	Tuesdays		
Britton St	West	Thursdays	3:00 pm to 5:00 pm	Entire length
	East	Tuesdays		
Broadman Pkwy	North	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to dead end
	South	Tuesdays		
Broadway	South	Thursdays	8:00 am to 10:00 am	Truck Route 1 & 9 to Tonnele Av
		Tuesdays		
Brook St	South	Thursdays	8:00 am to 10:00 am	Center St to Bates St
	North	Tuesdays		
Brown Pl	North	Thursdays	3:00 pm to 5:00 pm	Garfield Av to Princeton Av
	South	Tuesdays		
Brunswick St	East	Thursdays	1:00 pm to 3:00 pm	Tenth St to York St
	West	Tuesdays		
Bryan Pl	East	Thursdays	10:00 am to noon	Van Reipen Av to dead end
	West	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Bryant Av	West	Thursdays	10:00 am to noon	The cemetery to Logan Av
	East	Tuesdays		
Cambridge Av	East	Thursdays	10:00 am to noon	Franklin St to North St
	West	Tuesdays		
Carlton Av	South	Thursdays	8:00 am to 10:00 am	Tonnele Av to Summit Av
	North	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Carteret Av	South	Thursdays	8:00 am to 10:00 am	Garfield Av to Pacific Av
	North	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Garfield Av to Ocean Av
	South	Tuesdays		
Casper Ct	East	Thursdays	3:00 pm to 5:00 pm	Van Houten Av to dead end
	West	Tuesdays		
Cator Av	South	Thursdays	1:00 pm to 3:00 pm	Princeton Av to Kennedy Blvd
	North	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	Kennedy Blvd to West Side Av
	South	Tuesdays		
Caven Point Av	North	Thursdays	8:00 am to 10:00 am	The railroad tracks to Garfield Av
	South	Tuesdays		
Center St	East	Thursdays	8:00 am to 10:00 am	Grand St to Columbus Dr
	West	Tuesdays		
Central Av	West	M—Sat	7:30 am to 9:00 am	Paterson Plank Rd to Howie Fink Way
	East	M—Sat	9:00 am to 10:00 am	
	East	Thursdays	8:00 am to 10:00 am	Howie Fink Way to Newark Av
	West	Tuesdays		
	East	Thursdays	7:00 am to 8:00 am	Newark Av to Pavonia Av
	West	Tuesdays		
Chapel Av	North	Thursdays	1:00 pm to 3:00 pm	Rutgers Av to Ocean Av
	South	Tuesdays		
Charles St	North	Thursdays	1:00 pm to 3:00 pm	Central Av to Kennedy Blvd
	South	Tuesdays		
Chestnut Av	West	Thursdays	8:00 am to 10:00 am	Newark Av to Trenton St
	East	Tuesdays		
Chopin Ct	East side of island	Tuesdays	10:00 am to noon	Montgomery St to Wayne St
	West side of island	Thursdays		
Claremont Av	North	Thursdays	3:00 pm to 5:00 pm	Garfield Av to Bergen Av
	South	Tuesdays		
	South	Thursdays	1:00 pm to 3:00 pm	Route 440 to Bergen Av
	North	Tuesdays		
Clarke Av	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to Route 440
	South	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Clendenny Av	South	Thursdays	8:00 am to 10:00 am	Route 440 to Bergen Av
	North	Tuesdays		
Clerk St	West	Thursdays	8:00 am to 10:00 am	Wilkinson Av to Bramhall Av
	East	Tuesdays		
Cliff St	South	Thursdays	8:00 am to 10:00 am	Liberty Av to Kennedy Blvd
	North	Tuesdays		
Clifton Pl	West	Thursdays	10:00 am to noon	Summit Av to Summit Av
	East	Tuesdays		
Clinton Av	North	Thursdays	8:00 am to 10:00 am	Entire length
	South	Tuesdays		
Colden St	South	Thursdays	10:00 am to noon	Grand St to Fremont St
	North	Tuesdays		
Coles St	West	Thursdays	10:00 am to noon	Columbus Dr to Eighteenth St
	East	Tuesdays		
Colgate St	West	Thursdays	8:00 am to 10:00 am	Montgomery St to Bright St
	East	Tuesdays		
	East	Thursdays	1:00 pm to 3:00 pm	Third St to First St
	West	Tuesdays		
Collard St	West	Thursdays	1:00 pm to 3:00 pm	The dead end to Route 139
	East	Tuesdays		
College Dr	West	Thursdays	8:00 am to 10:00 am	Culver Av to Audubon Av
	East	Tuesdays		
College St	West	Thursdays	1:00 pm to 3:00 pm	Culver Av to Audubon Av
	East	Tuesdays		
Columbia Av	West	Thursdays	1:00 pm to 3:00 pm	Secaucus Rd to Zabriskie St
	East	Tuesdays		
Columbus Dr	South	Thursdays	10:00 am to noon	Merseles St to Grove St
	North	Tuesdays		
	South	Thursdays	6:00 am to 8:00 am	Grove St to the Hudson River
	North	Tuesdays		
Communipaw Av	North	Tuesdays	7:00 am to 9:00 am	Suydam Av to Grand St
	South	Thursdays		
	South	Thursdays	7:00 am to 9:00 am	Route 440 to Grand St
	North	Tuesdays	4:00 pm to 6:00 pm	Route 440 to Grand St

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Concord St	East	Thursdays	10:00 am to noon	Hoboken Av to Hopkins Av
	West	Tuesdays		
Condict St	North	Thursdays	1:00 pm to 3:00 pm	Mallory Av to Delaware Av
	South	Tuesdays		
Congress St	South	Thursdays	10:00 am to noon	Nelson Av to Paterson Plank Rd
	North	Tuesdays		
Cook St	West	Thursdays	3:00 pm to 5:00 pm	Hoboken Av to Newark Av
	East	Tuesdays		
Corbin Av	East	Thursdays	10:00 am to noon	Stuyvesant Av to dead end off Broadway
	West	Tuesdays		
Corcoran St	West	Thursdays	10:00 am to noon	Woodlawn Av to Fulton Av
	East	Tuesdays		
Cornelison Av	East	Thursdays	6:00 am to 8:00 am	Summit Av to Wayne St
	West	Tuesdays		
Cottage St	North	Thursdays	3:00 pm to 5:00 pm	Summit Av to dead end
	South	Tuesdays		
Country Village Rd	East	Thursdays	3:00 pm to 5:00 pm	Entire length
	West	Tuesdays		
Court House Pl	South	Thursdays	3:00 pm to 5:00 pm	McPherson Pl to Oakland Av
	North	Tuesdays		
Covert St	West	Thursdays	1:00 pm to 3:00 pm	Saint Paul's Av to dead end
	East	Tuesdays		
Crawford St	North	Thursdays	10:00 am to noon	The dead end to Summit Av
	South	Tuesdays		
Crescent Av	West	Thursdays	8:00 am to 10:00 am	Belmont Av to Clinton Av
	East	Tuesdays		
Crossgate Rd	South	Thursdays	3:00 pm to 5:00 pm	Entire length
	North	Tuesdays		
Culver Av	South	Thursdays	1:00 pm to 3:00 pm	Route 440 to Kennedy Blvd
	North	Tuesdays		
Cuneo Pl	South	Thursdays	8:00 am to 10:00 am	Palisade Av to Ogden Av
	North	Tuesdays		
Custer Av	South	Tuesdays	1:00 p.m. to 3:00 p.m.	Entire length
	North	Thursdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Dales Av	East	Thursdays	10:00 am to noon	Logan Av to Broadway
	West	Tuesdays		
Danforth Av	South	Thursdays	8:00 am to 11:00 am	Route 440 to Princeton Av
	North	Tuesdays		Princeton Av to West Side Av
DeKalb Av	South	Tuesdays	8:00 am to 10:00 am	Entire length
	North	Thursdays		
Delaware Av	East	Thursdays	8:00 am to 10:00 am	Communipaw Av to the dead end
	West	Tuesdays		
	East	Thursdays	1:00 pm to 3:00 pm	Duncan Av to the dead end
	West	Tuesdays		
	East	Thursdays	1:00 pm to 3:00 pm	Duncan Av to Kensington Av
	West	Tuesdays		
Delmar Rd	North	Thursdays	3:00 pm to 5:00 pm	Entire length
	South	Tuesdays		
Dey St	South	Thursdays	1:00 pm to 3:00 pm	Senate Pl to Tonnele Av
	North	Tuesdays		
Division St	East	Thursdays	1:00 pm to 3:00 pm	Eighth St to Newark Av
	West	Tuesdays		
Douglas and Arthur Skinner Memorial Dr (FKA: Jersey Avenue)	Both	Thursdays	6:00 a.m. to 7:00 a.m.	Grand St south to the light rail tracks
Dudley St	South	Thursdays	1:00 pm to 3:00 pm	Washington St to Warren St
	North	Tuesdays		
Duncan Ct	West	Thursdays	3:00 pm to 5:00 pm	Duncan Av to the dead end
	East	Tuesdays		
Duncan Av	South	Thursdays	3:00 pm to 5:00 pm	Bergen Av to West Side Av
	North	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to the Hackensack River
	South	Tuesdays		
Dwight St	South	Thursdays	10:00 am to noon	Kennedy Blvd to Garfield Av
	North	Tuesdays		
East Bidwell Av	North	Thursdays	10:00 am to noon	Entire length
	South	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Eastern Pkwy	North	Thursdays	10:00 am to noon	Garfield Av to Ocean Av
	South	Tuesdays		
East St	West	Thursdays	3:00 pm to 5:00 pm	Entire length
East View Ct	East	Thursdays	10:00 pm to noon	Entire length
	West	Tuesdays		
Ege Av	South	Thursdays	1:00 pm to 3:00 pm	Bergen Av to Ocean Av
	North	Tuesdays		
	South	Thursdays	10:00 am to noon	Bennett Av to Bergen Av
	North	Tuesdays		
Eight St	South	Thursdays	1:00 pm to 3:00 pm	Provost St to Division St
	North	Tuesdays		
Eighteenth St	North	Wed	10:00 am to noon	Jersey Av to Park Ln
	South	Fri		
	North	Thurs	7:00 am to 8:00 am	Jersey Av to Coles St
	South	Tues		
Elizabeth St	North	Thursdays	8:00 am to 10:00 am	Waldo Av to Chestnut Av
	South	Tuesdays		
Elm St	South	Thursdays	8:00 am to 10:00 am	Kennedy Blvd to the dead end
	North	Tuesdays		
Emerson Av	West	Thursdays	10:00 am to noon	The cemetery to Logan Av
	East	Tuesdays		
Emory St	North	Thursdays	1:00 pm to 3:00 pm	Bergen Av to Monticello Av
	South	Tuesdays		
Enos Pl	East	Thursdays	7:00 am to 9:00 am	Sip Av to Newkirk St
	West	Tuesdays		
Erie St	East	Thursdays	10:00 am to noon	Newark Av to Twelfth St
	West	Tuesdays		
	East	Thursdays	6:00 am to 8:00 am	Twelfth St to Boyle Plaza
	West	Tuesdays		
	East	Thursdays	10:00 am to noon	Boyle Plaza to Sixteenth St
	West	Tuesdays		
Essex St	South	Thursdays	1:00 pm to 3:00 pm	Hudson St to Washington St
	North	Tuesdays		Van Vorst St to Warren St

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Everett St	East	Thursdays	10:00 am to noon	Clendenny Av to Williams Av
	West	Tuesdays		
Exeter Rd	South	Thursdays	3:00 pm to 5:00 pm	Entire length
	North	Tuesdays		
Fairmount Av	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to Bergen Av
	South	Tuesdays		
	South	Thursdays	8:00 am to 10:00 am	Summit Av to Grand St
	North	Tuesdays		
	North	Thursdays	10:00 am to 12 noon	Bergen Av to Summit Av
	South	Tuesdays		
Fairmount Ter	West	Thursdays	3:00 pm to 5:00 pm	Fairmount Av to Montgomery St
	East	Tuesdays		
Fairview Av	North	Thursdays	10:00 am to noon	Monticello Av to Fairmount Av
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to Monticello Av
	South	Tuesdays		
Ferncliff Rd	North	Thursdays	3:00 pm to 5:00 pm	Entire length
	South	Tuesdays		
Ferry St	South	Thursdays	1:00 pm to 3:00 pm	Central Av to Ogden Av
	North	Tuesdays		
Fifteenth St	North	Thursdays	1:00 pm to 3:00 pm	Marin Blvd to Erie St
	South	Tuesdays		
	South	Thursdays	10:00 am to noon	Jersey Av to Coles St
	North	Tuesdays		
Fifth St	South	Thursdays	1:00 pm to 3:00 pm	Newark Av to Manila Av
	North	Tuesdays		
First St	South	Thursdays	1:00 pm to 3:00 pm	Merseles St to Marin Blvd
	North	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Marin Blvd to Washington St
	South	Tuesdays		
Fisk St	North	Thursdays	1:00 pm to 3:00 pm	Route 440 West Side Av
	South	Tuesdays		
Fleet St	South	Thursdays	1:00 pm to 3:00 pm	Central Av to Palisade Av
	North	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Florence St	West	Thursdays	8:00 am to 10:00 am	Bright St to Montgomery St
	East	Tuesdays		
Floyd St	North	Thursdays	8:00 am to 10:00 am	Kennedy Blvd to the dead end
	South	Tuesdays		
Forrest St	South	Thursdays	1:00 pm to 3:00 pm	Bergen Av to Clerk St
	North	Tuesdays		
	South	Mon & Thurs	8:00 am—10:00 am	Dead end to Pacific Av
	North	Tues & Fri		
Fourteenth St	North	Thursdays	6:00 am to 8:00 am	Jersey Av to Coles St
	South	Tuesdays		
Fourth St	North	Thursdays	1:00 pm to 3:00 pm	Manila Av to Newark Av
	South	Tuesdays		
	North	Thursdays	6:00 am to 8:00 am	Newark Av to Merseles St
	South	Tuesdays		
Fowler Av	West	Thursdays	10:00 am to noon	Kennedy Blvd to Greenville Av
	East	Tuesdays		
Fox Pl	South	Thursdays	10:00 am to noon	West Side Av to Giles Av
	North	Tuesdays		
Franklin	North	Thursdays	10:00 am to noon	Ogden Av to Central Av
	South	Tuesdays		
Freedom Pl	North	Thursdays	10:00 am to noon	Entire length
	South	Tuesdays		
Freeman Av	East	Thursdays	1:00 pm to 3:00 pm	Duncan Av to the dead end
	West	Tuesdays		
Fremont St	East	Thursdays	8:00 am to 10:00 am	Bright St to Grand St
	West	Tuesdays		
Fulton Av	North	Thursdays	10:00 am to noon	Garfield Av to Kennedy Blvd
	South	Tuesdays		
	South	Thursdays	3:00 pm to 5:00 pm	West Side Av to Kennedy Blvd
	North	Tuesdays		
Garabrant St	West	Thursdays	10:00 am to noon	Entire length
	East	Tuesdays		
Gardner Av	South	Thursdays	8:00 am to 10:00 am	Monticello Av to Summit Av
	North	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Garfield Av	East	Thursdays	8:00 am to 10:00 am	Grand St to Communipaw Av
	West	Tuesdays		
	West	Tuesdays	9:00 am to 11:00 am	Communipaw Av to Bidwell Av
	East	Thursdays	8:00 am to 10:00 am	150 ft south of the projected southeast curb line of Union St to a point 1,200 ft northerly
	East	Thursdays	8:00 am to 10:00 am	Bidwell Av to Danforth Av
	West	Tuesdays		
	East	Thursdays	3:00 pm to 5:00 pm	Danforth Av to Bayonne City line
	West	Tuesdays		
Garrison Av	West	Thursdays	10:00 am to noon	Old Bergen Rd to DeKalb Av
	East	Tuesdays		
Gates Av	South	Thursdays	1:00 pm to 3:00 pm	Old Bergen Rd to dead end
	North	Tuesdays		
	South	Thursdays	3:00 pm to 5:00 pm	Princeton Av to Old Bergen Rd
	North	Tuesdays		
Gautier Av	South	Thursdays	1:00 pm to 3:00 pm	Mallory Av to West Side Av
	North	Tuesdays		
Gifford Av	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to Bergen Av
	South	Tuesdays		
Giles Av	West	Thursdays	10:00 am to noon	The dead end to the dead end off Broadway
	East	Tuesdays		
Glenwood Av	South	Thursdays	3:00 pm to 5:00 pm	Bergen Av to West Side Av
	North	Tuesdays		
Grace St	North	Thursdays	10:00 am to noon	Central Av to Nelson Av
	South	Tuesdays		
Graham St	North	Thursdays	10:00 am to noon	Central Av to Nelson Av
	South	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Grand St	North	Thursdays	8:00 am to 10:00 am	Grove St to Communipaw Av
	South	Tuesdays	8:00 am to 10:00 am	Jersey Av to Communipaw Av
	East	Thursdays	8:00 am to 10:00 am	Communipaw Av to Bramhall Av
	West	Tuesdays		
	South	Thursdays	1:00 pm to 3:00 pm	Grove St to Greene St
	North	Tuesdays	1:00 pm to 3:00 pm	Grove St to Marin Blvd
Grant Av	South	Thursdays	3:00 pm to 5:00 pm	Bergen Av to Ocean Av
	North	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Bergen Av to dead end
	South	Tuesdays		
Gray St	East	Thursdays	3:00 pm to 5:00 pm	Mercer St to Academy St
	West	Tuesdays		
Greene St	West	Thursdays	1:00 pm to 3:00 pm	Essex St to Montgomery St
	East	Tuesdays		
Greenville Av	North	Thursdays	10:00 am to noon	Kennedy Blvd to dead end off Fowler Av
	South	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	Kennedy Blvd to Old Bergen Rd
	South	Tuesdays		
Grieco Dr	East and North	Thursdays	10:00 am to noon	Entire length
	West and South	Tuesdays		
Griffith St	South	Thursdays	10:00 am to noon	Kennedy Blvd to dead end
	North	Tuesdays		
Grove St	West	Thursdays	6:00 am to 8:00 am	Hoboken line to Sixteenth St
	East	Tuesdays		
	West	Thursdays	10:00 am to noon	Sixteenth St to Boyle Plaza
	East	Tuesdays		
	West	Thursdays	8:00 am to 10:00 am	First St to Newark Av
	East	Tuesdays		
	East	Thursdays	8:00 am to 11:00 am	Newark Av to Columbus Dr
	West	Tuesdays		
	East	Thursdays	10:00 a.m. to noon	Morris Blvd to Sussex St

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Hague St	North	Thursdays	10:00 am to noon	Central Av to Nelson Av
	South	Tuesdays	10:00 am to noon	Paterson Plank Rd to Nelson Av
Halladay St	East	Thursdays	8:00 am to 10:00 pm	Caven Point Av to Ash St
	West	Tuesdays		
Halstead St	West	Thursdays	1:00 pm to 3:00 pm	Orient Av to Claremont Av
	East	Tuesdays		
Hancock Av	West	Thursdays	10:00 am to noon	North St to Franklin St
	East	Tuesdays		
Harmon St	North	Thursdays	8:00 am to 10:00 am	Crescent Av to Garfield Av
	South	Tuesdays		
Harrison Av	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to Communipaw Av
	South	Tuesdays		
Hart St	West	Thursdays	1:00 pm to 3:00 pm	Ege Av to Kearney Av
	East	Tuesdays		
Hawthorne Av	East	Thursdays	10:00 am to noon	The cemetery to Sip Av
	West	Tuesdays		
Henry St	North	Thursdays	8:00 am to 10:00 am	Waldo Av to the dead end
	South	Tuesdays		
High St	South	Thursdays	3:00 pm to 5:00 pm	Entire length
	North	Tuesdays		
Highland Av	North	Thursdays	3:00 pm to 5:00 pm	West Side Av to Bergen Av
	South	Tuesdays		
Highview Rd	East	Thursdays	3:00 pm to 5:00 pm	Stevens Av to Fowler Av
Hill St	South	Thursdays	1:00 pm to 3:00 pm	Palisade Av to dead end
	North	Tuesdays		
Hoboken Av	South	Thursdays	3:00 pm to 5:00 pm	Summit Av to Route 139
	North	Tuesdays		
Hobson St	South	Tuesdays	8:00 am to 10:00 am	Ogden Av to Palisade Av
	North	Thursdays		
Holmes Av	East	Thursdays	10:00 am to noon	The cemetery to Sip Av
	West	Tuesdays		
Homestead Pl	Both	Thursdays	3:00 pm to 5:00 pm	Van Reipen Av to Pavonia Av
		Tuesdays		
Hopkins Av	South	Thursdays	1:00 pm to 3:00 pm	Route 139 to Palisade Av
	North	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Howard Pl	North	Thursdays	10:00 am to noon	Summit Av to Storms Av
	South	Tuesdays		
Hudson St	East	Thursdays	1:00 pm to 3:00 pm	York St to Montgomery St
	West	Tuesdays		
	East	Thursdays	1:00 pm to 3:00 pm	Harborside Pl (private road) to Second St
	West	Tuesdays		
Huron Av	West	Thursdays	3:00 pm to 5:00 pm	Saint Paul's Av to Van Winkle Av
	East	Tuesdays		
Hutton St	South	Thursdays	10:00 am to noon	Liberty Av to Palisade Av
	North	Tuesdays		
Iorio Ct	East	Thursdays	3:00 pm to 5:00 pm	Van Houten Av to dead end
	West	Tuesdays		
Irene Carson Ct	North	Thursdays	10:00 pm to noon	Manning Av to Woodward St
	South	Tuesdays		
Irving St	North	Thursdays	10:00 am to noon	Central Av to Nelson Av
	South	Tuesdays		
Ivy Pl	North	Thursdays	8:00 am to 10:00 am	Grand St to Cornelison Av
	South	Tuesdays		
Jackson Av	West	Thursdays	8:00 am to 10:00 am	Communipaw Av to Clinton Av
	East	Tuesdays		
Jefferson Av	North	Thursdays	1:00 pm to 3:00 pm	Palisade Av to Summit Av
	South	Tuesdays		
Jersey Av	East	Thursdays	6:00 am to 8:00 am	Hoboken line to Twelfth St
	West	Tuesdays		
	East	Thursdays	8:00 am to 10:00 am	Twelfth St to Canal St
	West	Tuesdays		
Jewett Av	South	Thursdays	10:00 am to noon	Summit Av to Monticello Av
	North	Tuesdays		
	South	Thursdays	1:00 pm to 3:00 pm	Monticello Av to West Side Av
	North	Tuesdays		
Johnston Av	North	Thursdays	8:00 am to 10:00 am	Grand St to Cornelison Av
	South	Tuesdays		
	North	Thursdays	10:00 am to noon	The light rail tracks to Grand St
	South	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Jones St	West	Thursdays	7:00 am to 9:00 am	Newkirk St to Sip Av
	East	Tuesdays		
Jordan Av	East	Thursdays	10:00 am to noon	Vroom St to Orchard St
	West	Tuesdays		
James Av	East	Thursdays	1:00 pm to 3:00 pm	Saint Paul's Av to Dey St
	West	Tuesdays		
Kearney Av	North	Thursdays	1:00 pm to 3:00 pm	Ocean Av to Bergen Av
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to dead end
	South	Tuesdays		
Kensington Av	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to Bergen Av
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to Lincoln Park
	South	Tuesdays		
Lafayette St	North	Thursdays	10:00 am to noon	Monitor St to Manning Av
	South	Tuesdays		
Laidlaw Av	South	Thursdays	1:00 pm to 3:00 pm	Collard St to Palisade Av
	North	Tuesdays		
Lake St	North	Thursdays	8:00 am to 10:00 am	Montrose Av to Liberty Av
	South	Tuesdays		
Larch Av	West	Thursdays	1:00 pm to 3:00 pm	Saint Paul's Av to dead end
	East	Tuesdays		
Laurel Ct	West	Thursdays	1:00 pm to 3:00 pm	Entire length
	East	Tuesdays		
Lembeck Av	South	Thursdays	3:00 pm to 5:00 pm	Princeton Av to Kennedy Blvd
	North	Tuesdays		
	North	Thursdays	10:00 am to noon	Kennedy Blvd to Sullivan Dr
	South	Tuesdays		
Leonard St	South	Thursdays	10:00 am to noon	Terrace Av to Central Av
	North	Tuesdays		
Lexington Av	North	Thursdays	8:00 am to 10:00 am	Bergen Av to Marcy Av
	South	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Liberty Av	East	Thursdays	1:00 pm to 3:00 pm	Newark Av to dead end off Saint Paul's Av
	West	Tuesdays		
	West	Thursdays	1:00 pm to 3:00 pm	Secaucus Rd to dead end off Spruce St
	East	Tuesdays		
Lienau Pl	West	Thursdays	1:00 pm to 3:00 pm	Waverly St to Booraem Av
	East	Tuesdays		
Lincoln Park	South	Mon & Thurs	7:00 am—9:00 am	Entire length including parking lots
	North	Tues & Fri		
Lincoln St	North	Thursdays	10:00 pm to noon	Central Av to Kennedy Blvd
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to Western Av
	South	Tuesdays		
Linden Av	North	Thursdays	3:00 pm to 5:00 pm	Old Bergen Rd to Princeton Av
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to Old Bergen Rd
	South	Tuesdays		
	South	Thursdays	10:00 am to noon	Kennedy Blvd to dead end
	North	Tuesdays		
Linden Ct	West	Thursdays	3:00 pm to 5:00 pm	Linden Av to dead end
	East	Tuesdays		
Logan Av	North	Thursdays	10:00 am to noon	West Side Av to Freeman Av
	South	Tuesdays		
Long St	East	Thursdays	8:00 am to 10:00 am	Rose Av to McAdoo Av
	West	Tuesdays		
Ludlow St	East	Thursdays	1:00 pm to 3:00 pm	New St to Chapel Av
	West	Tuesdays		
Madison Av	East	Thursdays	8:00 am to 10:00 am	Bramhall Av to Communipaw Av
	West	Tuesdays		
Magnolia Av	South	Thursdays	3:00 pm to 5:00 pm	Waldo Av to Tonnele Av
	North	Tuesdays		
Maiden Ln	South	Thursdays	10:00 am to noon	Summit Av to Orchard St
	North	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Mallory Av	East	Thursdays	1:00 pm to 3:00 pm	Duncan Av to dead end
	West	Tuesdays		
	West	Thursdays	1:00 pm to 3:00 pm	Duncan Av to Gautier Av
	East	Tuesdays		
	East	Thursdays	8:00 am to 10:00 pm	Fisk St to Communipaw Av
	West	Tuesdays		
Manhattan Av	South	Thursdays	10:00 am to noon	Central Av to Sherman Pl
	North	Tuesdays		
	South	Thursdays	8:00 am to 10:00 am	Tonnele Av to Central Av
	North	Tuesdays		
Manila Av	West	Thursdays	6:00 am to 8:00 am	Boyle Plaza to Twelfth St
	East	Tuesdays		
	West	Thursdays	8:00 am to 10:00 am	Twelfth St to First St
	East	Tuesdays		
Manning Av	West	Thursdays	10:00 am to noon	Johnston Av to Irene Carson Ct
	East	Tuesdays		
Maple St	South	Thursdays	10:00 am to noon	Manning Av to dead end
	North	Tuesdays		
Marcy Av	West	Thursdays	8:00 am to 10:00 am	Clendenny Av to Communipaw Av
	East	Tuesdays		
Marin Blvd	West	Thursdays	7:00 am to 8:00 am	Twelfth St to Hoboken line
	East	Tuesdays		
	West	Thursdays	8:00 am to 10:00 am	Grand St to Twelfth St
	East	Tuesdays	8:00 am to 10:00 am	Grand St to Sussex St
Marion Pl	South	Thursdays	10:00 am to noon	Giles Av to West Side Av
	North	Tuesdays		
Martin Luther King Dr	West	M—Sat	9:00 am to 10:00 am	Communipaw Av to McAdoo Av
	East	M—Sat	7:30 am to 9:00 am	Communipaw Av to McAdoo Av
McAdoo Av	North	Thursdays	1:00 pm to 3:00 pm	Rutgers Av to Kennedy Blvd
	South	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	Kennedy Blvd to West Side Av
	South	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
McDougal St	South	Thursdays	8:00 am to 10:00 am	Randolph Av to Arlington Av
	North	Tuesdays		
McPherson Pl	West	Thursdays	3:00 pm to 5:00 pm	Washburn St to Newark Av
	East	Tuesdays		
McWilliams Pl	East	Thursdays	8:00 am to 10:00 am	Ninth St to Eighth St
	West	Tuesdays		
Mercer St	North	Thursdays	8:00 am to 10:00 am	Marin Blvd to Colgate St
	South	Tuesdays		
	South side of St/north side of island	Thursdays	10:00 am to noon	Cul-de-sac at Mercer Loop
	North side of St/south side of island	Tuesdays		
	South	Thursdays	10:00 am. to noon	Mill Rd to Tuers Av
	North	Tuesdays		
	South	Thursdays	3:00 pm to 5:00 pm	Tuers Av to Bergen Av
	North	Tuesdays		
Merritt St	North	Thursdays	1:00 pm to 3:00 pm	Av C to the Western Terminus
	South	Tuesdays		
Merseles St	East	Thursdays	10:00 am to noon	Columbus Dr to Bright St
	West	Tuesdays		
	West	Thursdays	6:00 am to 8:00 am	Newark Av to Third St
	East	Tuesdays		
Mill Rd	West	Thursdays	10:00 am to noon	Montgomery St to Academy St
	East	Tuesdays		
Miller St	East	Thursdays	10:00 am to noon	Clendenny Av to Williams Av
	West	Tuesdays		
Milton Av	East	Thursdays	1:00 pm to 3:00 pm	Griffith St to Charles St
	West	Tuesdays		
Mina Dr	South	Thursdays	3:00 pm to 5:00 pm	Entire length
	North	Tuesdays		
Minerva St	East	Thursdays	1:00 pm to 3:00 pm	South terminus to Union St
	West	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Monitor St	West	Thursdays	10:00 am to noon	Dead end to Communipaw Av
	East	Tuesdays		
Monmouth St	East	Thursdays	10:00 am to noon	Dead end off Grand St to Twelfth St
	West	Tuesdays		
Montague Pl	South	Thursdays	1:00 pm to 3:00 pm	Palisade Av to dead end
	North	Tuesdays		
Montgomery St	North	Thursdays	6:00 am to 8:00 am	Baldwin Av to Center St
	South	Tuesdays		
	South	Thursdays	3:00 pm to 5:00 pm	Baldwin Av to West Side Av
	North	Tuesdays		
	South	Thursdays	8:00 am to 10:00 am	Center St to Marin Blvd
	North	Tuesdays		
Monticello Av	East	Thursdays	8:00 am to 10:00 am	Communipaw Av to Orchard St
	West	Tuesdays		
	East	Thursdays	8:00 am to 10:00 am	Clinton Av to Bramhall Av
	West	Tuesdays		
Montrose Av	East	Thursdays	10:00 am to noon	Troy St to Manhattan Av
	West	Tuesdays		
Morgan St	North	Tues	1:00 pm to 3:00 pm	Greene St to Marin Blvd
	South	Thurs		
Morris Blvd	North	Thursdays	10:00 a.m. to noon	Marin Blvd to Grove St
Morris St	South	Thursdays	1:00 pm to 3:00 pm	Hudson St to Greene St
	North	Tuesdays		
	South	Thursdays	1:00 pm to 3:00 pm	Greene Street to Warren Street
	North	Tuesdays		
	South	Thursdays	1:00 pm to 3:00 pm	Warren Street to Van Vorst Street
	North	Tuesdays		
				Grove St to Marin Blvd
Morton Pl	South	Thursdays	1:00 pm to 3:00 pm	Bergen Av to west terminus
	North	Tuesdays		
Morton St	West	Thursdays	10:00 am to noon	Clendenny Av to Williams Av
	East	Tuesdays		
Msgr. Wojtycha Dr	South	Thursdays	10:00 am to noon	Entire length
	North	Tuesdays		
Mury Lu Dr	North	Thursdays	3:00 pm to 5:00 pm	Entire length
	South	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Myrtle Av	South	Thursdays	1:00 pm to 3:00 pm	Ocean Av to Garfield Av
	North	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	Ocean Av to Bergen Av
	South	Tuesdays		
Nelson Av	East	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to Secaucus Rd
	West	Tuesdays		
Neptune Av	South	Thursdays	3:00 pm to 5:00 pm	Princeton Av to Garfield Av
	North	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	Garfield Av to Old Bergen Rd
	South	Tuesdays		
	South	Thursdays	1:00 pm to 3:00 pm	Old Bergen Rd to Kennedy Blvd
	North	Tuesdays		
	South	Thursdays	10:00 am to noon	Kennedy Blvd to Sayles St
	North	Tuesdays		
Nesbitt St	West	Thursdays	1:00 pm to 3:00 pm	Reservoir Av to Booraem Av
	East	Tuesdays		
New St	North	Thursdays	1:00 pm to 3:00 pm	Rutgers Av to Ocean Av
	South	Tuesdays		
Newark Av	Both	M—F	7:00 am to 9:00 am	Tonnele Av to Grove St
	North	Sat	7:30 am to 9:00 am	
	South	Sat	9:00 am to 10:00 am	
Newkirk St	North	Thursdays	3:00 pm to 5:00 pm	Sip Av to Baldwin Av
	South	Tuesdays		
Newport Pkwy	South	Thursdays	6:00 am to 8:00 am	River Dr South to Washington Blvd
	North	Tuesdays		
New York Av	West	Thursdays	8:00 am to 10:00 am	Paterson Plank Rd to Ravine Av
	East	Tuesdays		
Ninth St	North	Thursdays	1:00 pm to 3:00 pm	Marin Blvd to the turnpike bridge
	South	Tuesdays		
Norcroft Rd	North	Thursdays	3:00 pm to 5:00 pm	Entire length
	South	Tuesdays		
North St	North	Thurs	10:00 am to noon	Tonnele Av to Central Av
	South	Tues		
	South	Thurs	10:00 am to noon	
	North	Tues		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Nunda Av	East	Thursdays	1:00 pm to 3:00 pm	Duncan Av north to dead end
	West	Tuesdays		
	East	Thursdays	8:00 am to 10:00 am	Communipaw Av north to dead end
	West	Tuesdays		
Oak St	North	Thursdays	1:00 pm to 3:00 pm	Ocean Av to Bergen Av
	South	Tuesdays	1:00 pm to 3:00 pm	Ocean Av to Bergen Av
Oakdale Rd	South	Thursdays	3:00 pm to 5:00 pm	Entire length
	North	Tuesdays		
Oakland Av	West	Thursdays	10:00 am to noon	Prospect St to Route 139
	East	Tuesdays		
	East	Thursdays	3:00 pm to 5:00 pm	Newark Av to Route 139
	West	Tuesdays		
Ocean Av	East	M, W and F	8:00 am to 10:00 am	Merritt St to Bramhall Av
	West	Tu, Th and Sat		
Olean Av	West	Thursdays	1:00 pm to 3:00 pm	Duncan Av north to dead end
	East	Tuesdays		
	East	Thursdays	8:00 am to 10:00 am	Communipaw Av north to dead end
	West	Tuesdays		
Ogden Av	East	Thursdays	8:00 am to 10:00 am	Entire length
	West	Tuesdays		
Old Bergen Rd	East	Thursdays	8:00 am to 10:00 am	McAdoo Av to Merritt St
	West	Tuesdays		
Orchard St	East	Thursdays	10:00 am to noon	Montgomery St to Crawford St
	West	Tuesdays		
Orient Av	South	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to Ocean Av
	North	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to Halstead St
	South	Tuesdays		
Oxford Av	South	Thursdays	8:00 am to 10:00 am	West Side Av to Bergen Av
	North	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Bergen Av to Sackett St
	South	Tuesdays		
Pacific Av	West	Thursdays	8:00 am to 10:00 am	Grand St to Caven Point Av
	East	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Palisade Av	East	Thursdays	8:00 am to 10:00 am	Hoboken Av to Plank Rd
	West	Tuesdays		
	East	Thursdays	3:00 pm to 5:00 pm	Hoboken Av to Newark Av
	West	Tuesdays		
Pamrapo Av	South	Thursdays	1:00 pm to 3:00 pm	The dead end to Old Bergen Rd
	North	Tuesdays		
Park St	West	Thursdays	8:00 am to 10:00 am	Astor Pl to Communipaw Av
	East	Tuesdays		
Parnell Pl	West	Thursdays	10:00 am to noon	Warner Av to McAdoo Av
	East	Tuesdays		
Passaic Av	East	Thursdays	10:00 pm to noon	South St to Congress St
	West	Tuesdays		
Paterson St	North	Thursdays	10:00 am to noon	Central Av to Kennedy Blvd
	South	Tuesdays		
Pavonia Av	South	Thursdays	1:00 pm to 3:00 pm	Manila Av to Brunswick St
	North	Tuesdays		
	North	Thursdays	10:00 am to noon	rear of Loews to Tonnele Av
	South	Tuesdays		
	North	Thursdays	8:00 am to 10:00 am	Tonnele Av to West Side Av
	South	Tuesdays		
	North	Thursdays	10:00 am to noon	West Side Av to Giles Av
	South	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	Newark Av to Kennedy Blvd
	South	Tuesdays		
Pearl St	South	Thursdays	6:00 am to 7:00 am	Washington St to Greene St
	North	Tuesdays		
Pearsall Av	South	Thursdays	10:00 am to noon	Kennedy Blvd to Brother Stan Dr
	North	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to Old Bergen Rd
	South	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	Old Bergen Rd to Princeton Av
	South	Tuesdays		
Perrine Av	East	Thursdays	3:00 pm to 5:00 pm	High St to the dead end
	West	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Perry St	West	Thursdays	1:00 pm to 3:00 pm	Hopkins Av to dead end
	East	Tuesdays		
Pierce Av	West	Thursdays	10:00 am to noon	Congress St to South St
	East	Tuesdays		
Pine St	West	Thursdays	1:00 pm to 3:00 pm	Ash St to the dead end
	East	Tuesdays		
Pinecrest	South	Thursdays	3:00 pm to 5:00 pm	Entire length
	North	Tuesdays		
Plainfield Av	East	Thursdays	1:00 pm to 3:00 pm	Duncan Av to the dead end
	West	Tuesdays		
Pollack Av	North	Thursdays	1:00 pm to 3:00 pm	West Side Av to Mallory Av
	South	Tuesdays		
Poplar St	South	Thursdays	10:00 am to noon	Nelson Av to Central Av
	North	Tuesdays		
Prescott St	East	Thursdays	8:00 am to 10:00 pm	Grand St to the dead end
	West	Tuesdays		
Princeton Av	West	Thursdays	3:00 pm to 5:00 pm	Gates Av to Cator Av
	East	Tuesdays		
Prospect St	North	Thursdays	1:00 pm to 3:00 pm	Palisade Av to Central Av
	South	Tuesdays		
Provost St	East	Thursdays	1:00 pm to 3:00 pm	Bay St to Second St
	West	Tuesdays		
Randolph Av	East	Thursdays	8:00 am to 10:00 am	Wilkinson Av to Communipaw Av
	West	Tuesdays		
Ravine Av	South	Thursdays	1:00 pm to 3:00 pm	Abbett St to Palisade Av
	North	Tuesdays		
Reed St	South	Thursdays	1:00 pm to 3:00 pm	Monticello Av to Bergen Av
	North	Tuesdays		
Reserve Av	North	Thursdays	1:00 pm to 3:00 pm	Terrace Av to dead end
	South	Tuesdays		
Reservoir Av	South	Thursdays	1:00 pm to 3:00 pm	Central Av to Palisade Av
	North	Tuesdays		
Richard St	North	Thursdays	10:00 am to noon	Entire length
	South	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Ristaino Dr	East	Thursdays	10:00 am to noon	Montgomery St to Wayne St
	West	Tuesdays		
	West	Thursdays	10:00 am to noon	Montgomery St to Academy St
	East	Tuesdays		
River Dr South	West	Thursdays	6:00 am to 8:00 pm	Newport Pkwy to Pavonia Av
	East	Tu and Th		
Riverview Rd	East	Thursdays	3:00 pm to 5:00 pm	Entire length
	West	Tuesdays		
Rock St	South	Thursdays	3:00 pm to 5:00 pm	Baldwin Av to Summit Av
	North	Tuesdays		
Romaine Av	East	Thursdays	10:00 am to noon	Stuyvesant Av to Broadway
	West	Tuesdays		
Romar Av	East	Thursdays	10:00 am to noon	Greenville Av to Seaview Av
	West	Tuesdays		
Roosevelt Av	South	Thursdays	8:00 am to 10:00 am	Marcy Av to West Side Av
	North	Tuesdays		
Rose Av	West	Thursdays	3:00 pm to 5:00 pm	Kearney Av to Grant Av
	East	Tuesdays		
	West	Thursdays	10:00 am to noon	Fulton Av to Armstrong Av
	East	Tuesdays		
	West	Thursdays	8:00 am to 10:00 am	Warner Av to Danforth Av
	East	Tuesdays		
Rutgers Av	West	Thursdays	10:00 am to noon	Van Nostrand Av to Cator Av
	East	Tuesdays		
Sackett St	East	Thursdays	8:00 am to 10:00 am	Communipaw Av to Oak St
	West	Tuesdays		
Saddlewood Ct	West	Thursdays	1:00 pm to 3:00 pm	Entire length
	East	Tuesdays		
St. Paul's Av	North	Thursdays	1:00 pm to 3:00 pm	Palisade Av to Kennedy Blvd
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Tonnele Av to James Av
	South	Tuesdays	1:00 pm to 3:00 pm	Skillman Av to James Av
St. Peter's St	East	Thurs	1:00 pm to 3:00 pm	Sussex St to Morris Blvd
	West	Tues		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Sanford Pl	West	Thursdays	10:00 am to 12:00 am	Kennedy Blvd to Summit Av
	East	Tuesdays		
Sayles St	West	Thursdays	10:00 am to noon	Winfield Av to Neptune Av
	East	Tuesdays		
Scott St	East	Thursdays	1:00 pm to 3:00 pm	Greenville Av to Linden Av
	West	Tuesdays		
Seaview Av	North	Thursdays	10:00 am to noon	Kennedy Blvd to Romar Av
	South	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	Kennedy Blvd to Princeton Av
	South	Tuesdays		
Second St	North	Thursdays	1:00 pm to 3:00 pm	Eastern terminus to Monmouth St
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Monmouth St to Brunswick St
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Brunswick St to Merseles St
	South	Tuesdays		
Seidler St	West	Thursdays	8:00 am to 10:00 am	Bramhall Av to Communipaw Av
	East	Tuesdays		
Senate Pl	East	Thursdays	1:00 pm to 3:00 pm	Newark Av to Dey St
Seventeenth St	South	Thursdays	7:00 am to 8:00 am	Coles St to Jersey Av
	North	Tuesdays		
Seventh St	North	Thursdays	1:00 pm to 3:00 pm	Provost St to Newark Av
	South	Tuesdays		
Sheffield St	South	Thursdays	1:00 pm to 3:00 pm	Ocean Av to Rutgers Av
	North	Tuesdays		
Sherman Av	East	Thursdays	10:00 am to noon	Ferry St to North St
	West	Tuesdays		
Sherman Pl	North	Thursdays	10:00 am to noon	Central Av to Kennedy Blvd
	South	Tuesdays		
Sip Av	South	Thursdays	8:00 am to 10:00 am	Truck Route 1 & 9 to Kennedy Blvd
	North	Tuesdays		
	Both	Sat	7:00 am to 9:00 am	Summit Av to Jones St
	Both	Sat	6:00 am to 9:00 am	Bergen Av to Newkirk St

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Sixteenth St	North	Th	6:00 am to 8:00 am	Coles St to Jersey Av
		Th	1:00 pm to 3:00 pm	Jersey Av to Marin Blvd
	South	Tu	6:00 am to 8:00 am	Coles St to Jersey Av
		Tu	1:00 pm to 3:00 pm	Jersey Av to Marin Blvd
Sixth St	North	Thursdays	1:00 pm to 3:00 pm	Marin Blvd to Newark Av
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Jersey Av to Marin Blvd
	South	Tuesdays		
Skillman Av	East	Thursdays	1:00 pm to 3:00 pm	Van Winkle Av to dead end
	West	Tuesdays		
Skyline Dr	South	Thursdays	8:00 am to 10:00 am	Entire length
	North	Tuesdays		
Smith St	North	Mon & Thurs	3:00 pm to 5:00 pm	Bergen Av to dead end
South St	South	Thursdays	10:00 am to noon	Ogden Av to Central Av
	North	Tuesdays		
	North	Thursdays	10:00 am to noon	Central Av to Kennedy Blvd
	South	Tuesdays		
Spring St	East	Thursdays	3:00 pm to 5:00 pm	Cator Av to McAdoo Av
	West	Tuesdays		
Spruce St	South	Thursdays	8:00 am to 10:00 am	Tonnele Av to Collard St
	North	Tuesdays		
Stagg St	North	Thursdays	8:00 am to 10:00 am	Kennedy Blvd to Liberty Av
	South	Tuesdays		
Stanfield Ln	East	Thursdays	1:00 pm to 3:00 pm	Gates Av to Custer Av
State St	North	Thursdays	8:00 am to 10:00 am	Grand St to Cornelison Av
	South	Tuesdays		
Stegman Ct	East	Thursdays	3:00 pm to 5:00 pm	The dead end to Stegman Pkwy
	West	Tuesdays		
Stegman Pkwy	South	Thursdays	3:00 pm to 5:00 pm	West Side Av to Kennedy Blvd
	North	Tuesdays		
Stegman Pl	East	Thursdays	3:00 pm to 5:00 pm	The dead end to Stegman Pkwy
	West	Tuesdays		
Stegman St	South	Tuesdays	10:00 am to noon	Garfield Av to Kennedy Blvd
	North	Thursdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Stegman Ter	East	Thursdays	3:00 pm to 5:00 pm	The dead end to Stegman Pkwy
	West	Tuesdays		
Sterling Av	West	Thursdays	10:00 am to noon	The dead end to McAdoo Av
	East	Tuesdays		
Steuben St	North	Thursdays	1:00 pm to 3:00 pm	Marin Blvd to Washington St
	South	Tuesdays		
	North	Thursdays	6:00 am to 7:00 am	Washington St to Warren St
	South	Tuesdays		
Stevens Av	North	Thursdays	10:00 am to noon	Ocean Av to Kennedy Blvd
	South	Tuesdays		
	South	Thursdays	3:00 pm to 5:00 pm	Kennedy Blvd to West Side Av
Storms Av	South	Thursdays	10:00 am to noon	Summit Av to Bergen Av
	North	Tuesdays		
Stuyvesant Av	North	Thursdays	8:00 am to 10:00 am	Van Reypen St to West Side Av
	South	Tuesdays		
Suburbia Ct	North	Thursdays	3:00 pm to 5:00 pm	Suburbia Dr to Route 440, north section
	South	Tuesdays		
	South	Thursdays	3:00 pm to 5:00 pm	Suburbia Dr to Route 440, south section
	North	Tuesdays		
Suburbia Dr	East	Thursdays	3:00 pm to 5:00 pm	Entire length
	West	Tuesdays		
Suburbia Ter	West and south	Thursdays	3:00 pm to 5:00 pm	Entire length
	East and north	Tuesdays		
Sullivan Dr	East	Thursdays	3:00 pm to 5:00 pm	Bartholdi Av to Danforth Av
	West	Thursdays	3:00 pm to 5:00 pm	Danforth Av to Bartholdi Av
Summit Av	West	Thursdays	8:00 am to 10:00 am	Sip Av to Communipaw Av
	East	Tuesdays		
	East	Thursdays	8:00 am to 10:00 am	Sip Av to Secaucus Rd
	West	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Sussex St	North	Thursdays	1:00 pm to 3:00 pm	Dead end west of Van Vorst St to Washington St
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Washington St to Greene St
	South	Tuesdays		
	North	Thursdays	10:00 am to noon	Marin Blvd to St. Peter's St
			1:00 pm to 3:00 pm	Grove St to Marin Blvd
	South	Tues		
Suydam Av	West	Thursdays	7:00 am to 8:00 am	Entire length
	East	Tuesdays		
Sycamore Rd	East	Thursdays	3:00 pm to 5:00 pm	Entire length
	West	Tuesdays		
Tenth St	South	Thursdays	10:00 a.m. to noon	Marin Blvd to Brunswick St
	North	Tuesdays		
Terhune Av	South	Thursdays	3:00 pm to 5:00 pm	Spring St to Kennedy Blvd
	North	Tuesdays		
Terrace Av	East	Thursdays	1:00 pm to 3:00 pm	Manhattan Av to Tonnele Av
	West	Tuesdays		
Third St	South	Thursdays	1:00 pm to 3:00 pm	Newark Av to Manila Av
	North	Tuesdays		
	South	Thursdays	6:00 am to 8:00 am	Western Terminus to Newark Av
	North	Tuesdays		
Thorne St	South	Thursdays	1:00 pm to 3:00 pm	The west terminus to Central Av
	North	Tuesdays		
Tonnele Av	East	Thursdays	3:00 pm to 5:00 pm	Van Reypen St to Kennedy Blvd
	West	Tuesdays		
	West	Tuesdays	8:00 am to 10:00 am	Highway Circle to Kennedy Blvd
	East	Thursdays		
Town Square Pl	North	Thursdays	6:00 am to 8:00 am	River Dr South to Washington Blvd
	South	Tuesdays		
Towers St	East	Thursdays	8:00 am to 10:00 am	Culver Av to College St
	West	Tuesdays		
Trenton St	South	Thursdays	8:00 am to 10:00 am	Chestnut Av to dead end
	North	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Troy St	North	Thursdays	10:00 am to 12:00 pm	Summit Av to Montrose Av
	South	Tuesdays		
Tuers Av	East	Thursdays	3:00 pm to 5:00 pm	Newkirk St to Vroom St
	West	Tuesdays		
	West	Thursdays	3:00 pm to 5:00 pm	Montgomery St to Vroom St
	East	Tuesdays		
Union St	North	Thursdays	1:00 pm to 3:00 pm	Garfield Av to Bergen Av
	South	Tuesdays		
	North	Thursdays	10:00 am to noon	Bergen Av to West Side Av
	South	Tuesdays		
	South	Thursdays	3:00 pm to 5:00 pm	Mallory Av to West Side Av
	North	Tuesdays		
Van Cleef St	East	Thursdays	10:00 am to noon	Armstrong Av to dead end north of Wegman Pkwy
	West	Tuesdays		
Van Horne St	East	Thursdays	10:00 am to noon	The dead end Ash St
	West	Tuesdays		
Van Houten Av	North	Thursdays	3:00 pm to 5:00 pm	Kennedy Blvd to the dead end
	South	Tuesdays		
Van Nostrand Av	South	Thursdays	10:00 am to noon	Kennedy Blvd to Garfield Av
	North	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	West Side Av to Kennedy Blvd
	South	Tuesdays		
Van Reipen Av	South	Thursdays	3:00 pm to 5:00 pm	Kennedy Blvd to Summit Av
	North	Tuesdays		
	North	Thursdays	10:00 am to noon	Tonnele Av to the rear of Loews
	South	Tuesdays		
Van Reypen St	West	Thursdays	3:00 pm to 5:00 pm	Sip Av to Highland Av
	East	Tuesdays		
Van Vorst St	East	Thursdays	8:00 am to 10:00 am	Grand St to York St
	West	Tuesdays		
	East	Thursdays	1:00 pm to 3:00 pm	Grand St to Essex St
	West	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Van Wagenen Av	West	Thursdays	10:00 am to noon	Broadway (dead end) to Stuyvesant Av
	East	Tuesdays		
	East	Thursdays	1:00 pm to 3:00 pm	Saint Paul's Av to the north terminus
	West	Tuesdays		
Van Winkle Av	North	Thursdays	1:00 pm to 3:00 pm	Huron Av to Kennedy Blvd
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Senate Pl to Kennedy Blvd
	South	Tuesdays		
Varick St	West	Thursdays	10:00 am to noon	Columbus Dr to Bright St
	East	Tuesdays		
Vine St	North	Thursdays	8:00 am to 10:00 am	Chestnut Av to dead end
	South	Tuesdays		
Virginia Av	North	Thursdays	1:00 pm to 3:00 pm	Ocean Av to Bergen Av
	South	Tuesdays		
	North	Thursdays	10:00 pm to 12:00 pm	Bergen Av to the dead end
	South	Tuesdays		
Virginia Ter	East	Thursdays	10:00 am to noon	Entire length
	West	Tuesdays		
Vreeland Pl	Both	Thursdays	10:00 am to noon	Fulton Av to the dead end
Vreeland Ter	South	Thursdays	8:00 am to 10:00 am	Entire length
	North	Tuesdays		
Vroom St	South	Thursdays	3:00 pm to 5:00 pm	Van Reypen St to Gray St
	North	Tuesdays		
Wade St	South	Thursdays	10:00 am to noon	Kennedy Blvd to Ocean Av
	North	Tuesdays		
Waldo Av	East	Thursdays	8:00 am to 10:00 am	Trenton St to PATH cut bridge
	West	Tuesdays		
	East	Thursdays	3:00 pm to 5:00 pm	PATH cut bridge to Newark Av
	West	Tuesdays		
Wales Av	West	Thursdays	10:00 am to noon	The dead end off Broadway to Logan Av
	East	Tuesdays		
Wallis Av	West	Thursdays	10:00 am to noon	Broadway to Logan Av
	East	Tuesdays		
Warner Av	North	Thursdays	10:00 am to noon	Ocean Av to Kennedy Blvd
	South	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
Warren St	East	Thursdays	8:00 am to 10:00 am	Second St to Columbus Dr
	West	Tuesdays		
	East	Thursdays	6:00 am to 8:00 am	Columbus Dr to Montgomery St
	West	Tuesdays		
	East	Thursdays	8:00 am to 10:00 am	Montgomery St to Grand St
	West	Tuesdays		
	West	Thursdays	1:00 pm to 3:00 pm	Grand St to the southern terminus
	East	Tuesdays		
Washburn St	South	Thursdays	3:00 pm to 5:00 pm	Oakland Av to Palisade Avenue
	North	Tuesdays		
Washington Blvd	East	Wed	10:00 am to noon	Park Ln N to Newport Pkwy
Washington St	East	Thursdays	1:00 pm to 3:00 pm	Sussex St to Columbus Dr
	West	Tuesdays		
	East	Thursdays	1:00 pm to 3:00 pm	Essex St to Sussex St
	West	Tuesdays		
Waverly St	South	Thursdays	1:00 pm to 3:00 pm	Central Avenue to Palisade Avenue
	North	Tuesdays		
Wayne St	North	Thursdays	10:00 am to noon	Cornelison Avenue to Marin Blvd
	South	Tuesdays		
	North	Thursdays	10:00 am to noon	Summit St to Cornelison Avenue
	South	Tuesdays		
Webster Avenue	West	Thursdays	8:00 am to 10:00 am	Paterson Plank Rd to Prospect St
	East	Tuesdays		
Wegman Ct	South	Thursdays	10:00 am to noon	Garfield Av to dead end
	North	Tuesdays		
Wegman Pkwy	South	Thursdays	10:00 am to noon	Bergen Av to Garfield Av
	North	Tuesdays		
Weldon St	West	Thursdays	10:00 am to noon	Stuyvesant Avenue to DeKalb Avenue
	East	Tuesdays		
West Hamilton Pl	East	Thursdays	8:00 am to 10:00 am	Eighth St to Ninth St
	West	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	**Side**	**Days of the Week**	**Hours**	**Limits**
West Side Av	East	Tuesdays	7:30 am to 9:00 am	Danforth Av to Culver Av
	West	Thursdays	9:00 am to 10:00 am	Danforth Av to Culver Av
	East	M—Sat	7:30 am to 9:00 am	Culver Av to Montgomery St
	West	M—Sat	9:00 am to 10:00 am	Culver Av to Montgomery St
	East	Tuesdays	7:30 am to 9:00 am	Montgomery St to Broadway
	West	Thursdays	9:00 am to 10:00 am	Montgomery St to Broadway
West St	West	Thursdays	3:00 p.m. to 5:00 p.m.	Entire length
	East	Tuesdays		
Western Avenue	West	Thursdays	1:00 pm to 3:00 pm	Manhattan Avenue to Lincoln St
	East	Tuesdays		
Westervelt St	South	Thursdays	8:00 am to 10:00 am	Cornelison Av to Grand St
	North	Tuesdays		
Westminster Ln	North	Thursdays	3:00 pm to 5:00 pm	Kennedy Blvd to Iorio Ct
	South	Tuesdays		
Westview Ct	West	Thursdays	8:00 am to 10:00 am	Broadman Pkwy to Culver Av
	East	Tuesdays		
Whitman Av	West	Thursdays	10:00 am to noon	The cemetery to Sip Av
	East	Tuesdays		
Whiton St	East	Thursdays	10:00 am to noon	The railroad tracks to Ash St
	West	Tuesdays		
Wilkinson Av	North	Thursdays	3:00 pm to 5:00 pm	Garfield Av to Bergen Av
	South	Tuesdays		
Williams Av	North	Thursdays	10:00 am to noon	West Side Av to dead end
	South	Tuesdays		
Winfield Av	North	Thursdays	10:00 am to noon	Kennedy Blvd to Sayles St
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Kennedy Blvd to Old Bergen Rd
	South	Tuesdays		
	South	Thursdays	3:00 pm to 5:00 pm	Princeton Av to Old Bergen Rd
	North	Tuesdays		

Parking Restrictions for Street-Cleaning Purposes				
Name of Street	Side	Days of the Week	Hours	Limits
Wood Pl	North	Thursdays	8:00 am to 10:00 am	Ogden Av to Palisade Av
	South	Tuesdays		
Woodland Av	West	Thursdays	10:00 am to noon	Linden Av to Lembeck Av
	East	Tuesdays		
Woodlawn Av	South	Thursdays	10:00 am to noon	Kennedy Blvd to Garfield Av
	North	Tuesdays		
	North	Thursdays	3:00 pm to 5:00 pm	West Side Av to Kennedy Blvd
	South	Tuesdays		
Woodward St	West	Thursdays	10:00 am to noon	The railroad tracks to Grand St
	East	Tuesdays		
Wright Av	East	Thursdays	10:00 am to noon	Logan Av to Broadway
	West	Tuesdays		
Yale Av	South	Thursdays	1:00 pm to 3:00 pm	The dead end to West Side Av
	North	Tuesdays		
York St	North	Thursdays	8:00 am to 10:00 am	Center St to Jersey Av
	South	Tuesdays		
	North	Thursdays	10:00 am to noon	Jersey Av to Marin Blvd
	South	Tuesdays		
	North	Thursdays	1:00 pm to 3:00 pm	Marin Blvd to Hudson St
	South	Tuesdays		
Zabriskie St	North	Thursdays	10:00 am to noon	Central Av to Western Av
	South	Tuesdays		

C. Alternate street parking for street-cleaning purposes shall be suspended on the following days, in addition to the holidays listed in § 332-1.B. **[Amended 9-11-2024 by Ord. No. 24-069]**

1. The first two days of Passover;
2. Shavuot;
3. Rosh Hashanah;
4. Yom Kippur;
5. The first two days of Succoth;
6. The third day of Diwali;
7. The first day of Eid al-Adha;

8. The first day of Eid al-Fitr.

To further the purposes of this section, and to assist in enforcement and understanding, as soon as the dates of the above holidays are ascertainable, the Office of the City Clerk shall promulgate and make available a document noting the calendar date of each holiday that alternate side parking is suspended pursuant to this section in the year of promulgation.

§ 332-31.1. Reserved.

Editor's note—Ord. No. 21-079, adopted December 15, 2021, amended the Code by repealing former § 332-31.1, which pertained to the street cleaning review commission, and derived from Ord. No. 20-058, adopted August 12, 2020.

§ 332-32. Solicitation of business on streets.

No person shall stand on or in proximity to a street or other public way for the purpose of soliciting the watching or guarding of any vehicle while it is parked or about to be parked.

§ 332-33. Reservation of powers.

Nothing in this Article shall be construed as prohibiting the city from providing for bus stops, taxicab stands and other matters of a similar nature, including the loading or unloading of trucks, vans or other commercial vehicles.

ARTICLE IV
Emergency No Parking

§ 332-34. Designation of snow emergency no-parking areas.

A. Whenever snow has fallen and the accumulation is such that it covers the street or highway, no vehicle shall be parked on either side of any of the streets or parts thereof as listed below.

Designation of Snow Emergency No-Parking Areas	
Name of Street	**Limits**
Academy St	Van Reypen St to Cornelison Av
Arlington Av	Entire length
Astor Pl	Summit Av to Park St
Audrey Zapp Dr	Entire length
Audubon Av	West Side Av to Bergen Av
Avenue "C"	Merritt St to Bayonne City line
Baldwin Av	Entire length
Barrow St	Grand St to Newark Av
Beacon Av	Baldwin Av to Palisade Av
Bergen Av	Entire length
Booraem Av	Entire length
Bright St	Florence St to Cornelison Av
Broadway	Tonnele Av to Truck Route 1 & 9
Brunswick St	Entire length
Caven Point Av	Garfield Av to Pacific Av

Designation of Snow Emergency No-Parking Areas	
Name of Street	**Limits**
Center St	Entire length
Central Av	Entire length
Clerk St	Entire length
Coles St	Entire length
Communipaw Av	Entire length
Congress St	Summit Av to Paterson Plank Rd
Cornelison Av	Entire length
Culver Av	Mallory Av to West Side Av
Danforth Av	Entire length
Duncan Av	West Side Av to Truck Route 1 & 9
Eighth St	West Hamilton Pl to Jersey Av
Erie St	Entire length
Exchange Pl	Entire length
Fairmount Av	Monticello Av to Bergen Av
Ferry St	Central Av to Palisade Av
Florence St	Bright St to Montgomery St
Fowler Av	Danforth Av to Greenville Av
Garfield Av	Entire length
Gates Av	Garfield Av to Bergen Av
Grand St	Entire length
Grove St	Entire length
Hoboken Av	Summit Av to Route 139
Hudson St	York St to Exchange Pl
Jersey Av	Entire length
Johnston Av	Entire length
Journal Square	Entire length
Long St	Rose Av to Martin Luther King Dr
Mallory Av	Entire length
Manhattan Av	Tonnele Av to Central Av
Manila Av	Entire length
Marin Blvd	Entire length
Martin Luther King Dr	Entire length
Merritt St	Garfield Av to Avenue "C"
Merseles St	Entire length
Mill Rd	Baldwin Av to Montgomery St
Monitor St	Communipaw Av to Johnston Av
Monmouth St	Grand St to Tenth St
Montgomery St	Entire length
Monticello Av	Communipaw Av to Fairmount Av
Neptune Av	Old Bergen Rd to Garfield Av
New York Av	Entire length
Newark Av	James Av to Columbus Dr
Ninth St	West Hamilton Pl to Jersey Av
Ocean Av	Entire length
Ogden Av	Cuneo Pl to Congress St
Old Bergen Rd	Entire length
Pacific Av	Entire length
Palisade Av	Entire length

Designation of Snow Emergency No-Parking Areas	
Name of Street	**Limits**
Pamrapo Av	Entire length
Park St	Astor Pl to Communipaw Av
Pavonia Av	Kennedy Blvd to Baldwin Av
Princeton Av	Entire length
Randolph Av	Entire length
Romar Av	Greenville Av to Seaview Av
Rose Av	Old Bergen Rd to Long St
Seaview Av	Romar Av to Old Bergen Rd
Seventh St	Grove St to Jersey Av
Sip Av	Entire length
Sixteenth St	Coles St to Marin Blvd
Summit Av	Entire length
Tonnele Av	Kennedy Blvd to Tonnele Circle
Warren St	Montgomery St to York St
Washington Blvd	Entire length
Washington St	Grand St to Montgomery St
Webster Av	Entire length
Wegman Pkwy	Martin Luther King Dr to Garfield Av
West Hamilton Pl	Entire length
West Side Av	Entire length
York St	Jersey Av to Hudson St

B. The above parking prohibitions shall remain in effect after the snow has ceased until the streets have been plowed sufficiently and to the extent that parking will not interfere with the normal flow of traffic.

§ 332-35. Posting of signs.

A. Upon the declaration of an emergency, there shall be no parking upon streets or parts of streets where temporary emergency no-parking signs are displayed. The Chief of Police, or in his absence the ranking police officer, is authorized to declare an emergency and to direct the posting of said emergency no-parking signs when weather conditions, accidents, fires or public celebrations dictate or require the avoidance of hazards or other conditions which interfere with the free flow of traffic.

B. The posting of "EMERGENCY NO PARKING" signs shall be deemed to be notice to the owner and/or operator of any parked motor vehicle.

§ 332-36. Removal of vehicles.

Any unoccupied vehicle parked or standing in violation of this Article shall be deemed a nuisance and a menace to the safe and proper regulation of traffic, and any police or parking enforcement officer may provide for the removal of such vehicle. The owner shall pay the reasonable costs of the removal and storage which may result from such removal before regaining possession of the vehicle.

§ 332-37. Effectiveness of Article.

A. The signs to be used as above set forth shall conform to the Manual on Uniform Traffic Control Devices (MUTCD).

B. The effectiveness of this Article is contingent upon signs being erected as required by law.

ARTICLE V
Buses

§ 332-38. Discharging and picking up passengers.

A. All operators of buses, when discharging or picking up passengers at a bus stop, shall cause the bus to be driven to the curb at the bus stop in such a fashion as not to impede or obstruct traffic.

B. Whenever there are any prospective passengers waiting at a bus stop, all operators of buses shall stop to pick up said passengers and shall not pass them by unless the bus is filled to legal capacity with passengers.

§ 332-39. Enforcement.

A. The provisions of this Article shall be enforced by the uniform members of the Department of Public Safety and inspectors of the Division of Commerce. **[Amended 9-11-2013 by Ord. No. 13-081]**

B. The inspectors of the Division of Commerce are hereby granted the power and duty to enforce the provisions of this Article.

ARTICLE VI
Parking Facilities Operated By Division of Parking Enforcement
[Amended 11-12-2014 by Ord. No. 14-017]

§ 332-40. Failure to pay prescribed parking fee. [Amended 11-12-2014 by Ord. No. 14-017]

On city streets and properties owned, leased, operated or controlled by the Division of Parking Enforcement of the City of Jersey City, whether on-street or off-street, upon which the Division has installed parking meters requiring the payment of a fee for parking privileges on the days or hours specified on said meters, failure to pay the prescribed fee for such parking privileges shall be a violation of this Article, subject to the penalties as provided herein.

§ 332-41. Monthly rental for parking space; expired sticker on vehicle. [Amended 11-12-2014 by Ord. No. 14-017]

On city streets and properties owned, leased, operated or controlled by the Division of Parking Enforcement, upon which the Division has rented parking space for a prescribed fee and has issued permits to persons authorized to park at such designated off-street or on-street parking spaces, parking within such parking spaces without a valid permit shall be a violation of this Article, subject to the penalties as provided herein.

§ 332-42. Form of summons for violation of Article; uniform traffic ticket.

The summonses issued under this Article shall be in the form of the uniform traffic ticket or such other summonses as may be from time to time designated by the Director of the Division of Motor Vehicles of the State of New Jersey as the uniform traffic ticket.

§ 332-43. Towing away and booting of vehicles with outstanding summonses.

A. In addition to any other penalty provided by law, any motor vehicle parked in violation of this Article and Article III and any motor vehicle whose owner has failed to appear in response to three (3) or more parking tickets and has received failure to appear notices from the Jersey City Municipal Court may be:

(1) Booted; or

(2) Towed from its parking space and impounded by the Jersey City Parking Authority.

B. No motor vehicle which has been booted or towed away and impounded shall be released until all of the charges in connection with booting or towing and impounding have been paid.

C. The Jersey City Parking Authority is authorized to establish a schedule of charges for booting, impoundment and storage of motor vehicles parked in violation of this Article and Article III. Such schedule shall be filed with the office of the City Clerk.

§ 332-44. Towing away and booting of vehicles whose owners have failed to appear in response to traffic tickets.*

A. Notwithstanding any other penalty provided by law, or any previous authorization given to the Jersey City Division of Parking Enforcement, no motor vehicle parked in violation of Articles IV and V, or parked in violation of any other law, regulation, or ordinance, including but not limited to the City's zone parking ordinances, may be booted; or towed from its parking space and impounded by the City or the Division of Parking Enforcement unless the owner of the vehicle has three (3) or more outstanding parking tickets and has received failure to appear notices from the Jersey City Municipal Court on such parking tickets provided, however, that this limitation does not apply within Parking Zones Three and Eight and also provided, however, that any vehicle may be towed in an emergency, or when the vehicle is unreasonably impeding vehicular or pedestrian traffic, or when the vehicle is deemed a hazard to persons or property. **[Amended 11-12-2014 by Ord. No. 14-017]**

B. No motor vehicle which has been booted or towed away and impounded shall be released until all of the charges in connection with booting or towing and impoundment have been paid.

C. The Jersey City Parking Authority is authorized to establish a schedule of charges for booting, impoundment and storage of motor vehicles as described above. Such schedule shall be filed with the office of the City Clerk.

§ 332-45. Signs on off-street parking facilities operated by Division of Parking Enforcement. [Amended 11-12-2014 by Ord. No. 14-017]

Signs identifying this Article and the penalties for the violation thereof shall be placed upon all off-street parking facilities operated by the Division of Parking Enforcement that are subject to this Article.

***Editor's note**—See N.J.S.A. 39:4-139.2 et seq. the Parking Offenses Adjudication Act. N.J.S.A. 39:4-139.5 provides for a default judgment against owners who fail to respond to traffic tickets after receiving a notice to appear.

§ 332-46. Enforcement. [Amended 9-11-2013 by Ord. No. 13-081; 11-12-2014 by Ord. No. 14-017]

This Article shall be enforced by the Department of Public Safety and Parking Enforcement Officers of its Division of Parking Enforcement, who shall issue summonses for violations of this Article.

ARTICLE VII
Metered Parking

§ 332-47. Definitions. [Amended 3-9-22 by 22-023]

The following words and phrases, which are not defined in Subtitle 1 of Title 39 of the New Jersey Statutes Annotated, shall have the meanings respectively ascribed to them in this section for purposes of this Article:

BOOT — A locking device affixed to a motor vehicle to prevent its movement. The terms "booting" and "booted" mean the act of attaching a boot.

HOLIDAYS — As defined in 332-1.B. above.

PARKING METER — Any mechanical device or meter not inconsistent with this Article placed or erected for the regulation of parking by authority of this Article. Each parking meter installed shall indicate by proper legend the legal parking time established by the city and, when operated, shall at all times indicate the balance of legal parking time and, at the expiration of such period, shall indicate illegal or overtime parking.

PARKING METER COVER or PARKING METER BAG — A cover affixed by an authorized City agent on a parking meter to indicate the rental of that parking space by a resident or local business, referred to as the parking space "licensee."

PARKING METER SPACE — Any space within a parking meter zone, which is adjacent to a parking meter and which is duly designated for the parking of a single vehicle by lines painted or otherwise durably marked on the curb or on the surface of the street or lot adjacent to or adjoining the parking meters.

PARKING METER ZONE — Any restricted on-street parking area or off-street parking lot upon which parking meters are installed and in operation.

PARKING SPACE — Any space within an off-street or on-street nonmetered parking zone that is to be used for parking purposes.

§ 332-48. Designation of parking spaces. [Amended 5-26-2010 by Ord. No. 10-070; 11-9-2011 by Ord. No. 11-140; 11-22-11 by Ord. No. 11-143; 12-14-11 by Ord. No. 11-153; 2-8-2012 by Ord. No. 12-013; 5-9-2012 by Ord. No. 12-062; 1-9-2013 by Ord. No. 12-166; 11-12-2014 by Ord. No. 14-017; 11-24-2015 by Ord. No. 15-155; 1-27-2016 by Ord. No. 16-007; 4-27-16 by Ord. No. 16-063; 11-22-2016 by Ord. No. 16-180; 2-22-2017 by Ord. No. 17-016; 1-24-2019 by Ord. No. 19-006; 9-11-2019 by Ord. No. 19-104; 6-11-2025 by Ord. No. 25-063]

The Division of Parking Enforcement is hereby directed and authorized to provide for the marking off of individual parking spaces in the parking meter zones designated and described below, said parking spaces to be designated by lines painted or marked on the curbing or surface of the street or lot. At each space so marked off, it shall be unlawful to park any vehicle in such a way that said vehicle shall not be entirely within the limits of the space so designated. When a parking space in any parking meter zone is at right angles or diagonal to the curb, sidewalk or island, any vehicle parked in such a parking space shall be parked with the front of the vehicle facing such meter.

A. On-Street Parking Meter Zones. Parking or standing a vehicle in a parking meter space in the on-street parking meter zones described below shall be lawful during the hours of 9:00 a.m. to 6:00 p.m., Monday through Saturday, excepting official State holidays, and only upon the deposit of such amount as is indicated for each specified period of time **[Amended 8-12-2020 by Ord. No. 20-056]:**

Parking Meter Zones	
Name of Street	**Limits**
Academy St	Tuers Av to Tonnele Av
Baldwin Av	Courthouse Pl to Newark Av
Bergen Av	East side: Jewett Av to Newkirk St
	West side: Sip Av to Jewett Av
Bleecker St	Both sides: Central Av 75 feet west
Central Av	Booraem Av to North St
Central Av	Newark Av to Pavonia Av
Charles St	Central Av 200 feet west
Clifton Pl	Fairmount Av to Baldwin Av
Congress St	Central Av 100 feet east
Cook St	Newark Av to Hoboken Av
Cottage St	Kennedy Blvd 200 feet west
Ege Av	West Side Av 200 feet west
Enos Pl	Entire length
Fairmount Av	Monticello Av to Boland St
Franklin St	Central Av to Cambridge Av
Gautier Av	West Side Av 200 feet west
Glenwood Av	Bergen Av 100 feet west
Graham St	Central Av 200 feet west
Grand St	Arlington Av to Johnston Av
Griffith St	Central Av 200 feet east and west
Hoboken Av	Summit Av to Palisade Av
Hudson Street	Both sides: Light Rail Crossing to Second Street
Hutton St	Central Av 200 feet west
Jones St	Sip Av to Newkirk St
Journal Square	Entire length
Liberty Av	Newark Av to Van Winkle Av
Lincoln St	Central Av 200 feet west
Lott St	North side, from Central Av to west terminus
Magnolia Av	Tonnele Av to Summit Av
Mercer St	Tuers Av to Bergen Av
Montgomery St	Bergen Av to Boland St
Montgomery St	North side, from Kennedy Blvd to West Side Av
Newark Av	Chestnut Av to Tonnele Av

Parking Meter Zones	
Name of Street	**Limits**
Newkirk St	Summit Av to Tuers Av
North St	Central Av 200 feet east and west
Oakland Av	Newark Av to Hoboken Av
Palisade Av	Griffith St to Ravine Av
Paterson St	Central Av 200 feet west
Pavonia Av	Baldwin Av to Summit Av
Sherman Pl	Central Av 200 feet west
Sip Av	Tonnele Av to Summit Av
Smith St	Entire length
South St	Central Av 200 feet east and west
Storms Av	Bergen Av to Monticello Av
Summit Av	East: Rock St to 444 feet south of Sip Av
Summit Av	East: Magnolia Av south 175 feet
Summit Av	East: Pavonia Av to 180 feet south of Newark Av
Summit Av	East: 180 feet north of Newark Av to 200 feet south of Route 139
Summit Av	West: 200 feet south of Route 139 to 180 feet north of Newark Av
Summit Av	West: Cottage St to Van Reipen Av
Summit Av	West: Pavonia Av to 118 feet south of Magnolia Av
Thorne St	Central Av 200 feet west
Tonnele Av	Sip Av to Kennedy Blvd
Town Square Pl	Ring Rd to Washington Blvd
Tuers Av	West side: Montgomery St to Mercer St
Tuers Av	East side: Montgomery St 250 feet north
Union St	West Side Av 200 feet east and west
Van Reypen St	Sip Av to Academy St
Virginia Av	West Side Av 200 feet west
West Side Av	Claremont Av to Newark Av
West Side Av	Stegman Pkwy to Audubon Av
Williams Av	West Side Av 100 feet west
Zabriskie St	Central Av 200 feet west

B. On-Street Parking Meter Zones. Parking or standing a vehicle in a parking meter space in the on-street parking meter zones described below shall be lawful during the hours of 9:00 a.m. to 9:00 p.m., Monday through Saturday, excepting official State holidays, and only upon the deposit of such amount as is indicated for each specified period of time: **[Amended 3-24-2021 by Ord. No. 21-019; 3-9-2022 by Ord. No. 22-019; 5-8-24 by Ord. No. 24-026; 11-26-2024 by Ord. No. 24-102]**

Parking Meter Zones	
Name of Street	**Limits**
Barrow St	Columbus Dr to Newark Av
Coles St	Newark Av to Second St
	West: Fourteenth St to Sixteenth St
	Both: Seventeenth St to Eighteenth St
Columbus Dr	Both sides: Grove St to Barrow St
	North: From Marin Blvd to 130 ft east of Washington St

Parking Meter Zones	
Name of Street	**Limits**
Douglas and Arthur Skinner Memorial Dr (FKA: Jersey Av)	West Side: Grand St South to the light rail tracks
Eighteenth St	South: 159 feet west of Jersey Av to Coles St
Fifteenth St	Both: Jersey Av to Coles St
First St	Jersey Av. to Newark Av
Fourteenth St	Both: Jersey Av to Coles St
Grand St	River St (private roadway) south side to Tidewater St (private roadway) south side
Green St	Montgomery St to First St
Grove St	Grand St to First St
	East side: Grand St to Sussex St
	Between Morris Blvd and Sussex St
Hoboken Av	Both: Coles St to 250 feet west of Monmouth St
	South: 250 feet west of Monmouth St to 800 feet east of Route 139
Jersey Av	First St to Columbus Dr
Marin Blvd	East side: Grand St and Sussex St
	East side: Park View and Sussex St
	Between southern terminus and Grand St
Montgomery St	Hudson St to Warren St
	Monmouth St to Colgate St
Morgan St	North side: Greene St to Washington St
Morris Blvd	Between Marin Blvd and Grove St
Morris St	Between Marin Blvd. and Grove St
Newark Av	Jersey Ave to Brunswick St
Pearl St	North: Washington St to 135 feet west of Greene St
	South: Washington St to Greene St
Regent St	South side: Between Tidewater St. and Grove St
Second St	Coles St to Newark Ave
St. Peter's St	Between Morris Blvd and Sussex St
	West side (southern half)
Seventeenth St	Jersey Av to Coles St
Sixteenth St	Both: Jersey Av to Coles St
Sussex St	Between Marin Blvd and Grove St
	East side of Grove St (southern half)
	North side: beginning 56 feet west of Marin Blvd and extending 60 feet west
	South side: beginning 51 feet west of Marin Blvd and extending 60 feet west
Warren St	Montgomery St to York St
Washington St	York St to Montgomery St
York St	Washington St to Greene St north side only

C. Off-Street Parking Lot Meter Zones. Parking or standing a vehicle in a parking meter space in the off-street parking lot meter zones described below shall be lawful during the hours of 9:00 a.m. to 6:00 p.m., Monday through Saturday, excepting official State holidays, and only upon the deposit of such amount as is indicated for each specified period of time: **[Amended 9-25-2019 by Ord. No. 19-124]**

Off-Street Parking Lot Meter Zones	
Lot#	**Location**
3 (a/k/a 33)	277 Central Avenue (Sherman Place)
4 (a/k/a 39)	522 West Side Avenue (between Clendenny Avenue & Union Street)
5 (a/k/a 44)	693 Newark Avenue & Cottage Street
6 (a/k/a 49)	328—348 Central Avenue (Burger King lot)
9 (a/k/a 52)	174 Newark Avenue
13 (a/k/a 15)	754 West Side Avenue (between Fairview and Fairmount Avenue)
14 (a/k/a 3)	352 Central Avenue
15 (a/k/a 4)	388 Central Avenue

D. Off-Street Parking Lot Meter Zones. Parking or standing a vehicle in a parking meter space in the off-street parking lot meter zones described below shall be lawful during the hours of 9:00 a.m. to 12:00 a.m. Monday through Saturday, excepting official State holidays and only upon the deposit of such amount as is indicated for each specified period of time:

Off-Street Parking Lot Meter Zones	
Lot#	**Location**
9 (a/k/a 52)	174 Newark Avenue

E. Metered Parking Waiver. Upon a finding of public necessity, need or for a public purpose, the Municipal Council may adopt a resolution to allow free parking in any metered zone, on-street or off-street, in whole or in part, for a stipulated period of time. A copy of the resolution shall be immediately forwarded to the Police Chief and Police Director.

§ 332-49. Installation and Regulation of parking meters.

A. In said parking meter zones, the Division of Parking Enforcement shall cause parking meters to be installed upon the curb, sidewalk or area immediately adjacent to the parking spaces provided in this Article. No parking meters shall be installed in areas where parking is prohibited pursuant to the provisions of N.J.S.A. 39:4-138. The Division of Parking Enforcement shall be responsible for the regulation, control, operation, maintenance and use of such parking meters. Each device shall be so set as to display a signal showing legal parking upon the deposit of the appropriate coin, lawful money of the United States of America, for the period of time prescribed in this Article. Each device shall be so arranged that upon the expiration of the lawful time limit, it will indicate by a proper, visible signal that the lawful parking period has expired, and in such case the right of such vehicle to occupy such space shall cease, and the operator, owner, possessor or manager thereof shall be subject to the penalties hereinafter provided. **[Amended 11-12-2014 by Ord. No. 14-017]**

B. No parking meter shall be installed in any area in conflict with the provisions of N.J.S.A. 30:4-138 which prohibits vehicles to stand or park in certain locations.

§ 332-50. Operation of parking meters.

A. Except in a period of emergency determined by an officer of the Department of Public Safety, or in compliance with the directions of a police officer or traffic control sign or signal, when any vehicle shall be parked in any parking space alongside or next to which a parking meter is located, the

operator of such vehicle shall, upon entering the said parking meter space, immediately deposit or cause to be deposited in said meter such proper coin of the United States of America as is required for such parking meter and as is designated by proper directions on the meter, and when required by the directions on the meter, the operator of such vehicle, after the deposit of the proper coin, shall also set in operation the timing mechanism on such meter in accordance with directions properly appearing thereon, and failure to deposit such proper coin and to set the timing mechanism in operation when so required shall constitute a violation of this Article. Upon the deposit of such coin (and the setting of the timing mechanism in operation when so required), the parking space may be lawfully occupied by such vehicle during the period of time which has been prescribed for the part of the street in which said parking space is located, provided that any person placing a vehicle in a parking meter space adjacent to a meter which indicates that unused time has been left in the meter by the previous occupant of the space shall not be required to deposit a coin so long as his occupancy of said space does not exceed the indicated unused parking time. If said vehicle shall remain parked in any such parking space beyond the parking time limit set for such parking space and if the meter shall indicate such illegal parking, then and in that event such vehicle shall be considered as parking overtime and beyond the period of legal parking time, and such parking shall be deemed a violation of this Article. [Amended 9-11-2013 by Ord. No. 13-081]

B. When more than one (1) parking space is required within a parking meter zone to legally park a vehicle, the operator of such vehicle shall, upon entering the parking meter spaces, immediately deposit or cause to be deposited in each meter of spaces so occupied, a proper coin of the United States as required for such parking meters.

§ 332-51. Manner of parking.

When a parking meter space is parallel with the adjacent curb or sidewalk, no person shall park or permit the parking of any vehicle in such parking space in any other position than with the foremost part of such vehicle nearest to the parking meter; when a parking meter space is diagonal to the curb or sidewalk, no person shall park or permit the parking of any vehicle in such parking space in any other position than with the foremost part of such vehicle nearest to the parking meter; when a parking meter shall have been installed at the head of and immediately adjacent to any parking space on a municipal off-street parking lot, no person shall park or permit the parking of any vehicle in such parking space in any other position than with the foremost part of such vehicle nearest to the parking meter; provided, however, that in municipal off-street parking lots, signs shall be erected indicating that head-on parking only is permitted. In any event, a vehicle shall be parked within the lines marked on the pavement measuring such parking space.

§ 332-52. Violations. [Amended 11-22-2016 by Ord. No. 16-180]

It shall be unlawful and a violation of the provisions of this Article for any person to:

A. Cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to be parked overtime or beyond the period of legal parking time established for any parking meter zone as herein described, or to deposit in any parking meter any coin for the purpose of parking beyond the maximum legal parking time for the particular parking meter zone.

B. Permit any vehicle to remain or be placed in any parking space adjacent to any parking meter while said meter is displaying a signal indicating that the vehicle occupying such parking space has already been parked beyond the period prescribed for such parking space.

C. Park any vehicle across any line or marking of a parking meter space or in such position that the vehicle shall not be entirely within the area designated by such lines or markings.

D. Deface, injure, tamper with, open or willfully break, destroy or impair the usefulness of any parking meter installed under the provisions of this Article.

E. Deposit or cause to be deposited in any parking meter any slug, device or metal substance or other substitute for lawful coins.

F. Park or permit the parking of any vehicle in any parking meter space where the meter does not register lawful parking.

G. Park any vehicle in any one (1) parking meter space at an on-street meter or in an off-street parking meter zone for a period of longer than the maximum time limit as specified on the adjacent meter time dial, during the hours from 9:00 a.m. to 6:00 p.m., Monday through Saturday. **[Amended 1-27-2016 by Ord. No. 16-007]**

H. Cause, allow, suffer or permit any vehicle that shall have been parked in a parking meter space in an off-street parking meter zone or in a parking space in an off-street nonmetered parking zone, during the hours from 6:00 p.m. to 9:00 a.m., prevailing time, to remain so parked beyond the hour of 9:00 a.m.

I. Park any vehicle in any parking space in an off-street nonmetered parking zone for a period longer than eight (8) hours, during the hours from 9:00 a.m. to 6:00 p.m., prevailing time.

J. Park a vehicle other than having the front of the vehicle face a meter in any parking meter zone where the parking meter space is at right angles or diagonal to a curb, sidewalk or island.

K. Operate a vehicle on any driveway of an off-street parking zone in a manner contrary to the restrictions as set forth for such driveway.

L. Park a commercial vehicle with a combined weight, truck and load, in excess of four thousand (4,000) pounds, in any of the off-street parking zones (metered or nonmetered).

M. Park a truck, tractor, trailer or a vehicle moved by human or animal power in any of the off-street parking zones (metered or nonmetered).

N. Park a vehicle not equipped with pneumatic tires properly inflated in any of the off-street parking zones (metered or nonmetered).

O. Wash, grease or make any repairs, except those of any emergency nature, to any vehicle, in any space in any of the off-street parking zones (metered or non-metered).

P. Park any vehicle in any one (1) parking meter space on the west side of Douglas and Arthur Skinner Memorial Dr (FKA: Jersey Av) from 3:00 p.m. to 8:00 p.m., Monday through Friday and 9:00 a.m. to 8:00 p.m., Saturday, except holidays. **[Added 5-9-2012 by Ord. No. 12-062]**

§ 332-53. Reports of violations; citations.

A. It shall be the duty of the Police and Division of Parking Enforcement Officers, acting in accordance with instructions issued by the Chief of Police and Director of the Division of Parking Enforcement, to report: **[Amended 11-12-2014 by Ord. No. 14-017]**

(1) The number of each parking meter which indicates that the vehicle occupying the parking space adjacent to such parking meter is or has been parked in violation of any of the provisions of this Article.

(2) The state license number of such vehicle.

(3) That such vehicle is parked in violation of any of the provisions of this Article.

(4) Any other facts, a knowledge of which is necessary to a thorough understanding of the circumstances attending such violation.

B. Each such Police and Parking Enforcement Officer shall also attach to such vehicle a notice to the owner thereof that such vehicle has been parked in violation of a provision of this Article, and instructing such owner to report to the Municipal Court with regard to such violation. The report and notice referred to in this Section shall bear corresponding serial numbers and all reports issued hereunder shall be accounted for by the respective police officers to the Municipal Court, and said Municipal Court shall render written reports thereof to the Municipal Council of Jersey City once a month or as often as the Board shall require same.

§ 332-54. Impounding of overtime vehicles. [Amended 11-12-2014 by Ord. No. 14-017]

Any vehicle left parked for a period exceeding two hours succeeding expiration of the maximum parking time indicated during the hours of operation specified in the space in which the vehicle is parked shall be towed, under the direction of the Division of Parking Enforcement to the contracted garage or any other place designated by the Division of Parking Enforcement for impoundment, subject to redemption by the owner upon payment of the reasonable cost of towing and a storage charge for each day or portion thereof during which it remains in said garage or other place.

§ 332-55. Purpose of meter deposits.

The coins required to be deposited in parking meters as provided herein are hereby levied and assessed as fees to provide for the proper regulation and control of traffic upon the public streets and also the cost of supervising and regulating the parking of vehicles in the parking meter zones created thereby, and to cover the cost of the purchase, supervision, protection, inspection, installation, operation, maintenance, control and use of the parking meters described herein.

§ 332-56. Collection of coins from meters; disposition thereof. [Amended 11-12-2014 by Ord. No. 14-017]

It shall be the duty of the Director of the Division of Parking Enforcement to designate some proper person or persons to make regular collections of the moneys deposited in said meters, and it shall be the duty of such person or persons so designated to remove from the parking meters the locked containers therein containing the coins so deposited in said meters and to deliver such locked containers to the bank depository, who shall unlock them and count the funds contained in such containers and deposit such funds in the usual manner provided by law.

§ 332-57. On-street permit parking zones. [Amended 4-28-2010 by Ord. No. 10-058; 11-9-2011 by Ord. No. 11-140; amended 5-9-2012 by Ord. No. 12-062; 10-23-2013 by Ord. No. 13-114; 11-24-2015 by Ord. No. 15-163; 8-14-2019 by Ord. No. 19-101; 4-28-2021 by Ord. No. 21-026; 5-8-24 by Ord. No. 24-026]

Pursuant to Chapter 175 (Food Handling Establishments), Article II (Mobile Food Vendors), Section 175-8 (Mobile Food Vendors), and Section 175-9.3 (Operation requirements for mobile food vendors), the permit parking zones issued for use by itinerant vendor trucks will be in effect from 5:00 a.m. to 9:00 p.m., Monday through Sunday, for the following streets:

On-Street Permit Parking Zones	
Name of Street	**Limits**
Bergen Av (east side)	Sip Av to J.F.K. Boulevard
Montgomery St (south side)	Greene St to Hudson St
Sussex St (south side)	Hudson St to the Waterfront

The spaces reserved for itinerant food truck parking along the aforementioned portion of Sussex Street shall be designated as "Itinerant Food Truck Parking - Zone 1."

The spaces reserved for itinerant food truck parking along the aforementioned portion of Montgomery Street shall be designated as "Itinerant Food Truck Parking - Zone 2."

The spaces reserved for itinerant food truck parking along the aforementioned portion of Bergen Avenue shall be designated as "Itinerant Food Truck Parking - Zone 3."

Any itinerant food trucks or other vehicles parked in those spaces specifically designed for itinerant food trucks within these zones between 9:01 p.m. and 4:59 a.m. shall be subject to a fine and impounded.

No other vehicle except an itinerant food truck licensed to operate within Jersey City shall be permitted to park in a space specifically designed for itinerant food trucks. Any other type of vehicle parked in such a space shall be subject to a fine and impounded.

The following public streets are established as on-street permit parking zones:

The monthly permit parking zone will be in effect from 7:00 a.m. to 7:00 p.m. Monday through Friday, except holidays, for the following streets.

On-Street Permit Parking Zones	
Name of Street	**Limits**
Columbus Dr	North Side: From 135 feet west of Washington St to Hudson St
Columbus Dr	South Side: From Washington St to Hudson St
Hoboken Av	South side: beginning at a point 73 feet east of Oakland Av and extending to Baldwin Av
Hoboken Av	North side: beginning at a point 246 feet east of Oakland Av and extending to Baldwin Av
Morgan St	South side: Washington St to Greene St

The monthly permit parking zone will be in effect from 7:00 a.m. to 3:00 p.m., Monday through Friday, except holidays, for the following street:

Name of Street	Limits
Douglas and Arthur Skinner Memorial Dr (FKA Jersey Av)	From Grand St south to the light rail tracks

If there are not sufficient commuter parking permits for all those who apply, priority shall be given to residents of Jersey City who are applying for the available permits.

Pursuant to Chapter 175 (Food Handling Establishments), Article II (Mobile Food Vendors), Section 175-8 (Mobile Food Vendors), and Section 175-9.3 (Operation requirements for mobile food vendors), the permit parking zones issued for use by itinerant vendor trucks will be in effect from 5:00 a.m. to 9:00 p.m., Monday through Sunday, for the following streets:

On-Street Permit Parking Zones	
Name of Street	**Limits**
Bergen Av (east side)	Sip Av to J.F.K. Boulevard
Montgomery St (south side)	Greene St to Hudson St
Sussex St (south side)	Hudson St to the Waterfront

The spaces reserved for itinerant food truck parking along the aforementioned portion of Sussex Street shall be designated as "Itinerant Food Truck Parking - Zone 1."

The spaces reserved for itinerant food truck parking along the aforementioned portion of Montgomery Street shall be designated as "Itinerant Food Truck Parking - Zone 2."

The spaces reserved for itinerant food truck parking along the aforementioned portion of Bergen Avenue shall be designated as "Itinerant Food Truck Parking - Zone 3."

Any itinerant food trucks or other vehicles parked in those spaces specifically designed for itinerant food trucks within these zones between 9:01 p.m. and 4:59 a.m. shall be subject to a fine and impounded.

No other vehicle except an itinerant food truck licensed to operate within Jersey City shall be permitted to park in a space specifically designed for itinerant food trucks. Any other type of vehicle parked in such a space shall be subject to a fine and impounded.

§ 332-57.1. Parking meter covers and parking spaces. [Added 3-9-22 by 22-023]

A. Parking spaces and parking meter signs, covers, or bags may be rented by the Parking Enforcement Division to Jersey City residents and businesses. The Parking Enforcement Division shall be authorized to create appropriate application and approval processes and to contract with applicants for parking space rental pursuant to the rental rates in Chapter 160.

B. In no case shall a licensee allow a vehicle to remain in such a parking space beyond the rental period. Vehicles remaining beyond the contract period shall be considered parked illegally and are subject any and all violations and penalties appropriate under the City Code.

C. Provided that a parking meter bag or parking meter cover is properly affixed to a meter, no person other than the licensee or his, her or its designee shall occupy the contracted parking space(s) during the rental period. If an unauthorized vehicle remains in a rented space(s) for more than one hour in violation of this article, that vehicle shall be deemed a nuisance and a menace to the safe and proper regulation of traffic, and any police or parking enforcement officer may provide for the removal of such vehicle. The owner shall pay the reasonable costs of the removal and storage which may result from such removal before regaining possession of the vehicle.

D. The licensee shall remove the parking meter sign, cover, bag within 24 hours of the expiration of the rental contract period. Failure to remove the sign, cover, or bag shall result in a penalty as provided in Chapter 160.

ARTICLE VIII
Permit Parking

§ 332-58. Parking restrictions in residential zones. [Amended 1-12-2011 by 10-169; 3-9-2011 by 11-026; 6-15-2011 by Ord. No. 11-067; 1-11-2012 by Ord. No. 11-159; 4-25-2012 by Ord. No. 12-053; 11-26-2013 by Ord. No. 13-105; 10-23-2013 by Ord. No. 13-114; 5-27-2015 by Ord. No. 15-074; 11-24-2015 by Ord. No. 15-156; 2-24-2016 by Ord. No. 16-037; 4-27-2016 by Ord. No. 16-063; 6-28-2017 by Ord. No. 17-079; 7-19-2017 by Ord. No. 17-091; 7-19-2017 by Ord. No. 17-092; 9-13-2017 by Ord. No. 17-114; 10-11-2017 by Ord. No. 17-135; 9-26-2018 by Ord. No. 18-107; 1-24-2019 by Ord. No. 19-006; 7-17-2019 by Ord. No. 19-087; 9-25-2019 by Ord. No. 19-123; 4-15-2021 by Ord. No. 21-023; 4-28-2021 by Ord. No. 21-026; 10-14-2021 by Ord. No. 21-067; 3-9-2022 by Ord. No. 22-019; 5-10-2023 by Ord. No. 23-037; 5-8-24 by Ord. No. 24-026; 8-14-2024 by Ord. No. 24-063; 11-26-2024 by Ord. No. 24-102; 11-26-2024 by Ord. No. 24-103; 9-10-2025 by Ord. No. 25-094; 2-11-2026 by Ord. No. 26-016, § 1]

Parking Zone 1	
A. No person shall park a vehicle in excess of two hours; between the hours of 7:00 a.m. and 9:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
B. Zone 1 permits shall be valid in Zone 19 and any border streets contained within the two zones.	
Name of Street	**Limits**
Barrow St	Between Grand St and Newark Av
Bright St	North side; between Monmouth St and Jersey Av
	Both sides; between Jersey Av and Grove St
Brunswick St	Between Columbus Dr and York St
Columbus Dr	Between Grove St and Brunswick St
Grand St	Between Jersey Ave and Marin Blvd
Grove St	Between Grand St and York St
	Between Wayne St and Columbus Drive
Jersey Av	Between Grand St and Columbus Dr
Marin Blvd	Between Grand St and Columbus Dr
	York St Between Wayne St and Columbus Dr
Maxwell St	Between Jersey Av and Coles St
Mercer St	Between Grove St and Monmouth St
Monmouth St	Between Bright St and Columbus Dr
Montgomery St	Between Brunswick St and Grove St
Varick St	Between Bright St and Columbus Dr
Wayne St	Between Grove St and Varick St
York St	Between Center St and Monmouth St

Parking Zone 2	
Name of Street	**Limits**
Academy St	Between Gray St and Van Reypen St
Alan Ter	Entire length
Baldwin Av	Between Montgomery St and State Highway 139
Bergen Av	Between Mercer St and Sip Av
Bevan St	St. Paul's Av to State Highway 139
Berkeley Pl	Between Liberty Av and Tonnele Av
Bond St	Entire length
Broadway	Between Tonnele Av and Route 1 & 9
Bryan Pl	Entire length
Bryant Av	Entire length
Central Av	Between Pavonia Av and State Highway 139
Chestnut Av	Entire length
Clifton Pl	Between Summit Av and Baldwin Av
Cook St	Entire length
Corbin Av	Entire length
Cottage St	Entire length
Court House Pl	Entire length
Crawford Pl	Entire length
Cubberly Pl	Entire length
Dales Av	Entire length
DeKalb Av	Entire length

Parking Zone 2	
Name of Street	**Limits**
Dick St	Entire length
East St	Entire length
Elizabeth St	Entire length
Emerson Av	Entire length
Enos Pl	Entire length
Field Av	Entire length
Fox Pl	Entire length
Freeman Av	Entire length
Front St	Entire length
Garrison Av	Between Tonnele Av and DeKalb Av
Giles Av	Entire length
Glenwood Av	Between Bergen Av and Kennedy Blvd
Gray St	Entire length
Hawthorne Av	Entire length
Henry St	Entire length
Herbert Pl	Entire length
High St	Entire length
Highland Av	Between West Side Av and Bergen Av
Hoboken Av	Between Palisade Av and Central Av
Hoboken Av	Between Summit Av and State Highway 139
Holmes Av	Entire length
Homestead Pl	Entire length
Kennedy Blvd	Between Glenwood Av and State Highway 139
Jones Pl	Entire length
Jones St	Entire length
Jordan Av	Between Mercer St and Vroom St
Liberty Av	Between State Highway 139 and Newark Av
Logan Av	Entire length
Lott St	Entire length
Magnolia Av	Between Summit Av and Waldo Av
Magnolia Av	Between Tonnele Av and Journal Square Concourse
Maiden Ln	Entire length
Marion Pl	Entire length
Mead St	Entire length
Mercer St	Between Mill Rd and Bergen Av
Newark Av	Between Senate Pl and Waldo Av
Newkirk St	Entire length
Oakland Av	Between Newark Av and Hoboken Av
Orchard St	Between Monticello Av and Crawford St
Pavonia Av	Between Giles Av and Newark Av
Rock St	Entire length
Romaine Av	Entire length
Sip Av	Between Summit Av and Route 1 & 9
Smith St	Entire length
St. Paul's Av	Between Kennedy Blvd and Tonnele Av
Skillman Av	Between State Highway 139 and Van Winkle Av
Stuyvesant Av	Between Westside Av and Van Reypen St
Summit Av	Between Baldwin Av and State Highway 139

Parking Zone 2	
Name of Street	**Limits**
Tonnele Av	Between Van Reypen St and St. Paul's Av
Trenton St	Entire length
Tuers Av	Between Mercer St and Newkirk St
Van Reipen Av	Entire length
Van Reypen St	Entire length
Van Wagenen Av	Path R.R. Tracks to Stuyvesant Av
Van Winkle Av	Between Kennedy Blvd and Senate Pl
Vine St	Entire length
Vroom St	Between Van Reypen St and Gray St
Waldo Av	Entire length
Wales Av	Entire length
Wallis Av	Entire length
Washburn St	Entire length
Wayne St	Between Mill Rd and Summit Av
Weldon St	Entire length
West St	Entire length
West Side Av	Between Glenwood Av and Broadway
Whitman Av	Entire length
Wright Av	Entire length

Parking Zone 3	
A. No person shall park a vehicle in excess of two hours between the hours of 7:00 a.m. and 11:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
Name of Street	**Limits**
Canal St	Entire length; Grove St to Jersey Av
Dudley Street	Between Washington St and Warren St
Grand St	From Marin Blvd to Greene Street
Greene St	From Morris Canal to Sussex St, and west side of Green Street from Sussex Street to Grand Street
Morris St	From Greene St to Van Vorst St
Sussex St	From Hudson St to westerly dead-end
Van Vorst St	From Dudley St to York St
Warren St	From southern terminus to York St
Washington St	From Dudley St to York St
York St	South side: From Marin Blvd to Hudson St

Parking Zone 3	
No person shall park a vehicle in excess of two hours, between the hours of 8:00 a.m. and 5:00 Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
Name of Street	**Limits**
Essex St	From the eastern terminus to Van Vorst St

Parking Zone 4	
A. No person shall park a vehicle in excess of two hours between the hours of 7:00 a.m. and 9:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
Name of Street	**Limits**
Bay St	From Greene St to Marin Blvd
Columbus Dr	North: Warren St to Washington St
Columbus Dr	South: Marin Blvd to Washington St
First St	Marin Blvd to Washington St
Greene St	From York St to Second St
Hudson St	Entire length
Marin Blvd	From Columbus Dr to Second St
Montgomery St	From Exchange Pl to Marin Blvd
Morgan St	Both Sides: From Washington St to Marin Blvd
Morgan St	North side: From Washington St to Greene St
Provost St	Entire length
Second St	From the Eastern Terminus to Marin Blvd
Steuben St (north side only)	From Marin Blvd to Warren St
Steuben St	South: Marin Blvd to Washington St
Warren St	From York St to Second St
Washington St	From York St to Second St
Washington St	West: Columbus Dr to Montgomery St
York St	North side: From Hudson St to Marin Blvd

Parking Zone 5	
A. No person shall park a vehicle in excess of two hours between the hours of 7:00 a.m. and 9:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
Name of Street	**Limits**
Bay St	Between Marin Blvd and Newark Av
Coles St	Between Sixth St and Columbus Dr
Erie St	Between Newark Av and Sixth St
Fifth St	Between Coles St and Manila Av
First St	Between Marin Blvd and Coles St
Fourth St	Between Manila Av and Coles St
Grove St	Between Columbus Dr and Sixth St
Jersey Av	Between Columbus Dr and Sixth St
Lauren Ct	Entire length
Manila Av	Between Sixth St and Columbus Dr
Morgan St	Between Grove St and Marin Blvd
Newark Ave	Between Grove St and Coles St
Saddlewood Ct	Entire length
Second St	Between Marin Blvd and Coles St
Sixth St	South side, between Newark Av and Marin Blvd
Third St	Between Coles St and Manila Av

Parking Zone 6	
A. No person shall park a vehicle in excess of two hours between the hours of 7:00 a.m. 9:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
Name of Street	**Limits**
Brunswick St	Between Tenth St and Sixth St
Coles St	Between Sixth St and Twelfth St
Division St	Between Newark Av and Eighth St
Eighth St	Between the western terminus and Marin Blvd
Erie St	Between Sixth St and Twelfth St
Jersey Av	Between Sixth St and Tenth St
McWilliams Pl	Entire length
Manila Av	Between Boyle Plaza and Sixth St
Monmouth St	Between Sixth St and Ninth St
Monmouth St	East side; Ninth St to Tenth St
Monmouth St	Between Tenth St and Twelfth St
Ninth St	Between the western terminus and Brunswick St
Ninth	South side; Brunswick St to Monmouth St
Ninth	Between western terminus and Marin Blvd
Pavonia Av	Between Brunswick St and Manila Av
Seventh St	Between the western terminus and Manila Av
Sixth St	North side between Newark Av and Marin Blvd
Tenth St	Between Marin Blvd and Brunswick St
West Hamilton Pl	Entire length

Parking Zone 7	
A. No person shall park a vehicle in excess of two hours between the hours of 7:00 a.m. and 9:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
Name of Street	**Limits**
Erie St	Between Twelfth St and Hoboken City Line
Fifteenth St	Between Marin Blvd and Erie St
Grove St	Between Hoboken City Line and Sixteenth St
Jersey Av	Between Twelfth St and Hoboken City Line
Manila Av	Between Boyle Plaza and Sixth St
Newport Pkwy	Between River Dr South and Washington Blvd
River Dr South	Entire length

Parking Zone 9	
No person shall park a vehicle in excess of two (2) hours between the hours of 6:00 a.m. and midnight, Monday through Friday, and 8:00 a.m. to 6:00 p.m. on Saturday, except public holidays, without a valid permit upon any of the streets, or parts thereof, as described below:	
Name of Street	**Limits**
Princeton Av	Cator Av to Gates Av

Parking Zone 17	
A. No person shall park a vehicle in excess of two hours between the hours of 7:00 a.m. and 9:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
Name of Street	**Limits**
Brunswick St	Between Sixth St and Columbus Dr
Coles St	West side: Between Columbus Dr and Sixth St
Colgate St	Between First St and Third St
Fifth Street	Between Newark Av and Coles St
First St	Between Merseles St and Coles St
Fourth St	Between Merseles St and Coles St
Merseles St	Between Newark Av and First St
Monmouth St	Between Columbus Dr and Sixth St
Newark Av	Between Seventh St and Coles St
Second St	Between Merseles and Coles St
Third St	Between Merseles and Coles St

Editor's note—Subsection D of Ord. No. 19-006, which added Zone 17, stipulates: "This ordinance [19-006] shall take effect within four (4) months and in the manner as provided by law, with the exception of any Zone 1 permit holders who are now in Zone 17. Zone 1 Permits will be allowed in Zone 17 for a period of twelve (12) months from effective date of this ordinance."

Parking Zone 18	
A. No person shall park a vehicle in excess of two hours between the hours of 7:00 a.m. and 9:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
Name of Street	**Limits**
Erie St	Between Fourteenth and Sixteenth St
Fifteenth St	Between Jersey Ave to Marin Blvd
Grove St	Between Fourteenth and Sixteenth St
Jersey Av	Between Fourteenth and Sixteenth St
Sixteenth St	Between Marin Blvd and Jersey Av

Parking Zone 19	
A. No person shall park a vehicle in excess of two hours between the hours of 8:00 a.m. and 5:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.	
B. Zone 19 permits shall be valid in Zone 1 and any border streets contained within the two zones	
Name of Street	**Limits**
Grove St	York St and Wayne St
Marin Blvd	Between York St and Wayne St
Mercer St	Between Marin Blvd and Grove St
Montgomery St	Between Marin Blvd and Grove St
Wayne St	Between Marin Blvd and Manila Av

Editor's note—Subsection D of Ord. No. 19-087, which added Zone 19, stipulates: "This ordinance [19-087] shall take effect on October 1st, 2019 and in the manner as provided by law, with the exception of any Zone 1 permit holders who are now in Zone 17 or Zone 19. Zone 1 permits will be allowed in Zone 17 or Zone 19 for a period of twelve (12) months from effective date of this ordinance."

B. Border streets. **[Amended 2-13-2025 by Ord. No. 25-008]**

Border Streets		
A. No person shall park a vehicle in excess of three hours; between the hours of 7:00 a.m. and 11:00 p.m., Monday through Friday, except public holidays, without a valid permit upon any of the streets or parts of streets as described below.		
Border Zone Streets	**Limits**	**Zones**
Coles Street	Between Columbus Dr and Sixth Street	Zones 5 and 17
Columbus Dr	Between Jersey Ave and Brunswick St	Zones 17 and 1
Marin Blvd	Between Columbus Dr and Second Street	Zones 5 and 4
Newark Ave	Between Sixth Street and Seventh	Zones 6 and 17
Sixth Street	Between Coles Street and Marin Blvd	Zones 5 and 6
Sixth Street	Between Jersey Ave and Brunswick St	Zones 17 and 1
York St	From Marin Blvd to Washington St	Zones 3 and 4

The above streets are designated border streets because they are located on a block that falls at the edge of two zones. On the streets between the limits above, on either side of the road, any person can park their car if they have one of the two zone permits allowed. Street-sweeping and hours of enforcement still apply.

C.1. The parking restriction will be in effect for the following streets, Monday through Friday, 6:00 a.m. to Midnight and 8:00 a.m. to 6:00 p.m. on Saturday: **[Amended 2-26-2020 by Ord. No. 20-017; 9-23-2020 by Ord. No. 20-077; 10-21-2020 by Ord. No. 20-091]**

Parking Zone 10	
Name of Street	**Limits**
Bayside Ter	Entire length
Bergen Av	Fulton Av to Stegman St
Dwight St	Bergen Av to Garfield Av
Freedom Pl	Entire length
Fulton Av	Garfield Av to Bergen Av
Garfield Av	East side; Armstrong Av to Vreeland Ter
Ocean Av	Fulton Av to Stegman St
Richard St	Entire length
Stegman St	Garfield Av to Bergen Av
Van Cleef St	Fulton Av to Dwight St
Vreeland Ter	Entire length

C.2. No person shall park a vehicle in excess of four hours within Parking Zone 16, Monday through Saturday, except public holidays, without a valid permit upon any of the streets or parts of the streets as described below.

Parking Zone 16	
Name of Street	**Limits**
All streets in the JC Heights	State Highway 139 to Paterson Plank Rd/Secaucus Rd
	Western side of Paterson Plank Rd to Eastern side of Tonnele Av

Residents within Parking Zone 16 will be eligible for a "Zone 16-1" parking permit that will allow them to park anywhere within Parking Zone 16, 24 hours a day, Monday through Saturday, except Sundays and holidays.

Any person that demonstrates that they are currently working for any employer located within Parking Zone 16 will be eligible to purchase a "Zone 16-2" permit every six months, that will allow them to park anywhere within Parking Zone 16, 24 hours a day, Monday through Saturday, except Sundays and holidays. **[Added 4-12-2017 by Ord. No. 17-033; amended 9-12-2018 by Ord. No. 18-099]**

C.3.No person shall park a vehicle in excess of four (4) hours within Parking Zone 20 between the hours of 6:00pm and 6:00am, Monday through Saturday, except public holidays, without a valid permit upon an of the streets or parts of the streets as described below.

Parking Zone 20	
Name of Street	**Limits**
Ash St	Pacific Ave to Pine St
Boltwood St	Entire length
Communipaw Av	Pacific Av to Johnston Av
Johnston Av	Pacific Av to Communipaw Av
Lafayette St	Pacific Av to Monitor St
Maple St	Pacific Av to Monitor St
Monitor St	Entire length
Pine St	Entire length
Suydam Av	Entire length
Whiton St	Entire length

D. The Director of the Division of Parking Enforcement is hereby authorized to issue a parking permit upon written application therefor. Each such permit shall be designated by the Director or his or her

designee to state or reflect thereon the particular residential permit parking zone as well as the license number of the motor vehicle for which it is issued. No more than one (1) parking permit shall be issued to each motor vehicle for which application is made. The Director is authorized to issue such rules and regulations not inconsistent with this chapter governing the manner in which persons shall qualify for permits. **[Amended 11-12-2014 by Ord. No. 14-017; 5-27-2015 by Ord. No. 15-063]**

E. Parking permits shall be issued for each motor vehicle(s) only upon application by the following persons: **[Amended 5-27-2015 by Ord. No. 15-063; 1-25-2017 by Ord. No. 17-008; 11-14-2019 by Ord. No. 19-150; 9-10-2020 by Ord. No. 20-066; 10-7-2020 by Ord. No. 20-087]**

(1) A legal resident within a permit parking zone outside the boundaries of the Journal Square 2060 Plan Area:

(a) Who is the registered owner or lessee of a motor vehicle or has the exclusive use of a corporate or governmental vehicle; and

(b) Who resides within a property for which no off-street parking is available to residents either with or without charge; and

(2) A legal resident within the boundaries of the Journal Square 2060 Plan Area:

(a) Who is the registered owner or lessee of a motor vehicle or has the exclusive use of a corporate or governmental vehicle; and

(b) Who resides within a property that was issued a certificate of occupancy on or before December 31, 2019, and for which no off-street parking is available to residents, either with or without charge.

(3) Non-residential parking permit. A person who owns or leases commercial property and is actively engaged in a business located within a residential permit parking area or is an employee thereof (current pay stubs must be submitted for proof of employment). However, no more than one parking permit may be issued for each employee for a motor vehicle registered to or under the control of such a person.

(4) Non-residential student parking permit. A person who is a current full-time student of an educational institution except a college that is located in a residential parking permit zone. Proof of full-time student registration is required.

(5) Temporary parking permits:

(a) Temporary work permit (90-day) - Issued to temporary residents who reside within a zone for up to 90 days on work assignments. Proof of current employment and temporary residence is required. One 90-day extension is permitted for a maximum of six months.

(b) Temporary residential permit (14-day) - Issued to new residents who are awaiting receipt of a driver's license and registration at their Jersey City address. Proof of residency (deed or lease) and proof of request for a change of address to New Jersey Motor Vehicle Commission is required.

(c) Home healthcare permit (90-day) - Issued to visiting nurses, home health aides, family members during the hours they are in fact providing health services to a resident of the zone.

(6) Contractor parking permit.

(a) Six months - Issued to contractors for the days and hours they are actually performing extensive construction on existing residential structures or new construction of a one- or two-family residential home (not high-rise units);

(b) Daily permit - Issued to contractors during per diem repair work on a residential home(s), i.e., plumbing work/electrical work that will require them to be parked in the zone for the day.

(7) Visitors parking permit.

Daily - Issued to a person visiting a residence within a zone who will be parked in excess of the permitted hours. Visitor parking permits shall be issued only to bona fide residents of a restricted parking zone. Permits may not be sold, exchanged or purchased except directly from the City Division of Parking Enforcement. Permits are valid only for the month and days specified thereon and shall indicate the make, model and license plate number of the vehicle.

(8) Transfer permit. Issued to residents who have changed their temporary information to permanent, or who move from one zone to another. Maximum period of 14 days.

F. Subsection E(1)(b) and E(2)(b) shall not apply to any resident: **[Amended 5-27-2015 by Ord. No. 15-063]; 11-14-2019 by Ord. No. 19-150; 10-7-2020 by Ord. No. 20-087]**

(1) Who is 65 years of age or older; or

(2) Who held a permit before the effective date of the ordinance imposing the E(1)(b) and E(2)(b) restrictions;

(3) Of property that is restricted to occupancy by low or moderate income persons within the meaning of the New Jersey Fair Housing Act, N.J.S.A. 55:27D-301 et seq.

G. To assure that both prospective residential tenants and purchasers of property, including condominiums, are aware of the residential parking permit conditions imposed hereunder, every landlord and every seller shall, at least ten (10) days before the date a lease is executed or a deed is conveyed, provide the prospective tenant or prospective purchaser with a copy of Section 332-58. Every landlord or tenant shall file with the Director of the Division of Parking Enforcement an acknowledgement of the receipt of Section 332-58, signed by the prospective tenant or purchaser, no later than thirty (30) days after execution. The acknowledgement shall be in a form to be provided by the Division of Parking Enforcement and posted on the City's website. **[Amended 11-12-2014 by Ord. No. 14-017; 5-27-2015 by Ord. No. 15-063]**

H. Proof required to establish residency, ownership, employment, full-time student status or any other permit term or condition shall be within the sound discretion of the Director.

I. The Division of Parking Enforcement shall maintain a current record of all properties with 30 or more dwelling units which make off-street parking available to residents whether as part of the rental or service charge or for an optional fee. The Tax Assessor and all departments of the City which maintain relevant records shall cooperate to assure that the record of available off-street parking maintained by the Division of Parking Enforcement remains current. **[Amended 11-12-2014 by Ord. No. 14-017]**

J. Any person who obtains a parking permit in violation of Section 332-58 shall, in addition to cancellation of the permit, be liable for the penalties prescribed by Section 1-25.

K. Any owner, landlord or seller of real property who fails to comply with Subsection 332-58.G shall be liable for the penalties prescribed by Section 1-25.

L. No permit shall be issued to any person who has failed to pay any City of Jersey City municipal parking fines until such fines, including any penalties thereon, are paid in full.

§ 332-58.1. Parking restrictions in municipal lots. [Added 9-9-2015 by Ord. No. 15-109; 4-24-2024 by Ord. No. 24-024]

A. No person shall park a vehicle in a municipal lot without a valid parking permit.

B. There are two types of parking permits allowed in a municipal lot: **[Amended 9-25-2019 by Ord. No. 19-124; 12-18-2019 by Ord. No. 19-162]**

1. [NP] - Nighttime parking only (7:00 p.m.—8:00 a.m.);

2. [24/7] - All day/all night parking (24 hours).

(a) No new permits will be issued for Lot 7. Permits given out prior to this Ordinance No. 19-124 [adopted September 25, 2019] will be able to continue parking. Those permit holders may continue to renew their permits; however, no new permits may be issued. When an existing permit is not renewed, the space where the permit holder used to park will become a metered space open to the public and no permit will be issued to replace it.

PARKING PERMITS FOR MUNICIPAL LOTS			
LOT #	**LOCATION**	**METERED**	**PERMITS**
1 (a/k/a 33)	277 Central Avenue (Sherman Place)	Yes	24/7
2 (a/k/a 39)	522 West Side Avenue (Between Clendenny Avenue & Union Street)	Yes	NP
3 (a/k/a 44)	693 Newark Avenue & Cottage Street	Yes	24/7
4 (a/k/a 49)	328-348 Central Avenue (Burger King Lot)	Yes	NP, 24/7
5 (a/k/a 50)	Fairview & Bergen Avenue	No	24/7
6 (a/k/a 51)	404 2nd Street	No	24/7
7 (a/k/a 52)	174 Newark Avenue	Yes	24/7
8 (a/k/a 53)	477-79 Central Avenue & Congress	Yes	24/7, NP
9 (a/k/a 54)	Boland Street/Fairmount Avenue	Yes	NP

PARKING PERMITS FOR MUNICIPAL LOTS			
LOT #	**LOCATION**	**METERED**	**PERMITS**
10 (a/k/a 15)	754 West Side Avenue (between Fairview and Fairmount Avenue)	Yes	NP
11 (a/k/a 4)	388 Central Avenue	Yes	NP

C. To the extent applicable, the regulations set forth in Section 332-58 (Parking Restrictions in Residential Zones) shall also apply to Parking Permits for Municipal Lots.

§ 332-59. Display of permits. [Amended 11-12-2014 by Ord. No. 14-017]

The permit as issued by the Division of Parking Enforcement shall be placed unobstructed on the rear driver's side of the subject vehicle, e.g., driver's side rear window or driver's side rear bumper.

§ 332-60. Permit parking exemptions.

A. A resident motor vehicle, employee vehicle or transient motor vehicle on which is displayed a valid parking permit as provided for herein shall be permitted to stand or be parked in the residential permit parking zone for which the permit has been issued without being limited by time restrictions or area prohibitions established pursuant to this section. Said resident motor vehicle, employee vehicle or transient motor vehicle shall not be exempt from parking restrictions or prohibitions established pursuant to authority other than this section. All other motor vehicles other than vehicles where the operator or the passenger being transported by said vehicle is physically disabled and the vehicle displays a license issued under provisions of N.J.S.A. 39:4-205, parked within a residential permit parking zone shall be subject to the time restrictions or area prohibitions adopted in this section.

B. A resident parking permit shall not guarantee or reserve to the holder thereof an on-street parking space within the designated residential permit parking zone.

§ 332-61. Temporary residential parking permits for fire stations. [Amended 11-12-2014 by Ord. No. 14-017]

Upon the request of the Fire Chief, the Director of the Division of Parking Enforcement (hereinafter "Director") or his or her designee shall issue to the officer in charge of a fire station within a residential permit parking zone, not more the five (5) temporary parking permits for the use of members transferred to the unit on an emergency basis. The Fire Chief may issue rules and regulations on the use of said temporary permits not inconsistent with this Article.

§ 332-62. Application for and duration of permit. [Amended 11-12-2014 by Ord. No. 14-017]

Each parking permit issued by the Director of the Division of Parking Enforcement (hereinafter "Director") or his/her designee shall be valid for not more than one (1) year. Permits shall be renewed annually on a date to be determined by the Director. Each application or reapplication for a parking permit shall contain information sufficient to identify the applicant, his residence address or address of

real property owned or leased within a residential permit parking and the license number of the motor vehicle for which application is made and such other information that may be deemed relevant by the Director.

§ 332-63. Permit fees. [Amended 3-9-2022 by Ord. No. 22-022]

The fee for a residential parking permit, temporary residential parking permit and transfer charge shall be provided in Chapter 160, Fees and Charges.

§ 332-64. Criteria for determination of residential permit parking areas.

A. A residential area shall be deemed eligible for consideration as a residential permit parking zone if, based on surveys and studies prepared by or at the direction of the Municipal Engineer or the Director of the Division of Parking Enforcement (hereinafter "Director"), objective criteria establish that the residential area is impacted by commuter vehicles for any extended period. **[Amended 11-12-2014 by Ord. No. 14-017]**

B. In determining whether a residential area is eligible for designation as a residential permit parking zone, the factors to be considered shall include but are not limited to the following:

(1) The extent of the desire and need of the residents for residential permit parking and their willingness to bear the administrative costs in connection therewith.

(2) Ninety (90) percent of the legal on-street parking spaces are occupied by motor vehicles during the period proposed for parking restriction.

(3) Twenty (20) percent of the vehicles parking in the area during the period proposed for parking restrictions are commuter vehicles rather than resident vehicles.

(4) The extent to which motor vehicles registered to persons residing in the residential area cannot be accommodated by the number of available off-street parking spaces.

§ 332-65. Revocation of residential parking permits. [Amended 11-12-2014 by Ord. No. 14-017]

The Director of the Division of Parking Enforcement is authorized to revoke the residential parking permit of any person found to be in violation of this Article and, upon written notification thereof, said person shall surrender such permit to the Director of the Division of Parking Enforcement or his designee. Failure when so requested to surrender said permit shall constitute a violation of this Article.

§ 332-66. On-street resident only permit parking zones. [Amended 6-15-2011 by Ord. No. 11-066; 12-19-2012 by Ord. No. 12-156; 3-25-2015 by Ord. No. 15-036]

A. The Division of Parking Enforcement is hereby authorized to issue one permit per year per vehicle to a bona fide resident or employee of a business located on the streets described below. **[Amended 11-12-2014 by Ord. No. 14-017]**

B. Proof of residency of within said on-street resident only permit parking zones shall be required prior to the issuance of a resident only permit parking permit.

C. Said permit shall be valid only where authorized On-Street parking is available and within the on-street resident only parking zone designated thereon; all other parking regulations prevailing.

D. No person shall park a vehicle without a valid permit on any of the streets designated as follows: **[Amended 8-11-2012 by Ord. No. 12-098; 11-20-2018 by Ord. No. 18-130; 9-25-2019 by Ord. No. 19-117; 9-23-2020 by Ord. No. 20-075; 2-9-2022 by Ord. No. 22-008; 9-21-2022 by Ord. No. 22-081]**

Zone 8			
Street	**Limits**	**Days of Week**	**Times**
Audubon Av	Between West Side Av and Bergen Av	M—F	3 pm to 9 pm
Broadman Pkwy	Between the dead end and Kennedy Blvd		
Casper Ct	Entire length		
College Dr	Between Audubon Av and Culver Av		
College St	Between Audubon Av and Culver Av		
Culver Av	Between West Side Av and Kennedy Blvd		
Dwight St	Between Kennedy Blvd and Bergen Av		
Fisk St	Between West Side Av and Mallory Av		
Fulton Av	Between Bergen Av and West Side Av		
Grant Av	Between Bergen Av and West Side Av		
Iorio Ct	Entire length		
Kennedy Blvd	West side: between Stegman Pkwy and Audubon Av		
Kennedy Blvd	West side: between Culver Av and Broadman Pkwy		
Kennedy Blvd	East side: between Stegman St and Grant Av		
Stegman Ct	Entire length		
Stegman Pkwy	Between West Side Av and Kennedy Blvd		
Stegman Pl	Entire length		
Stegman St	Between Kennedy Blvd and Bergen Av		
Stegman Ter	Entire length		
Towers St	Entire length		
Van Houten Av	Entire length		
Woodlawn Av	West Side Av to Kennedy Blvd		

Zone 11			
Street	**Limits**	**Days of Week**	**Times**
Apollo St	Entire length	M—F	3 pm to 9 pm
Bergen Av	West Side between Duncan Av and Fairmount	M—F	3 pm to 9 pm
Boland St	Entire Length	M—F	3 pm to 9 pm
Britton St	Entire Length	M—F	3 pm to 9 pm
Duncan Av	Between Bergen Av and West Side Av	M—F	3 pm to 9 pm
Duncan Ct	Entire length	M—F	3 pm to 9 pm
Fairmount Av	Between West Side Av and Bergen Av	M—F	3 pm to 9 pm
Fairmount Ter	Between Montgomery St and Fairmount Av	M—F	3 pm to 9 pm
Fairview Av	Between West Side Av and Bergen Av	M—F	3 pm to 9 pm
Glenwood Av	Between West Side Av and Kennedy Blvd	M—F	3 pm to 9 p.m.
Jewett Ave	Between West Side Av and Bergen Av	M—F	3 pm to 9 pm
Kennedy Blvd	East side; Duncan Av to Kensington Ave	M—F	3 pm to 9 pm
	West Side; Duncan Av to Kensington Ave	M—F	3 pm to 9 pm
Kensington Ave	Between West Side Av and Bergen Av	M—F	3 pm to 9 pm
Montgomery St	South side between West Side Av and Bergen Av	M—F	3 pm to 9 pm

*Residences within these limits are eligible to obtain on-street resident only zone 11 Parking permits.

Zone 13			
Street	**Limits**	**Days of Week**	**Times**
Essex St	North side; between Greene St and Washington St; and between Warren St and Van Vorst St	Weekdays F through M	5 pm to 8 am 5 pm F through 8 am M

Zone 14			
Street	**Limits**	**Days of Week**	**Times**
Lewis Av	East side; entire length	Daily	9 pm to 5 am

§ 332-67. Violations and penalties.

A. It shall be unlawful and a violation of this Article, unless expressly provided to the contrary herein, for any person to stand or park a motor vehicle for a period exceeding the time limitation or in violation of the zone prohibition established pursuant hereto. Any person who violates or fails to comply with any provision of this Article shall be liable to the fine indicated in Chapter 160.

B. It shall be unlawful and a violation of this Article for a person to falsely represent himself eligible for a parking permit or to furnish false information on an application therefor. The Director of the Jersey City Division of Parking Enforcement may refuse to issue a parking permit to any person or persons where he finds that the applicant has furnished false information on an application therefor. **[Amended 11-12-2014 by Ord. No. 14-017]**

C. It shall be unlawful and a violation of this Article for a person holding a valid parking permit issued pursuant hereto to permit the use or display of such permit on any motor vehicle other than that for which the permit was issued.

D. It shall be unlawful and a violation of this Article for a person to copy, reproduce or otherwise bring into existence a facsimile or counterfeit parking permit or permits. It shall further be unlawful and a violation of this Article for a person to knowingly use a duplicate facsimile or counterfeit parking permit in order to evade area prohibitions or time limitations on parking applicable in a residential permit zone. A violation of this subsection shall be a misdemeanor punishable in accordance with the provisions of this Code.

E. It shall be unlawful and a separate violation of this Article if any landlord or seller fails to timely file the acknowledgement required by Subsection 332-58.G above with the Division of Parking for any unit offered for sale or rent. The maximum per unit fine shall apply. **[Added 5-27-2015 by Ord. No. 15-063]**

ARTICLE IX
Parking for the Disabled

§ 332-68. Parking for the disabled.

No person shall park a vehicle upon any of the streets or parts thereof described below, except those persons with special parking permits as described in this Article. Schedule 25 shall be incorporated within the Chapter 332 Manual—Traffic and Transportation and is available for inspection in the Division of Engineering, Traffic and Transportation and/or the Office of the City Clerk.

§ 332-69. Restricted parking zones in front of or near residences of disabled drivers. [Amended 5-11-2011 by Ord. No. 11-051; 8-31-2011 by Ord. No. 11-099; 11-09-2011 by Ord. No. 11-139; amended 5-23-2012 by Ord. No. 12-070; 9-27-2012 by Ord. No. 12-114; 1-9-2013 by Ord. No. 12-165; 1-23-2013 by Ord. No. 13-003; 4-24-13 by Ord. No. 13-038; 5-29-2013 by Ord. No. 13-063; 6-19-2013 by Ord. No. 13-076; 11-26-2013 by Ord. No. 13-130; 3-26-2014 by Ord. No. 14-031; 4-9-2014 by Ord. No. 14-035; 6-25-2014 by Ord. No. 14-066; 9-10-2014 by Ord. No. 14-095; 9-23-2014 by Ord. No. 14-113; 11-12-2014 by Ord. No. 14-142; 11-25-2014 by Ord.

No. 14-147; 1-14-2015 by Ord. No. 14-169; 3-25-2015 by Ord. No. 15-029; 9-9-2015 by Ord. No. 15-112; 1-27-2016 by Ord. No. 16-006; 9-14-2016 by Ord. No. 16-119; 2-8-2017 by Ord. No. 17-014; 4-12-2017 by Ord. No. 17-034; 5-24-2017 by Ord. No. 17-062; 7-19-2017 by Ord. No. 17-090; 8-16-2017 by Ord. No. 17-106; 9-27-2017 by Ord. No. 17-123; 12-13-2017 by Ord. No. 17-163; 5-23-2018 by Ord. No. 18-047; 6-27-2018 by Ord. No. 18-063; 9-12-2018 by Ord. No. 18-098; 9-26-2018 by Ord. No. 18-108; 5-22-2019 by Ord. No. 19-051; 8-14-2019 by Ord. No. 19-096; 9-11-2019 by Ord. No. 19-103; 10-23-2019 by Ord. No. 19-149; 1-8-2020 by Ord. No. 19-169; 4-15-2020 by Ord. No. 20-031; 5-6-2020 by Ord. No. 20-035; 12-2-2020 by Ord. No. 20-099; 12-16-2020 by Ord. No. 20-106; 4-15-2021 by Ord. No. 21-021; 9-9-2021 by Ord. No. 21-057; 9-22-2021 by Ord. No. 21-063; 10-14-2021 by Ord. No. 21-068; 10-27-2021 by Ord. No. 21-070; 11-29-2021 by Ord. No. 21-075; 2-9-2022 by Ord. No. 22-009; 3-23-2022 by Ord. No. 22-027; 6-15-2022 by Ord. No. 22-048; 9-21-2022 by Ord. No. 22-082; 1-11-2023 by Ord. No. 22-109; 2-23-2023 by Ord. No. 23-011; 5-20-2023 by Ord. No. 23-038; 6-28-2023 by Ord. No. 23-061; 9-20-2023 by Ord. No. 23-090; 10-25-2023 by Ord. No. 23-101; 11-29-2023 by Ord. No. 23-111; 1-10-2024 by Ord. No. 23-127; 4-10-2024 by Ord. No. 24-016; 5-8-2024 by Ord. No. 24-028; 7-10-2024 by Ord. No. 24-059; 8-14-2024 by Ord. No. 24-062; 9-25-2024 by Ord. No. 24-081; 11-26-2024 by Ord. No. 24-101; 2-26-2025 by Ord. No. 25-013; 4-9-2025 by Ord. No. 25-034; 6-11-2025 by Ord. No. 25-060; 9-10-2025 by Ord. No. 25-091; 10-8-2025 by Ord. No. 25-104; 2-11-2026 by Ord. No. 26-002]

A. The City of Jersey City may, for good cause shown, establish by ordinance restricted parking zones in front of or near residences occupied by disabled drivers, provided that such parking is not otherwise prohibited and does not interfere with the normal flow of traffic. No restricted parking zones will be established for persons who do not transport themselves and who do not possess a valid disabled person identification card and placard or license plate issued by the State of New Jersey, Division of Motor Vehicles, pursuant to N.J.S.A. 39:4-205 and 39:4-206 unless the Municipal Council determines that:

(1) The nondisabled driver resides in the same household as the disabled person (documentation must be provided).

(2) The disabled person needs to be transported at least five (5) days per week to work, school or other educational or gainful activity (documentation must be provided detailing where, when and why the disabled person is transported).

(3) The disabled person's disability is such that it would preclude the disabled person from waiting on the sidewalk until the nondisabled driver arrives with the car or finds parking (documentation must be provided detailing the extent of the disability).

(4) The parking conditions in the disabled person's immediate neighborhood warrant this exception; and

(5) A reasonable person would deem it highly unusual and unjust to deny a restricted parking zone even in light of the competing demands for parking spaces within a given neighborhood.

B. No restricted parking zones will be established for applicants who have a driveway, carport, garage or off-street space available for their use unless the Municipal Council determines that:

(1) Such driveway, garage or space cannot accommodate the driver's vehicle; or

(2) The driver has need of a specially equipped vehicle which cannot be reasonable accommodated by such carport, garage or space.

C. The term "disabled" means a condition wherein a person has lost the use of one (1) or more lower limbs as a consequence of paralysis, amputation or other permanent disability or who is permanently disabled as to be unable to ambulate without the aid of an assisting device or whose ambulation is otherwise severely limited. In any case, the severity of the mobility disability shall be similar to or approximate disablement by reason of amputation.

D. Notarized applications for the establishment of restricted parking zones shall be filed with the Jersey City Division of Engineering, Traffic and Transportation, which shall investigate each application for compliance with Subsection A. The application shall be accompanied by a medical evaluation form completed by the applicant's personal physician. The personal physician shall include a certification stating that the applicant has a mobility disability as described in Subsection 332-69 C. Application forms and medical evaluation forms can be obtained from the Division. Thereafter, the Division shall notify the applicant when and where to report for a medical examination or, in the alternative, shall notify the applicant of the person to contact to arrange such medical examination. The examining physicians shall be selected by the Municipal Council Committee on Parking for the Disabled. The cost of examination shall be borne completely by the applicant. The applicant shall bring to the examination any and all medical or other documentation which he or she believes relevant to the applicant's medical condition. Such documentation may include, but will not be limited to X-ray reports, C.T. scan reports, cardiograms, hospital and surgical records and attending physicians' reports. If the examining physician does not possess adequate documentation to verify the applicant's eligibility under Section 332-69 C and cannot by application alone verify such eligibility, the applicant shall be rejected. An application filed by a tenant shall also be served upon the landlord.

E. If the City Council so approves, the Municipal Engineer shall establish a restricted parking zone in front of or near the residence of the applicant and shall issue a permit which complies with N.J.S.A.

39:4-197.7. Only the motor vehicle for which a valid permit has been issued shall be parked in such zone and only when the permit is properly displayed. Only one (1) permit shall be issued to the applicant. No restricted parking zones, other than those granted by the Department of Public Safety in emergencies, shall be approved except in the manner provided in this section. **[Amended 9-11-2013 by Ord. No. 13-081]**

F. No more than one (1) restricted parking space shall be granted at any one (1) building address where the building is comprised of six (6) dwelling units or less, and no more than two (2) disabled parking space shall be granted at any one (1) building address where the building is comprised of seven (7) dwelling units or more. At any address from which a disabled parking space or spaces have already been granted, any additional permits approved for that address shall bear the same permit number as exists for the space already granted. Such space or spaces may be used by anyone possessing the corresponding numbered permit on a first come, first served, basis. This provision shall apply only to applications approved or denied after the effective date of this amendment.

G. Restricted parking spaces and permits shall be valid for two (2) years and shall be renewed thereafter in accordance with the requirements of this Article. A permit may be reviewed earlier if conditions concerning the applicant change.

H. Any party denied a restricted parking zone shall have the opportunity to request reconsideration of such decision. A letter requesting reconsideration must be received by the Division of Engineering, Traffic and Transportation within twenty (20) days of the date of the notice of denial. The applicant will then be instructed to report for a reexamination with an examining physician and/or in appropriate cases, the committee, or its designee, may hold a hearing to reconsider any relevant evidence pertaining to the applicant's eligibility. As in the initial medical examination, costs for this reexamination shall be borne by the applicant. It shall be the applicant's responsibility to bring to the examination any and all documentation in support of his or her condition. The applicant will be notified by mail of the decision on reconsideration. No more than one (1) reconsideration will be given each applicant. Thereafter, the applicant may reapply after one (1) year has elapsed from the date of the notice of denial.

1. Any party willfully presenting false information or documentation to the Committee or found to be abusing any parking privileges granted under this Article shall be subject to loss and/or denial of such privileges.

§ 332-70. Existing restricted parking zones.

All persons with existing restricted parking zones which do not comply with this Article are hereby canceled six (6) months after the effective date of this article. The Municipal Engineer shall establish fair and uniform procedures to assure that each holder of an existing permit is afforded an opportunity to present evidence of compliance. Such procedures shall provide that notice of cancellation be sent to all persons with existing restricted parking zones at least forty-five (45) days before the cancellation of such permit.

§ 332-71. Municipal Engineer to issue regulations establishing restricted parking spaces.

A. The Municipal Engineer may, by regulation, establish restricted parking zones in front of schools, hospitals and other public buildings and in public parking facilities and in shopping and business

districts for use by persons who have been issued special vehicle identification cards by the Division of Motor Vehicles pursuant to N.J.S.A. 39:4-205 when using a motor vehicle on which is displayed a certificate for which a special vehicle identification card has been issued.

B. All regulations establishing restricted disabled parking spaces pursuant to Subsection A above and the location of such spaces are available for review in the Office of the City Clerk and in the Division of Engineering, Traffic and Transportation.

§ 332-71.1. Restricted parking; spaces for the disabled. [Amended 11-16-2017 by Ord. No. 17-149]

The parking spaces below are hereby designated as reserved for vehicles transporting the disabled. Vehicles parked in the reserved parking space must display the Special Vehicle Identification (hang tag) issued by the Motor Vehicle Commission on Wheelchair License Plates.

Name of Street	Side	Parking Spaces
Robinson Dr	Counterclockwise Robinson Dr to Lee Ct	**2—90 degreelangle spaces**

Regulatory, parking and warning signs shall be erected and maintained to affect the above designated regulatory and parking prohibitions and restrictions pursuant to New Jersey State Statutes and Amendments and the Manual on Uniform Traffic Control Devices.

Tow away zones. Any vehicle parked or standing as to obstruct or impede a normal flow of traffic, block entrances or exit ways, loading zones, oil fill, any grassy area, pedestrian walkway, or present in an way a safety or traffic hazard may be removed by towing the vehicle at the owners or operators expense.

The Provisions of Title 39, Subtitle 1 are hereby made applicable to Society Hill at Droyers Point, including all roads, streets, driveways, terraces, parking areas and other roadways with the area commonly known as Society Hill at Droyers Point, and open to or used by the public, tenants and employees for the purpose of vehicular traffic.

Editor's note—Ord. No. 17-149, adopted November 16,2017, amended the Code by adding a new § 332-71. In order to prevent duplication of section numbers, the provisions have been renumbered as § 332-71.1 at the discretion of the editor.

ARTICLE X

Impounding and Booting Vehicles

§ 332-72. Abandonment of motor vehicles prohibited; violations and penalties.

A. The following acts are unlawful:

(1) Abandoning a vehicle on a street or on public property.

(2) Parking a vehicle on a street or on public property without license plates.

(3) Parking a vehicle on private property for forty-eight (48) hours or more without the consent of the owner or for any period without license plates. A vehicle which is parked on a street or on public property for forty-eight (48) hours or more may be presumed to have been abandoned under this subsection.

§ 332-73. Impounding and booting motor vehicles. [Amended 9-11-2013 by Ord. No. 13-081]

A. The Department of Public Safety may tow away and impound or boot any vehicle under the following circumstances:

(1) The vehicle has been abandoned as provided in the preceding section.

(2) The vehicle is parked in violation of any provision of this chapter or of Title 39 of the New Jersey Statutes.

(3) The vehicle constitutes a danger or impediment to traffic or a danger to public safety.

(4) There exists outstanding warrants against the owner of the vehicle issued in connection with parking offenses involving that specific vehicle.

B. Neither the city nor its agents or employees shall be liable for the loss of any vehicle or for damage to any vehicle which is booted or impounded and stored by the city or by an agent of the city, nor shall the city be liable for the disposal of any impounded vehicle.

C. The Department of Public Safety may use the services of a private tower to enforce any of the provisions of this Article.

§ 332-74. Notification of owners; procedure where owners not known.

A. When a police officer removes a vehicle from a street or other public way, as authorized in this Article, and the officer knows or is able to ascertain from the registration records in the vehicle or in some other way the name and address of the owner thereof, the officer shall immediately give or cause to be given notice in writing by registered mail to such owner of the fact of such removal, the reasons therefor and the place to which the vehicle has been removed. In the event the vehicle is stored in a public garage, a copy of such notice shall be given to the proprietor of the garage.

B. When a police officer removes a vehicle from a street under this Article and does not know and is not able to ascertain the name of the owner, or for any other reason is unable to give the notice to the owner as herein provided, and in the event the vehicle is not returned to the owner within a period of three (3) days, the officer shall immediately send or cause to be sent a written report of such removal by mail to the New Jersey State Division of Motor Vehicles, and shall file a copy of such notice with the proprietor of any public garage in which the vehicle may be stored. Such notice shall include a complete description of the vehicle, the date, time and place from which removed, the reasons for such removal, and the name of the garage or place where the vehicle is stored.

§ 332-75. Charges for taking, removing, towing and storing.

A. Should any person abandon any motor vehicle on any street in the city or on property other than his own, without the consent of the owner of said property, for a period longer than forty-eight (48) hours, or upon discovery of any motor vehicle apparently abandoned in the city, or of any motor

vehicle that apparently has been involved in an accident and is a menace to traffic, the police may take such motor vehicle into its custody and cause the same to be taken to, stored or impounded in the place or places designated as a motor vehicle pound.

B. There shall be no liability attached to the police for taking or impounding the motor vehicle or for any damages to it while in the custody of the police.

C. The motor vehicle shall not be released or removed from the pound except upon the payment to the city of the charges set forth herein for the taking, removal, towing and storage.

D. There shall be no charge for impounding motor vehicles which are not insured for theft, towing and storage when such vehicle has been taken without the consent of the owner or stolen within the city and then subsequently recovered within the city. However, the charges will not be waived when the vehicle is stolen or taken at some point outside the city and then recovered within the city.

E. The charges for taking, removing or towing and storage of any impounded motor vehicle shall be as indicated in Chapter 160, Fees and Charges.

§ 332-76. Towing of illegally parked vehicles.

A. The Department of Public Safety is hereby authorized to tow away, or have towed away by a commercial towing service, any vehicle which **[Amended 9-11-2013 by Ord. No. 13-081]:**

(1) Is illegally parked within any parking meter zone or parking space within an off-street metered parking zone.

(2) Is illegally parked in any place where such vehicle constitutes a traffic hazard, blocks the use of a fire hydrant or a driveway or obstructs or may obstruct the movement of any emergency vehicle.

B. Vehicles towed away for illegal parking shall be stored away in a safe place and shall be restored to the owner or operator of such vehicle upon payment of fees indicated in Chapter 160 Fees and Charges.

§ 332-77. Violations.

A. The following acts are unlawful:

(1) Removing or attempting to remove an impounded vehicle without paying all of the storage charges;

(2) Removing or attempting to remove a boot fastened to a vehicle;

(3) Tampering with a boot, damaging or attempting to damage a boot fastened to a vehicle.

ARTICLE XL

Titles 39,40 Private Property

§ 332-78. Parking restrictions in shopping areas.

A. The following parking restrictions shall apply in the shopping areas designated:

(1) Hudson Mall (Block 1751, Lots 10J, M and N; Block 1746.5, Lot H-4.)

(a) Within sixty (60) feet of the curbline in front of the business places therein.

(b) At the rear of such business places.

(c) At any other area not within the area designated by white parking place lines.

(2) Stadium Shopping Plaza (Block 1288-A, Lot 1-L/l-M). No person shall park a vehicle:

(a) Within thirty-five (35) feet of the curbline in front of the business places.

(b) At the rear of such business places.

(c) At any other area not within the area designated by white parking place lines.

B. No person shall park any truck or bus within the following described areas unless the truck or bus is in the process of delivering or picking up materials or passengers, in the case of public utilities, while performing necessary functions thereon:

(1) Hudson Mall area known as Block 1751, Lots 10J, M and N; Block 1746.5, Lot H-4, containing approximately 48.98 acres and located on Route 440 in Jersey City and situated immediately west of lands and buildings of Jersey City Leasing Corporation, commonly referred as "Hudson Mall."

(2) Stadium Shopping Plaza, known as Block 1288-A, Lot 1-L/l-M, containing approximately 19.00 acres and located on Route 440 in Jersey City.

§ 332-79. Title 39 made applicable to Newport.

A. The provisions of Title 39, Subtitle 1, are hereby made applicable to Newport, including all roads, streets, driveways, terraces, parkways, parking areas and other roadways within the area commonly known as Newport, and open to or used by the public, tenants and employees for the purpose of vehicular traffic.

B. The Newport Associates Development Company is hereby authorized to install and maintain a traffic signal system at the public-private intersection of Washington Boulevard and the main entrance to Target. The traffic signal shall conform to the same specifications as those regulating other local intersections.

§ 332-80. Title 39 made applicable to Port Liberte.

The provisions of Title 39, Subtitle 1, are hereby made applicable to Port Liberte, including all roads, streets, driveways, terraces, parkways, parking areas and other roadways within the area commonly known as Port Liberte, and open to or used by the public, tenants and employees for the purpose of vehicular traffic.

§ 332-81. Title 39 made applicable to Society Hill II. [Added 8-16-2006 by Ord. No. 06-094]

The provisions of Title 39, Subtitle 1, are hereby made applicable to Society Hill II, including all roads, streets, driveways, terraces, parkways, parking areas and other roadways within the area commonly known as Society Hill II, and open to or used by the public, tenants and employees for the purpose of vehicular traffic.

§ 332-81.1. Title 39 made applicable to Society Hill at Droyers Point. [Added 11-16-2017 by Ord. No. 17-149]

1. **General Parking.** All vehicles must park in designated areas and between the lines provided.

2. **Reserved Parking.** All vehicles that are granted specialty parking in this section such as Reserved Parking for the Disabled, Resident Only and Visitors, etc., must be properly identified and the spaces must be shown on the attached plan.

Resident/Visitor Parking

Name of Street	Side	Parking Spaces
Alexander Ct	East	3—90 degree/angle spaces
Frances Ct	South	8—90 degree/angle spaces
Hudson Ct	West	7—90 degree/angle spaces
Lee Ct	East	4—90 degree/angle spaces
Lyon Ct (N/S)	West	6—90 degree/angle spaces
Lyon Ct (EAV)	Both	6—90 degree/angle spaces
McMartin Ct	West	2—90 degree/angle spaces
Robinson Dr	Counter-clockwise Robinson Dr to Lee Ct	15—90 degree/angle spaces
Smit Ct	North	12—90 degree/angle spaces
Roosevelt Stadium Ct	East	10—90 degree/angle spaces
Swan Ct	West	4—90 degree/angle spaces
Tottenham Ct	South	20—90 degree/angle spaces

§ 332-82. Parking in front of private driveways.

A. Pursuant to N.J.S.A. 39:4-138.4, the Municipal Engineer may issue to owners of private driveways and to members of the same household permits authorizing the parking of private passenger vehicles in

front of the owner's driveway. The Director may require an owner to file a completed application for such a permit on a form provided by the Director. An owner of a private driveway shall be eligible to apply for up to three permits for his or her own motor vehicles or for use by other parties authorized by the owner to park in front of the private driveway. Each member of the owner's household who owns a motor vehicle shall also be eligible to apply for a permit issued under this section. There shall be a fee of $5 for each vehicle authorized to park in front of a private driveway. The Director may require an applicant to provide evidence that the driveway was legally established in accordance with the Jersey City Construction Code.

B. The permit shall identify the location of the driveway and the vehicle authorized to park in front of the driveway. The permit shall be five and one-half (51/2) by eight and one-half (81/2) inches in size, shall bear an appropriate certification of authenticity and shall be displayed prominently within the vehicle when it is parked so as to be seen from the middle of the street.

C. Provided that such parking is not otherwise prohibited and does not interfere with a normal flow of traffic, it is an affirmative defense to prosecution for violation of N.J.S.A. 39:4-138(d) if:

(1) The parked vehicle and driveway where the vehicle is parked are owned by the same person; or

(2) The parked vehicle is owned by a member of the same household as the owner of the private driveway; or

(3) The owner of the private driveway authorized the parking of the parked vehicle in front of the private driveway.

D. This defense may be presented by form of affidavit as provided for in the New Jersey Court Rule 7:6-6(a).

E. No owner may permit any vehicle to park in front of the owner's driveway other than a vehicle registered in the name of the owner or a member of the owner's household residing with the owner.

F. No owner may charge a fee for permitting anyone to park a vehicle in front of the owner's driveway.

G. The rights conferred upon an owner under Subsection C shall extend only to the street in front of the driveway parallel to the curb.

H. This section confers no rights to park a vehicle on any part of the driveway which lies across the sidewalk nor does it confer upon an owner the exclusive right to park a vehicle adjacent to any part of the curb beyond the width of the driveway.

§ 332-83. Parking within designated properties of the Jersey City Housing Authority.

A. No person shall park a vehicle at any time upon any of the properties of the Jersey City Housing Authority, or part thereof, listed below.

(1) Parking prohibited at all times. In accordance with the provisions of this section, parking is prohibited on the following Housing Authority streets or parts thereof:

Name of Housing Authority
BOOKER T. WASHINGTON PROJECT

(a) The area on Colden Street adjacent to the south end of Building No. 8, from a point 50 feet west of the Lehigh Valley Railroad overpass to a point 75 feet west.

(b) Fremont Street: east side, from a point 225 feet north of Colden Street to a point 250 feet north.

CURRIE WOODS PROJECT

(a) North driveway: north side, from a point 80 feet south of Pamrapo Avenue to a point 90 feet south.

(b) North driveway: south side, from a point 765 feet west of Old Bergen Road to a point 755 feet west.

(c) North driveway: south side, from a point 555 feet west of Old Bergen Road to a point 545 feet west.

(d) North driveway: south side, from a point 330 feet west of Old Bergen Road to a point 320 feet west.

(e) North driveway: south side, from a point 70 feet west of Old Bergen Road to a point 60 feet west.

(f) Parking Area No. 1; south side, from a point 45 feet north of Merritt Street to a point 100 feet north.

A. HARRY MOORE PROJECT

(a) West driveway: east side, from a point 260 feet north of Duncan Avenue to a point 330 feet north.

(b) East driveway: east side, from Duncan Avenue to a point 465 feet north.

(c) West driveway: west side, from Duncan Avenue to a point 285 feet north.

HOLLAND GARDENS

(a) South driveway: north side, from its intersection with Erie Street to a point 90 feet west of Erie Street.

HUDSON GARDENS

(a) In the small horseshoe shaped area adjacent to Parking Area No. 1, at the south end of McPherson Place.

LAFAYETTE GARDENS

(a) Parking area No. 3: east end on Carbon Street between Van Home Street and Halladay Street

MARION GARDENS

(a) South driveway: north side, from Dales Avenue to a point 70 feet west.

(b) South driveway: north side, from a point 330 feet west of Dales Avenue to a point 370 feet west.

(c) North driveway: south side, from Dales Avenue to a point 625 feet west.

MONTGOMERY GARDENS

(a) Bright Street: north side, from Florence Street to a point 40 feet west.

(b) Florence Street: west side, from a point 55 feet north of Bright Street to a point 100 feet north.

(2) Parking prohibited for street cleaning. Parking is prohibited on the following Housing Authority streets or parts thereof for street cleaning purposes during the hours listed:

BOOKER T. WASHINGTON PROJECT

(a) All of Parking Area No. 1 on Colden Street. Monday and Thursday, 8:00 am to 10:00 am.

(b) All of Parking Area No. 2 on Fremont Street. Tuesday and Friday, 8:00 am to 10:00 am.

(c) All of Parking Area No. 3 on Bright Street. Tuesday and Friday, 8:00 am to 10:00 am.

CURRIE WOODS PROJECT

(a) The north side of the north driveway from a point 40 feet west of Old Bergen Road to a point 945 feet west.

(b) The north side of the south driveway from a point 290 feet west of Old Bergen Road to a point 740 feet west. Monday and Thursday 8:00 am to 10:00 am.

(c) The south side of the south driveway from a point 40 feet west of Avenue C to a point 565 feet west. Tuesday and Friday 8:00 am to 10:00 am.

(d) The south side of the north driveway from a point 50 feet west of Old Bergen Road to a point 930 feet west. Tuesday and Friday 8:00 am to 10:00 am.

A. HARRY MOORE PROJECT

(a) Monday and Thursday east side of east driveway. 1:00 pm to 3:00 pm.

(b) Tuesday and Friday south side of north driveway. 1:00 pm to 3:00 pm.

(c) Tuesday and Friday both sides of west driveway. 1:00 pm to 3:00 pm.

(d) Monday and Thursday entire lot of east parking lot. 1:00 pm to 3:00 pm.

HOLLAND GARDENS

(a) South driveway: north side, from its intersection with Erie Street to a point 90 feet west of Erie Street.

HUDSON GARDENS

(a) In the small horseshoe shaped area adjacent to Parking Area No. 1, at the south end of McPherson Place.

LAFAYETTE GARDENS

(a) Parking area No. 3: east end on Carbon Street between Van Home Street and Halladay Street

MARION GARDENS

(a) South driveway: north side, from Dales Avenue to a point 70 feet west.

(b) South driveway: north side, from a point 330 feet west of Dales Avenue to a point 370 feet west.

(c) North driveway: south side, from Dales Avenue to a point 625 feet west.

MONTGOMERY GARDENS

(a) Bright Street: north side, from Florence Street to a point 40 feet west.

(b) Florence Street: west side, from a point 55 feet north of Bright Street to a point 100 feet north.

(2) Parking prohibited for street cleaning. Parking is prohibited on the following Housing Authority streets or parts thereof for street cleaning purposes during the hours listed:

BOOKER T. WASHINGTON PROJECT

(a) All of Parking Area No. 1 on Colden Street. Monday and Thursday, 8:00 a.m. to 10:00 a.m.

(b) All of Parking Area No. 2 on Fremont Street. Tuesday and Friday, 8:00 a.m. to 10:00 a.m.

(c) All of Parking Area No. 3 on Bright Street. Tuesday and Friday, 8:00 a.m. to 10:00 a.m.

CURRIE WOODS PROJECT

(a) The north side of the north driveway from a point 40 feet west of Old Bergen Road to a point 945 feet west.

(b) The north side of the south driveway from a point 290 feet west of Old Bergen Road to a point 740 feet west. Monday and Thursday 8:00 a.m. to 10:00 a.m.

(c) The south side of the south driveway from a point 40 feet west of Avenue C to a point 565 feet west. Tuesday and Friday 8:00 a.m. to 10:00 a.m.

(d) The south side of the north driveway from a point 50 feet west of Old Bergen Road to a point 930 feet west. Tuesday and Friday 8:00 a.m. to 10:00 a.m.

A. HARRY MOORE PROJECT

(a) Monday and Thursday east side of east driveway. 1:00 p.m. to 3:00 p.m.

(b) Tuesday and Friday south side of north driveway. 1:00 p.m. to 3:00 p.m.

(c) Tuesday and Friday both sides of west driveway. 1:00 p.m. to 3:00 p.m.

(d) Monday and Thursday entire lot of east parking lot. 1:00 p.m. to 3:00 p.m.

HOLLAND GARDENS

(a) The north side of the south driveway from Jersey Avenue to a point 300 feet east. Monday and Thursday 8:00 a.m. to 10:00 a.m.

(b) The south side of the south driveway from Jersey Avenue to Erie Street. Tuesday and Friday 8:00 a.m. to 10:00 a.m.

MONTGOMERY GARDENS

(a) All of parking area west of Florence Street. Tuesday and Friday 8:00 a.m. to 10:00 a.m.

(b) All of parking area north of Bright Street. Monday and Thursday 6:00 a.m. to 8:00 a.m.

HUDSON GARDENS

(a) The east side of McPherson Place from Washburn Street to a point 240 feet south. Monday and Thursday, 8:00 a.m. to 10:00 a.m.

LAFAYETTE GARDENS

(a) All of Parking Area No. 1 at the intersection of Carbon Street and Woodward Street. Monday and Thursday, 8:00 a.m. to 10:00 a.m.

(b) All of Parking Area No. 2 on the north side of Carbon Street at Van Home Street. Tuesday and Friday, 8:00 a.m. to 10:00 a.m.

(c) All of Parking Area No. 3 on the north side of Carbon Street, 40 feet east of Van Home Street. Tuesday and Friday, 8:00 a.m. to 10:00 a.m.

(d) All of Parking Area No. 4, at the intersection of Grand Street and Barbara Place. Tuesday and Friday, 8:00 a.m. to 10:00 a.m.

MARION GARDENS

(a) Both side of the south driveway from Dales Avenue to a point 625 feet west of Dales Avenue. Monday and Thursday, 8:00 a.m. to 10:00 a.m.

(b) The north side of the north driveway, from Dales Avenue to a point 600 feet west. Tuesday and Friday, 8:00 a.m. to 10:00 a.m.

(c) All of Parking Area No. 1, adjacent to Route 1. Tuesday and Friday, 8:00 a.m. to 10:00 a.m.

(3) One-way streets. Vehicles may proceed only one-way at the following locations as designated:

HOLLAND GARDENS

(a) South driveway: one-way west.

A. HARRY MOORE PROJECT

(a) East driveway: one-way north.

(b) North driveway: one-way west.

(c) West driveway: one-way south.

B. Parking in all designated parking areas within the Jersey City Housing properties will be restricted to tenants of their respective Housing Unit and only at their respective Housing Unit. Enforcement will be accompanied by the issuance of identification decals to bona fide tenants. These decals will be displayed in the left rear window of the tenant's auto. Decals are to be rectangular in shape and bear the following "J.C.H.A. Tenant" and will be serially numbered. The Jersey City Housing Authority shall maintain a record of serial numbers and to whom each was issued.

ARTICLE XII

Permissible Parking Distances [Added 3-22-2017 by Ord. No. 17-028]

§ 332-84. Definitions. [Added 3-22-2017 by Ord. No. 17-028]

As used in this article, the following terms shall have the meanings indicated:

SCHOOL ZONE — That portion of a highway which is either contiguous to territory occupied by a school building or is where school crossings are established in the vicinity of a school, upon which are maintained appropriate "school signs" in accordance with specifications adopted by the chief administrator and in accordance with law.

§ 332-85. General provisions. [Added 3-22-2017 by Ord. No. 17-028]

A. Pursuant to N.J.S.A. 39:4-138.6, the permissible distance a person may park a motor vehicle from a "stop" sign is twenty-five (25) feet except when the intersection is located in a school zone, in which

case the mandated parking distance is fifty (50) feet, pursuant to N.J.S.A. 39:4-138(h). All intersections otherwise posted prior to the adoption of this chapter shall remain in effect. Only the Municipal Engineer, or his designee, shall reserve the right to modify the distance at any of these locations.

B. Vehicles shall at all times comply with all other parking regulations, including but not limited to regulations on parking permits, street cleaning, and parking along emergency snow routes.

C. The City of Jersey City shall not be required to install or maintain any markings, signs or other indications for permissible parking distances; it shall be incumbent upon the driver to ensure that no vehicle is parked within the permissible parking distances at any time.

D. All other provisions of N.J.S.A. 39:4-138 shall apply.

Chapter 337

WATER*

§ 337-1. Standards adopted and approved.
§ 337-2. Copies of standards on file.
§ 337-3. Administration and enforcement; standards enumerated.
§ 337-4. Metered water rates.
§ 337-5. Bulk water rates.
§ 337-6. Payments for metered water; interest and penalties.
§ 337-7. Charges to become lien.
§ 337-8. Fire hydrant charge.
§ 337-9. Enforcement.
§ 337-10. Charges collected by Office of Utility Management.
§ 337-11. Water permit fees.
§ 337-12. Jersey City Water Laboratory fees.
§ 337-13. Mandatory replacement of lead service lines.
§ 337-14. Water emergencies.

§ 337-1. Standards adopted and approved.

The Council hereby enacts and establishes rules and regulations affecting the water supply and plumbing connections therewith for the preservation of the city's water mains and regulating the use of water for air conditioning and refrigeration and plumbing connections therewith and the enforcement thereof in the form of a code enTitled "Code Pertaining to Water Supply and Plumbing Connections Therewith." The code, as filed in triplicate in the office of the City Clerk, is hereby adopted and approved.

§ 337-2. Copies of standards on file. [Amended 5-10-1984 by Ord. No. MC-599; 8-13-1997 by Ord. No. 97-052]

There shall remain on file in the office of the City Clerk three copies, reproduced in book form, of the above-mentioned code, similarly marked for the use and the examination of the public. Three copies, similar in all respects, shall be placed on file, and shall so remain on file, in the office of the Department of Administration.

§ 337-3. Administration and enforcement; standards enumerated. [Amended 10-2-1979 by Ord. No. S-292; 5-10-1984 by Ord. No. MC-599; 9-25-1991 by Ord. No. McC-355; 7-22-1992 by Ord. No. 92-091; 10-28-1992 by Ord. No. 92-143; 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052; 4-27-05 by Ord. No. 05-045]

The Department of Administration shall administer and enforce the Code Pertaining to Water Supply and Plumbing Connections therewith, as herein provided for:

*History—Adopted by the Council of the City of Jersey City May 4, 1971, as Ch. 27 of the 1971 Jersey City Code, as readopted September 19, 1978, by Ord. No. S-128. Amendments noted where applicable.

Cross references—Certificates of occupancy, Ch. 119; uniform construction codes, Ch. 131; fees and charges, Ch. 160; sewers, Ch. 281; subdivision of land; Ch. 299.

Code Pertaining to Water Supply and Plumbing Connections Therewith
City of Jersey City, New Jersey

CHAPTER 1

Sec. 1. Short title. This ordinance shall be known and may be cited as the "Water Supply Code" hereinafter referred to as "this code."

Sec. 2. Matter covered. The administration and enforcement of this code shall be vested under the authority of the Department of Administration, and the jurisdiction of said Department of Administration shall embrace control of all connections to the water mains of the City of Jersey City and the installations of meters and all matters connected therewith and the use of water for air conditioning and refrigerating systems for the purpose of conserving and protecting the city's water supply system.*

*** Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

Sec. 3. Ordinance remedial. This code is hereby declared to be remedial and shall be construed to secure the beneficial interests and purposes thereof, which are public safety, health and welfare and the protection of the city's water supply system and service.

CHAPTER 2

Definitions. For the purpose of this code the terms and wording herein contained shall be construed and confined to this section as follows:

APPROVED — As applied to material or device or mode of construction under this code, that the material, device or method has received the approval and authorization of the Department of Administration or the Board of Health, under the terms of the Board of Health. Approval by the Board of Health shall be by virtue of the terms of the Plumbing Code of the City of Jersey City, 1951.

CITY WATER SUPPLY — The municipally owned and operated potable water supply system of the City of Jersey City.

CHIEF ENGINEER — The engineer in charge of the operation and maintenance of the Jersey City Water Supply System or his or her representative.*

***Editor's Note: The former definition of "Commissioner," which immediately followed this definition, was repealed pursuant to Ord. No. 97-052, adopted 8-13-1997.**

DEPARTMENT — The various municipal departments of the City of Jersey City or their subdivisions having jurisdiction.

INDIRECT CONNECTION (FOR WATER SUPPLY) — A connection in which there is a break in a line of pipe through which the water may be discharged from one pipe to another by gravity and open to the atmosphere for a sufficient altitude to permit visibility of such discharge and to prevent a backflow into the pipe above the connection.

INSPECTOR — An inspector or any authorized employee of the Department of Administration.

OWNER — The owner or owners of the freehold of the premises or of a lesser estate therein, a vendee in possession or the lessee or joint lessees of the whole thereof.

PATENT SLEEVE AND VALVE CONNECTION — All wet connections over and above the two-inch size made to city water mains under pressure and shall consist of a sleeve installed on this main to which a valve of a given size is attached and to which the service pipe is connected.

PERSON — Any individual, association, corporation (municipal or private) or firm acting either directly or through a duly authorized agent.

PLACE OF EMPLOYMENT — Any dwelling, shop, store, factory or other building or place in which one or more persons are employed for hire or wage.

PLUMBERS:

A. MASTER PLUMBER — A person duly certified as such and authorized to engage in the installation of plumbing, through contract or otherwise, and also in planning, engineering, superintending, installation, maintenance and repair with respect to plumbing in all its branches and as such master plumber is authorized to employ journeymen plumbers and plumbers' apprentices and other persons necessary for the proper installation of plumbing work in accordance with the plumbing regulations and provisions of this code.

B. JOURNEYMAN PLUMBER — A person duly certified as such and authorized to engage in the plumbing business only as an employee of a licensed master plumber, authorized to engage in the plumbing business and under the general supervision of a licensed master plumber.

C. PLUMBER'S APPRENTICE — A person other than a master or journeyman plumber holding a certificate of registration and authorized to engage in the employment of learning the plumbing trade.

PLUMBING — Includes the practice, materials and fixtures used in the installation, maintenance, extension and alteration of all piping, fixtures, appliances and appurtenances in connection with any of the following: sanitary drainage or storm drainage facilities, the venting system and the public or private water-supply systems, within or adjacent to any building, structure or conveyance; also the practice and materials used in the installation, maintenance, extension or alteration of the stormwater, liquid waste or sewerage and water-supply systems of any premises to their connection with any point of public disposal

or other acceptable terminal, except minor repairs by a person upon his or her own premises wherein he actually resides.

PREMISES — Wherever used in this code, includes a lot or part of a lot, a building or part of a building or any parcel or tract of land whatever.

TAP — The bronze fitting installed by tapper in city water main also referred to as "corporation cock" for the purpose of connecting service pipe to the city water main.

TAPPER — Title of employee of the Department whose duty it is to install the tap in city water main.

WATER MAINS — The pipes through which potable water from the Jersey City Water Supply System is transported and distributed to any and all service pipes, fire hydrants and fire service sprinkler systems.

WATER METER — The mechanical instrument of a type approved by the Department of Administration required to be used on both domestic and fire service lines for measuring the quantity of water passing a given point.

WATER SERVICE PIPE — All that section of the pipe located between the city water main and the inlet side of the water meter.

WATER SUPPLY PIPE — All pipes or risers located between house side of the water meter and the various fixtures and appurtenances throughout the building.

WET CONNECTION — See "patent sleeve and valve connections."

Sec. 3. Inspections.

A. It shall be the duty of the Department of Administration to inspect the installation of, extension to or any alterations in all water service, water supply or water distribution piping system to all new buildings, structures and premises having service from the water supply system of Jersey City.

B. The officers and employees of the Department of Public Affairs or anyone authorized to act for it shall have free entry and access to any new building, structure or premises or part thereof, whether completed or in the process of erection, for the purpose of determining whether the building provisions of this code are complied with. Nothing herein contained shall be deemed to apply to any extension or alteration which does not conform, and it shall be his or her duty to serve written notice to owner, occupant, agent or person in possession of such building, structure or premises of such noncompliance to make such alterations or repairs as are necessary to eliminate the cause or causes of nonconformity, and in case of failure to do so within 10 days from the date of such notice, the head of the Office of Utility Management may cause the water supply from the Jersey City Water Supply System to be shut off until the requirements in the building provisions of this code are complied with.

Sec. 4. The officers of the Department of Administration and any employee delegated or authorized by the head of the Office of Utility Management shall have free entry and access to every part of any building, structure or premises whenever such entry or access is deemed necessary or advisable. Whenever any person, in possession, charge or control of any such building, structure or premises, into which any such officer or person shall desire entry or

access, shall refuse to permit such entry or access, or shall do or cause to be done any act or thing for the purpose of preventing such entry or access, the head of the Office of Utility Management or his or her authorized agent may turn off the water service from said building, structure or premises until notice shall have been given the commissioner in writing that entry or access will be permitted or provided, and until such entry or access shall have been accomplished.

Sec. 5. All applications for the use of water through a service pipe, and all applications for the introduction of service pipes or for the inserting of corporation cocks for service pipes shall be made at the office of the Permit Clerk, in the Department of Administration, by a duly licensed master plumber of the City of Jersey City, in writing, which permit shall be witnessed by the owner of the premises for whom the application is being made and filed with said Permit Clerk.

Sec. 6. Applicants shall state in fall detail the purposes for which the supply is required, with correct street address, lot and block number of the premises.

Sec. 7. All expenses incurred by reason of incorrect information given in an application shall be charged to and paid by the owner of the premises.

Sec. 8. Installation of the service pipes from the city main to the meter shall consist of tapping the city main, inserting corporation cock with proper couplings and laying service pipes from the city main to the meter, as hereinafter provided.

Sec. 9. In all cases where any unusual attachments, fixtures or alterations are desired, or which shall require the supply of an unusually large quantity of water, application shall be made to the Permit Clerk upon blanks to be furnished by him or her. The application shall be subject to the approval of the Chief Engineer, Department of Administration, before any special permit is granted.

Sec. 10. The applicant shall be liable for the amount of water used in conformity with the schedule of rates or tariffs as provided for by city ordinance.

STREET OPENINGS

Sec. 11. No street, alley or other public place shall be opened for the purpose of laying down any service pipe or doing any work or making repairs in or about any service pipes or meters without obtaining written permission from the Permit Clerk authorizing the same. Permits shall be issued in accordance with Chapter 296 (Streets and Sidewalks) Article VII (Excavations).

Sec. 12. **[Repealed 6-13-01 by Ord. No. 01-059]**

Sec. 13. **[Repealed 6-13-01 by Ord. No. 01-059]**

Sec. 14. **[Repealed 6-13-01 by Ord. No. 01-059]**

Sec. 15. **[Repealed 4-27-05 by Ord. No. 05-045]**

Sec. 16. **[Repealed 6-13-01 by Ord. No. 01-059]**

Sec. 17. The trench over and about the pipe for the accommodation of the tapper shall be dug in accordance with the size of the tap to be installed and in no instance shall be less than four feet square and not less than six inches below the bottom of the city main, and all of the pipe required in each case shall be laid and the trench left open for inspection by the Administration Department before the tap is inserted.

Sec. 18. **[Repealed 4-27-05 by Ord. No. 05-045]**

Sec. 19. **[Repealed 4-27-05 by Ord. No. 05-045**

Sec. 20. Plumbers taking out permits for tapping water or for opening streets shall be charged in accordance with the rates established by the Department of Administration.

INSTALLATION AND MAINTENANCE OF SERVICE PIPES

Sec. 21. Every person who shall construct, enter, alter or use any part of the Jersey City Water Supply system and every consumer of water and owner, occupant or person in possession, charge or control of any building, structure or premises having service therefrom, shall be governed by and subject to the provisions of this code governing the use of water and also such other rules and regulations governing the use of water as may from time to time be adopted and approved by the City Commission. It is hereby made the duty of the Department of Administration to enforce the provisions of this code governing the use of water and also any rules and regulations that may be adopted as aforesaid.

Sec. 22. No permit for the installation of any pipe or system of piping taking water from the Jersey City Water Supply System for distribution to any building or structure shall be granted until plan of such water supply or distribution system has been examined and approved

by the Department of Administration. Such plan or plans shall be presented with the application for permit to the Department of Administration in duplicate, and shall clearly show the complete water supply piping system from the service to the plumbing fixtures and other appliances to which such water supply piping system is connected, together with detail drawings of connections to surge tanks, storage tanks, pressure tanks, filter, swimming pools, bathing and display pools, sterilizers, condensers, compressors, reservoirs and washers. Said plans shall be drawn to a scale of not less than ⅛ inch to the foot; provided, however, that detailed plans shall be drawn to a scale and may be presented in either horizontal or vertical plane or isometric form.

Sec. 23. Wherever a continuous supply of water is deemed indispensable by owner or occupant in any building, structure or premises the owner or occupant shall provide a tank or other receptacle of capacity which he deems sufficient to supply the needs of such building, structure or premises during the period that the pipe section to which the service pipe is connected is shut off for repairs, connections, extensions or testing purposes; or else provide for the water supply through an auxiliary or emergency connection and service pipe with separate meter control taken from distribution system so that each service pipe shall have an independent source of supply so arranged as to ensure a continuous supply of water in case of such contingency.

Sec. 24. Each new service pipe put in service for supplying water for all purposes shall be equipped with a meter. Thereafter all charges for the use of water through such service shall be based upon the meter rates prescribed.

Sec. 25. Each new service pipe shall be laid in a straight line from the main to the property line or to within the building line at right angles to the street mains to which it is connected, except that where the subsurface conditions make it impracticable the service pipe may be otherwise laid upon the approval of the Chief Engineer, Department of Administration, of the plans submitted by plumber showing the proposed location of the service pipe.

Sec. 26. The services shall be laid at a depth of at least four feet below grade. Where the service pipe has less than four feet of cover, because of subway ducts or other subsurface condition preventing the service being laid at this depth, it shall be protected by a covering of one inch of felt cover and tar paper or other suitable waterproof material. Where constant exposure to frost exists, the service shall be further protected by additional covering of felt and protected with a metal sleeve or wooden box at the direction of the Chief Engineer, Department of Administration.

Sec. 27. When a service pipe has been laid to the meter, it must not be used to supply other premises than the particular premises applied for, except as hereinafter provided.

Sec. 28. No standpipes or other appliances for any purpose shall be allowed to be attached to the service pipe where use of water is desired. The service pipe shall be extended to the meter before any attachment shall be made.

Sec. 29. All inside connections between houses or other buildings are strictly prohibited.

Sec. 30. Valves or stop cocks at the inlet side of meter shall be left closed, and in no case shall the water be turned on except by any employee of the Department of Administration, or by licensed plumber upon a written permit to do so.

Sec. 31. Plumbers shall not leave any valve or stop cock at inlet side of the meter location open, nor water turned on in the premises after connection with the service pipe, longer than is required to test their work, without a permit therefore.

Sec. 32. Service and supply pipes in buildings shall be located in such parts thereof as are best protected from frosts.

Sec. 33. In all exposed locations the service pipes, supply pipes, fixtures and meters shall be properly wrapped or packed with felt, mineral wool or other nonconducting material or substance, if necessary, to protect said service, etc., from freezing.

Sec. 34. It shall be the duty of the plumber performing labor in and about any water service pipe to protect the same from frost. He shall not be released from the responsibility thereof by having the owner of the premises or others do the work for him.

Sec. 35. The owner of the property, into which water is introduced by a service pipe, shall be required to maintain in perfect order at his or her own expense said service pipe from the main to his or her premises, including all fixtures therein provided for delivering or supplying water for any purpose.

Sec. 36. No person shall tap or connect to any water main or insert a tap therein excepting employees of the Department of Administration duly authorized to do so.

Sec. 37. No person other than an employee of the Department shall open or close any valves in the public main or molest or interfere with any valve or valve-box cover.

Sec. 38. Where a service line has been previously installed from the city main to the curb, and water is desired therefrom, an application for an extension permit must be signed by the owner and a licensed master plumber of the City of Jersey City, authorized by the owner of premises.

MATERIALS FOR SERVICE PIPE INSTALLATIONS

Sec. 39. All new service pipes two inches in diameter or less shall be of lead, galvanized lead lined, extra heavy seamless drawn brass or soft tempered Class K copper water tube to conform to the ASTM standard specifications for copper water tube.

Sec. 40. Service pipes larger than two inches in diameter shall be cast iron pipe (Class B Corporation).

Sec. 41. The material and diameter of service pipes must be the same (excepting size of gooseneck) from the tap to the building, or to a point where the service is fully metered.

Sec. 42. Dimensions and weights of cast iron pipe, lead and Class K copper water tube to be used under these rules are as follows:

Cast Iron Pipe (Class B Corporation)

Size (inches)	Wall Thickness (inches)	Weight Per Foot	Weight Per 12-foot Length
3	.42	16.2	194
4	.45	21.7	260
6	.48	33.3	400
8	.51	47.5	570
10	.57	63.8	765
12	.62	82.1	985

Cut iron pipe shall be lined inside with cement and a sealing coat and on the outside coated with coal tar pitch in accordance with the specifications of the Department of Administration.

AA Lead Pipe

For use where city pressure does not exceed 50 pounds per square inch.

Inside Caliber (inches)	Thickness	Pounds Per Linear Foot
3/4	.231	3 1/2
1	.246	4 3/4
1 1/4	.258	6
1 1/2	.288	8
2	.376	13 3/4

AAA Lead Pipe

For use where city pressure exceeds 50 pounds per square inch.

Inside Caliber (inches)	Thickness	Pounds Per Linear Foot
3/4	.293	4 3/4
1	.298	6
1 1/4	.320	7 3/4

Inside Caliber (inches)	Thickness	Pounds Per Linear Foot
1½	.386	11¼
2	.504	19½

All lead pipe shall conform to Federal Specifications W.W.P.—325.

K – CLASS COPPER TUBING

Inside Caliber (inches)	Thickness	Pounds Per Linear Foot
¾	.065	.641
1	.065	.839
1¼	.065	1.04
1½	.072	1.36
2	.083	2.06

Sec. 43. Only lead pipe, lead lined pipe, extra heavy brass pipe, Class K copper tubing or corporation cast iron pipe shall be permitted outside the building and up to the meter. If galvanized iron pipe is used inside the building it shall be one size larger in diameter than the street service pipe. Galvanized lead lined pipe, lead pipe, extra heavy brass pipe or Class K copper tubing of the same interior diameter as the service pipe may be used inside the building.

Sec. 44. Service pipes up to two inches in diameter may be of brass with extra heavy brass fittings. The brass pipe shall be best quality, extra heavy, seamless drawn, semi-annealed and shall be free from surface defects inside and outside, clean and of uniform color and quality and true to gauge and shall conform to the ASTM Standard Specifications for Brass Pipe Standard sizes.

Sec. 45. All copper tubing shall conform to the ASTM Standard Specifications for Copper Water Tube (Serial Designation B88-33). All sizes two inches and smaller from the city main to the meter shall be Class K.

Sec. 46. All cast-iron water pipe shall conform to the American Waterworks Association, Class B cast iron pipe of the bell-and-spigot type and shall be cement lined and seal coated internally and coated externally with asphaltum or coal tar pitch and shall conform to the Department of Administration specification for cast-iron water pipe and special castings.

Sec. 47. When a premises is to be supplied through a service of two inches or less in diameter from a main in which the pressure is over 50 pounds, the service pipe shall be 3A lead, extra heavy brass seamless pipe or Class K copper tubing to withstand the high pressure.

Sec. 48. All connections between lead and iron pipes shall be made with brass soldering nipples and wiped joints. All connections between lead pipe and lead and brass shall be made by means of wiped, soldered joints not less than two inches in length, prepared, tinned and fused. All joints shall be uniform and of the size known to the plumbing trade as "heavy." The solder used shall be of the grade known as "extra fine" and the outside diameter of the wiped

joint at the center shall be at least 3/4 inch in excess of the outside diameter of the lead or brass pipe. Soldering nipples shall be of extra heavy cast brass or thoroughly annealed seamless drawn extra heavy brass pipe tubing of standard iron pipe gauge. Fittings for Class K copper water tube service pipe shall be of the extra heavy brass compression type.

Sec. 49. The caulked joints for cast iron service pipes shall be made as follows: the inner portion of the annular space between the spigot and the hub shall be first packed with clean, sound jute packing yarn, free from tar, or preformed rubber gaskets that will meet the specifications of the Department of Administration. The remaining space in the hub shall then be run full of lead at one pouring and joints shall be well caulked with proper tools and made watertight. In pouring joints sufficient metal shall be provided so that when the joint is caulked the lead shall be flush with the face of the hub. The lead used shall be of the best quality pure soft lead practically free from all impurities. No cold lead shall be used for caulking or filling in. The depth of lead joints up to eight-inch pipe shall be not less than 2½ inches, and for larger pipe it shall be not less than three inches.

Sec. 50. All valves in service pipes shall be of the gate-type nonrising stem and may be constructed with iron body or all brass. Inverted key-type round tee handles stopcocks may be used up to one inch. Services of a larger diameter than one inch shall be controlled by the gate type nonrising stem. All valves shall be so located as to be accessible at all times. All valves and stopcocks shall be of the 300 pounds test class as specified in the manufacturer's catalog and shall have a clear waterway equal in area to that of the service pipe which it controls.

Sec. 51. Every device for heating water or for storing heated water in tanks or boilers shall be so designed and constructed and shall be installed in such manner in any building or structure that any condition which would cause or contribute to the cause of any excess pressure, strain, stress or explosions therein, or leakage in any pipe or system of piping connected thereto, shall be eliminated. No water in any plumbing system shall be heated to a higher temperature than 200° F. in any water heating device or shall be stored in any tank, boiler or reservoir or shall be discharged into or conveyed in any heated water supply pipe or system of heated water supply piping to any plumbing fixture. See Section 134 of Plumbing Code.

Sec. 52. A stopcock located at the curb fitted with a one-half-inch galvanized iron rod and protected by an extension, tar-coated cast iron box with cover at the level of the sidewalk, may, at the discretion of the consumer, be placed upon the service pipes of two inches or less in diameter. It is not, however, a requirement of the Department of Administration.

Sec. 53. On all service lines up to two inches diameter valves shall be installed inside of the building as close to the front wall as may be possible in order to provide for the shutting off of water, in case of accident or mishap to the inside service or supply pipe.

Sec. 54. All lead pipes and K copper tubing shall have an excess of three feet of pipe formed into a gooseneck at the connection to the tap and laid to the right hand, facing the tap. The nonrigid swing section shall be installed in such a manner as will completely absorb all strain to service pipe and main which may be caused by any shock, strain or vibration to which said service pipe or main may be subjected. Brass services installed up to two inches in diameter shall have a swing joint composed of the necessary pipe fittings to absorb all strain or shock to both the service and the city main.

Sec. 55. The minimum diameter of a service pipe shall be ¾ inch and the service pipe shall be not less than the diameter of the tap controlling it.

The maximum sizes of services allowed are as follows:

Diameter of Tap (inches)	Diameter of Service Pipe (inches)
¾	½
1	2
½	2
2	2
4, wet connection	4
6, wet connection	6
8, wet connection	8

Sec. 56. For the installation of wet connections larger than those listed here, complete plans of the piping system that will receive its water supply from the Jersey City Water Supply System shall be submitted to the Department of Administration for approval in conformity to Section 18, Plumbing Code.

Sec. 57. Where the service pipe is larger than the controlling tap the minimum size of the gooseneck between the service pipe and the tap shall be as follows:

Size of Tap (inches)	Size of Service (inches)	Minimum Size of Gooseneck (inches)
¾	1	¾
¾	1¼	1
¾	1½	1¼
1	1¼	
1	1½	1¼
1	2	1½
1½	2	1½
2	2	2

Sec. 58. In any building, structure or premises where the consumption of water requires a larger service than can be supplied by the existing tap or connection, a new tap or connection shall be made with the city water main to correspond to the size of the service desired. The joining of two or more smaller service pipes for the purpose of connection to one larger service is prohibited. The size of such service pipe shall be determined by the head of the Office of Utility Management and it shall be supplied from the mains of the Jersey City Water Supply

System through a single tap and a single service pipe of a size listed in Section 55, and shall extend from the water main to the inlet valve of the meter before any connections for appurtenances are permitted. The old or original tap is to be shut off at the main after the new connection has been installed.

Sec. 59. In buildings occupied for domestic purposes the minimum size service shall be regulated by the number of families supplied as follows:

Number of Families	Minimum Size Service (inches)
1 to 2	¾
3 to 5	1
6 to 10	1¼
11 to 20	1½
21 to 30	2

Sec. 60. Buildings housing families in excess of those listed above shall be supplied with services in proportion. Plans will have to be submitted to the Department of Administration, in accordance with Section 18 of this code for dwellings housing the number of families in excess of Section 59.

Sec. 61. No building, structure or premises shall be permanently abandoned, wrecked or destroyed without first giving notification, in writing, to the head of the Office of Utility Management of such abandonment, wrecking or destroying in order that the water service may be shut off and leaking or wasting water shall be eliminated or prevented. Such notification shall be given by the person in charge of the wrecking or destroying of the building or by owner of the building, structure or premises.

SURGE, SUCTION, GRAVITY AND COMPRESSION TANKS

Sec. 62. Whenever in any building, structure or premise a water system is maintained which is supplied with other than city water, or is equipped for service other than from the city mains or which is supplied with city water which has been previously used for any purpose, or city water which is stored in a gravity tank or tanks, each service from the city water system shall enter through a receiving reservoir or so-called surge tank for the purpose of preventing water from the secondary system flowing back into the city mains; provided, however, that a receiving reservoir shall not be required where only city water is available and stored without previous use in an approved covered gravity tank, and further provided this tank is so located as to be adequately protected against external pollution and is kept locked, except when opened for inspection or repairs.

Sec. 63. Each surge tank shall be provided with a sludge drainpipe which shall be connected thereto at the lowest level of the bottom section thereof and shall not extend above such level. Such drain shall be provided with a control valve with a clear waterway equal in

area to that of the sludge drainpipe and shall discharge through an indirect connection into the drainage system of the building.

Sec. 64. When a pump is used a surge or suction tank shall be installed if required to prevent undue lowering of the street main pressure and as directed by the Chief Engineer of the Department. To minimize water hammer a service pipe directly supplying the surge or suction tank or other similar appliance which is controlled by a quick-closing device shall be connected to an air chamber of approved type placed where and as directed by the Chief Engineer of the Department.

Sec. 65. All buildings that exceed four stories or 55 feet in height in various areas throughout the city, and where pressure from the city main is insufficient to furnish an adequate supply above 55 feet, shall be equipped with either an automatic compression pressure-increasing device or a high level gravity storage tank may be installed. Each such compression device or high level gravity tank shall be provided with all the regulating and control appurtenances and devices which are necessary to ensure complete automatic operation.

Sec. 66. Wherever any pipe which is a part of the water supply system of any building or structure receives its service from a gravity storage tank, it shall be connected thereto in such a manner as will prevent any water stored within four inches of the bottom of such tank from entering such water supply pipe. Every gravity storage tank shall be provided with an overflow pipe of a cross area of not less than twice that of the pipe which supplies water to such tank. Said overflow pipe shall discharge through an open connection into the drainage system. Every gravity storage tank shall be supplied with water through an approved slow-acting automatic control valve or control cock, the discharge outlet of which shall be installed at a distance not less than six inches above the top of the overflow pipe connection to such gravity storage tank.

Sec. 67. Each gravity storage tank shall be provided with a sludge drainpipe which shall be connected thereto at the lowest level of the bottom section thereof, and shall not extend above such level. Such drainpipe shall be provided with a control valve with a clear waterway equal in area to that of the sludge drainpipe and shall discharge through an indirect connection into the drainage system of the building.

Sec. 68. Every house storage tank shall be so located and shall be housed in a manner which shall prevent contamination of the water therein. Such tank shall be protected with a cover sufficiently tight to exclude dust. Approval of the proposed support for a new tank shall be obtained from the Department of Housing, Economic Development and Commerce before the permit for its installation shall be issued.

Sec. 69. Each compression tank shall be so constructed and connected that the air content thereof shall be not less than 25% of its total capacity. Each compression tank shall be provided with a sludge drainpipe which shall be connected to such tank at the lowest level of the bottom section thereof and shall discharge through an open connection into the drainage system of the building. Each sludge drainpipe shall be provided with a control valve with a clear waterway equal in area to that of the sludge drainpipe. No water shall enter into any water supply pipe at a lower level than four inches above the bottom of such compression tank.

Sec. 70. Any water pipe connection to any pump or other appliance through which any vibration, shock, strain, stress or pulsation which may originate or develop a water hammer or any excess noises or sounds in the water supply system of any building or structure and which

may be communicated through such connection or service pipe of the Jersey City Water Supply System is prohibited.

CHECK VALVES

Sec. 71. Check valves which are noiseless in their operation and air chambers of sufficient air cushion capacity shall be installed in the suction pipe and the discharge pipe of each house pump or fire pump or other water pressure increasing device; provided, however, that where such check valves are of the slow-acting type, and the operation thereof entirely eliminates the shocks, strains, stresses and excess noises caused by the operation of such pump or device, the installation of air chambers may be dispensed with. No check valve shall be installed as herein provided unless the design and construction thereof shall first have been approved by the head of the Office of Utility Management.

Sec. 72. A fire line service shall be check-valved at the outlet side of the meter to prevent a backflow of water through the meter. A check valve shall be provided at the outlet side of a domestic meter where an automatic compression device or high level gravity storage tank is installed. Where a service supplying a hot water or steam boiler is check-valved, an approved relief valve which will open when the temperature in the system reaches a predetermined maximum temperature shall be installed at the outlet side of the check valve.

Sec. 73. All outlet connections from any of the potable water supply lines, on steamship piers, wharves, docks or bulkheads adjacent to or projecting into any of the streams or navigable waters bordering Jersey City that may be used or are available for use as a ship or boat supply, including fire line connections, that are receiving their water supply from the Jersey City Water Supply System, shall be equipped with approved check valves to prevent the possible backflow of water from a secondary source of supply, contaminating the city water supply.

Sec. 74. Where more than one service pipe supplies a building and the services are supplied from different mains, the services shall be check-valved at the outlet side of the house valve with an approved check valve.

FIRE AND SPRINKLER SYSTEMS

Sec. 75. The largest size connection for fire and sprinkler systems allowed shall be of eight-inch diameter, and the street main for such connection shall be of ten-inch diameter or larger. Larger connections may be made by agreement with the Bureau. For a six-inch main no connections larger than four-inch shall be allowed.

Sec. 76. All street main connections for fire and sprinkler systems or for any other purposes shall be provided with valves inside the building line, in order that the same may be shut off in case of a leak or bursting of pipe or other cause. Said valves shall be set in conspicuous places, easily accessible, and left entirely open for fire purposes. If required by the fire insurance representatives, the same may be sealed.

Sec. 77. All fire protective equipment that is supplied with water from the Jersey City Water Supply System shall be drained and flushed at least every six months and kept free from

accumulations of sand, silt and stagnant water which would nullify the action of the chlorine content of city water.

Sec. 78. No city water pipelines in any building, premises, material or storage yard on railroad property which receives service from the Jersey City Water Supply System shall have for fire-extinguishing purposes a Siamese or other connection that is or has been installed near any river or waterway where a city fire boat or city fire engine or pump may pump river water into the city water pipes through a cross-connection of any kind. A check-valve or any other kind or type of valve on any cross-connection is prohibited. No stationary pump or privately owned fire equipment shall be maintained for emergency use as described above in any premises adjacent to the rivers, nor shall they use cisterns or wells adjacent to the rivers for cross-connections to city water supplied pipes for emergency fire-extinguishing purposes.

METERS

Sec. 79. Where this code or the rules or regulations of the Department providing for the installation of a water service for the purpose of supplying water from the Jersey City Water Supply System to any building, structure or premises, such service pipe shall be metered and the meter shall be considered a part of such service pipe. The location of such meter, either inside or outside of any building or structure, shall be determined by the Chief Engineer of the Department. The installation of any water meter at any location other than that determined by said Chief Engineer of the Department is prohibited.

Sec. 80. All meters (whether placed on new or old services) from 5/8 inch in diameter to and including two inches in diameter shall be set by employees of the Department.

Sec. 81. Meters furnished by applicant shall be of a style approved by the Department and subject to test by the same Department.

Sec. 82. The applicant shall forward the meter to the meter laboratory for testing purposes without any unnecessary delay after paying a fee to and receiving a permit from the Department.

Sec. 83. Meters shall be set with meter couplings and gate valves on each side, and waste close to the outlet shall be placed in a conspicuous place, easy of access and located so as to control the entire supply. For fire service meters, the installation shall be approved by the Chief Engineer of the Department before the same is made.

Sec. 84. All meters four inches and over in diameter shall, when set up, have bypass connection with testing corporation valve two inches in diameter and be set in accordance with installation bypass plan on file in the office of the Chief Engineer of the Department.

Sec. 85. All meters shall be put in under the supervision of the Department and at the expense of the owner of the property.

Sec. 86. Care shall be exercised to keep the inside of the meters free and clear of white and red lead, dirt, gravel and all other foreign matter.

Sec. 87. The removal of all meters shall be done only by employees of the Department or by licensed master plumbers and shall be delivered to the meter laboratory of the Department within 24 hours from the time of the removal of the same.

Sec. 88. Notice to the Department of any stoppage or other irregularity of the meter shall be given immediately by the owner or his or her agent when a closing nipple shall be temporarily substituted by the Bureau or a master plumber until such defect may be remedied.

Sec. 89. The owner of any premises where a meter is installed shall be held responsible for its care and protection from freezing and from injury of interference by any person or persons.

Sec. 90. Payment for meters shall be made in advance, and only those makes or meters approved by the Department shall be allowed.

Sec. 91. Meters shall be tested on application to the Department. A testing charge as provided in Chapter 160, Fees and Charges, shall be made for meters up to and including one inch in capacity. For taking out, testing and replacing meters of larger capacity than one inch, estimate shall be given upon request but the actual cost shall be charged and in case of nonpayment shall become a lien upon the property.

Sec. 92. When a meter is found to be not registering, repairs shall be made by the Department and the meter put in accurate condition. The actual cost of the repair shall be charged to the consumer on the subsequent billing period. To estimate the consumption of water during the time of nonregistration a daily average shall be obtained from the readings taken at least one month after repairs have been made, and this figure shall be used as a basis on which to charge for water used during the period in which meter failed to show any registration.

Sec. 93. Meters shall be considered correct if found upon test to be registering within 2%, plus or minus, that is 98% to 102%. When an error of more than 2%, plus or minus, is found to exist the customer shall be charged or abated for the same dating back to time of last test made by the Department. Where percent of inaccuracy is found to be either plus or minus, the same shall be figured from 100%.

Sec. 94. Water service shall be discontinued or turned off from any premises upon the written order of the owner.

REGULATIONS AND TESTS

Sec. 95. The city is divided into districts coextensive with the boundary lines of the 12 wards of Jersey City. These districts are subdivided into blocks and lots, each of said lots having a twenty-five-foot frontage and each twenty-five-foot frontage being assigned a serial number; all premises to be metered in the order of serial number in the districts.

Sec. 96. When trenches are opened and service pipes laid, the plumber shall give notice to the Permit Clerk fixing the time when the trench shall be ready for tapper and inspector. Such notice shall be given at least 24 hours in advance of the time fixed, and pipes therein shall be inspected before trench is filled.

Sec. 97. Each new service or repair to a service shall be subjected by the plumber to a water test under the main pressure for a period of 10 minutes. All pipes and appurtenances shall remain uncovered for the duration of the test and shall show no sign of leakage and may be subject to the inspection of the Department inspector.

Sec. 98. The Department shall refuse to supply water to premises wherein the plumbing work has not been done in accordance with the provisions of the Plumbing Code.

Sec. 99. When buildings are being torn down or demolished, an inspection shall be made by a representative of the Department of all water pipes and connections and supply shall be shut off at the main at the expense of the owner.

Sec. 100. Officers of the Department, and their authorized agents, may enter the premises of any water consumer at any reasonable time and examine the pipes and fixtures, the quantities of water used and the manner of its use. All such officers and authorized agents shall be provided by the Department with a badge and certificate as evidence of their authority.

Sec. 101. Readings for water bills shall be taken from recorded and recognized account meters only; special readings at the request of the owners or agents from meters shall be made upon the payment of a fee as provided in Chapter 160, Fees and Charges, for each such reading and report thereof.

Sec. 102. No rebate shall be allowed for metered vacant premises. Owners shall be held responsible for all charges accruing for water service, until written notice has been given to the Department to discontinue the supply.

Sec. 102.1. No certificate of occupancy shall be issued upon any building or structure which requires an approved metering system to be installed thereon unless the approved water metering system or systems required are installed and are in proper working order. No inspector of any department, division or administrative unit of this city shall recommend that a certificate of occupancy may issue unless the required approved metering system or systems are installed as provided in this code.

Sec. 102.2. It shall be the duty of the owner of any property required to be metered for water and in which there is no such approved metering system to report such fact to the Administration Department of the city. It shall be the duty of any inspector, official or employee of the city, upon ascertaining that there is no approved metering system on property required to be metered for water, to report to the Department of Administration such fact promptly upon ascertaining the same.

Sec. 102.3. Access to metering system.

A. It shall be the duty of every owner of property to provide unhampered and unimpeded access to the approved metering system. Refusal, without good cause, to provide such unhampered, unimpeded access to authorized Administration Department inspectors, meter readers, installers or plumbers shall be a violation of this code.

B. Failure to reply to or comply with requests from the Administration Department for such access, when such requests are made through certified or first class mail and properly addressed to the legal owner of the property, shall be construed as denial of such access and shall be punishable as a violation of this code.

Sec. 102.4. Approved metering systems. **[Added 10-2-1979 by Ord. No. S-292; amended 5-10-1984 by Ord. No. MC-599]**

A. Owners of properties required to be metered for water shall obtain the approved metering systems from the city's Water Meter Shop only. Payment for such systems, when payments

are required by the Administration Department, must be made to the city official or employee designated to accept such payment. Owners may contract with private, licensed plumbers to install such systems but only if the systems are obtained from the city's Water Meter Shop as required herein. All permits required by the city pertaining to the installation of the approved metering systems must be applied for and secured by the owner or his or her agent before any such systems are released from the Water Meter Shop.

B. Approved metering systems, obtained from the city by owners or their agents, must be installed within five business days from the date of the release of the metering systems by the city to the owner or agent. Waiver of the five-business-day deadline may be granted by the Business Administrator.

C. Failure of the owner or his or her agent to install approved metering systems within the five business days prescribed shall be a violation of this code. Each business day beyond the five-business-day deadline shall be a separate violation until the system or systems are installed.

Sec. 102.5. It shall be no defense on the part of the owner for payment of water consumed that there is no approved metering system installed on the premises of the owner. It shall be the duty of the owner that an approved metering system be installed on said premises before any water is consumed.

Sec. 102.6. Unlawful acts.

A. It shall be a violation of this code and otherwise unlawful for any owner to cause or allow water to be consumed without any approved metering system to register the amount of water consumed.

B. In addition to any fines imposed under this code, the head of the Office of Utility Management may rebill an owner in whose building unmetered water has been consumed. Such rebilling shall be for the unmetered water consumed in the building.

C. Bypass lines on approved metering systems of less than three inches capacity are strictly forbidden. Such bypass lines, and any valves controlling the flow of water through such bypass lines, must be removed forthwith. The resultant openings in "tee" fittings must be capped or plugged immediately after removal of the lines and valves.

Sec. 102.7. Anyone violating any provisions contained in Sections 79 through 102.7 of this code pertaining to water supply and plumbing connections therewith shall be liable to a fine as provided in Chapter 1, General Provisions, § 1-25. Each day of such violation shall be deemed and considered to be a separate and distinct offense and shall be punishable as such.

PRIVATE MAINS

Sec. 103. Private mains supplying premises on a city street in which no city water main exists shall be not less than one inch in diameter and may be of AAA lead, galvanized lead lined pipe, extra heavy seamless drawn brass or soft tempered Class K copper water tube, for that portion of the main that takes the place of the city main. The type of pipe used shall be in accordance with specifications set forth in Section 42. The connection of the private main to the city main shall be equipped at the connection to the tap with a gooseneck or offset swing joint as specified in Section 54. Private mains shall be controlled by a gate valve, placed in the

private main on the projected building line of the street in which the city main exists, and a cast-iron extension street valve box shall be placed over the valve.

Sec. 104. Private mains and all connections thereto and branches therefrom shall be installed only under permit from and inspection by the Department.

Sec. 105. Owners of the premises supplied from private mains shall maintain such mains in good order and be responsible for the plugging of the controlling tap when replaced by a city main.

Sec. 106. No permits will be issued to alter or repair a private water main supplying buildings facing on a street in which a city main is in service. Notices shall be sent to the owners of such property to disconnect from the private main, separately connect to the city main and plug the tap controlling the private main.

AIR CONDITIONING, REFRIGERATION AND CROSS-CONNECTIONS

Sec. 107. The installation of new service pipes or the use of the present service pipes for water cooled air-conditioning units, refrigeration machinery and compressor installations may be permitted upon the approval of the Department of Administration, of plans submitted by a licensed master plumber showing the proposed location and size of the service pipe, the capacity of each unit to be installed, the number of units to be installed, the manufacturer's rating for water consumption per unit and the size of the waste pipe to sanitary sewer, provided that the installation will comply with Section 108 of this code.

Sec. 108. Air-conditioning and refrigeration equipment.

A. All water cooled air-conditioning equipment, refrigeration machinery and compressor installations discharging water into the city sewerage system shall be subject to the city's inspection and approval. Such installations shall be free of any possibility of cross-connections or back siphonage in case of low pressure in the city water main, and the connection of the installation with water and waste pipes shall be done by a licensed plumber of the City of Jersey City. A written permit will be required from the Office of Permit Clerk for each installation for which a charge, as provided in Chapter 160, Fees and Charges, will be made, which charge will include the expense of regular inspection. Extra charges will be made for additional inspections required on account of condemnation of work or for premature request for inspection.

B. Applications for permits for units heretofore or hereafter installed shall be signed by both the licensed master plumber and the owner of the premises where the installation will take place. The application will further specify the type of dwelling, store, commercial establishment or industrial plant to be served, and the maximum rating as to capacity of the unit in tons of refrigeration and the horsepower required under maximum summer operating conditions, the number of units to be installed, the manufacturer's rating for water consumption per unit, the type of water conservation equipment to be installed and such additional information regarding the proposed installation as may be required by the Department. In no case shall the rated capacity of the refrigeration unit in tons be considered less than the nameplate horsepower of the driving equipment for the purpose of this code. In the absence of the required manufacturer's maximum rating as to capacity of

the unit in tons of refrigeration for the purpose of this code, the Department may specify the tonnage of the refrigeration unit by using the nameplate horsepower of the driving unit. In case water conservation devices are required to comply with Subsection C, the name of the manufacturer and the guarantee on the water conservation device are to be given for maximum anticipated summer operating conditions, together with the manufacturer's identifying data on the equipment. Approval must be obtained before installation of the equipment is started.

C. No permit shall be issued for the installation and/or use of any air-conditioning units unless:

(1) Any such installation consisting of one unit or a group of units, with a total capacity exceeding five tons or requiring more than five horsepower to drive the compressor, shall be equipped with an approved type of economizer, evaporate condenser, water cooling tower or other similar apparatus. These water conservation devices shall be such that under maximum summer temperature they will not require water from the city water supply system at a rate greater than 0.12 gallons per minute per ton of refrigeration. Units of five-ton capacity and under which do not have water conservation devices shall be provided with an automatic water regulating device so as to limit the use of water under maximum summer conditions to not more than two gallons per minute per ton of refrigeration.

(2) Makeup water connections to a water conservation device are to be so arranged that the supply has a physical break between the city water main and said device so it will be impossible for water to siphon back in case of low pressure in the city water main.

D. Water from any such installation shall not be discharged into the city's sewerage system at a rate in excess of the foregoing, and discharged wastewater shall be in strict accordance with Plumbing Code of Jersey City and any other department having jurisdiction.

E. The Chief Engineer of the Department shall be satisfied that the system can be operated without adversely affecting the flow to other uses of water in the area or becoming detrimental to public safety. The city reserves the right to restrict or prohibit the use of water that is not considered essential to the health and welfare of the people during any water emergency period that may be caused by depleted storage reservoirs due to drought periods or other adverse conditions of nature, breaks in transmission mains or any part of the water system causing a water shortage or threatened water shortage. The city reserves the right to restrict or prohibit extraordinary use of water if water supply conditions so require. The city is not required to maintain any minimum pressure other than that required to deliver water into the basement of any premises.

F. All water cooled air-conditioning equipment, refrigeration machinery and compressor installations using water from the city main or discharging water into the city sewerage system, installed or in operation prior to the adoption of this code, shall be required to make such water cooled air-conditioning equipment, refrigeration machinery or air compressor installations conform to the terms of this code, and the owner or operator of said equipment shall have one year from the adoption of this code to comply with the provisions hereto provided for.

G. In the event that an owner or occupant fails to make the water cooled air-conditioning equipment, refrigeration machinery or compressor installations conform with the terms of this code and specifically in violation of Section 6 hereof, then the city shall have the right to discontinue the water service to the property in accordance with Section 129 of this code.

H. Licensed plumbers guilty of violating any of the sections of this code shall be prohibited from securing further permits from this Bureau and where willful violations warrant, the head of the Office of Utility Management may prefer charges to the Board of Health for the revocation of a master plumber's license.

Sec. 109. No person or corporation shall install, own or operate a physical connection of any type between an approved public potable water supply and a secondary or unapproved water supply. A "physical connection" means any cross-connection, bypass, valve, pipeline, auxiliary intake or any device which permits or may permit any flow of water into an approved public potable water supply from an unapproved water supply.

SECONDARY WATER

Sec. 110. Secondary water is any water from a private water system of pipes or piping which receives its water supply from the rivers or bays or streams bounding the shoreline of Jersey City, or from any well or cistern or any groundwater or rainwater reservoirs. Secondary water is also water from the mains of the Jersey City Water Supply System which has been used for any purpose within any building, structure or premises or which has been discharged from any type of condenser coils, or cooling systems, drinking fountains, hydraulic lifts, boilers, Linotype machines, dye casting machines, metal rolling, pressing, crushing machines or apparatus or water which has been stored in such a manner as to expose it to possible contamination.

Sec. 111. No secondary water shall overflow into or be discharged into any surge tank, storage tank or reservoir or shall in any way be piped or conveyed into the water supply system of any building, structure or premises to become a part of or be mixed with the fresh water supply from the mains of the Jersey City Water Supply System either inside of the premises or in the water service pipe. Secondary water shall not be piped to or used for cooling crushers, rollers or mixers where foods, candies, liquids or materials are manufactured for human or animal consumption. No connection, tap or opening shall be made in a water distribution system other than an approved water distribution system which will permit such water being used for drinking. Wherever the fire protective equipment in any building, structure or premises has service from the Jersey City Water Supply System, no pipe or other conduit which conveys secondary water shall be cross-connected to the fire protective equipment. All fire protective equipment connected to the Jersey City Water Supply System shall be constructed in such manner that all tanks, pipes, pumps, surge tanks and fire hydrants can be thoroughly drained, flushed and cleaned by the owners of such equipment and premises, and there shall be no direct connections from the tanks, pipes and other equipment to any drainage pipes or sewers.

Sec. 112. Every pump or hydrant for providing drinking water supply shall be protected from surface water and contamination.

Sec. 113. No pipe or system of piping which receives its supply from the Jersey City Water Supply System shall be directly connected to any processing tank, vat, mixer, heater, cooker, washer, pump appliance or equipment used for storing, holding or conveying fluids or materials or for manufacturing or food processing or washing purposes. Such appliances and equipment shall be supplied from the Jersey City Water Supply System through an open funnel connection or an open tank which shall be located not less than six inches above the overflow rim of such container, appliance or equipment. No pipe or system of piping in any building, structure or premises, which receives its supply from the Jersey City Water Supply System, shall be directly connected to any device, appliance or apparatus in which such water supply is used to provide power through a water jet or other device to create vacuum or partial vacuum with which to operate any aspirator, siphon, cellar drainer, ejector, cleaner, sweeper, conveyer or washer of any kind or description.

Sec. 114. No plumbing fixture shall be installed unless the water supply enters said fixture at least two inches above any overflow connections. All submerged water supply inlet connections are hereby prohibited, and no tanks, vats, utensils or other water supply devices used for other than drinking purposes and having submerged water supply inlets shall be directly connected to city water supply; except any water heating device or heated water storage tank or low pressure boiler.

MISCELLANEOUS

Sec. 115. Use of fire hydrants.

A. It shall be unlawful for any person other than an employee of the Departments of Administration and Public Works and employees of the Jersey City Fire and Police Departments or other duly authorized personnel or representatives to open or otherwise operate, use or take water from any fire hydrant owned by the City of Jersey City without first obtaining a permit from the Permit Clerk. The charges for the use of fire hydrants shall be fixed from time to time by the Department of Administration. In operating a hydrant, a wrench of a design approved by the Department of Administration shall be used. The use of any other type of wrench or operating device will not be permitted. The use of the large nozzle is restricted to the Fire Department only. No specially designated hydrant shall be opened or used except by the Department of Administration or Fire Department. Regular nozzle caps shall be replaced after use of hydrant. The use of a defective hydrant is prohibited. Access to hydrants shall not be obstructed. Connections with hydrants shall be of a type that can easily and quickly be detached. Hydrants shall be protected by the user from freezing or other damage, and if damage to a hydrant results from the use thereof, repairs shall be made at the expense of the user. To prevent freezing, hydrants used at any time during the period from November 1 to April 1 shall in every instance be pumped out immediately after use. No hydrant shall be used when the temperature is less than 32° F. except in emergency and under special permission from the Department of Administration.

B. When the use of a hydrant is authorized for construction or other purposes, the permittee shall assume the obligation for the payment of wages of the inspector designated by the Department of Administration to supervise its use during the period covered by the permits. The permittee shall also be obliged to provide Workman's Compensation Insurance in a form satisfactory to the Department of Administration.

C. Any person violating Section 115 shall be punished by a fine not exceeding $1,000 or imprisonment not exceeding 90 days, or both, pursuant to Jersey City Code § 1-25. The City of Jersey City shall further have the right to take other appropriate actions pursuant to Jersey City Code § 1-25.

D. In addition to the above penalties, the City of Jersey City may take other appropriate action to secure reimbursement for any damage to fire hydrants, water mains, other property or equipment, loss of water and/or cost of sewerage caused directly or indirectly by a violation.

Sec. 116. When tests made by the Department indicate a leak on a service pipe, a written notice to repair will be served upon the owner or occupant specifying a reasonable time in which to engage a licensed master plumber to make the necessary repairs. If the notice is not complied with, the Department will shut off the tap controlling the service pipe at the expense of the owner.

A. When it is necessary for the department to shut off a tap because of a leaking service, nonpayment of a bill or noncompliance with the Department regulations, the owner will be charged with all costs incidental thereto.

B. When the tap of a leaking service pipe is shut by Department force, the owner will be afforded reasonable time in which to engage a licensed plumber to take over the street excavation and make the necessary repairs. If the owner fails to engage a licensed plumber, the tap will be left closed, the house control valve will be shut and the excavation backfilled immediately; after which a ten-day notice to repair the service will be served on the owner or occupant.

Sec. 116.1. The City Council may from time to time enter into agreements for the repair of water service lines and sewer lines with qualifying residential owners whenever the health officer certifies that immediate repairs are necessary to protect the health or safety of occupants or tenants and the owner provides satisfactory evidence of his or her inability to finance the entire cost of repair or replacement of the water service line or sewer line. Applications for such agreements shall be made to the Business Administrator and shall include such information as the Business Administrator considers relevant, including evidence of the owner's inability to obtain funds for the cost of repairs. The Business Administrator shall forward the application to the council with a recommendation together with a proposed resolution and payment schedule prepared in accordance with N.J.S.A. 54:5-19. The Administration Department shall not commence repair or replacement of any water service line or sewer line until the council has approved and the owner has signed an agreement for the payment of the assessed costs of repair or replacement.

Sec. 117. No person shall attach, alter or extend any water pipe or make any alteration in any tapcock or other fixture, nor do any work calculated to increase the facilities for using the water, nor turn on or off the stopcock on the main or at the curb, unless registered as a licensed master plumber by the city and who has made application to and received a permit from the Permit Clerk.

Sec. 118. In repairing old service pipes the sections of this code governing installation of new service pipes must be complied with. If repairs require the replacement of ½ or more of the line an entire new service must be installed.

Sec. 119. When a repair is found to be necessary on a service and such repair requires the rewiping of the joint immediately adjacent to the tap or replacement of the connection in galvanized iron, brass or K Copper Tubing at the tap, the service between the tap and the service pipe shall be equipped with a gooseneck or swing joint offset.

Sec. 120. All water service pipes or supply pipes that are installed in the ground in any public street or thoroughfare or in buildings, structures or privately owned premises, where the service pipe or supply pipe has been damaged by electrolysis, galvanic action or other local conditions shall be repaired and protected to the satisfaction of the Department by a licensed master plumber engaged by the owner.

Sec. 121. No company or individual shall undertake the thawing of water service pipes or mains by the use of electric current unless an inspector of the Department supervises the work. The services of the inspector shall be paid for by the company or individual to whose work he is assigned.

Sec. 122. The grounding of electric circuits or systems to any water service pipe or water supply pipe shall conform to the provisions of the electrical section of the code. The Chief Engineer shall reserve the right to order the removal of the grounding of an electrical circuit to a water supply pipe when it has been demonstrated that such grounding is having a deleterious effect on the potable water supply. Such order shall be served on the owner of the premises involved or on his or her legal representative or other responsible person, either through the City Electrical Inspector or by the Chief Engineer or his or her authorized representative.

Sec. 123. Any service substituted by another shall be shut off at the corporation stop on the city main by the licensed master plumber engaged by the owner of the premises when the installation of the new service has been completed and while the excavation is still open.

Sec. 124. Hydrants, hose bibs and other fixtures shall be placed where the same shall not be readily accessible to persons occupying the adjoining premises.

Sec. 125. Where water has been turned off or disconnected for any reason, it shall be so recorded and the charge ceases from that date; but where water which is recorded as turned off or disconnected is at any time found to be connected and turned on without the authority of the Bureau, the Bureau shall charge for use of the water from the recorded date of turning off.

Sec. 126. Service shall be renewed under a proper application when the conditions under which such service was discontinued are corrected and upon the payment of all proper charges provided for in the schedule of rates or tariff of the Department which may be due.

Sec. 127. Where water service has been discontinued or shut off by a licensed master plumber for immediate repairs, no person shall connect or turn it on unless properly authorized by the Department.

Sec. 128. All paraphernalia, including credentials, books, documents, papers and miscellaneous property derived from or received from the Department, at all times are and shall remain the property of the Department of Administration of the City of Jersey City.

Sec. 129. Service of water may be discontinued for any of the following reasons:

A. For the use of water for any other property or purpose than that described in the application.

B. For willful waste of water through improper or imperfect pipes, fixtures or otherwise.

C. For failure to maintain in good order connections, service pipes or fixtures owned by the applicant.

D. For molesting any service, pipe, meter, curb stopcock or seal or any other appliance of the Department.

E. For nonpayment of water service or any other charge accruing under the application.

F. For refusal of reasonable access to property for purposes of inspecting or for reading, caring for or removing meters.

G. For supplying any person or families other than those for which the service was installed.

H. For making or causing to be made a cross-connection of any form or type or the installation of any fitting for a potential cross-connection between the potable water supplied by the Bureau and any secondary water supply.

I. For installing, attaching or permitting the use of any type of ground connection for electric circuits or systems to any water main, service pipe or supply pipe that does not conform to the provisions of the electrical section of the code.

J. Where air-conditioning equipment, refrigeration machinery and compressor installations using water from the city mains are in violation of the provisions of Section 108 of this code.

Sec. 130. Taps, wet connections or other connections to a city main shall be made only by Department employees. No tap or wet connection shall be inserted within 24 inches of a hub, other connection, special casting, hydrant branch or dead end. The minimum spacing interval for taps and wet connections shall be 18 inches for three-fourths-inch and one-inch taps, and 24 inches for one-and-one-half-inch and two-inch taps and wet connections. No tap or wet connection shall be installed below the horizontal plane of the city main.

Sec. 131. The charges for a tap or wet connection will be for the furnishing, delivering and inserting of the tap or the furnishing and setting of the wet connection sleeve and valve complete and ready for connection of the service pipe. These charges will be fixed by the Department and will be subject without notice to such occasional revisions as may be required by changes in the cost of labor and material.

Sec. 132. No person shall in the City of Jersey City add or engage in or by a sign or otherwise advertise or hold himself out as engaged in the business of adding any chemical or other substance to the water supply within a building without first obtaining the approval of the Department of Administration and the Board of Health. Such addition of chemicals shall be for anticorrosion or antiscaling purposes only, and shall be performed in conformity with terms and conditions of the regulations of the Department of Administration and the Board of Health. No owner, lessee, occupant, tenant or other person in charge of a building shall cause, permit, allow or suffer any chemical or other substance to be added to the water supply in such building which water supply is subsequently furnished to any guest, customer, occupant, tenant or other person for domestic use of human consumption unless such addition or treatment is performed by the holder of a permit from the Board of Health in accordance with the regulations of said Board.

The provisions of this section shall not apply to the treatment of water for industrial purposes, swimming pools, for air-conditioning systems or for any use which does not include human consumption, but in all such cases proper precaution shall be taken to preclude the possibility that the treated water may come in contact with or contaminate the potable water supply distribution system of the building, and provisions satisfactory to the Office of Utility Management shall be made to preclude the possibility that the treated water may come into contact with or contaminate the public water supply.

No chemicals that are approved by the Board of Health and the Department of Administration for anticorrosion or anti-scaling purposes shall be added in such a manner as to increase the total alkalinity, total hardness or total silica content of the water by more than 50 parts per million as determined by the methods of water analysis contained in the latest edition of Standard Methods of Water Analysis, approved by the American Public Health Association and the American Waterworks Association.

Sec. 133. The installation of underground telephone conduits, electric and power conduits, cables, gas mains, steam mains, sewers or any other conduit, pipe or underground structures of any nature in public streets or thoroughfares where city water mains are located shall maintain a minimum clearance of 12 inches in crossing under or paralleling the city water main. No other underground utility of any type shall be constructed parallel to and directly above the vertical center line of any city water main or parallel to and in the same plane as the horizontal center line of the water main that may prevent future connections being made to the city main. All persons or corporations shall be required to submit plans in triplicate to the Department of Administration for approval of all underground structures prior to their installation in public streets or thoroughfares.

CHAPTER 3

Sec. 134. The master plumber or journeyman plumber, as defined herein, in order to do work under this code shall be duly licensed pursuant to the terms of the Plumbing Code of the City of Jersey City, adopted November 20, 1951.

Sec. 135. All materials to be used for plumbing connections, unless expressly provided for in this code, shall comply with the standards set forth in said Plumbing Code of the City of Jersey City, adopted November 20, 1951.

Sec. 136. Any persons violating any provision whatsoever of this code or failing to comply therewith, or with any of the requirements thereof, or unlawfully making a plumbing connection into the city water mains, water meter or the cross-connections thereof; or misusing the water supply system for air conditioning or refrigeration, contrary to provisions of this code or parts thereof, in violation of the provisions of said code or without a permit as herein provided for or in accordance therewith shall, upon conviction, be punishable by a fine or penalty as provided in Chapter 1, General Provisions, § 1-25.

§ 337-4. Metered water rates. [Amended 11-12-1980 by Ord. No. S-527; 2-24-1981 by Ord. No. S-582; 4-14-1981 by Ord. No. S-600; 12-23-1981 by Ord. No. MC-89; 9-12-1985 by Ord. No. C-2; 4-23-1986 by Ord. No. C-218; 4-14-1988 by Ord. No. C-709; 9-13-1989 by Ord. No. McC-16; 12-22-1992 by Ord. No. 92-188;

4-28-1993 by Ord. No. 93-041; 6-9-1993 by Ord. No. 93-055; 10-27-1993 by Ord. No. 93-121; 6-14-1995 by Ord. No. 95-050]

A. Subject to Subsection C, the charge to retail customers, both within and outside the City of Jersey City, and which customers are nonmunicipal and nonprivate water system customers for water consumption, shall be at the rates as provided in Chapter 160, Fees and Charges.

B. Nonprofit charitable organizations which prior to July 1, 1986, had been determined to be exempt from charges for water under the standards previously prescribed by the governing body shall continue to be exempt from charges for water until October 31, 1993, but, thereafter, all such previously granted exemptions shall cease. Any nonprofit charitable organization exempt from charges for water prior to July 1, 1986, which paid for water from July 1, 1986, to October 31, 1993, shall receive a credit without interest to be applied to future charges.

C. Effective November 1, 1993, water metered to buildings that are primarily used by private, nonprofit educational organizations as accredited elementary and secondary schools shall pay a rate as provided in Chapter 160, Fees and Charges. The Business Administrator shall require satisfactory evidence that a private, nonprofit educational organization qualifies for this rate. **[Amended 8-13-1997 by Ord. No. 97-052]**

§ 337-5. Bulk water rates. [Added 12-22-1992 by Ord. No. 92-188; amended 4-28-1993 by Ord. No. 93-041; 6-9-1993 by Ord. No. 93-055; 10-27-1993 by Ord. No. 93-121; 6-14-1995 by Ord. No. 95-050]

The rate charged to municipal and private water systems and other customers which enter into contracts having a term of five years or more shall be as provided in Chapter 160, Fees and Charges.

§ 337-6. Payments for metered water; interest and penalties. [Amended 11-12-1980 by Ord. No. S-527; 12-23-1980 by Ord. No. MC-89; 8-13-1997 by Ord. No. 97-048]

A. Every water meter shall be charged and billed separately. Payments for metered water shall not be received unless all arrears and miscellaneous charges have been paid.

B. Interest and penalties at the rate of 18% per annum shall be added to all metered water bills if not paid within 30 days, including Sundays and holidays, from due date.

C. Waiver of interest and penalties.

(1) **[Amended 8-13-1997 by Ord. No. 97-052]** Criteria. The Business Administrator is hereby authorized to waive the interest and penalties on metered water bills not paid within 30 days if the terms and conditions established herein are complied with and if any of the following criteria are applicable:

(a) Due to no fault of the customer, the customer has received estimated bills for nine months or more and the estimated bill differs from the actual bill by 25% or more for an industrial account or 25% or more for a residential account.

(b) Due to no fault of the customer, the customer has not been billed for the preceding 12 months.

(c) In the case of a customer whose meter is read by remote reading devices, the customer has received an incorrect bill, provided that the customer notifies the Department of Administration no later than 30 days from the mailing date on the bill.

(d) A customer did not receive water bills with invoice dates May 29, 1996, June 12, 1996, and June 30, 1996, and did not have a prior account balance.

(2) A customer must agree to pay in full all principal charges due and owing within a time period deemed acceptable by the Business Administrator but no later than nine months after a bill is sent. The customer must agree to a full inspection allowing access to meter and remote. The customer must also keep current bills current.

(3) After reviewing the billing account history and such other evidence that the Business Administrator deems relevant, the Business Administrator is authorized to waive all or a portion of the interest and penalty charges as he/she deems appropriate. The Business Administrator shall prepare a written statement to be filed with the City Tax Collector and the appropriate designee of United Water indicating the reason or reasons for the waiver of all or a portion of the interest and penalty charges. The authority granted herein to the Business Administrator to waive interest and penalty charges on metered water bills shall expire on December 31, 1997.

(4) Once every two weeks, the Business Administrator shall provide a schedule to the governing body which shall include the following information for all metered water accounts for which the Business Administrator waived interest and penalties during the preceding two weeks: address of property which received waiver, name of property owner who received waiver, total amount due without interest and penalties added, total amount of interest and penalties due before waiver and total amount of interest and penalties waived.

§ 337-7. Charges to become lien.

Water charges shall be a lien against the premises served.

§ 337-8. Fire hydrant charge.

A. The City of Jersey City shall pay to the water account the sum as provided in Chapter 160, Fees and Charges, for each and every fire hydrant belonging to the City of Jersey City as a charge for water usage from said hydrants and maintenance thereof. **[Amended 6-14-1995 by Ord. No. 95-050]**

B. Hereafter, the governing body shall appropriate sufficient moneys in each annual budget to pay for said hydrant charges.

C. The annual charges for privately owned fire hydrants shall be as provided in Chapter 160, Fees and Charges. **[Added 12-23-1981 by Ord. No. MC-89; amended 9-12-1985 by Ord. No. C-2; 6-14-1995 by Ord. No. 95-050]**

§ 337-9. Enforcement. [Added 11-9-1979 by Ord. No. S-301; amended 5-10-1984 by Ord. No. MC-599; 6-14-1995 by Ord. No. 95-050]

The following personnel are hereby authorized and directed to enforce the provisions of this chapter pertaining to water meters:

A. The Business Administrator. **[Amended 8-13-1997 by Ord. No. 97-052]**

B. (Reserved).*

* **Editor's Note: Former Subsection B, which listed the Director of the Water Department, was removed pursuant to Ord. No. 97-052, adopted 8-13-1997. The responsibilities of the Director of the Water Department now rest with the Business Administrator.**

C. The head of the Office of Utility Management. **[Amended 8-13-1997 by Ord. No. 97-052]**

D. The Supervisor of water meter readers.

E. All water meter readers.

F. The Supervisor of the Water Meter Shop.

G. Any personnel authorized and directed to perform inspections by the Business Administrator, the head of the Office of Utility Management, the Supervisor of the water meter readers or the Supervisor of the Water Meter Shop. **[Amended 8-13-1997 by Ord. No. 97-052]**

§ 337-10. Charges collected by Office of Utility Management. [Added 12-23-1981 by Ord. No. MC-89; amended 2-11-1987 by Ord. No. C-369; 11-23-1988 by Ord. No. C-855; 6-14-1995 by Ord. No. 95-050; 8-13-1997 by Ord. No. 97-052]

A. The charges for services rendered shall be collected by the Office of Utility Management, Department of Administration, as provided in Chapter 160, Fees and Charges.

B. The fee for water meter tests listed in Chapter 160, Fees and Charges, may be waived if the meter tested proves to register incorrectly.

§ 337-11. Water permit fees. [Added 12-23-1981 by Ord. No. MC-89; amended 2-11-1987 by Ord. No. C-369; 10-8-1987 by Ord. No. C-555; 4-27-1989 by Ord. No. C-937; 8-16-1989 by Ord. No. McC-16; 2-26-1992 by Ord. No. McC-422; 6-14-1995 by Ord. No. 95-050; 7-19-2006 by Ord. No. 06-085]

A. The fees as provided in Chapter 160, Fees and Charges, shall be charged upon the issuance of the water meter permit, water tap permit or fire hydrant permit.

B. There will be a fifty (50) percent reduction in the connection fee or tapping fee assessed pursuant to N.J.S.A. 40:14B-21 for new connections to the water system and a fifty (50) percent reduction in the connection fee or the tapping fee assessed pursuant to N.J.S.A. 40:14B-22 for new connections to the sewerage system which are to be charged to public housing authorities and to non-profit organizations b uilding affordable housing projects.

§ 337-12. Jersey City Water Laboratory fees. [Added 1-10-1985 by Ord. No. MC-770; amended 2-13-1991 by Ord. No. McC-253; 6-14-1995 by Ord. No. 95-050]

Jersey City Water Laboratory fees shall be as provided in Chapter 160, Fees and Charges.

§ 337-13. Mandatory replacement of lead service lines. [Added 10-25-2023 by Ord. No. 23-022]

A. Definitions. Unless defined herein, all terms used in this ordinance shall be defined in accordance with P.L. 2021, c. 183, now codified as N.J.S.A. 58:12A-40 to 12A-47.

JCMUA — the Jersey City Municipal Utilities Authority.

LEAD SERVICE LINE REPLACEMENT PROGRAM — the program instituted by the JCMUA in accordance with N.J.S.A. 58:12A-40 et seq. to replace all lead service lines in the City over the course of ten years.

B. Requirements. Notwithstanding the provisions of Chapter 337-1 et seq., lead service lines are prohibited in the City of Jersey City and shall be replaced by either of the following means:

1. By a property owner's acceptance of JCMUA's Lead Service Line Replacement Program and their allowance of contractors to access on their property to conduct the replacement as detailed in Section C. below; or

2. By property owners replacing the lead service line on their own and at their own expense within one-hundred and eighty (180) days of the effective date of this Chapter 337-13. If an owner selects this option, then the owner shall be required to provide the JCMUA with proof that the lead service line has been replaced. Proof must include at a minimum: a permit issued by the JCMUA to a licensed plumber authorized to do the work; an invoice from the contractor who completed the work; a copy of the estimate along with any report of the work completed, and an inspection report verifying the removal. Upon receipt of these items, the JCMUA shall provide the owner with a one-time credit of up to $10,000, which credit shall be applied against future water service charges. Said one-time credit shall expire upon the owner's sale of the property, regardless of whether it has been fully applied against water service charges at the time of the sale.

C. Authorization to Access Property. In order to conduct the inventory required by N.J.S.A. 58:12A-42 and provide the replacement of lead service lines required by N.J.S.A. 58:12A-44, the JCMUA or its contractor may require property owners to execute a Right of Access Agreement to their property. Refusal to sign the Right of Access or to provide access shall subject a property owner to the penalties provided in Sec. 1-25. The JCMUA may also commence procedures, including filing a court action, to conduct the replacement of the lead service line.

D. Penalty. Violations of provisions of this Chapter by any person or corporation shall be punishable by a fine of at least $100 but not exceeding $1,000 or imprisonment for a term not exceeding 90 days or by a period of community service not to exceed 90 days.

§ 337-14. Water emergencies. [Added 9-27-1989 by Ord. No. McC-38; amended 10-25-2023 by Ord. No. 23-022]

A. Whenever the Mayor finds that a water emergency exists in the city, he or she may issue an executive order declaring the existence of a water emergency in the municipality. The executive order shall identify that portion of the city affected by the water emergency, which may include the entire city, and shall specify which of the water use regulations referred to below is being imposed, as well as any exemptions as may be authorized. The executive order shall be effective immediately upon promulgation by the Mayor and shall continue in effect for 90 days, unless extended or repealed as set forth in this chapter. For the purpose of this subsection, a water emergency shall exist for any of the following reasons:

(1) The Jersey City Administration Department has adopted water use restrictions, has notified the city, the New Jersey Board of Public Utilities and the New Jersey Department of Environmental Protection, as well as any other state, county or local agency entitled to notice of such restrictions, and such restrictions are not overruled or declared invalid by any state, county or local agency having the jurisdiction and power to do so. **[Amended 8-13-1997 by Ord. No. 97-052]**

(2) The Mayor is otherwise satisfied that a water emergency exists in the municipality.

B. Upon issuance of an executive order declaring a water emergency in accordance with this chapter, all citizens shall be urged to observe voluntary indoor conservation measures, and any of the following water use restrictions shall be imposed and shall be applicable to all residents and tenants, except where a bona fide health emergency exists, and to exempt businesses as specified herein during the water emergency.

(1) The complete ban and prohibition of outside water usage, including the watering of lawns and plants, the filling of pools and the washing of any vehicles.

(2) Outside water usage on alternate days allowing outside water usage by persons or businesses having even house or box numbers on even days and those having odd house or box numbers on odd days, with outside water usage being completely banned and prohibited on the 31st day of any month during the water emergency.

(3) Any other water use restriction specified by the Mayor which is reasonable under the circumstances considering the nature and extent of the water emergency. Any water restriction imposed pursuant to this subsection shall be limited in application to that portion of the city, which may include the entire city, identified as being affected by the water emergency in the executive order in accordance with this chapter.

C. The Mayor shall, in addition to complying with the other provisions of this section, provide a period of time during which the water use restrictions imposed shall be applicable and which shall be no longer than reasonably necessary to abate the water emergency under the circumstances considering

the nature and extent of the water emergency. At the expiration of the time period specified in the executive order, the water use restriction shall lapse and be inapplicable and unenforceable. If the mayor shall be satisfied that the water emergency has been abated prior to the expiration of the time period specified in the resolution, he shall issue an executive order declaring the water emergency ended and the water use restrictions inapplicable. If, at the expiration of the time period specified in the executive order, the Mayor shall be satisfied that the water emergency continues to exist, he may issue an executive order in accordance with the requirements of this chapter continuing the water use restrictions.

D. The water use restrictions imposed pursuant to this chapter shall be enforced during a water emergency by the Business Administrator or his or her designee. Whenever the Business Administrator shall find a violation of the water use restrictions, he shall give the violator a written warning and explain the penalties for a second and third offense as provided by this chapter. The Business Administrator shall keep such records as may be reasonable and necessary for the purpose of determining the persons and businesses who have been warned upon a first offense. The Business Administrator and his or her designees may write summonses for the violation of the water use restrictions imposed pursuant to this section. **[Amended 8-13-1997 by Ord. No. 97-052]**

E. After a first offense in accordance with this section, any person or business who thereafter violates the water use restrictions imposed pursuant to this chapter shall be fined or imprisoned in accordance with Chapter 1, General Provisions, § 1-25. **[Amended 6-14-1995 by Ord. No. 95-050]**

Chapter 340

WATERFRONT

§ 340-1. Definitions and word usage.
§ 340-2. Purpose.
§ 340-3. Sources of drift; prevention.
§ 340-4. Orders of Director.
§ 340-5. Service of orders.
§ 340-6. Review of orders.
§ 340-7. Compliance with orders.

[HISTORY: Adopted by the Council of the City of Jersey City 1-4-1977 by Ord. No. J-818 as Ch. 22, Art. VI, of the 1971 Jersey City Code, as readopted 9-19-1978 by Ord. No. S-128. Amendments noted where applicable.]

§ 340-1. Definitions and word usage.

A. Unless otherwise provided or expressly stated, the following words and phrases shall have the meaning respectively ascribed to them in this section. When not inconsistent with the context, words used in the present tense include the future and words used in the singular shall include the plural number. The word "shall" is always mandatory and not merely directory.

B. As used in this chapter, the following terms shall have the meanings indicated:

CITY — The City of Jersey City.

DEBRIS — Any loose material not attached to the land or to any structure and which is capable of becoming drift.

DIRECTOR — The Municipal Engineer of the city as appointed by the Mayor, and who may appoint, with the approval of the Mayor, an authorized agent to act in his or her behalf.[1]

DRIFT — Any floatable material which may cause damage to vessels or craft.

FINAL ORDER — Either the order of the Director after the time to request a review thereof has lapsed or the order of the Director issued as a result of the review requested in § 340-6 of this chapter.

NAVIGABLE WATERS — The waterways which are capable of carrying interstate commerce, and the tributaries thereto, within the geographical limits of the city.

PERSON — Any individual, firm, partnership, association, corporation, company or organization of any kind.

[1] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

PREMISES — The land, building, wharf, pier, dolphin, boom, weir, breakwater, bulkhead, jetty, derelict vessel, ship, barge, raft or other structure or floating craft of any kind and shall include all or any as may be necessary.

WATERFRONT, SHORE or BANK — That portion of the land which borders navigable waters and which lies shoreward of the established harbor lines or low water mark within the corporate limits of the City of Jersey City.

§ 340-2. Purpose.

The general purpose of this chapter is the elimination of sources of drift and debris which constitute possible obstacles or hazards to navigation on the navigable waters of this city by the removal and disposal of debris and deteriorated structures on the shores of such waters and liable to be washed into such waters.

§ 340-3. Sources of drift; prevention.

Whenever the Director has reasonable grounds to believe that debris placed or deposited on the banks of any navigable water is liable to be washed into such navigable water by any cause whatsoever and thereby be or become a source of drift likely to hinder, impede or otherwise obstruct navigation; or the condition of any wharf, pier, dolphin, boom, weir, breakwater, bulkhead, jetty, derelict vessel, ship, barge, raft or other structure or floating craft of any kind on or bordering on the shores of any navigable water is so dilapidated and deteriorated as to be or become a source of drift or debris liable to be washed into such navigable waters by any cause whatsoever and thereby likely to hinder, impede or otherwise obstruct navigation, the Director may declare the same to be public nuisance and thereupon order that the same be removed, abated, altered or repaired as such order may specify.

§ 340-4. Orders of Director.

The order of the Director issued pursuant to § 340-3 of this chapter shall be in writing, directed to the occupant, and last known owner of record if not such occupant, of the premises which are the subject of the complaint and shall be specify whether the condition complained of shall be removed, abated, altered or repaired.

§ 340-5. Service of orders.[2]

The order of the Director issued pursuant to § 340-3 of this chapter shall be served upon the occupant, and the last known owner of record if not such occupant, of the premises which are the subject of the complaint either by personally delivering a copy of such order to such occupant and last known owner of record or by certified mail (return receipt requested) addressed to such persons at their last known address.

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[2] **Editor's Note: Amended at time of adoption of Code; see Ch. 1, General Provisions, Art. I.**

§ 340-6. Review of orders.

Within fifteen (15) days after service of the order of the Director issued pursuant to § 340-3 of this chapter or, under emergency, within such shorter time as the Director may prescribe, the person to whom such order is directed, or any person aggrieved thereby, may appeal to the Director to review the same. The Director or his or her agent, after such review, at which all interested parties shall be afforded the opportunity to be heard, may affirm, modify or reverse the order of the Director as the facts may warrant. Unless the same is declared by a court of competent jurisdiction to be arbitrary, capricious or not supported by substantial evidence, the order of the Director after review thereof shall be final and conclusive.

§ 340-7. Compliance with orders.

In the event that the persons to whom the order of the Director is directed fail or refuse to comply with the terms of such order within thirty (30) days after such order has become final, the Director may, without further notice to any person, take or cause to be taken the necessary action to remove, abate, alter or repair the nuisance as specified in the order of the Director. The costs and expenses incident thereto shall be a personal charge against the occupant, and last owner of record if not such occupant, of the premises and in addition shall be a lien against the property or premises affected and all appurtenances thereto.

Chapter 345

ZONING*

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*History—Adopted by the Jersey City Municipal Council on April 11, 2001 by Ord. No. 01-042. Amendments noted where applicable.
Cross references—Animals, Ch. 90; Construction Codes, Uniform, Ch. 131.

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§ 345-46.2. NC-3 Neighborhood Commercial District 3 (110 feet or less).
§ 345-47. HC Highway Commercial District.
§ 345-48. C/A Commercial/Automotive District.
§ 345-49. I Industrial District.
§ 345-50. PI Port Industrial District.
§ 345-51. U University District.
§ 345-52. M Medical District.
§ 345-53. G Government District.
§ 345-54. P/OS Parks/Open Space District.
§ 345-55. WPD Waterfront Planned Development.
§ 345-56. C Cemetery District.
§ 345-57. DT Destination Tourism District.
§ 345-58. H Historic District.
§ 345-59. Overlay Districts.
§ 345-59.1. PPOD Palisades Preservation Overlay District.
§ 345-59.2. A - Arts Overlay District.
§ 345-59.3. F Overlay - Flood Prone District.
§ 345-59.4. MWORKS Marion Works Office/Residential Overlay District.
§ 345-59.5. ROZ Restaurant Overlay Zones.
§ 345-59.6. Historic Districts Overlay.
§ 345-59.7. Affordable Housing Overlay.
§ 345-59.8. Required setbacks for zones and redevelopment plans that abut or are in close proximity to Route 440, Route 1&9T, and a portion of Communipaw Avenue.
§ 345-59.9. Hackensack River Greenway Overlay.
§ 345-60. Supplementary zoning.
§§ 345-60.1—345-60.4. Reserved.
§ 345-60.5. Cannabis establishment and distributor regulations.
§ 345-61. Performance standards.
§ 345-62. Residential design standards.

§ 345-63. Non-residential design standards.

§ 345-64. Public or private common open spaces design standards.

§ 345-65. Buffers.
§ 345-66. Landscaping.
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ARTICLE VI
Stormwater Control
§ 345-74. Stormwater control.

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ARTICLE VIII
Enforcement, Violations and Penalties
§ 345-76. Enforcement.
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ARTICLE I
General Provisions

§ 345-1. Title.

The short form by which this Chapter may be known shall be the "Land Development Ordinance of the Jersey City, Hudson County, New Jersey."

§ 345-2. Statutory authority; purpose.

This Chapter is adopted pursuant to the Municipal Land Use Law (MLUL), (N.J.S.A. 40:55D-1 et seq.), in order to promote and protect the public health, safety, morals and general welfare. The purposes of this Chapter are as follows:

A. To plan and guide the appropriate use or development of all land in a manner which will promote the public health, safety, morals and general welfare by means including the following:

1. By regulating the location of buildings and establishing standards of development; establishing setback lines of buildings designed for residential, commercial, industrial, office or other uses; and by fixing reasonable standards to which buildings or structures shall conform.

2. By prohibiting incompatible uses and prohibiting uses, buildings or structures which are incompatible with the character of development of the permitted uses within specified zoning districts and surrounding areas.

3. By regulating alterations of existing buildings and preventing such additions to and alterations or remodeling of existing buildings or structures that would not comply with the restrictions and limitations imposed hereunder.

4. By conserving the value of land and buildings throughout the City.

B. To secure safety from fire, flood, panic and other natural and man-made disasters.

C. To provide adequate light, air and open space.

D. To ensure that land development does not conflict with the development and general welfare of neighboring municipalities, the county and the state as a whole.

E. To promote the establishment of appropriate population densities and concentrations that will contribute to the well-being of persons, maintenance of the character of the neighborhoods, preservation of the environment and quality of life.

F. To encourage the appropriate and efficient expenditure of public funds by the coordination of public development with land use policies.

G. To provide sufficient space in appropriate locations for a variety of residential, recreational, commercial and industrial uses and open space, both public and private, according to their respective environmental requirements.

H. To encourage the location and design of transportation routes which will promote the free flow of traffic while discouraging the location of such facilities and routes which will result in congestion or blight.

I. To promote a desirable visual environment through creative development techniques and good civic design and arrangements.

J. To promote the conservation of open space and valuable natural resources and to prevent urban sprawl and degradation of the environment through improper land use.

K. To encourage coordination of various public and private procedures and activities shaping land development with a view of lessening the cost of such development and to the more efficient use of land.

L. To provide, within the community's resources, for the future housing needs of the citizens of the City of Jersey City.

M. To encourage senior citizen community housing construction.

N. To promote utilization of renewable energy sources.

O. To promote the maximum practicable recovery and recycling of recyclable materials from municipal solid waste through the use of planning practices designed to incorporate the state recycling plan goals and to compliment municipal recycling programs.

P. To promote sustainable development which will protect within the carrying capacity of the natural environment and satisfy basic human needs.

§ 345-3. Interpretation of provisions.

A. Where the provisions of this Chapter impose greater restrictions than those imposed by any other law, ordinance, regulation or resolution, the provisions of this Chapter shall control. Where the provisions of any other law, ordinance, regulation or resolution impose a greater restriction than this Chapter, the provisions of such other law, ordinance, regulation or resolution shall control.

B. Matters not regulated herein shall be governed by applicable provisions of the MLUL. In the event of any conflict between the provisions of this ordinance and the MLUL, the MLUL shall control.

C. The requirements of this Chapter shall be held paramount to any less restrictive provisions or requirements established by deed restriction, private covenant or agreement. Without limiting the foregoing, where this Chapter imposes a greater restriction or limitation upon the use of buildings or premises or upon the height of buildings or lot coverage, or requires greater lot areas or larger yards, courts or other open spaces than are required by covenants or restrictions imposed by deed or private agreement, the provisions of this Chapter shall control.

§ 345-4. Prohibited uses.

The establishment of any use not expressly permitted by this Chapter shall be prohibited. All uses not expressly permitted in any given use district are expressly prohibited in such district. No structure or addition thereto shall be built, moved or remodeled, and no land shall be used, occupied, reoccupied, designed or improved for use or occupancy except for a use that is permitted within the zone in which the structure or land is located.

§ 345-5. Word usage.

For the purposes of this Chapter:

A. The present tense shall include the future.

B. The singular number shall include the plural and the plural the singular.

C. The word "shall" is always mandatory; the word "may" is discretionary.

D. The words "zone" and "district" are synonymous, and whenever the term "structure" is used, it shall be construed to mean and include the term "building."

§ 345-6. Definitions. [Amended 11-10-2010 by Ord. No. 10-135; 4-27-2011 by Ord. No. 11-045; 2-13-2013 by Ord. No. 13-008]

Definitions and Usages. Unless otherwise expressly stated, the following terms shall, for the purpose of this Chapter, have the meanings herein defined. Whenever a term is used in this Chapter which is defined in the MLUL, such term shall have the same meaning as the MLUL. Any word or term not defined below or in the MLUL, shall be used with a meaning as defined in Webster's Third New International Dictionary of the English Language, unabridged (or the latest edition).

ACCESS — A physical entrance to property.

ACCESSORY BUILDING. STRUCTURE OR USE — A building, structure or use which is customarily associated with and is subordinate and incidental to the principal building, structure or use and which is located on the same lot therewith.

ACCESSORY DWELLING UNIT - A single-unit dwelling in an accessory structure that is detached from the principal building or structure and is in addition to the principal permitted use which is located on the same lot therewith. **[Added 10-13-2022 by Ord. No. 22-084]**

ADAPTIVE REUSE — The development of a new use for an older building or for a building originally designed for a different purpose. This action may involve changes to the façade, and the interior floor plan may be changed to accommodate the new use.

ADMINISTRATIVE OFFICER — The Zoning Officer, Construction Code Official, Historic Preservation Specialist or other municipal official designated by ordinance by the City of Jersey City.

AGRICULTURE, COMMERCIAL — Land that is used for cultivation and harvesting of herbs, fruit, flowers, vegetables, and soil in which plants are raised outdoors in planters, in greenhouses, in buildings or on rooftops. Plants may be grown hydroponically or in soil, for sale either as food, use in landscaping, or ornamental purposes. **[Added 10-13-2022 by Ord. No. 22-084]**

AGRICULTURE, COMMUNITY GARDENING — Land that is held publicly or privately and is used collectively for the cultivation and harvesting of herbs, fruit, flowers, and vegetables, including the cultivation and tillage of soil. Cultivation can be done in outdoor raised planters or greenhouses, hydroponically or in soil. **[Added 10-13-2022 by Ord. No. 22-084]**

AIR RIGHTS — The interest in the use of the space above the land or above structures or improvements affixed to the land.

AISLE — The traveled way by which cars enter and depart parking spaces.

ALLEY — A minor way which is used primarily for vehicular access to the back or the side of properties otherwise abutting a street.

ALLEY, WALKING — A minor way which is used primarily for pedestrian access to properties that may or may not otherwise be abutting a street. **[Added 10-13-2022 by Ord. No. 22-084]**

ALTERATION OR ADDITIONS, STRUCTURAL — Any additions, change or rearrangement in the supporting members of a building such as walls, foundations, columns, beams, girders, posts or piers; or additions to or enlargements of an existing structure requiring walls, foundations, columns, beams, girders, posts or piers; or the moving from one location or position to another. Within historic districts, any addition, change or modification, for a building, structure, object, site or landscape feature or the service equipment thereof, that affects safety, health or structure and the addition, change or modification of which is not classified as a minor alteration or ordinary repair.

ALTERATION, MINOR — Replacement or renewal of existing work, requiring a permit, of a building, structure, object, site or landscape feature or part of the service equipment therein, within the same or equivalent materials or equipment parts, that are made in the ordinary course of maintenance and that do not in any way affect health, fire or structural safety of the building, structure, object, site or landscape feature or affect the design or integrity of the historic fabric of the building, structure, object, site or landscape feature.

AMBULATORY CARE FACILITY — A health care facility or a distinct part of a health care facility which provides preventive, diagnostic and treatment services to persons who come to the facility to receive services and depart from the facility on the same day. The facility shall not be open before 5:00 AM nor after midnight.

ANTENNA — A metallic device such as a rod or wire for radiating or receiving radio waves. See also Wireless Communication Antennas.

APARTMENT — One or more rooms comprising a dwelling unit in a multifamily dwelling or serving as the home or residence of an individual or a family or a household. "Apartments" may include buildings in cooperative, rental, or condominium ownership.

APPLICANT — A person or entity submitting an application for development.

APPLICATION FOR DEVELOPMENT — The filled-out current edition of the application form ("General Development Application") and all accompanying documents including signed and sealed site plans, or subdivision plats, and all items on the corresponding Checklist required by ordinance for approval of a subdivision plan, site plan, planned development, conditional use, zoning variance, or direction of the issuance of a permit pursuant to N.J.S.A. 40:55D-34 and/or N.J.S.A. 40:55D-36.

APPURTENANCE — Any accessory or subordinate building, object or structure or landscape feature.

ARCHITECTURAL — Relating or conforming to the rules of architecture; having or conceived of as having a single unified overall design, form or structure.

ARCHITECTURAL MAST — A vertical finial used for aesthetic, decorative or functional purposes which is integral to the design of a building and does not incorporate or include a logo, mascot, symbol, or signage.

ARCADE —A covered passage or alleyway, which may have an arched roof, located in front of or through a building, and which is used exclusively for pedestrian use.

AREA — A specific geographic division of the City of Jersey City.

ART GALLERY — Space for the display, appreciation, and sale of objects of art. **[Added 10-14-2015 by Ord. No. 15-132]**

ARTIST — A person regularly engaged in the fine arts as a career and not as a hobby. This does not mean that the art the artist creates generates the artist's main source of income, nor does it require that the creation of art occupies the greatest portion of the artist's day. An artist is committed to his or her work, has a body of work that demonstrates the development of that art and intends to pursue that work for the foreseeable future. As used herein, the "fine arts" shall include, but not be limited to, painting, sculpture, choreography and the composition of music.

ARTIST, CERTIFIED — A person who has been certified by the Planning Board as an artist pursuant to the Jersey City Land Development Ordinance.

ARTIST STUDIO WORKSPACE — A room or rooms for which the principal use is the making of art by an artist, and from which the artist may sell art as an accessory use to the studio, but which shall not be considered a principal retail use.

ARTIST WORK-ONLY STUDIO — See ARTIST STUDIO WORKSPACE.

ASSISTED LIVING RESIDENCE — A facility which is licensed by the State Department of Health to provide housing and congregate dining and to assure that assisted living services are available when needed for four or more adult persons unrelated to the proprietor.

ATRIUM — A courtyard located in an interior area of a building or between buildings which is covered with a curved glass roof and completely enclosed in glass except where it is bordered by the walls of the adjacent buildings.

ATTACHED HOME — See TOWNHOUSE. **[Added 10-13-2022 by Ord. No. 22-084]**

ATTIC — The open non-habitable space between the ceiling beams of the top habitable story and the roof rafters in any building.

AUTO/AUTOMOTIVE SERVICES — See AUTO REPAIR GARAGE.

AUTO BODY SHOP — An establishment primarily engaged in repairing or customizing automotive vehicles including the painting of automotive vehicles and may include the replacement, repair and/or tinting of automotive vehicle glass.

AUTO REPAIR GARAGE — Any building, premises, and land in which or upon which a business, service, or industry involving the maintenance, servicing, repair of vehicles, but no painting or body repair, no motor fuels are sold, and no junked or unregistered vehicles are kept or stored.

AUTO SALES — The use of any building, land area, or other premise for the display and sale of new or used automobiles generally but may include light trucks or vans, trailers, or recreation vehicles and including any vehicle preparation or repair work conducted as an accessory use.

AWNING — A cantilevered angled, flexible cover, of fabric, used for the purpose of shielding a doorway or window from the elements and may be stationary or periodically retracted into the face of

the building. **[Added 10-13-2022 by Ord. No. 22-084]**

BALCONY — A roofless platform that projects beyond the wall of a building, is surrounded by a railing, balustrade, or parapet, and is suspended from and supported solely by the principal structure, with no additional independent supports.

BANQUET FACILITY — A large room or space in a restaurant or hotel suitable for banquets

BAR — A place of business, or a defined area accessory to a principal restaurant or nightclub use, primarily devoted to for the sale and on-premises consumption of alcoholic beverages.

BASEMENT — A portion of the building having more than one-half of its clear height above finished grade. A basement shall be counted as a story in determining the height of a building. **[Amended 7-18-2018 by Ord. No. 18-074]**

BED AND BREAKFAST — Overnight accommodations and a morning meal in a dwelling unit provided to transients for compensation. The owner of a dwelling resides on the premises and guest stays are limited to fourteen (14) consecutive days.

BEDROCK — Continuous solid rock that underlies regolith.

BELT COURSING — A change or variation in the placement or orientation of the building material (i.e., brick, stone, etc.) used to emphasize a particular height or portion of a building.

BICYCLE LANE — A reserved lane within a roadway marked for the exclusive use of bicycles.

BICYCLE PATH — A pathway, often paved and separated from streets and sidewalks, designed to be used by bicycles.

BILLBOARD — An off-site sign advertising an occupant, product or service pertaining to a lot other than the lot upon which the billboard is located.

BIORETENTION FACILITIES — Practices that capture and store stormwater runoff and pass it through a filter bed of engineered soil media composed of sand, soil, and organic matter filtered runoff may be collected and returned to a storm sewer or allowed to infiltrate into the soil, **[Added 6-24-2020 by Ord. No. 20-044]**

BIRD FRIENDLY MATERIAL — A material that has or has been treated to have a Threat Factor less than or equal to 25 in accordance with American Bird Conservancy or complies with American Bird Conservancy's Prescriptive Rating Criteria; a material with exterior surface obstructed and effectively covered by building-integrated structures that do not have gaps larger than 12" in any dimension, including non-glass double-skin facades, metal screens, fixed solar shading, exterior insect or solar screens; or any other material deemed bird friendly in accordance with a relevant standard. **[Added 3-11-2026 by Ord. No. 26-014]**

BIRD HAZARD INSTALLATIONS - Structures that pose significant collision risks to birds such as awnings, railings, noise barriers, and wind barriers; and building features that pose significant collision risks to birds such as skyways or skywalks, pedestrian bridges, all floors of building connectors, atriums, outside corners where a bird can see in one side of the building and out the other within 30 feet of the corner, all interior corners within 30 feet of the corner, glazing adjacent to courtyards, and any portion of a building façade adjacent to a green roof or landscape element up to 24 feet above the surface of the green roof. **[Added 3-11-2026 by Ord. No. 26-014]**

BLOCK - (1) Used to show the extent of property and in some cases ownership of land for tax purposes. (2) A group of buildings or properties on both sides of a street from one intersection to the next. **[Added 10-13-2022 by Ord. No. 22-084]**

BLOCKFRONT - A group of buildings or properties on one side of a street from one intersection to the next. **[Added 10-13-2022 by Ord. No. 22-084]**

BOARD — The City of Jersey City Planning Board or Zoning Board of Adjustment when acting within its scope of its jurisdiction under this Chapter and/or the Act.

BOARD OF ADJUSTMENT — The board established pursuant to N.J.S.A. 40:55D-69.

BOARDER — A person other than a member of a family occupying a part of any dwelling unit who, for a consideration, is furnished sleeping accommodations in such dwelling unit and may be furnished meals as part of this consideration.

BOARDING HOUSE — A building, other than a hotel, motel or group home, occupied by more than one person not living together as a family unit where meals may be served to occupants, including a rooming house and single room occupancy unit and that is governed by the "Rooming and Boarding House Act of 1979," N.J.S.A. 55:13B-1 et seq.

BOLLARD — A vertical, freestanding short post used as a barrier to vehicles.

BUFFER — A strip of land containing planted screening materials and/or fencing used to physically separate and screen one use or property from another so as to minimize adverse impacts. No building, structure, parking area, driveway (except to provide access to the property and which is perpendicular to the buffer area) street, sign (except directional sign) or storage of materials shall be permitted in such buffer.

BUILD-TO LINE — a line along which the lower floors of the primary façade of a building must be located.

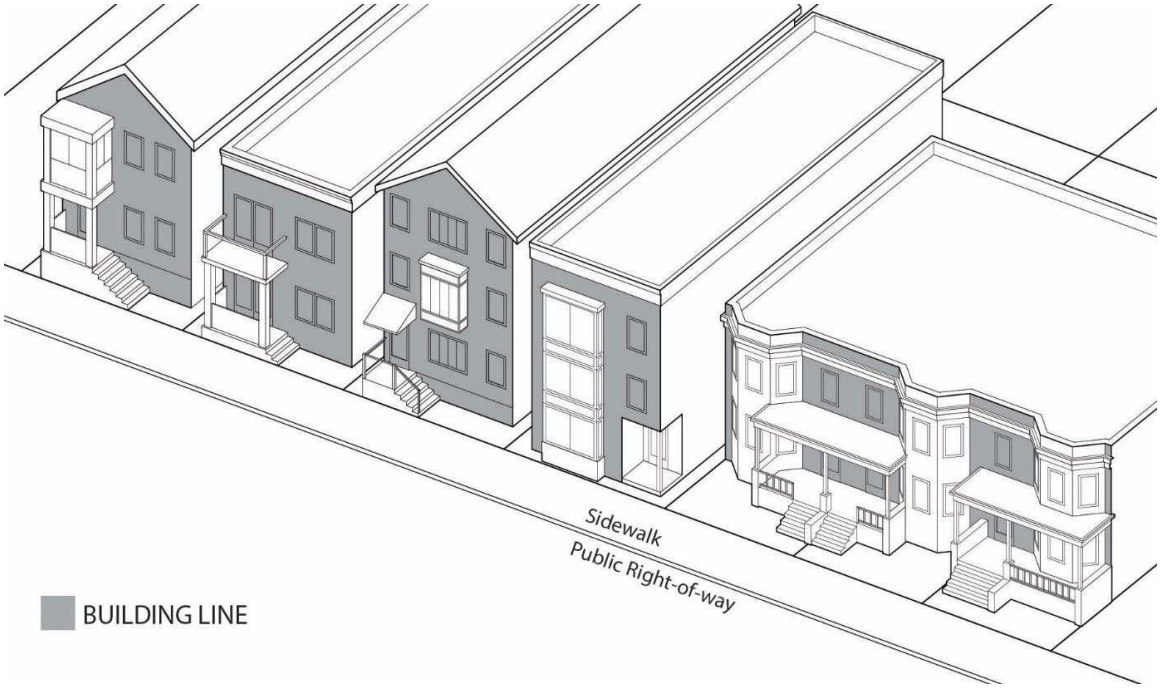
BUILDING — Any structure, part of a structure, extension thereof, or addition thereto having a roof supported by columns, posts, piers, or walls and intended for the shelter, business, housing or enclosing of persons, or property.

BUILDING COVERAGE — The ratio of the horizontal area of all principal and accessory buildings, measured from the exterior surface of the exterior walls of the ground floor on a lot, to the total lot area. "Building coverage" is expressed as a percentage and shall mean the percentage of a lot or assemblage of lots occupied by one or more buildings.

BUILDING ENVELOPE — The three-dimensional space within which any building (principal or accessory) is permitted and/or proposed to be built on a lot as defined by yard setbacks, stepbacks, and height. **[Added 10-13-2022 by Ord. No. 22-084]**

BUILDING FOOTPRINT — The three-dimensional space within which any building (principal or accessory) is permitted and/or proposed to be built on a lot and which is defined by yard setbacks. **[Added 10-13-2022 by Ord. No. 22-084]**

BUILDING LINE — The line parallel to the street line or other lot line which touches that part of a building's principal façade closest to the other lot line. Permitted encroachments and projections are not counted toward the building line. For the purposes of calculating yard calculations permitted and/or conforming encroachments and projections are excluded. **[Added 10-13-2022 by Ord. No. 22-084]**



BULKHEAD — (1) A boxlike structure on the roof of a building covering a stairwell, elevator, or mechanical equipment; (2) A low wall, sometimes paneled, beneath a storefront display window; (3) A retaining wall, often located at the high-tide line, that protects waterfront property.

BUSINESS, TECHNICAL AND ARTS SCHOOLS — An institution offering training without academic programs.

BUSINESS INCUBATOR - A place where services, space, education, and assistance are provided to new businesses. Incubators include, but are not limited to, office type environments, scientific and research laboratories, kitchens, computer laboratories, and workshops. Incubators are often affiliated with an institution or organization able to provide access to instruction, advice, research facilities, or funding. Sharing of services, spaces, and equipment provides greater economies of scale for the incubator, and creates an entrepreneurial community among its users. **[Amended 3-11-2015 by Ord. No. 15-025]**

CALIPER — The diameter of a tree trunk measured in inches six (6) inches above ground level for trees up to four (4) inches in diameter and measured twelve (12) inches above ground level for trees over four (4) inches in diameter.

CANNABIS CONSUMPTION AREA — means, as further described in section 28 of P.L.2019, c.153 (C.24:6I-21), a designated location operated by a licensed cannabis retailer or permit holder for dispensing medical cannabis, for which both a State and local endorsement has been obtained, that is either: (1) an indoor, structurally enclosed area of the cannabis retailer or permit holder that is separate from the area in which retail sales of cannabis items or the dispensing of medical cannabis

occurs; or (2) an exterior structure on the same premises as the cannabis retailer or permit holder, either separate from or connected to the cannabis retailer or permit holder, at which cannabis items or medical cannabis either obtained from the retailer or permit holder, or brought by a person to the consumption area, may be consumed. **[Added 4-23-2025 by Ord. No. 23-078]**

CANNABIS CULTIVATOR — means any licensed person or entity that grows, cultivates, or produces cannabis in this State, and sells, and may transport, this cannabis to other cannabis cultivators, or usable cannabis to cannabis manufacturers, cannabis wholesalers, or cannabis retailers, but not to consumers. This person or entity shall hold a Class 1 Cannabis Cultivator license pursuant to Chapter 84, Article IV of the Municipal Code. **[Added 4-23-2025 by Ord. No. 23-078]**

CANNABIS DISTRIBUTOR — means any licensed person or entity that transports cannabis in bulk intrastate from one licensed cannabis cultivator to another licensed cannabis cultivator, or transports cannabis items in bulk intrastate from any one class of licensed cannabis establishment to another class of licensed cannabis establishment, and may engage in the temporary storage of cannabis or cannabis items as necessary to carry out transportation activities. This person or entity shall hold a Class 4 Cannabis Distributor license to operate. **[Added 4-23-2025 by Ord. No. 23-078]**

CANNABIS ESTABLISHMENT — means a cannabis cultivator, a cannabis manufacturer, a cannabis wholesaler, or a cannabis retailer in good standing and approved by the Cannabis Control Board pursuant to Chapter 84, Article IV of the Municipal Code. **[Added 4-23-2025 by Ord. No. 23-078]**

CANNABIS MANUFACTURER — means any licensed person or entity that processes cannabis items in this State by purchasing or otherwise obtaining usable cannabis, manufacturing, preparing, and packaging cannabis items, and selling, and optionally transporting, these items to other cannabis manufacturers, cannabis wholesalers, or cannabis retailers, but not to consumers. This person or entity shall hold a Class 2 Cannabis Manufacturer license to operate. **[Added 4-23-2025 by Ord. No. 23-078]**

CANNABIS RETAILER — means any licensed person or entity that purchases or otherwise obtains usable cannabis from cannabis cultivators and cannabis items from cannabis manufacturers or cannabis wholesalers, and sells these to consumers from a retail store, and may use a cannabis delivery service or a certified cannabis handler for the off-premises delivery of cannabis items and related supplies to consumers. A cannabis retailer shall also accept consumer purchases to be fulfilled from its retail store that are presented by a cannabis delivery service which will be delivered by the cannabis delivery service to that consumer. This person or entity shall hold a Class 5 Cannabis Retailer license to operate. **[Added 4-23-2025 by Ord. No. 23-078]**

CANNABIS WHOLESALER — means any licensed person or entity that purchases or otherwise obtains, stores, sells or otherwise transfers, and may transport, cannabis items for the purpose of resale or other transfer to either another cannabis wholesaler or to a cannabis retailer, but not to consumers. This person or entity shall hold a Class 3 Cannabis Wholesaler license in good standing and approved by the Cannabis Control Board in good standing and approved by the Cannabis

Control Board pursuant to Chapter 84, Article IV of the Municipal Code. **[Added 4-23-2025 by Ord. No. 23-078]**

CANOPY — A permanent, non-retractable roof-like projection with or without support poles permanently affixed and perpendicular to the wall of an entrance of a building or other punched openings used for providing overhead protection from the weather and shall be construed to be a part of the building to which it is affixed. **[Added 10-13-2022 by Ord. No. 22-084]**

CAR SALES — See AUTO SALES.

CAR WASH, AUTOMATIC — A building or place of business where the washing of motor vehicles is carried on with the use of a chain or conveyor, blower and water and/or steam cleaning device.

CAR WASH, HANDWASH — A vehicle washing that does not include mechanized automatic washing.

CAR WASH, ROLL OVER — A car wash in which the vehicle remains stationary while automatic washing occurs.

CARPORT — A roofed structure providing space for the parking or storage of motor vehicles and enclosed on not more than three sides.

CARRIAGE WAY — see CARTWAY.

CARTWAY — The hard or paved area of a street between the curbs, including travel lanes and parking areas but not including curbs, sidewalks or swales.

CATERING SERVICES — a place where the preparation and delivery of food and beverages occurs for offsite consumption, without the provision for on-site pick-up or consumption.

CELLAR — A portion of the building having one-half or more than one-half of its clear height below finished grade. A cellar shall not be counted as a story in determining the height of a building. **[Amended 7-18-2018 by Ord. No. 18-074]**

CEMETERY — Any site which contains at least one burial, marked or previously marked, dedicated to and used or intended to be used for the permanent internment of the human dead, to include perpetual-care and non-perpetual-care cemeteries, even though suffering neglect or abuse.

CERTIFICATE OF APPROPRIATENESS — A document attesting that proposed work within a historic district or affecting a landmark building, structure, object, site or landscape feature has been reviewed and deemed appropriate and consistent with the purpose of this Chapter by the Jersey City Historic Preservation Commission.

CERTIFICATE OF NO EFFECT — A document attesting that proposed work within a historic district or affecting a landmark building, structure, object, site or landscape feature has been reviewed

by the Historic Preservation Officer and the Division of City Planning and is not detrimental to the historic district or landmark on which the work is to be done or neighboring buildings, structures, objects, sites or landscape features.

CERTIFICATE OF OCCUPANCY (CO) — A document issued by the Construction Official allowing the occupancy or use of a building or structure and certifying that the building or structure or use has been constructed and/or renovated according to, and in compliance with all the applicable state codes and municipal ordinances and resolutions.

CHANGE OF USE — Any change from a permitted principal use to another permitted principal use or to a non permitted principal use, or any change from a non permitted use to a non permitted principal use, or to a permitted principal use, or any change from a permitted principal use to a permitted conditional use. **[Added 10-13-2022 by Ord. No. 22-084]**

CHILD CARE CENTER — An establishment providing for the care, supervision, and protection of children that is licensed by the State of New Jersey pursuant to P.L. 1983, c. 492 (C. 30:5B-1 et seq.).

CITY — City of Jersey City, Hudson County, New Jersey.

CITY COUNCIL — The legislative body of the City of Jersey City.

CIVIC — Premises available for operation by organizations dedicated to serving socially based public purposes such as: religion, arts and culture, education, government, performance, social service and the like. Including: house of worship, meeting hall, school, community center, and recreation facilities.

CIVIC SPACE — An area that is occupied and active on most days of the year and is dedicated to serving socially based public purposes and civic uses. Plazas, parks, and paseos may be considered civic spaces.

CLIFF FACE — A sheer, nearly vertical slope of exposed bedrock.

CLUSTER — A group of cultural resources with compatible buildings, objects or structures geographically or thematically relating to and reinforcing one another through design, setting, materials, workmanship, congruency and association.

COLONNADE — a linear series of columns which support a continuous lintel.

COLOCATION — Use of a common wireless telecommunication tower or a common site by two or more wireless license holders or by one wireless license holder for more than one type of communications technology and/or placement or a wireless telecommunication tower on a structure owned or operated by a utility or other public entity.

COMMON PROPERTY or OWNERSHIP — A parcel or parcels of land, together with the improvements thereon, in which the ownership, use and enjoyment of the same are shared by the owners and tenants of the individual dwelling units in the development.

COMMUNITY FACILITY/CENTER — Municipal, county, state, or not-for-profit enterprises that serve the public interest. Community Facility shall include, but not be limited to, the following services: adult day care, art education, child care, fire, health care, job training, library, police, recreation, school, or teen center. Community Facility shall not include prisons, or drug and narcotic rehabilitation centers.

COMMUNITY RESIDENCE FOR THE DEVELOPMENTALLY DISABLED — Any community residential facility licensed pursuant to P.L. 1977, c. 448 (C. 30:11B-1 et seq.) providing food,

shelter, and personal guidance, under such supervision as required, to not more than fifteen (15) developmentally disabled or mentally ill persons, who require assistance, temporarily or permanently, in order to live in the community, and shall include, but not be limited to: group homes, half-way houses, intermediate care facilities, supervised apartment living arrangements, and hostels. Such a residence shall not be considered a health care facility within the meaning of the "Health Care Facilities Planning Act" (P.L. 1971, c. 136; c. 26:2H-1 et seq.). In the case of such community residence housing mentally ill persons, such residence shall have been approved for a purchase of service contract or an affiliation agreement pursuant to such procedures as shall be established by regulation of the Division of Mental Health and Hospitals of the Department of Human Services.

COMMUNITY RESIDENCE FOR PERSONS WITH HEAD INJURIES — A community residential facility licensed pursuant to P.L 1977, c. 448 providing food, shelter and personal guidance, under such supervision as required, to not more than fifteen (15) persons with head injuries, who require assistance, temporarily or permanently, in order to live in the community, and shall include, but not be limited to, group homes, halfway houses, supervised apartment living arrangements and hostels. Such a residence shall not be considered a health care facility within the meaning of the "Health Care Facilities Planning Act," 1971, c. 136.

COMMUNITY RESIDENCE FOR THE TERMINALLY ILL — Any community residential facility operated as a hospice program providing food, shelter, personal guidance and health care services, under such supervision as required, for not more than fifteen (15) terminally ill persons.

COMMUNITY SHELTER FOR VICTIMS OF DOMESTIC VIOLENCE — Any shelter approved for a purchase of service contract and certified pursuant to standards and procedures established by regulation of the Department of Human Services pursuant to P.L. 1979, C. 337 (C. 30:14-1 et seq.) providing food, shelter, medical care, legal assistance, personal guidance, and other services to not more than fifteen (15) persons who have been victims of domestic violence, including any children of such victims, who temporarily require shelter and assistance in order to protect their physical or psychological welfare.

COMPATIBLE PROPERTY — A resource in a historic district or cluster distinguished by its scale, material, compositional treatment and other features that provide the setting for more important resources and add to the character of the scene.

COMPLETE APPLICATION — Any and all materials required by this Chapter to review any application for development (application form, affidavit of ownership, boundary descriptions, plat maps in accordance with ordinance specifications, etc.)

CONDITIONAL USE — A use permitted in a particular zoning district only upon showing that such use in a specified location will comply with the conditions and standards for the location and operation of such use as contained in the zoning ordinance and upon the issuance of an authorization therefore by the Planning Board or the Zoning Board. **[Added 10-13-2022 by Ord. No. 22-084]**

CONDOMINIUM — The form of ownership of real property under a master deed pursuant to N.J.S.A. 46:8B-1 et seq.

CONDOMINIUM ASSOCIATION — The entity responsible for the administration of a condominium, which entity may be incorporated or unincorporated. Also known as Condo Association.

CONFERENCE CENTER — A facility used for conferences and seminars, which may include accommodations for sleeping, food preparation and eating, recreation, resource facilities and meeting rooms. Conference centers may be commercial ventures providing space for corporate, government, social or other types of meetings, or they may be maintained by large institutions, such as universities or corporations.

CONSTRUCTION — The erection of a new principal or accessory building or structure on a lot or property; alterations and the act of creating an addition to an existing building or structure.

CONSTRUCTION OFFICIAL — The Construction Official of the City of Jersey City.

CONTINUING CARE RETIREMENT COMMUNITY — The provisions of lodging and nursing, medical or other health related services at the same or another location to an individual pursuant to an agreement effective for the life of the individual or for a period greater than one year, including mutually terminable contracts, and in consideration of the payment of an entrance fee with or without other periodic charges. A fee which is less than the sum of the regular periodic charges for one year of residency is not considered an entrance fee.

CONTRACTOR'S WORKSHOP — A place where a licensed contractor may store and utilize tools, equipment and materials that are used in the trade for which the contractor is licensed. Storage of hazardous materials, junk, inoperable vehicles, or equipment or materials that are not used in the trade shall not be permitted. Outdoor storage and use of tools or equipment shall not be permitted.

CONTRIBUTING PROPERTY — A resource in a historic district or cluster that contributes to the district's or clusters historical significance through location, design, setting, materials, workmanship, feeling and association and which shall be afforded the same considerations as landmarks.

CONVENTIONAL — Development other than planned development.

CORNICE — Projecting ornamental molding along the top of a building, wall or storefront.

COUNTY MASTER PLAN — A composite of the plan elements for the physical development of Hudson County, with the accompanying maps, plats, charts and descriptive and explanatory matter adopted by the County Planning Board.

COUNTY PLANNING BOARD — The Hudson County Planning Board.

COURTYARD — An open space which is designed and used for passive recreational purposes.

CRAFTSPERSON —A person who practices a trade or handicraft as an artisan, and who engages in the production of their work, design or objects as a career.

CULTURAL — Activities or acts related to the past or present social and material traits of a group or groups of people.

CURB CUT — The opening along the curb line at which point vehicles may enter or leave the roadway. May also be spelled curbcut. **[Added 10-13-2022 by Ord. No. 22-084]**

CUT AND FILL — The excavating of rock fragments and mineral grains, including soil, in one place and depositing of it as fill in adjacent place.

CREDITABLE SQUARE FOOT — A term used in providing a basis for bonuses for buildings and those areas improved by the owners beyond those required by any city ordinance and are accessible, unobstructed, improved, usable areas for their intended purpose.

CYBERHOTELS/TECHOTELS/SERVERFARMS/TELECOMMUNICATION CENTERS — See Data Centers.

DATA CENTERS — A facility used to house computer systems and associated components, such as telecommunications and storage systems.

DAYCARE CENTER — A facility providing for the care, supervision, and protection of preschool children.

DAYCARE CENTER, ADULT — a facility for the supervised care of adults with physical or mental limitations, providing activities such as meals and socialization one or more days a week during specified daytime hours, and which may also include care by ancillary medical staff.

DAYS — Calendar days.

DEAD-END STREET — A street or portion of a street which is accessible by a single means of ingress and egress.

DECK — A raised accessory structure more than one and one-half feet above finished grade, supported by either pillars or posts or walls, and which allows water to pass through slats or openings. **[Amended 6-24-2020 by Ord. No. 20-044]**

DEMOLITION — The dismantling or razing of all or part of a building, structure, object, site or landscape feature including interior spaces and all operations incidental thereto.

DENSITY — The permitted number of dwelling units per gross area of land to be developed.

DESIGNATED REPRESENTATIVE — That person or office so named by the reviewing board to dispense, receive and classify any development applications.

DETACHED SINGLE-FAMILY — A dwelling for one family or household that is not attached to any other dwelling by any means and which is occupied or is intended to be occupied for residence purposes by one housekeeping unit. **[Added 10-13-2022 by Ord. No. 22-084]**

DEVELOPABLE AREAS — Upland areas or pier areas not dedicated to public rights-of-way. **[Added 10-13-2022 by Ord. No. 22-084]**

DEVELOPER — The legal or beneficial owner or owners of a lot or of any land included in a proposed development, including the holder of an option or contract to purchase, or other person having an enforceable proprietary interest in such land.

DEVELOPMENT — The division of a parcel of land into two or more parcels; the construction, reconstruction, conversion, structural alteration, relocation or enlargement of any building or other structure; any mining, excavation, landfill or land disturbances and any use, change in use or extension of use of land for which permission may be required pursuant to N.J.S.A. 40:55D-1 et seq.

DEVIATION — Used in Redevelopment Plans; identical to a variance pursuant to N.J.S.A. 40:55D-70.c.

DIRECTOR, DIVISION OF CITY PLANNING — The person holding the above title, or the acting director during an interim period of filling the position, or such other licensed professional planner on the staff of the Division of City Planning who has received written authority from the Director to carry out specified duties on behalf of the Director.

DISTRICT — A geographically definable area, possessing a significant concentration, linkage or continuity of buildings, objects, sites, structures or landscape features united by past events or aesthetically by plan or physical development which may also comprise individual elements separated geographically but thematically linked by association or history.

DORMITORY — A building to provide sleeping and living accommodations with sanitary and general living facilities designed and used to accommodate students of a university or college.

DRAINAGE — The removal of surface water or groundwater from land by drains, grading or other means and includes control of runoff during and after construction, or development to minimize erosion and sedimentation, to assure the adequacy of existing and proposed culverts and bridges, to induce water recharge into the ground where practical, to lessen non-point pollution, to maintain the integrity of stream channels for their biological functions as well as for drainage, and the means necessary for water supply preservation or prevention or alleviation of flooding.

DRAINAGE RIGHT-OF-WAY — The lands required for the installation of stormwater sewers or drainage ditches or required along a natural stream or watercourse for preserving the channel and providing for the flow of water therein to safeguard the public against flood damage.

DRIVEWAY — A paved or unpaved area used for ingress or egress of vehicles and allowing access from a street to a lot, building or other structure or facility.

DWELLING — A building that is designed or used exclusively as the living quarters for one or more housekeeping units.

DWELLING UNIT — A room or series of connected rooms containing living, cooking, sleeping and sanitary facilities for one housekeeping unit. The "dwelling unit" shall be self-contained and shall not require passing through another dwelling unit or other indirect route to get to any portion of the dwelling unit, nor shall one dwelling unit require shared facilities with another dwelling unit. Hotel facilities or other facilities providing temporary accommodations shall not be considered dwelling units.

EASEMENT — A grant of one or more of the property rights by the property owner to and/or of rote use by the public or another person, entity, or property.

EFFECT — A change in the quality of the historical, architectural, archaeological or cultural significance of a resource or in the characteristics that qualify the resource as historically important.

EFFECT, ADVERSE — A negative change in the quality of the historical, architectural, archaeological or cultural significance of a landmark or historic district or in the characteristics of a landmark or historic district that are historically important.

ELECTRONIC COMMUNICATIONS EQUIPMENT — Any electronic device used to send or receive information.

EMBANKMENT — A man-made or natural deposit of soil, rock or other materials.

ENCROACHMENT — (1) An area beyond the building line or build to line into which certain building features protrude. Typical encroachments may include overhangs, bays, oriels, fire escapes, or other elements that commonly protrude beyond the façade of the building. See additional ENCROACHMENT definitions below. (2) Certain building features that extend beyond a street line of a lot into a street or right-of-way. **[Added 10-13-2022 by Ord. No. 22-084]**

ENCROACHMENT, CANTILEVERED - These are building features like awnings, canopies, oriels (bay windows which are not grounded), and balconies. **[Added 10-13-2022 by Ord. No. 22-084]**

ENCROACHMENT, ENCLOSED - These are building features that expand the interior square footage of a dwelling or habitable space like enclosed porches, oriels, overhangs, and bay windows. **[Added 10-13-2022 by Ord. No. 22-084]**

ENCROACHMENT, GROUNDED - These are building features like stoops, access ramps, decks, patios, and porches, enclosed porches, and bay windows, but may also include landscape features, fences, walls, or planters. **[Added 10-13-2022 by Ord. No. 22-084]**

ENCROACHMENT, OPEN - These are building features that are exposed to the elements and that do not add habitable square footage like balconies, awnings, canopies, decks, stoops, access ramps, patios, porches (non-enclosed). **[Added 10-13-2022 by Ord. No. 22-084]**

ENGINEERED GREEN WALLS — See LIVING GREEN WALLS. **[Added 6-24-2020 by Ord. No. 20-044]**

ENHANCED TREE GROWTH SYSTEMS — Soil techniques designed to transfer the load from pavement directly to the subsoil rather than the topsoil media. These systems promote additional soil volume for trees than is otherwise available under conventional pavement systems. The three most common systems are suspended pavements, sand-based structural soil systems, and aggregate structured soils. **[Added 6-24-2020 by Ord. No. 20-044]**

ENHANCED TREE GROWTH SYSTEMS, AGGREGATE STRUCTURAL SOILS — Angular gravels that directly support pavement but through which roots may grow. These systems are constructed from load-bearing materials such as aggregate and clay-loam mix or expanded slate with clay-loam mix. Aggregate Structural Soils shall be used as a pathway for roots to reach additional soil volumes across pavement subsurface and not as the only available tree soil volume. **[Added 6-24-2020 by Ord. No. 20-044]**

ENHANCED TREE GROWTH SYSTEMS, SAND-BASED STRUCTURAL SOILS — Pavement over open-graded crushed stone and Sand-Based Structural Soil. Due to the poor water retention capacity of sand, an additional water source is necessary, provided by drainage channels or permeable pavers. Such systems should be designed with passive irrigation only. **[Added 6-24-2020 by Ord. No. 20-044]**

ENHANCED TREE GROWTH SYSTEMS, SUSPENDED PAVEMENTS — Pavement supported through columns or walls, allowing soil placed within the suspended pavements to remain at a compaction level suitable to root growth. **[Added 6-24-2020 by Ord. No. 20-044]**

ENVIRONMENTAL COMMISSION — A municipal advisory body created pursuant to P.L. 1968, c. 245 (C. 40:56A-1 et seq.).

ESSENTIAL SERVICES — Services and utilities needed for the health, safety, and general welfare of the community, such as underground, surface, or overhead electrical, gas, telephone, steam, water, sewerage, and other utilities and the equipment and appurtenances necessary for such system to furnish an adequate level of service for the area in which it is located.

EXISTING ARCHITECTURAL FEATURES — The architectural features existing at the time of designation or architectural features which have been changed subsequent to designation pursuant to a Certificate of Appropriateness/No Effect issued by the Historic Preservation Commission.

FAÇADE — (1) A building's front or any of its exterior walls; (2) A prominent side of a building or structure that has been given special architectural or design treatment to make it more attractive. **[Added 10-13-2022 by Ord. No. 22-084]**

FAÇADE, FRONT PRIMARY — The streetfront building façade which runs roughly parallel to the front lot line(s). For the purposes of yard calculations, projecting accessory structures or encroachments including decks, porches, balconies, fencing, stoops, stairs, and/or other encroachments as

defined in this chapter are excluded. **[Added 10-13-2022 by Ord. No. 22-084]**

FAÇADE, FRONT SECONDARY — In the case of a corner lot in a historic district or historic overlay, the streetfront building façade which runs roughly parallel to the side lot line. **[Added 10-13-2022 by Ord. No. 22-084]**

FAÇADE, REAR — The building façade which is opposite the front primary façade and roughly faces the rear lot line or an alley. In the case of two or more front primary façades, there will be no rear façade but rather two side façades. See Façade, Secondary. **[Added 10-13-2022 by Ord. No. 22-084]**

FAÇADE, SECONDARY — A façade that does not face a street or a public thoroughfare and that does not possess significant architectural features.

FAÇADE, SIDE — The building façade(s) which run roughly parallel to the side lot lines but does not face a street. In the case of two Front Primary Façades, there will be two side façades and no rear façade. See Façade, Secondary.

FAMILY — See HOUSEKEEPING UNIT. **[Added 10-13-2022 by Ord. No. 22-084]**

FAMILY DAY CARE HOME — Any private residence approved by the Division of Youth and Family Services or an organization with which the division contracts for family day care in which child care services are regularly provided to no less than three and no more than five children for no less than fifteen (15) hours per week. A child being cared for under the following circumstances is not included in the total number of children receiving childcare services:

A. The child being cared for is legally related to the provider, or

B. The child is being cared for as part of a cooperative agreement between parents for the care of their children by one or more of the parents, where no payment for the care is being provided.

FENCE — A barrier intended to prevent escape or intrusion; or to mark a boundary, enclose, screen, or separate areas.

FENCE LINE — The established line of existing fences on a street, more or less parallel to the curb line. The fence line may be within the public rights-of-way. **[Added 10-13-2022 by Ord. No. 22-084]**

FENESTRATION — The arrangement and design of windows, doors, or other openings in a building or building façade.

FERRY — A boat or ship that carries passengers across water often along fixed routes on a schedule. **[Added 10-13-2022 by Ord. No. 22-084]**

FINAL PLAT — The final map of all or a portion of the subdivision which is presented to the Planning Board for approval in accordance with these regulations and which, if approved, shall be filed with the county recording officer.

FINANCIAL SERVICES FACILITY — A retail service facility that provides diversified financial and brokerage services to the general public in person and on a walk in basis; offers amenities to encourage pedestrian traffic, such as retail banking services, computer access to brokerage accounts, ATM access to cash accounts, and visible screens with financial information and stock reports. The facility shall be utilized for financial consultation meetings with clients.

FINISH — The visual characteristics, including color, texture and reflectivity of all exterior materials.

FLOOR - A surface or assembly of materials capable of supporting loads imposed upon it by occupants or users, exclusive of roofs. It is sometimes referred to as a "story". **[Added 10-13-2022 by Ord. No. 22-084]**

FLOOR AREA RATIO — The gross floor area or sum of the gross area of all floors of buildings or structures compared to the total area of the site. **[Added 10-13-2022 by Ord. No. 22-084]**

FOOTCANDLE — A unit for measuring illumination equaling the amount of direct light on a surface.

Editor's note—The definition of "Formula business" was removed at the discretion of the editor. The ordinance from which the definition derived, Ord. No. 15-052, was repealed by 19-038, adopted May 8, 2019.

FRONTAGE — See LOT FRONTAGE

GARAGE, PARKING — Buildings or building areas used exclusively for the parking or storing of motor vehicles and which may include manual car washing.

GARAGE, PRIVATE — An accessory building, structure, or use, for the parking of passenger motor vehicles, in which no occupation, business or services for profit is conducted.

GOVERNING BODY — The City Council of the City of Jersey City.

GOVERNMENT AGENCY — Any department, commission, independent agency or instrumentality of the United States, the State of New Jersey, and/or any county, municipal or other governmental unit.

GOVERNMENTAL USES — Public institutions and uses, such as schools, community centers and government-owned or operated buildings, structures or land used for public purposes,.

GRADE, EXISTING — The vertical location of the ground surface at any given point prior to excavating or filling, or the percent of rise or descent of a slope. **[Amended 7-18-2018 by Ord. No. 18-074]**

GRADE, FINISHED — For buildings adjoining one street only, elevation of the established curb at the center of the wall adjoining the street. For buildings adjoining more than one street, the average of the elevations of the established curbs at the center of all walls adjoining the streets. For buildings having no wall adjoining the street, the average level of the ground adjacent to the exterior walls of the buildings. All walls approximately parallel to and not more than 15 feet from the street line are to be

considered as adjoining a street. **[Amended 7-18-2018 by Ord. No. 18-074]**

GREEN AREA RATIO (GAR) — A zoning regulation that integrates sustainable landscape elements into site design to address these environmental concerns. The GAR assigns a weighted score to a building based on the types of landscape and site design features that are implemented and the amount of area they cover. **[Added 6-24-2020 by Ord. No. 20-044]**

GREEN INFRASTRUCTURE — The implementation of various tools, primarily vegetation and soil, to manage stormwater and reduce stormwater runoff. **[Added 6-24-2020 by Ord. No. 20-044]**

GREEN ROOF — A vegetated roof system used in place of a conventional roof which typically involves a water proof membrane and root repellant system, a drainage system, filter cloth, a lightweight growing medium and species appropriate plants.

GROSS FLOOR AREA — The floor area within the inside perimeter of the exterior walls of the building(s) or structure(s) under consideration, inclusive of corridors, stairways, basements, elevators, roofed parking areas, utility spaces, back of house areas, closets, half stories, the thickness of interior walls, columns or other features. Vent shafts, balconies (that project beyond exterior walls), cellars, and courts are not counted toward gross floor area. **[Added 10-13-2022 by Ord. No. 22-084]**

GROUND FLOOR — The floor closest to, but not below, grade.

GROUND FLOOR STREET FRONTAGE (GFSF) — The sum of the horizontal lengths of all exterior walls of a building at ground floor level, inclusive of all windows and doors, and excepting where there is another property between the wall and the street.

GYM — See HEALTH CLUB.

HARVESTED STORMWATER IRRIGATION SYSTEM — Stormwater collected from rooftops or other contributing drainage areas that is directed to storage devices, such as cisterns or rain barrels, and used for landscape irrigation. **[Added 6-24-2020 by Ord. No. 20-044]**

HEALTH CLUB — A meeting place for groups of people for the purpose of engaging in exercise and conditioning of the body for the benefit of physical fitness. All health clubs that are 4,000 square feet or less shall be permitted as Retail Services. **[Amended 1-24-2018 by Ord. No. 18-001]**

HEIGHT, BUILDING — The vertical distance measured to the highest point of a building from the finished grade. A building's highest point shall be determined in accordance with height exceptions, Section 345-60. **[Amended 7-18-2018 by Ord. No. 18-074]**

HELISTOP — Area for landings and takeoffs of helicopters, but shall not include any servicing or parking functions for such crafts. Also known as Heliport.

HIGH-CUBE WAREHOUSING — Facilities used for the receipt, storage and handling of goods, bulk products and materials prior to their distribution to other recipients. These facilities consist of buildings with large floor plates, often subdivided for individual tenants, with a typical ceiling height

of thirty (30) feet or more; they are also characterized by a low employee parking requirement due to a high level of mechanization, truck activities frequently outside of the peak hour of the adjacent street system, and good highway access.

HIGH-RISE APARTMENT BUILDING — A multi-family residential building with nine (9) stories or more.

HISTORIC — A building, structure, object, site or landscape feature having a degree of significance or importance over or at a period of time.

HISTORIC ARCHITECTURAL FEATURES — Architectural features installed or built at the time of construction of the building; architectural features of a type installed or built at the time of construction of similar buildings in similar periods and styles; or architectural features installed or built at the time of a major façade alteration thirty (30) or more years ago.

HISTORIC/CULTURAL RESOURCE — Those buildings, objects, sites, structures or landscape features of historical, cultural, architectural or archaeological importance and the demolition, destruction or alteration of which would constitute an irreplaceable loss to the quality and character of Jersey City; inventoried interior spaces designed or intended to be occupied as part of the structure or which are accessible to the public; such buildings, objects, sites, structures or landscape features, their appurtenances and the property on which they are located are considered historic as defined in this Chapter.

HISTORIC DISTRICT — An area defined as a historic district by City Council, state or federal authority and which may contain within definable geographic boundaries one or more landmarks or clusters, including their accessory buildings, fences and other appurtenances, and natural resources having historical, cultural and archaeological significance and which district may have within its boundaries other buildings or structures, that while not of such historical, cultural, architectural or archaeological significance as to be designated landmarks, nevertheless contribute to the overall visual characteristics of the landmark or landmarks located within the district.

HISTORIC PRESERVATION COMMISSION — The Jersey City Historic Preservation Commission. Also referred to as the "Commission."

HISTORIC SITE — Any real property, man-made structure, natural object or configuration or any portion or group of the foregoing of historical, archaeological, cultural, scenic or architectural significance.

HOME OCCUPATION — An occupation or activity carried out for gain by a resident and conducted as a customary, incidental and accessory use in the resident's dwelling unit or accessory structure located on the lot and is in accordance with Supplementary Zoning Regulations § 345-60(1.2(a)).

HOSPITAL — An institution providing primary health services and medical or surgical care to persons, primarily inpatients, suffering from illness, disease, injury, deformity, and other abnormal physical or mental conditions and including, as an integral part of the institution, related facilities, such as laboratories, outpatient facilities, training facilities, medical offices, and staff residences.

HOTEL — A building designed for occupancy as the more or less temporary place of abode for individuals who are lodged with or without meals, in which there are ten (10) or more guest rooms or suites and in which there may be kitchens in any individual room or suite.

HOUSEKEEPING UNIT — One or more persons living together in one dwelling unit on a nonseasonal basis and sharing living, sleeping, cooking and sanitary facilities on a nonprofit basis.

HOUSE OF WORSHIP — A building used for the assembly of members of a designated faith for religious instruction and worship of a deity such as a church, synagogue, mosque or temple.

IMPROVEMENT PARCEL — A unit of real property that includes a landmark designated under this Chapter and is treated as a single entity for the purpose of levying real estate taxes within the historic district.

INCUBATOR — See BUSINESS INCUBATOR.

INDEPENDENT LIVING — A residential facility where individualized support is provided to residents in forms such as a community director, a social director, and daily on-site assistance.

INDUSTRIAL PARK — An area wherein one or more buildings are erected for industrial purposes in relation to one another as part of an integrated and comprehensively planned total unit, whether or not the buildings are erected simultaneously or over a period of time.

INFILL HOUSING — (1) The construction of a building for residential uses in an area already built up. (2) The construction of a housing unit that resembles in proportion, scale, height, style or bulk the adjacent dwelling units. **[Added 10-13-2022 by Ord. No. 22-084]**

INTERIM USE — A use approved by the Planning Board applied on a temporary basis as prescribed while permanent plans for the area are formulated or implemented.

INTRUSION — A building, object, site, structure or landscape feature which detracts from a landmark, historic district or cluster of historical significance because of its incompatibility with the historic district's or cluster's sense of time and place and historical development; or its incompatibility of scale, height, materials, texture or color, or whose integrity has been irretrievably lost.

INVENTORY, HISTORIC — A systematic listing of cultural, historical, architectural or archaeological resources prepared by the city, state or federal government or a recognized local historic authority, following standards set forth by federal, state and city regulations for evaluation of cultural properties.

JUNKYARD — Any area, lot, land or parcel with or without structures used for the storage, collection, processing, purchase, sale, salvage or disposal of scrap, waste, reclaimable material or debris. Any site with 3 or more unregistered vehicles shall constitute a junkyard.

KIOSK — A small, freestanding structure with one or more open sides such as a newsstand, information booth or telephone booth.

LAND — Including improvements and fixtures on, above or below the surface.

LAND AREA — The area contained within the lot lines of a lot, not including any portion of a street right- of-way.

LANDMARK — Any building, object, site, structure or landscape feature, any part of which is fifty (50) years old or older, which has a special character or special historic or aesthetic interest or value as part of the development, heritage or cultural characteristics of the city, state or nation and which has been designated as a "landmark" pursuant to the provisions of this Chapter.

LANDSCAPE FEATURE — Any grade, body of water, stream, rock, plant, shrub, tree, path, walkway, road, plaza, fountain, wall, sculpture or other form of natural or artificial landscaping.

LAUNDROMAT — An establishment providing washing and drying machines on the premises for rental use to the general public and may include wash and fold or drop off dry cleaning as an accessory use, but shall not include on-site dry cleaning processing.

LIGHT ASSEMBLY — Flexible space suitable for final assembly of finished products for distribution. No manufacturing shall be associated with this use.

LIGHT INDUSTRIAL — Warehousing, wholesaling, shipping and receiving, manufacturing, assembly, processing, research, laboratory testing service, professional and governmental offices, public and quasi-public uses and other operations which do not include the production of petroleum into fuel, oil or other products or chemical processing and storage. Light Industrial uses shall not produce any corrosive, toxic, noxious fumes, glare, electromagnetic disturbances, radiation, smoke, cinders, odors, dust or waste, undue noise or vibration, or other objectionable features so as to be detrimental to the public health, safety, or general welfare, provided however that existing activities not in violation of City, State or Federal law are exempt.

LIGHT RAIL TRANSIT (LRT) — Rail service employing energy efficient light rail vehicles (LRVs) at least partly on shared or semi-exclusive rights-of-way, designed so that other traffic can mingle safely with the LRT operation where desired.

LIVE/WORK UNIT — See WORK/LIVE UNIT.

LIVING GREEN WALLS — Dense pre-engineered vertical vegetative systems consisting of pre-planted panels or modules affixed to a structural wall or frame, and irrigated by harvested stormwater systems that use stored rainwater. **[Added 6-24-2020 by Ord. No. 20-044]**

LOADING SPACE — An off-street space or berth on the same lot with a building or group of buildings for the temporary parking of a commercial vehicle while loading or unloading.

LOGGIA — A gallery or breaking in the façade that can be open to the air on at least one side. Loggias create breaks in the vertical scale of a building and are surrounded by columns or created by a setback or overhang within the façade. The interior of these spaces can be used as common space for these vertical neighborhoods, live work offices, mechanical equipment space, or any number of other uses.

LONG TERM CARE FACILITY/NURSING FACILITY/NURSING HOME — A facility that is licensed by the Department of Health to provide health care under medical supervision and continuous nursing care for twenty-four (24) or more consecutive hours to two or more patients who do not require the degree of care and treatment which a hospital provides and who, because of their physical or mental condition, require continuous nursing care and services above the level of room and board.

LOT — A tract or parcel of land established by a plat, deed, or otherwise, but not including any portion of a street, which tract or parcel of land is legally separate from any other tract or parcel of land. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT, CAP — A lot that has contiguous frontage upon three streets, two of which are parallel or roughly parallel. A regular cap lot has three front lot lines, one side lot line, and one rear lot point (located at the midpoint of the side lot line). When no standard is specified for cap lots in the zone or district, any standard for corner lots in that zone or district shall apply. See LOT TYPE DIAGRAM, LOT LINE DIAGRAM, LOT WIDTH AND DEPTH DIAGRAM, and REAR YARD DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT, CORNER — (1) A lot on the junction of and abutting two or more intersecting streets where the interior angle of intersection is less than one hundred thirty-five (135) degrees. A regular corner lot has two front lot lines, two side lot lines, and one rear lot point. See LOT TYPE DIAGRAM, LOT LINE DIAGRAM, LOT WIDTH AND DEPTH DIAGRAM, and REAR YARD DIAGRAM. (2) A lot, in a historic district or historic overlay, on the junction of and abutting two or more intersecting streets where the interior angle of intersection is less than one hundred thirty-five (135) degrees. In this instance: (a) the front lot line and lot width shall be the street line with lesser frontage; (b) the lot depth shall be the greater lot dimension; (c) there shall be no rear lot point; (d) the rear lot line shall be the opposite the front lot line; and (e) the secondary front façade shall be treated as a side lot line. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT, FLAG — A lot that is categorically an interior lot but with two distinct parts, the flag and the pole. The pole is narrower than the flag and connects to the street. The flag is often irregularly shaped and shares boundaries with numerous other lots. A typical flag lot has one front lot line, four side lot lines, and one rear lot lines. See LOT TYPE DIAGRAM and LOT LINE DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT, INTERIOR — A lot other than a cap lot, corner lot, or through lot. A regular interior lot has one front lot line, two side lot lines, and one rear lot line. See LOT TYPE DIAGRAM and LOT LINE DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT, THROUGH — (1) A lot that fronts upon two parallel (non-intersecting) streets. In this instance, a through lot has two front lot lines and two side lot lines. (2) A lot that fronts on two intersecting streets but is not a corner lot. In this instance, a through lot has two front lot lines, four side lot lines, and one rear lot point. See LOT TYPE DIAGRAM, LOT LINE DIAGRAM, and REAR YARD DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT, WHOLE BLOCK - A lot that has contiguous frontage upon rights-of-way along all lot line boundaries. A whole block lot only has front lot lines. When no standard is specified for whole block lots in the zone or district, any standard for corner lots in that zone or district shall apply. See LOT TYPE DIAGRAM and LOT LINE DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT AREA — The total area within the lot lines of a lot but not including any street rights-of-way.

LOT CONSOLIDATION — An action eliminating lot lines from contiguous lots.

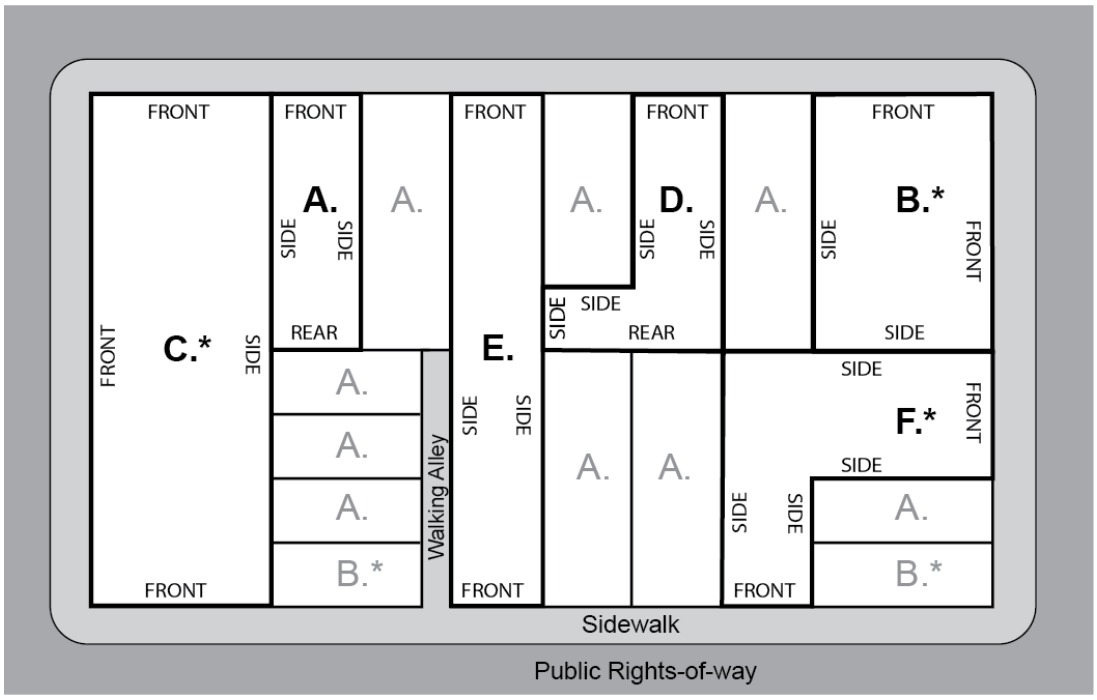
LOT COVERAGE — The square footage or other area measurements by which all buildings and impervious surfaces occupy a lot as measured on a horizontal plane around the periphery of the foundations and paved areas, and including the areas under the roof of any structure.

LOT DEPTH — (1) For interior lots and flag lots, the shortest horizontal distance between the street line and a line drawn parallel to the street line through the midpoint of the rear lot line. (2) For corner lots and through lots, the dimension between a street line and a parallel lot line. Corner lots and through lots on intersecting streets have two lot depths. See LOT, CORNER regarding historic districts and historic overlays. (3) For cap lots, the distance between midpoint of the side lot line and the parallel street line. (4) For whole block lots, there is no lot depth. See LOT TYPE DIAGRAM, LOT LINE DIAGRAM, LOT WIDTH AND DEPTH DIAGRAM, and REAR YARD DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT FRONTAGE — That portion of a lot extending along a street line.

LOT LINE — Any line forming a portion of the exterior boundary of a lot and the same line as the street line for that portion of lot abutting a street. "Lot lines" extend vertically in both directions from ground level.

LOT LINE DIAGRAM — See image below. See LOT, CORNER, regarding historic districts and historic overlays. **[Added 10-13-2022 by Ord. No. 22-084]**



A. Interior Lots - one front lot line, two sides lot lines, one rear lot line
B. Corner Lots - two front lot lines, two side lot lines, one rear lot point
C. Cap Lots - three front lot lines, one side lot line, one rear lot point
D. Flag Lots - one front lot line, three side lot lines, one rear lot line
E. Through Lots (parallel streets) - two fronts lot lines, two sides lot lines
F. Through Lots (intersecting streets) - two fronts lot lines, two side lot lines, one rear lot point

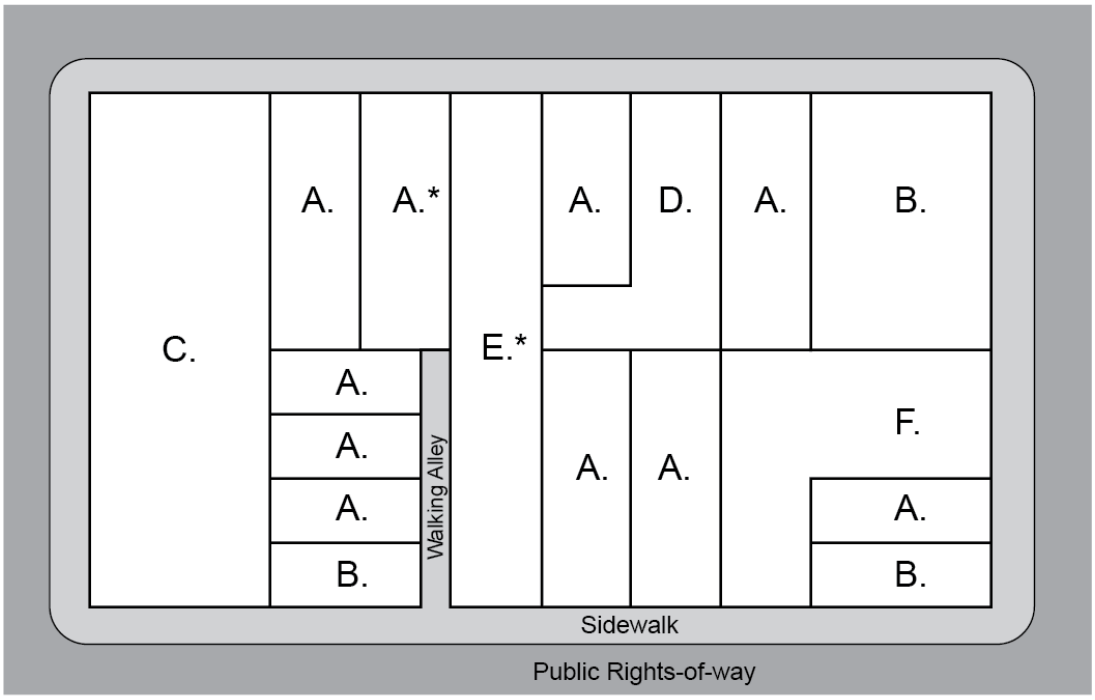
*rear lot point not shown

LOT LINE, FRONT — The lot line separating a lot from a street right-of-way, also referred to as a "street line." See LOT TYPE DIAGRAM and LOT LINE DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT LINE, REAR — The lot line opposite and most distant from the front lot line, or the most distant point at which the side lot lines meet as measured from the point at which the front lot lines meet. See LOT TYPE DIAGRAM, LOT LINE DIAGRAM, and REAR YARD DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT LINE, SIDE — Any lot line other than a front or rear lot line. See LOT TYPE DIAGRAM and LOT LINE DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

LOT TYPE DIAGRAM — see image below. **[Added 10-13-2022 by Ord. No. 22-084]**

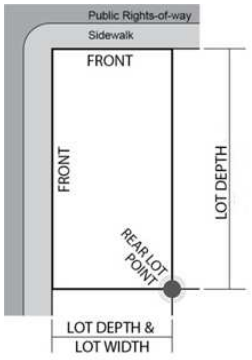


A. Interior Lots
B. Corner Lots
C. Cap Lots
D. Flag Lots
E. Through Lots (parallel streets)
F. Through Lots (intersecting streets)

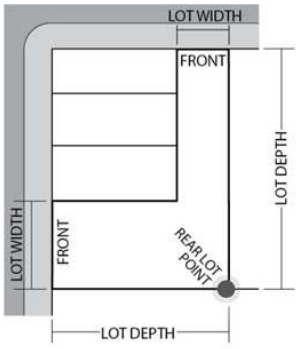
*walking alley frontage does not change lot designation unless the subject parcel was part of the major subdivision to create, extend or widen the walking alley.

LOT WIDTH — (1) For interior lots and flag lots, the straight and horizontal distance between side lot lines at the street line. (2) For corner lots, the shortest distance between any two lot lines at the street line. See LOT, CORNER regarding historic districts and historic overlays. (3) For whole block lots, the shortest distance between any two lot lines at the street line. (4) For through lots, the distances between side lot lines at the street lines. Through lots have two lot widths. (5) For cap lots, the greatest dimension of a street line. See LOT TYPE DIAGRAM, LOT LINE DIAGRAM, and LOT WIDTH AND DEPTH DIAGRAM. **[Amended 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]**

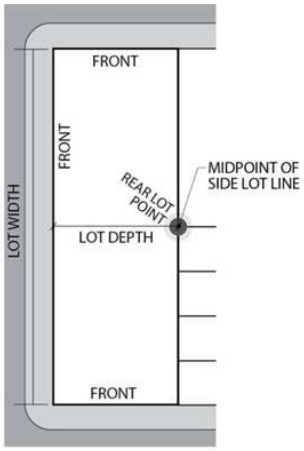
LOT WIDTH AND DEPTH DIAGRAM — see image below. See LOT, CORNER regarding historic districts and historic overlays.



CORNER LOT



THROUGH LOT
(INTERSECTING STREETS)



CAP LOT

MAINTENANCE GUARANTEE — Any security which may be accepted by a municipality for the maintenance of any improvements required by the Municipal Land Use Law, including but not limited to surety bonds and letters of credit under the circumstances specified in Section 16 of P.L. 1991, c. 256 (C. 40:55D-53.5), and cash.

MARINA — A shorefront development that provides private and commercial pleasure craft mooring, launching and fueling.

MARINA, FULL SERVICE — A shorefront development that provides private and commercial pleasure craft mooring, launching, fueling, repair, storage and on-shore service facilities.

MARINA SERVICES — Commercial uses associated with the operation of a marina. These shall include, but not be limited to, bait and tackle shops, yacht clubs, up-land security posts but shall not include boat repair or storage or other similar uses.

MARQUEE — A metal rooflike, permanent structure often containing a signboard that projects from the wall of a building, over an entrance to a theatre or other building.

MASS TRANSIT FACILITY — A fixed route and/or station used to facilitate the transportation of people (as opposed to goods) on a fixed route and fixed schedule basis generally on conveyances such as buses, rapid-transit vehicles and commuter rail facilities.

MATCH — Either an exact or an approximate replication. If not an exact replication, the approximate replication shall be so designed as to achieve a harmonious result which exhibits the color, texture and dimensions of the original feature(s).

MAY — Permissive action

MAYOR — The chief executive of the City.

MECHANICAL EQUIPMENT — Any device below, above, or within a structure or on a lot which provides necessary support service for that structure. Mechanical equipment shall include but not be limited to heating and cooling units, and elevator bulkheads.

MEZZANINE — An intermediate floor placed in any story or room. For the purposes of zoning, a mezzanine, no matter the size, shall be counted as a story in determining the height of a building. **[Amended 7-18-2018 by Ord. No. 18-074]**

MID-RISE APARTMENT BUILDING — A multi-family residential building with three (3) to eight (8) stories and more than four dwelling units.

MIXED USE — A lot or structure containing more than one principal zoning use.

MOBILE FOOD VENDOR — A business that sells food or beverages from a vehicle such as a truck, van or pushcart, whether such food or beverages are prepared on site or prepared elsewhere and transported to the site of the sale. **[Added 4-22-2015 by Ord. No. 15-048]**

MOBILE HOME — A dwelling unit manufactured in one or more sections, designed for long-term occupancy; containing living and sleeping accommodations, a flush toilet, a tub or shower, bath and kitchen facilities with plumbing and electrical connections provided for attachment to outside systems; and designed to be transported after fabrication on its own wheels, or on flatbed or other trailers, arriving at the site where it is to be occupied as a dwelling complete, usually including major appliances and furniture, and ready for occupancy except for minor and incidental unpacking and assembly operations. Travel trailers and campers are not considered "mobile homes."

MORTUARY — An establishment with facilities for the preparation of the dead for burial or cremation, for the view of the body, and for funerals.

MULTI-FAMILY BUILDING — A building containing three or more dwelling units that share common horizontal and vertical separations. May also be referred to as Multi-unit Building or Multi-unit Residential. **[Added 10-13-2022 by Ord. No. 22-084]**

MUNICIPALITY — City of Jersey City.

MLUL — The Municipal Land Use Law, N.J.S.A. 40:55D-1 et seq.

MUNICIPAL AGENCY — The Planning Board, Board of Adjustment, or the City Council when acting pursuant to the Municipal Land Use Law.

MUNICIPAL RESIDENT — A person who is domiciled in Jersey City.

MUNTINS — In windows, doors and storefronts, framing members that subdivide a glazed area into individual panes, lights or panels.

MURAL — An art installation, visible to the public right-of-way, consisting of paint, and adhered directly to the wall of a building or structure.

NARCOTIC AND DRUG ABUSE TREATMENT CENTER — Any licensed institution, facility, place, building or agency which supplies care, treatment, services, maintenance, accommodation or board, or any of these services in a group setting primarily or exclusively for individuals having any type of habitation, dependency or addiction to the use of any kind of controlled substance, alcohol, narcotic drug or other type of drug; and which provides guidance, supervision and personal services which enable the drug user, dependent or addict to move into independent living in normal surroundings, but does not provide those services that can be rendered only by a physician or within the confines of a hospital, and does not provide a permanent residence but only a temporary one.

NAMEPLATE — Identification located on the premises, giving the name or addresses or both of the owner or occupant of a building or premises.

NET LEASABLE AREA — The square footage of the area as measured from within the inside surface of the outer glass or finished walls of the building to the opposite walls, or, in the case of partial floor leases, to the midpoint of internal dividing walls, excluding only the areas (service areas) within the outside walls used for elevator mechanical rooms, building stairs, elevator shafts, flues, vents, stacks, and vertical ducts, but including all columns within the leased area and any such areas which are for the specific use of the particular tenant such as special stairs or elevators, plus a proportionate allocation of the square footage of the building's elevator mechanical rooms, common areas on the same floor of the leased premises, and the ground floor lobby.

NEW URBANISM — Interrelated patterns of land use, transportation, and urban forms used to create communities that promote: neighborliness, environmental sustainability, economic efficiency and prosperity, historic preservation, participation in civic processes, and human health. New Urbanism practices apply to all scales of community, from the region to the neighborhood. Communities developed utilizing New Urbanism principals usually take the form of an urban street grid, or modified street grid system, in order to provide a more even distribution of vehicular traffic and a more varied and convenient pedestrian network.

NIGHTCLUB — An establishment in which music, dancing, and/or live entertainment is conducted and which may also dispense liquor and/or food.

NONCONFORMING BUILDING OR STRUCTURE — A building or structure which, in its location upon a lot or in its size, does not conform to the regulations of this Chapter for the district in which it is located.

NONCONFORMING LOT — A lot of record which does not have the minimum width, frontage or depth or contain the minimum area or shape factor requirements for the district in which it is located.

NONCONFORMING USE — A use or activity which was lawful prior to the adoption, revision or amendment of a zoning ordinance or redevelopment plan, but which fails to conform to the requirements of the zoning district or redevelopment plan in which it is located by reasons of such adoption, revision or amendment.

NONCONTRIBUTING — A building, object, site or structure which neither adds to nor detracts from a historic district's or cluster's sense of time and place and historical development.

NOTICE TO PROCEED — A document attesting that an emergency situation exists, as certified by the Building or Zoning/Administrative Officer, requiring an immediate issuance of a building permit or other permit to commence to stabilize, secure, repair or protect a landmark building, structure, object, site or landscape feature.

NURSING FACILITY/NURSING HOME — See LONG TERM CARE FACILITY.

OCCUPATION — Gainful employment in which an individual engages to earn compensation.

OFFSITE -Located outside the lot lines of the lot in question but within the property of which the lot is a part, which is the subject of a development application or the closest half of the street or right-of-way abutting the property of which the lot is a part.

OFF-TRACT — Not located on the property which is the subject of a development application nor on the closest half of the abutting street or right-of-way.

OFFICE — A place for the transaction of business where reports are prepared, records are kept and services rendered, but where no retail sales are offered and where no manufacturing, assembly or fabricating takes place. **[Amended 5-25-2022 by Ord. No. 22-043]**

OFFICE, MEDICAL — A professional office where the services of one or more practitioner can be obtained and where patients are studied or treated on an outpatient basis and where no overnight accommodations are provided. Medical office is permitted wherever Office is a permitted use. Veterinarian offices are considered medical offices. Medical offices are subject to all licensing and code requirements from all relevant government regulations, including but not limited to those from the Department of Health and the State Uniform Construction Code. **[Amended 5-25-2022 by Ord. No. 22-043]**

OFFICIAL MAP — A map adopted by ordinance which shall be deemed to be conclusive with respect to the location and width of streets, public parks and playgrounds, and drainage rights-of-way shown thereon (N.J.S.A. 40:50D-32).

ON-SITE — Located on the lot in question and excluding any abutting street or right-of-way.

ON-TRACT — Located on the property that is the subject of a development application or on a contiguous portion of a street or right-of-way.

OPAQUE SCREENING — Any type of screening that completely obscures that which is to be hidden from view; this may include, but shall not be limited to, solid masonry walls, reflective glass, etc.

OPEN SPACE — Any parcel or area of land or water set aside, dedicated, designated or reserved for public or private use or enjoyment, or for the use and enjoyment of owners and occupants of land

adjoining or neighboring such open space; such areas may be improved with only those buildings, structures, streets and off-street parking and other improvements that are customary and incidental to the openness of the land and may be designed for either passive or active recreational use.

ORDINARY REPAIRS — Replacement or renewal of existing fabric of a building or a structure, site, object or landscape feature or of parts of the service equipment therein, with the same material or equipment parts, that are made in the ordinary course of maintenance and that do not in any way affect health, fire or structure safety of the landmark building, structure, site, object or landscape feature; or do not affect the design or integrity of the historic fabric of the landmark building, structure, object, site or landscape feature.

OUTDOOR STORAGE — The storage of goods and materials outside of any building or structure.

OWNER — An individual, firm, association, syndicate, co-partnership or corporation having sufficient proprietary interest in the land involved in an Application for Development to commence and maintain proceedings to develop the same under this Chapter.

PARCEL — A lot or contiguous group of lots in a single ownership or under single control.

PARK — A form of public open space either publicly or privately owned and available for recreational, educational, cultural or aesthetic use, which may include, but not be limited to, amenities such as landscaping, lighting, benches, fountains, recreational equipment, etc.

PARKING, COMMERCIAL — Any parking facility open to the public where a fee is charged and where the persons parking therein do not necessarily live or work in a building or development which the parking lot, area, or structure is intended to serve.

PARKING, COMMUTER — a commercial lot for the parking of personal passenger vehicles or buses, while occupants of the vehicles travel by trolley, train, boat, bus, van, foot, or other means to another destination for purposes of work or pleasure.

PARKING, PUBLIC — see PARKING, COMMERCIAL.

PARKING, SHARED — Parking facilities which utilize the same parking spaces to accommodate the parking needs for two or more separate and distinct users.

PARKING, VALET (ATTENDANT) — Parking facilities in which an attendant parks and retrieves vehicles; aisles between spaces usually do not exist.

PARKING SPACE — An accommodation for the parking of one licensed motor vehicle. A standard parking space measures 8.5' × 18', exclusive of driveways, access drives, fire lanes, and public rights-of-way.

PARKING SPACE, COMPACT — An accommodation for the parking of one licensed motor vehicle. A compact parking space measures 8' × 16', exclusive of driveways, access drives, fire lanes, and public rights-of-way.

PARLOR FLOOR — The first floor above grade in a dwelling with a basement.

PASEO — An uncovered public walkway or passageway.

PATIO — A level, surfaced area at or within one and one-half feet of the finished grade, not covered by a permanent roof. It may be of wood or masonry construction.

PENTHOUSE — The uppermost story of a building. **[Amended 7-18-2018 by Ord. No. 18-074]**

PERFORMANCE GUARANTEE — Any security that may be accepted by a municipality to assure that improvements required as part of an application for development will be satisfactorily completed.

PERMEABLE PAVEMENT — A pavement system that forces water to filter through the grout between pavers to infiltrate the soil. **[Added 6-24-2020 by Ord. No. 20-044]**

PERMITTED USE — Any use of land or buildings as permitted by this Chapter in the zone in which it is situated.

PERVIOUS PAVEMENT — A pavement system that allows water to infiltrate through the pavement into an underground stone reservoir to provide temporary storage before infiltrating the soil. Pervious pavement includes pervious asphalt, pervious concrete, and interlocking pavers. **[Added 6-24-2020 by Ord. No. 20-044]**

PLANNING BOARD — The Jersey City Planning Board established pursuant to the N.J.S.A. (C. 40:55 D- 23).

PLAT — A map or maps of a subdivision.

PLAT, PRELIMINARY — The preliminary map indicating the proposed layout of the subdivision which is submitted to the Reviewing Board for approval.

PLAZA — An open area for the general public's use that may serve as a point of assembly and/or a physical link between two buildings, and which is designed for pedestrian access from the street level(s) which it abuts and which has improved surfacing, sitting areas, landscaping, and public art.

PORCH — A roofed open area, which may be screened or enclosed and is attached to or part of a principal structure. See ENCROACHMENT. **[Added 10-13-2022 by Ord. No. 22-084]**

POROUS PAVEMENT — A grid paver system filled with dirt, sand, or gravel that provides grass reinforcement, ground stabilization and gravel retention. **[Added 6-24-2020 by Ord. No. 20-044]**

PREDOMINANT FRONT YARD SETBACK — The most frequently occurring setback on the block frontage.

PRELIMINARY APPROVAL — Conferral on the applicant the following rights for a three-year period from the date of preliminary approval (N.J.S.A. 40:55D-46)

A. That the general terms and conditions on which the preliminary approval was granted shall not be changed.

B. That the applicant may submit for final approval on or before the expiration of this three- year period.

PRINCIPAL BUILDING — A building in which the principal use of the lot is conducted.

PRINCIPAL USE — The primary use of land or structures as distinguished from an accessory use.

PROFESSIONAL REVIEW — Technical review of applications for development by staff or retained consultants, who are considered competent and prepared by virtue of their expertise, training, education and/or licensure to undertake such review for the land use boards of the City of Jersey City. All professional review shall take place under the supervision of New Jersey licensed professional planners, engineers, architects, landscape architects or surveyors.

PROJECTIONS - An area beyond the building line or build to line into which certain building features protrude. Typical projections may include cornices, eaves, leaders, sills, headers, or other elements that commonly protrude beyond the façade of the building. **[Added 10-13-2022 by Ord. No. 22-084]**

PUBLIC AREAS — Public parks, playgrounds, trails, paths and other recreational areas; other public open spaces; scenic and historic sites; and sites for schools and other public buildings and structures.

PUBLIC IMPROVEMENTS — Public parks and open space, streets, sidewalks, water and sewer lines and other similar spaces and infrastructure.

PUBLIC/QUASI-PUBLIC USE — Any use that enables a public or private institution to carry out its functions to preserve or promote public health, safety and welfare and shall include, but not be limited to, religious organizations, public and private schools, civic and fraternal organizations, nursing homes, hospitals, public works and government buildings, daycare facilities and non-profit organizations.

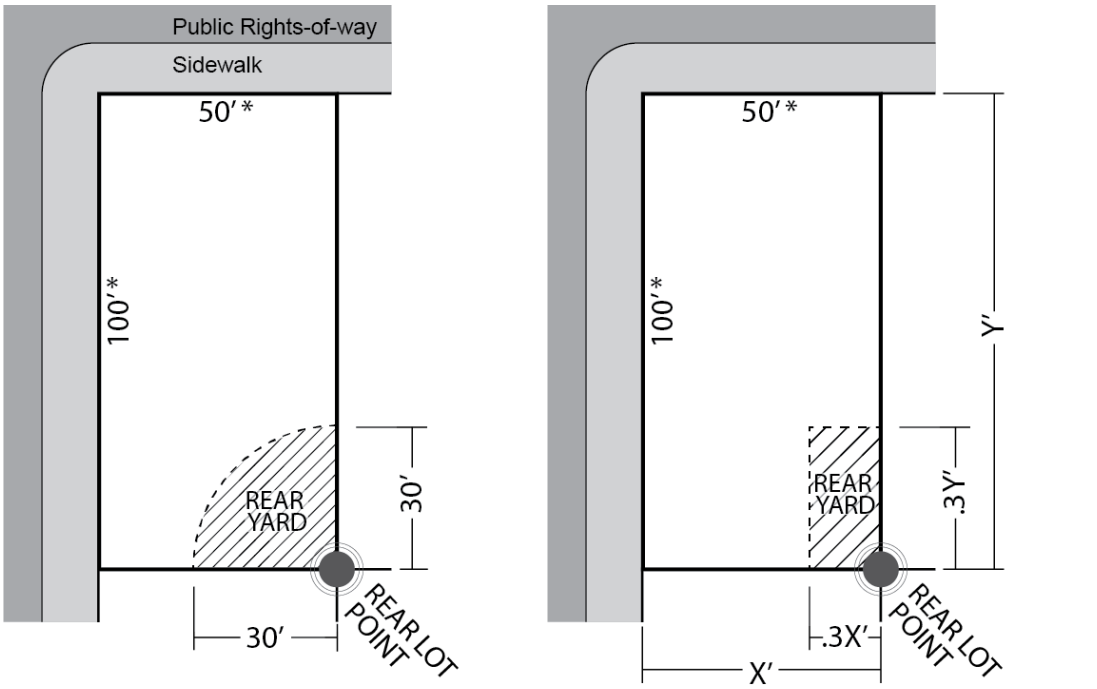
PUBLIC UTILITY — Any public utility regulated by the Board of Regulatory Commissioners and defined pursuant to C. 48:2-13.

QUORUM — A majority of the full authorized membership of a municipal agency.

RAIN GARDEN — A shallow planted depression designed to retain or detain stormwater before it is infiltrated or discharged downstream. **[Added 6-24-2020 by Ord. No. 20-044]**

REAR LOT POINT - See LOT LINE, REAR. See YARD, REAR. See REAR YARD DIAGRAM. See LOT WIDTH AND DEPTH DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

REAR YARD DIAGRAM — See image below. See LOT, CORNER regarding historic districts and historic overlays. **[Added 10-13-2022 by Ord. No. 22-084]**



CORNER LOT
(REAR YARD = 30FT)

CORNER LOT
(REAR YARD = 30% OF LOT DEPTHS)

* These lot dimensions are provided for demonstrative purposes only

RECONSTRUCTION — The act or process of reassembling, reproducing or replacing by new construction the form, detail and appearance of a property and its setting as it appeared at a particular period of time by means of the removal of later work, or by the replacement of missing earlier work or by reuse of original materials for historical preservation purposes.

REDEDICATED (Street or Right-of-Way) — A public right-of-way once having been vacated for private use and returned by ordinance to its previous status as a public right-of-way.

REHABILITATION — The act or process of returning a building, object, site, structure or landscape feature to a state of utility through repair, remodeling or alteration that makes possible an efficient contemporary use while preserving those portions or features of the building, object, site or structure that are significant to its historical, architectural and cultural values for historical preservation purposes.

RESTAURANT — Any establishment, however designated, at which food is sold for consumption on premises, normally to patrons seated within an enclosed building. However, a snack bar at a public or

community playground, playfield, park, or swimming pool operated solely by the agency or group operating the recreation facilities, and for the convenience of patrons of the facility, shall not be deemed to be a restaurant.

RESTAURANT, CATEGORY ONE — A restaurant which is designed for and whose primary function and operation is the preparation and service by employees of meals to a customer or customers seated at the table or bar at which the meal is consumed. A category one restaurant operates without substantial carry-out or delivery service; with no drive-thru, drive-in, or service in vehicles. **[Amended 9-9-2015 by Ord. No. 15-115]**

RESTAURANT, CATEGORY TWO — A restaurant or mobile food vendor whose primary function is the preparation and service by employees of food to customers as part of an operation designed to include substantial carry-out service; delivery service; self-service, and which may, but is not required to, include on-premises consumption, except that no drive-in, drive-thru, or service in vehicles is permitted. **[Amended 4-22-2015 by Ord. No. 15-048]**

CAFÉ - RESTAURANT, CATEGORY TWO — A small-scale restaurant, with limited seating, engaged in the selling of light meals and drinks. A café is designed to operate for substantial carry-out service; delivery service; self-service; counter service, and which may, but is not required to, include on-premise consumption. No commercial kitchen or ventilation systems are permitted. **[Added 9-9-2015 by Ord. No. 15-115]**

RESTAURANT, CATEGORY THREE — A restaurant whose primary function is the preparation and service by employees of food to customers as part of an operation which may be designed with carry-out service; delivery service; self-service; on-premise consumption; or customer pick-up service utilizing a vehicular drive-thru.

RESTAURANT, DRIVE-IN — An establishment where the majority of the patrons purchase food, soft drinks, ice cream, and similar confections for takeout or consumption on the premises but outside the confines of the principal building, or in automobiles parked upon the premises, regardless of whether or not, in addition thereto, seats or other accommodations are provided for the patrons.

RESTORATION — The act or process of accurately recovering the form and details of a building, object, site or structure and its setting as it appeared at a particular period of time by means of the removal of later work or by the replacement of missing earlier work.

RETAIL BROKERAGE — See FINANCIAL SERVICES FACILITY.

RETAIL SALES — An establishment engaged in selling goods or merchandise to the general public for personal or household consumption and rendering services incidental to the sale of such goods. In no instance shall bars or service stations be considered as retail sales.

RETAIL SERVICES — An establishment providing services, as opposed to products, to the general public for personal or household use. In no instance shall drug rehabilitation centers be considered as retail services.

RIGHT-OF-WAY — A strip of land used or intended to be used as a street, lane, alley, pedestrian way, bikeway, railway, or some combination thereof; for the purpose of conveying people and/or goods, whether publicly or privately owned, and as indicated on the municipal tax map or created by subdivision or an easement granted to the City of Jersey City for public access and duly filed and recorded in the office of the Hudson County Registrar. **[Added 7-16-2014 by Ord. No. 14-077]**

ROOF DECK — An amenitized roof space atop the uppermost floor of a building. In a high-rise configuration with a tower and a base/podium component, the area atop the base/podium shall be considered a roof deck. Roof decks may be used for common recreation space or private recreation space. See TERRACE. **[Added 10-13-2022 by Ord. No. 22-084]**

ROOMING HOUSE — See BOARDING HOUSE.

ROW HOUSE — see TOWNHOUSE.

SANITARY LANDFILL — The means by which refuse is deposited, compacted and covered with clean fill and meeting all the standards of the State of New Jersey and the City of Jersey City and the New Jersey Meadowlands Commission in the areas of their jurisdiction.

SATELLITE DISH ANTENNA — A device or instrument, designed or used for the reception of television or other electronic communications signal broadcast or relayed from an earth satellite. It may be solid, open mesh, or bar-configured structure in the shape of a shallow dish or parabola.

SATELLITE EARTH STATION — A Satellite Dish Antenna larger than 3 feet in diameter.

SCHOOL — An institution of academic education which is designed, constructed or used for education of students up to and through the secondary level.

SCREENING — The decorative fencing, evergreen, or other vegetation maintained for the purpose of concealing from view the area behind such structures, evergreen, or other vegetations.

SELF STORAGE FACILITY - A facility consisting of individual, self-contained units leased to individuals, organizations, or small businesses for self-service storage of personal property. No commercial warehousing is permitted. Self storage shall not be considered retail sales or service. **[Added 3-11-2015 by Ord. No. 15-025]**

SENIOR HOUSING — Housing that is located and designed to meet the special needs and accommodate the changing living arrangements of an elderly population, aged 62 and older.

SERVICE STATION — A place where motor fuel, lubricants and miscellaneous accessories for motor vehicles are sold and dispensed and where services may be rendered for engine and mechanical repairs, but where no automobile painting and bodywork are done and where no junked or unregistered motor vehicles are kept or stored. Service stations may also include retail sales of food and sundry items of convenience to the general public and roll over car washes.

SETBACK, REQUIRED — a line that is established to set a minimum horizontal distance from the street line or the lot line and beyond which a building or part of a building is not permitted to extend toward the street line, or lot line, or rear lot point. **[Added 10-13-2022 by Ord. No. 22-084]**

SETBACK LINE — A line drawn parallel to a street line or lot line and drawn through the point of a building nearest to the street line or lot line. Regarding a rear lot point see SETBACK DIAGRAM, REAR YARD. **[Added 10-13-2022 by Ord. No. 22-084]**

SHALL — Mandatory requirement

SHAPE FACTOR — The perimeter of the lot squared, divided by the lot area.

SHORT-TERM RENTAL — The accessory use of a dwelling unit for occupancy by someone other than the unit's owner or permanent resident for a period twenty-eight (28) or fewer consecutive days. **[Added 10-28-2015 by Ord. No. 15-137; amended 6-25-2019 by Ord. No. 19-077]**

SIDE SLOPE — The section of a hill that is below the Talus Slope and generally of moderate or lesser gradient than the Talus Slope or cliff face.

SIGHT TRIANGLE — The area outside the right-of way which is bounded by intersecting street lines and the straight line connecting sight points, one each located on the two intersecting street center lines, the following distance away from the intersecting center lines: primary and secondary arterial streets at one hundred (100) feet; major and minor collector streets at sixty (60) feet; and local streets at forty (40) feet. Where the intersecting streets are both arterial, both collectors or one arterial and one collector, two overlapping sight triangles shall be required, formed by connecting the sight points noted above with a sight point forty (40) feet on the intersecting street. The classification of streets shall be those in the Master Plan of the Jersey City.

SIGN — Any device, fixture, placard or structure that uses color, form, picture, display, graphic, illumination, symbol or writing to advertise, attract attention to, announce the purpose of, or identify a person, entity or thing, or to communicate any information to the public.

SIGN, BANNER — Any sign intended to be hung flush with any building wall either with or without frames, possessing characters, letters, illustrations or ornamentations applied to paper, plastic or fabric of any kind. National flags, flags of political subdivision and symbolic flags of political subdivisions and symbolic flags of any institutions or business shall not be considered banners.

SIGN, BUILDING — Any sign attached below the roofline to any part of a building, as contrasted to a freestanding sign. Building signs include wall signs, window signs, and canopy signs.

SIGN, CANOPY — Any sign on, or attached to, an awning, marquee, or canopy.

SIGN, FREESTANDING — Any sign supported by structures or supports that are placed on, or anchored in, the ground, and that are independent from any building or other structure.

SIGN, HANGING/BLADE — A sign that is wholly or partly dependent upon a building for support and that projects perpendicular more than twelve (12) inches from such building.

SIGN, INTERNALLY ILLUMINATED — Any sign which has characters, letters, figures, designs or outline illuminated, and where the light source is contained within or directly behind the sign band.

SIGN, MONUMENT — A sign which the entire bottom is in contract with or is close to the ground and is independent of any other structure.

SIGN, PYLON/POLE — A sign that is mounted on a freestanding pole or other support so that the bottom edge of the sign face is six feet or more above grade.

SIGN, WALL — Any sign attached parallel to, but within six inches of a wall, painted on the wall surface, or erected and confined within the limits of an outside wall of any building or structure, which is supported by such wall or building, and which displays only one sign surface and may be made of a fabric material.

SIGN, WINDOW — Any sign that is placed within a window or upon the window panes or glass and is visible from the exterior of the window.

SINGLE ROOM OCCUPANCY (SRO) — A housing type consisting of one room with private or shared bathroom facilities, and no cooking facilities are provided.

SITE — Any plot or parcel of land or combination of contiguous lots or parcels of land. Within historic districts, a site is the location of a significant event, a prehistoric or historic occupation or activity, or a building, structure, object or landscape feature, whether standing, ruined or vanished, where the location itself maintains historical, cultural, architectural or archaeological value regardless of the value of any existing structure.

SITE PLAN — A development plan of one or more lots on which is shown the proposed conditions of the lot, showing the location of proposed buildings, drives, parking spaces, walkways, means of ingress and egress, and any other information that may be reasonably required in order to make an informed determination pursuant to an ordinance requiring review and approval.

SITE PLAN, MINOR — A development plan of one or more lots which (1) proposes new development within the scope of development specifically permitted by ordinance as a minor site plan; (2) does not involve planned development, any new street or extension of any off-tract improvement which is to be prorated pursuant to section 30 of P.L. 1975, c.291 (C.40:55D-42); and (3) contains the information reasonably required in order to make an informed determination pursuant to an ordinance requiring review and approval of site plans.

SITE PLAN REVIEW — The examination of the specific development plans for a lot as per N.J.S.A. 40:55D-37 et seq.

SOIL CONSERVATION DISTRICT — The Hudson-Essex-Passaic Soil Conservation District.

SOIL EROSION AND SEDIMENT CONTROL PLAN — A plan which indicates necessary land treatment measures, including a schedule for installations, which will effectively minimize soil erosion and sedimentation. Such measures shall be at least equivalent to the standards and specifications as adopted by the Hudson-Essex-Passaic Soil Conservation District.

STABILIZATION — The act or process of applying measures designed to reestablish a weather-resistant enclosure and the structural stability of an unsafe or deteriorated building, object, site, structure or landscape feature while maintaining the essential form as it exists at present.

STEEP SLOPE — Shall be defined as an area in which the change in elevation is in excess of thirty percent (30%).

STEPBACK — The distance the upper floors or portions of a building or structure are setback from the outermost edge of that building or structure as measured from its intersection with grade. (Upper floors may be any floor above the ground level floor.)

STILTED BUILDING — A structure built above the surface of the grade with the first floor resting on or supported by posts and the grade level exposed.

STORMWATER BUMP-OUT — A vegetated curb extension that protrudes into the street. The bump-out is composed of a layer of stone that is topped with soil and plants, with an inlet or curb-cut directing runoff into the bump-out structure where it can be stored, infiltrated, and taken up by the plants. **[Added 6-24-2020 by Ord. No. 20-044]**

STORMWATER PLANTER — A specialized planter installed in the sidewalk area that is designed to manage street and sidewalk runoff. The planters are lined with a permeable fabric, filled with gravel or stone, and topped off with soil, plants, and sometimes trees. The top of the soil in the planter is lower in elevation than the sidewalk, allowing for runoff to flow into the planter through an inlet at street level. Excess runoff is directed into an overflow pipe connected to the existing combined sewer pipe. **[Added 6-24-2020 by Ord. No. 20-044]**

STORMWATER TREE TRENCH — A system of trees that are connected by an underground infiltration structure to manage the incoming runoff. This system is composed of a trench dug along the sidewalk, lined with a permeable geotextile fabric, filled with stone or gravel, and topped off with soil and trees. Stormwater runoff flows through a special inlet (storm drain) leading to the trench where runoff is stored, watering the trees and slowly infiltrating through the bottom. **[Added 6-24-2020 by Ord. No. 20-044]**

STORY — That portion of a building included between the surface of any floor and the surface of the floor next above it, or if there is no floor above it, then the space between the floor and the ceiling next above it. See definitions for "basement," "cellar," "mezzanine," and "penthouse." **[Amended 4-22-2015 by Ord. No. 15-048; 7-18-2018 by Ord. No. 18-074]**

STORY, HALF — A space under a sloping roof that has the line of intersection of the roof decking and wall face not more than three feet above the top floor level and in which space the possible floor

area with a headroom of five feet or less occupies at least 40 percent of the total floor area of the story directly beneath. Also known as an attic. **[Amended 7-18-2018 by Ord. No. 18-074]**

STREET — A street, avenue, boulevard, road, parkway, viaduct, walking alley, or drive but not including alleys or rail rights-of- way: (1) which is an existing state, county or municipal roadway; or (2) which is shown upon a plat heretofore approved pursuant to law; or (3) which is approved by official action as provided by this Chapter; or (4) which is shown on a plat duly filed and recorded in the office of the county recording officer prior to the appointment of a planning board and the grant to such board of the power to review plats; and includes the land between the street lines, whether improved or unimproved, and may comprise pavement, shoulders, gutters, curbs, sidewalks, parking areas and other areas within the street lines. **[Amended 4-22-2015 by Ord. No. 15-048; 10-13-2022 by Ord. No. 22-084]**

STREET FURNITURE — Above-ground items that are usually found in street rights-of-way including benches, kiosks, plants, canopies, shelters, bicycle racks, lamp posts, and trash cans.

STREET LINE — The edge of the street right-of-way forming the dividing line between the street and a lot.

STRUCTURE — A combination of materials to form a construction for occupancy, use or ornamentation, whether installed on, above or below the surface of a parcel of land.

STUDIO, FILM PRODUCTION AND PERFORMING ARTS — An area utilized for the production and editing of films and/or rehearsal space for actors, musicians, dancers and other similar performers. Where this use is permitted within any residential district, no equipment or process shall be used that creates noise, glare, fumes, odors, electrical interference or other nuisance factors detectable to the human senses outside the structure in which the studio is located. In addition, where this use is permitted within a residential district, all studio activities shall be permitted to occur only within an enclosed structure.

SUBDIVIDER — Any individual, firm, association, syndicate, company, partnership, corporation, trust or other legal entity commencing proceedings under this Chapter to effect a subdivision of land for himself or herself or for another.

SUBDIVISION — The division of a lot, tract or parcel of land into two or more lots, tracts, parcels or other divisions of land for sale or development The following shall not be considered subdivisions within the meaning of this Chapter, if no new streets are created:

A. Divisions of property by testamentary or intestate provisions.

B. Divisions of property upon court order, including but not limited to judgments of foreclosure.

C. Consolidation of existing lots by deed or other recorded instrument.

D. The conveyance of one or more adjoining lots, tracts or parcels of land, owned by the same person or persons, and all of which are found and certified by the administrative officer to conform to the requirements of the Municipal Development regulations and are shown and designated as separate lots, tracts or parcels on the Tax Map or Atlas of the City.

SUBDIVISION, MAJOR — Any subdivision not classified as a minor subdivision.

SUBDIVISION, MINOR — Any subdivision containing four lots or less and which does not involve: a planned development; any new street; or the extension of any off-tract improvement, the cost of which is to be prorated pursuant to N.J.S.A. 40:55D-42. Any lot or remaining land approved as a minor subdivision shall not be submitted as a minor subdivision within five years from the date of approval as a minor subdivision. Such lot or tract may be submitted as a major subdivision.

SUBSTANTIAL IMPROVEMENT — Any repair, reconstruction or improvement of a structure, the cost of which equals or exceeds fifty percent (50%) of the market value of the structure either before the improvement or repair is started or, if the structure has been damaged and is being restored, before the damage occurred. For the purposes of this definition, "substantial improvement" is considered to occur when the first alteration of any wall, ceiling, floor or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure. The term does not, however, include either any project for improvement of a structure to comply with existing state or local health, sanitary or safety code specifications which are solely necessary to assure safe living conditions or any alteration of a structure listed on the National Register of Historic Places or a State Inventory of Historic Places.

SUBSTANTIAL REHABILITATION OR ALTERATION OF A HISTORIC FACADE — Alteration or rehabilitation of fifty percent (50%) or more of any facade along a public right-of-way within a designated historic district.

TALUS SLOPE — A slope formed by accumulation of debris at the bottom of a cliff.

TERRACE — A deck, patio, or amenitized roof space located atop habitable space or above the ground floor but not atop the uppermost story of a building. Terraces may be used for common or private recreation space. **[Added 10-13-2022 by Ord. No. 22-084]**

THEATER — Space for live or screen performances including movies, plays, and concerts.

THEMATIC GROUP — A finite group of resources related to one another in a clearly distinguishable way by association with a single historic person, event or development force, as one building type or use, as designed by a single architect, as a single archaeological site form or as a particular set of archaeological research.

THREAT FACTOR - The relative threat level to birds posed by various materials and design details as determined by American Bird Conservancy. The Threat Factor quantified as a number between one and 100 that indicates the relative effectiveness of materials or assemblies, typically in reducing bird collisions, but not exclusively, evaluated per a binary choice flight-tunnel protocol involving live birds.

A Threat Factor of 1 is the least threatening and a Threat Factor of 100 is the most threatening. **[Added 3-11-2026 by Ord. No. 26-014]**

TOP OF CLIFF — The portion of a hill located above the cliff face, overlain with regolith, generally the plateau or hill crest.

TOWNHOUSE — A residential building in which each building has its own front and rear access to the outside and is separated from adjacent buildings only by vertical fire-resistant building walls. A townhouse building may contain one to four dwelling units in accordance with the density standard of the particular zoning district in which such property is located.

TOWNHOUSE, BACK-TO-BACK — A townhouse building with individual units that are attached back to back, but in no case shall individual units be located above or below another unit. Each individual unit shall have its own entrance from the exterior. Each building cluster shall have two building front facades and two side facades.

TOWNHOUSE, STACKED — A townhouse building with units that are stacked one on top of the other. Each individual unit shall have its own entrance from the exterior. Stacked Townhouses may also qualify as Back-to-Back Townhouses.

TRANSCRIPT — A typed or printed verbatim record of the proceedings or reproduction thereof.

TRANSIT-WAY — That roadway, easement, rail, trench route, etc. on which a mass transit vehicle travels.

TRANSIT VILLAGE — An urban community well served by mass transit system(s). Transit Villages make it easy for residents to live without a car by allowing for the convenient ability to ride transit and walking within pleasant urban environments. Typically, they have active, vibrant, and strong neighborhood centers providing convenient access to commercial services focused around transit.

TRANSOM — A small window above a door or other window.

TWO-FAMILY — A building on a single lot containing two dwelling units, each of which is separated from the other by an unpierced wall extending from ground to roof or an unpierced vertical and horizontal ceiling and floor extending from exterior wall to exterior wall, except for a common stairwell exterior to both dwelling units.

UNUSUAL AND COMPELLING CIRCUMSTANCES — Those uncommon and extremely rare instances, factually detailed, which would warrant the Historic Preservation Commission action due to the evidence presented.

UPLAND AREA — Land area located above the surface of any body of water.

UTILITY — Water, sewerage, telephone, gas or electric service from a private or public utility company under the regulations of the New Jersey Board of Public Utilities.

VARIANCE — Permission to depart from the literal requirements of the zoning ordinance as per N.J.S.A. 40:55D-70(d).

VEHICULAR SALES AREA — See AUTO SALES.

VIEW CORRIDOR — Three dimensional space through which views of historic, cultural or aesthetic significance may be observed.

VISTA — A view through or along an avenue, street or opening which as a view corridor frames, highlights or accentuates a prominent building, object, site, structure, scene or panorama, or patterns or rhythms of buildings, structures, objects, sites or landscape features; to include views of areas at a distance.

WAIVER — Permission to depart from the requirements of an ordinance with respect to the submission of required documents, and/or compliance with particular design standards.

WALKWAY — Any pathway set aside for and traveled by pedestrians and improved in such way to assist in the designated use.

WALL — A solid, vertical structure of wood, masonry or other material serving to enclose, divide or protect an area.

WAREHOUSE — A building used primarily for the storage of goods and materials.

WATER TRANSPORTATION FACILITIES — See MASS TRANSIT FACILITY.

WHARF — A structure built parallel to the shore, used to load passengers and may also serve as a walkway or access-way. A quay wall is a simple form of wharf that serves as both a retaining wall for shorefront protection and a docking facility.

WHOLESALE SALES AND SERVICES — Establishments or places of business primarily engaged in selling merchandise to retailers; industrial, commercial, institutional or professional business users; other wholesalers; or acting as agents or brokers and buying merchandise for, or selling merchandise to, such individuals or companies.

WIRELESS COMMUNICATION ANTENNAS — Devices which are used for the transmission and reception of wave frequencies for the purposes of any wireless telecommunication (e.g., telephone, radio, paging, and/or television communication) and which are permitted as either second principal uses on existing structures or as "conditional uses" on a tower except in historic districts, in accordance with the specified zoning conditions and standards for their location and operation set forth in this Chapter. Wireless Communication Antennas shall not be considered to be a "public utility."

WIRELESS TELECOMMUNICATION TOWER — A freestanding vertical structure designed to support one or more wireless telecommunication antennas, including monopoles, guyed towers, lathe towers and similar structures.

WORK/LIVE ARTIST STUDIO — A single, enclosed, private space of nine hundred (900) square feet or more, where at least one-half of the volume of the total space is devoted to work space for the creation, display and sale of art, and the remainder is used for living purposes. Nothing in this

definition shall prohibit the use and occupancy of a "work/live artist studio" in a setting where shared kitchen and/or bath facilities are available, provided that applicable health and safety codes are met and maintained.

WORK/LIVE UNIT — A unit that adheres to all of the standards of a Home Occupation except that a minimum of 900 (nine hundred) square feet must be provided, a maximum 50% of which may be used as work space and the remaining space is used for residential purposes. There is no maximum square footage to the workspace so long as it does not exceed 50% of the total unit area.

YARD — An open space that lies between the principal building or buildings and the nearest lot line. The minimum required yard as set forth in the ordinance shall be unoccupied and unobstructed from the ground upward except as may be specifically provided in the zoning ordinance.

YARD, FRONT — An open space extending across the full width(s) of the lot and lying between the street line and the building line. The depth of the front yard shall be measured to the building and shall not be measured to the closest point of an encroachment, unless that encroachment does not conform to the requirements provided in the land development ordinance. The depth of the "front yard" shall be measured horizontally and at right angles to either a straight street line or the point of tangent of curved street lines. The minimum required "front yard" shall be the same as the required setback. See LOT WIDTH AND DEPTH DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

YARD, REAR — An open space extending across the full width of the lot and lying between the rear lot line or rear lot point and the closest point of the principal building on the lot. The depth of the "rear yard" shall be measured horizontally and at right angles to either a straight rear lot line or the point of tangent of curved rear lot lines. The minimum required "rear yard" shall be the same as the required setback. See LOT, CORNER regarding historic districts and historic overlays. See REAR YARD DIAGRAM, and LOT WIDTH AND DEPTH DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

YARD, SIDE — An open space extending from the front yard to the rear yard and lying between each side lot line and the closest point of the principal building on the lot. The width of the required "side yard" shall be measured horizontally and at right angles to either a straight side lot line or the point of tangent of curved side lot lines. The minimum required "side yard" shall be the same as the required setback. See LOT WIDTH AND DEPTH DIAGRAM. **[Added 10-13-2022 by Ord. No. 22-084]**

ZONE — see District

ZONING PERMIT — A document signed by the Zoning Officer.

A. Which is required by ordinance as a condition precedent to the commencement of a use or the erection, construction, reconstruction, alteration, conversion or installation of a structure or buildings.

B. Which acknowledges that such use, structures or buildings comply with the provisions of the City Zoning Ordinance or variance therefore duly authorized by the appropriate agency of the City pursuant to N.J.S.A. 40:55D-60 and 40:55D-70.

ARTICLE II

Land Use Boards, Commissions and Advisory Boards

§ 345-7. Planning board.

A. Establishment of Planning Board.

1. Membership. The City of Jersey City Planning Board shall consist of nine members of the following four classes:

   a. Class I: The Mayor or Mayor's designee.

   b. Class II: One of the officials of the City, other than a member of the City Council, to be appointed by the Mayor.

   c. Class III: A member of the City Council to be appointed by the City Council.

   d. Class IV: Six other residents of the City to be appointed by the Mayor. The members of Class IV shall hold no other municipal office, position or employment except that one member may be a member of the Board of Adjustment. Not more than one Class IV member may be a member of the Board of Education. For the purpose of this section, membership on a City board or commission whose function is advisory in nature, the establishment of which is discretionary and not required by statute, shall not be considered the holding of City office.

   e. Alternate Members. Two alternate members shall be appointed and shall meet the qualifications of Class IV members. Alternate members shall be appointed for a term of two years, and at the time of their appointments shall be designated Alternate No. 1 and Alternate No. 2, respectively. Alternate members may participate in discussions of the proceedings but may not vote except in the absence or disqualification of a regular member. A vote shall not be delayed in order that a regular member may vote instead of an alternate member. In the event that a choice must be made as to which alternate member is to vote, Alternate No. I shall vote.

2. Terms. The term of the Class I member shall correspond to his or her official tenure as Mayor. The terms of the members composing Class II and Class Ill shall be for one year or terminate at the completion of their respective terms of office, whichever occurs first. The term of a Class IV member who is also a member of the Board of Adjustment or Board of Education shall terminate whenever he or she is no longer a member of such other body or at the completion of his or her Class IV term, whichever occurs first. The term of all other Class IV members shall be four years. If a vacancy in any class shall occur otherwise than by expiration of the Planning Board term, it shall be filled by appointment, as above provided, for the unexpired term.

3. Substitute Members When Conflict Exists. If the Planning Board lacks a quorum because any of its members are prohibited by a conflict of interest from acting on a matter due to the member's

personal or financial interest, regular members of the Board of Adjustment shall be called upon to serve, for that matter only, as temporary members of the Planning Board in order of seniority of continuous

service to the Board of Adjustment until there are the minimum number of members necessary to constitute a quorum to act upon the matter without any personal or financial interest. If a choice has to be made between regular members of equal seniority, the Chairperson of the Board of Adjustment shall make the choice.

4. Organization. The Planning Board shall organize annually by selecting from among its Class IV members a chairperson and a vice chairperson. The Board shall also select a secretary who may or may not be a member of the Board or a municipal employee, and create and fill such other offices as established by ordinance.

5. Legal Counsel and Other Professional Staff. The Planning Board may annually appoint an attorney at law of New Jersey other than the Municipal Attorneys as Planning Board Attorney and may fix his or her compensation at an amount not exceeding the amount appropriated. The Planning Board may also employ or contract for and fix the compensation of such experts and other staff and services as it may deem necessary. The Board, however, shall not authorize expenditures which exceed, exclusive of gifts or grants, the amount appropriated by the City Council for its use.

6. Conflict of Interest. No member of the Planning Board shall be permitted to act on any matter in which he has any personal or financial interest, either directly or indirectly.

7. Removal. Any member other than a Class I member, after a public hearing, if requested, may be removed by the City Council for cause.

B. Powers and Jurisdiction of Planning Board.

1. Mandatory Powers. The Planning Board shall exercise its powers in accordance with the Municipal Land Use Law in regard to:

a. The City Master Plan pursuant to N.J.S.A. 40:55D-28.

b. Subdivision and site plan review pursuant to the Land Development Ordinance.

c. Any official map adopted by the City Council pursuant to N.J.S.A. 40:55D-32 et seq.

d. The zoning ordinance including conditional uses pursuant to the land development ordinance.

e. Any capital improvements programs pursuant to N.J.S.A. 40:55D-29 et seq.

f. Variances and certain building permits in conjunction with subdivision, site plan and conditional use approval pursuant to this section.

2. Other Powers. The Planning Board may:

a. Participate in the preparation and review of programs or plans required by State or Federal law or regulation.

b. Assemble data on a continuing basis as part of a continuous planning process.

c. Perform such other duties as are assigned to it by ordinance or resolution of the City Council.

3. Planning Board Review In Lieu of Board of Adjustment. Whenever the proposed development requires approval of a subdivision, site plan or conditional use, but not a variance pursuant to N.J.S.A. 40:55D-70d, the Planning Board shall have the power to grant to the same extent and subject to the same restrictions as the Board of Adjustment:

a. Variances pursuant to N.J.S.A. 40:55D-70c.

b. Direction pursuant to N.J.S.A. 40:55D-34 for issuance of a permit for a building or structure in the bed of a mapped street or public drainage way, flood control basin or public area reserved pursuant to N.J.S.A. 40:55D-32.

c. Direction pursuant to N.J.S.A. 40:55D-36 for issuance of a permit for a building or structure not related to a street.

4. Referral Powers of the Planning Board. Prior to the adoption of a development regulation, revision or amendment thereto, the Planning Board shall make and transmit to the City Council, within thirty-five (35) days after referral, a report including identification of any provisions in the proposed development regulation, revision or amendment which are inconsistent with the City Master Plan and recommendations concerning these inconsistencies and any other matters as the Board deems appropriate. The City Council, when considering the adoption of a development regulation, revision or amendment thereto, shall review the report of the Planning Board and may disapprove or change any recommendation by a vote of a majority of its full authorized membership and shall record in its minutes the reasons for not following such recommendations. Failure of the Planning Board to transmit its report within the thirty-five (35) day period provided herein shall relieve the City Council from the requirements of this subsection in regard to the proposed development regulation, revision or amendment referred to the Planning Board. Nothing in this section shall be construed as diminishing the application of the provisions of N.J.S.A. 40:55D-32 to any official map or an amendment or revision thereto or of N.J.S.A. 40:55D-62 to any zoning ordinance or any amendment or revision thereto.

5. The Mayor may appoint one or more persons as a citizens advisory committee to assist or collaborate with the Planning Board in its duties, but such committee shall have no power to vote or take other action required of the Board. Such persons shall serve at the pleasure of the Mayor.

§ 345-8. Zoning Board of Adjustment.

A. Establishment of Zoning Board of Adjustment. **[Amended 3-25-2015 by Ord. No. 15-032]**

1. Membership. The City of Jersey City Zoning Board of Adjustment (herein referred to as the Board of Adjustment), shall consist of seven (7) regular members and four (4) alternate members, each of whom shall be residents of the City and shall be appointed by the Mayor. All regular members appointed shall serve for terms of four (4) years beginning June 30 of the year of their appointment.

2. Alternate Members. Alternate members shall be appointed for a term of two (2) years, and at the time of their appointments shall be designated Alternate No. 1, Alternate No. 2, Alternate No. 3, and Alternate No. 4, respectively. The terms of not more than two (2) alternate members shall expire in any one (1) year. Alternate members may participate in discussions of the proceedings but may not vote except in the absence or disqualification of a regular member. A vote shall not be delayed in order that a regular member may vote instead of an alternate member. In the event that a choice must be made as to which alternate member is to vote, alternate members shall vote in the order of their numerical designations.

3. Other Municipal Office. No member of the Board of Adjustment shall hold any elective office or position under the municipality. This includes city employees and non-elected officials.

4. Conflict of Interest. No member of the Board of Adjustment shall be permitted to act on any matter in which he or she has, either directly or indirectly, any personal or financial interest.

5. Removal. A member, after a public hearing if requested, may be removed by the City Council for cause. A vacancy occurring otherwise than by expiration of term shall be filled for the unexpired term only.

6. Election of Officers. The Board of Adjustment shall annually elect a Chairperson and Vice Chairperson from its members and a Secretary who may or may not be a member of the Board or a municipal employee.

7. Substitute Members when Conflict Exists. If the Board of Adjustment lacks a quorum because its regular or alternate members are prohibited by N.J.S.A. 40:55D-69 from acting on a matter due to the member's personal or financial interest, Class IV members of the Planning Board shall be called upon to serve, for that matter only, as temporary members of the Board of Adjustment. The Class IV members of the Planning Board shall be called upon to serve in order of seniority of continuous service to the Planning Board until there are the minimum number of members necessary to constitute a quorum to act upon the matter without any personal or financial interest. If a choice has to be made between Class IV members of equal seniority, the Chairperson of the Planning Board shall make the choice.

8. Legal Counsel and Other Professional Staff. The Board of Adjustment may employ or contract for and fix the compensation of legal counsel, other than the Municipal Attorneys, and experts and other staff and services as it shall deem necessary, not exceeding, exclusive of gifts and grants, the amount appropriated by the City Council for its use.

B. Powers and Jurisdiction of Zoning Board of Adjustment.

1. The Board of Adjustment shall have the following powers:

a. Appeals. Hear and decide appeals where it is alleged by the appellant that there is an error in any order, requirement, decision or refusal made by the Zoning Officer or any other City Official, based on or made in the enforcement of the zoning ordinance.

b. Interpretations. Hear and decide requests for interpretation of the Zoning Map or Ordinance or for decisions upon other special questions upon which such Board is authorized to pass by any Zoning or Official Map Ordinance in accordance with the Municipal Land Use Law.

c. Bulk and Dimensional Variances:

i. Where by reason of exceptional narrowness, shallowness or shape of a specific piece of property, or by reason of exceptional topographic conditions or physical features uniquely affecting a specific piece of property, or by reason of an extraordinary and exceptional situation uniquely affecting a specific piece of property or the structures lawfully existing thereon, the strict application of any zoning regulation would result in peculiar and exceptional practical difficulties to, or exceptional and undue hardship upon the developer of such property, the Board may grant, upon an application or an appeal relating to such property, a variance from such strict application of such regulation so as to relieve such difficulties or hardship; or

ii. Wherein an application or appeal relating to a specific piece of property the purposes of zoning set forth in N.J.S.A. 40:55D-2 would be advanced by a deviation from the zoning ordinance requirements and the benefits of the deviation would substantially outweigh any detriment, the Board may grant a variance to allow departure from such zoning requirements, provided, however, that the fact that a proposed use is an inherently beneficial use shall not be dispositive of a decision on a variance under this subsection, and provided that no variance from those departures enumerated in this section shall be granted under this subsection; and provided further that the proposed development does not require approval by the Planning Board of a subdivision, site plan or conditional use in conjunction with which the Planning Board has the power to review a request for a variance pursuant to N.J.S.A. 40:55D-6Oa.

d. "d" Variances. Pursuant to N.J.S.A. 40:55D-70:d, In particular cases and for special reasons, the Board may grant a variance to allow departure from zoning regulations to permit (i) a use or principal structure in a district restricted against such use or principal structure, (ii) an expansion of a non-conforming use, (iii) deviation from a specification or standard pursuant to N.J.S.A. 40:55D-67 pertaining solely to a conditional use, (iv) an increase in the permitted floor area ratio as defined in N.J.S.A. 40:55D-4, (v) an increase in the permitted density as defined in N.J.S.A. 40:55D-4 except as applied to the required lot area for a lot or lots for detached one or two dwelling unit buildings which lot or lots are either an isolated undersized lot or lots resulting from a minor subdivision or (vi) a height of a principal structure which exceeds by ten (10) feet or ten percent (10%) the maximum height permitted in the district for a principal structure. A variance under this subsection shall be granted only by an affirmative vote of at least five members.

2. Relief Not Enumerated as a "d" Variance to be Decided Under Bulk and Dimensional Variance Criteria. If an application for development requests one or more variances but not a "d" variance, the decision on the requested variance or variances shall be rendered under the bulk and dimensional variance criteria.

3. Requirement for Showing of No Substantial Detriment. No variance or other relief may be granted under the terms of this section, including a variance or other relief involving an inherently beneficial use, without a showing that such variance or other relief can be granted without substantial detriment to the public good and will not substantially impair the intent and the purpose of the zone plan and zoning ordinance.

4. Referral of Application to Other Agencies. An application under this section may be referred to any appropriate person or agency for its report; provided that such reference shall not extend the period of time within which the Zoning Board of Adjustment shall act.

5. Additional Powers. The Zoning Board of Adjustment shall have the following additional powers:

   a. To direct issuance of a permit pursuant to N.J.S.A. 40:55D-34 for a building or structure in the bed of a mapped street or public drainageway, flood control basin or public area reserved pursuant to N.J.S.A. 40:55D-32.

   b. To direct issuance of a permit pursuant to N.J.S.A. 40:55D-36 for a building or structure not related to a street.

   c. To grant to the same extent and subject to the same restrictions as the Planning Board subdivision or site plan approval or conditional use approval whenever the proposed development requires approval by the Board of Adjustment of a variance pursuant to this section of this ordinance. The developer may elect to submit a separate application requesting approval of the variance and a subsequent application for any required approval of a subdivision, site plan or conditional use. The separate approval of the variance shall be conditioned upon grant of all required subsequent approvals of a site plan or subdivision by the Board of Adjustment. No such subsequent approval shall be granted unless such approval can be granted without substantial impairment to the public good and without substantial impairment to the intent and purpose of the zone plan and zoning ordinance. The number of votes of Board members required to grant any such subsequent approval shall be as otherwise provided in this Chapter for the approval in question, and the special vote pursuant to N.J.S.A. 40:55D-70d shall not be required.

C. Annual Report on Variances Heard by Zoning Board of Adjustment. The Board of Adjustment shall, at least once a year, review its decisions on applications and appeals for variances and prepare and adopt by resolution a report of its findings on zoning ordinance provisions which were the subject of variance requests and its recommendations for zoning ordinance amendment or revision, if any. The Board of Adjustment shall send copies of the report and resolution to the City Council and Planning Board.

§ 345-9. Historic Preservation Commission.

A. Establishment of Historic Preservation Commission.

1. Membership and Terms.

a. The Historic Preservation Commission (HPC) shall consist of eleven (11) members of whom nine shall be regular members and two shall be alternate members. Each member shall be appointed by the Mayor. At least four of the regular members shall be of and designated as Class A and B. The remaining regular members may be of and shall be designated as Class C. The two alternate members shall meet the qualifications of Class C and shall be designated Alternate No. 1 and Alternate 2. The Classes are defined as:

i. Class A — A person who is knowledgeable in building design and construction or architectural history and who may reside outside the city.

ii. Class B — A person who is knowledgeable of, or who has a demonstrated interest in local history and who may reside outside the city.

iii. Class C — Any citizen of the City who shall hold no other municipal office, position or employment except for membership on the Planning Board or Board of Adjustment.

b. All appointments of regular members shall be for a term of four years or until the appointment and qualification of a successor.

c. Alternate members shall meet the qualifications of Class C members. At the time of appointment, alternate members shall be designated as "Alternate No. 1" and "Alternate No. 2."

d. All appointments of alternate members shall be for a term of two years or until the appointment and qualification of a successor.

e. Not withstanding any other provision contained in this Ordinance, the term of any member who is also a member of the Planning Board or Board of Adjustment shall be coterminous with his or her membership on such Board.

f. Terms shall commence on April 1 or each respective year.

g. A vacancy occurring otherwise than by expiration of term shall be filled for the unexpired term only. All vacancies shall be filled with qualified members within sixty (60) days.

2. Rules and Organization.

a. The HPC shall elect a Chairperson, Vice Chairperson and a Secretary who may or may not be a member of the Historic Preservation Commission or a municipal employee.

b. Alternative members may participate in discussion of the proceedings but may not vote except in the absence or disqualification of a regular member. A vote shall not be delayed in order that a regular member may vote instead of an alternative member. In the event that a choice must be made as to which alternative member is to vote, Alternative No. 1 shall vote.

c. The HPC shall establish a regular schedule of meetings, at least once a month or as often as required to meet the needs of its business, to handle emergencies, or to meet time constraints imposed by law. Additional meetings may be called by the Chairperson or Vice Chairperson when the regular meetings are inadequate to meet the needs of its business or to meet time constraints imposed by law.

d. Five members shall constitute a quorum. A majority vote of those present and voting shall prevail; except that not less than five affirmative votes may approve an application for historic designation or Certificate of Appropriateness.

e. The HPC's Secretary shall keep minutes and records of all meetings and proceedings, including voting records, attendance, resolutions, findings, determinations, decisions and applications. All HPC records and minutes shall be made public records as provided by law and shall be available at the City Planning Office.

f. The HPC shall establish a regular schedule of meetings on at least a monthly basis. Additional meetings may be called by the Chairperson or Vice Chairperson when the regular meetings are inadequate to meet the needs of its business or to meet time constraints imposed by law. All HPC meetings shall comply with the Open Public Meetings Act, N.J.S.A. 10:4-7, et seq. and public notice of the time, date and subject of the meeting, by way of newspaper, shall be given at least forty-eight (48) hours in advance of any meeting. The HPC shall adopt written by-laws and procedures for the transaction of its business and for the consideration of applications. Such by laws shall not be inconsistent with the provisions of this chapter and shall include, but not be limited to, rules pertaining to all notices and hearings required herein. All rules of procedure shall be available to the public.

g. No member shall be permitted to act on any matter in which he or she has, either directly or indirectly, any personal or financial interest. A member may be removed after a public hearing for cause.

h. The Mayor, Director of City Planning and the Construction Official shall be ex-officio members. Ex-officio members cannot vote.

3. Expenses and Costs; Employment of Experts and Staff. The City Council shall make provision in its budget and appropriate funds for the expenses of the HPC. The HPC may employ, contract for and fix the compensation of experts and other staff and services as it shall deem necessary provided that the necessary funding is provided for within the municipal budget. The HPC shall obtain its legal counsel from the City Attorneys at the rate of compensation determined by City Council unless City Council, by appropriation, provides for separate legal counsel for the commission. Expenditures pur-

suant to this subsection shall not exceed, exclusive of gifts or grants, the amount appropriated by the City Council for the Commission's use.

B. Powers and Duties of Historic Preservation Commission.

1. To identify, record and maintain a system for survey an inventory of all buildings, sites, places, structures, objects or landscape features of significant historical or architectural value based standards of the United States Department of the Interior and to aid the public in understanding their worth, methods of preservation, techniques of documentation and related matters. The Commission shall be guided by the standards of the United States Department of the Interior.

2. To undertake to maximize the entire City's knowledge and enjoyment of these historic resources and, as appropriate, promote this asset beyond the boundaries of the City.

3. To advise the City Council and Planning Board of the relative merits of proposals involving public funds to restore, preserve and protect landmark buildings, places and structures, sites, objects and landscape features including the preparation of a long-range plan therefore, securing state, federal and other grants and aid to assist therein and monitoring such projects once underway.

4. To advise and assist City officers, employees, boards and other bodies, including those at County, regional, State and Federal levels, on all matters which have potential impact on the landmark buildings, sites, structures, object or landscape features in the City or on the ambience of a historic district.

5. To recommend to the Planning Board and the City Council the establishment and boundaries of additional historic districts where appropriate.

6. To recommend to the Zoning Board of Adjustment and the Planning Board the grant or denial of development applications where such are deemed to be within the intent and purposes of this Article.

7. To assemble and arrange for the proper care, cataloging and availability of materials relevant to the City's history.

8. To maintain a system for the survey and inventory of historic resources that is compatible and coordinated with the statewide Inventory of the Office of New Jersey Heritage.

9. To cooperate with local, County, State or national societies, governmental bodies and organizations to maximize their contributions to the intent and purposes of this Article.

10. To recommend to applicable County, State and Federal agencies, where appropriate, recognition of historic districts and Landmark buildings, places and structures.

11. To request the City Council to seek, on its own motion or otherwise, injunctive relief of violations of this Article or other actions contrary to the intent and purpose of this Article.

12. To make recommendations to the Planning Board on the Historic Preservation Land Use and Community Facilities Plan elements of the Master Plan and on the implications for preservation of landmark, historic districts or any other Master Plan elements.

13. To advise the Planning Board on the inclusion of historic districts or landmarks in the recommended capital improvement program.

14. To provide the Administrative Officer with written reports on the application of the Zoning Ordinance provisions concerning historic preservation.

15. To carry out such other advisory, educational and informational functions as will promote historic preservation in the municipality.

16. To review all proposed National Register nominations in accordance with New Jersey's Certified Local Government Guidelines.

17. To issue Certificates of Appropriateness or Certificates of No Effect in accordance with the rules and standards set forth herein.

C. Administrative Officer Designated for Historic Preservation. The City's Zoning Officer shall act as the Administrative Officer with respect to administering the historic preservation provisions of the Land Development Ordinance.

D. City Historic Preservation Specialist.

1. The City Historic Preservation Specialist shall advise the Historic Preservation Commission on each application that shall come before the Commission. In addition to serving as advisory to the Commission, the City Historic Preservation Specialist has responsibility for coordinating the City's preservation activities with those of State and Federal agencies and with local, state and national preservation organizations in the private sector.

2. The Historic Preservation Specialist may recommend to the City Council buildings, sites, structures and districts for Council resolution directing the Historic Preservation Commission to review and comment for possible designation.

3. The City Historic Preservation Specialist may also recommend to the Commission buildings, objects, sites, structures and districts for nomination to the State and/or National Register of Historic Places.

4. The City Historic Preservation Specialist shall be an employee of Division of City Planning whose minimal professional qualifications meet the standards of the Historic Preservation Specialist within the New Jersey Department of Personnel.

§ 345-10 Environmental Commission.

A. Establishment of Environmental Commission. There is hereby created, pursuant to N.J.S.A. 40:56A-l et seq., the Jersey City Environmental Commission, to act and exercise the powers and function as set forth herein. **[Amended 9-23-2014 by Ord. No. 14-105]**

1. Membership and Terms.

a. The Jersey City Environmental Commission shall consist of seven members and two alternates to be appointed by the Mayor, who shall designate one of the members to serve as Chairperson and presiding officer. All members and alternates must be residents of the City of Jersey City. Each ward of the city shall be represented by at least one member. No ward shall have more than two members and alternates combined. One of the members shall also be a member of the Planning Board and one a member of the City Council. At least three members shall be professional environmental scientists, geologists, toxicologists, botanists or other environmental specialists. All members and alternates shall serve without compensation.

b. Each member of the Environmental Commission shall be appointed for a term of three years. All appointments to fill vacancies that may occur shall be for the unexpired term of the vacating member.

2. Removal. The Mayor may remove any member of the Commission for cause, on written charges. Such written charges must be served upon the member, and after a hearing on the allegations the member shall be entitled to be heard in person or by counsel.

3. Purpose of the Environmental Commission.

a. Promote the protection and conservation of land, air, water and other natural resources within the territorial limits of the City. Such promotion shall consist of educating the public and advising the city government about the best methods for protecting and conserving these resources.

b. Assist the City in the proper development and use of these resources by coordinating the planning efforts of the various departments, agencies and agents who provide environmental services.

c. Promote the protection of the public health by educating the public and advising City government about environmental health hazards.

d. Conduct research into the use and possible use of open land areas of Jersey City and:

i. Have the power to coordinate the activities of unofficial bodies organized for similar purposes.

ii. Keep an index of all open areas whether publicly or privately owned, including open marshlands, swamps and other wetlands, in order to obtain information on the proper use of such areas.

iii. Have the authority to recommend to the Planning Board plans and programs for the development and use of such areas for inclusion in the Jersey City Master Plan.

e. Advertise, prepare, print and distribute books, maps, charts, plans and pamphlets which it deems necessary for its purpose.

f. Study and make recommendations concerning open space preservation, water resources management, air pollution control, solid waste management, noise control, environmental appearance, marine resources, protection of flora and fauna and any other environmental concerns which affect the enjoyment and health of the public.

g. Refer matters to the proper City authorities whenever violations of environmental law come to its attention.

h. Keep records of its meetings and activities and shall make an annual report to the City Council.

i. Assist in the formulation of funding plans submitted to the Green Acres/Green Trust program of the New Jersey Department of Environmental Protection.

j. Advise the Planning Board and Board of Adjustment as to the environmental impact of development projects which would use an average of at least ten thousand (10,000) gallons of water per day.

k. Delegate an environmental commissioner to be a permanent member of the Local Emergency Planning Council (per federal P.L. 99-499) and delegate other Commissioners to be members of the other municipal environmental bodies as the City creates from time to time.

1. Act and serve as the official Jersey City Sustainable Green Team that is responsible for pursuing and maintaining the City's Sustainable Jersey Certification through collaboration with the municipality and public to develop and support sustainable initiatives for the City.

B. Clerical and Technical Assistance.

1. For the purpose of effectuating the goals of this chapter, the Environmental Commission shall have such clerical and technical assistance, materials, supplies and provisions for such other costs and expenses of the Commission as shall annually be budgeted by the Office of the Mayor and approved by City Council.

2. The Commission may appoint such clerks and other employees as it may from time to time require and as shall be within the limits of funds appropriated to it.

C. Cooperation with City Departments and Agencies. All City departments and agencies shall cooperate with the work of the Environmental Commission to the degree possible and permitted by law.

§ 345-11. Artists' Certification Board.

A. Establishment of an Artist Certification Board. **[Amended 9-9-2009 by Ord. No. 09-093]**

1. There is hereby created an Artists' Certification Board (ACB), which shall serve as a citizens' advisory board to the Planning Board, pursuant to N.J.S.A. 40:55D-27.a. The ACB shall be in, but

not of, the Division of City Planning. The ACB is essentially an artists' peer review committee. In order to reside in a work/live studio in the WALDO, an artist must be so certified by the Planning Board. The Planning Board shall be guided in this certification by the recommendation made by the ACB. The Planning Board may reject the recommendation of the ACB, but the reasons for such rejection must be clearly stated in the resolution approved by the Board.

2. The ACB shall be comprised of persons knowledgeable in the arts. It shall consist of five full members, with no more than two additional alternate members who may vote in the absence of full members. A minimum of three full members of the ACB shall be professional artists. All members shall be appointed by the Mayor. After the initial appointments are made, all terms shall run for four years.

3. The ACB shall review application filed by persons who are interested in occupying work/live space in the WALDO as either owners, tenants or sub-tenants, to determine if the applicant can be certified to occupy such space.

4. The following shall serve as criteria to be used by the ACB in certifying an artist: (a) the artists' commitment to the fine arts as a career; (b) the need for large loft space in which to create his or her art; (c) education; (d) current body of work; (e) exhibition record; (f) references from other artists or art professionals. In no event shall the content of the art created be used as a criterion to determine eligibility to occupy work/live space in the WALDO.

5. The recommendation of the ACB to the Planning Board shall be submitted to the Planning Board within thirty (30) days of the ACB's decision, and shall state the reasons for the decision with specific reference to one or more of the criteria set forth in subsection (A)(4) of this section.

6. Once an artist is certified by the Planning Board, the Planning Board shall forward a copy of its certification decision to the Zoning Officer, who shall retain the certification in the Zoning Officer's files. The certification shall expire ten (10) years after the date of the decision by the Planning Board. Renewal applications may be filed. In the event a certified artist is divorced or dies, the family of the artist occupying the work/live space shall be given a two year grace period.

ARTICLE III

Application Requirements, Development Procedures and Checklists

§ 345-12. Scope of applicability.

A. No building or structure shall hereafter be used, occupied, constructed, moved altered or repaired, nor shall any land be filled, cleared or graded, nor shall any water course be diverted, unless in conformity with the

regulations of the Land Development Ordinance of the City of Jersey City. All Development Review Filing Procedures shall be in accordance with the provisions of this Article.

B. The City of Jersey City and/or its instrumentalities shall be exempt from the provisions of this Chapter.

§ 345-13. Completeness requirements in general.

A. Content. Each application for approval of a minor subdivision, minor site plan, preliminary major subdivision, preliminary site plan, final major subdivision, final site plan or conditional use, as the case may be, and each application for variance relief and appeals, shall include all information and data listed in the appropriate corresponding checklist as set forth below in this article.

B. Complete Application. The Division of City Planning shall review all applications and accompanying documents required by the applicable checklist to determine that the application is complete. An application for development shall be complete for purposes of commencing the applicable time period for action when so certified by the Division of City Planning. In the event that the Division of City Planning does not certify the application to be complete within forty-five (45) days of the date of its submission, the application shall be deemed complete upon the expiration of the forty-five (45) day period for purposes of commencing the applicable time period unless (1) the application lacks information indicated on the checklist for such application and (2) the Division of City Planning has notified the applicant, in writing, of the deficiencies in the application within forty-five (45) days of submission of the application. The applicant may request that one or more submission requirements be waived, in which event the Department shall grant or deny the request within forty-five (45) days. Nothing herein shall be construed as diminishing the applicant's obligation to prove in the application process that he is entitled to approval of the application. The Division of City Planning may subsequently require correction of any information found to be in error and submission of additional information not specified in the checklist or any revisions in the accompanying documents, as are reasonably necessary to make an informed decision as to whether the requirements necessary for approval of the application for development have been met. The application shall not be deemed incomplete for lack of any such additional information or any revisions in the accompanying documents so required by the Division of City Planning.

§ 345-14. Informal review.

A. Right to Request Informal Review. Prior to the submittal of an application for development, the applicant may request an informal review before the Planning Board as detailed in N.J.S.A. 40:55D-10.1. Informal review shall not apply to the Zoning Board of Adjustment.

B. Documents and Fees to be Submitted. Applicants seeking review of a concept plan shall provide fifteen (15) copies of the plan and one copy of the completed application and the required review fees to the Division of City Planning Secretary at least forty-five (45) days before a regularly scheduled meeting of the Planning Board.

C. Nature of Concept Plan. The concept plan is a general plan that need not be fully engineered. The plan or plat should be sufficiently detailed to allow the Planning Board to make suggestions on general site

design and layout for circulation, stormwater management, location of open space and buffers, building arrangements and to determine how the proposal meets the City's development goals and objectives.

D. Effect of Informal Review. Neither the applicant nor the Planning Board is bound by any concept plan or informal review. The amount of any fees for such informal review shall be a credit toward fees for review of the application for development.

§ 345-15. Right to request a preapplication conference.

A. Filing Procedures. **[Amended 9-11-2013 by Ord. No. 13-081; 9-12-2018 by Ord. No. 18-095]**

1. The applicant shall submit all necessary documents to the Clerk of the Board of Adjustment or Planning Board. Clerks shall be employed by the Division of City Planning and designated by resolution of their respective Boards.

2. The Director of the Division of City Planning shall determine that an application is complete for the purpose of commencing the time period for action by the Municipal Agency per N.J.S.A. 40:55D-10.3. The applicant will be notified in writing of any deficiencies within 45 days of receipt by the Department. If a submission is deemed incomplete, no tolling of time shall occur, nor shall deficient applications be scheduled for a hearing.

3. For the purpose of expediting applications and reducing development costs, a developer may request a preapplication conference, the purpose of which is to:

   a. Acquaint the applicant with the substantive and procedural requirements of the Land Development Ordinance.

   b. Exchange information about the proposed development plan and applicable elements of the Master Plan, this Chapter and other development regulations.

   c. Advise the applicant of any public sources of information that may aid the application.

   d. Review the conditions of existing service facilities, the impact of the proposed project on those facilities and improvements necessary to accommodate the project and the areas affected by the project.

   e. Meet with any of the appropriate municipal representatives designated to participate in the review process to identify policies and regulations that create opportunities for or pose significant constraints to the proposed development, including but not limited to the staffs of the:

      i. Division of City Planning;

      ii. Construction Code Official;

      iii. Division of Engineering;

iv. Historic Preservation Commission;

v. Department of Public Safety;

vi. Municipal Utilities Authority;

vii. Division of Traffic and Street Maintenance;

viii. Environmental Commission;

ix. United Water Company.

f. Permit input into the general design of the project.

g. Attendees at the pre-application conferences shall complete attendance forms as required by the City and shall be limited to City staff, the property owner and/or designated owner representatives including, but not limited to, the property owner's licensed professional(s), agent(s), contractor(s), and/or permit processor(s), as such terms are defined in Chapter 134.

§ 345-16. When site plan approval required. [Amended 12-15-2010 by Ord. No. 10-166; 10-13-2022 by Ord. No. 22-084].

A. Threshold for Major Site Plan Review. The following categories of site plans for new construction, land disturbance, rehabilitation and additions, pursuant to N.J.S.A. 40:55D-37a, fall within the major site plan review threshold and must receive Board approval prior to issuance of either a building permit or certificate of occupancy: **[Amended 10-25-2023 by Ord. No. 23-103]**

1. Projects on parcels of 10,000 or more square feet.

2. Projects whose total gross floor area is 10,000 or more square feet.

3. Additions increasing gross floor area by 2,500 square feet or 50 percent, whichever is less, except for projects with a total gross floor area of 5,000 square feet or less.

4. Additions increasing coverage, by all structures on a project parcel, by 2,500 square feet or 50 percent, whichever is less, except for projects with a total gross floor area of 5,000 square feet or less.

5. Additions increasing gross floor area of all structures on a project parcel by 50 percent or 2,500 square feet, whichever is less, except for projects with a total gross floor area of 5,000 square feet or less.

6. Off-street parking facilities, except for one- or two-family structures meeting minimum parking requirements and meeting the minimum stall size requirements.

7. Changes in use requiring new or alteration of existing parking and/or loading facilities with fifteen or more total parking spaces.

8. Changes in the volume and/or configuration of existing parking and/or loading facilities with fifteen or more total parking spaces.

9. Installation of new wireless telecommunication towers.

10. Land disturbances greater or equal to 5,000 square feet in area, including but not limited to, the excavation, filling, grading, resurfacing, terracing, deposition of debris, compaction, earthwork construction, removal of vegetation, or dredging. This includes environmental remediation activities requiring a remedial action permit from NJDEP. The construction of utilities within City rights-of-way are exempt.

11. Alterations of the shoreline, removal or installation of riprap or bulkhead, or the construction of retaining walls, sheet piling, or other structures measuring 50 linear feet or greater which effect the grading, topography, or drainage of a site. The construction of utilities within City rights-of-way are exempt.

B. Threshold for minor site plan review. The following categories of site plans for new construction, rehabilitation and additions, pursuant to N.J.S.A. 40:55D-37a, fall within the minor site plan review threshold and must receive Board approval prior to issuance of either a building permit or certificate of occupancy:

1. Projects whose total gross floor area is at least 5,000 and less than 10,000 square feet.

2. Installation of new or more wireless communication antennas. Replacement of antennas at an existing location are not considered new.

3. Interim use leasing banners, except when proposed and permitted in § 345-16.E below.

C. Threshold for site plan review within redevelopment plan areas.

1. Thresholds based on project size, gross floor area, lot area, additions, and all other criteria as outlined in § 345- 16(A) and (B) above shall apply to redevelopment plan areas, with the following exception:

a. Any project with deviations that does not meet the threshold for a major site plan shall be considered a minor site plan.

D. Site plan review shall not be considered necessary for the following site work:

1. Normal maintenance.

2. Health and safety upgrades that are essentially interior and do not require any changes to the site plan at grade.

3. Interior renovations.

4. Deck, porches, stoops, or balcony construction that otherwise complies with residential bulk standards of the applicable plan.

5. Installation of accessory structures that otherwise complies with all requirements of the applicable redevelopment plan or zoning district.

E. Standards for Interim Use Leasing Banners.

1. Interim use leasing banners may be approved by the Division of Zoning without requiring minor site plan if the following standards are met.

2. Standards for interim use leasing banners.

a. Annual renewal is required for interim use leasing banners or violations and/or fees will be incurred.

b. Interim use leasing banners shall advertise leasing opportunities for the building on which they are located.

c. All interim use leasing banners shall be removed or taken down when payment of annual fees elapses or at the end of three (3) years, whichever comes first.

d. The maximum size of interim use signs shall be no greater than five percent of the façade or 2,000 square feet whichever is less.

f. Interim use signs shall only be located on two or three façades.

g. Interim use signs should be larger near the top of the building and smaller at the base.

h. Upon annual renewal, photo evidence of interim use signs shall be presented to the Division of Zoning to determine compliance and whether any banners need to be replaced due to wear and tear.

3. Fees. For initial plan review and determination of conforming interim use leasing banners the fee is $100.00. For plan review of interim use leasing banners, there is an annual fee which starts at $100.00 and doubles in price every year thereafter, until it is removed.

4. Historic districts and landmarked buildings or sites. For any site in a local historic district or local landmarked building or site, application shall still be made to the historic preservation staff, who shall determine if a certificate of no effect or certificate of appropriateness is required. In the case where a certificate of appropriateness is required but the signage is conforming to applicable land development ordinance or redevelopment plan standards, only historic preservation review is necessary.

§ 345-17. Traffic impact assessment. [Amended 1-13-2021 by Ord. No. 20-112]

A. When required. The Division of City Planning shall require a traffic impact assessment for applications that require major site plan or for a major subdivision, whether or not parking is proposed. Additionally, a traffic impact assessment shall be required for minor site plans where parking is proposed. Waivers may only be granted at the discretion of both the Director of the Division of City Planning and the Director of the Division of Traffic Engineering.

B. General provisions.

1. The traffic impact assessment shall be prepared by a New Jersey licensed professional engineer having appropriate experience and education.

2. All relevant sources of information used in the preparation of said statement shall be identified.

C. Submission format. All traffic impact assessments shall provide a description of the impact and effect of the proposed land development upon all roads which are adjacent to or immediately affected by traffic and shall specifically address the following items:

1. Existing conditions in the vicinity of the proposed project including:

a. Roadway network.

b. Representative traffic counts, not during holiday or summer periods (or with appropriate statistical adjustments for counts during the summer months).

c. Traffic accident statistics.

d. Availability of public transportation.

e. Level of service of adjacent roadways.

f. Existing bike network.

g. Bike network and facilities proposed in bike master plan.

h. All recommendations and improvements for the site and vicinity made in the Jersey City school travel plan.

i. All existing and recommended improvements within the latest annual vision zero action report and pedestrian enhancement plan.

j. Number of on-street parking spaces on the block the property is located on. Report should specify it on street parking is residential permit parking (zone and zone regulations must be specified), designated loading spaces, and metered spaces. Report should also identify multi-unit buildings without onsite parking.

2. Vehicular, bicycle, and pedestrian traffic generated by the proposed development including:

a. Trip generation, must include ride-share and deliveries.

b. Trip distribution.

c. Modal split.

d. Level of service under proposed conditions.

3. Traffic impacts caused by the proposed development as per change in existing conditions factoring in the projected buildout in the vicinity of the proposed project as defined in the development report prepared by the Division of City Planning.

4. Explanation of traffic reduction/traffic management plans necessary pursuant to any current federal, state, or county, or municipal recommendations and requirements, and, where applicable, proposed interaction with appropriate county transportation management areas (TMA).

5. Recommendations for alleviating or diminishing any possible congestion or disruption to the established traffic pattern, and for the improvement of pedestrian and bike safety.

6. Any other information requested by the appropriate Division of City Planning reasonably required to make an informed assessment of potential traffic impacts.

§ 345-18. Shadow analysis and visual impact assessment. [Amended 1-13-2021 by Ord. No. 20-112]

A. When required. The Division of City Planning shall require a shadow analysis for all applications with new construction or additions to existing buildings that are 40 feet and over. A visual impact assessment may be required at the discretion of the Division of City Planning to determine if there is any negative impact to the City's scenic corridors and vistas listed in the Master Plan.

B. General provisions.

1. Shadow analysis and visual impact assessment shall be prepared by a qualified professional, such as, but not limited to, an architect, urban designer, or engineer.

C. Shadow analysis submission format.

1. Project description. A description of the proposed project shall be presented to indicate the extent to which the site must be altered, the kinds of facilities to be constructed and the uses intended.

2. Documentation. All publications, file reports, manuscripts or other written sources of information which were consulted shall be listed and footnoted. A list of all agencies and individuals from whom pertinent information was obtained orally or by letter shall be listed separately. Dates and locations of all meetings shall be specified.

3. Elevations of proposed building and surrounding buildings with dimensions shown. Must include roof, parapets, and penthouse/attics. Diagrams should include a north arrow and be drawn to scale.

4. Diagrams of shadow cast by the proposed project should be provided for the following four days of the year. Diagrams must also clearly indicate the existing shadow for comparison:

- Winter solstice (December 21) - midday sun is lowest and shadows are at their longest.

- Summer solstice (June 21) - midday sun is at its highest and shadows are at their shortest.

- Spring/fall equinox (March 21/September 21) - shadows are midway through a period of lengthening.

- The "worst case" shadow day - the day on which the new shadow is the largest/longest duration.

5. On the days the graphical depictions are required, the shadows should be shown on an hourly basis, from one hour after sunrise to one hour before sunset.

   EXAMPLE: On June 21, the sun rises at 5:48 a.m. and sets at 8:35 p.m. Therefore shadow graphics should be included at the following times:

   - A.M.: 6:48, 1, 8, 9, 10, 11

   - P.M.: 12, 1, 2, 3, 4, 5, 6, 7, 7:35

D. Visual impact assessment submission format.

1. Elevation of proposed building or project.

2. Description of unique scenic features and any scenic view from the site.

3. Visual impact the proposal will have on any of the scenic corridors identified in the master plan.

4. Proposed mitigations to negative impacts.

§ 345-19. Notice of applications.

A. Public notice of a hearing on an application for development shall be given. This shall also include: **[Amended 11-28-2001 by Ord. No. 01-129; 11-29-2017 by Ord. No. 17-153]**

1. Preliminary site plan review pursuant to section 34 of N.J.S.A. 40:55D-46;

2. Minor subdivisions pursuant to section 35 of N.J.S.A. 40:55D-47; or

3. Final approval pursuant to section 38 of N.J.S.A. 40:55D-50; and provided that public notice shall be given in the event that relief is requested pursuant to section 47 or 63 of N.J.S.A. 40:55D-60 or 40:55D-76 as part of an application for development otherwise excepted herein from public notice.

B. Public notice shall also be given in the case of an application for appeal to the Zoning Board of Adjustment pursuant to N.J.S.A. 40:55D-70a, or in the case of a request for interpretation by the Zoning Board of Adjustment pursuant to N.J.S.A. 40:55D-70b.

C. Notice of a hearing requiring public notice shall be given by the applicant at least ten (10) days prior to the date of the hearing in the following manner:

1. By publication in the official newspaper of the City.

2. To all owners of real property as shown on the current tax duplicate, Located in the state and within two hundred (200) feet in all directions of the property which is the subject of such hearing, provided that this requirement shall be deemed satisfied by notice to the condominium association, in the case of any unit owner whose unit has a unit above or below it, or horizontal property regime, in the case of any co-owner whose apartment has an apartment above or below it. Notice shall be given by serving a copy thereof on the property owner as shown on said current tax duplicate or his or her agent in charge of the property or mailing a copy thereof by certified mail to the property owner at his or her address as shown on said current tax duplicate.

3. Notice to a partnership owner may be made by service upon any partner. Notice to a corporate owner may be made by service upon its president, a vice president, secretary or other person authorized by appointment or by law to accept service on behalf of the corporation. Notice to a condominium association, horizontal property regime, community trust or homeowners' association, because of its ownership of common elements or areas located within two hundred (200) feet of the property which is the subject of the hearing, may be made in the same manner as to a corporation without further notice to unit owners, co-owners or homeowners on account of such common elements or areas.

4. To the Clerk of any adjoining municipality or municipalities when the property involved is located within two hundred (200) feet of said adjoining municipality or municipalities. Notice shall be given by personal service or certified mail.

5. To the Hudson County Planning Board when the application for development involves property adjacent to an existing county road or proposed road as shown on the County Official Map or the County Master Plan, adjoining other county land or situated within two hundred (200) feet of a municipal boundary. Notice shall be given by personal service or certified mail.

6. To the Commissioner of Transportation of the State of New Jersey when the property abuts a state highway. Notice shall be given by personal service or certified mail.

7. To the State Planning Commission when the hearing involves an application for the development of property which exceeds one hundred fifty (150) acres or five hundred (500) dwelling units, in which case the notice shall include a copy of any maps or documents required to be on file with the Administrative Officer. Notice shall be given by personal service or certified mail.

8. On applications for approval of a major subdivision or a site plan not defined as a minor site plan, to a public utility, cable television company or local utility which possesses a right-of-way or easement

within the city and which has registered with the city in accordance with N.J.S.A. 40:55D-12.1 by (a) serving a copy of the notice on the person whose name appears on the registration form on behalf of the public utility, cable television company or local utility or (b) mailing a copy thereof by certified mail to the person whose name appears on the registration form at the address shown on that form.

D. Upon the written request of an applicant, the City tax assessor shall, within seven days, make and certify a list from current tax duplicates of names and addresses of owners within the City to whom the applicant is required to give notice. Failure to give notice to any lot owner not on the list obtained in such manner shall not invalidate any hearing or proceeding. A sum, not to exceed the maximum set forth in N.J.S.A. 40:55D-12c, shall be charged for such list.

E. The applicant shall be responsible for giving proper notice to all property owners.

F. The notice shall state the date, time and place of the hearing and the nature of the matters to be discussed, including an identification of the property proposed for development by street address, if any, or by reference to lot and block numbers as shown on the current tax duplicate in the City tax assessor's office; and the location and times at which any maps or documents for which approval is sought are available for inspection.

§ 345-20. Registration by public utilities, cable television companies and local utilities.

Every public utility, cable television company and local utility interested in receiving notice pursuant to subsection h. of section 7.1 of N.J.S.A. 40:55D-12 may register with the City if the public utility, cable television company or local utility has a right-of-way or easement. The registration shall remain in effect until revoked by the public utility, cable television company, or local utility or by its successor in interest.

§ 345-21. Development phasing.

Whenever an applicant intends to construct a development in phases, phasing information shall be included in the plans for preliminary approval, and all phases shall be:

A. Functionally self-contained and self-sustaining with regard to access, circulation, parking, utilities, open spaces and all other site improvements and physical features and shall be capable of perpetual independent use, occupancy, operation and maintenance upon completion of construction and development of the section or stage.

B. Properly related to other services of the community as a whole and to those facilities and services yet to be provided in the full execution and implementation of the plan.

C. Provided with such temporary or permanent transitional features, buffers or protective areas as are necessary to prevent damage or detriment to adjoining properties or to any completed section or stage. In addition, such temporary or permanent transitional features, buffers or protective areas shall not impede development of future sections or stages in the planned development. Plans, estimated dates of completion for each section or stage and specifications of such sections or stages are to be filed with the Division of City

Planning, which must be of sufficient detail and of such scale as to fully demonstrate the arrangement and site locations of all structures, primary and accessory land uses, parking, landscaping, public and private utilities and services facilities, and land ownership conditions.

§ 345-21.1. Naming of new streets within a site plan or subdivision plan application. [Added 4-8-2015 by Ord. No. 15-046]

Any new street proposed as part of a site plan or subdivision plan application shall conform to the standards set forth in § 3-39 entitled "Standards for naming streets and municipal property." Final approval of all street names shall rest with the Municipal Council.

§ 345-22. Minor subdivision and minor site plan review procedures. [Amended 5-14-2003 by Ord. No. 03-059]

A. Submission Requirements.
[Amended 1-27-2010 by Ord. No. 10-007; 2-23-2011 by Ord. No. 11-023; 3-12-2025 by Ord. No. 25-022]

1. Submission requirements for minor subdivision and minor site plan approval are provided in the Minor Subdivision and Minor Site Plan Checklist in this article.

2. The City Planning Staff shall request JCMUA to review the application when appropriate. The applicant shall forward copies of the application and plans to review agents upon request.

3. The Division of City Planning Staff shall have the authority to refer any application to other agencies or individuals for comments or recommendations.

B. Review by Other City Agencies and Officials. The officials and agencies cited above shall forward their comments and recommendations in writing to the Division of City Planning and the applicant's contact person as listed in the application form within fourteen (14) days after receipt of the application.

C. Action. **[Amended 2-23-2011 by Ord. No. 11-023]**

1. Applications for minor subdivision approval shall be acted upon by the Planning Board.

2. Upon submission of application documents, City Planning Staff will review the contents of the submission package to verify that it is a valid Application for Development. Upon verification, the application will be formally confirmed as "submitted" and development review will commence.

3. Except for applications governed by the time limits in this Chapter, the Planning Board shall approve, conditionally approve, or deny a minor subdivision or minor site plan as the case may be within forty-five (45) days of the submission of a complete application, unless the applicant shall extend the period of time within which the Planning Board may act.

4. Applicants who request extensions to the period of time within which the Planning Board may act are permitted to do so for one-month intervals, not to exceed three (3) months total. There shall be no limit to extensions requested by Planning Staff, so long as the applicant agrees to said extensions.

5. Failure of the Planning Board to act within the period prescribed shall constitute minor subdivision or site plan approval, as the case may be. A certificate of the Board Secretary as to the failure of the Board to act shall be issued on request of the applicant. The certificate shall be sufficient in lieu of the written endorsement or other evidence of approval, herein required, and shall be so accepted by the County Register for purposes of filing subdivision plats or deeds.

D. Effect of Approval.

1. Approval of a minor subdivision or minor site plan shall be deemed final approval provided that the Subcommittee or Board, as the case may be, may condition such approval on the provision of improvements as may be required. The zoning requirements and general terms and conditions, whether conditional or otherwise, upon which minor subdivision or minor site plan approval was granted, shall not be changed for a period of two years after the date on which the resolution of approval is adopted provided that the approved minor subdivision shall have been duly recorded in accordance with this Article.

2. Approval of any variance associated with a minor subdivision and/or minor site plan shall be valid for a period of two years after the date on which the resolution of approval is adopted if no construction, alteration or conversion has commenced within the two-year period.

E. Expiration of Minor Subdivision. Approval of a minor subdivision shall expire one hundred ninety (190) days from the date on which the resolution of approval is adopted unless within such period a plat in conformity with such approval and the Map Filing Law, N.J.S.A. 46:23-9.9 et seq., or a deed clearly describing the approved minor subdivision is filed by the developer with the County Register, the City Engineer and the City Tax Assessor. Any such plat or deed accepted for such filing shall have been signed by the Board Chairperson and Secretary. In reviewing the application for development for a proposed minor subdivision, the Subcommittee may accept a plat not in conformity with N.J.S.A. 46:23-9.9 et seq.; provided that if the developer chooses to file the minor subdivision as provided herein by plat rather than deed such plat shall conform with the provisions of the said act.

F. Extensions of Minor Subdivision Approval. **[Amended 2-23-2011 by Ord. No. 11-023]**

1. The Planning Board may extend the one hundred ninety (190) day period for filing a minor subdivision plat or deed pursuant to this Chapter if the developer proves to the reasonable satisfaction of the Board:

a. That the developer was barred or prevented, directly or indirectly, from filing because of delays in obtaining legally required approvals from other governmental or quasi-governmental entities; and

b. That the developer applied promptly for and diligently pursued the required approvals. The length of the extension shall be equal to the period of delay caused by the wait for the required approvals, as determined by the Board. The developer may apply for the extension either before or after what would otherwise be the expiration date.

2. The Planning Board shall grant an extension of minor subdivision approval for a period determined by the Board, but not exceeding one year from what would otherwise be the expiration

date, if the developer proves to the reasonable satisfaction of the Board that the developer was barred or prevented, directly or indirectly, from proceeding with the development because of delays in obtaining legally required approvals from other governmental agencies and that the developer applied promptly for and diligently pursued the required approvals. The developer shall apply for the extension before (a) what would otherwise be the expiration date of minor subdivision approval; or (b) the 91st day after the developer receives the first legally required approval from other governmental entities, whichever occurs later.

G. Inactive Applications. **[Amended 2-23-2011 by Ord. No. 11-023]**

1. Any application for minor subdivision or minor site plan which has remained inactive and incomplete for six (6) consecutive months shall be subject to dismissal by City Planning Staff.

2. In order to be dismissed for inactivity, City Planning Staff must first provide a written warning to project applicant. A thirty (30) day time period must be provided for the applicant's response demonstrating diligence towards obtaining Board approval, including but not necessarily limited to fee payment in full and plan revisions.

3. If after thirty (30) days from the date of contact for inactivity pursuant to G.2 above, the applicant has not responded to City Planning Staff, has not submitted application fees, and/or has not demonstrated diligence towards obtaining Board approval, the application may be permanently dismissed by City Planning Staff.

§ 345-23. Preliminary major subdivision and site plan review procedures. [Amended 5-14-2003 by Ord. No. 03-059]

A. Submission Requirements. **[Amended 1-27-2010 by Ord. No. 10-007; 2-23-2011 by Ord. No. 11-023; 3-12-2025 by Ord. No. 25-022]**

1. Submission requirements for preliminary major subdivision and preliminary site plan approval are provided in the Preliminary Major Subdivision and Site Plan Checklist.

2. The City Planning Staff shall request review agents to review the application when appropriate. The applicant shall forward copies of the application and plans to review agents upon request.

3. The Division of City Planning shall have the authority to refer any application to other agencies or individuals for comments or recommendations.

B. Review by Other City Agencies and Officials. The officials and agencies cited in this article above shall forward their comments and recommendations in writing to the Division of City Planning within fourteen (14) days after the receipt of the application.

C. Board Action. **[Amended 2-23-2011 by Ord. No. 11-023]**

1. Subdivisions.

a. Upon submission of application documents, City Planning Staff will review the contents of the submission package to verify that it is a valid Application for Development. Upon verification, the application will be formally confirmed as "submitted" and development review will commence.

b. The Board shall approve, conditionally approve or deny a preliminary major subdivision application of ten (10) or fewer lots within forty-five (45) days after the submission of a complete application, unless the applicant shall extend the period of time within which the Board may act.

c. The Board shall approve, conditionally approve or deny a preliminary major subdivision application of more than ten (10) lots within ninety-five (95) days after the submission of a complete application, unless the applicant shall extend the period of time within which the Board may act.

d. Applicants who request extensions to the period of time within which the Planning Board may act are permitted to do so for one-month intervals, not to exceed three (3) months total. There shall be no limit to extensions requested by City Planning Staff, so long as the applicant agrees to said extensions.

e. Failure of the Board to act within the time prescribed shall constitute preliminary major subdivision approval and a certificate of the Board Secretary as to the failure of the Board to act shall be issued on request of the Applicant. Said certificate shall be sufficient in lieu of the written endorsement or other evidence of approval herein required, and shall be accepted by the County Register for purposes of filing subdivision plats.

2. Site Plans.

a. Upon submission of application documents, City Planning Staff will review the contents of the submission package to verify that it is a valid Application for Development. Upon verification, the application will be formally confirmed as "submitted" and development review will commence.

b. The Board shall approve, conditionally approve or deny a preliminary major site plan which involves ten (10) acres of land or less, and ten (10) dwelling units or less, within forty-five (45) days after the submission of a complete application unless the applicant shall extend the period of time within which the Board may act.

c. The Board shall approve, conditionally approve or deny the preliminary major site plan of more than ten (10) acres or more than ten (10) dwelling units within ninety-five (95) days after the application is certified complete unless the applicant shall extend the period of time within which the Board may act.

d. Applicants who request extensions to the period of time within which the Planning Board may act are permitted to do so for one-month intervals, not to exceed three (3) months total. There shall be no limit to extensions requested by City Planning Staff, so long as the applicant agrees to said extensions.

e. Failure of the Board to act within the time prescribed shall constitute preliminary major site plan approval and a certificate of the Board Secretary as to the failure of the Board to act shall be issued on request of the applicant. Said certificate shall be sufficient in lieu of a written endorsement or other evidence of approval herein required.

D. Effect of Preliminary Approval. Preliminary approval of a major subdivision or site plan, except as provided in subsection (D) of this section, shall confer upon the applicant the following rights for a three-year period from the date on which the resolution granting preliminary approval is adopted:

1. That the general terms and conditions on which preliminary approval was granted shall not be changed, including, but not limited to, use requirements; layout and design standards for streets, curbs and sidewalks; lot sizes; yard dimensions and off-tract improvements; and in the case of a site plan, any requirements peculiar to site plan approval pursuant to N.J.S.A. 40:55D-41, except that nothing herein shall be construed to prevent the City from modifying by ordinance such general terms and conditions of preliminary approval as related to public health and safety.

2. That the applicant may submit for final approval on or before the expiration date of preliminary approval the whole or a section or sections of the preliminary subdivision plat or site plan, as the case may be.

3. That the applicant may apply for and the Board may grant extension on such preliminary approval for additional periods of at least one year but not to exceed a total extension of two years, provided that if the design standards have been revised by ordinance, such revised standards may govern.

4. In the case of a subdivision of or a site plan for a planned development of fifty (50) acres or more, conventional subdivision or site plan for one hundred fifty (150) acres or more, or site plan for development of a non-residential floor area of two hundred thousand (200,000) square feet or more, the appropriate Board may grant the rights referred to in subsections (A), (B) and (C) of this section for such period of time, longer than two years, as shall be determined by the appropriate Board to be reasonable taking into consideration (a) the number of dwelling units and non-residential floor area permissible under final approval, (b) economic conditions and (c) the comprehensiveness of the development. The developer may apply for thereafter, and the Board may thereafter grant, an extension of final approval for such additional period of time as shall be determined by the Board to be reasonable taking into consideration (a) the number of dwelling units and nonresidential floor area permissible under final approval, (b) the number of dwelling units and non-residential floor area remaining to be developed, (c) economic conditions and (d) the comprehensiveness of the development.

5. Whenever the Board grants an extension of preliminary approval and preliminary approval has expired before the date on which the extension was granted, the extension shall begin on what would otherwise be the expiration date. The developer may apply for an extension either before or after what would otherwise be the expiration date.

6. The Board shall grant an extension of preliminary approval for a period determined by the Board but not exceeding one year from what would otherwise be the expiration date, if the developer proves to the reasonable satisfaction of the Board that the developer was barred or prevented, directly or indirectly, from proceeding with the development because of delays in obtaining legally required approvals from other governmental entities and that the developer applied promptly for and diligently pursued the required approvals. The developer shall apply for the extension before (a) what would otherwise be the expiration date of the preliminary approval, or (b) the 91st day

after the developer received the last legally required approval from other governmental entities, whichever is later. An extension granted pursuant to this section shall not preclude the Board from granting an extension pursuant to the provisions of this Article.

E. Simultaneous Preliminary and Final Site Plan Approval.

1. Combined preliminary and final site plan approval may be granted provided all submission requirements for both applications are met. The time limit within which the Board shall act shall be the longest time permitted for either of the two approvals.

2. Approval of any variance associated with a combined preliminary and final site plan approval shall be valid for a period of two years after the date on which the resolution of approval is adopted if no construction, alteration or conversion has commenced within the two-year period.

F. Applications for variance approval which required neither Major Site Plan approval nor Major or Minor Subdivision approval shall be submitted to the Zoning Board of Adjustment. Approval of any variance by the Zoning Board of Adjustment shall be valid for a period of two years after the date on which the resolution of approval is adopted if no construction, alteration or conversion has commenced within the two-year period.

G. Inactive Applications. **[Amended 2-23-2011 by Ord. No. 11-023]**

1. Any application for Preliminary Major subdivision or Preliminary Major site plan which has remained inactive and incomplete for six (6) consecutive months shall be subject to dismissal by City Planning Staff.

2. In order to be dismissed for inactivity, City Planning Staff must first provide a written warning to project applicant. A thirty (30) day time period must be provided for the applicant's response demonstrating diligence towards obtaining Board approval, including but not necessarily limited to fee payment in full and plan revisions.

3. If after thirty (30) days from the date of contact for inactivity pursuant to G.2 above, the applicant has not responded to City Planning Staff, has not submitted application fees, and/or has not demonstrated diligence towards obtaining Board approval, the application may be permanently dismissed by City Planning Staff.

§ 345-24. Final approval of major subdivision and site plan review procedures. [Amended 5-14-2004 by Ord. No. 03-059]

A. Submission Requirements. **[Amended 1-27-2010 by Ord. No. 10-007; amended 2-23-2011 by Ord. No. 11-023; amended 3-12-2025 by Ord. No. 25-022]**

1. Submission requirements for final major subdivision and site plan approval are provided in the Final Major Subdivision and Final Site Plan Checklist.

2. The City Planning Staff shall request review agents to review the application when appropriate. The applicant shall forward copies of the application and plans to review agents upon request.

3. The Division of City Planning shall also have the authority to refer any application to other agencies or individuals for comments or recommendations.

B. Review by Other City Agencies and Officials. The officials and agencies cited in this article above shall forward their comments and recommendations in writing to the Division of City Planning and the applicant's contact person as listed in the application form within fourteen (14) days after the receipt of the final application.

C. Amendments to the Plan. If as a result of review of any governmental agencies, there are changes to the approved plan, then the applicant shall submit an amended application to the reviewing Board.

D. Board Action. **[Amended 2-23-2011 by Ord. No. 11-023]**

1. Upon submission of application documents, City Planning Staff will review the contents of the submission package to verify that it is a valid Application for Development. Upon verification, the application will be formally confirmed as "submitted" and development review will commence.

2. The Board shall grant final approval if the detailed drawings, specifications and estimates of the application for final approval conform to the standards established by ordinance for final approval, the conditions for preliminary approval, and, in the case of a major subdivision, the standards prescribed in the "Map Filing Law" P.L. 1960, c. 141. In the case of a planned unit development, planned unit residential development or residential cluster, the Board may permit minimal deviations from the conditions of preliminary approval necessitated by change of conditions beyond the control of the developer since the date of preliminary approval without the developer being required to submit another application for development for preliminary approval.

3. Final approval shall be granted or denied within forty-five (45) days after submission of a complete application or within such further time as may be consented to by the applicant. Failure of the Board to act within the period prescribed shall constitute final approval and a certificate of the Board Secretary as to the failure of the Board to act shall be issued on request of the applicant. The certificate shall be sufficient in lieu of the written endorsement or other evidence of approval, herein required, and, in the case of subdivision plans, shall be so accepted by the County Register for purposes of filing.

4. Applicants who request extensions to the period of time within which the Planning Board may act are permitted to do so for one-month intervals, not to exceed three (3) months total. There shall be no limit to extensions requested by City Planning Staff, so long as the applicant agrees to said extensions.

5. Whenever review or approval of the application by the County Planning Board is required by N.J.S.A. 40:27-6.1 or 40:27-6.6, the Board shall condition its approval upon timely receipt of a favorable report on the application by the County Planning Board or approval by the County Planning Board by its failure to report thereon within the required time period.

E. Effect of Final Approval.

1. The zoning requirements applicable to the preliminary approval first granted and all other rights conferred upon the developer including any associated variance approval, pursuant to this Article,

whether conditionally or otherwise, shall not be changed for a period of two years after the date on which the resolution of final approval is adopted; provided that in the case of major subdivision the rights conferred by this Article shall expire if the plat has not been duly recorded within the time period provided in this article. If the developer has followed the standards prescribed for final approval and, in the case of subdivision, has duly recorded the plat with the County Register in accordance with this article, Board may extend such period of protection for extensions of one year but not to exceed three extensions. Notwithstanding any other provisions of this Article, the granting of final approval terminates the time period of preliminary approval pursuant to this Article, for any section of the development which is granted final approval.

2. In the case of a subdivision or site plan for a planned development of fifty (50) acres or more, conventional subdivision or site plan for one hundred fifty (150) acres or more, or site plan for the development of nonresidential floor area of two hundred thousand (200,000) square feet or more, Board may grant the rights referred to in this Article for such period of time, longer than two years, as shall be determined by the Board to be reasonable, taking into consideration:

   a. The number of dwelling units and non-residential floor area permissible under final approval.

   b. Economic conditions.

   c. The comprehensiveness of the development. The developer may apply for thereafter, and the Board may thereafter grant, an extension of final approval for such additional period of time as shall be determined by the Board to be reasonable taking into consideration the following:

      i. The number of dwelling units and nonresidential floor area permissible under final approval;

      ii. The number of dwelling units and nonresidential floor area remaining to be developed;

      iii. Economic conditions; and

      iv. The comprehensiveness of the development.

3. Whenever the Board grants any extension of final approval pursuant to this Article and final approval has expired before the date on which the extension is granted, the extension shall begin on what would otherwise be the expiration date. The developer may apply for the extension either before or after what would otherwise be the expiration date.

4. The Board shall grant an extension of final approval for a period determined by the Board but not exceeding one year from what would otherwise be the expiration date, if the developer proves to the reasonable satisfaction of the Board that the developer was barred or prevented, directly or indirectly, from proceeding with the development because of delays in obtaining legally required approvals from other governmental entities and that the developer applied promptly for and diligently pursued these approvals. A developer shall apply for an extension before (a) what would otherwise be the expiration date of final approval, or (b) the 91st day after the developer receives the last legally required approval from other governmental entities, whichever occurs later. An extension granted pursuant to this Article shall not preclude the Board from granting an extension pursuant to subsections (E)(1) and (2) of this section.

F. Conditions of Approval.

1. Conditions Binding. All conditions of preliminary and final approval shall be binding upon the applicant, all present and future owners, tenants, users and occupants of the property and their respective successors and assigns.

2. Failure to Maintain. The applicant and any successor in interest shall be responsible for installing and maintaining in good order and condition all required improvements and landscaping, unless such improvements and landscaping are to be installed by, and/or dedicated to and maintained by the City, County or another party, under the terms of approval granted by the Board. Such required improvements shall include, but not be limited to, parking improvements, buffer zones, drainage facilities, exterior lighting and landscaping. Failure of any responsible party to install and/or maintain required improvements or landscaping, shall constitute a violation of this Chapter and shall be subject to the enforcement procedures set forth in this Chapter.

3. Payment of Taxes and Assessments. As a condition of approval all taxes or assessments for local improvements shall be paid on the property for which any application is made.

G. Expiration of Final Major Subdivision Approval.

1. Final approval of a major subdivision shall expire ninety-five (95) days from the date of signing of the plat unless within such period the plat shall have been duly filed by the applicant with the County Register. The Board may for good cause shown extend the period for recording for an additional period not to exceed one hundred ninety (190) days from the date of signing of the plat. The Board may extend the ninety-five (95) day or one hundred ninety (190) day period if the applicant proves to the reasonable satisfaction of the Board (a) that the applicant was barred or prevented, directly or indirectly, from filing because of delays in obtaining legally required approvals from other governmental or quasi-governmental entities and (b) that the applicant applied promptly for and diligently pursued required approvals. The length of the extension shall be equal to the period of delay caused by the wait for the required approvals, as determined by the Board. The developer may apply for an extension either before or after the original expiration date.

2. No subdivision plat shall be accepted for filing by the County Register until it has been approved by the Board as indicated on the instrument by the signature of the Chairperson, Secretary of the Board. The signatures of the Board Chairperson and Secretary shall not be affixed until the developer has posted the performance guarantees required by this Chapter and has satisfied all other applicable conditions of final approval. If the County records any plat without such approval, such recording shall be deemed null and void, and upon request of the municipality, the plat shall be expunged from the official records.

H. Inactive Applications. **[Amended 2-23-2011 by Ord. No. 11-023]**

1. Any application for Final Major subdivision or Final Major site plan which has remained inactive and incomplete for six consecutive months shall be subject to dismissal by City Planning Staff.

2. In order to be dismissed for inactivity, City Planning Staff must first provide a written warning to project applicant. A thirty (30) day time period must be provided for the applicant's response demonstrating diligence towards obtaining Board approval, including but not necessarily limited to fee payment in full and plan revisions.

3. If after thirty (30) days from the date of contact for inactivity pursuant to H.2 above, the applicant has not responded to City Planning Staff, has not submitted application fees, and/or has not demonstrated diligence towards obtaining Board approval, the application may be permanently dismissed by City Planning Staff.

§ 345-25. Amended site plan or subdivision review. [Amended 2-23-2011 by Ord. No. 11-023]

Applications for amended site plan or subdivision review shall be governed by the same requirements as all other applications for Preliminary Major Subdivision or site plan approval. Amendments shall be necessary for any application with minor changes. Projects with changes involving substantial redesign, a change of twenty percent (20%) or more (either increasing or decreasing) in the number of units, or a change of twenty percent (20%) or more (either increasing or decreasing) in the number of stories, shall not be considered amendments but will require a new Application for Development.

§ 345-26. Conditional use approval.

The submission requirements and review process for conditional use applications shall be the same as for a major site plan, except as set forth below.

A. The Board shall grant or deny an application for conditional use approval within ninety-five (95) days of submission of a complete application or within such further time as may be consented to by the applicant.

B. The Board shall approve or deny a conditional use application simultaneously with any accompanying subdivision and/or site plan application. The longest time period for action by the Board, whether it be for subdivision, conditional use or site plan approval, shall apply. Whenever approval of a conditional use is requested by the applicant, notice of the hearing on the application shall include reference to the request for conditional use approval.

§ 345-27. County approval.

Whenever review or approval of a development application by the County Planning Board is required by N.J.S.A. 40:27-6.3 or 40:27-6.6, the Board shall condition any approval that it grants upon timely receipt of a favorable report on the application by the County Planning Board, The County Planning Board's failure to report thereon within the required time period provided by law shall be considered a favorable response. Whenever County Planning Board review or approval is required, the applicant shall be responsible for filing all necessary applications, plans, reports and other documents directly with the County Planning Board.

§ 345-28. Signing and distribution of approved plans. [Amended 5-14-2003 by Ord. No. 03-059]

A. When all conditions of any minor, preliminary or final approval have been met, the applicant shall submit to the Board Secretary a digital copy of the approved plan(s) with all revisions required by the conditions of approval and a New Jersey Department of Community Affairs Certification for ePlans. The approved plan(s) shall then be digitally signed by the Board Secretary. A digital signed plan will

be available to the Division of Zoning, Building Department, and Division of City Planning. **[Amended 3-12-2025 by Ord. No. 25-022]**

B. In addition to the foregoing, whenever any subdivision is to be perfected by the filing of the approval plat with the County Register in conformance with the Map Filing Law, the applicant shall submit to the Board Secretary, simultaneously with the plans described in subsection (A) of this section, two mylars and at least four paper prints of the plat intended for recording. Provided that it conforms to the Map Filing Law, the plat intended for recording shall be signed by the Board Chairperson and Secretary simultaneously with the signing of the approved plans submitted pursuant to subsection (A) of this section. After signing, one mylar and all paper prints of the plat so signed shall be returned to the applicant for recording with the County Register.

C. Following the filing of any approved subdivision plat or minor subdivision deed with the County Register, the applicant shall promptly deliver to the Board Secretary at least four copies of the filed plat or recorded deed, as the case may be.

D. Whenever any subdivision is to be perfected by the filing of the approved plat with the County Register, and when the engineering review of such subdivision has been performed by the Board Engineer, the plat intended for recording shall be signed by the Municipal Engineer.

E. The Division of City Planning shall maintain at least one true copy of all signed and approved site plans and subdivision deeds and all signed, approved and filed subdivision plats.

§ 345-29. Subdivision certificate.

The prospective purchaser, prospective mortgagee, or any other person interested in any land which forms part of a subdivision three years preceding the effective date of the Act, may apply in writing to the Administrative Officer, for the issuance of a certificate certifying whether or not such subdivision has been approved by the Board. Such application shall contain a diagram showing the location and dimension of the land to be covered by the certificate and the name of the owner thereof.

§ 345-30. Historic preservation review procedures.

A. Certificate of Appropriateness/Certificate of No Effect. No permit shall be issued or amended nor shall any construction, alteration, minor alteration, ordinary maintenance and repair or demolition be started on a landmark building nor on any sign, building, structure, object, site or landscape feature within a designated historic district, whether or not a construction permit is required, prior to a filing of an application for review by the Historic Preservation Commission and the issuance of a Certificate of Appropriateness or a Certificate of No Effect. **[Amended 11-10-2010 by Ord. No. 10-129; 5-26-2021 by Ord. No. 21-036]**

1. Application for review. The Historic Preservation Commission staff maintains and makes updates as necessary to the Application for the Certificate of Appropriateness and/or a Certificate of No Effect (also known as "Historic Preservation Application"). A copy of the Application is available upon request from the Division of City Planning staff or a digital version is accessible through the City's official website.

2. Review process.

   a. Applications must be submitted to the Division of City Planning a minimum of fourteen (14) business days prior to a Commission's regularly scheduled meeting and shall be reviewed for completeness by the Historic Preservation Officer as per the Historic Preservation Commission application checklist provided in this Article. The Historic Preservation Officer shall refer all applications for new construction, alterations, relocation or demolition to the Historic Preservation Commission for review. Applications referred to the Historic Preservation Commission must be complete at least ten (10) days prior to a hearing date for the purpose of scheduling. At least ten (10) days prior to the hearing the applicant shall post a notice on the property on a form provided by the Division of City Planning. Applications for minor alterations and ordinary maintenance and repair may be reviewed by the Historic Preservation Officer who, at his or her discretion may issue a Certificate of No Effect, may require additional submittal information and/or refer the application to the Commission upon being deemed complete. A Certificate of No Effect shall require the signature of the Director of City Planning.

   b. In making such a determination the Historic Preservation Officer shall consider the effect of the proposed work in creating, altering, destroying or affecting the architectural features of the landmark building, structure, object, site or landscape feature upon which such work is to be done and the relationship between the results of such work and the architectural features of neighboring buildings, structures, objects, sites and landscape features. In appraising such effects and relationships, factors of aesthetic, historical and architectural values and significance, architectural style, design, arrangement, texture, material and color in addition to any other pertinent matters shall be considered. These criteria are listed in addition to those which are found elsewhere in this Article.

   c. The Commission may advise the applicant and make recommendations with regard to the appropriateness of the proposed action at the public hearing. These recommendations may become part of the conditions for approval of an application, may be referred to a subcommittee of the Commission for further review with the applicant's consent or the basis for the rejection of an application.

   d. The outcome of all Commission decisions shall be recorded by the Historic Preservation Officer and presented to the Administrative Officer by the close of the following business day.

   e. If an application is approved, a Certificate of Appropriateness or Certificate of No Effect shall be issued promptly by the Commission. The chairperson or acting chairperson and one other Commission member shall sign all Certificates of Appropriateness.

   f. If the Commission disapproves an application, the Commission shall state its reasons in writing to the applicant within ten (10) days of such decision.

3. Reapplication for Certificate of Appropriateness. If an application for a Certificate of Appropriateness is denied, another application pertaining to the same site, structure, building, object or landscape feature shall not be resubmitted for consideration until one year has elapsed from the date of disapproval unless a substantially different application is resubmitted or if there has been

a change in circumstances. The Commission may waive, by five affirmative votes, the aforementioned time restriction if an application presents substantial evidence providing the above. If a waiver is granted, a new application shall be filed as per the procedures set forth herein.

B. Appeals to the Board of Adjustment. **[Amended 11-10-2010 by Ord. No. 10-129]**

1. An applicant dissatisfied with the action of the Commission resulting in the denial of a Certificate of Appropriateness shall have the right to appeal to the Board of Adjustment within twenty (20) days after receipt of notification of such action. The applicant shall be advised by the Secretary to the Board of Adjustment of the time and place of the hearing at which the appeal will be considered and shall have all rights defined under N.J.S.A. 40:55D-70, Subsection a.

2. A Certificate of Appropriateness or a Certificate of No Effect shall be valid for a period of one year from the date of issue unless reasonable extensions are granted by the Commission; requests for extensions shall be made by written request and shall require five affirmative votes. If a permit is also required and is obtained prior to expiration of the one-year period, then the certificate shall be valid for the life for the permit.

C. Emergency procedure.

1. In the event that an act of God or any other unexpected event shall cause a property owner the need for immediate issuance of a building permit or other permit to commence to stabilize, secure, repair or protect a landmark building, structure, object, site or landscape feature damaged from such event, and a Certificate of Appropriateness or a Certificate of No Effect is a condition precedent to the issuance of such permit, and the Construction Code Official certifies the immediate necessity for such permit issuance, a Notice to Proceed may be issued in forthwith. In the event that a Notice to Proceed is issued, following emergency stabilization, the property owner is required to submit to the Historic Preservation Commission a full structural stabilization and remediation plan which shall be prepared by a licensed structural engineer. The applicant may proceed with construction in accordance with the submitted plan only upon approval of a Certificate of Appropriateness or Certificate of No Effect, unless conditions affecting the stability of the subject structure change and make necessary a new Notice to Proceed.

2. All other subsequent work must be submitted for review by the Historic Preservation Commission under the application procedures found elsewhere in this Article.

D. Reserved.

Editor's note—Ord. No. 11-045, adopted April 27, 2011, amended the Code by repealing former subsection D. Former subsection D pertained to a Certificate of Economic Hardship, and derived from Ord. No. 10-106, adopted September 15, 2010.

E.1. Application for Demolition Permit for Properties Not Designated as a Local Landmark or Within a Locally Designated Historic District. The Historic Preservation Officer shall review all demolition applications for properties not designated as a local landmark or within a local landmark using the following criteria: **[Added 2-13-2025 by Ord. No. 25-006]**

1. The age (noting if the building and/or structure was constructed more than 50 years ago), architectural style, historical associations and significance of the building or structure;

2. Whether the building or structure is identified in any component element of the master plan

3. Whether the building or structure is associated with events that have made a significant contribution to the broad patterns of our local, state, and/or national history; or

4. Whether the building or structure was associated with the life of a person who made a significant contribution to local, state and/or national history;

5. Whether the building or structure embodies the distinctive characteristics of a type, period, or method of construction, or that represents the work of a master, or that possess high artistic value, or that represent a significant and distinguishable entity whose components may lack individual distinction; most especially if no other, or very few, buildings or structures with the same association has survived;

6. Whether the building or structure has yielded, or may be reasonably likely to yield, information important in prehistory or history;

7. Whether the building or structure maintains integrity of:

    i. Location: the place where the property was constructed or the place where a historic event occurred; and/or

    ii. Design: the combination of elements that create the form, plan, space, structure, and style of a property; and/or

    iii. Setting: the physical environment of the property; and/or

    iv. Materials: the physical elements that were combined or deposited during a particular period of time and in a particular pattern or configuration to form the property; and/or

    v. Workmanship: the physical evidence of the crafts of a particular culture or people during any given period in history or prehistory; and/or

    vi. Feeling: the property's expression of the historic sense of a particular period of time; and/or

    vii. Association: the property's direct link between an important historic event or person and a historic property.

E.2. Application for Demolition Permit for Properties Designated as a Local Landmark or Within a Locally Designated Historic District. **[Amended 9-15-2010 by Ord. No. 10-106; amended 2-13-2025 by Ord. No. 25-006]**

1. The following shall be considered in regard to an application to demolish an individual landmark building, structure, site or object or any building, structure, site or object contained within a historic district:

    a. Its historic, architectural and aesthetic significance.

    b. Its use.

c. Its importance to the city and the extent to which its historic or architectural value is such that its removal would be detrimental to the public interest.

d. The extent to which it is of such old, unusual or uncommon design, craftsmanship, texture or material that it could not be reproduced or could be reproduced only with great difficulty.

e. The probable impact of its removal upon the ambience of the historic district.

f. The structural soundness and integrity of the building so as to comply with the requirements of the state uniform code.

g. The effect on the remaining portions of the building, structure, site, object or landscape feature in cases of partial demolition.

2. In the event that a structure is unsafe or unsound so as to impose a danger to health or safety, the power and authority of the City of Jersey City to demolish the structure, as otherwise provided by law, shall not be impaired or altered in any way by the provisions of this Chapter. The city shall be exempt from making an application to the Commission but shall notify the Commission prior to the demolition.

3. If an application to demolish is denied, the applicant shall follow the appeal process detailed in § 105-3.

F. Pursuant to N.J.S.A. 40:55D-65.1, procedure for nominating, landmarks and districts for local designation. Any interested party may nominate a landmark or district for local designation. The nomination may originate at either the Historic Preservation Commission (the Commission), the Planning Board or City Council; however, in any case, it shall be reviewed by all of these bodies.

1. Proposals to Designate a Property/Properties as a Historic Landmark or District.

a. All proposals for nomination shall be submitted to the Division of Planning Staff for review of completeness prior to being scheduled for the Historic Preservation Commission, Planning Board, and City Council.

b. Nomination Proposals for Individual Landmarks. The interested party shall provide a nomination report that shall include the following information which addresses the criteria for designation as set forth herein:

(1) Clear exterior photograph(s) showing the entirety of the proposed landmark property; and

(2) Historic photograph(s) of the property and 1938 Tax Card (if available); and

(3) A location map showing the proposed landmark property on the municipal tax map; and

(4) A physical description of the proposed landmark; and

(5) A statement of significance pursuant to the criteria set forth in § 345-30.F.3.

c. Nomination Proposals for Landmark Districts. The interested party shall provide a nomination report that shall include the following information which addresses the criteria for designation as set forth herein:

(1) A building-by-building inventory of all properties within the district identifying contributing, noncontributing, or intrusions; and

(2) Clear exterior photograph(s) of each property and building within the district; and

(3) Historic photograph(s) and 1938 Tax Cards of properties within the district (if available); and

(4) A copy of the municipal tax map showing the proposed landmark district boundaries and parcels included in the district; and

(5) A physical description of the proposed district and boundaries; and

(6) A statement of significance pursuant to the criteria set forth in § 345-30.F.3.

d. The nomination of multiple or discontiguous properties as landmarks or districts may be considered. Multiple property designations shall be for properties that are historically, physically, thematically, or otherwise related.

(1) The staff may determine whether a proposed designation of multiple or discontiguous properties should be filed as a landmark or district application, or as multiple applications, as appropriate.

(2) The Commission may also consider and adopt National Register multiple property registration forms as a framework for the designation of related properties.

2. Procedures for Designation.

a. Interested parties shall prepare and submit an application to the Historic Preservation Commission regarding consideration of a proposed historic landmark(s) or district. The Commission may also initiate the designation of a historic landmark or district. Upon receipt of a complete application, the Historic Preservation Commission Staff will schedule a hearing (which may be a regularly scheduled meeting of the Commission) before the Commission to review the proposed historic landmark(s) or district.

b. Notice to Owners. At least ten days prior to the scheduled hearing, property owner(s) of record for the proposed landmark(s) or district(s) shall be notified via certified mail.

(1) The owner(s) of record for proposed landmark(s) or district(s) shall be notified that the property is being considered for designation and the reasons therefor.

(2) Notify the owner(s) of record of the date, time and location of the hearing concerning the proposed designation of the property.

(3) Property owners in proposed districts shall be notified via public notice in the official newspaper of the City published at least ten days prior to the scheduled hearing.

(4) Serve any notices further required under the provisions of the Municipal Land Use Law.

c. Public Notice of Hearing. Notice of public hearing is required for both Historic Preservation Commission review and Planning Board review. At least ten days prior to the public hearing, the Commission shall also publish public notice of the hearing to be published in the official newspaper of the City.

d. A copy of the proposal for nomination shall be available to the public at least ten days prior to the hearing.

e. Upon review, including hearing comments from the public, if any, the proposed nomination for the landmark(s) or district shall be voted on by the Historic Preservation Commission. If approved, the Commission shall forward the proposed landmark or district nomination to the Planning Board for consideration.

f. Upon review and approval of the proposed landmark(s) or district by the Planning Board, the landmark(s) or district nomination will be sent to the City Council to amend and supplement this chapter.

g. Public Notice of Designation. Notice of designation shall be made public by publication in the official newspaper of the City and by distribution to all municipal agencies reviewing development applications and permits. A certificate or letter of designation shall be sent to the owner(s) of record.

h. All other requirements of the Municipal Land Use Law regarding adoption of development regulations shall be followed.

3. Criteria for Designation.

a. As stated in the U.S. Department of the Interior's National Register Criteria for Evaluation, the following criteria shall also be used by the Commission for its review for designation of landmark and districts: the quality of significance in national, State or municipal history, architecture, archaeology, and culture if present in districts, sites, buildings, structures, and objects that possess integrity of location, design, setting, materials, workmanship, feeling, and association and:

(1) That are associated with events that have made a significant contribution to the broad patterns of our history; or

(2) That are associated with the lives of persons significant in the past; or

(3) That embody the distinctive characteristics of a type, period, or method of construction or that represent the work of a master, or that possess high artistic values, or that represent a significant and distinguishable entity whose components may lack individual distinction; or

(4) That has yielded, or may be likely to yield, archaeological information important in prehistory or history.

b. Criteria for Specific Sites. Ordinarily cemeteries, birthplaces, or graves of historical figures, properties owned by religious institutions or used for religious purposes, structures that have been moved from their original locations, reconstructed historic buildings, properties primarily commemorative in nature, and properties that have achieved significance within the past 50 years shall not be considered eligible for nomination; however, such properties will qualify if they are integral parts of districts that do meet the criteria or if they fall within the following categories:

(1) A religious property deriving primary significance from architectural or artistic distinction or historical importance; or

(2) A building or structure removed from its original location but which is significant primarily for architectural value, or which is the surviving structure most importantly associated with a historic person or event; or

(3) A birthplace or grave of a historical figure of outstanding importance if there is no appropriate building, structure or site directly associated with their productive life; or

(4) A cemetery which derives its primary significance from graves of persons of transcendent importance, from distinctive design features, or from association with historic events; or

(5) A reconstructed building when accurately executed in a suitable environment and presented in a dignified manner as part of a restoration master plan, and when no other building or structure with the same association has survived; or

(6) A property primarily commemorative in intent if design, age, tradition, or symbolic value has invested it with its own historical significance; or

(7) A property achieving significance within the past 50 years if it is of exceptional importance.

c. The designation of landmark(s) and districts within the boundaries of the City of Jersey City by the City Council represents that a site, building, structure, object, or district:

(1) Qualifies as "significant" according to the Criteria for Significance set forth in this Section; and

(2) Possesses "integrity" of location, design, setting, materials, workmanship, feeling, and association, meaning that its features (including its potential archaeological deposits) have not been seriously disfigured or compromised at the time of consideration by irreversible and/or inappropriate alterations.

4. Amendments. Amendments to landmark(s) or district designations may be made in the same manner as they were adopted in accordance with the provisions of this article.

G. Landmarks and Districts. Pursuant to this section, the following landmark buildings, objects, sites, structures, landscape features, and districts are designated and recognized as "historic" and shall enjoy the protection of law as herein provided. **[Added 1-22-2003 by Ord. No. 03-009; amended 1-11-2006 by Ord. No. 05-176; 3-23-2011 by Ord. No. 11-031; 6-19-2013 by Ord. No. 13-079; 6-10-2015 by Ord. No. 15-040; 7-12-2023 by Ord. No. 23-070; 9-15-2010 by Ord. No. 10-106]**

Landmarks:	**Ord. No.**	**Date**
Apple Tree House	03-009	05-24-2000
Dickinson High School	03-009	05-27-1980
Ellis Island	03-009	06-22-1994
Holland Street	03-058	04-23-2003
The Hudson and Manhattan Railroad Powerhouse	11-031	03-23-2011
Saint John's Episcopal Church and Rectory	13-079	06-19-2013
Pennsylvania Railroad Harsimus Branch Embankment	05-176	01-11-2006
Terminal Distribution Warehouses of Hudson County, New Jersey, 1865-1945/Butler Brothers Warehouse	11-031	03-23-2011
Terminal Distribution Warehouses of Hudson County, New Jersey, 1865-1945/Great Atlantic & Pacific Tea Company Warehouse Auxiliary Building and Bakery	11-031	03-23-2011
Terminal Distribution Warehouses of Hudson County, New Jersey, 1865-1945/Great Atlantic & Pacific Tea Company Warehouse (Headquarters)	11-031	03-23-2011
Terminal Distribution Warehouses of Hudson County, New Jersey, 1865-1945/Merchants' Refrigerating Company Warehouse	11-031	03-23-2011
The Former Whitlock Cardage Site	03-057	05-14-2003
Venus Pellagatti Xtravaganza House (343.5 8th Street)	TBD	TBD
Women's Club	03-058	04-23-2003

Historic Districts	**Date**
Hamilton Park	02-01-1977
Harsimus Cove	07-21-1983
Paulus Hook	02-01-1977
Van Vorst Park	02-01-1977
West Bergen-East Lincoln Park	06-10-2015

§ 345-31. Applications and checklists. [Amended 1-25-2006 by Ord. No. 06-002; 1-11-2006 by Ord. No. 05-170; amended 6-17-2009 by Ord. No. 09-070; 8-12-2009 by Ord. No. 09-091; 11-10-2010 by Ord. No. 10-133; 2-23-2011 by Ord. No. 11-023; 9-27-2011 by Ord. No. 11-112; 5-9-2012 by Ord. No. 12-060; 12-17-2014 by Ord. No. 14-156; 5-10-2017 by Ord. No. 17-052; 5-26-2021 by Ord. No. 21-036]

A. No submission shall be deemed a complete application unless the items, information and documentation listed in the applicable checklist are submitted to the Division of City Planning. If any required item is not submitted, the applicant must request in writing a waiver and state the reasons supporting each such request.

B. General development application. The Division of City Planning maintains and makes updates as necessary to the General Development Application. A copy of the Application is available upon request from Division of City Planning staff or a digital version is accessible through the City's official website.

C. General development checklist. **[Amended 6-14-2023 by Ord. No. 23-051; 2-13-2025 by Ord. No. 25-006; 7-16-2025 by Ord. No. 25-077]**

NOTE TO APPLICANTS: In the column marked "Submitted - No" you will find certain items marked with an "X", which are the items determined to be deficient as per the requirements of the Jersey City Land Development Ordinance. If you request a waiver, you shall supply detailed reasons for the request.

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
I. FORMS AND AFFIDAVITS					
1. General Development Application					
2. Affidavit of Ownership					
3. Affidavit of Performance					
4. 10% Ownership Disclosure Form					
5. Certificates of tax, payroll and water bills paid					
6. Letter of Rejection from Zoning Officer (upon staff request)					
7. Application Fees					
a) Initial Deposit					
b) Full Application Fee (upon staff review)					
c) Proof of payment/copy of receipt					
8. Demolition Determination Memo					
9. Affordable Housing Checklist Form					
10. Utility/Infrastructure/Refuse Form					

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
II. NOTICE/PROOF OF SERVICE					
1. Sample Notice (due at initial submission)					
2. Certified 200-foot list of owners (no more than 3 months old)					
Notice Packet - following must be submitted at least three (3) business days prior to the hearing:					
3. Certified Mail Receipts - Postal form 3877 will also be accepted, provided that the addresses are arranged in the same order as the certified list). RETURN RECEIPT POSTCARDS OR RECEIPTS NOT IN THE ABOVE FORMAT WILL NOT BE ACCEPTED AND YOUR ITEM WILL BE ADJOURNED AND RENOTICING WILL BE REQUIRED.					
a) Mount on 8.5 × 11 bound paper					
b) Six receipts to a page					
c) Arrange in the same order as the Certified 200-foot list.					
4. Affidavit Proof of Service					
5. Affidavit of Publication					
6. Digital Notice Packet including Notice and Certified 200-foot list combined into one PDF					

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
III. REVIEW COORDINATION					

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
1. Review Agent Sets (upon staff request)					
2. Application filed with Historic Preservation					
3. Indication of review/approval by NJDEP, Army Corps of Engineers, and JC Environmental Commission					
4. Indication if property contains a right-of-way Preservation area per Map 4.4-1 of the JC Master Plan Circulation Element					
5. Digital Submission in PDF format of application documents and any revisions					
a) Revisions shall be dated and called out on plans and/or accompanied by a change narrative and/or bubbled plans to be coordinated with staff					
b) Digital Submission of Distribution Set transmitted to staff prior to a hearing. DEADLINES ARE SET BY THE BOARDS ON THEIR ADOPTED AGENDAS					

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
IV. SUPPORTING REPORTS AND DOCUMENTS					
1. Current color photos of site and all structures at grade (no streetview permitted)					
2. Stormwater Management Report					
3. Traffic Assessment Report					
4. Shadow Study					
5. Visual Impact Assessment					
7. Green Area Ratio (GAR) Table					
8. Principal Points Statement relative to variance(s) as per N.J.S.A. 40:55D-70(c) and (d) or per as per N.J.S.A. 40:55D-70(a) or (b)					
9. Historic Preservation Report					
10. Survey of subject site and adjacent lots					
a) signed and sealed					
b) block and lot numbers and address					
c) metes and bounds description					
d) existing and proposed easements					
e) showing existing and neighboring structures and windows with setback dimensions					
f) showing topography					

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
V. ARCH AND CIVIL PLAN REQUIREMENTS					
1. Architectural Plans					
2. Civil Engineering Plans					
3. Signature(s) and Seal(s) of Licensed Engineer and Architect in New Jersey on all pages					
a) NJDCA Eplan Certification					
4. A key map at a scale not less than 1" to 600' depicting a 1000' radius clearly identifying zoning district, streets and lots involved in the application					
5. Scale shall be at least 1"=20' for tracts up to 40 acres, or 1"=50' for tracts over 40 acres					
6. Sheet size: 8.5 × 13", 15 × 21", 24 × 36", 30 × 42"					
7. The following shall be on all plans:					
a) Tax Block, lot numbers and address of site					

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
b) Dates of drawings and revisions, if any					
c) Graphic Scale					
d) Project Title					
e) North Arrow					
8. Zoning Table (contrasting existing standards in the zone or general LDO requirements with proposed site details as listed below, with variances clearly noted). One or more tables per plan set to be located on the first numbered drawing. Table(s) shall be large and legible.					
a) Density					
b) Height in feet and stories					
c) Floor Area Ratio					
d) Setbacks, Stepbacks, and Buffer Areas					
e) Car Parking (# of spaces, dimensions, use)					
f) Bike Parking (# of spaces, location, use)					
g) Loading (# of berths and dimensions)					
h) Access (i.e. curbcut # and width)					
i) Signage (number, size, type, material)					
j) Landscaping and street trees					
k) Lot coverage					
l) Building coverage					
m) Lot area in square feet					
n) Lot dimensions					
o) Gross floor area, total and by use					
p) Design standards					
q) Bonus provisions					
r) Residential unit mix, sizes and averages					
s) Stormwater Control (i.e. minor or major development and local compliance)					
9. Site plan, including all proposed structures and building footprints, paved areas, curb cuts, and egress points. Site plans shall not include existing conditions to be removed.					
10. Demolition Plan					
11. GAR details					
12. Floor plans with all room dimensions and sizes including cellar, basement plan and roof plan.					
13. Locations of all mechanical and other equipment					
14. Materials used in paved areas and walks and all other surface treatments.					
15. Materials used on facades, keyed with specifications and photo samples in color					
16. Lighting; wattage, location, height, attachment details, areas of diffusion					
17. Fences/walls: height, materials, width of internal details (e.g.: pickets), spacing of internal details.					
18. Refuse: location of trash and recycling room, number of bins, size of bins, removal path, refuse removal notes					
19. Signage: Lettering, dimensions, location, materials equipment, and lighting					
20. Recreation areas: location, square footage, materials, equipment and lighting					
21. Elevations of all façades indicating colors and materials and window dimensions					

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
22. Enlarged elevations of the first two floors, including details of windows, doors, signs, lighting, façade materials, etc. at 1/4" scale where appropriate					
23. Enlarged details of typical upper story windows, including dimensions, glazing details, sills and headers, projections, etc. at 1/4" scale where appropriate					
24. For rehabilitation projects, existing and proposed floorplans and elevations shall be provided side-by-side for comparison.					
25. Elevation of roof indicating heating, ventilation and air-conditioning equipment, communication equipment, and antennae specifying screening height, colors and materials.					
26. Utility connection points into proposed structures (e.g.: façade conduits, transformers) to be detailed on site plans and façade elevations.					
27. Circulation: parking spaces, dimensions, aisle widths, location of bike racks, car sharing, sidewalk details, ROW Improvements, etc.					
28. One illustrative site plan in color with legend (upon staff request).					

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
VI. ADDITIONAL PLAN REQUIREMENTS					
1. Location of project relative to adjacent properties and improvements, including encroachments					
2. Topographic data with existing and proposed elevations					
3. Top of curb and bottom of curb specifications					
4. Existing public rights-of-way with the existing and proposed utilities and service connections to the project showing pipe sizes, materials, lengths, rim and invert elevations for sewers, valves and other relevant information.					
5. Specify all existing conditions and structures in the adjacent public right-of-way, including but not limited to signposts, hydrants, street trees and tree pits, bus stops, etc.					
6. Proposed and exact location of above and below-ground utilities and amenities, including but not limited to traffic control poles, hydrants, street furniture, and signal boxes.					
7. Entrance to the project from public streets with curbs, drop curbs, aprons, and sidewalks.					
8. Storm system demand, strategy and design with drainage calculations and impact on existing drainage detailed in an Engineering Report, in compliance with the Stormwater Control Ordinance.					
9. Standards and details for curbs, wheel stops, walks, catch basins, trenches, street grade and intersections, pavement cross sections and profiles, traffic control and directional signs.					
10. Parking lot drainage					
11. Water service connections including valves, hydrants					
12. Proposed erosion control plan and method of control					
13. Water supply system demand, strategy and design					
14. Sanitary sewer system demand, strategy and design					

	SUBMITTED			WAIVER REQ'D	STAFF REMARKS
	YES	NO	N/A		
VII. SUBDIVISION REQUIREMENTS					
1. Signature and seal of map preparer, Licensed Land Surveyor in NJ on all pages					
2. Scale shall be a minimum of 1"=20' for tracts up to 40 acres and 1"=50' for tracts over 40 acres					
3. Sheet size shall be one of the following 8.5 × 13"; 15 × 21"; 24 × 36"; or 30 × 42"					
Plat details including:					
4. A key map at a scale not less than 1" to 600' depicting a 1000' radius clearly identifying zoning district, streets and lots involved in the application. To be located on the first numbered drawing sheet					
5. Zoning Table - See V.5. above					
6. A definite point of beginning, referenced by adjacent lines					
7. Each boundary of the subdivision, shown by metes, bounds and bearings, indicated by magnetic, true north or relative bearing					
8. The lot area(s) of both the original and proposed lots					
9. Any right-of-way or other permanent easement existing on the property					
10. Any building line restrictions of record					
11. All property lines not to be changed shall be indicated by heavy solid lines					
12. All property lines to be changed shall be indicated by broken lines					
13. All new property lines shall be shown in heavy broken lines					
14. Tax block, lot number(s) and street addresses					
15. Dates of drawings and revisions, if any					
16. Graphic scale					
17. Project title					
18. North arrow					

D. Application for the Certificate of Appropriateness and/or a Certificate of No Effect. The Historic Preservation Commission staff maintains and makes updates as necessary to the Application for the Certificate of Appropriateness and/or a Certificate of No Effect (also known as "Historic Preservation Application"). A copy of the Application is available upon request from the Division of City Planning staff or a digital version is accessible through the City's official website.

E. Historic Preservation Commission ("HPC") application checklist.

GENERAL APPLICATION REQUIREMENTS				
	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
1. A fully completed application form				
2. A full and complete description of the proposed work within the application or separately submitted				
3. Fee				
4. Existing photographs of the building and/or site (please note we do not accept photos from any "streetview")				
5. Any Historic Documentation of the property, including but not limited to the 1938 Tax Assessor's card, historic photo documentation, or historic site documentation				

GENERAL APPLICATION REQUIREMENTS				
	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
6. A proposal or contract for work				
7. Any permitting forms required from the divisions of Zoning, Building, and/or Engineering				

NEW CONSTRUCTION APPLICATION REQUIREMENTS *examples include new construction on a vacant lot, reconstruction of a building, etc.*				
	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
1. General application requirements				
2. Signed and Sealed Architectural and Engineering Plans containing the following:				
a) Zoning Chart				
b) Drawing List				
c) Site photographs				

NEW CONSTRUCTION APPLICATION REQUIREMENTS *examples include new construction on a vacant lot, reconstruction of a building, etc.*	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
d) Contextual photographs in elevation				
e) An existing blockfront elevation				
f) A proposed elevation of the blockfront with the new building inserted				
g) Block Site Plan				
h) Site survey				
i) A proposed site plan (or an existing and proposed site plan if required for comparison)				
j) Elevations of all facades				
k) Floor plans				
l) Demolition plans				
m) Roof Plan				
n) Building section(s)				
o) Landscape plan				
p) Fencing elevation, section and construction details				
q) Railing elevation, section and construction details				
r) Sightline drawings from the public right-of way-for all rooftop appurtenances				
s) Scaled, detail drawings including elevation and sections within the proposed openings of all proposed windows, doors and storefronts,				
t) Scaled, detailed drawings of all signage, ornament, lights, door hardware, doorbells, mailboxes etc.				
3. Digital Submission in PDF format of application documents and any revisions				
a) Revisions shall be dated and called out on plans and/or accompanied by a change				
b) Digital Submission of Distribution Set transmitted to staff prior to the scheduled hearing's distribution date. DEADLINES ARE SET BY THE BOARD ON THEIR ADOPTED AGENDA				
4. Physical materials and color samples be clearly noted on the drawings must be submitted to staff for review (Material Sample Board)				
5. All details of construction must be clearly labeled and cross referenced throughout submitted drawings				
6. Any permitting forms required from Zoning, Building, and/or Engineering				

BUILDING ADDITION APPLICATION REQUIREMENTS *examples of work include rear additions, rear decks, rooftop additions, roof decks, etc.*	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
1. General application requirements				
2. Signed and Sealed Architectural and Engineering Plans containing the following:				
a) Zoning Chart				
b) Site survey				
c) Block site plan				
d) Existing vs proposed site plan				

BUILDING ADDITION APPLICATION REQUIREMENTS ***examples of work include rear additions, rear decks, rooftop additions, roof decks, etc.***				
	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
e) Existing vs proposed floor plans				
f) Demolition plans				
g) Existing vs proposed elevations				
h) Existing vs proposed sections				
i) Scaled, detail drawings including elevation and sections within the proposed openings of all proposed windows, doors and storefronts				
j) Scaled, detailed drawings of all signage, ornament, lights, door hardware, doorbells, mailboxes etc.				
k) All materials and color must be clearly noted on the drawings				
l) To-scale sight line drawings				
m) Detail Drawings of lintels, sills, doors, windows, etc.				
n) Sightline drawings from the public right-of way-for all rooftop appurtenances				
o) Landscape Plan				
3. Materials and color samples				
4. Digital Submission in PDF format of application documents and any revisions				
a) Revisions shall be dated and called out on plans and/or accompanied by a change				
b) Digital Submission of Distribution Set transmitted to staff prior to the scheduled hearing's distribution date, as necessary. DEADLINES ARE SET BY THE BOARD ON THEIR ADOPTED AGENDA				
5. Any permitting forms required from Zoning, Building, and/or Engineering				

GENERAL RESTORATION APPLICATION REQUIREMENTS ***examples of work include repairing, restoring, cleaning, and painting ironwork (railings, fencing, newel posts, etc.), facades, exterior doors, windows***				
	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
1. General application requirements				
2. Site photographs - showing details and condition of features to be restored				
3. Site documentation for which the restoration is based on, including but not limited to the 1938 Tax Assessor's card, historic photo documentation, or historic site documentation				
4. Materials, specifications, and methods proposed (including color choices)				
5. Any necessary permitting documents as required by Zoning and Building				

GENERAL REPLACEMENT APPLICATION REQUIREMENTS ***examples of work include removing existing materials and replacing with new—can be applied to ironwork (railings, fencing, newel posts, etc.), fences, gates, etc.***				
	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
1. General application requirements				
2. Site photographs - showing features proposed to be replaced				

GENERAL REPLACEMENT APPLICATION REQUIREMENTS *examples of work include removing existing materials and replacing with new—can be applied to ironwork (railings, fencing, newel posts, etc.), fences, gates, etc.*	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
3. Site documentation for which the replacement is based on, including but not limited to the 1938 Tax Assessor's card, historic photo documentation, or historic site documentation				
4. To scale, dimensioned drawings of the proposed replacement features (elevation, details and full or half-scale sections)*				
5. Site plan showing extent of installation locations				
6. Finish Sample/Color specification				
7. Any permitting forms required from Zoning, Building, and/or Engineering				

*A manufacturer or supplier's written description or prepared drawings of the proposed feature may be substituted for the above (*) at the discretion of the Historic Preservation Officer

WINDOW REPLACEMENT APPLICATION REQUIREMENTS *example of work: completely removing the existing window and casing and replacing it with a new window and casing*	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
1. General application requirements				
2. Site photographs - showing proposed windows to be replaced				
3. Detail photographs of the windows from the exterior (and interior if applicable)				
4. To scale, dimensioned drawings of the proposed new door within the opening, including elevation and sections				
5. Cut sheet or drawing of proposed replacement features (elevation, details, and full or half-scale sections*)				
6. Color/Finish specifications				

*A manufacturer or supplier's written description or prepared drawings of the proposed window may be substituted for the above (*) at the discretion of the Historic Preservation Officer

DOOR REPLACEMENT APPLICATION REQUIREMENTS *example of work: completely removing the existing window and casing and replacing it with a new window and casing*	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
1. General application requirements				
2. Site photographs - showing proposed door to be replaced				
3. Detail photographs of the door from the exterior (and interior if applicable), showing deterioration				
4. To scale, dimensioned drawings of the proposed new door within the opening, including elevation and sections				
5. Cut sheet or drawing of proposed replacement door (elevation, details, and full or half-scale sections*)				
6. Color and/or Finish specifications and sample				

*A manufacturer or supplier prepared drawings or written description of the proposed door may be substituted for the above (*) at the discretion of the Historic Preservation Officer

SIDEWALK WORK APPLICATION REQUIREMENTS ***examples of work: completely removing the existing sidewalk and replacing it, resetting existing bluestone, UST removal from sidewalk, street tree pit expansion or repair***				
	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
1. General application requirements				
2. Site photographs - showing existing curbs, front, right, and left sides of sidewalk and adjacent sidewalks				
3. Material and color specifications				
4. Site sketch, if necessary				
5. Any permitting forms required from Zoning, Building, and/or Engineering				

SIGNAGE APPLICATION REQUIREMENTS ***examples of work include window signage and signage applied to the exterior of the building**				
	COMPLETE			STAFF REMARKS
	YES	NO	N/A	
1. General application requirements				
2. Site photographs - showing the existing signage and the entire façade(s)				
3. Detail photographs of the existing storefront elevation				
4. A *to scale* photo simulation of the proposed signage				
5. A dimensioned drawing of the proposed signage clearly showing all measurements:				
a) Length and width of sign band and square footage				
b) Square footage of all lettering, logos *etc.*				
c) Proposed material sample(s) for the signband, lettering, etc.				
6. Proposed material of signage				
7. Proposed method of installation				
8. A mockup of the proposed signage on the building				
9. A mockup of the proposed signage on the storefront				
10. Any permitting forms required from Zoning, Building, and/or Engineering				

F. Utility, Infrastructure, and Refuse Form. The Division of City Planning maintains and makes updates as necessary to the Utility, Infrastructure, and Refuse Form ("form"). A copy of the form is available upon request from Division of City Planning staff or a digital version is accessible through the City's official website. The form is a checklist item of a general development application.

G. Subdivision map digital submission standards. Applicant shall submit a digital subdivision map that meets or exceeds the standards of the New Jersey Division of Taxation and common New Jersey Land Surveying practices. The digital subdivision map shall meet or exceed the standards set forth below. Submissions which do not meet these standards or are unreadable will be returned to the applicant.

1. It is the City's intention to use the subdivision map digital CAD deliverables for inclusion in the Jersey City GIS database and for the maintenance of the City's tax maps. The digital data submitted shall be such that it will be capable of being processed through typical GIS feature development techniques, for both linework and attribute data, with minimal to no editing of the source CAD data, translation, or other maintenance.

2. Subdivision map information shall be input into a computer utilizing a commercially available computer drafting package. The CAD software output shall be readable by AutoCAD release 2000 or greater.

3. Each subdivision map sheet shall be constructed full scale and georeferenced to the New State Plane Coordinate NAD83.

4. Subdivision map shall be prepared in such a way that all different types of lines are placed on separate layers. The layers to include dimensions/verbiage and locating arrows or directional indicators.

5. Layering shall be the same for all subdivision sheets with each sheet containing the full layer set even though some layers may be void of data. Layer names shall be all upper case and contain no spaces. Underscores may be used to separate portion of the layer names.

6. The subdivision map shall not contain any duplicate linework (i.e. no lines on top of lines). All intersecting lines shall be snapped to within 0.01 feet. There shall be no undershoots or overshoots, and all short line segments shall be deleted.

7. All curves including those along street centerlines shall be true curves. All straight lines between lot corners shall consist of a single line segment with no intermediate nodes. All property boundaries shall be broken at lot line intersections.

8. All files pertaining to the project are to be submitted to one or more CDs or DVDs with an attached table of contents of files including file names and descriptions.

§ 345-31.1. Hearing requirements. [Added 4-11-2012 by Ord. No. 12-044; amended 5-26-2021 by Ord. No. 21-036]

As determined by the Planning Board, applicants are required to bring at least one physical or digital set of any necessary site plans, including floor plans and elevations; subdivision plats; photographs; and appropriate material samples and/or material boards and/or color catalog cuts of primary façade materials to the hearing for Board review. These plans, exhibits, and material samples shall be in a form presentable for Commissioner and audience benefit. Any experts who testify must be licensed in the State of New Jersey, when and if required by law.

ARTICLE IV

Fees, Deposits and Inspections

[Amended 4-28-2004 by Ord. No. 04-046]

§ 345-32. Non-refundable application fees.

A. There shall be a non-refundable fee for applications to the Jersey City Planning Board, Zoning Board of Adjustment, and Historic Preservation Commission as provided by law and established herein. The fees provided for shall be non-refundable and are for purposes of offsetting the administrative and clerical costs of running these Boards. **[Amended 3-23-2005 by Ord. No. 05-033; 4-23-2008 by Ord. No. 08-046]**

B. The City of Jersey City and its agencies, such as the Housing Authority and Board of Education, as well as applications for affordable housing (affordable housing being defined pursuant to N.J.S.A. 52:27D-301, et seq. or the U.S. Department of Housing and Urban Development), and applications for certificates of appropriateness and certificates of no effect submitted by non-profit entities for property within a designated historic district are exempt from the fees described herein. **[Amended 11-12-2014 by Ord. No. 14-017; 5-13-2015 by Ord. No. 15-054]**

C. As for projects by non-City entities that propose a mix of affordable housing and market rate housing, the fees shall be pro-rated so that only affordable housing units and their associated building components shall be exempt from the fees. All market rate housing units and their associated building components, as well as non-residential (commercial or industrial) units, shall remain subject to the fees described herein. **(Added 5-13-2015 by Ord. No. 15-054)**

D. Applications requiring Site Plan Review or Subdivision Review by the Department of Infrastructure shall pay the applicable fee set forth in Chapter 160-1.A.10. **[Added 1-10-2024 by Ord. No. 23-126]**

§ 345-33. Fees. [Amended 3-23-2008 by Ord. No. 05-033; 4-23-2008 by Ord. No. 08-046; 8-12-2009 by Ord. No. 09-091; 11-10-2015 by Ord. No. 15-147]

A. Applicable Fees.

1. Every application for review or hearing before the Zoning Board of Adjustment, or the Planning Board shall be initially accompanied by a check for $150.00, and every application to the Historic Preservation Commission shall be initially accompanied by a check for $10.00. Balance due will be determined upon City Planning Staff's review in accordance with the amount(s) as provided in Fee Table I and based upon the initial submission package. If future submissions result in additional fees, such will be calculated at that time. This balance will be due within 30 days of issuance of the first review checklist. If not received within 30 days, review will cease until payment is submitted. **[Amended 2-23-2011 by Ord. No. 11-021; 4-11-2012 by Ord. No. 12-043]**

2. The applicant shall arrange to provide the Division of City Planning with two copies of the transcript for its files and shall pay the complete cost of the transcript of his or her application. Any balance due the transcription firm engaged by the Division for its services shall be payable immediately upon billing.

3. Copies of resolutions rendered by either the Board of Adjustment or the Planning Board shall be available to any person requesting them at their sole cost and expense. Any applicant shall receive a copy of the decision rendered at no additional cost. Minutes of either the Board of Adjustment or the Planning Board shall also be available on request to any person or applicant at their sole cost and expense. Amounts charged shall be as provided for in the City's ordinance regulating photocopy and documents fees.

4. Performance guarantees may be required by the Zoning Board of Adjustment or the Planning Board pursuant to N.J.S.A. 40:55D-53.

5. The Zoning Officer, and the Division of Zoning Enforcement may establish reasonable fees to cover administrative costs for the issuance of permits, certificates or authorizations pursuant to N.J.S.A. 40:55D-18.

[Amended 3-23-2005 by Ord. No. 05-033; 4-23-2008 by Ord. No. 08-046; 5-28-2008 by Ord. No. 08-072; 8-12-2009 by Ord. No. 09-091; 11-10-2010 by Ord. No. 10-133; 2-23-2011 by Ord. No. 11-021; 9-27-2011 by Ord. No. 11-112; 10-23-2019 by Ord. No. 19-143; 7-15-2020 by Ord. No. 20-049; 9-10-2020 by Ord. No. 20-071; 8-18-2021 by Ord. No. 21-053; 11-28-2022 by Ord. No. 22-098; 10-30-2024 by Ord. No. 24-096; 2-13-2025 by Ord. No. 25-006; 3-12-2025 by Ord. No. 25-023]

Fee Table I

Application Type	Application Fees
Zoning Compliance Review and Determination	**Non-Refundable**
Residential	$50.00/unit
Nonresidential (per square foot) - including Mixed Use	$250.00 for the first 5,000 sq. ft. and $50.00 per 1,000 sq. ft. after
Zoning determination letter/certificate (general, driveway, and short term rental)	$150.00
Certificate of occupancy	$150.00
Signage or solar	$150.00
Planning Board and Board of Adjustment Applications	**Non-Refundable**
Minor site plan	$1,000.00
Preliminary major site plan—Residential	$50.00 per dwelling unit or a minimum of $500.00
Preliminary major site plan—Non-residential	With principal buildings over 1,000 sq. ft. GFA: $50.00 per 1,000 sq. ft. GFA or part thereof or a minimum of $500.00 Without principal building over 1,000 sq. ft. GFA: $50.00 per 1,000 sq. ft. lot area or part thereof or a minimum of $500.00
Final major site plan	50% of current preliminary major site plan fee
Site plan amendment	50% of the current application fee or a minimum of $1,000.00
Administrative amendment	$500.00
Conceptual site plan	$500.00 (to be deducted from fees for formal application for development)
Conditional use—Cannabis Establishments	$2,500.00
Conditional use—All others	$200.00
Extension of site plan approval	$500.00
Minor subdivision	$500.00
Preliminary major subdivision	$1,000.00 plus $100.00 per lot
Final major subdivision	50% of current preliminary major subdivision fee
SPECIAL MEETING REQUESTED BY APPLICANT	$5,000.00

Application Type	Application Fees
REZONING OR REDEVELOPMENT PLAN AMENDMENT REQUESTED BY DEVELOPER	Fee as specified in applicable redevelopment plan, or $5,000.00, if no fee specified in plan.
APPEALS, INTERPRETATIONS AND VARIANCES	$150.00
"a" and "b" appeals and interpretations as per N.J.S.A. 40:55D-70 a and b	$150.00
"c" variance as per N.J.S.A. 40:55D-70(c) and deviation from redevelopment plan	$500.00 for each "c" variance
"d" variance as per N.J.S.A. 40:55D-70(d)	$1,000.00 for each "d" variance
Extension of variance approval	$500.00

Application Type Historic Preservation Commission Applications	Application Fees Non-Refundable
CERTIFICATE OF NO EFFECT	
Non-Residential	
With principal building	$80.00 per 1,000 square feet GFA or part thereof
Without principal building	$80.00 per 1,000 square feet of lot area or part thereof
Unlit interior window sign only	$100.00
Sidewalk repair/replacement when not filed concurrently with other work	$40.00 for first 25 linear feet of frontage, additional $20.00 for each 25 feet of frontage over 25 or part thereof
Residential	
Interior work only	$20 per affected dwelling unit to a maximum of $100
Exterior work only or interior & exterior work filed concurrently	$50.00 per dwelling unit to a maximum of $1,000.00
Sidewalk repair/replacement when not filed concurrently with other work	$40.00 per dwelling unit to a maximum of $200.00
CERTIFICATE OF APPROPRIATENESS (COA)	
New construction on vacant land	$1,000.00; in addition to residential and/or nonresidential fees
Residential	$100.00 per unit, or a minimum of $500.00
Non-residential	
With principal building	$100.00 per 1,000 square feet of GFA or part thereof, or a minimum of $500.00
Without principal building	$100.00 per 1,000 square feet lot area or part thereof, or a minimum of $500.00
Exterior sign application only	$250.00

Application Type Historic Preservation Commission Applications	Application Fees Non-Refundable
ADDITIONAL FEES AS NEEDED	
Outdoor café only	$100.00
Extension of COA approval	$250.00
Demolition prior approval report	$250.00
Determination of significance	$150.00
SPECIAL MEETING REQUESTED BY APPLICANT	$2,000.00

ARTICLE V

Zoning and Design Standards*

§ 345-34. Zoning districts. [Added 10-13-2022 by Ord. No. 22-084]

***Editor's note—**Ord. No. 22-084, adopted October 13, 2022, in effect repealed former Art. V, §§ 345-34—345-40.2, 345-40.6, 345-41, 345-41A, 345-42—345-50a, 345-51—345-60.5, 345-61—345-66.1, 345-67—345-73, and added a new Art. V. Former Art. V pertained to similar subject matter, and derived from:

Ord. No.	Date	Ord. No.	Date	Ord. No.	Date	Ord. No.	Date
01-161	5-16-2001	09-116	11-24-2009	12-004	1-25-2012	15-023	3-11-2015
03-040	3- 6-2003	10-007	1-27-2010	12-016	2-22-2012	15-031	3-25-2015
03-113	9-10-2003	10-027	3-10-2010	12-025	3-14-2012	15-041	4- 8-2015
03-114	9-10-2003	10-037	3-24-2010	12-039	3-28-2012	15-042	4- 8-2015
03-134	10- 8-2003	10-054	4-28-2010	12-045	4-11-2012	15-048	4-22-2015
04-094	9- 8-2004	10-074	6- 9-2010	12-101	8- 1-2012	15-065	5-27-2015
05-052	5-18-2005	10-075	6- 9-2010	12-112	9-12-2012	15-115	9- 9-2015
06-037	9-27-2006	10-106	9-15-2010	13-001	1-23-2013	15-132	10-14-2015
06-090	8-16-2006	10-125	10-13-2010	13-009	2-13-2013	15-137	10-28-2015
06-131	11-8-2006	10-129	11-10-2010	13-010	2-13-2013	16-008	1-27-2016
06-163	1-24-2007	10-132	11-10-2010	13-020	2-27-2013	16-071	5-11-2016
07-009	1-24-2007	10-164	12-15-2010	13-021	2-27-2013	16-096	6-15-2016
07-035	3-14-2007	10-166	12-15-2010	13-022	2-27-2013	17-013	2- 8-2017
07-036	3-14-2007	11-018	2-9-2011	13-030	3-13-2013	17-170	12-13-2017
07-056	4-11-2007	11-022	2-23-2011	13-040	4-24-2013	18-046	5-23-2018
07-064	4-25-2007	11-041	4-13-2011	13-053	5-8-2013	18-074	7-18-2018
07-065	5-23-2007	11-057	5-11-2011	13-095	9-11-2013	19-077	6-25-2019
07-101	6-13-2007	11-073	7-20-2011	13-138	12-18-2013	19-147	11-14-2019
07-103	6-13-2007	11-093	8-31-2011	14-005	1-29-2014	20-044	6-24-2020
07-156	9-11-2007	11-094	8-31-2011	14-006	1-29-2014	20-059	8-12-2020
08-024	3-12-2008	11-150	12-14-2011	14-007	1-29-2014	21-020	3-24-2021
08-072	5-28-2008	12-002	1-25-2012	14-172	1-14-2015	21-053	8-18-2021

For the purposes of this Chapter, the City of Jersey City is hereby divided into redevelopment plans and the following zoning districts, herein, and shown on the Zoning Map.

§ 345-35. Zoning map. [Added 10-13-2022 by Ord. No. 22-084]

The boundaries of the redevelopment plans and the zoning districts are established on the map entitled "City of Jersey City Zoning Map" adopted by Council by Ordinance number 22-084. This map is amended periodically. The current map is on file and available for public inspection and/or purchase at the Division of City Planning, 1 Jackson Square, 2nd Floor, Jersey City, New Jersey.

§ 345-36. Interpretation of boundaries. [Added 10-13-2022 by Ord. No. 22-084]

A. Zoning district boundary lines are intended to follow street center lines, railroad rights-of-way and lot lines as they exist on lots of record at the time of enactment of this chapter unless otherwise indicated by dimensions on the Zoning Map. Any dimensions shown shall be in feet and measured horizontally and, when measured from a street, shall be measured from the street right-of-way line even if that same street is the location of a zoning district line along its center line. The exact location of any disputed zoning district boundary line shall be determined by the Board of Adjustment. The zoning standards, controls and designations apply to every structure, lot and use within each district, and the district lines extend vertically in both directions from ground level. The district boundary lines shown to terminate at the pierhead line should be continued in a straight line out to the City limits, should these water areas require a district interpretation.

B. For sites that overlap with multiple zone districts, the zone that covers the largest portion of the site shall govern the entire development site. In the case of overlay zones, however, those standards shall still apply.

C. Boundaries indicated as following or approximately following shorelines shall be construed as following such shorelines but, in the event of change in the shoreline, shall be construed as moving with the actual shoreline. Boundaries indicated as following or approximately following City lines shall be construed as following such City lines.

D. If there is question regarding any zone boundary, the zoning map as referenced and available at the offices of the Division of City Planning shall be used to determine the exact boundary line.

§ 345-37. Vacating a street or other public right-of-way. [Added 10-13-2022 by Ord. No. 22-084]

Where a vacated street or other public right-of-way is bounded on both sides by different zoning districts, the former center line of the vacated right-of-way shall be considered the zoning district boundary line.

§ 345-38. Redevelopment areas. [Added 10-13-2022 by Ord. No. 22-084]

A. In any area officially declared and delineated as a redevelopment area by duly adopted ordinances, the standards and designations contained in the Redevelopment Plans for such legally adopted plans shall take precedence over any standards contained within this Chapter. However, the Definitions found in Section 345-6 and the provisions for Site Plan approval shall apply to all zones and Redevelopment Plan areas citywide.

B. Where the standards and controls of the Plans do not provide alterations to the provisions of this Chapter, those provisions of this Chapter that remain unchanged shall prevail.

§ 345-39. Variances and waivers. [Added 10-13-2022 by Ord. No. 22-084]

Any deviation from a provision of this Chapter which is identified as a Design Standard shall require a waiver by the reviewing board from the specific design standard. Any other deviation from a standard contained in this Chapter shall require a variance from the specific standard in accordance with the Municipal Land Use Law. Waivers will be subject to the same notification requirements found in Section 345-19.

§ 345-40. RH-1 Residential Housing District (large lots). [Added 10-25-2023 by Ord. No. 23-103]

A. Purpose. The purpose of this district is to preserve the pattern, quality, and architectural individuality of the existing detached one- and two-unit structures and to discourage subdivision and demolition. This district is similar to the RH-2 and R-1 zones except that it is intended to protect clusters of lot sizes that are larger than the standard 25×100 lot size for Jersey City.

B. Permitted principal uses are as follows:

1. Principal structures with one or two dwelling units.

C. Uses incidental and accessory to the principal use, such as:

1. Private garages.
2. Off-street parking.
3. Fences and walls.
4. Home occupations.
5. Swimming pools.
6. Decks, patios, pergolas, and storage sheds.
7. Accessory Dwelling Units, one dwelling unit permitted in an accessory structure per lot regardless of lot size and in addition to unit(s) in the principal structure.

D. Conditional Uses.

1. Principal structures with three units.
2. Developments utilizing the Affordable Housing Overlay.

E. Bulk Standards.

1. Existing lots are considered conforming in lot area, width and/or depth.

2. Minimum Lot Size: 4,000 square feet.

3. Minimum Lot Width: 40 feet.

4. Minimum Lot Depth: 100 feet.

5. Front Yard Setback: Predominant setback shall apply.

6. Side Yards: Minimum of five feet on both sides.

7. Minimum Rear Yard:

   a. For lots with a lot depth less than 120 feet, 30% of lot depth.

   b. For lots with a lot depth of 120 feet or more, 40% of the lot depth.

8. Maximum Building Height: three stories and 35 feet.

9. Maximum Building Coverage: 55%.

10. Maximum Lot Coverage: 75%.

11. Maximum Accessory Building Height:

    a. 18 feet if an Accessory Dwelling Unit.

    b. 15 feet for all other accessory structures.

12. Minimum Accessory Building Setbacks:

    a. Rear Yard: Zero feet.

    b. Side Yard: Two feet.

F. Parking Standards.

1. Off-street parking is prohibited on interior lots with a width less than 26 feet.

2. Off-street parking is prohibited on corner lots and through lots when the lot width is less than 20 feet.

3. Minimum required parking: A minimum of 0.3 spaces per bedroom is required. For the purpose of calculating this standard, studio units shall be counted as one bedroom. For example, in a five-unit structure with 12 bedrooms a minimum of four spaces are required ($12 \times 0.3 = 3.6$ which rounds to 4 spaces).

4. No parking shall be permitted between the building line and the street line. Garage entrances must be on the rear wall of the building or as part of a detached or attached fully enclosed garage.

5. Curb cut standards:

    a. Maximum number: One curb cut is permitted per lot when off-street parking is a permitted use.

    b. Maximum width: Ten feet.

6. Accessory Dwelling Units are exempt from any minimum parking requirement in this Zone.

G. Design Standards

1. Principal structures must be designed to appear as single unit dwellings. Multi-unit buildings must have only one front entry. If historic documentation (such as the 1938 Tax Card) shows multiple front entries, they may be maintained.

2. Homes shall maintain and retain existing architectural elements such as gables, front porches, transoms, cornices, divided light windows, dormers, bay windows, oriels, turrets, and other elements found within the existing streetscape.

3. Roof pitches must be designed to be compatible with adjacent houses by using prevalent slopes and angles.

4. All exterior walls are to be treated with the same materials and architectural detail; although, the treatment of side and rear walls may be simplified.

5. Design elements shall have compatible rhythm and repetition with an emphasis on materials and colors prevalent in the neighborhood.

6. Building height shall be visually compatible with adjacent buildings. The size, scale, and height of new construction shall relate to the prevailing pattern of the streetscape.

7. Buildings are to be sited on their lot so that their placement and relationship to surrounding property is equivalent to the existing pattern of development on the street.

8. Materials must reflect the predominant traditional building materials in use on existing, adjacent structures. Where appropriate, the use of multiple materials maybe encouraged. However, use of EIFS, vinyl siding, light colored brick, stucco, brick-face, stone-face, and other inappropriate cladding materials is strictly prohibited.

9. Any restoration or renovation in strongly encouraged to be completed under the guidance of the Secretary of the Interior's Guidelines for the Treatment of Historic Properties when undertaking any exterior work.

10. Any new construction shall be designed in context of any surrounding historic resources, following the predominant setbacks, height, and lot siting.

H. Conditional Use Standards for Three-unit principal structures or developments utilizing the Affordable Housing Overlay.

1. Structures shall be designed to comply with the design standards of this Zone.

2. Any restoration or renovation in strongly encouraged to be completed under the guidance of the Secretary of the Interior's Guidelines for the Treatment of Historic Properties when undertaking any exterior work.

3. Any new construction shall be designed in context of any surrounding historic resources, following the predominant setbacks, height, and lot siting.

Editor's note—Ord. No. 23-103, adopted October 25, 2023, amended the Code by repealing former § 345-40, and adding a new § 345-40. Former § 345-40 pertained to the R-1A One- and Two-Family Housing District (large lots), and was added by Ord. No. 22-084, adopted October 13, 2022.

§ 345-40.1. RH-2 Residential Housing District (typical lots).

A. Purpose. The purpose of this district is to preserve the pattern, quality, and architectural individuality of the existing structures and to discourage subdivision and demolition. This district is similar to the RH-1 and R-1 zones except that it is intended to protect clusters of the standard 25×100 lot size for Jersey City.

B. Permitted principal uses are as follows:

1. Residential.

C. Uses incidental and accessory to the principal use, such as:

1. Private garages, except when it is prohibited per the RH-2 Parking Standards.

2. Off-street parking, except when it is prohibited per the RH-2 Parking Standards.

3. Fences and walls.

4. Home occupations.

5. Swimming pools.

6. Decks, patios, pergolas, and storage sheds.

7. Accessory Dwelling Units, one dwelling unit permitted in an accessory structure per lot regardless of lot size and in addition to unit(s) in the principal structure.

D. Conditional Uses.

1. Developments utilizing the Affordable Housing Overlay.

E. Density and Bulk Standards.

1. Maximum permitted density for Residential: a maximum of 42 units per acre, or one- or two-dwelling units per lot regardless of lot size.

2. All existing lots are considered conforming.

3. Minimum Lot Size: 2,500 square feet or the predominant lot area of the Blockfront, whichever is greater. Calculation of predominant lot area shall exclude any lots on the Blockfront in a different zone. Predominant is determined by which lot area is most frequently occurring along the Blockfront.

4. Minimum Lot Width: 25 feet.

5. Minimum Lot Depth: No standard.

6. Maximum Building Height: three stories and 35 feet. The required finished floor height of the building entry on the Primary Front Façade shall match the finished floor height of the building entry for either lot adjacent to the subject parcel.

7. Front Yard Setback: the required front yard setback shall match the Building Line of the Front Primary Façade of either lot adjacent to the subject parcel. The adjacent lot to be matched may be decided by the applicant or property owner. If both adjacent lots are vacant, the subject parcel shall match the nearest building on the same Blockfront.

8. Minimum Rear Yard Setback:

   a. For lots with a lot depth less than 120 feet, 30% of lot depth.

   b. For lots with a lot depth of 120 feet or more, 40% of the lot depth.

9. Side Yard Setbacks for principal structures shall be in accordance with standards in the table:

	For detached buildings:	**For semi-detached buildings:[C]**	**For attached or zero lot line buildings:[C]**
Side Yard Setback Standards: [A, B]	1) Minimum setback for one side: Two feet. 2) Minimum setback for both: Five feet one inch.	1) Minimum setback for one side: Three feet one inch. 2) Minimum setback for other side: None.	If adjacent building has a less than one foot side yard setback (i.e., is built to the side lot line), a zero feet side yard may be permitted (i.e., new house may also be built to the side lot line).

Table Footnotes:

[A]In the instance that the adjacent building has a side yard setback four feet or greater (as measured to the principal structure), the new building may build to the zero side setback along that lot line. However, for corner and cap lots, one side yard shall be a minimum of five feet.

[B]In the instance that adjacent lot is vacant, the new building may build according to the side yard standards for detached, semi-detached, attached, or zero lot line buildings.

[C]In the instance the adjacent building has a zero side yard setback but also has an existing window that is either directly on the side lot line or setback less than three feet, the new building may still

build to the zero side lot line, starting at the front building line, but shall be required to setback the new building three feet from said window, starting from one foot in front of the existing window and terminating at least one foot beyond the existing window.

10. Maximum lot coverage: 75%.

11. Front yard lot coverage standards:

    a. Maximum front yard lot coverage:

        i. For lots with a front yard setback greater than two feet in depth: 50% maximum.

        ii. For lots with a front yard setback two feet or less in depth: No standard.

    b. For the purpose of calculating front yard depth and front yard area, measurements shall be from the property line to nearest grounded encroachments (See 345-6 and 345-60.D) or building line if there are no ground encroachments. The front yard area should also not include the area or square feet of grounded encroachments. For example, a front yard setback of five feet is measured to the building line, but the structure includes a bay window (a grounded encroachment) that extends three feet into the front yard, then the resulting front yard is only two feet deep and therefore no front yard lot coverage standard applies.

12. Roof deck setbacks: Roof decks shall be setback a minimum of ten feet from Primary and Secondary Front Façades.

13. Standards for accessory buildings or structures:

    a. Maximum accessory building height:

        i. For Accessory Dwelling Units: 18 feet and two stories.

        ii. For all other accessory structures: 12 feet.

    b. Minimum accessory building setbacks:

        i. Rear yard setback: No standard.

        ii. Side Yard: Two feet.

    c. Standards for corner lots, cap lots, and through lots: Two feet front lot lines.

F. Off-street parking requirements.

1. Off-street parking is prohibited on interior lots with a width less than 26 feet.

2. Off-street parking is prohibited on corner lots and through lots when the lot width is less than 20 feet.

3. For lots with a lot width of 50 feet or less off-street parking is not required.

4. For lots with a lot width over 50 feet: A minimum of 0.3 spaces per bedroom is required. For the purpose of calculating this standard, studio units shall be counted as one bedroom. For example, in a five-unit structure with 12 bedrooms a minimum of four spaces are required (12 × 0.3 = 3.6 which rounds to 4 spaces).

5. Accessory Dwelling Units are exempt from any minimum parking requirement in this Zone.

6. Shared driveway requirement: When off-street parking is permitted, construction of two or more residential buildings with parking on adjacent lots shall include a shared driveway located to maximize on-street parking spaces; no existing street tree shall be removed to create a driveway without prior approval by the Jersey City Division of Parks & Forestry.

7. Curb cut standards:

   a. Maximum number: One curb cut is permitted per lot when off-street parking is a permitted use.

   b. Maximum width: Ten feet.

G. Design Standards.

1. Buildings proportions shall be compatible with the predominant proportional relationship along a street. Building entries, windows and other openings shall be compatible in location, size and pattern to other structures on the block. To the greatest extent possible, characteristics of surrounding development such as roof style and pitch, material, window and door detailing, and the presence of porches shall be consistent with other structures on the block.

H. Conditional Use Standards for developments utilizing the Affordable Housing Overlay.

1. Any restoration or renovation in strongly encouraged to be completed under the guidance of the Secretary of the Interior's Guidelines for the Treatment of Historic Properties when undertaking any exterior work.

2. Any new construction shall be designed in context of any surrounding historic resources, following the predominant setbacks, height, and lot siting.

Editor's note—Ord. No. 23-103, adopted October 25, 2023, amended the Code by repealing former § 345-40.1, and adding a new § 345-40.1. Former § 345-40.1 pertained to the R-1F One- and Two-Family Housing District (large lots), and was added by Ord. No. 22-084, adopted October 13, 2022.

§ 345-40.2. Reserved.

Editor's note—Ord. No. 23-103, adopted October 25, 2023, amended the Code by repealing former § 345-40.2 in its entirety. Former § 345-40.2 pertained to the R-1W Webster Avenue Residential District, and was added by Ord. No. 22-084, adopted October 13, 2022.

§ 345-41. R-1 Neighborhood Housing District. [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. Purpose.

1. The purpose of this district is to accommodate existing housing, encourage compatible in-fill, preserve the streetscape, and utilize and preserve on-street parking where lot frontage is narrow.

2. The R-1 zone impacts every ward in Jersey City. Therefore, it is important that this zone acknowledge and celebrate the culture and physical assets of existing communities as well create high quality, diverse housing types in all neighborhoods that will accommodate the needs of all types of residents.

B. Permitted principal uses are as follows:

1. Residential.
2. Houses of worship
3. Civic.
4. Parks and playgrounds.
5. Essential services.
6. Schools.
7. Governmental uses.
8. First floor commercial provided that the commercial unit(s) existed in the 1930's Tax Assessor's photo and that the original storefront character including window configuration be restored or maintained.
9. Adult day cares.
10. Assisted living residences.
11. Nursing homes.
12. Senior housing.
13. Public utilities, except that natural gas transmission lines shall be prohibited.

C. Permitted accessory uses are as follows: **[Amended 3-6-2024 by Ord. No. 24-011]**

1. Off-street parking, except when it is prohibited per the R-1 Parking Standards.
2. Fences and walls.
3. Meeting rooms, recreation areas and similar uses normally associated with the principal use.
4. Home occupations.
5. Swimming pools.
6. Signs.
7. Decks, patios, pergolas, and storage sheds.

8. Electric vehicle charging, except when off-street parking is prohibited per the R-1 Parking Standards.

9. Accessory Dwelling Units, one dwelling unit is permitted in an accessory structure per lot regardless of lot size and in addition to unit(s) in the principal structure.

D. Prohibited uses are as follows:

1. Class 5 Cannabis Retailers.

E. Density and Bulk Standards:

1. Maximum permitted density by use:

a. Residential: a maximum of 42 units per acre, or one- or two-dwelling units per lot regardless of lot size.

b. Assisted Living Residences, Senior Housing, Nursing Homes: No standard.

2. All existing lots are considered conforming.

3. Minimum Lot Size: 2,500 square feet or the predominant lot area of the Blockfront, whichever is less. Calculation of predominant lot area shall exclude any lots on the Blockfront in a different zone. Predominant is determined by which lot area is most frequently occurring along the Blockfront.

4. Minimum Lot Width: 25 feet.

5. Minimum Lot Depth: No standard.

6. Townhouse Lot Subdivision: Lots that are 5,000 square feet or greater and at least 50 feet wide are permitted to be subdivided according to the following standards:

a. Minimum Lot Width: 18 feet for lots subdivided according to this clause.

b. Minimum Lot Area: 1,000 square feet for lots subdivided according to this clause.

c. Lots subdivided according to this clause shall have alternate bulk requirements as follows. All other bulk standards of this Zone shall apply.

i) Minimum front yard setback of zero feet.

ii) Minimum side yard setback of zero feet.

d. Interior Lot(s): If any of the new lots created according to this clause do not front on a preexisting public right-of-way, then the new lots created shall be subdivided by major subdivision and shall front on a public right-of-way of at least seven feet wide (aka Walking Alley) that runs the full depth of the original lot or group of lots pre-subdivision. If adjacent subdivisions occur according to this clause, those major subdivisions shall extend or expand

the public right-of-way (aka Walking Alley) by connecting parallel streets or widening the right-of-way to a minimum of 14 feet. See Walking Alley reference in the Lot Line Diagram definition (345-6 Definitions).

7. Rear Yard Setback, Building Height and Coverage shall be in accordance with standards in the table:

	Minimum rear yard setback standards for Principal Structures:	**Maximum Building Height standards for Principal Structures:[B]**	**Maximum Lot Coverage:**
Lots 1,800 square feet or less:[C]	25% of the lot depth, rounded to nearest whole number.[D, E]	Three stories, 35 feet	85%
Lots greater than 1,800 square feet and less than 3,200 square feet:[A, C]	30% of the lot depth, rounded to nearest whole number.[E]	Three stories, 35 feet	75%
Lots 3,200 square feet or more:[C]	25% of the lot depth, rounded to nearest whole number.[E]	Three stories, 35 feet	85%

Table Footnotes:

[A]The required finished floor height of the building entry on the Primary Front Façade shall match the finished floor height of the building entry for either lot adjacent to the subject parcel.

[B]Maximum parapet height: 42 inches above any flat roof or eave.

[C]Buildings proportions shall be compatible with the predominant proportional relationship along a street. Building entries, windows and other openings shall be compatible in location, size and pattern to other similar structures on the block or area. To the greatest extent possible, characteristics of surrounding development such as roof style and pitch, material, window and door detailing, and the presence of porches shall be consistent with other structures on the block.

[D]For example, a lot with a depth of 75 feet, the minimum rear yard required is 19 feet (calculated $75 \times 0.25 = 18.75$, rounded to 19-foot setback).

[E]No required minimum rear yard setback for principal structures shall be greater than 45 feet.

8. Front Yard Setback Standards for principal structures shall be in accordance with standards in the table:

For interior lots, flag lots, or through lots:	**For corner lots:**	**For cap lots:**	**For whole block lots:**
Match adjacent building line[A]	1) Setback along one front lot line: Match Adjacent building line[A] 2) Setback along other front line: No Standard.	Maximum of seven feet along all front lot lines.	No Standard.

Table Footnotes:

[A]The required front yard setback shall match the Building Line of the Front Primary Façade of either lot adjacent to the subject parcel. The adjacent lot to be matched may be decided by the applicant or property owner. If both adjacent lots are vacant, the subject parcel shall match the nearest building on the same Blockfront.

9. Side Yard Setbacks for principal structures shall be in accordance with standards in the table:

	For detached buildings:	**For semi-detached buildings:[C]**	**For attached or zero lot line buildings:[C]**
Side Yard Setback Standards:[A, B]	1) Minimum setback for one side: Two feet. 2) Minimum setback for both: Five feet one inch.	1) Minimum setback for one side: Three feet one inch. 2) Minimum setback for other side: None.	If adjacent building has a less than one foot side yard setback (i.e., is built to the side lot line), a zero feet side yard may be permitted (i.e., new house may also be built to the side lot line).

Table Footnotes:

[A]In the instance that the adjacent building has a side yard setback four feet or greater (as measured to the principal structure), the new building may build to the zero side setback along that lot line. However, for corner and cap lots, one side yard shall be a minimum of five feet.

[B]In the instance that adjacent lot is vacant, the new building may build according to the side yard standards for detached, semi-detached, attached, or zero lot line buildings.

[C]In the instance the adjacent building has a zero side yard setback but also has an existing window that is either directly on the side lot line or setback less than three feet, the new building may still build to the zero side lot line, starting at the front building line, but shall be required to setback the new building three feet from said window, starting from one foot in front of the existing window and terminating at least one foot beyond the existing window.

10. Additional Coverage Standards:

    a. Required performative roof ratio: When building coverage exceeds 65%, a green roof system, solar panel system, or combination thereof is required onsite equal to at least 10% of the lot area. Green roof trays and other similar green roof systems are acceptable.

    b. Front yard lot coverage standards:

        i) Maximum front yard lot coverage:

            (a) For lots with a front yard setback greater than two feet in depth: 50%.

            (b) For lots with a front yard setback two feet or less in depth: No standard.

ii) For the purpose of calculating front yard depth and front yard area, measurements shall be from the property line to nearest grounded encroachments (see 345-6 and 345-60.D) or building line if there are no ground encroachments. The front yard area should also not include the area or square feet of grounded encroachments. For example, a front yard setback of five (5) feet is measured to the building line, but the structure includes a bay window (a grounded encroachment) that extends three feet into the front yard, then the resulting front yard is only two feet deep and therefore no front yard lot coverage standard applies.

11. Roof deck setbacks: Roof decks shall be setback a minimum of ten feet from Primary and Secondary Front Façades.

12. Standards for accessory buildings or structures:

a. Maximum accessory building height:

i) For Accessory Dwelling Units: 18 feet and two stories.

ii) For all other accessory structures: 12 feet.

b. Minimum accessory building setbacks:

i) Rear yard setback: No standard.

ii) Side Yard: Two feet.

iii) Standards for corner lots, cap lots, and through lots: Two feet front lot lines.

c. Maximum lot coverage for lots with Accessory Dwelling Units:

i) The maximum lot coverage permitted shall increase by an additional 5% when an accessory dwelling unit is proposed or present. Reference Rear Yard Setback, Building Height and Coverage table above.

F. Parking Standards:

1. No parking shall be permitted between the building line and the street line. In no instance shall a parked vehicle project or encroach over a property line, or into rights-of-way, or block sidewalks.

2. Off-street parking requirements:

a. For interior lots in Ward C or Ward D:

i) Off-street parking is prohibited on interior lots with a width less than 26 feet unless off-street parking is predominant on the Blockfront. For the purpose of calculating off-street parking, only lots with garages within the principal structure or lots where the driveway extends at least 18 feet beyond the building line are to be counted. Lots with grandfathered front yard parking are not counted; and,

ii) The 2022 boundaries of Ward C and D as adopted shall apply.

b. For interior lots is all other Wards:

i) Off-street parking is prohibited on interior lots with a width less than 25 feet unless off-street parking is predominant on the Blockfront. For the purpose of calculating off-street parking, only lots with garages within the principal structure or lots where the driveway extends at least 18 feet beyond the building line are to be counted. Lots with grandfathered front yard parking are not counted.

c. For corner lots, cap lots, and through lots:

i) Off-street parking is prohibited on corner lots and through lots when the lot width is less than 20 feet.

d. For lots with a lot width of 50 feet or less off-street parking is not required.

e. For lots with a lot width over 50 feet:

i) Minimum parking standards for Residential: A minimum of 0.3 spaces per bedroom is required. For the purpose of calculating this standard, studio units shall be counted as one bedroom. For example, in a five-unit structure with 12 bedrooms a minimum of four spaces are required ($12 \times 0.3 = 3.6$ which rounds to 4 spaces).

ii) Minimum parking standard for Assisted Living Residences, Senior Housing, Nursing Homes, and Adult Day Care: None.

iii) Minimum parking standard for all other uses: one space per 1,000 square feet of gross floor area for such use, excluding the first 5,000 square feet.

3. Accessory Dwelling Units are exempt from any minimum parking requirement in this Zone.

4. Shared driveway requirement: When off-street parking is permitted, construction of two or more residential buildings with parking on adjacent lots shall include a shared driveway located to maximize on-street parking spaces; no existing street tree shall be removed to create a driveway without prior approval by the Jersey City Division of Parks & Forestry.

5. Curb cut standards:

a. Maximum number: One curb cut is permitted per lot when off-street parking is a permitted use.

b. Maximum width: Ten feet.

G. Permitted conditional uses are as follows:

1. Adaptive reuse of a garage as a dwelling unit, subject to following conditions:

a. Maximum of one additional dwelling unit is permitted for a maximum of three dwelling units in the principal structure regardless of lot size.

b. Adaptive reuse of garage as a dwelling unit.

c. Removal of driveway and curb cut and prohibition of any off-street parking.

d. Install new curb and compliance with forestry standards.

e. If front yard is three feet deep or more, install knee wall planter(s) in front yard and landscape with groundcover, plantings, mulch, shrubs, and/or trees. Planter(s) must be designed and sized to inhibit any front yard parking.

f. A portion of the garage not used as dwelling unit may be used for storage, mechanical, refuse, or other ancillary uses. Off-street parking is prohibited.

2. Corner Commercial, subject to the following conditions:

a. Shall be one of the following defined uses:

i) Cafes;

ii) Laundromats;

iii) Retail Sales of goods and services;

iv) Offices and Medical Offices.

b. There must be an existing commercial use on at least one of the other corner properties at the same intersection where the subject site is located.

c. Commercial uses limited to ground floor and cellar or basement levels.

d. The corner commercial frontage shall maximize storefront glazing on all street facing facades to the greatest extent possible.

e. Maximum permitted lot coverage shall be increased to 90%.

f. For existing buildings, if a garage is being adaptively reused, improvements shall include removal of the curb cut and replacement with sidewalk and curb.

g. A minimum front yard setback of two feet is permitted; however, if an existing building has a front yard setback less than two feet, the setback is considered conforming.

h. Class 5 cannabis retailers are prohibited.

3. Multi-unit Residential in Historically Significant Structures, subject to the following conditions:

a. The existing structure is determined to be historically significant by the Historic Preservation Office.

b. Rehabilitation is conducted in compliance with the Secretary of Interior's Standards and Guidelines for the Treatment of Historic Properties. A report shall be provided from a historic preservation specialist certifying the rehabilitation meets the Secretary of Interior Standards for Rehabilitation.

c. Permitted Residential Density: A maximum of 75 units per acre or four dwelling units in a principal structure, whichever is greater.

d. Compliance with the minimum parking ratio for residential uses in this zone.

e. Front yard additions are not permitted, unless supported by photographic evidence. The existing front yard setback shall be considered compliant.

4. Surface Parking Lot as a principal use, subject to the following conditions:

a. Minimum of two parking spaces or 20% of all parking spaces, whichever is greater, shall be reserved and equipped with electric vehicle charging for the general public.

b. Maximum lot coverage: 90%.

c. Minimum landscaped area: A minimum of 10% of the lot shall be planted or mulched with grasses, plants, shrubs, or trees and may not be reduced by any of the porous materials listed above.

d. Maximum curb cut and driveway width: Ten feet.

e. Parking spaces shall be offered use to general public for a fee on an hourly, daily, weekly, monthly, or annual basis. A Parking Lot License per Chapter 236 of the municipal code shall be obtained and maintained.

f. Maximum lot size: 7,500 square feet.

5. Mortuaries, subject to the following conditions:

a. Minimum lot width or frontage: 100 feet.

b. Minimum parking: One space per employee and one space per every five square feet of floor area exclusive of administrative and preparation areas.

§ 345-42. R-2 Multi-Unit Attached Housing District (four stories or less). [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. Purpose. The purpose of the multi-unit attached housing (four stories or less) district is to recognize the existing pattern of housing development and to promote compatible infill development.

B. Permitted principal uses are as follows:

1. Residential.

2. Townhouses.

3. Places of assembly and houses of worship.

4. Civic uses.

5. Parks and playgrounds.

6. Essential services.

7. Schools.

8. Governmental uses.

9. Assisted living facilities.

10. Nursing homes.

11. Senior housing.

12. Public utilities, except that natural gas transmission lines shall be prohibited.

13. First floor commercial provided, that the commercial unit(s) existed in the 1930's Tax Assessor's photo and that the original storefront character including window configuration be restored or maintained. Cannabis Class 5 Retailers are prohibited in this zone.

C. Uses incidental and accessory to the principal use, such as:

1. Off-street parking within the building envelope, except when parking it is prohibited.

2. Fences and walls.

3. Meeting rooms, cafeterias, recreation areas and similar uses normally associated with schools, houses of worship and other public buildings.

4. Home occupations.

5. Swimming pools.

6. Decks, patios, pergolas, and storage sheds.

7. Electric vehicle charging, except when off-street parking is prohibited.

8. Signs.

9. Accessory dwelling units, one dwelling unit permitted in an accessory structure per lot regardless of lot size and in addition to unit(s) in the principal structure.

D. Conditional Uses.

1. Mortuaries.

E. Density and Bulk Standards.

1. Maximum permitted density by use:

a. Residential: A maximum of 55 units per acre.

b. Assisted living residences: No standard.

c. Senior housing: No standard.

d. Nursing homes: No standard.

2. All existing lots are considered conforming.

3. Minimum lot size: 1,800 square feet.

4. Minimum lot width: 18 feet.

5. Minimum lot depth: No standard.

6. Maximum lot area: 12,500 square feet.

7. Front yard setback: The required front yard setback shall match the building line of the front primary façade of either lot adjacent to the subject parcel. The adjacent property to be matched may be decided by the applicant.

8. Maximum side yard: Zero feet; except when an adjacent building has an existing window or windows three feet or less from a property line, the subject building shall be required to setback the new building at least three feet from any said window, starting at least one foot in front of the existing window and terminating at least one foot beyond the existing window.

9. Minimum rear yard: 30 percent of the lot depth, rounded to nearest whole number. For example, a lot with a depth of 75 feet, the minimum rear yard required is 23 feet (calculated 75*0.3 = 22.5, rounded to 23-foot setback).

10. Building height standards:

a. Maximum building height: Four stories and 40 feet.

b. Maximum parapet height: 42 inches above any roof or roof deck.

11. Maximum lot coverage: 80 percent.

12. Lot coverage may be decreased by using any combination of the following porous materials:

a. Interlocking concrete blocks;

b. Permeable pavers;

c. Open-celled pavers;

d. Porous pavement;

e. Gravel;

f. Reinforced lawn;

g. Or other material deemed appropriate by Planning or Zoning Board.

13. Landscaped area requirement: A minimum of ten percent of the lot shall be planted or mulched with grasses, plants, shrubs, or trees and may not be reduced by any of the porous materials listed above.

14. Required green roof ratio: When building coverage exceeds 60 percent, a green roof system is required of at least 100 square feet or ten percent of the lot area, whichever is greater. Green roof trays are acceptable.

15. Roof deck setback: Roof decks shall be setback a minimum of ten feet from primary and secondary front façades.

16. Standards for accessory buildings or structures:

a. Maximum accessory building height:

i) For accessory dwelling units: 18 feet and two stories.

ii) For all other accessory structures: 12 feet.

b. Minimum accessory building setbacks:

i) Rear yard: Three feet.

ii) Side yard: Three feet.

F. Parking Standards.

1. No parking shall be permitted between the building line and the street line. In no instance shall a parked vehicle project or encroach over a property line, or into rights-of-way, or block sidewalks.

2. Off-street parking is prohibited on lots with a width of 50 feet or less.

3. Off-street parking requirements for residential, townhouses, senior housing, nursing homes, and assisted living facilities:

a. For lots with a lot width over 50 feet: A minimum of 0.3 spaces per bedroom. For the purpose of calculating this standard, studio units shall be counted as one bedroom. For example, in a five-unit structure with 15 bedrooms a minimum of five spaces are required ($15 \times 0.3 = 4.5$ which rounds to five spaces).

4. Curb cut standards:

   a. Maximum number: One curb cut is permitted per lot when off-street parking is a permitted use.

   b. Maximum width: Ten feet.

G. Design Standards:

1. All principal structures are to be designed with flat roofs.

2. If a ground floor setback is required by the Construction Code Official for egress to rights-of-way, any cantilevered setback area must be designed with a minimum six-inch wide column at the primary building façade to simulate or carry the weight of the building bulk above.

H. Mortuaries, subject to the following conditions:

1. Minimum lot width or frontage: 100 feet.

2. Minimum parking: One space per employee and one space per every five square feet of floor area exclusive of administrative and preparation areas.

§ 345-43. R-3 Multi-Unit Mid-Rise District. [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. Purpose.

1. The purpose of the multi-unit mid-rise district is to provide for a broad range of multi-unit housing in areas served by arterial streets, mass transit, neighborhood commercial uses and community facilities.

2. The purpose of this zone is to relate the building to the street and not create the type of development that centers the tower in a sea of parking, disconnecting the building from the street.

3. The multi-unit mid-rise district contains mid-rise buildings of three to eight stories and regulates height and density by lot size.

B. Permitted Principal Uses:

1. Uses for all floors:

   a. Residential.

   b. Townhouses.

   c. One- to four-unit detached dwellings.

   d. Houses of worship.

e. Parks and playgrounds.

f. Essential services.

g. Schools.

h. Government uses.

i. Assisted living residences.

j. Nursing homes and adult day care facilities.

k. Senior housing.

l. Live/work.

2. Uses for ground floor only:

a. Offices.

b. Medical offices.

c. Retails sales and services.

d. Cafés.

e. Restaurants, Categories one and two.

f. Mortuaries.

3. Mix of uses are permitted.

C. Uses incidental and accessory to the principal use, such as:

1. Private garages.

2. Off-street parking.

3. Fences and walls.

4. Meeting rooms, cafeterias, recreation areas and similar uses normally associated with schools, houses of worship and other public buildings.

5. Home occupations.

6. Swimming pools.

7. Recreation areas as part of residential developments.

8. Signs.

9. Decks, patios, pergolas, and storage sheds.

D. Density and Bulk Standards by Lot Size.

1. All existing lots are considered conforming.

2. Minimum lot width: 20 feet.

3. Minimum lot depth: No standard.

4. Minimum lot area: 2,000 square feet.

5. Maximum lot size: 22,000 square feet.

6. Maximum density regulated by lot size shall apply in accordance with the following table.

Lot Size (square feet)	Maximum density* (Dwelling Units per Acre)
Less than 2,500	4 dwelling units regardless of lot size
2,500 to 5,999	4 dwelling units regardless of lot size
6,000 to 6,999	60
7,000 to 7,499	65
7,500 to 7,999	70
8,000 to 8,999	75
9,000 to 9,999	80
10,000 to 10,999	85
11,000 to 11,999	90
12,000 to 12,999	95
13,000 to 13,999	100
14,000 to 14,999	105
15,000 to 15,999	110
16,000 to 16,999	115
17,000 to 17,999	120
18,000 to 18,999	125
19,000 to 19,999	130
20,000 to 20,999	135
21,000 to 21,999	140
22,000 and up	145

*Applicable density for any interim lot size shall apply and may be calculated as needed, rounding down for fractions less than 0.5 and up for fractions of 0.5 or greater.

7. Building height standards:

a. Maximum height for principal structures on lots less than 6,000 square feet: four stories, 42 feet.

b. Maximum height for principal structures on lots 6,000 square feet or more: eight stories, 85 feet.

8. Front yard setback standards:

a. Standard on lots less than 6,000 square feet: The required front yard setback shall match the building line of the front primary façade of either lot adjacent to the subject parcel. The adjacent lot to be matched may be decided by the applicant or property owner.

b. Standard on lots 6,000 square feet or more: a minimum of five feet and a maximum of ten feet.

9. Side yard setback standards:

a. Standard on lots less than 37 feet wide: No standard. However, when an adjacent building has an existing window or windows three feet or less from a property line, the subject building shall be required to setback the new building at least three feet from any said window, starting at least one foot in front of the existing window and terminating at least one foot beyond the existing window.

b. Standard on lots 37 feet wide to 59 feet wide: minimum five feet on each side.

c. Standard on lots 60 feet wide or more: parking garage level(s) may be built to the side lot line, and residential or upper floors shall provide a minimum of five feet on each side.

10. Rear yard setback standards:

a. Standard on lots less than 6,000 square feet: minimum equal to 25 percent of lot depth.

b. Standard on lots 6,000 square feet or more: parking garages on the ground floor may have a zero foot setback, all other floors shall have a minimum rear yard equal to 25 percent of the lot depth.

11. Coverage standards:

a. Standard on lots less than 6,000 square feet: a maximum of 80 percent lot coverage.

b. Standard on lots 6,000 square feet or more: a maximum of 100 percent lot coverage if a parking garage is provided, and a maximum of 80 percent lot coverage is no parking is provided.

12. Maximum accessory building height: 15 feet.

13. Minimum accessory building setbacks:

a. Rear yard: Three feet.

b. Side yard: Two feet.

E. Parking Standards:

1. No parking shall be permitted between the building line and the street line. In no instance shall a parked vehicle project or encroach over a property line, or into rights-of-way, or block sidewalks.

2. Standards for residential uses on lots less than 37 feet in width:

   a. Off-street parking is not required.

   b. All parking shall be contained within the building envelope and spaces may be located one behind the other.

3. Standards for residential uses on lots 37 feet in width or greater:

   a. Minimum parking requirements: A minimum of 0.3 spaces per bedroom. For the purpose of calculating this standard, studio units shall be counted as one bedroom. For example, in a five-unit structure with 15 bedrooms a minimum of five spaces are required ($15 \times 0.3 = 4.5$ which rounds to five spaces).

4. Standards for houses of worship, schools, mortuaries, and government uses. See R-1 parking standards.

5. Standards for assisted living residences, nursing homes and senior housing. See R-1 parking standards.

6. Curb cut standards:

   a. Maximum width of curb cut: Ten feet.

   b. Maximum number: One curb cut is permitted per lot when off-street parking is required and provided, except where there is construction of two or more buildings with permitted driveways on adjacent lots, driveways shall be shared and located so as to maximize on-street parking space.

F. Compliance Provision: Lots that were Zoned R-1 and were 8,422 square feet in area or more when Ordinance 21-077 (aka Inclusionary Zoning Ordinance) was adopted on December 15, 2021 are subject to a mandatory affordable housing set aside per Chapter 187 if the developer of such lot builds 15 or more residential units onsite or subdivides the lot and builds 15 or more residential units in aggregate.

§ 345-44. R-4 Multi-Unit High-Rise District. [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. Purpose.

1. The purpose of the multi-unit high-rise district is to accommodate low, medium and high-rise multi-unit housing in appropriate locations that are served by mass transit, off-street parking and

adequate public infrastructure. The location of these districts in close proximity to shopping, employment and recreational amenities is intended to promote an increased mix of uses, 24-hour activity and pedestrian traffic characteristic of dense urban centers.

2. This district should not create a "tower in the park," type of development. This type of development centers the tower in a sea of parking disconnecting the building from the street.

B. Permitted principal uses are as follows:

1. Townhouses.
2. Mid-rise apartments.
3. High-rise apartments.
4. Schools.
5. Parks and playgrounds.
6. Essential services.
7. Governmental uses.
8. Houses of worship.
9. Retail sales of goods and services.
10. Assisted living residences.
11. Nursing homes.
12. Senior housing.
13. Offices.

C. Uses incidental and accessory to the principal use, such as:

1. Private garages.
2. Off-street parking.
3. Fences and walls.
4. Meeting rooms, cafeterias, recreation areas and similar uses normally associated with schools, houses of worship and other public buildings.
5. Home occupations.
6. Swimming pools.

7. Recreation areas as part of residential developments.

8. Signs.

9. Decks, patios, pergolas, and storage sheds.

D. Conditional Uses.

1. Mortuaries.

E. Bulk Standards for High-Rise Apartments.

1. Minimum lot size: 60,000 square feet.

2. Maximum density: 150 units per acre.

3. Minimum lot width: 300 feet.

4. Minimum lot depth: 200 feet.

5. Minimum front yard: Ten feet.

6. Minimum rear yard: 25 feet.

7. Minimum side yard: Ten feet.

8. Minimum building height: Eight stories and 80 feet.

9. Maximum building height: 110 feet.

10. Maximum building coverage: 60 percent.

11. Maximum lot coverage: 85 percent.

F. Parking Standards for High-Rise Apartments.

1. Minimum 0.5 parking spaces per dwelling unit.

2. Office and retail use where permitted: None.

3. A minimum buffer of ten feet is required between on-site parking areas and adjacent R-1 and R-2 zones.

G. Bulk and Parking Standards for Townhouses. See R-2 Bulk and Parking Standards.

H. Bulk and Parking Standards for Mid-Rise Apartments.

1. Minimum lot size: 60,000 square feet, provided all bulk and parking standards are met. All lots legally existing at the time this ordinance is adopted are considered conforming.

2. Maximum density:

Lot Dimensions	Lot Size	Max. Dwelling Units/Acre*
60 × 100	6,000	60
	7,000	65
75 × 100	7,500	70
	8,000	75
	9,000	80
100 × 100	10,000	85
	11,000	90
	12,000	95
	13,000	100
	14,000	105
	15,000	110
	16,000	115
	17,000	120
	18,000	125
	19,000	130
100 × 200	20,000	135
	21,000	140
	22,000	145

*Lots with greater than 22,000 sf shall be capped at 145 units per acre.

3. Minimum lot width: 60 feet.

4. Minimum lot depth: 100 feet.

5. Required front yard: Shall match the front yard setback of the primary building façade of adjacent building(s), if any, or a minimum of five feet and a maximum of ten feet shall apply if no adjacent building.

6. Minimum rear yard: Ground floor or single floor partially above grade parking garages may be built to the rear lot line in accordance with height restrictions, and all floors above the garage shall provide a minimum of 30 feet.

7. Required side yard: Parking garage level(s) may be built to the side lot line, and residential floors shall provide a minimum of five feet on each side.

8. Minimum and maximum building height: Three stories minimum and eight stories and 85 feet maximum including above-grade parking levels, and a minimum floor to ceiling height of nine feet for all residential floors, and a maximum floor to ceiling height of eight feet for a parking level and any residential unit located on the same level as parking. No wall/elevation of any parking structure connected to a mid-rise apartment building shall rise more than ten feet above the existing grade.

9. Maximum building coverage: Up to 100 percent building coverage shall be permitted only for a parking garage level at grade or partially below grade and where the front yard standard requires between zero and 4.99 feet (see front yard standard); 65 percent for all residential floors above the garage on lots of 10,000 square feet or less; and 75 percent for all residential floors on lots over 10,000 square feet.

10. Maximum lot coverage: Up to 100 percent lot coverage shall be permitted only for a parking area or parking garage at grade or partially below grade and where the front yard setback standard requires between zero and 4.99 feet (see front yard standard) and where buffer requirements allow; 85 percent if parking is entirely below grade.

11. Maximum accessory building height: 15 feet.

12. Minimum accessory building setbacks:

    a. Rear yard: Three feet.

    b. Side yard: Two feet.

13. Parking:

    a. Minimum one-half parking spaces per dwelling unit.

    b. Office uses where permitted: None.

    c. A minimum ten feet wide vegetative landscape buffer is required between on-site surface parking areas for mid-rise apartment buildings and any adjacent residential zones of lower density than R-3 (includes R-2, R-1, RH-1, RH-2, and any other zones of similar low density yet to be adopted).

I. Bulk and Parking Standards for Houses of Worship, Schools, and Governmental Uses. See R-1 Bulk and Parking Standards.

J. Bulk and Parking Standards for Assisted Living Residences, Nursing Homes and Senior Housing. See R-1 Bulk and Parking Standards except for height; height shall be in accordance with the height standard for high-rise apartments.

K. Conditional Use Standards for Mortuaries. See R-1 Conditional Use Standards.

§ 345-45. RC-1 Residential Commercial District 1 (three and four stories). [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose.

1. The purpose of this district is to recognize the existence and importance of the historic mixed use, neighborhood business districts through the City. The purpose of this zoning is to promote the historical pattern along these corridors and continue to permit a mix of uses consistent with neighborhood centers.

B. Permitted principal uses are as follows:

1. Ground floor and upper floors:

a. Residential and/or live/work.

i. For lots that are less than 50 feet in width:

1. Permitted on all floors.

ii. For lots that are 50 feet or greater in width:

1. Permitted above ground floor.

2. Residential uses are permitted on the ground floor, provided that ground floor residential uses are located 25 linear feet from any lot line fronting on a right-of-way. Ground floor residential uses must be situated behind an active storefront use that includes, but is not limited to, retail, building lobbies, art galleries, and offices. For corner lots, residential uses may be within 25 linear feet from a front lot line considered a "side street" so long as active storefront use is proposed along the "main street".

3. Live/work uses permitted on the ground floor, provided that they have a dedicated entrance from the right-of-way.

b. Art galleries;

c. Health clubs;

d. Offices;

e. Theaters and museums;

f. Education facilities, public and private;

g. Child day care centers;

h. Adult day care centers;

i. Medical offices.

2. Ground floor only:

a. Retail sales of goods and services.

b. Financial institutions without drive-thru facilities.

c. Restaurants, category one and two.

3. Government uses.

4. Parks and playgrounds.

C. Uses incidental and accessory to the principal use, such as:

1. Off-street parking and parking garages permitted on lots with a width of 25 feet or more.

2. Fences and walls.

3. Signs.

4. Sidewalk cafes associated with category one and two restaurants.

5. TV, radio, and/or stereo systems accessory to bars and restaurants.

6. Live entertainment accessory to Category One restaurants only, subject to issuance of a "restaurant entertainment license" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance No. 12-001).

D. Bulk Standards:

1. All existing lots of record at the time of adoption of the ordinance from which this section derived are considered conforming.

2. Minimum lot size: 2,000 square feet.

a. Minimum lot width: 25 feet.

b. Minimum lot depth: No standard.

3. Maximum density: 65 units an acre.

4. Setback standards:

   a. Front yard setback: None.

   b. Minimum side yard: None; except where existing adjacent building has windows less than three feet from the side lot line then three feet required starting from one foot in front of the first window to the rear building line.

   c. Minimum rear yard: 15 percent of the lot depth at the ground floor and 30 percent of lot depth for all floors above.

5. Coverage standard:

   a. Maximum lot coverage: 90 percent.

   b. Maximum building coverage: 85 percent.

   c. All exposed rooftop shall provide an inaccessible true green roof.

   d. All pervious areas shall be covered using one of the following materials:

      i. Reinforced lawn;

      ii. Ground cover;

      iii. Rain garden;

      iv. Bioswales;

      v. Plants that are native, non-invasive and proven drought resistant in an urban environment.

6. Height:

   a. Maximum building height:

      i. Corner lots: Four stories, 45 feet

      ii. All other lots: Three stories, 35 feet

   b. Rooftop decks must be setback a minimum of five feet from the side property line and a minimum ten feet setback from the front and rear of the roof. Rooftop deck shall not cover more than 30 percent of the roof inclusive of the setback requirements herein. Where an inaccessible green roof is installed for stormwater detention, a rooftop deck is permitted an increase in coverage but shall not cover more that 80 percent of the roof, inclusive of the setback requirements herein, and provided that the remaining areas of the roof is a green roof.

E. Parking Standards:

1. In no instance shall parking be permitted between the front building line and street line. In no instance shall a parked vehicle project or encroach over a property line, or into rights-of-way, or block sidewalks.

2. No on-site parking is required for additions on structures greater or for adaptive reuse or for change of use of existing buildings.

3. No parking is permitted or required on lots with a width less than 25 feet.

4. Off-street parking is not required for lots with a lot width less than 75 feet. For corner lots, the shorter lot width shall control whether parking is required.

5. Parking is permitted on lots that are 25 feet wide or greater, and parking is required for new construction on lots 75 feet wide and greater subject to the following requirements: A minimum of 0.3 spaces per bedroom. For the purpose of calculating this standard, studio units shall be counted as one bedroom. For example, in a five-unit structure with 15 bedrooms a minimum of five spaces are required (15 * 0.3 = 4.5 which rounds to five spaces).

6. Garage placement shall be setback a minimum of four feet from any lot line fronting a right-of-way.

7. Maximum width of curb cut: Ten feet; and in no instance shall the siting of a curb cut preclude the retention or creation of at least three on-street parking spaces

8. Curb cuts are prohibited along Summit Avenue, Franklin Avenue, and Mallory Avenue (for lots between Clendenny Avenue and Roosevelt Avenue). This shall result in zero parking required or permitted on lots with no other access to alternative rights-of-way.

9. Curb cuts are discouraged along Mallory Avenue, Sterling Avenue, Danforth Avenue, Rose Avenue, and Old Bergen Road. If the property is on a corner lot, the location for the curb cut shall be on the side street.

10. Parking stalls shall be at least 25 feet from any lot line fronting Summit Avenue, Mallory Avenue, Sterling Avenue, Franklin Avenue, Danforth Avenue, Rose Avenue, or Old Bergen Avenue.

11. Surface parking spaces, driveways, and any type of patio shall be constructed using pervious paving materials. The following are acceptable materials:

    a. Interlocking concrete blocks;

    b. Permeable pavers;

    c. Open-celled pavers;

    d. Porous pavement, concrete or asphalt;

    e. Gravel;

f. Reinforced lawn; or

g. Other material deemed appropriate by Planning/Zoning Board.

F. Design Standards.

1. Chain link fences are prohibited.

2. Buildings shall be designed contextually to present a harmonious appearance in terms of architectural style and materials and shall be encouraged to incorporate historic elements found throughout the surrounding area.

3. The width and height of windows, doors and entries, including porches and stoops, must harmonize in scale and proportion with the width and height of windows, doors and entries of adjacent and surrounding buildings.

4. The roof form and slope of a building or structure shall be consistent with the prevailing block or corridor pattern.

G. Compliance Provision.

1. Lots that were zoned R-1 and were 9,717 square feet in area or more when Ordinance 21-077 (aka Inclusionary Zoning Ordinance) was adopted on December 15, 2021 are subject to a mandatory affordable housing set aside per Chapter 187 if the developer of such lot builds 15 or more residential units onsite or subdivides the lot and builds 15 or more residential units in aggregate.

§ 345-45.1. RC-2 Residential Commercial District 2 (four and five stories). [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose.

1. Jersey City is a consolidation of a number of smaller communities, connected by main arteries of travel, creating several distinct neighborhood centers. The purpose of this district is to recognize and promote the existence and importance of historic mixed use, neighborhood business districts throughout the City.

B. Permitted principal uses are as follows:

1. Ground floor and upper floors:

a. Residential and/or live/work. For corner lots, the shorter lot width shall control.

i. For lots that are 25 feet and less in width:

1. Permitted on all floors, provided that in no instance shall there be a garage on the ground floor or on-site parking.

ii. For lots that are greater than 25 feet in width:

1. Permitted above ground floor.

2. Residential uses are permitted on the ground floor, provided that ground floor residential uses are located 25 linear feet from any lot line fronting on a right-of-way. Residential uses must be situated behind an active storefront use that includes, but is not limited to, retail, building lobbies, art galleries, and offices. For corner lots, residential uses may be within 25 linear feet from a front lot line considered a "side street" so long as active storefront use is proposed along the "main street".

3. Live/work uses permitted on the ground floor, provided that they have a dedicated entrance from the right-of-way.

b. Art galleries;

c. Health clubs;

d. Offices;

e. Theaters and museums;

f. Education facilities, public and private;

g. Child day care centers;

h. Adult day care centers;

i. Medical offices.

2. Ground floor only:

a. Retail sales of goods and services.

b. Financial institutions without drive-thru facilities.

c. Restaurants, category one and two.

3. Government uses.

4. Parks and playgrounds.

C. Uses incidental and accessory to the principal use, such as:

1. Parking garages permitted on lots with a width of 50 feet or more.

2. Fences and walls.

3. Signs.

4. Sidewalk cafes associated with category one and two restaurants.

5. TV, radio, and/or stereo systems accessory to bars and restaurants.

6. Live entertainment accessory to Category One restaurants only, subject to issuance of a "restaurant entertainment license" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance No. 12-001).

D. Bulk standards:

1. All existing lots of record at the time of adoption of the ordinance from which this section derived are considered conforming.

2. Minimum lot size: 2,500 square feet.

   a. Minimum lot width: 25 feet.

   b. Minimum lot depth: No standard.

3. Maximum density: 75 units an acre.

4. Setback standards:

   a. Front yard setback: None.

   b. Minimum side yard: None; except where existing adjacent building has windows less than three feet from the side lot line then three feet required starting from one foot in front of the first window to the rear building line.

   c. Minimum rear yard: 15% of the lot depth at the ground floor level, 30 percent of the lot depth for all levels above the ground floor.

5. Coverage standard:

   a. Maximum lot coverage: 90 percent

   b. Maximum building coverage: 85 percent.

   c. All exposed rooftop shall provide an inaccessible true green roof.

   d. All pervious areas shall be covered using one of the following materials:

      i. Reinforced lawn;

      ii. Ground cover;

      iii. Rain garden;

      iv. Bioswales;

v. Plants that are native, non-invasive and proven drought resistant in an urban environment.

6. Height:

a. Maximum building height:

i. Four stories, 45 feet on lots 50 feet wide or less.

ii. Five stories, 55 feet on lots greater than 50 feet wide, provided that the fifth story is setback ten feet from the front of the primary street frontage.

iii. For corner lots, the shorter lot width shall control the maximum permitted height. For example, a 50 by 100 foot lot is only permitted to be four stories, 45 feet in height because the shorter lot width is 50 feet.

b. Rooftop decks must be setback a minimum of five feet from the side property line and a minimum ten feet setback from the front and rear of the roof. Rooftop deck shall not cover more than 30 percent of the roof inclusive of the setback requirements herein. Where an inaccessible green roof is installed for stormwater detention, a rooftop deck is permitted an increase in coverage but shall not cover more that 50 percent of the roof, inclusive of the setback requirements herein, and provided that the remaining areas of the roof is a green roof.

c. Rooftop appurtenances shall be no larger than 20 percent of the roof surface area.

E. Parking Standards.

1. No on-site parking is required for additions on structures or for adaptive reuse or for change of use of existing buildings.

2. No parking is required or permitted for lots 50 feet wide or less.

3. Parking is permitted on lots that are greater than 50 feet wide, and parking is required for new construction on lots 75 feet wide and greater subject to the following requirements:

a. In no instance shall parking be permitted between the front building line and street line.

b. Garage placement shall be setback a minimum of four feet from any lot line fronting a right-of-way.

c. Maximum width of curb cut: 10 feet; and in no instance shall the siting of a curb cut preclude the retention or creation of at least three on-street parking spaces along width of the lot for that portion of Palisade Avenue.

d. For corner lots, the shorter lot width shall control whether parking is required.

e. Minimum parking requirements for residential uses: A minimum of 0.3 spaces per bedroom. For the purpose of calculating this standard, studio units shall be counted as one bedroom. For example, in a five-unit structure with 15 bedrooms a minimum of five spaces are required (15 * 0.3 = 4.5 which rounds to five spaces).

4. Curb cuts are discouraged along Palisade Avenue, Kennedy Boulevard, Ocean Avenue, and West Side Avenue. If the property is on a corner lot, the location for the curb cut shall be on the side street.

5. Curb cuts are prohibited along Congress Street. This shall result in zero parking required or permitted on lots with no other access to alternative rights-of-way.

6. Parking stalls shall be at least 25 feet from any lot line fronting on Palisade Avenue, Kennedy Boulevard, Ocean Avenue, Congress Street, or West Side Avenue.

7. Surface parking spaces, driveways, and any type of patio shall be constructed using pervious paving materials. The following are acceptable materials:

   a. Interlocking concrete blocks;

   b. Permeable pavers;

   c. Open-celled pavers;

   d. Porous pavement, concrete or asphalt;

   e. Gravel;

   f. Reinforced lawn; or

   g. Other material deemed appropriate by Planning/Zoning Board.

F. Design Standards.

1. Chain link fences are prohibited.

2. Buildings shall be designed contextually to present a harmonious appearance in terms of architectural style and materials and shall be encouraged to incorporate historic elements found throughout the surrounding area.

3. The width and height of windows, doors and entries, including porches and stoops, must harmonize in scale and proportion with the width and height of windows, doors and entries of adjacent and surrounding buildings.

4. The roof form and slope of a building or structure shall be consistent with the prevailing block or corridor pattern.

G. Compliance Provisions.

1. Lots that were zoned R-1 and were 8,424 square feet in area or more when Ordinance 21-077 (aka Inclusionary Zoning Ordinance) was adopted on December 15, 2021 are subject to a mandatory affordable housing set aside per Chapter 187 if the developer of such lot builds 15 or more residential units onsite or subdivides the lot and builds 15 or more residential units in aggregate.

2. Lots that were zoned C - Cemetery when Ordinance 21-077 (aka Inclusionary Zoning Ordinance) was adopted on December 15, 2021 are subject to a mandatory affordable housing set aside per Chapter 187 if the developer of such lot buildings any residential dwelling units onsite or subdivides the lot and builds any residential dwelling units onsite.

§ 345-45.2. RC-3 Residential Commercial District 3 (narrow lots, three and four stories). [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose: The purpose of this district is to provide development regulations contextual to the existing predominantly two- to four-story multifamily neighborhood with occasional retail venues. Moreover, the intent of the zoning regulations are to protect the historically low-rise nature of the neighborhood from inappropriate infill such as: buildings greater than four stories, detached buildings, front yard parking, and ground floor garages on lots smaller than 4,000 square feet. Additionally, the purpose of the zoning in this district is to address and mitigate the impact the flooding in low laying vulnerable areas, and create a more resilient neighborhood for future generations.

B. Permitted Principal Uses: **[Amended 10-25-2023 by Ord. No. 23-103]**

1. Residential.

2. Retail sales of goods and services on the ground floor along Brunswick Street, Monmouth Street, Baldwin Avenue, or Coles Street, or other locations where there are existing, legal storefronts.

3. Professional offices and medical offices on the ground floor along Brunswick Street, Monmouth Street, Baldwin Avenue, or Coles Street, or other locations where there are existing, legal storefronts.

4. Cafes on the ground floor along Brunswick Street, Monmouth Street, Baldwin Avenue, or Coles Street, or other locations where there are existing, legal storefronts.

5. Schools.

6. Governmental uses.

7. Houses of worship.

8. Parks and playgrounds.

9. Home occupations.

10. Live work.

11. Any combination of the above (with the exception that retail and office are limited to the criteria above in B.2 and B.3)

C. Uses incidental and accessory to the principal use, such as:

1. Parking garages and off-street parking.

2. Fences and walls.

3. Signs.

4. Sidewalk cafes associated with category two restaurants.

5. TV, radio, and/or stereo systems accessory to restaurants.

D. Bulk Standards:

1. All lots legally existing at the time of adoption of this section are conforming.

2. Lot standards:

a. Minimum lot size: 1,800 square feet.

b. Minimum lot width: 18 feet.

c. Minimum lot depth: 100 feet.

3. Setback standards.

a. Minimum front yard setback: Must meet adjacent structure setback closest to the predominant blockfront setback.

b. Minimum rear yard setback: 30 percent of lot depth.

c. Side yard setbacks: Zero, except where there a window exists on an adjacent structure. In that instance, the building must be setback a minimum three feet one inch, starting at least one foot before the window.

4. Height:

a. Maximum building height:

i. Streets with 60-foot right-of-way or larger: Four stories, 42 feet.

ii. Streets with less than 60-foot right-of-way: Three stories with a fourth floor setback a minimum of 15 feet from the front of the building. The total height permitted is 42 feet. In the instance the 15-foot setback cannot be met, a height variance and setback variance shall be required.

iii. Corner lots: The height of the lot shall be controlled by the size of the street line with the lesser frontage.

b. Minimum floor to ceiling height: Nine feet.

c. Mezzanines are not permitted.

d. Any rooftop deck and its surrounding barrier, required by code, must be setback a minimum of five feet from the front of the building. Rooftop deck shall not cover more than 30 percent of the roof's available surface, area except where a green roof is installed. Where a green roof is installed, the remaining roof area, inclusive of the setback requirements, can be covered up to 50 percent; the rest must be a green roof installation.

5. Density:

a. Maximum density: 80 units an acre.

6. Coverage standard:

a. Maximum building coverage: 70 percent.

b. Maximum lot coverage: 80 percent.

E. Parking Standards:

1. Parking is prohibited on any lots that have sole frontage on Brunswick Street, Monmouth Street, or Coles Street.

2. Parking is prohibited on lots less than 40 feet wide, unless the rear lot line is adjacent to an alley, in which case parking is permitted in the rear yard with access from the alley.

3. Where parking is permitted, parking is required on lots 40 feet wide or greater, according to the following:

a. Parking requirements: A minimum of 0.3 spaces per bedroom. For the purpose of calculating this standard, studio units shall be counted as one bedroom. For example, in a five-unit structure with 15 bedrooms a minimum of five spaces are required (15 * 0.3 = 4.5 which rounds to five spaces).

b. In no instance shall parking be permitted between the front building line and street line.

c. Maximum width of curb cut: Ten feet.

d. Maximum width of driveway: Ten feet.

e. Only a single curb cut, per property, is permitted; however in no instance shall a curb cut be permitted on Brunswick Street, Monmouth Street, or Coles Street.

4. Surface parking spaces, driveways, and any type of patio shall be constructed using pervious paving materials. The following are acceptable materials:

a. Interlocking concrete blocks.

b. Permeable pavers.

c. Open-celled pavers.

d. Porous pavement, concrete or asphalt.

e. Gravel.

f. Reinforced lawn.

g. Or other material deemed appropriate by Planning/Zoning Board.

F. Landscaping Standards:

1. All properties are required to provide street trees, except where it can be demonstrated to Planning Staff that it is not possible to plant trees due to underground constraints such as water or utility lines.

2. All street trees shall be in accordance with the design standards in Section 345-66.B.

3. In the event a street, tree is removed for construction, required repair/replacement, or for any other purpose, restoration of a street tree is required in accordance with the design standards in Section 345-66.B

4. At least 20 percent of every lot shall be landscaped with one of the following materials:

a. Reinforced lawn.

b. Ground cover.

c. Rain garden.

d. Bioswales.

e. Plants that are native, non-invasive and proven drought resistant in an urban environment.

G. Design Standards:

1. Buildings shall be designed to present a harmonious appearance in terms of architectural style and materials and shall be encouraged to incorporate historic elements found throughout the surrounding area.

2. Blank walls without fenestration, specifically the non-habitable portion of the building within the flood elevations, shall incorporate façade articulation, recess portions of the street wall, a planter/landscaping buffer, stairs, porches, or any other architectural techniques to ensure visual connectivity between the elevated first floor and the sidewalk.

3. Buildings where ground floor retail is permitted shall incorporate a cornice element or horizontal projection above the storefront glazing separating ground floor uses from the building above.

H. Compliance Provision:

1. Lots that were zoned R-1 and were 7,895 square feet in area or more when Ordinance 21-077 (aka Inclusionary Zoning Ordinance) was adopted on December 15, 2021 are subject to a mandatory

affordable housing set aside per Chapter 187 if the developer of such lot builds 15 or more residential units onsite or subdivides the lot and builds 15 or more residential units in aggregate.

§ 345-46. NC-1 Neighborhood Commercial District 1 (five stories or less). [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. Purpose. The purpose of this district is to recognize the existence and importance of neighborhood business districts and provide ground floor commercial in mixed-use buildings to promote walkability.

B. Permitted principal uses are as follows:

1. Retail sales of goods and services.
2. Offices.
3. Financial institutions without drive-thru facilities.
4. Restaurants, category one and two.
5. Theaters and museums.
6. Governmental uses.
7. Parks and playgrounds.
8. Residential apartments above ground floor.
9. Educational facilities, public and private, above ground floor.
10. Bars.
11. Child day care centers.
12. Medical offices.
13. Health clubs.
14. Cafes.
15. Any combination of the above.

C. Uses incidental and accessory to the principal use, such as:

1. Off-street parking.
2. Fences and walls.
3. Signs.
4. Sidewalk cafes associated with category one and two restaurants.

5. T.V., radio, and/or stereo systems accessory to bars and restaurants.

6. Live entertainment accessory to Category One restaurants only, subject to issuance of a "restaurant entertainment license" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance #12-001), with the exception of properties on Lower John F. Kennedy Boulevard where no live entertainment shall be permitted.

D. Conditional uses:

1. Residential on the ground floor:

a. Following conditions apply when no commercial uses are proposed:

i. Subject lot is not a corner lot.

ii. Subject lot is directly adjacent to other properties with ground floor residential.

b. Following conditions apply when ground floor commercial is proposed:

i. Residential uses are limited to a maximum of 40 percent of the ground floor.

ii. Commercial uses shall be at least 40 percent of the ground floor.

E. Bulk Standards for Neighborhood Commercial Uses:

1. All existing lots of record at time of the adoption of this section are considered conforming.

2. Minimum lot size: 2,500 square feet.

3. Minimum lot width: 25 feet.

4. Minimum lot depth: 100 feet.

5. Front yard setback: None.

6. Minimum side yard: None.

7. Minimum rear yard: 15 percent of the lot depth.

8. Reserved.

9. Maximum building height:

a. Five stories and 64 feet for buildings without residential apartments above the ground floor.

b. Five stories and 55 feet for buildings with residential apartments above the ground floor.

10. Minimum floor to ceiling heights:

    a. Ground floor: minimum floor to ceiling height is 11 feet.

    b. Upper floors: minimum floor to ceiling height is nine feet; however, the top floor may have a minimum floor to ceiling height of eight feet.

    c. Drop ceilings for bathrooms, kitchens, corridors and other similar spaces are exempt from floor to ceiling minimums.

F. Parking Standards and Requirements:

1. Curb cuts are prohibited along Bergen Avenue, Brunswick Street, Coles Street, Central Avenue, Grand Street, Grove Street, Monmouth Street, Newark Avenue, and West Side Avenue. This shall result in zero parking permitted on lots with no other access to alternative rights-of-way.

2. Curb cuts are only permitted to gain access to off-street parking areas with five parking spaces or more. This shall result in zero parking required where the minimum parking required is less than five spaces as per the parking standards and requirements of this zone.

3. No on-site parking is required for additions on structures for adaptive reuse of existing buildings.

4. Minimum parking requirements:

    a. For lots 5,000 square feet or greater that are not located on Kennedy Blvd:

        i. Residential uses shall provide a minimum of 0.2 space per bedroom. For the purpose of calculating this requirement studio apartments shall be counted as one-bedroom apartments.

        ii. For non-residential uses when the gross floor area of non-residential uses is greater than 5,000 square feet: one space per 1,000 square feet.

5. For all lots located on Kennedy Blvd:

    i. Residential uses shall provide a minimum of 0.3 space per bedroom. For the purpose of calculating this requirement studio apartments shall be counted as one-bedroom apartments.

    ii. For non-residential uses when the gross floor area of non-residential uses is greater than 5,000 square feet: One space per 1,000 square feet.

6. For lots less than 5,000 square feet which are not located on Kennedy Blvd, off-street parking is not required.

7. No on-site parking is required for additions on structures or for adaptive reuse or for change of use of existing buildings.

§ 345-46.1 NC-2 Neighborhood Commercial District 2 (Six stories or less). [Added 10-25-2023 by Ord. No. 23-103]

A. Purpose: The purpose of this district is to recognize the importance of neighborhood business districts and provide ground floor commercial in mixed-use buildings to promote walkability. To increase pedestrian safety, pedestrian scale aesthetics and environmental performance.

B. Permitted principal uses are as follows:

1. Retail sales of goods and services.
2. Offices.
3. Hotels.
4. Financial institutions without drive-thru facilities.
5. Restaurants, category one, two and three.
6. Theaters and museums.
7. Governmental uses.
8. Parks and playgrounds.
9. Residential apartments above ground floor.
    a. Compliance provision: lots that were formerly zoned C/A are subject to mandatory affordable housing set aside per Chapter 187 if the developer of such lot builds 15 or more residential units onsite or subdivides the lot and buildings 15 or more residential units in aggregate.
10. Educational facilities, public and private, above ground floor.
11. Civic uses.
12. Bars.
13. Child day care centers.
14. Medical offices.
15. Health clubs.
16. Cafes.
17. Business Incubators.
18. Any combination of the above.

C. Uses incidental and accessory to the principal use, such as:

1. Off-street parking.

2. Fences and walls.

3. Signs.

4. Sidewalk cafes associated with category one and two restaurants.

5. T.V., radio, and/or stereo systems accessory to bars and restaurants.

6. Meeting rooms and facilities

7. Home occupations

8. Live entertainment accessory to Category One restaurants only, subject to issuance of a "restaurant entertainment license" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance #12-001).

D. Conditional uses:

1. Residential on the ground floor:

a. Following conditions apply when no commercial uses are proposed:

i. Subject lot is not a corner lot.

ii. Subject lot is directly adjacent to other properties with ground floor residential.

b. Following conditions apply when ground floor commercial is proposed:

i. Residential uses are limited to a maximum of 40% of the ground floor.

ii. Commercial uses shall be at least 40% of the ground floor.

E. Bulk standards for Neighborhood Commercial District 2 Uses:

1. All existing lots of record at time of the adoption of this section are considered conforming.

2. Minimum lot size: 2,500 square feet.

3. Minimum lot width: 25 feet.

4. Minimum lot depth: 100 feet.

5. Front yard setback:

a. Setback shall be sufficient to provide a minimum sidewalk width of 15 feet.

b. A green buffer/planting area with a minimum width of three feet shall be provided between the building facade and the 15 feet wide sidewalk. This green buffer shall incorporate a knee wall to protect the planting area. An integrated irrigation system is required. Runoff water is

required to permeate into the ground below. Pedestrian scale lighting shall be incorporated into the green buffer. See Design Standards below for recommended landscape materials/ treatments.

c. No awning or canopy should extend more than five feet off the building façade

6. Minimum side yard:

a. On lots less than 50 feet wide: None, except where there exists a window on the adjacent structure. In that instance, the building must be setback a minimum of three feet.

b. On lots 50 feet wide or more: parking garage levels may be built to the side lot line, and residential or upper floors shall provide a minimum of five on each side.

7. Minimum rear yard: Parking garages on the ground floor may have a zero-foot setback, all other floors shall have a minimum rear yard equal to 25% of the lot depth.

8. Coverage Standards:

a. Standard on lots less than 5,000 square feet: a maximum of 80% lot coverage.

b. Standard on lots 5,000 square feet or more: a maximum of 100% lot coverage if a parking garage is provided, and a maximum of 80% lot coverage if no parking is provided.

9. Maximum building height: Six stories and 64 feet.

10. Minimum floor to ceiling heights:

a. Ground floor: minimum floor to ceiling height is 11 feet.

b. Upper floors: minimum floor to ceiling height is nine feet; however, the top floor may have a minimum floor to ceiling height of eight feet.

c. Drop ceilings for bathrooms, kitchens, corridors and other similar spaces are exempt from floor to ceiling minimums.

G. Parking standards and requirements:

1. Curb cuts on Communipaw Avenue shall be kept to a minimum. Where possible, curb cuts shall be located on side streets.

2. Curb cuts are only permitted to gain access to off-street parking areas with five parking spaces or more. This shall result in zero parking required where the minimum parking required is less than five spaces as per the parking standards and requirements of this zone.

3. No on-site parking is required for additions on structures for adaptive reuse of existing buildings.

4. Maximum width of curb cut: ten feet

5. No parking is permitted for lots 50 feet wide or less.

6. Parking is permitted on lots that are greater than 50 feet wide, and parking is required for new construction on lots 75 feet wide and greater.

7. A minimum of ten percent of total parking spaces shall be dedicated charging locations for electric vehicles.

8. Minimum parking requirements and queuing standards for Category 3 restaurants:

   a. One space per 300 square feet.

   b. The queuing lane shall not conflict with ingress/egress and/or parking aisles required for circulation pertaining to any use on the site.

   c. The queuing lane shall be contained on-site.

9. Minimum parking requirements for all other uses:

   a. Residential uses shall provide a minimum of 0.2 space per bedroom. For the purpose of calculating this requirement studio apartments shall be counted as one-bedroom apartments.

   b. Hotels: one space: eight rooms.

   c. For all non-residential or non-hotel room uses: when the gross floor area is greater than 5,000 square feet: one space per 1,000 square feet.

   d. In no instance shall parking be permitted between the front building line and street line.

H. Design Standards:

a. Given the historic and ongoing (in-part) industrial use of the area, industrial characteristics shall be incorporated in façade design of new structures. When appropriate, adaptive reuse is encouraged to maintain portions of the existing industrial fabric within the area. Materials evoking historic industrial building characteristics such as brick, stone, cast stone, metal, concrete, and wood shall be used.

b. All façade vents for air conditioning or heating units shall be integrated into the window design such that vent grills and windows appear as a single unit.

c. Required green roof ratio: When building coverage exceeds 60 percent, a green roof system is required of at least 200 square feet or 10% of the lot area, whichever is greater. Green roof trays are acceptable.

d. At least 20% of every lot shall be landscaped with one of the following materials:

   i. Reinforced lawn.

   ii. Ground cover.

iii. Rain garden.

iv. Bioswales.

v. Plants that are native, non-invasive and proven drought resistant in an urban environment.

Editor's note—Ord. No. 23-103, adopted October 25, 2023, amended the Code by repealing former § 345-46.1, and adding a new § 345-46.1. Former § 345-46.1 pertained to the O/R Office/Residential District, and derived from 22-084, adopted October 13, 2022.

§ 345-46.2. NC-3 Neighborhood Commercial District 3 (110 feet or less). [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. Purpose.

1. The purpose of this district is to foster the development of a vibrant and accessible citywide activity district that is a center of commerce and civic activity. It functions as a local and regional destination for business, retail, education, government services, entertainment and transportation.

2. The Neighborhood Commercial District 3 contains numerous commercial, residential, institutional and government/public uses in a high intensity urban context.

B. Permitted principal uses are as follows:

1. Government uses.

2. Public and private colleges, universities and technical/vocational schools.

3. Parking garages.

4. Retail sales of goods and services.

5. Offices.

6. Hotels.

7. Conference centers.

8. Restaurants, category one and two.

9. Financial institutions without drive-thru facilities.

10. Theaters.

11. Billboards on buildings (except that in Historic Districts billboards are prohibited).

12. Residential.

13. Civic.

14. Medical offices.

15. Child day care centers.

16. Any combination of the above.

C. Uses incidental and accessory to the principal uses, such as:

1. Parking garages.

2. Meeting rooms, conference facilities, gymnasiums and exercise rooms and pools.

3. Signs.

4. T.V., radio, and/or stereo systems accessory to bars and restaurants.

5. Live entertainment accessory to category one restaurants only, subject to issuance of a "restaurant entertainment license" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance #12-001).

D. Bulk Standards.

1. Minimum lot size: 10,000 square feet.

2. Minimum lot width: 100 feet.

3. Minimum lot depth: 100 feet.

4. Front yard setback: None if under eight stories; a minimum of 15 feet if over eight stories as measured from the curb to the Building Line.

5. Rear yard: A minimum of 15% of lot depth.

6. Side yard: None.

7. Maximum building height: 110 feet.

8. Maximum building coverage: One hundred percent (100%).

E. Standards for Billboards.

1. Maximum height: 60 feet above grade at their highest point when erected on the roof of a building.

2. Setback from roof edge: Five feet.

3. Maximum area: 600 square feet with maximum vertical dimension of 12 feet for each sign. When billboard has more than one face, the maximum area shall be 750 square feet.

F. Parking Standards.

1. No on-site parking is required for additions on structures for adaptive reuse of existing buildings.

2. No on-site parking is required, nor to the following minimums apply, on lots less than 10,000 square feet.

3. Offices (except medical offices), financial institutions, brokerage houses, governmental uses and colleges and universities: 0.7 space per 1,000 square feet of floor area.

4. Medical offices: One space per 500 square feet, excluding the first 2,000 square feet of ground floor area.

5. Hotels: One space per 1,000 square feet of gross floor area including all-purpose rooms such as banquet, meeting and conference rooms.

6. Residential uses shall provide a minimum of 0.2 space per bedroom. For the purpose of calculating this requirement studio apartments shall be counted as one-bedroom apartments.

7. Retail sales of goods and services, restaurants, bars, theaters and night dubs: One space per 600 square feet of gross floor area, excluding the first 5,000 square feet of gross floor area.

G. Compliance Provision: Lots that were Zoned O/R Office Residential when Ordinance 21-077 (aka Inclusionary Zoning Ordinance) was adopted on December 15, 2021 will be subject to a mandatory affordable housing set aside per Chapter 187 if the developer of such lot builds more than 150 dwelling units per acre.

§ 345-47. HC Highway Commercial District. [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. Purpose. The purpose of this district is to promote the development of desirable highway commercial uses, improve the appearance of the streetscape, buffer adjacent neighborhoods and reinforce the area's function as a gateway to Jersey City.

B. Permitted principal uses are as follows:

1. Retail sales of goods and services.

2. Offices.

3. Financial institutions and brokerage houses.

4. Hotels.

5. Restaurants, all categories.

6. Nightclubs and bars.

7. Service stations.

8. Governmental uses.

9. Auto and truck sales.

10. Theaters.

11. Child day care centers.

12. Self storage facilities.

13. Auto repair and services.

14. Auto body shops.

C. Uses incidental and accessory to the principal uses, such as:

1. Off-street parking, garages and off-street loading.

2. Fences and walls.

3. Signs.

4. Auto service ancillary to retail car dealership.

5. Outdoor garden centers.

6. T.V., radio, and/or stereo systems accessory to bars and restaurants.

7. Live entertainment accessory to category one restaurants only, subject to issuance of a "restaurant entertainment license" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance #12-001).

D. Conditional Uses.

1. Car washes, all categories, subject to the following conditions:

a. A minimum of 12 on-site holding or queuing spaces with minimum space dimensions 18 feet by nine feet must be provided as an approach lane or lanes to the car wash.

b. A minimum of four holding or queuing spaces (min. 25 feet by ten feet) after the car passes through the complete wash cycle.

c. Holding and/or queuing spaces on multiple use sites shall be designed so as not to conflict with the ingress or egress of any pumping island that may be located on the same site, or with ingress/egress and/or parking aisles required for circulation pertaining to any use on the site.

E. Bulk Standards Highway Commercial District.

1. Minimum lot size: 10,000 square feet.

2. Minimum perimeter setback: 15 feet for lots 10,000 square feet or more. Otherwise, none.

3. Maximum building height: Six stories.

4. Maximum building coverage: 50 percent.

5. Maximum lot coverage: 90 percent.

F. Parking Standards for Highway Commercial District.

1. Surface parking areas or aisles should be distributed around the building, and at least 10% of surface parking areas shall be landscaped along the front property line or between parking aisles.

2. Lots with 30 or more parking spaces shall be designed with a reasonable amount of pedestrian refuge areas and paths between parking stalls or aisles to better facilitate pedestrian movement and safety.

3. Auto sales: One space per 100 square feet of showroom floor area plus one space for each 1,000 square feet of gross floor area other than showroom area.

4. Service stations: Three spaces per lift, wheel alignment pit, bay, or similar work area; spaces shall be separate from the driveway and apron areas which give access to pumps, service areas and areas for display of merchandise. Where no repair services are provided a minimum of three spaces shall be required. Where retail sales are provided a minimum of one space per 150 square feet of retail space shall be provided.

5. Car washes: 15 on site holding or queuing spaces as an approach lane to the car wash, and a minimum of three queuing spaces after the car passes through the wash cycle. All spaces shall be on site. Where a carwash is associated with a service station, the holding or queuing lane shall not conflict with the ingress or egress of any pump island.

6. Financial institutions: One space per 500 square feet of gross floor area.

7. Restaurants: One space per 500 square feet of gross floor area.

8. Offices: One space per 500 square feet of gross floor area.

9. Retail sales of goods and services: One space per 500 square feet of gross floor area.

G. Cross Easements and Access. In order to allow improved access to parking and loading functions, appropriate legal instruments as well as site plans shall be presented to the Planning Board to show that cross easements are in place and are safe and secure. Any alteration of a site plan which has received approval from the Jersey City Planning Board by the New Jersey Department of Transportation will require the developer to apply for amended site plan approval.

§ 345-48. C/A Commercial/Automotive District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose.

1. The purpose of this district is to upgrade the appearance and function of Communipaw Avenue through screening and buffering, sensitive site planning, selective acquisition of properties and the relocation of parking.

2. The Commercial Automotive district is along both sides of Communipaw Avenue, extending easterly from Route 440 to Bergen Avenue.

B. Permitted principal uses are as follows:

1. Retail sales of goods and services.
2. Auto sales.
3. Auto repair and services.
4. Service stations.
5. Auto body shops.
6. Financial institutions.
7. Restaurants, all categories.

8. Offices.

C. Uses incidental and accessory to the principal use, such as:

1. Offices.

2. Fences and walls.

3. Signs.

4. Parking.

5. Car washes, all categories.

D. Bulk Standards for Commercial/Automotive District.

1. Minimum lot size: 10,000 square feet.

2. Minimum lot width: 100 feet.

3. Minimum lot depth: 100 feet.

4. Maximum front yard setback: Five feet; setback may exceed five feet if the entire yard adjacent to the right-of-way is fully landscaped and provides a pedestrian pathway to the building entrance. Additionally, garage bays with overhead doors must be set back 20 feet to allow for queuing. Garage bays shall be limited to 50 percent of the front building façade width.

5. Side yard: Zero feet. On corner lots, setback may exceed zero feet if the entire yard adjacent to the right-of-way is fully landscaped and provides a pedestrian pathway to the building entrance.

6. Minimum rear yard: Five feet.

7. Maximum building height: 30 feet.

8. Maximum building and lot coverage: 90 percent.

9. A six-foot high decorative brick wall is required along the rear lot line if the parcel abuts residential uses or zones.

E. Minimum Parking Standards for Commercial/Automotive District.

1. No on-site parking is required for additions on structures for adaptive reuse of existing buildings.

2. Auto sales: One space per 100 square feet of showroom floor area plus one space for each 1,000 square feet of gross floor area other than showroom area.

3. Service stations: Three spaces per lift, wheel alignment pit, bay, or similar work area; spaces shall be separate from the driveway and apron areas which give access to pumps, service areas and areas

for display of merchandise. Where no repair services are provided a minimum of three spaces shall be required. Where retail sales are provided a minimum of one space per 150 square feet of retail space shall be provided.

4. Car washes: 15 on site holding or queuing spaces as an approach lane to the car wash, and a minimum of three queuing spaces after the car passes through the wash cycle. All spaces shall be on site. Where a carwash is associated with a service station, the holding or queuing lane shall not conflict with the ingress or egress of any pump island.

5. Financial institutions: One space per 500 square feet of gross floor area.

6. Restaurants: One space per 500 square feet of gross floor area.

7. Offices: One space per 500 square feet of gross floor area.

8. Retail sales of goods and services: One space per 500 square feet of gross floor area, exempting the first 5,000 square feet.

§ 345-49. I Industrial District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose. The purpose of this district is to acknowledge areas where there is an existing concentration of industrial activity or where future industrial activity is planned. This district accommodates a broad range of industrial uses in appropriate locations with enhanced provisions for screening and buffering to protect nearby development.

B. Permitted principal uses are as follows:

1. Assembly and packaging.

2. Manufacturing.

3. Warehousing, wholesaling and distribution.

4. Printing.

5. Cyber hotels.

6. Offices.

7. Service stations.

8. Car washes, all categories.

9. Industrial parks.

10. Self storage facilities.

11. Auto repair and services.

12. Auto body shops.

C. Uses incidental and accessory to the principal use, such as:

1. Off-street parking and loading.
2. Fences and walls.
3. Signs.
4. Guardhouses and employee cafeterias.
5. On site service and maintenance operations for equipment and operations conducted on site.
6. Garages for parking and storage of vehicles.

D. Bulk Standards for Industrial District.

1. Minimum lot size: 10,000 square feet.
2. Minimum lot width: 100 feet.
3. Minimum lot depth: 100 feet.
4. Minimum front yard setback: 15 feet.
5. Minimum side yard: Ten feet.
6. Minimum rear yard: 15 feet.
7. Maximum building height: 50 feet.
8. Maximum building coverage: 60 percent.
9. Maximum lot coverage: 90 percent.
10. Minimum buffer to a residential zone or use: 20 feet.
11. A six-foot high decorative brick wall is required along the rear lot line if the parcel abuts residential uses or zones.

E. Parking Standards for Industrial District.

1. Manufacturing, assembly, printing, packaging: One space per 3,000 square feet of gross floor area.
2. Warehousing, wholesaling and distribution: One space per 5,000 square feet of gross floor area.
3. Offices: One space per 600 square feet of gross floor area.

4. Car washes: See CA parking standards.

5. Service stations: See CA parking standards.

6. Cyber hotels: One space per 10,000 of gross floor area.

7. Self storage facilities: One space per 5,000 square feet of gross floor area.

8. Auto repair and services/Auto body shops: See C/A district parking standards

§ 345-50. PI Port Industrial District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose.

1. The purpose of the district is to enhance and accommodate the City's working waterfront and to provide an area for current port activity and future port development in an appropriate location served by extensive transportation facilities with adequate buffering to protect nearby residential neighborhoods.

2. Jersey City's port industrial district is located in Greenville in the southeastern section of the City.

B. Permitted principal uses are as follows:

1. Offices.

2. Warehousing and distribution.

3. Manufacturing, processing, research and assembly operations.

4. Terminal facilities for rail, truck and waterborne transportation, including storage and containerization facilities.

5. Marinas and the construction and repair of boats.

6. Service stations.

7. Surface parking.

C. Uses incidental and accessory to the principal use, such as:

1. Fences and walls.

2. Signs.

3. Garages for the parking and storage of vehicles.

4. Boat sales and rentals, repair facilities and sales of marine supplies associated with marinas.

D. Bulk Standards for Port Industrial District.

1. Minimum lot area: 80,000 square feet.

2. Minimum lot width: 200 feet.

3. Minimum landscaped buffer adjacent to residential uses and zones: 50 feet.

4. Maximum lot coverage: 90 percent.

5. Minimum perimeter setback: 60 feet.

6. Maximum height of principal and accessory buildings: 50 feet.

E. Parking Standards for Port Industrial District.

1. Terminal facilities: One space per 5,000 square feet of gross floor area.

2. Marinas and construction and repair of boats: 0.33 space per berth plus 600 square feet of gross floor area for other service uses.

3. Other uses. See Industrial zone parking standards.

§ 345-51. U University District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose. The purpose of this district is to accommodate existing colleges and universities while preserving neighborhood stability and residential quality of life, especially in areas bordering institutions of higher education.

B. Permitted principal uses are as follows:

1. Colleges and universities.

2. Parks and playgrounds.

3. Dormitories, fraternity and sorority houses.

4. Meeting halls.

C. Uses incidental and accessory to the principal use, such as:

1. Parking structures and lots.

2. Fences and walls.

3. Signs.

D. Bulk and Parking Standards for University District.

1. Maximum height: Four stories and 40 feet; provided, however, that where necessary because of topographical conditions the height may be increased establish a uniform height with existing buildings on the same street.

2. Maximum building coverage: 60 percent.

3. Maximum lot coverage: 80 percent.

4. Maximum height of parking garage: Four stories.

5. Minimum buffer adjacent to residential uses and zones: Ten feet.

6. Parking: Ten spaces for each classroom, plus one space per ten seats for each auditorium, gymnasium and lecture hall.

§ 345-52. M Medical District. [Added 10-13-2022 by Ord. No. 22-084; amended 12-10-2025 by Ord. No. 25-124]

A. Purpose.

1. The purpose of this district is to recognize the existing medical facilities in the city and other medical related uses traditionally associated with these facilities.

2. The medical district encompasses Christ Hospital in the Heights and Greenville Hospital in Greenville.

B. Permitted principal uses are as follows:

1. Hospitals.

2. Medical offices.

3. Ambulatory care facilities.

4. Offices.

5. Diagnostic centers.

6. Rehabilitation centers.

7. Reserved.

8. Nursing homes.

9. Reserved.

10. Public utilities, except that natural gas transmission lines shall be prohibited.

11. Schools, limited to the Medical District in Greenville.

C. Uses incidental and accessory to the principal use, such as:

1. Parking garages and off-street parking.

2. Meeting rooms, conference facilities, gymnasiums and exercise rooms and pools.

3. Staff housing.

4. Medical training including nursing and therapists.

5. Fences and walls.

D. Bulk and Parking Standards for Medical District.

1. Maximum height:

a. Maximum building height:

i. Four stories, 45 feet on lots 50 feet wide or less.

ii. Five stories, 55 feet on lots greater than 50 feet wide, provided that the fifth story is setback ten feet from the front of the primary street frontage.

iii. For corner lots, the shorter lot width shall control the maximum permitted height. For example, a 50- by 100-foot lot is only permitted to be four stories, 45 feet in height because the shorter lot width is 50 feet.

b. Rooftop decks must be setback a minimum of five feet from the side property line and a minimum ten feet setback from the front and rear of the roof. Rooftop deck shall not cover more than 30 percent of the roof inclusive of the setback requirements herein. Where an inaccessible green roof is installed for stormwater detention, a rooftop deck is permitted an increase in coverage but shall not cover more that 50 percent of the roof, inclusive of the setback requirements herein, and provided that the remaining areas of the roof is a green roof.

c. Rooftop appurtenances shall be no larger than 20 percent of the roof surface area.

2. Maximum building and lot coverage: 80 percent.

3. Maximum height of parking garage: Four stories.

4. Minimum buffer adjacent to residential uses and zones: Ten feet.

5. Parking standards: One space for 5,000 square feet of gross floor area.

§ 345-53. G Government District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose. The purpose of this district is to recognize the presence of government uses in neighborhoods throughout the City and identify existing and planned government facilities of City-wide significance.

B. Permitted principal uses are as follows:

1. Offices.

2. Governmental uses.

C. Uses incidental and accessory to the principal use, such as:

1. Fences and walls.

2. Parking.

3. Signs.

D. Bulk and Parking Standards for Government Uses. See R-1 Bulk and Parking Standards.

§ 345-54. P/OS Parks/Open Space District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose. The purpose of the parks and open space district is to acknowledge the City's existing inventory of parks and open space.

B. Permitted principal uses are as follows:

1. Parks and playgrounds.

2. Public utilities, except that natural gas transmission lines shall be prohibited.

3. Kiosks.

4. Bathrooms.

C. Uses incidental and accessory to the principal use, such as:

1. Off-street parking.

2. Recreation, entertainment and educational programs.

3. Signs.

4. Dog runs.

D. Bulk and Parking Standards for Parks/Open Space District. None.

§ 345-55. WPD Waterfront Planned Development. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose. The purpose of the Waterfront Planned Development District is to identify areas where the redevelopment of water oriented commercial, residential and recreational uses has occurred or has the potential to occur including high cube warehousing uses in designated areas. The intent of the District is to accurately reflect existing conditions, endorse ongoing redevelopment activity, accommodate a broad range of new uses, promote the creative reuse of large tracts of land and to continue to provide public access to an enhanced waterfront.

B. Permitted principal uses are as follows:

1. Marinas.
2. Offices.
3. Townhouses.
4. Multi-family dwellings.
5. Retail sales of goods and services.
6. Theaters.
7. Restaurants, all categories.
8. High-cube warehousing and distribution subject to the following requirements:

    a. Location. High cube warehousing shall only be permitted north of Duncan Avenue with frontage on State Highway Route 1&9 truck route.

    b. Minimum development area: 30 acres.

c. Site/building design requirements: In addition to the zoning and non-residential design standards contained herein, the following additional design standards shall apply:

(1) Minimum building size: 300,000 square feet gross floor area.

(2) Minimum internal building height: 30 feet clear height.

(3) Minimum building column spacing/loading dock design: 50 feet wide on-center column bay spacing module to accommodate four truck loading berths per column bay module.

(4) Minimum staging bay design: 60 feet measured from dock door to first interior column line.

(5) Fire suppression system: An "Early Safety Fast Response" (ESFR) internal fire sprinkler system or a comparable system where required by the large size of a building's design shall be provided.

(6) Maximum automobile parking: One-half space per 1,000 square feet of gross floor area.

(7) Maximum trailer storage parking: Two spaces per one loading dock doors.

(8) Loading dock location: No areas specifically intended for loading or trailer storage shall be located between the front building line and a public street line.

(9) Building design: Architectural design features shall reduce the visual impact of large warehouse buildings when viewed from a public street.

C. Uses incidental and accessory to the principal use, such as:

1. Fences and walls.

2. Signs.

3. Off-street parking and loading.

4. T.V., radio, and/or stereo systems accessory to bars and restaurants.

5. Live entertainment accessory to category one restaurants only, subject to issuance of a "restaurant entertainment license" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance #12-001).

D. Bulk and Parking Standards for Waterfront Planned Development District.

1. Marinas: See PI Bulk and Parking Standards.

2. Offices: See HC Bulk and Parking Standards.

3. Townhouses: See R-2 Bulk and Parking Standards.

4. Multi-family dwellings: See R-3 Bulk and Parking Standards.

5. Retail sales of goods and services: See HC Bulk and Parking Standards.

6. Theaters: See HC Bulk and Parking Standards.

7. Restaurants, All Categories: See HC Bulk and Parking Standards.

8. High-cube warehousing: See I-Industrial District Bulk and Parking Standards.

E. Conditional Uses.

1. Animal shelter, subject to the following standards and conditions:

a. Maximum two stories in height.

b. Minimum lot size shall be one acre.

c. No outdoor kennels to be located within 20 feet of the property lines, and only if screened by a double, staggered planting of evergreen material which shall reach a minimum of five feet height after two growing seasons.

d. A minimum of five percent of the surface area of each wall shall be comprised of brick, tile or other decorative masonry element or treatment.

e. Any accessory building shall be of the same material and style as the principal building.

f. Signs shall be as regulated for retail uses in this district.

g. All areas to which animals have access shall be securely fenced.

h. A dog run shall be provided, which shall be fenced and screened.

i. Hose bibs shall be provided on at least two exterior walls.

§ 345-56. C Cemetery District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose. The City has established the cemetery district to recognize the presence of large and smaller historic cemeteries and the influence they have upon land use in the areas where they are located.

B. Permitted principal uses are as follows:

1. Cemeteries.

C. Uses incidental and accessory to the principal use, such as:

1. Mausoleums.

2. Signs.

3. Fences and walls.

D. Bulk Standards for Cemetery Uses.

1. Maximum height for mausoleums: 30 feet.

2. Minimum setback of mausoleums from property line: 30 feet.

§ 345-57. DT Destination Tourism District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose. The purpose of this district is to further develop this area as a national tourist attraction.

B. Permitted principal uses are as follows:

1. Convention centers.

2. Conference centers.

3. Hotels.

4. Parks and playgrounds.

5. Retail sales of goods and services.

6. Restaurants, all categories.

§ 345-58. H Historic District. [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. Purpose. The purpose of this district is to recognize the special significance of these neighborhoods because of their varied and well-preserved historic character. They reflect Jersey City's past and its unique geographic location. Historic districts include: Hamilton Park, Harsimus Cove, Paulus Hook and Van Vorst Park.

B. Permitted principal uses in all historic districts are as follows (Paulus Hook Historic District, north of York Street only, shall refer to the NC-3 district for principal permitted uses and bulk standards):

1. Townhouses.

2. Schools.

3. Governmental uses.

4. Houses of worship.

5. Mortuaries.

6. Parks and playgrounds.

7. Home occupations.

C. Accessory uses permitted in all historic districts.

1. Private garages, for projects of ten dwelling units or more.

2. Screened off-street parking, for projects of ten dwelling units or more.

3. Live entertainment accessory to Category One restaurants only, where permitted as conditional uses or where NC-3 use standards apply, subject to issuance of a "Restaurant Entertainment License" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance #12-001). **[Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]**

A. Purpose. The purpose of this district is to recognize the special significance of these neighborhoods because of their varied and well-preserved historic character. They reflect Jersey City's past and its unique geographic location. Historic districts include: Hamilton Park, Harsimus Cove, Paulus Hook and Van Vorst Park.

B. Permitted principal uses in all historic districts are as follows (Paulus Hook Historic District, north of York Street only, shall refer to the NC-3 district for principal permitted uses and bulk standards):

1. Townhouses.

2. Schools.

3. Governmental uses.

4. Houses of worship.

5. Mortuaries.

6. Parks and playgrounds.

7. Home occupations.

C. Accessory uses permitted in all historic districts.

1. Private garages, for projects of ten dwelling units or more.

2. Screened off-street parking, for projects of ten dwelling units or more.

3. Live entertainment accessory to Category One restaurants only, where permitted as conditional uses or where NC-3 use standards apply, subject to issuance of a "Restaurant Entertainment License" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance #12-001).

D. Conditional Uses Permitted in Harsimus Cove Historic District.

1. Retail sales, retail services and offices, limited to the ground floors and parlor floors of attached dwelling units having direct pedestrian access from one of the following streets or parts thereof: Erie Street between Bay and Fifth Streets, limited to those properties where a commercial use is already in place.

2. Bed and breakfasts.

E. Conditional Uses Permitted in Paulus Hook Historic District.

1. Retail sales, retail services and offices, including medical offices, limited to the ground floors and parlor floors of attached dwelling units having direct pedestrian access from one of the following streets or parts thereof: west side of Washington Street between Morris and York Streets; east side of Washington Street between Sussex and Morris Street; subject to the following conditions:

   a. No business dealing in the sale of fresh food products (including produce, meats, processed or prepared foods) of any kind shall be permitted to occupy new retail spaces.

   b. New or expanded uses shall meet the bulk and yard requirements for townhouses. (Conditional use application to the Planning Board shall be required for any new retail or office use or the expansion of an existing use).

2. Restaurants, category one and two, limited to the ground floor of buildings located on corner lots where a ground floor commercial use is already in place at the time of adoption of this ordinance and having direct pedestrian access from Washington Street between Sussex and Morris Streets. New or expanded restaurants shall meet the bulk and yard requirements for townhouses. (Conditional use application to the Planning Board shall be required for a new restaurant or for the expansion of an existing restaurant).

3. Sidewalk cafes and front yard seating areas accessory only to those restaurants and delicatessens permitted under subsections (B), (E)(1) and (E)(2) of this section, subject to the following conditions:

   a. A Certificate of Appropriateness shall be obtained from the Historic Preservation Commission for the design (including style of furniture, partitions and overhead covering) of any sidewalk café and/or front yard seating area. This approval shall be subject to enforcement by the Division of Zoning and/or the Division of Commerce.

b. Any front yard seating area (i.e., within the property line) shall meet the following standards:

i. The front yard seating area shall be partitioned by a three-sided, movable structure separating the seating area from the public right-of-way, and which is no less than 30 inches in height and no more than 36 inches in height, providing one opening for entrance and exit which is no less than 42 inches in width and no more than 60 inches in width, and whose boundaries allow patrons and pedestrians to clearly ascertain the entrance and exit to the front yard seating area.

ii. The front yard seating area shall have an overhead covering, consisting of either an individual umbrella over each table or a retractable awning covering all tables and chairs.

iii. The front yard seating area partition and overhead covering shall not contain advertising.

iv. The front yard seating area partition, overhead covering, and all tables, chairs, and other café furniture shall be removed from the front yard at the close of business each day.

v. Food service shall be available during all times in which the front yard seating area is open for business.

vi. Alcoholic beverages, when permitted under any other ordinance, shall not be served or consumed in any public area which is outside the partitioned seating area of the front yard.

vii. All areas comprising the front yard seating area, including tables and chairs, shall remain clean and orderly at all times.

viii. No persons other than those consuming food prepared on the premises or personnel pertaining to the establishment preparing the food shall be within the front yard seating area except for those persons passing through the seating area to enter or exit the establishment.

ix. Front yard seating shall be permitted to operate from April 1 through October 31, inclusive, and between the hours of 8:00 a.m. and 10:00 p.m. Sunday through Wednesday; between the hours of 8:00 a.m. and 11:00 p.m. Thursday; and 8:00 a.m. and midnight Friday and Saturday; except that no alcoholic beverages, when permitted under any other ordinance, shall be served or consumed in a front yard seating area before noon on any day.

c. A sidewalk café license shall be obtained from the Division of Commerce for any seating area which extends beyond the property line, and all standards of Article XII (Sidewalk Cafes), Sections 296-80(B), 296-81(B), 296-82, 296-83, 296-85 of the Jersey City Municipal Code, shall be met. These standards shall be enforced by the Division of Commerce.

d. Sidewalk cafes located at corner properties shall be permitted to occupy the entire primary lot frontage to the extent feasible, but shall only be permitted to occupy the first 50 percent of the length of the secondary lot frontage, as measured from the corner of the property line along the primary frontage.

e. No sidewalk cafes shall be permitted within the public right-of-way fronting any property which is located within 100 feet of a school or house of worship as measured from lot line to lot line.

4. Bed and breakfasts.

F. Conditional Uses Permitted in Van Vorst Park Historic District:

1. Retail sales, retail services, and offices, limited to the ground floors and parlor floors of attached dwelling units having direct pedestrian access from one of the following streets or parts thereof: Grove Street between York Street and the northern boundary of the historic district; number 24 through number 28 Mercer Street, number 239 Luis Munoz Marin Boulevard to the south side of Montgomery Street; Jersey Avenue south of York Street to the southern boundary of the historic district; Jersey Avenue north of Mercer Street to the northern boundary of the historic district. New commercial uses cannot be introduced into existing exclusively residential buildings.

2. Restaurants, Category One and Two, limited to the ground floor of properties from 297 to 311 Grove Street along the west side of Grove Street (in addition to those restaurants permitted from 273 to 295 Grove Street under either the Majestic Theater Redevelopment Plan or the Grove Mercer Redevelopment Plan), from 290 to 304 Grove Street along the east side of Grove Street, and number 24 through number 28 Mercer Street, where a commercial use is already in place at the time of adoption of this ordinance and having direct pedestrian access from Grove Street or Mercer Street.

3. Bed and breakfasts.

4. Sidewalk cafes accessory to restaurants permitted under subsection (F)(2) of this section, subject to the following conditions:

a. A certificate of appropriateness shall be obtained from the Historic Preservation Commission for the design (including style of furniture, partitions and overhead covering) of any sidewalk café. This approval shall be subject to enforcement by the Division of Zoning.

b. A sidewalk café license shall be obtained from the Division of Commerce for any seating area which extends beyond the property line, and all standards of Article XII (Sidewalk Cafes), shall be met. These standards shall be enforced by the Division of Commerce.

G. Bulk and Parking Standards for Townhouses.

1. Minimum lot size: 1,800 square feet.

2. Minimum lot width: 18 feet.

3. Minimum lot depth: 100 feet.

4. Minimum front yard setback: Must meet adjacent setback on either side.

5. Maximum front yard setback: Ten feet.

6. Minimum rear yard setback: 30 feet.

7. Side yard setbacks: None.

8. Maximum building height: Residential/mixed use: Four stories and 40 feet.

9. Maximum building coverage: 60 percent.

10. Maximum lot coverage: 80 percent.

11. Maximum dwelling units per acre: 75.

12. Rehabilitation, infill or new residential construction (including mixed-use buildings), projects of ten dwelling units or more shall provide, on-site, a minimum of one-half and a maximum of one parking space per dwelling unit.

13. On-site parking for projects of less than ten dwelling units is prohibited.

H. Bulk and Parking Standards for Schools.

1. Minimum lot size: 10,000 square feet.

2. Minimum lot width: 100 feet.

3. Minimum lot depth: 100 feet.

4. Minimum front yard setback: Must meet adjacent setback on either side.

5. Maximum front yard setback: 20 feet.

6. Minimum rear yard setback: 42 feet.

7. Minimum side yard setbacks: Ten feet.

8. Maximum building height: Four stories and 40 feet.

9. Maximum building coverage: 75 percent.

10. Maximum lot coverage: 80 percent.

11. Parking: One space per four teachers and/or teacher's aides.

I. Bulk and Parking Standards for Governmental Uses.

1. Minimum lot size: 10,000 square feet.

2. Minimum lot width: 100 feet.

3. Minimum lot depth: 100 feet.

4. Minimum front yard setback: Must meet adjacent setback on either side.
5. Maximum front yard setback: 20 feet.
6. Minimum rear yard setback: 36 feet.
7. Minimum side yard setbacks: Ten feet.
8. Maximum building height: Five stories and 50 feet.
9. Maximum building coverage: 75 percent.
10. Maximum lot coverage: 80 percent.
11. Parking: One-half spaces per 1,000 square feet.

J. Bulk and Parking Standards for Houses of Worship Districts.

1. Minimum lot size: 5,000 square feet.
2. Minimum lot width: 50 feet.
3. Minimum lot depth: Ten feet.
4. Minimum front yard setback: Must meet adjacent setback on either side.
5. Maximum front yard setback: 20 feet.
6. Minimum rear yard setback: 18 feet.
7. Side yard setbacks: Ten feet.
8. Maximum building height: Four stories/40 feet.
9. Maximum building coverage: 50 percent.
10. Maximum lot coverage: 80 percent.
11. Parking: One space per each ten seats, excluding the first 100 seats. One seats hall be considered 24 inches in calculating the capacity of pews or benches. Houses of worship without seats or pews shall provide parking at a rate of one stall for each 60 square feet of prayer space excluding the first 6,000 square feet.

K. Bulk and Parking Standards for Mortuaries.

1. Minimum lot size: 10,000 square feet.
2. Minimum lot width: 100 feet.
3. Minimum lot depth: 100 feet.

4. Minimum front yard setbacks: Must meet adjacent setback on either side.

5. Maximum front yard setback: 20 feet.

6. Minimum rear yard setback: 18 feet.

7. Minimum side yard setbacks: Ten feet.

8. Maximum building height: Four stories and 40 feet.

9. Maximum building coverage: 50 percent.

10. Maximum lot coverage: 80 percent.

11. Parking: One space per employee and one space per every five square feet of floor area exclusive of administrative and preparation areas.

§ 345-59. Overlay Districts. [Added 10-13-2022 by Ord. No. 22-084]

§ 345-59.1. PPOD Palisades Preservation Overlay District. [Added 10-13-2022 by Ord. No. 22-084]

A. Establishment of District.

1. There is hereby established within the City of Jersey City an area which shall be known as the Palisades Preservation Overlay District (PPOD), in which land development and construction shall be subject to the special regulations contained in this Section.

2. The PPOD shall be designated on the Zoning Map of the City of Jersey City, and shall run along the Palisades from Montgomery Street north to the Union City boundary line.

3. The PPOD shall prevail upon all land regulated under this Chapter, as well as those properties within a duly adopted redevelopment area. Redevelopment plans shall be amended, or initially written, as the case may be, to refer to or include the requirements of this Subsection.

4. All uses permitted in the zone or redevelopment plan in which the property is located shall be permitted in the PPOD, provided, however, that the setback and procedural regulations and performance standards of this Article shall apply to any such uses, whether permitted as of right, by conditional use or by use variance.

B. Procedural Regulations. The following information shall be submitted in addition to any information required to be submitted in the site plan checklist:

1. A topographic map of the site at two-foot contour intervals (drawn in a lighter line weight) where the slope is less than ten percent, and ten-foot contour intervals (drawn in a heavier line weight) where the slope exceeds ten percent.

2. A land form analysis which shows the location and extent of the site's major landforms including the top of the cliff, the cliff face, the side slope and the base of the slope. Any exposed cliff face shall be shown. The area in each land form category shall be calculated and shown on the land form analysis.

3. A physical description of the site which shall include a technical summary of site characteristics such as soils, load bearing capacity, erosion potential, depth to bedrock, etc.

4. Site grading and development data which shall include the type and location of development activity, procedures for grading, excavation, construction access and stockpiling, extent and phasing of construction and cut and fill operations.

C. Performance Standards.

1. The minimum building setback line from the edge of the cliff face at the top of the cliff shall be 30 feet. The minimum building setback line from the edge of the cliff face at the base of the cliff shall be 65 feet.

2. For purposes of preservation of the Palisades cliff face, no portion of any building or structure shall be constructed on that portion of a lot which has a grade, prior to such construction, in excess of 30 percent, or on any portion of the lot, which lies within ten feet of the portion having such grade.

3. No portion of a building built below the Palisades within the PPOD and within 450 feet of the cliff face, including all bulkheads, parapets and penthouses, shall extend into the area occupied by the top 25 percent of the distance between the top of cliff and the lowest portion of existing grade of a development site.

§ 345-59.2. A - Arts Overlay District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose. The purpose of the overlay zone is:

1. To recognize the extensive location and relocation of artists' homes and/or studios into a portion of the "Heights" section formerly designated by the Municipal Council as the Riverview Arts District in 1984 and subsequent land use approvals pertaining to arts-related uses; and

2. To encourage the further development of this section of the city as an additional viable arts enclave.

B. Arts District Overlay Zoning Regulations:

1. Permitted principal uses:

a. Work/live artist studio;

b. Work/live unit;

c. Artist studio workspace.

2. Existing bulk and parking regulations as regulated in underlying zoning districts shall remain unchanged and shall apply to any of the above new uses within the overlay zone.

3. See definition for each of the above uses for additional standards.

§ 345-59.3. F Overlay - Flood Prone District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose.

1. The purpose of this subsection is to help protect development in flood prone zones, as defined as VE and AE FEMA zones, from future flood damage and to encourage resilient design in vulnerable zones.

2. The Flood Overlay zone (F Overlay) applies to all properties citywide which are located wholly or partially within a Federal Emergency Management Agency (FEMA) designated VE or AE zone, as depicted on official FEMA flood insurance rate maps (FIRMs) or preliminary flood insurance rate maps (PFIRMs). The F Overlay boundary is established by whichever FEMA map incorporates the latest flood zone information. A copy of the F Overlay map is available upon request from Division of City Planning staff or a digital version is accessible through the City's official website.

3. The F Overlay provides additional green infrastructure and resilient design requirements for properties in flood prone zones. These requirements are calculated as a green area ratio (GAR) as explained in Section 345-66.1.

4. The F Overlay zone shall prevail upon all land regulated under this Chapter, as well as those properties within a duly adopted redevelopment area. Redevelopment plans shall be amended, or initially written, as the case may be, to refer to or include the requirements of this subsection.

B. Permitted uses are as follows:

1. The F zone is an overlay zone only. Any permitted, accessory, and conditional uses are as detailed in the applicable underlying zone.

C. Bulk Standards.

1. The Flood Overlay zone is an overlay zone only. Any bulk requirements shall be as detailed in the applicable underlying zone.

2. GAR requirements per Section 345-66.1 apply to major and minor site plan applications.

3. Relief from these requirements shall require a "C" variance or deviation.

D. Parking Standards for One- and Two-Family Dwellings.

1. The F zone is an overlay zone only. Any parking requirements as detailed in the applicable underlying zone.

§ 345-59.4. MWORKS Marion Works Office/Residential Overlay District. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose.

1. The Marion Works Office/Residential District (MWORD) shall apply to the area depicted on the revised Zoning Map of the City of Jersey City. The area encompassed by the MWORD is an older

Industrial District located at the periphery of the Journal Square community. The purpose of this district is to encourage the redevelopment, rehabilitation and conversion of older industrial structures in the area to higher intensity residential and mixed-use buildings, and the construction of new residential and mixed-use buildings on vacant and underutilized land, while incorporating much needed public open space for district residents and the surrounding community. Ancillary commercial facilities are also encouraged to serve the surrounding community.

2. The MWORD shall apply as an overlay district, which means that it applies as alternative zoning regulations, when and if chosen by the property owner. Property owners within the MWORD may also continue to maintain uses of the property that were permitted at the time of the adoption of this amendment. However, it is recognized that the size and configuration of the existing blocks and lots are the result of the industrial and railroad use and development of this area. Therefore, if a property owner/developer chooses to utilize the Office/Residential Overlay Zoning, then the property owner/developer shall be required to provide new and/or re-opened streets rights of way. These may include the re-opening of previously vacated streets, such as Dey Street and/or the creation of new public streets and rights-of-way to accommodate the new residential and commercial re-use of property within the MWORD. It is specifically anticipated that new street connections will be necessary from the western end of Dey Street to both Saint Paul's Avenue and Newark Avenue. The location of new streets and rights-of-way should be located so as not to destroy existing or modified structures within the district. The intent of requiring these new and/or re-opened streets is to extend the street pattern into the district in order to better integrate the district into the surrounding street grid and urban fabric of the community, and to better disperse traffic from new developments.

3. Because of the nature and scale of the existing industrial buildings within the MWORD, the conversion from industrial to residential and mixed-use land uses may occur in a phased fashion, wherein a portion of a building and/or property may continue to be used for uses permitted at the time of adoption of this amendment, as other portions of the building and/or property are rehabilitated and used for residential and/or mixed-use purposes; provided that all building, health, safety, fire and other applicable codes are complied with.

B. Permitted principal uses are as follows:

1. Residential dwelling units within existing structures.

2. Work/live units.

3. High-rise apartments.

4. Mid-rise apartments.

5. Townhouses.

6. Offices, provided that not more than ten percent of the floor area of any development project may be dedicated to office uses.

7. Financial institutions and brokerage houses.

8. Retail sales of goods and services, including health clubs.
9. Restaurants, category one and two.
10. Theaters.
11. Hotels.
12. Colleges and universities.
13. Governmental uses, including public parks.
14. Child care centers.
15. Any combination of the above.

C. Uses incidental and accessory to the principal use, such as:

1. Off-street parking garages and lots and off-street loading.
2. Recreation facilities and areas, including pools, active recreation uses, gymnasiums, exercise rooms, etc.
3. Meeting rooms, banquet facilities, conference centers.
4. Fences and walls.
5. Home occupations.
6. Signs.

D. Bulk Standards: (Note: Townhouses shall follow R-2 Standards.)

1. Minimum lot size: 10,000 square feet.
2. Minimum lot width: 100 feet.
3. Minimum lot depth: 100 feet.
4. Minimum front yard: None.
5. Maximum front yard: Ten feet.
6. Minimum rear yard:
   a. Buildings up to 25 feet tall: 10 feet.
   b. Buildings up to 50 feet tall: 20 feet.
   c. Buildings over 50 feet tall: 30 feet.

7. Minimum side yard: None.

8. Minimum building height: Two stories or 20 feet.

9. Maximum building coverage:

    a. Not including enclosed parking: 65 percent.

    b. Inclusive of enclosed parking: 85 percent.

10. Maximum lot coverage: 90 percent.

11. Maximum building height: It is recognized that the MWORD district is located on a slope wherein the highest elevation of the district is located on the eastern side of the district and the lowest elevation is located to the western side of the district. It is also recognized that taller buildings and the Pulaski Skyway are located on the north of the district and that there is an existing low-rise residential community located just to the east of the district between Dey Street and Van Winkle Avenue. Therefore, in order to accommodate the higher intensity residential and mixed-use development envisioned for the MWORD district, while at the same time respecting the existing community to the east and the opportunities afforded by the existing topography of the district, the following height regulations shall apply.

    a. Sub-district A: Four stories. The first residential floor shall be at least one foot taller than the floors above, and no floor shall be less than eight feet tall as measured from floor to ceiling.

    b. Sub-district B: Existing building height at the time of adoption of the MWORD overlay zoning shall be considered conforming. In addition, the height of the eastern most building within the former American Can Company complex and the existing industrial buildings located on Newark Avenue, may be increased by one story, but not more than 15 feet, provided that the additional story is setback a minimum of 15 feet from the exterior walls of the building and are designed in conformance with paragraph G of this section "Building Design Standards for Rehabilitation of Existing Industrial Structures". New buildings shall not exceed 110 feet.

12. Maximum density and floor area ratio: Similar to height, maximum density and floor area ratio shall be regulated within each sub-district as follows:

    a. Sub-district A: Max. density - 80 units per acre

    b. Sub-district B:

        Max. density - The number of units permitted within any existing building shall be determined by dividing the gross floor area of that building, which shall include any permitted additional floor area or mezzanines, by 1,200 square feet. The maximum permitted density within newly constructed buildings shall be 125 units per acre.

        Max. floor area ratio - N/A for existing buildings, rather, the permitted floor area shall be the existing floor area within any existing building and any additional floor area permitted

pursuant to the regulations found in the MWORD. The maximum permitted floor area ratio for newly constructed buildings shall be 4.5. Areas dedicated to parking, loading areas and mechanical rooms shall be excluded from the calculation of gross floor area.

c. Density bonus for additional open space: A residential density bonus is available for new residential construction projects only, not renovation projects. A project shall qualify for the density bonus when open space is provided in excess of the minimum ten percent requirement and when these new open spaces are improved as a public park and deed restricted as publicly accessible open space. The available bonus and conditions that must exist to receive the bonus are further described in subsection D.14 of this plan.

13. Required publicly accessible open space: At least ten percent of the net land area of any development (less any area provided for public streets, rights-of-way or easements) shall be dedicated as publicly accessible open space/vest pocket parks. All such open spaces shall be at least 5,000 square feet in area.

    Development projects consisting of multiple phases or parcels may provide such publicly accessible open space at a later date and on another parcel or parcels within the MWORD district other than the parcel that is the subject of the development application. Projects consisting of the rehabilitation of existing buildings shall provide five percent of the net land area of any development (less any area provided for public streets, rights-of-way or easements) as publicly accessible open space. Phased and/or larger development projects shall group the proposed open spaces so as to create larger more effective and usable areas.

14. Specific bonus requirements:

    a. Sub-district A:

        i. A density bonus of an additional 70 units per acre shall be permitted (for a total of 150 units per acre) when a new construction project provides an additional five percent improved open space park (to total at least 15 percent of the net land area of new construction. Net land area shall be the lot area, less any area provided for public streets or rights-of-way.

        ii. Number of stories shall be permitted to increase to six levels of residential over one level of parking, but only for the portion of the building having frontage along Senate Place. This higher portion of the building shall not be greater than 75 feet in depth as measured from the Senate Place frontage building façade.

        iii. Direct pedestrian ingress and egress to individual ground floor units shall be provided along Senate Place.

        iv. Required conditions to qualify for Sub-district A bonus:

            • The land shall be deed restricted as public open space and dedicated to the city as a public municipal park.

- This open space shall be located at the corner of Dey Street and Senate Place so as to provide a centrally located recreational focal point within the district.
- Site plan approval by the Planning Board for the park design, configuration, amenities and materials shall be pursued and received in order to receive the bonus.
- The open space improvements shall be constructed prior to the issuance of any Certificate of Occupancy for the project.

b. Sub-district B:

i. A density bonus of an additional 55 units per acre shall be permitted (for a total of 180 units per acre) where a development project provides an additional five percent improved open space and park (to total at least 15 percent) of the net land area of any development net land area shall be the lot area, less any area provided for public streets or rights-of-way.

ii. Because the street elevations are so varied within and adjacent to Block 613.1 Lot 2, a portion of open space associated with this new construction at this location, if it is proposed, may be located on a roof top provided that the roof-top open space has at least one 20-foot wide connection to an adjacent street at the elevation of the public sidewalk and the roof-top open space is publicly accessible and identified as such within the project deed and through signage at the street level.

iii. Direct pedestrian ingress and egress to individual units shall be provided along Senate Place, Dey Street and Newark Avenue.

iv. Required conditions to qualify for Sub-district B bonus:

- The land shall be deed restricted as open space and dedicated to the City or remain in private ownership and protected for perpetual public access through an easement attached to the deed.
- This open space shall be located at the corner of Dey Street and Senate Place so as to provide a centrally located recreational focal point within the district.
- Site plan approval by the Planning Board for the park design, configuration, amenities and materials shall be pursued and received in order to receive the bonus.
- The open space improvements shall be constructed prior to the issuance of any certificate of occupancy for the project.

E. Exceptions to Bulk Standards:

1. Existing buildings and structures shall be exempt from all bulk standards. However, any expansion of an existing building or structure must be in conformance with the bulk standards listed above.

2. On development sites containing multiple parcels or lots; individual parcels or lots may exceed the above bulk standards provided that the development site taken as a whole is in compliance with the above bulk standards. For lots with frontage on multiple streets, all frontages shall be treated as a front lot line/yard.

3. Any open space or open area on a development site that is dedicated or set aside as public open space, such as a park, and which is accessible to the public at grade shall be utilized in calculating the maximum density, F.A.R., maximum building coverage and maximum lot coverage of said development site.

4. Any area on a development site that is dedicated or set aside as a street or public right-of-way, shall be utilized in calculating the permitted maximum density, F.A.R., maximum building coverage and maximum lot coverage of said development site.

5. Within any existing building, interior spaces may be modified to include new interior floors and/or mezzanine levels where ceiling heights permit. Interior spaces may also be modified to provide interior courtyards to provide air and light in compliance with applicable building codes.

F. Minimum Parking Standards:

1. Residential and work/live units:

a. In rehab buildings 0.5 space per unit.

b. New construction in Sub-district A - Minimum of 120 new off-street parking spaces constructed for the new building in Sub-district A.

c. New construction in Sub-district B - One bedroom - 0.5 space per unit; two bedrooms and above - one space per unit.

2. Offices: One space per 1,000 square feet.

3. Retail sales of goods and services: One space per 1,000 square feet.

4. Restaurants and theaters: One space per 1,000 square feet.

5. Hotels: One-half (0.5) space per hotel room.

6. Colleges and universities: Two spaces per classroom.

7. Shared parking and valet parking arrangements are permitted upon submission of a parking plan by the developer demonstrating that such alternative parking arrangements are appropriate and approval by the Planning Board of such parking plan.

G. Building Design Standards for Rehabilitation of Existing Industrial Structures:

1. General: Rehabilitation and renovation of existing industrial structures shall be done in a manner that respects the individual architectural style and character of the particular building being renovated. The dominant features or characteristics of these buildings shall be maintained. For example, many larger industrial structures were designed as a series of bays consisting of a repetition of building units along the streetscape, broken up by recessed areas or voids intended to bring air and light to inner portions of the building. These voids shall not be filled in.

2. Materials: It is preferable to repair, rather than replace, materials on the façades of the buildings. However, if materials must be replaced, they must be carefully selected to match the appearance of existing materials to the greatest extent practical.

3. Windows: Windows are a major component of a building's appearance, therefore all windows that are visible along street façades must be treated in a manner that are consistent with the architectural character of the building. Such window openings must not be reduced or modified. Although it is recognized that replacement windows must conform to contemporary standards for energy efficiency; replacement windows must be selected to be compatible with the character of the existing windows (including muntins and mullions) and the architectural style and character of the building being renovated.

4. Entrances: Care must be taken in locating new entrances into the buildings to accommodate the re-use of these structures. All buildings must relate to the streetscape and orient their primary entrance to the public right-of-way. Pedestrian access points shall be located on less trafficked streets and designed in manner that relates to the adjoining street and encourages pedestrian activity along the street. Conversely, vehicular access points shall be located and designed to limit their impact on the pedestrian environment and to the appearance of the building.

5. Roofscape: Many older industrial buildings contained skylights, water towers and other rooftop appurtenances that add to the architectural style and character of the structure. These features shall be retained and incorporated into the design and reuse of the structure. New necessary mechanical equipment and rooftop appurtenances may be located on the roof, but shall be screened and/or incorporated into the roofscape design.

6. Other design features: Many older industrial structures contained unique features such as tall smoke stacks, which became familiar features in the landscape. These features shall be retained and incorporated into the design of the building. However, other smaller or minor buildings, or minor portions of buildings, which may have been accessory to the previous use, but are no longer appropriate to the new reuse; may be removed.

7. Additions/expansions: New additions/expansions of existing structures must be done in a manner that is complimentary to the existing building's design and architecture in term of size, scale, materials, etc. However, new additions should not seek to copy the existing building, as each building is a product of its own time. Additional floors may be added to the top of existing buildings provided that such construction is not contrary to the intent of paragraph G.5 above and is in compliance with the height requirements of paragraph D.11 of this section.

8. New construction: New buildings constructed as part of the reuse and/or redevelopment of industrial sites, either as accessory to the new reuse or as infill buildings, must be designed to compliment the architecture of the existing major buildings on the site. It is recognized that each building is a product of its own time. Therefore, the new buildings should not be copies of the architectural style of the existing buildings.

H. Parking Structure Design Standards.

1. Along all street rights-of-way within Sub-district B, any all parking levels shall be screened by an intervening use (i.e. residential, office, retail, lobby, etc.) between the parking and the building

façade. Parking levels below grade shall be exempt from this requirement. In addition, parking levels fronting onto Saint Paul's Avenue west of Van Wagenen Avenue shall also be exempt from this requirement. The design of parking levels within Sub-district A shall adhere to the requirements of paragraph 2. below.

2. The façades of all parking structures or levels within buildings that are not screened by an intervening use shall be architecturally screened so as to not give the apparent perception of garage space from the exterior. The façade of the parking structure shall be designed to disguise the parking use to the greatest degree possible. The exterior wall of the parking structure shall be architecturally designed to mimic and reflect the occupied portions of the building in terms of style and materials. All openings in the parking structure façade shall be of the punched style. These openings shall be consistent with the rhythm of the window openings serving the principal uses within the building. They shall be covered by glass or metal in such a way that the exterior design is compatible with the design of the building and the actual windows of the building. The glass tint and/or reflectivity may be different so as to decrease the visibility of the garage use within. In lieu of glass, the openings may be covered by a hinged solid metal plate/shutter, or recessed decorative grill over a louvered opening as described below. Blind windows, where appropriate shall also be permitted. Where louvers are needed or proposed, decorative grills shall be installed over functional louvers, or other comparable decorative material shall be used in openings or portions of the openings resembling the windows provided above and/or below parking levels. The intent of the above regulations is that no exposed garage exterior wall shall be detectable as a garage.

3. The design of parking structures and levels shall be consistent with paragraph G of this section "Building Design Standards for Rehabilitation of Existing Industrial Structures".

4. Garage doors shall be provided at the ingress and egress to the parking garage and shall be designed to reflect the architecture of the building. Open metal grates and similar type doors are prohibited. Garage doors shall be kept to the minimum height and width possible so as to limit their visual impact on the streetscape and the façade of the building.

I. Signage: The signage regulations as found in Section 345-68 of this ordinance, and as applied to the NC-3 District shall apply to the MWORD district. In addition, the following signage may be permitted by the Planning Board after site plan review and approval. **[Amended 10-25-2023 by Ord. No. 23-103]**

1. A roof sign or wall sign on an existing building that has been or is being renovated for a mixed use development, indicating the name of the mixed-use development; provided that it can be evidenced by photographs or other historical documentation that a similar sign previously existed on the building. Such signage must conform to the size, shape, lettering style and design of the historically documented sign.

2. Signs that were historically used on certain mechanical elements or architectural features of a building or complex, such as watertowers, smokestacks and chimneys, provided that said signage is not used to advertise businesses or services outside the building or complex (i.e. no outdoor advertising signs).

§ 345-59.5. ROZ Restaurant Overlay Zones. [Added 10-13-2022 by Ord. No. 22-084]

A. Restaurant Overlay Zones (ROZ) shall apply to the areas depicted on the Jersey City Zoning Map. The ROZ is intended to apply as an overlay, which means that it applies an alternative zoning pattern when and if chosen by the property owner. Within a ROZ, existing zoning regulations continue unchanged. The application of ROZ zoning provides for a new, additional permitted principal use restaurants.

B. Restaurant Overlay Zoning Regulations.

1. Permitted principal uses.

a. Restaurants, category one and two.

2. Permitted accessory uses.

a. Sidewalk Cafés (subject to the provisions of Chapter 296, Article XII, Sidewalk Cafés).

b. Live entertainment subject to issuance of a "Restaurant Entertainment License" by the Division of Commerce and the restrictions as to decibel level, hours of operation, and location of entertainment providers attached to that license (see Ordinance #12-001).

3. Minimum building separation.

a. No setback from any lot line shall be required for existing structures that are not to be enlarged. However, in the event that a separation of structures exists, or is proposed in the event of new construction, the minimum distance between any rear wall of a building proposed for a ROZ restaurant use and any rear wall of an adjacent building containing any residential uses shall be 15 feet, as measured from building face to building face, except in the case of corner lots, where no minimum or maximum separation shall apply.

§ 345-59.6. Historic Districts Overlay. [Added 10-13-2022 by Ord. No. 22-084]

A. Historic District Overlays, as delineated on the zoning map, shall retain the underlying zoning for use, bulk, and density standards. Design standards, dictated through individual design guidelines tailored for each historic district, shall be utilized for all proposals in historic district overlays in addition to the standards found in Section 345-71. These historic district design guidelines assist HPC Staff, homeowners, and design professionals in retaining the historic integrity of individual properties, landscapes, design features, and the historic districts as a whole.

1. West Bergen-East Lincoln Park Historic District Design Guidelines; adopted by the HPC 12-16-2016 (available on the City website and via HPC Staff).

§ 345-59.7. Affordable Housing Overlay. [Added 10-13-2022 by Ord. No. 22-084]

A. The purpose of the Affordable Housing Overlay ("Overlay") is to provide ample opportunities for mixed income housing and the creation of affordable housing.

B. Developers that request and/or obtain additional dwelling units above the maximum permitted units per acre pursuant to this Overlay are required to fulfill certain community benefits and performance standards for the successful implementation of this Overlay and the objectives of the Master Plan.

C. This Overlay shall be applicable in all zones, districts, or redevelopment plans where residential, single-unit residential, single-family dwelling unit, townhouse, mid-rise or high-rise residential, apartment, or multi-family residential is a permitted principal use.

D. Developments pursuant to this Overlay shall have jurisdiction before the Planning Board unless:

1. Site plan review is not required pursuant to Section 345-16 of the Land Development Ordinance.

2. Variances are requested pursuant to N.J.S.A. 40:55D-70(d), other than a (d)(5) variance.

E. If the affordable housing set-aside and other provisions of this Overlay are satisfied, a developer shall qualify for the following:

1. Multi-unit residential is considered a permitted use in districts where it is not listed as a permitted principal use.

2. Maximum unit per acre or maximum units per block is replaced with an alternate density standard. Instead of a maximum unit per acre standard, density for developments pursuant to this Overlay shall be defined by the "building envelope" as regulated by applicable maximum floor area ratio, height, coverage, stepback and setback standards. Minimum room and unit sizes are regulated by building code.

F. Zone Standards and Requirements.

1. Any minimum and maximum lot width, depth, area, and bulk requirements per the zone or district of the subject parcel shall still apply.

2. Maximum lot size requirements will be strictly enforced and any oversized lot will be required to subdivide prior to utilizing this Overlay.

G. Unit Mix Requirements.

1. The following standards shall apply to any development built pursuant to this Overlay unless there are existing unit mix requirements per the zone or district which would yield a higher amount of three-bedroom units.

2. In developments with 15 dwelling units or more: one dwelling unit or a minimum of two percent of all residential units, whichever is greater, shall be designed with three bedrooms or more.

3. In developments with 50 dwellings units or more: Minimum of 70 percent of all residential units shall be designed with one bedroom or more.

4. Any and all income mix requirements and unit mix requirements of Chapter 188 (Housing Accommodations and Affordable Housing Compliance) shall apply and supersede where there is any inconsistency.

H. Affordable Housing Set-Aside. **[Amended 10-25-2023 by Ord. No. 23-103]**

1. In no instance shall this Overlay lower an affordable housing set-aside required as part of a mandatory affordable housing requirement or part of a bonus of a redevelopment plan.

2. Each development subject to this Overlay shall contain an affordable housing set-aside subject to the following:

   a. Tier 1 - Developments in low, moderate, or middle income census tracts. The minimum on-site affordable housing set-aside for developments in this tier shall be ten percent of the total number of dwelling units in the development. Low income census tracts are defined as tracts below 50 percent of area median income. Moderate income census tracts are defined as tracts between 50 percent and below 80 percent of area median income. Middle income census tracts are defined as tracts between 80 percent and below 120 percent of area median income. Developments that obtain a tax abatement/payment in lieu of taxes from the City shall provide a 15 percent minimum on-site affordable housing set-aside of the total number of dwelling units.

   b. Tier 2 - Developments in upper income census tracts. The minimum on-site affordable housing set-aside for developments in this tier shall be 15 percent of the total number of dwelling units in the development. Upper income census tracts are defined as tracts at or above 120 percent of area median income.

   c. Irrespective of census tract or tier, all developments that obtain low income housing tax credits and/or tax-exempt bond financing from the New Jersey Housing Mortgage Finance Agency, funding from the Economic Development Authority Aspire program or similar program, and/or any other State support pursuant to N.J.S.A. 52:27D-329.9(b) shall contain a minimum on-site affordable housing set-aside of at least 20 percent of the total number of dwelling units in the development. Any development that uses any of these funding sources shall disclose this information as a part of their Affordable Housing Agreement (AHA) as required in Chapter 188 of the Jersey City Municipal Code.

   d. Irrespective of census tract or tier, all developments subject to this Overlay in the Canal Crossing Redevelopment Plan area shall include a minimum on-site affordable housing set-aside of 15 percent of the total number of dwelling units in the development.

3. When the calculation of the affordable housing set-aside results in a fractional affordable unit, the fraction shall be rounded up if the fraction is one-half or higher. This shall mean that the affordable housing unit shall be provided. When the fraction is less than one half, the developer shall provide a payment in lieu of the fractional unit. The payment shall be calculated based on a pro rata basis of $180,000.00 per unit.

   a. Example calculations:

      1) 14 total units × ten percent set-aside = 1.4. A calculation of 1.4 results in:

         - 0.4 × $180,000 = $72,000 contribution required; and

- 1.0 = 1 on-site affordable unit required.

2) 7 total units × 15% set-aside = 1.05. A calculation of 1.05 results in:

- 1.05 rounds to 1.1
- 0.1 × $180,000 = $18,000 contribution required; and
- 1.0 = 1 on-site affordable unit required.

3) 23 total units × 15% set-aside = 3.45. A calculation of 3.45 rounds to 3.5 and results in:

- 3.5 rounds to 4.
- 4 on-site affordable units required, no contribution required.

4. Any payment in lieu of a fractional affordable unit shall be fulfilled by the developer payable upon a non-appealable board approval (or granting of permits if no Board action is required). All payments shall be deposited into the City of Jersey City Affordable Housing Trust Fund.

5. The City may waive the fractional unit payment for owner-occupants when the following applies:

a. Property must be in a Tier 1 area at the time of application.

b. Applicant(s) must be an owner-occupant of the property for at least three (3) years prior to utilizing the AHO.

c. Only applies to projects that create a three-unit or four-unit principal structure.

d. Following completion of the new unit(s), the owner-occupant must maintain residency at the property for at least five (5) years for three-unit buildings or seven (7) years (for four-unit buildings).

e. In order to ensure residency, the City shall require a deed restriction or other legal instrument as a prerequisite to granting permits.

I. Other Provisions. The following sections of Chapter 187, Inclusionary Zoning, shall apply to each development subject to this Overlay:

1. Definitions, Section 187-2.

2. Additional Standards for Affordable Housing, Section 187-5.

3. Tier Map, Section 187-6.

4. Compliance, Section 187-7, except that following provisions which shall supersede Section 187-7.B.2:

a. In developments that produce ten or fewer on-site affordable units, the bedroom distribution of the affordable units may match the bedroom distribution of the market-rate units so long as at least 50 percent of the units are low income units.

5. Administrative Fee, Section 187-8.

6. Violations, Section 187-9.

7. Severability, Section 187-10.

8. Inconsistencies, Section 187-11.

9. If a development subject to this Overlay does not result in an on-site affordable housing unit, then the Approving Authority may exempt a developer from those provisions which regulate or apply to on-site affordable housing compliance and administration.

§ 345-59.8. Required setbacks for zones and redevelopment plans that abut or are in close proximity to Route 440, Route 1&9T, and a portion of Communipaw Avenue. [Added 10-13-2022 by Ord. No. 22-084; amended 3-6-2024 by Ord. No. 24-011]

A. The purpose of this subsection is to reserve land for a future boulevard and complete street along Route 440 and Route 1&9T that is necessitated by the multi-modal mobility, safety, access, and circulation needs of anticipated future development along the roadway.

B. There is hereby established within the City of Jersey City required setbacks for all zones and redevelopment plans that abut or are in close proximity to New Jersey State Route 440, New Jersey State Route 1&9T, and a portion of Communipaw Avenue, which shall be known as the "Route 440/Route 1&9T and Communipaw Avenue Required Setbacks."

C. The Route 440/Route 1&9T and Communipaw Avenue Required Setbacks are established on the map entitled, "Route 440/Route 1&9T/Communipaw Avenue Required Setbacks," (Ordinance 12-039) prepared by Jacobs Engineering, and dated July 12, 2011, which includes required setbacks, lot lines, measurements and coordinates, and which is attached hereto and made a part hereof, and which a 1" = 200' scale paper copy of the map shall be kept on file and available for public inspection at the office of the Jersey City Division of City Planning.

D. The Route 440/Route 1&9T and Communipaw Avenue Required Setbacks shall prevail upon all land regulated under this Chapter, as well as those properties within a duly adopted redevelopment area. Redevelopment Plans shall be amended, or initially written, as the case may be, to refer to or include the requirements of this Subsection.

E. The zoning map of the City of Jersey City shall be annotated as follows: "Pursuant to Section 345-60.2, the Route 440/Route 1&9T and Communipaw Avenue Required Setbacks shall prevail upon all land regulated under this Chapter, as well as those properties within a duly adopted redevelopment area.

F. The Route 440/Route 1&9T and Communipaw Avenue Required Setbacks shall be delineated on the survey and site plan for all proposed development on all property with frontage on Route 440 or Routes 1&9T, or on Communipaw Avenue where it is within 800 feet of Route 440, or within 100 feet of Route 440 or Routes 1&9T, or within 100 feet of Communipaw Avenue where it is within 800 feet of Route 440.

§ 345-59.9. Hackensack River Greenway Overlay. [Added 11-12-2025 by Ord. No. 25-115]

A. Purpose. The Hackensack River Greenway ("Greenway"), as envisaged in the Master Plans of both Jersey City and Hudson County is a multi-use pathway and linear park envisioned for the eastern shores of the Hackensack River and Newark Bay both within and beyond Jersey City, transforming the formerly industrial waterfront into a recreation and transportation resource for the public. The purpose of this overlay is to coordinate private development of land along the Hackensack River waterfront with the conveyance, development, maintenance, and management of the Greenway.

B. Performance standards. All development applicants along the Hackensack River waterfront shall be required to develop, maintain, and manage a section of the Hackensack River Greenway, including but not limited to Greenway alignments defined by the Hackensack River Greenway Plan (created 2022, updated 2025), coincident with the shoreline and/or western edge of the development property, in addition to any public access easements the Planning Board deems necessary for the safe and comfortable access to the Greenway by pedestrians, cyclists, and other Greenway users. The developer shall, by appropriate instrument of conveyance, create a conservation restriction in favor of the City that shall define the physical parameters of the walkway and the allowable uses, address the maintenance and management duties, and identify the responsible party.

C. Development and access agreements. Prior to any final certificate of occupancy, the applicant shall enter into a Developer's Agreement with the City, in a form approved by the City, regarding the operation, maintenance, and management of the Greenway. Prior to any certificate of occupancy, the applicant shall enter into a Public Access Easement Agreement, regarding public access to the Greenway.

D. Special provisions for subdivisions. In the instance of subdivision, all new parcels shall incorporate required public access easements. No subdivision separating developable land from a proposed Greenway alignment shall be construed as alienating development from Greenway installation, maintenance or management responsibilities required by the terms of the overlay district.

E. Review process. Greenway installations shall be subject to site plan review by the Planning Board. At least 30 days before a site plan containing a Greenway segment is heard, the applicant must submit all site plan materials to the Hudson County Division of Planning for review and comment from the Hackensack River Greenway Working Group.

F. Lot coverage exemption and credit. Lot coverage percentage within the overlay zone shall be calculated via the following formula:

$$L = (c-e)/a$$

Where:

c = Covered surface area located outside of Greenway easement

e = Total area of Greenway easement

a = Total lot area

G. Design standards. All sections of the Greenway shall conform with the following design standards:

1. Easement. The easement dedicated for the Greenway shall be a minimum 30 feet width, running parallel to and adjacent to the water's edge. The easement is encouraged to be larger if the walkway abuts a park or plaza or public right-of-way. If the walkway cannot be installed over land, the easement dedication may be partially or wholly over water.

2. Off-road pathway.

   a. The Greenway shall consist of an off-road pathway running parallel along or adjacent to the water's edge or adjacent wetlands and associated wetland transition area.

   b. The pathway, and all sidewalks, crosswalks, and curb ramps, as well as the materials from which they are constructed should comply with ADA standards.

   c. The pathway should be paved with either smooth asphalt or concrete. When feasible, permeable pavements are encouraged. Gravel, macadam, and other road construction materials that create rough surfaces are not permitted.

   d. Pavers may be utilized as a decorative accent, such as border areas or amenity spaces, but pavers or any other textured material shall not be the primary surface material, in order to ensure comfort of use for wheelchairs, bicycles, and other wheeled pathway users.

   e. For portions over water wetlands, or wetland transition areas, a pressure-treated timber or composite boardwalk should be installed. The direction of wood should not be parallel to the direction of traffic. Transitions between paved and boardwalk portions of the pathway should maintain a level surface for safety and comfort for rolling wheels.

   f. Where necessary, the pathway shall be designed to support the maximum load anticipated for vehicular traffic, such as maintenance vehicles or fire equipment.

   g. A shared pedestrian-cyclist pathway should be at least 18 feet wide to allow for two-direction pedestrian and bicycle traffic. Where pedestrian and cyclist traffic are accommodated on separate pathways, each pathway should be at least ten feet wide. The pedestrian pathway should ideally be the closer of the two to the water's edge.

   h. Pavement markings should be used to indicate directionality of traffic and division of bicycle and pedestrian spaces.

   i. Where possible, an additional 4 ft of easement shall be provided on either side of the pathway for vegetation and amenities. Where space is constrained, a buffer is more important on the land side, as providing a vegetated buffer between neighboring properties and streets while maintaining views of the river is the priority.

   j. A living edge, utilizing landscaped naturalistic elements to buffer the pathway from the river is the preferred form of safety protection for the Greenway Where such a living edge is not

feasible, a safety handrail used to prevent Greenway users from falling into the water should be included, should be attractive and unobtrusive, and should be low enough to provide for unobstructed views of the waterfront.

k. Amenity spaces, such as seating areas and plazas adjacent to the pathway, are encouraged throughout the length of the greenway.

l. Connection between segments of the Greenway shall be seamless and uninterrupted, and designed to provide an attractive and functional transition between Greenway segments.

3. Resilience and ecology. Greenway designs and installations should follow best practices for sustainable urban-waterfront interface, as documented in the Waterfront Edge Design Guidelines (WEDG) and other industry-standard manuals.

4. Public access connections.

a. At least once every 300 feet, safe and attractive east-west connections for accessing the Greenway by pedestrians and cyclists shall be provided between the Greenway and the public sidewalk and roadway network, including all legal pedestrian crossings of Route 440.

b. Existing or new sidewalks in the public right-of-way may be utilized to accommodate pedestrian connections. Protected bike lanes in the public right-of-way may be utilized for cyclist connections. Where these facilities exist, they should be brought into a state of good repair as needed as part of Greenway construction.

c. Where a new multi-use trail is being constructed as a public access connection, the pathway should be 18 feet wide, paved with smooth asphalt or concrete, and comply with ADA regulations. Landscaping and lighting should be provided.

d. While the ultimate vision for the Greenway involves grade-separated pedestrian bridges across Route 440, it is acknowledged that in the interim, utilizing existing crosswalks and access points is a practical necessity.

e. Provisions shall be provided for connections between the Greenway and other planned multi-use trails, including the Morris Canal Greenway and Essex-Hudson Greenway.

5. Vegetation. All vegetation proposals shall be reviewed by Division of Forestry staff and comply with Jersey City Forestry Standards. In addition, the following guidelines should be followed:

a. Native, riparian, urban-tolerant plants and trees should be used.

b. Smaller-scale plantings should be used directly alongside the water to prevent obstructing the view and minimize required trimmings.

c. Under no circumstances should landscaped vegetation replace natural wetlands.

6. Amenities.

a. All amenities should be made of high-quality, durable materials that are suitable for the marine environment, tamper and graffiti resistant, with a long lifespan and minimal periodic maintenance.

b. Seating should be provided along the pathway and in adjacent plaza spaces, at least once every 100 feet. Seating types include but are not limited to benches and wall seating.

c. Trash receptacles should be placed along the length of the Greenway at regular intervals at least once every 300 feet. It is the responsibility of the developer to service the trash receptacles on their property.

d. Bicycle parking should be provided along the Greenway at regular intervals, particularly at plazas, parks, and connecting walkways. Bike racks should be securely mounted, either embedded in concrete or surface mounted with tamper-proof hardware. Racks should provide two points of contact to allow a bicycle to be locked with a U-lock to the frame and one of the wheels.

e. Adequate lighting should be provided to facilitate 24-hour use of the Greenway and provide illumination in areas where natural light is limited such as underpasses. Lighting should be pedestrian scale, and fixtures should be cut off to limit light pollution.

f. Consideration should be given to creating a sense of place through the design, colors, and materials of amenities, as well as the inclusion of public art.

7. Signage. Directional wayfinding, branding, and educational signage shall be designed to the specifications of Division of Transportation staff from Hudson County and/or Jersey City and be installed at regular intervals.

§ 345-60. Supplementary zoning. [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. General.

1. No building or structure shall be erected and no existing building or structure shall be moved, altered, reconstructed, added to or enlarged, nor shall any land, building or structure be designed or used for any purpose or in any manner other than as specified among the uses listed as permitted, accessory or conditional in the zone in which such building, structure or land is located, and subject to all area, yard and building requirements of this Chapter.

2. No yard or open space surrounding any building or structure shall be encroached upon or reduced in any manner, except in conformity with the yard, area or building regulations designated for zone(s) in which such building or structure and yard or open space is located.

3. The area and dimensions of any lot, yard, parking area or other space shall not be reduced to less than the minimum required by this Chapter; and, if already less than the minimum required by this Chapter, such area and/or dimension shall not be further reduced.

4. The provisions and restrictions contained in this Chapter shall not apply to or be binding upon the City.

B. Principal Structures. Only one principal structure may be located on a single lot in the R-1, RH-1, RH-2, R-2, R-3, R-4, RC-1, RC-2, RC-3, NC-1, NC-2, NC-3 zones, and residential and mixed-use

residential zones in redevelopment plans. In all other zones, related compatible principal structures under one management may be erected, used or occupied provided that all yard, setback, and coverage requirements of this Chapter are met.

C. Lot Regulations.

1. Every lot shall have the areas and dimensions required within the particular zone in which such lot is located.

2. No yard or other open space provided for any building or structure for the purpose of complying with the provisions of this Chapter shall be considered as providing a yard or other open space for any other building or structure.

3. No land in a residential zone shall be used to fulfill open space, minimum area, minimum yard and/or setback requirements, parking or other similar requirements for any nonresidential use in a nonresidential zone.

4. Whenever title to two or more contiguous lots is held by the same owner, regardless of whether or not each of said lots may have been approved as portions of a subdivision or acquired by separate conveyance or other operation of law, and one or more of the said individual lots shall not conform with the minimum lot area and/or dimension requirements for the zone in which it is located, the contiguous lots of said owner shall be considered as a single lot and the provisions of this Chapter shall apply.

5. Whenever land has been dedicated or conveyed to the City by the owner of a lot existing at the time of adoption of this Chapter in order to meet the minimum street width requirements of the City, the zoning officer shall not withhold a building and/or occupancy permit for the building or use on the lot whose depth and/or areas are rendered substandard in area only because of such dedications and where owner has no other adjacent land to provide the minimum requirements.

D. Yard Regulations.

1. Any addition(s), vertical or horizontal, to a structure which is already nonconforming with respect to yard requirements at the time of adoption of this ordinance shall adhere to the yard requirements for the district in which said structure is located.

2. Projections and encroachments that extend beyond the building line, especially along front primary façades can add interest and diversity to the building environment. Projections are defined in this chapter as cornices, eaves, leaders, sills, or headers. Encroachments are defined in this chapter as combinations of enclosed, open, grounded, and/or cantilevered.

3. Projections and encroachments: Minimum required yards shall be entirely free of buildings or structures or parts thereof, and no building or structure shall project into a minimum required front, side or rear yards, except as follows:

a. Cornices and eaves may project not more than two feet into any required yard or beyond front lot lines.

b. Sills, leaders, and similar ornamental or structural features may project six inches into any required yard or beyond front lot lines.

c. Window wells affording light and air to basement and cellar areas are permitted in all required yards.

d. Television and radio aerials masts, outdoor fireplaces, and children's playground equipment are permitted in any required rear yard.

e. An open fire escape, where required by fire code, may encroach into a required rear yard not more than five feet and shall be the minimum width necessary to meet fire code.

f. Balconies, as defined in this chapter, may encroach into a required rear yard not more than five feet, may project into a required side or front yard not more than 18 inches, provided that no single balcony shall extend along more than 60 percent of the width of the façade to which its attached.

g. Permitted front yard encroachments:

i. Permitted enclosed encroachment ratio: For every one linear of lot frontage, three square feet of habitable floor area is permitted to encroach into a required front yard. For example, on a lot that is 25-foot wide, a total of 75 square feet or habitable floor area is permitted within the required front yard setback area.

1. Each primary front façade shall be calculated and permitted individually.

2. Permitted habitable floor area may be distributed on different floors along the same façade but the maximum floor area shall not be exceeded.

3. Minimum offset: Oriels and bay windows must be offset at least 16 inches from all building corners. Other encroachments, like enclosed porches, do not have a minimum offset requirement.

4. Enclosed encroachment is defined in Section 345-6 and include but are not limited to enclosed porches, oriels, overhangs, and bay windows.

5. Where development is regulated by floor area ratio, this regulation shall not apply.

6. For buildings in historic districts or locally landmarked, this regulation shall not apply. All front yard encroachments on buildings in historic districts or locally landmarked are required to seek and/or obtain a certificate of no effect or a certificate of appropriateness.

ii. Open encroachments may project into required front yards up to six feet. Stairs may project an additional four feet into any required front yard. Access ramps for ADA compliance may project into required front yards as necessary to create safe and efficient access. See definition of "open encroachment" in Section 345-6.

h. Permitted rear yard encroachments:

i. Stairs may project up to four feet into any required yard.

ii. Decks and patios more than three feet above finished grade shall meet the setbacks of principal structures. A six-foot high screen or a minimum of a three setback from any lot line shall be required if the deck projects beyond the rear building line of the adjacent lot.

4. Projection and encroachment considerations:

a. Lot lines: encroachments are not permitted to extend beyond lot lines. Projections are not permitted to extend beyond side or rear lot lines.

b. Enclosed encroachments are calculated toward building coverage and lot coverage.

c. Grounded or open encroachments are calculated toward lot coverage if the method of construction renders the encroachment impervious. For example, some porches may be pervious if constructed of wood above dirt and decks are built to allow water to pass through slats.

d. Cantilevered encroachments are not counted toward building coverage or lot coverage.

e. Screened-in porches are not considered enclosed porches. When a porch has windows, even if removable, it is considered enclosed.

f. Stairs that project more than four feet into a required front yard should be designed with a landing and turn 90 degrees before continuing to grade.

E. Zoning Standard Calculations.

1. When a numerical calculation of zoning standards for a particular lot results in a fractional number, such numbers shall be rounded down to the next whole number for fractions less than 0.5 and rounded up for fractions 0.5 and above.

2. Irrespective of the numerical calculation of density standards for a particular lot, a minimum of two units shall always be permitted.

F. Frontage Upon a Street. Every principal building shall be built upon a lot having minimum street frontage equal to the required minimum lot width upon an approved street which shall be improved in accordance with street standards established by the City of Jersey City.

G. Height Exceptions.

1. Roof structures and appurtenances for the housing of stairways, tanks, ventilating fans, air-conditioning equipment, dust collectors or similar equipment required to operate and maintain the building as well as skylights, spires, cupolas, flagpoles, chimneys, water tanks or similar structures may be erected above the height limits prescribed by this Chapter but in no case more than the following distances above the maximum height permitted in the district, except spires for houses of worship shall have no height restrictions.

Building Height (feet)	**Maximum Height of the Exceptions (permitted to accommodate appurtenances and roof structures)**
Up to 45	10 feet
45 to 100	12 feet or 20% of building height, whichever is greater for buildings without common rooftop amenity space. For buildings with common rooftop amenity space, a total of 20 feet shall be permitted
101 and over	20 feet or 20% of building height, whichever is greater for buildings without common rooftop amenity space. For buildings with common rooftop amenity space, a total of 30 feet or 20% of building height, whichever is less shall be permitted

2. Any rooftop structure or appurtenance covered by this section must be set back from any front façade (primary or secondary) by a distance of one foot one inch for every foot of rooftop structure or appurtenance height.

3. Fire or parapet walls may be erected above the height limits prescribed by this Chapter up to a maximum height of six feet from the roof of the top story and with a minimum of 42 inches from the floor of the rooftop deck, if provided.

4. Mechanical and other roof appurtenances and structures shall not exceed 20 percent of the roof area and shall be properly shielded.

5. Where a property is located within the "One Percent (1%) Annual Chance Flood Hazard Area," the number of feet required to reach the base flood elevation plus one foot shall be added to the maximum permitted height of the building. This provision shall apply to all property within any regular zone district or within any duly adopted redevelopment plan area. Where property is located within an historic district, or where an historic district and redevelopment plan overlap, this exception shall not apply.

6. Requirements for roof decks and terraces:

a. Terraces shall provide privacy screening that measures six feet high. This standard shall not apply to any terrace encroaching into a front yard. In addition, any un-amenitized or non-mechanical appurtenance areas on the roof area shall provide green roof, solar panels, or another form of green infrastructure.

b. In historic districts and historic overlay, roof decks and terraces shall not be visible from the street and shall be setback a minimum of ten feet from any front façade (primary or secondary).

c. Roof decks on the uppermost roof area are permitted a maximum of 80 percent coverage of said roof area. Any un-amenitized or non-mechanical appurtenance roof areas shall provide green roof, solar panels, or another form of green infrastructure.

d. Roof decks atop the base/podium of a tower or high-rise development do not have a roof deck coverage limit.

e. Roof mounted mechanical equipment shall have a level 3 sound enclosure or highest available manufacturer's standard.

f. Coverage and setback standards for roof decks or terraces in Zone Districts or redevelopment plans shall supplement or supersede these requirements.

7. Requirements for roof structures used as enclosed amenity spaces:

a. In historic districts, enclosed amenity spaces are limited to a floor area maximum of 100 square feet.

b. For buildings without elevator service to the roof, enclosed amenity spaces are limited to a floor area maximum of 100 square feet.

c. For buildings with elevator service to the roof, enclosed amenity spaces are limited to a maximum of 100 square feet or ten percent of the floor area of the roof, whichever is greater.

d. Enclosed amenity spaces include, but are not limited to, the following: storage closets, trash rooms, bathrooms, common spaces, recreational spaces, lounges, communal spaces, lobbies, and vestibules.

e. Should roof structures used as enclosed amenity spaces exceed the floor area maximums of this section then the top of any such roof structure shall be considered the highest point of the building and shall be considered a story in determining the height of the building.

H. Solar Panels.

1. Solar panels are exempt from the rooftop area limits of 20 percent, as outlined in height exceptions, G.4 above.

2. Ancillary solar equipment located on the roof is subject to height and rooftop area limits of 20 percent of rooftop area as outlined in G.1 and G.4 above.

I. Accessory Structures and Uses Unless Regulated Elsewhere in this Chapter.

1. General requirements.

a. No accessory structure shall be built upon any lot on which there is no principal building or structure.

b. Unless specified elsewhere, no accessory structure shall exceed 15 feet in height.

c. The distance between the accessory structure and a principal building on the same lot shall meet the minimum requirements for fire, health and safety regulations of any City and/or State regulations.

d. No accessory structure(s) shall be located in a required front yard or in any area, such as the "side" front yard of a corner lot, where front yard setbacks apply. On through lots, no accessory structure erected shall be nearer to the "rear" street line than the minimum front yard setback for the zone in which such lot is located.

e. Any accessory structure attached to the principal building shall be considered a part of the principal building regardless of the technique of connecting the principal and accessory building and shall adhere to the yard requirements of the principal building.

f. Unless specified elsewhere, minimum setbacks from side and rear lot lines for accessory structures shall be set back the minimum side yard of the principal building.

2. Standards for specific accessory uses.

a. Home occupations.

i. The practitioner must be the owner or lessee of the residence in which the home occupation is contained.

ii. The practitioner must reside in the home as his or her principal residence.

iii. There shall be no external evidence of the home occupation.

iv. The practitioner shall not utilize the services of more than one non-resident employee.

v. There shall be no retail sales, manufacturing or industrial operations conducted on the site.

vi. No more than one business visitor shall be permitted at any one time.

vii. There shall be no sign identifying the home occupation and there shall be no identification of such home occupation upon any mailbox.

viii. The residential character of the neighborhood and the premises shall not be subordinated to the home occupation use.

ix. The home occupation shall be clearly incidental and subordinate to the principal use of the dwelling for residential purposes. The maximum area devoted to the home occupation shall be limited to not more than 40 percent of the total area of the floor where the home occupation use is located, excluding space used for a private garage, or 900 square feet, whichever is smaller.

x. No equipment or process shall be used in such home occupation which creates glare, fumes, odors, electrical interference, medical waste, or other nuisance factors detectable to the human senses outside the lot on which the home occupation is conducted.

b. Swimming pools.

i. Pools for private use shall be located on a lot containing a residential building. Pools shall be located in the rear yard only. Setbacks shall be measured from the water's edge and no pool shall occupy more than 75 percent of the rear yard. A deck around the pool shall be a separate structure and such decks shall also meet the setback standards for the pool. All pools shall adhere to the setbacks as set forth in this Chapter for accessory structures.

ii. Pools in multi-family developments and in hotels shall not be located within the front yard. All pools shall be landscaped to be below grade with setbacks measured from the water's edge adhering to the requirements for a principal structure. No pool shall occupy more than 50 percent of the area part of the yard in which it is located.

iii. All lighting shall be screened from dwelling units in the area to prevent direct or reflected light from being a nuisance. No public address system shall be erected with any pool. All health and safety codes shall be met in the erection and maintenance of a pool.

iv. Enclosure of swimming pools shall be required as set forth in the Uniform Construction Code.

d. Restaurants, category two.

i. Zones citywide that permit restaurant, category two shall permit restaurant, category two mobile food vendors on surface parking lots and private rights-of-way with minimum lot frontage of 50 feet.

J. Reserved.

K. Murals.

1. Murals that advance or promote a business product and/or activity contained within the building to which it is adhered, or the primary purpose of which is to advertise any product and/or business activity, shall be subject to municipal commercial signage regulation under Section 345-68.

2. Murals proposed to be adhered to buildings or structures located within a designated historic district, or designated as a municipal, state and/or national landmark shall be referred to the Jersey City Historic Preservation Commission for review and recommendation prior to installation. Such review recommendations shall be limited to the size of the installation and/or the appropriateness of the structure for the placement of art, and shall not be content-based.

3. Murals that are not painted directly on the host structure and thus require the installation of panels, canvases, or other means of display may require review and approval by the Division of Zoning and/or the Office of Construction Code prior to installation.

L. Child Care Centers. Child care centers are permitted uses in all nonresidential zones in accordance with the following requirements:

1. Such use shall meet the area requirements of the zone where located.

2. The floor area occupied in any building or structure as a child care center shall be excluded in calculating the following:

a. Any parking requirements otherwise applicable to that number of units or amount of floor space, as appropriate, as required under this Article.

b. The permitted density allowable for that building or structure under the applicable zone requirements.

M. Family Daycare Homes. Family daycare homes are permitted as accessory uses in all residential zones.

N. Senior Housing. Senior housing shall be permitted in all residential zones in accordance with the Federal Fair Housing Act.

O. Essential Services. Public utility lines for the transportation, distribution and/or control of water, electricity, gas, oil, steam and telegraph and telephone communications, and their supporting members, other than buildings and structures, including pipes, shall not be required to be located on a lot, nor shall this Chapter be interpreted to prohibit the use of a property in any zone for the above uses. Essential services shall not include wireless communications facilities. All new construction shall require lines for essential services to be underground, and transformers to be underground or housed within the building.

P. Community Residences. Community residences for the developmentally disabled, community shelters for victims of domestic violence, community residences for the terminally ill and community residences for persons with head injuries shall be a permitted use in all residential districts, and the requirements shall be the same as for single family dwelling units located within such districts.

Q. Reserved.

R. Wireless Communications. Wireless communication antennas are permitted second principal uses on existing structures and new wireless telecommunication towers are conditional uses.

1. Purpose. The overall purpose of these provisions is to provide specific zoning conditions and standards for the location and operation of antennas used for the transmission and reception of wave frequencies for the purposes of any wireless telecommunication (e.g., telephone, radio, paging and/or television communication) within the City of Jersey City, which recognize the need to safeguard the public good and preserve the intent and purposes of the Jersey City Master Plan and Zone Plan.

2. Overall objective. The overall objective of these ordinance provisions is to enable the location within the City of Jersey City of those antennas which are necessary to provide adequate wireless

communication services while, at the same time, limiting the number of supporting towers to the fewest possible and minimizing the impact of the antennas, accessory equipment, and supporting structures on residences, streetscapes, and view corridors throughout the municipality.

3. Specific goals.

   a. To encourage the location of antennas upon, or within, existing structures, including existing buildings, existing wireless communication towers, existing water towers, and existing telephone and electric towers, especially those existing structures situated in non-residential districts;

   b. To encourage the configuration of telecommunication facilities in a manner that minimizes and mitigates any adverse impacts upon affected properties, streetscapes, and vistas through careful design, siting, screening, landscaping, and innovative camouflaging techniques;

   c. To encourage the colocation of as many antennas as possible, of as many wireless telecommunication carriers as possible, on existing towers and other structures in industrial districts;

   d. To discourage the construction of new towers which do not have the likelihood of being used by a number of wireless telecommunication carriers;

   e. To minimize the total number of wireless telecommunications towers within the City of Jersey City;

   f. To discourage adverse impacts on scenic corridors and historic sites and districts;

   g. To enhance the ability of the carriers of wireless communications services who adhere to the specific requirements and intent of these ordinance provisions to provide such services quickly, effectively, and efficiently; and

   h. To comply with the mandate of the Federal Telecommunications Act of 1996, 47 U.S.C. Section 332 (c)(7), which preserves local government authority to enforce zoning requirements which protect public safety, public and private property, and community aesthetics.

4. Exemptions of applicability. Wireless communications antennas provisions shall not apply to the following:

   a. These provisions shall not govern any tower, or the installation of any antenna, that is under 70 feet in height and is owned and operated only by a federally licensed amateur radio station operator or is used exclusively to receive transmissions;

   b. Preexisting towers or antennas shall not be required to meet the requirements of this section, except that in the case of enlargement, structural modification, or addition to any existing tower or antenna facility which shall result in an increase of ten percent or more in tower height or facility floor area, the provisions of this section shall apply; and

   c. These provisions shall not govern any parabolic satellite antennas.

5. "Wireless communication antennas" shall be permitted as second principal uses on existing structures with the following exemptions:

   a. No wireless communication antennas shall be permitted in any historic district.

   b. No wireless communication antennas shall be permitted on any new or existing billboards.

6. New "wireless telecommunication towers" along with the antennas and equipment facilities associated with such new towers shall be permitted as conditional uses in the industrial districts, provided that:

   a. The location of a new tower within an industrial district shall be considered as a last resort to locating an antenna on an existing structure.

   b. Colocation shall be required for no less than three carriers and a letter of intent by the applicant to meet the colocation requirement shall be provided to the Planning Board; and

   c. All of the separation distance, area, setback, height, and design criteria requirements listed herein shall be met.

7. "Wireless communication antennas" shall be permitted on existing or proposed structures in any redevelopment area district.

8. Area and setback requirements.

   a. If the proposed antenna(s) will be supported by a new wireless telecommunication tower:

      i. The proposed antenna(s) and proposed supporting tower and ancillary related electronic equipment shall be located on a land area equal to or larger than one-third the "minimum lot area" specified for the I District;

      ii. The minimum required land area shall either be a separate undeveloped lot or a leased portion of an already developed lot;

      iii. The proposed antenna(s) and proposed supporting tower and ancillary related electronic equipment and any approved building housing the electronic equipment and any approved camouflaging of the tower shall be the only land uses located on the proposed tower site, whether a separate lot or a leased portion of a lot; and

      iv. Excepting for any access driveway into the property, any required landscaping, and any underground utility lines reviewed and approved by the Planning Board as part of the site plan submission, no building structure and/or disturbance of land shall be permitted within 100 feet from any street line, from any other existing or proposed property line, or from any "lease line," provided that if a tower will exceed 100 feet in height, the tower shall be set back from any street line and from any other existing or proposed property line a distance equal to or greater than the height of the tower, except that, in any case the tower shall be required to be setback a minimum distance of only 100 feet from any line demarcating the leased premises.

9. Maximum height.

   a. The maximum height of any proposed antenna extending above any existing building or existing structure shall be the minimum height necessary for the proposed installation to satisfactory operate; and

   b. The height of any proposed new supporting tower shall not exceed 150 feet unless it can be demonstrated by the applicant, to the satisfaction of the Planning Board, that a higher height is necessary for the proposed installation of the antenna(s) to satisfactorily operate and is necessary for the colocation of at least three other carriers on the tower.

10. Design criteria. All applications for wireless communication antennas shall adhere to the following design criteria:

    a. For location on an existing building or structure:

       i. Minor site plan application to the Planning Board shall be required.

       ii. To the greatest extent possible, any antenna(s) located on an existing building shall be surface-mounted on the building façade at the roofline or along the exterior parapet wall so as to reasonably blend in with the architectural features of the building and painted to match the color of the material on which it is mounted, or pole mounted to the back of the parapet wall without horizontal supports.

       iii. Antenna(s) and supporting electrical and mechanical equipment shall be of a color that matches, as closely as possible, the background color of the façade on which it is mounted so as to make the antenna(s) and related equipment as visually unobtrusive as possible.

       iv. All ancillary electronic and mechanical equipment shall be housed either within an enclosed area inside the existing building or on the roof top of the building, provided:

          (A) The height of roof top equipment facilities shall not exceed the height of the tallest accessory rooftop structure such as a stair or elevator housing by more than ten feet, and shall be fully enclosed in a cabinet which shall be constructed of a material and color which will match those of the existing roof top accessory structures, or enclosed in a radio frequency transparent material designed to blend architecturally with the building's design; and

          (B) Documentation by a qualified expert that any existing structure will have sufficient structural integrity to support the proposed antennas and ancillary equipment shall be provided to the Planning Board.

          (C) The roof is at least 35 feet above grade and documentation by a qualified expert that ancillary equipment cannot be physically located inside the building.

       v. Antenna(s), supporting structures, and ancillary equipment and housing shall not be visible from any property or public right-of-way within a historic district, to the greatest extent possible.

vi. Any additional public utility lines and/or cables deemed necessary for the operation of the proposed antenna facility shall be located underground. The applicant shall provide documentation to the Planning Board as to the necessity of the additional lines.

vii. No signage shall be permitted that is visible from adjacent properties or from the public right-of-way.

b. For a new tower:

i. Preliminary and final site plan application shall be required for any proposed new wireless telecommunication tower.

ii. Any proposed new tower shall be a "mono-pole" unless the applicant can demonstrate, and the Planning Board agrees, that a different type of pole is necessary for the colocation of additional antennas on the tower.

iii. Unless otherwise required by the Federal Aviation Administration (FAA) or the Federal Communications Commission (FCC), all towers shall be either constructed of a neutrally colored material or painted a neutral color so as to reduce the visual obtrusiveness. All applicable FAA or FCC standards regarding color or materials that may apply to the proposed tower shall be provided to the Planning Board.

iv. No lighting is permitted on a tower except lighting that is specifically required by the FAA and any such required lighting shall be focused and shielded, to the greatest extent possible, so as not to project towards adjacent and nearby properties. All applicable FAA standards regarding lighting that may apply to the proposed tower shall be provided to the Planning Board.

v. All ancillary electronic and other equipment shall be located within a building or enclosed structure which structure shall meet the following design criteria:

(A) Each provider of wireless communication services located on the site may have a maximum of one cabinet enclosing required electronic equipment, which cabinet shall not exceed 15 feet in height nor more than 250 square feet in area. All such cabinets shall be located within a building which shall not exceed one and one-half stories and 20 feet in height nor 1,000 gross square feet in area.

(B) The building shall use materials, textures, and colors that together with required screening and landscaping will cause it to blend into the natural setting and surroundings, to the greatest extent possible.

(C) Provision for colocation of equipment shall be incorporated into the design of the building/structure.

(D) No electronic equipment shall be designed in such a way as to interfere with any public safety communication.

(E) All equipment shall be automated so that, to the greatest extent possible, the need for on-site maintenance and associated vehicular trips to and from the site will be minimized.

(F) Lighting shall be limited to a single light at the entrance to the building which shall be focused downward.

vi. Landscaping shall be provided between the tower and also between any building or structure used to house ancillary equipment and any public street or residential dwelling unit or residential zoning district in accordance with the following:

(A) Required landscaping shall consist of sufficient density of evergreen planting to effectively screen the view of the tower base and, in addition, sufficient other plantings which may consist of a combination of shrubs and deciduous trees to screen the tower and enhance the appearance of, to the maximum extent reasonably possible, from any surrounding residential properties and from any public street.

(B) Any newly planted evergreen trees shall be at least eight feet high at the time of planting and any newly planted deciduous trees shall be a minimum caliper of three and one-half inches at the time of planting.

(C) No signage shall be permitted except "warning" and/or equipment information signs as deemed necessary or as required by state and/or federal regulatory agencies for safety purposes and are specifically approved by the Planning Board.

vii. Minimal off-street parking shall be permitted as needed to provide maintenance at the site and as specifically approved by the Planning Board.

viii. No antenna shall be located on any tower in order to provide non-cellular telephone service; such service shall be provided via existing telephone lines if available to the site or by the underground extension of telephone lines to the site if necessary.

ix. Any new tower shall be located behind existing buildings and/or natural topographic elevations in order to screen the tower's base from being visible from adjacent properties and from any street right-of-way; to the greatest extent possible, no new tower shall be visible from a public street in any residential district.

x. Towers shall be enclosed by security fencing consisting of eight-foot high one-inch chain link "non-climbable" mesh which shall be fully screened by the required landscaping.

xi. Documentation by a qualified expert that any existing structure will have sufficient structural integrity to support the proposed antennas and ancillary equipment shall be provided to the Planning Board.

11. Radio frequency emissions. Applicants shall provide current FCC information concerning wireless telecommunication towers and Radio Frequency (RF) emission standards to the Planning

Board, whenever applicable. Upon documentation by a qualified expert, proposed wireless communication antenna projects which meet the current FCC standards shall not be conditioned or denied on the basis of RF impact.

12. Removal of abandoned/obsolete antennas and towers.

    a. Any "wireless communication antenna" facility not used for its intended and approved purpose for a period of one year shall be considered "no longer operative" and shall be removed by the responsible party within 60 days thereof.

S. Group Homes. Group homes, containing 12 children or less shall be permitted in all zones where residential uses are permitted subject to the residential standards of the specific zone.

T. Reserved.

U. Satellite Earth Stations.

1. A satellite earth station shall be permitted as an accessory use in all zone districts. Satellite earth stations shall require site plan approval from the Planning Board, except where accessory to a one- or two-family residential use.

2. Performance standards.

    a. No satellite earth station may be placed in the front yard of any lot in the City. A corner lot shall be deemed to have a front yard facing each street.

    b. Receive-only satellite earth stations 36 inches in diameter or less shall be located on the roof. Receive-only satellite earth stations greater than 36 inches in diameter shall be placed on a lot only in the rear yard; provided, however, that on a clear and convincing showing by an applicant that a reasonably satisfactory signal cannot be obtained from a rear yard location, the Board may permit the antenna to be located in the side yard, and if such signal cannot be obtained in either rear or side yard, the Board may permit the antenna to be located on the roof of any principal or accessory building on the lot.

    c. A transmit/receive satellite earth station shall be placed on the roof of the principal building of the lot; provided, however, that on a clear and convincing showing by an applicant that this requirement is impracticable or would cause undue hardship, the Planning Board may permit the antenna to be located in the rear yard of the lot. If a ground-mounted transmit/receive-type antenna is proposed, the site plan shall include the proposed location of a protective fence, a minimum of four feet in height, surrounding the antenna on all sides. The proposed fence shall be constructed in accordance with the fence provisions of this Chapter.

    d. All satellite earth stations shall not be closer to the side property line than a distance equal to the diameter of said antenna or side yard setback requirement for the principal structure on the lot, whichever results in the greatest setback.

e. All satellite earth stations shall not be closer to the rear property line than a distance equal to the diameter of said antenna or rear yard setback requirement for the principal structure on the lot, whichever results in the greatest setback.

f. When mounted on the ground, the overall height from the surrounding ground level to the lowest point of the antenna shall not exceed two feet, except in instances where additional clearance is needed to satisfactorily receive and/or transmit signals. No ground-mounted satellite earth station shall exceed 12 feet in height, as measured from the average grade of the base of the antenna to the highest point of the antenna.

g. Roof-mounted antennas.

i. Flat roofs and mansard-style roofs. No roof-mounted satellite earth station may extend above the roofline more than nine feet six inches when mounted on a flat roof or mansard-style roof. However, upon a showing that such a roof-mounted antenna will not receive adequate reception under the restrictions of this subsection, the minimum height necessary for reasonable satisfactory reception my be allowed. Roof-mounted antennas on a flat roof shall be located in the center of the roof structure to reduce visibility.

ii. All other style roofs. No roof-mounted satellite earth stations may extend above the highest point of the roof more than three feet when mounted on all other style roofs, and the roof-mounted satellite earth station must be located on the portion of the roof facing the rear yard or, if this would unreasonable limit signal reception, the side yard. However, upon a showing that such a roof-mounted antenna will not receive adequate reception under the restrictions of this subsection, the minimum height necessary for reasonably satisfactory reception may be allowed.

h. All satellite earth stations shall be of the mesh type only, with not more than 85 percent of the surface being solid.

i. All satellite earth stations shall be painted a solid, dark, nonmetallic, non-glossy color if ground mounted. Roof-mounted antennas mounted on a flat roof or mansard-style roof shall be painted a solid, dark, nonmetallic, nonglossy light to medium gray. When mounted on all other style roofs, the satellite antenna shall be painted the color of the surface to which it is attached.

j. The ability of the applicant to install a satellite earth station in an unobtrusive location and to minimize the visual and health impacts on neighboring properties shall be a major factor in determining whether or not a permit is issued.

k. The number of allowable satellite earth stations is as follows:

i. For single-family and two-family dwellings, one per building.

ii. For attached dwellings, patio homes and duplex, townhouse and multifamily dwellings, one per building.

iii. For all other uses permitted in residential zones not specifically provided for otherwise (e.g., schools, churches, nursing, homes, etc.), one per building.

l. The satellite earth station may only be used for occupants of the building located on the property.

m. When the use of a satellite earth station is abandoned it shall be removed.

n. Satellite earth stations may not be mounted on a portable or movable structure, such as a trailer.

o. To the extent permitted by law, no satellite earth station shall be located on or abutting any property which is located in the National or State Register of Historic Places.

p. No satellite earth station shall be erected on a public utility easement without the consent of the easement holder.

q. The proposed earth satellite station shall be the smallest commercially available equipment based on the current technology so as to minimize the visual impact on the surrounding areas.

r. The satellite earth station may not be used as a sign.

s. All wiring or connecting cables between the satellite earth station and the principal building on the site shall be buried underground.

t. Screening. Ground-mounted antennas shall be screened as to minimize visibility from public streets and adjoining properties. Screening shall be accompanied by the installation of landscaping and/or fencing or in the form of a wall or structure enclosing the antenna. The species, quantity, size and spacing of plant materials shall be specified on the site plan. In order to reduce the height of plant materials, soil berms may be used in conjunction with the proposed landscaping. Any walls or structure shall be constructed of plastic, fiberglass, or other approved materials which will not impede the function and operation of the antenna. Any walls or structures shall be constructed to be consistent with the surrounding site characteristics. The requirements of this subsection shall not impose unreasonable limitations on, or prevent, reception of satellite-delivered signals by satellite and receiving/transmitting antennas or impose costs on the users of such antennas that are excessive in light of the purchase and installation cost of the equipment.

3. Such satellite earth stations, appurtenances, landscaping and fencing shall be kept and maintained in good condition.

V. Nonconforming Uses, Structures and Lots.

1. Continuance of existing nonconforming uses and structures. Any nonconforming use or structure which lawfully existed at the time of the passage of this Chapter may be continued, and any legally existing nonconforming building or structure may be reconstructed or structurally altered, but only in accordance with the requirements of this Chapter. Land on which a nonconforming use or structure is located shall not be reduced in size.

2. Abandonment. A nonconforming use of a building or land, which has been abandoned, shall not thereafter be revived. A rebuttable presumption of intention to abandon a nonconforming use shall arise whenever any of the following circumstances are found to exist:

   a. The owner has made representations in any public forum that the (non-conforming) use of the property has been abandoned; or

   b. The intent to abandon is manifested by the conduct and/or statements of the owner and is evidenced by an external act or omissions to act, which is consistent with such intent and contrary to any interest in preserving or continuing the non-conformance; or

   c. The property is vacant and is not the subject of any current development approvals and has been vacant and substantially unused and inactive for a period of 12 consecutive calendar months.

   d. The characteristic equipment and furnishings of the non-conforming use have been removed from the premises and have not been replaced by similar equipment within 12 months, unless other facts show intention to resume the non-conforming use; or

   e. Such non-conforming use has been replaced by a conforming use.

3. Alteration, extension or enlargement of non-conforming use or structure.

   a. A non-conforming use of any building, structure or land shall not be increased, enlarged, extended or changed in any manner whatsoever.

   b. No building or structure in which a nonconforming use exists shall be enlarged, extended or structurally altered in any manner, provided, however, that:

      i. Nothing herein shall prevent the repair and maintenance of any building wherein there exists a non-conforming use, provided that such maintenance and repair does not in any way constitute or result in a further extension of a non-conforming use.

      ii. Alterations and improvements which do not constitute or require structural changes may be in or to a building wherein a non-conforming use exists, provided that such non-conforming use will not be increased, extended or enlarged thereby.

      iii. Nothing herein shall prevent the strengthening or restoration to a safe and lawful condition on any part of any building which is non-conforming.

   c. A non-conforming use changed or altered to a conforming use may not thereafter be changed back to a non-conforming use.

4. Restoration.

   a. In the event that the owner and Zoning Officer are unable to agree with respect to any non-conforming structure or use which has been damaged by fire, explosion, flood, windstorm or act of God, or condemned, said structure shall be examined by the following three

people: the Zoning Officer; the owner or architect or engineer selected by the owner; and a third person agreed to by the Zoning Officer and the owner whose fee shall be agreed to and shall be paid in equal portions by the City and the owner. If in the opinion of a majority of the above three people the damage or condition warranting condemnation is greater than 50 percent of the value of replacing the entire structure, the structure or use shall be considered completely destroyed and may be rebuilt to the original non-conforming structure or use specifications only upon approval of a use variance as provided by state statute.

b. In the event of a condemned structure, or where the damage is less than 50 percent of the value of replacing the entire structure in the opinion of the majority of the above three people, the non-conforming structure or use rebuilt and the property used for the same nonconforming structure or use, provided that it does not exceed any height, area and volume of the original structure, the site plan application shall be filed within 90 days of the receipt of written notice of the determination of damage by the above three people and the reconstruction shall commence within one year and 90 days from the date the building was damaged or condemned and the reconstruction shall be carried on without interruption.

c. In the event of a condemned structure, or where the damage is less than 50 percent of the value of replacing the entire structure in the opinion of the majority of the above three people, the non-conforming structure or use may be rebuilt and the property used for the same nonconforming structure or use, provided that it does not exceed any height, area and volume of the original structure, the site plan application shall be filed within 90 days of the receipt of written notice of the determination of damage by the above three people, and the reconstruction shall commence within one year and 90 days from the date the building was damaged or condemned and the reconstruction shall be carried on without interruption.

d. The total value of the structure shall be based on the current cost of replacing those portions damaged or condemned to their original status plus the current cost of replacing the remaining usable elements of the structure. The percent damaged shall then be current replacement costs of the portion damaged or condemned computed as a percentage of the current total replacement cost of the entire structure.

5. Nonconforming lots.

a. Any existing lot which does not meet the minimum lot size, or a structure which violates any yard requirements, may have additions to the principal building and/or construct an accessory building without an appeal to the Board of Adjustment, provided that: the total permitted lot and building coverage is not exceeded; the accessory building and/or any addition to the principal building do not violate any other requirements of this Chapter such as, but not limited to, height, setback and parking.

b. Any vacant lot existing at the effective date of adoption or amendment of this Chapter whose area or dimensions do not meet the requirements of the district in which the lot is located may have a building permit issued for a use permitted for that zoning district without an appeal to the Board of Adjustment, provided that the building and lot coverage limit is not exceeded, parking requirements are met and the yard and height provisions are met and provided no adjacent lot is in common ownership.

V.1. Agriculture.

1. Community gardening: Shall be permitted in all zones and redevelopment plan areas, and it is exempt from site plan approval. When community gardening is done on city owned land, it is subject to the Jersey City "Adopt-A-Lot" Program standards and requirements.

2. Commercial agriculture: Shall be permitted in all commercial, industrial and mixed use redevelopment plan area zones. Commercial greenhouses shall be subject to the maximum, but not the minimum, height regulations of the zone they are located within. Greenhouses shall be required to meet minimum setback requirements of two feet for each side yard, five feet for the rear yard and five feet for the front yard.

3. Rooftop gardens and raised planters: Shall be permitted in all zones and redevelopment plan areas, and shall be exempt from setback requirements and site plan approval.

W. Green Roofs.

1. Green roofs shall be exempt from the rooftop area limit of 20 percent for rooftop appurtenances, as per Section 345-60.G.2.

2. Green roofs shall be exempt from site plan approval, unless their installation is part of a project that exceeds the threshold for Site Plan review as per Section 345-16.

3. Ancillary green roof equipment and structures, including but not limited to the installation of a greenhouse, shall be subject to the maximum height for exceptions for roof appurtenances, as is outlined in Section 345-60.G.1. of the Land Development Ordinance.

X. Café - Category Two, Restaurant.

1. Conditional use permitted in all districts, except on the east side of Washington between Sussex and Morris, but to include the corner properties on that block.

   a. Shall only be located where there is an existing legal storefront.

   b. In no instance shall alcohol be served or consumed on premises.

   c. In no instance shall a hooded ventilation system, exhausting outside the building, be permitted.

   d. Seating shall be limited to no more than 20 seats total, both inside and outside.

   e. In no instance shall rear yard seating be permitted.

   f. In no instance shall food preparation create grease-laden vapors.

   g. Garbage receptacles shall be kept within the building for storage, so that it is not stored on any street, sidewalk, areaway, front yard or within any public right-of-way. The owner shall provide for the daily collection, haulage and disposal of their own refuse with a private contractor, pursuant to Sections 287-6, 287-7, 287-8, and 287-9.

h. Café shall not stay open any later than 10:00 p.m., and not open to the public before 5:00 a.m.

Y. Art Gallery.

1. Permitted in all existing non-residential spaces or zoned non-residential spaces. In no instance shall an art gallery be considered a theater.

2. Studio workspace is prohibited where not already permitted.

3. All noise and entertainment shall be regulated by Chapters 157 (Entertainment License) and 222 (Noise) of the Jersey City Code.

4. Signage shall be regulated by Section 345-68. The type and size of the signage shall be limited to the retail use signage standards for the zone where the space exists. If there are no applicable retail standards, signage shall be limited to a maximum six square feet.

5. Any work on a building which is an individual landmark or is within a historic district shall first be subject to approval from the Historic Preservation Commission under the provisions of Section 345-30, Historic preservation review procedures.

Z. Short-Term Rental. Short term rentals are permitted as art accessory use to a permitted principal residential use in all zoning districts and redevelopment plan areas where residential uses are permitted.

§§ 345-60.1—345-60.4. Reserved.

§ 345-60.5. Cannabis establishment and distributor regulations. [Added 10-13-2022 by Ord. No. 22-084; amended 1-25-2023 by Ord. No. 23-003; 10-25-2023 by Ord. No. 23-103; 4-23-2025 by Ord. No. 23-078]

1. Purpose. Pursuant to N.J.S.A. 24:6I-45(a) ("State Law"), Jersey City may enact ordinances governing the number of cannabis establishments as well as the location, manner, and times of operation of these establishments. The purpose of this chapter is to regulate those zones and redevelopment plan districts which shall permit cannabis establishments and distributors as principal uses to promote the public health, safety, morals, and general welfare.

2. Cannabis Establishments and Distributors subject to a Class 1, 2, 3, 4 licenses shall be permitted principal uses in all industrial zones, light industrial zones or industrial overlays, Commercial/Automotive (C/A) zone, Highway Commercial Zones (HC), as well as any structure in all zone districts and redevelopments plans which industrial, light industrial, warehouse, auto repair garage, or auto body shop is deemed as a pre-existing use.

3. Cannabis Establishments subject to a Class 5 (Cannabis Retailer) license shall be permitted principal uses in Neighborhood Commercial (NC), Residential Commercial District 2 (RC-2), Commercial/Automotive (C/A), Highway Commercial (HC), Waterfront Planned Development (WPD), Neighborhood Commercial 2 (NC-2), Neighborhood Commercial 3 (NC-3), Port Industrial (PI), or Industrial (I).

4. Cannabis Establishments subject to a Class 5 (Cannabis Retailer) license shall be permitted principal uses in any district, zone, overlay, or subdistrict of a Redevelopment Plan where retail sales of goods and services is a permitted principal use.

5. Cannabis Consumption Areas shall be permitted accessory uses wherever Cannabis Retailers are permitted principal uses.

§ 345-61. Performance standards. [Added 10-13-2022 by Ord. No. 22-084]

A. Air Pollution.

1. General. No substance shall be emitted into the atmosphere in quantities which are injurious to human, plant or animal life or to property or which interfere unreasonably with the comfortable enjoyment of life and property anywhere in the City. All provisions of Title 7, Chapter 27 of the New Jersey Administrative Code, (N.J.A.C.), or the regulations contained in this section, whichever shall be more stringent, shall apply.

2. Smoke. In any non-residential zone, no smoke, the shade or appearance of which is darker than No. 1 on the Ringelmann Smoke Chart, shall be emitted into the open air from any fuel-burning equipment; provided, however, that smoke emitted during the cleaning of a firebox or the building of a new fire, the shade or appearance of which is not darker than No. 2 on the Ringelmann Smoke Chart, may be permitted for a period or periods aggregating no more than three minutes in any 15 consecutive minutes. Smoke emissions from the combustion of fuel and mobile sources and from stationary internal combustion engines shall not exceed the limits set forth in N.J.A.C. 7:27.

3. No open burning shall be permitted in any district.

4. Odors. In any zone, no odorous material may be emitted into the atmosphere in quantities sufficient to be detected.

B. Wastes.

1. Liquid wastes. No liquid waste shall be discharged into the watercourse in the City without all necessary permits from the New Jersey Department of Environmental Protection (NJDEP). No liquid waste shall be discharged into the public sewage collection and disposal system unless the appropriate City official shall have first investigated the character and volume of such wastes and shall have certified that the City will accept the discharge of such waste material into the system. The applicant shall comply with any requirements of said officials, including the pretreating of such wastes, the installation of processing methods, separation or screening of wastes, control of pH and other methods of improving such wastes prior to discharge, as a condition of approval of such facilities.

2. Solid waste. Each property owner shall be responsible for:

a. Adequate and regular collection and removal of all refuse, except where the City assumes such responsibility. No materials or wastes shall be deposited upon a lot in such a manner that they can be transferred off the lot, directly or indirectly, by natural forces such as precipitation, evaporation or wind.

b. Compliance with all applicable provisions of the NJDEP.

c. Compliance with all provisions of Title 7, Chapter 26, of the N.J.A.C., where applicable.

d. No accumulation on the property of any junk or other objectionable materials except in designated trash receptacles.

e. All materials or waste which might create a pollutant, a hazard, or be attractive to rodents or insects shall be stored indoors and/or be enclosed in appropriate containers to eliminate such pollutant potential, hazard or attraction.

C. Noise. All applications shall comply with the provisions of N.J.A.C. 7:29.

D. Vibration. In any zone, vibrations discernible without instruments at the measuring location shall not be permitted.

E. Glare. No single standard for glare is promulgated in this Chapter due to the impracticality of establishing such standards. It is the intent of these performance standards to ensure that both direct and indirect glare, to the extent possible, are eliminated or that activities producing such glare are carried on within a structure. Necessary glare-producing devices such as roadway and walkway lighting shall be designed, constructed and maintained in such a manner as not to be a nuisance to surrounding uses.

F. Temperature Change. Any use or process shall not produce a temperature change greater than three degrees Celsius at the measuring location.

G. Fire and Explosive Hazards. If it appears that any proposed use, structure, process or resulting product or material may constitute a fire or explosion hazard, the Board shall require the applicant to supply proof of:

1. Approval of the use, structure, process or resulting product or material from the State Department of Labor indicating that adequate safeguards against fire and explosion have been taken or installed.

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H. Electricity. Electricity and electronic equipment shall be shielded so there is no interference with any radio or television reception at the lot line or beyond or in the case of multi-family dwellings, beyond the operator's dwelling unit, as a result of the operation of such equipment.

§ 345-62. Residential design standards. [Added 10-13-2022 by Ord. No. 22-084]

A. The design and layout of buildings and parking areas shall provide an aesthetically pleasing appearance and efficient arrangement compatible with the character of surrounding development. To the greatest extent possible, new residential development in existing neighborhoods shall be integrated with the housing units in the adjacent area. New development in existing neighborhoods shall incorporate distinctive architectural characteristics of surrounding development, such as window and door detailing, decoration, material, roof style and pitch, height and porches.

B. All additions, alterations and accessory buildings shall be compatible with the principal structure, and shall share a common architectural theme.

C. Building proportions shall be compatible with the predominant proportional relationship along a street. Mass, scale, height, orientation, porches, entries and parking shall be consistent with the neighborhood.

D. Roof line design shall be consistent with the existing block or neighborhood patterns where appropriate. Roof design shall be an integral part of the overall building design.

E. Rooftop, outdoor living spaces such as decks and gardens shall be integrated into the building architecture. Stepbacks, parapets or other features shall be used to provide privacy and screening.

F. Monotonous uninterrupted expanses of walls shall be avoided. Façade articulations such as recesses, projections, columns, openings, ornamentation, decorative materials and colors shall be used to add texture and detail.

G. Materials and colors shall be compatible with the neighborhood character, streetscape and adjacent structures.

H. Building entries, windows and other openings shall be compatible in location, scale and pattern to other structures on the street.

I. Stilted buildings are prohibited.

J. Where garages must be located facing streets, they shall whenever feasible be minimized by placement at a lower elevation than the street or recessed within the building façade and framed by balconies, porches, trellises or other architectural elements. Garage doors shall not dominate the front façade.

K. Mechanical equipment, whether mounted on the roof, within the building, or on the ground shall be screened from view. All screening devices shall be compatible with the material, architecture and color of the adjacent structures. Electrical transformers shall be underground or housed within the building.

L. Window and door security grates shall be as inconspicuous and as complementary to the front façade facing a street as possible and shall not be permitted above the first floor or parlor floor of any façades facing the street. No security or decorative grates shall be permitted to enclose porches.

M. Fire escapes shall be constructed only against the side or rear wall of a building and shall be located and/or screened so as not to detract from the appearance of such buildings.

N. Cellar apartments are not permitted.

O. Trash containers and outdoor storage areas shall be screened from public streets, pedestrian areas and neighboring properties. The screen shall be designed to be compatible with the architectural character of the development and shall be constructed of durable materials.

P. Recycling Facilities for New Multi-Family Housing Developments. There shall be included in any new multi-family housing development that requires site plan approval an indoor or outdoor recycling area for the collection and storage of residentially generated recyclable materials. The dimensions of the recycling area shall be sufficient to accommodate recycling bins or containers which are of adequate size and number and which are consistent with anticipated usage and with current methods of collection in the area in which the project is located. The recycling area shall be conveniently located for the disposition of source-separated recyclable materials by residents of the multi-family housing development, preferably near, but clearly separated from, a refuse dumpster. The recycling area shall be well lit and shall be safely and easily accessible by recycling personnel and vehicles. Collection vehicles shall be able to access the recycling area without interference from parked cars or other obstacles. Reasonable measures shall be taken to protect the recycling area, and the bins or containers placed therein, against theft of recyclable materials, bins or containers. Any bins or containers which are used for the collection of recyclable paper or cardboard and which are located in an outdoor recycling area shall be equipped with a lid, or otherwise covered, so as to keep the paper or cardboard dry. Signs clearly identifying the recycling area and the materials accepted therein shall be posted adjacent to all points of access to the recycling area. Individual bins or containers shall be equipped with signs indicating the materials to be placed therein. Landscaping and/or fencing shall be provided around any outdoor recycling area and shall be developed in an aesthetically pleasing manner.

Q. Conversions of first floor commercial uses to a dwelling unit:

1. The design features of the storefront architecture shall be preserved to the maximum degree possible.

2. Storefront display windows shall be maintained. Residential privacy may be achieved by shades and curtains, blinds and the use of translucent glass such as sandblasted or etched glass, patterned glass and privacy glass.

3. If the existing storefront incorporates a second tier of windows behind the storefront glass this second layer of glass may be clear or obscured.

4. Solid bulkheads shall not exceed two-fifths of the first floor height.

5. Original bulkhead designs should be preserved to maintain the historic character of the street. Original materials to be maintained included wood, cast iron, cast aluminum, pigmented structural glass, terra cotta, porcelain enamel, ceramic tile, decorative brick, marble and granite.

6. For security, the use of retractable security grilles and solid wooden doors is preferred to external grilles.

7. If shielding of sunlight is a concern, awnings may be mounted above or below the transom.

8. Recommended replacement windows for the transom area include hopper, sliding and awning windows.

9. Recommended replacement windows for the display area include fixed glass and casement windows.

10. Recessed entries shall be maintained and "outer" doors shall not be added.

R. All sidewalks shall be tinted Scofield charcoal grey or equivalent.

S. Both primary and secondary front façades shall be designed with quality materials and details, such as masonry.

T. Front yard regulations for landscaping and fencing shall apply to both primary and secondary front façades.

U. Bird Friendly Design Standards. **[Added 3-11-2026 by Ord. No. 26-014]**

1. Applicability.

a. These standards shall apply to new construction, rehabilitation, and additions that require site plan approval.

b. These standards are encouraged for new construction, rehabilitation, and additions that do not require site plan approval except when bird hazard installations are proposed. In the instance that bird hazard installations are proposed, 345-62 2.a.ii. shall apply.

c. These standards shall be waived for new construction, rehabilitation, and additions in which 100% of dwelling units are designated as deed-restricted affordable units.

2. Building materials.

a. Bird friendly materials shall be utilized on the following:

i. On all building facades, and any associated openings, from ground level up to 85 feet above grade.

1. Materials other than bird friendly materials shall not exceed an aggregate of ten square feet within any ten feet by ten feet square area of exterior wall area below 85 feet above grade.

2. Where transparency of windows is required from ground level up to 85 feet, materials with a maximum Threat Factor less than or equal to 30 can be utilized.

ii. On all bird hazard installations.

1. Bird hazard installations is defined in 345-6 and include but are not limited to awnings, railings, noise barriers, wind barriers, skyways or skywalks, pedestrian bridges, all floors of building connectors, atriums, outside corners where a bird can see in one side of the building and out the other within 30 feet of the corner, all interior corners within 30 feet of the corner, glazing adjacent to courtyards, and any portion of a building façade adjacent to a green roof or landscape element up to 24 feet above the surface of the green roof.

3. Reference and guidance.

a. It is encouraged to use one or more of the following sources for guidance:

i. American Bird Conservancy https://abcbirds.org/

1. American Bird Conservancy's Downloadable Resources including the American Bird Conservancy's Prescriptive Rating Criteria https://abcbirds.org/glass-collisions/resources/

2. American Bird Conservancy's Product & Solutions Database https://abcbirds.org/glass-collisions/products-database/

ii. Bird Friendly Building Design & Construction Requirements Guidance Document, NYC Buildings, November 2020 Version 1.0 (or subsequent version) https://www.nyc.gov/assets/buildings/bldgs____bulletins/bird____friendly____guidance____document.pdf

§ 345-63. Non-residential design standards. [Added 10-13-2022 by Ord. No. 22-084]

A. The height and scale of new development shall be compatible with the surrounding development.

B. In retail structures, storefront windows shall cover a minimum of 60 percent of the ground floor façade area. On corner lots, the secondary storefront façade shall be consistent with the alignment, location and amount of glazing of the primary storefront window façade.

C. Blank walls shall be avoided at the ground floor level. Façade articulations such as windows, trellises, recesses, projections, ornamentations, color, arcades, changes of material, landscaping and other features shall be used to lessen the impact of blank walls.

D. Stilted buildings are prohibited.

E. Trash containers and outdoor storage areas shall be screened from public streets, pedestrian areas and neighboring properties. The screen shall be designed to be compatible with the architectural character of the development and shall be constructed of durable materials.

F. The primary access to the building shall be from the front. If necessary, the rear of the building shall be enhanced where appropriate to improve public access from parking lots and service alleys.

G. In developments requiring loading areas, service and loading areas shall be separated from main circulation and parking areas and away from public streets.

H. Clearly defined, highly visible entrances shall be provided through the use of features such as canopies, awnings, arches, decorative doors and integral planters.

I. Store window security grates shall be of open mesh design except the lowest one foot may be of solid construction.

J. Fire escapes shall be constructed only against side or rear walls of the building.

K. Rooftop/mechanical equipment shall be screened with visual barriers from adjacent properties, public roadways, parks and other public areas. The architectural design of buildings shall incorporate design features that screen, contain and conceal all heating, ventilation and air conditioning units. All screening devices shall be compatible with the architecture and color of the principal structures.

L. Electrical transformers shall be underground or housed within the building.

M. Recycling and solid waste disposal areas shall be enclosed. These enclosures shall be screened with landscaping where feasible. Locations shall be conveniently accessible for trash collection and maintenance and shall not block access drives during loading operations.

N. Sight Triangles. On a corner lot in any district, sight triangles shall be required in which no grading. planting or structure shall be erected or maintained more than three feet above the street centerline or lower than 12 feet above the street centerline except that intersections controlled by a traffic signal and intersections having either a stop sign or flashing light or where the structure is set back at least 12 feet from the curbline shall not require a sight triangle. Traffic control devices, street name poles and utility poles shall be exempt.

O. All sidewalks shall be tinted Scofield charcoal grey or equivalent.

P. Both primary and secondary front façades shall be designed with quality materials and details, such as masonry.

Q. Front yard regulations for landscaping and fencing shall apply to both primary and secondary front façades.

R. Bird friendly design standards. **[Added 3-11-2026 by Ord. No. 26-014]**

1. Applicability.

a. These standards shall apply to new construction, rehabilitation, and additions that require site plan approval.

b. These standards are encouraged for new construction, rehabilitation, and additions that do not require site plan approval except when bird hazard installations are proposed. In the instance that bird hazard installations are proposed, 345-62 2.a.ii. shall apply.

c. These standards shall be waived for new construction, rehabilitation, and additions in which 100% of dwelling units are designated as deed-restricted affordable units.

2. Building materials.

a. Bird friendly materials shall be utilized on the following:

i. On all building facades, and any associated openings, from ground level up to 85 feet above grade.

1. Materials other than bird friendly materials shall not exceed an aggregate of ten square feet within any ten-foot by ten-foot square area of exterior wall area below 85 feet above grade.

2. Where transparency of windows is required from ground level up to 85 feet, materials with a maximum Threat Factor less than or equal to 30 can be utilized.

ii. On all bird hazard installations.

1. Bird hazard installations is defined in 345-6 and include but are not limited to awnings, railings, noise barriers, wind barriers, skyways or skywalks, pedestrian bridges, all floors of building connectors, atriums, outside corners where a bird can see in one side of the building and out the other within 30 feet of the corner, all interior corners within 30 feet of the corner, glazing adjacent to courtyards, and any portion of a building façade adjacent to a green roof or landscape element up to 24 feet above the surface of the green roof.

3. Reference and Guidance.

a. It is encouraged to use one or more of the following sources for guidance:

i. American Bird Conservancy https://abcbirds.org/

1. American Bird Conservancy's Downloadable Resources including the American Bird Conservancy's Prescriptive Rating Criteria https://abcbirds.org/glass-collisions/resources/

2. American Bird Conservancy's Product & Solutions Database https://abcbirds.org/glass-collisions/products-database/

ii. Bird Friendly Building Design & Construction Requirements Guidance Document, NYC Buildings, November 2020 Version 1.0 (or subsequent version) https://www.nyc.gov/assets/buildings/bldgs____bulletins/bird____friendly____guidance____document.pdf

§ 345-64. Public or private common open spaces design standards. [Added 10-13-2022 by Ord. No. 22-084]

A. All open space shall incorporate several elements such as lawn, landscaping including shrubbery and trees, attractive paving materials, street furniture, decorative lighting, low walls, fountains and other architectural and artistic amenities so as to produce and provide a pleasant environment at all levels and to complement the surrounding buildings.

B. Adequate lighting shall be provided to promote a sense of security in the open space.

C. Open spaces shall be so located as to provide for maximum usability and to create a harmonious relationship between buildings.

§ 345-65. Buffers. [Added 10-13-2022 by Ord. No. 22-084]

A. Zoning Standards. Any parking, loading, outside equipment and storage area that adjoins a street open space or residential use shall have a landscaped buffer area along all applicable property lines, except in those instances where a building intervenes and where it impedes safe vehicular and pedestrian traffic.

B. Design Standards.

1. No activity, storage of materials or parking of vehicles shall be permitted in the buffer area except access driveways, directional signs, and permitted signs.

2. Any buffer area shall be at least three feet in depth and planted and maintained with massed evergreens, deciduous trees and shrubs of such species and sizes which will produce within two growing seasons a living screen at least four feet in height and of such density so as to obscure throughout the full course of the year the glare of automobile headlights emanating from the premises. All plantings shall be in accordance with 345-66.B. The screen plantings shall be placed so that at maturity they will not protrude across any street or property line and so that a clear sight triangle shall be maintained at off street intersections and at all points where private accessways intersect public streets.

3. Where spatial restrictions or traffic safety concerns do not provide sufficient width for screen planting, a four-foot high decorative fence or brick wall or any combination of plantings and walls or decorative fences may be provided.

§ 345-66. Landscaping. [Added 10-13-2022 by Ord. No. 22-084]

A. General Standards.

1. All areas not occupied by buildings or structures shall be appropriately landscaped in addition to required City trees as defined in Chapter 321 and buffer areas (see maximum lot coverage requirement in each zone).

   a. Street trees shall be required for all development in accordance with the standards found under Section 345-66.C except where it can be demonstrated to the Municipal Forester that it is not possible to plant trees for one of the following reasons: (1) constraints such as utility lines; (2) danger to public health safety or property; (3) the project location will not allow for the healthy growth of a street tree.

   b. If replacement of removed City trees as defined in Chapter 321 or planting of new City trees is determined not to be practical at a given location by the Municipal Forester, the applicant will be required to make a monetary contribution to the City for each tree equivalent to the replacement cost per tree, as determined annually by the Division of Parks and Forestry.

2. Front yard landscaping.

   a. At least 60 percent of the area between the building line and street line on residential lots shall be landscaped, provided, however, that for new construction in the R-1 District, or for construction of three-family detached housing in the R-3 District, which includes either a front garage and driveway, or driveway access through the front yard to a side or rear yard parking area, or rear yard garage in lieu of a front yard garage access, a minimum of 30 percent of the area shall be landscaped.

   b. In the event of removal of front yard landscaping existing at the time of the adoption of this ordinance for rehabilitation, or required repair/replacement, or for any other purpose, restoration of the originally landscaped area is required in accordance with percentage requirements of subsection A.2.a of this section.

3. Surface parking lots, principal or accessory. All surface parking lots must adhere to the requirements of Chapter 345-65. In outdoor parking lots with ten or more spaces not less than five percent of the parking area shall be suitably landscaped and maintained with trees. At least one shade tree is required to be planted for every ten parking spaces. Planting methods and materials for shade trees shall be according to current Jersey City Forestry Standards, published by the Division of Parks & Forestry. The landscaping shall be disbursed throughout the parking area bounded by the limits of curbing or from the outside perimeter of the paved parking area.

B. Design Standards for On-Site Landscaping.

1. Landscaping for all uses shall define entrances to buildings and parking lots, define the edges of various land uses, provide transition between neighboring properties and provide screening for loading and equipment areas to the maximum extent feasible.

2. All plant materials shall be suitable for the site, free of disease and insects, and shall conform to the American Standard for Nursery Stock (ASNS) of the American Nursery and Landscape Association for the quality and installation of that plant.

3. Plants listed on any Jersey City or state government list of invasive or prohibited species shall not be installed and shall not be counted towards meeting any landscaping requirement.

4. In all areas where landscaping is required, a minimum of 75 percent of the surface area shall be covered by living plants, rather than mulch, bark, gravel, or other non-living material.

5. The use of synthetic vegetation (plastic plants, etc.) shall not be used to meet any of the required landscaping or buffering standards.

6. In the Highway Commercial and Community Automotive zones, at least one-half of the required landscaping shall be located along the street right-of-way.

7. Landscaping shall be in scale with adjacent structures and be of appropriate size at maturity to accomplish its intended purpose.

8. Foundation plantings are recommended to soften the edge between the parking lot and the structure.

9. The use of non-invasive vines and climbing plants on buildings and the perimeter of garden walls is encouraged.

10. Plants in containers shall be used for enhancement of sidewalk shops, plazas and courtyards.

11. Landscaping shall not obstruct visibility for vehicular and pedestrian traffic at all 90-degree angle intersections of public rights-of-way and private driveways.

12. All plantings shall be with species with proven resistance in an urban environment.

13. Use of shade trees is encouraged to minimize the temperature and purify the City's air and water.

14. Rain gardens and/or other practices that mimic natural hydrology and increase effective perviousness are encouraged.

15. Green roofs and green walls are encouraged citywide. Such features shall be exempt from roof coverage and lot line setback requirements of subsections 345-60.D and H.

C. Design Standards for Street Trees.

1. Street trees shall be required for all development projects (including all new construction and all rehabilitation projects subject to site plan review. Project developers shall provide one street tree, either new or existing, for every 25 feet of street frontage.

2. Tree removals and plantings for development projects shall follow the requirements of Chapter 321.

3. All new City trees shall be selected from the most current Recommended Street Tree List of the Jersey City Forestry Standards, as published and undated by the Division of Parks and Forestry and shall receive site and species approval from the Division of Parks & Forestry.

4. Planting methods and materials and tree-pit specifications shall be according to current Jersey City Forestry Standards, as published by the Division of Parks & Forestry.

5. With regard to maintenance, the provisions of Section 345-75 shall apply.

§ 345-66. Green area ratio (GAR) standards. [Added 10-13-2022 by Ord. No. 22-084]

A. Purpose.

1. Green area ratio (GAR) requirements are green infrastructure and resilient design requirements. These requirements are calculated as a green area ratio (GAR) as explained below.

2. The purpose of GAR is to integrate sustainable landscape elements into site design to address environmental concerns citywide.

3. Any zone or Redevelopment Plan which includes a GAR requirement in the bulk standards of the district is subject to the requirements below. Any non-compliance with the standards below necessitates a "c" variance or deviation.

B. Applicability.

1. GAR requirements apply to major and minor site plan applications in addition to projects requiring a variance.

2. Any lot which falls only partially within a zone/redevelopment area subject to GAR requirements shall fully comply with the GAR standards.

3. Any lot which falls within multiple zones, redevelopment areas, or subzones, such as a consequence of a split zoned site or an overlay, shall comply with the GAR standards set forth for the

more restrictive zone/redevelopment area (that is, the zone or area with the higher required ratio), unless less than ten percent of the lot area is within the more restrictive zone/redevelopment area, in which case the secondary zone/redevelopment area requirements shall apply.

4. GAR elements proposed within municipally designated historic districts and landmarks shall be reviewed by the Historic Preservation Commission for appropriateness and compliance with the Secretary of Interior Standards for Historic Properties.

5. Zones: A required level of GAR compliance is established by zone. Zones in the following table require GAR as follows:

Zone/Redevelopment Area	Required ratio
F overlay, subdistrict F-VE	0.50
F overlay, subdistrict F-AE	0.25

C. Exemptions.

1. Applications for signage, wireless communication antennas, or wireless telecommunication towers are exempt from requirements in this subsection.

2. Non-compliance with the required GAR ratio shall result in a "c" variance.

D. Ratio Reductions.

1. Jersey City locally-designated historic districts and landmarks and historic buildings included in State and National Registers of Historic Places, shall be eligible for reduced GAR ratio requirements. Upon submission of a certified letter from a licensed architect or engineer attesting to the fact that the building cannot structurally maintain the weight of either an intensive or extensive green roof, the required GAR shall be reduced by one-half of that which is otherwise required in the zone/redevelopment area in which the property is located.

E. Landscaping Multipliers. Each of the following landscaping and stormwater management elements contribute to a development's overall GAR score. Increased square footage of any element results in a higher calculated score.

To maximize a GAR score, landscape elements may be "layered" in order to qualify for multiple elements in a single feature. For example, a landscaping bed may have 24-inch soils (0.6 multiplier), native ground covers (0.2 multiplier plus 0.1 multiplier bonus), plants two feet at maturity (0.3 multiplier), and new tree canopy 2.6-inch diameter (0.5 multiplier). Each of these elements are eligible for GAR points, to work cumulatively for higher points totals.

1. Multipliers table.

GAR Elements	Multiplier
Landscaped areas with a soil depth of less than 24" (b, c)	0.3
Landscaped areas with a soil depth of 24" or more (b, c)	0.6
Ground covers, or other plants less than 2' tall at maturity (a, b, c)	0.2
Plants, not including grasses, at least 2' tall at maturity (a, b. c)	0.3
Tree canopy for all trees, 2.5" to 6" in diameter (a, c)	0.5

GAR Elements	Multiplier
Tree canopy for new trees 6.1" to 12" in diameter (a, c)	0.6
Tree canopy for new trees 12.1" in diameter and above (a, c)	0.7
Tree canopy for preservation of existing trees 18" to 24" in diameter (c)	0.7
Tree canopy for preservation of existing trees 24" diameter or larger (c)	0.8
Vegetated walls, plantings on a vertical element (b, c)	0.6
Extensive green roof over at least 2" but less than 8" of growth medium (b, c)	0.7
Intensive green roof over at least 8" of growth medium (b, c)	0.8
Permeable/porous/pervious paving or a deck atop at least 6" and less than 2' of soil or gravel	0.4
Permeable/Porous/Pervious paving or a deck atop at least 2' of soil or gravel	0.5
Enhanced tree growth systems (see definitions)	0.4
Bioretention facilities (see definitions)	0.4
Retention or detention tanks (in cubic feet)	0.3
WaterSense certified fixtures (check if all fixtures in kitchen and bath comply)	0.3
Water features (fountains, pools, etc.) using at least 50 percent recycled water, harvested water, and/or gray water*	0.2
Bonuses - the following ratio increases may be applied to above categories	
Native plant species (see § 345-66.1.E.1.a) below) - Items marked with "a"	0.1
Landscaping in food cultivation (see § 345-66.1.E.1.c) below) - Items marked with "b"	0.1
Harvested stormwater irrigation (see definitions) or graywater irrigation system, using at least 50 percent recycled water, harvested water, and/or graywater* - Items marked with "c"	0.2
*Water features must be filled a minimum of 6 months/year **Permeable/porous/pervious paving credits may not exceed 1/3 of the total GAR score	

a. Native plants are determined as listed by The Native Plant Society of New Jersey, specific to Hudson County (see http://www.npsnj.org/pages/nativeplants____Plant_Lists.html). Additional plants not listed but determined to be native shall be considered subject to the written certification of a Licensed Landscape Architect.

b. Additional guidance for appropriate plants (plants for wet locations, shady locations, etc.) can be found in the Rain Garden Manual of New Jersey (see https://issuu.com/rutgerswater).

c. Landscaping in food cultivation shall be subject to Section 345-60.V.1, Agriculture.

d. Street trees within the public right-of-way adjacent to the subject site may be included in the calculations.

e. For trees, caliper measurement of the trunk shall be taken six inches above the ground up to and including four-inch caliper size. If the caliper at six inches above the ground exceeds four inches, the caliper should be measured at 12 inches above the ground.

f. Clump-form and multi-stem trees, above a specified height, may be measured by caliper according to the most recent American Standard for Nursery Stock. The appropriate standard for measurement is one-half the total calipers for the three largest trunks. Shrub-form trees are measured by height only.

g. Height measurement shall be taken from ground level for field grown stock and from the soil line for container grown stock, which should be at or near the top of the root flare.

2. Equivalency table. Certain elements such as trees and individual plantings cannot be calculated by area. As such, the following table provides an area equivalency for these elements.

GAR Landscape Elements	Equivalent Square Footage
Groundcovers, or other plants less than 2 feet tall at maturity	Square footage at maturity
Plants, not including grasses, at least 2 feet tall at maturity*	9
Tree canopy for trees 2.5-6 inches in diameter	50
Tree canopy for trees 6-12 inches in diameter	250
Tree canopy for trees 12-18 inches in diameter	600
Tree canopy for trees 18-24 inches in diameter	1,300
Tree canopy for trees larger than 24 inches in diameter	2,000
*"Plants" include perennials, shrubs, and trees less than 2.5" caliper; calculation is per plant	

F. Compliance.

1. If the proposed project contains ten or more residential units, 20 or more new parking spaces, or 12,000 or more gross square feet of commercial or industrial space, whichever comes first, landscape areas must be designed by a licensed Landscape Architect or engineer. Smaller projects not meeting any of the thresholds above must be designed by a qualified landscape professional (such as licensed landscape architects, certified professional horticulturalists, and certified landscape designers).

2. A certificate of occupancy shall not be issued until a calculated compliance chart, signed by a landscape architect (or qualified landscape professional as permitted in F.1 above) licensed in the State of New Jersey, is provided, or affirming conformance to the GAR regulations and approved plans.

3. Additionally, a maintenance plan shall be provided by plan preparers to both the City and the property owner. This maintenance plan serves as guidance for the property owner to ensure all GAR-related features are maintained by the owner, and informs all property owners in perpetuity that they are obliged to maintain the GAR score at or above the minimum level set in the regulations and/or approval.

4. Should the GAR score fall below the minimum required, a violation may be issued by the Zoning Officer.

5. Compliance formula (calculations worksheet is available).

a. Determine the total lot area.

b. Calculate the area of each proposed landscape element (may need to refer to the equivalency table.)

c. Multiply the area of each landscape element by its assigned multiplier to provide a weighted square footage.

d. Add the weighted square footages of all landscape elements.

e. Divide the sum by the total lot area of the site to provide the project's GAR score.

§ 345-67. Fences and walls. [Added 10-13-2022 by Ord. No. 22-084]

A. Zoning Standards.

1. Location and height standards.

a. Residential districts maximum height.

i. Front yard. Four feet except for parking areas of six spaces or more developed in accordance with the ordinance, then the maximum height shall be six feet;

ii. Side yard. Six feet maximum height;

iii. Rear yard. Eight feet maximum height.

b. Commercial districts maximum height.

i. Front yard. Four feet except for parking areas of six spaces or more developed in accordance with the ordinance, then the maximum height shall be six feet;

ii. Side yard. Six feet maximum height;

iii. Rear yard. Eight feet maximum height.

c. Industrial districts maximum height.

i. All yards. 12 feet.

d. Corner lots. Fences on corners shall maintain clear lines of sight for vehicular traffic and shall be subject to the requirements of sight triangles. On corner lots, the fencing shall have matching fence heights on both frontages.

2. Chain link fences shall not be permitted in the front yard.

3. Vacant lots shall be exempt from the standards listed above. Vacant lots shall be permitted to have six-foot high chain link fence along the front and side yard and eight feet along the rear yard. All chain link fencing is to be removed upon development of the property.

4. Barbed wire/razor wire fencing is prohibited.

B. Design Standards.

1. Fences and walls shall complement the architectural character of the principal building.

2. A finished side of all fences shall face "out" from the property. All structural supporting members of the fence must face the interior portion of the lot and no portion of any at-grade fence may extend beyond or across the property line.

3. For fences on roof deck, a finished side of all fences shall face "out" from the area which it is enclosing.

4. Fence height shall be measured from finished grade. Up to an additional ten percent of height may be added to the maximum permitted fence height in order to accommodate lots with irregular grade.

5. All fences shall be consistent in appearance. Posts are to be separated by equal distances and constructed of fencing material conforming to a definite pattern in size.

6. All gates within any given type of fence shall be of the same material, design, type, height and color as the fence (e.g., a chain link gate may not be attached to a tubular metal fence).

7. No fence shall permanently preclude access to abutting properties for maintenance of the abutting properties. Gates or openings shall be required to be placed in locations where adjoining property owners may require access to the rear of their properties.

8. Gates shall not swing outward into the public right-of-way.

9. Where chain link is permitted in industrial zones, one-inch non climbable vinyl clad fencing shall be used.

10. Wooden board-on-board fencing is recommended for screening and privacy in the rear and side yards, but may not be located between the building line and street line.

11. Solid or perforated, corrugated, or flat sheet metal is prohibited for use as fencing material.

12. Single ply, vinyl slats which are inserted diagonally are prohibited as screening material for fences.

13. Mechanical gates with overhead bars are prohibited.

14. Decorative front yard fences defining a front yard private space shall be provided if the predominant character of the block contains such fencing. The front yard fence must line up with the predominant fence line on the street. No encroachment beyond the predominant fence line shall be permitted.

15. Fences shall only be permitted within the public right-of-way provided such fences are consistent with the established fence line on the street. No fencing shall be permitted in the right-of-way solely for purposes of providing for off-street parking. Such fences must comply with the design standards outlined below.

16. If the fence application is part of any application in front of either Board, the reviewing Board shall review and approve or deny. If the threshold for Board review is not met, the City Planning staff shall review the application and report its findings to the Office of the Construction Code Official, whereupon a construction permit may be issued.

    a. All proposed fences in the public right-of-way must be either wrought iron, mild steel, tubular steel or aluminum, or a combination of brick columns and steel/iron fences. Fences shall be painted and maintained with a dark color to reduce visibility of rust.

    b. Height Restrictions. The height of bars and columns of fences constructed in the public right-of-way shall not exceed 48 inches, as measured from finished grade to the top of the bars or columns.

    c. Size and spacing material.

        i. Minimum width of vertical bars—one-half (½) inch.

        ii. Maximum spacing of bars—four inches.

    d. Freestanding gates. All freestanding gates must swing into the fenced area, not into the public right-of-way.

    e. No fence in a right-of-way shall disturb any existing sidewalk.

    f. The right-of-way inside the fence shall be landscaped.

§ 345-68. Signs. [Added 10-13-2022 by Ord. No. 22-084; 10-25-2023 by Ord. No. 23-103]

A. Exempt Signs.

1. Any public notice or warning required by a valid and applicable federal, state, county or local law, regulation or ordinance.

2. Any sign which is inside a building, not attached to a window or door, and is not readable from a distance of more than three feet beyond the lot line of the lot or parcel nearest to where such sign is located.

3. Holiday lights and decorations with no commercial message.

4. Any sign describing the history of the building with tablets, cornerstones or similar, plaques embedded on the façade below four feet.

5. Traffic control signs on private property, which meet Department of Transportation standards, and which contain no commercial message of any sort.

6. Flags of the United States, New Jersey, the City of Jersey City and flags of foreign nations.

7. Signs or banners advertising public or quasi-public events that are posted with the permission of the City Council or of any person to whom the City Council has delegated this authority according to guidelines set by City Council.

8. Pump mounted fuel price information signs subject to the following:

   a. Only one fuel price informational sign shall be permitted per fuel pump.

   b. Fuel price informational signs shall be limited in size to an area of 216 square inches in accordance with State and Federal regulations.

   c. Each fuel price informational sign shall be affixed directly and firmly to a fuel pump and shall be stationary.

   d. Nothing herein shall be construed to prohibit the advertisement of fuel prices on any other sign meeting the requirements of this section.

9. U.S. Postal Regulation mailboxes.

10. Political signs. Such signs may be displayed for a period of not more than 30 days before the election and not more than three days after the election.

B. Zoning Standards.

1. Individual sign area measurement.

   a. The area of a sign face (which is also the sign area of a wall sign or other sign with only one face) shall be computed by means of the smallest square, circle, rectangle, triangle, or combination thereof that will encompass the extreme limits of the writing, graphic, illustration, picture, symbol or other display, together with any material or color forming an integral part of the background of the sign. For purposes of calculating sign area, any illuminated border including those which may frame a window shall be included in the sign area calculation and used to differentiate the sign from the backdrop or structure against which it is placed. This does not include any supporting framework, bracing or decorative fence or wall when such fence or wall otherwise meets zoning regulations and is clearly incidental to the sign itself.

   b. No sign shall have more than two display faces. The sign area for a sign with two display faces shall be computed by adding together the area of all the sign's faces which are visible from any one point. When a sign has two display faces such that both faces cannot be viewed from any one point at the same time, the sign's area shall be computed by the measurement of the larger of the two faces.

2. In cases where sign standards are not established, standards from the most similar zone and use shall apply.

3. Glazed area. Any glazing in doorways shall be considered part of the glazed area. For purposes of calculating window signs, a window shall be considered the glazed area. Signs which are required by county, state, or federal agencies are exempt from calculation of permanent signage.

4. Measurement of height. The height of a freestanding sign shall be computed as the distance from the base of the sign at normal grade to the top of the highest attached component of the sign. Normal grade shall be considered to be the lower of existing grade prior to construction or the newly established grade after construction, exclusive or any filing, berming, mounding or excavation solely.

5. The following signs are prohibited:

   a. No billboards or other off-site advertising signs shall be erected, used or maintained within the City of Jersey City except in the NC-3 Neighborhood Commercial District 3.

   b. No signs shall be placed on fences, walls, utility poles, trees, railway or road bridges, bridge supports or abutments, retaining walls, parking meters or water towers unless approved by the City Council.

   c. No roof signs, also known as "sky signs" shall be allowed except in the NC-3.

   d. No signs above the second floor of any building other than hotels.

   e. No sign shall be placed on an accessory building.

   f. No sign shall be lighted by means of a varied illuminated light, nor shall any sign be in whole or in any part moving, mobile, revolving and/or electrically or mechanically activated except in the NC-3 Neighborhood Commercial District 3. Signs displaying the time and/or temperature shall be permitted in non residential districts.

   g. No sign shall be allowed with the optical illusion of movement by means of a design which presents a pattern capable of reverse perspective, giving the illusion of motion or changing copy except in the NC-3.

   h. No signs shall be allowed that are placed on or affixed to vehicles and/or trailers which are parked on a public right-of-way, public property or private property so as to be visible from a public right-of-way where the apparent purpose is to advertise a product, service or activity or direct people to a business or activity. This is not intended, however, to prohibit signs placed on or affixed to vehicles, buses or trailers where the sign is incidental to the primary use of the vehicle or trailer.

   i. No sign shall be allowed to obstruct any window or door opening used as a means of egress, interferes with an opening required for legal ventilation, or is attached to or obstructs any standpipe, fire escape or fire hydrant.

   j. No sign shall be allowed which obstructs the view of vehicle operators or pedestrians entering a public roadway from any parking area, service drive, public driveway, alley or other thoroughfare.

   k. No building sign shall be greater than four feet from the building face.

6. The following signs and the standards and conditions that govern such signs are set forth in the sign matrix. All other signs are expressly prohibited.

C. Design Standards.

1. Signs shall be in harmony and consistent with the architecture of the building and relate to the features of the building in terms of location, scale, color, lettering, materials, texture and depth. Signs shall not be dominant but shall be proportionate and shall complement the building, existing signs and surroundings.

2. There shall be consistent sign design throughout a particular project. The design elements include style of lettering, construction materials, size and illumination.

3. Building signs shall not obscure, conflict with or cover any architectural element and must be aligned with major building elements such as windows, trim and structure lines.

4. No sign shall extend or project above the highest elevation of the wall to which it is attached or above the lowest part of the roofline of the building, whichever is less.

5. Illuminated signs.

a. Internally illuminated signs shall only be permitted in the HC, and C/A zones.

b. Signs lit by external sources (i.e. gooseneck lights) shall be allowed but shall be located in such a manner so as to avoid any glare on adjacent property. Sources of sign illumination shall be completely shielded from the view of vehicular traffic using the road or roads abutting the lot on which the sign is located.

c. External lights used for the illumination of any sign on a mounted building, whether or not such light fixtures are attached to or separate from the building, shall not extend above the highest elevation of the front wall of the building or more than 18 feet above the street level of the premises, whichever is less.

6. Signs and sign structures of all types shall be located to allow a clear, unobstructed line of sight for 300 feet from the stop line of any intersection of streets and/or driveways. No sign shall project into a sight triangle below the second story floor level or the height of a traffic signal or traffic directional sign in the intersection, whichever is higher.

D. Nonconforming Signs.

1. No nonconforming sign may be enlarged or altered in a way which would increase its nonconformity. Existing nonconforming permanent signs may continue to exist; however, when the sign is modified either in shape, size, illumination or structure, the sign shall be altered to conform to the provisions of this section.

2. Should any nonconforming sign be damaged by any means to an extent of more than 50 percent of its replacement cost at time of damage, it shall not be reconstructed except in conformity with the provisions of this section.

E. Sign Matrix, Sign Standards by Zone and/or Use.

Zone and/or Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
R-1, RH-1, RH-2						Design standards in § 345-68 shall apply
Residential	Nameplate only	1	1	N/A	N/A	Nameplate must be attached to the dwelling
Houses of worship, schools, governmental uses, Civic	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	
Mortuaries	Freestanding (monument only) or building	20	1	4	½ of the required front yard setback	
Assisted living, Adult Day Care	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	
Senior housing	Building only	20	1	N/A	N/A	
Nursing homes	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	
For all other uses - RC-1 signage standards shall apply						
R-2	Multi-Unit Attached Housing					Design standards in § 345-68 shall apply
Townhouses	Nameplate only	1	1	N/A	N/A	Nameplate must be attached to the dwelling

Zone and/or Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Commercial	Primary façade (building only)	20 sq. ft. or 5% of the ground floor area of that portion of the primary façade applicable to the commercial use, whichever is smaller	1			Must be attached to the building
On corner lots	Secondary façade (building only)	½ the allowable rear for primary façade	1	N/A		On corner lots, the length of any building sign on the secondary façade shall not exceed ½ the width of the primary façade or 12½ feet, whichever is smaller
Houses of worship, schools, governmental uses	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	
Mortuaries	Freestanding (monument only) or building	20	1	4	½ of the required front yard setback	
Assisted living	Freestanding (monument only) or building	24	1	4		

Zone and/or Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Senior housing	Building only	20	1	N/A	N/A	
Nursing homes	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	
For all other uses - RC-1 signage standards shall apply						
R-3	Multi-Unit Mid-Rise					Design standards in § 345-68 shall apply
Residential and Townhouse	Building only	12	1	N/A	N/A	
Houses of worship, schools, governmental uses	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	
Ground floor office uses	Building only	10	1	N/A		
Mortuaries	Freestanding (monument only) or building	20	1	4	½ of the required front yard setback	
Assisted living	Freestanding (monument only)	24	1	4	½ of the required front yard setback	
Senior housing	Building only	20	1	N/A	N/A	
Nursing homes	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	

Zone and/or Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
For all other uses - RC-1 signage standards shall apply						
R-4	Multi-Unit High-Rise					Design standards in § 345-68 shall apply
Townhouses	Nameplate only	1	1	N/A	N/A	Nameplate must be attached to the dwelling
Mid-rise apartments	Building only	12	1	N/A	N/A	
High-rise apartments	Building only	12	1	N/A	N/A	
Houses of worship, schools, governmental uses	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	
Mortuaries	Freestanding (monument only) or building	20	1	4	½ of the required front yard setback	
Assisted living	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	
Senior Housing	Building only	20	1	N/A	N/A	
Nursing Homes	Freestanding (monument only) or building	24	1	4	½ of the required front yard setback	

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Commercial	Primary façade (building only)	20 sq. ft. or 5% of the ground floor area of that portion of the primary façade applicable to the commercial use, whichever is smaller	1			
On corner lots	Secondary façade (building only)	½ the width for primary façade	1			On corner lots, the length of any building sign on the secondary façade shall not exceed ½ the width of the primary façade
RC-1	Residential Commercial - 1					Design standards in § 345-68 shall apply
Commercial and office uses	Ground floor	1 sf for each linear foot of frontage	1 per frontage for corner lots			Must be attached to the building

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Commercial and office uses—Con'td.	Projecting/ blade signs	8 sq. ft.	1 per frontage			May project a maximum of 4 ft. from the building. Minimum distance between the ground and bottom of the sign is 8 feet; must be hung by brackets at right angles to the façade
	Window	No more than 25% of total glazed area of a storefront or of any individual window signage shall be calculated into the maximum building signage area		N/A		
RC-2	Residential Commercial - 2					Design standards in § 345-68 shall apply
Commercial and office uses	Ground floor	1 sf for each linear foot of frontage	1 per frontage for corner lots			Must be attached to the building

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Commercial and office uses —Cont'd.	Projecting/ blade signs	8 sq. ft.	1 per use			May project a maximum of 4 ft. from the building. Minimum distance between the ground and bottom of the sign is 8 feet; must be hung by brackets at right angles to the façade
	Window	No more than 25% of total glazed area of a storefront or of any individual window signage shall be calculated into the maximum building signage area		N/A		
RC-3	Residential Commercial - 3					Design standards in § 345-68 shall apply
Commercial and offices uses	Ground floor	1 sf for each linear foot of frontage	1 per frontage for corner lots			Must be attached to the building

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Commercial and office uses —Cont'd.	Projecting/ blade signs	8 sq. ft.	1 per use			May project a maximum of 4 ft. from the building. Minimum distance between the ground and bottom of the sign is 8 feet; must be hung by brackets at right angles to the façade
	Window	No more than 25% of total glazed area of a storefront or of any individual window signage shall be calculated into the maximum building signage area		N/A		
NC	Neighborhood Commercial					Design Standards in § 345-68 shall apply

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Commercial and Office Uses	Ground floor	20 sq. ft. or 5% of the ground floor area of that portion of the primary façade applicable to the commercial use, whichever is smaller	1 per frontage for corner lots			
	2nd to 5th floor where there are commercial or office tenants on that floor	10 sq. ft.	1 per floor; 1 per frontage for corner lots			Signage shall not be internally lit nor shall any signs be lit by external sources
	Projecting only	8 sq. ft.	1 per commercial tenant			May project a maximum of 4 ft. from the building. Minimum distance between the ground and bottom of the sign is 8 feet; must be hung by brackets at right angles to the façade

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Commercial and office uses —Cont'd.	Window	No more than 25% of total glazed area of a storefront or of any individual window signage shall be calculated into the maximum building signage area		N/A		
	Canopies, marquees, and awnings	Signage shall be calculated into the maximum building signage area	N/A	N/A		
Theatres, museums, governmental uses, parking garages and lots	Building only	24	1	N/A	N/A	
Colleges and universities	Building only	10	1	N/A	N/A	

Zone and/or Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
NC-3	Neighborhood Commercial District 3					Design standards in § 345-68 shall apply
Nonresidential uses	Primary façade (building only)	20 sq. ft. or 5% of the ground floor area of that portion of the primary façade applicable to the commercial use, whichever is smaller	1			
	Projecting only	30				Must be hung by brackets at right angles to the façade, maximum distance between floor and bottom of the sign shall be 8 feet

Zone and/or Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Nonresidential uses—Cont'd.	Window	No more than 25% of total glazed area of a storefront or of any individual window signage shall be calculated into the maximum building signage area	N/A	N/A	N/A	
	Canopies, marquees, and awnings	Signage shall be calculated into the maximum building signage area	N/A	N/A	N/A	
	Secondary façade or corner lots (building only)	½ the width of the primary façade	1			On corner lots, the length of any building sign on the secondary façade shall not exceed ½ the width of the primary façade
Residential apartments	Building only	12	1	N/A	N/A	
Billboards						See § 345-46.

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
HC	Highway Commercial					Design standards in § 345-68 shall apply
Permitted uses except service stations	Building (per tenant or store)	10% of the wall to which its attached Side or rear entrance - ½ the area of the primary sign area	1 per primary entrance; 1 per frontage; 1 per side or rear entrance	25% of the height of the wall		
	Freestanding (which only identifies name of center area and/or key tenants	150	1 per multi-user center	25	½ of the required front yard setback	Letter height: 12 inches
	Window	10% of total glazed area of a storefront of any individual window	N/A	N/A	N/A	
Service station	Freestanding	80	1 per frontage	18	10	
	Building	50	1	not to exceed height of roof line	N/A	
	Canopy (including logo)	5 per frontage	1 per frontage	N/A	N/A	
C/A	Commercial/Automotive					Design standards in § 345-68 shall apply

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Service station	Free standing	80	1 per frontage	18	10	
	Building	50	1	not to exceed height of roof line	N/A	
	Canopy (including logo)	5 per frontage	1 per frontage	N/A	N/A	
Permitted uses except service stations	Freestanding	80	1	15	½ of the required front yard setback	
	Building (per tenant)	10% of the wall to which it is attached. Side or rear entrance - ½ the area of the primary sign area	1 per primary entrance; 1 per frontage; 1 per side or rear entrance	Maximum 25% of the height of the wall		
	Window	10% of total glazed area of a storefront or any individual window				
I	Industrial					Design standards in § 345-68 shall apply

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Permitted uses	Building	10% of area of the 1st story of the wall to which it is attached or 200 sq. ft, whichever is less				
	Building on corner lot	300 sq. ft. with no more than 200 sq. ft. facing any one street	3 per frontage			
	Freestanding (Monument only)	80	1	6	½ of the required front yard setback	
PI	Port Industrial					Design standards in § 345-68 shall apply

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Permitted uses	Building	10% of area of the 1st story of the wall to which it is attached or 200 sq. ft, whichever is less	3 per frontage			
	Building on corner lot	300 sq. ft. with no more than 200 sq. ft. facing any one street	3 per frontage			
	Freestanding (Monument only)	80 sq. ft.	1	6	½ of the required front yard setback	
U	University					Design standards in § 345-68 shall apply
Permitted uses	Building	10% of area of the 1st story of the wall to which it is attached or 200 sq. ft, whichever is less	1 per building	N/A		
	Freestanding (if building has a minimum of 10 feet setback) Monument only	50 sq. ft.	1	5	½ of the required front yard setback	

Zone and/or Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
M	Medical					Design standards in § 345-68 shall apply
Permitted uses	Building	10% of area of the 1st story of the wall to which it is attached or a maximum of 50 sq. ft.	1 per building	N/A		
	Freestanding (if building has a minimum of 10 feet setback) Monument only	50 sq. ft.	1	5	½ of the required front yard setback	
G	Government					Design standards in § 345-68 shall apply
Permitted uses	Freestanding (Monument only)	24	1	4	5	
P/OS	Parks/Open Space					Design standards in § 345-68 shall apply
Permitted uses	Freestanding	20	1 per entrance	5		
WPD	Waterfront Planned Development					Design standards in § 345-68 shall apply

Zone and/or Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Townhouses	Nameplate only	1	1	N/A	N/A	Nameplate must be attached to the building
Multi-unit mid-rise apartments	Building only	12	1	N/A	N/A	
Retail, office, marinas, and theatres	Primary façade (building only)	300 sq. ft. or 8% of the first story of that portion of the façade applicable to the non-residential use, whichever is smaller	1 per use			
	Window	No more than 25% of total glazed area of a storefront				
	Secondary façade (building only)	½ the area of the primary façade sign	1 per use			
C	Cemetery					Design standards in § 345-68 shall apply
Permitted uses	Freestanding	20	1 per entrance	6		
H	Historic District					Design standards in § 345-68 shall apply

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Townhouses	Nameplate only	1	1	N/A	N/A	Nameplates must be attached to the building
Schools, houses of worship, governmental uses	Freestanding (monument only) or	20	1	4	½ of required front yard setback	No backlit signage on freestanding or building signage
	Building	20, sum of all signage	2	N/A	N/A	
Bed and breakfast inns	Building	4	1	N/A	N/A	
Commercial	Building (primary façade)	1 sf for each linear foot of frontage	1	N/A	N/A	
	Building (secondary façade)	to match the size of historic sign as documented by site or photograph evidence. If no historic sign, 0.5 sf for each linear foot of secondary storefront	N/A	N/A	N/A	

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Commercial—Cont'd.	Window		N/A	N/A	N/A	Must be metal paint, etched glass, or other treatment approved by HPO for CoNE or HPC for COA
	Projecting Sign	8	1 per façade	N/A	N/A	May project a maximum of 4 ft. from the building. Minimum distance between grade and the bottom of the sign shall be 8 feet; must be hung by brackets
Destination Tourism						Design standards in § 345-68 shall apply

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Permitted uses except service stations	Building (per tenant or store)	10% of the wall to which it is attached. Side or rear entrance - ½ the area of the primary sign area	1 per primary entrance; 1 per frontage; 1 per side or rear entrance	maximum 25% of the height of the wall		
	Freestanding (which only identifies name of center and/or key tenants)	150	1	25	½ of required front yard setback	Minimum letter height: 12 inches
	Window	10% of total glazed area of a storefront or of any individual window				
Service station	Freestanding	80	1 per frontage	18	10	
	Building	50	1	not to exceed height of roof line		
	Canopy (including logo)	5	1 per frontage			
Real Estate Signs						Design standards in § 345-68 shall apply

Use	Type of Signage by District	Max. Area (sq. feet)	Max. Number	Max. Height of Sign from Grade (feet)	Min. Setbacks of Freestanding Signs (feet)	Notes
Residential	Building only	6	1			The lowest portion of the sign shall be no higher than 10 feet above ground level
Non-residential	Freestanding	40 sq. ft. or 3% of the side of the building upon which it is located, whichever is less	1 per frontage			Shall not exceed maximum height of district
	Building	40 sq. ft. or 3% of the side of the building upon which it is located, whichever is less	1 per frontage			Shall not exceed maximum height of district

§ 345-69. Lighting. [Added 10-13-2022 by Ord. No. 22-084]

A. Zoning Standards. The maximum height of freestanding lights shall not exceed the height of the principal building or 25 feet whichever is less.

B. Design Standards.

1. The style of the light and the light standard shall be consistent with the architectural style of the principal building.

2. Lighting shall be adequate but not overly bright. All building entrances shall be well-illuminated.

3. All lighting shall be shielded to confine the illumination spread within the site boundaries.

4. Freestanding lights shall be so located and protected to avoid being damaged by vehicles.

5. All lights shall be shielded to restrict the maximum apex angle of the cone of illumination to 75 degrees from vertical.

6. The following intensity and foot candies shall be maintained:

    a. A minimum average of one foot candle and shall not exceed a maximum average of two foot candles throughout a parking lot.

    b. Maximum at property lines: One-half foot candles.

    c. Sidewalks: A minimum of one foot candle entire length.

7. All wiring shall be laid underground and the lighting fixtures shall be so arranged that the direct source of light is not visible from any adjacent residential area. Glare from light bulbs shall be eliminated through use of diffusers or the equivalent.

§ 345-70. Off-street parking and loading and bicycle parking. [Added 10-13-2022 by Ord. No. 22-084]

A. Automobile Zoning Standards. **[Amended 10-25-2023 by Ord. No. 23-103]**

1. Off-street parking shall not be located between the building and the street.

2. Parking lots are subject to landscaping regulations in § 345-66.

3. Where parking structures front on a public right-of-way, the structure shall be "faced" with commercial or mixed uses on the ground floor.

4. Stilted buildings are prohibited.

5. All off-street parking lots, except those of one- and two-family residences, shall be provided with curbing of poured-in-place concrete, so that vehicles cannot be driven onto required landscaped areas, buffer zones, interior roadways, internal walkways and street rights-of-way so that each parking lot has controlled entrances and exits and proper drainage control. Curbing of poured-in-place concrete shall be located to prevent any part of the vehicle from overhanging the street right-of-way, property line, interior roadways or internal walkways. Vehicular access to street from the parking lot shall be limited to driveways.

6. All parking spaces except those permitted for one- and two-family housing shall be located with access to each space from an aisle.

7. Parking for houses of worship shall meet the standards of their zone. For all houses of worship, one seat shall equal 24 inches of pew/bench space. Houses of worship that do not have seats shall be calculated at a rate of ten square feet of prayer space equaling one seat.

8. Off-street loading facilities shall be located so that no vehicle being loaded or unloaded, maneuvering into a loading space or waiting to be parked into a loading space shall interfere with any traffic flow on a street, sidewalk, parking space, aisle, fire lane, driveway, railroad track or turning area nor shall they occupy any part of required lawn or buffer areas.

9. No parking space shall be less than 18 feet long and eight and one-half feet wide, with the following exceptions:

    a. Valet parking lots, where approved by the Planning Board or the Zoning Board of Adjustment, may have reduced stall and aisle sizes. The project applicant is responsible for demonstrating to the Board that the lot can function and accommodate vehicles as proposed.

b. Compact car spaces, where approved by the Planning Board or the Zoning Board of Adjustment, shall not be less than 16 feet long and eight feet wide. Aisles providing access to parking spaces shall have the following minimum distances. Where the angle of parking is different on both sides of the aisle, the larger aisle width shall prevail.

Angle of Parking Space (degrees)	For Parking Spaces 8—8.5 Wide 1-Way Aisle (feet)	For Parking Spaces 8—8.5 Wide 2-Way Aisle (feet)	For Parking Spaces 9—9.5 Wide 1-Way Aisle (feet)	For Parking Spaces 9—9.5 Wide 2-Way Aisle (feet)
Aisle				
90	24	24	22	22
60	20	22	18	20
45	18	20	15	18
30	15	18	12	18
Parallel	12	18	12	18

10. The number and design of off-street parking and loading spaces shall adhere to the following:

a. Where more than one use is on a lot, the total number of spaces shall be the sum of the component requirements.

b. All loading spaces shall have 15 feet of vertical clearance.

11. Minimum standards for number of off-street loading spaces.

Land Use	At which First Berth is Required (square feet)	At Which Second Berth is Required (square feet) 3 more spaces be calculated at multiples
Manufacturing, processing, assembly, marinas	5,000	40,000
Warehouse, auto/truck sales	5,000	40,000
Storage, shipping	10,000	25,000
Schools	10,000	100,000
Hospitals	10,000	100,000
Terminals and transportation centers	5,000	40,000
Auditoriums	10,000	40,000
Funeral homes/mortuaries	10,000	100,000
Retail	10,000	20,000
Service establishments	10,000	40,000
Indoor recreation	10,000	100,000
Restaurants/ nightclubs	10,000	25,000

Land Use	At which First Berth is Required (square feet)	At Which Second Berth is Required (square feet) 3 more spaces be calculated at multiples
Office building, financial institution and research	10,000	100,000
Hotel/Motel	10,000	100,000

12. Minimum dimensional standards for off-street loading.

A. Overall Length of Berth (feet)	B. Berth Width (feet)	C. Apron Length (feet)	D. Deck Approach (A and C) (feet)
40	10	46	86
	12	43	83
	14	39	79
45	10	52	97
	12	49	94
	14	46	91
50	10	60	110
	12	57	107
	14	54	104
55	10	65	120
	12	62	117
	14	58	113
60	10	72	132
	12	63	123

B. Automobile Parking Design Standards.

1. Curb cuts shall be limited to the minimum number necessary.
2. Parking shall not be the dominant visual element of the site.
3. Parking which is visible from the street or other areas exposed to public view shall be screened and softened by landscaping, low screen walls or a combination of elements.
4. Broad expanses of paving shall be broken up with landscaping.
5. The use of common or shared driveways which provide access to more than one site is encouraged.
6. Parking structures shall be designed to be compatible with the architectural style, building scale, mass, building materials and colors of the principal building and adjacent area. The scale and mass of the parking structure shall be mitigated through wall offsets, arched openings and other distinctive design elements.
7. Cars parked within parking structures and on open top levels shall be screened as much as possible with architectural elements and landscaping.

8. Surface and curbing. All parking and loading areas and access drives shall be paved as outlined below, or the equivalent, and approved as part of the site plan approval. All parking areas regardless of size and location shall be suitably drained and maintained.

9. The provisions of non-residential parking and loading spaces shall include adequate driveway and necessary turning areas for handling the vehicle for which provision is made. Parking and loading spaces shall be designed to permit each motor vehicle to proceed to and from the parking and loading space provided for it without requiring the moving of any other motor vehicle.

C. Bicycle Parking Zoning Standards.

1. The standards below shall apply to all zones, including all redevelopment plans, citywide, and standards shall supersede any standards listed in redevelopment plans.

2. Bicycle parking facilities shall be required, in accordance with the use schedule below, for any new principal structure, addition or enlargement of an existing principal structure in excess of ten percent of the gross floor area (gfa), or for any change in use of an existing structure.

3. Bicycle parking spaces are required as follows:

Use Category	**Required**	
	Outdoor Spaces	**Indoor Spaces**
All residential uses in buildings with 5 or more units		0.5 space per unit
Retail, service, and restaurants 6,000 sf to 20,000 sf	4 spaces per 6,000 sf gfa	
Retail, service, and restaurants greater than 20,000 sf	4 spaces per 15,000 sf gfa	
	80%	20%
Municipal/cultural facilities/community facilities	1 space per 2,000 sf gfa	
	80%	20%
Houses of worship, theaters, and assembly spaces	1 per 20 seats or equivalent	
Office (all types)	1 per 25,000 sf gfa	1 per 10,000 sf gfa
Daycare and elementary school	1.5 spaces per classroom	
Middle and high school	4 per classroom	
College and university	1 space per 10 students or employees, combined	
Hospitals/medical centers	1 per 20,000 sf gfa	1 per 50,000 sf gfa
Manufacturing/production, warehouse	1 per 50,000 sf gfa	
Parking garage or lot	5% of auto parking	
Parks	1 per 5,000 sf	

4. Location and design of facilities.

a. Non-residential bike parking for certain uses must be provided both indoors and outdoors, as indicated in the use schedule above. Indoor parking may include bike lockers or sheds.

b. Requirements for indoor bicycle parking.

1.) Any required indoor bicycle parking/storage room must be located in a convenient and accessible location to a public sidewalk with no more than four vertical steps between the bicycle room and the sidewalk. Ramps and elevators may be utilized to provide access to bike storage not located at the first floor level.

c. Requirements for outdoor bicycle parking

1.) All required outdoor bicycle parking must be convenient and accessible to a main building entrance and street access without climbing stairs.

2.) Bicycle parking shall be sited in a highly visible location, such as within view of passers-by, retail activity, office windows, an attendant or other personnel to discourage theft and vandalism.

3.) Bicycle parking shall be located so as not to block the pedestrian path on a sidewalk or within a site. A minimum of six feet of unobstructed passage is required on public sidewalks.

4.) Parked bicycles are to be oriented parallel to the street and on the curb-side of the sidewalk. In plaza areas, bike parking location(s) and orientation shall be determined by the planning board.

5.) Where a minimum of six feet of unobstructed passage cannot be provided on the sidewalk, then the property shall be exempt from outdoor bicycle parking requirements.

6.) Bicycle parking facilities within an automobile parking area shall be separated by a physical barrier (i.e., bollards, reflective wands, curbs, wheel stops, poles, etc.) to protect bicycles from damage by cars.

7.) Bike racks must be securely attached to concrete footings and made to withstand severe weather and permanent exposure to the elements. Bike racks must permit the bicycle frame and one wheel to be locked to the rack with a high security, U-shaped lock.

8.) All bike racks shall be located at least 24 inches in all directions from a wall, door, landscaping, or other obstruction that would render use of the racks difficult or impractical.

d. Requirements for all bicycle parking.

1.) An aisle or space that is at least five feet wide shall be provided for bicycles and riders to enter and leave the facility.

2.) Site plans shall show the proposed location of bike parking/storage facilities on the site and on the building floor plan design. A construction detail of the bike rack or facilities shall be provided.

§ 345-71. Historic design standards. [Added 10-13-2022 by Ord. No. 22-084]

A. General standards below are considered inclusive and shall be considered in conjunction with the applicable provisions of any subsection of this section.

1. Every reasonable effort shall be made to provide a compatible use for a property that requires minimal alteration of the building structure or site and its environment or to use a property for its originally intended purpose.

2. The distinguishing original qualities or character of a building, structure or site and its environment shall not be destroyed. The removal or alteration of any historic material or distinctive architectural features should be avoided when possible.

3. All buildings, structures and sites shall be recognized as products of their own time. Alterations which have no historical basis and which seek to create an earlier appearance shall be discouraged.

4. Changes, which may have taken place in the course of time, are evidence of the history and development of a building, structure or site and its environment. These changes may have acquired significance in their own right, and this significance shall be recognized and respected.

5. Distinctive stylistic features or examples of skilled craftsmanship which characterize a building, structure or site shall be treated with sensitivity.

6. Deteriorated architectural features shall be repaired rather than replaced wherever possible. In the event that replacement is necessary, the new material shall match the material being replaced in composition, design, color, texture and other visual qualities. Repair or replacement of missing architectural features shall be based on accurate duplications of features substantiated by historical, physical or pictorial evidence rather than on conjectural design or the availability of different architectural elements from other buildings or structures.

7. The surface cleaning shall be undertaken with the gentlest means possible. Sandblasting and other cleaning methods that will damage the historic building materials shall not be undertaken.

8. Every reasonable effort shall be made to protect and preserve archaeological resources affected by or adjacent to any acquisition, protection, stabilization, preservation, rehabilitation, restoration or reconstruction project.

9. When the replacements are made, exterior architectural elements, such as but not limited to windows, doors, and siding, shall be replaced with a style and finish of the period of significance of the building. Use of original materials is preferred.

B. Standards for Protection.

1. Before applying protective measures, which are generally of a temporary nature and imply future historic preservation work, an analysis of the actual or anticipated threats to the property shall be made.

2. Protection shall safeguard the physical condition or environment of a property or archaeological site from further deterioration or damage caused by weather or other natural, animal or human intrusions.

3. If any historic material or architectural features are removed, they shall be properly recorded and, if possible, stored for future study or reuse.

C. Standards for Stabilization.

1. Stabilization shall reestablish the structural stability of a property through the reinforcement of load-bearing members or by arresting material deterioration leading to structural failure. Stabilization shall also reestablish weather resistant conditions for a property.

2. Stabilization shall be accomplished in such a manner that it detracts as little as possible from the property's appearance. When reinforcement is required to reestablish structural stability, such work shall be concealed wherever possible so as not to intrude upon or detract from the aesthetic and historical quality of the property, except where concealment would result in the alteration or destruction of historically significant material or spaces.

D. Standards for Preservation.

1. Preservation shall maintain the existing form, integrity and materials of a building, structure or site. Substantial reconstruction or restoration of lost features generally are not included in a preservation undertaking.

2. Preservation shall include techniques of arresting or retarding the deterioration of a property through a program of ongoing maintenance.

E. Standards for Rehabilitation.

1. Contemporary design for alterations and additions to existing properties shall not be discouraged when such alterations and additions do not destroy significant historic, architectural or cultural material and such design is compatible with the size, scale, color, material and character of the property, neighborhood or environment.

2. Wherever possible, new additions or alterations to structures shall be done in such a manner that if such additions or alterations were to be removed in the future, the essential form and integrity of the structure would be unimpaired.

F. Standards for Restoration.

1. Every reasonable effort shall be made to use a property for its originally intended purpose or to provide a compatible use that will require minimum alteration to the property and its environment.

2. Reinforcement required for structural stability or the installation of protective or code-required mechanical systems shall be concealed whenever possible so as not to intrude or detract from the property's aesthetic and historical qualities, except where concealment would result in the alteration or destruction of historically significant materials or spaces.

3. When archeological resources must be disturbed by restoration work, recovery of archeological material shall be undertaken in conformance with current professional practices.

G. Standards for Reconstruction.

1. Reconstruction of a part or all of a property shall be undertaken only when such work is essential to reproduce a significant missing feature in a historic district or site, and when a contemporary design solution is not acceptable.

2. Reconstruction of all or part of a historic property shall be appropriate when the reconstruction is essential for understanding and interpreting the value of a historic district or when no other building, structure, object or landscape feature with the same associative value has survived and sufficient historical documentation exists to ensure an accurate reproduction of the original.

3. The reproduction of missing elements accomplished with new materials shall duplicate the composition, design, color, texture and other visual qualities of the missing element. Reconstruction of missing architectural features shall be based upon accurate duplication of original features, substantiated by historical, physical or pictorial evidence rather than upon conjectural designs or the availability of different architectural features from other buildings.

4. Reconstruction of a building or structure on an original site shall be preceded by a thorough archaeological investigation to locate and identify all subsurface features and artifacts.

5. Reconstruction shall include measures to preserve any remaining original fabric, including foundations, subsurface and ancillary elements. The reconstruction of missing elements and features shall be done in such a manner that the essential form and integrity of the original surviving features are unimpaired.

H. Standards for New Construction.

1. In considering whether to approve or disapprove an application for a permit for new construction in an historic district, the Commission shall be guided by standards of the Secretary of the Interior and the following compatibility standards.

2. New construction need not replicate historic older buildings or structures, but may reflect contemporary design standards so long as the design and construction is compatible with surrounding historic structures. Building height, width, mass and proportion affect the degree of compatibility between the old and the new.

a. Site and setting. A developer intending to utilize a historic resource as a part of a development must consider the context of the resource's original site by honoring the original historic intention of said resource and integrating it respectfully into the new development. Design elements shall have compatible rhythm and repetition with an emphasis on historically compatible materials and colors.

b. Building height. Height shall be visually compatible with adjacent buildings. The apparent physical size, scale and height shall relate to existing resources.

c. Openings on frontal façades. The width and height of windows, doors and entries must harmonize in scale and proportion with the width and height of windows, doors and entries of buildings and structures of historic significance in the surrounding environment.

d. Relationship of unbroken planes to voids (i.e., punctured planes) in front façades. The relationship of unbroken planes (i.e., walls) to voids (i.e., windows and doors) on the façade of a building or structure shall be aesthetically harmonious with that of buildings and structures of historic significance in the surrounding environment.

e. Relationship of vacant land to buildings/structures. The relationship of a building or structure to the vacant land between an adjacent building or structure shall not violate the existing paradigmatic spatial relationship of historically significant structures to the vacant land between said structures and adjoining buildings. The building mass in large architectural projects can be varied in form by using setbacks to create open spaces and landscaping when desirable to provide harmonious visual transitions between new construction and the adjacent historic properties.

f. Relationship of exterior projections to the street. The relationship of exterior projections to the street in new construction shall be aesthetically harmonious with the relationship of exterior projections to the street in the surrounding existing buildings of historic significance.

g. Relationship of major exterior building materials. The major exterior building materials on the façade of a building or on a structure shall reflect the predominant major building materials existent on the façades of historically significant buildings and on structures in the surrounding environment.

h. Roof forms. The roof form and slope of a building or structure is a major element in the visual image of the building. Therefore, designers must take care to honor paradigmatically in new construction the existing historic roof forms and slopes so as not to violate the aesthetic harmony of the whole.

i. Continuity in visual imagery of appurtenances. Appurtenances of a building or structure such as walls, fences and landscaping shall honor the relationship of appurtenances to buildings of historic significance in the surrounding environment.

j. Scale of buildings. The scale of buildings and structures shall be in scale with the buildings and structures of historic significance.

k. Signage. Signs which are out of keeping with the character of the environment in question shall not be used. Excessive size and inappropriate placement on buildings results in visual clutter and shall be designed to relate harmoniously to exterior building materials and colors. A good sign shall express a simple clear message with wording kept to a minimum.

l. Site planning. The site planning of landscaping, parking facilities, utility and service areas, walkways and appurtenances must reflect the site planning of landscaping, parking facilities, utility and service areas, walkways and landscape features reticulate to buildings or structures of historic significance.

m. Accessory garage design. All garage façades shall be in character with the immediate surrounding historic properties and must be compatible with the significant historic features and characteristics of the façades and streetscape of the immediate block front on which the proposed structure is located as well as the block front directly across the street.

n. Off-street parking. All required off-street parking shall be enclosed, and the enclosure shall be in character with the design of the immediate surrounding historic structures as outlined in this chapter. Such parking shall be designed so as to be at least 50 percent below grade and covered and shall be located entirely under the building where feasible, but, if located within the rear yard area, at least 50 percent of the entire yard area, including the garage rooftop area, shall consist of landscaping which may be a combination of grass, groundcover and shrubs, and the remaining area shall be covered with decorative brick or concrete payers, or comparable, durable materials.

I. Relocation of a Landmark or Building, Object or Structure Located in a Historic District. In considering whether to recommend, approve or disapprove an application for a permit to relocate a building, object or structure designated a historic landmark or located in a historic district, the Commission shall be guided by the following considerations:

1. The historic character and aesthetic interest the building, structure or object contributes to its present setting.

2. Whether there are definite plans for the area to be vacated and what the effect of those plans on the character of the surrounding area will be.

3. Whether the building, structure or object can be moved without significant damage to its physical integrity.

4. Whether the proposed relocation area is compatible with the historical and architectural character of the building, object or structure.

J. Demolition.

1. The following shall be considered in regard to an application to demolish an individual landmark building, structure, site or object or any building, structure, site or object contained within a historic district:

a. Its historic, architectural and aesthetic significance.

b. Its use.

c. Its importance to the city and the extent to which its historic or architectural value is such that its removal would be detrimental to the public interest.

d. The extent to which it is of such old, unusual or uncommon design, craftsmanship, texture or material that it could not be reproduced or could be reproduced only with great difficulty.

e. The probable impact of its removal upon the ambience of the historic district.

f. The structural soundness and integrity of the building so as to comply with the requirements of the state uniform code.

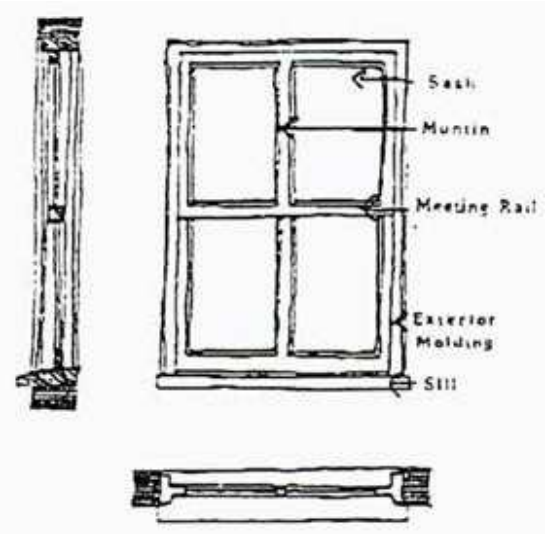
g. The effect on the remaining portion of the building, structure, site, object or landscape feature in cases of partial demolition.

2. In the event that the structure is unsafe or unsound so as to impose a danger to health or safety, the power and authority of the City of Jersey City to demolish the structure, as otherwise provided by law, shall not be impaired or altered in any way by the provisions of this chapter. The city shall be exempt from making an application to the Commission but shall notify the Commission prior to the demolition.

3. If an application to demolish is denied, the applicant shall follow the appeal process detailed herein for denial of certificates of appropriateness.

K. Other Guidelines. The commission shall utilize locally generated guidelines or historic preservation aids in addition to the Secretary of Interior's Standards.

L. Additional Regulations for Alterations and Additions to Buildings and New Construction.



1. Windows.

a. Repair. Deteriorated windows can often be repaired and made sound and fully operational. A certificate of no effect is required to undertake ordinary repairs including:

i. Replacing or rebuilding any parts of a window such as the sill and portions of the sash and frames using the same material and with the same configuration, shape and dimension.

ii. Scraping, priming and repainting of window sash and/or frame.

iii. Consolidating wood members with cellulose wood fillers or chemical materials. Change in shape, size or configuration require a certificate of appropriateness.

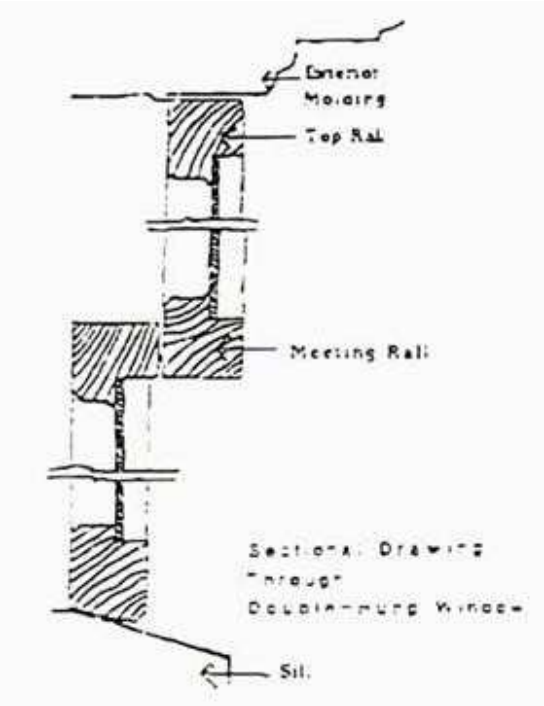
b. Replacement.

i. If historic windows have deteriorated to a point precluding repair, rehabilitation or restoration, based on documentation submitted by the applicant, or a field inspection by the Historic Preservation Officer, replacement windows may be approved under a certificate of no effect if they match the historic windows in terms of configuration, operation, details, material and finish. Variations in details will be permitted if such variations do not significantly affect the visual characteristics of the historic window, including the shadow effect of muntins and sash on the glazing. In evaluating "significant" effect, other factors to be considered shall be the age of the building and its architectural quality, as well as the extent of reduction in the total glazed area of the proposed sash compared to the existing sash. For narrow wood windows (less than 15 inches wide), the reduction shall be limited to ten percent; for wood windows, 15 inches or wider, the reduction shall be limited to six percent; for metal double-hung windows (of any size), the reduction shall be limited to ten percent.

ii. In buildings less than 30 years old, the replacement windows need not match the historic window in terms of materials. The finish, however, must match the finish of the original windows. On secondary façades, windows which are visible from a public thoroughfare need only match the historic windows in terms of configuration and finish.

iii. Proposals for replacement windows which do not meet these conditions will require a certificate of appropriateness.

c. Storm windows. The installation of exterior storm windows will be granted a certificate of no effect providing they meet the following conditions:



i. Exterior storm windows shall fit tightly within window openings without the need for a subframe or panning around the perimeter.

ii. The color of the frames of the storm windows shall match the color of the primary window frame.

iii. Glazing shall be clear.

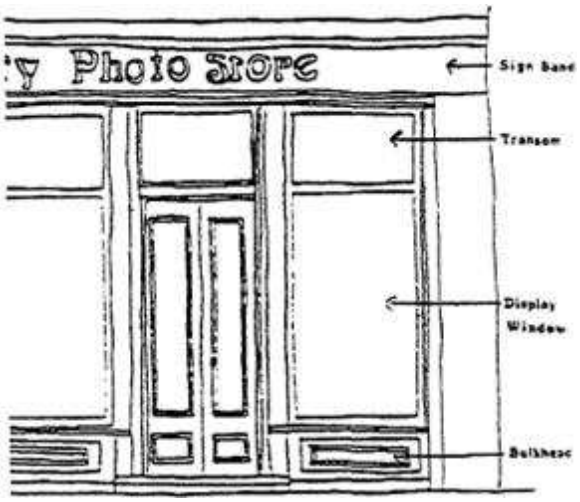
iv. The storm sash shall be set as far back from the plane of the exterior wall surface as is practicable.

v. Muntins shall not be permitted.

vi. Meeting rails may be used only in conjunction with double-hung windows and shall be placed in the same relative location as in the primary sash.

d. Supporting documentation. Applications for replacement windows must include photographs and dimensioned drawings of the existing condition of the windows. In addition, manufacturer's catalogue cuts or full or half-scale drawings of the proposed windows with comparative dimensions, details of construction and configuration and color and finish samples are required. Proposals for a change in material shall include a material sample.

2. Storefronts.



a. Repair.

i. Every effort should be made to retain and repair historic storefronts as well as significant surviving fragments of historic storefronts. While a non-original historic storefront may differ in style from the original building, it reflects the shifts in popular taste and documents the changes over time within an historic district and should be treated with sensitivity.

ii. A certificate of no effect is required for ordinary repairs to existing storefronts, both historic and non-historic. This would include replacing deteriorated, damaged or missing features with matching components and painting or refinishing.

iii. Changes in design or configuration of an historic storefront requires a certificate of appropriateness.

b. Replacement.

i. If replacement of a storefront is necessary, the design of the new storefront should reproduce the historic storefront in terms of its configuration, materials, placement, proportions and extent of glazed area. The design of the replacement store front may be based on surviving historic storefronts elsewhere on the building or another identical building, or on documentary evidence such as original architectural drawings or old photographs.

ii. In cases where the historic storefront has been replaced and there is no extant historic storefront elsewhere on the building, nor on another identical building, and no documentary evidence can be found, a contemporary design is permissible and should meet the following criteria:

(A) It fits entirely within the existing storefront opening(s);

(B) It incorporates any architecturally and/or historically significant surviving fragments of an historic storefront;

(C) It is compatible with the original materials and colors of the upper floors; and

(D) It includes traditional storefront elements (i.e. transoms, glass display windows, low bulkheads, recessed entrance, signband) which are appropriate to the age and style of the building.

iii. All applications for new storefronts require a certificate of appropriateness.

c. Signage. In accordance with other provisions in this chapter (See 345-68 and 345-71.M).

d. Awnings. Awnings are permitted on storefronts and should meet the following conditions: The awning is a retractable type with a sloped profile (exception may be made for buildings less than 30 years old and non-historic storefronts);

i. The metal frame is covered with canvas fabric in an historically appropriate color and pattern to the building and the historic district;

ii. Lettering on the awning is limited to the skirt; however, logos may be printed on the sloped portion of the awning;

iii. The awning frame is attached to the building in such a way that it does not destroy or cause irreversible damage to significant architectural features;

iv. The awning fits within the storefront opening and has the same shape as the opening.

e. Security gates.

i. Security gates should be installed in the interior of all storefronts and should be of the open-link variety. If new storefronts are to be installed, or in cases where the historic storefront had external security gates, the gate tracks should be recessed into the glazing reveal and the gate housing should be flush with the plane of the storefront, and should be contained within a plenum space above the storefront or behind a transom panel or signage panel. The gate housing, tracks or mechanical boxes should not protrude from the plane of the storefront or be apparent. Exterior scissor-type gates are also acceptable.

ii. Applications for open link interior security gates require a certificate of no effect. Applications for all other security gates require a certificate of appropriateness.

f. Supporting documentation. Applications for replacement storefronts must include photographs of the existing storefront, to scale drawings of the proposed storefront, signage, awning and/or security gates (elevation, sections and full or half-scale details), and materials and color samples.

3. Additions.

a. Rear yard additions.

i. A certificate of no effect will be granted for applications for rear yard additions which meet the following criteria:

(A) The proposed addition is not visible from a public thoroughfare or right-of-way.

(B) The addition will not extend to the rear lot line, nor substantially eliminate the presence of a rear yard.

(C) Other rear yard incursions exist within the block.

(D) The proposed work complies with the Historic Zoning District regulations and will not require a variance.

(E) The rear addition does not rise to the full height of the building.

(F) The existing rear façade will not be removed from the entire width of the building. Instead, existing openings will be modified to provide access into the addition. (This approach retains original building fabric and reduces structural intervention.)

ii. Applications for rear yard additions which do not meet the criteria will most likely require a certificate of appropriateness. For proposed additions which will be visible from a public thoroughfare or right-of-way, the Commission will consider the effect of the addition on any significant architectural features on the building's rear façade, and the scale and architectural character of the addition's façade in relation to the building's front façade.

b. Rooftop additions. A certificate of no effect will be granted for applications for rooftop additions which meet the following criteria:

i. The addition consists of mechanical equipment, egress or mechanical bulkheads or utilitarian skylights only; or the addition consists of living space and complies with the Historic Zoning regulations.

ii. The roof of the subject building is not a significant feature of its design.

iii. The addition is not visible from a public thoroughfare or right-of-way.

iv. If the building possesses a significant roof silhouette, the addition does not interrupt the roof or skyline.

v. The materials of the addition are in the nature of utilitarian rooftop accretions and are in keeping with the existing roofscape.

vi. The addition does not adversely affect the significant ensemble of buildings by creating a distracting element in an otherwise uniform roofscape.

vi. The addition does not adversely affect the significant ensemble of buildings by creating a distracting element in an otherwise uniform roofscape.

vii. Applications for rooftop additions which do not meet the above criteria will most likely require a certificate of appropriateness.

c. Supporting documentation. Applications for rear yard or rooftop additions must include photographs of the existing buildings (including rear façade for rear additions), individually and in the context of the neighborhood, to-scale floor plans, elevations and sections of the building and addition, to-scale sight line drawings for rooftop additions, a site plan of the entire block for rear yard additions, full or half scale details of windows, doors and decorative trim, materials and color samples.

4. Restoration.

a. A certificate of no effect will be granted for applications for the restoration of a building or building façade features (such as stoops, cornices, window and door openings and enframements) to their historic appearance when the following criteria are met:

i. The restoration would not cause the removal of non-original historic building fabric (i.e., Victorian Period features on an early 19th Century structure).

ii. The restoration is based on documentation such as:

(A) Physical evidence on the building;

(B) Original drawings;

(C) Old photographs;

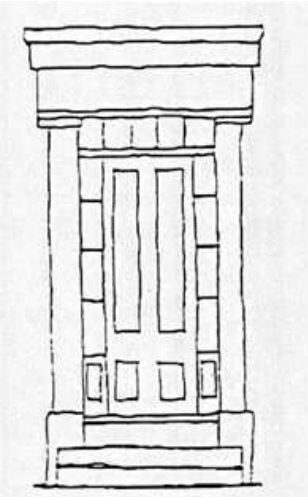
(D) An identical building.

iii. The restored features match the texture, color, profiles, details and dimensions of the original feature.

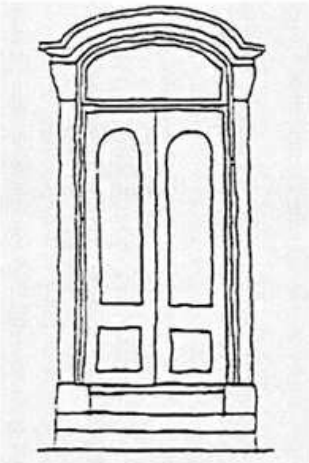
iv. Restoration work which does not conform to the above criteria will require a certificate of appropriateness.

v. Supporting documentation for restoration work shall include photographs of the existing conditions, documentation upon which the restoration is based, and the materials and methods proposed by the contractor in the form of specifications, a contract, or a letter.

5. Exterior doors (primary façades).



Greek Revival Style Entrance



Italianate Style Entrance

a. Repair. Repair of historic doors including stripping, refinishing, replacing deteriorated parts-in-kind, replacing hardware matching the original, and replacing glazing in-kind, requires a certificate of no effect.

b. Replacement. Historic doors may not be removed, unless beyond repair. A certificate of no effect will be granted for replacing deteriorated historic doors or non-historic doors with new doors which match the historic doors. A certificate of appropriateness will be required for the following:

i. New doors which do not match the historic doors;

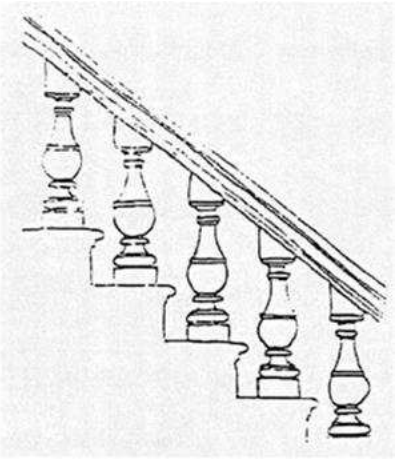
ii. Enlarging or reducing the existing door opening;

iii. Replacement doors of a different configuration than the historic doors;

iv. Alterations to historic doors which significantly affect their appearance.

c. Supporting documentation. Applications for replacement doors must include photographs of the building and the existing door showing deterioration, documentation of the historic doors if available, to scale drawings of the proposed doors within the opening (elevations and sections), and a finish sample.

6. Ironwork.



a. Fences and railings. A certificate of no effect will be granted for the following:

i. Ordinary repairs to existing fence and railings.

ii. Replacement of missing, non-historic or severely deteriorated historic fences and railings providing that the new ironwork matches the historic ironwork based on documentation such as historic photographs, extant examples on identical buildings, or remnants of the historic ironwork.

iii. A certificate of appropriateness is required for the following:

(A) Replacement ironwork which does not match the historic fence and/or railing.

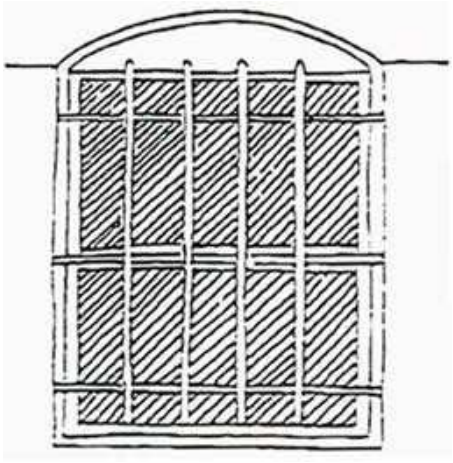
(B) The installation of a fence or railing in a location which historically had no ironwork.

(C) Alterations to or removal of historic fences and railings.

(D) In instances where historic fences and/or railings have been removed or replaced and no documentation of the historic ironwork is available, the Commission recommends either a design which is stylistically compatible with the building or a simple contem-

porary design which is not intrusive to the special architectural and historic character of the building and the streetscape. Both alternatives require a certificate of appropriateness.

b. Window and door security gates.



i. A certificate of no effect will be granted for the installation of exterior window and/or door security gates providing they are existing features of the building and the proposed gates do not detract from the historic and architectural character of the building.

ii. A certificate of appropriateness will be required for the installation of window and/or door security gates if none exist. The proposed gates should meet the following criteria:

(A) A simple design.

(B) Conform to the shape of the opening.

(C) Be mounted within the opening.

(D) Have no frame (window gate).

iii. Exterior window gates are not permitted above the first floor on the front façade, which shall not be construed to mean the parlor floor (see definition of parlor floor). Window gates which accommodate air conditioner units should have simple boxes or holes rather than more elaborate curved protrusions, unless the latter is appropriate to the building's architectural character.

c. Supporting documentation. Applications for new ironwork must include photographs of the building, both present and historic, dimensioned drawings of the proposed ironwork (elevation and full or half-scale section), a site plan showing extent of ironwork (only for installations proposed in locations where no ironwork presently exists).

7. Residential awnings.

a. Awning installation on residential buildings require a certificate of appropriateness and should meet the following criteria:

   i. The awnings are retractable;

   ii. The metal frame is covered with canvas fabric in an historically appropriate color and pattern for the building and the historic district;

   iii. The awnings fit within the window and/or door openings and have the same shape as the openings;

   iv. The awning frames are attached to the building in such a way that they do not destroy or cause irreversible damage to significant architectural features.

b. Supporting documentation for applications for residential awnings must include present and historic photographs of the building, to scale drawings (elevation and section) of the installation, and a material and color sample.

8. Commercial awnings.

   a. The installation of a commercial awning requires a certificate of appropriateness and should meet the following criteria:

      i. The metal frame is covered with canvas fabric in an historically appropriate color and pattern for the building and the historic district.

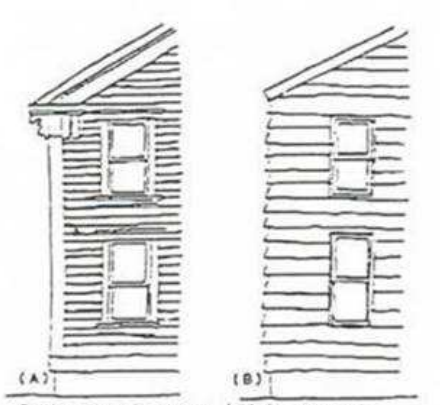
      ii. The awning frames are attached to the building in such a way that they do not destroy, conceal from view, or cause irreversible damage to significant architectural features.

      iii. The awning is an appropriate size for storefront.

      iv. The awning lettering should be limited to the name of the business and address. A brief description of the business may be acceptable.

b. Supporting documentation for applications for commercial awnings must include present and historic photographs of the building, to scale drawings of the installation including lettering and a material and color sample.

9. Imitation cladding.



Siding installations: (A) is properly designed and installed, (B) is not

a. Vinyl and aluminum siding. The Commission discourages the use of vinyl or aluminum siding on historic buildings. These materials are not permitted on masonry buildings. On buildings which have existing vinyl or aluminum siding, individual units may be replaced with matching materials if necessary following the issuance of a certificate of no effect. On buildings with wood clapboard siding and/or shingles, the Commission encourages retention of the historic material or replacement with matching materials.

b. If an applicant chooses to apply for aluminum or vinyl siding, a certificate of appropriateness is required.

c. Imitation facing. The Commission discourages the application of imitation stone or brick facings. On buildings which have existing imitation stone and brick facings, ordinary repairs and repainting may be performed following the issuance of a certificate of no effect. One exception is a refacing of a severely deteriorated brownstone façade with a cementitious mix tinted to match the color of brownstone. Such work will be granted a certificate of no effect providing it meets the following criteria:

i. The existing brownstone surface is exfoliating, damaged or otherwise unsound (as documented in photographs).

ii. The proposal calls for the replication of the original texture, color profiles and details.

iii. The proposed calls for damaged stone to be cut back to sound stone and the new surface to be keyed into the sound stone and built up in successive layers using a cementitious mix with the top layer tinted and finished to match the original brownstone texture and color. In some cases, a sample patch may be requested for inspection and approval by the Historic Preservation Officer.

iv. The use of wire lath is prohibited.

10. New window openings.

a. A certificate of no effect will be granted for new window openings when the following criteria are met.

i. The proposed window openings are located on a secondary façade.

ii. The new window openings and sash retain the same shape, dimensions and configuration as the building's existing windows.

iii. The new lintels and sills match the design, color, and texture of other window openings on the façade.

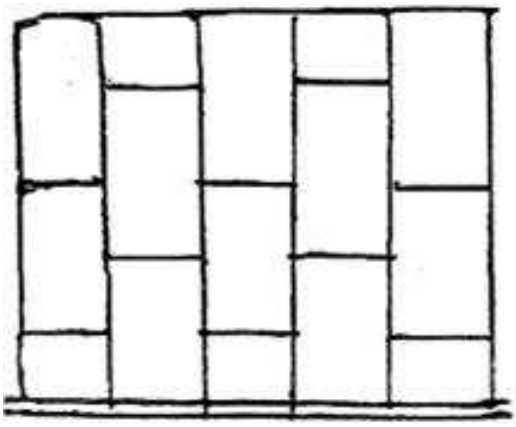
iv. The location of the new openings are consistent with the existing pattern of bays.

v. The new openings do not detract from any significant historic architectural features on the building.

vi. Proposed new window openings which do not meet all of the above criteria will require a certificate of appropriateness.

b. Supporting documentation for applications for new window openings must include photographs of primary and secondary façades and a to scale elevation of the façade(s) indicating the proposed new openings.

11. Sidewalk repair and replacement.



a. Repairs of less than 50 percent of existing sidewalk.

i. For repairs, the replacement units should be of like material and color to match the existing sidewalk. Intact blue stone paving must not be removed and discarded. Intact blue

stone which has moved due to the thrust of tree roots or the freeze and thaw cycle and that presents a safety hazard to pedestrians, should be carefully removed and reset in sand, quarry, dust or dirt.

b. Replacement of more than 50 percent. In the case of stone paving such as blue stone, the replacement units should be of the same material, shape, and size as the existing stone paving.

i. When the previous material is concrete, then blue stone or colored concrete must be used. Colored concrete after curing should be Scofield charcoal gray or equivalent. The texture of the concrete should be made smooth with a wood float in order to create a texture more like blue stone. The sidewalk should cure without fine finishing and lines should be scored without edging. Corners (intersections) need to meet ADA standards and sloped areas (re: driveways or ramps) should have a light broom finish for traction.

c. Not acceptable. New sidewalks of white or natural concrete of more than 50 percent, irregular "patio" styles and varying colors with great contrast are not acceptable. Patio styles that are historically appropriate or create the appearance of blue stone are acceptable, but subject to approval by the historic preservation officer.

d. Curbs. Existing stone curbing should not be removed in sidewalk repair, with the exception of new handicapped curb cuts at street corners. If new curbing is required, replacing concrete curbs or at handicapped cuts, they should be poured concrete and meeting city standards for dimensions. The color should be French gray. Matching the color mixture of the sidewalks.

e. Supporting documentation for applications for sidewalk repair and/or replacement must include photographic documentation of existing conditions and a dimensioned sketch of the proposed paving pattern.

M. Signs.

1. All signs shall reflect the historic character of the area of the proposed sign placement and will respect the size, scale and mass of the façade, building height and rhythms and sizes of windows and door openings.

2. No signs shall be back-lighted.

3. Projecting signs shall be permitted in accordance with Section 345-68.

4. All signs within the historic district require a certificate of appropriateness, except that applications for unlit interior window signage only shall require a certificate of no effect.

§ 345-72. Design standards: Recommended and not recommended. [Added 10-13-2022 by Ord. No. 22-084]

A. One- and two-family/Multi-Family Attached.

1. Residential recommended.

a. Attractive mature streetscape;

b. Scale, orientation, and style consistent with adjacent development;

c. On-street parking;

d. Street trees small but detailed front yard.

2. Residential not recommended.

a. Fenced front yard resembles an "auto compound" and creates a commercial atmosphere;

b. Excessive curb cut width and expansive concrete areas;

c. No clear sense of unit entries;

d. No street trees or landscaping.

3. Residential not recommended.

a. Building mass dominates because of lack of offsets and poor relationship between window size and façade area;

b. Continuous drop curb limits on street parking;

c. Proximity of overhead doors to road limits visibility and requires maneuvering in the right-of-way;

d. Lack of street trees and landscaping;

e. Garage doors dominate façade.

4. Residential not recommended.

a. Lack of architectural detail;

b. Lack of interest at street level;

c. Incompatible siding materials;

d. Poor integration between architecture and streetscape;

e. No landscaping or street trees.

B. Multi-Family Residential—Mid-Rise/High-Rise.

1. Residential recommended.

a. Maintain consistent heights/setbacks;

b. Consistent architectural theme;

c. Subtle variation of color and detail;

d. Pattern of windows/doors is consistent;

e. No visible off street parking;

f. Street trees and foundation plantings.

2. High-rise residential recommended.

a. Building oriented to streetscape;

b. No excessive setbacks;

c. Parking is not a dominant visual element;

d. Architecturally interesting structure with "human" scale lower level;

e. Enhanced streetscape with materials compatible with structure;

f. Appropriate landscape treatment;

g. Good transition between public and private uses.

3. Residential not recommended.

a. "Tower in the park" is discouraged;

b. Massive structures in a sea of surface parking;

c. No mans land creates excessive distances between buildings;

d. Slab buildings devoid of architectural interest;

e. Lack of landscaping further compounds bleak character.

C. Fencing.

1. Fencing lot recommended.

a. High quality materials;

b. Architectural details;

c. Color, materials and landscaping softens impact;

d. Area inside fencing is partially screened by plantings, green buffer in front of fence.

2. Fencing not recommended.

a. No landscaping or buffer;

b. Harsh, unsoftened elements, stark white wall, high chainlink fencing topped with knife wire.

D. Streetscape.

1. Streetscape recommended.

a. Unified design theme;

b. Attention to details;

c. Consistent setbacks of retail display windows and recessed entries;

d. Cornice signage;

e. Fabric awnings of consistent design.

2. Streetscape not recommended.

a. Lack of pedestrian amenities such as landscaping and street furniture;

b. Solid metal security gates over retail windows;

c. Disjointed signage-various styles, sizes, and sign heights oriented to vehicles;

d. Nondescript street lighting.

E. Public Space.

1. Public spaces recommended.

a. Comprehensive amenity plan;

b. Ample seating;

c. Seasonal shading with full canopy provides weather protection for seating area;

d. Intimate, socially intensive space.

2. Public spaces not recommended.

a. Expansive, paved unusable area;

b. Lack of visual interest (public art, fountain, or planting beds, etc.);

c. No seating;

d. Little or no landscaping;

e. Discourages use of space for social interaction.

F. Commercial.

1. Corner commercial recommended.

a. Building wraps corner and reflects building design;

b. Storefront visible from two façades;

c. Scale is pedestrian;

d. Signage is pedestrian oriented;

e. Architectural details provide interest.

2. Corner commercial recommended.

a. Architectural features are enhanced by design treatment;

b. Windows on two façades wrapping corner;

c. Fabric awnings;

d. Pedestrian scale and signage.

3. Corner commercial not recommended.

a. Visual clutter;

b. Excessive window coverage;

c. Nonconforming advertising banner;

d. Obscures original architectural details of building.

4. Commercial recommended.

a. First floor use integrated with streetscape;

b. Room for first floor retail to provide vitality to pedestrian realm.

5. Commercial not recommended.

a. Setback from street destroys pedestrian realm — parking should be in back of building or on street;

b. Lack of roof treatment makes building "float";

c. Lack of connection to surrounding buildings;

d. Parking area not landscaped;

e. Exposed trash area.

G. Drive Thru Commercial.

1. Drive thru recommended.

a. Drive thru area screened from street;

b. Foundation plantings part of comprehensive landscape and screening plan.

2. Drive thru recommended.

a. Service area extension of building architecture;

b. Fencing and landscaping coordinated to provide transition from parking area to pedestrian area;

c. Signage integrated into architecture.

3. Drive thru not recommended.

a. Drive thru area not integrated into architectural design;

b. No landscaping of parking area; no screening or decorative fencing;

c. Building "floats" in a sea of parking;

d. Pedestrian access not integrated into streetscape.

4. Drive thru not recommended.

a. No landscaping to complement architecture;

b. Lack of architectural detail, large blank walls;

c. No street trees or parking lot screening;

d. No provisions for internal pedestrian circulation.

H. Parking.

1. Parking recommended.

a. Seamless integration of parking use and streetscape;

b. Street trees soften impact of lighting on surrounding buildings.

2. Parking recommended.

    a. Street trees provide second buffer so pedestrian environment is greened on both sides.

3. Parking not recommended.

    a. Parking in front of building creates a pedestrian hostile environment with no visible pedestrian access;

    b. Lack of landscaping creates harsh, barren appearance and no buffer between parking area and pedestrian environment;

    c. Signage on fence and freestanding area geared to vehicular traffic and not oriented to pedestrian neighborhood/commercial district where it is located.

4. Parking garages recommended.

    a. Design masks use — garages outwardly resemble an office building;

    b. Minimal curb cuts encourage pedestrian flow;

    c. Garages should make provisions for first floor retail shops when built to sidewalk;

    d. Landscaping and trees buffer use from pedestrian and residential environment.

5. Parking garages not recommended.

    a. Large blank wall destroys vitality of pedestrian realm;

    b. First floor retail or office uses above should surround and mask garage when built to front lot line on commercially zoned streets.

I. Industrial.

1. Industrial recommended.

    a. Internal use screened through high end materials like decorative fencing and landscaping;

    b. High decorative, spiked fence provides security without being visually detracting;

    c. Use of uniform, decorative lighting fixtures create attractive streetscape along narrow sidewalk.

2. Industrial recommended.

    a. Comprehensive design of parking, signage, security and landscaping creates an inviting entrance;

    b. Use of landscape island at vehicular entrance to separate traffic flow provides attractive traffic calming element;

c. Deciduous landscaping partially screens industrial building from building view.

J. Neighborhood Commercial.

1. Neighborhood commercial recommended.

a. On street parking, no curb cuts to interrupt pedestrian flow;

b. Mixed-use;

c. Large display windows on first floor;

d. Limited window signage, uniform signband in scale with storefront;

e. Uniform standardized signage coordinated with architecture;

f. Vestibule provides transition from public to private space.

2. Neighborhood commercial recommended.

a. No curb cuts, on street parking provides a wall to shield pedestrians from traffic;

b. Awnings unify separate buildings to create a smooth transition between buildings;

c. Uniform colors and signband also create unity of appearance;

d. Limited window signage allows pedestrian to see in;

e. Scale of signage conforms to scale of storefront architecture.

3. Neighborhood commercial recommended.

a. Coordination of streetscape elements furniture, bike racks, paper boxes;

b. On street parking, no curb cuts interrupting pedestrian flow.

4. Neighborhood commercial recommended.

a. "Open door" achieved through big window allows interior activity to mix with sidewalk to create a vibrant streetscape;

b. Outdoor dining provision adds to dynamic sidewalk.

5. Neighborhood commercial not recommended.

a. Excessive signage gives "low-rent" appearance;

b. Lack of connection to streetscape through use of opaque materials;

c. Uninviting for pedestrians—cannot see activity in window openings;

d. Colors and materials incompatible with above architecture.

K. Utilities.

1. Utilities recommended.

a. Machinery set back from public view;

b. Architectural fencing provides screening and works in conjunction with landscaping to form buffer;

c. Use of brick enclosure creates uniform and harmonious architectural/color/material scheme.

2. Utilities not recommended.

a. Interior workings on public display;

b. Machinery too close to public space;

c. No space for landscape buffering and screening;

d. Chain link fence does not provide screening and adds to industrial appearance;

e. No street trees.

L. Highway Commercial.

1. Highway commercial not recommended.

a. Commercial appearance needs to be softened through architectural details like fencing, walls and landscaping.

2. Highway commercial not recommended.

a. Multiple signs and banners create visual confusion and degrade the area;

b. Lack of landscaping to soften lights and noise.

3. Highway commercial not recommended.

a. Overuse of site allows business to borrow public realm for display and storage;

b. No definition between end of business and sidewalk through low walls or landscaping.

4. Highway commercial not recommended.

a. Large open parking areas destroy neighborhood vitality;

b. Frequent curb cuts make for a dangerous pedestrian experience.

M. Conversions.

1. Conversion recommended.
    a. Respect for architectural context;
    b. Mixed use with first floor retail and office/housing on upper floors.
2. Conversion not recommended.
    a. Blank walls;
    b. No architectural detail;
    c. No screening of mechanical equipment and meters;
    d. No fenestration.
3. Conversion not recommended.
    a. Removal of original windows destroys first floor vitality and historic features;
    b. Material mismatch removes architectural context.
4. Conversion not recommended.
    a. Functional mismatch of building materials;
    b. Breaks continuous building wall by not respecting established window and door pattern.

§ 345-73. Alcoholic beverages and tobacco product advertisements. [Added 10-13-2022 by Ord. No. 22-084]

No person may place any form of advertising that advertises alcoholic beverages or tobacco products on any billboard, on any front, rear, side or rooftop of any building, or on any free standing billboard or signboard within 1,000 feet of an elementary or secondary school, or where otherwise prohibited by law.

ARTICLE VI
Stormwater Control

[Added 4-11-2007 by Ord. No. 07-056]

§ 345-74. Stormwater control. [Amended 8-8-2007 by Ord. No. 07-133; 5-20-2009 by Ord. No. 09-052; 2-10-2021 by Ord. No. 21-005]

§ 1. Scope and purpose:

A. Policy statement. As Jersey City is developed, additional Impervious Surfaces are added throughout the Municipality. These Impervious Surfaces disrupt the natural flow of the watershed, resulting in increased amounts of Stormwater Runoff during precipitation events. Stormwater Runoff collects

Pollutants as it flows over parking lots, roadways, rooftops, and other paved or hardened surfaces, through Stormwater conveyances, and into our rivers. In addition to conveying Pollutants into our waterbodies, increased Stormwater Runoff also leads to Erosion and flooding downstream.

Further, Jersey City's Stormwater infrastructure is mainly comprised of Combined Sewer Systems ("CSS"). CSS carry Stormwater and wastewater in the same pipes to treatment facilities. The volume of runoff produced during storm events routinely overwhelms the capacity of these systems, resulting in combined sewer overflow ("CSO") events, which discharge untreated sewage and polluted Stormwater directly to nearby waterbodies.

Low Impact Development or "LID" (also referred to as "Green Infrastructure") practices restore or mimic natural conditions, allowing rainwater to infiltrate the Soil, evapotranspirate into the air, or be captured for re-use. These practices deal with the Stormwater at its source rather than after it has been channeled downstream. LID techniques can be implemented at Site, neighborhood, or regional scales and include both nonstructural practices such as Site planning and design, and structural Best Management Practices ("BMPs"). Nonstructural BMPs include the implementation of Green Infrastructure such as Porous Pavement, green roofs, parks, roadside plantings, and rain barrels (GI BMPs).

GI BMPs and Low Impact Development (LID) should be utilized to meet the goal of maintaining natural hydrology to reduce Stormwater Runoff volume, reduce Erosion, encourage Infiltration and groundwater Recharge where feasible, and reduce pollution. GI BMPs and LID should be developed based upon physical Site conditions and the origin, nature and the anticipated quantity, or amount, of potential Pollutants. Multiple Stormwater management BMPs may be necessary to achieve the established performance standards for water quality, quantity, and groundwater Recharge. By capturing rainwater and runoff, GI BMPs can lessen the impact on Jersey City's CSS, and reduce or eliminate the number of CSO events. LID practices also result in additional benefits for Jersey City, including providing open space and beautifying neighborhoods, cooling and cleansing the air, reducing asthma and heat-related illnesses, raising property values, and saving on heating and cooling energy costs.

B. Purpose. It is the purpose of this section to establish minimum Stormwater management requirements and controls for "Major Development" and "Minor Development" as defined in Section 2 of this section. The environmental objectives of these requirements are to reduce pollution from municipal Separate Sewer Systems, direct discharges to surface waters, and CSO events; to reduce flooding and streambank Erosion; and promote rainwater harvesting for re-use on-site. Under this framework, structural BMPs will be integrated with nonstructural Stormwater management strategies and proper inspection and maintenance plans. Low Impact Development-based strategies will include consideration of both environmentally sensitive Site design and source controls that prevent Pollutants from being placed on-site or from being exposed to Stormwater. Source control plans will be developed based upon physical Site conditions and the origin, nature, and the anticipated quantity of potential Pollutants. It is the intent of the City of Jersey City to fully integrate these Stormwater management objectives into its zoning codes and land use plans.

C. Applicability.

1. This section shall apply to all Major and Minor Developments as defined in Section 2.

   a. Where Development that adds, replaces, or disturbs, alone or in combination, 1,000 or more square feet of Impervious Surface results in an alteration to more than 50 percent of regulated Impervious Surface and/or Regulated Motor Vehicle Surface of a previously existing Development, the entire existing Development shall meet the requirements of this article.

2. No Major or Minor Development shall be deemed in compliance with this section unless a legally authorized body or official of the City of Jersey City has issued written findings, based on a technical review by a legally authorized and qualified employee, agent, or official of the City of Jersey City, that such Development complies with the requirements of this section. Such technical review shall include written findings regarding each requirement of this section and shall not rely upon the findings of any other government entity as to the Development's compliance with any other legal requirements.

3. This section shall also be applicable to all Major or Minor Developments undertaken by the City of Jersey City or any other governmental body.

D. Compatibility with other permit and ordinance requirements. Development approvals issued pursuant to this section are to be considered an integral part of Development approvals and do not relieve the applicant of the responsibility to secure required permits or approvals for activities regulated by any other applicable code, rule, act, or ordinance. In their interpretation and application, the provisions of this section shall be held to be the minimum requirements for the promotion of the public health, safety, and general welfare.

This section is not intended to interfere with, abrogate, or annul any other ordinances, rule or regulation, statute, or other provision of law except that, where any provision of this section imposes restrictions different from those imposed by any other ordinance, rule or regulation, or other provision of law, the more restrictive provisions or higher standards shall control.

[The next page is 34788.1]

§ 2. Definitions:

For the purpose of this section, the following terms, phrases, words and their derivations shall have the meanings stated herein unless their use in the text of this chapter clearly demonstrates a different meaning. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory. The definitions below are the same as or based on the corresponding definitions in the Stormwater Management Rules at N.J.A.C. 7:8-1.2.

BEST MANAGEMENT PRACTICE or BMP means structural or nonstructural Stormwater management strategies prescribed by the New Jersey Department of Environmental Protection in the New Jersey Stormwater Best Management Practices Manual.

BIORETENTION means a BMP that consists of a bed filled with Soil, gravel, or other material and planted with suitable non-invasive (preferably native) vegetation. Stormwater Runoff entering a Bioretention system is filtered through the planting bed before being either conveyed downstream by an underdrain system or infiltrated into the existing subsoil below the planting bed.

CAFRA means the Coastal Area Facility Review Act, N.J.S.A. 13:19-1 et seq.

CAFRA CENTERS, CORES OR NODES means those areas within boundaries accepted by the New Jersey Department of Environmental Protection pursuant to N.J.A.C. 7:8E-5B.

CAFRA PLANNING MAP means the geographic depiction of the boundaries for Coastal Planning Areas, CAFRA Centers, CAFRA Cores and CAFRA Nodes pursuant to N.J.A.C. 7:7E-5B.3. The CAFRA Planning Map is available on the Department's Geographic Information System (GIS).

COMBINED SEWER SYSTEM means a system that consists of a single conduit that collects and transports domestic sewage and industrial wastewater, along with Stormwater Runoff.

COMMUNITY BASIN means an Infiltration basin, sand filter designed to infiltrate, standard constructed Wetland, or wet pond, established in accordance with N.J.A.C. 7:8-4.2(c)14, that is designed and constructed in accordance with the New Jersey Stormwater Best Management Practices Manual, or an alternate design, approved in accordance with N.J.A.C. 7:8-5.2(g), for an Infiltration basin, sand filter designed to infiltrate, standard constructed Wetland, or wet pond and that complies with the requirements of this chapter.

COMPACTION means the increase in Soil bulk density due to construction, Development, or other causes.

CONTRIBUTORY DRAINAGE AREA means the area from which Stormwater Runoff drains to a Stormwater Management Measure, not including the area of the Stormwater Management Measure itself.

CORE means a pedestrian-oriented area of commercial and civic uses serving the surrounding Municipality, generally including housing and access to public transportation.

COUNTY REVIEW AGENCY means an agency designated by the County Board of Chosen Freeholders to review municipal Stormwater management plans and implementing ordinance(s). The county Review Agency may either be:

1. A county planning agency; or

2. A county water resource association created under N.J.S.A. 58:16A-55.5, if the ordinance or resolution delegates authority to approve, conditionally approve, or disapprove municipal Stormwater management plans and implementing ordinances.

DEPARTMENT means the New Jersey Department of Environmental Protection.

DESIGNATED CENTER means a State Development and Redevelopment Plan Center as designated by the State Planning Commission such as urban, regional, town, village, or hamlet.

DESIGN ENGINEER means a Person professionally qualified and duly licensed in New Jersey to perform engineering services that may include, but not necessarily be limited to, Development of project requirements, creation and Development of project design and preparation of drawings and specifications.

DEVELOPMENT means the division of a parcel of land into two or more parcels, the construction, reconstruction, conversion, structural alteration, relocation or enlargement of any building or structure, any mining excavation or landfill, any clearing, grading, or excavation or any other activity that results in land Disturbance, and/or any use or change in the use of any building or other structure, or land or extension of use of land, by any Person, for which permission is required under the Municipal Land Use Law, N.J.S.A. 40:55D-1 et seq.

DISTURBANCE means the placement or replacement of Impervious Surfaces or Motor Vehicle surface, or exposure and/or movement of Soil or bedrock or clearing, cutting, or removing of vegetation. Milling and repaving is not considered Disturbance for the purposes of this definition.

DRAINAGE AREA means a geographic area within which Stormwater, Sediments, or dissolved materials drain to a particular receiving waterbody or to a particular point along a receiving waterbody.

ENVIRONMENTALLY CONSTRAINED AREAS means the following areas where the physical alteration of the land is in some way restricted, either through regulation, easement, deed restriction or ownership such as: Wetlands, floodplains, threatened and endangered species Sites or designated habitats, and parks and preserves. Habitats of endangered or threatened species are identified using the Department's Landscape Project as approved by the Department's Endangered and Nongame Species Program.

ENVIRONMENTALLY CRITICAL AREA means an area or feature which is of significant environmental value, including but not limited to: stream corridors; natural heritage priority Sites; habitat of endangered or threatened species; large areas of contiguous open space or upland forest; steep slopes; and well head protection and groundwater Recharge areas. Habitats of endangered or threatened species are identified using the Department's Landscape Project as approved by the Department's Endangered and Nongame Species Program.

EMPOWERMENT NEIGHBORHOOD means a neighborhood designated by the Urban Coordinating Council "in consultation and conjunction with" the New Jersey Redevelopment Authority pursuant to N.J.S.A. 55:19-69.

EROSION means the detachment and movement of Soil or rock fragments by water, wind, ice or gravity.

GREEN INFRASTRUCTURE means a Stormwater management method that manages Stormwater close to its source by: (1) treating Stormwater Runoff through Infiltration into subsoil; (2) treating Stormwater Runoff through filtration by vegetation or Soil; or (3) storing Stormwater Runoff for reuse.

GREEN STREET means a street or right-of-way that includes a variety of elements such as street trees, Permeable Pavements, Bioretention, and swales designed to reduce the amount of Stormwater Runoff and Pollutants transported to a separate storm sewer system or a Combined Sewer System.

HUC 14 or HYDROLOGIC UNIT CODE 14 means an area within which water drains to a particular receiving surface water body, also known as a subwatershed, which is identified by a 14-digit hydrologic boundary designation, delineated within New Jersey by the United States Geological Survey.

IMPERVIOUS SURFACE means a surface that has been covered with a layer of material so that it is highly resistant to Infiltration by water.

INFILTRATION is the process by which water seeps into the Soil from precipitation.

LOW IMPACT DEVELOPMENT (LID) means the implementation of Stormwater management and Site design methods primarily vegetation and Soil to manage Stormwater and reduce Stormwater Runoff.

MAJOR DEVELOPMENT means an individual "Development" as well as multiple Developments that individually or collectively result in:

1. The Disturbance of 10,000 or more square feet of land;

2. The creation or replacement of 5,000 or more square feet of "regulated Impervious Surface;"

3. The creation or replacement of 5,000 or more square feet of "Regulated Motor Vehicle Surface; or

4. A combination of 2 and 3 above that totals an area of 5,000 or more square feet. The same surface shall not be counted twice when determining if the combination area equals 5,000 or more square feet.

MINOR DEVELOPMENT means an individual "Development" as well as multiple Developments that individually or collectively result in:

1. The Disturbance of 5,000 or more square feet, but less than 10,000 square feet of land;

2. The creation of 1,000 or more square feet, but less than 5,000 square feet of "regulated Impervious Surface;"

3. The creation of 1,000 or more square feet, but less than 5,000 square feet of "Regulated Motor Vehicle Surface;" or

4. A combination of 2 and 3 above that totals an area of at least 1,000 square feet, but less than 5,000 square feet or more square feet. The same surface shall not be counted twice when determining if the combination area equals 5,000 or more square feet.

"Minor Development" includes all Developments that are part of a common plan of Development or sale (for example, phased residential Development) that collectively or individually meet any one or more of paragraphs 1, 2, 3, or 4 above. Projects undertaken by any government agency that otherwise meet the definition of "Major Development" but which do not require approval under the Municipal Land Use Law, N.J.S.A. 40:55D-l et seq., are also considered "Major Development." Projects that do not require Land Use Board approval are exempt from Minor Development requirements.

MOTOR VEHICLE means land vehicles propelled other than by muscular power, such as automobiles, motorcycles, autocycles, and low speed vehicles. For the purposes of this definition, Motor Vehicles do not include farm equipment, snowmobiles, all-terrain vehicles, motorized wheelchairs, go-carts, gas buggies, golf carts, ski-slope grooming machines, or vehicles that run only on rails or tracks.

MOTOR VEHICLE SURFACE means any pervious or Impervious Surface that is intended to be used by Motor Vehicles and/or aircraft, and is directly exposed to precipitation including, but not limited to, driveways, parking areas, parking garages, roads, racetracks, and runways.

MUNICIPALITY means the City of Jersey City.

NEW JERSEY STORMWATER BEST MANAGEMENT PRACTICES (BMP) MANUAL or BMP MANUAL means the manual maintained by the Department providing, in part, design specifications, removal rates, calculation methods, and Soil testing procedures approved by the Department as being capable of contributing to the achievement of the Stormwater management standards specified in this chapter. The BMP Manual is periodically amended by the Department as necessary to provide design specifications on additional Best Management Practices and new information on already included practices reflecting the best available current information regarding the particular practice and the Department's determination as to the ability of that Best Management Practice to contribute to compliance with the standards contained in this chapter. Alternative Stormwater Management Measures, removal rates, or calculation methods may be utilized, subject to any limitations specified in this chapter, provided the Design Engineer demonstrates to the Municipality, in accordance with Section 4.E of this section and N.J.A.C. 7:8-5.2(g), that the proposed measure and its design will contribute to achievement of the design and performance standards established by this chapter.

NODE means an area designated by the State Planning Commission concentrating facilities and activities which are not organized in a compact form.

NUTRIENT means a chemical element or compound, such as nitrogen or phosphorus, which is essential to and promotes the development of organisms.

PERVIOUS PAVEMENT mean a pavement system that allows water to infiltrate through the pavement into an underground stone reservoir to provide temporary storage before infiltrating the Soil. "Pervious Pavement" includes pervious asphalt, pervious concrete, and interlocking pavers.

PERMEABLE PAVEMENT means a pavement system with surface voids constructed over a bed of crush stone or sand that allows water to infiltrate the Soil.

POROUS PAVEMENT means porous asphalt or concrete surface placed over a runoff storage bed of broken stone and un-compacted subgrade Soils.

PERSON means any individual, corporation, company, partnership, firm, association, or political subdivision of this state subject to municipal jurisdiction pursuant to the Municipal Land Use Law, N.J.S.A. 40:55D-l et seq. "Person" shall also include the City of Jersey City.

POLLUTANT means any dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, refuse, oil, grease, sewage sludge, munitions, chemical wastes, biological materials, medical wastes, radioactive substance (except those regulated under the Atomic Energy Act of 1954, as amended (42 U.S.C. 2011 et seq.), thermal waste, wrecked or discarded equipment, rock, sand, cellar dirt, industrial, municipal, agricultural, and construction waste or runoff, or other residue discharged directly or indirectly to the land, ground waters or surface Waters of the State, or to a domestic treatment works. "Pollutant" includes both hazardous and nonhazardous Pollutants.

RECHARGE means the amount of water from precipitation that infiltrates into the ground and is not evapotranspired.

REGULATED IMPERVIOUS SURFACE means any of the following, alone or in combination: (1) a net increase of Impervious Surface; (2) the total area of Impervious Surface collected by a new Stormwater conveyance system/Combined Sewer System (for the purpose of this definition, a "new Stormwater conveyance system" is a Stormwater conveyance system that is constructed where one did not exist immediately prior to its construction or an existing system for which a new discharge location is created); (3) the total area of Impervious Surface proposed to be newly collected by an existing Stormwater conveyance system/Combined Sewer System; and/or (4) the total area of Impervious Surface collected by an existing Stormwater conveyance system/Combined Sewer System where the capacity of that system is increased.

REGULATED MOTOR VEHICLE SURFACE means any of the following, alone or in combination: (1) the total area of Motor Vehicle surface that is currently receiving water; (2) a net increase in Motor Vehicle surface; and/or the total area of Motor Vehicle surface that is currently receiving water quality treatment either by vegetation or Soil, by an existing Stormwater Management Measure, or by treatment at a wastewater treatment plant, where the water quality treatment will be modified or removed.

REVIEW AGENCY means the Jersey City Municipal Utilities Authority (JCMUA).

SEDIMENT means solid material, mineral or organic, that is in suspension, is being transported, or has been moved from its Site of origin by air, water or gravity as a product of Erosion.

SEPARATE SEWER SYSTEM means a system in which the sanitary and storm sewer systems are not interconnected. In this system, the sanitary sewer system is tributary to a wastewater treatment facility, and the storm sewer system discharges directly to the receiving waters.

SITE means the lot or lots upon which a Major Development is to occur or has occurred.

SOIL means all unconsolidated mineral and organic material of any origin.

SOURCE CONTROL MEASURE means any Stormwater management practice designed to reduce and/or slow the flow of Stormwater into a Combined Sewer System or Separate Sewer System, including, and not limited to, LID or BMP.

SOURCE MATERIAL means any material(s) or machinery, located at an industrial facility, that is directly or indirectly related to process, manufacturing or other industrial activities, which could be a source of Pollutants in any industrial Stormwater discharge to groundwater. Source Materials include, but are not limited to, raw materials; intermediate products; final products; waste materials; by-products; industrial machinery and fuels, and lubricants, solvents, and detergents that are related to process, manufacturing, or other industrial activities that are exposed to Stormwater.

STATE DEVELOPMENT AND REDEVELOPMENT PLAN METROPOLITAN PLANNING AREA (PAI) means an area delineated on the State Plan Policy Map and adopted by the State Planning Commission that is intended to be the focus for much of the state's future redevelopment and revitalization efforts.

STATE PLAN POLICY MAP is defined as the geographic application of the State Development and Redevelopment Plan's goals and statewide policies, and the official map of these goals and policies.

STORMWATER means water resulting from precipitation (including rain and snow) that runs off the land's surface, is transmitted to the subsurface, or is captured by separate storm sewers or other sewage or drainage facilities, or conveyed by snow removal equipment.

STORMWATER MANAGEMENT BASIN means an excavation or embankment and related areas designed to retain Stormwater Runoff. A Stormwater Management Basin may either be normally dry (that is, a detention basin or Infiltration basin), retain water in a permanent pool (a retention basin), or be planted mainly with Wetland vegetation (most constructed Stormwater Wetlands).

STORMWATER MANAGEMENT BMP means an excavation or embankment and related areas designed to retain Stormwater Runoff. A Stormwater management BMP may either be normally dry (that is, a detention basin or Infiltration system), retain water in a permanent pool (a retention basin), or be planted mainly with Wetland vegetation (most constructed Stormwater Wetlands).

STORMWATER MANAGEMENT MEASURE means any practice, technology, process, program, or other method intended to control or reduce Stormwater Runoff and associated Pollutants, or to induce or control the Infiltration or groundwater Recharge of Stormwater or to eliminate illicit or illegal non-Stormwater discharges into Stormwater conveyances.

STORMWATER MANAGEMENT PLANNING AGENCY means a public body authorized by legislation to prepare Stormwater management plans.

STORMWATER MANAGEMENT PLANNING AREA means the geographic area for which a Stormwater Management Planning Agency is authorized to prepare Stormwater management plans, or a specific portion of that area identified in a Stormwater management plan prepared by that agency.

STORMWATER RUNOFF means water flow on the surface of the ground or in storm sewers, resulting from precipitation.

TIDAL FLOOD HAZARD AREA means a flood hazard area in which the flood elevation resulting from the two-, ten-, or 100-year storm, as applicable, is governed by tidal flooding from the Atlantic Ocean. Flooding in a tidal Flood Hazard Area may be contributed to, or influenced by, Stormwater Runoff from inland areas, but the depth of flooding generated by the tidal rise and fall of the Atlantic Ocean is greater than flooding from any fluvial sources. In some situations, depending upon the extent of the storm surge from a particular storm event, a flood hazard area may be tidal in the 100-year storm, but fluvial in more frequent storm events.

URBAN COORDINATING COUNCIL EMPOWERMENT NEIGHBORHOOD means a neighborhood given priority access to state resources through the New Jersey Redevelopment Authority.

URBAN ENTERPRISE ZONE means a zone designated by the New Jersey Enterprise Zone Authority pursuant to the New Jersey Urban Enterprise Zones Act, N.J.S.A. 52:27H-60 et seq.

URBAN REDEVELOPMENT AREA is defined as previously developed portions of areas:

1. Delineated on the State Plan Policy Map (SPPM) as the Metropolitan Planning Area (PAI), Designated Centers, Cores or Nodes;

2. Designated as CAFRA Centers, Cores or Nodes;

3. Designated as Urban Enterprise Zones; and

4. Designated as Urban Coordinating Council Empowerment Neighborhoods.

VEGETATIVE SOURCE CONTROL MEASURE means a Source Control Measure that relies on living vegetative systems to reduce and/or slow the flow of Stormwater into a Combined Sewer System or Separate Sewer System.

WATER CONTROL STRUCTURE means a structure within, or adjacent to, a water, which intentionally or coincidentally alters the hydraulic capacity, the flood elevation resulting from the two-, ten-, or 100-year storm, flood hazard area limit, and/or floodway limit of the water. Examples of a Water Control Structure may include a bridge, culvert, dam, embankment, ford (if above grade), retaining wall, and weir.

WATERS OF THE STATE means the ocean and its estuaries, all springs, streams, Wetlands, and bodies of surface or ground water, whether natural or artificial, within the boundaries of the State of New Jersey or subject to its jurisdiction.

WETLANDS or WETLAND means an area that is inundated or saturated by surface water or ground water at a frequency and duration sufficient to support, and that under normal circumstances does support, a prevalence of vegetation typically adapted for life in saturated Soil conditions, commonly known as hydrophytic vegetation.

§ 3. Design and performance standards for Stormwater Management Measures:

A. Stormwater Management Measures for Major and Minor Development shall be designed to provide Erosion control, groundwater Recharge, Stormwater Runoff quantity control, and Stormwater Runoff quality treatment as follows:

1. The minimum standards for Erosion control are those established under the Soil and Sediment Control Act, N.J.S.A. 4:24-39 et seq., and implementing rules at N.J.A.C. 2:90.

2. The minimum standards for groundwater Recharge, Stormwater quality, and Stormwater Runoff quantity shall be met by incorporating Green Infrastructure.

B. Unless otherwise indicated, the standards in this section apply only to new Major and Minor Development as defined herein and are intended to minimize the impact of Stormwater Runoff on water quality and water quantity in receiving water bodies and achieve additional environmental benefits, including maintaining groundwater Recharge. The standards do not apply to new Major Development to the extent that alternative design and performance standards are applicable under a regional Stormwater management plan or Water Quality Management Plan adopted in accordance with Department rules.

§ 4. Stormwater management requirements for Major Development:

A. As stated above, Stormwater Management Measures for Major Development shall be designed to provide Erosion control, groundwater Recharge, Stormwater Runoff quantity control, and Stormwater Runoff quality treatment as follows:

1. The minimum design and performance standards for Erosion control are those established under the Soil Erosion and Sediment Control Act, N.J.S.A. 4:24-39 et seq., and implementing rules at N.J.A.C. 2:90 and 16:25A.

2. The minimum design and performance standards for groundwater Recharge, Stormwater Runoff quality, and Stormwater Runoff quantity at N.J.A.C. 7:8-5.4, 5.5, and 5.6 shall be met by incorporating Green Infrastructure in accordance with N.J.A.C. 7:8-5.3.

B. Each Development to this section shall incorporate a maintenance plan for the Stormwater Management Measures incorporated into the design of a Major Development in accordance with Section 15 of this section.

C. Stormwater Management Measures shall avoid adverse impacts of concentrated flow on habitat for threatened and endangered species as documented in the Department's Landscape Project or Natural Heritage Database established under N.J.S.A. 13:16-15.147 through 15.150, particularly Helonias bullata (swamp pink) and/or Clemmys muhlnebergi (bog turtle).

D. The following linear Development projects are exempt from the Stormwater retention, groundwater Recharge, Stormwater Runoff quantity, and Stormwater Runoff quality requirements of Sections 7, 8, 9, and 10 of this article:

1. The construction of an underground utility line provided that the disturbed areas are revegetated upon completion with priority given for use of native plant species;

2. The construction of an aboveground utility line provided that the existing conditions are improved or are maintained to the maximum extent practicable; and

3. The construction of a public pedestrian access, such as a sidewalk or trail with a maximum width of 14 feet, provided that the access is made of permeable, porous, or perviable material.

E. A waiver from strict compliance from the groundwater Recharge, Stormwater Runoff quantity, and Stormwater Runoff quality requirements of Sections 7, 8, and 9 herein may be granted for the enlargement of an existing public roadway or railroad; or the construction or enlargement of a public pedestrian access, provided that the following conditions are met:

1. The applicant demonstrates that there is a public need for the project that cannot be accomplished by any other means;

2. The applicant demonstrates through an alternatives analysis, in writing, that through the use of Stormwater Management Measures, the option selected complies with the requirements of Sections 7, 8, and 9 of this article to the maximum extent practicable. For road or highway projects, the applicant shall, at minimum, follow USEPA guidance regarding managing Wet Weather with Green Infrastructure; Green Streets (December 2008 EPA-833-F-08-009);

3. The applicant demonstrates that, in order to meet the requirements of Sections 7, 8, and 9, existing structures currently in use, such as homes and buildings, would need to be condemned; and

4. The applicant demonstrates that it does not own or have other rights to areas, including the potential to obtain through condemnation lands not falling under Section 3.D.3 above within the upstream Drainage Area of the receiving stream, that would provide additional opportunities to mitigate the requirements of Sections 7, 8, and 9 herein that were not achievable on-site.

F. The tables below summarize the ability of Stormwater Best Management Practices identified and described in the New Jersey Stormwater Best Management Practices Manual to satisfy the Green Infrastructure, groundwater Recharge, Stormwater Runoff quality, and Stormwater Runoff quantity standards specified in this article. When designed in accordance with the New Jersey Stormwater Best Management Practices Manual and this chapter, the Stormwater Management Measures listed in Tables 4-1,4-2, and 4-3 shall be presumed to be capable of providing Stormwater controls for the design and performance standards as outlined in the tables below. Upon amendment of the New Jersey Stormwater Best Management Practices Manual to reflect additions or deletions of BMPs meeting these standards, or changes in the presumed performance of BMPs designed in accordance with the New Jersey Stormwater BMP Manual, the Department shall publish in the New Jersey Register a notice of administrative change revising the applicable table.

G. The most current version of the BMP Manual can be found on the Department's website at: https://njStormwater.org/bmp____manual2.htm.

H. Where the BMP tables in the NJ Stormwater Management Rule are different due to updates or amendments with the tables in this section the BMP Tables in the Stormwater Management rule at N.J.A.C. 7:8-5.2(f) shall take precedence.

Table 4-1
Green Infrastructure BMPs for Groundwater Recharge, Stormwater Runoff Quality, and/or Stormwater Runoff Quantity

Best Management Practice	Stormwater Runoff Quality TSS Removal Rate (percent)	Stormwater Runoff Quantity	Groundwater Recharge	Minimum Separation from Seasonal High Water Table (feet)
Cistern	0	Yes	No	—
Dry well[a]	0	No	Yes	2
Grass swale	50 or less	No	No	2[e] 1[f]
Green roof	0	Yes	No	—
Manufactured treatment device[a][g]	50 or 80	No	No	Dependent upon the device
Pervious paving system[a]	80	Yes	Yes[b] No[c]	2[b] 1[c]
Small-scale bioretention system[a]	80 or 90	Yes	Yes[b] No[c]	2[b] 1[c]
Small-scale infiltration basin[a]	80	Yes	Yes	2
Small-scale sand filter[a][b]	80	Yes	Yes	2
Vegetative filter strip	60—80	No	No	—
Notes corresponding to annotations (a) through (g) are found after Table 4-3				

Table 4-2
Green Infrastructure BMPs for Stormwater Runoff Quantity (or for Groundwater Recharge and/or Stormwater Runoff Quality with a Waiver of Variance from N.J.A.C. 7:8-5.3

Best Management Practice	Stormwater Runoff Quality TSS Removal Rate (percent)	Stormwater Runoff Quantity	Groundwater Recharge	Minimum Separation from Seasonal High Water Table (feet)
Bioretention system	80 or 90	Yes	Yes[b] No[c]	2[b] 1[c]
Infiltration basin	80	Yes	Yes	2
Sand filter[b]	80	Yes	Yes	2
Standard constructed wetland	90	Yes	No	N/A
Wet pond[d]	50—90	Yes	No	N/A
Notes corresponding to annotations (a) through (g) are found after Table 4-3				

Table 4-3
BMPs for Groundwater Recharge, Stormwater Runoff Quality, and/or Stormwater Runoff Quantity only with a Waiver or Variance from N.J.A.C 7:8-5.3

Best Management Practice	Stormwater Runoff Quality TSS Removal Rate (percent)	Stormwater Runoff Quantity	Groundwater Recharge	Minimum Separation from Seasonal High Water Table (feet)
Blue roof	0	Yes	No	N/A
Extended detention basin	40—60	Yes	No	1
Manufactured treatment device[h]	50 or 80	No	No	Dependent upon the device
Sand filter[c]	80	Yes	No	1
Subsurface gravel wetland	90	No	No	1
Wet pond	50—90	Yes	No	N/A

Notes to Tables 4-1, 4-2, and 4-3:

[a] Subject to the applicable Contributory Drainage Area limitation specified at Subsection 5.B;

[b] Designed to infiltrate into the subsoil;

[c] Designed with underdrains;

[d] Designed to maintain at least a ten-foot wide area of native vegetation along at least 50 percent of the shoreline and to include a Stormwater Runoff retention component designed to capture Stormwater Runoff for beneficial reuse, such as irrigation;

[e] Designed with a slope of less than two percent;

[f] Designed with a slope of equal to or greater than two percent;

[g] Manufactured treatment devices that meet the definition of Green Infrastructure as defined in Section 2 herein;

[h] Manufactured treatment devices that do not meet the definition of Green Infrastructure as defined in Section 2 herein.

I. An alternative Stormwater Management Measure, alternative removal rate, and/or alternative method to calculate the removal rate may be used if the Design Engineer demonstrates the capability of the proposed alternative Stormwater Management Measure and/or the validity of the alternative rate or method to the Review Agency. A copy of any approved alternative Stormwater Management Measure, alternative removal rate, and/or alternative method to calculate the removal rate shall be provided to the Department at: Division of Water Quality, New Jersey Department of Environmental Protection, Mail Code 401-02B, PO Box 420, Trenton, New Jersey 08625-0420. Alternative Stormwater Management Measures may be used to satisfy the requirements at Section 5 of this article only if the measures meet the definition of Green Infrastructure as defined in Section 2 herein. Alternative

Stormwater Management Measures that function in a similar manner to a BMP listed at Section 5.B are subject to the Contributory Drainage Area limitation specified at Section 5.B for that similarly functioning BMP. Alternative Stormwater Management Measures approved in accordance with this subsection that do not function in a similar manner to any BMP listed at Section 5.B shall have a Contributory Drainage Area less than or equal to 2.5 acres, except for alternative Stormwater Management Measures that function similarly to cisterns, grass swales, green roofs, standard constructed Wetlands, vegetative filter strips, and wet ponds, which are not subject to a Contributory Drainage Area limitation. Alternative measures that function similarly to standard constructed Wetlands or wet ponds shall not be used for compliance with the Stormwater Runoff quality standard unless a variance in accordance with N.J.A.C. 7:8 or a waiver from strict compliance in accordance with Section 4.D above is granted.

J. Whenever the Stormwater management design includes one or more BMPs that will infiltrate Stormwater into subsoil, the Design Engineer shall assess the hydraulic impact on the groundwater table and design the Site, so as to avoid adverse hydraulic impacts. Potential adverse hydraulic impacts include, but are not limited to, exacerbating a naturally or seasonally high water table, so as to cause surficial ponding, flooding of basements, or interference with the proper operation of subsurface sewage disposal systems or other subsurface structures within the zone of influence of the groundwater mound, or interference with the proper functioning of the Stormwater Management Measure itself.

K. Design standards for Stormwater Management Measures are as follows:

1. Stormwater Management Measures shall be designed to take into account the existing Site conditions, including, but not limited to, Environmentally Critical Areas; Wetlands; flood-prone areas; slopes; depth to seasonal high water table; Soil type, permeability, and texture; Drainage Area and drainage patterns; and the presence of solution-prone carbonate rocks (limestone);

2. Stormwater Management Measures shall be designed to minimize maintenance, facilitate maintenance and repairs, and ensure proper functioning. Trash racks shall be installed at the intake to the outlet structure, as appropriate, and shall have parallel bars with one-inch spacing between the bars to the elevation of the water quality design storm. For elevations higher than the water quality design storm, the parallel bars at the outlet structure shall be spaced no greater than one-third the width of the diameter of the orifice or one-third the width of the weir, with a minimum spacing between bars of one inch and a maximum spacing between bars of six inches. In addition, the design of trash racks must comply with the requirements of Subsection 13.B;

3. Stormwater Management Measures shall be designed, constructed, and installed to be strong, durable, and corrosion resistant. Measures that are consistent with the relevant portions of the Residential Site Improvement Standards at N.J.A.C. 5:21-7.3, 7.4, and 7.5 shall be deemed to meet this requirement;

4. Stormwater Management Basins shall be designed to meet the minimum safety standards for Stormwater Management Basins at Section 13; and

5. The size of the orifice at the intake to the outlet from the Stormwater Management Basin shall be a minimum of 2½ inches in diameter.

L. Manufactured treatment devices may be used to meet the requirements of this subchapter under the circumstances described in Section 5.D, provided the Pollutant removal rates are verified by the New Jersey Corporation for Advanced Technology and certified by the Department.

M. Any application for a new agricultural Development that meets the definition of Major Development as defined in Section 2 herein shall be submitted to the Soil Conservation District for review and approval in accordance with the requirements at Sections 7 and 9 and any applicable Soil Conservation District guidelines for Stormwater Runoff quantity and Erosion control. For purposes of this section, "agricultural Development" means land uses normally associated with the production of food, fiber, and livestock for sale. Such uses do not include the Development of land for the processing or sale of food and the manufacture of agriculturally related products.

N. If there is more than one Drainage Area, the groundwater Recharge, Stormwater Runoff quality, and Stormwater Runoff quantity standards at Sections 7, 8, and 9 shall be met in each Drainage Area, unless the runoff from the Drainage Areas converge on-site and no adverse environmental impact would occur as a result of compliance with any one or more of the individual standards being determined utilizing a weighted average of the results achieved for that individual standard across the affected Drainage Areas.

O. Any Stormwater Management Measure authorized pursuant to this article shall be reflected in a deed notice recorded in the Office of the County Clerk or the registrar of deeds and mortgages of the county in which the Development, project, project Site, or mitigation area containing the Stormwater Management Measure is located. A form of deed notice shall be submitted to the reviewing agency for approval prior to filing. The deed notice shall contain a description of the Stormwater Management Measure(s) used to meet the Green Infrastructure, Stormwater retention, groundwater Recharge, Stormwater Runoff quality, and Stormwater Runoff quantity standards at Sections 5, 6, 7, 8, 9, and 10 and shall identify the location of the Stormwater Management Measure(s) in NAD 1983 State Plane New Jersey FIPS 2900 US Feet or Latitude and Longitude in decimal degrees. The deed notice shall also reference the maintenance plan required to be recorded upon the deed pursuant to Section 15.B.5 Prior to the commencement of construction, proof that the above required deed notice has been filed shall be submitted to the Review Agency. Proof that the required information has been recorded on the deed shall be in the form of either a copy of the complete recorded document or a receipt from the clerk or other proof of recordation provided by the recording office. However, if the initial proof provided to the Review Agency is not a copy of the complete recorded document, a copy of the complete recorded document shall be provided to the Review Agency within 180 calendar days of the authorization granted by the Review Agency.

P. A Stormwater Management Measure approved under article may be altered or replaced with the approval of the applicable Review Agency, if the Review Agency determines that the proposed alteration or replacement meets the design and performance standards pursuant to this article and provides the same level of Stormwater management as the previously approved Stormwater Management Measure that is being altered or replaced. If an alteration or replacement is approved, a revised deed notice shall be submitted to the reviewing agency for approval and subsequently recorded with the appropriate Office of the County Clerk or the registrar of deeds and mortgages and shall contain a description and location of the Stormwater Management Measure, as well as reference to the

maintenance plan, in accordance with 4.M above. Prior to the commencement of construction, proof that the above required deed notice has been filed shall be submitted to the Review Agency in accordance with 4.M above.

§ 5. Green Infrastructure:

A. This section specifies the types of Green Infrastructure BMPs that may be used to satisfy the groundwater Recharge, Stormwater Runoff quality, and Stormwater Runoff quantity standards.

B. To satisfy the groundwater Recharge and Stormwater Runoff quality standards at Sections 7 and 8, the Design Engineer shall utilize Green Infrastructure BMPs identified in Table 4-1 and/or an alternative Stormwater Management Measure approved in accordance with Subsection 4.H. The following Green Infrastructure BMPs are subject to the following maximum Contributory Drainage Area limitations:

Best Management Practice	Maximum Contributory Drainage Area
Dry well	1 acre
Manufactured treatment device	2.5 acres
Pervious Pavement systems	Area of additional inflow cannot exceed three times the area occupied by the BMP
Small-scale Bioretention systems	2.5 acres
Small-scale Infiltration basin	2.5 acres
Small-scale sand filter	2.5 acres

C. To satisfy the Stormwater Runoff quantity standards at Section 9, the Design Engineer shall utilize BMPs from Table 4-1 or from Table 4-2 and/or an alternative Stormwater Management Measure approved in accordance with Subsection 4.H.

D. If a variance in accordance with N.J.A.C. 7:8-4.6 or a waiver from strict compliance in accordance with Subsection 4.D is granted from the requirements of this section, then BMPs from Table 4-1, 4-2, or 4-3, and/or an alternative Stormwater Management Measure approved in accordance with Subsection 4.H may be used to meet the groundwater Recharge, Stormwater Runoff quality, and Stormwater Runoff quantity standards at Sections 7, 8, and 9.

E. For separate or combined storm sewer improvement projects, such as sewer separation, undertaken by a government agency or sewerage authority, the requirements of this section shall only apply to areas owned in fee simple by the government agency or sewerage authority, and areas within a right-of-way or easement held or controlled by the government agency or sewerage authority; the entity shall not be required to obtain additional property or property rights to fully satisfy the requirements of this section. Regardless of the amount of area of a separate or combined storm sewer improvement project subject to the Green Infrastructure requirements of this section, each project shall fully comply with the applicable groundwater Recharge, Stormwater Runoff quality control, and Stormwater Runoff quantity standards at Sections 7, 8, and 9 unless the project is granted a waiver from strict compliance in accordance with Subsection 4.D.

§ 6. Stormwater retention standard for Minor Development:

A. This section contains minimum design and performance standards for Stormwater retention for Minor Development:

For each square foot of Impervious Surface, 0.6 gallons of Stormwater shall be retained on-site using Green Infrastructure practices listed in Section 5 or other methods as identified by references included in Section 11 of this section.

§ 7. Groundwater Recharge standards for Major Development:

A. This subsection contains minimum design and performance standards for groundwater Recharge for Major Development.

B. The minimum design and performance standards for groundwater Recharge are as follows:

1. The Design Engineer shall, using the assumptions and factors for Stormwater Runoff and groundwater Recharge calculations at Section 10 of this article, use whichever of the following demonstration approaches that yields a larger Infiltration volume:

a. Demonstrate through hydrologic and hydraulic analysis that the Site and its Stormwater Management Measures maintain 100 percent of the average annual pre-construction groundwater Recharge volume for the Site; or

b. Demonstrate through hydrologic and hydraulic analysis that the increase of Stormwater Runoff volume from pre-construction to post-construction for the two-year storm is infiltrated.

C. This groundwater Recharge requirement does not apply to projects within the "Urban Redevelopment Area," or to projects subject to (D) below.

D. The following types of Stormwater shall not be Recharged:

1. Stormwater from areas of high Pollutant loading. High Pollutant loading areas are areas in industrial and commercial Developments where solvents and/or petroleum products are loaded/unloaded, stored, or applied, areas where pesticides are loaded/unloaded or stored; areas where hazardous materials are expected to be present in greater than "reportable quantities" as defined by the United States Environmental Protection Agency (EPA) at 40 CFR 302.4; areas where Recharge would be inconsistent with Department approved remedial action work plan or landfill closure plan and areas with high risks for spills of toxic materials, such as gas stations and vehicle maintenance facilities; and

2. Industrial Stormwater exposed to Source Material. "Source Material" means any material(s) or machinery, located at an industrial facility, that is directly or indirectly related to process, manufacturing or other industrial activities, which could be a source of Pollutants in any industrial Stormwater discharge to groundwater. Source Materials include, but are not limited to,

raw materials; intermediate products; final products; waste materials; by-products; industrial machinery and fuels, and lubricants, solvents, and detergents that are related to process, manufacturing, or other industrial activities that are exposed to Stormwater.

§ 8. Stormwater Runoff quality standards for Major Development:

A. This subsection contains minimum design and performance standards for Stormwater Runoff quality for Major Development. Stormwater Runoff quality standards are applicable when the Major Development results in the Disturbance of one acre or more of land.

B. Stormwater quality management measures shall be designed to reduce the post-construction load of total suspended solids (TSS) in Stormwater Runoff by generated from the water quality design storm as follows:

1. Eighty percent TSS removal of the anticipated load, expressed as an annual average shall be achieved for the Stormwater Runoff from the net increase of Motor Vehicle surface.

2. If the surface is considered Regulated Motor Vehicle Surface because the water quality treatment for an area of Motor Vehicle surface that is currently receiving water quality treatment either by vegetation or Soil, by an existing Stormwater Management Measure, or by treatment at a wastewater treatment plant is to be modified or removed, the project shall maintain or increase the existing TSS removal of the anticipated load expressed as an annual average.

C. The requirement to reduce TSS does not apply to any Stormwater Runoff in a discharge regulated under a numeric effluent limitation for TSS imposed under the New Jersey Pollution Discharge Elimination System (NJPDES) rules, N.J.A.C. 7:14A, or in a discharge specifically exempt under a NJPDES permit from this requirement. Every Major Development, including that discharged into a Combined Sewer System, shall comply with (b) above, unless the Major Development is itself subject to a NJDPES permit with a numeric effluent limitation for TSS or the NJDPES permit to which the Major Development is subject exempts the development from a numeric effluent limitation for TSS.

D. The water quality design storm is 1.25 inches of rainfall in two hours. Water quality calculations shall take into account the distribution of rain from the water quality design storm, as reflected in Table 8-1. The calculation of the volume of runoff may take into account the implementation of Stormwater Management Measures.

Table 8-1
Water Quality Design Storm Distribution

Time (minutes)	Cumulative Rainfall (inches)	Time (minutes)	Cumulative Rainfall (inches)	Time (minutes)	Cumulative Rainfall (inches)
1	0.00166	41	0.1728	81	1.0906
2	0.00332	42	0.1796	82	1.0972
3	0.00498	43	0.1864	83	1.1038
4	0.00664	44	0.1932	84	1.1104
5	0.00830	45	0.2000	85	1.1170
6	0.00996	46	0.2117	86	1.1236

Time (minutes)	Cumulative Rainfall (inches)	Time (minutes)	Cumulative Rainfall (inches)	Time (minutes)	Cumulative Rainfall (inches)
7	0.01162	47	0.2233	87	1.1302
8	0.01328	48	0.2350	88	1.1368
9	0.01494	49	0.2466	89	1.1434
10	0.01660	50	0.2583	90	1.1500
11	0.01828	51	0.2783	91	1.1550
12	0.01996	52	0.2983	92	1.1600
13	0.02164	53	0.3183	93	1.1650
14	0.02332	54	0.3383	94	1.1700
15	0.02500	55	0.3583	95	1.1750
16	0.03000	56	0.4116	96	1.1800
17	0.03500	57	0.4650	97	1.1850
18	0.04000	58	0.5183	98	1.1900
19	0.04500	59	0.5717	99	1.1950
20	0.05000	60	0.6250	100	1.2000
21	0.05500	61	0.6783	101	1.2050
22	0.06000	62	0.7317	102	1.2100
23	0.06500	63	0.7850	103	1.2150
24	0.07000	64	0.8384	104	1.2200
25	0.07500	65	0.8917	105	1.2250
26	0.08000	66	0.9117	106	1.2267
27	0.08500	67	0.9317	107	1.2284
28	0.09000	68	0.9517	108	1.2300
29	0.09500	69	0.9717	109	1.2317
30	0.10000	70	0.9917	110	1.2334
31	0.10660	71	1.0034	111	1.2351
32	0.11320	72	1.0150	112	1.2367
33	0.11980	73	1.0267	113	1.2384
34	0.12640	74	1.0383	114	1.2400
35	0.13300	75	1.0500	115	1.2417
36	0.13960	76	1.0568	116	1.2434
37	0.14620	77	1.0636	117	1.2450
38	0.15280	78	1.0704	118	1.2467
39	0.15940	79	1.0772	119	1.2483
40	0.16600	80	1.0840	120	1.2500

E. If more than one BMP in series is necessary to achieve the required 80 percent TSS reduction for a Site, the applicant shall utilize the following formula to calculate TSS reduction:

$$R = A + B - (A \times B)/100$$

Where

R = total TSS percent load removal from application of both BMPs, and

A = the TSS percent removal rate applicable to the first BMP

B = the TSS percent removal rate applicable to the second BMP

F. Stormwater Management Measures shall also be designed to reduce, to the maximum extent feasible, the post-construction Nutrient load (nitrogen and phosphorous) of the anticipated load from the developed Site in Stormwater Runoff generated from the water quality design storm. In achieving reduction of Nutrients to the maximum extent feasible, the design of the Site shall include Green Infrastructure BMPs that optimize Nutrient removal while still achieving the performance standards in Section 4.

G. In accordance with the definition of FWI at N.J.A.C. 7:9B-1.4, Stormwater Management Measures shall be designed to prevent any increase in Stormwater Runoff to waters classified as FWI.

H. The Flood Hazard Area Control Act Rules at N.J.A.C. 7:13-4.1(c)1 establish 300-foot riparian zones along Category One waters, as designated in the Surface Water Quality Standards at N.J.A.C. 7:9B, and certain upstream tributaries to Category One waters. A Person shall not undertake a Major Development that is located within or discharges into a 300-foot riparian zone without prior authorization from the Department under N.J.A.C. 7:13.

I. Pursuant to the Flood Hazard Area Control Act Rules at N.J.A.C. 7:13-11.2(j)4, runoff from the water quality design storm that is discharged within a 300-foot riparian zone shall be treated in accordance with this section to reduce the post-construction load of total suspended solids by 95 percent of the anticipated load from the developed Site, expressed as an annual average.

J. This section does not apply to the construction of one individual single-family dwelling, provided that is not part of a larger Development or subdivision that has received preliminary or final Site plan approval prior to December 3, 2018, and that the Motor Vehicle surfaces are made of permeable material(s) such as gravel, dirt, and/or shells.

§ 9. Stormwater Runoff quantity standards for Major Development:

A. This section contains the minimum design and performance standards to control Stormwater Runoff quantity impacts of Major Development.

B. In order to control Stormwater Runoff quantity impacts, the Design Engineer shall, using the assumptions and factors for Stormwater Runoff calculations at Section 10, complete one of the following:

1. Demonstrate through hydrologic and hydraulic analysis that for Stormwater leaving the Site, post-construction runoff hydrographs for the two-, ten-, and 100-year storm events do not exceed, at any point in time, the pre-construction runoff hydrographs for the same storm events;

2. Demonstrate through hydrologic and hydraulic analysis that there is no increase, as compared to the pre-construction condition, in the peak runoff rates of Stormwater leaving the Site for the two-, ten-, and 100-year storm events and that the increased volume or change in timing of Stormwater Runoff will not increase flood damage at or downstream of the Site. This analysis shall include the analysis of impacts of existing land uses and projected land uses assuming full Development under existing zoning and land use ordinances in the Drainage Area;

3. Design Stormwater Management Measures so that the post-construction peak runoff rates for the two-, ten-, and 100-year storm events are 50, 75, and 80 percent, respectively, of the

pre-construction peak runoff rates. The percentages apply only to the post-construction Stormwater Runoff that is attributable to the portion of the Site on which the proposed Development or project is to be constructed; or

4. In tidal Flood Hazard Areas, Stormwater Runoff quantity analysis, in accordance with (b)1, 2, and 3 above, is required unless the Design Engineer demonstrates through hydrologic and hydraulic analysis that the increased volume, change in timing, or increased rate of the Stormwater Runoff, or any combination of the three will not result in additional flood damage below the point of discharge of the Major Development. No analysis is required if the Stormwater is discharged directly into any ocean, bay, inlet, or the reach of any watercourse between its confluence with an ocean, bay, or inlet and downstream of the first Water Control Structure.

C. The Stormwater Runoff quantity standards shall be applies at the Site's boundary to each abutting lot, roadway, watercourse, or receiving storm sewer system.

§ 10. Calculation of Stormwater Runoff, Stormwater retention, and groundwater Recharge for Major Development:

A. Stormwater Runoff shall be calculated in accordance with the following:

1. The Design Engineer shall calculate runoff using one of the following methods:

a. The USDA Natural Resources Conservation Service (NRCS) methodology, including the NRCS Runoff Equation and Dimensionless Unit Hydrograph, as described Chapters 7, 9, 10, 15, and 16, Part 630, of the Hydrology National Engineering Handbook, incorporated herein by reference, as amended and supplemented. This methodology is additionally described in Technical Release 55 — Urban Hydrology for Small Watersheds (TR-55), dated June 1986, incorporated herein by reference, as amended and supplemented. Information regarding the methodology is available from the Natural Resources Conservation Service website at: https://www.nrcs.usda.gov/lnternet/FSE____DOCUMENTS/stelprdbl044171.pdf or at United States Department of Agriculture Natural Resources Conservation Service, 220 Davison Avenue, Somerset, New Jersey 08873; or

b. The Rational Method for peak flow and the Modified Rational Method for hydrograph computations. The rational and modified rational methods are described in "Appendix A-9 Modified Rational Method" in the Standards for Soil Erosion and Sediment Control in New Jersey, July 1999, as amended and supplemented. This document is available from the State Soil Conservation Committee or any of the Soil Conservation Districts listed at N.J.A.C. 2:90-1.3(a)4. The location, address, and telephone number for each Soil Conservation District is available from the State Soil Conservation Committee, PO Box 330, Trenton, NJ 08625. The document is also available at http://www.nj.gov/agriculture/divisions/anr/pdf/2014NJSoilErosionControlStan dardsComplete.pdf.

2. For the purpose of calculating runoff coefficients and groundwater Recharge, there is a presumption that the pre-construction condition of a Site or portion thereof is a wooded land use with good hydrologic condition. The term "runoff coefficient" applies to both the NRCS methodology at Subsection 10.A.1.a and the Rational and Modified Rational Methods at Section 10.A.1.b. A

runoff coefficient or a groundwater Recharge land cover for an existing undeveloped land condition may be used on all or a portion of the Site if the Design Engineer verifies that the hydrologic condition has existed on the Site or portion of the Site for at least five years without interruption prior to the time of application. If more than one undeveloped land cover type has existed on the Site during the five years immediately prior to the time of application, the land cover with the lowest runoff potential shall be used for the computations. In addition, there is the presumption that the Site is in good hydrologic condition (if the land use type is pasture, lawn, or park), with good cover (if the land use type is woods), or with good hydrologic condition and conservation treatment (if the land use type is cultivation).

3. In computing pre-construction Stormwater Runoff, the Design Engineer shall account for all significant land features and structures, such as ponds, Wetlands, depressions, hedgerows, or culverts, that may reduce pre-construction Stormwater Runoff rates and volumes.

4. In computing Stormwater Runoff from all design storms, the Design Engineer shall consider the relative Stormwater Runoff rates and/or volumes of pervious and Impervious Surfaces separately to accurately compute the rates and volume of Stormwater Runoff from the Site. To calculate runoff from unconnected impervious cover, urban impervious area modifications as described in the NRCS Technical Release 55—Urban Hydrology for Small Watersheds and other methods may be employed.

5. If the invert of the outlet structure of a Stormwater Management Measure is below the flood hazard design flood elevation as defined at N.J.A.C. 7:13, the Design Engineer shall take into account the effects of tailwater in the design of structural Stormwater Management Measures.

B. Groundwater Recharge may be calculated in accordance with the following:

1. The New Jersey Geological Survey Report GSR-32 A Method for Evaluating Groundwater-Recharge Areas in New Jersey, incorporated herein by reference as amended and supplemented. Information regarding the methodology is available from the New Jersey Stormwater Best Management Practices Manual; at the New Jersey Geological and Water Survey website at http://www.nj.gov/dep/njgs; or at New Jersey Geological and Water Survey, 29 Arctic Parkway, PO Box 420 Mail Code 29-01, Trenton, NJ 08625-0420

§ 11. Sources for technical guidance:

A. Technical guidance for Stormwater Management Measures can be found in the documents listed below, which are available to download from the Department's website at: http://www.nj.gov/dep/Stormwater/bmp manual2.htm.

B. Guidelines for Stormwater Management Measures are contained in the New Jersey Stormwater Best Management Practices Manual, as amended and supplemented. Information is provided on Stormwater Management Measures such as, but not limited to, those listed in Table 4-1, Table 4-2, and Table 4-3.

C. Additional technical guidance for Stormwater Management Measures can be obtained from the Department's website at http://www.nj.gov/dep/Stormwater/maintenance_guidance.htm and the U.S. Environmental protection Agency's Green Infrastructure resource page at http://water.epa.gov/infrastructure/greeninfrastructure/index.cfm.

D. Submissions required for review by the Department should be mailed to: The Division of Water Quality, New Jersey Department of Environmental Protection, Mail Code 401-02B, PO Box 420, Trenton, New Jersey 08625-0420.

§ 12. Solids and floatable materials controls standards:

A. Site design features identified under Subsection 4.F above, or alternative designs in accordance with Section 4 above, to prevent discharge of trash and debris from drainage systems shall comply with the following standard to control passage of solid and floatable materials through storm drain inlets. For purposes of this paragraph, "solid and floatable materials" means Sediment, debris, trash, and other floating, suspended, or settleable solids. For exemptions to this standard see Subsection 12.A.2 below.

1. Design engineers shall use one of the following grates whenever they use a grate in pavement or another ground surface to collect Stormwater from that surface into a storm drain or surface water body under that grate:

   a. The New Jersey Department of Transportation (NJDOT) bicycle safe grate, which is described in Chapter 2.4 of the NJDOT Bicycle Compatible Roadways and Bikeways Planning and Design Guidelines; or

   b. A different grate, if each individual clear space in that grate has an area of no more than seven square inches, or is no greater than 0.5 inches across the smallest dimension.

      Examples of grates subject to this standard include grates in grate inlets, the grate portion (non-curb-opening portion) of combination inlets, grates on storm sewer manholes, ditch grates, trench grates, and grates of spacer bars in slotted drains. Examples of ground surfaces include surfaces of roads (including bridges), driveways, parking areas, bikeways, plazas, sidewalks, lawns, fields, open channels, and Stormwater system floors used to collect Stormwater from the surface into a storm drain or surface water body.

   c. For curb-opening inlets, including curb-opening inlets in combination inlets, the clear space in that curb opening, or each individual clear space if the curb opening has two or more clear spaces, shall have an area of no more than seven square inches, or be no greater than two inches across the smallest dimension.

2. The standard in A.1 above does not apply:

   a. Where each individual clear space in the curb opening in existing curb-opening inlet does not have an area of more than nine square inches;

   b. Where the Municipality agrees that the standards would cause inadequate hydraulic performance that could not practicably be overcome by using additional or larger storm drain inlets;

   c. Where flows from the water quality design storm as specified in N.J.A.C. 7:8 are conveyed through any device (e.g., end of pipe netting facility, manufactured treatment device, or a catch basin hood) that is designed, at a minimum, to prevent delivery of all solid and floatable materials that could not pass through one of the following:

      i. A rectangular space 4.625 inches long and 1.5 inches wide (this option does not apply for outfall netting facilities); or

ii. A bar screen having a bar spacing of 0.5 inches.

3. Note that these exemptions do not authorize any infringement of requirements in the Residential Site Improvement Standards for bicycle safe grates in new residential Development (N.J.A.C. 5:21-4.18(b)2 and 7.4(b)l).

4. Where flows are conveyed through a trash rack that has parallel bars with one-inch spacing between the bars, to the elevation of the Water Quality Design Storm as specified in N.J.A.C. 7:8; or

5. Where the New Jersey Department of Environmental Protection determines, pursuant to the New Jersey Register of Historic Places Rules at N.J.A.C. 7:4-7.2(c), that action to meet this standard is an undertaking that constitutes an encroachment or will damage or destroy the New Jersey Register listed historic property.

§ 13. Safety standards for Stormwater Management Basins:

A. This section sets forth requirements to protect public safety through the proper design and operation of Stormwater Management Basins. This section applies to any new Stormwater Management Basin. In the event of any conflict between this section and the Jersey City Stormwater Management Plan, the stricter provision shall apply.

B. Requirements for Trash Racks, Overflow Grates and Escape Provisions. A trash rack is a device designed to catch trash and debris and prevent the clogging of outlet structures. Trash racks shall be installed at the intake to the outlet from the Stormwater Management Basin to ensure proper functioning of the basin outlets in accordance with the following:

1. The trash rack shall have parallel bars, with no greater than six inch spacing between the bars.

2. The trash rack shall be designed so as not to adversely affect the hydraulic performance of the outlet pipe or structure.

3. The average velocity of flow through a clean trash rack is not to exceed 2.5 feet per second under the full range of stage and discharge. Velocity is to be computed on the basis of the net area of opening through the rack.

4. The trash rack shall be constructed and installed to be rigid, durable, and corrosion resistant, and shall be designed to withstand a perpendicular live loading of 300 pounds per square foot.

C. An overflow grate is designed to prevent obstruction of the overflow structure. If an outlet structure has an overflow grate, such grate shall meet the following requirements:

1. The overflow grate shall be secured to the outlet structure but removable for emergencies and maintenance.

2. The overflow grate spacing shall be no less than two inches across the smallest dimension.

3. The overflow grate shall be constructed and installed to be rigid, durable, and corrosion resistant, and shall be designed to withstand a perpendicular live loading of 300 pounds per square foot.

D. Stormwater Management Basins shall include escape provisions as follows:

1. If a Stormwater Management Basin has an outlet structure, escape provisions shall be incorporated in or on the structure. With the prior approval of the reviewing agency identified in Subsection 13.C below, a free-standing outlet structure may be exempted from this requirement.

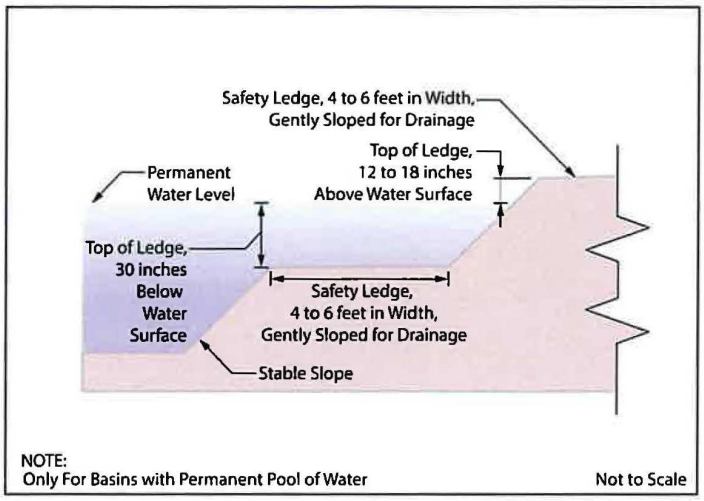
2. Safety ledges shall be constructed on the slopes of all new Stormwater Management Basins having a permanent pool of water deeper than 2.5 feet. Such safety ledges shall be comprised of two steps. Each step shall be four to six feet in width. One step shall be located approximately 2.5 feet below the permanent water surface, and the second step shall be located one to 1.5 feet above the permanent water surface. See Subsection 13.D for an illustration of safety ledges in a Stormwater Management Basin.

3. In new Stormwater Management Basins, the maximum interior slope for an earthen dam, embankment, or berm shall not be steeper than three horizontal to one vertical.

E. Variance or exemption from safety standards.

1. A variance or exemption from the safety standards for Stormwater Management Basins may be granted only upon a written finding by the appropriate reviewing agency that the variance or exemption will not constitute a threat to public safety.

F. Illustration of safety ledges in a new Stormwater Management Basin.



§ 14. Requirements for a Site Development Stormwater plan:

A. Submission of Site Development Stormwater plan.

1. Whenever an applicant seeks municipal approval of a Development subject to this section, the applicant shall submit all of the required components of the submittal for the Site Development

Stormwater plan at Subsection 14.C below and any additional components as specified in the City's Stormwater management plan latest revisions as part of the submission of the applicant's application for subdivision or Site plan approval.

2. The applicant shall demonstrate that the project meets the standards set forth in this section.

3. The applicant shall submit five copies of the materials listed in the submittal for Site Development Stormwater plans in accordance with Section 14.C of this article.

B. Site Development Stormwater plan approval. The applicant's Site Development plan shall be reviewed as a part of the subdivision or Site plan review process by the municipal board or official from which municipal approval is sought. That municipal board or official shall consult with the engineers of the JCMUA and be guided by them to determine if all the submittal requirements have been satisfied and to determine if the project meets the standards set forth in this section. Municipal approval may not be issued unless the requirements of this section are met. Approval of other local, state, and/or other permits (also known as "prior approvals") is not a substitute for local approval of a project's Site Development Stormwater plan.

C. Submittal requirements for Major Development. The following information shall be required:

1. Topographic base map. The reviewing engineer may require upstream tributary drainage system information as necessary. It is recommended that the topographic base map of the Site be submitted which extends a minimum of 200 feet beyond the limits of the proposed Development, at a scale of one inch equals 200 feet or greater, showing two foot contour intervals. The map as appropriate may indicate the following: existing surface water drainage, shorelines, steep slopes, Soils, erodible Soils, perennial or intermittent streams that drain into or upstream of the Category One waters, Wetlands and flood plains along with their appropriate buffer strips, marshlands and other Wetlands, pervious or vegetative surfaces, existing man-made structures, roads, bearing and distances of property lines, and significant natural and manmade features not otherwise shown.

2. Environmental Site analysis. A written and graphic description of the natural and manmade features of the Site and its environs. This description should include a discussion of Soil conditions, slopes, Wetlands, waterways and vegetation on the Site. Particular attention should be given to unique, unusual, or environmentally sensitive features and to those that provide particular opportunities or constraints for Development.

3. Project description and Site plan(s). A map (or maps) at the scale of the topographical base map indicating the location of existing and proposed buildings, roads, parking areas, utilities, structural facilities for Stormwater management and Sediment control, and other permanent structures. The map(s) shall also clearly show areas where alterations occur in the natural terrain and cover, including lawns and other landscaping, and seasonal high ground water elevations. A written description of the Site plan and justification of proposed changes in natural conditions may also be provided.

4. Land use planning and Source Control Plan. This plan shall provide a demonstration of how the goals and standards of Sections 4 through 10 are being met. The focus of this plan shall be to

describe how the Site is being developed to meet the objective of controlling groundwater Recharge, Stormwater quality and Stormwater quantity problems at the source by land management and source controls whenever possible.

5. Stormwater management facilities map. The following information, illustrated on a map of the same scale as the topographic base map, shall be included:

   a. Total area to be paved or built upon, proposed surface contours, land area to be occupied by the Stormwater management facilities and the type of vegetation thereon, and details of the proposed plan to control and dispose of Stormwater.

   b. Details of all Stormwater management facility designs, during and after construction, including discharge provisions, discharge capacity for each outlet at different levels of detention and emergency spillway provisions with maximum discharge capacity of each spillway.

6. Calculations.

   a. Comprehensive hydrologic and hydraulic design calculations for the predevelopment and post-development conditions for the design storms specified in Section 4 of this section.

   b. When the proposed Stormwater management control measures (e.g., Infiltration basins) depends on the hydrologic properties of Soils, then a Soils report shall be submitted. The Soils report shall be based on on-site boring logs or Soil pit profiles. The number and location of required Soil borings or Soil pits shall be determined based on what is needed to determine the suitability and distribution of Soils present at the location of the control measure.

7. Maintenance and repair plan. The design and planning of the Stormwater management facility shall meet the maintenance requirements of Section 15.

8. Waiver from submission requirements. The conditions for a waiver from submission requirements are defined in the Municipal Land Use Law, N.J.S.A. 40:55D-10.3. The municipal official or board reviewing an application under this section may, in consultation with the Municipality's review engineer, waive submission of any of the requirements in Subsection 14.C.1 through 14.C.6 of this section when it can be demonstrated that the information requested is impossible to obtain or it would create a hardship on the applicant to obtain and its absence will not materially affect the review process.

D. Submittal requirements for Minor Development.

1. Applicants seeking municipal approval of Minor Developments shall submit the information described in Subsections 14.C.3, 14.C.4, 14.C.5, and 14.C.7. Applicants shall also submit calculations demonstrating compliance with the retention standard in Section 6.

2. The conditions for a waiver from submission requirements are defined in the municipal Land Use Law, N.J.S.A. 40:55D-10.3.

§ 15. Maintenance and repair:

A. Applicability.

1. Projects subject to review as in Sections 3 and 4 of this section shall also comply with the requirements of this section.

B. General maintenance.

1. The Design Engineer shall prepare a maintenance plan for the Stormwater Management Measures incorporated into the design of a Major Development.

2. The maintenance plan shall contain specific preventative maintenance tasks and schedules; cost estimates, including estimated cost of Sediment, debris, or trash removal; and the name, address, and telephone number of the Person or Persons responsible for preventative and corrective maintenance (including replacement). Maintenance guidelines for Stormwater Management Measures are available in the New Jersey Stormwater Best Management Practices Manual. If the maintenance plan identifies a Person other than the developer (for example, a public agency or homeowners' association) as having the responsibility for maintenance, the plan shall include documentation of such Person's agreement to assume this responsibility, or of the developer's obligation to dedicate a Stormwater management facility to such Person under an applicable ordinance or regulation.

3. The maintenance plan shall specifically provide a municipal right of access, which may include Stormwater easements or covenants. The maintenance access shall be provided by the property owner(s) for access regarding facility inspections and maintenance, as required. Easements and covenants shall be recorded prior to issuance of any permit or approval.

4. Responsibility for maintenance shall not be assigned or transferred to the owner or tenant of an individual property in a residential Development or project, unless such owner or tenant owns or leases the entire residential Development or project.

5. If the Person responsible for maintenance identified under Subsection 15.B.2 above is not a public agency, the maintenance plan and any future revisions shall be recorded upon the deed of record for each property on which the maintenance described in the maintenance plan must be undertaken.

6. Preventative and corrective maintenance shall be performed to maintain the function of the Stormwater Management Measure, including repairs to or replacement of the structure; removal of Sediment, debris, or trash; restoration of eroded areas; snow and ice removal; fence repair or replacement; restoration of vegetation; and repair or replacement of non-vegetated linings.

C. The Person responsible for maintenance identified under Subsection 15.B.2 above shall perform all the following requirements:

1. Maintain a detailed log of all preventative and corrective maintenance for the structural Stormwater Management Measures incorporated into the design of the Development, including a record of all inspections and copies of all maintenance-related work orders;

2. Evaluate the effectiveness of the maintenance plan at least once per year and adjust the plan and the deed as needed; and

3. Retain and make available, upon request by any public entity with administrative, health, environmental, or safety authority over the Site, the maintenance plan and the required documentation.

D. On or before February 1 of each year, the Person responsible for maintenance identified under Subsection 15.B above shall submit to the City of Jersey City and the Review Agency a certification of compliance during the prior year with the requirements of Subsection 15.B, which shall include a summary of inspection and maintenance activities and any proposed changes to the maintenance plan.

E. The requirements of Subsections 15.B.4 and 15.B.5 do not apply to Stormwater management facilities that are dedicated to and accepted by the Municipality or another governmental agency subject to all applicable municipal Stormwater general permit conditions, as issued by the Department.

F. In the event that the Stormwater management facility becomes a danger to public safety or public health, or if it is in need of maintenance or repair, the Municipality shall so notify the responsible Person in writing. Upon receipt of that notice, the responsible Person shall have 14 days to effect maintenance and repair of the facility in a manner that is approved by the Chief Engineer of the JCMUA or his designee. The Municipality, in its discretion, may extend the time allowed for effecting maintenance and repair for good cause. If the responsible Person falls or refuses to perform such maintenance and repair, the Municipality or County may immediately proceed to do so and shall bill the cost thereof to the responsible Person. Nonpayment of such bill may result in a lien on the property.

G. The Review Agency (JCMUA) has the authority to institute a permit system to enforce the maintenance and repair requirements in this section.

H. Nothing in this section shall preclude the Municipality in which the Major Development is located from requiring the posting of a performance or maintenance guarantee in accordance with N.J.S.A. 40:55D-53.

§ 16. Penalties:

A. Any Person who erects, constructs, alters, repairs, converts, maintains, or uses any building, structure or land in violation of this section shall be subject to the following penalties:

B. Any Person, firm or corporation who violates, disobeys, omits, neglects, or refuses to comply with or who resists the enforcement of any of the provisions of this chapter or any order, decision or determination by the Jersey City Municipal Utilities Authority or the City of Jersey City and who refuses to abate said violation within 14 days after written notice has been served upon them shall, for each and every violation, be punishable as provided in Chapter 1, General Provisions. Each day that such violation continues after such notice shall be considered a separate and specific violation of this chapter without the service of an additional notice. The Jersey City Municipal Utilities Authority may also withhold water meters to ensure compliance with this section.

§ 17. Severability:

If the provisions of any section, subsection, paragraph, subdivision, or clause of this section shall be judged invalid by a court of competent jurisdiction, such order of judgment shall not affect or invalidate the remainder of any section, subsection, paragraph, subdivision, or clause of this section.

§ 18. Effective date:

This section shall take effect immediately upon the approval by the County Review Agency, or 60 days from the receipt of the ordinance by the County Review Agency if the County Review Agency should fail to act.

ARTICLE VII

Performance and Maintenance Guarantees

§ 345-75. Installation of improvements or guarantees.

A. Performance Guarantees Required.

1. Prior to the granting of final approval of a subdivision or site plan, the applicant shall have installed or shall have furnished performance guarantees for the ultimate installation of the improvements that were shown on the approved preliminary plan, required as a condition of preliminary approval, or, in the case of subdivisions only, required by the provisions of the "Map Filing Law."

2. Improvements for which performance guarantees may be required include without limitation: streets, grading, pavement, gutters, curbs, sidewalks, street lighting, shade trees, surveyor's monuments, water mains, culverts, storm sewers, sanitary sewers or other means of sewage disposal, drainage structures, erosion control and sedimentation control devices, public improvements of open space, and, in the case of site plans only, landscaping and other on-site improvements.

3. The applicant shall file with the City Clerk a performance guarantee in favor of the City of Jersey City insuring the installation of all uncompleted improvements on or before an agreed upon date. The cost of installation of the required improvements shall be estimated by the City Engineer pursuant to N.J.S.A. 40:55D-53, and the amount of the performance guarantee shall be of an amount equal to one hundred twenty percent (120%) of this estimated cost. Ten percent (10%) of the performance guarantee must be in the form of cash.

4. The form and sufficiency of the guarantee shall be subject to approval of the City Attorney. Performance guarantees shall be expressly conditioned upon the developer's full compliance with all City ordinances and regulations governing the installation of improvements and utilities and faithful performance of the terms of any developer's agreement with the City.

5. The time allowed for installation of the improvements for which the performance guarantee has been provided may be extended by the City Council by resolution. As a condition or as part of any such extension, the amount of any performance guarantee shall be increased or reduced, as the case may be, to an amount equal to one hundred twenty percent (120%) of the cost of the installation as determined by the City Engineer pursuant to N.J.S.A. 40:55D-53 as of the time of the passage of the resolution.

6. If the required improvements are not completed or corrected in accordance with the performance guarantee, the obligor and surety, if any, shall be liable thereon to the City for the reasonable cost of the improvements not completed or corrected, and the City may either prior to or after the receipt of the proceeds thereof complete such improvements. Such completion or correction of improvements shall be subject to the public bidding requirements of the "Local Public Contracts Law."

7. Upon substantial completion of all required street improvements (except the top course) and appurtenant utility improvements, and the connection of same to the public system, the obligor may notify the City Council in writing, by certified mail addressed in care of the City Clerk, that the City Engineer prepare, in accordance with the itemized cost estimate prepared by the City Engineer and appended to the performance guarantee, a list of all uncompleted or unsatisfactory completed improvements. If such a request is made, the obligor shall send a copy of the request to the City Engineer. The request shall indicate which improvements have been completed and which improvements remain uncompleted in the judgment of the obligor. Thereupon the City engineer shall inspect all improvements covered by obligor's request and shall file a detailed list and report, in writing, with the City Council, and shall simultaneously send a copy thereof to the obligor not later than forty-five (45) days after receipt of the obligor's request.

8. The list prepared by the City Engineer shall state, in detail, with respect to each improvement determined to be incomplete or unsatisfactory, the nature and extent of the incompleteness of each incomplete improvement or the nature and extent of, and remedy for, the unsatisfactory state of each completed improvement determined to be unsatisfactory. The report prepared by the City Engineer shall identify each improvement determined to be complete and satisfactory together with a recommendation as to the amount or reduction to be made in the performance guarantee relating to the completed and satisfactory improvement, in accordance with the itemized cost estimate prepared by the City Engineer and appended to the performance guarantee.

9. The City Council, by resolution, shall either approve the improvements determined to be complete and satisfactory by the City Engineer, or reject any or all of these improvements upon the establishment in the resolution of cause for rejection, and shall approve and authorize the amount of reduction to be made in the performance guarantee relating to the improvements accepted, in accordance with the itemized cost estimate prepared by the City Engineer and appended to the performance guarantee. This resolution shall be adopted not later than forty-five (45) days after receipt of the list

and report prepared by the City Engineer. Upon adoption of the resolution by the City Council, the obligor shall be released from all liability pursuant to its performance guarantee, with respect to those approved improvements, except for that portion adequately sufficient to secure completion or correction of the improvements not yet approved; provided that thirty percent (30%) of the amount of the total performance guarantee posted may be retained to ensure completion and acceptability of all improvements.

10. For the purpose of releasing the obligor from liability pursuant to its performance guarantee, the amount of the performance guarantee attributable to each approved improvement shall be reduced by the total amount of each such improvement, in accordance with the itemized cost estimate prepared by the City Engineer and appended to the performance guarantee, including any contingency factor applied to the cost of installation. If the sum of the approved improvements would exceed seventy percent (70%) of the total amount of the performance guarantee, then the City may retain thirty percent (30%) of the amount of the total performance guarantee to ensure completion and acceptability of all improvements, as provided above.

11. If the City Engineer fails to send or provide the list and report as requested by the obligor pursuant to subsection (G) of this section within forty-five (45) days from receipt of the request, the obligor may apply to the court in a summary manner for an order compelling the City Engineer to provide the list and report within a stated time and the cost of applying to the court, including reasonable attorney's fees, may be awarded to the prevailing party.

12. If the City Council fails to approve or reject the improvements determined by the City Engineer to be complete and satisfactory or reduce the performance guarantee for the complete and satisfactory improvements within forty-five (45) days from the receipt of the City Engineer's list and report, the obligor may apply to the court in a summary manner for an order compelling, within a stated time, approval of the complete and satisfactory improvements and approval of a reduction in the performance guarantee for the approvable complete and satisfactory improvements in accordance with the itemized cost estimate prepared by the City Engineer and appended to the performance guarantee; and the cost of applying to the court, including reasonable attorneys fees, may be awarded to the prevailing party.

13. In the event that the obligor has made a cash deposit with the City as part of the performance guarantee, then any partial reduction granted in the performance guarantee pursuant to this subsection shall be applied to the cash deposit in the same proportion as the original cash deposit bears to the full amount of the performance guarantee.

14. If any portion of the required improvements are rejected, the City Council may require the obligor to complete or correct such improvements and, upon completion or correction, the same procedure of notification, as set forth in this section shall be followed.

15. Nothing herein, however, shall be construed to limit the right of the obligor to contest by legal proceedings any determination of the City Council or the City Engineer.

16. In the event that final approval is by stages or sections of development, the provisions of this section shall be applied by stage or section.

17. To the extent that any of the improvements have been dedicated to the City on the subdivision plat or site plan, the City Council shall be deemed upon the release of any performance guarantee required, to accept dedication for public use of streets or roads and any other improvements made thereon according to site plans and subdivisions plats approved by the Board, provided that such improvements have been inspected and have received final approval by the City Engineer.

B. Maintenance Guarantees Required.

1. Upon completion and acceptance by the City Council of the required improvements or a portion of such improvements, the developer may be required to post a maintenance guarantee with the City Council for a period not to exceed two years after final acceptance of the improvement, in an amount not to exceed fifteen percent (15%) of the cost of the improvement, as determined by the City Engineer pursuant to N.J.S.A 40:55D-53.

2. The form and sufficiency of the maintenance guarantee shall be approved by the City Attorney. The maintenance guarantee for an improvement shall be posted upon final release by the City Council of the performance guarantee for that improvement and shall be expressly conditioned upon the maintenance by the developer of such improvement for a period of two years, and particularly shall guarantee the remedy of any defects in such improvement which occur during that period.

3. Maintenance of Landscaped Areas. All landscaped areas must be properly maintained. In the event that an applicant shall at any time after the issuance of a certificate of occupancy fail to maintain any landscaped areas, the Zoning Official shall serve written notice setting forth any failure to maintain said landscaped area in a reasonable condition, and said notice shall include a demand that such deficiencies be cured within four weeks thereof and shall state the date and place of any hearing thereon which may be held. If the deficiencies set forth in the original notice or in any modification thereof are not cured within said four weeks or any extension thereof the Zoning Official, in order to preserve the taxable value of the surrounding property and to prevent the landscaped areas from becoming a public nuisance, shall revoke the zoning permit issued to said premises until such time as the deficiencies are cured.

4. In the event that other governmental agencies or public utilities automatically will own the utilities to be installed or the improvements are covered by a performance or maintenance guarantee to another governmental agency, no performance or maintenance guarantee, as the case may be, shall be required by the City for such utilities or improvements.

5. Appeal Procedure for Disputed Guarantee Amounts. The cost of the installation of improvements shall be estimated by the City Engineer based on documented construction costs for public improvements prevailing in the general area of the City. The developer may appeal the City Engineer's estimate to the county construction board of appeals.

C. Acceptance of Guarantee. The City Council shall accept a performance guarantee or maintenance guarantee which is an irrevocable letter of credit if it:

1. Constitutes an unconditional payment obligation of the issuer running solely to the City for an express initial period of time in the amount determined pursuant to subsection (A) of this section;

2. Is issued by a banking or savings institution authorized to do and doing business in this State;

3. Is for a period of time at least one year; and

4. Permits the City to draw upon the letter of credit if the obligor fails to furnish another letter of credit which complies with the provisions of this section thirty (30) days or more in advance of the expiration date of the letter of credit or such longer period in advance thereof as is stated in the letter of credit.

ARTICLE VIII
Enforcement, Violations and Penalties

§ 345-76. Enforcement.

A. Zoning Officer. It shall be the duty of the Zoning Officer and his or her staff to administer and enforce this chapter. No structure shall be erected without a building permit and no structure or lot shall use or have its use changed so as to be in violation of this chapter, In no case shall a building permit be issued for the construction or alteration of any structure nor shall a certificate of occupancy be issued for a new occupant with a new use, or new use by the present occupant, until the proposed construction or alteration or use conforms to the provisions of this chapter. It shall be the duty of the Zoning Officer to cause any structures, plans or premises to be inspected or examined and order the owner in writing that any condition be remedied which is found to exist in violation of any provisions of this chapter. It shall be the duty of the Zoning Officer to keep a record of all applications and all permits which are either issued or denied, with notations of any conditions involved, which data shall form a part of the City public records.

B. Building Permits. Applications for building permits shall be submitted in a form required by the Building Code of Jersey City and with sufficient data to confirm conformance with all applicable portions of this chapter. Building permit applications shall also be accompanied by an approved site plan as required by this chapter prior to the granting of a building permit.

C. Certificate of Occupancy.

1. It shall be unlawful to use or permit the use of any structure or part thereof, hereafter erected, enlarged, moved or changed to another use, wholly or in part, or occupied by a new use until a certificate of occupancy shall have been issued by the Construction Code Official. No certificate of occupancy shall be issued for any new building or part thereof until all streets, drainage, parking, loading, water, sewer and other items shown on a site plan or subdivision are properly completed and functioning. Such certificate shall show that such structure or part of a structure and the proposed use thereof conform to the requirements of this chapter and all approvals granted pursuant thereto,

the Uniform Construction Code, all other applicable City ordinances, regulations and directives and all applicable county, state and federal laws and regulations. It shall be the duty of the Construction Code Official to fully issue a certificate of occupancy only when he or she has received written confirmation from the Zoning Officer that the structure or part of a structure and the proposed use thereof conform to this chapter; and when he or she is satisfied that the structure conforms to all other applicable codes and ordinances of the city.

2. Should the zoning officer decline to approve a structure based on the provisions of this chapter, his or her reasons for doing so shall be so stated on two copies of this application and one copy returned to the applicant.

3. Revocation. On the serving of notice of any violation of any of the provisions or requirements of this chapter with respect to any structure or use thereof, or of land, as provided below, the certificate of occupancy for such use shall thereupon, without further action, be null and void, and a new certificate of occupancy shall be required for any further use of such structure or land.

D. Historic Preservation. All permit applications affecting historic districts, landmarks, buildings, structures, objects, sites or landscape features shall promptly be referred to the Zoning Officer and Historic Preservation Officer for review and appropriate action prior to permit issuance.

E. Certificates of Non-Conformity. The prospective purchaser, prospective mortgagee, or any other person interested in any land upon which a nonconforming use or structure exists may apply in writing for the issuance of a certificate certifying that the use or structure existed before the adoption of the ordinance which rendered the use or structure nonconforming. The applicant shall have the burden of proof. Application pursuant hereto may be made to the administrative officer within one year of the adoption of the ordinance which rendered the use or structure nonconforming or at any time to the board of adjustment.

F. Plan Review and Determination. The real or prospective owner and/or developer of any land may apply in writing for the issuance of a plan review and determination certifying that submitted plans comply with the provisions of this chapter, redevelopment plan or deviation/variance therefrom duty authorized. **[Added 11-10-2015 by Ord. No. 15-147]**

G. Zoning Determination. The real or prospective owner and/or developer of any land may apply in writing for the issuance of a zoning determination letter signed by the zoning officer, which acknowledges that such use, structure or building complies with the provisions of this chapter, redevelopment plan or deviation/variance therefrom duly authorized. **[Added 11-10-2015 by Ord. No. 15-147]**

H. Pre-existing Curbcut Determination. The real owner, prospective purchaser, prospective mortgagee, or any other person interested in any land may apply in writing for the issuance of a pre-existing curbcut determination certifying that a curbcut exists legally before the adoption of the ordinance which rendered the curbcut nonconforming or a deviation/variance therefrom was duly authorized. The applicant shall have the burden of proof. **[Added 11-10-2015 by Ord. No. 15-147]**

I. Fees. The Zoning Officer and Division of Zoning Enforcement may establish fees to cover adminis-

trative costs for the issuance of permits, determinations, certificates and authorizations. **[Added 11-10-2015 by Ord. No. 15-147]**

J. The Department of Public Safety may supplement enforcement of only those sections of this chapter that are concurrently within the jurisdiction of the Municipal Court. **[Added 9-23-2020 by Ord. No. 20-074]**

§ 345-77. Violations and penalties.

A. Any person, firm or corporation who violates, disobeys, omits, neglects or refuses to comply with or who resists the enforcement of any of the provisions of this chapter or any order, decision or determination by the Board of Adjustment and who refuses to abate said violation within ~~fourteen (14)~~ twenty-one (21) days after written notice has been served upon them by registered mail or by personal service shall, for each and every violation, be punishable as provided in Chapter 1, General Provisions. Each and every day that such violation continues after such notice shall be considered a separate and specific violation of this chapter without the service of an additional notice. If any person shall undertake any activity vis-à-vis an individual landmark or landmark building, structure, object, site, or landmark feature within a historic district, without first having obtained a certificate of appropriateness or a certificate of no effect, such person shall be deemed in violation of this Article. Fines not paid within the time period set by law shall convert to a tax lien placed against the property and shall be recorded with the Jersey City Property Tax Office and the Hudson County Register of Deeds and Mortgages. **[Amended 4-25-2007 by Ord. No. 07-063]**

B. In case any building or structure is erected, constructed, reconstructed, altered, moved, repaired, converted, maintained or used or any land is used in violation of or contrary to the provisions of this chapter or any order, decision or determination by the Board of Adjustment, the city may institute any appropriate action or proceeding in City, county or state court to prevent such unlawful erection, construction, reconstruction, alteration, repair, conversion, maintenance or use; to restrain, correct or abate such violation; to prevent the occupancy of said building structure or land; or to prevent any illegal act, conduct, business or use in or about such premises.

C. Any citizen of the city may notify the Construction Official in writing of conditions in violation of this chapter. An appeal may be made to the governing body in writing and thereafter to the courts.

APPENDIX

Chapter A350

COUNCIL RULES OF ORDER*

§ A350-1. Rules of procedure of Council.
§ A350-2. Rule I: Governing rules.
§ A350-3. Rule II: Regular meetings of Council.
§ A350-4. Rule III: Caucus.
§ A350-5. Rule IV: Special meetings.
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§ A350-7. Rule VI: Presiding officers; president; temporary president pro tem; duties.
§ A350-8. Rule VI.i: Maintaining order.
§ A350-9. Rule VII: Parliamentarian; City Clerk.
§ A350-10. Rule VIII: Corporation Counsel.
§ A350-11. Rule IX: Call to order.
§ A350-12. Rule X: Roll call.
§ A350-13. Rule XI: Quorum.
§ A350-14. Rule XII: Order of business.
§ A350-15. Rule XIII: Reading of minutes.
§ A350-16. Rule XIV: Rules of debate.
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§ A350-18. Rule XVI: Addressing Council.
§ A350-19. Rule XVII: Manner of addressing Council.
§ A350-20. Rule XVIII: Decorum.
§ A350-21. Rule XIX: Enforcement of decorum.
§ A350-22. Rule XX: Council rail; persons authorized.
§ A350-23. Rule XXI: Special committees.
§ A350-24. Rule XXII: Ordinances; resolutions; motions; number of votes; veto; emergency ordinance.
§ A350-25. Rule XXIII: Nominations.
§ A350-26. Rule XXIV: Reports, filing.
§ A350-27. Rule XXV: Adjournment.
§ A350-28. Rule XXVI: Ordinances, certification of passage.
§ A350-29. Rule XXVII: Minutes of Council meetings.

§ A350-1. Rules of procedure of Council.

The following rules of procedure in §§ A350-2 through A350-28 shall govern the conduct of the meetings of the Municipal Council of the City of Jersey City, New Jersey.

§ A350-2. Rule I: Governing rules.

Except as may be provided in the Charter, questions of order, the methods of organization and the conduct of business of the Municipal Council shall be governed by the rules of the House of Representatives of the United States in all cases to which they are applicable, and in which they are not inconsistent with the rules of the Council.

*History—Adopted by the Council of the City of Jersey City during codification; see Ch. 1, General Provisions, Art. II. Subsequent amendments noted where applicable.

§ A350-3. Rule II: Regular meetings of Council. [Amended 12-10-2025 by Ord. No. 25-127]

A. The Council shall hold its regular meetings each year during the months of January through December inclusive, except for the months of July, August, and December on the second and fourth Wednesdays of each month at 6:00 p.m. The Council may, if it chooses to, hold a caucus one-half hour prior to the regular meetings.

B. In the months of July, August, and December of each year, there shall be only one regular meeting for each of said months.

C. The aforesaid regular meeting shall be held at the time set forth herein or as near to the times set forth as practicable.

D. Whenever the day fixed for any such regular meeting falls upon a day designated by law as a legal holiday, or upon a day when more than four members of the governing body are attending a state or national conference or convention, such meeting shall be held at the same hour on the next succeeding day, not a holiday. Notwithstanding the foregoing, the Council, for good and sufficient reasons, may adjourn a regular scheduled Council meeting to another date and time in the month by setting a date and time for this rescheduled meeting at the previous regular meeting of the Council.

E. All regular and special meetings of the Council shall be held in the Council Chamber on the second floor of the City Hall of the city. The Council by a two-thirds vote of its members may at any preceding meeting move to dispense with the next following semimonthly meeting, but there shall at all times be at least one monthly regular meeting.

F. The Council may, by resolution duly adopted by at least five affirmative votes, designate a different place from the City Hall to hold any particular or special meeting. Upon the adoption of any such resolution, the City Clerk shall give due and timely notice to the public and to all city officials concerned of the time and place of the meeting as so designated in the resolution. Such notice shall be given in accordance with the Open Public Meetings Act, N.J.S.A. 10:4-6 et seq.

§ A350-4. Rule III: Caucus.

Premeeting caucuses. The Council shall hold premeeting caucuses on the Monday of the week in which a regular meeting of Council is held, or such other day as may be set by majority of the Council. The time of such premeeting caucus shall be fixed by the President. When the day fixed for any premeeting conference falls upon a day designed by law as a legal holiday, such meeting shall be held on a day to be scheduled by the President of the Council. All premeeting conferences shall be held in a room or place selected the Council. All such premeeting conferences (caucuses) shall be open to the public. In the event that said regular premeeting conference day is changed by a majority of the Council, the public shall be notified of any change at least forty-eight (48) hours prior to such preconference meeting.

§ A350-5. Rule IV: Special meetings.

A special meeting of the Council may be called by the President or by a majority of the members of the Council. Whenever a special meeting shall be called by the President of the Council, a notice in writing signed by the President shall be served on the Clerk, and whenever a special meeting shall be called by a

majority of the members of the Council, a notice in writing signed by such majority shall be served on the Clerk. The Clerk shall forthwith serve a written notice upon each member of the Council at his or her place of residence, stating the date and hour of the meeting and the purpose for which such meeting is called, and no other business shall thereat be transacted. The Clerk in his or her notice of a special meeting shall allow at least twenty-four (24) hours to elapse between the call of the meeting and the date and hour of the meeting. Whenever an emergency exists which requires immediate action by the Council, the Mayor may call a meeting by notifying the Clerk, or, in his or her absence, the President of the Council, who shall cause the Council to meet on short notice in special meeting for the purpose.

§ A350-6. Rule V: Agenda - Consent agenda. [Amended 3-24-2010 by Ord. No. 10-042; 5-12-2010 by Ord. No. 10-063; 12-19-2012 by Ord. No. 12-155]

A. Agenda. All reports, communications, ordinances, resolutions or other matters to be submitted to the Council by the administration or by Council Members must by 3:00 p.m. on Wednesday preceding each Council meeting be delivered to the Clerk, whereupon the Clerk shall immediately prepare a calendar of such matters together with such additional matters that he or she may have to present. He or she shall furnish a copy of the calendar to each member of the Council, the Mayor, the Business Administrator and the Corporation Counsel, prior to the Council meeting, and as far in advance of the meeting as time will permit. No item shall be added to an agenda unless it has been timely submitted in accordance with this rule. However, a late item may be added at a meeting and this rule suspended only for reasons of emergency, and by an affirmative vote of at least six Council Members in accordance with N.J.S.A. 40:69A-181(b). **[Amended 12-10-2025 by Ord. No. 25-127]**

B. All ordinances and resolutions which authorize the sale, conveyance or leasing of any interest in real property; or authorize the acquisition or grant of a license or easement in real property; or grant real estate tax exemptions or tax abatements; or authorize the settlement or termination of legal proceedings affecting real property; or authorize the construction, rehabilitation, repair or demolition of real property; or repeal or cancel any ordinance or resolution referred to in this subsection shall contain both the lot and block number and the street address of such real property.

C. All ordinances, resolutions, claims, contract documents and all other legal documents shall bear the stamp and signature of the corporation counsel approving the same pursuant to law prior to their consideration by the Council. No legal document shall be signed by the Mayor or administrative heads until the approval of the Corporation Counsel is appended thereto.

D. Consent agenda. Items of business which the Council at its premeeting conferences has determined to be routine and which do not require discussion shall be included under a single section of the calendar known as the "consent agenda." Such items may be adopted, approved or introduced, as the case may be, upon motion by a single roll call vote in accordance with the rules of procedure of the Council.

E. The consent agenda section of the calendar shall be preceded by an explanatory note substantially as follows:

"All matters listed under Subsection B and D, Consent agenda, are considered routine by the Municipal Council and will be enacted by one (1) motion in the form listed below. There will be no separate discussion of these items. If discussion is desired on any item and permitted by the Council, that item will be considered separately."

§ A350-7. Rule VI: Presiding officers; president; temporary president pro tem; duties.

A. Election and duties. The presiding officer of the Council shall be the President, who shall be elected at the organization meeting, and he or she shall preside at its meetings and perform such other duties as the Council may prescribe. In the absence of the President, a temporary President Pro Tem shall be selected by the Council for a period to be determined by the Council, and shall then preside over the Council. The President shall assume the chair of the presiding officer immediately after his or her election.

Editor's note—Please see § 3-4, Organization; president; President Pro Tem, for term.

B. The presiding officer shall preserve strict order and decorum at all regular and special meetings of the Council. He or she shall state every question coming before the Council and announce the decision of the Council on all matters coming before it. A majority vote of the members of the Council present shall govern except as specifically provided otherwise by law. The President shall sign all ordinances and resolutions adopted by the Council during his or her presence. In the event of the absence of the President, such ordinances and resolutions shall be signed by the temporary President Pro Tem. In the absence of the President Pro Tem, the temporary presiding officer shall sign such ordinances and resolutions adopted by the Council.

§ A350-8. Rule VI.i: Maintaining order. [Added 1-9-2013 by Ord. No. 12-160]

In addition to the Presiding Officer who is required to preserve strict order and decorum at all meetings under Rule A350-7, a police officer shall be assigned to attend at all council meetings and remain in attendance for thirty (30) minutes following its adjournment.

§ A350-9. Rule VII: Parliamentarian; City Clerk. [Amended 1-9-2013 by Ord. No. 12-160]

The Clerk, or his or her designee in his or her absence, shall act as Parliamentarian and shall advise and assist the presiding officer in matters concerning the rules of order and procedure of the Council.

Editor's note—Ord. No. 12-160, adopted January 9, 2013, amended the Code by adding a new § A350-8, and renumbering former §§ A350-8—A350-28 as new §§ A350-9—A350-29.

§ A350-10. Rule VIII: Corporation Counsel. [Amended 1-9-2013 by Ord. No. 12-160]

The Corporation Counsel or his or her First Assistant, or their designee, shall be available to the Council at all regular and special meetings. He or she, or his or her designee, shall draw ordinances or resolutions for any member of the Council when and as requested, pursuant to law.

Note—Former § A350-9. See editor's note, § A350-9.

§ A350-11. Rule IX: Call to order. [Amended 1-9-2013 by Ord. No. 12-160]

The President shall take the chair at the hour appointed for the meeting and shall immediately call the Council to order. If the President is absent and there is a quorum present, the Council shall elect a temporary President who shall preside until the President arrives. Upon the arrival of the President, the temporary President shall forthwith relinquish the chair upon the conclusion of the business immediately before the Council.

Note—Former § A350-10. See editor's note, § A350-9.

§ A350-12. Rule X: Roll call. [Amended 1-9-2013 by Ord. No. 12-160; 12-10-2025 by Ord. No. 25-127]

Before proceeding with the business of the Council, the Clerk or his or her designee shall call the roll of the members in alphabetical order by ward designation, then Council members at large in alphabetical order by name, then the Council President and the names of those present shall be entered in the minutes.

Note—Former § A350-11. See editor's note, § A350-9.

§ A350-13. Rule XI: Quorum. [Amended 1-9-2013 by Ord. No. 12-160]

A. A majority of the full membership of the Council shall constitute a quorum. No ordinance shall be adopted by the Council without the affirmative vote of a majority of the full membership thereof, and all other matters may be adopted by a majority of the members present, except as specifically provided otherwise by law.

B. Should no quorum attend within one hour after the hour appointed for the meeting of the Council, the President, or in his or her absence the Clerk or his or her designee, may thereupon adjourn the meeting until the next day, unless by unanimous agreement those members present select another hour or day. The names of the members present and their action at such meeting shall be recorded in the minutes by the Clerk.

Note—Former § A350-12. See editor's note, § A350-9.

§ A350-14. Rule XII: Order of business. [Amended 1-9-2013 by Ord. No. 12-160; 12-10-2025 by Ord. No. 25-127]

All regular and special meetings of the Council shall be open to the public. Promptly at the hour set forth for each meeting, the members of the Council and, subject to Rule V (§ A350-6), the Clerk shall take their regular stations in the Council Chamber, and the business of the Council shall be taken up for consideration and disposition in the following order, unless otherwise ordered by the Council.

A. Roll call.

B. Invocation.

C. Salute to the Flag.

D. Statement in Compliance with the Sunshine Law.

E. Reception Bid - Consent Agenda.

F. Ordinances - First reading.

G. Ordinances - Second reading.

H. Public Hearing on Special Improvement District assessment roll and budget.

I. Public Request for Hearing.

J. Petitions and Communications.

K. Officers' Communications.

L. Reports of Directors.

M. Claims.

N. Resolutions.

O. Tabled Agenda.

P. Adjournment.

Note—Former § A350-13. See editor's note, § A350-9.

§ A350-15. Rule XIII: Reading of minutes. [Amended 1-9-2013 by Ord. No. 12-160]

Unless a reading of all or a portion of the minutes of a previous Council meeting is requested by a majority of the Council, such minutes when signed by the President and the Clerk shall be considered approved without reading.

Note—Former § A350-14. See editor's note, § A350-9.

§ A350-16. Rule XIV: Rules of debate. [Amended 1-9-2013 by Ord. No. 12-160]

A. Question under consideration. When a question is presented and seconded it is under consideration, and no motion shall be received thereafter, except to adjourn, to lay on the table, to postpone or to amend, until the question is decided. These motions shall have preference in the order in which they are mentioned and the first two (2) shall be decided without debate. Oral amendments to a resolution may be adopted, but the Clerk shall, after the meeting and as soon as possible thereafter, reduce the amendment to writing, as the minutes reflect the oral amendment. If there is any doubt as to the proper wording and intent of the amendment, the Clerk shall confer with the Corporation Counsel for his or her approval. When the resolution as amended is reduced to writing, it shall be appended to and become a part of the original resolution.

B. As to the President. The President or such other member of the Council as may be temporarily presiding may move, second, debate and vote from the chair, subject only to such limitations of debate as are by these rules imposed upon all members; and he or she shall not be deprived of any of the rights and privileges of a Council member by reason of his or her being the presiding Chairperson.

C. Getting the floor; improper reference to be avoided. A member of the Council desiring to speak for any purpose whatsoever shall address the presiding officer and, upon recognition, shall confine himself or herself to the question under debate, avoiding all personalities and indecorous language (in which event a member may be silenced). A member may only speak to clear up a matter of fact or explain a material part of his or her speech, except that a member after moving a question may once again speak on the same subject.

D. Interruption. A member, once recognized, shall not be interrupted when speaking unless it shall be to call him or her to order or as herein otherwise provided. If a member while speaking shall be called to order, he or she shall cease speaking until the question of order shall be determined by the presiding officer, and, if in order, he or she shall be permitted to proceed. Any member may appeal to the

Council from the decision of the Chairperson upon a question of order, when without debate the Chairperson shall submit to the Council the question "Shall the decision of the chair be sustained," and the Council shall decide by a majority vote.

E. Privilege of closing debate. The Council member moving the adoption of an ordinance or resolution shall have the privilege of closing the debate, although he or she may have already spoken thereon at its moving.

F. Roll call. Upon any roll call there shall be no discussion or explanation given by any member voting, and he or she shall vote yes or no unless he or she shall first receive special permission from the Council to explain his or her vote. A member of the Council may abstain from voting on any matter. An abstention, for all purposes, shall not be counted either as an "aye" or "nay" vote. An abstention shall not be counted either as a vote for or a vote against the particular matter in which the abstention is given. The Council member abstaining from the vote shall be deemed to have taken a strict neutral position on the matter.

Note—Former § A350-15. See editor's note, § A350-9.

§ A350-17. Rule XV: Voting. [Amended 1-9-2013 by Ord. No. 12-160]

A. Voting shall be taken electronically, or in the absence of an electronic device by roll call. If not taken electronically, the vote upon every motion, resolution or ordinance shall be taken in the following order: **[Amended 12-10-2025 by Ord. No. 25-127]**

(1) Ward Council members in alphabetical order by ward designation.

(2) Council members at large in alphabetical order by name.

(3) The Council President.

B. The vote by yeas and nays shall be entered upon the minutes. Resolutions and ordinances shall be signed by the presiding officer at such meetings and by the Clerk before they are entered upon the minutes; the votes of the members of the Council shall be recorded on the original copies to be filed with the Clerk.

Note—Former § A350-16. See editor's note, § A350-9.

§ A350-18. Rule XVI: Addressing Council. [Amended 1-9-2013 by Ord. No. 12-160; 12-10-2025 by Ord. No. 25-127]

Any person may address the Council on any subject of interest during the Public Request for Hearing portion of each Council meeting. Anyone who wishes to address the Council during this portion of the meeting must register with the City Clerk no later than two hours (2) hours prior to the scheduled start of the Council meeting by providing their name, and telephone number to the City Clerk through the City's webpage.

Note—Former § A350-17. See editor's note, § A350-9.

§ A350-19. Rule XVII: Manner of addressing Council. [Amended 12-8-1993 by Ord. No. 93-958; 1-9-2013 by Ord. No. 12-160; 12-10-2025 by Ord. No. 25-127]

A. Recognition by presiding officer. No person shall begin addressing the Council without first being recognized by the Council President.

B. Each person addressing the Council shall step up to the microphone provided for use of the public, give his or her name in an audible tone of voice for the record, state the subject he or she wishes to discuss and state whom he or she is representing. All remarks shall be addressed to the Council President; no remarks shall be addressed to the other members of the Council without the permission of the Council President and the member to be addressed. No person other than members of the Council and the person having the floor shall be permitted to enter into any discussion, either directly or through a member of the Council, without the permission of the Council President. No question may be asked a Council member or a member of the city staff without the permission of the Council President.

C. Each person addressing the Council, whether during the public portion of the meeting or during the public hearing on second reading ordinances, shall limit his or her remarks to three minutes. After a person has spoken for three minutes, the Council President shall notify him or her that his or her time has expired, and the City Clerk shall call the name of the next person to address the Council. The Council shall relax this time limitation for Budget Hearings only. Those citizens wishing to address the Council on the adoption of the budget or any amendments to the budget, shall be permitted to speak for up to five minutes. The countdown timer shall not be stopped for any questions asked during the public hearing, unless the Council President gives the explicit direction to stop the time. The Council President and the Council may elect not to answer questions during the public hearing portion. **[Amended by 2-26-2020 by 20-018]**

D. Spokesperson for a group of persons. In order to expedite discussion and to avoid repetitious presentations, whenever any group of persons is to address the Council on the same subject, the Council President may request that a spokesperson be chosen by the group to address the Council; and, if additional matters are to be presented by any other member of this group, to limit the number of persons addressing the Council.

E. After motion. After a motion has been made to close the public hearing on any ordinance, no member of the public shall address the Council from the audience on the matter under consideration without first securing permission to do so by majority vote of the City Council.

Note—Former § A350-18. See editor's note, § A350-9.

§ A350-20. Rule XVIII: Decorum. [Amended 1-9-2013 by Ord. No. 12-160]

A. Council members. While the Council is in session, the members shall observe order and decorum. A Council member shall neither, by conversation or otherwise, delay or interrupt the proceedings of the Council nor disturb any member while speaking or refuse to obey the orders of the Council President. Members of the Council shall inform the Council President before leaving their seats during a Council meeting.

B. Employees. Members of the city staff shall observe the same rules of order and decorum which apply to the Council.

C. Persons addressing the Council. Any person making personal, slanderous or profane remarks or who willfully utters loud, threatening or abusive language or engages in any disorderly conduct which disrupts or disturbs the orderly conduct of any meeting shall be called to order by the Council President. If such conduct continues the Council President may, at his or her discretion, order such person barred from further audience before the Council during that meeting.

D. Members of the audience. No person in the audience shall engage in disorderly conduct such as hand clapping, stamping of feet, whistling, using profane language, shouting and other similar demonstrations which disturb the peace and order of the Council Meeting.

E. Videotaping, audiotaping and photographing. Any person may videotape, audiotape or photograph the proceedings of the Municipal Council. Such conduct should be unobtrusive so as not to interfere with the proceedings. The Council President or City Clerk may direct the activities of such persons to ensure an orderly meeting.

Note—Former § A350-19. See editor's note, § A350-9.

§ A350-21. Rule XIX: Enforcement of decorum. [Amended 1-9-2013 by Ord. No. 12-160]

A. Warning. All persons shall, at the request of the Council President, be silent. If after receiving a warning from the Council President a person persists in disturbing the meeting, the Council President may order him or her to leave the meeting. If he or she does not remove themselves, the Council President may order the Sergeant-at-Arms to remove them.

B. Removal. The Chief of Police, or such members of the Division of Police as the Council President may designate, shall be Sergeant-at-Arms at the Council meetings. He, she or they shall carry out all orders given by the Council President for the purpose of maintaining order and decorum at the Council meeting. On instruction of the Council President, the Sergeant-at-Arms shall remove from the meeting any person who disturbs the proceedings of the Council.

C. Resisting removal. Any person who resists removal by the Sergeant-at-Arms shall be charged with violating N.J.S.A. 2C:33-8, Disrupting meetings and processions.

Note—Former § A350-20. See editor's note, § A350-9.

§ A350-22. Rule XX: Council rail; persons authorized. [Amended 1-9-2013 by Ord. No. 12-160]

Persons authorized to be within the Council rail. No person, except City officers, shall be permitted within the rail in front of the Council or be permitted to disturb any Council member while on the dais, during any meeting, without express permission of the President of the Council. The Corporation Counsel and City Clerk, or their designees, may speak to any member of the Council on pertinent pending matters before the Council.

Note—Former § A350-21. See editor's note, § A350-9.

§ A350-23. Rule XXI: Special committees. [Amended 1-9-2013 by Ord. No. 12-160]

A. All special committees and the Chairmen thereof shall be appointed by the presiding officer of the Council or by a majority vote of the Municipal Council at a regular meeting.

B. A special committee shall consist ordinarily of no more than six (6) members of the Council, including the President, who shall be a member ex officio of all special committees. The President may, whenever he or she deems it necessary, appoint a special committee consisting of all or less of the members of the Council. A quorum of each special committee appointed shall consist of a majority of the members thereof.

C. Meetings of special committees shall not be held during Council meetings.

Note—Former § A350-22. See editor's note, § A350-9.

§ A350-24. Rule XXII: Ordinances; resolutions; motions; number of votes; veto; emergency ordinance. [Amended 1-9-2013 by Ord. No. 12-160; 12-10-2025 by Ord. No. 25-127]

A. Preparation of ordinances. The Corporation Counsel or his or her designee, when requested, shall prepare ordinances or resolutions which shall be delivered to the Clerk. A copy of the same shall be forthwith furnished to each member of the Council by the Clerk.

(1) Ordinances may be introduced and adopted by Title and shall be read in full by the Clerk or his or her designee before consideration by the Council on second and final reading, except as otherwise provided by law, including N.J.S.A. 40:49-2.

(2) Every ordinance after introduction and adoption on first reading shall be published in full together with a notice as required by law, and said publication shall be at least ten (10) days prior to the time fixed for further consideration for second and final passage. At the time and place so specified in such notice, all persons interested shall be given an opportunity to be heard thereon.

B. The agenda for each meeting shall be posted on the City's website on the Friday preceding each Council meeting. Ordinances and resolutions shall be posted on the City's website least 24 hours prior to consideration by the Council. Resolutions may be introduced and adopted by title only; resolutions which are so posted in accordance with this rule shall not be read in full by the Clerk for consideration by the Council, unless a member of the Council requests such a reading. Resolutions submitted as late items to the City Clerk within 24 hours of a Council Meeting shall be read in full prior to consideration by the Council, unless the President of the Council deems such reading unnecessary. Failure to comply with the provisions of this subsection shall not affect the validity of any resolution.

C. Prior approval by administrative heads of departments. All ordinances and resolutions before presentation to the Council by the Mayor or the Business Administrator shall have been reduced to writing. Every ordinance and resolution except those requested by members of the City Council shall bear the name and signature of the city official requesting it. Prior to presentation to the Corporation Counsel, they shall have first been referred for a report on the accuracy of facts to the Director of the Department under whose jurisdiction the ordinance or resolution would devolve. Said report shall be in writing where practicable. The Department Director shall forward his or her report together with a copy of the ordinance or resolution to the Legislative Review Committee of the Council for its review. Thereafter, but before introduction by the Council, the same shall be approved, pursuant to law, by the Corporation Council or his or her designee.

D. Introducing for passage or approval. Ordinances, resolutions or other matters requiring action by the Council shall only be introduced by a member of the Council. When a Council member introduces an ordinance or resolution, his or her name shall appear on the same. All ordinances require a majority of a quorum for introduction. All resolutions require a majority of a quorum for approval.

E. Effective Period. All ordinances shall take effect 20 days after final passage and approval by the Mayor. Two-thirds of the Council may, however, declare an emergency by written resolution to reduce this 20-day period, except the period for bond ordinances shall not be reduced.

F. Adoption. Ordinances, other than bond ordinances, shall require five affirmative votes for adoption. Bond ordinances shall require six affirmative votes for adoption, except as otherwise provided by law.

G. Veto by the Mayor. Ordinances vetoed by the Mayor shall require six affirmative votes of the Council to override the veto.

H. Preparation. Ordinances amending any existing ordinances shall contain, in brackets, the part repealed, and the new part to be inserted shall be underscored.

I. Emergency resolutions. Emergency resolutions for appropriations and resolutions for budgetary transfers shall require six affirmative votes for adoption.

Note—Former § A350-23. See editor's note, § A350-9.

§ A350-25. Rule XXIII: Nominations. [Amended 1-9-2013 by Ord. No. 12-160]

A. Upon the receipt from the Mayor of his or her nomination to any office or position, the same shall be read under communications by the Clerk, or his or her designee, and unless otherwise ordered shall be considered by the Council under ""Report of Directors." When taken up for action the President shall put the question on each nomination as follows: "Will the Council confirm the nomination?" On that motion, a vote shall be ordered, and, if a majority or more members vote to confirm, the President shall announce: "The nomination is confirmed." If less than a majority of the members vote to confirm, the President shall announce: "The nomination is rejected." **[Amended 12-10-2025 by Ord. No. 25-127]**

B. Action by confirmation or rejection upon a nomination made by the Mayor shall not be postponed or delayed longer than for one regular meeting.

C. Within 24 hours after confirmation or rejection of a nomination, the Clerk shall, in writing, notify the Mayor of that fact.

Note—Former § A350-24. See editor's note, § A350-9.

§ A350-26. Rule XXIV: Reports, filing. [Amended 1-9-2013 by Ord. No. 12-160]

Reports and resolutions to be filed with City Clerk. All reports and resolutions shall be filed with the City Clerk and entered in the minutes.

Note—Former § A350-25. See editor's note, § A350-9.

§ A350-27. Rule XXV: Adjournment. [Amended 1-9-2013 by Ord. No. 12-160]

A motion to adjourn shall always be in order and decided without debate.

Note—Former § A350-26. See editor's note, § A350-9.

§ A350-28. Rule XXVI: Ordinances, certification of passage. [Amended 1-9-2013 by Ord. No. 12-160]

Certification of passage of ordinances over Mayor's veto. Whenever an ordinance has been vetoed by the Mayor and is passed by the Council over such veto in the manner provided by law, the City Clerk shall append to such ordinances a certification in substantially the following form:

> "I hereby certify that the above ordinance adopted by the Council of the City of Jersey City on the _____ day of _____ was vetoed by the Mayor of the City; and was passed over the said veto on the _____ day of _____.
> Dated: _____ City Clerk _____

Note—Former § A350-27. See editor's note, § A350-9.

§ A350-29. Rule XXVII: Minutes of Council meetings. [Amended 1-9-2013 by Ord. No. 12-160]

The minutes of each meeting of the Council shall be signed by the officer presiding at such meeting and by the City Clerk.

Note—Former § A350-28. See editor's note, § A350-9.

Chapter A351

EXECUTIVE ORDERS AND ORDINANCES

Executive orders and related ordinances, as arranged by position, shall be as follows:

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Accountant	15	1990-McC-60	12-19-1990		
Account Clerk P/T	3.35-15.00	1987-C-205	05-18-1988		
Accounting Assistant Typing	12	1991-McC-87	10-15-1991	McC-392	11-06-1991
Accounting Procedures Analyst	26	1990-McC-40	07-20-1990	McC-198	09-12-1990
Ad Hoc Committee on Senior Affairs		2014-005	05-14-2014		
Administrative Clerk	31	1987-C-138 1989-C-277	09-24-1987 06-01-1989		
Administrative Secretary	32	1986-C-41 1987-C-137			
Affirmative Action Policy		1993-031	01-04-1994		
Affordable Housing Trust Fund Application Review Committee		2014-002 2014-003 2023-003 2023-004	03-25-2014 03-25-2014 08-08-2023 08-08-2023		
Agency Aide	1	2008-004	04-15-2008	08-054	05-14-2008
Aide to the Mayor Unclassified	Up to 58,700	1993-S-015	09-03-1993		
Aide to the Mayor Unclassified	Up to 44,000	1986-C-24 1987-C-122 1989-McC-1	07-03-1989		
Alliance to Combat Drug and Alcohol Abuse		1990-McC-59 1993-S-001	12-19-1990 07-21-1993		
Animal Care Advisory Committee		2023-005	9-29-2023		
Analyst Grant Applications/Program Monitor	14	2002-011	05-15-2002	02-068	06-12-2002
Assessing Aide	25	1985-C-276	06-01-1989		
Assessor Trainee	4	1988-C-203	03-28-1988		
Assistant Administrative Analyst				94-015	03-23-1994

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Assistant Administrator, Cultural and Heritage Affairs	37	1986-C-6 1987-C-57 1988-C-205 2014-006	05-18-1988 08-20-2014	14-070	06-25-2014
Assistant Analyst Grant Applications	16	1989-C-270	03-29-1989	C-941	04-27-1989
Assistant Budget Examiner	17	1987-C-119	08-18-1987		
Assistant Budget Officer	33	1986-C-13 1987-C-120	08-18-1987		
Assistant Business Administrator	40	1989-C-280	06-01-1989		
Assistant Chief Architect	20	1991-McC-71	03-20-1991		
Assistant Chief Clerk	20			04-132	11-10-2004
Assistant Corporation Counsel	25,000-59,900	1991-McC-77	06-31-1991		
Assistant Construction Official	28	1987-C-98	06-16-1987		
Assistant Director of Development				96-050	05-22-1996
Assistant Director, Division of Building	29	1987-C-97	06-19-1987		
Assistant Director, Division of Data Processing	30	1986-C-31	10-21-1986		
Assistant Director of Neighborhood Preservation Program	27	2007-011	06-13-2007	07-124	07-18-2007
Assistant Director of Engineering	34	1987-C-124	09-18-1987		
Assistant Director of Finance	33	1987-C-56 1987-C-82	06-03-1987		
Assistant Director of Parks and Recreation	23	2007-019	11-07-2007	07-170	10-24-2007

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Assistant Director of Streets and Sewers	26	1987-C-125	09-18-1987		
Assistant Economic and Industrial Development	25	1998-017	07-28-1998	97-032	04-23-1997
Assistant Engineer, Traffic	20	1990-McC-38	07-20-1990		
Assistant Fiscal Officer	24	1987-C-87	06-03-1987		
Assistant Health Officer	16	S-069	12-20-1994		
Assistant Manager, Sanitation	14	1987-C-126	09-18-1987		
Assistant Municipal Clerk	16	2002-014	05-15-2002	02-067	06-12-2002
Assistant Municipal Court Administrator				McC-63	10-25-1989
Assistant Municipal Court Director	26	1992-048	10-19-1992	92-154	11-10-1992
Assistant Municipal Director of Welfare	17	1990-McC-36	07-20-1990	McC-198	09-12-1990
Assistant Municipal Tax Collector	Up to 95,000			14-158	12-17-2014
Assistant Personnel Director	35	1987-C-139 1989-C-281	06-01-1989		
Assistant Personnel Technician	7	2018-14	06-29-2018	18-066	06-27-2018
Assistant Program Analyst	20	2007-009	06-27-2007	07-107	06-27-2007
Assistant Program Coordinator Handicapped				93-131	10-27-1993
Assistant Pool Manager				93-131	10-27-1993
Assistant Public Information Officer	18	1998-020	08-03-1998	96-112	11-26-1996
Assistant Recreation Supervisor	14	2007-019	11-07-2007	07-170	10-24-2007

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Assistant Superintendent of Watershed	18	1990-McC-19	01-24-1990		
Assistant Supervising Mechanic	26	2017-001	01-17-2017	16-191	1-11-2017
Assistant Supervisor Heavy Equipment Operator	26	2017-008	04-17-2017	17-037	04-12-2017
Assistant Supervisor of Accounts	Pursuant to N.J.S.A. 40:69A-48			05-117	09-28-2005
Assistant Treasurer	18	McC-24	09-13-1989		
Attendant, Bath and Pools P/T	3.50-14.50	1986-C-7 1986-C-57 1988-C-205	05-18-1988		
Audio Visual Specialist	14	2007-005	3-2-2007	07-048	03-28-2007
Audio Visual Supervisor	12	2016-010	09-16-2016	16-124	09-14-2016
Bailiff P/T	5.00-12.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Bailiff				93-131	10-27-1993
Benefits for employees separating from city		1986-C-8	07-09-1986		
Body and Fender Mechanic	9	S-086	03-05-1996	95-107	11-08-1995
Budget: 10% cut in expenditures		1992-026	07-06-1992		
Budget Examiner	19	1986-C-17 1988-C-244	10-26-1988		
Budget Officer	45	1986-C-37 1987-C-121	11-10-1986		
Building Inspector	26	1098-C-103	06-16-1987		
Building Maintenance Worker, P/T	3.35-13.75	1986-C-7 1987-C-57 1988-C-205	05-18-1988		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Building Maintenance Worker/ Maintenance Repairer		192-023	06-17-1992	92-082	07-22-1992
Building Subcode Official	27	1987-C-99	06-16-1987		
Business Administrator	115,000		09-22-1993 03-23-1994	92-198 94-027 97-053 05-070	01-13-1993 04-13-1994 08-13-1997 06-22-2005
Buyer	11 min. 9,100; max. 24,531	1986-C-10	07-18-1986		
Camp Director		1990-McC-56	11-15-1990	McC-239	12-19-1990
Car Phones Assignment (Telephones/ Car Phones)				1992-044	10-15-1992
Cashier P/T	4.00-14.00	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Cashier Typing	6	2009-004	08-03-2009	09-085	07-29-2009
Chaplain	7,500.00	1988-C-177 1988-C-216 2014-08	05-18-1988 08-20-2014		
Chauffeur P/T	5.00-13.75	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Chemist (Water Analyst)	22	1988-C-236	10-26-1988		
Chief Accountant	34	1988-C-241	10-26-1988		
Chief Aide to Mayor	Up to 55,000	1987-C-123 93-S-011	08-24-1987 08-06-1993		
Chief Architect	Up to 45,000	1987-C-50	02-02-1987		
Chief Assistant Assessor	34	2007-008	06-27-2007	07-120	06-27-2007
Chief Auditor	35	1993-S-036	02-14-1994		
Chief Engineer	35	1988-C-227	07-13-1988		
Chief Field Representative, Property Improvement	26	1987-C-150	11-08-1987		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Chief Financial Officer	FX $10,000			93-136 97-053 03-099	11-10-1993 08-13-1997 07-16-2003
Chief Financial Officer		2011-005	09-21-2011		
Chief Landscape Architect	34	2011-002	02-15-2011	11-012	02-09-2011
Chief License Inspector	22	2008-004	04-15-2008	08-054	05-14-2008
Chief Map Clerk	18	2006-007	09-26-2006	06-113	09-27-2006
Chief Municipal Court Administrator	19	1992-049	10-19-1992	92-156	11-10-1992
Chief of Administrative Services	25	1992-007	03-18-1992		
Chief of Police	94,000 or 5% more than base salary of Deputy Police Chief, whichever is greater	S-075 1997-001 97-002 2003-001 2004-005 2010-002 2011-003	03-16-1995 01-02-1997 02-19-1997 03-24-2003 11-01-2004 05-26-2010 07-27-2011	04-141 04-146	11-23-2004 01-12-2005
Chief of Property Management	22	1988-C-210 1988-C-210	05-18-1988		
Chief Parking Enforcement Officer	12	2018-14	06-29-2018	18-066	06-27-2018
Chief Planner (PIC)	Tabled			93-094	09-08-1993
Chief Project Coordinator/Construction	28	2015-008	10-30-2015	15-141	10-28-2015
Chief Public Defender	37,000	1990-McC-15			
Chief Public Safety Telecommunicator	Pursuant to N.J.S.A. 40:69A-68			99-020	02-24-1999
Chief Registered Environmental Health Specialist, Public Health	22	1986-C-2 1988-C-200 2009-001	02-18-1986 03-28-1988 04-22-2009	09-045	04-22-2009
Chief Sanitation Inspector	15	1989-C-282	06-05-1989		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Children Supervisor	5	2017-013	07-06-2017	17-084	06-28-2017
City Clerk	110,000		09-22-1993	92-198 05-070	01-13-1993 06-22-2005
Claims Adjuster	6	1991-McC-72	03-20-1991		
Claims Examiner Worker Compensation, Typing	18	2011-006	10-17-2011	11-119	10-12-2011
Clerk	3.35-13.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Clerk Driver P/T	3.34-12.50	1986-C-7 1987-C-57 1988-C-205	05-18-1988		
Clerk/Telephone Operator	3	S-048	04-21-1994		
Clerk 1/Telephone Operator	5	2018-008	04-12-2018	18-026	04-11-2018
Clerk Transcriber P/T	3.35-14.75	1986-C-6 1988-C-205	05-18-1988		
Clerk Typist P/T	3.35-14.75	1986-C-6 1987-C-57 1988-C-205			
Clinic Physician Part-Time	Fixed $55/hr	2007-019	11-07-2007	07-170	10-24-2007
Closing of city departments on July 5, 2019		2019-008	Revised 07-17-2019		
Code Enforcement Officer Trainee				96-112	11-26-1996
Collection Representative	9	1990-McC-30	05-23-1990	McC-159	06-27-1990
Commercial Driver's Licenses Drug and Alcohol Testing Policy		1998-014	03-19-1998		
Communications Operator	4	1987-C-69	06-02-1987		
Communications Operator UFD	4	1987-C-69	06-02-1987		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Communications Technician (Telephone Communications)	7	1988-C-238	10-26-1988		
Community Operator Trainee P/T	4.00-12.75	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Community Oversight Committee for PPG Cleanup Sites - Rescinded		2009-008 - Rescinded by 2021-01	10-20-2009 01-21-2021		
Community Relations Aide				96-050	05-22-1996
Community Relations Specialist Bilingual in Spanish and English	10 Union 246 $10,450 to $42,531			02-013	02-27-2002
Community Service Aide P/T	4.05-13.00	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Community Service Aide, Bilingual Spanish and English P/T	4.05-13.00	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Community Service Aide/Senior Clerk	7	1990-McC-52	10-11-1990	McC-225	11-29-1989
Community Service Worker P/T	3.35-9.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Computer Service Technician				03-070	Defeated 05-14-2003
Construction Inspector/Director of Inspections	28	1987-C-148	11-04-1987		
Construction Official/ Zoning Officer	32	1986-C-40 1987-C-149	11-04-1987		
Contract Administrator 3	28	2014-004	05-14-2014	14-041	04-23-2014
Contractor monitoring		2011-004	09-21-2011		
Control Person	22	1986-C-26	09-22-1986		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Control Room Operator P/T	4.00-12.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Coordinator, Employee Assistance Program UFD	28	1987-C-144	11-04-1987		
Coordinator for Federal and State Aide				03-072	Defeated 05-14-2003
Coordinator, Financial Researcher/ Senior Budget Examiner				McC-225	11-29-1989
Coordinator of Employment Services	13	1988-C-239	10-26-1988		
Coordinator of Monitoring and Evaluation	14	2008-006	08-13-2008	08-103	08-06-2008
Corporation Counsel	110,000			92-177 97-053 05-070	12-09-1992 08-13-1997 06-22-2005
Council Members	22,500			93-103	09-22-1993
Council Members and President (expenses)	7,500			93-104	09-22-1993
Councilperson's Aide				93-091	09-08-1993
Council President	24,500			93-103	09-22-1993
COVID-19—Cancellation of City Council and Various Governing Board Meetings - Rescinded		2020-001 - Rescinded by 2021-02	03-12-2020 06-02-2021		
COVID-19—Closing of Venues Licensed to Sell Liquor at 10:00 p.m. Each Day - Rescinded		2020-002 - Rescinded by 2021-02	03-12-2020 06-02-2021		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
COVID-19—Limit on Food Delivery Platform Fees during State of Emergency		2020-005	05-04-2020		
COVID-19—Restoration of a Percentage of City Staffing		2020-006	05-11-2020		
COVID-19—State of Emergency Declaration - Rescinded		2020-003 2020-004 2020-010 - Rescinded by 2021-02	03-25-2020 03-25-2020 07-15-2020 06-02-2021		
COVID-19—Temporary Expansion of Boundaries of Newark Avenue Pedestrian Mall		2020-008	05-29-2020		
COVID-19—Temporary Suspension of Certain Requirements for Sidewalk Cafes and Signage - Rescinded		2020-007 Rescinded by 2021-003	05-22-2020 06-15-2021		
Cultural and ethnic heritage displays		S-068	12-16-1994		
Data Entry Machine Operator/ Senior Clerk Typist	6	1990-McC-42	07-20-1990	McC-198	09-12-1990
Data Entry Machine Operator/ Typist	5	1990-McC-37	07-20-1990	McC-198	09-12-1990
Data Processing Programmer/Systems Analyst	9	2017-017	12-01-2017	17-151	11-29-2017
Delivery Worker	4	1991-McC-70	03-20-1991		
Demolition permits—Six-month moratorium; review of Ch. 105—Rescinded		2018-004 2018-010	03-23-2018 04-26-2018		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Department Directors (Pension; Deferred Pension; Accrued Sick Leave)		2009-02	06-03-2009		
Department Directors and Statutory Officers (Mandatory ethics training)		2009-007	09-10-2009		
Department Directors and Employees (Mandatory ethics training)		2009-006	08-24-2009		
Deputy Chief of Police serving as Operations Commander		2015-005	07-31-2015		
Deputy City Clerk	Up to 95,000	1988-C-234 1993-S-017	10-26-1988 10-26-1993	97-068 04-106 14-158	09-24-1997 09-22-2004 12-17-2014
Deputy Director, Housing and Economic Development	33	1988-C-209	05-18-1988		
Deputy Director Office of Employment and Training		1993-108	09-22-1993		
Deputy Fire Chief	Pursuant to FSO Contract			05-091	08-10-2005
Deputy Fire Director	Pursuant to N.J.S.A. 40:69A-68			00-016	03-22-2000
Deputy Municipal Court Director		1992-051 1993-098	10-19-1992 09-08-1993	92-154 92-158	11-10-1992 11-10-1992
Deputy Municipal Superintendent of Weights and Measures	12		02-26-1992	92-016	03-25-1992

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Deputy Police Chief	Pursuant to Executive Order and pursuant to N.J.S.A. 40:69A-48 Pursuant to N.J.S.A. 40A:14-179	2005-002 2006-001 2007-015 2008-001 2012-002 2018-003 2018-009 Executive Order 2023-001	06-15-2005 01-05-2006 09-17-2007 01-11-2008 12-20-2012 03-14-2018 04-19-2018 05-01-2023	05-090	08-10-2005
Deputy Police Director	31	S-088	03-05-1996	95-097	10-25-1995
Deputy Tax Assessor	Up to 95,000			02-130 04-106 14-158	12-26-2002 09-22-2004 12-17-2014
Developer P/T	4.25-9.20	1986-C-7	06-19-1986		
Director, Accounts and Controls	30	1988-C-199	03-28-1988		
Director, Communications Center	*	S-084 S-090	03-05-1996 04-12-1996	15-033	03-25-2015
Director, Community Development Program	24	1988-C-222	07-13-1988		
Director, Department of Economic Opportunity	75,000			97-053	08-13-1997
Director, Department of Finance	100,000			05-070	06-22-2005
Director, Department of Health and Human Services	100,000		09-22-1993	92-198 97-053 05-070	01-13-1993 08-13-1997 06-22-2005
Director, Department of Housing and Economic Development and Commerce	100,000	2006-003	09-22-1993 04-13-2006	92-198 97-053 05-070	01-13-1993 08-13-1997 06-22-2005
Director, Department of Human Resources	114,753			14-034	03-26-2014
Director, Department of Neighborhood Improvement	75,000			97-053	08-13-1997

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Director, Department of Public Safety	185,000			13-080	09-11-2013
Director, Department of Public Works	100,000		09-22-1993	92-198 97-053 05-070	01-13-1993 08-13-1997 06-22-2005
Director, Department of Recreation and Cultural Affairs	100,000		09-22-1993	93-112 97-053 05-070	10-13-1993 08-13-1997 06-22-2005
Director of Redevelopment	31	1993-S-025	12-16-1993	93-150	01-12-1994
Director, Department of Water	Up to 65,000		09-22-1993	92-198	01-13-1993
Director, Division of Pensions	25	1987-C-130	09-18-1987		
Director of Community Development	Pursuant to N.J.S.A. 40:69A-68			99-006	01-27-1999
Director of Community Relations & Social Services	43	2017-013	07-06-2017	17-084	06-28-2017
Director of Constituent Services	25	S-071	03-13-1995		
Director of Cultural Affairs	25	1993-S-022	12-16-1993	93-151	01-12-1994
Director of Cultural Arts			12-22-1993	93-151	12-22-1993
Director of Custodial Services, Director of Maintenance Services	26	1989-C-257 S-085	01-03-1989 03-05-1996	C-888	01-26-1989
Director of Economic and Industrial Development	29	1998-016	07-28-1998	97-032	04-23-1997
Director of Engineering	39	1987-C-129	09-18-1987		
Director of Finance; Director in Charge	Up to 59,500			92-198 93-137	01-13-1993 11-10-1993
Director of Health Education	35	2017-010	05-12-2017	17-049	05-10-2017

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Director of Inspections	40	2018-013	06-15-2018	18-054	06-13-2018
Director of Licenses	28	S-047	04-21-1994		
Director of Maintenance Services			03-09-1994	94-015	03-23-1994
Director of Neighborhood Preservation Program				96-050	05-22-1996
Director of Office of Employment and Training				93-125	10-27-1993
Director of Office of the Handicapped	8	1989-C-256	01-03-1989	C-887	01-26-1989
Director of Police School				01-116	10-24-2001
Director of Property Improvement			03-09-1994	94-015	03-23-1994
Director of Security	17	1988-201	03-28-1988		
Director of Parks and Recreation	26	1989-C-287	06-15-1989		
Director of Public Works Unclassified	51,000	1987-C-127	09-18-1987		
Director of Urban Renewal				94-015	03-08-1994
Director of Welfare	FX: 35,000	1987-C-75	06-02-1987		
Director, Repair and Maintenance	27	1990-McC-29	04-16-1990	McC-142	05-09-1990
Director, Repair and Maintenance/ Street Superintendent				93-093	09-08-1993
Director, Repair and Maintenance/ Street Supervisor	22	1992-033	07-23-1992	92-073	06-24-1992
Director, Urban Research and Design	Up to 39,500	1986-C-34	10-17-1986		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Director, Water Supply	34				
Discrimination, Harassment, or Retaliation Policy		2014-001	02-25-2014		
Diversity and Inclusion Advisory Board		2016-011 2019-002	12-20-2016 03-06-2019		
Drafting Technician	12	1987-C-58	03-04-1987		
Driver P/T	3.35-12.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Electrical Inspector	26	1987-C-104	06-16-1987		
Electrical Subcode Official	27	1987-C-100	06-16-1987	93-001	01-13-1993
Electrification and right-sizing City's fleet to support climate goals		2020-013	07-17-2020		
Elevator Subcode Official	27 min. 17,500 max. 59,565			92-001	01-27-1992
Employee voluntary separation incentive program		2019-006	05-02-2019		
Environmental Engineer I	*			15-055	05-13-2015
Environmental Health Coordinator	45	2015-003	06-12-2015	15-078	06-10-2015
Environmental Health Specialist (Hazardous Substances)				McC-338	07-17-1991
Equal Opportunity/ Human Rights Specialist				93-126	10-27-1993
Environmental Specialist	22	1987-C-161	11-06-1987		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Equipment Operator	14	1988-C-165	01-15-1988		
Equipment Operator Foreman M/W	15	1988-C-168	01-15-1988		
Equipment Operator, Water	14	1990-McC-51	10-10-1990	McC-224	11-20-1990
Ethics Officer		2002-004	05-06-2002		05-06-2002
Exchange Place Special Improvement District Advisory Board		2016-004	04-12-2016		
Executive Assistant	24	1987-C-90	06-03-1987		
Executive Assistant P/T	4.48-14.25	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Executive Director, Human Rights Commission	20	1987-C-145	11-04-1987	C-624	12-10-1987
Executive Secretary	25	1990-McC-17	01-22-1990		
Exhibit Artist				03-071	Defeated 05-14-2003
Exterminator Trainee	5	2008-008	11-12-2008	08-155	11-12-2008
Federal Aid Highway Project Procedure Manual		2012-001	12-14-2012		
Field Representative Energy Conservation Spanish/ English	8	1988-C-212	05-18-1988		
Field Representative Narcotics Education		1992-040	09-18-1992	92-147	10-28-1992
Field Representative, Property Improvement, Bilingual Spanish and English				96-050	05-22-1996
Field Representative, Senior Citizens Program	8	1987-C-49	02-02-1987		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
File Clerk P/T (Seasonal)	3.10-6.00	1986-C-6	06-19-1986		
Fire Captain	Pursuant to current FSOA Union Contract			05-090	08-10-2005
Fire Chaplain	5,000	2000-011 2014-08	08-07-2000 08-20-2014	00-108	09-13-2000
Fire Chief	173,414.00	S-089 2002-008 2014-007 2015-002	03-28-1996 05-02-2002 08-20-2014 04-27-2015		05-02-2002
Fire Fighter	Pursuant to FOBA Union Contract				
Fire Official	26	1991-McC-83	07-22-1991		
Fire Prevention Specialist		1989-C-286		C-998	06-22-1989
Fire Protection Inspector	26	1987-C-106	06-16-1987		
First Assistant Corporation Counsel	59,000-65,000	1988-C-233 1989-McC-7	08-22-1989		
First Assistant Prosecutor	40,000-80,000	2002-010	05-15-2002	02-069	06-12-2002
Fiscal Analyst	25	1990-McC-21	01-24-1990		
Fiscal Oversight and Management Protocol		2015-006 2019-005	08-26-2015 05-13-2019		
Flag of USA to fly from city-owned buildings and properties		S-042	03-18-1994		
Food Service Worker (seasonal) P/T	3.35-7.50	1988-C-205	05-18-1988		
Gender neutrality in all municipal bathroom facilities established		2017-005	03-23-2017		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
General Nurse Public Health P/T	12.00	1988-C-205	05-18-1988		
General Supervisor, Streets	17	S-072	03-13-1995		
General Supervisor, Traffic Maintenance	20	1987-C-88	06-03-1987		
General Supervisor Trades		1992-038	09-18-1992	92-146	10-28-1992
General Supervisor Water		Tabled		93-100	09-22-1993
General Trades Foreman	22	1991-McC-69	03-20-1991		
Grants Administration and Compliance		2003-003	11-24-2003		
Graphic Artist				03-003	01-22-2003
Green Committee		2009-005 2011-001	07-27-2009 01-26-2011		
Hazmat Coordinator	25	1987-C-153	11-04-1987		
Health Aide Bilingual P/T	3.35-11.50	1988-C-205	05-18-1988		
Health Insurance Benefits Clerk	7	2017-013	07-06-2017	17-084	06-28-2017
Health Investigator P/T	3.35-12.50	1988-C-205	05-18-1988		
Health Officer	21	1986-C-2 S-069	02-18-1986 12-20-1994		
Heavy Equipment Operator	17	1988-C-166	01-15-1988		
Historic Preservation Specialist	20	2002-013	05-15-2002	02-045	04-10-2002
Human Resources Coordinator	25	2017-009	04-27-2017	17-041	04-26-2017
Hydrant and Valve Inspector P/T	3.35-12.75	1986-C-7 1988-C-205	05-18-1988		
Identification Clerk				93-095	09-08-1993
Identification Officer				94-074	08-17-1994

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Incident Command System		2000-003	02-15-2000		
Inclusion of LGBT, Veteran and Disabled Person Owned Businesses		2018-015	10-24-2018		
Information Technology Audit Committee		2013-003	10-21-2013		
Interpreter Bilingual in Spanish/ English	4	1987-C-80	06-03-1987		
Interviewer Public Defender Officer, Bilingual in Spanish/English	7	1988-C-246	10-26-1988		
Interviewer Courts, Bilingual in Spanish/English	7			92-017	03-25-1992
Investigator Communicable Diseases, Director of Licenses-	7	S-046	04-21-1994	94-042	05-25-1994
Investigator, Public Works	11		07-16-1991	McC-347	08-21-1991
Investment Specialist	29	1991-McC-86	10-15-1991	McC-392	11-06-1991
Jersey City Municipal Alliance Committee to Combat Drug and Alcohol Abuse		93-001	07-21-1993		
Judge of Municipal Court (part-time, less than 20 hours per week)	20,000			96-118	11-26-1996
Judge of Municipal Court (part-time, 20 hours or more per week)	35,000			96-118	11-26-1996
Judge of Municipal Court (full-time)	70,000			96-118	11-26-1996

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Judge of Municipal Court (designated Chief Judge)	80,000			96-118	11-26-1996
Judge of Municipal Court, Central Judicial Processing	76,000	1987-C-53		McC-12 96-118	09-13-1989 11-26-1996
Juneteenth Designated Holiday		2020-009	06-17-2020		
Keep Jersey City Beautiful committee		2016-001	01-06-2016		
Keyboarding Clerk 2/Telephone Operator	10	2017-015	10-02-2017	17-121	09-27-2017
Labor Relations Assistant	14	2016-005	04-25-2016	16-058	04-13-2016
Laboratory Assistant P/T	3.35 12.75-	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Laboratory Technician P/T	6.75 13.75-	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Laborer P/T	3.35-13.75	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Labor Grades, various unclassified positions		1992-011	06-03-1992		
Labor Grade Classified Positions		1992-009			
Law Intern F/T	17,400-25,000	1991-McC-68	03-19-1991	McC-302	04-10-1991
Law Intern P/T:		1987-C-147 1993-S-013 2009-003	11-04-1987 09-02-1993 07-15-2009		
1st-year law student	13.00/hour				
2nd-year law student	14.00/hour				
3rd-year law student and post-graduate law student	15.00/hour				

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Law Librarian	20	2007-010	06-12-2007	07-125	07-18-2007
Leaves of absence (specific information relating to each leave of absence is on file and available for inspection in the office of the City Clerk)		1986-C-4 1986-C-5 1986-C-11 1986-C-12 1986-C-15 1986-C-16 1986-C-22 1986-C-27 1986-C-36 1986-C-38 1986-C-39 1987-C-45 1987-C-62 1987-C-63 1987-C-64 1987-C-65 1987-C-76 1987-C-113 1987-C-114 1987-C-116 1987-C-140 1987-C-142 1987-C-143 1987-C-163 1988-C-179 1988-C-184 1988-C-191 1988-C-192 1988-C-193 1988-C-194 1988-C-195 1988-C-196	05-12-1986 05-12-1986 07-18-1986 07-18-1986 08-01-1986 08-01-1986 08-21-1986 09-22-1986 10-31-1986 11-10-1986 11-10-1986 01-02-1987 05-22-1987 05-22-1987 05-22-1987 05-22-1987 06-02-1987 08-18-1987 08-18-1987 11-04-1987 11-04-1987 11-04-1987 11-06-1987 01-15-1988 02-22-1988 03-17-1988 03-17-1988 03-17-1988 03-17-1988 03-17-1988 03-22-1988		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
		1988-C-248	10-26-1988		
		1988-C-249	10-26-1988		
		1988-C-252	11-01-1988		
		1989-C-261	01-03-1989		
		1989-C-263	03-16-1989		
		1989-C-264	03-17-1989		
		1989-C-265	03-17-1989		
		1989-C-266	03-17-1989		
		1989-C-273	04-11-1989		
		1989-C-275	06-01-1989		
		1989-C-284	06-05-1989		
		1989-McC-12	10-05-1989		
		1990-McC-22	01-24-1990		
		1990-McC-24			
		1990-McC-43	01-01-1990		
		1990-McC-44	07-26-1990		
		1990-McC-45	01-01-1990		
		1990-McC-46	07-26-1990		
		1990-McC-64	12-19-1990		
		1992-001	12-28-1991		
		1992-012	06-12-1992		
		1992-037	09-11-1992		
		1992-042	10-05-1992		
		1993-010	07-27-1993		
		1993-058	01-07-1993		
		1993-060	03-26-1993		
		1993-061	03-26-1993		
		1993-062	03-26-1993		
		1993-S-003	07-27-1993		
		1993-S-004	07-27-1993		
		1993-S-005	07-27-1993		
		1993-S-006	07-27-1993		
		1993-S-007	07-27-1993		
		1993-S-008	07-27-1993		
		1993-S-009	07-27-1993		
		1993-S-010	07-27-1993		
		1993-S-012	09-01-1993		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
		1993-S-018	12-16-1993		
		1993-S-019	12-16-1993		
		1993-S-020	12-16-1993		
		1993-S-021	12-16-1993		
		1994-S-033	02-14-1994		
		1994-S-034	02-14-1994		
		1994-S-035	02-14-1994		
		1994-S-037	02-14-1994		
		1994-S-038	02-14-1994		
		1994-S-040	02-23-1994		
		S-041	03-02-1994		
		S-043	04-21-1994		
		S-044	04-21-1994		
		S-045	04-21-1994		
		S-049	06-10-1994		
		S-050	06-10-1994		
		S-051	07-19-1994		
		S-052	07-19-1994		
		S-053	07-19-1994		
		S-054	07-19-1994		
		S-055	07-19-1994		
		S-056	07-19-1994		
		S-059	09-01-1994		
		S-062	09-01-1994		
		S-063	09-12-1994		
		S-065	12-19-1994		
		S-067	12-16-1994		
		S-073	03-20-1995		
		S-074	03-20-1995		
		S-075-A	06-22-1995		
		S-078	09-12-1995		
		S-079	09-12-1995		
		S-080	09-12-1995		
		S-091	04-12-1996		
		S-092	04-12-1996		
		S-095	05-14-1996		
		S-096	05-14-1996		
		S-097	05-22-1996		
		1997-003	02-26-1997		
		1997-004	02-26-1997		
		1997-005	02-26-1997		
		1997-006	02-26-1997		
		1997-007	02-26-1997		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
		1997-011 1997-012 1997-013 1997-014 1997-015 1997-016 1997-017 1998-002 1998-003 1998-004 1998-005 1998-006 1998-007 1998-008 1998-009 1998-010 1998-011 1998-021 2000-001 2000-004 2000-005 2000-006 2000-008 2002-006 2002-007 2002-012	02-26-1997 02-26-1997 02-26-1997 02-26-1997 02-26-1997 02-26-1997 04-09-1997 01-26-1998 01-26-1998 01-26-1998 01-26-1998 01-26-1998 01-26-1998 01-26-1998 01-26-1998 01-26-1998 01-26-1998 08-03-1998 12-20-1999 07-28-2000 07-28-2000 07-28-2000 08-15-2000 04-17-2002 04-17-2002 05-15-2002		
Lead Poisoning Inspector	Pursuant to N.J.S.A. 40:69A-43a	2006-002	01-31-2006	06-025	03-08-2006
Legal Analyst	43	2007-017 2018-14	06-27-2007 06-29-2018	07-134 18-066	08-08-2007 06-27-2018
Legal Assistants	15,000-25,000	1989-McC-10 C-21 C-54	08-22-1989		
Legal Research Assistant	20	1990-McC-58	11-15-1990		
Legal Secretary	12	1993-S-026	12-16-1993 09-22-1993		
Legislative Specialist	30	S-081	12-09-1995		
Loan Adviser				93-096	09-08-1993

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Loan Adviser Bilingual Spanish and English	Pursuant to N.J.S.A. 40:69A-43a			05-027	03-23-2005
Lobbyist Representative		2002-005	05-06-2002	02-075	06-12-2002
Longevity increases; classified and unclassified services				92-050 92-090	05-27-1992 06-23-1992
Longevity pay to management unclassified employees for service with other political subdivision of the State of New Jersey		1988-C-232	09-20-1988		
Maintenance Repairer/Plasterer	12	1992-003	03-10-1992	92-028	04-08-1992
Maintenance Worker 2 Grounds	12	2014-010	10-14-2014	14-124	10-08-2014
Maintenance Worker P/T	3.35-9.50	1986-C-7 1988-C-205	05-18-1988		
Mail Clerk	2	1990-McC-50	10-10-1990	McC-224	11-20-1990
Management Assistant	18	2002-009	05-15-2002	02-053	05-08-2002
Management Employee Benefits		2002-015 2004-003 2007-017 2007-018 2008-009 2010-003 2017-016 2017-018 2019-001 2019-003 2020-011 2023-002	07-24-2002 08-18-2004 09-05-2007 10-10-2007 12-02-2008 10-12-2010 09-27-2017 12-08-2017 01-25-2019 04-24-2019 07-17-2020 06-05-2023		
Management Employees—Four-Day Workweek		2020-012	07-17-2020		
Management Hours		1992-025	07-06-1992		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Management Raises		1992-024 1992-025	07-06-1992 07-06-1992	92-050 92-090	05-27-1992 07-02-1992
Management Specialist			03-09-1994	94-015	03-23-1994
Management Specialist P/T	6.72-18.00	1986-C-7 1987-C-57 1988-C-205	05-18-1988		
Manager, Animal Control Facility				02-095	07-12-2002
Manager, Division of Sanitation	23	1986-C-32	10-22-1986	McC-74	12-27-1989
Managerial employees, one-time benefit		2020-014	12-11-2020		
Mason/Plasterer	Pursuant to N.J.S.A. 40:69A-48			98-146	10-28-1998
Mayor	98,363			93-072 97-053 05-070	07-28-1993 08-13-1997 06-22-2005
Mayor's personal secretary, unclassified	26	1987-C-55	03-03-1987		
Meat Inspector	19,003 max. at 5 years	1986-C-2	02-18-1986		
Mechanic Repair Light Equipment	14	2017-11	05-26-2017	17-063	05-24-2017
Mechanic/Senior Public Works Repairer				96-050	05-22-1996
Messenger	2	93-S-002	07-27-1993		
Messenger P/T	3.35-12.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988	McC-11	09-13-1989
Messenger, bilingual in Spanish and English	6	1987-C-77	06-02-1987		
Municipal Bond Specialist/Senior Budget Examiner	28	1990-McC-61		McC-264	01-23-1991

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Municipal Court Attendant P/T	3.35-13.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Municipal Court Clerk P/T	3.35-13.75	1986-C-6 1987-C-57			
Municipal Court Director	11 47,500 FX: 100,000	2008-007 1988-C-205 1987-C-59 1988-C-230 1992-050	08-22-2008 05-18-1988 03-04-1987 07-29-1988 10-19-1992	92-154 92-157	11-10-1992 11-10-1992
Municipal Disaster Control Director	19	1989-C-255	03-29-1989	C-886	01-02-1989
Municipal Emergency Management Coordinator	21	2000-002	03-03-2000		
Municipal employment conditions				93-046	04-28-1993
Municipal employees minimum wage	$20.00	2016-003 2016-008 2021-004 2022-002	02-29-2016 07-05-2016 08-23-2021 06-16-2022		
Municipal Engineer	65,000	1989-McC-3 1987-C-50	08-16-1989		
Municipal Parks Superintendent	22	1987-C-132	09-20-1987		
Network Administrator 1	20	2008-003	02-19-2008	08-017	03-12-2008
Network Administrator 2	22	2008-003	02-19-2008	08-017	03-12-2008
Newark Avenue Pedestrian Mall—60-day trial extension		2018-011	05-21-2018		
Nonunion classified and unclassified employees; implicit price deflator (not signed)		S-1993-028 S-1993-029 S-1993-030	01-03-1994		
Nonunion classified and unclassified managerial employees		2014-012	11-21-2014		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Nutrition Program Coordinator Women, Infants and Children's' Program	20	1992-036 92-073	07-23-1992 06-24-1992		
Nutrition Site Manager P/T	3.50-9.50	1986-C-6 1988-C-205	05-18-1988		
Omnibus Operator Class II P/T	3.35-12.50	1986-C-6 1987-C-57 1988-C-205			
Operations and Training Officer Emergency Management				02-007	02-13-2002
Outdoor dining regulations		2021-003 2022-001	06-15-2021 02-14-2022		
Paid parental leave for municipal employees		2018-002	03-09-2018		
Paralegal Specialist	21	2018-14	06-29-2018	94-016 18-066	03-09-1994 06-27-2018
Parent Educator (Seasonal) P/T	7.00-12.00	1986-C-6 1988-C-205	05-18-1988		
Park Maintenance Worker				96-112	11-26-1996
Peddling prohibited in all municipal workplaces		1990-McC-55	11-16-1990		
Permit Clerk Typing	Pursuant to N.J.S.A. 40:69A-43a			08-040	04-09-2008
Personnel Forms, Processing		1992-027	07-06-1992		
Personal secretary to Department Director	26	1989-McC-2	07-24-1989		
Personnel Supervisor				93-131	10-27-1993
Phlebotomist	7	1992-039	09-18-1992	92-145	10-28-1992
Photographer, Processor and Developer	11:9,300 min. 25,323 max.	1986-C-10	07-18-1986		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Photographer, Processor and Developer P/T	4.25-14.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Pistol Range Dedication		1988-C-220	06-06-1988		
Planner Trainee P/T	2.75-9.50	1987-C-83	06-03-1987		
Plumbing Inspector	26	1987-C-105	06-16-1987		
Plumbing Subcode Official	27	1986-C-2 1987-C-101	06-16-1987		
Police Captain	Pursuant to current PSOA Union Contract			05-090	08-10-2005
Police Chaplain	5,000	2000-010 2014-08	08-07-2000 08-20-2014	00-109	09-13-2000
Police Chief*	(Base without CPI)			15-064	05-27-2015
Police Communication Clerk, Bilingual Spanish and English	5	1987-C-78	06-02-1987		
Police Department Detectives		1988-C-231	09-09-1988		
Police Department Study		1987-C-164	12-18-1987		
Police Inspector				McC-262	01-09-1991
Police Lieutenant	Pursuant to current PSOA Union Contract			05-090	08-10-2005
Police Officer	Pursuant to POBA Union Contract			05-090	08-10-2005

*__Note__—Effective to January 1, 2015 pursuant to the provisions of N.J.S.A. 40A:14-179 and N.J.S.A. 40:69A-60.7 the base salary of the Chief of Police is hereby set at one hundred seventy-three thousand four hundred fourteen dollars ($173,414.00) per year or the identical base salary as the Fire Chief, whichever is greater. Pursuant to N.J.S.A. 40A:14-179 the annual base salary shall be adjusted to ensure that his/her base salary remains higher than the highest base salary of the next ranking officer in command below the Chief of Police.

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Police Records Clerk/Typing				96-050	05-22-1996
Police Sergeant	Pursuant to current PSOA Union Contract			05-090	08-10-2005

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Police trainees hired as temporary employees enrolled in Police Training Academy, compensation of	First 30 days: 5.15 per hour or min. wage, whichever is greater; 31st to 60th day: 6.25 per hour; 61st day and thereafter: 7.50 per hour	1998-001 1998-013	01-30-1998 03-06-1998		
Press Aide	25	1988-C-211	05-18-1988		
Principal Auditor	29	1987-C-154	11-04-1987		
Principal Budget Examiner	32	1989-C-274	06-01-1989		
Principal Buyer	15	1988-C-185	02-22-1988		
Principal Clerk	9	1988-C-180	01-22-1988		
Principal Clerk Transcriber	9	1988-C-181	01-22-1988		
Principal Clerk Stenographer	9	1988-C-182	01-22-1988		
Principal Clerk Typing	9	1988-C-183	01-22-1988		
Principal Clerk Typing P/T	3.35-15.50	1987-C-57 1988-C-205	05-18-1988		
Principal Community Organization Specialist	25	2017-002	01-17-2017	16-190	01-11-2017
Principal Data Control Clerk P/T	3.35-17.75	1986-C-29 1987-C-57 1988-C-205	05-18-1988		
Principal Engineer	29	1988-C-202	03-28-1988		
Principal Engineer, Civil	26	1991-McC-67	03-20-1991	McC-303	04-10-1991
Principal Fiscal Analyst	40	2018-012	05-31-2018	18-045	05-23-2018
Principal Legal Stenographer	10	1986-C-10	07-18-1986		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Principal Planner (Transportation)	25	1990-McC-34	04-23-1990	McC-159	06-27-1990
Principal Program Development Specialist, Criminal Justice	25	S-087	03-05-1996	95-108 96-050	11-08-1995 05-22-1996
Principal Registered Environmental Health Specialist, Public Health	10	1986-C-2 S-069 2009-001	02-18-1986 12-20-1994 04-22-2009	09-045	04-22-2009
Process Officer	28	1990-McC-16	01-18-1990	McC-102	02-14-1990
Program Analyst	17	1988-C-250	10-26-1988		
Program Analyst P/T	4.50-14.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Program Coordinator Aging	8	1988-C-225	07-13-1988		
Program Coordinator Lead Poisoning Control Program	30	2018-008	04-12-2018	18-026	04-11-2018
Program Coordinator Minority and Women Business Enterprise Development				93-090	08-18-1993
Program Coordinator Special Events	13	1988-C-178	01-15-1988		
Program Development Specialist (Community Service)	14	1987-C-70	06-02-1987		
Program Development Specialist (Human Resources)	14	1988-C-173	01-15-1988		
Program Development Specialist Aging	14	14-011	11-14-2014	14-137	11-12-2014
Program Development Specialist 3	31	2017-004	03-09-2017	17-021	03-08-2017

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Program Manager Disease Prevention and Control	25	2007-019	11-07-2007	07-170	10-24-2007
Program Monitor	14	1988-C-172	01-15-1988		
Program Nutritionist	20	2007-004	03-02-2007	07-047	03-28-2007
Project Coordinator, Crime Prevention Program	16	1992-032	07-23-1992	92-073	06-24-1992
Project Coordinator, Redevelopment			03-09-1994	94-015	03-23-1994
Project Coordinator, Housing and Economic Development	31	1987-C-67	06-02-1987		
Project Manager Data Processing	31	2018-14	06-29-2018	18-066	06-27-2018
Public Art Advisory Committee		2017-006	03-27-2017		
Public Defender 5 - 10 years experience 6 or more years legal experience	28,500 33,000	1990-McC-15	01-09-1990		
Public Health Investigator	9	1989-C-258	01-03-1989	C-889	01-26-1989
Public Information Assistant Typing	11	2007-001	02-06-2007	07-026	02-28-2007
Public Information Officer	23	1997-008	02-26-1997		
Public Participation Specialist	11	1987-C-74	06-02-1987		
Public Relations Officer	27	1989-C-268	03-29-1989		
Public Safety Advisory Board		2013-002	10-15-2013		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Public Safety Telecommunicator	23	1997-010 2000-012	02-26-1997 10-11-2000 (Editor's Note: This Executive Order also repealed Executive Order 1998-018, dated 08-03-1998.)	97-023	03-26-1997
Public Works Inspector	9	1987-C-73 1987-C-91	06-03-1987		
Public Works Trainee P/T	3.35-13.50	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Purchasing Agent	33	1989-C-279	06-01-1989		
Purchasing Disparity Study "Croson Study" Committee		2014-009 2015-001	10-07-2014 01-09-2015		
Radio Dispatcher	Pursuant to N.J.S.A. 40:69A-43a			05-028	03-23-2005
Radio Repairer				96-050	05-22-1996
Range Master				96-050	05-22-1996
Real Estate Director	27	1988-C-176	01-15-1988		
Real Estate Manager	21	1991-McC-81	07-22-1991		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Real Estate Manager P/T	5.00-15.00	1988-C-205	05-18-1988		
Receptionist P/T	3.35-13.00	1986-C-6 1987-C-57 1988-C-205	05-18-1988		
Records Manager	10	1992-002	03-10-1992	92-028	04-08-1992
Records Retrieval Operator	6	1990-McC-63	12-19-1990		
Recreation Leader Boxing	4	1990-McC-39	07-20-1990	McC-198	09-12-1990
Recreation Maintenance Supervisor	20	1987-C-48	02-02-1987		
Recreation Supervisor	10	1987-C-134	09-20-1987		
Recreation Program Coordinator	18,500	1988-C-188	02-22-1988		
Recreation Program Coordinator P/T	10,000	1988-C-188	02-22-1988		
Recreation Superintendent	22	1990-McC-27	04-16-1990		
Recreation Supervisor, Recreation Center	20	1987-C-146	11-04-1987		
Recreation Supervisor (Seasonal) P/T	4.67-8.49	1986-C-7	06-19-1986		
Recreation Supervisor, Senior Citizens	14	1988-C-175	01-15-1988		
Registered Environmental Health Specialist, Public Health	6	1986-C-2 S-069 2009-001	12-20-1994 04-22-2009	09-045	04-22-2009
Rent Collector P/T	5.00-13.00	1986-C-7 1988-C-205	05-18-1988		
Rent Administrator for the Rent Receivership Program		S-066	12-07-1994		
Representative, Citizen Complaints				93-092	09-08-1993
Research Aide	6	2007-019	11-07-2007	07-170	10-24-2007
Research Assistant	15	1990-McC-13	10-06-1989		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Research Assistant Criminal Information	14	2006-005	04-20-2006	06-060	05-10-2006
Road Inspector	9	2015-009	10-30-2015	15-142	10-28-2015
Safety Inspector		1992-031	07-1992	92-100	08-19-1992
Sanctuary city establishment		2017-003	02-03-2017		
Sanitary Inspector P/T	6.50-15.00	1987-C-136	09-20-1987		
Sanitation Guard P/T	5.00-9.50	1987-C-57	03-04-1987		
Sanitation Inspector	13	1987-C-86	06-03-1987		
Sanitation Superintendent	35	2017-015	10-02-2017	17-121	09-27-2017
Second Assistant Corporation Counsel				93-131	10-27-1993
Secretarial Assistant, Bilingual Spanish and English	11	1987-C-68	06-02-1987		
Secretarial Assistant Transcriber	11	1987-C-229	07-28-1988		
Secretary, Board/ Commission	32,500	1988-C-245	10-26-1988		
Secretary to Board of Alcoholic Beverage Control	12,000	Res. C-3530 1993-S-016	10-20-1993	98-120 05-016	09-09-1998 02-23-2005
Secretary of Insurance Commission	40,000			92-002	03-25-1992
Secretary to Municipal Council	1	1993-S-016	10-20-1993		
Security Guard P/T		1986-C-7 1987-C-57 1988-C-205	05-18-1988		
Security Systems Operator	20	2007-013	07-23-2007	07-144	08-22-2007
Senior Account Clerk	7	1990-McC-62	12-19-1990		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Senior Accounting Procedures Analyst			03-09-1994	94-015	03-23-1994
Senior Account Clerk Typing	7	100-McC-62	12-19-1990		
Senior Administrative Analyst	30	1987-C-151 2004-002	10-04-1987 03-08-2004		
Senior Assessing Aide	28	1988-C-189	02-22-1988		
Senior Assistant Assessor				02-131	11-26-2002
Senior Assistant Corporation Counsel, Unclassified	Min. 24,000 max. 40,000	1986-C-14 1986-C-28	10-01-1986		
Senior Carpenter	28	2018-006	04-03-2018	18-022	03-28-2018
Senior Chemist	19,002 (max. at 5 years)	1986-C-2			
Senior Clerk	7	1987-C-155	11-04-1987		
Senior Clerk P/T	3.35-15.00	1987-C-57 1988-C-205	05-18-1988		
Senior Clerk Stenographer	7	1987-C-156	11-04-1987		
Senior Clerk Transcriber, Bilingual in Spanish and English	7	1987-C-157	11-04-1987		
Senior Clerk Typist	7	1987-C-158	11-90-1987		
Senior Clerk Typist P/T	3.35-15.00	1986-C-7 1987-C-57 1988-C-205	05-18-1988		
Senior Code Enforcement Officer	14	1989-C-267	03-27-1989	C-935	04-27-1989
Senior Communications Officer	11	1987-C-69	06-02-1987		
Senior Community Relations Specialist	25	1990-McC-26			
Senior Community Relations Specialist, Bilingual in Spanish and English	25	1990-McC-28	04-16-1990	McC-141	05-09-1990

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Senior Community Service Planner	14	1989-C-272	03-29-1989	C-943	04-28-1989
Senior Construction Inspector				93-096	08-18-1993
Senior Customer Service Representative	14	2007-007	04-05-2007	07-078	05-09-2007
Senior Engineer Civil	45	2017-013	07-06-2017	17-084	06-28-2017
Senior Engineer Traffic	12	1991-McC-85	09-09-1991	McC-374	10-09-1991
Senior Engineering Clerk	11	1988-C-224			
Senior Environmental Health Specialist (Hazardous Substances)				93-128	10-27-1993
Senior Equipment Operator	18	1988-C-167			
Senior Identification Officer	Pursuant to N.J.S.A. 40:69A-43a			05-043	04-27-2005
Senior Landscape Architect	33	2016-007	07-05-2016	16-101	06-29-2016
Senior Loan Advisor	Pursuant to N.J.S.A. 40:69A-43a			08-040	04-09-2008
Senior Maintenance Repairer Fire Equipment	7	1997-009	02-26-1997		
Senior Microbiologist	20	1989-C-271			
Senior Permit Clerk	15	2007-003	03-02-2007	07-046	03-28-2007
Senior Planner P/T	7.50-15.00	1988-C-205			
Senior Planner Economic Development P/T	10.00-18.00	1987-C-57 1988-C-205			
Senior Planning Aide	14	2006-004	04-18-2006	06-058	05-10-2006

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Senior Plumbing Inspector	24	1988-C-206	03-18-1988		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Senior Police Records Clerk	7	S-057	08-31-1994	94-090	09-14-1994
Senior Program Analyst	24	2007-006	04-03-2007	07-070	04-25-2007
Senior Program Monitor	19	2006-009	09-20-2006	06-117	10-11-2006
Senior Public Safety Telecommunicator	14	2000-009	06-08-2000	00-069	06-28-2000
Senior Pump Station Operator	25	1990-McC-33 1990-McC-159	06-27-1990		
Senior Research Assistant	20	1987-C-112	08-03-1987		
Senior Research Assistant P/T	9.10-10.00	1986-C-7	06-19-1986		
Senior Registered Environmental Health Specialist, Public Health	8	1986-C-2 S-069 2009-001	02-18-1986 12-20-1994 04-22-2009	09-045	04-22-2009
Senior Sanitation Inspector	14	1989-C-283	06-05-1989		
Senior System Analyst	26	1991-McC-84	09-09-1991	McC-374	10-09-1991
Senior Training Technician	28	1993-S-014	09-03-1993	93-036	05-19-1993
Senior Statistical Typist	8	1989-C-269	03-29-1989	C-940	04-27-1989
Senior Water Inspector	25	1987-C-135	09-20-1987		
Service charge for Jersey City School Board shared		2017-007	04-05-2017		
Severance Incentive Program, compensation for		96-083	03-05-1996		
Sewer Inspector Bilingual in Spanish and English	9	1988-C-223	07-13-1988		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Sexual Harassment		1994-S-032 1998-015 04-001 2006-008	02-02-1994 04-28-1998 01-15-2004 09-25-2006		
Sidewalk Inspector/ Street Inspector	13	1987-C-85	06-03-1987		
Sign Maker 2	18	2007-019	11-07-2007	07-170	10-24-2007
Social Caseworker Trainee	8	1991-McC-89	10-15-1991	McC-392	11-06-1991
Social Caseworker Aide	11			92-017	03-25-1992
Social Caseworker Supervisor	17	1987-C-117	08-18-1987		
Social Caseworker Supervisor Bilingual in Spanish and English	17	1987-C-117	08-18-1987		
Social Service Assistant	8	1991-McC-66	03-20-1991	McC-303	04-10-1991
Social Service Technician	9	2017-017	12-01-2017	17-151	11-29-2017
Special Assistant to Finance Director	FX: 45,000	1987-C-118	08-18-1987		
Special Law Enforcement Officer	*			13-013	02-27-2013
Special Service Assistant P/T	10.00-18.00	1987-C-57 1988-C-205	05-18-1988		
Statistical Typist	6	1988-C-208	05-18-1988		
Storekeeper P/T	3.35-13.75	1987-C-57 1988-C-205	05-18-1988		
Street Permit Clerk	12	1987-C-109	06-16-1987		
Student Assistant	2	2007-019	11-07-2007	07-170	10-24-2007
Student Assistant (Seasonal High School) P/T	3.35-13.75	1986-C-6	06-19-1986		
Summit and Newark Avenue, renaming of southwest corner		1988-C-221	06-13-1988		

***Note**—Pursuant to N.J.S.A. 40:69A-43a.

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Superintendent of Watershed	21	1990-McC-18	01-24-1990		
Superintendent, Water Distribution and Aqueduct Maintenance	27	1988-C-186	02-22-1988		
Supervising Buyer	18	1987-C-133	09-20-1987		
Supervising Clerk Typist, Bilingual in Spanish and English	Withdrawn	93-109	09-22-1993		
Supervising Clerk P/T	4.50-15.75	1987-C-57 1988-C-205	05-18-1988		
Supervising Electronic Repairer	27	1988-C-237	10-26-1988		
Supervising Engineer	32	1986-C-30	10-21-1986		
Supervising Engineer P/T	15.00-27.00	1987-C-57 1988-C-205	05-18-1988		
Supervising Equipment Operator	Pursuant to N.J.S.A. 40:69A-43a			08-112	08-20-2008
Supervising Fire and Ambulance Dispatcher	22	2000-007	02-02-2000	99-024	02-24-1999
Supervising Health Insurance Benefits Clerk	14	2011-007	10-17-2011	11-120	10-12-2011
Supervising Heavy Equipment Operator	26	2017-015	10-02-2017	17-121	09-27-2017
Supervising Legal Stenographer	21	1990-McC-11	11-08-1989		
Supervising Lifeguard	10	2017-14	09-15-2017	17-116	09-13-2017
Supervising Parking Enforcement Officer	18	2018-013	06-15-2018	18-054	06-13-2018
Supervising Planner	30	1991-McC-79	06-26-1991		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Supervising Principal Clerk	14	1991-McC-88	10-15-1991	McC-392	11-06-1991
Supervising Program Development Specialist Minority and Business Concern	14,800-44,751	1991-McC-76	04-29-1991		
Supervising Public Safety Telecommunicator	27	2000-009 2017-012	06-08-2000 06-16-2017	00-069 17-066	06-28-2000 06-14-2017
Supervising Representative Citizen Complaints	25	1998-019	08-03-1998	96-112	11-26-1996
Supervising Road Inspector	19	2006-010	10-26-2006	06-137	11-21-2006
Supervising School Traffic Guard		93-110	09-22-1993		
Supervising Security Guard	7	1993-S-027	12-22-1993	93-149	01-12-1994 12-16-1993
Supervising Security Systems Operator	23	2007-012	07-23-2007	07-143	08-22-2007
Supervising Towing Operations	7	2017-015	10-02-2017	17-121	09-27-2017
Supervising Traffic Investigator	15	1992-022	06-17-1992	92-082	07-22-1992
Supervising Water Gatehouse Operator	8	1987-C-51	02-24-1987		
Supervising of Accounts	19	1989-C-259	01-03-1989		
Supervising of Aqueduct Maintenance and Repairer	18	1990-McC-48	10-04-1990		
Supervising of Aqueduct Maintenance and Repairs	25	1988-C-187	02-22-1988		
Supervising Program Analyst	22	2016-006	07-05-2016	16-100	06-29-2016

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Supervisor Billing and Collection/ Supervisor of Water Meter Readers	8	1992-001.1	03-18-1982	92-027	04-08-1992
Supervisor Customer Service	25	2015-004	07-20-2015	15-090	07-15-2015
Supervisor of Deaf Program P/T	7.50-12.50	1988-C-205	05-18-1988		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Supervisor Demolition	20	1987-C-70	06-02-1987		
Supervisor Job Development	25	1990-McC-41	07-20-1990		
Supervisor Parks	15	1992-034	07-23-1992	92-073	06-24-1992
Supervisor of Pumping, Generating Operations	27	1992-006	03-18-1992		
Supervisor, Senior Citizen Outreach and Referral Plan	18	1987-C-81	06-03-1987		
Supervisor Signal System	13	1990-McC-25	04-16-1990	McC-138	05-09-1990
Supervisor of Tax Services	26	1987-C-71 1988-C-247	10-26-1988		
Supervisor, Traffic Investigation	15	1988-C-228	07-13-1988		
Supervisor Trees	20	1992-005	03-18-1992		
Supervisor of Water and Sewage Billings and Collections		1986-C-35 1987-C-71	06-02-1986	McC-40	10-11-1989
Supervisor of Water Distribution	26	1990-McC-47	10-04-1990		
Supervisor of Water Meter Reading	8	1992-035	07-23-1992	92-073	06-24-1992
Supervisor Water Meter Repair		1993-089	09-08-1993	93-089	08-18-1993
Supervisory Assistants Corporation Counsel	50,GOO-65,000	1989-McC-8	08-22-1989		
Systems Analyst	33	1988-C-190	02-22-1988		
Tax Assessor	100,000	1986-C-25 1995-077 2003-002	09-22-1986 08-10-1995 07-30-2003	97-068 05-070	09-24-1997 06-22-2005

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Tax Collector	100,000*	1987-C-92 1991-McC-75	04-29-1991	07-163 14-157	10-10-2007 12-17-2014
Tax exemptions, long-term policy		S-039 1997-020 2010-001 2013-004 2015-007	10-20-1997 03-31-2010 12-24-2013 09-03-2015		
Tax Research Examiner and Investigator	20	1987-C-162	11-06-1987		
Tax Searcher P/T	4.50-12.50	1988-C-205	05-18-1988		
Teacher aide	Pursuant to N.J.S.A. 40:69a-43a			05-051	05-18-2005
Technical Assistant 3	21	2009-009	11-10-2009	09-113	11-10-2009
Technical Asst. Management Information Systems	10	2008-2	12-20-2007	08-002	01-23-2008
Technician, Management Information System	9	2004-006	12-02-2004	04-144	01-12-2004
Telecommunications Systems Analyst	16	1993-S-024 1990-McC-49	12-16-1993	McC-224	11-20-1990
Temporary Employees		2002-016	12-19-2002		
Telephones (car phones assignment)		1992-044	10-15-1992		
Tenant Adviser	12	1988-C-214	05-18-1988		
Third Assistant Corporation Counsel				93-131	10-27-1993
Ticket Taker (Seasonal) P/T	17.00 per session	1986-C-6	06-19-1986		
Traffic Enumerator	4	1990-McC-32	5-23-1990	McC-159	06-27-1990
Traffic Maintenance Supervisor	26	1989-C-260	01-03-1989		

*Editor‘snote—Ord. No. 14-157 stipulates:

1. The Tax Collector's base salary shall be increased by $10,000 for as long as the duties and responsibilities related to the financial management and monitoring of tax abatements remain within the tax collector's office.
2. In the event these additional functions are assigned to another person and office the base salary shall revert back to the current salary plus any Consumer Price Index (CPI) increase received pursuant to Sec. 53-6(D) of the Municipal Code.

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Training Officer (Law Enforcement) Police Department		1990-McC-57	11-15-1990	McC-239	12-19-1990
Training Officer (Part-Time)	18	2008-005	05-27-2008	08-080	06-25-2008
Training Technician				96-050	05-22-1996
Tree Superintendent	21	1992-004	03-18-1992		
Truck Driver Heavy	7	1990-McC-31	05-23-1990	McC-159	06-27-1990
Union classified and unclassified employees providing overtime snow removal from Jan. 23—25, 2016		2016-002	02-05-2016		
Urban Renewal Technician			03-09-1994	94-015	03-23-1994
Vacation leave and other benefits for nonunion classified and unclassified managerial personnel		1998-012	03-02-1998	92-115	09-16-1992
Vehicles: prohibiting taking city vehicles to employee's home		1992-045	10-15-1992		
Veterans' Advisory Task Force		2018-005	03-28-2018		
Violence prevention task force		2019-004	05-07-2019		
Vision Zero initiative		2018-001 2018-007 2019-007	02-09-2018 04-04-2018 06-14-2019		
Voter Registration Program, Nonpartisan		1987-C-60	03-27-1987		
Water Inspector	13	1987-C-84	06-03-1987		

Title	Labor	Executive Order	Date	Ord. No.	Adoption Date
Water Meter Reader/Water Meter Repairer	5	1993-S-023	12-16-1993	93-152	01-12-1994
Water Repairer P/T	4.00-11.50	1986-C-7 1988-C-205	05-18-1988		
Watershed Inspector	10	1990-McC-20			
Water Superintendent	40	1989-C-262	03-14-1989		
Welfare Supervisor		15	1988-C-170 1991-McC-82	07-22-1991	
Welfare Investigator				McC-64	11-08-1989
Welfare Investigator Spanish				McC-64	11-08-1989
WIC Peer Counselor	6	2014-013	11-25-2014	14-143	11-25-2014
Work First New Jersey Program, nondisplacement of incumbent city employees		1997-018	04-21-1997		
Youth Aide P/T	3.35-5.00	1986-C-6	06-19-1986		
Youth Opportunity Coordinator	35	2016-009	08-22-2016	16-114	08-17-2016

Chapter A352

ENABLING ORDINANCES

The following is a listing of enabling ordinances (special ordinances) enacted since January 1,1989. The complete text of each ordinance is on file in the Office of the City Clerk.

Table 1. Bond Ordinances
Table 2. Franchises and Vacations
Table 3. Land Acquisitions and Transfers
Table 4. Lease and Easement Agreements
Table 5. Redevelopment Plans
Table 6. Tax Abatements/Urban Renewals (Limited Dividend)
Table 7. Designations and Dedications of Streets and Public Places

TABLE 1. BOND ORDINANCES		
Ord. No.	Subject Matter	Date of Adoption
C-917	Bond to authorize acquisition of real property	04-13-1989
C-918	Bond to authorize acquisition of equipment for water distribution	03-23-1989
C-919	Bond to authorize improvement of various public streets	03-23-1989
C-939	Bond to appropriate unused bond proceeds for Police Department equipment	04-13-1989
C-958	Bond to appropriate unused bond proceeds to fire engine overhaul	05-11-1989
C-980	Bond to authorize acquisition of water distribution equipment	05-25-1989
C-981	Bond to rescind Ord. Nos. C-939 and C-958	05-25-1989
C-987	Bond to appropriate funds for reconstruction of A. Harry Moore School	06-22-1989
C-988	Bond to appropriate funds for construction of School No. 17	05-25-1989
C-989	Bond to appropriate funds for reconstruction of School No. 16	05-25-1989
C-990	Bond to appropriate funds for reconstruction of School No. 32	05-25-1989
C-991	Bond to appropriate funds for asbestos removal in public school buildings	06-22-1989
C-996	Bond to authorize improvement of various traffic signal systems	06-22-1989
McC-6	Bond to appropriate funds for improvement of sewer system	09-13-1989
McC-89	Bond to authorize acquisition of medical equipment	12-27-1989
McC-93	Bond to authorize appropriation of funds for payment of tax refunds due	01-24-1990
McC-96	Bond to authorize public improvements in Greenville Yard Area	01-24-1990
McC-128	Bond to authorize improvements to water distribution system	04-25-1990
McC-129	Bond to authorize acquisition of replacement equipment and new automotive vehicles	04-25-1990
McC-181	Additional appropriation for improvement of portion of Henderson Street	07-18-1990
McC-182	Bond appropriating sums received pursuant to Neighborhood Preservation Balanced Housing Program	07-18-1990
McC-190	Bond appropriating funds for payment of tax refunds due	07-13-1990
McC-196	Bond to authorize various street improvements	09-12-1990
McC-229	Bond to amend Ord. No. McC-129	11-20-1990
McC-230	Bond to amend Ord. No. McC-182	11-20-1990
McC-242	Bond to appropriate funds for reconstruction of City Hall	12-19-1990
McC-268	Bond to authorize acquisition and reconstruction of Jackson Valley site	02-27-1991
McC-313	Bond to authorize acquisition of real property and making of various public improvements	07-17-1991
McC-327	Bond to authorize appropriations made in transition year budget	05-22-1991
McC-364	Bond to authorize appropriations for reconstruction of School No. 23	12-26-1991
McC-365	Bond to authorize appropriations for construction of School No. 28	12-26-1991
McC-366	Bond to appropriating funds for reconstruction of Lincoln High School	12-26-1991
McC-367	Bond appropriating funds for improvements at Ferris High School	12-26-1991
McC-368	Bond appropriating funds for improvements at School Nos. 15, 25 and 14	12-26-1991
McC-369	Bond appropriating funds for reconstruction of Snyder High School	12-26-1991
McC-371	Bond appropriating funds for repayment of federal asbestos loan	12-26-1991
McC-372	Bond appropriating funds for construction of School No. 17	12-26-1991

TABLE 1. BOND ORDINANCES		
Ord. No.	Subject Matter	Date of Adoption
McC-398	Bond appropriating sums received pursuant to Neighborhood Preservation Balanced Housing Program	01-08-1992
McC-413	Amendment of Ord. No. McC-182	02-11-1992
McC-417	Bond to authorize improvement of Grand Street	02-26-1992
McC-418	Bond to authorize improvement of Arlington Avenue	02-26-1992
92-014	Bond to authorize improvement of Jersey Avenue	03-11-1992
92-029	Bond to authorize improvement of various traffic signal systems	04-08-1992
92-040	Bond to authorize acquisition of new aerial ladder unit for the Fire Department	05-13-1992
92-076	Cancellation of unused or unfunded appropriations	06-24-1992
92-089	Refunding bond ordinance for payment of tax refunds due	07-22-1992
92-102	Bond to authorize acquisition of Loews Theatre property	09-01-1992
92-112	Appropriation of unused bond proceeds	08-19-1992
92-113	Bond to authorize improvements to water supply system	08-19-1992
92-114	Bond to authorize improvements to water supply system	08-19-1992
92-135	Appropriation from capital improvement fund to Parking Authority	10-14-1992
92-176	Amendment of Ord. No. McC-398	12-09-1992
93-053	Bond to authorize various public improvements	05-27-1993
93-060	Refunding bond for payment of tax refunds due	06-09-1993
93-062	Bond to authorize improvement of Wilkinson Avenue Park and Muhammad AB Park	06-23-1993
93-065	Bond to authorize water capital improvements	06-23-1993
94-018	Bond to authorize various public improvements	04-13-1994
94-023	Bond to authorize various public improvements	04-13-1994
94-048	Bond to authorize payment of tax refunds	06-22-1994
94-057	Bond to authorize payment of tax refunds	06-22-1994
94-097	Refunding bond ordinance to authorize the appropriation of not to exceed $1,180,000 and to authorize the issuance of not to exceed $1,180,000 maturing value of refunding bonds or notes of the City, to refund a portion of the outstanding balance of urban renewal bonds of said City, to authorize the execution of agreements to facilitate such refunding plan and to finance the cost of issuing such refunding bonds on behalf of said City and to provide for the issuance of such refunding bonds	06-28-1995
94-098	Refunding bond ordinance to authorize the appropriation of not to exceed $1,180,000 and to authorize the issuance of not to exceed $92,555,000 maturing value of refunding bonds or notes of the City, to refund a portion of the outstanding balance of fiscal year adjustment bonds of said City, to authorize the execution of agreements to facilitate such refunding plan and to finance the cost of issuing such refunding bonds on behalf of said City and to provide for the issuance of such refunding bonds	06-28-1995
94-099	Refunding bond ordinance to authorize the appropriation of not to exceed $40,015,000 and to authorize the issuance of not to exceed $40,015,000 maturing value of refunding bonds or notes of the City, to refund a portion of the outstanding balance of water bonds of said City, to authorize the execution of agreements to facilitate such refunding bonds on behalf of said City, and to provide for the issuance of such refunding bonds	06-28-1995

TABLE 1. BOND ORDINANCES		
Ord. No.	Subject Matter	Date of Adoption
94-100	Refunding bond ordinance to authorize the appropriation of not to exceed $83,420,000 and to authorize the issuance of not to exceed $83,420,000 maturing value of school refunding bonds or notes of the City, to refund a portion of the outstanding balance of school bonds of said City to authorize the execution of agreements to facilitate such school bonds refunding plan and to finance the cost of issuing such school refunding bond on behalf of said City, and to provide for the issuance of such school refunding bonds	06-28-1995
94-101	Refunding bond ordinance to authorize the appropriation of not to exceed $31,745,000 and to authorize the issuance of not to exceed $31,745,000 maturing value of refunding bonds or notes of the City, to refund a portion of the outstanding balance of general and public improvement bonds of said City, to authorize the execution of agreements to facilitate such refunding plan and to finance the cost of issuing such refunding bonds on behalf of said City, and to provide for the issuance of such refunding bonds	06-28-1995
94-122	Amendment of Ord. No. McC-182	12-28-1994
94-123	Bond to authorize acquisition of real property and making of various public improvements	01-11-1995
94-124	Bond to authorize acquisition of real property and making of various public improvements	01-11-1995
94-125	Amendment of Ord. No. McC-372	05-24-1995
94-126	Bond appropriating funds for the installation of new emergency and exit fighting in school buildings	05-24-1995
94-127	Bond appropriating funds for the fuel tank remediation program at all school buildings	05-24-1995
94-128	Bond appropriating funds for the cost of identifying a suitable site for the location and construction of a new building for a new academic high school	05-24-1995
94-129	Bond appropriating funds for the installation of a new roofing system at P.S. No. 9, Kennedy School, Lincoln High School, Ferris High School and Snyder High School Annex	05-24-1995
94-130	Bond appropriating funds for new windows, balances and security screens in all school buildings	05-24-1995
94-131	Bond appropriating funds for the reconstruction, remodeling, alteration or major repair of P.S. No. 11, Martin Luther King, Jr. School	05-24-1995

TABLE 1. BOND ORDINANCES

Ord. No.	Subject Matter	Date of Adoption
94-132	Bond appropriating funds for the installation of public address systems in school buildings	05-24-1995
94-133	Bond appropriating funds for the cost of identifying and acquiring property for a suitable site for the location and construction of a new elementary school to replace P.S. No. 3	05-24-1995
94-134	Bond appropriating funds for the cost of the upgrade of fire alarm systems and replacement of outdated pneumatic fire alarm systems in school buildings	05-24-1995
94-135	Bond appropriating funds for the cost of the acquisition and construction of five portable classroom units for pre-kindergarten classes	05-24-1995
95-051	Bond appropriating funds for the payment of tax refunds due and owing from the city on or before June 30,1995	06-14-1995
96-015	Bond ordinance authorizing the acquisition of additional and replacement equipment and new automotive vehicles	03-13-1996
96-016	Bond ordinance authorizing the making of various public improvements and the acquisition of additional equipment and machinery for the water distribution, supply and transmission system of the city	03-13-1996
96-018	Bond ordinance to pay for the reconstruction, remodeling, alteration and major repair of Public School No. 32	03-13-1996
96-053	Bond ordinance to amend purposes (K) and (L) of Section 3 of Ord. No. 94-123, without changing the appropriations, down payments or the amounts of obligations authorized by said Ord. No. 94-123	05-22-1996
96-068	Refunding bond ordinance for the payment of tax refunds due and owing from the city	06-26-1996
96-098	Bond ordinance authorizing the acquisition of real property, the making of various public improvements and the acquisition of additional and replacement equipment and new automotive vehicles	10-09-1996
96-111	Bond ordinance authorizing the acquisition and renovation of real property	11-13-1996
97-004	Bond ordinance	02-11-1998
97-005	Bond ordinance	04-22-1998
97-006	Bond appropriating funds for the acquisition and improvement of Caven Point Recreation Facility, a new elementary school and new middle school in the P.S. 3 area and a new middle school in the Heights Area	06-11-1997
97-028	Bond appropriating funds for the acquisition and improvement of 89-101 Cambridge Avenue for lease to the Jersey City Parking Authority	04-09-1997
97-039	Bond appropriating unused proceeds of serial bonds to make additional appropriations to provide for improvements to public parks, acquisition of new automotive vehicles and equipment and acquisition and installation of additional and replacement management information equipment	06-11-1997
97-040	Refunding bond appropriating funds for the payment of real property tax refunds due and owing from the city on or before June 30,1997, and providing for the issuance of refunding bonds	06-11-1997
97-043	Canceling unused and unfunded bonds and amending Ord. Nos. S-160, S-276, S-313, S-587, MC-81, MC-244, MC-384, MC-392, MC-659, MC-815, McC-866, McC-967, C-211, C-420, C-518, C-522, C-733, C-791, C-917, McC-96, McC-129, McC-242, 92-112, 313, 93-053, 94-018, 94-123 and McC-89	06-25-1997
97-094	Bond authorizing the acquisition of real property, the making of various public improvements and the acquisition of additional equipment and machinery for the water supply, treatment, transmission and distribution system	02-11-1998
98-003	Bond authorizing the acquisition of real property, the making of various public improvements and the acquisition of additional and replacement equipment and new automotive vehicles	02-11-1998

TABLE 1. BOND ORDINANCES		
Ord. No.	Subject Matter	Date of Adoption
98-006	Bond authorizing the acquisition of real property, the making of various public improvements and the acquisition of additional and replacement equipment	03-11-1998
98-031	Special emergency appropriation for new comprehensive Master Plan	04-08-1998
98-047	Bond authorizing assistance for the Jersey City Housing Authority	05-13-1998
98-049	Refunding bond ordinance to authorize appropriations by the city for the payment of real property tax appeal refunds due and owning from the city on or before June 30,1998	05-13-1998
98-065	Bond to abolish Jersey City Hydroelectric Utility Fund; cancels City Ordinance No. MC-82	05-27-1998
98-066	Bond to cancel unused and unfunded authorizations to issue water bonds, and appropriating unused and unexpected proceeds of water bonds to water capital surplus	05-27-1998
98-157	Bond ordinance to authorize the acquisition of real property, the making of various public improvements and the acquisition of additional and replacement equipment and new automotive vehicles in and for the city	12-09-1998
98-158	Bond ordinance to authorize the acquisition of real property, the making of various public improvements and the acquisition of additional equipment and machinery for the water supply system	12-09-1998
99-066	Refunding bond ordinance to authorize appropriations by the city for the payment of real property tax appeal refunds due and owing from the city on or before June 30,1999	05-12-1999
99-097	Bond ordinance to authorize the acquisition of real property, the making of various public improvements and the acquisition of additional equipment and machinery for the water supply, treatment, transmission and distribution system of the city	08-18-1999
99-171	Bond ordinance appropriating funds to the Jersey City Redevelopment Agency to implement the state Unsafe Building Demolition Program at the Flintkote Property in the Liberty Harbor North Redevelopment Project Area	12-15-1999
00-027	Appropriate unused and unexpended proceeds of bonds to another capital purpose for the construction of Woodward Street from Grand to Johnson	04-12-2000
00-040	Bond appropriating funds for acquisition of sites for preschool classes and programs and reconstruction of buildings for preschool classes and programs	05-10-2000
00-041	Cancel unused and unfunded authorizations; appropriate and reappropriate unused and unexpended proceeds; appropriation to capital improvement fund; cancel certain grant appropriations	05-10-2000
00-050	Refunding bond ordinance for payment of real property tax appeal refunds	05-10-2000
00-088	Appropriation of unused and unexpended proceeds of bonds to another capital purpose for construction of and installation of original equipment in the new City Municipal Justice Complex	07-19-2000
00-092	Bond ordinance to authorize the making of various public improvements to the water supply, transmission and distribution system	09-27-2000
00-139	Bond ordinance to authorize the acquisition of real property, the making of various public improvements and the acquisition of additional and replacement equipment and automotive vehicles	10-11-2000
01-055	Authorization of bond refund for authorization of appropriation of funds by the city for the payment of real estate property tax appeal refunds	05-16-2001
01-057	Authorizes bond for the making of various public improvements to Greene Street as a local improvement in and for the city	06-13-2001
02-074	Refund bond providing payment of amounts owing to others for taxes levied in and by the city, appropriating two million dollars ($2,000,000.00) and issuing a bond for said amount	06-12-2002

TABLE 1. BOND ORDINANCES		
Ord. No.	Subject Matter	Date of Adoption
02-089	Bond appropriating funds for general improvements	See Ord. 02-104
02-090	Bond appropriating funds for general improvements	11-13-2002
02-091	Refunding of all or a portion of the city's fiscal year adjustment bonds	11-13-2002
02-104	Bond appropriating funds for general improvements	11-13-2002
02-112	Bond appropriating funds to the Parking Authority	Defeated 11-13-2002
02-113	Appropriating funds for improvement bonds	08-13-2003
02-132	Refunding unfunded pension liabilities	11-26-2002
03-014	Refunding unfunded pension liabilities	11-26-2002
03-123	Refunding bonds for general obligations	Defeated 12-03-2003
03-124	Refunding bonds for general obligations	Never acted upon
03-129	Bond appropriating funds to the Parking Authority	Withdrawn 09-10-2003
03-130	Bond appropriating funds for the acquisition of equipment for the Jersey City Incinerator Authority	09-24-2003
04-021	Re-appropriating funds for the rehabilitation of Apple Tree House	03-10-2004
04-041	Refunding bond for general obligations	Defeated 03-24-2004
04-091	Refunding of all or a portion of the city's fiscal year adjustment bonds	09-08-2004
04-092	Refunding of all or a portion of the Series 1993 Water Bonds, Series 1997 Water Bonds and Series 2003B Water Bonds	09-08-2004
04-093	Refunding of all or a portion of the Series 1996A Refunding Bonds, Series 1997 Bonds, Series 1999A Bonds, Series 1999B Bonds, Series 2001 Bonds, Series 2002A Refunding Bonds, Series 2003 Bonds and Series 2003B Bonds	09-08-2004
05-025	Reappropriating $1,841,154.96 proceeds of obligations not needed for their original purposes	03-23-2005
05-038	Providing for various capital improvement and appropriating $26,135,000, therefor, and providing for the issuance of $24,875,000 in general improvement bonds or notes of the City of Jersey City to finance the same	04-13-2005
05-039	Providing for various public improvements to the water supply, transmission and distribution system in and for the City of Jersey City and appropriating $5,000,000, therefor, and providing for the issuance of $5,000,000 in general improvement bonds or notes of the City of Jersey City to finance the same	04-13-2005
05-040	Refunding bond ordinance providing for the refunding of all or a portion of various series of city bonds, appropriating an amount not exceeding $37,500,000 therefor and authorizing the issuance of not to exceed $37,500,00 school refunding bonds of the city of Jersey City for financing the cost thereof	04-13-2005
05-068	Refunding bond ordinance providing for payment of amounts owing to others for taxes levied in and by the city, appropriating $7,000,000 therefor, and authorizing the issuance of $7,000,000 bonds or notes of the city for financing the cost thereof	04-13-2005
06-007	Refunding bonds for general obligations	02-22-2006
06-057	Providing for payment of amounts owing to others for taxes levied in and by the City of Jersey City, in the County of Hudson, New Jersey, appropriating $4,000,000 therefore and authorizing the issuance of $4,000,000 Bonds or Notes of the City of Jersey City for financing the cost thereof	05-10-2006

TABLE 1. BOND ORDINANCES		
Ord. No.	Subject Matter	Date of Adoption
06-106	Providing for various capital improvements for the City of Jersey City and appropriating $33,780,000 therefor, and providing for the issuance of $32,163,000 in general improvement bonds or notes of the City of Jersey City to finance the same	09-13-2006
06-107	Providing for various public improvements to the water supply, transmission and distribution system in and for the City of Jersey City and appropriating $5,000,000 therefor, and providing for the issuance of $5,000,000 in general improvement bonds or notes of the City of Jersey City to finance the same	09-13-2006
06-167	Authorizing the guaranty of not exceeding $19,000,000 aggregate principal amount of bonds of the Parking Authority of the City of Jersey City	Withdrawn 12-13-2006
07-043	Providing for the refunding of all or a portion of various series of city bonds appropriating an amount not exceeding $17,500,000 therefor and authorizing the issuance of not to exceed $17,500,000 water refunding bonds of the City of Jersey City for financing the cost thereof	03-14-2007
07-044	Providing for the refunding of all or a portion of various series of city bonds appropriating an amount not exceeding $52,500,000 therefor and authorizing the issuance of not to exceed $52,500,000 general improvement refunding bonds of the City of Jersey City for financing the cost thereof	03-14-2007
07-045	Providing for the refunding of all or a portion of various series of city bonds appropriating an amount not exceeding $14,000,000 therefor and authorizing the issuance of not to exceed $14,000,000 school refunding bonds of the City of Jersey City for financing the cost thereof	03-14-2007
07-088	Providing for payment of amounts owing to others for taxes levied in and by the City of Jersey City, in the County of Hudson, New Jersey, appropriating $3,500,000 therefor and authorizing the issuance of $3,500,000 bonds or notes of the City of Jersey City for financing the cost thereof	05-09-2007
07-162	Providing for various capital improvements for the City of Jersey City and appropriating $27,555,000, therefore and providing for the bonds or notes of the City of Jersey City to finance the same	09-22-2007
08-050	Refunding bond ordinance providing for payment of amounts owing to others for taxes levied in and by the city, appropriating $2,200,000 therefor, and authorizing the issuance of $2,200,000 bonds or notes of the city for financing the cost thereof	05-14-2008
08-148	Providing for various capital improvements for the City of Jersey City and appropriating $41,925,000, therefor, and providing for the issuance of $39,928,555 in general improvement bonds or notes of the City of Jersey City to finance the same	11-12-2008
09-028	Refunding bond ordinance providing for payment of amounts owing to others for taxes levied in and by the City of Jersey City, in the County of Hudson, New Jersey, appropriating $11,471,819 therefor and authorizing the issuance of $11,471,819 bonds or notes of the City of Jersey City for financing the cost there	03-25-2009
09-068	Bond ordinance providing for the acquisition of property located at 15 Linden Avenue East in and by the City of Jersey City, in the County of Hudson, New Jersey, appropriating $24,000,000.00 therefor and authorizing the issuance of $24,000,000.00 bonds or notes of the City to finance part of the cost thereof	06-17-2009
09-109	Ordinance providing for the financing of the acquisition by the Parking Authority of the City of Jersey City of real property in the City and appropriating $4,600,000, therefor, and providing for the issuance of $4,380,950 in general improvement bonds or notes of the City of Jersey City to finance the same	11-24-2009
09-127	Ordinance provided for the financing of a portion of the Newark Avenue Roadway Improvements Project by file City of Jersey City and appropriating $2,600,000 therefor, and providing for the issuance of $2,476,000 in general improvement bonds or notes of the City of Jersey City to finance the same	12-16-2009

TABLE 1. BOND ORDINANCES		
Ord. No.	Subject Matter	Date of Adoption
10-031	Bond ordinance providing for funding of temporary emergency appropriations in connection with the payment of amounts owing to other for taxes levied in and by the City	03-10-2010
10-081	Providing for construction of new facility for use by Department of Public Works and Jersey City Incinerator Authority	06-23-2010
10-085	Providing for acquisition of real property	07-14-2010
10-141	Providing for a special emergency appropriation of $9,300,000 for payment of contractually required severance liabilities resulting from the layoff or retirement of city employees	11-23-2010
11-043	Providing for a special emergency appropriation of $3,150,000 for the preparation and execution of a complete program of revaluation of real property for the use of the local assessor of the city	04-13-2011
11-116	Refunding bond ordinance providing for payment of amounts owing to others for taxes levied in and by the City, appropriating $7,000,000 therefor and authorizing the issuance of $7,000,000 bonds or notes of the city for financing the cost thereof	09-27-2011
11-124	Providing for a special emergency appropriation of $9,500,000 for the payment of contractually required severance liabilities resulting from the layoff or retirement of city employees	10-26-2011
11-126	Refunding bond ordinance providing for the refunding of all or a portion of various series of city bonds, appropriating an amount not exceeding $13,750,000 therefor and authorizing the issuance of not to exceed $13,750,000 general improvement refunding bonds of the city for financing the cost thereof	11-09-2011
12-024	Refunding bond ordinance, providing for the refunding of all or a portion of various series of city bonds, appropriating an amount not exceeding $28,000,000 therefor and authorizing the issuance of not to exceed $28,000,000 general obligation refunding bonds of the city for financing the cost thereof	03-14-2012
12-042	Providing for various capital improvements for the city and appropriating $28,157,850, therefor, and providing for the issuance of $26,816,950 in general improvement bonds or notes of the city to finance the same	04-11-2012
12-123	Refunding bond ordinance, providing for the refunding of all or a portion of various series of city bonds, appropriating an amount not exceeding $40,000,000 therefor and authorizing the issuance of not to exceed $40,000,000 general obligation refunding bonds of the city for financing the cost thereof	10-10-2012
13-031	Providing for various capital improvements for the city and appropriating $10,400,000, therefor, and providing for the issuance of $10,400,000 in general improvement bonds or notes of the city to finance the same	04-10-2013
13-069	Refunding bond ordinance, providing for the refunding of all or a portion of various series of City bonds, appropriating an amount not exceeding $53,500,000 therefor and authorizing the issuance of not to exceed $53,500,000 general improvement refunding bonds for financing the cost thereof	06-19-2013
13-070	Refunding bond ordinance, providing for the refunding of all or a portion of various series of City bonds, appropriating an amount not exceeding $25,800,000 therefor and authorizing the issuance of not to exceed $25,800,000 school refunding bonds of the City for financing the cost thereof	06-19-2013
13-071	Refunding bond ordinance, providing for the refunding of all or a portion of various series of City bonds, appropriating an amount not exceeding $10,700,000 therefor and authorizing the issuance of not to exceed $10,700,000 water refunding bonds of the City for financing the cost thereof	06-19-2013
13-091	Reappropriating $1,009,628.89 proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	09-11-2013

TABLE 1. BOND ORDINANCES		
Ord. No.	Subject Matter	Date of Adoption
13-100	Reappropriating $784,600 proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	10-09-2013
13-118	Providing for a special emergency appropriation of $9,500,000 for the payment of contractually required severance liabilities resulting from the retirement of city employees	11-13-2013
13-122	Approving the execution of a financial agreement with Journal Square I Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	11-13-2013
13-123	Approving the execution of a financial agreement with Journal Square II Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	11-13-2013
13-124	Approving the execution of a financial agreement with Journal Square III Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	11-13-2013
14-022	Cancelling certain funded appropriation balances heretofore provided for capital projects and re-appropriating such funded appropriation balances for other capital projects	03-17-2014
14-030	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	04-17-2014
14-131	Bond ordinance providing for various 2014 capital improvements by and in the City and appropriating $36,450,000 therefor and authorizing the issuance of $34,714,280 in bonds or notes of the City to finance part of the cost thereof	11-12-2014
14-132	Providing for a special emergency appropriation of $7,500,000 for the payment of contractually required severance liabilities resulting from the retirement of City employees	10-22-2014
14-166	Reappropriating $214,285 proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	01-14-2015
15-007	Refunding bond ordinance providing for (i) the refunding of certain outstanding qualified school bonds, Series 2007 A of the City dated February 23, 2007 to provide debt service savings, and (ii) authorizing the issuance of not to exceed $11,300,000 aggregate principal amount of school refunding bonds of the City to effect such refunding and appropriating the proceeds therefor	03-11-2015
15-008	Refunding bond ordinance providing for (i) the refunding of certain outstanding qualified general improvement bonds, Series 2007 of the City dated December 7, 2007 to provide debt service savings, and (ii) authorizing the issuance of not to exceed $14,800,000 aggregate principal amount of general improvement refunding bonds of the City to effect such refunding and appropriating the proceeds therefor	03-11-2015
15-107	Approving the execution of a financial agreement with GS FC Jersey City PEP I Urban Renewal LLC and other applicable documents related to the authorization and issuance by the City Redevelopment Agency of not to exceed $10,000,000.00 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	08-19-2015

TABLE 1. BOND ORDINANCES		
Ord. No.	**Subject Matter**	**Date of Adoption**
15-108	Approving the execution of a financial agreement with GS FC Jersey City Pep 2 Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000.00 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	08-19-2015
15-125	Amending Ordinance No. 10-085 of the City finally adopted July 14, 2010, providing for the acquisition by the City of real property in the City and the construction of various improvements thereto and appropriating $7,700,000 therefor, and providing for the issuance of $7,333,300 in general improvement bonds or notes of the City of Jersey City to finance the same	10-14-2015
15-149	Providing for a special emergency appropriation of $8,000,000 for the payment of contractually required severance liabilities resulting from the retirement of City employees	11-10-2015
16-018	Refunding bond ordinance of the City of Jersey City, in the County of Hudson, State of New Jersey (the "City") providing for (i) the refunding of certain outstanding qualified general improvement bonds, Series 2009 and qualified general improvement bonds (parking authority project), Series 2009A of the City dated February 10, 2009 and December 30, 2009, respectively, to provide debt service savings, and (ii) authorizing the issuance of not to exceed $32,000,000 aggregate principal amount of general improvement refunding bonds of the City to effect such refunding and appropriating the proceeds therefor	02-10-2016
16-025	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	02-24-2016
16-066	Reappropriating $2,054,353.47 of proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City of Jersey City, in the County of Hudson, New Jersey	04-27-2016
16-083	Providing for various capital improvements for the City of Jersey City and appropriating $29,858,755, therefor, and providing for the issuance of $28,436,905 in general improvement bonds or notes of the City of Jersey City to finance the same	05-25-2016
16-129	Refunding bond ordinance of the City, providing for the refunding of all or a portion of the City's qualified water refunding bonds, Series 2007B, appropriating an amount not exceeding $4,500,000 therefor and authorizing the issuance of not to exceed $4,500,000 water refunding bonds of the City for financing the cost thereof	09-14-2016
16-130	Providing for a special emergency appropriation of $5,000,000 for the preparation and execution of a complete program of revaluation of real property for the use of the local assessor of the City	09-14-2016
16-131	Refunding bond ordinance of the City, providing for the refunding (on a crossover basis) of all or a portion of the City's general improvement bonds (Recovery Zone Economic Development Bonds-Direct Payment), Taxable Series 2010C appropriating an amount not exceeding $8,000,000 therefor and authorizing the issuance of not to exceed $8,000,000 general improvement refunding bonds of the City for financing the cost thereof	09-14-2016
16-132	Refunding bond ordinance of the City, providing for the refunding of all or a portion of the City's qualified general improvement refunding bonds, Series 2007A, appropriating an amount not exceeding $19,500,000 therefor and authorizing the issuance of not to exceed $19,500,000 general improvement refunding bonds of the City for financing the cost thereof	09-14-2016
16-133	Refunding bond ordinance of the City, providing for the refunding (on a crossover basis) of all or a portion of the City's general improvement bonds (Build America Bonds-Direct Payment), Taxable Series 2010B appropriating an amount not exceeding $82,000,000 therefor and authorizing the issuance of not to exceed $82,000,000 general improvement refunding bonds of the City for financing the cost thereof	09-14-2016

TABLE 1. BOND ORDINANCES		
Ord. No.	**Subject Matter**	**Date of Adoption**
17-025	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	03-27-2017
17-098	Reappropriating $4,000,000 of proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	08-16-2017
17-108	Reappropriating $1,951,796.81 of proceeds of obligations not needed for their original purposes in order to provide for a capital improvement in and by the City	09-13-2017
17-146	Providing for the acquisition of street sweepers and related expenses for the City and appropriating $2,600,000 therefor and providing for the issuance of $2,600,000 in bonds or notes of the City to finance the same	10-25-2017
18-008	Appropriating $514,286.88 of proceeds of obligations not needed for their original purposes in order to provide funding for the renovation of a fire house in and by the City	02-28-2018
18-013	Reappropriating $1,800,000 of proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	02-28-2018
18-018	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	03-28-2018
18-028	Providing for a special emergency appropriation of $940,500 providing for the preparation of a master plan	04-25-2018
18-038	Providing for various capital improvements for the City and appropriating $47,282,671, therefor, and providing for the issuance of $45,031,115 in general improvement bonds or notes of the City to finance the same	05-09-2018
18-113	(1) Authorizing the City to enter into a real estate purchase agreement, environmental agreement, and all other documents necessary for and related to the purchase of certain real property, the demolition of certain structures, and the construction of certain infrastructure improvements within the Bayfront I Redevelopment Area (2) appropriating $170,000,000 therefor and authorizing the issuance of $170,000,000 bonds or notes of the City to finance the cost thereof and (3) authorizing the City to enter into a cooperation agreement with the Jersey City Redevelopment Agency to represent the City in the redevelopment of the Bayfront I Redevelopment Area	10-10-2018
18-114	Providing for a special emergency appropriation of $14,500,000.00 for the payment of contractually required severance liabilities resulting from the retirement of city employees	10-10-2018
19-063	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	06-26-2019
20-030	Amending certain provisions of City Ordinance No. 16-131 providing for the refunding of all or a portion of the City's General Improvement Bonds (Recovery Zone Economic Development Bonds - Direct Payment), Taxable Series 2010C appropriating an amount not exceeding $8,000,000 therefor and authorizing the issuance of not to exceed $8,000,000 general improvement refunding bonds of the City for financing the cost thereof	04-15-2020
20-081	Amending certain provisions of Bond Ordinance No. 18-038 finally adopted by the City of Jersey City on May 9, 2018, providing for various capital improvements for the City and appropriating $47,282,671 therefor, and providing for the issuance of $45,031,115 in general improvement bonds or notes of the City to finance the same	10-07-2020
20-082	Providing for various capital improvements for the City and appropriating $31,500,000 therefor, and providing for the issuance of $30,000,000 in general improvement bonds or notes of the City to finance the same	10-07-2020

TABLE 1. BOND ORDINANCES		
Ord. No.	**Subject Matter**	**Date of Adoption**
20-094	Refunding bond ordinance of the City, providing for the refunding of all or a portion of certain outstanding bond issues of the City, appropriating an amount not exceeding $21,300,000 therefor and authorizing the issuance of not to exceed $21,300,000 general obligation refunding bonds of the City for financing the cost thereof	11-12-2020
20-101	Providing for a special emergency appropriation of $13,000,000 providing for the payment of contractually required severance liabilities resulting from the layoff or retirement of employees	12-16-2020
21-012	Appropriating and reappropriating a total of $5,000,000 from various sources in order to provide funds to the Jersey City Free Public Library for the renovation and furnishing of the main library building	02-24-2021
21-015	An ordinance to exceed the municipal budget appropriations limits and to establish a cap bank for calendar year 2021 (N.J.S.A. 40A:4-45.14)	03-10-2021
21-040	Bond ordinance of the City, providing for various capital improvements for the City and appropriating $86,787,986 therefor, and providing for the issuance of $82,448,586 in general improvement bonds or notes of the City to finance the same	06-16-2021
21-050	Bond ordinance of the City, providing for the acquisition, installation and construction of various items of energy conservation equipment and improvements, appropriating an amount not exceeding $9,000,000 therefor and authorizing the issuance of not to exceed $8,550,000 general obligation bonds or notes of the City for financing a portion of the cost thereof	08-18-2021
21-051	Refunding bond ordinance of the City, providing for the acquisition, installation and construction of various items of energy conservation equipment and improvements in connection with an energy savings improvement program of the City, appropriating an amount not exceeding $7,700,000 therefor and authorizing the issuance of not to exceed $7,700,000 general obligation refunding bonds or notes of the City for financing all or a portion of the cost thereof	08-18-2021
21-073	Providing for a special emergency appropriation of $10,000,000 providing for the payment of contractually required severance liabilities resulting from the layoff or retirement of employees	11-29-2021
21-074	Authorizing the execution and delivery of a subsidy agreement with the Jersey City Redevelopment Agency to secure the payment of the principle of and interest on up to $169,810,000 bonds and/or project notes to be issued by said agency in connection with the implementation of the Bayfront Redevelopment Project	12-15-2021
21-076	Authorizing the execution and delivery of a subsidy agreement with the Jersey City Redevelopment Agency to secure the payment of the principal of and interest on up to $18,000,000 bonds and/or project notes to be issued by said agency in connection with the implementation of a redevelopment project on certain real property located at 68-74 Sip Avenue and 164-168 Sip Avenue	12-15-2021
22-025	Exceeding the municipal budget appropriations limits and establishing a cap bank Calendar Year 2022 (N.J.S.A. 40a: 4-45.14)	03-23-2022
22-030	Re-appropriating $11,290,625.16 of proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	03-23-2022
22-034	Providing for various capital improvements for the City and appropriating $131,000,000 therefor, and providing for the issuance of $124,450,000 in general improvement bonds or notes of the City to finance the same	04-13-2022
22-095	Providing for a special emergency appropriation of $10,000,000 providing for the payment of contractually required severance liabilities resulting from the layoff or retirement of employees	11-28-2022
22-099	Providing for the construction, reconstruction, rehabilitation, improvement and repair of various public buildings in the City; appropriating $12,000,000 therefor and authorizing the issuance of $11,428,000 bonds or notes of the City to finance part of the cost thereof	12-14-2022

TABLE 1. BOND ORDINANCES		
Ord. No.	**Subject Matter**	**Date of Adoption**
23-001	An ordinance to exceed the Calendar Year 2023 municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	01-25-2023
23-040	An ordinance authorizing an emergency appropriation N.J.S.A. 40A:4-53	05-24-2023
23-086	Providing for various 2023 capital improvements by and in the City; reappropriating $11,730,000.00 in excess bond proceeds from various bond ordinances, not needed for their original purpose, to finance the costs thereof	09-20-2023
23-116	Providing for a special emergency appropriation in the amount of $10,000,000.00 to fund contractually required severance liabilities resulting from the retirement of employees of the City	11-29-2023
24-033	An ordinance to exceed the Calendar Year 2024 municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40a:4-45.14)	05-22-2024
24-034	A refunding bond ordinance authorizing the issuance of not to exceed $18,720,000.00 aggregate principal amount of refunding bonds and/or refunding notes by the City for the purpose of funding (i) an emergency appropriation to pay tax appeal liabilities pursuant to N.J.S.A. 40A:4-46 and (ii) an emergency temporary appropriation to pay tax appeal liabilities pursuant to N.J.S.A. 40A:4-20	06-12-2024
24-047	A bond ordinance providing for various 2024 capital acquisitions and improvements, by and in the City; appropriating $60,000,000.00 therefor and authorizing the issuance of $57,000,000.00 bonds or notes of the City to finance part of the costs thereof	06-26-2024
24-100	Providing for a special emergency appropriation in the amount of $9,000,000 to fund contractually required severance liabilities resulting from the retirement of employees of the City	11-26-2024
25-050	An ordinance to exceed the Calendar Year 2025 municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40a: 4-45.15a)	05-07-2025
25-111	Providing for a special emergency appropriation in the amount of $14,000,000 to fund contractually required severance liabilities resulting from the retirement of employees of the City	11-12-2025

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
C-976	Franchise license granted to Teleport Communications	05-25-1989
92-030	Vacation of portions of Montague Place, Ogden Avenue and Prospect Avenue	04-15-1992
92-061	Franchise granted to J.P. Affordable Housing Holding, Co., Inc.	06-10-1992
92-062	Franchise granted to J.P. Affordable Housing Holding, Co., Inc.	06-10-1992
92-099	Franchise granted to 101 Hudson Urban Renewal Associates	09-16-1992
92-108	Franchise granted to Academy Associates, L.P.	08-19-1992
92-181	Vacation of Heckman Drive	12-09-1992
92-200	Vacation of Hope Street and King Street	01-13-1993
93-004	Franchise granted to J.P. Affordable Housing Co., Inc.	02-03-1993
93-005	Franchise granted to J.P. Affordable Housing Co., Inc.	02-03-1993
93-021	Vacation of Provost Street, Newport Redevelopment Area	03-10-1993
93-068	Franchise granted to J.P. Affordable Housing Co., Inc.	06-23-1993
93-069	Franchise granted to J.P. Affordable Housing Co., Inc.	06-23-1993
94-024	Journal Square Special Improvement District	04-13-1994
94-049	Franchise granted to J.P. Affordable Housing Co., Inc.	06-22-1994
94-050	Franchise granted to J.P. Affordable Housing Co., Inc.	06-22-1994
94-051	Franchise granted to J.P. Affordable Housing Co., Inc.	06-22-1994
94-063	Vacation of portions of Barrow Street and Canal Street	07-20-1994
94-070	Franchise granted to United States Postal Service	08-17-1994
94-108	Vacation of a portion of Van Winkle Avenue	11-22-1994
95-008	Vacation of a portion of Mercer Street	02-22-1995
95-017	Franchise granted to FHC/LHC Housing Development Corp. (Victoria Gardens L.P.)	03-08-1995
95-063	Vacation of portions of Pacific Avenue, Ash Street and Carbon Street	07-19-1995
95-094	Vacating a portion of Communipaw Avenue	10-11-1995
95-095	Vacating a portion of the sidewalk area adjoining Lots 70 through 87 in Block 359 for construction of a stone wall along the south side of tenth Street and the east side of Monmouth Street	10-11-1995
96-092	Franchise granted to Penwal Affordable Housing Corporation	09-25-1996
97-051	Franchise granted to Port Imperial Ferry Corp., dba NY Waterway to use and maintain certain areas or portions of Grand Street, Center Street, Monmouth Street, Montgomery Street and York Street for purposes of installing and maintaining 9 directional signs to its ferry terminal at the foot of Sussex Street on the Hudson River	08-13-1997
97-067	Vacating the portion of Ege Avenue bounded by Martin Luther King Drive and Ocean Avenue and the portion of Hart Street bounded by Ege Avenue to the north and Kearney Avenue to the south	09-24-1997
98-012	Franchise renewal granted to Comcast Cablevision of Jersey City, Inc.	02-25-1998
98-156	Vacating portions of Canal Street, Gilchrist Street and Varick Street for construction of a new facility for the Jersey City Medical Center	11-24-1998
99-002	Franchise portion of Ninth Street between Luis Munoz Marin Boulevard and Manila Avenue adjoining tax Block 217	01-27-1999
99-046	Vacating portion of Greene Street north of Christopher Columbus Drive and conveying such vacated portion to Cali Harborside (Fee) Associates, L.P.	04-14-1999

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
99-057	Franchise granted to Public School No. 2 Urban Renewal Company, L.L.C, to improve and use a portion of sidewalk area adjoining Block 245, Lots 7, 8 and 9 by installation and maintenance of a fence	04-28-1999
99-107	Vacating portion of the public right-of-way in the lands in and under York, Street, Grand Street and Greene Street	08-18-1999
00-001	Franchise granted to RCN Telecom Services of New Jersey, Inc., Open Video Systems Service Ordinance	01-26-2000
00-002	Franchise granted to Metricom, Inc., to install radios and associated equipment on certain facilities located within public rights-of-way	01-26-2000
00-026	Vacating portions of Manning Avenue, Woodward Street and Johnston Avenue and authorizing conveyance thereof to Jersey City Housing Authority	04-12-2000
00-044	Vacating portions of public right-of-way in and under Sussex Street and Hudson Street	04-26-2000
00-045	Permission granted to GSJC Land LLC to set aside and reserve a portion of lands in and under the rights-of-way of Essex Street, Hudson Street and Sussex Street	04-26-2000
00-064	Permission granted to St. Peter's Preparatory School to make capital improvements to lands located within the Warren Street public right-of-way for the purpose of developing improvements to benefit the school and surrounding areas	06-14-2000
00-066	Permission granted to Hudson Farmers Market to use the sidewalk area adjoining Lots 6A, 7A, 8 to 12, Tax Block 924, by maintaining a buffer strip with four feet from the iron fence for the purpose of seasonal display of retail items	06-14-2000
00-114	Permission granted to GSJC Land LLC to set aside and reserve Essex Street, east of Hudson Street, to maintain a staging area for construction located on Block 3, Lot 28, and Block 4, Lot 28, on Hudson Street between Essex Street and Sussex Street	09-13-2000
01-002	Vacating a portion of prior street consisting of 1,489 sq. ft. and dedicating portion of Lot 23, Block 2115	01-24-2001
01-003	Vacation of Colden Street and Varick Street	01-24-2001
01-004	Grants permission to Sienna Urban Renewal Associates to make improvements to a portion of lands located at 107-129 Montgomery Street within the sidewalk area of the Warren Street public right-of-way for the purpose of installing a canvas canopy	01-24-2001
01-035	Grants permission to Louis Delfomo and Ella Delfomo to improve and use approximately two hundred square feet of sidewalk	03-28-2001
01-041	Grants permission to 225 Newark Avenue for the installation and maintenance of entrance guardrails which encroach to the public right-of-way of First and Coles Streets and Newark Avenue	03-28-2001
01-050	Permission granted to St. Joseph's Home for the Blind, Sisters of St. Joseph of Peace, its successors and assigns to improve use of sidewalk adjoining Lots 20, 21, 22,23,24 and S, Block 522 on the official tax assessment map	04-25-2001
01-051	Grants permission to Kay 321 Washington Properties to make private improvements to a portion of lands located at 321-333 Washington Street, within the sidewalk area of the Morgan Street public right-of-way	04-25-2001
01-060	Vacation of an area of 19th Street	05-16-2001
01-073	Permission granted to GSJC and LLC, its successors and assigned to set aside and reserve in Essex Street, East of Hudson Street and area of approximately thirty feet by one hundred five feet, immediately adjacent to the building to be constructed on Block 3m Lot 28 for the purpose of providing and awning	06-13-2001
01-077	Grants permission for 225 Newark Ave. to use 7.7 feet on First Street. 5.3 feet on Coles Street and 1.3 feet on Newark Ave	06-27-2001

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
01-078	Execution of agreement with the Jersey City Medical Center to extend construction performance plans for the hospital	06-27-2001
01-084	Grants permission to Raine Court Urban Renewal to improve and use sidewalk area adjoining Lot F, Block 68 on the official tax assessment map	06-27-2001
01-086	Vacation of a portion of Canal Street consisting of approximately 8,758 square feet being located within the Liberty Harbor North Redevelopment Area	06-27-2001
01-104	Grants permission to MSDW/GNOME, New Jersey Holdings, LP to make private improvements to a portion of lands located within the Dey Street and St. Paul's Avenue public right-of-way	09-26-2001
01-117	Grants permission to Nam Hoon Chung and Yong Ja Chung to use land for the allowance of the encroachment of the building and cellar entrance onto the public right-of-way in the West Side Avenue	10-24-2001
01-130	Vacation of Custer Avenue consisting of approximately 1,558 square feet	11-28-2001
01-135	Grants partial vacation of Merritt Street along Lot 1, block 1380	01-09-2002
02-006	Vacation of a portion of Caven Point Road	02-13-2002
02-009	Grants permission to MSDW/GNOME, New Jersey Holdings, LP to make private improvements to a portion of lands located within the Dey Street and St. Paul's Avenue public right-of-way	02-27-2002
02-050	Grants permission to Journal Square Realty Corp, to use approximately 20 feet by 5 feet of public walkway	04-24-2002
02-092	Grants permission to Nick Van Ee to use portions of the sidewalk	09-12-2002
02-093	Grants permission to Kitchen Cafe LLC to place flower/plant boxes on the sidewalk	09-12-2002
02-103	Rescinds vacation Ord. No. 104 and 136, and accepts a dedication of streets, sidewalks and utilities from Colgate-Palmolive Company	09-25-2002
02-137	Grants permission to A.T. Holdings, Inc., to make private improvements	12-11-2002
03-031	Grants permission to GSJC Land LLC to install and maintain a series of bollards and security planters	03-26-2003
03-032	Grants permission to GSJC Land LLC to install and maintain a series of bollards and security planters	03-26-2003
03-033	Grants franchise to GSJC Land LLC for the installation, use and maintenance of a telecommunications conduit and a series of access manholes	03-26-2003
03-034	Grants franchise to GSJC Land LLC for the installation, use and maintenance of a telecommunications conduit and a series of access manholes	03-26-2003
03-035	Grants franchise to GSJC Land LLC for the installation, use and maintenance of a telecommunications conduit and a series of access manholes	03-26-2003
03-036	Grants franchise to GSJC Land LLC for the installation, use and maintenance of a building wind screen	03-26-2003
03-037	Grants permission to GSJC Land LLC to install, use and maintain a one hundred twenty-five foot (125') long, twenty-six foot (26') wide building canopy to be mounted thirty-five feet three inches (35'3") over the main entrance to its office structure	03-26-2003
03-053	Approving an amended and restated water services franchise and service agreement between the city and the Jersey City Municipal Utilities Authority	04-23-2003
03-062	Grants permission to Green Tree Construction, Inc., for the installation and maintenance of entrance steps	5-14-2003
03-065	Grants permission to Pesce Bros., LLC, to improve and use land area	Withdrawn 05-14-2003
03-074	Grants franchise ordinance to Champion Bagel Baking Corporation to permit outdoor eating in the city's sidewalk	05-28-2003

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
03-083	Grants permission to make private improvements to a portion of land located at 304-306-308-310 Grand Street and 57 Bright Street	06-11-2003
03-088	Vacation of a portion of Hudson Street right-of-way	06-25-2003
03-089	Grants permission to GSJC Land LLC, to install, erect and maintain a slurry foundation wall and temporary screening fence along the Sussex Street right-of-way	06-25-2003
03-095	Amends Schedule B to amended and restated Water Services Franchise and Service Agreement	07-16-2003
03-098	Vacation of a portion of West Street	Withdrawn 07-02-2003
03-122	Vacation of an area of Lewis Avenue	09-10-2003
03-144	Vacation of a portion of Hudson Street right-of-way	10-08-2003
03-148	Vacation of a portion of West Street	11-12-2003
04-002	Grants permission to Longstreet Associates, LLC to construct curbing and a planter bed along the public right-of-way of Maxwell Street	Withdrawn 01-14-2004
04-056	Grants permission to Greentree Construction, Inc to construct a curb for the public parking of vehicles on First Street	Withdrawn 05-12-04
04-068	Vacation of a portion of Sixth Street	07-14-2004
04-090	Grants permission to 10-16 Liberty, LLC to install and maintain steps with banisters and steps to the cellar and bilco door hatch	09-08-2004
04-104	Grants permission to Five Star Investment Group, LLC to improve and use approximately 155 square feet of sidewalk area adjoining the Lots 16 and 17, Block 206	09-22-2004
04-108	Rescinds vacation Ord. No. G-57, and accepts a dedication of Sussex Street between Hudson Street and Greene Street, and sidewalks and utilities from Colgate-Palmolive Company	09-22-2004
04-140	Vacating a portion of Van Winkle Avenue between Amelia Street and U.S. Route 1 & 9 Elevated Pulaski Skyway	11-23-2004
04-142	Grants permission to K. Hovnanian at Jersey City IV, LLC to make capital improvements within the Kellogg Street public right-of-way	11-23-2004
05-030	Granting permission to 95 Van Dam Corporation, its successors and assigns, to make private improvements to that portion of lands located at the comer of Communipaw Avenue and Monitor Street (300 Communipaw Avenue), within the sidewalk area of the Monitor Street public right-of-way	03-23-2005
05-031	Vacating a portion of Canal Street within the Liberty Harbor North Redevelopment Area	03-23-2005
05-032	Vacating a portion of Canal Street and Grove Street to be know as Grove Square	05-23-2005
05-059	Franchise and revocable license granted to Hudson County Community College to occupy an area with dimension of 46 feet by 4 feet along the public right-of-way of Van Reypen Street adjacent to Block 1871, Lot 14 for the purpose of allowing exterior doors and gates to swing out from a building and into the public right-of-way	06-08-2005
05-066	Granting permission to Farhad and Zohreh Behin to construct a stoop, stairs, a planer bed and four foot-high fence along the public right-of-way of Seventh Street adjacent to Block 319, Lot "U"	06-08-2005
05-076	Granting permission to Trio Development Company, General Partnership, and Ottimo Corporation to place planters and outdoor tables and seats on the sidewalks in front of 87-89 Sussex Street and 212 Washington Street	06-22-2005

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
05-077	Granting permission to Nicholas DeMarco, his successors and assigns, to make private improvements to a portion of land located at the comer of West Side Avenue and Union Street (511 West Side Avenue), within the sidewalk area of the Union Street public right-of-way	06-22-2005
05-106	Approving an amended and restated water services franchise and service agreement between the city and the Jersey City Municipal Utilities Authority	09-14-2005
05-163	Vacating a certain easement along Chapel Avenue	11-22-2005
05-174	Franchise granting permission to Culver Avenue Lofts to construct front landing, stairs, and new underground utility service	01-11-2006
06-005	Vacating portion of Pavonia Avenue	01-25-2006
06-011	Vacating balance of Sixth Street along New Jersey Turnpike Authority right-of-way and previously vacated portion of Sixth Street	02-08-2006
06-013	Franchise granting permission to Danitom Development, Inc., to make private improvements	02-22-2006
06-084	Vacating a portion of Washington Boulevard	07-19-2006
06-089	Vacating a portion of Custer Avenue and authorizing the recordation of Jersey City Street Ordinance #134, granting the vacation of Sand Street extending from Pamprapo Avenue to Custer Avenue	08-16-2006
06-105	Franchise granting permission to Bejoray, Inc., LLC, to construct fire exit	09-13-2006
06-164	Granting permission to Mushroom Development, LLC, its successors and assigns, to make private improvements within the public right-of-way adjacent to the property located at 212—212 1/2 Sixth Street, Jersey City, New Jersey also known on the tax maps of the City of Jersey City as Block 248, Lots T and U	01-10-2007
06-165	Granting permission to Mushroom Development, LLC, its successors and assigns, to make private improvements within the public right-of-way adjacent to the property located at 270—272 Sixth Street, Jersey City, New Jersey also known on the tax maps of the City of Jersey City as Block 318, Lots 11 and 12	01-10-2007
07-011	Granting permission to Jersey City Housing Authority, its successors and assigns to construct a portion of the front stairway stoop in the right-of-way of Pacific Avenue and Ash Street	02-14-2007
07-029	Granting to Benedetto Lopiccolo, his successors and assigns, to make private improvements within the public right-of-way adjacent to the property located at 322 Eighth Street, Jersey City, New Jersey, also known on the tax map of the City of Jersey City as Block 357, Lot 14	03-14-2007
07-066	Authorizing the City of Jersey City (Licensee) to enter into a telecommunications license agreement with Newport Tower Co., LLC. (Licensor) for the use of space at the Licensor's building located at 525 Washington Boulevard, Jersey City	04-25-2007
07-067	Vacating a portion of Washington Street from its intersection with Dudley Street and extending southerly to the Morris Canal Big Basin and authorizing the acceptance of deeds dedicating the vacated street as a public park	Defeated 10-24-2007
07-092	Granting permission to FTD Steuben, LLC, its successors and assigns, to make private improvements within the public right of way adjacent to the property located at 154-158 Steuben Street, Jersey City, New Jersey, also known on the tax map of the City of Jersey City as Block 139, Lot 90, 91 and 92	05-23-2007
07-135	Vacating a portion of West Side Avenue (Between Broadway and Fayette (Place) Street)	08-08-2007
07-153	Vacating a portion of Washington Street from its intersection with Dudley Street and extending southerly to the Morris Canal Big Basin and authorizing the acceptance of a deed dedicating the westerly side of the vacated street as a public park	09-11-2007

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
07-165	Granting permission to Brass Works Urban Renewal Company, LLC, its successors and assigns, to improve and use a portion of the Franklin Street public right of way as more particularly described herein and adjoining Lot G, Block 751 on the official tax assessment map of the City of Jersey City, for the installation and maintenance of a landscaping island, which encroaches onto a portion of the Franklin Street public right of way	10-24-2007
07-183	Vacating a portion of Carrol Avenue, Jersey City, New Jersey	12-19-2007
08-001	A franchise ordinance granting permission to Old and New, LLC., its successors and assigns, to make private improvements in the public right of way adjacent to the property located at 93 Montgomery Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 102, Lot 61	01-23-2008
08-035	Granting permission to Jersey City Episcopal Community Development Corporation, its successors and assigns, to install and maintain a handicap ramp along the south side of Neptune Avenue as set and to construct bay windows which extend into the franchise area within the proposed franchise area adjoining 109-111 Old Bergen Road a/k/a Lot 42M in Block 1367	03-26-2008
08-107	Granting permission to 19 Winfield, LLC, its successors and assigns, to construct stairs and stoops within the public right-of-way, for each of three (3) houses on Princeton Avenue adjacent to Block 1431, Lots 23, 24, and 25 respectively	08-06-2008
08-109	Authorizing the execution of an agreement between the City of Jersey City and Fiber Technologies Networks LLC to permit the installation, use and maintenance of telecommunications facilities within certain public rights-of-way for purposes of providing telecommunications services	08-20-2008
08-143	Granting permission to FTD Newark, LLC, its successors and assigns, to make private improvements in the public right of way adjacent to the property located at 209-217 Newark Avenue, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 311 Lot 68	10-07-2008
08-151	Granting permission to Bay City Condo, LLC, its successors and assigns, to make private improvements in the public right of way adjacent to the property located at 213-225 Bay Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 241 Lots A, 18, 20 and 33D	11-12-2008
08-161	Granting permission to Pronti Construction, Inc., its successors and assigns, to make private improvements in the Barrow Street and Wayne Street Public rights of way adjacent to the property located at 307 Barrow Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 273, Lot E	11-25-2008
09-048	Ordinance by the Municipal Council of the City of Jersey City vacating all of Walks Street, Jersey City, New Jersey	04-22-2009
09-060	A franchise ordinance granting permission to Mohammad Hamami to construct fenced yard/planted area and stoop extending 4'-0" within the public right-of-way for each of two (2) attached townhouses on Fourth Street, Lots 11 and 12 in Block 246 known as 210-212 Fourth Street	05-20-2009
09-065	An ordinance vacating a portion of Ludlow Street (between New Street and Cator Avenue)	06-17-2009
09-072	An ordinance granting permission to 134 Bay Street, LLC and 126-142 Morgan Street Urban Renewal, LLC, their successors and assigns, to make private improvements in the Provost Street right-of-way between Morgan Street and Bay Street adjacent to the property located at 10 Provost Street, 143 Bay Street, and 332-350 Marin Boulevard, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 140, Lot 1 and Block 171 in its entirety	06-17-2009

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
09-101	Franchise ordinance granting permission to 141 Bright Monmouth, LLC, his successors and assigns, to make private improvements in the public right-of-way adjacent to the property located at 141 Bright Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 341 Lot P.I.	09-23-2009
09-103	Franchise ordinance granting permission to the Ambriola Company, Inc., its successors and assigns, to make private improvements in and use of the public right-of-way adjacent to the property located at 2 Burma Road (a/k/a 95 Burma Road), Jersey City, New Jersey, also known on the tax map of the City of Jersey City as Block 2154 Lot 13.c.	10-14-2009
09-104	Franchise ordinance granting permission to Wells Reit II-International Financial TW%M. Calitower, LLC, its successors and assigns, to install decorative safety bollards approximately three (3) feet eight (8) inches in length and no more than one (1) foot eleven (11) inches in depth along the public right-of-way of Columbus Drive, Marin Boulevard, and Wayne Street adjacent to Block 203, Lot 26, in accord with the site plan approved by the Jersey City Planning Board	10-14-2009
09-105	Franchise ordinance granting permission to 782-784 Ocean Avenue LLC, its successors and assigns, to allow an encroachment along the south side of Ocean Avenue for two (2) stoops as set forth in schedule with the proposed franchise area adjoining 782-784 Ocean Avenue A/K/A Lot 52 in Block 1970	10-14-2009
09-107	Franchise ordinance granting permission to Johanna Garcia, her successors and assigns, to install and maintain steps along the north side of Baldwin Avenue as set forth in Schedule with the proposed franchise area adjoining Baldwin Avenue Lot 20.02 in Block 519	10-28-2009
09-110	Ordinance vacating a portion of 17th Street	10-28-2009
09-111	Ordinance vacating a portion of 18th Street	10-28-2009
09-112	Ordinance vacating a water main easement located on Lot PL-1, Block 402	10-28-2009
10-005	Ordinance vacating the paper street known as Dudley Street from its intersection with Greene Street and extending easterly	01-27-2010
10-009	Granting permission to One LLC, its successors and assigns, to make private improvements to a portion of land within the sidewalk area of the Bowers Street public right-of-way	2-24-2010
10-096	Granting permission to 110 First Street Urban Renewal Associates, LLC to construct a landscaped yard/planted entrance area within public right-of-way	08-04-2010
10-097	Granting permission to John Hajjar, its successors and assigns, to install and maintain an elevated canopy	08-04-2010
10-116	Authorizing execution of right-of-way use agreement between city and NextG Networks of NY, Inc., for installation, use and maintenance of telecommunications facilities within certain public rights-of-way for purpose of providing telecommunications services	09-29-2010
10-173	Granting permission to 769 Montgomery Street Urban Renewal Company, LLC, its successors and assigns to permit existing encroachments in the Montgomery Street at Boland Street rights-of-way adjacent to the property located at 769 Montgomery Street	01-12-2011
11-077	Granting permission to 222-224 First Street LLC, its successors and assigns, to construct and install an entry porch, stairs, fencing and landscaping approximately 40 feet in length and 7 feet in depth along the public right-of-way of First Street adjacent to Block 243, Lots 12 & 13	08-10-2011
11-121	Granting permission to 15-16 Realty Corp., its successors and assigns, to use a portion of the air space and the sidewalk area of the Bergen Avenue public right-of-way located adjacent to 896-898 Bergen Avenue	10-12-2011
11-123	Vacating a portion of Port Jersey Boulevard located east of East Pulaski Lane in the City of Bayonne to the most eastern end of Port Jersey Boulevard	10-12-2011

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
11-127	Accepting from PSEG Power LLC (PSEG) a dedication of certain water mains located within the public rights-of-way known as Duffield Avenue, Van Keuren Avenue, and St. James Street near the Hudson Generating Station	11-09-2011
12-078	A franchise ordinance granting permission to Jersey City Episcopal Community Development Corporation (petitioner) to use that 489 square feet on Halladay Street, all in lot formerly known as 9,1 IB, 12 & 33 now known as lots 34, 35, 36 & 37 block 2054 on the official tax assessment map of the for the installation and maintenance of a fence, landscaping and front path which encroach onto the public right-of-way of Halladay Street	06-13-2012
12-108	Granting permission to 593 Jersey Avenue, LLC, its successors and assigns, to make private improvements in the Jersey Avenue public right-of-way adjacent to the property located at 587 Jersey Avenue, Jersey City, New Jersey, also known on the tax maps of the city as Block 315, Lot B	08-22-2012
12-163	Vacating a portion of Grove Square consisting of approximately 1,910 square feet in order to align the street grid with the Liberty Harbor North Redevelopment Plan	01-09-2013
13-045	Granting permission to Abdel Amin, his successors and assigns, to make private improvements to the public right-of-way at the property located at 60 Sussex Street a/k/a 67 Green Street, Jersey City, New Jersey, also known on the tax maps of the city as Block 14304, Lot 5	04-24-2013
13-046	Granting permission to 593 Jersey Avenue, LLC, its successors and assigns, to make private improvements in the Jersey Avenue public right-of-way adjacent to the property located at 591 Jersey Avenue, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 11103, Lot 17 (f/k/a Block 315 Lot A)	04-24-2013
13-119	Franchise ordinance granting permission to 110 First Street Urban Renewal Associates, LLC, its successors and assigns, to improve and use that approximately ten-foot portion of the public right-of-way between the sixty-foot right-of-way adjacent to Second Street and Lot 42, Block 11603, on the official tax assessment map of the City of Jersey City for the installation of underground backflow preventers, house traps 7/5' x 5' vaults for its sanitary and storm sewer systems, which encroach ten feet onto the public right-of-way along Second Street	11-13-2013
13-125	Franchise ordinance granting permission to One Exchange JC, LLC, its successors and assigns, to make private improvements in the public rights-of-way of Exchange Place and York Street adjacent to the property located at One Exchange Place, Jersey City, New Jersey, also known on the tax maps of the City as Block 14502, Lot 1	11-26-2013
13-126	Authorizing the execution of a rights-of-way use agreement between the City and Cross River Fiber, Inc. to permit the installation of fiber optic cabling in existing underground conduit and/or on existing utility poles within certain public rights-of-way for purposes of providing telecommunication services	02-11-2014
13-131	Franchise ordinance granting permission to Kennedy Lofts Urban Renewal LLC, its successors and assigns, to allow existing private improvements in the Newkirk Street and Jones Street rights-of-way adjacent to the property located at 100 Newkirk Street, Jersey City, New Jersey, also known on the tax maps of the City as Block 10703, Lot 18	12-18-2013
14-010	Franchise ordinance granting permission to Hudson Body Company, its successors and assigns, to make private improvements in the Allen Street public right-of-way adjacent to the property located at 415-435 Tonnele Avenue, Jersey City, New Jersey, also known on the Tax Maps of the City as Block 4101, Lots 20 and 21	02-11-2014
14-054	Authorizing the execution of a rights-of-way use agreement between the City of Jersey City and TW Telecom of New Jersey L.P. to permit the installation of fiber optic cabling in existing underground conduit and/or on existing utility poles within certain public rights-of-way for purposes of providing telecommunication services	06-11-2014

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
14-059	Granting permission to MCREF Warren LLC, its successors and assigns, to make private improvements in the Morgan Street, Warren Street and Bay Street rights-of-way adjacent to property located at 333-341 Washington Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 11611, Lot 1	05-28-2014
14-062	Granting permission to 148 First Street Urban Renewal, LLC, its successors and/or assigns, and 160 First Street Urban Renewal, LLC, its successors and/or assigns, to make private improvements in the public right-of-way of First Street adjacent to the property located at 148-154 First Street and 162-170 First Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 11502, Lots 5.03, 9,10 and 11	06-11-2014
14-100	Vacating a portion of Bramhall Avenue consisting of approximately 3,000 square feet for development of Berry Lane Park	09-10-2014
14-162	Approving an addendum to the 2005 amended and restated water services franchise and service agreement between the City and the Jersey City Municipal Utilities Authority to revise Schedule C to increase the payments to the City	12-17-2014
14-155	Granting renewal of municipal consent to Comcast of Jersey City, LLC, its successors and/or assigns, to construct, connect, operate and maintain a cable television system in the City	01-14-2015
15-015	Granting permission to Willow Avenue Realty Associates, L.P., its successors and assigns, to improve and use that approximately five-foot by ten-foot portion of the public right-of-way between the sixty-foot right-of-way adjacent to Morgan Street and Lot 9, Block 13002, on the official tax assessment map of the City for the construction of a six-step stoop, entrance stairway which encroaches five feet onto the public right-of-way along Morgan Street	02-25-2015
15-044	Granting permission to Public Storage, its successors and assigns, to make improvements in the First Street, Second Street, Provost Street and Warren Street right-of-way adjacent to the property located at 124-142 First Street, also known as Block 11503, Lot 1 on the Tax maps of the City	04-08-2015
15-124	Authorizing the execution of a rights-of-way use agreement between the City and Mobilitie, LLC d/b/a NYFI to permit the installation of antennas and related communications equipment on existing utility poles and if necessary to install utility poles within certain public rights-of-way for purposes of providing telecommunication services	09-24-2015
15-157	Granting permission to Tal Raichlin Shuster, its successors and/or assigns, to make private improvements in the public right-of-way of 81-83 Sussex Street, Jersey City, New Jersey also known on the tax map of the City as Block 14402, Lot 2	11-24-2015
15-179	Granting permission to One Edward Hart Road, LLC, its successors and/or assigns, to make private improvements in the public right-of-way of One Edward Hart Road, Jersey City, New Jersey, also known on the tax map of the City of Jersey City as Block 24304, Lot 6	01-13-2016
16-013	Authorizing the execution of a rights-of-way use agreement between the City of Jersey City and New York SMSA Limited Partnership, d/b/a Verizon Wireless, to permit the installation of antennas and related communications equipment on existing utility poles and if necessary to install utility poles within certain public rights-of-way for purposes of providing telecommunication services	02-10-2016
16-024	Franchise ordinance of the City Council of the City of Jersey City granting permission to PS First Hudson Urban Renewal, LLC, its successors and assigns, to make improvements in the First Street, Second Street, Provost Street and Warren Street rights-of-way adjacent to the property located at 133 Second Street and designated as Block 11503, Lot 1 on the tax map of the City of Jersey City, New Jersey	02-10-2016
16-047	Vacating a portion of Marcy Avenue, Jersey City, New Jersey	04-13-2016

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	Subject Matter	Date of Adoption
16-062	Franchise ordinance granting permission to 75 Jersey City, LLC, its successors and assigns, to make private improvements to a portion of lands within the sidewalk area of the Montgomery Street public right-of-way located adjacent to 75 Montgomery Street, Jersey City, New Jersey	04-27-2016
16-162	Vacating a portion of Pine Street consisting of approximately 5,327 square feet or 0.122 acres being located within the Morris Canal Redevelopment Area of the City	10-26-2016
16-177	A franchise ordinance granting permission to COA 99 Hudson, LLC, its successors and assigns, to improve and use approximately six areas of two feet and nine inches in width and ten feet and three inches in length within a portion of the public right-of-way within the 80-foot right-of-way of Greene Street and adjacent to Lot 1, Block 14507, on the official tax assessment map of the City for the installation six structural pile caps, which encroach two feet and nine inches into the public right-of-way along Greene Street	11-22-2016
16-185	A franchise ordinance granting permission to Roseville Avenue Redevelopment Urban Renewal LLC, its successors and assigns, to make private improvements to a portion of lands within the sidewalk area of Montgomery Street and York Street public right-of-way located adjacent to 391-413 Montgomery Street and 451-489 Montgomery Street, Jersey City, NJ	12-14-2016
17-006	Franchise ordinance vacating a portion of Dey Street	03-08-2017
17-030	A franchise ordinance granting permission to 225 Bay Street, LLC, successor in interest to Bay City Condo, LLC, its successors and assigns, to make private improvements in the public right-of-way of Bay Street adjacent to the property located at 213-225 Bay Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 241, lots A, 18, 20, and 33D	03-22-2017
17-072	A franchise ordinance granting permission to 817 Associates, LLC, its successors and assigns, to allow for vacating of a portion of Cottage Street	06-28-2017
17-085	Amending City Ordinance 14.062 granting permission to 148 First Street Urban Renewal, LLC, its successors and/or assigns, and 160 First Street Urban Renewal, LLC, its successors and/or assigns, to make private improvements in the public right-of-way of First Street adjacent to the property located at 148-154 First Street and 162-170 First Street, Jersey City, New Jersey, also known on the tax maps of the City as Block 11502, Lots 5.03, 9,10 and 11	06-28-2017
17-086	Vacating a portion of Freeman Avenue and Field Avenue	07-19-2017
17-109	Vacating an alley lying between Newkirk St and Cubberly Pl	09-13-2017
17-128	Vacating a portion of Factory St consisting of approximately 3,623.4 square feet for public utilities located in the Montgomery St redevelopment area	09-27-2017
17-140	Granting permission to Usman Khan, his successors and assigns, to allow an encroachment along the south side of Emerson Av, and the east side of Sip Av, for a fence as set forth within the proposed franchise area adjoining 24 Emerson Av, a/k/a Lots 31, Block 11901	10-11-2017
17-143	Granting permission to M&T Bank-Branch 3303, its successors and assigns, to make private improvements to a portion of lands within the sidewalk area of Bayview Av and Ocean Av public rights-of-way located adjacent to 532 Ocean Av	10-25-2017
18-012	Vacating a portion of West Street in accordance with the stipulation of settlement dated July 25,2012 and pursuant to the Journal Square 2060 Redevelopment Plan	02-28-2018
18-043	Granting permission to 28 Liberty Manor Development, LLC, its successors and assigns to construct and install planters, fence, steps and stoops approximately 125 feet in length and nine and twenty one-hundredths feet in depth along the public right-of-way of Bright Street, in accord with the site plan as submitted in the attached Exhibit "A" (Franchise Ordinance)	05-23-2018

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	**Subject Matter**	**Date of Adoption**
18-044	Granting permission to Larry Li and Lei Wang, their successors and assigns, to make private improvements in the Bright Street right-of-way adjacent to the property located at 278 Grand Street, Jersey City, New Jersey, also known on the current tax map of the City as Block 14105, Lot 9 (Franchise Ordinance)	05-23-2018
18-135	Vacating a portion of Washington Street, Washington Boulevard and First Street rights-of-way located in the Hudson Exchange Redevelopment Area	12-19-2018
19-062	Granting permission to 972-976 Summit Ave Development, LLC, its successors and assigns to construct and install planters, steps and stoops approximately 118 feet in length on Lincoln Street and 105 feet in length on Summit Avenue and four feet in depth along the public right-of-way on Lincoln Street and 3.2 feet in depth along the public right-of-way of Summit Avenue	06-12-2019
19-090	Vacating Cook Street and a portion of Hoboken Avenue	07-17-2019
19-127	Granting permission to LMV Warren Street Holdings, LP, its successors and assigns, to make private improvements in the public rights-of-way of Warren Street and Steuben Street adjacent to the property located at 321 Warren Street, also known on the tax maps of the City of Jersey City as Block 13002, Lot 13.01	09-25-2019
19-160	A franchise ordinance granting permission to 322-333 Manhattan Avenue, LLC, its successors and assigns, to make private improvements to and exclusively utilize a portion of lands within the roadway area of the Manhattan Avenue public right-of-way located adjacent to 330 Manhattan Avenue, Jersey City, New Jersey	12-18-2019
20-003	An franchise ordinance granting permission to 400 Claremont Urban Renewal, LLC, its successors and assigns, to make private improvements in the public right-of-way of Yale Street and Claremont Avenue adjacent to the property located at 17-19 and 53-63 Yale Avenue and 400 and 148-430 Claremont Avenue, Jersey City, New Jersey, formerly known on the tax maps of the City of Jersey City as Block 21801, Lots 4, 5, 8, 9, 10, 15, 16, 17, 18 and 19, now known as Block 21801, Lot 4.01	01-23-2020
20-019	A franchise ordinance granting permission to AIJ Central Avenue LLC, for a one-foot building cornice encroachment at Lot 28 in Block 2802, also known as 345 Central Avenue into the right-of-way	02-26-2020
20-026	Vacating 17th Street pursuant to Jersey Avenue Park Redevelopment Plan	05-06-2020
20-057	A street vacation ordinance granting permission to Dey Street Properties LLC, its successors and assigns to make private improvements to and exclusively utilize the lands within the Charlotte Avenue right-of-way, Jersey City, New Jersey	08-12-2020
20-078	Granting permission to Cali Harborside (Fee) Associates L.P., its successors and assigns, to improve and use approximately 454 square feet of the public right-of-way within the 80-foot right-of-way of Washington Street, and one 78-square-foot, and two 11-square-foot portions of the public right-of-way within the 60-foot right-of-way of Pearl Street, both adjacent to Lot 1, Block 11607, on the official tax assessment map of the City, for the installation of various improvements including stairs, landscaping, ramps for egress and bollards	09-23-2020
21-064	Granting permission to 208CCJCLLC LLC for the installation of four decorative planters at Block 12703, Lot 1, also known as 2 Coles Street, 4 Coles Street, 6 Coles Street and 8 Coles Street encroaching into the right-of-way	11-10-2021
22-004	Vacating the portion of 13th Street between Provost Street and Barnum Street in the City	02-09-2022
22-006	Vacating a portion of Bleecker Street	02-09-2022
22-029	Vacating a portion of Commercial Street from the intersection of Caven Point Avenue and the New Jersey Turnpike overpass	04-13-2022

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	**Subject Matter**	**Date of Adoption**
22-050	Granting permission to 503-509 Communipaw Ave. LLC, its successors and assigns, to use approximately two hundred and sixteen square feet (216 sq. ft.) over the public right-of-way within the fifty (50) foot right-of-way of Arlington Avenue and the sixty (60) foot right-of-way adjacent to Lot 1.01, Block 18703 (f/k/a Lots 1 and 2, Block 18703), on the official tax assessment map of the City to maintain an encroaching overhang for a constructed mixed-use development	12-14-2022
22-066	Granting permission to 199 SUMMIT, LLC, Its successors and/or assigns, to make private improvements in the public right-of-way of Ingwerson Place for the property located at 199-201 Summit Avenue, 62-64 Storms Avenue, 203 and 207 Summit Avenue, 46 Storms Avenue, 1 through 9 Ingwerson Place, Jersey City, New Jersey, also known on the tax maps of the City as Block 15201, Lots 1, 2, 3, 4, 5, 6, 7, 8, 9, 18, 19, 53, 64, 65, 66 and 89	08-17-2022
22-074	Granting permission to Harmony Foundation of New Jersey, Inc., its successors and/or assigns, to make private improvements on a portion of the public right-of-way of Coles Street, 12th Street, Monmouth Street, and 13th Street adjacent to the property located at 227 Coles Street and 310 Twelfth Street also identified on the City tax maps as Block 7001, Lots 1 and 2	09-08-2022
22-075	Granting permission to Aida Anis c/o Hala Samuel for existing stairway and retaining wall encroachments into the right-of-way at Lot 19 in Block 2004, also known as 99 Columbia Avenue	09-08-2022
22-086	Vacating Factory Street at the corner of Mercer LOOP and Wayne Street	10-13-2022
23-032	Granting permission to Overlook LLC, its successors and assigns, to make private improvements within the public right-of-way of Washburn Street and the public right-of-way of Oakland Avenue, adjacent to Lot 1.01, Block 8203, on the Official Tax Assessment Map of the City to install and maintain heated sidewalks	04-26-2023
23-054	Vacating portions of West Side Avenue and Van Keuren Avenue	06-14-2023
23-079	Granting permission to 335 Washington Realty, LLC, its successors and assigns, to make private improvements including stairs, ramps and platform, within the public right-of-way of Washington Street and the public right-of-way of Bay Street, adjacent to Lot 1.02, Block 11611, on the Official Tax Assessment Map of the City	09-07-2023
23-080	Granting permission to 215 Warren LLC pursuant to a resolution of the planning board of the City under Case #P21-153, to landscape a portion of the sidewalk up to three and a half feet encroaching into the right-of-way of Sussex Street for the benefit of Lot 22 at Block 14202, land now or formerly of 215 Warren LLC, presently the lot encroaches at least five feet into the right-of-way beyond the boundary lines of Lot 22 in Block 14202 and into the aforementioned rights-of-way	09-07-2023
23-085	Granting permission to 331 Sip, LLC, its successors and assigns, to make private improvements consisting of upper floor projections over the public sidewalk in a new residential building on the south side of 331 Sip Avenue, also known as Block 11902, Lot 3/4, on the Official Tax Assessment Map of the City	11-08-2023
23-095	Granting permission to FD Monitor, LLC, its successors and assigns, to make private improvements in both the Monitor Street and Maple Street public rights-of-way adjacent to the property located at 62-68 Monitor Street, Jersey City, New Jersey, also known on the tax maps of the City as Block 15802, Lot 37	11-29-2023
23-123	Granting permission to Dhaval Patel and Jayshri Mepani pursuant to resolution of Planning Board of the City under Case #P22-199; allowing the installation of stoops, bay windows, and planting beds which encroach and extend into the right-of-way beyond the boundary lines of Lot 33, Block 8502, and are for the benefit of Lot 33, Block 8502, land now or formerly of Dhaval Patel and Jayshri Mepani and commonly known as 352 Pavonia Avenue, Jersey City, New Jersey	12-13-2023

TABLE 2. FRANCHISES AND VACATIONS		
Ord. No.	**Subject Matter**	**Date of Adoption**
24-071	Granting permission to the Number Spot Inc. to allow the Number Spot Inc. to install a handicap entrance ramp beyond the boundary line of Lot 9, Block 18503, and for the benefit of Lot 9, Block 18503 commonly known as 539 Martin Luther King Jr. Drive	09-11-2024
24-097	Granting permission to Jasco Management Corp. for a five-foot, five and a half-inch by 23-foot, five and a half-inch ramp encroachment at Lot 20 in Block 20004, also known as 307 Pacific Avenue, into the right-of-way	10-30-2024
25-004	Granting permission to Sam Steinberg, his successors and assigns, to use approximately 216.62 square feet over the public right-of-way within the 50-foot right-of-way of First Street, adjacent to Lots 8, 9 and 10, Block 12603, on the Official Tax Assessment Map of the City	02-13-2025
25-030	Granting permission to Liberty Harbor North Partners, LLC, its successors and assigns, to allow decorative pilasters, four-foot bay windows, and a ten-foot awning to encroach onto the public right-of-way at Block 15907, Lot 3, Qualifier C0002	04-09-2025
25-049	Granting permission to St. George and St. Shenouda Coptic Orthodox Church to encroach onto the public right-of-way (sidewalk) along the frontage of 395 Sip Avenue, Block 11801.01, Lot 1 and Lot 3	04-23-2025
25-079	Authorizing the accepting the dedication of Street and Sidewalks on a portion of Chapel Avenue situated at Block 27503, Lot 14.01	08-20-2025
25-088	Granting permission to 88 Regent Street, LLC, its successors and assigns, to have private improvements in the public right-of-way of Regent Street adjacent to the property located at 88 Regent Street, Jersey City, New Jersey, identified on the tax maps of the City as Block 14002, Lots 1.02 and 1.06	09-10-2025
25-089	Granting permission to Ian Gutch and Shannon Smith pursuant to resolution of Planning Board of the City of Jersey City under Case #P2024-0135 allowing the installation of a common entry stoop and stair that extend into the right-of-way beyond the boundary lines of Lot 30, Block 19007, and are for the benefit of Lot 30, Block 19007, commonly known as 328 Halladay Street	09-10-2025
26-005	Granting permission to 20 VANW, LLC by it managing member, Hangyuan Zhang, allowing the installation of concrete stairs that extend into the right-of-way beyond the boundary lines of Lot 38, Block 12003, and are for the benefit of Lot 38, Block 12003, commonly known as 20 Van Wagenen Avenue	02-11-2026
26-007	Granting permission to Avenir West Side Square LLC, for the installation of a lit protective bollard at Lot 30.01 in Block 9301, (Qualifier 1) also known as 1075 West Side Avenue into the right-of-way	02-25-2026

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
C-874	Authorizing execution deed to Union Park Development Assn., Inc.	01-26-1989
C-876	Transfer of city-owned property to Jersey City Redevelopment Area	01-12-1989
C-877	Transfer of city-owned property to Jersey City Redevelopment Area	01-12-1989
C-878	Transfer of city-owned property to Jersey City Redevelopment Area	04-13-1989
C-885	Land acquisition amendment	02-02-1989
C-903	Transfer of city-owned property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	03-09-1989
C-904	Acquisition of 46 Woodlawn Avenue	03-09-1989
C-928	Acquisition of 119 Manning Avenue	04-13-1989
C-932A	Transfer of property within Montgomery Street Redevelopment Area	04-13-1989
C-969	Transfer of city-owned property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	06-25-1989
C-970	Transfer of city-owned property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	05-25-1989
C-971	Transfer of city-owned property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	05-25-1989
C-972	Transfer of city-owned property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	05-25-1989
C-973	Transfer of city-owned property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	05-25-1989
C-974	Transfer of city-owned property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	05-25-1989
C-979	Transfer of city-owned property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	05-25-1989
McC-36	Transfer of property to Resurrection House Corporation	09-27-1989
McC-46	Transfer of property to Housing Assist Corp.	10-25-1989
McC-47	Transfer of property to Jersey City Redevelopment Agency	10-25-1989
McC-76	Transfer of property to Jersey City Municipal Port Authority	12-08-1989
McC-79	Execution of agreements for sale and exchange of certain properties within the Caven Point Area	12-08-1989
McC-99	Dedication of public access walkway by K. Hovanian	07-18-1990
McC-146	Redemption of Exchange Place property to Jersey City Redevelopment Agency	05-09-1990
McC-148	Transfer of property to Neighborhood Housing Services of Jersey City Holding Company	09-12-1990
McC-160	Transfer of property from Housing Authority to city	06-27-1990
McC-169	Transfer of property to Jersey City Redevelopment Agency	06-27-1990
McC-170	Transfer of property to J.P. Affordable Housing Holding Co., Inc.	06-27-1990
McC-195	Acceptance of property for use as public sidewalk	08-21-1990
McC-199	Transfer of property to Jersey City Public School District	09-12-1990
McC-206	Transfer of property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	09-12-1990
McC-207	Transfer of property to Jersey City Redevelopment Agency	09-26-1990
McC-208	Dedication of various lands owned by Port Authority	10-10-1990
McC-215	Transfer of land to Resurrection House (School No. 18) Housing Corporation	11-20-1990

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
McC-219	Expansion of LaPointe Park	10-10-1990
McC-226	Transfer of property to Jersey City Neighborhood Housing Services Development Corporation, Inc.	11-20-1990
McC-236	Repeal of Ord. No. McC-46	12-19-1990
McC-279A	Transfer of Bay Street Urban Renewal Project to Bay Street Urban Renewal Development Corporation	04-10-1991
McC-285	Dedication of various lands owned by National Bulk Carriers, Inc. to public	02-27-1991
McC-286	Repeal of Ord. No. C-721	03-27-1991
McC-290	Acquisition of certain access and utility easements	03-13-1991
McC-301	Transfer of property to Jersey City Redevelopment Agency	05-08-1991
McC-311	Transfer of property to Jersey City Redevelopment Agency	04-24-1991
McC-315	Transfer of property to Jersey City Redevelopment Agency	04-24-1991
McC-316	Transfer of property to Jersey City Redevelopment Agency	04-24-1991
McC-318	Acceptance of monument from Military Order of the Purple Heart of the United States Combat Wounded Veterans, Chapter 33	05-08-1991
McC-328	Acceptance of property within Newport Redevelopment Area	08-21-1991
McC-328	Transfer of property to Affordable Housing Developers of Jersey City, Inc.	06-12-1991
McC-337	Repeal of Ord. No. McC-148	07-17-1991
McC-343	Transfer of property to J.P. Affordable Housing Co.	08-21-1991
McC-344	Transfer of property to Jersey City Redevelopment Agency	08-21-1991
McC-360	Sale of property to Euell Development Limited-Dividend Housing Corp.	09-25-1991
McC-363	Transfer of property to Jersey City Redevelopment Agency	09-11-1991
McC-383	Transfer of property to Storms Avenue Housing Development Corporation, Inc.	10-23-1991
McC-389	Acquisition of property from Jersey City Neighborhood Housing Services Development Corporation, Inc.	11-06-1991
McC-390	Repeal, in part, of Ord. No. C-821	11-06-1991
MeC-400	Acquisition of property from St. Anthony's R.C. Church and transfer of property to Padua Housing Corp.	01-08-1992
McC-410	Transfer of property to St. Joseph's School for the Blind; acquisition of property	02-11-1992
92-006	Transfer of 169 Martin Luther King Drive Cooperative Association to Bread and Roses, Inc.	03-11-1992
92-015	Dedication and transfer of sewerage utilities to Jersey City Sewerage Authority	03-25-1992
92-039	Transfer of property for the Housing Authority's Lafayette II Project	04-22-1992
92-054	Transfer of ownership interests in Newport Tower Urban Renewal Corporation Entity	06-10-1992
92-097	Transfer of property to Enterprise Community Development Corporation, Inc.	08-19-1992
92-098	Transfer of property to Jersey City Development Corporation	09-02-1992
92-116	Transfer of property to Jersey City Development Corporation	09-16-1992
92-152	Acquisition of property	10-28-1992
92-160	Transfer of property to Jersey City Development Corporation	11-10-1992
93-003	Acquisition of Loew's Theatre	02-10-1993

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
93-006	Transfer of property to Enterprise Community Development Corporation, Inc.	02-10-1993
93-033	Transfer of property to Jersey City Redevelopment Agency	03-24-1993
93-033A	Acquisition of portion of Lincoln Park	04-14-1993
93-044	Acquisition of property for Jersey Avenue and Grand Street Extension Project	04-28-1993
93-047	Conveyance of land	04-28-1993
93-051	Dedication of certain phase II roadways within Newport Redevelopment Zone and city	05-19-1993
93-076	Acquisition and conveyance of Salem Lafayette Housing Project	08-18-1993
93-080	Repeal of Ord. Nos. McC-311 and 92-098 and transfer of property to Jersey City Development Corporation	08-18-1993
93-083	Dedication of certain lands as park lands	09-08-1992
93-102	Abolishing self-liquidating Municipal Pool and Ice Skating Rink Utility and repealing Ord. No. MC-365	09-22-1993
93-113	Dedication of various lands within Harsimus Cove South Redevelopment Area	10-13-1993
93-122	Interlocal service agreement	10-27-1993
93-133	Repeal of Ord. Nos. McC-178 and McC-187	11-10-1993
93-147	Transfer of property to J.P. Affordable Housing Holding Co.	01-12-1994
94-008	Transfer of property to Jersey City Redevelopment Agency	02-23-1994
94-033	Transfer of property to Jersey City Redevelopment Agency	04-27-1994
94-043	Acquisition of land	05-24-1994
94-061	Transfer of property to Jersey City Redevelopment Area	08-17-1994
94-068	Conveyance of property	08-17-1994
94-107	Sale of property to New Jersey Transit	11-22-1994
94-111	Transfer of property to Jersey City Redevelopment Agency	11-22-1994
94-114	Transfer of property to Jersey City Development Corporation	12-14-1994
94-119	Transfer of property to Jersey City Redevelopment Agency	12-28-1994
95-013	Acquisition of property	03-08-1995
95-019	Repeal of Ord. No. 93-076, acquisition and conveyance of Salem Lafayette Housing Project and cancellation of municipal tax liens against project	03-22-1995
95-032	Transfer of property to J.P. Affordable Housing Co., Inc, repeal of Ord. Nos. C-973, C-979 and McC-226	04-26-1995
95-034	Amendment to Ord. No. McC-192 authorizing transfer of property to Greenville Steering Non-profit Housing Corporation	05-10-1995
95-037	Amendment to Ord. No. 93-080, transfer of property to Jersey City Development Corporation	05-10-1995
95-048	Amendment to Ord. No. McC-400, transfer of property to Padua Housing Corp.	05-24-1995
95-061	Transfer of property within the Martin Luther King Drive redevelopment area	07-19-1995
95-069	Transfer of property to Enterprise Community Development Corporation	08-16-1995
95-086	Transfer of city-owned property to the Jersey City School District	09-27-1995
95-098	Conveyance of property to the Jersey City Redevelopment Agency	10-25-1995

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
95-100	Acquisition of 51-55 Pearsall Avenue from the Jersey City Housing Authority	10-25-1995
95-110	Transfer of property to the Learning Emporium Pre School, Inc.	11-21-1995
95-119	Transfer of property to the Astor Place Neighborhood Association, Inc.	01-10-1996
95-125	Sale of city-owned property to the New Jersey Department of Environmental Protection, which includes approximately 1,400 acres of property in the Township of Rockaway (Block 30101, Lots 3 and 12; Block 50001, Lots 1 and 18; and Block 50003, Lots 19 and 20) and in the Borough of Kinnelon (Block 30, Lots 3 and 4, and Block 300, Lot 5) and approximately 2,700 acres of property in the Township of Jefferson (Block 265, Lots 8, 8.02, 9,10 and 11; Block 268; Lot 1.01; Block 270, Lots 1, 2.11, 2.13,2.20, 3,4, 5, 5.01, 5.02, 5.03, 6, 7, 8 and 9; Block 271, Lots 1,1.01, 3.01, 5, 6, 7, 8, 9, 10,10.0,10.02,10.03,11 and 11.01; Block 336, Lots 43.02,43.03 and 52; Block 338, Lots 1 and 3; and Block 339, Lot 1)	05-08-1996
96-019	Sale of 9.55 acres in the Township of Parsippany-Troy Hills	04-10-1996
96-035	Acceptance of property known as 19 and 31 Astor Place and the transfer of these properties to Astor Place Neighborhood Association, Inc.	04-24-1996
96-066	Acceptance of property and transfer of this property to Astor Place Neighborhood Association, Inc.	06-26-1996
96-067	Transfer of property to Astor Place Neighborhood Association, Inc.	07-24-1996
96-075	Conveyance of property to the Jersey City Housing Authority	07-24-1996
96-089	Acquisition of 591-599 Palisades Avenue for construction of new firehouse	09-11-1996
96-093	Transfer of property to Granderson Corporation	09-25-1996
96-096	Transfer of city-owned property within Turnkey and Ocean-Bayview Redevelopment Area to Jersey City Redevelopment Agency	09-25-1996
96-101	Transfer of city-owned property within Grove and Mercer Redevelopment Plan Area to Jersey City Redevelopment Agency	10-23-1996
97-004	Transfer of city-owned property within HUB District of the Martin Luther King Drive Redevelopment Plan Area to Jersey City Redevelopment Agency	02-11-1997
97-005	Sale of city-owned property located at Caven Point Road and Chapel Avenue (Block 1500, Lot 16) to the State-Operated School District and the lease of a portion of the same from the State-Operated School District	06-11-1997
97-012	Transfer of city-owned property to Jersey City Development Corporation	02-26-1997
97-018	Acquisition of 380-386 New York Avenue (Block 786, Lots 138,139,141 and 141) by purchase or condemnation for the construction and location of a new firehouse	03-12-1997
97-042	Transfer of city-owned property within the Lafayette Park Redevelopment Area to the Jersey City Redevelopment Agency for the Housing Authority's Lafayette II Project (Block 2086, Lots 1,13,14,15,16,17,18,19, 2.A, 20, 21, 22, 23,24.A, 25, 26, 27.D, 27.E, 27.F, 27.H, 27.J, 28, 29, 30.A, 33, 34, 35, 36, 37, 38, 5.A, A, B C, D, 29, 30.A, 33, 34, 35, 36, 37, 38, 5.A A, B, C and D)	06-25-1997
97-047	Acquisition of property located at 89-101 Cambridge Avenue (Block 762, Lots 38A, 38, 9B and 42A), subject to an existing lease, and lease agreement, with an option to buy, with the Jersey City Parking Authority and assignment of lease to the Parking Authority	06-25-1997
97-050	Sale of city-owned property at 9 Bayview Avenue (Block 1475, Lot 42) to Rev. Tyrone Chess under the Fair Housing Act	08-13-1997
97-063	Amendment to Ord. No. 95-125, which authorized the contract of sale with the New Jersey Department of Environmental Protection, to delete Block 268, Lot 1A (Taylor Road property) and Block 270, Lots 2.11 and 2.13, and to add Block 70001, Lot 5	09-24-1997
97-085	Transfer of Title of Lot A.4 in Block 1915, 88 Clifton Place, Margaret Hague Hospital, to Hudson County	12-10-1997

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
97-098	Transfer of property located at Block 238, Lots 29 and 30,44-46 Mercer Street, to the Jersey City Redevelopment Agency	01-14-1998
98-045	Acquisition by purchase of 22-24 Liberty Avenue	05-13-1998
98-124	Transfer of city-owned property within the Liberty Harbor North Redevelopment Plan Area to the Jersey City Redevelopment Agency: Block 198, Lot 9, 235 Grand Street (vacant land); Block 60, Lot 27.A, 139-193 Luis M. Marin Boulevard (occupied by the vacant former Flintkote building); Block 60, Lot 27C, 139-193 Luis M. Marin Boulevard (vacant land); Block 60, Lot 40, 139-193 Luis M. Marin Boulevard (vacant land); see MC-373, MCC-527, MC-670, 93-029	09-23-1998
98-128	Transfer of 99 Rutgers Avenue to Fairmount Housing Corporation, Inc. (Block 1352, Lot C.7)	09-23-1998
98-135	Acceptance of a deed from Jersey City Redevelopment Agency transferring Lots 40 (vacant land on the southwest comer of First and Monmouth Streets), 41 and 42 (vacant land on the easterly side of Brunswick Street between Christopher Columbus Drive and First Street) in Block 383 to the city	10-14-1998
98-152	Transfer of property within the Ocean Bayview Redevelopment Area to the Jersey City Redevelopment Agency for the Pindar Ocean Bayview Project	11-10-1998
98-155	Transfer of property within the Martin Luther King Drive Redevelopment Plan Area to the Jersey City Redevelopment Agency	11-24-1998
98-168	Transfer of property within the Liberty Harbor Redevelopment Plan Area to the Jersey City Redevelopment Agency	01-13-1999
98-169	Transfer of property within the Caven Point Redevelopment Plan Area to the Jersey City Redevelopment Agency	01-13-1999
98-170	Transfer of property within the Hudson Exchange Redevelopment Plan Area to the Jersey City Redevelopment Agency	01-13-1999
99-001	Accepting dedication of certain property for sidewalks, roadways, utilities and other public uses from AJI Enterprises	01-27-1999
99-015	Acquisition of Block 1871, Lots 33.B, 33.C and 33D (298-304 Academy Street or the Apple Tree House)	04-28-1999
99-019	Acquisition of Block 1947, Lots G2, G3, G7, G12, 25, 26,27, 28, 29, 30, 32 and 32 (312, 314, 304 and 294 Randolph Avenue and 1009,1011,1012,1015, 1017,1019,1021 and 1023 Garfield Avenue) for the reimbursement of taxes liens and various costs	02-10-1999
99-036	Conveyance of 100 Monitor Street to the Jersey City Redevelopment Agency	01-12-2000
99-037	Acquisition of Block 722. A, Lot 10 (302 Palisade Avenue) for a municipal parking lot	03-24-1999
99-038	Acquisition of Block 722. A, Lot 9a (304 Palisade Avenue) for a municipal parking lot	03-24-1999
99-039	Acquisition of Block 722. A, Lot 8b (304.5 Palisade Avenue) for a municipal parking lot	03-24-1999
99-040	Acquisition of Block 722. A, Lot 8a (306 Palisade Avenue) for a municipal parking lot	03-24-1999
99-045	Amendment to Ord. No. McC-99, dedication of public access walkway by K. Hovanian	04-14-1999
99-050	Transfer of 405-407 Ocean Avenue to the Jersey City Development Corporation	04-28-1999
99-051	Transfer of property within the Liberty Harbor Redevelopment Plan Area to the Jersey City Redevelopment Agency	04-28-1999
99-069	Sale of Block 30101, Lot 3 (Camp Hudsonia) to the Township of Rockaway	05-12-1999

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
99-076	Sale of portion of property known as Reservoir No. 2 to State-Operated School District	06-09-1999
99-094	Transfer of property within the Betz Brewery Redevelopment Plan Area to the Jersey City Redevelopment Agency	08-18-1999
99-102	Transfer of property within the Lafayette Park I Redevelopment Plan Area to the Jersey City Redevelopment Agency	08-18-1999
99-113	Dedicating to public lands owned by National Bulk Carriers, Inc., within the Hudson Exchange Redevelopment Area for the extension of Fourth Street west of Washington Boulevard to Metro Plaza Shopping Center	09-08-1999
99-114	Dedicating to public lands owned by National Bulk Carriers, Inc., within the Hudson Exchange Redevelopment Area for the extension of Second Street east of Washington Boulevard and for the extension of Hudson Street north of the Harborside Redevelopment Area	09-08-1999
99-115	Acquisition of Block 60, Lots 27A, 27 A and 40 from the Jersey City Redevelopment Agency	09-08-1999
99-146	Conveyance of Block 1, Lot 3 to the Township of North Bergen	09-22-1999
99-154	Dedication of property as public right-of-way pending satisfaction of certain conditions with 55 Lotdev, LLC	10-27-1999
99-177	Amendment to Ord. No. 97-042, transfer of property within the Lafayette Park Redevelopment Area to the Jersey City Redevelopment Agency for the Housing Authority's Lafayette II Project	12-15-1999
99-188	Transfer of property within the Exchange Place Redevelopment Plan Area to the Jersey City Redevelopment Agency	01-12-2000
00-004	Amendment to Ord. Nos. 95-119, 96-035 and 96-006, which authorized the transfer of real property to the Astor Place Neighborhood Association, Inc.	01-26-2000
00-009	Acquisition of Block 1896, Lots 3A, 4A and 5, also known as 8-9 Foye Place	02-23-2000
00-018	Acceptance of conveyance of Block 6, Lot 1A, from Hartz Mountain Industries, Inc., to the city	03-22-2000
00-067	Sale of Block 60, parts of Lots 19H, 19Q, 19R, 20B, 27A, 27C and 40 to the New Jersey Transit for construction and operation of the light rail system	06-28-2000
00-086	Transfer of city-owned property within the Majestic Theater Development Plan Area to the Jersey City Redevelopment Agency (Block 237, Lot U, and Block 237, Lot 23; 275 and 279 Grove Street)	07-19-2000
00-104	Acquisition of 302 and 304.5 Palisade Avenue (Block 722.A, Lots 8b and 10) by exchanging it for city-owned property known as 133 Leonard Street (amends Ord. Nos. 99-037 and 99-039)	09-13-2000
00-132	Acquisition of certain property from the Jersey City Municipal Utilities Authority; conveyance of property to Jersey City Redevelopment Agency	10-11-2000
00-133	Authorizing acceptance of real properties from the Jersey City Development Corporation for the purpose of discharging tax liens; authorizing transfer of real properties back to Jersey City Development Corporation	10-11-2000
00-137	Authorizing transfer of city-owned property within the Martin Luther King Drive Redevelopment Plan Area to Jersey City Redevelopment Agency	10-11-2000
00-174	Authorizing transfer and acceptance of real property to/from the state operated school district of Jersey City; transfer of real property to the Jersey City Redevelopment Agency; acceptance of real property from the Jersey City Housing Authority (amends Ord. No. 99-172)	01-10-2001
01-029A	Transfer of city-owned property within the Vacant Buildings Redevelopment Plan Area to the Jersey City Redevelopment Agency	03-24-2001
01-066	Authorization of city-owned property transfer within the Liberty Harbor North Redevelopment Area to the Jersey City Redevelopment Agency	06-13-2001

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
01-068	Grants permission for exchange of certain properties within the Caven Point Redevelopment Area	06-13-2001
01-075	Authorization of transfer of city-owned property within the Liberty Harbor Redevelopment Plan Area to the Jersey City Redevelopment Agency	06-27-2001
01-083	Dedication of lands from Liberty Center Associates to public use within the Exchange Place North Redevelopment Agency	06-27-2001
01-101	Authorizes transfer of city-owned property within the Ocean Bayview Redevelopment Plan Area to the Jersey City Redevelopment Agency	09-12-2001
01-114	Authorizes transfer of city-owned property within the Monticello Avenue Redevelopment Plan Area to the Jersey City Redevelopment Agency	10-10-2001
01-119	Authorizes exchange of city property for state property	10-24-2001
02-003	Transfer of the interest of TCR 1 LP in the Jersey City I Urban Renewal	01-23-2002
02-031	Transfer of city-owned property within the Greenvilla Redevelopment Area to the Jersey City Redevelopment Agency	03-27-2002
02-032	Transfer of city-owned property within the Ocean Bayview Redevelopment Area to the Jersey City Redevelopment Agency	03-27-2002
02-033	Transfer of city-owned property within the Monticello Avenue Redevelopment Plan Area to the Jersey City Redevelopment Agency	03-27-2002
02-037	Authorizes acquisition NUNC PRO TUNC of Block 1853	03-27-2002
02-059	Authorizes transfer of city-owned property within the Morris Canal Redevelopment Agency.	05-22-2002
02-065	Authorizes acquisition of 209 Ninth Street from the Jersey City Redevelopment Agency	06-12-2002
02-066	Authorizes acquisition by purchase or condemnation of Block 200, Lot F (175 Montgomery Street)	06-12-2002
02-079	Authorizes transfer of city-owned property within the Ocean Bayview Redevelopment Plan Area to the Jersey City Redevelopment Agency	06-26-2002
02-081	Conveyance of Block 1 Lot 3 to Hudson County	07-17-2002
02-085	Accepts a deed in lieu of foreclosure for property known as Block 395.1, Lot 2	08-14-2002
02-097	Transfer of city-owned property within the Turnkey Redevelopment Plan Area to the Jersey City Redevelopment Agency	09-12-2002
02-098	Transfer of city-owned property within the Morris Canal Redevelopment Plan Area to the Jersey City Redevelopment Agency	09-12-2002
02-099	Transfer of city-owned property within the Martin Luther King Drive Redevelopment Plan Area to the Jersey City Redevelopment Agency	09-12-2002
02-100	Transfer of 23 Cornelison Ave. and 52 Summit Avenue to Foundation of Housing, Inc., for the purpose of rehabilitating the properties for use as affordable housing units	Defeated 09-12-2002
02-134	Acquisition of Block 200, Lot R.I	12-11-2002
02-135	Acquisition of Block 200, Lot S.l	12-11-2002
02-136	Acquisition of Block 200, Lot A	12-11-2002
02-139	Authorizes Fairmount Housing Corp, to sell 149 Grant Avenue to En Funding, LLC	12-11-2002
02-141	Transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	01-08-2003
02-146	Acquisition of three easements across property south of Christopher Columbus Drive for the Green Street Project	01-08-2003

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
02-147	Transfer of city-owned property within the Vacant Buildings Redevelopment Area to the Jersey City Redevelopment Agency	01-08-2003
03-004	Conveyance of an easement across Block 100, Lot S, adjacent to Secaucus Road	01-22-2003
03-006	Acquisition of Block 1970, Lot 5	01-22-2003
03-007	Exercise of the city's right to buy the Martin Luther King Drive Community Education center from the Jersey City Redevelopment Agency	02-26-2003
03-016	Sale of a portion of city-owned property to state operated school district of Jersey City	02-26-2003
03-025	Conveyance of sixteen properties to the Jersey City Redevelopment Agency for the construction of twenty-nine units of affordable housing	Defeated 02-11-2003
03-028	Conveyance of certain property within the Greenvilla Redevelopment Plan Area to the Jersey City Redevelopment Agency	Withdrawn 02-11-2003
03-042	Transfer of city-owned properties within the Monticello Avenue Redevelopment Area to the Jersey City Redevelopment Agency	03-26-2003
03-043	Transfer of city-owned property within the Green Villa Redevelopment Area to the Jersey City Redevelopment Agency	03-26-2003
03-045	Dedicates as open space a portion of Hudson Street	03-26-2003
03-051	Dedicates certain roadways, sidewalks and utilities from Newport Associates Development Company	04-09-2003
03-052	Dedicates certain city-owned property on Cornelison and Summit Avenue as park lands	04-09-2003
03-056	Transfer of city-owned property within the Martin Luther King Redevelopment Area to the Jersey City Redevelopment Agency	04-23-2003
03-061	Acquisition of Block 1301, Lot A from the Jersey City Redevelopment Agency for a new library building	05-14-2003
03-064	Transfer of city-owned property within the Ocean Bayview/Tumkey Development Areas to the Jersey City Redevelopment Agency	05-14-2003
03-073	Conveyance of Block 2026.1, Lots 2.A, 3.A, 3.B and 4.A	05-28-2003
03-076	Conveyance of 133 Lafayette Street, 222 Van Home Street and 236 Van Home Street to the Jersey City Community Housing Corporation	Defeated 05-28-2003
03-077	Conveyance of 16 Bergen Avenue to the Jersey City Community Housing Corporation	06-11-2003
03-080	Transfer of city-owned property within the Martin Luther King Drive Development Area to the Jersey City Redevelopment Agency	Withdrawn 05-28-2003
03-082	Transfer of city-owned property within the Monticello Avenue Redevelopment Area to the Jersey City Redevelopment Agency	Withdrawn 05-28-2003
03-086	Conveyance of property within the Greenvilla Redevelopment Plan Area to the Jersey City Redevelopment Agency	06-11-2003 VETOED 06-20-2003
03-087	Conveyance of the Medical Center Complex to the Jersey City Redevelopment Agency	06-11-2003 VETOED 06-20-2003 OVERRIDDEN by Council 08-13-2003
03-092	Conveyance of sixteen (16) properties to the Jersey City Redevelopment Agency	07-16-2003
03-100	Transfer of city-owned property within the Monticello Avenue Redevelopment Area to the Jersey City Redevelopment Agency	08-13-2003

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
03-105	Conveyance of the Medical Center Complex to the Jersey City Redevelopment Agency	Withdrawn 06-20-2003
03-111	Dedicates Block 1628, Lot 205 along Sip Avenue for a public roadway	09-10-2003
03-133	Dedicates a portion of Essex Street for roadway purposes	10-08-2003
03-136	Conveyance of 94-100 Martin Luther King Drive to Community Empowerment Organization, Inc.	10-22-2003
03-137	Conveyance of Block 1497, Lot 4 within the Caven Point Redevelopment Plan Area to the Jersey City Redevelopment Agency	10-08-2003 Rescinded by 04-016
03-143	Conveyance of 111 Arlington Avenue to the Community Empowerment Organization, Inc.	Defeated 11-25-2003
03-146	Acquisition of 194 York Street for construction of a new City Hall Annex	10-22-2003
03-151	Transfer of city-owned property within the Monticello Avenue Redevelopment Area to the Jersey City Redevelopment Agency	11-25-2003
03-153	Dedicates Second Street and Erie Street to be known as Bishop Paul Moore, Jr. Place	01-14-2004
03-156	Acquisition of Block 2078-A, Lots 1, B, C, D, 9,10,11,12, K, L, M, N, 15, 16, and part of Lots J4 from the state of New Jersey	11-25-2003
03-159	Conveyance of 111 Arlington Avenue to the Community Empowerment Organization, Inc.	12-10-2003
03-160	Conveyance of certain sites within the Martin Luther King Drive Redevelopment Area to St. James A.M.E. Development Corporation	01-14-2004
04-001	Conveyance of 241 Martin Luther King Drive to Building an Empire, Inc.	03-10-2004
04-012	Conveyance of 209 Ninth Street, Block 251, Lot 57 in addition to the payment of funds and acquisition of 253-255 and 257 Marin Boulevard, Block 200, Lots R. 1, S. 1 for the construction of a new City Hall Annex	Defeated 02-11-2004
04-016	Conveyance of a portion of the Caven Point Redevelopment Plan Area to the Jersey City Redevelopment Agency, and rescinds Ord. 03-137	02-25-2004
04-022	Conveyance of 209 Ninth Street, Block 251, Lot 57 in addition to the payment of funds and acquisition of 253-255 and 257 Marin Boulevard, Block 200, Lots R. 1, S. 1 for the construction of a new City Hall Annex	03-10-2004
04-032	Conveyance of a portion within the Morris Canal Redevelopment Plan Area to the City of Jersey City and dedicates the property as a park	03-24-2004
04-035	Acquisition of 204 Stegman Street from the Jersey City Redevelopment Agency	04-14-2004
04-036	Conveyance of one property to the Jersey City Redevelopment Agency	04-14-2004
04-037	Transfer of city-owned property at 120-122 Monticello Avenue within the Monticello Avenue Redevelopment Agency to the Jersey City Redevelopment Agency	04-14-2004
04-038	Transfer of city-owned property at 15.5 Oak Street within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	04-14-2004
04-039	Authorizes the sale of Block 790 parts of Lot 1 to New Jersey Transit for the construction and operation of the Hudson Bergen Light Rail System	04-14-2004
04-049	Acquisition of 88-96 Virginia Avenue from the Jersey City Redevelopment Agency	05-12-2004
04-050	Conveyance of a portion of the Morris Canal Redevelopment Plan Area to the City of Jersey City and dedicates the property as a park	05-12-2004
04-054	Transfer of city-owned property within the Exchange Place North Redevelopment Area to the Jersey City Redevelopment Agency	Withdrawn 05-12-04

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
04-057	Acquisition of property located on Dwight Street from the Jersey City state-operated school district and the conveyance of property located on Bergen Avenue to the Jersey City state-operated school district	06-09-2004
04-058	Acquisition of 222 Bergen Avenue for a parking facility for the public school district	06-09-2004
04-061	Transfer of city-owned property within the Boland Street Redevelopment Area to the Jersey City Redevelopment Agency	06-23-2004
04-066	Conveyance of 265 Martin Luther King Drive to the Jersey City Community Housing Corporation	Tabled 06-23-2004
04-083	Transfer of city-owned property at 121 MLK Drive and 186-188 Woodlawn Avenue within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	09-08-2004
04-089	Acquisition of property located within Block 1951, Lot 33, commonly known as 24 Monticello Avenue from Astor Place Neighborhood Association Inc.	09-08-2004
04-096	Acquisition by purchase or condemnation property located within Block 212, Lot M, Block 247, Lot 50A, Block 280, Lot 50A, Block 317.5, Lot 50A, Block 354.1, Lot 50A, Block 389.1, Lot 50 and Block 415, Lots 50 and 50.PL, commonly known as the Sixth Street Embankment	09-08-2004
04-105	Transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	09-22-2004
04-111	Acquisition of property located on 103-111 Martin Luther King Drive from the Jersey City Parking Authority; conveyance of property located at 302-308 Fairmont Avenue and 7 Boland Street to the Jersey City Parking Authority	10-27-2004
04-123	Conveyance of 108 Storms Avenue to the Jersey City Community Housing Corporation	10-27-2004
04-124	Conveyance of 299-301 Bergen Avenue to the Jersey City Community Housing Corporation	10-27-2004
04-136	Acquisition of property located within Block 1301, Lot 8.A, commonly known as 222 Bergen Avenue; conveyance of Block 1421, Lot 11, commonly known as 94 Winfield Avenue	11-10-2004
04-139	Conveyance of Block 2074, Lot G, commonly known as 364 Whiton Street to Jeremy Dopplet and David Waller	11-23-2004
04-145	Acquisition of property located within Block 2081, Lots Ai, 13, 14,15,16, 17A, 18A, 19A and 20A, commonly known as 73-85 Bishop Street from the Jersey City Redevelopment Agency	01-12-2005
05-006	Transfer of partnership interest in 101 Hudson Urban Renewal Associates	01-26-2005
05-014	Conveyance of certain unimproved property in Secaucus, known as Block 1 Lot 3, consisting of approximately 14 acres, to the American Littoral Society for recreational and educational purposes	02-23-2005
05-022	Transfer of city-owned property within the LaFayette Park Redevelopment Area to the Jersey City Redevelopment Agency	03-09-2005
05-036	Conveyance of 99 Bright street, and confirming the conveyance of 101 Bright Street, to the state operated school district for the construction of new Public School #3	04-13-2005
05-041	Amending Ordinance McC-410 authorizing the transfer of certain property within Block 844-5 to St. Joseph's School for the Blind and releasing the property from a right of reversion	04-27-2005
05-044	Authorizing the transfer of city-owned property at 476, 478 and 498 Ocean Avenue within the Ocean Bayview Redevelopment Area to the Jersey City Redevelopment Agency	04-27-2005

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
05-047	Authorizing the conveyance of 29 Grant Avenue, 121 Grant Avenue and 123—125 Myrtle Avenue to the Jersey City Episcopal Community Development Corporation	04-27-2005
05-048	Amending Ordinance 04-096 authorizing the City of Jersey City to acquire by purchase or condemnation certain property collectively known as the Sixth Street Embankment to include two additional properties, specifically Block 446, Lots 18A and 18B	Defeated 04-13-2005
05-064	Amending Ordinance 04-096 that authorized the city of Jersey City to acquire by purchase or condemnation certain property collectively known as the Sixth Street Embankment, to include one additional property, specifically Block 446, Lot 18A	06-08-2005
05-074	Authorizing the acquisition of a portion of Block 20781.1 Lot 2 (a vacated portion of Maple Street) from the State of New Jersey	06-22-2005
05-082	Authorizing the City of Jersey City to accept title to 528-530 Ocean Avenue from the Jersey City Development Corporation	06-22-2005
05-086	Transfer of a one percent ownership interest in the Siena Urban Renewal Associates, LP	06-22-2005
05-098	Conversion and transfer of the second amended financial agreement from Portofino Urban Renewal, LLC to Portofino Waterfront Urban Renewal, LLC	08-10-2005
05-099	Termination of financial agreement, addendum and contribution agreement between the City of Jersey City and 50 Dey Street Urban Renewal, LLC	08-10-2005
05-100	Termination of financial agreement between City of Jersey City and Salem Lafayette Urban Renewal Associates, LP	08-10-2005
05-103	Authorizing the conveyance of 230 Stegman Street in settlement of the matter entitled Stegman Realty One, LLC; Stegman Realty Two, LLC; Stegman Acquisition, LLC and Stegman Street, LLC v. City of Jersey City Dk. No. HUD-L-4375-04	08-10-2005
05-104	Authorizing the conveyance of 376-382 Bergen Avenue to Jersey City Community Housing Corporation, to effectuate the rehabilitation of 43 units of low income senior citizen rental housing	Withdrawn 07-13-2005
05-109	Authorizing the conveyance of 230 Stegman Street in settlement of the matter entitled Stegman Realty One, LLC; Stegman Realty Two, LLC; Stegman Acquisition, LLC and Stegman Street, LLC v. City of Jersey City Dk. No. HUD-L-4375-04	Withdrawn 08-10-2005
05-110	Termination of the financial agreement between the City of Jersey City and 30 River Court East Urban Renewal Company	Withdrawn 08-10-2005
05-112	Rescinding Ordinance 03-160 authorizing the conveyance of property to St. James A.M.E. Development Corporation and terminating the development agreement with St. James A.M.E. Development Corporation dated June 3, 2004	09-14-2005
05-119	Terminating the financial agreement, addendum and contribution agreement between the City of Jersey City and Polar One East Urban Renewal Associates, LLC	09-28-2005
05-138	Authorizing the acquisition of 21—25 Clinton Avenue from the Jersey City Redevelopment Agency	10-12-2005
05-140	Accepting from Danitom Development, Inc. a dedication of certain roadways, sidewalks, and utilities located adjacent to 477-487 Communipaw Avenue	10-12-2005
05-141	Authorizing the transfer of city-owned property within the Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency	10-12-2005
05-145	Conveyance of certain unimproved property in Secaucus, known as Block 1 Lot 3, to the Hudson County or the American Littoral Society for recreational and educational purposes	10-12-2005

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
05-149	Amending Ordinance 03-146 that authorized the acquisition of Block 200, part of Lot N1, more commonly known as 194 York Street to reduce the area to be acquired and reduce the purchase price	10-26-2005
05-164	Conveyance of certain property within the Martin Luther King Drive Redevelopment Plan Area to the Jersey City Redevelopment Agency	11-22-2005
06-019	Authorizing conveyance of 376-382 Bergen Avenue to Jersey City Community Housing Corporation	02-22-2006
06-022	Authorizing transfer of city-owned property within Martin Luther King Drive Redevelopment Area to Jersey City Redevelopment Agency	02-22-2006
06-024	Authorizing acquisition for new west district and fire facility	04-12-2006
06-076	Authorizing the transfer of city-owned property within the Morris Canal Redevelopment area to the Jersey City Redevelopment Agency.	06-28-2006
06-095	Authorizing the conveyance of Block 60, Lots 27A, 27C and 40, within the Liberty Harbor North Redevelopment Plan Area to the Jersey City Redevelopment Agency	08-16-2006
06-096	Amending Ordinance 03-051 accepting from Newport Associates Development Company a dedication of certain roadways, sidewalks and utilities located within the Jersey Avenue Redevelopment Area	04-25-2007
06-135	Establishes abandoned property list and authorizes public officer to designate qualified rehabilitation entities	11-21-2006
06-138	Authorizes execution of quitclaim deed from the City of Jersey City to 83-85 Waverly Street	11-21-2006
06-146	Accepting from Centex Homes, LLC a dedication of certain roadway and utilities within Republic Container Redevelopment Area	12-13-2006
07-003	Consenting to the assignment and sale of the membership interests of Morgan Holdings to Toll Morgan in the 126-142 Morgan Street Project	01-24-2007
07-010	Authorizing the transfer of city-owned property within the Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency	02-14-2007
07-021	Authorizing the City of Jersey City to (1) Acquire certain property from 159 Second Street Urban Renewal, LLC., and (2) Convey the property to the qualified and certain moderate income artists	02-28-2007
07-034	Accepting from New Jersey City Affordable Housing, LLC. a dedication of a certain roadway Cul De Sac extension of Bemius Court within the Greenville Redevelopment Area	03-14-2007
07-055	Authorizing the transfer of title to city-owned property at 429 - 431 Pacific Avenue. (Block 2091, Lot D & E) within the Lafayette Park I Redevelopment Area to the Jersey City Redevelopment Agency	04-11-2007
07-071	Authorizing the acquisition of 228 Bay Street from the Jersey City Parking Authority for the sum of $2,755,000 payable as follows: 1) Payment of $1,500,000; 2) Conveyance of 33 and 37 Oakland Avenue valued at $150,000; and 3) Release of certain indebtedness in the amount of $1,105,000 for projects at 871 Bergen Avenue & 89 -101 Cambridge Avenue	04-25-2007
07-086	Accepting a dedication of certain roadways, sidewalks and utilities located within the Water Street Redevelopment Area; extension of Grant Av, Soho Dr, Tribeca Av and Claremont Av	05-09-2007
07-089	Amending ordinance that authorized the City of Jersey City to (1) Acquire certain property from 159 Second Street Urban Renewal, LLC; and (2) Conveyance the property to the qualified and certified moderate income artists to substitute new purchasers for unit #205 and Unit #605	05-09-2007

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
07-093	Approving the conveyance of 25 condominium units from 95 Van Damure to 300 Communipaw, Inc.	05-23-2007
07-104	Authorizing the execution of an agreement in which the Port Authority of New York and New Jersey will contribute $4,000,000 toward the construction of the Public Safety Communications Center at Bishop Street and the Parking. Facility at Grand Street and Jersey Avenue	06-13-2007
07-105	Authorizing the conveyance of a deed to part of Block 60.06, Lot 2 (Formerly known as Block 60, Plot A) to the Jersey City Redevelopment Agency	06-13-2007
07-112	Authorizing an amendment to Ordinance 06-024 to include the acquisition by purchase or condemnation of Block 1931, Lot 26 for the New West District and Fire Facility Project	06-27-2007
07-119	Amending Ordinance that authorized the City of Jersey City to (1) Acquire certain property from 159 Second Street Urban Renewal, LLC., and (2) Convey the property to the qualified and certified moderate income artists to substitute new purchasers for Unit #407	06-27-2007
07-128	Authorizing the transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency. (270, 272, 276 & 278 Martin Luther King Drive)	07-18-2007
07-138	Authorizing the execution of two developers' agreements and the transfer of 155 Bergen Avenue, 119 Rutgers Avenue, 94 Wegman Parkway and 21-23 Orient Avenue pursuant to N.J.S.A. 40A: 12-21(1) to the Jersey City Episcopal Community Development Corp., a Nonprofit Housing Corporation	08-08-2007
07-155	Authorizing the transfer of city-owned property at 509 Martin Luther King Drive (Block 1960, Lot N.I) within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	09-11-2007
07-159	Authorizing the transfer of city-owned property within Lafayette Park Redevelopment Area to the Jersey City Redevelopment Agency. (343 Johnston Avenue)	09-26-2007
07-164	Authorizing the assumption of the City of Jersey City's mortgage affecting property known as 45-51 Martin Luther King Drive and the subordination of the city's mortgage to the mortgage of Community Preservation Corporation	10-24-2007
07-167	Authorizing the acquisition of Block 1464, Lot 0000A, and more commonly known as 40 Van Nostrand Avenue, Jersey City, New Jersey	10-24-2007
07-174	Authorizing the acquisition of Block 1464, Lot C, more commonly known as 36 Van Nostrand Avenue, Jersey City, New Jersey	11-07-2007
07-179	Authorizing the transfer of city-owned property within the Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency. (453 Communipaw Avenue)	11-28-2007
07-180	Authorizing the transfer of city-owned property within the Jackson Avenue Redevelopment Area to the Jersey City Redevelopment Agency. (24 Monticello Avenue)	11-28-2007
07-188	Authorizing the conveyance of certain property on or near Garfield Avenue to Jersey City Redevelopment Agency. (2 Dakota Street, 880 Garfield Avenue, 884 Garfield Avenue and 70 Carteret Avenue)	01-09-2008
08-013	Authorizing the acquisition by purchase or condemnation of Block 1825.A, Lots A.6 and A.7 for the purpose of expanding the Boyd McGuiness Park	03-26-2008
08-015	Authorizing the acquisition of Block 1464, Lot 16, more commonly known as 34 Van Nostrand Avenue, Jersey City, New Jersey	02-27-2008
08-018	Authorizing the conveyance of Block 7045, Lot B.1, more commonly known by the street address of 100 Hoboken Avenue, to Jersey City Redevelopment Agency	03-12-2008
08-019	Authorizing the reacquisition of 111 Arlington Avenue from Community Empowerment Organization, Inc. to the City of Jersey City	03-12-2008

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
08-020	Authorizing the acquisition of Block 1994, Lot 8.99, formerly known as Block 1994, Lots 8 & 9 more commonly known by the street address of 14 -16 Orient Avenue from Martin Luther King Drive Urban Renewal Joint Venture Partnership	03-12-2008
08-026	Terminating the financial agreement and prepayment agreement between the City of Jersey City and Brass Works Urban Renewal Company, LLC	Withdrawn 02-27-2008
08-028	Authorizing the conveyance of certain unimproved city-owned property to enable the State of New Jersey, to construct improvements to Route 1 & 9 - St. Paul's Avenue Bridge	03-12-2008
08-034	Authorizing the 1) Acquisition of certain property from the Jersey City Municipality Utilities Authority and the Jersey City Incinerator Authority and 2) Conveyance of that property together with other city-owned property, to the Jersey City Redevelopment Agency	03-26-2008
08-044	Transfer of property to Jersey City Redevelopment Agency	04-23-2008
08-059	Accepting dedication of certain property located at the southerly portion of Marin Boulevard, including roadways, sidewalks, and utilities to be located therein, within the Liberty Harbor North Redevelopment Plan Area	05-14-2008
08-061	Amending Ordinance 06-095 that authorized the conveyance of Block 60.15, Lots 1 and 2, and Block 60.26, Lot 1, formerly known as Block 60, Lots 27A, 27C and 40, within the Liberty Harbor North Redevelopment Plan Area to the Jersey City Redevelopment Agency	05-28-2008
08-075	Accepting dedication of certain property located at the southerly portion of Marin Boulevard, including roadways, sidewalks, and utilities to be located therein, within the Liberty Harbor North Redevelopment Plan Area	06-11-2008
08-094	Authorizing the acquisition by purchase or condemnation of Block 1788, Lots 39 and 40, more commonly known as 255-261 Kearney Avenue, for a new fire house	07-16-2008
08-113	Authorizing the conveyance of Block 1319, Lots A.O9, A.08, A.07, A.03, 59, 58.A, and 57.A, more commonly known by the street addresses of 194,196, 198, 200, 208,210 and 212 Martin Luther King Drive respectively, to Jersey City Redevelopment Agency	08-20-2008
08-123	Authorizing the conveyance of certain unimproved city-owned property to enable the State of New Jersey to construct improvements to Route 7/Wittpenn Bridge	09-10-2008
08-172	Authorizing the conveyance of 886 Bergen Avenue, Block 1872, Lot SI.99 to the Jersey City School District	12-17-2008
09-011	Ordinance amending Ordinance 08-028 to approve the fair market value of certain property to be conveyed to the Department of Transportation for improvements to Route 1 & 9, and St. Paul's Avenue Bridge, and remove Block 640, Lot 108,10 Cover Street from the property to be conveyed	02-11-2009
09-014	An ordinance authorizing the transfer of city-owned property within the Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency	02-25-2009
09-015	An ordinance authorizing the transfer of city-owned property within the Monticello Avenue Redevelopment Area to the Jersey City Redevelopment Agency	02-25-2009
09-016	An ordinance authorizing a one (1) year extension of the lease with Essex Plaza Management, L.L.C., for a portion of 361 Montgomery Street for use by the city as a senior citizen center	02-25-2009
09-020	An ordinance authorizing the transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	03-11-2009

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
09-036	Ordinance accepting from K. Hovanian at 77 Hudson Street Urban Renewal Company, LLC and EQR-Urban Renewal 77 Hudson Street, LLC a deed of easement of certain sidewalks, roadways and utilities located within the Colgate Redevelopment Areas and adjoining the easterly side of Greene Street between Grand Street and Sussex Street	04-08-2009
09-038	Ordinance authorizing the acquisition by purchase or condemnation of a portion of the PJP Landfill Site, Truck Route 1&9 and Sip Avenue, Block 1627, Lots LP, 2.A, 3.B & 5.A, and Block 1639.A, Lots l.C, 3,4,4.C, 6.A & 7, for use as open space and a park	04-08-2009
09-039	Ordinance authorizing the acquisition by purchase or condemnation of Block 1510, Lots 29, X.I & Y, and Block 1505.05, Lot D.1, more commonly known by the street address of 13-15 Linden Avenue, for a new municipal public works facility	04-08-2009
09-040	Ordinance authorizing the conveyance of Block 1746, Lots C.4 and E.l (Old Colony) to the County of Hudson	04-08-2009
09-041	Ordinance authorizing the conveyance of Block 2073, Lots 1, A, 27.99, and 32-within the Morris Canal Redevelopment Plan Area to the Jersey City Redevelopment Agency	04-08-2009
09-069	An ordinance of the City of Jersey City, in the County of Hudson, New Jersey, providing for the acquisition of various fire department equipment and apparatus by means of a loan from the Hudson County Improvement Authority and appropriating $2,000,000.00 therefor, and providing for the issuance of $2,000,000.00 in general improvement bonds or notes of the City of Jersey City to finance the same	06-17-2009
09-089	An ordinance authorizing the partial acquisition by purchase or condemnation of Block 1507, Lots 20, 21 and 20X (AKA 20T01), and the acquisition by purchase of easements for passage over certain N.J. Turnpike Authority and Contrail rights-of-way for a new municipal public works facility	08-12-2009
09-108	Ordinance authorizing the acquisition from the Jersey City Redevelopment Agency of Block 1328, Lots l.D, l.E, l.F, l.G, ll.F, ll.H, ILK, and ILL within the Martin Luther King Drive Redevelopment Area	10-28-2009
09-128	Ordinance authorizing the conveyance of 90 Virginia Avenue to the Jersey City Community Housing Corporation, a nonprofit corporation, to rehabilitate the property as fourteen units of low and moderate income condominium units	01-13-2010
09-129	Ordinance amending Ordinance 04-123 approved on October 27, 2004 authorizing the conveyance of 108 Storms Avenue to the Jersey City Community Housing Corporation to rehabilitate the property as low and moderate income rental housing	01-13-2010
09-130	Ordinance amending Ordinance 04-124 approved on October 27, 2004 authorizing the conveyance of 299-301 Bergen Avenue to the Jersey City Community Housing Corporation to rehabilitate the property as ten (10) units of low and moderate income rental housing	01-13-2010
10-001	Ordinance accepting a dedication of certain land and improvements located within the Powerhouse Arts District Redevelopment Area	01-27-2010
10-055	Authorizing conveyance of certain properties to the Jersey City Development Agency	04-28-2010
10-062	Naming the ice skating rink at Pershing Field The Charlie Heger Ice Skating Rink	04-28-2010
10-102	Authorizing conveyance of property to the Community Asset Preservation Alliance of Jersey City, Inc. to effectuate the rehabilitation of 13 units of low and moderate income rental housing	08-04-2010
10-118	Authorizing transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	09-29-2010

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
10-119	Authorizing the execution of a developer's agreement and the transfer of 34 Van Nostrand Avenue, 36 Van Nostrand Avenue, 38 Van Nostrand Avenue, and 40 Van Nostrand Avenue pursuant to N.J.S.A. 40A: 12-21 (j) to the Jersey City Episcopal Community Development Corporation	09-29-2010
10-126	Amendment to Ordinance Number 10-055 which authorized the transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	10-27-2010
10-143	Authorizing the city's acceptance of a deed from the trustees of the Free Public Library regarding 1843 Kennedy Boulevard, Block 1277.5, Lot 31.99 (a/k/a Greenville Public Library)	11-23-2010
11-005	Authorizing 1) the sale of certain unimproved property and 2) amending the grant agreement with the Port Authority of New York/New Jersey to fund the PJP/Siegel acquisition	01-26-2011
11-013	Consenting to the sale and assignment of the tax exemption and financial agreement from 70 Hudson Street Urban Renewal Associates, LLC. to RT 70 Hudson Urban Renewal, LLC	02-09-2011
11-014	Consenting to the sale and assignment of the tax exemption and financial agreement from 90 Hudson Street Urban Renewal Associates, LLC, to RT 90 Hudson Urban Renewal, LLC	02-09-2011
11-034	Authorizing the conveyance of 90 Virginia Avenue to the Jersey City Community Housing Corporation, for the purpose of constructing 10 emerging market residential condominium units and 3 affordable housing condominium units	03-23-2011
11-035	Authorizing the conveyance of 242 Bergen Avenue to Jersey City Episcopal Community Development Corporation, for the purpose of constructing 12 units of affordable rental housing	03-23-2011
11-046	Consenting to the sale and assignment of the tax exemption and financial agreement from PHM Urban Renewal Associates, LLC, to Gaia Journal Square Urban Renewal Associates, LLC	04-27-2011
11-049	Authorizing the conveyance of certain unimproved city-owned property to enable the State of New Jersey to construct improvements to Route 7/Wittpenn Bridge	05-11-2011
11-090	Adopting amendments to the zoning map of the Land Development Ordinance expanding the Restaurant Overlay Zone	08-31-2011
11-095	Amending Ordinance 11-035 to authorize the conveyance of 242 Bergen Avenue to Bergen Court Inc., a non-profit corporation for the purpose of constructing 12 units of affordable rental housing	08-31-2011
12-003	Adopting an amendment to the zoning map expanding the restaurant overlay zone	01-25-2012
12-010	Accepting a dedication of certain land and improvements located within the Marion Works Office/Residential District (creation of new park 47 Dey St)	02-08-2012
12-032	Authorizing the conveyance of certain property at 8 Erie St; 228 Bay St; and 223-231 First St to the Jersey City Redevelopment Agency	03-28-2012
12-048	Adopting an amendment to the zoning map further expanding the Restaurant Overlay Zone	04-11-2012
12-092	Authorizing the conveyance of certain unimproved city-owned property known as Block 718, Lot 5, to Christ Hospital	08-01-2012
12-093	Authorizing the transfer of city-owned property within the Bright and Varick Redevelopment Area to the Jersey City Redevelopment Agency	08-01-2012
12-095	Authorizing the transfer of city-owned property within the 826 Ocean Avenue Redevelopment Area to the Jersey City Redevelopment Agency	08-01-2012
12-096	Authorizing the transfer of Jersey City Redevelopment Agency-owned property within the Martin Luther King Drive Redevelopment Area to the city	08-01-2012

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
13-054	Authorizing the execution of a deed of conservation easement for the properties located at Broadway and Sip Avenue and identified as Block 1627, Lots LP, 2.A, 3.B, 5.A and Block 1639.A, Lots l.C, 3,4,4.C, 6.A, 7, collectively known as the Hackensack River Waterfront Park Acquisition Property	05-08-2013
13-055	Authorizing the execution of a deed of conservation easement for the property known as block 1825.A, Lots A.6 and A.7, more commonly known as 91-95 Duncan Avenue (the Boyd McGuiness Park Expansion)	05-08-2013
13-121	Authorizing the transfer of properties owned by the Jersey City Redevelopment Agency within the Morris Canal Redevelopment Plan area to the City for the creation of Berry Lane Park	11-13-2013
13-144	Authorizing the City to sell City-owned property located in the Borough of Kinnelon, the Township of Jefferson, and the Township of Rockaway, which is known as the Split Rock Reservoir	1-15-2014
14-064	Vacating a portion of Grove Square consisting of approximately 3,451 square feet in order to align the street grid with the Liberty Harbor North Redevelopment Plan	06-25-2014
14-089	Authorizing the conveyance of City-owned property located at 265 Martin Luther King Drive to the Urban League of Hudson County, a non-profit corporation pursuant to N.J.S.A. 40A:12-21(k)	08-20-2014
14-103	Authorizing the City to file an offer of financial assistance (OFA) to acquire certain property collectively known as the Sixth Street Embankment from Conrail and such other Conrail properties as are necessary to connect with the main line in the vicinity of CP Waldo	09-23-2014
14-123	Authorizing the transfer of Block 30305, Lot 6 to the New Jersey Turnpike Authority	10-08-2014
14-128	Consent to 1) convey ownership of a project currently held solely by Grand LHNI Urban Renewal LLC, to include both KRE 18 Park Urban Renewal, LLC, and 18 Park Acquisition Urban Renewal, LLC, and result in joint and several ownership of the project by all three entities; and 2) assumption by all three entities of the financial agreement and the long term tax exemption	10-08-2014
14-167	Authorizing the City to accept title and ownership of all real property and all personal property owned by the Jersey City Parking Authority and to assume all leases executed by the Jersey City Parking Authority	01-14-2015
14-175	Ordinance authorizing the acquisition of Block 214, Lots 3 & 4 and Block 213, Lots 1 & 3 from 500 Manila Ave., LLC	01-14-2015
15-006	Authorizing the transfer of City-owned property located at 362 Summit Avenue within the Journal Square 2060 Redevelopment Area to the Jersey City Redevelopment Agency	02-10-2015
15-047	Amending Ord. No. 03-061 to authorize the imposition of environmental deed restrictions on Block 23103, Lot 23, more commonly known as 271-285 Martin Luther King Drive, the Cunningham Library	04-22-2015
15-068	Authorizing the transfer of City-owned property within the Bayfront I Redevelopment Area to the Jersey City Redevelopment Agency	05-27-2015
15-075	Authorizing the transfer of City-owned property within the Grand Jersey Redevelopment Area to the Jersey City Redevelopment Agency	06-10-2015
15-110	Authorizing the conveyance of 308 Whiton Street to the Jersey City Redevelopment Agency	09-09-2015
15-111	Accepting dedication of certain roadways, sidewalks, utilities, and a park located within the Liberty Harbor North Redevelopment Area	09-09-2015
15-186	Authorizing the City of Jersey City to file an offer of financial assistance [OFA] to acquire certain property collectively known as the Sixth Street Embankment from Conrail, and such other Conrail properties as are necessary to connect with the main fine in the vicinity of CP Waldo	01-13-2016

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	Subject Matter	Date of Adoption
16-009	Amending Ordinance 15-111 accepting the dedication of certain roadways, sidewalks, utilities, and a park located within the Liberty Harbor North Redevelopment Area	01-27-2016
16-017	Authorizing the conveyance of Block 25101, Lot 51, more commonly known by the street address of 152 Martin Luther King Drive, to the Jersey City Redevelopment Agency	02-10-2016
16-048	Adopting an amendment to the zoning map expanding the Restaurant Overlay Zone	03-23-2016
16-056	1) Authorizing the conveyance of Block 25101, Lot 51, more commonly known by the street address of 152 Martin Luther King Drive, to the Jersey City Redevelopment Agency; and 2) rescinding Ordinance 16-017	04-13-2016
16-073	Accepting from Unity Environmental Corp, a dedication of certain roadways, sidewalks and utilities located at the intersection of Franklin Street and Paterson Plank Road	05-11-2016
16-077	Granting permission to 58 Giles, LLC, its successors and/or assigns, to make private improvements in the public right-of-way of 940 Pavonia Avenue, [a/k/a 58 Giles Avenue) Jersey City, New Jersey, also known on the tax map of the City of Jersey City as Block 10404, Lot 29	05-11-2016
16-089	Adopting an amendment to the zoning map expanding the Restaurant Overlay Zone	05-25-2016
16-099	Authorizing the City to convey all City-owned lots within the property known as Berry Lane Park to the Jersey City Redevelopment Agency subject to the eventual reversion of the property for dedication as a City Park	06-15-2016
16-136	Authorizing the execution of a developer's agreement and the transfer of 90 Virginia Avenue pursuant to N.J.S.A. 40A: 12-21(1) to Garden State Episcopal Community Development Corporation, a nonprofit housing corporation	09-14-2016
16-158	Authorizing the transfer of City-owned property within the Ocean/Bayview Redevelopment Area to the Jersey City Redevelopment Agency	10-26-2016
16-166	Authorizing the transfer of City-owned property within the Journal Square 2060 Redevelopment Area to the Jersey City Redevelopment Agency	11-09-2016
16-175	Amending Ordinance 16.073 accepting from Unity Environmental Corp, a dedication of certain roadways, sidewalks and utilities located at the intersection of Franklin Street and Paterson Plank Road	11-22-2016
17-020	Accepting from COA 99 Hudson, LLC, a dedication of certain roadways, sidewalks and utilities within the Hudson Street right-of-way	03-08-2017
17-023	Authorizing the transfer of certain City-owned real property, identified on the tax map of the City of Jersey City as Block 21504, Lot 6, to the Jersey City Redevelopment Agency (65 Phillip Street)	03-22-2017
17-027	Authorizing the conveyance of seven residential condominium units (A, B, C, D, E, F.1 and G) within Block 11612, Lot 2, and more commonly known by the street address of 311 Washington Street, to the Jersey City Redevelopment Agency	03-22-2017
17-065	Authorizing the exchange of City property for State property to realign Jersey Avenue South of Mill Creek and to execute conservation easements required by New Jersey Department of Environmental Protection in connection with the Hudson River Waterfront Walkway	06-14-2017
17-073	Authorizing the City of Jersey City to sell property located at 26-30 Cook Street, 393 Hoboken Avenue, and 33-37 Oakland Avenue, Jersey City to the County of Hudson	06-28-2017
17-144	Authorizing an amendment to Ordinance 17-073 adopted on June 28,2017 to authorize an amendment to the agreement of sale with the County of Hudson dated June 29, 2017 for the sale of City-owned property at 26-30 Cook St, 393 Hoboken Av, and 33-37 Oakland Av, and the execution of an environmental remediation escrow agreement	10-25-2017

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	**Subject Matter**	**Date of Adoption**
18-023	Accepting the dedication of certain roadways, sidewalks, and utilities located within the Tidewater Redevelopment Area near Van Vorst Street and Dudley Street	03-28-2018
18-039	Authorizing the City to sell property located at 65 Commercial Street, 20 Commercial Street, and 2 Commercial Street, Jersey City to the Jersey City Municipal Utilities Authority	05-09-2018
18-071	Accepting from the Jersey City Housing Authority a dedication of a certain right-of-way within a portion of Lafayette Gardens known as Walter Mays Drive	07-18-2018
18-072	Accepting from the Jersey City Housing Authority a dedication of a certain right-of-way within a portion of Lafayette Gardens known as Barbara Place	07-18-2018
18-073	Accepting from the Jersey City Housing Authority a dedication of a certain right-of-way within a portion of Lafayette Gardens known as James Pop Curry Drive	07-18-2018
18-088	Authorizing the conveyance of Block 25001, Lot 68.01, more commonly known by the street address of 174-178 Martin Luther King, Jr. Drive, to Jersey City Redevelopment Agency	08-15-2018
18-132	Authorizing the conveyance of property and execution of project agreements regarding Powerhouse Redevelopment and agreements in connection with settlement of litigation with Port Authority and other documents in connection therewith	12-19-2018
18-137	Amending Ordinance 16-099 which authorized the conveyance of City-owned property to the Jersey City Redevelopment Agency (JCRA) to (1) remove the parkland restrictions on Block 18901, Lots 7, 8, 9, 10 & 12 which were never intended to be part of Berry Lane Park and (2) authorize the City to accept conveyance of the remainder of the property for Berrylane Park	12-19-2018
19-008	Authorizing the acquisition of Block 22502, Lots 36 and 37, more commonly known by the street addresses of 347-349 and 351-355 Martin Luther King Drive, respectively, from the Jersey City Redevelopment Agency	02-14-2019
19-013	Authorizing the transfer of certain City-owned real property, identified on the tax map of the City of Jersey City as Block 15801, Lots 34, 70, 73, 77, 78 and 79.01 to the Jersey City Redevelopment Agency	02-27-2019
19-037	Accepting a dedication of certain land and improvements located within the Powerhouse Arts District Redevelopment Area at Provost Street between Bay Street and Morgan Street, authorizing the execution of a dedication agreement with 126-142 Morgan Street Urban Renewal, LLC and 134 Bay Street, LLC, the execution of a deed of easement with 126-142 Morgan Street Urban Renewal, LLC and 134 Bay Street, LLC, and the execution of a deed of easement with 126-142 Morgan Street Urban Renewal, LLC	05-08-2019
19-043	Authorizing the conveyance of City-owned property located at 265 Martin Luther King Drive, a/k/a Block 23405, Lot 26, F/K/A Block 1306, Lot 28B to the Urban League of Hudson County, a non-profit corporation pursuant to N.J.S.A. 40A:12-21(k)	05-08-2019
19-071	Releasing the reverter in the December 28, 2006 deed conveying land in Secaucus, New Jersey, known as Block 1, Lot 3, to Hudson County	06-26-2019
19-072	Authorizing the conveyance of Block 17905, Lots 18, 19, 20, 21 and 22 and Block 18602, Lots 3 and 8, more commonly known by the street addresses of 612-616 Communipaw Avenue, 91-93 Harrison Avenue and 574-582 Communipaw Avenue, respectively, to the Jersey City Redevelopment Agency	09-11-2019
19-079	Authorizing the conveyance of Block 16901, Lot 17, Block 22601, Lot 36 and Block 11401, Lot 13, more commonly known by the street addresses of 51 Crescent Avenue, 342 Martin Luther King Drive and 174 Newark Avenue, respectively, to Jersey City Redevelopment Agency	08-14-2019
19-126	Amending Ordinance 19-079 to correct the block, lot and address of the property conveyed to the Jersey City Redevelopment Agency	09-25-2019

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	**Subject Matter**	**Date of Adoption**
20-042	Consenting to the transfer and assignment of the property and tax exemption held by 720-726 Bergen Avenue Urban Renewal, LLC to 280 Fairmount Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	06-24-2020
20-073	Adopting an amendment to the zoning map expanding the Restaurant Overlay Zone to include Mallory Avenue in Jersey City	09-23-2020
20-083	Acknowledging the transfer and assignment of the property known as 295 Thomas F. McGovern Drive, Jersey City and consenting to the transfer of the tax exemption held by Exeter Thomas McGovern Land Urban Renewal, LLC to CICF II - NJ1B02 Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	10-07-2020
20-096	Accepting from 900 Garfield, LLC and the Jersey City Redevelopment Agency dedications of property for inclusion in Garfield Avenue	11-12-2020
21-034	Accepting from Maple Street Row, LLC a dedication of certain newly constructed rights-of-way that extend Maple Street and Garabrant Street	07-14-2021
21-037	Authorizing the sale of a denial of access, the sale of easements, and the sale of land in fee to the State of New Jersey, Department of Transportation (DOT) of real property owned by the City known as Block 11702, Lot 5; Block 11706, Lot 1; and Block 11707, Lot 2 also known on DOT maps as parcels E12A, E12C, E12D, E12E, 12F, 12G, and DA12B located near structural supports of the Pulaski Skyway near the PJP landfill site	08-18-2021
21-038	Acknowledging the transfer and assignment of the property known as 16 Bennett Street, Jersey City, a/k/a Block 20702, Lot 60.01 and consenting to the transfer of the tax exemption held by 16 Bennett Street Urban Renewal, LLC to 16 Bennett JC Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	06-30-2021
21-059	Authorizing the acceptance of a condominium unit located within property commonly identified on the tax maps of the City as Block 15802, Lot 1.01, C8001 from 100 Monitor Commercial Unit LLC	09-09-2021
21-080	Authorizing the transfer of certain City-owned real property, identified on the tax map of the City of Jersey City as Block 21901.01, Lots 1, 4, 6, 8 and 9 and Block 21901, Lot 4, to the Jersey City Redevelopment Agency	12-15-2021
21-081	Authorizing the sale of an easement to the New Jersey Transit Corporation affecting real property owned by the City in Block 287, Lot 5 in the Town of Kearny, New Jersey for purposes of facilitating New Jersey Transit's Portal Bridge Project	12-15-2021
21-082	Authorizing the City to sell property located at 65 Commercial Street, 20 Commercial Street, and 2 Commercial Street, Jersey City to the Jersey City Municipal Utilities Authority	12-15-2021
22-012	Authorizing the acquisition of Block 19002, Lot 7, more commonly known by the street address of 287 Pine Street, from the Jersey City Redevelopment Agency	02-24-2022
22-016	Authorizing the acquisition by purchase or condemnation of Block 16801, Lot 12 a/k/a 3-5 Storms Avenue for the construction of a new park to be known as Fairmount Square Park	02-24-2022
22-036	Authorizing the City to purchase from the State of New Jersey, Department of Transportation (NJDOT) real property known as Parcel 42B on NJDOT maps also known as a Block 1912, Lot P4 on the City's former tax map in connection with the City's construction of Fairmount Square Park at the intersection of Fairmount Avenue, Storms Avenue, Summit Avenue, and Jewett Avenue	04-27-2022
22-037	Authorizing the acquisition by purchase or condemnation of Block 3702, Lot 22 a/k/a 117 Hutton Street for the construction of a new police precinct	04-27-2022
22-038	Authorizing the acquisition by purchase or condemnation of Block 3702, Lot 39 a/k/a 18 Sherman Place for the construction of a new police precinct	04-27-2022

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	**Subject Matter**	**Date of Adoption**
22-039	Authorizing the acquisition by purchase or condemnation of Block 26101, Lot 5 a/k/a 1 West Side Avenue for the construction of a new police precinct	04-27-2022
22-042	Authorizing the transfer of certain City-owned real property, identified on the tax map of the City as Block 19903, Lots 1 and 5 to the Jersey City Redevelopment Agency	05-25-2022
22-058	Authorizing the City to acquire from Liberty National Development Co, LLC certain real property known as Block 27503, Lot 13 on the City's tax map located at the foot of Chapel Avenue for the purposes of reinstating ferry service to the public	06-29-2022
22-077	Accepting the dedication of the Jersey Avenue bridge over the Morris Canal	09-08-2022
22-089	Authorizing the acceptance of three condominium units located within property commonly identified on the tax maps of the City as Block 11506, Lot 2.01, otherwise known as 151 Bay Street	10-26-2022
22-111	An ordinance of the city (1) authorizing the transfer of the Loew's Jersey Theatre located in the Journal Square 2060 Redevelopment Area and identified on the tax map of the City as Block 10601, Lot 41 to the Jersey City Redevelopment Agency, (2) authorizing the City to provide funding to the Jersey City Redevelopment Agency with the resources necessary to address contingencies, and (3) appropriating $15,000,000 therefor and if necessary authorizing the issuance of up to $15,000,000 bonds or notes of the City to finance the cost thereof	01-11-2023
23-005	An ordinance authorizing the acquisition of the Courthouse Administration Building property located at 595 Newark Avenue, Jersey City, New Jersey from Hudson County for use as a public park	02-08-2023
23-009	Authorizing the acceptance of a deed from Parks at VL South LLC affecting Block 6005, Lot 2 a/k/a the Gateway Plaza Park and Block 6902, Lot 16 a/k/a the Van Leer South Park	02-23-2023
23-010	Authorizing the sale of an easement to Fairkings Partners LLC affecting real property owned by the City known as Lot 1, Block 7001, as shown on the official tax maps of the Township of Fairfield	02-23-2023
23-035	Authorizing the sale of an easement to Kingsland Development Urban Renewal, LLC affecting real property owned by the City known as Block 233, Lots 13, as shown on the official tax maps of the Township of Lyndhurst	05-10-2023
23-042	Authorizing the sale of an easement to the Public Service Electric and Gas Company affecting real property owned by the City known as Block 155, Lot 6 in the Township of Little Falls, Passaic County, New Jersey	03-24-2023
23-046	Authorizing the transfer of the Longwood Dam located at Tax Lot 1 in Tax Block 353.01 (f.k.a. Tax Lot P/O 1 in Tax Block 339) on the official tax map of the Township of Jefferson, Morris County to the Jersey City Municipal Utilities Authority	05-24-2023
23-050	A bond ordinance providing for the acquisition of, and payment of the purchase price for, real property located at Block 9501, Lot 21 on the official tax map of the City; appropriating $17,200,000 therefor and authorizing the issuance of $17,200,000 bonds or notes of the City to finance the costs thereof	06-14-2023
23-064	Authorizing the acquisition by purchase or condemnation of Block 10601, Lot 42 on the tax map of the City, also known as 50 Journal Square, for the construction of a public park	06-28-2023
23-082	Authorizing the transfer of City-owned real property identified on the tax map of the City as Block 11401, Lot 25 to the Jersey City Redevelopment Agency	09-07-2023
23-104	Accepting the dedication of certain roadways, sidewalks, and utilities located on a portion of Regent Street between River Street and Douglas and Arthur Skinner Memorial Drive, a portion of the southerly end of River Street, and a portion of Regent Street between Liberty View Drive and River Street in the Liberty Harbor North Redevelopment Area	11-08-2023

TABLE 3. LAND ACQUISITIONS AND TRANSFERS		
Ord. No.	**Subject Matter**	**Date of Adoption**
24-020	Authorizing the acquisition of a section of the Hudson River Walkway known as Block 14502, Lot 4, formerly known as Block 8, Lot 5 from the Jersey City Redevelopment Agency	04-24-2024
24-054	Authorizing the sale of certain easement and property ownership rights in City property located at Block 287, Lot 5, and Block 149, Lot 9 on the tax maps of the Town of Kearny to the New Jersey Department of Transportation for $1,098,000.00 subject to the City's rights to continued use and maintenance of its waterline	06-26-2024
24-058	Authorizing the acquisition by purchase or condemnation of a portion of a private easement located between City Block 9905, Lot 9 and a portion of Block 9906, Lot 1 that traverses the Brunswick Community Garden	07-10-2024
25-021	Authorizing the transfer of City-owned real property identified on the Tax Map of the City as Block 14905, Lots 17, 18, and 19 a/k/a 302 Fairmount Avenue to the Jersey City Redevelopment Agency	03-12-2025
25-025	Amending Ordinance 22-089 that authorized the City to accept from 134 Bay Street, LLC three theater condominium units within the property located at 155 Bay Street, Jersey City and authorizing the City to accept from 134 Bay Street, LLC one residential condominium unit at 155 Bay Street	03-26-2025
25-053	Authorizing the conveyance of Block 11401, Lot 14, more commonly known by the street address of 247 First Street, to the Jersey City Redevelopment Agency	05-07-2025
25-074	Amending the Jersey City Official Zoning Map	07-16-2025
25-081	Authorizing the City to acquire certain real property known as Block 27503, Lot 13.01 on the City's Tax Map located at the foot of Chapel Avenue from Liberty National Development Co, LLC for the purposes of ensuring continued ferry service to the public	08-20-2025
26-004	Authorizing the acceptance of Block 11612, Lot 3, more commonly known by the street address of 95 Morgan Street, from 95 Morgan Street Development, LLC	02-25-2026

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
C-890	Easement	02-09-1989
C-905	Lease with Spectrum Health Care Inc.	03-29-1989
C-907	Lease with CET, Inc.	03-09-1989
C-911	Lease with Greenville Steering Committee	03-09-1989
C-960	Lease with Visiting Homemakers of Hudson County	05-25-1989
C-977	Lease with Jersey City Fire Federal Credit Union	05-25-1999
C-978	Lease with Jersey City Police Federal Credit Union	05-25-1989
C-982	Easement granted to Point View Estates	06-08-1989
McC-12	Easement granted to State of New Jersey	09-13-1989
McC-15	Renewal and extension of lease agreement with Parking Authority	09-13-1989
McC-59	Extension of existing lease with Visiting Homemakers of Hudson County	10-25-1989
McC-73	Lease with Senior Support Services of Jersey City	11-22-1989
MeC-107	Renewal and extension of lease with Parking Authority	03-14-1990
McC-112	Lease with Jersey City Public School District	03-14-1990
McC-163	Lease with Parking Authority	07-18-1990
McC-201	Lease with spectrum Health Care, Inc.	09-12-1990
McC-238	Sublease agreement with Jersey City Economic Development Corp.	12-05-1990
McC-257	Lease with Hudson County	01-09-1991
McC-263	Lease with Senior Support Services of Jersey City	01-23-1991
McC-265	Lease with Educational Arts Team of Jersey City	01-23-1991
McC-266	Lease with Gong Club of Jersey City, Inc.	01-23-1991
McC-267	Lease with Hudson County Health Services	01-23-1991
McC-274	Lease with Jersey City Child Development Center	02-13-1991
McC-333	Lease with B.A.L.C., Inc.	06-26-1991
McC-382	Lease with 880 Bergen Avenue, Inc.	10-23-1991
McC-419	Lease with Visiting Homemakers of Hudson County	02-26-1992
92-012	Lease with Neighborhood Housing Services of Jersey City, Inc.	03-11-1992
92-072	Lease with Jersey City Child Development Center	06-24-1992
92-119	Easement granted to State of New Jersey	09-16-1992
92-120	Easement granted to State of New Jersey	09-16-1992
92-122	Lease with State Operated School District	09-16-1992
92-123	Lease with Senior Support Services of Jersey City	09-16-1992
92-133	Lease with Ukrainian National Urban Renewal Corp.	09-30-1992
92-134	Acquisition by lease of portion of Lincoln Park	09-30-1992
92-136	Lease with B.A.L.C., Inc.	10-14-1992
92-138	Easement granted to Lillian Palumbo	10-14-1992
92-148	Lease from Parking Authority	10-28-1992
92-163	Extension of lease with Journal Square Associates	10-24-1992
92-167	Amended lease with Ukrainian National Urban Renewal Corp.	11-24-1992
93-024	Lease with Visiting Homemakers of Hudson County	03-24-1993

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
93-025	Extension of lease for Division of Property Conservation	03-24-1993
93-026	Lease with Family Collective Day Care Center, Inc.	03-24-1993
93-033A	Acquisition by lease of portion of Lincoln Park	04-14-1993
93-061	Lease with Parking Authority	06-09-1993
93-084	Lease with Jersey City Random Corporation	09-08-1993
93-099	Lease with Jersey City Child Development Center	09-08-1993
93-135	Lease with New Jersey Department of Community Affairs	11-23-1993
93-143	Easement granted to Port Authority Trans-Hudson Corporation	12-08-1993
93-154	Lease with New Jersey Bell Telephone Company	01-12-1994
93-155	Lease with Horizon Health Center	01-12-1994
93-156	Lease of Loew's Theatre to Jersey City Economic Development Corporation	01-14-1994
94-004	Lease with B.A.L.C., Inc.	02-09-1994
94-009	Lease from Parking Authority	02-23-1994
94-026	Lease with County of Hudson	04-13-1994
94-028	Easement between city, Port Liberte Partners and state	04-13-1994
94-034	Amendment of Ord. No. 93-033A	04-27-1994
94-041	Lease with Family Collective Day Care Center, Inc.	05-11-1994
94-044	Operating and license agreement with Jersey City Incinerator Authority	05-25-1994
94-072	Lease to United Cerebral Palsy of Hudson County	09-14-1994
94-073	Easement with St. Joseph's School for the Blind	09-14-1994
94-086	Lease with Private Industry Council	09-14-1994
94-095	Lease with New Jersey Department of Community Affairs	10-12-1994
94-096	Extension of lease with Jersey City Child Development Center	10-12-1994
94-120	Lease with County of Hudson	12-28-1994
94-139	Renewal of lease with Horizon Health Center, Inc.	01-11-1995
94-140	Lease with New Jersey Transit Corporation	01-11-1995
95-003	Extension of lease with Jersey City Child Development Center	02-22-1995
95-015	Amendment to Ord. No. McC-579	03-08-1995
95-023	Lease with B.A.L.C., Inc.	04-12-1995
95-074	Lease with Jersey City Parking Authority	09-13-1995
95-075	Lease with Jersey City Child Development Center	09-13-1995
95-079	Lease with New Jersey Department of Community Affairs	09-13-1995
95-080	Lease with the Free Public Library of Jersey City	09-13-1995
95-120	Lease with Horizon Health Center, Inc.	01-10-1996
95-121	Lease with Visiting Homemakers of Hudson County	01-10-1996
96-036	Lease with Horizon Health Center, Inc.	04-24-1996
96-040	Lease with G & H Development and Construction	05-08-1996
96-065	Lease with B.A.L.C., Inc.	06-26-1996
96-070	Lease with Jersey City Board of Education	06-26-1996
96-074	Lease with Sacred Heart School	07-24-1996

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
96-078	Overhead utility easement granted to Borough of North Arlington	08-14-1996
96-079	Lease with Visiting Homemakers of Hudson County	08-14-1996
96-110	Lease with Jersey City Child Development Center	11-13-1996
96-120	Lease with state-operated School District of Jersey City	12-11-1996
96-123	Lease with nonprofit corporations or associations for public purposes in connection with Adopt a Lot Program	12-30-1996
97-003	Lease with Visiting Homemakers of Hudson County	01-22-1997
97-005	Sale of city-owned property located at Caven Point Road and Chapel Avenue (Block 1500, Lot 16) to the State-Operated School District and the lease of a portion of the same from the State-Operated School District	06-11-1997
97-020	Lease agreement with Horizon Health Center, Inc., for office space at 706-714 Bergen Avenue	03-12-1997
97-027	Lease agreement with the State of New Jersey for Block 2, Lot C, to be used as a park and a memorandum of understanding with Colgate-Palmolive Company and the State of New Jersey for development and maintenance of the park on Hudson and Essex Streets (Block 2, Lots A and C) known as "Veterans Park"	04-09-1997
97-036	Lease agreement with the Parking Authority for on-street permit parking spaces in the Christopher Columbus Drive Permit Parking Zone	04-23-1997
97-047	Acquisition of property located at 89-101 Cambridge Avenue (Block 762, Lots 38A, 38, 9B and 42A), subject to an existing lease, and lease agreement, with an option to buy, with the Jersey City Parking Authority and assignment of lease to the Parking Authority	06-25-1997
97-058	Lease agreement with Sacred Heart School for the premises at 236-240 Martin Luther King Drive for the purpose of conducting remedial math and reading classes	09-10-1997
97-062	Lease agreement with B.A.L.C., Inc., for the premises at 57-79 Storms Avenue for the purpose of conducting an educational and recreational program	09-24-1997
97-069	Lease agreement with Let's Celebrate for property at 201 Cornelison Avenue, 335 Bergen Avenue and 28 Paterson Street in connection with the Meals on Wheels Program	10-08-1997
97-100	Lease agreement with Visiting Homemakers of Hudson County for office space located at 586 Newark Avenue	01-14-1998
98-007	Lease agreement with the Jersey City Child Development Center for property located at Block 235, Lots 168 and 169,14 and 16 Bright Street	02-25-1998
98-025	Lease agreement with Jersey City Connections, Inc., for office space located at 201 Cornelison Avenue	03-25-1998
98-026	Lease agreement with the State Operated School District of Jersey City for vacant land located at 278-288 Duncan Avenue adjacent to Public School No. 39	03-25-1998
98-034	Easement on portions of Monmouth Street, Pavonia Avenue and Ninth Street in City Block 393, petitioned by the Atrium at Hamilton Park, L.L.C, and 299 Pavonia Avenue Condominium Association, Inc.	04-08-1998
98-036	Easement to Cotton Temple Church of God in Christ, Inc. to use a portion of the sidewalk area adjoining Lots 85, 86 and 87, Block 381-383 Bergen Avenue	04-08-1998
98-121	Grant of a sanitary sewer easement to the Town of Kearny for the project known as the Sellers/Barszcewski Sanitary Sewer Project	09-09-1998
98-138	Lease agreement with B.A.L.C., Inc.	10-28-1998
98-139	Lease agreement with Sacred Heart School	10-28-1998

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
98-148	Accepting slope easements, fee simple title and/or dedication of various lands owned by: Cali-Harborside (Fee) Associates, Inc., Town Cove Jersey City Urban Renewal, Inc., the Port Authority of New York and New Jersey, Jersey City Redevelopment Agency, New Jersey Transit Corporation, Liberty Center Associates, Evergreen America Corporation, and Washington Tower Associates, L.L.C.; and dedicating city-owned land within the Exchange Place North and Hudson Exchange Redevelopment Areas	11-10-1998
98-149	Easement through properties owned by Cali Harborside (Fee) Associates L.P. from the proposed extension of Greene Street to the Hudson River within the Exchange Place North and Hudson Exchange Redevelopment Areas	11-10-1998
98-164	Lease agreement with New Hope Housing, Inc. for space located at 654 Bergen Avenue (lease term from 1-1-1999 to 12-31-2014)	12-09-1998
98-165	Easement granted to Horizon Health Center, Inc. for sidewalk area adjacent to Lots 35 and 36, Block 1908, on Bergen Avenue	01-13-1999
98-171	Easement to Hudson Hospitality Services Urban Renewal Associates, L.L.C., for area adjoining Lot 26, Block 15, on 6th Street	01-13-1999
98-174	Lease agreement with Visiting Homemakers of Hudson County for space located at 586 Newark Avenue	01-13-1999
99-011	Accepting easement from Fleet Bank, N.A. to provide emergency egress for the Hudson City Branch of the Jersey City Public Library	02-10-1999
99-013	Lease agreement with Columbian Building Association for property located at 338 and 340 St. Pauls Avenue	02-10-1999
99-025	Easement to the Jersey City Board of Education for property located in Block 1852, Lot 53	02-24-1999
99-031	Sublease agreement with Jersey City Parking Authority for property located at 392-394 Central Avenue	03-10-1999
99-076	Easement granted to the State-Operated School District for installing and maintaining landscaping on property known as Reservoir No. 2	06-09-1999
99-077	Lease agreement with Jersey City Child Development Center for Block 235, Lots 168 and 169	06-09-1999
99-089	Lease agreement with Let's Celebrate, Inc., for property at 201 Cornelison Avenue	07-21-1999
99-099	Lease agreement with Jersey City Parking Authority for property located at 228 Bay Street and 223-231 First Street	08-18-1999
99-103	Lease agreement with New Jersey Bell Telephone for property located at 71 Madison Avenue	08-18-1999
99-163	Lease agreement with Sacred Hearth School	11-10-1999
99-168	Easement to Montville Township Municipal Utilities Authority for Block 151, Lot 21	11-23-1999
99-176	Lease agreement with B.A.L.C., Inc.	12-15-1999
99-178	Lease agreement with Visiting Homemakers of Hudson County for space located at 586 Newark Avenue	12-15-1999
99-180	Lease agreement with S.D.S. Corporation for ice skate concession stand at Pershing Field Ice Rink Facility	12-15-1999
99-191	Lease agreement with 115 CCD Urban Renewal Corp, for space located at 115 Christopher Columbus Drive	01-12-2000
00-070	Lease agreement with Jersey City State-Operated School District as tenant for property located at Block 1366, Lot 54A, Danforth Avenue, adjacent to PS #20	06-28-2000
00-089	Lease of Block 235, Lots 168 and 169 (also known as 14 and 16 Bright Street) for the Jersey City Child Development Center	08-16-2000

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
05-111	Authorizing a lease for up to five years with the Morris County Parks Commission	Withdrawn 08-10-2005
05-129	Authorizing the execution of easement agreements with Hartz Mountain Industries, Inc., Norfolk Southern Railway Company, and the County of Hudson in connections with the construction of city water pipelines in the town of Secaucus	09-28-2005
05-148	Authorizing the lease of Block 235 Lots 168 and 169 a/k/a 14 and 16 Bright street to the Jersey City Child Development Center	10-26-2005
05-155	Authorizing lease from the Jersey City Parking Authority of seven parking spaces in the Parking Authority Lot Number 32 located at 277 Central Avenue	10-26-2005
05-156	Acceptance of an assignment from Hudson County of an easement agreement with the Port Authority of New York and New Jersey and the New Jersey Department of Environmental Protection in connection with the Hudson River Waterfront Walkway.	10-26-2005
05-163	Vacating a certain easement along Chapel Avenue	02-22-2005
05-166	Approving agreements for the lease of certain equipment between the city of Jersey City and the Hudson County Improvement Authority	11-22-2005
06-006	Lease agreement with State Department of Transportation	01-25-2006
06-008	Ten-year lease agreement with Journal Square Plaza Urban Renewal Associates	01-25-2006
06-033	Lease agreement with 18 Ash Street Realty, LLC	03-22-2006
06-036	Lease agreement with Essex Plaza Management, LLC	03-22-2006
06-050	Authorizing the execution of an agreement to transfer utilities and an easement agreement affecting Block 3, Lot 28 and Block 4, Lot 28, A/K/A 30 Hudson Street and 50 Hudson Street	07-19-2006
06-103	Authorizing a one (1) year lease with Baldwin Asset Associates Urban Renewal Associates LLC for a portion of 201 Cornelison Avenue, Jersey City, New Jersey Block 1899; Lot 28 for use by the City as administrative offices for the Department of Health and Human Services	09-13-2006
06-110	Authorizing the City of Jersey City to lease from the Jersey City Parking Authority seven parking spaces in the Parking Authority Lot Number 32 located at 277 Central Avenue	09-27-2006
06-115	Authorizing the City of Jersey City to lease Block 235 Lots 168 & 169 a/k/a 14 & 16 Bright Street to the Jersey City Child Development Center	10-11-2006
06-127	Authorizing the acquisition of an easement across Block 7, Lot 19, more commonly known by the street address of 15 Exchange Place from Hartz Mountain	10-25-2006
06-128	Authorizing the City of Jersey City to enter into a lease agreement with Mount Sinai Full Gospel Church, a non-profit organization of the State of New Jersey, for the purpose of conducting an educational and recreational program pursuant to N.J.S.A.:40A:12-14(C) and N.J.S.A.:40A:12-15(J)	10-25-2006
06-168	Authorizing the City of Jersey City to enter into a lease agreement with Saint John's Baptist Church a non-profit organization of the State of New Jersey, for the purpose of conducting an educational and recreational program pursuant to N.J.S.A. 40A:12-14(c) and N.J.S.A. 40A:12-15(j)	01-10-2007
07-027	Authorizing the City of Jersey City to lease on-street parking spaces in the Christopher Columbus Drive Permit Parking Zone from the Jersey City Parking Authority	02-28-2007
07-033	Authorizing the City of Jersey City to enter into a lease agreement as lessee with the Criterion Urban Renewal Company, LLC, as lessor for space located at 100 Clifton Place, Jersey City. (Police Motorcycle Squad)	03-14-2007
07-051	Authorizing the City of Jersey City to renew a lease agreement with 18 Ash Street Realty, LLC for space located at 46 State Street, Jersey City, for use by the Jersey City Fire Department	03-28-2007

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
07-054	Authorizing the City of Jersey City (Lessee) to enter into a lease agreement with Rialto-Capital Urban Renewal Company, LLC (Lessor) for the use of space at the Lessor's Building located at 4 Beacon Way, Jersey City	03-28-2007
07-057	Authorizing the City of Jersey City to enter into a lease agreement as lessee with the Jersey City Housing Authority as lessor for space located at 3 New Heckman Drive, Jersey City	04-11-2007
07-072	Authorizing City of Jersey City to enter into a lease agreement as Lessee with Hudson Lutheran Housing Corporation as Lessor for space located at 1065 Summit Avenue, Jersey City. (Public Safety Radio Transmission)	04-25-2007
07-077	Authorizing an assignment to the Port Authority of New York and New Jersey of a lease between the City of Jersey City and the State of New Jersey, Department of Transportation for a portion of city owned property known as Block 395.1, Lot 2 IN	05-09-2007
07-091	Authorizing a One (1) year lease with Essex Plaza Management, LLC., for a portion of 361 Montgomery Street for use by the city as a Senior Citizen Center	05-23-2007
07-096	Authorizing the execution of an Easement agreement between the City of Jersey City and the Port Authority Trans Hudson Corporation (PATH) permitting PATH to install and maintain security improvements on a portion of Magnolia Avenue west of Summit Avenue	06-13-2007
07-136	Authorizing the leasing of city owned property at Block 360, Lot 1 on the tax map of Cedar Grove to North End Fire Company #1 for the purpose of parking vehicles in connection with the provision of fire protection	08-08-2007
07-150	Authorizing the City of Jersey City to execute a modification to the City's lease agreement with Montgomery Associates, LP for additional leased space for rooftop antennas	08-22-2007
07-151	Authorizing the City of Jersey City to enter into a five year sublease agreement as sublessee with Citimarkets, LLC, as sublessor for office space located at 360 Martin Luther King Drive, Jersey City	08-22-2007
07-154	Authorizing the City of Jersey City to amend City Ordinance 07-027 for leasing on street parking spaces in the Christopher Columbus Drive permit parking zone from the Jersey City Parking Authority	09-11-2007
07-161	Authorizing the City of Jersey City to lease from the Jersey City Parking Authority seven parking spaces in the Parking Authority lot number 32 located at 277 Central Avenue	09-26-2007
07-169	Authorizing the City of Jersey City to enter into a lease agreement as lessee with 255-261 Kearney Avenue, LLC as lessor for fire house/garage space located at 255-261 Kearney Avenue, Jersey City for the Jersey City Fire Department	10-24-2007
07-181	Authorizing the City of Jersey City to renew a lease agreement with 18 Ash Street Realty, for space located at 46 State Street, Jersey City for use by the Jersey City Fire Department	11-28-2007
07-191	Authorizing a second amendment to City Ordinance 07-027 for leasing on street parking spaces in the Christopher Columbus Drive permit parking zone from the Jersey City Parking Authority	01-09-2008
08-008	Authorizing the City of Jersey City to enter into a lease agreement with Saint John's Baptist Church, a non-profit organization of the State of New Jersey, for the purpose of conducting an Educational and Recreation Program pursuant to N.J.S.A.: 40A: 12-14 (C) and N.J.S.A. 40A: 12-15 (J)	02-13-2008
08-031	Authorizing the City of Jersey City as lessee to extend and amend a lease agreement with 115 CCD Partners, LP as lessor for office space located at 115 Christopher Columbus Drive, Jersey City	03-26-2008
08-096	Authorizing the execution of an agreement to sublease certain property located at 392-394 Central Avenue from the Jersey City Parking Authority	07-16-2008

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
08-122	Authorizing the City of Jersey City to lease from the Jersey City Parking Authority seven parking spaces in the Parking Authority Lot Number 32 located at 277 Central Avenue	09-10-2008
08-141	Authorizing the execution of an easement agreement among the City of Jersey City, Honeywell International Inc. and Bayfront Redevelopment LLC permitting Honeywell to install and maintain an underground pipeline on city-owned property known as Block 1751, Lot 11 and city-leased property known as Block 1290.1, Lot 2E	10-07-2008
08-149	Authorizing the renewal of a lease agreement between the City of Jersey City as lessee and 18 Ash Street Realty, LLC, as lessor, for fire and emergency storage space in the premises located at 46 State Street, Jersey City, New Jersey	11-12-2008
08-150	Authorizing the renewal of a lease agreement between the City of Jersey City as lessee and 255-261 Kearney Avenue, LLC as lessor for fire house/garage space located at 255-261 Kearney Avenue, Jersey City for the Jersey City Fire Department	11-12-2008
09-007	An ordinance authorizing the City of Jersey City to lease on-street parking spaces in the Christopher Columbus Drive Permit Parking Zone from the Jersey City Parking Authority	01-28-2009
09-029	Ordinance authorizing the City of Jersey City to enter into a one year lease agreement with Saint John's Baptist Church, a non-profit organization of the State of New Jersey, for the purpose of conducting a recreational program pursuant to N.J.S.A. 40A:12-14(C) and N.J.S.A. 40A:12-15(J)	03-25-2009
09-035	Ordinance authorizing the execution of a maintenance agreement and deed of easement affecting the Plaza Area at Journal Square in connection with the construction of Condominium Units A B and C of the 1 Journal Square Condominium	04-08-2009
09-056	An ordinance authorizing the City of Jersey City to enter into a five (5) year lease agreement with the Roxy Urban Renewal Company, LLC for a portion of 201 Cornelison Avenue, Jersey City	05-22-2009
09-061	An ordinance authorizing an amendment to the lease, by way of a memorandum of understanding, for the Loew's Theater, Block 1863, Lot N24, to the Friends of the Loew's Inc., a non-profit corporation	05-22-2009
09-066	Ordinance amending Ordinance 05-103 adopted on August 10, 2005 to permit Stegman Realty One, LLC; Stegman Realty Two, LLC; Stegman Acquisition, LLC and Stegman Street, LLC to offer for rent rather than for sale residential units at 228-230 Stegman Street	06-03-2009
09-067	Ordinance to authorizing the imposition of a conservation easement and deed restrictions on the "gateway sites" as required under the Honeywell Settlement Consent Order	06-03-2009
09-073	An ordinance authorizing a lease agreement between the City of Jersey City and Verizon New Jersey Inc. for property located at 71 Madison Avenue, Jersey City, New Jersey	06-17-2009
09-099	Ordinance authorizing the City of Jersey City to lease from the Jersey City Parking Authority seven (7) parking spaces in the Parking Authority Lot Number 32 located at 277 Central Avenue	09-23-2009
09-123	Ordinance authorizing the imposition of deed restrictions on St. Pauls Avenue between Charlotte Avenue and Duffield Avenue, Duffield Avenue between Howell Street and an area north of St. Pauls Avenue, and Howell Street between Charlotte Avenue and Duffield Avenue	12-16-2009
09-124	Ordinance removing the affordability restrictions from: 1) a deed dated December 31,1986 and 2) a correctory deed dated August 26,1987 concerning Block 1985, Lot L-14 also known as 136-138 Grant Avenue owned by Fairmount Housing Corporation	12-16-2009
10-025	Authorizing renewal of lease agreement between City as lessee and 18 Ash Street Realty, LLC, as lessor, for fire and emergency storage space	03-10-2010

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
10-050	Authorizing City to enter into one-year lease agreement with Saint John's Baptist Church for the purpose of conducting a recreational program pursuant to N.J.S.A 40A:12-14(C) and N.J.S.A. 40A:12-15(J)	04-14-2010
10-060	Authorizing execution of agreement between City and Light Tower Fiber Long Island, LLC, to permit installation, use and maintenance of telecommunications facilities within certain public rights-of-way	04-28-2010
10-080	Authorizing execution of easement agreement between City and Honeywell International, Inc. permitting Honeywell to enter into underwater property owned by City to perform remediation work	06-23-2010
10-083	Authorizing execution of rights-of-way use agreement between City and Lexent Metro Connect, LLC to permit the installation of fiber optic cabling through existing innerducts located in existing underground conduits within certain public rights-of-way	07-14-2010
10-084	Removing affordability restrictions from deeds	07-14-2010
10-090	Authorizing imposition of environmental deed restrictions on certain property	08-04-2010
10-100	Authorizing execution of easement agreement between City and the Port Authority Trans Hudson Corporation permitting PATH to install and maintain security improvements at Exchange Place and to install new concrete pavements in front of PATH station on Christopher Columbus Drive	08-04-2010
11-015	Authorizing a lease agreement between the City of Jersey City, as lessee, and 18 Ash Street Realty, LLC as lessor, for fire and emergency storage space in the premises at located at 46 State Street	02-09-2011
11-019	Authorizing the leasing of vacant land and open space land shown to be in need of improvements to non-profit corporations or associations for public purposes in connection with the city "adopt a lot" program	02-23-2011
11-056	Authorizing the City to enter into a one-year lease agreement with Saint John's Baptist Church for the purpose of conducting a recreational program pursuant to N.J.S.A. 40A:12-14(c) and N.J.S.A. 40A: 12-15(j)	05-11-2011
11-122	Authorizing the execution of an agreement with the Port Authority of New York and New Jersey pertaining to a Marine Terminal on the Port Jersey Boulevard, pursuant to N.J.S.A. 32:1-144	10-12-2011
11-134	Authorizing the City to execute a forty-three (43) month lease agreement with Central Parking System of New Jersey, Inc. for parking spaces located at 2 Journal Square	11-09-2011
11-144	Ordinance authorizing the execution of an agreement to lease certain property located at 392-394 Central Avenue from the Jersey City Parking Authority	11-22-2011
11-157	Authorizing a three-year lease on property to Friends of Lifers for an urban farm	01-11-2012
12-011	Authorizing the execution of a deed notice imposing deed restrictions on property known as 73-85 Bishop St	02-08-2012
12-030	Authorizing the City to execute a grant of license and right of entry agreement with Hudson Conduit Associates, LLC to permit the City to install and maintain 48 strand fiber in conduit owned by Hudson Conduit Associates	03-28-2012
12-033	Authorizing the City to lease City-owned property at 103-105 Oxford Av to the Jersey City Public Schools	03-28-2012
12-034	Authorizing the City to lease City-owned property at 109 Oxford Av to the Jersey City Public Schools	03-28-2012
12-035	Authorizing the City to lease City-owned property at 268 Varick St to the Jersey City Public Schools	03-28-2012
12-058	Authorizing a three-year lease subject to 60-day cancellation notice, with the Jersey City Redevelopment Agency for a portion of the hub shopping center located at 380-382 Martin Luther King Hub Plaza for the use of governmental offices	05-09-2012

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
12-075	Authorizing the city to enter into a one-year lease agreement with Saint John's Baptist Church, a non- profit organization of the State of New Jersey, for the purpose of conducting a recreational program pursuant to N.J.S.A. 40A:12-14(c) and N.J.S.A. 40A:12-15(j)	06-13-2012
12-076	Authorizing a second amendment to the city's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot .B	06-13-2012
12-097	Authorizing the imposition of deed restrictions on a portion of St. Pauls Av between Duffield Av and Charlotte Av and a portion of Duffield Av between Howell St and Meadow St	08-01-2012
12-107	Authorizing the city to execute an amendment to its lease with 30 Montgomery Property, LLC, for office space at 30 Montgomery Street, Block 8, Lot C2	09-12-2012
12-124	Amending Ordinance 12-076 authorizing a third amendment to the city's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to include the construction of improvements by the landlord as additional rent	10-10-2012
13-024	Authorizing the City of Jersey City to execute a lease with Imperial Parking Corporation for parking spaces located near 1 Journal Square Plaza	02-27-2013
13-025	Authorizing the City of Jersey City to execute a lease with Rand Parking, Inc., for parking spaces located near 1 Journal Square Plaza	02-27-2013
13-043	Authorizing the City of Jersey City as lessee to extend a fourth amended lease agreement with 115 CCD Partners as lessor for office space at 115 Christopher Columbus Drive	04-24-2013
13-067	Authorizing the City to enter into a sublease as lessee with Moishe's Self Storage, LLC for storage space at 10 Senate Place	06-19-2013
13-078	Authorizing the execution of a quitclaim deed releasing property known as 87 Newkirk Street also known as Block 12204, Lot 12 from an easement held by the City	06-19-2013
13-085	Authorizing the City to extend a one year lease agreement with Saint John's Baptist Church, a non-profit organization of the State of New Jersey, for the purpose of conducting a recreational program pursuant to N.J.S.A. 40A:12-14(c) and N.J.S.A. 40A:12-15(j)	08-28-2013
13-089	Authorizing the execution of a rights-of-way use agreement between the City and Sunesys, LLC to permit the installation of fiber optic cabling through existing innerducts, attach to existing poles, and construct new facilities where necessary within certain public rights-of-way for purposes of providing telecommunication services	09-11-2013
13-090	Authorizing the sale of slope easements to the State of New Jersey affecting real properties owned by the City in the Town of Kearny known as Route 7, Section 1, Parcels ER62B and UE62C	09-11-2013
13-096	Authorizing an easement agreement with the Jersey City Municipal Utilities Authority for improvements affecting Block 31001, Lot 12 and Block 50001, Lot 1 (the Split Rock Dam and Split Rock Road)	09-11-2013
13-106	Amending Ordinance 12-124 authorizing a fourth amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot .B to amend the construction costs of improvements to include the architect fees by the landlord	10-09-2013
13-107	Authorizing the execution of a deed of easement agreement with Public Service Electric and Gas Company for no consideration to permit the installation, use, maintenance and repair of a gas line to service the Linden Avenue Municipal complex	10-09-2013
13-109	Authorizing the City to execute a lease agreement with Harwood Corporation for parking spaces located at 2854 Kennedy Boulevard	10-09-2013

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
13-139	Authorizing an amendment to a lease agreement with Rand Parking, Inc. for parking spaces located at Two Journal Square Plaza	12-18-2013
13-145	Authorizing the City to lease 199-205 Summit Avenue, Jersey City with 199-201 Summit Avenue, LLC	01-15-2014
14-011	Authorizing the City to enter into a month to month extension of the sublease with Moishe's Self Storage, LLC at 10 Senate Place, Jersey City for up to twelve months effective as of November 1, 2013	02-11-2014
14-040	Authorizing the execution of an agreement to lease certain property located at 392-394 Central Avenue from the Jersey City Parking Authority	04-09-2014
14-055	Authorizing a lease agreement between the City of Jersey City and Verizon New Jersey Inc. for property located at 71 Madison Avenue	05-28-2014
14-056	Authorizing the City of Jersey City to enter into a lease agreement as lessee with E.A. Tolentino and H. Clay Irving III, for the use of their vacant, unimproved lot located at Block 15202, Lot 31, more commonly known as 157-161 Summit Avenue, in Jersey City, for parking	05-28-2014
14-057	Authorizing the City of Jersey City to enter into a lease agreement as lessee with Evangelismos Greek Orthodox Church for the use of 29 parking spaces located at Block 15103, Lot 1, more commonly known as 651 Montgomery Street, in Jersey City	05-28-2014
14-098	Authorizing the City to execute a six-month lease agreement with 3000 Kennedy Blvd, LLC for the use of 27 parking spaces at 3000 John F. Kennedy Boulevard to be used for Journal Square employee parking	09-10-2014
14-121	Authorizing the execution of a temporary easement and license agreement on City-owned property located at 13 Linden Avenue, Jersey City, New Jersey to accommodate two solar renewable energy installations in connection with a solar power energy services agreement entered into by and among the City, the Hudson County Improvement Authority and Hudson Energy Solar Corporation	10-08-2014
14-122	Authorizing the execution of a grant of conservation restriction/easement agreement for public access to the waterfront among the City of Jersey City and Liberty Harbor Holding, LLC as grantors, LHN Owner Urban Renewal, LLC as the developer, and the New Jersey Department of Environmental Protection as grantee	10-08-2014
14-146	Authorizing the City of Jersey City to execute a lease agreement with Harwood Corporation for 20 parking spaces located at 2854 Kennedy Boulevard	11-25-2014
14-160	Authorizing the termination of an existing deed notice and the imposition of a new deed notice on property owned by the City of Jersey City known as 362 Summit Avenue also known as Block 12301, Lot 2	12-17-2014
14-176	Authorizing the imposition of a deed notice on property owned by the City known as Mary Benson Park also known as Block 10901, Lots 129 and 130	01-14-2015
14-178	Authorizing the City to extend its sublease with Moishe's Self Storage, LLC, for storage space at 10 Senate Place, Jersey City, for five additional months, retroactive to November 1,2014	01-14-2015
14-179	Authorizing the execution of a developer's agreement and deed of easement with Journal Square I Urban Renewal, LLC and Journal Squared ("J^2") Condominium Association, Inc., affecting a portion of Magnolia Avenue	01-14-2015
14-180	Authorizing the execution of an emergency access easement agreement with Journal Square Associates, LLC ("JSA") and the Port Authority Trans-Hudson Corporation ("PATH") permitting emergency vehicles of the City to travel across property owned by JSA and PATH	01-14-2015
15-019	Authorizing the City to execute a month-to-month lease not to exceed six months with 3000 Kennedy Blvd, LLC for the use of 27 parking spaces at 3000 Kennedy Boulevard, Jersey City	03-11-2015

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
15-020	Authorizing the City to enter into a lease/purchase agreement as lessee with Jersey City Municipal, LLC, as lessor for office space to be constructed at the MLK Hub on a portion of Lot 17, Block 21201 at the intersection of Kearney Avenue and Martin Luther King Drive	03-11-2015
15-056	Authorizing the City to lease City-owned property at 13-15 Linden Avenue to the Jersey City Incinerator Authority	05-13-2015
15-057	Authorizing the City to execute a lease agreement with Harwood Corporation for 20 parking spaces located at 808 Pavonia Avenue	05-13-2015
15-069	Authorizing a fifth amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to amend the term and square footage of space	05-27-2015
15-085	Authorizing the City to enter into a lease agreement with the Farms in the Heights, a New Jersey not-for-profit, pursuant to N.J.S.A. 40:12-14(c)	06-24-2015
15-092	Authorizing the City to enter into a month-to-month tenancy with Rescore Montgomery, LLC for off-street parking at 711 Montgomery Street	07-15-2015
15-093	Granting permission to Christopher Columbus Drive, LLC, successors and assigns, to make private improvements in the Christopher Columbus Drive public right-of-way adjacent to the property located at 190 Christopher Columbus Drive, Jersey City, New Jersey, also known on the tax maps of the City as Block 12703, Lot 4	07-15-2015
15-099	Authorizing the City to execute a ten-year lease with the Jersey City Housing Authority for approximately 25,839 square feet of space at Building #8, 420 U.S. Highway 1	08-19-2015
15-139	Authorizing the City to execute a month-to-month lease not to exceed six months effective as of October 1, 2015 with 3000 Kennedy Blvd, LLC for the use of 29 parking spaces at 3000 Kennedy Boulevard, Jersey City	10-28-2015
15-150	Authorizing a sixth amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to amend the term	11-10-2015
15-158	Authorizing the City to extend a lease with the Jersey City Redevelopment Agency for office space at the Hub Shopping Center located at 380-382 Martin Luther King Drive	11-24-2015
15-159	Amending Ordinance 15-020 to authorize the City to amend its lease/purchase agreement with Jersey City Municipal, LLC for office space to be constructed at the MLK Hub on a portion of Lot 17, Block 21201	11-24-2015
15-166	Authorizing the City to enter into a lease with Jackson Hill Main Street Management Corporation for the use of Block 17905, Lots 18, 20 & 21, more commonly known as 612-616 Communipaw Avenue, for a community garden	12-16-2015
15-167	Authorizing the City to enter into a month-to-month tenancy with Rescore Montgomery, LLC for off-street parking at 711 Montgomery Street	12-16-2015
15-168	Authorizing the City of Jersey City, as tenant, to extend for a one-year term a lease agreement with 18 Ash Street Realty, LLC, as landlord, for space located at 46 State Street, Jersey City	12-16-2015
15-180	Authorizing the City of Jersey City to enter into a lease with Dwight Street Block Association for the use of Block 24101, Lot 2, more commonly known as 75 Bayview Avenue, for a community garden	01-13-2016
15-181	Authorizing the City of Jersey City to enter into a lease with Jersey City Community Gardening Inc. for the use of Block 389, Lots 19 and 20, more commonly known as 174-176 Brunswick Street, for a community garden	01-13-2016
16-016	Authorizing the City of Jersey City to lease City-owned property known as Block 28201, Lots 10 and 12 through 16 also known as Ralph Taylor Memorial Park to the Jersey City Public School District	02-10-2016

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	Subject Matter	Date of Adoption
16-036	Authorizing the City of Jersey City to enter into a lease with Jackson Hill Main Street Management Corporation for the use of Block 1931, Lots 22 and 25, more commonly known as 91-93 Harrison Avenue, for a community garden	02-24-2016
16-051	Authorizing the City of Jersey City to renew its lease with 199-201 Summit Avenue, LLC for the City of Jersey City's rental of office space at 199-205 Summit Avenue, Jersey City for two additional years	04-13-2016
16-052	Exercising the City's option to extend the term of the lease with Evangelismos Greek Orthodox Church for the use of 29 parking spaces located at Block 15103, Lot 1, more commonly known as 651 Montgomery Street, for one year	04-13-2016
16-054	Authorizing the City of Jersey City to execute a lease agreement with Harwood Corporation for 20 Parking Spaces located at 808 Pavonia Avenue	04-13-2016
16-055	Authorizing the execution of a Deed of Easement with 110 First Street Urban Renewal Associates, LLC and the "A" Condominium Association, Inc. affecting Block 11603, Lot 41 a/k/a the First Street Park	04-13-2016
16-064	Authorizing the City of Jersey City to renew the lease with Riverview Neighborhood Association for the use of Block 5202, Lots 26 and 27, for a community garden	04-27-2016
16-065	Authorizing the City of Jersey City to renew the lease with Riverview Community Garden for the use of Block 3002, Lot 2, more commonly known as 285 Ogden Avenue, for a Community Garden	04-27-2016
16-074	Authorizing the imposition of an environmental deed notice on Block 28201, Lots 10 and 12 through 16 also known as Ralph Taylor Memorial Park	05-11-2016
16-075	Authorizing the City of Jersey City to execute a month-to-month lease not to exceed six months effective as of April 1,2016 with 3000 Kennedy Blvd, LLC for the use of 25 parking spaces at 3000 Kennedy Boulevard, Jersey City	05-11-2016
16-076	Authorizing the City of Jersey City to execute an amendment to a lease agreement with 30 M Acquisitions, LLC for approximately 33,650 square feet of space at 30 Montgomery Street, Block 8, Lot C2	05-11-2016
16-091	Authorizing the City of Jersey City to enter into a lease with Jersey Citywide Debutante and Cotillion Association for the use of Block 1409, Lot P, more commonly known as 81 Garfield Avenue, for a community garden	06-15-2016
16-098	Authorizing a seventh amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to amend the term	06-15-2016
16-134	Authorizing the City to execute a month-to-month lease effective October 1, 2016 with 3000 Kennedy Blvd. LLC for the use of 25 parking spaces at 3000 Kennedy Boulevard, Jersey City	09-14-2016
16-135	Authorizing an amended settlement agreement with Community Builders, Inc., for a termination of the lease and release of the City's option to purchase a portion of property located at 654 Bergen Avenue	09-14-2016
16-152	Authorizing the City to enter into a lease agreement with the Jersey City Employment and Training Program (JCETP), a New Jersey not-for-profit, pursuant to N.J.S.A. 40:12-14(c)	10-12-2016
17-003	Authorizing the settlement agreement resolving the federal and state litigation concerning Block 11612, Lot 2, more commonly known as 311 Washington Street Units 2A, 2B, 2C, 2D, 2E, 2F and 2G and conveying condominium units 2E and 2F to Washington Commons in exchange for repairs and renovations to all seven units	01-25-2017
17-015	Exercising the City's option to extend the term of the lease with Evangelismos Greek Orthodox Church for the use of 29 parking spaces located at Block 15103, Lot 1, more commonly known as 661 Montgomery Street, for one year	02-08-2017

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	**Subject Matter**	**Date of Adoption**
17-017	Granting permission to 207 Van Vorst Street Realty Company LLC, its successors and assigns, to make private improvements in the Sussex Street right-of-way north of Van Vorst Street adjacent to property located at 193-197-213 Van Vorst Street, Van Vorst Street and Marin Boulevard, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 14205, Lots 14.02, 15, 16, 17.01 and 18	02-22-2017
17-031	Authorizing the execution of a corrective deed for Block 16302, lot 40 in the City of Jersey City pursuant to Green Acres requirements	03-22-2017
17-036	Authorizing the City of Jersey City to enter into parking lot leases at 733-735 Newark Ave. and 68-70 Cottage St. due to parking displaced by the Pulaski Skyway Project	04-12-2017
17-039	Ratifying the execution of an easement agreement between the City of Jersey City (grantor) and Jersey City Municipal, LLC (grantee) permitting the grantee to install building foundations underneath the public rights-of-way at Kearny Avenue and Dr. Martin Luther King Drive and extinguishing the utility easement set forth in City Ordinance 97-067 adopted on September 24, 1997	04-26-2017
17-045	Authorizing the City of Jersey City to execute a lease with Community Uplifting Project, Inc. for the use of Block 17905, Lots 18, 20 and 21, more commonly known as 612-614 Communipaw Avenue and Block 1931, Lots 22 and 25 more commonly known as 91-93 Harrison Avenue, for a community garden	04-26-2017
17-046	Authorizing the City of Jersey City to renew the leases of Block 389, Lots 19 and 20 (174-176 Brunswick Street); Block 1409, Lot P (81 Garfield Avenue); Block 3002, Lot 2 (285 Ogden Avenue); Block 5202, Lots 28 and 29 (105 Ogden Avenue); Block 12904, Lot 1 (280 Grove Street) and Block 1905, Lot 36 (447 Martin Luther King, Jr. Drive) as part of the City's Adopt-a-Lot Community Garden Program	04-26-2017
17-050	Authorizing the City of Jersey City to extend the lease of City-owned property at 103-105 Oxford Avenue to the Jersey City Public Schools	05-10-2017
17-051	Authorizing the City of Jersey City to extend the lease of city-owned property at 109 Oxford Avenue to the Jersey City Public Schools	05-10-2017
17-064	Authorizing the City of Jersey City to execute a lease agreement with Harwood Corporation for 20 parking spaces located at 808 Pavonia Avenue	05-24-2017
17-156	Authorizing the City to extend the lease with the Jersey City Redevelopment Agency for office space located at 380-382 Martin Luther King Drive	11-29-2017
17-157	Granting permission to 280 Newark, LLC for a balcony encroachment over a portion of the right-of-way of Newark Avenue, and the right-of-way of Third Street for the benefit of Lot 1.01 in Block 11010, land now or formerly of 280 Newark, LLC. The balcony encroachment is intended to encompass the overhead entrance canopy and floor slab balconies which project beyond the boundary lines of Lot 1.01 in Block 11010 and into the aforementioned rights-of-way	11-29-2017
17-164	Authorizing the City to renew the leases of Block 389, Lots 19 and 20 (174-176 Brunswick Street); Block 1409, Lot P (81 Garfield Avenue); Block 3002, Lot 2 (285 Ogden Avenue); Block 5202, Lots 28 and 29 (105 Ogden Avenue); Block 12904, Lot 1 (280 Grove Street) and Block 1905, Lot 36 (447 Martin Luther King, Jr. Drive) as part of the City's Adopt-a-Lot Community Garden Program	12-13-2017
18-005	Authorizing the City, as tenant, to extend for a one-year term a lease agreement with 18 Ash Street Realty, LLC, as landlord, for space located at 46 State Street, Jersey City	02-14-2018
18-029	Authorizing the City to execute a lease with Community Uplifting Project, Inc., for the use of Block 17905, Lots 18, 20 and 21, more commonly known by the street address of 612-614 Communipaw Av, and Block 1931, Lots 22 and 25, more commonly known by the street address of 91-93 Harrison Av, for use as a community garden	04-25-2018

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	**Subject Matter**	**Date of Adoption**
18-031	Authorizing the City, as tenant, to extend for a two-month term a lease agreement with 199-201 Summit Avenue, LLC as landlord, for space located at 199-205 Summit Avenue	04-25-2018
18-040	Authorizing the City to enter into a lease/purchase agreement as lessee with 342 Investors, LLC, as lessor, for office space to be constructed on Block 22601, Lot 36 at the intersection of Martin Luther King Drive and Kearny Avenue and a parking deck with commercial space on Block 22601, Lots 10 through 15, Lots 24 through 35, Lot 37 and Lots 16.15 and 23.01	05-09-2018
18-069	Authorizing the City to execute an amendment to a lease agreement with 30 Montgomery Partners, LLC for approximately 11,400 square feet of space at 30 Montgomery Street, Block 8, Lot C2 for a term of one year	06-27-2018
18-094	Authorizing the City of Jersey City to amend a lease agreement from Harwood Corporation for the use of an additional 15 parking spaces located at 808 Pavonia Avenue	09-12-2018
18-103	Authorizing the acceptance of a gift of an easement for access purposes in connection with the preliminary and final major subdivision of lands designated as Block 21901, Lots 5-10 and Block 24601, Lots 1-12 on the application of Bayfront Redevelopment LLC	09-12-2018
18-104	Authorizing the execution of a 40-year lease agreement with the Morris County Park Commission regarding the development, management and maintenance of a recreational trail at the Jersey City Reservoir in Boonton	09-26-2018
18-127	Authorizing the execution of a rights-of-way use agreement between the City of Jersey City and SQF, LLC D/B/A Tilson to permit the installation of antennas and related communications equipment on existing utility poles and street light fixtures and if necessary to install new or replacement street light fixtures and utility poles within certain public rights-of-way for purposes of providing telecommunication services	11-20-2018
18-128	Authorizing the City to execute a lease agreement for a term of one year with LM Plaza 4A Parking LLC for the use of 29 parking spaces located at 135 Greene Street	02-14-2019
18-136	Authorizing the City of Jersey City to renew the leases of Block 9905, Lots 8 & 9 (174-176 Brunswick Street); Block 30003, Lot 45 (81 Garfield Avenue); Block 3002, Lot 2 (285 Ogden Avenue); Block 5202, Lot 28 (105 Ogden Avenue); and Block 19503, Lot 36 (447 Martin Luther King, Jr. Drive) as part of the City's Adopt-a-Lot Community Garden Program	12-19-2018
19-007	Authorizing the City, as tenant, to extend for a one-year term a lease agreement with 18 Ash Street Realty, LLC, as landlord, for space located at 46 State Street, Jersey City	02-14-2019
19-016	Authorizing the City to enter into a month to month tenancy with the Martin Luther King Drive Urban Renewal Joint Venture Partnership for office space located at 380-382 Martin Luther King Drive	03-13-2019
19-023	Ratifying the execution and acceptance from Park Avenue Landing, LLC of a deed of easements for roadway purposes and a temporary construction easement and the execution and acceptance from Liberty Harbor Holding, LLC of a deed of temporary construction easement in connection with the construction of a new roadway connecting Jersey Avenue and Phillip Street	04-10-2019
19-024	Authorizing the execution of a grant of easement agreement with Public Service Electric and Gas Company to permit the installation, use, maintenance and repair of a pole anchor on City-owned property known as Block 2304, Lot 16 near the intersection of Congress Street and New York Avenue	04-10-2019
19-025	Authorizing the City, as tenant, to renew a lease agreement with the County of Hudson for recreational fields at Lincoln Park West	04-10-2019

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	**Subject Matter**	**Date of Adoption**
19-028	Authorizing the execution of a rights-of-way use agreement between the City and Extenet Systems, Inc. to permit the installation of antennas and related communications equipment on existing utility poles and street light fixtures and if necessary to install new or replacement street light fixtures and utility poles within certain public rights-of-way for purposes of providing telecommunication services	04-24-2019
19-060	Authorizing the City to execute a lease agreement with Harwood Corporation for 36 parking spaces located at 808 Pavonia Avenue	06-12-2019
19-061	Authorizing the execution of a rights-of-way use agreement between the City and New Cingular Wireless PCS, LLC to permit the installation of antennas and related communications equipment on existing utility poles and street light fixtures and if necessary to install new or replacement street light fixtures and utility poles within certain public rights-of-way for purposes of providing telecommunication services	06-12-2019
19-073	Authorizing a lease agreement between the City of Jersey City and Verizon New Jersey Inc. for property located at 71 Madison Avenue	06-26-2019
19-080	Authorizing the execution of a deed to release certain use restrictions on Block 15702, Lots 16—19 (formerly, Block 375, Lots 56, 58, 60—64) within the Jersey City Medical Center site	07-17-2019
19-091	Authorizing the City to execute a lease with the Garfield Avenue South Block Association for the use of Block 3003, Lot 45, more commonly known by the street address of 81 Garfield Avenue, for use as a community garden	08-24-2019
19-116	Authorizing the execution of a deed of easement with Parks at VL South LLC affecting Block 6005, Lot 2 A/K/A the Gateway Plaza Park and Block 6902, Lot 16 A/K/A the Van Leer South Park	09-25-2019
19-129	Authorizing the City to enter into a lease/purchase agreement as lessee with JCPSHQ Investors, LLC, as lessor, for a public safety building to be constructed on Block 22601, Lots 1 through 5 at the northeast corner of the intersection of Martin Luther King Drive and Kearny Avenue	09-25-2019
19-134	Authorizing an eighth amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to amend the term	10-10-2019
19-163	Authorizing the City to renew the leases of River View Community Garden for the use of Block 3002, Lot 2, more commonly known as 285 Ogden Avenue; Brunswick Community Garden for the use of Block 389, Lots 19 and 20, more commonly known as 174-176 Brunswick Street; Ogden's End Community Garden for the use of Block 5202, Lots 28 and 29, more commonly known as 105 Ogden Avenue; and Mandela Community Garden for the use of Block 1905, Lot 36, more commonly known as 447 Martin Luther King, Jr. Drive for community gardens	12-18-2019
20-011	Authorizing the City, as tenant, to extend for a one-year term a lease agreement with 18 Ash Street Realty, LLC, as landlord, for space located at 46 State Street, Jersey City	02-13-2020
20-013	Authorizing the imposition of a deed notice on property known as Block 11603, Lot 41 a/k/a First Street Park that is owned by the "A" Condominium Association, Inc. and dedicated to the City of Jersey City by deed of easement as a public park	02-26-2020
20-034	Authorizing the execution of a first amendment to a rights-of-way use agreement between the City of Jersey City and Cross River Fiber LLC to permit the installation of high capacity fiber optic cable and equipment for mobile telecommunications on existing utility poles and to install new utility poles within certain public rights-of-way for purposes of providing telecommunication services	05-20-2020
20-048	Authorizing the execution of a deed of easement with COA 99 Hudson, LLC; 99 Hudson Condominium Association Inc.; the Planning Board of the City of Jersey City; and the City of Jersey City affecting Block 14507, Lot 1 a/k/a 99 Hudson Street and 100 Greene Street	07-15-2020

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	**Subject Matter**	**Date of Adoption**
20-055	Authorizing the execution of two deeds of easement by and between 100 Hoboken Avenue Partners, LLC; VL North, LLC; and the City of Jersey City affecting Block 6001, Lot 40 and Lot 10 a/k/a 100 Hoboken Avenue and 110 Hoboken Avenue	07-15-2020
21-018	Authorizing the City to renew the leases of Block 389, Lots 19 and 20 (174-176 Brunswick Street); Block 3002, Lot 2 (285 Ogden Avenue); Block 5202, Lots 28 and 29 (105 Ogden Avenue); and Block 1905, Lot 36 (447 Martin Luther King, Jr. Drive) as part of the City's Adopt-a-Lot Community Garden Program	03-24-2021
21-022	Authorizing the execution of a rights-of-way use agreement between the City and Global Inter Xchange, LLC to permit the installation of fiber optic cabling through existing inner ducts located in existing underground conduits within certain public rights-of-way for the purpose of providing telecommunication services	04-15-2021
21-028	Authorizing the City, as tenant, to extend for one year a lease with 18 Ash Street Realty, as landlord, for space located at 46 State Street, Jersey City	05-13-2021
21-047	Authorizing the City to execute a three-year lease with the Jersey City Economic Development Corporation for the use of Block 22502, Lots 36 & 37, more commonly known by the street address of 351 Martin Luther King Jr. Drive for nonprofit economic development purposes for the public benefit of the Jersey City Community	06-30-2021
21-048	Authorizing the execution and acceptance from 160 Lafayette Associates, LP of a deed of easements for a temporary construction easement and a public access easement in connection with the construction and use of the Morris Canal Greenway	09-09-2021
21-055	Authorizing the sale of an easement to the State of New Jersey, Department of Transportation affecting real property owned by the City of Jersey City and the City of Union City in Block 101, Lot 7 near Secaucus Road in Jersey City	09-09-2021
21-060	Authorizing the City to execute a lease with the Greenville Neighborhood Alliance for the use of Block 3003, Lot 45, more commonly known by the street address of 81 Garfield Avenue for use as a community garden	09-09-2021
21-072	Authorizing the execution of a temporary construction easement and access easement agreement between the City and 160 Lafayette Associates, L.P. (Lafayette Associates) authorizing Lafayette Associates to install and maintain two monitoring wells in Reverend Ercel Webb Park a/k/a Lafayette Park	11-10-2021
22-005	Authorizing the execution of a deed of easement with Fourteen Florence Street Corp. (developer) permitting the developer to make improvements on a portion of the Twelfth Street public right-of-way in an area east of Provost Street and continuing to an area adjacent to the north side of Newport Parkway in connection with the construction of new public pedestrian walkway	02-09-2022
22-015	Authorizing the City, as tenant, to extend for two years a lease with 18 Ash Street Realty, as landlord, for space located at 46 State Street, Jersey City	02-24-2022
22-076	Authorizing the imposition of restrictions on Meadow Street located east of Duffield Avenue	09-08-2022
22-083	Authorizing the execution of a lease of the Apple Tree House to the Museum of Jersey City History for a term of five years	09-21-2022
22-097	Authorizing the execution of a deed of easement between PH Urban Renewal, LLC, the Planning Board of the City, and the City affecting Block 13102, Lot 1.03 a/k/a 25 Christopher Columbus Drive	11-28-2022
22-112	Authorizing a lease agreement between the Jersey City Housing Authority, Garden State Community Development Corporation and the City for property at 514 Newark Avenue for the purpose of providing services to people experiencing homelessness	01-11-2023
23-013	Ratifying the renewal of a lease agreement with Rialto-Capital Urban Renewal Company, LLC (lessor) for the use of space at the lessor's building located at 4 Beacon Way, Jersey City	02-23-2023

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	**Subject Matter**	**Date of Adoption**
23-014	Ratifying the renewal of a lease agreement from Harwood Corporation for the use of 36 parking spaces located at 808 Pavonia Avenue	02-23-2023
23-015	A franchise ordinance of the Municipal Council of the City to vacate a portion on Morton Place located to the northwest of John F. Kennedy Boulevard in the City	02-23-2023
23-015A	Ratifying the renewal of a lease agreement with Journal Square Plaza Urban Renewal Associates (landlord) for office space and a kiosk at One Journal Square Plaza	03-23-2023
23-033	Accepting the dedication of certain roadways, sidewalks, and utilities located within the Van Keuren Redevelopment Area that are necessary for the realignment of Van Keuren Avenue	04-26-2023
23-057	Authorizing the modification of the restrictive covenant at Block 16301, Lot 65 (f.k.a. Block 1827, Lot T, a.k.a. 784-8 West Side Avenue), on the tax maps of the City	06-29-2023
23-063	Authorizing the City to enter into a lease with Liberty National Development Co, LLC on the real property at Block 27503, Lot 13 on the City's tax map located at the foot of Chapel Avenue for the purposes of reinstating ferry service to the public	06-28-2023
23-083	Authorizing the City to enter into a lease with the New Jersey Schools Development Authority on the real property at Block 21102, Lot 52 on the City's tax map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	09-07-2023
23-114	Authorizing the execution of a deed of easement for public access between Avenir, LP and the City and the execution of a thirty-foot setback easement agreement between Avenir, LP and the City affecting Block 9301, Lot 30.01 a/k/a 66 Broadway and f/k/a 1072-1075 West Side Avenue	11-29-2023
24-005	Authorizing the City to execute an extension of a lease with the New Jersey Schools Development Authority on the real property at Block 21102, Lot 52 on the City's tax map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	02-22-2024
24-021	Granting an easement to the Lyndhurst Board of Education affecting real property owned by the City known as Block 233, Lots 11, as shown on the official tax maps of the Township of Lyndhurst	04-24-2024
24-031	Granting an easement to Morris Kearny Associates Urban Renewal, LLC affecting real property owned by the City known as Block 287, Lot 5, as shown on the official tax maps of the Town of Kearny	05-22-2024
24-043	Authorizing the City to renew the lease with Brunswick Community Garden also known as Jersey City Community Gardening, Inc. for the use of Block 9905, Lots 8 and 9, more commonly known as 174-176 Brunswick Street for a community garden	06-12-2024
24-044	Authorizing the City to renew the lease with Greater Neighborhood Alliance for the use of Block 30003, Lot 45, more commonly known as 81 Garfield Avenue for a community garden	06-12-2024
24-045	Authorizing the City to renew the lease with Mandela Garden sponsored by the Greater Neighborhood Alliance for the use of Block 19503, Lot 36, more commonly known as 447 Martin Luther King Drive for a community garden	05-22-2024
24-048	Authorizing a lease of a City-owned theatre located at Block 11506, Lot 2.01 commonly known as 151 Bay Street to the Provost Square Performing Arts Company Inc, a New Jersey non-profit corporation, for the purpose of providing culturally enriching experiences to the Jersey City community through the arts	06-12-2024
24-072	Authorizing the City to execute an extension of a lease with the New Jersey Schools Development Authority on the Real Property at Block 21102, Lot 52 on the City's Tax Map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	09-11-2024

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	**Subject Matter**	**Date of Adoption**
24-075	Authorizing a lease agreement between the City and Verizon New Jersey Inc. for property located at 71 Madison Avenue	09-11-2024
24-089	Authorizing the City, as tenant, to extend for two years a lease with 18 Ash Street Realty, as landlord, for space located at 46 State Street	10-30-2024
24-099	Authorizing certain temporary and permanent easements to the New Jersey Department of Environmental Protection in connection with the Rebuild by Design Hudson River project consisting of work for stormwater separation, utility relocation, pile driving, sheet piling, and installation of hard structures such as floodwalls and deployable gates at various locations on Jersey Ave., Grove St., Marin Blvd., and 18th St.	11-14-2024
24-105	Authorizing the City to execute a sublease between the Provost Square Performing Arts Company Inc. and the New Jersey Symphony for the purpose of providing culturally enriching experiences to the Jersey City community through the arts	12-11-2024
25-019	Authorizing the City to execute an extension of a lease with the New Jersey Schools Development Authority on the real property at Block 21102, Lot 52 on the City's Tax Map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	02-26-2025
25-037	Authorizing the City to renew the lease with Brunswick Community Garden also known as Jersey City Community Gardening, Inc. for the use of Block 9905, Lots 8 and 9, more commonly known as 174-176 Brunswick Street for a community garden	04-09-2025
25-038	Authorizing the City to enter into a lease with Dwight Street Block Association for the use of Block 25604, Lot 8, more commonly known as 185 Dwight Street for a community garden	04-09-2025
25-039	Authorizing the City to renew the lease with Greater Neighborhood Alliance for the use of Block 30003, Lot 45, more commonly known as 81 Garfield Avenue for a community garden	04-09-2025
25-040	Authorizing the City to renew the lease with Mandela Garden sponsored by the Greater Neighborhood Alliance for the use of Block 19503, Lot 36, more commonly known as 447 Martin Luther King Drive for a community garden	04-09-2025
25-041	Authorizing the City to enter into a lease with 167 McAdoo Avenue Condominium Association for the use of Block 26301, Lot 28, more commonly known as 142 McAdoo Avenue	04-09-2025
25-042	Authorizing the City to renew the lease with Ogden's End Community Garden sponsored by the Riverview Neighborhood Association for the use of Block 5202, Lot 28, more commonly known as 100 Ogden Avenue	04-09-2025
25-051	Authorizing an amendment to a dedication agreement between Grand & Jersey, LLC and the City for certain land and improvements located on a portion of Regent Street between Liberty View Drive and Douglas and Arthur Skinner Memorial Drive in the Liberty Harbor North Redevelopment Area	05-07-2025
25-055	Authorizing the execution of a temporary construction easement and access easement agreement between the City and Statco Development Group, LLC (Statco) authorizing Statco to install and maintain one monitoring well at 605 Monmouth Street	05-21-2025
25-078	Authorizing the City to renew the lease with Riverview Community Garden for the use of Block 3002, Lot 2, more commonly known as 285 Ogden Avenue for a community garden	08-20-2025
25-080	Authorizing the execution of an easement, access and maintenance agreement between 500 Communipaw Avenue LLC (Grantor) and the City (Grantee) in connection with the construction of a residential building at 500-510 Communipaw Avenue	08-20-2025
25-090	Authorizing the City to execute an extension of a lease with the New Jersey Schools Development Authority on the real property at Block 21102, Lot 52 on the City's tax map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	09-10-2025

TABLE 4. LEASE AND EASEMENT AGREEMENTS		
Ord. No.	**Subject Matter**	**Date of Adoption**
25-130	Authorizing the City to enter into a lease agreement with the Exchange Place Alliance District Management Corporation for space at 335 Washington Street	12-10-2025
26-011	Authorizing the City, as tenant, to extend for a two-year a lease with 18 Ash Street Realty, as landlord, for space located at 46 State Street, Jersey City	03-11-2026

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
C-876	Transfer of property within Ocean Bayview Redevelopment Area	01-12-1989
C-877	Transfer of property within Ocean Bayview Redevelopment Area	01-12-1989
C-878	Transfer of property for School No. 2 Redevelopment Project	04-13-1989
C-882	Approving redevelopment plan for Colgate Study Area	01-26-1989
C-885	Creation of right-of-way and implementation of Newport City Redevelopment Plan	02-02-1989
C-932A	Transfer of property within Montgomery Street Redevelopment Area	04-13-1989
C-986	Amendments to Droyers Point Redevelopment Plan	06-08-1989
C-994	Amendments to Colgate Redevelopment Plan	06-08-1989
C-1003	Amendments to Journal Square Redevelopment Plan	06-22-1989
McC-42	Amendments to Liberty Harbor Redevelopment Plan	09-27-1989
McC-47	Transfer of property to Jersey City Redevelopment Agency	10-25-1989
McC-62	Amendments to Claremont Industrial Park Redevelopment Plan	10-25-1989
McC-157	Amendments to Green Villa Redevelopment Plan	10-25-1989
McC-165	Transfer of property to Liberty Harbor North Redevelopment Plan Area	07-18-1990
McC-169	Transfer of property within Ocean Bayview Redevelopment Area to Jersey City Redevelopment Agency	06-27-1990
McC-207	Transfer of property within Turnkey Redevelopment Area to Jersey City Redevelopment Agency	09-26-1990
McC-256	Finding with respect to Exchange Place Redevelopment Plan	01-09-1991
McC-259	Amendments to Henderson Street Redevelopment Plan	01-23-1991
McC-285	Dedication of various lands owned by National Bulk Carriers, Inc., to public	02-27-1991
McC-290	Acquisition of certain easements to TPI Urban Renewal Corp.	03-13-1991
McC-301	Transfer of property within Turnkey Redevelopment Area to Jersey City Redevelopment Agency	05-08-1991
McC-304	Amendments to Greenville Industrial Redevelopment Plan	04-10-1991
McC-315	Transfer of property within Monticello Avenue Redevelopment Area to Jersey City Redevelopment Agency	04-24-1991
McC-316	Transfer of property within Green Villa Redevelopment Area to Jersey City Redevelopment Agency	04-24-1991
McC-323	Amendments to Monticello Avenue Redevelopment Plan	05-22-1991
McC-324	Dedication of certain areas within Newport Redevelopment Area	08-21-1991
McC-344	Transfer of property within Green Villa Redevelopment Area to Jersey City Redevelopment Agency	08-21-1991
McC-359	Amendments to Green Villa Redevelopment Plan	09-25-1991
McC-363	Transfer of property within Green Villa Redevelopment Area to Jersey City Redevelopment Agency	09-11-1991
McC-420	Amendments to Grove and Mercer Redevelopment Plan	06-24-1992
McC-421	Redevelopment plan for the 1091/2, 111 and 113 Wayne Street Study Area	03-11-1992
92-053	Easement agreement for certain easements and parcels within Newport Redevelopment Area	05-27-1992
92-105	Amendments to Jersey Avenue North and Jersey Avenue West Redevelopment Plans; creating Jersey Avenue Redevelopment Plan	08-19-1992

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
92-116	Transfer of property within Liberty Park I Redevelopment Area to Jersey City Redevelopment Agency	09-16-1992
92-121	Amendments to Turnkey Redevelopment Plan	09-30-1992
92-139	Transfer of property within Lafayette Park I Redevelopment Area to Jersey City Redevelopment Agency	10-14-1992
92-160	Transfer of property within Lafayette Park I Redevelopment Area to Jersey City Redevelopment Agency	11-10-1992
92-164	Amendments to Greenville Industrial Redevelopment Plan	11-10-1992
92-173	Amendments to Ocean Bayview Redevelopment Plan	11-24-1992
93-021	Vacation of area of Provost Street in Newport Redevelopment Area	03-10-1993
93-029	Adoption of Grand Jersey Redevelopment Plan	03-24-1993
93-033	Transfer of property within Lafayette Park I Redevelopment Area to Jersey City Redevelopment Agency	03-24-1993
93-051	Dedication of certain phase II roadways within the Newport Redevelopment Zone	05-19-1993
93-113	Dedicating various lands owned by National Bulk Carriers, Inc., to public	10-13-1993
93-138	Adoption of Martin Luther King Redevelopment Plan; amendments to Jackson Avenue, Green Villa and Turnkey Redevelopment Plans	12-08-1993
94-008	Transfer of property within Lafayette Park I Redevelopment Area to Jersey City Redevelopment Agency	02-23-1994
94-035	Tax exemption for project to be constructed by J.H. and R.C. Senior Homes Urban Renewal Associates	04-27-1994
94-040	Amendments to Harsimus Cove South Urban Redevelopment Association's tax abatement	05-11-1994
94-061	Transfer of property within Martin Luther King Drive Redevelopment Area to Jersey City Redevelopment Area	08-17-1994
94-065	Tax exemption for H.P. Lincoln Urban Renewal Company; Jersey Avenue Redevelopment Area	08-17-1994
94-116	Amendment to the Colgate Redevelopment Plan	12-14-1994
95-052	Amendments to the Martin Luther King Drive, Greenvilla and Turnkey Redevelopment Plans	06-28-1995
96-017	Rescinding Ord. Nos. 95-036 and 95-099	02-28-1996
96-020	Transfer of property within the "HUB" District of the Martin Luther King Drive Redevelopment Plan Area to the Jersey City Redevelopment Agency	03-13-1996
96-025	Amending C-323, authorizing the transfer of property to the Jersey City Redevelopment Corporation for the development of the Wilkinson-Bayview Project under the Fair Housing Act	03-27-1996
96-038	Morgan and Washington Street Redevelopment Plan	05-08-1996
96-049	Amendments to Lafayette Park I Redevelopment Plan	05-22-1996
96-061	Amendments to Holland Tunnel Redevelopment Plan	06-26-1996
97-013	Amendments to Colgate Redevelopment Plan to make provisions to accommodate the Essex-Hudson Street Light Rail alignment and to amend other provisions of the plan and amendment to Ord. Nos. C-882, C-994 and 94-116	03-12-1997
97-044	Amendments to the Betz Brewery Redevelopment Plan	06-25-1997
97-054	Amendment to the land use provisions of the Colgate Redevelopment Plan amending Ord. Nos. C-882, C-994, 94-116 and 97-013	08-13-1997

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
97-056	Amendment to the Liberty Harbor Redevelopment Plan amending Ord. Nos. J-578, MC-373, MC-527, MC-670, MC-651, C-959, McC-42, McC-47, McC-165, McC-290 and McC-351	09-10-1997
97-057	Amendment to the Caven Point Redevelopment Plan	09-10-1997
97-091	Amendment to the Paulus Hook Urban Renewal Plan to change its name to the Paulus Hook Redevelopment Plan and revise development standards within the plan	12-23-1997
97-092	Amendment to the Gregory Project Area Redevelopment Plan	12-23-1997
97-095	Adopting amendments to the Jersey Avenue Redevelopment Plan	04-22-1998
98-019	Amendment to the Betz Brewery Redevelopment Plan	03-25-1998
98-021	Amendment to the Turnkey Redevelopment Plan	03-25-1998
98-046	Liberty Harbor Redevelopment Plan amendment; see J-578, MC-373, MC-527, MC-670, MC-651, MC-681, C-959, McC-42, McC-47, McC-165, McC-290, 97-056	05-13-1998
98-076	Colgate Redevelopment Plan amendment to rehabilitate existing building on Block 69, Lot C-1, street address 65 York Street, to be changed to 95 Greene Street (comer of York, Greene and Grand Streets); see C-882, C-994, 94-116, 97-013, 98-042	06-24-1998
98-077	Montgomery Gateway Redevelopment Plan amendment, changing sign regulations in the Old Colony Square shopping center	06-10-1998
98-086	Ocean/Bayview Redevelopment Plan amendment	07-22-1998
98-137	Liberty Harbor Redevelopment Plan amendment, designating Liberty State Park as a Park Zone	10-14-1998
98-166	Montgomery Gateway Redevelopment Plan amendment	01-13-1999
98-167	Village Study Area Redevelopment Plan amendment	01-13-1999
99-003	Adoption of Newkirk-Academy Summit Redevelopment Plan	01-27-1999
99-005	Amendments to Ninth Street Redevelopment Plan	01-27-1999
99-017	Amendments to Greenville Industrial Redevelopment Plan	02-10-1999
99-035	Adoption of Morris Canal Redevelopment Plan	03-24-1999
99-079	Incorporating Journal Square East Study Area into the Journal Square Redevelopment Plan Area and adopting amendments to the Journal Square Redevelopment Plan	06-23-1999
99-080	Amendments to Exchange Place North Redevelopment Plan	06-23-1999
99-090	Adoption of Majestic Theater Redevelopment Plan	07-21-1999
99-092	Amendments to Hudson Exchange Redevelopment Plan	07-21-1999
99-093	Amendments to Liberty Harbor Redevelopment Plan	07-21-1999
99-096	Adoption of Vacant Buildings Redevelopment Plan	08-18-1999
99-106	Adoption of Armory Redevelopment Plan	08-18-1999
99-109	Amendment to Vacant Buildings Redevelopment Plan	09-08-1999
99-137	Adoption of Summit Community Center Redevelopment Plan	09-08-1999
99-153	Amendments to Greenville Industrial Redevelopment Plan	11-10-1999
99-160	Amendments to Colgate Redevelopment Plan	10-27-1999
99-167	Adoption of Tidewater Basin Redevelopment Plan	11-10-1999
99-184	Amendments to Montgomery Street Redevelopment Plan	01-12-2000

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
99-187	Amendments to Martin Luther King Drive and Turnkey Redevelopment Plans	01-12-2000
99-189	Amendments to Hudson Exchange and Exchange Place North Redevelopment Plan	01-12-2000
00-007	Adoption of Republic Container Redevelopment Plan	02-09-2000
00-012	Incorporating the Journal Square Extension Study Area, A.K.A. Block 1864, Lot 22, into the Journal Square Redevelopment Plan Area and adopting amendments to the Journal Square Redevelopment Plan	03-08-2000
00-014	Amendments to Liberty Harbor North Redevelopment Plan to incorporate the Grand and Canal Redevelopment Area as part of the Liberty Harbor North Redevelopment Area	05-10-2000
00-028	Adoption of Water Street Redevelopment Plan	04-12-2000
00-029	Amendments to Exchange Place North Redevelopment Plan	04-12-2000
00-030	Amendments to Martin Luther King Drive Redevelopment Plan	04-12-2000
00-039	Amendments to Colgate Redevelopment Plan	04-26-2000
00-063	Amendment to Jersey Avenue Redevelopment Plan	06-14-2000
00-077	Amendments to Colgate Redevelopment Plan	07-19-2000
00-101	Adopting the Communipaw West Community Center Redevelopment Plan	09-27-2000
00-105	Amendment to Montgomery Street Redevelopment Plan	09-13-2000
00-123	Amendments to Hudson Exchange Redevelopment Plan	09-27-2000
00-127	Amendments to Colgate Redevelopment Plan	09-27-2000
00-170	Adoption of Grove Street Station # Redevelopment Plan	01-10-2001
01-001	Transfer of property within TURNKEY redevelopment Area	01-24-2001
01-052	Amends the Lafayette Park 1 Redevelopment	04-25-2001
01-053	Amends the Liberty Harbor North Redevelopment Plan	05-16-2001
01-071	Amends Liberty Harbor North Redevelopment Plan	06-13-2001
01-097	Amends Martin Luther King Drive Redevelopment Plan	09-12-2001
01-108	Amends Journal Square Redevelopment Plan	09-26-2001
01-118	Amends Droyers Point Redevelopment Plan	10-24-2001
01-127	Amends Exchange Place North Redevelopment Plan	11-28-2001
01-133	Amends Liberty Harbor North Redevelopment Plan	01-09-2002
02-010	Amends Morris Canal Redevelopment Plan	02-27-2002
02-011	Amends Greenville Industrial Redevelopment Plan	02-27-2002
02-036	Amends the Morris Canal Redevelopment Plan and Acquisition Map	03-27-2002
02-056	Amendments to the Martin Luther King Drive Redevelopment Plan	05-22-2002
02-080	Amendment to the Liberty Harbor Redevelopment Plan	07-17-2002
02-094	Merger of TCR Jersey City I Urban Renewal into Windsor at Jersey City Urban Renewal, LLC	09-12-2002
02-108	Amendments to the Lafayette Park Redevelopment Plan	09-25-2002
02-110	Amendments to the Grand Jersey Development Plan	09-25-2002
02-121	Amendments to the Morris Canal Redevelopment Plan	11-13-2002

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
03-002	Sale of an affordable housing project and the transfer of a tax abatement agreement from Audubon Park Associates to Audubon Urban Renewal Associates, LP	01-22-2003
03-030	Amendments to the Martin Luther King Drive Redevelopment Plan	03-26-2003
03-038	Amendments to the Turnkey Redevelopment Plan	03-26-2003
03-039	Amendments to the Grove Street Station II Redevelopment Plan	03-26-2003

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
03-066	Amendments to the Monticello Avenue Redevelopment Plan	05-28-2003
03-097	Amendment to Water Street Redevelopment Plan	07-02-2003
03-135	Adoption of Western Gateway Redevelopment Plan	09-24-2003
03-158	Amendment to Hudson Exchange Redevelopment Plan	Defeated 12-10-2003
03-164	Amendment to Hudson Exchange Redevelopment Plan	01-14-2004
04-003	Amendment to Vacant Building Redevelopment Plan	01-28-2004
04-017	Amendment to Jersey Avenue Redevelopment Plan	Defeated 02-25-2004
04-024	Adoption of Sip Avenue Gateway Redevelopment Plan	03-10-2004
04-025	Amendment to Jersey Avenue Redevelopment Plan	03-10-2004
04-026	Re-appropriating funds to provide for assistance to the Jersey City Redevelopment Agency	03-24-2004
04-027	Expansion of Water Street Redevelopment Plan	03-24-2004
04-029	Amendment to Hudson Exchange Redevelopment Plan	03-24-2004
04-043	Expansion of Water Street Redevelopment Plan	Tabled 04-28-2004
04-044	Adoption of Boland Street Redevelopment Plan	04-28-2004
04-074	Adoption of Columbus Comer Redevelopment Plan	08-11-2004
04-082	Amendment to Morris Canal Redevelopment Plan	08-11-2004
04-099	Amendment to Jersey Avenue Redevelopment Plan	10-13-2004
04-118	Adoption of Powerhouse Arts District Redevelopment Plan; amendment to the boundary and standards of Hudson Exchange, Exchange Place North, Morgan and Washington, and the Bay Street Redevelopment Plan Areas	10-27-2004
04-119	Amendment to Sip Avenue Gateway Redevelopment Plan	10-27-2004
04-120	Amendment to Ocean/Bayview Redevelopment Plan	10-27-2004
04-121	Amendment to Colgate Redevelopment Plan	10-27-2004
05-007	Adopting the NJCU West Campus Redevelopment Plan	02-09-2005
05-011	Adopting the Powerhouse Arts District Redevelopment Plan and adopting amendment to the Powerhouse Arts District Redevelopment Plan and reamending the boundaries of Hudson Exchange, Exchange Place North, Morgan and Washington, and Bay Street Redevelopment Areas and Redevelopment Plans	02-23-2005
05-024	Adopting the West Side Avenue Redevelopment Plan	03-23-2005
05-029	Amendment to Liberty Harbor North Redevelopment Plan	03-23-2005
05-058	Amendment to Summit Avenue Redevelopment Plan	06-08-2005
05-080	Amendment to Grove Street NDP Area Redevelopment Plan	06-22-2005
05-081	Amendment to Martin Luther King Drive Redevelopment Plan	06-22-2005
05-101	Adopting amendments to the Jersey Avenue Redevelopment Plan to eliminate the restriction on light industrial uses north of the Erie Lackawanna railroad tracks	08-20-2005
05-139	Adopting amendments to the Claremont Industrial Redevelopment Plan	10-12-2005
05-160	Amends to the Village Study Area Redevelopment Plan	11-22-2005
05-172	Amendments to Morris Canal Redevelopment Plan	01-11-2006
06-020	Amendments to Colgate Redevelopment Plan	02-22-2006

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Ord. No.	Subject Matter	Date of Adoption
06-021	Adopting Morgan/Grove/Marin (MGM) Redevelopment Plan	02-22-2006
06-039	Amendment to Liberty Harbor North Redevelopment Plan	04-12-2006
06-040	Amendments to Turnkey Redevelopment Plan	04-12-2006
06-043	Amendments to Martin Luther King Drive Redevelopment Plan	04-12-2006
06-044	Adopting Majestic Theater II Redevelopment Plan	04-12-2006
06-045	Adopting Merseles Street Redevelopment Plan	04-12-2006
06-046	Amendments to Republic Container Redevelopment Plan	04-12-2006
06-047	Amendment to Green Villa Redevelopment Plan	04-12-2006
06-052	Adopting Saint Francis Hospital Adaptive Re-Use Redevelopment Plan	04-26-2006
06-065	Adopting the Bates Street Redevelopment Plan	05-24-2006
06-072	Adopting an amendment to the Journal Square Redevelopment Plan	06-14-2006
06-087	Adopting the 325 Palisade Avenue Redevelopment Plan	07-19-2006
06-092	Adopting amendments to the Colgate Redevelopment Plan	08-16-2006
06-097	Adopting amendments to the Powerhouse Arts District Redevelopment Plan	08-16-2006
06-100	Adopts the Hoboken Avenue Redevelopment Plan	09-13-2006
06-118	Adopting the Hackensack River Edge Redevelopment Plan	10-11-2006
06-129	Adopting amendments to the Morris Canal Redevelopment Plan	11-08-2006
06-132	Adopting amendments to the Martin Luther King Drive Redevelopment Plan	11-08-2006
06-136	Adopting amendments to the Powerhouse Arts District Redevelopment Plan	11-21-2006
06-166	Adopting amendments to the Ninth Street II Study Area Redevelopment Plan	01-10-2007
07-007	Adopting amendments to the Vacant Buildings Redevelopment Plan	02-14-2007
07-013	Implementing Campaign Reform for Redevelopment contracts within the City of Jersey City	Defeated 01-24-2007
07-018	Adopting amendments to the Turnkey Redevelopment Plan	02-28-2007
07-019	Adopting an amendment to the Liberty Harbor North Redevelopment Plan	02-28-2007
07-020	Adopting amendments to the Ocean/Bayview Redevelopment Plan	02-28-2007
07-023	Adopting an amendment to the Hackensack River Edge Redevelopment Plan	02-28-2007
07-028	Requiring Apprenticeships and Project Labor Agreements on certain public construction contracts and construction contracts for which a tax abatement has been granted	Defeated 10-24-2007
07-037	Adopting an amendment to the Jersey Avenue Redevelopment Plan	03-14-2007
07-038	Adopting an amendment to the Morris Canal Redevelopment Plan regarding community empowerment	03-14-2007
07-039	Adopting an amendment to the Morris Canal Redevelopment Plan regarding mixed use	03-14-2007
07-040	Adopting amendments to the Martin Luther King Drive Redevelopment Plan	03-14-2007
07-041	Adopting an amendment to the Grove Street II Redevelopment Plan	Withdrawn 02-28-2007
07-042	Adopting an amendment to the Journal Square Redevelopment Plan	03-14-2007
07-050	Adopting amendments to the Martin Luther King Drive Redevelopment Plan	Withdrawn 03-14-2007
07-062	Adopting a revised Monticello Avenue Redevelopment Plan	04-25-2007

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Ord. No.	Subject Matter	Date of Adoption
07-087	Adopting an amendment to the Grove Street II Redevelopment Plan	Defeated 10-24-2007
07-098	Adopting an amendment to the Journal Square Redevelopment Plan	06-13-2007
07-099	Adopting an amendment to the Grove Street II Redevelopment Plan providing for Shoppers' Parking	06-13-2007
07-100	Adopting an amendment to the Exchange Place North Redevelopment Plan	06-13-2007
07-109	Adopting amendments to the Tidewater Redevelopment Plan	06-27-2007
07-110	Adopting amendments to the Liberty Harbor North Redevelopment Plan	06-27-2007
07-111	Authorizing the transfer of city-owned property within Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency	06-27-2007
07-131	Authorizing the acquisition of a Riparian Grant from the State of New Jersey for Block 60, Lots 27B, 27E, 41 and 51 within the Liberty Harbor North Redevelopment Plan	08-08-2007
07-141	Amending the Martin Luther King Drive Redevelopment Plan to add the Warner Avenue Martin Luther King Drive Extension Study Area	08-22-2007
07-142	Adopting an amendment to the Journal Square Redevelopment Plan	08-22-2007
08-007	Amending the NJCU West Campus Redevelopment Plan	02-13-2008
08-025	Adopting the Bayfront I Redevelopment Plan	03-12-2008
08-029	Adopting the Bright Street Redevelopment Plan	03-26-2008
08-039	Adopting amendments to the Powerhouse Arts District Redevelopment Plan	04-09-2008
08-043	Adopting the Hopkins and Central Avenues Redevelopment Plan	04-23-2008
08-053	Amendment to the Hackensack River Edge Redevelopment Plan	05-14-2008
08-059A	Amending the Martin Luther King Drive Redevelopment Plan to add the Claremont Avenue MLK Extension Study Area	05-28-2008
08-060	Adopting an amendment to the Morris Canal Redevelopment Plan	05-28-2008
08-081	Amendment to the Hackensack River Edge Redevelopment Plan	06-25-2008
08-082	Amending the Jersey Avenue Park Redevelopment Plan	06-25-2008
08-083	Amending the Liberty Harbor Redevelopment Plan	06-25-2008
08-084	Amending the boundary between the Morris Canal Redevelopment Plan and the Claremont Redevelopment Plan	06-25-2008
08-085	Amending the Morris Canal Redevelopment Plan by removing lands south of the Light Rail R-O-W from the Morris Canal Area, renaming them as the Canal Crossing Redevelopment Plan Area and adopting new standards to guide their redevelopment	Defeated 06-25-2008
08-086	Adopting the 826 Ocean Avenue Redevelopment Plan	06-25-2008
08-099	Amending the Monticello Avenue Redevelopment Plan	08-06-2008
08-104	Adopting the 23-25 Duncan Avenue Redevelopment Plan	08-06-2008
08-111	Amending the Hopkins and Central Avenues Redevelopment Plan	08-20-2008
08-120	Adopting the Newark Avenue Downtown Redevelopment Plan	09-24-2008
08-121	Adopting amendments to the Village Study Area Redevelopment Plan	09-10-2008
08-131	Amending the NJCU West Campus Redevelopment Plan	Withdrawn 09-10-2008
08-132	Adopting an amendment to the Colgate Redevelopment Plan to extend the plan's duration to forty years	09-24-2008
08-142	Adopting the Danforth Avenue Transit Village Redevelopment Plan	10-07-2008

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Ord. No.	Subject Matter	Date of Adoption
08-145	Amending the Liberty Harbor Redevelopment Plan to prohibit monopole towers	10-22-2008
08-156	Amending the Monticello Avenue Redevelopment Plan to incorporate the Monticello Avenue Extension Study Area	11-25-2008
08-157	Adopting an amendment to the School No. 2 Redevelopment Plan	11-25-2008
08-158	Adopting an amendment to the Grand Jersey Redevelopment Plan to allow public parking garages	11-25-2008
08-160	Adopting an amendment to the Dixon Crucible Redevelopment Plan to allow restaurants and cafes as a principal use	11-25-2008
08-169	Amend the Morris Canal Redevelopment Plan boundary by removing Block 1916, Lots 18A, 17B, and 12; Block 2083, Lots 85A and 95 and making them part of the Medical Center Study Area Redevelopment Plan	12-17-2008
08-170	Amend the Medical Center Study Area Redevelopment Plan by renaming it the Beacon Redevelopment Plan and adopting new standards to guide its re-development	12-17-2008
08-171	Amend the Morris Canal Redevelopment Plan by removing lands south of the Light Rail R-O-W from the Morris Canal Area, and renaming them as the Canal Crossing Redevelopment Plan area and adopting new standards to guide their redevelopment	Defeated 11-25-2008
09-006	Ordinance of the Municipal Council of the City of Jersey City to amend the Morris Canal Redevelopment Plan by removing lands south of the Light Rail R-O-W from the Morris Canal Area, re-naming them as the Canal Crossing Redevelopment Plan Area and adopting new standards to guide their redevelopment	01-28-2009
09-050	Ordinance amending Ordinance 07-188 that authorized the conveyance of Block 2026.A, Lot 3.A and Block 2026.1, Lots 3.B, 2a and 4.A within the Canal Crossings Redevelopment Plan Area to the Jersey City Redevelopment Agency	04-22-2009
09-053	Ordinance of the Municipal Council of the City of Jersey City amending the Jersey Avenue Park Redevelopment Plan to allow partial block sites to participate in the bonus provisions	05-20-2009
09-054	Ordinance of the Municipal Council of the City of Jersey City adopting amendments to the Hackensack River Edge Redevelopment Plan permitting several industrial uses	05-20-2009
09-055	Ordinance authorizing the conveyance of Block 1931, Lot l.A, more commonly known by the street address of 520 Bergen Avenue, within the Monticello Avenue Redevelopment Plan Area to the Jersey City Redevelopment Agency	05-20-2009
09-063	Ordinance authorizing the conveyance of Block 60, Lots 19H and 19G and Block 2145, Lot 41T within the Grand Jersey Redevelopment Plan Area to the Jersey City Redevelopment Agency	05-22-2009
09-071	Ordinance of the Municipal Council of the City of Jersey City adopting an amendment to the Morris Canal Redevelopment Plan	06-17-2009
09-090	Ordinance of the Municipal Council of the City of Jersey City adopting the Summit and Fairmount Redevelopment Plan	08-12-2009
09-092	Ordinance adopting an amendment to the Tidewater Basin Redevelopment Plan to remove Block 166, Lots 1 and 2 from the acquisition schedule	09-09-2009
09-117	Ordinance to adopt the Cambridge and North Redevelopment Plan	11-24-2009

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Ord. No.	Subject Matter	Date of Adoption
09-118	Ordinance establishing a conservation restriction affecting properties owned by the City of Jersey City known as Block 1627, Lots l.P, 2.A, 3.B, 5.1 and Block 1639.A, Lots l.C, 3, 4,4.C, 6.A and 7	11-24-2009
09-125	Ordinance approving the application for state incentive grant by Newport Office Center VI, LLC subject to New Jersey Economic Development Authority approval	12-16-2009
10-004	Ordinance adopting the second set of amendments to the NJCU West Campus Redevelopment Plan	01-27-2010
10-026	Amendments to the Martin Luther King Drive Redevelopment Plan	03-10-2010
10-028	Amendments to the Village Study Area Redevelopment Plan	03-10-2010
10-036	Amendments to the Tidewater Basin Redevelopment Plan	03-24-2010
10-053	Amendments to the Tidewater Basin Redevelopment Plan—Grand and Marin Subdistrict	04-28-2010
10-064	Amendments to the Morris Canal Redevelopment Plan to create Transit Oriented Development (TOD) subdistricts	05-12-2010
10-076	Amendments to HUB District of the Martin Luther King Drive Redevelopment Plan	06-09-2010
10-082	Amendments to the Claremont Redevelopment Plan	07-14-2010
10-103	Adopting Journal Square 2060 Redevelopment Plan	08-25-2010
10-104	Amendments to the Morris Canal Redevelopment Plan	08-25-2010
10-105	Amendments to the Martin Luther King Drive Redevelopment Plan	08-25-2010
10-115	Adopting amendments to the Morris Canal Redevelopment Plan to revise fees for plan amendments	09-29-2010
10-117	Authorizing transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	09-29-2010
10-124	Adopting amendments to the Liberty Harbor Redevelopment Plan	10-13-2010
10-130	Adopting amendments to the Martin Luther King Drive Redevelopment Plan clarifying elevator requirements	11-10-2010
10-131	Adopting amendments to the Newport Redevelopment Plan to amend permitted uses	11-10-2010
10-134	Adopting amendments to the Ocean/Bayview Redevelopment Plan to permit medical offices	11-10-2010
10-147	Adopting amendments to Bates Street Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure	11-23-2010
10-148	Adopting amendments to Caven Point Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	11-23-2010
10-149	Adopting amendments to Grand Jersey Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	11-23-2010
10-150	Adopting amendments to Greenville Industrial Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	11-23-2010
10-151	Adopting amendments to Jersey Avenue Light Rail Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	11-23-2010
10-152	Adopting amendments to Jersey Avenue Park Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	11-23-2010

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Ord. No.	Subject Matter	Date of Adoption
10-153	Adopting amendments to Jersey Avenue Tenth Street Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	11-23-2010
10-154	Adopting amendments to Liberty Harbor Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure	11-23-2010
10-155	Adopting amendments to Montgomery Street Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	11-23-2010
10-156	Adopting amendments to Morris Canal Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure	11-23-2010
10-165	Adopting amendments to Turnkey Redevelopment Plan	12-15-2010
10-174	Amending the Liberty Harbor North Redevelopment Plan	01-12-2011
10-175	Amending the Exchange Place North Redevelopment Plan City View District	01-12-2011
11-004	Re-instating the prior Liberty Harbor Redevelopment Plan	01-26-2011
11-024	Amending the Morris Canal Redevelopment Plan to amend standards for ground floor residential uses in the Mixed Use A Subdistrict	02-23-2011
11-027	Amending the Lafayette Park Redevelopment Plan to create a new Lafayette Village Zone with R-3 zoning standards and to revise site plan review procedure	03-09-2011
11-029	Amending the Hudson Exchange Redevelopment Plan to eliminate conditional uses and replace the boundary map	03-23-2011
11-032	Amending the Grand Jersey Redevelopment Plan to implement comprehensive new urbanist development standards from the area	03-23-2011
11-039	Amending the Bright Street Redevelopment Plan	04-13-2011
11-040	Adopting the Block 239 Lot 47 Redevelopment Plan	04-13-2011
11-042	Amending the Village Study Area Redevelopment Plan	04-13-2011
11-054	Adopting amendments to the Montgomery Gateway Redevelopment Plan adding an Adaptive Reuse District	05-11-2011
11-058	Adopting the 8 Erie Street Redevelopment Plan	05-25-2011
11-071	Adopting amendments to the Morris Canal Redevelopment Plan to permit residential re-use of All Saints School	06-29-2011
11-072	Adopting amendments to the Exchange Place North Redevelopment Plan to add the deviation clause	06-29-2011
11-074	Adopting amendments to the Liberty Harbor North Redevelopment Plan relating to Redevelopment Plan Block 5	07-20-2011
11-089	Adopting the McGinley Square East Redevelopment Plan	10-12-2011
11-091	Adopting amendments to the Montgomery Gateway Redevelopment Plan to permit emergency and ambulance dispatch centers and to remove outdated procedures from the plan	08-31-2011
11-092	Adopting amendments to the Monticello Avenue Redevelopment Plan to allow a shoppers parking lot as a conditional use	08-31-2011
11-135	Adopting the Bright and Varick Redevelopment Plan	11-09-2011
11-146	Authorizing the conveyance of city-owned property within the Ocean Bayview Redevelopment Area to the Jersey City Redevelopment Agency	12-14-2011
11-147	Adopting the Ninth and Brunswick Redevelopment Plan	12-14-2011
11-158	Authorizing a license agreement extension of city-owned property at 627 Grand Street within the Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency	01-11-2012

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
12-009	Adopting height amendments to the Ninth Street II Study Area Redevelopment Plan	02-08-2012
12-027	Adopting map change amendments to the Beacon Redevelopment Plan and revising outdated language	03-14-2012
12-037	Adopting amendments to the Powerhouse Arts District Redevelopment Plan to encourage consolidation and development on undersized parcels in the Transition Subdistrict	03-28-2012
12-041	Adopting amendments to the Grand Jersey Redevelopment Plan	03-28-2012
12-047	Adopting amendments to the Luis Munoz Marin Boulevard Redevelopment Plan	04-11-2012
12-059	Adopting amendments to the Hudson Exchange Redevelopment Plan and changing its name to Harsimus Cove Station Redevelopment Plan	05-09-2012
12-082	Adopting the 1 Exchange Place Redevelopment Plan	06-27-2012
12-083	Adopting amendments to the Morris Canal Redevelopment Plan to create Berry Lane Park Subdistricts, to incorporate new block and lot numbers, and to reorganize the content of the plan	06-27-2012
12-084	Adopting amendments to the Newport Redevelopment Plan to amend maps and definitions	06-27-2012
12-099	Adopting amendments to the West Side Avenue Redevelopment Plan	08-01-2012
12-100	Adopting amendments to the 325 Palisade Avenue Redevelopment Plan	08-01-2012
12-110	Adopting amendments to the Jersey Avenue Light Rail Redevelopment Plan Parking Standards	09-12-2012
12-111	Adopting amendments to the Jersey Avenue Park Redevelopment Plan Parking Standards	09-12-2012
12-115	Adopting amendments to the Majestic II Redevelopment Plan regulations relating to use, density, and building configuration	09-27-2012
12-117	Adopting amendments to the Jersey Avenue Park Redevelopment Plan New Tax Block 6006 (formerly Tax Block 330)	09-27-2012
12-119	Adopting amendments to the Exchange Place North Redevelopment Plan to update fees, procedures, and metes and bounds	09-27-2012
12-126	Adopting amendments to the Liberty Harbor North Redevelopment Plan relating to Redevelopment Plan Block S 1, 3, and 19 through 27	10-10-2012
12-141	Adopting amendments to the Journal Square 2060 Redevelopment Plan	11-28-2012
12-142	Adopting amendments to the Exchange Place North Redevelopment Plan to codify the planning board approvals granted 70-90 Columbus Drive	11-28-2012
12-143	Adopting an amendment to the definition of work/live unit in the Morgan/Grove/Marin (MGM) Redevelopment Plan	11-28-2012
13-004	Adopting amendments to the Sip Avenue Gateway Redevelopment Plan permitting houses of worship	02-13-2013
13-005	Adopting amendments to the Turnkey Redevelopment Plan	02-13-2013
13-007	Adopting amendments to the Canal Crossing Redevelopment Plan to create consistency between Land Development Orcfinance definitions and permitted uses in the plan	02-13-2013
13-018	Amending the Claremont Redevelopment Plan to clarify uses and fees	02-27-2013
13-019	Adopting amendments to the Hoboken Avenue Redevelopment Plan to clarify permitted uses	02-27-2013
13-023	Accepting from LT Realty COMPANY, LLC a dedication of certain roadways, sidewalks and utilities located within the Colgate Redevelopment Plan Area	02-27-2013

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
13-028	Adopting an amendment to the Colgate Redevelopment Plan to clarify uses and provide legible maps	03-13-2013
13-029	Adopting the Route 440-Culver Redevelopment Plan	03-13-2013
13-036	Adopting amendments to the Liberty Harbor North Redevelopment Plan relating to Redevelopment Plan Blocks 16,17, the widening of Park View Avenue, new parks and civic facilities	03-28-2013
13-041	Adopting amendments to the Martin Luther King Drive Redevelopment Plan increasing height limits at the hub	04-24-2013
13-051	Amending the Saint Francis Hospital Redevelopment Plan to change the name to Hamilton Square Redevelopment Plan and to revise development standards	05-08-2013
13-052	Adopting amendments to the Newark Avenue Downtown Redevelopment Plan	05-08-2013
13-074	Adopting amendments to the Webster Avenue Redevelopment Plan Area for Block 2905 Lot 29 permitted uses	06-19-2013
13-075	Adopting amendments to the Morgan/Grove/Marin (MGM) Redevelopment Plan to create a community benefit bonus provision	06-19-2013
13-092	Adopting amendments to the Journal Square 2080 Redevelopment Plan regarding split zoned development sites	09-11-2013
13-093	Adopting amendments to the Water Street Redevelopment Plan to create a high rise zone and update terms throughout for consistency with the zoning glossary	09-11-2013
13-094	Adopting amendments to the Village Study Area Redevelopment Plan to clarify permitted uses	09-11-2013
13-099	Adopting amendments to the Danforth Avenue Transit Village Redevelopment Plan to allow for an industrial overlay	09-25-2013
13-102	Adopting amendments to the Liberty Harbor North Redevelopment Plan to add dog and cat daycare and overnight boarding as a permitted use with specific restrictions	10-09-2013
13-103	Adopting amendments to the Morris Canal Redevelopment Plan to prohibit liquor stores	10-09-2013
13-117	Adopting amendments to the Powerhouse Arts District Redevelopment Plan to assist in the rehabilitation of the landmark Butler Brothers Warehouse	10-23-2013
14-014	Adopting amendments to the Exchange Place Redevelopment Plan to add medical offices as a permitted use	02-26-2014
14-023	Adopting amendments to the Montgomery Street Redevelopment Plan to reorganize content and create a mixed use district	03-12-2014
14-024	Adopting amendments to the Morris Canal Redevelopment Plan to expand an adaptive reuse district	03-12-2014
14-046	Repealing Ordinance 13.099 amending the Danforth Avenue Transit Village Redevelopment Plan	05-14-2014
14-047	Adopting amendments to the Paulus Hook Redevelopment Plan to permit the subdivision of developed property while requiring the sum of the new multiple lots to meet the applicable zoning requirements	05-14-2014
14-048	Adopting amendments to the McGinley Square East Redevelopment Plan	05-14-2014
14-060	Adopting amendments to the McGinley Square East Redevelopment Plan to require a bonus fee for floor area above eight (8) stories	06-11-2014
14-065	Adopting amendments to the Liberty Harbor North Redevelopment Plan to amend the regulating standards relating to Block 1 of the Redevelopment Plan	06-25-2014
14-071	Adopting the Block 10102 Redevelopment Plan	06-25-2014

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
14-072	Adopting amendments to the Luis Munoz Marin Boulevard Redevelopment Plan	06-25-2014
14-076	Adopting amendments to the Morris Canal Redevelopment Plan to create an adaptive reuse district and modify density	07-16-2014
14-097	Adopting amendments to the Journal Square 2060 Redevelopment Plan	09-10-2014
14-107	Adopting amendments to the Ninth & Brunswick Redevelopment Plan to expand permitted uses, modify parking requirements, and other administrative items	09-23-2014
14-108	Adopting amendments to the Village Redevelopment Plan to permit apartment buildings on Block 11110	09-23-2014
14-120	Adopting amendments to the Tidewater Basin Redevelopment Plan to create a Mixed Use District	10-08-2014
14-135	Adopting amendments to the Journal Square 2060 Redevelopment Plan	10-22-2014
14-144	Removing lots from the Danforth Transit Village Redevelopment Plan and adopting the Chapel Avenue Industrial Park Redevelopment Plan	11-25-2014
14-165	Adopting amendments to the Harsimus Cove Station Redevelopment Plan to alter the street grid, add open space, and make minor design regulation changes	12-17-2014
14-173	Adopting amendments to the Tidewater Basin Redevelopment Plan to modify mixed use district uses and clarify language	01-14-2015
14-174	Adopting amendments to the Ocean Bayview Redevelopment Plan to bring language up to date	01-14-2015
15-014	Adopting amendments to the Colgate Redevelopment Plan to alter the height and open space of Block 14507 and make minor design and regulation changes	02-25-2015
15-022	Adopting amendments to the Montgomery Street Redevelopment Plan to allow self storage uses	03-11-2015
15-024	Adopting amendments to the Liberty Harbor Redevelopment Plan to allow self storage uses	03-11-2015
15-043	Adopting amendments to the Village Redevelopment Plan to permit townhouses	04-08-2015
15-049	Adopting amendments to the Powerhouse Arts District Redevelopment Plan Rehabilitation Sub-District	08-19-2015
15-050	Adopting the Garfield Avenue Redevelopment Plan	05-13-2015
15-051	Adopting amendments to the Morgan/Grove/Marin (MGM) Redevelopment Plan to create a community benefit bonus provision on Block 11508 along the Luis Munoz Marin Boulevard frontage and to expand the four-story Sub-District "A" Zone	05-13-2015
15-053	Adopting amendments to various redevelopment plans to add formula business restrictions	05-13-2015
15-066	Adopting amendments to the Morris Canal Redevelopment Plan to modify permitted uses, height, and density, as well as create an affordable housing provision in TOD-W Zone	05-27-2015
15-067	Adopting amendments to the Tidewater Basin Redevelopment Plan to allow medical offices	05-27-2015
15-083	Adopting amendments to the Powerhouse Arts District Redevelopment Plan creating a new Southern Edge Transition District	06-24-2015
15-114	Amending the Vacant Buildings Redevelopment Plan	09-09-2015

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	Subject Matter	Date of Adoption
15-143	Adopting amendments to the Powerhouse Arts District Redevelopment Plan Rehabilitation Subdistrict to accommodate the adaptive reuse of the historic Merchants' Refrigeration Company Building for self-storage and first floor commercial space, which property is located at 133 Second Street and designated as Block 11502, Lot 1 on the tax map of the City	10-28-2015
15-144	Adopting the Scatter Site Redevelopment Plan	10-28-2015
15-160	Adopting amendments to the Henderson Street South Redevelopment Plan to modify the duration of the plan	11-24-2015
15-182	Adopting amendments to the TOD-N Zone of the Morris Canal redevelopment plan	01-13-2016
15-183	Adopting amendments to the zoning map of the Morris Canal Redevelopment Plan	01-13-2016
15-187	Adopting the Ocean Avenue South Redevelopment Plan	01-13-2016
16-010	Authorizing the transfer of City-owned property within the Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency	01-27-2016
16-014	Adopting amendments to the Journal Square 2060 Redevelopment Plan creating a new Zone 12 and bonus incentives for office space	02-10-2016
16-031	Adopting amendments to the Water Street Redevelopment Plan to incentivize affordable housing	02-24-2016
16-050	Adopting amendments to the Morris Canal Redevelopment Plan to create an affordable housing provision in the TOD-W Zone	03-23-2016
16-072	Adopting amendments to the Liberty Harbor North Redevelopment Plan to amend the regulating standards relating to Block 10 of the Redevelopment Plan	05-11-2016
16-090	Adopting amendments to the Morris Canal Redevelopment Plan in the TOD-W Zone for Blocks 15802 and 19003	05-25-2016
16-093	Amending the Scatter Site Redevelopment Plan	06-15-2016
16-094	Adopting amendments to the Morris Canal Redevelopment Plan to provide standards for the R-2 Zone and specify required community benefits	06-15-2016
16-095	Adopting amendments to the Ninth & Brunswick Redevelopment Plan to expand permuted uses	06-15-2016
16-097	Adopting amendments to the Journal Square 2060 Redevelopment Plan concerning parcels previously declared in need of redevelopment	06-15-2016
16-106	Bond ordinance of the City providing aid to the West Campus Redevelopment Project located in the City and appropriating $16,000,000 therefor, and providing for the issuance of $16,000,000 in bonds or notes of the City to finance part of the cost thereof	07-13-2016
16-107	Approving an amendment to the Journal Square Lofts Urban Renewal, LLC, financial agreement dated May 11, 2016, to correct the unit number and property address	07-13-2016
16-110	Adopting amendments to the Village Redevelopment Plan to permit apartment buildings on Block 12701, Lots 8, 9,10 and 12	07-13-2016
16-125	Adopting amendments to the bates street redevelopment plan	09-14-2016
16-126	Adopting the Jackson Hill Redevelopment Plan	09-14-2016
16-127	Adopting amendments to the Lafayette Park Redevelopment Plan	09-14-2016
16-128	Adopting amendments to the Montgomery Gateway Redevelopment Plan	09-14-2016
16-156	Amending the Paulus Hook Redevelopment Plan to remove Tax Block 13102 and to create the Block 13102 Redevelopment Plan	10-12-2016
16-163	Adopting amendments to the Journal Square 2060 Redevelopment Plan to amend Zone 10	10-26-2016

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	**Subject Matter**	**Date of Adoption**
16-164	Adopting amendments to the Journal Square 2060 Redevelopment Plan to add a public arts fund bonus	10-26-2016
16-165	Adopting amendments to the Journal Square 2060 Redevelopment Plan to adjust zone boundaries and corner lot bonuses	10-26-2016
16-170	Adopting amendments to the mixed use zones of the Morris Canal Redevelopment Plan	11-09-2016
16-174	Adopting amendments to the Ocean Bayview Redevelopment Plan to include adaptive reuse provisions	11-22-2016
16-194	Approving the execution of (1) a financial agreement with PH Urban Renewal LLC and (2) a pledge agreement related to the authorization and issuance by the Jersey City Redevelopment Agency (JCRA) of redevelopment area bonds (non-recourse to the full faith and credit of the City) not to exceed $1,000,000.00 and determining various other matters in connection therewith	02-08-2017
17-001	Adopting amendments to the Water Street Redevelopment Plan creating standards for split zoned development sites	01-25-2017
17-002	Adopting amendments to the Liberty Harbor Redevelopment Plan for the creation of the Science and Technology District	01-25-2017
17-032	Adopting amendments to Jersey Avenue Park Redevelopment Plan to create the Emerson District	03-22-2017
17-081	Adopting the Route 440-Culver Extension Study Area into the Route 440-Culver Redevelopment Plan	06-28-2017
17-082	Adopting amendments to the Harsimus Cove Station Redevelopment Plan to alter the Building Regulating Plan Map and Intensity Summary Table of the West Neighborhood District	07-19-2017
17-087	Adopting amendments to Jersey Avenue Park Redevelopment Plan regarding heights and administrative clauses	07-19-2017
17-136	Adopting amendments to Dixon Crucible Redevelopment Plan to institute a scattered site district and associated standards	10-11-2017
17-172	Adopting amendments to the Grand Jersey Redevelopment Plan to create a new park zone and revise other general design and development standards of the plan	12-13-2017
17-174	Adopting amendments to the Journal Square 2060 Redevelopment Plan to amend bonus standards for the construction and extension of Central Avenue and Homestead Place	12-13-2017
17-175	Amending and supplementing Chapter 345, Zoning, for Zone 3 to allow houses of worship as a permitted use	12-13-2017
18-011	Adopting the Enos Jones Redevelopment Plan	03-14-2018
18-015	Adopting amendments to the Montgomery Gateway Redevelopment Plan regarding medical offices use	03-14-2018
18-052	Adopting amendments to the Morgan Grove Marin Redevelopment Plan regarding standards and requirements of the community benefit bonus on Block 11508	06-13-2018
18-076	Adopting amendments to the Chapel Avenue Industrial Park Redevelopment Plan to include the industrial area governed by the Danforth Avenue Transit Village Redevelopment Plan and thereby eliminating the Danforth Avenue Transit Village Redevelopment Plan	07-18-2018
18-089	Adopting amendments to the zoning map of the Morris Canal Redevelopment Plan	08-15-2018
18-090	Adopting amendments to the Enos Jones Redevelopment Plan incorporating property north of Ninth Street and thereby eliminating the Ninth and Brunswick Redevelopment Plan	08-15-2018

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	**Subject Matter**	**Date of Adoption**
18-118	Adopting amendments to the Berry Lane Park Zones of the Morris Canal Redevelopment Plan	10-10-2018
18-126	Adopting amendments to the Journal Square 2060 Redevelopment Plan to amend height standards in Zone 4, and create a new district, Zone 4A	11-07-2018
18-139	Adopting amendments to the TOD-North Zone of the Morris Canal Redevelopment Plan	12-19-2018
18-140	Adopting the Tonnele Avenue Light Industrial Area Redevelopment Plan	12-19-2018
18-146	Adopting amendments to the Mixed Use "D" Zone of the Morris Canal Redevelopment Plan	01-09-2019
19-009	Adopting amendments to the Colgate Redevelopment Plan regarding research/testing laboratories and permitted uses	02-27-2019
19-010	Adopting amendments to the Jersey Avenue Light Rail Redevelopment Plan to implement the Saint Lucy Overlay Bonus	02-27-2019
19-015	Adopting an amendment to the Journal Square 2060 Redevelopment Plan to modify the corner lot bonuses map	03-13-2019
19-019	Adopting amendments to the Adaptive Reuse District and the Residential District of the Garfield Avenue Redevelopment Plan	03-27-2019
19-027	Adopting amendments to the Canal Crossing Redevelopment Plan regarding the expansion of permitted uses and amendment of the ground floor frontage regulating plan	04-24-2019
19-038	Repealing Ordinances 15-052 and 15-053 imposing restrictions on formula businesses within certain redevelopment areas	05-08-2019
19-046	Adopting amendments to Block 15801 of the Transit Oriented Development North Zone in the Morris Canal Redevelopment Plan	05-08-2019
19-070	Changing the designation of the redevelopment entity responsible for carrying out the construction of the County Courthouse Complex pursuant to the Journal Square 2060 Redevelopment Plan from the Jersey City Redevelopment Agency to the Hudson County Improvement Authority	07-17-2019
19-095	Adopting amendments to the Journal Square 2060 Redevelopment Plan to amend the zoning regulations for Zone 4, "B" bonus corner lot regulations, for the property at 96-110 Tonnelle Avenue	09-25-2019
19-141	Adopting amendments to the Highway Mixed Use Zone of the Water Street Redevelopment Plan	10-23-2019
19-142	Adopting amendments to the Powerhouse Arts District Redevelopment Plan regarding the amendment of permitted commercial space and the expansion of permitted uses in the Rehabilitation Zone	10-23-2019
19-145	Adopting amendments to create the Adaptive Reuse Overlay Zone "G" in the Morris Canal Redevelopment Plan	10-23-2019
19-146	Adopting amendments to the NJCU West Campus Redevelopment Plan	11-14-2019
20-014	Adopting amendments to the Land Use Map of the Liberty Harbor Redevelopment Plan	02-26-2020
20-032	Providing for the special assessment of the cost of certain public infrastructure improvements within and nearby Coles Street Park, and authorizing the execution of certain agreements in connection therewith	05-06-2020
20-039	Adopting amendments to the Mixed Use B Zone of the Morris Canal Redevelopment Plan	06-10-2020
20-061	Adopting an amendment to the Scattered Site Redevelopment Plan to expand the boundaries of the Scattered Site Redevelopment Area	09-10-2020
20-072	Adopting amendments to the Bright Street Redevelopment Plan regarding accessory uses in Zone 3: Residential Infill	09-23-2020

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	**Subject Matter**	**Date of Adoption**
20-084	Amending the Liberty Harbor North Redevelopment Plan to reduce the height permitted on Block 16, a.k.a. 333 Morris Street	10-07-2020
20-086	Adopting amendments to the Canal Crossing Redevelopment Plan	10-07-2020
20-097	Adopting the Laurel Saddlewood Redevelopment Plan	11-12-2020
20-103	Amending the Morris Canal Redevelopment Plan regarding the creation of the Berry Lane Park North Zone a.k.a. 417 Communipaw Avenue	12-16-2020
20-114	Amending the Exchange Place North Redevelopment Plan regarding the addition of research/testing laboratory uses	01-13-2021
21-009	Amending the Bayfront I Redevelopment Plan and the Droyers Point Redevelopment Plan	02-24-2021
21-024	Accepting the dedication of certain roadways, sidewalks, and utilities located within the Liberty Harbor North Redevelopment Area	04-28-2021
21-032	Adopting the Central Avenue Block 2901 Redevelopment Plan	05-26-2021
21-033	Amendments to the Jackson Hill Redevelopment Plan boundary to include the Sacred Heart Campus as part of the Historic Neighborhood Mixed Use Zone and incorporate inclusionary zoning requirements	05-26-2021
21-035	Adopting amendments to the Jersey Avenue Light Rail Redevelopment Plan regarding overlay bonuses, affordable housing and school development bonuses, and general update to standards and regulations	05-26-2021
21-071	Adopting amendments to the Residential, Public/Quasi Public Retail Zone of the Ocean/Bayview Redevelopment Plan	11-10-2021
22-010	Adopting amendments to the Morris Canal Redevelopment Plan regarding the creation of the Berry Lane Park North Zone a/k/a 417 Communipaw Avenue Block 18901, Lots 23 and 29, on remand per September 23, 2021 court order	03-09-2022
22-013	Amending Chapter 332, Article II, Section 332-9, Stop intersections, to designate Academy Street and Tuers Avenue; and 18th Street and Coles Street as stop control intersections	02-24-2022
22-024	Adopting amendments to the Harsimus Cove Station Redevelopment Plan to alter the regulating plan maps and street sections as well as the intensity summary tables of the West-Neighborhood District	04-13-2022
22-031	Adopting amendments to the Powerhouse Arts District Redevelopment Plan regarding the addition of a conditional permitted use	04-13-2022
22-035	Adopting amendments to the Water Street Redevelopment Plan regarding property located at Block 20701, Lots 4 and 5 and Block 20704, Lots 1 and 2	04-13-2022
22-062	Adopting amendments to the Hamilton Square Redevelopment Plan regarding permitted uses	07-13-2022
22-063	Adopting amendments to the Mixed Use-A Zone and Map B of the Morris Canal Redevelopment Plan	07-13-2022
22-064	Adopting amendments to the Mixed Use-E Zone of the Morris Canal Redevelopment Plan	07-13-2022
22-068	Adopting the 174 Newark Avenue Redevelopment Plan	09-08-2022
22-069	Adopting amendments to the Tidewater Basin Redevelopment Plan to include the creation of the Inclusionary Housing Overlay District and to expand the list of permitted uses in the Historic Buffer Zone	09-08-2022
22-085	Amending the Journal Square 2060 Redevelopment Plan, Addition of Corner Bonus D provision within Zone 3: Commercial Center	10-13-2022
22-101	Adopting amendments to the Journal Square 2060 Redevelopment Plan regarding 701 Newark Avenue	12-14-2022

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	**Subject Matter**	**Date of Adoption**
22-102	Amend the Grand Jersey Redevelopment Plan regarding modifications to the street grid, regulating maps, building types, and street sections	12-14-2022
23-021	Adopting amendments to the Liberty Harbor North Redevelopment Plan to the permitted use and building type for a portion of Block 15907	03-23-2023
23-052	Adopting amendments to the Powerhouse Arts District Redevelopment Plan regarding the theater to be built on Block 11506 and the constitution of the non-profit board that shall control the theater	06-14-2023
23-053	Adopting amendments to the Route 440 Culver Redevelopment Plan to allow for interim uses	06-14-2023
23-055	Adopting the expansion and amendments to the Green Villa Redevelopment Plan	06-14-2023
23-094	Adopting amendments to the Morris Canal Redevelopment Plan including the creation of the Mixed Use - F Zone from properties currently zoned I District and Mixed Use - B District	09-20-2023
23-124	Adopting amendments to the Newport and Harsimus Cove Station Redevelopment Plans	12-13-2023
23-128	Revising the street names in the Bayfront Redevelopment Site	01-10-2024
24-004	Adopting amendments to the Powerhouse Arts District Redevelopment Plan to incorporate educational uses	02-22-2024
24-009	Adopting amendments to the Paulus Hook Redevelopment Plan and creating the Block 11606 Redevelopment Plan	03-20-2024
24-012	Adopting amendments to the Liberty Harbor North Redevelopment Plan regarding use and bulk standards on Tax Block 15907 also known as Block 24 of the Redevelopment Plan	03-20-2024
24-041	Creating amendments to the Jackson Hill Redevelopment Plan	06-12-2024
24-042	Amending the Exchange Place North Redevelopment Plan to allow for hospital and long-term care facilities	06-12-2024
24-053	Adopting amendments to the Greenville Industrial Redevelopment Plan to create the Linden Avenue East Remediation and Improvement bonus	06-26-2024
24-057	Adopting amendments to the Luis Munoz Marin Boulevard Redevelopment Plan regarding use and bulk standards to District 2 of the Redevelopment Plan and other associated standards	07-10-2024
24-065	Amending the Journal Square 2060 Redevelopment Plan regarding inclusion of a mandatory affordable housing requirement along with updates to some bulk, signage, and use standards	08-14-2024
24-073	Adopting the Fayette Broadway Redevelopment Plan	09-11-2024
24-077	Amending the Scatter Site Redevelopment Plan - Study Area 5	09-25-2024
24-107	Amending the West Side Avenue Redevelopment Plan expanding allowed uses in the Loft Residential District	01-15-2025
25-001	Adopting amendments to the Morris Canal Redevelopment Plan including regarding standards in the Mixed Use - C and Mixed Use - E Districts	02-13-2025
25-043	Adopting amendments to the Chapel Avenue Industrial Park Redevelopment Plan	04-09-2025
25-086	Adopting amendments to the Journal Square 2060 Redevelopment Plan and the Saint John's Redevelopment Plan	09-24-2025
25-097	Authorizing the execution of documents amending and releasing certain restrictions imposed on Block 15801, Lot 5 within the Jersey City Medical Center site to allow for its redevelopment	09-24-2025
25-106	An ordinance referring and adopting amendments to the Bright Street Redevelopment Plan allowed accessory uses in Zone 3: Residential Infill	11-12-2025

TABLE 5. REDEVELOPMENT PLANS		
Ord. No.	**Subject Matter**	**Date of Adoption**
25-116	Amending the Bates Street Redevelopment Plan	11-12-2025
25-117	Authorizing a settlement agreement to settle the litigation surrounding the Sixth Street Embankment	11-12-2025
26-015	Adopting amendments to the Powerhouse Arts District Redevelopment Plan	03-25-2026

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
C-891	Tax abatement with River City Flagship Urban Renewal Association	01-26-1989
C-892	Tax abatement with Claremont Urban Renewal Corporation	01-26-1989
C-901	Tax abatement with Center Court Urban Renewal Association	02-23-1989
C-902	Tax abatement with 101 Hudson Urban Renewal Associates	02-23-1989
C-927	Tax abatement with 115 C.C.D. Urban Renewal Corp.	03-23-1989
C-930	Tax abatement with Jersey City Episcopal Housing, Inc.	03-23-1989
C-931	Tax abatement with Newport Office Center II Urban Renewal Company	05-25-1989
C-954	Tax abatement with P.H.M. II Urban Renewal Associates	05-25-1989
C-955	Tax abatement with Kennedy Place Urban Renewal Associates	05-25-1989
C-956	Tax abatement with Stemco-Permaline Corporation	05-25-1989
C-961	Tax abatement with T.P.I. Urban Renewal Corporation	06-08-1989
C-968	Tax abatement with Tower America Urban Renewal Company	05-25-1989 vetoed 06-02-1989 veto overridden 06-08-1989
C-984	Tax abatement with Port Liberte Urban Renewal Association	05-25-1989
C-997	Tax abatement with 600 Pavonia Avenue Urban Renewal Associates	06-22-1989
C-999	Tax abatement with Lutheran Residence Corporation	06-22-1989
C-1002	Tax abatement with Let's Celebrate, Inc.	06-22-1989
McC-2	Amendment of tax abatement with Resurrection House (School 18) Housing Corporation	09-27-1989
McC-4	Tax abatement with Exchange Place Urban Renewal Association	09-27-1989
McC-51	Amendment of tax abatement with 101 Hudson Urban Renewal Associates	10-11-1989
McC-52	Amendment of tax abatement with Exchange Place Urban Renewal Association	10-25-1989
McC-52A	Amendment of tax abatement with Exchange Place Urban Renewal Association	10-25-1989
McC-90	Tax abatement with New Community Ocean Bayview Housing Corporation	01-10-1990
McC-96	Bond to authorize public improvements in Greenville Yard Area	01-24-1990
McC-113	Tax abatement with New Community Ocean Bayview Housing Associates, L.P.I.	03-14-1990
McC-114	Tax abatement with Lutheran Residence Corporation	03-28-1990
McC-116	Tax abatement with Fairmount Housing Corporation	03-28-1990
McC-117	Tax abatement with Journal Square Associates	04-11-1990
McC-135	Tax abatement with 151-151A Martin Luther King, Jr., Drive Cooperative Association	04-25-1990
McC-136	Tax abatement with 169 Martin Luther King, Jr., Drive Cooperative Association	04-25-1990
McC-149	Authorizing settlement of Midland Health Care Associates v. City of Jersey City by approving tax abatement agreement with Midland Health Care Associates	04-25-1990
McC-214	Amendment of tax abatement with Happens Associates Urban Renewal Association	12-19-1990
McC-216	Repeal of Ord. No. C-613	10-24-1990

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
McC-218	Repeal of Ord. Nos. C-930 and McC-2 and tax abatement with Resurrection House (School No. 18) Housing Corporation	11-20-1990
McC-244	Tax abatement with Neighborhood Housing Services of Jersey City Holding Company, Inc.	01-09-1991
McC-245	Repeal of Ord. No. C-819	12-19-1990
McC-279	Tax abatement with Bay Street Urban Renewal Development Corporation	04-24-1991
McC-279A	Transfer of Bay Street Urban Renewal Project to Bay Street Urban Renewal Development Corporation	04-10-1991
McC-290	Acquisition of certain utility easements by TPI Urban Renewal Corp.	03-13-1991
McC-312	Amendment of tax abatement with Grove Street Urban Renewal Corporation	04-10-1991
McC-337	Repeal of Ord. No. McC-148	07-17-1991
McC-341	Amendment of tax abatement with M.L.H. Urban Renewal Corporation	08-21-1991
McC-350	Amendment of tax abatement with Puerto Rican Lutheran Housing Corporation	09-11-1991
McC-354	Tax abatement with Euell Development Limited Dividend Housing Corporation	09-25-1991
McC-362	Requiring execution of first source and affirmative action agreement by recipient of any tax abatement or exemption of federal or state grant awarded by or through the city	09-25-1991
McC-380	Amendment of tax abatement with Arlington Associates	10-23-1991
McC-397	Tax abatement with New Community Ocean Bayview Housing Associates	01-08-1992
McC-411	Tax abatement with Puerto Rican Lutheran Corporation	02-11-1992
92-001	Repeal of Ord. No. C-648	03-11-1992
92-006	Transfer of property to Bread and Roses, Inc.	03-11-1992
92-007	Assignment of tax abatement to Bread and Roses, Inc.	03-11-1992
92-011	Repeal of Ord. No. C-1002	03-11-1992
92-064	Repeal of Ord. No. C-766	06-10-1992
92-086	Amendment of tax exemption of Old Colony Square Associates and assignment of tax exemption to K.B. Colony Realty Associates	09-16-1992
92-099	Franchise granted to 101 Hudson Urban Renewal Associates	09-16-1992
92-129	Amendment of tax abatement with Grove Street Urban Renewal Corporation	09-30-1992
92-130	Tax abatement with Villa Borinquen II Urban Renewal Associates	09-30-1992
92-133	Lease with Ukrainian National Urban Renewal Corp.	09-30-1992
92-167	Amendment of lease with Ukrainian National Urban Renewal Corp.	09-30-1992
93-014	Repeal of Ord. No. C-891	02-24-1993
93-015	Repeal of Ord. No. C-901	02-24-1993
93-032	Tax exemption for Mid City Apartments, L.P.	03-24-1993
94-010	Repeal of all prior ordinance relating to long-term and five-year term tax exemptions and/or abatements	03-09-1994
94-011	Grant of five-year tax exemptions for certain industrial and commercial structures	03-09-1994
94-019	Five-year tax exemption to N.O.L. Properties	03-23-1994
94-035	Tax exemption for senior citizen housing project to be constructed by J.H. and R.C. Senior Homes Urban Renewal Associates, L.P.	04-27-1994

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
94-040	Amendments to tax abatement for Harsimus Cove South Urban Redevelopment Association	05-11-1994
94-058	Tax abatement with Hudson Eagle Distributing Company	07-20-1994
94-062	Tax abatement to Portside Urban Renewal Association	07-20-1994
94-065	Tax exemption for housing project to be constructed by H.P. Lincoln Urban Renewal Company	08-17-1994
94-066	Tax exemption for senior housing; Fairmount Hotel Urban Renewal Associates	08-17-1994
94-067	Amendment of Port Liberte Phase I tax abatement financial agreement	08-17-1994
94-109	Thirty-year tax exemption for an affordable housing project by Greenville Steering Committee Non-profit Urban Renewal Housing Corporation	11-22-1994
94-110	Thirty-year tax exemption for a senior citizen affordable housing project by Padua Court Urban Renewal Entity	11-22-1994
94-112	Amendment to fifteen-year tax abatement of Tower America Urban Renewal Corp.	11-22-1994
95-010	Amendment to clarify amount of tax exemption service charge in Ord. No. 92-130	03-08-1995
95-035	Amendment to the tax exemption financial agreement with Mid-City Apartments, L.P., for affordable housing	05-10-1995
95-056	Tax abatement for the Mid-City Apartments (Landex) Project	06-28-1995
95-078	Tax abatement for Franklin Park Project	09-13-1995
96-022	Requiring execution of first source and affirmative action agreement by recipient of any tax abatement or exemption of federal or state grant awarded by or through the city (NOTE: This ordinance was challenged in the Federal District Court in February 1997 and was struck down as unconstitutional.)	03-13-1996
96-008	Consolidation of the Portside commercial and residential tax abatements	02-14-1996
96-010	Tax exemption for St. John's Church	02-14-1996
96-011	Forty-year tax exemption for a senior citizens affordable housing project to be constructed by New Community Hudson Senior Housing Corporation	02-14-1996
96-026	Thirty-year tax exemption for an affordable housing project to be constructed by Salem Lafayette Urban Renewal Associates, L.P.	03-27-1996
96-027	Thirty-year tax exemption for a senior citizens affordable housing project for Summit Urban Renewal Nonprofit Corporation	03-27-1996
96-059	Thirty-year tax exemption for a senior citizens affordable housing project to be constructed by Earl Homes Urban Renewal, L.P.	06-12-1996
96-080	Amendment to Ord. No. 96-011	08-14-1996
96-081	Thirty-year tax exemption for a single-room occupancy affordable housing project to be constructed by New Hope Urban Renewal, L.P.	08-14-1996
96-102	Tax abatement for North Pier Urban Renewal Associates	10-23-1996
96-104	Assignment of tax abatement for Plaza II and III Urban Renewal Associates, L.P., to Cal-Harbor II and III Urban Renewal Associates, L.P.	10-23-1996
96-105	Assignment of tax abatement for Plaza IV Urban Renewal Associates, L.P., to Cal-Harbor IV Urban Renewal Associates, L.P.	10-23-1996
96-107	Assignment of tax abatement for Plaza VI Urban Renewal Associates, L.P., to Cal-Harbor VI Urban Renewal Associates, L.P.	10-23-1996
96-116	Bifurcation and assignment of fifteen-year tax abatement of Tower America Urban Renewal Corp.	11-26-1996
96-119	Amendment to thirty-year tax exemption for Salem Lafayette Urban Renewal Associates, L.P. (amendment to Ord. No. 96-026)	11-26-1996

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
97-015	Five-year tax exemption for Mitchell MacGregor in the amount of $25,000 on new improvements to a dwelling located at 294 Fourth Street (Block 316, Lot Z)	03-12-1997
97-016	Five-year tax exemption for Michael A. Balducci in the amount of $32,600 on new improvements to a dwelling located at 57 Rutgers Avenue and 2 McAdoo Avenue (Block 1359, Lots 9 and 10)	03-12-1997
97-019	Amendment to Grove Street Urban Renewal Corporation tax abatement for property located at Block 203, Lots 1 through 27, and assignment to Cali-Grove Street Urban Renewal Associates, LP (amendment to Ord. Nos. C-260, McC-312 and 92-129)	03-12-1997
97-030	Assignment and modification of a Harsimus Cove South Urban Redevelopment Association tax abatement to Hudson Hospitality Services Urban Renewal Associates of property located at Block 15, Lots C-71, C-1, C-2, C-10, C-18, C-21, C-31, C-24, C-9 and C-22 (amendment to Ord. Nos. C-448, C-449 and C-450)	04-16-1997
97-035	Thirty-year tax exemption for a low-and moderate-income affordable transition housing project to be constructed at 657-659 Bergen Avenue(Block 1823, Lot IB) by Project Home Urban Renewal Entity	04-23-1997
97-046	Twenty-year tax exemption for a retail center to be constructed on property located at Block 1995, Lot 1, Block 1996, Lot 1, and Block 1997, Lot 1, by Martin Luther King Drive Urban Renewal Joint Venture Partnership, Inc.	06-25-1997
97-059	Thirty-year tax exemption for a low-income affordable and market rate housing project located at 73 Morris Street, 61-71 Morris Street and 59 Morris Street (Block 66, Lots la, N and P) to be constructed by the Evergreen West, L.L.C.	09-10-1997
97-070	Assignment of a thirty-year tax exemption from Harsimus Cove South Urban Development Association for a portion of the property located at Block 15, Lot B, to Town Cove II Jersey City Urban Renewal, Inc.; execution of an amended financial agreement; amendment to Ord. Nos. C-448, C-449 and C-450	10-08-1997
97-071	Transfer of Newport L.G. and NLGI Inc.'s partnership interest in Newport Tower Urban Renewal Company to Trizec Hahn Newport Inc. and Trizec Hahn NP Inc. and acknowledgment of the service charge due	10-08-1997
97-072	Thirty-year tax exemption for a housing project to be constructed on property located at 20 River Court (Block 20, Lot 2.09) by 20 River Court West Urban Renewal Company	10-08-1997
97-073	Thirty-year tax exemption for a housing project to be constructed on property located at 30 River Court (Block 20, Lots 2.29 and 2.10) by 30 River Court East Urban Renewal Company	10-08-1997
97-074	Thirty-year tax exemption for a low-income affordable and market rate housing project located at 73 Morris Street, 61-71 Morris Street and 59 Morris Street (Block 66, Lots la, N and P) to be constructed by Evergreen West, L.L.C.; repeal of Ord. No. 97-059	10-08-1997
97-089	Five-year tax exemption on new improvements for the Reservoir Heights Village, Block 837, Lots 1 through 17	12-23-1997
98-028	Thirty-year tax exemption for a low-income affordable housing project to be constructed by Let's Celebrate Urban Renewal, L.L.C.	03-25-1998
98-032	Thirty-year tax exemption for project to be constructed by Belmont Guest House Urban Renewal Associates, L.L.C, on Block 1819, Lot 30, a.k.a. 188-190 Belmont Avenue	04-08-1998
98-033	Thirty-year tax exemption for project to be constructed by Seaview Guest House Urban Renewal Associates, L.L.C, on Block 1411, Lot A.l, a.k.a. 92 Old Bergen Road or 125 Seaview Avenue	04-08-1998
98-038	Twenty-year tax exemption for project to be constructed by N.O.C. Ill Urban Renewal Limited Liability Company consisting of approximately 2.1 acres known as 599 Washington boulevard [note: N.O.C. a.k.a. Newport Office Center (NOC)]	04-22-1998

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
98-042	Twenty-year tax exemption for project to be constructed by 90 Hudson Street Urban Renewal Associates, L.L.C, on property located in the Colgate Redevelopment Area, a.k.a. Block 6, Lot 1A (Hartz Mountain Industries, Inc.)	05-13-1998
98-048	Assumption of amended financial agreement from Portside Apartments Urban Renewal Company, L.L.C, to the Towers at Portside Urban Renewal Company, L.L.C. (see C-631, C-632, 96-008); project located at 100 Warren Street, Block 60, Lot 34	05-13-1998
98-053	Assignment of a twenty-year tax exemption from Harsimus Cove South Urban Redevelopment Association to Portofino Tower Urban Renewal Associates, L.L.C.; conversion of project from residential condominiums to market rate rental units (see C-448, C-449, C-450, C-757, 94-040, 96-107, 97-030, 97-070, 98-053, 98-089)	05-27-1998
98-068	Fifteen-year tax exemption for a hotel project to be constructed by Newport Hotel One Urban Renewal Limited Liability Company, to construct a project on Block 20, Lot 2.32, a.k.a. 540 Washington Boulevard	05-27-1998
98-087	Twenty-year tax exemption for project to be constructed by Siena Urban Renewal Associates, L.P. at 107-129 Montgomery Street	07-22-1998
98-088	Fifteen-year tax exemption for project to be constructed by Public School No. 2 Urban Renewal Company, L.L.C., at 60-66 Erie Street	07-22-1998
98-089	Fifteen-year tax exemption for project to be constructed by Candlewood Jersey City Urban Renewal, L.L.C., rescinding in part the Harsimus Cove South Urban Renewal Redevelopment Association commercial tax exemption and the Cal-Harbor VI Urban Renewal Associates, L.P. tax exemptions (see C-448, C-449, C-450, C-757, 94-040, 96-107, 97-030, 97-070, 98-053)	07-22-1998
98-091	Five-year tax exemption for property designated as Block 1978, Lot 9, a.k.a. 415 Martin Luther King Drive	08-12-1998
98-092	Five-year tax exemption for property designated as Block 1425, Lot 23, a.k.a. 64 Linden Avenue	08-12-1998
98-093	Five-year tax exemption for property designated as Block 1267, Lot D, a.k.a. 257 Linden Avenue	08-12-1998
98-094	Five-year tax exemption for property designated as Block 1283, Lot A.8, a.k.a. 1995-7 Kennedy Boulevard	08-12-1998
98-095	Five-year tax exemption for property designated as Block 1835, Lot 4.B, a.k.a. 41 Highland Avenue	08-12-1998
98-097	Five-year tax exemption for property designated as Block 1835, Lot 3D, a.k.a. 45 Highland Avenue	08-12-1998
98-098	Five-year tax exemption for property designated as Block 520, Lot 12B, a.k.a. 3 East Street	08-12-1998
98-099	Five-year tax exemption for property designated as Block 99, Lot P, a.k.a. 214 Warren Street	08-12-1998
98-100	Five-year tax exemption for property designated as Block 207, Lot 22, a.k.a. 364 Grove Street	08-12-1998
98-101	Five-year tax exemption for property designated as Block 275, Lot 30, a.k.a. 21 Erie Street	08-12-1998
98-102	Five-year tax exemption for property designated as Block 282, Lot 27.A, a.k.a. 251 Eighth (8th) Street	08-12-1998
98-103	Five-year tax exemption for property designated as Block 314, Lot 12, a.k.a. 304 Second Street	08-12-1998
98-115	Twenty-year tax exemption for a project to be constructed by New Jersey Residential Urban Renewal Company, L.L.C., and rescission of the prior tax exemption for the property (Port Liberte II), Block 1497, parts of Lots 27, 28, 29 and 30; Block 1500, parts of Lots 24 and 25, consisting of approximately 111 acres adjacent to Caven Point Road (see C-984, 94-067)	08-12-1998

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
98-123	Amending the thirty-year tax exemption for the project to be constructed by 30 River Court East Urban Renewal Company at Block 20, Lots 2.29 and 2.10 (formerly known as parts of Lots 2.09 and 2.10); see Ord. 97-073	09-09-1998
98-140	Five-year tax exemption for property at Block 947, Lot 11, 14 Cliff Street	10-28-1998
98-154	Twelve-year tax exemption for a project to be constructed by Barrett Urban Renewal within Block 1507, Lot 2401, of the Greenville Industrial Redevelopment Plan Area	12-09-1998
98-161	Assignment of a tax exemption financial agreement from Exchange Place Urban Renewal Associates Limited Partnership to BBV Exchange Centre Urban Renewal Limited Partnership for 10 Exchange Place	12-09-1998
99-022	Thirty-year tax exemption for an affordable housing project for low-, moderate- and market-rate households to be constructed by Lafayette Village Urban Renewal Limited Partnership and rescinding Ord. No. 98-028	02-24-1999
99-032	Thirty-year tax exemption for affordable housing project to be constructed by 99 Rutgers Urban Renewal L.P.	03-10-1999
99-043	Twenty-year tax exemption for commercial office building to be constructed by N.O.C. IV Urban Renewal Co., L.L.C.	04-14-1999
99-044	Twenty-year tax exemption for office project to be constructed by 70 Hudson Street Urban Renewal Associates, L.L.C.	04-14-1999
99-048	Twenty-year tax exemption for market-rate residential rental project to be constructed by TCR Jersey City I Urban Renewal, L.L.C.	04-14-1999
99-0062	Twenty-year tax exemption for commercial project to be constructed on Block 10, Lot 2 by Cal-Harbor V Urban Renewal Associates, LP, and rescinding Ord. Nos. C-751 and 96-106	04-28-1999
99-063	Twenty-year tax exemption for commercial project to be constructed on Block 8, Lot 1 by Cal-Harbor VII Urban Renewal Associates, LP, and rescinding Ord. Nos. C-754 and 96-108	04-28-1999
99-081	Twenty-year tax exemption for commercial office rental project to be constructed by 74 Grand Street Urban Renewal, LLC	06-23-1999
99-082	Twenty-year tax exemption for market-rate residential condominium project to be constructed by Sugar House Urban Renewal Company, LLC, and rescinding Ord. No. 98-002	06-23-1999
99-083	Limited dividend tax exemption from 151-151A Martin Luther King Jr. Drive Cooperative Association to Fairmount Housing Corp.	06-23-1999
99-084	Tax exemption for Harsimus Cove South Urban Redevelopment Association to Marbella Tower Urban Renewal Associates, L.L.C.	06-23-1999
99-086	Fifteen-year tax exemption for commercial project to be constructed by Cal-Harbor So. Pier Urban Renewal Associates, L.P., and rescinding Ord. No. 96-013	06-23-1999
99-095	Amending fifteen-year tax exemption for project to be constructed by Candlewood Jersey City Urban Renewal, LLC	08-18-1999
99-116	Five-year tax exemption for property designated as Block 1269, Lot 18, a.k.a. 48 Grieco Drive	09-08-1999
99-117	Five-year tax exemption for property designated as Block 516, Lot 23A, a.k.a. 240 Baldwin Avenue	09-08-1999
99-118	Five-year tax exemption for property designated as Block 1905, Lot 6, a.k.a. 19 Orchard Street	09-08-1999
99-119	Five-year tax exemption for property designated as Block 1797, Lot 44, a.k.a. 85 Clendenny Avenue	09-08-1999
99-120	Five-year tax exemption for property designated as Block 1849, Lot 17, a.k.a. 117 Garrison Avenue	09-08-1999

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
99-122	Five-year tax exemption for property designated as Block 1849, Lot 16, a.k.a. 119 Garrison Avenue	09-08-1999
99-123	Five-year tax exemption for property designated as Block 915, Lot 20.SO, a.k.a. 150 Columbia Avenue	09-08-1999
99-124	Five-year tax exemption for property designated as Block 918, Lot 182, a.k.a. 231 Terrace Avenue	09-08-1999
99-125	Five-year tax exemption for property designated as Block 918, Lot 183, a.k.a. 233 Terrace Avenue	09-08-1999
99-126	Five-year tax exemption for property designated as Block 918, Lot 184, a.k.a. 235 Terrace Avenue	09-08-1999
99-127	Five-year tax exemption for property designated as Block 918, Lot 185, a.k.a. 237 Terrace Avenue	09-08-1999
99-128	Five-year tax exemption for property designated as Block 918, Lot 186, a.k.a. 239 Terrace Avenue	09-08-1999
99-129	Five-year tax exemption for property designated as Block 918, Lot 187, a.k.a. 241 Terrace Avenue	09-08-1999
99-130	Five-year tax exemption for property designated as Block 918, Lot 188, a.k.a. 243 Terrace Avenue	09-08-1999
99-131	Five-year tax exemption for property designated as Block 918, Lot 189, a.k.a. 245 Terrace Avenue	09-08-1999
99-132	Five-year tax exemption for property designated as Block 918, Lot 190, a.k.a. 247 Terrace Avenue	09-08-1999
99-133	Five-year tax exemption for property designated as Block 918, Lot 69, a.k.a. 253 Terrace Avenue	09-08-1999
99-134	Five-year tax exemption for property designated as Block 918, Lot 70, a.k.a. 255 Terrace Avenue	09-08-1999
99-135	Five-year tax exemption for property designated as Block 918, Lot 71, a.k.a. 257 Terrace Avenue	09-08-1999
99-136	Five-year tax exemption for property designated as Block 918, Lot 72, a.k.a. 259 Terrace Avenue	09-08-1999
99-140	Five-year tax exemption for property designated as Block 99, Lot A, a.k.a. 199 Washington Street	09-08-1999
99-152	Thirty-year tax exemption for affordable housing project for low-, moderate- and market-rate households to be constructed by Lafayette Community Limited Partnership	10-13-1999
99-155	Five-year tax exemption for property designated as Block 806, Lot A.1, a.k.a. 725-41 Secaucus Road	10-27-1999
99-156	Five-year tax exemption for property designated as Block 806, Lot A.2, a.k.a. 745 Secaucus Road	10-27-1999
99-157	Five-year tax exemption for property designated as Block 806, Lot A.3, a.k.a. 723 Secaucus Road	10-27-1999
99-159	Tax exemption for property owned by Bramhall Urban Renewal, LP, and rescinding Ord. No. 97-029	10-27-1999
99-190	Twenty-year tax exemption for commercial project to be constructed by NOC V Urban Renewal Company, LLC	01-12-2000
00-019	Assignment of tax exemption from Cali-Grove Street Urban Renewal Associates, LP, to Commerz New Jersey Urban Renewal, LP	03-22-2000
00-022	Twenty-year tax exemption for a mixed residential and commercial market rate rental project to be constructed by 25 River Drive South Urban Renewal Company (Block 20, Lots 2.05,2.11 and 2.26)	04-12-2000

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
00-023	Twenty-year tax exemption for a mixed residential and commercial market rate rental project to be constructed by Essex Waterfront Urban Renewal Company, LLC (Block 34, Lots 3-13)	04-12-2000
00-024	Twenty-year tax exemption for a market rate residential and commercial condominium units project to be constructed by 103-105 Greene Street Urban Renewal Company, LLC (Block 70, Lot R-2)	04-12-2000
00-025	Transfer of 50% of interest of Mack-Cali Realty, LP, in Cal-Harbor So. Pier Urban Renewal Associates, LP, to HT-Jersey Pier, LP (Block 10, Lots 7.02, 9 and 10) (amends Ord. No. 99-086)	04-12-2000
00-031	Amendment to tax exemption and financial agreement for N.O.C. IV Urban Renewal Co., LLC (Block 20, Lots 1.17 and 1.18)	05-10-2000
00-036	Twenty-year tax exemption for an office project to be constructed by 77 Hudson Street Urban Renewal Associates, LLC (Block 36, Lot 1A)	04-26-2000
00-042	Twenty-year tax exemption for an office project to be constructed by GSJC 30 Hudson Urban Renewal, LLC, and 30 Hudson Street Lessor Urban Renewal, LLC (Block 3, Lots 27 and 28, and Block 4, Lot 27)	04-26-2000
00-043	Twenty-year tax exemption for an office project to be constructed by GSJC 50 Hudson Urban Renewal, LLC, and 50 Hudson Street Lessor Urban Renewal, LLC (Block 4, Lot 28)	04-26-2000
00-081	Twenty-year tax exemption for a commercial project to be constructed by NOC VI Urban Renewal Company, LLC (570 Washington Boulevard; Block 20, Lot 2.07)	07-19-2000
00-082	Twenty-year tax exemption for a commercial project to be constructed by NOC VII Urban Renewal Company, LLC (480 Washington Boulevard; Block 20, part of Lot 2.24)	07-19-2000
00-083	Twenty-year tax exemption for a residential project to be constructed by EQR-Lincoln Urban Renewal Jersey City, LLC (153 Warren Street; Block 60, Lots 31A, 32A and 50, and Block 65, part of Lot 1G)	07-19-2000
00-084	Twenty-year tax exemption for a residential condominium project to be constructed by TCR Pier House Urban Renewal Company, LLC (15 Warren Street; Block 60, Lot 33)	07-19-2000
00-090	Twenty-year tax exemption for a residential project to be constructed by EQR-Lincoln Urban Renewal Jersey City North Pier, LLC (Harborside North Pier; Block 10, Lots 12,13 and part of 7)	08-16-2000
00-091	Twenty-year tax exemption for a residential project to be constructed by Liberty Waterfront Urban Renewal Entity, LLC (39 Essex Street; Block 33, Lot 4-14)	08-16-2000
00-106	Ordinance approving twenty (twenty year tax exemption for market rate and commercial condominium units project to be constructed by Raine Court Urban Renewal, LLC, an urban renewal entity, pursuant to the Law Term Tax Exemption Law N.J.S.. 40A:20-l et seq.	10-20-2000
00-107	Approving a 20 year tax exemption for a market rate residential rental project, pursuant to the Long Term Tax Exemption Law	09-27-2000
00-112	Twenty-year tax exemption for a residential rental/commercial project to be constructed by Millennium Towers Urban Renewal, LLC (Grove Street; Block 294.5, Lot PL.A)	09-13-2000
00-124	Twenty-year tax exemption for a residential project to be constructed by Henderson Lofts Urban Renewal, LLC (685-691 Henderson Street, Block 228, Lots C.2, C.4 and 4)	09-27-2000
00-125	Corrective amendment to tax exemption and financial agreement for NOC VI Urban Renewal, LLC (amends Ord. No. 00-81)	09-27-2000
00-129	Fifteen-year tax exemption for a commercial project to be constructed by Department Store 3 Urban Renewal Corp. (Washington Boulevard, Block 20, Lot 1.11)	09-27-2000

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
00-134	Amendment to tax exemption for TCR Pier House Urban Renewal Company, LLC (15 Warren Street, Block 60, Lots 33 and 33A) (amends 00-084)	10-11-2000

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
00-141	Twenty-year tax exemption for market rate residential and commercial condominium units project to be constructed by Fulton's Landing Urban Renewal Company, LLC (Van Vorst Street, Block 130, Lot 49)	10-25-2000
00-144	Five-year tax exemption for property located in Block 1269, Lot 92, commonly known as 395—427 Danforth Avenue	10-25-2000
00-145	Five-year tax exemption for property located in Block 20, Lot 4.03 commonly known as 611—613 Washington Boulevard	10-25-2000
00-146	Twenty-year tax exemption for a commercial project to be constructed by Plaza X Urban Renewal Associates, LLC (Hudson Street, Block 15, Lots 35 and 36)	10-25-2000
00-147	Fifteen-year tax exemption for a commercial project to be constructed by the Atrium at Hamilton Park Urban Renewal Associates, LLC (350 Ninth Avenue, Block 394, Lot 30, and Block 393, Lots B, C, D, E, H, J, K and 4)	10-25-2000
00-155	Amendment to tax exemption and financial agreement for Cal-Harbor V Urban Renewal Associates, LP (Block 10, Lot 2) (amends Ord. No. 99-062)	11-08-2000
00-156	Amendment to tax exemption and financial agreement for Cal-Harbor So Pier Urban Renewal Associates, LP (Block 10, Lot 7.02) (amends Ord. No. 00-025)	11-08-2000
00-157	Approving sale of project and assignment of tax exemption from Barrett Urban Renewal Corporation to Summit/Greenwich Urban Renewal, LLC	11-08-2000
00-172	Twenty-year tax exemption for a residential project to be constructed by Columbus Towers I Urban Renewal, LLC (303 Warren Street, Block 138, Lot T)	01-10-2001
00-175	Fifteen-year tax exemption for a residential project to be constructed by Marbella Tower Urban Renewal Associates, LLC (425 Washington Boulevard, Block 15, Lot 28) (repeals Ord. No. 99-084)	01-10-2001
01-006	Tax exemption for low and moderate income rental housing; Bostwick Court Urban Renewal Associates, L.P.	01-24-2001
01-006	Tax exemption for low and moderate income rental housing; Bostwick Court Urban Renewal Associates, L.P.	01-24-2001
01-014	Ten-year tax exemption for commercial project to be constructed by 50 Dey Street Urban Renewal LLC	02-14-2001
01-015	Amendment of tax exemption of CQR-Lincoln Jersey City North Pier Urban Renewal, L.L.C, to EQR-LPC Urban Renewal North Pier, L.L.C.	02-14-2001
01-021	Amendment to the tax exemption and financial agreement for Essex Waterfront Urban Renewal Entity, LLC	02-28-2001
01-025	Twenty-year tax exemption for a commercial project to be constructed by Hotel at Newport Urban Renewal LLC	02-28-2001
01-028	Twenty-year tax exemption for a market rate residential rental/commercial to be constructed by Vector Urban Renewal Associates I, LP	02-28-2001
01-037	Amendment to tax exemption and financial agreement for Henderson Lofts Urban Renewal, LLC	03-28-2001
01-038	Amendment to tax exemption and financial agreement for Bramhall Urban Renewal	03-28-2001
01-039	Clarification of twenty-year tax exemption for a commercial project to be constructed by Hotel at Newport Urban Renewal LLC	03-28-2001
01-069	Approves a 12-year tax exemption for an industrial project to be constructed by Caven Point Urban Renewal Associates	06-13-2001
01-070	Approves a 12-year tax exemption for an industrial project to be constructed by Polar One East Urban Renewal Associates, L.L.C.	06-13-2001
01-079	Clarification of Ord. 00-083, regarding tax exemption for EQR-Lincoln Urban Renewal	06-27-2001
02-019	Amends tax exemption for Candlewood Jersey City Urban Renewal, L.L.C.	02-27-2001

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Ord. No.	Subject Matter	Date of Adoption
02-020	Amends tax exemption agreement with 101 Hudson Urban Renewal Associates	02-27-2002
02-024	Authorization for cancellation of taxes for certain property owned by Grace Hill Tabernacle Inc.	03-13-2002
02-025	Authorizes amendment to tax exemption of and financial agreement with 25 River Drive South Urban Renewal Company	03-13-2002
02-026	Authorizes amendment to tax exemption of and financial agreement with Department Store 3 Urban Renewal Corporation	03-13-2002
02-047	Repeals text of Administrative Code regarding tax exemptions granted through ordinance passage	04-24-2002
02-048	Approves tax exemption	04-24-2002
02-055	Approves a 20-year tax exemption for an urban renewal affordable housing project to be constructed by New Jersey City Affordable Housing, L.L.C.	Withdrawn 04-10-2002
02-064	Approves a 15-year tax exemption for an urban renewal affordable housing project to be constructed by New Jersey City Urban Renewal Affordable Housing, L.L.C.	06-12-2002
02-072	Approves a 30-year tax exemption for an urban renewal affordable housing project to be constructed by Lafayette Family Urban Renewal Associates, L.P.	06-12-2002
02-077	Approves a 12-year tax exemption for a commercial project to be constructed by Keystone Greenville Urban Renewal L.L.C.	06-26-2002
02-078	Approves 12 year tax exemption for industrial project to be constructed by Polar Logistics East Urban Renewal Associates, L.L.C	06-26-2002
02-082	Fifteen year tax exemption for a market rate residential rental project to be constructed by 700 Grove Street Urban Renewal LLC	07-17-2002
02-086	Amendment to the ten year tax exemption of 50 Dey Street Urban Renewal LLC	08-14-2002
02-087	Twenty year tax exemption for a market rate residential condominium project to be constructed by Majestic Urban Renewal, LLC	08-14-2002
02-105	Twenty year tax exemption for a market rate residential condominium project to be constructed by TCR Warren Street Urban Renewal LLC	10-09-2002
02-106	Twenty year tax exemption for a market rate residential condominium units/ commercial project to be constructed by Liberty Point Urban Renewal LLC	09-25-2002
02-107	Twenty year tax exemption for a market rate residential rental project with one commercial unit to be constructed by Chowanec Urban Renewal, LLC	10-09-2002
02-123	Twenty year tax exemption for a market rate residential and commercial condominium project to be constructed by Wa Urban Renewal Company, LLC	11-13-2002
03-023	Termination of tax exemption for Evergreen West, LLC	02-26-2003
03-024	Amends the tax exemption of 101 Hudson Urban Renewal Associates	02-26-2003
03-026	Twenty-five year tax exemption for a market rate residential retail and office condominium project to be constructed by 140 Bay Street Urban Renewal, LLC	02-26-2003
03-027	Thirty year tax exemption for a mixed use market rate and affordable housing and parking and retail project to be constructed by the 2854 Kennedy, LLC	02-26-2003
03-084	Thirty year tax exemption for an urban renewal affordable housing project to be constructed by Lafayette Family Phase II Urban Renewal Associates, L.P.	06-11-2003
03-106	Twenty year tax exemption for a market rate condominium residential project to be constructed by Greene Street Urban Renewal, LLC	08-13-2003
03-107	Thirty year tax exemption for a moderate income affordable housing project to be constructed by MLK Drive Urban Renewal, LLC	08-13-2003
03-110	Twenty year tax exemption for Plaza X Urban Renewal Associations, LLC	08-13-2003

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Ord. No.	Subject Matter	Date of Adoption
03-120	Transfer of tax exemption from TCR Warren Street Urban Renewal, LLC, to K Hovnanian at Jersey City V Urban Renewal Company, LLC	09-10-2003
03-121	Amendment to twenty year tax exemption for Plaza X Urban Renewal Associations, LLC	Withdrawn 08-13-2003
03-138	Amendment to PHM Urban Renewal Associates and ten year extension of the term of the tax exemption	Withdrawn 09-24-2003
03-139	Forty year tax exemption of moderate income affordable and market rate housing project to be constructed by the Whitlock Mills, L.P.	10-08-2003
03-141	Amendment to the tax exemption of 475 Claremont Avenue Urban Renewal, LLC	10-08-2003
03-142	Five year tax exemption for Jersey City Self Storage, LLC	10-08-2003
03-152	Five year tax exemption for AS27-33 Fisk Street, LLC	12-10-2003
03-154	Amendment to tax exemption of 700 Grove Street Urban Renewal, LLC and transfer of membership interests in 700 Grove Street Urban Renewal, LLC, to the long term tax exemption law	11-25-2003
03-155	Transfer of membership interests in Candlewood Jersey City - Urban Renewal LLC	11-25-2003
03-161	Twenty year tax exemption for a market rate residential and commercial condominium project to be constructed by 95 Van Dam Urban Renewal LLC	01-14-2004
04-006	Twenty year tax exemption for a market rate residential condominium project to be constructed by Montgomery Greene Urban Renewal, LLC	Defeated 02-11-2004
04-009	Twenty year tax exemption for a market rate residential condominium project to be constructed by Liberty Harbor North Urban Renewal, LLC	Defeated 02-11-2004
04-010	Twenty year tax exemption for a market rate residential condominium project to be constructed by Erie 10th Urban Renewal, LLC	Defeated 02-11-2004
04-011	Five year tax exemption for property designated as Block 743, Lot 46	02-11-2004
04-013	Transfer of tax exemption from Fulton's Landing Urban Renewal, LLC to Pulte Urban Renewal, LLC	02-11-2004
04-018	Twenty year tax exemption for a market rate residential and commercial condominium project to be constructed by Liberty Harbor North Urban Renewal, LLC	Defeated 03-10-2004
04-019	Twenty year tax exemption for a market rate residential and commercial condominium project to be constructed by Erie 10th Urban Renewal, LLC	03-10-2004
04-020	Twenty year tax exemption for a market rate residential condominium project to be constructed by Montgomery Greene Urban Renewal, LLC	03-10-2004
04-047	Amendment to the financial agreement of PHM Urban Renewal Associates and a ten year extension of the term of the tax exemption	04-28-2004
04-051	Twenty year tax exemption for a market rate residential and commercial condominium project to be constructed by 159 Second Street Urban Renewal, LLC	05-12-2004
04-052	Twenty year tax exemption for a market rate residential rental project to be constructed by H.P. Roosevelt Urban Renewal, LLC	05-12-2004
04-053	Twenty year tax exemption for a market rate residential condominium project to be constructed by Toll Cliffs Urban Renewal Company, LLC	05-12-2004
04-072	Twenty year tax exemption for a market rate residential condominium project to be constructed by Liberty Waterfront Urban Renewal Entity, LLC	07-14-2004
04-077	Twenty year tax exemption for a market rate residential rental project to be constructed by Woodrow Wilson Urban Renewal Company	08-11-2004
04-078	Twenty year tax exemption for a market rate residential and commercial condominium project to be constructed by Liberty Harbor North Urban Renewal, LLC	09-22-2004

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
04-079	Twenty year tax exemption for a market rate residential rental and commercial project to be constructed by Grove Point Urban Renewal LLC	08-11-2004
04-080	Twenty year tax exemption for a market rate residential condominium project to be constructed by Grove Pointe Condominium Urban Renewal LLC	08-11-2004
04-081	Twenty year tax exemption for a market rate residential project to be constructed by Columbus Apts Urban Renewal Entity	Tabled 08-11-2004
04-109	Approves sale of Portofino Tower Urban Renewal Project; assignment of financial agreement Portofino Tower Urban Renewal Associates, LLC to Portofino Urban Renewal, LLC	09-22-2004
04-112	Twenty year tax exemption for a market rate residential condominium project to be constructed by 475 Claremont Avenue Lofts Urban Renewal, LLC	10-13-2004
04-113	Twenty year tax exemption for a market rate rental/commercial project to be constructed by Riverview I Associates urban Renewal Company, LLC	10-27-2004
04-114	Five year tax exemption for property designated as Block 1842, Lot 20.A, commonly known as 19 Van Wagenen Avenue	10-27-2004
04-122	Amendment to the tax exemption of Henderson Lofts Urban Renewal, LLC	10-27-2004
04-126	Fifteen year tax exemption for a market rate residential condominium project to be constructed by Columbus Towers I Urban Renewal, LLC	10-27-2004
04-152	Bifurcation of financial agreement between 475 Claremont Avenue Urban Renewal, LLC and Jersey City for Block 1775.1, Lots 85, 86, 88, 89, 90, 91, 92 and 95; assignment of phase II of project to Centex Homes Westside Urban Renewal I, LLC	01-12-2005
04-153	Authorizes sale of project and assignment of financial agreement from 475 Claremont Avenue Lofts Urban Renewal, LLC to Centex Homes Westside Urban Renewal II, LLC	01-12-2005
05-001	Twenty year tax exemption for a market rate residential condominium project to be constructed by Washington First Urban Renewal, LLC	01-26-2005
05-002	Twenty year tax exemption for a market rte residential condominium property to be constructed by Jersey Avenue 833 Urban Renewal Company, LLC	01-26-2005
05-003	Five year tax exemption for property designated as Block 1746.5, Lot H.4, a.k.a. 725-775 Route 440	01-26-2005
05-008	Twenty year tax exemption for a market rate residential condominium project to be constructed by 150 Essex Street Urban Renewal, LLC	02-09-2005
05-010	Thirty year tax exemption for a low income rental housing project to be constructed by the Toy Factory Apartment, L.P.	02-23-2005
05-012	Twenty year tax exemption for a market rate residential condominium project to be constructed by Laidlaw Properties Urban Renewal, LLC	02-23-2005
05-013	Twenty year tax exemption for a 212 Market Rate Residential condominium units to be constructed by Shore Club South Urban Renewal Company, LLC	02-23-2005
05-015	Authorizes execution of a ten year lease with Journal Square Plaza Urban Renewal Associates	02-23-2005
05-018	Twenty year tax exemption for a market rate residential condominium project to be completed by Liberty Harbor North Condominium Urban Renewal 4, LLC	03-09-2005
05-019	Twenty year tax exemption for a market rate residential condominium project to be constructed by Liberty Harbor North Condominium Urban Renewal 5.5, LLC	03-09-2005
05-020	Twenty year tax exemption for a market rate residential condominium project to be constructed by Liberty Harbor North Brownstone Condominium Urban Renewal, LLC	03-09-2005

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
05-021	Twenty year tax exemption for a market rate residential condominium project to be constructed by Jar Holding Urban Renewal, LLC	03-09-2005
05-026	Tax refund of taxes to Church of God located a 124 Monticello Avenue, Block 1927, Lot 39	03-23-2005
05-062	Cancellation of taxes pursuant to N.J.S.A. 54:4-6c for property owned by True Vine Church of Jesus and located at 416 Whiton Street on Block 2093, Lot B.I.	Withdrawn 05-18-2005
05-083	Amendment to the tax exemption of Vector Urban Renewal Associates LLP	06-22-2005
05-084	Twenty year tax exemption for 417 market rate residential condominium units to be constructed by Vector Urban Renewal Associates II, L.P.	06-22-2005
05-085	Approves a replacement financial agreement to all for approximately 50 additional condominium units to the tax exemption of Washington First Urban Renewal LLC	06-22-2005
05-087	Authorizes the cancellation of taxes for property owned by Metropolitan AME Zion Church located at 601 Bergen Avenue, on Block 18-19, Lot B	06-22-2005
05-088	Authorizes cancellation of taxes for property owned by Grace Church Van Vorst located at 39 Erie Street on Block 277, Lot 33	06-22-2005
05-089	Authorizes cancellation of taxes for property owned by True Vine Church of Jesus located at 416 Whiton Street, on Block 2093, Lot B.I	06-22-2005
05-092	Approves a 30 year tax exemption for Rialto-Capitol Urban Renewal Company, LLC	08-10-2005
05-093	Approving a 30 year tax exemption for the Beacon Commerce Urban Renewal Company L.L.C	08-10-2005
05-094	Approving a 30 year tax exemption for the Beacon Parking Urban Renewal Company, L.L.C	08-10-2005
05-095	Approving a 30 year tax exemption for a low income rental housing project to be constructed by A. Harry Moore Phase I Associates, L.P.	08-10-2005
05-096	Approving a 30 year tax exemption for a low income rental housing project to be constructed by the Forrest Senior Apartments, LP	Withdrawn 07-13-2005
05-097	Approving a 20 year tax exemption for a market rate residential condominium project to be constructed by Washington Commons Urban Renewal Company, LLC	Defeated 10-24-2007
05-100	Authorizing a termination of financial agreement between the city and Salem Lafayette Urban Renewal Associates, LP	08-10-2005
05-120	Approving a 20 year tax exemption for a market rate housing project to be constructed by the Longstreet Associates, LLC.	Defeated 09-28-2005
05-121	Approving a 5 year tax exemption for property designated as block 138, Lot T, on the city's tax map and more commonly known by the street address of 50 Columbus Drive, Jersey City, N.J.	09-28-2005
05-122	Approving a 5 year tax exemption for property designated as Block 138, Lot T, on the city's tax map and more commonly known by the street address of 303 Warren Street, Jersey City, N.J.	09-28-2005
05-136	Authorizing and amendment to and assignment of a tax exemption from Town Cove II Jersey City Urban Renewal, Inc. to Pinnacle Tower Urban Renewal, LLC; an amendment to the tax exemption and conversion of the project from rental to condominium by June 1,2006	09-28-2005
05-146	Approving a 20 year tax exemption for a market rate residential condominium project to be constructed by 126-142 Morgan Street Urban Renewal LLC.	10-26-2006
05-147	Approving a 5 year tax exemption for property designated as Block 387 Lot 11.A on the city's tax map and more commonly know n by the street address of 338 Third Street	10-26-2005

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
05-168	Approving a 20 year tax exemption for a market rate residential condominium project to be constructed by 203-207 Van Vorst Street Urban Renewal, LLC.	12-14-2005
05-169	Approving a 5 year tax exemption for property designated as Block 2154, Lots 13B and 18D, on the city's tax map and more commonly known by the street address of 97 Burma Road	12-14-2005
05-173	Five-year exemption for property designated as Block 812, Lot 8 and more commonly known as 505 Central Avenue	01-11-2006
06-017	Twenty-year tax exemption for market rate residential condominium project to be constructed by K. Hovnanian at 77 Hudson Urban Renewal Company, LLC	03-08-2006
06-018	Twenty-year tax exemption for market rate residential rental/commercial project to be constructed by EQR-Urban Renewal 77 Hudson Street, LLC	03-08-2006
06-023	Thirty-five-year tax exemption for low income senior citizen affordable housing project to be rehabilitated by Unico Towers, LLC	02-22-2006
06-032	Thirty-year tax exemption for low income senior citizen housing project to be constructed by Forrest Senior Apartments, LP	03-22-2006
06-034	Transfer of tax exemption and assignment of financial agreement from Jar Holdings Urban Renewal, LLC to Jar Holdings Urban Renewal, LLC	03-22-2006
06-048	Thirty-year tax exemption for Urban Renewal affordable housing project to be constructed by Lafayette Family Phase III Urban Renewal Associates, L.P.	04-13-2006
06-049	Thirty-year tax exemption for low income affordable housing project with market rate retail space to be constructed by Genesis Jersey City Partners, LLC	04-13-2006
06-051	Twenty-year tax exemption for market rate residential condominium project to be constructed by Shore Club North Urban Renewal Company, LLC	04-26-2006
06-054	Thirty-year tax exemption for mixed use condominium project to be constructed by ACC Towers 1A Urban Renewal LLC	04-26-2006
06-068	Approving a 20 year tax exemption for a market rate residential condominium project to be constructed by Brass Works Urban Renewal Co., LLC, an Urban Renewal Entity pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq. and Rescinding Ordinance 04-053 approving a tax exemption for Toll Cliffs Urban Renewal Company, LI.	05-24-2006
06-088	Amending and restating Ordinance 05-018, approving a 20 year tax exemption for a market rate residential condominium project to be constructed by Liberty Harbor North Condominium Urban Renewal 4, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A 40A:20-l et seq.	07-19-2006
06-093	Approving a 30 year tax exemption for a low income rental housing project to be constructed by A. Harry Moore Phase II Associates, LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A 55:14-K-1 et seq.	08-16-2006
06-102	Amends Ord. 06-049, thirty year tax exemption for a low income affordable housing project to be constructed by Genesis Jersey City Partners, LLC	09-13-2006
06-112	Amends Ord. 06-032 to approve a 30 year tax exemption for a low income senior citizen housing project to be constructed by the Forrest Senior Apartments, LP	12-13-2006
06-119	Approving a 25 year tax exemption for a market rate condominium project to be constructed by Block 283 South Urban Renewal, LLC, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	10-11-2006
06-120	Approving a 25 year tax exemption for a market rate condominium project to be constructed by Block 284 North Urban Renewal, LLC, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	10-11-2006

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
06-121	Authorizing amended and restated financial agreement and approving thirty (30) year tax exemption for a mixed use condominium project Approving a 25 year tax exemption for a market rate condominium project to be constructed by ACC Towers 1A Urban Renewal, LLC, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	10-11-2006
06-123	Approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 40A:20-l et seq., and Section 304-9 of the Municipal Code for property designated as Block 596, Lot 51, on the city's tax map and more commonly known by the street address of 826 Newark Avenue	10-11-2006
06-130	Authorizing the refund of taxes without interest pursuant to N.J.S.A. 54:4-3.6c for property owned by BADR Center, Inc and located at 543, 537 Bergen Avenue, 146 and 150 Harrison Avenue, on Block 1810, Lots A, B, C, and DI	11-08-2006
06-139	Approving a 20 year tax exemption for a market rate residential condominium project to be constructed by Second Street Waterfront Urban Renewal, LLC, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	11-21-2006
06-140	Approving a 20 year tax exemption for a market rate residential condominium project to be constructed by 100 Water Street Urban Renewal, LLC, pursuant to file long term tax exemption law N.J.S.A. 40A:20-l et seq.	11-21-2006
06-141	Approving a 20 year tax exemption for a market rate residential rental project to be constructed Monaco North Urban Renewal, LLC, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	11-21-2006
06-142	Approving a 20 year tax exemption for a market rate residential rental project to be constructed Monaco South Urban Renewal, LLC, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	11-21-2006
06-143	Amendment to the Hudson Hospitality Services Urban Renewal Associates, LLC, tax abatement for approval to 1) convert the property into four (4) condominium units and 2) convey three (3) of the units and 3) terminate the tax abatement for the three conveyed units, all pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	11-21-2006
06-156	Approving a 30 year tax exemption for a market rate residential condominium project to be constructed by the Criterion Urban Renewal Company, L.L.C., pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	12-13-2006
06-157	Approving a 30 year tax exemption for a market rate residential condominium project to be constructed the Hague Urban Renewal Company, L.L.C., pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	12-13-2006
06-158	Approving a 30 year tax exemption for a market rate residential condominium project to be constructed by the Mercury Urban Renewal Company, L.L.C., pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	12-13-2006
06-159	Approving a 30 year tax exemption for a market rate residential condominium project to be constructed by the Orpheum Urban Renewal Company, L.L.C., pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	12-13-2006
06-160	Approving a 30 year tax exemption for a market rate residential condominium project to be constructed by the Paramount Urban Renewal Company, L.L.C., pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	12-13-2006
06-161	Approving a 30 year tax exemption for a market rate residential condominium project to be constructed by the Tower Urban Renewal Company, L.L.C., pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	12-13-2006
07-004	Approving a five (5) year tax exemption pursuant to the Ord. 07-004 provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for new construction of a commercial structure on property designated as Block 596, Lot 51, on the city's tax map and more commonly known by the street address of 355 West Side Avenue	01-24-2007
07-008	Ordinance approving a 20 year tax exemption for a market rate Ord. 07-008 residential condominium project to be constructed by OTWI-Benson Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	01-24-2007

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
07-049	Approving an amendment to Ordinance 06-093 that approved a 30 year tax exemption for a low income rental housing project to be constructed by A. Harry Moore Phase II Associates, L.L.C., a qualified housing sponsor under the New Jersey Housing Mortgage Finance Agency Law N.J.S.A. 55:14K-1 et seq.	03-28-2007
07-052	Approving a 20 year tax exemption for a market rate residential condominium project to be constructed by 272 Grove Street Urban Renewal, LLC., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	03-28-2007
07-058	(1) Approving a 40 year long term tax exemption for low income senior citizen affordable housing project to be renovated by the Storms Avenue Elderly Apartments, L.P., a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq., for 111 Storms Avenue; and (2) Terminating the existing tax exemption for the Imperative Housing Partnership	04-11-2007
07-059	Approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 589, Lot 26.C on the city's tax map and more commonly known by the Street Address of 825 Newark Avenue	04-11-2007
07-060	Approving a 25 year tax exemption for a market rate residential condominium project to be constructed by 769 Montgomery Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A.40A:20-l et seq.	Withdrawn 03-28-2007
07-074	Approving a 20 year tax exemption for a market rate residential condominium project to be constructed by 769 Montgomery Street Urban Renewal, LLC., an Urban Renewal Entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40a:20-l et seq.	04-25-2007
07-090	Approving a five (5) year tax exemption for a mixed use rental redevelopment project constructed by Grove Pointe Urban Renewal, LLC., pursuant to the provisions of the Five (5) Year Exemption and Abatement Law, N.J.S.A. 4OA:21-1 et seq. and Section 304-12 of the Municipal Code	05-09-2007
07-097	Approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and section 304-9 of the Municipal Code for property designated as Block 1978, Lot 60 on the city's tax map and more commonly known by the street address of 427-429 Martin Luther King Drive	06-13-2007
07-126	Approving a Five (5) year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq., and Section 304-9 of the Municipal Code for property designated as Block 20, Lot 3.15 on the City's Tax Map and more commonly known by the street address of 110 River Drive	Withdrawn 06-27-2007
07-127	1) Approving a 20 year tax exemption for a market rate commercial project to be constructed by GSJC 50 Hudson Urban Renewal, LLC., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq., and 2) Rescinding Ordinance 00-043 and termination of the June 21, 2000 Financial Agreement with GSJC 50 Hudson Urban Renewal, LLC	07-18-2007
07-137	Approving a 30 year tax exemption for a low income affordable housing project to be constructed by Fred W Martin Apartments Urban Renewal, LP., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	08-08-2007
07-139	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by Aqua Urban Renewal Company, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	09-11-2007
07-147	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by Grand LHNII Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq. (Grand Street & Mann Boulevard)	08-22-2007

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
07-148	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by Grand LHNI Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A.40A:20-l et seq. (Morris Boulevard)	08-22-2007
07-149	Approving a 20 year tax exemption for a market rate residential condominium project to be constructed by 106 York Street Urban Renewal Company, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	08-22-2007
07-189	Approving an amendment to ordinance 07-049 that approved a 30 year tax exemption for a low income rental housing project to be constructed by A. Harry Moore Phase II Associates, LLC., a qualified housing sponsor under the New Jersey Housing Mortgage Finance Agency Law N.J.S.A. 55:14K-1 et seq.	01-09-2008
07-190	Amending long term tax abatement and financial agreement for Liberty Harbor North Brownstone Condominium Urban Renewal, LLC, to add units by reconfiguring the project	01-09-2008
08-009	Amending long term tax abatement and financial agreement for Monaco North Urban Renewal, LLC, to 1) Reconfigure the building to decrease the number of residential units and increase the commercial space; 2) To decrease the percentage of the service charge to 12%; and 3) To reduce the term by 5 years	Defeated 01-23-2008
08-010	Amending long term tax abatement and financial agreement for Monaco South Urban Renewal, LLC, to 1) Reconfigure the building to increase the number of residential units; 2) To decrease the percentage of the service charge to 12%; and 3) To reduce the term by 5 years.	Defeated 01-23-2008
08-011	Approving a 20 Year tax exemption for a market rate residential condominium Project to be constructed by the Warren @ York Urban Renewal, LLC	02-13-2008
08-014	Authorizing the cancellation of taxes pursuant to N.J.S.A. 54:4-3.6c for property owned by Quan Am Buddhist Temple and located at 85.5 Jordan Avenue, on Block 1894, Lot N	02-27-2008
08-027	Approving a Five (5) year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq., and section 304-9 of the Municipal Code for property designated as Block 751, Lot G on the City's tax map and more commonly known by the street address of 100 Paterson Plank Road and to be known as Brass Works Urban Renewal Company, LLC	Withdrawn 02-27-2008
08-032	Amending Ordinance 94-109 to consent to the assignment of the 30 year tax exemption for an affordable housing project from Greenville Steering Committee Non-Profit Urban Renewal Housing Corporation to 45-51 Martin Luther King Urban Renewal Corp.	03-26-2008
08-057	Amending long term tax abatement and financial agreement for Monaco North Urban Renewal, LLC, to 1) Reconfigure the building to decrease the number of residential units and increase the commercial space; 2) Decrease the percentage of the service charge from 14% to 10%; and 3) Reduce the term from 20 years to 10 years	05-14-2008
08-058	Amending long term tax abatement and financial agreement for Monaco South Urban Renewal, LLC, to 1) Reconfigure the building to decrease the number of residential units and parking spaces; 2) Decrease the percentage of the service charge from 14% to 10%; and 3) Reduce the term from 20 years to 10 years	05-14-2008
08-062	Approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 751, Lot G, on the city's tax map and more commonly known by the street address of 100 Paterson Plank Road and to be known as Brass Works Urban Renewal Company, LLC	05-28-2008
08-063	Terminating the financial agreement and prepayment agreement between the City of Jersey City and Brass Works Urban Renewal Company, LLC	05-28-2008

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
08-074	Approving a 10 year tax exemption for a market rate residential rental project to be constructed by Athena BLDG 110 Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	05-28-2008
08-089	Authorizing an amendment to a financial agreement for Aqua Urban Renewal Company, LLC, to 1) Approve the reconfiguration of the units; 2) Revise the affordable housing payment schedule to allow the first and second affordable housing contribution payments to be made upon the signing of the financial agreement; and 3) Increase the affordable housing contribution by $23,415	06-25-2008
08-090	Amending a 30 year long term tax abatement, financial agreement and project employment agreement for ACC Towers 1A Urban Renewal, LLC, to decrease the percentage of the service charge as follows: from 16% to 10% for the first 10 years; from 16% to 12% for the second 10 years; and, from 16% to 14% for the last 10 years	06-25-2008
08-095	Authorizing the cancellation of taxes pursuant to N.J.S.A. 54:4-3.6c for property owned by Monte Carmelo Pentecostal Church and located at 14 Graham Street, on Block 812, Lot 14.99	07-16-2008
08-106	Approving a thirty (30) year tax exemption for an urban renewable housing project to be constructed by Lafayette Family Phase IV Urban Renewal Associates, L.P., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	08-06-2008
08-118	Terminating the financial agreement and prepayment agreement between the City of Jersey City and Riverview I Associates Urban Renewal Company, LLC	08-20-2008
08-119	Approving a 30 year tax exemption for an urban renewal affordable housing residential/commercial project to be constructed by Bay Senior Housing Urban Renewal, LP, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	08-20-2008
08-133	Amending Ordinance 08-062 approving a five (5) year tax exemption for property designated as Block 751, Lot G, on the city's tax map and more commonly known by the street address of 100 Paterson Plank Road and to be known as Brass Works Urban Renewal Company, LLC	09-24-2008
08-134	Authorizing an amended financial agreement for the Criterion Urban Renewal Company, LLC, which was approved by Ordinance 06-156, for conversion from a condominium project to a market rate rental project	Defeated 09-24-2008
08-135	Authorizing an amended and restated financial agreement for the Hague Urban Renewal Company, LLC, which was approved by Ordinance 06-157, for conversion from a condominium project to a market rate residential rental project	Defeated 09-24-2008
08-136	Authorizing an amended and restated financial agreement for the Tower Urban Renewal Company, LLC, which was approved by Ordinance 06-161, for conversion from a condominium project to a market rate residential rental project	Defeated 09-24-2008
08-137	Authorizing an amended and restated financial agreement for the Mercury Urban Renewal Company, LLC, which was approved by Ordinance 06-158, for conversion from a condominium project to a market rate residential rental project	Defeated 09-24-2008
08-138	Authorizing an amended and restated financial agreement for the Orpheum Urban Renewal Company, LLC, which was approved by Ordinance 06-159, for conversion from a condominium project to a market rate residential rental project	Defeated 09-24-2008
08-139	Authorizing an amended and restated financial agreement for the Paramount Urban Renewal Company, LLC, which was approved by Ordinance 06-160, for conversion from a condominium project to a market rate residential rental project	Defeated 09-24-2008
08-164	Approving a 30 year tax exemption for a market rate commercial (retail/parking garage) use rental project to be constructed by MEPT Journal Square Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq. (Unit 1 or the Commercial Unit)	11-25-2008

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Ord. No.	Subject Matter	Date of Adoption
08-165	Approving a 30 year tax exemption for a market rate residential use rental project to be constructed by MEPT Journal Square Tower North Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq. (Unit 2 or Tower North)	11-25-2008
08-166	Approving a 30 year tax exemption for a market rate residential use rental project to be constructed by MEPT Journal Square Tower South Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq. (Unit 3 or Tower South)	11-25-2008
09-005	Ordinance terminating the financial agreement and prepayment agreement between the City of Jersey City and Laidlaw Properties Urban Renewal, LLC, for failure to pay prepayment or satisfy the conditions of Ordinance 05-012	01-28-2009
09-018	Ordinance approving a 30 year tax exemption for a moderate income and market rate housing project to be constructed by the Whiton Street Associates, LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.	02-25-2009
09-019	Ordinance approving a 30 year tax exemption for a commercial project to be constructed by Whiton Street Associates Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	02-25-2009
09-034	Ordinance approving a 30 year tax exemption for a mixed affordable and market rate rental housing project to be constructed by AHM Associates, LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.	04-08-2009
09-074	Ordinance approving a 20 year tax exemption for a market rate residential rental project to be constructed by Hudson Palisades Urban Renewal, LLC, an urban renewal entity, pursuant to the long term tax exemption law N.J.S.A. 40a:20-l et seq.	06-17-2009
09-075	Ordinance amending the long term tax exemption authorized by Ordinance 02-123 of WA Residential Urban Renewal Company, LLC, to terminate the tax abatement as it relates to Block 1497, Portions of Lot 33 and Lot 35, formerly known as portions of Lots 3.M1 and 3.M2, and to be known as Lot 36.1	06-17-2009
09-076	An ordinance approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 40a:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 1497, portions of Lot 33 and Lot 35, formerly known as a portion of Lots 3.M1 and 3.M2, and to be known as Lot 36.1, Unit 1, on the City's tax map and more commonly known by the street address of 100 Caven Point Road (to be known as 1 Liberty Drive)	06-17-2009
09-078	Ordinance approving an amendment to a long term tax exemption for a market rate mixed use condominium project to be constructed by Second Street Waterfront Urban Renewal, LLC, an urban renewal entity, pursuant to the long term tax exemption law N.J.S.A. 40a:20-l et seq.	06-17-2009
09-097	Bond ordinance providing for the acquisition of PJP/SIEGEL Property located in and by the City of Jersey City, in the County of Hudson, New Jersey, appropriating $8,700,000 therefor and authorizing the issuance of $8,700,000 bonds or notes of the city to finance part of the cost thereof	10-14-2009
09-102	Ordinance approving a thirty-year tax exemption for a very low and low income affordable housing project with three (3) commercial units to be constructed by the RAV Group, LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14k-1 et seq.	09-23-2009
10-020	Approving a 30-year tax exemption for a mixed affordable and market rate rental housing project to be constructed by AHM Housing Associates IV, LLC	03-10-2010
10-021	Approving a five-year tax exemption for property designated as Block 60.12, Lot 5 on the City's tax map	03-10-2010

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
10-022	Approving a loan to the City to be guaranteed by the US Department of Housing and Urban Development and reloaning the proceeds to Statue of Liberty Harbor North Redevelopment Urban Renewal, LLC	04-28-2010
10-023	Approving a 30-year tax exemption for a low income affordable and market rate housing project to be constructed by the Summit Avenue Center for Opportunity, LLC	03-10-2010
10-065	Authorizing a 45-year lease of certain property to Liberty Humane Society, Inc.	05-12-2010
10-073	Approving an amendment to a long-term tax exemption with Jones Hall Associates to extend the term for up to 20 years and increase the annual service charge	06-09-2010
10-109	Amending a 30-year tax exemption with Fred W. Martin Apartments Urban Renewal, L.P. to correct property description to specifically limit the tax exemption to the residential unit only and terminate the tax exemption as to the remaining units	08-25-2010
10-158	Consenting to the sale and assignment of tax exemption and financial agreement from Essex Waterfront Urban Renewal Entity, LLC, to Liberty Towers Urban Renewal LLC, pursuant to section 9.1 of the financial agreement and the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	12-08-2010
11-044	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq., and section 304-9 of the Municipal Code	04-27-2011
11-048	Approving a 30-year tax exemption for a low and moderate income affordable housing project to be constructed by Pacific Landing Urban Renewal Co., LLC, a non-profit urban renewal entity, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	05-11-2011
11-081	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-9 of the Municipal Code for property designated as Block 1297.5, Lots 66, 67, 68 and 69.A (to be changed and designated as Lot 75), on the city's tax map and more commonly known by the street address of 319 Grant Avenue	08-10-2011
11-082	Rescinding Ordinance 05-002, which approved a long term tax exemption for Jersey Avenue 833 Urban Renewal Company, LLC, and approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:2-1, et seq. and section 304-9 of the Municipal Code for property designated as Block 330, Lot 10, on the city's tax map and more commonly known by the street address of 837 Jersey Avenue	08-10-2011
11-083	Approving a 30-year tax exemption for an affordable housing project to be constructed by Glennview Townhouses II Urban Renewal Associates, L.P., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	08-10-2011
11-084	Approving a 30-year tax exemption for an urban renewal senior low and moderate income affordable housing project to be constructed by Montgomery Senior Living Center Urban Renewal Associates, L.P., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	08-10-2011
11-086	Approving a 30-year tax exemption for a senior citizen affordable housing project to be constructed by St. Bridget's Senior Residence Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	08-10-2011

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Ord. No.	Subject Matter	Date of Adoption
11-087	Authorizing the rescission of ordinances 08-011 and 07-149; authorizing the termination of the financial and prepayment agreements between the city and the Warren @ York Urban Renewal, LLC, and 106 York Street Urban Renewal Company, LLC; and approving a five-year tax exemption with the Warren @ York Urban Renewal, LLC, for both properties	08-10-2011
11-101	Approving a 30-year tax exemption for an Urban Renewal Affordable Housing Project to be constructed by Genesis Ocean Associates Urban Renewal Co., LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	08-31-2011
11-102	Approving a 30-year tax exemption for a low income senior citizen and special needs affordable housing project to be constructed by the Ocean Green Senior Apartments, L.P., a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.	08-31-2011
11-109	Approving a 30-year tax exemption for a market rate residential condominium project to be constructed by Community Asset Preservation Alliance of Jersey City #2 Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	09-14-2011
11-110	Rescinding Ordinance 06-023; and consenting to the sale and assignment the tax exemption financial agreement, as amended, from UNICO-Jersey City Housing, Inc., to 500 Manila Ave., LLC, pursuant to the New Jersey Housing and Mortgage Finance Agency Law N.J.S.A. 55:14K-1	09-14-2011
11-111	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 2050, Lot 29, on the city's tax map and more commonly known by the street address of 302-306 Communipaw Avenue and 5 Monitor Street	09-14-2011
11-128	Approving a 30-year tax exemption for a low and moderate income housing project to be constructed by Bergen Court, Inc., a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.	11-09-2011
11-129	Approving a 20 year tax exemption for a market rate industrial project to be constructed by Goya 75th Urban Renewal Co., LLC, an urban renewal entity, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	11-09-2011
11-130	Approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-9 of the Municipal Code for property designated as Block 2101, Lot 18, on the city's tax map and more commonly known by the street address of 61-69 Amity Street, Jersey City	11-09-2011
11-131	Approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq. and section 304-9 of the Municipal Code for property designated as Block 2058, Lots 18 & S, on the city's tax map and more commonly known by the street address of 631-645A Grand Street	11-09-2011
12-020	Approving an amendment to the 20-year tax abatement of Hudson Palisades Urban Renewal, LLC, to 1) convert the project from residential rental units to residential condominium, and 2) reduce the service charge to 10% of the annual gross revenue for the full term, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	02-22-2012
12-021	Consenting to the refinance and approval of an amendment to the affordable housing 40 year tax exemption agreement with Montgomery Gateway Associates, pursuant to the Limited Dividend Non-profit Housing Corporation Law, N.J.S.A. 55:16-1 to 1) increase the annual service charge from 6.28% to 8%; and 2) to establish a 2% administrative fee	02-22-2012
12-036	1) Terminating the financial agreement and project employment agreement authorized by Ordinance 05-008 between the city and 150 Essex Street Urban Renewal, LLC, and 2) authorizing the assignment and clarification of the prepayment agreement from 150 Essex Street Urban Renewal, LLC, to 198 Van Vorst Street, LLC	03-28-2012

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
12-068	Authorizing the cancellation of taxes pursuant to N.J.S.A. 54:4-3.6c for property owned by Continuous Flow Christian Center and located at 168-170 Monticello Avenue, on Block 16803, Lots 74 and 75 (formerly known as Block 1919, Lots E and F)	05-23-2012
12-071	Amending a 10 year tax exemption approved by Ordinance 07-148 for a market rate mixed used rental project to be constructed by Grand LHNI Urban Renewal LLC, an urban renewal entity, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	05-23-2012
12-091	Approving amendments to: 1) the settlement consent order among the city, New Gold Equities Corp and BLDG Management Co, Inc and 2) the 10 year tax exemption for market rate residential rental housing with 110 First Street Urban Renewal Associates, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	08-01-2012
12-102	Approving a five (5) year tax exemption with Nams Developers, Inc., pursuant to fire provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-9 of the Municipal Code for property designated as Block 17905, Lot 1, on the city's tax map and more commonly known by the street address of 650 Communipaw Avenue	08-01-2012
12-103	Approving a five (5) year tax exemption with Chosen Estates, LLC, pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 10601, Lot 10, on the city's tax map and more commonly known by the street address of 300 Magnolia Avenue	08-01-2012
12-104	Approving a five (5) year tax exemption with Saint Paul's, LLC, pursuant to the provisions of N.J.S.A. 40A:21-l, et seq. and section 304-9 of the Municipal Code for property designated as Block 6801, Lot 21, on the city's tax map and more commonly known by the street address of 68-76 St. Paul's Av and 70-74 Oakland Av	08-01-2012
12-144	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by 148 First Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	11-28-2012
12-145	Authorizing the assignment nunc pro time of the financial agreement from the Criterion Urban Renewal Company, LLC, to BR Criterion Urban Renewal Company, LLC	11-28-2012
12-146	Authorizing the assignment nunc pro tunc of the financial agreement from the Hague Urban Renewal Company, LLC, to BR Hague Urban Renewal Company, LLC	11-28-2012
12-149	Approving a 15 year tax exemption for BR Mercury Urban Renewal Company, LLC, for a market rate residential rental project; and repealing Ordinance 06-158	11-28-2012
12-150	Approving a 15 year tax exemption for BR Orpheum Urban Renewal Company, LLC, for a market rate residential rental project; and repealing Ordinance 06-159	11-28-2012
12-151	Approving a 15 year tax exemption for BR Paramount Urban Renewal Company, LLC, for a market rate residential rental project; and repealing Ordinance 06-160	11-28-2012
12-152	Approving a 15 year tax exemption for BR Tower Urban Renewal Company, LLC, for a market rate residential rental project; and repealing Ordinance 06-161	11-28-2012
12-164	Consenting to the sale and assignment of the tax exemption and financial agreement from Chowanec Urban Renewal, LLC, to 179 Warren Street Urban Renewal Co., LLC, pursuant to section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	01-09-2013

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
13-002	Approving a five (5) year tax exemption with Pointe Developers Retail, LLC, pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 14301, Lot 8, Unit C000R, on the city's tax map and more commonly known by the street address of 253 Washington Street	01-23-2013
13-011	Approving a five (5) year tax exemption with 109 Christopher Columbus, LLC, pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 12901, Lot 6, on the city's tax map and more commonly known by the street address of 109 Christopher Columbus Drive	02-13-2013
13-015	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by 70 Columbus Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	02-27-2013
13-016	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by Marbella Tower Urban Renewal Associates South, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l etseq.	02-27-2013
13-017	Amending a 15 year long term tax exemption financial agreement with Marbella Tower Urban Renewal Associates, LLC, to amend its ground lease and financial agreement to reduce land area of the project; reduce the number of parking spaces from 423 to 260 parking spaces; and assign a portion of the project containing 163 parking spaces to Marbella Tower Urban Renewal Associates South, LLC	02-27-2013
13-032	Approving a 12 year tax exemption for a market rate residential rental project to be constructed by Kennedy Lofts Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	03-28-2013
13-033	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by Harborside Unit A Urban Renewal, LLC, AN urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	03-28-2013
13-034	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by Provost Square I Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	03-28-2013
13-057	Approving a 12-year tax exemption for a market rate mixed use rental project to be constructed by Chosen Condominiums Urban Renewal, LLC, and urban renewal entity, pursuant to the Long Term Tax Exemtpion Law, N.J.S.A. 40A:20-l et seq.	05-08-2013
13-058	Approving a 12-year tax exemption for a market rate residential rental project to be constructed by Laidlaw Properties Urban Renewal, LLC, and urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	05-08-2013
13-059	Extending the sunset provisions of Ordinance 11-084 that approved a 30-year tax exemption for a low and moderate income senior citizens affordable housing project to be constructed by the Montogomery Senior Living Center Urban Renewal Associates, L.P.; and amending the financial agreement to increase the percentage of the annual service charge	05-08-2013
13-060	Extending the sunset provisions of Ordinance 11-083 that approved a 30-year tax exemption for a low and moderate income affordable housing project to be constructed by the Glennview Townhouses II Urban Renewal Associates, L.P.; and amending the financial agreement to amend the percentage of the annual service charge	05-08-2013

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
13-061	Extending the sunset provisions of Ordinance 11-102 that approved a thirty-year tax exemption for a low income senior citizen and special needs affordable housing project to be constructed by the Ocean Green Senior Apartments, L.P., a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.; and amending the percentage of the service charge. *See Ord. 13-082.*	05-08-2013
13-065	Approving a 30-year tax exemption for an urban renewal mixed-income, mixed-use housing project to be constructed by AHM Housing Associates IV, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	05-29-2013
13-082	Amending Ordinance 13-061 that approved a 30-year tax exemption for a low income senior citizen and special needs affordable housing project for Ocean Green Senior Apartments, L.P., pursuant to the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq. to increase the number of "special needs" units from 5 to 11	08-28-2013
13-098	Approving a thirty-year tax exemption for a low income affordable housing project including retail space, to be constructed by Genesis Ocean Urban Renewal Co., LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq. *See Ord. No. 14-012.*	09-25-2013
13-111	Approving 1) the sale of the project from Salem-Lafayette Community Development Corporation to Salem Lafayette Urban Renewal, L.P.; and 2) a 30-year tax exemption for new improvements to be constructed by Salem Lafayette Urban Renewal, L.P., an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. and 3) rescinding the tax exemption approval by resolution adopted on October 5,1976	10-09-2013
13-112	Consenting to the sale and assignment of Master Condominium 1 and the assignment in part of a tax exemption and financial agreement from ACC Towers 1A Urban Renewal, LLC to Mana Contemporary Tribeca West Urban Renewal, LCL pursuant to Section 9.1 of the financial agreement and the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	10-09-2013
13-143	Authorizing 1) approval of a tax exemption for a residential/commercial rental project owned by 272 Grove Street Urban Renewal, LLC and 2) recission of Ordinance 07-052 and termination of the prior financial agreement	01-15-2014
14-002	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq. and Section 304-9 of the Municipal Code for property designated as Block 9902, Lot 25.01, on the City's tax map and more commonly known by the street address of 334-336 and 340 Third Street and 292-294 Newark Avenue	02-11-2014
14-003	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-9 of the Municipal Code for property designated as Block 22203, Lot 5, on the City's tax map and more commonly known by the street address of 366 West Side Avenue	02-11-2014
14-012	Amending Ordinance 13-098 to reflect a change in the entity's certificate of formation resulting in a change of the entity's name from Genesis Ocean Urban Renewal Co., LLC to Genesis Ocean Associates, LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.	02-11-2014
14-015	Authorizing the cancellation of taxes pursuant to N.J.S.A. 54:4-3.6c for property owned by Saint John's School and located at 3026 Kennedy Blvd, on Block 6501, Lot 1, Qualifier X	02-26-2014
14-019	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-6 of the Municipal Code for property designated as Block 17501, Lot 4, on the City's tax map and more commonly known by the street address of 445 Whiton St	02-26-2014
14-020	Approving a twenty-year tax exemption for a market rate mixed use rental project to be constructed by 360 Ninth Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	03-26-2014

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
14-033	Approving a twenty-year tax exemption for a market rate mixed use rental project to be constructed by Senate Place Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	04-09-2014
14-036	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-9 of the Municipal Code for property designated as Block 11608, Lot 1, Qualifier C000E, on the City's tax map and more commonly known by the street address of 65 Bay St	04-09-2014
14-037	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 13502, Lot 24, on the City's tax map and more commonly known by the street address of 646 Montgomery Street	04-09-2014
14-049	Approving a twenty-year tax exemption for a market rate residential condominium project to be constructed by 160 First Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l etseq.	05-14-2014
14-067	Consenting to 1) the sale of the membership interests of NOC V Urban Renewal Company, LLC to JP Morgan Chase Bank, National Association and 2) the modification of the tax exemption financial agreement with NOC V Urban Renewal Company, LLC, to conform the financial agreement to the 2003 amendments to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	06-25-2014
14-069	Approving a twenty-year tax exemption for a commercial hotel project to be constructed by One Exchange JC Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., for the property designated as Block 14502, Lot 1 on the City's tax map and more commonly known by the street address as 1 Exchange Place	06-25-2014
14-073	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 11201, Lot 29, on the City's tax map and more commonly known by the street address of 298 Sixth Street	06-25-2014
14-074	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 11402, Lot 23, on the City's tax map and more commonly known by the street address of 222 First Street	06-25-2014
14-079	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA;21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 13605, Lot 11, on the City's tax map and more commonly known by the street address of 550 Grand Street	07-16-2014
14-087	Terminating the financial agreement between the City of Jersey City and Department Store 3 Urban Renewal Corp.	08-20-2014
14-088	Approving a ten-year tax exemption for a market rate residential condominium project to be constructed by Cheesecake Lofts Urban Renewal, LLC, an urban renewal entity, pursuant to the long term tax exemption law, N.J.S.A. 40A:20-l et seq.	08-20-2014
14-101	Approving a ten-year tax exemption for a mixed use market rate residential rental project to be constructed by LHN Owner Urban Renewal, LLC, an urban renewal entity, pursuant to the long term tax exemption law, N.J.S.A. 40A:20-l et seq.	09-10-2014
14-102	Approving a ten-year tax exemption for a Market Rate Residential Condominium Project to be constructed by 68 Erie Street Urban Renewal Co., LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	09-10-2014
14-111	Approving a twenty-year tax exemption for an emerging market residential condominium project to be constructed by Community Asset Preservation Alliance of Jersey City #4 Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	09-23-2014

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
14-112	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 12704, Lot 28.01, on the City's tax map and more commonly known by the street address of 532 Jersey Avenue	10-08-2014
14-130	Approving a twenty-year tax exemption for a commercial hotel project to be constructed by Columbus Hotel Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. for the property designated as Block 13003, Lot 1, C3.80 on the City's tax map and more commonly known by the street address as 80 Columbus Drive	10-22-2014
14-150	Approving a thirty-year tax exemption for a low income affordable housing project including retail space, to be constructed by Lexington Manor Owner, LP, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law, N.J.S.A. 55:14K-1 et seq.	11-25-2014
14-151	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40a:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 11009, Lot 10, on the City's tax map and more commonly known by the street address of 129 Brunswick Street	11-25-2014
14-152	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 16603, Lot 25, on the City's tax map and more commonly known by the street address of 148 Belmont Avenue	11-25-2014
14-153	An ordinance approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 6901, Lot 3, on the City's tax map and more commonly known by the street address of 78 Palisade Avenue	11-25-2014
14-154	Approving a thirty-year tax exemption for a market rate mixed use rental project to be constructed by 3 Journal Square Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	11-25-2014
14-161	Rescinding Ord. No. 14-112 and terminating the five-year tax agreement between the City of Jersey City and Jersey Avenue MM, LLC, at the request of the owner	12-17-2014
14-177	Rescinding Ordinance 14-151 and terminating the five-year tax agreement between the City and 129 Brunswick Avenue LLC for the property designated as Block 11009, Lot 10, on the City's tax map and more commonly known by the street address of 129 Brunswick Street	01-14-2015
14-181	Approving a twenty-year tax exemption for a market rate rental project to be constructed by 234 Suydam Avenue Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. located at 218-240 Suydam Avenue in Jersey City	01-14-2015
15-001	Approving a thirty-five-year tax exemption for a low-income affordable housing project located at 561 Montgomery Street, to be constructed by Montgomery Gardens Family Phase I Urban Renewal Associates, LP, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law, N.J.S.A. 55:14k-1 et seq.	01-14-2015
15-011	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 19006, Lot 33, on the City's tax map and more commonly known by the street address of 372 Pacific Avenue	02-10-2015
15-034	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 7806, Lot 18.01, on the City's tax map and more commonly known by the street address of 850-852 Newark Avenue, for the entity known as Nivaria Group, LLC	03-25-2015

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
15-035	Approving a ten-year tax exemption for a market rate mixed use rental project to be constructed by 17-19 Division Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq., for the property designated as Block 9806 Lot 6.01 (formerly Lots 6 and 7) on the City's tax map and more commonly known by the street address of 17 Division Street	03-25-2015
15-058	Authorizing an amendment to the financial agreement for a senior citizen rental housing project constructed by Padua Court Urban Renewal, L.P., an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	05-13-2015
15-059	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 5302, Lot 2, on the City's tax map and more commonly known by the street address of 319 Tonnele Avenue	05-13-2015
15-060	Approving a twenty-year tax exemption for a four-story, forty-six (46) unit market rate residential rental "live/work" project located at Block 17301 Lot 11, and known by the street address of 170 Lafayette Street, to be constructed by 170 Lafayette Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	05-13-2015
15-070	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 404:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 8803, Lot 9.01, on the City's tax map and more commonly known by the street address of 210 Ninth Street	05-27-2015
15-076	Approving a twenty-year tax exemption for a commercial hotel project to be constructed by Ratan Jersey City Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. for the property designated as Block 1101, Lot 10 on the City's tax map and more commonly known by the street address as 707 Tonnele Avenue	06-10-2015
15-077	Approving a twenty-year tax exemption for a commercial hotel project to be constructed by SL Hospitality Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., for the property designated as Block 7104, Lot 2.01, on the City's tax map and more commonly known by the street address as 180 Fourteenth Street	06-10-2015
15-080	Approving a thirty-year tax exemption for a market rate mixed use residential rental project known as Condominium Unit Two to be constructed by Devi Ma Newkirk Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., on the City's tax map and more commonly known by the street address of 60-62 Newkirk Street	06-10-2015
15-094	1) Approving a thirty-year tax exemption for an affordable housing project at 441, 443,445,447,449,451-457 Ocean Avenue and 79-81 Dwight Street, for Genesis Ocean Urban Renewal Associates LLC, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. and 2) rescinding all prior ordinances (11-101,13-098 and 14-012) that approved or amended tax exemptions for the property	07-15-2015
15-097	Consenting to the sale and assignment of a tax exemption and financial agreement from Brunswick Estates Associates, a limited liability partnership, to Roseville Avenue Redevelopment Urban Renewal, LLC, pursuant to section 11 of the financial agreement and the Limited Dividend Nonprofit Housing Corporations or Association Law, N.J.S.A. 55:16-1 et seq.	07-15-2015
15-100	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 19402, Lot 32, on the City's tax map and more commonly known by the street address of 416 Bergen Avenue	08-19-2015
15-101	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 404:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 19402, Lot 33, on the City's tax map and more commonly known by the street address of 418 Bergen Avenue	08-19-2015

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
15-102	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 404:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 11004, Lots 27 and 28, on the City's tax map and more commonly known by the street address of 124-128 Brunswick Street	08-19-2015
15-103	Approving an amendment to the tax exemption for 500 Manila Ave., LLC, to 1) revert to a limited dividend tax exemption; 2) restructure the entity to change the entity's name to 500 Manila Ave. Urban Renewal, LLC; and 3) amend the tax exemption to delete certain property	08-19-2015
15-107	Approving the execution of a financial agreement with GS FC Jersey City PEP I Urban Renewal LLC and other applicable documents related to the authorization and issuance by the City Redevelopment Agency of not to exceed $10,000,000.00 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	08-19-2015
15-108	Approving the execution of a financial agreement with GS FC Jersey City Pep 2 Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000.00 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	08-19-2015
15-118	Approving a twenty-year tax exemption for a market rate residential condominium project to be constructed by Greenland Realty Urban Renewal Co., LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located at 136 Summit Avenue	09-09-2015
15-120	Approving a twenty-year tax exemption for a market rate rental project that will include 20% or 80 units of on-site moderate income affordable housing to be constructed by KRE Hamilton Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located at 431 Luis Marin Boulevard in Jersey City	09-09-2015
15-122	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 404:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 14301, Lot 13, on the City's tax map and more commonly known by the street address of 102 York Street	09-24-2015
15-131	1) Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A.21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 10004, Lot 2.01, on the City's tax map and more commonly known by the street address of 5-19 Rt. Rev. Msgr. Leroy McWilliams Place and 141 - 151 Erie Street; and 2) Rescinding Ord. No. 06-119, which authorized a 30-year tax exemption for the property	09-24-2015
15-151	Approving 1) a tax exemption for Ocean Towers Preservation, LLC; pursuant to the NJ Housing and Mortgage Finance Agency Law N.J.S.A. 55.-14k-1 et seq.; and 2) termination of the existing tax exemption with Ocean Towers Associates, LP/MT. Carmel Guild pursuant to the limited dividend law, N.J.S.A. 55:16-1 et seq., for 425 Ocean Avenue	12-16-2015
15-161	Approving an amendment to the tax exemption for Lafayette Family Phase IV Urban Renewal Associates, L.P., to change the entity's name to Glenview Townhouses Urban Renewal Associates, L.P.	11-24-2015
15-169	Approving a ten-year tax exemption for a market rate rental project to be constructed at 460 Grand Street by 456 Grand Realty Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	12-16-2015
15-170	Approving a 15-year tax exemption for an industrial project to be constructed by Hudson Main Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq., for the property designated as Block 27401, Lot 41, on the City's tax map, and more commonly known by the street address of 143 Chapel Avenue	12-16-2015

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
15-173	Authorizing an amendment to the tax exemptions of 1) 20 River Court West Urban Renewal Company; 2) 30 River Court West Urban Renewal Company; and 3) H.P. Lincoln Urban Renewal Company to implement a settlement and amend the tax exemption under the 2003 Long Term Tax Exemption but only as to the definition of net profit	01-04-2016
15-174	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 13003 Lot 1 Qualifier C 3.90 commonly known by the street address of 90 Columbus Drive	01-04-2016
16-011	Approving a 20-year tax exemption for a market rate mixed-use rental project to be constructed by 305 West Side Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	01-27-2016
16-020	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 6301, Lot 1, on the city's tax map and more commonly known by the street address of 271 Van Wagenen	02-10-2016
16-021	Approving a 15-year tax exemption for a mixed-use market-rate condominium project to be constructed by Ninth Street Two Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	08-17-2016
16-022	Approving a 20-year tax exemption for a mixed-use, market-rate, residential project to be constructed by Pacific 312 Group Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	02-10-2016
16-032	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-9 of the Municipal Code for property designated as Block 10803, Lot 29.01, more commonly known by the street address of 211 Baldwin Avenue	02-24-2016
16-033	Approving a 30-year tax exemption for a mixed-use, market-rate, residential project to be constructed by 720-726 Bergen Avenue Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	02-24-2016
16-034	Consenting to the sale and assignment of the tax exemption and financial agreement from RT 70 Hudson Urban Renewal, LLC to 70 Hudson Waterfront Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	02-24-2016
16-035	Consenting to the sale and assignment of the tax exemption and financial agreement from RT 90 Hudson Urban Renewal, LLC to 90 Hudson Waterfront Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	02-24-2016
16-042	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 18704, Lot 16 commonly known by the Street Address of 747 Grand Street	03-09-2016
16-043	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 18901, Lot 19.01 commonly known by the street address of 7 Berry Road	03-09-2016
16-045	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 1505 Lot 55 commonly known by the street address of 54 Graham Street	03-23-2016
16-046	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 6701 Lot 24 commonly known by the street address of 628 Summit Avenue	03-23-2016

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
16-067	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l et seq. and Section 304-9 of the Municipal Code for property designated as Block 9202, Lot 6, commonly known by the street address of 25 Fayette Avenue	04-27-2016
16-078	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-12 of the Municipal Code for property designated as Block 9202, Lot 8, on the City's tax map and more commonly known by the street address of 113 Wales Avenue	05-11-2016
16-079	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 9202, Lot 7, on the city's tax map and more commonly known by the street address of 115 Wales Avenue	05-11-2016
16-080	Approving a 25-year tax exemption for a market rate rental project to be constructed by Journal Square Lofts Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located at 2853 Kennedy Boulevard in Jersey City	05-11-2016
16-085	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 11302, Lot 30, on the City's tax map and more commonly known by the street address of 212 Third Street	05-25-2016
16-086	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-12 of the Municipal Code for property designated as Block 9401, Lot 24, on the City's tax map and more commonly known by the street address of 134 Cottage Street	05-25-2016
16-087	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 7903, lot 52, on the City's tax map and more commonly known by the street address of 60 Van Reipen Avenue	05-25-2016
16-088	Approving a ten-year tax exemption for a mixed-use market rate condominium project to be constructed by 380 Newark Realty Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., for the property designated as Block 9806, Lot 8, on the City's tax map and more commonly known by the street address of 380 Newark Avenue	05-25-2016
16-104	Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by HC West Campus Urban Renewal I, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	07-13-2016
16-105	Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by HC West Campus Urban Renewal II, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	07-13-2016
16-115	Amending the tax exemption and financial agreement for Bramhall Urban Renewal L.P., an urban renewal company, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., to allow the deduction of utilities from annual gross revenue	08-17-2016
16-116	Approving a 25-year tax exemption for a mixed-use, market-rate residential project to be constructed by Vaishno MA Summit Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	08-17-2016
16-117	Approving a 25-year tax exemption for a market rate residential project to be constructed by Bergen Academy Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	08-17-2016

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
16-137	Approving a 20-year tax exemption for a market rate residential rental project to be constructed by Ash Urban Renewal Development, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq. for the property designated as Block 17502, Lots 1—12 on the City's tax map and more commonly known by the street addresses of 2—16 Ash Street and 442—446 Whiton Street	09-14-2016
16-145	Approving a 25-year tax exemption for a market rate mixed use rental project to be constructed by 190 Academy Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	09-28-2016
16-148	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 4701, Lots 36, 37, 38 and 39, on the City's tax map and more commonly known by the street address of 3224—3230 Kennedy Blvd.	09-28-2016
16-153	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 10901, Lot 106, on the City's tax map and more commonly known by the street address of 461—469 Newark Avenue	11-09-2016
16-154	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 6304, Lot 21, on the City's tax map and more commonly known by the street address of 276 St. Pauls Avenue	10-12-2016
16-155	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 10801, Lot 8.01, on the City's tax map and more commonly known by the street address of 65 Newkirk Avenue	10-12-2016
16-183	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 17101, Lot 40, on the City's tax map and more commonly known by the street address of 712 Grand Street	12-14-2016
16-186	Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by KKF Block 1 Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	01-11-2017
16-187	Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by KKF Block 5B Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	1-11-2017
16-193	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-12 of the Municipal Code for property designated as Block 6304, Lot 2.01, on the City's tax map and more commonly known by the street address of 71 Skillman Avenue	01-11-2017
17-024	Approving a twenty-year tax exemption for a mixed-income residential rental project to be constructed by 16 Bennett Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located on Block 20702, Lot 60.01, and more commonly known by the street address of 16 Bennet Street and 148-152 Clarke Avenue, to be known as 160 Clarke Avenue	03-08-2017
17-048	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 12202, Lot 34, on the City's Tax Map and more commonly known by the street address of 75 Jordan Avenue	05-10-2017
17-059	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 7902, Lot 61, on the City's tax map and more commonly known by the street address of 60-62 Cottage Street	05-24-2017

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	Subject Matter	Date of Adoption
17-067	Approving a 30-year tax exemption for a multi-site mixed income rental project to be constructed by Ocean MLK Urban Renewal Associates, LP, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	06-14-2017
17-068	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 10901, Lot 127, on the City's tax map and more commonly known by the street address of 361 Newark Avenue	06-14-2017
17-095	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and section 304-9 of the Municipal Code for property designated as Block 19401, Lot 19.06, on the City's tax map and more commonly known by the street address of 435-437 Bergen Avenue	07-19-2017
17-105	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 15203, Lot 10, on the City's tax map and more commonly known by the street address of 65 Storms Av	08-16-2017
17-107	Approving a 20-year tax exemption for a commercial warehouse project to be constructed by Exeter Thomas McGovern Land Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq. for the property designated as Block 21508, Lot 2, on the City's tax map and more commonly known by the street address as 295 Thomas F. McGovern Dr (f/k/a 79 Thomas F. McGovern Dr)	08-16-2017
17-113	Terminating the financial agreement between the City and Whitlock Mills, L.P., for failure to satisfy the conditions of Ordinance 03-139	09-13-2017
17-118	Approving a 30-year tax exemption for a mixed income market rate and affordable housing rental project to be constructed by 160 Lafayette Associates, L.P., a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14k-1 et seq.	09-13-2017
17-132	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 22042, Lot 19, on the City's tax map and more commonly known by the street address of 2124 John F. Kennedy Blvd [f/k/a 170 Grant Av)	09-27-2017
17-133	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 6001, Lot 35, on the City's tax map and more commonly known by the street address of 39 New York Av	09-27-2017
17-139	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 17505, Lot 4.01, on the City's tax map and more commonly known by the street address of 323-325 Pine St	10-11-2017
17-145	Amending Ordinance 17-105 which approved a five-year tax exemption for the entity developing 65 Storms Av in order to include space for vehicular parking and authorizing the City to collect additional monies for the Affordable Housing Trust Fund	10-25-2017
17-159	Extending the time to execute the financial agreement approved pursuant to Ordinance 17-067, which granted a 30-year tax exemption for a multi-site mixed-income rental project to be constructed by Ocean MLK Urban Renewal Associates, LP, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	11-29-2017
17-171	Consenting to (1) the purchase of the senior housing project located at 1065 Summit Avenue by Muhlenberg Senior Housing Urban Renewal LLC, (2) the transfer and assignment of the project's tax exemption from the current owner to the purchaser, and (3) approving an extension of the project's tax exemption for an additional three years pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law, N.J.S.A. 55:16-1 et seq.	12-13-2017

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	**Subject Matter**	**Date of Adoption**
18-007	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-1, et seq., and Section 304-12 of the Municipal Code for the property designated as Block 17504, Lot 2.01 on the City's tax map and more commonly known by the street address of 121 Garabrant Street	02-14-2018
18-014	Ratifying the approval of: 1) the sale of the affordable housing project located at 413-419 Arlington Avenue; 750-766 Grand Street; and 64-66 Harmon Street to Emanual Realty, LLC pursuant to the limited-dividend nonprofit housing corporations or associations law, N.J.S.A. 55:16-1 et seq.; and (2) the transfer and assignment of the project's tax exemption	02-28-2018
18-049	Consenting to (1) the partial assignment of the tax exemption from 110 First Street Urban Renewal Associates, LLC to the One Urban Renewal Associates, LLC & LKD Urban Renewal Associates, LLC, and (2) the assumption of the tax exemption by the One Urban Renewal Associates, LLC & LKD Urban Renewal Associates, LLC, pursuant to Section 9.1 of the financial agreement and the long term tax exemption law N.J.S.A. 40A:20-1 et seq.	05-23-2018
18-105	Correcting Ordinance 16-088 which approved a ten-year tax exemption for a mixed-use market-rate condominium project constructed by 380 Newark Realty Urban Renewal, LLC on the property designated as Block 9806, Lot 8 on the City's tax map and more commonly known by the street address of 380 Newark Avenue, and correcting the financial agreement authorized by ordinance 16-088	09-26-2018
18-119	(1) Acknowledging the transfer of the ownership interest in Exeter Thomas McGovern Land Urban Renewal, LLC; (2) amending the financial agreement authorized by Ordinance 17-107 that approved a 20-year exemption for a project to be constructed on the property designated as Block 21508, Lot 2, on the City's tax map and more commonly known by the street address of 295 McGovern Drive; and (3) acknowledging the amended construction schedule of the commercial warehouse project to be constructed by Exeter Thomas McGovern Land Urban Renewal, LLC	10-10-2018
18-149	Rescinding ordinance 16-021 and terminating the tax exemption and financial agreement with Ninth Street Two Urban Renewal, LLC	01-09-2019
19-155	Rescinding Ordinance 16-011 and terminating the tax exemption and financial agreement with 305 West Side Avenue Urban Renewal, LLC	12-04-2019
20-037	Authorizing the Business Administrator to execute a consent assignment and assumption agreement between the City, Muhlenberg Senior Housing Urban Renewal LLC and Muhlenberg Gardens Urban Renewal, LLC effectuating the transfer and assignment of the property and the tax exemption held by Muhlenberg Senior Housing Urban Renewal LLC to Muhlenberg Gardens Urban Renewal, LLC pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law N.J.S.A 55:16-1 et seq.	05-06-2020
20-051	Ratifying the approval of: 1) the sale of a 114-unit project based Section 8 family housing development to Van Wagenen II Urban Renewal, LLC pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law, N.J.S.A. 55:16-1 et seq. and (2) the transfer and assignment of the project's tax exemption	07-15-2020
20-052	Ratifying the approval of: 1) the sale of a 40-unit project based Section 8 family housing development located at 277-283 Bergen Avenue, Jersey City to Bergen Manor Urban Renewal, LLC, pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law, N.J.S.A. 55:16-1 et seq. and (2) the transfer and assignment of the project's tax exemption	07-15-2020
20-053	Ratifying the approval of: 1) the sale of a 25-unit project based Section 8 family housing development located at 2348-2354 John F. Kennedy Blvd., Jersey City to Kennedy Manor Urban Renewal, LLC, pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law, N.J.S.A. 55:16-1 et seq. and (2) the transfer and assignment of the project's tax exemption	07-15-2020
23-091	Rescinding Ordinances 17-107 and 20-083 and terminating the tax exemption and financial agreement with CICF II-NJB02 UR, LLC	09-20-2023

TABLE 6. TAX ABATEMENTS/URBAN RENEWALS (LIMITED DIVIDEND)		
Ord. No.	**Subject Matter**	**Date of Adoption**
23-093	Approving a thirty-year tax exemption for a mixed-use residential project and authorizing a financial agreement with Bayfront Partners 32 Urban Renewal L.P., pursuant to the Long-Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq.	09-20-2023
23-098	Approving a tax exemption and authorizing a financial agreement regarding Lafayette Village pursuant to the New Jersey Housing and Mortgage Finance Agency Law, N.J.S.A. 55:14K-1 et seq.	10-15-2023
23-125	Canceling fourth (4th) Quarter omitted i added assessment for the 2019 real estate tax year on Block 21401 Lot 29, Block 5906 Lot 14, Block 17803 Lot 6, Block 23001 Lot 32.01, Block 29601 Lot 38, Block 14905 Lot 34 and Block 30101 Lot 26 on the official tax map of the City due to erroneous assessments	12-13-2023
24-022	Authorizing an amendment to a certain dedication agreement among 126-142 Morgan Street Urban Renewal, LLC, 134 Bay Street, LLC, and the City dated May 28, 2019 for certain land and improvements located within the Powerhouse Arts District Redevelopment Area at Provost Street between Bay Street and Morgan Street	04-24-2024
24-036	Approving a thirty-year tax exemption for a multi-site affordable rental project to be renovated by Montgomery Gateway Preservation, L.P., pursuant to the New Jersey Housing and Mortgage Finance Act of 1983, as amended and supplemented N.J.S.A. 55:14K-1, et seq. and the rules promulgated under N.J.A.C. 5:80-1 et seq.	05-22-2024
24-064	Amending Ordinance 23-093 and authorizing the execution of three financial agreements	08-14-2024
24-086	Approving a 30-year tax exemption for a mixed-use residential project with cultural, educational and arts spaces and authorizing financial agreements with 808 Pavonia Owner Urban Renewal LLC and 808 Pavonia II Owner Urban Renewal LLC pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq.	09-25-2024
25-017	An ordinance approving a 23-year tax exemption and authorizing a financial agreement for a multi-site affordable rental project previously renovated by Roseville Avenue Redevelopment Urban Renewal, pursuant to the New Jersey Housing and Mortgage Finance Act of 1983, as amended and supplemented, N.J.S.A. 55:14k-1, et seq. and the rules promulgated under N.J.A.C. 5:80-1 et seq.	02-26-2025
25-044	Approving a 30-year tax exemption to JHRC Senior Housing LLC concerning 259 Van Nostrand Ave, Block 25402, Lot 19, pursuant to the New Jersey Housing and Mortgage Finance Act of 1983, as amended and supplemented N.J.S.A. 55:14K-1, et seq. and the rules promulgated under N.J.A.C. 5:80-1 et seq.	04-09-2029
25-048	Approving a 30-year tax exemption for 701 Newark Avenue, LLC, Block 7902, Lots 25, 26, 27, 28 and 29, to be known as Block 7902, Lot 25.01, more commonly known by the street address of 693-701 Newark Avenue, Jersey City, New Jersey 07306 pursuant to the New Jersey Housing and Mortgage Finance Act of 1983, as amended and supplemented, N.J.S.A. 55:14K-1, et seq. and the rules promulgated under N.J.A.C. 5:80-1 et seq.	04-23-2025
25-101	Approving a tax exemption and authorizing a financial agreement with Sussex Street Associates Urban Renewal, LLC, regarding a project at Block 14205, Lot 10.01, commonly known as 177 Grand Street, and Block 14205, Lots 12 and 13, commonly known as 193-195 Grand Street, pursuant to the Long-Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq.	10-8-2025
25-118	Authorizing a tax abatement with Jersey City Embankment Associates LLC regarding property located at Block 11602, Lot 1, on the tax map of the City, more commonly known as 437 Marin Boulevard, pursuant to the Long-Term Tax Exemption Law, N.J.S.A. 40A:20-1, et seq.	11-12-2025

TABLE 7. DESIGNATIONS AND DEDICATIONS OF STREETS AND PUBLIC PLACES			
Ordinance	Name	**Title/Description**	Date of Adoption
	Liberty Av	Formerly Germania Av	07/19/1918
	Bayside Pl	Formerly DeMott Pl	12/17/1918
	Walnut St	Formerly Terry Alley	07/02/1925
	Journal Square	Formerly Bergen Av and Sip Av	03/09/1926
	Journal Square		07/09/1926
	Journal Square	Formerly Veteran's Square	12/02/1941
K-1305	Journal Square		09/19/1950
J-681	Martin Luther King Dr	formerly Jackson Av	01/06/1976
S-29	Corelius R. Parker Park	Formerly Madison Av Park	10/04/1977
S-79	Mortorano Way	Unnamed street (Same as S-532)	04/18/1978
S-105	Sal-Laf-Court	Formerly Atlantic St between Martin Luther King Dr and Ocean Av	08/22/1978
S-148	Mercy Dr	Formerly unnamed street	11/08/1978
S-203	Thomas F. McGovern Park	Formerly City Park from Sycamore Rd to Bayonne City Line	04/17/1979
S-218	Muhammed Ali Park	Formerly City Park on Van Nostrand Av between Rutgers Av and Ocean Av	06/05/1979
S-235	Morris Pesin Dr	Formerly Wolfe Dr	07/17/1979
S-236	Thomas F. McGovern Dr	Formerly Hammil Dr	07/17/1979
S-259	Danny Bufano Baseball Field	Formerly larger of 2 baseball fields at Pershing Field	07/31/1979
S-257	Theodore Conrad Dr	Formerly Liberty Dr	08/14/1979
S-258	Roberto Clemente Athletic Field	Formerly Little League at 6th St and Grove St	08/14/1979
S-261	Christopher Columbus Dr	Formerly Railroad Av	08/14/1979
S-280	Audrey Zapp Dr	Formerly Johnston Av, east of the Turnpike	09/04/1979
S-308	Central Av and the Thomas E. Maresca Plaza	Extending from South St northerly to Congress St, formerly Central Av	11/09/1979
S-326	Manila Av	Formerly a portion of Grove St from Boyles Plaza southerly to First St	12/18/1979
S-327	C.F.A.C Plaza Congress of Filipino American Citizens	Block 251, all lots except S3 between Erie St and Grove St on Pavonia Av to Ninth St northeast comer of Grove St, Thence west to the northwest comer on Pavonia Av at Erie St up and to but not including the Rafael J. DeCordero School, thence north on Erie St to the southeast comer on Ninth St easterly to the northwest comer of Grove St and Ninth St, to be known as No.1 C.EA.C.A Plaza, formerly a portion of Pavonia Av	01/02/1980
S-357	Thomas E. Maresca Skating Rink	Located in Pershing Field	03/11/1980
S-419	Ralph Taylor Park	Formerly City Park, located at Cator Av and Ludlow St	07/08/1980
S-423	Ed Franco Sports Complex	Formerly Sports Complex located in Block 418, 419 and 450, Plot A, comprised of 4.4 acres, located on Brunswick St between Eighth St and Ninth St	07/08/1980
S-431	Brother Stan Dr	Mercy Dr (Same as 532)	08/12/1980
S-532	Audrey Zapp Dr	Johnston Av east of New Jersey Turnpike	12/09/1980

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Ordinance	Name	**Title/Description**	Date of Adoption
S-532	Thomas E. Maresca Plaza	Central Av between South St and Congress St	12/09/1980
S-532	Christopher Columbus Dr	Railroad Av	12/09/1980
S-532	Manila Av	Grove St between Boyle Plaza and First St	12/09/1980
S-532	Martin Luther King Dr	Jackson Av (south of Bramhall Av and the new street connecting the old Jackson Av at Bramhall Av with Monticello Av at Communipaw Av)	12/09/1980
S-532	Brother Stan Dr	Mercy Dr (same as 431)	12/09/1980
S-532	Morris Pesin Dr	Wolf Dr	12/09/1980
S-532	Mortorano Way	Unnamed street (same as S-79)	12/09/1980
S-532	Salem Lafayette Court	Atlantic St between Ocean Av and Martin Luther King Dr	12/09/1980
S-532	Theodore Conrad Dr	Statue of Liberty Dr	12/09/1980
S-532	Thomas F. McGovern Dr	James Hamill Dr	12/09/1980
MC-165	Ristaino Dr	Redesignating Fremont St located between Montgomery St and Wayne St as Ristaino Dr	04/22/1982
MC-166	Chopin Court	Formerly an unamed street between Montgomery St and Wayne St west of Merseles St	04/22/1982
MC-255	Luis Munoz Marin Blvd	Formerly Henderson St	10/14/1982
MC-289	Nardone Pl	Redesignating Underwood Pl as Nardone Pl	12/09/1982
MC-284	One Manischewitz Pl	Formerly a portion of Marin Blvd (formerly Henderson St) between First St and Steuben St	12/27/1982
MC-502	Pershing Plaza	Formerly unamed street between Central Av and Summit Av south of Pershing Field and north of the reservoir	11/10/1983
MC-555	Journal Square Plaza	Formerly Kennedy Blvd between Cottage St and the Conrail Penn Central Railroad	02/23/1984
MC-539	Monmouth St	Accepting dedication of portions of Monmouth St in the Village Redevelopment Project Area	03/08/1984
MC-760	Harborside Financial Center	Designating the street abutting the Harborside Corporation as the Harborside Financial Center	12/27/1984
MC-10	Gregory Park Plaza	Designating that portion of Marin Blvd located between Christopher Columbus Dr and Montgomery St as Gregory Park Plaza	02/28/1985
MC-794	Gregory Park Plaza	Formerly Marin Blvd, between Christopher Columbus Dr and Montgomery St	02/28/1985
Resolution C-2358	Dick Seay Memorial Field	renaming Gateway Field to "Dick Seay Memorial Field" in honor of the memory of Dick Seay who was considered the best defensive second baseman to ever grace a field in black baseball	09/10/1987
Exec. Order 1988-C-221	Verga Pl	Designating southwest comer Summit & Newark Avs closest to 591 Summit Av as Verga Pl	6/13/1988 Cucci
C-922	Siperstein's Plaza	Montgomery St between Center & Colgate St, Colgate St between Montgomery & York St, York St between Colgate & Center St, Center St between York St & Montgomery St	03/23/1989
McC-13	Brooks Pl	Amending chapter 26 designating Brooks Pl as Huron Av and designating Van Winkile Av between Kennedy Blvd and Huron Av as Brooks Pl	09/13/1989

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Ordinance	Name	**Title/Description**	Date of Adoption
McC-205	Joseph Ferraro Lane	Amending chapter 26 designating the lane off Stuyvesant Av between Corbin Av and Van Wagenen Av as Joseph Ferraro Ln	09/19/1990
McC-260	Joseph R. Duffy Dr	Amending chapter 26 designating Grand St from Greene St to the Hudson River as Joseph R. Duffy Dr	01/09/1991
McC-356	Mohammed Ali Jinnah Loop	Amending chapter 26 providing that the street presently known as Mercer Loop also be known as Mohammed AH Jinnah Loop	9/9/1991 Deleted
McC-391	St. Jude Lane	See McC-412 amending chapter 26 providing that the street presently known as 16th St also be known as St. Jude Lane	11/06/1991
McC-412	St. Jude Lane	Amending Chapter 26 - 16th St inadvertently named in Ordinance McC-391 incorrectly stated St between Erie and Grove Sts is 16th St; 15th St between Erie and Grove Sts to be renamed St. Jude Lane	02/11/1992
Resolution 92-749	Philippine Plaza	to name the comer of Second St and Manila Av as Philippine Plaza	09/01/1992
Resolution 92-753	Rev. Dr. Alfred C. Maxwell Plaza	Honoring Rev. Dr. Alfred C. Maxwell of the Central Baptist Church by adding his name to a portion of Pavonia Av between Coles and Monmouth Sts and dedicating it as Rev. Dr. Alfred C. Maxwell Plaza	09/16/1992
Resolution 92-791	Riverview Fisk Park	Renaming Clinton Fisk Park to Riverview Fisk Park	09/30/1992
Resolution 93-049	William J. Thornton Park	Renaming Arlington Av Park in honor of William J. Thornton	01/13/1993
Resolution 93-170	Arthur Ashe Tennis Court	Renaming the Bayside Park Tennis Courts in memory of Arthur Ashe	02/24/1993
93-039	Dr. B.R. Ambedkar Av	Amending Chapter 26 ordaining the portion of Tonnele Av between Kennedy Blvd and Newark Av to be known as Dr. B.R. Ambedkar Av	4/14/1993 Withdrawn
93-086	Mohammed Ali Jinnah Loop	Amending Chapter 26 providing that the street presently known as Mercer Loop also be known as Mohammed Ali Jinnah Loop	09/08/1993
93-085	Dr. B.R. Ambedkar Av	Amending Chapter 26 ordaining the portion of Tonnele Av between Kennedy Blvd and Newark Av to be known as Dr. B.R. Ambedkar Av	09/08/1993
93-145	Thomas Gangemi Dr	Redesignating Sixth St from Marin Blvd to Washington St as Thomas Gangemi Dr	12/22/1993
94-103	Rev. Dr. John W. Wright Pl	Chapter 26, redesignation of street authorizing name of Mercer St between Varick and Monmouth Sts also be known as Rev. Dr. John W. Wright Pl	10/26/1994
Resolution 94-886	William Mercado Garden	Dedicating the Pocket-Park at the Intersection of Jersey Av & Newark Av as William Mercado Garden	12/28/1994
95-009	Rev. Ercel F. Webb Park	Designation - indicating that Lafayette Park will also be known as the Rev. Ercel F. Webb Park	02/22/1995
Resolution 95-253	Anthony J. Fiola Plaza	Designating that Newark Av at Five Corners shall also be known as Anthony J. Fiola Plaza	04/26/1995
Resolution 95-294	Angel Luis Ramos Playground	Rededicating the playground on Wayne St between Barrow and Jersey Av as the "Angel Luis Ramos Playground"	05/10/1995
95-084	Grieco Dr	Newly accepted roadway within the Franklin Park Subdivision	09/27/1995

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Ordinance	Name	**Title/Description**	Date of Adoption
95-084	Msgr. Wojtycha Dr	Newly accepted roadway within the Franklin Park Subdivision	09/27/1995
95-087	Janet Moore Park	Naming the park located on the southwest comer of Ogden Av and Cuneo Pl as Janet Moore Park	09/27/1995
95-096	Terry Dehere Park	Naming the park located on Garfield Av as Terry Dehere Park	10/11/1995
96-028	Lt. Anna Donato Riggi Playground	Naming the playground located in Pershing Field in memory of Lt. Anna Donato Riggi Playground	04/10/1996
96-071	Jack Dempsey Plaza	Designating southeast comer of Montgomery St and Florence St to also be known as Jack Dempsey Plaza (see also Res. 96-554: Resolution of the Municipal Council proclaiming June 30,1996 as Jack Dempsey Day - Adopted 6/26/1996)	06/26/1996
96-083	Jersey City Blvd	Designating Communipaw Av east of Wilson St at the New Jersey Turnpike to be known as Jersey City Blvd	08/14/1996
Resolution 96-840	The Irving Heir Circle	Resolution renaming the Culver Av Traffic Loop "The Irving Heir Circle"	09/25/1996
97-049	Vernater Watson Park	Naming the park located on the comer of Stevens Av and Martin Luther King Dr as Vernater Watson Park	08/13/1997
Resolution 97-668	Theodore Brunson Plaza	Urging the County of Hudson to permit the intersection of Stevens Av and John F. Kennedy Blvd to also be known as "Theodore Branson Plaza"	09/24/1997
97-080	James N. Williams Plaza	Designating that Oxford Av between Bergen Av and Sackett St also be known as James N. Williams Plaza	11/12/1997
97-084	Wilkinson Av Park	Redesignation of park known as Wilkinson Av Park located at Wilkinson Av between Ocean Av and Dr. Martin Luther King Dr to Dr. Edith Bland Phillips Park	11/25/1997
98-035	Bishop John L. Knight Plaza	Designating the corner of Warner Av and Martin Luther King Dr to also be known as Bishop John L. Knight Plaza	04/08/1998
Resolution 98-383	Gladys Canon Nunery	Resolution honoring the memory of Gladys Canon Nunery on the occasion of the renaming of Public School No. 29 in her honor	06/10/1998
98-084	Terrace Av Park	Renaming park known as Terrace Av Park to Edward Crincoli, R.A. Park	07/22/1998
98-085	Izeetter Hill McDuffy Park	Renaming Bramhall Park to Izeetter Hill McDuffy Park	07/22/1998
99-014	William "Billy" M. Gallager Park	Naming the park located at Linden and Woodland Avs as William "Billy" M. Gallager Park	02/10/1999
99-018	Thomas J. Stanton Plaza	Dedicating a Portion of Exchange Pl to also be known as Thomas J. Stanton Plaza	02/10/1999
99-027	Flip Wilson Way	Designating that Kearney Av from Martin Luther King Blvd to Bergen Av also be known as Flip Wilson Way	02/10/1999
99-100	Joseph W. Sullivan Plaza	Dedicating that the intersection of Summit and Hopkins Avs also be known as Joseph W. Sullivan Plaza	08/18/1999
99-148	Father James O'Brien Bridge	Renaming the Arlington Av Bridge as the Father James O'Brien Bridge	09/22/1999
99-149	Rev. Dr. Ralph E. Brower Dr	Dedicating that Virginia Av between Ocean Av and Martin Luther King Dr also be known as Rev. Dr. Ralph E. Brower Dr	09/22/1999
00-003	Mrs. Diane LaBruno Playground	Naming the playground located at Merseles St and Third St in Mary Benson Park in memory of Diane LaBruno	01/26/2000

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Ordinance	Name	**Title/Description**	Date of Adoption
00-015	Fr. Fitzgerald Way	Designating Ninth St between Jersey Av and Erie St to also be known as Fr. Fitzgerald Way	03/22/2000
00-020	Bishop Charles Cotton Square	Dedicating that the intersection of Boyd and Bergen Avs also be known as Bishop Charles Cotton Square	03/22/2000
00-052	Mono Sen Plaza	Designating Liberty Av between Newark Av and Van Winkle Av also be known as Mono Sen Plaza	05/10/2000
00-061	The Roberto Clemente Sports Complex	Naming the recreational facilities that include Enos Jones and Franco Field as The Roberto Clemente Sports Complex	06/14/2000
Resolution 00-633	The Carmine Conti Club House	Naming the club house in the Roberto Clemente Sports Complex The Carmine Conti Club House	09/13/2000
00-148	Henry Norford Pl	Designating Mercer St between Mill Road & Baldwin Av to also be known as Henry Norford Pl	10/25/2000
00-149	Reverend Dr. Ercel Webb Plaza	Designating the corner of Van Home St and Lafayette St to also be known as Reverend Dr. Ercel Webb Plaza	10/25/2000
00-165	Father Gabriel Av	Designating Clarke Av between Westside Av and Mallory Av also be known as Father Gabriel Av	11/21/2000
00-167	Rev. Eugene Hayward Plaza	Dedicating that the intersection of Wegman Parkway and Bergen Av also be known as Rev. Eugene Hayward Plaza	12/13/2000
01-007	Anthony M. Artificio, Sr. Plaza	Dedicating that the northwest comer of Laidlaw Av and Baldwin Av also be known as Anthony M. Artificio, Sr. Plaza	01/24/2001
01-034	William E. Martin Way	Authorizing Vroom Ct which intersects Vroom St between Van Reipen St and Bergen Av be also known as William E. Martin Way	03/28/2001
01-048	Vernater Watson Lane	Dedicating that Wade St between Kennedy Blvd and Martin Luther King Dr also be known as Vernater Watson Lane	04/25/2001
01-072	Rev. Henry Bezek Percy Dr	Dedicating that Atlantic St between Bergen Av and Sackett St also be known as Rev. Henry Bezek Percy Dr	06/13/2001
01-074	Gloria Esposito Plaza Gloria Esposito Way	Authorizing the plaza located on the westerly side of 1-18 Journal Square be also known as Gloria Esposito Plaza and authorizing Journal Square Concourse west, the alleyway leading to 50 Journal Square and 52 Journal Square be also known as Gloria Esposito Way	06/27/2001
01-076	Rev. Eugene Hayward Way Elder Eugene Hayward Plaza	Dedicating that the intersection of Wegman Parkway and Bergen Av also be known as (Rev. Eugene Hayward Way) Elder Eugene Hayward Plaza	06/27/2001
01-093	Domenick J. Infantes, Jr. Memorial Hockey Rink	Dedicating that the hockey rink in the Roberto Clemente Sports Complex be named the Domenick J. Infantes, Jr. Memorial Hockey Rink	08/15/2001
01-098	Douglas & Arthur Skinner Memorial Dr	Dedicating that Jersey Av from Grand St to the southern terminus be named Douglas & Arthur Skinner Memorial Dr	09/12/2001
01-099	Reverend Dr. Charles T. Epps Sr. Plaza	Designating the southwest comer of Ocean Av and Bramhall Av to also be known as Reverend Dr. Charles T. Epps Sr. Plaza	09/12/2001
01-100	Domenick J. Infantes, Jr. Memorial Gazebo	Dedicating that the gazebo in Hamilton Park be named the Domenick J. Infantes, Jr. Memorial Gazebo	09/12/2001
01-102	Sokkon Yun Plaza	Designating the intersection of Central Av and Bowers St to be also known as Sokkon Yun Plaza	09/12/2001

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Ordinance	Name	**Title/Description**	Date of Adoption
01-111	Hubby's Corner	Authorizing the designation of the intersection of Union St and Bergen Av as Hubby's Comer	09/26/2001
Resolution 01-843	LaPointe Park	Honoring the LaPointe family on the occasion of the rededication of LaPointe Park	11/28/2001
01-136	Addison McLeon Plaza	Designating Martin Luther King Dr between Virginia Av and Ege Av also be known as Addison McLeon Plaza	01/09/2002
02-014	Henrietta Robinson Booker Dr	Authorizing the designation of Madison Av between Bramhall and Communipaw Avs also known as Henrietta Robinson Booker Dr	02/27/2002
02-018	Reverend Dr. Ercel F. Webb Park	Indicating that Lafayette Park will be known as the Reverend Dr. Ercel F. Webb Park	02/27/2002
02-039	Frank Sclafani Comer	Dedicating that the comer of Zabriskie St and John F. Kennedy Blvd be also known as Frank Sclafani Corner	03/27/2002
02-051	Juan Pablo Duarte Dr	Designating that Johnston Av between Grand St and Audrey Zapp Dr be known as Juan Pablo Duarte Dr	04/24/2002
02-063	Johnston Av	Designating that Johnston Av between Pacific Av and Audrey Zapp Dr be known as Juan Pablo Duarte Dr and designating that it also be known as Johnston Av	5/8/2002 Defeated
02-062	Sam Manzo Plaza	Dedicating that Monticello Av between Jewett Av and Gardner Av also be known as Sam Manzo Plaza	05/22/2002
02-117	Edward B. Pulver Way	Dedicating that Washington St from Dudley St to the southern terminus of Washington St at the Morris Canal also be known as Edward B. Pulver Way	10/23/2002
02-129	Herbert A. Jackson Plaza	Designating that Communipaw Av between Van Home and Halladay Sts also be known as Herbert A. Jackson Plaza	11/26/2002
02-148	Pope John Paul II Plaza	Dedicating that Warren St between York St and Grand St also be known as Pope John Paul II Plaza	01/08/2003
03-021	Joseph Lovero Way	Dedicating that Bay St at the intersection of Newark Av and Erie St also be known as Joseph Lovero Way	02/26/2003
03-022	Mary McLeod Bethune Life Center	Dedicates the Community Education Center on Martin Luther King Dr be named to Mary McLeod Bethune Life Center	02/26/2003
03-041	St. Anne's Way	Dedicating that Congress St between Nelson Av and J.F. Kennedy Blvd also be known as St. Anne's Way	03/26/2003
03-044	Frances Jackson Comer	Dedicating that southeast corner of Grant Av and Martin Luther King Dr be known as Frances Jackson Comer	03/26/2003
03-046	Irene Carson Court	Accepting from the Jersey City Housing Authority a dedication of certain sidewalks, roadways and utilities within the Lafayette Village subdivision and naming a roadway within the subdivision Irene Carson Court	03/26/2003
03-047	Ken Musico Plaza	Dedicating that Monticello Av from Storms Av to Bergen Av, also be known as Ken Musico Plaza	03/26/2003
03-049	Carmine Conti Comer	Dedicating that the comer of Seventh and Brunswick Sts also be known as Carmine Conti Comer	04/09/2003
03-063	Edna Allen St Paul Way	Dedicating that Crescent Av between Harrison Av and Brinkerhoff Av also be known as Edna Allen St Paul Way	05/14/2003
03-081	Adilio Gonzalez Plaza	Dedicating that the southwest comer of Bay St and Manila Av to also be known as Adilio Gonzalez Plaza	06/11/2003

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Ordinance	Name	**Title/Description**	Date of Adoption
03-085	James F. Morley Sr. Plaza	Dedicating that the intersection of Mina Dr and Route 440 also be known as James F. Morley Sr. Plaza	06/11/2003
03-108	Sam C. DiFeo Dr	Dedicating that Communipaw Av between Mallory and Marcy Avs also be known as Sam C. DiFeo Dr	08/13/2003
03-109	Efrem Zimbalist Steward Way	Dedicating that the Comer of Gifford Av and Bergen Av to also be known as Efrem Zimbalist Steward Way	08/13/2003
03-118	Celia Cruz Dr	Dedicating that Grove St between Christopher Columbus Dr and Canal St also be known as Celia Cruz Dr	09/10/2003
03-147	Private John J. Spinarelli Way	Dedicating that the comer of Scott St and Greenville Av also be known as Private John J. Spinarelli Way	10/22/2003
03-153	Bishop Paul Moore, Jr. Pl	Dedicating that Second St and Erie St also be known as Bishop Paul Moore, Jr. Pl	01/14/2004
03-162	John "Buster" McLaughlin Plaza	Dedicating that the intersection of Baldwin and Pavonia Avs also be known as John "Buster" McLaughlin Plaza	01/14/2004
04-014	Derek Lorenzo Ingram Dr	Dedicating that the comer of Lexington Av and Bergen Av also be known as Derek Lorenzo Ingram Dr	02/11/2004
04-023	Matthew Dublin Av	Designating that a portion of Storms Av between Monticello Av & Summit Av also be known as Matthew Dublin Av	03/10/2004
04-028	Janet E. Haynes Dr	Dedicating that Randolph Av between Bramhall Av & Union St also be known as Janet E. Haynes Dr	03/26/2004
04-065	Glenn D. Cunningham Way	Dedicating that Montgomery St between Exchange Pl and West Side Av also be as known as Glenn D. Cunningham Way	06/23/2004
04-076	Reginald Keith Taylor Dr	Designating that a portion of Bidwell Av between Garfield Av and Ocean Av also be known as Reginald Keith Taylor Dr	08/11/2004
04-082A	Glenn D. Cunningham Pl	Dedicating that Orient Av between Martin Luther King Dr and Bergen Av also be known as Glenn D. Cunningham Pl	09/08/2004
04-131	The Judge Lewis S. McRae Justice Center	Renaming the Jersey City Municipal Justice Complex the Judge Lewis S. McRae Justice Center	11/10/2004
04-138	Warren H. Curtis Comer	Designating that the intersection of Bond St and Garrison Av also be known as Warren H. Curtis Comer	11/10/2004
05-005	Anthony J. Nicodemo Pl	Designating that the intersection of Sixth St and Brunswick St also be known as Anthony J. Nicodemo Pl	01/26/2005
05-035	Michael James Taylor Dr	Dedicating that Wilkinson Av between Martin Luther King Dr and Ocean Av also be known as Michael James Taylor Dr	04/13/2005
05-055	Joseph T. Connors Senior Center	Renaming the Paterson St Senior Center the Joseph T. Connors Senior Center	05/18/2005
05-057	Dr. George E. Cannon Dr	Dedicating that Road A between Whiton and Pine Sts be known as Dr. George E. Cannon Dr	05/18/2005
05-065	Fausto "Vale" Valentin Garcia Plaza	Dedicating that the Northeast corner of Communipaw Av & Whiton St also be known as Fausto "Vale" Valentin Garcia Plaza	06/08/2005
05-067	Louis Marin Boulevard	Dedicating city-owned property known as Block 60, Lot 28.F as part of the public right-of-way known as Louis Marin Boulevard in the Liberty Harbor North Redevelopment Area	06-08-2005

TABLE 7. DESIGNATIONS AND DEDICATIONS OF STREETS AND PUBLIC PLACES			
Ordinance	Name	**Title/Description**	Date of Adoption
05-072	Our Lady of Mount Carmel Plaza	Dedicating that Broadway from Giles Av to Wales Av also be known as Our Lady of Mount Carmel Plaza	06/22/2005
05-114	Daniel Strulowitz Way	Dedicating that Nardone Pl be renamed Daniel Strulowitz Way	09/14/2005
05-131	Town Square Pl	Amending Chapter 26 of the Jersey City Code designating Pavonia Av between Washington Blvd and Town Square Ring Rd and Town Square Ring Rd as Town Square Pl	9/14/2005 Withdrawn
05-132	River Dr	Amending Chapter 26 designating River Dr South between Newport Parkway and Town Square Ring Rd as River Dr	9/14/2005 Withdrawn
05-167	Father Isaac A. Persaud Way	Dedicating that Storms Av between Monticello and Fairmount Avs also be known as Father Isaac A. Persaud Way	11/22/2005
06-012	Reverend John H. McReynolds Way	Dedicating that McDougall St between Arlington Av and Randolph Av to also be known as Reverend John H. McReynolds Way	02/08/2006
06-055	Bishop Robert L. Blount Dr	Designating that Kearny Av between Ocean Av and Martin Luther King Dr also be known as Bishop Robert L. Blount Dr	04/26/2006
06-062	James "Pop" Curry Dr	Naming a new St between Woodward St and Van Home St Extension in the Revitalized Lafayette Gardens Site to be known as James "Pop" Curry Dr	05/10/2006
06-063	Walter Mays Dr	Naming a new St between Woodward St and Van Home St Extension in the Revitalized Lafayette Gardens Site to be known as Walter Mays Dr	05/10/2006
06-069	Mario Costa Plaza	Dedicating that Manhattan Av between Western Av and Tonnele Av to be also known as Mario Costa Plaza	05/24/2006
06-104	Willie Wolfe Pl	Dedicating that Sherman Pl between Summit Av and Sanford Pl be also known as Willie Wolfe Pl	09/13/2006
06-126	Oviedo Way	Designating that Mercer St between Grove St and Marin Blvd be also know as Oviedo Way	10/11/2006
07-061	Gromek Way	Dedicating that Everett St between Williams Av and Clendenny Av also be known as Gromek Way	04/11/2007
07-117	Bishop Henry D. Mays, Sr. Way	Dedicating that Prescott St between Grand St also be known as Bishop Henry D. Mays, Sr. Way	06/27/2007
07-118	Alexander Hotovitsky Way	Dedicating that Grand St between Van Vorst St and Washington St also be known as Alexander Hotovitsky Way	06/27/2007
07-140	Gimbert's Way	Dedicating that the comer of Le beck Av and Romar Av also be known as Gimbert's Way	08/22/2007
07-152	Independent Beauty Supply Way	Dedicating that Monticello Av between Harrison and Brinkerhoff St also be known as Independent Beauty Supply Way	08/22/2007
07-171	Eduardo E. Pena Jr. Way	Dedicating that Sherman Pl from Central Av to Summit Av also be known as Eduardo E. Pena Jr. Way	10/24/2007
07-186	Dr. Henry Cannon, Jr. Way	Dedicating that the comer of 4th and Monmouth Sts be also known as Dr. Henry Cannon, Jr. Way	01/09/2008
07-187	Maria Skupien Way	Designated that Hamilton Pl and Pavonia Av also be known as "Maria Skupien Way"	01/09/2008

TABLE 7. DESIGNATIONS AND DEDICATIONS OF STREETS AND PUBLIC PLACES			
Ordinance	Name	**Title/Description**	Date of Adoption
08-016	Pastor Norlee Green Plaza	Dedicating that the Northeast corner of Pearsall and Ocean Avs also be known as Pastor Norlee Green Plaza	02/27/2008
08-041	Howie Fink Way	Renaming Pershing Plaza between Central Av and Summit Av as Howie Fink Way	04/09/2008

TABLE 7. DESIGNATIONS AND DEDICATIONS OF STREETS AND PUBLIC PLACES			
Ordinance	Name	**Title/Description**	Date of Adoption
08-049	Dominick Cinelli Way	Dedicating the comer of Claremont and Ocean Avs to also be known as Dominick Cinelli Way	04/23/2008
08-052	Irene Wise Way	Dedicating the comer of Delaware Av and Gautier Av to also be known as Irene Wise Way	04/23/2008
08-087	Swaminarayan Way	Dedicating that Hoboken Av between Central Av and Newark Av also be known as Swaminarayan Way	06/25/2008
08-127	Don Samuel Cintron Barbershop Way	Dedicating that the Northeast corner of Barrow St and Christopher Columbus Dr also be known as Don Samuel Cintron Barbershop Way	09/10/2008
08-147	Michael Pane Way	Honoring the memory of Michael Pane by dedicating that the Northeast comer of Wallis Av and Broadway also be known as Michael Pane Way	10/22/2008
09-008	Frank Roman Way	Dedicating the South West comer of Academy and Baldwin Avs to also be known as Frank Roman Way	01/28/2009
09-023	Huels' Way	Designating that the intersection of Montrose Av and Lake St be also known as Huels' Way	03/11/2009
09-037	Deacon Joseph J. Del Monte Way	Dedicating that Pine St between Communipaw Av and the NJ Transit Hudson-Bergen Light Rail also be known as Deacon Joseph J. Del Monte Way	04/08/2009
09-042	Church of Nazarene Way	Designating that the intersection of Grove St and York St also be known as Church of Nazarene Way	04/08/2009
Resolution 09-265	Olga Rodriguez Senior Support Center	Naming the senior support center at Monmouth and Montgomery Sts the Olga Rodriguez Senior Support Center	04/08/2009
09-077	Reverend john Dupree, Sr. Dr	Dedicating that Randolph Av between Carteret Av and Claremont Av also be known as Reverend John Dupree, Sr. Dr	06/17/2009
09-081	Ethel Mae Haynes Way	Dedicating that the intersection of Van Home St and Bramhall Av also be known as Ethel Mae Haynes Way	06/17/2009
09-082	Terry Monaghan Way	Dedicating that the intersection of Hutton St and Sanford Pl also be known as Terry Monaghan Way	06/17/2009
09-086	Bishop Clyde L. Harris Way	Dedicating that the southeast comer of Martin Luther King Dr and Armstrong Av also be known as Bishop Clyde L. Harris Way	07/29/2009
09-100	Miles Alexander Johnson Way	Dedicating the northeast comer of Van Cleef St and Armstrong Av also be known as Miles Alexander Johnson Way	09/23/2009
09-106	Susan Stavar's Comer	Dedicating that the intersection of Grand St and Luis Marin Blvd also be known Susan Stavar's Comer	10/28/2009
Resolution 09-899	Charles E. Trefurt Jr.	Honoring Charles E. Trefurt Jr. on the occasion of the naming of P.S. No. Eight in his honor	10/28/2009
10-071	Charlie Straub Way	Naming the path between the Babe Ruth Field and Cal Ripken Field at Pershing Field Charlie Straub Way	06/09/2010
10-086	Moishe's Way	Dedicating that Coles St between 10th St and 13th St also be known as Moishe's Way	07/14/2010
10-088	Pastor Erwin Lanier, Sr. Dr	Dedicating that Dales Av between Logan Av and Broadway also be known as Pastor Erwin Lanier, Sr. Dr	07/14/2010
10-099	Bobby L. Jackson Way	Dedicating that Jewett Av Parkway between Bergen Av and Monticello Av also be known as Bobby L. Jackson Way	08/04/2010

TABLE 7. DESIGNATIONS AND DEDICATIONS OF STREETS AND PUBLIC PLACES			
Ordinance	Name	**Title/Description**	Date of Adoption
10-111	Dante Alighieri Way	Dedicating that Summit Av between Pavonia Av and Newark Av also be known as Dante Alighieri Way	08/25/2010
10-112	Bob Hurley Sr. Way	Dedicating that Eighth St between Manila Av and Marin Blvd be also known as Bob Hurley Sr. Way	09/15/2010
10-120	Our Lady of Czestochowa Roman Catholic Parish Way	Dedicating that Sussex St between Washington St and Warren St be also known as "Our Lady of Czestochowa Roman Catholic Parish Way"	10/13/2010
10-138	Bishop George M. Cutler Way	Dedicating that Bergen Av between Fairmount Av and Jewett Av also be known as Bishop George M. Cutler Way	11/10/2010
10-159	Christ the King Church Way	Dedicating that Ocean Av between Forest St and Oak St be also known as Christ the King Church Way	12/15/2010
11-009	Louis Calamito Way	Dedicating that the intersection of Monmouth and Fifth Sts also be known as Louis Calamito Way	01/26/2011
11-047	Rosemary Gallagher Way	Dedicating that the northeast comer of John F. Kennedy Blvd and Fowler Av also be known as Rosemary Gallagher Way	05/11/2011
11-059	Domenick J. Infantes, Jr. Way	Dedicating that the northwest comer of Jewett Av and John F. Kennedy Blvd also be known as Domenick J. Infantes, Jr. Way	05/25/2011
11-069	Monsignor Kelly Way	Dedicating that the northeast comer of Montgomery St and Brunswick St be also known as Monsignor Kelly Way	06/15/2011
11-100	Principal Marvin A. Strynar Dr	Dedicating that Erie St from Ninth St to Pavonia Av also be known as Principal Marvin A. Strynar Dr	08/31/2011
11-105	Spc. Marlon P. Jackson & Spc. Rafael A. Nieves, Jr. Walkway	Dedicating that the waterfront walkway at York St be known as Spc. Marlon P. Jackson & Spc. Rafael A. Nieves, Jr. Walkway	08/31/2011
11-113	Bishop Tommie Howell Jr. Way	Dedicating the Southwest Comer of Ocean Av and Stevens Av as Bishop Tommie Howell Jr. Way	09/27/2011
11-114	Philip "Philly" Piparo Way	Dedicating that the Northeast corner of Beacon Av and Central Av be also known as Philip "Philly" Piparo Way	09/27/2011
11-132	Robert G. Sacks Way	Dedicating that the intersection of St Pauls Av and Huron Av also be known as Robert G. Sacks Way	11/09/2011
11-133	Michael Malloy Jr. Way	Dedicating that the intersection of Summit Av and Laidlaw Av also be known as Michael Malloy Jr. Way	11/09/2011
11-141	Willie L. Flood Way	Dedicating that Forrest St between Bergen Av and Martin Luther King Dr also be known as Willie L. Flood Way	11/09/2011
12-005	Joseph A. Webb Pl	Dedicating that the intersection of Maple St and Halladay St also be known as Joseph A. Webb Pl	01/25/2012
12-006	Allen Nile Dunbar, Sr. Way	Dedicating that Van Home St between Maple St and Johnston Av also be known as Allen Nile Dunbar, Sr. Way	01/25/2012
12-014	Reverend Fernando L. Colon Jr. Way	Dedicating that the southwest Corner of Wayne St and Baldwin Av to also be known as Reverend Fernando L. Colon Jr. Way	02/22/2012
12-022	Judge Shirley Tolentino Av	Dedicating that the south side of Newark Av from Baldwin Av to Central Av also be known as Judge Shirley Tolentino Av	02/22/2012

TABLE 7. DESIGNATIONS AND DEDICATIONS OF STREETS AND PUBLIC PLACES			
Ordinance	Name	**Title/Description**	Date of Adoption
12-029	Dr. Eliu Rivera Way	Dedicating that the intersection of Manila Av and Second St also be known as Dr. EHu Rivera Way	03/28/2012
12-046	Michael Muchioki Way	Dedicating that Randolph Av between Union St and Bramhall Av also be known as Michael Muchioki Way	04/11/2012
12-049	Pope Shenouda III Way	Dedicating that the intersection of Bergen Av and Vroom St also be known as Pope Shenouda III Way	04/25/2012
12-055	Jaime Vazquez Way	Dedicating that Monmouth St from York St to Montgomery St also be known as Jaime Vazquez Way	04/25/2012
12-063	Michael Muchioki Way	Rescinding Ordinance 12-046 and dedicating that Union St between Randolph Av and Arlington Av also be known as "Michael Muchioki Way"	05/09/2012
12-064	Bishop Scotland B. Bailey Way	Dedicating that Martin Luther King Dr between Stegman St and Wegman Parkway also be known as Bishop Scotland B. Bailey Way	05/23/2012
12-065	Bishop Wayman Wright, Sr. Way	Dedicating that the northeast comer of Stevens Av and Rutgers Av to also be known as Bishop Wayman Wright, Sr. Way	05/23/2012
12-067	Rev. Donavon W. Shoemaker Way	Dedicating that Woodlawn Av between Bergen Av and Martin Luther King Dr also be known as Rev. Donavon W. Shoemaker Way	05/23/2012
12-074	Elliot "Skip" Adams Fieldhouse	naming the fieldhouse at Courtney Fricchione Memorial Field Elliot "Skip" Adams Fieldhouse	05/23/2012
12-079	Harvey George Way	Dedicating that the northeast comer of Dwight St and Martin Luther King Dr to also be known as Harvey George Way	06/27/2012
12-080	Apple Tree House Lane	Dedicating that the portion of Academy St between Van Reypen St and Bergen Av to also be known as Apple Tree House Lane	06/27/2012
12-088	Carlos Negron Pl	Dedicating that the comer of Hutton St and Palisade Av also be known as Carlos Negron Pl	07/18/2012
12-109	Raymond F. Skop Way	Dedicating that the intersection of Sip Av and Hawthorne Av also be known as Raymond F. Skop Way	09/12/2012
12-113	Maureen Walliser Way	Dedicating that the southeast comer of Vroom St and Tuers Av also be known as Maureen Walliser Way	09/12/2012
12-135	James "Zimp" Smith Way	Dedicating that the southeast comer of Dwight St and Ocean Av to also be known as James "Zimp" Smith Way	10-24-2012
13-012	Deacon Carlbert Heard, Sr. Drive	Dedicating that Astor Place between Crescent Avenue and Summit Avenue to also be known as Deacon Carlbert Heard, Sr. Drive	02-27-2013
13-026	John "Jack" Tarantula Way	Dedicating that the northwest comer of Summit Avenue and Thome Street to also be known as John "Jack" Tarantula Way	02-27-2013
13-048	Bishop Cainan W. Johnson Way	Dedicating that the intersection of Woodward Street and Communipaw Avenue also be known as Bishop Cainan W. Johnson Way	04-24-2013
13-049	Edgar Sanchez Sr. Way	Dedicating that the intersection of 5th St and Manila Av also be known as Edgar Sanchez Sr. Way	05-08-2013
13-066	Ethel Pesin Liberty Footbridge	Naming the new footbridge connecting Jersey Av and Liberty State Park the Ethel Pesin Liberty Footbridge	06-19-2013

TABLE 7. DESIGNATIONS AND DEDICATIONS OF STREETS AND PUBLIC PLACES			
Ordinance	Name	**Title/Description**	Date of Adoption
13-068	Apple Tree House Lane	Dedicating that the portion of Academy St between Van Reypen St and Bergen Av also be known as Apple Tree House Lane	06-19-2013
13-079	Saint John's Episcopal Church and Rectory	Designating Saint John's Episcopal Church and Rectory as a municipal landmark	06-19-2013
13-086	Bishop Richard J. Green Way	Dedicating that the intersection of Wilkinson Av and Clerk St also be known as Bishop Richard J. Green Way	09-11-2013
14-038	Pickett Family Comer	Designating the intersection of Grant Av and Ocean Av to be also known as the Pickett Family Comer	04-09-2014
14-082	Milad Plaza	Providing the west comer of Florence Street and Montgomery Street with the commemorative designation "Milad Plaza"	07-16-2014
14-093	Detective Melvin Vincent Santiago Police Facility	Renaming the new West District Police Facility the "Detective Melvin Vincent Santiago Police Facility	09-10-2014
14-164		Adopting the list of prospective street names recommended by the Municipal Council Street Name Subcommittee	12-17-2014
15-002	Bill Gaughan Way	Honoring former Ward D Councilman William "Bill" Gaughan by naming the one hundred (100) steps connecting the Jersey City Heights with Franklin Street "Bill Gaughan Way"	01-28-2015
15-038	Anna and Anthony R. Cucci Memorial Council Chambers	Rededicating the Municipal Council Chambers as the Anna and Anthony R. Cucci Memorial Council Chambers	03-25-2015
15-129	Frank Brazicki Way	Dedicating that Spruce Street to the dead end along Liberty Avenue also be known as Frank Brazicki Way	09-24-2015
16-060	Kool & the Gang Way	Providing Maple Street from Pacific Avenue east to Whiton Street with the commemorative designation "Kool & the Gang Way"	05-11-2016
16-161	Park View Avenue	Amending Chapter 332, Vehicles and Traffic, to re-name Park Avenue "Park View Avenue"	10-26-2016
17-110	The Maria Tuzzo Pavilion	Naming the newly re-constructed gazebo in Riverview Park "the Maria Tuzzo Pavilion"	09-13-2017
17-111	Nicholas Arcuri Way	Providing the section of 5th St from Monmouth St west to Brunswick St with the commemorative designation "Nicholas Arcuri Way"	09-13-2017
17-112	Dan Waddleton Way	Providing the section of 16th St from Marin Blvd west to Jersey Av with the commemorative designation "Dan Waddleton Way"	09-13-2017
17-129	Aynon Street	Applying the name "Aynon Street" to the public thoroughfare planned to run east and west through the site of the former Montgomery Gardens Housing Complex and which will run parallel to Montgomery St	09-27-2017
17-130	Jonathan C. Gibbs, Jr. Boulevard	Applying the name "Jonathan C. Gibbs, Jr. Boulevard" to the public thoroughfare planned to run north and south through the site of the former Montgomery Gardens Housing Complex	09-27-2017
17-131	Ward Street	Applying the name "Ward Street" to the public thoroughfare planned to run east and west through the site of the former Montgomery Gardens Housing Complex and which will run parallel to Bright St	09-27-2017

TABLE 7. DESIGNATIONS AND DEDICATIONS OF STREETS AND PUBLIC PLACES			
Ordinance	**Name**	**Title/Description**	**Date of Adoption**
17-158	Hasan M. Chaudhry Way	Providing the entire length of Ristaino Drive, from Montgomery Street north to Way Street, with the commemorative designation Hasan M. Chaudhry Way	11-29-2017
17-166	Boys & Girls Club Way	Providing the entire length of Morris Boulevard from Park View Avenue to Marin Boulevard with the commemorative designation Boys & Girls Club Way	12-13-2017
17-167	Peter J. Zampella, Sr. Way	Providing the portion of Newark Avenue from 2nd Street to Monmouth Street with the commemorative designation Peter J. Zampella, Sr. Way	12-13-2017
17-168	Frank J. Caso Way	Providing a portion of Danforth Avenue from Princeton Avenue west to John F. Kennedy Boulevard with the commemorative designation Frank J. Caso Way	12-13-2017
18-042	Dr. Martin Luther King, Jr., City Hall Annex Building and Melissa Holloway Municipal Building	(1) Naming the first building in the HUB Municipal Complex, which was recently completed, after Dr. Martin Luther King, Jr., and (2) naming the second municipal building in the HUB Municipal Complex, yet to be built, after former Ward F Councilwoman Melissa Holloway	05-09-2018
18-081	Earl Morgan Branch Library	Renaming the Greenville Branch, of the Jersey City Free Public Library to the Earl Morgan Branch Library	08-15-2018
18-092	Elnora M. Watson Plaza	Renaming Martin Luther King Jr. Drive, between Wilkinson and Bostwick Avenues, to Elnora M. Watson Plaza	08-15-2018
18-093	Pvt. Nick Arcuri Way	Rescinding Ordinance 17-111 providing the section of 5th Street from Monmouth Street west to Brunswick Street with the commemorative designation "Nicholas Arcuri Way" and approving an ordinance providing the section of 5th Street from Monmouth Street west to Brunswick Street with the commemorative designation "Pvt. Nick Arcuri Way"	09-12-2018
19-053	Rev. J.V. Pagnotta Way	Providing the section of Baldwin Avenue from Pavonia Avenue south to Magnolia Avenue with the commemorative designation "Rev. J.V. Pagnotta Way"	06-12-2019
19-113	Priscilla Gardner Main Library	Naming the Main Library of the Jersey City Free Public Library System located at the northeast corner of Montgomery Street and Jersey Avenue the "Priscilla Gardner Main Library"	09-11-2019
22-021	John Seborowski, Sr. Way	Dedicating Columbia Avenue from North Street to Leonard Street in Jersey City as "John Seborowski, Sr. Way"	03-09-2022
22-051	Society Hill Drive	Applying the name "Society Hill Drive" to "New Road 2" in the Bayfront Redevelopment site planned to run north through the redevelopment site	06-29-2022
22-052	Bayfront Avenue	Applying the name "Bayfront Avenue" to "New Road 4 12" in the Bayfront Redevelopment site planned to run south through the redevelopment site	06-29-2022
22-053	Lehigh Avenue	Applying the name "Lehigh Avenue" to "New Road 12 4" in the Bayfront Redevelopment site planned to run south through the redevelopment site	06-29-2022
22-054	Conlon Boulevard	Applying the name "Conlon Boulevard" to "New Road 6" in the Bayfront Redevelopment site planned to run west through the redevelopment site	06-29-2022
22-055	Philbrook Boulevard	Applying the name "Philbrook Boulevard" to "New Road 5" in the Bayfront Redevelopment site planned to run east through the redevelopment site	06-29-2022

TABLE 7. DESIGNATIONS AND DEDICATIONS OF STREETS AND PUBLIC PLACES			
Ordinance	**Name**	**Title/Description**	**Date of Adoption**
22-056	Hackensack Avenue	Applying the name "Hackensack Avenue" to "New Road 1" in the Bayfront Redevelopment site planned to run north and south through the redevelopment site	06-29-2022
22-061	Sgt. Pantozzi Plaza	Commemorating the intersection at 527 Mercer Street and 56 Jordan Street in honor of Sergeant Vincent Pantozzi as "Sgt. Pantozzi Plaza"	07-13-2022
23-028	Harriet Tubman Amphitheatre	Naming the Berry Lane Park Amphitheatre the "Harriet Tubman Amphitheatre" in honor of Harriet Tubman	04-12-2023
23-039	One, Two, Three and Four Jackson Square	Designating newly constructed municipal buildings as One, Two, Three and Four Jackson Square	05-20-2023
23-062	Peacock Way	Designating Glenwood Avenue, from Kennedy Boulevard to West Side Avenue as "Peacock Way"	06-28-2023
23-071	Stanfield Lane	Renaming Sycamore Road, east of McGovern Park, from Custer Avenue to Gates Avenue to "Stanfield Lane"	07-12-2023
24-007	Jeremy Farrell Playground	Naming the playground located at J. Owen Grundy Park the "Jeremy Farrell Playground" in honor of Jeremy Farrell	03-06-2024
24-018	Daoud-David Williams Cultural Arts Center	Naming the Miller Branch Library Cultural Arts Center Auditorium as the "Daoud-David Williams Cultural Arts Center" in honor of Daoud-David Williams	04-10-2024
25-046	Michael Yun Municipal Services Center	Designating the Jersey City municipal offices located at 394 Central Ave., Jersey City, NJ 07307 as the "Michael Yun Municipal Services Center"	04-23-2025
25-047	James "Jay" McCaffery Memorial Courtroom	Dedicating Judge James McCaffery's former Courtroom #4 in the Jersey City Municipal Court as the James "Jay" McCaffery Memorial Courtroom	04-23-2025
25-054	Robert Byrne Way	Amending Chapter A352, Enabling Ordinances, renaming Courthouse Place, from Baldwin Avenue to Oakland Avenue in the City, to "Robert Byrne Way"	05-07-2025
25-064		Amending Chapter A352, Enabling Ordinances, dedicating a plaque on a bench located on Grove Street (or Newark Avenue) in the City of Jersey City, in honor of Arif Patel	06-11-2025
25-096	Walter R. Lezynski Way	Amending Chapter A352, Enabling Ordinances, commemoratively designating Bentley Avenue, from John F. Kennedy Blvd. to West Side Avenue in the City of Jersey City, as "Walter R. Lezynski Way"	09-24-2025

TABLE OF DATELINES

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DISPOSITION LIST

DISPOSITION LIST

The following is a chronological listing of legislation of the City of Jersey City adopted since the publication of the Code, indicating its inclusion in the Code or the reason for its exclusion. [Enabling legislation which is not general and permanent in nature is considered to be non-Code material (NCM).] Information regarding legislation which is not included in the Code nor on this list is available from the office of the City Clerk. The last legislation reviewed for the original publication of the Code was Ord. No. 94-88, adopted 9-28-1994. A complete listing, including disposition, of all legislation reviewed in conjunction with the original publication of the Code is on file in the office of the City Clerk.

Ordinance Number	Date of Adoption	Description	Disposition
93-958(Res.)	12-08-1993	Amending Chapter 2 (Administrative Code) Subarticle I Council Rules of the Jersey City Code	A350-18 B., C.
94-089	09-28-1994	Motor vehicle nuisances	Ch. 242, Art. V
94-090	09-28-1994	Salaries and compensation	NCM
94-091		Amending Schedule 22 Chapter 26 designating a reserved parking space at 33 Zabriskie St	Never Adopted
94-092	09-28-1994	Vehicles and traffic amendment	Ch. 332
94-093	09-28-1994	Vehicles and traffic amendment	Ch. 332
94-094		Amending Schedule 3, Chapter 26 (Traffic) designating no parking anytime on both sides of Phillip Street	Defeated 09-14-1994
94-095	10-12-1994	Lease agreement	Ch. A352
94-096	10-12-1994	Lease extension	Ch. A352
94-097	06-28-1995	Refunding bond ordinance to authorize the appropriation of not to exceed $1,180,000	Ch. A352
94-098	06-28-1995	Refunding bond ordinance to authorize the appropriation of not to exceed $1,180,000 and to authorize the issuance of not to exceed $92,555,000	Ch. A352
94-099	06-28-1995	Refunding bond ordinance to authorize the appropriation of not to exceed $40,015,000	Ch. A352
94-100	06-28-1995	Refunding bond ordinance to authorize the appropriation of not to exceed $83,420,000	Ch. A352
94-101	06-28-1995	Refunding bond ordinance to authorize the appropriation of not to exceed $31,745,000	Ch. A352
94-102	10-12-1994	Salaries and compensation	
94-103	10-26-1994	Street renaming	NCM
94-104	11-09-1994	Salaries and compensation	NCM
94-105	12-14-1994	Journal Square Special Improvement District amendment	Ch. 69, Art. I
94-106	11-22-1994	Central Avenue Special Improvement District	Ch. 69, Art. II
94-107	11-22-1994	Sale of property	Ch. A352
94-108	11-22-1994	Street vacation	Ch. A352
94-109	11-22-1994	Tax exemption for affordable housing	Ch. A352
94-110	11-22-1994	Tax exemption for affordable housing	Ch. A352
94-111	11-22-1994	Transfer of property	Ch. A352
94-112	11-22-1994	Tax abatement	Ch. A352
94-113	11-22-1994	Vehicles and traffic amendment	Ch. 332
94-114	12-14-1994	Transfer of property	Ch. A352
94-115	12-14-1994	Vehicles and traffic amendment	Ch. 332
94-116	12-14-1994	Redevelopment plan amendment	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
94-117		Amending Chapter 29, special tax, Article II, parking tax	Defeated 12-28-1994 (See Ord. 94-142)
94-118	12-28-1994	Vehicles and traffic amendment	Ch. 332
94-119	12-28-1994	Transfer of property	Ch. A352
94-120	12-28-1994	Lease agreement	Ch. A352
94-121	12-28-1994	Contractors amendment	Ch. 134 (repealed by Ord. No. 96-022; see Ch. A352)
94-122	12-28-1994	Appropriation	Ch. A352
94-123	01-11-1995	Bond	Ch. A352
94-124	01-11-1995	Bond	Ch. A352
94-125	05-24-1995	Appropriation	Ch. A352
94-126	05-24-1995	Appropriation	Ch. A352
94-127	05-24-1995	Appropriation	Ch. A352
94-128	05-24-1995	Appropriation	Ch. A352
94-129	05-24-1995	Appropriation	Ch. A352
94-130	05-24-1995	Appropriation	Ch. A352
94-131	05-24-1995	Appropriation	Ch. A352
94-132	05-24-1995	Appropriation	Ch. A352
94-133	05-24-1995	Appropriation	Ch. A352
94-134	05-24-1995	Appropriation	Ch. A352
94-135	05-24-1995	Appropriation	Ch. A352
94-136		Amending Chapter 24, streets and sidewalks (Franchise required for pay telephones)	Defeated 02-28-1996 See Ord. 95-030
94-137	01-11-1995	Rent control amendment	Ch. 260
94-138	01-11-1995	Interlocal services agreement	NCM
94-139	01-11-1995	Lease agreement	Ch. A352
94-140	01-11-1995	Lease agreement	Ch. A352
94-141	01-11-1995	Alcoholic beverages amendment	Ch. 84
94-142	01-11-1995	Parking tax amendment	Ch.304, Art. I
95-001		Amending Schedule 10, Chapter 26, designating snow streets	Expired on Tabled Agenda 06-1997
95-002	02-22-1995	Zoning amendment	Ch. 345
95-003	02-22-1995	Lease extension	Ch. A352
95-004	02-22-1995	Vehicles and traffic amendment	Ch. 332
95-005	02-22-1995	Vehicles and traffic amendment	Ch. 332
95-006	02-22-1995	Vehicles and traffic amendment	Ch. 332
95-007		Authorizing the acceptance of $15,000,000 of surplus and available funds from the Jersey City Sewerage Authority on or before June 30,1995, and authorizing the execution of an agreement between the City and the Jersey City Sewerage Authority concerning the provisions of certain municipal services by the City to the authority	Defeated 02-22-1995 See Ord. 95-018
95-008	02-22-1995	Street vacation	Ch. A352
95-009	02-22-1995	Designation of park	NCM
95-010	03-08-1995	Tax exemption	Ch. A352
95-011	03-08-1995	Vehicles and traffic amendment	Ch. 332
95-012	03-12-1995	Vehicles and traffic amendment	Ch. 332
95-013	03-08-1995	Acquisition of property	Ch. A352
95-014		Amending Chapter 24, streets and sidewalks	Defeated 03-08-1995
95-015	03-08-1995	Lease agreement	Ch. A352
95-016	03-08-1995	Vehicles and traffic amendment	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
95-017	03-08-1995	Franchise agreement	Ch. A352
95-018	03-08-1995	Sewerage agreement	NCM
95-019	03-22-1995	Acquisition of property	Ch. A352
95-020	03-22-1995	Alarm systems and noise restrictions amendments	Ch. 83; Ch. 222, Art. I
95-021	04-12-1995	Vehicles and traffic amendment	Ch. 332
95-022	04-12-1995	Vehicles and traffic amendment	Ch. 332
95-023	04-12-1995	Lease agreement	Ch. A352
95-024	04-12-1995	Salaries and compensation	NCM
95-025	04-12-1995	Salaries and compensation	NCM
95-026	04-12-1995	Sewerage agreement	NCM
95-027	04-26-1995	Fees and charges amendment	Ch. 160
95-028	05-10-1995	Subdivision of land amendment	Ch. 299
95-029	04-26-1995	Personnel amendment	Ch. 53
95-030	04-26-1995	Placement of telephones amendment	Ch. 296, Art. IX
95-031	04-26-1995	Fees and charges amendment	Ch. 160
95-032	04-26-1995	Transfer of property	Ch. A352
95-033	04-26-1995	Vehicles and traffic amendment	Ch. 332
95-034	05-10-1995	Transfer of property	Ch. A352
95-035	05-10-1995	Tax exemption financial agreement	Ch. A352
95-036	05-10-1995	Acquisition of property	Rescinded by Ord. No. 96-017
95-037	05-10-1995	Transfer of property	Ch. A352
95-038	05-10-1995*	Vehicles and traffic amendment	Ch. 332 ‘REJECTED BY DOT
95-039	05-10-1995*	Vehicles and traffic amendment	Ch. 332 ‘REJECTED BY DOT
95-040	05-10-1995*	Vehicles and traffic amendment	Ch. 332 ‘REJECTED BY DOT
95-041	05-10-1995*	Vehicles and traffic amendment	Ch. 332 ‘REJECTED BY DOT
95-042	05-24-1995	Personnel amendment	Ch. 53
95-043	05-24-1995	Acceptance of gifts	NCM
95-044		Vehicles and traffic amendment (Automobile Towing)	Defeated 05-24-1995
95-045	05-24-1995	Property maintenance amendment	Ch. 160; Ch. 254
95-046	05-24-1995	Vehicles and traffic amendment	Ch. 332
95-047	05-24-1995	Vehicles and traffic amendment	Ch. 332
95-048	05-24-1995	Transfer of property amendment	Ch. A352
95-049	05-24-1995	Fees and charges amendment	Ch. 160
95-050	06-14-1995	Adoption of Code	Ch. 1
95-051	06-14-1995	Bond	Ch. A352
95-052	06-28-1995	Redevelopment plan amendment	Ch. A352
95-053		Payroll Tax	Defeated on Introduction 06-14-1995
95-054		Housing (Multiple Dwelling Rent Controls)	Deleted 06-14-1995
95-055	06-28-1995	Sewerage agreement amendment	NCM
95-056	06-28-1995	Assignment in part of tax exemption	Ch. A352
95-057	06-28-1995	Acceptance of gifts amendment	NCM
95-058	06-28-1995	Towers and towing amendment	Ch. 319
95-059	07-19-1995	Vehicles and traffic amendment	Ch. 332
95-060		Amending Businesses; Beauty Shops; Laundries and Dry Cleaners; Vending Machines; Health—Food Establishment Licenses	Withdrawn 06-28-1995
95-061	07-19-1995	Transfer of property	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
95-062	07-19-1995	Salaries and compensation	NCM
95-063	07-19-1995	Street vacation	Ch. A352
95-064	07-19-1995	Personnel amendment	Ch. 53
95-065	07-19-1995	Vehicles and traffic amendment	Ch. 332
95-066	08-16-1995	Parks and recreation areas amendment	Ch. 239
95-067	08-16-1995	Advertising materials	Ch. 81
95-068	08-16-1995	Amending various chapters and fees	Ch. 99, Art. II; Ch. 160; Ch. 175, Art. Ill; Ch. 207, Art, II; Ch. 329, Art. I
96-069	08-16-1995	Transfer of city-owned property	Ch. A352
95-070		Vehicles and traffic amendment (Traffic Control Devices)	Defeated 09-13-1995; See Ord. 95-082
95-071	09-13-1995	Acceptance of deed and conveyance	NCM
95-072	09-13-1995	Vehicles and traffic amendment	Ch. 332
95-073	09-13-1995	Vehicles and traffic amendment	Ch. 332
95-074	09-13-1995	Lease of parking spaces	Ch. A352
95-075	09-13-1995	Lease agreement	Ch. A352
95-076	09-13-1995	Fees and charges amendment	Ch. 160
95-077		Alcoholic Beverages; Plenary Retail Consumption and Distribution Licenses; Hours of Sale for Package Goods	Deleted 08-16-1995
95-078	09-13-1995	Tax abatement	Ch. A352
95-079	09-13-1995	Lease agreement	Ch. A352
95-080	09-13-1995	Lease agreement	Ch. A352
95-081	09-27-1995	Skating	Ch. 242, Art. VI
95-082	09-27-1995	Closing of streets to traffic	Ch. 296, Art. XI
95-083	09-27-1995	Vehicles and traffic amendment	Ch. 332
95-084	09-27-1995	Acquisition of property	Ch. A352
95-085			Withdrawn
95-086	09-27-1995	Conveyance of property	Ch. A352
95-087	09-27-1995	Naming a park	NCM
95-088	09-27-1995	Simulated drug paraphernalia	Ch. 285
95-089	09-27-1995	Salary range for classified position	NCM
95-090	09-27-1995	Salary range for classified position	NCM
95-091	10-11-1995	Streetcleaning prohibition amendment	Ch. 332
95-092	10-11-1995	Vehicles and traffic amendment	Ch. 332
95-093		Administration ofGovemment; Neighborhood Manager Duties	Withdrawn 09-27-1995; See Ord. 95-106
95-094	10-11-1995	Street vacation	Ch. A352
95-095	10-11-1995	Street vacation	Ch. A352
95-096	10-11-1995	Naming Terry Dehre Park	NCM
95-097	10-25-1995	Creating the position of Deputy Police Director	Ch. A351
95-098	10-25-1995	Conveyance of property	Ch. A352
95-099	10-25-1995	Conveyance of property	Rescinded by Ord. No. 96-017
95-100	10-25-1995	Acquisition of property	Ch. A352
95-101	10-25-1995	Vehicles and traffic amendment	Ch. 332
95-102	10-25-1995	Vehicles and traffic amendment	Ch. 332
95-103	10-25-1995	Vehicles and traffic amendment	Ch. 332
95-104		Traffic amendment; No Parking anytime; South side of Griffith St	Deleted 10-11-1995
95-105	10-25-1995	Vehicles and traffic amendment	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
95-106		Supplementing Chapter 3, Section 71, Division of Neighborhood Improvement, and amending Chapter 287, Article 1, Section 31, Persons Authorized to Enforce Provisions, to include Neighborhood Managers as Enforcement Agents	Defeated 02-28-1996 See Ord. 96-006
95-107	11-08-1995	Creating the position of Body and Fender Mechanic	Ch. A351
95-108	11-08-1995	Creating the Title of Principal Program Development Specialist Criminal Justice	Ch. A351
95-109		Establishing First Source and Affirmative Action Employment and Local Business Contracting Program	Defeated 02/28/1996; See Ord 96-022
95-110	11-21-1995	Transfer of property	Ch. A352
95-111	03-13-1996	Rent control amendment	Ch. 260
95-112			Withdrawn
95-113	12-13-1995	Vehicles and traffic amendment	Ch. 332
95-114	12-13-1995	Vehicles and traffic amendment	Ch. 332
95-115	12-13-1995	Vehicles and traffic amendment	Ch. 332
95-116	11-21-1995	Establishing minimum living wage for non- professional employees	Introduced
95-117	12-06-1995	Payroll tax	Ch. 304, Art. IV
95-118	01-24-1996	Vehicles and traffic amendment	Ch. 332
95-119	01-10-1996	Transfer of property	Ch. A352
95-120	01-10-1996	Lease of property	Ch. A352
95-121	01-10-1996	Lease of property	Ch. A352
95-122	01-24-1996	Vehicles and traffic amendment	Ch. 332
95-123	01-10-1996	Vehicles and traffic amendment	Ch. 332
95-124	02-14-1996	Vehicles and traffic amendment	Ch. 332
95-125	05-08-1996	Transfer of property	Ch. A352
96-001	04-10-1996	Fees and charges amendment	Ch. 160
96-002		Taxicabs and Limousines; Autocabs	Defeated 04-10-1996
96-003	04-10-1996	Taxicabs and limousines amendment	Ch. 307, Art. I
96-004	01-24-1996	Vehicles and traffic amendment	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
96-005		Amending Chapter 26, Traffic, authorizing street closings for motion picture filming and establishing conditions for such closings	Tabled 01-24-1996
96-006	01-24-1996	Administration of government amendment;	Ch. 3; Ch. 287,solid waste amendment
96-007	01-24-1996	Vehicles and traffic amendment	New legislation pending; see h. 332
96-008	02-14-1996	Tax abatement consolidation and transfer	Ch. A352
96-009	02-14-1996	Peddling, soliciting and canvassing	Ch. 245, Art. I amendment
96-010	02-14-1996	Tax abatement for St. John's Church	Ch. A352
96-011	02-14-1996	Tax exemption	Ch. A352
96-012	02-28-1996	Vehicles and traffic amendment	Ch. 332
96-013	02-28-1996	Vehicles and traffic amendment	Ch. 332
96-014	02-28-1996	Vehicles and traffic amendment	Ch. 332
96-015	03-13-1996	Bond ordinance	Ch. A352
96-016	03-13-1996	Bond ordinance	Ch. A352
96-017	02-28-1996	Rescinding Ord. Nos. 95-036 and 95-099 (sale of property)	Ch. A352
96-018	03-13-1996	Bond ordinance	Ch. A352
96-019	04-10-1996	Sale of property	Ch. A352
96-020	03-13-1996	Transfer of property	Ch. A352
96-021	03-13-1996	Urban renewal plan amendment	NCM
96-022	03-13-1996	First Source and Affirmative Action Employment and Local Business Contracting Program	Ch. A352
96-023	03-27-1996	Personnel amendment	Ch. 53
96-024	03-27-1996		Tabled
96-025	03-27-1996	Transfer of property	Ch. A352
96-026	03-27-1996	Tax exemption	Ch. A352
96-027	03-27-1996	Tax exemption	Ch. A352
96-028	04-10-1996	Naming the Lt. Anna Donato Riggi playground	NCM
96-029	04-10-1996	Vehicles and traffic amendment	Ch. 332
96-030	04-10-1996	Parks and recreation amendment	Ch. 160; Ch. 239
96-031	04-24-1996	Towers and towing amendment	Ch. 319
96-032	04-24-1996		Tabled
96-033	04-24-1996	Alarm systems and permit fees amendment	Ch. 83; Ch. 160
96-034	04-24-1996	Firearms and weapons amendment	Ch. 163, Art. II
96-035	04-24-1996	Acceptance of property	Ch. A352
96-036	04-24-1996	Lease agreement	Ch. A352
96-037	04-24-1996	Food-handling establishments	Ch. 175, Art. I amendment
96-038	05-08-1996	Redevelopment plan	Ch. A352
96-039	05-08-1996	Fees and charges amendment	Ch. 160
96-040	05-08-1996	Lease agreement	Ch. A352
96-041	04-24-1996		Withdrawn
96-042	05-08-1996	Vehicles and traffic amendment	Ch. 332
96-043	05-08-1996	Vehicles and traffic amendment	Ch. 332
96-044	05-08-1996	Fees and charges amendment	Ch. 160
96-045			Withdrawn 04-24-1996
96-046	05-22-1996	Naming a playground area	NCM
96-047	06-26-1996	Vehicles and traffic amendment	Ch. 332
96-048	05-22-1996	Central Avenue Special Improvement District	Ch. 69, Art. II amendment
96-049	05-22-1996	Redevelopment plan amendment	Ch. A352
96-050	05-22-1996	Creation of several titles	Ch. A351
96-051	05-08-1996		Withdrawn
96-052	05-22-1996	Loan authorized	NCM

Ordinance Number	Date of Adoption	Description	Disposition
96-053	05-22-1996	Bond amendment	Ch. A352
96-054	05-22-1996	Naming a soccer field	NCM
96-055	06-12-1996	Vehicles and traffic amendment	Ch. 332
96-056	6-12-1996	Vehicles and traffic amendment	Ch. 332
96-057	05-22-1996		Withdrawn
96-058	06-12-1996	Vehicles and traffic amendment	Ch. 332
96-059	06-12-1996	Tax abatement	Ch. A352
96-060	06-12-1996	Zoning amendment	Ch. 345
96-061	06-26-1996	Redevelopment plan amendment	Ch. A352
96-062	06-12-1996	Autocabs amendment	Ch. 307, Art. Ill
96-063	06-12-1996	Administration of government amendment	Ch. 3
96-064	06-26-1996	Vehicles and traffic amendment	Ch. 332
96-065	06-26-1996	Lease agreement	Ch. A352
96-066	06-26-1996	Acceptance of property; transfer	Ch. A352
96-067	07-24-1996	Transfer of property	Ch. A352
96-068	06-26-1996	Bond	Ch. A352
96-069	06-26-1996	Zoning amendment	Ch. 345
96-070	06-26-1996	Lease agreement	Ch. A352
96-071	06-26-1996	Renaming street	NCM
96-072	06-26-1996	Construction staging area	NCM (temporary measure)
96-073	06-12-1996		Defeated
96-074	07-24-1996	Lease agreement	Ch. A352
96-075	07-24-1996	Conveyance of property	Ch. A352
96-076	07-24-1996	Removal of encroachments	NCM
96-077	07-24-1996	Reconstitution of Salem Lafayette Urban Renewal Associates, L.R	NCM
96-078	08-14-1996	Overhead utility easement	Ch. A352
96-079	08-14-1996	Lease agreement Ch. A352	
96-080	08-14-1996	Tax exemption amendment	Ch. A352
96-081	08-14-1996	Tax exemption amendment	Ch. A352
96-082	08-14-1996	Vehicles and traffic amendment	Ch. 332
96-083	08-14-1996	Renaming street	NCM
96-084	09-11-1996	Curfew amendment	Ch. 137
96-085	09-11-1996	Vehicles and traffic amendment	Ch. 332
96-086	09-11-1996	Vehicles and traffic amendment	Ch. 332
96-087	09-11-1996	Vehicles and traffic amendment	Ch. 332
96-088	09-11-1996	Vehicles and traffic amendment	Ch. 332
96-089	09-11-1996	Acquisition of property	Ch. A352
96-090	09-25-1996	Vehicles and traffic amendment	Ch. 332
96-091	09-25-1996	Vehicles and traffic amendment	Ch. 332
96-092	09-25-1996	Franchise agreement	Ch. A352
96-093	09-25-1996	Transfer of property	Ch. A352
96-094	09-25-1996	Autocabs amendment	Ch. 307, Art. Ill
96-095	10-09-1996	Handbills and signs amendment	Ch. 81, Art. 1
96-096	09-25-1996	Transfer of property	Ch. A352
96-097	09-25-1996		Withdrawn
96-098	10-09-1996	Bond	Ch. A352
96-099	10-09-1996		Defeated
96-100	09-25-1996		Withdrawn
96-101	10-23-1996	Transfer of property	Ch. A352
96-102	10-23-1996	Tax abatement	Ch. A352
96-103	10-23-1996	Tax abatement	Ch. A352
96-104	10-23-1996	Tax abatement	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
96-105	10-23-1996	Tax abatement	Ch. A352
96-106	10-23-1996	Tax abatement	Ch. A352
96-107	10-23-1996	Tax abatement	Ch. A352
96-108	10-23-1996	Tax abatement	Ch. A352
96-109	10-23-1996		Deleted
96-110	11-13-1996	Lease agreement	Ch. A352
96-111	11-13-1996	Bond	Ch. A352
96-112	11-26-1996	Creation of several titles	Ch. A351
96-113	11-26-1996	Vehicles and traffic amendment	Ch. 332
96-114	11-26-1996	Vehicles and traffic amendment	Ch. 332
96-115	11-26-1996	Vehicles and traffic amendment	Ch. 332
96-116	11-26-1996	Bifurcation and assignment of tax abatement	Ch. A352
96-117	11-26-1996	Water amendment	Ch. 337
96-118	11-26-1996	Municipal Court amendment; salaries amendment	Chs. 23 and A351
96-119	11-26-1996	Tax exemption amendment	Ch. A352
96-120	12-11-1996	Lease agreement	Ch. A352
96-121	12-30-1996	Transfer of property	Repealed by Ord. No. 98-017
96-122	12-30-1996	Transfer of property	Repealed by Ord. No. 98-016
96-123	12-30-1996	Lease agreement	Ch. A352
96-124	23-30-1996	Vehicles and traffic amendment	Ch. 332
97-001	01-22-1997	Vehicles and traffic amendment	Ch. 332
97-002	01-06-1997		Withdrawn
97-003	01-22-1996	Lease agreement	Ch. A352
97-004	02-11-1997	Transfer of property	Ch. A352
97-005	06-11-1997	Sale of property; lease of property	Ch. A352
97-006	6-11-1997	Appropriation	Ch. A352
97-007	02-26-1997	Shopping carts amendment	Ch. 284
97-008	02-26-1997	Vehicles and traffic amendment	Ch. 332
97-009	02-26-1997	Vehicles and traffic amendment	Ch. 332
97-010	04-09-1997	Vehicles and traffic amendment	Ch. 332
97-011	04-09-1997	Fees amendment	Ch. 160
97-012	02-26-1997	Transfer of property	Ch. A352
97-013	03-12-1997	Redevelopment plan amendment	Ch. A352
97-014	03-12-1997		Defeated
97-015	03-12-1997	Tax abatement	Ch. A352
97-016	03-12-1997	Tax abatement	Ch. A352
97-017		Approving five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:32-2, et seq. for property known as Block 1850, Lot 3.A and by 77 Romaine Avenue and 76 Van Wagenen Avenue	Withdrawn 02-26-1997
97-018	03-12-1997	Acquisition of property	Ch. A352
97-019	03-12-1997	Tax abatement urban renewal amendment	Ch. A352
97-020	03-12-1997	Lease agreement	Ch. A352
97-021	04-09-1997	Historic Downtown Special Improvement District	Ch. 69, Art. Ill
97-022	04-09-1997	McGinley Square Special Improvement District	Ch. 69, Art. IV
97-023	03-26-1997	Creating title of Public Safety Telecommunicator	Ch. A351
97-024	03-26-1997	Vehicles and traffic amendment	Ch. 332
97-025	03-26-1997	Vehicles and traffic amendment	Ch. 332
97-026	03-26-1997	Vehicles and traffic amendment	Ch. 332
97-027	04-09-1997	Lease agreement	Ch. A352
97-028	04-09-1997	Bond	Ch. A352
97-029	04-09-1997	Tax exemption	Ch. A352
97-030	04-16-1997	Tax abatement assignment and modification	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
97-031	04-23-1997	Vehicles and traffic amendment	Ch. 332
97-032	04-23-1997	Creating titles of Director of Economic and Industrial Development and Assistant Director of Economic and Industrial Development	Ch. A351
97-033	04-23-1997	Vehicles and traffic amendment	Ch. 332
97-034	04-23-1997	Vehicles and traffic amendment	Ch. 332
97-035	04-23-1997	Tax exemption	Ch. A352
97-036	04-23-1997	Lease agreement	Ch. A352
97-037	05-21-1997	Cancellation of taxes for Metropolitan A.M.E. Zion Church	NCM
97-038	06-11-1997	Vehicles and traffic amendment	Ch. 332
97-039	06-11-1997	Bond	Ch. A352
97-040	06-11-1997	Appropriation	Ch. A352
97-041	06-25-1997	Solid waste storage, collection and disposal amendment	Ch. 287, Art. I
97-042	06-25-1997	Transfer of land	Ch. A352
97-043	06-25-1997	Cancellation, reduction or reappropriation of unused or unexpended funds	Ch. A352
97-044	06-25-1997	Redevelopment plan amendment	Ch. A352
97-045	06-25-1997	Alcoholic beverages amendment	Ch. 84
97-046	06-25-1997	Tax exemption	Ch. A352
97-047	06-25-1997	Acquisition of property; lease agreement	Ch. A352
97-048	08-13-1997	Water amendment	Ch. 337
97-049	08-13-1997	Naming of Vernater Watson Park	NCM
97-050	08-13-1997	Sale of property	Ch. A352
97-051	08-13-1997	Franchise agreement	Ch. A352
97-052	08-31-1997	Administration of government amendment; Parks amendment	Chs. 3 and 239
97-053	08-31-1997	Salary amendment	Ch. A351
97-054	08-13-1997	Redevelopment plan amendment	Ch. A352
97-055	08-13-1997	Vehicles and traffic amendment	Ch. 332
97-056	09-10-1997	Redevelopment plan amendment PAGE NO: DL-25	Ch. A352
97-057	09-10-1997	Redevelopment plan amendment	Ch. A352
97-058	09-10-1997	Lease agreement	Ch. A352
97-059	09-10-1997	Tax exemption	Ch. A352
97-060	09-24-1997	Administration of government amendment	Ch. 3
97-061	09-24-1997	Vehicles and traffic amendment	Ch. 332
97-062	09-24-1997	Lease agreement	Ch. A352
97-063	09-24-1997	Transfer of property	Ch. A352
97-064	09-24-1997	Approval of loan	NCM
97-065	09-10-1997		Withdrawn
97-066	09-24-1997	Cancellation of taxes for Truth Evangelistic Temple	NCM
97-067	09-24-1997	Street vacations	Ch. A352
97-068	09-24-1997	Salary amendment	Ch. A351
97-069	10-08-1997	Lease agreement	Ch. A352
97-070	10-08-1997	Tax exemption	Ch. A352
97-071	10-08-1997	Transfer of property	Ch. A352
97-072	10-08-1997	Tax exemption	Ch. A352
97-073	10-08-1997	Tax exemption	Ch. A352
97-074	10-08-1997	Tax exemption	Ch. A352
97-075	10-08-1997	Vehicles and traffic amendment	Ch. 332
97-076	10-22-1997	Cancellation of taxes on certain properties	NCM
97-077	10-22-1997	Vehicles and traffic amendment	Ch. 332
97-078	10-22-1997	Vehicles and traffic amendment	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
97-079	11-12-1997	Vehicles and traffic amendment	Ch. 332
97-080	11-12-1997	Designating portion of Oxford Street to also be known as James N. Williams Plaza	NCM
97-081	11-25-1997	Vehicles and traffic amendment	Ch. 332
97-082	11-25-1997	Vehicles and traffic amendment	Ch. 332
97-083	11-25-1997	Vehicles and traffic amendment	Ch. 332
97-084	11-25-1997	Renaming Wilkinson Avenue Park as Dr. Edith Bland Phillips Park	NCM
97-085	12-10-1997	Conveyance of property to Hudson County	Ch. A352
97-086	12-10-1997	Jersey City Municipal Utilities Authority	Ch. 12, Art. IV
97-087	12-23-1997	Fees and charges amendment	Ch. 160
97-088	12-23-1997	Pool rooms amendment	Ch. 248
97-089	12-23-1997	Tax exemption	Ch. A352
97-090	12-23-1997	Administration of government amendment	Ch. 3
97-091	12-23-1997	Redevelopment plan amendment	Ch. A352
97-092	12-23-1997	Redevelopment plan amendment	Ch. A352
97-093		Bond Ordinance	Defeated 04-08-1998
97-094	02-11-1998	Bond	Ch. A352
97-095	04-22-1998	Adopting amendments to the Jersey Avenue Redevelopment Plan	Ch. A352
97-096	01-14-1998	Administration of government amendment	Ch. 3
97-097	01-14-1998	Property maintenance amendment	Ch. 254
97-098	01-14-1998	Transfer of property	Ch. A352
97-099	01-14-1998	Central Avenue Special Improvement District amendment	Ch. 69, Art. II
97-100	01-14-1998	Lease agreement	Ch. A352
97-101	01-14-1998	Vehicles and traffic amendment	Ch. 332
98-001	01-28-1998	Vehicles and traffic amendment	Ch. 332
98-002	01-28-1998	Tax exemption	Ch. A352
98-003	02-11-1998	Bond	Ch. A352
98-004	02-11-1998	License expiration dates amendment	Chs. 87, Art 1; 93; 175, Art. I; 202; 215; 248; 275; 290; 296, Art. IX; 307, Art, 1; 310; 313; and 319
98-005	01-28-1998		Defeated
98-006	03-11-1998	Bond	Ch. A352
98-007	02-25-1998	Lease agreement	Ch. A352
98-008	02-25-1998	Vehicles and traffic amendment	Ch. 332
98-009	02-25-1998	Vehicles and traffic amendment	Ch. 332
98-010	02-25-1998	Vehicles and traffic amendment	Ch. 332
98-011	02-25-1998	Controlled dangerous substances	Ch. 242, Art. VII
98-012	02-25-1998	Franchise agreement	Ch. A352
98-013	02-25-1998	Vehicles and traffic amendment	Ch. 332
98-014	03-11-1998	Vehicles and traffic amendment	Ch. 332
98-015	03-11-1998	Transfer of property	Ch. A352
98-016	03-11-1998	Cancellation of transfer of property	NCM
98-017	03-11-1998	Cancellation of transfer of property	NCM
98-018	03-11-1998	Key lock box system	Ch. 203
98-019	03-25-1998	Redevelopment plan amendment	Ch. A352
98-020	03-11-1998		Withdrawn
98-021	03-25-1998	Redevelopment plan amendment	Ch. A352
98-022	03-25-1998	Termination of lease agreement	NCM
98-023	03-25-1998	Vehicles and traffic amendment	Ch. 332
98-024	03-25-1998	Vehicles and traffic amendment	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
98-025	03-25-1998	Lease agreement	Ch. A352
98-026	03-25-1998	Lease agreement	Ch. A352
98-027	03-25-1998	Tax exemption	Ch. A352
98-028	03-25-1998	Tax exemption	Ch. A352
98-029	03-25-1998		Defeated
98-030	03-25-1998	Vehicles and traffic amendment	Ch. 332
98-031	04-08-1998	Appropriation	Ch. A352
98-032	04-08-1998	Tax exemption	Ch. A352
98-033	04-08-1998	Tax exemption	Ch. A352
98-034	04-08-1998	Easement	Ch. A352
98-035	04-08-1998	Street renaming	NCM
98-036	04-08-1998	Easement	Ch. A352
98-037	04-22-1998	Zoning amendment	Ch. 345
98-038	04-22-1998	Tax exemption	Ch. A352
98-039	08-12-1998	Vehicles and traffic amendment	Ch. 332
98-040			Defeated 05-13-1998
98-041	05-13-1998	Acceptance of a gift of real property	NCM
98-042	05-13-1998	Tax exemption	Ch. A352
98-043	05-13-1998	Vehicles and traffic amendment	Ch. 332
98-044	05-13-1998	Vehicles and traffic amendment	Ch. 332
98-045	05-13-1998	Acquisition	Ch. A352
98-046	05-13-1998	Redevelopment plan amendment	Ch. A352
98-047	05-13-1998	Bond	Ch. A352
98-048	05-13-1998	Assumption of amended financial agreement	Ch. A352
98-049	05-13-1998	Bond	Ch. A352
98-050			Defeated 08-12-1998
98-051	05-13-1998	Municipal Court amendment	Ch. 23
98-052	05-13-1998	Vehicles and traffic amendment	Ch. 332
98-053	05-27-1998	Tax exemption	Ch. A352
98-054	05-27-1998	Vehicles and traffic amendment	Ch. 332
98-055	05-27-1998	Vehicles and traffic amendment	Ch. 332
98-056			Withdrawn 05-13-1998
98-057			Withdrawn 05-13-1998
98-058			Withdrawn 05-13-1998
98-059			Withdrawn 05-13-1998
98-060	05-27-1998	Multiple dwelling rent controls amendment	Ch. 260
98-061	05-27-1998	Vehicles and traffic amendment	Ch. 332
98-062	05-27-1998	Vehicles and traffic amendment	Ch. 332
98-063	05-27-1998	Vehicles and traffic amendment	Ch. 332
98-064	05-27-1998	Vehicles and traffic amendment	Ch. 332
98-065	05-27-1998	Bond	Ch. A352
98-066	05-27-1998	Bond	Ch. A352
98-067	05-27-1998	Taxicabs and limousines amendment	Ch. 307, Art. Ill
98-068	5-27-1998	Tax exemption	Ch. A352
98-069			Withdrawn 05-13-1998
98-070	05-27-1998	Zoning amendment	Ch. 345
98-071	06-10-1998	Vehicles and traffic amendment	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
98-072	06-10-1998	Vehicles and traffic amendment	Ch. 332
98-073	06-10-1998	Vehicles and traffic amendment	Ch. 332
98-074	06-10-1998	Streets and sidewalks amendment	Ch. 296, Art. V
98-075			Withdrawn 5-27-1998
98-076	06-24-1998	Redevelopment plan amendment	Ch. A352
98-077	06-10-1998	Redevelopment plan amendment	Ch. A352
98-078	06-10-1998	Vehicles and traffic amendment	Ch. 332
98-079	06-24-1998	Fees and charges amendment	Ch. 160
98-080	06-24-1998	Sidewalk cafes	Ch. 296, Art. XII
98-081	06-24-1998	Entertainment and dance licenses	Chs. 142 and 175 (repealers only) and Ch. 157
98-082	06-24-1998	Administration of government amendment	Ch. 3
98-083	07-22-1998	Municipal Court amendment	Ch. 23
98-084	07-22-1998	Street renaming	NCM
98-085	07-22-1998	Street renaming	NCM
98-086	07-22-1998	Redevelopment plan amendment	Ch. A352
98-087	07-22-1998	Tax exemption	Ch. A352
98-088	07-22-1998	Tax exemption	Ch. A352
98-089	07-22-1998	Tax exemption	Ch. A352
98-090	07-22-1998	Vehicles and traffic amendment	Ch. 332
98-091	08-12-1998	Tax exemption	Ch. A352
98-092	08-12-1998	Tax exemption	Ch. A352
98-093	08-12-1998	Tax exemption	Ch. A352
98-094	08-12-1998	Tax exemption	Ch. A352
98-095	08-12-1998	Tax exemption	Ch. A352
98-096			Withdrawn 8-12-1998
98-097	08-12-1998	Tax exemption	Ch. A352
98-098	08-12-1998	Tax exemption	Ch. A352
98-099	08-12-1998	Tax exemption	Ch. A352
98-100	08-12-1998	Tax exemption	Ch. A352
98-101	08-12-1998	Tax exemption	Ch. A352
98-102	08-12-1998	Tax exemption	Ch. A352
98-103	08-12-1998	Tax exemption	Ch. A352
98-104			Tabled 08-12-1998
98-105	09-09-1998	Peace and good order amendment	242-9.1, 242-9.2
98-106	08-12-1998	Acceptance of a gift of real property	NCM
98-107	08-12-1998	Vehicles and traffic amendment	Ch. 332
98-108	08-12-1998	Vehicles and traffic amendment	Ch. 332
98-109	08-12-1998	Vehicles and traffic amendment	Ch. 332
98-110		Amending Schedule XXV, Parking for the Disabled, Chapter 332, designating and deleting reserved parking spaces (see Ord. 98-090 adopted 07-22-1998)	Withdrawn 07-20-1998
98-111		Authorizing an amendment to and restatement of the operating and license agreement between Jersey City and the Jersey City Incinerator Authority	Withdrawn 07-22-1998
98-112		Adopting an amendment to the Zoning Ordinance to create a Restaurant Overlay Zone (ROZ)	Defeated 10-13-1999
98-113		Amending Chapter 332, Article X, Impounding and Booting Vehicles, and Chapter 160, Fees and Charges, increasing fees for impoundment of motor vehicles; authorizing City to use services of private contractors	Withdrawn 07-22-1998

Ordinance Number	Date of Adoption	Description	Disposition
98-114		Supplementing Chapter 84, Article 1, Plenary Retail Consumption and Distribution Licenses	Defeated 10-13-1999
98-115	08-12-1998	Tax exemption	Ch. A352
98-116	08-12-1998	Rent control amendment	Ch. 260
98-117			Defeated 07-22-1998
98-118	09-09-1998	Solid waste amendment	Ch. 287, Art. I
98-119	09-09-1998	Vehicles and traffic amendment	Ch. 332
98-120	09-09-1998	Salary amendment	Ch. A351
98-121	09-09-1998	Easement	Ch. A352
98-122	09-09-1998	Circuses, carnivals and public assemblages amendment; streets and sidewalks amendment	Ch. 122 and Ch. 296, Art. XI
98-123	09-09-1998	Tax exemption	Ch. A352
98-124	09-23-1998	Transfer of property	Ch. A352
98-125	09-23-1998	Fees and charges amendment; streets and sidewalks amendment	Ch. 160 and Ch. 296, Art. V
98-126	09-23-1998	Vehicles and traffic amendment	Ch. 332
98-127	09-23-1998	Cancellation of property transfer	NCM
98-128	09-23-1998	Transfer of property	Ch. A352
98-129	09-23-1998	Vehicles and traffic amendment	Ch. 332
98-130	10-14-1998	Vehicles and traffic amendment	Ch. 332
98-131			Withdrawn 10-14-1998
98-132	10-14-1998	Vehicles and traffic amendment	Ch. 332
98-133	10-14-1998	Vehicles and traffic amendment	Ch. 332
98-134	10-14-1998	Vehicles and traffic amendment	Ch. 332
98-135	10-14-1998	Transfer of property	Ch. A352
98-136			Tabled 10-14-1998
98-137	10-14-1998	Redevelopment plan amendment	Ch. A352
98-138	10-28-1998	Lease agreement	Ch. A352
98-139	10-28-1998	Lease agreement	Ch. A352
98-140	10-28-1998	Tax exemption	Ch. A352
98-141	10-28-1998	Vehicles and traffic amendment	Ch. 332
98-142	10-28-1998	Vehicles and traffic amendment	Ch. 332
98-143	10-28-1998	Vehicles and traffic amendment	Ch. 332
98-144	10-28-1998	Vehicles and traffic amendment	Ch. 332
98-145	10-28-1998	Vehicles and traffic amendment	Ch. 332
98-146	10-28-1998	Salary amendment	Ch. A351
98-147	10-28-1998	Vehicles and traffic amendment	Ch. 332
98-148	11-10-1998	Easement	Ch. A352
98-149	11-10-1998	Easement	Ch. A352
98-150	10-28-1998	Cancellation of taxes for certain property	NCM
98-151	11-10-1998	Vehicles and traffic amendment	Ch. 332
98-152	11-10-1998	Transfer of property	Ch. A352
98-153	11-10-1998	Vehicles and traffic amendment	Ch. 332
98-154	12-09-1998	Tax exemption	Ch. A352
98-155	11-24-1998	Transfer of property	Ch. A352
98-156	11-24-1998	Street vacation	Ch. A352
98-157	12-09-1998	Bond	Ch. A352
98-158	12-09-1998	Bond	Ch. A352
98-159	12-09-1998	Vehicles and traffic amendment	Ch. 332
98-160	12-09-1998	Vehicles and traffic amendment	Ch. 332
98-161	12-09-1998	Tax exemption	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
98-162	12-09-1998	Solid waste amendment	Ch. 287, Art. I
98-163	12-09-1998	Fees and charges amendment	Ch. 160
98-164	01-13-1998	Lease agreement	Ch. A352
98-165	01-13-1999	Easement	Ch. A352
98-166	01-13-1999	Redevelopment plan amendment	Ch. A352
98-167	01-13-1999	Redevelopment plan amendment	Ch. A352
98-168	01-13-1999	Transfer of property	Ch. A352
98-169	01-13-1999	Transfer of property	Ch. A352
98-170	01-13-1999	Transfer of property	Ch. A352
98-171	01-13-1999	Easement	Ch. A352
98-172	01-13-1999	Acquisition	Repealed by Ord. No. 00-055
98-173	01-13-1999	Vehicles and traffic amendment	Ch. 332
98-174	01-13-1999	Lease agreement	Ch. A352
99-001	01-27-1999	Acceptance of property	Ch. A352
99-002	01-27-1999	Franchising portion of street	Ch. A352
99-003	01-27-1999	Redevelopment plan	Ch. A352
99-004	01-27-1999	Zoning amendment	Ch. 345
99-005	01-27-1999	Redevelopment plan amendment	Ch. A352
99-006	01-27-1999	Create title of Director of Community Development	Ch. A351
99-007			Withdrawn 01-13-1999
99-008	02-10-1999	Vehicles and traffic amendment	Ch. 332
99-009	02-10-1999	Secondhand dealers amendment	Ch. 275
99-010			Withdrawn 02-10-1999
99-011	02-10-1999	Easement	Ch. A352
99-012	02-10-1999	Vehicles and traffic amendment	Ch. 332
99-013	02-10-1999	Lease agreement	Ch. A352
99-014	02-10-1999	Park naming	NCM
99-015	04-28-1999	Acquisition of property	Ch. A352
99-016	02-10-1999	Vehicles and traffic amendment	Ch. 332
99-017	02-10-1999	Redevelopment plan amendment	Ch. A352
99-018	02-10-1999	Dedicating portion of street	NCM
99-019	02-10-1999	Acquisition of property	Ch. A352
99-020	02-24-1999	Create title of Chief Public Safety Telecommunicator	Ch. A351
99-021	02-24-1999	Vehicles and traffic amendment	Ch. 332
99-022	02-24-1999	Tax exemption	Ch. A352
99-023	02-24-1999	Handbills and signs amendment	Ch. 81, Art. 1
99-024	02-24-1999	Create title of Supervising Fire and Ambulance Dispatcher	Ch. A351
99-025	02-24-1999	Easement	Ch. A352
99-026	02-24-1999	Vehicles and traffic amendment	Ch. 332
99-027	02-24-1999	Dedicating portion of street	NCM
99-028	02-24-1999	Vehicles and traffic amendment	Ch. 332
99-029	03-10-1999	Vehicles and traffic amendment	Ch. 332
99-030	03-10-1999	Vehicles and traffic amendment	Ch. 332
99-031	03-10-1999	Lease agreement	Ch. A352
99-032	03-10-1999	Tax exemption	Ch. A352
99-033	03-10-1999	Vehicles and traffic amendment	Ch. 332
99-034	03-10-1999	Vehicles and traffic amendment	Ch. 332
99-035	03-24-1999	Redevelopment plan	Ch. A352
99-036	01-12-2000	Transfer of property	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
99-037	03-24-1999	Acquisition of property	Ch. A352
99-038	03-24-1999	Acquisition of property	Ch. A352
99-039	03-24-1999	Acquisition of property	Ch. A352
99-040	03-24-1999	Acquisition of property	Ch. A352
99-041	04-14-1999	Vehicles and traffic amendment	Ch. 332
99-042	04-14-1999	Vehicles and traffic amendment	Ch. 332
99-043	04-14-1999	Tax exemption	Ch. A352
99-044	04-14-1999	Tax exemption	Ch. A352
99-045	04-14-1999	Acceptance of public access amendment	Ch. A352
99-046	04-14-1999	Street vacation	Ch. A352
99-047	04-14-1999	Fees and charges	Ch. 160
99-048	04-14-1999	Tax exemption	Ch. A352
99-049	04-14-1999	Circuses, carnivals and public assemblages amendment	Ch. 122
99-050	04-28-1999	Transfer of property	Ch. A352
99-051	04-28-1999	Transfer of property	Ch. A352
99-052	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-053	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-054	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-055	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-056	04-28-1999	Parks amendment	Ch. 239
99-057	04-28-1999	Franchise agreement	Ch. A352
99-058	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-059	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-060	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-061	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-062	04-28-1999	Tax exemption	Ch. A352
99-063	04-28-1999	Tax exemption	Ch. A352
99-064	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-065	04-28-1999	Vehicles and traffic amendment	Ch. 332
99-066	05-12-1999	Bond	Ch. A352
99-067	05-12-1999	Vehicles and traffic amendment	Ch. 332
99-068	05-12-1999	Vehicles and traffic amendment	Ch. 332
99-069	05-12-1999	Sale of property	Ch. A352
99-70	05-26-1999	Vehicles and traffic amendment	Ch. 332
99-71	05-26-1999	Vehicles and traffic amendment	Ch. 332
99-72	05-26-1999	Vehicles and traffic amendment	Ch. 332
99-73	05-26-1999	Vehicles and traffic amendment	Ch. 332
99-74	05-26-1999	Vehicles and traffic amendment	Ch. 332
99-75	05-26-1999	Vehicles and traffic amendment	Ch. 332
99-076	06-09-1999	Sale of property	Ch. A352
99-077	06-09-1999	Lease agreement	Ch. A352
99-078	06-21-1999	Medical Center agreement amendment	NCM
99-079	06-23-1999	Redevelopment plan amendment	Ch. A352
99-080	06-23-1999	Redevelopment plan amendment	Ch. A352
99-081	06-23-1999	Tax exemption	Ch. A352
99-082	06-23-1999	Tax exemption	Ch. A352
99-083	06-23-1999	Tax exemption	Ch. A352
99-084	06-23-1999	Tax exemption	Ch. A352
99-085	06-23-1999	Vehicles and traffic amendment	Ch. 332
99-086	06-23-1999	Tax exemption	Ch. A352
99-087	06-23-1999	Vehicles and traffic amendment	Ch. 332
99-088	06-23-1999	Vehicles and traffic amendment	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
99-089	07-21-1999	Lease agreement	Ch. A352
99-090	07-21-1999	Redevelopment plan	Ch. A352
99-091	02-09-2000	Vehicles and traffic amendment	Ch. 332
99-092	07-21-1999	Redevelopment plan amendment	Ch. A352
99-093	07-21-1999	Redevelopment plan amendment	Ch. A352
99-094	08-18-1999	Transfer of property	Ch. A352
99-095	08-18-1999	Tax exemption	Ch. A352
99-096	08-18-1999	Redevelopment plan	Ch. A352
99-097	08-18-1999	Bond	Ch. A352
99-098		Bond Ordinance	Tabled 08-18-1999
99-099	08-18-1999	Lease agreement	Ch. A352
99-100	08-18-1999	Dedicating portion of street	NCM
99-101	08-18-1999	Vehicles and traffic amendment	New legislation pending; see Ch. 322
99-102	08-18-1999	Transfer of property	Ch. A352
99-103	08-18-1999	Lease agreement	Ch. A352
99-104	08-18-1999	Food establishments amendment	Ch. 175, Art. III
99-105	08-18-1999	Food establishments amendment	Ch. 175. Art. III
99-106	08-18-1999	Redevelopment plan	Ch. A352
99-107	08-18-1999	Street vacations	Ch. A352
99-108	09-08-1999	Zoning amendment	Ch. 345
99-109	09-08-1999	Redevelopment plan amendment	Ch. A352
99-110	09-08-1999	Placement of telephones amendment	Ch. 296, Art. IX
99-111	09-08-1999	Vehicles and traffic amendment	Ch. 332
99-112	09-08-1999	Vehicles and traffic amendment	Ch. 332
99-113	09-08-1999	Conveyance of property	Ch. A352
99-114	09-08-1999	Conveyance of property	Ch. A352
99-115	09-08-1999	Acquisition of property	Ch. A352
99-116	09-08-1999	Tax exemption	Ch. A352
99-117	09-08-1999	Tax exemption	Ch. A352
99-118	09-08-1999	Tax exemption	Ch. A352
99-119	09-08-1999	Tax exemption	Ch. A352
99-120	09-08-1999	Tax exemption	Ch. A352
99-121	09-08-1999	Alcoholic beverages amendment	Ch. 84
99-122	09-08-1999	Tax exemption	Ch. A352
99-123	09-08-1999	Tax exemption	Ch. A352
99-124	09-08-1999	Tax exemption	Ch. A352
99-125	09-08-1999	Tax exemption	Ch. A352
99-126	09-08-1999	Tax exemption	Ch. A352
99-127	09-08-1999	Tax exemption	Ch. A352
99-128	09-08-1999	Tax exemption	Ch. A352
99-129	09-08-1999	Tax exemption	Ch. A352
99-130	09-08-1999	Tax exemption	Ch. A352
99-131	09-08-1999	Tax exemption	Ch. A352
99-132	09-08-1999	Tax exemption	Ch. A352
99-133	09-08-1999	Tax exemption	Ch. A352
99-134	09-08-1999	Tax exemption	Ch. A352
99-135	09-08-1999	Tax exemption	Ch. A352
99-136	09-08-1999	Tax exemption	Ch. A352
99-137	09-08-1999	Redevelopment plan	Ch. A352
99-138	09-08-1999	Five-year tax exemption	Ch. 304, Art. Ill

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99-139			Defeated 09-08-1999
99-140	09-08-1999	Tax exemption	Ch. A352
99-141	09-08-1999	Vehicles and traffic amendment	Ch. 332
99-142	09-08-1999	Lease agreement	Repealed by Ord. No. 00-062
99-143	11-23-1999	Administration of government amendment; fees and charges amendment	Ch. 3 and 160
99-144	09-22-1999	Vehicles and traffic amendment	Ch. 332
99-145	09-22-1999	Vehicles and traffic amendment	Ch. 332
99-146	09-22-1999	Conveyance of property	Ch. A352
99-147	09-22-1999	Cancellation of taxes for certain property	NCM
99-148	09-22-1999	Bridge renaming	NCM
99-149	09-22-1999	Dedicating portion of street	NCM
99-150			Tabled 10-13-1999
99-151	10-13-1999	Fees and charges amendment	Ch. 160
99-152	10-13-1999	Tax exemption	Ch. A352
99-153	11-10-1999	Redevelopment plan amendment	Ch. A352
99-154	10-27-1999	Dedication of property	Ch. A352
99-155	10-27-1999	Tax exemption	Ch. A352
99-156	10-27-1999	Tax exemption	Ch. A352
99-157	10-27-1999	Tax exemption	Ch. A352
99-158			Defeated 10-27-1999
99-159	10-27-1999	Tax exemption	Ch. A352
99-160	10-27-1999	Redevelopment plan amendment	Ch. A352
99-161	10-27-1999	Vehicles and traffic amendment	Ch. 332
99-162			Defeated 10-27-1999
99-163	11-10-1999	Lease agreement	Ch. A352
99-164	11-10-1999	Cancellation of taxes for certain property	NCM
99-165	11-10-1999	Cancellation of taxes for certain property	NCM
99-166	11-10-1999	Hotel occupancy tax	Ch. 304, Art. V
99-167	11-10-1999	Redevelopment plan	Ch. A352
99-168	11-23-1999	Easement	Ch. A352
99-169	11-23-1999	Towers and towing amendment	Ch. 319
99-170	11-23-1999	Health and sanitation amendment	Ch. 182
99-171	12-15-1999	Bond	Ch. A352
99-172	11-23-1999	Acceptance of property	NCM
99-173	11-23-1999	Vehicles and traffic amendment	Ch. 332
99-174	11-23-1999	Vehicles and traffic amendment	Ch. 332
99-175	11-23-1999	Vehicles and traffic amendment	Ch. 332
99-176	12-15-1999	Lease agreement	Ch. A352
99-177	12-15-1999	Transfer of property	Ch. A352
99-178	12-15-1999	Lease agreement	Ch. A352
99-179	12-15-1999	Parking Authority amendment; vehicles and traffic amendment	Ch. 12, Art. HI; Ch. 332
99-180	12-15-1999	Lease agreement	Ch. A352
99-181	12-15-1999	Fees and charges amendment	Ch. 160
99-182	12-15-1999	Vehicles and traffic amendment	Ch. 332
99-183			Withdrawn 11-10-1999
99-184	01-12-2000	Urban renewal plan amendment	Ch. A352
99-185	01-12-2000	Vehicles and traffic amendment	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
99-186	01-12-2000	Zoning amendment	Ch. 345
99-187	01-12-2000	Redevelopment plan amendment	Ch. A352
99-188	01-12-2000	Transfer of property	Ch. A352
99-189	01-12-2000	Redevelopment plan amendment	Ch. A352
99-190	01-12-2000	Tax exemption	Ch. A352
99-191	01-12-2000	Lease agreement	Ch. A352
99-192	01-12-2000	Vehicles and traffic amendment	Ch. 332
99-193	01-12-2000	Vehicles and traffic amendment	Ch. 332
00-001	01-26-2000	Franchise agreement	Ch. A352
00-002	01-26-2000	Franchise agreement	Ch. A352
00-003	01-26-2000	Naming of playground	NCM
00-004	01-26-2000	Transfer of property amendment	Ch. A352
00-005	04-26-2000	Zoning amendment	Ch. 345
00-006	01-26-2000	Vehicles and traffic amendment	Ch. 332
00-007	02-09-2000	Redevelopment plan	Ch. A352
00-008	02-23-2000	Snow and ice removal amendment	Ch. 296, Art. I
00-009	02-23-2000	Acquisition of land	Ch. A352
00-010	02-23-2000	Vehicles and traffic amendment	Ch. 332
00-011	02-23-2000	Fees and charges amendment	Ch. 160
00-012	03-08-2000	Redevelopment plan amendment	Ch. A352
00-013	03-08-2000	Fees and charges amendment	Ch. 160
00-014	05-10-2000	Redevelopment plan amendment	Ch. A352
00-015	03-22-2000	Renaming a street	NCM
00-016	3-22-2000	Creation of Deputy Fire Director	Ch. A351
00-017	03-22-2000	Vehicles and traffic amendment	Ch. 332
00-018	03-22-2000	Acceptance of dedication of property	Ch. A352
00-019	03-22-2000	Tax abatement urban renewal amendment	Ch. A352
00-020	03-22-2000	Naming of street intersection	NCM
00-021	03-22-2000	Vehicles and traffic amendment	Ch. 332
00-022	04-12-2000	Tax exemption	Ch. A352
00-023	04-12-2000	Tax exemption	Ch. A352
00-024	04-12-2000	Tax exemption	Ch. A352
00-025	04-12-2000	Tax exemption amendment	Ch. A352
00-026	04-12-2000	Street vacations	Ch. A352
00-027	04-12-2000	Appropriation of unused proceeds of bonds	Ch. A352
00-028	04-12-2000	Redevelopment plan	Ch. A352
00-029	04-12-2000	Redevelopment plan amendment	Ch. A352
00-030	04-12-2000	Redevelopment plan amendment	Ch. A352
00-031	05-10-2000	Tax exemption amendment	Ch. A352
00-032	04-12-2000	Vehicles and traffic amendment	Ch. 332
00-033	04-26-2000	Naming of park	NCM
00-034	04-26-2000	Vehicles and traffic amendment	Ch. 332
00-035	04-26-2000	Vehicles and traffic amendment	Ch. 332
00-036	04-26-2000	Tax exemption	Ch. A352
00-037		Supplementing Chapter 26, Articles V, VII and X, designating on-street a permit parking zone	Expired on Tabled Agenda 06-30-2001
00-038		Amending Chapter 26, Article V, Subarticle 8, repealing the parking prohibition for trucks, omnibus, road tractor, semi-tractor, truck tractor or any commercial vans on the north side of York Street from Washington Street to the east driveway of the Post Office	Expired on Tabled Agenda 06-30-2001
00-039	04-26-2000	Redevelopment plan amendment	Ch. A352
00-040	05-10-2000	Appropriation	Ch. A352
00-041	05-10-2000	Appropriation	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
00-042	04-26-2000	Tax exemption	Ch. A352
00-043	04-26-2000	Tax exemption	Ch. A352
00-044	04-26-2000	Street vacation	Ch. A352
00-045	04-26-2000	Street vacation	Ch. A352
00-046	04-26-2000	Vehicles and traffic amendment	Ch. 332
00-047	05-10-2000	Vehicles and traffic amendment	Ch. 332
00-048	05-10-2000	Vehicles and traffic amendment	Ch. 332
00-049	05-10-2000	Vehicles and traffic amendment	Ch. 332
00-050	05-10-2000	Appropriation	Ch. A352
00-051		Bond ordinance to authorize the acquisition of real property, the making of various public improvements and the acquisition of additional and replacement equipment and new automotive vehicles in and for the city	Expired on Tabled Agenda 06-30-2001
00-052	05-10-2000	Renaming a street	NCM
00-053	05-10-2000	Zoning amendment	Ch. 345
00-054	05-10-2000	Vehicles and traffic amendment	Ch. 332
00-055	05-24-2000	Rescinding acquisition (Ord. No. 98-172 rescinded)	Repealer only
00-056	05-24-2000	Zoning amendment	Ch. 345
00-057	05-24-2000	Loan agreement	NCM
00-058	05-24-2000	Vehicles and traffic amendment	Ch. 332
00-059	05-24-2000	Vehicles and traffic amendment	Ch. 332
00-060	05-24-2000	Vehicles and traffic amendment	Ch. 332
00-061	06-14-2000	Naming the recreational facilities that include Enos Jones and Franco Field as "The Roberto Clemente Sports Complex"	Ch. A352
00-062	05-24-2000	Lease agreement rescinded (Ord. No. 99-142 rescinded)	Repealer only
00-063	06-14-2000	Redevelopment plan amendment	Ch. A352
00-064	06-14-2000	Franchise agreement	Ch. A352
00-065	06-14-2000	Parking tax amendment	Ch. 304, Art. I
00-066	06-14-2000	Franchise agreement	Ch. A352
00-067	06-28-2000	Sale of property	Ch. A352
00-068	06-28-2000	Vehicles and traffic amendment	Ch. 332
00-069	06-28-2000	Create title of Senior Public Safety Telecommunicator and Supervising Public Safety Telecommunicator	Ch. A351
00-070	06-28-2000	Lease agreement	Ch. A352
00-071		Amending Chapter 90, Article III, prohibiting animals from defecating in public park	Expired on Tabled Agenda 06-30-2001
00-072	06-28-2000	Vehicles and traffic amendment	Ch. 332
00-073	06-28-2000	Vehicles and traffic amendment	Ch. 332
00-074	06-28-2000	Vehicles and traffic amendment	Ch. 332
00-075	06-28-2000	Vehicles and traffic amendment	Ch. 332
00-076	07-19-2000	Amending 332-22, parking prohibited at all times	332-22
00-077	07-19-2000	Redevelopment plan amendment	Ch. A352
00-078	07-19-2000	Vehicles and traffic amendment	Ch. 332
00-079	07-19-2000	Vehicles and traffic amendment	Ch. 332
00-080	07-19-2000	Municipal Court amendment	Ch. 23
00-081	07-19-2000	Tax exemption	Ch. A352
00-082	07-19-2000	Tax exemption	Ch. A352
00-083	07-19-2000	Tax exemption	Ch. A352
00-084	07-19-2000	Tax exemption	Ch. A352
00-085		Approving a 20-year tax exemption	Expired on Tabled Agenda 06-30-2001
00-086	07-19-2000	Transfer of property	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
00-087	07-19-2000	Provisions of bond ordinances	Ch. 14
00-088	07-19-2000	Appropriation of unused proceeds of bonds	Ch. A352
00-089	08-16-2000	Lease of property	Ch. A352
00-090	08-16-2000	Tax exemption	Ch. A352
00-091	08-16-2000	Tax exemption	Ch. A352
00-092	09-27-2000	Bond ordinance to authorize the making of various public improvements to the water supply, transmission and distribution system	Ch. A352
00-093		Bond ordinance to authorize the acquisition of real property, the making of various public improvements and the acquisition of additional and replacement equipment and new automotive vehicles	Expired on Tabled Agenda 06-30-2001
00-094	08-16-2000	Vehicles and traffic amendment	Ch. 332
00-095		Approving a twenty year tax exemption for a residential project	Defeated 08-16-2000
00-096	08-16-2000	Use and access easement	Ch. A352
00-097	08-16-2000	Vehicles and traffic amendment	Ch. 332
00-098	08-16-2000	Vehicles and traffic amendment	Ch. 332
00-099	08-16-2000	Vehicles and traffic amendment	Ch. 332
00-100	09-13-2000*	Supplementing Chapter 26 to regulate the use of mobile telephones while operating a motor vehicle	*VETOED 09-19-2000
00-101	09-27-2000	Adopting the Communipaw West Community Center Redevelopment Plan	Ch. A352
00-102	08-16-2000	Lease of property	Ch. A352
00-103		Creating a committee to review tax exemption applications being submitted by the Mayor with his recommendations to the Municipal Council for determination pursuant to the tax exemption laws of the state	Expired on Tabled Agenda 06-30-2001. See Res. 00-513 approved 07-19-2000
00-104	09-13-2000	Acquisition of property amendment	Ch. A352
00-105	09-13-2000	Redevelopment pian amendment	Ch. A352
00-106	10-25-2000	Approving a 20 year tax exemption for market rate residential and commercial condominium units project, pursuant to the Long Term Tax Exemption Law	Ch. A352
00-107	09-27-2000	Approving a 20 year tax exemption for a market rate residential rental project, pursuant to the Long Term Tax Exemption Law	Ch. A352
00-108	09-13-2000	Create title of Fire Chaplain	Ch. A351
00-109	09-13-2000	Create title of Police Chaplain	Ch. A351
00-110		Amending an supplementing Chapter 81, Article 1, regulating the placement of handbills and other material on private property	Defeated 08-16-2000
00-111	10-11-2000	Amending Chapter 260	260-1—260-20 Repealed by Ord. 01-040. See Ord. 01-040
00-112	09-13-2000	Tax exemption	Ch. A352
00-113	09-13-2000	Fees and charges amendment; zoning amendment	Chs. 160 and 345
00-114	09-13-2000	Franchise agreement	Ch. A352
00-115	09-13-2000	Animals and animal facilities generally amendment	Ch. 90, Art. I
00-116	09-13-2000	Fees and charges amendment	Ch. 160
00-117	09-13-2000	Towers and towing amendment	Ch. 319
00-118		Amending chapter 90, Article II, prohibiting animals from defecating in public parks	Expired on Tabled Agenda 06-30-2001
00-119	08-16-2000	Vehicles and traffic amendment	Ch. 332
00-120	08-16-2000	Vehicles and traffic amendment	Ch. 332
00-121	09-27-2000	Vehicles and traffic amendment	Ch. 332
00-122	09-13-2000	Vehicles and traffic amendment	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
00-123	09-27-2000	Redevelopment plan amendment	Ch. A352
00-124	09-27-2000	Tax exemption	Ch. A352
00-125	09-27-2000	Tax exemption	Ch. A352
00-126		Supplementing Chapter 2, Article XV, to include long-term tax abatement application fees and approvals	Defeated 09-27-2000
00-127	09-27-2000	Redevelopment plan amendment	Ch. A352
00-128	09-27-2000	Vehicles and traffic amendment	Disapproved by N.J.D.O.T. 07-24-2002
00-129	09-27-2000	Tax exemption	Ch. A352
00-130	09-27-2000	Vehicles and traffic amendment	Ch. 332
00-131	09-27-2000	Vehicles and traffic amendment	Ch. 332
00-132	10-11-2000	Acquisition and conveyance of property	Ch. A352
00-133	10-11-2000	Acceptance of real property amendment	Ch. A352
00-134	10-11-2000	Tax exemption	Ch. A352
00-135	10-11-2000	Zoning amendment	Ch. 345
00-136		Amending and supplementng Chapter 175, Article II	Defeated 10-11-2000
00-137	10-11-2000	Transfer of property	Ch. A352
00-138		Amending Chapter 90, Article II, prohibiting animals from defecating and urinating in public parks	Defeated 09-27-2000
00-139	10-11-2000	Bond	Ch. A352
00-140	10-25-2000	Vehicles and traffic amendment	Ch. 332
00-141	10-25-2000	Tax exemption	Ch. A352
00-142	10-25-2000	Vehicles and traffic amendment	Ch. 332
00-143	10-25-2000	Vehicles and traffic amendment (stop intersections)	Ch. 332
00-144	10-25-2000	Tax exemption	Ch. A352
00-145	10-25-2000	Tax exemption	Ch. A352
00-146	10-25-2000	Tax exemption	Ch. A352
00-147	10-25-2000	Tax exemption	Ch. A352
00-148	10-25-2000	Street renaming	NCM
00-149	10-25-2000	Street renaming	NCM
00-150	10-25-2000	Dogs and other animals amendment	Ch. 90, Art. Ill
00-151	11-08-2000	Fees amendment	Ch. 160
00-152	11-08-2000	Vehicles and traffic amendment	Ch. 332
00-153	11-08-2000	Fees and charges amendment	Ch. 160
00-154	11-08-2000	Autocabs amendment	Ch. 307, Art, Ill
00-155	11-08-2000	Tax exemption	Ch. A352
00-156	11-08-2000	Tax exemption	Ch. A352
00-157	11-08-2000	Tax exemption	Ch. A352
00-158		Authorizing the conveyance of 48-50 Maple Street and 56-58 Maple Street to the Jersey City Redevelopment Agency	Defeated 11-08-2000
00-159	11-08-2000	Vehicles and traffic amendment	Ch. 332
00-160		Authorizing the conveyance of a nonexclusive subsurface easement to the Port Authority of New York and New Jersey for the Pavonia/Newport Station	Defeated 11-08-2000 See Ord. 00-164
00-161	11-21-2000	Vehicles and traffic amendment	Ch. 332
00-162	11-21-2000	Vehicles and traffic amendment	Ch. 332
00-163	11-21-2000	Lease agreement	Ch. A352
00-164	11-21-2000	Conveyance of easement	Ch. A352
00-165	11-21-2000	Street renaming	NCM
00-166		Amending and supplementing Chapter 81, Article 1, regulating the placement of handbills and other material on private property	Defeated 12-13-2000

Ordinance Number	Date of Adoption	Description	Disposition
00-167	12-13-2000	Street renaming	NCM
00-168	01-10-2001	Cancellation of taxes for certain property	NCM
00-169		Food handling/itinerant eating and drinking	Withdrawn 12-13-2000
00-170	01-10-2001	Grove Street Station II Redevelopment Plan	Ch. A352
00-171	01-10-2001	Vehicles and traffic amendment	Ch. 332
00-173	01-10-2001	Tax exemption	Ch. A352
00-174	01-10-2001	Transfer and acceptance of real property	Ch. A352
00-175	01-10-2001	Tax exemption	Ch. A352
01-001	01-24-2001	Transfer of property	Ch. A352
01-002	01-24-2001	Street vacation	Ch. A352
01-003	01-24-2001	Street vacation	Ch. A352
01-004	01-24-2001	Vacation	Ch. A352
01-005	01-24-2001	Transfer of property	Ch. A352
01-006	01-24-2001	Tax exemption	Ch. A352
01-007	01-24-2001	Dedicating portion of street	Ch. A352
01-008	01-24-2001	Tax exemption	Ch. A352
01-009	01-24-2001	Tax exemption	Ch. A352
01-010		Tax exemption	Withdrawn 01-10-2001
01-011	01-24-2001	Lease agreement	Ch. A352
01-012	01-24-2001	Vehicles and traffic amendment	Ch. 332
01-013	02-14-2001	Taxicabs and limousines amendment	Ch. 307
01-014	02-14-2001	Tax exemption	Ch. A352
01-015	02-14-2001	Tax exemption	Ch. A352
01-016	02-20-2001	Land acquisition	Ch. A352
01-017	02-14-2001	Tax abatement	Ch. A352
01-018	02-14-2001	Dedication	Ch. A352
01-019	02-14-2001	Dedication	Ch. A352
01-020	02-28-2001	Annual fees	Ch. 160
01-021	02-28-2001	Tax abatement	Ch. A352
01-022	02-28-2001	Lease agreement	Ch. A352
01-023	02-28-2001	Vehicles and traffic	Ch. 332
01-024	01-28-2001	Vehicles and traffic	Ch. 332
01-025	02-28-2001	Tax abatement	Ch. A352
01-026	02-28-2001	Vehicles and traffic	Ch. 332
01-027	02-28-2001	Redevelopment plan	Ch. A352
01-028	02-28-2001	Tax abatement	Ch. A352
01-029		Tax exemption 328-342 Washington Blvd	Withdrawn 02-14-2001
01-029A	03-24-2001	Vacant building redevelopment plan; transfer of 70-72 Lexington Av	Ch. A352
01-030		Liberty Harbor North Redevelopment plan	Withdrawn 02-28-2001
01-031	03-14-2001	Vehicles and traffic	Ch. 332
01-032	03-28-2001	Vehicles and traffic	Ch. 332
01-033	03-28-2001	Vehicles and traffic	Ch. 332
01-034	03-28-2001	Enabling	Ch. A352
01-035	03-28-2001	Vacation	Ch. A352
01-036	03-28-2001	Trees	Ch. 321
01-037	03-28-2001	Tax abatement	Ch. A352
01-038	03-28-2001	Tax abatement	Ch. A352
01-039	03-28-2001	Tax abatement	Ch. A352
01-040	03-28-2001	Rent control	Ch. 260

Ordinance Number	Date of Adoption	Description	Disposition
01-041	03-28-2001	Franchise	Ch. A352
01-042	04-11-2001	Zoning	Ch. 345
01-043	04-11-2001	Miscellaneous ordinances	Ch. 31
01-044	04-11-2001	Conveyance	Ch. A352
01-045	04-11-2001	Vehicles and Traffic	Ch. 332
01-046	04-11-2001	Taxicabs and limousines	Ch. 307 Defeated
01-047	04-25-2001	Vehicles and traffic	Ch. 332
01-048	04-25-2001	Enabling	Ch. A352
01-049	04-25-2001	Lease agreement	Ch. A352
01-050	04-25-2001	Franchise	Ch. A352
01-051	04-25-2001	Vacation	Ch. A352
01-052	04-25-2001	Redevelopment plan	Ch. A352
01-053	05-16-2001	Redevelopment plan	Ch. A352
01-054		Bond	Expired on Tabled agenda 06-30-2001
01-055	05-16-2001	Bond	Ch. A352
01-056		Bond	Expired on Tabled agenda 06-30-2001
01-057	06-13-2001	Bond	Ch. A352
01-058	05-16-2001	Vehicles and traffic	Ch. 332
01-059	06-13-2001	Communication systems, fees and charges, streets and sidewalks, and excavations	Ch. 125, Ch. 160 and Ch. 296
01-060	05-16-2001	Vacation 19 th street	Ch. A352
01-061	05-16-2001	Land development	Ch. 345
01-062	05-16-2001	Cancellation of taxes	Ch. A352
01-063	06-30-2001	Trees	Ch. 321 Expired
01-064	06-13-2001	Alcoholic beverages	Ch. 84
01-065	06-13-2001	Vehicles and traffic	Ch. 332
01-066	06-13-2001	Property transfer	Ch. A352
01-067	06-13-2001	Easement	Ch. A352
01-068	06-13-2001	Redevelopment plan	Ch. A352
01-069	06-13-2001	Tax abatement	Ch. A352
01-070	06-13-2001	Tax abatement	Ch. A352
01-071	06-13-2001	Redevelopment plan	Ch. A352
01-072	06-13-2001	Street dedication	Ch. A352
01-073	06-13-2001	Franchise	Ch. A352
01-074	06-27-2001	Street Dedication	Ch. A352
01-075	06-27-2001	Property transfer	Ch. A352
01-076	06-27-2001	Street Dedication	Ch. A352
01-077	06-27-2001	Franchise agreement	Ch. A352
01-078	06-27-2001	Agreement	Ch. A352
01-079	06-27-2001	Tax abatement	Ch. A352
01-080		Tax abatement	Withdrawn 06-13-2001
01-081		Tax abatement	Withdrawn 06-13-2001
01-082	06-27-2001	Trees	Ch. 321
01-083	06-27-2001	Property transfer	Ch. A352
01-084	06-27-2001	Franchise	Ch. A352
01-085	06-27-2001	Property transfer	Ch. A352
01-086	06-27-2001	Street vacation	Ch. A351
01-087	06-27-2001	Vehicles and traffic	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
01-088	06-27-2001	Mandating the use of a fire safety manager in the city for high-rise buildings	Added 3-127—3-133
01-089	06-27-2001	Lease agreement	Ch. A352
01-090	07-01-2001	Administration of government	Ch. 3 Withdrawn
01-091	12-12-2001	Administration of government	Ch. 3 Defeated
01-092	07-18-2001	Administration of government	Ch. 3
01-093	08-15-2001	Dedication	Ch. A352
01-094	08-15-2001	Vehicles and traffic	Ch. 332
01-095	09-12-2001	Personnel	Ch. 53
01-096	09-12-2001	Lease agreement	Ch. A352
01-097	09-12-2001	Redevelopment plan	Ch. A352
01-098	09-12-2001	Dedication	Ch. A352
01-099	09-12-2001	Dedication	Ch. A352
01-100	09-12-2001	Dedication	Ch. A352
01-101	09-12-2001	Property transfer	Ch. A352
01-102	09-12-2001	Dedication	Ch. A352
01-103	09-12-2001	Fees and charges	Ch. 160
01-104	09-26-2001	Franchise	Ch. A352
01-105		Vehicles and traffic	Withdrawn 09-12-2001
01-106	09-26-2001	Vehicles and traffic	Ch. 332
01-107	09-26-2001	Vehicles and traffic	Ch. 332
01-108	09-26-01	Redevelopment plan	Ch. A352
01-109	09-26-2001	Lease agreement	Ch. A352
01-110		Property transfer	Withdrawn 09-12-2001
01-111	09-28-2001	Dedication	Ch. A352
01-112		Land exchange	Defeated 12-12-2001
01-113	10-10-2001	Lease agreement	Ch. A352
01-114	10-10-2001	Property transfer	Ch. A352
01-115	10-24-2001	Vehicles and traffic	Ch. 332
01-116	10-24-2001	Personnel	Ch. A351

Ordinance Number	Date of Adoption	Description	Disposition
01-117	10-24-2001	Franchise	Ch. A352
01-118	10-24-2001	Redevelopment plan	Ch. A352
01-119	10-24-2001	Property transfer	Ch. A352
01-120	12-12-2001	Redevelopment plan	Defeated
01-121	11-07-2001	Administration of government	Ch. 3
01-122	11-07-2001	Vehicles and traffic	Ch. 332
01-123	11-28-2001	Vehicles and traffic	Ch. 332
01-124	11-28-2001	Conveyance	Ch. A352
01-125	11-28-2001	Fees and charges	Ch. 160
01-126	11-28-2001	Taxicabs and limousines	Ch. 307
01-127	11-28-2001	Redevelopment plan	Ch. A352
01-128	12-12-2001	Redevelopment plan	Defeated
01-129	11-28-2001	Land development	Ch. 345
01-130	11-28-2001	Street vacation	Ch. A352
01-131	12-12-2001	Vehicles and traffic	Ch. 332
01-132	12-12-2001	Administration of government	Ch. 3
01-133	01-9-2002	Redevelopment plan	Ch. A352
01-134	12-12-2001	Vehicles and traffic	Ch. 332
01-135	01-09-2002	Street vacation	Ch. A352
01-136	01-09-2002	Dedication	Ch. A352
01-137	01-09-2002	Redevelopment plan	Ch. A352
01-138	01-09-2002	Vehicles and traffic	Ch. 332
01-139	01-09-2002	Taxicabs and limousines	Ch. 307
01-140		Redevelopment plan	Expired 06-30-2005
01-141	12-27-2001	Administration of government	Ch. 3
02-001	01-23-2002	Vehicles and traffic	Ch. 332
02-002	01-23-2002	Lease agreement	Ch. A352
02-003	01-23-2002	Abatement transfer	Ch. A352
02-004	01-23-2002	Enabling	Ch. A352
02-005	01-23-2002	Vehicles and traffic	Ch. 332
02-006	02-13-2002	Street vacation	Ch. A352
02-007	02-13-2002	Personnel	Ch. A351
02-008	02-13-2002	Administration of government	Ch. 3
02-009	02-27-2002	Franchise	Ch. A352
02-010	02-27-2002	Redevelopment plan	Ch. A352
02-011	02-27-2002	Redevelopment plan	Ch. A352
02-012	02-27-2002	Fees and charges	Ch. 160, Ch. 296
02-013	02-27-2002	Personnel	Ch. A351
02-014	02-27-2002	Dedication	Ch. A352
02-015	02-27-2002	Vehicles and traffic	Ch. 332
02-016	02-27-2002	Vehicles and traffic	Ch. 332
02-017	02-27-2002	Rent control	Ch. 260
02-018	02-27-2002	Dedication	Ch. A352
02-019	02-27-2002	Tax abatement	Ch. A352
02-020	02-27-2002	Tax abatement	Ch. A352
02-021	05-08-2002	Redevelopment plan	Ch. A352
02-022	03-13-2002	Cultural arts commission	Ch. 25
02-023	03-13-2002	Lease agreement	Ch. A352
02-024	03-13-2002	Cancellation of taxes	Ch. A352
02-025	03-13-2002	Tax abatement	Ch. A350
02-026	03-13-2002	Tax abatement	Ch. A352
02-027	03-27-2002	Vehicles and traffic	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
02-028	03-27-2002	Vehicles and traffic	Ch. 332
02-029	03-27-2002	Vehicles and traffic	Ch. 332
02-030	03-27-2002	Vehicles and traffic	Ch. 332
02-031	03-27-2002	Redevelopment plan	Ch. A352
02-032	03-27-2002	Property transfer	Ch. A352
02-033	03-27-2002	Property transfer	Ch. A352
02-034	03-27-2002	Lease agreement	Ch. A352
02-035	03-27-2002	General provisions	Ch. 1
02-036	03-27-2002	Redevelopment plan	Ch. A352
02-037	03-27-2002	Property acquisition	Ch. A352
02-038	03-28-2002	Mayor's commission on senior affairs	Ch. 43
02-039	03-27-2002	Dedication	Ch. A352
02-040	03-27-2002	Vehicles and traffic	Ch. 332
02-041	04-10-2002	Vehicles and traffic	Ch. 332
02-042	04-10-2002	Vehicles and traffic	Ch. 332
02-043	04-10-2002	Easement	Ch. A352
02-044	03-27-2002	Pool rooms	Withdrawn
02-045	04-10-2002	Personnel	Ch. A351
02-046	04-24-2002	Fees and charges	Ch. 160
02-047	04-24-2002	Administrative code	Ch. 2
02-048	04-24-2002	Tax abatement	Ch. A352
02-049	04-24-2002	Fees and charges, Administration of	Ch. 3, Ch. 160
02-050	04-24-2002	Franchise agreement	Ch. A352
02-051	04-24-2002	Dedication	Ch. A352
02-052	05-08-2002	Tax exemption	Ch. 304
02-053	05-08-2002	Personnel	Ch. A351
02-054	05-08-2002	Redevelopment plan	Ch. A352
02-055			Withdrawn
02-056	05-22-2002	Redevelopment plan	Ch. A352
02-057	05-22-2002	Lease agreement	Ch. A352
02-058			Defeated 05-22-02
02-059	05-22-2002	Property acquisition/transfer	Ch. A352
02-060	05-22-2002	Vehicles and traffic	New legislation pending Ch. 332
02-061	05-22-2002	Vehicles and traffic	New legislation pending Ch. 332
02-062	05-22-2002	Dedication	Ch. A352
02-063			Defeated
02-064	06-12-2002	Tax abatement	Ch. A352
02-065	06-12-2002	Property acquisition/transfer	Ch. A352
02-066	06-12-2002	Property acquisition/transfer	Ch. A352
02-067	06-12-2002	Executive order	Ch. A351
02-068	06-12-2002	Executive order	Ch. A351
02-069	06-12-2002	Executive order	Ch. A351
02-070		Fees and charges	Expired 06-30-2005
02-071	06-12-2002	Easement	Ch. A352
02-072	06-12-2002	Tax abatement	Ch. A352
02-073	06-12-2002	Noise	Ch. 222
02-074	06-12-2002	Bond	Ch. A352
02-075	06-12-2002	Administration of government	Ch. 3
02-076		Cultural Arts Commissions	Expired 06-30-2005
02-077	06-26-2002	Tax abatement	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
02-078	06-26-2002	Tax abatement	Ch. A352
02-079	06-26-2002	Land acquisition/transfer	Ch. A352
02-080	07-17-2002	Redevelopment plan	Ch. A352
02-081	07-17-2002	Conveyance	Ch. A352
02-082	07-17-2002	Tax exemption	Ch. A352
02-083	07-17-2002	Vehicles and traffic	Ch. 332
02-084	08-14-2002	Fees and charges	Ch. 160
02-085	08-14-2002	Property acquisition	Ch. A352
02-086	08-14-2002	Tax exemption	Ch. A352
02-087	08-14-2002	Tax exemption	Ch. A352
02-088		Administration of government	Withdrawn 07-23-2002
02-089	See Ord. 02-104	Bonds	Ch. A352
02-090	11-13-2002	Bonds	Ch. A352
02-091	11-13-2002	Refunding bonds	Ch. A352
02-092	09-12-2002	Permission to use sidewalks	Ch. A352
02-093	09-12-2002	Permission to use sidewalks	Ch. A352
02-094	09-12-2002	Redevelopment plan	Ch. A352
02-095	09-12-2002	Personnel	Ch. A351
02-095	09-12-2002	Personnel	Ch. A351
02-096	09-12-2002	Fees and charges Retail florists	Ch. 160 Ch. 173
02-097	09-12-2002	Transfer of property	Ch. A352
02-098	9-12-2002	Transfer of property	Ch. A352
02-099	9-12-2002	Transfer of property	Ch. A352
02-100		Transfer of property	Defeated 09-12-2002
02-101	09-12-2002	Vehicles and traffic	Ch. 332
02-102	09-12-2002	Vehicles and traffic	Ch. 332
02-103	09-25-2002	Rescinds vacation; dedication	Ch. A352
02-104	11-13-2002	Bond	Ch. A352
02-105	10-09-2002	Tax exemption	Ch. A352
02-106	09-25-2002	Tax exemption	Ch. A352
02-107	10-09-2002	Tax exemption	Ch. A352
02-108	09-25-2002	Redevelopment plan	Ch. A352
02-109	09-25-2002	Administrative code	Ch. 69
02-110	09-25-2002	Ordinance of the Municipal Council of the City of Jersey City adopting amendments to the Grand Jersey Redevelopment Plan	Ch. A352
02-111	10-09-2002	Lease agreement	Ch. A352
02-112		Bond	Defeated 11-13-2002
02-113	08-13-2003	Bond	Ch. A352
02-113		Cultural arts commission	Tabled 6-12-2002
02-114	10-23-2002	Drug-free school zones	Ch. 151
02-115	10-23-2002	Vehicles and traffic	Ch. 332
02-116	10-23-2002	Noise	Ch. 222
02-117	10-23-2002	Dedication	Ch. A352
02-118	10-23-2002	Vehicles and traffic	Ch. 332
02-119	11-13-2002	Vehicles and traffic	Ch. 332
02-120		Amendments to the Morris Canal Redevelopment Plan pertaining to Cornelison Av	Withdrawn 10-23-2002
02-121	11-13-2002	Redevelopment plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
02-122		Bonds	Tabled 11-13-2002
02-123	11-13-2002	Tax exemption	Ch. A352
02-124	11-26-2002	Easement	Ch. A352
02-125	11-26-2002	Easement	Ch. A352
02-126			Withdrawn 11-13-2002
02-127	11-26-2002	Vehicles and traffic	Ch. 332
02-128	12-11-2002	Vehicles and traffic	Ch. 332
02-129	11-26-2002	Dedication	Ch. A352
02-130	11-26-2002	Personnel	Ch. A351
02-131	11-26-2002	Personnel	Ch. A351
02-132	11-26-2002	Refunding bonds	Ch. A352
02-133		Ordinance supplementing Chapter A3 51 (Executive Orders and Ordinances) of the City of Jersey City (Right to Know Specialist)	Withdrawn 11-13-2002
02-134	12-11-2002	Property acquisition	Ch. A352
02-135	12-11-2002	Property acquisition	Ch. A352
02-136	12-11-2002	Property acquisition	Ch. A352
02-137	12-11-2002	Private improvements	Ch. A352
02-138		Tax exemption	Tabled 12-11-2002
02-139	12-11-2002	Property sale	Ch. A352
02-140	01-08-2003	Easement agreement	Ch. A352
02-141	01-08-2003	Property transfer	Ch. A352
02-142	01-08-2003	Vehicles and traffic	Ch. 332
02-143	01-08-2003	Vehicles and traffic	Ch. 332
02-144	01-08-2003	Vehicles and traffic	Ch. 332
02-145	01-08-2003	Lease	Ch. A352
02-146	01-08-2003	Property acquisition	Ch. A352
02-147	01-08-2003	Property transfer	Ch. A352
02-148	01-08-2003	Dedication	Ch. A352
03-001	01-22-2003	Vehicles and traffic	Ch. 332
03-002	01-22-2003	Redevelopment plan	Ch. A352
03-003	01-22-2003	Personnel	Ch. A351
03-004	01-22-2003	Conveyance	Ch. A352
03-005	01-22-2003	Conveyance	Ch. A352
03-006	01-22-2003	Property acquisition	Ch. A352
03-007	02-26-2003	Property sale	Ch. A352
03-008	01-22-2003	Lease agreement	Ch. A352
03-009	01-22-2003	Historic preservation	Ch. 345
03-010	01-22-2003	Historic preservation	Ch. 345
03-011	02-11-2003* **	Code of ethics	Ch. 33 *VETOED 02-21-2003 ‘‘OVERRIDE 02-26-2003
03-012	02-11-2003	Vehicles and traffic	Ch. 332
03-013	02-11-2003	Vehicles and traffic	Ch. 332
03-014	11-26-2002	Refunding bonds	Ch. A352
03-015		Cultural arts commission	Withdrawn 02-11-2003
03-016	02-26-2003	Property sale	Ch. A352
03-017	02-26-2003	Vehicles and traffic	Ch. 332
03-018	02-26-2003	Vehicles and traffic	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
03-019	02-26-2003	Vehicles and traffic	Ch. 332
03-020	02-26-2003	Vehicles and traffic	Ch. 332
03-021	02-26-2003	Dedication	Ch. A352
03-022	02-26-2003	Dedication	Ch. A352
03-023	02-26-2003	Tax exemption	Ch. A352
03-024	02-26-2003	Tax exemption	Ch. A352
03-025		Conveyance	Defeated 2-11-2003
03-026	02-26-2003	Tax exemption	Ch. A352
03-027	02-26-2003	Tax exemption	Ch. A352
03-028		Conveyance—Grenvilla Redevelopment	Withdrawn 02-11-2003
03-029	03-12-2003	Vehicles and traffic	Ch. 332
03-030	03-26-2003	Redevelopment plan	Ch. A352
03-031	03-26-2003	Private improvements	Ch. A352
03-032	03-26-2003	Private improvements	Ch. A352
03-033	03-26-2003	Franchise	Ch. A352
03-034	03-26-2003	Franchise	Ch. A352
03-035	03-26-2003	Franchise	Ch. A352
03-036	03-26-2003	Franchise	Ch. A352
03-037	03-26-2003	Private improvements	Ch. A352
03-038	03-26-2003	Redevelopment plan	Ch. A352
03-039	03-26-2003	Redevelopment plan	Ch. A352
03-040	03-26-2006	Land development	Ch. 345
03-041	03-26-2003	Dedication	Ch. A352
03-042	03-26-2003	Property transfer	Ch. A352
03-043	03-26-2003	Property transfer	Ch. A352
03-044	03-26-2003	Dedication	Ch. A352
03-045	03-26-2003	Dedication	Ch. A352
03-046	03-26-2003	Accepting a dedication of certain sidewalks, roadways and utilities within the Lafayette Village Subdivision and naming a roadway within the subdivision "Irene Carson Court"	Ch. A352
03-047	03-26-2003	Dedication	Ch. A352
03-048		Administration of government	Tabled 03-26-2003
03-049	04-09-2003	Dedication	Ch. A352
03-050	04-09-2003	Vehicles and traffic	Ch. 332
03-051	04-09-2003	Dedication	Ch. A352
03-052	04-09-2003	Dedication	Ch. A352
03-053	04-23-2003	Water services franchise	Ch. A352
03-054	04-23-2003	Secondhand dealers	Ch. 275
03-055	04-23-2003	Fees and charges	Ch. 160
03-056	04-23-2003	Property transfer	Ch. A352
03-057	05-14-2003	Historic preservation	Ch. 345
03-058	04-23-2003	Historic preservation	Ch. 345
03-059	05-14-2003	Land development	Ch. 345
03-060	05-28-2003	Conveyance	Ch. A352
03-061	05-14-2003	Property acquisition	Ch. A352
03-062	05-14-2003	Private improvements	Ch. A352
03-063	05-14-2003	Dedicating that Crescent Avenue between Harrison Avenue and Brinkerhoff Avenue also be known as Edna Allen St Paul Way	Ch. A352
03-064	05-14-2003	Property transfer	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
03-065		Private improvements	Withdrawn 05-14-2003
03-066	05-28-2003	Redevelopment plan	Ch. A352
03-067	05-28-2003	Vehicles and traffic	Ch. 332
03-068	05-28-2003	Vehicles and traffic	Ch. 332
03-069		Administration of government	Withdrawn 05-14-2003
03-070		Personnel	Defeated 05-14-2003
03-071		Personnel	Defeated 05-14-2003
03-072		Personnel	Defeated 05-14-2003
03-073	05-28-2003	Conveyance	Ch. A352
03-074	05-28-2003	Franchise	Ch. A352
03-075	05-28-2003	Easement	Ch. A352
03-076		Conveyance	Defeated
03-077	05-28-2003	Conveyance	Ch. A352
03-078	06-11-2003	Vehicles and traffic	Ch. 332
03-079	06-11-2003	Amending Ch. 26, vehicles and traffic	Disapproved by N.J.D.O.T. 04-28-2004
03-080	05-28-2003	Property transfer	Withdrawn
03-081	06-11-2003	Dedication	Ch. A352
03-082	05-28-2003	Property transfer	Withdrawn
03-083	06-11-2003	Private improvements	Ch. A352
03-084	06-11-2003	Tax exemption	Ch. A352
03-085	06-11-2003	Dedication	Ch. A352
03-086	06-11-2003*	Conveyance; Greenvilla Redevelopment Plan Area	***VETOED** 06-20-2003
03-087	06-11-2003* **	Conveyance of Medical Center Complex to the Jersey City Redevelopment Agency	***VETOED** 06-20-2003 ****OVERRIDDEN** by Council 08-13-2003
03-088	06-25-2003	Vacation	Ch. A352
03-089	06-25-2003	Private improvements	Ch. A352
03-090	06-25-2003	Vehicles and traffic amendment	Ch. 332
03-091	09-10-2003	Health and sanitation	Ch. 182
03-092	07-16-2003	Conveyance	Ch. A352
03-093	07-16-2003	Administration of government	Ch. 3
03-094	07-16-2003	Vehicles and traffic amendment	Ch. 332
03-095	07-16-2003	Franchise agreement	Ch. A352
03-095	07-02-2003	Vacation	Withdrawn
03-096	07-16-2003	Special improvement districts	Ch. 69
03-097	07-02-2003	Redevelopment plan	Ch. A352
03-098	07-02-2003	Vacation	Withdrawn
03-099	07-16-2003	Personnel	Ch. A351
03-100	08-13-2003	Property transfer	Ch. A352
03-101	08-13-2003	Health and Sanitation	Ch. 182
03-102	08-13-2003	Streets and sidewalks	Ch. 296
03-103	08-13-2003	Fees and charges	Ch. 160
03-104	08-13-2003	Fees and charges	Ch. 160
03-105	06-20-2003	Conveyance	Withdrawn
03-106	08-13-2003	Tax exemption	Ch. A352
03-107	08-13-2003	Tax exemption	Ch. A352
03-108	07-13-2003	Dedication	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
03-109	08-13-2003	Dedication	Ch. A352
03-110	08-13-2003	Tax exemption	Ch. A352
03-111	09-10-2003	Dedication	Ch. A352
03-112	09-10-2003	Long term tax exemptions	Ch. 304
03-113	09-10-2003	Land development	Ch. 345
03-114	09-10-2003	Historic district	Ch. 345-58
03-115	09-10-2003	Vehicles and traffic	Ch. 332
03-116	09-10-2003	Vehicles and traffic	Ch. 332
03-117	09-10-2003	Vehicles and traffic	Ch. 332
03-118	09-10-2003	Dedication	Ch. A352
03-119		Amendment of Ord. No. 98-164; New Hope Housing	Withdrawn 08-13-2003
03-120	09-10-2003	Tax exemption transfer	Ch. A352
03-121		Tax exemption; Plaza X Urban Renewal	Withdrawn 08-13-2003

Ordinance Number	Date of Adoption	Description	Disposition
03-122	09-10-2003	Vacation	Ch. A352
03-123		Bonds	Defeated 12-03-2003
03-124		Bonds	Never acted upon
03-125	09-10-2003	Alcoholic beverages	Withdrawn
03-126	09-24-2003	Retail and commercial premises	Ch. 263
03-127	09-24-2003	Vehicles and traffic	Ch. 332
03-128	09-24-2003	Amendment of Ord. No. 98-164	Ch. A352
03-129	09-10-2003	Bonds	Withdrawn
03-130	09-24-03	Bonds	Ch. A352
03-131	09-24-2003	Streets and sidewalks	Ch. 296
03-132	10-08-2003	Easement	Ch. A352
03-133	10-08-2003	Dedication	Ch. A352
03-134	10-08-2003	Land development	Ch. 345
03-135	09-24-2003	Redevelopment plan	Ch. A352
03-136	10-22-2003	Conveyance	Ch. A352
03-137	10-08-2003	Conveyance	Rescinded by 04-016
03-138	09-24-2003	Tax exemption	Withdrawn
03-139	10-08-2003	Tax exemption	Ch. A352
03-140	10-08-2003	Vehicles and traffic	Ch. 332
03-141	10-08-2003	Tax exemption	Ch. A352
03-142	10-08-2003	Tax exemption	Ch. A352
03-143		Conveyance	Defeated 11-25-2003
03-144	10-08-2003	Vacation	Ch. A352
03-145	10-22-2003	Vehicles and traffic	Ch. 332
03-146	10-22-2003	Acquisition	Ch. A352
03-147	10-22-2003	Dedication	Ch. A352
03-148	11-12-2003	Vacation	Ch. A352
03-149	11-12-2003	Lease agreement	Ch. A352
03-150	11-25-2003	Vehicles and traffic	Ch. 332
03-151	11-25-2003	Property Transfer	Ch. A352
03-152	12-10-2003	Tax exemption	Ch. A352
03-153	1-14-2004	Dedication	Ch. A352
03-154	11-25-2003	Tax exemption	Ch. A352
03-155	11-25-2003	Transfer of membership interests	Ch. A352
03-156	11-25-2003	Acquisition	Ch. A352
03-157	11-25-2003	Lease agreement	Ch. A352
03-158		Redevelopment plan	Defeated 12-10-2003
03-159	12-10-2003	Conveyance	Ch. A352
03-160	01-14-2004	Conveyance	Ch. A352
03-161	01-14-2004	Tax exemption	Ch. A352
03-162	01-14-2004	Dedication	Ch. A352
03-163	09-22-2004	Establishing regulations governing the per diem use of the Mary McLeod Bethune Life Center, also known as the Martin Luther King Drive Community Center, by persons and non-profit organizations	157-11
03-164	01-14-2004	Redevelopment plan	Ch. A352
04-001	03-10-2004	Conveyance	Ch. A352
04-002	01-14-2004	Private improvements	Withdrawn
04-003	01-28-2004	Redevelopment plan	Ch. A352
04-004	02-11-2004	Lease agreement	Ch. A352
04-005	01-28-2004	Vehicles and traffic	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
04-006		Tax exemption	Defeated 02-11-04
04-007	01-28-2004	Fees and charges	Ch. 160
04-008	01-28-2004	Personnel	Withdrawn
04-009		Tax exemption	Defeated 02-11-2004
04-010		Tax exemption	Defeated 02-11-2004
04-011	02-11-2004	Tax exemption	Ch. A352
04-012		Conveyance	Defeated 2-11-2004
04-013	02-11-2004	Tax exemption	Ch. A352
04-014	02-11-2004	Dedication	Ch. A352
04-015	02-25-2004	Vehicles and traffic	Withdrawn
04-016	02-25-2004	Conveyance	Ch. A352
04-017		Redevelopment plan	Defeated 02-25-2004
04-018		Tax exemption	Defeated 03-10-04
04-019	03-10-2004	Tax exemption	Ch. A352
04-020	03-10-2004	Tax exemption	Ch. A352
04-021	03-10-2004	Re-appropriating	Ch. A352
04-022	03-10-2004	Conveyance	Ch. A352
04-023	03-10-2004	Dedication	Ch. A352
04-024	03-10-2004	Redevelopment plan	Ch. A352
04-025	03-10-2004	Redevelopment plan	Ch. A352
04-026	03-24-2004	Re-appropriating funds	Ch. A352
04-027	03-24-2004	Redevelopment plan	Ch. A352
04-028	03-24-2004	Dedication	Ch. A352
04-029	03-24-2004	Redevelopment plan	Ch. A352
04-030	03-24-2004	Vehicles and traffic	Ch. 332
04-031	03-24-2004	Vehicles and traffic	Ch. 332
04-032	03-24-2004	Conveyance	Ch. A352
04-033	03-24-2004	Lease agreement	Ch. A352
04-034	03-29-2004	Executive orders	Withdrawn
04-035	04-14-2004	Acquisition	Ch. A352
04-036	04-14-2004	Conveyance	Ch. A352
04-037	04-14-2004	Property transfer	Ch. A352
04-038	04-14-2004	Property transfer	Ch. A352
04-039	04-14-2004	Property sale	Ch. A352
04-040	03-24-2004	Lease agreement	Withdrawn
04-041		General obligations	Defeated 03-24-2004
04-042	04-14-2004	Vehicles and traffic	Ch. 332
04-043	09-08-2004	Redevelopment plan	Ch. A352
04-044	04-28-2004	Redevelopment plan	Ch. A352
04-045	04-14-2004	Lease agreement	Withdrawn
04-046	04-28-2004	Land development	Ch. 345
04-047	04-28-2004	Tax exemption	Ch. A352
04-048		Lease agreement	Tabled 9-8-04
04-049	05-12-2004	Acquisition	Ch. A352
04-050	05-12-2004	Conveyance	Ch. A352
04-051	05-12-2004	Tax exemption	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
04-052	5-12-2004	Tax exemption	Ch. A352
04-053	05-12-2004	Tax exemption	Rescinded by 06-068
04-054	05-12-2004	Property transfer	Withdrawn
04-055	05-12-2004	Fees and charges	Withdrawn
04-056	05-12-2004	Private improvement	Withdrawn
04-057	06-09-2004	Acquisition	Ch. A352
04-058	06-09-2004	Acquisition	Ch. A352
04-059	06-09-2004	Vehicles and traffic	Ch. 332
04-060	06-09-2004	Lease agreement	Ch. A352
04-061	06-23-2004	Property transfer	Ch. A352
04-062	06-23-2004	Entertainment and dance licenses	Ch. 157
04-063	06-23-2004	Vehicles and traffic	Ch. 332
04-064	06-09-2004	Taxation	Withdrawn
04-065	06-23-2004	Dedication	Ch. A352
04-066		Conveyance	Tabled 06-23-2004
04-067	07-14-2004	Retail and commercial premises	Ch. 263
04-068	07-14-2004	Vacation	Ch. A352
04-069	07-14-2004	Zoning map amendment	Ch. 345
04-070	07-14-2004	Amending Ch. 26, vehicles and traffic	Disapproved by N.J.D.O.T. 01-25-2005
04-071	07-14-2004	Fees and charges	Ch. 160
04-072	07-14-2004	Tax exemption	Ch. A352
04-073	11-10-2004	Lease agreement	Ch. A352
04-074	08-11-2004	Redevelopment plan	Ch. A352
04-075	08-11-2004	Lease agreement	Ch. A352
04-076	08-11-2004	Dedication	Ch. A352
04-077	08-11-2004	Tax exemption	Ch. A352
04-078	09-22-2004	Tax exemption	Ch. A352
04-079	08-11-2004	Tax exemption	Ch. A352
04-080	08-11-2004	Tax exemption	Ch. A352
04-081		Tax exemption	Tabled 8-11-2004
04-082	08-11-2004	Redevelopment plan	Ch. A352
04-082A	09-08-2004	Dedication	Ch. A352
04-083	09-08-2004	Transfer of property	Ch. A352
04-084	09-08-2004	Vehicles and traffic	Ch. 332
04-085	09-08-2004	Vehicles and traffic	Ch. 332
04-086	09-08-2004	Vehicles and traffic	Ch. 332
04-087	09-08-2004	Administration of government	Ch. 3
04-088	10-06-2004	Zoning amendment	Ch. 345
04-089	09-08-2004	Acquisition of property	Ch. A352
04-090	09-08-2004	Franchise	Ch. A352
04-091	09-08-2004	Refunding bond	Ch. A352
04-092	09-08-2004	Refunding bond	Ch. A352
04-093	09-08-2004	Refunding bond	Ch. A352
04-094	09-08-2004	Land development	Ch. 345
04-095	09-08-2004	Alcoholic beverages	Ch. 84
04-096	09-08-2004	Acquisition of property	Ch. A352
04-097		Land development	Defeated 10-06-2004
04-098	09-08-2004	Alcoholic beverages	Withdrawn
04-099	10-13-2004	Redevelopment plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
04-100	09-22-2004	Taxation	Ch. 304
04-101	09-08-2004	Vehicles and traffic	Withdrawn
04-102	09-22-2004	Vehicles and traffic	Ch. 332
04-103	09-22-2004	Amending Ch. 26, vehicles and traffic	Disapproved by N.J.D.O.T. 05-23-2005
04-104	09-22-2004	Franchise	Ch. A352
04-105	09-22-2004	Transfer of property	Ch. A352
04-106	09-22-2004	Executive order	Ch. A351
04-107	09-22-2004	Administration of government	Ch. 3
04-108	09-22-2004	Rescinds vacation; dedication	Ch. A352
04-109	09-22-2004	Tax exemption	Ch. A352
04-110	10-13-2004	Lease agreement	Ch. A352
04-111	10-27-2004	Acquisition of property; conveyance	Ch. A352
04-112	10-13-2004	Tax exemption	Ch. A352
04-113	10-27-2004	Tax exemption	Ch. A352
04-114	10-27-2004	Tax exemption	Ch. A352
04-115	10-27-2004	Vehicles and traffic	Ch. 332
04-116	10-27-2004	Lease agreement	Ch. A352
04-117	10-27-2004	Amending Ch. 26, vehicles and traffic	Disapproved by N.J.D.O.T. 06-17-2005
04-118	10-27-2004	Redevelopment plan	Ch. A352
04-119	10-27-2004	Redevelopment plan	Ch. A352
04-120	10-27-2004	Redevelopment plan	Ch. A352
04-121	10-27-2004	Redevelopment plan	Ch. A352
04-122	10-27-2004	Tax exemption	Ch. A352
04-123	10-27-2004	Conveyance	Ch. A352
04-124	10-27-2004	Conveyance	Ch. A352
04-125		Conveyance	Tabled 10-27-2004
04-126	10-27-2004	Tax exemption	Ch. A352
04-127	10-27-2004	Lease agreement	Ch. A352
04-128	10-27-2004	Vehicles and traffic	Ch. 332
04-129	10-27-2004	Vehicles and traffic	Ch. 332
04-130	11-10-2004	Appropriation	NCM
04-131	11-10-2004	Dedication	Ch. A352
04-132	11-10-2004	Executive order	Ch. A351
04-133	11-10-2004	Vehicles and traffic	Ch. 332
04-134		Tax exemption	Tabled 11-10-2004
04-135		Conveyance	Tabled 11-10-2004
04-136	11-10-2004	Acquisition of property	Ch. A352
04-137	11-10-2004	Taxation	Ch. 304
04-138	11-10-2004	Dedication	Ch. A352
04-139	11-23-2004	Conveyance	Ch. A352
04-140	11-23-2004	Street vacation	Ch. A352
04-141	11-23-2004	Administration of government	Ch. 3
04-142	11-23-2004	Franchise	Ch. A352
04-143	11-23-2004	Vehicles and traffic	Ch. 332
04-144	01-12-2005	Executive order	Ch. A351
04-145	01-12-2005	Acquisition of property	Ch. A352
04-146	01-12-2005	Administration of government	Ch. 3
04-147	01-12-2005	Vehicles and traffic	Ch. 332
04-148	12-15-2004	Vehicles and traffic	Withdrawn

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04-151	01-12-2005	Noise	Ch. 222
04-152	01-12-2005	Financial agreement	Ch. A352
04-153	01-12-2005	Financial agreement	Ch. A352
04-154	04-13-2005	Fees and charges	Ch. 160
05-001	01-26-2005	Tax exemption	Ch. A352
05-001	04-14-2005	Executive orders and ordinances	Ch. A351
05-002	01-26-2005	Tax exemption	Ch. A352
05-003	01-26-2005	Tax exemption	Ch. A352
05-004	01-26-2005	Easement	Ch. A352
05-005	01-26-2005	Designating intersection of Sixth Street and Brunswick Street as Anthony J. Nicodemo Place	Ch. A352
05-006	01-26-2005	Tax exemption	Ch. A352
05-007	02-09-2005	Redevelopment plan	Ch. A352
05-008	02-09-2005	Tax exemption	Ch. A352
05-009	02-09-2005	Vehicles and Traffic Amendment	Ch. 332
05-010	02-23-2005	Tax exemption	Ch. A352
05-011	02-23-2005	Redevelopment plan	Ch. A352
05-012	02-23-2005	Tax exemption	Ch. A352
05-013	02-23-2005	Tax exemption	Ch. A352
05-014	2-23-2005	Conveyance of property	Ch. A352
05-015	02-23-2005	Lease agreement	Ch. A352
05-016	02-23-2005	Executive orders and ordinances	Ch. A351
05-017	03-09-2005	Taxicabs and limousines amendment	Ch. 307
05-018	03-09-2005	Tax exemption	Ch. A352
05-019	03-09-2005	Tax exemption	Ch. A352
05-020	03-09-2005	Tax exemption	Ch. A352
05-021	03-09-2005	Tax exemption	Ch. A352
05-022	03-09-2005	Transfer of property	Ch. A352
05-023	03-09-2005	Vehicles and traffic amendment	Ch. 332
05-024	03-23-2005	Redevelopment plan	Ch. A352
05-025	03-23-2005	Reappropriation	Ch. A352
05-026	03-23-2005	Tax refund	Ch. A352
05-027	03-23-2005	Executive orders and ordinances	Ch. A351
05-028	03-23-2005	Executive orders and ordinances	Ch. A351
05-029	03-23-2005	Redevelopment plan	Ch. A352
05-030	03-23-2005	Private improvement	Ch. A352
05-031	03-23-2005	Vacation	Ch. A352
05-032	03-23-2005	Vacation	Ch. A352
05-033	03-23-2005	Fee schedule, non-refundable application fees	Ch. 160, Ch. 345
05-034			Expired on Tabled agenda 4-13-2005
05-035	04-13-2005	Dedication	Ch. A352
05-036	04-13-2005	Conveyance of property	Ch. A352
05-037	04-13-2005	Vehicles and traffic amendment	Ch. 332
05-038	04-13-2005	Appropriation	Ch. A352
05-039	04-13-2005	Bond	Ch. A352
05-040	04-13-2005	Bond refund	Ch. A352
05-041	04-27-2005	Transfer of property	Ch. A352
05-042	04-27-2005	Vehicles and traffic amendment	Ch. 332
05-043	04-27-2005	Executive orders and ordinances	Ch. A351

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05-046	04-27-2005	Vehicles and traffic amendment	Ch. 332
05-047	04-27-2005	Conveyance	Ch. A352
05-048		Property acquisition	Defeated 4/13/2005
05-049	05-18-2005	Ethics	Ch. 33
05-050	05-18-2005	Vehicles and traffic amendment	Ch. 332
05-051	05-18-2005	Executive orders and ordinances	Ch. A351
05-052	05-08-2005	Land development	Ch. 345
05-053	05-18-2005	Vehicles and traffic amendment	Ch. 332
05-054	05-18-2005	Vehicles and traffic amendment	Ch. 332
05-055	5-18-2005	Renames the Patterson Street Senior Center as The Joseph T. Connors Senior Center	Ch. A352
05-056	05-18-2005	Peddling, soliciting and canvassing	Ch. 245
05-057	05-18-2005	Designates Road "A" between Whiton and Pine Streets as Dr. George E. Cannon Drive	Ch. A352
05-058	06-08-2005	Redevelopment plan amendment	Ch. A352
05-059	06-08-2005	Franchise agreement	Ch. A352
05-060	06-08-2005	Taxation	Ch. 304
05-061	06-08-2005	Lease agreement	Ch. A352
05-062		Tax cancellation	Withdrawn 05-18-2005
05-063	06-08-2005	Parking lots and public garages	Ch. 236
05-064	06-08-2005	Acquisition	Ch. A352
05-065	06-08-2005	Dedicates the northeast corner of Communipaw Avenue as Fausto "Vale" Valentin Garcia Plaza	Ch. A352
05-066	06-08-2005	Private improvement	Ch. A352
05-067	06-08-2005	Dedicates Luis Marin Boulevard	Ch. A352
05-068	06-08-2005	Bond refund	Ch. A352
05-069	06-08-2005	Vehicles and traffic amendment	Ch. 332
05-070	06-22-2005	Executive orders and ordinances	Ch. A352
05-071	06-22-2005	Lease agreement	Ch. A352
05-072	06-22-2005	Dedicates Our Lady of Mount Carmel Plaza	NCM
05-073	06-22-2005	Streets and sidewalks	Ch. 296
05-074	06-22-2005	Property acquisition	Ch. A352
05-075	06-22-2005	Shade tree commission	Ch. 10
05-076	06-22-2005	Franchise agreement	Ch. A352
05-077	6-22-2005	Franchise agreement	Ch. A352
05-078	06-22-2005	Vehicles and traffic amendment	Ch. 332
05-079		Parking restricted for street cleaning	Withdrawn 06-08-2005
05-80	06-22-2005	Redevelopment plan	Ch. A352
05-081	06-22-2005	Redevelopment plan	Ch. A352
05-082	06-22-2005	Transfer of title	Ch. A352
05-083	06-22-2005	Tax exemption	Ch. A352
05-084	06-22-2005	Tax exemption	Ch. A352
05-085	06-22-2005	Tax exemption	Ch. A352
05-086	06-22-2005	Transfer of ownership interest	Ch. A352
05-087	06-22-2005	Cancellation of tax	Ch. A352
05-088	06-22-2005	Cancellation of tax	Ch. A352
05-089	6-22-2005	Cancellation of tax	Ch. A352
05-090	08-10-2005	Executive orders and ordinances	Ch. A351

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05-091	08-10-2005	Executive orders and ordinances	Ch. A351
05-092	08-10-2005	Tax exemption	Ch. A352
05-093	08-10-2005	Tax exemption	Ch. A352
05-094	08-10-2005	Tax exemption	Ch. A352
05-095	08-10-2005	Tax exemption	Ch. A352
05-096		Tax exemption	Withdrawn 07-13-2005
05-097		Tax exemption	Defeated 10-24-2007
05-098	08-10-2005	Tax exemption	Ch. A352
05-099	08-10-2005	Terminating financial agreement	Ch. A352
05-100	08-10-2005	Terminating financial agreement	Ch. A352
05-101	08-10-2005	Redevelopment plan amendment	Ch. A352
05-102	08-10-2005	Barber shops and beauty parlors	Ch. 99
05-103	08-10-2005	Conveyance	Ch. A352
05-104		Conveyance	Withdrawn 07-13-2005
05-105		Tax exemption	Defeated 09-14-2005
05-106	09-14-2005	Franchise	Ch. A352
05-107		Alcoholic beverages	Withdrawn 8-10-2005
05-108	09-14-2005	Fees and charges	Ch. 160
05-109		Conveyance	Withdrawn 08-10-2005
05-110		Terminating financial agreement	Withdrawn 08-10-2005
05-111		Lease	Withdrawn 08-10-2005
05-112	09-14-2005	Conveyance	Ch. A352
05-113	09-14-2005	Fees and charges	Ch. 160
05-114	09-14-2005	Dedication	Ch. A352
05-115	09-28-2005	Zoning map	Ch. A352
05-116	09-28-2005	Vehicles and traffic	Ch. 332
05-117	09-28-2005	Executive orders and ordinances	Ch. A351
05-118	09-28-2005	Taxicabs and limousines	Ch. 307
05-119	09-28-2005	Terminating financial agreement	Ch. A352
05-120		Tax exemption	Defeated 09-28-2005
05-121	09-28-2005	Tax exemption	Ch. A352
05-122	09-28-2005	Tax exemption	Ch. A352
05-123	09-28-2005	Vehicles and traffic	Ch. 332
05-124		Vehicles and traffic	Defeated 10-11-2006
05-125	09-28-2005	Vehicles and traffic	Ch. 332
05-126	09-28-2005	Vehicles and traffic	Ch. 332
05-127		Alcoholic beverages	Defeated 09-28-2005
05-128	09-28-2005	Vehicles and traffic	Ch. 332
05-129	09-28-2005	Easement	Ch. A352
05-130	09-28-2005	Long term tax exemption	Ch. 304
05-131		Amending Chapter 26 of the Jersey City Code designating Pavonia Av between Washington Blvd and Town Square Ring Rd and Town Square Ring Rd as Town Square Pl	9/14/2005 Withdrawn

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05-131	04-12-2006	Vehicles and traffic	Ch. 332
05-132		Vehicles and traffic	Withdrawn 09-14-2005
05-133		Vehicles and traffic	Expired 06-30-2009
05-134		Vehicles and traffic	Expired 06-30-2009
05-135		Administration and government	Withdrawn 09-14-2005
05-136	09-28-2005	Tax exemption	Ch. A352
05-137		Vehicles and traffic	Defeated 09-28-2005
05-138	10-12-2005	Property acquisition	Ch. A352
05-139	10-12-2005	Redevelopment plan	Ch. A352
05-140	10-12-2005	Dedication	Ch. A352
05-141	10-12-2005	Property transfer	Ch. A352
05-142	10-12-2005	Court, Municipal	Ch. 23
05-143	10-12-2005	Establishing fees for special service charges and special charges under the New Jersey Open Public Records Act	-16O-1.A(11)
05-144	10-12-2005	Alcoholic beverages	Ch. 84
05-145	10-12-2005	Conveyance	Ch. A352
05-046	10-26-2005	Tax exemption	Ch. A352
05-147	10-26-2005	Tax exemption	Ch. A352
05-148	10-26-2005	Lease agreement	Ch. A352
05-149	10-26-2005	Property acquisition	Ch. A352
05-150		Vehicles and traffic	Defeated 10-26-2005
05-151	10-26-2005	Vehicles and traffic	Ch. 332
05-152	10-26-2005	Vehicles and traffic	Ch. 332
05-153		Vehicles and traffic	Withdrawn 10-12-2005
05-154	10-26-2005	Vehicles and traffic	Ch. 332
05-155	10-26-2005	Lease agreement	Ch. A352
05-156	10-26-2005	Easement	Ch. A352
05-157		Vehicles and traffic	Withdrawn 10-26-2005
05-158	11-09-2005	Vehicles and traffic	Ch. 332
05-159		Land development	Defeated 11-09-2005
05-160	11-22-2005	Redevelopment plan	Ch. A352
05-161		Lease	Withdrawn 11-9-2005
05-162	11-22-2005	Vehicles and traffic	Ch. 332
05-163	11-22-2005	Easement	Ch. A352
05-164	11-22-2005	Property conveyance	Ch. A352
05-165	11-22-2005	Vehicles and traffic	Ch. 332
05-166	11-22-2005	Lease agreement	Ch. A352
05-167	11-22-2005	Dedication	Ch. A352
05-168	12-14-2005	Tax exemption	Ch. A352
05-169	12-14-2005	Tax exemption	Ch. A352
05-170	01-11-2006	Land development	Ch. 345
05-171		Land development	Withdrawn 12-14-2005
05-172	01-11-2006	Redevelopment plan amendment	Ch. A352

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05-173	01-11-2006	Tax exemption	Ch. A352
05-174	01-11-2006	Franchise agreement	Ch. A352

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05-175		Land development	Defeated 10-11-2006
05-176	01-11-2006	Land development	Ch. 345
05-177	01-11-2006	Vehicles and traffic	Ch. 332
05-178	01-11-2006	Municipal budget cost of living allowance	NCM
06-001	01-25-2006	Streets and sidewalks	Ch. 296, Art. I
06-002	01-25-2006	Land development	Ch. 345
06-003	04-12-2006	Vehicles and traffic	Ch. 332
06-004	4-12-2006	Vehicles and traffic	Ch. 332
06-005	01-25-2006	Street vacation	Ch. A352
06-006	01-25-2006	Lease agreement	Ch. A352
06-007	02-22-2006	Refunding bond	Ch. A352
06-008	01-25-2006	Lease agreement	Ch. A352
06-009		Department of police	Defeated 10-24-2007
06-010	02-08-2006	Peddling, soliciting and canvassing	Ch. 245, Art. I
06-011	02-08-2006	Street vacation	Ch. A352
06-012	02-08-2006	Street dedication	Ch. A352
06-013	02-22-2006	Franchise	Ch. A352
06-014	02-22-2006	Vehicles and traffic	Ch. 332
06-015		Vehicles and traffic	Defeated 10-11-2006
06-016	02-22-2006	Vehicles and traffic	Ch. 332
06-017	03-08-2006	Tax exemption	Ch. A352
06-018	03-08-2006	Tax exemption	Ch. A352
06-019	02-22-2006	Property conveyance	Ch. A352
06-020	02-22-2006	Redevelopment plan	Ch. A352
06-021	02-22-2006	Redevelopment plan	Ch. A352
06-022	02-22-2006	Property transfer	Ch. A352
06-023	02-22-2006	Tax exemption	Ch. A352
06-024	04-12-2006	Land acquisition	Ch. A352
06-025	03-08-2006	Executive order	Ch. A351
06-026	03-08-2006	Vehicles and traffic	Ch. 332
06-027	03-08-2006	Vehicles and traffic	Ch. 332
06-028		Vehicles and traffic	Tabled 03-08-2006
06-029	03-08-2006	Vehicles and traffic	Ch. 332
06-030		Vehicles and traffic	Withdrawn 02-22-2006
06-031	03-08-2006	Vehicles and traffic	Ch. 332
06-032	03-22-2006	Tax exemption	Ch. A352
06-033	03-22-2006	Lease agreement	Ch. A352
06-034	03-22-2006	Tax exemption	Ch. A352
06-035	03-22-2006	Protecting tropical and temperate rainforests by eliminating municipal purchases of wood products consisting, in whole or part, of tropical or temperate rainforest woods that are not harvested sustainably	3-51.F.3.(p)
06-036	03-22-2006	Lease agreement	Ch. A352
06-037	09-27-2006	Land development	Ch. 345
06-038	03-22-2006	Vehicles and traffic	Ch. 332
06-039	04-12-2006	Redevelopment plan	Ch. A352
06-040	04-12-2006	Redevelopment plan	Ch. A352
06-041		Multiple dwellings	Defeated 04-12-2006

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06-042		Food handling establishments	Withdrawn 03-22-2006
06-043	04-12-2006	Redevelopment plan	Ch. A352
06-044	04-12-2006	Redevelopment plan	Ch. A352
06-045	04-12-2006	Redevelopment plan	Ch. A352
06-046	04-12-2006	Redevelopment plan	Ch. A352
06-047	04-12-2006	Redevelopment plan	Ch. A352
06-048	04-13-2006	Tax exemption	Ch. A352
06-049	04-13-2006	Tax exemption	Ch. A352
06-050	07-19-2006	Agreement to transfer utilities and easement	Ch. A352
06-051	04-26-2006	Tax exemption	Ch. A352
06-052	04-26-2006	Redevelopment plan	Ch. A352
06-053		Zoning amendment	Withdrawn 04-12-2006
06-054	04-26-2006	Tax exemption	Ch. A352
06-055	04-26-2006	Street designation	Ch. A352
06-056	04-26-2006	Multiple dwellings	Ch. 218
06-057	05-10-2006	Refunding bond	Ch. A352
06-058	05-10-2006	Executive orders and ordinances	Ch. A351
06-059	05-10-2006	Vehicles and traffic	Ch. 332
06-060	05-10-2006	Executive orders and ordinances	Ch. A351
06-061		Vehicles and traffic	Withdrawn 04-26-2006
06-062	05-10-2006	Street naming	NCM
06-063	05-10-2006	Street naming	NCM
06-064	05-10-2006	Food handling establishments	Ch. 175
06-065	05-24-2006	Redevelopment plan	Ch. A352
06-066	5-24-2006	Vehicles and traffic	Ch. 332
06-067	05-24-2006	Vehicles and traffic	Ch. 332
06-068	05-24-2006	Tax exemption	Ch. A352
06-069	05-24-2006	Street dedication	NCM
06-070		Street lease	Tabled 06-14-2006
06-071	06-14-2006	Multiple dwellings	Ch. 218
06-072	06-14-2006	Redevelopment plan	Ch. A352
06-073	06-14-2006	Firearms and weapons	Ch. 163
06-074		Firearms and weapons	Defeated 06-14-2006
06-075		Firearms and weapons	Defeated 06-14-2006
06-076	06-28-2006	Property transfer	Ch. A352
06-077	06-28-2006	Amending Ch. 26, vehicles and traffic	Disapproved by N.J.D.O.T. 11-01-2006
06-078		Street rename	Defeated 6-14-2006
06-079		Redevelopment plan	Defeated 6-28-2006
06-080	06-28-2006	Administration of government	Ch. 3
06-081		Firearms and weapons	Defeated 6-28-2006
06-082	06-28-2006	Firearms and weapons	Ch. 163
06-083	07-19-2006	Flood damage prevention	Ch. 172
06-084	07-19-2006	Street vacation	Ch. A352
06-085	07-19-2006	Water	Ch. 337
06-086	07-19-2006	Vehicles and traffic	Ch. 332

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06-087	07-19-2006	Redevelopment plan amendment	Ch. A352
06-088	07-19-2006	Tax exemption	Ch. A352
06-089	08-16-2006	Street vacation	Ch. A352
06-090	08-16-2006	Zoning	Ch. 345
06-091		Zoning amendment	Defeated 10-11-2006
06-092	08-16-2006	Redevelopment plan	Ch. A352
06-093	08-16-2006	Tax exemption	Ch. A352
06-094	08-16-2006	Vehicles and traffic	Ch. 332
06-095	08-16-2006	Property transfer	Ch. A352
06-096	04-25-2007	Dedication	Ch. A352
06-097	08-16-2006	Redevelopment plan	Ch. A352
06-098	08-16-2006	Fees and charges	Ch. 160
06-099	9-13-2006	Hotel occupancy tax	Ch. 304
06-100	09-13-2006	Redevelopment plan	Ch. A352
06-101		Redevelopment plan	Withdrawn 08-16-2006
06-102	09-13-2006	Tax exemption	Ch. A352
06-103	09-13-2006	Land lease	Ch. A352
06-104	09-13-2006	Street designation	Ch. A352
06-105	09-13-2006	Franchise agreement	Ch. A352
06-106	09-13-2006	General improvement bond	Ch. A352
06-107	09-13-2006	General improvement bond	Ch. A352
06-108	09-13-2006	Fees and charges	Ch. 160
06-109	09-27-2006*	Vehicles and traffic	*VETOED 10-04-2006
06-110	09-27-2006	Lease	Ch. A352
06-111	09-27-2006	Vehicles and traffic	Ch. 332
06-112	12-13-2006	Tax exemption	Ch. A352
06-113	09-27-2006	Executive orders and ordinances	Ch. A351
06-114	09-27-2006	Budget appropriations	NCM
06-115	10-11-2006	Lease agreement	Ch. A352
06-116	10-11-2006	Firearms and weapons	Ch. 163
06-117	10-11-2006	Executive orders and ordinances	Ch. A351
06-118	10-11-2006	Redevelopment plan	Ch. A352
06-119	10-11-2006	Tax exemption	Ch. A352
06-120	10-11-2006	Tax exemption	Ch. A352
06-121	10-11-2006	Tax exemption	Ch. A352
06-122		Tax exemption	Withdrawn 9-27-2006
06-123	10-11-2006	Tax exemption	Ch. A352
06-124		Tax exemption	Withdrawn 9-27-2006
06-125	10-11-2006	Vehicles and traffic	Ch. 332
06-126	10-11-2006	Street designation	Ch. A352
06-127	10-25-2006	Acquisition of easement	Ch. A352
06-128	10-25-2006	Lease agreement	Ch. A352
06-129	11-08-2006	Redevelopment plan	Ch. A352
06-130	11-08-2006	Property tax refund	Ch. A352
06-131	11-08-2006	Land development	Ch. 345
06-132	11-08-2006	Redevelopment plan	Ch. A352
06-133	11-08-2006	Vehicles and traffic	Ch. 332
06-134	11-08-2006	Vehicles and traffic	Ch. 332
06-135	11-21-2006	Abandoned property list	Ch. A352

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06-136	11-21-2006	Redevelopment plan	Ch. A352
06-137	11-21-2006	Executive orders and ordinances	Ch. A351
06-138	11-21-2006	Quitclaim deed	Ch. A352
06-139	11-21-2006	Tax exemption	Ch. A352
06-140	11-21-2006	Tax exemption	Ch. A352
06-141	11-21-2006	Tax exemption	Ch. A352
06-142	11-21-2006	Tax exemption	Ch. A352
06-143	11-21-2006	Tax abatement	Ch. A352
06-144	11-21-2006	Long term tax exemptions	Ch. 304
06-145	11-21-2006	Sex offender residency restriction	Ch. 282
06-146	12-13-2006	Redevelopment plan	Ch. A352
06-147	12-13-2006	Vehicles and traffic	Ch. 332
06-148	12-13-2006	Vehicles and traffic	Ch. 332
06-149	12-13-2006	Vehicles and traffic	Ch. 332
06-150	12-13-2006	Vehicles and traffic	Ch. 332
06-151	12-13-2006	Vehicles and traffic	Ch. 332
06-152		Vehicles and traffic	Expired 06-30-2009
06-153	12-13-2006	Vehicles and traffic	Ch. 332
06-154	12-13-2006	Vehicles and traffic	Ch. 332
06-155	12-13-2006	Vehicles and traffic	Ch. 332
06-156	12-13-2006	Tax exemption	Ch. A352
06-157	12-13-2006	Tax exemption	Ch. A352
06-158	12-13-2006	Tax exemption	Ch. A352
06-159	12-13-2006	Tax exemption	Ch. A352
06-160	12-13-2006	Tax exemption	Ch. A352
06-161	12-13-2006	Tax exemption	Ch. A352
06-162	12-13-2006	Vehicles and traffic	Ch. 332
06-163	01-24-2007	Zoning	Ch. A345
06-164	01-10-2007	Private improvements	Ch. A352
06-165	01-10-2007	Private improvements	Ch. A352
06-166	01-10-2007	Redevelopment plan	Ch. A352
06-167		Bonds	Withdrawn 12-13-2006
06-168	01-10-2007	Lease agreement	Ch. A352
07-001	01-24-2007	Department of Public Works	Ch. 3
07-002	01-24-2007	Fees and charges	Ch. 160
07-003	01-24-2007	Property sale	Ch. A352
07-004	01-24-2007	Tax exemption	Ch. A352
07-005		Vehicles and traffic	Expired 06-30-2009
07-006	01-24-2007	Vehicles and traffic	Ch. 332
07-007	02-14-2007	Redevelopment plan	Ch. A352
07-008	01-24-2007	Tax exemption	Ch. A352
07-009	01-24-2007	Zoning	Ch. A345
07-010	02-14-2007	Property transfer	Ch. A352
07-011	02-14-2007	Franchise	Ch. A352
07-012	02-14-2007	Zoning	Ch. A345
07-013		Campaign reform for redevelopment contracts	Defeated 01-24-2007
07-014	02-14-2007	Vehicles and traffic	Ch. 332
07-015	02-14-2007	Vehicles and traffic	Ch. 332
07-016	02-14-2007	Vehicles and traffic	Ch. 332

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07-017	02-14-2007	Vehicles and traffic	Ch. 332
07-018	02-28-2007	Redevelopment plan	Ch. A352
07-019	02-28-2007	Redevelopment plan	Ch. A352
07-020	02-28-2007	Redevelopment plan	Ch. A352
07-021	02-28-2007	Property transfer	Ch. A352
07-022	02-28-2007	Vehicles and traffic	Ch. 332
07-023	02-28-2007	Redevelopment plan	Ch. A352
07-024	02-28-2007	Vehicles and traffic	Ch. 332
07-025	02-28-2007	Amending Ch. 26, vehicles and traffic	Disapproved by N.J.D.O.T. 01-31-2008
07-026	02-28-2007	Executive orders and ordinances	Ch. A351
07-027	02-28-2007	Lease agreement	Ch. A352
07-028		Construction contracts	Defeated 10-24-2007
07-029	03-14-2007	Property transfer	Ch. A352
07-030	03-14-2007	Vehicles and traffic	Ch. 332
07-031	03-14-2007	Vehicles and traffic	Ch. 332
07-032	03-14-2007	Taxation	Ch. 304
07-033	03-14-2007	Lease agreement	Ch. A352
07-034	03-14-2007	Property transfer	Ch. A352
07-035	03-14-2007	Land development	Ch. 345
07-036	03-14-2007	Land development	Ch. 345
07-037	03-14-2007	Redevelopment plan	Ch. A352
07-038	03-14-2007	Redevelopment plan	Ch. A352
07-039	03-14-2007	Redevelopment plan	Ch. A352
07-040	03-14-2007	Redevelopment plan	Ch. A352
07-041		Redevelopment plan	Withdrawn 02-28-2007
07-042	03-14-2007	Redevelopment plan	Ch. A352
07-043	03-14-2007	Bonds	Ch. A352
07-044	03-14-2007	Bonds	Ch. A352
07-045	03-14-2007	Bonds	Ch. A352
07-046	03-28-2007	Executive orders and ordinances	Ch. A351
07-047	03-28-2007	Executive orders and ordinances	Ch. A351
07-048	03-28-2007	Executive orders and ordinances	Ch. A351
07-049	03-28-2007	Tax exemption	Ch. A352
07-050		Redevelopment plan	Withdrawn 03-14-2007
07-051	03-28-2007	Lease agreement	Ch. A352
07-052	03-28-2007	Tax exemption	Ch. A352
07-053	03-28-2007	Vehicles and traffic	Ch. 332
07-054	03-28-2007	Lease agreement	Ch. A352
07-055	04-11-2007	Property transfer	Ch. A352
07-056	04-11-2007	Stormwater control	Ch. 345
07-057	04-11-2007	Lease agreement	Ch. A352
07-058	04-11-2007	Tax exemption	Ch. A352
07-059	04-11-2007	Tax exemption	Ch. A352
07-060		Tax exemption	Withdrawn 03-28-2007
07-061	04-11-2007	Street dedication	Ch. A352
07-062	04-25-2007	Redevelopment plan	Ch. A352
07-063	04-25-2007	Land development	Ch. 345
07-064	04-25-2007	Land development	Ch. 345
07-065	05-23-2007	Land development	Ch. 345

Ordinance Number	Date of Adoption	Description	Disposition
07-066	04-25-2007	Franchise agreement	Ch. A352
07-067		Street vacation	Defeated 10-24-2007
07-068	04-25-2007	Vehicles and traffic	Ch. 332
07-069	04-25-2007	Vehicles and traffic	Ch. 332
07-070	04-25-2007	Executive orders and ordinances	Ch. A351
07-071	04-25-2007	Property acquisition	Ch. A352
07-072	04-25-2007	Lease agreement	Ch. A352
07-073	04-25-2007	Fees and charges	Ch. 160
07-074	04-25-2007	Tax exemption	Ch. A352
07-075	04-25-2007	Vehicles and traffic	Ch. 332
07-076	05-09-2007	Alcoholic beverages	Ch. 84
07-077	05-09-2007	Lease agreement	Ch. A352
07-078	05-09-2007	Executive orders and ordinances	Ch. A351
07-079	05-09-2007	Vehicles and traffic	Ch. 332
07-080	05-09-2007	Vehicles and traffic	Ch. 332
07-081	05-09-2007	Vehicles and traffic	Ch. 332
07-082	05-09-2007	Vehicles and traffic	Ch. 332
07-083		Vehicles and traffic	Expired 06-30-2009
07-084	05-09-2007	Vehicles and traffic	Ch. 332
07-085	05-09-2007	Vehicles and traffic	Ch. 332
07-086	05-09-2007	Dedication	Ch. A352
07-087		Redevelopment plan	Withdrawn 04-25-2007
07-088	05-09-2007	Refunding bond	Ch. A352
07-089	05-09-2007	Property acquisition	Ch. A352
07-090	05-09-2007	Tax exemption	Ch. A352
07-091	05-23-2007	Lease agreement	Ch. A352
07-092	05-23-2007	Franchise agreement	Ch. A352
07-093	05-23-2007	Condominium transfer	Ch. A352
07-094	05-23-2007	Vehicles and traffic	Ch. 332
07-095	06-13-2007	Fees and charges	Ch. 160
07-096	06-13-2007	Easement	Ch. A352
07-097	06-13-2007	Tax exemption	Ch. A352
07-098	06-13-2007	Redevelopment plan	Ch. A352
07-099	06-13-2007	Redevelopment plan	Ch. A352
07-100	06-13-2007	Redevelopment plan	Ch. A352
07-101	06-13-2007	Land development	Ch. 345
07-102		Land development	Withdrawn 05-23-2007
07-103	06-13-2007	Land development	Ch. 345
07-104	06-13-2007	Construction agreement	Ch. A352
07-105	06-13-2007	Deed conveyance	Ch. A352
07-106	06-13-2007	Vehicles and traffic	Ch. 332
07-107	06-27-2007	Executive orders and ordinances	Ch. A351
07-108	06-27-2007	Elevators	Repeals Ch. 155
07-109	06-27-2007	Redevelopment plan	Ch. A352
07-110	06-27-2007	Redevelopment plan	Ch. A352
07-111	06-27-2007	Redevelopment plan	Ch. A352
07-112	06-27-2007	Land acquisition	Ch. A352
07-113	06-27-2007	Vehicles and traffic	Ch. 332
07-114	06-27-2007	Amending Ch. 26, vehicles and traffic	Disapproved by N.J.D.O.T. 02-29-2008

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07-115	06-27-2007	Vehicles and traffic	Ch. 332
07-116	06-27-2007	Vehicles and traffic	Ch. 332
07-117	06-27-2007	Dedication	Ch. A352
07-118	06-27-2007	Dedication	Ch. A352
07-119	06-27-2007	Land acquisition	Ch. A352
07-120	06-27-2007	Executive orders and ordinances	Ch. A351
07-121	06-27-2007	Administration of government	Ch. 3
07-122	06-27-2007	Entertainment and dance licenses	Ch. 157
07-123	06-27-2007	Requiring apprenticeships and project labor agreements on certain public construction contracts and construction contracts for which a tax abatement has been granted	Added 304-33 304-38
07-124	07-18-2007	Executive orders and ordinances	Ch. A351
07-125	07-18-2007	Executive orders and ordinances	Ch. A351
07-126		Tax exemption	Withdrawn 06-27-2007
07-127	07-18-2007	Tax exemption	Ch. A352
07-128	07-18-2007	Property transfer	Ch. A352
07-129	07-18-2007	Administration of government	Ch. 3
07-130	07-18-2007	Vehicles and traffic	Ch. 332
07-131	08-08-2007	Redevelopment plan	Ch. A352
07-132	08-08-2007	Sewers	Ch. 281
07-133	08-08-2007	Land development	Ch. 345
07-134	08-08-2007	Executive orders and ordinances	Ch. A351
07-135	08-08-2007	Vacation	Ch. A352
07-136	08-08-2007	Lease agreement	Ch. A352
07-137	08-08-2007	Tax exemption	Ch. A352
07-138	08-08-2007	Property transfer and development agreement	Ch. A352
07-139	09-11-2007	Tax exemption	Ch. A352
07-140	08-22-2007	Dedication	Ch. A352
07-141	08-22-2007	Redevelopment plan	Ch. A352
07-142	08-22-2007	Redevelopment plan	Ch. A352
07-143	08-22-2007	Executive orders and ordinances	Ch. A351
07-144	08-22-2007	Executive orders and ordinances	Ch. A351
07-145	08-22-2007	Vehicles and traffic	Ch. 332
07-146	08-22-2007	Taxation	Ch. 304
07-147	08-22-2007	Tax exemption	Ch. A352
07-148	08-22-2007	Tax exemption	Ch. A352
07-149	08-22-2007	Tax exemption	Ch. A352
07-150	08-22-2007	Lease agreement	Ch. A352
07-151	08-22-2007	Lease agreement	Ch. A352
07-152	08-22-2007	Dedication	Ch. A352
07-153	09-11-2007	Street vacation	Ch. A352
07-154	09-11-2007	Lease agreement	Ch. A352
07-155	09-11-2007	Property transfer	Ch. A352
07-156	09-11-2007	Land development	Ch. 345
07-157	09-11-2007	Vehicles and traffic	Ch. 332
07-158	09-11-2007	Administration of government	Ch. 3
07-159	09-26-2007	Property transfer	Ch. A352
07-160	09-26-2007	Vehicles and traffic	Ch. 332
07-161	09-26-2007	Lease agreement	Ch. A352
07-162	09-22-2007	Bonds	Ch. A352
07-163	10-10-2007	Executive orders and ordinances	Ch. A351

Ordinance Number	Date of Adoption	Description	Disposition
07-164	10-24-2007	Property mortgage transfer	Ch. A352
07-165	10-24-2007	Private improvements	Ch. A352
07-166	10-24-2007	Vehicles and traffic	Ch. 332
07-167	10-24-2007	Acquisition of property	Ch. A352
07-168	10-24-2007	Animals	Ch. 90
07-169	10-24-2007	Lease agreement	Ch. A352
07-170	10-24-2007	Executive orders and ordinances	Ch. A351
07-171	10-24-2007	Dedication	Ch. A352
07-172	10-24-2007	Vehicles and traffic	Ch. 332
07-173		Administration of government (See Ordinance 07-182)	Withdrawn 10-24-2007
07-174	11-07-2007	Property acquisition	Ch. A352
07-175	11-28-2007	Vehicles and traffic	Ch. 332
07-176		Vehicles and traffic	Expired 06-30-2009
07-177	03-26-2008	Vehicles and traffic	Ch. 332
07-178	11-28-2007	Vehicles and traffic	Ch. 332
07-179	11-28-2007	Property transfer	Ch. A352
07-180	11-28-2007	Property transfer	Ch. A352
07-181	11-28-2007	Lease agreement	Ch. A352
07-182	11-28-2007	Administration of government	Ch. 3
07-183	12-19-2007	Street vacation	Ch. A352
07-184	12-19-2007	Vehicles and traffic	Ch. 332
07-185	12-19-2007	Vehicles and traffic	Ch. 332
07-186	01-09-2008	Dedication	Ch. A352
07-187	01-09-2008	Dedication	Ch. A352
07-188	01-09-2008	Property transfer	Ch. A352
07-189	01-09-2008	Tax exemption	Ch. A352
07-190	01-09-2008	Tax abatement	Ch. A352
07-191	01-09-2008	Lease agreement	Ch. A352
07-192	01-09-2008	Pool rooms	Ch. 248
08-001	01-23-2008	Private improvements	Ch. A352
08-002	01-23-2008	Executive orders and ordinances	Ch. A351
08-003	01-23-2008	Court, Municipal	Ch. 23
08-004		Vehicles and traffic	Withdrawn 01-23-2008
08-005		Vehicles and traffic	Tabled 02-23-2008
08-006	02-13-2008	Vehicles and traffic	Ch. 332
08-007	02-13-2008	Redevelopment plan	Ch. A352
08-008	02-13-2008	Lease agreement	Ch. A352
08-009		Tax abatement	Defeated 01-23-2008
08-010		Tax abatement	Defeated 01-23-2008
08-011	02-13-2008	Tax exemption	Ch. A352
08-012	02-13-2008	Vehicles and traffic	Ch. 332
08-013	03-26-2008	Acquisition of property	Ch. A352
08-014	02-27-2008	Tax cancellation	Ch. A352
08-015	02-27-2008	Acquisition of property	Ch. A352
08-016	02-27-2008	Dedication	Ch. A352
08-017	03-12-2008	Executive orders and ordinances	Ch. A351
08-018	03-12-2008	Property transfer	Ch. A352
08-019	03-12-2008	Acquisition of property	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
08-020	03-12-2008	Acquisition of property	Ch. A352
08-021	03-12-2008	Vehicles and traffic	Ch. 332
08-022	03-12-2008	Budget appropriations	NCM
08-023	03-12-2008	Land development	Ch. 345
08-024	03-12-2008	Land development	Ch. 345
08-025	03-12-2008	Redevelopment plan	Ch. A352
08-026		Terminating financial agreement	Withdrawn 02-27-2008
08-027		Tax abatement	Withdrawn 02-27-2008
08-028	03-12-2008	Property transfer	Ch. A352
08-029	03-26-2008	Redevelopment plan	Ch. A352
08-030	03-26-2008	Parks	Ch. 239
08-031	03-26-2008	Lease agreement	Ch. A352
08-032	03-26-2008	Tax exemption for affordable housing	Ch. A352
08-033		Vehicles and traffic	Withdrawn 03-12-2008
08-034	03-26-2008	Property transfer	Ch. A352
08-035	03-26-2008	Construction agreement	Ch. A352
08-036	03-26-2008	Vehicles and traffic	Ch. 332
08-037		Vehicles and traffic	Expired 06-30-2009
08-038	03-26-2008	Vehicles and traffic	Ch. 332
08-039	04-09-2008	Redevelopment plan	Ch. A352
08-040	04-09-2008	Executive orders and ordinances	Ch. A351
08-041	04-09-2008	Renaming Pershing Plaza as Howie Fink Way	NCM
08-042	04-09-2008	Administration of government amendment; numbering of buildings amendment	Ch. 3, Arts. VI and VIII; Ch. 108
08-043	04-23-2008	Redevelopment plan	Ch. A352
08-044	04-23-2008	Transfer of property	Ch. A352
08-045	04-23-2008	Fees and charges amendment	Ch. 160
08-046	04-23-2008	Zoning amendment	Ch. 345, Art. IV
08-047	04-23-2008	Administration of government amendment	Ch. 3, Art. XIII
08-048	04-23-2008	Health and sanitation	Ch. 182
08-049	04-23-2008	Dedication	Ch. A352
08-050	05-14-2008	Refunding bond	Ch. A352
08-051	04-23-2008	Acceptance of gift	NCM
08-052	04-23-2008	Dedication	Ch. A352
08-053	05-14-2008	Redevelopment plan	Ch. A352
08-054	05-14-2008	Executive orders and ordinances	Ch. A351
08-055	05-14-2008	Vehicles and traffic	Ch. 332
08-056	05-14-2008	Amending Ch. 26, vehicles and traffic	Disapproved by N.J.D.O.T. 08-04-2008
08-057	05-14-2008	Tax abatement	Ch. A352
08-058	05-14-2008	Tax abatement	Ch. A352
08-059	05-14-2008	Acceptance of dedication of property	Ch. A352
08-059A	05-28-2008	Redevelopment plan	Ch. A352
08-060	05-28-2008	Redevelopment plan	Ch. A352
08-061	05-28-2008	Transfer of property	Ch. A352
08-062	05-28-2008	Tax exemption	Ch. A352
08-063	05-28-2008	Terminating financial agreement	Ch. A352
08-064		Administrative code	Withdrawn 05-14-2008

Ordinance Number	Date of Adoption	Description	Disposition
08-065	05-28-2008	Establishing a traffic control signal monitoring system (red light cameras)	Ch. 332
08-066	05-28-2008	Circuses, carnivals and public assemblages amendment	Ch. 122
08-067	05-28-2008	Vehicles and traffic	Ch. 332
08-068	05-28-2008	Vehicles and traffic	Ch. 332
08-069	05-28-2008	Vehicles and traffic	Ch. 332
08-070	05-28-2008	Vehicles and traffic	Ch. 332
08-071	05-28-2008	Vehicles and traffic	Ch. 332
08-072	05-28-2008	Zoning amendment	Ch. 345, Arts. IV and V
08-073		Land development	Withdrawn 05-14-2008
08-074	05-28-2008	Tax exemption	Ch. A352
08-075	06-11-2008	Dedication	Ch. A352
08-076		Vehicles and traffic	Withdrawn 05-24-2008
08-077	06-11-2008	Vehicles and traffic	Ch. 332
08-078	06-11-2008	Vehicles and traffic	Ch. 332
08-079	06-11-2008	Land development	Ch. 345
08-080	06-25-2008	Executive orders and ordinances	Ch. A351
08-081	06-25-2008	Redevelopment plan	Ch. A352
08-082	06-25-2008	Redevelopment plan	Ch. A352
08-083	06-25-2008	Redevelopment plan	Ch. A352
08-084	06-25-2008	Redevelopment plan	Ch. A352
08-085		Redevelopment plan	Defeated 06-25-2008
08-086	06-25-2008	Redevelopment plan	Ch. A352
08-087	06-25-2008	Dedication	Ch. A352
08-088	06-25-2008	Vehicles and traffic	Ch. 332
08-089	06-25-2008	Financial agreement	Ch. A352
08-090	06-25-2008	Tax abatement	Ch. A352
08-091	06-25-2008	Vehicles and traffic	Ch. 332
08-092	06-25-2008	Administration of government amendment	Ch. 3, Art. VI
08-093	06-25-2008	Towers and towing amendment	Ch. 319
08-094	07-16-2008	Acquisition of property	Ch. A352
08-095	07-16-2008	Tax cancellation	Ch. A352
08-096	07-16-2008	Lease agreement	Ch. A352
08-097	07-16-2008	Vehicles and traffic	Ch. 332
08-098	07-16-2008	Solid waste amendment	Ch. 287, Arts. IV and V
08-099	08-06-2008	Redevelopment plan	Ch. A352
08-100	08-06-2008	Uniform construction codes amendment	131-1
08-101	08-06-2008	Vehicles and traffic	Ch. 332
08-102	08-06-2008	Vehicles and traffic	Ch. 332
08-103	08-06-2008	Executive orders and ordinances	Ch. A351
08-104	08-06-2008	Redevelopment plan	Ch. A352
08-105	09-10-2008	Municipal Court amendment	Ch. 23
08-106	08-06-2008	Tax exemption	Ch. A352
08-107	08-06-2008	Franchise	Ch. A352
08-108		Administration of government	Expired 06-30-2009
08-109	08-20-2008	Agreement	Ch. A352
08-110	08-20-2008	Taxicabs and limousines amendment	Ch. 307, Art. I
08-111	08-20-2008	Redevelopment plan	Ch. A352
08-112	08-20-2008	Executive orders and ordinances	Ch. A351

Ordinance Number	Date of Adoption	Description	Disposition
08-113	08-20-2008	Property transfer	Ch. A352
08-114		Vehicles and traffic	Withdrawn 08-06-2008
08-115	08-20-2008	Vehicles and traffic	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
08-116	08-20-2008	Vehicles and traffic	Ch. 332
08-117		Terminating financial agreement	Expired 06-30-2009
08-118	08-20-2008	Terminating financial agreement	Ch. A352
08-119	08-20-2008	Tax exemption	Ch. A352
08-120	09-24-2008	Redevelopment plan	Ch. A352
08-121	09-10-2008	Redevelopment plan	Ch. A352
08-122	09-10-2008	Lease agreement	Ch. A352
08-123	09-10-2008	Property transfer	Ch. A352
08-124	09-10-2008*	Vehicles and traffic; prohibited turning movements	*VETOED 09-16-2008
08-125	09-10-2008	Vehicles and traffic	Ch. 332
08-126	09-10-2008	Personnel amendment	Ch. 53
08-127	09-10-2008	Dedication	Ch. A352
08-128	09-03-2008	Administration of government amendment	Ch. 3
08-129		Zoning amendment	Expired 06-30-2009
08-130		Entertainment and dance licenses amendment	Expired 06-30-2009
08-131		NJCU West Campus Redevelopment Plan	Withdrawn 09-10-2008
08-132	09-24-2008	Redevelopment plan	Ch. A352
08-133	09-24-2008	Tax exemption	Ch. A352
08-134		Amended Financial Agreement Criterion Urban Renewal Company, LLC approved by Ord. 06-156; conversion from condo, to rental project	Defeated 09-24-2008
08-135		Amended Financial Agreement; Hague Urban Renewal Company approved by Ord. 06-157; conversion from condo to rental project	Defeated 09-24-2008
08-136		Financial agreement	Defeated 09-24-2008
08-137		Financial agreement	Defeated 09-24-2008
08-138		Financial agreement	Defeated 09-24-2008
08-139		Financial agreement	Defeated 09-24-2008
08-140	09-24-2008	Property maintenance amendment	Ch. 254
08-141	10-07-2008	Easement	Ch. A352
08-142	10-07-2008	Redevelopment plan	Ch. A352
08-143	10-07-2008	Private improvements	Ch. A352
08-144		Designating Saint John's Episcopal Church and Rectory as a municipal landmark	Expired 06-30-2009
08-145	10-22-2008	Redevelopment plan	Ch. A352
08-146	10-22-2008	Vehicles and traffic	Ch. 332
08-147	10-22-2008	Dedication	Ch. A352
08-148	11-12-2008	Bonds	Ch. A352
08-149	11-12-2008	Lease agreement	Ch. A352
08-150	11-12-2008	Lease agreement	Ch. A352
08-151	11-12-2008	Private improvements	Ch. A352
08-152	11-12-2008	Vehicles and traffic	Ch. 332
08-153	11-12-2008	Vehicles and traffic	Ch. 332
08-154	11-25-2008	Administration of government amendment	Ch. 3
08-155	11-12-2008	Executive orders and ordinances	Ch. A351
08-156	11-25-2008	Redevelopment plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
08-157	11-25-2008	Redevelopment plan	Ch. A352
08-158	11-25-2008	Redevelopment plan	Ch. A352
08-159	11-25-2008	Stormwater control amendment	Pending
08-160	11-25-2008	Redevelopment plan	Ch. A352
08-161	11-25-2008	Private improvements	Ch. A352
08-162	11-25-2008	Acceptance of gift of the property described as the Open Space AOC Area in the Consent Decree regarding the Remediation and Redevelopment of Study Area 6 South in JCMUA v. Honeywell, JCIA v. Honeywell and Hackensack Riverkeeper v. Honeywell, and in the alternative, authorizing and option to buy such property	NCM
08-163		Renaming Morgan Street as Trump Plaza	Defeated 11-25-2008
08-164	11-25-2008	Tax exemption	Ch. A352
08-165	11-25-2008	Tax exemption	Ch. A352
08-166	11-25-2008	Tax exemption	Ch. A352
08-167	11-25-2008	Vehicles and traffic	Ch. 332
08-168	11-25-2008	Administration of government amendment	Ch. 3, Art. XI
08-169	12-17-2008	Redevelopment plan	Ch. A352
08-170	12-17-2008	Redevelopment plan	Ch. A352
08-171		Redevelopment plan	Defeated 11-25-2008
08-172	12-17-2008	Property transfer	Ch. A352
08-173	01-14-2009	Supplementing Chapter 332(Vehicles and Traffic) Article Xl(Schedules) of the Jersey City Code amending Schedule XVI(Parking Prohibited During Certain Hours, Daily, Except Saturdays, Sundays and Holidays) designating 22 feet on the east side of Arlington Avenue south of Wilkinson Avenue as no parking Monday through Friday, 8:00 a.m. to 5:00 p.m.	Ch. 332
08-174		Administration of government amendment	Withdrawn 12-17-2008
08-175		Administration of government amendment	Withdrawn 12-17-2008
08-176		Adopting sustainable Green Building Standards	Withdrawn 12-17-2008
08-177		Creating incentives for voluntary compliance with sustainable Green Building Standards	Withdrawn 12-17-2008
08-178	01-14-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) Schedule 25 (Parking for the Disabled) of the Jersey City Code designating a reserved parking space at 7 Apollo Street; 165 Cator Avenue; 9-11 Crossgate Road; 315 Pearsall Avenue; 119 Sterling Avenue and 32 Wright Avenue and amend the reserved parking space at 23 Bayview Avenue	Ch. 332
09-001	01-28-2009	Adopting sustainable green building standards for city-owned buildings and municipal projects in the City of Jersey City	180-1—180-3
09-002	01-28-2009	Creating incentives for voluntary compliance with sustainable green building standards in the City of Jersey City	180-4
09-003	01-28-2009	Amending Chapter 3 (Administration of Government), Article VI (Department of Administration), of the City of Jersey City Code to include a requirement for the purchase of green products and materials whenever feasible	3-51 F.(3)

Ordinance Number	Date of Adoption	Description	Disposition
09-004	01-28-2009	Amending Chapter 3 (Administration of Government) Article VI (Department of Administration), of the City of Jersey City Code to include a requirement for the purchase of green vehicles	3-51 F.(4)
09-005	01-28-2009	Terminating the financial agreement and prepayment agreement between the City of Jersey City and Laidlaw Properties Urban Renewal, LLC, for failure to pay prepayment or satisfy the conditions of Ordinance 05-012	Ch. A352
09-006	01-28-2009	Amending the Morris Canal Redevelopment Plan by removing lands south of the Light Rail R-O-W from the Morris Canal Area, re-naming them as the Canal Crossing Redevelopment Plan Area and adopting new standards to guide their redevelopment	Ch. A352
09-007	01-28-2009	Authorizing the City of Jersey City to lease on-street parking spaces in the Christopher Columbus Drive Permit Parking Zone from the Jersey City Parking Authority	Ch. A352
09-008	01-28-2009	Dedicating the south west comer of Academy and Baldwin Avenues to also be known as Frank Roman Way	Ch. A352
09-009		Supplementing Chapter 332 (Vehicles and Traffic) of the Jersey City Code Article VII (Metered Parking) amending the hours for tandem parking from (6:00 a.m. to 7:00 p.m.) to (6:00 a.m. to 5:00 p.m.) and supplementing Article VIII (Permit Parking Zones) amending the hours for two (2) hour restricted residential Permit Parking Program from (8:00 a.m. to 5:00 p.m.) to (8:00 a.m. to 7:00 p.m.); establishing a four (4) hour residential parking permit for city residents; establishing 500 feet as the minimum distance a vehicle must be moved to reactivate the two (2) hour parking provision; provide for the City Clerk to administer daily visitors parking permits; establish guidefines for the placement of the vehicle immobilization device (Boot) and establish guidelines as to when the fee for the vehicle immobilization device (Boot) shall be refunded by the Jersey City Parking Authority	Withdrawn 01-14-2009
09-010	02-11-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) Schedule 25 (Parking for the Disabled) of the Jersey City Code designating a reserved parking space at 85 Arlington Avenue; 86-88 Arlington Avenue; 90 Duncan Avenue; 100 Grant Avenue; 283 Stegman Parkway and 20 Stevens Avenue and repeal the reserved parking space at 122 Fowler Avenue and 217-219 Winfield Avenue	Ch. 332
09-011	02-11-2009	Amending Ordinance 08-028 to approve the fair market value of certain property to be conveyed to the Department of Transportation for improvements to Route 1 & 9, and St. Paul's Avenue Bridge, and remove Block 640, Lot 108,10 Cover Street from the property to be conveyed	Ch. A352
09-011A	02-28-2009	State fiscal year 2009 ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	NCM
09-012		Adopting the Greater Journal Square Redevelopment Plan	Expired 06-30-2009
09-013		Adopting a revised Grand Jersey Redevelopment Plan	Withdrawn 02-11-2009
09-014	02-25-2009	Authorizing the transfer of city-owned property within the Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
09-015	02-25-2009	Authorizing the transfer of city-owned property within the Monticello Avenue Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
09-016	02-25-2009	Authorizing a one (1) year extension of the lease with Essex Plaza Management, L.L.C., for a portion of 361 Montgomery Street for use by the city as a senior citizen center	Ch. A352
09-017	02-25-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) of the Jersey City Code amending Schedule XVI (Parking Prohibited During Certain Hours, Daily, Except Saturdays, Sundays and Holidays) designating 25 feet on the east side of Nelson Avenue, north of J.F. Kennedy Boulevard, as no parking school days, 7:30 a.m. to 4:00 p.m.	Ch. 332
09-018	02-25-2009	Approving a 30 year tax exemption for a moderate income and market rate housing project to be constructed by the Whiton Street Associates, LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency LawN.J.S.A. 55:14K-1 et seq.	Ch. A352
09-019	02-25-2009	Approving a 30 year tax exemption for a commercial project to be constructed by Whiton Street Associates Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J. S.A. 40A:20-l et seq.	Ch. A352
09-020	03-11-2009	Authorizing the transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
09-021	03-11-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) amending Schedule 24 (Parking Prohibited at All Times) of the Jersey City Code prohibiting parking on the west side of Warren Street between Stueben Street and Columbus Drive	Ch. 332
09-022	03-11-2009	Authorizing the Director of Traffic & Transportation and the City Engineer for the City of Jersey City to provide by regulation for the closing of Ninth Street from Manila Avenue to Marin Boulevard between the hours of (7:15 a.m. and 8:15 a.m.) and (3:00 p.m. and 4:00 p.m.) on days school is in session	Ch. 332
09-023	03-11-2009	Designating that the intersection of Montrose Avenue and Lake Street be also known as "Huels' Way"	Ch. A352
09-024	03-11-2009	Amending Chapter 248 (Pool Rooms) of the Jersey City Code	248-1—248-13
09-025	03-11-2009	Supplementing Chapter 26 (Vehicles and Traffic) Article X (Schedules) Schedule 23 (Traffic Control Signals) of the Jersey City Code and providing for the installation and operation of a traffic control signal at the intersection of Marin Boulevard and Morgan Street	Ch. 332
09-026	03-11-2009	Supplementing Chapter 26 (Vehicles and Traffic) Article X (Schedules) Schedule 23 (Traffic Control Signals) of the Jersey City Code and providing for the installation and operation of a traffic control signal at the intersection of Montgomery Street and Center Street/Merseles Street	Ch. 332
09-027	03-11-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) Schedule 25 (Parking for the Disabled) of the Jersey City Code designating a reserved parking space at 193 Congress Street	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
09-028	03-25-2009	Refunding bond ordinance providing for payment of amounts owing to others for taxes levied in and by the City of Jersey City, in the County of Hudson, New Jersey, appropriating $11,471,819 therefor and authorizing the issuance of $11,471,819 bonds or notes of the City of Jersey City for financing the cost there	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
09-029	03-25-2009	Authorizing the City of Jersey City to enter into a one year lease agreement with Saint John's Baptist Church, a non-profit organization of the State of New Jersey, for the purpose of conducting a recreational program pursuant to N.J.S.A.: 40A: 12-14(C) andN.J.S.A.: 40A: 12-15(J)	Ch. A352
09-030	03-25-2009	Amending Chapter 3 (Administration of Government) Article XII (Department of Fire and Emergency Services) of the Jersey City Code	3-95.1 D.—F.
09-031	03-25-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) Schedule 24 (Parking Prohibited at All Times) of the Jersey City Code repealing the no parking any time prohibition on the west side of Marin Boulevard from Grand Street, south, to the Light Rail Crossing	Ch. 332
09-032	04-08-2009	Supplementing Chapter 26 (Vehicles and Traffic) Article X (Schedules) amending Schedule 1 (One-Way Streets) of the Jersey City Code reversing the direction of Liberty Avenue between Carlton Avenue and Lake Street from a one way "southbound" to a one way "northbound"	Ch. 332
09-033	04-08-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) Schedule 25 (Parking for the Disabled) of the Jersey City Code designating a reserved parking space at 18 Cator Avenue; 57 Clarke Avenue; 48 Country Village Road; 201 Freeman Avenue; 25 Kensington Avenue; 118 Neptune Avenue and 92 South Street	Ch. 332
09-034	04-08-2009	Approving a 30 year tax exemption for a mixed affordable and market rate rental housing project to be constructed by AHM Associates, LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.	Ch. A352
09-035	04-08-2009	Authorizing the execution of a maintenance agreement and deed of easement affecting the Plaza Area at Journal Square in connection with the construction of Condominium Units A B and C of the 1 Journal Square Condominium	Ch. A352
09-036	04-08-2009	Accepting from K. Hovanian at 77 Hudson Street Urban Renewal Company, LLC and EQR-Urban Renewal 77 Hudson Street, LLC a deed of easement of certain sidewalks, roadways and utilities located within the Colgate Redevelopment Areas and adjoining the easterly side of Greene Street between Grand Street and Sussex Street	Ch. A352
09-037	04-08-2009	Dedicating that Pine Street between Communipaw Avenue and the NJ Transit Hudson-Bergen Light Rail also be known as Deacon Joseph J. Del Monte Way	Ch. A352
09-038	04-08-2009	Authorizing the acquisition by purchase or condemnation of a portion of the PJP Landfill Site, Truck Route 1&9 and Sip Avenue, Block 1627, Lots l.P, 2. A, 3.B & 5. A, and Block 1639.A, Lots 1.C, 3,4,4.C, 6. A & 7, for use as open space and a park	Ch. A352
09-039	04-08-2009	Authorizing the acquisition by purchase or condemnation of Block 1510, Lots 29, X.l & Y, and Block 1505.05, Lot D.1, more commonly known by the street address of 13-15 Linden Avenue, for a new municipal public works facility	Ch. A352
09-040	04-08-2009	Authorizing the conveyance of Block 1746, Lots C.4 and E.1 (Old Colony) to the County of Hudson	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
09-041	04-08-2009	Authorizing the conveyance of Block 2073, Lots 1, A, 27.99, and 32-within the Morris Canal Redevelopment Plan Area to the Jersey City Redevelopment Agency	Ch. A352
09-042	04-08-2009	Designating that the intersection of Grove Street and York Street also be known as Church of Nazarene Way	Ch. A352
09-043		Amending Chapter 175 (Food-Handling Establishments) Article II (Itinerant Eating and Drinking Establishments) of the Jersey City Code	Withdrawn 04-08-2009
09-044	04-22-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) Schedule 25 (Parking for the Disabled) designating a reserved parking space 304 Eighth Street; 222 Halladay Street; 46 Jones Street; 13 Marion Place and 160 Vroom Street	Ch. 332
09-045	04-22-2009	Supplementing Chapter A3 51 (Executive Orders and Ordinances) of the Jersey City Code	Ch. A351
09-046	06-17-2009	Amending Chapter 239 (Parks) of the Jersey City Code to modify the City's recreational and open space inventory to add three properties: 1) 174 Brunswick Street, 2) 176 Brunswick Street and 3) 285 Ogden Avenue and dedicating these properties as parklands for public recreation	239-17 C.
09-047		Amending Chapter 157 (Entertainment and Dance Licenses) of the Jersey City Code	Withdrawn 04-08-2009
09-048	04-22-2009	Vacating all of Walks Street, Jersey City, New Jersey	Ch. A352
09-049	04-22-2009	Amending Chapter 3 (Administration of Government) Article V (Creates Animal Control Ordinances)	Defeated 04-22-2009
09-050	04-22-2009	Amending Ordinance 07-188 that authorized the conveyance of Block 2026.A, Lot 3.A and Block 2026.1, Lots 3.B, 2a and 4.A within the Canal Crossings Redevelopment Plan Area to the Jersey City Redevelopment Agency	Ch. A352
09-051		Implementing the Jersey City Municipal Code creating the Animal Control Commission. Tabled 8-0- after the public hearing at the 04/22/09 meeting on motion by Lipski, seconded by Vega; Fulop; absent	Expired 06-30-2009
09-052	05-20-2009	Clarifying the amendment to the stormwater control ordinance (No. 07-056)	345-74
09-053	05-20-2009	Amending the Jersey Avenue Park Redevelopment Plan to allow partial block sites to participate in the bonus provisions	Ch. A532
09-054	05-20-2009	Adopting amendments to the Hackensack River Edge redevelopment Plan permitting several industrial uses	Ch. A352
09-055	05-20-2009	Authorizing the conveyance of Block 1931, Lot l.A, more commonly known by the street address of 520 Bergen Avenue, within the Monticello Avenue Redevelopment Plan Area to the Jersey City Redevelopment Agency	Ch. A352
09-056	05-22-2009	Authorizing the City of Jersey City to enter into a five (5) year lease agreement with the Roxy Urban Renewal Company, LLC for a portion of 201 Cornelison Avenue, Jersey City	Ch. A352
09-057	05-20-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article X (Schedules) amending Schedule 24 (Parking prohibited at all times) of die Jersey City Code designating thirty-five (35) feet at the entrance to 88 Morgan Street as no parking any time	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
09-058	05-20-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) Schedule 25 (parking for the Disabled)of the Jersey City Code designating a reserved parking space at 48 Briarwood Road; 249—251 Clerk Street; 134 Leonard Street; 52—54 Paterson Street; 102—104 Paterson Street and 285 Virginia Avenue; and repeal the reserved parking space at 48 County Village Road	Ch. 332
09-059	05-20-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) of the Jersey City Code amending Schedule 16 (Parking Prohibited during Certain Hours, Daily, except Sundays and Holidays) designating 25 feet in front of 191 Palisade Avenue as no parking, Monday through Saturday, 8:00 a.m. to 8:00 p.m.	Ch. 332
09-060	05-20-2009	Franchise ordinance granting permission to Mohammad Hamami to construct fenced yard/planted area and stoop extending 4'-0" within the public right-of-way for each of two (2) attached townhouses on Fourth Street, Lots 11 and 12 in Block 246 known as 210-212 Fourth Street	Ch. A352
09-061	05-22-2009	Authorizing an amendment to the lease, by way of a memorandum of understanding, for the Loew's Theater, Block 1863, Lot N24, to the Friends of the Loew's Inc., a non-profit corporation	Ch. A352
09-062		Implementing the Jersey City Municipal Code creating the Animal Control Commission. Tabled 9-0- prior to the public hearing at the 05/20/09 meeting on a motion by Gaughan, seconded by Fulop	Expired 06-30-2009
09-063	05-22-2009	Authorizing the conveyance of Block 60, Lots 19H and 19G and Block 2145, Lot 41T within the Grand Jersey Redevelopment Plan Area to the Jersey City Redevelopment Agency	Ch. A352
09-064	06-03-2009	Supplementing Chapter 26 (Vehicles and Traffic) Article VII (Traffic) Article X (Schedules) amending Schedule 26 (Restricted Parking Zones) of the Jersey City Code creating Zone 12 and designating Clendenny Avenue between Route 440 and Mallory Avenue as part of the on-street resident parking only permit parking program from Monday through Friday, 8:00 a.m. to 4:00 p.m.	Ch. 332
09-065	06-17-2009	Vacating a portion of Ludlow Street (between New Street and Cator Avenue)	Ch. A352
09-066	06-03-2009	Amending Ordinance 05-103 adopted on August 10, 2005 to permit Stegman Realty One, LLC; Stegman Realty Two, LLC; Stegman Acquisition, LLC and Stegman Street, LLC to offer for rent rather than for sale residential units at 228-230 Stegman Street	Ch. A352
09-067	06-03-2009	Authorizing the imposition of a conservation easement and deed restrictions on the "gateway sites" as required under the Honeywell Settlement Consent Order	Ch. A352
09-068	06-17-2009	Bond ordinance providing for the acquisition of property located at 15 Linden Avenue East in and by the City of Jersey City, in the County of Hudson, New Jersey, appropriating $24,000,000.00 therefor and authorizing the issuance of $24,000,000.00 bonds or notes of the City to finance part of the cost thereof	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
09-069	06-17-2009	Providing for the acquisition of various fire department equipment and apparatus by means of a loan from the Hudson County improvement authority and appropriating $2,000,000.00 therefor, and providing for the issuance of $2,000,000.00 in general improvement bonds or notes of the City of Jersey City to finance the same	Ch. A352
09-070	06-17-2009	Adopting an amendment to the land development ordinance § 345-31—application and checklist	345-31 K.
09-071	06-17-2009	Adopting an amendment to the Morris Canal Redevelopment Plan	Ch. A352
09-072	06-17-2009	Granting permission to 134 Bay Street, LLC and 126-142 Morgan Street Urban Renewal, LLC, their successors and assigns, to make private improvements in the Provost Street right-of-way between Morgan Street and Bay Street adjacent to the property located at 10 Provost Street, 143 Bay Street, and 332-350 Marin Boulevard, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 140, Lot 1 and Block 171 in its entirety	Ch. A352
09-073	06-17-2009	Authorizing a lease agreement between the City of Jersey City and Verizon New Jersey Inc. for property located at 71 Madison Avenue, Jersey City, New Jersey	Ch. A352
09-074	06-17-2009	Approving a 20 year tax exemption for a market rate residential rental project to be constructed by Hudson Palisades Urban Renewal, LLC, an urban renewal entity, pursuant to the long term tax exemption law N.J. S.A. 40a:20-l et seq.	Ch. A352
09-075	06-17-2009	Amending the long term tax exemption authorized by Ordinance 02-123 of WA Residential Urban Renewal Company, LLC, to terminate the tax abatement as it relates to Block 1497, Portions of Lot 33 and Lot 35, formerly known as portions of Lots 3.M1 and 3.M2, and to be known as Lot 36.1	Ch. A352
09-076	06-17-2009	Approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 40a:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 1497, portions of Lot 33 and Lot 35, formerly known as a portion of Lots 3.M1 and 3.M2, and to be known as Lot 36.1, Unit 1, on the City's tax map and more commonly known by the street address of 100 Caven Point Road (to be known as 1 Liberty Drive)	Ch. A352
09-077	06-17-2009	Dedicating that Randolph Avenue between Carteret Avenue and Claremont Avenue also be known as Reverend John Dupree, Sr. Drive	Ch. A352
09-078	06-17-2009	Approving an amendment to a long term tax exemption for a market rate mixed use condominium project to be constructed by Second Street Waterfront Urban Renewal, LLC, an urban renewal entity, pursuant to the long term tax exemption law N.J.S.A. 40a:20-l et seq.	Ch. A352
09-079		Adopting an amendment to the Liberty Harbor North Redevelopment Plan	Withdrawn 06-03-2009

Ordinance Number	Date of Adoption	Description	Disposition
09-080	06-17-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) Schedule 25 (Parking for the Disabled) of the Jersey City Code designating a reserved parking space at 11 Apollo Street; 585 Bergen Avenue; 293 Clerk Street; 239—241 Duncan Avenue; 37 Eastern Parkway; 129 Grace Street; 267 Manhattan Avenue; 35 Montrose Avenue; 194 Myrtle Avenue; 33 Richard Street; 47 Terhune Avenue; 119—121 Virginia Avenue and amend the reserved parking spaces at 267 Manhattan Avenue and 334 Princeton Avenue	Ch. 332
09-081	06-17-2009	Dedicating that the intersection of Van Home Street and Bramhall Avenue also be known as Ethel Mae Haynes Way	Ch. A352
09-082	06-17-2009	Dedicating that the Intersection of Hutton Street and Sanford Place also be known as Terry Monaghan Way	Ch. A352
09-083		Supplementing Chapter 332 (Vehicles and Traffic) of the Jersey City Code Article VII (Metered Parking) amending the hours for the monthly permit parking zone from (6:00 a.m. to 7:00 p.m.) to (6:00 a.m. to 5:00 p.m.) and supplementing Article VIII (Permit Parking Zones) amending the hours for the (2) hour restricted residential permit parking program from (8:00 a.m. to 5:00 p.m.) to (8:00 a.m. to 7:00 p.m.); establishing a four (4) hour residential parking permit for city residents; establishing 500 feet as the minimum distance a vehicle must be moved to reactivate the two (2) hour parking provision; provide for the City Clerk to administer daily visitors parking permits; establish guidelines for the placement of the Vehicle Immobilization Device (Boot) and establish guidelines as to when the fee for the Vehicles Immobilization Device (Boot) shall be refunded by the Jersey City Parking Authority	No action taken 06-17-2009
09-084		Implementing a new chapter to the Jersey City Code and creating an Animal Control Committee of the Municipal Council	No action taken 06-17-2009
09-085	07-29-2009	Supplementing Chapter A3 51 (Executive Orders and Ordinances) of the Jersey City Code	Ch. A351
09-086	07-29-2009	Dedicating that the southeast corner of Martin Luther King Drive and Armstrong Avenue also be known as Bishop Clyde L. Harris Way	Ch. A352
09-087	07-20-2009	Amending Chapter 3 (Administration of Government) Article II (Council) of the Jersey City Code establishing the Office of Council President Pro Tem	3-4
09-088	08-12-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article VIII (Permit Parking) Article XI (Schedules) amending Schedule 24 (Restricted Parking Zones) of the Jersey City Code reserving the sides of the street for the Kennedy Boulevard limits included in the on-street resident only permit parking zone for the streets surrounding New Jersey City University	Ch. 332
09-089	08-12-2009	Authorizing the partial acquisition by purchase or condemnation of Block 1507, Lots 20, 21 and 20X (aka 20T01), and the acquisition by purchase of easements for passage over certain N.J. Turnpike Authority and Conrail rights-of-way for a new municipal public works facility	Ch. A352
09-090	08-12-2009	Adopting the Summit and Fairmount Redevelopment Plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
09-091	08-12-2009	Amending Chapter 345 (Zoning), Article III (Application Requirements, Development Procedures and Checklists) Section 31 (Applications and Checklists) and Article IV (Fees, Deposits and Inspections), Section 33 (Fees) of the Jersey City Code	345-31 J., 345-33 B.
09-092	09-09-2009	Adopting an amendment to the Tidewater Basin Redevelopment Plan to remove Block 166, Lots 1 and 2 from the acquisition schedule	Ch. A352
09-093	09-09-2009	Adopting amendment to Article II (Boards and Commissions) of the Land Development Ordinance changing the artists' certification expiration from five to ten years	345-11
09-094	09-09-2009	Amending and supplementing Chapter 53 (Personnel) Article XII (Compensation Schedule Amendments; Longevity Increase)	53-83
09-095	09-09-2009	Supplementing Chapter 26(Vehicles and Traffic) Article X (Schedules) Schedule 23 (Traffic Control Signals) of the Jersey City Code and Providing for the Installation and Operation of a traffic control signal at the intersections of Greene Street and Christopher Columbus Drive; Greene Street and Grand Street; Greene Street and Montgomery Street; Greene Street and Morris Street; Greene Street and Sussex Street; Greene Street and York Street and Washington Street and Christopher Columbus Drive	Ch. 332
09-096	09-09-2009	Redevelopment pay-to-play reform ordinance	3-51.2
09-097	10-14-2009	Bond ordinance providing for the acquisition of PJP/SIEGEL Property located in and by the City of Jersey City, in the County of Hudson, New Jersey, appropriating $8,700,000 therefor and authorizing the issuance of $8,700,000 bonds or notes of the city to finance part of the cost thereof	Ch. A352
09-098	09-23-2009	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) Schedule 25 (Parking for the Disabled) of the Jersey City Code designating a reserved parking space 169 Arlington Avenue; 71 Atlantic Street; 65 Bayview Avenue; 821 Bergen Avenue; 49 Bidwell Avenue; 480 Bramhall Avenue; 140 Franklin Street; 67 Grant Avenue; 2 Hampton Court Terrace; 54-56 Linden Avenue; 133 Sherman Place and 275 Webster Avenue and amend the reserved parking space at 304 Eighth Street; 131 Kensington Avenue; 267 Manhattan Avenue; 243 South Street and 324 Terrace Avenue and repeal the reserved parking space at 6 Poplar Street and 358 Stegman Parkway	Ch. 332
09-099	09-23-2009	Authorizing the City of Jersey City to lease from the Jersey City Parking Authority seven (7) parking spaces in the Parking Authority Lot Number 32 located at 277 Central Avenue	Ch. A352
09-100	09-23-2009	Dedicating that the northeast comer of Van Cleef Street and Armstrong Avenue also be known as Miles Alexander Johnson Way	Ch. A352
09-101	09-23-2009	Franchise ordinance permission to 141 Bright Monmouth, LLC, his successors and assigns, to make private improvements in the public right-of-way adjacent to the property located at 141 Bright Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 341 Lot P.I.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
09-102	09-23-2009	Approving a thirty-year tax exemption for a very low and low income affordable housing project with three (3) commercial units to be constructed by the RAV Group, LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14k-l et seq.	Ch. A352
09-103	10-14-2009	Franchise ordinance granting permission to the Ambriola Company, Inc., its successors and assigns, to make private improvements in and use of the public right-of-way adjacent to the property located at 2 Burma Road (a/k/a 95 Burma Road), Jersey City, New Jersey, also known on the tax map of the City of Jersey City as Block 2154 Lot 13.c.	Ch. A352
09-104	10-14-2009	Franchise ordinance granting permission to Wells Reit II-International Financial TW%M. Calitower, LLC, its successors and assigns, to install decorative safety bollards approximately three (3) feet eight (8) inches in length and no more than one (1) foot eleven (11) inches in depth along the public right-of-way of Columbus Drive, Marin Boulevard, and Wayne Street adjacent to Block 203, Lot 26, in accord with the site plan approved by the Jersey City Planning Board	Ch. A352
09-105	10-14-2009	Franchise ordinance granting permission to 782-784 Ocean Avenue LLC, its successors and assigns, to allow an encroachment along the south side of Ocean Avenue for two (2) stoops as set forth in schedule with the proposed franchise area adjoining 782-784 Ocean Avenue A/K/A Lot 52 in Block 1970	Ch. A352
09-106	10-28-2009	Dedicating that the intersection of Grand Street and Luis Marin Boulevard also be known as Susan Stavar's Comer	Ch. A352
09-107	10-28-2009	Franchise ordinance granting permission to Johanna Garcia, her successors and assigns, to install and maintain steps along the north side of Baldwin Avenue as set forth in Schedule with the proposed franchise area adjoining Baldwin Avenue Lot 20.02 in Block 519	Ch. A352
09-108	10-28-2009	Authorizing the acquisition from the Jersey City Redevelopment Agency of Block 1328, Lots l.D, l.E, 1 ,F, 1 .G, 11 ,F, 11 ,H, 11 .K, and ILL within the Martin Luther King Drive Redevelopment Area	Ch. A352
09-109	11-24-2009	Providing for the financing of the acquisition by the Parking Authority of the City of Jersey City of real property in the City and appropriating $4,600,000, therefor, and providing for the issuance of $4,380,950 in general improvement bonds or notes of the City of Jersey City to finance the same	Ch. A352
09-110	10-28-2009	Vacating a portion of 17th Street	Ch. A352
09-111	10-28-2009	Vacating a portion of 18th Street	Ch. A352
09-112	10-28-2009	Vacating a water main easement located on Lot PL-1, Block 402	Ch. A352
09-113	11-10-2009	Supplementing Chapter A3 51 (Executive Orders and Ordinances)	Ch. A351
09-114	11-10-2009	Supplementing Chapter 332 (Vehicles and Traffic) Title Article XI (Schedules) Schedule 25 (Parking for the Disabled) of the Jersey City Code Designating a reserved parking space 188 Bartholdi Avenue; 158 Boyd Avenue; 644-646 Bergen Avenue; 93 Faerview Avenue; 101 Hague Street; 254-252 Hancock Avenue; 46 Hopkins Avenue; 19 Kensington Avenue; 68 Lafayette Street; 230 McAdoo Avenue; 192 Mallory Avenue; 28-30 Sherman Avenue; 390-392 Union Street and 432 Wayne Street	Ch. 332

Ordinance Number	Date of Adoption	Description	Disposition
09-115	11-10-2009	Supplementing Chapter 332, Article III, amending Schedule 14, Parking prohibited at all times, repealing the no parking any time prohibition on the west side of Sullivan Drive from Lembeck Avenue to Bartholdi Avenue and amending schedule 21, Parking restrictions for street clean purposes, designating no parking for street cleaning purposes on the west side of Sullivan Drive from Lembeck Avenue to Bartholdi Avenue on Thursday 3:00 p.m. to 5:00 p.m. and extend the no parking for street cleaning purposes on the east side of Sullivan Drive from (Danforth Avenue to Lembeck Avenue) to (Danforth Avenue to Bartholdi Avenue), Monday and Thursday, 3:00 p.m. to 5:00 p.m.	332-22, 332-31
09-116	11-24-2009	Adopting amendments to Article I (Definitions), Article III (Procedures and Checklists), and Article V - CBD of the Land Development Ordinance	345-6, 345-47, 345-62, 346-63
09-117	11-24-2009	Adopting the Cambridge and North Redevelopment Plan	Ch. A352
09-118	11-24-2009	Estabfishing a conservation restriction affecting properties owned by the City of Jersey City known as Block 1627, Lots 1 ,P, 2.A, 3.B, 5.1 and Block 1639.A, LotsLC,3,4,4.C, 6. A and 7	Ch. A352
09-119		Redesignating "Gregory Park Plaza" to "Marin Boulevard" also known as "Metropolis Towers Plaza"	Expired on Tabled Agenda 06-30-2013
09-120	12-16-2009*	Supplementing Chapter 257 (Property Transfer and Lease) of the Jersey City Code (Disclosure of Zone Parking)	*VETOED 12-28-2009
09-121		Supplementing Chapter 332 (Vehicles and Traffic) of the Jersey City Code Article VII (Metered Parking) amending the hours for the monthly permit parking zone from (6:00 a.m. to 7:00 p.m.) to (6:00 a.m. to 5:00 p.m.) and supplementing Article VIII (Permit Parking Zones) amending the hours for the two-hour restricted residential permit parking program from (8:00 a.m. to 5:00 p.m.) to (8:00 a.m. to 7:00 p.m.); establishing a four-hour residential parking permit for city residents; establishing five hundred (500) feet as the minimum distance a vehicle must be moved to reactivate the two-hour parking provision; provide for the city clerk to administer daily visitors parking permits; establish guidelines for the placement of the vehicle immobilization device (boot) and establish guidelines as to when the fee for the vehicle immobilization device (boot) shall be refunded by the Jersey City Parking Authority	Withdrawn 11-24-2009 See Ord. 10-002
09-122		Authorizing and approving an $8,000,000 loan to the City of Jersey City to be guaranteed by the United States Department of Housing and Urban Development pursuant to § 108 of the Housing and Community Development Act of 1974, as amended, the proceeds of which shall be relent to Statue of Liberty Harbor North Redevelopment Urban Renewal, LLC.	Withdrawn 12-16-2009 See Ord. 10-022
09-123	12-16-2009	Authorizing the imposition of deed restrictions on St. Pauls Avenue between Charlotte Avenue and Duffield Avenue, Duffield Avenue between Howell Street and an area north of St. Pauls Avenue, and Howell Street between Charlotte Avenue and Duffield Avenue	Ch. A352
09-124	12-16-2009	Removing the affordability restrictions from: 1) a deed dated December 31, 1986 and 2) a correctory deed dated August 26, 1987 concerning Block 1985, Lot L-14 also known as 136-138 Grant Avenue owned by Fairmount Housing Corporation	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
09-125	12-16-2009	Approving the application for state incentive grant by Newport Office Center VI, LLC subject to New Jersey Economic Development Authority approval	Ch. A352
09-126		Accepting a dedication of certain land and improvements located within the Powerhouse Arts District Redevelopment Area	Withdrawn 11-24-2009 See Ord. 10-001
09-127	12-16-2009	Provided for the financing of a portion of the Newark Avenue Roadway Improvements Project by the City of Jersey City and appropriating $2,600,000 therefor, and providing for the issuance of $2,476,000 in general improvement bonds or notes of the City of Jersey City to finance the same	Ch. A352
09-128	01-13-2010	Authorizing the conveyance of 90 Virginia Avenue to the Jersey City Community Housing Corporation, a nonprofit corporation, to rehabilitate the property as fourteen units of low and moderate income condominium units	Ch. A352
09-129	01-13-2010	Amending Ordinance 04-123 approved on October 27, 2004 authorizing the conveyance of 108 Storms Avenue to the Jersey City Community Housing Corporation to rehabilitate the property as low and moderate income rental housing	Ch. A352
09-130	01-13-2010	Amending Ordinance 04-124 approved on October 27,2004 authorizing the conveyance of299-301 Bergen Avenue to the Jersey City Community Housing Corporation to rehabilitate the property as ten (10) units of low and moderate income rental housing	Ch. A352
09-131	01-13-2010	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) amending Schedule 14 (Parking Prohibited at All Times) of the Jersey City Code prohibiting parking for 53 feet on the west side of Warren Street at the entrance to the Gotham, 255 Warren Street	Ch. 332
09-132	01-13-2010	Supplementing Chapter 332, Article XI, Section 332-31, Parking restrictions for street-cleaning purposes, amending the parking prohibition for street-cleaning purposes on Morris St between Warren St and Greene St; Sussex St between Washington St and Greene St and on Washington St between Essex St and Sussex St to Mondays and Tuesdays only from 1:00 pm to 3:00 pm for each respective side of the street	332-31
09-133	01-13-2010	Supplementing Chapter 332 (Vehicles and Traffic) Article XI (Schedules) of the Jersey City Code amending Schedule 16 (Parking Prohibited During Certain Hours, Daily, Except Saturdays, Sundays and Holidays) designating the south side of the Kaleidoscope Health Center on Harrison Avenue beginning 35 feet west of Monticello Avenue and extending 25 feet westerly as no parking Monday through Friday, 7:00 a.m. to 3:00 p.m. and Saturday and Sunday, 7:00 a.m. to noon	332-24
10-001	01-27-2010	Accepting a dedication of certain land and improvements located within the Powerhouse Arts District Redevelopment Area	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
10-002		Supplementing Chapter 332, Article VII, amending the hours for the monthly permit parking zone from (6:00 a.m. to 7:00 p.m.) to (6:00 a.m. to 5:00 p.m.) and supplementing Article VIII (Permit Parking Zones) establishing a four-hour residential parking permit for city residents; establishing five hundred (500) feet as the minimum distance a vehicle must be moved to reactivate the two-hour parking provision; provide for the City Clerk to administer daily visitors parking permits; establish guidelines for the placement of the vehicle immobilization device (boot) and establish guidelines as to when the fee for the vehicle immobilization device (boot) shall be refunded by the Jersey City Parking Authority	Expired on Tabled Agenda 06-30-2013
10-003		Amending and supplementing Chapter 304, Article II	Defeated 01-13-2010
10-004	01-27-2010	Adopting the second set of amendments to the NJCU West Campus Redevelopment Plan	Ch. A352
10-005	01-27-2010	Vacating the paper street known as Dudley Street from its intersection with Greene Street and extending easterly	Ch. A352
10-006	01-27-2010	Supplementing Chapter 257 of the Jersey City Code	257-6
10-007	01-27-2010	Adopting amendments to Article 1, Article III, and Article V	345-6, 345-22—345-24, 345-60
10-008	01-27-2010	Ordinance to exceed the municipal budget appropriations limits and to establish a cap bank	NCM
10-009	2-24-2010	Granting permission to One LLC, its successors and assigns, to make private improvements to a portion of land within the sidewalk area of the Bowers Street public right-of-way	Ch. A352
10-010		Amending and supplementing Chapter 84, Article I, Plenary Retail Consumption and Distribution Licenses	Defeated 02-24-2010
10-011	02-24-2010	Amending traffic schedules (Parking for the Disabled)	Ch. 332
10-012	03-10-2010	Creating Community Services Block Grant Board in the Department of Housing, Economic Development and Commerce	3-82.3
10-013	03-10-2010	Adopting amendments to the Land Development Ordinance permitting medical office use in the R-1 Zoning District along a portion of Palisade Avenue	
10-014		Amending and supplementing Chapter 12, Article IV, Municipal Utilities Authority	Defeated 02-24-2010
10-015		Amending and supplementing Chapter 12, Article II Incinerator Authority	Defeated 02-24-2010
10-016		Amending and supplementing Chapter 53, Article VI, Vacation Leave and other benefits for nonunion, unclassified personnel and nonunion managerial personnel	Defeated 02-24-2010
10-017		Estabfishing policies and procedures for JC1TV	Defeated 02-24-2010
10-018		Submits the proposition to the voters to amend the City Charter to hold General Elections in November	Defeated 03-10-2010
10-019		Submits the proposition to the voters at the November 2, 2010 General Election that the City of Jersey City abandon the holding of Run-Off Elections as permitted by the "Uniform Nonpartisan Elections Law"	Defeated 03-10-2010
10-020	03-10-2010	Approving a 30-year tax exemption for a mixed affordable and market rate rental housing project to be constructed by AHM Housing Associates IV, LLC	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
10-021	03-10-2010	Approving a five-year tax exemption for property designated as Block 60.12, Lot 5 on the City's tax map	Ch. A352
10-022	04-28-2010	Approving a loan to the City to be guaranteed by the US Department of Housing and Urban Development and reloaning the proceeds to Statue of Liberty Harbor North Redevelopment Urban Renewal, LLC	Ch. A352
10-023	03-10-2010	Approving a 30-year tax exemption for a low income affordable and market rate housing project to be constructed by the Summit Avenue Center for Opportunity, LLC	Ch. A352
10-024		Approving 1) The NUNC PRO TUNC assignment of a tax exemption from Summit Apartments, Inc., to Summit Plaza Associates and approval of a portion of the property for commercial use; and 2) An amendment to the tax exemption to remove a portion of the project from the tax exemption, pursuant to the limited dividend Non-Profit Housing Corporation Law, N.J.S.A. 55:16-18	Defeated 03-23-2011
10-025	03-10-2010	Authorizing renewal of lease agreement between City as lessee and 18 Ash Street Realty, LLC, as lessor, for fire and emergency storage space	Ch. A352
10-026	03-10-2010	Amendments to the Martin Luther King Drive Redevelopment Plan	Ch. A352
10-027	03-10-2010	Adopting amendments to Article 1, Definitions, and Article V, Use, Bulk and Parking Standards in the R-3 Zone of the Land Development Ordinance	345-6, 345-42
10-028	03-10-2010	Amendments to the Village Study Area Redevelopment Plan	Ch. A352
10-029	03-10-2010	Amending Chapter 12, Article IV, Municipal Utilities Authority	12-6
10-030	03-10-2010	Amending Chapter 12, Article II, Incinerator Authority	12-2
10-031	03-10-2010	Bond ordinance providing for funding of temporary emergency appropriations in connection with the payment of amounts owing to other for taxes levied in and by the City	Ch. A352
10-032		Amending and supplementing Chapter 53, Article III, Employee Regulations, Use of city owned vehicles	Defeated 02-24-2010
10-033	03-10-2010	Amending and supplementing Chapter 84, Article 1, Plenary retail consumption and distribution licenses	84-6.1
10-034		Amending and supplementing Chapter A351, Council Salary Effective 7-1-2013	Withdrawn 03-10-2010
10-035		Supplementing Chapter 3, Article II, Full Time Council Effective 7-1-2013	Withdrawn 03-10-2010
10-036	03-24-2010	Amendments to the Tidewater Basin Redevelopment Plan	Ch. A352
10-037	03-24-2010	Adopting amendments to the Land Development Ordinance amending the Marion Works Office/ Residential District to permit residential density bonuses for the creation of improved public park area	345-50a
10-038		Establishing Policies and Procedures for JC1TV	Defeated 03-10-2010
10-039		Amending and supplementing Chapter 53, Article III, Employees Regulations	Defeated 03-10-2010
10-040		Amending and supplementing Chapter 12, Article II, Incinerator Authority	Defeated 03-10-2010
10-041		Amending and supplementing Chapter 12, Article II, Municipal Utilities Authority	Defeated 03-10-2010

Ordinance Number	Date of Adoption	Description	Disposition
10-042	03-24-2010	Amending and supplementing Chapter A350, Council Rules of Order, Rule V, Section 6, Agenda—Consent Agenda	Ch. A350
10-043	04-14-2010	Amended Chapter 53, Article II, Employee Regulations, and Article IV, Compensation Schedule Amendments, Longevity Increases and Personal Use of Municipal Vehicles	53-26, 53-82
10-044		Authorizing the delayed broadcast of Council Meetings on Cable Television	Withdrawn 03-24-2010
10-045		Establishing Policies and Procedures for JCITV	Defeated 04-14-2010
10-046		Amending and supplementing Chapter 12, Article II, Incinerator Authority	Defeated 03-24-2010
10-047		Amending and supplementing Chapter 12, Article II, Municipal Utilities Authority	Defeated 03-24-2010
10-048		Amending and supplementing Chapter 53, Article III, Employees Regulations	Defeated 03-24-2010
10-049	04-14-2010	Amending Chapter 163, Article II, Toy Guns and Box Cutters	163-3
10-050	04-14-2010	Authorizing City to enter into one-year lease agreement with Saint John's Baptist Church for the purpose of conducting a recreational program pursuant to N.J.S.A 40A:12-14(C) and N.J.S.A. 40A:12-15(J)	Ch. A352
10-051		Supplementing Chapter 53, Article II, Residency Requirements	Withdrawn 03-24-2010
10-052	04-28-2010	Establishing public television programming guidelines and coverage of public meetings	Adding 116-4 116-9
10-053	04-28-2010	Amendments to the Tidewater Basin Redevelopment Plan—Grand and Marin Subdistrict	Ch. A352
10-054	04-28-2010	Adopting amendments to the Land Development Ordinance expanding the R-1A Zoning District	345-40.1
10-055	04-28-2010	Authorizing conveyance of certain properties to the Jersey City Development Agency	Ch. A352
10-056	04-28-2010	Amending traffic schedules (Stop Intersections)	Ch. 332
10-057		Amending Chapter 26, Article VII, Sub-Article IX, Prohibited or Restricted Street Parking	Withdrawn 04-14-2010
10-058	04-28-2010	Amending traffic schedules (On-Street Permit Parking Zones, Parking Time Limits, Angle Parking, Parking Prohibited on Designated Streets, Parking Restrictions for Street Cleaning Purposes)	160-1, Ch. 332
10-059	04-28-2010	Amending traffic schedules (One-Way Streets, No Parking Any Time, Right Turn Prohibited)	Ch. 332
10-060	04-28-2010	Authorizing execution of agreement between City and Light Tower Fiber Long Island, LLC, to permit installation, use and maintenance of telecommunications facilities with certain public rights-of-way	Ch. A352
10-061		Amending Chapter 160, Article I, Fee Schedule Established	Withdrawn 04-14-2010
10-062	04-28-2010	Naming the ice skating rink at Pershing Field The Charlie Heger Ice Skating Rink	Ch. A352
10-063	05-12-2010	Amending Ch. A350, Rule V, Section 6, Agenda—Consent Agenda	A350-6
10-064	05-12-2010	Amendments to the Morris Canal Redevelopment Plan to create Transit Oriented Development (TOD) subdistricts	Ch. A352
10-065	05-12-2010	Authorizing a 45-year lease of certain property to Liberty Humane Society, Inc.	Ch. A352
10-066		Authorizing the City to execute a five-year lease with Rand Parking, Inc., for parking spaces located at Journal Square Plaza II	Withdrawn 04-28-2010

Ordinance Number	Date of Adoption	Description	Disposition
10-067	05-12-2010	Amending traffic schedules (Multi Way Stop Intersection)	Ch. 332
10-068	05-12-2010	Amending traffic schedules (Parking for the Disabled)	Ch. 332
10-069		Abolishing the Ellis Island Commission, Human Rights Commission, The Municipal Drug & Alcohol Abuse Alliance and The Tourist Commission	Defeated 05-26-2010
10-070	05-26-2010	Amending traffic schedules (Parking Meter Zones, Parking Time Limits, Parking Prohibited During Certain Hours on Certain Streets, No Stopping or Standing)	Ch. 332
10-071	06-09-2010	Naming path between the Babe Ruth Field and Cal Ripken Field at Pershing Field Charlie Straub Way	Ch. A352
10-072	06-09-2010	Amending Chapter 3, Article VI and Article IX, transferring the Division of Architecture and the Division of Engineering, Traffic and Transportation from the Department of Administration to the Department of Public Works	3-42, 3-67, repealed 3-52 and 3-54, added 3-68 and 3-68.1
10-073	06-09-2010	Approving an amendment to a long-term tax exemption with Jones Hall Associates to extend the term for up to 20 years and increase the annual service charge	Ch. A352
10-074	06-09-2010	Amending Article V, Chapter 345-60, Supplementary Zoning Regulations, of the Land Development Ordinance amending regulations for wireless communication antennas	345-60
10-075	06-09-2010	Amending Section 345-58.E of the Land Development Ordinance, Conditional Uses Permitted in the Paulus Hook Historic District Development Ordinance	345-58.E
10-076	06-09-2010	Amendments to HUB District of the Martin Luther King Drive Redevelopment Plan	Ch. A352
10-077		Supplementing Chapter A3 51, Executive Orders and Ordinances	Withdrawn 05-26-2010
10-078	06-09-2010	Amending Chapter 53 establishing vacation and benefits and workplace regulations for employees whose salary and compensation are required by law to be fixed by ordinance	Repealed 53-1,53-2,53-6—53-71.1, 53-72—53-80, 53-82, 53-83, added 53-1—53-7
10-079	06-23-2010	Amending traffic schedules (No Parking Any Time, No Stopping or Standing Prohibited Certain Hours)	332-22, 332-26
10-080	06-23-2010	Authorizing execution of easement agreement between City and Honeywell International, Inc. permitting Honeywell to enter into underwater property owned by City to perform remediation work	Ch. A352
10-081	06-23-2010	Providing for construction of new facility for use by Department of Public Works and Jersey City Incinerator Authority	Ch. A352
10-082	07-14-2010	Amendments to the Claremont Redevelopment Plan	Ch. A352
10-083	07-14-2010	Authorizing execution of rights-of-way use agreement between City and Lexent Metro Connect, LLC to permit the installation of fiber optic cabling through existing innerducts located in existing underground conduits within certain public rights-of-way	Ch. A352
10-084	07-14-2010	Removing affordability restrictions from deeds	Ch. A352
10-085	07-14-2010	Providing for acquisition of real property	Ch. A352
10-086	07-14-2010	Dedicating that Coles Street between 10th St and 13th St also be known as Moishe's Way	Ch. A352
10-087		Adopting and codifying Chapter 332, Vehicles and Traffic, and repealing Chapter 26, Vehicles and Traffic	Defeated 03-23-2011

Ordinance Number	Date of Adoption	Description	Disposition
10-088	07-14-2010	Dedicating that Dales Av between Logan Av and Broadway also be known as Pastor Erwin Lanier, Sr. Drive	Ch. A352
10-089	08-04-2010	Authorizing the City to revert to a calendar fiscal year from a state fiscal year	3-61
10-090	08-04-2010	Authorizing imposition of environmental deed restrictions on certain property	Ch. A352
10-091	08-04-2010	Abolishing the Ellis Island Commission	Repealed Commission
10-092		Abolishing the Human Rights Commission	Withdrawn 07-14-2010
10-093		Abolishing the Municipal Drug & Alcohol Abuse Alliance	Withdrawn 07-14-2010
10-094	08-04-2010	Abolishing the Municipal Port Authority	Repealed Ch. 12, Art. V, §§ 12-8—12-11
10-095		Abolishing the Tourist Commission	Withdrawn 07-14-2010
10-096	08-04-2010	Granting permission to 110 First Street Urban Renewal Associates, LLC to construct a landscaped yard/planted entrance area within public right-of-way	Ch. A352
10-097	08-04-2010	Granting permission to John Hajj ar, its successors and assigns, to install and maintain an elevated canopy	Ch. A352
10-098		Authorizing the City to execute a five-year lease with Rand Parking, Inc. for parking spaces located at Journal Square Plaza II	Defeated 08-04-2010
10-099	08-04-2010	Dedicating that Jewett Avenue Parkway between Bergen Av and Monticello Av also be known as Bobby L. Jackson Way	Ch. A352
10-100	08-04-2010	Authorizing execution of easement agreement between City and the Port Authority Trans Hudson Corporation permitting PATH to install and maintain security improvements at Exchange Place and to install new concrete pavements in front of PATH station on Christopher Columbus Drive	Ch. A352
10-101	08-04-2010	Amending Chapter 263, Article I, Attendants on Duty	263-2, 263-4
10-102	08-04-2010	Authorizing conveyance of property to the Community Asset Preservation Alliance of Jersey City, Inc. to effectuate the rehabilitation of 13 units of low and moderate income rental housing	Ch. A352
10-103	08-25-2010	Adopting Journal Square 2060 Redevelopment Plan	Ch. A352
10-104	08-25-2010	Amendments to the Morris Canal Redevelopment Plan	Ch. A352
10-105	08-25-2010	Amendments to the Martin Luther King Drive Redevelopment Plan	Ch. A352
10-106	09-15-2010	Amending Land Development Ordinance dealing with historic preservation procedures and applications	345-6, 345-30.D., E,, 345-71
10-107	08-25-2010	Amending Chapter 287, Solid Waste, to add provisions regarding refuse containers and dumpsters	Added 287-31.1
10-108	08-25-2010	Adding provisions regarding private storm drain inlets	Adding 281-8—281-13
10-109	08-25-2010	Amending a 30-year tax exemption with Fred W. Martin Apartments Urban Renewal, L.P. to correct property description to specifically limit the tax exemption to the residential unit only and terminate the tax exemption as to the remaining units	Ch. A352
10-110		Terminating the financial agreement between the City and Martin Luther King Drive Urban Renewal, LLC, approved by Ordinance 03-107	Withdrawn 08-04-2010

Ordinance Number	Date of Adoption	Description	Disposition
10-111	08-25-2010	Dedicating that Summit Av between Pavonia Av and Newark Av also be known as Dante Alighieri Way	Ch. A352
10-112	09-15-2010	Dedicating that Eighth St between Manila Av and Marin Blvd be also known as Bob Hurley Sr. Way	Ch. A352
10-113	09-15-2010	Amending traffic schedules (Parking for the Disabled)	Ch. 332
10-114	09-15-2010	Adopting Ch. 332 and repealing Ch. 26	Ch. 332
10-115	09-29-2010	Adopting amendments to the Morris Canal Redevelopment Plan to revise fees for plan amendments	Ch. A352
10-116	09-29-2010	Authorizing execution of right-of-way use agreement between city and NextG Networks of NY, Inc., for installation, use and maintenance of telecommunications facilities within certain public rights-of-way for purpose of providing telecommunications services	Ch. A352
10-117	09-29-2010	Authorizing transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
10-118	09-29-2010	Authorizing transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
10-119	09-29-2010	Authorizing the execution of a developer's agreement and the transfer of 34 Van Nostrand Avenue, 36 Van Nostrand Avenue, 38 Van Nostrand Avenue, and 40 Van Nostrand Avenue pursuant to N.J.S.A. 40A:12-21 (j) to the Jersey City Episcopal Community Development Corporation	Ch. A352
10-120	10-13-2010	Dedicating that Sussex Street between Washington Street and Warren Street be also known as Our Lady of Czestochowa Roman Catholic Parish Way	Ch. A352
10-121	10-13-2010	Amending Chapter 151	151-1
10-122	10-13-2010	Amending traffic schedule (Parking for the Disabled)	Not codified
10-123		Supplementing Chapter 3, Article XI establishing procedure and fees for providing Off-Duty Police Officers for special detail assignments	Defeated 03-23-2011
10-124	10-13-2010	Adopting amendments to the Liberty Harbor Redevelopment Plan	Ch. A352
10-125	10-13-2010	Amending Chapter 345	354-40.D.
10-126	10-27-2010	Amendment to Ordinance Number 10-055 which authorized the transfer of city-owned property within the Martin Luther King Drive Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
10-127	10-27-2010	Amending Chapter 254	254-45.B.31.
10-128		Providing for a special emergency appropriation of $22,000,000 for the payment of contractually required severance liabilities resulting from the layoff or retirement of city employees	Withdrawn 10-27-2010 See Ord. 10-141
10-129	11-10-2010	Amending Chapter 345	345-30 345-71
10-130	11-10-2010	Adopting amendments to the Martin Luther King Drive Redevelopment Plan clarifying elevator requirements	Ch. A352
10-131	11-10-2010	Adopting amendments to the Newport Redevelopment Plan to amend permitted uses	Ch. A352
10-132	11-10-2010	Adopting amendments to the Land Development Ordinance clarifying building height and garages in the R-1 District, off-street parking regulations, and signage in the WPD Zone	345-40.E, F 345-68 345-70.A
10-133	11-10-2010	Amending Chapter 345	345-31. A.—G. 345-33.B.

Ordinance Number	Date of Adoption	Description	Disposition
10-134	11-10-2010	Adopting amendments to the Ocean/Bayview Redevelopment Plan to permit medical offices	Ch. A352
10-135	11-10-2010	Amending Chapter 345	345-6
10-136		Amending and supplementing Chapter 53 implementing Article XIII, confirming the provision of health insurance to retired employees pursuant to N.J.S.A. 40A: 10-23, and limiting the benefit only to employees who retire with at least 25 years of service with the City of Jersey City	Defeated 03-23-2011
10-137		Dedicating that Forrest Street between Clerk Street and Ocean Avenue be also known as "Christ the King Church Way"	Defeated 11-10-2010
10-138	11-10-2010	Dedicating that Bergen Avenue between Fairmount Avenue and Jewett Avenue also be known as Bishop George M. Cutler Way	Ch. A352
10-139	11-10-2010	Amending Chapter 87	87-1, 87-4.G.
10-140		Amending the Jersey City Code to: 1) Require the use of compostable plastic, recyclable paper and/or reusable checkout bags by stores located in the City of Jersey City; and 2) Provide penalties for violations	Expired on Tabled Agenda 06-30-2013
10-141	11-23-2010	Providing for a special emergency appropriation of $9,300,000 for payment of contractually required severance liabilities resulting from the layoff or retirement of city employees	Ch. A352
10-142	11-23-2010	Amending Chapter 23	23-2
10-143	11-23-2010	Authorizing the City's acceptance of a deed from the Trustees of the Free Public Library regarding 1843 Kennedy Boulevard, Block 1277.5, Lot 31.99 (a/k/a Greenville Public Library)	Ch. A352
10-144		Amending and supplementing Chapter 53, Article III	Defeated 11-10-2010
10-145		Amending and supplementing Chapter 12, Article II	Defeated 11-10-2010
10-146		Amending and supplementing Chapter 12, Article IV	Defeated 11-10-2010
10-147	11-23-2010	Adopting amendments to Bates Street Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure	Ch. A352
10-148	11-23-2010	Adopting amendments to Caven Point Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	Ch. A352
10-149	11-23-2010	Adopting amendments to Grand Jersey Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	Ch. A352
10-150	11-23-2010	Adopting amendments to Greenville Industrial Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	Ch. A352
10-151	11-23-2010	Adopting amendments to Jersey Avenue Light Rail Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	Ch. A352
10-152	11-23-2010	Adopting amendments to Jersey Avenue Park Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	Ch. A352
10-153	11-23-2010	Adopting amendments to Jersey Avenue Tenth Street Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
10-154	11-23-2010	Adopting amendments to Liberty Harbor Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure	Ch. A352
10-155	11-23-2010	Adopting amendments to Montgomery Street Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure and amendment fees	Ch. A352
10-156	11-23-2010	Adopting amendments to Morris Canal Redevelopment Plan to prohibit natural gas pipelines and to revise site plan review procedure	Ch. A352
10-157		1) Transferring the Division of Architecture and Engineering (Including Traffic and Transportation) from the Department of Public Works to the Department of Administration; 2) Repealing Chapter 3, Article IX of the Jersey City Municipal Code; and 3) Authorizing an agreement with the Jersey City Incinerator Authority (JCIA), whereby the JCIA will assume the duties of the Department of Public Works	Expired on Tabled Agenda 06-30-2013
10-158	12-08-2010	Consenting to the sale and assignment of tax exemption and financial agreement from Essex Waterfront Urban Renewal Entity, LLC, to Liberty Towers Urban Renewal LLC, pursuant to section 9.1 of the financial agreement and the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
10-159	12-15-2010	Dedicating that Ocean Avenue between Forrest Street and Oak Street be also known as Christ the King Church Way	Ch. A352
10-160		Amending and supplementing Chapter 53 of the Jersey City Municipal Code implementing Article XIII confirming the provision of medical and health insurance benefits to certain active employees and retirees with 25 years of service credit in a State or Locally administered retirement system, pursuant to N.J.S.A. 40A:10-23, but limiting the benefits in the future to only those employees who also retire with at least 15 years of service with the City of Jersey City	Withdrawn 11-23-2010
10-161		Amending and supplementing Chapter 53 of the Jersey City Municipal Code implementing Article XIII confirming the provision of medical and health insurance benefits to certain active employees and retirees with 25 years of service credit in a State or Locally administered retirement system, pursuant to N.J.S.A. 40A:10-23, but limiting the benefits in the future to only those employees who also retire with at least 20 years of service with the City of Jersey City	Withdrawn 11-23-2010
10-162		Amending and supplementing Chapter 53 of the Jersey City Municipal Code implementing Article XIII confirming the provision of medical and health insurance benefits to certain active employees and retirees with 25 years of service credit in a State or Locally administered retirement system, pursuant to N.J.S.A. 40A:10-23, but limiting the benefits in the future to only those employees who also retire with at least 25 years of service with the City of Jersey City	Withdrawn 11-23-2010
10-163		Amending and supplementing Chapter 53 of the Jersey City Municipal Code implementing Article XIII confirming the provision of medical and health insurance benefits to certain active employees and retirees with 25 years of service credit in a State or Locally administered retirement system, pursuant to N.J.S.A.40A:10-23	Withdrawn 11-23-2010

Ordinance Number	Date of Adoption	Description	Disposition
10-164	12-15-2010	Amending Chapter 345	345-40.B.12. 345-41.B.12. 345-42.B.13. 345-53.B.10. 345-55.B.2.
10-165	12-15-2010	Adopting amendments to Turnkey Redevelopment Plan	Ch. A352
10-166	12-15-2010	Amending Chapter 345	345-16 345-60
10-167	01-12-2011	Amending traffic schedules (Parking for the Disabled)	Ch. 332
10-168		Amending Ordinance 09-128 authorizing the conveyance of 90 Virginia Avenue to 90 Virginia Avenue, LLC to construct 13 units of emerging market and low and moderate income condominium units	Defeated 03-23-2011
10-169	01-12-2011	Extending Zone 2 Residential Permit Parking	332-58
10-170		Ordinance amending and supplementing Chapter 53, implementing Article XIII confirming the provision of medical and health insurance benefits to certain active employees and retirees with 25 years of service credit in a State or locally administered retirement system, pursuant to N.J.S.A. 40A:10-23, but limiting the benefits in the future to only those employees who also retire with at least 20 years of service with the City of Jersey City requiring all retirees to pay to retain a traditional health benefit plan	Withdrawn 12-15-2010
10-171	01-12-2011	Amending and supplementing Ch. 53, Personnel	53-11
10-172	01-12-2011	Amending Ch. 9	9-2
10-173	01-12-2011	Granting permission to 769 Montgomery Street Urban Renewal Company, LLC, its successors and assigns to permit existing encroachments in the Montgomery Street at Boland Street rights-of-way adjacent to the property located at 769 Montgomery Street	Ch. A352
10-174	01-12-2011	Amending the Liberty Harbor North Redevelopment Plan	Ch. A352
10-175	01-12-2011	Amending the Exchange Place North Redevelopment Plan City View District	Ch. A352
10-176		Ordinance amending and supplementing Chapter 53 of the Jersey City Municipal Code, implementing Article XIII confirming the provision of medical and health insurance benefits to certain active employees and retirees with 25 years of service credit in a State or locally administered retirement system, pursuant to N.J.S.A. 40A: 10-23, but limiting the benefits in the future to only those employees who also retire with at least 25 years of service with the City of Jersey City	Withdrawn 12-15-2010
11-001	01-26-2011	Amending Ch. 3, Art. IX to establish the requirements for the issuance of flea market and farmers' market permits	3-71.1.A(l)(e)
11-002	01-26-2011	Amending and supplementing Ch. 31	31-2 31-4
11-003	01-26-2011	Amending Ch. 90, Art. Ill authorizing: 1) Dog licenses for a term of 3 years; 2) Regulating facilities for the sale and boarding of dogs and 3) Amending Ch. 160 for dog license fees	90-12—90-14 90-16 160-14
11-004	01-26-2011	Re-instating the prior Liberty Harbor Redevelopment Plan	Ch. A352
11-005	01-26-2011	Authorizing 1) the sale of certain unimproved property and 2) amending the grant agreement with the Port Authority of New York/New Jersey to fund the PJP/Siegel acquisition	Ch. A32

Ordinance Number	Date of Adoption	Description	Disposition
11-006		Amending Chapter 53 to 1) Enroll all retirees in a preferred provider or Direct Access Plan or 2) Require all retirees to pay to enroll in a Traditional Health Benefits Plan.	Defeated 01-12-2011
11-007	01-26-2011	Amending and supplementing Ch. 53 confirming the provision of medical and health insurance benefits to certain active employees and retirees with 25 years of service credit in a state or locally administered retirement system, pursuant to N.J.S.A. 40A: 10-23, but limiting the benefits in the future to only those employees who also retire with at least 20 years of service with the City	53-12 53-13
11-008	01-26-2011	Amending and supplementing Ch. 53 confirming the provision of medical and health insurance benefits to certain active employees and retirees with 25 years of service credit in a state or locally administered retirement system, pursuant to N.J.S.A. 40A: 10-23, but limiting the benefits in the future to only those employees who also retire with at least 25 years of service with the City - Supersedes Ord. 11-007	53-12 53-13
11-009	01-26-2011	Dedicating that the intersection of Monmouth and Fifth Streets also be known as Louis Calamite Way	Ch. A352
11-010		Supplementing Ch. 3 establishing the procedure and fees for providing off-duty police officers for special detail assignments	Withdrawn 01-12-2011
11-011	01-26-2011	Supplementing Ch. 3, Art. XI establishing the procedure and fees for providing off-duty police officers for special detail assignments	3-85.1
11-012	02-09-2011	Supplementing Ch. A351	Ch. A351
11-013	02-09-2011	Consenting to the sale and assignment of the tax exemption and financial agreement from 70 Hudson Street Urban Renewal Associates, LLC. to RT 70 Hudson Urban Renewal, LLC	Ch. A352
11-014	02-09-2011	Consenting to the sale and assignment of the tax exemption and financial agreement from 90 Hudson Street Urban Renewal Associates, LLC, to RT 90 Hudson Urban Renewal, LLC	Ch. A352
11-015	02-09-2011	Authorizing a leas agreement between the City of Jersey City, as lessee, and 18 Ash Street Realty, LLC as lessor, for fire and emergency storage space in the premises at located at 46 State Street	Ch. A352
11-016		Amending Ch. 90 and Section 345-60, permits the keeping of chicken, other poultry and bees	Withdrawn 01-26-2011
11-017		Authorizing the leasing of vacant land and recreation and open space shown to be in need of improvements to non-profit corporations or associations for public purposes in connection with the City of Jersey City "Adopt a Lot" Program	Withdrawn 01/26/2011
11-018	02-09-2011	Adopting updated amendments to the land development ordinance pertaining to murals	345-6 345-60.K.
11-019	02-23-2011	Authorizing the leasing of vacant land and open space land shown to be in need of improvements to non-profit corporations or associations for public purposes in connection with the city "adopt a lot" program	Ch. A352
11-020	02-23-2011	Adopting amendments to Ch. 345 revising definitions to facades and comer lots	345-6
11-021	02-23-2011	Adopting amendments to Ch. 345 application fees	345-33
11-022	02-23-2011	Amending Ch. 345 revising the residential design standards and supplementary zoning regulations as they pertain to electrical transformers and facade treatments	345-60 345-62 345-63

Ordinance Number	Date of Adoption	Description	Disposition
11-023	02-23-2011	Adopting amendments to Ch. 345 pertaining to applications for development and review procedures	345-6 345-22—345-25 345-31
11-024	02-23-2011	Amending the Morris Canal Redevelopment Plan to amend standards for ground floor residential uses in the Mixed Use A Subdistrict	Ch. A352
11-025	02-23-2011	Amending Ch. 319	319-2.A. 319-15.B.
11-026	03-09-2011	Supplementing Ch. 332, Art. VIII, extending Zone 2 Residential Permit Parking and extending Zone 5 Residential Permit Parking	332-58
11-027	03-09-2011	Amending the Lafayette Park Redevelopment Plan to create a new Lafayette Village Zone with R-3 zoning standards and to revise site plan review procedure	Ch. A352
11-028		Authorizing the City to lease on-street parking spaces in the Christopher Columbus Drive permit parking zone from the jersey City Parking Authority	Expired on Tabled Agenda 06-30-2013
11-029	03-23-2011	Amending the Hudson Exchange Redevelopment Plan to eliminate conditional uses and replace the boundary map	Ch. A352
11-030		Amending the Village Study Area Redevelopment Plan	Withdrawn 03-09-2011 See Ord. 11-042
11-031	03-23-2011	Adopting amendments to Ch. 345 historic landmark table	345-30.G.
11-032	03-23-2011	Amending the Grand Jersey Redevelopment Plan to implement comprehensive new urbanism development standards from the area	Ch. A352
11-033	03-23-2011	Exceeding the municipal budget appropriation limits and establishing a cap bank	NCM
11-034	03-23-2011	Authorizing the conveyance of 90 Virginia Avenue to the Jersey City Community Housing Corporation, for the purpose of constructing 10 emerging market residential condominium units and 3 affordable housing condominium units	Ch. A352
11-035	03-23-2011	Authorizing the conveyance of 242 Bergen Avenue to Jersey City Episcopal Community Development Corporation, for the purpose of constructing 12 units of affordable rental housing	Ch. A352
11-036	04-13-2011	Supplementing Ch. 151, Drug-free school and park zones	Ch. 151, Art. I(tit.) 151-1
11-037	04-13-2011	Amending traffic schedules (Parking for the Disabled)	Ch. 332
11-038		Amending the Summit and Fairmount Redevelopment Plan adding an acquisition list	Expired on Tabled Agenda 06-30-2013
11-039	04-13-2011	Amending the Bright Street Redevelopment Plan	Ch. A352
11-040	04-13-2011	Adopting the Block 239 Lot 47 Redevelopment Plan	Ch. A352
11-041	04-13-2011	Adopting amendments to Ch. 345 in support of sustainable zoning	345-6 345-60.W, X
11-042	04-13-2011	Amending the Village Study Area Redevelopment Plan	Ch. A352
11-043	04-13-2011	Providing for a special emergency appropriation of $3,150,000 for the preparation and execution of a complete program of revaluation of real property for the use of the local assessor of the city	Ch. A352
11-044	04-27-2011	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq., and section 304-9 of the Municipal Code	Ch. A352
11-045	04-27-2011	Amending Ch. 345	345-6 345-30.D

Ordinance Number	Date of Adoption	Description	Disposition
11-046	04-27-2011	Consenting to the sale and assignment of the tax exemption and financial agreement from PHM Urban Renewal Associates, LLC, to Gaia Journal Square Urban Renewal Associates, LLC	Ch. A352
11-047	05-11-2011	Dedicating that Linden Avenue between John F. Kennedy Boulevard and Fowler Avenue also be known as Rosemary Gallagher Way	Ch. A352
11-048	05-11-2011	Approving a 30-year tax exemption for a low and moderate income affordable housing project to be constructed by Pacific Landing Urban Renewal Co., LLC, a non-profit urban renewal entity, pursuant to the long term tax exemption law N.J.S.A. 40A:20-1 et seq.	Ch. A352
11-049	05-11-2011	Authorizing the conveyance of certain unimproved City-owned property to enable the State of New Jersey to construct improvements to Route 7/Wittpenn Bridge	Ch. A352
11-050		Amending Chapter 175, Article II, Section 8, Itinerant Establishments, and Chapter 160, Fees and Charges	Expired on Tabled Agenda 06-30-2013
11-051	05-11-2011	Supplementing Ch. 332, Sec. 332-29, disabled parking manual, and Sec. 332-69, restricted parking zones in front of or near residences of disabled drivers	332-29, 332-69
11-052	05-11-2011	Supplementing Ch. 332, Art. II, Sec. 332-9, designating stop intersections	332-9
11-053	05-11-2011	Supplementing Ch. 332, Art. II, Sec. 332-8, prohibiting the right turn at the red signal	332-8
11-054	05-11-2011	Adopting amendments to the Montgomery Gateway Redevelopment Plan adding an Adaptive Reuse District	Ch. A352
11-055		Adopting amendments to the Jersey Avenue Tenth Street Redevelopment Plan to amend the Boundary Map	Expired on Tabled Agenda 06-30-2013
11-056	05-11-2011	Authorizing the City to enter into a one-year lease agreement with Saint John's Baptist Church for the purpose of conducting a recreational program pursuant to N.J.S.A. 40A:12-14(c) and N.J.S.A. 40A:12-15®	Ch. A352
11-057	05-11-2011	Amending the Land Development Ordinance pertaining to standards for senior housing development	345-40, 345-43
11-058	05-25-2011	Adopting the 8 Erie Street Redevelopment Plan	Ch. A352
11-059	05-25-2011	Dedicating that the northwest comer of Jewett Avenue and John F. Kennedy Boulevard also be known as Domenick J. Infantes, Jr. Way	Ch. A352
11-060	06-15-2011	Supplementing Ch. 332, Art. III, Sec. 332-22, preventing parking on part of street	332-22
11-061	06-15-2011	Supplementing Ch. 332, Art. Ill, Sec. 332-22, amending parking provisions	332-22
11-062	06-15-2011	Supplementing Ch. 332, Art. Ill, Sec. 332-24, parking prohibited certain hours	332-24
11-063	06-15-2011	Supplementing Ch. 332, Art. Ill, Sec. 332-22, amending parking provisions	332-22
11-064	06-15-2011	Supplementing Ch. 332, Art. XIII, Section 332-31, parking restrictions for street cleaning purposes	332-31
11-065	06-15-2011	Supplementing Ch. 322, Art. III, Sec. 332-23, no stopping or standing	332-23
11-066	06-15-2011	Supplementing Ch. 332, Art. VIII, Section 332-66, on street resident only permit parking zones	332-66
11-067	06-15-2011	Supplementing Ch. 332, Art. VIII, Section 332-58, permit parking	332-58

Ordinance Number	Date of Adoption	Description	Disposition
11-068	06-15-2011	Supplementing Ch. 332, Art. XIII, Section 332-31, parking restrictions for street cleaning purposes	332-31
11-069	06-15-2011	Dedicating that the northeast corner of Montgomery Street and Brunswick Street be also known as Monsignor Kelly Way	Ch. A352
11-070	06-29-2011	Adopting amendments to the Land Development Ordinance adding definition for mezzanines	345-6
11-071	06-29-2011	Adopting amendments to the Morris Canal Redevelopment Plan to permit residential re-use of All Saints School	Ch. A352
11-072	06-29-2011	Adopting amendments to the Exchange Place North Redevelopment Plan to add the deviation clause	Ch. A352
11-073	07-20-2011	Amending the Land Development Ordinance regarding the Medical District in Greenville	345-53
11-074	07-20-2011	Adopting amendments to the Liberty Harbor North Redevelopment Plan relating to Redevelopment Plan Block 5	Ch. A352
11-075		Amending Chapter 332, Article VI (Parking Facilities Operated by Parking Authority) and Article X (Impounding and Booting Vehicles)	Withdrawn 06-29-2011
11-076	07-20-2011	Amending Ch. 296, Art. XII	296-79—296-83
11-077	08-10-2011	Granting permission to 222-224 First Street LLC, its successors and assigns, to construct and install an entry porch, stairs, fencing and landscaping approximately 40 feet in length and 7 feet in depth along the public right-of-way of First Street adjacent to Block 243, Lots 12 & 13	Ch. A352
11-078	08-10-2011	Supplementing Ch. 332, Art. III, Sec. 332-24, Parking prohibited certain hours	332-24
11-079		Dedicating that Monmouth Street from York Street to Montgomery Street also be known as Jaime Vazquez Way	Withdrawn 07-20-2011
11-080		Dedicating that the waterfront walkway between Sussex Street and the Southern Terminus also be known as "Spc. Marlon P. Jackson Walk"	Expired on Tabled Agenda 06-30-2013
11-081	08-10-2011	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-9 of the Municipal Code for property designated as Block 1297.5, Lots 66, 67, 68 and 69.A (to be changed and designated as Lot 75), on the city's tax map and more commonly known by the street address of 319 Grant Avenue	Ch. A352
11-082	08-10-2011	Rescinding Ordinance 05-002, which approved a long term tax exemption for Jersey Avenue 833 Urban Renewal Company, LLC, and approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:2-l, et seq. and section 304-9 of the Municipal Code for property designated as Block 330, Lot 10, on the city's tax map and more commonly known by the street address of 837 Jersey Avenue	Ch. A352
11-083	08-10-2011	Approving a 30-year tax exemption for an affordable housing project to be constructed by Glennview Townhouses II Urban Renewal Associates, L.P., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
11-084	08-10-2011	Approving a 30-year tax exemption for an urban renewal senior low and moderate income affordable housing project to be constructed by Montgomery Senior Living Center Urban Renewal Associates, L.P., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
11-085		Rescinding Ordinance 06-023; and consenting to the sale and assignment of the tax exemption financial agreement as amended, from UNICO- Jersey City Housing, Inc., to 500 Manila Avenue, LLC, pursuant to the New Jersey Housing and Mortgage Finance Agency Law N.J.S.A. 55:14K-1. Ord. 11-085 was adopted as Ord. 11-110 on 09/14/2011.	Withdrawn 07-20-2011 See Ord. 11-110
11-086	08-10-2011	Approving a 30-year tax exemption for a senior citizen affordable housing project to be constructed by St. Bridget's Senior Residence Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. 352
11-087	08-10-2011	Authorizing the rescission of ordinances 08-011 and 07-149; authorizing the termination of the financial and prepayment agreements between the City and the Warren @ York Urban Renewal, LLC, and 106 York Street Urban Renewal Company, LLC; and approving a five-year tax exemption with the Warren @ York Urban Renewal, LLC, for both properties	Ch. A352
11-088	08-10-2011	Amending Ch. 263, Art. II, to add Central Avenue and Bowers Street	263-4.C
11-089	10-12-2011	Adopting the McGinley Square East Redevelopment Plan	Ch. A352
11-090	08-31-2011	Adopting amendments to the zoning map of the Land Development Ordinance expanding the Restaurant Overlay Zone	Ch. A352
11-091	08-31-2011	Adopting amendments to the Montgomery Gateway Redevelopment Plan to permit emergency and ambulance dispatch centers and to remove outdated procedures from the plan	Ch. A352
11-092	08-31-2011	Adopting amendments to the Monticello Avenue Redevelopment Plan to allow a shoppers parking lot as a conditional use	Ch. A352
11-093	08-31-2011	Adopting amendments to the Land Development Ordinance pertaining to historic signage	345-68
11-094	08-31-2011	Adopting amendments to the Land Development Ordinance pertaining to required setbacks for zones and redevelopment plans that abut or are in close proximity to Route 440, Routes 1&9T, and a portion of Communipaw Avenue	345-60.2
11-095	08-31-2011	Amending Ordinance 11-035 to authorize the conveyance of 242 Bergen Avenue to Bergen Court Inc., a non-profit corporation for the purpose of constructing 12 units of affordable rental housing	Ch. A352
11-096	08-31-2011*	Amending Ch. 53, Article III, employee regulations	*VETOED 09-08-2011
11-097	08-31-2011	Supplementing Ch. 332, Art. Ill, Sec. 332-24, parking prohibited certain hours	332-24
11-098	08-31-2011	Supplementing Ch. 332, Art. II, Sec. 332-7, repealing left turn prohibition for vehicles on certain streets	332-7
11-099	08-31-2011	Supplementing Ch. 332, Sec. 332-29, disabled parking manual, and Sec. 332-69, restricted parking zones in front of or near residences of disabled drivers	332-29, 332-69
11-100	08-31-2011	Dedicating that Erie Street From Ninth Street to Pavonia Avenue also be known as Principal Marvin A. Strynar Drive	Ch. A352
11-101	08-31-2011	Approving a 30-year tax exemption for an Urban Renewal Affordable Housing Project to be constructed by Genesis Ocean Associates Urban Renewal Co., LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
11-102	08-31-2011	Approving a 30-year tax exemption for a low income senior citizen and special needs affordable housing project to be constructed by the Ocean Green Senior Apartments, L.P., a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.	Ch. A352
11-103	08-31-2011	Amending Ch. 12, Art. II, Incinerator Authority	12-2.C
11-104	08-31-2011	Amending Ch. 12, Art. II, Incinerator Authority	12-6
11-105	08-31-2011	Dedicating that the Waterfront Walkway at York Street be known as Spc. Marlon P. Jackson & Spc. Rafael A. Nieves, Jr. Walkway	Ch. A352
11-106	08-31-2011	Amending Ch. 53, requiring all retirees to pay to retain a traditional health benefit plan	53-12, 53-14
11-107		Vacating a portion of Port Jersey Boulevard in the City reversion of vacated street to adjoining properties and authorizing quitclaim deed	Withdrawn 08-10-2011
11-108	9-14-2011	Amending Ch. 254 to provide for the maintenance of vacant and abandoned properties in the city and to establish a registration fee for such properties	Added 254-21.1-254-21.9
11-109	09-14-2011	Approving a 30-year tax exemption for a market rate residential condominium project to be constructed by Community Asset Preservation Alliance of Jersey City #2 Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
11-110	09-14-2011	Rescinding Ordinance 06-023; and consenting to the sale and assignment the tax exemption financial agreement, as amended, from UNICO- Jersey City Housing, Inc., to 500 Manila Ave., LLC, pursuant to the New Jersey Housing and Mortgage Finance Agency Law N.J.S.A. 55:14K-1	Ch. A352
11-111	09-14-2011	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-9 of the Municipal Code for property designated as Block 2050, Lot 29, on the city's tax map and more commonly known by the street address of 302-306 Communipaw Avenue and 5 Monitor Street	Ch. A352
11-112	09-27-2011	Adopting amendments to the Land Development Ordinance application fee table and applications and checklists	160-1(UU) 345-31, 345-33.B
11-113	09-27-2011	Dedicating the southwest comer of Ocean Avenue and Stevens Avenue as Bishop Tommie Howell Jr. Way	Ch. A352
11-114	09-27-2011	Dedicating that the northeast comer of Beacon Avenue and Central Avenue be also known as Philip "Philly" Piparo Way	Ch. A352
11-115		Authorizing the conveyance of certain city owned property to the Jersey City Redevelopment Agency	Withdrawn 09-14-2011
11-116	09-27-2011	Refunding bond ordinance providing for payment of amounts owing to others for taxes levied in and by the City, appropriating $7,000,000 therefor and authorizing the issuance of $7,000,000 bonds or notes of the City for financing the cost thereof	Ch. A352
11-117	10-12-2011	Amending and supplementing Ch. 53, Art. I to establish vacation benefits and workplace regulations and use of motor vehicle for employees whose salary and compensation are required to be fixed by ordinance requiring a city decal on motor vehicles	53-6.C

Ordinance Number	Date of Adoption	Description	Disposition
11-118		Authorizing a five (5) year lease with the Jersey City Redevelopment Agency for a portion of the HUB Shopping Center located at 380-382 Martin Luther King HUB Plaza for the use of governmental offices	Withdrawn 09-27-2011
11-119	10-12-2011	Supplementing Ch. A351, Executive Orders and Ordinances	Ch. A351
11-120	10-12-2011	Supplementing Ch. A351, Executive Orders and Ordinances	Ch. A351
11-138	11-09-2011	Supplementing Ch. 332, Art. II, Sec. 332-9 designating multi-way stop intersection	332-9
11-121	10-12-2011	Granting permission to 15-16 Realty Corp., its successors and assigns, to use a portion of the air space and the sidewalk area of the Bergen Avenue public right-of-way located adjacent to 896-898 Bergen Avenue	Ch. A352
11-122	10-12-2011	Authorizing the execution of an agreement with the Port Authority of New York and New Jersey pertaining to a Marine Terminal on the Port Jersey Boulevard, pursuant to N.J.S.A. 32:1-144	Ch. A352
11-123	10-12-2011	Vacating a portion of Port Jersey Boulevard located east of East Pulaski Lane in the City of Bayonne to the most eastern end of Port Jersey Boulevard	Ch. A352
11-124	10-26-2011	Providing for a special emergency appropriation of $9,500,000 for the payment of contractually required severance liabilities resulting from the layoff or retirement of city employees	Ch. A352
11-125		Amending Ch. 319, Towers and Towing, to permit private towers to provide tow pound services to the city	Expired on Tabled Agenda 06-30-2013
11-126	11-09-2011	Refunding bond ordinance providing for the refunding of all or a portion of various series of city bonds, appropriating an amount not exceeding $13,750,000 therefor and authorizing the issuance of not to exceed $13,750,000 general improvement refunding bonds of the city for financing the cost thereof	Ch. A352
11-127	11-09-2011	Accepting from PSEG Power LLC (PSEG) a dedication of certain water mains located within the public rights-of-way known as Duffield Avenue, Van Keuren Avenue, and St. James Street near the Hudson Generating Station	Ch. A352
11-128	11-09-2011	Approving a 30-year tax exemption for a low and moderate income housing project to be constructed by Bergen Court, Inc., a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.	Ch. A352
11-129	11-09-2011	Approving a 20 year tax exemption for a market rate industrial project to be constructed by Goya 75th Urban Renewal Co., LLC, an urban renewal entity, pursuant to the long term tax exemption law N.J.S.A. 40A:20-l et seq.	Ch. A352
11-130	11-09-2011	Approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-9 of the Municipal Code for property designated as Block 2101, Lot 18, on the city's tax map and more commonly known by the street address of 61-69 Amity Street, Jersey City	Ch. A352
11-131	11-09-2011	Approving a five (5) year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and section 304-9 of the Municipal Code for property designated as Block 2058, Lots 18 & S, on the city's tax map and more commonly known by the street address of 631-645A Grand Street	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
11-132	11-09-2011	Dedicating that the intersection of St Paul's Avenue and Huron Avenue also be known as Robert G. Sacks Way	Ch. A352
11-133	11-09-2011	Dedicating that the intersection of Summit Avenue and Laidlaw Avenue also be known as Michael Malloy Jr. Way	Ch. A352
11-134	11-09-2011	Authorizing the City to execute a forty-three (43) month lease agreement with Central Parking System of New Jersey, Inc. for parking spaces located at 2 Journal Square	Ch. A352
11-135	11-09-2011	Adopting the Bright and Varick Redevelopment Plan	Ch. A352
11-136		Amending Ch. 175, Food Handling Establishments, Art. II, Itinerant Eating and Drinking Establishments, Sec. 175-8, Itinerant Establishments, and Ch. 160, Fees and Charges	Expired on Tabled Agenda 06-30-2013
11-137		Supplementing Ch. 332, Art. VII, Sec. 332-57, On-Street Permit Parking Zones, designating on-street permit parking for itinerant vendor trucks	Expired on Tabled Agenda 06-30-2013
11-138	11-09-2011	Supplementing Ch. 332, Art. II, Sec. 332-9, Stop Intersections	332-9
11-139	11-09-2011	Supplementing Ch. 332, Art, Ill, Sec. 332-29, disabled parking manual and Art. IX, Sec. 332-69, restricted parking zones in front of or near residences of disabled drivers	332-29 332-69
11-140	11-09-2011	Supplementing Ch. 332, Art. Ill, Sec. 332-22, parking prohibited at all times; Sec. 332-27, Angle Parking; Art. VII, Sec. 332-48, designation of parking spaces; and Sec. 332-57, on-street permit parking zones	332-22 332-27 332-48 332-57
11-141	11-09-2011	Dedicating that Forrest Street between Bergen Avenue and Martin Luther King Drive also be known as Willie L. Flood Way	Ch. A352
11-142		Amending Ch. 319, Towers and Towing, to permit private towers to provide tow pound services to the city	Expired on Tabled Agenda 06-30-2013
11-143	11-22-2011	Supplementing Ch. 332, Art. VII, Sec. 332-248, amending the designation of parking spaces and supplementing the on-street parking meter zones	332-48
11-144	11-22-2011	Ordinance authorizing the execution of an agreement to lease certain property located at 392-394 Central Avenue from the Jersey City Parking Authority	Ch. A352
11-145	12-14-2011	Supplementing Ch. 332, Art. Ill, Sec. 332-22 designating no parking any time on the certain streets	332-22
11-146	12-14-2011	Authorizing the conveyance of city-owned property within the Ocean Bayview Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
11-147	12-14-2011	Adopting the Ninth and Brunswick Redevelopment Plan	Ch. A352
11-148	12-14-2011	Amending Art. III, Procedures and Checklists of the Land Development Ordinance	345-3 l.C—E
11-149	12-14-2011	Adopting amendments to the Land Development Ordinance expanding the R-1A zoning district in Ward C	345-34
11-150	12-14-2011	Amending the Land Development Ordinance pertaining to supplementary regulations regarding fire escapes	345-60
11-151		Amending Ch. 175, Art. II, Sec. 175-8, Itinerant Establishments, and Ch. 160, Fees and Charges	Expired on Tabled Agenda 06-30-2013

Ordinance Number	Date of Adoption	Description	Disposition
11-152	12-14-2011	Creating the Jackson Hill Main Street Special Improvement District and designation of the Jackson Hill Management Corporation within the City of Jersey City	Added 69-52—69-67
11-153	12-14-2011	Supplementing Ch. 332, Art. VII, Sec. 332-48, designation of parking spaces	332-48
11-154		Amending Ch. 157, Entertainment and Dance Licenses	Withdrawn 12-14-2011 See Ord. No. 12-001
11-155		Adopting amendments to Art. V of the Land Development Ordinance pertaining to entertainment	Withdrawn 12-14-2011 See Ord. No. 12-002
11-156	01-11-2012	Repealing Ch. 307, Article II, autobuses, livery and limousine services, (Sections 307-37 through 307-38), and Article III, limousines, (Sections 307-39 through 307-42), and adding new Article II, general provisions	Repealed 307-37—307-42 Added 307-37—307-43
11-157	01-11-2012	Authorizing a three-year lease on property to Friends of Lifers for an urban farm	Ch. A352
11-158	01-11-2012	Authorizing a license agreement extension of city-owned property at 627 Grand Street within the Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
11-159	01-11-2012	Amending Section 332-58, Parking restrictions in residential zones	332-58
12-001	01-25-2012	Amending Ch. 157, entertainment licenses	157-1—157-4 157-6,157-7 157-10,157-10.1
12-002	01-25-2012	Amending the land development ordinance pertaining to entertainment	345-45—345-48 345-56, 345-58 345-60
12-003	01-25-2012	Adopting an amendment to the zoning map expanding the restaurant overlay zone	Ch. A352
12-004	01-25-2012	Amending the land development ordinance pertaining to the commercial/automotive district	345-49
12-005	01-25-2012	Dedicating that the intersection of Maple Street and Halladay Street also be known as Joseph A. Webb Place	Ch. A352
12-006	01-25-2012	Dedicating that Van Home Street between Maple Street and Johnston Avenue also be known as Allen Nile Dunbar, Sr. Way	Ch. A352
12-007	01-25-2012*	Amending Ch. 3, administration of government, Art II, council, establishing the office of Council President, Pro Tern	*VETOED 01-31-2012
12-008		Amending Ch. A350, council rules of order, prohibiting Council Members from using cell phones or other electronic devices while on the council dais while a council meeting is in session	Withdrawn 01-11-2012
12-009	02-08-2012	Adopting height amendments to the Ninth Street II Study Area Redevelopment Plan	Ch. A352
12-010	02-08-2012	Accepting a dedication of certain land and improvements located within the Marion Works Office/ Residential District (creation of new park 47 Dey St)	Ch. A352
12-011	02-08-2012	Authorizing the execution of a deed notice imposing deed restrictions on property known as 73-85 Bishop St	Ch. A352
12-012	02-08-2012	Amending Section 332-24, parking prohibited certain hours	332-24
12-013	02-08-2012	Amending Section 332-48, designation of parking spaces	332-48

Ordinance Number	Date of Adoption	Description	Disposition
12-014	02-22-2012	Dedicating that the southwest corner of Wayne Street and Baldwin Avenue also be known as Reverend Fernando L. Colon Jr. Way	Ch. A352
12-015		Amending Ch. 263, retail and commercial premises, Art. II, hours of retail businesses	Withdrawn 02-08-2012
12-016	02-22-2012	Amending the land development ordinance Marion Works Office/Residential Sub-District "A" Residential Density Bonuses for the creation of improved public park area	34-50a
12-017	03-14-2012	Amending and supplementing Ch. 319 to permit private towers to provide tow pound services to the city	319-1—319-6 319-8, 319-9.A. 319-11—319-17 Rpld 319-18 Rnbd 319-7 as 319-7.1 Added 319-7, 319-18 319-19
12-018		Amending Ch. 345, Art. V, off-street parking and loading to require landlords and sellers to notify prospective tenants and purchasers that front yard driveways are forbidden	Withdrawn 02-08-2012
12-019	02-22-2012	Amending Section 332-24, parking prohibited certain hours	332-24
12-020	02-22-2012	Approving an amendment to the 20-year tax abatement of Hudson Palisades Urban Renewal, LLC, to 1) convert the project from residential rental units to residential condominium, and 2) reduce the service charge to 10% of the annual gross revenue for the full term, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
12-021	02-22-2012	Consenting to the refinance and approval of an amendment to the affordable housing 40 year tax exemption agreement with Montgomery Gateway Associates, pursuant to the Limited Dividend Nonprofit Housing Corporation Law, N.J.S.A. 55:16-1 to 1) increase the annual service charge from 6.28% to 8%; and 2) to establish a 2% administrative fee	Ch. A352
12-022	02-22-2012	Dedicating that the south side of Newark Avenue from Baldwin Avenue to Central Avenue also be known as Judge Shirley Tolentino Avenue	Ch. A352
12-023	03-14-2012	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank	
12-024	03-14-2012	Refunding bond ordinance, providing for the refunding of all or a portion of various series of City bonds, appropriating an amount not exceeding $28,000,000 therefor and authorizing the issuance of not to exceed $28,000,000 general obligation refunding bonds of the City for financing the cost thereof	Ch. A352
12-025	03-14-2012	Amending § 345-43, R-4 Multi-Family High-Rise District	345-43
12-026		Adopting an amendment to the zoning map further expanding the Restaurant Overlay Zone	Defeated 03-14-2012
12-027	03-14-2012	Adopting map change amendments to the Beacon Redevelopment Plan and revising outdated language	Ch. A352
12-028		Amending Ch. 218, multiple dwellings, Art. I, security services, to require owners to engage uniformed guards to provide security services exclusively	Withdrawn 02-22-2012
12-029	03-28-2012	Dedicating that the intersection of Manila Avenue and Second Street also be known as Dr. Eliu Rivera Way	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
12-030	03-28-2012	Authorizing the City to execute a grant of license and right of entry agreement with Hudson Conduit Associates, LLC to permit the City to install and maintain 48 strand fiber in conduit owned by Hudson Conduit Associates	Ch. A352
12-031	03-28-2012	Amending Section 332-24, parking prohibited certain hours	332-24
12-032	03-28-2012	Authorizing the conveyance of certain property at 8 Erie St; 228 Bay St; and 223-231 First St to the Jersey City Redevelopment Agency	Ch. A352
12-033	03-28-2012	Authorizing the City to lease City-owned property at 103-105 Oxford Av to the Jersey City Public Schools	Ch. A352
12-034	03-28-2012	Authorizing the City to lease City-owned property at 109 Oxford Av to the Jersey City Public Schools	Ch. A352
12-035	03-28-2012	Authorizing the City to lease City-owned property at 268 Varick St to the Jersey City Public Schools	Ch. A352
12-036	03-28-2012	1) Terminating the financial agreement and project employment agreement authorized by Ordinance 05-008 between the City and 150 Essex Street Urban Renewal, LLC, and 2) authorizing the assignment and clarification of the prepayment agreement from 150 Essex Street Urban Renewal, LLC, to 198 Van Vorst Street, LLC	Ch. A352
12-037	03-28-2012	Adopting amendments to the Powerhouse Arts District Redevelopment Plan to encourage consolidation and development on undersized parcels in the Transition Subdistrict	Ch. A352
12-038		Amending Ch. 345, Article VII, enforcement, violations and penalties, and Ch. 160, fees and charges, to require a zoning certificate of compliance to be obtained upon change of use or ownership of real property within the City	Expired on Tabled Agenda 06-30-2013
12-039	03-28-2012	Amending maps adopted by Ord. No. 11-094	345-60.2
12-040		Adopting amendments to the Luis Munoz Marin Boulevard Redevelopment Plan	Defeated 03-28-2011
12-041	03-28-2012	Adopting amendments to the Grand Jersey Redevelopment Plan	Ch. A352
12-042	04-11-2012	Providing for various capital improvements for the city and appropriating $28,157,850, therefor, and providing for the issuance of $26,816,950 in general improvement bonds or notes of the city to finance the same	Ch. A352
12-043	04-11-2012	Adopting amendments to the land development ordinance pertaining to application fees	345-33 A.I.
12-044	04-11-2012	Adopting amendments to the land development ordinance establishing hearing requirements	Added 345-31.1
12-045	04-11-2012	Adopting amendments to the land development ordinance prohibiting stilted buildings	345-70
12-046	04-11-2012	Dedicating that Randolph Avenue between Union Street and Bramhall Avenue Also Be Known as "Michael Muchioki Way"	Ch. A352
12-047	04-11-2012	Adopting amendments to the Luis Munoz Marin Boulevard Redevelopment Plan	Ch. A352
12-048	04-11-2012	Adopting an amendment to the zoning map further expanding the Restaurant Overlay Zone	Ch. A352
12-049	04-25-2012	Dedicating that the intersection of Bergen Avenue and Vroom Street also be known as "Pope Shenouda III Way"	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
12-050		Amending and supplementing Chapter 12, Article II, Incinerator Authority, of the Jersey City Municipal Code to dissolve the Jersey City Incinerator Authority and amending and supplementing Chapter 3, Article IX, Department of Public Works, to consolidate the former functions of the Jersey City Incinerator Authority thereunder	Expired on Tabled Agenda 06-30-2013
12-051	04-25-2012	Amending and supplementing Section 304-33, definitions, and Section 304-35, general requirements.	304-33, 304-35
12-052	04-25-2012	Amending and supplementing Chapter 160 to establish license fees for the newly-created impound operators license	160-1 OO.
12-053	04-25-2012	Amending Section 332-58, on-street permit parking zones	332-58
12-054		Authorizing a five-year lease with the Jersey City Redevelopment Agency for a portion of the HUB Shopping Center located at 380-382 Martin Luther King HUB Plaza for the use of governmental offices	Withdrawn 04/11/2012
12-055	04/25/2012	Dedicating that Monmouth Street from York Street to Montgomery Street also be known as Jaime Vazquez Way	Ch. A352
12-056		Providing for payment of costs in furtherance of the dissolution of the Jersey City Incinerator Authority and appropriating $9,000,000, therefor, and providing for the issuance of $9,000,000 in bonds or notes of the City of Jersey City to finance the same	Withdrawn 04/25/2012
12-057	05-09-2012	Amending Chapter 160, Section 160-1	160-1 C.
12-058	05-09-2012	Authorizing a three-year lease subject to 60-day cancellation notice, with the Jersey City Redevelopment Agency for a portion of the Hub Shopping Center located at 380-382 Martin Luther King Hub Plaza for the use of governmental offices	Ch. A352
12-059	05-09-2012	Adopting amendments to the Hudson Exchange Redevelopment Plan and changing its name to Harsimus Cove Station Redevelopment Plan	Ch. A352
12-060	05-09-2012	Adopting amendments to Ch. 345, Art. III, procedures and checklists	345-31
12-061	05-09-2012*	Supplementing Chapter 332, Article II, Section 332-9, Stop Intersections, of the Jersey City Code designating Franklin Street and New York Avenue as a multi-way stop intersection	VETOED 05-18-2012
12-062	05-09-2012	Repealing Ord. No. 10-158 in its entirety, and supplementing Section 332-57, on-street permit parking zones; Section 332-48, designation of parking spaces; Section 332-52, violations; section 332-27, angle parking; Section 332-22, parking prohibited at all times; Section 332-31, parking restrictions for street cleaning purposes; and Section 160-1, designating the fee for the on-street permit parking zone and the fee for the parking meter zone on Douglas and Arthur Skinner Memorial Drive from Grand Street, south to the light rail tracks	160-1, 332-22, 332-27, 332-31, 332-48, 332-52, 332-57
12-063	05/09/2012	Rescinding Ordinance 12-046 and dedicating that Union Street between Randolph Avenue and Arlington Avenue also be known as "Michael Muchioki Way"	Ch. A352
12-064	05-23-2012	Dedicating that Martin Luther King Drive between Stegman Street and Wegman Parkway also be known as Bishop Scotland B. Bailey Way	Ch. A352
12-065	05-23-2012	Dedicating that the northeast comer of Stevens Avenue and Rutgers Avenue to also be known as Bishop Wayman Wright, Sr. Way	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
12-066		Dedicating the Union Street between Arlington Avenue and Randolph Avenue also be known as "Michael Muchioki Way"	Withdrawn 05-09-2012 See Ord. 12-063
12-067	05-23-2012	Dedicating that Woodlawn Avenue between Bergen Avenue and Martin Luther King Drive also be known as "Rev. Donavon W. Shoemaker Way"	Ch. A352
12-068	05-23-2012	Authorizing the cancellation of taxes pursuant to N.J.S.A. 54:4-3.6c for property owned by Continuous Flow Christian Center and located at 168-170 Monticello Avenue, on Block 16803, Lots 74 and 75 (formerly known as Block 1919, Lots E and F)	Ch. A352
12-069	05-23-2012	Amending Section 263-4, businesses to be closed during certain hours; exceptions, to add Bergen Avenue and Montgomery Street	263-4
12-070	05-23-2012	Supplementing the Disabled Parking Manual	332-29, 332-69
12-071	05-23-2012	Amending a 10 year tax exemption approved by Ordinance 07-148 for a market rate mixed used rental project to be constructed by Grand LHN I Urban Renewal LLC, an urban renewal entity, pursuant to the long term tax exemption law N.J.S.A. 40A:20-1 et seq.	Ch. A352
12-072	05-23-2012	Amending and supplementing Chapter 84, Article 1, Plenary retail, consumption and distribution licenses, and Chapter 160, Section 160-1, Fee schedule estabhshed	84-8,160-1 C. Rpld 84-9—84-13
12-073		Amending and supplementing Chapter 3, Article VI, Department of Administration, and Article X, Department of Housing, Economic Development & Commerce, of the Jersey City Municipal Code (Living Wage Ordinance)	Withdrawn 05/09/2012
12-074	05-23-2012	Naming the fieldhouse at Courtney Fricchione Memorial Field "Elliot "Skip" Adams Fieldhouse"	Ch. A352
12-075	06-13-2012	Authorizing the city to enter into a one-year lease agreement with Saint John's Baptist Church, a nonprofit organization of the State of New Jersey, for the purpose of conducting a recreational program pursuant to N.J.S.A. 40A:12-14(c) and N.J.S.A. 40A:12-15®	Ch. A352
12-076	06-13-2012	Authorizing a second amendment to the city's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot .B	Ch. A352
12-077		Amending Chapter 175, Article II, Section 8, Itinerant Establishments, and Chapter 160, Fees and Charges, of the Jersey City Municipal Code	Withdrawn 05/23/2012
12-078	06-13-2012	A franchise ordinance granting permission to Jersey City Episcopal Community Development Corporation (petitioner) to use that 489 square feet on Halladay Street, all in lot formerly known as 9,1 IB, 12 & 33 now known as lots 34, 35, 36 & 37 block 2054 on the official tax assessment map of the for the installation and maintenance of a fence, landscaping and front path which encroach onto the public right-of-way of Halladay Street	A352
12-079	06-27-2012	Dedicating that the northeast comer of Dwight Street and Martin Luther King Drive to also be known as Harvey George Way	Ch. A352
12-080	06-27-2012	Dedicating that the portion of Academy Street between Van Reypen Street and Bergen Avenue to also be known as "Apple Tree House Lane"	Ch. A352
12-081		Adopting amendments to the Land Development Ordinance to require bicycle parking	Expired on Tabled Agenda 06-30-2013

Ordinance Number	Date of Adoption	Description	Disposition
12-082	06-27-2012	Adopting the 1 Exchange Place Redevelopment Plan	Ch. A352
12-083	06-27-2012	Adopting amendments to the Morris Canal Redevelopment Plan to create Berry Lane Park Subdistricts, to incorporate new block and lot numbers, and to reorganize the content of the plan	Ch. A352
12-084	06-27-2012	Adopting amendments to the Newport Redevelopment Plan to amend maps and definitions	Ch. A352
12-085		Adopting amendments to the Turnkey Redevelopment Plan	Withdrawn 06-13-2012 See Ord. 11-110
12-086		Amending and supplementing Chapter 3, Article VI, Department of Administration, and Article X, Department of Housing, Economic Development & Commerce, of the Jersey City Municipal Code (Living Wage Ordinance)	Withdrawn 06-13-2012; See Ord. 12-090
12-087		Amending Chapter 304, Article VI, Long Term Tax Exemption Affordable Housing Trust Fund	Expired on Tabled Agenda 06-30-2013
12-088	07-18-2012	Dedicating that the comer of Hutton Street and Palisade Avenue also be known as Carlos Negron Place	Ch. A352
12-089	07-18-2012	Amending Chapter 3, Article III, Mayor, and Article VI, Department Administration, to reestablish the Division of the Mayor's Action Bureau within the office of the mayor	Added 3-19.1, 3-19.2 Rpld 3-42.F, 3-50, 3-50.1
12-090	07-18-2012	Amending and supplementing Chapter 3, Article VI, Department of Administration, and Article X, Department of Housing, Economic Development & Commerce (Living Wage Ordinance)	3-51.G Added 3-51.3, 3-51.4, 3-76.C
12-091	08-01-2012	Approving amendments to: 1) the settlement consent order among the City, New Gold Equities Corp and BLDG Management Co, Inc and 2) the 10 year tax exemption for market rate residential rental housing with 110 First Street Urban Renewal Associates, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
12-092	08-01-2012	Authorizing the conveyance of certain unimproved city-owned property known as Block 718, Lot 5, to Christ Hospital	Ch. A352
12-093	08-01-2012	Authorizing the transfer of city-owned property within the Bright and Varick Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
12-094		Authorizing 1) The reacquisition of 108 Storms Avenue from Jersey City Community Housing Corporation and 2) The conveyance of 108 Storms to the Jersey City Redevelopment Agency	Withdrawn 07/18/2012
12-095	08-01-2012	Authorizing the transfer of city-owned property within the 826 Ocean Avenue Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
12-096	08-01-2012	Authorizing the transfer of Jersey City Redevelopment Agency-owned property within the Martin Luther King Drive Redevelopment Area to the City of Jersey City	Ch. A352
12-097	08-01-2012	Authorizing the imposition of deed restrictions on a portion of St. Pauls Av between Duffield Av and Charlotte Av and a portion of Duffield Av between Howell St and Meadow St	Ch. A352
12-098	08-11-2012	Amending section 332-66, on-street resident only permit parking zones, extending Zone 11 on-street resident only permit parking to Fairmount Av from West Side Av to Kennedy Blvd and Fairmount Tr from Montgomery St to Fairmount Av	332-66.D
12-099	08-01-2012	Adopting amendments to the West Side Avenue Redevelopment Plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
12-100	08-01-2012	Adopting amendments to the 325 Palisade Avenue Redevelopment Plan	Ch. A352
12-101	08-01-2012	Adopting amendments to the land development Ordinance - supplementary zoning as it pertains to principal structures and parapet height	345-60.B, G, H
12-102	08-01-2012	Approving a five (5) year tax exemption with Nams Developers, Inc., pursuant to the provisions of N.J.S.A 40A:21-l, et seq. and Section 304-9 of the Municipal Code for property designated as Block 17905, Lot 1, on the city's tax map and more commonly known by the street address of 650 Communipaw Avenue	Ch. A352
12-103	08-01-2012	Approving a five (5) year tax exemption with Chosen Estates, LLC, pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 10601, Lot 10, on the city's tax map and more commonly known by the street address of 300 Magnolia Avenue	Ch. A352
12-104	08-01-2012	Approving a five (5) year tax exemption with Saint Paul's, LLC, pursuant to the provisions of N.J.S.A. 40A:21-l, et seq. and section 304-9 of the Municipal Code for property designated as Block 6801, Lot 21, on the city's tax map and more commonly known by the street address of 68-76 St. Paul's Av and 70-74 Oakland Av	Ch. A352
12-105		Approving 1) The settlement of litigation with K. Hovnanian at 77 Hudson Urban Renewal Company, LLC and 2) An amendment to its long term tax exemption pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Defeated 08/01/2012
12-106	08-22-2012	Amending Chapter 3, Article II, changing the term of the office of Council President	3-4 A350-7
12-107	09-12-2012	Authorizing the City to execute an amendment to its lease with 30 Montgomery Property, LLC, for office space at 30 Montgomery Street, Block 8, Lot C2	Ch. A352
12-108	08-22-2012	Granting permission to 593 Jersey Avenue, LLC, its successors and assigns, to make private improvements in the Jersey Avenue public right-of-way adjacent to the property located at 587 Jersey Avenue, Jersey City, New Jersey, also known on the tax maps of the City as Block 315, Lot B	Ch. A352
12-109	09-12-2012	Dedicating that the intersection of Sip Av and Hawthorne Av also be known as Raymond F. Skop Way	Ch. A352
12-110	09-12-2012	Adopting amendments to the Jersey Avenue Light Rail Redevelopment Plan parking standards	Ch. A352
12-111	09-12-2012	Adopting amendments to the Jersey Avenue Park Redevelopment Plan Parking Standards	Ch. A352
12-112	09-12-2012	Adopting amendments to the land development ordinance, Article III, Section 345-38, redevelopment areas, to unify all redevelopment plan language relating to development approval	345-38
12-113	09-12-2012	Dedicating that the southeast comer of Vroom St and Tuers Av also be known as Maureen Walliser Way	Ch. A352
12-114	09-27-2012	Amending Section 332-29, disabled parking manual, and Section 332-69, restricted parking zones in front of or near residences of disabled drivers, to add new parking spaces	332-29, 332-69
12-115	09-27-2012	Adopting amendments to the Majestic II Redevelopment Plan regulations relating to use, density, and building configuration	Ch. A352
12-116		Adopting amendments to the Journal Square 2060 Redevelopment Plan	Withdrawn 09-12-2012 See Ord. 12-141

Ordinance Number	Date of Adoption	Description	Disposition
12-117	09-27-2012	Adopting amendments to the Jersey Avenue Park Redevelopment Plan New Tax Block 6006 (formerly Tax Block 330)	Ch. A352
12-118	09-27-2012	Adopting amendments to the land development ordinance clarifying site plan review thresholds as they pertain to parking	345-16.A.8
12-119	09-27-2012	Adopting amendments to the Exchange Place North Redevelopment Plan to update fees, procedures, and metes and bounds	Ch. A352
12-120		Ordinance 1) Authorizing the assignment NUNC PRO TUNC of the financial and prepayment agreements from the Criterion Urban Renewal Company, LLC to BR Criterion; and 2) Approving a 15 year tax exemption with BR Criterion Urban Renewal Company, LLC for the property with a conversion from a condominium project to a market rate residential rental project	Withdrawn 09-12-2012 See Ord. 12-127
12-121		Ordinance 1) Authorizing the assignment NUNC PRO TUNC of the financial and prepayment agreements from the Hague Urban Renewal Company, LLC to BR Hague; and 2) Approving a 15 year tax exemption with BR Hague Urban Renewal Company, LLC for the property with a conversion from a condominium project to a market rate residential rental project	Withdrawn 09-12-2012 See Ord. 12-128
12-122		Authorizing the City to execute an amendment to its lease with 30 Montgomery Street property, LLC for office space at 30 Montgomery Street, Block 8, Lot C2	Withdrawn 09-12-2012
12-123	10-10-2012	Refunding bond ordinance, providing for the refunding of all or a portion of various series of city bonds, appropriating an amount not exceeding $40,000,000 therefor and authorizing the issuance of not to exceed $40,000,000 general obligation refunding bonds of the City for financing the cost thereof	Ch. A352
12-124	10-10-2012	Amending Ordinance 12-076 authorizing a third amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to include the construction of improvements by the landlord as additional rent	Ch. A352
12-125	10-10-2012	Amending section 332-24, parking prohibited certain hours, designating 55 feet in the vicinity of the entrance to Hamilton Park Montessori School, I McWilliams Place as no parking 8:30 a.m. to 9:30 a.m., Monday through Friday, except public holidays	332-24
12-126	10-10-2012	Adopting amendments to the Liberty Harbor North Redevelopment Plan relating to Redevelopment Plan Block S 1, 3, and 19 through 27	Ch. A352
12-127		Authorizing the assignment NUNC PRO TUNC of the financial and repayment agreements from the Criterion Urban Renewal Company, LLC, to BR Criterion Urban Renewal Company, LLC	Expired on Tabled Agenda 06-30-2013
12-128		Authorizing the assignment NUNC PRO TUNC of the financial and repayment agreements from the Hague Urban Renewal Company, LLC, to BR Hague Urban Renewal Company, LLC	Expired on Tabled Agenda 06-30-2013

Ordinance Number	Date of Adoption	Description	Disposition
12-129		Ordinance 1) Approving a 15 year tax exemption for BR Beacon Commerce Urban Renewal Company, LLC, for a commercial parking garage project; 2) Assigning the prepayment and affordable housing contribution credits due the Beacon Commerce Urban Renewal Company, LLC, under its prepayment agreement and financial agreement, to BR Beacon Commerce Urban Renewal Company, LLC; and 3) Repealing Ordinance 05-093	Expired on Tabled Agenda 06-30-2013
12-130		Ordinance 1) Approving a 15 year tax exemption for BR Beacon Parking Urban Renewal Company, LLC, for a commercial parking garage project; 2) Assigning the prepayment and affordable housing contribution credits due the Beacon Parking Urban Renewal Company, LLC, under its prepayment agreement and financial agreement, to BR Beacon Parking Urban Renewal Company, LLC; and 3) Repealing Ordinance 05-094	Expired on Tabled Agenda 06-30-2013
12-131		Ordinance 1) Approving a 15 year tax exemption for BR Mercury Urban Renewal Company, LLC, for a market rate residential rental project; 2) Assigning the prepayment credits due the Mercury Urban Renewal Company, LLC, under its prepayment agreement to BR Mercury Urban Renewal Company, LLC; and 3) Repealing Ordinance 06-158	Expired on Tabled Agenda 06-30-2013
12-132		Ordinance 1) Approving a 15 year tax exemption for BR Orpheum Urban Renewal Company, LLC, for a market rate residential rental project; 2) Assigning the prepayment credits due the Orpheum Urban Renewal Company, LLC, under its prepayment agreement to BR Orpheum Urban Renewal Company, LLC; and 3) Repealing Ordinance 06-159	Expired on Tabled Agenda 06-30-2013
12-133		Ordinance 1) Approving a 15 year tax exemption for BR Paramount Urban Renewal Company, LLC, for a market rate residential rental project; 2) Assigning the prepayment credits due the Paramount Urban Renewal Company, LLC, under its prepayment agreement to BR Paramount Urban Renewal Company, LLC; and 3) Repealing Ordinance 06-160	Expired on Tabled Agenda 06-30-2013
12-134		Ordinance 1) Approving a 15 year tax exemption for BR Tower Urban Renewal Company, LLC, for a market rate residential rental project; 2) Assigning the prepayment credits due the Tower Urban Renewal Company, LLC, under its prepayment agreement to BR Tower Urban Renewal Company, LLC; and 3) Repealing Ordinance 06-161	Expired on Tabled Agenda 06-30-2013
12-135	10-24-2012	Dedicating that the southeast comer of Dwight St and Ocean Av to also be known as James "Zimp" Smith Way	Ch. A352
12-136	10-24-2012	Amending Section 332-22, parking prohibited at all times, extending the no parking any time prohibition on the north side of Newark Av beginning at Kennedy Blvd to a point 280 feet east and designating no parking any time on the north side of Newark Av beginning at Summit Av to a point 180 feet west	332-22
12-137	10-24-2012	Amending Chapter 160, fees and charges, and Chapter 260, rent control	160-LDD, 260-1,260-2, 260-9.D
12-138		Refunding bond ordinance providing for payment on amounts owing to others for taxes levied in and by the City of Jersey City, in the County of Hudson, New Jersey, appropriating $4,700,000 therefor and authorizing the issuance of $4,700,000 bonds or notes of the City of Jersey City for financing the cost thereof	Expired on Tabled Agenda 06-30-2013

Ordinance Number	Date of Adoption	Description	Disposition
12-139		Ordinance repealing Chapter 3 (administration of Government) Article XI (Department of Police) Section 3-85 of the Jersey City Municipal Code in its entirety and replacing it with a new Section 3-85 "Crime Prevention Law"	Defeated 10-10-2012
12-140		Providing for a Special Emergency Appropriation of $9,500,000 for the payment of contractually required severance liabilities resulting from the retirement of city employees	Defeated 11-28-2012
12-141	11-28-2012	Adopting amendments to the Journal Square 2060 Redevelopment Plan	Ch. A352
12-142	11-28-2012	Adopting amendments to the Exchange Place North Redevelopment Plan to codify the planning board approvals granted 70-90 Columbus Drive	Ch. A352
12-143	11-28-2012	Adopting an amendment to the definition of work/live unit in the Morgan/Grove/Marin (MGM) Redevelopment Plan	Ch. A352
12-144	11-28-2012	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by 148 First Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
12-145	11-28-2012	Authorizing the assignment nunc pro tunc of the financial agreement from the Criterion Urban Renewal Company, LLC, to BR Criterion Urban Renewal Company, LLC	Ch. A352
12-146	11-28-2012	Authorizing the assignment nunc pro tunc of the financial agreement from the Hague Urban Renewal Company, LLC, to BR Hague Urban Renewal Company, LLC	Ch. A352
12-147		Approving a 15 year tax exemption for BR Beacon Commerce Urban Renewal Company, LLC, for a commercial parking garage project; assigning the prepayment and affordable housing contribution credits due the Beacon Commerce Urban Renewal Company, LLC, under its prepayment agreement and financial agreement, to BR Beacon Commerce Urban Renewal Company, LLC; and repealing Ordinance 05-093	Expired on Tabled Agenda 06-30-2013
12-148		Approving a 15 year tax exemption for BR Beacon Parking Urban Renewal Company, LLC, for a commercial parking garage project; assigning the prepayment and affordable housing contribution credits due the Beacon Parking Urban Renewal Company, LLC, under its prepayment agreement and financial agreement, to BR Beacon Parking Urban Renewal Company, LLC; and repealing Ordinance 05-094	Expired on Tabled Agenda 06-30-2013
12-149	11-28-2012	Approving a 15 year tax exemption for BR Mercury Urban Renewal Company, LLC, for a market rate residential rental project; and repealing Ordinance 06-158	Ch. A352
12-150	11-28-2012	Approving a 15 year tax exemption for BR Orpheum Urban Renewal Company, LLC, for a market rate residential rental project; and repealing Ordinance 06-159	Ch. A352
12-151	11-28-2012	Approving a 15 year tax exemption for BR Paramount Urban Renewal Company, LLC, for a market rate residential rental project; and repealing Ordinance 06-160	Ch. A352
12-152	11-28-2012	Approving a 15 year tax exemption for BR Tower Urban Renewal Company, LLC, for a market rate residential rental project; and repealing Ordinance 06-161	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
12-153		Establishing that a business entity which makes political contributions to municipal candidates and municipal and county political parties in excess of certain thresholds shall be limited in its ability to receive public contracts from the City of Jersey City to add every candidate and candidate committee for the Jersey City Board of Education (Contracts Pay-to Play Reform Ordinance)	Expired on Tabled Agenda 06-30-2013
12-154		Amending Chapter 3, Article VI, adding additional prohibited donations to certain committees and certain contractors doing business with the Jersey City School District	Defeated 10-24-2012
12-155	12-19-2012	Amending Chapter A350, Rule V, Agenda—consent agenda	A350-6
12-156	12-19-2012	Amending Section 332-66, On-street resident only permit parking, extending Zone 8 on-street resident only permit parking for the streets surrounding New Jersey City University to include Fulton Avenue between J.F. Kennedy Boulevard and Bergen, Monday through Friday, 3:00 p.m. To 9:00 p.m. and amend the zone 8 limits for Kennedy Boulevard	332-66
12-157		Amending Chapter 3, Article VI, Contractors Pay-to-Play Reform Ordinance, adding additional prohibited donations to certain committees and certain contractors doing business with the Jersey City School District	Expired on Tabled Agenda 06-30-2013
12-158	12-19-2012*	Amending Chapter 3, Article VI, Contractors Pay-to-Play Reform Ordinance, adding additional prohibited donations to certain committees and certain contractors doing business with the Jersey City School District	'VETOED 12-28-2012
12-159		Providing for a Special Emergency Appropriation of $9,500,000 for the payment of contractually required severance liabilities resulting from the retirement of city employees	Defeated 12-19-2012
12-160	01-09-2013	Amending Chapter A350 to add a rule concerning police presence during council meetings to maintain order	Rnbd A350-8—A350-28 as A350-9—A350-29 Added A350-8
12-161	01-09-2013*	Amending Chapter 3, Article VI, Redeveloper's Pay to Play Reform Ordinance, adding additional prohibited donations to certain committees and candidates	'VETOED 01-11-2013
12-162		Amending Chapter 239, Parks, and Chapter 242, Article VI, Roller Skates, In-Line Skates, Skateboards and Bicycles	Expired on Tabled Agenda 06-30-2013
12-163	01-09-2013	Vacating a portion of Grove Square consisting of approximately 1,910 square feet in order to align the street grid with the Liberty Harbor North Redevelopment Plan	A352
12-164	01-09-2013	Consenting to the sale and assignment of the tax exemption and financial agreement from Chowanec Urban Renewal, LLC, to 179 Warren Street Urban Renewal Co., LLC, pursuant to section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	Ch. A352
12-165	01-09-2013	Designating reserved parking spaces on various streets	332-29, 332-69

Ordinance Number	Date of Adoption	Description	Disposition
12-166	01-09-2013	Supplementing Section 332-23, No Stopping or standing, designating no stopping or standing on the south side of Newport Parkway beginning 35 feet east of Washington Boulevard and extending to a point 255 feet east, and amending Section 332-48, Designation of parking spaces, repealing metered parking on the side of Newport Parkway from Washington Boulevard to North Boulevard	332-23, 332-48
13-001	01-23-2013	Adopting amendments to the Land Development Ordinance to require bicycle parking	345-3 l.C—G 345-70
13-002	01-23-2013	Approving a five (5) year tax exemption with Pointe Developers Retail, LLC, pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 14301, Lot 8, Unit C000R, on the city's tax map and more commonly known by the street address of 253 Washington Street	Ch. A352
13-003	01-23-2013	Supplementing Chapter 332, Article III, Parking, Standing And Stopping, and Article IX, Parking for the Disabled, designating a reserved parking space at 144 Franklin Street; amending the reserved parking space on Washbum Street and repealing the reserved parking space at 138 Franklin Street	332-29 332-69
13-004	02-13-2013	Adopting amendments to the Sip Avenue Gateway Redevelopment Plan permitting houses of worship	Ch. A352
13-005	02-13-2013	Adopting amendments to the Turnkey Redevelopment Plan	Ch. A352
13-006		Amending Chapter 239, Parks, and Chapter 242, Article VI, Roller Skates, In-Line Skates, Skateboards and Bicycles	Withdrawn 01-23-2013
13-007	02-13-2013	Adopting amendments to the Canal Crossing Redevelopment Plan to create consistency between Land Development Ordinance definitions and permitted uses in the plan	Ch. A352
13-008	02-13-2013	Amending the Land Development Ordinance revising definitions	345-6
13-009	02-13-2013	Amending the Land Development Ordinance, Section 345-38, Redevelopment areas, to strike all definitions from redevelopment plans and instead use the land development ordinance glossary	345-38
13-010	02-13-2013	Adopting amendments to the Land Development Ordinance as it pertains to building facade terminology in the R-1 One- and Two-Family Housing District	345-40.E.4
13-011	02-13-2013	Approving a five (5) year tax exemption with 109 Christopher Columbus, LLC, pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 12901, Lot 6, on the city's tax map and more commonly known by the street address of 109 Christopher Columbus Drive	Ch. A352
13-012	02-27-2013	Dedicating that Astor Place between Crescent Avenue and Summit Avenue to also be known as Deacon Carlbert Heard, Sr. Drive	Ch. A352
13-013	02-27-2013	Supplementing Ch. A351, Executive Orders	Ch. A351
13-014		Amending Chapter 175, Section 175-8, Itinerant Establishments, and Chapter 160, Fees and Charges	Expired on Tabled Agenda 06-30-2013
13-015	02-27-2013	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by 70 Columbus Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
13-016	02-27-2013	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by Marbella Tower Urban Renewal Associates South, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
13-017	02-27-2013	Amending a 15 year long term tax exemption financial agreement with Marbella Tower Urban Renewal Associates, LLC, to amend its ground lease and financial agreement to reduce land area of the project; reduce the number of parking spaces from 423 to 260 parking spaces; and assign a portion of the project containing 163 parking spaces to Marbella Tower Urban Renewal Associates South, LLC	Ch. A352
13-018	02-27-2013	Amending the Claremont Redevelopment Plan to clarify uses and fees	Ch. A352
13-019	02-27-2013	Adopting amendments to the Hoboken Avenue Redevelopment Plan to clarify permitted uses	Ch. A352
13-020	02-27-2013	Adopting amendments to the Land Development Ordinance for fencing	Added 345-67.A.3, 4
13-021	02-27-2013	Adopting amendments to the Land Development Ordinance creating the Arts District Overlay Zone for the Riverview Arts District	Added 345-60.3
13-022	02-27-2013	Adopting and amendment to permitted uses in the Palisade Avenue portion of the R-2 District of the Land Development Ordinance	345-41.B.7
13-023	02-27-2013	Accepting from LT Realty Company, LLC a dedication of certain roadways, sidewalks and utilities located within the Colgate Redevelopment Plan Area	Ch. A352
13-024	02-27-2013	Authorizing the City of Jersey City to execute a lease with Imperial Parking Corporation for parking spaces located near 1 Journal Square Plaza	Ch. A352
13-025	02-27-2013	Authorizing the City of Jersey City to execute a lease with Rand Parking, Inc., for parking spaces located near 1 Journal Square Plaza	Ch. A352
13-026	02-27-2013	Dedicating that the northwest comer of Summit Avenue and Thome Street to also be known as John "Jack" Tarantula Way	Ch. A352
13-027	03-13-2013	Ordinance to exceed the municipal budget appropriations limit and to establish a cap bank	NCM
13-028	03-13-2013	Adopting an amendment to the Colgate Redevelopment Plan to clarify uses and provide legible maps	Ch. A352
13-029	03-13-2013	Adopting the Route 440-Culver Redevelopment Plan	Ch. A352
13-030	03-13-2013	Adopting amendments to the Land Development Ordinance related to parking standards for houses of worship	345-40.1.1 345-70.A.7
13-031	04-10-2013	Providing for various capital improvements for the city and appropriating $ 1 0,400,000, therefor, and providing for the issuance of $10,400,000 in general improvement bonds or notes of the city to finance the same	Ch. A352
13-032	03-28-2013	Approving a 12 year tax exemption for a market rate residential rental project to be constructed by Kennedy Lofts Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
13-033	03-28-2013	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by Harborside Unit A Urban Renewal, LLC, AN urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
13-034	03-28-2013	Approving a 10 year tax exemption for a market rate mixed use rental project to be constructed by Provost Square I Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
13-035		Adopting amendments to the Morgan/Grove/Marin Redevelopment Plan relating to Transit Oriented Development	Withdrawn 03-13-2013
13-036	03-28-2013	Adopting amendments to the Liberty Harbor North Redevelopment Plan relating to Redevelopment Plan Blocks 16,17, the widening of Park View Avenue, new parks and civic facilities	Ch. A352
13-037	03-28-2013	Amending Ch. 175, Art. II, Mobile food vendor, to combine itinerant eating and drinking establishments and itinerant catering establishments under the category of mobile food vendor; and to increase the number of licenses available to mobile food vendors to 237	175-8,175-9 175-11 175-14.B 175.15.A Repealed 175-12,175-13
13-038	04-24-2013	Supplementing Chapter 332, Article III and Article IX, designating reserved parking spaces on various streets and repealing the reserved parking space at 183 Thome Street and 86 Wallis Avenue	332-29, 332-69
13-039		Amending the Ninth and Brunswick Redevelopment Plan	Expired on Tabled Agenda 06-30-2013
13-040	04-24-2013	Adopting amendments to the Land Development Ordinance - Supplementary Zoning as it pertains to height exceptions for flood zones	345-60.G.4
13-041	04-24-2013	Adopting amendments to the Martin Luther King Drive Redevelopment Plan increasing height limits at the hub	Ch. A352
13-042		Adopting amendments to the Bright Street Redevelopment Plan	Expired on Tabled Agenda 06-30-2013
13-043	04-24-2013	Authorizing the City of Jersey City as lessee to extend a fourth amended lease agreement with 115 CCD Partners as lessor for office space at 115 Christopher Columbus Drive	Ch. A352
13-044	04-24-2013	Supplementing Chapter 332, Article III, amending Section 332-22, Parking prohibited at all times, designating no parking any time on the north side of Theodore Conrad Drive beginning 325 feet east of Edward Hart Road and extending clockwise to the south side of Theodore Conrad Drive to a point 325 feet east of Edward Hart Road	332-22
13-045	04-24-2013	Granting permission to Abdel Amin, his successors and assigns, to make private improvements to the public right-of-way at the property located at 60 Sussex Street a/k/a 67 Green Street, Jersey City, New Jersey, also known on the tax maps of the city as Block 14304, Lot 5	Ch. A352
13-046	04-24-2013	Granting permission to 593 Jersey Avenue, LLC, its successors and assigns, to make private improvements in the Jersey Avenue public right-of-way adjacent to the property located at 591 Jersey Avenue, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 11103, Lot 17 (f/k/a Block 315 Lot A).	Ch. A352
13-047	04-24-2013	Establishing Chapter 37, Immigrant Affairs Commission	37-1—37-12
13-048	04-24-2013	Dedicating that the intersection of Woodward Street and Communipaw Avenue also be known as Bishop Cainan Wadsworth Johnson Way	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
13-049	05-08-2013	Dedicating that the intersection of 5th St and Manila Av also be known as Edgar Sanchez Sr. Way	Ch. A32
13-050		Dedicating that Academy Street between Bergen Avenue and Van Reypen Street to also be known as Jack E. Miller Way.	Withdrawn 04-24-2013
13-051	05-08-2013	Amending the Saint Francis Hospital Redevelopment Plan to change the name to Hamilton Square Redevelopment Plan and to revise development standards	Ch. A352
13-052	05-08-2013	Adopting amendments to the Newark Avenue Downtown Redevelopment Plan	Ch. A352
13-053	05-08-2013	Adopting amendments to the Land Development Ordinance pertaining to signage	345-68.B.4
13-054	05-08-2013	Authorizing the execution of a deed of conservation easement for the properties located at Broadway and Sip Avenue and identified as Block 1627, Lots l.P, 2.A, 3.B, 5.A and Block 1639.A, Lots l.C, 3,4, 4.C, 6.A, 7, collectively known as the Hackensack River Waterfront Park Acquisition Property	Ch. A352
13-055	05-08-2013	Authorizing the execution of a deed of conservation easement for the property known as block 1825.A, Lots A.6 and A.7, more commonly known as 91-95 Duncan Avenue (the Boyd McGuiness Park Expansion)	Ch. A352
13-056	05-08-2013	Amending Chapter 239, Parks, and Chapter 242, Article VI, Roller Skates, In-Line Skates, Skateboards and Bicycles	239-7, 242-8,242-9, 242-9.5 Repealed 242-9.2
13-057	05-08-2013	Approving a 12-year tax exemption for a market rate mixed use rental project to be constructed by Chosen Condominiums Urban Renewal, LLC, and urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
13-058	05-08-2013	Approving a 12-year tax exemption for a market rate residential rental project to be constructed by Laidlaw Properties Urban Renewal, LLC, and urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
13-059	05-08-2013	Extending the sunset provisions of Ordinance 11-084 that approved a 30-year tax exemption for a low and moderate income senior citizens affordable housing project to be constructed by the Montgomery Senior Living Center Urban Renewal Associates, L.P.; and amending the financial agreement to increase the percentage of the annual service charge	Ch. A352
13-060	05-08-2013	Extending the sunset provisions of Ordinance 11-083 that approved a 30-year tax exemption for a low and moderate income affordable housing project to be constructed by the Glennview Townhouses II Urban Renewal Associates, L.P.; and amending the financial agreement to amend the percentage of the annual service charge	Ch. A352
13-061	05-08-2013	Extending the sunset provisions of Ordinance 11-102 that approved a 30-year tax exemption for a low income senior citizen and special needs affordable housing project to be constructed by the Ocean Green Senior Apartments, L.P., a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.; and amending the percentage of the service charge. See Ord. 13-082.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
13-062	05-29-2013	Amending Section 332-24, Parking prohibited certain hours, designating 25 feet in vicinity of entrance to Fresenius Medical Center, 27-29 Cottage Street as no parking 5:00 am to 11:00 pm, Monday through Saturday	332-24
13-063	05-29-2013	Amending Section 332-29, Disabled Parking Manual, and 332-69, Restricted parking zones in front of or near residences of disabled drivers	332-29, 332-69
13-064		Approving a thirty-year tax exemption for an urban renewal senior low income affordable housing project to be constructed by Samuel A. Berman Senior Residence Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Defeated 05-29-2013
13-065	05-29-2013	Approving a 30-year tax exemption for an urban renewal mixed-income, mixed-use housing project to be constructed by AHM Housing Associates IV, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
13-066	06-19-2013	Naming the new footbridge connecting Jersey Av and Liberty State Park the Ethel Pesin Liberty Footbridge	Ch. A352
13-067	06-19-2013	Authorizing the City to enter into a sublease as lessee with Moishe's Self Storage, LLC for storage space at 10 Senate Place	Ch. A352
13-068	06-19-2013	Dedicating that the portion of Academy St between Van Reypen St and Bergen Av also be known as Apple Tree House Lane	Ch. A352
13-069	06-19-2013	Refunding bond ordinance, providing for the refunding of all or a portion of various series of City bonds, appropriating an amount not exceeding $53,500,000 therefor and authorizing the issuance of not to exceed $53,500,000 general improvement refunding bonds for financing the cost thereof	Ch. A352
13-070	06-19-2013	Refunding bond ordinance, providing for the refunding of all or a portion of various series of City bonds, appropriating an amount not exceeding $25,800,000 therefor and authorizing the issuance of not to exceed $25,800,000 school refunding bonds of the City for financing the cost thereof	Ch. A352
13-071	06-19-2013	Refunding bond ordinance, providing for the refunding of all or a portion of various series of City bonds, appropriating an amount not exceeding $10,700,000 therefor and authorizing the issuance of not to exceed $10,700,000 water refunding bonds of the City for financing the cost thereof	Ch. A352
13-072		Amending Section 175-11, Use of Streets by Mobile Food Vendors, to establish uniform and consistent regulations applicable to all mobile food vendors (1) Prohibiting mobile food vendors from the Journal Square Special Improvement District and (2) Prohibiting all mobile food vendors from operating on private property and in any area where parking restrictions are in effect	Withdrawn 05-29-2013
13-073		Amending Section 345-9, Historic Preservation Commission	Withdrawn 05-29-2013
13-074	06-19-2013	Adopting amendments to the Webster Avenue Redevelopment Plan Area for Block 2905 Lot 29 permitted uses	Ch. A352
13-075	06-19-2013	Adopting amendments to the Morgan/Grove/Marin (MGM) Redevelopment Plan to create a community benefit bonus provision	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
13-076	06-19-2013	Amending Section 332-29, Disabled Parking Manual, and 332-69, Restricted parking zones in front of or near residences of disabled drivers	332-29, 332-69
13-077	06-19-2013	Amending Section 332-6, U-turns, prohibiting U-turn on Carlton Av between Tonnele Av and Liberty Av	332-6
13-078	06-19-2013	Authorizing the execution of a quitclaim deed releasing property known as 87 Newkirk Street also known as Block 12204, Lot 12 from an easement held by the City	Ch. A352
13-079	06-19-2013	Designating Saint John's Episcopal Church and Rectory as a municipal landmark	Ch. A352
13-080	09-11-2013	Amending and supplementing Chapter A351, Executive Orders and Ordinances	Ch. A351
13-081	09-11-2013	Amending and supplementing Chapter 3, Article III (Mayor); Article VI (Department of Administration); Art. IX (Department of Public Works); Article XI (Department of Police); repealing Article XII (Department of Fire and Emergency Services); Article XIII (Department of Health and Human Services)	3-19.1, 3-19.2, 3-20.B, 3-42, 3-45, 3-67, 3-68, 3-82.1.B(8), 3-85.1, 3-100, 3-127—3-133, 46-LC, 53-11,83-2 83-4,83-5. A, 83-7.B, 83-8, 83-10.A, 83-11.A, 83-12, 84-25,84-30, 84-33, 87-4,93-6,93-9,122-2.F, 122-3, 122-5.A, 137-4, 137-7, 157-l.A(4), 157-3,157-5.A, 157-8,157-9, 157-11.E.4, 160-l.A(7), A(10)d.8, M(4)(j), 163-4, 163-9, 163-10, 166-2.A, 166-3.A(5), 166-4,175-11,175-14.B, 196-6, 202-7.B, 203-4.B(5), 203-5,207-4,207-39,218-l.D, 218-2.D, 222-3.E, 222-4.A, 236-18, 236-21,236-23.B, 245-6.D, 245-16,245-17.A, 248-3, 248-13, 254-4, 254-31.C, 254-45.B(25), D(2), 254-47, 254-49.A, 254-53,254-86,254-88. A, 254-96.C, 254-101, 260-5.G, 263-2.B, 263-5, 275-4.D, 275-5, 275-10.A, E, 275-11, 275-12, 275-14, 284-3, 287-ll.C, 296-60.G, 296-61, 296-63.A(5), 296-84, 307-13.A(10), 307-14, 307-20.M, 307-40.A(3), 319-1,319-3.H, 319-5,319-9.8,319-12.G, 319-14,319-15,319-18,324-5, 332-3, 332-39.A, 332-46, 332-50.A, 332-69.E, 332-73, 332-76.A, 345-15.A.3.e Repealed 3-60.7, 3-60.8, 3-68.1, 3-83 3-85, 3-86 3-98, 3-104, 3-104.1,3-109 Added 3-71.2.C.(7), 3-71.3, 3-83—3-85, 3-86—3-92, 3-105.B(l)(i) Renumbered Ch. 3, Arts. XIII—XVIII as Ch. 3, Arts. XII—XVII
13-082	08-28-2013	Amending Ordinance 13-061 that approved a 30-year tax exemption for a low income senior citizen and special needs affordable housing project for Ocean Green Senior Apartments, L.P., pursuant to the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq. to increase the number of "special needs" units from 5 to 11	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
13-083	08-28-2013	Amending and supplementing Chapter 12, Article IV, Municipal Utilities Authority, to clarify that no board members shall receive any medical health care or other benefits	12-6
13-084	08-22-2013	Amending and supplementing Chapter 12, Article II, Incinerator Authority to clarify that no board members shall receive any medical health care or other benefits	12-2
13-085	08-28-2013	Authorizing the City to extend a one year lease agreement with Saint John's Baptist Church, a non-profit organization of the State of New Jersey, for the purpose of conducting a recreational program pursuant to N.J.S.A. 40A:12-14(c) and N.J.S.A. 40A:12-15(j)	Ch. A352
13-086	09-11-2013	Dedicating that the intersection of Wilkinson Av and Clerk St also be known as Bishop Richard J. Green Way	Ch. A352
13-087		Amending Chapter 296, Article VII, Excavations, and Chapter 160, Fees and Charges	Withdrawn 08-28-2013
13-088	09-11-2013	Amending Chapter 304, Article VI, Long Term and Five Year Tax Exemptions; Affordable Housing Trust Fund	Ch. 304, Art. VI (tit.) 304-28, 304-30.A, 304-31
13-089	09-11-2013	Authorizing the execution of a rights-of-way use agreement between the City and Sunesys, LLC to permit the installation of fiber optic cabling through existing innerducts, attach to existing poles, and construct new facilities where necessary within certain public rights-of-way for purposes of providing telecommunication services	Ch. A352
13-090	09-11-2013	Authorizing the sale of slope easements to the State of New Jersey affecting real properties owned by the City in the Town of Kearny known as Route 7, Section 1, Parcels ER62B and UE62C	Ch. A352
13-091	09-11-2013	Reappropriating $1,009,628.89 proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	Ch. A352
13-092	09-11-2013	Adopting amendments to the Journal Square 2080 Redevelopment Plan regarding split zoned development sites	Ch. A352
13-093	09-11-2013	Adopting amendments to the Water Street Redevelopment Plan to create a high rise zone and update terms throughout for consistency with the zoning glossary	Ch. A352
13-094	09-11-2013	Adopting amendments to the Village Study Area Redevelopment Plan to clarify permitted uses	Ch. A352
13-095	09-11-2013	Adopting amendments to the Land Development Ordinance as it pertains to height exceptions for roof decks	345-60.G.3
13-096	09-11-2013	Authorizing an easement agreement with the Jersey City Municipal Utilities Authority for improvements affecting Block 31001, Lot 12 and Block 50001, Lot 1 (the Split Rock Dam and Split Rock Road)	Ch. A352
13-097	09-25-2013	Adding Chapter 4, Paid sick time	Added 4-1—4-12 See Ord. 14-096
13-098	09-25-2013	Approving a 30-year tax exemption for a low income affordable housing project including retail space, to be constructed by Genesis Ocean Urban Renewal Co., LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq. See Ord. 14-012.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
13-099	09-25-2013	Adopting amendments to the Danforth Avenue Transit Village Redevelopment Plan to allow for an industrial overlay	Ch. A352
13-100	10-09-2013	Reappropriating $784,600 proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	Ch. A352
13-101	10-09-2013	Amending Chapter 307, Article 1, Taxicabs, increasing the number of taxi cab licenses and offering the licenses for sale at public auction	307-2, 307-27.C
13-102	10-09-2013	Adopting amendments to the Liberty Harbor North Redevelopment Plan to add dog and cat daycare and overnight boarding as a permitted use with specific restrictions	Ch. A352
13-103	10-09-2013	Adopting amendments to the Morris Canal Redevelopment Plan to prohibit liquor stores	Ch. A352
13-104	10-09-2013	Supplementing Section 332-24, Parking prohibited certain hours, designating no parking 7:00 a.m. to 9:00 a.m. and 2:00 p.m. to 4:00 p.m., school days, on the south side of York St in the vicinity of the entrance to Our Lady of Czestochowa Grammar School	332-24
13-105	11-26-2013	Amending Section 332-58, Parking restrictions in residential zones, extending Zone 1 residential permit parking to include Fourth St between Merseles St and Newark Av; Merseles St between Newark Av and First St; and Newark Av between Brunswick St and Merseles St	332-58
13-106	10-09-2013	Amending Ordinance 12-124 authorizing a fourth amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot .B to amend the construction costs of improvements to include the architect fees by the landlord	Ch. A352
13-107	10-09-2013	Authorizing the execution of a deed of easement agreement with Public Service Electric and Gas Company for no consideration to permit the installation, use, maintenance and repair of a gas fine to service the Linden Avenue Municipal complex	Ch. A352
13-108	10-09-2013	Amending Chapter 239, Parks, to modify the City's recreational and open space inventory to include the new block and lot designations of the properties	239-17
13-109	10-09-2013	Authorizing the City to execute a lease agreement with Harwood Corporation for parking spaces located at 2854 Kennedy Boulevard	Ch. A352
13-110	10-09-2013	Amending Chapter 182, Article IV, Smoking, to prohibit smoking in city parks	Rpld 182-29 Added 182-29—182-29.4
13-111	10-09-2013	Approving 1) the sale of the project from Salem-Lafayette Community Development Corporation to Salem Lafayette Urban Renewal, L.P.; and 2) a 30-year tax exemption for new improvements to be constructed by Salem Lafayette Urban Renewal, L.P., an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. and 3) rescinding the tax exemption approval by resolution adopted on October 5,1976	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
13-112	10-09-2013	Consenting to the sale and assignment of Master Condominium 1 and the assignment in part of a tax exemption and financial agreement from ACC Towers 1A Urban Renewal, LLC to Mana Contemporary Tribeca West Urban Renewal, LCL pursuant to Section 9.1 of the financial agreement and the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
13-113	10-23-2013	Amending Chapter 1, Article III regarding general penalty	1-25.A
13-114	10-23-2013	Amending 332-57, On-street permit parking zones, repealing Warren St from Montgomery St to Morgan St from the on-street parking zones and amending Section 332-58, extending Zone 4 residential permit parking to include Warren St from Montgomery St to Morgan St	332-57 332-58
13-115		Amending and supplementing Chapter A351 of the Jersey City Code (Council Salaries)	Withdrawn 10-09-2013
13-116	10-23-2013	Implementing Chapter 5 requiring permits for filming and the taking of photographs for profit in the City and amending Chapter 160, Fees and charges	160-1 Added 5-1—5-7
13-117	10-23-2013	Adopting amendments to the Powerhouse Arts District Redevelopment Plan to assist in the rehabilitation of the landmark Butler Brothers Warehouse	Ch. A352
13-118	11-13-2013	Providing for a special emergency appropriation of $9,500,000 for the payment of contractually required severance liabilities resulting from the retirement of city employees	Ch. A352
13-119	11-13-2013	Franchise ordinance granting permission to 110 First Street Urban Renewal Associates, LLC, its successors and assigns, to improve and use that approximately ten-foot portion of the public right-of-way between the sixty-foot right-of-way adjacent to Second Street and Lot 42, Block 11603, on the official tax assessment map of the City of Jersey City for the installation of underground backflow preventers, house traps 7/5' x 5' vaults for its sanitary and storm sewer systems, which encroach ten feet onto the pub-He right-of-way along Second Street	Ch. A352
13-120	11-13-2013	Provides for the designation of public property within specified areas of the City as a temporary clean zone during the time period beginning at 6:00 a.m. on Monday, January 27,2014 and ending at 6:00 p.m. on Tuesday, February 4,2014, relative to the use of these areas in conjunction with the 2014 National Football League's Super Bowl XLVIII related activities and events; to provide for the temporary suspension of certain permits and business and/or commercial activity in the clean zone area	Ch. A352
13-121	11-13-2013	Authorizing the transfer of properties owned by the Jersey City Redevelopment Agency within the Morris Canal Redevelopment Plan Area to the City for the creation of Berry Lane Park	Ch. A352
13-122	11-13-2013	Approving the execution of a financial agreement with Journal Square I Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
13-123	11-13-2013	Approving the execution of a financial agreement with Journal Square II Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	Ch. A352
13-124	11-13-2013	Approving the execution of a financial agreement with Journal Square III Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	Ch. A352
13-125	11-26-2013	Franchise ordinance granting permission to One Exchange JC, LLC, its successors and assigns, to make private improvements in the public rights-of-way of Exchange Place and York Street adjacent to the property located at One Exchange Place, Jersey City, New Jersey, also known on the tax maps of the City as Block 14502, Lot 1	Ch. A352
13-126	02-11-2014	Authorizing the execution of a rights-of-way use agreement between the City and Cross River Fiber, Inc. to permit the installation of fiber optic cabling in existing underground conduit and/or on existing utility poles within certain public rights-of-way for purposes of providing telecommunication services	Ch. A352
13-127		Amending Chapter 3, Article XI, Section 3-85.1, Off-duty assignments	Withdrawn 11-13-2013
13-128	11-26-2013	Amending and supplementing Chapter 236, Article II, Shopping center parking lots	Added 236-23.C—E
13-129	11-26-2013	Amending Chapter 304, Article III, Five-Year Tax Exemption, and Article VI, Long Term and Five Year Tax Exemptions Affordable Housing Trust Fund	304-12.C 304-28, 304-32
13-130	11-26-2013	Supplementing Section 332-29, Disabled Parking Manual, and Article IX, Restricted parking zones in front of or near residences of disabled drivers, designating a reserved parking space at 159 Bartholdi Av; 158 Bayview Av; 192 Central Av; 69 Dales Av; 18B Dwight St; 195 Dwight St; 344-342-3401/2 Eighth St; 239 Liberty Av; 224 McAdoo Av; 136 North St; 17-19 Oak St; 235 Pearsall Av; 151 Roosevelt Av; 157 Van Nostrand Av; 423 Virginia Av; 290 Webster Av; 21-23 Woodlawn Av; 143 Woodlawn Av; 150 Woodlawn Av and 202-204 Woodlawn Av; and amend the reserved parking space at 133 North St; and repeal the reserved parking space at 168B Dwight St; 333 Fairmount Av; 1001 Garfield Av; 45-47 Graham St; 219 Liberty Av; 111 Reservoir Av and 157 Roosevelt Av	332-29 332-69
13-131	12-18-2013	Franchise ordinance granting permission to Kennedy Lofts Urban Renewal LLC, its successors and assigns, to allow existing private improvements in the Newkirk Street and Jones Street rights-of-way adjacent to the property located at 100 Newkirk Street, Jersey City, New Jersey, also known on the tax maps of the City as Block 10703, Lot 18	Ch. A352
13-132	12-18-2013	Amending Chapter 296, Article VI, Street names, to provide a street naming protocol	Ch. 296, Art. VI (tit.) 296-19

Ordinance Number	Date of Adoption	Description	Disposition
13-133	12-18-2013	Supplementing Section 332-7, Prohibited turns at intersections, prohibiting the left turn for vehicles eastbound on Hoboken Avenue to northbound on Baldwin Avenue, daily	332-7
13-134	12-18-2013	Supplementing Section 332-5, One-Way Streets, designating the entire length of Sayles Street as a one-way southbound	332-5
13-135		Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating no parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m., Monday through Friday, on the south side of Second Street in the vicinity of the entrance to World of ABC Preschool, 159 Second Street	Withdrawn 11-26-2013
13-136	12-18-2013	Supplementing Section 332-8, Prohibited right turns on red signal, prohibiting the right turn on red signal for vehicles traveling southbound and northbound on West Side Avenue turning westbound and eastbound on to Belmont Av, all times	332-8
13-137		Supplementing the Jersey City Traffic Code, Chapter 332, Article IV, Section 332-35, Posting of signs, amending the title to include declared emergencies and incorporating but not limiting to the list of streets in Section 332-34 as part of this Section and adding Section C., authorizing the City to post "Emergency No Parking" signs twenty-four hours in advance of an anticipated emergency and amending Section 332-36, Removal of vehicles, to include a reference to Section 319-17, Towers and towing, referencing the fees for towing	Withdrawn 11-26-2013
13-138	12-18-2013	Adopting amendments to the Land Development Ordinance Section 345-66, Landscaping, for the required types of street trees	345-66.B
13-139	12-18-2013	Authorizing an amendment to a lease agreement with Rand Parking, Inc. for parking spaces located at Two Journal Square Plaza	Ch. A352
13-140		Amending Chapter 175, Article II, Section 175-8, Itinerant establishments, and Chapter 160, Fees and Charges	Withdrawn 11-26-2013
13-141	12-18-2013	Amending Chapter 3, Article XI, Section 3-85.1, Off-duty assignments	3-85.1
13-142		Authorizing an amended and restated financial agreement for 272 Grove Street Urban Renewal, LLC, which was approved by Ordinance 07-052, converting from a condominium project to a market rate residential rental project	Defeated 12-18-2013
13-143	01-15-2014	Authorizing 1) approval of a tax exemption for a residential/commercial rental project owned by 272 Grove Street Urban Renewal, LLC and 2) recission of Ordinance 07-052 and termination of the prior financial agreement	Ch. A352
13-144	1-15-2014	Authorizing the City to sell City-owned property located in the Borough of Kinnelon, the Township of Jefferson, and the Township of Rockaway, which is known as the Split Rock Reservoir	Ch. A352
13-145	01-15-2014	Authorizing the City to lease 199-205 Summit Avenue, Jersey City with 199-201 Summit Avenue, LLC	Ch. A352
13-146	01-15-2014	Supplementing Section 332-8, Prohibited right turns on red signal, prohibiting the right turn on red signal at Canal St and Grand St; Grand St and Monmouth St; Grand St and Douglas and Arthur Skinner Memorial Dr (fka Jersey Av); Grand St and Barrow St; Grand St and Marin Blvd; and Grand St and Washington St, all times, all approaches	332-8

Ordinance Number	Date of Adoption	Description	Disposition
14-001	01-29-2014	Amending and supplementing Chapter 254, Article VI, Minimum standards for basic equipment and facilities	254-28.F, G
14-002	02-11-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-9 of the Municipal Code for property designated as Block 9902, Lot 25.01, on the City's tax map and more commonly known by the street address of 334-336 and 340 Third Street and 292-294 Newark Avenue	Ch. A352
14-003	02-11-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-9 of the Municipal Code for property designated as Block 22203, Lot 5, on the City's tax map and more commonly known by the street address of 366 West Side Avenue	Ch. A352
14-004	01-29-2014	Amending Article III, Procedures and checklists, of the Land Development Ordinance to revise the development checklists	345-31.D, F, G
14-005	01-29-2014	Adopting amendments to the land development ordinance pertaining to side yard setbacks in the R-1 zone	345-40.E.5
14-006	01-29-2014	Adopting amendments to the Land Development Ordinance pertaining to signage	345-68
14-007	01-29-2014	Adopting amendments to the Land Development Ordinance pertaining to fencing	345-67
14-008	01-29-2014	Amending and supplementing Chapter 3, Article VI, Department of Administration; and implementing Article XVIII, Department of Human Resources	3-42 Repealed 3-45 Added 3-134—3-140
14-009		Authorizing the City to enter into a sublease as lessee with Moishe's Self Storage, LLC for storage space at 10 Senate Place, Jersey City for a lease term of twelve months effective as of November 1, 2013	Defeated 01-29-2014
14-010	02-11-2014	Franchise ordinance granting permission to Hudson Body Company, its successors and assigns, to make private improvements in the Allen Street public right-of-way adjacent to the property located at 415-435 Tonnele Avenue, Jersey City, New Jersey, also known on the Tax Maps of the City as Block 4101, Lots 20 and 21	Ch. A352
14-011	02-11-2014	Authorizing the City to enter into a month to month extension of the sublease with Moishe's Self Storage, LLC at 10 Senate Place, Jersey City for up to twelve months effective as of November 1, 2013	Ch. A352
14-012	02-11-2014	Amending Ordinance 13-098 to reflect a change in the entity's certificate of formation resulting in a change of the entity's name from Genesis Ocean Urban Renewal Co., LLC to Genesis Ocean Associates, LLC, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14K-1 et seq.	Ch. A352
14-013	02-11-2014	Supplementing Section 332-22, Parking prohibited at all times, repealing no parking any time on both sides of Florence St from Montgomery St to Cornelison Av and designating no parking any time on the south side of Florence St extension beginning at Montgomery St and extending 225 feet west and designating no parking any time on the north side of Florence St extension beginning at Montgomery St and extending 290 feet west	332-22

Ordinance Number	Date of Adoption	Description	Disposition
14-014	02-26-2014	Adopting amendments to the Exchange Place Redevelopment Plan to add medical offices as a permitted use	Ch. A352
14-015	02-26-2014	Authorizing the cancellation of taxes pursuant to N.J.S.A. 54:4-3.6c for property owned by Saint John's School and located at 3026 Kennedy Blvd, on Block 6501, Lot 1, Qualifier X	Ch. A352
14-016	02-26-2014	Supplementing Section 332-31, Parking restrictions for street cleaning purposes, amending the parking prohibition for street cleaning purposes on both sides of Bergen Av between Fairview Av and Montgomery St, from 7:00 a.m. to 9:00 a.m. to new time 10:00 a.m. to 12:00 p.m.	332-31
14-017	11-12-2014	Amending and supplementing Chapter 12, Article III, Parking Authority, and Chapter 3, Article IX, Department of Public Works, and Article XI, Department of Public Safety, of the Jersey City Municipal Code, to dissolve the Jersey City Parking Authority and to consolidate and assume the functions of the Parking Authority within the Department of Public Safety	3-46.D(15)(g), 3-67.A, 3-68.D(15), 3-84.B, 5-7.C, 160-1.SS(4), 257-6.C, 287-31, 304-2.G(4), Ch. 332, Art. VI (tit.), 332-40, 332-41, 332-44.A, 332-45, 332-46, 332-48, 332-49.A, 332-53.A, 3323.54, 332-56, 332-58, 332-59, 332-61, 332-62, 332-64.A, 332-65, 332-66.A,, 332-67 345-32.B Added 3-91 Repealed 12-3,12-3.1,12-4
14-018	02-26-2014	Amending Chapter 175, Article II, Mobile food vendors, and Chapter 160, Fees and charges to amend the licensure and inspection process for mobile food vendors and to increase the license fee for mobile food vendors	160-1 175-8,175-9 Added 175-9.1—175-9.3 Repealed 175-10 Renumbered 175-11 as 175-10 Renumbered 175-14,175-15 as 175-11,175-12
14-019	02-26-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-6 of the Municipal Code for property designated as Block 17501, Lot 4, on the City's tax map and more commonly known by the street address of 445 Whiton St	Ch. A352
14-020	03-26-2014	Approving a twenty-year tax exemption for a market rate mixed use rental project to be constructed by 360 Ninth Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
14-021	02-26-2014	Designating parking restrictions on the following streets and traffic restrictions at the following intersections needed in order to maintain optimum traffic circulation on local streets during the period of time the northbound lane of the Pulaski Skyway is closed for construction, adding Section 332-7A, Prohibited turns at intersections, prohibiting all turns, for traffic east on Communipaw Av at West Side Av and at Bergen Av; prohibit the left turn for traffic east on Communipaw Av to north on Park St; east on Grand St to north on Ivy Pl; north on Barrow St and north on Marin Blvd and east on Columbus Drive to north on Barrow St and prohibit the right turn for traffic north on Center St to east on Brook St; east on Bright St and east on York St, Monday though Friday, except holidays, 6:00 a.m. to 10:00 a.m.; and adding Section 332.26A, No stopping or standing certain hours, designating no stopping or standing on the south side of Communipaw Av, West Side Av to Grand St; the south side of Grand St, Communipaw Av to Fairmount Av and the west side of Greene St, Columbus Dr to Montgomery St, Monday through Friday, except holidays, 6:00 a.m. to 10:00 a.m. and on the north side of Communipaw Av, Grand St to West Side Av and the north side of Grand St, Fairmount Av to Communipaw Av, Monday through Friday, except holidays, 4:00 p.m. to 7:00 p.m.	Added 332-7A, 332-26A
14-022	03-17-2014	Cancelling certain funded appropriation balances heretofore provided for capital projects and re-appropriating such funded appropriation balances for other capital projects	Ch. A352
14-023	03-12-2014	Adopting amendments to the Montgomery Street Redevelopment Plan to reorganize content and create a mixed use district	Ch. A352
14-024	03-12-2014	Adopting amendments to the Morris Canal Redevelopment Plan to expand an adaptive reuse district	Ch. A352
14-025		Amending and supplementing Chapter 122, Circuses, Carnivals and Public Assemblages	Expired on Tabled Agenda 12-31-2017
14-026	03-12-2014	Amending Chapter 242, Article V, Motor Vehicles	242-7
14-027	03-12-2014	Amending Chapter 304, Article III Five-Year Tax Exemption, and Article VI, Long Term and Five Year Tax Exemptions Affordable Housing Trust Fund	304-13, 304-28
14-028		An ordinance approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 11608, Lot 1, Qualifier C000E, on the City's tax map and more commonly known by the street address of 65 Bay Street	Withdrawn 02-26-2014
14-029		Approving a twenty-year tax exemption for a market rate mixed use rental project to be constructed by Senate Place Urban Renewal, LLC., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Defeated 03/12/2014
14-030	04-17-2014	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
14-031	03-26-2014	Supplementing Section 332-29, Disabled Parking Manual, and Article IX, Restricted parking zones in front of or near residences of disabled drivers, designating a reserved parking space at 22 Bright St; 24 Brinkerhoff St; 50 Coles St; 22 Fairmount Ter; 32 Greenville Av; 166 Neptune Av; 165 Seaview Av; 196 Second St; 417 Union St; 592-594 West Side Av and 68A Zabriskee St; and repeal the reserved parking space at 411-413 Cator Av	332-29 332-69
14-032		Amending Chapter 332, Article II, repealing Section 332-3 Traffic control signal monitoring system (red light cameras)	Defeated 03/26/2014
14-033	04-09-2014	Approving a twenty-year tax exemption for a market rate mixed use rental project to be constructed by Senate Place Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
14-034	03-26-2014	Amending Chapter A351, Executive Orders and Ordinance	Ch. A351
14-035	04-09-2014	Supplementing Section 332-29, Disabled Parking Manual, and Section 332-69, Restricted parking zones in front of or near residences of disabled drivers, designating a reserved parking space at 359 Fulton Av	332-29, 332-69
14-036	04-09-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-9 of the Municipal Code for property designated as Block 11608, Lot 1, Qualifier C000E, on the city's tax map and more commonly known by the street address of 65 Bay St	Ch. A352
14-037	04-09-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 13502, Lot 24, on the City's tax map and more commonly known by the street address of 646 Montgomery Street	Ch. A352
14-038	04-09-2014	Designating the intersection of Grant Av and Ocean Av to be also known as the Pickett Family Corner	Ch. A352
14-039		Amending Chapter 242, Peace and Good Order, to add Article VIII, Prohibiting Aggressive Begging, Soliciting and Panhandling	Withdrawn 03/26/2014
14-040	04-09-2014	Authorizing the execution of an agreement to lease certain property located at 392-394 Central Avenue from the Jersey City Parking Authority	Ch. A352
14-041	04-23-2014	Supplementing Chapter A3 51, Executive Orders and Ordinances	Ch. A351
14-042	04-23-2014	Increasing fees for animal licensing (Chapter 160, Section E, Animals), food-handling (Chapter 160, Section P, Food-handling establishments), health and sanitation (Chapter 160, Section Q, Health and sanitation), and vending machines (Chapter 160, Section RR, Vending machines)	160-l.E, P, Q, RR
14-043	07-16-2014	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, designating Barrow Street from Newark Avenue to Columbus Drive as a one-way south and designating Bay Street from Newark Avenue to Erie Street as a one-way east and repealing Bay Street from Erie Street to Newark Avenue as a one-way west	332-5

Ordinance Number	Date of Adoption	Description	Disposition
14-044		Authorizing the Jersey City Municipal Council to provide by regulation for the closing of Newark Avenue from Barrow Street to Grove Street and Erie Street from Newark Avenue to Bay Street for a period up to one (1) year for the preservation of the public safety and welfare at the newly created Pedestrian Plaza	Withdrawn 04/09/2014 See Ord. 14-075
14-045	05-14-2014	Amending Chapter 254, Article IV, to establish a registration fee for vacant lots and to provide maintenance standards for vacant lots	Ch. 254, Art. IV (tit.) 254-20,254-21, 254-21.1—254-21.7 Repealed 254-21.8,254-21.9 Added 254-21.8—254.21.10
14-046	05-14-2014	Repealing Ordinance 13.099 amending the Danforth Avenue Transit Village Redevelopment Plan	Ch. A352
14-047	05-14-2014	Adopting amendments to the Paulus Hook Redevelopment Plan to permit the subdivision of developed property while requiring the sum of the new multiple lots to meet the applicable zoning requirements	Ch. A352
14-048	05-14-2014	Adopting amendments to the McGinley Square East Redevelopment Plan	Ch. A352
14-049	05-14-2014	Approving a twenty-year tax exemption for a market rate residential condominium project to be constructed by 160 First Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
14-050		Approving a thirty-year tax exemption for a market rate mixed use rental project to be constructed by 3 Journal Square Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Withdrawn 04-23-2014
14-051	05-28-2014	Amending chapter 23, Court, Municipal	23-2.A
14-052	05-28-2014	Amending and supplementing Chapter 304, Article VII, Construction project labor agreements	304-33, 304-34 304-35, 304-37
14-053	05-28-2014	Supplementing Chapter 332, Article III, amending Section 332-22, amending the limits for the no parking any time on both sides of Marin Boulevard from Montgomery Street to Columbus Drive; and amend Section 332-23, designating a section of the east side of Marin Boulevard between Wayne Street and Columbus Drive as no stopping or standing and amending Section 332-24, designating no parking beginning midnight on Sunday through 1:00 p.m. Friday and beginning 3:00 p.m. Friday through 11:59 p.m. Saturday	332-22, 332-23 332-24
14-054	06-11-2014	Authorizing the execution of a rights-of-way use agreement between the City of Jersey City and TW Telecom of New Jersey L.P. to permit the installation of fiber optic cabling in existing underground conduit and/or on existing utility poles within certain public rights-of-way for purposes of providing telecommunication services	Ch. A352
14-055	05-28-2014	Authorizing a lease agreement between the City of Jersey City and Verizon New Jersey Inc. for property located at 71 Madison Avenue	Ch. A352
14-056	05-28-2014	Authorizing the City of Jersey City to enter into a lease agreement as lessee with E.A. Tolentino and H. Clay Irving III, for the use of their vacant, unimproved lot located at Block 15202, Lot 31, more commonly known as 157-161 Summit Avenue, in Jersey City, for parking	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
14-057	05-28-2014	Authorizing the City of Jersey City to enter into a lease agreement as lessee with Evangelismos Greek Orthodox Church for the use of 29 parking spaces located at Block 15103, Lot 1, more commonly known as 651 Montgomery Street, in Jersey City	Ch. A352
14-058		Dedicating that the west comer of Florence Street and Montgomery Street also be known as "Milad Plaza"	Withdrawn 05-14-2014
14-059	05-28-2014	Granting permission to MCREF Warren LLC, its successors and assigns, to make private improvements in the Morgan Street, Warren Street and Bay Street rights-of-way adjacent to property located at 333-341 Washington Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 11611, Lot 1	Ch. A352
14-060	06-11-2014	Adopting amendments to the McGinley Square East Redevelopment Plan to require a bonus fee for floor area above eight (8) stories	Ch. A352
14-061	06-11-2014	Supplementing Chapter 332, Article III, amending Section 332-22, No parking any time, designating a section on the south side of Pavonia Avenue, east of Kennedy Boulevard, as no parking any time; and amending Section 332-23, No stopping or standing, repealing a section on the south side of Pavonia Avenue, east of Kennedy Boulevard as no stopping or standing	332-22, 332-23
14-062	06-11-2014	Granting permission to 148 First Street Urban Renewal, LLC, its successors and/or assigns, and 160 First Street Urban Renewal, LLC, its successors and/or assigns, to make private improvements in the public right-of-way of First Street adjacent to the property located at 148-154 First Street and 162-170 First Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 11502, Lots 5.03, 9,10 and 11	Ch. A352
14-063		Amending and supplementing Chapter 332, Article II, of the Jersey City Municipal Code authorizing the Jersey City Municipal Council to provide by regulation for the closing of Newark Avenue from Barrow Street to Grove Street and Erie Street from Newark Avenue to Bay Street for a period up to one (1) year for the preservation of the public safety and welfare at the newly created Pedestrian Plaza.	Defeated 06-11-2014 See Ord. 14-075
14-064	06-25-2014	Vacating a portion of Grove Square consisting of approximately 3,451 square feet in order to align the street grid with the Liberty Harbor North Redevelopment Plan	Ch. A352
14-065	06-25-2014	Adopting amendments to the Liberty Harbor North Redevelopment Plan to amend the regulating standards relating to Block 1 of the Redevelopment Plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
14-066	06-25-2014	Supplementing Chapter 332, Article III and Article IX, designating a reserved parking space at 72 Astor Place; 180 Bergen Avenue; 23 Berkeley Place; 113 Colden Street; 83 Colgate Street; 80 Coles Street; 28 Duncan Avenue; 265 Dwight Street; 3561/2 Eighth Street; 306 Fulton Avenue; Garfield Avenue; 74 Grant Avenue; 225 Grant Avenue; 505 Liberty Avenue; 68 Madison Avenue; 121 Manhattan Avenue; 20 Milton Avenue; 69 Nelson Avenue; 203 New York Avenue; 132 North Street; 237 North Street; 547 Palisade Avenue; 370 Second Street; 66 Seidler Street; 187 Terrace Avenue; 71 Van Nostrand Avenue; 54 Wegman Parkway; 170 Wegman Parkway; 173 Wegman Parkway; 39 Western Avenue and 391 Woodlawn Avenue; and repeal the reserved parking space at 136 North Street and 21-23 Woodlawn Avenue; and amend the reserved parking space at 155 Belmont Avenue; 190 Claremont Avenue; 29A Cliff Street; 90 Duncan Avenue and 203 New York Avenue	332-29, 332-69
14-067	06-25-2014	Consenting to 1) the sale of the membership interests of NOC V Urban Renewal Company, LLC to JP Morgan Chase Bank, National Association and 2) the modification of the tax exemption financial agreement with NOC V Urban Renewal Company, LLC, to conform the financial agreement to the 2003 amendments to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
14-068		Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l et seq., and Section 304-12 of the Municipal Code for property designated as Block 13605, Lot 11, on the city's tax map and more commonly known by the street address of 550 Grand Street.	Withdrawn 06-11-2014
14-069	06-25-2014	Approving a twenty-year tax exemption for a commercial hotel project to be constructed by One Exchange JC Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., for the property designated as Block 14502, Lot 1 on the City's tax map and more commonly known by the street address as I Exchange Place	Ch. A352
14-070	06-25-2014	Supplementing Chapter A3 51, Executive Orders and Ordinances	Ch. A351
14-071	06-25-2014	Adopting the Block 10102 Redevelopment Plan (Unico Towers Site)	Ch. A352
14-072	06-25-2014	Adopting amendments to the Luis Munoz Marin Boulevard Redevelopment Plan	Ch. A352
14-073	06-25-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 11201, Lot 29, on the City's tax map and more commonly known by the street address of 298 Sixth Street	Ch. A352
14-074	06-25-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 11402, Lot 23, on the City's tax map and more commonly known by the street address of 222 First Street	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
14-075	07-16-2014	Amending and supplementing Chapter 332, Article II, Traffic regulations, authorizing the Jersey City Municipal Council to provide by regulation for the closing of Newark Avenue from Barrow Street to Grove Street and Erie Street from Newark Avenue to Bay Street for a period up to October 31,2014 for the preservation of the public safety and welfare at the newly created pedestrian plaza	Added 332-20.1
14-076	07-16-2014	Adopting amendments to the Morris Canal Redevelopment Plan to create an adaptive reuse district and modify density	Ch. A352
14-077	07-16-2014	Adopting amendments to the definitions of the Land Development Ordinance (right-of-way)	345-6
14-078	07-16-2014	Supplementing Chapter 332, Article III, amending Section 332-22, Parking prohibited at all times, designating no parking any time in front of Jones Hall, 591 Montgomery Street	332-22
14-079	07-16-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA;21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 13605, Lot 11, on the City's tax map and more commonly known by the street address of 550 Grand Street	Ch. A352
14-080	07-16-2014	Approving a shared services agreement between the City of Jersey City and the Jersey City Housing Authority to pay off-duty police officers $30 per hour, per officer for one year with the total amount not to exceed $325,000	NCM
14-081	07-17-2014	Amending and supplementing Chapter 3, Article VI, Department of Administration, and Article IX, Department of Public Works	3-42, 3-67 Added 3-46 Repealed 3-68
14-082	07-16-2014	Providing the west corner of Florence Street and Montgomery Street with the commemorative designation "Milad Plaza"	Ch. A352
14-083		Ordinance amending and supplementing Chapter 3, Article XI, Department of Public Safety	Expired on Tabled Agenda 12-31-2017
14-084		Ordinance amending and supplementing Chapter 3, Article XI, Sub-Article I, Division of Police, of the Jersey City Municipal Code estabfishing a Table of Organization	Expired on Tabled Agenda 12-31-2017
14-085		Amending Chapter A350, Council Rules of Order, of the Code to impose a five-minute limitation on all members of the public wishing to speak, not only those speaking during the public speaking portion of the meeting.	Defeated 08-20-2014
14-086	08-20-2014	Amending Chapter 254, Article IV, to require that all vacant buildings be secured according to the Federal Department of Housing and Urban Development's (HUD) board up specifications	254-21.6
14-087	08-20-2014	Terminating the financial agreement between the City of Jersey City and Department Store 3 Urban Renewal Corp.	Ch. A352
14-088	08-20-2014	Approving a ten-year tax exemption for a market rate residential condominium project to be constructed by Cheesecake Lofts Urban Renewal, LLC, an urban renewal entity, pursuant to the long term tax exemption law, N.J.S.A. 40A:20-l et seq.	Ch. A352
14-089	08-20-2014	Authorizing the conveyance of City-owned property located at 265 Martin Luther King Drive to the Urban League of Hudson County, a non-profit corporation pursuant to N.J.S.A. 40A: 12-21 (k)	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
14-090	08-20-2014	Authorizing the sale of certain personal property to the Jersey City Employment and Training Corporation	NCM
14-091	08-20-2014	Adopting amendments to the Land Development Ordinance adding land disturbances as a review threshold	345-16
14-092	09-10-2014	Authorizing the amendment of Chapter 3, Article XI, Sub-Article 1, Division of Police, to allow for the acceptance of credit card payments	3-85. l.C
14-093	12-17-2014	Renaming the new West District Police Facility the "Detective Melvin Vincent Santiago Police Facility	Ch. A352
14-094	09-10-2014	Supplementing Chapter 332, Article III, amending Section 332-22, Parking prohibited at all times, designating no parking any time in front of 330 Ninth Street	332-22
14-095	09-10-2014	Supplementing Chapter 332, Article III and Article IX, designating a reserved parking space the at 310-308 Academy Street; 177 Bartholdi Avenue; 131-133 Boyd Avenue; 411-413 Cator Avenue; 71 Clarke Avenue; 60 Clendenny Avenue; 196 Clendenny Avenue; 225 Columbia Avenue; 102 Ferry Street; 248 Fourth Street; 66 Gautier Avenue; 84 Harmon Street; 74-72 Linden Avenue; 19 Madison Avenue; 281 Monmouth Street; 113 Nelson Avenue; 257 Randolph Avenue; 364 Randolph Avenue And 116 Terrace Avenue and amend the reserved parking space at 323-325 Pacific Avenue	332-29, 332-69
14-096	09-10-2014	To make a technical amendment to the City's paid sick leave ordinance to correct typographical errors in sections § 4-3.B(3),(7),(8) and (10)	4-3.B
14-097	09-10-2014	Adopting amendments to the Journal Square 2060 Redevelopment Plan	Ch. A352
14-098	09-10-2014	Authorizing the City to execute a six-month lease agreement with 3000 Kennedy Blvd, LLC for the use of 27 parking spaces at 3000 John F. Kennedy Boulevard to be used for Journal Square employee parking	Ch. A352
14-099		Authorizing the City to enter into a lease agreement as lessee with Jersey City Municipal, LLC as lessor for office space to be constructed at the HUB on an approximately 0.556 acre portion of Lot 17, Block 21201 intersetion of Kearney Avenue and Martin Luther King Drive	Expired on Tabled Agenda 12-31-2017
14-100	09-10-2014	Vacating a portion of Bramhall Avenue consisting of approximately 3,000 square feet for development of Berry Lane Park	Ch. A352
14-101	09-10-2014	Approving a ten-year tax exemption for a mixed use market rate residential rental project to be constructed by LHN Owner Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
14-102	09-10-2014	Approving a ten-year tax exemption for a Market Rate Residential Condominium Project to be constructed by 68 Erie Street Urban Renewal Co., LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
14-103	09-23-2014	Authorizing the City to file an offer of financial assistance (OFA) to acquire certain property collectively known as the Sixth Street Embankment from Conrail and such other Conrail properties as are necessary to connect with the main line in the vicinity of CP Waldo	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
14-104	09-23-2014	Amending and supplementing Chapter 275, Second hand dealers	275-10, 275-11
14-105	09-23-2014	Adopting amendments to the Land Development Ordinance, Section 345-10, Environmental Commission, for expanding the purposes of the Environmental Commission	345-10.A
14-106		Replacing the Danforth Avenue Transit Village Redevelopment Plan with a new Danforth Industrial Park Redevelopment Plan.	Withdrawn 09-10-2014
14-107	09-23-2014	Adopting amendments to the Ninth & Brunswick Redevelopment Plan to expand permitted uses, modify parking requirements, and other administrative items	Ch. A352
14-108	09-23-2014	Adopting amendments to the Village Redevelopment Plan to permit apartment buildings on Block 11110	Ch. A352
14-109		Adopting amendments to the Land Development Ordinance - supplementary zoning as it pertains to height exceptions for rooftop appurtenances	Expired on Tabled Agenda 12-31-2017
14-110		Adopting amendments to the Tidewater Basin Redevelopment Plan to create a mixed use district	Expired on Tabled Agenda 12-31-2017
14-111	09-23-2014	Approving a twenty-year tax exemption for an emerging market residential condominium project to be constructed by Community Asset Preservation Alliance of Jersey City #4 Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
14-112	10-08-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 12704, Lot 28.01, on the City's tax map and more commonly known by the street address of 532 Jersey Avenue	Ch. A352
14-113	09-23-2014	Supplementing Chapter 332, Article III and Article IX, designating a reserved parking space at 25 Carlton Avenue; 13 Irving Street; 118 Manhattan Avenue; 19 McDougall Street; 29 1/2 Sherman Place; 133 Thome Street; 331 York Street And 4 Wilkinson Avenue and repealing the reserved parking space at 113 Colden Street; 121 Manhattan Avenue and 55 Wegman Parkway	332-29, 332-69
14-114	09-23-2014	Supplementing Chapter 332, Article III, amending Section 332-24, No parking certain hours, designating both sides of Newark Av from Erie St to Grove St, 3:00 pm to midnight, Monday through Thursday and 3:00 pm Friday through midnight Sunday as no parking	332-24
14-115	09-23-2014	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, repealing Bay Street as a one-way east from Newark Avenue to Erie Street and designating Bay Street as a one-way west from Erie Street to Newark Avenue	332-5

Ordinance Number	Date of Adoption	Description	Disposition
14-116	09-23-2014	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, repealing the intersections of Barrow St and York St; Coles St and Seventh St; Eighth St and Brunswick St; Eighth St and Monmouth St; First St and Erie St; Jersey Av and Eighth St; Jersey Av and Ninth St; Monmouth St and Seventh St; Morgan St and Warren St; Morris St and Washington St; Ninth St and Brunswick St; Pavonia Av and Brunswick St; Second St and Brunswick St; Sussex St and Washington St; Tenth St and Jersey Av; W Hamilton Pl and Ninth St and York St and Jersey Av as a stop intersection; designating the intersection of Erie St and Pavonia Av as a stop intersection and designating the intersections of Barrow St and York St; Brunswick St and Second St; Brunswick St and Eighth St; Brunswick St and Ninth St; Brunswick St and Pavonia Av; Coles St and Seventh St; Division St and Eighth St; Eighth St and Monmouth St; Eighth St and Jersey Av; Eighth St and McWilliams Pl; Erie St and First St; Jersey Av and York St; Jersey Av and Ninth St; Jersey Av and Tenth St; Monmouth St and Seventh St; Morgan St and Warren St; Morris St and Washington St; Ninth St and West Hamilton Pl; Sussex St and Washington St; as a multi-way stop intersection	332-9
14-117	09-23-2014	Amending Chapter 3, Article XI, Sub-Article II, Division of Fire and Emergency Services; Article XVII, Fire Safety Manager; and Chapter 160, Fees	3-88,160-1 Added 3-88.1—3-88.9
14-118	09-23-2014	Amending and supplementing Chapter 3, Article XVII, Fire Safety Manager, mandating the use of a fire safety manager in the City for high-rise buildings	3-128, 3-131, 3-133 Added 3-133.1, 3-133.2
14-119	09-23-2014	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, repealing Barrow Street as a one-way south from Newark Avenue to Columbus Drive	332-5
14-120	10-08-2014	Adopting amendments to the Tidewater Basin Redevelopment Plan to create a Mixed Use District	Ch. A352
14-121	10-08-2014	Authorizing the execution of a temporary easement and license agreement on City-owned property located at 13 Linden Avenue, Jersey City, New Jersey to accommodate two solar renewable energy installations in connection with a solar power energy services agreement entered into by and among the City, the Hudson County Improvement Authority and Hudson Energy Solar Corporation	Ch. A352
14-122	10-08-2014	Authorizing the execution of a grant of conservation restriction/easement agreement for public access to the waterfront among the City of Jersey City and Liberty Harbor Holding, LLC as grantors, LHN Owner Urban Renewal, LLC as the developer, and the New Jersey Department of Environmental Protection as grantee	Ch. A352
14-123	10-08-2014	Authorizing the transfer of Block 30305, Lot 6 to the New Jersey Turnpike Authority	Ch. A352
14-124	10-08-2014	Supplementing Chapter A351, Executive orders and ordinances	Ch. A351
14-125		Amending (1) Chapter 175, Article III, Food establishments, to create standards for farmer's markets, (2) Chapter 3, Article IX, Section 71, Division of Park Maintenance, to amend the approval process for farmer's markets seeking permission to operate in city parks; and (3) Chapter 239, Section 15, Hours of operation; permits; farmer's markets, to create standards for farmer's markets operating in city parks	Tabled 10-08-2014 See Ord. 15-026

Ordinance Number	Date of Adoption	Description	Disposition
14-126	10-08-2014	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, amending the days and hours the right turn on red signal is prohibited at Canal St and Grand St; Grand St and Monmouth St; Grand St and Douglas and Arthur Skinner Memorial Dr (fka Jersey Av); Grand St and Barrow St; Grand St and Marin Blvd and Grand St and Washington St to 8:00 am, and 4:00 pm, school days, all approaches	332-8
14-127	10-08-2014	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, repealing the one-way south on Coles Street from Tenth Street to Twelfth Street	332-5
14-128	10-08-2014	Consent to 1) convey ownership of a project currently held solely by Grand LHN I Urban Renewal LLC, to include both KRE 18 Park Urban Renewal, LLC, and 18 Park Acquisition Urban Renewal, LLC, and result in joint and several ownership of the project by all three entities; and 2) assumption by all three entities of the financial agreement and the long term tax exemption	Ch. A352
14-129		Replacing the Danforth Avenue Transit Village Redevelopment Plan with a new Danforth Industrial Park Redevelopment Plan	Defeated 10-22-2014
14-130	10-22-2014	Approving a twenty-year tax exemption for a commercial hotel project to be constructed by Columbus Hotel Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. for the property designated as Block 13003, Lot 1, C3.80 on the City's tax map and more commonly known by the street address as 80 Columbus Drive	Ch. A352
14-131	11-12-2014	Bond ordinance providing for various 2014 capital improvements by and in the City and appropriating $36,450,000 therefor and authorizing the issuance of $34,714,280 in bonds or notes of the City to finance part of the cost thereof	Ch. A352
14-132	10-22-2014	Providing for a special emergency appropriation of $7,500,000 for the payment of contractually required severance liabilities resulting from the retirement of City employees	Ch. A352
14-133	10-22-2014	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, designating Colden Street between Grand Street and Prior Street as a one-way north to west, counterclockwise	332-5
14-134	10-22-2014	Supplementing Chapter 332, Article III, amending Section 332-24, No parking certain hours, designating 87 feet on the south side of Mercer St, west of Tuers Av, in front of Hudson Catholic High School, as no parking Monday through Saturday, 7:00 am to 9:00 pm	332-24
14-135	10-22-2014	Adopting amendments to the Journal Square 2060 Redevelopment Plan	Ch. A352
14-136		Authorizing the City to enter into a lease/purchase agreement as lessee with Jersey City Municipal, LLC, as lessor for office space to be constructed at the Martin Luther King Drive HUB on a portion of Lot 17, Block 21201 at the intersection of Kearney Avenue and Martin Luther King Drive	No action taken 12-17-2014
14-137	11-12-2014	Supplementing Chapter A351, Executive Orders and Ordinances, to create a new classified position for Program Development Specialist Aging	Ch. A351

Ordinance Number	Date of Adoption	Description	Disposition
14-138		Amending Chapter 3, Article XI, Sub-Article II, Division of Fire and Emergency Services, of the Jersey City Municipal Code repealing the requirement to appoint legal counsel	Withdrawn 10-22-2014
14-139		Amending the Sip Avenue Gateway Redevelopment Plan to expand the commercial area	Withdrawn 10-22-2014
14-140	11-12-2014	Supplementing Chapter 332, Article II, Section 332-5, One-way streets, repealing the one-way south designation on Jackson Avenue between Communipaw Avenue and 240 feet south (north building line of the West District Police Precinct); Section 332-6, U-turns, prohibiting a "u-turn" on Jackson Avenue between Communipaw Avenue and 240 feet south (north building line of the West District Police Precinct); Section 332-9, Stop intersections, designating Jackson Avenue and Communipaw Avenue as a stop intersection and Section 332-12, No-passing zones, designating Jackson Avenue between Communipaw Avenue and 240 feet south (north building line of the West District Police Precinct) as a no-passing zone and supplementing Article III, Section 332-22, Parking prohibited at all times, designating no parking any time on the south side of Clinton Avenue from Jackson Avenue to a point 50 feet west; on the north side of Clinton Avenue from Jackson Avenue to Seidler street; on the east side of Jackson Avenue, Clinton Avenue to Communipaw Avenue; on the west side of Jackson Avenue, 240 feet south of Communipaw Avenue (north building line of the West District Police Precinct) to Clinton Avenue and Section 332-23, No stopping or standing, designating no stopping or standing on the west side of Martin Luther King Drive beginning at the northern limit of the West District Police Plaza to a point 130 feet south	332-5, 332-6 332-9, 332-12 332-22, 332-23
14-141		Approving a thirty-year tax exemption for a market mixed use rental project to be construction by 3 Journal Square Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Withdrawn 10-22-2014
14-142	11-12-2014	Supplementing Chapter 332, Article IX, amending Section 332-69, Restricted parking zones in front of or near residences of disabled drivers	332-69
14-143	11-25-2014	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for WIC Peer Counselor	Ch. A351
14-144	11-25-2014	Removing lots from the Danforth Transit Village Redevelopment Plan and adopting the Chapel Avenue Industrial Park Redevelopment Plan	Ch. A352
14-145		Adopting amendments to the Ocean/Bayview Redevelopment Plan to permit oil change stations with oil recycling at the comer of Ocean Avenue and Bayview Avenue	Withdrawn 11-12-2014
14-146	11-25-2014	Authorizing the City of Jersey City to execute a lease agreement with Harwood Corporation for 20 parking spaces located at 2854 Kennedy Boulevard	Ch. A352
14-147	11-25-2014	Supplementing Chapter 332, Article III and Article IX, designating a reserved parking space at 8 Apollo Street; 8 Bayview Avenue; 212 Bartholdi Avenue; 508 Liberty Avenue; 200 McAdoo Avenue and 138 Wegman Parkway and repealing the reserved parking space at 12 Bayview Avenue	332-29, 332-69
14-148	11-25-2014	Amending Chapter 296, Article VI, to include standards for street name signage and street vacations	296-19

Ordinance Number	Date of Adoption	Description	Disposition
14-149		Amending 1) Chapter 296, Article VII, Sub-Article III, Permits to excavate, 2) Chapter 296, Sub-Article IV, Excavations, to amend the standards for street excavations and 3) Chapter 160, Fees and charges, Subsection JJ to increase the fees to excavate streets	Withdrawn 11-12-2014
14-150	11-25-2014	Approving a thirty-year tax exemption for a low income affordable housing project including retail space, to be constructed by Lexington Manor Owner, LP, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law, N.J.S.A. 55:14K-1 et seq.	Ch. A352
14-151	11-25-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40a:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 11009, Lot 10, on the City's tax map and more commonly known by the street address of 129 Brunswick Street	Ch. A352
14-152	11-25-2014	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 16603, Lot 25, on the City's tax map and more commonly known by the street address of 148 Belmont Avenue	Ch. A352
14-153	11-25-2014	An ordinance approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 6901, Lot 3, on the City's tax map and more commonly known by the street address of 78 Palisade Avenue	Ch. A352
14-154	11-25-2014	Approving a thirty-ear tax exemption for a market rate mixed use rental project to be constructed by 3 Journal Square Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
14-155	01-14-2015	Granting renewal of municipal consent to Comcast of Jersey City, LLC, its successors and/or assigns, to construct, connect, operate and maintain a cable television system in the City	Ch. A352
14-156	12-17-2014	Adopting amendments to the Land Development Ordinance, Article III, Procedures, as it pertains to the general development application	345-3 LA
14-157	12-17-2014	Amending and supplementing Chapter A351, Executive orders (Tax Collector)	53-11, Ch. A351
14-158	12-17-2014	Amending and supplementing Chapter A351, Executive Orders (Assistant Municipal Tax Collector)	Ch. A351
14-159	12-17-2014	Amending and supplementing Chapter 53, Personnel, Section 53-6, Vacation and other compensation, and Section 53-11, Fixed salaries, reinstating Consumer Price Index (CPI)	53-6.D, 53-11
14-160	12-17-2014	Authorizing the termination of an existing deed notice and the imposition of a new deed notice on property owned by the City of Jersey City known as 362 Summit Avenue also known as Block 12301, Lot 2	Ch. A352
14-161	12-17-2014	Rescinding Ord. No. 14-112 and terminating the five-year tax agreement between the City of Jersey City and Jersey Avenue MM, LLC, at the request of the owner	Ch. A352
14-162	12-17-2014	Approving an addendum to the 2005 amended and restated water services franchise and service agreement between the City and the Jersey City Municipal Utilities Authority to revise Schedule C to increase the payments to the City	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
14-163	12-17-2014	Amending and supplementing Section 160-1, Fee Schedule Established	160-LZ
14-164	12-17-2014	Adopting the list of prospective street names recommended by the Municipal Council Street Name Subcommittee	Ch. A352
14-165	12-17-2014	Adopting amendments to the Harsimus Cove Station Redevelopment Plan to alter the street grid, add open space, and make minor design regulation changes	Ch. A352
14-166	01-14-2015	Reappropriating $214,285 proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	Ch. A352
14-167	01-14-2015	Authorizing the city to accept title and ownership of all real property and all personal property owned by the Jersey City Parking Authority and to assume all leases executed by the Jersey City Parking Authority	Ch. A352
14-168	01-14-2015	Supplementing Chapter 332, Article III, amending Section 332-24, No parking certain hours, designating twenty-five (25) feet in front of 51 Sherman Place as no parking, Monday through Friday, except holidays, 7:00 a.m. to 10:00 a.m. and 3:00 p.m. to 7:00 p.m.	332-24
14-169	01-14-2015	Supplementing Chapter 332, Article III and Article IX, designating a reserved parking space(s) at 194 Neptune Avenue; 28 Sherman Place; 140 Wegman Parkway and amending the reserved parking space at 58 Grace Street; 233 Wegman Parkway; 194 Neptime Avenue and repeal the reserved parking space at 138 Wegman Parkway	332-29, 332-69
14-170		Supplementing Chapter 332, Article III, amending Section 332-27, Angle parking, designating 30 degree angle parking on the north side of First Street, Marin Boulevard to Provost Street (Back-in parking only)	Expired on Tabled Agenda 12-31-2017
14-171	01-14-2015	Adopting amendments to the Land Development Ordinance, Article III, Procedures, as it pertains to site plan review thresholds	345-16.C.1
14-172	01-14-2015	Adopting amendments to the Land Development Ordinance - supplementary zoning as it pertains to height exceptions for rooftop appurtenances	345-60.G
14-173	01-14-2015	Adopting amendments to the Tidewater Basin Redevelopment Plan to modify mixed use district uses and clarify language	Ch. A352
14-174	01-14-2015	Adopting amendments to the Ocean Bayview Redevelopment Plan to bring language up to date	Ch. A352
14-175	01-14-2015	Ordinance authorizing the acquisition of Block 214, Lots 3 & 4 and Block 213, Lots 1 & 3 from 500 Manila Ave., LLC	Ch. A352
14-176	01-14-2015	Authorizing the imposition of a deed notice on property owned by the City known as Mary Benson Park also known as Block 10901, Lots 129 and 130	Ch. A352
14-177	01-14-2015	Rescinding Ordinance 14-151 and terminating the five-year tax agreement between the City and 129 Brunswick Avenue LLC for the property designated as Block 11009, Lot 10, on the City's tax map and more commonly known by the street address of 129 Brunswick Street	Ch. A352
14-178	01-14-2015	Authorizing the City to extend its sublease with Moishe's Self Storage, LLC, for storage space at 10 Senate Place, Jersey City, for five additional months, retroactive to November 1, 2014	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
14-179	01-14-2015	Authorizing the execution of a developer's agreement and deed of easement with Journal Square I Urban Renewal, LLC and Journal Squared ("J²") Condominium Association, Inc., affecting a portion of Magnolia Avenue	Ch. A352
14-180	01-14-2015	Authorizing the execution of an emergency access easement agreement with Journal Square Associates, LLC ("JSA") and the Port Authority Trans-Hudson Corporation ("PATH") permitting emergency vehicles of the City to travel across property owned by JSA and PATH	Ch. A352
14-181	01-14-2015	Approving a twenty-year tax exemption for a market rate rental project to be constructed by 234 Suydam Avenue Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. located at 218-240 Suydam Avenue in Jersey City	Ch. A352
15-001	01-14-2015	Approving a thirty-five-year tax exemption for a low-income affordable housing project located at 561 Montgomery Street, to be constructed by Montgomery Gardens Family Phase I Urban Renewal Associates, LP, a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law, N.J.S.A. 55:14k-1 et seq.	Ch. A352
15-002	01-28-2015	Honoring former Ward D Councilman William "Bill" Gaughan by naming the one hundred (100) steps connecting the Jersey City Heights with Franklin Street "Bill Gaughan Way"	Ch. A352
15-003	01-28-2015	Amending Chapter 296, Article VII, Excavations, to amend the standards for street excavations and Chapter 160, Fees and charges, subsection 160-1.JJ, to increase the fees to excavate streets	160-1.JJ 296-20—296-27, 296-42, 296-44, 296-47, 296-48, 296-50
15-004	01-28-2015	Chapter 332, Article III, amending section 332-24, No parking certain hours, designating 25 feet in front of 102 Van Reypen Street as no parking, Monday through Friday, except holidays, 8:00 a.m., to 9:00 a.m., 11:00 a.m. to noon and 2:00 p.m. to 3:00 p.m.	332-24
15-005	02-10-2015	Amending and supplementing Chapter 3, Article III, Mayor, and Article XII, Department of Health and Human Services, to move the Office of Senior Affairs	3-19.2, 3-100 Added 3-107
15-006	02-10-2015	Authorizing the transfer of City-owned property located at 362 Summit Avenue within the Journal Square 2060 Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
15-007	03-11-2015	Refunding bond ordinance providing for (i) the refunding of certain outstanding qualified school bonds, Series 2007 A of the City dated February 23,2007 to provide debt service savings, and (ii) authorizing the issuance of not to exceed $11,300,000 aggregate principal amount of school refunding bonds of the City to effect such refunding and appropriating the proceeds therefor	Ch. A352
15-008	03-11-2015	Refunding bond ordinance providing for (i) the refunding of certain outstanding qualified general improvement bonds, Series 2007 of the City dated December 7, 2007 to provide debt service savings, and (ii) authorizing the issuance of not to exceed $14,800,000 aggregate principal amount of general improvement refunding bonds of the City to effect such refunding and appropriating the proceeds therefor	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
15-009	02-10-2015	Authorizing the cancellation and reimbursement of taxes pursuant to N.J.S.A, S4:4-3.6c for property owned by Margaret Anna Cusack Care Center, Inc., and located at 251 Baldwin Avenue, on Block 09606, Lot 8	NCM
15-010		Vacating a portion of West Street in accordance with the Stipulation of Settlement dated July 25,2012 and pursuant to the Journal Square 2060 Redevelopment Plan	Defeated 05-13-2015
15-011	02-10-2015	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 19006, Lot 33, on the City's tax map and more commonly known by the street address of 372 Pacific Avenue	Ch. A352
15-012	02-25-2015	Amending Chapter 3, Article V, Office of the City Clerk, to include § 3-39, Standards for naming streets and municipally-owned property and Chapter 296, Article VI, Street name changes, repealing Section 296-19 in its entirety	Added 3-38.1 Repealed 296-19
15-013		Amending and supplementing Chapter 304, Article V, Hotel Occupancy Tax, to include Section 304-27.2 definitions	Withdrawn 02-10-2015
15-014	02-25-2015	Adopting amendments to the Colgate Redevelopment Plan to alter the height and open space of Block 14507 and make minor design and regulation changes	Ch. A352
15-015	02-25-2015	Granting permission to Willow Avenue Realty Associates, L.P., its successors and assigns, to improve and use that approximately five-foot by ten-foot portion of the public right-of-way between the sixty-foot right-of-way adjacent to Morgan Street and Lot 9, Block 13002, on the official tax assessment map of the City for the construction of a six-step stoop, entrance stairway which encroaches five feet onto the public right-of-way along Morgan Street	Ch. A352
15-016		Granting permission to Public Storage, its successors and assigns, to make improvements in the First Street, Second Street, Provost Street and Warren Street right-of-way adjacent to the property located at 124-142 First Street, also known as Block 11503, Lot 1 on the tax maps of the City	Withdrawn 02-10-2015
15-017		Amending: (1) Chapter 175, Article III, Food establishments, to create standards for farmers' markets; (2) Chapter 3, Article IX, Section 3-71, Division of Park Maintenance, to amend the approval process for farmers' markets seeking permission to operate in City parks; (3) Chapter 239, Section 239-15, Hours of operation; permits; farmers' markets, to create standards for farmers' markets operating in City parks and Chapter 160, Subsection 160-LP, Chapter 175, Food Handling Establishments, to create a fee for farmers' markets	Defeated 02-25-2015
15-018		Calendar Year 2015 Ordinance to exceed the municipal budget appropriation limits and to establish a can bank (N.J.S.A. 40A:4- 45.14)	Defeated 03-11-2015
15-019	03-11-2015	Authorizing the City to execute a month-to-month lease not to exceed six months with 3000 Kennedy Blvd, LLC for the use of 27 parking spaces at 3000 Kennedy Boulevard, Jersey City	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
15-020	03-11-2015	Authorizing the City to enter into a lease/purchase agreement as lessee with Jersey City Municipal, LLC, as lessor for office space to be constructed at the MLK Hub on a portion of Lot 17, Block 21201 at the intersection of Kearney Avenue and Martin Luther King Drive	Ch. A352
15-021	03-11-2015	Amending Chapter 175, Article III, Section 175-18, Definitions, to expand the definition of agricultural market to permit such markets to slice fruit and produce for immediate sale and consumption	175-18
15-022	03-11-2015	Adopting amendments to the Montgomery Street Redevelopment Plan to allow self storage uses	Ch. A352
15-023	03-11-2015	Adopting amendments to the Land Development Ordinance for self storage and parking uses	345.48, 345-50, 345-51
15-024	03-11-2015	Adopting amendments to the Liberty Harbor Redevelopment Plan to allow self storage uses	Ch. A352
15-025	03-11-2015	Adopting amendments to the definitions of the Land Development Ordinance	345-6
15-026	03-11-2015	Amending Chapter 175, Article III, Food Establishments, to create standards for farmers' markets; Chapter 3, Article IX, Section 71, Division of Park Maintenance, to amend the approval process for farmers' markets seeking permission to operate in City parks; Chapter 239, Section 15, Hours of operation; permits; farmers' markets, to create standards for farmers' markets operating in City parks; and Chapter 160, Fees and Charges, Subsection P, to create a fee for farmers' markets	3-71.1, 160-LP, 175-18, 175-20—175-22,175-25—175-27,239-15.G Added 175-28
15-027	03-25-2015	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	NCM
15-028	03-25-2015	Amending Chapter 239 to add rules and regulations for a skate park in Berry Lane Park	Renumbered 239-17 as 239-18 Added 239-17
15-029	03-25-2015	Supplementing Chapter 332, Article III and Article IX, designating a reserved parking space(s) at 240 Arlington Avenue; 111 Baldwin Avenue; 63 Beach Street; 177 Boyd Avenue; 56 Brinkerhoff Street; 115 Carlton Avenue; 71 Claremont Avenue; 38 Clarke Avenue; 60 Clarke Avenue; 72 Clendenny Avenue; 29 Crescent Avenue; 61 Duncan Avenue; 234 Duncan Avenue; 131A Dwight Street; 15 Floyd Street; 98 Harmon Street; 159 Hutton Street; 130 Irving Street; 88 Kensington Avenue; 140 Lexington Avenue; 292 Linden Avenue; 230 McAdoo Avenue; 89 Mallory Avenue; 113-107 Nelson Avenue; 62 Oak Street; 388 Palisade Avenue; 28 South Street; 188 South Street; 865 Summit Avenue; 304 Terrace Avenue; 74 Union Street; 190 Van Nostrand Avenue; 39 Van Wagenen Avenue; 89 Wales Avenue; 69 Wallis Avenue; 14 Wilkinson Avenue; 46 Zabriskie Street; 58 Zabriskie Street; 111 Zabriskie Street and 130 Zabriskie Street and repeal the reserved parking space at 131-133 Boyd Avenue and at 41 Morton Place	332-29 332-69
15-030	03-25-2015	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, amending the days and hours the right turn on red signal is prohibited at Monmouth Street and Grand Street; Douglas and Arthur Skinner Memorial Drive (fka Jersey Avenue) and Grand Street; Marin Boulevard and Grand Street; Warren Street and Grand Street and Washington Street and Grand Street to 8:00 a.m. and 4:00 p.m., school days, all approaches	332-8

Ordinance Number	Date of Adoption	Description	Disposition
15-031	03-25-2015	Adopting amendments to the Land Development Ordinance for administrative revisions to zones throughout	345-43.E, H, 345-45.B.9, 345-49, 345-53.A.2, 345-60.3
15-032	03-25-2015	Adopting amendments to the Land Development Ordinance for Zoning Board of Adjustment membership	345-8.A
15-033	03-25-2015	Supplementing Chapter A3 51 to create a new position of Director, Communications Center	Ch. A351
15-034	03-25-2015	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-9 of the Municipal Code for property designated as Block 7806, Lot 18.01, on the City's tax map and more commonly known by the street address of 850-852 Newark Avenue, for the entity known as Nivaria Group, LLC	Ch. A352
15-035	03-25-2015	Approving a ten-year tax exemption for a market rate mixed use rental project to be constructed by 17-19 Division Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq., for the property designated as Block 9806 Lot 6.01 (formerly Lots 6 and 7) on the City's tax map and more commonly known by the street address of 17 Division Street	Ch. A352
15-036	3-25-2015	Supplementing Chapter 332, Article VII, amending Section 332-66, On-street resident only permit parking, extending Zone 11 On-street resident only permit parking to include Apollo Street, entire length; Bergen Avenue, west side, between Duncan Avenue and Fairmount Avenue; Boland Street, entire length; Brttton Street, entire length; Duncan Avenue between Bergen Avenue and West Side Avenue; Duncan Court, entire length; Fairmount Avenue between West Side Avenue and Bergen Avenue; Kennedy Boulevard, east side, Duncan Avenue to 2622 Kennedy Boulevard and the West Side between Duncan Avenue to 2615 Kennedy Boulevard and Montgomery Street, south side, between West Side Avenue and Bergen Avenue, Monday through Friday, 3.00 p.m. to 9:00 p.m.	332-66
15-037		Amending Chapter 296, Articles VI, Street names, that will provide a street-naming process for new streets and for re-naming existing streets and to create a new Section 345-21A, Street naming, within the Land Development Ordinance that references the standards and procedure established in Chapter 296	Withdrawn 03-11-2015
15-038	03-25-2015	Rededicating the Municipal Council Chambers as the Anna and Anthony R. Cucci Memorial Council Chambers	Ch. A352
15-039	04-08-2015	Amending and supplementing Ch. 304, Art. V, to include § 304-27.2, Definitions, and § 304-27.3, Compliance with other laws	304-26 Added 304-27.2, 304-27.3
15-040	06-10-2015	Adopting amendments to the Land Development Ordinance adopting the West Bergen-East Lincoln Park Historic District as a municipal historic district	345-30.G
15-041	04-08-2015	Adopting amendments to the Land Development Ordinance, § 345-60, Supplementary zoning, as it pertains to height and size exceptions for rooftop appurtenances	345-60.G
15-042	04-08-2015	Adopting amendments to the Land Development Ordinance, § 345-42, R-3 Multi-Family Mid-Rise District, to allow ground floor retail on certain lots	345-42
15-043	04-08-2015	Adopting amendments to the Village Redevelopment Plan to permit townhouses	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
15-044	04-08-2015	Granting permission to Public Storage, its successors and assigns, to make improvements in the First Street, Second Street, Provost Street and Warren Street right-of-way adjacent to the property located at 124-142 First Street, also known as Block 11503, Lot 1 on the Tax maps of the City	Ch. A352
15-045	04-08-2015	Amending Ch. 160, Section 160-1, Subsection E, Animals, to increase fees for dog licenses	160-LE
15-046	04-08-2015	Amending (1) Ch. 3, Art. V, § 3-38.1, Standards for naming streets and municipally owned property, to amend the standards for naming streets and include standards for street name signage and street vacations; and (2) amending Ch. 345, Art, III, Application requirements, development procedures and checklists, to require that all applications for site plan and subdivision approval conform to the street naming procedures as set forth in § 3-38.1	3-38.1 Added 345-21.1
15-047	04-22-2015	Amending Ord. No. 03-061 to authorize the imposition of environmental deed restrictions on Block 23103, Lot 23, more commonly known as 271-285 Martin Luther King Drive, the Cunningham Library	Ch. A352
15-048	04-22-2015	Adopting amendments to the definitions and supplementary zoning regulations of the Land Development Ordinance	345-6 345-60
15-049	08-19-2015	Adopting amendments to the Powerhouse Arts District Redevelopment Plan Rehabilitation Sub-District	Ch. A352
15-050	05-13-2015	Adopting the Garfield Avenue Redevelopment Plan	Ch. A352
15-051	05-13-2015	Adopting amendments to the Morgan/Grove/Marin (MGM) Redevelopment Plan to create a community benefit bonus provision on Block 11508 along the Luis Munoz Marin Boulevard frontage and to expand the four-story Sub-District "A" Zone	Ch. A352
15-052	05-13-2015	Adopting an amendment to the Land Development Ordinance adding a definition for formula businesses	345-6
15-053	05-13-2015	Adopting amendments to various redevelopment plans to add formula business restrictions	Ch. A352
15-054	05-13-2015	Amending and supplementing Ch. 345, Art. IV, § 345-32, Non-refundable application fees	345-32
15-055	05-13-2015	Supplementing Ch. A351, Executive orders and ordinances, to create a new classified position for Environmental Engineer 1	Ch. A351
15-056	05-13-2015	Authorizing the City to lease City-owned property at 13-15 Linden Avenue to the Jersey City Incinerator Authority	Ch. A352
15-057	05-13-2015	Authorizing the City to execute a lease agreement with Harwood Corporation for 20 parking spaces located at 808 Pavonia Avenue	Ch. A352
15-058	05-13-2015	Authorizing an amendment to the financial agreement for a senior citizen rental housing project constructed by Padua Court Urban Renewal, L.P., an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
15-059	05-13-2015	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 5302, Lot 2, on the City's tax map and more commonly known by the street address of 319 Tonnele Avenue	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
15-060	05-13-2015	Approving a twenty-year tax exemption for a four-story, forty-six (46) unit market rate residential rental "live/work" project located at Block 17301 Lot 11, and known by the street address of 170 Lafayette Street, to be constructed by 170 Lafayette Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
15-061	05-27-2015	Amending Chapter 3, Article III, Mayor, to establish a Bureau of Innovation under the Office of the Mayor	Added 3-19.3, 3-19.4
15-062	05-27-2015	Amending Chapter 3, § 3-19.2, Powers and duties of the Resident Response Center	3-19.2
15-063	05-27-2015	Amending Ch. 332, Art. VIII, amending § 332-58, Parking restrictions in residential zones, and § 332-67, Violations and penalties	332-58 332-67
15-064	05-27-2015	Amending and supplementing Ch. A351, Executive orders and ordinances	Ch. A351
15-065	05-27-2015	Adopting amendments to the Land Development Ordinance expanding the R-1A Zoning District in Ward A	345-40.1
15-066	05-27-2015	Adopting amendments to the Morris Canal Redevelopment Plan to modify permitted uses, height, and density, as well as create an affordable housing provision in TOD-W Zone	Ch. A352
15-067	05-27-2015	Adopting amendments to the Tidewater Basin Redevelopment Plan to allow medical offices	Ch. A352
15-068	05-27-2015	Authorizing the transfer of City-owned property within the Bayfront I Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
15-069	05-27-2015	Authorizing a fifth amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to amend the term and square footage of space	Ch. A352
15-070	05-27-2015	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and § 304-12 of the Municipal Code for property designated as Block 8803, Lot 9.01, on the City's tax map and more commonly known by the street address of 210 Ninth Street	Ch. A352
15-071		Approving a ten-year tax exemption for a market rate rental project to be constructed by 361 Newark Avenue Urban Renewal Co., LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located at 361 Newark Avenue in Jersey City.	Withdrawn 05-13-2015
15-072		Approving a twenty-year tax exemption for a market rate residential condominium project to be constructed by Greenland Realty Urban Renewal Co., LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located at 136 Summit Avenue in Jersey City	Withdrawn 05-13-2015
15-073		Approving a thirty-year tax exemption for a condominium unit two in a market rate mixed rental project to be constructed by Devi Ma Newkirk Urban Renewal Co., LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., on the City's tax map and more commonly known by the street address of 60-62 Newkirk Street	Withdrawn 05-13-2015

Ordinance Number	Date of Adoption	Description	Disposition
15-074	05-27-2015	Supplementing Ch. 332, Article III, § 332-22, Parking prohibited at all times; amending the no parking any time prohibition on Washington Street, Montgomery Street to Second Street; § 332-25, No stopping or standing certain hours, designating the west side of Washington Street, Second Street to Bay Street, as no stopping or standing, Monday through Friday, except holidays, 6:00 a.m. to 9:00 a.m. and 4:00 p.m. to 7:00 p.m.; and Art. VIII, § 332-58, extending Zone 4 Residential permit parking to include the west side of Washington Street, First Street to Second Street	332-22 332-26 332-58
15-075	06-10-2015	Authorizing the transfer of City-owned property within the Grand Jersey Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
15-076	06-10-2015	Approving a twenty-year tax exemption for a commercial hotel project to be constructed by Ratan Jersey City Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. for the property designated as Block 1101, Lot 10 on the City's tax map and more commonly known by the street address as 707 Tonnele Avenue	Ch. A352
15-077	06-10-2015	Approving a twenty-year tax exemption for a commercial hotel project to be constructed by SL Hospitality Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., for the property designated as Block 7104, Lot 2.01, on the City's tax map and more commonly known by the street address as 180 Fourteenth Street	Ch. A352
15-078	06-10-2015	Supplementing Ch. A351, Executive orders and ordinances, to create a new classified position for Environmental Health Coordinator	Ch. A351
15-079		Amending the Sip Avenue Gateway Redevelopment Plan to expand the commercial area	Defeated 06-10-2015
15-080	06-10-2015	Approving a thirty-year tax exemption for a market rate mixed use residential rental project known as Condominium Unit Two to be constructed by Devi Ma Newkirk Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., on the City's tax map and more commonly known by the street address of 60-62 Newkirk Street	Ch. A352
15-081		Supplementing Ch. 332, Art. III, Parking, standing and stopping, of the Jersey City Traffic Code amending § 332-22, No parking any time, designating the north side of First Street, 148 feet east of Marin Boulevard to a point 65 feet easterly, as "No Parking Any Time" and amending § 332-27, Angle parking, designating on the north side of First Street 8 parking spaces at a 50 degree angle "Back-in Parking Only" beginning 59 feet east of Marin Boulevard and designating 12 parking spaces at a 45 degree angle "Head-in Parking Only" beginning 50 feet west of Provost Street	Withdrawn 06-10-2015
15-082	06-24-2015	Amending Ch. 160, § 160-1, Subsection (A)(5), Service charges to be imposed by the tax collector, to provide for the uniform assessment of a service charge pursuant to N.J.S.A. 54:5-52.3 for a check returned for insufficient funds and further to establish a fee to be charged by the tax collector for issuance of a duplicate tax sale certificate pursuant to N.J.S.A. 54:5-52.3	16O-1(A)(5)

Ordinance Number	Date of Adoption	Description	Disposition
15-083	06-24-2015	Adopting amendments to the Powerhouse Arts District Redevelopment Plan creating a new Southern Edge Transition District	Ch. A352
15-084	06-24-2015	Adopting amendments to Ch. 345, Art. V, § 345-45, NC Neighborhood Commercial District, of the Land Development Ordinance	345-45
15-085	06-24-2015	Authorizing the City to enter into a lease agreement with the Farms in the Heights, a New Jersey not-for-profit, pursuant to N.J.S.A. 40:12-14(c)	Ch. A352
15-086	06-24-2015	Supplementing Ch. 332, Art. 11, § 332-8, Prohibited right turns on red signal, amending the days and hours the right turn on red signal is prohibited on Washington Street at Montgomery Street, both approaches and on Montgomery Street at Washington Street, both approaches, from all times to 7:00 a.m. to 7:00 p.m., Monday through Friday	332-8
15-087		Supplementing Ch. 332, Art. III, Parking, standing and stopping, amending § 332-24, No parking certain hours, designating 25 feet in front of 168 New York Avenue as "No Parking, Monday through Friday, except Holidays, 7:00 a.m. to 10:00 a.m. and 3:00 p.m. to 6:00 p.m."	Deleted 06-10-2015
15-088	07-15-2015	Rescinding Ordinance 11-019 and amending Chapter 3, Art. XII, Department of Health and Human Services, to establish an "Adopt a Lot" program authorizing the City to lease vacant, City-owned land in need of improvement to non-profit corporations or associations	Added 3-101
15-089	07-15-2015	Creating a new chapter, Ch. 181, entitled "Energy Audits" mandating periodic audits of energy usage in City-owned facilities, vehicles and equipment	Added 181-1
15-090	07-15-2015	Supplementing Ch. A351, Executive orders and ordinances, to create a new classified position for Supervisor Customer Service	Ch. A351
15-091	07-15-2015	Supplementing Ch. 332, Art. II, § 332-9, Stop intersections, designating the intersections of St. Paul's and Oakland Avenue and Merseles Street and Fourth Street as multi-way stop intersections	332-9
15-092	07-15-2015	Authorizing the City to enter into a month-to-month tenancy with Rescore Montgomery, LLC for off-street parking at 711 Montgomery Street	Ch. A352
15-093	07-15-2015	Granting permission to Christopher Columbus Drive, LLC, successors and assigns, to make private improvements in the Christopher Columbus Drive public right-of-way adjacent to the property located at 190 Christopher Columbus Drive, Jersey City, New Jersey, also known on the tax maps of the City as Block 12703, Lot 4	Ch. A352
15-094	07-15-2015	1) Approving a thirty-year tax exemption for an affordable housing project at 441, 443, 445, 447, 449, 451-457 Ocean Avenue and 79-81 Dwight Street, for Genesis Ocean Urban Renewal Associates LLC, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq. and 2) rescinding all prior ordinances (11-101,13-098 and 14-012) that approved or amended tax exemptions for the property	Ch. A352
15-095	07-15-2015	Implementing Ch. 6, Art. 1, Wage theft prevention, to prevent the issuance or enable suspension of business licenses to entities liable for wage theft within the City	Added 6-1—6-9
15-096	07-15-2015	Implementing Ch. 67, Pedestrian malls, Art. 1, Newark Avenue Pedestrian Mall	Added 67-1—67-10

Ordinance Number	Date of Adoption	Description	Disposition
15-097	07-15-2015	Consenting to the sale and assignment of a tax exemption and financial agreement from Brunswick Estates Associates, a limited liability partnership, to Roseville Avenue Redevelopment Urban Renewal, LLC, pursuant to section 11 of the financial agreement and the Limited Dividend Nonprofit Housing Corporations or Association Law, N.J.S.A. 55:16-1 et seq.	Ch. A352
15-098		Supplementing Ch. 332, Art. II, amending § 332-4, Speed limits, designating the speed limit on Caven Point Road from Linden Avenue East to Bayview Avenue; Burma Road from Bayview Avenue to James A. Hamil Drive and Phillip Street from James A. Hamil Drive to Johnston Avenue/Audrey Zapp Drive, 35 mph	Defeated 07-15-2015
15-099	08-19-2015	Authorizing the City to execute a ten-year lease with the Jersey City Housing Authority for approximately 25,839 square feet of space at Building #8, 420 U.S. Highway 1	Ch. A352
15-100	08-19-2015	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 19402, Lot 32, on the City's tax map and more commonly known by the street address of 416 Bergen Avenue	Ch. A352
15-101	08-19-2015	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 19402, Lot 33, on the City's tax map and more commonly known by the street address of 418 Bergen Avenue	Ch. A352
15-102	08-19-2015	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 11004, Lots 27 and 28, on the City's tax map and more commonly known by the street address of 124-128 Brunswick Street	Ch. A352
15-103	08-19-2015	Approving an amendment to the tax exemption for 500 Manila Ave., LLC, to 1) revert to a limited dividend tax exemption; 2) restructure the entity to change the entity's name to 500 Manila Ave. Urban Renewal, LLC; and 3) amend the tax exemption to delete certain property	Ch. A352
15-104	10-14-2015	Amending and supplementing Chapter 12, Article II Incinerator Authority, dissolving the Jersey City Incinerator Authority, and amending and supplementing Chapter 3, Article IX, Department of Public Works, to consolidate and assume the functions of the Jersey City Incinerator Authority with the Jersey City Department of Public Works	3-51.D, 3-67, 3-75.B, 287-48 Added 3-71.4—3-71.8 Rpld 12-2
15-105		Adopting amendments to the Powerhouse Arts District Redevelopment Plan Rehabilitation Sub-District	Defeated 08-19-2015
15-106		Adopting amendments for the addition of a cafe definition to Art. 1, Definitions, of Ch. 345, the Land Development Ordinance	Defeated 08-19-2015

Ordinance Number	Date of Adoption	Description	Disposition
15-107	08-19-2015	Approving the execution of a financial agreement with GS FC Jersey City Pep I Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000.00 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	Ch. A352
15-108	08-19-2015	Approving the execution of a financial agreement with GS FC Jersey City Pep 2 Urban Renewal LLC and other applicable documents related to the authorization and issuance by the Jersey City Redevelopment Agency of not to exceed $10,000,000.00 redevelopment area bonds (non-recourse to the full faith and credit of the City) and determining various other matters in connection therewith	Ch. A352
15-109	09-09-2015	Amending and supplementing Ch. 332, Art, VIII, Permit parking, and Ch. 160, Fees and charges	160-1.SS Added 332-58.1
15-110	09-09-2015	Authorizing the conveyance of 308 Whiton Street to the Jersey City Redevelopment Agency	Ch. A352
15-111	09-09-2015	Accepting dedication of certain roadways, sidewalks, utilities, and a park located within the Liberty Harbor North Redevelopment Area	Ch. A352
15-112	09-09-2015	Supplementing Ch. 332, Art. III, Parking, standing and stopping, and Art. IX, Parking for the disabled, designating a reserved parking space(s) at 110-112-114 Atlantic Street; 200 Bartholdi Avenue; 14 Bayview Avenue; 169 Beacon Avenue; 215 Belmont Avenue; 177 Boyd Avenue; 199 Boyd Avenue; 15-15A-17 Claremont Avenue; 71 Claremont Avenue; 47 Country Village Road; 77 Court House Place; 234 Duncan Avenue; 4 Dwight Street; 93 Ege Avenue; 42 Fairview Avenue; 15 Floyd Street; 370 Forrest Street; 292 Fulton Avenue; 26 Gates Avenue; 15-17 Gifford Avenue; 41 Greenville Avenue; 22-24 Kensington Avenue; 117 Kensington Avenue; 43 Laidlaw Avenue; 516 Liberty Avenue; 33 Long Street; 22 Manhattan Avenue; 146 Manhattan Avenue; 433 1/2 Monmouth Street; 56-58 Oak Street; 40 Park Street; 304 Pavonia Avenue; 69 Poplar Street; 99 Randolph Avenue; 241 Randolph Avenue; 25 Ravine Avenue; 63 Reservoir Avenue; 153 Roosevelt Avenue; 55 Seidler Street; 202-204 Seventh Street; 36-38 Sherman Place; 180 Stegman Street; 966 Summit Avenue; 312 Terrace Avenue; 39 Van Wagenen Avenue; 118 Waller Street; 37 Waverly Street; 155 Wegman Parkway; 258 Winfield Avenue; 280-282 Winfield Avenue and 10 Woodlawn Avenue; and amend the reserved parking space at 36 Beacon Avenue; 116 Columbia Avenue; 136 South Street and 74 Union Street and repeal the reserved parking space at 131 Boyd Avenue	332-29 332-69
15-113	09-09-2015	Supplementing Ch. 332, Art. II, § 332-9, Stop intersections, designating Cuneo Place and Ogden Avenue as a stop intersection	332-9
15-114	09-09-2015	Amending the Vacant Buildings Redevelopment Plan	Ch. A352
15-115	09-09-2015	Adopting amendments for the addition of a cafe use to Art. I, § 345-6, Definitions, and Art. V, § 345-60, Supplementary zoning regulations	345-6 Added 345-60.X
15-116	09-09-2015	Amending and supplementing Ch. 21, Contracts and investments	Added 21-2

Ordinance Number	Date of Adoption	Description	Disposition
15-117	09-09-2015	Amending and supplementing Ch. 257, § 257-6, Disclosure of availability of zoned parking permits for residential buildings	257-6.C, D
15-118	09-09-2015	Approving a twenty-year tax exemption for a market rate residential condominium project to be constructed by Greenland Realty Urban Renewal Co., LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located at 136 Summit Avenue	Ch. A352
15-119		Authorizing an amendment to a tax exemption awarded to Block 283 South Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., to reflect a change in the project from a market rate condominium to a market rate rental project	Defeated 09-09-2015
15-120	09-09-2015	Approving a twenty-year tax exemption for a market rate rental project that will include 20% or 80 units of on-site moderate income affordable housing to be constructed by KRE Hamilton Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located at 431 Luis Marin Boulevard in Jersey City	Ch. A352
15-121		Amending Ch. 157, Entertainment licenses, to add § 157-12, Joseph Connors and Maureen Collier Senior Centers, to establish usage regulations for these centers	Defeated 08-19-2015
15-122	09-24-2015	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and § 304-12 of the Municipal Code for property designated as Block 14301, Lot 13, on the City's tax map and more commonly known by the street address of 102 York Street	Ch. A352
15-123	09-24-2015	Supplementing Ch. 332, Art. II, amending § 332-5, One-way streets, designating Brooks Place from Huron Avenue to Kennedy Boulevard as a one way west and designating Huron Avenue from St. Paul's Avenue to Brooks Place as a one way south	332-5
15-124	09-24-2015	Authorizing the execution of a rights-of-way use agreement between the City and Mobilitie, LLC d/b/a NYFI to permit the installation of antennas and related communications equipment on existing utility poles and if necessary to install utility poles within certain public rights-of-way for purposes of providing telecommunication services	Ch. A352
15-125	10-14-2015	Amending Ordinance No. 10-085 of the City finally adopted July 14, 2010, providing for the acquisition by the City of real property in the City and the construction of various improvements thereto and appropriating $7,700,000 therefor, and providing for the issuance of $7,333,300 in general improvement bonds or notes of the City of Jersey City to finance the same	Ch. A352
15-126	09-24-2015	Amending and supplementing Chapter 3, Article III, Mayor	3-19.1, 3-19.2 Added 3-19.5, 3-19.6
15-127	09-24-2015	Amending Ch. 81, Art. I, Handbills and signs, to impose a minimum fine for the illegal distribution of handbills	81-3 81-16
15-128		Amending Ch. 157, Entertainment licenses, to add § 157-12, Joseph Connors Senior Center, establishing usage regulations for the center	Expired on Tabled Agenda 12-31-2017
15-129	09-24-2015	Dedicating that Spruce Street to the dead end along Liberty Avenue also be known as Frank Brazicki Way	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
15-130	09-24-2015	Amending Ch. 304, Art. VI, Long term and five year tax exemptions; Affordable Housing Trust Fund	304-28
15-131	09-24-2015	1) Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A.21-1, et seq., and § 304-12 of the Municipal Code for property designated as Block 10004, Lot 2.01, on the City's tax map and more commonly known by the street address of 5-19 Rt. Rev. Msgr. Leroy McWilliams Place and 141-151 Erie Street; and 2) Rescinding Ord. No. 06-119, which authorized a thirty-year tax exemption for the property	Ch. A352
15-132	10-14-2015	Adopting amendments for the addition of an art gallery use to Chapter 345, Article 1, Definitions, and Article V, Section 345-60, Supplementary Zoning	345-6 Added 345-60.Y
15-133		Amending and supplementing Ch. 3, Art. XI, Sub-Article I, Division of Police, Off-duty employment	Withdrawn 09-24-2015
15-134		Ordinance of the Municipal Council of the City of Jersey City adopting the Scatter Site Redevelopment Plan.	Defeated 10-14-2015
15-135		An ordinance amending and supplementing Chapter 4, Paid Sick Time of the Jersey City Municipal Code	Expired on Tabled Agenda 12-31-2017
15-136		Ordinance amending and supplementing Chapter 332, Vehicles and Traffic, Article VIII, Permit Parking, and Chapter 160, Fees and Charges, of the Jersey City Municipal Code.	Defeated 10-28-2015
15-137	10-28-2015	Adopting amendments for the addition of short-term rental use to Chapter 345, Article 1, Definitions, and Article V, Section 345-60, Supplementary zoning	345-6 Added 345-60.Z
15-138	10-28-2015	Amending and supplementing Chapter 3, Article III, Mayor, and Article XI, Department of Public Safety	Rpld 3-19, 3-91 Added 3-91, 3-92
15-139	10-28-2015	Authorizing the City to execute a month-to-month lease not to exceed six months effective as of October 1, 2015 with 3000 Kennedy Blvd, LLC for the use of 29 parking spaces at 3000 Kennedy Boulevard, Jersey City	Ch. A352
15-140	10-28-2015	Supplementing Chapter 332, Article II, Section 332-5, One-way streets, designating Bay Street from Warren Street to Marin Boulevard as a one-way west and repealing the one-way west on Second Street from Washington Street to Marin Boulevard	332-5
15-141	10-28-2015	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create a new classified position for chief project coordinator/construction	Ch. A351
15-142	10-28-2015	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create a new classified position for road inspector	Ch. A351
15-143	10-28-2015	Adopting amendments to the Powerhouse Arts District Redevelopment Plan Rehabilitation Subdistrict to accommodate the adaptive reuse of the historic Merchants' Refrigeration Company Building for self-storage and first floor commericial space, which property is located at 133 Second Street and designated as Block 11502, Lot 1 on the tax map of the City	Ch. A352
15-144	10-28-2015	Adopting the Scatter Site Redevelopment Plan	Ch. A352
15-145	10-28-2015	Amending and supplementing Chapter 4, Paid sick time	4-1,4-3,4-7.D Rpld 4-10, 4-12 Rnbd4-ll as 4-10

Ordinance Number	Date of Adoption	Description	Disposition
15-146	11-10-2015	Readopting Chapter 304, Article III, Five-year tax exemption, authorizing five-year tax exemptions for an additional ten-year period	304-17
15-147	11-10-2015	Amending and supplementing Chapter 345, Article IV, Section 345-33, Fees, and Section 345-76, Enforcement, and Chapter 160, Fees and charges	160-1.UU 345-33, 345-76
15-148		Ordinance of the Municipal Council of the City of Jersey City adopting amendments to the Land Development Ordinance - R-3 Multi-Family Mid-Rise District.	Withdrawn 10-28-2015
15-149	11-10-2015	Providing for a special emergency appropriation of $8,000,000 for the payment of contractually required severance liabilities resulting from the retirement of City employees	Ch. A352
15-150	11-10-2015	Authorizing a sixth amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to amend the term	Ch. A352
15-151	12-16-2015	Approving 1) a tax exemption for Ocean Towers Preservation, LLC; pursuant to the NJ Housing and Mortgage Finance Agency Law N.J.S.A. 55.-14k-l et seq.; and 2) termination of the existing tax exemption with Ocean Towers Associates, LP/MT. Carmel Guild pursuant to the limited dividend law, N.J.S.A. 55:16-1 et seq., for 425 Ocean Avenue	Ch. A352
15-152	11-24-2015	Amending and supplementing chapter 3, Article XI, Sub-Article 1, Division of Police	3-85.1.D(5), F
15-153	11-24-2015	Amending Chapter 254, Article IX, Maintenance responsibilities of owners and managers, to mandate regular inspection requirements for fire escapes, exterior bridges and egress balconies	254-45.B(9)
15-154	11-24-2015	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Jersey City Boulevard and Wilson Street as a multi-way stop intersection	332-9
15-155	11-24-2015	Amending and supplementing Chapter 332, Article VII, Metered parking	332-48
15-156	11-24-2015	Amending and supplementing chapter 332, Article VII, Permit parking, and Chapter 160, Fees and charges	160-1.SS 332-58
15-157	11-24-2015	Granting permission to Tal Raichlin Shuster, its successors and/or assigns, to make private improvements in the public right-of-way of 81-83 Sussex Street, Jersey City, New Jersey also known on the tax map of the City as Block 14402, Lot 2	Ch. A352
15-158	11-24-2015	Authorizing the City to extend a lease with the Jersey City Redevelopment Agency for office space at the Hub Shopping Center located at 380-382 Martin Luther King Drive	Ch. A352
15-159	11-24-2015	Amending Ordinance 15-020 to authorize the City to amend its lease/purchase agreement with Jersey City Municipal, LLC for office space to be constructed at the MLK Hub on a portion of Lot 17, Block 21201	Ch. A352
15-160	11-24-2015	Adopting amendments to the Henderson Street South Redevelopment Plan to modify the duration of the plan	Ch. A352
15-161	11-24-2015	Approving an amendment to the tax exemption for Lafayette Family Phase IV Urban Renewal Associates, L.P., to change the entity's name to Glenview Townhouses Urban Renewal Associates, L.P.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
15-162		Ordinance implementing Chapter 2, Regular Municipal Elections, to change the date of the regular Municipal Elections from the second Tuesday in May to the Day of the General Elections in November	Expired on Tabled Agenda 12-31-2017
15-163	11-24-2015	Supplementing Chapter 332, Article VII, Section 332-57, On-street permit parking zones, designating on-street permit parking for mobile food vendor trucks, on both sides of Grand Street, Sussex Street and York Street between Hudson Street and the Waterfront, 6:00 a.m. to 10:00 p.m.	332-57
15-164		Ordinance of the Municipal Council of the City of Jersey City adopting amendments to the TOD-N Zone and Map B: zoning of the Morris Canal Redevelopment Plan.	Withdrawn 11-24-2015
15-165		Ordinance of the Municipal Council of the City of Jersey City adopting the Ocean Avenue South Redevelopment Plan	Defeated 12-16-2015
15-166	12-16-2015	Authorizing the City to enter into a lease with Jackson Hill Main Street Management Corporation for the use of Block 17905, Lots 18, 20 & 21, more commonly known as 612-616 Communipaw Avenue, for a community garden	Ch. A352
15-167	12-16-2015	Authorizing the City to enter into a month-to-month tenancy with Rescore Montgomery, LLC for off-street parking at 711 Montgomery Street	Ch. A352
15-168	12-16-2015	Authorizing the City of Jersey City, as tenant, to extend for a one-year term a lease agreement with 18 Ash Street Realty, LLC, as landlord, for space located at 46 State Street, Jersey City	Ch. A352
15-169	12-16-2015	Approving a ten-year tax exemption for a market rate rental project to be constructed at 460 Grand Street by 456 Grand Realty Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
15-170	12-16-2015	Approving a 15-year tax exemption for an industrial project to be constructed by Hudson Main Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law N.J.S.A. 40A:20-1 et seq., for the property designated as Block 27401, Lot 41, on the City's tax map, and more commonly known by the street address of 143 Chapel Avenue	Ch. A352
15-171		Ordinance authorizing an amendment to the Tax Exemption of 1) 20 River Court West Urban Renewal Company; 2) 30 River Court West Urban Renewal Company; 3) H.P. Lincoln Urban Renewal Company to implement a settlement and amend the tax exemption under the 2003 Long Term Tax Exemption but only as to the definition of net profit	Withdrawn 11-24-2015
15-172	12-16-2015	Amending the Historic Downtown Special Improvement District to include additional properties on Newark Avenue, Second Street, Third Street, Coles Street, Erie Street, Grove Street, Mercer Street, Montgomery Street and Marin Boulevard	69-20, 69-21, 69-23.A, 69-30.B, 69-33, 69-35
15-173	01-04-2016	Authorizing an amendment to the tax exemptions of 1) 20 River Court West Urban Renewal Company; 2) 30 River Court West Urban Renewal Company; and 3) H.P. Lincoln Urban Renewal Company to implement a settlement and amend the tax exemption under the 2003 Long Term Tax Exemption but only as to the definition of net profit	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
15-174	01-04-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 13003 Lot 1 Qualifier C 3.90 commonly known by the street address of 90 Columbus Drive	Ch. A352
15-175	01-13-2016	Amending the Charter of the City of Jersey City to change the date of the regular municipal election from the second Tuesday in May to the date of the general election in November, subject to the approval of the ordinance by the voters to amend the City Charter by a binding referendum	NCM
15-176	01-13-2016	Amending Chapter 263, Article II, Hours of Retail Businesses, to include Rose Avenue between Cator Avenue and Danforth Avenue as a location where retail establishments shall be closed during specified hours	263-4.A
15-177		Amending and supplementing Chapter 332, Article VI, Parking Facilities Operated by Division of Parking Enforcement, of the Jersey City Municipal Code. (Booting)	Expired on Tabled Agenda 12-31-2017
15-178		Ordinance approving 1) A tax exemption for Ocean Towers Preservation, LLC; pursuant to the NJ Housing and Mortgage Finance Agency Law N.J.S.A. 55:14K-1 et seq.; 2) Termination of the existing tax exemption with Ocean Towers Associates, LP/Mt. Carmel Guild pursuant to the Limited Dividend Law N.J.S.A. 55:16-1 et seq., for 425 Ocean Avenue	Withdrawn 12-16-2015
15-179	01-13-2016	Granting permission to One Edward Hart Road, LLC, its successors and/or assigns, to make private improvements in the public right-of-way of One Edward Hart Road, Jersey City, New Jersey, also known on the tax map of the City of Jersey City as Block 24304, Lot 6	Ch. A352
15-180	01-13-2016	Authorizing the City of Jersey City to enter into a lease with Dwight Street Block Association for the use of Block 24101, Lot 2, more commonly known as 75 Bayview Avenue, for a community garden	Ch. A352
15-181	01-13-2016	Authorizing the City of Jersey City to enter into a lease with Jersey City Community Gardening Inc. for the use of Block 389, Lots 19 and 20, more commonly known as 174-176 Brunswick Street, for a community garden	Ch. A352
15-182	01-13-2016	Adopting amendments to the TOD-N Zone of the Morris Canal redevelopment plan	Ch. A352
15-183	01-13-2016	Adopting amendments to the zoning map of the Morris Canal Redevelopment Plan	Ch. A352
15-184		An ordinance approving a 15-year tax exemption for a mixed-use market-rate condominium Project to be constructed by Ninth Street Two Urban Renewal, LLC an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Withdrawn 12-16-2015. See Ord. 16-021.
15-185	01-13-2016	Amending Chapter 3, Article IV, Department of Administration, abolishing the Division of Architecture, Engineering, Traffic and Transportation and creating the Division of Architecture and the Division of Engineering, Traffic and Transportation	3-42, 3-46 Added 3-45
15-186	01-13-2016	Authorizing the City of Jersey City to file an offer of financial assistance [OFA] to acquire certain property collectively known as the Sixth Street Embankment from Conrail, and such other Conrail properties as are necessary to connect with the main line in the vicinity of CP Waldo	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
15-187	01-13-2016	Adopting the Ocean Avenue South Redevelopment Plan	Ch. A352
16-001	01-27-2016	Supplementing Chapter 332, Article III, amending Section 332-22, Parking prohibited at all times, repealing no parking any time on the south side of Bay Street beginning 130 feet west of Provost Street to Marin Boulevard	332-22
16-002	01-27-2016	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, extending the no parking any time on the south side of Clifton Place beginning at Summit Avenue from 208 feet east to 281 feet east	332-22
16-003	01-27-2016	Supplementing Chapter 332, Article II, Section 332-7, Prohibited turns at intersections, prohibiting the left turn for vehicles exiting east from Dunkin Donuts to north on M.L. King Drive, daily	332-7
16-004	01-27-2016	Amending Chapter 332, Article III, Section 332-23, No stopping or standing, designating the north side of Montgomery Street between Jordan Avenue and Tuers Avenue as no stopping or standing	332-23
16-005	01-27-2016	Supplementing Chapter 332, Article II, Section 332-7, Prohibited turns at intersections, prohibiting the left turn for vehicles north on Romaine Avenue to west on Broadway, school days, 7:30 a.m. to 9:00 a.m. and 2:00 p.m. to 4:00 p.m.	332-7
16-006	01-27-2016	Amending Chapter 332, Article III, Parking, Standing and Stopping, and Article IX, Parking for the Disabled, designating a reserved parking space(s) at 117 Atlantic Street; 389 Baldwin Avenue; 398 Baldwin Avenue; 38 Bartholdi Avenue; 142 Beacon Avenue; 80 Belmont Avenue; 175 Bidwell Avenue; 274 Claremont Avenue; 43 Clarke Avenue; 46 Clarke Avenue; 80 Coles Street; 165 Congress Street; 34 Eastern Parkway; 353 Eighth Street; 79 Erie Street; 305 Fairmount avenue; 19 Fairmount Terrace; 375 Fourth Street; 195 Hutton Street; 22 Irving Street; 119 Irving Street; 34 Lexington Avenue; 239-241 Lexington Avenue; 8 Manhattan Avenue; 399 New York Avenue; 254 Ninth Street; 120 Ogden Avenue; 237 Pacific Avenue; 12 Pamrapo Avenue; 238 Pearsall Avenue; 242 Pine Street; 149 Randolph Avenue; 23 Reed Street; 65 Reservoir Avenue; 219 St. Paul's Avenue; 84 Sea View Avenue; 2791/2 Second Street; 87 Sherman Avenue; 285 Sherman Avenue; 14-16 Skyline Drive; 159 South Street; 45 Stegman Street; 141 Stevens Avenue; 1191 Summit Avenue; 23 Terhune Avenue; 213 Terrace Avenue; 99 Thome Street; 78 Union Street; 28 Wallis Avenue and 291 Woodlawn Avenue; and repeal the reserved parking space at 110-112-114 Atlantic Street; 192 Clinton Avenue; 359 Eighth Street; 63 Reservoir Avenue and 66 Seidler Street	332-29 332-69
16-007	01-27-2016	Amending Chapter 332, Article VII, Metered Parking	332-48, 332-52.G
16-008	01-27-2016	Adopting amendments to the Land Development Ordinance, R-3 Multi-Family Mid-Rise District	345-42-E.Le.)
16-009	01-27-2016	Amending Ordinance 15-111 accepting the dedication of certain roadways, sidewalks, utilities, and a park located within the Liberty Harbor North Redevelopment Area	Ch. A352
16-010	01-27-2016	Authorizing the transfer of City-owned property within the Morris Canal Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-011	01-27-2016	Approving a 20-year tax exemption for a market rate mixed-use rental project to be constructed by 305 West Side Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
16-012		Amending and supplementing Chapter 332, Article VI, Parking Facilities Operated by Division of Parking Enforcement, of the Jersey City Municipal Code (Booting)	Expired on Tabled Agenda 12-31-2017
16-013	02-10-2016	Authorizing the execution of a rights-of-way use agreement between the City of Jersey City and New York SMSA Limited Partnership, d/b/a Verizon Wireless, to permit the installation of antennas and related communications equipment on existing utility poles and if necessary to install utility poles within certain public rights-of-way for purposes of providing telecommunication services	Ch. A352
16-014	02-10-2016	Adopting amendments to the Journal Square 2060 Redevelopment Plan creating a new Zone 12 and bonus incentives for office space	Ch. A352
16-015		Adopting amendments to the Water Street Redevelopment Plan to incentivize affordable housing	Defeated 02-10-2016
16-016	02-10-2016	Authorizing the City of Jersey City to lease City-owned property known as Block 28201, Lots 10 and 12 through 16 also known as Ralph Taylor Memorial Park to the Jersey City Public School District	Ch. A352
16-017	02-10-2016	Authorizing the conveyance of Block 25101, Lot 51, more commonly known by the street address of 152 Martin Luther King Drive, to the Jersey City Redevelopment Agency	Ch. A352
16-018	02-10-2016	Refunding bond ordinance of the City of Jersey City, in the County of Hudson, State of New Jersey (the "City") providing for (i) the refunding of certain outstanding qualified general improvement bonds, Series 2009 and qualified general improvement bonds (parking authority project), Series 2009A of the City dated February 10, 2009 and December 30, 2009, respectively, to provide debt service savings, and (ii) authorizing the issuance of not to exceed $32,000,000 aggregate principal amount of general improvement refunding bonds of the City to effect such refunding and appropriating the proceeds therefor	Ch. A352
16-019	02-10-2016	Amending Chapter 332, Article II, Section 332-24, Parking prohibited certain hours, extending the no parking school days 100 feet south to the end of the gate at the Golden Door Charter School	332-24
16-020	02-10-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 6301, Lot 1, on the city's tax map and more commonly known by the street address of 271 Van Wagenen	Ch. A352
16-021	08-17-2016	Approving a 15-year tax exemption for a mixed use market-rate condominium project to be constructed by Ninth Street Two Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
16-022	02-10-2016	Approving a 20-year tax exemption for a mixed-use, market-rate, residential project to be constructed by Pacific 312 Group Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-023		Approving a 30-year tax exemption for a mixed-used market-rate, residential project to be constructed by Vaishno Ma Summit Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Withdrawn 01-27-2016
16-024	02-10-2016	Franchise ordinance of the City Council of the City of Jersey City granting permission to PS First Hudson Urban Renewal, LLC, its successors and assigns, to make improvements in the First Street, Second Street, Provost Street and Warren Street rights-of-way adjacent to the property located at 133 Second Street and designated as Block 11503, Lot 1 on the tax map of the City of Jersey City, New Jersey	Ch. A352
16-025	02-24-2016	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	Ch. A352
16-026	02-24-16	Amending and supplementing Chapter 3, Articles III and VI to create an Office of Diversity and Inclusion	3-19.1, 3-19.2 Added 3-19.2.1, 3-54—3-54.2
16-027		Amending Chapter 222, Noise, repealing Article 1, Noise Restrictions, and adopting revisions to local noise-control regulations recommended by the New Jersey Department of Environmental Protection	Expired on Tabled Agenda 12-31-2017
16-028	02-24-2016	Adopting amendments to the Land Development Ordinance, Section 345-31, Applications and checklists, to add digital submission requirements	345-3 l.D—G
16-029		Adopting amendments to the Land Development Ordinance, Section 345-70, Off-street parking and loading and bicycle parking, to prohibit automobiles blocking the sidewalk or extending into the right-of-way, and establish penalty fees for such offenses	Withdrawn 02-10-2016
16-030	02-24-2016	Supplementing Chapter 332, Article II, Section 332-9, Stop Intersections, designating both Monmouth Street and Sixth Street and Webster Avenue and North Street as a multi-way stop intersection	332-9
16-031	02-24-2016	Adopting amendments to the Water Street Redevelopment Plan to incentivize affordable housing	Ch. A352
16-032	02-24-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-9 of the Municipal Code for property designated as Block 10803, Lot 29.01, more commonly known by the street address of 211 Baldwin Avenue	Ch. A352
16-033	02-24-2016	Approving a 30-year tax exemption for a mixed-use, market-rate, residential project to be constructed by 720-726 Bergen Avenue Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
16-034	02-24-2016	Consenting to the sale and assignment of the tax exemption and financial agreement from RT 70 Hudson Urban Renewal, LLC to 70 Hudson Waterfront Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	Ch. A352
16-035	02-24-2016	Consenting to the sale and assignment of the tax exemption and financial agreement from RT 90 Hudson Urban Renewal, LLC to 90 Hudson Waterfront Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-036	02-24-2016	Authorizing the City of Jersey City to enter into a lease with Jackson Hill Main Street Management Corporation for the use of Block 1931, Lots 22 and 25, more commonly known as 91-93 Harrison Avenue, for a community garden	Ch. A352
16-037	02-24-2016	Amending Chapter 332, Article VII, Section 332-58, Parking restrictions in residential zones, extending Zone 3 residential permit parking to include Sussex Street from Van Vorst Street west to the dead end	332-58
16-038	02-24-2016	Amending Chapter 332, Article III, Section 332-31, Parking Restrictions for Street Cleaning Purposes, designating parking restrictions for street cleaning purposes on Sussex Street from Van Vorst, west to the dead end	332-31
16-039		Supplementing Chapter 332, Article XIII, Parking, Standing and Stopping) Section 332-31 (Parking Restrictions for Street Cleaning Purposes, designating parking restrictions for street cleaning purposes on Pearl Street from Washington Street to Greene Street	Withdrawn 02-24-2016
16-040		Amending Chapter 332, Article VII, Section 332-57, On-Street Permit Parking Zones, designating both sides on Pearl Street from Washington Street to Greene Street as on-street permit parking, Monday through Friday, 7:00 a.m. to 7:00 p.m.	Withdrawn 02-24-2016
16-041	03-09-2016	Supplementing Chapter 99, Barbershops and Beauty Parlors, adding Article III, Massage, Bodywork and Somatic Therapy Establishments	Added 99-20—99-29
16-042	03-09-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 18704, Lot 16 commonly known by the Street Address of 747 Grand Street	Ch. A352
16-043	03-09-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 18901, Lot 19.01 commonly known by the street address of 7 Berry Road	Ch. A352
16-044		Amending and supplementing Chapter 332, Article VIII, Permit Parking. Extends prohibited parking in residential zones in excess of three hours in Zones 2, 4, 6 and 7 from 8:00 a.m. and 11:00 p.m.	Defeated 03-09-2016
16-045	03-23-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 1505 Lot 55 commonly known by the street address of 54 Graham Street	Ch. A352
16-046	03-23-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 6701 Lot 24 commonly known by the street address of 628 Summit Avenue	Ch. A352
16-047	04-13-2016	Vacating a portion of Marcy Avenue, Jersey City, New Jersey	Ch. A352
16-048	03-23-2016	Adopting an amendment to the zoning map expanding the Restaurant Overlay Zone	Ch. A352
16-049		Adopting amendments to the Land Development Ordinance to prohibit automobiles from blocking the sidewalk or extending into the right-of-way.	Defeated 03-09-2016
16-050	03-23-2016	Adopting amendments to the Morris Canal Redevelopment Plan to create an affordable housing provision in the TOD-W Zone	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-051	04-13-2016	Authorizing the City of Jersey City to renew its lease with 199-201 Summit Avenue, LLC for the City of Jersey City's rental of office space at 199-205 Summit Avenue, Jersey City for two additional years	Ch. A352
16-052	04-13-2016	Exercising the City's option to extend the term of the lease with Evangelismos Greek Orthodox Church for the use of 29 parking spaces located at Block 15103, Lot 1, more commonly known as 651 Montgomery Street, for one year	Ch. A352
16-053		Exercising the City's option to extend the term of the lease with E.A. Tolentino & H. Clay Irving III for the use of 57 parking spaces located at Block 15202, Lot 31, more commonly known as 157-161 Summit Avenue, for one year	Defeated 04-13-2016
16-054	04-13-2016	Authorizing the City of Jersey City to execute a lease agreement with Harwood Corporation for 20 Parking Spaces located at 808 Pavonia Avenue	Ch. A352
16-055	04-13-2016	Authorizing the execution of a Deed of Easement with 110 First Street Urban Renewal Associates, LLC and the "A" Condominium Association, Inc. affecting Block 11603, Lot 41 a/k/a the First Street Park	Ch. A352
16-056	04-13-2016	1) Authorizing the conveyance of Block 25101, Lot 51, more commonly known by the street address of 152 Martin Luther King Drive, to the Jersey City Redevelopment Agency; and 2) rescinding Ordinance 16-017	Ch. A352
16-057	04-13-2016	Amending Chapter 242, Article VI (roller skates, in-line skates, skateboards and bicycles) of the Municipal Code to establish regulations for the use of publicly-owned bicycle parking racks	242-9.1
16-058	04-13-2016	Supplementing Chapter A3 51, Executive Orders and Ordinances to create a new classified position for labor relations assistant	Ch. A351
16-059	04-13-2016	Amending and supplementing Chapter 3, Article VI, Department of Administration, and Article IX, Department of Public Works	3-42, 3-46, 3-49, 3-51, 3-66, 3-67 Rnbd 3-69—3-71.3 as 3-68—3-70.2
16-060	05-11-2016	Providing Maple Street from Pacific Avenue east to Whiton Street with the commemorative designation "Kool & the Gang Way"	Ch. A352
16-061		Amending Chapter 17, City Property, Sale of, implementing regulations on the use of City Hall Council Chambers, Caucus Room, Rotunda Areas and any other designated meeting space and Chapter 160, Fees and Charges	Withdrawn 04-13-2016
16-062	04-27-2016	Franchise ordinance granting permission to 75 Jersey City, LLC, its successors and assigns, to make private improvements to a portion of lands within the sidewalk area of the Montgomery Street public right-of-way located adjacent to 75 Montgomery Street, Jersey City, New Jersey	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-063	04-27-2016	Supplementing Chapter 332, Article II, Section 332-5, One-way streets, designating Grove Street one way south, Sussex Street to Morris Boulevard; Morris Boulevard, north of LRT station median, one way west, Marin Boulevard to St. Peter's Street and one way east, Grove Street to St. Peter's Street; St. Peter's Street one way north, Morris Boulevard to Sussex Street and Sussex Street one way east, St. Peter's Street clockwise to St. Peter's Street and one way west, St. Peter's Street to Grove Street; Section 332-9, Stop intersections, designating Marin Boulevard and Sussex Street as a stop intersection, stopping Sussex Street; and supplementing Article III, Section 332-22, Parking prohibited at all times, designating no parking any time on Grove Street, west side, Sussex Street to Morris Boulevard; Morris Boulevard, the westbound median curb, Marin Boulevard to St. Peter's Street; St. Peter's Street, west side, Morris Boulevard to Sussex Street; and Sussex Street, north side, St. Peter's Street to Grove Street; Section 332-24, Parking prohibited certain hours, designating no parking on Morris Boulevard, north side; 35 feet west of Marin Boulevard to 88 feet west, Monday through Friday, 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m. and beginning 88 feet west of Marin Boulevard to 25 feet west, Monday through Friday, 7:00 a.m. to 6:00 p.m. and Section 332-31, Parking restrictions for street cleaning purposes, prohibiting parking for street cleaning purposes on the east side of Grove Street, Morris Boulevard to Sussex Street, Monday and Thursday, 10:00 a.m. to noon; the north side of Morris Boulevard, Marin Boulevard to Grove Street, Monday and Thursday, 10:00 a.m. to noon; the east side of St. Peter's Street, Morris Boulevard to Sussex Street, Monday and Thursday 10:00 a.m. to noon and on the north side of Sussex Street, St. Peter's Street to Marin Boulevard, Monday and Thursday, 10:00 a.m. to noon and on the south side, from Marin Boulevard to Grove Street, Tuesday and Friday, 10:00 a.m. to noon; Article VII, Section 332-48, Designation of parking spaces, designating on-street parking meter zones on Sussex Street, south side, beginning 51 feet west of Marin Boulevard to 60 feet west and on the north side, beginning 56 feet west of Marin Boulevard to 60 feet west; and Article VIII, Section 332-58, Parking restrictions in residential zones, creating Zone 15 for the streets in Liberty Harbor North, Grove Street, Morris Boulevard to Sussex Street; Marin Boulevard, southern terminus to Grand Street; Morris Boulevard, Marin Boulevard to Grove Street; St. Peter's Street, Morris Boulevard to Sussex Street and Sussex Street, Marin Boulevard to Grove Street, Monday through Friday, with a three-hour limit between the hours of 8:00 a.m. to 11:00 p.m. and repealing Marin Boulevard from the southern terminus to Grand Street from Zone 1 and inserting it into Zone 15	332-5, 332-9, 332-22, 332-24, 332-31, 332-48, 332-58
16-064	04-27-2016	Authorizing the City of Jersey City to renew the lease with Riverview Neighborhood Association for the use of Block 5202, Lots 26 and 27, for a community garden	Ch. A352
16-065	04-27-2016	Authorizing the City of Jersey City to renew the lease with Riverview Community Garden for the use of Block 3002, Lot 2, more commonly known as 285 Ogden Avenue, for a Community Garden	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-066	04-27-2016	Reappropriating $2,054,353.47 of proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City of Jersey City, in the County of Hudson, New Jersey	Ch. A352
16-067	04-27-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-9 of the Municipal Code for property designated as Block 9202, Lot 6, commonly known by the street address of 25 Fayette Avenue	Ch. A352
16-068	04-27-2016	Amending Chapter 160, Fees and Charges, to increase the annual license fees for plenary retail consumption licenses and plenary retail distribution licenses	160-LC
16-069	05-11-2016	Adopting amendments to Chapter 105, Building Demolition, to codify Phase 2 properties list	105-1.B(2)
16-070	05-11-2016*	Amending Chapter 222, repealing Article I, Noise Restrictions, and adopting revisions to local noise-control protections recommended by the New Jersey Department of Environmental Protection	♦Denied by NJDEP 06-27-2016
16-071	05-11-2016	Adopting amendments to the Land Development Ordinance, R-3 Multi-Family Mid-Rise District, Townhouse Use	345-42.B.2
16-072	05-11-2016	Adopting amendments to the Liberty Harbor North Redevelopment Plan to amend the regulating standards relating to Block 10 of the Redevelopment Plan	Ch. A352
16-073	05-11-2016	Accepting from Unity Environmental Corp, a dedication of certain roadways, sidewalks and utilities located at the intersection of Franklin Street and Paterson Plank Road	Ch. A352
16-074	05-11-2016	Authorizing the imposition of an environmental deed notice on Block 28201, Lots 10 and 12 through 16 also known as Ralph Taylor Memorial Park	Ch. A352
16-075	05-11-2016	Authorizing the City of Jersey City to execute a month-to-month lease not to exceed six months effective as of April 1,2016 with 3000 Kennedy Blvd, LLC for the use of 25 parking spaces at 3000 Kennedy Boulevard, Jersey City	Ch. A352
16-076	05-11-2016	Authorizing the City of Jersey City to execute an amendment to a lease agreement with 30 M Acquisitions, LLC for approximately 33,650 square feet of space at 30 Montgomery Street, Block 8, Lot C2	Ch. A352
16-077	05-11-2016	Granting permission to 58 Giles, LLC, its successors and/or assigns, to make private improvements in the public right-of-way of 940 Pavonia Avenue, [a/k/a 58 Giles Avenue) Jersey City, New Jersey, also known on the tax map of the City of Jersey City as Block 10404, Lot 29	Ch. A352
16-078	05-11-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-12 of the Municipal Code for property designated as Block 9202, Lot 8, on the City's tax map and more commonly known by the street address of 113 Wales Avenue	Ch. A352
16-079	05-11-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 9202, Lot 7, on the city's tax map and more commonly known by the street address of 115 Wales Avenue	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-080	05-11-2016	Approving a 25-year tax exemption for a market rate rental project to be constructed by Journal Square Lofts Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located at 2853 Kennedy Boulevard in Jersey City	Ch. A352
16-081		Amending and supplementing Chapter 254, Property Maintenance, implementing Article XXII, Building Service Employees, to establish a minimum number of hours in a work week for building service employees	Expired on Tabled Agenda 12-31-2017
16-082		Amending and supplementing Chapter 3, Article VI, Department of Administration, to mandate a transition period for all building services employees	Expired on Tabled Agenda 12-31-2017
16-083	05-25-2016	Providing for various capital improvements for the City of Jersey City and appropriating $29,858,755, therefor, and providing for the issuance of $28,436,905 in general improvement bonds or notes of the City of Jersey City to finance the same	Ch. A352
16-084	05-25-2016	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating the intersections of Erie Street and Seventh Street; McAdoo Avenue and Fowler Avenue and New York Avenue and Franklin Street as a multi-way stop intersection	332-9
16-085	05-25-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 11302, Lot 30, on the City's tax map and more commonly known by the street address of 212 Third Street	Ch. A352
16-086	05-25-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-12 of the Municipal Code for property designated as Block 9401, Lot 24, on the City's tax map and more commonly known by the street address of 134 Cottage Street	Ch. A352
16-087	05-25-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 7903, lot 52, on the City's tax map and more commonly known by the street address of 60 Van Reipen Avenue	Ch. A352
16-088	05-25-2016	Approving a ten-year tax exemption for a mixed-use market rate condominium project to be constructed by 380 Newark Realty Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., for the property designated as Block 9806, Lot 8, on the City's tax map and more commonly known by the street address of 380 Newark Avenue	Ch. A352
16-089	05-25-2016	Adopting an amendment to the zoning map expanding the Restaurant Overlay Zone	Ch. A352
16-090	05-25-2016	Adopting amendments to the Morris Canal Redevelopment Plan in the TOD-W Zone for Blocks 15802 and 19003	Ch. A352
16-091	06-15-2016	Authorizing the City of Jersey City to enter into a lease with Jersey Citywide Debutante and Cotillion Association for the use of Block 1409, Lot P, more commonly known as 81 Garfield Avenue, for a community garden	Ch. A352
16-092	06-15-2016	Amending Chapter 69, Article II, Central Avenue Special Improvement District	69-17.D 69-19.B, E
16-093	06-15-2016	Amending the Scatter Site Redevelopment Plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-094	06-15-2016	Adopting amendments to the Morris Canal Redevelopment Plan to provide standards for the R-2 Zone and specify required community benefits	Ch. A352
16-095	06-15-2016	Adopting amendments to the Ninth & Brunswick Redevelopment Plan to expand permitted uses	Ch. A352
16-096	06-15-2016	Adopting Amendments to the Land Development Ordinance for Chapter 345, Article V, Section 345-40, R-1 One and Two Family Housing District and Section 345-60, Supplementary zoning regulations	345-40.E 345-60. V.5
16-097	06-15-2016	Adopting amendments to the Journal Square 2060 Redevelopment Plan concerning parcels previously declared in need of redevelopment	Ch. A352
16-098	06-15-2016	Authorizing a seventh amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to amend the term	Ch. A352
16-099	06-15-2016	Authorizing the City to convey all City-owned lots within the property known as Berry Lane Park to the Jersey City Redevelopment Agency subject to the eventual reversion of the property for dedication as a City Park	Ch. A352
16-100	06-29-2016	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create a new classified position for supervising program analyst	Ch. A351
16-101	06-29-2016	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create a new classified position for senior landscape architect	Ch. A351
16-102	06-29-2016	Amending Chapter 3, Article XI, Sub-article I, Division of Police, to establish a private outdoor surveillance camera registry	Added 3-87.1
16-103	06-29-2016	Amending Chapter 84, Article 1, Plenary Retail consumption and Distribution Licenses, and Chapter 160, Fees and Charges, to add an initial liquor license fee for hotels or motels containing 100 guest sleeping rooms	84-6.1 160-l.C
16-104	07-13-2016	Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by HC West Campus Urban Renewal 1, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
16-105	07-13-2016	Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by HC West Campus Urban Renewal II, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
16-106	07-13-2016	Bond ordinance of the City providing aid to the West Campus Redevelopment Project located in the City and appropriating $16,000,000 therefor, and providing for the issuance of $16,000,000 in bonds or notes of the City to finance part of the cost thereof	Ch. A352
16-107	07-13-2016	Approving an amendment to the Journal Square Lofts Urban Renewal, LLC, financial agreement dated May 11, 2016, to correct the unit number and property address	Ch. A352
16-108	07-13-2016	Adopting amendments to the Land Development Ordinance, Section 345-31 .H, Historic district checklist, to add digital submission requirements	345-3 l.H

Ordinance Number	Date of Adoption	Description	Disposition
16-109	08-17-2016	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, designating 240 feet on the north side of Laidlaw Avenue west of Summit avenue; 315 feet on the south side of Laidlaw Avenue west of Summit Avenue; 60 feet on the west side of Summit Avenue north of Laidlaw Avenue and 125 feet on the west side of Summit Avenue north of Jefferson Avenue as no parking any time	332-22
16-110	07-13-2016	Adopting amendments to the Village Redevelopment Plan to permit apartment buildings on Block 12701, Lots 8, 9,10 and 12	Ch. A352
16-111		Amending and supplementing Chapter 3, Article VI, Department of Administration, to amend the Contractor Pay to Play Reform Law	Withdrawn 07-13-2016
16-112		Amending and supplementing Chapter 3, Article VI, Department of Administration, to amend the Redevelopment Pay to Play Reform Law	Withdrawn 07-13-2016
16-113		Submitting to the voters for their approval or disapproval in a binding referendum, two ordinances mandating Pay To Play Reform: 1) For Redevelopers and 2) For Contractors	Withdrawn 07-13-2016
16-114	08-17-2016	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create a new classified position for youth opportunity coordinator	Ch. A351
16-115	08-17-2016	Amending the tax exemption and financial agreement for Bramhall Urban Renewal L.P., an urban renewal company, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., to allow the deduction of utilities from annual gross revenue	Ch. A352
16-116	08-17-2016	Approving a 25-year tax exemption for a mixed-use, market-rate residential project to be constructed by Vaishno MA Summit Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
16-117	08-17-2016	Approving a 25-year tax exemption for a market rate residential project to be constructed by Bergen Academy Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
16-118		Amending and supplementing Chapter 160, Section 160-1, Fee schedule established	Defeated 09-14-2016
16-119	09-14-2016	Supplementing Chapter 332, Article III, Parking, Standing and Stopping, and Article IX, Parking for the Disabled, designating a reserved parking space(s) at 159 Arlington Av; 165-167 Arlington Av; 206 Armstrong Av; 74 Atlantic Av; 195 Bay St; 66 Belmont Av; 136 Clarke Av; 101 Clifton Pl; 236 Congress St; 22 Culver Av; 145A Dwight St; 235 Fifth St; 57-59 Fleet St; 257-259 Fourth St; 333 Fulton Av; 50 Glenwood Av; 428 Grove St; 474-1 Halladay St; 103 Highland Av; 13 Jewett Av; 19 Kensington Av; 55-57 Liberty Av; 243-245 Liberty Av; 396 Manila Av; 347 Ninth St; 192 North St; 324 Old Bergen Rd; HOA Orient Av; 279 Pacific Av; 454 Palisade Av; 100 Pearsall Av; 22 Poplar St; 100 Romaine Av; 55-57 Roosevelt Av; 318 St. Paul's Av; 253 Seaview Av; 272 Second St; 74 Storms Av; 326 Summit Av; 1045 Summit Av; 131 Terrace Av; 34 Trenton St; 24 Troy St; 414 Union St; 362 Van Nostrand Av; 277 Virginia Av; 11 Wegman Ct; 129 Winfield Av; 63 Wright Av and 13 Yale Av and amend the reserved parking space at 6-8-10 Bergen Av and repeal the reserved parking space at 389 Baldwin Av; 224 Claremont Av and 71 Clarke Av	332-29, 332-69

Ordinance Number	Date of Adoption	Description	Disposition
16-120	09-14-2016	Supplementing Chapter 332, Article II, Traffic Regulations, of the Jersey City Traffic Code amending Section 332-4, Speed limits, repealing the 30 mph speed limit on Garfield Avenue from West 55th Street to Cator Avenue and from Eastern Parkway to Grand Street and the 35 mph speed limit from Cator Avenue to Eastern Parkway and designating a 25 mph speed limit on the entire length of Garfield Avenue	332-4
16-121	09-14-2016	Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 54 feet as no parking beginning 5:00 p.m. Monday through 9:00 a.m. Tuesday and 5:00 p.m. Thursday through 9:00 a.m. Friday on the south side of Second Street between the driveways to Portofino and Candlewood Suites	332-24
16-122		Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 50 feet as no parking on the east side of Summit St beginning 318 feet south of Sip Avenue, daily, 5:00 a.m. to 8:00 p.m.	Withdrawn 08-17-2016
16-123	09-14-2016	Supplementing Chapter 332, Article XIII, Section 332-31, Parking restrictions for street cleaning purposes, designating parking restrictions for street cleaning purposes on Skyline Drive; Vreeland Terrace and Wegman Court dead end streets east of Garfield Avenue	332-31
16-124	09-14-2016	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create a new classified position for audio visual supervisor	Ch. A351
16-125	09-14-2016	Adopting amendments to the bates street redevelopment plan	Ch. A352
16-126	09-14-2016	Adopting the Jackson Hill Redevelopment Plan	Ch. A352
16-127	09-14-2016	Adopting amendments to the Lafayette Park Redevelopment Plan	Ch. A352
16-128	09-14-2016	Adopting amendments to the Montgomery Gateway Redevelopment Plan	Ch. A352
16-129	09-14-2016	Refunding bond ordinance of the City, providing for the refunding of all or a portion of the City's qualified water refunding bonds, Series 2007B, appropriating an amount not exceeding $4,500,000 therefor and authorizing the issuance of not to exceed $4,500,000 water refunding bonds of the City for financing the cost thereof	Ch. A352
16-130	09-14-2016	Providing for a special emergency appropriation of $5,000,000 for the preparation and execution of a complete program of revaluation of real property for the use of the local assessor of the City	Ch. A352
16-131	09-14-2016	Refunding bond ordinance of the City, providing for the refunding (on a crossover basis) of all or a portion of the City's general improvement bonds (Recovery Zone Economic Development Bonds-Direct Payment), Taxable Series 2010C appropriating an amount not exceeding $8,000,000 therefor and authorizing the issuance of not to exceed $8,000,000 general improvement refunding bonds of the City for financing the cost thereof	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-132	09-14-2016	Refunding bond ordinance of the City, providing for the refunding of all or a portion of the City's qualified general improvement refunding bonds, Series 2007A, appropriating an amount not exceeding $19,500,000 therefor and authorizing the issuance of not to exceed $19,500,000 general improvement refunding bonds of the City for financing the cost thereof	Ch. A352
16-133	09-14-2016	Refunding bond ordinance of the City, providing for the refunding (on a crossover basis) of all or a portion of the City's general improvement bonds (Build America Bonds-Direct Payment), Taxable Series 2010B appropriating an amount not exceeding $82,000,000 therefor and authorizing the issuance of not to exceed $82,000,000 general improvement refunding bonds of the City for financing the cost thereof	Ch. A352
16-134	09-14-2016	Authorizing the City to execute a month-to-month lease effective October 1, 2016 with 3000 Kennedy Blvd. LLC for the use of 25 parking spaces at 3000 Kennedy Boulevard, Jersey City	Ch. A352
16-135	09-14-2016	Authorizing an amended settlement agreement with Community Builders, Inc., for a termination of the lease and release of the City's option to purchase a portion of property located at 654 Bergen Avenue	Ch. A352
16-136	09-14-2016	Authorizing the execution of a developer's agreement and the transfer of 90 Virginia Avenue pursuant to N.J.S.A. 40 A: 12-21 (1) to Garden State Episcopal Community Development Corporation, a nonprofit housing corporation	Ch. A352
16-137	09-14-2016	Approving a 20-year tax exemption for a market rate residential rental project to be constructed by Ash Urban Renewal Development, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq. for the property designated as Block 17502, Lots 1—12 on the City's tax map and more commonly known by the street addresses of 2—16 Ash Street and 442—446 Whiton Street	Ch. A352
16-138	09-14-2016	Amending Chapter 90, Article IV, Exotic, Non-Game, and Potentially Dangerous Wildlife, prohibiting performances of any exotic animal on any public or private property within the City	Added 90-24 90-28
16-139	09-28-2016	Amending and supplementing Chapter 160, Section 160-1, Fee schedule established	160-1
16-140	09-28-2016	Amending and supplementing Chapter 160, Section 160-1, Fee schedule established	160-1.A
16-141	09-28-2016	Supplementing Chapter 332, Article II, Section 332-9, Stop Intersections, of the Jersey City Traffic Code designating Montrose Avenue and Carlton Avenue as a stop intersection	332-9
16-142	09-28-2016	Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating the two recessed parking areas on the south side of New Street west of Ocean Avenue (side of the new PS# 20) as no parking school days, 8:00 a.m. to 6:00 p.m.	332-24
16-143	09-28-2016	Supplementing Chapter 332, Article II, Section 332-9, Stop Intersections, designating Beach Street and Sanford Place as a stop intersection and amending Section 332-10, Yield Intersections, repealing Beach Street and Sanford Place as a yield intersection	332-9, 332-10
16-144		Amending and supplementing Chapter 332, Article VII, Metered Parking	Withdrawn 09-14-2016

Ordinance Number	Date of Adoption	Description	Disposition
16-145	09-28-2016	Approving a 25-year tax exemption for a market rate mixed use rental project to be constructed by 190 Academy Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
16-146		Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by KKF Block 1 Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Withdrawn 09-14-2016
16-147		Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by KKF Block 5B Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Withdrawn 09-14-2016
16-148	09-28-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 4701, Lots 36, 37, 38 and 39, on the City's tax map and more commonly known by the street address of 3224—3230 Kennedy Blvd.	Ch. A352
16-149	10-12-2016	Supplementing Chapter 332, Article XIII, Section 332-31, Parking restrictions for street cleaning purposes, amending the parking restrictions for street cleaning purposes on Wegman Court, Garfield Avenue to the dead end	332-31
16-150	10-12-2016	Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 60 feet on the north side of Linden Avenue, beginning 143 feet west of Ocean Avenue, as no parking, Thursday, 8:00 a.m. to noon	332-24
16-151	10-12-2016	Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 70 feet on the south side of Seventh Street, beginning 205 feet east of Division Street, as no parking, Monday through Friday, 7:30 a.m. to 9:00 a.m. and 3:30 p.m. to 5:30 p.m.	332-24
16-152	10-12-2016	Authorizing the City to enter into a lease agreement with the Jersey City Employment and Training Program (JCETP), a New Jersey not-for-profit, pursuant to N.J.S.A. 40:12-14(c)	Ch. A352
16-153	11-09-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 10901, Lot 106, on the City's tax map and more commonly known by the street address of 461—469 Newark Avenue	Ch. A352
16-154	10-12-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 6304, Lot 21, on the City's tax map and more commonly known by the street address of 276 St. Pauls Avenue	Ch. A352
16-155	10-12-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 10801, Lot 8.01, on the City's tax map and more commonly known by the street address of 65 Newkirk Avenue	Ch. A352
16-156	10-12-2016	Amending the Paulus Hook Redevelopment Plan to remove Tax Block 13102 and to create the Block 13102 Redevelopment Plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-157	10-26-2016	Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 46 feet in front of 509 Bramhall Avenue as no parking 7:30 a.m. to 8:30 a.m. and 3:30 p.m. and 5:30 p.m., school days	332-24
16-158	10-26-2016	Authorizing the transfer of City-owned property within the Ocean/Bayview Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
16-159	10-26-2016	Providing for the acquisition of roll off trucks and appropriating $499,632 therefor from the City's Capital Surplus Fund	NCM
16-160		Adopting amendments to the Journal Square 2060 Redevelopment Plan to amend Zone 10, Zone District Map, comer lot bonus map and bonus standards for a fund for public arts	Withdrawn 10-12-2016
16-161	10-26-2016	Amending Chapter 332, Vehicles and Traffic, to rename Park Avenue "Park View Avenue"	Ch. A352
16-162	10-26-2016	Vacating a portion of Pine Street consisting of approximately 5,327 square feet or 0.122 acres being located within the Morris Canal Redevelopment Area of the City	Ch. A352
16-163	10-26-2016	Adopting amendments to the Journal Square 2060 Redevelopment Plan to amend Zone 10	Ch. A352
16-164	10-26-2016	Adopting amendments to the Journal Square 2060 Redevelopment Plan to add a public arts fund bonus	Ch. A352
16-165	10-26-2016	Adopting amendments to the Journal Square 2060 Redevelopment Plan to adjust zone boundaries and corner lot bonuses	Ch. A352
16-166	11-09-2016	Authorizing the transfer of City-owned property within the Journal Square 2060 Redevelopment Area to the Jersey City Redevelopment Agency	Ch. A352
16-167	11-09-2016	Amending Chapter 90, Article III, Dogs, to ban dogs in certain parks	90-12 Added 90-12.1
16-168		Supplementing Chapter 332, Article II, Section 332-5, One-way streets, designating Columbia Avenue as a one-way north from Leonard Street to Zabriskie Street; Liberty Avenue as a one-way south from Hutton Street to Leonard Street and Terrace Avenue as a one-way north from Manhattan Avenue to Leonard Street and amending Section 332-9, Stop intersections, repealing the stop designation for southbound Columbia Avenue at Bleecker Street; at Thome Street; at Zabriskie Street and at North Street; repealing the stop designation for northbound Liberty Avenue at Leonard Street; at Lincoln Street and at North Street; repealing the stop designation for southbound Terrace Avenue at North Street and designating Terrace Avenue and Leonard Street as a stop intersection, stopping Terrace Avenue	Withdrawn 10-26-2016
16-169	11-09-2016	Adopting an amendment to the zoning map expanding the Restaurant Overlay Zone in Ward B	NCM
16-170	11-09-2016	Adopting amendments to the mixed use zones of the Morris Canal Redevelopment Plan	Ch. A352
16-171	11-09-2016	Amending and supplementing Chapter 332, Article I, General Provisions, and Article III, Parking, Standing and Stopping	332-1, 332-30

Ordinance Number	Date of Adoption	Description	Disposition
16-172	11-09-2016	Amending and supplementing Chapter 3, Administration of Government, and Chapter 287, Solid Waste, to: (1) reassign the enforcement of certain solid waste and environmental ordinances from the Jersey City Incinerator Authority to the Department of Public Works; and (2) deleting references where appropriate to the Jersey City Incinerator Authority, Jersey City Sewerage Authority, Jersey City Parking Authority	3-51.D, 3-60.9.B, 3-75.B(3), 287-2, 287-7.D, 287-8.D, 287-11.A, 287-30, 287-31, 287-38, 287-42.A, 287-53.E, 287-57, 332-44
16-173		Authorizing the transfer of city-owned property within the Morris Canal Redevelopment area to the Jersey City Redevelopment Agency (627 Grand Street)	Withdrawn 11-09-2016
16-174	11-22-2016	Adopting amendments to the Ocean Bayview Redevelopment Plan to include adaptive reuse provisions	Ch. A352
16-175	11-22-2016	Amending Ordinance 16.073 accepting from Unity Environmental Corp, a dedication of certain roadways, sidewalks and utilities located at the intersection of Franklin Street and Paterson Plank Road	Ch. A352
16-176	12-14-2016	Implementing Chapter 69, Special improvement districts, Article VI, Exchange Place Special Improvement District, of the Jersey City Municipal Code	Added 69-68—69-72.1 69-73—69-81
16-177	11-22-2016	A franchise ordinance granting permission to COA 99 Hudson, LLC, its successors and assigns, to improve and use approximately six areas of two feet and nine inches in width and ten feet and three inches in length within a portion of the public right-of-way within the 80-foot right-of-way of Greene Street and adjacent to Lot 1, Block 14507, on the official tax assessment map of the City for the installation six structural pile caps, which encroach two feet and nine inches into the public right-of-way along Greene Street	Ch. A352
16-178	11-22-2016	Supplementing Chapter 332, Article XIII, Section 332-31, Parking restrictions for street cleaning purposes, designating parking restrictions for street cleaning purposes on Bay Street from Greene Street to Marin Boulevard; First Street from Marin Boulevard to Washington Street; Hudson Street from Harborside Place (private road) to Second Street; Morgan Street from Greene Street to Marin Boulevard; Pearl Street from Washington Street to Greene Street; Provost Street from Bay Street to Second Street and Steuben Street from Warren Street to Washington Street	332-31
16-179	11-22-2016	Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating the frontage of Empowerment Academy Charter School at 240 Ege Avenue as no parking, Monday through Thursday, school days, 8:00 a.m. to 9:00 a.m. and 3:30 p.m. to 6:30 p.m., and on Friday, school days, 8:00 a.m. to 9:00 a.m., 1:15 p.m. to 2:15 p.m., and 3:30 p.m. to 6:30 p.m.	332-24
16-180	11-22-2016	Amending and supplementing Chapter 332, Article VII, Metered Parking	332-48, 332-52
16-181	12-14-2016	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, designating 25 feet in front of 259 Van Nostrand Avenue, the Hardwood Pavilion, as no parking anytime	332-22
16-182	12-14-2016	Supplementing Chapter 332, Article III, Section 332-24, No parking certain hours, designating 335-337 Newark Avenue, in front of White Eagle Hall, as no parking, Tuesday through Sunday, 6:00 p.m. to 10:00 p.m.	332-24

Ordinance Number	Date of Adoption	Description	Disposition
16-183	12-14-2016	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 17101, Lot 40, on the City's tax map and more commonly known by the street address of 712 Grand Street	Ch. A352
16-184		Amending and supplementing Chapter 1, Article III, Enforcement; Penalties; Chapter 254, Article IV, Vacant Properties; and Chapter 287, Article IV, Recycling, to 1) Increase the penalties for violations of the Solid Waste Section; 2) Modify the current section for repeat offenders pursuant to N.J.S.A. 40:69A-29; and 3) Establish minimum penalties for violations to the recycling and vacant properties ordinances	Withdrawn 11-22-2016
16-185	12-14-2016	A franchise ordinance granting permission to Roseville Avenue Redevelopment Urban Renewal LLC, its successors and assigns, to make private improvements to a portion of lands within the sidewalk area of Montgomery Street and York Street public right-of-way located adjacent to 391-413 Montgomery Street and 451-489 Montgomery Street, Jersey City, NJ	Ch. A352
16-186	01-11-2017	Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by KKF Block 1 Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
16-187	1-11-2017	Approving a 30-year tax exemption for a mixed use market rate rental project to be constructed by KKF Block 5B Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Ch. A352
16-188	12-14-2016	Amending Chapter 3, Article XII, Department of Health and Human Services, abolishing the Division of Health and the Division of Clinical Services and creating the Divisions of Environmental Health, the Division of Community Health and Wellness, the Division of Food and Nutrition, the Division of Disease Prevention and the Division of Animal Care and Control within the Department of Health and Human Services	3-99, 3-100, 3-105, 3-107 Rpld 3-106 Added 3-107.1—3-107.4
16-189		Authorizing the City of Jersey City to execute lease agreement for a term of one year with 101 Newkirk Street, LLC for the use of parking spaces at 105-107 Newkirk Street	Withdrawn 12-14-2016
16-190	01-11-2017	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for Principal Community Organization Specialist	Ch. A351
16-191	01-11-2017	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for Assistant Supervisor Mechanic	Ch. A351
16-192	01-11-2017	Supplementing Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, amending the parking restrictions for street cleaning purposes on the entire length of De Kalb Avenue	332-31
16-193	01-11-2017	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1 et seq. and Section 304-12 of the Municipal Code for property designated as Block 6304, Lot 2.01, on the City's tax map and more commonly known by the street address of 71 Skillman Avenue	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
16-194	02-08-2017	Approving the execution of (1) a financial agreement with PH Urban Renewal LLC and (2) a pledge agreement related to the authorization and issuance by the Jersey City Redevelopment Agency (JCRA) of redevelopment area bonds (non-recourse to the full faith and credit of the City) not to exceed $1,000,000.00 and determining various other matters in connection therewith	Ch. A352
16-195		Authorizing the City of Jersey City to execute lease agreement for a term of one year with Vaishno Ma Academy, LLC for the use of parking spaces at 165-169 Academy Street	Withdrawn 12-14-2016
17-001	01-25-2017	Adopting amendments to the Water Street Redevelopment Plan creating standards for split zoned development sites	Ch. A352
17-002	01-25-2017	Adopting amendments to the Liberty Harbor Redevelopment Plan for the creation of the Science and Technology District	Ch. A352
17-003	01-25-2017	Authorizing the settlement agreement resolving the federal and state litigation concerning Block 11612, Lot 2, more commonly known as 311 Washington Street Units 2A, 2B, 2C, 2D, 2E, 2F and 2G and conveying condominium units 2E and 2F to Washington Commons in exchange for repairs and renovations to all seven units	Ch. A352
17-004	01-25-2017	Amending and supplementing Section 160-1, Fee schedule established, of the Jersey City Municipal Code	160-LA
17-005	01-25-2017	Amending and supplementing Chapter 1, Article III, Enforcement; penalties; Chapter 254, Article IV, Vacant properties; and Chapter 287, Article IV, Recycling, of the Jersey City Municipal Code to 1) increase the penalties for violations of the solid waste section; 2) modify the current section for repeat offenders pursuant to N.J.S.A. 40:69A-29; and 3) establish minimum penalties for violations to the recycling and vacant properties ordinances	1-25 254-21.10 287-49
17-006	03-08-2017	Franchise ordinance vacating a portion of Dey Street	Ch. A352
17-007	01-25-2017	Amending Chapter 222, repealing Article I, Noise restrictions, and adopting revisions to local noise-control protections recommended by the New Jersey Department of Environmental Protection	Rpld 222-1—222-5,222-10 Added 222-1—222-5.7
17-008	01-25-2017	Amending and supplementing Chapter 332, Article VIII, Permit parking	332-58.E(6)
17-009	02-08-2017	Supplementing Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, amending the parking restrictions for street cleaning purposes on Bergen Avenue from Van Nostrand Avenue to Sip Avenue	Ch. A352
17-010	01-25-2017	Supplementing Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, amending the parking restrictions for street cleaning purposes on the entire length of Custer Avenue	332-31
17-011	01-25-2017	Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 22 feet at 423-425 Palisade Avenue as no parking, Monday through Friday, except holidays, 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6 p.m.	332-24
17-012	01-25-2017	Amending and supplementing Chapter 287, Article I, Section 287-28, Duties of building owners and lessees, of the Jersey City Municipal Code	287-28.C, 287-40

Ordinance Number	Date of Adoption	Description	Disposition
17-013	02-08-2017	Adopting amendments to the Land Development Ordinance for Chapter 345, Article V, Zoning and Design Standards	Added 345-44
17-014	02-08-2017	Supplementing Chapter 332, Article III and Article IX designating a reserved parking space(s) at 270 Armstrong Avenue; 119 Baldwin Avenue; 396 Baldwin Avenue; 132 Bartholdi Avenue; 25 Bentley Avenue; 630 Bergen Avenue; 173 Bidwell Avenue; 160 Bleecker Street; 42 Boyd Avenue; 207 Boyd Avenue; 272 Chapel Avenue; 12 Claremont Avenue; 290 Clerk Street; 27 Corbin Avenue; 300 Duncan Avenue; 276 Ege Avenue; 130 Essex Street; 37 Ferry Street; 57-59 Fleet Street; 1035 Garfield Avenue; 201 Gates Avenue; 113 Grant Avenue; 96-98 Highland Avenue; 48 Jewett Avenue; 79 Lembeck Avenue; 279 Liberty Avenue; 115 Lincoln Street; 29 Madison Avenue; 196 Manhattan Avenue; 167 Monticello Avenue; 71 Nelson Avenue; 71 North Street; 157 Orient Avenue; 236 Palisade Avenue; 336 Palisade Avenue; 26 Park Street; 67 Poplar Street; 193 Princeton Avenue; 21 Randolph Avenue; 1858 Randolph Avenue; 202 Seaview Avenue; 39 Stevens Avenue; 84 Terhune Avenue; 76 Thome Street; 82 Thome Street; 28 Union Street; 48 Union Street; 128 Wilkinson Avenue; 114 Zabriskie Street and amend the reserved parking space at 20 Stevens Avenue and repeal the reserved parking spaces at 191 Fairview Avenue; 26 Gates Avenue; 33 Long Street and 255 New York Avenue	332-29 332-69
17-015	02-08-2017	Exercising the City's option to extend the term of the lease with Evangelismos Greek Orthodox Church for the use of 29 parking spaces located at Block 15103, Lot 1, more commonly known as 661 Montgomery Street, for one year	Ch. A352
17-016	02-22-2017	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, designating 119 feet on the south side of Eighteenth Street beginning at Jersey Avenue as no parking anytime; amending Section 332-24, No parking certain hours, designating 40 feet of no parking 7:00 a.m. to 9:00 a.m. and 3:00 p.m. to 7:00 p.m., Monday through Friday for the Viaquenti Day School entrance on Eighteenth Street; and amending Section 332-48, Designation of parking spaces, designating the south side of Seventeenth Street and the north side of Eighteenth Street between Jersey Avenue and Coles Street as on-street metered parking	332-22, 332-24, 332-48
17-017	02-22-2017	Granting permission to 207 Van Vorst Street Realty Company LLC, its successors and assigns, to make private improvements in the Sussex Street right-of-way north of Van Vorst Street adjacent to property located at 193-197-213 Van Vorst Street, Van Vorst Street and Marin Boulevard, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 14205, Lots 14.02,15,16,17.01 and 18	Ch. A352
17-018	06-14-2017	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, designating Kearney Avenue from Ocean Avenue to Martin Luther King Drive as a one-way west	332-5
17-019	03-08-2017	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating the intersections of Carlton Avenue and Montrose Avenue; Congress Street and New York Avenue; and Manila Avenue and Second Street as multi-way stop intersections	332-9

Ordinance Number	Date of Adoption	Description	Disposition
17-020	03-08-2017	Accepting from COA 99 Hudson, LLC, a dedication of certain roadways, sidewalks and utilities within the Hudson Street right-of-way	Ch. A352
17-021	03-08-2017	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for Program Development Specialist 3	Ch. A351
17-022	03-08-2017	Amending and supplementing Chapter 245, Articles I, II and III, of the Jersey City Municipal Code	245-6.A, 245-11, 245-13 Added 245-8.1, 245-20.1
17-023	03-22-2017	Authorizing the transfer of certain City-owned real property, identified on the tax map of the City of Jersey City as Block 21504, Lot 6, to the Jersey City Redevelopment Agency (65 Phillip Street)	Ch. A352
17-024	03-08-2017	Approving a twenty-year tax exemption for a mixed-income residential rental project to be constructed by 16 Bennett Street Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., located on Block 20702, Lot 60.01, and more commonly known by the street address of 16 Bennet Street and 148-152 Clarke Avenue, to be known as 160 Clarke Avenue	Ch. A352
17-025	03-27-2017	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	Ch. A352
17-026	03-22-2017	Establishing the Open Space Recreation and Historic Preservation Trust Fund pursuant to N.J.S.A. 40:12-15.7 (Tax Levy)	Added 239-18.D 304-39—304-41
17-027	03-22-2017	Authorizing the conveyance of seven residential condominium units (A, B, C, D, E, F.1 and G) within Block 11612, Lot 2, and more commonly known by the street address of 311 Washington Street, to the Jersey City Redevelopment Agency	Ch. A352
17-028	03-22-2017	Supplementing Chapter 332, Vehicles and Traffic, of the Jersey City Traffic Code establishing Article XII, Permissible parking distances; Section 332-84, Definitions and Section 332-85, General provisions	Added 332-84, 332-85
17-029	03-22-2017	Supplementing chapter 332, Article II, Section 332-9, Stop Intersections, designating James Avenue and Van Keuren Avenue as a stop intersection	332-9
17-030	03-22-2017	A franchise ordinance granting permission to 225 Bay Street, LLC, successor in interest to Bay City Condo, LLC, its successors and assigns, to make private improvements in the public right-of-way of Bay Street adjacent to the property located at 213-225 Bay Street, Jersey City, New Jersey, also known on the tax maps of the City of Jersey City as Block 241, lots A, 18, 20, and 33D	Ch. A352
17-031	03-22-2017	Authorizing the execution of a corrective deed for Block 16302, lot 40 in the City of Jersey City pursuant to Green Acres requirements	Ch. A352
17-032	03-22-2017	Adopting amendments to Jersey Avenue Park Redevelopment Plan to create the Emerson District	Ch. A352
17-033	04-12-2017	Amending and supplementing Chapter 332, Article VIII, Permit Parking, and Chapter 160, Fees and charges	160-LSS(10) Added 332-58.C.2

Ordinance Number	Date of Adoption	Description	Disposition
17-034	04-12-2017	Supplementing Chapter 332, Article III and Article IX, designating a reserved parking space(s) 157-159 Arlington Avenue; 57-59-61 Astor Place; 146A Bostwick Avenue; 105 Brown Place; 237 Cambridge Avenue; 90 Claremont Avenue; 223 Danforth Avenue; 22 Duncan Avenue; 261 Eighth Street; 8 Freedom Place; 135 Irving Street; 117 Kensington Avenue; 326 Lembeck Avenue; 150 McAdoo Avenue; 13-15 Madison Avenue; 41 Myrtle Avenue; 100-102 Orient Avenue; 90-92 Poplar Street; 26 Reservoir Avenue; 109 Reservoir Avenue; 84 Waverly Street; 165 Wegman Parkway and amend the reserved parking space at 27942 Second Street	332-29, 332-69
17-035	04-12-2017	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, designating 70 feet in front of the Marriott Hotel on the north side of Columbus Drive and 40 feet in front of the residential tower at 70 Columbus Drive as no parking anytime	332-22
17-036	04-12-2017	Authorizing the City of Jersey City to enter into parking lot leases at 733-735 Newark Ave. and 68-70 Cottage St. due to parking displaced by the Pulaski Skyway Project	Ch. A352
17-037	04-12-2017	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for Assistant Supervisor Heavy Equipment Operator	Ch. A351
17-038		Supplementing Chapter 332, Article VIII, Section 332-58, Parking Restrictions in Residential Zones, amending the hours residential permit parking is in effect for Zones 3, 4, 6 and 7 and amend the street limits for Zone 4	Defeated 04-12-2017
17-039	04-26-2017	Ratifying the execution of an easement agreement between the City of Jersey City (grantor) and Jersey City Municipal, LLC (grantee) permitting the grantee to install building foundations underneath the public rights-of-way at Kearny Avenue and Dr. Martin Luther King Drive and extinguishing the utility easement set forth in City Ordinance 97-067 adopted on September 24,1997	Ch. A352
17-040	04-26-2017	Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 50 feet as no parking, Monday through Friday, except holidays, 8:00 a.m. to 9:30 a.m. and 2:00 p.m. to 3:00 p.m. on the south side of First Street	332-24
17-041	04-26-2017	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for Human Resources Coordinator	Ch. A351
17-042		Amending Chapter 3, Article III, Mayor, establishing the Office of Welcoming Communities and the Jersey City Municipal Identification Card Program	Expired on Tabled Agenda 12-31-2017
17-043		Amending Chapter 160, Fees and charges, subsection J, Public assemblies, to create a fee structure for the permitting of public assemblies	Withdrawn 04-12-2017
17-044	04-26-2017	Amending (1) Chapter 122; (2) Chapter 3, Section 3-19.6, Powers and duties of the Office of Cultural Affairs; (3) Chapter 3, Section 3-70, Division of Park Maintenance; (4) Chapter 175, Section 175-28, Farmers' markets; and (5) Chapter 296, Section 296-72, Permit required for closing of street; procedures, to codify the definitions of all festivals, carnivals, fairs, flea markets and other public assemblies and codify the procedures for permitting public assemblies	3-19.6, 3-70,175-28,296-72 Rpld 122-1—122-8 Added 122-1—122-6

Ordinance Number	Date of Adoption	Description	Disposition
17-045	04-26-2017	Authorizing the City of Jersey City to execute a lease with Community Uplifting Project, Inc. for the use of Block 17905, Lots 18, 20 and 21, more commonly known as 612-614 Communipaw Avenue and Block 1931, Lots 22 and 25 more commonly known as 91-93 Harrison Avenue, for a community garden	Ch. A352
17-046	04-26-2017	Authorizing the City of Jersey City to renew the leases of Block 389, Lots 19 and 20 (174-176 Brunswick Street); Block 1409, Lot P (81 Garfield Avenue); Block 3002, Lot 2 (285 Ogden Avenue); Block 5202, Lots 28 and 29 (105 Ogden Avenue); Block 12904, Lot 1 (280 Grove Street) and Block 1905, Lot 36 (447 Martin Luther King, Jr. Drive) as part of the City's Adopt-a-Lot Community Garden Program	Ch. A352
17-047		Amending Chapter 3, Article XI, Sub-Article I, Division of Police, to establish a registry for hearing-impaired Jersey City residents	Withdrawn 04-12-2017
17-048	05-10-2017	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 12202, Lot 34, on the City's Tax Map and more commonly known by the street address of 75 Jordan Avenue	Ch. A352
17-049	05-10-2017	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for Director of Health Education	Ch. A351
17-050	05-10-2017	Authorizing the City of Jersey City to extend the lease of City-owned property at 103-105 Oxford Avenue to the Jersey City Public Schools	Ch. A352
17-051	05-10-2017	Authorizing the City of Jersey City to extend the lease of city-owned property at 109 Oxford Avenue to the Jersey City Public Schools	Ch. A352
17-052	05-10-2017	Adopting amendments to the Land Development Ordinance for Chapter 345, Article II, Section 54-31, Applications and checklists	345-31
17-053		Amending Chapter 182, Article V, Rodent and Vermin Infestation; ragweed, poison ivy, high weeds and overgrown brush and grass, requiring rodent control around construction and demolition sites of the Jersey City Municipal Code	Withdrawn 04-26-2017
17-054	05-10-2017	Amending and supplementing Chapter 3, Article IX, Department of Public Works, amending the Division of Neighborhood Improvement	3-70.1
17-055	05-10-2017	Amending and supplementing Chapter 188 to implement Article 1, Housing accommodations, and Article II, Affordable housing, regulating affordable housing created as a condition of a tax exemption, as a condition of a redevelopment plan, or as a condition of receiving a grant from the affordable housing trust fund, and establishing a preference for Jersey City residents for such housing	Added Ch. 188, Art. I (tit.) 188-7—188-14
17-056		Amending Chapter 3, Article III, Mayor, establishing the Office of Welcoming Communities and the Jersey City Municipal Identification Card Program	Defeated 05-24-2017
17-057	05-24-2017	Amending and supplementing Chapter 287, Article I, Storage, collection and disposal, establishing requirements for the proper disposal of mattresses	287-2, 287-7,287-31
17-058		Amending Chapter 304, Article VII, Construction Project Labor Agreements	Withdrawn 05-10-2017

Ordinance Number	Date of Adoption	Description	Disposition
17-059	05-24-2017	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the Municipal Code for property designated as Block 7902, Lot 61, on the City's tax map and more commonly known by the street address of 60-62 Cottage Street	Ch. A352
17-060	05-24-2017	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, repealing the no parking any time on the north side of Seventeenth Street from Jersey Avenue to Coles Street	332-22
17-061		Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 600 feet on the south side of Jefferson Avenue beginning 40 feet east of Summit Avenue, as no parking, 8:00 a.m. to 4:00 p.m., school days	Withdrawn 05-10-2017
17-062	05-24-2017	Supplementing Chapter 332, Article III and Article IX, designating a reserved parking space at 33 Boyd Avenue; 214-216 Seaview Avenue and 200 Woodward Street and amend the reserved parking space at 37 Dwight Street and repeal the reserved parking space at 157-159 Arlington Avenue and 42 Boyd Avenue	332-29, 332-69
17-063	05-24-2017	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for Mechanic Repair Light Equipment	Ch. A351
17-064	05-24-2017	Authorizing the City of Jersey City to execute a lease agreement with Harwood Corporation for 20 parking spaces located at 808 Pavonia Avenue	Ch. A352
17-065	06-14-2017	Authorizing the exchange of City property for State property to realign Jersey Avenue South of Mill Creek and to execute conservation easements required by New Jersey Department of Environmental Protection in connection with the Hudson River Waterfront Walkway	Ch. A352
17-066	06-14-2017	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for Supervising Public Safety Telecommunicator	Ch. A351
17-067	06-14-2017	Approving a 30-year tax exemption for a multi-site mixed income rental project to be constructed by Ocean MLK Urban Renewal Associates, LP, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
17-068	06-14-2017	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 10901, Lot 127, on the City's tax map and more commonly known by the street address of 361 Newark Avenue	Ch. A352
17-069		Amending Chapter 304, Section 304-31 requiring tax abatement recipients to make a payment to the Jersey City Public School District	Withdrawn 05-24-2017
17-070		Amending Chapter 304, Article VI, Section 304-33 to require that every recipient of a tax exemption for market rate housing project consisting of five units or more, that is within Tier 1, as depicted on a certain map, set aside a minimum of 20% of the total number of units constructed, for occupancy by families of low or moderate income, at prices or rents affordable to such families, and to maintain affordability controls for a term coterminous with the tax exemption, pursuant to N.J.S.A. 40A:12A-4.1 et seq.	Expired on Tabled Agenda 12-31-2017
17-071		Adopting amendments to remove formula business restrictions from all redevelopment plans	Defeated 06-14-2017

Ordinance Number	Date of Adoption	Description	Disposition
17-072	06-28-2017	A franchise ordinance granting permission to 817 Associates, LLC, its successors and assigns, to allow for vacating of a portion of Cottage Street	Ch. A352
17-073	06-28-2017	Authorizing the City of Jersey City to sell property located at 26-30 Cook Street, 393 Hoboken Avenue, and 33-37 Oakland Avenue, Jersey City to the County of Hudson	Ch. A352
17-074		Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-12 for property designated as Block 15203, Lot 10, on the City's tax map and more commonly known by the street address of 65 Storms Avenue	Withdrawn 06-14-2017
17-075	06-28-2017	Supplementing Chapter 332, Article III, creating Section 332-28.1, designating parking for electric or plug-in hybrid vehicles	Added 332-28.1
17-076	06-29-2017	Supplementing Chapter 332, Article III, Section 332-27, designating on the north side of First Street 8 parking spaces at a 45 degree angle (head-in parking only) beginning 70 feet east of Marin Boulevard and designate 12 parking spaces at a 45 degree angle (head-in parlang only) beginning 215 feet east of Marin Boulevard	332-27
17-077	06-29-2017	Supplementing Chapter 332, Article III, Section 332-26, No stopping or standing certain hours, designating no stopping or standing on the north side of First Street, at the last four angle parking spaces east of Marin Boulevard, Monday through Friday, 8:00 a.m. to 5:00 p.m., except public holidays	332-26
17-078	06-28-2017	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, designating 20 feet in front of the loading dock at 147 First Street no parking anytime	332-22
17-079	06-28-2017	Supplementing Chapter 332, Article VII, Section 332-58 repealing twelve angle parking spaces at 160 First Street from the Zone 4 residential permit parking	332-58
17-080	06-28-2017	Amending and supplementing Chapter 260, Rent control	260-1
17-081	06-28-2017	Adopting the Route 440-Culver Extension Study Area into the Route 440-Culver Redevelopment Plan	Ch. A352
17-082	07-19-2017	Adopting amendments to the Harsimus Cove Station Redevelopment Plan to alter the Building Regulating Plan Map and Intensity Summary Table of the West Neighborhood District	Ch. A352
17-083	06-28-2017	Accepting from COA 99 Hudson, LLC, a dedication of certain sidewalks within the Hudson Street, York Street, and Grand Street rights-of-way	NCM
17-084	06-28-2017	Supplementing Chapter A351, Executive orders and ordinances, to create four new classified positions for Director of Community Relations & Social Services, Senior Engineer Civil, Children Supervisor and Health Insurance Benefits Clerk	Ch. A351
17-085	06-28-2017	Amending City Ordinance 14.062 granting permission to 148 First Street Urban Renewal, LLC, its successors and/or assigns, and 160 First Street Urban Renewal, LLC, its successors and/or assigns, to make private improvements in the public right-of-way of First Street adjacent to the property located at 148-154 First Street and 162-170 First Street, Jersey City, New Jersey, also known on the tax maps of the City as Block 11502, Lots 5.03,9,10 and 11	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
17-086	07-19-2017	Vacating a portion of Freeman Avenue and Field Avenue	Ch. A352
17-087	07-19-2017	Adopting amendments to Jersey Avenue Park Redevelopment Plan regarding heights and administrative clauses	Ch. A352
17-088	07-19-2017	Adopting an amendment to the zoning map expanding tire Restaurant Overlay Zone in Downtown Jersey City	NCM
17-089		Authorizing the renewal and first amendment of a lease of City-owned property at 392-394 Central Avenue to the United States Postal Service for the purpose of operating a post office	Expired on Tabled Agenda 12-31-2017
17-090	07-19-2017	Supplementing Chapter 332, Article III and Article IX designating a reserved parking space at 157 Arlington Avenue; 33 Carlton Avenue; 90 Clendenny Avenue; 82 Gautier Avenue; 18 Grant Avenue; 59 Hancock Avenue; 159 Hutton Street; 145 Kensington Avenue; 230 Liberty Avenue; 28-30 Lincoln Street; 227 Linden Avenue; 2 McAdoo Avenue; 41 Morton Place; 203 New York Avenue; 212 Nunda Avenue; 182 Oakland Avenue; 61 Summit Avenue; 413 Union Street; 17 Waverly Street; 68 Webster Avenue and amend the reserved parking space at 171 Armstrong Avenue; 37 Dwight Street and 326 Lembeck Avenue and repeal the reserved parking space at 159 Arlington Avenue; 90 Claremont Avenue; 15-17 Gifford Street; 87 Sanford Place; 414 Union Street	332-29, 332-69
17-091	07-19-2017	Supplementing Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, extending Zone 10 residential permit parking to include Freedom Place, entire length	332-58
17-092	07-19-2017	Supplementing Chapter 332, Article VII, Section 332-58, Parking restrictions in residential zones, extending Zone 2 residential permit parking to include Baldwin Avenue from Mercer Street to Montgomery Street	332-58
17-093	07-19-2017	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, repealing the no parking any time on the north side of Bright Street between Center Street and Colgate Street and Section 332-31, Parking restrictions for street cleaning purposes, amending the limits for Bright Street from Grand Street to Center Street to Bates Street to Center Street	332-22, 332-31
17-094		Approving a 15-year tax exemption for a commercial warehouse project to be constructed by Exeter Thomas McGovern Land Urban Renewal, LLC pursuant to the provisions of the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq., for the property designated as Block 21508, Lot 2, on the City's tax map and more commonly known by the street address as 295 McGovern Drive (f/k/a 79 Thomas F. McGovern Drive)	Expired on Tabled Agenda 12-31-2017
17-095	07-19-2017	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and section 304-9 of the Municipal Code for property designated as Block 19401, Lot 19.06, on the City's tax map and more commonly known by the street address of 435-437 Bergen Avenue	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
17-096	07-19-2017	An ordinance authorizing an amendment to Ordinance 16-136 adopted on September 14, 2016 to authorize an amendment to the development agreement with Garden State Episcopal Community Development Corporation for the construction of five two-family homes for the first time home buyers program	NCM
17-097		Amending Chapter 304 to include Article VIII, Long Term Tax Exemptions; Payment to Public School District Required	Withdrawn 06-28-2017
17-098	08-16-2017	Reappropriating $4,000,000 of proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	Ch. A352
17-099	08-16-2017	Supplementing Chapter 332, article II, section 332-8, Prohibited right turns on red signal, prohibiting the right turn on red signal at the intersection of Summit Avenue and Magnolia Avenue, at all approaches, all times	332-8
17-100	08-16-2017	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Liberty Av and St. Paul's Av as a multi-way stop intersection	332-9
17-101	08-16-2017	Amending and supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating both Martorano Way and Carbon Pl and Martorano Way and Fisk St as a stop intersection	332-9
17-102	08-16-2017	Supplementing Chapter 332, Article III, Sections 332-22, repealing the no parking prohibition on the east side of Garfield Avenue adjacent to Berry Lane Park and Section 332-31, Parking restrictions for street cleaning purposes, designating parking restrictions for street cleaning purposes on the east side of Garfield Av adjacent to Berry Lane Park, Monday, Wednesday and Friday, 8:00 am to 10:00 am	332-22, 332-31
17-103	08-16-2017	Amending Chapter 84 to create a special event exception to allow sale and consumption of alcoholic beverages on golf facilities as defined under N.J.A.C. 13:2-5.3 on Sundays during any golf tournament or special event directly related to playing golf from 10:00 a.m. to 2:00 a.m.	84-22
17-104	08-16-2017	Repealing Chapter 304, Article VII, Construction project labor agreements, and adopting a new version	Rpld 304-33—304-38 Added 304-33—304-38.2
17-105	08-16-2017	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 15203, Lot 10, on the City's tax map and more commonly known by the street address of 65 Storms Av	Ch. A352
17-106	08-16-2017	Supplementing Chapter 332, Article III, Parking, standing and stopping, and Article IX, Parking for the disabled, designating a reserved parking space at 225-227 Armstrong Av; 154 Chestnut Av; 341 Fulton Av; 389 Fulton Av; 752 Grand St; 681/2 Lafayette St; 117 North St and 28 Roosevelt Av	332-29, 332-69

Ordinance Number	Date of Adoption	Description	Disposition
17-107	08-16-2017	Approving a 20-year tax exemption for a commercial warehouse project to be constructed by Exeter Thomas McGovern Land Urban Renewal, LLC, pursuant to the provisions of the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq. for the property designated as Block 21508, Lot 2, on the City's tax map and more commonly known by the street address as 295 Thomas F. McGovern Dr (f/k/a 79 Thomas F. McGovern Dr)	Ch. A352
17-108	09-13-2017	Reappropriating $1,951,796.81 of proceeds of obligations not needed for their original purposes in order to provide for a capital improvement in and by the City	Ch. A352
17-109	09-13-2017	Vacating an alley lying between Newkirk St and Cuberly Pl	Ch. A352
17-110	09-13-2017	Naming the newly re-constructed gazebo in Riverview Park "the Maria Tuzzo Pavilion"	Ch. A352
17-111	09-13-2017	Providing the section of 5th St from Monmouth St west to Brunswick St with the commemorative designation "Nicholas Arcuri Way"	Ch. A352
17-112	09-13-2017	Providing the section of 16th St from Marin Blvd west to Jersey Av with the commemorative designation "Dan Waddleton Way"	Ch. A352
17-113	09-13-2017	Terminating the financial agreement between the City and Whitlock Mills, L.P., for failure to satisfy the conditions of Ordinance 03-139	Ch. A352
17-114	09-13-2017	Amending and supplementing Ch. 332, Article VIII, Section 332-58, Parking restrictions in residential areas, extending Zone 4 residential permit parking on Bay St to include Washington St to Greene St	332-58
17-115	09-13-2017	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating the intersections of Lincoln St and Columbia Av; Lincoln St and Liberty Av; Lincoln St and Terrace Av and Seventh St and Division St as multi-way stop intersections	332-9
17-116	09-13-2017	Supplementing Chapter A351, Executive orders and ordinances, to create a new classified position for Supervising Lifeguard	Ch. A351
17-117	09-13-2017	Amending Chapter 287, Article 1, Section 287-4, Accumulation of refuse and noxious plants, to enable the city to be reimbursed for certain lot cleaning and related costs	287-4
17-118	09-13-2017	Approving a 30-year tax exemption for a mixed income market rate and affordable housing rental project to be constructed by 160 Lafayette Associates, L.P., a qualified housing sponsor under the New Jersey Mortgage Housing Finance Agency Law N.J.S.A. 55:14k-l et seq.	Ch. A352
17-119		An ordinance approving a 20-year tax exemption for a market rate rental mixed use project to be constructed by 87 Newkirk Holdings Urban Renewal, LLC., an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq., located on Block 12204, Lot 12, on the city's tax map and more commonly known by the street address of 97 Newkirk St	Defeated 09-17-2017
17-120	09-13-2017	Amending and supplementing Chapter 122, Circuses, Carnivals and Public Assemblages	120-3

Ordinance Number	Date of Adoption	Description	Disposition
17-121	09-27-2017	Supplementing chapter A351, Executive orders and ordinances, to create four new classified positions for Supervising Towing Operations, Supervising Heavy Equipment Operator, Keyboarding Clerk 2/Telephone Operator and Sanitation Superintendent	Ch. A351
17-122	09-27-2017	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating the intersection of Manila Av and Pavonia Av as a multi-way stop intersection	332-9
17-123	09-27-2017	Supplementing Chapter 332, Article III, Parking, standing and stopping, and Article IX, Parking for the disabled, designating a reserved parking space at 132 Fairview Av; 63 1/2 Lafayette St; 110 Nelson Av and 208 Nunda Av and amending the reserved parking space at 259 Fourth St and repealing the reserved parking space at 68 12 Lafayette St; 107 Nelson Av and 212 Nunda Av	332-29, 332-69
17-124	09-27-2017	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, amending the days and times for the prohibited right turn on red signal at the intersection of Communipaw Av at West Side Av from 6:00 am to 10:00 pm, daily and designate a no right turn at the red signal on West Side Av at Communipaw Av, 6:00 am to 10:00 pm, daily	332-8
17-125	09-27-2017	Amending and supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 75 feet as no parking, school days, 8:00 am to 9:00 am and 2:00 pm to 3:00 pm on Astor Place and 25 feet as no parking, school days, 8:00 am to 9:00 am and 2:00 pm to 3:00 pm on Crescent Avenue for PS #12.	332-24
17-126	09-27-2017	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, repealing no parking any time on the north side of Lembeck Av from Brother Stan Dr to Sullivan Dr and on the south side of Lembeck Av from Greico Dr to Sullivan Dr	332-22
17-127	09-27-2017	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Mallory Av and Fisk St as a multi-way stop intersection	332-9
17-128	09-27-2017	Vacating a portion of Factory St consisting of approximately 3,623.4 square feet for public utilities located in the Montgomery St redevelopment area	Ch. A352
17-129	09-27-2017	Applying the name "Aynon Street" to the public thoroughfare planned to run east and west through the site of the former Montgomery Gardens Housing Complex and which will run parallel to Montgomery St	Ch. A352
17-130	09-27-2017	Applying the name "Jonathan C. Gibbs, Jr. Boulevard" to the public thoroughfare planned to run north and south through the site of the former Montgomery Gardens Housing Complex	Ch. A352
17-131	09-27-2017	Applying the name "Ward Street" to the public thoroughfare planned to run east and west through the site of the former Montgomery Gardens Housing Complex and which will run parallel to Bright St	Ch. A352
17-132	09-27-2017	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 40A:21-l, et seq., and Section 304-12 of the Municipal Code for property designated as Block 22042, Lot 19, on the City's tax map and more commonly known by the street address of 2124 John F. Kennedy Blvd [f/k/a 170 Grant Av)	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
17-133	09-27-2017	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 6001, Lot 35, on the City's tax map and more commonly known by the street address of 39 New York Av	Ch. A352
17-134	10-11-2017	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating the intersections of Grove Street and Mercer Street and Jersey Avenue and Mercer Street as a multi-way stop intersection	332-9
17-135	10-11-2017	Supplementing and amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, extending Zone 2 residential permit parking to include Mountain Rd	332-58
17-136	10-11-2017	Adopting amendments to Dixon Crucible Redevelopment Plan to institute a scattered site district and associated standards	Ch. A352
17-137	10-25-2017	Amending and supplementing Chapter 3, Article VI, Department of Administration	3-42 Added 3-52, 3-52.1
17-138	10-11-2017	Amending Chapter 151, Drug-free school zones, implementing Article III, to create a municipal alliance committee to combat drug and alcohol abuse	Added 151-5—151-8
17-139	10-11-2017	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq. and Section 304-12 of the Municipal Code for property designated as Block 17505, Lot 4.01, on the City's tax map and more commonly known by the street address of 323-325 Pine St	Ch. A352
17-140	10-11-2017	Granting permission to Usman Khan, his successors and assigns, to allow an encroachment along the south side of Emerson Av, and the east side of Sip Av, for a fence as set forth within the proposed franchise area adjoining 24 Emerson Av, a/k/a Lots 31, Block 11901	Ch. A352
17-141	10-25-17	Amending and supplementing Chapter 3, Article III, Mayor, and Article VI, Department of administration	3-42 Rpld 3-19.3, 3-19.4 Added 3-56, 3-56.1
17-142	10-25-2017	Amending and supplementing Chapter 332, Article III, Section 332-23, No stopping or standing, designating both sides of Greene St between Columbus Dr and Second St as no stopping or standing	332-23
17-143	10-25-2017	Granting permission to M&T Bank-Branch 3303, its successors and assigns, to make private improvements to a portion of lands within the sidewalk area of Bayview Av and Ocean Av public rights-of-way located adjacent to 532 Ocean Av	Ch. A352
17-144	10-25-2017	Authorizing an amendment to Ordinance 17-073 adopted on June 28, 2017 to authorize an amendment to the agreement of sale with the County of Hudson dated June 29,2017 for the sale of City-owned property at 26-30 Cook St, 393 Hoboken Av, and 33-37 Oakland Av, and the execution of an environmental remediation escrow agreement	Ch. A352
17-145	10-25-2017	Amending Ordinance 17-105 which approved a five-year tax exemption for the entity developing 65 Storms Av in order to include space for vehicular parking and authorizing the City to collect additional monies for the Affordable Housing Trust Fund	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
17-146	10-25-2017	Providing for the acquisition of street sweepers and related expenses for the City and appropriating $2,600,000 therefor and providing for the issuance of $2,600,000 in bonds or notes of the City to finance the same	Ch. A352
17-147		Amending and supplementing Chapter 321, Trees, repealing Sections 1 through 8 in their entirety and adopting a new version	Withdrawn 10-25-2017
17-148	11-16-2017	Supplementing Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 35 feet at 953 Garfield Avenue as no parking, 8:00 a.m. to 4:00 p.m., except holidays; 60 feet at 209 Third Street as no parking school days, 7:30 a.m. to 9:00 a.m. and 3:00 p.m. to 5:00 p.m. and 80 feet at 41 Tuers Avenue as no parking school days, 7:30 a.m. to 9:00 a.m. and 2:30 p.m. to 4:00 p.m.	332-24
17-149	11-16-2017	Supplementing Chapter 332, Article XI, adding Section 332-81.1, Title 39 made applicable to Society Hill at Droyers Point	332-4, 332-5, 332-9, 332-22 Added 332-71.1,332-81.1
17-150		Amending Chapter 304, Taxation, to include Article VIII, Long Term Tax Exemptions: Payment to Public School District required	Expired on Tabled Agenda 12-31-2017
17-151	11-29-2017	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create two new classified positions for Social Service Technician and Data Processing Programmer/Systems Analyst	Ch. A351
17-152		Amending Chapter 236, Article I, Licensing of Parking Lots and Garages, to permit automated, self-park robotic parking garages	Defeated 11-29-2017
17-153	11-29-2017	Adopting amendments to the Jersey City Land Development Ordinance for Chapter 345, Article III, Section 19, Notice of applications	345-19.A
17-154	11-29-2017	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating the intersection of St. Paul's Avenue and James Avenue as a multi-way stop intersection	332-9
17-155	11-29-2017	Supplementing chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 85 feet as no parking, school days, 8:00 a.m. to 9:00 a.m. and 2:00 p.m. to 3:00 p.m. at 160 Danforth Avenue (Danforth Avenue Early Childhood Center) and repealing the no parking, 7:30 a.m. to 3:15 p.m. in front of 128 Danforth Avenue	332-24
17-156	11-29-2017	Authorizing the City to extend the lease with the Jersey City Redevelopment Agency for office space located at 380-382 Martin Luther King Drive	Ch. A352
17-157	11-29-2017	Granting permission to 280 Newark, LLC for a balcony encroachment over a portion of the right-of-way of Newark Avenue, and the right-of-way of Third Street for the benefit of Lot 1.01 in Block 11010, land now or formerly of 280 Newark, LLC. The balcony encroachment is intended to encompass the overhead entrance canopy and floor slab balconies which project beyond the boundary lines of Lot 1.01 in Block 11010 and into the aforementioned rights-of-way	Ch. A352
17-158	11-29-2017	Providing the entire length of Ristaino Drive, from Montgomery Street north to Way Street, with the commemorative designation Hasan M. Chaudhry Way	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
17-159	11-29-2017	Extending the time to execute the financial agreement approved pursuant to Ordinance 17-067, which granted a 30-year tax exemption for a multi-site mixed-income rental project to be constructed by Ocean MLK Urban Renewal Associates, LP, an urban renewal entity, pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-l et seq.	Ch. A352
17-160	12-13-2017	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, prohibiting the right turn at the red signal for vehicles traveling eastbound on Laidlaw Avenue to southbound Central Avenue, 8:00 a.m. to 4:00 p.m., school days	332-8
17-161	12-13-2017	Supplementing Chapter 332, Article XIII, Section 332-31, Parking restrictions for street cleaning purposes, extending the parking restrictions for street cleaning purposes on Warren Street, one block north to Second Street	332-31
17-162		Supplementing Chapter 332, Article III, amending Section 332-22, Parlang Prohibited at All Times, designating 25 feet on the east side of Palisade Avenue beginning 35 feet north of Route 139 and designating the east side of Palisade Avenue from Newark Avenue to a point 205 feet north as no parking any time and amending Section 332-24, Parking Prohibited Certain Hours, repealing No Parking Monday through Friday, 7:00 a.m. to 7:00 p.m. on the west side of Palisade Avenue beginning at State Highway 139 and extending 100 feet north	Defeated 11-29-2017
17-163	12-13-2017	Supplementing Chapter 332, Article III and Article IX, designating a reserved parking space at 203-205 Arlington Av; 308-310 Arlington Av; 127 Armstrong Av; 128-126 Bartholdi Av; 168 Bartholdi Av; 390 Baldwin Av; 154 Bayview Av; 167 Beacon Av; 172 Beacon Av; 376 Bergen Av; 29 Bidwell Av; 140-142 Bidwell Av; 30 Bleecker St; 222 Bowers St; 131-133 Boyd Av; 200 Boyd Av; 137-139 Brunswick St; 289-291 Cator Av; 38 Center St; 126 Charles St; 188 Clendenny Av; 79 Colgate St; 24 Concord St; 222 Danforth Av; 210 Eighth St; 106 Glenwood Av; 201 Griffith St; 404 Grove St; 140 Hopkins Av; 132 Kearney Av; 269 Liberty Av; 35 McAdoo Av; 167 Mallory Av; 464-466 Mercer St; 547 Montgomery St; 147 Myrtle Av; 49-49A Newkirk St; 250 New York Av; 64-66 Oak St; 196 Orient Av; 364-366 Randolph Av; 68 Reservoir Av; 45 River Dr South; 422 Saint Paul's Av; 194-196 Seaview Av; 200 South St; 30 Stegman Pl; 104 Stegman St; 59 Stevens Av; 39 Stuyvesant Av; 97 Terhune Av; 90-88 Thorne St; 96 Thome St; 88 Tuers Av; 365 Union St; 156 Van Home St; 202-204 Van Nostrand Av; 6-8 Wegman Ct; 446 West Side Av and 13 Yale Av and amending the reserved parking space at 295 Chapel Av and 198 Woodward St and repeal the reserved parking space at 177 Boyd Av; 318 Pacific Av; 90-88 Thome St	332-29, 332-69
17-164	12-13-2017	Authorizing the City to renew the leases of Block 389, Lots 19 and 20 (174-176 Brunswick Street); Block 1409, Lot P (81 Garfield Avenue); Block 3002, Lot 2 (285 Ogden Avenue); Block 5202, Lots 28 and 29 (105 Ogden Avenue); Block 12904, Lot 1 (280 Grove Street) and Block 1905, Lot 36 (447 Martin Luther King, Jr. Drive) as part of the City's Adopt-a-Lot Community Garden Program	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
17-165	12-13-2017	Ordinance amending Chapter 84, Article 1, Section 84-23, permitting holders of plenary retail distribution licenses to sell all alcoholic beverages beginning at 9:00 a.m. on Sundays whenever Christmas Eve (December 24) and New Year's Eve (December 31) fall on a Sunday	84-23
17-166	12-13-2017	Providing the entire length of Morris Boulevard from Park View Avenue to Marin Boulevard with the commemorative designation Boys & Girls Club Way	Ch. A352
17-167	12-13-2017	Providing the portion of Newark Avenue from 2nd Street to Monmouth Street with the commemorative designation Peter J. Zampella, Sr. Way	Ch. A352
17-168	12-13-2017	Providing a portion of Danforth Avenue from Princeton Avenue west to John F. Kennedy Boulevard with the commemorative designation Frank J. Caso Way	Ch. A352
17-169	12-13-2017	Amending and supplementing Chapter 321, Trees, repeating Sections 321-1 through 321-8 in its entirety and adopting a new version	Rpld 321-1—321-8 Added 321-1—321-9
17-170	12-13-2017	Amending Chapter 345, Section 345-65, Buffers, Section 345-66, Landscaping, and Section 345-70, Off-street parking and loading and bicycle parking	345-65, 345-66, 345-70
17-171	12-13-2017	Consenting to (1) the purchase of the senior housing project located at 1065 Summit Avenue by Muhlenberg Senior Housing Urban Renewal LLC, (2) the transfer and assignment of the project's tax exemption from the current owner to the purchaser, and (3) approving an extension of the project's tax exemption for an additional three years pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law, N.J.S.A. 55:16-1 et seq.	Ch. A352
17-172	12-13-2017	Adopting amendments to the Grand Jersey Redevelopment Plan to create a new park zone and revise other general design and development standards of the plan	Ch. A352
17-173	12-13-2017	Amending Chapter 296, Article I, Snow and Ice Removal	296-1.1,296-1.2
17-174	12-13-2017	Adopting amendments to the Journal Square 2060 Redevelopment Plan to amend bonus standards for the construction and extension of Central Avenue and Homestead Place	Ch. A352
17-175	12-13-2017	Amending and supplementing Chapter 345, Zoning, for Zone 3 to allow houses of worship as a permitted use	Ch. A352
18-001	01-24-2018	Adopting amendments to the health club definition of the Land Development Ordinance	345-6
18-002	01-24-2018	Amending Chapter 236, Article I, Licensing of parking lots and public garages, to permit automated, self-park robotic parking garages	236-3,236-10,236-12,236-14,236-17, 236-20,236-21 Added 236-21.1
18-003	01-24-2018	Amending and supplementing Chapter 304, Article V, mandating that the developers of hotel projects which receive redevelopment area bonds or other direct financial assistance from the City, execute a no-strike pledge agreement	Ch. 304, Art. V (tit.) 304-27.2 Added 304-27.4—304-27.7
18-005	02-14-2018	Authorizing the City, as tenant, to extend for a one-year term a lease agreement with 18 Ash Street Realty, LLC, as landlord, for space located at 46 State Street, Jersey City	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
18-006		Approving a 30-year tax exemption for a mixed-use mixed income rental project to be constructed by Terezetto NJ Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-l et seq.	Tabled 02-14-2018
18-007	02-14-2018	Approving a five-year tax exemption pursuant to the provisions of N.J.S.A. 4OA:21-1, et seq., and Section 304-12 of the municipal code for the property designated as Block 17504, Lot 2.01 on the City's tax map and more commonly known by the street address of 121 Garabrant Street	Ch. A352
18-008	02-28-2018	Appropriating $514,286.88 of proceeds of obligations not needed for their original purposes in order to provide funding for the renovation of a fire house in and by the City	Ch. A352
18-009	02-28-2018	Providing for the acquisition of a mask service unit truck for the City Fire and Emergency Services Division and appropriating $150,000 therefor from the City's Capital Surplus Fund	NCM
18-010		Supplementing Chapter A3 51, Executive Orders and Ordinances, to create a new classified position for Youth Group Worker	Deleted 02-14-2018
18-011	03-14-2018	Adopting the Enos Jones Redevelopment Plan	Ch. A352
18-012	02-28-2018	Vacating a portion of West Street in accordance with the stipulation of settlement dated July 25,2012 and pursuant to the Journal Square 2060 Redevelopment Plan	Ch. A352
18-013	02-28-2018	Reappropriating $1,800,000 of proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	Ch. A352
18-014	02-28-2018	Ratifying the approval of: 1) the sale of the affordable housing project located at 413-419 Arlington Avenue; 750-766 Grand Street; and 64-66 Harmon Street to Emanual Realty, LLC pursuant to the limited-dividend nonprofit housing corporations or associations law, N.J.S.A. 55:16-1 et seq.; and (2) the transfer and assignment of the project's tax exemption	Ch. A352
18-015	03-14-2018	Adopting amendments to the Montgomery Gateway Redevelopment Plan regarding medical offices use	Ch. A352
18-016		Adopting amendments to the Harsimus Cove Station Redevelopment Plan to amend open space requirements and standards in east-waterfront	Tabled 03-14-2018
18-017	03-14-2018	Providing for the acquisition of two passenger buses for the City Department of Recreation and appropriating $205,000 therefor from the City's Capital Surplus Fund	NCM
18-018	03-28-2018	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	Ch. A352
18-019	03-28-2018	Adopting the 2018 Edition of the Jersey City Forestry Standards Manual and incorporating the manual into the Jersey City Municipal Code by reference	Added 321-10
18-020	4-25-2018	Amending Chapter 254, Section 254-17, Notices and hearings, and Section 254-45, General Safety and Sanitation	254-17.F, 254-45
18-021		Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating 40 feet in front of 122 Grant Av as "No Parking" on Wednesday, 2:00 p.m. to 10:00 p.m. and on Sunday, 8:00 a.m. to 4:00 p.m.	Withdrawn 03-14-2018

Ordinance Number	Date of Adoption	Description	Disposition
18-022	03-28-2018	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create a new classified position for Senior Carpenter	Ch. A351
18-023	03-28-2018	Accepting the dedication of certain roadways, sidewalks, and utilities located within the Tidewater Redevelopment Area near Van Vorst Street and Dudley Street	Ch. A352
18-024	03-28-2018	Amending Chapter 69, Article III, to amend the boundaries of the Historic Downtown Special Improvement District to include Block 11108, Lot 39, a/k/a 322 Second Street	69-21 (note)
18-025	04-11-2018	Amending and supplementing Chapter 3, Article III, Mayor, and Article XII, Department of Health and Human Services	3-19.2.1, 3-100 Added 3-103, 3-106, 3-107.5
18-026	04-11-2018	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create two new classified positions for Clerk 1/Telephone Operator and Program Coordinator Lead Poisoning Control Program	Ch. A351
18-027		Adopting amendments to the Land Development Ordinance in advance of potential legalization of recreational marijuana	Tabled 04-11-2018
18-028	04-25-2018	Providing for a special emergency appropriation of $940,500 providing for the preparation of a master plan	Ch. A352
18-029	04-25-2018	Authorizing the City to execute a lease with Community Uplifting Project, Inc., for the use of Block 17905, Lots 18,20 and 21, more commonly known by the street address of 612-614 Communipaw Avenue, and Block 1931, Lots 22 and 25, more commonly known by the street address of 91-93 Harrison Avenue, for use as a community garden	Ch. A352
18-030	04-25-2018	Amending and supplementing Chapter 319, Sections 319-1, 319-11 and 319-18, authorizing a contract for the provision of impound services for the City and requiring that all vehicles impounded by the City and unclaimed for the requisite statutory period be sold at public auction	319-1,319-11,319-18
18-031	04-25-2018	Authorizing the City, as tenant, to extend for a two-month term a lease agreement with 199-201 Summit Avenue, LLC as landlord, for space located at 199-205 Summit Avenue	Ch. A352
18-032	04-25-2018	Amending and supplementing Chapter 105, Building Demolition, implementing new regulations for building demolition under the Jersey City Municipal Code	Rpld 105-1—105-14 Added 105-1—105-18
18-033		Amending Chapter 182, Article V, Rodent and vermin infestation; ragweed, poison ivy, high weeds and overgrown brush and grass, requiring rodent control around construction and demolition sites	Withdrawn 04-11-2018
18-034	05-09-2018	Amending Chapter 3, Article VI, Section 3-41, Powers and Duties of the Business Administrator, to authorize the Business Administrator to execute license agreements with the owners of vacant buildings for use as temporary firefighter training facilities, and approving a form license agreement to facilitate the City's use of vacant, privately-owned buildings as temporary firefighter training facilities	3-41
18-035	05-09-2018	Supplementing Chapter 67, Article I, Newark Avenue Pedestrian Mall, amending Section 67-4 creating D, Vehicular Access	Added § 67-4.D

Ordinance Number	Date of Adoption	Description	Disposition
18-036	05-09-2018	Amending and supplementing Chapter 105, Building Demolition, implementing new regulations for building demolition under the Jersey City Municipal Code and rescinding the version of chapter 105 adopted by ordinance 18-032	Rpld 105-1—105-18 Added 105-1 105-14
18-037	05-09-2018	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Franklin Street/Mountain Road and Ogden Avenue as a multi-way stop intersection	332-9
18-038	05-09-2018	Providing for various capital improvements for the City and appropriating $47,282,671, therefor, and providing for the issuance of $45,031,115 in general improvement bonds or notes of the City to finance the same	Ch. A352
18-039	05-09-2018	Authorizing the City to sell property located at 65 Commercial Street, 20 Commercial Street, and 2 Commercial Street, Jersey City to the Jersey City Municipal Utilities Authority	Ch. A352
18-040	05-09-2018	Authorizing the City to enter into a lease/purchase agreement as lessee with 342 Investors, LLC, as lessor, for office space to be constructed on Block 22601, Lot 36 at the intersection of Martin Luther King Drive and Kearny Avenue and a parking deck with commercial space on Block 22601, Lots 10 through 15, Lots 24 through 35, Lot 37 and Lots 16.15 and 23.01	Ch. A352
18-041		Rescinding Ordinance 15-108 and terminating the tax exemption and financial agreement with GS FC Jersey City PEP 2 Urban Renewal, LLC.	Tabled 05-09-2018
18-042	05-09-2018	(1) Naming the first building in the HUB Municipal Complex, which was recently completed, after Dr. Martin Luther King, Jr., and (2) naming the second municipal building in the HUB Municipal Complex, yet to be built, after former Ward F Councilwoman Melissa Holloway	Ch. A352
18-043	05-23-2018	Granting permission to 28 Liberty Manor Development, LLC, its successors and assigns to construct and install planters, fence, steps and stoops approximately 125 feet in length and nine and twenty one-hundredths feet in depth along the public right-of-way of Bright Street, in accord with the site plan as submitted in the attached Exhibit "A" (Franchise Ordinance)	Ch. A352
18-044	05-23-2018	Granting permission to Larry Li and Lei Wang, their successors and assigns, to make private improvements in the Bright Street right-of-way adjacent to the property located at 278 Grand Street, Jersey City, New Jersey, also known on the current tax map of the City as Block 14105, Lot 9 (Franchise Ordinance)	Ch. A352
18-045	05-12-2018	Supplementing Chapter A3 51, Executive Orders and Ordinances, to create a new classified position for Principal Fiscal Analyst	Ch. A351
18-046	05-23-2018	Adopting amendments to the Land Development Ordinance for Chapter 345, Article V, to amend the R-2 Zone and create new Zone R-2D	345-41 Added 345-41A

Ordinance Number	Date of Adoption	Description	Disposition
18-047	05-23-2018	Supplementing Chapter 332, Article III, Parking, standing and stopping, and Article IX, Parking for the disabled, designating a reserved parking space at 52 Broadway; 196 North St; 197 Orient Av; 290 Sip Av; 127 Vroom St; 8-10 Wegman Ct; amending the reserved parking space at 156 Bayview Av; 11 Cator Av; 61 Claremont Av and 327 Lembeck Av and repealing the reserved parking space at 190 North St; 196 Orient Av; 6-8 Wegman Ct	332-29, 332-69
18-048		Authorizing the leasing of office space in city-owned property at 289 Academy Street also known as the Apple Tree House to the Jersey City Economic Development Corporation	Tabled 05-23-2018
18-049	05-23-2018	Consenting to (1) the partial assignment of the tax exemption from 110 First Street Urban Renewal Associates, LLC to the One Urban Renewal Associates, LLC & LKD Urban Renewal Associates, LLC, and (2) the assumption of the tax exemption by the One Urban Renewal Associates, LLC & LKD Urban Renewal Associates, LLC, pursuant to Section 9.1 of the financial agreement and the long term tax exemption law N.J.S.A. 40A:20-1 et seq.	Ch. A352
18-050	05-23-2018	Amending Chapter 67, Article I, Newark Avenue Pedestrian Mall, regulating the operation of rooftop bars and restaurants	67-4.C.4
18-051	06-13-2018	Supplementing Chapter 21, Article I, Contracting authority, requiring that the hiring of freelance workers for services of $500 or more by persons engaged in commercial or business activities within the City be by written cotract specifying the time and manner of payment	Added 21-3
18-052	06-13-2018	Adopting amendments to the Morgan Grove Marin Redevelopment Plan regarding standards and requirements of the community benefit bonus on Block 11508	Ch. A352
18-053		Amending and supplementing Chapter 251, Pornography and Obscenity, repealing the current version in its entirety and adopting a new version	Tabled 06-13-2018
18-054	06-13-2018	Supplementing Chapter A351, Executive Orders and Ordinances, to create two new classified positions for Supervising Parking Enforcement Officer and Director of Inspections	Ch. A351
18-055		Supplementing Chapter 3, Article XII, Department of Health and Human Services, of the Jersey City Municipal Code establishing the Jersey City Municipal Identification Card Program	Withdrawn 05-23-2018
18-056	06-27-2018	Supplementing Chapter 332, Article III, amending Section 332-24, Parking prohibited certain hours, designating 165 feet as no parking, school days, except holidays, 7:30 a.m. to 8:30 a.m. and 2:30 p.m. to 3:30 p.m. on the east side of Nelson Avenue	332-24

Ordinance Number	Date of Adoption	Description	Disposition
18-057	06-13-2018 **DECLARED NULL AND VOID BY COURT ORDER 11-16-2018**	(1) Reaffirming the acceptance of the Katyn Forest Massacre Memorial as a gift to the City from the Katyn Forest Memorial Massacre Committee, Inc.; (2) rescinding Ordinance MCC-299 which approved the placement of the Katyn Forest Massacre Memorial on the median strip directly opposite 75 Montgomery Street west of the intersection of Montgomery Street & Washington Street; (3) relocating the Katyn Forest Massacre Memorial to the eastern terminus of York Street in perpetuity and (4) authorizing the City to enter into an agreement with the Katyn Forest Memorial Massacre Committee, Inc. allowing the Committee to partner with the City in stewardship of the Memorial at the eastern terminus of York Street and conduct activities as permitted under applicable laws and policies	NCM
18-058		Amending Article XXII of Chapter 254, Property Maintenance, requiring the registration of certain mortgages of real property by mortgagees and the maintenance of vacant properties subject to actual or impending foreclosure by mortgagees	Defeated 06-13-2018
18-059	06-13-2018	Temporarily repeals Ordinance 18-030 and reverts back to the previous version of Chapter 319, Towers and Towing, until the effective date of the new contract(s) for impound services	319-1, 319-11, 319-18
18-060	06-13-2018	Amending and supplementing Chapter 160, Section 160-1, Fee schedule established, and Chapter 254, Article IV, Vacant properties	160-1.X 254-21.9
18-061	06-27-2018	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, designating Monitor Street from Communipaw Avenue to Johnston Avenue as a one-way north; amending Section 332-9, Stop intersections, repealing southbound Monitor Street at Communipaw Avenue as a stop street and amending Section 332-22, Parking prohibited at all times, repealing the no parking any time prohibition on the east side of Monitor Street from Communipaw Avenue to Johnston Avenue	332-5, 332-9, 332-22
18-062	06-27-2018	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, extending the one-way north on Barrow Street from Columbus Drive, one block north to Newark Avenue and amending Section 332-22, Parking prohibited at all times, repealing the no parking any time prohibition on the west side of Barrow Street from Columbus Drive to Newark Avenue	332-5, 332-22

Ordinance Number	Date of Adoption	Description	Disposition
18-063	06-27-2018	Supplementing Chapter 332, Article II, Parking, Standing and Stopping, and Article IX, Parking for the Disabled, designating a reserved parking space at 168-170 Arlington Avenue; 395 Armstrong Avenue; 73 Audubon Avenue; 242-244 Brunswick Street; 291 Chapel Avenue; 178 Clendenny Avenue; 202 Clendenny Avenue; 51-53 Clinton Avenue; 145 Ege Avenue; 458 Fairmount Avenue; 347-351 Forrest Street; 241 Gates Avenue; 259 Griffith Street; 68 Hancock Avenue; opposite 75 Highland Avenue; 84-86 Highland Avenue; 187 Hopkins Avenue; 2 Kensington Avenue; 326 Lembeck Avenue; 150 McAdoo Avenue; 3-5 Myrtle Avenue; 147-149 Myrtle Avenue; 147-179 Myrtle Avenue; 276 North Street; 66-68 Oak Street; 146 Prospect Street; 15-17 Sackett Street; 281 Seaview Avenue; 10-12 Skyline Drive; 86-88 Stegman Street; 166 Terrace Avenue; 364 Van Nostrand Avenue; 99 Warner Avenue and 200 Wegman Parkway and repealing the reserved parking space at 327 Lembeck Avenue	332-29, 332-69
18-064	06-27-2018	Amending Chapter 67, Article I, Newark Avenue Pedestrian Mall, extending the Newark Avenue Pedestrian Mall to Jersey Avenue while keeping Erie Street open to vehicular traffic	67-2, 67-3, 67-4.C, D
18-065	06-27-2018	Amending and supplementing Chapter 263, Retail and Commercial Premises, to prohibit the use of disposable plastic carryout bags	Added 263-6—263-10
18-066	06-27-2018	Supplementing Chapter A351, Executive Orders and Ordinances, to create five new classified positions for Chief Parking Enforcement Officer, Paralegal Specialist, Program Manager Data Processing, Assistant Personnel Technician and Legal Analyst	Ch. A351
18-067	06-27-2018	Amending and supplementing Chapter 23, Court, Municipal, to create two additional part-time municipal judge positions	23-2
18-068	06-27-2018	Amends and supplements Chapter 254, Property maintenance, to require mortgagees to register foreclosures and maintain the properties foreclosured upon in a manner consistent with the provisions of Chapter 254, and Chapter 160, Fees and charges, to add a foreclosure registration fee	160-1 Added 254-125—254-132
18-069	06-27-2018	Authorizing the City to execute an amendment to a lease agreement with 30 Montgomery Partners, LLC for approximately 11,400 square feet of space at 30 Montgomery Street, Block 8, Lot C2 for a term of one year	Ch. A352
18-070	07-18-2018	Supplementing Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, amending the time parking is restricted for street cleaning purposes on Tenth Street from Marin Boulevard to Brunswick Street from 1:00 p.m. to 3:00 p.m. to new time, 10:00 a.m. to noon	332-31
18-071	07-18-2018	Accepting from the Jersey City Housing Authority a dedication of a certain right-of-way within a portion of Lafayette Gardens known as Walter Mays Drive	Ch. A352
18-072	07-18-2018	Accepting from the Jersey City Housing Authority a dedication of a certain right-of-way within a portion of Lafayette Gardens known as Barbara Place	Ch. A352
18-073	07-18-2018	Accepting from the Jersey City Housing Authority a dedication of a certain right-of-way within a portion of Lafayette Gardens known as James Pop Curry Drive	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
18-074	07-18-2018	Adopting amendments to definitions and supplementary zoning of the Land Development Ordinance	345-6, 345-60.G
18-075	07-18-2018	Amending Chapter 134, Contractors, (amended as Contractors and Permit Processors) requiring that permit processors acting on behalf of owners also register with the City and amending Chapter 134 to remove certain language regarding the Construction Board of Appeals	134-1—134-5 Rpld 134-6—134-11 Rnbd 134-12—134-14 as 134-7—134-9 Added 134-6, 134-11
18-076	07-18-2018	Adopting amendments to the Chapel Avenue Industrial Park Redevelopment Plan to include the industrial area governed by the Danforth Avenue Transit Village Redevelopment Plan and thereby eliminating the Danforth Avenue Transit Village Redevelopment Plan	Ch. A352
18-077		Amending Chapter A350, Council Rules of Order, to impose a five-minute limitation on all members of the public wishing to speak, not only those speaking during the Public Speaking portion of the meeting	Defeated 07-18-2018
18-078	07-08-2018	Amends Chapter 84 to permit holder of retail consumption licenses to sell alcoholic beverages beginning at 10:00 a.m. on Sundays	84-22.B
18-079	07-18-2018	Amending Chapter 182, Article V, Rodent and Vermin Infestation; Ragweed, Poison Ivy, High Weeds and Overgrown Brush and Grass, Requiring Rodent Control Around Construction and Demolition Sites	182-30
18-080		Recreating Chapter 48 relating to placement and maintenance of newsracks on public rights-of-way	Withdrawn 06-27-2018
18-081	08-15-2018	Renaming the Greenville Branch, of the Jersey City Free Public Library to the Earl Morgan Branch Library	Ch. A352
18-082	08-15-2018	Amending and supplementing Chapter 319, Towers and Towing, Sections 319-1, 319-11 and 319-18, authorizing public bidding for a contract for providing impound services to the City and requiring that all vehicles impounded by the City and unclaimed for the requisite statutory period be sold at public auction	319-1, 319-11, 319-18
18-083	08-15-2018	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating the intersection of Phillip Street at Audrey Zapp Drive/Johnston Avenue as an all-way stop intersection	332-9
18-084	08-15-2018	Supplementing Chapter 332, Article II, amending Section 332-9, Stop intersections, designating Sackett Street and Oxford Avenue as a stop intersection	332-9
18-085		Approving a 20-year tax exemption for a mixed-use mixed income rental project to be constructed by Terzetto NJ Urban Renewal, LLC, an urban renewal entity, pursuant to the Long Term Tax Exemption Law N.J.S.A. 40A:20-1 et seq.	Withdrawn 07-18-2018
18-086	08-15-2018	Supplementing Chapter 332, Article II, amending Section 332-22, Parking prohibited at all times, amending the no parking any time prohibition on Coles Street from Tenth Street to Seventeenth Street	332-22
18-087	08-15-2018	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, repealing Fifteenth Street as a one-way west from Jersey Avenue to Coles Street and amending Section 332-7, Prohibited turns at intersections, prohibiting east bound traffic on Fifteenth Street at Jersey Avenue from turning left, all times	332-5, 332-7

Ordinance Number	Date of Adoption	Description	Disposition
18-088	08-15-2018	Authorizing the conveyance of Block 25001, Lot 68.01, more commonly known by the street address of 174-178 Martin Luther King, Jr. Drive, to Jersey City Redevelopment Agency	Ch. A352
18-089	08-15-2018	Adopting amendments to the zoning map of the Morris Canal Redevelopment Plan	Ch. A352
18-090	08-15-2018	Adopting amendments to the Enos Jones Redevelopment Plan incorporating property north of Ninth Street and thereby eliminating the Ninth and Brunswick Redevelopment Plan	Ch. A352
18-091		Adopting amendments to the Berry Lane Park Zones of the Morris Canal Redevelopment Plan	Defeated 08-15-2018
18-092	08-15-2018	Renaming Martin Luther King Jr. Drive, between Wilkinson and Bostwick Avenues, to Elnora M. Watson Plaza	Ch. A352
18-093	09-12-2018	Rescinding Ordinance 17-111 providing the section of 5th Street from Monmouth Street west to Brunswick Street with the commemorative designation "Nicholas Arcuri Way" and approving an ordinance providing the section of 5th Street from Monmouth Street west to Brunswick Street with the commemorative designation "Pvt. Nick Arcuri Way"	Ch. 352A
18-094	09-12-2018	Authorizing the City of Jersey City to amend a lease agreement from Harwood Corporation for the use of an additional 15 parking spaces located at 808 Pavonia Avenue	Ch. A352
18-095	09-12-2018	Adopting amendments to the right to request a pre-application conference of the Jersey City Land Development Ordinance	Added 345-15.A.3.g
18-096	09-12-2018	Amending and supplementing Chapter 3, Article XII, Department of Health and Human Services, allowing for volunteer community chaplains to assist the residents of Jersey City	Added 3-107.6—3-107.6.4
18-097	09-12-2018	Amending and supplementing Chapter 3, Article X, Department of Housing, Economic Development & Commerce, §§ 3-74, 3-78, and 3-82.2	3-74 Rpld 3-78, 3-82.2 Added 3-78
18-098	09-12-2018	Supplementing Chapter 332, Article III, Parking, standing and stopping, and Article IX, Parking for the disabled, designating a reserved parking space at 61 Duncan Avenue; 527 Garfield Avenue; 25 Nelson Avenue; opposite 190 North Street; 91 Thorne Street and 85 Van Reypen Street and amending the reserved parking space at 257 Randolph Avenue; 82 Sterling Avenue and 218-220 Wegman Parkway and repealing the reserved parking space at 196 North Street; 90-88 Thorne Street and 77-79 Van Reypen Street	332-29, 332-69
18-099	09-12-2018	Supplementing Chapter 332, Article VIII Section 332-58, extending the eastern limits for streets in Zone 16 to the western side of Paterson Plank Road	332-58
18-100	09-12-2018	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Merritt Street/Mulcahy Street and Avenue C as a multi-way stop intersection	332-9
18-101	09-12-2018	Adopting amendments to Chapter 5, Filming and Photography Permits, and Chapter 160, Fees and Charges	5-2, 5-4.A, 5-5.A, 5-7.C, 160-1.A.1
18-102	09-12-2018	Amending and supplementing Chapter 53, Personnel	**Nullified by State of New Jersey Civil Service Commission**

Ordinance Number	Date of Adoption	Description	Disposition
18-103	09-12-2018	Authorizing the acceptance of a gift of an easement for access purposes in connection with the preliminary and final major subdivision of lands designated as Block 21901, Lots 5-10 and Block 24601, Lots 1-12 on the application of Bayfront Redevelopment LLC	Ch. A352
18-104	09-26-2018	Authorizing the execution of a 40-year lease agreement with the Morris County Park Commission regarding the development, management and maintenance of a recreational trail at the Jersey City Reservoir in Boonton	Ch. A352
18-105	09-26-2018	Correcting Ordinance 16-088 which approved a ten-year tax exemption for a mixed-use market-rate condominium project constructed by 380 Newark Realty Urban Renewal, LLC on the property designated as block 9806, Lot 8 on the City's tax map and more commonly known by the street address of 380 Newark Avenue, and correcting the financial agreement authorized by ordinance 16-088	Ch. A352
18-106	09-26-2018	Supplementing Chapter 131, Construction Codes, Uniform, (1) adopting the updated Construction Site Safety Manual, 2018 Edition, (2) incorporating the safety regulations contained therein, by reference, into Chapter 131, and (3) empowering the Construction Code Official to enforce the regulations contained in the Construction Site Safety Manual, 2018 Edition	131-1
18-107	09-26-2018	Supplementing Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, repealing streets from the Zone 2 residential permit parking that are now part of Zone 16	332-58
18-108	09-26-2018	Supplementing Chapter 332, Article III, Parking, standing and stopping, and Article IX, Parking for the disabled, designating a reserved parking space at 142 Arlington Avenue; 84-86 Clerk Street; 563-565 Garfield Avenue; 97-99 Greenville Avenue; 195 Hutton Street; 134-136 Kearney Avenue; 80-82 Lexington Avenue; 265 Liberty Avenue; 103 Lincoln Street; 148 Mallory Avenue; 68 Magnolia Avenue; 15-17 Marion Place; 170 Nelson Avenue; 243 Pearsall Avenue; 290-288 Seaview Avenue; 218 Second Street; 21 Stagg Street; 105 Thorne Street; 214 Van Nostrand Avenue; 224-222 Whiton Street; and 149-151 Wilkinson Avenue and repealing the reserved parking space at 100-102 Orient Avenue; 281 Seaview Avenue and 28-30 Sherman Place	332-29, 332-69
18-109	09-26-2018	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating the intersections of North Street and Columbia Avenue; North Street and Liberty Avenue, and North Street and Terrace Avenue as an all-way stop intersection	332-9
18-110		Amending Chapter 332, Article VI, §§ 332-43 and 332-44 (increases the number of outstanding tickets from three to five before a vehicles may booted or towed)	Withdrawn 09-12-2018

Ordinance Number	Date of Adoption	Description	Disposition
18-111		Repealing City Ordinance 18-057: "An ordinance (1) Reaffirming the acceptance of the Katyn Forest Massacre Memorial as a gift to the City from the Katyn Forest Massacre Memorial Committee, Inc.; (2) Rescinding Ordinance McC-299 which approved the placement of the Katyn Forest Massacre Memorial on the median strip directly opposite 75 Montgomery Street west of the intersection of Montgomery Street & Washington Street; (3) Relocating the Katyn Forest Massacre Memorial to the Eastern Terminus of York Street in perpetuity and (4) Authorizing the City to enter into an agreement with the Katyn Forest Massacre Memorial Committee, Inc., allowing the Committee to partner with the City in stewardship of the Memorial at the Eastern Terminus of York Street and conduct activities as permitted under applicable laws and policies."	Defeated 09-12-2018
18-112		(1) Locating the Katyn Forest Massacre Memorial at the Eastern Terminus of Exchange Place Plaza; (2) repealing Ordinance 18-057 and McC-299; and (3) authorizing the City to enter into an agreement with the Katyn Forest Massacre Memorial Committee, Inc., regarding Joint Stewardship of the Memorial.	Defeated 09-12-2018
18-113	10-10-2018	(1) Authorizing the City to enter into a real estate purchase agreement, environmental agreement, and all other documents necessary for and related to the purchase of certain real property, the demolition of certain structures, and the construction of certain infrastructure improvements within the Bayfront I Redevelopment Area (2) appropriating $170,000,000 therefor and authorizing the issuance of $170,000,000 bonds or notes of the City to finance the cost thereof and (3) authorizing the City to enter into a cooperation agreement with the Jersey City Redevelopment Agency to represent the City in the redevelopment of the Bayfront I Redevelopment Area	Ch. A352
18-114	10-10-2018	Providing for a special emergency appropriation of $14,500,000.00 for the payment of contractually required severance liabilities resulting from the retirement of city employees	Ch. A352
18-115		Supplementing Chapter 160, Section 160-1.SS, Vehicles and traffic (reduces fees for non-residential parking permits from $300.00 per year to $100.00 per year)	Withdrawn 09-26-2018
18-116	10-10-2018	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, designating no parking any time on the north side of Claremont Avenue from Water Street to Greenwich Street and on the south side from Water Street to Mallory Avenue and amending Section 332-23, no stopping or standing, designating both sides of Claremont Avenue from Mallory Avenue to West Side Avenue as no stopping or standing	332-22, 33-23
18-117	10-10-2018	Supplementing Chapter 332, Article II, amending Section 332-9, Stop intersections, designating Sayles Street and Mina Drive as a stop intersection, stopping Mina Drive	332-9
18-118	10-10-2018	Adopting amendments to the Berry Lane Park Zones of the Morris Canal Redevelopment Plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
18-119	10-10-2018	(1) Acknowledging the transfer of the ownership interest in Exeter Thomas McGovern Land Urban Renewal, LLC; (2) amending the financial agreement authorized by Ordinance 17-107 that approved a 20-year exemption for a project to be constructed on the property designated as Block 21508, Lot 2, on the City's tax map and more commonly known by the street address of 295 McGovern Drive; and (3) acknowledging the amended construction schedule of the commercial warehouse project to be constructed by Exeter Thomas McGovern Land Urban Renewal, LLC	Ch. A352
18-120	10-24-2018	Supplementing Chapter 332, Article III, Section 332-22, No parking any time, designating 100 feet in front of 499 Washington Boulevard as no parking any time and amending Section 332-26, No stopping or standing certain hours, repealing the no stopping or standing Monday through Friday, 7:00 a.m. to 6:00 p.m. for the 100 feet in front of 499 Washington Boulevard	332-22, 332-26
18-121	10-24-2018	Supplementing Chapter 332, Article II, Section 332-5, One-Way Streets, designating Tyson Lane as a one-way, clockwise, southbound to westbound and amending Section 332-9, Stop Intersections, designating the intersection of Tyson Lane and Kennedy Boulevard as a stop intersection, stopping Tyson Lane	332-5, 332-9
18-122		Amending and supplementing Chapter 3, Article IX, Department of Public Works, eliminating the Divisions of Automobile Impounding, Demolition and Graffiti Removal and creating a new division, the Division of Enforcement	Tabled 10-24-2018
18-123	11-07-2018	Amending and supplementing Chapter 251, Pornography and Obscenity, repealing the current version in its entirety and adopting a new version	Rpld 251-1—251-8 Added 251-1—251-6
18-124	11-07-2018	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, prohibiting the right turn at the red signal for vehicles at various locations	332-8
18-125	11-07-2018	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating the intersections of Eighth Street and Manila Avenue; Zabriskie Street and Columbia Avenue, and Zabriskie Street and Liberty Avenue as an all-way stop intersection	332-9
18-126	11-07-2018	Adopting amendments to the Journal Square 2060 Redevelopment Plan to amend height standards in Zone 4, and create a new district, Zone 4A	Ch. A352
18-127	11-20-2018	Authorizing the execution of a rights-of-way use agreement between the City of Jersey City and SQF, LLC D/B/A Tilson to permit the installation of antennas and related communications equipment on existing utility poles and street light fixtures and if necessary to install new or replacement street light fixtures and utility poles within certain public rights-of-way for purposes of providing telecommunication services	Ch. A352
18-128	02-14-2019	Authorizing the City to execute a lease agreement for a term of one year with LM Plaza 4A Parking LLC for the use of 29 parking spaces located at 135 Greene Street	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
18-129	11-20-2018	Supplementing Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, amending the time parking is restricted for street cleaning purposes on Fifteenth Street from Marin Boulevard to Erie Street and Sixteenth Street from Marin Boulevard to Jersey Avenue to 1:00 p.m. to 3:00 p.m.	11-20-2018
18-130	11-20-2018	Supplementing Chapter 332, Article VIII, Section 332-66, On-street resident only permit parking, extending Zone 8 on-street resident only permit parking for the streets surrounding New Jersey City University to include Fulton Avenue from Sterling Avenue to West Side Avenue	332-66.D
18-131	12-19-2018	Amending and supplementing Chapter 69, implementing Article VII, West Side Ave Special Improvement District	Added 69-82—69-97
18-132	12-19-2018	Authorizing the conveyance of property and execution of project agreements regarding Powerhouse Redevelopment and agreements in connection with settlement of litigation with Port Authority and other documents in connection therewith	Ch. A352
18-133	11-20-2018	Repealing and replacing Article IV of Chapter 304 (imposing a tax on employers' payroll of non-Jersey City residents for the benefit of Jersey City schools)	Rpld 304-18—304-24 Added 304-18—304-24
18-134		Repealing City Ordinance 18-057: "An Ordinance (1) reaffirming the acceptance of the Katyn Forest Massacre Memorial as a gift to the City from the Katyn Forest Massacre Memorial Committee, Inc.; (2) rescinding Ordinance McC-299 which approved the placement of the Katyn Forest Massacre Memorial on the median strip directly opposite 75 Montgomery Street West of the intersection of Montgomery Street & Washington Street; (3) relocating the Katyn Forest Massacre Memorial to the Eastern Terminus of York Street in perpetuity and (4) authorizing the City to enter into an agreement with the Katyn Forest Massacre Memorial Committee, Inc., allowing the Committee to partner with the City in stewardship of the Memorial at the Eastern Terminus of York Street and conduct activities as permitted under applicable laws and policies." This ordinance will provide that Katyn Forest Massacre Memorial remain at it current location at Exchange Place in perpetuity	Nullified by Court Order 11-16-2018
18-135	12-19-2018	Vacating a portion of Washington Street, Washington Boulevard and First Street rights-of-way located in the Hudson Exchange Redevelopment Area	Ch. A352
18-136	12-19-2018	Authorizing the City of Jersey City to renew the leases of Block 9905, Lots 8 & 9 (174-176 Brunswick Street); Block 30003, Lot 45 (81 Garfield Avenue); Block 3002, Lot 2 (285 Ogden Avenue); Block 5202, Lot 28 (105 Ogden Avenue); and Block 19503, Lot 36 (447 Martin Luther King, Jr. Drive) as part of the City's Adopt-a-Lot Community Garden Program	Ch. A352
18-137	12-19-2018	Amending Ordinance 16-099 which authorized the conveyance of City-owned property to the Jersey City Redevelopment Agency (JCRA) to (1) remove the parkland restrictions on Block 18901, Lots 7, 8, 9, 10 & 12 which were never intended to be part of Berry Lane Park and (2) authorize the City to accept conveyance of the remainder of the property for Berrylane Park	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
18-138	12-19-2018	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Brunswick Street and Sixth Street as a multi-way stop intersection	332-9
18-139	12-19-2018	Adopting amendments to the TOD-North Zone of the Morris Canal Redevelopment Plan	Ch. A352
18-140	12-19-2018	Adopting the Tonnele Avenue Light Industrial Area Redevelopment Plan	Ch. A352
18-141	12-19-2018	Amending and supplementing Chapter 53, Personnel, to require that all those seeking employment as sworn officers of the Divisions of Police and Fire, after January 1, 2020, demonstrate a bona fide domicile in the City of Jersey City for at least two years prior to the date of their qualifying exam	53-1—53-4, 53-8 Added 53-2.1
18-142		Amending Chapter A350 of the Jersey City Municipal Code (Council Rules of Orders) to change the meeting schedule for Council Caucuses and to establish a schedule for agenda review meetings	No Action Taken 11-20-2018
18-143		Repealing and replacing Article IV of Chapter 304, Taxation (imposing a tax on employers' payroll of non-Jersey City residents for the Benefit of Jersey City Schools)	No Action Taken 11-20-2018
18-144	12-19-2018	(1) Reaffirming the acceptance of the Katyn Forest Massacre Memorial as a gift to the City; (2) rescinding Ordinance McC-299 which approved the placement of the Katyn Forest Massacre Memorial on the median strip directly opposite 75 Montgomery Street west of the intersection of Montgomery Street & Washington Street, and (3) ordaining that the Katyn Forest Massacre Memorial remain in its current location within the public right-of-way at the eastern terminus of Exchange Place in perpetuity	NCM
18-145		Adopting amendments to numerous redevelopment plans to remove expiration dates	Defeated 01-09-2019
18-146	01-09-2019	Adopting amendments to the Mixed Use "D" Zone of the Morris Canal Redevelopment Plan	Ch. A352
18-147	01-09-2019	Amending chapter 332, Article III, section 332-22, Parking prohibited at all times, designating 75 feet on the east side of Garfield Avenue, north of Fifty-Fifth Street as no parking any time	332-22
18-148	01-09-2019	Amending Chapter 332, Article II, Section 332-5, One-Way Streets, extending the one-way east on Clendenny Avenue from Marcy Avenue to Route 440	332-5
18-149	01-09-2019	Rescinding ordinance 16-021 and terminating the tax exemption and financial agreement with Ninth Street Two Urban Renewal, LLC	Ch. A352
18-150		Rescinding Ordinance 16-011 and terminating the tax exemption and financial agreement with 305 West Side Avenue Urban Renewal, LLC	Tabled 01-09-2019
18-151	01-09-2019	Amending and supplementing Chapter 304, Article VI, Long Term and Five Year Tax Exemptions; Affordable Housing Trust Fund, to mandate that all recipients of long term and five-year tax exemptions enter into project employment and contracting agreements (PECAs)	304-28
18-152		Amending Chapter 254, Article IV, Section 254-21.3, General requirements for vacant buildings and lots suspending the requirement for registration of vacant buildings and lots	Defeated 01-09-2019

Ordinance Number	Date of Adoption	Description	Disposition
18-153		Amending Chapter 254, Article IV, Section 254-21.3, General requirements for vacant buildings and lots exempting certain owners of lots containing structures or accessory structures from the registration requirements of Section 254-21.3A	Withdrawn 01-09-2019
18-154		Amending Chapter A350 of the Jersey City Municipal Code, Council Rules of Orders, to change the meeting schedule for Council Caucuses and to establish a schedule for agenda review meetings	Withdrawn 12-19-2018
19-001	01-24-2019	Supplementing Chapter 122, Public Assemblies, implementing specific permit requirements for special improvement districts	122-1, 122-4
19-002	01-24-2019	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, designating the west side of Grand Street from Colden Street to Prior Street as no parking 7:00 a.m. to 9:00 a.m. and 3:00 p.m. to 5:00 p.m., school days	332-24
19-003	01-24-2019	Amending Chapter 332, Article III, Section 332-22, No parking any time, designating 25 feet at the entrance to 140 Bay Street as no parking any time	332-22
19-004		Releasing the restriction and reverter on the December 28, 2018 deed conveying land in Secaucus, New Jersey, known as Block 1, Lot 3, to Hudson County	Withdrawn 01-09-2019
19-005		Amending § 160-1, Fees and charges	Withdrawn 01-09-2019
19-006	01-24-2019	Amending § 257-6, Property transfers, and Chapter 332, Article VII, Metered parking, and Article VIII, Permit parking	275-6, 332-48, 332-58
19-007	02-14-2019	Authorizing the City, as tenant, to extend for a one-year term a lease agreement with 18 Ash Street Realty, LLC, as landlord, for space located at 46 State Street, Jersey City	Ch. A352
19-008	02-14-2019	Authorizing the acquisition of Block 22502, Lots 36 and 37, more commonly known by the street addresses of 347-349 and 351-355 Martin Luther King Drive, respectively, from the Jersey City Redevelopment Agency	Ch. A352
19-009	02-27-2019	Adopting amendments to the Colgate Redevelopment Plan regarding research/testing laboratories and permitted uses	Ch. A352
19-010	02-27-2019	Adopting amendments to the Jersey Avenue Light Rail Redevelopment Plan to implement the Saint Lucy Overlay Bonus	Ch. A352
19-011	02-27-2019	Amending Chapter 160, Section 160-1, Fee schedule established, to remove the fee requirement for public defender applications	160-1.A
19-011	02-27-2019	Amending Chapter 160, Section 160-1, Fee schedule established, to remove the fee requirement for public defender applications	160-1.A
19-012		Ratifying the execution and acceptance from Park Avenue Landing, LLC, of a deed of easements for roadway purposes and a temporary construction easement and the execution and acceptance from Liberty Harbor Holding, LLC, of a deed of temporary construction easement in connection with the construction of a new roadway connecting Jersey Avenue & Phillip Street	Withdrawn 02-14-2019
19-013	02-27-2019	Authorizing the transfer of certain City-owned real property, identified on the tax map of the City of Jersey City as Block 15801, Lots 34, 70, 73, 77, 78 and 79.01 to the Jersey City Redevelopment Agency	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
19-014	03-13-2019	Supplementing Chapter 131, Construction Codes, Uniform, adopting the updated Construction Site Safety Manual, 2019 Edition, and incorporating the safety regulations contained therein, by reference, into Chapter 131	131-1
19-015	03-13-2019	Adopting an amendment to the Journal Square 2060 Redevelopment Plan to modify the corner lot bonuses map	Ch. A352
19-016	03-13-2019	Authorizing the City to enter into a month to month tenancy with the Martin Luther King Drive Urban Renewal Joint Venture Partnership for office space located at 380-382 Martin Luther King Drive	Ch. A352
19-017	03-27-2019	An ordinance expanding the boundaries of the Exchange Place Special Improvement District to include the entirety of Paulus Hook Park	69-68, 69-69.A, 69-71.A
19-018	03-27-2019	Amending Chapter 332, Article II, Section 332-9, Stop intersections, designating Oakland Avenue and Jefferson Avenue as a multi-way stop intersection	332-9
19-019	03-27-2019	Adopting amendments to the Adaptive Reuse District and the Residential District of the Garfield Avenue Redevelopment Plan	Ch. A352
19-020		Adopting an amendment to the Journal Square 2060 Redevelopment Plan to amend the fund for Public Arts Bonus to apply to Zone 3	Withdrawn 03-13-2019
19-021	04-10-2019	Amending Chapter 332, Article II, Section 332-9, Stop intersections, designating Ravine Avenue and Abbett Street as a stop intersection, stopping Ravine Avenue	332-9
19-022	04-10-2019	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, repealing the no parking any time prohibition on the west side of Sullivan Drive from Danforth Avenue to 50 feet south of Greico Drive; amending Section 332-24, Parking prohibited certain hours, repealing the no parking school days, 8 am. to 4 p.m. on the east side of Sullivan Drive, Bartholdi Avenue to Lembeck Avenue; repealing Section 332-26, No stopping or standing certain hours, repealing the no stopping or standing, school days, 8 a.m. to 4 p.m. on the east side of Sullivan Drive, Bartholdi Avenue to Lembeck Avenue and amending Section 332-31, Parking restricted for street cleaning purposes, designating no parking for street cleaning purposes on the west side of Sullivan Drive, Lembeck Avenue to Danforth Avenue	332-22, 332-24, 332-26, 332-31
19-023	04-10-2019	Ratifying the execution and acceptance from Park Avenue Landing, LLC of a deed of easements for roadway purposes and a temporary construction easement and the execution and acceptance from Liberty Harbor Holding, LLC of a deed of temporary construction easement in connection with the construction of a new roadway connecting Jersey Avenue and Phillip Street	Ch. A352
19-024	04-10-2019	Authorizing the execution of a grant of easement agreement with Public Service Electric and Gas Company to permit the installation, use, maintenance and repair of a pole anchor on City-owned property known as Block 2304, Lot 16 near the intersection of Congress Street and New York Avenue	Ch. A352
19-025	04-10-2019	Authorizing the City, as tenant, to renew a lease agreement with the County of Hudson for recreational fields at Lincoln Park West	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
19-026		Adopting amendments to Block 15801 of the Transit Oriented Development North Zone in the Morris Canal Redevelopment Plan	Tabled 04-24-2019
19-027	04-24-2019	Adopting amendments to the Canal Crossing Redevelopment Plan regarding the expansion of permitted uses and amendment of the ground floor frontage regulating plan	Ch. A352
19-028	04-24-2019	Authorizing the execution of a rights-of-way use agreement between the City and Extenet Systems, Inc. to permit the installation of antennas and related communications equipment on existing utility poles and street light fixtures and if necessary to install new or replacement street light fixtures and utility poles within certain public rights-of-way for purposes of providing telecommunication services	Ch. A352
19-029	04-24-2019	Amending Chapter 332, Article III, Section 332-27, Angle parking, designating 45-degree reverse-in angle parking on the south side of Mercer Street, Grove Street to Marin Boulevard	332-27
19-030	04-24-2019	Ordinance amending Chapter 19, Payment of Claims, authorizing the use of procurement cards	19-1
19-031	04-24-2019	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, designating the south side of Sussex Street from Van Vorst Street to the western terminus as no parking any time	332-22
19-032	04-24-2019	Amending Chapter 332, Article II, Section 332-9, Stop intersections, designating Hutton Street and Cambridge Avenue as a multi-way stop intersection	332-9
19-033	04-24-2019	Amending Chapter 332, Article II, Section 332-9, Stop Intersections, designating Bright Street and Varick Street as a multi-way stop intersection	332-9
19-034	4-24-2019	Amending Chapter 90, Article I, Animals and Animal Facilities Generally, § 90-3	Rpld 90-3
19-035		Amending and supplementing Chapter 245, Article I, Licensing of peddlers, and Article III, Exemptions, exempting charitable organization from licensing requirements for the sale of pre-packaged goods	Withdrawn 04-10-2019
19-036	04-24-2019	Amending Chapter 307, Article II, to require rideshare vehicles to be equipped with identifying signage	307-37 Added 307-41 Added 307-41—307-43 as 307-42—307-44
19-037	05-08-2019	Accepting a dedication of certain land and improvements located within the Powerhouse Arts District Redevelopment Area at Provost Street between Bay Street and Morgan Street, authorizing the execution of a dedication agreement with 126-142 Morgan Street Urban Renewal, LLC and 134 Bay Street, LLC, the execution of a deed of easement with 126-142 Morgan Street Urban Renewal, LLC and 134 Bay Street, LLC, and the execution of a deed of easement with 126-142 Morgan Street Urban Renewal, LLC	Ch. A352
19-038	05-08-2019	Repealing Ordinances 15-052 and 15-053 imposing restrictions on formula businesses within certain redevelopment areas	345-6, Ch. A352
19-039		Authorizing the City to execute a lease agreement with 2854 Kennedy LLC for 41 parking spaces located at 2854 Kennedy Boulevard	Tabled 05-08-2019

Ordinance Number	Date of Adoption	Description	Disposition
19-040		Authorizing the City to execute a lease agreement with Harwood Corporation for the leasing of 36 parking spaces located at 808 Pavonia Avenue	Tabled 05-08-2019
19-041	05-08-2019	Amending Chapter 332, Article III, Section 332-27, Angle parking, designating angle parking on the north side of Winfield Avenue, Garfield Avenue to Princeton Avenue	332-27
19-042	05-08-2019	Amending Chapter 332, Article II, Section 332-9, Stop intersections, at Clerk Street and Forrest Street	332-9
19-043	05-08-2019	Authorizing the conveyance of City-owned property located at 265 Martin Luther King Drive, a/k/a Block 23405, Lot 26, F/K/A Block 1306, Lot 28B to the Urban League of Hudson County, a non-profit corporation pursuant to N.J.S.A. 40A:12-21(k)	Ch. A352
19-044	05-08-2019	Amending Chapter 260, Section 260-1, Definitions, revising the definition of fair return used in determining hardship application by landlord	260-1
19-045		Adopting amendments to Chapter 3, Article X, Section 3-78, and Chapter 345, Article V, Section 345-60(Z) (supplementing zoning regulations) pertaining to short-term rentals	Tabled 05-08-2019
19-046	05-08-2019	Adopting amendments to Block 15801 of the Transit Oriented Development North Zone in the Morris Canal Redevelopment Plan	Ch. A352
19-047	05-22-2019	Amending Chapter 242, adding Article VIII, prohibiting specified actions constituting a breach of the peace, § 242-11	Added 242-11
19-048		Authorizing the renewal and first amendment of a lease of City-owned property at 392-394 Central Avenue to the United States Postal Service for the purpose of operating a post office	Withdrawn 05-08-2019
19-049	05-22-2019	Amending Chapter 332, Article II, Section 332-5, One-way streets; Section 332-11, Lane use reservations; Article III, Section 332-22, Parking prohibited at all times; and Section 332-23, No stopping or standing, for the Grand Street Improvements Project	332-5, 332-11, 332-22, 332-23
19-050	05-22-2019	Amending Chapter 332, Article II, Section 332-9, Stop intersections, designating Wayne Street and Gray Street as a stop intersection, stopping Gray Street	332-9
19-051	05-22-2019	Amending Chapter 332, Article IX, Parking for the Disabled, designating, amending and/or repealing a reserved parking space at various locations throughout the city	332-29, 332-69
19-053	06-12-2019	Providing the section of Baldwin Avenue from Pavonia Avenue south to Magnolia Avenue with the commemorative designation "Rev. J.V. Pagnotta Way"	Ch. A352
19-055	06-12-2019	Amending Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, prohibiting the right turn at the red signal westbound Jefferson Avenue to northbound Summit Avenue, 8:00 a.m. to 4:00 p.m., schooldays	332-8
19-058		Amending Chapter 160, SS (Chapter 332, Vehicles and Traffic) to establish a fee for itinerant food vendor parking within the itinerant food vendor parking zone	Withdrawn 05-22-2019

Ordinance Number	Date of Adoption	Description	Disposition
19-059		Amending Chapter 332, Article VII, Section 332-57, On street permit parking zone, to (1) Remove York Street from the itinerant food vendor parking zone, (2) Add portions of Jersey Avenue, John F. Kennedy Boulevard and Bergen Avenue to the itinerant food vendor parking zone and (3) Changing the hours for itinerant food vendor parking within the itinerant food vendor parking zone to 5:00 a.m. until 9:00 p.m.	Withdrawn 05-22-2019
19-060	06-12-2019	Authorizing the City to execute a lease agreement with Harwood Corporation for 36 parking spaces located at 808 Pavonia Avenue	Ch. A352
19-061	06-12-2019	Authorizing the execution of a rights-of-way use agreement between the City and New Cingular Wireless PCS, LLC to permit the installation of antennas and related communications equipment on existing utility poles and street light fixtures and if necessary to install new or replacement street light fixtures and utility poles within certain public rights-of-way for purposes of providing telecommunication services	Ch. A352
19-062	06-12-2019	Granting permission to 972-976 Summit Ave Development, LLC, its successors and assigns to construct and install planters, steps and stoops approximately 118 feet in length on Lincoln Street and 105 feet in length on Summit Avenue and four feet in depth along the public right-of-way on Lincoln Street and 3.2 feet in depth along the public right-of-way of Summit Avenue	Ch. A352
19-063	06-26-2019	Ordinance to exceed the municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	Ch. A352
19-064	06-26-2019	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Monmouth Street and Fifth Street; Pavonia Avenue and W Hamilton Place; Tenth Street and Monmouth Street and Warren Street and Second Street as all-way stop intersections	332-9
19-065	06-26-2019	Adopting amendments to § 3-51 of the Municipal Code to require all contractors and subcontractors on construction and infrastructure contracts to participate in an apprenticeship training program	Added § 3-51.J
19-066	06-26-2019	Amending Chapter 27, Defense and Indemnification, limiting the City's obligation to defend and indemnify City employees in cases of criminal conduct, discrimination, retaliation, harassment and intentional torts	27-4, 27-7
19-068	07-17-2019	Amending Chapter 3, Article XI, Department of Public Safety, to (1) clarify the qualifications for the positions of Director and Assistant Director of Public Safety, (2) clarify the responsibilities of the positions of Director and Assistant Director of Public Safety and (3) create a table of organization for the Division of Police pursuant to N.J.S.A. 40A:14-118	3-83—3-85
19-070	07-17-2019	Changing the designation of the redevelopment entity responsible for carrying out the construction of the County Courthouse Complex pursuant to the Journal Square 2060 Redevelopment Plan from the Jersey City Redevelopment Agency to the Hudson County Improvement Authority	Ch. A352
19-071	06-26-2019	Releasing the reverter in the December 28, 2006 deed conveying land in Secaucus, New Jersey, known as Block 1, Lot 3, to Hudson County	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
19-072	09-11-2019	Authorizing the conveyance of Block 17905, Lots 18, 19, 20, 21 and 22 and Block 18602, Lots 3 and 8, more commonly known by the street addresses of 612-616 Communipaw Avenue, 91-93 Harrison Avenue and 574-582 Communipaw Avenue, respectively, to the Jersey City Redevelopment Agency	Ch. A352
19-073	06-26-2019	Authorizing a lease agreement between the City of Jersey City and Verizon New Jersey Inc. for property located at 71 Madison Avenue	Ch. A352
19-076	07-17-2019	Amending Chapter 160, Section 160-1, Fees and charges, Subsection SS, to establish fees for itinerant food vendor parking within the itinerant food vendor parking zones	160-1.SS
19-077	06-25-2019	Amending Chapter 3, Article X, Section 3-78, Division of Housing Preservation, and Chapter 345, Article I, Section 345-6, Definitions, and Article V, Section 345-60.Z, Supplementary Zoning Regulations, and adopting Chapter 255, Short-Term Rentals	3-78, 345-6, 345-60.Z Added 255-1—255-7
19-079	08-14-2019	Authorizing the conveyance of Block 16901, Lot 17, Block 22601, Lot 36 and Block 11401, Lot 13, more commonly known by the street addresses of 51 Crescent Avenue, 342 Martin Luther King Drive and 174 Newark Avenue, respectively, to Jersey City Redevelopment Agency	Ch. A352
19-080	07-17-2019	Authorizing the execution of a deed to release certain use restrictions on Block 15702, Lots 16—19 (formerly, Block 375, Lots 56, 58, 60—64) within the Jersey City Medical Center site	Ch. A352
19-081	07-17-2019	Amending Chapter 3, Article XV, Department of Recreation, to change the Department of Recreation to "the Department of Recreation and Youth Development" and to reorganize the Department in order to fulfill its new mission	Ch. 3, Art. XV (tit.) 3-120
19-082	07-17-2019	Adopting amendments to Chapter 10, Shade Tree Committee, and Chapter 321, Trees	10-1—10-5 321-1, 321-6.B
19-084	07-17-019	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, and Section 332-24, Parking prohibited certain hours, on Columbus Drive	332-22, 332-24
19-085	07-17-2019	Amending Chapter 3, Article X, Department of Housing, Economic Development and Commerce, to create a revolving relocation assistance fund pursuant to N.J.S.A. 20:4-4.1a	3-78 Added 3-77
19-087	07-17-2019	Amending Chapter 332, Article VIII, Permit Parking	332-58
19-088	07-17-2019	Amending Chapter 3, Administration of Government, to create the Department of Finance	3-42, 3-135 Rpld 3-43, 3-60.4—3-60.6, 3-140 Added 3-110—3-113.3
19-089	07-17-2019	Amending and supplementing Chapter 69, implementing Article VII, West Side Ave Special Improvement District	69-83, 69-85 69-88—69-90, 69-95
19-090	07-17-2019	Vacating Cook Street and a portion of Hoboken Avenue	Ch. A352
19-091	08-24-2019	Authorizing the City to execute a lease with the Garfield Avenue South Block Association for the use of Block 3003, Lot 45, more commonly known by the street address of 81 Garfield Avenue, for use as a community garden	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
19-093	08-14-2019	Amending Chapter 3, Article VI, Department of Administration, to require that the Office of Diversity and Inclusion review all requests for proposals (RFPs) prior to the award of a contract	§ 3-54.1.B
19-095	09-25-2019	Adopting amendments to the Journal Square 2060 Redevelopment Plan to amend the zoning regulations for Zone 4, "B" bonus corner lot regulations, for the property at 96-110 Tonnelle Avenue	Ch. A352
19-096	08-14-2019	Amending Chapter 332, Article IX, designating, amending and/or repealing a reserved parking space at various locations throughout the city	332-29, 332-69
19-097	08-14-2019	Amending Chapter 332, Article III, Subsection 332-28.1.C, Electric vehicle charging areas, designating parking for electric or plug-in hybrid vehicles on Marin Boulevard	332-28.1.C
19-100	08-14-2019	Amending Chapter 332, Article XIII, Section 332-31, Parking restrictions for street cleaning purposes, repealing the east side of Grove Street; Grand Street to Columbus Drive and both sides of Montgomery Street, Marin Boulevard to Hudson Street	332-31
19-101	08-14-2019	Amending Chapter 332, Article VII, Section 332-57, On-street permit parking zone, to (1) eliminate the itinerant food vendor parking zone on Grand Street and York Street, (2) create a new itinerant food vendor parking zone on Montgomery Street and Bergen Avenue and (3) change the hours for itinerant food vendor parking within the itinerant food vendor parking zones to 5:00 a.m. until 9:00 p.m.	332-57
19-102	09-11-2019	Amending chapter 332, Article III, Section 332-27, Angle parking, designating angle parking on the north side of Winfield Avenue, Ocean Avenue to Garfield Avenue	332-27
19-103	09-11-2019	Amending Chapter 332, Article IX, Parking for the Disabled, amending the reserved parking space at various locations throughout the City	332-69
19-104	09-11-2019	Amending Chapter 332, Article VII, Section 332-48, Designation of parking spaces, amending the hours the parking meters in Lot 9 (aka 52) are in effect	332-48
19-105	09-11-2019	Amending Chapter 3, Article XVIII, Department of Human Resources, to restructure the Department of Human Resources	3-134, 3-135 Rpld 3-42.S, 3.60.3, 3-136—3-139 Added 3-136—3-139
19-106	09-11-2019	Amending Chapter 53, Sections 53-6, Vacation and other compensation, and 53-11, Fixed salaries, of the Jersey City Municipal Code	53-6.D, 53.11
19-108	090-11-2019	Amending Chapter 242, Article V, implementing regulations regarding the use of electric scooters	Ch. 242, Art. VI (tit.) 242-9.3 Rpld 242-9.4 Added 242-9.2, 242-9.4
19-109	09-11-2019	Amending Chapter 332, Article III, Parking, Standing and Stopping	323-23
19-113	09-11-2019	Naming the Main Library of the Jersey City Free Public Library System located at the northeast corner of Montgomery Street and Jersey Avenue the "Priscilla Gardner Main Library"	Ch. A352
19-116	09-25-2019	Authorizing the execution of a deed of easement with Parks at VL South LLC affecting Block 6005, Lot 2 A/K/A the Gateway Plaza Park and Block 6902, Lot 16 A/K/A the Van Leer South Park	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
19-117	09-25-2019	Amending Chapter 332, Article VIII, Section 332-66, On-street resident only permit parking, extending Zone 8 to include Dwight Street between Kennedy Boulevard and Bergen Avenue	332-66.D
19-118	09-25-2019	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Reservoir Avenue and Nesbitt Street as a stop intersection, stopping Nesbitt Street	332-9
19-119	09-25-2019	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, repealing no parking any time on the east side of West Street and amending Section 332-31, Parking prohibited for street cleaning purposes, designating parking restrictions for street cleaning purposes on the east side of West Street	332-22, 332-31
19-120	09-25-2019	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, prohibiting the right turn at the red signal at Summit Avenue and Manhattan Avenue; all times	332-8
19-121	09-25-2019	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Maple Street and Van Horne Street; Maple Street and Halladay Street; and Halladay Street and Lafayette Street as all-way stops	332-9
19-122	09-25-2019	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, prohibiting the right turn at the red signal on westbound Communipaw Avenue at Garfield Avenue and northbound Garfield at Communipaw Avenue; all times	332-8
19-123	09-25-2019	Amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, extending Zone 10 residential permit parking to include Dwight Street, Fulton Avenue and Stegman Street, Garfield Avenue to Bergen Avenue	332-58
19-124	09-25-2019	Amending Chapter 332, Article VII, Section 332-48, Designation of parking spaces, and 332-58.1, Parking restrictions in municipal lots	332-48, 332-58.1
19-125	09-25-2019	Amending Chapter 3, Article III (Mayor), and Article IX (Department of Public Works) to transfer supervision of the Mary McLeod Bethune Life Center to the Office of Cultural Affairs	3-19.6 3-66
19-126	09-25-2019	Amending Ordinance 19-079 to correct the block, lot and address of the property conveyed to the Jersey City Redevelopment Agency	Ch. A352
19-127	09-25-2019	Granting permission to LMV Warren Street Holdings, LP, its successors and assigns, to make private improvements in the public rights-of-way of Warren Street and Steuben Street adjacent to the property located at 321 Warren Street, also known on the tax maps of the City of Jersey City as Block 13002, Lot 13.01	Ch. A352
19-129	09-25-2019	Authorizing the City to enter into a lease/purchase agreement as lessee with JCPSHQ Investors, LLC, as lessor, for a public safety building to be constructed on Block 22601, Lots 1 through 5 at the northeast corner of the intersection of Martin Luther King Drive and Kearny Avenue	Ch. A352
19-131	09-25-2019	Amending and supplementing Chapter 3, Administration of Government, and Chapter 188, Housing Accommodations and Affordable Housing Compliance	3-74 188-7—188-9, 188-13.1, 188-14 Rnbd 188-12 as 188-10 Rnbd 188-10, 188-11 as 188-11, 188-12 Added 3-77.1

Ordinance Number	Date of Adoption	Description	Disposition
19-132	10-10-2019	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Sterling Avenue and McAdoo Avenue, and Terhune Avenue and Fowler Avenue as multi-way stop intersections	332-9
19-134	10-10-2019	Authorizing an eighth amendment to the City's lease with Journal Square Plaza Urban Renewal Associates for One Journal Square Plaza, Block 586.5, Lot Plot B to amend the term	Ch. A352
19-135	10-10-2019	Supplementing Section 287-4, authorizing a lien against property for the cost of removing solid waste	287-4
19-136	10-10-2019	Supplementing Chapter 332, Article III, creating Section 332-24.1, Limited duration parking	Added 332-24.1
19-139	10-23-2019	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, designating Crescent Avenue and Astor Place as a multi-way stop intersection	332-9
19-140	10-23-2019	Amending Chapter 332, Article III, Section 332-24, No parking certain hours, on the west side of James Avenue	332-24
19-141	10-23-2019	Adopting amendments to the Highway Mixed Use Zone of the Water Street Redevelopment Plan	Ch. A352
19-142	10-23-2019	Adopting amendments to the Powerhouse Arts District Redevelopment Plan regarding the amendment of permitted commercial space and the expansion of permitted uses in the Rehabilitation Zone	Ch. A352
19-143	10-23-2019	Amending Chapter 345, Article IV, Section 345-33, Fees, and Chapter 160, Fees and Charges	160-1.A, UU 345-33.B
19-145	10-23-2019	Adopting amendments to create the Adaptive Reuse Overlay Zone "G" in the Morris Canal Redevelopment Plan	Ch. A352
19-146	11-14-2019	Adopting amendments to the NJCU West Campus Redevelopment Plan	Ch. A352
19-147	11-14-2019	Adopting amendments to the Neighborhood Commercial District Zone	345-45
19-148	10-23-2019	Amending Chapter 53, Personnel, Section 53-11, Fixed salaries	53-11
19-149	10-23-2019	Amending Chapter 332, Article IX, designating, repealing and/or amending a reserved parking space at various locations throughout the City	332-29, 332-69
19-150	11-14-2019	Amending Chapter 332, Article VIII, Permit Parking, limiting the issuance of on-street residential parking permits to properties within the Journal Square 2060 Redevelopment Plan Area available for occupancy on or before December 31, 2019, and (2) amending Chapter 257, Property Transfers, to require disclosure of this prohibition to residents of these buildings	332-58.E, F Added 257-6.E, F
19-151	11-14-2019	Amending Chapter 287, Article I, Section 287-8, Refuse Receptacles, Approved Containers and Plastic Bags, to allow property owners or their agents to obtain a permit to place refuse receptacles on the curb on the day before collection earlier than 7:00 p.m. but not before 4:00 p.m.	287-8.H Added 287-8.J
19-152	11-14-2019	Supplementing Chapter 332, Article II, Section 332-9, Stop Intersections, designating Prescott Street and Park Street as all-way stops	332-9
19-153	11-14-2019	Amending Chapter 332, Article III, Section 332-27, Angle parking, designating angle parking on Whitman Avenue, north of Sip Avenue	332-27
19-155	12-04-2019	Rescinding Ordinance 16-011 and terminating the tax exemption and financial agreement with 305 West Side Avenue Urban Renewal, LLC	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
19-158	12-04-2019	Banning the sale and/or distribution of electronic smoking devices that deliver flavored tobacco products	Rpld 316-1, 316-2 Added 316-1—316-4
19-159	12-04-2019	Supplementing Chapter 3, Administration of Government, creating a Census Committee to increase community awareness and participation in the forthcoming census and in all decennial censuses thereafter	Added 3-141
19-160	12-18-2019	A franchise ordinance granting permission to 322-333 Manhattan Avenue, LLC, its successors and assigns, to make private improvements to and exclusively utilize a portion of lands within the roadway area of the Manhattan Avenue public right-of-way located adjacent to 330 Manhattan Avenue, Jersey City, New Jersey	Ch. A352
19-162	12-18-2019	Amending Chapter 332, Article VIII, Permit Parking, to create metered parking at the municipal parking lot located at 477-79 Central Avenue (northwest corner of Central Avenue & Congress Street) and amending Chapter 160, Section 160-1.SS, Chapter 332, Vehicles and Traffic, to make all the parking fees for the municipal parking lots along Central Avenue the same	160-1.SS, 332-58.1.B
19-163	12-18-2019	Authorizing the City to renew the leases of River View Community Garden for the use of Block 3002, Lot 2, more commonly known as 285 Ogden Avenue; Brunswick Community Garden for the use of Block 389, Lots 19 and 20, more commonly known as 174-176 Brunswick Street; Ogden's End Community Garden for the use of Block 5202, Lots 28 and 29, more commonly known as 105 Ogden Avenue; and Mandela Community Garden for the use of Block 1905, Lot 36, more commonly known as 447 Martin Luther King, Jr. Drive for community gardens	Ch. A352
19-165	01-08-2020	Amending Chapter 3, Article XIV, Department of Law	3-116
19-166	01-08-2020	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, prohibiting the right turn at the red signal at all approaches at Martin Luther King Drive and Claremont Avenue, school days, 8:00 a.m. to 4:00 p.m.	332-8
19-167	01-08-2020	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, designating 20 feet opposite 73 Audubon Avenue as no parking any time	332-22
19-168	01-08-2020	Amending Chapter 332, Article III, Section 332-27, Angle parking, designating angle parking on the north side of Lembeck Avenue from Princeton Avenue to Garfield Avenue and on the south side of Pearsall Avenue from Ocean Avenue to Garfield	332-27
19-169	01-08-2020	Supplementing Chapter 332, Article IX, Parking for the disabled, designating, repealing and/or amending a reserved parking space at various locations throughout the City	332-29, 332-69
19-170	01-08-2020	Amending Chapter 160, § 160-1.SS, (Chapter 332, Vehicles and Traffic) to establish fees for electric vehicle charging stations and transaction fees for park-mobile parking meters	160-1.SS
19-171	01-08-2020	Amending Chapter 254, Property Maintenance, to implement regulations regarding use and maintenance of donation drop-off boxes	Added 254-133

Ordinance Number	Date of Adoption	Description	Disposition
20-001	01-23-2020	Calendar Year 2020 ordinance to exceed the municipal budget appropriations limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	NCM
20-002	01-23-2020	Amending Chapter 332, Article III, Section 332-22, No parking any time, on Columbus Drive	332-22
20-003	01-23-2020	A franchise ordinance granting permission to 400 Claremont Urban Renewal, LLC, its successors and assigns, to make private improvements in the public right-of-way of Yale Street and Claremont Avenue adjacent to the property located at 17-19 and 53-63 Yale Avenue and 400 and 148-430 Claremont Avenue, Jersey City, New Jersey, formerly known on the tax maps of the City of Jersey City as Block 21801, Lots 4, 5, 8, 9, 10, 15, 16, 17, 18 and 19, now known as Block 21801, Lot 4.01	Ch. A352
20-004	01-23-2020	Amending Chapter 160, Fees and Charges, establishing a revised fee schedule for the registration of vacant buildings and vacant lots and amending Chapter 254, Property Maintenance, revising and supplementing the regulations for the registration and maintenance of vacant buildings and vacant lots	160-1.X, 254-21.2, 254-21.8 Rpld 254-21.9
20-005	01-23-2020	Amending and supplementing Chapter 160, Fees and Charges	160-1.CC.2, UU
20-006	02-13-2020	Supplementing Chapter 332, Article II, Section 332-8, prohibiting the right turn at the red signal eastbound Columbus Drive to southbound Brunswick Street, school days, 8:00 a.m. to 4:00 p.m.	332-8
20-007	02-13-2020	Supplementing Chapter 332, Article II, amending Section 332-9, Stop intersections, designating Water Street and Fisk Street as a stop intersection, stopping Water Street	332-9
20-008	02-13-2020	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, on Van Winkle Avenue from Tonnele Avenue to Senate Place	332-22
20-009	02-13-2020	Amending Chapter 332, Article III, Section 332-24, No parking certain hours, on Washington Street in the vicinity of PS #16	332-24
20-010	03-11-2020	Amending Chapter 218, Article I, Security Service and Security Cameras, to mandate that multiple dwellings consisting of 75 or more units and which are dedicated to senior citizen housing or for housing for the disabled, must furnish on-site security personnel, 24 hours a day, seven days a week	Added 218-1.1
20-011	02-13-2020	Authorizing the City, as tenant, to extend for a one-year term a lease agreement with 18 Ash Street Realty, LLC, as landlord, for space located at 46 State Street, Jersey City	Ch. A352
20-013	02-26-2020	Authorizing the imposition of a deed notice on property known as Block 11603, Lot 41 a/k/a First Street Park that is owned by the "A" Condominium Association, Inc. and dedicated to the City of Jersey City by deed of easement as a public park	Ch. A352
20-014	02-26-2020	Adopting amendments to the Land Use Map of the Liberty Harbor Redevelopment Plan	Ch. A352
20-016	02-26-2020	Amending Chapter 332, Article III, Section 332-26, No stopping or standing certain hours, repealing no stopping or standing on the north side of First Street at four electric charging stations	332-26

Ordinance Number	Date of Adoption	Description	Disposition
20-017	02-26-2020	Amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, extending Zone 10 residential permit parking to include Bergen Avenue, Fulton Avenue to Stegman Street and Van Cleef Street, Fulton Avenue to Dwight Street	332-58
20-018	02-26-2020	Amending Chapter A350, Rule XVII, Manner of Addressing Council, to (1) impose a three-minute limitation on all members of the public wishing to speak during both hearings on 2nd reading ordinances and during the public speaking portion of the meeting, and (2) to impose a five-minute limitation on all members of the public wishing to speak on the adoption of the budget and on any amendments to the budget	A350-19.C
20-019	02-26-2020	A franchise ordinance granting permission to AIJ Central Avenue LLC, for a one-foot building cornice encroachment at Lot 28 in Block 2802, also known as 345 Central Avenue into the right-of-way	Ch. A352
20-020	02-26-2020	Amending Chapter 304, Article I, Parking Tax, to impose the Mass Transit Access Parking Tax as authorized by recent amendments to N.J.S.A 40:48C(6)	304-1—304-4
20-021	02-26-2020	Directing the Hudson County Clerk to place a non-binding referendum on the ballot of the next ensuing general election to be held on November 3, 2020, as to whether the Municipal Council should authorize the imposition of an annual tax levy for arts and culture	Ch. A352
20-024	03-11-2020	Supplementing Chapter 151, Article I, Drug-Free School Zones	151-1
20-026	05-06-2020	Vacating 17th Street pursuant to Jersey Avenue Park Redevelopment Plan	Ch. A352
20-027	03-12-2020	Adopting amendments to Chapter 304, Article V, Hotel Occupancy Tax and Hotel Labor Peace, to include transient accommodations	Ch. 304, Art. V (tit.) 304-25—304-27.2
20-028	03-11-2020	Amending Chapter 160, § 160-1, Fee schedule established, increasing the fee for registration of foreclosure property	160-1.X
20-030	04-15-2020	Amending certain provisions of City Ordinance No. 16-131 providing for the refunding of all or a portion of the City's General Improvement Bonds (Recovery Zone Economic Development Bonds - Direct Payment), Taxable Series 2010C appropriating an amount not exceeding $8,000,000 therefor and authorizing the issuance of not to exceed $8,000,000 general improvement refunding bonds of the City for financing the cost thereof	Ch. A352
20-031	04-15-2020	Supplementing Chapter 332, Article IX, Parking for the disabled, designating a reserved parking space at 296 New York Avenue	332-29, 332-69
20-032	05-06-2020	Providing for the special assessment of the cost of certain public infrastructure improvements within and nearby Coles Street Park, and authorizing the execution of certain agreements in connection therewith	Ch. A352
20-034	05-20-2020	Authorizing the execution of a first amendment to a rights-of-way use agreement between the City of Jersey City and Cross River Fiber LLC to permit the installation of high capacity fiber optic cable and equipment for mobile telecommunications on existing utility poles and to install new utility poles within certain public rights-of-way for purposes of providing telecommunication services	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
20-035	05-06-2020	Supplementing Chapter 332, Article IX, Parking for the disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
20-036	05-06-2020	Amending Chapter 260, Rent Control, (1) imposing a rent freeze on all units subject to rent control during the current public health emergency declared by the Governor of New Jersey; and (2) prohibiting any collection of a penalty for a late payment of rent as a result of the current public health emergency declared by the Governor	260-1, 260-3
20-037	05-06-2020	Authorizing the Business Administrator to execute a consent assignment and assumption agreement between the City, Muhlenberg Senior Housing Urban Renewal LLC and Muhlenberg Gardens Urban Renewal, LLC effectuating the transfer and assignment of the property and the tax exemption held by Muhlenberg Senior Housing Urban Renewal LLC to Muhlenberg Gardens Urban Renewal, LLC pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law N.J.S.A 55:16-1 et seq.	Ch. A352
20-039	06-10-2020	Adopting amendments to the Mixed Use B Zone of the Morris Canal Redevelopment Plan	Ch. A352
20-041	06-24-2020	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, multi-way stops at various intersections in Wards E and F; and Article III, Section 332-28.1.C, Electric vehicle charging areas	332-9, 332-28.1
20-042	06-24-2020	Consenting to the transfer and assignment of the property and tax exemption held by 720-726 Bergen Avenue Urban Renewal, LLC to 280 Fairmount Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	Ch. A352
20-044	06-24-2020	Adopting amendments to the Land Development Ordinance including the adoption of a Flood Overlay Zone (F Zone) and green area ratio (GAR) and amendments to definitions and checklists	345-6, 345-31 Added 345-60.4, 345-66.1
20-045	06-24-2020	Adopting the Traffic Control Manual (2020 Edition) and incorporating the safety regulations contained therein by reference into Chapter 296	Ch. 296 (note) Rpld 332-19
20-046	06-24-2020	Amending Chapter 332, Article III, Section 332-22, No parking any time; Section 332-23, No stopping or standing; Section 332-26, No stopping or standing certain hours; and Section 332-31, Parking restrictions for street cleaning purposes, to accommodate protected bicycle lanes on various roadways	332-22, 332-23, 332-26, 332-31
20-047	06-24-2020	Amending the boundaries of the Exchange Place Special Improvement District to remove Block 13103	69-69, 69-71
20-048	07-15-2020	Authorizing the execution of a deed of easement with COA 99 Hudson, LLC; 99 Hudson Condominium Association Inc.; the Planning Board of the City of Jersey City; and the City of Jersey City affecting Block 14507, Lot 1 a/k/a 99 Hudson Street and 100 Greene Street	Ch. A352
20-049	07-15-2020	Amendments to Sections 345-16 and 345-33 of the Land Development Ordinance in response to COVID-19 regarding temporary removal of thresholds for minor site plan review	345-16, 345-33

Ordinance Number	Date of Adoption	Description	Disposition
20-051	07-15-2020	Ratifying the approval of: 1) the sale of a 114-unit project based Section 8 family housing development to Van Wagenen II Urban Renewal, LLC pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law, N.J.S.A. 55:16-1 et seq. and (2) the transfer and assignment of the project's tax exemption	Ch. A352
20-052	07-15-2020	Ratifying the approval of: 1) the sale of a 40-unit project based Section 8 family housing development located at 277-283 Bergen Avenue, Jersey City to Bergen Manor Urban Renewal, LLC, pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law, N.J.S.A. 55:16-1 et seq. and (2) the transfer and assignment of the project's tax exemption	Ch. A352
20-053	07-15-2020	Ratifying the approval of: 1) the sale of a 25-unit project based Section 8 family housing development located at 2348-2354 John F. Kennedy Blvd., Jersey City to Kennedy Manor Urban Renewal, LLC, pursuant to the Limited-Dividend Nonprofit Housing Corporations or Associations Law, N.J.S.A. 55:16-1 et seq. and (2) the transfer and assignment of the project's tax exemption	Ch. A352
20-054	07-15-2020	Repealing Chapter 296, Streets and Sidewalks, of the Jersey City Municipal Code in its entirety and adopting a new version	Rpld §§ 296-1.1, 296-1.2, 296-2—296-6, 296-8—296-18, 296-20—296-33, 296-36, 296-38—296-67, and 296-71—296-85 Added 296-1.1—296-1.9, 296-1.12—296-1.16, 296-2.1—296-2.15, 296-3.1—296-3.14, 296-3.16—296-3.21, 296-4.1—296-4.8, 296-5.1—296-5.8, 296-6.1—296-6.3, 296-7.1—296-7.7, 296-8.1—296-8.11
20-055	07-15-2020	Authorizing the execution of two deeds of easement by and between 100 Hoboken Avenue Partners, LLC; VL North, LLC; and the City of Jersey City affecting Block 6001, Lot 40 and Lot 10 a/k/a 100 Hoboken Avenue and 110 Hoboken Avenue	Ch. A352
20-056	08-12-2020	Amending Chapter 332, Article III, Section 332-22, No parking any time; Section 332-23, No stopping or standing; Section 332-31, Parking restrictions for street cleaning purposes, and 332-48, Designation of parking spaces, to accommodate protected bicycle lanes on Bergen Avenue	332-22, 332-23, 332-31, 332-48.A
20-057	08-12-2020	A street vacation ordinance granting permission to Dey Street Properties LLC, its successors and assigns to make private improvements to and exclusively utilize the lands within the Charlotte Avenue right-of-way, Jersey City, New Jersey	Ch. A352
20-058	08-12-2020	Amending Chapter 332, Article III, Parking, standing and stopping, to create a Street Cleaning Review Commission and amend the street cleaning schedule	332-31 Added 332-31.1
20-059	08-12-2020	Amending the Land Development Ordinance, Chapter 345, Section 345-68, for the signage requirements for commercial uses on the 2nd through 5th floor in the Neighborhood Commercial Zone	345-68
20-060	08-12-2020	An ordinance amending Chapter 160, § 160-1.P (Chapter 175, Food Handling Establishment) to waive the temporary food sponsor fee for non-profit organizations for the duration of the COVID-19 state of emergency	160-1.P

Ordinance Number	Date of Adoption	Description	Disposition
20-061	09-10-2020	Adopting an amendment to the Scattered Site Redevelopment Plan to expand the boundaries of the Scattered Site Redevelopment Area	Ch. A352
20-062	09-10-2020	Implementing Chapter 67, Article II, Exchange Place Pedestrian Mall	Added 67-11—67-20
20-063	09-23-2020	Amending Chapter 160, Subsection SS, Chapter 332, Vehicles and Traffic, and Chapter 175, Food-Handling Establishments, Article II, Mobile Food Vendors, to establish parking fees and regulations for food truck vendors	160-1.SS Added 175-13, 175-14
20-064	09-10-2020	Amending Chapter 175, Article III, Section 21, to waive licensing or permitting fees for businesses operated occasionally by individuals under 18 years of age	Added 175-21.C
20-065	09-10-2020	Amending Chapter 3, Article VI, Department of Administration, reorganizing the Division of Internal Audit within the Department of Administration	3-60.9
20-066	09-10-2020	Amending Chapter 160, Fees, and Chapter 332, Vehicles and Traffic, permitting residents within permit parking zones to purchase visitor parking permits and waiving fees for residents of the Jersey City Housing Authority	160-1.SS, 332-58.F(7)
20-067	09-10-2020	Amending Chapter 260, Rent Control (1) imposing a rent increase freeze on units subject to municipal regulation excluding owner-occupied homes with two to four units of housing and (2) prohibiting any collection of a penalty for a late payment of rent as a result of the current public health emergency declared by the Governor	260-1, 260-3.A
20-068	09-10-2020	Amending Chapter 322, Article III, Section 332-22, Parking prohibited at all times; and amending Section 332-23, No stopping or standing, to establish a no parking area on Claremont Avenue	332-22, 332-23
20-069	09-10-2020	Amending Chapter 332, Article III, Section 332-22, No parking any time, on Pearl Street	332-22
20-070	09-10-2020	Amending Chapter 332, Article III, Section 332-27, Angle parking, on Mallory Avenue	332-27
20-071	09-10-2020	Amending the Jersey City Land Development Ordinance, Chapter 345, Article IV, Section 33, Fees	345-33.B
20-072	09-23-2020	Adopting amendments to the Bright Street Redevelopment Plan regarding accessory uses in Zone 3: Residential Infill	Ch. A352
20-073	09-23-2020	Adopting an amendment to the zoning map expanding the Restaurant Overlay Zone to include Mallory Avenue in Jersey City	Ch. A352
20-074	09-23-2020	Amending and supplementing Chapter 3, Administration of Government; Chapter 222, Noise; Chapter 236, Parking Lots and Garages; Chapter 239, Parks; Chapter 242, Peace and Good Order; Chapter 254, Property Maintenance; Chapter 263, Retail and Commercial Premises; Chapter 287, Solid Waste; Chapter 321, Trees; and Chapter 345, Zoning	3-70.1, 3-70.2, 3-78.B, 3-82.1, 3-83, 222-5.D, 236-21.1, 239-16, 254-4, 254-16, 254-20, 254-21, 254-21.2—254-21.4, 254-21.7, 254-43, 254-107, 254-131, 287-31, 287-48, 287-57, 321-9 Rpld 3-19.1, 3-19.2, 3-19.2.1, 3-71.7, 3-71.8, 3-119.1 Rnbd 3-19.5, 3-19.6 as 3-19.1, 3-19.2 Added 3-93—3-93.4, 242-12, 23-11, 263-11, 345-76.J

Ordinance Number	Date of Adoption	Description	Disposition
20-075	09-23-2020	Amending Chapter 332, Article VIII, Section 332-66, On-street resident only permit parking, extending Zone 8 to include Woodlawn Avenue between West Side Avenue and Kennedy Boulevard	332-66.D
20-076	09-23-2020	Amending Chapter 332, Article II, Section 332-5, One-way streets, and Section 332-7, Prohibited turns at intersections, of the Jersey City Code to convert Washburn Street to one-way eastbound	332-5, 332-7
20-077	09-23-2020	Amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, amending Zone 10 to include Vreeland Terrace and extend the Garfield Avenue limits	332-58.C.1
20-078	09-23-2020	Granting permission to Cali Harborside (Fee) Associates L.P., its successors and assigns, to improve and use approximately 454 square feet of the public right-of-way within the 80-foot right-of-way of Washington Street, and one 78-square-foot, and two 11-square-foot portions of the public right-of-way within the 60-foot right-of-way of Pearl Street, both adjacent to Lot 1, Block 11607, on the official tax assessment map of the City, for the installation of various improvements including stairs, landscaping, ramps for egress and bollards	Ch. A352
20-081	10-07-2020	Amending certain provisions of Bond Ordinance No. 18-038 finally adopted by the City on May 9, 2018, providing for various capital improvements for the City and appropriating $47,282,671 therefor, and providing for the issuance of $45,031,115 in general improvement bonds or notes of the City to finance the same	Ch. A352
20-082	10-07-2020	Providing for various capital improvements for the City and appropriating $31,500,000 therefor, and providing for the issuance of $30,000,000 in general improvement bonds or notes of the City to finance the same	Ch. A352
20-083	10-07-2020	Acknowledging the transfer and assignment of the property known as 295 Thomas F. McGovern Drive, Jersey City and consenting to the transfer of the tax exemption held by Exeter Thomas McGovern Land Urban Renewal, LLC to CICF II - NJ1B02 Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	Ch. A352
20-084	10-07-2020	Amending the Liberty Harbor North Redevelopment Plan to reduce the height permitted on Block 16, aka 333 Morris Street	Ch. A352
20-085	10-07-2020	Amending Chapter 332, Article II, Section 332-9, Stop intersections, designating Franklin Street and Hancock Avenue; Franklin Street and Sherman Avenue as all-way stop control	332-9
20-086	10-07-2020	Adopting amendments to the Canal Crossing Redevelopment Plan	Ch. A352
20-087	10-07-2020	Providing a technical amendment to Ordinance 19-150 adopted on November 14, 2019 to include amendatory language omitted when the original draft was uploaded onto iCompass	332-58.E, F

Ordinance Number	Date of Adoption	Description	Disposition
20-088	10-07-2020	Amending Chapter 1, Article III, Enforcement; Penalties, to delegate additional enforcement powers to the Municipal Prosecutor; and amending Chapter 3, Article XIV, Department of Law; Chapter 148, Section 148-6, Complaints; investigations; hearings; Chapter 245, Article III, Canvassers and Solicitors, to eliminate inconsistencies in the Code of relating to the Municipal Prosecutor	1-27, 3-119.1, 148-6.D(3), 245-20.1
20-089	10-21-2020	Creating chapter 187, Inclusionary Zoning, requiring the inclusion of affordable housing units in all development projects with residential which have received use variances or increased density or height	Added 187-1—187-10
20-090	10-21-2020	Supplementing Chapter 182, Health and Sanitation, establishing standards for the maintenance and servicing of portable lavatories	Added 182-36
20-091	10-21-2020	Amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, amending Zone 10 to include Ocean Avenue between Fulton Avenue and Stegman Street	332-58.C.1
20-092	10-21-2020	Amending Chapter 332, Article III, Section 332-27, Angle parking, on Mallory Avenue between Clendenny Avenue and Roosevelt Avenue	332-7
20-093	10-21-2020	Amending Chapter 332, Article III, Section 332-28.1.C, Electric vehicle charging areas, designating EV charging spaces at various locations City-wide	332-28.1.C
20-094	11-12-2020	Refunding bond ordinance of the City, providing for the refunding of all or a portion of certain outstanding bond issues of the City, appropriating an amount not exceeding $21,300,000 therefor and authorizing the issuance of not to exceed $21,300,000 general obligation refunding bonds of the City for financing the cost thereof	Ch. A352
20-095	11-12-2020	Amending chapter 160, subsection 160-1.JJ, Streets and sidewalks, and obsolete Chapter 296, Article XII, Sidewalk Cafes, to establish new regulations for sidewalk cafes to allow the sidewalk cafes to operate year round	160-1.JJ(6) 296-79—296-85
20-096	11-12-2020	Accepting from 900 Garfield, LLC and the Jersey City Redevelopment Agency dedications of property for inclusion in Garfield Avenue	Ch. A352
20-097	11-12-2020	Adopting the Laurel Saddlewood Redevelopment Plan	Ch. A352
20-098	12-02-2020	Amending Chapter 332, Article III, Section 332-22, No parking any time, on Sixteenth Street	332-22
20-099	12-02-2020	Amending Chapter 332, Article IX, Section 332-29, Disabled parking manual, and Section 332-68, Parking for the disabled, designating, amending and/or repealing a reserved parking space for the disabled at various locations throughout the city	332-29, 332-68
20-100	12-02-2020	Amending Chapter 260, Rent Control (1) imposing a rent increase freeze on units subject to municipal regulation excluding owner-occupied homes with two to four units of housing and (2) prohibiting any collection of a penalty for a late payment of rent as a result of the current public health emergency declared by the Governor	260-1, 260-3.A
20-101	12-16-2020	Providing for a special emergency appropriation of $13,000,000 providing for the payment of contractually required severance liabilities resulting from the layoff or retirement of employees	Ch. A352
20-102	12-16-2020	Amending Chapter 254, Article VI, Section 254-27, Heating facilities; duty to supply heat, to amend the regulations on boiler inspections	254-27

Ordinance Number	Date of Adoption	Description	Disposition
20-103	12-16-2020	Amending the Morris Canal Redevelopment Plan regarding the creation of the Berry Lane Park North Zone a.k.a. 417 Communipaw Avenue	Ch. A352
20-105	12-16-2020	Amending Chapter 175, Article III, Food Establishments, and Chapter 160, Subsection P, Chapter 175, Food-Handling Establishments, to allow farmers' markets to operate year-round	160-1.P, 175-22, 175-28
20-106	12-16-2020	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
20-109	01-13-2021	Establishing the Arts and Culture Trust Fund to create funding sources for arts organizations in the City	Added 304-42—304-45
20-111	01-13-2021	Amending Chapter 321, Trees, of the Municipal Code of the City	321-1, 321-3—321-6, 321-9, 321-10 Added 321-6.1
20-112	01-13-2021	Adopting amendments to the Land Development Ordinance, Chapter 345, Article III, Section 17, Traffic impact analysis, and Section 18, Visual impact analysis	345-17, 345-18
20-113	01-04-2021	Supplementing Chapter 175, Food-Handling Establishments, regulating the fees charged to restaurants by third-party take-out and delivery service applications and internet websites during such times when the restrictions upon such fees imposed by state law are suspended	Added 175-1
20-114	01-13-2021	Amending the Exchange Place North Redevelopment Plan regarding the addition of research/testing laboratory uses	Ch. A352
21-001	01-27-2021	Amending Chapter 304, Taxation, to authorize a transfer tax on medicinal cannabis dispensed by a dispensary as authorized by the Jake Honig Compassionate Use Medical Cannabis Act, N.J.S.A. 24:61-1 et seq.	Added 304-46—304-50
21-002	01-27-2021	Amending and supplementing Chapter 53, Personnel, § 53-11	53-11
21-003	01-27-2021	Amending Chapter 332, Article II, Section 332-9, Stop intersections, for new multi-way stops at various intersections in Ward E	332-9
21-005	02-10-2021	Amending Chapter 345 regarding Stormwater control	345-74
21-006	02-10-2021	Amending Chapter 332, Article III, Section 332-22, No parking any time, at 65 Bay Street and 88 Morgan Street	332-22
21-007	02-10-2021	Amending Ordinance 20-113, supplementing Chapter 175, Food-Handling Establishments, regulating the fees charged to restaurants by third-party take-out and delivery service applications and internet websites during such times when the restrictions upon such fees imposed by state law are suspended	175-1
21-008	02-24-2021	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, to add Central Avenue between Hoboken Avenue to Newark Avenue	332-31
21-009	02-24-2021	Amending the Bayfront I Redevelopment Plan and the Droyers Point Redevelopment Plan	Ch. A352
21-010	02-24-2021	Repealing Ord. No. 20-095 and amending Chapter 296, Streets, Sidewalks and Public Rights-of-Way, and Chapter 160, Fees and Charges, Subsection JJ, Streets, Sidewalks and Public Rights-of-Way	160-1.JJ(6) 296-1.1, 296-7.1—296-7.5

Ordinance Number	Date of Adoption	Description	Disposition
21-011	02-24-2021	Amending Chapter 332, Article III, Section 332-22, No parking any time, on Warren Street and Section 332-24, No parking certain hours, on Washington Street in the vicinity of 25 Christopher Columbus Drive	332-22, 332-24
21-012	02-24-2021	Appropriating and reappropriating a total of $5,000,000 from various sources in order to provide funds to the Jersey City Free Public Library for the renovation and furnishing of the main library building	Ch. A352
21-013	03-10-2021	Amending Chapter 260, Rent Control (1) imposing a rent increase freeze on units subject to municipal regulation excluding owner-occupied homes with two to four units of housing and (2) prohibiting any collection of a penalty for a late payment of rent as a result of the current public health emergency declared by the Governor	260-1, 260-3.A
21-015	03-10-2021	An ordinance to exceed the municipal budget appropriations limits and to establish a cap bank for calendar year 2021 (N.J.S.A. 40A:4-45.14)	Ch. A352
21-016	03-24-2021	Establishing the rate of the annual levy to be collected for the Arts and Culture Trust Fund to create funding sources for arts organizations in the City	304-42
21-017	03-24-2021	Amending Chapter 188 "Housing Accommodations and Affordable Housing Compliance"	Rpld 188-7—188-14 Added 188-7—188-18
21-018	03-24-2021	Authorizing the City to renew the leases of Block 389, Lots 19 and 20 (174-176 Brunswick Street); Block 3002, Lot 2 (285 Ogden Avenue); Block 5202, Lots 28 and 29 (105 Ogden Avenue); and Block 1905, Lot 36 (447 Martin Luther King, Jr. Drive) as part of the City's Adopt-a-Lot Community Garden Program	Ch. A352
21-019	03-24-2021	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, Section 332-31, Parking restrictions for street-cleaning purposes, and Article VII, Section 332-48.B, Designation of parking spaces, for parking regulation changes in the area between the Hoboken city line and Fourteenth Street	332-22, 332-31, 332-48
21-020	03-24-2021	Rescinding the "in need of redevelopment" status from the Webster Avenue Redevelopment Plan and adopting the regulations as a regular zone in the Jersey City Land Development Ordinance as 345-40.2 R-1W Webster Avenue Housing District	Added 345-40.2
21-021	04-15-2021	Amending Chapter 332, Article IX, Parking for the disabled, designating a reserved parking space at various locations throughout the city	332-29, 332-69
21-022	04-15-2021	Authorizing the execution of a rights-of-way use agreement between the City and Global Inter Xchange, LLC to permit the installation of fiber optic cabling through existing inner ducts located in existing underground conduits within certain public rights-of-way for the purpose of providing telecommunication services	Ch. A352
21-023	04-15-2021	Amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, for parking regulation changes on Grove Street	332-58
21-024	04-28-2021	Accepting the dedication of certain roadways, sidewalks, and utilities located within the Liberty Harbor North Redevelopment Area	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
21-025	04-28-2021	Supplementing Chapter 332, Article II, Section 332-5, One-Way Streets; and Article III, Section 332-22, Parking Prohibited at All Times, and Section 332-31, Parking Restrictions for Street-Cleaning Purposes, for Manning Avenue; and Article II, Section 332-9, Stop Intersections, for multi-way stop at Randolph Avenue and Harmon Street	332-5, 332-9, 332-22, 332-31
21-026	04-28-2021	Amending Chapter 332, Article VII, Section 332-57, On-Street Permit Parking Zones, adding Pearl Street and modifying Steuben Street and Article VIII, Section 332-58, parking restrictions in residential Zones, modifying Zones 4, 7, and 18	332-57, 332-58
21-027	04-28-2021	Supplementing Chapter 332, Article II, Section 332-9, Stop Intersections, multi-way stops at Warren Street and Morris Street and at Warren Street and York Street	332-9
21-028	05-13-2021	Authorizing the City, as tenant, to extend for one year a lease with 18 Ash Street Realty, as landlord, for space located at 46 State Street, Jersey City	Ch. A352
21-029	05-13-2021	Amending Chapter 332, Article II, Section 332-9, Stop intersections, designating Thirteenth Street and Monmouth Street as an all-way stop control intersection	332-9
21-030	05-13-2021	Establishing the Jersey City Arts and Culture Trust Fund Committee and distribution of funds	Added 304-45.1, 304-45.2
21-032	05-26-2021	Adopting the Central Avenue Block 2901 Redevelopment Plan	Ch. A352
21-033	05-26-2021	Amendments to the Jackson Hill Redevelopment Plan boundary to include the Sacred Heart Campus as part of the Historic Neighborhood Mixed Use Zone and incorporate inclusionary zoning Requirements	Ch. A352
21-034	07-14-2021	Accepting from Maple Street Row, LLC a dedication of certain newly constructed rights-of-way that extend Maple Street and Garabrant Street	Ch. A352
21-035	05-26-2021	Adopting amendments to the Jersey Avenue Light Rail Redevelopment Plan regarding overlay bonuses, affordable housing and school development bonuses, and general update to standards and regulations	Ch. A352
21-036	05-26-2021	Adopting amendments to the Land Development Ordinance regarding applications, checklists, notice, waste management, review procedures and hearing requirements	345-30.A, 345-31, 345-31.1
21-037	08-18-2021	Authorizing the sale of a denial of access, the sale of easements, and the sale of land in fee to the State of New Jersey, Department of Transportation (DOT) of real property owned by the City known as Block 11702, Lot 5; Block 11706, Lot 1; and Block 11707, Lot 2 also known on DOT maps as parcels E12A, E12C, E12D, E12E, 12F, 12G, and DA12B located near structural supports of the Pulaski Skyway near the PJP landfill site	Ch. A352
21-038	09-09-2021	Acknowledging the transfer and assignment of the property known as 16 Bennett Street, Jersey City, a/k/a Block 20702, Lot 60.01 and consenting to the transfer of the tax exemption held by 16 Bennett Street Urban Renewal, LLC to 16 Bennett JC Urban Renewal, LLC pursuant to Section 9.1 of the financial agreement and N.J.S.A. 40A:20-22 of the Long Term Tax Exemption Law	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
21-039	06-16-2021	Adopting amendments to Chapter 3 Article VI, Department of Administration, concerning the implementation of procurement programs for minority, woman, veteran, LGBTQ and disabled-owned vendors	3-51.C Added 3-54.3 Repealed 3-60.2.C(2)(e)—(h)
21-040	06-16-2021	Bond ordinance of the City, providing for various capital improvements for the City and appropriating $86,787,986 therefor, and providing for the issuance of $82,448,586 in general improvement bonds or notes of the City to finance the same	Ch. A352
21-041	06-30-2021	Supplementing Chapter 131, Construction Codes, Uniform, adding Article II requiring gender neutral bathroom signage for single-user restrooms	Added 131-14, 131-15
21-042	06-30-2021	Transferring the Division of Purchasing and Central Services from Chapter 3, Article VI, Section 3-51 (Purchasing; Division of Purchasing and Central Services) to the Department of Finance in Chapter 3, Article XIII (Department of Finance)	3-42, 3-111 Rpld 3-51 Added 3-113.4
21-043	06-30-2021	Transferring the Division of Payroll from Chapter 3, Article XIII, Section 3-113.3, Division of Payroll, to the Department of Human Resources in Chapter 3, Article XVIII, Department of Human Resources	3-111, 3-133, 3-140 Rpld 3-113.3
21-044	06-30-2021	Amending Chapter 332, Article II, Section 332-9, Stop intersections, designating Fairmount Avenue and Storms Avenue, and Hoboken Avenue and Monmouth Street as all-way stop controlled intersections	332-9
21-046	06-30-2021	Amending Chapter 242, Peace and Good Order, requiring outdoor businesses in industrial and light industrial zones within 1,500 feet of residential zones to limit operations between seven o'clock in the evening and six o'clock in the morning	Added 242-11.1
21-047	06-30-2021	Authorizing the City to execute a three-year lease with the Jersey City Economic Development Corporation for the use of Block 22502, Lots 36 & 37, more commonly known by the street address of 351 Martin Luther King Jr. Drive for nonprofit economic development purposes for the public benefit of the Jersey City Community	Ch. A352
21-048	09-09-2021	Authorizing the execution and acceptance from 160 Lafayette Associates, LP of a deed of easements for a temporary construction easement and a public access easement in connection with the construction and use of the Morris Canal Greenway	Ch. A352
21-050	08-18-2021	Bond ordinance of the City, providing for the acquisition, installation and construction of various items of energy conservation equipment and improvements, appropriating an amount not exceeding $9,000,000 therefor and authorizing the issuance of not to exceed $8,550,000 general obligation bonds or notes of the City for financing a portion of the cost thereof	Ch. A352
21-051	08-18-2021	Refunding bond ordinance of the City, providing for the acquisition, installation and construction of various items of energy conservation equipment and improvements in connection with an energy savings improvement program of the City, appropriating an amount not exceeding $7,700,000 therefor and authorizing the issuance of not to exceed $7,700,000 general obligation refunding bonds or notes of the City for financing all or a portion of the cost thereof	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
21-052	08-18-2021	Amending Chapter 182, Article IV, Smoking, requiring landlords of multiple dwelling to implement a policy regulating smoking within the building and to provide notice of such policy both within the lease agreement and the dwelling	Added 182-29.5—182-29.9
21-053	08-18-2021	Amending Chapter 84, Alcoholic Beverages; Chapter 160, Fees and Charges; Chapter 304, Taxation; and Chapter 345, Zoning, and Chapter 3, Administration of Government, to establish regulations for cannabis establishments and cannabis distributors and authorize a transfer tax and user tax on the sale/transfer of cannabis or cannabis items by a cannabis establishment	3-93.1, Ch. 84 (tit.), 345-33 Added 84-44—84-54, 160-1.C(7)—(10), 304-51—304-56 345-60.5
21-054	08-18-2021	Amending Chapter 254, Property Maintenance, and Chapter 160, Fees and Charges, to require routine structural and façade inspections for certain buildings within the City	Added 160-1.X(8) 254-45.F, G
21-055	09-09-2021	Authorizing the sale of an easement to the State of New Jersey, Department of Transportation affecting real property owned by the City of Jersey City and the City of Union City in Block 101, Lot 7 near Secaucus Road in Jersey City	Ch. A352
21-057	09-09-2021	Amending Chapter 332, Article IX, Parking for the disabled, designating a reserved parking space at various locations throughout the city	332-29, 332-69
21-058	09-09-2021	Amending Chapter 332, Article II, Section 332-9, Stop intersections, to designate Concord Street and St Pauls Avenue; Bevan Street and St Pauls Avenue; Park Street and Astor Place; and Jersey Avenue and Wayne Street as stop control intersections	332-9
21-059	09-09-2021	Authorizing the acceptance of a condominium unit located within property commonly identified on the tax maps of the City as Block 15802, Lot 1.01, C8001 from 100 Monitor Commercial Unit LLC	Ch. A352
21-060	09-09-2021	Authorizing the City to execute a lease with the Greenville Neighborhood Alliance for the use of Block 3003, Lot 45, more commonly known by the street address of 81 Garfield Avenue for use as a community garden	Ch. A352
21-062	09-22-2021	Amending Chapter 332, Article III, Section 332-24, No parking certain hours, on Washington Street and Columbus Drive in the vicinity of 25 Christopher Columbus Drive	332-24
21-063	09-22-2021	Amending Chapter 332, Article IX, Parking for the disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
21-064	11-10-2021	Granting permission to 208CCJCLLC LLC for the installation of four decorative planters at Block 12703, Lot 1, also known as 2 Coles Street, 4 Coles Street, 6 Coles Street and 8 Coles Street encroaching into the right-of-way	Ch. A352
21-065	09-22-2021	Amending Chapter 332, Article III, Section 332-22, No parking any time, on Kearney Avenue	332-22
21-066	10-14-2021	An ordinance to regulate the installment of new wireless utility poles and equipment by amending the Code of the City of Jersey City Chapter 296, Streets, Sidewalks, and Public Rights-of-Way	Added 296-9.1
21-067	10-14-2021	Amending Chapter 332, Article VII, Article VIII, Permit Parking	332-58
21-068	10-14-2021	Amending chapter 332, Article IX, Parking for the disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69

Ordinance Number	Date of Adoption	Description	Disposition
21-069	10-27-2021	Amending Chapter 332, Article II, Section 332-9, Stop intersections, to designate Erie Street and Fourth Street and Erie Street and Fifth Street as multi-way stop control	332-9
21-070	10-27-2021	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the city	332-29, 332-69
21-071	11-10-2021	Adopting amendments to the Residential, Public/ Quasi Public Retail Zone of the Ocean/Bayview Redevelopment Plan	Ch. A352
21-072	11-10-2021	Authorizing the execution of a temporary construction easement and access easement agreement between the City and 160 Lafayette Associates, L.P. (Lafayette Associates) authorizing Lafayette Associates to install and maintain two monitoring wells in Reverend Ercel Webb Park a/k/a Lafayette Park	Ch. A352
21-073	11-29-2021	Providing for a special emergency appropriation of $10,000,000 providing for the payment of contractually required severance liabilities resulting from the layoff or retirement of employees	Ch. A352
21-074	12-15-2021	Authorizing the execution and delivery of a subsidy agreement with the Jersey City Redevelopment Agency to secure the payment of the principle of and interest on up to $169,810,000 bonds and/or project notes to be issued by said agency in connection with the implementation of the Bayfront Redevelopment Project	Ch. A352
21-075	11-29-2021	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
21-076	12-15-2021	Authorizing the execution and delivery of a subsidy agreement with the Jersey City Redevelopment Agency to secure the payment of the principal of and interest on up to $18,000,000 bonds and/or project notes to be issued by said agency in connection with the implementation of a redevelopment project on certain real property located at 68-74 Sip Avenue and 164-168 Sip Avenue	Ch. A352
21-077	12-15-2021	Amending and replacing Chapter 187, Inclusionary Zoning, requiring all applicable developments to include a mandatory onsite affordable housing set-aside	Rpld 187-1—187-10 Added 187-1—187-12
21-078	12-15-2021	Amending Chapter 3, Article XI, Sub-Article II, Division of Fire & Emergency Services, to define the scope of activities governed by the various fire prevention permit types and to adjust the inspection fees	3-88.3, 3-88.4, 3-88.6
21-079	12-15-2021	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street-cleaning purposes, and Section 332-31.1, Street Cleaning Review Commission	332-31 Rpld 332-31.1
21-080	12-15-2021	Authorizing the transfer of certain City-owned real property, identified on the tax map of the City of Jersey City as Block 21901.01, Lots 1, 4, 6, 8 and 9 and Block 21901, Lot 4, to the Jersey City Redevelopment Agency	Ch. A352
21-081	12-15-2021	Authorizing the sale of an easement to the New Jersey Transit Corporation affecting real property owned by the City in Block 287, Lot 5 in the Town of Kearny, New Jersey for purposes of facilitating New Jersey Transit's Portal Bridge Project	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
21-082	12-15-2021	Authorizing the City to sell property located at 65 Commercial Street, 20 Commercial Street, and 2 Commercial Street, Jersey City to the Jersey City Municipal Utilities Authority	Ch. A352
22-002	01-26-2022	Establishing Chapter 73, Women's Advisory Board of the City	Added 73-1—73-6
22-003	01-26-2022	Amending Chapter 84, Alcoholic Beverages and Cannabis, to establish reporting requirements for the Cannabis Control Board	84-51
22-004	02-09-2022	Vacating the portion of 13th Street between Provost Street and Barnum Street in the City	Ch. A352
22-005	02-09-2022	Authorizing the execution of a deed of easement with Fourteen Florence Street Corp. (developer) permitting the developer to make improvements on a portion of the Twelfth Street public right-of-way in an area east of Provost Street and continuing to an area adjacent to the north side of Newport Parkway in connection with the construction of new public pedestrian walkway	Ch. A352
22-006	02-09-2022	Vacating a portion of Bleecker Street	Ch. A352
22-007	02-09-2022	Amending chapter 53, Section 53-7, Workplace Regulations, Subsection C, Compensation, and Article II, Fixed Salaries, to modify the salary and employment benefits for full-time and part-time aides to councilpersons of City of Jersey City	53-7(C), 53-11
22-008	02-09-2022	Amending Chapter 332, Article VIII, Section 332-66, On-street resident only permit parking zones, to extend Zone 11 on various streets	332-66
22-009	02-09-2022	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
22-010	03-09-2022	Adopting amendments to the Morris Canal Redevelopment Plan regarding the creation of the Berry Lane Park North Zone a/k/a 417 Communipaw Avenue Block 18901, Lots 23 and 29, on remand per September 23, 2021 court order	Ch. A352
22-011	02-09-2022	Amending Chapter 304, Article IX, Section 304-42, to reflect that the Arts and Culture Trust Fund annual levy shall not exceed $0.02 per $100.00 of total municipal assessed real property	304-42
22-012	02-24-2022	Authorizing the acquisition of Block 19002, Lot 7, more commonly known by the street address of 287 Pine Street, from the Jersey City Redevelopment Agency	Ch. A352
22-013	02-24-2022	Amending Chapter 332, Article II, Section 332-9, Stop intersections, to designate Academy Street and Tuers Avenue; and 18th Street and Coles Street as stop control intersections	332-9
22-015	02-24-2022	Authorizing the City, as tenant, to extend for two years a lease with 18 Ash Street Realty, as landlord, for space located at 46 State Street, Jersey City	Ch. A352
22-016	02-24-2022	Authorizing the acquisition by purchase or condemnation of Block 16801, Lot 12 a/k/a 3-5 Storms Avenue for the construction of a new park to be known as Fairmount Square Park	Ch. A352
22-018	03-09-2022	Amending Chapter 53, Section 53-11, Fixed salaries, to modify the salary for the Council President and Council Members of the City	53-11
22-019	03-09-2022	Amending Chapter 332, Article III, Parking, Standing and Stopping; Article VII, Metered Parking; and Article VIII, Permit Parking, to implement new parking regulations in the Gulls Cove Area	332-22, 332-48, 332-58

Ordinance Number	Date of Adoption	Description	Disposition
22-020	03-23-2022	Amending Chapter 296, Streets, Sidewalks and Public Rights-of-Way, and Chapter 160, Fees and Charges, Section 160-1.JJ, Streets, Sidewalks and Public Rights-of-Way	160-1.JJ, 296-7.1—296-7.3
22-021	03-09-2022	An ordinance amending Chapter A352, dedicating Columbia Avenue from North Street to Leonard Street in Jersey City as "John Seborowski, Sr. Way"	Ch. A352
22-022	03-09-2022	Amending Chapter 160 to revise the fees for administration of government by the City Clerk and fees for resident parking permits, and to amend chapter 332 to revise the requirements for resident parking permits	160-1.A, SS, 332-63
22-023	03-09-2022	Amending Chapter 332 to permit the rental of parking spaces and the installation of parking meter covers, and setting fees	332-47 Added 160-1.SS(15), 332-57.1
22-024	04-13-2022	Adopting amendments to the Harsimus Cove Station Redevelopment Plan to alter the regulating plan maps and street sections as well as the intensity summary tables of the West-Neighborhood District	Ch. A352
22-025	03-23-2022	Exceeding the municipal budget appropriations limits and establishing a cap bank Calendar Year 2022 (N.J.S.A. 40A:4-45.14)	Ch. A352
22-026	03-23-2022	Amending Chapter 148, Discrimination, to include a "pay transparency" regulation for Jersey City employers	Added 148-4.1
22-027	03-23-2022	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
22-028	03-23-2022	Establishing Chapter 135 to create a permit requirement to operate a crane	Added 135-1—135-9
22-029	04-13-2022	Vacating a portion of Commercial Street from the intersection of Caven Point Avenue and the New Jersey Turnpike overpass	Ch. A352
22-030	03-23-2022	Re-appropriating $11,290,625.16 of proceeds of obligations not needed for their original purposes in order to provide for various capital improvements in and by the City	Ch. A352
22-031	04-13-2022	Adopting amendments to the Powerhouse Arts District Redevelopment Plan regarding the addition of a conditional permitted use	Ch. A352
22-032	04-13-2022	Amending Chapter 332, Article III, Section 332-24, No parking certain hours, on Kearney Avenue in front of four Jackson Square	332-24
22-034	04-13-2022	Providing for various capital improvements for the City and appropriating $131,000,000 therefor, and providing for the issuance of $124,450,000 in general improvement bonds or notes of the City to finance the same	Ch. A352
22-035	04-13-2022	Adopting amendments to the Water Street Redevelopment Plan regarding property located at Block 20701, Lots 4 and 5 and Block 20704, Lots 1 and 2	Ch. A352
22-036	04-27-2022	Authorizing the City to purchase from the State of New Jersey, Department of Transportation (NJDOT) real property known as Parcel 42B on NJDOT maps also known as a Block 1912, Lot P4 on the City's former tax map in connection with the City's construction of Fairmount Square Park at the intersection of Fairmount Avenue, Storms Avenue, Summit Avenue, and Jewett Avenue	Ch. A352
22-037	04-27-2022	Authorizing the acquisition by purchase or condemnation of Block 3702, Lot 22 a/k/a 117 Hutton Street for the construction of a new police precinct	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
22-038	04-27-2022	Authorizing the acquisition by purchase or condemnation of Block 3702, Lot 39 a/k/a 18 Sherman Place for the construction of a new police precinct	Ch. A352
22-039	04-27-2022	Authorizing the acquisition by purchase or condemnation of Block 26101, Lot 5 a/k/a 1 West Side Avenue for the construction of a new police precinct	Ch. A352
22-040	04-27-2022	Amending Chapter 3, Administration of Government, to restructure and add various departments in the City	3-42, 3-67, 3-111, 3-112, 3-120, 304-34, 304-36, 304-38 Rpld 3-45, 3-46, 3-52, 3-52.1, 3-56, 3-56.1, 3-70, 3-91, 3-134—3-141 Added 3-43, 3-50.1—3-50.8, 3-70, 3-70.8, 3-84.1, 3-113.5, 3-134—3-134.6
22-041	04-27-2022	Amending Chapter 84 to regulate the sale of adult use cannabinoids and to amend Chapter 316 to provide for the registration of smoke shops	84-44, 316-1 Rnbd 84-54 as 84-55 Rnbd 316-4 as 316-5 Added 84-54, 316-4
22-042	05-25-2022	Authorizing the transfer of certain City-owned real property, identified on the tax map of the City as Block 19903, Lots 1 and 5 to the Jersey City Redevelopment Agency	Ch. A352
22-043	05-25-2022	Amending language in the Land Development Ordinance, Section 345-6, Definitions, related to office and medical office uses	345-6
22-044	06-15-2022	Expanding the boundaries of the McGinley Square Special Improvement District to include Summit Avenue between Baldwin Avenue/Clifton Place (Miralla Triangle) and Vroom Street, Montgomery Street between Baldwin Avenue and Florence Street, and south side of Bergen Avenue/Fairview Avenue intersection	Added 69-51.1
22-045	06-15-2022	Amending the "pay transparency" regulation located in Chapter 148	148-4.1
22-046	06-15-2022	Supplementing Chapter 332, Article II, Section 332-5, One-way streets, for Ash Street and Pine Street	332-5
22-047	06-15-2022	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate Bramhall Avenue and Sackett Street; and Manila Avenue and 7th Street as stop control intersections	332-9
22-048	06-15-2022	Supplementing Chapter 332, Article IX, designating a reserved parking space at various locations throughout the City	332-29, 332-69
22-049	06-15-2022	Supplementing Chapter 332, Article II, Section 332-5, One-way streets; and Article III, Section 332-23, No stopping or standing, on Washington Street	332-5, 332-23
22-050	12-14-2022	Granting permission to 503-509 Communipaw Ave. LLC, its successors and assigns, to use approximately two hundred and sixteen square feet (216 sq. ft.) over the public right-of-way within the fifty (50) foot right-of-way of Arlington Avenue and the sixty (60) foot right-of-way adjacent to Lot 1.01, Block 18703 (f/k/a Lots 1 and 2, Block 18703), on the official tax assessment map of the City of Jersey City to maintain an encroaching overhang for a constructed mixed-use development	Ch. A352
22-051	06-29-2022	Applying the name "Society Hill Drive" to "New Road 2" in the Bayfront Redevelopment Site planned to run north through the redevelopment site	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
22-052	06-29-2022	Applying the name "Bayfront Avenue" to "New Road 4 12" in the Bayfront Redevelopment site planned to run south through the redevelopment site	Ch. A352
22-053	06-29-2022	Applying the name "Lehigh Avenue" to "New Road 12 4" in the Bayfront Redevelopment site planned to run south through the redevelopment site	Ch. A352
22-054	06-29-2022	Applying the name "Conlon Boulevard" to "New Road 6" in the Bayfront Redevelopment site planned to run west through the redevelopment site	Ch. A352
22-055	06-29-2022	Applying the name "Philbrook Boulevard" to "New Road 5" in the Bayfront Redevelopment site planned to run east through the redevelopment site	Ch. A352
22-056	06-29-2022	Applying the name "Hackensack Avenue" to "New Road 1" in the Bayfront Redevelopment site planned to run north and south through the redevelopment site	Ch. A352
22-057	06-29-2022	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate Wilkinson Avenue and Arlington Avenue as multi-way stop control	332-9
22-058	06-29-2022	Authorizing the City to acquire from Liberty National Development Co, LLC certain real property known as Block 27503, Lot 13 on the City's tax map located at the foot of Chapel Avenue for the purposes of reinstating ferry service to the public	Ch. A352
22-059	06-29-2022	Amending Chapter 160, subsection SS, and Chapter 175, Article II, Mobile Food Vendors, to establish parking fees and regulations for food truck vendors	160-1, 175-13, 175-14
22-060	06-13-2022	Updating schedule of maximum towing fees by amending and supplementing Chapter 319, Towers and Towing	160-1.OO, 319-11.A
22-061	07-13-2022	Commemorating the intersection at 527 Mercer Street and 56 Jordan Street in honor of Sergeant Vincent Pantozzi as "Sgt. Pantozzi Plaza"	Ch. A352
22-062	07-13-2022	Adopting amendments to the Hamilton Square Redevelopment Plan regarding permitted uses	Ch. A352
22-063	07-13-2022	Adopting amendments to the Mixed Use-A Zone and Map B of the Morris Canal Redevelopment Plan	Ch. A352
22-064	07-13-2022	Adopting amendments to the Mixed Use-E Zone of the Morris Canal Redevelopment Plan	Ch. A352
22-065	07-13-2022	Amending Chapter 254, Article IX, Section 254-43, Maintenance of exterior of premises, to include regulations for the maintenance of yards	254-43
22-066	08-17-2022	Granting permission to 199 SUMMIT, LLC, Its successors and/or assigns, to make private improvements in the public right-of-way of Ingwerson Place for the property located at 199-201 Summit Avenue, 62-64 Storms Avenue, 203 and 207 Summit Avenue, 46 Storms Avenue, 1 through 9 Ingwerson Place, Jersey City, New Jersey, also known on the tax maps of the City as Block 15201, Lots 1, 2, 3, 4, 5, 6, 7, 8, 9, 18, 19, 53, 64, 65, 66 and 89	Ch. A352
22-067	08-17-2022	Amending and supplementing Chapter 23, Court, Municipal, to add one additional full time judge to the Municipal Court	23-2.A
22-068	09-08-2022	Adopting the 174 Newark Avenue Redevelopment Plan	Ch. A352
22-069	09-08-2022	Adopting amendments to the Tidewater Basin Redevelopment Plan to include the creation of the Inclusionary Housing Overlay District and to expand the list of permitted uses in the Historic Buffer Zone	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
22-070	09-08-2022	Amending and supplementing Chapter 242, Peace and Good Order, to allow for the impoundment of snowmobiles, all-terrain vehicles, and dirt bikes operated on public streets	Ch. 242, Art. VI (tit.) 242-9.2, 242-9.3, 242-9.5
22-071	09-08-2022	Amending and supplementing Chapter 242, Peace and Good Order, to prohibit the use of bicycles, scooters, skateboards, and roller skates in pedestrian plazas	Add 242-9.1.F.5, 242-9.3.E
22-072	09-08-2022	Amending Chapter 254, Article XXII, requiring the registration of certain mortgages of real property by mortgagees; and Chapter 160, Fees and Charges, to conform to the requirements of P.L. 2021, c. 444	§§ 160-1.X 254-127, 254-129
22-073	09-08-2022	Amending and supplementing Chapter 3, Article XII, Department of Health and Human Services, to create the Division of Community Relations & Social Services	Added § 3-107.7
22-074	09-08-2022	Granting permission to Harmony Foundation of New Jersey, Inc., its successors and/or assigns, to make private improvements on a portion of the public right-of-way of Coles Street, 12th Street, Monmouth Street, and 13th Street adjacent to the property located at 227 Coles Street and 310 Twelfth Street also identified on the City tax maps as Block 7001, Lots 1 and 2	Ch. A352
22-075	09-08-2022	Granting permission to Aida Anis c/o Hala Samuel for existing stairway and retaining wall encroachments into the right-of-way at Lot 19 in Block 2004, also known as 99 Columbia Avenue	Ch. A352
22-076	09-08-2022	Authorizing the imposition of restrictions on Meadow Street located east of Duffield Avenue	Ch. A352
22-077	09-08-2022	Accepting the dedication of the Jersey Avenue bridge over the Morris Canal	Ch. A352
22-078	09-08-2022	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate various unsignalized intersections as stop control and/or multi-way stop control intersections	332-9
22-081	09-21-2022	Amending section 332-66, on-street resident only permit parking zones, to extend Zone 11 on various streets	332-66
22-082	09-21-2022	Supplementing Chapter 332, Article IX, designating a reserved parking space at various locations throughout the city	332-29, 332-69
22-083	09-21-2022	Authorizing the execution of a lease of the Apple Tree House to the Museum of Jersey City History for a term of five years	Ch. A352
22-084	10-13-2022	Amending the Jersey City Land Development Ordinance, Chapter 345 Article I, Definitions; Article III, Section 345-16, Site Plan Review; Article V, Zoning; and the official zoning map	345-6, 345-16 Rpld 345-34—345-40.2, 345-40.6, 345-41, 345-41A, 345-42—345-50a, 345-51—345-60.5, 345-61—345-66.1, 345-67—345-73 Added 345-34—345-40.2, 345-41—345-45.2, 345-46—345-46.2, 345-47—345-59.8, 345-60, 345-60.5, 345-61—345-73
22-085	10-13-2022	Amending the Journal Square 2060 Redevelopment Plan, Addition of Corner Bonus D provision within Zone 3: Commercial Center	Ch. A352
22-086	10-13-2022	Vacating Factory Street at the corner of Mercer Loop and Wayne Street	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
22-087	10-26-2022	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, on Marin Blvd.	332-22
22-088	10-26-2022	Supplementing Chapter 332, Article III, Section 332-22, Parking prohibited at all times, on Newark Avenue	332-22
22-089	10-26-2022	Authorizing the acceptance of three condominium units located within property commonly identified on the tax maps of the City as Block 11506, Lot 2.01, otherwise known as 151 Bay Street	Ch. A352
22-091	11-09-2022	Amending Chapter 254, Article III, Section 254-17, Notices and hearings, establishing a procedure for the abatement of conditions affecting health and safety within rental dwellings	254-17
22-095	11-28-2002	Providing for a special emergency appropriation of $10,000,000 providing for the payment of contractually required severance liabilities resulting from the layoff or retirement of employees	Ch. A352
22-096	11-28-2022	Amending Chapter 3, Article V, Office of City Clerk, to restructure the office of the City Clerk	§ 3-31 Rpld 3-36 Added 3-36, 3-36.1
22-097	11-28-2022	Authorizing the execution of a deed of easement between PH Urban Renewal, LLC, the Planning Board of the City, and the City affecting Block 13102, Lot 1.03 a/k/a 25 Christopher Columbus Drive	Ch. A352
22-098	11-28-2022	Amending Chapter 345, Article IV, Section 345-33, fees for historic preservation commission applications	345-33.B
22-099	12-14-2022	Providing for the construction, reconstruction, rehabilitation, improvement and repair of various public buildings in the City; appropriating $12,000,000 therefor and authorizing the issuance of $11,428,000 bonds or notes of the City to finance part of the cost thereof	Ch. A352
22-101	12-14-2022	Adopting amendments to the Journal Square 2060 Redevelopment Plan regarding 701 Newark Avenue	Ch. A352
22-102	12-14-2022	Amend the Grand Jersey Redevelopment Plan regarding modifications to the street grid, regulating maps, building types, and street sections	Ch. A352
22-104	01-11-2023	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, to prohibit right turns on red at all times at the intersection of Marin Boulevard and Eighteenth Street with the exception of the northbound approach	332-8
22-105	01-11-2023	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, on Montgomery Street, in front of 100 Montgomery Street	332-24
22-106	01-11-2023	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, on Bergen Avenue from Van Nostrand Avenue to Sip Avenue	332-31
22-107	01-11-2023	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, on Sixteenth Street from Jersey Avenue to Marin Boulevard	332-31
22-108	01-11-2023	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, and Section 332-24, Parking prohibited certain hours, at 675 Monmouth Street - Ivy Primary Prep	332-22, 332-24
22-109	01-11-2023	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69

Ordinance Number	Date of Adoption	Description	Disposition
22-110	01-11-2023	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, on the west side of Summit Av 30 feet south of Secaucus Road	332-24
22-111	01-11-2023	An ordinance of the city (1) authorizing the transfer of the Loew's Jersey Theatre located in the Journal Square 2060 Redevelopment Area and identified on the tax map of the City as Block 10601, Lot 41 to the Jersey City Redevelopment Agency, (2) authorizing the City to provide funding to the Jersey City Redevelopment Agency with the resources necessary to address contingencies, and (3) appropriating $15,000,000 therefor and if necessary authorizing the issuance of up to $15,000,000 bonds or notes of the City to finance the cost thereof	Ch. A352
22-112	01-11-2023	Authorizing a lease agreement between the Jersey City Housing Authority, Garden State Community Development Corporation and the City for property at 514 Newark Avenue for the purpose of providing services to people experiencing homelessness	Ch. A352
23-001	01-25-2023	An ordinance to exceed the Calendar Year 2023 municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40A:4-45.14)	Ch. A352
23-002	01-25-2023	Supplementing Chapter 3, Article II, Sections 3-6, Annual audit, and Chapter 53, Section 53-8, Hours of employment for regular employees, requiring reports to the Municipal Council regarding overtime compensation and statutory extension of the date for submission of the budget and annual financial statement or completion of the annual audit	3-6 53-8
23-003	01-25-2023	Adopting amendments to the Land Development Ordinance regarding microbusinesses licensed as cannabis establishments or distributors	345-60.5.
23-005	02-08-2023	An ordinance authorizing the acquisition of the Courthouse Administration Building property located at 595 Newark Avenue, Jersey City, New Jersey from Hudson County for use as a public park	Ch. A352
23-006	02-08-2023	Supplementing Chapter 332, Article II, Section 332-9, Stop Intersections, to designate Mallory Avenue and Lexington Avenue as multi-way stop control intersection	332-9
23-007	02-08-2023	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, in Gulls Cove on Marin Boulevard, St. Peter's Street, Morris Street, and Sussex Street	332-31
23-009	02-23-2023	Authorizing the acceptance of a deed from Parks at VL South LLC affecting Block 6005, Lot 2 a/k/a the Gateway Plaza Park and Block 6902, Lot 16 a/k/a the Van Leer South Park	Ch. A352
23-010	02-23-2023	Authorizing the sale of an easement to Fairkings Partners LLC affecting real property owned by the City known as Lot 1, Block 7001, as shown on the official tax maps of the Township of Fairfield	Ch. A352
23-011	02-23-2023	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
23-012	02-23-2023	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, on Morgan Street between Greene Street and Marin Boulevard	332-31
23-013	02-23-2023	Ratifying the renewal of a lease agreement with Rialto-Capital Urban Renewal Company, LLC (lessor) for the use of space at the lessor's building located at 4 Beacon Way, Jersey City	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
23-014	02-23-2023	Ratifying the renewal of a lease agreement from Harwood Corporation for the use of 36 parking spaces located at 808 Pavonia Avenue	Ch. A352
23-015	02-23-2023	A franchise ordinance of the Municipal Council of the City to vacate a portion on Morton Place located to the northwest of John F. Kennedy Boulevard in the City	Ch. A352
23-015A	03-23-2023	Ratifying the renewal of a lease agreement with Journal Square Plaza Urban Renewal Associates (landlord) for office space and a kiosk at One Journal Square Plaza	Ch. A352
23-017	12-13-2023	Amending Chapter 3, Article X, Department of Housing, Economic Development and Commerce, assigning enforcement of the Lead Hazard Control Assistance Act to the Division of Housing Preservation	3-78
23-018	01-10-2024	Amending Chapter 160, Section 160-1, Fee schedule established, Subsection X (Chapter 254 Property Maintenance) establishing a fee schedule for lead-based hazard inspection of rental units pursuant to P.L. 2021, C. 182 and amending Chapter 254, Property Maintenance, to include the registration of properties for compliance under the Lead Hazard Control Assistance Act	160-1.X Added 254-81.1
23-021	03-23-2023	Adopting amendments to the Liberty Harbor North Redevelopment Plan to the permitted use and building type for a portion of Block 15907	Ch. A352
23-022	04-12-2023	Amending Chapter 337, Section 337-13, Water emergencies; standards enumerated to include the lead service line replacement program	Rnbd 337-13 as 337-14 Added 337-13
23-023	03-23-2023	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, on the west side of Arlington Avenue from Grand Street to Communipaw Avenue	332-22
23-024	03-23-2023	Amending Ordinance 15-088 in regards to Chapter 3, Article XII, Department of Health and Human Services, changing the responsible department for the Adopt a Lot Program to the Department of Public Works, Division of Solid Waste/Recycling	3-101
23-025	04-12-2023	Amending Chapter 332, Article III, Section 332-24.1, Limited duration parking, on Bergen Avenue from Newkirk Street to Sip Avenue	332-24.1
23-028	04-12-2023	Naming the Berry Lane Park Amphitheatre the "Harriet Tubman Amphitheatre" in honor of Harriet Tubman	Ch. A352
23-031	04-26-2023	Amending and supplementing Chapter 242, Article VI, Roller Skates, In-Line Skates, Skateboards, Bicycles, and Electric Scooters, Dirt Bikes and All-Terrain Vehicles	242-9.2, 242-9.3 Rnbd 242-9.5 as 242-9.7 Added 242-9.5, 242-9.6
23-032	04-26-2023	Granting permission to Overlook LLC, its successors and assigns, to make private improvements within the public right-of-way of Washburn Street and the public right-of-way of Oakland Avenue, adjacent to Lot 1.01, Block 8203, on the Official Tax Assessment Map of the City to install and maintain heated sidewalks	Ch. A352
23-033	04-26-2023	Accepting the dedication of certain roadways, sidewalks, and utilities located within the Van Keuren Redevelopment Area that are necessary for the realignment of Van Keuren Avenue	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
23-035	05-10-2023	Authorizing the sale of an easement to Kingsland Development Urban Renewal, LLC affecting real property owned by the City known as Block 233, Lots 13, as shown on the official tax maps of the Township of Lyndhurst	Ch. A352
23-036	05-10-2023	Amending Chapter 160, Fees and Charges, establishing a revised fee schedule for city-owned and operated swimming pools at Pershing Field Park, Pavonia Municipal Pool, and Lafayette Aquatic Center	160-1.Z
23-037	05-10-2023	Amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, to extend Parking Zone 2 to include Front Street	332-58
23-038	05-20-2023	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
23-039	05-20-2023	Designating newly constructed municipal buildings as One, Two, Three and Four Jackson Square	Ch. A352
23-040	05-24-2023	An ordinance authorizing an emergency appropriation N.J.S.A. 40A:4-53	Ch. A352
23-042	03-24-2023	Authorizing the sale of an easement to the Public Service Electric and Gas Company affecting real property owned by the City known as Block 155, Lot 6 in the Township of Little Falls, Passaic County, New Jersey	Ch. A352
23-043	05-24-2023	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate Halstead Street and Claremont Avenue as a stop intersection	332-9
23-044	5-24-2023	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, to prohibit turns on red at all times at the intersection of Wayne Street and Grove Street Westbound approach	332-8
23-045	05-24-2023	Adopting amendments to Chapter 37, Immigration Affairs Committee	ch. 37 (tit.) 37-1—37-11
23-046	05-24-2023	Authorizing the transfer of the Longwood Dam located at Tax Lot 1 in Tax Block 353.01 (f.k.a. Tax Lot P/O 1 in Tax Block 339) on the official tax map of the Township of Jefferson, Morris County to the Jersey City Municipal Utilities Authority	Ch. A352
23-047	06-14-2023	Amending and supplement Chapter 218, Multiple dwellings, to establish a right to counsel program for Jersey City renters	3-74, 218-7, 218-8, Added 218-11.1—218-11.6
23-048	06-14-2023	Amending Chapter 160, Fees and Charges, by adding new Section 160-2, entitled "Development Fees to Fund Affordable Housing"	Added 160-2
23-049	06-14-2023	Amending Chapter 160, Fees and Charges, and Chapter 316, Tobacco Products and Smoking Devices, to establish licensing requirements for smoke shops and tobacco stores	316-1, 316-2, 316-4, 316-5 Added 160-1.NN.1
23-050	06-14-2023	A bond ordinance providing for the acquisition of, and payment of the purchase price for, real property located at Block 9501, Lot 21 on the official tax map of the City; appropriating $17,200,000 therefor and authorizing the issuance of $17,200,000 bonds or notes of the City to finance the costs thereof	Ch. A352
23-051	06-14-2023	Amending to Chapter 345-21 of the Land Development Ordinance regarding applications and checklists to make the zoning determination letter required upon staff request	345-31.C
23-052	06-14-2023	Adopting amendments to the Powerhouse Arts District Redevelopment Plan regarding the theater to be built on Block 11506 and the constitution of the non-profit board that shall control the theater	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
23-053	06-14-2023	Adopting amendments to the Route 440 Culver Redevelopment Plan to allow for interim uses	Ch. A352
23-054	06-14-2023	Vacating portions of West Side Avenue and Van Keuren Avenue	Ch. A352
23-055	06-14-2023	Adopting the expansion and amendments to the Green Villa Redevelopment Plan	Ch. A352
23-056	06-14-2023	Amending and supplementing Chapter 3, Article XI, Sub-Article I, Division of Police	3-85.1
23-057	06-29-2023	Authorizing the modification of the restrictive covenant at Block 16301, Lot 65 (f.k.a. Block 1827, Lot T, a.k.a. 784-8 West Side Avenue), on the tax maps of the City	Ch. A352
23-058	06-28-2023	Amending chapter 332, Article II, Section 332-9, Stop intersections; and Article III, Sections 332-22, Parking prohibited at all times, and 332-31, Parking restrictions for street cleaning purposes, for Stanfield Lane (formerly known as Sycamore Road)	332-9, 332-22, 332-31
23-059	06-28-2023	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, on Eighteenth Street, North Boulevard, and Washington Boulevard	332-31
23-061	06-28-2023	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
23-062	06-28-2023	Designating Glenwood Avenue, from Kennedy Boulevard to West Side Avenue as "Peacock Way"	Ch. A352
23-063	06-28-2023	Authorizing the City to enter into a lease with Liberty National Development Co, LLC on the real property at Block 27503, Lot 13 on the City's tax map located at the foot of Chapel Avenue for the purposes of reinstating ferry service to the public	Ch. A352
23-064	06-28-2023	Authorizing the acquisition by purchase or condemnation of Block 10601, Lot 42 on the tax map of the City, also known as 50 Journal Square, for the construction of a public park	Ch. A352
23-066	07-12-2023	Amending Chapter 321, Trees	321-1, 321-3, 321-4.A, 321-6.B, 321-10 Added 321-8.1
23-067	07-12-2023	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, and Section 332-24, No parking certain hours, for Marin Boulevard	332-22, 332-24
23-068	07-12-2023	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate Congress Street and Hancock Avenue as multi-way stop control	332-9
23-069	07-12-2023	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, at the Waldo School (110 First Street) and at Iglesia De Dios (180 Hopkins Avenue)	332-24
23-070	07-12-2023	Adopting amendments to the City Code Chapter 345 Land Development Ordinance, Section 345-30, Historic Preservation Review Procedures (Venus Pellagatti Xtravaganza House - 343.5 Eighth Street)	345-30.G
23-071	07-12-2023	Renaming Sycamore Road, east of McGovern Park, from Custer Avenue to Gates Avenue to "Stanfield Lane"	Ch. A352
23-073	08-16-2023	Amending Section 160-2, Development fees to fund affordable housing, to include an exemption for owner-occupied residential structures containing four or fewer units	160-2

Ordinance Number	Date of Adoption	Description	Disposition
23-074	08-16-2023	Amending Chapter 239, Parks and Recreation, authorizing the Director of Recreation to designate areas within parks for the parking of vehicles used by holders of permits for farmers' markets	239-6.F
23-075	08-16-2023	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, on North Street between Tonnele Avenue and Terrace Avenue and amending Ord. No. 23-059	332-31
23-078	04-23-2025	Adopting amendments to the Land Development Ordinance regarding definitions (Sec. 345-6) and cannabis establishments and distributors (Sec. 345-60.5)	345-6, 345-60.5
23-079	09-07-2023	Granting permission to 335 Washington Realty, LLC, its successors and assigns, to make private improvements including stairs, ramps and platform, within the public right-of-way of Washington Street and the public right-of-way of Bay Street, adjacent to Lot 1.02, Block 11611, on the Official Tax Assessment Map of the City	Ch. A352
23-080	09-07-2023	Granting permission to 215 Warren LLC pursuant to a resolution of the planning board of the City under Case #P21-153, to landscape a portion of the sidewalk up to three and a half feet encroaching into the right-of-way of Sussex Street for the benefit of Lot 22 at Block 14202, land now or formerly of 215 Warren LLC, presently the lot encroaches at least five feet into the right-of-way beyond the boundary lines of Lot 22 in Block 14202 and into the aforementioned rights-of-way	Ch. A352
23-081	09-07-2023	An ordinance (1) amending Chapter 3, Article VI, Section 3-41, Powers and duties of the Business Administrator, to authorize the Business Administrator to execute license agreements with owners of high-rise buildings under construction to permit the Division of Fire and Emergency Services to conduct high-rise crane operator rescue training and fire suppression system training, and (2) approving a form license agreement for high-rise crane operator rescue training and fire suppression system training	Added 3-41.F
23-082	09-07-2023	Authorizing the transfer of City-owned real property identified on the tax map of the City as Block 11401, Lot 25 to the Jersey City Redevelopment Agency	Ch. A352
23-083	09-07-2023	Authorizing the City to enter into a lease with the New Jersey Schools Development Authority on the real property at Block 21102, Lot 52 on the City's tax map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	Ch. A352
23-084	09-07-2023	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, to prohibit turns on red at all times at two locations on the high-injury network	332-8
23-085	11-08-2023	Granting permission to 331 Sip, LLC, its successors and assigns, to make private improvements consisting of upper floor projections over the public sidewalk in a new residential building on the south side of 331 Sip Avenue, also known as Block 11902, Lot 3/4, on the Official Tax Assessment Map of the City	Ch. A352
23-086	09-20-2023	Providing for various 2023 capital improvements by and in the City; reappropriating $11,730,000.00 in excess bond proceeds from various bond ordinances, not needed for their original purpose, to finance the costs thereof	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
23-088	09-20-2023	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, and Section 332-8, Prohibited right turns on red signal; and Article III, amending Section 332-22, Parking prohibited at all times, and Section 332-24, Parking prohibited certain hours, on Academy Street between Tuers Avenue and Van Reypen Street as part of the Bergen Square Capital Improvements Project	332-5, 332-8, 332-22, 332-24
23-089	09-20-2023	Amending Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, and Article III, Section 332-22, Parking prohibited at all times, on Duncan Avenue between Route 1&9 and West Side Avenue	332-8, 332-22
23-090	09-20-2023	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
23-091	09-20-2023	Rescinding Ordinances 17-107 and 20-083 and terminating the tax exemption and financial agreement with CICF II-NJB02 UR, LLC	Ch. A352
23-092	09-20-2023	Amending Section 304-32, Guidelines for the Expenditure of Funds	304-32
23-093	09-20-2023	Approving a thirty-year tax exemption for a mixed-use residential project and authorizing a financial agreement with Bayfront Partners 32 Urban Renewal L.P., pursuant to the Long-Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq.	Ch. A352
23-094	09-20-2023	Adopting amendments to the Morris Canal Redevelopment Plan including the creation of the Mixed Use - F Zone from properties currently zoned I District and Mixed Use - B District	Ch. A352
23-095	11-29-2023	Granting permission to FD Monitor, LLC, its successors and assigns, to make private improvements in both the Monitor Street and Maple Street public rights-of-way adjacent to the property located at 62-68 Monitor Street, Jersey City, New Jersey, also known on the tax maps of the City as Block 15802, Lot 37	Ch. A352
23-098	10-15-2023	Approving a tax exemption and authorizing a financial agreement regarding Lafayette Village pursuant to the New Jersey Housing and Mortgage Finance Agency Law, N.J.S.A. 55:14K-1 et seq.	Ch. A352
23-099	10-25-2023	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, for Halleck Avenue	332-22
23-100	10-25-2023	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, on Smith Street	332-31
23-101	10-25-2023	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
23-102	10-25-2023	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, at the Soho Lofts (273 16th Street)	332-22
23-103	10-25-2023	Amending the Jersey City Land Development Ordinance, Chapter 345, article I, Definitions; Article III, Section 345-16 Site plan review; Article V, Zoning; and the official zoning map	345-6, 345-16, 345-41—345-44, 345-45.2, 345-46, 345-46.2, 345-47, 345-58, 345-59.4, 345-59.7, 345-60, 345-60.5, 345-68, 345-70 Rpld 345-40—345-40.2, 345-46.1 Added 345-40, 345-40.1, 345-46.1

Ordinance Number	Date of Adoption	Description	Disposition
23-104	11-08-2023	Accepting the dedication of certain roadways, sidewalks, and utilities located on a portion of Regent Street between River Street and Douglas and Arthur Skinner Memorial Drive, a portion of the southerly end of River Street, and a portion of Regent Street between Liberty View Drive and River Street in the Liberty Harbor North Redevelopment Area	Ch. A352
23-106	11-08-2023	Amending Section 332-7, Prohibited Turns at Intersections, to prohibited eastbound left turns at Ninth Street and Marin Boulevard	332-7
23-107	11-08-2023	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, to prohibit turns on red at all times at Montgomery Street and Merseles Street, and Montgomery Street and Center Street	332-8
23-108	11-08-2023	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate Ravine Avenue at New York Avenue and Congress Street at Sherman Avenue as all-way stop controlled intersections	332-9
23-109	11-08-2023	Amending and supplementing Chapter 160, Fee Schedule Established, subsection SS, Vehicles and Traffic, amending non- residential parking permit fees	160-1.SS
23-110	11-08-2023	Establishing Chapter 91, Animal Welfare Advisory Committee	Added 91-1—91-7
23-111	11-29-2023	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
23-112	11-29-2023	Supplementing Chapter 332, Article II, amending Section 332-5, One-way streets, and Article III, amending Section 332-22, Parking prohibited at all times, to improve the safety of the New York Avenue and Ravine Avenue intersection and convert Ferry Street into a two-way street between Webster Avenue and New York Avenue	332-5, 332-22
23-113	11-29-2023	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, on Ocean Avenue at Berry Gardens	332-22
23-114	11-29-2023	Authorizing the execution of a deed of easement for public access between Avenir, LP and the City and the execution of a thirty-foot setback easement agreement between Avenir, LP and the City affecting Block 9301, Lot 30.01 a/k/a 66 Broadway and f/k/a 1072-1075 West Side Avenue	Ch. A352
23-115	11-29-2023	Repealing Ordinance 08-128, contractor pay-to-play reform ordinance, in its entirety	Rpld 3-51.1
23-116	11-29-2023	Providing for a special emergency appropriation in the amount of $10,000,000.00 to fund contractually required severance liabilities resulting from the retirement of employees of the City	Ch. A352
23-118	12-13-2023	Amending Chapter 90, Article III, Section 90-12, Definitions, and Chapter 160, Section 90-14, Permits and fees, Subsection E, Animals, to add and increase fees for animal control and animal shelter services	90-12 160-1.E
23-120	12-13-2023	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate the intersections of Dudley Street and Warren Street and Dudley Street and Washington Street into multi-way stop controlled intersections	332-9

Ordinance Number	Date of Adoption	Description	Disposition
23-121	12-13-2023	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, and Section 332-31, Parking restrictions for street cleaning purposes, on Bennett Street between Ege Avenue and Clarke Avenue	332-22
23-122	12-13-2023	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, on Central Avenue between Route 139 and Newark Avenue	332-31
23-123	12-13-2023	Granting permission to Dhaval Patel and Jayshri Mepani pursuant to resolution of Planning Board of the City under Case #P22-199; allowing the installation of stoops, bay windows, and planting beds which encroach and extend into the right-of-way beyond the boundary lines of Lot 33, Block 8502, and are for the benefit of Lot 33, Block 8502, land now or formerly of Dhaval Patel and Jayshri Mepani and commonly known as 352 Pavonia Avenue, Jersey City, New Jersey	Ch. A352
23-124	12-13-2023	Adopting amendments to the Newport and Harsimus Cove Station Redevelopment Plans	Ch. A352
23-125	12-13-2023	Canceling fourth (4th) Quarter omitted i added assessment for the 2019 real estate tax year on Block 21401 Lot 29, Block 5906 Lot 14, Block 17803 Lot 6, Block 23001 Lot 32.01, Block 29601 Lot 38, Block 14905 Lot 34 and Block 30101 Lot 26 on the official tax map of the City due to erroneous assessments	Ch. A352
23-126	01-10-2024	Amending and supplementing Chapter 160, Fees and Charges; Chapter 296, Article I, General Provisions; Duties of Property Owners and Occupants; Article II, Closure of the Public Right-of-Way; Article III, Excavations within the Public Right-of-Way; and Chapter 345, Article IV, Fees, Deposits and Inspections	160-1.A, JJ 296-1.1, 296-2.1, 296-3.16(6) Added 242-7.1, 345-32.D
23-127	01-10-2024	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
23-128	01-10-2024	Revising the street names in the Bayfront Redevelopment Site	Ch. A352
24-003	02-07-2024	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate the intersection of West Side Avenue and Pavonia Avenue as a multi-way stop controlled intersection	332-9
24-004	02-22-2024	Adopting amendments to the Powerhouse Arts District Redevelopment Plan to incorporate educational uses	Ch. A352
24-005	02-22-2024	Authorizing the City to execute an extension of a lease with the New Jersey Schools Development Authority on the real property at Block 21102, Lot 52 on the City's tax map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	Ch. A352
24-006	02-22-2024	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, and Section 332-27, Angle parking, on Elm Street, west of Kennedy Boulevard	332-22, 332-27
24-007	03-06-2024	Naming the playground located at J. Owen Grundy Park the "Jeremy Farrell Playground" in honor of Jeremy Farrell	Ch. A352
24-009	03-20-2024	Adopting amendments to the Paulus Hook Redevelopment Plan and creating the Block 11606 Redevelopment Plan	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
24-010	03-06-2024	Amending Chapter 69, Article II, Central Avenue Special Improvement District)	69-19 Added 69-19.1—69-19.3
24-011	03-06-2024	Approving technical amendments to Ordinances 22-084 and 23-103 to correct typographical errors	345-41.C.9, 345-58.1
24-012	03-20-2024	Adopting amendments to the Liberty Harbor North Redevelopment Plan regarding use and bulk standards on Tax Block 15907 also known as Block 24 of the Redevelopment Plan	Ch. A352
24-013	03-20-2024	Supplementing Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, to prohibit turns on red at all times at multiple locations in proximity to schools and parks in the Heights neighborhood	332-8
24-014	04-10-2024	Amending Chapter 87, Article I, Automatic amusement devices	87-6 Added 87-6.1—87-6.10
24-015	04-10-2024	Codifying the planting of native plants throughout the City	Added 48-1—48-12
24-016	04-10-2024	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
24-017	04-10-2024	Amending the Charter of the City of Jersey City to adopt ranked choice voting as the method to elect the Mayor, Council, and School Board subject to the approval of this ordinance by the voters to amend the City Charter by binding referendum to be held upon the enactment of state legislation permitting such Charter amendment	NCM
24-018	04-10-2024	Naming the Miller Branch Library Cultural Arts Center Auditorium as the "Daoud-David Williams Cultural Arts Center" in honor of Daoud-David Williams	Ch. A352
24-020	04-24-2024	Authorizing the acquisition of a section of the Hudson River Walkway known as Block 14502, Lot 4, formerly known as Block 8, Lot 5 from the Jersey City Redevelopment Agency	Ch. A352
24-021	04-24-2024	Granting an easement to the Lyndhurst Board of Education affecting real property owned by the City known as Block 233, Lots 11, as shown on the official tax maps of the Township of Lyndhurst	Ch. A352
24-022	04-24-2024	Authorizing an amendment to a certain dedication agreement among 126-142 Morgan Street Urban Renewal, LLC, 134 Bay Street, LLC, and the City dated May 28, 2019 for certain land and improvements located within the Powerhouse Arts District Redevelopment Area at Provost Street between Bay Street and Morgan Street	Ch. A352
24-023	04-24-2024	Creating Chapter 276, Lithium-Ion Batteries, prohibiting the sale of second-use lithium-ion batteries; creating a lithium-ion battery business registry and charging regulations for lithium-ion batteries; and supplementing Chapter 160, Fees and Charges, establishing a fee for the inspection of sellers of lithium-ion batteries and powered mobility device businesses	Added 160-1.FF.1 276-1-276-9
24-024	04-24-2024	Amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, to establish public parking for the McGinley Square Commercial District	332-58.1.B
24-025	05-08-2024	Expanding the boundaries of the Historic Downtown Special Improvement District to include sections of Marin Blvd., Monmouth St., Brunswick St., 4th St., and Newark Ave.	69-21, note

Ordinance Number	Date of Adoption	Description	Disposition
24-027	05-08-2024	Amending Chapter 296, Streets, Sidewalks and Public Rights-of-Way, to clarify the duration of time that a dumpster may be legally placed in the right-of-way	296-5.3
24-028	05-08-2024	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
24-029	05-08-2024	Supplementing Chapter 332, Article II, Section 332-8, Prohibited Right Turns on Red Signal; Article III, Section 332-22, Parking prohibited at all times; and Section 332-24.1, Limited duration parking, to implement safety improvements along Mallory Avenue	332-8, 332-22, 332-24.1
24-031	05-22-2024	Granting an easement to Morris Kearny Associates Urban Renewal, LLC affecting real property owned by the City known as Block 287, Lot 5, as shown on the official tax maps of the Town of Kearny	Ch. A352
24-033	05-22-2024	An ordinance to exceed the Calendar Year 2024 municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40a:4-45.14)	Ch. A352
24-034	06-12-2024	A refunding bond ordinance authorizing the issuance of not to exceed $18,720,000.00 aggregate principal amount of refunding bonds and/or refunding notes by the City for the purpose of funding (i) an emergency appropriation to pay tax appeal liabilities pursuant to N.J.S.A. 40A:4-46 and (ii) an emergency temporary appropriation to pay tax appeal liabilities pursuant to N.J.S.A. 40A:4-20	Ch. A352
24-036	05-22-2024	Approving a thirty-year tax exemption for a multi-site affordable rental project to be renovated by Montgomery Gateway Preservation, L.P., pursuant to the New Jersey Housing and Mortgage Finance Act of 1983, as amended and supplemented N.J.S.A. 55:14K-1, et seq. and the rules promulgated under N.J.A.C. 5:80-1 et seq.	Ch. A352
24-037	05-22-2024	Amending Chapters 175, Food Handling Establishments, and 242, Peace and Good Order, to establish regulations for third party delivery companies and food delivery drivers	Rpld 175-1 Added 175-1—175-5 Rnbd 242-9.7 as 242-9.8 Added 242-9.7
24-039	06-12-2024	Amending Chapter 160 to add Section 160-3, Public safety, to include a fee for the use of the City's de-escalation center	Added 160-3
24-041	06-12-2024	Creating amendments to the Jackson Hill Redevelopment Plan	Ch. A352
24-042	06-12-2024	Amending the Exchange Place North Redevelopment Plan to allow for hospital and long-term care facilities	Ch. A352
24-043	06-12-2024	Authorizing the City to renew the lease with Brunswick Community Garden also known as Jersey City Community Gardening, Inc. for the use of Block 9905, Lots 8 and 9, more commonly known as 174-176 Brunswick Street for a community garden	Ch. A352
24-044	06-12-2024	Authorizing the City to renew the lease with Greater Neighborhood Alliance for the use of Block 30003, Lot 45, more commonly known as 81 Garfield Avenue for a community garden	Ch. A352
24-045	05-22-2024	Authorizing the City to renew the lease with Mandela Garden sponsored by the Greater Neighborhood Alliance for the use of Block 19503, Lot 36, more commonly known as 447 Martin Luther King Drive for a community garden	Ch. A352

Ordinance Number	Date of Adoption	Description	Disposition
24-047	06-26-2024	A bond ordinance providing for various 2024 capital acquisitions and improvements, by and in the City; appropriating $60,000,000.00 therefor and authorizing the issuance of $57,000,000.00 bonds or notes of the City to finance part of the costs thereof	Ch. A352
24-048	06-12-2024	Authorizing a lease of a City-owned theatre located at Block 11506, Lot 2.01 commonly known as 151 Bay Street to the Provost Square Performing Arts Company Inc, a New Jersey non-profit corporation, for the purpose of providing culturally enriching experiences to the Jersey City community through the arts	Ch. A352
24-049	06-26-2024	Amending Chapter 188, Housing Accommodations and Affordable Housing Compliance	160-1.R 188-7—188-18
24-050	06-26-2024	Supplementing Chapter 332, Article II, Section 332-8, Prohibited Right Turns on Red Signal, to prohibit turns on red at all times along Montgomery Street	332-8
24-051	06-26-2024	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate the intersections along Griffith Street as a multi-way stop controlled intersections	332-9
24-052	06-26-2024	Supplementing Chapter 332, Article II, Section 332-9, Stop intersections, to designate the intersections of Monticello Avenue with Fairmount Avenue and Storms Avenue as a multi-way stop controlled intersections	332-9
24-053	06-26-2024	Adopting amendments to the Greenville Industrial Redevelopment Plan to create the Linden Avenue East Remediation and Improvement bonus	Ch. A352
24-054	06-26-2024	Authorizing the sale of certain easement and property ownership rights in City property located at Block 287, Lot 5, and Block 149, Lot 9 on the tax maps of the Town of Kearny to the New Jersey Department of Transportation for $1,098,000.00 subject to the City's rights to continued use and maintenance of its waterline	Ch. A352
24-055	06-26-2024	Amending Section 218-1, Uniformed security service, and Section 218-1.1, Security service for senior citizen housing/housing for the disabled mandatory	218-1, 218-1.1
24-057	07-10-2024	Adopting amendments to the Luis Munoz Marin Boulevard Redevelopment Plan regarding use and bulk standards to District 2 of the Redevelopment Plan and other associated standards	Ch. A352
24-058	07-10-2024	Authorizing the acquisition by purchase or condemnation of a portion of a private easement located between City Block 9905, Lot 9 and a portion of Block 9906, Lot 1 that traverses the Brunswick Community Garden	Ch. A352
24-059	07-10-2024	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
24-060	08-14-2024	Amending Chapter 332, Article II, Section 332-9, Stop intersections, to designate the intersection of Van Vorst Street and Morris Street as a stop controlled intersection	332-9
24-061	08-14-2024	Amending Chapter 332, Article III, Section 332-24.1, Limited duration parking, along Mallory Avenue at Williams Avenue	332-24.1
24-062	08-14-2024	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69

Ordinance Number	Date of Adoption	Description	Disposition
24-063	08-14-2024	Amending Chapter 332, Article VIII, Section 332-58, Parking Restrictions in Residential Zones, to extend Parking Zone 2 to include Newark Avenue between Senate Place and Tonnele Avenue	332-58
24-064	08-14-2024	Amending Ordinance 23-093 and authorizing the execution of three financial agreements	Ch. A352
24-065	08-14-2024	Amending the Journal Square 2060 Redevelopment Plan regarding inclusion of a mandatory affordable housing requirement along with updates to some bulk, signage, and use standards	Ch. A352
24-066	09-11-2024	Amending Chapter 160, Section 160-1, Subsection X, Chapter 254 Property Maintenance, the fee schedule for lead-based hazard inspection of rental units pursuant to P. L. 2021, C. 182	160-1.X
24-068	09-11-2024	Adding Chapter 263, Article IV, Retail and Commercial Premises, to prohibit the distribution of plastic straws and nonreusable food and beverage accessories by food service establishments	Added 263-12—263-16
24-069	09-11-2024	Amending Chapter 332, Article I, General Provisions, and Article III, Parking, Standing and Stopping	332-1.B, 332-31
24-070	09-11-2024	Amending Chapter 332, Article II, Section 332-8, Prohibited Right Turns on Red Signal, to prohibit turns on red at all times at the intersection of Montgomery Street and Grove Street	332-8
24-071	09-11-2024	Granting permission to the Number Spot Inc. to allow the Number Spot Inc. to install a handicap entrance ramp beyond the boundary line of Lot 9, Block 18503, and for the benefit of Lot 9, Block 18503 commonly known as 539 Martin Luther King Jr. Drive	Ch. A352
24-072	09-11-2024	Authorizing the City to execute an extension of a lease with the New Jersey Schools Development Authority on the Real Property at Block 21102, Lot 52 on the City's Tax Map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	Ch. A352
24-073	09-11-2024	Adopting the Fayette Broadway Redevelopment Plan	Ch. A352
24-074	09-11-2024	Regarding the proper storage of road salt and other solid de-icing materials on privately owned properties	Added 281-14—281-20
24-075	09-11-2024	Authorizing a lease agreement between the City and Verizon New Jersey Inc. for property located at 71 Madison Avenue	Ch. A352
24-076	09-25-2024	Disestablishing the Jersey City Municipal Construction Board of Appeals	Rpld 131-2—131-8
24-077	09-25-2024	Amending the Scatter Site Redevelopment Plan - Study Area 5	Ch. A352
24-079	09-25-2024	Amending Chapter 287, Article I, Storage, Collection and Disposal, and Article III, Private Collectors	287-2, 287-4, 287-8.H, 287-15.A, 287-40 Added 287-11.D, 287-20.C, 287-28.G
24-081	09-25-2024	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
24-082	09-25-2024	Amending Chapter 332, Article II, Section 332-9, Stop Intersections, to designate the intersection of Mallory Avenue and Roosevelt Avenue as a multiway stop controlled intersection	332-9

Ordinance Number	Date of Adoption	Description	Disposition
24-083	09-25-2024	Amending Chapter 332, Article II, Section 332-9, Stop Intersections, to designate the intersection of Marin Boulevard and Sixteenth Street as a multi-way stop controlled intersection	332-9
24-085	09-25-2024	Amending Chapter 332, Article III, Section 332-27, Angle parking, on Second Street between Provost Street and Warren Street	332-27
24-086	09-25-2024	Approving a 30-year tax exemption for a mixed-use residential project with cultural, educational and arts spaces and authorizing financial agreements with 808 Pavonia Owner Urban Renewal LLC and 808 Pavonia II Owner Urban Renewal LLC pursuant to the Long Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq.	Ch. A352, Table 6
24-087	10-17-2024	Amending Chapter 188 to establish a local preference for affordable housing units created by local regulations and requirement	188-15
24-089	10-30-2024	Authorizing the City, as tenant, to extend for two years a lease with 18 Ash Street Realty, as landlord, for space located at 46 State Street	Ch. A352
24-090	10-30-2024	Amending Chapter 84, Article I, Plenary Retail Consumption and Distribution Licenses	84-3
24-092	10-30-2024	Amending Chapter 332, Article II, Section 332-5, One-way streets, to convert Twelfth Street between Monmouth Street and Coles Street into a one-way street in the eastbound direction	332-5
24-093	10-30-2024	Amending Chapter 332, Article II, Section 332-9, Stop intersections, to designate the intersection of Clinton Avenue and Sackett Street as a multi-way stop controlled intersection	332-9
24-094	10-30-2024	Amending Chapter 332, Article II, Section 332-9, Stop Intersections, to designate various downtown intersections as multi-way stop-controlled intersections	332-9
24-095	10-30-2024	Amending Chapter 332, Article III, Section 332-24.1, Limited duration parking, for 15-minute parking zones near Mallory at Roosevelt Avenue	332-24.1
24-096	10-30-2024	Adopting revised and updated fees for Chapter 345, the Land Development Ordinance, related to zoning review applications and some applications for the Planning and Zoning Board	345-33.B
24-097	10-30-2024	Granting permission to Jasco Management Corp. for a five-foot, five and a half-inch by 23-foot, five and a half-inch ramp encroachment at Lot 20 in Block 20004, also known as 307 Pacific Avenue, into the right-of-way	Ch. A352
24-099	11-14-2024	Authorizing certain temporary and permanent easements to the New Jersey Department of Environmental Protection in connection with the Rebuild by Design Hudson River project consisting of work for stormwater separation, utility relocation, pile driving, sheet piling, and installation of hard structures such as floodwalls and deployable gates at various locations on Jersey Ave., Grove St., Marin Blvd., and 18th St.	Ch. A352
24-100	11-26-2024	Providing for a special emergency appropriation in the amount of $9,000,000 to fund contractually required severance liabilities resulting from the retirement of employees of the City	Ch. A352
24-101	11-26-2024	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69

Ordinance Number	Date of Adoption	Description	Disposition
24-102	11-26-2024	Amending Chapter 332, Article VII, Section 332-48.B, Designation of parking spaces, and Section 332-58, Parking regulations in residential zones, to amend the Zone 4 and metered parking districts along Columbus Drive between Warren St and Washington St	332-48.B, 332-48
24-103	11-26-2024	Amending Chapter 332, Article VIII, Section 332-58, Parking Restrictions in Residential Zones, to create Parking Zone 9 on Princeton Avenue	332-58
24-105	12-11-2024	Authorizing the City to execute a sublease between the Provost Square Performing Arts Company Inc. and the New Jersey Symphony for the purpose of providing culturally enriching experiences to the Jersey City community through the arts	Ch. A352
24-107	01-15-2025	Amending the West Side Avenue Redevelopment Plan expanding allowed uses in the Loft Residential District	Ch. A352
25-001	02-13-2025	Adopting amendments to the Morris Canal Redevelopment Plan including regarding standards in the Mixed Use - C and Mixed Use - E Districts	Ch. A352
25-004	02-13-2025	Granting permission to Sam Steinberg, his successors and assigns, to use approximately 216.62 square feet over the public right-of-way within the 50-foot right-of-way of First Street, adjacent to Lots 8, 9 and 10, Block 12603, on the Official Tax Assessment Map of the City	Ch. A352
25-005	05-21-2025	Implementing Chapter 67, Article III, Provost Street between Bay Street and Morgan Street Pedestrian Mall	Added 67-21—67-30
25-006	02-13-2025	Amending Chapter 105, Demolition; Chapter 131, Construction Codes, Uniform; Chapter 160, Fees and Charges; and Chapter 345, Article III, Sections 30 and 31, "Local landmark designation standards" and Section 33	105-1—105-3, 160-1.UU, 345-30, 345-31, 345-33.B Rpld 105-4, 105-6, 105-7 Rnbd 105-5 as 105-4 Rnbd 105-8—105-14 as 105-5—105-11
25-007	02-13-2025	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, at PS 37 along Ninth Street east of Erie Street	332-24
25-008	02-13-2025	Amending Chapter 332, Article VIII, Section 332-58, Parking regulations in residential zones, to amend the zone parking districts along Newark Ave between 6th and 7th Streets	332-58.B
25-009	01-15-2025	Amending Chapter 69, Article II, Central Avenue Special Improvement District, to be consistent with other special improvement district implementing articles	Rpld 69-15—69-19.3 Rnbd 69-1—69-14.2 as 69-17—69-32 Rnbd 69-20—69-35 as 69-33—69-48 Rnbd 69-36—69-51.1 as 69-49—69-64.1 Rnbd69-52—69-67 as 69-65—69-80 Rnbd 69-68—69-81 as 69-81—69-95 Rnbd 69-82—69-97 as 69-97—69-112 Added 69-1—69-16, 69-96
25-010	02-26-2025	Supplementing Chapter 131, Construction Codes, Uniform, adopting the updated Construction Site Safety Manual, 2024 Edition, and requirements for standpipes and incorporating the safety regulations contained therein, by reference, into Chapter 131	131-1

Ordinance Number	Date of Adoption	Description	Disposition
25-011	02-26-2025	Amending Chapter 160, Fees and Charges, amending the fee schedule for City-owned and operated swimming pools at Pershing Field Pool, Pavonia Municipal Pool and Lafayette Aquatic Center	160-1.Z
25-012	02-26-2025	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, at PS 16 (96 Sussex Street)	332-24
25-013	02-26-2025	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
25-014	02-26-2025	Amending Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, to prohibit turns on red at all times at multiple locations in proximity to schools, parks, and protected bicycle lanes	332-8
25-015	02-26-2025	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, at PS 37 along Ninth Street east of Erie Street	332-24
25-016	02-26-2025	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, at Danforth Avenue Early Childhood Center (160 Danforth Avenue)	332-24
25-017	02-26-2025	An ordinance approving a 23-year tax exemption and authorizing a financial agreement for a multi-site affordable rental project previously renovated by Roseville Avenue Redevelopment Urban Renewal, pursuant to the New Jersey Housing and Mortgage Finance Act of 1983, as amended and supplemented, N.J.S.A. 55:14k-1, et seq. and the rules promulgated under N.J.A.C. 5:80-1 et seq.	Ch. A352
25-019	02-26-2025	Authorizing the City to execute an extension of a lease with the New Jersey Schools Development Authority on the real property at Block 21102, Lot 52 on the City's Tax Map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	Ch. A352
25-020	03-12-2025	Expanding the boundaries of the Exchange Place Alliance Special Improvement District to include sections of Marin Boulevard, Christopher Columbus Drive, Morgan Street, Bay Street, First Street, Steuben Street, and Provost Street	69-84
25-021	03-12-2025	Authorizing the transfer of City-owned real property identified on the Tax Map of the City as Block 14905, Lots 17, 18, and 19 a/k/a 302 Fairmount Avenue to the Jersey City Redevelopment Agency	Ch. A352
25-022	03-12-2025	Amending the Jersey City Land Development Ordinance, Chapter 345, Article III, Application Requirements, Development Procedures and Checklists	345-22.A, 345-23.A, 345-24.A, 345-28.A
25-023	03-12-2025	Approving a technical amendment to Ordinance 24-096 language in Chapter 345 for zoning fees	345-33.B
25-025	03-26-2025	Amending Ordinance 22-089 that authorized the City to accept from 134 Bay Street, LLC three theater condominium units within the property located at 155 Bay Street, Jersey City and authorizing the City to accept from 134 Bay Street, LLC one residential condominium unit at 155 Bay Street	Ch. A352
25-026	04-23-2025	Amending Chapter 131, Construction codes, uniform" requiring applicants for construction permits to demonstrate prior approvals from certain City officials and agencies	Added 131-2
25-027	03-26-2025	Amending CHAPTER 160, Section 160-3, Public safety, of the Code of Ordinances of the City to include a fee for the use of the City's de-escalation center	160-3

Ordinance Number	Date of Adoption	Description	Disposition
25-028	03-26-2025	Amending Chapter 160, Fees and Charges, and Chapter 175, Food Handling Establishments, as regards regulation and permits for mobile food vendors	160-1.SS(14)
			175-10.D
25-030	04-09-2025	Granting permission to Liberty Harbor North Partners, LLC, its successors and assigns, to allow decorative pilasters, four-foot bay windows, and a ten-foot awning to encroach onto the public right-of-way at Block 15907, Lot 3, Qualifier C0002	Ch. A352
25-032	04-09-2025	Amending Chapter 296, Article II, Closure of the Public Right-Of-Way, requiring Council approval of applications for street closures requiring the closing of ten City blocks for five hours or more	296-2.11.A
25-033	04-09-2025	Amending Chapter 321 of the Municipal Code of the City	321-1—321-6, 321-6.1, 321-8, 321-8.1, 321-9 Added 321-6.01
25-034	04-09-2025	Amending Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
25-035	04-09-2025	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, on Enos Place	332-22
25-037	04-09-2025	Authorizing the City to renew the lease with Brunswick Community Garden also known as Jersey City Community Gardening, Inc. for the use of Block 9905, Lots 8 and 9, more commonly known as 174-176 Brunswick Street for a community garden	Ch. A352
25-038	04-09-2025	Authorizing the City to enter into a lease with Dwight Street Block Association for the use of Block 25604, Lot 8, more commonly known as 185 Dwight Street for a community garden	Ch. A352
25-039	04-09-2025	Authorizing the City to renew the lease with Greater Neighborhood Alliance for the use of Block 30003, Lot 45, more commonly known as 81 Garfield Avenue for a community garden	Ch. A352
25-040	04-09-2025	Authorizing the City to renew the lease with Mandela Garden sponsored by the Greater Neighborhood Alliance for the use of Block 19503, Lot 36, more commonly known as 447 Martin Luther King Drive for a community garden	Ch. A352
25-041	04-09-2025	Authorizing the City to enter into a lease with 167 McAdoo Avenue Condominium Association for the use of Block 26301, Lot 28, more commonly known as 142 McAdoo Avenue	Ch. A352
25-042	04-09-2025	Authorizing the City to renew the lease with Ogden's End Community Garden sponsored by the Riverview Neighborhood Association for the use of Block 5202, Lot 28, more commonly known as 100 Ogden Avenue	Ch. A352
25-043	04-09-2025	Adopting amendments to the Chapel Avenue Industrial Park Redevelopment Plan	Ch. A352
25-044	04-09-2029	Approving a 30-year tax exemption to JHRC Senior Housing LLC concerning 259 Van Nostrand Ave, Block 25402, Lot 19, pursuant to the New Jersey Housing and Mortgage Finance Act of 1983, as amended and supplemented N.J.S.A. 55:14K-1, et seq. and the rules promulgated under N.J.A.C. 5:80-1 et seq.	Ch. A352
25-045	04-23-2025	Amending Chapter 84, Alcoholic Beverage and Cannabis, to amend regulations of cannabis establishments and cannabis distributors	84-44, 84-45, 84-47, 84-49, 84-51—84-53

Ordinance Number	Date of Adoption	Description	Disposition
25-046	04-23-2025	Designating the Jersey City municipal offices located at 394 Central Ave., Jersey City, NJ 07307 as the "Michael Yun Municipal Services Center"	Ch. A352
25-047	04-23-2025	Dedicating Judge James McCaffery's former Courtroom #4 in the Jersey City Municipal Court as the James "Jay" McCaffery Memorial Courtroom	Ch. A352
25-048	04-23-2025	Approving a 30-year tax exemption for 701 Newark Avenue, LLC, Block 7902, Lots 25, 26, 27, 28 and 29, to be known as Block 7902, Lot 25.01, more commonly known by the street address of 693-701 Newark Avenue, Jersey City, New Jersey 07306 pursuant to the New Jersey Housing and Mortgage Finance Act of 1983, as amended and supplemented, N.J.S.A. 55:14K-1, et seq. and the rules promulgated under N.J.A.C. 5:80-1 et seq.	Ch. A352
25-049	04-23-2025	Granting permission to St. George and St. Shenouda Coptic Orthodox Church to encroach onto the public right-of-way (sidewalk) along the frontage of 395 Sip Avenue, Block 11801.01, Lot 1 and Lot 3	Ch. A352
25-050	05-07-2025	An ordinance to exceed the Calendar Year 2025 municipal budget appropriation limits and to establish a cap bank (N.J.S.A. 40a: 4-45.15a)	Ch. A352
25-051	05-07-2025	Authorizing an amendment to a dedication agreement between Grand & Jersey, LLC and the City for certain land and improvements located on a portion of Regent Street between Liberty View Drive and Douglas and Arthur Skinner Memorial Drive in the Liberty Harbor North Redevelopment Area	Ch. A352
25-052	05-07-2025	Amending Ordinance 25-010 updating the Construction Site Safety Manual with a 2024 Edition to (1) include the Installation Requirements And Maintenance For Air Pressurized Standpipes For Buildings Under Construction or Demolition and (2) delete references to the 2019 Edition of the Construction Site Safety Manual	131-1
25-053	05-07-2025	Authorizing the conveyance of Block 11401, Lot 14, more commonly known by the street address of 247 First Street, to the Jersey City Redevelopment Agency	Ch. A352
25-054	05-07-2025	Amending Chapter A352, Enabling Ordinances, renaming Courthouse Place, from Baldwin Avenue to Oakland Avenue in the City, to "Robert Byrne Way"	Ch. A352
25-055	05-21-2025	Authorizing the execution of a temporary construction easement and access easement agreement between the City and Statco Development Group, LLC (Statco) authorizing Statco to install and maintain one monitoring well at 605 Monmouth Street	Ch. A352, Table 4
25-056	05-21-2025	Amending Chapter 3, Article X, Department of Housing, Economic Development and Commerce, to amend the required wage, benefit, and leave standards for building service workers on covered development projects	3-76
25-057	05-21-2025	Amending Chapter 218, Multiple Dwellings, by adding new Section 12, entitled "Preventing algorithmic rent-fixing in the rental housing market"	Rnbd 218-12—218-16 as 218-13—218-16.1 Added 218-12
25-058	06-11-2025	Amending Chapter 175, Food Handling Establishments, creating Itinerant Mobile Truck Parking Zone 3	175-13.A Added 175-15
25-059	06-11-2025	Amending and supplementing Chapter 255, Short-Term Rentals	255-1—255-7
25-060	06-11-2025	Supplementing Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69

Ordinance Number	Date of Adoption	Description	Disposition
25-061	06-11-2025	Amending Chapter 332, Article II, Section 332-9, Stop intersections, to designate the intersection of Bergen Avenue and Woodlawn Avenue as a multi-way stop-controlled intersection	332-9
25-062	06-11-2025	Amending Chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, on Berry Lane and Forrest Street	332-31
25-063	06-11-2025	Amending Chapter 332, Article VII, Section 332-48, Designation of parking spaces, on Liberty Avenue between Newark Avenue and Van Winkle Avenue	332-48
25-064	06-11-2025	Amending Chapter A352, Enabling Ordinances, dedicating a plaque on a bench located on Grove Street (or Newark Avenue) in the City of Jersey City, in honor of Arif Patel	Ch. A352, Table 7
25-065	06-25-2025	Opting into the Garden State C-PACE Program to facilitate the financing of C-PACE projects	NCM
25-066	06-25-2025	Amending Chapter 90, Animals	90-1, 90-2, 90-5, 90-10—90-12, 90-14 Rpld 90-17—90-28
25-067	06-25-2025	Amending Chapter 99, Barbershops and Beauty Parlors	Ch. 99 (tit.), Art. I(tit.) 99-1—99-4, 99-6—99-8 Rpld 99-9 Rnbd 99-10 as 99-9 Rpld 99-11 Rnbd 99-12—99-15 as 99-10—99-13 Rpld Art. II (tit.), 99-16 Rnbd 99-17, 99-18 as 99-14, 99-15 Rpld 99-19 Rnbd Art. III as Art. II Rnbd 99-20—99-29 as 99-16—99-25
25-068	06-25-2025	Amending and supplementing Chapter 160, Fees and Charges, to revise the fees for Section C (Chapter 84 - Alcoholic Beverages and Cannabis), Section E (Chapter 90 - Animals), Section F (Chapter 99 - Cosmetology), Section P (Chapter 175 - Food Handling Establishments), Section Q (Chapter 182 - Health and Sanitation), Section S (Chapter 193 - ICE), Section U (Chapter 207 - Laundries and Dry Cleaners), and Section RR (Chapter 329 - Vending Machines)	160- 1.C, E, G, P, Q, S, U, RR
25-069	06-25-2025	Amending and supplementing Chapter 175, Article II, Mobile Food Vendors, and Article III, Food Establishments	175-8—175-14, 175-18—175-28 Rpld 175-29
25-070	06-25-2025	Amending Chapter 182, Health and Sanitation	182-2.A, 182-4 Rpld 182-5—182-24 Rnbd Ch. 182, Arts. III—VII as Ch. 182, Art. II—VI Rnbd 182-25—182-36 as 182-5—182-16
25-071	06-25-2025	Amending and striking Chapter 193, Ice, from the Jersey City Municipal Code	Rpld 193-1—193-12
25-072	06-25-2025	Amending and supplementing Chapter 207, Laundries and Dry Cleaners, Article I, Coin-Operated Dry Cleaners, and Article II, Laundries	207-1—207-11, 207-15—207-18, 207-20—207-26, 207-29—207-32, 207-38, 207-39, 207-43 Rpld 207-14, 207-45
25-073	06-25-2025	Amending Chapter 296, Article II, Closure of the Public Right-of-Way, requiring Council approval of certain applications for street closures	296-2.11
25-074	07-16-2025	Amending the Jersey City Official Zoning Map	Ch. A352, Table 3

Ordinance Number	Date of Adoption	Description	Disposition
25-075	07-16-2025	Amending Chapter 160, Fees and Charges, establishing Zone 3 permit fee	160-1.SS(14)
25-076	07-16-2025	Amending Chapter 218, Multiple Dwellings, Section 12, Preventing algorithmic rent-fixing in the rental housing market	218-12
25-077	07-16-2025	Amending Section 345-31 of the Land Development Ordinance regarding the General Development Checklist	345-31.C
25-078	08-20-2025	Authorizing the City to renew the lease with Riverview Community Garden for the use of Block 3002, Lot 2, more commonly known as 285 Ogden Avenue for a community garden	Ch. A352, Table 4
25-079	08-20-2025	Authorizing the accepting the dedication of Street and Sidewalks on a portion of Chapel Avenue situated at Block 27503, Lot 14.01	Ch. A352, Table 2
25-080	08-20-2025	Authorizing the execution of an easement, access and maintenance agreement between 500 Communipaw Avenue LLC (Grantor) and the City (Grantee) in connection with the construction of a residential building at 500-510 Communipaw Avenue	Ch. A352, Table 4
25-081	08-20-2025	Authorizing the City to acquire certain real property known as Block 27503, Lot 13.01 on the City's Tax Map located at the foot of Chapel Avenue from Liberty National Development Co, LLC for the purposes of ensuring continued ferry service to the public	Ch. A352, Table 3
25-082	08-20-2025	Amending Chapter 163, Firearms and Weapons, to add Article VI, Firearm Storage Requirements	Added 163-19, 163-20
25-083	08-20-2025	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, at St. Joseph's School (509 Pavonia Avenue)	332-24
25-084	08-20-2025	Amending Chapter 332, Article II, Section 332-8, Prohibited right turns on red signal, to prohibit turns on red at all times at various intersections along Summit Avenue in the Journal Square neighborhood and at Grand Street	332-8
25-086	09-24-2025	Adopting amendments to the Journal Square 2060 Redevelopment Plan and the Saint John's Redevelopment Plan	Ch. A352, Table 5
25-088	09-10-2025	Granting permission to 88 Regent Street, LLC, its successors and assigns, to have private improvements in the public right-of-way of Regent Street adjacent to the property located at 88 Regent Street, Jersey City, New Jersey, identified on the tax maps of the City as Block 14002, Lots 1.02 and 1.06	Ch. A352, Table 2
25-089	09-10-2025	Granting permission to Ian Gutch and Shannon Smith pursuant to resolution of Planning Board of the City of Jersey City under Case #P2024-0135 allowing the installation of a common entry stoop and stair that extend into the right-of-way beyond the boundary lines of Lot 30, Block 19007, and are for the benefit of Lot 30, Block 19007, commonly known as 328 Halladay Street	Ch. A352, Table 2
25-090	09-10-2025	Authorizing the City to execute an extension of a lease with the New Jersey Schools Development Authority on the real property at Block 21102, Lot 52 on the City's tax map located at 70 Ege Avenue for the purposes of temporary parking for the Via JC service	Ch. A352, Table 4
25-091	09-10-2025	Supplementing Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69

Ordinance Number	Date of Adoption	Description	Disposition
25-092	09-10-2025	Amending Chapter 332, Article II, Section 332-9, Stop intersections, to designate various intersections in the Heights neighborhood into multi-way stop intersections	332-9
25-093	09-10-2025	Amending Chapter 332, Article III, Section 332-24, Parking prohibited certain hours, along Van Winkle Avenue between Tonnele Avenue and Liberty Avenue	332-24
25-094	09-10-2025	Amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, to extend Parking Zone 2 to include Clifton Place between Fairmount Avenue and Summit Avenue	332-58
25-096	09-24-2025	Amending Chapter A352, Enabling Ordinances, commemoratively designating Bentley Avenue, from John F. Kennedy Blvd. to West Side Avenue in the City of Jersey City, as "Walter R. Lezynski Way"	Ch. A352, Table 7
25-097	09-24-2025	Authorizing the execution of documents amending and releasing certain restrictions imposed on Block 15801, Lot 5 within the Jersey City Medical Center site to allow for its redevelopment	Ch. A352, Table 5
25-098	09-24-2025	Amending Chapter 218, Multiple Dwellings, by adding Subsection 3 "Mandatory Disclosure For Rent Increases" to Section 12 and correcting language in Section 1	218-12
25-099	09-24-2025	Amending and supplementing Chapter 260, Rent Control, to clarify the scope of state-level exemptions	260-6 Added 260-21
25-101	10-08-2025	Approving a tax exemption and authorizing a financial agreement with Sussex Street Associates Urban Renewal, LLC, regarding a project at Block 14205, Lot 10.01, commonly known as 177 Grand Street, and Block 14205, Lots 12 and 13, commonly known as 193-195 Grand Street, pursuant to the Long-Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq.	Ch. A352, Table 6
25-103	10-08-2025	Amending supplementing chapter 332, Article III, Section 332-31, Parking restrictions for street cleaning purposes, on Lincoln Park	332-31
25-104	10-08-2025	Supplementing Chapter 332, Article IX, Parking for the Disabled, designating a reserved parking space at various locations throughout the City	332-29, 332-69
25-105	10-08-2025	Amending Chapter 1, General Provisions; Chapter 218, Multiple Dwellings; Chapter 254, Property Maintenance; and Chapter 260, Rent Control, to establish mandatory minimums for violations of housing-related ordinances	1-25, 218-2.1, 218-6, 218-11, 254-112, 260-17 Added 218-19
25-106	11-12-2025	An ordinance referring and adopting amendments to the Bright Street Redevelopment Plan allowed accessory uses in Zone 3: Residential Infill	Ch. A352, Table 5
25-108	11-12-2025	Amending Chapter 187, Inclusionary Zoning Ordinance	187-2—187-4
25-109	10-22-2025	Amending Chapter 332, Article II, Section 332-9, Stop intersections, to designate various intersections into multi-way stop intersections	332-9
25-111	11-12-2025	Providing for a special emergency appropriation in the amount of $14,000,000 to fund contractually required severance liabilities resulting from the retirement of employees of the City	Ch. A352, Table 1
25-113	11-12-2025	Amending Chapter 90, Animals, to ban the retail sale of dogs, cats and rabbits in pet stores within Jersey City	Added 90-22.5
25-114	11-12-2025	Amending Chapter 188, Housing Accommodations and Affordable Housing Compliance	160-1.R, 188-7—188-14 Rpld 188-15—188-18 Added 188-15—188-20

Ordinance Number	Date of Adoption	Description	Disposition
25-115	11-12-2025	Amending Chapter 345 and the Municipal Zoning Map to create the Hackensack River Greenway Overlay District	Added 345-59.9
25-116	11-12-2025	Amending the Bates Street Redevelopment Plan	Ch. A352, Table 5
25-117	11-12-2025	Authorizing a settlement agreement to settle the litigation surrounding the Sixth Street Embankment	Ch. A352, Table 5
25-118	11-12-2025	Authorizing a tax abatement with Jersey City Embankment Associates LLC regarding property located at Block 11602, Lot 1, on the tax map of the City, more commonly known as 437 Marin Boulevard, pursuant to the Long-Term Tax Exemption Law, N.J.S.A. 40A:20-1, et seq.	Ch. A352, Table 6
25-121	11-25-2025	Amending Chapter 3, Article X	3-72—3-74 3-80, 3-81
25-122	11-25-2025	Amending Chapter 254, Article IX, Section 254-45, General safety and sanitation, to align facade inspection standards with best practices	254-45
25-124	12-10-2025	Amending Chapter 345, Section 52 regarding permitted uses in the Medical Zone	345-52
25-127	12-10-2025	Amending Chapter A350, Council Rules Order	A350-3, A350-6.A, A350-12, A350-14, A350-17—A350-19, A350-24, A350-25.A
25-128	12-10-2025	Amending Chapter 332, Article III, Section 332-22, Parking prohibited at all times, along Steuben Street between Warren Street and Washington Street	332-22
25-130	12-10-2025	Authorizing the City to enter into a lease agreement with the Exchange Place Alliance District Management Corporation for space at 335 Washington Street	Ch. A352, Table 4
25-131	12-10-2025	Establishing the Jersey City Accessibility Advisory Committee	Added 72-1—72-5
26-001	02-11-2026	Amending Chapter 3, Article XI, Sub-article I, Division of Police, and Chapter 160, Subsection A.7, Fees for the Department of Public Works, to reform the off-duty and public works rental for non-profit and cultural events	3-85.1, 160-1.A
26-002	02-11-2026	Supplementing Chapter 332, Article IX, designating a reserved parking space at various locations throughout the City	332-29, 332-69
26-004	02-25-2026	Authorizing the acceptance of Block 11612, Lot 3, more commonly known by the street address of 95 Morgan Street, from 95 Morgan Street Development, LLC	Ch. A352, Table 3
26-005	02-11-2026	Granting permission to 20 VANW, LLC by it managing member, Hangyuan Zhang, allowing the installation of concrete stairs that extend into the right-of-way beyond the boundary lines of Lot 38, Block 12003, and are for the benefit of Lot 38, Block 12003, commonly known as 20 Van Wagenen Avenue	Ch. A352, Table 2
26-006	02-25-2026	Authorizing the use of up to three percent of payroll taxes collected to be used on administrative expenses and a waiver for entities subject to an out-of-state payroll tax in accordance with recent changes to New Jersey law	Added 304-19.C, 304-19.1.G
26-007	02-25-2026	Granting permission to Avenir West Side Square LLC, for the installation of a lit protective bollard at Lot 30.01 in Block 9301, (Qualifier 1) also known as 1075 West Side Avenue into the right-of-way	Ch. A352, Table 2
26-010	03-11-2026	Amending Chapter 332, Article II, Section 332-5, One-Way Streets, on Franklin Street between Palisade Avenue and Central Avenue	332-5

Ordinance Number	Date of Adoption	Description	Disposition
26-011	03-11-2026	Authorizing the City, as tenant, to extend for a two-year a lease with 18 Ash Street Realty, as landlord, for space located at 46 State Street, Jersey City	Ch. A352, Table 4
26-014	03-11-2026	Amending the Jersey City Land Development Ordinance, Chapter 345, Article I, Section 6, Definitions; Article V, Section 62, Residential Design Standards, and Section 63, Non-residential design standards	345-6 Adding 345-62.U, 345-63.R
26-015	03-25-2026	Adopting amendments to the Powerhouse Arts District Redevelopment Plan	Ch. A352, Table 5
26-016	02-11-2026	Amending Chapter 332, Article VIII, Section 332-58, Parking restrictions in residential zones, to establish a new Permit Parking Zone 20 for streets adjacent to the Liberty State Park HBLR Station East of Pacific Avenue	332-58

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